SUPPLEMENT NO. 146
VOLUMES I AND II
August 2026

CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance of May 7, 2026.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 145
VOLUMES I AND II
January 2026

CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Charter Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2025-12-04-0793, enacted December 4, 2025.

See the Code Comparative Table—Ordinances for further information.

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SUPPLEMENT NO. 144
VOLUMES I AND II
October 2025

CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Charter Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2025-09-18-0639, enacted September 18, 2025.

See the Code Comparative Table—Ordinances for further information.

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SUPPLEMENT NO. 143
VOLUMES I AND II
July 2025

CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Charter Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2025-06-12-0465, enacted June 12, 2025.

See the Code Comparative Table—Ordinances for further information.

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SUPPLEMENT NO. 142
VOLUMES I AND II
January 2025

CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Charter Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2024-08-08-0550, enacted August 8, 2024.

See the Code Comparative Table—Ordinances for further information.

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SUPPLEMENT NO. 141
VOLUMES I AND II
November 2024

CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2024-08-08-0544, enacted August 8, 2024.

See the Code Comparative Table—Ordinances for further information.

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SUPPLEMENT NO. 140
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CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2024-05-02-0274, enacted May 2, 2024.

See the Code Comparative Table—Ordinances for further information.

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SUPPLEMENT NO. 139
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April 2024

CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2024-02-01-0087, enacted February 1, 2024.

See the Code Comparative Table—Ordinances for further information.

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SUPPLEMENT NO. 138
VOLUMES I AND II
November 2023

CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2023-10-19-0747, enacted October 19, 2023.

See the Code Comparative Table—Ordinances for further information.

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SUPPLEMENT NO. 137
VOLUMES I AND II
August 2023

CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2023-03-23-0166, enacted March 23, 2023.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 136
VOLUMES I AND II
February 2023

CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2022-12-15-0971, enacted December 15, 2022.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 135
VOLUMES I AND II
October 2022

CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2022-09-08-0668, enacted September 8, 2022.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 134
VOLUMES I AND II
August 2022

CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2022-06-16-0443, enacted June 16, 2022.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 133
VOLUMES I AND II
April 2022

CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2022-02-17-0112, enacted February 17, 2022.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 132
VOLUMES I AND II
June 2021

CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2021-04-29-0283, enacted April 29, 2021.

See the Code Comparative Table for further information.

Included in the Charter is:

Ordinance No. 2021-05-12-0327, enacted May 12, 2021.

See the Charter Comparative Table for further information.

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SUPPLEMENT NO. 131
VOLUMES I AND II
March 2021

CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2019-12-12-1028, enacted December 12, 2019.

The Code is up-to-date through:

Ordinance No. 2020-10-29-0772, enacted October 29, 2020.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 130
VOLUMES I AND II
February 2021

CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2020-10-29-0772, enacted October 29, 2020.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 129
VOLUMES I AND II
October 2020

CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2020-09-03-0601, enacted September 3, 2020.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 128
VOLUMES I AND II
April 2020

CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2020-03-05-0166, enacted March 5, 2020.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 127
VOLUMES I AND II
January 2020

CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2019-11-07-0910, enacted November 7, 2019.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 126
VOLUMES I AND II
July 2019

CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2019-06-24-0584, enacted June 24, 2019.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 125
VOLUMES I AND II
June 2019

CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2019-04-11-0305, enacted April 11, 2019.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 124
VOLUMES I AND II
March 2019

CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2019-02-14-0122, enacted February 14, 2019.

See the Code Comparative Table for further information.

Included in the Charter is:

Ordinance No. 2018-11-15-0900, enacted November 15, 2018.

See the Charter Comparative Table for further information.

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SUPPLEMENT NO. 123
VOLUMES I AND II
January 2019

CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2018-12-13-1017, enacted December 13, 2018.

See the Code Comparative Table for further information.

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VOLUMES I AND II
November 2018

CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2018-11-01-0858, enacted November 1, 2018.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 121
VOLUMES I AND II
October 2018

CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2018-08-02-0551, enacted August 2, 2018.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
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SUPPLEMENT NO. 120
VOLUMES I AND II
July 2018

CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2018-06-21-0491, enacted June 21, 2018.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
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SUPPLEMENT NO. 119
VOLUMES I AND II
June 2018

CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2018-04-12-0266, enacted April 12, 2018.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
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SUPPLEMENT NO. 118
VOLUMES I AND II
March 2018

CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2018-01-11-0001, enacted January 11, 2018.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 117
VOLUMES I AND II
November 2017

CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2017-10-05-0755, enacted October 5, 2017.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 116
VOLUMES I AND II
September 2017

CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2017-05-04-0297, enacted May 4, 2017.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 115
VOLUMES I AND II
June 2017

CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2017-05-04-0298, enacted May 4, 2017.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 114
VOLUMES I AND II
January 2017

CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2016-12-08-0969, enacted December 8, 2016.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 113
VOLUMES I AND II
August 2016

CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2016-06-30-0518, enacted June 30, 2016.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 112
VOLUMES I AND II
May 2016

CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2016-04-14-0283, enacted April 14, 2016.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 111
VOLUMES I AND II
January 2016

CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2015-12-17-1067, enacted December 17, 2015.

See the Code Comparative Table for further information.

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VOLUMES I AND II
November 2015

CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2015-10-15-0874, enacted October 15, 2015.

See the Code Comparative Table for further information.

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CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2015-06-18-0563, enacted June 18, 2015.

See the Code Comparative Table for further information.

Included in the Charter is:

Ordinance No. 2015-05-20-0423, enacted May 20, 2015.

See the Charter Comparative Table for further information.

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VOLUMES I AND II
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CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2015-04-30-0354, enacted April 30, 2015.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 107
VOLUMES I AND II
February 2015

CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2014-12-11-1002, enacted December 11, 2014.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 106
VOLUMES I AND II
September 2014

CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2014-08-07-0539, enacted August 7, 2014.

See the Code Comparative Table for further information.

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May 2014

CODE OF ORDINANCES

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2014-04-10-0229, enacted April 10, 2014.

See the Code Comparative Table for further information.

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VOLUMES I AND II
February 2014

CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2013-12-19-0922, enacted December 19, 2013.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 103
VOLUMES I AND II
September 2013

CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2013-08-01-0501, enacted August 1, 2013.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 102
VOLUMES I AND II
May 2013

CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2013-04-11-0258, adopted April 11, 2013.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 101
VOLUMES I AND II
February 2013

CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2012-12-13-1007, adopted December 13, 2012.

See the Code Comparative Table for further information.

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VOLUMES I AND II
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CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2012-10-11-0809, adopted October 11, 2012.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 99
VOLUMES I AND II
September 2012

CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2012-05-31-0393, adopted May 31, 2012.

See the Code Comparative Table for further information.

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VOLUMES I AND II
June 2012

CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2012-05-17-0357, enacted May 17, 2012.

See the Code Comparative Table for further information.

Included in the Charter is:

Ordinance No. 2012-05-17-0348, adopted May 17, 2012.

See the Charter Comparative Table for further information.

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VOLUMES I AND II
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City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2012-03-08-0170, enacted March 8, 2012.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 96
VOLUMES I AND II
February 2012

CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2012-01-19-0031, enacted January 19, 2012.

See the Code Comparative Table for further information.

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City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2011-06-23-0575, enacted June 23, 2011.

See the Code Comparative Table for further information.

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CODE OF ORDINANCES

City of

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This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2011-05-12-0378, enacted May 12, 2011.

See the Code Comparative Table for further information.

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VOLUMES I AND II
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CODE OF ORDINANCES

City of

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Ordinance No. 2011-01-20-0046, enacted January 20, 2011.

See the Code Comparative Table for further information.

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City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2010-12-16-1089, enacted December 16, 2010.

See the Code Comparative Table for further information.

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City of

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This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2010-11-04-0955, enacted November 4, 2010.

See the Code Comparative Table for further information.

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VOLUMES I AND II
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CODE OF ORDINANCES

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2010-06-24-0618, enacted June 24, 2010.

See the Code Comparative Table for further information.

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June 2010

CODE OF ORDINANCES

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2010-05-06-0387, adopted May 6, 2010.

See the Code Comparative Table for further information.

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CODE OF ORDINANCES

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2010-02-04-0097, adopted February 4, 2010.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 87
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February 2010

CODE OF ORDINANCES

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2010-01-14-0116, adopted January 14, 2010.

See the Code Comparative Table for further information.

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VOLUMES I AND II
November 2009

CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2009-10-29-0861, adopted October 29, 2009.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 85
VOLUMES I AND II
October 2009

CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2009-09-17-0731Q, adopted September 17, 2009.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 84
VOLUMES I AND II
August 2009

CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2009-06-25-0553, adopted June 25, 2009.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 83
VOLUMES I AND II
June 2009

CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2009-05-21-0427, adopted May 21, 2009.

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SUPPLEMENT NO. 82
VOLUMES I AND II
April 2009

CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2009-03-12-0179, adopted March 12, 2009.

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CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2008-12-11-1162, adopted December 11, 2008.

See the Code Comparative Table for further information.

Included in the Charter is:

Ordinance No. 2008-11-17-1010, adopted November 17, 2008.

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2008-11-06-0990, adopted November 6, 2008.

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VOLUMES I AND II
September 2008

CODE OF ORDINANCES

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2008-08-21-0727, adopted August 21, 2008.

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SUPPLEMENT NO. 78
VOLUMES I AND II
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City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2008-06-19-0594, adopted June 19, 2008.

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CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2008-05-15-0403, adopted May 15, 2008.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 76
VOLUMES I AND II
March 2008

CODE OF ORDINANCES

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2008-03-13-0202, adopted March 13, 2008.

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VOLUMES I AND II
January 2008

CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2007-12-13-1328, adopted December 13, 2007.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 74
VOLUMES I AND II
November 2007

CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

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Ordinance No. 2007-09-20-0988, adopted September 20, 2007.

See the Code Comparative Table for further information.

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VOLUMES I AND II
October 2007

CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

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This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2007-08-30-0914, adopted August 30, 2007.

See the Code Comparative Table for further information.

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VOLUMES I AND II
August 2007

CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2007-05-17-0559, adopted May 17, 2007.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 71
VOLUMES I AND II
May 2007

CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2007-05-10-0523, adopted May 10, 2007.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 70
VOLUMES I AND II
March 2007

CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2007-02-15-0175, adopted February 15, 2007.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 69
VOLUMES I AND II
January 2007

CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2007-01-04-0002, adopted January 4, 2007.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 68
VOLUMES I AND II
November 2006

CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2006-10-12-1185, adopted 12, 2006.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 67
VOLUMES I AND II
October 2006

CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2006-09-07-1013, adopted Septmber 7, 2006.

See the Code Comparative Table for further information.

Included in the Charter is:

Ordinance No. 99252, adopted May 27, 2004.

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SUPPLEMENT NO. 66
VOLUMES I AND II
July 2006

CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2006-06-29-0819, adopted June 29, 2006.

See the Code Comparative Table for further information.

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VOLUMES I AND II
SUPPLEMENT NO. 65
May 2006

CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2006-03-02-0268, adopted March 2, 2006.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 64
VOLUMES I AND II
February 2006

CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 101344, adopted September 1, 2005.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 63
VOLUMES I AND II
August 2005

CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 99973, adopted November 4, 2004.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 62
VOLUMES I AND II
July 2004

CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 99261, adopted May 27, 2004.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 61
VOLUMES I AND II
March 2004

CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 98639, adopted December 18, 2003.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 60
VOLUMES I AND II
October 2002

CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 96242, adopted August 22, 2002.

See the Code Comparative Table for further information.

Included in the Charter is:

Ordinance No. 94956, adopted November 15, 2001.

See the Charter Comparative Table for further information.

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SUPPLEMENT NO. 59
VOLUMES I and II
September 2001

CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 94321, adopted August 9, 2001.

See the Code Comparative Table for further information.

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VOLUMES I and II
July 2001

CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 94100, adopted June 14, 2001.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 57
VOLUMES I and II
June 2001

CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

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SUPPLEMENT NO. 56
VOLUMES I and II
April 2001

CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

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See the Code Comparative Table for further information.

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SUPPLEMENT NO. 55
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CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

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SUPPLEMENT NO. 54
VOLUMES I and II
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CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

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See the Code Comparative Table for further information.

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SUPPLEMENT NO. 53
VOLUMES I AND II
June 2000

CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 91738, adopted May 4, 2000.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 52
VOLUMES I AND II
May 2000

CODE OF ORDINANCES

City of

SAN ANTONIO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 91447, adopted March 16, 2000.

See the Code Comparative Table for further information.

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CODE

CITY OF

SAN ANTONIO, TEXAS

VOLUME I

Adopted February 20, 1986
Effective March 3, 1986

Published in 1986 by Order of the City Council

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of the

CITY OF SAN ANTONIO, TEXAS

AT THE TIME OF THIS CODIFICATION

Henry G. Cisneros
Mayor

Maria Antonietta Berriozabal
Joe Webb
Helen Dutmer
Frank Wing
Bernardo Eureste
Robert Thompson
Joe Alderete, Jr.
G.E. "Ed" Harrington
Van Henry Archer, Jr.
James Hasslocher

City Council

Louis J. Fox
City Manager

Lowell Denton
City Attorney

Norma S. Rodriguez
City Clerk

CURRENT OFFICIALS
of the
CITY OF SAN ANTONIO, TEXAS

Ron Nirenberg
Mayor

District 1: Sukh Kaur	District 6: Melissa Cabello Havrda
District 2: Jalen McKee-Rodriguez	District 7: Marina Alderete Gavito
District 3: Phyllis Viagran	District 8: Manny Pelaez
District 4: Adriana Rocha Garcia	District 9: John Courage
District 5: Teri Castillo	District 10: Marc Whyte

City Council

Erik Walsh
City Manager

Andrew Segovia
City Attorney

Debbie Racca-Sittre
City Clerk

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PREFACE

This code constitutes a complete recodification of the ordinances of the city of a general and permanent nature.

Source materials used in the preparation of the Code were the 1959 Code, as supplemented through December 1, 1983, and ordinances subsequently adopted by the council. The source of each section is included in the history note appearing in parentheses at the end thereof. The absence of such a note indicates that the section is new and was adopted for the first time with the adoption of the Code. By use of the Comparative Tables appearing in the back of this volume, the reader can locate any section of the 1950 Code and the 1959 Code, as supplemented, and any subsequent ordinance included herein.

The chapters of the Code have been conveniently arranged in alphabetical order and the various sections within each chapter have been catchlined to facilitate usage. Footnotes which tie related sections of the Code together and which refer to relevant state laws have been included. A table listing the state law citations and setting forth their location within the Code is included at the back of this volume.

Numbering System

The numbering system used in this Code is the same system used in many state and municipal codes. Each section number consists of two component parts separated by a dash, the figure before the dash referring to the chapter number and the figure after the dash referring to the position of the section within the chapter. Thus, the first section of Chapter 3 is numbered 3-1 and the eighteenth section of Chapter 29 is 29-18. Under this system, each section is identified with its chapter and at the same time new sections or even whole chapters can be inserted in their proper place simply by using the decimal system for amendments. By way of illustration: If new material consisting of three sections that would logically come between Sections 3-21 and 3-22 is desired to be added, such new sections would be numbered 3-21.1, 3-21.2, 3-21.3 respectively. New chapters may be included in the same manner. If the new material is to be included between Chapters 10 and 11, it will be designated as Chapter 10.5. Care should be taken that the alphabetical arrangement of chapters is maintained when including new chapters. New articles and new divisions may be included in the same way or, in the case of articles, may be placed at the end of the chapter embracing the subject, and, in the case of divisions, may be placed at the end of the article embracing the subject, the next successive number being assigned to the article or division.

Indices

The indices have been prepared with the greatest of care. Each particular item has been placed under several headings, some of the headings being couched in lay phraseology, others in legal terminology, and still others in language generally used by municipal officials and employees. There are numerous cross references within each index which stand as guideposts to direct the user to the particular item in which he is interested.

Looseleaf Supplements

A special feature of this Code to which the attention of the user is especially directed is the looseleaf system of binding and supplemental servicing for the Code. With this system, the Code will be kept up-to-date periodically. Upon the final passage of amendatory ordinances, they will be properly edited and the appropriate page or pages affected will be reprinted. These new pages will be distributed to holders of copies of the Code, with instructions for the manner of inserting the new pages and deleting the obsolete pages. Each such amendment, when incorporated into this Code, may be cited as a part hereof.

The successful maintenance of this Code up-to-date at all times will depend largely upon the holder of the volume. As revised sheets are received, it will then become the responsibility of the holder to have the amendments inserted according to the attached instructions. It is strongly recommended by the publishers that all such amendments be inserted immediately upon receipt to avoid misplacing them and, in addition, that all deleted pages be saved and filed for historical reference purposes.

Acknowledgments

The publication of this Code was under direct supervision of Thomas B. Calhoun, Supervising Editor, of the Municipal Code Corporation, Tallahassee, Florida. Credit is gratefully given to the other members of the publisher's staff for their sincere interest and able assistance throughout the project.

The publishers are most grateful to Norma S. Rodriguez, City Clerk and Tom Finlay, Assistant City Attorney, for their cooperation and assistance during the progress of the work on this Code. It is hoped that their efforts and those of the publishers have resulted in a Code of Ordinances which will make the active law of the city readily accessible to all citizens and which will be a valuable tool in the day-to-day administration of its affairs.

MUNICIPAL CODE CORPORATION

Tallahassee, Florida

ORDINANCE No. 62369

An Ordinance Adopting A New Code of Civil and Criminal Ordinances of the City of San Antonio; Providing for the Printing Thereof, Authentication by the Mayor and Attestation by the City Clerk; Providing that Said Code May be Admitted in Evidence Without Necessity of Other Proof; Providing for Amendments to Said Code; Providing for a Fine or a Penalty Not to Exceed $1,000.00 for Violations of Certain Ordinances Pertaining to Fire Safety, Zoning, or Public Health and Sanitation, Including Dumping of Refuse, and a Fine or Penalty Not to Exceed $200.00 for Violation of Certain Other Ordinances; and Providing For The Effective Date of Said Code.

Whereas, Section 17 of the City Charter of the City of San Antonio provides that the City Council may adopt any code or codification of ordinances or parts thereof, and may amend and correct certain ordinances therein for the purpose of general distribution; and

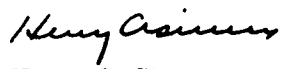
Whereas, Article 1176a of the Revised Civil Statutes of Texas gives any city the power to codify its civil and criminal ordinances and adopt a civil and criminal code of ordinances which when adopted shall have the force and effect of an ordinance regularly enacted with the usual prerequisite of law; and

Whereas, the City Council finds that it is desirable to recodify the ordinances of the City of a general and permanent nature; *Now Therefore:*

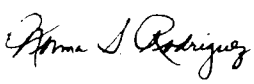
Be It Ordained by the City Council of the City of San Antonio:

Section 1. The "City Code of San Antonio, Texas" consisting of Chapters 1 through 35, inclusive, and 3,948 pages, dated 1986, is hereby adopted and enacted and shall hereafter constitute the revised code of civil and criminal ordinances of the City of San Antonio and shall be known as the "City Code of San Antonio, Texas." Three copies of said code of Ordinances of the City of San Antonio have been filed with the City Clerk for permanent record and inspection prior to adoption of said Code, and shall continue to be so filed. Said code is incorporated herein by reference as if fully set forth herein.

Section 2. (a) Four hundred (400) copies of such code duly authenticated and approved under the facsimile signature of the Mayor, and attested by the facsimile signature of the City Clerk, together with a facsimile reproduction of the seal of the City of San Antonio, shall be printed under the direction of the governing body by the Municipal Code Corporation, Tallahassee, Florida. The original signature of the Mayor, the City Clerk, from which the facsimile signatures shall be reproduced, are as follows:



Henry G. Cisneros
Mayor of the City of San Antonio, Texas



Norma S. Rodriguez
City Clerk of the City of San Antonio, Texas

The official seal of the City of San Antonio from which the facsimile seal shall be reproduced is impressed herewith:

(b) The authentication shall be in the following form:

"STATE OF Texas:
COUNTY OF BEXAR:

This Code of Civil and Criminal Ordinances has been duly adopted by the governing body of the City of San Antonio this the 20th day of February, 1986, in the manner required by law and is hereby authenticated as the Code of Civil and Criminal Ordinances of the City of San Antonio and becomes effective as provided in the adopting ordinance on the 3rd day of March, 1986.

Henry G. Cisneros
Mayor of the City of San Antonio, Texas

ATTEST: Norma S. Rodriguez
City Clerk of the
City of San Antonio, Texas

Section 3. The code adopted herein shall include such additions and amendments as are made by the City Council thereto and shall be admitted in evidence without further proof and shall have the full force and effect as further provided by Article 1176a of the Revised Civil Statutes of Texas.

Section 4. A copy of such Code shall be kept on file in the Office of the City Clerk preserved in looseleaf form, or in such other form as the City may consider most expedient. It shall be the express duty of the City Clerk to insert in their designated places all amendments or ordinances which indicate the intention of the City Council to make the same a part of such Code when the same have been printed or reprinted in page form, and to extract from such Code all provisions which may be from time to time repealed by the City Council. This copy of such Code shall be available for all persons desiring to examine the same and shall be considered the official Code of Ordinances of the City of San Antonio. However, the failure to include any ordinance or amendment or addition to the Code adopted herein in such official Code shall not otherwise affect the validity of said ordinance, amendment or addition,

and such ordinance, amendment or addition shall have the full force and effect as otherwise provided by law.

Section 5. It shall be unlawful for any person, firm or corporation in the City to change or amend by additions or deletions, any part or portion of such Code, or to insert or delete pages or portions thereof, or to alter or tamper with such Code in any manner whatsoever which will cause the law of the City of San Antonio to be misrepresented thereby. Any person, firm or corporation violating this section shall be punished as provided in Section 1-5 of the Code of Ordinances of the City of San Antonio adopted herein.

Section 6. This ordinance and the code adopted and enacted herein shall become effective on March 3, 1986.

PASSED AND APPROVED this 20th day of February, 1986.

Henry Cisneros

ATTEST: Norma S. Rodriguez
Norma S. Rodriguez
City Clerk

APPROVED AS TO FORM: _____
City Attorney

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Checklist of Up-to-Date Pages

(This checklist will be updated with the printing of each Supplement)

From our experience in publishing Looseleaf Supplements on a page-for-page substitution basis, it has become evident that through usage and supplementation many pages can be inserted and removed in error.

The following listing is included in this Code as a ready guide for the user to determine whether the Code volume properly reflects the latest printing of each page.

In the first column all page numbers are listed in sequence. The second column reflects the latest printing of the pages as they should appear in an up-to-date volume. The letters "OC" indicate the pages have not been reprinted in the Supplement Service and appear as published for the original Code. When a page has been reprinted or printed in the Supplement Service, this column reflects the identification number or Supplement Number printed on the bottom of the page.

In addition to assisting existing holders of the Code, this list may be used in compiling an up-to-date copy from the original Code and subsequent Supplements.

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SUPPLEMENT HISTORY TABLE

The table below allows users of this Code to quickly and accurately determine what ordinances have been considered for codification in each supplement. Ordinances that are of a general and permanent nature are codified in the Code and are considered "Included." Ordinances that are not of a general and permanent nature are not codified in the Code and are considered "Omitted."

By adding to this table with each supplement, users of this Code of Ordinances will be able to gain a more complete picture of the Code's historical evolution.

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PART I

CHARTER*

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*__Editor's note—__The Charter included herein was adopted at an election held on October 2, 1951, to become effective on January 1, 1952. The editor has inserted footnotes or [ ] where explanatory material has been added. The catchlines of the articles and sections have in some instances been altered in minor respects so as to more clearly indicate the contents thereof. The original numbering system has been retained. Amendments to the Charter as originally enacted are indicated by the history note following the amended section. Minor nonsubstantive changes have been made in capitalization and style to conform the Charter to the Code format.

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ARTICLE I. INCORPORATION, FORM OF GOVERNMENT AND POWERS

Sec. 1. Incorporation.

The inhabitants of the City of San Antonio in Bexar County, Texas, residing within the corporate limits of the city, as now or later established in the manner provided by law or by this Charter, are by this Charter constituted and shall continue to be a municipal body politic and corporate under the name of the "CITY OF SAN ANTONIO," referred to as "the City," and by that name shall have perpetual succession and shall have and succeed to all the rights, property, real, personal and mixed, immunities, powers, privileges and franchises now held, possessed and enjoyed by the city or granted by this Charter, and shall be subject to all its present duties and liabilities, subject to the limitations prescribed in this Charter.
(Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 2. Form of government.

The municipal government provided by this Charter shall be known as the "council-manager government." Pursuant to its provisions and subject only to the limitations imposed by the state constitution and by this Charter, all powers of the city shall be vested in an elective council, referred to as "the Council," which shall enact local legislation, adopt budgets, determine policies, and appoint the city manager, who shall execute the laws and administer the government of the city. All powers of the city shall be exercised in the manner prescribed by this Charter, or if the manner is not prescribed, then in such manner as may be prescribed by ordinance.
(Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 3. Powers of city.

Par. 1. General powers. The city may sue and be sued, plead and be impleaded in all courts, have a corporate seal, contract and be contracted with, ordain and establish such acts and regulations and ordinances not inconsistent with the constitution and laws of this state and this Charter as shall be needed for the government, interest, welfare and good order of the city and the interest, welfare, health, morals, comfort, safety and convenience of its inhabitants; the city may purchase, take, hold, acquire and convey, lease, mortgage and dispose of any property whatever within the city limits. The city may acquire necessary property for sewer, sanitary, cemetery, waterworks, gas, electric light and power, and any other corporate purposes by purchase, condemnation or other means within or without the city limits, and may lease, convey and alienate the same. Except as prohibited by the constitution and laws of Texas or as restricted by this Charter, the city shall have all municipal powers, functions, rights, privileges and immunities of every name and nature whatsoever, now or later granted by the constitution and laws of Texas, including without limitation the powers conferred expressly and permissively by laws passed pursuant to the Texas Home Rule Amendment, as now or later amended, all of which are adopted through this Charter. The council has the power and is expressly authorized to adopt any rule or regulation deemed necessary, advisable, or convenient for the purpose of exercising any power expressly or permissively conferred by the provisions of legislation passed by the State Legislature.

Par. 2. Annexation. The city shall have the power, by ordinance, to fix and change the bounds and limits of the city and to provide for the extension of the bounds and limits and the annexation of additional territory lying adjacent to the city with or without the consent of the territory and the inhabitants of the annexed territory; provided, however, that such an ordinance, or any amendment of such an ordinance, shall be published one time, prior to passage, in some daily newspaper published in the city and such ordinance shall not be passed until at least thirty days have elapsed after publication. The city shall have power to annex additional territory, lying adjacent to the city, and the inhabitants of that territory, as may be authorized by, and in the manner and form prescribed by state law.

Par. 3. Cooperation with state and federal governments. The city may cooperate and contract

with the government of the State of Texas or any agency or political subdivision of the State, and with the government of the United States of America, or any agency or department of the government, to accomplish any lawful purpose for the interest, welfare, health, morals, comfort, safety and convenience of the city or its inhabitants.

Par. 4. Eminent domain. The city shall have the power of eminent domain where necessary or desirable to execute any power conferred upon it by this Charter, or by the constitution or laws of Texas and may condemn either private or public property whether in or out of the corporate limits of the city for such purposes, upon payment of fair compensation for the property taken. Such power may be exercised in any manner authorized by the constitution or laws of Texas, or as may be prescribed by ordinance. The city may condemn the fee or any lesser interest in the property taken and may condemn for any public purpose whether specifically stated in this Charter or not.

Par. 5. Urban redevelopment. The city may adopt, modify, and carry out plans for the clearance and redevelopment of slum districts or blighted areas within the city, as such districts or areas may be defined by ordinance as to character, nature, location and extent. For the accomplishment of these public purposes, which may be further defined by ordinance, the city may acquire by purchase or by condemnation all privately owned land, buildings and other property interests within such districts or areas. The city may establish, locate, relocate, build and improve any streets or other public open spaces provided for in any plan so adopted. Pending the final clearance and redevelopment of such district or area, the city may maintain, lease, or sell any buildings or other improvements thus acquired. The city may sell the land, or any part of the land in such districts or areas, which is designated for private or public buildings or for private open spaces upon such terms, covenants and conditions and subject to such restrictions, excluding rent control by the city, as to building uses and open spaces, as will substantially carry out the plans adopted by the city for the clearance and redevelopment of such districts or areas; provided, however, that land so disposed of shall contain a covenant which shall run with such land precluding its sale to or use by any public housing agency. Before any plan is finally adopted by the city, a public hearing shall be held by the council, and, thirty days prior to the hearing, notice of its time and place shall be published one time in a newspaper published in the city and shall be sent by mail to the record owners of the property interests included within the district or area covered by any plan.

Par. 6. Fiscal powers. The city shall have the power to:

(1) Assess, levy and collect taxes for general and special purposes on all lawful subjects of taxation in accordance with the laws of Texas and this Charter.

(2) Provide for the payment of the current expenses and of the debts of the city.

(3) Borrow money on the faith and credit of the city by the issue or sale of bonds, certificates, or notes of the city.

(4) Borrow money on the faith and credit of any improvement district established in the city by the council, and issue bonds for permanent public improvements in such districts.

(5) Levy and collect special assessments for local improvements.

(6) Levy an occupation tax on any person, corporation, partnership, engaged in any business, occupation or calling in accordance with the laws of Texas.

(7) Levy an annual tax and appropriate funds for the purpose of advertising the city to increase its growth, improve the city and benefit its inhabitants.

Par. 7. Street powers. The City of San Antonio shall have the power to lay out, establish, open, alter, widen, lower, extend, grade, abandon, discontinue, abolish, close, care for, pave, supervise, maintain, improve, and regulate the use of streets, alleys, sidewalks, parks, squares, public places and bridges; and require the removal

from streets, sidewalks, alleys and other public property or places all obstructions and encroachments of every nature or character.

Par. 8. Street improvements. The city shall have exclusive dominion, control, and jurisdiction in, upon, and over and under the public streets, avenues, alleys, highways, and public ways of the city, and may provide for the improvement thereof by paving, re-paving, raising, draining, or otherwise. The provisions, without limitations, of laws providing for assessments against abutting property for street improvements are expressly adopted. Such exclusive dominion, control, and jurisdiction in, upon, over and under the public streets, avenues, alleys, highways, and public ways, of the city shall also include, but not be limited to, the power to regulate, locate, remove, or prohibit the location of, all utility pipes, conduits, lines, poles, wires or other property of any public utility.

Par. 9. Zoning. To promote the health, safety, morals or general welfare of the city, the council may by ordinance regulate the location, height, bulk and size of buildings and other structures, the size of yards, courts and other open spaces, and the use of buildings, structures and land for trade, industry, business, residence or other purposes. Such ordinances may provide that the zoning board of adjustment may, in appropriate cases and subject to appropriate principles, standards, rules, conditions and safeguards set forth in the ordinance, make special exceptions to the terms of the zoning regulations in harmony with their general purpose and intent. Such ordinances may provide that the zoning board of adjustment may authorize variances from the strict application of the regulations in such cases and subject to such limitations as may be set forth in ordinance. All of the powers granted by state zoning enabling laws now existing or later enacted are adopted.

Par. 10. Sanitary sewer system. The city shall have the power to provide for a sanitary sewer system and to require property owners to connect their premises with such sewer system; to provide for fixing penalties for failure to make sanitary sewer connections; and shall further have the right to fix charges and compensation to be charged by the city for sewerage service and make rules and regulations for collection.

Par. 11. Garbage disposal. The city shall have the right by ordinance to adopt and prescribe rules and regulations for the handling, collection and disposition of all garbage, trash and rubbish within the city and to fix and collect charges for removal.

Par. 12. Public assistance. The city may appropriate its funds, in the exercise of a governmental function, for the assistance of needy persons to provide for them the basic necessities of life in accordance with categories of such persons as may be defined by ordinance.

Par. 13. Other powers. The city shall have power to:

(1) Provide for, acquire, construct, regulate, protect and maintain public buildings, works, improvements, parks, gardens, and recreational facilities of any nature.

(2) License and regulate persons, corporations, partnerships and associations engaged in any business, occupation or calling.

(3) License and regulate vehicles operated for hire and fix and regulate the rates to be charged therefor.

(4) License and regulate all places of public amusement.

(5) Define and prohibit the maintenance of any nuisance within the corporate limits of the city and within the territory outside of the corporate limits of the city which is within five thousand feet of the corporate limits and abate such nuisances by summary proceedings and provide for the punishment of those committing the nuisance.

(6) Define, prohibit, abate, suppress and prevent all things or any acts detrimental to the health, morals, comfort, safety, convenience and welfare of the inhabitants of the city.

(7) Regulate the construction, height of, and materials used in all buildings and

structures within the city, and provide for their inspection and make, prosecute, and enforce the governing regulations.

(8) Regulate the maintenance and use of all buildings and structures in the city.

(9) Fix standards of weights and measures and provide for their inspection.

(10) Regulate the filing of plats of any subdivision of property in or out of the city in accordance with the laws of Texas or as may be prescribed by ordinance; and to require that streets, sidewalks, curbs, street signs, utilities, and public open spaces of all subdivisions to be established be designed, constructed and installed in accordance with standards established by the city.

(11) Compel the laying and repair of sidewalks by property owners in front of or abutting their land in accordance with specifications prescribed by the city.

(12) Direct and control the laying of all tracks required for public transportation on any street, alley, public way or public place in the city.

(13) Regulate the sale of tickets or issuance of passes or other evidence of the right to travel on any public transportation system using the streets, alleys, public ways or public places of the city.

(14) Provide for a license fee on animals and regulate, restrain and prohibit the running at large or keeping of animals and fowls in the city.

(15) Provide for the regulation and inspection of all bakeries and dairies in the city, and of all bakeries and dairies located outside of the city from which products are sold in the city; and for the inspection of all cows from which milk is sold in the city; and prescribe fees to be charged in connection with such regulation and inspection, and prescribe standards for the quality of all bakery and dairy products sold in the city.

(16) Provide for the inspection of meat, fish, vegetables, fruit and every or any food or food product offered for sale in the city; and provide for inspection, before slaughter, of all animals to be offered for sale in the city.

(17) Provide for the erection and maintenance of market houses.

(18) Establish fire zones of various classifications.

(19) Adopt and enforce all necessary police, health and sanitary regulations.

(20) Adopt and enforce such regulations and penal ordinances as may be necessary for maintaining and promoting the peace, lives, health, security and property of the inhabitants, for promoting the good government and welfare of the city, and for the performance of all municipal functions.

(21) Provide suitable penalties for the violation of any regulations enacted by the city.

(22) Exercise jurisdiction over all property owned by the city whether within or without the corporate limits of the city.

(23) Acquire, own, operate and maintain any character of public utility, including, without limitation, water, gas, light, power, telephone, telegraph and transportation systems, by any lawful means.

Par. 14. Cumulative powers. The enumeration of particular powers and the specification of the manner of exercising those powers by this Charter shall never be deemed to be exclusive nor construed as a limitation upon the general powers granted or upon their exercise in any other lawful manner, and in addition to the powers enumerated or implied in this Charter, or appropriate to the exercise of such powers, it is intended that the city shall have and may exercise all powers it would be competent for this Charter specifically to enumerate.

(Ord. No. 85965, § 1 (Props. 1, 2), 5-5-97; Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

State law reference—Powers of home rule cities generally, Vernon's Ann. Civ. St. art. 1175.

Sec. 3a. Limitation on powers; streetcar or light rail.

No grant of permission to alter or damage any public way of the city for the laying of streetcar or light rail tracks shall ever be valid, and no funds shall be appropriated and no bonds or notes shall be issued or sold for the purpose of streetcar or light rail systems, unless first approved by a majority of the qualified electors of the city voting at an election containing a proposition specifically identified for and limited to such purpose.
(Ord. No. 2015-05-20-0423, § 3 (Prop. 1), 5-20-15; Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

ARTICLE II. CITY COUNCIL

Sec. 4. Creation, composition and powers.

There is created as the governing body of the City a Council which shall consist of eleven (11) members, each of whom shall be elected to and occupy a place, such places being numbered consecutively beginning with Place 1 and ending with Place 11.

Each member of the Council shall be a citizen of Texas, a qualified elector and registered to vote in the City, shall have resided in the City at least one year prior to filing their application for election and must reside in the City during their term of office.

The Councilmembers shall be elected from districts which shall be drawn by ordinance and shall be as nearly equal in population as practicable.

The boundaries of the districts shall be reexamined and redetermined by ordinance, where appropriate following each succeeding Federal decennial census, or at other times where substantial variances in the number and makeup of the population of districts have occurred, taking into consideration annexations, disannexations, shifts in population, compactness, ethnic composition, and other criteria established by law. On any annexations, the City Council shall designate the annexed area to be a part of the districts to which it is contiguous.

Members of the Council for Place 1 through Place 10 shall be elected from such districts which shall be numbered accordingly and each such member shall be elected by a majority vote of the qualified electors voting in the election in the particular district. Each member from a district shall reside within its boundaries at least six (6) months prior to filing their application for election and continuing during their term of office, and failure to do so shall render that office vacant. Candidates for and the person elected as member of the council in the remaining place, Place 11, may reside anywhere in the City and shall be elected by a majority of all qualified electors voting in the City election, with the Council Member to serve as Mayor as provided in Section 9 of this Charter.

No member of the Council may hold any other public office or employment for which compensation is paid by the City or Bexar County, Texas. Subject to the provisions of this Charter, the Council shall have and exercise all powers now or later conferred on the City; shall succeed to all powers previously vested in any former governing body of the City; shall have the general care, management and control of the City, its property and finances, and shall enact, alter, modify or repeal all ordinances and resolutions not repugnant to this Charter and the Constitution and laws of Texas.
(Ord. No. 47586, § 1 (Prop. 1), 1-17-77; Ord. No. 85965, § 1 (Prop. 1), 5-5-97; Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 5. Terms of office.

The terms of office of all members of the council elected at a regular municipal election shall be for four (4) years beginning on the first day of June next following their election.

If a member of the council shall file to become a candidate for nomination or election to any public office, other than that of member of the council, they shall vacate immediately their place on the council and the vacancy shall be filled in the same manner as any other vacancy.
(Ord. No. 44594, § 1 (Prop. 7), 11-07-74; Ord. No. 85965, § 1 (Prop. 1), 5-5-97; Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 6. Compensation.

Each member of the council shall receive as compensation for their services as such member the sum of and limited to $70,200, and the Mayor shall receive the sum of and limited to $87,800 per annum with annual future adjustments to correlate to the United States Housing and Urban Development 4-member household median income for San Antonio. The Mayor or member of the City Council may decline any or all of the established compensation.

Temporary Provision: The mayor and members of the City Council elected at the 2025 general election are eligible to receive this compensation.
(Ord. No. 2015-05-20-0423, § 3 (Prop. 2), 5-20-15; Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 7. Forfeiture of office.

Any member of the council who ceases to possess the required qualifications for office; or who is convicted, while in office, of a felony or misdemeanor involving moral turpitude shall forfeit their office, which shall be declared and enforced by a majority vote of the council.
(Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 8. Vacancies.

Vacancies in the council, including the mayor, arising from any cause with 120 days or less remaining in the term shall be filled by majority vote of the remaining members for the unexpired term only and provided the successor shall possess all qualifications required for the office. Vacancies in the council, including the mayor, arising from any cause with more than 120 days remaining in the term shall be filled by special election and, where necessary, by a run-off election, in the same manner as provided for in this Charter for the regular election of a councilmember. Such special election shall be held on the next authorized uniform election date that occurs before the regular election and that allows enough time to hold the election in the manner required by law. The City Council may appoint a person to serve as a council member or mayor on a temporary basis during the period between the creation of the vacancy and the special election.
(Ord. No. 44594, § (Prop. 2), 11-07-74; Ord. No. 2012-05-17-0348, § 9, 5-17-12; Ord. No. 2015-05-20-0423, § 3 (Prop. 3), 5-20-15)

Editor's note—Prop. Two provided that §§ 8 and 9 would be effective after the general city election on the first Tuesday of April, 1975.

State law reference—Filling vacancies, V.A.T.S. Election Code, arts. 4.09, 4.10.

Sec. 9. Mayor and mayor pro tem.

Par. 1. The person elected to the last place on the council shall serve as and be the mayor during their term of office.

Par. 2. The mayor pro tem shall act as mayor during the absence or disability of the mayor. Should a vacancy occur in the office of the mayor, the mayor pro tem shall act as mayor until the mayor's position has been filled as provided in Section 8 above. While serving as mayor, the mayor pro tem shall receive the same compensation as the mayor.

Par. 3. The mayor, the mayor pro tem and any member of council may be paid expenses in connection with their official duties as may be provided by the council.
(Ord. No. 44594, § 1 (Prop. 2), 11-07-74; Ord. No. 2015-05-20-0423, § 3 (Prop. 2), 5-20-15; Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Note—See editor's note to § 8.

Sec. 10. City clerk.

The council shall choose a city clerk, who shall keep the records of the council and of the city, and who shall perform such other duties as may be required by this charter or the council. All civil process to the city shall be served upon the city clerk. Other officers and employees in the office of the clerk shall be in the classified civil service of the city, and, shall be appointed and may be removed by the city manager.

Sec. 11. Meetings of the council.

All meetings of the council shall be held at such times as may be prescribed by ordinance or resolution; but not less than one regular meeting

shall be held each week, unless postponed for reasons to be spread on the minutes which shall be kept of all Council meetings. Special meetings of the Council shall be called by the City Clerk upon the written request of the Mayor, the City Manager or three members of the Council. All meetings of the Council and of any Council Committees shall be in compliance with the Texas Open Meetings Act as it may be amended from time to time.
(Ord. No. 85965, § 1 (Prop. 3), 5-5-97; Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

State law reference—Open meetings law, Vernon's Ann. Civ. St. art. 6252-17.

Sec. 12. Council rules.

The council shall determine its rules and order of business and keep minutes of its proceedings. It shall have power to compel the attendance of absent members, and, by a vote of not less than seven members, may expel a member from a council meeting for disorderly conduct or the violation of its rules.

Sec. 13. Quorum.

A majority of the members of the council shall constitute a quorum to do business, but a lesser number may adjourn from time to time and compel the attendance of absent members in the manner prescribed by ordinance. A vote regarding adjournment or the attendance of absent members may be adopted by a majority of the members present at a meeting; but in all other matters upon which the council may vote, a majority vote of all members of the council in office shall be necessary for adoption. In the event of the existence of six (6) or more vacancies, the remaining members shall constitute a quorum and may conduct all necessary business until such vacancies are filled. In all matters upon which the council votes, the individual votes shall be recorded by the clerk in the minutes of the council and shall be a public record.
(Ord. No. 47586, § 1 (Prop. 1), 1-17-77; Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 14. Ordinances and resolutions—Introduction and passage.

Ordinances and resolutions shall be introduced in the council only in written or printed form. The enacting clause of all ordinances shall be "Be it ordained by the City Council of the City of San Antonio."

Sec. 15. Same—When to take effect; emergency measures.

Except as otherwise provided in this Charter or by ordinance or law, all ordinances and resolutions passed by the council shall take effect at the time indicated on the document, but not less than ten (10) days from the date of their final passage. The affirmative vote of at least eight (8) members of the council shall be required to pass any ordinance or resolution as an emergency measure. An emergency measure is an ordinance or resolution to provide for the preservation of the public peace, property, health, or safety, in which the emergency is set forth, and may be made effective immediately upon enactment. No measure making or amending a grant, renewal or extension of a franchise or other special privilege shall ever be passed as an emergency measure.
(Ord. No. 47586, § 1 (Prop. 1), 1-17-77; Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 16. Same—Recording of ordinances, resolutions and minutes.

Each ordinance or resolution and the minutes of the council shall be recorded as soon as practicable by the city clerk, which shall be public records. Ordinances shall be authenticated by the signature of the mayor and the city clerk and shall be systematically recorded. It shall only be necessary to record the caption or title of ordinances of the council meetings.
(Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 17. Same—Publication of ordinances.

Every ordinance imposing any penalty, fine or forfeiture for a violation of its provisions shall, after passage, be published for one time in a newspaper published in the city. Proof of such

publication by the printer or publisher of such newspaper made by affidavit before any officer authorized to administer oaths and filed with the city clerk shall be conclusive evidence of the legal publication and promulgation of such ordinance in all courts and elsewhere. Such publication may consist of the full text of the ordinance, or a substantive condensed statement of the nature and purpose of the ordinance and the penalty for violation. The penalty, fine or forfeiture shall apply five days after publication.

The council may adopt any code or codification of ordinances or parts of such a code or ordinances and may amend and correct such ordinances for the purpose of general distribution, and when so adopted and contained in printed form, publication of the code need not be made other than by publication of a summary of the ordinance or resolution adopting it, provided that one copy of such code or codification is filed for permanent record and inspection in the office of the city clerk prior to adoption.

Any administrative rules or regulations of any department of the city or of the state affecting the city, or any statute of Texas or any published code, specifications or requirements prepared by an official or unofficial organization for general circulation and use, may be made effective in the city by reference in an ordinance, provided two copies are filed for permanent record and inspection in the office of the city clerk prior to adoption. The city clerk is authorized to destroy one copy upon the adoption of a superseding rule, regulation, statute, published code, specification or requirement, which must be kept for permanent historical reference.
(Ord. No. 2015-05-20-0423, § 3 (Prop. 4), 5-20-15; Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

State law references—Publication of ordinances, Vernon's Ann. Civ. St. art. 1176b-1 et seq.; codification of ordinances, Vernon's Ann. Civ. St. art. 1176a.

Sec. 18. Same—Enactment of resolutions.

The council, or a majority of the council, may act by resolution in all cases except where an ordinance is by this Charter required; provided, that no contract on the part of the city shall be made or authorized, nor any money appropriated from the funds of the city nor any franchise or privilege for the use of any of the public streets or other public places of the city be granted or renewed, nor any lands of the city be conveyed, or leased, nor authority for such conveyance or lease given otherwise than by ordinance.
(Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

ARTICLE III. MUNICIPAL ELECTIONS*

Sec. 19. Regular and special elections.

The City Clerk shall be responsible for administering all City elections in accordance with the State Election Code and other applicable state law, provided that the Council may, by ordinance, make rules and regulations not inconsistent with state law. Candidates filing for office must pay a $100.00 filing fee or provide a petition with signatures of registered voters as provided by State law.
(Ord. No. 85965, § 1 (Prop. 5), 5-5-97)

Sec. 20. Limitation on terms of office.

No person shall be eligible to hold a Council office for more than two full terms. Except as stated in the temporary provision of this section, no person shall be placed on the ballot for election to any term if service for the full term would constitute a violation of this provision. For the purpose of this section, the office of Mayor shall be considered a separate Council office from other Council places.

Temporary provision: This subsection provides for the transition from a limitation of four two-year terms to two four-year terms. Council members reelected in May 2025 after serving one to three two-year terms under previous provisions are not prohibited from running for a full four-year term; however, no Council member shall hold any Council office for more than eight

*__Editor's note—__Ordinance No. 85965, § 1 (Prop. 5), adopted May 5, 1997, deleted article III, §§ 19—25 and provided for the following provisions to read as herein set out. Formerly, such article pertained to similar provisions and derived from an election effective 1-1-52; Ord. No. 44391, § 1 (Prop. 4), 10-3-74; Ord. No. 73584, 5-6-91; Ord. No. 85965, § 1 (Prop. 1), 5-5-97.

(8) years. Council members who run for a four-year term under this temporary provision where the four-year term will have the council member surpass the eight (8) year limit will only serve the first two (2) of the four (4) years in office. A special election will be held to fill the remainder of the four-year term in the same manner as provided for in this Charter for vacancies. This provision shall expire after any May 2031 special election.

(Ord. No. 85965, § 1 (Prop. 5), 5-5-97; Ord. No. 2008-11-17-1010, §§ 4, 5 (Prop. 1), 11-17-08; Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Editor's note—The effective date of the November 4, 2008 amendment to the City Charter shall be December 1, 2008. The amendment approved on November 4, 2008 is not applicable to any current or former mayors or members of City Council, whether appointed or elected.

Secs. 21—25. Reserved.

ARTICLE IV. RECALL, INITIATIVE AND REFERENDUM

Sec. 26. Recall provisions.

Any member of the council may be removed from office by recall. A petition stating the general grounds on which removal of a district council member is sought shall be signed by qualified electors equal in number to ten (10) percent of those electors qualified to vote in the district at the time of the last regular municipal election and shall be filed by any qualified elector of the district with the city clerk.

A petition stating the general grounds on which removal of the council member serving as mayor is sought shall be signed by qualified electors equal in number to ten (10) percent of those electors who were qualified to vote at the time of the last regular municipal election and shall be filed by any qualified elector of the city with the city clerk.

A separate petition shall be circulated with respect to each member of council whose removal is sought.

(Ord. No. 47586, § 1 (Prop. 1), 1-17-77; Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 27. Signatures to petitions.

The signatures to recall petitions need not all be appended to one petition and may be duplicated and assembled, but to each separate paper there shall be attached an affidavit to the circulator and such paper shall be invalid without such affidavit. Each signer of any petition paper shall, after their signature, show the place of residence by street and number or other description sufficient to identify the voting precinct. An affidavit attached to each petition or duplicate shall be as follows:

State of Texas
County of Bexar

_____, being duly sworn, deposes and says that they personally circulated the foregoing paper, that all the signatures affixed to the paper were made in their presence, and that they believe them to be the genuine signatures of the persons whose names they purport to be.

Signed_____
(Signature of Circulator)

Subscribed and sworn to before me this _____ day of _____, _____.

_____
Notary Public

(Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 28. Filing, examination, and certification of recall petitions.

All petition papers comprising a recall petition shall be assembled and filed with the city clerk as one instrument. Within twenty (20) days after filing, the city clerk shall determine whether each paper of the petition is properly attested and whether the petition is signed by a sufficient number of qualified electors. Upon completing their examination, the city clerk shall certify the result to the council. If they certify that the petition is insufficient, they shall set forth in their certificate the particulars in which it is defective; provided, however, that

except as to the particulars certified to be defective, the petition shall be deemed to be valid in all other respects.
(Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 29. Amendment of petitions.

A recall petition may be amended at any time within twenty (20) days after certification of insufficiency by the city clerk, by filing a supplementary petition upon additional papers signed and filed as provided in case of an original petition. The city clerk shall, within ten (10) days after such supplement is filed, examine the supplementary petition and, if their certificate shall show the petition still to be insufficient, they shall file it in their office and notify the person filing and no further action shall be had on such insufficient petition. The finding of the insufficiency of a petition shall not prevent the filing of a new petition for the same purpose.
(Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 30. Recall election ordered.

If a recall petition, or amended petition be certified by the city clerk to be sufficient, they shall at once submit it to the council and notify the member of council whose removal is sought of such action. After presentation to the council, the council shall order a recall election which shall be held on the next authorized uniform election date that occurs before the regular election and that allows enough time to hold the election in the manner required by law. Should the member of council whose removal is sought resign prior to the recall election, then the process for filling a vacancy set out in this Charter shall be followed.
(Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 31. Ballots in recall election.

Ballots used in recall elections shall read as to each member of the council whose removal is sought as follows: "Shall (name of person) BE REMOVED FROM THE CITY COUNCIL BY RECALL?" Below such question there shall be printed the following as to each member:

"For the recall of (name of person)."
"Against the recall of (name of person)."

Sec. 32. Result of recall election.

If a majority of the votes cast be against recall of a member, they shall continue in office for the remainder of their term, but subject to recall as before. If a majority of such votes be for the recall of a member, they shall, regardless of any defect in the recall petition, be deemed removed from office and a successor shall be appointed or elected as required by this Charter.
(Ord. No. 2012-05-17-0348, § 9, 5-17-12; Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 33. Limitations on recall petitions.

No recall petition shall be filed against a member of the council within three months after they take office nor, in respect to a member subjected to a recall election and not removed, until at least six months after such election.
(Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 34. Power of initiative.

The electors shall have power to initiate any ordinance, except ordinances appropriating money, levying a tax, granting a franchise, or fixing public utility rates, and to adopt or reject the same at the polls; provided, however, that the foregoing limitations on initiated ordinances shall not apply to any ordinance initiated pursuant to the provisions of Article I, Section 3, Paragraph 12 of this Charter. Any initiated ordinance may be submitted to the council by a petition signed by qualified electors of the city equal in number to ten (10) percent of the electors qualified to vote at the time of the last regular municipal election. In addition to the ordinances excepted above, ordinances zoning or rezoning property shall not be subject to this power.
(Ord. No. 85965, § 1 (Prop. 1), 5-5-97; Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 35. Power of referendum.

The electors shall have power to approve or reject at the polls any ordinance passed by the council save one appropriating money, levying taxes, or fixing public utility rates, or any ordinance submitted by the council of its own initiative to a vote of the electors; provided, however, that the foregoing limitation on ordinances subject to a referendum shall not apply to any ordinances enacted pursuant to the provisions of Article I, Section 3, Paragraph 12 of this Charter. Ordinances submitted to the council by initiative petition and passed by the council shall be subject to the referendum in the same manner as other ordinances. Within forty (40) days after the enactment by the council of any ordinance which is subject to a referendum, a petition signed by qualified electors of the city equal in number to at least ten (10) percent of the electors qualified to vote at the last preceding regular municipal election may be filed with the city clerk requesting that any such ordinance be either repealed or submitted to a vote of the electors. In addition to the ordinances excepted above, ordinances zoning or rezoning property shall not be subject to this power.
(Ord. No. 85965, § 1 (Prop. 1), 5-5-97; Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 36. Form of petitions.

All petition papers circulated for the purpose of an initiative or referendum shall be uniform in size and style. Initiative petition papers shall contain the full text of the proposed ordinance. The signatures to initiative or referendum petitions need not all be appended to one paper, but to each separate paper there shall be attached a statement of the circulator that they personally circulated the foregoing paper, that all the signatures appended to the paper were made in their presence, and that they believe them to be the genuine signatures of the persons whose names they purport to be. Each signer of any such petition paper shall sign their name in ink and shall indicate after their name their place of residence by street and number, or other description sufficient to identify the voting precinct.
(Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 37. Filing, examination and certification of petitions.

All petition papers comprising a petition shall be assembled and filed with the city clerk as one instrument. Within twenty (20) days after a petition is filed, the city clerk shall determine whether each paper of the petition has a proper statement of the circulator and whether the petition is signed by a sufficient number of qualified electors, and shall hold any petition paper entirely invalid which does not have the statement signed by the circulator attached. The city clerk shall certify the result of their examination to the council at its next regular meeting. If the city clerk shall certify that the petition is insufficient the city clerk shall set forth in their certificate the particulars in which it is defective and shall at once notify the person filing the petition of their findings.
(Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 38. Amendment of petitions.

A petition may be amended at any time within twenty (20) days after the notification of insufficiency has been sent by the city clerk, by filing a supplementary petition upon additional papers signed and filed as provided in case of an original petition. The city clerk shall, within ten (10) days after such an amendment is filed, examine the amended petition and, if the petition be still insufficient, shall file their certificate to that effect in their office and notify the person filing of their findings and no further action shall be had on such petition. The finding of the insufficiency of a petition shall not prevent the filing of a new petition for the same purpose.
(Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 39. Effect of certification on referendum petition.

When a referendum petition, or amended petition, has been certified as sufficient, the ordinance specified in the petition shall not go into effect, or further action under that ordinance shall be suspended if it is in effect, until and unless approved by the electors.
(Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 40. Consideration by council.

Whenever the council receives a petition from the city clerk, it shall be immediately considered. A proposed initiative ordinance shall be read and provision shall be made for a public hearing. The council shall take final action on the ordinance not later than sixty (60) days after the date the ordinance was submitted to the council by the city clerk. A referred ordinance shall be reconsidered, and the council shall, within thirty days, vote upon the question, "Shall the ordinance be repealed?".
(Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 41. Submission to electors.

If the council fails to pass an ordinance proposed by initiative petition or passes it in a form different from that set forth in the petition, or if the council fails to repeal a referred ordinance, the proposed or referred ordinance shall be submitted to the electors on the next authorized uniform election date that allows enough time to hold the election in the manner required by law.
(Ord. No. 2015-05-20-0423, § 3 (Prop. 4), 5-20-15; Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 42. Form of ballot for initiated and referred ordinances.

Ordinances submitted to a vote of the electors in accordance with the initiative and referendum provisions of this Charter shall be submitted by ballot title which shall contain a clear, concise statement, without argument, of the substance of such ordinance. The ballot used shall have below the ballot title the following propositions, one above the other, in the order indicated: "FOR THE ORDINANCE" and "AGAINST THE ORDINANCE." Any number of ordinances may be voted on at the same election and may be submitted on the same ballot.

Sec. 43. Results of election.

If a majority of the electors voting on a proposed initiative ordinance shall vote in favor of the initiative ordinance, it shall upon canvass be an ordinance of the city. A referred ordinance which is not approved by a majority of the electors voting at the election shall be deemed repealed upon canvass. If conflicting ordinances are approved by the electors at the same election, the one receiving the greatest number of affirmative votes shall prevail to the extent of such conflict.
(Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 44. Repealing ordinances; publication.

Initiative and referendum ordinances adopted or approved by the electors shall be published and may be amended or repealed by the council, as in the case of other ordinances; provided, however, that no ordinance adopted at the polls under the initiative or referendum shall be amended or repealed by the council within six months of adoption.

ARTICLE V. ADMINISTRATIVE SERVICE

Sec. 45. City manager—Selection, appointment and removal.

Par. 1. Selection. The council shall, by a supermajority vote (i.e., at least 67%) of its members, appoint a city manager who shall be chosen on the basis of their executive and administrative qualifications. They shall receive compensation as fixed by the council, and shall, during their tenure of office, reside within the city. No person ever elected to office as a member of the governing body of the city shall be eligible for appointment as city manager.

Par. 2. Appointment and removal. The city manager shall be appointed for an indefinite term. The city manager may be removed by resolution at the discretion of the council by a majority vote of its members. Upon passage of a resolution stating the intention to remove the city manager and the reasons therefor, a copy of which shall be immediately furnished them, the council may suspend them from duty, but their salary shall continue until their removal becomes effective. Within twenty days after the passage of such a resolution, the city manager may reply in writing to it, and may request a public hearing. If so requested the council shall fix a

time and place for a public hearing upon the question of removal, which shall be held not sooner than ten days nor more than twenty days after the receipt of such request. The final resolution removing the city manager shall not be adopted until such public hearing, if requested, has been held. The action of the council in removing the city manager shall be final. In case of the absence, disability or suspension of the city manager, the council may designate a qualified administrative officer of the city to perform the duties of the office. Pending the selection of any city manager following the adoption of this Charter, the council may appoint an acting city manager, who shall have all of the qualifications, powers and duties hereinbefore prescribed for the city manager, and who shall serve for a period not to exceed three months.
(Ord. No. 2018-11-15-0900, § 3, 11-15-18; Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 46. Same—Powers and duties.

The city manager shall be responsible to the council for the proper administration of all affairs of the city and, subject to the civil service provisions of this Charter and except as otherwise provided herein, they shall have power and be required to:

(1) Enforce all laws and ordinances;

(2) Appoint and remove all officers and employees in the administrative service of the city; provided that they may authorize the head of a department or office to appoint or remove subordinates therein and provided, further, that they shall not appoint or remove officers and employees of:

(a) The board of trustees of the San Antonio public library;

(b) Any municipally-owned public utility, including electric, gas and water systems, while such utility is operating under the terms of any indenture, mortgage or deed of trust providing for employment by other authority.

(3) Exercise administrative supervision and control over all departments created by this Charter and hereafter created by the council;

(4) Keep the council fully advised as to the financial conditions and needs of the city; prepare and submit the budget annually to the city council and be responsible for its administration after its adoption; prepare and submit, as of the end of the fiscal year, complete report on the financial and administrative activities of the city for such year;

(5) Recommend to the council such actions as they may deem desirable;

(6) Prepare and submit to the council such reports as may be required of them;

(7) Attend all regular and special meetings of the council, and participate in the discussion of the council provided, however, that the City Manager shall have no vote;

(8) Act as the chief conservator of the peace within the city; and

(9) Perform such other duties as may be prescribed by this Charter or which may be required of him by ordinance or resolution of the council.

(Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 47. Council members not to interfere in appointments or removals.

Members of the council shall not direct or request the city manager or any subordinate of the city manager to appoint to or remove from office or employment, or in any manner take part in the appointment or removal of officers or employees in the administrative service of the city, except for the purpose of inquiry. The council and its members shall deal with the administrative service solely through the city manager and neither the council nor any member of council shall give orders to any subordinates of the city manager, either publicly or privately. Any violation of these provisions by any member of the council shall constitute official misconduct,

and shall authorize the council by a vote of two-thirds of its entire membership to expel such offending member, if found guilty after a public hearing, and declare the office vacant and fill in accordance with the provisions of Section 8.
(Ord. No. 2015-05-20-0423, § 3 (Prop. 4), 5-20-15; Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 48. Investigations.

The council, the city manager, or any person or committee authorized by either or both of them, shall have power to inquire into the conduct of any department, agency or office of the city, and for that purpose shall have power to administer oaths. The council, on its own initiative, or upon request of the city manager, shall have power to subpoena witnesses, compel the production of books, papers and other evidence material to such inquiry.

The council shall provide by ordinance for penalties for contempt for refusal on the part of officers or employees of city departments, agencies, or offices, to obey such subpoenas, or to produce evidence.

Sec. 49. Boards, commissions, committees, and authorities.

Boards, commissions, committees, and authorities shall not be established to administer municipal functions of the City; provided, however, that this section shall not apply to: (1) the Board of Trustees of the San Antonio Public Library, (2) the Municipal Civil Service Commission, (3) the Planning Commission, (4) boards of examiners and/or appeals established by ordinance to administer the provisions of building, electrical and plumbing codes, and (5) boards, commissions and authorities established under the provisions of the laws of Texas. The Council by ordinance may create boards, commissions, or committees to assist in only an advisory capacity the City Council and heads of municipal departments in the performance of their duties. The members of any such advisory boards, commissions or committees shall be appointed by the Council by minute order and shall receive no compensation from the city.
(Ord. No. 85965, § 1 (Prop. 1), 5-5-97; Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 50. Administrative departments created, control.

There are created and placed under the control of the city manager the following administrative departments of the city government:

(1) Legal department

(2) Finance department

(3) Police department

(4) Fire department

(5) Public works or successor department

(6) Public health department

(7) Parks and recreation department

(8) Aviation department

In addition to the administrative departments created, the council shall have power by ordinance to establish, discontinue or redesignate other administrative departments or offices. The council may combine any two of the departments and/or administrative offices created by this Charter. No functions or duties assigned by this Charter to a particular department or office shall be abolished, except as otherwise provided by this Charter, but such functions or duties may be assigned by ordinance to other administrative departments or offices of the city; provided, however, that no changes shall be made by the council in the organization of the administrative service of the city until the recommendations of the city manager shall have been heard by the city council; and provided, further, that all administrative departments and offices of the city shall be under the direction and supervision of the city manager.
(Ord. No. 2015-05-20-0423, § 3 (Prop. 4), 5-20-15)

Sec. 51. Directors of departments.

At the head of each department there shall be a director who shall be appointed and who may

be removed by the city manager. The directors shall have supervision and control over their respective departments, subject to approval by the city manager, except as otherwise specifically provided by this Charter.
(Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 52. Department divisions.

The work of each department shall be distributed among such divisions as may be established by ordinance; provided, however, that no division shall be established unless the city manager shall have been given an opportunity to have been heard; provided, further, that pending the passage of an ordinance or ordinances distributing the work of the departments under the supervision and control of the manager among specific divisions, the manager may establish temporary divisions.
(Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 53. Appointment, qualifications, general duties of city attorney.

There shall be a department of law, the director of which shall be the City Attorney, whose appointment shall be recommended by the City Manager and confirmed by the majority of the Council, who is a practicing attorney in good standing with the State Bar of Texas, duly licensed, and has practiced law for at least five (5) years immediately preceding their appointment. The City Attorney shall serve as chief legal advisor to the Council, the City Manager and all city departments, offices and agencies, shall represent the city in all legal proceedings, draft, approve or file their written legal objections to every ordinance before it is acted upon by the Council, prepare or endorse their written approval or file their written legal objections to all documents, contracts and legal instruments in which the city may have an interest, and perform any other duties prescribed by this Charter or by ordinance. During their term of office, the City Attorney shall report to the City Manager and be a resident citizen within the City of San Antonio.
(Ord. No. 94956, 11-15-01; Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Editor's note—Ord. No. 94956, adopted November 15, 2001, amended § 53 in its entirety to read as herein set out. Formerly, § 53 pertained to the city attorney as head of the legal department and derived from original codification.

Sec. 53a. Term, removal, absence or disability of city attorney.

The City Attorney shall not be appointed for a definite fixed time but shall be removable at the will and pleasure of the City Manager with the advice of the Council. If removed by the City Manager, the City Attorney may demand written charges and the right to be heard at a public meeting of the Council prior to the date on which their final removal shall take effect; but pending such hearing the City Manager may suspend the City Attorney from office. The action of the City Manager in suspending or removing the City Attorney shall be final. In case of the absence or disability of the City Attorney, the City Manager may recommend with the confirmation of City Council a qualified person to perform the duties of the office.
(Ord. No. 94956, 11-15-01; Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 54. Assistants to have all powers and duties of city attorney.

All powers and duties imposed on the City Attorney may be exercised and performed by any Assistant City Attorney under their direction.
(Ord. No. 94956, 11-15-01; Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Editor's note—Ord. No. 94956, adopted November 15, 2001, amended § 54 in its entirety to read as herein set out. Formerly, § 54 pertained to the powers and duties of the City Attorney and derived from original codification.

Sec. 55. Finance department—Director of finance; qualifications.

The director of the finance department shall be the head of such department and shall have knowledge of municipal accounting and taxation and shall have had experience in budgeting and financial control. The director and the chief

financial officer shall provide a bond with such surety and in such amount as the council may require. The city shall pay the premium on the surety bonds.
(Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 56. Same—Powers and duties.

The finance department shall have the authority and be required to:

(1) Administer the financial affairs of the city in accordance with ordinances enacted by the council.

(2) Maintain accounting control over the finances of the city government and perform such other duties pertaining to the financial affairs of the city as the council may require.

(3) Collect, have custody of, and disburse all funds belonging to the city, subject to the provisions of this Charter and ordinances; have custody as fiduciary of all funds of the city; keep a record of investments; maintain a record of all bonds, certificates, or notes of city indebtedness, including bonds, certificates, or notes unissued or cancelled.

(Ord. No. 85965, § 1 (Prop. 1), 5-5-97; Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 57. Police department—Chief of police; appointment and removal.

The chief of police shall be the director of the police department.

Sec. 58. Same—Authority and duties of police officers.

City employees licensed as peace officers by the State of Texas shall have all the powers and authority given to them as peace officers under the laws of Texas, this Charter, and all other powers and authority that may lawfully be conferred on them by the council. Such police may exercise their powers and authority within the corporate limits of the city, and within the limits of any property owned, leased or otherwise subject to the control of the city, which lies outside the corporate limits of the city. It shall be the duty of each police officer to use their best endeavors to prevent the commission of offenses against the laws of the state and the ordinances and regulations of the city; to observe and enforce all such laws, ordinances and regulations; to detect and arrest offenders against the same; to preserve the good order of the city and to secure the inhabitants from violence, and the property from injury. Such police officers shall execute any criminal warrant or warrants of arrest, or any writ subpoenas, or other process that may be placed in their hands by the duly constituted authorities of the city. No police officer shall receive any fee or other compensation for any service rendered in the performance of their duty other than the salary paid them by the city.
(Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 59. Chief of the fire department.

The chief of the fire department shall be the director of the fire department.

Sec. 60. Public works or successor department—Director; head of department.

The director of public works or successor department shall be the head of the department.
(Ord. No. 2015-05-20-0423, § 3 (Prop. 4), 5-20-15)

Editor's note—Ord. No. 2015-05-20-0423, § 3 (Prop. 4), adopted May 20, 2015, changed the title of section 60 from "Public works department—Director; head of department" to "Public works or successor department—Director; head of department."

Sec. 61. Same—Powers and duties.

The department of public works or successor department shall have charge of the planning, opening, construction, maintenance and repair of all streets, alleys, sidewalks, bridges, rivers, watercourses, creeks, ditches and public ways; of the storm sewers, repair of all public buildings and properties belonging to or used by the city; and of such other functions as may be prescribed by ordinance.
(Ord. No. 2015-05-20-0423, § 3 (Prop. 4), 5-20-15)

Sec. 62. Public health department—Director of public health; qualifications.

The director of the public health shall be the head of the department, who shall be trained in public health administration.
(Ord. No. 2015-05-20-0423, § 3 (Prop. 4), 5-20-15)

Sec. 63. Same—Powers and duties.

The public health department shall enforce the laws of the state and all ordinances and regulations relating to public health; it shall exercise such additional powers and perform such additional duties as may be prescribed by ordinance.

Sec. 64. Parks and recreation department—Director of parks and recreation; head of department.

The director of parks and recreation shall be the head of the department.

Sec. 65. Same—Powers and duties.

The parks and recreation department shall have charge of the management and maintenance of public parks, playgrounds, golf courses, swimming pools, and all other public recreational facilities and programs. The management, operation and maintenance of parks and playgrounds, and of all other public recreational facilities and programs shall be deemed to be done in the governmental capacity of the city. The parks and recreation department shall exercise such additional powers and perform such additional duties as may be prescribed by ordinance.

Sec. 66. Aviation department—Director of aviation; head of department.

The director of the aviation department shall be the head of the department.

Sec. 67. Same—Powers and duties.

The aviation department shall have charge of the management, operation, and maintenance of the municipal airports, and of all facilities, services and installations related or incidental to which are owned or operated by the city. It shall exercise such other powers and perform such additional duties as may be prescribed by ordinance.
(Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 68. Departmental offices and employments.

The number of offices and employments in each municipal department and office shall be fixed by ordinance; provided, that before adoption of such ordinance, the city manager may make such recommendation to the council as might seem desirable by the City Manager.
(Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

ARTICLE V.A. CITY INTERNAL AUDIT DEPARTMENT

Par. 1. Department of Internal Audit. There shall be an independent department of internal audit which is charged with conducting financial, fiscal compliance, and financial procedure audits of all city departments, offices, agencies, and programs.

Par. 2. City Internal Auditor-Appointment; qualifications; compensation. The department of internal audit shall be under the direction and control of the city internal auditor, who shall be appointed by the City Council. The city internal auditor must be a person knowledgeable in public financial and fiscal theory, municipal accounting and auditing; public administration and be a certified public accountant. The city internal auditor's compensation shall be fixed by the City Council.

Par. 3. Term, removal, absence or disability of City Internal Auditor. The city internal auditor shall not be appointed for a definite fixed time but shall be removable at the will and pleasure of the City Council by a vote of not less than a majority of the entire Council. The city internal auditor may demand written charges and the right to be heard at a public meeting of the City Council prior to the date on which the city internal auditor's final removal shall take effect, but pending such hearing the City Council may

suspend the city internal auditor from office. The action of the City Council in suspending or removing the city internal auditor shall be final. In case of the absence or disability of the city internal auditor, the City Council may designate some qualified person to perform the duties of the office.

Par. 4. Appointment and removal of assistant auditors. Assistant auditors shall serve at the will and pleasure of the City Internal Auditor. All other employees in the department of internal audit shall be in the classified civil service of the city and shall be appointed and may be removed by the City Internal Auditor. Any classified employee in the department of internal audit shall enjoy the same rights as other classified city employees, except that in the event of a suspension, reduction or removal of a classified employee in the department of internal audit, the classified employee shall enjoy the right to appeal to the Municipal Civil Service Commission whose decision shall be final.
(Ord. No. 94956, 11-15-01; Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

ARTICLE VI. CIVIL SERVICE

Sec. 69. Establishment.

There shall be a classified civil service which shall include all appointive offices and employments in the administrative service and in other agencies and offices of the City, and all persons receiving compensation from the City for personal services, except the following:

(a) Members of the Council;

(b) Persons who are appointed or elected by the Council pursuant to this Charter;

(c) The City Manager, Deputy City Manager, the Assistant City Managers and Assistants to the City Manager, if any; and the secretary to the City Manager;

(d) The directors of departments;

(e) All assistant directors of departments;

(f) All executive secretaries;

(g) Architects, attorneys, assistant auditors, dentists, doctors, engineers, psychologists, and veterinarians employed by the city;

(h) Any other managerial or professional employees as designated by the City Manager and approved by the City Council;

(i) Part-time, temporary, and seasonal employees; and

(j) Persons, firms, corporations, associations, foundations, or other organizations whose services may be specifically engaged for professional, investigative, consultative, or other special services, and all employees or agents performing such services for such person, firm, corporation, association, foundation or of organization so specially engaged.

(Ord. No. 94956, 11-15-01; Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 70. Municipal civil service commission.

Par. 1. There shall be a Municipal Civil Service Commission consisting of three members and three alternates available to serve in case of absence of regular members, who shall be appointed by the Council, which shall designate one of the three as chairman. Each member and alternate of the Commission shall be a qualified elector of the City, shall neither hold nor be a candidate for any other public office or position. Members of the Commission shall serve for terms of two years. Vacancies in an unexpired term shall be filled by the Council by appointment for the remainder of the term. A member or alternate of the Commission may be removed by Council only for cause and after being given a written statement of the charges against him and a public hearing on the issue, if they request. A certified copy of the charges and a transcript of record of such public hearing shall be filed with the City Clerk.

Par. 2. Members of the commission shall be paid compensation for their services as determined in advance by the council.

Par. 3. Two members of the commission shall constitute a quorum. The commission shall act by majority vote. The chairman shall have the same voting rights as any other member.

Par. 4. The commission shall have power and shall be required to:

(a) Hear appeals in case any employee or other person in the classified civil service is suspended, reduced, or removed, and shall report in writing to the city manager its findings and recommendations;

(b) Make any investigation which it may consider desirable or which it may be required by the council or city manager to make, concerning the administration of personnel in the municipal service, and to report to the council and city manager its findings, conclusions, and recommendations;

(c) Perform the services below with respect to the civil service rules;

(d) Perform such other duties with reference to personnel administration, not inconsistent with this Charter, as the council may require.

Par. 5. To administer the functions or authority of the commission, it shall have authority to issue subpoenas and subpoena duces tecum to witnesses where reasonably necessary to obtain pertinent evidence and any member of the commission shall have authority to administer oaths. (Ord. No. 94956, 11-15-01; Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 71. Human resources director.

There shall be a director of Human Resources, who shall be appointed and who may be removed by the city manager, and who shall have had training and experience in personnel administration. The Human Resources Director shall have power and be required to:

(1) Perform such duties prescribed below and as may be prescribed by ordinance, the commission or the city manager, according to their respective jurisdictions under this Charter.

(2) Prepare and recommend to the city manager a classification plan and amendments for the classified service for presentation upon approval by the city manager to the council, and after adoption by the council, administer the plan approved. The plan shall include titles for each class of positions. Each class shall include all positions which are sufficiently similar with respect to duties, responsibilities, and authority so that the same title may be used to designate each position allocated to the class, the same requirement as to education, experience, intelligence, general and specialized knowledge, skill, physical condition and other qualifications may be demanded of incumbents for the performance of their duties, the same tests of fitness may be used, and the same schedule of pay can be applied under like working conditions. After adoption of the plan the director, with the approval of the city manager, shall adopt written specifications for each class and allocate positions to classes. The class titles shall be used in personnel, budget, and financial records and communications, and, if individual positions are designated in the appropriation ordinances, in designating such positions.

(3) Prepare and keep a record of the duties and responsibilities of each office and employment and establish and maintain a roster of all persons in the classified civil service showing as to each person:

(a) The class title of the position, the salary or pay, any changes in title, pay or status, and

(b) Such other data as is deemed desirable to maintain and improve personnel administration.

(4) Hold open competitive examinations for all appointments in the classified civil service to determine the qualifications of those seeking employment and promotions, and upon the basis of such tests establish employment lists of persons

eligible for appointment in the order of their achievement, which lists shall not be continued in effect for longer than one year following their establishment unless the director, with the approval of the commission, shall renew such lists for reasons presented in writing, but in no event shall such lists be continued in effect for more than eighteen months.

The character, content and manner of conducting tests shall be determined by the director, with the approval of the commission; however, upon the recommendation of the city manager, approved by the commission, such tests may be noncompetitive for positions which require exceptional qualifications of scientific, managerial, or professional character.

(5) Upon written notice that a position in the classified service is to be filled, certify, in the order of their achievement, the names of the three persons highest on the employment list for the class who are willing to accept appointment. If there is no list available, the director may authorize a provisional appointment to a permanent position to continue until a list can be established and certification made; provided, however, that no provisional appointment shall continue for more than sixty days and shall not be renewed. Temporary appointments may be authorized by the director to an extra position established by the council but shall not continue longer than thirty days and shall not be renewed.

(6) Establish for each class probationary periods of not less than three nor more than six months to enable the appointing officer to observe whether new officers and employees are able and willing to perform their duties in a satisfactory manner. Appointing officers must submit to the director reports at least once each month during the probationary period. No permanent appointment shall be made except on certificate of the personnel director, based upon monthly reports, that the office or employee has satisfactorily passed the probationary period.

(7) Prepare and recommend to the city manager at least sixty days before the beginning of each fiscal year for presentation upon approval by the city manager to the council, a pay plan, including a schedule of pay for each class of position with minimum and maximum rates and, where necessary, intermediate rates, and, following the adoption of the appropriation ordinance by the council, see that payments are made in accordance therewith.

(8) Certify to the department of finance, prior to payment, that the persons whose names appear on any payroll or pay voucher were on the roster of employees, were employed in accordance with the Charter and regulations established thereunder, performed the services indicated during the period covered, and that the pay rate has been established as provided herein. No payment shall be made without such certificate.

(Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 72. Civil service rules.

The administration of the classified service of the city, including the employment or appointment of all persons in the classified civil service and their probation, and promotion, shall be prescribed, as far as practicable, by rules and regulations to be known as the civil service rules.

The director shall, within six months after this Charter takes effect, prepare such rules and recommend their adoption to the commission. After a public hearing thereon, the commission shall approve or reject the rules wholly or in part, or modify them, and approve them as modified. Rules, and any amendments thereto, which are approved by the commission or on which it takes no action within sixty days after they are recommended by the director, shall be given to the city manager for presentation to the council, together with whatever recommenda-

tions they may desire to make. Rules and amendments thereto shall become effective when approved by the council or on the tenth day after submission if, prior thereto, the council shall not have rejected them. Thereafter the board shall have power to amend, repeal, or add to the rules on the recommendation of the director, or on its own initiative, subject to the requirement of a public hearing and all the other subsequent steps of procedure required herein for adoption of the original rules. Copies of rules and amendments thereto shall be transmitted by the director to the council, the city manager and to the director of each department, and shall be made available to all officers and employees in the classified civil service of the city.

The rules shall include:

(1) A provision that employment, promotion, suspension, reduction or removal shall be upon the basis of education, experience, intelligence, general and specialized knowledge, ability and willingness to work as demonstrated by competitive tests and service ratings;

(2) A procedure by which any officer or employee without further competitive test may be transferred from a position in a given class to another position in the same class or to a position in a different class for which they are qualified and for which no higher maximum rate of pay has been established;

(3) A provision for fixing hours of work, checking attendance, payments for overtime, establishing training courses, determining the order of lay off when forces are reduced because of lack of work or funds, and handling annual, sick, and special leave of absence with or without pay or with reduced pay;

(4) A system of service ratings designed to reflect the merit of each person in the classified civil service;

(5) Such other provisions as may be required by the council.

(Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 73. Appointments.

No person shall be appointed to the classified civil service except after certification by the personnel director or except upon authorization by him of a provisional or temporary appointment. No person shall be appointed to the classified civil service under any title not appropriate to the duties to be performed.

Sec. 74. Compensation.

The salary or compensation of persons in the classified civil service shall be established by ordinance, which shall provide minimum and maximum compensation for each class of service. All increases or decreases in compensation of any person within the limits provided for each class may be directed by the city manager or other appointing authority with the approval of the city manager.

Sec. 75. Information, reports, and access to premises and records.

Every officer and employee in the service of the city shall furnish the personnel director any information required in the administration of personnel and shall allow the municipal civil service commission and the director and members of their staff reasonable access to premises, buildings and records under their charge.
(Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 76. Suspensions, reductions, and removals.

Any person in the classified civil service who has not completed the probationary period or who is serving under provisional or temporary appointment may be suspended, reduced in pay or class, or removed at any time by the city manager or other officer having power to appoint. Notice of such action shall be given to the personnel director.

Any person who has been appointed following certification from an employment list may be suspended, reduced in pay or class, or removed at any time during the probationary period by the city manager or other officers having power

to appoint by giving them a written notice of such action, together with a statement of the reasons.

Any person who has completed the probationary period may be suspended, reduced in pay or class, or removed by the city manager or officer having authority to appoint. A written notice of the suspension, reduction or removal, stating the reasons and when it is effective, shall be given to such person or sent by registered mail to their usual place of residence. Such person, within ten (10) city business days after the delivery or mailing of such notice, may appeal in writing to the commission for a hearing. The commission shall immediately fix a place and a time not later than ten (10) city business days after such appeal for holding a hearing, at which hearing the appellant shall have the right to appear and be heard in person or by counsel. The commission shall, at the request of the appellant or of the city manager or other officer ordering the suspension, reduction or removal, compel other persons to attend the hearing as witnesses. All testimony given shall be under oath. The members of the commission shall have the power to administer oaths and affirmations, and to compel the attendance of witnesses and other persons by subpoena and other processes provided by law, and to compel the production of all pertinent records. The commission may make any further investigation which it might deem proper. Within twenty-four (24) hours after the completion of the public hearing or such investigation, the commission shall report its findings and recommendations to the city manager. A copy of the written statement given the officer or employee, of the written reply, if any, and a copy of the findings and recommendations of the commission shall be filed as a public record in the office of the personnel director.
(Ord. No. 2015-05-20-0423, § 3 (Prop. 4), 5-20-15; Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 77. Reserved.

Editor's note—Ord. No. 2024-08-08-0550, § 1(Prop. B), adopted August 8, 2024 and from election of November 5, 2024, repealed § 77, which pertained to status of appointive officers and employees when this Charter became effective.

Sec. 78. Prohibitions.

(a) No person shall willfully or intentionally make any false statement, certificate, mark, rating or report in regard to any test, certification, or appointment held or made, or in any manner commit any fraud interfering with the performance of these provisions or the applicable rules and regulations.

(b) No person seeking appointment to or promotion in the classified civil service shall directly or indirectly give, render or pay any money, service or other valuable thing to any person on account of or in connection with any test, appointment or promotion.

(c) The City Leadership Team may not take an active part in another person's political campaign for City Council. City employees are prohibited from taking an active part in their own or any other person's campaign for elected position during working hours or while wearing a City uniform. The term "active part" means making political speeches, passing out cards, or other political literature, writing letters, signing petitions, actively and openly soliciting votes, and making public derogatory remarks about candidates for such elective positions. City employees are prohibited from contributing or using city resources, equipment, or money for election campaigning.

(d) City employees are not required to contribute to any political fund or render any political service to any person or party whatsoever; and no person shall be removed, reduced in classification or salary, or otherwise prejudiced by refusing to do so.
(Ord. No. 85965, § 1 (Prop. 4), 5-5-97; Ord. No. 2015-05-20-0423, § 3 (Prop. 4), 5-20-15; Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

ARTICLE VII. FINANCE AND BUDGET*

Sec. 79. Fiscal year.

The fiscal year of the City shall begin on the first day of October and end on the last day of September of each calendar year. The fiscal year shall constitute the budget year of the City government. The term "budget year" shall mean the fiscal year for which any particular budget is adopted and in which it is administered.
(Ord. No. 85965, § 1 (Prop. 1), 5-5-97)

Sec. 80. The budget.

The budget for the City government shall present a complete financial plan for the ensuing fiscal year. It shall set forth all proposed expenditures for the administration, operation and maintenance of all departments and agencies of the City government for which appropriations are required to be made or taxes levied by the City government; all expenditures for capital projects to be undertaken or executed during the fiscal year; a capital program of proposed capital projects for the five fiscal years next succeeding the budget year; all interest and debt redemption charges during the fiscal year; and the actual or estimated operating deficits from prior fiscal years. The budget shall also set forth the anticipated income and other means of financing the total proposed expenditures of the City government for the fiscal year.
(Ord. No. 85965, § 1 (Prop. 1), 5-5-97; Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 81. The budget document.

The budget document shall consist of three parts, as follows:

Part I shall contain: (1) a budget message prepared by the City Manager, which shall outline a fiscal policy for the City government, describing the important features of the budget with reference both to proposed expenditures and anticipated income, for the current year; (2) a general budget summary with support schedules, which shall exhibit the aggregate figures of the budget in such manner as to show a balanced relationship between the total proposed expenditures and the total anticipated income for the fiscal year covered by the budget, and which shall compare these figures with the corresponding figures of the last completed fiscal year and the year in progress;

Part II shall contain: (1) detailed estimates of all proposed expenditures, showing the corresponding expenditures for each item for the current fiscal year and the last preceding fiscal year with the explanations of increases or decreases recommended as compared with appropriations for the current fiscal year; (2) detailed estimates of anticipated revenues and other income; (3) delinquent taxes for current and preceding years, with estimated percentage collectible; (4) statements of the bonded debt and other indebtedness of the City government, showing the debt redemption and interest requirements, the debt authorized and unissued, the conditions of the sinking funds, if any, and the borrowing capacity of the City.

Part III shall contain a complete draft of the budget ordinance, including an appropriation ordinance and such other ordinances as may be required to finance the budget.
(Ord. No. 85965, § 1 (Prop. 1), 5-5-97; Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 82. The preparation and adoption of the budget.

Annually, the City Manager shall establish a budget calendar setting key dates for preparation and adoption of the consolidated annual budget. The departments and agencies of the City government shall transmit, in accordance with the calendar, estimates of their budgetary requirements to the Department responsible for preparing the budget, which shall prepare a budget for the City Manager in the form required by the Charter. The City Manager shall transmit the annual budget to the Council in accordance with the calendar. The Council shall arrange for and hold at least one public hearing on the

*__Editor's note—__Ordinance No. 85965, § 1 (Prop. 1), adopted May 5, 1997, amended article VII to read as herein set out. Formerly, such article, §§ 79—111 pertained to similar provisions and derived from an election effective January 1, 1952; Ord. No. 44594, § 1 (Props. 5, 6), 11-07-74; Ord. No. 47586, § 1 (Prop. 2), 1-17-77.

budget during the period of its consideration. Provided, however, that at least ten (10) days prior public notice shall be given of such public hearing; and provided, further, that at least ten (10) days prior to such public hearing, the City Manager shall cause one copy to be made available in the office of the City Clerk for inspection. The Council may revise, alter, increase, or decrease the items of the proposed budget prior to the adoption of the appropriation ordinance, provided that when it shall increase the total proposed expenditures, it shall also increase the total anticipated income so that the total means of financing the budget shall at least equal in amount the aggregate proposed expenditures. When the Council shall make such changes, it shall issue a statement setting forth clearly its action on the budget. Annually, the Council shall approve the budget plan and shall enact, not later than the twenty-seventh (27^{th}) day of September, the appropriation ordinance, and such other ordinances as may be required to make the budget effective. As soon as possible after the completion of the tax roll the Council shall pass the tax levy ordinance. A copy of the budget, as finally adopted, shall be filed with the City Clerk and the County Clerk of Bexar County. The final budget shall be made available for the use of all departments, offices and agencies of the City, and for the use of interested persons, agencies and civic organizations.
(Ord. No. 85965, § 1 (Prop. 1), 5-5-97; Ord. No. 2015-05-20-0423, § 3 (Prop. 4), 5-20-15; Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 83. Work program and allotments.

Immediately before the beginning of each fiscal year, the head of each department or agency of the City government, upon the direction of the City Manager, shall submit to the responsible Department a work program for the year, which shall include all appropriations for its operation and maintenance and for the acquisition of property, and show the requested allotments of the appropriations for such department or agency by months for the entire fiscal year. The City Manager, with the assistance of the appropriate Department, shall review the requested allotments in light of the work program of the department or agency concerned, and may, if the City Manager deems necessary, revise, alter, or change such allotments before authorizing. The aggregate of such allotment shall not exceed the total appropriation available to the department or agency for the fiscal year. The department responsible for preparing the budget shall authorize all expenditures for the departments and agencies to be made from the appropriations based on the approved allotments, and not otherwise. The approved allotments may be revised during the fiscal year by the City Manager, or upon application by the head of any department or agency as approved by the City Manager, but in no event shall the aggregate of departmental or agency allotments exceed the appropriation available to such departments or agencies for the fiscal year. If, at any time during the fiscal year, the City Manager shall ascertain that the available income, plus fund balances, for the year will be less than the total appropriations, the City Manager shall reconsider the work programs and allotments of the several departments and agencies and revise them so as to prevent the making of expenditures in excess of the income and fund balance.
(Ord. No. 85965, § 1 (Prop. 1), 5-5-97; Ord. No. 2015-05-20-0423, § 3 (Prop. 4), 5-20-15; Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 84. Transfer of appropriations.

Upon written recommendation of the City Manager, the City Council may at any time transfer any unencumbered appropriation balance or any portion within a department, office, or agency to another.
(Ord. No. 85965, § 1 (Prop. 1), 5-5-97; Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 85. Appropriation of excess revenue.

If at any time the total revenues collected by the City shall exceed the total estimated revenue, as set forth in the annual budget estimate, the City Manager shall make a recommendation to the City Council of the use of such funds, and the use of such funds are subject to appropriation by subsequent City Council ordinance.
(Ord. No. 85965, § 1 (Prop. 1), 5-5-97; Ord. No. 2015-05-20-0423, § 3 (Prop. 4), 5-20-15; Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 86. Money to be drawn from treasury in accordance with appropriations.

No money shall be drawn from the treasury of the City, nor shall any obligation for the expenditure of money be incurred, except in pursuance of the annual or interim fiscal period appropriation ordinance or such ordinance when changed as authorized by this Charter or by the general laws of Texas. At the close of each fiscal year any unencumbered balance of an appropriation shall revert to the fund from which appropriated and shall be subject to reappropriation as provided by this Charter; but appropriations may be made by the Council, to be paid out of the income of the current year, in furtherance of public improvements, capital or maintenance projects, which will not be completed within such year, and any such appropriation shall continue in force until the purpose for which it was made shall have been accomplished or abandoned.
(Ord. No. 85965, § 1 (Prop. 1), 5-5-97; Ord. No. 2015-05-20-0423, § 3 (Prop. 4), 5-20-15)

Sec. 87. City depositories.

All monies received by any person, department, or agency of the City for or in connection with the business of the City, and all funds of the City shall be deposited promptly in the City Depository, which shall be designated by the Council in accordance with such regulations and subject to such requirements as to security for deposits and interest as may be established by ordinance. All interest on monies belonging to the City shall accrue to the benefit of the City.
(Ord. No. 85965, § 1 (Prop. 1), 5-5-97; Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 88. Collection and deposit of revenues.

The Assessor and Collector of Taxes or other designated official(s) shall collect, issue receipts for, and deposit all ad valorem property taxes, all occupational taxes and all fees and dues as may be prescribed by ordinance.
(Ord. No. 85965, § 1 (Prop. 1), 5-5-97)

Sec. 89. Seizure and sale of personal property.

The Assessor and Collector of Taxes shall, by virtue of their tax rolls, have power and authority to seize and levy upon all personal property and sell it to satisfy all taxes, together with all penalty, interest, and costs due on the personal property by the delinquent taxpayer to the City. When the Assessor and Collector of Taxes seizes personal property for such purposes they shall keep the same at the expense of the owner until the sale is made, and shall give notice of the time and place of sale by posting a written notice.

A sale of personal property for delinquent taxes shall convey with it an absolute title, and the owner shall have no right to redeem the same.
(Ord. No. 85965, § 1 (Prop. 1), 5-5-97; Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 90. Tax lien.

On January 1 of each year, a tax lien attaches to all real, personal and mobile home property to secure the payment of all taxes, penalties and interest imposed for the year on the property, whether or not the taxes are imposed in the year the lien attaches.
(Ord. No. 85965, § 1 (Prop. 1), 5-5-97)

Sec. 91. The power of the city to assess, bill and collect ad valorem property taxes.

The City shall have power annually to assess, bill and collect ad valorem property taxes at the rate and in the total amount authorized by the Constitution of Texas and the general laws of this State. The authorized ad valorem property taxes shall be assessed annually and collected on the taxable value of all real, personal, and mobile home property having situs in the corporate limits of the City. There shall be a position in the Finance Department known as the Tax Assessor-Collector of Taxes. This position shall assess, bill, and collect ad valorem property taxes in accordance with the Constitution of Texas and the State Property Tax Code. The tax levied by any improvement district in the City shall not exceed twenty-five cents annually.
(Ord. No. 85965, § 1 (Prop. 1), 5-5-97; Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 92. Occupation taxes.

The Council shall have power annually to levy and collect occupation taxes, in accordance with the provisions of the laws of the State of Texas.
(Ord. No. 85965, § 1 (Prop. 1), 5-5-97)

Sec. 93. Method of levy, assessment, and collection of taxes.

All city taxes shall be levied, assessed, and collected in the same manner as may be provided by the laws of Texas for the levy, assessment and collections of state and county taxes, unless otherwise provided by this Charter, or by ordinance; provided, however, that no discounts may be granted for the advance payment of taxes. All powers conferred by the general laws of Texas as they now or later may exist for the assessment, levy and collection of taxes by county and city assessors and collectors are adopted and made applicable to the City and shall be in addition to and cumulative of the powers expressly granted in this Charter, including without limitation, those granted to county and city assessors and collectors of taxes, and to all other persons, bodies or agencies concerned with the assessment and collection of taxes.
(Ord. No. 85965, § 1 (Prop. 1), 5-5-97; Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 94. Tax rate.

The City Council shall adopt a tax rate for the current tax year on the same date the City's Annual Operating Budget is adopted and shall notify the Tax Assessor-Collector of the rate adopted. The tax rate shall consist of two components, each of which must be approved separately. The components are:

The rate that, if applied to the total taxable value, will be used to pay debt service for the fiscal year; and

The rate, that, if applied to the total taxable value, will impose the amount of taxes needed to fund maintenance and operation expenditures for the fiscal year.

The City may not impose property taxes in any year until the City Council has adopted a tax rate for that year, and the annual tax rate must be set by ordinance. The vote on the ordinance setting the tax rate must be separate from the vote adopting the budget.
(Ord. No. 85965, § 1 (Prop. 1), 5-5-97; Ord. No. 2015-05-20-0423, § 3 (Prop. 4), 5-20-15)

Sec. 95. Taxes when due.

All ad valorem property taxes are due on receipt of the tax bill and are delinquent if not paid before February l of the year following the year in which imposed. The Council shall have power, by ordinance, to provide for the payment of any taxes due, at the option of taxpayers as provided by state law.
(Ord. No. 85965, § 1 (Prop. 1), 5-5-97; Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 95A. Reserved.

Editor's note—Ord. No. 2015-05-20-0423, § 3 (Prop. 4), adopted May 20, 2015, repealed the former section 95A in its entirety, which pertained to change in tax and fiscal years, and derived from Ord. No. 85965, § 1 (Prop. 1), adopted May 5, 1997.

Sec. 96. Reserved.

Editor's note—Ord. No. 2024-08-08-0550, § 1(Prop. B), adopted August 8, 2024, from election of November 5, 2024, repealed § 96, which pertained to penalties and interest on delinquent taxes and derived from Ord. No. 85965, § 1(Prop. 1), 5-5-97.

Sec. 96A. Additional penalty for collection costs.

Taxes that remain delinquent on July 1 of the year in which they become delinquent incur an additional penalty to defray costs of collection. The amount of the penalty may not exceed the amount provided by state law.
(Ord. No. 85965, § 1 (Prop. 1), 5-5-97; Ord. No. 2015-05-20-0423, § 3 (Prop. 4), 5-20-15)

Sec. 96B. Delinquent tax attorney.

The City Council may contract with any competent attorney to represent the City to enforce the collection of its delinquent taxes.
(Ord. No. 85965, § 1 (Prop. 1), 5-5-97)

Sec. 97. Purchase procedure.

Paragraph 1. Contracts for the purchase of supplies, material, or equipment, or for contractual services shall be in writing and opportunity for competitive bidding shall be given before they are awarded as required by state law. The Council shall have the right to reject any and all bids.

Paragraph 2. Where the contract is for less than the amount required to be bid by state law and the item is one provided for in the budget, the Council by ordinance may authorize designated City officials to approve and execute the contract without Council approval, after public notice, competitive bids, requests for proposals, or other procedures and safeguards as may be required in such ordinance. This provision would apply to all city contracts.
(Ord. No. 85965, § 1 (Prop. 1), 5-5-97)

Sec. 98. Authority to issue bonds.

The City shall have power to borrow money on the credit of the City and to issue bonds for permanent public improvements or for any other public purpose not prohibited by the Texas Constitution or the general laws of the State of Texas to include affordable housing programs in scope and breadth as determined by ordinance of the City Council, and to fund or refund any bonded indebtedness; provided, however, that any proposition to borrow money and to issue bonds, except as otherwise authorized by the general laws of Texas, shall be first approved by a majority of the qualified electors of the City voting in an election held, as prescribed by ordinance, as nearly in accord with this Charter and the laws regulating City elections as may be practicable. The ordinance calling such election shall distinctly specify the purpose of the election; provided, however, that more than one subject or purpose may be included but each shall be separately stated. No election shall be required to authorize the refunding of bonds issued and outstanding. The total bonded debt of the City shall never exceed ten percent of the total assessed valuation of property shown by the last assessment roll, exclusive of any indebtedness secured in whole or in part by special assessments, exclusive of the bonded debt of any improvement district, and exclusive of any indebtedness secured by revenues, other than taxes, of the City or of any department or agency of the City.
(Ord. No. 85965, § 1 (Prop. 1), 5-5-97; Ord. No. 2021-05-12-0327, § 3 (Prop. A), 5-12-21; Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 99. Revenue bonds.

The City shall have power to issue its revenue bonds for the purposes and in the manner and form now or later authorized by any general law of Texas. The City shall also have power to issue its revenue bonds for the acquisition of any other utility or property for public use and to enlarge, improve, extend or equip the same, and to issue its revenue bonds for any other lawful public purpose, provided such bonds shall never be a debt of the City and shall be a charge upon and payable solely from the designated sources, properties or interest acquired and the income from those resources. The Council shall have authority to provide for the terms and forms of any purchase agreement, contract, mortgage, bond, or document desired or necessary for the issuance of revenue bonds and the acquisition and operation of any such property or interest.
(Ord. No. 85965, § 1 (Prop. 1), 5-5-97; Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 100. Issuance of bonds for improvement districts.

The City shall have power to borrow money on the credit of any improvement district of the City and issue bonds for permanent public improvements in such districts, and the Council may divide the City, or any portion into improvement districts; but every proposition to borrow money on the credit of any improvement district for permanent public improvements shall be first submitted to and approved by a majority of the qualified electors residing within such district, voting in an election held for such purpose and shall distinctly specify the purpose of the loan and the permanent public improvements to be constructed; provided, however, that several improvements of different character may be submitted at one election. All bonds shall specify

the purpose for which they were issued. All accrued interest to date of payment of the proceeds of sale shall be deposited in the City depository. The bonds may be negotiated in lots as the Council may decree. No debt shall be contracted for the payment of bonds that are issued until the bonds are sold; and no debt shall ever be created against any improvement district unless at the same time provision is made to assess and collect annually upon property in that district a sum sufficient to pay the debt service on the bonds and create a sinking fund as required by law. The tax, collected annually from the owners of property in an improvement district for payment of bonds shall be in addition to all other current taxes levied by the City, and the fund created shall be kept separate by the City depository from other funds, and not be diverted or used for any other purpose than to pay interest and principal on the bonds.
(Ord. No. 85965, § 1 (Prop. 1), 5-5-97; Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 101. Sale of bonds and certificates of obligation.

No bond or certificate issued by the City shall be sold until after the terms have been considered and the sale has been approved by City Council.
(Ord. No. 85965, § 1 (Prop. 1), 5-5-97; Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 102. Sinking fund.

It shall be the duty of the Council each year to levy a tax sufficient to pay the debt service on and provide the necessary sinking fund required by law on all bonds outstanding. The interest and sinking fund, and the funds later created for the retirement of bonds shall be deposited in separate accounts in the City depository and shall not be diverted to any other purpose or used for any purpose other than to pay interest and principal on those bonds.
(Ord. No. 85965, § 1 (Prop. 1), 5-5-97; Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 103. Sinking fund administration.

The sinking fund for the redemption of any loan or debt may be invested in any investment instruments as authorized by the laws of the State of Texas and any other applicable law, which may include United States interest bearing bonds or bonds of the State of Texas, or Bexar County, Texas, or in bonds of the City, or of any City improvement district and the interest of such bonds, shall be reinvested; and such investment instruments shall be sold when necessary to pay the interest or principal of the bonds issued under the provisions of this section. The sinking fund may be appropriated at any time to reduce the public debt by the purchase and cancellation of outstanding City bonds, or for the investment of the sinking fund.
(Ord. No. 85965, § 1 (Prop. 1), 5-5-97; Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 104. Disbursement of funds.

All checks, vouchers, warrants, wire transfers or ACH transactions for the withdrawal of money from the City depository shall be signed by the Director of Finance, or the Director's designee who is an authorized City signatory designated by Ordinance; provided, however, that checks, vouchers, warrants, wire transfers or ACH Transactions for the withdrawal of sinking funds shall require two signatures of authorized City signatories designated by Ordinance.
(Ord. No. 85965, § 1 (Prop. 1), 5-5-97; Ord. No. 2015-05-20-0423, § 3 (Prop. 4), 5-20-15; Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 105. Borrowing in anticipation of property taxes.

In any tax year, in anticipation of the collection of the ad valorem property tax for such year, whether levied or to be levied in such year, the Council may by resolution authorize the borrowing of money by the issuance of negotiable notes of the City each of which shall be designated "tax anticipation note for the _____" (stating the tax year). Such notes shall mature and be payable not later than the end of the tax year in which issued and may be secured by the pledge of the ad valorem property taxes for that year.
(Ord. No. 85965, § 1 (Prop. 1), 5-5-97; Ord. No. 2015-05-20-0423, § 3 (Prop. 4), 5-20-15; Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 106. Borrowing in anticipation of other revenues.

In any tax year, in anticipation of the collection or receipt of other revenues of that year, the Council may by resolution authorize the borrowing of money by the issuance of negotiable notes of the City, each of which shall be designated "special revenue note for the year _____" (stating the tax year). Such notes may be renewed from time to time, but all such notes, together with the renewals shall mature and be payable not later than the end of the tax year in which issued and may be secured by pledge of other revenues for that year.
(Ord. No. 85965, § 1 (Prop. 1), 5-5-97; Ord. No. 2015-05-20-0423, § 3 (Prop. 4), 5-20-15; Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 107. Independent audit.

As soon as practicable after the close of each fiscal year, an independent audit, in accordance with specifications defined by ordinance, shall be made of all accounts of the City government by an external Certified Public Accountant, selected by the Council, who shall have no personal interest directly or indirectly in the financial affairs of the City government, or of any of its officers. The results of this audit shall be published immediately upon its completion.
(Ord. No. 85965, § 1 (Prop. 1), 5-5-97; Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Secs. 108—111. Reserved.

ARTICLE VIII. MUNICIPAL COURT

Sec. 112. [Established.]

There are established Municipal courts of the City which shall be courts of record, presided over by judges appointed by the City Council for two-year terms. The Judge, at the time of their appointment, shall have resided in the city for the period of time required by state law for San Antonio municipal judges. The Municipal courts shall operate pursuant to applicable state law providing for San Antonio Municipal Courts of Record as they exist and as they may be amended from time to time.
(Ord. No. 85965, § 1 (Prop. 1), 5-5-97; Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Note—State law governing residency of San Antonio municipal court judges is Texas Gov't Code, Ch. 30, 30.00224. JUDGE. (c) In addition to satisfying the requirements of Section 30.00006(c), a municipal judge must have been a resident of the city for at least three years immediately preceding the judge's appointment.

Secs. 113—116. Reserved.

ARTICLE IX. PLANNING COMMISSION

Sec. 117. Organization.

There is established a planning commission which shall consist of nine members, who shall be appointed by the council as nearly as practicable from various areas of the city, for overlapping two year terms; provided, however, that, initially, five members of the commission shall be appointed for terms of two years and four members for terms of one year. The city manager, a member of the council designated by the council, the chairman of the zoning commission and the chairman of the zoning board of adjustment shall be ex officio members of the commission. The council may appoint other ex officio members. Appointive members of the commission, other than those serving in an ex officio capacity, may not hold any other public office for which compensation is paid by the State of Texas or any political subdivision of the State. A majority of appointive members, other than ex officio, shall constitute a quorum. The commission shall elect a chairman from its own membership, and shall meet not less than once each month. Members of the commission, other than those serving in an ex officio capacity, may be paid compensation not to exceed twenty dollars per meeting, and not exceeding $1,040 per annum, as may be determined by the council. Any vacancy occurring during the unexpired term of an appointive member shall be filled by the council for the remainder of the unexpired term.
(Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 118. Duties and powers.

Par 1. The commission shall be responsible to and shall act as an advisory body to the council. The commission shall:

(1) Make, amend, extend and add to a master plan for the physical development of the city.

(2) Submit annually to the city manager, not less than ninety days prior to the beginning of the budget year, a list of recommended capital improvements to be constructed during the forthcoming five-year period.

(3) Submit annually its budget estimate to the finance department at the same time and in the same manner as is required of city departments and agencies.

(4) Keep a public record of its resolutions, findings, and determinations.

Par. 2. The commission shall have power to:

(1) Prepare, recommend, and administer rules and regulations pertaining to subdivisions and to platting in territory outside the city limits and within the extraterritorial jurisdiction.

(2) Within its budget appropriation, contract with city planners and other consultants for such services as it may require.

(3) Make reports and recommendations relating to the plan and development of the city to public officials and agencies, public utility companies, civic, educational, professional and other organizations, and citizens.

Par. 3. The commission shall perform such additional duties and exercise such additional powers as may be prescribed by ordinance.
(Ord. No. 85965, § 1 (Prop. 1), 5-5-97)

Sec. 119. Director.

There shall be a director of planning who shall be appointed and removed by the city manager and who shall receive such compensation as may be fixed by the council. The director shall be qualified in the field of city planning, be the regular technical adviser of the commission, may be designated as its executive secretary, and have such other authority and duties as the commission may establish.
(Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 120. Employees.

The planning commission shall have additional employees as may be provided by ordinance. Such employees shall be in the classified civil service of the city and shall be appointed and may be removed by the city manager, or, with the approval of the city manager, by the director of planning.

Sec. 121. Master plan.

The master plan for the physical development of the city shall contain the commission's recommendations for the growth, development and beautification of city territory. The commission may adopt the master plan as a whole or in parts and may adopt any amendment. The adoption of the plan or of any such part or amendment shall be by resolution, but before the adoption of the plan or any such part or amendment, the commission shall hold at least one public hearing on the proposed action.
(Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 122. Procedure.

Par. 1. Master plan. A copy of the master plan, or any part of the plan, shall be forwarded to the city manager who shall submit the plan or part to the council, together with their recommendations, if any. The council may adopt or reject the plan or part as submitted; provided, however, that if the council fails to act on the plan or part for sixty days following its submission by the city manager, it shall be deemed approved. If the plan or part is rejected by the council, the planning commission may modify the plan or part and again forward it to the city manager for submission to the council.

Par. 2. Rules and regulations. All rules and regulations adopted by the planning commission shall be forwarded to the city manager to submit

them to the council with their recommendations. The council may adopt or reject any such rules or regulations. If any rules or regulations should be rejected, the planning commission may modify them, and submit the modified rules and regulations or new rules and regulations to the city manager for submission, with their recommendations to the council.
(Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 123. Legal effect of master plan.

Following the adoption of the master plan by the council, no subdivision, street, park, public way, ground or space, public building or structure or public utility whether publicly or privately owned, shall be constructed or authorized in the city, nor shall any real property be acquired by the city, until and unless the location and extent has been submitted to and approved by the commission; provided, that, in case of disapproval, the commission shall communicate its reasons to the council, which shall have the power to overrule such disapproval, and, upon such overruling, the council or the appropriate office, department or agency shall have power to proceed. The widening, narrowing, relocation, vacation or change in the use of any street, river, or watercourse, or other public way or ground or the sale of any public building or real property shall be subject to similar submission and approval, and failure to approve may be similarly overruled by the council. The failure of the commission to act within thirty days after the date of official submission to the commission shall be deemed approval, unless a longer period is granted by the council or the submitting official.
(Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 123A. Annexed land submitted to planning commission.

No land shall be annexed into the City until and unless the location and extent has been submitted to the Planning Commission and the Commission made a recommendation to the City Council on the proposed annexation. In case of disapproval by the Commission, it shall communicate its reasons to the Council. The Council shall have the right to overrule such disapproval. Failure of the Commission to act within thirty days after the date of submission shall be deemed approved, unless a longer period be granted by the Council.
(Ord. No. 85965, § 1 (Prop. 2), 5-5-97; Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

ARTICLE X. PUBLIC LIBRARY

Sec. 124. Establishment and management of San Antonio Public Library.

There is established the San Antonio Public Library. Its personnel and properties of every description shall be managed by a board of trustees, which shall consist of not less than seven nor more than fifteen members who shall be electors of Bexar County, Texas and who shall be appointed by the council; provided, however, that the number of such members shall be odd numbered; and provided, further, that such members shall serve without compensation from the city. Appointments to the board shall be made for overlapping two year terms; provided, however, that, initially, a majority shall be appointed for terms of two years and the remainder for terms of one year.
(Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 125. Officers and employees.

The board of trustees of the public library shall have authority to appoint and remove all officers and employees of the library, subject to the civil service provisions of this Charter. The employees shall be entitled to all rights and benefits under any provisions pertaining to employments of the city which are now or which may later be in the classified civil service of the city.
(Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 126. Properties.

The board of trustees of the public library shall be exclusively responsible for the management, care, control and maintenance of its properties of every description.

Sec. 127. Finance.

The board of trustees of the public library shall annually submit a budget estimate to the department of finance at the same time and in the same manner as is required of city departments and agencies. The budget estimate shall be transmitted to the council in the same manner as the budget estimates of city departments and agencies. The council, in recognition of the public service rendered by the public library, shall give full consideration to its needs as stated in the budget estimate submitted by the board. Upon approval by the council, the budget for the public library shall be included in the municipal budget and shall be subject to the same fiscal controls which apply to city departments and agencies.
(Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

ARTICLE XI. FRANCHISES

Sec. 128. Inalienability of public property.

The ownership, right of control and use of the streets, highways, alleys, parks, public places and all other real property of the city is declared to be inalienable by the city, except by ordinances passed by vote of a majority of the council as provided below; and no franchise or easement involving the right to use the same, either along, across, over or under the same, shall ever be valid, unless expressly granted and exercised in compliance with the terms of this Charter, and of the ordinances granting such use. No act or omission of the city, its council, officers or agents shall be construed to confer or extend by estoppel or indirection, any right, franchise or easement not expressly granted by ordinance.
(Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 129. Franchise power of the city.

The city shall have the power, subject to the terms and provisions of this Charter, by ordinance to confer upon any person, firm or corporation the franchise or right to use the property of the city, as defined in the preceding section, for the purpose of furnishing to the public any general public service, including, without limitation, however, heat, light, power, telephone service, refrigeration, steam, and the carrying of passengers for hire whether over designated routes or not within the city or its suburbs over the streets, highways and property of the city, or for any other purpose, where a general service is to be furnished to the public for compensation or hire, to be paid to the franchise holder, where a right to, in part, appropriate or use the streets, highways or other property of the city is necessary or proper. The provisions with references to public utilities shall not apply to those owned by the city.
(Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 130. Limitations on franchises.

No exclusive franchise or privilege shall ever be granted, nor a franchise nor a privilege to commence at any time after six months after the effective date of the enabling ordinance. No franchise or privilege shall be extended directly or indirectly beyond the term originally fixed by the ordinance granting the same.

An application for the renewal of a franchise or the granting of a new one may be considered and acted upon prior to the expiration date of the current franchise so that the new franchise may take effect upon the expiration date of the other; provided, however, that the procedure for the original granting of such franchise is followed in all particulars.
(Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 131. Granting of franchises.

The city shall have the power by ordinance to grant any franchise or right mentioned in the preceding sections. Readings shall be at three separate regular meetings of the council, the last of which shall take place not less than thirty days from the first. After the passage of the ordinance on its first reading, it shall be published once in a newspaper of general circulation in the city, advising all persons that a public hearing will be held on this franchise on the date stated. No ordinance granting a franchise shall pass any reading except by a vote of the majority of the

council and such ordinance shall not take effect until sixty days after its adoption on its third and final reading; provided, however, the ordinance shall be subject to referendum as provided by this Charter or as may be provided by the general laws of Texas.
(Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 132. Powers of city over franchise holders.

The city shall have the right and power, acting through the council, to determine, fix and regulate the charges, fares or rates of any person, firm or corporation enjoying or that may enjoy a franchise or exercise any other public privilege in the city and to prescribe the kind of service to be furnished by such person, firm or corporation, and the manner in which it shall be rendered, and from time to time to alter or change such rules, regulations and compensation. The city shall have the power and authority to require extensions, betterments and improvements of the service that may be rendered by the holder of a franchise and shall likewise have the power to prevent the making of unnecessary or unprofitable extensions.
(Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 133. Annual reports and statements required of franchise holders.

Every person, firm or corporation holding a franchise or enjoying an easement of any sort through, under or from the city shall be required to prepare and file annually with the council, within sixty days after the close of a fiscal year, a true, full and correct statement based upon the condition at the close of such fiscal year and the transactions for the current year which shall exhibit:

(a) The amount of all stock issues of such corporation and its divisions.

(b) An itemized statement of indebtedness, its nature and division, whether floating or bonded, and the interest payable on each item.

(c) An itemized statement of income and the amounts derived from each source of income.

(d) An itemized and detailed statement of expenditures.

(e) An itemized statement of all property of every kind owned and used in rendering the public service, wherever situated and the location and fair market value of each item.

The annual statement shall be verified by oath of the person, a member of the firm or a duly authorized officer or agent of the corporation, and upon its filing shall become part of the permanent records of the city.

If any person, firm or corporation required to file such report shall fail to do so, such failure shall be ground for forfeiture of the franchise and it shall be the duty of the city attorney, after due notice to the grantee of such intention, to bring suit within a reasonable time in the district court to forfeit the franchise and associated rights granted. If the court finds that such person, firm or corporation has willfully failed to make such report, it shall render judgment in the case decreeing a forfeiture of the franchise and all rights accruing under the franchise.
(Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 134. Conditions of franchises.

Each franchise granted by the council shall provide:

(1) For the compensation to be paid to the city for the use and occupancy of the public property, which the compensation may be a fixed fee, or may be measured by gross receipts, or some other method mutually agreeable to the parties. Such compensation may be changed from time to time by mutual consent.

(2) For the length of time that such franchise shall continue in effect; provided, however, that no franchise shall be granted for a period longer than twenty-five years.

(3) That no franchise shall be assigned without the written consent of the council, which consent shall be evidenced by a resolution or an ordinance.

(4) That the procedure to be followed in ordering the making of extensions, betterments or permanent improvements of the service by the city or considering applications by the grantee for permission to make extensions, enlargement or betterments, be prescribed.

(5) That no rate of return shall exceed a fair return upon the fair value of the property used in rendering the public service.

(6) Each franchise shall provide for a method of accounting applicable to the particular business conducted by the grantee.

(7) Adequate provision shall be made in each franchise for the maintenance of sufficient depreciation reserves so that the integrity of the property used and useful in rendering the public service may be maintained. Each franchise shall specify the purposes for which the depreciation reserves may be used. In determining the amount and character of reserves required it shall be proper to resort to current common practices applicable to the particular utility concerned.

(8) Each franchise shall provide for a recapture provision where the city shall have the right to cancel the franchise and purchase the property of the franchise holder at a price to be determined according to the formula or method agreed upon in the franchise when granted.

(9) That the grantee may be required, at grantee's expense, to conform its installations in the streets, alleys, and public ways to any changes of grade made by the city.

(Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 135. Investigations and public hearings.

The council shall have full power to examine or cause to be examined at any time, and at all times the books, papers and records of franchise holders; to take testimony and compel the attendance of witnesses and the production of books, papers, and records and to examine witnesses under oath and under such rules and regulations as it may adopt and should any franchise holder refuse to permit the inspection of its books, papers or records by the council or by any one designated by it to make such inspection or fail to produce them when notified to do so by the council, or should any officer, agent or employee of such franchise holder refuse to give testimony before the council, the council shall have the power by ordinance, to declare the franchise or privilege enjoyed by such person, firm or corporation in default, and terminated.

The council shall have the power to call a public hearing, giving reasonable notice to the holder of a franchise, to determine whether or not an application to increase rates shall be granted or to determine whether or not the rates currently charged by any holder of a franchise for the service rendered are excessive. In that connection the council shall have full power to examine the books, papers and records of the franchise holder, and to compel the attendance of all witnesses deemed necessary for the ascertainment of the facts in connection with the inquiry. Failure to obey any subpoena to appear as a witness shall be punishable by the council for contempt by any appropriate proceedings permitted by law.

(Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 136. Supervisor of public utilities.

There is created the position of supervisor of public utilities, who shall be nominated by the City Manager and confirmed by the Council. The Supervisor shall serve at the pleasure of the City Manager. The Supervisor shall have such assistants as may be determined by the council in cooperation with the City Manager.

The Supervisor shall monitor the financial condition of public utilities and for regulatory and policy issues impacting the City. In connection with any application for a change in rates, fares, or charges by a public utility or holder of a

franchise, the Supervisor shall assemble the facts which are essential to proper determination of cost of service and the fixing of reasonable rates. The Supervisor and assistants under the Supervisor's direction shall have power to make and shall conduct all inspections and examinations of public utility or franchise holder properties, accounts and records and may proceed with informal negotiations or with formal proceedings. The Supervisor may give such a rate hearing to any such person, firm, or corporation provided for in this provision and report the findings and recommendations to the Council for their adoption, revision, or rejection. The Supervisor, while sitting for the purpose of giving such hearing shall have all the powers conferred by this Charter upon the Council to inspect books and compel attendance of witnesses and may prescribe the penalties provided by this Charter for failure or refusal to attend and testify or produce such books.

Every public utility or franchise holder operating within the city shall furnish the Supervisor regular reports as to capital outlay, property retirements, operating revenues, operating expenses, taxes and other accounting matters according to the standard accounting classifications for each utility. In addition, the City may require reports regarding salaries, wages, employees, contracts, service performance and all other records of operation that pertain to proper rate adjustments on the basis of facts and regular administration.

The council may certify any hearing to the Supervisor whenever it deems it advantageous to have the supervisor sit and give such hearing instead of the council; provided, however, that the evidence at any hearing so held and the findings of the Supervisor shall be fully reported to the council for its adoption, amendment, revision or rejection.

The Supervisor shall perform such other duties and services affecting public utilities and franchises as are assigned or directed by the City Manager or council.
(Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 137. Miscellaneous provisions.

The council shall have the right by resolution to grant a temporary use of a street, alley, public way or public property for a period not to exceed two years and by ordinance, in the nature of a franchise, for a period not to exceed twenty-five years, and charge compensation annually as may be proper. The grants contemplated by this section do not include utility franchises as that term is generally understood. In this connection the council shall have the right to grant to the owner of property abutting upon the streets, or other property of the city, the use of or to go under or over the same in any manner which may be necessary or proper to the better enjoyment of the abutting property by the owner; provided, however, that the use is not inconsistent with, or does not unreasonably impair the public use to which the street or other property may be dedicated.

The council shall fix the terms, conditions, and duration of any grant. The right is expressly reserved to the city, acting through the council to terminate a grant when deemed inconsistent with the public use of the property of the city, or when it may become a nuisance.
(Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

ARTICLE XII. GENERAL PROVISIONS

Sec. 138. Oath of office.

Every person elected or appointed to office in the city, or to a city board or commission, shall, before entering upon the duties of their office, take and subscribe the official oath prescribed by the state constitution.
(Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 139. Qualification of elective officers.

All elective officers of the city shall qualify within ten days after election and failure to do so, except in case of sickness, shall vacate the office, and an election shall be immediately called to fill the vacancy.
(Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 140. Prohibitions on candidates for office or employment.

(a) It shall be unlawful for any candidate or any person who may become a candidate for any office or employment under the government of the City, directly or indirectly, to offer or promise to any person or persons any office or employment under the City government or any benefit to be derived from that office or employment in the event of the election or appointment of such candidate to any such office or employment; or to promise or agree to use their influence to obtain for any person any office or employment under the government of the City. Any violation of any of the provisions of this section shall be a misdemeanor and shall be grounds for removal from office or employment.

(b) No appointee of any City board or commission shall continue in such position after becoming a candidate for nomination or election to any City or Bexar County elected office.
(Ord. No. 85965, § 1 (Prop. 4), 5-5-97; Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 141. Interest in city contracts prohibited.

No officer or employee of the city shall have a financial interest, direct or indirect, in any contract with the city, or shall be financially interested, directly or indirectly, in the sale to the city of any land, materials, supplies or service, except on behalf of the city as an officer or employee. Any willful violation of this section shall constitute malfeasance in office, and any officer or employee guilty of this offense shall forfeit their office or position. Any violation of this section, with the knowledge, expressed or implied, of the person or corporation contracting with the council shall render the contract involved voidable by the city manager or the council.
(Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 142. Limitation on debts incurred.

Any debt contracted by any officer of the city, or by any person on account of the city, the payment of which has not been previously provided for by ordinance duly adopted by the council, shall be absolutely null and void and uncollectible at law or in equity, and it shall be the duty of the city attorney to plead this provision to defeat the collection or enforcement of any such claim or debt.
(Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 143. Costs or fees of office.

No officer of the city shall ever be entitled to costs or fees of office except for the use of the city; and all penalties, forfeitures, fines, costs and fees of office that accrue shall be paid into the city depository, and no money shall be drawn from the depository except in the pursuance of a specific appropriation of the council; nor shall any appropriation for private or individual purposes be made, except as provided in Article I, Section 3, Paragraph 12 of this Charter.
(Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 144. City records admissible as evidence.

Certified copies of the records, papers and books of city officers or employees shall be admissible in evidence when certified by the custodian of such papers, books and records and attested by them under their seal, if they have one; provided, that for issuing such certified copies the city shall receive such fees as may be provided by ordinance.
(Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 145. City records open to public.

All records of the City shall be available to the public as provided by state law.
(Ord. No. 2015-05-20-0423, § 3 (Prop. 4), 5-20-15)

Sec. 146. Security or bond not required.

The city shall not be required to give any bond for security or costs or any other security in any suit or action brought by or against it, or in any proceeding to which it may be a party in any court in this state; and the city shall have all remedies of appeal provided by law to all courts

in this state without bond or security of any kind, but shall be liable in the same manner and to the same extent as if the bond, undertaking or security required in other cases had actually been executed and given.

Sec. 147. Execution and garnishment.

No execution shall be issued or levied by virtue of any judgment that may be recovered against the city, but the council shall provide for the payments of judgments in the next levying of taxes after the final recovery of any judgments from the city. All assets of the city, including lands, houses, moneys, debts due the city, personal and real property, and assets of every description belonging to the city, shall be exempt from execution and sale; but the city shall make provisions, by taxation or otherwise, for the payment of any and all indebtedness incurred by the city. No writ of garnishment shall issue against the city to subject or seize any debt to any person or corporation, or any claim or demand upon any fund in the hands of the city or any of its officers; nor shall the city or any of its officers or agents be required to answer any writ of garnishment.
(Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 148. Assignments.

The city shall not recognize transfers or assignments of salaries or wages, nor shall any officer of the city receive or honor any drafts or order drawn by any person against their salary or wages, but the warrant or money shall in every instance be delivered or paid to the entitled person according to the city's accounts; nor shall any officer of the city issue any certificates of indebtedness. Nothing contained in this Charter shall prevent the holder of a warrant from transferring it. If the council declares by ordinance, a warrant for the total amount of any pay roll may be drawn in favor of the person paying the pay roll, and the warrant shall have the same legal standing and effect as any other warrant.
(Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 149. Competency of inhabitants or taxpayers.

No person shall be disqualified as a judge, justice, or juror by reason of their being an inhabitant in the city or subject to taxation by the city in any action or proceeding in which the city may be a party at interest.
(Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 150. Liability of and limitations on the city.

Before the city shall be liable for damages for the death or personal injuries of any person or for damage to or destruction of property of any kind, the person injured, if living, or their representatives, if dead, or the owner of the property injured or destroyed, shall give the city manager or the city clerk notice in writing of such death, injury or destruction within ninety days after the injury has been sustained, stating in such written notice when, where and how the death, injury or destruction occurred, and the apparent extent of any such injury, and the amount of damages sustained; provided, however, that in no event shall the city be liable in damages to any one on account of any defect in, obstruction, on or anything else in connection with any sidewalk in the city. And provided, further, that in order to hold the city liable in damages to any one on account of any injury caused by any defect in, obstruction on, or anything else in connection with any street, alley or plaza, bridge, river bank, water course, or any public way, it must be shown that the city manager, a member of the council, or some person having superintendence or control of the work for the city had actual knowledge or actual notice of such defect, obstruction or other thing for a sufficient length of time before such injury was received, to have remedied or guarded against such condition of the street, alley or plaza before the injury was received.
(Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 151. Liability of officers and employees.

No officer or employee of the city shall be liable for damages for any act committed in the proper discharge of their duties.
(Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 152. Reserved.

Editor's note—Ordinance No. 85965, § 1 (Prop. 1), adopted May 5, 1997, deleted § 152 in its entirety. Formerly, such section pertained to school district taxes and derived from an election effective January 1, 1952.

Sec. 153. Cemetery lots exempt from taxes, etc.

The cemetery lots which have been or may later be laid out and sold by the city for private places of burial, shall, with the appurtenances, forever be exempt from taxes, exceptions, attachments and forced sales.
(Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 154. Appointments to boards, commissions and authorities.

The Mayor and City Council shall appoint all members of regulatory and zoning boards or commissions. No member of any such board or commission, may be compensated by the City at a rate in excess of twenty dollars per meeting, or more than $1,040 per annum.
(Ord. No. 85965, § 1 (Prop. 1), 5-5-97)

Sec. 155. Continuation.

All rights, actions, penalties, and forfeitures in suits or otherwise which have accrued prior to adoption of this Charter shall be vested in and possessed by the city and no suit pending shall be affected by the passage of this Charter, but shall be prosecuted or defended, as the case may be, by the city.
(Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Secs. 156—158. Reserved.

Editor's note—Ordinance No. 85965, § 1 (Prop. 1), adopted May 5, 1997, deleted §§ 156—158, which no longer have any effect. Formerly, such sections pertained to effect of this charter on existing law, interim government, transitional provisions, special provision for appointments and derived from an election effective January 1, 1952.

Sec. 159. Reserved.

Editor's note—Ord. No. 2024-08-08-0550, § 1(Prop. B), adopted August 8, 2024 and election from November 5, 2024, repealed § 159, which pertained to loyalty oath.

Sec. 160. Officers to hold over until their successors are appointed and qualified.

Whenever under the provisions of this Charter any officer of the city, judge or member of any board or commission is appointed for a fixed term, such officer, judge or member shall continue to hold office until their successor is appointed and qualified.
(Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 161. Public act, liberal construction.

This Charter shall be deemed a public act and may be read in evidence without pleading or proof, and judicial notice shall be taken in all courts and places. It is intended by this Charter to promote a more efficient and effective government for the city and to secure for the people improved representation in legislation, and greater economy and efficiency in administration. To that end, it is directed that all provisions of this Charter shall be liberally construed, and the council is vested with all legislative powers required to augment these provisions and to insure at all times the effective operation of this Charter.
(Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 162. Renumbering and rearrangement of charter provisions.

The council shall have the power, by ordinance, to renumber and rearrange all articles, sections, paragraphs of this Charter or any amendments as it shall deem appropriate.
(Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 163. Amendments.

This Charter may be amended at any time in accordance with the applicable provisions contained in statutes and as provided by the constitution of Texas.
(Ord. No. 85965, § 1 (Prop. 1), 5-5-97; Ord. No. 2015-05-20-0423, § 3 (Prop. 4), 5-20-15)

Sec. 164. Separability clause.

Should any article, section, part, paragraph, sentence, phrase, clause or word of this Charter, for any reason, be held illegal, inoperative or invalid, or if any exception to or limitation upon any general provision is held to be unconstitutional or invalid or ineffective, the remainder shall, nevertheless, stand effective and valid as if it had been enacted without the portion held to be unconstitutional or invalid or ineffective.
(Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

ARTICLE XIII. ETHICS REVIEW BOARD

Sec. 165. Statement of principal.

(a) All City officials and employees are expected to uphold the highest standards of ethical conduct, ensuring that their actions do not lead to improper personal gain or an adverse effect on the city's interests. In support of this commitment, the City Council shall enact ordinances to enforce this principle, covering areas such as official actions where significant private interests are involved, the acceptance of gifts, confidentiality, and advocacy for private interests. The ordinances will also provide requirements regarding mandatory financial disclosures.

(b) Significant private interests include any financial or non-financial interests, relationships, or affiliations that could reasonably be expected to interfere with an official's or employee's ability to act in the best interests of the city or that could create a perceived conflict of interest or appearance of impropriety.
(Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 166. Organization.

(a) The City Council shall appoint an Ethics Review Board, to exercise the powers and duties established by this Charter. The Ethics Review Board shall consist of eleven members. The Mayor and each member of the City Council shall nominate one member of the Board. Each nominee shall be confirmed by a majority vote of the City Council. No member of the Board shall serve for more than three full terms. Members shall serve two-year terms coterminous with that of the City Council. Appointments made during an existing term shall be for the remainder of the unexpired term.

(b) Members of the Board shall have good moral character and shall be residents of the city. No person appointed to the Board may be: a salaried city official or employee; an elected public official; a candidate for elected public office; an officer of a political party; or a person required by ordinance to register as a lobbyist. A member of the Ethics Review Board may be removed from office for cause by a majority vote of the City Council after a public hearing at which the member is provided the opportunity to be heard. Grounds for removal are: a failure to satisfy or to continue to satisfy the qualifications set forth in this section; a substantial neglect of duty; gross misconduct in office; inability to discharge the powers or duties of office; a violation of any provision of the ethics ordinance; or a conviction of a felony or crime of moral turpitude.

(c) The City Council shall fill any vacancy on the Board by a person who will serve the remainder of the unexpired term. The nomination to fill a vacancy shall be made by the member of the City Council (or their successor) who had nominated the person whose successor is to be selected to fill the vacancy.

(d) The City Council shall appropriate sufficient funds to the Ethics Review Board to ensure it may exercise all it powers under this Charter, enable it to perform the duties assigned to it, and to provide annual training and education of city officials and employees, including candidates for public office, pertaining to the ethics ordinance.
(Ord. No. 99252, 5-27-04; Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 167. Jurisdiction and powers.

(a) *Jurisdiction.* The Ethics Review Board shall have jurisdiction to investigate and make findings and conclusions concerning:

(1) An alleged violation of an ethics code enacted from time to time by ordinance;

(2) An alleged violation of regulations governing lobbying enacted from time to time by ordinance;

(3) An alleged violation of local campaign finance regulations enacted from time to time by ordinance; and

(4) An alleged violation of Section 141 of this Charter; provided, however, that the Ethics Review Board has no jurisdiction to find or conclude that a city officer or employee has forfeited their office or position.

(b) *Termination of city official's or employee's duties.* The termination of a city official's or employee's duties does not affect the jurisdiction of the Ethics Review Board with respect to alleged violations occurring prior to the termination of official duties.

(c) *Powers.* The Ethics Review Board has the power:

(1) To establish, amend, and rescind rules and procedures governing its own internal organization and operations, consistent with ordinances;

(2) To meet as often as necessary to fulfill its responsibilities;

(3) Designate panels with the power to render decisions on complaints or issue advisory opinions on behalf of the Board;

(4) To request from the City Manager the assignment of staff necessary to carry out its duties;

(5) To review, index, maintain on file, and dispose of sworn complaints;

(6) To make notifications, extend deadlines, and conduct investigations, both on referral or complaint;

(7) To compel the production of sworn testimony, witnesses and evidence;

(8) To recommend cases for prosecution by appropriate authorities and agencies;

(9) To enforce its decisions by assessing civil fines and other sanctions authorized by ordinance;

(10) To request the City Attorney to provide an independent counsel to advise and represent the Board, when appropriate or necessary to avoid a conflict of interest;

(11) To provide assistance in the training and education of city officials and employees with respect to their ethical responsibilities;

(12) To prepare an annual report and to recommend to the City Council needed or desirable changes in ordinances under its jurisdiction;

(13) To exercise such other powers and duties as may be established by ordinance; and

(14) To accept or decline consideration of any alleged violation that has been resolved, including by, but not limited to the City Manager, or by a governmental agency or board with jurisdiction over the matter.

(Ord. No. 99252, 5-27-04; Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

Sec. 168. Appeal.

A decision of the Ethics Review Board is final unless the person aggrieved by the decision appeals to the State District Court in Bexar County no later than thirty days after the date the Board renders the decision. An appeal of a Board decision is initiated by filing a verified petition setting forth the specific points of error alleged. The District Court shall review an appeal under this section under the substantial evidence rule and shall base its decision on the court's review of the record of the hearing before the Board. The District Court will affirm the findings and decision of the Ethics Review Board and may not substitute its judgment for that of the board unless the Board's decision was arbitrary, capricious, unlawful, or not supported

by substantial evidence. If the decision of the Ethics Review Board is not supported by substantial evidence, the District Court may reverse or affirm the Board's decision in whole or in part, or may modify the Board's decision if substantial rights of the aggrieved person have been prejudiced. The procedures and remedies of the appeals will be governed by the rules and regulations promulgated by the ordinance. Costs of an appeal may not be assessed against the Board, individual board members, or the City of San Antonio.
(Ord. No. 99252, 5-27-04; Ord. No. 2024-08-08-0550, § 1, 8-8-24/Elec. 11-5-24)

ARTICLE XIV. BINDING ARBITRATION WITH THE INTERNATIONAL ASSOCIATION OF FIRE FIGHTERS LOCAL 624

Sec. 169. Impasse.

If the City and the International Association of Fire Fighters Local 624 have reached an impasse regarding the negotiation of a collective bargaining agreement as determined by the Association through written notice to the City:

(1) The Association, after written notice to the City containing specifications of the issues in dispute, may request arbitration and, in such event, the City and the Association shall submit all issues in dispute to arbitration within 45 days of the City's receipt of the Association's written arbitration request. The arbitration ruling shall be final, binding, and enforceable against both parties.

(2) Both parties shall select one arbitrator within 15 days of the Association's original request to arbitrate and provide written notification to the other party of the name and selected contact information for the selected arbitrator. The selected arbitrators shall attempt to select a third (neutral) arbitrator within 10 days of their selection in order to form a three-person Arbitration Board. If the arbitrators are unable to agree on a third arbitrator, either party may request the American Arbitration Association select the third arbitrator, according to its fair and regular procedures. The third arbitrator shall preside over the Board. Any decisions made by the Board at any stage of the arbitration process will be determined by simple majority vote of the selected arbitrators.

(3) Arbitration shall be conducted by the City and the Association pursuant to the procedures, time lines, duties, requirements and rights as set forth in the following provisions of Chapter 174 of the V.T.C.A., Local Government Code, §§ 174.155, 174.157—174.162, 174.164 and 174.253, or any successor to these statutory provisions.

(4) In making its decision, the Board may consider only the following: (a) compensation and conditions of employment that prevail in comparable public sector employment in other cities; (b) the rate of increase or decrease in the cost of living for the San Antonio area as determined by the Consumer Price Index; (c) any of the following conditions: (i) hazards of employment, (ii) physical qualifications, (iii) educational qualifications, (iv) mental qualifications, (v) job training, (vi) skills, and (vii) any other factors the Board determines to be relevant to the issues raised by the parties; and (d) revenues available to the City and the impact of any arbitration ruling on the taxpayers of the City.

(Ord. No. 2018-11-15-0900, § 3, 11-15-18)

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CHARTER COMPARATIVE TABLE

The original charter, §§ 1—165 is set out as adopted on January 1, 1952. The following tables show the disposition of amendments adopted subsequently.

Ordinance Number	Adoption Date	Election Date	Section		Disposition
44594	11-14-74		1 (Prop. 7)		5
			(Prop. 2)		8, 9
			(Prop. 4)(Prop.)		21
			(Prop. 5)(Prop.)		90
			(Prop. 6)		101
47586	1-17-77		1 (Prop. 1)		4, 13, 15, 26
			(Prop. 2)		99
73584	5- 6-91				21a
85965	5- 5-97		1 (Prop. 1)		3 ¶ 1
					3 ¶ 8, 9
					4, 5
					25
					34, 35
					49
					56(5)
				Dltd	79-111
				Added	79-107
				Dltd	112—116
				Added	112
					118 ¶ 2(1)
				Dltd	152
					154
				Dltd	156—158
					163
				Dltd	165
			(Prop. 2)		3 ¶ 2
				Added	123A
			(Prop. 3)		11
			(Prop. 4)		78
					140
			(Prop. 5)	Dltd	19—25
				Added	19, 20
94956	11-15-01				53
				Added	53a
					54
					69
					70, par. 1
				Added	Art. V.A.
99252	5-27-04		(Prop. 3)	Added	Art. XIII, §§ 166—168
2008-11-17-1010	11-17-08		4 (Prop. 1)		20
			5	Added	20 (note)
2012-05-17-0348	5-17-12		9		8
					32
2015-05-20-0423	5-20-15		1 (Prop. 1)	Added	3a
			(Prop. 2)		6
					9
			(Prop. 3)		8

Ordinance Number	Adoption Date	Election Date	Section		Disposition
			(Prop. 4)		17
					41
					47
					50
					60—62
					76
					78
					82, 83
					85, 86
					94
				Rpld	95A
					96A
					104—106
					145
					163
2018-11-15-0900	11-15-18		3		45
				Added	Art. XIV, § 169
2021-05-12-0327	5-12-21		3 (Prop. A)		98
2024-08-08-0550	8- 8-24	11-5-24	1		1—3
					4—7
					9
					11
					13
					15—18
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					26—30
					32—41
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					45—47
					49
					51—56
					58
					67, 68
					Art. V.A
					69—72
					75—78
					Art. VII-(title)
					80—85
					87
					89
					91
					93
					95
				Rpld	96
					98—107
					Art. VIII-(title)
					112
					117
					119
					121—125
					127—144
					147—151
					153
					155

Ordinance Number	Adoption Date	Election Date	Section		Disposition
				Rpld	159
					160—162
					164
				Added	165
					166—168

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PART II

CODE

Chapter 1

GENERAL PROVISIONS

Sec. 1-1. How Code designated and cited.

The ordinances embraced in this and the following chapters shall constitute and be designated "City Code of San Antonio, Texas" and may be so cited.
(Code 1959, § 1-1)

Charter reference—Authority to codify ordinances, § 17.

Sec. 1-2. Rules of construction.

In the construction of this Code, and of all ordinances, the following rules shall be observed, unless the context clearly indicates otherwise:

City. The words "the city" or "this city" shall be construed as if the words "of San Antonio" followed the word city.

City council. The words "city council" or "council" shall be construed to mean the city council of the City of San Antonio.

Computation of time. Except as otherwise provided in this Code, or in applicable statutes of the state, whenever a notice is required to be given or an act to be done a certain length of time before any proceedings shall be had, the day on which such notice is given or such act is done shall not be counted in computing the time, but the day on which such proceedings are to be had shall be counted, unless it is a Sunday or a legal holiday, in which event the period runs until the end of the next day which is neither a Sunday nor a legal holiday.

County. The words "the county" or "this county" shall mean and refer to Bexar County, Texas.

Gender. A word importing the masculine gender only shall extend and be applied to females and to firms, partnerships and corporations as well as to males.

Interpretation. In the interpretation and application of any provisions of this Code, it shall be the minimum requirements adopted for the promotion of the public health, safety, comfort, convenience and general welfare. Where any provision of the Code imposes greater restrictions upon the subject matter than the general provisions imposed by the Code, the provision imposing the greater restriction or regulation shall be deemed to be controlling.

Judge. The word "judge" or any like term, shall be construed to mean a judge (or acting judge) of the municipal court of the City of San Antonio.

Number. A word importing the singular number only may extend and be applied to several persons and things as well as to one (1) person and thing.

Oath. The word "oath" shall be construed to include an affirmation in all cases in which, by law, an affirmation may be substituted for an oath, and in such cases the words "swear" and "sworn" shall be equivalent to the words "affirm" and "affirmed."

Or, and. "Or" may be read "and," and "and" may be read "or" if the sense requires it.

Owner. The word "owner," applied to a building or land, shall include any part owner, joint owner, tenant in common, tenant in partnership, joint tenant, or tenant by the entirety, of the whole or of a part of such building or land.

Person. The word "person" shall extend and be applied to associations, clubs, societies, firms, partnerships and bodies politic and corporate as well as to individuals or groups of individuals.

Personal. property includes every species of property except real property.

Signing. The words "signature" or "subscription" shall include the mark of a person unable to write, witnessed by two (2) witnesses unless otherwise expressly provided.

State. The words "the state" or "this state" shall refer to the State of Texas.

Street. The word "street" shall be construed to embrace streets, avenues, boulevards, drives, roads, alleys, lanes, viaducts and all other public highways in the city.

Tense. Words used in the present or past tense include the future as well as the present or past.

Titles of officials, names of departments. Titles of officials or employees, such as "city manager" or "mayor," and names of departments, such as "police department" or "department of finance" shall be read as if the words "of San Antonio" followed them.

Writing. The words "write" and "written" shall include printing.
(Code 1959, § 1-2)

State law reference—Similar definitions, Vernon's Ann. Civ. St. arts. 10, 23, 5429b-2.

Sec. 1-3. Certain ordinances not affected by Code.

(a) Nothing in this Code or the ordinance adopting this Code shall affect any ordinance:

(1) Promising or guaranteeing the payment of money for the city, or authorizing the issuance of any bonds of the city or any evidence of the city's indebtedness, or any contract or obligations assumed by the city;

(2) Granting any right or franchise;

(3) Dedicating, naming, establishing, locating, relocating, opening, paving, widening, vacating, etc., any street or public way in the city;

(4) Making any appropriation;

(5) Levying or imposing taxes not contained in this Code;

(6) Establishing or prescribing grades in the city;

(7) Providing for local improvements and assessing taxes therefor;

(8) Dedicating or accepting any plat or subdivision in the city;

(9) Extending or contracting the boundaries of the city;

(10) Prescribing the number, classification, benefits or compensation of any city officers or employees, not inconsistent herewith;

(11) Dealing with zoning;

(12) Approving or prescribing rates for garbage collection service or for public utilities;

(13) Which is temporary although general in effect;

(14) Which is special although permanent in effect;

(15) The purpose of which has been accomplished;

(16) All ordinances in effect upon the effective date of this Code not inconsistent with any of the provisions of this Code which are omitted from this Code.

(b) All such ordinances enumerated in subsection (a) are hereby recognized as continuing in full force and effect to the same extent as if set out at length in this Code. Such ordinances are on file in the city secretary's office.

Sec. 1-4. Catchlines of sections.

The catchlines of the several sections of this Code printed in boldface type are intended as mere catchwords to indicate the contents of the section and shall not be deemed or taken to be titles of such sections, nor as any part of the section, nor, unless expressly so provided, shall they be so deemed when any of such sections, including the catchlines, are amended or reenacted.
(Code 1959, § 1-4)

Sec. 1-5. General penalty; continuing violations.

Except for chapters 5, 11, 12, 13, 15, 17, 19, article IV of chapter 26 and articles III and IV of

chapter 34 and the Unified Development Code [chapter 35], wherever in this Code or in any ordinance of the city an act is prohibited or is made or declared to be unlawful or an offense or a misdemeanor, or wherever in such Code or ordinance the doing of any act is required or the failure to do any act is declared to be unlawful, where no specific penalty is provided therefor, the violation of any such provision of this Code or any such ordinance shall be punished by a fine not exceeding five hundred dollars ($500.00); however, violations of traffic laws codified in chapter 19 of the City Code of San Antonio, Texas, shall be punished by a fine not exceeding five hundred dollars ($500.00). Unless otherwise specified therein, violations established by ordinance and made part of the City Code under chapters 5, 11, 12, 13, 15, 17, article IV of chapter 26 and articles III and IV of chapter 34 shall be punished by a fine not to exceed two thousand dollars ($2,000.00). Each day's violation of any ordinance or any provision of this City Code shall constitute a separate offense.
(Code 1959, § 1-5; Ord. No. 57452, § 2, 8-18-83; Ord. No. 66109, § 1, 11-19-87; Ord. No. 69740, §§ 1, 2, 6-29-89; Ord. No. 2009-09-17-0731I, § 2, 9-17-09; Ord. No. 2016-06-30-0518, § 2, 6-30-16)

Sec. 1-6. Nonpayment of fine.

In all cases where a fine is imposed by or in the municipal court, in default of immediate payment thereof, the defendant shall be imprisoned in jail, or required to work in the streets or other public works in the city, under the direction of the police, until the fine is paid, allowing fifteen dollars ($15.00) per day until the sum amounts to that of the fine; provided, the defendant may pay the pecuniary fine assessed against him at any time while he is serving at work or while he is serving his jail sentence, and in such instances he shall be entitled to a credit of fifteen dollars ($15.00) for each day or fraction of a day that he has served and shall only be required to pay the balance of the pecuniary fine assessed against him.
(Code 1950, § 1-6; Code 1959, § 1-6)

State law reference—Similar provisions, Vernon's Ann. C.C.P. art. 43.09.

Sec. 1-7. Excusing prisoner from labor upon certificate of director of public health.

Any prisoner wishing to be excused from labor under section 1-6 shall apply to the director of public health for an examination. The director of public health shall certify as to the fact and if he officially certifies that the prisoner is unable to work, then he shall be excused; provided, the certificate of the director of public health shall not release the prisoner from confinement for the time required to make the sum of the fine, unless the director of public health shall further certify that the imprisonment would cause great bodily injury to, or endanger the life of, the prisoner.
(Code 1950, § 1-8; Code 1959, § 1-8)

Sec. 1-8. Effect of repeal of ordinances.

The repeal of any prior ordinance of the city by any subsequent ordinance shall not operate to revive the provisions of any ordinance which may have been repealed by such prior ordinance, unless such revival shall be expressly provided for. Ordinances repealed remain in force for the trial and punishment of all past violations of them, and for the recovery of penalties and forfeitures already incurred, and for the preservation of all rights and remedies existing by them and so far as they apply, to any office, trust, proceeding, right, contract or event, already affected by them.
(Code 1959, § 1-10)

Sec. 1-9. Manner of repeal of ordinances.

No ordinance shall be repealed by any general terms, such as "coming in conflict with any subsequent ordinance," but in all cases the ordinance or section of an ordinance intended to be repealed shall be specifically mentioned and distinguished by the title and date of the same, when practicable, and the number of the section.
(Code 1950, § 1-11; Code 1959, § 1-11)

Sec. 1-10. Altering Code.

It shall be unlawful for any person in the city to change or amend by additions or deletions, any part or portion of this Code or to insert or delete pages, or portions thereof, or to alter or

tamper with such Code in any manner whatsoever except pursuant to ordinance or other official act of the city council, which will cause the law of the city to be misrepresented thereby. Any person violating this section shall be punished as provided in section 1-5.
(Code 1959, § 1-12)

Sec. 1-11. Amendments to Code; effect of new ordinances; amendatory language.

(a) All ordinances passed subsequent to this Code which amend, repeal or in any way affect this Code, may be numbered in accordance with the numbering system of this Code and printed for inclusion in this Code. In the case of repealed chapters, sections and subsections or any part thereof, by subsequent ordinances, such repealed portions may be excluded from the Code by omission from reprinted pages affected thereby. The subsequent ordinances as numbered and printed or omitted, in the case of repeal, shall be prima facie evidence of such subsequent ordinances until such time that this Code and subsequent ordinances numbered or omitted are re-adopted as a new code of ordinances by the city council.

(b) Amendments to any of the provisions of this Code may be made by amending such provisions by specific reference to the section number of this Code in the following language: "Section _____ (subsection _____ or paragraph _____) of the City Code of San Antonio, Texas, is hereby amended to read as follows: _____." The new provisions may then be set out in full as desired.

(c) If a new section not heretofore existing in the Code, is to be added, the following language may be used: "That the City Code of San Antonio, Texas, is hereby amended by adding a section, to be numbered _____, which such section reads as follows: _____." The new section may then be set out in full as desired.
(Code 1959, § 1-13)

Charter reference—Enactment of ordinances, § 14 et seq.

Sec. 1-12. Supplementation of Code—Generally.

(a) By contract or by city personnel, supplements to this Code shall be prepared and printed whenever authorized or directed by the city council. A supplement to the Code shall include all substantive permanent and general parts of ordinances adopted during the period covered by the supplement and all changes made thereby in the Code. The pages of a supplement shall be so numbered that they will fit properly into the Code and will, where necessary, replace pages which have become obsolete or partially obsolete, and the new pages shall be so prepared that, when they have been inserted, the Code will be current through the date of the adoption of the latest ordinance included in the supplement.

(b) In preparing a supplement to this Code, all portions of the Code which have been repealed shall be excluded from the Code by the omission thereof from reprinted pages.

(c) When preparing a supplement to this Code, the codifier (meaning the person, agency or organization authorized to prepare the supplement) may make formal, nonsubstantive changes in ordinances and parts of ordinances included in the supplement, insofar as it is necessary to do so to embody them into a unified code. For example, the codifier may:

(1) Organize the ordinance material into appropriate subdivisions;

(2) Provide appropriate catchlines, headings and titles for sections and other subdivisions of the Code printed in the supplement, and make changes in such catchlines, headings and titles;

(3) Assign appropriate numbers to sections and other subdivisions to be inserted in the Code and, where necessary to accommodate new material, change existing section or other subdivision numbers;

(4) Change the words "this ordinance" or words of the same meaning to "this chapter," "this article," "this division," etc., as the case may be, or to "sections _____ to _____" (inserting section numbers to indicate the sections of

the Code which embody the substantive sections of the ordinance incorporated into the Code); and

(5) Make other nonsubstantive changes necessary to preserve the original meaning of ordinance sections inserted into the Code; but in no case shall the codifier make any change in the meaning or effect of ordinance material included in the supplement or already embodied in the Code.

Sec. 1-13. Same—Exclusion of special or temporary ordinances.

Ordinances hereafter adopted which are not of a general or permanent nature shall be numbered consecutively, authenticated, published and recorded in the book of ordinances, but shall not be prepared for insertion in this Code, nor be deemed a part hereof.

Sec. 1-14. Violation; aiding or abetting.

It shall be unlawful for any person to cause, secure, aid or abet another person to commit an act prohibited by this Code or by any rule or regulations adopted hereunder. Further, it is unlawful for any person, having parental authority or control over a minor under the age of seventeen (17), to intentionally, knowingly, recklessly, or with criminal negligence fail to make reasonable effort to prevent the minor from committing an act prohibited by this Code or by any rule or regulation adopted hereunder.
(Code 1959, § 1-14; Ord. No. 81589, § 1, 2-2-95)

Sec. 1-15. Effective date of ordinances; no emergency clause necessary.

(a) All ordinances shall become effective upon the date stated in the ordinance; if no date is stated, then the ordinance shall become effective ten (10) days after its passage.

(b) No emergency clause shall be necessary to make an ordinance effective on the date it is passed and approved, if such ordinance is approved by the council by a vote of eight (8) members of the entire council; provided, any measure making or amending a grant, renewal or extension of a franchise or other special privilege shall not become effective until at least ten (10) day from its passage and approval.
(Ord. No. 17210, § 1, 2-21-52; Code 1959, § 1-15)

Sec. 1-16. Posting of bonds, type of security required.

(a) Every person required by ordinance or by this Code to post bond with the city clerk shall post such bond either in cash or by filing with the city clerk a bond executed by a surety company authorized to do business in the state.

(b) A certificate of deposit issued by a state or national bank located in Bexar County may be accepted in lieu of cash deposit or surety bond to guarantee performance by lessees and contractors under city leases and contracts, provided that such certificates shall not be accepted, where a different type of guarantee is required by statute, the city charter or by federal or state regulations. The certificate of deposit agreement between the city and the lessee or contractor, and accepted by the depository, shall be in form approved by the city attorney, substantially as shown in the form marked Exhibit A which is on file with the city clerk as a permanent record.
(Ord. No. 24227, § 1, 1-10-57; Code 1959, § 1-16; Ord. No. 37874, 9-11-69)

Sec. 1-17. Severability of parts of Code.

The sections, paragraphs, sentences, clauses and phrases of this Code are severable, and if any phrase, clause, sentence, paragraph or section of this Code shall be declared unconstitutional by the valid judgment or decree of any court of competent jurisdiction, such unconstitutionality shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections of this Code.
(Code 1959, § 1-3)

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Chapter 2

ADMINISTRATION*

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ARTICLE I. IN GENERAL

Sec. 2-1. Fees for services provided to other governmental agencies.

(a) There are hereby established fees for services provided to other governmental agencies by the city. Services for which fees shall be charged include, but are not limited to, crime scene processing, firearm and toolmark investigation, photography, expert testimony, polygraph examination, questioned document examination, and serology.

(b) Fees for services are established in order to recover at least the actual cost of labor, fringes, and materials, and may include indirect costs such as overhead. The fees shall be established from time to time by the city council. Upon recommendation of the chief of police, or the fire chief, the city manager may adjust the established fees and charges in order to ensure that the city's actual and indirect costs for providing the services are recovered through the fees, provided, that any adjustment of the fees shall not be effective until thirty (30) days after the new fees are filed with the official and public files of the city clerk.

(c) The chief of police, and the fire chief or their designated representatives shall be responsible for billing and collecting the fees authorized by this section, and shall turn the receipts over to the city treasurer. Revenue from these fees and charges shall be deposited in the general fund.
(Code 1959, § 2-3; Ord. No. 54866, §§ 1—3, 2-4-82; Ord. No. 57565, § 1, 9-15-83; Ord. No. 78725, 9-15-93)

Sec. 2-2. Registration of vital statistics, fees for records.

(a) *Generally.* The registrar of vital statistics shall keep the records of his office in the public health building of the city. Any person(s) submitting a birth, death or fetal death certificate for filing shall submit two (2) copies of each certificate, one of which must be an original.

(b) *Fee for records other than death certificates.* Except in the case of certified copies of death certificates, the registrar shall issue to a properly qualified applicant a certified copy of any records within registrar's keeping upon payment of a fee prescribed in accordance with applicable state law.

(c) *Fees for death certificates.* The registrar shall issue to a properly qualified applicant a certified copy of any certificate of death within the registrar's keeping upon payment of a fee prescribed in accordance with applicable state law. Additional copies of the same death certificate may be provided to the applicant upon payment of a fee of four dollars ($4.00) for each additional copy issued, providing that application for the additional copy is made on the same date and on the same application as the first certificate.

(d) *Fees for vital records search.* The registrar may, upon request from a properly qualified applicant, search his/her vital records in response to requests for specific information. A search fee of eleven dollars ($11.00) will be charged for each vital record searched. Records search will be provided at no cost to departments of the city for official business purposes. Record search will be provided at no cost to departments of the county for official business purposes so long as the county maintains joint public health department with the city.

(e) *Certified copies used in claims re military service.* The registrar shall issue free of cost to any veteran, his widow, orphan, or other dependents, a certified copy of any record not otherwise prohibited by law when such record is to be used in the settlement of a claim against the government growing out of a military service.

(f) *Disposition of fees.* All fees collected by the registrar shall be delivered daily to the tax collector with such statement as may be required by the director of finance.

(g) When state birth and death records are not available locally, the vital statistics registrar may electronically access certified copies of birth and death records from the vital statistics registrar for the state and provide said documents for sale to qualified applicants upon receipt of the fees

established in subsections (b) and (c) and any additional fees or surcharges assessed by the state for access to said documents.

(h) *Certified mail fees.* A shipping and handling fee for standard certified mail with receipt requested is established at twelve dollars ($12.00) to recover the costs to mail vital records via certified mail.

(Code 1950, §§ 10-12, 10-13; Ord. No. 20850, § 1, 12-30-54; Ord. No. 24031, § 1, 11-28-56; Ord. No. 26973, § 1, 10-2-58; Code 1959, § 9-1; Ord. No. 27244, § 1, 1-15-59; Ord. No. 29784, § 1, 8-23-61; Ord. No. 40370, § 1, 2-10-72; Ord. No. 48805, § 1, 12-9-77; Ord. No. 51049, § 1, 7-26-79; Ord. No. 54529, § 1, 11-12-81; Ord. No. 65548, §§ 1—3, 8-20-87; Ord. No. 67911, § 1, 9-15-88; Ord. No. 70031, § 1, 8-17-89; Ord. No. 74294, § 1, 9-12-91; Ord. No. 98187, §§ 2, 3, 9-18-03; Ord. No. 99735, §§ 1, 2, 9-16-04; Ord. No. 101405, §§ 1, 2, 9-15-05; Ord. No. 2015-09-10-0758, § 2(Att. B), 9-10-15)

Editor's note—Ord. No. 2015-09-10-0758, § 2(Att. B), adopted September 10, 2015, did not specify manner of inclusion; hence, inclusion as subsection (h) is at the discretion of the editor.

Sec. 2-3. Commercial filming of city-owned facilities.

(a) *Fee charged; exception.* Fees will not be assessed for noncommercial filming activities designed solely to promote San Antonio as a tourist destination. Fee assessments and waivers for commercial, movie, or television filming will be a joint decision between the city's film office and the director of the managing city department.

(b) *Film liaison agency.* The city film office is designated as the city's film liaison agency. The city manager or his/her designated representative is authorized to establish guidelines to regulate the filming activity mentioned in subsection (a).

(Ord. No. 59644, § 4, 10-25-84; Ord. No. 2016-10-13-0802, § 2, 10-13-16)

Sec. 2-4. Fee charges for the office of the city clerk.

The following fee charges are established for the office of the city clerk:

(1) Sale of publications: Actual cost of publication. Actual costs include materials, delivery, postage, packaging, maintenance, preparation, storage, and related expenses.

(2) Document certification fee: Five dollars ($5.00).

(3) Document search: As permitted by the cost rules contained in the Texas Administrative Code, Section 70.3.

(4) Tape duplication fee: As permitted by the cost rules contained in the Texas Administrative Code, Section 70.3.

(5) City Code supplement service: One hundred dollars ($100.00).

(6) Boards and commissions book: Five dollars ($5.00).

(7) Candidate packet fee: Thirty dollars ($30.00).

(8) Postal and shipping charges. The city may add actual postal (thirteen dollars ($13.00) in FY 2020) or shipping expenses which are necessary to transmit produced information to a requesting party.

(9) Passport Photo Fee: Seventeen dollars ($17.00).

(10) Burial transit permit fee for the transportation of deceased: Twenty-five dollars ($25.00).

(11) Notary fee for the public and city employees: Ten dollars ($10.00).

(12) Fee for subpoena requesting verification of birth: Twenty-two dollars ($22.00).

(13) Fee for subpoena requesting verification of death: Twenty dollars ($20.00).

(14) Fee for time spent searching the system for a record when a record is not found: Ten dollars ($10.00) per record search.

(Ord. No. 63229, § 1, 7-16-86; Ord. No. 67913, § 1, 9-15-88; Ord. No. 70250, § 3, 9-14-89; Ord. No. 78721, § 3, 9-15-93; Ord. No. 81695, § 2, 2-23-95; Ord. No. 84246, § 1, 6-13-96; Ord. No. 89240, § 1, 2-11-99; Ord. No. 2009-09-17-0731B, § 3, 9-17-09; Ord. No. 2012-09-13-0699, § 2(Att. A), 9-13-12; Ord. No. 2019-09-12-0694A, § 1(Att.

B), 9-12-19; Ord. No. 2024-09-19-0705, § 2(Att. B), 9-19-24; Ord. No. 2025-09-18-0629, § 2(Att. B), 9-18-25)

Editor's note—Ord. No. 2009-09-17-0731B, § 3, adopted September 17, 2009, did not specify manner of inclusion; hence, inclusion as subsection 2-4(8) is at the discretion of the editor.

Sec. 2-5. Returned check fee.

A fee of thirty dollars ($30.00) shall be charged the maker of any check payable to the city that is returned unpaid by the maker's bank.
(Ord. No. 65687, 9-10-87; Ord. No. 90492, § 1, 9-16-99; Ord. No. 99733, § 1, 9-16-04)

Editor's note—Ord. No. 65687, adopted Sept. 10, 1987, did not specifically amend the Code and has been included herein at the discretion of the editor as § 2-5.

Sec. 2-6. Fee for standard size maps of city.

There is hereby established a fee for the sale of standard size maps of the city prepared by the mapping section of the public works department of five dollars ($5.00) per each blue line copy.
(Ord. No. 65692, § 3, 9-10-87; Ord. No. 67915, § 2, 9-15-88)

Editor's note—Ord. No. 65692, §§ 3, 4, adopted Sept. 10, 1987 did not specifically amend the Code and at the discretion of the editor said provisions have been included herein as §§ 2-6 and 2-7.

Sec. 2-6.1. Fee for videotape duplication of programs available from the public information office.

The public information office (PIO) is hereby authorized to charge a thirty dollar ($30.00) fee and require a replacement tape from any person requesting a videotape duplication of programs available from PIO.
(Ord. No. 70256, 9-14-89)

Editor's note—Ord. No. 70256, adopted Sept. 14, 1989, did not specifically amend the Code and at the discretion of the editor said provisions have been included herein as § 2-6.1.

Sec. 2-7. Sale of surplus city property.

Any surplus property sold by the city shall be in accordance with provisions of Vernon's Annotated Civil Statutes, Article 5421(c)-12, which provides that no city owned property shall be sold for less than fair market value.
(Ord. No. 65692, § 4, 9-10-87)

Note—See the editor's note to § 2-6.

Sec. 2-8. Reserved.

Editor's note—Ord. No. 2010-06-17-0531, § 3, adopted June 17, 2010, repealed the former section 2-8, which pertained to discrimination prohibited in awarding subcontracts funded by the city, and derived from Ord. No. 69403, §§ 1—5, adopted May 4, 1989.

Sec. 2-9. Reserved.

Editor's note—Ord. No. 2013-09-05-0577, § 5, adopted September 5, 2013, repealed the former section 2-9 in its entirety, which pertained to policy governing appointment of persons demonstrating bias on basis of race, religion, national origin, sex, age or handicap, and derived from Ord. No. 80613, adopted August 11, 1994.

For similar provisions, the user's attention is directed to section 2-552.

Sec. 2-10. Municipal court building security account established; imposition of security fee; use of fee.

(a) A municipal court building security account is hereby established within the general fund pursuant to Article 102.017 of the Texas Code of Criminal Procedure to account for the receipt and expenditure of the revenues raised by way of the fees established in section 2-10(b) hereof.

(b) City of San Antonio municipal court judges shall impose of a three dollar ($3.00) security fee as a cost of court on defendants convicted, as that term is defined in Article 102.017 of the Texas Code of Criminal Procedure, in a trial for a misdemeanor offense in municipal court.

(c) The revenue from the imposition of said fee shall be deposited in the municipal court building security account, and the monies in said account shall be expended only as permitted by the Code of Criminal Procedure or other applicable state law.

(d) This section shall take effect October 1, 1995.
(Ord. No. 82816, §§ 1—4, 9-14-95)

Editor's note—Ord. No. 82815, §§ 1—4, adopted Sept. 14, 1995, has been codified herein at the discretion of the editor as § 2-10.

Sec. 2-11. Library department fees.

(a) The City of San Antonio Central Library space rentals and associated fees are hereby authorized shown in the following tables I and II:

Table I

Space Rental	*Commercial*			*Non-Profit*		
	0 ≥ 3 hours	3 > 5 hours	5 ≥ 8 hours	0 ≥ 3 hours	3 > 5 hours	5 ≥ 8 hours
Auditorium	$700.00	$900.00	$1,250.00	$250.00	$350.00	$700.00
Foyer	150.00	250.00	400.00	75.00	125.00	250.00
Auditorium/Foyer Combo	775.00	950.00	1,450.00	275.00	425.00	750.00
Gallery	200.00	450.00	750.00	125.00	250.00	500.00

Table II

Associated Fees	
Support fees, if required	
Security	$27.00/hr
Maintenance	$32.00/hr
Event Coordinator	$50.00/hour

(b) A service fee is hereby authorized for custodial, security or professional assistance which is required or requested by a user of the facilities of the library department. This fee will not be less than ten dollars ($10.00) per hour, per person or more than thirty dollars ($30.00) per hour, per person required or requested.

(c) The library department is hereby authorized to charge a caterer's fee for events which take place in the San Antonio Central Library as follows: Food/service charges: Fifteen (15) percent, liquor charges: Twenty-five (25) percent.

(d) Rental fees for branch library spaces are hereby authorized as shown below:

Rental Fees For Branch Library Spaces	*COMMERCIAL*			*NON-PROFIT*		
	0—2 hours	*2—4 hours*	*4+ hours*	*0—2 hours*	*2—4 hours*	*4+ hours*
Landa Gardens (Grounds and Pavilion)	$300.00	$625.00	$1,000.00	$150.00	$400.00	$800.00

(1) The rental fee for all other branch meeting rooms shall be twenty dollars ($20.00) per hour for all users.

(e) Reserved.

(f) Library materials which are returned damaged are hereby authorized to be assessed a fee up to one hundred (100) percent of the value of the item.

Item type	*Fee per item*
Item for which list price is known	List price per item
Adult paperback books	$10.00 per item
Juvenile or young adult paperback books	$6.00 per item
Magazines or other items	$4.00 per item
Cases for videos, DVDs, music CDs, or audio books	$1.00 per item
Material kits	$100.00 per kit

(g) A fine will be assessed for uncatalogued items which are either lost or withdrawn because of damage as follows:

In lieu of payments, replacement items (in good condition) of the same type will be accepted; and no processing fee will be charged for uncatalogued items.

(h) A fine will be assessed for catalogued items which are either lost or withdrawn because of damage as follows:

Item Type	*Fee per item*
Item for which list price is known	List price per item
Lost/damaged audio book cassette/CD	$8.00 per item
Missing liner notes-DVDs, videos, or music CDs	$3.00 per item
Lost and damaged mobile device	$240.00 per item
Lost and damaged mobile device case	$22.00 per item
Lost and damaged mobile device accessories	$21.00 per item

There will be a five dollar ($5.00) per item processing fee, refundable if the lost item is returned, with receipt, within thirty (30) days of payment. The replacement cost of the lost item will be refunded if the item is returned with receipt at any time.

(i) The director of the library department is hereby authorized to set fines and fees for new categories of items acquired during the year in anticipation of such fines and fees being adopted by the city council of the city with the adoption of the annual budget.

(j) The San Antonio Public Library is hereby authorized to charge an out of service area borrower's card fee as follows:

$200.00 per year

$60.00 per three-month period

(k) The following fees will be charged in any of the facilities of the library department for use of public services on the multifunction devices:

(1) Twenty cents ($0.20) per page for black and white copies and prints produced on 8.5" × 11" paper, on 8.5" × 14" paper, and on 8.5" × 17" paper.

(2) One dollar ($1.00) per page for color copies and prints produced on 8.5" × 11" paper, and on 8.5" × 14" paper.

(3) Two dollars ($2.00) per page for color copies and prints produced on 11" × 17" paper.

(l) Reserved.

(m) Database searches which are done by staff members of the library department will be charged on a cost-recovery basis, after subtraction of any subsidy.

(n) The director of the library department is hereby authorized to set fees for the sale of promotional and novelty items sold by the library department.

(Ord. No. 82815, §§ 1, 2, 9-14-95; Ord. No. 84795, § 1, 9-19-96; Ord. No. 96405, § 1, 9-19-02; Ord. No. 96681, § 5, 11-7-02; Ord. No. 99737, §§ 1—4, 9-16-04; Ord. No. 101401, § 1, 9-15-05; Ord. No. 2006-09-07-1005, §§ 1, 3, 9-7-06; Ord. No. 2006-09-07-1006, § 1, 9-7-06; Ord. No. 2007-09-13-0973H, § 1, 9-13-07; Ord. No. 2008-09-11-0777D, §§ 1—9, 9-11-08; Ord. No. 2009-09-17-0731H, §§ 1, 2, 9-17-09; Ord. No. 2010-09-16-0791, § 1(Att. B), 9-16-10; Ord. No. 2013-09-12-0631, § 2(Att. G), 9-12-13; Ord. No. 2014-09-18-0694, § 2(Att. F), 9-18-14; Ord. No. 2015-09-10-0758, § 2(Att. G), 9-10-15; Ord. No. 2016-09-15-0697, § 2(Att. D), 9-15-16; Ord. No. 2019-09-12-0694A, § 1(Att. E), 9-12-19; Ord. No. 2021-09-16-0682, § 2(Att. C), 9-16-21; Ord. No. 2022-09-15-0678, § 2(Att. E), 9-15-22; Ord. No. 2023-09-14-0627, § 2(Att. A), 9-14-23; Ord. No. 2024-09-19-0705, § 2(Att. A), 9-19-24)

Editor's note—Ordinance No. 84795, § 1, adopted September 19, 1996 rescinded § 2-6.2 in order to consolidate all library fees in § 2-11.

Sec. 2-12. Convention center rental rates and policies.

The city council hereby approves the revised rates and policies of the convention facilities department for the use of convention facilities and equipment as set out in attachment I, which is on file in the office of the city clerk.

(Ord. No. 84800, § 1, 9-19-96)

Sec. 2-13. Fees for international services.

The following fees are established for the use of the international services provided to clients by the city's international affairs department: A

fee of fifty dollars ($50.00) per person for participating in seminars conducted by the international affairs department addressing business opportunities in Mexico; a fee of one thousand dollars ($1,000.00) per participant for participating in the San Antonio Export Leaders Program; a fee of two hundred dollars ($200.00) per project for consulting services; a fee of twenty-five dollars ($25.00) per day for Cas San Antonio office rental; a fee of fifty dollars ($50.00) per trade show; a mailing service fee of one dollar and fifty cents ($1.50) per envelope; and a fee of twenty-five dollars ($25.00) each company list production. A fee of three hundred dollars ($300.00) for city residents and four hundred dollars ($400.00) for non-residents per participant for participating in the trade missions program; and a fee of fifty dollars ($50.00) for city residents and sixty dollars ($60.00) for non-residents for each potential client list.

The city council hereby establishes a fee of two thousand five hundred dollars ($2,500.00) per event for the international affairs department to host and secure speakers for international trade lectures. Fees collected shall be deposited into the general fund.

The city council also establishes a fee of sixty dollars ($60.00) for each tie or scarf sold as official city merchandise associated with the international affairs department. Fees collected shall be deposited into the community and visitor facilities fund.

(Ord. No. 86617, § 1, 9-11-97; Ord. No. 90495, § 1, 9-16-99; Ord. No. 99736, §§ 1, 2, 9-16-04; Ord. No. 2006-09-07-1004, § 3, 9-7-06; Ord. No. 2008-09-11-0777K, §§ 1, 2, 9-11-08)

Editor's note—Ord. No. 2008-09-11-0777K, §§ 1, 2, adopted September 11, 2008, did not specify manner of inclusion; hence, inclusion in § 2-13 is at the discretion of the editor.

Sec. 2-14. Designation of the City Hall Complex.

(a) The city-owned building currently known as the Main Plaza Building is hereby renamed the Municipal Plaza Building.

(b) All adjacent property owned by the city and consisting of the properties on which are located the Plaza de Armas Building, the 1889 City Hall, and the City Hall Annex are hereby designated the City Hall Complex. Attached to Ordinance No. 80002 and incorporated herein by reference is a plat of these properties showing the boundaries of the Complex.

(c) For legal purposes all such properties shall also be collectively considered the San Antonio City Hall and any requirement that any act or matter be done or located at City Hall shall be deemed to meet the criteria if done or located within this complex.

(Ord. No. 80002, §§ 1—3, 4-14-94)

Sec. 2-15. International Center rental fees, audio-visual equipment rental fees and catering fees.

(a) *International Center rental fees.* The fees for hourly rate to use the conference center and the conference room in the International Center are listed below and are hereby adopted:

Area	*Hourly Rate*	*Daily Minimum*	*Daily Maximum*
Conference Center	$125.00	$250.00	$1,000.00
Conference Room	20.00	40.00	100.00

(b) *Audio-visual equipment rental.* The fees for rental of equipment to be used in conjunction with the rental of conference rooms in the International Center are listed below and are hereby adopted.

Wireless microphone, per event .	$ 60.00
Lectern/podium, per event	45.00
Standard microphone, per event.	20.00
Projection screen, per event	150.00

(c) *Catering fees.* A catering fee of ten (10) percent of the total food/services/alcohol invoiced to the facility user for the International Center Restaurant shall be charged. Said catering fees shall be in addition to any other applicable permit and license fees established in the Code.

(d) *Waiver of catering fees.* The director of asset management, as designee of the city manager, may administratively approve a waiver of catering fees associated with catered events

held at the International Center conference or meeting room when utilized by city departments for internal, official city business.
(Ord. No. 99749, § 2, 9-16-04)

Editor's note—Ord. No. 99749, § 2, adopted September 16, 2004, amended § 2-15 in its entirety to read as herein set out. Formerly, § 2-15 pertained to International Center audio-visual equipment rental, and derived from Ord. No. 96413, § 1, adopted September 19, 2002.

Sec. 2-16. Grant application and state enterprise zone processing fee.

(a) A fee of one thousand five-hundred dollars ($1,500.00) shall be charged to agencies seeking grant application assistance from the economic development department.

(b) A fee of five hundred dollars ($500.00) per packet shall be charged for the processing of state enterprise zone nomination packets by the economic development department.

(c) "Agency" is defined as a political subdivision of the state to include defense base authorities established under Texas Local Government Code 379B as amended.
(Ord. No. 99732, §§ 1, 2, 9-16-04)

Editor's note—Ord. No. 99732, §§ 1, 2, adopted September 16, 2004, enacted provisions intended for use as § 2-15. Inasmuch as there are already provisions so designated, and at the discretion of the editor, said provisions have been redesignated as § 2-16.

Sec. 2-17. Economic development grant application fee.

(a) An application fee of five thousand dollars ($5,000.00) to be charged by the economic development department for all grants authorized under Chapter 380 of the Texas Local Government Code is approved. Such fee shall be waived in instances when an applicant is also applying for a tax phase-in agreement.

(b) The following application fees are authorized to be applied by the Center City Development Office:

(1)	SAWS Fee Waiver Application Fee	$100.00
(2)	City of San Antonio Fee Waiver Program application fee	100.00
(3)	Inner City Incentive Fund (ICIF) loan/forgivable loan application fee: 0.1 percent of ICIF loan amount	
(4)	Center City Housing Incentive Policy (CCHIP) application fee:	
	Ten-year tax reimbursement grant	1,500.00
	Fifteen-year tax reimbursement grant	2,250.00
(5)	Center City Housing Incentive Policy (CCHIP) assignment fee: two thousand five hundred dollars ($2,500.00) per assignment plus one hundred dollars ($100.00) per housing unit and twenty-five cents ($0.25) per square foot of leasable commercial space. The per-unit fee shall be zero dollars ($0.00) for any housing units qualifying as affordable per the terms of the CCHIP policy. Projects in which at least half of the housing units qualify as affordable shall be exempt from the per-unit fee.	

(Ord. No. 2006-09-07-0999, § 1, 9-7-06; Ord. No. 2014-09-18-0694, § 2(Att. B), 9-18-14; Ord. No. 2019-09-12-0694A, § 1(Att. A), 9-12-19)

Editor's note—Ord. No. 2006-09-07-0999, § 2, adopted September 7, 2006, did not specify manner of inclusion; hence, inclusion as § 2-17 is at the discretion of the editor.

Sec. 2-18. Fee for outside governmental entities or agencies to use city contracts.

(a) There is hereby approved a fee of one hundred dollars ($100.00) per contract to be charged by the purchasing and contract services department to each outside governmental entity or agency that desires to use city contracts.

(b) Funds received pursuant to this ordinance shall be deposited in such fund numbers as designated by the budget ordinance approved by the city council.

(c) The financial allocations in this section are subject to approval by the director of finance of the city. The director may, subject to concurrence by the city manager or the city manager's desig

nee, correct allocations to specific cost centers and fund numbers as necessary to carry out the purpose of this section.

(Ord. No. 2008-09-11-0777L, §§ 1—3, 9-11-08)

Editor's note—Ord. No. 2008-09-0777L, §§ 1—3, adopted September 11, 2008, did not specify manner of inclusion; hence, inclusion as section 2-18 is at the discretion of the editor.

Sec. 2-19. Execution of contracts for the sale of surplus or salvage city personal property.

(a) Department directors, or their designees, are hereby authorized to execute contracts for amounts not to exceed fifty thousand dollars ($50,000.00) for the sale of surplus or salvage city personal property, so long as the sale complies with the procedures for disposition of surplus or salvage personal property established by the finance department or any successor department in the event of an organizational restructuring, and the resulting contract is approved as to form by the city attorney, or the city attorney's designee.

This section does not apply to the sale, or disposition of proceeds of a sale, of personal property governed by another city ordinance, state or federal law to the extent these regulations conflict with this section.

(b) Definitions.

Salvage, as used in this section, is defined as personal property which is used and well worn, but may still have some residual value.

Surplus, as used in this section, is defined as personal property which is in the same general condition as when purchased, but which is not needed by the city.

(c) The director of a department making the sale shall coordinate with the office of management and budget and the finance department to establish SAP Master Data, Cost Center, Fund Center, Internal Order and WBS Element that are required to account for the receipt of sales proceeds. Proceeds from a surplus or salvage property sale shall be deposited in the fund and the revenue account established for that purpose for the department making the sale.

(Ord. No. 2013-01-31-0080, §§ 1—3, 1-31-13)

Editor's note—Ord. No. 2013-01-31-0080, §§ 1—3, adopted January 31, 2013, did not specify manner of inclusion; hence, inclusion as section 2-19 is at the discretion of the editor.

ARTICLE II. CITY COUNCIL

DIVISION 1. GENERALLY

Sec. 2-20. Supplemental documentation for application for place on ballot.

(a) All applicants for a place on the ballot for an election of the city council, when submitting their application to the city clerk, shall also submit an original of least two (2) of the following documents showing a current address:

(1) Valid voter registration certificate;

(2) Current utility bill;

(3) Current bank statement;

(4) Government check;

(5) Original paycheck;

(6) Other current government-issued document with name and address.

(b) The city clerk shall mark on a form created by the city, the type of supplemental documentation provided by each applicant when submitting their application for a place on the ballot.

(c) The city clerk shall make a photocopy of the original documents provided, and return the originals to the applicant. All copies shall be filed with the application of the candidate.

(d) Each applicant must sign the form acknowledging the type of supplemental documentation that was provided, and that the documentation is now a public record, and subject to the Texas Public Information Act. If requested, copies of the documentation shall be provided by the city clerk, with redactions to all information other than the applicant's name and address.

(e) The city clerk shall publish the form with the application on the city clerk's election webpage. (Ord. No. 2017-11-30-0920, § 1, 11-30-17)

Sec. 2-21. Code of conduct.

(a) *Authority.* The city council values a democratic process that relies on public participation, listening to differing opinions and engaging in respectful debate. The Charter of the City of San Antonio provides city council with the ability to determine its rules and order of business, City Charter, article II, city council, section 12, council rules. The code of conduct outlines city council's values related to interactions and communication amongst themselves to include social media or other media communications and provides for enforcement and remedies for violations of those rules.

(b) *Councilmembers.* The City of San Antonio City Council is committed to fostering a safe and productive work environment, which includes treating others with respect, and agrees to abide by the following:

(1) Councilmembers will treat each other, city staff, local government corporation employees, and the public with respect, and shall refrain from derogatory or harassing remarks or images. Councilmembers should avoid discussion of personalities and profane language, and refrain from personal attacks, verbal abuse or language that explicitly or implicitly threatens physical harm toward another person.

(2) Councilmembers will not be required to subject themselves or their staff to derogatory or harassing behavior from members of the community.

(3) Councilmembers will abide by the expectations of conduct outlined in city administrative directives:

4.67 Equal Employment Opportunity/ Anti-Harassment.

4.62 ADA Title I Reasonable Accommodations.

4.80 Violence in the Workplace.

4.15 Workplace Milk Expression for Breastfeeding Employees.

4.68 Domestic Violence, Sexual Violence & Stalking.

1.75 Fraud, Waste and Abuse Policy.

7.11 Physical Security.

1.34 Records Management for Physical Electronic Management.

4.44 Nepotism.

(4) Councilmembers must disclose to the city manager an intimate, romantic, or dating relationship with a LGC employee that began either before the councilmember began their term or the LGC employee began their employment. With the exception of relationships that began prior to employment, councilmembers are prohibited from engaging in an intimate, romantic, or dating relationship with a local government corporation employee. Separately, if a councilmember is engaged in an intimate, romantic, or dating relationship with a city staff member, the relationship must be disclosed to the city manager by the councilmember.

(5) City council meetings use Robert's Rules of Order. The mayor or presiding officer of the meeting is permitted to make modifications as needed in furtherance of an effective and efficient meeting.

(6) Councilmembers shall not engage in any communications with outside parties during an Executive Session and shall not disclose to any third party the information shared or discussed during an executive session, in accordance with state law.

(7) Written city communications should not include any blind copies to other parties.

(8) Given their role under the city charter and consistent with prevailing governance practices, city council members are strongly encouraged not to sign nondisclosure agreements (NDAs) in their official capacity. The city attorney shall provide yearly guidance to the council on

the legal risks associated with NDAs. To minimize risks to the city, city council members who sign NDAs that pertain to city business should inform the city manager, the city attorney, and city council of the confidentiality obligations.

(9) Retaliation for accountability under this code of conduct shall be prohibited.

(c) *Complaints.*

(1) If the scope or nature of a violation may reasonably warrant an investigation or result in council action then a written compliant should be filed. A complaint about a councilmember and filed by a fellow councilmember, local government corporation employee or city staff shall be submitted in writing to the city manager with a copy to the city attorney. The complaint shall be dated and include:

a. The name and title of the individual(s) filing the complaint (referred to as the complainant(s));

b. The name and title of the individual(s) alleged to have violated the code of conduct;

c. The nature of the alleged violation of the code of conduct or of other law, rule, or regulation; and

d. The specific facts or circumstances that constitute a violation of the code of conduct or city administrative directives listed in subsection (a)(3) above, including the submission of any documentation that relates to the alleged violation. The complaint shall not contain innuendo, speculative assertions, or conclusory statements.

(2) Complaints shall be reviewed by the city attorney within ten (10) business days of receipt and city council will be advised of the complaint. If questions of fact and potential legal liability are to be determined, the city attorney may engage an investigator to conduct fact-finding and if necessary legal analysis.

(3) Upon the conclusion of any investigation, the city council will be briefed on the matter to determine what if any action is appropriate if a violation has occurred. The city councilmembers involved will recuse themselves from these council discussions whether those discussions occur in executive session or open session. The involved councilmember(s) may address city council during an open or closed meeting. The city attorney will advise the complainant and the accused whether any violation has been determined to have occurred.

(d) *Enforcement.*

(1) A vote of a majority of councilmembers, whose conduct is not at issue in the above referenced complaint, is required to determine the discipline, which may be one (1) or more of the following:

a. A written letter of reprimand;

b. Official censure; or

c. Call for Resignation.

(2) The Charter of the City of San Antonio provides city council with the power to, by a vote of not less than seven (7) members, expel a member from a council meeting for disorderly conduct or the violation of its rules. City Charter, article II, city council, section 12, council rules. The mayor or presiding officer of the meeting shall exercise control over the member(s) who disrupt the meeting in the following ascending order of action:

a. Call the member to order, advising that member of the infraction;

b. Advise the member that the infraction must cease immediately, or the member will be subject to vote to order the member to leave the meeting; and

c. Call a vote to order the member to leave the meeting by a vote of at least seven (7) members of the council.

(Ord. No. 2024-02-01-0087, § 1, 2-1-24; Ord. No. 2025-09-18-0639, § 1, 9-18-25)

Secs. 2-22—2-25. Reserved.

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DIVISION 2. MEETINGS*

Sec. 2-26. Regular meetings.

The council shall hold its regular meetings in the council chamber in the Municipal Plaza Building within the City Hall Complex on Thursday of each week beginning at 9:00 a.m. The official posted agenda shall specify the subjects and the order of each meeting. If the council has not adjourned by 7:00 p.m., the presiding officer shall entertain a motion to continue the council meeting, postpone remaining items to the next council meeting date, or recess and reconvene the meeting at a specified time on the following day.
(Ord. No. 80172, § 1, 5-12-94; Ord. No. 101069, § 1, 6-23-05; Ord. No. 2006-03-30-0415, § 1, 3-30-06; Ord. No. 2011-01-20-0046, § 1, 1-20-11)

Sec. 2-27. Work sessions.

A work session shall be held on Wednesday of each week from 2:00 p.m. to 5:00 p.m. on the first floor of the Municipal Plaza Building unless canceled or called for a different date. The official posted agenda shall specify the subjects and the order of each meeting.
(Ord. No. 80172, § 1, 5-12-94; Ord. No. 101069, § 2, 6-23-05; Ord. No. 2011-01-20-0046, § 1, 1-20-11)

Editor's note—Ord. No. 2011-01-20-0046, § 1, adopted January 20, 2011, changed the title of section 2-27 from "Informal meetings" to "Work sessions." The historical notation has been preserved for reference purposes.

Sec. 2-28. Special meetings.

Special meetings of the council shall be called by the city clerk upon the written request of the mayor, the city manager or three (3) members of the council. In the event of a special called meeting, the city clerk shall notify each member of the council.
(Ord. No. 80172, § 1, 5-12-94)

*__Editor's note—__Ord. No. 80172, §§ 1, 2, amended Div. 2 in its entirety to read as herein set out. The former Div. 2, §§ 2-26, 2-27—35, pertained to similar subject matter and derived from Code 1950, § 2-15; Code 1959, §§ 1-17, 2-41; and Ord. No. 50064, §§ 1—3 adopted Nov. 9, 1978. At the discretion of the editor, the former § 2-26.1, pertaining to designation of the City Hall Complex, has been redesignated as § 2-14.

Sec. 2-29. Call to order.

The meetings of the council shall be called to order by the mayor, or in the absence of the mayor, by the mayor pro-tem; and in the absence of both the mayor and the mayor pro-tem, the meeting shall be called to order by the city clerk. In the absence of both the mayor and the mayor pro-tem, and with a quorum being present, the members present may elect one (1) of their members upon nominations for that purpose to serve as temporary presiding officer for the meeting.
(Ord. No. 80172, § 1, 5-12-94)

Sec. 2-30. Preservation of order.

The mayor shall preserve order and decorum, prevent personal references to council members or the impugning of other members' motives, and confine members' remarks to the question under discussion. No other member shall address the council from any other than his or her own seat nor until after being recognized by the chair.
(Ord. No. 80172, § 1, 5-12-94)

Sec. 2-31. Points of order.

The person presiding shall determine all points of order, subject to the right of any member to appeal to the entire council. If an appeal is taken, the question shall be "Shall the decision of the chair be sustained?"
(Ord. No. 80172, § 1, 5-12-94)

Sec. 2-32. Question to be stated.

The chair shall state all questions submitted for a vote and announce the result. A roll call vote shall be taken upon the request of any member.
(Ord. No. 80172, § 1, 5-12-94)

Sec. 2-33. Substitution for chair.

The chair may call on the mayor pro-tem, or if he or she is unavailable, then any other member to take his or her place in the chair, for a portion of the meeting, such substitution not to continue beyond adjournment.
(Ord. No. 80172, § 1, 5-12-94)

Sec. 2-34. Rules.

Robert's Rules of Order (latest revision) shall govern in all cases unless in conflict herewith. (Ord. No. 80172, § 1, 5-12-94)

Charter reference—Authority of council to fix time of meeting and determine rules of procedure, §§ 11, 12.

Sec. 2-35. Rules of courtesy for persons attending.

(a) *Addressing the city council.*

(1) *General rules.*

a. Those signed up to speak shall be called upon in the order that they have registered.

b. No personal attacks shall be allowed by any speaker.

c. The mayor or presiding officer may, at any time and at his/her discretion, increase or reduce the time a person has to address the city council. At any time during a presentation of the speaker, any councilmember may request the presiding officer to extend the time limit of the speaker.

d. A person signed up to speak has three (3) minutes to speak, with a nine-minute maximum time limit for any one (1) meeting.

e. Organizations have a total of nine (9) minutes to address the city council. Three (3) persons must register on behalf of an organization in order for the organization to be allotted nine (9) minutes to speak.

f. Persons registering on behalf of or standing with an organization may not be permitted an additional three (3) minutes to speak if the organization has already been allocated nine (9) minutes to address the city council.

g. Persons/organizations must sign in person by the specified deadline in order to be recognized to speak.

h. Persons registered to speak must be present in order to give their time to another registered speaker. No time may be given to a person not registered to speak.

i. In each instance in which a person or organization is provided an opportunity to address the city council, said person or organization may submit written testimony in support of or opposition to a particular agenda item or on a topic that could be discussed during "Citizens to be Heard" in lieu of presenting verbal testimony, provided that such written testimony is submitted by the deadlines and could otherwise be read into the record during the timeframes provided in this Code.

(2) *Regular meetings (Thursdays).* Any person wishing to address the council on one or more items on the agenda must sign the register provided by the city clerk no later than 9:00 a.m. of the day of the council meeting, indicating the item(s) the person wishes to address.

(3) *Work sessions (Wednesdays)—Citizens to be heard.* Following the work session, persons may address the city council on any topic related to city business. Any person wishing to do so must sign the register provided by the city clerk no later than 6:00 p.m. of the day of the work session, indicating the subject the person wishes to address. Online registration is available from 8:00 am to 6:00 pm on the day of the meeting.

(4) *[Ceremonial items.]* Ceremonial items will be presented at the time specified on the city council agenda.

(b) *Disturbances.* No person attending any council meeting shall delay, interrupt or disrupt the proceedings or refuse to obey the orders of the chair. Persons attending shall remain seated except the person at the floor microphone with permission of the chair.

(c) *General conduct.* Persons in attendance shall refrain from smoking or eating or drinking while in the council chamber, however, council members

and staff shall be allowed to drink beverages during council meetings. Persons in attendance shall not carry signs, placards or other items which block the view of those behind them.

(d) *Fire safety.* Citizens are welcome and invited to attend council meetings. However, the number admitted shall be limited to the fire safety capacity of the council chamber. Overflow crowds may follow the proceedings via television in adjacent facilities provided by the city.
(Ord. No. 80172, § 2, 5-12-94; Ord. No. 87687, § 1, 4-16-98; Ord. No. 93921, §§ 1, 2, 5-10-01; Ord. No. 97760, § 1, 6-12-03; Ord. No. 100280, § 1, 1-13-05; Ord. No. 101069, § 3, 6-23-05; Ord. No. 2008-08-21-0726, § 1, 8-21-08; Ord. No. 2011-01-20-0046, § 1, 1-20-11)

Sec. 2-36. Appointment of replacement council member in the event of a vacancy.

In the event of a city council member vacancy for any reason other than in the last place (mayor) which occurs more than sixty (60) days prior to the next regular city election date, city council shall follow these procedures. If the vacancy occurs sixty (60) or fewer days prior to the next regular election then the seat shall remain vacant until the next regular election.

(1) At the first scheduled city council meeting immediately following the occurrence of a council member's temporary absence due to military service or for vacancy for any reason, the city council shall accept the resignation or acknowledge the vacancy and initiate the process to fill the vacancy.

(2) The city clerk shall post notice on the city website no later than the end of the next business day and publish notice in the local newspaper as soon as possible inviting qualified residents of the district with the vacancy to submit applications, letters of interest, resumes and disclosure statements to the city clerk. The closing date for applicants to submit applications, letters of interest, resumes and disclosure statements will be ten (10) business days after publication.

(3) A council member who enters active duty in the armed forces of the United States as a result of being called to duty, drafted, or activated and for a period of longer than thirty (30) days may recommend to council the name of a person to temporarily fill the office. This person must also submit an application, a letter of interest, resume and disclosure statement to the city clerk within the ten (10) business days after publication as set out above and will be considered among the other applicants who submitted applications, letters of interest, resumes and disclosure statements.

(4) The city clerk shall review the applications, letters of interest, resumes and disclosure statements and confirm the eligibility of each applicant.

(5) At the next scheduled council "B" session, city council will review the applications, letters of interest, resumes and disclosure statements and select up to three (3) of the applicants to be interviewed at the next scheduled city council meeting.

(6) At the next scheduled council meeting and in open public meeting, city council will interview the selected applicants followed immediately by a vote to appoint the replacement ("the appointee"). In the event no candidate gets a majority vote, the city council will vote again on the two (2) candidates with the most votes.

(7) The appointee will be immediately sworn in to office and will serve until the expiration of the unexpired term, or in the event of a temporary vacancy due to military service, until the elected council member returns or the expiration of the elected council member's unexpired term, whichever is shorter.

(Ord. No. 2010-05-06-0375, § 1, 5-6-10)

Editor's note—Prior to the reenactment of section 2-36 by Ord. No. 2010-05-06-0375, Ord. No. 97760, § 1, adopted June 12, 2003, repealed § 2-36 in its entirety, which pertained to agenda requirements and derived from Ord. No. 80172, § 2, adopted May 12, 1994.

Secs. 2-37—2-40. Reserved.

ARTICLE III. CODE OF ETHICS*

DIVISION 1. DECLARATION OF POLICY

Sec. 2-41. Statement of purpose.

It is essential in a democratic system that the public has confidence in the integrity, independence, and impartiality of those who act on their behalf in government. Such confidence depends not only on the conduct of those who exercise official power, but on the availability of aid or redress to all persons on equal terms and on the accessibility and dissemination of information relating to the conduct of public affairs.

For the purpose of promoting confidence in the government of the city and enhancing the city's ability to function effectively, this code of ethics is adopted. The code of ethics establishes standards of conduct, disclosure requirements, and enforcement mechanisms relating to city officials and employees and others whose actions affect public faith in city government, such as former city officials and employees, candidates for public office, persons doing business with the city, lobbyists, and others who act on behalf of the city including temporary employees and unpaid volunteers. By prohibiting conduct incompatible with the city's best interests and minimizing the risk of any appearance of impropriety, this code of ethics furthers the legitimate interests of democracy.

Public service is a public trust. All city officials and employees are stewards of the public trust. They have a responsibility to the citizens of the city to enforce the city charter and the associated ordinances and codes. To ensure and enhance public confidence in city government, each city official and employee must not only adhere to the principles of ethical conduct set forth in this code and technical compliance therewith, but they must scrupulously avoid the appearance of impropriety at all times. This section shall not be used for the basis of an ethics complaint.

This ethics code, as well as the municipal campaign finance code, is cumulative of and supplemental to applicable state and federal laws and regulations. Compliance with the provisions of this code shall not excuse or relieve any person from any obligation imposed by state or federal law regarding ethics, financial reporting, lobbying activities, or any other issue addressed in the codes.

Even if a person subject to the codes is not prohibited from taking official action by either code, action may be prohibited by duly promulgated personnel rules, which may be more stringent.
(Ord. No. 2013-05-09-0317, § 2(Att. B), 5-9-13; Ord. No. 2018-06-21-0491, §1(Att. A), 6-21-18; Ord. No. 2024-05-02-0274, § 1(Att. A), 5-2-24)

Sec. 2-42. Definitions.

As used in this code of ethics, the following words and phrases have the meaning ascribed to them in this section, unless the context requires otherwise or more specific definitions set forth elsewhere in this code apply:

(a) *Acceptance.* A written or verbal indication that someone agrees; "Acceptance"

*__Editor's note—__**Ord. No. 2013-05-09-0317, § 2(Att. B), adopted May 9, 2013, amended article III in its entirety to read as herein set out. Formerly, article III, divisions 1—9, pertained to similar subject matter and derived from Ord. No. 2006-03-02-0268, § 1(Exh. A), adopted March 2, 2006; Ord. No. 2007-09-13-0973A, § 2, adopted September 13, 2007; Ord. No. 2009-06-25-0553, § 2(Att. B), adopted June 25, 2009, and Ord. No. 2009-09-17-0731B, § 1, adopted September 17, 2009.

Sections 3 and 5 of Ord. No. 2013-05-09-0317, adopted May 9, 2013, state the following: "Section 3. The amended provisions of the Ethics Code, in Section 2-84, and Section 2-94, providing for the creation of the Compliance Auditor and development of a comprehensive training program for City Officials and employees shall go into effect October 1, 2013, to correspond with the implementation of the City's FY 2014 budget.

Section 5. The remainder of this Ordinance and the amendments of the Ethics Code and Municipal Campaign Finance Code shall be effective ten days after passage. The changes in the City Code's ethics and campaign finance provisions reflected in this ordinance apply only to events taking place on or after the effective date of this ordinance. Any events occurring before the effective date of this ordinance are governed by the City Code provisions in effect on that date of that event. The prior versions of the Code are continued in effect for that purpose. The Office of the City Clerk is directed to publish notice of these amendments as required by law."

of an offer of subsequent employment or business opportunities includes legally binding contracts and all informal understandings that the parties expect to be carried out. An agreement, either by express act or by implication from conduct, to the terms of an offer so that a binding contract is formed.

(b) *Affiliated.* Entities are "affiliated" if one is the parent or subsidiary of the other or if they are subsidiaries of the same parent entities.

(c) *Affinity.* Relationship by "affinity" (by marriage) is defined in V.T.C.A., Government Code §§ 573.024 and 573.025.

(d) *Before the city.* Representation or appearance "before the city" means before the city council; before a board, commission, or other city entity; or before a city official or employee. Representation "before the city" does not include representation before a board where members of that board are not wholly appointed by the city council.

(e) *Benefit.* "Benefit" means anything reasonably regarded as pecuniary gain or pecuniary advantage, including a benefit to any other person in whose welfare the beneficiary has a direct and substantial interest.

(f) *Business days.* "Business days" means the days of the week, Monday through Friday, in which the administrative offices of the city are open for business.

(g) *Candidate.* "Candidate" means a person who knowingly and willingly takes affirmative action for the purpose of gaining nomination or election to public office or for the purpose of satisfying financial obligations incurred by the person in connection with the campaign for nomination or election. Examples of affirmative action include:

(1) The filing of a campaign treasurer appointment, except that the filing does not constitute candidacy or an announcement of candidacy for purposes of automatic resignation provisions of Article XVI, Section 65, or Article XI, Section 11, of the Texas Constitution;

(2) The filing of an application for a place on a ballot;

(3) The making of a public announcement of a definite intent to run for public office in a particular election, regardless of whether the specific office is mentioned in the announcement;

(4) Before a public announcement of intent, the making of a statement of definite intent to run for public office and the soliciting of support by letter or other mode of communication; and

(5) The soliciting or accepting of a campaign contribution or the making of a campaign expenditure.

(h) *City.* "City" means the City of San Antonio.

(i) *Code of Ethics.* "Code of Ethics," "Ethics Code," or "this code" means divisions 1 through 9 of this Article, its amendment(s) and/or enhanced definitions.

(j) *Complainant.* "Complainant" means an individual who has filed a sworn complaint with the city clerk as provided in section 2-83 (complaints).

(k) *Confidential government information.* "Confidential government information" includes all information held by the city that is not available to the public under the Texas Public Information Act and any information from a meeting closed to the public pursuant to the Texas Open Meetings Act, unless disclosure is permitted under the Open Meetings Act.

(l) *Consanguinity.* Relationship by "consanguinity" (by blood) is defined in V.T.C.A., Government Code §§ 573.022 and 573.023.

(m) *Discretionary contract.* "Discretionary contract" means any contract other than those which by law must be awarded on a

low or high qualified bid basis. Discretionary contracts do not include those contracts subject to V.T.C.A., Local Government Code § 252.022(a)(7) or those contracts not involving an exercise of judgment or choice.

(n) *Economic interest.* "Economic interest" includes, but is not limited to, legal or equitable property interests in land, chattels, and intangibles, and contractual rights having more than de minimis value. Service by a city official or employee as an officer, director, advisor, or otherwise active participant in an educational, religious, charitable, fraternal, or civic organization does not create for that city official or employee an economic interest in the property of the organization.

Ownership of an interest in a mutual or common investment fund that holds securities or other assets is not an economic interest in such securities or other assets unless the person in question participates in the management of the fund. Ownership of stock in a publicly traded corporation does not constitute ownership for purposes of this code if the employee or official owns less than ten (10) percent of the voting stock or shares of the entity and the value of the stock is less than fifteen thousand dollars ($15,000.00).

(o) *Employee.* Except as provided in section 2-52 (prohibited interests in contracts), subsection 2-58(c) (discretionary contracts), and division 7 (financial disclosure), the term "employee" or "city employee" is any person listed on the city payroll as an employee, whether part-time or full-time.

(p) *Entity.* "Entity" means a sole proprietorship, partnership, firm, corporation, holding company, joint-stock company, receivership, trust, unincorporated association, joint-venture, or any other entity recognized by law, including nonprofit entities.

(q) *Former city official or employee.* A "former city official" or "former city employee" is a person whose city duties have terminated.

(r) *Gift.* "Gift" means a voluntary transfer of property (including the payment of money) or the conferral of a benefit having pecuniary value (such as the rendition of services or the forbearance of collection on a debt), unless consideration of equal or greater value is received by the donor.

(s) *Indirect ownership.* A person "indirectly owns" an equity interest in an entity where the interest is held through a series of entities, some of which own interests in others.

(t) *Intentionally.* A person acts intentionally, or with intent, with respect to the nature of their conduct or to a result of their conduct when it is their conscious objective or desire to engage in the conduct or cause the result.

(u) *Knowingly.* A person acts knowingly, or with knowledge, with respect to the nature of their conduct or to circumstances surrounding their conduct when they are aware of the nature of their conduct or that the circumstances exist. A person acts knowingly, or with knowledge, with respect to a result of their conduct when they are aware that their conduct is reasonably certain to cause the result.

(v) *Official.* Except in division 5 (lobbyists), the term "official" or "city official" includes the following persons:

The mayor;

Members of the city council;

The city manager;

Deputy city manager;

Assistant city managers;

Assistants to the city manager;

City clerk;

Deputy city clerk;

Assistant city clerk;

Municipal court presiding judge;

Municipal court judges and magistrates;

Municipal court clerk;

Senior deputy court clerk;

Deputy court clerk;

Chief financial officer;

City attorney;

First assistant city attorney;

All department directors and assistant/deputy department directors;

Chief executive officer - Pre-K 4 SA;

Chief executive officer - Tricentennial;

Assistant to the director;

Internal auditor and all assistant internal auditors;

Information technology auditor;

Compliance auditor;

Assistant to city council;

Assistant to mayor;

Mayor chief of staff;

Fire chief;

Deputy fire chief;

District fire chief;

Police chief;

Deputy police chief;

Assistant police director;

Police captain;

Chief equity officer;

Grants administrator;

Senior executive secretary;

Executive secretary; and

Members of all boards, commissions (except the youth commission whose members are minors), committees, and other bodies created by the city council pursuant to federal or state law or city ordinance, including entities that may be advisory only in nature, who are appointed by the mayor, the city council, or who are designated in the by-laws or organization papers of the entity to serve on behalf of the city; and board members of any entity who are appointed by the mayor or city council to such board membership.

This list is updated annually by the human resources department. All updates are incorporated into this code without further action by the city council. The human resources staff shall provide the list annually to the city clerk. The city clerk shall promptly post it on the city's ethics webpage.

The term "official" has a different meaning in division 5 (lobbyists), which is defined in subsection 2-62(a) of that division. the term "officer" is defined in subsection 2-52(e)(2) (prohibited interests in contracts) and subsection 2-58(c)(2) (discretionary contracts) and is not synonymous with any use of the term "official" in this code.

(w) *Official action.* "Official action" includes:

(1) Any affirmative act (including the making of a recommendation) within the scope of, or in violation of, an official or employee's duties, and

(2) Any failure to act, if the official or employee is under a duty to act and knows that inaction is likely to affect substantially an economic interest of the official or employee or any person or entity listed in subsections 2-43(a)(2)—(9) (conflicts of interest).

(x) *Official Information.* "Official information" includes information gathered pursuant to the power or authority of city government.

(y) *Ownership.* Ownership of an interest in a mutual or common investment fund that holds securities or other assets does not constitute direct or indirect ownership of such securities or other assets unless the person in question participates in the management of the fund. Ownership of stock in a publicly traded corporation does not constitute ownership for purposes of this code if the employee or official

owns less than ten (10) percent of the voting stock or shares of the entity and the value of the stock is less than fifteen thousand dollars ($15,000.00).

(z) *Partner.* Someone who engages in an activity or undertaking with another; "partner" includes partners in general partnerships, limited partnerships, and joint ventures. One who shares or takes part with another especially in a venture with shared benefits and shared risks.

(aa) *Personally and substantially participated.* "Personally and substantially participated" means to have taken action as an official or employee through decision, approval, disapproval, recommendation, giving advice, investigation or similar action. The fact that the person had responsibility for a matter does not by itself establish that the person "personally and substantially participated" in the matter.

(bb) *Recklessly.* A person acts recklessly, or is reckless, with respect to circumstances surrounding their conduct or the result of their conduct when they are aware of but consciously disregards a substantial and unjustifiable risk that the circumstances exist or the result will occur. The risk must be of such a nature and degree that its disregard constitutes a gross deviation from the standard of care that an ordinary person would exercise under all the circumstances as viewed from the actor's standpoint.

(cc) *Representation.* "Representation" is a presentation of fact—either by words or by conduct—made to induce someone to act. "Representation" does not include appearance as a witness in litigation or other official proceedings.

(dd) *Respondent* means an individual identified in a sworn complaint to have allegedly violated the ethics code or the municipal campaign finance code of the city.

(ee) *Solicitation.* "Solicitation" of subsequent employment or business opportunities includes all forms of proposals and negotiations relating thereto.

(Ord. No. 2013-05-09-0317, § 2(Att. B), 5-9-13; Ord. No. 2018-06-21-0491, § 1(Att. A), 6-21-18; Ord. No. 2024-05-02-0274, § 1(Att. A), 5-2-24)

DIVISION 2. PRESENT CITY OFFICIALS AND EMPLOYEES

Sec. 2-43. Conflicts of interest.

(a) *Definitions.* For purposes of this rule:

(1) An *action* is likely to affect an economic interest if it is likely to have an effect on that interest that is distinguishable from its effect on members of the public in general or a substantial segment thereof; and

(2) The term *client* includes any business, financial or professional relationship to which a duty of care, confidence, trust or privilege applies.

(b) *General rule.* To avoid the appearance and risk of impropriety, a city official or employee shall not take any official action that they know is likely to affect the economic interests of:

(1) The official or employee;

(2) Their parent, child, spouse, or other family member within the second degree of consanguinity or affinity;

(3) Their outside client;

(4) A member of their household;

(5) The outside employer of the official or employee or of their parent, child (unless the child is a minor), spouse, or member of the household (unless member of household is a minor);

(6) An entity in which the official or employee knows that any of the persons listed in subsections (b)(1) or (b)(2) holds an economic interest as that term is defined in section 2-42;

(7) An entity which the official or employee knows is an affiliated or partner of an

entity in which any of the persons listed in subsections (b)(1) or (b)(2) holds an economic interest as defined in section 2-42;

(8) An entity for which the city official or employee serves as an officer or director or in any other policy making position unless they meet all of the following conditions:

a. The person, as a duty of office or job assignment, serves on such board as a representative of the city;

b. The person receives no remuneration, either directly or indirectly, for their service on such board; and

c. The primary nature of the business entity is either charitable, nonprofit, or governmental; or

(9) A person or entity with whom, within the past twelve (12) months:

a. The official or employee, or their spouse, directly or indirectly has:

1. Solicited an offer of employment for which the application is still pending;

2. Received an offer of employment which has not been rejected; or

3. Accepted an offer of employment; or

b. The official or employee, or their spouse, directly or indirectly engaged in negotiations pertaining to business opportunities, where such negotiations are pending or not terminated.

(c) *Benefits to previous employers.* A city official or employee may not, within twelve (12) months of beginning their employment or service with the city, participate in the making or awarding of a contract or any other matter benefiting a person or business entity that formerly employed the city official or employee during the previous twelve (12) months.

(d) *Recusal and disclosure.* A city official or employee whose conduct would otherwise violate subsection (b) or (c) must recuse themselves. From the time that the conflict is, or should have been recognized, they shall:

(1) Immediately refrain from further participation in the matter, including discussions with any persons likely to consider the matter; and

(2) Promptly file with the city clerk the appropriate form for disclosing the nature and extent of the prohibited conduct.

In addition:

(3) A supervised employee shall promptly bring the conflict to the attention of their supervisor who will then, if necessary, reassign responsibility for handling the matter to another person; and

(4) A member of a board shall promptly disclose the conflict to other members of the board and shall not be present during the board's discussion of, or voting on, the matter.

(Ord. No. 2013-05-09-0317, § 2(Att. B), 5-9-13; Ord. No. 2018-06-21-0491, § 1(Att. A), 6-21-18; Ord. No. 2024-05-02-0274, § 1(Att. A), 5-2-24)

Sec. 2-44. Unfair advancement of private interests.

(a) *General rule.* A city official or employee may not use their official position to unfairly advance or impede private interests, or to grant or secure, or attempt to grant or secure, for any person (including themselves) any form of special consideration, treatment, exemption, or advantage beyond that which is lawfully available to other persons. A city official who represents to a person that they may provide an advantage to that person based on the official's position on a board or commission violates this rule.

(b) *Special rules.* The following special rules apply in addition to the general rule:

(1) *Acquisition of interest in impending matters.* A city official or employee shall not acquire an interest in, or be affected by, any contract, transaction, zoning decision, or other matter, if the official or

employee knows, or has reason to know, that the interest will be directly or indirectly affected by impending official action by the city.

(2) *Reciprocal favors.* A city official or employee may not enter into an agreement or understanding with any other person that official action by the official or employee will be rewarded or reciprocated by that person, directly or indirectly.

(3) *Appointment of relatives.* A city official or employee shall not appoint or employ or vote to appoint or employ any relative within the third degree of consanguinity or affinity or any member of their household to any office or position of employment within the city.

(4) *Supervision of relatives.* No official or employee shall be permitted to be in the line of supervision of a relative within the third degree of consanguinity or affinity or any member of their household. Department heads are responsible for enforcing this policy. If an employee, by reason of marriage, promotion, reorganization, or otherwise, is placed into the line of supervision of a relative, one of the employees will be reassigned or other appropriate arrangements will be made for supervision.

(c) *Recusal and disclosure.* A city official or employee whose conduct would otherwise violate this section shall adhere to the recusal and disclosure provisions provided in subsection 2-43(d) (conflicts of interest).

(Ord. No. 2013-05-09-0317, § 2(Att. B), 5-9-13; Ord. No. 2018-06-21-0491, § 1(Att. A), 6-21-18; Ord. No. 2024-05-02-0274, § 1(Att. A), 5-2-24)

Sec. 2-45. Gifts.

(a) *Definitions.*

(1) For purposes of this rule, a *person* is an "outside business associate" if both that person and the city official or employee own, with respect to the same entity:

a. Ten (10) percent or more of the voting stock or shares of the entity, or

b. Ten (10) percent or more of the fair market value of the entity.

(2) For purposes of this rule, a *"sponsor"* of an event is the person or persons primarily responsible for organizing the event or sponsoring a table or tables. A person who simply contributes money or buys tickets to an event is not considered a sponsor.

(3) A *"source"* is the individual or entity that funds an expenditure or series of expenditures. Expenditures made by multiple agents of the same source are deemed to be expenditures from a single source.

(4) An item of *"nominal value"* is an item with a fair market value of fifty dollars ($50.00) or less.

(b) *General rule.*

(1) A city official or employee shall not solicit, accept, or agree to accept any gift or benefit for themselves or their business:

a. That reasonably tends to influence or reward official conduct; or

b. That the official or employee knows or should know is being offered with the intent to influence or reward official conduct.

A city official or employee may accept a public award or reward for meritorious service of professional achievement, provided that the award or reward is reasonable in light of the occasion and it is not prohibited under V.T.C.A., Penal Code § 36.08.

(2) A city official or employee shall not solicit, accept, or agree to accept any gift or benefit, from:

a. Any individual or entity doing or seeking to do business with the city; or

b. Any registered lobbyist or public relations firm; or

c. Any person or entity seeking action or advocating on zoning or platting matters before a city body, save and except for:

1. Items received that are of nominal value; or

2. Meals or entertainment in an individual expense of fifty dollars ($50.00) or less at any occurrence, and no more than a cumulative value of five hundred dollars ($500.00) in a single calendar year from a single source.

Doing business with the city includes, but is not limited to, individuals and entities that are parties to a discretionary contract, individuals and entities that are subcontractors to a discretionary contract, and partners and/or parents and/or subsidiary business entities of any individuals and entities that are parties to a discretionary contract and individuals or entities that seek or have low-bid contracts with the city.

(3) As required under V.T.C.A., Penal Code § 36.07, a city official or employee shall not solicit, accept, or agree to accept an honorarium in consideration for services that they would not have been requested to provide but for their official position or duties.

(c) *Special applications.* Subsection (b)(2) does not include:

(1) A gift to a city official or employee relating to a special occasion, such as a wedding, anniversary, graduation, birth, illness, death, or holiday, provided that the value of the gift is fairly commensurate with the occasion and the relationship between the donor and recipient;

(2) Advancement for or reimbursement of reasonable expenses for travel in connection with official duties authorized in accordance with city policies; such payments must be disclosed in a travel report as required in section 2-76; payment for or reimbursement of expenses for travel in excess of authorized rates under city policy will be treated as a personal gift to the official or employee for any applicable reporting requirements under section 2-73, 2-74 or 2-78;

(3) A public award or reward for meritorious service or professional achievement, provided that the award or reward is reasonable in light of the occasion and it is not prohibited under V.T.C.A., Penal Code § 36.08;

(4) A loan from a lending institution made in its regular course of business on the same terms generally available to the public;

(5) A scholarship or fellowship awarded on the same terms and based on the same criteria that are applied to other applicants;

(6) Any solicitation for civic or charitable causes;

(7) Admission to an event in which the city official or employee is participating in connection with their spouse's position;

(8) Ceremonial and protocol gifts presented to city officials from a foreign government or international or multinational organization and accepted for the city;

(9) Admission to a widely attended event, such as a convention, conference, symposium, forum, panel discussion, dinner, viewing, reception or similar event, offered by the sponsor of the event, and unsolicited by the city official or employee, if attending or participating in an official capacity, including:

a. The official or employee participates in the event as a speaker or panel participant by presenting information related to matters before the city;

b. The official or employee performs a ceremonial function appropriate to that individual's position with the city; or

c. Attendance at the event is appropriate to the performance of the official duties or representative function of the official or employee;

(10) Admission to a charity event provided by the sponsor of the event, where the offer is unsolicited by the city official or employee;

(11) Admission to training or education program or other program, including meals and refreshments furnished to all attendees, if such training is related to the official or employee's official duties and the training is in the interest of the city.

(d) *Campaign contribution exception.* The general rule stated in subsection (b) does not apply to a campaign contribution made pursuant to the Texas Election Code.

(e) *Gifts to closely related persons.* A city official or employee shall take reasonable steps to persuade:

(1) A parent, spouse, child, or other relative within the second degree of consanguinity or affinity; or

(2) An outside business associate not to solicit, accept, or agree to accept any gift or benefit; or

(3) That reasonably tends to influence or reward the city official's or employee's official conduct; or

(4) That the official or employee knows or should know is being offered with the intent to influence or reward the city official's or employee's discharge of official duties.

If a city official or employee required to file a financial disclosure report under division 7 (financial disclosure) knows that a gift or benefit meeting the requirements of subsection (e)(3) or (e)(4) of this rule has been accepted and retained by a person identified in subsection (e)(1) or (e)(2) of this rule, the official or employee shall promptly file a report with the city clerk disclosing the donor, the value of the gift or benefit, the recipient, and the recipient's relationship to the official or employee filing the report.
(Ord. No. 2013-05-09-0317, § 2(Att. B), 5-9-13; Ord. No. 2018-06-21-0491, § 1(Att. A), 6-21-18; Ord. No. 2024-05-02-0274, § 1(Att. A), 5-2-24)

Sec. 2-46. Confidential information.

(a) *Improper access.* A city official or employee shall not use their position to obtain official information about any person or entity for any purpose other than the performance of official duties.

(b) *Improper disclosure or use*. A city official or employee shall not intentionally, knowingly, or recklessly disclose any confidential information gained by reason of that official's or employee's position concerning the property, operations, policies or affairs of the city. This rule does not prohibit:

(1) Any disclosure that is no longer confidential by law; or

(2) The confidential reporting of illegal or unethical conduct to authorities designated by law.

(Ord. No. 2013-05-09-0317, § 2(Att. B), 5-9-13; Ord. No. 2018-06-21-0491, § 1(Att. A), 6-21-18; Ord. No. 2024-05-02-0274, § 1(Att. A), 5-2-24)

Sec. 2-47. Representation of private interests.

(a) *Representation of private interests before the city by a member of the board.* A city official or employee who is a member of a board or other city body shall not represent any person, group, or entity:

(1) Before that board or body;

(2) Before city staff having responsibility for making recommendations to, or taking any action on behalf of, that board or body, unless the board or body is only advisory in nature; or

(3) Before a board or other city body which has appellate jurisdiction over the board

or body of which the city official or employee is a member, if any issue relates to the official's or employee's official duties.

(b) *Representation of private interests before the city by city officials and employees.*

(1) *General rule.* A city official or employee shall not represent for compensation any person, group, or entity, other than themselves, or their spouse or minor children, before the city. For purposes of this subsection, the term compensation means money or any other thing of value that is received, or is to be received, in return for or in connection with such representation.

(2) *Exception for board members.* The rule stated in subsection (b)(1) does not apply to a person who is classified as a city official only because they are an appointed member of a board or other city body.

(c) *Prestige of office and improper influence.* In connection with the representation of private interests before the city, a city official or employee shall not:

(1) Assert the prestige of the official's or employee's city position for the purpose of advancing private interests; or

(2) State or imply that they are able to influence city action on any basis other than the merits.

(d) *Representation in litigation adverse to the city.*

(1) *Officials and employees (other than board members).* A city official or employee, other than a person who is classified as an official only because they are an appointed member of a board or other city body, shall not represent any person, group, or entity, other than themselves, or their spouse or minor children, in any litigation to which the city is a party, if the interests of that person, group, or entity are adverse to the interests of the city.

(2) *Board members.* A person who is classified as a city official only because they are an appointed member of a board or other city body shall not represent any person, group, or entity, other than themselves, or their spouse or minor children, in any litigation to which the city is a party, if the interests of that person, group, or entity are adverse to interests of the city and the matter is substantially related to the official's duties to the city.

(Ord. No. 2013-05-09-0317, § 2(Att. B), 5-9-13; Ord. No. 2024-05-02-0274, § 1(Att. A), 5-2-24)

Sec. 2-48. Conflicting outside employment.

(a) *General rule.* A city official or employee shall not solicit, accept, or engage in concurrent outside employment which could reasonably be expected to impair independence of judgment in, or faithful performance of, official duties.

(b) *Special application.* The following special rule applies in addition to the general rule: A city official or employee shall not provide services to an outside employer related to the official's or employee's city duties.

(c) *Other rules.* The general rule stated above applies in addition to all other rules relating to outside employment of city officials and employees, including requirements for obtaining prior approval of outside employment as applicable.

(Ord. No. 2013-05-09-0317, § 2(Att. B), 5-9-13)

Sec. 2-49. Public property and resources.

A city official or employee shall not use, request, or permit the use of city facilities, personnel, equipment, or supplies or time while on city duty for private purposes (including political purposes), except:

(1) Pursuant to duly adopted city policies, or

(2) To the extent and according to the terms that those resources are lawfully available to the public.

(Ord. No. 2013-05-09-0317, § 2(Att. B), 5-9-13)

Sec. 2-50. Political activity.

Limitations on the political activities of city officials and employees are imposed by state law, the city charter, and city personnel rules and are

incorporated into this provision by reference. In addition, the following ethical restrictions apply:

(1) *Influencing subordinates.* A city official or employee shall not, directly or indirectly, induce or attempt to induce any city subordinate of the official or employee:

a. To participate in an election campaign, contribute to a candidate or political committee, or engage in any other political activity relating to a particular party, candidate, or issue, or

b. To refrain from engaging in any lawful political activity.

A general statement merely encouraging another person to vote does not violate this rule.

(2) *Paid campaigning.* A city official or employee shall not accept any thing of value, directly or indirectly, for political activity relating to an item pending on the ballot, if they participated in, or provided advice relating to, the exercise of discretionary authority by a city body that contributed to the development of the ballot item. Any thing of value does not include a meal or other item of nominal value the city official or employee receives in return for providing information on an item pending on the ballot.

(3) *Official vehicles.* A city official or employee shall not display or fail to remove campaign materials on any city vehicle under their control.

Limitations on the use of public property and resources for political purposes are imposed by section 2-49 (public property and resources).
(Ord. No. 2013-05-09-0317, § 2(Att. B), 5-9-13; Ord. No. 2024-05-02-0274, § 1(Att. A), 5-2-24)

Sec. 2-51. Actions of others.

(a) *Violations by other persons.* A city official or employee shall not intentionally or knowingly assist or induce, or attempt to assist or induce, any person to violate any provision in this code of ethics.

(b) *Using others to engage in forbidden conduct.* A city official or employee shall not violate the provisions of this code of ethics through the acts of another.
(Ord. No. 2013-05-09-0317, § 2(Att. B), 5-9-13)

Sec. 2-52. Prohibited interests in contracts.

(a) *Definitions.* For purposes of enforcing section 141 of the city charter under the provisions of this section:

(1) A city *"employee"* is any employee of the city who is required to file a financial disclosure statement pursuant to subsection 2-73(a) (financial disclosure report).

(2) A city *"officer"* is:

a. The mayor or any council member;

b. A municipal court judge or magistrate; or

c. A member of any board or commission which is more than advisory in nature. The term does not include members of the board of another governmental entity even if some or all of these members are appointed by the city.

(b) *Charter provision.* The city charter in section 141 states, "no officer or employee of the city shall have a financial interest, direct or indirect, in any contract with the city, or shall be financially interested, directly or indirectly, in the sale to the city of any land, materials, supplies, or service, except on behalf of the city as an officer or employee. Any willful violation of this section shall constitute malfeasance in office, and any officer or employee guilty thereof shall thereby forfeit his office or position. Any violation of this section, with the knowledge, expressed or implied, of the person or corporation contracting with the council shall render the contract involved voidable by the city manager or the council."

(c) *Financial interest.* An officer or employee is presumed to have a prohibited "financial interest" in a contract with the city, or in the sale

to the city of land, materials, supplies, or service, if any of the following individuals or entities is a party to the contract or sale:

(1) The officer or employee;

(2) Their spouse, sibling, parent, child or other family member within the first degree of consanguinity or affinity;

(3) An entity in which the officer or employee, or their parent, child or spouse, directly or indirectly owns:

a. Ten (10) percent or more of the voting stock or shares of the entity, or

b. Ten (10) percent or more of the fair market value of the entity; or

(4) An entity of which any individual or entity listed in subsection (1), (2) or (3) is:

a. A subcontractor on a city contract;

b. A partner; or

c. A parent or subsidiary entity.

(d) The mayor and members of the city council may not have a "financial interest" in a contract with, or in the sale of any land, materials, supplies, or service to any entity to which they, either as individual city officers or as the city council, selects or nominates members of its governing body. This prohibition applies only to the individual member of the city council responsible for making the selection or nomination, if the selection or nomination does not require approval of the city council; or to each member of the city council, if the selection or nomination is made by an action of the city council.

(e) If an officer or employee has or may potentially have a presumed prohibited financial interest in a contract with the city, or in the sale to the city of land, materials, supplies or service under subsection (c), the officer or employee may apply to the ethics review board for a determination and decision on whether the officer or employee has an actual direct or indirect financial interest in that contract or transaction.

The ethics review board will make this assessment using a standard of "clear and convincing" evidence at a hearing. A request for such a determination cannot be made confidentially. The hearing must be posted seventy-two (72) hours in advance, clearly stating the officer or employee with the presumed prohibited financial interest, the contract or transaction at issue, and the individual or entity that is the party to the contract or transaction at issue.

(f) Any contract or transaction already in place at the time the individual becomes an officer or employee subject to the prohibitions in section 141 of the city charter may remain in place until the contract expires or the transaction is completed without creating a prohibited financial interest for the officer or employee.
(Ord. No. 2013-05-09-0317, § 2(Att. B), 5-9-13; Ord. No. 2018-06-21-0491, § 1(Att. A), 6-21-18; Ord. No. 2024-05-02-0274, § 1(Att. A), 5-2-24)

Sec. 2-53. Employees of the City of San Antonio Council Aides Corporation.

(a) A member of the city council who, in the course of official duties, has direct supervisory authority over employees of the City of San Antonio Council Aides Corporation shall make reasonable efforts to ensure that the conduct of such employees is compatible with the obligations imposed on city officials and city employees by this code of ethics.

(b) Employees of the City of San Antonio Council Aides Corporation shall comply with all obligations imposed by this code of ethics on city employees, except for restrictions on political activity imposed on city employees by the city charter or the city's personnel rules under section 2-50 of this code. Employees of the City of San Antonio Council Aides Corporation, though, may not engage in political activity using city resources or during duty hours.

(c) All contracts for employees of the City of San Antonio Council Aides Corporation shall contain a provision requiring compliance with all requirements imposed by this code on city employees.
(Ord. No. 2013-05-09-0317, § 2(Att. B), 5-9-13; Ord. No. 2024-05-02-0274, § 1(Att. A), 5-2-24)

Sec. 2-54. Persons required to report; time to report; place to report.

(a) A city official, employee, or person subject to this ethics code who has knowledge or a reasonable belief of a violation including a self-violation, of any of the provisions of this ethics code shall report this violation as provided below within a reasonable time after the person has knowledge of a violation. A city official or employee shall not delegate to, or rely on, another person to make the report. Any city official, employee, or person subject to this ethics code who has knowledge or a reasonable belief that a violation including a self-violation, of the ethics code has been committed and intentionally fails to report such violation is subject to the penalties herein.

(b) A report made under this section shall be made to:

(1) The compliance auditor or their designee; or

(2) The ethics review board;

(c) A report shall state:

(1) The name of the city official or employee who believes that a violation of a provision of the ethics code has been or may have been committed;

(2) The identity of the person or persons who allegedly committed the violation;

(3) A statement of the facts on which the belief is made; and

(4) Any other pertinent information concerning the alleged violation.

(d) Notice of all reports shall be provided to the compliance auditor, ethics review board, and city attorney's office within two (2) business days of receipt.

(e) If the ethics review board determines a violation of the ethics code has occurred, the ethics review board may take appropriate action on the matter, including, but not limited to, recommending a waiver by the city council of the code provision(s) violated, or the filing of a complaint for a hearing by the ethics review board.

(Ord. No. 2013-05-09-0317, § 2(Att. B), 5-9-13; Ord. No. 2018-06-21-0491, § 1(Att. A), 6-21-18; Ord. No. 2024-05-02-0274, § 1(Att. A), 5-2-24)

DIVISION 3. FORMER CITY OFFICIALS AND EMPLOYEES

Sec. 2-55. Continuing confidentiality.

A former city official or employee shall not use or disclose confidential government information acquired during service as a city official or employee. This rule does not prohibit:

(a) Any disclosure that is no longer confidential by law; or

(b) The confidential reporting of illegal or unethical conduct to authorities designated by law.

(Ord. No. 2013-05-09-0317, § 2(Att. B), 5-9-13)

Sec. 2-56. Subsequent representation of private interests.

(a) *Representation of private interests before the city by a former board member.* A person who was a member of a board or other city body shall not represent any person, group, or entity for a period of two (2) years after the termination of their official duties:

(1) Before that board or body;

(2) Before city staff having responsibility for making recommendations to, or taking any action on behalf of, that board or body, unless the board or body is only advisory in nature; or

(3) Before a board or other city body which has appellate jurisdiction over the board or body of which the former city official or employee was a member, if any issue relates to their former duties.

(b) *Representation of private interests before the city by former city officials and employees.* A former city official or employee shall not represent for compensation any person, private group, or private entity, other than themselves, or their

spouse or minor children, before the city for a period of two (2) years after termination of their official duties. This subsection does not apply to a person who was classified as a city official only because they were an appointed member of a board or other city body. For purposes of this subsection, the term compensation means money or any other thing of value that is received, or is to be received, in return for or in connection with such representation.

(c) *Improper representation of influence.* In connection with the representation of private interests before the city, a former city official or employee shall not state or imply that they were able to influence city action on any basis other than the merits.

(d) *Representation in litigation adverse to the city.* A former city official or employee shall not, absent consent from the city, represent any person, group, or entity, other than themselves, or their spouse or minor children, in any litigation to which the city is a party, if the interests of that person, group, or entity are adverse to the interests of the city and the matter is one in which the former city official or employee personally and substantially participated prior to termination of their official duties.
(Ord. No. 2013-05-09-0317, § 2(Att. B), 5-9-13; Ord. No. 2024-05-02-0274, § 1(Att. A), 5-2-24)

Sec. 2-57. Prior participation in the negotiation, award or administration of contracts.

A former city official or employee shall not, within two (2) years of the termination of official duties for the city, perform work on a compensated basis relating to a discretionary city contract, if they personally and substantially participated in the negotiation, award or administration of the contract.

A former city official or employee, within two (2) years of termination of official duties, must disclose to the city clerk immediately upon knowing that they will perform work on a compensated basis relating to a discretionary city contract for which they did not personally and substantially participate in its negotiation, award or administration. This subsection does not apply to a person who was classified as a city official only because they were an appointed member of a board or other city body.
(Ord. No. 2013-05-09-0317, § 2(Att. B), 5-9-13; Ord. No. 2024-05-02-0274, § 1(Att. A), 5-2-24)

Sec. 2-58. Prohibited interest in discretionary contracts.

(a) *Definitions.* For purposes of this section:

(1) A *"former city employee"* is any person who, prior to termination of employee status, was required to file a financial disclosure statement pursuant to subsection 2-73(a) (financial disclosure report).

(2) A *"former city officer"* is any person who, immediately prior to termination of official duties, was:

a. The mayor or a member of city council;

b. A municipal court judge or magistrate; or

c. A member of any board or commission which is more than advisory in nature. The term does not include members of the board of another governmental entity even if some or all of these members are appointed by the city.

(3) The term "contract" means any discretionary contract other than a contract for the personal services of the former city official or employee.

(4) The term "service" means any services other than the personal services of the former official or employee.

(b) *Impermissible interest in discretionary contract or sale.* This subsection applies only to contracts or sales made on a discretionary basis, and does not apply to contracts or sales made on a competitive bid basis. Within one (1) year of the termination of official duties, a former city officer or employee shall neither have a financial interest, direct or indirect, in any discretionary contract with the city, nor have a financial interest, direct or indirect, in the sale to the city of any land, materials, supplies, or service at the

time the contract or sale is approved by city council. Any violation of this section, with the knowledge, expressed or implied, of the individual or entity contracting with the council shall render the contract involved voidable by the city manager or the council. A former city officer or employee has a prohibited "financial interest" in a discretionary contract with the city, or in the sale to the city of land, materials, supplies, or service, if any of the following individuals or entities is a party to the contract or sale:

(1) The former officer or employee;

(2) Their parent, child, or spouse;

(3) An entity in which the former officer or employee, or their parent, child or spouse, directly or indirectly owns:

a. Ten (10) percent or more of the voting stock or shares of the entity, or

b. Ten (10) percent or more of the fair market value of the entity; or

(4) An entity of which any individual or entity listed in subsection (1), (2) or (3) is:

a. A subcontractor on a city contract;

b. A partner; or

c. A parent or subsidiary entity.

(c) *Exception: Prior employment or status.* Notwithstanding subsection (a) and section 2-57 (Prior participation in negotiation, award or administration of contracts), a former city official or employee may upon leaving official duties return to employment or other status enjoyed immediately prior to commencing official city duties.

(Ord. No. 2013-05-09-0317, § 2(Att. B), 5-9-13; Ord. No. 2024-05-02-0274, § 1(Att. A), 5-2-24)

DIVISION 4. PERSONS DOING BUSINESS WITH THE CITY

Sec. 2-59. Disclosure of parties, owners, and closely related persons.

(a) For the purpose of assisting the city in the enforcement of provisions contained in the city charter and this code of ethics, this section applies to an individual or entity seeking:

(1) A discretionary contract;

(2) A housing or retail development incentive from the city;

(3) To purchase, sell or lease real estate to or from the city or the city's Urban Renewal Agency dba Office of Urban Redevelopment San Antonio (OUR SA);

(4) A resolution of support or no objection from the city for a multi-family housing project seeking housing tax credits through the Texas Department of Housing and Community Affairs;

(5) The approval of the issuance of revenue bonds by or through the San Antonio Housing Trust Finance Corporation, the San Antonio Housing Trust Public Facility Corporation, or any other similarly-created city special purpose entity;

(6) City council appropriation of funds for an economic development incentive by or through a city created economic development corporation, public facility corporation or local government corporation; or

(7) A zoning change.

(b) An individual or entity seeking action on any matter listed above is required to disclose at the time the request, submission and/or proposal is made, but no later than seventy-two (72) hours prior to city council action on a form provided by the city:

(1) The identity of any individual who would be a party to the transaction;

(2) The identity of any entity that would be a party to the transaction and the name of:

a. Any individual or entity that would be a subcontractor to the transaction;

b. Any individual or entity that is known to be a partner or a parent entity of any individual or entity who would be a party to the transaction, or any subsidiary entity that is anticipated to be involved in the execution of the transaction; and

c. The board members, executive committee members, and officers of entities listed above; and

(3) The identity of any lobbyist, attorney or consultant employed for purposes relating to the transaction being sought by any individual or entity who would be a party to the transaction.

This form must be supplemented in the event there is any change in the information required of the individual or entity under this subsection before the transaction is the subject of council action, and no later than five (5) business days after any change about which information is required to be filed.

(c) *Disclosure of political contributions*. Any individual or entity seeking city council action on a matter listed in subsection (a) above must disclose on a form provided by the city, all political contributions within the past twenty-four (24) months made directly or indirectly to any current or former member of city council, any candidate for city council, or to any political action committee that contributes to city council elections, by any individual or entity whose identity must be disclosed under subsection (b).

Indirect contributions by an individual include, but are not limited to, contributions made by an individual's spouse, whether statutory or common-law. Indirect contributions by an entity include, but are not limited to, contributions made by the officers, owners of the entity seeking the contract, and attorneys, consultants or registered lobbyists of the entity hired or retained to assist an individual or entity in seeking a contract. Indirect contributions do not include contributions by owners of an entity who hold less than five (5) percent of the fair market value or voting stock of the entity.

Political contributions made in the preceding twenty-four (24) months to any individual who is a former councilmember must be disclosed, unless:

(1) The contributions were made in connection with a campaign or officeholder account not associated with a city office;

(2) The former officeholder has terminated the campaign treasurer appointment and filed the final campaign finance report with the city clerk at the time the contract was in the solicitation process or under consideration for approval by the city; and

(3) The former member is not or was not serving in a city office at the time the contract was in the solicitation process or under consideration for approval by the city.

(d) *Briefing papers and open records*. Briefing papers prepared for the city council concerning any of the matters listed in subsection (a) above shall reveal the information disclosed in compliance with subsections (b) and (c), and is an open record available to the public.

(Ord. No. 2013-05-09-0317, § 2(Att. B), 5-9-13; Ord. No. 2018-06-21-0491, § 1(Att. A), 6-21-18, effective 1-1-19; Ord. No. 2024-05-02-0274, § 1(Att. A), 5-2-24)

Editor's note—Ord. No. 2018-06-21-0491, § 1(Att. A), adopted June 21, 2018, amended § 2-59 and in so doing changed the title of said section from "Persons seeking discretionary contracts, housing and retail development incentives and the purchase, sale or lease of real estate" to "Disclosure of parties, owners, and closely related persons," as set out herein.

Sec. 2-60. Disclosure of association with city official or employee.

(a) *Definition*. For purposes of this rule, facts are "reasonably understood" to "raise a question" about the appropriateness of official action if a disinterested person would conclude that the facts, if true, require recusal or require careful consideration of whether recusal is required.

(b) *Disclosures during appearances.* A person appearing before a city board or other city body shall disclose to it any known facts which, reasonably understood, raise a question as to whether any member of the board or body would violate section 2-43 (conflicts of interest) by participating in official action relating to a matter pending before the board or body.

(c) *Disclosures in proposals.* Any individual or entity seeking a discretionary contract with the city shall disclose, on a form provided by the city, any known facts which, reasonably understood, raise a question as to whether any city official would violate section 2-43 (conflicts of interest) by participating in official action relating to the discretionary contract.

(d) *Disclosure of benefit.* If a person who requests official action on a matter knows that the requested action will confer an economic benefit on any city official or employee that is distinguishable from the effect that the action will have on members of the public in general or a substantial segment thereof, they shall disclose that fact in a signed writing to the city official, employee, or body that has been requested to act in the matter, unless the interest of the city official or employee in the matter is apparent. The disclosure shall also be made in a signed writing filed with the city clerk.
(Ord. No. 2013-05-09-0317, § 2(Att. B), 5-9-13; Ord. No. 2024-05-02-0274, § 1(Att. A), 5-2-24)

Sec. 2-61. Prohibited contacts during contract solicitation period.

A person or entity who seeks or applies for a city contract or any other person acting on behalf of such person or entity, is prohibited from contacting city officials and employees as defined in section 2-62 regarding such a contract after a request for proposal (RFP), request for qualification (RFQ) or other solicitation has been released. This no-contact provision shall conclude when the contract is posted as a city council "A Session" agenda item. If contact is required with city officials and employees, such contact will be done in accordance with procedures incorporated into the solicitation document. Violation of this provision by respondents or their agents may lead to disqualification of their offer from consideration.
(Ord. No. 2013-05-09-0317, § 2(Att. B), 5-9-13; Ord. No. 2018-06-21-0491, § 1(Att. A), 6-21-18)

DIVISION 5. LOBBYISTS

Sec. 2-62. Definitions.

As used in division 5 (lobbyists), the following words and phrases have the meaning ascribed to them in this section, unless the context requires otherwise:

(a) *City official* means the mayor; members of the city council; municipal court judges and magistrates; the city manager; deputy city manager; city clerk; deputy city clerk; assistant city clerk; assistant city managers; assistants to the city manager; all department heads; assistant department heads; internal auditor and assistant internal auditors; compliance auditor; assistant to city council; assistants to city council, including contract personnel; assistant to mayor; assistants to the mayor, including contract personnel; executive secretaries; public utilities supervisor; members of bid committees; members of the historic and design review commission; zoning commission; and members of any board or commission that is more than advisory in nature.

(b) *Client* means any person on whose behalf lobbying is conducted. If a person engages in lobbying on that person's own behalf, whether directly or through the acts of others, the person is both a client and a lobbyist (as defined in subsection (h)). In the case of a coalition or association that employs or retains other persons to conduct lobbying activities, the client is the coalition or association and not its individual members.

(c) *Compensation* means money or any other thing of value that is received, or is to be received, in return for or in connection with lobbying services rendered, or to be rendered, including reimbursement of

expenses incurred in lobbying. "Compensation" for professional services that do not primarily require contact or advocacy with public officials does not constitute "compensation in connection with lobbying services" for purposes of this section, if contact with public officials is incidental to the primary purpose of the employment.

Compensation does not include a payment made to any individual regularly employed by a person if:

(1) The payment ordinarily would be made regardless of whether the individual engaged in lobbying activities; and

(2) Lobbying activities are not part of the individual's regular responsibilities to the person making the payment.

Compensation does not include the financial gain that a person may realize as a result of the determination of a municipal question, unless that gain is in the form of a contingent fee.

If a lobbyist engages in both lobbying activities and other activities on behalf of a person, compensation for lobbying includes all amounts received from that person, if, for the purpose of evading the obligations imposed under division 5 (lobbyists), the lobbyist has structured the receipt of compensation in a way that unreasonably minimizes the value of the lobbying activities.

Compensation which has not yet been received is considered to be received on the date that it is earned, if that date is ascertainable; otherwise, it is received on the date on which the contract or agreement for compensation is made, or on the date lobbying commences, whichever is first. Compensation does not include any amounts previously reported under section 2-66 (quarterly activity reports).

(d) *Expenditure* means a payment, distribution, loan, advance, reimbursement, deposit, or gift of money or anything of value, including a contract, promise, or agreement to make an expenditure, regardless of whether such contract, promise, or agreement is legally enforceable.

Expenditure does not include an amount paid to any individual regularly employed by a person if:

(1) The amounts paid to the individual are ordinarily paid regardless of whether the individual engages in lobbying activities; and

(2) Lobbying activities are not part of the individual's regular responsibilities to the person making the payment.

The date on which an expenditure is incurred is determined according to generally accepted accounting principles. The term "expenditure" does not include the cost of photocopying city documents, if those costs are the only expenditures made by the person in question on lobbying activities. The term "expenditure" also does not include the cost of photocopying documents, or creating other informational material by individuals who communicate with public officials to express personal opinions on behalf of themselves, their family or members of their household.

(e) *Gift* has the same meaning as in section 2-42 (definitions).

(f) *Immediate family* means a spouse and dependent children.

(g) *Knowingly* has the same meaning as in section 2-42 (definitions).

(h) *Lobbyist* means a person who engages in lobbying, whether directly or through the acts of another. If an agent or employee engages in lobbying for a principal or employer, both the agent and the principal, or the employee and the employer, are lobbyists.

(i) *Lobby* or *lobbying,* except as provided below, means any oral or written communication (including an electronic com-

munication) to a city official, made directly or indirectly by any person in an effort to influence or persuade an official to favor or oppose, recommend or not recommend, vote for or against, or take or refrain from taking action on any municipal question. The term lobby or lobbying does not include a communication:

(1) Merely requesting information or inquiring about the facts or status of any municipal question, matter, or procedure, and not attempting to influence a city official;

(2) Made by a public official or employee (including, but not limited to, an official or employee of the city) acting in their official capacity;

(3) Made by a representative of a media organization if the purpose of the communication is gathering and disseminating news and information to the public;

(4) Made in a speech, article, publication, or other material that is distributed and made available to the public, or through radio, television, cable television, or any other medium of mass communication;

(5) Made at a meeting open to the public under the Open Meetings Act;

(6) Made in the form of a written comment filed in the course of a public proceeding or any other communication that is made on the record in a public proceeding;

(7) Made in writing as a petition for official action and required to be a public record pursuant to established city procedures;

(8) Made in writing to provide information in response to an oral or written request by a city official for specific information;

(9) The content of which is compelled by law;

(10) Made in response to a public notice soliciting communications from the public and directed to the official specifically designated in the notice to receive such communications;

(11) Made on behalf of an individual with regard to that individual's employment or benefits;

(12) Made by a fact witness or expert witness at an official proceeding; or

(13) Made by a person solely on behalf of that individual, their spouse, or their minor children.

(j) *Lobbying firm* means:

(1) A self-employed lobbyist, or

(2) A person that has one or more employees who are lobbyists on behalf of a client or clients other than that person.

(k) *Municipal question* means a public policy issue of a discretionary nature pending or impending before city council or any board or commission, including, but not limited to, proposed action, or proposals for action, in the form of ordinances, resolutions, motions, recommendations, reports, regulations, policies, nominations, appointments, sanctions, and bids, including the adoption of specifications, awards, grants, or contracts.

The term "municipal question" does not include the day-to-day application, administration, or execution of existing city programs, policies, ordinances, resolutions, or practices, including matters that may be approved administratively without consideration by a board, a commission, or the city council. The term "municipal question" does include all discretionary matters before the board of adjustment, the planning commission and all advisory committees and subcommittees thereof.

(l) *Person* means an individual, corporation, association, firm, partnership, committee, club, organization, or a group of persons voluntarily acting in concert.

(m) *Registrant* means a person required to register under section 2-63 (persons required to register as lobbyists).

(Ord. No. 2013-05-09-0317, § 2(Att. B), 5-9-13; Ord. No. 2024-05-02-0274, § 1(Att. A), 5-2-24)

Sec. 2-63. Persons required to register as lobbyists.

Except as provided by section 2-64 (exceptions), a person or entity who engages in lobbying must register with the city clerk if:

(1) With respect to any client, the person or entity engages in lobbying activities for compensation; or

(2) The person or entity expends monies for lobbying activities.

The terms "compensation" and "expenditure" are defined in section 2-62 (definitions).

(Ord. No. 2013-05-09-0317, § 2(Att. B), 5-9-13)

Sec. 2-64. Exceptions.

The following persons and entities are not required to register under sections 2-63 and 2-65 (persons required to register as lobbyists and registration) or file an activity report under section 2-66 (quarterly activity reports):

(1) *Media outlets.* A person who owns, publishes or is employed by:

a. A newspaper;

b. Any other regularly published periodical;

c. A radio station;

d. A television station;

e. A wire service; or

f. Any other bona fide news medium that in the ordinary course of business disseminates news, opinions, or paid advertisements that directly or indirectly oppose or promote municipal questions or seek to influence official action relating thereto, if the person does not engage in other activities that require registration under division 5 (lobbyists). This subsection does not exempt the news media or a person whose relation to the news media is only incidental to a lobbying effort or if a position taken or advocated by a media outlet directly impacts, affects, or seeks to influence a municipal question in which the media outlet has a direct or indirect economic interest.

(2) *Mobilizing entity constituents and not-for-profit organizations.* A person whose only lobbying activity is to encourage or solicit the members, employees, or owners (including shareholders) of an entity by whom the person is compensated to communicate directly with one or more city officials to influence municipal questions. This exception is intended to apply to neighborhood associations and not-for-profit organizations.

(3) *Governmental entities.* Governmental entities and their officials and employees, provided the communications relate solely to subjects of governmental interest concerning the respective governmental bodies and the city.

(4) *Unknown municipal questions.* A person who neither knows nor has reason to know that a municipal question is pending at the time of contact with a city official. This subsection does not apply if the existence of a municipal question is discovered during on-going contacts with a city official and the person then engages in additional lobbying of the same official or other city officials with respect to that municipal question.

(5) *Dispute resolution.* An attorney or other person whose contact with a city official is made solely as part of resolving a dispute with the city, provided that the contact is solely with city officials who do not vote on or have final authority over any municipal question involved and so long as such an attorney complies with Rule 4.02 of the Texas Disciplinary Rules of Professional Conduct, as amended.

(6) *Compensation of registrant.* A client who would only be required to register under section 2-63 because of any expenditure to compensate a registrant, other than an employee, to lobby on a municipal question of interest to the client, provided that the compensated registrant files a registration statement or activity report for the period in question.

(7) *Agent or employee.* An agent or employee of a lobbying firm or other registrant that files a registration statement or activity report for the period in question fully disclosing all relevant information known to the agent or employee.

(8) *Individual.* An individual who engages in lobbying but who neither receives compensation nor expends monies for lobbying with respect to any client. The term "expends" does not include the cost of photocopying documents, or creating other informational material by individuals who communicate with public officials to express personal opinions on behalf of themselves, their family or members of their household.

(9) *Attorneys.* A licensed attorney who is performing an act that may be performed only by a licensed attorney.

(Ord. No. 2013-05-09-0317, § 2(Att. B), 5-9-13)

Sec. 2-65. Registration.

(a) *Separate registrations.* A person or entity required to register as a lobbyist under section 2-63 (persons required to register as lobbyists) must file a separate registration form for each client. A registrant who makes more than one lobbying contact for the same client shall file a single registration form covering all lobbying contacts for that client. Each registration form must be signed under oath. If the registrant is not an individual, an authorized officer or agent of the registrant shall sign the form.

(b) *Initial registration.* An initial registration form relating to a client must be filed by a person required to register under section 2-63 (persons required to register as lobbyists) within ninety (90) days after the start of lobbying activity for that client. However, in no event shall a registrant knowingly fail to register, or knowingly fail to disclose such registration to relevant city officials, prior to official city action relating to the subject matter of the lobbying activity.

(c) *Subsequent annual registration.* Except as provided in subsection (f) (termination of registration) subsequent registration forms must be filed annually in January for each client for whom a registrant previously filed, or was required to file, an initial registration form.

(d) *Consolidated registration for firms/organizations.* An individual, firm or organization that registers as a lobbyist and that employs agents or employees who engage in lobbying activity on behalf of the registrant's clients may include the agents or employees within the registrant's initial and annual registration, by identifying the agents or employees and disclosing lobbying activity as required under subsection (e) by each agent or employee.

(e) *Required disclosures.* Initial or subsequent registration shall be on a form prescribed by the city clerk and shall include, to the extent applicable:

(1) The full name, telephone number, permanent address, email address and nature of the business of:

a. The registrant;

b. The client;

c. List any other person, on whose behalf the registrant has been engaged by the client to lobby;

d. Any person, other than the client, who is known by the registrant to contribute financially to the compensation of the registrant, or which, in whole or in major part, plans, supervises, or controls the registrant's lobbying activities on behalf of the client;

e. Any lobbying firm for which the registrant is an agent or employee with respect to the client; and

f. Each employee or agent of the registrant who has acted or whom the registrant expects to act as a lobbyist on behalf of the client;

(2) A statement of all municipal questions on which the registrant or its agents or employees have lobbied for the client in the year preceding the filing of the registration or foreseeably will lobby;

(3) A list of any positions held by the registrant or its agents or employees as an official or employee of the city, as those terms are defined in section 2-42 (definitions) during the past two (2) years;

(4) If the registrant or an agent or employee is a former city official or employee, a statement that the registrant's lobbying activities have not violated and will not foreseeably violate subsections 2-56(a) or (b) or section 2-57 (former city officials and employees) of this ethics code.

(f) *Termination of registration.* A registrant shall file a notice of termination of registration with the city clerk if the registrant is no longer required to register by section 2-63 (persons required to register as lobbyists). A filing under this subsection does not relieve the registrant of reporting requirements imposed by section 2-66 (quarterly activity reports) for the reporting period in question.

(g) *Fee.* At the time of initial or subsequent annual registration with respect to a client, a registrant shall pay to the city, and the city clerk shall collect, a fee of five hundred dollars ($500.00) for the registrant and five hundred dollars ($500.00) for each agent or employee of the registrant that engages in lobbying activity on behalf of the registrant's clients. All lobbyist registration fees shall be deposited into a separate account within the general fund, which account shall be used to offset the costs of administering the city's lobbying ordinance and the costs of handling disclosure filings.

(h) *Ethics code briefing.* During the registration process, the compliance auditor shall offer a briefing to each new registrant on division 5 (lobbyists) of the ethics code and each shall be provided with information regarding the lobbyist provisions of the ethics code.
(Ord. No. 2013-05-09-0317, § 2(Att. B), 5-9-13; Ord. No. 2018-06-21-0491, § 1(Att. A), 6-21-18)

Sec. 2-66. Quarterly activity reports.

(a) *Required disclosures.* Except as provided in section 2-64 (exceptions), each registrant shall file with the city clerk a separate report signed under oath concerning the registrant's lobbying activities for each client from whom, or with respect to whom, the registrant received compensation of, or expended, monies for lobbying during the prior calendar quarter.

A firm, entity, or individual that employs agents or employees who lobby on behalf of that organization's or employer's clients may file quarterly reports regarding lobbying activities on behalf of all the organization's or employer's clients, so long as all activities by agents and employees that must be disclosed pursuant to division 5 are reported on the consolidated quarterly report. When a registrant files a quarterly report disclosing the lobbying activities of its agents or employees, the registrant's agents and employees are not required to file separate quarterly reports.

The report for the preceding calendar quarter shall be filed between the first and fifteenth day of April, July, October, or January, or on the date registration on behalf of the client is required, whichever comes later. If the registrant is not an individual, an authorized officer or agent of the registrant shall sign the form. The report shall be on the form prescribed by the city clerk and shall include, with respect to the previous calendar quarter, to the extent applicable:

(1) The name of the registrant, the name of the client, and any changes or updates in the information provided in the most recent registration statement filed pursuant to section 2-65 (registration);

(2) A list of the specific issues upon which the registrant or its agents or employees engaged in lobbying activities, including, to the maximum extent practicable, a list

of specific legislative proposals and other proposed, pending, or completed official actions;

(3) A list of the city officials contacted by the registrant or its agents or employees on behalf of the client with regard to a municipal question;

(4) A list of the employees or agents of the registrant who acted as lobbyists on behalf of the client;

(5) In the case of a registrant engaged in lobbying activities on its own behalf, a good faith estimate of the total expenditures as defined in section 2-62 (definitions) that the registrant and its agents or employees incurred in connection with lobbying activities;

(6) Each gift, benefit, or expenditure greater than fifty dollars ($50.00) made to, conferred upon, or incurred on behalf of a city official or their immediate family by the registrant, or by anyone acting on behalf of the registrant, shall be itemized by date, city official, actual cost, and circumstances of the transaction;

(7) Each exchange of money, goods, services, or anything of value by the registrant, or by anyone acting on behalf of the registrant, with any entity in which the registrant knows or should know that a city official has an economic interest, or for which the city official serves as a director or officer, or in any other policy making position, if:

a. The total of such exchanges is one thousand dollars ($1,000.00) or more in a calendar quarter; and

b. The city official:

1. Has been lobbied by the registrant or its agents or employees during the calendar quarter; or

2. Serves on a board or other city body that has appellate jurisdiction over the subject matter of the lobbying.

Each exchange shall be itemized by date, entity and address, city official, amount, and nature of transaction. For purposes of this subsection, the term "exchange" does not include a routine purchase from a commercial establishment, if the city official in question is neither aware, nor likely to become aware, of the transaction; and

(8) The name and position of each city official or member of a city official's immediate family who is employed by the registrant.

(b) *Preservation of records.* Each registrant shall obtain and preserve all accounts, bills, receipts, books, papers and documents necessary to substantiate the activity reports required to be made pursuant to this section for five (5) years from the date of filing of the report containing such items. These records must be provided to the ethics review board upon request by the board.

(c) *No activity or changes*. No quarterly activity report is required if there is no activity during the preceding calendar quarter and there are no other changes to items required to be reported.

(d) *Estimates of income or expenses.* For purposes of subsections (a)(5), (a)(6), and (a)(7), required estimates of compensation or expenses shall be made to the nearest one hundred dollars ($100.00), for amounts totaling less than five thousand dollars ($5,000.00), and to the nearest one thousand dollars ($1,000.00), for amounts totaling more than five thousand dollars ($5,000.00).

(e) *Contingent fees.* A person shall disclose employment to lobby on a contingent fee basis as well as any arrangement to engage in lobbying activities on a contingent fee arrangement.
(Ord. No. 2013-05-09-0317, § 2(Att. B), 5-9-13; Ord. No. 2018-06-21-0491, § 1(Att. A), 6-21-18; Ord. No. 2024-05-02-0274, § 1(Att. A), 5-2-24)

Sec. 2-67. Restricted activities.

(a) *False statements.* A person who lobbies or engages another person to lobby, or any other person acting on behalf of such persons, shall not

intentionally or knowingly make any false or misleading statement of fact to any city official, or, knowing a document to contain a false statement, cause a copy of such document to be received by a city official without notifying such official in writing of the truth.

(b) *Failure to correct erroneous statement*. A registrant who learns that a statement contained in a registration form or activity report filed by the registrant during the past two (2) years is false shall not fail to correct that statement by written notification to the city clerk within thirty (30) days of learning of the falsehood.

(c) *Personal obligation of city officials.* A person who lobbies or engages another person to lobby, or any other person acting on behalf of such person, shall not do any act, or refrain from doing any act, with the express purpose and intent of placing any city official under personal obligation to such lobbyist or person.

(d) *Improper influence.* A registrant shall not cause or influence the introduction of any ordinance, resolution, appeal, application, petition, nomination, or amendment thereto for the purpose of thereafter being employed as a lobbyist to secure its granting, denial, confirmation, rejection, passage, or defeat.

(e) *Use of false identification.* A person who lobbies or engages another person to lobby, or any other person acting on behalf of such person, shall not cause any communication to be sent to a city official in the name of any fictitious person or in the name of any real person, except with the consent of such real person.

(f) *Prohibited representations.* A person who lobbies or engages another person to lobby, or any other person acting on behalf of such person, shall not represent, either directly or indirectly, orally or in writing, that that person can control or obtain the vote or action of any city official.

(g) *Legislator's exclusion.* At any time within sixty (60) days of a date when the Texas Legislature is to be in session, or at any time the Texas Legislature is in session, or when the Texas Legislature sits as a Constitutional Convention, members of the Texas Legislature and their agents and employees are prohibited from lobbying as that term is defined in subsection 2-62(h) (lobbyists).

At any other time, the city strongly discourages members of the Texas Legislature and their spouses, agents and employees from lobbying before the city.

If a legislator, their spouse, agent, or employee does engage in lobbying activity during a time outside a regular session and outside the sixty (60) days before and after a regular session, and the Governor calls a special session for which the legislator had no notice at the time of the lobbying activity, this section is not violated.

(h) *Lobbying by councilmembers.* At any time within sixty (60) days of a date when the Texas Legislature is to be in session, or at any time the Texas Legislature is in session, or when the Texas Legislature sits as a Constitutional Convention, members of the city council of the city are prohibited from lobbying members of the Texas Legislature on behalf of the councilmember's private client(s) or employer. Councilmembers are not prohibited from meeting with members of the Texas Legislature on behalf of the city concerning legislation, administrative action, or any other action in their official city capacity. For the purposes of this subsection, lobbying means any oral or written communication (including an electronic communication) to a member of the legislative branch, made directly or indirectly, by a city councilmember in an effort to influence or persuade a member of the legislative branch to favor or oppose, recommend or not recommend, vote for or against, or take or refrain from taking action on any legislation or administrative action on behalf of the councilmember's private client(s) or employer.

At any other time, the city strongly discourages members of the city council and their spouses, agents and employees from lobbying before the Texas Legislature. This does not apply to lobbying on behalf of the city concerning legislation, administrative action, or any other action in their official city capacity.

If a councilmember, their spouse, agent, or employee does engage in lobbying activity during

a time outside a regular legislative session and outside the sixty (60) days before and after a regular session, and the Governor calls a special session of which the councilmember had no notice at the time of the lobbying activity, this section is not violated.

(i) *Limitations on gifts.* A person who lobbies or engages another person to lobby, or any other person acting on behalf of such persons, shall not give gifts to a city official or a city employee or their immediate family, save and except for:

(1) Items received that are of nominal value fifty dollars ($50.00) or less); or

(2) Meals in an individual expense of fifty dollars ($50.00) or less at any occurrence, and no more than a cumulative value of five hundred dollars ($500.00) in a single calendar year, from a single source, as permitted in section 2-45; or

(3) Other gifts permitted under section 2-45.

(j) *Prohibited lobbying.* A person who lobbies or engages another person to lobby, or any other person acting on behalf of such person, is prohibited from lobbying activities with city officials and employees regarding such contract after a request for proposal (RFP), a request for qualifications (RFQ) or other solicitation has been released. This no-contact provision shall conclude when the contract is posted as a city council agenda item. If contact is required with city officials and employees, such contact will be done in accordance with procedures incorporated into the solicitation document. Violation of this provision by respondents or their agent(s) may lead to disqualification of their offer from consideration.
(Ord. No. 2013-05-09-0317, § 2(Att. B), 5-9-13; Ord. No. 2018-06-21-0491, § 1(Att. A), 6-21-18; Ord. No. 2024-05-02-0274, § 1(Att. A), 5-2-24)

Sec. 2-68. Identification of clients.

(a) *Appearances.* Each person who lobbies or engages another person to lobby appearing before the city council or an official body identified in the definition of "city official" in section 2-62 (definitions) shall orally identify themselves and the client(s) they represent upon beginning an address. Each person who lobbies or engages another person to lobby shall also disclose on appropriate sign-in sheets their identity, the identity of the client they represent, and whether they are registered as a lobbyist as required by section 2-63 (persons required to register as lobbyists).

(b) *Oral lobbying contacts.* Any person who makes an oral lobbying contact with an official shall, identify the client or clients on whose behalf the lobbying contact is made and identify themselves as a registered lobbyist.

(c) *Written lobbying contacts.* Any registrant who makes a written lobbying contact (including an electronic communication) with a city official shall identify the client(s) on whose behalf the lobbying contact is made and identify themselves as a registered lobbyist.
(Ord. No. 2013-05-09-0317, § 2(Att. B), 5-9-13; Ord. No. 2024-05-02-0274, § 1(Att. A), 5-2-24)

Sec. 2-69. Timeliness of filing registrations and reports.

A registration or report filed by first-class United States mail or by common or contract carrier is timely if:

(1) It is properly addressed with postage and handling charges prepaid; and

(2) It bears a post office cancellation mark or a receipt mark from a common or contract carrier indicating a time within the applicable filing period or before the applicable filing deadline, or if the person required to file furnishes satisfactory proof that it was deposited in the mail or with a common or contract carrier within that period or before that deadline.

(Ord. No. 2013-05-09-0317, § 2(Att. B), 5-9-13)

Sec. 2-70. Administration.

The city clerk shall:

(1) Provide guidance and assistance on the registration and reporting requirements for lobbyists and develop common standards, rules, and procedures for compliance with division 5 (lobbyists);

(2) Review for completeness and timeliness registrations and reports;

(3) Maintain filing, coding, and cross-indexing systems to carry out the purposes of division 5 (lobbyists), including:

a. A publicly available list of all registered lobbyists, lobbying firms, and their clients; and

b. Computerized systems designed to minimize the burden of filing and maximize public access to materials filed under division 5 (lobbyists);

(4) Make available for public inspection and copying at reasonable times the registrations and reports filed under division 5 (lobbyists); and

(5) Retain registrations and reports in accordance with the Local Government Records Act.

(Ord. No. 2013-05-09-0317, § 2(Att. B), 5-9-13)

Sec. 2-71. Constitutional rights.

Nothing in division 5 (lobbyists) shall be construed to prohibit or interfere with any person's rights guaranteed by the United States and Texas Constitutions.

(Ord. No. 2013-05-09-0317, § 2(Att. B), 5-9-13)

DIVISION 6. MEMBERS OF THE PUBLIC AND OTHERS*

Sec. 2-72. Forms of responsibility.

No person shall intentionally or knowingly induce, attempt to induce, conspire with, aid or assist, or attempt to aid or assist another person to engage in conduct violative of the obligations imposed by divisions 2 (present city officials and employees), 3 (former city officials and employees), 4 (persons doing business with the city), and 5 (lobbyists) of this ethics code.

(Ord. No. 2013-05-09-0317, § 2(Att. B), 5-9-13)

*__Note—__Division 6 applies to current and former city officials and employees, persons doing business with the city, and lobbyists, as well as to members of the public and any other person (including entities).

DIVISION 7. FINANCIAL DISCLOSURE

Sec. 2-73. Financial disclosure report.

(a) *Persons required to file disclosure form.*

(1) *City officials and designated city employees*. No later than thirty (30) days after accepting appointment or assuming the duties of office, and annually thereafter, the city officials defined in section 2-42 (definitions), police department captains, assistant chiefs, and deputy chiefs, all appointed deputy fire chiefs and appointed assistant fire chiefs, and any assistant fire chief who either works in any other division and is involved in having input to any contract, vehicle specification, or who is otherwise involved with the purchasing of any product, service, or land for the fire department, any fire inspector, plan reviewer or uniformed administrator of the fire prevention division, any uniformed personnel utilized in evaluating or purchasing equipment, vehicles or any other purchases who also have contact with contractor(s) who provide such equipment or vehicles, and any uniformed personnel utilized in providing input to any contract or composing specifications of equipment and vehicles, who also have contact with contractor(s) who provide such services, equipment or vehicles are required to file with the city clerk a complete sworn financial disclosure report.

(2) *Exception.* Candidates for city council and city officials required to file financial disclosure statements pursuant to V.T.C.A., Local Government Code ch. 145 shall file financial disclosure statements in compliance with the Local Government Code in place of filing statements required by this code of ethics. Such officials shall also complete an addendum to the statement disclosing information required by this code of ethics, but not required under the Local Government Code. The addendum shall be developed jointly by the compliance auditor and the city clerk. Deadlines for filing the financial

disclosure documents shall be governed by V.T.C.A., Local Government Code ch. 145.

(b) *Open records.* Financial disclosure reports are open records subject to the Texas Public Information Act, and shall be maintained in accordance with the Local Government Records Act.

(c) *Annual filing date.* Annual financial disclosure reports filed by city officials who are city employees and by city employees who are required to report must be received by the city clerk by midnight on the 31st day of January. Annual financial disclosure reports filed by city officials who are not city employees and who are required to report must be received by the city clerk by midnight on the 31st day of March. When the deadline falls on a Saturday or Sunday, or on an official city holiday as established by the city council, the deadline for receipt by the city clerk is extended to midnight of the next day which is not a Saturday or Sunday or official city holiday. The city clerk shall grant an extension of time in which to file a report upon written request submitted in advance of the deadline. The extension shall not exceed ten (10) business days.

Unforeseen circumstances. In the event of an unforeseen circumstance, including, but not limited to, military service or acute illness or leave without pay under the Family Medical Leave Act, the deadline for receipt by the city clerk is extended until such time as the city official or employee resumes their city duties.

(d) *Reporting periods.* Each initial or annual financial disclosure report filed by an individual designated in subsections 2-73(a)(1) and 2-73(a)(2) shall disclose information relating to the prior calendar year, as well as any material changes in that information which occurred between the end of the prior calendar year and the date of filing.

(e) *City clerk.* The city clerk shall:

(1) Prior to January 15 of each year, notify city officials who are city employees and employees specified in subsection (a)(1) of their obligation to file financial disclosure reports and provide forms to be completed; prior to February 15 of each year, notify city officials who are not city employees of their obligation to file financial disclosure reports and provide the forms to be completed; and shall notify city officials as defined by V.T.C.A., Local Government Code ch. 145 of their obligation to file financial disclosure reports and provide the forms to be completed in accordance with that chapter;

(2) Provide forms to all new city council appointees and those filing for elective office, and advise them of reporting requirements and deadlines in accordance with V.T.C.A., Local Government Code ch. 145;

(3) Provide guidance and assistance on the reporting requirements for persons required to file financial disclosure reports and develop common standards, rules, and procedures for compliance with division 7 (financial disclosure);

(4) Review reports for completeness and timeliness;

(5) Maintain filing, coding, and cross-indexing systems to carry out the purpose of division 7 (financial disclosure), including:

a. A publicly available list of all persons required to file; and

b. Computerized systems designed to minimize the burden of filing and maximize public access to materials filed under division 7 (financial disclosure);

(6) Make available for public inspection and copying at reasonable times the reports filed under division 7 (financial disclosure);

(7) Upon determining that a city official who is not a city employee who is required to file a financial disclosure report has failed to do so or has filed incomplete or unresponsive information, notify the individual by certified mail that failure to file or correct the filing within ten (10) business days after the original deadline

constitutes an automatic resignation. At the same time, the city clerk shall provide to the city council a list of the names of those who have not filed and to whom this notification is being sent. If a city official who is not a city employee fails to file a completed report within ten (10) business days from the original deadline, the position shall be considered vacant, and a new appointment shall be made by the city council; and

(8) Upon determining that the mayor, a member of city council, a candidate for city council, the city manager, or a municipal court judge or magistrate has failed to timely file a financial disclosure report, or has filed incomplete or unresponsive information, notify the individual by certified mail that failure to file or correct the filing within ten (10) business days after the original deadline will result in the matter being forwarded to the ethics review board. If the person in question fails to file a completed report within ten (10) business days of the original deadline, a report of non-compliance shall be forwarded to the ethics review board for appropriate action.

(9) Upon determining that a person other than as provided in subsection (7) or (8) above, has failed to timely file a financial disclosure report, or has filed incomplete or unresponsive information, notify the individual by certified mail that failure to file or correct the filing within ten (10) business days after the original deadline will result in the matter being forwarded to the city manager. If the person in question fails to file a completed report within ten (10) business days of the original deadline, a report of non-compliance shall be forwarded to the city manager for appropriate action.

The failure of the city clerk to provide any notification required by this section does not bar appropriate remedial action, but may be considered on the issue of culpability.

(f) *Exception.* A city official who is a member of a board or commission created pursuant to federal or state law may only be removed for failing to file a financial disclosure form if allowed under federal or state law.

(Ord. No. 2013-05-09-0317, § 2(Att. B), 5-9-13; Ord. No. 2018-06-21-0491, § 1(Att. A), 6-21-18; Ord. No. 2024-05-02-0274, § 1(Att. A), 5-2-24)

Sec. 2-74. Contents of financial disclosure reports.

Each initial or annual financial disclosure report shall disclose, on a form provided by the city clerk, the following information:

(a) The reporting party's name;

(b) The reporting party's employer;

(c) The name of any entity (including self-employment in the form of a sole proprietorship under a personal or assumed name) in which the reporting party or their spouse holds an economic interest;

(d) The name of any entity which the reporting party knows is a partner, or a parent or subsidiary entity, of an entity owned by, operated by, or managed by the reporting party or their spouse;

(e) The name of any person or entity from whom the reporting party or their spouse, directly or indirectly:

(1) Has received and not rejected an unsolicited offer of subsequent employment; or

(2) Has accepted an offer of subsequent employment which is binding or expected by the parties to be carried out;

(f) The name of each nonprofit entity or other entity in which the reporting party serves as an officer or director, or in any other policy making position;

(g) The name of each entity which has sought city business, has a current city contract or anticipates seeking city business in

which the reporting party, the reporting party's parent, child or spouse is known to directly or indirectly own:

(1) Ten (10) percent or more of the voting stock or shares of the entity, or

(2) Ten (10) percent or more of the fair market value of the entity;

(h) The name of any entity of which the reporting party, or the reporting party's parent, child or spouse, or entity disclosed is known to be:

(1) A subcontractor on a city contract;

(2) A partner; or

(3) A parent or subsidiary entity.

(i) The name of each source of income, other than dividends or interest, amounting to more than five thousand dollars ($5,000.00) received during the reporting period by the reporting party or their spouse, unless that source has been disclosed under subsections (b) through (h);

(j) The identification by street address, or legal or lot-and-block description, of all real property located in the State of Texas in which the reporting party or their spouse has a leasehold interest, a contractual right to purchase, or an interest as: fee simple owner; beneficial owner; partnership owner; joint owner with an individual or corporation; or owner of more than twenty-five (25) percent of a corporation that has title to real property. There is no requirement to list any property:

(1) Used as a personal residence of a peace officer;

(2) Over which the reporting party has no decision power concerning acquisitions or sale; or

(3) Held through a real estate investment trust, mutual fund, or similar entity, unless the reporting party or their spouse participates in the management thereof;

(k) The name of persons or entities to whom the reporting party or spouse owes an unsecured debt of more than five thousand dollars ($5,000.00), except debts for:

(1) Money borrowed from a family member from their own resources; and

(2) Revolving charge accounts.

(l) The name of each person, business entity, or other organization from whom the reporting party, or their spouse, received a gift with an estimated fair market value in excess of one hundred dollars ($100.00) during the reporting period and the estimated fair market value of each gift. Excluded from this requirement are:

(1) Lawful campaign contributions which are reported as required by state statute or local ordinance;

(2) Gifts received from family members within the second degree of affinity or consanguinity;

(3) Gifts from an individual based on personal friendship who during the preceding three (3) calendar years: a) has not done or sought to do business with the city; b) has not sought city action on any issue before the city council or any city board or commission; c) is not associated with any business or entity that has done or sought to do business with the city; and d) is not associated with any business or entity that has sought city action on any issue before the city council or a city board or commission.

(4) Gifts received among and between fellow city employees and city officials;

(5) Admission to events in which the reporting party participated in connection with official duties;

(6) Payment of or reimbursement of travel and accommodations expenses accepted in connection with official

duties which have been reported under section 2-76 (travel reporting requirements); payment for or reimbursement of expenses for travel in excess of authorized rates under city policy are gifts subject to the reporting requirements under this section.

(m) The name of any person related as parent, child, or spouse to the reporting party and their employer; and

(n) The name of any member of the reporting party's household not disclosed in subsection (m) above.

(Ord. No. 2013-05-09-0317, § 2(Att. B), 5-9-13; Ord. No. 2018-06-21-0491, § 1(Att. A), 6-21-18; Ord. No. 2024-05-02-0274, § 1(Att. A), 5-2-24)

Sec. 2-75. Short form annual report.

A person who is required to file an annual financial disclosure report may fulfill their filing obligations by submitting a short sworn statement on a form provided by the city clerk, if there have been few or no changes in the information disclosed by that person in a complete financial disclosure report filed within the past five (5) years. The short statement shall indicate the date of the person's most recently filed complete financial disclosure report and shall state that there have been no material changes in that information or shall list any material changes that have occurred.

(Ord. No. 2013-05-09-0317, § 2(Att. B), 5-9-13; Ord. No. 2018-06-21-0491, § 1(Att. A), 6-21-18; Ord. No. 2024-05-02-0274, § 1(Att. A), 5-2-24)

Sec. 2-76. Travel reporting requirements.

(a) City-related travel. Any city official or employee who, in connection with their official duties, accepts a trip or excursion involving the gratuitous provision of transportation, accommodations, entertainment, meals, or refreshments paid for by a person or entity other than a public agency must file with the city clerk, within ten (10) business days of return from the travel, a disclosure statement identifying:

(1) The name of the sponsor;

(2) The places visited;

(3) The purpose and dates of the travel; and

(4) The amount of the expenses incurred.

(b) Acceptance of a trip or excursion by municipal court judges and magistrates, city manager, deputy city manager, city clerk, assistant city managers, assistants to the city manager, and all department heads, assistant department heads, and employees in positions listed on the executive pay plan (job class 1000 through 1999) must receive prior written approval of the city manager or mayor as appropriate. Other personnel must receive written approval by their department director. Boards and commissions members must receive approval by a vote of their board or commission.

(c) Non-city travel. Any city official or employee required to file a financial disclosure report (section 2-73), who accepts a trip or excursion involving the gratuitous provision of transportation, accommodations, entertainment, meals, or refreshments paid for by a person or entity other than a public agency must file with the city clerk, within ten (10) business days of return from the travel, a disclosure statement identifying:

(1) The name of the sponsor;

(2) The places visited;

(3) The purpose and dates of the travel; and

(4) The amount of the expenses incurred.

(d) The exceptions contained in subsection 2-74(l) apply to the reporting requirements of subsection (c), above.

(Ord. No. 2013-05-09-0317, § 2(Att. B), 5-9-13; Ord. No. 2018-06-21-0491, § 1(Att. A), 6-21-18; Ord. No. 2024-05-02-0274, § 1(Att. A), 5-2-24)

Sec. 2-77. Items received on behalf of the city.

A city official or employee who accepts any item by way of gift valued over one hundred dollars ($100.00) or loan on behalf of the city

must promptly report that fact to the city manager, who shall have the item appropriately inventoried as city property.
(Ord. No. 2013-05-09-0317, § 2(Att. B), 5-9-13)

Sec. 2-78. Other persons required to report gifts.

In addition to the gift reporting requirements imposed by the financial disclosure rules stated in subsection 2-74(l) (contents of financial disclosure reports), other city employees specified on a list compiled annually by the human resources department (or its successor department) and submitted to the city clerk, and contract administrative assistants to members of city council are also required to file an annual report on or before the 31st day of January of each year showing the source of a gift received during the previous year with a value of over one hundred dollars ($100.00). Excluded from this requirement are:

(1) Lawful campaign contributions which are reported as required by state statute;

(2) Gifts received from family members within the second degree of affinity or consanguinity;

(3) Gifts from an individual based on personal friendship who during the preceding three (3) calendar years:

a. Has not done or sought to do business with the city;

b. Has not sought city action on any issue before the city council or any city board or commission;

c. Is not associated with any business or entity that has done or sought to do business with the city; and

d. Is not associated with any business or entity that has sought city action on any issue before the city council or a city board or commission.

(4) Gifts received among and between fellow city employees and city officials;

(5) Admission to events in which the reporting party participated in connection with official duties;

(6) Payment of or reimbursement of travel and accommodations expenses accepted in connection with official duties which have been reported under section 2-76 (travel reporting requirements); payment for or reimbursement of expenses for travel in excess of authorized rates under city policy are gifts subject to the reporting requirements under this section.

(Ord. No. 2013-05-09-0317, § 2(Att. B), 5-9-13)

Sec. 2-79. Violation of reporting requirements.

Failure to timely file a report required by this ethics code is a violation hereof, as is the knowingly filing of a report with incorrect, misleading, or incomplete information. If an individual inadvertently files an incorrect, misleading, or incomplete report, it is their responsibility to file an amended report as soon as possible, though no later than ten (10) business days after notification or learning of the error.

To file a late or amended report, the person shall use the required report form provided by the city clerk and mark in the appropriate box whether the report is late-filed or an amended report.
(Ord. No. 2013-05-09-0317, § 2(Att. B), 5-9-13; Ord. No. 2024-05-02-0274, § 1(Att. A), 5-2-24)

DIVISION 8. ETHICS REVIEW BOARD

Sec. 2-80. Definitions.

As used in division 8 (ethics review board), the term "ethics laws" includes this code of ethics, codified as chapter 2, article III, divisions 1—7 of the city code, section 141 of the city charter, and V.T.C.A., Local Government Code ch. 171. The term "ethical violation" includes violations of any of those enactments. Other terms used in division 8 (ethics review board) are defined in section 2-42 (definitions).

The term "Municipal Campaign Finance Code" refers to the Code of Municipal Campaign Finance Regulations, codified as chapter 2, article VII of the city code.
(Ord. No. 2013-05-09-0317, § 2(Att. B), 5-9-13)

Sec. 2-81. Structure of the Ethics Review Board.

(a) In accordance with article XIII of the city charter, the independent ethics review board has the powers and duties specified in article XIII of the city charter, chapter 2, article III (ethics code), and chapter 2, article VII (municipal campaign finance code), and other powers and duties prescribed by ordinance.

(b) *Composition.* The ethics review board shall consist of eleven (11) members. The mayor and each member of the city council shall nominate one (1) member of the board. Each nominee must be confirmed by a majority of city council members.

(c) *Terms of office.* Initial board appointments shall be made so that terms are staggered, with six (6) members to serve an initial term of two (2) years and five (5) members to serve an initial term of three (3) years, determined after appointment by lottery. Subsequent appointments shall be for a term of two (2) years beginning on the day after the expiration of the preceding full term. No member of the board shall serve for more than three (3) full terms.

(d) *Qualifications.* Members of the board shall have good moral character and shall be residents of the city. No member of the board shall be:

(1) A salaried city official or employee;

(2) An elected public official;

(3) A candidate for elected public office;

(4) An officer of a political party;

(5) A campaign treasurer, campaign manager, officer or other policy or decision-maker for the campaign of any candidate for elected public office;

(6) A campaign treasurer, campaign manager, officer or other policy or decision-maker for any political action committee as defined in the Texas Election Code;

(7) A member of any city board or commission other than the ethics review board;

(8) A member of any city board or commission for which the position is appointed by city council; or

(9) A lobbyist required to register under division 5 (lobbyists).

Further, no member of the ethics review board shall have any convictions for a felony or a crime of moral turpitude or shall have been found in violation of any provision of the ethics code. The San Antonio Police Department will conduct a criminal background check through the NCIC system for each applicant to the board.

The city council shall support the inclusion of at least one (1) attorney and one (1) individual with expertise in finance or accounting within the membership of the ethics review board.

(e) *Removal.* Members of the ethics review board may be removed from office for cause by a majority of the city council only after a public hearing at which the member was provided with the opportunity to be heard. Grounds for removal include: failure to satisfy, or to continue to satisfy, the qualifications set forth in subsection (d); substantial neglect of duty; gross misconduct in office; inability to discharge the powers or duties of office; or violation of any provision in this code of ethics or a conviction of a felony or crime of moral turpitude.

(f) *Vacancies.* The city council shall fill any vacancy on the board by a person who will serve the remainder of the unexpired term. The nomination to fill a vacancy shall be made by the member of city council (or their successor) who had nominated the person whose successor is to be selected to fill the vacancy.

(g) *Recusal.* A member of the ethics review board shall recuse themselves from any case in which, because of familial relationship, employment, investments, or otherwise, their impartiality might reasonably be questioned. A board member may not participate in official action on any complaint:

(1) That the member initiated;

(2) That involves the member of city council who nominated him or her for a seat on the ethics review board; or

(3) During the pendency of an indictment or information charging the member with

any felony or misdemeanor offense, or after a finding of guilt of such an offense.

If the number of board members who are recused from a case is so large that an ethics review board cannot be convened to consider the complaint, the mayor shall nominate a sufficient number of ad hoc members so that the case can be heard. Ad hoc members of the ethics review board must be confirmed by a majority vote of the city council and serve only for the case in question.

(h) *Chair and vice-chair.* Each year, the board shall meet and elect a chair and a vice-chair from among its members, who will serve one-year terms and may be re-elected. The chair or a majority of the board may call a meeting of the board. The chair shall preside at meetings of the ethics review board and perform other administrative duties. The vice-chair shall assume the duties of the chair in the event of a vacancy in that position.

(i) *Panels.* Each year, at the time of the election of a chair and vice-chair, the chair will also make panel assignments. In the event of vacancies or absences, the chair may make reassignments as needed so that each panel has no fewer than three (3) members of the board.

(j) *Reimbursement.* The members of the ethics review board shall not be compensated but shall be reimbursed for reasonable expenses incurred in the performance of their official duties.
(Ord. No. 2013-05-09-0317, § 2(Att. B), 5-9-13; Ord. No. 2018-06-21-0491, § 1(Att. A), 6-21-18; Ord. No. 2024-05-02-0274, § 1(Att. A), 5-2-24)

Sec. 2-82. Jurisdiction and powers.

(a) Jurisdiction. The ethics review board has jurisdiction to investigate and make findings and conclusions concerning:

(1) An alleged violation of the ethics code enacted from time to time by ordinance;

(2) An alleged violation of regulations governing lobbying enacted from time to time by ordinance;

(3) An alleged violation of local campaign finance regulations enacted from time to time by ordinance; and

(4) An alleged violation of section 141 of the city charter, provided, however, that the ethics review board has no jurisdiction to find or conclude that a city officer or employee has forfeited their office or position.

(b) The ethics review board shall not consider any alleged violation:

(1) That occurred more than two (2) years prior to the date of the filing of the complaint; or

(2) Of sections 2-306 and 2-307 of the municipal campaign finance code if the required statement or report was filed or amended within the ten (10) business-day period provided.

(c) The ethics review board has the discretion to accept or decline consideration of any alleged violation that has been resolved, including by, but not limited to the city manager, or by a governmental agency or board with jurisdiction over the matter.

(d) Termination of city official's or employee's duties. The termination of a city official's or employee's duties does not affect the jurisdiction of the ethics review board with respect to alleged violations occurring prior to the termination of official duties.

(e) Powers. The ethics review board has the power:

(1) To establish, amend, and rescind rules and procedures governing its own internal organization and operations, consistent with ordinances pertaining to the ethics code, including lobbying regulations, and the municipal campaign finance code;

(2) To meet as often as necessary to fulfill its responsibilities;

(3) To designate panels with the power to render decisions on complaints or issue advisory opinions on behalf of the board;

(4) To request from the city manager the assignment of staff necessary to carry out its duties;

(5) To review, index, maintain on file, and dispose of sworn complaints;

(6) To make notifications, extend deadlines, and conduct investigations, both on referral or complaint;

(7) To compel the production of sworn testimony, witnesses and evidence;

(8) To recommend cases for prosecution by appropriate authorities and agencies;

(9) To enforce its decisions by assessing civil fines and other sanctions authorized by ordinance;

(10) To request the city attorney to provide an independent counsel to advise and represent the board, when appropriate or necessary to avoid a conflict of interest;

(11) To provide assistance in the training and education of city officials and employees with respect to their ethical responsibilities;

(12) To prepare an annual report and to recommend to the city council needed or desirable changes in ordinances under its jurisdiction;

(13) To exercise such other powers and duties as may be established by ordinance.

(Ord. No. 2013-05-09-0317, § 2(Att. B), 5-9-13; Ord. No. 2024-05-02-0274, § 1(Att. A), 5-2-24)

Sec. 2-83. Complaints.

(a) Filing. Any person (including a member of the ethics review board or its staff, acting personally or on behalf of the board) who believes that there has been a violation of the ethics laws or the municipal campaign finance code may file a sworn complaint with the city clerk to allege such violations.

A complaint filed in good faith is qualifiedly privileged. A person who knowingly makes a false statement in a complaint, or in proceedings before the ethics review board, is subject to criminal prosecution for perjury (see subsection 2-87(g) (criminal prosecution)) or civil liability for the tort of abuse of process.

(b) Assistance. The city clerk shall provide information to persons who inquire about the process for filing a complaint.

(c) Form. A complaint filed under this section must be in writing and under oath and must set forth in simple, concise, and direct statements:

(1) The name of the complainant;

(2) The street or mailing address and the telephone number of the complainant;

(3) The name of each person complained about;

(4) The position or title of each person complained about;

(5) The nature of the alleged violation, including, if possible, the specific provision of the ethics code or municipal campaign finance code alleged to have been violated;

(6) A statement of the facts constituting the alleged violation and the dates on which or period of time in which the alleged violation occurred; and

(7) All documents or other material available to the complainant that are relevant to the allegation; a list of all documents or other material relevant to the allegation and available to the complainant but that are not in the possession of the complainant, including the location of the documents, if known; and a list of all documents or other material relevant to the allegation but unavailable to the complainant, including the location of the documents, if known.

The complaint must be accompanied by an affidavit stating that the information contained in the complaint is either true and correct or that the complainant has good reason to believe and does believe that the facts alleged constitute a violation of the ethics code or the municipal campaign finance code. If the complaint is based on information and belief, the complaint shall state the source and basis of the information and belief. The complainant shall swear to the facts

by oath before a notary public or other person authorized by law to administer oaths under penalty of perjury. A complaint that is not sworn as required shall not be forwarded by the city clerk to the compliance auditor as provided in subsection (d), but shall be returned to the complainant.

The complaint must state on its face an allegation that, if true, constitutes a violation of a law administered and enforced by the board.

(d) Review by the compliance auditor and notification to the ethics review board and respondents.

(1) A copy of a complaint shall be promptly forwarded by the city clerk to the chair and vice chair of ERB, compliance auditor and city attorney's office who shall each independently review the complaint for compliance with the filing requirements of subsection (c) within five (5) business days of receipt from the city clerk. The city clerk shall notify the respondent(s) of a complaint filed. this notification is for information purposes only and does not trigger subsection (e) until a decision has been made to accept the complaint and forward to the full ERB for consideration.

(2) If the complaint alleges a violation of section 2-306 or section 2-307 of the municipal campaign finance code, the complaint shall be forwarded by the city clerk to the respondent within five (5) business days of receipt by the compliance auditor. As set out in subsection 2-82(b)(2), the timely filing of the campaign bank account statement or the amended report, as verified by the city clerk, shall not be considered a violation. The city clerk shall notify the complainant of the filing of the statement or the amended report by first class mail.

(3) If the complaint alleges a violation of the ethics code, and substantially complies with the filing requirements, the complaint shall be forwarded by the city clerk to the members of the ethics review board and the respondents within ten (10) business days after receipt of the complaint from city clerk. If the complaint does not substantially comply with the filing requirements, the compliance auditor shall return the complaint to the complainant with a letter explaining the defects in the complaint.

(4) The city clerk shall notify the respondent(s) of the resolution of a complaint.

(e) The respondent(s) shall also be provided with a copy of the ethics code and shall be informed:

(1) That, within ten (10) business days of receipt of the complaint, they may file a sworn response with the city clerk;

(2) That failure to file a response does not preclude the ethics review board from adjudicating the complaint;

(3) That a copy of any response filed by the respondent(s) will be provided by the city clerk to the complainant, who may, within five (5) business days of receipt, respond by sworn writing filed with the city clerk, a copy of which shall be provided by the city clerk to the respondent(s);

(4) That the complainant(s) or respondent(s) may request a hearing; and;

(5) That city officials and employees have a duty to cooperate with the ethics review board.

Upon receipt, the city clerk shall forward the response to the compliance auditor, city attorney's office, and the ethics review board.

(f) Frivolous complaint.

(1) For purposes of this section, a "frivolous complaint" is a sworn complaint that is groundless and brought in bad faith or groundless and brought for the purpose of harassment.

(2) By a vote of at least two-thirds (⅔) of those present, the board may order a complainant to show cause why the board

should not determine that the complaint filed by the complainant against a respondent is a frivolous complaint.

(3) In deciding if a complaint is frivolous, the board will be guided by the Texas Rules of Civil Procedure, Rule 13, and interpretations of that rule, and may also consider:

a. The timing of the sworn complaint with respect to when the facts supporting the alleged violation became known or should have become known to the complainant, and with respect to the date of any pending election in which the respondent is a candidate or is involved with a candidacy, if any;

b. The nature and type of any publicity surrounding the filing of the sworn complaint, and the degree of participation by the complainant in publicizing the fact that a sworn complaint was filed with the board;

c. The existence and nature of any relationship between the respondent and the complainant before the complaint was filed;

d. If respondent is a candidate for election to office, the existence and nature of any relationship between the complainant and any candidate or group opposing the respondent;

e. Any evidence that the complainant knew or reasonably should have known that the allegations in the complaint were groundless; and

f. Any evidence of the complainant's motives in filing the complaint.

(4) Notice of an order to show cause shall be given to the complainant, with a copy to the respondent, and shall include:

a. An explanation of why the complaint against a respondent appears to be frivolous; and

b. The date, time, and place of the hearing to be held under this section.

(5) Before making a determination that a sworn complaint against a respondent is a frivolous complaint, the board shall hold a hearing at which the complainant may be heard; the complainant may be accompanied by counsel retained by the complainant.

(6) By a record vote of at least two-thirds (⅔) of those present after the hearing under subsection (5) of this section, the board may determine that a complainant filed a frivolous complaint against a respondent and may recommend sanctions against that complainant.

(g) Sanctions for filing frivolous complaints.

(1) Before imposing a sanction for filing a frivolous complaint, the board shall consider the following factors:

a. The seriousness of the violation, including the nature, circumstances, consequences, extent, and gravity of the violation;

b. The sanction necessary to deter future violations; and

c. Any other matters that justice may require.

(2) The Board may impose the following sanctions:

a. A civil penalty of not more than five hundred dollars ($500.00);

b. Imposition of attorneys' fees incurred by the respondent of the frivolous complaint;

c. Any other sanction permitted by law.

(3) The board may notify the appropriate regulatory or supervisory agency for their appropriate action. This may include a referral to a criminal investigation agency or prosecution entity for investigation of perjury.

(h) Confidentiality. Ex parte communications by members of the ethics review board are prohibited by subsection 2-85(e) (ex parte communications).

(1) The board and its staff shall not communicate any information about a pending sworn complaint, including whether or not a complaint has been filed, to any person other than the respondent, the complainant, and a witness or potential witness identified by the respondent, the complainant, or another witness or potential witness.

(2) Information otherwise confidential under this section may be disclosed by entering it into the record of a formal hearing or ethics review board proceeding.

(3) Requests for records pertaining to complaints shall be responded to in compliance with the Texas Public Information Act and the Texas Open Meetings Act.

(Ord. No. 2013-05-09-0317, § 2(Att. B), 5-9-13; Ord. No. 2018-06-21-0491, § 1(Att. A), 6-21-18; Ord. No. 2024-05-02-0274, § 1(Att. A), 5-2-24)

Sec. 2-84. Compliance auditor and city attorney's office.

(a) Compliance auditor. The compliance auditor shall be selected by the ethics review board and appointed by the city internal auditor. The compliance auditor may be removed from office for cause by the city internal auditor only after consultation with the ethics review board.

(b) The compliance auditor shall perform the following duties:

(1) Receive complaints and responses filed with the city clerk as set forth in section 2-83;

(2) Investigate, marshal, and present to the ethics review board the evidence bearing upon a complaint;

(3) In consultation with city council, the city manager, the ethics review board, human resources department, and the city attorney's office, develop and implement a comprehensive training program for the officials and employees of the city on the provisions of this code of ethics, section 141 of the city charter, and V.T.C.A., Local Government Code ch. 171;

(4) Review complaints for sufficiency;

(5) Recommend acceptance or rejection of complaint made to the ethics review board;

(6) Request additional information from complainant as needed; and

(7) Support the reasonable requests of the ERB.

(c) City attorney's office. The city attorney's office shall perform the following duties:

(1) Act as legal counsel to the compliance auditor and the ethics review board;

(2) Upon request by the compliance auditor, review complaints for legal sufficiency; and

(3) Issue advisory opinions to city officials and employees about the requirements imposed by the ethics laws.

(d) Independent compliance auditor and independent counsel.

(1) An independent attorney, who does not otherwise represent the city, shall be appointed to serve as the independent compliance auditor and counsel when a complaint is filed relating to an alleged violation of the ethics laws by the mayor, a member of the city council, or a candidate for city council.

(2) When a complaint is filed relating to an alleged violation of the ethics laws by a city employee who is a department head or of higher rank, the compliance auditor may recommend the appointment of an independent compliance auditor to serve as compliance auditor for that matter. The city attorney may also recommend the appointment of an independent counsel for that matter.

(3) The city attorney or ethics review board may request the appointment of an independent counsel for a particular case.

(e) Exculpatory evidence. The compliance auditor shall disclose to the ethics review board and provide to the person charged with violating the ethics or municipal campaign finance laws evidence known to the compliance auditor tending to negate guilt or mitigate the seriousness of the offense.

(Ord. No. 2013-05-09-0317, § 2(Att. B), 5-9-13; Ord. No. 2018-06-21-0491, § 1(Att. A), 6-21-18)

Sec. 2-85. Ethics panels and the ethics review board.

(a) Assignment to an ethics panel. The chairperson of the ethics review board may appoint a panel to conduct a preliminary review of an ethics complaint or request for advisory opinion. The panel may present its recommendations for consideration by the board in its entirety. The chair may also designate a panel with the power to render decisions on complaints or issue advisory opinions on behalf of the board. Panels appointed to dispose of complaints or issue advisory opinions must act in accordance with the Open Meetings Act.

(b) Review by ethics review board. The ethics review board will meet to review the complaint, responses, replies to responses and any other information it has requested be provided to assist in consideration of the complaint. The board shall consider whether the facts of the case establish a violation of any provision in the ethics laws, regardless of which provisions, if any, were identified in the complaint as having been allegedly violated. If the board finds that the complaint fails to allege a violation of the ethics code when assuming all facts set forth in the complaint to be true, the board may dismiss the complaint without further proceedings.

(c) Before the board may find that a violation of a particular rule, the respondent must be on notice that compliance with that rule is in issue and must have an opportunity to respond. Notice is conclusively established: if the complaint alleged that the rule was violated; or if the board or the city clerk provides the respondent with written notice of the alleged violation and a ten (10) business-day period within which to respond in writing to the charge.

(d) Scheduling of a hearing. Regardless of whether the complainant or the respondent requests a hearing, the ethics review board has discretion to decide whether to hold a hearing.

(e) Ex parte communications. It is a violation of this code:

(1) For the complainant, the respondent, or any person acting on their behalf to engage or attempt to engage, directly or indirectly, in ex parte communication about the subject matter of a complaint with a member of the ethics review board, or any known witness to the complaint; or

(2) For a member of the ethics review board to:

a. Knowingly entertain an ex parte communication prohibited by subsection (1) of this rule; or

b. Communicate directly or indirectly with any person, other than a member of the ethics review board, its staff, city attorney's office, or the compliance auditor, about any issue of fact or law relating to the complaint.

(f) Duty to cooperate. All city officials and employees shall cooperate with the ethics review board and shall supply requested testimony or evidence to assist it in carrying out its charge. Failure to abide by the obligations imposed by this subsection is a violation of this code of ethics.

(g) Extension of deadlines.

(1) A complainant or respondent who fails to meet a deadline to submit a filing with the ethics review board may file a request to accept the late filing. The complainant or respondent must include within the request a statement of good cause for the board to grant the request. The board may grant a request to accept a late filing for good cause. Any extension given to a respondent pursuant to their request shall extend the deadline for the board to issue a decision under section 2-87 by the amount of time granted.

(2) The board, under its own initiative or at the request of a respondent, may defer consideration of a complaint if the respondent is under investigation by any agency for the activity comprising the subject matter of the complaint, until such time as the investigation has concluded.

(h) Timeliness of notices or submissions. When the ethics code or municipal campaign finance code requires a notice or other document to be submitted or otherwise given to a person or to the ethics review board, the requirement is met in a timely fashion if the document is sent to the person or the board by first-class mail or certified mail addressed with postage or handling charges prepaid and it bears a post office cancellation mark indicating a date within the time required to provide notice or to submit a document, unless another method of submission is expressly required.
(Ord. No. 2013-05-09-0317, § 2(Att. B), 5-9-13; Ord. No. 2018-06-21-0491, § 1(Att. A), 6-21-18; Ord. No. 2024-05-02-0274, § 1(Att. A), 5-2-24)

Sec. 2-86. Hearings.

At any hearing held by the ethics review board during the investigation or disposition of a complaint, the following rules apply:

(1) *General rules.* All witnesses must be sworn and all questioning of witnesses shall be conducted by the members of the ethics review board, city attorney's office, or the compliance auditor. The ethics review board may establish time limits and other rules relating to the participation of any person in the hearing. No person may be held to have violated the ethics laws or the municipal campaign finance code unless a majority of the ethics review board so finds by a preponderance of the evidence.

(2) *Evidence.* The ethics review board shall rely on evidence of which a reasonably prudent person commonly relies in the conduct of the person's affairs. The board shall further abide by the following:

a. The board shall hear evidence relevant to the allegations; and

b. The board shall not consider hearsay unless it finds the nature of the information is reliable and useful.

(3) *The person charged (respondent).* The person charged in the complaint has the right to attend the hearing, the right to make a statement, the right to present witnesses, and the right to be accompanied by legal counsel or another advisor. Only legal counsel to the person charged in the complaint may advise that person during the course of the hearing, but may not speak on their behalf, except with the permission of the board. The time permitted for presentation will be at the discretion of the board.

(4) *The complainant.* The complainant has the right to attend the hearing, the right to make a statement, and the right to be accompanied by legal counsel or another advisor. Only legal counsel to the complainant may advise the complainant during the course of the hearing, but may not speak on behalf of the complainant, except with the permission of the board. Witnesses may not be presented by the complainant, except with the permission of the board. The time permitted for presentation will be at the discretion of the board.

(Ord. No. 2013-05-09-0317, § 2(Att. B), 5-9-13; Ord. No. 2024-05-02-0274, § 1(Att. A), 5-2-24)

Sec. 2-87. Disposition.

(a) *Written opinion.* The board shall issue a decision within ninety (90) calendar days after the filing of a complaint. This deadline shall be extended by any amount of time granted to a respondent pursuant to a respondent's request for additional time to respond or to attend proceedings. The board shall state in a written opinion its findings of fact and conclusions of law. The written opinion shall either:

(1) Dismiss the complaint; or

(2) Upon finding that there has been a violation of the ethics laws or the municipal campaign finance code:

a. Impose sanctions in accordance with these regulations; or

b. Recommend criminal prosecution and/or civil remedies, in accordance with this rule; or

c. State why no remedial action is imposed or recommended.

If the board determines that a violation has occurred, the opinion shall identify in writing the particular rule or rules violated. If the complaint is dismissed, the grounds for the dismissal shall be set forth in the opinion. The failure of the board to comply within the above time limits may result in the charge being dismissed for want of prosecution. Prior to such dismissal, the complainant will be given notice and an opportunity to request continuance of the action.

(b) *Notification.* Copies of the opinion shall be forwarded to the complainant, the person charged in the complaint, the city attorney's office, compliance auditor, and any member of the ethics review board who did not participate in the disposition of the case. A copy of the opinion shall also be forwarded to the city clerk, who shall make it available as authorized by law.

(c) *Recommendations.* A recommendation for criminal prosecution shall be forwarded to the appropriate law enforcement agency.

(d) *Similar charges barred.* If the complaint is dismissed because the evidence failed to establish a violation of the ethics laws or the municipal campaign finance code, the ethics review board shall not entertain any other similar complaint based on substantially the same evidence.

(e) *Factors relevant to sanctions.*

(1) *General violations (non-reporting violations).* In deciding whether to recommend or impose, in the case of a violation of the ethics laws, criminal prosecution and/or civil remedies, the ethics review board shall take into account relevant considerations, including, but not limited to, the following:

a. The culpability of the person charged in the complaint;

b. The harm to public or private interests resulting from the violation;

c. The necessity of preserving public confidence in the conduct of local government;

d. Whether there is evidence of a pattern of disregard for ethical obligations; and

e. Whether remedial action has been taken that will mitigate the adverse effect of the violation.

To impose or recommend sanctions for a first violation of the ethics code or the municipal campaign finance code, other than a letter of notification, a letter of admonition or a referral to training, the board must find by a preponderance of the evidence that the person acted knowingly, unless otherwise provided by this code.

(2) *Reporting requirement violations.* To impose sanctions, other than a letter of notification, a letter of admonition or a referral to training, for untimely or incomplete submission of reports required by the ethics code or the municipal campaign finance code, the board must determine by a preponderance of the evidence that the person knowingly:

a. Failed to file the report on time; or

b. Failed to include in the report information that is required to be included; or

c. Submitted inaccurate or false information.

Failure to submit a required report or an amended report after receipt of notice of non-compliance by the city clerk, the compliance auditor, or the ethics review board may be considered evidence of a knowing failure to comply with reporting requirements.

Upon finding a second or subsequent untimely, incomplete or inaccurate submission of reports within a two-year period of time, the board may issue a

letter of reprimand regardless of whether the second or subsequent violation was made knowingly by the filer.

(f) *Civil sanctions for ethics code violations.* The following civil remedies may be recommended or imposed by the ethics review board which finds that the ethics laws have been violated:

(1) *Disciplinary action.* Civil service employees who violate this code of ethics may be disciplined in accordance with city personnel rules and procedures. Other city officials and employees who engage in conduct that violates this code may be notified, warned, reprimanded, suspended, or removed from office or employment by the appointing authority, or by a person or body authorized by law to impose such remedies. Disciplinary action under this section may be imposed in addition to any other penalty or remedy contained in this code of ethics or any other law. The ethics review board may refer a violation to the city manager or their designee for disciplinary action in accordance with any applicable municipal civil service rules;

(2) *Suit for damages or injunctive relief.* This code of ethics has been enacted not only to further the policy stated in section 2-41 (statement of purpose), but to protect the city and any other person from any losses or increased costs incurred by the city or other person as a result of the violation of these provisions. It is the intent of the city that this ethics code can and should be recognized by a court as a proper basis for a civil cause of action for damages or injunctive relief based upon a violation of its provisions, and that such forms of redress should be available in addition to any other penalty or remedy contained in this ethics code or the municipal campaign finance code or any other law. The ethics review board may refer a violation of the ethics code or the municipal campaign finance code to the city attorney's office for consideration of a suit by the city for damages or injunctive relief.

(3) *Disqualification from contracting or lobbying.*

a. If the ethics review board finds that any person (including business entities and non-profit entities) has intentionally or knowingly violated any provision of the ethics code, or has intentionally or knowingly assisted another person in violating any provision of the ethics code, or has violated a provision or assisted another in a violation that the person should have known was a violation of the ethics code, the ethics review board may recommend to the city council that the person be prohibited from entering into any contract with the city or prohibited from lobbying on behalf of clients before the city for a period not to exceed three (3) years.

An entity may also be disqualified from contracting based on the conduct of an employee or agent in violation of this code.

b. It is a violation of this code of ethics:

1. For a person debarred from entering into a contract with the city to enter, or attempt to enter, into a contract with the city during the period of disqualification from contracting; or

2. For a city official or employee to knowingly assist a violation of subsection b.1. of this rule.

c. Nothing in this section shall be construed to prohibit any person from receiving a service or benefit, or from using a facility, which is generally available to the public, according to the same terms.

(4) *Recommendation to void or ratify contract.* If the ethics review board finds that

there has been an intentional or knowing violation of any provision of the ethics code, or that a person has committed a violation that they should have known was a violation of the code that is related to the awarding of a contract, the ethics review board must vote on whether to recommend to the city council that the contract be ratified or voided. Such action shall not affect the imposition of any penalty or remedy contained in this code of ethics or any other law.

(5) *Civil fine.* The ethics review board may impose upon any person, whether or not an official or employee of the city, who violates any provision of this code of ethics a fine not exceeding five hundred dollars ($500.00). Each day after any filing deadline imposed by division 5 (lobbyists) and division 7 (financial disclosure) or the municipal campaign finance code for which any required statement has not been filed, or for which a statement on file is incorrect, misleading, or incomplete, constitutes a separate offense.

(6) *Letter of notification.* The ethics review board may issue a letter of notification to any person, whether or not an official or employee of the city, when the board finds that a violation of the code of ethics was clearly unintentional or inadvertent. The letter must advise the person to whom it is directed of any steps to be taken to avoid future violations.

(7) *Letter of admonition.* The ethics review board may issue to any person, whether or not an official or employee of the city, a letter of admonition when the board finds that the violation of the code of ethics was minor and/or may have been unintentional or inadvertent.

(8) *Letter of reprimand.* The ethics review board may issue to any person, whether or not an official or employee of the city, a letter of reprimand when the board finds that the person has intentionally or knowingly violated the code of ethics.

(9) *Referral to ethics training.* Upon finding of violation of the ethics code, the ethics review board may require a city official or employee to attend ethics code training.

(g) *Criminal prosecution.* The ethics review board may recommend to the appropriate law enforcement agency criminal prosecution under this section or V.T.C.A., Local Government Code ch. 171. Prosecution of any person by the city attorney for a violation of this ethics code shall not be undertaken until a complaint is disposed of in accordance with section 2-87. However, the absence of a recommendation to prosecute from an ethics review board to the city attorney shall not preclude the city attorney from exercising their prosecutorial discretion to prosecute a violation of this ethics code. Any person who files a false sworn statement under division 5 (lobbyists), division 7 (financial disclosure), or division 8 (ethics review board) or the municipal campaign finance code is subject to criminal prosecution for perjury under the laws of the state.

(h) *Reconsideration.* Within five (5) business days of receiving the final opinion of the ethics review board, the complainant or respondent may request the ethics review board to reconsider its decision. The request must be filed with the city clerk. Within ten (10) business days after filing with the city clerk, the originally assigned preliminary reviewing panel shall review the request for reconsideration. If the panel concludes reconsideration is warranted, it shall bring the request within another ten (10) business days to the full board for decision on whether to grant reconsideration. If the full board grants reconsideration, the board may then order further proceedings in accordance with the provisions of this code. If no panel was assigned to conduct a preliminary review, the chair shall review the request and may in their discretion decline the reconsideration or refer the matter to the full board for reconsideration within ten (10) business days of receiving the request.

(i) *Council action.* City council shall dispose of a recommendation from the ethics review board within ninety (90) calendar days of receiving such recommendation. The recommenda-

tion(s) of the ethics review board may be accepted, rejected, modified, or recommitted to that board for further action or clarification. Failure to take action within specified time limits may result in the charge being dismissed for want of prosecution. Prior to such dismissal, the complainant will be given notice and an opportunity to request continuance of the action.

(j) *Appeals.* A decision of the ethics review board is final unless the person aggrieved by the decision appeals to the State District Court in Bexar County no later than twenty (20) business days after the date the board renders the decision.

If the decision of the ethics review board is not supported by substantial evidence, the district court may reverse or affirm the board's decision in whole or in part, or may modify the board's decision if substantial rights of the aggrieved person have been prejudiced. Costs of an appeal may not be assessed against the board, individual board members, or the city.
(Ord. No. 2013-05-09-0317, § 2(Att. B), 5-9-13; Ord. No. 2018-06-21-0491, § 1(Att. A), 6-21-18; Ord. No. 2024-05-02-0274, § 1(Att. A), 5-2-24)

Sec. 2-88. Petition for declaratory ruling and waiver.

(a) Any city official or employee against whom public allegations of ethics or campaign finance violations have been made in the media or elsewhere shall have the right to file a sworn statement with the city clerk affirming their innocence, and to request the ethics review board to investigate and make known its findings, and make any relevant recommendations concerning the issue.

(b) Any city official or employee or person subject to the ethics code or municipal campaign finance code who believes they have unknowingly committed an act in violation of a provision of this ethics code or the municipal campaign finance code may submit a sworn request for a waiver of the application of either code for that past act. The ethics review board shall investigate and make known its findings, and make any relevant recommendations to the city council concerning the issue. The city council may only act to waive the application of either code following receipt of the recommendation of the ethics review board.

(c) The ethics review board is authorized to impose the sanctions contained within this code when making their ruling.
(Ord. No. 2013-05-09-0317, § 2(Att. B), 5-9-13; Ord. No. 2018-06-21-0491, § 1(Att. A), 6-21-18; Ord. No. 2024-05-02-0274, § 1(Att. A), 5-2-24)

Editor's note—Ord. No. 2018-06-21-0491, § 1(Att. A), adopted June 21, 2018, amended § 2-88, and in so doing changed the title of said section from "Petition for declaratory ruling" to "Petition for declaratory ruling and waiver," as set out herein.

Sec. 2-89. Advisory opinions.

(a) *Advisory opinions issued by the ethics review board.*

(1) *Ethics code inquiries by persons other than city officials and employees.*

a. By writing filed with the city clerk, any person other than a city official or employee may request an advisory opinion with respect to the interpretation of the ethics laws, but only with respect to whether proposed action by that person would violate the ethics laws. The city clerk shall promptly transmit all requests for advisory opinions to the compliance auditor and the chair of the ethics review board. City officials and employees may request advisory opinions from the city attorney pursuant to subsection (b).

b. Within thirty (30) days of receipt by the chair of the ethics review board of a request for an advisory opinion, the board, acting en banc or through a designated ethics panel, shall issue a written advisory opinion. During the preparation of the opinion, the board may consult with the compliance auditor, the city attorney's office, and other appropriate persons. An advisory opinion shall not reveal the name of the person who made the request, if that person requested anonymity, in which case the opinion

shall be written in the form of a response to an anonymous, hypothetical fact situation. A copy of the opinion shall be indexed and kept by the city clerk as part of its records for a period of not less than five (5) years. In addition, copies of the opinion shall be forwarded by the chair of the ethics review board, or the compliance auditor, to the person who requested the opinion, the members of the ethics review board, the city attorney's office, and to the city clerk. The city clerk shall make the opinion available as a public record in accordance with the Local Government Records Act, and promptly post the opinion for a period of no less than five (5) years on the Internet via the City of San Antonio homepage.

(2) *Opinions initiated by the board*. On its own initiative, the ethics review board, acting as the full board or through a designated ethics panel, may issue a written advisory opinion with respect to the interpretation of the ethics laws or the municipal campaign finance code as they apply to persons other than city officials and employees if a majority of the board determines that an opinion would be in the public interest or in the interest of such person or persons subject to the provisions of the ethics laws. Such an opinion may not include the name of any individual who may be affected by the opinion. A copy of any such opinion shall be indexed and kept by the city clerk as part of its records for a period of not less than five (5) years. In addition, copies of the opinion shall be forwarded by the chair of the ethics review board, or their designee, to the compliance auditor, the city attorney's office, and the city clerk. The city clerk shall make the opinion available as a public record in accordance with the Local Government Records Act, and promptly post the opinion for a period of no less than five (5) years on the Internet via the City of San Antonio homepage.

(3) *Reliance.* A person who reasonably and in good faith acts in accordance with an advisory opinion issued by the ethics review board may not be found to have violated the ethics laws by engaging in conduct approved in the advisory opinion, provided that:

a. They requested the issuance of the opinion;

b. The request for an opinion fairly and accurately disclosed all relevant facts; and

c. Less than five (5) years elapsed between the date the opinion was issued and the date of the conduct in question.

(b) *Ethics advisory opinions issued by the city attorney's office.*

(1) *Ethics inquiries by city officials and employees.*

a. By writing filed with the office of the city attorney, any city official or employee may request an advisory opinion with respect to whether proposed action by that person would violate the ethics laws.

b. Within twenty (20) business days of receipt of the request, the office of the city attorney shall issue a written advisory opinion. Opinions that address new issues and that are instructive on the application of the ethics laws shall be posted on the ethics webpage in a manner that does not reveal the identity of the individual requesting the opinion.

(2) *Reliance.* A person who reasonably and in good faith acts in accordance with a written advisory opinion issued by the city attorney's office may not be found to

have violated the ethics laws by engaging in conduct approved in the advisory opinion, provided that:

a. They requested the issuance of the opinion;

b. The request for an opinion fairly and accurately disclosed all relevant facts; and

c. Less than five (5) years elapsed between the date the opinion was issued and the date of the conduct in question.

(Ord. No. 2013-05-09-0317, § 2(Att. B), 5-9-13; Ord. No. 2018-06-21-0491, § 1(Att. A), 6-21-18; Ord. No. 2024-05-02-0274, § 1(Att. A), 5-2-24)

Sec. 2-90. Annual report.

The ethics review board shall prepare and submit an annual report to the mayor and city council detailing the activities of the board during the prior year. The format for the report shall be designed to maximize public and private understanding of the board's operations, and shall include a summary of the content of ethics opinions issued by the board and a listing of current city lobbyists based on information gathered by the board from records on file with the city clerk. The city clerk shall post the report on the city's ethics webpage.
(Ord. No. 2013-05-09-0317, § 2(Att. B), 5-9-13)

Sec. 2-91. Public records and open meetings.

Meetings and other proceedings of the ethics review board will be conducted in compliance with the Texas Open Meetings Act. Requests for records will be handled in compliance with the Texas Public Information Act.
(Ord. No. 2013-05-09-0317, § 2(Att. B), 5-9-13)

DIVISION 9. ADMINISTRATIVE PROVISIONS

Sec. 2-92. Reserved.

Editor's note—Ord. No. 2024-05-02-0274, § 1(Att. A), adopted May 2, 2024, repealed § 2-92, which pertained to other obligations and derived from Ord. No. 2013-05-09-0317, § 2(Att. B), 5-9-13.

Sec. 2-93. Compliance auditor review.

The compliance auditor shall conduct a compliance review of political contributions and financial disclosure documents filed under the provisions of this ethics code and the municipal campaign finance code, including identifying conflicts of interests, in connection with the city's solicitations for all high profile discretionary contracts, and shall conduct a random sampling for all other contracts. The compliance auditor shall report all findings to the city manager, city internal auditor, city council audit committee, the city attorney, and the ethics review board, for appropriate action.
(Ord. No. 2013-05-09-0317, § 2(Att. B), 5-9-13)

Sec. 2-94. Distribution and training.

(a) Within thirty (30) days after entering upon the duties of their position, every new official or employee shall be furnished with information about this code of ethics. The failure of any person to receive a copy of this code shall have no effect on that person's duty to comply with this code or on the enforcement of its provisions. Upon appointment to a board or commission, such official shall be provided with a copy of the ethics code. The code of ethics shall be posted on the city's webpage.

(b) The compliance auditor, in consultation with city council, the city manager, the ethics review board, human resources department and city attorney's office, shall develop and implement a comprehensive training program for the officials and employees of the city on the provisions of this code of ethics, section 141 of the city charter, and V.T.C.A., Local Government Code ch. 171. Such materials and programs shall be designed to maximize understanding of the obligations imposed by these ethics laws, as well as to prepare city officials and employees to ensure the good judgment necessary to accomplish the statement of purpose in section 2-41 above.

(c) The office of the city manager and department of human resources shall enact an administrative directive requiring that all departments provide their employees with training on the ethics code at least once every other calendar year. Training shall be provided to all city

departments by video or live presentation and will include educational materials. Additional presentations shall be offered to any department where necessary to accommodate large numbers of employees.

(d) The office of the city attorney shall notify the compliance auditor and department directors regarding any significant amendments to the ethics code within twenty (20) business days of adoption. Department directors shall disseminate the information to department employees.

(e) Information shall be provided to employees terminating city service regarding the restrictions on former city employees in division 3 of this code.
(Ord. No. 2013-05-09-0317, § 2(Att. B), 5-9-13; Ord. No. 2024-05-02-0274, § 1(Att. A), 5-2-24)

Sec. 2-95. Severability.

If any provision of this code is found by a court of competent jurisdiction to be invalid or unconstitutional, or if the application of this code to any person or circumstances is found to be invalid or unconstitutional, such invalidity or unconstitutionality shall not affect the other provisions or applications of this code which can be given effect without the invalid or unconstitutional provision or application.
(Ord. No. 2013-05-09-0317, § 2(Att. B), 5-9-13)

Secs. 2-96—2-105. Reserved.

ARTICLE IV. EMPLOYEE RELATIONS*

DIVISION 1. RESERVED†

Secs. 2-106—2-111. Reserved.

*__Editor's note—__Ord. No. 2013-09-05-0577, § 2, adopted September 5, 2013, changed the title of article IV from "Equal opportunity and employee relations" to "Employee relations."

†__Editor's note—__Ord. No. 2013-09-05-0577, § 2, adopted September 5, 2013, repealed the former divisions 1 and 2, §§ 2-106—2-111 and 2-121—2-125, which pertained to general equal opportunity employment provisions and the office of employee relations, respectively, and derived from the Code of 1959, §§ 2-18—2-24; Ord. No. 39891, §§ 1—7, adopted September 2, 1971; Ord. No. 41620, § 1, adopted December 21, 1972, and Ord. No. 43044, § 1, adopted November 21, 1973.

For current provisions pertaining to equal opportunity employment, the user's attention is directed to article X of this chapter. For current provisions pertaining to the office of employee relations, the user's attention is directed to division 3 of this article.

DIVISION 2. RESERVED‡

Secs. 2-112—2-120. Reserved.

‡__Editor's note—__See editor's note at division 1.

DIVISION 3. OFFICE OF EMPLOYEE RELATIONS, LABOR RELATIONS DIVISION**

Sec. 2-121. Created.

There is hereby created an office of employee relations consisting of two (2) divisions; the labor relations division and the equal employment opportunity division (EEO).
(Ord. No. 2013-09-05-0577, § 2, 9-5-13)

Sec. 2-122. Policy.

The city will maintain a policy which ensures city employees the right to present grievances concerning their wages, hours of work, or conditions of work, either individually or through a representative that does not claim the right to strike.
(Ord. No. 2013-09-05-0577, § 2, 9-5-13)

Sec. 2-123. Grievances.

Grievances concerning wages, hours of work or conditions of work and formal complaints of discrimination may be registered with the office of employee relations. Grievances concerning wages, hours and conditions of work are subject to discussion between the individual, or his representative, and city management represented by the labor relations division. Additionally, formal complaints of discrimination will be promptly investigated by the EEO division of

**__Editor's note—__Ord. No. 2013-09-05-0577, § 2, adopted September 5, 2013, amended division 3 in its entirety to read as herein set out. Formerly, division 3, § 2-136, pertained to affirmative action, and derived from Ord. No. 58032, adopted December 15, 1983, and Ord. No. 93104, § 1, adopted December 14, 2000.

Cross reference—Non-discrimination policies, § 2-550 et seq.

employee relations and the findings will be acted upon without undue delay. Employees or applicants registering formal complaints of discrimination will be free of reprisal, harassment, intimidation, or retaliation.
(Ord. No. 2013-09-05-0577, § 2, 9-5-13)

Sec. 2-124. Functions.

The office of employee relations, under the direction of the director of employee relations, will be established within the office of the city manager and will be responsible for the following functions:

(1) Labor relations division:

a. Discusses, arbitrates, or negotiates with employees, or their representative, on matters concerning wages, hours, and working conditions in such a manner that is not inconsistent with the public policy as established by statutes of the state;

b. Stays abreast of labor laws, court decisions and other developments in the field of public sector labor relations which may affect city personnel management, and advises city management in these matters;

c. Develops and maintains current labor market data. Conducts comparability surveys and studies in conjunction with the director of personnel determines parity and equity of jobs; develops productivity measures for judging organizational output and means of improving productivity and, such other information which assists city management in maintaining a fair and equitable posture with regard to employee wages, hours, and conditions of work;

d. Develops and maintains current a grievance review system consistent with the city Charter and in keeping with such understandings as may be arrived at with employees;

e. Assists city departments in developing contingency strike plans;

f. Monitors and assists in implementing such agreements as may result from conferring with employees on labor grievances;

g. May, at the direction of the city manager, represent the city position on labor matters to state or federal government officials;

(Ord. No. 2013-09-05-0577, § 2, 9-5-13)

Secs. 2-125—2-136. Reserved.

DIVISION 4. EMPLOYEE-MANAGEMENT COMMITTEE

Sec. 2-137. Consultation with city employees.

(a) City management will consult with employees and registered employee organizations on terms and conditions of employment through the employee-management committee established by this division in accordance with the process established by this division.

(b) This division does not apply to an employee whose terms and conditions of employment are governed by a collective bargaining agreement authorized by state law or to an employee organization authorized to engage in collective bargaining with the city on behalf of its members.

(c) Nothing in this division is intended nor shall it be construed to authorize collective bargaining, a collective bargaining agreement of any type or characterization, or to recognize a registered employee organization as a bargaining agent for any group of employees. The city is not obligated to implement any issue discussed during consultations and retains the right to unilaterally determine employment conditions for employees.

(d) In this division:

(1) *Consultation* means that the employees, representative(s) of registered employee organizations, and city management shall meet to discuss terms and conditions of

employment affecting employees. Although no party is required to agree to a proposal, it is expected that all participants will consult in good faith to reach consensus on issues and matters raised.

(2) *Employee* means an individual employed by the city, but does not include a confidential, or managerial employee or an employee described by subsection (b).

(3) *Confidential employee* means an employee:

a. Who has access to confidential or discretionary information regarding the formulation of city policy or procedures;

b. Whose functional responsibilities or knowledge concerning employee relations makes the employee's membership in an employee organization incompatible with that employee's duties; or

c. Who is the executive secretary of the chief administrator or executive officer of a department.

(4) *Managerial employee* means an employee who:

a. Is engaged predominantly in executive functions, or

b. Charged with the responsibility of directing the effectuation of management policies and practices.

(5) *Terms and conditions of employment* means wages, salaries, hours and other terms and conditions of employment with the city, including but not limited to:

a. Compensation and incentive plans;

b. Polices related to employee attendance, leave and hours of employment;

c. Recommendations concerning employee health insurance, life insurance and other employee benefits;

d. The grievance process (but not an individual or group grievance that is to be considered pursuant to that process);

e. Recommendations made to the legislature concerning the terms and conditions of covered employees;

f. Training, safety, and equipment; and

g. All other issues related to working conditions, wages, hours and conditions of employment.

(Ord. No. 99630, § 1, 8-26-04)

Sec. 2-138. Employee-management committee.

(a) The employee-management committee will consist of the following:

(1) One (1) representative from each registered employee organization;

(2) One (1) city employee member of each registered employee organization, as designated by the registered employee organization;

(3) One (1) representative from the city manager's office;

(4) One (1) representative from the human resources department (director of human resources or designee);

(5) Three (3) department directors (on a rotating basis); and

(6) One (1) employee from each of the EEO categories designated in subsection (c).

(b) For purposes of this division, a "registered employee organization" means an association or organization that includes among its members employees of the city and that exists for the purpose of dealing with an employer concerning terms and conditions of employment, and which meets all of the following eligibility criteria:

(1) Certified copies of the association or organization's charter, bylaws, and a listing of the name, address, and phone number of the business agent for the association and the officers of the associa-

tion, and any amendments thereto, have been provided to and are on file with the director of human resources; and

(2) The director of human resources has sufficient evidence that the association or organization represents, as members, either:

a. Five (5) percent of the total number of employees "eligible" or "targeted" for membership by the association or organization, if that population is less than one thousand (1,000) employees, or

b. Fifty (50) employees.

A signed form authorizing deduction and payment of dues to an association or organization from an employee's paycheck shall be considered proof of membership by that employee. The director of human resources shall audit the membership requirement established by this subsection (b)(2) on a semi-annual basis. An association or organization that does not meet this eligibility requirement shall be given a three-month notice and the opportunity to provide evidence of sufficient membership before losing eligibility to participate on the employee-management committee.

(3) Organizations not certified within thirty (30) days of the establishment of this ordinance may only petition for recognition and respective representation on the committee during the semi-annual certification/audit period mentioned in subsection (b)(2).

(4) Representatives seated in accordance with subsections (a)(1) and (a)(2) shall collectively cast a single vote.

(c) An election will be conducted bi-annually by the city clerk's office to determine the representation for each EEO category/unit listed below. "Representation" can be by either a registered employee organization or individual employee:

Office/clerical;

Para-professionals;

Protective services;

Professionals;

Service maintenance;

Skilled craft; and

Technician.

(1) To be placed on the ballot, a registered employee organization or an individual employee must submit a petition approved by the city clerk's office with signatures representing a minimum of ten (10) percent of employees in the respective EEO category. The signatures will be certified by the city clerk's office, with assistance provided by the human resources department.

(2) Eligible "candidates" will be placed on the ballot in random order as determined by drawing. The organization or individual that receives a plurality of the votes during the election shall be deemed the representative for the category.

(3) For individual employees, they shall select an alternate at least five business (5) days prior to the election. The individual's and alternate's names both shall appear on the ballot as a ticket.

(4) Registered employee organizations shall select the representatives in a manner of their choosing. The employees they select may change at any time at the organization's discretion.

(5) The winners of the election in each EEO category will serve for three (3) years, to coincide with the fiscal year, beginning with fiscal year 2006—2007.

(6) Due to the timing of the effective date of this division to the fiscal year, the first term will be guided by the timeline set forth in section 2-140.2.

(7) The city clerk shall have final determination authority on the hours, location and date of an election, and may cancel an election should any candidate run unopposed.

(d) Any employee on the committee must have completed his or her initial probationary period and must not have incurred any of the following disciplinary actions within the six (6) months prior to selection; suspension, disciplinary demotion, or termination. Any employee who resigns from the city or who receives a finalized disciplinary suspension, demotion or termination during his or her term will be removed from the committee and the alternate employee in that category will be selected to serve the remainder of that member's term.

(e) Each employee organization will designate one (1) covered employee from its membership. A committee member selected under this subsection serves at the pleasure of their respective organization(s). A change in a designated representative by an employee association/ organization shall be communicated in writing to the human resources department at least ten (10) days prior to the meeting.

(f) If for any reason any employee cannot or chooses not to serve the full term, the alternate employee will serve the remainder of that employee's term. That alternate shall then select a qualified alternate from the respective EEO category.

(g) All employee committee members will be paid for time spent at meetings, even if not assigned to 7:45 a.m.—4:30 p.m. shift.

(h) The city will allow up to twenty (20) hours of administrative leave per calendar quarter to be utilized by the individual employee (or employees, if more than one is designated in a calendar quarter by an association) assigned to an EEO representative slot on the employee-management committee. In no event will more than twenty (20) total hours be granted by an employee or a combination of employees assigned to an EEO category position within a calendar quarter. This leave is to be used for meeting preparation for employee-management committee meetings or subcommittee meetings of the employee-management committee.
(Ord. No. 99630, § 1, 8-26-04; Ord. No. 2006-06-29-0819, §§ 1—4, 6-29-06)

Sec. 2-139. Meetings of the employee-management committee.

(a) The employee-management committee shall be scheduled to meet at least once each quarter, or more frequently as determined by the city manager.

(b) An agenda will be distributed to all members at least five (5) business days prior to each meeting and include all topics of discussion. Topics must involve issues of a general nature or suggestions for improved or more effective operation on a citywide basis. The agenda for the following meeting will be discussed and voted on for approval at each meeting of the committee, with topics receiving a majority vote placed on the agenda for the next meeting.

(c) Meetings of the employee-management committee shall be audio taped. A copy of the audiotape of each meeting shall be retained by the director of human resources in accordance with applicable state law.

(d) Meetings will be of an informal nature. Minutes, including items discussed and solutions proposed, will be prepared by the human resources department and copies will be provided to all committee members at least five (5) business days prior to the next meeting. Minutes shall be approved by majority vote of the members in attendance at the meeting for which minutes are proposed, with such vote being documented by signatures of the members present and said document being attached to the approved minutes. The director of human resources shall retain a copy of the approved minutes in accordance with applicable law.

(e) The director of human resources shall report on the status of consultations through the employee-management committee during the annual budget presentation to the city council and to the appropriate city council committee as established by ordinance, as needed or desired by the committee or its chair.
(Ord. No. 99630, § 1, 8-26-04)

Sec. 2-140. Employee rights concerning employee organizations.

(a) An employee shall not be discriminated against for discussing or expressing his or her view regarding workplace issues, membership in and/or representation by an employee organization.

(b) City employees are free to communicate with one another and with representatives of employee organizations on pertinent issues and to receive and distribute literature regarding union issues during non-work periods and in non-work areas.
(Ord. No. 99630, § 1, 8-26-04)

Sec. 2-140.1. Review.

This division will be reviewed in its entirety by the city council six (6) months prior to the end of FY 2006 (March 2006) and thereafter every four (4) years.
(Ord. No. 99630, § 1, 8-26-04)

Sec. 2-140.2. Appendix A.

Petition filing deadline for EEO units: July 1st—September 30th

Collection of petitions shall be for a period of three (3) months, beginning on July 1st through the end of September, at which time petitions shall be submitted to the city clerk's office. A petition signature is invalid if the signer signed the petition earlier than the July 1st starting date or later than September 30.

Elections held not later than October 31st.

Elected EEO occupational representatives begin terms November 1st.

Term ends: September 30th.
(Ord. No. 99630, App. A, 8-26-04; Ord. No. 2006-06-29-0819, § 5, 6-29-06)

Editor's note—Ord. No. 99630, adopted August 26, 2004, enacted provisions intended for use as Appendix A. To preserve the style of the Code, and at the discretion of the editor, said provisions have been redesignated as § 2-140.2.

ARTICLE V. HISTORIC AND DESIGN REVIEW COMMISSION*

Sec. 2-141. Creation.

There is hereby created the historic and design review commission for the City of San Antonio, effective November 1, 1992.
(Ord. No. 76514, § 1, 9-17-92)

Sec. 2-142. Replacement of the three design review boards.

The board of review for historic district and landmarks, the River Walk advisory commission, and the fine arts commission are hereby dissolved as of October 31, 1992 and shall be replaced by the historic and design review commission ("commission"), effective November 1, 1992.
(Ord. No. 76514, § 2, 9-17-92)

Sec. 2-143. Duties, functions, and jurisdiction of said new commission.

(a) The commission shall serve as an advisory body to the directors of planning, parks and recreation, building inspections, and other appropriate heads of municipal departments, consistent with section 49 of the city charter and the city manager. A person dissatisfied with commission action shall have the right to appeal said action to the city council within the time frame consistent with existing ordinances.

(b) The commission shall have no authority to bind the City of San Antonio by contract or otherwise.

(c) Said commission shall have the following duties and functions:

(1) To assume the historic and design duties and functions of the following three (3) entities:

a. The board of review for historic districts and landmarks as stated in

*__Editor's note—__Ordinance No. 76514, adopted Sep. 17, 1992, did not specifically amend this Code; hence, codification of §§ 1—5 of said ordinance as §§ 2-141—2-145 herein was at the editor's discretion.

Cross reference—Board of review of historic districts and landmarks, § 35-3406(b).

division 10, Section 35-3406, part (b), of the unified development code.

b. The river walk advisory commission as stated in Ordinance No. 30238, passed and approved March 28, 1962, and as stated in the River Walk policy guidelines, adopted by Ordinance No. 69351. Management issues currently considered by the river walk advisory commission shall become a staff administrative review function.

c. The fine arts commission as stated in section 4, part I of Ordinance No. 33874, passed and approved November 18, 1965.

(2) To work with the city staff in the development of recommendations to the city council regarding consolidation of ordinances, bylaws, procedures, and policy and design manuals concerned with historic and design review responsibilities, specifically those concerned with the board of review for historic districts and landmarks, the River Walk advisory commission, and the fine arts commission. Recommendations shall be made to the city council through the city manager by November 1, 1993.

(d) Jurisdiction of the commission shall be in the same geographic areas as said three (3) entities and, specifically shall be over private properties with local, state, and national historic district or landmark designation, special districts such as the River Walk, and land belonging to the city, including, but not limited to, city structures, plazas, parks, appurtenances, public rights-of-way, and public art.
(Ord. No. 76514, § 3, 9-17-92)

Sec. 2-144. Commission composition and qualifications.

The commission shall be composed of 15 members. To enable the City of San Antonio to achieve compliance as a "certified local government" under the rules incorporating the provisions of the U.S. Historic Preservation Act of 1966, as amended, and title 13, Texas Administrative Code (TAC), Cultural Resources, part II, Texas Historical Commission, chapter 15, specifically 13 TAC § 15.6(f) (3) (C), all members shall have demonstrated "interest, competence, or knowledge in historic preservation." Composition shall be from three (3) categories of members from the following disciplines or backgrounds:

(1) One (1) representative shall be from each of the following seven (7) disciplines:
   a. Architecture (licensed in the State of Texas); History; Architectural History; Archaeology; and Planning, in order to achieve compliance with the U.S. Historic Preservation Act, as well as, applicable Texas law.
   b. Landscape Architecture (licensed in the State of Texas and Public Art, to provide design expertise related to the River Walk and public art.

(2) Four (4) individuals in a business/professional category which shall include disciplines and backgrounds in: Real Estate/Commercial Development; Economic Development; Law; Banking or Accounting.

(3) Four (4) individuals in a general category which shall include experience or background in: Urban Design; Graphic Arts or Neighborhood Representation; or who shall be a citizen-at-large.

The mayor and city council will each appoint one member of the fifteen (15) member commission, for a total of eleven (11). The remain four (4) members will be selected at-large by the mayor and city council to complete category representation.

Further, members of the commission shall represent the general ethnic and gender makeup of the community. The city council shall have the authority to remove any member for good cause.
(Ord. No. 76514, § 4, 9-17-92)

Sec. 2-145. Terms, meetings and quorum; rules of procedures; conflicts of interest; no compensation.

(a) Members of the commission shall serve two-year terms, which shall be staggered; however, of the initial appointments, eight (8) members shall hold a term of two (2) years and seven (7) members shall hold a term of one (1) year.

(b) The commission shall meet on a regular basis not less than once each month, and more frequently if necessary, at a regularly scheduled time with advance notice posted according to the Texas Open Meetings Act. Additional special meetings may be called by the chairman, or upon written request to the planning director signed by eight (8) members, or upon notice from the director of planning, or said director's representative, when a matter requires urgent consideration of the commission. All meetings of the commission shall be open to the public in accordance with the Texas Open Meetings Act.

(c) A quorum of the commission shall require eight (8) members present eight (8) affirmative votes for action.

(d) The commission shall elect its own officers and adopt its own rules of procedure.

(e) No member of the commission shall vote on any matter that materially affects the property, income, or business interest of that member or gives the appearance of a conflict of interest under applicable Texas law.

(f) Members shall serve without compensation.
(Ord. No. 76514, § 5, 9-17-92)

Secs. 2-146—2-217. Reserved.

ARTICLE VI. RESERVED*

Secs. 2-218—2-299. Reserved.

*__Editor's note—__Ord. No. 2007-08-30-0913, § 1, adopted August 30, 2007, repealed article VI in its entirety, which pertained to naming of city facilities and streets, and derived from Ord. No. 88401, § 1, adopted September 3, 1998. Similar provisions are now located at chapter 6, article XVI, §§ 6-660—6-676.

ARTICLE VII. MUNICIPAL CAMPAIGN FINANCE CODE†

DIVISION 1. GENERAL

Sec. 2-300. Statement of policy.

It is essential in a democratic system that the public has confidence in the integrity, independence, and impartiality of those who are elected to act on their behalf in government. There is a public perception that a relationship exists between substantial contributions and access to elected officials. To diminish the perceived or actual connection between contributions and influence, the city adopts this Campaign Finance Code to promote public confidence and, it is hoped, a greater degree of citizen participation in the electoral process.
(Ord. No. 2013-05-09-0317, § 1(Att. A), 5-9-13)

Sec. 2-301. Definitions.

(a) Contribution cycles applicable to officeholders candidates and specific purpose political action committees (SPAC) formed for the purpose of supporting or opposing a candidate. The following constitute separate contribution cycles:

(1) The pre-election contribution cycle begins on July 1 of the calendar year before the

†__Editor's note—__Ord. No. 2013-05-09-0317, § 1(Att. A), adopted May 9, 2013, amended article VII in its entirety to read as herein set out. Formerly, article VII, divisions 1—9, pertained to campaign finance regulations and derived from Ord. No. 99538, § 1, adopted August 5, 2004; Ord. No. 100284, §§ 1—6, adopted January 13, 2005; Ord. No. 2006-03-02-0269, § 1(Exh. A), adopted March 2, 2006, and Ord. No. 2009-06-25-0553, § 1(Att. A), adopted June 25, 2009.

Section 5 of Ord. No. 2013-05-09-0317, adopted May 9, 2013, states the following: "Section 5. The remainder of this Ordinance and the amendments of the Ethics Code and Municipal Campaign Finance Code shall be effective ten days after passage. The changes in the City Code's ethics and campaign finance provisions reflected in this ordinance apply only to events taking place on or after the effective date of this ordinance. Any events occurring before the effective date of this ordinance are governed by the City Code provisions in effect on that date of that event. The prior versions of the Code are continued in effect for that purpose. The Office of the City Clerk is directed to publish notice of these amendments as required by law."

date of the general municipal election, and ends on the date of the general municipal election;

(2) The run-off election contribution cycle begins the day after the general municipal election, and ends on the date of the run-off election, for candidates involved in the run-off election;

(3) The post-election contribution cycle begins on the day after the general municipal election or the day after the run-off election, as applicable, through June 30 of the calendar year before the next general municipal election; and

(4) The special election contribution cycle resulting from a city council vacancy will begin on the day the city council acknowledges the vacancy and ends on the date of the special election. The special run-off contribution cycle begins the day after the special election and ends on the date of the special run-off election.

(b) Under Texas Election Code § 251.001, a "contribution" means a direct or indirect transfer of money, goods, or services, or any other thing of value and includes an agreement made or other obligation incurred, whether legally enforceable or not, to make a transfer. The term includes a loan or extension of credit, other than those expressly excluded by this subdivision, and a guarantee of a loan or extension of credit, including a loan described by this subdivision.

The term "contribution" does not include a loan made in the due course of business by a corporation that is legally engaged in the business of lending money and that has conducted the business continuously for more than one (1) year before the loan is made.

(c) A loan is deemed to be made in the ordinary due course of business if it:

(1) Bears the usual and customary interest rate of the lending institution for the category of loan involved;

(2) Is made on a basis that assures repayment;

(3) Is evidenced by a written instrument; and

(4) Is subject to a due date or amortization schedule.

(d) Terms not defined in this chapter but defined in the Texas Election Code shall have the meanings assigned to them in the Texas Election Code. Terms not defined in this chapter or the Texas Election Code, but defined in the ethics code shall have the meanings assigned to them in the ethics code.
(Ord. No. 2013-05-09-0317, § 1(Att. A), 5-9-13; Ord. No. 2018-06-21-0491, § 1(Att. b), 6-21-18; Ord. No. 2024-05-02-0274, § 1(Att. B), 5-2-24)

DIVISION 2. CONTRIBUTION LIMITS

Sec. 2-302. Limitation of political contributions to candidates or officeholders for mayor or council and specific-purpose political action committees.

(a) A candidate for district office on the city council or city council officeholder may not accept more than five hundred dollars ($500.00) in political contributions from any individual or single entity per contribution cycle.

(b) A candidate for mayor or mayoral officeholder may not accept more than one thousand dollars ($1,000.00) in political contributions from any individual or single entity per contribution cycle.

(c) A specific-purpose political action committee (SPAC) registered with the city and formed for the purpose of supporting or opposing a candidate for district office on the city council or city council officeholder may not accept more than five hundred dollars ($500.00) in political contributions from any individual or single entity per contribution cycle.

(d) A specific-purpose political action committee (SPAC) registered with the city and formed for the purpose of supporting or opposing a candidate for mayor or the mayoral officeholder for the city may not accept more than one

thousand dollars ($1,000.00) in political contributions from any individual or single entity per contribution cycle.

(e) Except as provided in section 2-304 of this chapter, the limits set out in subsections (a)—(d) of this section apply to contributions made in the form of loans, extensions of credit, and guarantees of loans or extensions of credit as described in subsection 2-301(b). Repayment of loans does reset the contribution limit.

(f) Political action committees, commercial entities, or campaign vendors cannot provide in-kind contributions with a commercial value to candidates or officeholders beyond the limits established in this section. Individuals may donate their time as campaign volunteers without limit. "In-kind" contribution means goods or services provided to or by a person at no charge or for less than their fair market value.

(g) An individual or entity cannot make a political contribution in cash exceeding fifty dollars ($50.00) to a candidate for mayor or city council, or to a municipal officeholder, or to a specific-purpose political action committee formed for the purpose of supporting or opposing a municipal candidate or officeholder, nor can any of these candidates, officeholders or specific-purpose political action committees accept political contributions in cash exceeding fifty dollars ($50.00), from a single donor during a reporting period as defined in Texas Election Code § 254.063. This restriction includes tickets to fund-raising events.

(h) A person may not knowingly make or authorize a political contribution or expenditure in the name of or on behalf of another, unless the person discloses in writing to the recipient the name and address of the person actually making the contribution in order for the recipient to make the proper disclosure.

(i) A minor may make a contribution only if done so knowingly and voluntarily with funds, goods or services owned or controlled exclusively by the minor and not with proceeds of a gift where the purpose was to provide funds to be contributed. The minor shall submit a form with the contribution acknowledging their minor status and that their contribution complies with this provision.

(j) A "coordinated campaign expenditure" shall be considered a contribution subject to the limits set forth within this section and subject to the disclosure requirements for campaign contributions made to a candidate for elected city office. As used in this subsection, the term "coordinated campaign expenditure" means a payment, other than a direct contribution, for an activity, service or product that contains express advocacy for the election or defeat of a clearly identified candidate(s) for city office and is made in cooperation, consultation, or concert, with or at the request or suggestion of, a candidate(s) for city office or a candidate's representative, agent or employee.

Coordinated campaign expenditures shall include, but not be limited to the following:

(1) Voter identification and/or get-out-the-vote activity on behalf of a specific candidate(s) for city office;

(2) A public communication that refers to a clearly identified candidate(s) for city office and that promotes or supports a candidate(s) for that office, or attacks or opposes a candidate(s) for that office, or is suggestive of no plausible meaning other than an exhortation to vote for or against a specific candidate(s).

The following is not considered a coordinated campaign expenditure:

(1) Direct monetary contributions made to an officeholder or candidate for city office;

(2) In-kind contributions made to an officerholder or candidate for city office;

(3) Payment by an individual or organization for the individual's or organization's overhead expenses including but not limited to rent, utilities, taxes, office supplies or salaries;

(4) Volunteer (unpaid) activity(ies) on the part of the individual or members of the organization.

(Ord. No. 2013-05-09-0317, § 1(Att. A), 5-9-13; Ord. No. 2018-06-21-0491, § 1(Att. B), 6-21-18; Ord. No. 2024-05-02-0274, § 1(Att. B), 5-2-24)

Sec. 2-303. Time limitation to accept contributions.

(a) An officeholder or candidate for mayor or city council or specific-purpose political action committee registered with the city and formed for the purpose of supporting or opposing a candidate for mayor or city council shall not accept nor deposit campaign contributions after midnight on the fourth calendar day before the general, run-off, or special municipal election date.

(b) Contributions received after the deadline set out in subsection (a) above or contributions not deposited by the deadline may be deposited during the subsequent contribution cycle. Such contributions will be subject to limitations for the contribution cycle during which they are deposited.

(Ord. No. 2013-05-09-0317, § 1(Att. A), 5-9-13; Ord. No. 2018-06-21-0491, § 1(Att. B), 6-21-18; Ord. No. 2024-05-02-0274, § 1(Att. B), 5-2-24)

Editor's note—Ord. No. 2018-06-21-0491, § 1(Att. B), adopted June 21, 2018, amended § 2-303 and in so doing changed the title of said section from "Time limitation to accept donations" to "Time limitation to accept contributions," as set out herein.

Sec. 2-304. Limits on repayment of loans or reimbursements from political contributions.

(a) *Loan limit for officerholders and candidates for city council.* An officerholder or candidate for city council shall not use political contributions in an aggregate amount of more than twenty-five thousand dollars ($25,000.00) during an election cycle to:

(1) Repay a loan to their campaign account that the officeholder or candidate has made from their personal assets;

(2) Reimburse campaign expenditures made from personal funds; or

(3) Repay a loan to the officeholder or candidate or to any authorized committee of the candidate from any other person, persons, entity or entities.

The limit established by this section applies to the cumulative total from one (1) or all combined loans.

(b) *Loan limit for officeholders or candidates for mayor.* An officerholder or candidate for mayor shall not use political contributions in an aggregate amount of more than fifty thousand dollars ($50,000.00) during an election cycle to:

(1) Repay a loan to their campaign account that the candidate has made from their personal assets;

(2) Reimburse campaign expenditures made from personal funds; or

(3) Repay a loan to the officeholder or candidate or to any authorized committee of the candidate from any other person, persons, entity or entities.

The limit established by this section applies to the cumulative total from one (1) or all combined loans.

(c) A candidate cannot accept a loan made in cash.

(Ord. No. 2013-05-09-0317, § 1(Att. A), 5-9-13; Ord. No. 2018-06-21-0491, § 1(Att. B), 6-21-18; Ord. No. 2024-05-02-0274, § 1(Att. B), 5-2-24)

DIVISION 3. POLITICAL CONTRIBUTION AND EXPENDITURE ACCOUNTS AND REPORTS

Sec. 2-305. Single account.

(a) A candidate for mayor or city council or officeholder or specific-purpose political action committee registered with the city and formed for the purpose of supporting or opposing a candidate for mayor or city council must deposit each and every political contribution into one (1) and only one (1) specified bank account. This single account must be used for all political contributions and expenditures pertaining to municipal office.

(b) Persons with established campaign accounts before the date this code goes into effect can transfer funds into the new single campaign account.

(c) At the time a candidate files the appointment of campaign treasurer pursuant to Texas Election Code § 252.001, the candidate shall declare the municipal office sought. If a candidate subsequently decides to seek a different office, the candidate shall file an amended appointment of campaign treasurer declaring the new office sought.

(d) If a candidate who has filed a campaign treasurer appointment decides to seek a different office that would require the appointment to be filed with another authority, a copy of the appointment certified by the authority with whom it was originally filed must be filed with the other authority in addition to the new campaign treasurer appointment, in accordance with the requirements of Texas Election Code § 252.010.

(e) If, after declaring a candidacy for any elected office, the candidate subsequently declares their candidacy for any elected municipal office, their may maintain the same campaign finance account. However, if the candidate seeks a municipal office which is subject to lower campaign contribution limits than the previously sought office, the candidate shall return all contributions in excess of the limits for the municipal office sought.

(1) The transferor candidate's available funds shall be viewed as those contributions most recently received that add up to the amount of cash on hand.

(2) Contributions transferred must be aggregated with any contributions made by the same donor to the candidate/officeholder receiving the transfer. Amounts that would cause a contributor to exceed his or her pre-election cycle contribution limit must be excluded from the transfer.

(Ord. No. 2013-05-09-0317, § 1(Att. A), 5-9-13; Ord. No. 2018-06-21-0491, § 1(Att. B), 6-21-18; Ord. No. 2024-05-02-0274, § 1(Att. B), 5-2-24)

Sec. 2-306. Reserved.

Editor's note—Ord. No. 2024-05-02-0274, § 1(Att. B), adopted May 5, 2024, repealed § 2-306, which pertained to campaign bank account statements and derived from Ord. No. 2013-05-09-0317, § 1(Att. A), 5-9-13; Ord. No. 2018-06-21-0491, § 1(Att. B), 6-21-18.

Sec. 2-307. Electronic filing of campaign finance reports.

(a) Candidates for mayor or city council and officeholders will electronically file and update campaign finance reports required under the Texas Elections Code with the office of the city clerk. The city clerk shall notify candidates and officeholders of technical difficulties and permit paper filing, if necessary. No exemptions are required if the clerk has provided notice to candidates and officeholders of technical difficulties.

Campaign finance reports shall include the principal occupation/job title, and employer of the person giving the campaign contribution for contributions of one hundred dollars ($100.00) or more, in the aggregate per contribution cycle.

If this deadline falls on a weekend or a city holiday, the report will be due no later than 5:00 p.m. on the next business day.

(b) The city will provide access to computer equipment for candidates to file the electronic reports. A candidate, officeholder, or political action committee that is required to file electronic reports under this chapter may apply for an exemption if:

(1) The candidate, officeholder, or campaign treasurer of the committee files with the office of the city clerk an affidavit stating that the candidate, officeholder, or committee, an agent of the candidate, officeholder, or committee, or a person with whom the candidate, officeholder, or committee contracts does not use computer equipment to keep the current records of political contributions, political expenditures, or persons making political contributions to the candidate, officeholder, or committee; and

(2) The candidate, officeholder, or committee does not, in a calendar year, accept political contributions that in the aggregate exceed twenty thousand dollars ($20,000.00) or make political expenditures that in the aggregate exceed twenty thousand dollars ($20,000.00).

(c) The city will post the campaign finance reports through a designated elections website.

(d) Knowingly failing to timely file a report required by this section is a violation hereof, as is the knowingly filing of a report with incorrect, misleading, or incomplete information. If an individual inadvertently files an incorrect, misleading, or incomplete report, it is their responsibility to file an amended report as soon as possible, though no later than ten (10) business days after notification of or discovery of the error.

(e) An amended campaign finance report, properly filed with the city clerk, does not constitute a violation of this code.
(Ord. No. 2013-05-09-0317, § 1(Att. A), 5-9-13; Ord. No. 2018-06-21-0491, § 1(Att. B), 6-21-18, effective 1-1-19; Ord. No. 2024-05-02-0274, § 1(Att. B), 5-2-24)

DIVISION 4. POLITICAL ACTION COMMITTEES

Sec. 2-308. Political action committees.

All political action committees (PACs) or groups spending money on municipal campaign activity or advertising associated with a city candidate or measure election, or specially designated city council agenda item shall also, in addition to compliance with reporting requirements under the Texas Election Code, submit campaign finance reports electronically with the city clerk in accordance with section 2-307. Deadlines and contents of reports for political action committees required by the Texas Election Code shall be set in accordance with the Texas Election Code.

Note: General political action committees (GPACs) are only required to submit campaign finance report electronically with the city clerk for activity related to money spent on municipal campaign activity or advertising associated with a city candidate or measure election, or specially designated city council agenda items.
(Ord. No. 2013-05-09-0317, § 1(Att. A), 5-9-13; Ord. No. 2018-06-21-0491, § 1(Att. B), 6-21-18; Ord. No. 2024-05-02-0274, § 1(Att. B), 5-2-24)

DIVISION 5. CITY CONTRACTORS AND ZONING APPLICANTS

Sec. 2-309. Contribution prohibitions.

(a) When an individual or entity seeks to obtain a "high-profile" discretionary contract as designated by the city, the following individuals shall not make a political contribution to any councilmember or candidate or political action committee that supports or opposes a city councilmember or candidate beginning on the tenth business day after the request for proposal (RFP) or request for qualifications (RFQ) or other solicitation is released, or for a contract for which no competitive solicitation has been issued by the city from the time the city begins negotiations or discussions, through the 30th calendar day following the approval by city council:

(1) Any individual seeking a high-profile contract;

(2) Any owner, officer, officer of board, executive committee member, and general board member of an entity seeking a high-profile contract;

(3) The legal signatory of the high-profile contract;

(4) Any attorney, lobbyist or consultant hired or retained to assist the individual or entity in seeking a high-profile contract;

(5) Subcontractors hired or retained to provide services under the high-profile contract;

(6) Any first-degree member of the household of any person listed in (1), (2), (3) or (5) of this subsection; and

(7) Any corporate PAC established or formed by the entity seeking a high-profile contract.

(b) Any legal signatory for a proposed "high-profile" contract must be identified within the response to a solicitation if the identity of the signatory will be different from the individual submitting the response. Where no competitive solicitation is being issued by the city, the legal signatory must be identified in writing at the time negotiations are initiated.

(c) If any individual listed in subsection (a) has made a contribution in violation of this section, the city cannot award the contract to that person, or to the entity. City council may void any contract awarded in violation of this provision.

(d) When an individual or entity applies for a zoning change, the following shall not make a political contribution to any councilmember or candidate or political action committee that supports or opposes a city councilmember or candidate from the time the zoning application is submitted to the city until thirty (30) calendar days after final action on the application by the zoning commission or city council:

(1) Any individual applying for a zoning change;

(2) Any property owner, owner or officer of an entity applying for a zoning change; or

(3) The spouse of an individual listed in items (1) or (2) of this subsection.

(e) If any individual listed in subsection (d) of this section has made a contribution in violation of this section, the city cannot approve the requested change in the zoning district boundary. City council may void any zoning district boundary change awarded in violation of this provision.

(f) In the event that a candidate or officeholder unknowingly accepts a contribution in contravention of the provisions of this section, then it shall be the duty of the candidate or officeholder to return the contribution within five (5) business days after they have received notification from city staff that a contribution in violation of this section has been discovered. Candidates and councilmembers who return contributions within the five (5) business days cannot be held liable for violation of this section.

(Ord. No. 2013-05-09-0317, § 1(Att. A), 5-9-13; Ord. No. 2018-06-21-0491, § 1(Att. B), 6-21-18, effective 1-1-19; Ord. No. 2024-05-02-0274, § 1(Att. B), 5-2-24)

DIVISION 6. ENFORCEMENT AUTHORITY AND SANCTIONS

Sec. 2-310. Ethics review board.

(a) Municipal campaign finance code enforcement authority. The Ethics Review Board, created pursuant to article XIII of the city charter, shall have authority to review reports required under this chapter and shall have the jurisdiction to investigate, make findings, issue rulings and assess sanctions concerning any alleged violation of this chapter, by any person subject to these provisions.

(b) Municipal campaign finance advisory opinions issued by the ethics review board.

(1) By writing filed with the city clerk, any officeholder or candidate for city council, mayor or officer of a political action committee registered with the city clerk may request an advisory opinion with respect to the interpretation of the municipal campaign finance code, but only with respect to whether proposed action by that person would violate these regulations. The city clerk shall promptly transmit all requests for advisory opinions to the compliance auditor and the chair of the ethics review board.

(2) Within fifteen (15) business days of receipt by the chair of the ethics review board of a request for an advisory opinion, the board, acting en banc or through a designated ethics panel, shall issue a written advisory opinion. During the preparation of the opinion, the board may consult with the compliance auditor and other appropriate persons. An advisory opinion shall not reveal the name of the person who made the request, if that person requested anonymity, in

which case the opinion shall be written in the form of a response to an anonymous, hypothetical fact situation.

(3) A copy of the opinion shall be indexed and kept by the city clerk. In addition, copies of the opinion shall be forwarded by the chair of the ethics review board, or the compliance auditor, to the person who requested the opinion, and to the members of the ethics review board. The city clerk shall make the opinion available as a public record in accordance with the Local Government Records Act, and promptly post the opinion on the city website.

(c) Civil sanctions for violations of the municipal campaign finance code. The following civil sanctions may be imposed by the ethics review board which finds by a preponderance of the evidence that the municipal campaign finance code has been violated:

(1) Letter of notification. The ethics review board may issue a letter of notification to any individual subject to the municipal campaign finance code where the board finds that the violation was clearly unintentional or inadvertent. The letter must advise the person to whom it is directed of any steps to be taken to avoid future violations;

(2) Letter of admonition. The ethics review board may issue a letter of admonition to any individual subject to the municipal campaign finance code where the board finds that the violation was minor and/or may have been unintentional or inadvertent;

(3) Letter of reprimand. The ethics review board may issue a letter of reprimand to any individual subject to the municipal campaign finance code where the board finds that the violation was made intentionally or knowingly;

(4) Referral to ethics training. Upon finding of violation of the municipal campaign finance code, the ethics review board may require any individual subject to the municipal campaign finance code to attend training on the code;

(5) A fine not exceeding five hundred dollars ($500.00) where the board finds that the violation was made intentionally or knowingly. Each day after any deadline for which any required statement has not been filed, or for which a statement on file is incorrect, misleading, or incomplete, constitutes a separate offense.

(d) The rules and procedures set out in chapter 2, article III of the city code (ethics code), sections 2-80 through 2-91 shall apply to the enforcement of this article (municipal campaign finance code), including:

(1) Procedures for filing and responding to complaints of violations of the municipal campaign finance code;

(2) Disposition of complaints;

(3) The imposition or recommendation of sanctions;

(4) Extension of deadlines; and

(5) The timeliness of filings.

(Ord. No. 2013-05-09-0317, § 1(Att. A), 5-9-13; Ord. No. 2018-06-21-0491, § 1(Att. B), 6-21-18)

DIVISION 7. TERMINATION OF CAMPAIGN TREASURER APPOINTMENT

Sec. 2-311. Termination of campaign treasurer appointment by the city council.

(a) The city council may terminate the campaign treasurer appointment of an inactive candidate or an inactive political action committee.

(b) For purposes of subsection (a) of this section, a candidate becomes "inactive' if the candidate files a campaign treasurer appointment with the city clerk and more than one (1) year has lapsed since the candidate has filed any required campaign finance reports with the city clerk.

(c) For purposes of subsection (a) of this section, a political action committee becomes "inactive" if the political action committee files a campaign treasurer appointment with the city clerk and more than one year has lapsed since the campaign treasurer of the political action committee has filed any required campaign finance reports with the city clerk.
(Ord. No. 2013-05-09-0317, § 1(Att. A), 5-9-13; Ord. No. 2018-06-21-0491, § 1(Att. B), 6-21-18)

Sec. 2-312. Notice of proposed termination of campaign treasurer appointment.

(a) Before the city council may consider termination of a campaign treasurer appointment under section 2-311 of the city code, the city clerk shall send written notice to the affected candidate or political action committee.

(b) The written notice must be given at least fourteen (14) business days before the date of the meeting at which the city council will consider the termination of a campaign treasurer appointment and must include:

(1) The date, time, and place of the city council meeting;

(2) A statement of the city council's intention to consider termination of the campaign treasurer;

(3) A reference to the particular sections of the statutes and rules that give the city council the authority to consider the termination of a campaign treasurer appointment; and

(4) The effect of termination of a campaign treasurer appointment.

(Ord. No. 2013-05-09-0317, § 1(Att. A), 5-9-13; Ord. No. 2018-06-21-0491, § 1(Att. B), 6-21-18)

DIVISION 8. ELECTION AND CAMPAIGN FINANCE REGULATIONS TRAINING

Sec. 2-313. Training.

The Compliance Auditor and city clerk shall provide training on the municipal campaign finance code, the municipal campaign finance electronic filing system and the city ethics code at least once six (6) months prior to each municipal election. The training shall be open to officeholders, candidates for office, their agents and interested members of the public.
(Ord. No. 2013-05-09-0317, § 1(Att. A), 5-9-13)

DIVISION 9. EFFECTIVE DATE

Sec. 2-314. Effective date.

(a) This article is effective August 15, 2004.

(b) This article applies to a political contribution accepted or political expenditure made on or after the effective date.

(c) A political contribution accepted or a political expenditure made before the effective date of this article is governed by law in effect on the date the contribution was accepted or the expenditure was made.

(d) A political contribution may not be accepted after the effective date of this article if the contribution from that donor, together with all contributions from that donor accepted before the effective date of this article, would exceed the maximum contribution established by section 2-302.

(e) A candidate or officeholder who has made a political expenditure from personal funds before the effective date of this article may reimburse their personal funds for that political expenditure from political contributions accepted before the effective date of this article.

(f) A candidate or officeholder who has made a political expenditure from personal funds before the effective date of this article may reimburse their personal funds for that political expenditure from political contributions accepted after the effective date of this article in amount that in the aggregate does not exceed the limit imposed by section 2-304 of this article.
(Ord. No. 2013-05-09-0317, § 1(Att. A), 5-9-13; Ord. No. 2024-05-02-0274, § 1(Att. B), 5-2-24)

Secs. 2-315—2-500. Reserved.

ARTICLE VIII. FEES

Sec. 2-501. Radio system fees.

The following fees [are imposed] for third party outside agencies. For purposes of this section, outside agencies shall be any entity using the public safety radio system other than the city or the County of Bexar.

(1) Autonomous public safety dispatch access for third party outside agencies as follows.

Monthly subscriber fee, per radio	$21.00
Monthly hardware recovery fee, per radio	$1.00

Explanation: Used by third party outside agencies, that maintain their own autonomous PSAP/Dispatch Center. Access to the Simulcast System provided. Access to level one (1) sites contingent on demonstrated and justifiable public safety requirement. Radio operating procedures must be approved by the JOC and conform to standards used by city and/or county primary user agencies.

(2) Autonomous local government dispatch access for third party outside agencies as follows:

Monthly subscriber fee, per radio	$21.00
Monthly hardware recovery fee, per radio	$1.00

Explanation: Used by third party outside agencies that desire to use the radio system to support internal, autonomous local government (public works, animal control, etc.) operations. Access to the Simulcast System provided. Access to level one (1) sites contingent on demonstrated and justifiable operational requirements and agency business plan. Radio operating procedures must be approved by the JOC and conform to standards used by city and/or county primary user agencies.

(3) Sponsored public safety dispatch access for third party outside agencies as follows:

Monthly subscriber fee, per radio	$21.00
Monthly hardware recovery fee, per radio	$1.00

Explanation: Used by third party outside agencies that do not have their own dispatch operations and rely on a sponsoring agency to provide dispatch services. Dispatch services may include operational dispatching of response units and/or requesting criminal justice information. Access to the simulcast system and level one (1) sites provided. Radio operating procedures conform to standards used by the sponsoring agency. Third party outside agencies use primary dispatch groups and do not normally have access to dedicated groups. One (1) dedicated group to support internal tactical/special operations may be requested. Interoperability hailing groups and common groups provided.

(Ord. No. 99748, § 2, 9-16-04; Ord. No. 2008-06-12-0533, § 2, 6-12-08; Ord. No. 2025-09-18-0629, § 2(Att. I), 9-18-25)

Sec. 2-502. PEG studio and equipment fees.

The following fees are in connection with the use of the City of San Antonio Public Education and Government Access Studios and equipment and only apply to: (a) PEG producers that would like advanced equipment training and workshops; (b) San Antonio residents, students and local organizations (commercial and nonprofit) that would like to use SA-CAN studios and equipment and do not want to air programs on the SA-CAN channels; (c) non-San Antonio residents, students and organizations (commercial and nonprofit) that would like to use SA-CAN studios and equipment and do not want to air programs on the SA-CAN channels.

(1) *Fees for training class rates per class.* Fees in connection with the use of the city public education and government access studios for training apply on a per

class basis, and include location shooting, lighting and audio; editing; and studio workshop and are as follows:

Introduction Course

1 hour	Free

Shooting/Lighting Audio 2 hours

Per class	$125.00

Editing 2 hours

Per class	$125.00

Studio Workshop 4 hours

Per class	$175.00

(2) *Fees for space rental rates per hour.** Fees in connection with the use of the city public education and government access studios per hour, with space rental including rental of studio and edit bay per space, are as follows:

Fees for Non-PEG Producers
Facility Rates

Studio Space

	Per Hour
Student Producer (with valid school ID)	$50.00
Non-Profit Producer	100.00
General Producer	110.00
Commercial Producer	150.00

Edit Bays

Student Producer (with valid school ID)	$30.00
General Producer	80.00
Non-Profit Producer	90.00
Commercial Producer	150.00

* The above rates apply to rentals during regular business hours, Monday through Friday, 8:00 a.m. to 5:00 p.m. For rentals beyond these hours of operation, an additional twenty-five dollars ($25.00) per hour fee will be assessed to the applicable rates above.

(3) *Fees for equipment rental rates per day.* Fees in connection with the city public education and government access studios equipment rental per day (and, where indicated, per week), with equipment rental including rental of production tool box equipment, video cameras, mobile edit system equipment, lighting equipment and audio equipment, are as follows:

Production Tool Box

	Per Day
Student Producer (with valid school ID)	$150.00
General Producer	310.00
Non-Profit Producer	340.00
Commercial Producer	490.00

Video Cameras

	Per Day
Student Producer (with valid school ID)	$90.00
General Producer	190.00
Non-Profit Producer	205.00
Commercial Producer	295.00

Mobile Edit System

	Per Day
Student Producer (with valid school ID)	$30.00
General Producer	60.00
Non-Profit Producer	65.00
Commercial Producer	95.00

Lighting

	Per Day
Student Producer (with valid school ID)	$20.00
General Producer	40.00
Non-Profit Producer	45.00
Commercial Producer	65.00

Audio

	Per Day
Student Producer (with valid school ID)	$10.00

General Producer	20.00
Non-Profit Producer	25.00
Commercial Producer	35.00
RED Epic Dragon Basic	
Student Producer (with valid school ID)	
Per day	$745.00
Per week	2,210.00
General Producer	
Per week	876.00
Per week	2,600.00
Non-Profit Producer	
Per week	1,020.00
Per week	3,060.00
Commercial Producer	
Per day	1,200.00
Per week	3,600.00
RED Epic Dragon Package	
Student Producer (with valid school ID)	
Per day	$1,059.00
Per week	3,502.00
General Producer	
Per day	1,246.00
Per week	4,119.00
Non-Profit Producer	
Per day	1,465.00
Per week	4,845.00
Commercial Producer	
Per day	1,900.00
Per week	5,700.00

(Ord. No. 2015-09-10-0758, § 2(Att. I), 9-10-15; Ord. No. 2016-09-15-0697, § 2(Att. I), 9-15-16)

Editor's note—Prior to the reenactment of section 2-502 by Ord. No. 2015-09-10-0758, § 2(Att. I), adopted September 10, 2015, Ord. No. 2013-09-12-0631, § 2(Att. K), adopted September 12, 2013, repealed the former section 2-502, which pertained to automatic notification fees, and derived from Ord. No. 99748, § 3, adopted September 16, 2004, and Ord. No. 2010-09-16-0791, § 1(Att. G), adopted September 16, 2010.

Sec. 2-503. Reserved.

Editor's note—Ord. No. 2008-04-17-0318, § 2, adopted April 17, 2008, repealed § 2-503 in its entirety, which pertained to the internet convenience fee, and derived from Ord. No. 99748, § 5, adopted September 16, 2004.

Sec. 2-504. Fee for economic analysis review studies requested by outside agencies.

There is hereby approved a fee of one hundred dollars ($100.00) per hour to be charged by the economic development department for all economic analysis studies performed by city personnel for outside agencies.

(Ord. No. 2007-09-13-0973E, § 1, 9-13-07)

Editor's note—Ord. No. 2007-09-13-0973E, § 1, adopted September 13, 2007, did not specify manner of inclusion; hence, inclusion as § 2-504 is at the discretion of the editor.

Sec. 2-505. Conduit issuance due diligence fee.

The conduit issuance due diligence fee to be charged by and payable to the finance department in connection with city council consideration and approval of each conduit issuance transaction is hereby revised as follows:

(1) For a conduit issuance issued by a public facilities corporation, educational facilities corporation, or similar entity created by the City of San Antonio, the due diligence fee shall be two thousand five hundred dollars ($2,500.00) per transaction.

(2) For a conduit issuance issued by an issuer not created by the City of San Antonio, the due diligence fee shall be 0.1% with no maximum fee and a base fee of ten thouand dollars ($10,000.00).

(Ord. No. 2022-09-15-0678, § 2(Att. C), 9-15-22)

Editor's note—Ord. No. 2022-09-15-0678, § 2(Att. C), adopted Sept. 15, 2022, did not specifically amend the Code and at the discretion of the editor said provisions have been included herein as § 2-505.

Secs. 2-506—2-525. Reserved.

ARTICLE IX. BOARDS AND COMMISSIONS RULES*

Sec. 2-526. Application.

(a) All applications for district and at-large boards and commissions shall be submitted to the office of the city clerk.

(b) The city clerk will coordinate specific deadlines for submission of applications for at-large boards or commissions with the respective department. To be considered for appointment to at-large boards or commissions, the completed applications must be submitted by the advertised deadline.

(c) Applications for district boards and commissions may be submitted at any time to the office of the city clerk for consideration for appointment.

(d) Applications for all boards and commissions shall be valid for one (1) year after submission. A completed application must be on file in order for an individual to be considered for appointment to a board or commission.
(Ord. No. 100199, § 1, 12-17-04; Ord. No. 101119, § 1, 7-14-05; Ord. No. 2009-03-19-0205, § 1, 3-19-09; Ord. No. 2019-09-12-0717, § 1, 9-12-19)

*__Editor's note—__Section 1 of Ord. No. 2009-03-19-0205, adopted March 19, 2009, states: "The following shall govern the creation and operation of all boards and commissions created by ordinance or resolution passed by the City Council of the City of San Antonio. Unless specified otherwise in this Ordinance or by the City Council in an ordinance or resolution, these rules are intended to govern those boards and commissions created pursuant to the authority granted by state law, federal law, to the extent not in conflict with state or federal law; City appointees to boards and commissions jointly created with the County or any other governmental entity; boards and commissions with special membership requirements set out elsewhere in this Code, such as but not limited to the Electrical Board, the Mechanical Board of Appeals, and the Plumbing Appeals and Advisory Board; but are not intended to govern those boards and commissions created pursuant to the authority granted by the City Charter, Blue Ribbon Committees; Ad Hoc Committees or those boards or commissions whose members are comprised of City employees or to an individual City employee sitting on a board or commission as an ex officio member; or to Council Committees or Subcommittees."

Ord. No. 100199, § 1, adopted December 17, 2004, enacted provisions intended for use as article VIII, §§ 2-400—2-410. Inasmuch as there are already provisions so designated, and at the discretion of the editor, said provisions have been redesignated as article IX, §§ 2-526—2-536. Sections 2—7 of said ordinance were non-specific and have therefore been codified as §§ 2-537—2-542 at the discretion of the editor.

Sec. 2-527. District appointments.

(a) The city clerk will forward the applications to the respective city council member for his/her review.

(b) The office of the city clerk will initiate appointments, upon submission of a memorandum by a city council member, designating his/her respective appointees and requesting a waiver of a city-imposed qualification requirement, if applicable.

(c) The office of the city clerk will coordinate review of the applications with the pertinent city departments and the city attorney's office to ensure that the applicants meet the necessary qualifications for each respective board or commission, or if a waiver of a city-imposed qualification is necessary for the appointment. The office of the city clerk will notify the applicant in writing, or via email if an email address is provided, if he/she is not selected to serve on the board or commission for which he/she has applied.

(d) The provisions of this section also apply to mayoral appointments.
(Ord. No. 100199, § 1, 12-17-04; Ord. No. 101119, § 1, 7-14-05; Ord. No. 2009-03-19-0205, § 1, 3-19-09; Ord. No. 2019-09-12-0717, § 1, 9-12-19)

Sec. 2-528. At-large appointments.

(a) The office of the city clerk will coordinate review of the applications with the pertinent city departments and the city attorney's office to ensure that the applicants meet the necessary qualifications for each respective board or commission. The office of the city clerk will notify the applicant in writing, or via email if an email address is provided, if he/she is not qualified to serve on the board or commission for which he/she has applied.

(b) The office of the city clerk shall submit applications to the city council committee to which the board reports. The city council committee will review the applications to determine a proposed slate for council consideration, and may request to conduct interviews of applicants during a committee meeting.

(c) City council members may submit their nominations, in writing, to the office of the city clerk, in the form of a memorandum, for consideration by the respective city council committee as described in subsection (b).

(d) Official selection by the city council shall take place no sooner than one (1) week after the date of the council committee meeting, unless otherwise directed by the city council.

(e) If an interview is requested, nominees must appear in person for the interview. If an individual is ill, out of town, or cannot appear in person, a written statement must be submitted to the office of the city clerk prior to the date of the interview, in order to be considered for appointment. An individual will not be considered for appointment if he/she fails to appear in person for the interview or fails to submit a written statement.

(f) Subsection 2-529(a) does not apply to boards or commissions whose members are appointed at-large.

(Ord. No. 100199, § 1, 12-17-04; Ord. No. 101119, § 1, 7-14-05; Ord. No. 2007-02-15-0175, § 1, 2-15-07; Ord. No. 2009-03-19-0205, § 1, 3-19-09)

Sec. 2-529. Membership.

(a) Each board or commission shall consist of eleven (11) members (one (1) per council district and mayor). This subsection does not apply to section 2-528 and any board or commission in existence prior to December 27, 2004.

(b) In order to be qualified to serve, all applicants for boards and commissions must be residents of the city, and continue such residency during the term of their appointment, if appointed.

(c) When making appointments to boards and commissions, the city shall not discriminate on the basis of race, color, national origin, religion, sex, sexual orientation, gender identity, veteran status, age or disability.

(Ord. No. 100199, § 1, 12-17-04; Ord. No. 101119, § 1, 7-14-05; Ord. No. 2007-02-15-0175, § 1, 2-15-07; Ord. No. 2009-03-19-0205, § 1, 3-19-09; Ord. No. 2013-09-05-0577, § 6, 9-5-13)

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Sec. 2-530. Terms of office.

Length of term. Board or commission members are appointed for a term of office of two (2) years. The term of office for each board or commission member will run concurrently with the terms of office of the city council that appoints each member. Appointments made during an existing term are for the remainder of the unexpired term.
(Ord. No. 100199, § 1, 12-17-04; Ord. No. 101119, § 1, 7-14-05; Ord. No. 2009-03-19-0205, § 1, 3-19-09; Ord. No. 2019-09-12-0717, § 1, 9-12-19)

Sec. 2-531. Meeting procedures.

(a) Boards and commissions will conduct meetings in accordance with the latest edition of Robert's Rules of Order, or in accordance with meeting procedures adopted by the board or commission that ensure basic parliamentary procedures are followed.

(b) Board and commission meetings shall be conducted in accordance with the Texas Open Meetings Act. A majority of the number of seats on the board or commission shall constitute a quorum to convene a meeting; in all other matters upon which the board or commission may vote, a majority of the members in office shall be necessary for adoption. Non-voting members do not count when determining a quorum.

(c) The pertinent city department shall be responsible for posting the meeting notices seventy-two (72) hours prior to the meeting.

(d) Proxy votes are not allowed.

(e) The pertinent city department shall prepare and maintain minutes of the board or commission meetings. Such minutes shall be maintained in accordance with the city's records retention schedule. All records are subject to the Texas Public Information Act.
(Ord. No. 100199, § 1, 12-17-04; Ord. No. 101119, § 1, 7-14-05; Ord. No. 2009-03-19-0205, § 1, 3-19-09; Ord. No. 2019-09-12-0717, § 1, 9-12-19)

Sec. 2-532. Subcommittees.

(a) Boards and commissions may create subcommittees comprised of persons other than current members of the board or commission to address specific policy initiatives of the city, on an as-needed basis, to provide input and recommendations.

(b) The size of a subcommittee's membership may be equal to, but no larger than the size of the creating board or commission.

(c) The chair of a subcommittee shall be a member of the creating board or commission.

(d) Subcommittees shall be created for a specific purpose and shall operate for a specific time period. A subcommittee will automatically dissolve upon completion of its charge, or the time prescribed by the city council, without any further action by the city council.
(Ord. No. 100199, § 1, 12-17-04; Ord. No. 101119, § 1, 7-14-05; Ord. No. 2009-03-19-0205, § 1, 3-19-09)

Editor's note—Ord. No. 100199, § 1, adopted December 17, 2004, enacted provisions intended for use as subsections (a)—(c). To preserve the style of this Code, and at the discretion of the editor, said provisions have been redesignated as subsections (1)—(3).

Sec. 2-533. Attendance.

(a) If a board or commission member's attendance at regularly scheduled meetings falls below fifty (50) percent on an annual basis from the appointment date, or a member misses three (3) regularly scheduled consecutive meetings, the respective department liaison shall notify the office of the city clerk, who shall coordinate the attendance issue with the appointing council member's office, or the mayor, if an at-large appointee. The city clerk, upon approval by the appointing council member or mayor, as applicable, shall notify the member in writing that the member will be removed from the respective board or commission, without any further action by the city council.

(b) Such removal shall act as direction to the office of the city clerk to advertise for applications to the board or commission from which the member was removed, in the same manner as described in sections 2-527 and 2-528, as applicable. The new member shall serve out the remainder of the term of the removed member.

(c) A member who is removed from a board or commission for failure to meet the attendance requirement is ineligible to seek appointment to any board or commission for a period of one (1) calendar year from the date of the member's automatic removal.
(Ord. No. 100199, § 1, 12-17-04; Ord. No. 101119, § 1, 7-14-05; Ord. No. 2009-03-19-0205, § 1, 3-19-09; Ord. No. 2019-09-12-0717, § 1, 9-12-19)

Sec. 2-534. Financial disclosure report.

(a) All board and commission members shall be subject to the requirements set forth in the city's ethics code, as applicable to city officials.

(b) All board and commission members must file a financial disclosure report with the office of the city clerk upon appointment, and annually thereafter, throughout the member's term.

(c) Failure to file a financial disclosure report within the time required by the city's ethics code will be considered an automatic removal, without any further action by the city council.

(d) Such removal shall also act as direction to the office of the city clerk to advertise for applications to the board or commission from which the member was removed in the same manner as described in sections 2-527 and 2-528, as applicable. The new member shall serve out the remainder of the term of the removed member.

(e) A member who is automatically removed from a board or commission for failure to file a financial disclosure report is ineligible to serve on any other board or commission for a period of one (1) calendar year from the date of the member's automatic removal.
(Ord. No. 101119, § 1, 7-14-05; Ord. No. 2009-03-19-0205, § 1, 3-19-09)

Editor's note—Ord. No. 101119, § 1, adopted July 14, 2005, amended § 2-534 in its entirety to read as herein set out. Formerly, § 2-534 pertained to other requirements and derived from Ord. No. 100199, § 1, adopted December 17, 2004.

Sec. 2-535. Removal from office.

(a) All board and commission members serve at the pleasure of the city council and may be removed from office at the discretion of the city council without cause, such removal to be evidenced by the appointment of a new appointee.

(b) Requests for removal of a board or commission member must be initiated in writing by the city council member for whose district the member represents, and directed to the office of the city clerk, or by a city council consideration request if an at-large appointment. Such request may direct the office of the city clerk to advertise for applications to the board or commission from which the member was removed in the same manner as described in sections 2-527 and 2-528, as applicable. The request may also direct the office of the city clerk to place the name of a new appointee on the next available city council agenda for appointment. The new member shall serve out the remainder of the term of the removed member.
(Ord. No. 100199, § 1, 12-17-04; Ord. No. 101119, § 1, 7-14-05; Ord. No. 2009-03-19-0205, § 1, 3-19-09; Ord. No. 2019-09-12-0717, § 1, 9-12-19)

Sec. 2-536. Resignations.

(a) All resignations must be in writing, filed with the office of the city clerk, and state the specific date of resignation and the name of the board or commission from which the member is resigning.

(b) All resignations shall take effect upon receipt by the office of the city clerk and without any further action by the city council, shall constitute an automatic removal from the board or commission and act as direction to the office of the city clerk to advertise for applications to the board or commission from which the member resigned in the same manner as described in sections 2-527 and 2-528, as applicable. The new member shall serve out the remainder of the term of the resigned member.
(Ord. No. 100199, § 1, 12-17-04; Ord. No. 101119, § 1, 7-14-05; Ord. No. 2009-03-19-0205, § 1, 3-19-09)

Sec. 2-537. Template enabling ordinance.

All new boards and commissions shall be created using the template ordinance, attached to Ord. No. 100199 as exhibit I. Unless otherwise provided in said subsequent enabling ordinance,

the provisions provided for in article IX, shall govern the creation and operation of all boards and commissions.
(Ord. No. 100199, § 2, 12-17-04)

Editor's note—Exhibit I to Ord. No. 100199 may be found in the city clerk's office.

Sec. 2-538. Information on boards and commissions.

(a) In addition to any other applicable notification requirement, public notices will be provided for all board and commission vacancies. In addition, the office of the city clerk will issue media advisories, will post information on the city's website and the TVSA channel. Notices may also be posted at the Central library, at branch libraries, city parks and at city community centers.

(b) Informational material, which includes current data about all boards and commissions, will be available to prospective appointees, in the office of the city clerk.
(Ord. No. 100199, § 3, 12-17-04; Ord. No. 2009-03-19-0205, § 1, 3-19-09)

Sec. 2-539. New member orientation and swearing-in.

(a) A thorough orientation will be provided to all newly appointed board and commission members by the pertinent city department. Specific information on policies and procedures for the respective board or commission will be provided at that time. Board and commission members will sign a document to verify that they have attended the necessary orientation. The pertinent city department shall maintain records of these documents in accordance with the city's records retention schedule.

(b) Continuing education programs will be instituted by various city departments to provide up-to-date information on any legislation or other pertinent information that would affect the department's respective board or commission. Board and commission members must be kept abreast of all issues related to the board or commission and its responsibilities.

(c) Newly appointed members will be invited to a swearing-in ceremony to be scheduled by the office of the city clerk.

(d) The failure or refusal to attend the department orientation within the first year of service shall constitute an automatic removal without further action by the city council. The office of the city clerk shall notify the appointing council member and the board member of the removal. A replacement board member shall be appointed in the same manner as described in sections 2-527 and 2-528, as applicable.

(e) A member who is automatically removed from a board or commission for failure to attend the department orientation requirement is ineligible to seek appointment to any board or commission for a period of one (1) calendar year from the date of the member's automatic removal.
(Ord. No. 100199, § 4, 12-17-04; Ord. No. 2019-09-12-0717, § 1, 9-12-19)

Sec. 2-540. Municipal Leadership Institute.

(a) The Municipal Leadership Institute shall be utilized to provide an orientation to city government to all newly appointed board and commission members. A comprehensive overview will be provided on issues that include, but are not limited to, ethics, liability, fiscal responsibility, attendance requirements, removal, parliamentary procedures (Robert's Rules of Order), the Texas Open Meetings Act, the Texas Public Information Act, and general information about the city and the board and commission appointment process.

(b) All first-time newly-appointed board and commission members (district and at-large appointments), must attend a Municipal Leadership Institute Training before they can be considered for reappointment to any city board or commission.

(c) The failure or refusal to complete the Municipal Leadership Institute training within the first year of service shall constitute an automatic removal without further action by the city council. The office of the city clerk shall notify the appointing council member and the board member of the removal. A replacement board member shall be appointed in the same manner as described in sections 2-527 and 2-528, as applicable.

(d) A member who is automatically removed from a board or commission for failure to complete the Municipal Leadership Institute training requirement is ineligible to seek appointment to any board or commission for a period of one (1) calendar year from the date of the member's automatic removal.
(Ord. No. 100199, § 5, 12-17-04; Ord. No. 2009-03-19-0205, § 1, 3-19-09; Ord. No. 2019-09-12-0717, § 1, 9-12-19)

Sec. 2-541. City council ad hoc committee on boards and commissions.

(a) The office of the city clerk shall maintain a list of all city boards and commissions, divided into two (2) categories, "district boards and commissions" and "at-large boards and commissions." Periodically, the mayor shall appoint an ad hoc committee to review all city boards and commissions for sunset, consolidation, or other recommended change.

(b) This city council ad hoc committee on boards and commissions will be comprised of one (1) senior council member, who will serve as the chairperson, and two (2) other council members. Ad hoc committee will meet as needed, to review any board or commission concerns that need to be presented to the full city council.

(c) The city council, as evidenced by passage of an ordinance, may sunset inactive boards or commissions as recommended by the respective city council committee having oversight over the board or commission, and as deemed necessary by the ad hoc committee.
(Ord. No. 100199, § 6, 12-17-04; Ord. No. 2009-03-19-0205, § 1, 3-19-09; Ord. No. 2019-09-12-0717, § 1, 9-12-19)

Sec. 2-542. City council committee oversight.

(a) Each board and commission will report to a designated city council committee. This reporting relationship is determined by aligning boards and commissions with those city council committees that address similar subject matters.

(b) The office of the city clerk shall maintain a list of this reporting relationship, which will include the name of each city board and commission and its designated city council committee.

(c) The mayor may make any changes to the reporting relationships between the council committees and the boards and commissions.

(d) Written reports from each board or commission regarding its activities and recommendations must be provided to its respective city council committee on an annual basis and upon request.

(e) Each city council committee may recommend sunset, consolidation or other necessary action to the city council subcommittee on boards and commissions.
(Ord. No. 100199, § 7, 12-17-04; Ord. No. 2009-03-19-0205, § 1, 3-19-09; Ord. No. 2019-09-12-0717, § 1, 9-12-19)

Secs. 2-543—2-549. Reserved.

ARTICLE X. NON-DISCRIMINATION POLICIES

DIVISION 1. GENERALLY

Sec. 2-550. Non-discrimination policy.

(a) It shall be the general policy of the city to prohibit discrimination on the basis of race, color, religion, national origin, sex, sexual orientation, gender identity, veteran status, age or disability, as set forth in the divisions following, unless exempted by state or federal law or as otherwise indicated.

(b) A religious corporation, association, society or educational institution or an educational organization operated, supervised or controlled in whole or in substantial part by a religious corporation, association or society does not violate the non-discrimination policy by limiting employment or giving a preference in employment to members of the same religion, as determined solely by the religious corporation, association, or institution.

(c) Nothing in this article shall be construed as supporting or advocating any particular lifestyle or religious view. To the contrary, it is the intention of this article that all persons be treated fairly and equally and it is the express intent of this article to guarantee to all of our citizens fair and equal treatment under the law.

(d) Nothing herein shall be construed as requiring any person or organization to support or advocate any particular lifestyle or religious view, or advance any particular message or idea.
(Ord. No. 2013-09-05-0577, § 1, 9-5-13)

Sec. 2-551. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning in divisions below:

Age means an individual at least forty (40) years of age.

Disability means a mental or physical impairment that substantially limits at least one major life activity, a record of the impairment, or being regarded as having the impairment. This term does not include the current, illegal use of or addiction to a controlled substance as defined under state and federal law.

Gender identity means a gender-related identity, appearance, expression or behavior of an individual, regardless of the individual's assigned sex at birth.

Religion means all aspects of religious observance and practice, as well as belief, unless an employer demonstrates that the employer is unable to reasonably accommodate an employee's or prospective employee's religious observance or practice without undue hardship on the conduct of the employer's business.

Sex includes both sex, the biological differences between men and women, and gender; and encompasses sexual orientation and gender identity.

Sexual orientation means an individual's real orientation or orientation perceived by another as heterosexual, homosexual, bisexual or asexual.

Veteran status means a person who served in the active military, naval, or air service, and who was discharged or released under conditions other than dishonorable, as specified in 38 U.S.C. 101(2). "Active service" includes full-time Federal service in the National Guard or a Reserve component.
(Ord. No. 2013-09-05-0577, § 1, 9-5-13)

Sec. 2-552. Appointed officials, boards and commissions.

(a) *Appointments to boards and commissions.* When making appointments to boards and commissions, the city shall not discriminate on the basis of race, color, national origin, religion, sex, sexual orientation, gender identity, veteran status, age or disability.

(b) *Discrimination by appointed officials—Malfeasance.*

(1) No appointed official or member of a board or commission shall engage in discrimination against any person, group of persons, or organization on the basis of race, color, religion, national origin, sex, sexual orientation, gender identity, veteran status, age or disability, while acting in their official capacity while in such public position.

(2) Violation of this standard shall be considered malfeasance in office, and the city council shall be authorized to take action as provided by law to remove the offending person from office.
(Ord. No. 2013-09-05-0577, § 1, 9-5-13)

Sec. 2-553. Reserved.

DIVISION 2. CITY OF SAN ANTONIO EQUAL EMPLOYMENT OPPORTUNITY

Sec. 2-554. Policy.

(a) The city will maintain a policy of equal employment opportunity. No city employee or applicant for employment with the city will be denied employment or promotion because of race, color, religion, disability, sex, sexual orientation, gender identity, veteran status, age or

national origin. Fair and impartial treatment will be extended to all city employees and applicants for employment with the city.
(Ord. No. 2013-09-05-0577, § 1, 9-5-13)

Sec. 2-555. Establishment of program.

There is hereby established a city equal employment opportunity program.
(Ord. No. 2013-09-05-0577, § 1, 9-5-13)

Sec. 2-556. Division of equal employment opportunity, created, duties.

(a) There is hereby created a division of equal employment opportunity which shall be directly responsible to the city manager or designee.

(b) The division will administer and monitor the established equal employment opportunity program in accordance with existing federal, state, and city laws.

(c) The division will initiate investigations into any alleged discriminatory practices within the city.
(Ord. No. 2013-09-05-0577, § 1, 9-5-13)

Sec. 2-557. Duties of division generally.

(a) The equal employment opportunity division will be responsible for the implementation of this program.

(b) The equal employment opportunity division will work closely with all city departments to provide city employees and applicants for employment with the city with an opportunity to express complaints of discrimination based on race, color, religion, disability, sex, sexual orientation, gender identity, veteran status, age or national origin.

(c) The equal employment opportunity division will also work with the city training officer to orientate city employees to the functions of the program. Counseling will be provided to all city employees and applicants for employment with the city.
(Ord. No. 2013-09-05-0577, § 1, 9-5-13)

Sec. 2-558. Complaints, procedure.

(a) City employees may register complaints of discrimination with the city equal employment division, and complaints will be given prompt consideration. An investigation to determine the cause for the complaint will be conducted and findings will be acted upon without undue delay.

(b) All complaints will be investigated by the equal employment opportunity division and findings submitted to the city manager or designee without undue delay. Findings also will be relayed to the complainant and other persons officially involved. If it is determined that a violation has been committed, the situation will be corrected without undue delay.

(c) Discrimination complaints will be submitted in writing to the equal employment opportunity division. The equal employment opportunity division will be available to assist in aiding city employees who may lack the skill to submit the written report.

(d) An interview with the equal employment opportunity division will be scheduled to verify the following:

When the alleged violation occurred.

Against whom the alleged discrimination was registered.

Location of the alleged offense.

Person allegedly discriminated against.

Nature of the alleged offense.

Names of all persons and witnesses involved.

Remedy sought by the complainant.
(Ord. No. 2013-09-05-0577, § 1, 9-5-13)

Sec. 2-559. Unwarranted complaints; procedure.

If the complaint is found to be unwarranted, the complainant will be notified of such. The city manager or designee may conduct further investigation, confirm or deny the original decision. If there are legal questions involved, the complaint will be sent to the city legal department for review.
(Ord. No. 2013-09-05-0577, § 1, 9-5-13)

Secs. 2-560—2-570. Reserved.

DIVISION 3. OFFICE OF EMPLOYEE RELATIONS, EQUAL EMPLOYMENT OPPORTUNITY DIVISION

Sec. 2-571. Policy.

The city will maintain a policy of equal employment opportunity. No city employee or applicant for employment with the city will be denied employment or promotion because of race, color, religion, disability, sex, sexual orientation, gender identity, veteran status, age or national origin. Fair and impartial treatment will be extended to all city employees and applicants for employment with the city.
(Ord. No. 2013-09-05-0577, § 1, 9-5-13)

Sec. 2-572. Functions.

The office of employee relations, under the direction of the city manager or designee will be responsible for the following functions:

(1) Equal employment opportunity division:

a. Implements and monitors an equal employment opportunity program in accordance with the guidelines established by federal legislation;

b. Works closely with city departments to ensure that city employees and applicants for employment with the city have an opportunity to express complaints of discrimination based on race, color, religion, disability, sex, sexual orientation, gender identity, veteran status, age or national origin. A complaint filed with the equal employment opportunity office will prompt immediate investigations with findings reported to the city manager's designee. Findings also will be relayed to the complainant and other persons officially involved. When it is determined that a violation has occurred, the corrective action will be taken without undue delay and will be monitored to ensure compliance;

c. Provides counseling as to fair employment practice provisions of law to city employees, applicants for employment with the city, and supervisors of all levels of management. Assists the city training officer, as required, to acquaint city employees with the equal employment opportunity program;

d. Insures that assistance is available to aid city employees who may lack the skill to submit a written complaint;

e. Is responsible to establish an interview technique and checklist to assure a thorough and complete investigation of all written complaints.

(Ord. No. 2013-09-05-0577, § 1, 9-5-13)

Sec. 2-573. Applicability of equal employment opportunity program.

The following provisions of this division are also applicable to the equal employment opportunity program:

(1) The director of the department in which the complaint arose will cooperate and require all city employees of the department to cooperate with the equal employment opportunity officer investigating the complaint. All city employees having any knowledge of the complaint shall furnish statements of testimony under oath without a pledge of confidence.

(2) If the complaint is found to be unwarranted, the complainant will be notified of such. The city manager's designee may conduct further investigation, and con-

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firm or deny the original decision. If there are legal questions involved, the complaint will be sent to the city's legal department for review.

(3) Equal employment opportunity division employees, complainants, equal employment opportunity counselors, individuals providing information regarding complaints, shall not be harassed, intimidated, reprised, or retaliated against in any way preceding, during or upon completion of any equal employment opportunity investigation.

(4) Nothing in this division will be construed to lessen a supervisor's obligation to supervise those under him/her nor will it be construed to permit an employee of the city to act in a disrespectful manner prejudicial to good order.

(Ord. No. 2013-09-05-0577, § 1, 9-5-13)

Secs. 2-574—2-590. Reserved.

DIVISION 4. AFFIRMATIVE ACTION

Sec. 2-591. Plan adopted.

A copy of the most recently adopted affirmative action plan is available in the office of the city clerk and is incorporated by reference as if set forth at length herein. This affirmative action plan supersedes all previous plans and modifications to such plans.

(Ord. No. 2013-09-05-0577, § 1, 9-5-13)

DIVISION 5. PLACES OF PUBLIC ACCOMMODATION

Sec. 2-592. Discrimination prohibited; policy.

It shall be unlawful for any person, or any employee or agent thereof within the city, to discriminate against, withhold from or deny any person, because of race, color, religion, national origin, sex, sexual orientation, gender identity, veteran status, age or disability, any of the advantages, facilities or services offered to the general public by a place of public accommodation.

(Ord. No. 2013-09-05-0577, § 1, 9-5-13)

Sec. 2-593. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Hotel and *motel* shall include every establishment offering lodging to transient guests for compensation, but such terms shall not apply to any such establishment if the majority of occupants therein are permanent residents.

Place of public accommodation shall include every business within the city, whether wholesale or retail, which is open to the general public and offers, for compensation, any product, service or facility. The term place of public accommodation shall include, but not be limited to, all taverns, hotels, motels, apartment hotels, apartment houses with four (4) or more tenant units, restaurants or any place where food or beverages are sold, retail and wholesale establishments, hospitals, theaters, motion picture houses, museums, bowling alleys, golf courses and all public conveyances, as well as the stations or terminals thereof.

Restaurant shall include every cafe, cafeteria, coffee shop, sandwich shop, snack bar, supper club, soda fountain, soft drink or ice cream parlor, luncheonette, or other similar establishment, which offers food or beverages for purchase and consumption on the premises, but shall not include places at which intoxicating beverages are sold otherwise than as an accompaniment to meals.

Theater shall include every place, whether indoors or out-of-doors, at which any theatrical performance, moving picture show, musical concert or recital, dramatic reading or monologue, circus, carnival, or other like entertainment or amusement is offered for compensation.

(Ord. No. 2013-09-05-0577, § 1, 9-5-13)

Sec. 2-594. Exemptions.

This division shall not, however, apply to any hotel, motel, restaurant or theater operated by a

bona fide private club not conducted for the purpose of evading this division when the accommodations, advantages, facilities and services are restricted to the members of such club and their guests; nor to any bona fide social, fraternal, educational, civic, political or religious organization, when the profits of such accommodations, advantages, facilities and services, above reasonable and necessary expenses, are solely for the benefit or mission of such organization.

Nothing in division 5 will be construed as allowing any person to enter any sex-segregated space for any unlawful purpose.
(Ord. No. 2013-09-05-0577, § 1, 9-5-13)

Sec. 2-595. Effect on civil remedies now available.

This division shall neither add to nor detract from any civil remedies now available to persons subject to unlawful discrimination.
(Ord. No. 2013-09-05-0577, § 1, 9-5-13)

Secs. 2-596—2-620. Reserved.

DIVISION 6. DISCRIMINATORY HOUSING PRACTICES

Subdivision I. Declaration of Policy, Purpose and Authority

Sec. 2-621. Policy.

It is the policy of the city, through fair, orderly and lawful procedures, to promote the opportunity for each person to obtain housing without regard to race, color, religion, sex, sexual orientation, gender identity, veteran status, disability, familial status, national origin or age. This policy is grounded upon a recognition of the right of every person to have access to adequate housing of the person's own choice, and that the denial of this right because of race, color, religion, sex, sexual orientation, gender identity, veteran status, disability, familial status, national origin or age is detrimental to the health, safety, and welfare of the inhabitants of the city and constitutes an unjust deprivation of rights, which is within the power and proper responsibility of government to prevent.
(Ord. No. 2013-09-05-0577, § 1, 9-5-13)

Sec. 2-622. Purpose.

The purposes of this division are:

(1) To provide for fair housing practices in the city;

(2) To create a procedure for investigating and settling complaints of discriminatory housing practices; and

(3) To provide rights and remedies substantially equivalent to those granted under state and federal law.

(Ord. No. 2013-09-05-0577, § 1, 9-5-13)

Sec. 2-623. Authority.

This division is enacted pursuant to authority explicitly granted municipalities by the Texas Constitution Art. XI, Section 5; V.T.C.A., Local Government Code ch. 51, subch. E, ch. 54 and § 214.903; and V.T.C.A., Property Code ch. 301.
(Ord. No. 2013-09-05-0577, § 1, 9-5-13)

Subdivision II. Definitions

Sec. 2-624. Definitions.

The following definitions apply to words used in this division:

Accessible means that area of a housing accommodation that can be approached, entered and used by a person with a physical disability.

Accessible route means a continuous unobstructed path connecting accessible elements and spaces in a housing accommodation that can be negotiated by a person with a severe disability using a wheelchair and that is also safe for and usable by a person with other disabilities.

Aggrieved person includes any person who:

(1) Claims to have been injured by a discriminatory housing practice, or

(2) Believes that such person will be injured by a discriminatory housing practice that is about to occur.

Complainant means a person who lodges or files a written complaint with the fair housing office.

Conciliation means the attempted resolution of issues raised by a complainant or by the investigation of the complaint, through informal negotiations involving the aggrieved person, the respondent, and the fair housing office.

Conciliation agreement means a written agreement setting forth the resolution of the issues in conciliation.

Disability means:

(1) A physical or mental impairment that substantially limits one or more of the major life activities of such individual;

(2) A record of such an impairment; or

(3) Being regarded as having such an impairment.

This term does not include the current, illegal use of or addiction to a controlled substance as defined under state and federal law.

Discriminatory housing practice means an act prohibited by this division.

Dwelling means:

(1) Any building, structure, or part of a building or structure that is occupied as, or designed or intended for occupancy as, a residence by one or more families, and

(2) Any vacant land that is offered for sale or lease for the construction or location of a building, structure or part of a building or structure described in subsection (1) of this definition.

Fair housing office means the city office designated by the city manager to take complaints in violation of this division and to assist in conciliation.

Familial status means the status of a person resulting from being:

(1) Pregnant;

(2) Domiciled with an individual younger than eighteen (18) years of age in regard to whom the person:

a. Is the parent or legal guardian, or

b. Has the written permission of the parent or legal guardian for domicile with the individual; or

(3) In the process of securing legal custody of an individual who is younger than eighteen (18) years of age.

Family includes a single individual.

Major life activities mean functions such as, but not limited to, caring for oneself, performing manual tasks, walking, seeing, hearing, speaking, breathing, learning and working.

Person means one or more individuals, corporations, partnerships, associations, labor organizations, legal representatives, mutual companies, joint-stock companies, trusts, unincorporated organizations, trustees, trustees in cases under Title 11 of the United States Code, receivers, and fiduciaries.

Residence does not include a hotel, motel, or similar public accommodation where occupancy is available exclusively on a temporary, day-to-day basis.

Respondent means:

(1) The person accused of a violation of this division in a complaint of a discriminatory housing practice, and

(2) Any person identified as an additional or substitute respondent.

To rent includes to lease, sublease, to let, or to otherwise grant for a consideration the right to occupy premises not owned by the occupant.
(Ord. No. 2013-09-05-0577, § 1, 9-5-13)

Subdivision III. Prohibitions Against Discrimination

Sec. 2-625. Sale or rental.

(a) A person may not refuse to sell or rent a dwelling to a person who has made a bona fide offer; refuse to negotiate for the sale or rental of a

dwelling; or otherwise make unavailable or deny a dwelling to any person because of race, color, religion, sex, sexual orientation, gender identity, veteran status, disability, familial status, national origin or age.

(b) A person may not discriminate against any person in the terms, conditions, or privileges of sale or rental of a dwelling or in providing services or facilities in connection with the sale or rental, because of race, color, religion, sex, sexual orientation, gender identity, veteran status, disability, familial status, national origin or age.
(Ord. No. 2013-09-05-0577, § 1, 9-5-13)

Sec. 2-626. False representation; inspection.

A person may not represent to any person because of race, color, religion, sex, sexual orientation, gender identity, veteran status, disability, familial status, national origin or age that a dwelling is not available for inspection, sale, or rental when the dwelling is in fact so available.
(Ord. No. 2013-09-05-0577, § 1, 9-5-13)

Sec. 2-627. Entry into neighborhood.

A person may not, for profit, induce or attempt to induce a person to sell or rent a dwelling by representations regarding the entry or prospective entry into a neighborhood of a person of a particular race, color, religion, sex, sexual orientation, gender identity, veteran status, disability, familial status, national origin or age.
(Ord. No. 2013-09-05-0577, § 1, 9-5-13)

Sec. 2-628. Disability.

(a) A person may not discriminate in the sale or rental or otherwise make unavailable or deny a dwelling to a buyer or renter because of a disability of:

(1) That buyer or renter;

(2) A person residing in or intending to reside in that dwelling after it is sold, rented, or made available; or

(3) Any person associated with that buyer or renter.

(b) A person may not discriminate against any person in the terms, conditions, or privileges of sale or rental of a dwelling or in the provision of services or facilities in connection with the dwelling because of a disability of:

(1) That person;

(2) A person residing in or intending to reside in that dwelling after it is sold, rented, or made available; or

(3) Any person associated with that person.

(c) For purposes of this section only, discrimination includes:

(1) A refusal to permit, at the expense of the disabled person, reasonable modifications of existing premises occupied or to be occupied by such person if such modifications may be necessary to afford such person full enjoyment of the premises, except that, in the case of a rental, the landlord may where it is reasonable to do so condition permission for a modification on the renter agreeing to restore the interior of the premises to the condition that existed before the modification, reasonable wear and tear excepted.

(2) A refusal to make reasonable accommodations in rules, policies, practices, or services, when the accommodations may be necessary to afford a disabled person equal opportunity to use and enjoy a dwelling, including public and common use areas.

(3) In connection with the design and construction of covered multifamily dwellings for first occupancy after March 13, 1991, a failure to design and construct those dwellings in a manner that:

a. The public use and common use portions of such dwellings are readily accessible to and usable by persons with disabilities;

b. All the doors designed to allow passage into and within all premises within such dwellings are sufficiently wide to allow passage by persons in wheelchairs; and

c. All premises within such dwellings contain the following features of adaptive design:

1. An accessible route into and through the dwelling;
2. Light switches, electrical outlets, thermostats, and other environmental controls in accessible locations;
3. Reinforcements in bathroom walls to allow later installation of grab bars; and
4. Usable kitchens and bathrooms such that an individual in a wheelchair can maneuver about the space.

(d) Compliance with the appropriate requirements of the American National Standard Institute for buildings and facilities providing accessibility and usability for persons with physical disabilities, commonly cited as "ANSI A 117.1," suffices to satisfy the requirements of subsection (c)(3)c. of this section.

(e) As used in this subsection, the term "covered multi-family dwellings" means:

(1) Buildings consisting of four (4) or more units if the buildings have one or more elevators, and

(2) Ground floor units in other buildings consisting of four (4) or more units.

(f) Nothing in this subsection requires that a dwelling be made available to an individual whose tenancy would constitute a direct threat to the health or safety of other individuals or whose tenancy would result in substantial physical damage to the property of others.
(Ord. No. 2013-09-05-0577, § 1, 9-5-13)

Sec. 2-629. Publication.

A person may not make, print, or publish or cause to be made, printed, or published any notice, statement, or advertisement with respect to the sale or rental of a dwelling that indicates any preference, limitation, or discrimination based on race, color, religion, sex, sexual orientation, gender identity, veteran status, disability, or familial status, national origin or age, or an intention to make such a preference, limitation, or discrimination.
(Ord. No. 2013-09-05-0577, § 1, 9-5-13)

Sec. 2-630. Residential real estate related transaction.

(a) A person whose business includes engaging in residential real estate related transactions may not discriminate against a person in making a real estate related transaction available or in the terms or conditions of a real estate related transaction because of race, color, religion, sex, sexual orientation, gender identity, veteran status, disability, familial status, national origin or age.

(b) In this section, "residential real estate related transaction" means:

(1) Making or purchasing loans or providing other financial assistance,

a. To purchase, construct, improve, repair, or maintain a dwelling, or

b. Secured by residential real estate; or

(2) Selling, brokering, or appraising residential real property.
(Ord. No. 2013-09-05-0577, § 1, 9-5-13)

Sec. 2-631. Brokerage services.

A person may not deny any person access to, or membership or participation in, a multiple-listing service, real estate brokers' organization or other service, organization, or facility relating to the business of selling or renting dwellings, or discriminate against a person in the terms or conditions of access, membership, or participation in such an organization, service, or facility because of race, color, religion, sex, sexual orientation, gender identity, veteran status, disability, familial status, national origin or age.
(Ord. No. 2013-09-05-0577, § 1, 9-5-13)

Sec. 2-632. Interference with exercise of rights unlawful.

It shall be unlawful to coerce, intimidate, threaten or interfere with any person in the exercise or enjoyment of, or on account of his/her

having exercised or enjoyed, or on account of his/her having aided or encouraged any other person in the exercise or enjoyment of any right granted or protected by this division, including the giving of testimony or provision of information in aid of investigation or discovery under this division.
(Ord. No. 2013-09-05-0577, § 1, 9-5-13)

Sec. 2-633. Consideration of non-discriminatory factors.

Nothing in this division prohibits:

(1) Consideration of a person's conviction under federal law or the law of any state for the illegal manufacture or distribution of a controlled substance.

(2) A person engaged in the business of furnishing appraisals of real property from taking into consideration factors other than race, color, religion, sex, sexual orientation, gender identity, veteran status, disability, familial status, national origin or age.

(Ord. No. 2013-09-05-0577, § 1, 9-5-13)

Subdivision IV. Exemptions

Sec. 2-634. Sales and rentals exempted.

(a) Subject to subsection (b) of this section, sections 2-625 through 2-628 of this division do not apply to:

(1) The sale or rental of a single-family house sold or rented by an owner if:

a. The owner does not:

1. Own more than three (3) single-family houses at any one time, and

2. Own any interest in, nor is there owned or reserved on his behalf, under any express or voluntary agreement, title to or any right to any part of the proceeds from the sale or rental of more than three (3) single-family houses at any one time; and

b. The house is, or was sold or rented without:

1. The use of the sales or rental facilities or services of a real estate broker, agent, or salesman licensed under applicable state law or of an employee or agent of a licensed broker, agent, or salesman, or the facilities or services of the owner of a dwelling designed or intended for occupancy by five (5) or more families; and

2. The publication, posting, or mailing of a notice, statement or advertisement prohibited by section 2-629 of this division; or

(2) The sale or rental of rooms or units in a dwelling containing living quarters occupied or intended to be occupied by no more than four (4) families living independently of each other if the owner maintains and occupies one of the living quarters as the owner's residence.

(b) The exemption set forth in subsection (a)(1) of this section applies only to one sale or rental within a 24-month period if the owner did not reside in the house at the time of sale or rental or was not the most recent resident of the house prior to the sale or rental.
(Ord. No. 2013-09-05-0577, § 1, 9-5-13)

Sec. 2-635. Religious organizations and private clubs exempted.

(a) This division does not prohibit a religious organization, association, or society, or a nonprofit institution or organization operated, supervised, or controlled by or in conjunction with a religious organization, association, or society, from:

(1) Limiting the sale, rental, or occupy dwellings that it owns or operates for other than a commercial purpose to persons of the same religion, or

(2) Giving preference for such dwellings to persons of the same religion, unless membership in the religion is restricted because of race, color or national origin.

(b) This division does not prohibit a private club not in fact open to the public that, as an incident to its primary purpose, provides lodging that it owns or operates for other than a commercial purpose from limiting the rental or occupancy of that lodging to its members or from giving preference to its members.
(Ord. No. 2013-09-05-0577, § 1, 9-5-13)

Sec. 2-636. Housing for elderly exempted.

(a) The provisions of this division relating to familial status do not apply to housing for older persons.

(b) In this section "housing for older persons" means housing:

(1) That the Secretary of the United States Department of Housing and Urban Development determines is specifically designed and operated to assist elderly persons under a federal or state program;

(2) Intended for, and solely occupied by, persons sixty-two (62) years of age or older; or

(3) Intended and operated for occupancy by at least one person fifty-five (55) years of age or older per unit as determined by the Secretary of the United States Department of Housing and Urban Development. To the extent that such a determination falls within the jurisdiction of the United States Department of Housing and Urban Development, the following factors at minimum must be present for the dwelling(s) to qualify for the exemption:

a. The existence of significant facilities and services specifically designed to meet the physical or social needs of older persons, or if the provision of such facilities and services is not practicable, that such housing is necessary to provide important housing opportunities for older persons;

b. That at least eighty (80) percent of the units are occupied by at least one person fifty-five (55) years of age or older per unit; and

c. The publication of, and adherence to policies and procedures which demonstrate an intent by the owner or manager to provide housing for persons fifty-five (55) years of age or older.

(Ord. No. 2013-09-05-0577, § 1, 9-5-13)

Sec. 2-637. Appraisal exemption.

This division does not prohibit a person engaged in the business of furnishing appraisals of residential real property from taking into consideration factors other than race, color, religion, sex, sexual orientation, gender identity, veteran status, disability, familial status, national origin or age.
(Ord. No. 2013-09-05-0577, § 1, 9-5-13)

Sec. 2-638. Effect on other law.

This section and division do not affect a requirement of nondiscrimination in any other local, state or federal law.
(Ord. No. 2013-09-05-0577, § 1, 9-5-13)

Subdivision V. Enforcement

Sec. 2-639. Complaints.

The fair housing office shall upon receipt of a written complaint under oath, made by an aggrieved person charging a violation of any provision of the prohibitive sections of this division, make a prompt and full investigation of the complaint. If after such investigation, the fair housing office determines that a violation has occurred it shall attempt to eliminate the discriminatory housing practices by conciliation and persuasion. If the fair housing office fails in the conciliation proceedings, it shall forward all papers, including the written complaint, investigation, record of conciliation proceedings, factual findings and its recommendation to the city attorney and/or the U.S. Department of Housing and Urban Development for further prosecution. The complaint, investigation and conciliation proceedings shall be confidential records and proceedings of the fair housing office shall not be made public except upon the authority of the city council. The

city attorney shall review the proceedings and shall take appropriate legal action if it is deemed appropriate.

(1) In any proceeding brought pursuant to this section, the burden of proof shall be on the complainant;

(2) A complaint provided for in this division shall be filed within thirty (30) days after the alleged discriminatory housing practice occurred. Complaints shall state the facts upon which the allegations of a discriminatory housing practice are based. Complaints may be reasonably and fairly amended at any time. A respondent may file an answer to the complaint against him and with the leave of the fair housing office, which shall be granted whenever it would be reasonable and fair to do so, may amend his answer at any time. Both complaints and answers shall be signed.

(Ord. No. 2013-09-05-0577, § 1, 9-5-13)

DIVISION 7. TITLE VI COMPLIANCE

Sec. 2-640. Policy.

It is the policy of the city, as a recipient of Federal financial assistance and under Title VI of the Civil Rights Act of 1964, and related statutes, to ensure that no person shall on the grounds of race, religion (where the primary objective of the financial assistance is to provide employment per 42 U.S.C. Section 2000d-3), color, national origin, sex, sexual orientation, gender identity, veteran status, age, or disability be excluded from participation in, be denied the benefits of, or otherwise be subjected to discrimination or retaliation under any federally or non-federally funded city programs or activities administered by the city or its contractors.

(Ord. No. 2013-09-05-0577, § 1, 9-5-13)

Sec. 2-641. Complaint procedures.

The complaint procedures for Title VI transportation related programs, projects or activities known as Methods of Administration (MOA) can be found on the city's website.

(Ord. No. 2013-09-05-0577, § 1, 9-5-13)

ARTICLE XI. VETERANS CONTRACTING PREFERENCE PROGRAM

Sec. 2-642. Declaration of policy.

(a) It is the policy of the city to grant a preference to veteran-owned small businesses in accordance with the program set forth below, unless doing so would be contrary to the best interests of the city.

(b) Nothing in this article prohibits the city from rejecting any and all bids or offers.

(c) Nothing in this article requires the city to conduct a competitive solicitation for a contract.

(Ord. No. 2013-12-05-0864, § 1, 12-5-13; Ord. No. 2014-11-13-0924, § 2, 11-13-14)

Sec. 2-643. Definitions.

The words and phrases defined in this section and used in this article have the following meanings:

Concession contracts mean the renting of city-owned space on a contractual basis for the purpose of making a profit by selling a commodity/service.

Joint venture means a collaboration of for-profit business entities, in response to a solicitation, which is manifested by a written agreement, between two (2) or more independently owned and controlled business firms to form a third business entity solely for purposes of undertaking distinct roles and responsibilities in the completion of a given contract. Under this business arrangement, each joint venture partner shares in the management of the joint venture and also shares in the profits or losses of the joint venture enterprise commensurately with its contribution to the venture.

Respondent means a person or business entity that submits a responsive bid or proposal for a discretionary contract.

Small business means a business that does not exceed the U.S. Small Business Administration's size standards for small business preference eligibility, which vary by work category, as set forth in 13 CFR, § 121.201, as amended.

Veteran, as defined in 38 CFR § 74.1, as amended, is a person who served on active duty with the U.S. Army, Air Force, Navy, Marine Corps or Coast Guard, for any length of time and at any place and who was discharged or released under conditions other than dishonorable. Reservists or members of the National Guard called to federal active duty or disabled from a disease or injury incurred or aggravated in line of duty or while in training status also qualify as a veteran.

Veteran-owned small business (VOSB), as specified in 38 CFR § 74.1, as amended, is a business that is not less than fifty-one (51) percent owned by one (1) or more veterans, or in the case of any publicly owned business, not less than fifty-one (51) percent of the stock of which is owned by one (1) or more veterans; the management and daily business operations of which are controlled by one (1) or more veterans and qualifies as "small" for federal business size standard purposes. When used in this article, the term "VOSB" includes service-disabled veteran-owned small business, as that term is specified in 38 CFR § 74.1, as amended.
(Ord. No. 2013-12-05-0864, § 1, 12-5-13; Ord. No. 2014-11-13-0924, § 2, 11-13-14)

Sec. 2-644. Applicability.

The provisions of this policy apply to procurements of discretionary expenditure and revenue contracts for goods, services, and concessions, where the selection criteria is not limited by state or federal law in a manner that prevents application of the preference provided in this article. This policy does not apply to any expenditure or revenue contract with a value that is less than the amount that is required to be bid pursuant to state law (V.T.C.A., Local Government Code ch. 252, and as amended), currently fifty thousand dollars ($50,000.00) or less.
(Ord. No. 2013-12-05-0864, § 1, 12-5-13; Ord. No. 2014-11-13-0924, § 2, 11-13-14)

Sec. 2-645. Preference provided.

(a) When conducting a competitive solicitation procedure for a contract to which this policy applies, five (5) percent of the evaluation points (five (5) points, based upon a 100-point scale), shall be awarded to a respondent that is a VOSB.

(b) If the respondent is a joint venture with a VOSB member who is performing a commercially useful function on the city contract for which the respondent is seeking the preference, the respondent shall be eligible for a percentage of the VOSB evaluation points referenced above, which shall be awarded in direct proportion to the ownership interests of the VOSB in the joint venture.
(Ord. No. 2013-12-05-0864, § 1, 12-5-13; Ord. No. 2014-11-13-0924, § 2, 11-13-14)

Sec. 2-646. Comparison of qualifications.

The preference established herein does not prohibit or limit the right of the city to compare the quality of services proposed, or qualifications, character, responsibility and fitness of all persons or entities submitting responses to solicitations. In addition, the preference established herein does not prohibit the city from giving any other preference permitted by law in addition to this preference.
(Ord. No. 2013-12-05-0864, § 1, 12-5-13; Ord. No. 2014-11-13-0924, § 2, 11-13-14)

Sec. 2-647. Responsibilities and enforcement.

(a) The finance department, purchasing division ("purchasing"), shall establish a methodology for certification as a VOSB. The city may rely on a party's inclusion in the database of VOSBs maintained by the U.S. Small Business Administration, or certification by another public or private entity that uses similar certification procedures.

(b) The purchasing division shall provide written guidance to departments upon implementation of this article, and shall work with the director of the city's economic development department to provide interpretive guidance and criteria related to joint ventures seeking preferences under this and other city programs to ensure uniform application that meets the intent of this article.

(c) The submission of documentation by a person or business entity that is required to establish status as a VOSB, or to demonstrate the existence of and participation in a joint venture, that is found to contain false information is grounds for debarment.

(d) Successor authority. The departmental roles and responsibilities established by this article are extended to any successor department or division that performs comparable duties, in the event of an organizational restructuring or the creation of new or changed departments or divisions, or as otherwise provided by the city manager.
(Ord. No. 2013-12-05-0864, § 1, 12-5-13; Ord. No. 2014-11-13-0924, § 2, 11-13-14)

Sec. 2-648—2-660. Reserved.

ARTICLE XII. LOCAL PREFERENCE PROGRAM*

Sec. 2-661. Declaration of policy.

(a) It is the policy of the City of San Antonio (the "city") to use its spending powers to promote fiscal responsibility and maximize the amount of resident tax dollars that remain in the local economy for the benefit of its citizens by utilizing all available legal opportunities to contract with city businesses.

(b) It is the policy of the city to place an affirmative duty on city departments to grant a preference to city businesses unless doing so would be contrary to the best interests of the city.

(c) It is the policy of the city to achieve the policy goal in subsection (a) above by utilizing all permissible tools.

(d) Nothing in the article prohibits the city from rejecting any and all bids.
(Ord. No. 2013-12-05-0865, § 2, 12-5-13; Ord. No. 2014-11-13-0923, § 2, 11-13-14)

*__Editor's note—__Ord. No. 2013-12-05-0865, § 2, adopted December 5, 2013, redesignated the former article X, §§ 2-543—2-550 as article XII, §§ 2-661—2-668. The former article X pertained to similar subject matter, and derived from Ord. No. 2013-03-21-0167, § 2, adopted March 21, 2013.

Sec. 2-662. Definitions.

The words and phrases defined in this section and used in this article have the following meanings:

Bid means a response to a procurement for goods or non-professional services awarded solely on the basis of price.

Bidder means a responsible person or business entity that submits a responsive bid.

Centralized vendor registry (CVR) means a mandatory electronic system wherein the city requires all prospective bidders, respondents and subcontractors that are ready, willing and able to sell goods or services to the city to register. The CVR system assigns a unique identifier to each registrant that is then required for the purpose of submitting solicitation responses and invoices, and for receiving payments from the city.

City business means a business with a principal place of business within the city limits.

Headquartered means the place where a business entity's officers direct, control and coordinate the entity's activities.

Joint venture means a collaboration of business entities, in response to a solicitation, which is manifested by a written agreement between two (2) or more independently owned/governed and controlled business firms to form a third business entity solely for purposes of undertaking distinct roles and responsibilities in the completion of a given contract. Under this business arrangement, each joint venture partner shares in the management of the joint venture and also shares in the profits or losses/surplus or deficits of the joint venture enterprise commensurately with its contribution to the venture.

Managing department means the department managing the procurement for a contract.

PDFD means the purchasing division of the city's finance department, or successor division or department with primary responsibility for procurement.

Principal place of business means a business headquartered for one (1) year or more or having

an established place of business for one (1) year or more in the incorporated limits of the city and from which at least one hundred (100) of its employees or at least twenty (20) percent of its total number of full-time, part-time and contract employees are regularly-based and from which a substantial role in the business's performance of a commercially useful function or a substantial part of its operations is conducted by those employees. A location utilized solely as a post office box, mail drop or telephone message center or any similar combination, with no other substantial work function, is not a principal place of business.
(Ord. No. 2013-12-05-0865, § 2, 12-5-13; Ord. No. 2014-11-13-0923, § 2, 11-13-14; Ord. No. 2022-12-15-0981, § 2, 12-15-22)

Sec. 2-663. Purchases of personal property.

(a) Contracts of fifty thousand dollars ($50,000.00) to under five hundred thousand dollars ($500,000.00). In purchasing any personal property that is not affixed to real property, if the city receives one (1) or more bids from a bidder that is a city business and whose bid is within five (5) percent of the lowest bid price received by the city from a bidder who is not a city business, the city shall enter into a contract that requires an expenditure of fifty thousand dollars ($50,000.00) to under five hundred thousand dollars ($500,000.00) with the bidder that is a city business.

(b) Contracts of five hundred thousand dollars ($500,000.00) or more. In purchasing any personal property that is not affixed to real property, if the city receives one (1) or more bids from a bidder that is a city business and whose bid is within three (3) percent of the lowest bid price received by the city from a bidder who is not a city business, the city shall enter into a contract that requires an expenditure of five hundred thousand dollars ($500,000.00) or more with the bidder that is a city business.

(c) When a bidder is a joint venture, each joint venture partner must meet the definition of a city business to be eligible for the preference described in this section.
(Ord. No. 2013-12-05-0865, § 2, 12-5-13; Ord. No. 2014-11-13-0923, § 2, 11-13-14; Ord. No. 2022-12-15-0981, § 2, 12-15-22)

Sec. 2-664. Purchases of non-professional services.

(a) Non-professional services contracts of fifty thousand dollars ($50,000.00) to under five hundred thousand dollars ($500,000.00). In procuring non-professional services, excluding construction services, if the city receives one (1) or more bids from a bidder that is a city business and whose bid is within five (5) percent of the lowest bid price received by the city from a bidder who is not a city business, the city shall enter into a contract that requires an expenditure of fifty thousand dollars ($50,000.00) to under five hundred thousand dollars ($500,000.00) with the bidder that is a city business.

(b) Construction services contracts of fifty thousand dollars ($50,000.00) to under one hundred thousand dollars ($100,000.00). In procuring non-professional construction services, if the city receives one (1) or more bids from a bidder that is a city business and whose bid is within five (5) percent of the lowest bid price received by the city from a bidder who is not a city business, the city shall enter into a contract that requires an expenditure of fifty thousand dollars ($50,000.00) to under one hundred thousand dollars ($100,000.00) with the bidder that is a city business.

(c) When a bidder is a joint venture, each joint venture partner must meet the definition of a city business to be eligible for the preferences described in this section.
(Ord. No. 2013-12-05-0865, § 2, 12-5-13; Ord. No. 2014-11-13-0923, § 2, 11-13-14; Ord. No. 2022-12-15-0981, § 2, 12-15-22)

Sec. 2-665. Purchases of professional services; revenue and concession contracts.

(a) In procuring professional services under the Professional Services Procurement Act, V.T.C.A., Government Code § 2254.004, the managing department may, when appropriate, award up to twenty (20) points to a respondent based upon knowledge of, and experience regarding, local conditions as part of the qualifications determination.

(b) In procuring other professional services not governed by statute, revenue and concession contracts, the managing department may, when appropriate, award ten (10) points to a respondent that is a city business headquartered within the incorporated limits of the city, or five (5) points to a respondent that is a city business not headquartered within the incorporated limits of the city.

(c) For respondents submitting responses as a joint venture to solicitations for professional services not governed by statute, revenue and concession contracts, the following is applicable:

(1) For joint ventures, ownership and location of the individual entities entering into the joint venture relationship may be considered in the award of points. To be considered for points, at least one of the entities must be a city business; and

(2) Allocation of points for joint ventures may be determined by the percentage of ownership by a city business(es). If the city business entity(ies) is (are) headquartered within the incorporated limits of the city for one year or more, the managing department may, when appropriate, allocate a percentage of ten (10) points based upon the percentage of city business ownership in the joint venture. If the city business entity(ies) is (are) not headquartered within the incorporated limits of the city for one year or more, the managing department may, when appropriate, allocate a percentage of five (5) points based on the percentage of city business ownership in the joint venture.

(Ord. No. 2013-12-05-0865, § 2, 12-5-13; Ord. No. 2014-11-13-0923, § 2, 11-13-14)

Sec. 2-666. Reserved.

Sec. 2-667. Responsibilities and enforcement.

(a) PDFD shall determine the feasibility of establishing functionality in the city's Centralized Vendor Registry (CVR) necessary for a bidder to establish that it has a principal place of business in the city.

(b) The director of the managing department shall maintain written records of all departmental actions under this program.

(c) The PDFD is directed to provide written guidance to departments upon implementation of this article and shall work with the director of the city's economic development department to provide interpretive guidance and criteria related to joint ventures seeking preferences under this and other city programs to ensure uniform application that meets the intent of this article.

(d) The submission of documentation by a business entity that is required to establish a principal place of business, or to demonstrate the existence of and participation in a joint venture, that is found to contain false information is grounds for debarment.

(e) The PDFD shall produce quarterly reports, summarizing the dollar amount of procurements awarded to city businesses under this program.

(f) Successor authority. The departmental roles and responsibilities established by this article are extended to any successor department or division that performs comparable duties, in the event of an organizational restructuring or the creation of new or changed departments or divisions, or as otherwise provided by the city manager.

(Ord. No. 2013-12-05-0865, § 2, 12-5-13; Ord. No. 2014-11-13-0923, § 2, 11-13-14)

Sec. 2-668. Exceptions.

(a) This program does not apply to any contract funded in whole or in part by the federal government or where the city acts as a conduit for federal money, unless otherwise allowed by applicable federal statutes or the federal grantor expressly mandates or encourages geographic preference.

(b) This program does not apply to contracts where the managing department or city council has determined that it would not be in the best interest of the city.

(c) In accordance with V.T.C.A., Local Government Code § 271.9051, this program does not apply to the purchase of telecommunications services or information services, as those terms are defined by 47 U.S.C.A. § 153.

(Ord. No. 2013-12-05-0865, § 2, 12-5-13; Ord. No. 2014-11-13-0923, § 2, 11-13-14; Ord. No. 2022-12-15-0981, § 2, 12-15-22)

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Chapter 3

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ARTICLE II. SAN ANTONIO INTERNATIONAL AIRPORT AND STINSON MUNICIPAL AIRPORT RULES AND REGULATIONS*

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All users of, and persons on, the airport shall be governed by the provisions of this chapter and other rules promulgated by the aviation director in compliance with federal regulations. The provisions of this chapter may be changed or amended from time to time by the aviation director with approval from city council. The aviation director shall have authority to take such actions as may be necessary to safeguard persons and property at the airport, and to make and enforce such provisions, in addition to those provided herein, as shall be required in any emergency or abnormal condition or situation.

This chapter is not intended to amend, modify, or supersede any provisions of federal, state, or local law, or any specific contractual agreement of the city with which it may conflict; provided, however, that this chapter shall, insofar as possible, be interpreted such that a conflict shall not exist.

All users of and persons on the airport shall obey all rules and regulations relating to the use of facilities of the airport. These include all fire, safety, and health regulations. Each person shall obey the laws and regulations of the United States of America, the State of Texas, and Bexar County, and all applicable city ordinances as now exist or as hereafter shall exist.

Further, if any provision of this article is held to be invalid, the remainder of these rules and regulations shall remain in effect.
(Ord. No. 2015-04-09-0289, § 1(Att. I), 4-9-15)

Sec. 3-17. Definitions.

Air operations area (AOA): The AOA consists of all areas contained within the airport perimeter fence at San Antonio International Airport and Stinson Municipal Airport. At San Antonio International Airport, this area is subject to all the requirements set forth in the airport security program.

Aircraft: A device used or intended to be used for flight in the air.

Aircraft accident: An occurrence associated with an aircraft operation that takes place between the time any person boards the aircraft with the intention of flight and until such time as all such persons have disembarked, and in which any person suffers death or serious injury, or in which the aircraft receives substantial damage. All aspects of the exceptions to substantial damage (see "substantial damage") should be considered before making a final substantial damage determination that would classify the occurrence as an aircraft accident.

Aircraft engine: An engine used or intended to be used for propelling aircraft, including turbo superchargers, appurtenances, and accessories necessary for its functioning, but not including propellers.

Aircraft incident: An occurrence other than an aircraft accident associated with an aircraft operation that affects or could affect the safety of future operations.

Aircraft support vehicles (commonly referred to as *ground service equipment*): Vehicles that are routinely used on the AOA to support aircraft operations (e.g. aircraft pushback tractors, baggage/cargo tractors or trucks, air conditioning

*__Editor's note—__*Ord. No. 2015-04-09-0289, § 1(Att. I), adopted April 9, 2015, amended article II in its entirety to read as herein set out. Formerly, article II, divisions 1—10, pertained to similar subject matter, and derived from Ord. No. 2013-01-31-0073, § 1(Att. 1), adopted January 31, 2013; Ord. No. 2011-01-20-0048, § 1(Att. I), adopted January 20, 2011; Ord. No. 2011-09-15-0752, § 1(Att. C), adopted September 15, 2011, and Ord. No. 2012-09-13-0699, § 2(Att. C), adopted September 13, 2012.

Cross reference—Motor vehicles and traffic generally, § 19-1 et seq.

and aviation fuel trucks). These vehicles are typically owned by airlines, vendors or contractors and are not eligible for federal funding.

Airfield service vehicles: Vehicles that are routinely used in the AOA for airfield service, maintenance, or construction (e.g. snow blowers, snowplows, maintenance trucks, airport operations, security, safety, airport police, Aircraft Rescue and Firefighting (ARFF) and tractors).

Airport: Any facility or area of land or water intended to be used for the landing, maneuvering, and taking off of aircraft, and including all contiguous property thereto held or used for airport purposes, including all improvements and appurtenances thereon, regardless of the fact that they may be owned, controlled, leased, or occupied by persons or governmental agencies other than the city. Within these rules and regulations, unless otherwise specified, the term "airport" shall refer to both San Antonio International Airport and Stinson Municipal Airport.

Airport business: Any person or legal entity that operates a business or not-for-profit activity at the airport under a lease, concession agreement, operating agreement, permit, right-of-entry, contract, use and lease agreement, purchase order, license, or other legal authority, including subcontractors, sublessees, and vendors. Acts or omissions of an airport business's employees, officers, contractors, and other representatives are attributed to the airport business for purposes of application and enforcement of this chapter.

Aviation director: As used in this chapter, the aviation director of the city, referred to within these rules and regulations as "aviation director" or "director," and includes any subordinate specifically authorized to act on his/her behalf. The director shall be responsible for procedures and the safe and efficient operation, management, and maintenance of San Antonio International Airport, Stinson Municipal Airport, and all city-owned facilities and equipment in connection therewith, and for the enforcement of all ordinances, provisions, and rules governing airport operations.

Airport highways, streets, or roads: Any designated roadway and right-of-way established on airport property by the aviation director for use by motorized vehicles.

Airport identification media: Identification media issued by the badge and identification office of the airport security division which has been approved by the Transportation Security Administration for the San Antonio International Airport.

Airport police: The San Antonio Airport Police Division of the San Antonio Police Department or similar entity charged with policing duties at the airport.

Airport security program (ASP): A Transportation Security Administration (TSA) approved airport operator's manual that governs security-related activities, communications, and procedures.

Business day: Monday to Friday 8:00 am to 4:30 pm, not including holidays recognized by the city and weekends

City: The City of San Antonio, Texas.

City Council: The City Council of the city of San Antonio, Texas.

DHS: The United States Department of Homeland Security.

Driver: Any person responsible for the direct control of a vehicle of any type, while the vehicle is in operation.

Emergency vehicle: Vehicles of the police departments, fire departments, ambulances, airport operations and security vehicles, and/or vehicles conveying an airport official or airport employee in response to any emergency call.

Experimental flights: The operation of any aircraft holding an experimental airworthiness certificate issued by the Federal Aviation Administration (FAA) or the appropriate foreign government.

Federal Aviation Administration (FAA): The United States Department of Transportation's Federal Aviation Administration.

Foreign object debris (FOD): Any object located in an inappropriate location in the airport environment that is capable of causing injury to airport or airline personnel and/or damaging aircraft.

Geo-fence: A polygon whose points are geographic coordinates which define a virtual boundary around a geographic area on SAT property designated by SAT. There may be multiple geo-fences that are nested or geographically separate from the main fence surrounding the entire airport property.

Ground demonstrations: The operation or movement of any aircraft or aircraft engine for the purpose of displaying the operation of said aircraft or aircraft engine to persons not on board the aircraft. Such operations or movements do not include engine runups at approved locations and times as designated by the director.

Movement area: The runways, taxiways, and other areas of an airport that aircraft use for taxiing, takeoff, and landing, exclusive of loading ramps and parking areas, and that are under the control of an airport traffic control tower.

Night: The time between the end of evening civil twilight and the beginning of morning civil twilight, as published in the American Air Almanac, converted to local time.

Non-movement area: The taxiways, aprons, and other areas not under the control of an airport traffic control tower or at an airport without an operating airport traffic control tower. Non-movement areas are under the direct control of airport operations.

Obstruction: Any structure, growth, or other object, including a mobile object, that exceeds the height limitations established by federal regulations in the vicinity of the airport.

Person: Any individual, partnership, corporation or government entity.

Restricted area: Any area the director designates as restricted under certain circumstances from time to time, either in writing or by means of maps or barriers, and in which the general public is not allowed.

Safety area: A defined surface alongside of a runway, taxiway, or taxilane that has been prepared or is suitable for reducing the risk of damage to an aircraft in case of an unintentional departure from the paved surface.

San Antonio Airport System: San Antonio International Airport or Stinson Municipal Airport and the aviation department of the City of San Antonio.

Secured area: A portion of an airport, specified in the airport security program, in which certain security measures are specified by federal regulations. This area is where aircraft operators and airlines enplane and deplane passengers and sort and load baggage. This area includes ramps and aprons where commercial aircraft park.

Security identification display area (SIDA): A portion of an airport specified in the airport security program, in which security measures specified in 49 C.F.R. Part 1542 are carried out. This area at San Antonio International Airport includes the secured area and the AOA.

Sterile area: The area beyond the airport passenger security checkpoints that provides passengers access to board aircraft and to which access generally is regulated by the TSA, through the screening of persons and property.

Substantial damage: Damage or failure that adversely affects the structural strength, performance, or flight characteristics of the aircraft, and that would normally require major repair or replacement of the affected component. Engine failure or damage limited to an engine if only one (1) engine fails or is damaged, bent fairings or cowling, dented skin, small puncture holes in the skin or fabric, ground damage to rotor or propeller blades, or damage to landing gear, wheels, tires, flaps, engine accessories, brakes, or wing tips are not considered substantial damage for purposes of this chapter.

Surface area airspace: The airspace area within which the provisions of these rules and regulations govern, including areas inside and outside the corporate city limits as defined by city ordinances or by Federal Aviation Regulations (FARs), which is the airspace contained by the

lateral boundary of the federally designated class of airspace for an airport, beginning at the surface and extending upward.

Taxi hold lot: The primary queue lot for taxis awaiting dispatch to the terminal area.

Transportation network company ("TNC"): A firm, corporation or company that uses an internet enabled application or digital platform to send or transmit an electronic, radio or telephonic communication through the use of a portable or handheld device, monitor, smartphone or other electronic device to connect passengers with transportation network drivers for transportation network operations.

TNC operator: A person who receives connections to potential passengers and related services from TNC in exchange for payment of a fee to TNC; and uses a TNC vehicle to offer or provide a prearranged ride to passengers upon connection through the digital network controlled by TNC in return for compensation or payment of a fee. A person is acting as a TNC operator anytime the person is a TNC operator on a TNCs digital network, regardless of whether the person has a passenger in the vehicle.

*Transportation Security Administration (TSA):*The United States Department of Homeland Security's Transportation Security Administration.

Ultralight vehicle: An aeronautical vehicle operated for sport or recreational purposes that does not require FAA registration, an airworthiness certificate, nor pilot certification in accordance with Federal Aviation Regulations (FARs).

Vehicle: Any conveyance, except aircraft, used on the ground to transport persons, cargo, and/or equipment, or those conveyances required to perform maintenance, construction, services, and security duties (e.g., aircraft support vehicles, airfield support vehicles, vans, aviation fuel trucks, food service trucks, lavatory trucks, golf carts, and buses).
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15; Ord. No. 2018-04-12-0266, § 1(Att. 1), 4-12-18)

Sec. 3-18. Boundaries.

The boundaries of the airport shall include all land owned, leased, or otherwise controlled by the city, whether inside or outside the city limits, for the express purpose of accommodating aviation-related operations, including but not limited to additional areas controlled by the city adjacent to such land at any and all airport facilities for the proper operation of or access to the airport. Such land areas shall be shown on the FAA-approved Airport Layout Plan (ALP) and incorporated herein by reference showing the boundaries of all such controlled areas. A copy of the FAA-approved ALP is on file at the office of the director.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-19. Damage to or destruction of airport property.

(a) No person shall destroy, or cause to be destroyed, injure, damage, deface, or disturb in any way any building, sign, equipment, marker, or other structure, tree, flower, lawn, or property of any nature located on the airport. Any person causing or responsible for such injury, destruction, damage, or disturbance, including damage caused by the improper operation of a vehicle or aircraft, shall report such damage to the airport police and, upon demand by the director, shall reimburse the city's aviation department for the full amount of the damage(s).

(b) Any SIDA badge holder observing or discovering damage to airport property shall report such damage to the communications center at 207-3433.

(c) The cost of repair or replacement necessitated by any such damage or destruction shall be ascertained by the director, who shall make demand upon said person, owner, or operator for payment thereof. The director may choose to forward information relating to the cost of the repairs or replacement to the risk management division of the city's finance department and request that the department endeavor to recover the costs associated with said repairs or replacement from the individual or entity responsible for the damage. In the event of the failure or refusal of said person, owner, or operator to pay

the amount of such claim for damage or destruction, a full report of the circumstances on which said claim is based, together with a copy of said claim, shall be forwarded to the city attorney, who shall, when directed by the city council, institute all necessary legal proceedings for collection of said claim.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-20. Health.

In an effort to minimize exposure in airport facilities to communicable diseases and to ensure that potential disease vectors from endemic areas that may be harboring in aircraft are not released into San Antonio, all aviation department personnel, airport tenants and their personnel are required to immediately report any known or suspected communicable disease or potential disease vector discovered at San Antonio International and Stinson Municipal Airports to the airport communications center.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15; Ord. No. 2018-04-12-0266, § 1(Att. 1), 4-12-18)

Sec. 3-21. Right of inspection.

The city reserves the right to inspect all buildings, improvements, betterments, and equipment located on, or activities conducted at, the airport, including but not limited to fuel equipment, effluent and chemical discharges, and any other inspection necessary to comply with health, safety, and environmental regulations at the federal, state, or local level or to comply with grant assurances made by city to any governmental agency. Advance notice of inspection may be provided by the city as a courtesy, but is not required.

Nothing herein contained shall be construed to limit the use of any area or portion of any terminal space by authorized officers or employees of the airport, or by airport contractors, or to prevent law enforcement or any other public officer or employee from entering upon any part of the airport terminal when properly required to do so in the performance of his/her official duties.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15; Ord. No. 2018-04-12-0266, § 1(Att. 1), 4-12-18)

Sec. 3-22. Commercial and non-commercial activities.

(a) *Commercial activities.*

(1) It shall be unlawful for any person or entity:

a. To engage in any commercial activity or services on the premises of the airport without first entering into an agreement with the city.

b. To engage in commercial activity not specifically authorized by an agreement with the city.

c. To post, distribute or display signs or advertisements pursuant to the conditions of a written agreement with the city.

(2) *Agreement* shall mean a written contract, authorized by city ordinance as applicable, executed by the parties, and enforceable by law between the city and a person or entity. Such agreement will recite the terms and conditions under which specified activities will be conducted at the airport and the rights and obligations of the respective parties.

(3) *Commercial activity* shall mean and include any and all activity conducted at or out of the airport by any person, in which any product, goods, services, or entertainment is offered, exchanged, or sold for monetary gain, an asset, or service, or the promise thereof.

(b) *Solicitation.*

(1) No person shall engage in any solicitation for any purpose or in any manner on airport property unless such solicitation is authorized pursuant to an agreement with the city.

(2) *Solicitation* or *soliciting* is defined as any request, direct or indirect, for money, credit, property, financial assistance, or other thing of value in pursuit of a commercial activity or for religious, political or charitable purposes. Solicitation, as defined herein, shall be deemed completed when communicated to any

person located upon the airport regardless of whether or not the person making such solicitation receives any contribution or makes any sale.

(c) *Non-commercial activity.*

(1) *Purpose.* The city supports our citizens' freedom to exercise their constitutional rights of free speech, as long as such activity does not interfere with the safe and efficient operation of San Antonio Airport System facilities (including San Antonio International Airport and Stinson Municipal Airport), or impede its passengers, tenants or members of the general public. Any person or organization desiring to use airport property for non-commercial purposes, to include exercising constitutional rights of free speech and freedom of religion, such as public demonstrations or the distribution of literature, shall be permitted to conduct such activities providing the activities meet the criteria indicated in subsection (c)(3), and:

a. Allow for the free, orderly, and efficient flow of pedestrian and vehicular traffic through the airport premises, do not result in impairing or interfering with operational functions; and

b. Protect all persons using the airport from harassment, intimidation, and being subjected to unreasonable contacts by any persons or organizations seeking to exercise rights of free speech.

(2) *General.* No person, group, association, organization, or entity shall engage in picketing, demonstrations, or marches, nor distribute literature of any nature whatsoever on the airport without first obtaining a permit from the director.

(3) *Permits.*

a. The director shall exercise no judgment regarding the purpose or content of the proposed activities, and shall exercise no discretion over the issuance of a registration permit hereunder, it being the intent of this division that the issuance of a permit by the director shall be a routine, clerical, and mandatory function. The director shall consider only factors effecting the safe and efficient operation of the airport. The content or viewpoint of the requestor's speech shall not be considered in any manner by the director.

b. A permit is required to engage in picketing, demonstrations, marches or distribute literature at the airport unless the director waives such requirement. An application showing the nature of the intended activities may be submitted to the director up to thirty (30) days in advance of such activities. Groups or individuals can request a permit and obtain information on the process by calling (210) 207-7242.

The written application shall contain:

1. The full name, residential mailing address, and telephone number of the individual or organization sponsoring, conducting, or promoting the proposed activities;

2. The full name, residential mailing address, and telephone number of the contact person in the organization who will have supervision of and responsibility for the proposed activities;

3. The dates and hours on and during which the activities are proposed to be carried out, and the expected duration of the proposed activities;

4. A description of the proposed activities, indicating the type of communication involved; and

5. The area (if any) of the airport where the applicant prefers to conduct the activity.

c. Timing. Permit(s) shall be requested no later than two (2) calendar days prior to the proposed activity unless the director waives such requirement. Permit will be issued promptly (normally within two (2) calendar days following receipt) by the director of a fully and accurately completed registration form. The director shall issue the person a permit approval letter that shall indicate the person/group's registration number and the date of expiration, and shall designate the area of the airport to which the person/group has been assigned and any other necessary restrictions. If unusual circumstances preclude two (2) day notice for permitting processing, the director may issue approval for public activities, pending submission of a permit request. While the request to the director may be in a form other than a written permit, the director shall, time permitting, provide notification of approval to the requestor through electronic mail, as a minimum, with notification to other aviation department staff. Notification shall include the authorized location for the proposed activities.

d. To enhance access to approved free speech areas by new individuals or groups, the director may implement rules and procedures regarding timing, duration, and/or location(s) of the event(s) in order to provide fair and equitable exposure for an activity, while protecting the safe and efficient operation of the airport.

e. Permit(s) are nontransferable.

f. Any person conducting any activities referred to in this division shall keep the permit approval letter on his or her person at all times while conducting any activities regulated hereunder and shall display the permit approval letter upon the request of any person.

(4) *Location of activities.* In order not to unduly interfere with the orderly flow of the general public, picketing, demonstrations, distribution of literature, marches, or other first amendment activities, the director will provide a prominent area(s) depending on the size of the protesting group that allows reasonable access to the intended audience, while not interfering with the safe and efficient operation of the airport applicant shall have the option of requesting spaces that are not pre-designated in their permit application. The director shall review those requests on a case-by-case basis and will make a decision based on balancing First Amendment rights with the safe and efficient operations of the airport.

a. The director may move the permitted activities from one area to another area when, in the judgment of the director, a move(s) is necessary for the safe and efficient operation of the transportation function of the airport.

b. Reserved.

(5) *Booths.* Booths are identified in subsection (c)(4), and are located inside the terminal building of San Antonio International Airport. One (1) booth will be provided by the city at no cost to the person or persons using the booth. In order not to interfere with the free flow of passenger traffic and efficient airport operations, users/groups must limit activities to the space four (4) feet behind the booth and not to exceed the width of the booth. User/groups may not conduct activities in front of the booth.

(6) *Placard, sign, circular or other written material.* Placard, sign, circular or other written material may be affixed to a booth or carried by participant(s), pursuant to the requirements in subsection

(c)(5), but only during such time as the associated person(s), group, association, or organization physically occupies such booth. The placard, sign, circular or other written material must be affixed only in such a manner as not to damage the booth in any manner and to be easily removable.

(7) *Number of persons.* When the number of persons/groups desiring to engage in picketing, demonstrations, marches, or distribution of literature at the airport exceeds the number specified for any one area as stated herein, the director may impose reasonable and equitable restrictions limiting the dates or hours of such activities in order to provide as fair and equitable as possible an opportunity for all persons to conduct such activities, while ensuring the safe and efficient operation of the transportation function of the airport. Every effort shall be made to identify a location for the proposed activity that allows the expression of speech, including reasonable access to the intended audience and does not interfere with the safe and efficient operation of the airport, its passengers, tenants or members of the general public.

(8) *Prohibited conduct.* The following conduct is prohibited:

a. Performing any ceremony, speech, song, carrying of any sign or placard, or other such activity which constitutes a danger to persons or property, or which hampers, delays or interferes with the authorized business of the airport including, but not limited to, the orderly formation and progression of waiting lines, pedestrian and/or vehicular travel, the issuance of tickets or boarding passes or equivalent documents for air or ground transportation, luggage or cargo movement or handling, the entry to and exit from vehicles, security procedures, government inspection procedures, cleaning, maintenance, repair and/or construction operations.

b. Carrying or displaying a sign or placard larger than twenty-four (24) inches by thirty-six (36) inches (24" × 36") in size.

c. Intentionally leaving unattended any brochure, flyer, or any other item intended for distribution.

d. Distributing any merchandise, including but not limited to jewelry, food stuffs, candles, flowers, badges and clothing.

e. Affixing any placard, sign, circular or other written material to the exterior or interior of any building or other appurtenance within the airport premises, including, but not limited to, any wall post, counter, billboard, or any other surface, with the exception of the city-provided booths in the areas indicated in subsection (c)(4) above.

f. Erecting any table, chair, mechanical device or other structure, with the exception of persons requiring the use of a wheelchair or other disadvantaged related device.

g. Using a stick or pole to support any hand carried sign.

h. Preventing or interfering with the conduct of business at the airport.

i. Soliciting as defined in subsection (b)(2) above.

j. Providing any service.

(9) *Indemnity.* All persons conducting noncommercial activities at the airport agree to indemnify the city, its agents, and employees from and against any and all claims and demands from third parties, whether just or unjust, for personal injuries (including death) and/or property damage (including theft or loss) caused by, or alleged to be caused by, the activities of such person on airport property.

(d) *Emergencies.* The director is empowered to wholly or partially restrict or suspend the activities authorized under permits issued pursuant to subsection (c)(3) above in the event of emergencies that disrupt the normal operations of the airport or threaten the security of the general public. Emergencies include, but are not limited to, unusual conditions due to adverse weather, emergency security measures, aircraft or traffic accidents, power failures, fires, or other emergency conditions or circumstances disrupting the normal operations of the airport.

(e) *Revocation of permit.* A permit granted pursuant to subsection (c)(3) above may be revoked by the director for any of the following reasons:

(1) Violation of any provision or restriction of the registration form;

(2) Any action by permittee that adversely affects the safety of the public;

(3) Discovery of fraud or misrepresentation in the permit application; or

(4) Violation of any of the terms and conditions of this chapter.

(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15; Ord. No. 2018-03-01-0151, § 1(Att. B), 3-1-18)

Sec. 3-23. Improper conduct.

(a) No person shall engage in any improper conduct while on airport property. Improper conduct includes, without limitation, using profane or vulgar language; committing a felony or a misdemeanor; unlawfully possessing a firearm or other weapon; fighting, defecating, or urinating in public; gambling or participating in other games of chance where money is involved; failing to cooperate with any airport official in the performance of his or her official duties; willfully assaulting or committing battery upon any person; threatening the safety of any person; recklessly or intentionally destroying property owned by any person; or acting in a manner intended or that is reasonably likely to cause physical injury to any person.

(b) No person shall dispose of garbage, papers, refuse, or other material on the airport except in the receptacles provided for that purpose; nor shall any person expectorate on the floors, walls, or other surfaces of any airport; or use airport property other than in a clean and sanitary manner. Hazardous waste shall be disposed of by the generator in accordance with law, but shall not be placed in airport trash or garbage receptacles.

(c) No person shall touch or tamper with any trap or device used by the director's designee for wildlife mitigation/control.

(d) No person shall intentionally touch any person without his or her consent.

(e) No person shall coerce, obstruct, delay, or interfere with the free movement of any other person, or seeking to coerce or physically disturb any other person.

(f) No person shall impersonate or falsely indicate to the public in any way that he or she is a representative of the city, the airport, or any airline.

(g) No person shall misrepresent his or her identity or misrepresent the organization or purpose of the commercial or non-commercial activity in which the person is engaged.

(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-24. Drugs, alcohol, and intoxication.

No person shall consume any alcoholic beverage in the terminal except in places specifically designated for dispensing of and consuming alcoholic beverages or as otherwise provided herein.

No person under the influence of alcohol, narcotics, or other controlled substances shall operate a vehicle or aircraft on the airport.

No person in any public area of the terminal or in any restricted area, or in the area adjacent to the aircraft loading gates designated for use by passengers waiting to board an aircraft, shall be in possession of a bottle, can, or other receptacle containing an alcoholic beverage that has been opened, or with a broken seal, or the contents of which have been partially removed, unless the bottle, can, or other receptacle 1) has been purchased in accordance with the provisions of the Texas Alcoholic Beverage Code governing the off-premises consumption of alcohol from a vendor

located within the terminal area which vendor has been issued a valid permit or license issued by the Texas Alcoholic Beverage Commission, or 2) is enclosed in a suitcase or carrying case.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15; Ord. No. 2022-06-16-0433, § 1(Att. A), 6-16-22)

Sec. 3-25. Refuse removal and containers.

(a) Refuse containers in public areas shall be covered. No vehicle or container used for hauling trash, dirt, or any other material shall be operated on the airport unless such vehicle or container is constructed and maintained so as to prevent the contents thereof from dropping, sifting, leaking, or otherwise escaping therefrom. Areas to be used for trash or garbage containers shall be designated by the director, and no other areas shall be so used. Such areas shall be kept clean and sanitary at all times.

(b) It shall be unlawful for any person to search through refuse or garbage material that has been disposed of or abandoned by someone other than themselves or their employees in search of items for private or business use.

(c) Any used cooking oil shall be transported in a sealed oil trolley specifically made for transporting oil. The container shall be sealed properly while the oil is transported and any spills or drips shall be cleaned up immediately. Oil should only be transported in the cargo elevators. Passenger elevators shall not be used for transporting oil.

(d) Any large surplus equipment, broken items or supplies used in a leased space should be disposed of properly. Items should be transported off the airport property by the lessee immediately and not allowed to sit on the loading dock or in hallways.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-26. Reflective safety vests.

All persons on the AOA at the San Antonio Airport System must wear a reflective safety vest at all times. This regulation does not apply to aircraft passengers traversing to or from an aircraft and transient pilots or staff pilots conducting duties associated with the inspection or operation of an aircraft in preparation for flight.

(1) All persons working on any airport highways, streets, or roads shall also be required to wear high visibility reflective safety vests, garments or clothing to comply with the U.S. Department of Transportation's Work Zone Safety and Mobility regulations.

(2) All required reflective safety vests, garments and clothing must, at a minimum, meet American National Standard Institute (ANSI) 107 standard, Class-2, Level-2 Performance Level and be worn properly, which means the outermost garment.

(3) Within the AOA, deviations to the ANSI requirements must be submitted to the aviation director in writing for approval.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15; Ord. No. 2018-04-12-0266, § 1(Att. 1), 4-12-18)

Sec. 3-27. Foreign object debris (FOD).

(a) Each airport employee shall be responsible for the proper disposal of FOD on ramps, apron areas, and the AOA.

(b) It is the responsibility of each lessee or other occupant of ramp and apron areas to place suitable containers, as determined by the director, labeled "foreign object debris," at every gate, remote aircraft parking area, cargo, and maintenance facilities at locations determined by the director.

(c) All persons operating or conducting business on the AOA shall ensure that any owned/operated equipment that could be repositioned or moved by winds over thirty (30) miles per hour or other weather related forces shall be properly secured at all times to ensure that the equipment will not move from its parked position. The cost of any damage to airport or tenant property that is caused by unsecured equipment shall be the responsibility of the owner/operator of the unsecured equipment.

(d) Any airport business operating on the AOA shall be required to keep its leasehold clean and free of FOD at all times. The director shall

monitor all leaseholds within the AOA to ensure that they are properly clean and free of FOD. Any airport business whose leasehold the director deems to not be satisfactorily clean and free of FOD shall be notified in writing of the noncompliance and given ten (10) calendar days

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from the date the letter is sent to sufficiently clean their leasehold. If the airport business fails to clean their leasehold sufficiently, the director may have the leasehold cleaned and require the airport business to pay for the expenses related to the cleaning.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-28. Accidents/incidents—Duty to report.

All persons involved in or witnessing any accident, incident, or safety hazard involving persons, aircraft, or vehicles occurring on the airport shall call 207-3433 to report the accident, incident, or hazard and make a report to airport police as soon as possible, giving all pertinent information as requested by the officer in charge.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-29. Use of airport highways, streets, roads, or sidewalks.

No person shall occupy airport highways, streets, roads, or sidewalks in such a manner as to hinder or obstruct their proper operation or use by others. No person shall drive any vehicle across or upon any lawn or grass area, sidewalk, or curb except by permission of the airport police officer on duty or except as necessary to service or maintain airport facilities. No person shall travel on the airport other than on the highways, streets, roads, sidewalks or places provided for the use of that particular class of traffic. A person commits an offense if he or she knowingly obstructs the free passage of other persons along airport highways, streets, roads, sidewalks or into, out of, or within airport buildings.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-30. Improper sound devices.

(a) Sound trucks, sound amplifying devices, and amplified sound reproduction machines are prohibited on the airport. No person shall use or cause to be used the airport public address system for the solicitation of business. Only such public address systems as are commonly used to announce the arrival and departure of scheduled airline aircraft or other matters approved by the director shall be permitted on the airport.

(b) Excessive or prolonged use of horns, sirens, whistles, or other noise-generating devices is strictly prohibited; continued use of same shall be subject to a citation as provided in these rules and regulations. Aviation department or airport police personnel may use horns, sirens, whistles, or other noise-generating devices in conduct of their official duties.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-31. Animals.

(a) No person shall enter the terminal building of the airport with a dog or other animal except service animals, therapy animals or animals to be transported by air unless approved by the director. Non-service animals to be transported by air must be caged for travel and taken directly to the airline for loading onto the aircraft. Disembarking pets must remain caged and be taken directly to ground transportation or other means of departure from the terminal area. At no time shall non-service animals be removed from their transportation cage while in the terminal building except when using the designated pet relief area. Transportation cages shall not be discarded in the terminal or on any other airport property.

(b) Animals on airport property are to relieve themselves solely in designated pet relief areas as may be established or approved by the director from time to time.

(c) No person shall allow or transport any animal onto the AOA unless it is properly leashed or restricted by other means as deemed appropriate by the director to prevent the animal from interfering with airport operations.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15; Ord. No. 2018-04-12-0266, § 1(Att. 1), 4-12-18)

Sec. 3-32. Regulation of advertising.

No person, organization, or entity shall post, distribute, display, carry, or erect any signs, billboards, art work, or any other device used for advertising, announcing, or notification without the express written approval of the director.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-33. Open flame and smoking/vaping/ e-cigarette restrictions.

(a) No person shall conduct any open flame operations in any hangar or elsewhere on the airport unless specifically authorized by the director in writing. Any open flame operations authorized by the director shall be conducted strictly in accordance with applicable fire and safety regulations. Authorization shall not be granted until such operation has been investigated and it has been determined that there is no fire hazard to airport property.

(b) Open flame welding within fifty (50) feet of aircraft fueling operations is prohibited. An operational fire extinguisher must be present at the site during welding operations.

(c) Smoking, vaping and the use of e-cigarettes is prohibited on the AOA, in any hangar, shop, service station area, fuel storage area, terminal, office, or in any building, room, or place on the airport where smoking is prohibited by law. The director is authorized to designate smoking and nonsmoking areas at San Antonio International Airport and Stinson Municipal Airport.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15; Ord. No. 2018-04-12-0266, § 1(Att. 1), 4-12-18)

Sec. 3-34. Lost articles.

Any person finding lost articles in any airport common areas shall immediately deposit them with the airport police or the parking and ground transportation office. Articles unclaimed by their owners are subject to policies and procedures set forth by the city police department. Nothing herein shall be construed to deny the right of scheduled airlines or other airport tenants to maintain "lost and found" services for property of their passengers, invitees, or employees as permitted by law.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-35. Forgery and counterfeit.

No person shall make, possess, use, offer for sale, sell, barter, exchange, pass, or deliver any forged, counterfeit, or falsely altered pass, permit, identification badge, certificate, placard, sign, or other authorization purporting to be issued by or on behalf of the aviation department, nor shall any information electronically or magnetically encoded thereon be knowingly altered or erased.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-36. Elevators, moving stairways (escalators), and conveyor systems.

No person shall use an elevator, moving stairway (escalator), or conveyor system contrary to its intended use or any posted restriction(s). Moving stairways (escalators) shall not be used with wheeled carts, wheelchairs, wheeled vehicles, strollers, canes, walkers, unescorted children, or animals.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-37. False reports or threats.

No person shall make any threat involving aircraft or any facilities or operations at or on the airport or make any false report regarding the conduct of operations at or use of the airport.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-38. Sporting equipment and recreational activities on the AOA.

No person shall engage in recreational activities or sporting events in the AOA; provided, however, that the director may approve areas within the AOA for use as employee break areas.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-39. Prohibition against feeding and sheltering wild animals and birds.

No person shall be allowed to directly or indirectly feed or shelter any wild animals or birds on airport property except for animals that are being transported. Additionally, all persons on airport property shall properly dispose of all unused or abandoned food and food containers. Notwithstanding the foregoing, this section does not prohibit activities performed by the director's designee for wildlife control or mitigation.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-40. Appearance standards.

The director is authorized to issue regulations establishing dress, behavioral and service standards and grooming requirements for tenants, concessionaires and other entities operating at the San Antonio International Airport and interacting with the public to ensure a consistent professional standard of dress and conducts is presented to the traveling public at the San Antonio International Airport and Stinson Municipal Airport. All clothing and accessories shall be free of obscenities, rude messages, and political statements.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15; Ord. No. 2018-04-12-0266, § 1(Att. 1), 4-12-18)

Secs. 3-41—3-45. Reserved

DIVISION 2. AIRCRAFT OPERATIONS

Sec. 3-46. Interference/tampering with aircraft.

(a) No person shall interfere or tamper with any aircraft, or put in motion the engine of such aircraft, or use any aircraft, aircraft part, instrument, or tool without permission of the owner.

(b) No person may release, throw, shoot, or propel any object in such a manner as to interfere with or endanger the safe operation of any aircraft taking off, landing, or operating on the airport or any vehicle operating on the airport.

(c) No person may use a laser or any other lighted device intentionally or unintentionally to interfere with the operation of an aircraft.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-47. Compliance with instructions issued by air traffic control and the director.

All aircraft in flight within the airport traffic area, surface area airspace, or in motion or parked on the runways, taxiways, aprons, hardstands, or ramps of the airport shall comply with written or oral instructions issued by airport traffic control tower personnel and the director.

All aircraft shall follow appropriate taxiway and runway guidance markings, lighting, and signage when operating on any portion of the airport.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-48. Dangerous or negligent operations.

The director may prohibit aircraft landing and taking off any time and under any circumstances when such operation is deemed likely to endanger persons or property, except for emergency landings. In addition, no aircraft shall be operated on the surface of any public landing area, public cargo ramp and apron area, or public aircraft parking and storage area:

(1) In a careless or negligent manner;

(2) In disregard of the rights and safety of others;

(3) Without due caution and circumspection;

(4) At a speed or in a manner that endangers persons or property;

(5) While the pilot, or other person aboard, controlling any part of the operation thereof, is under the influence of intoxicating liquor, any narcotic, or dangerous drug or controlled substance; or

(6) If such aircraft is so constructed, equipped, or loaded as to unreasonably endanger or be likely to unreasonably endanger persons or property.

(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-49. Aircraft and aircraft operator requirements.

(a) All aircraft operating at the airport shall display on board the aircraft a valid airworthiness certificate issued by the FAA or appropriate foreign government and display on the exterior of the aircraft a valid registration number issued by the FAA or appropriate foreign government. No aircraft, excluding skid-equipped helicopters, shall operate on the airport unless equipped with a tail wheel or nose wheel; and, in addition, the main gear wheels shall have operating brakes, unless, with the permission of the director, who,

before permission is given, shall investigate the circumstances under which time and place such aircraft is to be operated and determine that no danger exists to persons or property by reason of such operation. When any pilot of an aircraft that is not equipped with adequate brakes receives permission from the director to taxi such aircraft, such pilot shall not taxi such aircraft near buildings or parked aircraft unless an attendant is at the wing of the aircraft to assist the pilot. An aircraft with wings and tail higher than five (5) feet from the ground that does not have adequate brakes shall not be taxied on the airport, but shall be towed if it is necessary to move such aircraft.

(b) All aircraft operating at the airport are required to have all mandatory aircraft lighting systems, as required by the FAA, operational during times required by the FAA.

(c) All persons operating aircraft on the airport shall possess an appropriate license, issued by the FAA or appropriate foreign government.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-50. Proper operation of engines.

(a) Aircraft engines shall be runup only in places and times approved for such purposes by the director.

(b) At no time shall aircraft with engines running or engines being tested be left unattended.

(c) At no time shall engines be started, runup or operated when hangars, shops, offices, building, persons, equipment, passengers, or aircraft landing, parked, or taking off are in the propeller stream or jet engine exhaust.

(d) No person shall start or run any aircraft engine unless a competent person fully qualified as required by federal or state regulations is in the aircraft attending the engine controls. Chocks shall always be placed in front of the main landing gear wheels before starting the engine or engines unless the aircraft is equipped with adequate brakes.

(e) Any aircraft engines that are mounted to a free standing support stand instead of an aircraft and are operational must be properly secured prior to operation of the engine. If the support stand is on wheels, all the wheels of the support stand must be chocked in front of and behind each wheel.

(f) No aircraft engines may be run at a terminal gate unless a sufficient number of attendants are present and properly positioned to prevent any person, vehicle, or other apparatus from being damaged or injured by operation of the engines.

(g) Aircraft engine washing shall not be conducted unless approved through the director.

(h) At no times shall engines be run above idle for the purpose of performing maintenance procedures except in areas designated by the director.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-51. Ultralight vehicles and motorless aircraft.

The operation of pilotless, lighter-than-air motorless aircraft and/or ultralight vehicles, as defined by the FAA, shall not be permitted at the airport unless:

(1) The operator has prior authorization from the director, and

(2) The ultralight vehicle meets all other applicable requirements stated in these rules and regulations as well as all governing sections of the Federal Aviation Regulations pertaining to this classification of vehicle.

(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-52. Authorized aircraft parking areas.

(a) No person shall park an aircraft or leave an aircraft standing at any location on the airport other than those areas designated for the parking of aircraft. The parking of any aircraft outside of areas designated for aircraft parking is prohibited without permission from the director.

(b) All parked aircraft must have at least one (1) wheel chocked in the front and back of the wheel by wheel blocks or other approved devices except in cases where authorized by the director, proven procedures that are equally safe are employed. Parking procedures followed by the scheduled airlines are proven examples.

(c) Upon notification by the director, the operator of any aircraft parked or stored at any terminal shall move such aircraft from the place where it is parked or stored to a location designated by the director. If the operator refuses to comply with such direction, the director may remove or cause to be removed such aircraft to such designated place at the operator's expense, and without liability for damage that may result in the course of such moving.

(d) All aircraft parked on nonleased aircraft parking areas must have cones or another type of barricade approved by the director at the outer edge of the wingtips, nose, and tail of the aircraft unless an exemption from this requirement has been granted by the director.

(e) No person or entity shall reserve any non-leased aircraft parking position by any means without permission from the director. The parking, placement, or staging of any equipment, barricades, or objects of any type on a non-leased aircraft parking spot for more than five (5) minutes prior or after the aircraft's arrival or departure from the parking spot is prohibited without the permission of the director.

(f) Parking of aircraft such that any part extends beyond the leasehold is forbidden, and any damage to property caused by any part extending beyond the lease area will be the responsibility of the lease holder in violation.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15; Ord. No. 2018-04-12-0266, § 1(Att. 1), 4-12-18)

Sec. 3-53. Repairs in designated areas only.

Repairs to an aircraft or any aeronautical equipment shall not be performed outside of a tenant's leasehold in any area of the airport other than in areas specifically designated for such purposes by the director.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-54. Experimental flights.

No experimental flights or ground demonstrations shall be conducted on the airport without the express approval of the director.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-55. Simulated forced landings.

Simulated forced landings are forbidden within the airport traffic area without approval of the airport traffic control tower.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-56. Altitude restrictions.

Except for public displays of aviation flight specifically authorized by the city council to be conducted under responsible auspices and control, violation of any of the following provisions is prohibited:

(1) No person shall operate an aircraft in a careless or reckless manner so as to endanger the life or property of others by buzzing, diving, or low-altitude flying.

(2) Helicopters or similar devices shall not operate in such proximity to parked aircraft so as to cause damage thereto.

(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-57. Radio communications requirements.

(a) All aircraft based at or using airport facilities must be equipped with a properly functioning two-way radio that, under normal conditions, is capable of communicating with the airport traffic control tower.

(b) Pilots of aircraft shall not land, taxi, or take off without clearance from the airport traffic control tower by radio or light signal during the hours of operation of the airport traffic control tower.

(c) Aircraft without fully operational radio equipment are prohibited from operating in the movement area at the airport unless approved by air traffic control. If the aircraft operation

will be conducted while the airport traffic control tower is not in operation, then permission from the air traffic control is not required.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-58. Taxiing.

(a) No person shall taxi an aircraft until ascertaining that there will be no danger of collision with any person or object in the immediate area by visual inspection of the area.

(b) Aircraft shall be taxied in accordance with all directions given by the airport traffic control tower.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-59. Airport operational restrictions.

The director may issue a notice to airmen (NOTAM) denying or restricting use of the airport, its runways, taxiway, taxilanes, aprons, and parking areas for aircraft operations. Additionally, NOTAMs may be issued to advise airmen of conditions that exist at the airport that may cause a hazard to taxiing aircraft but that do not deny use of the area. In the event that the director believes the conditions at the airport to be unsafe for aircraft operations, it shall be within the director's authority to issue a NOTAM closing the airport, or any portion of the airport, until the director determines conditions to be safe for aircraft operations.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-60. Power back from terminal gates prohibited.

The engines of turbojet aircraft may not be used to propel the aircraft backwards from a terminal gate unless permission has been obtained from airport operations and sufficient attendants are present to prevent injury or damage to any and all persons and equipment.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-61. Aircraft accidents or incidents.

The pilot or operator of any aircraft involved in an accident or incident on the airport causing personal injury or property damage must, in addition to all other reports required by other agencies, notify the aviation department of the incident or accident immediately, and upon request make a prompt and complete written statement concerning said accident or incident to the director. Any written statement requested by the director must be submitted to the director no more than forty-eight (48) hours after the time of the initial request. When a written report of an accident or incident is required by Federal Aviation Regulations, a copy of such report must also be submitted to the aviation department if requested by the director.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-62. Discharge of aircraft contents prohibited.

The discharge or release of any object from an aircraft while in flight or while operating on the ground is prohibited except when an emergency situation requires such discharge of contents for the protection of life and property.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-63. Removal of disabled aircraft.

Aircraft owners, operators, and tenants shall be responsible for the prompt removal of disabled aircraft and parts thereof, unless required or directed to delay such action by the director or an authorized federal agency.

When a disabled aircraft is blocking or delaying the use of any portion of the airport, the owner or operator of the aircraft shall make immediate arrangements to have such aircraft moved as soon as an authorized representative of the aviation department and appropriate governmental agencies have authorized such movement. In the event that the removal of the aircraft is not initiated as soon as possible, or is not progressing at a rate acceptable to the director, the director shall have right to initiate action to remove the aircraft at the expense and risk of the aircraft owner. The aircraft owner and operator shall hold the aviation department harmless and free of liability for any damage to the aircraft from the removal operation.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-64. Banner towing operations.

No aircraft may conduct banner towing operations at the airport without receiving permission from the director.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-65. Hand propping of aircraft.

Aircraft hand propping is not allowed unless no other means of starting an aircraft exists and all applicable Federal Aviation Regulations and guidance are followed. Pilots are solely responsible for liability resulting from hand propping of an aircraft.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-66. Prohibition on removal of liened aircraft.

No personnel shall move or remove any aircraft from the airport, or parts from such aircraft, when an official notice of lien has been posted upon such aircraft by the aviation department.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-67. General aviation aircraft parking at terminals.

No general aviation aircraft shall park at a terminal gate at San Antonio International Airport without the permission of the director. Such general aviation aircraft shall immediately disembark from the gate when requested by the director.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15; Ord. No. 2018-04-12-0266, § 1(Att. 1), 4-12-18)

Sec. 3-68. Entry onto closed runways, taxiway, ramps, and aprons prohibited.

No aircraft shall be permitted to gain access to or operate on a closed runway, taxiway, ramp, or apron without the approval of the director.

No person shall move or remove any barricade or other object that has been placed to prevent access to a closed runway, taxiway, ramp, or apron without permission from the director.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-69. Trash disposal from aircraft.

(a) Airline and/or aircraft operators must promptly dispose of all aircraft trash in appropriate receptacles. In no event shall aircraft trash be deposited into foreign object debris (FOD) receptacles.

(b) All trash or refuse material brought into the airport from countries or provinces outside of the United States of America must be disposed of in adherence with all federal regulations.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15; Ord. No. 2018-04-12-0266, § 1(Att. 1), 4-12-18)

Sec. 3-70. Terminal aircraft pushback operations.

All airline aircraft pushing back from a terminal gate must have a sufficient number of wingwalkers present and properly positioned to assist with the pushback operation in order to prevent injury or damage to any and all persons and equipment. Wingwalkers shall be in position for the duration of the pushback operation.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-71. Helicopter operations on airport property.

The director may require, at his discretion, helicopter operators who conduct regular operations on airport property to submit a written plan detailing how they will safely operate into and out of their proposed landing site on airport property. The director may choose to conduct a safety risk assessment (SRA), jointly lead by the aviation department and the helicopter operator, of the proposed landing site to determine if any safety issues exist. The findings of the SRA will then be submitted to the helicopter operator for consideration and, if required by the director, corrective action. The director may require that the hazards identified in the SRA be mitigated prior to allowing the helicopter operation to begin. The director may require the helicopter operator to establish a heliport in compliance with FAA Advisory Circular 150 150/5390-2 (current edition) Heliport Design if he deems necessary.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-72. Prohibition against positioning aircraft on or over the vehicle service road.

Aircraft shall not be positioned on or over any designated vehicle service road.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-73. Aircraft operations at the General Aviation Federal Inspection Station.

(a) Aircraft, equipment and personnel located at the General Aviation Customs ramp, serving the General Aviation Federal Inspection Station (GA FIS) located at 1775 Skyplace Blvd, must follow all procedures and guidelines established by Customs and Border Protection (CBP). Services may only be rendered to aircraft that have requested said services prior to arrival or departure from the GA FIS ramp.

(b) Entities wishing to conduct services on the GA FIS ramp must first receive a marshalling services permit issued by the San Antonio Airport System.

(c) Service provider (permittee) shall adhere to the permit's requirements.

(d) The director may terminate the marshalling agreement as stipulated in the permit.

(e) The following chart shows the fee for all non-commercial aircraft arriving at San Antonio International Airport from foreign origination for use of General Aviation Federal Inspection Station at the time of arrival:

Certificated Maximum Gross Landing Weight of Aircraft (pounds):	*Fee*
6,000—8,999 lbs.	$92.00
9,000—12,499 lbs.	$230.00
12,500—39,999 lbs.	$370.00
40,000—99,999 lbs.	$460.00
Above 100,000 lbs.	$700.00

(Ord. No. 2018-04-12-0266, § 1(Att. 1), 4-12-18; Ord. No. 2024-09-19-0705, § 2(Att. F), 9-19-24)

Sec. 3-74. Unmanned aircraft systems or drones.

Operators of all Unmanned Aircraft System (UAS) systems may not operate a UAS within the Class C or Class D Airspace, the airspace included at both airports in the San Antonio Airport System, unless the operator has prior authorization from the FAA Air Traffic Control Tower (210-805-5507). Operators of all UAS systems are required to contact the Airport Duty Manager (210-207-3433) and the FAA Air Traffic Control Tower prior to flight within three (3) miles of either airport in the San Antonio Airport System

Unauthorized UAS system operations will be investigated by the FAA with the assistance of local law enforcement as required.
(Ord. No. 2018-04-12-0266, § 1(Att. 1), 4-12-18)

Sec. 3-75. General aviation aircraft landing fee.

The following charges shall be levied for landing fees for general aviation aircraft not based at San Antonio International Airport with a certificated weight of over six thousand (6,000) pounds of maximum landing weight:

Certificated Maximum Gross Landing Weight of Aircraft (pounds):	*Landing Fee per 1,000 pounds certified maximum gross landing weight*
6,000—19,999	$3.50/1,000 pounds
20,000—49,999	$4.50/1,000 pounds
Above 50,000	$5.50/1,000 pounds

General Aviation Aircraft under six thousand (6,000) pounds of maximum landed weight shall be levied a minimum landing fee charge in the amount of twenty dollars ($20.00).
(Ord. No. 2024-09-19-0705, § 3(Att. F), 9-19-24)

Sec. 3-76. Reserved.

DIVISION 3. VEHICLE OPERATORS

Sec. 3-77. Operation of vehicles in public areas.

Vehicles operating in public areas or on roads outside the AOA (including those crossing any public area or road outside the AOA) within the

airport's boundaries shall be operated in accordance with the following minimum requirements:

(1) All vehicles shall be operated in accordance with the applicable laws and regulations of the jurisdiction(s) in which the airport is located. The driver or operator shall also have a license(s), certification(s), permit(s), or endorsement(s), as required by such laws and regulations for type of vehicle being operated.

(2) All vehicles shall, at all times, comply with any lawful order, signal, or direction of any authorized representative of the airport police or aviation department staff member. Where vehicular traffic is controlled by traffic lights, signs, mechanical or electrical signals, or pavement markings, such lights, signs, signals, and markings shall be obeyed unless authorized by the airport police or directed otherwise by appropriately assigned personnel.

(3) No vehicle shall be operated in a manner that creates an unreasonable risk of harm to persons or property or if such vehicle is so constructed, equipped, or loaded as to create an unreasonable risk of harm to persons or property.

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(4) Pedestrians in marked crosswalks shall at all times have the right-of-way over vehicular traffic, and drivers of vehicles must yield the right-of-way.

(5) Vehicle parking.

a. No person shall park a vehicle for loading, unloading, or any other purpose on the airport other than in the areas specifically established for parking and in the manner prescribed by signs, lines, or other means.

b. No person shall abandon any vehicle on the airport.

c. No person shall park a vehicle on grass areas, or in a manner so as to obstruct roadways.

d. No person shall park a vehicle in any space marked for parking in such a manner as to occupy part of another marked space.

e. No person shall park or stop any vehicle in any reserved areas so marked, unless authorized to do so.

f. All employees of companies, organizations, or agencies having tenancy on the airport shall park private vehicles on leased premises only or in designated employee parking lots. Only those persons with authorization shall be permitted in the city-owned employee parking lot(s). The director shall establish and designate public and employee parking areas.

(6) All service vehicles, including but not limited to company utility trucks, government-owned vehicles, and delivery trucks, shall only park in designated areas as authorized by the director.

a. No persons shall clean or make any repairs to vehicles anywhere within the airport boundary other than in areas designated for such purposes or within their own leased areas, except minor emergency repairs necessary to remove such vehicles from the airport; nor shall any persons move, interfere, or tamper with any vehicle or put in motion the engine or take or use any vehicle part, instrument, or tool thereof without the permission of the owner or without satisfactory evidence of the right to do so presented in advance to the director.

b. Persons who do not have proper authorization to operate a vehicle on the AOA but require to do so must contact the aviation department for an escort.

(7) No stopping, standing or parking on certain streets.

a. When signs are erected on the curb on any roadway located on airport premises giving notice thereof, no person shall stop, stand or park a vehicles except while actively loading or unloading unless previously authorized by airport police.

b. This provision prohibiting the standing or parking of a vehicle shall apply at all times except when it is necessary to stop a vehicle to avoid conflict with other traffic or in compliance with the directions of a police officer or an official traffic-control device.

c. Provided, however, that subsections (a) above shall not apply to any emergency vehicle.

d. Violation of any of the provisions hereof shall be punished by a fine in an amount not to exceed five hundred dollars ($500.00) and the vehicle may be subject to towing.

e. Any city employee whose duty is to enforce the parking provisions contained in this chapter shall attach to any vehicle parked in violation thereof, a notice that such vehicle has been parked in violation of such provisions and summoning the viola-

tor to appear at the office of the clerk of the municipal court in regard to such violation.

f. When any vehicle is found parked in violation of any parking provisions contained in this chapter, such fact shall be prima facie evidence that the person in whose name it is registered is guilty of a violation of the parking provisions contained in this chapter.

g. If the violator fails to make payment, the clerk of the municipal court shall issue process for his or her appearance.

(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15; Ord. No. 2018-04-12-0266, § 1(Att. 1), 4-12-18)

Sec. 3-78. Operations of vehicles within the AOA.

(a) It shall be unlawful for any person to operate any vehicle, other than an airplane or helicopter, upon the AOA, or restricted area, with the following exceptions:

(1) The driver has been approved by the director and authorized to access the area; and

(2) The operator has the required endorsements on his or her valid state driver's license; and

(3) The vehicle is operated by a driver who has completed the required airfield driver's class and has in his or her possession a valid airfield non-movement or movement license issued by airport operations; or

(4) Vehicle is under proper escort by an individual who meets the requirements stated in subsections (a)(1)—(3).

(b) A valid airfield driver's license and a valid state driver's license shall be on the driver's person at all times while operating any vehicle on the AOA. This license shall be shown to any airport operations, airport police, safety compliance, TSA, airport security or other authority upon request.

(c) Vehicles routinely operated within the AOA shall have the following identification lighting:

(1) Vehicles (airport operations, airport safety, FAA, airfield service, and aircraft support) routinely operating within the AOA movement areas shall have an illuminated yellow flashing light mounted on the uppermost part of the vehicle.

(2) Airport police and aircraft rescue and firefighting (ARFF) vehicles shall be illuminated according to the following:

a. *Movement areas.* Emergency warning lights shall be illuminated at all times.

b. *Non-movement areas.*

1. Flashers (hazard/emergency) and headlights shall be operated at all times.

2. Emergency warning lights shall be illuminated during emergency responses.

(3) City of San Antonio vehicles routinely operating within the movement and non-movement area shall have an operating yellow flashing light mounted on the uppermost part of the vehicle.

(d) The vehicle shall be insured with comprehensive automobile liability insurance in such amounts as required by the city's risk management division or must be escorted by airport police or airport operations.

(e) All vehicles shall comply with any lawful order, signal, or direction of any authorized representative of the airport police or aviation department staff member. Where vehicular traffic is controlled by traffic lights, signs, mechanical or electrical signals, or pavement markings, such lights, signs, signals, and markings shall be obeyed unless an authorized member of the airport police or aviation department staff directs otherwise.

(f) No vehicle shall be operated in a manner that creates an unreasonable risk of harm to persons or property, or while the driver is under the influence of any substance that impairs, impedes, or otherwise affects the ability of the

driver to safely operate the vehicle, or if such vehicle is so constructed, equipped, or loaded as to create an unreasonable risk of harm to persons or property.

(1) While driving on the AOA, speed shall not exceed fifteen (15) miles per hour on ramps, aprons, aircraft parking areas, and hangar areas except for emergency vehicles responding to an emergency.

(2) While driving on airport perimeter roads, speed shall not exceed thirty-five (35) miles per hour.

(3) Passengers enplaning or deplaning aircraft, and people moving aircraft shall at all times have right-of-way over vehicular traffic, and drivers of vehicles must yield the right-of-way.

(4) All vehicles shall pass to the rear of taxiing aircraft.

(5) All vehicles shall pass no closer than twenty (20) feet from any wing or tail section of a parked aircraft unless the vehicle is being used to service that aircraft.

(6) Vehicle operators who elect to drive under a passenger loading bridge do so at their own risk. No vehicle is to park in the designated (red hash marked) no parking area.

(7) No vehicle shall transverse onto any leased area unless the vehicle operator has received permission from the leaseholder. All city vehicles and personnel may transverse any leased area in the conduct of official duties without permission from the leaseholder.

(8) No vehicle may transverse any non-leased ramp, apron, or aircraft parking areas at San Antonio International Airport outside of the designated vehicle lanes unless required to do so by their duties and all regulations regarding vehicle operations on the AOA are followed at all times.

(g) Vehicles shall yield and give the right-of-way to all aircraft in motion or in the process of being pushed from a gate.

(h) Authorized aviation department and FAA employees with proper training and a driving practical exam, are allowed to obtain a "no restrictions" movement license. These license holders have the authorization to obtain clearance to enter any movement area surface. A "with restrictions" movement license may be obtained from airport operations for those who have a need to reposition aircraft outside their leasehold. These license holders have the authorization to obtain clearance to taxiways only, and are not authorized to enter or cross any runway, runway safety area or obstacle free zone without an escort provided by an authorized aviation department representative. All movement license holders are required to be in a properly equipped vehicle and obtain clearance from San Antonio - Ground Control on frequency 121.9 prior to proceeding into the movement area. Radio contact must be maintained continually while operating in the movement area. All movement area license holders must comply with the following:

(1) All vehicles operating in/traversing these areas shall have an operating two-way radio turned "on", be tuned to the ground control frequency, and be in continuous communication with the airport traffic control tower except when such vehicle is accompanied by and under the control of another vehicle with such communications capabilities.

(2) The installation of a two-way radio does not permit the operation of vehicles in any restricted area without prior permission from the director.

(3) All vehicle drivers shall follow all directions provided by the FAA air traffic controller.

a. Upon receiving clearance, the driver shall ensure by personal observation that no aircraft is approaching his/her position before crossing.

b. Vehicles that do not obtain proper clearance shall be reported to the director by the FAA air traffic control tower.

c. Vehicles may not park within the safety area or obstacle free zones of any runways or taxiways. All vehicles that require parking within the movement area, except for FAA vehicles, must receive permission from the director and from the local air traffic control facility.

(i) No person shall operate a vehicle in any hangar or grass area on the airport without exhausts protected by screens or baffles to prevent the escape of sparks or the propagation of flames.

(j) Airport businesses may only park vehicles in area(s) leased by said businesses and authorized for parking.

(k) Vehicle keys may not be left in fuel trucks or vehicles containing hazardous materials. Businesses operating vehicles must provide the aviation department with a 24-hour contact number and relocate any such vehicles within one (1) hour of receiving a request from the director for relocation.

(l) Seatbelts and other restraint systems in vehicles shall not be disabled or removed and shall be maintained in good working order. Drivers, operators, and passengers shall use installed seatbelts or restraint systems at all times, with no exception.

(m) No more than four (4) containers, luggage carts, pods, and the like shall be towed at any one (1) time, whether loaded or unloaded.

(n) While operating within the AOA from sunset to sunrise, or when visibility is limited, a vehicle's lights must be turned on and switched to low beam. All headlights, taillights, turn signal lights, and running or clearance lights on a vehicle shall be in proper working order.

(o) Any container, cart, or piece of equipment being towed at night that does not have operable lighting must have three-inch diameter reflectors or reflective tape measuring two (2) inches by six (6) inches (2" × 6") installed on both sides (front and rear) and on the rear (left and right) at the highest location.

(p) Bicycles are prohibited from being ridden or operated on the AOA except inside tenant leased areas. Airport police may operate bicycles on the AOA in conduct of official business.

(q) All vehicles operating outside of a tenant leased area at San Antonio International Airport must be marked with either the company name or a logo on two (2) sides of the vehicle that meet the requirements of the airport security program. Unmarked vehicles on the AOA may be temporarily identified by a numbered "top hat" with SAT logo, issued by aviation department personnel.

Top hats must be signed for on a daily basis. When a top hat is issued, an authorized vehicle that meets all the requirements for San Antonio International Airport must escort the vehicle.

(r) When entering or exiting the AOA from one of several vehicle gates, the vehicle operator or the escort is responsible to ensure that the gate has fully closed before leaving the gate area.

If the gate malfunctions, the driver is responsible for staying at the gate until airport police, airport operations, or airport security responds to secure the gate area. The driver should contact the airport communications center at 210-207-3433 to report the malfunction.

(s) It shall be a violation of these rules to allow the discharge of liquids such as fuels, oils, greases, lavatory fluids, or battery acid onto the airfield, apron, or remain overnight (RON) areas, even in tenant-controlled areas. Such fluids should be captured in a drip pan, and properly disposed of.

(t) Emergency conditions existing at any time on the airport will not mitigate or cancel these regulations.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Secs. 3-79—3-83. Reserved.

DIVISION 4. GROUND TRANSPORTATION—VEHICLES FOR HIRE

Sec. 3-84. Definitions.

The following definitions pertain only to the contents of this division:

Representative means an individual representing a company, corporation, cooperative, association, or organization authorized and permitted by the director to conduct vehicle for hire services.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-85. Scope and intent.

(a) The provisions of this division shall be followed by all persons, holders, companies, drivers, and representatives providing vehicle for hire services.

(b) The director is authorized to enforce all provisions of this chapter and city ordinances.

(c) All representatives, drivers, operators, holders, owners, and persons operating any vehicle for hire shall obey all lawful orders issued by the director whenever conducting operations or operating any vehicle for said purpose while on airport property.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15; Ord. No. 2018-04-12-0266, § 1(Att. 1), 4-12-18)

Sec. 3-86. Rates and charges.

(a) The driver of each vehicle for hire, taxicab, limousine, shuttle bus, or motor coach carrying a passenger or passengers and/or luggage to or from the terminal buildings at San Antonio International Airport shall pay the established service fee(s) for each trip originating and/or departing from any terminal building of the airport to any point or destination, or shall have paid the applicable annual fee for such privileges, or shall have an established and current contract or permit in place. Such fee(s) shall be paid in the manner prescribed by the director with one (1) or more passengers and/or luggage. In the case of a taxicab, the total per trip fee may be added to the metered fare, where applicable. It shall be unlawful for a driver to depart from the designated passenger loading areas with a passenger or passengers and/or luggage without having properly paid the required service fee(s) in effect and as may be amended by order of the city council, or individual contract amendments from time to time. Ground transportation fees may be collected through the automatic vehicle identification (AVI) system or other means approved by the director.

(b) The established service fees shall remain in effect unless amended by city ordinance or contract changes as may be necessary from time to time.

(c) Operators of ground transportation vehicles for hire are prohibited from using the public parking structures unless approved to do so by the director. When applicable, all ground transportation fees shall be collected through the designated and usual form(s) prescribed by the director.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-87. Designated areas.

All ground transportation vehicles operating on airport property shall stop, stand, or park only in such a manner and in such areas as may be designated from time to time by the director.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-88. Taxicab/vehicle waiting space.

(a) The driver of a taxicab awaiting fares at the terminal building(s) shall stop, stand, or park in strict conformity to the lines delineating the designated waiting areas. Drivers shall not allow the doors of the vehicle to remain open nor shall they allow the doors to impede pedestrian traffic. In no case shall a taxicab wait for a fare by stopping, standing, or parking upon a street not designated as a taxicab staging or queuing area.

(b) The number of taxicabs waiting to pick up passengers at the terminal buildings shall be limited by the amount of available designated staging or queuing area as designated by the director. The allocation of space available for queuing/staging and loading of taxicabs shall be determined by the director; however, this allocated

space may be altered by the director from time to time based on the amount of available curb space or other requirements.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-89. Proper operation.

(a) Excessive or prolonged use of horns, sirens, whistles, or other noise-generating devices by operators, holders, owners, or drivers of any vehicle for hire is strictly prohibited; continued use of same shall be subject to citation as provided in these rules and regulations.

(b) Taxicabs shall queue in a first-in, first-out order and, if applicable, will be dispatched from the taxi hold lot to the terminal area in this same order. At the terminals, taxicabs will continue to queue in the same first-in, first-out order. To satisfy customer demand, a certain type of vehicle may be expedited through the queue (e.g., disabled-accessible van, or size and type of vehicle as requested).

(c) Taxicabs and limousines that are servicing pre-arranged pick-ups will only utilize areas designated for this activity as may be authorized by the director.

(d) Rental car, hotel/motel, off-airport, airport employee, charter and other use shuttle buses will utilize designated zones only. Designated zones for drop off and pick-up may vary and are subject to change at the discretion of the director.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-90. Aviation department personnel.

Aviation department personnel may be assigned to an area or areas designated by the director for the purpose of answering questions and providing information to patrons using ground transportation at the airport. No driver, company owner, manager, or representative shall interfere with the duties of aviation department personnel.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-91. Solicitation.

No discount tickets shall be issued, sold, or given to walk-up passengers for the purpose of reduced fares for any vehicle for hire while operating at the airport. No solicitation or dispensing of any product or coupon will be permitted in areas where ground transportation vehicles queue/stage, load, or greet customers.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-92. TNC airport operations.

All TNC operators in the San Antonio Airport System shall operate in accordance with and adhere to the following regulations in order to regulate the traffic flow and:

(1) TNC operators shall not operate on San Antonio Airport System property without the proper use of TNC's application. TNC operators may not pick-up passengers who are paying for services using any other method than TNC's application. No personal pick-ups or pre-arranged pick-ups for which the TNC operator receives compensation other than through TNC's digital network or application are allowed to operate on airport property.

(2) TNC operators shall adhere to Chapter 95 of the Texas Administrative Code.

(3) TNCs are encouraged to maintain and utilize a geo-fence technology to maintain airport originating trip data based on trips booked through the TNC digital network or application, which shall include trip originations in four-hour intervals. Trips shall mean any passenger pick-up, including but not limited to on and within the airport property as defined by the geo-fence(s) established by the airport system. Such data shall include when a passenger is picked up on airport property as part of a ride booked through the TNC application or digital network. TNCs shall share the trip data through geo-fence application while operating within the SAAS. TNCs shall be encouraged to provide the data in real time to the official web-hosted rideshare monitoring application of the city, a third-party application or digital platform using an HTTP/HTTPS POST message which contains a JSON data packet. Specific URL addresses, request and response

formats, TNC identification designations, usernames and passwords, geofence definitions and boundaries, and message fields and associated formats shall be provided to the TNC prior to implementation by aviation department.

(4) TNCs shall submit to the aviation department a separate monthly report (monthly report) for San Antonio International and Stinson Municipal Airports containing details of each individual pick-up and drop-off trip conducted within the SAAS boundaries including date, time and a vehicle identifier, the total number of originating trips for each day within the reporting period and a total of those originating trips for the month. TNC shall submit such monthly reports within fifteen (15) days after the close of each calendar month.

(5) TNCs shall pay the per trip fee set out in section 3-180 for each trip originating at either airport in the San Antonio Airport System on a monthly basis within thirty (30) days after the close of each calendar month. Any payments not paid when due shall be subject to a service charge of the lessor for the purpose of verifying that a TNC is accurately reporting and sharing trip data and verifying the per trip fee payments, the city shall have the right, no more than once every twelve (12) months, to visually inspect a sample of records that the TNC is required to maintain at a mutually agreeable location. The sample shall be chosen randomly by the city in a manner agreeable to both parties. Any record furnished to the city may exclude information that would identify specific drivers or riders. If such audit discloses that TNC's monthly reports were understated, TNC shall pay to the city within thirty (30) days of receiving notice, the additional originating trip fees due for the days audited together with interest at the lesser of eighteen (18) percent per annum or the maximum allowed by law, from the date(s) such amount was originally due.

(6) The aviation department reserves the right, at any time, to change, alter and expand the airport property, including the terminals, roadways and designated pick-up, drop-off and/or staging areas. The city reserves the right, at the director's sole discretion, to adopt rules and regulations related to security or other operational matters that may affect TNC's business.

(Ord. No. 2018-04-12-0266, § 1(Att. 1), 4-12-18)

Secs. 3-93—3-96. Reserved.

DIVISION 5. ENVIRONMENTAL/NOISE ABATEMENT

Sec. 3-97. Environmental provisions.

No person or entity operating or conducting any activity or business upon the airport shall:

(1) Fail to comply with any applicable environmental laws or regulations, including but not limited to environmental laws or regulations regarding sustainability or the generation, storage, use, transportation, and disposal of solid wastes, hazardous materials, special wastes, fuel and fuel products or lubricants, or other contaminants, and regarding the release or threatened release of hazardous materials, special wastes, fuel and fuel products or lubricants, or other contaminants into the environment.

(2) Cause or permit to be released (whether by way of uncapping, pouring, spilling, spraying, spreading, attaching, or otherwise) into, onto, above, or under the airport (including the air thereabove, the ground, and groundwater thereunder and the sewer and drainage systems) any hazardous substances, solid wastes, special wastes, fuel and fuel products or lubricants, or other contaminants (as defined or established from time to time by applicable local, state, or federal law or regulation and including, among other things, hazardous waste and any other

substances that have been or may in the future be determined by applicable authorities to be toxic or hazardous) to the extent such hazardous substances exceed quantities or volumes permitted by applicable federal, state, or local law or regulation.

(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-98. Noise complaints.

(a) Noise complaints related to San Antonio International Airport aircraft and airport operations may be filed in person, by telephone, by email, or by filling out the online complaint form located on the aviation department's website, feedback link at http://www.sanantonio.gov/SAT/About/Feedback.aspx.

(b) In the complaint, the submitter shall provide:

(1) The date of the noise event;

(2) The hour or hours of the noise event;

(3) The complainant's first and last names;

(4) The address of the site at which the noise was perceived;

(5) At least one (1) contact telephone number;

(6) An email address (optional);

(7) A description of the event or complaint.

(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-99. Stormwater pollution prevention plan and other rules.

(a) All persons or entities operating or conducting any activity or business upon the airport shall comply with the Storm Water Pollution Prevention Plan (SWP3 or SWPPP) and any revisions thereto. A copy of the SWP3 is on file at the office of the director (and online with at the Environmental Stewardship site: https://www.sanantonio.gov/Aviation/Environmental-Stewardship/SPCC-Plans). A tenant may choose to operate under a separate (individual) storm water pollution prevention plan, but must coordinate its individual plan with the airport's SWP3.

(b) All persons or entities that use the airport facilities shall comply with these rules as promulgated by the director:

(1) Aircraft washing. No aircraft washing is to take place on San Antonio Airport System property. There are no wash racks available for washing commercial or private aircraft.

(2) Soil management plan. The San Antonio Airport System has established a soil management plan to establish practices for managing soil generated or handled by airport projects to ensure that excavated or imported soil that is suspected of being contaminated is separated from clean soil and managed in compliance with federal, state and local requirements.

a. As much as possible, soil characterization must be performed prior to soil importation or excavation.

b. Soil must not be imported or exported without an approved soil management plan authorization approved by the environmental stewardship division.

c. A soil screening plan must be prepared for all projects; the plan will guide the day to day operation of handling soil and soil stockpiles.

d. Uncontaminated soils may be stored on airport property at designated storage sites, and segregated by project. Impacted soils may be reused on airport property only. Contaminated soils must be disposed of at an ESD approved facility and may not be long-term stockpiled on airport property.

e. Quantities of excavated/imported soils and soil data must be documented by the project manager. Information includes the source for the soil, sampling record, analytical results, and disposal records.

f. In the event of an emergency, the appropriate notifications need to be made to the SAT communications center, operations, environmental stewardship, and the fire department.

g. A weekly status report will be prepared describing field activities, and summaries of weekly totals for excavated/imported soil. At project close out the project manager will make sure that all information and reports are up to date related to soil excavation/import.

(3) All parties must comply with the TCI "Soil Relocation and Communications Plan", as posted on the city's TCI website. https://www.sanantonio.gov/TCI/Projects/Soil-Relocation.

(4) Storm water laws and regulations for construction areas on the airport require the design and implementation of silt fences and erosion control techniques to minimize the impact of sediment run-off during storm events. Control measures will also include best management practices used to prevent or reduce the discharge of pollutants to waters off of airport property. Based on the Texas Commission on Environmental Quality (TCEQ) construction storm water permit requirements, construction contractors who have filed a notice of intent (NOI) are required to install and maintain all structural controls and best management plans, inventory of exposed materials, good housekeeping measures and spill prevention.

(5) Procedures for lease close out at tenant locations. At least one hundred twenty (120) days before the expiration of lease, the tenant will coordinate with the properties and environmental stewardship divisions of the San Antonio Airport System to conduct an environmental inspection or examination of the property and supply the data and the results of the inspection to the two (2) divisions of the airport system. If the results of the assessment indicate that property has been impacted by the release of hazardous substances or hazardous waste is detected, the tenant will clean up the contamination at its own expense, and in accordance with applicable federal, state, and local law.

Any written revisions or additions made to any of these rules by the director will be available at the office of the director.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15; Ord. No. 2018-04-12-0266, § 1(Att. 1), 4-12-18)

Sec. 3-100. Tenant environmental liaison.

Each tenant and airport business user shall provide when requested a person or persons who will serve as environmental liaison to the director. The name, telephone number, and email address of the designated local and corporate environmental liaison(s) shall be submitted to the director whenever requested or when updated. The environmental liaison(s) should be knowledgeable about the business's environmental aspects and provide information to the director when requested. If the tenant or airport business changes its environmental liaison, it shall notify the director of said change.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-101. Spill or release notification and cleanup.

(a) All airport businesses must comply with all the U.S. Environmental Protection Agency (EPA) Spill Prevention Control and Countermeasures (SPCC) rules.

(b) Airport businesses must immediately report all fuel and motor oil spills and hazardous waste spills to the airport communications center (210-207-3433).

(c) Upon notification of a spill or release, the airport communications center will notify the environmental stewardship division and other emergency responders, as necessary and appropriate, to ensure that any imminent hazard is mitigated, ensure that the release is contained, and make necessary notifications to aviation department personnel in accordance with internal

operational procedures. However, it is the ultimate responsibility of the airport business to contain and clean up the spill or release.

(d) All external notifications to regulatory agencies shall be coordinated through the director via the airport communications center; however, all airport businesses are responsible for making all notifications required by federal, state, and local regulations for releases resulting from their operations. The director will assist in determining the appropriate notifications.

(e) In the event of a spill release exceeds the reportable quantity limits, the business must notify the Texas Commission on Environmental Quality (TCEQ) within twenty-four (24) hours of the spill or release. The environmental stewardship division will notify the San Antonio Water System (SAWS), and if required, the San Antonio River Authority.

(f) If a major spill or release occurs and the tenant or business fails to remediate the impacted area, the ESD will procure an environmental contractor to remedy the area(s) that have been impacted. The ESD will back-charge the tenant or business for all costs.

(g) No person shall allow any solid or liquid (including any new or waste restaurant fry oil) to be placed or poured into any interior floor drains, manholes, or other sewer connections, except those fluids approved by the SAWS, and with the concurrence of director. Chemicals must be stored in a manner to minimize the potential for spills to reach any drains. Bulk chemical storage drums must be placed within spill pallets to contain spills and releases. In addition, no person shall allow any solid or liquid to be discharged to any exterior drain, inlet, manhole, or other storm sewer connection without first obtaining approval from the director to do so. An industrial waste water permit is required by SAWS for discharges to the sanitary sewer system.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15; Ord. No. 2018-04-12-0266, § 1(Att. 1), 4-12-18)

Sec. 3-102. Pavement deicing.

All pavement deicing chemicals used at the airport must comply with the following standards:

(1) Each airport tenant must obtain prior written approval from the director prior to the application of any pavement deicing product.

(2) Prohibited products. The use of urea-based deicing products is prohibited on both landside and
   a. Airside pavement surfaces at the airport.
   b. The use of deicing products containing formates (e.g., potassium formate and sodium formate) are prohibited on airside pavement surfaces. Note: potassium acetate is not potassium formate and is not part of this restriction.
   c. Because salts of chlorine sometimes affect runway concrete (PCC), products containing chloride, (sodium chloride, etc.) are strictly prohibited from use on the airside.
   d. Products prohibited by the FAA for deicing use shall not be used landside or airside at the airport.

(3) Approved products.
   a. *Airside.* The use of pavement deicers on the air operations area (AOA) must comply with the requirements specified in FAA Advisory Circular 150/5200-30B, as it may be amended from time to time. Currently, the only approved products for application on airside surfaces at the airport are potassium acetate and sodium acetate.
   b. *Landside.* The use of pavement deicers on landside pavement must comply with the requirements in FAA Advisory Circular 150/5200-30B, as may be amended from time to time. Currently the only FAA approved products for application on landside surfaces at the airport are chloride (sodium chloride, etc.) based products.

(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15; Ord. No. 2018-04-12-0266, § 1(Att. 1), 4-12-18)

Sec. 3-103. Aircraft deicing.

(a) Aircraft deicing (the removal or prevention of snow and/or ice with chemical substances) shall only be accomplished after the director's written acceptance of the user's detailed deicing plan.

(b) Before granting written permission for aircraft deicing, the director will review the deicing plans, deicing manuals, and training materials; inspect any deicing equipment; and accept the containment and recovery plan that will be used by the lessee for aircraft deicing.

(c) Use of chemical substances for the purpose of removing snow and/or ice shall comply with all regulatory measures, as they may change from time to time.

(d) All deicing and anti-icing shall be performed in accordance with the airport's deicing program, which contains authorized deicing locations and procedures. The airport's deicing program is available from the operations division at (210) 413-4928 or the environmental stewardship division (210) 207-3862.

(e) Best management practices should be used to minimize the use of glycol through proper application techniques.

(f) To the extent possible, other deicing and anti-icing techniques should be used to minimize the use of glycol. These techniques are described in detail in FAA Advisory Circular 20-117 Hazards Following Ground Deicing and Ground Operations in Conditions Conducive to Aircraft Icing.

(g) For safety reasons, efforts must be made to collect overspray from ramp areas if feasible to keep ramp surfaces clean and to avoid deicing fluids from entering the storm drains. Designated deicing areas have been established at the west, south, and east ramps. Deicing at the gates is prohibited.

(h) Collected aircraft deicing and anti-icing fluids shall be disposed of or recycled in accordance with the Clean Water Act and U.S. Environmental Protection Agency Effluent Limitation Guidelines (ELGs), if any.

(i) Weekly, each aircraft owner who uses deicing fluids must report quantities and concentrations of deicer used (inclusive of quantities disposed of or recycled) to the environmental stewardship division designated representative if any aircraft deicing fluids are used during the week. The week shall run Sunday through Saturday. Reports are due on Tuesday for the prior week.

(j) As required by the TCEQ Texas Pollutant Discharge Elimination System Multi-Sector General Permit, deicing season is identified for SAT from October through March. Implementation of control measures, including best management practices, facility inspections and monitoring must be conducted with particular emphasis throughout the defined deicing season.

(k) Each aircraft owner who uses deicing fluids must track and record the use of aircraft deicing fluids for the deicing year (July 1st—June 30th), including inventories on hand at the start and end of the deicing year. If a deicing contractor is used, the owner of the aircraft is still responsible for filing the annual report. These data shall be reported annually for use in projecting future infrastructure and staffing needs, and may become a reporting requirement of the airport's industrial stormwater permit. The annual aircraft deicing fluid use and inventory report must be submitted to the director by the end of the deicing year (June 30th). The report must include total gallons (neat) of Type I and Type IV deicing fluid applied during the deicing year just completed, as well as Type I/IV inventories on hand at the start and end of the deicing year.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15; Ord. No. 2018-04-12-0266, § 1(Att. 1), 4-12-18)

Sec. 3-104. Triturator rules.

Persons using the triturator shall conform to the following rules:

(1) Triturator users must sign a log verifying name, company, time of use, and name of user each time they use the triturator. Users must also note whether the doors were closed and the grate was clean when they arrived.

(2) Each company shall purchase and install spill response kits on each lavatory cart. Spills on the apron must be cleaned up using absorbents, not water. Absorbents may be disposed of in the lined trash can inside the triturator.

(3) Lavatory cart waste tanks shall be emptied as soon as possible, but no later than forty-eight (48) hours after receiving waste.

(4) Lavatory waste may only be discharged into the triturator unless another location is authorized by the director and the San Antonio Water System.

(5) Lavatory waste shall be discharged onto the triturator bars, not on top of the grate.

(6) The drain on the cart shall be capped before individuals leave the triturator building.

(7) After the waste is emptied, the grate and bars shall be hosed completely clean (no blue fluid staining, paper, or solids visible).

(8) Each lavatory service cart must have at least two (2) tools (tongs, forks, or brushes). Brushes, forks, or tongs shall be used to remove hard objects and to push paper products into the pit.

(9) Hard objects, such as cell phones, flashlights, aluminum cans, plastic cups, or clothing, shall not be allowed to enter the triturator. Instead, they shall be removed using tongs or other tools. Hard objects and other nonpaper debris (rubber gloves, paper towels, underclothing, kitty litter, chemical bottles, absorbents, etc.) shall be disposed of in trash cans with liners located inside the triturator.

(10) Lavatory carts shall be rinsed at the triturator or inside a building with a sanitary sewer drain, never on the apron or near storm grates.

(11) When filling the lavatory cart's fresh water tank, chemical disinfectants shall be used. The chemical disinfectants shall be added to the fresh water tank while the cart is inside the triturator building or inside a building with a sanitary sewer drain, and not near a storm water drain.

(12) Doors to the triturator shall be closed before and after use.

(13) Following these rules does not exempt any individual or entity from liability under the law.

(14) Employee airfield drivers' licenses can be revoked for rule violations and their employers may be penalized as well.

(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-105. Ground runup enclosure procedures.

Persons using the ground runup enclosure (GRE) shall conform to the following rules:

(1) Make a written request to airport operations to use the GRE in advance of the intended use. Approval of the written request to use the GRE must be received from airport operations prior to use of the GRE.

(2) The request must be clearly legible and provide the date, time requested, name of company, company phone and fax numbers, user's name and airport security badge number, tail number, aircraft type, requested location, purpose of use, time to be used, number of people to be in attendance, and whether vehicles will be present.

(3) Prior to using the GRE, inspect the blast walls and ground surface inside the runup enclosure for physical damage and FOD. If damage is noted, immediately notify airport operations by telephone followed up by a written notice of damage observed when returning to the user's base of operation.

(4) Inspect and remove all FOD within the GRE prior to and after engine runups.

(5) Maintain constant radio contact with the airport traffic control tower.

(6) "No Engine" markings indicate the closest point that an aircraft engine may be located in relation to any blast wall during the test.

(7) "No Tail" markings indicate the closest point that an aircraft tail may be located in relation to any blast wall during the test.

(8) Aircraft with a wingspan of one hundred seventeen (117) feet or more must be towed or pushed into the GRE.

(9) No fueling operations shall be performed inside the GRE.

(10) No aircraft washing shall be conducted inside the GRE.

(11) No prolonged maintenance, as determined by airport operations, shall be performed inside the GRE.

(12) The user shall be liable for any and all contact damage incurred to the GRE.

(13) Report any property damage, fuel spills, and injuries to persons to airport operations immediately.

(14) Follow all other conditions in the Aircraft Ground Runup Procedures Manual.

(15) Wind speed/direction must be in compliance with the Aircraft Ground Runup Procedures Manual while using the GRE.

(16) Prior to leaving the GRE, inspect the blast walls and ground surface inside the run-up enclosure for any physical damage and FOD. If damage is noted, immediately notify airport operations by telephone followed up by a written notice of damage observed when returning to the user's base of operation. If FOD is observed, remove it prior to leaving the GRE.

(17) Alternate ground runup site procedures. Taxiways N and Q near the approach end of runway 22 at San Antonio International Airport are designated as secondary locations to conduct aircraft engine ground runups. These locations will only be used when the GRE is in use, out of service, or at the discretion of airport operations. Authorization from airport operations must be obtained prior to conducting ground engine runups at the alternate locations. Airport operations may designate other alternate runup locations at San Antonio International Airport at their discretion. Engine runup locations outside of the GRE may only be utilized for engine runups between 6:00 a.m. and 11:00 p.m. CST. McDonald-Douglas MD-11 and DC-10 aircraft are prohibited from operating their tail mounted engine in the GRE between 11:00 p.m. and 6:00 a.m. CST.

(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Secs. 3-106—3-112. Reserved.

DIVISION 6. FIRE SAFETY

Sec. 3-113. Intent.

It is the intent of this division to prescribe regulations consistent with nationally recognized good practices for the safeguarding, to a reasonable degree, of life and property from the hazards of fire and explosion arising from the storage, handling, and use of hazardous substances, materials, and devices.

(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-114. Scope.

The provisions of this division shall apply to existing conditions as well as to conditions arising after the adoption hereof.

(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-115. Authority of fire personnel to exercise powers of police officers.

The aircraft rescue and firefighting (ARFF) coordinator and members of the ARFF Division shall have the powers of a police officer in performing their duties under this division.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-116. Right-of-entry.

Whenever necessary to make an inspection to enforce any of the provisions of this division, or whenever the ARFF coordinator or his/her authorized representative has reasonable cause to believe that there exists on any premises on the airport any condition that makes such building or premises unsafe, the ARFF coordinator or his/her authorized representative may enter such building or premises at all reasonable times to inspect the same; provided that, if such building or premises is occupied, he/she shall first present proper credentials and demand entry; and if such building or premises is unoccupied, he/she shall first make a reasonable effort to locate the lessee or other persons having charge of the building or premises and demand entry. If such entry is refused, the ARFF coordinator or his/her authorized representative shall have recourse to every remedy provided by law to secure entry.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-117. Hazardous materials handling guidelines.

(a) Procedures, precautions, preventive maintenance, and emergency notification criteria outlined and discussed in detail in the publications listed below, which are adopted herein by reference, shall be adhered to in all fueling and maintenance operations using hazardous fluids, including the storage of such fluids.

(b) All tenants, vendors, or individuals dispensing, placing, defueling, or otherwise handling fuel for aircraft or other flammables or hazardous materials on the airport shall do so at their own risk. They shall accept full responsibility for maintaining the proper standards of operation as described in this division 6, "Fire safety," and shall comply with the directives contained in the following list of publications listed in section 3-117 paragraph (c).

(c) Prior to beginning or continuing any of the above activities, all tenants or vendors involved shall submit a fueling plan for the approval of the director. The aviation department will enforce all or part of the following publications as they apply to protecting against fire and explosions in storing, dispensing, and otherwise handling fuel, lubricants, and oxygen on the airport. These standards shall cover facilities, procedures, and personnel training and shall address at least: grounding and bonding; public protection; control of access to storage areas; fire safety in fuel farms and storage areas; and fire safety in mobile fuelers, fueling pits, and fueling cabinets.

(1) *National Fire Protection Association (NFPA).*

a. *NFPA 407—Standard for Aircraft Fuel Servicing,* current edition.

1. Reference paragraph 4.3.22.2, 4.4.5.7, 4.5.9.3, and 4.6.9, are amended to read - with reference to signage.

A. Emergency Fuel Shutoff sign - shall be made of metal and must be 24" x 24" with red background with 5" white reflective letters "EMERGENCY FUEL SHUTOFF".

B. Push or Pull sign - shall be made of metal and must be 12" x 8" with red background with 4" white reflective letters "PUSH" or "PULL" as appropriate for said location.

C. Emergency Instructions sign - shall be made of metal and must be 24" x 24" Top portion should have a 6" high red background with 2" white reflective letters "EMERGENCY INSTRUCTIONS." The bottom por-

tion shall have a white background 1" red reflective letters "1. USE EMERGENCY FUEL SHUTOFF, 2. TO REPORT AN ACCIDENT CALL 207-3433, 3. (Address of site) e.g. (411 Sandau Rd, Gate 183)"

b. NFPA 410—*Standard on Aircraft Maintenance,* current edition.

(2) *American Petroleum Institute (API).*

a. API/IP RP 1540—*Design, Construction, Operation, and Maintenance of Aviation Fueling Facilities.*

b. API/IP STD 1542—*Identification Markings for Dedicated Aviation Fuel Manufacturing and Distribution Facilities, Airport Storage and Mobile Fuelling Equipment.*

c. *API/IP SPEC 1581—Specifications and Qualification Procedures for Aviation Jet Fuel Filter/Separators.*

(3) *Federal Aviation Administration.*

a. Advisory Circular (AC) 150/5230-4A or most current,—*Standards and Procedures for Fuel Storage, Handling, and Dispensing.*

b. AC 20-43C—*Aircraft Fuel Control* as amended.

(4) *National Air Transportation Association.*

Refueling and Quality Control Procedures for Airport Service and Support Operations.

(5) *International Fire Code,* as adopted by the city with amendments, current edition.

NOTE: The National Fire Protection Association (NFPA), American Petroleum Institute (API), International Fire Code (IFC) publications contain minimum standards which are used by the city of San Antonio aviation department which is the authority having jurisdiction (AHJ). The aviation department may impose more stringent standards.

(d) Copies of the above publications shall be kept on permanent file as public records in the office of the director. Revised information made public by the above organizations or such other applicable regulations as may be promulgated from time to time shall be incorporated into this division and shall be adhered to by all concerned.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-118. User of volatile liquids.

No person shall use flammable/combustible liquids in the cleaning of aircraft, aircraft engines, propellers, appliances, or for any other purpose, unless such operations are conducted in an approved open air location, or in a room specifically set aside and approved in accordance with the International Fire Code, as adopted by the city with amendments (current edition) for that purpose.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-119. Dispensing fuels.

(a) All aviation fuels will be dispensed on airport property by vendors holding a valid lease or agreement with the city that allows such operation except for an individual aircraft owner who transports and dispenses fuel into his/her own aircraft for his/her own private use, and who, by doing so, meets all requirements of the FAA, fire marshal and city codes, restrictions, and procedures. No company or individual may transport flammable liquids onto any aircraft area for the express purpose of sale on any portion of the property owned by the city without a valid agreement with the city.

(b) Each fueling agent who allows an aircraft owner or any other person not employed by the fueling agent to fuel an aircraft on the airport shall provide a list of all such persons to the aviation department. The fueling agent shall be responsible for providing at least on-the-job training in fire safety for each of these individuals. The fueling agent shall, once yearly, update this list and provide to the director certification that each person allowed to use the fuel facility has had the training described above.

(c) Refueling of an aircraft in a hangar is prohibited.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-120. Equipment maintenance.

Fueling pumps, meters, hoses, nozzles, fire extinguishers, and grounding and/or bonding devices shall be kept in proper working condition at all times, and shall be subject to inspection by airport representatives at any time. All aircraft fuel service trucks shall have an approved dust cap attached to each nozzle, or other type of configuration to ensure that no dust or debris is allowed to enter the nozzle end.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-121. Malfunction of refueling equipment.

(a) When malfunction of refueling equipment is detected, all refueling shall cease immediately and the fueling equipment is to be placed out of service until the malfunction is remedied. Tanks, pipes, hoses, valves and other fuel delivery equipment shall be maintained leak free at all times.

(b) Any malfunctions or irregularity detected on or within the aircraft being serviced shall be brought to the attention of the aircraft owner or operator immediately.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-122. Fuel spill.

(a) Crews engaged in the fueling and defueling of aircraft, the filling of dispensing equipment, or in any manner working with aviation fuels shall exercise extreme caution to prevent spills. When spills occur, servicing shall cease and spills shall be removed or absorbed with suitable material. Any spill occurring during the fueling process shall be the responsibility of the person or agent performing the fueling act to remediate. If the fuel spill occurs after the fueling agent has left the scene, the aircraft owner or the entity or individual charged with responsibility for the aircraft shall immediately begin clean up and call for the fueling agent to return to assist. A fuel spill occurring during some type of aircraft maintenance, when no fueling has occurred, shall be the sole responsibility of the aircraft owner or the entity or individual charged with responsibility for the aircraft to remediate. Proper notification as required in these rules shall be initiated at all times.

(b) The airport operations division shall be notified by the fueling agent of all fuel spills regardless of the size of the spill.

(c) The ARFF Division shall be notified if a spill is over ten (10) feet in any dimension or over fifty (50) square feet in area; continues to flow; is suspected of entering a storm drain, sewer, or waterway; or is otherwise a hazard to persons or property.

(d) Each fueling agent shall carry on each fuel vehicle at least two (2) bags of approved absorbent material and an approved device for damming or excluding fuel from entering a drain.

(e) No aircraft engine may be started when any volatile liquid is on the ground under such aircraft.

(f) No one is to walk or drive through any fuel spill.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-123. Positioning of fueling vehicles.

(a) During refueling or defueling, fuel-handling vehicles shall be placed so as to be readily removable in the event of fire and to permit direct driving away from the loading or fueling position. Not more than one (1) refueler shall be positioned to refuel each wing of an aircraft, and not more than two (2) refuelers shall be positioned to serve the same aircraft. When high-capacity aircraft are refueled, additional refuelers shall not be parked or positioned within one hundred (100) feet from the aircraft served and then only in areas approved by the director.

(b) Staging of fuel-handling equipment before and after fueling shall be in those areas authorized by the director.

(c) When not conducting refueling operations, aircraft fuel servicing tank vehicles shall be parked so that a minimum of ten (10) feet of clear space is maintained between them and other aircraft fuel servicing tank vehicles on both sides and on the front and rear for accessibility for fire control purposes. This includes vehicles waiting in line to be filled.

(d) Aircraft fuel servicing tank vehicles shall be parked a minimum of fifty (50) feet from any parked aircraft and building other than maintenance facilities and garages for fuel servicing tank vehicles.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-124. Airborne radar operation.

No airborne radar equipment shall be operated or ground tested in any area wherein the directional beam of high-intensity radar is within three hundred (300) feet or low-intensity radar (less than fifty (50) kilowatts output) is within one hundred (100) feet of another aircraft, an aircraft refueling truck, or aircraft fuel or flammable liquid storage facility.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-125. Fire extinguisher requirements.

(a) Aircraft fueling vehicle loading stations shall have no less than two (2) 20-B portable fire extinguishers located within seventy-five (75) feet of hose connections, pumps and separator tanks. Multipurpose (ABC) extinguishers will not be allowed in the area of any aircraft fueling operation.

(b) Aircraft fuel servicing tank vehicles shall be equipped with a minimum of two (2) listed portable fire extinguishers, each having a minimum rating of 20-B:C. A portable fire extinguisher shall be readily accessible from either side of the vehicle.

(c) Portable fire extinguishers at fuel dispensing stations shall be located such that pumps or dispensers are not more than seventy-five (75) feet from one such extinguisher. Fire extinguishers shall be provided as follows:

(1) Where the open-hose discharge capacity of the fueling system is not more than two hundred (200) gallons per minute, a minimum of two (2) listed portable fire extinguishers having a minimum rating of 20-B:C shall be provided.

(2) Where the open-hose discharge capacity of the fueling system is more than two hundred (200) gallons per minute, but not more than three hundred fifty (350) gallons per minute, a minimum of one (1) listed wheeled extinguisher having a minimum extinguishing rating of 80-B:C and a minimum agent capacity of one hundred twenty-five (125) pounds shall be provided.

(3) Where the open-hose discharge capacity of the fueling system is more than three hundred fifty (350) gallons per minute, a minimum of two (2) listed wheeled extinguishers having a minimum rating of 80-B:C each and a minimum capacity agent of one hundred twenty-five (125) pounds each shall be provided.

(d) At San Antonio International Airport, ramp operations shall have at least one (1) wheeled extinguisher with a minimum listed rating of 80-B provided at each gate or stand or at intervals of two hundred (200) feet along the length of aircraft ramps.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-126. Fuel handling vehicle marking.

(a) Each fuel handling vehicle shall have a sign on each side and the rear to identify the product. The sign shall have letters at least three (3) inches high and shall be of a color contrasting sharply with the sign background for visibility. The word "FLAMMABLE" and the name of the product carried, such as "JET A," "JET B," "GASOLINE," or "AVGAS," shall appear on the sign.

(b) In the cab of each fuel handling vehicle, the name of the product carried shall be prominently displayed in three-inch letters or larger.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-127. Storage of flammable substances.

(a) Gasoline, oil, waste fuel, and solvent drums or receptacles shall not be stored on apron and ramp areas in excess of amounts actually needed as current stock. Any material of this type that is kept on airport areas shall be kept enclosed and covered in a clearly marked and labeled housing of a design and type that meet requirements of the regulations included in division 6, "Fire safety," or other such regulations as may be promulgated from time to time. Each drum or container shall be labeled in letters at least three (3) inches high

with "No Smoking," "Flammable," and the tenant's name. Drums shall be stored on a spill pallet or by some other means, approved by the aviation department, of containing any potential spill of the largest amount anticipated. Enough absorbent material to remediate a spill of the largest amount of fuel on hand shall be kept readily accessible to any such flammable liquids storage area. No such flammable liquids storage area shall be inside any building unless in an approved explosion proof flammable liquids storage room or closet.

(b) No cylinders or flasks of compressed flammable gases shall be stored in hangars.

(c) No person shall store, handle, or transport Class A, Class B or Class C flammable and/or combustible material(s) upon the airport without prior approval from the director.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-128. No volatile solvents on floors.

Floors shall be kept clean and free from oil. The use of volatile flammable solvents for cleaning floors is prohibited.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-129. Disposal of volatile substances.

No fuels, oils, dopes, paints, solvents, or acids shall be disposed of or dumped in drains, on the ramp areas, catch basins or ditches, or elsewhere on the airport. When drip pans are used to contain leaks from aircraft engines, the contents must be disposed of in a manner so as not to contaminate these areas.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Secs. 3-130—3-135. Reserved.

DIVISION 7. COMMERCIAL ACTIVITY

Sec. 3-136. Approval of director prerequisite to business activity.

No person shall engage in any business or commercial activity of any nature whatsoever on the airport except with the prior written approval of the director, and under such terms and conditions as may be set forth in a permit issued by or a contract executed with the city, and in accordance with Division 10 of these rules and regulations.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-137. Commercial photography, film, and recordings.

No person, except representatives of the news media on duty or during official assignments, shall take still, motion, television, or sound pictures for commercial purposes on the airport without the express written consent of the director.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-138. Insurance requirements.

Anyone conducting a business or enterprise upon the airport must obtain insurance of such types and in such amounts as may be determined from time to time by the director. Insurance requirements may vary among different types of service providers and may be periodically adjusted to ensure that the city, airport passengers, and the interests of the public are adequately protected. Such insurance shall be issued by a company authorized to do business in the state and presented in a form and content acceptable to the director. Such insurance shall contain a statement naming the city as an additional insured. All such insurance policies shall provide for minimum of thirty (30) days' notice to the city prior to cancellation. The city shall have no duty to issue lease agreements or permits, or to pay or perform under contract until evidence of adequate insurance shall have been delivered to the city. All businesses shall be prohibited from commencing work until the proper notification of insurance has been delivered to the city.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-139. Rates for parking and storage of aircraft.

Rates for parking and storage of aircraft are based on the certificated maximum gross landing weight of aircraft. Rates may be periodically adjusted as allowed by city council. Charts of the

most current rates may be obtained upon request and are set forth in Division 10 of these rules and regulations.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-140. City gate policy.

The director is authorized to issue city gate permits to air transportation companies and ground handling companies for temporary access to airport terminal facilities to offload and board passengers at San Antonio International Airport. The permit and policy procedures for the use of city gates shall be as authorized by city council from time to time.

(1) City gate facilities shall include those facilities necessary for the servicing of passengers, such as gates, loading bridges, and holdrooms that are not leased to an airline on an exclusive or preferential basis.

(2) City gate fees shall be assessed in accordance with the rates and charges paid by signatory airlines under the effective airline-airport use and lease agreement. In the absence of an effective airline-airport use and lease agreement, the city gate fee shall be determined by the approved rates and charges ordinance.

(3) City gate fees shall be assessed on an hourly basis with half-hour increments after the initial hour. This fee will be assessed from the time the aircraft parks at the gate until the time the aircraft pushes back from the gate.

(4) A departure or offloading of passengers shall be a requirement for city gate fees to accrue. All overnight parking at city gate(s) shall be billed in accordance with the rates for parking and storage of aircraft under section 3-178. City gate fees may also be applicable based on usage of the city gate facilities.

(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-141. Express use of facilities.

(a) The security of all pedestrian and vehicular gates, building doors, access ramps, fences, walls, and other access points that lead from a tenant, lessee, or contractor area to or from the AOA or any other restricted area on the airport shall be the responsibility of the tenant, lessee, or contractor whose controlled area abuts the AOA.

(b) All leaseholds, improvements, and real and personal property on airport property are expressly for the conduct of the owner's or lessee's business and operations. No person other than employees or licensees of the owner or lessee shall make use of these facilities or loiter around such premises without specific permission of the owner or lessee.

(d) No tenant shall decorate any public view area to celebrate, commemorate or support any cause, event or holiday without a prior request to and written authorization from the director. Such request shall be made, at a minimum, 10 (ten) business days prior to the event and should include a detailed description of decorations and their placement.

(e) No tenant shall erect drawings, pictures or non-professional signs in the public view area without prior approval from the director.

(f) Tenant is permitted to hold fundraisers within its exclusive area as long as it is out of the public view. Fundraisers must be geared towards tenant's employees and should not include distribution of flyers or emails to other tenants/customers throughout the airport without approval from the director.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-142. Changes by tenant.

(a) No tenants or lessees will be permitted to effect structural changes, additions or decorative changes, including signs or displays of any type, or repairs to any city-owned buildings without prior written permission of the director. Additionally, no tenant or lessees shall be permitted to effect changes to any existing non-city owned facility located on airport property, construct a new facility on airport property, or complete surveying work on airport property without prior written permission from the director. The tenant or lessee shall furnish any and all documenta-

tion regarding the proposed changes or construction, in a quantity specified by the director, to the director for his or her review and approval.

(b) Airport security division must be notified prior to any changes to a tenant's legal name on lease agreements, including assignments and assumptions. Airport security division must also be notified prior to any alternations and activities by tenants that impact the layout or physical structure of the AOA, SIDA, secured area or sterile area. The aforementioned division will determine if TSA notification is required; if so, TSA requires forty-five (45) days of notice to any changes in the form of a change or condition, temporary or permanent amendment to the security plan of the San Antonio International Airport. No alterations or activities will be permitted until TSA written approval has been received.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15; Ord. No. 2018-04-12-0266, § 1(Att. 1), 4-12-18)

Sec. 3-143. Integrity of leased premises.

All tenants or lessees shall observe the graphic boundaries associated with and assigned to each lease agreement as being absolute and shall not encroach on adjacent areas by locating vehicles, aircraft, or equipment on or in such a manner as to have any portion extending onto or over adjacent property.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-144. Utility payments.

Every tenant shall provide a meter for the purpose of accurately measuring gas, water, and electrical power used by the tenant, or shall pay a flat fee for these utilities as prescribed by the director, except as may be provided for in individual leases.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-145. Aircraft, vehicles, equipment or parts left on the airport.

(a) No tenant or lessee shall park or store a disabled or inoperable aircraft, vehicle, or piece of equipment in any area outside their leasehold without the approval of the director. Any disabled or inoperable vehicle or piece of equipment that is stored or parked within a tenant or lessee's leasehold for more than ninety (90) days may be deemed derelict and subject to removal at the owner's expense as described in section 3-145 paragraph (c).

(b) No person shall park or store any vehicle in an airport parking facility, in a parking facility under the control of an airport tenant of the city, or other area authorized for parking, that is unattended or inoperable for a period of sixty (60) days or more without a written permit from the aviation department or its authorized agent. Vehicles left unattended shall be presumed to have been abandoned and may be considered and treated as such.

(c) Upon notification and demand by the director, either orally or in writing, to the owner or operator of any derelict, disabled, inoperable, or abandoned vehicle, aircraft, or piece of equipment or parts of such left on the airport, it shall be the duty of the owner or operator to remove the same at his/her own expense. If, after such demand, the owner or operator fails or refuses to remove such property within a reasonable time as determined by the director under the circumstances and conditions created by the presence of such property, the director may cause the same to be impounded and/or stored. The cost of such removal, impound, storage, and any parking fees due at the time of removal shall be a charge against the owner or operator of such property; and upon the payment of the charge, the property shall be released and possession shall be restored to the owner or operator. If the owner cannot be determined, the city shall have the right to dispose of the property by sale or otherwise and to keep the proceeds therefrom.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-146. Construction or repair.

(a) Prior approval shall be obtained from the director before any survey, repair, or construction activity of any kind is commenced on any city-owned property at the airport. This shall include utility connections, paving, excavations, and removal of soil or fill material or other improvement to land on the airport.

(b) Prior to the commencement of any construction, an airspace study on FAA Form 7460-1 shall be completed except for construction within an existing structure.

(c) In the event construction equipment will be used which is higher than the structure being erected under a granted permit, the operator of the equipment must notify the aviation department, keep the equipment in a lowered position to the maximum extent possible, and install appropriate hazard marking and/or lighting on the top extremity of the equipment.

(d) All necessary city permits and licenses shall be obtained prior to performing any construction or repairs.

(e) Any repair or deficiency that is the responsibility of the aviation department to correct may be reported to the aviation department through the feedback page on the aviation department's website.

(f) In order to comply with TSA regulations, airport security must be notified prior to tenants initiating any alterations and activities that impact the layout or physical structure of the AOA, SIDA, secured area or sterile area. Airport security will determine if TSA notification is required; if so, TSA requires a 45-day notice in advance of any work commencing through a change of condition, temporary amendment or permanent amendment form. No alterations or activities will be permitted until airport security receives written approval from TSA.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15; Ord. No. 2018-04-12-0266, § 1(Att. 1), 4-12-18)

Sec. 3-147. Nonconcessionaire rental car business permit.

(a) The director is authorized to grant nonexclusive user permits substantially in the same form as the San Antonio International Airport nonconcessionaire rental car business permit previously approved by ordinance. Said permit grants permission and access to the airport by nonconcessionaire rental car businesses using San Antonio International Airport or Stinson Municipal Airport in exchange for payment of a permit fee and the collection and remittance of customer facility charges.

(b) The permit authorizes nonconcessionaire rental car businesses to access and use the airport for loading and unloading of airport patrons at designated locations.

(c) The user fee, consistent with city ordinance, is based upon the benefits derived by nonconcessionaire rental car businesses by their use of San Antonio International Airport.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15; Ord. No. 2018-04-12-0266, § 1(Att. 1), 4-12-18)

Sec. 3-148. Aircraft for hire.

Operators of aircraft used for hire or other commercial purposes are required to have appropriate insurance and permits, and shall pay such landing fees and/or fuel flowage as required by ordinance or contract. No person in any aircraft shall discharge or allow to be discharged from the aircraft any object within the city limits except when absolutely essential to the safety of the occupants of the aircraft.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-149. Mobile food vending permits.

Consistent with city ordinance, the director may issue mobile food vending permits to persons or businesses seeking to do business at the airport and who have obtained the required permits from all applicable regulatory entities. The director may impose other permit requirements to ensure the proper operation of airport facilities. The issued permit shall be posted in a conspicuous place in public view and in accordance with division 10 of these rules and regulations.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-150. Prohibition against the recording of aircraft registration information.

The recording of any aircraft registration information by persons or tenants other than those servicing or handling said aircraft is

expressly prohibited without the written permission of the aircraft owner, operator, or his/her designee.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-151. Rate-setting for leases.

(a) The initial rental rate for leases of city owned buildings and structures shall be established at ten (10) percent of the fair market value of the property in accordance with the procedures below.

(1) Fair market value shall be determined by appraisal of the fee simple interest in the subject property, according to its highest and best use. Ground and building appraised values shall be listed individually in the final appraisal.

(2) The appraisal must be performed by a real estate appraiser licensed in the state.

(3) The director shall select the appraiser (city's appraisal) and the cost shall be equally shared by the aviation department and lessee.

(b) Ground rental rates shall be assessed through a ground rental rate study which will be updated approximately every eighteen (18) months.

(c) To dispute city's appraisal, lessee must:

(1) Certify in writing to the director that it does not agree with city's appraisal within ten (10) business days of receiving written notification of city's appraisal and corresponding rental rates.

(2) Appoint a recognized, qualified and impartial MAI (member of the appraisal institute) or equivalent appraiser (hereinafter, "lessee's appraiser") with prior airport experience and causing the performance of an appraisal for the subject property to be completed within ninety (90) days of receiving notice of city's appraisal.

(3) The lessee shall bear the costs of the appraisal performed by lessee's appraiser and deliver a copy of said appraisal to the director, at no cost to the city.

(d) To arrive at a final appraisal after a dispute by the lessee in accordance with paragraph (b) of this section, the city and lessee shall jointly appoint a third appraiser to conduct an appraisal of the subject property.

(1) The third appraisal shall control the initial rate setting for the contemplated lease.

(2) The cost of the appraisal shall be borne fifty (50) percent by lessee and fifty (50) percent by city.

(e) All appraisals performed pursuant to this section shall be based on fee simple ownership.

(f) This section shall not apply to the lease of property located within the terminals, aprons, taxiways, or runways of San Antonio International Airport; to the ground rental rates for Stinson Municipal Airport unless otherwise approved by ordinance; or where leasing at market value rates is prohibited by FAA.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-152. Planting of vegetation.

No vegetation shall be planted on airport property unless approved by the director.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-153. Drop off/pick-up locations and parking

(a) The director reserves the right to designate locations for drop-off, pick-up, and parking of commercial vehicles as demanded by traffic needs, construction, or other safety concerns.

(b) Commercial vehicles dropping at the San Antonio International Airport terminal roadside may not stop in the outer two lanes to drop off passengers. They shall use the designated areas as determined by the director and/or wait until space is available on an inner curb.

(c) Commercial vehicles picking-up passengers must do so in the area(s) designated for the purpose either as marked or communicated by airport staff. Commercial vehicles must also pay applicable ground transportation fees per city ordinance.

(d) Commercial vehicles may not stop, stand, or park in any undesignated area on airport property including public facilities, roads, or curbsides on airport property such as the cell phone lot, any unused parking areas or cul-de-sacs, or bus cut-out areas.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Secs. 3-154—3-156. Reserved.

DIVISION 8. SECURITY

Sec. 3-157. Airport police and airport security.

(a) The airport police shall have full police powers and authority to enforce all laws, ordinances, orders, rules, and regulations at San Antonio International Airport and Stinson Municipal Airport.

(b) The airport security division will serve as the director's designee for all security related issues and shall have the authority to enforce the airport security program and rules and regulations that pertain to security at San Antonio International Airport and Stinson Municipal Airport.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-158. Authorized entry.

(a) At San Antonio International Airport, it shall be unlawful for any person to enter or be upon the air operations area (AOA), security identification display area (SIDA), utility rooms, and service areas or other restricted areas as defined above except:

(1) Persons assigned to duty therein;

(2) Persons authorized by the director;

(3) Persons displaying airport identification media approved by the director or his/her designee;

(4) Passengers under direct supervision of a person displaying approved airport identification media with escort privileges, entering the AOA for purpose of embarkation or debarkation;

(5) Persons accompanied by and/or under the direct supervision of a person displaying airport approved identification media with escort privileges; and

(6) Occupants of vehicles displaying approved airport identification media or under the direct supervision of a person displaying approved airport identification media with escort privileges that have been approved for entrance and operation on the AOA, provided said vehicles are displaying required identification as provided for hereinafter.

(b) At Stinson Municipal Airport it shall be unlawful for any person to enter or be upon the air traffic control tower, utility rooms, and service areas or other restricted areas except:

(1) Persons assigned to duty therein;

(2) Persons authorized by the director.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-159. Authorization for identification.

(a) The director, before granting authorization for entrance or operations within restricted areas previously defined, must determine from existing facts or from information provided by the applicant that the entrance and/or operations are necessary for the regular operations of the airport and that such authorization will not cause any security problem for the airport or for the lessees of airport property.

(b) The director shall have the right to require those seeking authorization for entrance or operations within restricted areas previously defined to provide information relative to the applicant's name and address, his/her employer and address, his/her proposed activities within the restricted area, and any other information necessary to establish the right of entry and fulfill the federally mandated requirements to receive an approved airport identification media as established in the airport security program. The director shall have the authority to limit the location, entrance, duration of time in the area, and the point of ingress and egress by any person or vehicle authorized to enter the restricted

areas. The director may terminate any authorization upon a change of conditions affecting airport security.

(c) Each person authorized to access the restricted area of the airport shall be issued airport identification media in accordance with the federally approved airport security program. The approved airport identification media is the property of the San Antonio Airport System and may be revoked, suspended or confiscated at any time by the director for security or safety infractions.

(d) Persons in possession of airport identification media shall immediately return such media to the appropriate airport representatives upon voluntary or involuntary termination of employment. Employers shall be responsible for the return of airport identification media and keys upon the termination of any employee in possession of such airport identification media. Rates for unreturned keys and identification media are in division 10.

(e) In the interest of the safety and security of the traveling public and employees working at the airport, the city reserves the right to be more stringent in the interpretation of the disqualifying offenses outlined in 49 C.F.R. Part 1542.209 regarding the authorization to be issued or maintain possession of approved airport identification media.

(f) The director reserves the right to consider any of the following dispositions appearing in an applicant's criminal history in determining whether or not to issue or renew airport identification media to an applicant: felony convictions, felony deferred adjudications, Class A misdemeanor convictions, Class A adjudications, or a pattern of criminal behavior determined, in the director's sole discretion, to pose a threat to persons or property. Airport identification media will not be issued to any applicant who has outstanding active arrest warrants. Proof of resolution of arrest warrants must be provided to the airport security division.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15; Ord. No. 2018-04-12-0266, § 1(Att. 1), 4-12-18)

Sec. 3-160. Development and implementation of security plans.

(a) Each lessee of land and/or facilities at San Antonio International Airport having access to the AOA shall develop and implement security plans containing the following:

(1) A drawing of the lease area, showing the footprint of the facility to include any doors, gates, or fencing to be used as deterrents to prevent unauthorized AOA access;

(2) The location of each gate, opening, or other means of controlling access to the AOA;

(3) Surveillance, locking systems, or other methods of preventing unauthorized movement through the access points, both during and after normal working hours;

(4) Provision for escort or supervision on the AOA by a person displaying authorized identification, pursuant to division 8, item 3 [section 3-159] of this article. Such identification shall be approved by the director as established in the federally approved airport security program.

(b) Each plan shall be submitted to the director for review and approval no later than thirty (30) days after commencing a new operation on the airport. Plans shall be submitted to the director or his/her designee prior to proceeding with any changes or modifications by the lessees that result in modifications or changes in conditions affecting access to the AOA through or from the lease area. Security plans shall be kept on file in the office of the director.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-161. Aircraft security when necessary.

When, in the opinion of an aircraft owner, conditions become necessary to provide additional security at the location of the aircraft on the airport, the owner shall be responsible for obtaining, at no cost to the city, security guards or police officers, after permission to establish such security has been obtained from the director or his/her designee. Furthermore, the owner shall

be responsible for ensuring that security guards or police officers have, in their possession, aviation department approved identification media while working in the restricted area of the airport, or are with an airport approved escort. Security measures shall not be used as a means to hinder or delay removal of aircraft nor to interfere with government, FAA, or airport staff in the proper disposition of the aircraft.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-162. Authorized airport identification holders.

All persons authorized by the director to possess approved airport identification media shall:

(1) Properly display approved airport identification media when in the SIDA, Secured Area or Sterile Area.

(2) Properly control any person under their direct supervision who does not possess approved airport identification media when in the SIDA.

(3) Challenge persons in the SIDA not displaying approved airport identification media.

(4) Properly enter/exit and secure all access portals to the SIDA.

(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Secs. 3-163—3-166. Reserved.

DIVISION 9. ENFORCEMENT AND PENALTIES FOR NONCOMPLIANCE

Sec. 3-167. Purpose.

These rules and regulations have been adopted and approved by the city council and apply to the geographical properties known as San Antonio International Airport and Stinson Municipal Airport. The provisions in this article are designed to protect the public health, safety, interest, and general welfare at the airport, and to restrict or prevent any activity or action that would interfere with the orderly operations and efficient use of the airport by passengers, operators, tenants, and users.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-168. Compliance.

The director has the authority to enforce the provisions of this article. All persons on any part of the property comprising the airport shall be governed by these provisions and by other directives from the director relative to the use or occupation of property within the airport. This includes any permission granted directly or indirectly, expressly or by implication, to any entity or individual to enter upon or use the airport (including aircraft operators; vehicle operators; aircraft crewmembers and passengers; spectators and sightseers; occupants of private and commercial vehicles; officers, employees, customers, vendors, and suppliers of operators and lessees; and entities conducting business at the airport). All such permission granted is conditioned upon full and complete compliance with this chapter, and all applicable regulatory measures that may be promulgated by any governing body or agency having jurisdiction over the airport.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-169. Enforcement.

The director is empowered to enforce these rules and regulations through his/her designee. All persons on the airport grounds shall respond to directives issued by the director relative to the enforcement of these rules and regulations. Violations of rules and regulations may result in a written notice of correction (NOC) issued by aviation department staff, suspension and/or revocation of permit(s) to conduct activities at the airport, and/or being cited with a Class C misdemeanor which, upon conviction, shall be punishable as provided in section 1-5 of this Code, or successor provision. Additionally, the director may issue a cease and desist order or remove or evict from the airport grounds any person who knowingly, willfully, recklessly, or continuously violates any rule or regulation prescribed herein, or any rule or regulation in effect by the federal government or the state,

and may deny use of the airport and its facilities to any such person if it is determined that such denial is in the public interest.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-170. Appeal of a decision.

Any person or company that receives from aviation department personnel, a notice of correction, administrative fee, cease and desist notice, suspension of permit, eviction, removal, denial of access to airport property, or other administrative action because of violations of this article may appeal, in writing, the action to the director within ten (10) calendar days of the receipt of the initial notice. The director shall have ten (10) calendar days to respond to the appeal and determine whether any administrative action taken should be rescinded.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-171. Civil penalties charged to the airport.

Any monetary civil penalty or fee charged to the airport as the result of any action or inaction by any person or entity that violates a federal, state, or local law, or regulation shall, at the discretion of the director, be paid by the person or entity responsible for the violation.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Secs. 3-172—3-176. Reserved.

DIVISION 10. RATES AND FEES

Sec. 3-177. Establishment of rates and fees.

All fees contained in this division are subject to change upon the passage of an ordinance by the city council.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-178. Rates for parking and storage of aircraft.

The following charges shall be levied for the parking and storage of aircraft at the airport:

Certificated Maximum Gross Landing Weight of Aircraft (pounds):	*Per 24-hour period*
12,500 and under	$100.00
Above 12,500	$150.00

(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15; Ord. No. 2024-09-19-0705, § 4(Att. F), 9-19-24)

Sec. 3-179. Parking rates and charges.

The aviation department shall implement rates and charges for parking privileges at San Antonio International Airport, which shall remain in effect unless amended by order of the city council as may be necessary from time to time. The times and rates for the parking areas shall be published on the city's website. Such charges are inclusive of sales tax payable to the state and are as follows:

(1) Long-term parking area. The rates and times shall be established by the director and shall not exceed a maximum of sixteen dollars ($16.00) for each 24-hour period.

(2) Short-term parking area. The rates and times shall be established by the director and shall not exceed a maximum of twenty-nine dollars ($29.00) for each 24-hour period.

(3) Economy parking areas. The rates and times shall be established by the director and shall not exceed a maximum of ten dollars ($10.00) for each 24-hour period.

(4) Minimum charge for a lost ticket in airport parking area shall be the 24-hour rate per day for the applicable parking area.

(5) Grace period. The director is authorized to establish a grace period for any parking area at the San Antonio International Airport.

(6) Parking fees for non-passengers shall be set by the director:

a. Issuance of parking access card, tag or sticker (new or replacement): Fifteen dollars ($15.00).

b. Terminal building employees for tenant employees or city employees (per month): A fee not to exceed seventy-five dollars ($75.00).

c. Employees of passenger airlines serving the city but based elsewhere (per month) in employee parking lot: A fee not to exceed seventy-five dollars ($75.00).

d. Replacement of lost/damaged parking access cards: Twenty-five dollars ($25.00).

e. Reserved parking, eligibility, number of spaces and location to be determined by director (per month): A fee not to exceed seventy-five dollars ($75.00).

f. Late payment of employee parking fees: Five dollars ($5.00).

Employee monthly parking fees shall be payable on a monthly basis, in advance. Employee monthly parking fees shall not be pro-rated for any reason. Refunds for pre-paid months will only be given if the card is returned prior to the beginning of the month that was prepaid. Refunds will be for full months only. Fees for the issuance or replacement of parking access cards shall be paid at the time of issuance or replacement.

(7) Parking programs. The city manager is authorized to establish rates for pilot parking programs in public parking areas at San Antonio International Airport for passenger convenience. Upon completion of an initial 12-month pilot program, in order to implement the program on a permanent basis, city council must approve each such program and its associated rates and charges.

(8) Guaranteed parking program. A program offering a limited number of parking spaces in access-controlled parking areas within the airport parking areas.

Long-term parking area. Monthly rate: Two hundred forty dollars ($240.00).

Short-term parking area: Monthly rate: Three hundred sixty dollars ($360.00).

(9) The city manager is authorized to increase the maximum rate and adjust parking rates to optimize parking at San Antonio International Airport.

(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15; Ord. No. 2015-06-18-0550, § 1, 6-18-15; Ord. No. 2015-10-15-0874, § 2(Att. I), 10-15-15; Ord. No. 2016-09-15-0697, § 2(Att. F), 9-15-16; Ord. No. 2018-04-12-0266, § 1(Att. 1), 4-12-18; Ord. No. 2023-09-14-0627, § 2(Att. C), 9-14-23)

Sec. 3-180. Payment of ground transportation airport operating permits and per trip fees by class.

(a) The aviation department is authorized to implement a permit system and to collect ground transportation per trip fees from certain classes of commercial vehicles operating at San Antonio International Airport. All such vehicles shall remit to aviation department staff the required paperwork and shall establish a ground transportation escrow account to be used for the payment of the required per trip fees as established in subsection (c).

(1) Commercial vehicles.

a. Taxi.

b. Limousine.

c. Hotel/motel vehicle (any type or size used for transporting customers).

d. Charter service as defined in chapter 33 "Vehicle For Hire" of the City Code.

(b) The airport permit fees, to be paid annually, shall be as follows:

Vehicle Type	*Permit Fee*
Taxi	$150.00
Charter	$50.00

(c) The ground transportation fees, to be paid per trip, shall be as follows:

Vehicle Type	*Fee Per Trip*
Taxi	$1.25
Transportation network company (TNC)	$1.50
Limousine	$2.00
Charter	$3.00
Hotel/motel shuttle	$1.50

(1) The director is authorized to establish the fees at a rate that shall not exceed five dollars ($5.00) per trip for all vehicle types except TNCs.

(2) The director is authorized to change the fees for TNCs using the methodology approved under Chapter 95 of the Texas Administrative Code.

(d) Account reinstatement fee will be assessed when the credit card on file is declined or the account has a zero or negative balance. The director shall authorize the permit reinstatement fee up to fifteen dollars ($15.00) for taxis and thirty dollars ($30.00) for other higher-capacity commercial transportation vehicles.

(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15; Ord. No. 2016-12-08-0969, § 1(Att. C), 12-8-16; Ord. No. 2018-04-12-0266, § 1(Att. 1), 4-12-18)

Editor's note—Ord. No. 2016-12-08-0969, § 1(Att. C), adopted December 8, 2016, changed the title of section 3-180 from "Payment of ground transportation fees by class" to "Payment of ground transportation airport operating permits and per trip fees by class." The historical notation has been preserved for reference purposes.

Sec. 3-181. Airfield driving courses, aircraft escort, and other fees.

The following fees shall be charged:

(1) Airfield driver training of non-city employees:

a. AOA driving course—Movement areas, per person: $25.00.

b. AOA driving course—Non-movement areas, per person: $20.00.

(2) Airfield driver's license replacement: $10.00.

(3) Aircraft escorting: $25.00.

(4) Expired airfield driver's license penalty fee: $20.00.

(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-182. Fuel flowage fee.

Commercial fueling and self-fueling activities, not to include scheduled commercial airlines, shall incur a fee to be paid to the aviation department based on gallons of fuel delivered in the form of a fuel flowage fee in an amount set by ordinance. Such fees shall be added to the price of the fuel sold or delivered to the customer, itemized separately on the fuel invoice provided to the customer, and collected from the fuel customer at the time of the fuel sale or delivery.

All commercial fueling and self-fueling entities shall prepare and provide monthly reports that reconcile fee assessments and collections with fuel purchases or receipts, sales, and deliveries.

The fuel flowage fee at San Antonio International Airport is $0.075 per gallon.

The fuel flowage fee at Stinson Municipal Airport is $0.075 per gallon.

(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-183. Security access and control charges.

(a) The aviation department shall implement the charges airport identification media at San Antonio International Airport set forth below. These rates shall remain in effect unless amended by action of the city council as may be necessary from time to time. The following charges are inclusive of sales tax payable to the state:

(1) FBI fingerprint-based criminal history records check: $27.00.

Administrative fee payable to the aviation department: $38.00.

(2) Airport identification media (initial and renewals): $35.00.

(3) Air operations area parking permit: $5.00.

(4) Unaccountable airport identification (ID) media (lost, stolen or non-returned): $150.00.

Employers will be assessed and are responsible for paying the above fee for any unaccountable airport identification media for which they are designated sponsor in the system. In the event that an airport identification media, which has been previously reported as unaccountable, is returned to the airport badging office within thirty (30) days after such airport identification media was

deemed unaccountable. The city shall refund the employer one hundred dollars ($100.00) if the employer has paid the one hundred fifty dollar ($150.00) fee. Employers are encouraged to return the airport identification media even after the thirty (30) days.

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(5) Badge and ID missed appointment fee: $25.00

The following constitutes a missed appointment:

a. Arriving fifteen (15) minutes after scheduled appointment.

b. Failure to arrive at the scheduled date or time of appointment.

c. Failure to present all required documents for scheduled appointments. A list of required documents can be found on the airport security's website (http://www.sanantonio.gov/Aviation/Security/Badge-and-ID#156781624-get-a-badge).

Applicants or authorized signatories must notify the badge and ID office at satbadgeoffice@sanantonio.gov of cancellations twenty-four (24) hours prior to the date and time of the scheduled appointment.

(6) Airport identification media reactivation fee after security violation:

First offense: $25.00

Second offense: $50.00

Third offense: $75.00

Fourth offense—Airport identification media issuance/reactivation will be denied.

(7) The aviation director shall set a fee for non-returned or damaged fees. Non-returned/damaged key: Employers shall pay the following amount for each key that is not returned or damaged to the airport security office.

Standard key: $25.00

Electronic key: $75.00

(8) Progressive security enforcement fee: Ten dollars ($10.00) × frequency × severity factor as described in section 3-184.

(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15; Ord. No. 2018-04-12-0266, § 1(Att. 1), 4-12-18)

Sec. 3-184. Progressive security enforcement fee.

The progressive security enforcement fee shall be determined by multiplying the frequency and severity of the security violation, by a ten-dollar ($10.00) baseline charge (i.e., fee = $10.00 × frequency × severity factor). The severity factor is determined by the location and the type of the offense. San Antonio International Airport has three (3) designated restricted areas: the sterile area (inside the terminals but beyond the TSA security checkpoint), the secured area (outside the terminals near the commercial aircraft), and the security identification display area (SIDA, the entire AOA). The types of security violations are grouped into five (5) major categories: vehicular violations, access point violations, security rule violations, breaches of the restricted area, and unsecured sharp objects. The table below indicates the severity factor by location to be applied in the formula.

SEVERITY FACTOR BY LOCATION

Restricted Areas	*Vehicular Violation*	*Access Point Violation*	*Security Rules Violation*	*Breach of Restricted Area*	*Unsecured Sharp Objects*
Sterile Area	0	2	3	5	5

Restricted Areas	*Vehicular Violation*	*Access Point Violation*	*Security Rules Violation*	*Breach of Restricted Area*	*Unsecured Sharp Objects*
Secured Area	2	2	4	5	0
SIDA	1	2	4	5	0

(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-185. Operation and maintenance fees on certain airport facilities.

An operation and maintenance fee, not to exceed twenty-five (25) percent of the monthly rental rate, shall be assessed on all leases at the Air Cargo Building West at San Antonio International Airport and non-concessionaire leases at the Stinson Municipal Airport Terminal Building. The director may periodically review and modify these fees as needed.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-186. Fuel storage and dispensing equipment.

Fuel storage tanks, vehicles and equipment used for the storage and/or dispensing of fuel shall be subject to ARFF inspection prior to being placed into service on airport property and thereafter as required by FAA regulations. The following fees are established in connection with such inspections:

(1) Initial inspection or inspection to maintain valid inspection decal: $0.00

(2) Reinspection after initial failed inspection: $25.00

(3) Fine for operating without a valid inspection decal: $500.00

(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-187. Commercial permit fee.

The director may issue permits to persons or businesses who seek to conduct commercial activities at the airport and do not have a contract with the city. Permits shall be for terms of one (1) year. The permit fee shall equal five (5) percent of all gross sales generated by the permittee's business activities at the airport, payable monthly. Proof of insurance and payment security satisfactory to the city must be provided before a permit is granted. The director may impose other permit requirements to ensure the proper operation of airport facilities and proper reporting of revenue. This section is not meant for businesses engaged in the following activities: transportation of passengers, automobile rental, catering and food preparation, and construction services.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-188. Administrative review fee.

(a) In the event of an airport tenant subleasing a portion of the premise where the city is the landlord and the city must review the sublease agreement, a processing fee will be assessed and shall not be more than one thousand five hundred dollars ($1,500.00). The processing fee is a one-time fee due at the initial review and calculated on five (5) percent of the following the rents charged on a monthly basis as stated in the sublease and over the term of the sublease (not to exceed twelve (12) consecutive months for subleases lasting longer than one (1) year).

(b) Airport tenants who request the transfer of a lease agreement to a prospective or existing tenant through an assignment and assumption agreement must pay the administrative review fee of one thousand five hundred dollars ($1,500.00) upon seeking the approval of the aviation director. The fee is nonrefundable regardless of the outcome of the director's decision or the assignment and assumption.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15; Ord. No. 2018-04-12-0266, § 1(Att. 1), 4-12-18)

Sec. 3-189. Off-airport parking permit.

The director may issue off-airport parking permits to persons or businesses who seek to

provide car storage services to airport patrons. Permits shall be for a term not to exceed five (5) years. The permit fee shall equal ten (10) percent, or such other fee established by ordinance, of all gross sales generated by the permittee's business activities at the airport and/or with airport patrons, payable monthly. Proof of insurance and payment security satisfactory to the city must be provided before a permit is granted. The director may impose other permit requirements to ensure the proper operation of airport facilities and proper reporting of revenue.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-190. Mobile food truck fee.

The aviation director shall set the rate for a mobile food truck fee in an assigned or unassigned area not to exceed four hundred fifty dollars ($450.00).
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15; Ord. No. 2018-04-12-0266, § 1(Att. 1), 4-12-18)

Sec. 3-191. Offsite airport catering fee.

Offsite airport catering fee: Eight (8) percent of gross revenue.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15)

Sec. 3-192. Non-concessionaire rental car business permit fee.

Non-concessionaire rental car business permit fee: Shall not be higher than the percentage fee for concessionaire rental car businesses operating at the San Antonio International Airport.
(Ord. No. 2015-04-09-0289, 1(Att. I), 4-9-15; Ord. No. 2018-04-12-0266, § 1(Att. 1), 4-12-18)

Sec. 3-193. Event rentals.

(a) Aviation director shall have the authority to rent existing conference space to tenants or outside organizations for meetings and special events in the airport system that do not have a previously-approved facility policy. A special event may include the use of space and table(s) and chairs in the baggage claim areas of either or both terminal buildings for an organization to use as an event check-in. Displays for such event check-ins shall require prior approval from the aviation director or designee before posting.

(b) The rates and fees associated with the rental shall be set by the city manager or designee, delegated to no lower a position than aviation director, and are not exceed a maximum rate of three hundred dollars ($300.00) for an eight-hour rental during the business hours of 7:45 a.m. until 4:30 p.m. Monday through Friday excluding city holidays.

(c) Aviation director may approve events for the conference space during non-business hours at a rate the city manager or designee, delegated to no lower a position than aviation director, shall set not to exceed six hundred dollars ($600.00).

(d) The entity renting the space will be responsible for set-up and clean-up of the event or may be charged with a cleanup fee of up to one hundred dollars ($100.00) depending upon the size of the facility and scope of the required clean-up.

(e) The entity renting the space shall pay the airport the offsite catering fee.
(Ord. No. 2018-04-12-0266, § 1(Att. 1), 4-12-18)

Secs. 3-194—3-219. Reserved.

ARTICLE III. HELIPORTS, HELISTOPS*

DIVISION 1. GENERALLY

Sec. 3-220. Definitions.

Approach-departure path shall mean a path for flight in a plane leading outward and upward from the end of the take-off and landing area, under which adequate areas should be located to permit a safe landing in the event of a malfunction.

***Editor's note—**Ord. No. 63553, adopted Aug. 28, 1986, amended Art. III in its entirety to read as herein set out in Div 1, §§ 3-220—3-223, and Div. 2, §§ 3-231—3-237. Prior to said amendment, former Art. III pertained to similar subject matter and was composed of Div. 1, §§ 3-220—3-223, and Div. 2, §§ 3-231—3-236, which derived from Code 1959, §§ 4-26, 4-28—4-35; and Ord. No. 32373, §§ 1—10, adopted June 11, 1964. Subsequently, Ord. No. 62553 was substantially amended by Ord. No. 84181, adopted May 30, 1996.

Essential service heliport or helistop shall mean a heliport or helistop providing helicopter services to specific elements of the community such as trauma centers, hospitals and law enforcement agencies.

Heliports shall comply with all federal, state and local rules and regulations, including the Uniform Building Code. *Heliport* shall mean that area used by helicopters or other steep gradient aircraft for take-offs and landings. Such area may include passenger, cargo, maintenance and overhaul facilities, plus fueling service, storage space, tie-down area, hangars and other accessory buildings and open spaces.

Heliport / helistop approach / departure surface shall mean an imaginary sloping trapezoidal plane beginning at the end of the HMA to splay outward and upward. The trapezoid's inner width is that of the HMA. Its outer width, at a horizontal distance of four thousand (4,000) feet is five hundred (500) feet. The slope of the trapezoid is 8:1 (horizontal to vertical). A heliport/helistop must have at least one, but may have several, approach/departure surfaces.

Heliport / helistop maneuver area (HMA) shall mean a cleared and graded area used for necessary in-ground-effect flight of helicopters accelerating for takeoff or decelerating for landing. A HMA is required for each intended approach or departure path.

Heliport / helistop primary surface shall mean a level plane at the elevation of the heliport/helistop which is identical in size and shape to the HMA.

Heliport / helistop transitional surface shall mean a surface sloping upward at a 2:1 (horizontal to vertical) beginning at the edge of the heliport/helistop primary surface and/or heliport/helistop approach/departure surface terminating at a fixed distance from the centerline of the heliport/helistop primary surface or heliport/helistop approach/departure surface.

Helistops shall comply with all federal, state, and local rules and regulations, including the Uniform Building Code. *Helistop* shall mean that area used by helicopters or other steep gradient aircraft far the purpose of takeoffs and landings, such area to be used for the pick-up or discharge of passengers and cargo, but not to include maintenance, overhaul, or fueling services and facilities.

Hover point shall mean a point within the HMA at which the helicopter hovers before accelerating into forward flight on departure and at which it comes to a hover after decelerating on arrival. An HMA may have one or more hover points depending upon its size and the direction of approach and/or departure paths thereto.

Noise sensitive uses shall mean residences, schools, hospitals, churches and other religious institutions, libraries, museums, concert halls, band shells, auditoriums, research facilities, and other land uses which require a quiet environment to function effectively.

Obstacle shall mean any fixed or mobile object which is located on an area intended for the surface movement of helicopters, or extends above a defined surface intended to protect helicopters in flight, or interferes with the sitting or operation of navigational aids, or affects the establishment of instrument procedures.

Peripheral areas shall mean an obstruction free area encompassing all sides of the actual touchdown and operation areas.

Public service heliport or helistop shall mean a heliport or helistop, that provides helicopter services to the public and is open to anyone who can operate within the constraints of the facility. Public service heliports or helistops do not require users to obtain prior approval of the heliport or helistop owner or operator for permission to land. Public ownership is not a prerequisite for the public service designation.

Restricted service heliport or helistop shall mean a heliport or helistop, not generally open to the public without prior approval of the heliport or helistop owner or operator, that provides helicopter services to a particular user or group of users including but not limited to, corporate headquarters, industrial facilities, business or commercial activities, and hotels.

Taxiways and taxi routes shall mean areas over which helicopters may ground taxi or hover taxi between hover points and parking positions on the apron or ramp. Paved taxiways, if provided, are twenty (20) feet wide centered in a taxi route. Taxi routes, including hover taxi routes, are 1.67 times the rotor diameter of the largest helicopter expected to use the heliport.
(Ord. No. 63553, 8-28-86; Ord. No. 84181, 5-30-96)

Sec. 3-221. Classification.

Helicopters are classified according to maximum gross weight as follows:

(1) Class I, up to six thousand (6,000) pounds;

(2) Class II, six thousand (6,000) to twelve thousand five hundred (12,500) pounds;

(3) Class III, greater than twelve thousand five hundred pounds (12,500)

(Ord. No. 63553, 8-28-86; Ord. No. 84181, 5-30-96)

Sec. 3-222. Establishment of facilities; application; FAA evaluation; building permit, certificate of occupancy.

(a) Application for establishing a heliport or helistop will be made to the director of building inspections.

(b) The application shall contain:

(1) Heliport or helistop location map depicting the physical location of the facility.

(2) Heliport or helistop layout sketch plan, properly dimensioned, depicting the physical facilities proposed including the property boundaries of the facility (if a ground level facility), the hover point, HMA, helicopter parking area, surface access, automobile parking, safety fencing, and adjacent land uses.

(3) Heliport or helistop approach and clear zone layout plan prepared in accordance with Federal Aviation Regulation (FAR) Part 77, "Objects Affecting Navigable Airspace," depicting approach and departure paths, clear zones, and obstructions in the vicinity of the facility.

(4) FAA Form 7480-1, "Notice of Landing Area Proposal."

(5) A written statement describing the type of facilities proposed (public service, essential service, restricted service), the anticipated number of daily helicopter operations, hours of operation, the class of helicopters anticipated to use the facility, expected noise levels at the facility property line resulting from helicopter operations, and the types and quantities of safety and fire fighting equipment to be installed or maintained at the facility.

(6) Other plans, data, and information as may be required to perform an adequate

evaluation of the proposed facility, to include input from the San Antonio Police Department.

(c) Upon receipt of the application, the director of building inspections shall forward copies of all materials submitted to the Federal Aviation Administration and the aviation director.

The FAA shall evaluate the impact of the proposed heliport or helistop on the safe and efficient use of the nation's navigable airspace and the safety of persons and property on the ground, and will notify the director of building inspections of its determination, i.e., no objections to the proposal, no objection provided certain conditions are met, or objectionable with reason therefore.

The aviation director shall evaluate the facility plans submitted and shall notify the director of building inspections as to whether or not the plans meet the technical specifications of the City of San Antonio.

After completion of the FAA and aviation director evaluation, a building permit must be obtained from the building inspections department for the construction of the facility. When all requirements have been met, the building inspections department will issue a certificate of occupancy that will enable flight operations to commence.

(d) When a heliport or helistop does not meet the standards set forth by this article, upon routine inspection and with coordination of the aviation director, fire chief, and building inspections, the director of building inspections may declare the facility unsafe and revoke the certificate of occupancy.
(Ord. No. 63553, 8-28-86; Ord. No. 84181, 5-30-96)

Sec. 3-223. Operational requirements.

(a) The city council may, after public hearing and proper notice to all parties affected and after recommendation by the city zoning commission containing such requirements and specifications as are necessary to protect adjoining property, authorize the location, construction, maintenance, and use of heliports and helistops by approving a specific use authorization in accordance with chapter 35, article III of the City Code, but no specific use authorization shall be granted unless it specifically finds that:

(1) The use being granted by the specific use authorization will be in harmony with the spirit and purpose of this ordinance.

(2) The public welfare and convenience will be substantially served.

(3) The neighboring property will not be substantially injured by such proposed use.

(4) The use being granted by the specific use authorization will not alter the essential character of the district and location of the property for which the use is sought.

(b) A specific use authorization for a heliport or a helistop shall only be permitted in those districts as authorized in chapter 35, table 311-2.

(c) No heliport or helistop shall be located within five hundred (500) feet of any existing residential use or other noise sensitive uses or any property zoned residential. In granting a specific use authorization for a heliport or helistop, city council may authorize the distance requirement to be reduced when the location will serve an essential service heliport or helistop, but in no circumstance shall the distance be within two hundred fifty (250) feet of any existing residential use or other noise sensitive uses or any property zoned residential.

(d) In approving a specific use authorization for a heliport or helistop, the city council may impose such requirements and safeguards as it may deem necessary to protect the public interest and welfare.

(e) The approval of a specific use authorization for a heliport or helistop shall not waive the requirements of chapter 3, article III.

(f) No helicopter or steep gradient aircraft, except air ambulance helicopters and public safety helicopters, shall land any place within the city limits not designated as a heliport or helistop without first securing from the aviation director a permit for the landing and operation of a helicopter to and from a temporary landing site. The permit will approve, in the case of casual and

infrequent landings or special flights, landings where the area is prepared in a manner to prevent unauthorized access to the landing area by persons unconnected with the operations. Proper dust control must be provided when the area is near a residential development. Prior written permission by the owner of the property is also a necessity before using the land for such purposes. The aviation director may issue a permit for the landing and takeoff of helicopters at temporary locations for up to ten (10) helicopter operations per day or as promulgated by Federal Aviation Regulation Part 157, provided that no permit issued by the aviation director shall exceed a period of ten (10) days. It shall be the responsibility of the pilot/operator/user to adhere to all FAA, state or city rules, regulations, codes and safety criteria while operating under this permit. The San Antonio Police Department will be notified of all infrequent landings or special flights. In the event more than ten (10) operations per day are required, all provisions pertaining to the building of a heliport or helistop as stated in this article must be followed.

Absent exigent circumstances, a written request for permission for a helicopter to land or takeoff from a temporary landing site should be submitted to the aviation director a minimum of seventy-two (72) hours prior to the time of intended operation. The request must contain the following specific information:

(1) Exact location of the proposed landing site with map.

(2) Date or dates and hours of operation.

(3) Type of helicopter or helicopters to be used; aircraft registration number; company name.

(4) Reason for request.

(5) Affirmation that all safety precautions required by the FAA and City of San Antonio will be enforced at the landing site.

(6) Affirmation that the land owner has given written permission to utilize the property for such activities.

(7) Confirmation, if required by Federal Aviation Regulations, that notification to the Federal Aviation Administration (Airport Traffic Control Tower and Flight Standards District Office) was accomplished.

(8) Name of person and job title making the request.

(g) No unauthorized persons will be allowed within the peripheral area during time of take-off and landing.

(h) All pilots of helicopters making use of the heliports and helistops within the city limits must comply with FAA regulations.
(Ord. No. 63553, 8-28-86; Ord. No. 84181, 5-30-96; Ord. No. 2010-10-21-0914, § 2, 10-21-10)

Secs. 3-224—3-230. Reserved

DIVISION 2. LANDING FACILITIES

Sec. 3-231. Landing facilities—Design criteria.

(a) *[General criteria.]* The size requirements and overall design criteria of heliport and helistop facilities will vary dependent upon the proposed use and the size of the largest helicopter anticipated to use the facility. Therefore, the design criteria set forth in Federal Aviation Administration Advisory Circular No. 150/5390-2A "Heliport Design," or subsequent revisions to this advisory circular shall be utilized when preparing the plans and specifications for a proposed heliport or helistop.

(b) *Special design criteria elevated facilities (roof-top)*

(1) Where facilities are built on elevated structures the strength of the contact surface should be great enough to withstand at least three-quarters gross weight of the helicopter on one (1) square foot of that surface. The structural requirement above shall be certified by a licensed engineer prior to issuance of certificate of occupancy. All structures shall meet the requirements of the Uniform Building Code.

(2) Two (2) or more exits or fire escapes, or both, as specified by the city's Building Code, as amended, shall be provided from

any elevated facilities (roof-top). They shall be located as required by the Uniform Building Code.

(Ord. No. 63553, 8-28-86; Ord. No. 84181, 5-30-96)

Sec. 3-232. Fencing of landing facilities.

(a) *Ground level.* There shall be a fence of nonclimable material surrounding the landing area with a minimum height of thirty-six (36) inches to prevent entrance of unauthorized persons. For every twelve-inch increase in the height of the fence above the minimum thirty-six (36) inches, there shall be a corresponding ten-foot increase in each direction of the landing area. Appropriate warning signs shall be posted in addition to the above fencing requirements.

(b) *Elevated.* Rooftop facilities shall be provided with fencing, constructed of nonclimable material, of at least thirty-six (36) inches in height which shall separate all public areas including the public entrance to the roof from the landing area. Separation of the public areas from the landing area on rooftop facilities elevated three (3) feet or more above roof level may be provided by peripheral fencing constructed of a nonclimable material and supported by posts at least three (3) feet in length radiating from the periphery of the elevated platform. The posts should be set five (5) feet apart at an angle of sixty (60) degrees outward from a line perpendicular to the surface of the elevated platform. A guardrail or a fence of thirty-six (36) inches constructed of nonclimable material shall be provided at the edge of the rooftop if no protecting parapet exists.

(c) Signs separating public and landing areas. Fencing separating public area from landing area shall bear signs reading:

"Danger — Heliport Keep Out" or "Danger — Helistop — Keep Out."

(Ord. No. 63553, 8-28-86; Ord. No. 84181, 5-30-96)

Sec. 3-233. Approach-departure paths.

(a) *Visual approach heliport or helistop.* The approach departure path surfaces should be in line with prevailing winds. In accordance with Federal Aviation Regulations (FAR) Part 77, they shall be clear of obstructions at a slope of eight-to-one (8:1) projecting outward and upward from the ends of each heliport/helistop maneuver area (HMA) for a horizontal distance of four thousand (4,000) feet. The widths of the surfaces shall be the width of the HMA splaying outward at a rate of twenty (20) units along the flight path to one (1) unit perpendicular to the flight path. In the event that obstructions necessitate curved paths, such paths should clear the obstruction by at least five hundred (500) feet horizontal distance.

(b) *Precision approach heliport or helistop.* The approach departure path surfaces should be in line with prevailing winds. They shall be clear of obstructions at a slope of twenty-to-one (20:1) projecting outward and upward from the ends of each heliport/helistop HMA for a horizontal distance of one (1) nautical mile (6,076′). The widths of the surfaces shall be the width of the HMA splaying outward at a rate of twenty (20) units along the flight path to one (1) unit perpendicular to the flight path.

(Ord. No. 63553, 8-28-86; Ord. No. 84181, 5-30-96)

Sec. 3-234. Markings for public and private facilities.

(a) All public facilities shall bear the standard FAA day marker.

(b) Private facilities may be unmarked, marked with the FAA symbol or marked with a diameter spot or circle of three (3) feet. If night operations are to be conducted, such facilities must be lighted in accordance with approved FAA practice. Markings with reflective paint or tape are acceptable where no immediate adjacent obstructions exist.

(c) Each rooftop facility shall have painted thereon, in figures not less than two (2) feet in height, the maximum gross weight of the helicopter which the roof is stressed to support.

Sec. 3-235. Equipment.

(a) Each heliport and helistop shall be provided with at least two (2) portable fire extinguishers located remotely from each other providing

the following total minimum amount of dry chemical based on the classifications set forth in this article:

(1) Class I, sixty (60) pounds;

(2) Class II, one hundred (100) pounds;

(3) Class III, one hundred fifty (150) pounds.

(b) Elevated heliports and elevated helistops shall, in addition to the dry chemical type fire extinguishers, be provided with a wet standpipe system, equipped with two (2) 2½-inch national standard thread fire hose connections, with lengths of approved 2½-inch fire hose capable of reaching the outer edges of the roof area on which the facility is located. The riser piping system provided in the wet standpipe system shall be 2½-inch or larger piping, and equipped with a 2½-inch national standard thread Siamese fire department connection at street level. The fire hoses shall also be equipped with approved fog-spray type nozzles which shall produce variable dispersing patterns. Either a nonpay telephone shall be provided, or a fire alarm box installed or some other approved method of communication shall be set up to provide a method of fire alarm.

(c) Lighting and/or high visibility reflective markings shall be provided for any restrictive operations during hours of darkness or low visibility.

(d) Rooftop helistops shall have some provision for runoff removal of gasoline and similar type spillage. Such facilities shall not drain into the sewer system.
(Ord. No. 63553, 8-28-86; Ord. No. 84181, 5-30-96)

Secs. 3-236. Reserved.

Editor's note—Ord. No. 84181, adopted May 30, 1996, deleted former § 3-236, relative to noise standards, which derived from Ord. No. 63553 adopted Aug. 28, 1986.

Sec. 3-237. Violations and penalties.

It shall be unlawful for any person to intentionally violate any of the provisions of this article, and any person so doing shall be guilty of a Class C misdemeanor and, upon conviction, shall be punished as provided in section 1-5.
(Ord. No. 63553, 8-28-86; Ord. No. 84181, 5-30-96)

Secs. 3-230—3-250. Reserved.

ARTICLE IV. RESERVED*

*__Editor's note—__Ord. No. 65513, § 2(a), adopted Aug. 13, 1987, deleted former Art. IV, Divs. 1—3, relative to airport zoning in conjunction with the adoption of the Unified Development Code. The provisions of former Art. IV derived from Code 1959, §§ 4-6—4-21, 4-201—4-212; Ord. No. 14628, § 1, adopted April 12, 1951; Ord. No. 18420, § 1, adopted Oct. 9, 1952; Ord. No. 37324, §§ 1—3, enacted March 6, 1969; Ord. No. 54136, enacted Aug. 6, 1981; and Ord. No. 55085, §§ 1, 2, adopted March 25, 1983. Provisions relative to military airport overlay zones and joint airport zoning and airport hazard regulations are currently set out in Ch. 35.

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Chapter 4

ALCOHOLIC BEVERAGES*

Art. I.	**In General, §§ 4-1—4-20**
Art. II.	**Off-Premises Consumption Generally, §§ 4-21—4-45**
	Div. 1. Generally, §§ 4-21—4-30
	Div. 2. Fee Receipts, §§ 4-31—4-45
Art. III.	**Mixed Beverages, §§ 4-46—4-60**
Art. IV.	**Beer and Wine On-Premises, §§ 4-61—4-84**
	Div. 1. Generally, §§ 4-61—4-75
	Div. 2. City Alcoholic Beverage Fee Receipts, §§ 4-76—4-84

*__Cross references—__Drugs, alcohol, and intoxication at airports, § 3-35; discrimination in places of public accommodation, § 9-16 et seq.

__State law reference—__Similar definition, V.T.C.A., Alcoholic Beverage Code, § 1.04.

ARTICLE I. IN GENERAL

Sec. 4-1. Definitions in this chapter.

In this chapter:

Alcoholic beverage means alcohol and any beverage containing more than one-half of one (1) percent of alcohol by volume which is capable of use for beverage purposes, either alone or when diluted.

Central business district means, as related to a homeless shelter or substance abuse center, a compact and contiguous geographical area in the city used for commercial purposes that has historically been the primary location in the city where business has been transacted.

Haven for Hope campus means the homeless shelter property, the boundaries of which are set out on the map attached to Ordinance No. 2010-04-15-0328 as attachment I.

Homeless shelter means a supervised publicly or privately operated shelter or other facility that is designed to provide temporary living accommodations to individuals who lack a fixed regular and adequate residence.

Hospital means an institution providing health services, primarily for in-patients, and medical or surgical care of the sick or injured, including as an integral part of the institution, such related facilities as laboratories, out-patient departments, training facilities, central service facilities and staff offices.

School means any public or private institution of learning (kindergarten, elementary school, middle school, junior high school, high school, college or university), not operated for profit, with an accreditation recognized by the commissioner of education.

Substance abuse treatment center means a public or private hospital or facility, licensed or operated by the state for the treatment of chemical dependency or a controlled substance or alcohol.
(Ord. No. 19660, § 2, 10-8-53; Code 1959, §§ 5-2, 5-5; Ord. No. 68849, § 1, 2-16-89; Ord. No. 2010-04-15-0328, § 1, 4-15-10)

Sec. 4-2. Alcoholic beverage code adopted.

There is hereby adopted the V.T.C.A. Alcoholic Beverage Code, which code is made a part of this article by reference for all purposes as though fully set out herein.
(Code 1959, § 5-6; Ord. No. 68849, § 1, 2-16-89)

Sec. 4-3. No vested right conferred; conflict with law not authorized.

The sale of alcoholic beverages is a privilege and this chapter is not intended to give any person a vested right to engage in such business nor is such chapter intended to be in conflict in any manner with the provisions of the Texas Alcoholic Beverage Code.
(Ord. No. 19660, § 3, 10-8-53; Code 1959, § 5-3; Ord. No. 68849, § 1, 2-16-89)

Sec. 4-4. Consumption of alcoholic beverages in the central business district.

(a) In this section, the following words and terms shall have the meanings ascribed in this subsection:

(1) *Central business district* means the area depicted as the central business district of the city on the map attached to the ordinance from which this section derives, which is to be submitted for approval to the Texas Alcoholic Beverage Commission, and upon said approval, true copies of which map, resolution and order shall be placed on file in the office of the city clerk and which describe the area as follows:

Beginning at South San Marcos Street at its intersection with West Commerce Street, south to its intersection with Matamoros Street, east to its intersection with the Union Pacific Railway, south to South Alamo Street, north to its intersection with East Durango Boulevard, east to South Cherry Street, north to its intersection with East Commerce Street, east to its intersection with North Mesquite Street, north to its intersection with Burleson Street, west to its intersection with Austin Street, north to its intersec-

tion with Casa Blanca Street, west to Newell Avenue, southwest to East Elmira Street, west to the intersection of West Elmira and the westbound service road of Interstate Highway 10, underneath Interstate Highway 10, then westbound from the intersection of the Interstate Highway 10 eastbound service road and Perez Street to its intersection with North Frio Street, south to its intersection with West Martin Street, west to its intersection with North San Marcos Street, south to its intersection with West Commerce Street.

(2) *Licensed premises* means the premises of any place for which a Texas Alcoholic Beverage Commission permit or license has been issued that allows on-premises consumption of alcoholic beverages.

(3) *Open container* means an alcoholic beverage container that is no longer sealed.

(b) A person commits an offense if the person:

(1) Is within the central business district, as defined by subsection (a)(1), and

(2) Possesses an open container or engages in the public consumption of any alcoholic beverage.

(c) It is a defense to prosecution under this section that the alleged offense took place in a motor vehicle, in a building not owned or controlled by the city, in a residential structure or on a licensed premise that is situated in the central business district.

(d) Except as set out herein, this section does not prohibit or otherwise control the manufacture, sale, distribution, transportation or possession of alcoholic beverages.

(e) The city manager is authorized to erect and post signs in and around the central business district area forewarning persons that possession of an open container or the public consumption of alcoholic beverages in the central business district is prohibited.

(f) An offense under this section may be subject to prosecution for a class C misdemeanor and a fine not to exceed five hundred dollars ($500.00). (Ord. No. 2010-04-15-0327, §§ 1, 2, 4-15-10)

Editor's note—Ord. No. 2010-04-15-0327, §§ 1, 2, adopted April 15, 2010, repealed and reenacted section 4-4 in its entirety to read as herein set out. Formerly, section 4-4 pertained to consumption on public streets or public property prohibited, and derived from Ord. No. 59119, §§ 1—6, adopted August 2, 1984, and Ord. No. 68849, § 1, adopted February 16, 1989.

Secs. 4-4.1, 4-4.2. Reserved.

Editor's note—Ord. No. 2010-04-15-0327, § 1, adopted April 15, 2010, repealed the former sections 4-4.1 and 4-4.2 in their entirety, which pertained to the possession, consumption or distribution upon Plaza Guadalupe restricted, and consumption in the Cattleman Square area, respectively, and derived from Ord. No. 61103, §§ 1, 2, adopted July 25, 1985; Ord. No. 68849, § 1, adopted February 16, 1989, and Ord. No. 83942, §§ 1—8, adopted April 11, 1996.

Sec. 4-4.3 Consumption of alcoholic beverages on or near public streets in the King William area of the central business district.

(a) A person commits an offense if the person:

(1) Is on a public street or on public property within twelve (12) feet of a public street in the King William area of the central business district, as defined by subsection (b), and

(2) Possesses a container for an alcoholic beverage that is not sealed (an "open container") or consumes an alcoholic beverage.

(b) For purposes of this section, the "King William area" of the central business district is defined as follows: beginning at the intersection of East Durango Boulevard and the east bank of the San Antonio River; thence, south and east following the east bank of the San Antonio River to its intersection with the Southern Pacific Railway railroad right-of-way; thence, east along the Southern Pacific Railway railroad right-of-way to its intersection with South Presa Street; thence, north on South Presa Street to its intersection with East Durango Boulevard; thence, west along East Durango Boulevard to its intersection with the east bank of the San Antonio River, the place of beginning; save and except any of the land included within the boundaries of the King William Park.

(c) This section does not prohibit or otherwise control the manufacture, sale, distribution, transportation or possession of alcoholic beverages.

(d) The city manager is authorized to erect and post signs in and around the King William area forewarning persons that possession of an open container or the consumption of alcoholic beverages on a public street or on public property within twelve (12) feet of a public street is prohibited.

(e) An offense under this section is a Class C misdemeanor.
(Ord. No. 99381, § 1, 6-25-04)

Sec. 4-4.4. Public possession of an open container or consumption of alcoholic beverages within one thousand (1,000) feet of the Haven for Hope campus.

(a) A person commits an offense if the person:

(1) Is on a public street, public alley, or public sidewalk within one thousand (1,000) feet of the property line of the Haven for Hope campus, and

(2) Possesses a container for an alcoholic beverage that is no longer sealed, ("open container") or consumes an alcoholic beverage.

(b) Each offense under this section may be subject to prosecution for a class C misdemeanor and a fine not to exceed five hundred dollars ($500.00).
(Ord. No. 2010-04-15-0328, § 2, 4-15-10)

Sec. 4-5. Waiver of consumption prohibitions on public property.

(a) Except for such city properties where deed restrictions prohibit alcohol, the provisions of any ordinance making it illegal to have alcoholic beverages on public property may be waived by the city manager or his designated representative, upon petition from any group, and the city manager or his designated representative may issue a special waiver to allow alcoholic beverages if, after review, he determines that the following conditions and circumstances exist:

(1) The alcohol use will be in connection with a planned and scheduled event anticipated to involve fifty (50) or more people;

(2) Appropriate security is provided by the permittee to ensure that laws governing legal age for drinking and public intoxication will not be violated and that public property at the site of the event is safeguarded;

(3) A deposit in an amount established by rules and regulations for the applicable public property is posted.

(b) Any such waiver which has been issued must be available at the site of the event and must be produced for inspection upon request by any law enforcement official.

(c) The city manager or his designated representative shall develop rules and regulations for conducting of such event within the framework of the policy stated in this section and shall ensure that waiver applicants are fully cognizant of same at the time a permit is issued.

(d) Applicants who have been denied a waiver by the city manager or his designated representative may appeal to city council providing such appeal is made no later than ten (10) days preceding the date of the scheduled event.
(Ord. No. 59172, §§ 1—4, 8-9-84; Ord. No. 68849, § 1, 2-16-89)

Sec. 4-6. Distances from church, school or hospital.

(a) *Exceptions to minimum distance requirement.* No alcoholic beverages shall be sold for consumption on or off the premises where sold, when such premises are located within three hundred (300) feet of any church, school or hospital, the measurements to be made in the manner prescribed by V.T.C.A., Alcoholic Beverage Code, 109.33(b), provided this section shall not apply:

(1) Where the premises for which application is made was being used for the sale of alcoholic beverages for off premises consumption at the time the school, church or hospital was established and such use has been continuous to the date of application; or

(2) Where the premises for which application is made was being used for the sale of beer or wine for on-premises consumption at the time the school, church or hospital was established and such use has been continuous to the date of application; and

(3) Where the premises is a church or hospital and the applicant for a beer or wine license is the church or hospital on said premises, or where the applicant has the approval of the church or hospital in writing.

(b) *Method of measurement.* As to any dealer who held a license or permit before September 1, 1983, in a location where a regulation under this section was in effect on that date, for purposes of subsection (a), the measurement of the distance between the place of business or the dealer and the school shall be along the property lines or the street fronts and from front door to front door, and in a direct line across intersections. This subsection applies only as long as the place of business is continuously in operation from that date, whether or not under the same license or permit.

(c) *Variance.* City council may authorize the sale of alcoholic beverages at a location within three hundred (300) feet of a public school, as that distance is determined by the manner of measurement prescribed by V.T.C.A. Alcoholic Beverage Code § 109.33(b), and in effect at the time that such authorization is sought provided that city council makes findings as follows:

(1) The sale of alcoholic beverages had been permitted within the last two (2) years at the location in question;

(2) The discontinuance of the sale of alcoholic beverages was not a result of a violation of law;

(3) A variance is necessary because the manner of measurement, as currently prescribed in V.T.C.A. § 109.33(b), has changed and as a result thereof, the premises in question has been determined to be within three hundred feet (300) feet of a public school; and

(4) The proposed sale of alcoholic beverages would be for on premise consumption and constitute no more than thirty (30) percent of the establishment's annual gross revenues.

(d) *Variance procedure.*

(1) The applicant shall submit to the city clerk a completed variance request form, certified documentation from the Texas Alcoholic Beverage Commission (establishing that an alcoholic beverage license had been issued for the location where the variance is sought and that the date of expiration of the license was less than two

years before the date of the variance request), and the variance application fee of one hundred dollars ($100.00);

(2) The city clerk shall set the variance for hearing on the first available city council agenda after the passage of thirty (30) days from the date the request is received;

(3) The city clerk shall forward copies of the variance application and supporting documentation to the director of building inspections who shall make a recommendation to city council regarding the variance request;

(4) Not later than ten (10) days prior to the date of the hearing, the director of building inspections may send written notice of the variance request to the affected public school;

(5) If at the conclusion of the public hearing the city council makes affirmative findings, as provided in subsection (c), a variance may be granted; provided that city council may, with the consent of the applicant, place additional conditions on the variance, where such conditions are in the public interest; and

(6) If the council approves the variance request, the applicant shall on an annual basis submit to the department of building inspections the necessary documentation to verify that no more than thirty (30) percent of the establishment's annual gross revenues are generated by the sale of alcoholic beverages.

(e) *Variance violation.*

(1) It shall be a violation of the variance granted by city council to sell alcoholic beverages for off premise consumption; for on premise consumption of alcoholic beverages that exceed more than thirty (30) percent of the annual gross revenues of the establishment, or to violate any other condition imposed by city council.

(2) The director of building inspections may request the city attorney to seek any and all remedies available at law and or equity to assure the conditions imposed on the granting of the variance are enforced, including the discontinuance of the sale of alcoholic beverages.

(Code 1950, §§ 30-7, 30-19; Ord. No. 23434, § 1 8-16-56; Ord. No. 24181, § 1, 1-3-57; Ord. No. 25667, § 1, 10-17-57; Ord. No. 26485, § 1, 6-12-58; Code 1959, §§ 5-11, 5-23; Ord. No. 33167, § 1, 3-25-65; Ord. No. 44246, § 1, 8-22-74; Ord. No. 68849, § 1, 2-16-89; Ord. No. 88724, § 1, 10-22-98)

State law reference—Authority for above restrictions, V.T.C.A., Alcoholic Beverage Code, § 109.33.

Sec. 4-7. Certificate authorizing continued sales.

The director of building inspections is hereby directed to issue proper certificates to authorize the continued sale of alcoholic beverages on those premises which were lawfully devoted to such use prior to the zoning ordinance affecting such location or the annexation of the affected location.
(Ord. No. 19660, § 4, 10-8-53; Code 1959, § 5-4; Ord. No. 52775, § 2, 9-11-80; Ord. No. 68849, § 1, 2-16-89)

Sec. 4-8. Collection of fees, receipts.

It shall be the duty of the City of San Antonio Tax Assessor and Collector to process payments of the alcoholic beverage fees specified in accordance with this article and to issue receipts therefor, which shall be valid concurrently with the permit or license issued by the state.
(Code 1950, § 30-3; Code 1959, § 5-9; Ord. No. 68849, § 1, 2-16-89)

Sec. 4-9. Enforcement duty.

Violation of any provision of this chapter of the City Code shall be prosecuted in municipal court by appropriate city official designated by the city manager.
(Ord. No. 68849, § 1, 2-16-89)

Secs. 4-10—4-20. Reserved.

ARTICLE II. OFF-PREMISES CONSUMPTION GENERALLY

DIVISION 1. GENERALLY

Secs. 4-21—4-30. Reserved.

DIVISION 2. FEE RECEIPTS

Sec. 4-31. Definitions.

The definitions contained in V.T.C.A., Alcoholic Beverage Code, Sections 1.04, 1.49 and 101.44 are hereby adopted as the definitions of terms used in this article. The term "beer establishment" as used in this article shall mean any place where beer is sold for on-premises consumption or sold for off-premises consumption.
(Code 1950, §§ 30-1, 30-11; Ord. No. 23434, § 1, 8-16-56; Code 1959, § 5-13; Ord. No. 68849, § 1, 2-16-89)

Sec. 4-32. City fees levy.

(a) The city does hereby levy a city alcoholic beverage fee equal to one-half (½) of the state fee, as provided by V.T.C.A. Alcoholic Beverage Code, Section 61.36 against every permittee who is domiciled within the corporate limits of the city and who holds a permit from the state alcoholic beverage commission for the purchase, transportation, importation, sale or manufacture of alcoholic beverages or other permits in regard thereto; except as to agent's industrial carrier's, private carrier's, local cartage and storage permits, and as to such wine and beer retailer's permits as shall be issued to operators of dining cars, buffet or club cars and class "B" winery permits and temporary licenses.

(b) Any permittee or licensee who engages in the sale of any alcoholic beverage without having first paid the fee levied by the city shall be guilty of a class "C" misdemeanor, and punishable by a fine of not more than five hundred dollars ($500.00).
(Code 1950, § 30-2; Code 1959, § 5-6; Ord. No. 57530, § 1, 9-1-83; Ord. No. 68849, § 1, 2-16-89)

Sec. 4-33. Beverage fee due date; fees for portion of year; separate fee for each outlet.

All fees levied by this article, except wine and beer retailer's permits issued to railway dining cars, buffet or club cars, shall be due and payable in advance for one (1) year from the date of the issuance of the permit or license issued by the state alcoholic beverage commission, unless such fee is collected for only a portion of the year. In such event, the fee required shall cover the period of time from the date of such permit to midnight of the last day of August succeeding and only the proportionate part of the fee levied for such permit shall be collected. The fractional part of any month remaining shall be counted as one (1) month in calculating the fee which shall be due. A separate fee shall be paid for each sales location in this city.
(Code 1950, § 30-5; Code 1959, § 5-7; Ord. No. 68849, § 1, 2-16-89)

Sec. 4-34. Refund of fees.

No refund of the fee shall be made for any reason, except when the permittee is prevented from continuing in business by reason of the result of a local option election, or a rejection of an application for a permit by the state alcoholic beverage commission or its administrator.
(Code 1950, § 30-6; Code 1959, § 5-8; Ord. No. 68849, § 1, 2-16-89)

Sec. 4-35. Display of city alcoholic beverage fee receipt.

The City of San Antonio alcoholic beverage fee receipt shall be displayed in a conspicuous place at all times on the licensed premises. Failure to so display said receipt shall constitute of Class "C" misdemeanor punishable by a fine of not more than five hundred dollars ($500.00).
(Code 1950, § 30-4; Code 1959, § 5-10; Ord. No. 68849, § 1, 2-16-89)

Secs. 4-36—4-45. Reserved.

ARTICLE III. MIXED BEVERAGES

Sec. 4-46. Permit fees.

(a) Annual fees in the amount of one-half (½) of the state annual fees are hereby levied on the

holders of mixed beverage permits, mixed beverage late hours permits, caterer's permits, mixed beverage cartage permits, mini-bar permits and limousine alcoholic beverage permit under the Texas Alcoholic Beverage Code. The fees will be collected for the following periods.

(1) A mixed beverage permit fee shall be collected for each year such permit is in effect after the third year of the existence of the original state permit.

(2) A mixed beverage late hours permit and caterer's permit fee shall be collected for each year such a permit is in effect after the third year of the existence of the original mixed beverage state permit.

(3) A fee for mini-bar permits, mixed beverage cartage permits, and limousine alcoholic beverage permits are due beginning with the first year the permit is in effect.

(b) Any permittee or licensee who engages in the sale of any alcoholic beverage without having first paid the fees levied by the city shall be guilty of a class "C" misdemeanor, and punishable by a fine of not more than five hundred dollars ($500.00).
(Code 1959, § 5-4.1; Ord. No. 43558, §§ 1, 2, 3-21-74; Ord. No. 57530, § 1, 9-1-83; Ord. No. 68849, § 1, 2-16-89; Ord. No. 76467, § 1, 9-10-92)

Sec. 4-47. Display of fee receipts; penalty for failure to display.

The City of San Antonio fee receipt shall be displayed in a conspicuous place at all times on the licensed premises. Failure of the state permittee to so display said city receipt shall constitute a class "C" misdemeanor, punishable by a fine of not more than five hundred dollars ($500.00).
(Ord. No. 68849, § 1, 2-16-89)

Secs. 4-48—4-60. Reserved.

ARTICLE IV. BEER AND WINE ON-PREMISES

DIVISION 1. GENERALLY

Sec. 4-61. Authority.

This article is passed pursuant to and is referable to V.T.C.A. Alcoholic Beverage Code, Sections 1.01 through 73.11, and is an exercise of the power granted to incorporated cities by V.T.C.A., Alcoholic Beverage Code, Section 109.32 to distinguish between retailers selling beer for consumption on the premises where sold and those retailers, manufacturers or distributors selling beer not for consumption on the premises where sold, and to provide for separate and distinct regulations.
(Code 1950, § 30-10; Ord. No. 23434, § 1, 8-16-56; Code 1959, § 5-12; Ord. No. 68849, § 1, 2-16-89)

Sec. 4-62. Building requirements.

No person shall sell beer or wine at or on any premises within the city for consumption on the premises where sold unless the building housing such business conforms to the following:

(1) Complies with the building code of the city adopted by section 6-36;

(2) Complies with the fire prevention code adopted by section 11-31;

(3) Complies with the electrical code of the city adopted by section 10-91;

(4) Complies with the plumbing code of the city as contained in Chapter 24;

(5) Complies with the mechanical code of the city adopted by section 6-66;

(6) Is connected to the city sanitary sewer systems, if there is a public sanitary sewer line within two hundred (200) feet;

(7) Has adequate flush-toilet facilities and lavatory facilities with hot and cold running water from a mixing type faucet, with separate facilities for men and women, in the building where beer is consumed. Outside toilet or lavatory facilities will not constitute compliance with this section; and

(8) Has sufficient lighting to provide illumination equal to at least 0.25 footcandle in all areas of the premises where beer is consumed. Food service sanitation regulations concerning minimum lighting equipment must be obeyed, also.

(Code 1950, § 30-20; Ord. No. 23434, § 1, 8-16-56; Ord. No. 24164, § 1, 12-27-56; Code 1959, § 5-24; Ord. No. 68849, § 1, 2-16-89)

Sec. 4-63. Special regulations for persons serving beer.

The following regulations shall govern the operation of a beer establishment:

(1) No person, other than the permittee or licensee, shall serve food, beer or other drink to any customer or patron unless the person so serving is legally employed by the permittee or licensee of the beer establishment.

(2) No employee serving beer to any patron or customer shall receive as compensation, any part of the price paid by the patron or customer for such beer, nor shall the employee compensation be dependent on the amount of beer sold or served.

(3) No person serving beer shall collect from any customer or patron, as the price of beer, more than the price paid to the bartender or cashier.

(Code 1950, § 30-21; Ord. No. 23434, § 1, 8-16-56; Ord. No. 24191, § 1, 1-3-57; Code 1959, § 5-25; Ord. No. 68849, § 1, 2-16-89)

Sec. 4-64. Violations by persons serving beer.

Any licensee or permittee who violates any provisions of this article, or who allows on premises covered by his license or permit, any person to do the things prohibited by section 4-63 shall be guilty of a misdemeanor. Any person who does any of the things prohibited by section 4-63 shall be guilty of a misdemeanor. Any person who does any of the things prohibited by section 4-63 shall be guilty of a class "C" misdemeanor and punishable by a fine of not more than five hundred dollars ($500.00).

(Code 1950, Ch. 30, Art. 2; Ord. No. 23434, § 1, 8-16-56; Code 1959, § 5-26; Ord. No. 68849, § 1, 2-16-89)

Secs. 4-65—4-75. Reserved.

DIVISION 2. CITY ALCOHOLIC BEVERAGE FEE RECEIPTS*

Sec. 4-76. Required.

It shall be unlawful for any person to manufacture or to brew any beer or wine for the purpose of sale, or to sell or distribute beer or wine within the city, without having first paid the fee as required by this article.

(Code 1950, § 30-12; Ord. No. 23434, § 1, 8-16-56; Code 1959, § 5-14; Ord. No. 68849, § 1, 2-16-89)

Sec. 4-77. Fee.

By virtue of the authority granted by the Texas Liquor Control Act, the city does hereby levy a fee equal to one-half (½) of the state fee imposed by V.T.C.A. Alcoholic Beverage Code, Title 3, upon all persons carrying on the activities described in such title within the city.

(Code 1950, § 30-13; Ord. No. 23434, § 1, 8-16-56; Code 1959, § 5-15; Ord. No. 57530, § 1, 9-1-83; Ord. No. 68849, § 12-16-89)

Sec. 4-78. Collection and verification of fees, receipts.

(a) Fee receipts issued under the terms of this article by the city tax assessor and collector shall run gently with the license or permit issued by the state alcoholic beverage commission, and it shall be the duty of the tax assessor and collector to accept and process payment of the fees specified in this article.

(b) The special tax investigators of the city tax office are authorized to and shall have the responsibility to inspect any location holding or required

*Editor's note—Ord. No. 68849, § 1, adopted Feb. 16, 1989, amended Ch. 4 in its entirety to read as herein set out. In order to reflect the legislative history of provisions currently contained in Div. 2, §§ 4-76—4-84, the history notation associated with the provisions of former Div. 2, §§ 4-76—4-88, relative to licenses and permits for beer and wine manufacture, sale and distribution, has been retained and attached to similar provisions enacted by said Ord. No. 68849. The provisions of former §§ 4-83, 4-85, 4-87 and 4-88 were not addressed by new Div. 2 provisions and these derived from Code 1950, §§ 30-14, 30-16, 30-18; Ord. No. 23434, § 1, 8-16-56; Ord. No. 26686, §§ 1, 2, 9-4-58; Code 1959, §§ 5-18, 5-20, 5-22, 5-22.1; Ord. No. 27998, §§ 1, 2, 10-8-59; Ord. No. 57567, § 3, 9-15-83; Ord. No. 65684, § 6, 9-10-87)

to hold an alcoholic beverage permit or license under the Texas Alcoholic Beverage Code. The investigators are responsible for verifying the payment of city fees and the proper and conspicuous display of such fee receipts at the premises of the holder of such permit or license. Investigators shall issue warning violation notices in those cases where the proper fees have not been paid to the city and/or in those cases where the fee receipt is not properly displayed or cannot be located. Where compliance is not voluntary, the police department shall be notified to issue a class "C" misdemeanor citation. Continued or uncorrected violations shall be processed by the chief of police as stated in section 4-84, "Periodic police investigators," in this article.
(Code 1950, § 30-16.1; Ord. No. 23954, § 1, 11-15-56; Ord. No. 27998, §§ 1, 2, 10-8-59; Code 1959, § 5-16; Ord. No. 68849, § 1, 2-16-89; Ord. No. 76467, § 1, 9-10-92)

Sec. 4-79. Display of fee receipt; penalty for failure to display.

The City of San Antonio tax fee receipt issued under this division shall be displayed at all times in a conspicuous place on the licensed premises. Failure to so display the city fee receipt shall constitute a class "C" misdemeanor, punishable by a fine of not more than five hundred dollars ($500.00).
(Code 1950, § 30-16.1; Ord. No. 23954, § 1, 11-15-56; Ord. No. 27998, §§ 1, 2, 10-8-59; Code 1959, § 5-16; Ord. No. 68849, § 1, 2-16-89)

Sec. 4-80. Separate fee receipts for each business; nontransferable.

A separate city alcoholic beverage fee receipt shall be required for each place of business. Fee receipts issued under this article shall not be transferred.
(Code 1950, § 30-16.1; Ord. No. 23954, § 1, 11-15-56; Ord. No. 27998, §§ 1, 2, 10-8-59; Code 1959, § 5-16; Ord. No. 68849, § 1, 2-16-89)

Sec. 4-81. City protest of permit/license.

The chief of police or his designated representative may protest the issuance or renewal of a state permit or license in compliance with Texas Alcoholic Beverage Commission Code Sections 11.41 and 61.32(c). Evidence supporting the protest will be presented by the chief of police, with the assistance of the city attorney if necessary.
(Code 1950, § 30-16.2; Ord. No. 26131, § 1, 2-27-58; Code 1959, § 5-17; Ord. No. 68849, § 1, 2-16-89)

Sec. 4-82. Investigations, examinations of application.

(a) *Notification.* The director of building inspections shall immediately notify the chief of police, the fire marshal and the director of public health of receipt of the application for a certificate of occupancy for a location at which the applicant intends to sell beer on premises.

(b) *Determining zoning district inspection of premises.* The director of building inspections shall determine the zoning district in which the proposed business is to be located and the location of the nearest church, school, or hospital, and shall inspect the building in which the proposed business will be housed to determine if the structure meets all the requirements of the building code electrical code and plumbing code and mechanical code of the city.

(c) *Examination for fire hazards, unsafe places.* The fire marshal shall examine the premises concerned at the address for which the permit or license is sought, and determine whether the applicant has available an adequate building which does not constitute a fire hazard or unsafe place.

(d) *Investigating sanitary condition.* The director of public health shall investigate the sanitary condition of the premises and building in which the proposed business is to be located and determine whether it complies with the regulations governing sanitary conditions in food establishments, and with the provisions of this article concerning toilet facilities.

(e) *Written reports, forwarding application.* The fire chief and health director, upon completing his investigation, shall forward a copy of a written report of his findings to the director of building inspections.
(Code 1950, § 30-15; Ord. No. 23434, § 1, 8-16-56; Code 1959, § 5-19; Ord. No. 27998, §§ 1, 2, 10-8-59; Ord. No. 52775, § 2, 9-11-80; Ord. No. 68849, § 1, 2-16-89)

Sec. 4-83. Periodic inspection of premises, inspections revealing causes for certificate of occupancy or cancellation.

(a) *Inspections.* It shall be the duty of the director of building inspections, the fire marshal and the director of public health to cause an inspection to be made periodically of all premises of permittees and licensees selling beer and wine for consumption on the premises where sold.

(b) *Certificate of occupancy cancellation.* In the event that a City Code violation is discovered during a periodic reinspection by the director of building inspections, the director of public health and the fire marshal, the permittee/licensee shall have a period of one hundred twenty (120) days from the date the director of inspections mails to him a notice of the work, alterations and repairs required, within which to do the things necessary to have the building conform to the requirements of the building code adopted by section 6-36 and the mechanical code adopted by City Code section 6-66 and of Chapters 4, 10, 11 and 13 of the Code. The certificate of occupancy shall be subject to cancellation if the required work, alterations and repairs are not accomplished within such one hundred twenty-day period. Such cancellation shall be effected by written notice mailed by the director of building inspections to the licensee at the premises described in the license. The director of building inspections shall notify the state alcoholic beverage commission of such cancellation.
(Code 1950, §§ 30-16.1, 30-17; Ord. No. 23439, § 8-16-56; Ord. No. 23954, § 1, 11-15-56; Ord. No. 27998, §§ 1, 2, 10-8-59; Code 1959, §§ 5-16, 5-21; Ord. No. 55811, § 30, 9-16-82; Ord. No. 57567, § 2, 9-15-83; Ord. No. 61329, 8-29-85; Ord. No. 65684, § 5, 9-10-87; Ord. No. 68849, § 1, 2-16-89)

Sec. 4-84. Periodic police investigations.

It shall be the duty of the chief of police to investigate each location, which is licensed for consumption on premises periodically. If such investigation reveals that probable cause for the state's suspension or cancellation of a permit or license exists, the investigating official shall inform the Texas Alcoholic Beverage Commission immediately of such fact and furnish supporting evidence. If from such evidence it appears that cause for a suspension or cancellation exists under the provisions of the Texas Alcoholic Beverage Code, the chief of police, with any assistance needed from the city attorney, shall petition the state alcoholic beverage commission to cancel or suspend such permit or license and shall pursue such petition diligently.
(Code 1950, § 30-17; Ord. No. 23439, § 1, 8-16-56; Code 1959, § 5-21; Ord. No. 55811, § 30, 9-16-82; Ord. No. 57567, § 2, 9-15-83; Ord. No. 61329, 8-29-85; Ord. No. 65684, § 5, 9-10-87; Ord. No. 68849, § 1, 2-16-89)

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Chapter 5

ANIMALS*

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*__Editor's note—__Ord. No. 2010-06-17-0555, § 1, adopted June 17, 2010, amended chapter 5 in its entirety to read as herein set out. Formerly, chapter 5 pertained to similar subject matter, and derived from Ord. No. 2007-12-13-1291, § 1(Att. I), adopted December 13, 2007, and Ord. No. 2009-09-17-0731A, § 3, adopted September 17, 2009.

Section 3 of Ord. No. 2010-06-17-0555 states the following: "Violations occurring after the effective date of this ordinance shall be punished as provided in the revised chapter 5, section 5-21. Violations prior to the effective date shall be punished under the former applicable sections which shall remain in effect for that purpose."

__Cross references—__Food and food handlers generally, § 13-1 et seq.; meat regulations, § 13-256 et seq.

__State law reference—__Animals generally, Vernon's Ann. Civ. St. art. 180 et seq.

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Article VII. Animal Nuisances; Impoundment

Sec. 5-150. Animal nuisances; sterilization required for dogs free of restraint.
Sec. 5-151. Outdoor cats.
Sec. 5-152. Misdemeanor violations by animal owners; presumptions.
Sec. 5-153. Impounding animals creating animal nuisance.
Sec. 5-154. Impounding abandoned or unrestrained animals.
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Sec. 5-156. Return of captured animal to owner.
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ARTICLE I. IN GENERAL

Sec. 5-1. Definitions.

The following definitions shall apply in the interpretation and enforcement of this chapter:

Abandoned animal shall mean an animal abandoned while in the person's custody without making reasonable arrangements for assumption of custody by another person.

Animal shall mean any living vertebrate or invertebrate, domestic or wild, not including man.

Animal care officer shall mean a person designated by the state, or the city, who is qualified to perform such duties under the laws of this state and the ordinances of the city.

Animal care services facility shall mean a facility operated by the city for the impoundment, care, disposition and/or adoption of animals.

Animal nuisance shall mean a public nuisance created within the city in violation of article VII.

Animal permit hearing officer means the individual designated by the director to conduct administrative hearings to review the denial and revocation of excess animal permits authorized by this chapter provided that such person shall not have participated in any investigation of facts regarding the denial or revocation or be in the chain of command of any such person.

Animal rescue organization means any not-for-profit organization that has tax-exempt status under Section 501(c)(3) of the United States Internal Revenue Code, which rescues and places animals into permanent homes. Animal rescue organization does not include an entity that breeds animals, or an entity that in exchange for payment or compensation obtains any dog or cat from a person who either breeds dogs or cats or facilitates the sale of dogs or cats that were obtained from a person who breeds dogs or cats.

Bridle shall mean a leather device designed to fit over the head and beak of a cock to prevent the cock from injuring another cock.

Cat colony means a colony of free-roaming (homeless, stray, wild or untamed) cats that has been registered with the department and is maintained by a colony caretaker (who provides food, water and shelter) using trap, neuter and return methodology.

Choker collar shall mean a length of chain or nylon cord or rope with rings at either end such that the collar can be formed into a loop around the animal's neck that slips (adjusts) tighter when pulled and slips looser when tension is released.

City shall mean the City of San Antonio, Texas.

Cock shall mean the male of any type of domestic fowl.

Cockfight shall mean a contest wherein fowl are set against one another with the intention that they engage in combat.

Commercial boarding facility shall mean any place other than a veterinary hospital where the property owner, tenant, or occupant keeps or allows others to keep or board any cats, dogs or equines for a fee, donation or non-monetary reward.

Competition animal shall mean a cat or dog that is of a breed recognized by and registered with an approved breed registry approved by the department and shows or competes in animal shows or other competition events sponsored by an approved breed registry.

Confined shall mean a situation by which an animal is effectively prevented from being free to roam or run at large at will.

Coop and run shall mean a fully enclosed and predator-resistant cage or a pen used to confine fowl within a designated location. The coop and run shall have roosts approximately eighteen to twenty-four (18—24) inches from the ground with at least eight (8) inches of roost space per bird.

Department shall mean the city's animal care services department.

Director shall mean the director of the city's animal care services department or his/her designee.

Dog shall mean any member of Canis familiaris or any combination of Canis familiaris and other canine species including both genders.

Domestic animal shall mean any animal which is not prohibited, and commonly kept as pets at the owner's residence, including but not limited to domestic cats and dogs, domestic ferrets, rabbits, and domestic fowl.

Domestic cat shall mean any member of Felis domesticus.

Domestic dog shall mean a member of Canis familiaris which is not a hybrid of Canis familiaris and another canine species.

Domestic fowl shall mean birds of a breed developed or kept for the purpose of meat production, egg laying or purely for ornament or show, including but not limited to ducks, geese, chickens, turkeys, partridges, parakeets and pigeons.

Dubbing shall mean the procedure of removing the comb, wattle, and sometimes earlobes of a game fowl.

Enclosure shall mean a structure to prevent an animal from being able to run at large. For purposes of dangerous dogs, enclosure shall mean a house or a building, or in the case of a fence or a structure/pen, the fence or structure/pen must also have minimum dimensions of five (5) feet by ten (10) feet. The fence or structure/pen must form an enclosure suitable to prevent entry of young children and must be locked and secured such that an animal cannot climb, dig, jump or otherwise escape of its own volition. The enclosure shall be securely locked at all times. The structure/pen must have secure sides to prevent the dangerous animal from escaping from the enclosure. The structure/pen shall provide protection from the elements for the dangerous animal. Notwithstanding the fence height restrictions of section 6-2, the animal care officer shall have the right to require that the fence be higher than six (6) feet or require a secure top and/or bottom be added to the structure/pen if the need is demonstrated. These additional requirements shall be based upon the type of animal to be kept in this enclosure and its anticipated ability to escape.

Gaff shall mean an artificial steel spur designed to attach to the leg of a cock to replace or supplement the cock's natural spur.

Game fowl shall mean a bird of any of various strains of domestic feral fowls developed chiefly for the intent of fighting or used in the act of cockfighting.

Grooming shop shall mean a commercial establishment (structure or vehicle) where animals are bathed, clipped, plucked or otherwise groomed.

Housing space shall mean the amount of confined space a pet has regular access to throughout the day to walk, run, play, eat and rest. This can include inside the home, if it is regularly accessible to the pet, and within an exterior fenced area within the owner's property. It shall not include any space where the animal can get on or off the property by its own free will.

Impound shall mean the placing of an animal in the city's animal care services facility, or, the taking into custody of an animal for purposes of transportation to the city's animal care services facility.

Keeper means any person, firm, corporation, organization or department holding, caring for, having an interest in, or having control or custody of an animal. If the keeper of an animal is a minor, the parent or guardian of that minor shall be responsible for compliance with animal care related ordinances.

Livestock shall mean any equine, hog, sheep, goat, llama, or any bovine species.

Nondomestic animal shall mean and includes all animals other than domestic cats and dogs, domestic ferrets, livestock, rabbits and domestic fowl.

Offer for sale shall mean to proffer, display, or advertise for the sale, adoption, or other commercial transfer of an animal.

Owner of an animal shall mean any person owning or having care, custody, possession or control of an animal. Persons caring for an animal at the specific request of an owner are

not included in the definition of owner, but are required to keep the animal in compliance with this Code.

Performing animal exhibition shall mean any spectacle, display, act or event, other than circuses and rodeos, in which performing animals are used.

Pet shall mean any animal kept for pleasure or enjoyment, rather than utility or commercial purposes.

Pet shop shall mean a business establishment, whether licensed or not by the department, where animals including dogs, cats, fish, birds, reptiles, or rodents are sold, offered for sale, bartered, traded, given away, or otherwise transferred.

Poisonous shall mean causing or capable of causing death or illness if taken into the body.

Puppy shall mean any member of Canis familiaris and other canine species including both genders four (4) months of age or under.

Prohibited animals shall mean:

(1) Any ape or other non-human primate;

(2) Any member of the genus Canis including wolf, hybrid wolf, coyote, jackal or fox, and similar species except Canis familiaris;

(3) Any member of the genus Felis including leopard, lion, panther, tiger, lynx, bobcat, cheetah, ocelot, margay, jaguarundi, and any similar species except Felis domesticus;

(4) Mustelids; other than the domestic ferret (Mustela putorius furo);

(5) Skunk;

(6) Any venomous or poisonous reptile or venomous species except bees;

(7) Crocodile, alligator, caiman or related species;

(8) Swine;

(9) Ostrich or any other Ratites;

(10) Bear; and

(11) All other mammals that live in a natural state of undomesticated freedom including the opossum, raccoon, armadillo and squirrel.

Quarantine shall mean the detention or isolation of an animal suspected of carrying an infectious or contagious disease.

Rabies vaccination shall mean a protective inoculation by a licensed veterinarian with a rabies vaccine recognized and approved by the United States Department of Agriculture given in an amount sufficient to provide an immunity that satisfies the requirement of state law.

Registered microchip shall mean an identification chip implanted under the skin of an animal for the purpose of identifying its owner or keeper which has been registered with a microchip registration company with current ownership information to include the current owner's or keeper's name, address, and telephone number (if available), and the description of the animal.

Responsible person shall mean a person to whose commands an animal in question is obedient, and who is capable of controlling the animal if the animal should fail to obey such commands.

Restraint shall mean a situation whereby an animal is secured by a tether, a leash or a lead, or is confined within the real property of its owner.

Roosts shall mean bars where domestic fowl perch at night inside a coop and run.

Rooster shall mean the male of any type of domestic fowl.

Run at large shall mean to be free of restraint while outside the boundaries of the real property of the owner.

Seller (of animals) shall mean a person that transfers ownership of animals, in exchange for money, services, or goods. For the purposes of a seller's permit, seller shall not include an operator, manager, or employee of a business entity that sells animals commercially, except for a person that is selling animals out of said his or her primary residence.

Selling (of animals) shall mean the permanent change of ownership resulting from the exchange of money, services or goods.

Severe injury means any physical injury that results in death, broken bones or disfiguring lacerations requiring multiple sutures or cosmetic surgery.

Shelter shall mean a clean and sturdy structure with a roof and three (3) sides and a fourth side allowing access that is protected from the elements and a floor that is elevated enough to keep the shelter dry. A shelter shall provide protection from rain, hail, sleet, snow, and subfreezing temperatures and must be large enough to allow the dog or animal to stand erect, sit, turn around and lie down in a normal manner.

Slasher shall mean a steel weapon resembling a curved knife blade designed to attach to the foot of a cock.

Spur shall mean a sharp horn-like protrusion that can grow on the legs of fowl.

Stray animal shall mean any animal not under restraint.

Temporary owner shall mean an individual who finds a stray animal, has the animal for fewer than thirty (30) days and attempts to find the true owner of the animal.

Trap, neuter and return (TNR) program shall mean a nonlethal, humane alternative to deal with the stray cats which are captured, altered and returned back to their location in order to encourage the stabilization of the free-roaming cat population in the city.

Trapped animal shall mean an animal caught or taken in, as if in a trap or snare by skill, craft or trickery.

Unprovoked animal attack means an offensive attack by an animal that excludes circumstances in which immediately prior to the attack, and while properly confined and restrained:

(1) The animal was taunted, teased or abused or otherwise assaulted by a person(s) or another animal- this includes being hit, kicked or struck, pulled, pinched, stepped on, squeezed, or bit by a person or other animal with any object or body part.

(2) While properly restrained, the animal was defending or protecting a person(s) or property from a person(s) or another animal trespassing or committing a crime on the premises or property occupied by the owner.

(3) The animal was protecting itself or its offspring.

Unrestrained shall mean a situation where an animal is found to be without physical restraint provided in the form of a barrier such as a fence, tether or leash providing positive control of the animal and inhibiting the animal from getting off the occupant's property or away from physical control by the owner/keeper.

Vaccination certificate shall mean a document showing on its face that the animal described thereon has received a current inoculation of rabies vaccine in an amount sufficient to produce an immunity that satisfies the requirement of state law, inscribed with the date of the inoculation, the duration of immunity approved for that vaccine, the name and address of the animal's owner, all other information required by state law and signed by a licensed veterinarian.

Venomous shall mean capable of injecting venom by means of a bite or sting.

Veterinarian shall mean a person licensed to practice veterinary medicine in the state.

Veterinary hospital shall mean any establishment maintained and operated by a licensed veterinarian for surgery, diagnosis of and treatment of diseases and injuries of animals.

Wild animal shall mean any nonhuman primate, raccoon, skunk, fox, wolf, leopard, panther, tiger, lion, lynx, bobcat, or other warm-blooded animals, or any poisonous or dangerous snake which can be found in the wild state.

Zoological park shall mean any facility, other than a pet shop or commercial boarding facility,

displaying or exhibiting one (1) or more species of non-domesticated animals operated by a person or government agency.
(Ord. No. 2010-06-17-0555, § 1, 6-17-10; Ord. No. 2011-10-20-0863, § 2, 10-20-11; Ord. No. 2015-04-30-0354, § 2, 4-30-15; Ord. No. 2017-10-05-0755, § 1, 10-5-17; Ord. No. 2020-10-29-0772, § 1, 10-29-20)

Sec. 5-2. Animal care services facility; erection, maintenance, care of animals; euthanasia service.

(a) There shall be erected and maintained, under the supervision of the director, a suitable building and kennels, to be known as the animal care services facility, for the confinement of all animals seized, impounded or surrendered pursuant to the provisions of this chapter. The animal care services facility shall be kept in a sanitary condition, and all animals taken up and impounded therein shall be properly fed and provided water. All animals shall be treated in a humane manner while under the custody of the department. The department or its designee shall be considered the designated caretaker of all impounded animals immediately upon intake at the facility.

(b) Upon payment of the applicable fee, if any, the animal care services facility may euthanize dogs, cats, and other small animals upon the signed request of an animal owner who resides within the city and residents of unincorporated Bexar County as long as the city and county maintain a joint animal control program through contractual agreement.

(c) The sale of live animals from the animal care services facility for research and pound seizures is prohibited.
(Ord. No. 2010-06-17-0555, § 1, 6-17-10; Ord. No. 2013-09-05-0601, § 2, 9-5-13; Ord. No. 2020-10-29-0772, § 1, 10-29-20)

Sec. 5-3. Prohibiting sale of baby chicks, ducklings or other fowl and rabbits.

(a) It shall be unlawful for any person to sell or offer for sale, trade, barter, lease, rent or give away any baby chicks, ducklings, other fowl less than three (3) weeks old, or rabbits less than eight (8) weeks old on the condition that some other item is purchased, traded, bartered, leased, or rented; except that this chapter shall not be construed as to prohibit the sale or display of such baby chicks, ducklings, or other fowl in proper breeder facilities or hatcheries or to prohibit the sale or display of such baby chicks, ducklings, or other fowl in stores engaged in the business of selling the same to be raised for commercial purposes.

(b) It shall be unlawful to color, dye, stain, or otherwise change the natural color of any baby chicks, ducklings, or other fowl or rabbits or to possess for the purpose of sale any baby chicks, ducklings, or other fowl or rabbits which have been so colored.
(Ord. No. 2010-06-17-0555, § 1, 6-17-10; Ord. No. 2020-10-29-0772, § 1, 10-29-20)

Sec. 5-4. Cruelty to animals.

(a) Cruelty to non-livestock and livestock animals, excluding uncaptured wild living creatures, is a violation of the Texas Penal Code and depending on the circumstances, is a class A misdemeanor, state jail felony, or a felony of the third degree.

(b) Cockfighting is a violation of the Texas Penal Code and depending on the circumstances is a state jail felony, class A or class B misdemeanor.

(c) It shall be a violation of this Code for a person to intentionally, knowingly or recklessly beat, cruelly treat, overload or otherwise abuse any uncaptured wild living creature anywhere in the city. A violation of this subsection is punishable as described in section 5-21.

(d) Animal care officials shall liberally utilize the authority granted by V.T.C.A., Health and Safety Code § 821.022 to seize and impound any animal that has been or is being cruelly treated. If the investigating animal care officer or cruelty investigator has reason to believe that an animal has been or is being cruelly treated, pending a hearing before any justice of the peace of Bexar County, Texas or any municipal court judge on the issues of cruelty and disposition of the

animal, the seizure of the subject animal prior to receiving a warrant is hereby authorized if such a delay endangers the life of the animal, or if it would unreasonably prolong the suffering of the animal needing immediate attention.

(e) It shall be a violation for any person to engage in dubbing.
(Ord. No. 2010-06-17-0555, § 1, 6-17-10; Ord. No. 2017-10-05-0755, § 1, 10-5-17; Ord. No. 2020-10-29-0772, § 1, 10-29-20)

Sec. 5-5. Killing animals in a public place.

It shall be unlawful for any person to wound or kill any cattle, horse, sheep, swine or goats of any description, whether wild or domestic, in any public place within the city.
(Ord. No. 2010-06-17-0555, § 1, 6-17-10)

Sec. 5-6. Standard of care.

An owner, keeper or temporary owner of an animal is required to provide his or her animals with humane care and treatment as follows:

(1) Access to an adequate supply of fresh air;

(2) Species-specific food;

(3) Fresh water;

(4) Exercise;

(5) Shelter, as defined by this Code;

(6) Access to adequate natural or artificial shade from direct sunlight at all times that is large enough to contain all outdoor pets at one time and is separate from any shade created from the designated shelter; and

(7) Veterinary care when needed to prevent suffering.

(Ord. No. 2010-06-17-0555, § 1, 6-17-10; Ord. No. 2018-08-02-0551, § 1, 8-2-18; Ord. No. 2020-10-29-0772, § 1, 10-29-20)

Sec. 5-7. Ear cropping, tail docking, and dewclaw removal.

It shall be unlawful for the owner of an animal, or a person charged with custody or care of an animal, to surgically alter an animal, including, but not limited to ear cropping, tail docking, and dewclaw removal, except when done by a licensed veterinarian.
(Ord. No. 2010-06-17-0555, § 1, 6-17-10)

Sec. 5-8. Reporting motor vehicle animal strikes.

Any person who, as the operator of a motor vehicle, strikes a domestic animal, livestock, or any wild animal over five (5) pounds in weight, shall at once report the accident to the city customer services/311 department.
(Ord. No. 2010-06-17-0555, § 1, 6-17-10)

Sec. 5-9. Flooring standards for animal housing.

It shall be unlawful to house any animal on a surface that permits the feet or any portion of the foot to pass through any opening. The floor must be constructed in a manner that protects the animal's feet and legs from injury.
(Ord. No. 2010-06-17-0555, § 1, 6-17-10)

Sec. 5-10. Prohibiting giving away animals as prizes or inducements.

It shall be unlawful for any person to give away, or offer to give away, any live animal as a prize for, or as an inducement to enter, any contest, game or other competition, or as an inducement to enter a place of amusement; or offer such animal as an incentive to enter into any business agreement whereby the offer was for the purpose of attracting trade.
(Ord. No. 2010-06-17-0555, § 1, 6-17-10)

Sec. 5-11. Prohibiting selling animals on roadside, garage sales, flea markets and festivals.

(a) It shall be unlawful for any person to sell, trade, barter, lease, rent, or give away, any animal on any roadside, public right-of-way, commercial parking lot, garage sale, flea market, festival, park, community center or outdoor public place.

(b) It shall be unlawful for any manager, operator or property owner to allow the conduct described in subsection (a).

(c) This section shall not apply to any tax-exempt non-profit organization founded for the purpose of providing humane sanctuary or shelter for abandoned or unwanted animals that have an active animal rescue organization license issued by the department.

(d) Any animal being sold, traded, bartered, leased, rented, or being given away on any roadside, public right-of-way, commercial parking lot, garage sale, flea market, festival, park, community center or outdoor public place shall be subject to seizure and impoundment at the discretion of the investigating animal care officer. Upon impoundment, a notice of violation will be provided to the animal owner. Animals impounded under this section may be reclaimed by the owner within five (5) days excluding the day of impoundment and any days the animal care services facility is not opened. Animals not reclaimed within this period shall thereafter become the property of the city and be subject to adoption, rescue, foster or humanely euthanized at the discretion of the department. Applicable impoundment fees for each animal reclaimed shall be paid.

(Ord. No. 2010-06-17-0555, § 1, 6-17-10; Ord. No. 2017-10-05-0755, § 1, 10-5-17; Ord. No. 2020-10-29-0772, § 1, 10-29-20)

Sec. 5-12. Exposing animals to poisonous substances.

(a) No person shall expose any known poisonous substance, whether mixed with food or not, so that the same may be attractive to any warm-blooded animal or human; except that it shall not be unlawful for a person to expose, on his or her own property or with permission of the property owner, commercially available rat poison or other pesticides appropriately placed in accordance with the labeling directions.

(b) It shall be sufficient to constitute a violation under this section that the poisonous substance was attractively exposed by such person in such a manner that the same may have been eaten, or was in fact eaten, by any warm blooded animal or human; no intent or further culpable mental state shall be required to prove a prima facie violation.

(Ord. No. 2010-06-17-0555, § 1, 6-17-10; Ord. No. 2020-10-29-0772, § 1, 10-29-20)

Sec. 5-13. Traps with holding mechanisms prohibited; exceptions.

(a) No person shall set up or allow to be set up on his or her property steel jaw traps, spring traps with teeth or perforated edges on the holding mechanism, snares, or any type of trap with a holding mechanism designed in such a fashion as to reasonably ensure the cutting, slicing, tearing or otherwise traumatizing of the entrapped prey, for the purpose of ensnaring domestic or wild animals within the city limits, unless the use of such traps is specifically deemed necessary by the director of health in or for the control of communicable disease. This section is not to be construed to include those traps designed to kill common rodents, i.e., rats, mice, gophers and groundhogs; except that the owner is responsible for taking care that any of the above said "rodent" traps are not placed or used on or about his or her property in such a manner as to reasonably ensure the trapping of any other domesticated or wild animal, or of a human.

(b) It shall be a prima facie violation of this section that the traps proscribed in this section were, in fact, set up by the person in question, or were allowed to be set up by the person in question; no intent or further culpable mental state shall be required to prove such a prima facie violation.

(Ord. No. 2010-06-17-0555, § 1, 6-17-10; Ord. No. 2020-10-29-0772, § 1, 10-29-20)

Sec. 5-14. Animal traps without holding mechanism.

A person may set up on his or her own property humane traps used to capture dogs, cats, and other small animals alive which must be sheltered and shall be checked at least once every two (2) hours or every eight (8) hours if left overnight by the individual setting the trap. Humane care shall be provided for any trapped animals including the provision of food, water, and protection from extremes of the environment including heat, cold, and precipitation. Trapped dogs or cats bearing identification shall be turned over to the department or the animal's owner.

(Ord. No. 2010-06-17-0555, § 1, 6-17-10; Ord. No. 2017-10-05-0755, § 1, 10-5-17; Ord. No. 2020-10-29-0772, § 1, 10-29-20)

Sec. 5-15. Safety of animals in motor vehicles.

(a) No person shall transport or carry on any public roadway any animal in a motor vehicle unless the animal is safely enclosed within the vehicle; and if traveling in an unenclosed vehicle (including, but not limited to convertibles, pick-up trucks, jeeps, and flatbed trucks), the animal shall be confined by a vented container or cage, rope or other device cross-tied to prevent the animal from falling or jumping from the motor vehicle or from strangling on a single leash.

(b) No person shall leave any animal in any standing or parked vehicle in such a way as to endanger the animal's health or safety. Any animal care officer or police officer is authorized to use reasonable force, including the breaking of a side window, to remove an animal from a vehicle whenever it appears the animal's health or safety is endangered, and said neglected or endangered animal shall be impounded.
(Ord. No. 2010-06-17-0555, § 1, 6-17-10; Ord. No. 2017-10-05-0755, § 1, 10-5-17)

Sec. 5-16. Pet shop requirements.

(a) No person shall operate a pet shop within the city without first obtaining a license from the department.

(b) It shall be unlawful for a pet shop owner, operator, manager, or employee to sell, trade, transfer, barter, give away, maintain, or act as a dealer or agent between a buyer and seller of any prohibited animal as defined by this chapter.

(c) A pet shop shall not sell, lease, offer for sale, trade, give away or otherwise transfer a cat or dog, unless the cat or dog was obtained from a city or county animal shelter, an animal control agency, or an animal rescue organization licensed by the department.

(d) All pet shops and stores selling animals shall:

(1) Take care to house animals in a sanitary manner;

(2) Provide appropriate medical services, care, and housing according to individual species' needs;

(3) Keep sick, diseased, and injured animals isolated and checked by a veterinarian on the day of discovery for veterinary care;

(4) Provide each animal sufficient space to stand, stretch, and turn without touching any of the four (4) sides or top of their primary enclosure. Group housing of compatible animals is allowed if the space prevents crowding and allows for easy removal of animal waste, and the unhampered movement and comfort of each animal. Take cats and dogs out of their primary enclosures at least twice during each twenty-four-hour period for exercise unless the primary enclosure is of sufficient size to conduct an exercise regimen needed by the animal for good health;

(5) Maintain clean animal enclosures and remove debris and fecal matter at least once every twenty-four (24) hours. Sanitizing of cat and dog enclosures shall be done once every day by washing the surfaces with water and either soap or detergent, or by the use of a pressure water system or steam cleaner all of which shall be followed by the application of a safe and effective disinfectant. The exercise and run areas having pea gravel or other non-permanent surface materials shall be thoroughly cleaned at least every twenty-four (24) hours and more frequently if necessary by removal of soiled materials and application of suitable disinfectants followed by the replacement of clean surface materials when necessary;

(6) Check and treat all cats and dogs for internal and external parasites, unless documentation is provided indicating the animal has had a veterinary exam within the past thirty (30) days and is free of internal and external parasites;

(7) Immunize all cats and dogs offered for sale, trade or other compensation or for free giveaway (except an animal taken to the department) against common disease

in accordance with standard veterinary practices; in the case of dogs, against canine distemper, adeno-virus para influenza, parvovirus, corona virus, and leptospirosis, and in the case of cats, against feline rhinotracheitis, and panleukopenia;

(8) Ensure that all cats and dogs that are being offered for sale, trade or other compensation or for free giveaway are:

a. Sterilized by a licensed veterinarian;

b. Implanted with a registered microchip.

(9) Not offer any kitten or puppy under the age of eight (8) weeks for sale, trade or other compensation or for free giveaway; and,

(10) Post on the enclosure for each cat or dog offered for sale the name, address, and contact information of the city or county animal shelter, animal control agency or animal rescue organization from which the dog or cat was obtained.

(e) The pet shop permit holder shall furnish a purchaser a written statement at the time of sale which shall include:

(1) Date of sale;

(2) Name, address and telephone number of purchaser and permit holder;

(3) Permit number of permit holder;

(4) Breed, description, approximate age and sex of cat, dog, or other animal sold (small mammals, parrot-type birds, and fish not included);

(5) Medication and vaccination and immunization information, including dates administered;

(6) Internal parasite medication(s) and date(s) administered;

(7) A guarantee of good health for a period of not less than two (2) weeks with recommendation to have the animal examined by a licensed veterinarian. The permit holder shall retain a copy of the written statement for twelve (12) months from date of sale. All purchasers of cats, dogs, and ferrets shall also be furnished with information as to the requirements of ownership of these animals within the city including requirements for rabies vaccination, litter permits, and microchipping; and

(8) In the case of the sale of a cat or dog: the name, address, and contact information of the city or county animal shelter, animal control agency or animal rescue organization from which the pet shop obtained the cat or dog.

(f) Records shall be maintained in good auditable condition, and surrendered to the department upon request and without reservation or purpose of evasion. Failure to produce a copy of such records upon demand by the department shall be cause for the revocation of an existing license and the refusal to issue a new license for a period of two (2) years.
(Ord. No. 2010-06-17-0555, § 1, 6-17-10; Ord. No. 2015-04-30-0354, § 2, 4-30-15; Ord. No. 2017-10-05-0755, § 1, 10-5-17; Ord. No. 2020-10-29-0772, § 1, 10-29-20)

Sec. 5-17. Commercial boarding facility.

(a) No person shall operate a commercial boarding facility within the city without first obtaining a license from the department.

(b) The exterior of a commercial boarding facility area shall be completely fenced or otherwise enclosed to prevent animals from leaving the premises.

(c) Runs shall be constructed to effectively enclose the animals housed therein. Construction shall permit ready observation and handling of the animals and promote ease of cleaning. Runs and exercise areas having gravel or other non-permanent surface materials shall be sanitized a minimum of once in each twenty-four-hour period and more frequently as may be necessary by removal of soiled materials and application of suitable disinfectants and replacement with clean surface materials.

(d) All primary enclosures shall be structurally sound and maintained in good repair to protect the animals from injury, to contain them, and exclude other animals. They shall be constructed and maintained to enable the animals contained therein to remain dry and clean and to permit regular and effective cleaning. Heating and cooling shall be provided as required, according to the physical need of the animals, with sufficient light to allow observation of animals and sanitation conditions.

(e) Group housing is permitted for animals that are compatible. Adequate space shall be permitted to allow freedom of movement and comfort.

(f) All animals that are known to be exposed to or show symptoms of having infectious or contagious diseases shall not be transferred to any person other than the owner of the animal or a licensed veterinarian.

(g) A commercial boarding facility shall not accept a dog for boarding without first obtaining a copy of the dog's immunization record or veterinarian receipt showing that the animal has a current rabies vaccination certificate and been vaccinated against canine distemper, hepatitis, para influenza, and canine parvovirus in accordance with standard veterinary practices. A commercial boarding facility shall not accept a cat for boarding without first obtaining a copy of the cat's immunization record or veterinarian receipt showing that the cat has a current rabies certificate and been vaccinated against feline panleukopenia, viral rhinotracheitis, and calici virus in accordance with standard veterinary practices. Puppies and kittens less than four (4) months of age are exempt from the rabies vaccination requirement. A commercial boarding facility shall not accept an equine for boarding without first obtaining a copy of that equine's immunization record or veterinarian receipt showing that the equine has a current rabies certificate and current Coggins test certificate. The animal care services facility and commercial boarding facility possessing federal certification of nonprofit status (IRS 501(c)(3)) are exempt from this requirement.

(h) It is the responsibility of the permittees, except for those exempted from the payment of commercial boarding facility fees, to be able to prove at any time that all cats, dogs and equines on the premises which are over four (4) months of age are currently vaccinated against rabies.

(i) All animals shall be supplied with sufficient species specific food during each twenty-four-hour period and more often if the physiological needs of the animal require it. Each animal shall have access to fresh potable water at all times.

(j) Precautions shall be taken to ensure that animals are not teased, annoyed, or made to suffer by any persons or means.
(Ord. No. 2010-06-17-0555, § 1, 6-17-10; Ord. No. 2017-10-05-0755, § 1, 10-5-17; Ord. No. 2020-10-29-0772, § 1, 10-29-20)

Sec. 5-18. Animal waste; sanitation standards.

(a) All animals shall be kept in a sanitary manner. Animal owners shall collect and dispose of animal waste by flushing it down a commode, by burial at least six (6) inches below the surface of the ground, or by placing it in a disposable container, sealing the container, and disposing of it as household garbage. Livestock standings shall be constructed of concrete, compacted caliche or other equally impervious material that can be easily cleaned where bovines, equines, swine, goats or sheep are kept; or any other livestock when kept for commercial purposes. Such standings shall be located under the roofed areas and shall be the size of the roofed areas. All manure and other animal wastes from livestock shall be removed from pens, corrals or standings at least once each day. This material shall be deposited in a manure storage bin of concrete or metal construction and shall be provided with a fly-tight lid. Such manure and other animal wastes shall be removed from this bin at least once each week to a disposal site approved by the department.

(b) No animal owner shall allow the accumulation of animal waste on any premises in a quantity sufficient to create an odor offensive to a person of normal sensibilities standing on any

adjacent property not owned or controlled by the subject animal's owner, or which creates a condition conducive to the breeding of flies or other pests. It shall be unlawful to permit or allow fly breeding on premises on which livestock are kept, and permitting or allowing such shall authorize the denial, suspension or revocation of a permit by the department. Livestock owners shall have and maintain a fly control program.

(c) The accumulation of animal waste on any premises so as to create a stench or harborage for flies or other pests is hereby declared to be a public nuisance. Upon delivery of a written "Notice to Clean" by the department of health, animal care services or development services or their representatives, an animal owner or any adult occupant of the premises identified in said notice shall abate the therein described public nuisance on the premises within twenty-four (24) hours. Delivery shall be accomplished either by hand to the animal owner or keeper or any adult occupant of the residence, or by posting in a conspicuous place on the main entrance fence gate of the premises or main entrance door of the structure on the premises, or by certified mail, return receipt requested.

(d) The director of health, the director of animal care services and the director of development services or their designees are separately authorized and empowered to enforce the provisions of this section, and may summarily abate and remove any immediate public health and safety hazard due to the presence of animals by declaring the conditions to be an immediate public health hazard and public nuisance, and shall execute an administrative order that the premises be cleaned to city health code standards by the city or its contractor within twenty-four (24) hours. All three (3) said directors are each individually authorized to petition a justice or municipal court for a court order for the seizure of a particularly described animal or all animals kept on the subject premises to be impounded and cared for as abused or neglected animals pending a hearing before the court in accordance with V.T.C.A., Health and Safety Code § 821.022. (Ord. No. 2010-06-17-0555, § 1, 6-17-10; Ord. No. 2017-10-05-0755, § 1, 10-5-17)

Sec. 5-19. Leash and pooper scooper required.

An animal owner or keeper shall not walk an animal without a leash restraint, and shall not guide or take animals onto the yards or driveways of property not owned, leased or occupied by the animal owner for the purpose of allowing the animal to defecate, but shall keep the animal in the public right-of-way, and shall carry a container and implement for the sanitary removal of the animal's fecal matter from the public sidewalk and public right-of-way adjacent to any property with a structure or other improvements thereon. (Ord. No. 2010-06-17-0555, § 1, 6-17-10)

Sec. 5-20. Fastening animals.

(a) No animal shall be hitched, tied or fastened by any tying device (to include a pulley system) and must wear a properly fitted collar or harness made of leather or nylon, not of the choker type. The collar or harness must have been specifically designed to be used for the animal being tethered. The tying device (to include pulley systems) shall be attached to the animal's collar or harness and shall be at least ten (10) feet in length and must have a swivel device on the anchor and collar end to prevent tangling. The tying device (to include a pulley system) must provide at least one hundred fifty (150) square feet of unobstructed space.

(b) An owner may not tether an unattended animal outside by use of a restraint that is composed primarily of a chain, has weights attached or is not attached to a properly fitted collar or harness.

(c) No person shall tether their dog using a collar exceeding one and one-half (1½) inches wide for any dog weighing less than sixty (60) pounds. Dogs weighing sixty (60) pounds or more shall not be tethered using a collar exceeding two (2) inches in width. The collar must be adjusted to provide at least the circumstance of the animal's neck plus one (1) inch.

(d) An animal that is tethered must have access to adequate shelter, clean water, dry ground and shade from direct sunlight at all times.

(e) A person shall not tether an animal with a tying device that weighs more than one-tenth (1/10) of the animal's body weight.

(f) No person shall tether a puppy, sick or injured animal or a female dog while the dog is in estrus.

(g) In accordance with the Texas Health and Safety Code, an owner may not leave a dog outside and unattended by use of a restraint that unreasonably limits the dog's movement in the case of extreme weather conditions, including conditions in which the actual or effective outdoor temperature is below thirty-two (32) degrees Fahrenheit; a heat advisory has been issued by a local or state authority or jurisdiction; or a hurricane, tropical storm, or tornado warning has been issued for the jurisdiction by the National Weather Service.
(Ord. No. 2010-06-17-0555, § 1, 6-17-10; Ord. No. 2017-10-05-0755, § 1, 10-5-17)

Sec. 5-21. Unlawful acts; criminal penalties; civil remedies.

(a) Unless otherwise specifically provided for in this chapter, if it is found that a person intentionally, knowingly or recklessly violated any provision of this chapter, then upon conviction a person shall be fined an amount not less than one hundred dollars ($100.00) and not more than two thousand dollars ($2,000.00) except that, in the event a person has once previously been convicted under this chapter, the person shall be fined an amount not less than five hundred dollars ($500.00) and shall be fined not less than seven hundred and fifty dollars ($750.00) for a third conviction and for each conviction thereafter.

(b) If it is found that a person intentionally, knowingly or recklessly violated sections 5-4, 5-5, 5-7, 5-8, 5-11, 5-16, 5-23, 5-77, and 5-106, then upon conviction a person shall be punished by a minimum fine of five hundred dollars ($500.00) and a maximum fine of two thousand dollars ($2,000.00) for a first offense, a minimum fine of one thousand dollars ($1,000.00) and a maximum fine of two thousand dollars ($2,000.00) for a second offense, and a fine of two thousand dollars ($2,000.00) for a third and subsequent offense.

(c) If it is found that a person intentionally, knowingly or recklessly violated subsection 5-150(3), then upon conviction a person shall be punished by a fine of not less than one thousand dollars ($1,000.00) for a first offense, a fine of not less than one thousand five hundred dollars ($1,500.00) for a second offense, and a fine of not less than two thousand dollars ($2,000.00) for a third and subsequent offense.

(d) Nothing in this section shall limit any and all other criminal, civil or administrative remedies available to the city in seeking to enforce the provisions of this chapter. Each day's violation thereof shall constitute a separate offense.

(e) Where it is deemed necessary by the city manager and the director, the city attorney's office is hereby empowered to secure injunctive relief to enforce the provisions of this chapter. This shall be in addition to, and not in lieu of, the criminal penalties provided for in this chapter.
(Ord. No. 2010-06-17-0555, § 1, 6-17-10; Ord. No. 2013-11-21-0803, § 2, 11-21-13; Ord. No. 2017-10-05-0755, § 1, 10-5-17; Ord. No. 2020-10-29-0772, § 1, 10-29-20; Ord. No. 2024-12-05-0950, § 2, 12-5-24; Ord. No. 2025-09-11-0621, § 2, 9-11-25)

Sec. 5-22. Rental fee authorized for the animal care services facility annex facility.

The department is authorized to charge a rental fee for the rental of a training room at the animal care services facility annex facility. The director may without council action enter into agreements pertaining to the rental of the annex facility for educational, training or community purposes.
(Ord. No. 2010-06-17-0555, § 1, 6-17-10)

Sec. 5-23. Abandonment.

(a) Abandonment of non-livestock and livestock animals, excluding uncaptured wild living creatures, is a violation of the Texas Penal Code

and depending on the circumstances, is a class A misdemeanor, state jail felony, or a felony of the third degree.

(b) It shall be a violation of this code for a person to intentionally, knowingly or recklessly abandon or release any animal anywhere in the city that has been trapped and within a person's control and possession except if a person is trapping and releasing animals as authorized by any sections of this chapter or by state law. A violation of this subsection is punishable as described in section 5-21.
(Ord. No. 2025-09-11-0621, § 2, 9-11-25)

Sec. 5-24. Reserved.

ARTICLE II. ANIMAL CARE SERVICES ADVISORY BOARD

Sec. 5-25. Creation; composition; term of service.

(a) There is hereby created the animal care services advisory board, which shall consist of fourteen (14) members. Eleven (11) of the members of this board shall be appointed by the city council, one (1) from each city council district and one (1) by the mayor. Each of these appointees shall serve on said board for a term of two (2) years in accordance with the city's boards and commissions rules codified in chapter 2, article IX of this Code. The health department director, the animal care services department director and the city manager or designees shall be ex-officio non-voting members of the board.

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(b) The animal care services advisory board shall include among its membership at least one (1) licensed veterinarian; one (1) city official; one (1) person whose duties include the daily operation of an animal shelter; and one (1) representative from an animal welfare organization.

(c) The animal care services advisory board shall meet at least three (3) times a year.
(Ord. No. 2010-06-17-0555, § 1, 6-17-10)

Sec. 5-26. Duties and powers.

(a) The animal care services advisory board shall visit the animal care services facility of the city at times selected by the board, and shall inspect all phases of the operation at the facility. To this end, board members shall have access, for observation purposes only, to all areas of the animal care services facility.

(b) The board shall submit quarterly reports to the city council, through the city manager, concerning the operation of the animal care services facility and the animal care services program, together with its recommendations and/or advice concerning same.

(c) The board shall further advise the city council, through the city manager, on any aspect of animal care services which in the board's opinion merits the attention of the city.
(Ord. No. 2010-06-17-0555, § 1, 6-17-10)

Secs. 5-27—5-49. Reserved.

ARTICLE III. LIVESTOCK

Sec. 5-50. Swine.

It shall be unlawful to keep or maintain swine within the city other than for the purposes and at the locations indicated below:

(1) Exhibition at stock shows, fairs, circuses and zoological institutions;

(2) When located at and on the property of any vocational school, with facilities properly constructed as determined by the department;

(3) Slaughtering establishments;

(4) When offered for sale at stock yards or auction barns adjacent thereto;

(5) When kept at the home of an FFA (Future Farmers of America) member under the supervision of a high school vocational agricultural teacher or of a 4-H member under the supervision of the county agricultural agent, subject to the following conditions:

a. Each enrollee shall obtain a permit from the department before commencing a project. The form of application for permits shall be prescribed by the department. No fees shall be charged for such permits;

b. The property upon which the FFA or 4-H enrollee resides and maintains the swine must be a minimum of one (1) acre in area with a maximum of five (5) swine;

c. The minimum pen size shall be six hundred twenty-five (625) square feet per hog over fifty (50) pounds, and the pen must be covered with a roof having a minimum of one hundred (100) square feet per hog with a minimum pen width of fifteen (15) feet;

d. All swine must be grain fed;

e. Swine must be on a self-waterer or similar equipment approved by the department. There shall be a slab or other solid type construction under the tank covering the area of four (4) feet in each direction;

f. Hog wallows are prohibited;

g. The open and adjacent areas must be kept clean;

h. Enrollees must be under close supervision of a vocational agricultural teacher or the county agricultural agent. If an enrollee does not conform to city regulations, such advisor will report the viola-

tion to the department and maintaining swine at the location shall be terminated immediately;

i. The pen shall be a minimum of one hundred fifty (150) feet from any dwelling or business building owned or occupied by any person other than the owner of the swine or person keeping and maintaining same; and

j. Enrollees must be certified by letters to the department by the county agricultural agent for 4-H members and by the high school principal for FFA members giving the names of the vocational agriculture teachers or advisors supervising the enrollees and their projects, and such other information as the department may require. Such officials shall notify the department of the termination of an enrollee's projects.

(Ord. No. 2010-06-17-0555, § 1, 6-17-10; Ord. No. 2017-10-05-0755, § 1, 10-5-17; Ord. No. 2020-10-29-0772, § 1, 10-29-20)

Sec. 5-51. Removal of animal wastes at stock shows; parking of stock trucks.

(a) Manure and other animal wastes from animals held at stock shows, fairs, circuses and carnivals, shall be removed daily to a place approved by the department.

(b) Stock trucks and stock cars which have been used for the transportation of livestock, if parked in any area within the city other than the stockyards, shall have all animal waste removed and the vehicle thoroughly cleaned. Such cleaning shall be accomplished at a place designated by the department.

(Ord. No. 2010-06-17-0555, § 1, 6-17-10; Ord. No. 2017-10-05-0755, § 1, 10-5-17)

Sec. 5-52. Keeping of bovines, equines, sheep, and goats.

(a) Regulation of horse drawn carriages shall be governed by the provisions of chapter 33.

(b) An owner of livestock shall provide a minimum of five hundred (500) square feet of pen of which one hundred (100) square feet is under roof must be provided for each head of bovines or equines and, for each head of sheep or goat, shall provide a minimum of two hundred (200) square feet of pen of which forty (40) square feet is under roof.

(c) Any boarding stable or riding stable or academy must contain at least four hundred (400) square feet of space, of which one hundred (100) square feet is under roof, for each of such animals kept or maintained on the premises. The other provisions of this section shall not apply if the premises are zoned for operation of a riding stable or academy.

(d) The keeping of more than the maximum number of livestock permitted under this chapter is hereby declared to be an animal nuisance, and may be abated after notice has been provided to the owner and an opportunity to voluntarily come into compliance has been given by the director. Upon delivery of a written "Notice to Remove Livestock" by the department, an animal owner or any adult occupant of the premises identified in said notice shall abate the therein described animal nuisance on the premises within ten (10) days from the date of notice. Delivery shall be accomplished either by hand to the animal owner or keeper or any adult occupant of the residence, or by posting in a conspicuous place on the main entrance fence gate of the premises or main entrance door of the structure on the premises, or by certified mail, return receipt requested. After proper notice, the animal nuisance may be abated by the director by seizing and impounding any unlawfully kept number of livestock and, after an administrative hearing, either euthanizing them or releasing them to any person or organization approved by the director, offering to lawfully keep and care for them.

(Ord. No. 2010-06-17-0555, § 1, 6-17-10; Ord. No. 2017-10-05-0755, § 1, 10-5-17; Ord. No. 2020-10-29-0772, § 1, 10-29-20)

Secs. 5-53—5-74. Reserved.

ARTICLE IV. DANGEROUS AND AGGRESSIVE DOGS*

Sec. 5-75. Dangerous dogs.

Dangerous dogs shall be defined in accordance with V.T.C.A., Health and Safety Code ch. 822, § 822.041, as referenced below and shall be determined and regulated in accordance with said chapter.

Dangerous dog means a dog that:

(1) Makes an unprovoked attack on a person that causes bodily injury and occurs in a place other than an enclosure in which the dog was being kept and that was reasonably certain to prevent the dog from leaving the enclosure on its own; or

(2) Commits unprovoked acts in a place other than an enclosure in which the dog was being kept and that was reasonably certain to prevent the dog from leaving the enclosure on its own and those acts cause a person to reasonably believe that the dog will attack and cause bodily injury to that person.

(Ord. No. 2017-10-05-0755, § 1, 10-5-17)

Sec. 5-76. Investigation, seizure and confinement of alleged dangerous dog and determination of a dangerous dog.

(a) Upon receipt of a sworn affidavit of complaint, signed by one (1) or more individuals before an individual authorized by law to make sworn statements, the department shall investigate the complaint. The complaint shall contain a description of the incident involving an alleged dangerous dog, as defined above, the date and location of the incident, the name of the owner of the dog, the address of the owner, and a description of the dog(s) involved in the incident. Said investigation may include discussing the incident with the owner/keeper of the dog. The owner/keeper of the dog shall have the right to provide an affidavit or statement concerning his or her own dog.

(b) After receiving a sworn affidavit of complaint and upon making a decision that seizure is a reasonable precaution to ensure the health and safety of people nearby, the director may order the immediate seizure and impound of the dog. An administrative search warrant shall be obtained from any municipal court magistrate to enter onto private property to search for a dog which is allegedly dangerous or has been previously determined to be dangerous, if permission to enter the subject premises is denied by a person in lawful possession. If the dog cannot be safely approached, a tranquilizer projector may be used by department personnel. The cost of securing said dog(s) shall be borne by the owner. If a dog is determined to be dangerous, it will remain in confinement as directed by the director. A dog that has been determined to be dangerous cannot be released back to the owner until the owner is able to demonstrate the ability to comply with all the requirements for dangerous dogs as outlined in section 5-77.

(c) An animal care officer may impound an alleged dangerous dog if the officer has cause to believe that a dog is dangerous as defined above.

(d) The department shall determine whether a dog is dangerous. Within five (5) working days after the dog is deemed dangerous, the department will notify the owner of the dog, of the dangerous dog determination and appeal rights as set out in section 5-79 by written notice. The notice shall include the reason for the allegation, and all requirements for owners of a dog determined to be dangerous as set out in section 5-77.

(Ord. No. 2017-10-05-0755, § 1, 10-5-17; Ord. No. 2020-10-29-0772, § 1, 10-29-20)

Sec. 5-77. Requirements of dangerous dog owners.

(a) An owner of a dog determined to be dangerous, shall comply with all of the following ten (10) requirements before the subject dog can be released to the owner by the department. The

*__Editor's note—__Ord. No. 2017-10-05-0755, § 1, 10-5-2017, amended article IV in its entirety to read as herein set out. Formerly, article IV pertained to similar subject matter, and derived from Ord. No. 2010-06-17-0555, § 1, adopted June 17, 2010; Ord. No. 2011-10-20-0863, § 2, adopted October 20, 2011, and Ord. No. 2015-04-30-0354, § 2, adopted April 30, 2015.

department must, however, release the dog to the owner if a state licensed veterinarian with a facility located within the city verifies, upon being contacted by a city veterinarian or department, that the owner has arranged for the required surgery of the dangerous dog to comply with this article, and if necessary, a city veterinarian has implanted the required registered microchip in the dog, has inspected the residence where the dog is to be kept, and is satisfied that the following requirements which could have already been complied with have been complied with by the owner:

(1) The dog must be registered with the department and shall annually obtain a dangerous dog permit;

(2) The dangerous dog shall at all times wear a collar approved by the department visible at fifty (50) feet so that the dog can be identified as a dangerous dog. The department is authorized to charge the dog owner a fee to cover the cost of this collar;

(3) The dangerous dog must be kept in an enclosure as defined in section 5-1 of this chapter;

(4) The owner must present to the department a certificate of public liability insurance in the amount of one hundred thousand dollars ($100,000.00) to cover any injuries caused by the dangerous dog. The insurance shall be kept in effect continuously and shall not be cancelled unless the dog is no longer kept by the insured owner;

(5) The dangerous dog, when taken outside the enclosure, shall be kept secured by a sturdy leash of a maximum four (4) feet in length and maintained muzzled in a manner that will not cause injury to the dog nor interfere with its vision or respiration. The department is authorized to charge the dog owner a fee to cover the cost of this leash;

(6) The owner shall post no less than two (2) signs on his or her premises warning that there is a dangerous dog on the property. This sign shall be visible and capable of being read from the public street or highway. In addition, the department shall issue a uniform dangerous dog symbol or decal, understandable by small children which shall be made available at cost to the public. Such symbol or decal must be displayed on or about the sign;

(7) If the dog does not have a registered microchip, the owner shall authorize the department to implant a registered microchip beneath the skin of the dangerous dog for positive identification of the animal;

(8) At the owner's expense, the dangerous dog must be spayed or neutered either by the department or, at the discretion of the department, by a veterinarian approved by the department prior to being released back to its owner;

(9) At the owner's expense, the owner must complete a class on responsible pet ownership conducted by an organization approved by the department within two (2) months after the determination; and

(10) The owner must allow an annual inspection of the residence where the dog is kept in order for the department to verify continued compliance with all requirements of this section. More frequent inspections may be conducted in response to specific complaints regarding noncompliance with this section.

(b) If the owner of a dog determined to be dangerous is unable or unwilling to comply with the ownership requirements listed above within thirty (30) days of the determination hearing, the dog must be euthanized by an animal shelter, animal care agency, licensed veterinarian or the department.

(Ord. No. 2017-10-05-0755, § 1, 10-5-17; Ord. No. 2020-10-29-0772, § 1, 10-29-20)

Sec. 5-78. Hearing to determine compliance with dangerous dog requirements.

(a) V.T.C.A., Health and Safety Code § 822.0423 provides that a municipal court may conduct a hearing to determine whether the owner of a dangerous dog has complied with the requirements for the owner of a dangerous dog.

(b) Upon an application from any person, the municipal court shall conduct a hearing to determine compliance with dangerous dog requirements.

(c) A municipal court judge shall conduct a hearing to determine whether the preponderance of the evidence supports the allegation that the owner has failed to comply with dangerous dog requirements.

(d) The municipal court judge shall be the finder of fact.

(e) At the conclusion of the hearing, if the municipal court judge finds that the owner has failed to comply with the dangerous dog requirements, the judge shall order the seizure of the dog in accordance with V.T.C.A., Health and Safety Code § 822.042.

(f) An owner or the person who filed the application for the hearing may appeal the decision of the municipal court in the manner provided for the appeal of cases from municipal court.

(g) The municipal court judge may compel the attendance of the applicant, any known witnesses, the dog owner against whom the application was filed, and the director or his or her representative who investigated. Any interested party, including the city attorney or an assistant city attorney, may present evidence at the hearing.
(Ord. No. 2017-10-05-0755, § 1, 10-5-17; Ord. No. 2020-10-29-0772, § 1, 10-29-20)

Sec. 5-79. Appeal of dangerous dog determination.

Appeal of a dangerous dog determination shall be in accordance with V.T.C.A., Health and Safety Code § 822.0421.
(Ord. No. 2017-10-05-0755, § 1, 10-5-17)

Sec. 5-80. Notification of change of status; disposition of dangerous dog.

The owner/keeper of a dangerous dog shall notify the department within twenty-four (24) hours if their dangerous dog is loose, unconfined, has attacked another animal, has attacked a person, or has died. A dog determined to be dangerous under this chapter shall not be offered for adoption, rescue or sale or be given away. If the owner wishes to dispose of the dangerous dog, the owner shall return the dog to the department.
(Ord. No. 2017-10-05-0755, § 1, 10-5-17)

Sec. 5-81. Dangerous dog violations.

(a) A person commits an offense under state law, pursuant to the Texas Health and Safety Code, if the person is the owner of a dangerous dog and the dog makes an unprovoked attack on another person outside the dog's enclosure and causes bodily injury to the other person.

(b) It shall be a violation of this chapter for an owner or keeper to intentionally, knowingly, or recklessly fail to prevent a dangerous dog, from killing or wounding, or assisting in the killing or wounding of any domestic animal belonging to or in the possession of another person, or for an owner or keeper to fail to prevent a dangerous dog from attacking, assaulting, biting or otherwise injuring any person or assisting in the attack, assault, biting, or other injury of any person whether out of or within the enclosure of the owner or keeper, and whether or not such dangerous dog was on a leash or securely muzzled or whether or not the dangerous dog escaped without the knowledge or consent of the owner or keeper. If a person is found guilty of an offense under this section, the court may order the dangerous dog destroyed in an expeditious and humane manner.

(c) It shall be a violation of this chapter for the owner or keeper of a dangerous dog to:

(1) Fail to comply with any of the requirements of section 5-77 as required;

(2) Fail to notify the department of a change of status as set out in section 5-80; or

(3) Fail to keep the dog confined at no cost to the city during the hearing process.

(d) The provisions under this section shall not apply to any law enforcement agency where a dog is being used for law enforcement.

(e) A rebuttable presumption shall exist that the owner or keeper knowingly allowed a dangerous dog to be kept in inadequate confinement in any criminal complaint filed under subsection (b).
(Ord. No. 2017-10-05-0755, § 1, 10-5-17)

Sec. 5-82. Aggressive dogs; levels defined.

Classification of a dog as aggressive shall be based upon specific behaviors exhibited by the dog. For purposes of this chapter, behaviors establishing various levels of aggressive dogs are the following:

(1) Level 1 behavior is established if:

a. A dog while in the enclosure in which the animal was being kept acts to cause a person to reasonably believe that the animal will engage in an unprovoked attack and cause bodily injury to that person; or

b. An unrestrained dog is found to menace, chase, display threatening or unprovoked aggressive behavior or otherwise threaten or endanger the safety of a domestic animal.

(2) Level 2 behavior is established if a dog, while unrestrained, causes physical injury to any domestic animal or livestock.

(3) Level 3 behavior is established if:

a. A dog, while unrestrained, kills or causes the death of any domestic animal or livestock, or

b. A dog classified as a level 2 aggressive dog that repeats the behavior in subsection (2) after the owner or keeper receives notice of the level 2 classification.

(4) Notwithstanding subsections (1), (2), and (3), the director shall have discretionary authority to refrain from classifying a dog as aggressive, even if the dog has engaged in the behaviors specified in subsections (1), (2), and (3), if the director determines that the behavior was the result of the victim abusing or tormenting the dog or was directed towards a trespasser or other similar mitigating or extenuating circumstances.
(Ord. No. 2017-10-05-0755, § 1, 10-5-17)

Sec. 5-83. Investigation, seizure, confinement, and designation of aggressive dogs.

(a) The department shall have authority to determine whether any dog has engaged in the behaviors specified in section 5-82. This determination may be based upon an investigation that includes observation of and testimony about the dog's behavior, including the dog's upbringing and the owner's or keeper's control of the dog, and other relevant evidence as determined by the department. These observations and testimony can be provided by animal care officers or by other witnesses who personally observed the behavior. The witness(es) shall sign an affidavit attesting to the observed behavior and agree to provide testimony regarding the dog's behavior if necessary.

(b) After receiving a sworn affidavit of complaint and upon making a decision that seizure is a reasonable precaution to ensure the health and safety of people nearby, the department may order the immediate seizure and impound of the dog. An administrative search warrant shall be obtained from any municipal court magistrate to enter onto private property to search for a dog which is allegedly aggressive or has been previously determined to be aggressive, if permission to enter the subject premises is denied by a person in lawful possession. If the dog cannot be safely approached, a tranquilizer projector may be used by department personnel. The cost of securing said dog(s) shall be borne by the owner. If a dog is determined to be aggressive, it will remain in confinement as directed by the department. A dog that has been determined to be aggressive may not be released back to the owner until the owner is able to demonstrate the ability to comply with all the requirements for aggressive dogs as outlined in section 5-85.

(c) The director shall have the discretion to increase or decrease a classified dog's restrictions based upon relevant circumstances.

(d) The department shall give the dog's owner or keeper written notice of the dog's specified behavior, of the dog's classification as aggressive, and of the restrictions applicable to that dog by reason of its classification.

(e) Upon receipt of notice of the dog's classification as a level 1, 2, or 3 aggressive dog pursuant to subsection (c), the owner or keeper shall comply with the restrictions specified in the notice unless reversed on appeal. Upon final determination and after appeals are exhausted, the owner will have thirty (30) days to sterilize the animal. Failure to comply with the specified restrictions shall be a violation of this chapter for which a fine can be imposed. Additionally, the department shall have authority to impound the dog pending completion of all appeals.

(f) If the department's decision finds that a dog has engaged in aggressive behavior, the dog may be impounded pending the completion of any appeals.

(g) Any dog classified as a level 3, that is found to have repeated level 3 behavior as defined under this code, shall be impounded if not already impounded. The dog shall not be released to the owner or be made available for adoption until either potential recipient of the dog has established arrangements for accommodating the animal consistent with all the security and safety requirements ordered by the department.
(Ord. No. 2017-10-05-0755, § 1, 10-5-17; Ord. No. 2020-10-29-0772, § 1, 10-29-20)

Sec. 5-84. Appeal of aggressive dog determination to municipal court.

(a) An owner may appeal an aggressive dog determination within fifteen (15) days after receiving notice of the determination by:

(1) Filing a written notice of appeal of the department's aggressive dog determination to municipal court;

(2) Attaching a copy of the determination from the department; and

(3) Serving a copy of the notice of appeal to the department by certified mail.

(b) A municipal court judge shall conduct a hearing to determine whether the preponderance of the evidence supports the aggressive dog determination.

(c) The municipal court judge shall be the finder of fact. As such, the municipal court judge may compel the attendance of the complainant, any known witnesses, the dog owner against whom the complaint was filed, and department staff who investigated. Failure of the owner of the animal to appear at the hearing shall result in a final classification with no further appeal. The owner may be represented by counsel.

(d) At the conclusion of the hearing, the municipal court may affirm or reverse the aggressive dog determination.

(e) The result of the administrative appeal hearing is final.
(Ord. No. 2017-10-05-0755, § 1, 10-5-17)

Sec. 5-85. Regulation of aggressive dogs.

In addition to the other requirements of this chapter, the owner or keeper of an aggressive dog shall comply with the following conditions:

(1) Dogs classified as level 1 or 2 shall be restrained, so as not to be at large, by a physical device or structure in a manner that prevents the dog from reaching any public sidewalk or adjoining property and must be located so as not to interfere with the public's legal access to the owner's or keeper's premises whenever that dog is outside the owner's or keeper's home and not on a leash. In addition, the director may require the owner or keeper to obtain and maintain proof of public liability insurance in the amount of one hundred thousand dollars ($100,000.00).

(2) Dogs classified as level 3 shall be confined, so as not to be at large, by a physical device or structure in a manner that prevents the dog from reaching any public sidewalk or adjoining property and must be located so as not to interfere with the public's legal access to the owner's or keeper's premises whenever that dog is outside. The owner or keeper shall restrict

the dog to the owner's or keeper's property unless the dog is restrained by an adequate leash under the control of a capable person and muzzled in a manner that will not cause injury to the dog nor interfere with its vision or respiration. The owner or keeper of a level 3 aggressive dog shall post no less than two (2) warning signs on the property where the dog is being kept and shall not permit the warnings signs to be removed. In addition, the director may require the owner or keeper to obtain and maintain proof of public liability insurance in the amount of one hundred thousand dollars ($100,000.00).

(3) To ensure correct identification, all dogs that have been classified as aggressive shall be microchipped and photographed, and may be fitted with a special tag or collar determined by the department at the owner's expense.

(4) The animal must have a registered microchip and obtain an annual aggressive dog permit from the department.

(5) The owner or keeper of a level 3 aggressive dog shall not permit the warning sign to be removed from the secure enclosure. The owner or keeper of any aggressive dog shall not permit the special tag or collar to be removed from the dog. The owner or keeper of an aggressive dog shall not permit the dog to be moved to a new address or change owners or keepers without providing the director with ten (10) days' prior written notification.

(6) At the owner's expense, the aggressive dog must be spayed or neutered either by the department or, at the discretion of the department, by a veterinarian approved by the department prior to being released back to its owner.

(7) At the owner's expense, the owner must complete a class on responsible pet ownership conducted by an organization approved by the department within two (2) months after the dog has been classified as aggressive. If the department takes ownership of the animal, then the director may waive this requirement for any subsequent owner of the animal.

(Ord. No. 2017-10-05-0755, § 1, 10-5-17; Ord. No. 2020-10-29-0772, § 1, 10-29-20)

Sec. 5-86. Declassification of aggressive dogs.

Declassification will be automatic pursuant to this section.

(1) The following conditions must be met:

a. Level 1 or level 2 dogs have been classified for one (1) year without further incident, and two (2) years for level 3 dogs; and

b. There have been no violations of the specified regulations.

(2) When the owner or keeper of an aggressive dog meets all of the conditions in this chapter, the restrictions for level 1 and level 2 classified dogs may be removed. Restrictions for level 3 may be removed, with the exception of the secure enclosure.

(Ord. No. 2017-10-05-0755, § 1, 10-5-17)

Sec. 5-87. Payment for cost of confinement.

(a) The owner of a dog impounded by the department must pay the costs of care of the dog while it is in the custody of the department prior to the release of the dog to the owner. Reasonable expenses for this care include, but are not limited to the cost of housing, feeding, emergency veterinary medical care, immunizations and routine veterinary medical care for the dog.

(b) If a dog is held in impoundment by the department for more than twenty (20) days, the owner of the dog must pay the actual costs accrued for the first twenty (20) days of impoundment, and every twenty (20) days thereafter until the matter for holding the dog has been finalized. The department will mail a notice and statement of costs to the owner of the dog at the address on file with the department. All costs must be paid within a maximum of three (3) business days following the receipt of the notice and statement. If the costs have not been paid within the allotted three (3) business days, this

will be considered a voluntary relinquishment of the dog by the owner and the dog shall immediately become the property of the city.

(c) Costs must be paid to the department in cash or certified funds only. The costs shall be deposited into the city's general trust fund, in a subaccount specific for each case.
(Ord. No. 2017-10-05-0755, § 1, 10-5-17)

Secs. 5-88—5-99. Reserved.

ARTICLE V. ANIMAL MICROCHIPPING, PERMITS, AND LICENSES*

Sec. 5-100. Microchipping required.

(a) The owner or keeper of any equine, dog or cat must have the animal implanted with a registered microchip before the animal attains four (4) months of age. An equine, dog or cat is exempt from this requirement if the equine, dog or cat is determined to be medically unsuitable for microchipping by a licensed veterinarian in writing. If the animal is determined to be medically unsuitable for microchipping, the owner shall have the animal permanently marked with an identifying tattoo by a licensed veterinarian. Proof of medical unsuitability for microchipping along with the identifying tattoo number and owner's or keeper's name, address and telephone number must be provided to the department within thirty (30) days of tattooing. If there is a change in contact information, the owner or keeper of a tattooed animal shall update contact information with the department within thirty (30) days of the date of the change in contact information. If there is a change in ownership of a tattooed animal the initial owner or keeper shall be responsible for notifying the department of the change within thirty (30) days of the date of change in ownership. The new owner or keeper shall be responsible for providing the department with the new owner's or keeper's name, address and telephone number within thirty (30) days after the change in ownership.

(b) It is a defense to prosecution under this section that:

(1) The equine, dog or cat owner is a nonresident of this city and is keeping the subject animal in the city for fewer than sixty (60) days;

(2) The animal owner has been a resident of this city for fewer than thirty (30) days; or

(3) The animal had been abandoned or lost and the temporary owner has had the equine, dog or cat for fewer than thirty (30) days.

(Ord. No. 2017-10-05-0755, § 1, 10-5-17)

Sec. 5-101. Maintaining current microchip registration.

(a) The owner or keeper of a dog, cat or equine shall maintain current registration with a microchip registration company.

(b) If there is a change in contact information of an owner or keeper of a registered microchipped equine, dog or cat, the owner or keeper shall update contact information, including new address or telephone number, with the microchip registration company within thirty (30) days of the date of the change in contact information.

(c) If there is a change in ownership of a registered equine, dog or cat, the initial owner or keeper shall be responsible for ensuring that the microchip is no longer registered in the initial owner's or keeper's name within thirty (30) days of the date of change in ownership. The new owner or keeper shall be responsible for re-registering the microchip to include any new address and telephone number and have the registration information transferred to the new owner's or keeper's name within thirty (30) days after the change in ownership.
(Ord. No. 2017-10-05-0755, § 1, 10-5-17)

Sec. 5-102. Wearing tags, exception.

(a) Dogs must wear a tag at all times while outdoors; except that dogs which are kept for show or exhibition purposes are not required to wear such a tag as long as the dogs are otherwise

*__Editor's note—__Ord. No. 2020-10-29-0772, § 1, adopted Oct. 29, 2020, amended art. V and in so doing changed the title of said article from animal microchipping and permits to read as set out herein.

under restraint. The tag shall include either the dog's microchip number, or the current address or telephone number of the dog owner.

(b) Cats and equines shall not be required to wear a tag with the registered microchip number on a collar.
(Ord. No. 2017-10-05-0755, § 1, 10-5-17; Ord. No. 2020-10-29-0772, § 1, 10-29-20)

Sec. 5-103. Nontransferability.

No person may use a registered microchip number for any animal other than the one for which it was issued.
(Ord. No. 2017-10-05-0755, § 1, 10-5-17)

Sec. 5-104. Review upon frequent violations.

The department shall review any and all animal registrations for any animal owners against whom four (4) or more convictions have been obtained within a period of one (1) year under the provisions of this chapter and shall notify the subject animal owner of said convictions and possible seizure and impoundment if, after the director conducts an administrative hearing, and determines that the public health and safety are at risk while the animal owner or any member of this household has possession or control of the subject animals. Certified mail notice of the time and place of said hearing shall be mailed to the last known address of the animal owner at least ten (10) days prior to said hearing.
(Ord. No. 2017-10-05-0755, § 1, 10-5-17)

Sec. 5-105. Litter permit; sterilization required for violation.

Any person whose female dog or cat has a litter must obtain a litter permit prior to the litter's birth. One (1) litter permit shall be required for each whelping female dog or cat. No female dog or cat shall whelp more than one (1) litter over a twelve (12) month period of time.

(1) If an owner violates this section, the owner shall be required to sterilize the whelping dog or cat and each litter member within sixty (60) days of receiving a citation for violation of this section. It shall be the owner's responsibility to provide to the department proof of sterilization of the whelping dog or cat and each litter member prior to the required deadline. The department has the authority to extend or exempt this requirement if proof of need (such as medical necessity) is provided.

(2) An owner in violation of this section shall not dispose of or divest ownership of the whelping mother or any member of the litter until the sterilization requirement is met and the department has received proof of sterilization.

(3) This section does not apply to caretakers of feral cat colonies or animal rescue organizations with an active animal rescue organization license issued by the department.

(Ord. No. 2017-10-05-0755, § 1, 10-5-17; Ord. No. 2020-10-29-0772, § 1, 10-29-20)

Sec. 5-106. Seller's permit; sterilization required for violation.

(a) Any person who sells or offers for sale one (1) or more animals must obtain a seller's permit.

(1) Each seller's permit shall be valid for one (1) animal or one (1) litter.

(2) The seller's permit number shall be prominently displayed in all advertisements, notices, or displays for sale of the animals.

(3) Each permit applicant shall be required to have taken in the prior two (2) years a department approved responsible pet ownership course prior to the approval of a seller's permit.

(4) A seller's permit holder shall provide a purchaser a written statement which shall include a guarantee of good health for a period of not less than two (2) weeks with a recommendation to have the animal examined by a licensed veterinarian.

(5) A person who obtains a pet shop license or animal rescue organization license

issued by the department shall not be required to obtain a seller's permit under this section.

(6) A person who obtains a litter permit is still required to obtain a sellers permit if the person intends to sell the litter. If a litter permit and seller permit are requested simultaneously, the seller's permit fee may be waived.

(7) If a person fails to obtain a permit after notice, then the department shall be authorized to impound the animals.

(8) If an animal seller violates this section, the seller shall be required to sterilize all dogs and cats present at the location of the sale within sixty (60) days of receiving a citation for violation of this section.

(Ord. No. 2017-10-05-0755, § 1, 10-5-17; Ord. No. 2020-10-29-0772, § 1, 10-29-20)

Sec. 5-107. Animal limits; excess animal permit.

(a) A maximum number of eight (8) cats or five (5) dogs, or an aggregate number of eight (8) is permitted at a residence. In order to have more dogs and/or cats than this chapter allows at a residence, an owner must apply for an excess animal permit which shall be valid for one (1) year.

The criteria used to evaluate the granting of a dog or cat permit are as follows:

(1) All dogs and cats for which a permit is required must be sterilized, unless the dog(s) or cat(s) qualifies for a certified medical exception by a licensed veterinarian or is under four (4) months old.

(2) All dogs and cats must be currently vaccinated for rabies.

(3) All dogs and cats must have a registered microchip.

(4) The dogs and/or cats must not be housed exclusively outside and no more than five (5) dogs may be housed outside between the hours of 10:00 p.m. and 6:00 a.m.

(5) The primary form of restraint for any dog shall not be tethering.

(6) Each dog must have access to its own shelter when housed outside.

(7) There must be a minimum of four hundred fifty (450) square feet of unobstructed housing space available per animal. The department shall have the discretion to increase the minimum square feet required when the requesting permit is for larger dogs.

(8) All dogs and cats must have a photograph of each animal attached to an animal profile sheet that will be kept on record as verification of the animals allowed in the permit. Rescuers with an animal rescue organization license shall be exempt from the photograph and profile sheet requirement for those animals that are temporarily being housed at the location for less than four (4) months.

(9) If the owner of the dogs and/or cats is not the owner of the property, the permission of the property owner must be obtained before a permit application will be processed.

(10) A check will be made to determine if there are any previous valid complaints. A previous valid complaint can be grounds for the denial of a permit request.

(11) The requestor must have adequate property or facilities to ensure the dogs and/or cats do not disturb any neighbors. The facilities shall be subject to inspection by the department.

(12) An animal rescue organization and designee(s) of an animal rescue organization with an active animal rescue organization license issued by the department, that are temporarily housing pets (less than four (4) months) with the intent to re-home the pets elsewhere, may exceed the maximum number of pets as long as the animal rescue organization and its designee(s) follow requirements for those with an excess animal permit.

(b) A maximum number of eight (8) domestic fowl is allowed at a residence of which only one (1) may be a rooster.

(1) An owner must comply with the following with regard to domestic fowl:

a. The owner must have adequate facilities to house the domestic fowl and ensure adequate sanitation.

All domestic fowl must be kept in a coop and run that is at least twenty-four (24) square feet in size, or has at least six (6) square feet of space per fowl, whichever is larger.

b. The domestic fowl must be kept housed or confined in a manner that does not allow them to create a nuisance.

c. Sanitation must be addressed in a manner that prevents the attraction of pests.

(2) If an owner desires to exceed the maximum number of domestic fowl specified in subsection (b), an owner must make an application for an excess animal permit with the department which shall be valid for one (1) year. The criteria for evaluating the application for an excess animal permit shall be those listed in subsection (b). In addition, all domestic fowl must be kept in a coop and run not less than fifty (50) feet from any business or dwelling occupied by any person other than the owner. The facilities shall be subject to inspection by the department. An owner with between twenty-six (26) and fifty (50) domestic fowl must keep the animals in a coop and run not less than seventy-five (75) feet from any business or dwelling occupied by any person other than the owner. An owner with fifty-one (51) or more domestic fowl must keep the animals in a coop and run not less than one hundred (100) feet away from any business or dwelling occupied by a person other than the owner and have a business license that demonstrates a need to house over fifty (50) domestic fowl. The facilities shall be subject to inspection by the department.

a. The maximum number of roosters allowed for excess animal permits shall be one (1) rooster for every ten (10) authorized domestic fowl.

b. Up to eight (8) fowl may be allowed to temporarily roam outside the coop and run at a time, but within an enclosed area within the boundaries of the real property of the owner between the hours of 6:00 a.m. and 10:00 p.m.

(c) The total number of livestock allowed at a residence is two (2) animals from the following classes of livestock: Equines; bovines; sheep; goats; and llamas.

(1) All livestock must be enclosed in a pen the nearest point being at least one hundred (100) feet from any dwelling or business building owned or occupied by any person other than the owner. For the purpose of this section, a pen shall mean a fully enclosed space that is adequately sturdy to prevent the livestock from being unrestrained. An owner must comply with the following with regard to livestock:

a. The owner must have adequate facilities to house the livestock and ensure adequate sanitation.

b. The livestock must be kept housed or confined in a manner that does not allow them to create a nuisance.

c. Sanitation must be addressed in a manner that prevents the attraction of pests.

d. Livestock permits are required for every livestock animal.

(2) If an owner desires to exceed the maximum number and type of livestock specified in this section, an owner must make an application for an excess animal permit with the department which shall be valid for one (1) year. The criteria for evaluating the application for an excess

animal permit shall be those listed in subsection (c) and section 5-52 of this chapter.

(d) The total number of rabbits allowed at a residence is ten (10). An owner must comply with the following with regard to rabbits:

(1) The owner must have adequate facilities to house the rabbits and ensure adequate sanitation.

(2) The rabbits must be kept housed or confined in a manner that does not allow them to create a nuisance.

(3) Sanitation must be addressed in a manner that prevents the attraction of pests.

(4) If an animal owner desires to exceed the maximum number of rabbits specified above (ten (10) rabbits), an owner must make an application for an excess animal permit with the department which shall be valid for one (1) year. The criteria for evaluating the application for an excess animal permit shall be those listed in subsection (d). The facilities shall be subject to inspection by the department. The maximum amount of rabbits allowed with an excess animal permit is twenty-five (25).

(e) Any owner, caretaker, or other person who keeps any non-venomous snake over three (3) feet and/or fifteen (15) pounds, in addition to complying with all federal and state laws, regulations, and permit regulations affecting such snake, shall:

(1) Keep the snake at all times in a cage or enclosure of such size and construction and in a manner as to preclude the possibility of escape. Such enclosure shall be of such size as to permit the snake reasonable freedom of movement;

(2) Keep the snake in such a manner so as not to threaten or annoy any person of normal sensitivity; and

(3) Prevent unauthorized access to the snake through adequate safeguards.

(f) The following shall apply for all excess animal permits:

(1) Once a permit is granted, the permittee must obey all rules pertaining to animal ownership within the city and the state. Any valid violation under this chapter, including exceeding the number of animals allowed on the original permit is grounds for revocation of the permit by the department.

(2) If a permit is revoked, the permittee upon notification by the department, will have thirty (30) days to come into compliance with existing numbers limits.

(3) An owner who is denied a permit or whose permit is revoked has the right to appeal the denial or revocation by submitting written notice to the director within fifteen (15) working days of the denial or revocation. Upon the timely receipt of such written notice, the department shall schedule an animal permit hearing. The owner shall be notified of said hearing by certified mail, return receipt requested. If the hearing is not conducted within fifteen (15) working days of the date the notice of appeal is received, the department shall issue the requested permit or reinstate the revoked permit. Failure of the owner of the animal to appear at the permit hearing shall result in a final denial or revocation with no further appeal. The owner may be represented by counsel.

(4) The animal permit hearing officer shall determine whether, by a preponderance of the evidence, a permit should not be denied or revoked based upon evidence, affidavits, and testimony presented at the time of the hearing by the owner, witnesses to any incident which may be germane to such a determination, department personnel, police or any other person possessing information pertinent to such determination. The owner may cross examine witnesses. A record of the hearing shall be kept. The animal permit hearing officer shall issue written factual

findings and a determination as to whether the permit denial or revocation should be reversed within five (5) working days after the animal permit hearing. The owner shall be notified of the animal permit hearing officer's findings and determination by certified mail, return receipt requested.

(5) If the animal permit hearing officer does not reverse the permit denial or revocation, the owner has the right to appeal the determination to municipal court by submitting written notice to the department within five (5) working days of receiving the animal permit hearing officer's determination. Failure to appeal within the time allotted shall result in the animal permit hearing officer's determination as final.

(6) A municipal court judge shall sit as the administrative appeal hearing officer. The administrative appeal hearing officer shall apply a pure substantial evidence review of the animal permit determination. The administrative appeal hearing officer shall consider only the factual record made at the animal permit hearing and decide if the determination of the animal permit hearing officer is reasonably supported by substantial evidence. In addition, the administrative appeal hearing officer is permitted to consider whether the animal permit hearing satisfied the requirements of due process. The administrative appeal hearing officer shall prepare a written memorandum of findings and declare the animal permit hearing officer's determination either affirmed or reversed.

(7) The result of the administrative appeal hearing is final.

(Ord. No. 2017-10-05-0755, § 1, 10-5-17; Ord. No. 2020-10-29-0772, § 1, 10-29-20)

Sec. 5-108. Permit required for circuses, rodeos, animal exhibits, animal shows, petting zoos and recreational animal rides; special exceptions for institutions and special attractions.

(a) Any operator of a circus, rodeo, animal exhibit, or entertainment show, or other persons desiring to bring any non-aquatic mammal into the city to use in a circus, rodeo, animal exhibit or animal show other than a dog show or a cat show where the animals will not be directly accessible to the public, shall first submit a written request to the department for a permit and pay a permit application fee to cover the cost of inspecting the facility where the animal(s) will be kept during the event, which may be for any number of consecutive days. The permit application shall be submitted at least twenty (20) days prior to the event, and shall contain information as to the kind and number of animals involved, records showing animals are up to date on required vaccinations and are considered by a certified veterinarian as healthy, how they will be housed safely and not physically accessible to the public, required state or federal licensing documentation, the reason for bringing the animal(s) to the city, the name and address of the person or business that will keep, feed, and confine the animal(s) during their stay in the city and any other information requested by the department. The director has the authority to determine the requirements necessary with regard to risk to public safety or the safety of the animals for each event. If the intent of the operator is to allow a member of the general public direct contact with any of the animals, the operator must submit a written request to the department for a temporary petting zoo permit in addition to the exhibit permit as outlined in subsection (a). The temporary petting zoo permit shall be valid for the duration of the event outlined in the application.

(b) No person shall operate a petting zoo or recreational animal ride where an animal is allowed to be in contact with the public (which include, but are not limited to, horses, ponies, donkeys, camels, elephants or cows) within the city without first obtaining a petting zoo permit which shall be valid for one (1) year. An operator of a petting zoo or recreational animal ride shall first submit a written request to the department for a petting zoo permit and pay a permit application fee to cover the cost of inspecting the facility where the animal(s) are kept and shall contain information as to the kind and number of animals involved, and the name and address of the person or business that will keep, feed, and

confine the animal(s). Animals used within the city for petting zoos or recreational animal rides must be provided with all the necessities of life including air, food, water, veterinary care, exercise, and protection from the sun and other elements of nature.

(c) A permit shall not be required for any animal so long as it is owned by a governmentally owned and operated facility, publicly operated facility, a public zoological park, or bona fide medical institution or research institution.

(d) A prohibited animal brought into the city for entertainment purposes which is not approved by the department, upon the order of the department, will be immediately removed from the city. If not so removed expeditiously, an animal care officer shall seize such animal if he has reason to believe the animal is not being properly fed, housed, or cared for, or is not being safely and securely confined for public safety. Failure to comply with the removal order shall constitute a misdemeanor offense.

(e) Animals used within the city for entertainment purposes such as rodeos and circuses must be provided with all the necessities of life including air, food, water, veterinary care, exercise, and protection from the sun and other elements of nature. A licensed veterinarian must be in attendance at all such functions. Once determined to be injured or ill by a licensed veterinarian, an animal may be returned to use only after certification as healthy by a licensed veterinarian.

(f) Nothing in this section shall authorize the department to issue a permit to a person to sell, trade, barter, lease, rent, or give away any animal on any roadside, public right-of-way, commercial parking lot, or at any garage sale, flea market or festival.
(Ord. No. 2017-10-05-0755, § 1, 10-5-17)

Sec. 5-109. Pet shop license.

No person shall operate any pet shop as defined in this chapter, without first obtaining a license from the department who shall take into consideration the type of building construction, the regulatory compliance history of the permittee as it relates to sanitation, health, welfare of the animals, birds or reptiles housed, and related zoning requirements. The department shall inspect and evaluate the qualifications of applicants.

(1) Applications for an original or renewal pet shop license shall be submitted to the department and shall be approved or denied by the department. The department shall investigate the applicant's qualifications for a license. A conviction for the violation of any provision of this chapter may constitute cause for denial or revocation of a license.

(2) Failure to apply for a license prior to the opening of such a commercial animal facility, or within thirty (30) days after the renewal date, shall constitute a misdemeanor offense.

(3) Each pet shop license shall be valid for one (1) year.
(Ord. No. 2017-10-05-0755, § 1, 10-5-17)

Sec. 5-110. Grooming shop license.

(a) No person shall operate any grooming shop, as defined in this chapter, without first obtaining a license from the department who shall take into consideration the type of building construction, the regulatory compliance history of the permittee as it relates to sanitation, health, welfare of the animals, and related zoning requirements. The department shall inspect and evaluate the qualifications of applicants.

(1) Applications for an original or renewal grooming shop license shall be submitted to the department and shall be approved or denied by the department. The department shall investigate the applicant's qualifications for a license. A conviction for the violation of any provision of this chapter may constitute cause for denial or revocation.

(2) Failure to apply for a license prior to the opening of such a commercial animal facility, or within thirty (30) days after the renewal date, shall constitute a misdemeanor offense.

(3) Each grooming shop license shall be valid for one (1) year.

(b) A permit holder has the right to request that any dog or cat accepted for grooming be vaccinated against common diseases, and require proof of such vaccinations be furnished to the shop operator.
(Ord. No. 2017-10-05-0755, § 1, 10-5-17)

Sec. 5-111. Commercial boarding facility license.

No person shall operate a commercial boarding facility without first obtaining a license from the department which shall be valid for one (1) year. Such license shall be issued after inspection and approval of the facilities, taking into consideration the type of construction as it relates to sanitation, the health and welfare of the cats, dogs and equines, and related zoning regulations.

(1) Application for licenses under this section shall be made to the department on the form furnished by the department and approved by the director. The department shall conduct the investigation necessary to determine the applicant's qualifications for a license.

(2) Failure to apply for a license prior to the opening of a commercial boarding facility, or within thirty (30) days after the renewal date is a misdemeanor offense.

(3) The director, after an administrative hearing, shall make a determination of whether the commercial boarding facility conditions and the applicant's animal care practices meet the standards of this chapter, whether the facilities are adequate, and whether the applicant is otherwise willing and capable of complying with city ordinances. If the application is for renewal of an existing license, and the applicant has not complied with the rules and regulations established in this chapter, said director shall issue a "letter of denial of renewal and order of termination of operations" of the subject commercial boarding facility upon the expiration of the current license period. Any unlicensed commercial boarding facility is hereby declared a public nuisance, and shall be summarily abated by seizure and impoundment of all cats and dogs exceeding the legal number that may be kept by a resident.

(4) Each commercial boarding facility license application submitted to the department shall be accompanied by an application fee.

(5) Corporations with Internal Revenue Service Code Section 501(c)(3) status as a non-profit organization established for the purpose of protecting and caring for stray and unwanted animals with an active animal rescue organization license issued by the department are exempt from requiring a commercial boarding facility license.
(Ord. No. 2017-10-05-0755, § 1, 10-5-17; Ord. No. 2020-10-29-0772, § 1, 10-29-20)

Sec. 5-112. Animal rescue organization license.

No person shall operate an animal rescue organization as defined in this chapter within the city, without first obtaining a license from the department. For the purposes of this section, operating an animal rescue organization includes to house in an enclosure or exchange ownership of an animal(s) to or from said organization. The director shall take into consideration the housing conditions, the history of the animal rescue organization as it relates to sanitation, health, welfare of the animals, birds or reptiles housed, and related zoning requirements. The director may require an inspection and evaluation as part of the approval process or upon the receipt of a complaint after approval.

(1) Applications for an original or renewal of an animal rescue organization license shall be submitted to the department and shall be approved or denied by the department. The department shall investigate the applicant's qualifications for a license, and report findings to the director. A conviction for the violation of

any provision of this chapter may constitute cause for denial or revocation of a license.

(2) Failure to apply for a license, or within thirty (30) days after the renewal date, shall constitute a misdemeanor offense.

(3) Each animal rescue organization license issued by the department shall be valid for two (2) years.

(4) Organizations with an animal rescue organization license issued by the department shall be exempt from being required to have a seller's permit or pet shop license.

(5) The following outlines the appeal process for denial or revocation of an animal rescue organization license:

a. A person, group or organization that is denied a license or whose license is revoked has the right to appeal the denial or revocation by submitting written notice to the director within ten (10) working days of the denial or revocation. Upon the timely receipt of such written notice, the department shall schedule an animal permit hearing. The person, group or organization shall be notified of said hearing by certified mail, return receipt requested. Failure by the person, group or organization to appear at the hearing shall result in a final denial or revocation with no further appeal. The person, group or organization may be represented by counsel.

b. The director shall determine whether, by a preponderance of the evidence, an animal rescue organization license should not be denied or revoked based upon evidence, affidavits, and testimony presented at the time of the hearing by any person possessing information pertinent to such determination. The person may cross examine witnesses. A record of the hearing shall be kept. The director shall issue written factual findings and a determination as to whether the license denial or revocation should be reversed within five (5) working days after the animal permit hearing. The person shall be notified of the director's findings and determination by certified mail, return receipt requested. The result of the appeal is final.

(Ord. No. 2017-10-05-0755, § 1, 10-5-17; Ord. No. 2020-10-29-0772, § 1, 10-29-20)

Sec. 5-113. Livestock permits.

(a) It shall be unlawful for any person to keep livestock in the city without first applying in writing and obtaining a permit from the department, such permit to be valid only for the location for which it was issued.

(b) A person who keeps livestock as defined in this chapter shall pay a permit fee per year for each animal.

(c) All fees payable under this chapter, for whatever purpose required, shall be paid to the city.

(Ord. No. 2017-10-05-0755, § 1, 10-5-17)

Sec. 5-114. Cat colony permit and registration.

(a) Each cat colony will be registered by the caretakers with the department which will serve as a clearinghouse for information on current caretakers, education for new caretakers, and assistance for persons found in violation of this section. Cat colonies with eight (8) or fewer cats are not required to be registered as a cat colony.

(b) Any feral cat picked up by the department which has an appropriate ear tip will be returned to that colony unless veterinary care is required or the criteria listed in subsection (d) apply.

(c) Caretakers of feral cat colonies shall obtain a cat colony permit which shall be valid for one (1) year, and implement proper management and sterilization practices as required by the department. Any person or caretaker determined to be in violation of proper management and sterilization practices required by the department shall

be issued a written warning and be allowed a period of time to come into compliance, or provide satisfactory evidence of working to achieve compliance. That period of time shall not exceed ninety (90) days from issuance of the initial warning notice. Failure to comply shall result in a violation of this chapter, which may result in the issuance of a citation.

(d) The department has the right to immediately seize and remove all, or parts of any colony for the following reasons:

(1) Public health and public safety concerns including rabies, other epizootic and certain zoonoses identified by the department of health; or

(2) Animals creating a public nuisance as defined in section 5-150.

(Ord. No. 2017-10-05-0755, § 1, 10-5-17)

Sec. 5-115. Permit or license fees.

(a) A permit or license shall be issued after payment of the applicable fee, if any. The director is authorized to reduce or waive any fee provided for in this chapter.

(b) Failure to pay for and be in receipt of final approved permits or license within thirty (30) days of issuance of a temporary permit or license shall require re-inspection of facilities at the applicant's expense and shall constitute a misdemeanor offense.

(Ord. No. 2017-10-05-0755, § 1, 10-5-17; Ord. No. 2020-10-29-0772, § 1, 10-29-20)

Sec. 5-116. Revocation.

All permits or licenses issued under this chapter may be revoked by the director for violation by the holder thereof of any of the provisions of this chapter. Revocation of the permit or license is accomplished by mailing to the holder of such permit or license a written notice by certified mail stating the permit or license is revoked. Revocation of the permit may also be accomplished by personally delivering to the holder thereof a written notice stating the permit or license is revoked.

(Ord. No. 2017-10-05-0755, § 1, 10-5-17; Ord. No. 2020-10-29-0772, § 1, 10-29-20)

Sec. 5-117. Impoundment of animals due to non-compliance.

If an owner of animals intentionally, knowingly, or recklessly engages in non-compliance or refusal to comply with permit ordinance requirements, the department may seek to impound and take ownership of any available animals if the city follows the process outlined below.

The department shall send certified letter of notice to the animal owner indicating the department's decision to seize the animal(s) if compliance is not achieved within ten (10) days of receipt of the letter.

(1) The letter shall include the history of past violations, compliance requirements and instructions regarding the appeal process and deadlines.

(2) The owner must come into compliance or request an appeal hearing to municipal court and provide notice in writing to the animal care services department within the deadline outlined in the letter.

(3) The following outlines the appeal/hearing process:

a. The owner must submit in writing a request for an appeal hearing to the department within ten (10) days following receipt of the notification letter.

Upon receipt of the appeal request, no animal may be impounded until after the requested hearing is complete, or an additional court order is received.

b. A requested hearing will be scheduled no earlier than the 11th day after the date of the service of notice at a date and time determined by the court.

c. The municipal court shall issue an order of resolution following the conclusion of the hearing.

(4) If the department determines that the owner did not achieve compliance, if the owner did not request a hearing/appeal within the required period of time, or if

the determination of the appeal hearing finds non-compliance, the department is authorized to immediately remove the subject animal(s) via court order.

a. The department shall take ownership of the animal immediately upon removal from the property; and

b. Upon taking ownership, the department has the authority to immediately dispose of the animal(s) as determined by the department.

(Ord. No. 2017-10-05-0755, § 1, 10-5-17)

Secs. 5-118—5-124. Reserved.

ARTICLE VI. RABIES CONTROL*

Sec. 5-125. Required vaccination.

An owner of a dog, cat or domestic ferret must have the animal vaccinated against rabies in a manner that satisfies the requirements of state law.

(Ord. No. 2010-06-17-0555, § 1, 6-17-10)

Sec. 5-126. Reporting, bites, scratches; zoonotic diseases.

(a) Any person having knowledge that an animal has bitten or scratched a person, within the city shall immediately report the basis for such knowledge to the city customer services/311 department or the director of the animal care services department.

(b) Any veterinarian or other person having knowledge of an animal diagnosed as having any reportable zoonotic disease shall report the basis for such knowledge to the city customer services/311 department or to the director of the city's animal care services department within five (5) days.

(c) The owner or keeper of an animal that is known to have or believed to have a zoonotic disease or to have bitten or scratched a person shall:

(1) Immediately, give his or her name and address, information that may help locate the animal, including the animal's registered microchip information, and date of last rabies vaccination, to the person bitten or scratched or if such person is under the age of eighteen (18) years to his or her parent or guardian;

(2) Within twenty-four (24) hours of the incident report to the director, the basis for such knowledge or belief, his or her name and address, the name and address of the person bitten or scratched, information that may help locate the animal, including the animal's registered microchip information; and allow the director to inspect or examine such animal for the purpose of determining whether such animal has symptoms of rabies; and,

(3) Immediately upon request by the director submit the reported animal to an care services officer for quarantine for the purposes of determining whether such animal has rabies.

(d) The director or any appointed animal care officer shall impound any animal for rabies observation in accordance with V.T.C.A., Health and Safety Code Chapter 826. Upon the sworn affidavit of any person with knowledge that an animal has bitten or scratched a person within the city, the director, who is the local rabies control authority, may request an administrative search warrant to quarantine the animal for rabies observation. An administrative search warrant may be issued to the director, or code enforcement official of the city, for the purposes of allowing the inspection of specified premises in order to quarantine the reported animal for rabies observation for a period as prescribed in section 5-127 of this chapter.

(Ord. No. 2010-06-17-0555, § 1, 6-17-10; Ord. No. 2015-04-30-0354, § 2, 4-30-15; Ord. No. 2017-10-05-0755, § 1, 10-5-17; Ord. No. 2020-10-29-0772, § 1, 10-29-20)

Sec. 5-127. Confinement of biting, scratching animals; sterilization required for biting animals.

(a) The owner of any animal within the city which has bitten or scratched a person so as to have caused an abrasion of the skin shall, on

*__State law reference—__Rabies Control Act, Texas Health and Safety Code, ch. 826.

demand of the director or any animal care officer, immediately surrender such animal to the animal care services facility, or other approved rabies quarantine facility for observation for a period lasting not more than ten (10) days after the date of the incident, subject to the provisions of subsection (b).

(b) The owner of any animal that has bitten or scratched any person shall be allowed to assume personal responsibility for confining the animal for the observation period of ten (10) days, only under the following circumstances:

(1) Secure facilities must be available at the home of the animal's owner, and must be approved by the director;

(2) The animal was currently vaccinated against rabies when the exposure incident occurred;

(3) The animal was not in violation of any laws or ordinances at the time of the bite; and

(4) The director, city veterinarian or a licensed veterinarian must observe the animal at least on the first and last days of the quarantine period. If the animal becomes ill during the observation period, the director must be notified by the person having possession of the animal. At the end of the observation period, the release from quarantine must be accomplished in writing by the veterinarian who will attest to the health of the animal.

(c) If an animal is believed to have rabies or has been bitten by an animal suspected of having rabies, such animal shall be quarantined for observation by a veterinarian for the appropriate period as required by state law.

(d) Violation of the observation confinement of the biting animal as provided in subsection (b) shall be just cause for seizure and confinement of the animal in the animal care services facility of the city.

(e) All wild animals involved in exposure incidents including biting, scratching or any other direct exposure by physical contact will be humanely euthanized in such a manner that the brain is not mutilated. The brain shall be submitted to a Texas Department of State Health Services certified laboratory for rabies diagnosis.

(f) Any dog or cat that bites a person or domestic animal without provocation or a dog that bites a person or domestic animal while the dog was found free of restraint shall be required to be sterilized within thirty (30) days following the quarantine period. For pets impounded at the animal care services facility, the director may require the sterilization surgery to be completed by the department at the owner's expense prior to its release back to the owner.
(Ord. No. 2010-06-17-0555, § 1, 6-17-10; Ord. No. 2017-10-05-0755, § 1, 10-5-17)

Sec. 5-128. Concealment, sale of biting animal prohibited.

It shall be unlawful for any owner within the city to conceal, sell, give away or otherwise dispose of an animal that has bitten or scratched another animal or a human, or to otherwise permit the animal to be taken beyond the limits of the city after having knowledge of the animal's having bitten or having so injured another animal or a person as to cause an abrasion of the animal's or person's skin, until such animal is released by the director.
(Ord. No. 2010-06-17-0555, § 1, 6-17-10)

Sec. 5-129. Confinement of animals infected with or exposed to rabies.

The owner of any animal infected with rabies, or who reasonably suspects his or her animal of having such an infection, shall notify the police department or the animal care services facility of the fact that the animal has been infected with or exposed to rabies. The director is empowered to have such animal removed from the owner's premises to the animal care services facility, or at the request of the owner, such animal may be placed in a veterinary hospital, and shall be placed under observation for the appropriate period as required by state law. Whether confined in the animal care services facility or a veterinary hospital, the owner shall bear the expense of the confinement.
(Ord. No. 2010-06-17-0555, § 1, 6-17-10; Ord. No. 2020-10-29-0772, § 1, 10-29-20)

Sec. 5-130. Confinement at owner's expense; payment.

Any animal surrendered to the animal care services facility for the purpose of observation as provided in this chapter shall be kept at the facility and shall be fed and cared for at the expense of the owner. Such fees are to be paid to the city before the animal can be reclaimed from the animal care services facility at the end of the authorized quarantine and observation period.
(Ord. No. 2010-06-17-0555, § 1, 6-17-10)

Sec. 5-131. Release of animal subject to certification by veterinarian.

No animal shall be released from the observation period provided for in this article unless a licensed veterinarian certifies in writing to the director that such animal is not showing symptoms of rabies. Exemption from placing such animal in the animal care services facility or in a veterinary hospital as provided in subsection 5-127(b) shall not exempt such owner from securing a proper release, as provided above.
(Ord. No. 2010-06-17-0555, § 1, 6-17-10)

Sec. 5-132. Euthanization of rabid animals, wild biting animals.

When in the opinion of the director the animal has exhibited signs of incipient rabies, the animal will be immediately euthanized and the brain submitted to a Texas Department of State Health Services certified laboratory approved by the director for diagnosis. In the case of biting wild animals, euthanasia shall be performed immediately and the brain submitted for rabies diagnosis.
(Ord. No. 2010-06-17-0555, § 1, 6-17-10)

Sec. 5-133. Impoundment of animals unclaimed after quarantine.

Any animal quarantined at the city's animal care services facility not reclaimed by its owner within twenty-four (24) hours of the expiration of the quarantine or observation period provided in this chapter shall become the property of the city and may be offered for adoption or humanely euthanized at the discretion of the director.
(Ord. No. 2010-06-17-0555, § 1, 6-17-10)

Sec. 5-134. Notification of authorities upon knowledge of rabid animal.

Any person having knowledge of any animal being infected with rabies or reasonably suspecting such infection shall immediately notify the animal care services facility or the police department of such fact or suspicion giving the name of the owner, possessor, keeper or harborer of such animal, if the same be known, together with a description of such animal and where such animal may be found.
(Ord. No. 2010-06-17-0555, § 1, 6-17-10)

Sec. 5-135. Final disposition of rabid, non-rabid animals.

Where an animal has been bitten by another animal, and the biting animal described in this section is determined not to have rabies, then both animals will be released from observation. If the biting animal is determined to be rabid, and the animal victim is possessed of a current vaccination certificate, then the owner of the animal victim will have the option of immediately having the animal victim humanely euthanized, or, in the alternative, revaccinated and quarantined for a period of ninety (90) days. However, if the animal victim is not possessed of a current vaccination certificate, then the owner of said animal victim will have the option of immediately having said animal victim humanely euthanized, or, in the alternative, vaccinated and quarantined for a period of one hundred and eighty (180) days.
(Ord. No. 2010-06-17-0555, § 1, 6-17-10)

Sec. 5-136. Health emergencies.

Upon a finding by the director of health that a health emergency exists due to the imminent threat of rabies or other disease communicable by animals, he shall have the authority to order that all unrestrained animals be impounded and destroyed immediately; except that, no emergency order shall continue for a period longer than seven (7) days without the consent of the city council.
(Ord. No. 2010-06-17-0555, § 1, 6-17-10)

Sec. 5-137. Joint animal vaccination drives.

The director is hereby authorized to conduct periodic rabies vaccination drives in cooperation with the Veterinary Medical Association of Bexar County for the public health benefit of the community.
(Ord. No. 2010-06-17-0555, § 1, 6-17-10)

Secs. 5-138—5-149. Reserved.

ARTICLE VII. ANIMAL NUISANCES; IMPOUNDMENT

Sec. 5-150. Animal nuisances; sterilization required for dogs free of restraint.

The owner or keeper of any animal in the city is responsible for the behavior and conduct of that animal at all times including the creation of a public nuisance. Violations of the following acts or omissions are public nuisances:

(1) The owner or keeper shall keep the animal (except cats) restrained at all times and insure that the animal (except cats) does not roam or run unrestrained. Dogs found to be free of restraint shall be subject to mandatory sterilization. The department shall either sterilize the dog prior to reclamation by the owner or shall require the owner to sterilize the dog within thirty (30) days of notification of the violation at the owner's expense;

(2) The owner or keeper shall not allow animals being held on their property to create a noise disturbance in such a manner, to annoy, distress or disturb within the vicinity of hearing thereof. For the purpose of this chapter, an animal noise nuisance shall be defined as a minimum of two (2) separate recorded noise events over a period of twenty-four (24) hours where the animal can be heard continuously for a twenty (20) minute period of time one hundred (100) yards away, or behind the wall of a livable structure;

(3) The owner or keeper shall prevent his or her animal from biting or injuring without provocation, any animal or person;

(4) The owner or keeper shall prevent his or her animal from damaging or destroying public property or property other than its owner's private property;

(5) The owner or keeper shall not keep more than the number of animals allowed under this chapter;

(6) An owner or keeper creates an animal nuisance by the keeping, frequent feeding or harboring of any venomous or inherently dangerous or prohibited animal;

(7) The owner or keeper of an outdoor cat or keeper of a cat colony shall take all steps necessary to prevent a wildlife or pest feeding nuisance. The owner or keeper of an outdoor cat or caretaker of a cat colony shall be responsible for the having outdoor cat(s) under his or her care, possession, control or custody:

a. Fed species-specific food in a feeding dish that is non-disposable and facilitates the removal of uneaten food;

b. Not provided food that is left outside in a "free feed" environment;

c. Not fed in excess.

(Ord. No. 2010-06-17-0555, § 1, 6-17-10; Ord. No. 2017-10-05-0755, § 1, 10-5-17; Ord. No. 2020-10-29-0772, § 1, 10-29-20; Ord. No. 2024-12-05-0950, § 1, 12-5-24)

Sec. 5-151. Outdoor cats.

All outdoor cats must be spayed or neutered.
(Ord. No. 2010-06-17-0555, § 1, 6-17-10)

Sec. 5-152. Misdemeanor violations by animal owners; presumptions.

(a) An animal owner commits a misdemeanor offense if by act, omission or possession he creates an animal nuisance.

(b) The following presumptions are hereby declared applicable in the prosecution of an offense pursuant to subsection (a):

(1) The fact that an animal in question has bitten or injured another animal or human being during the previous eighteen (18) months shall give rise to the presumption that the animal bites or injures other animals or human beings without provocation;

(2) The fact that an animal in question has damaged or destroyed public or private property during the last twelve (12) months shall give rise to the presumption that the animal has a propensity to destroy property.

(Ord. No. 2010-06-17-0555, § 1, 6-17-10; Ord. No. 2017-10-05-0755, § 1, 10-5-17)

Sec. 5-153. Impounding animals creating animal nuisance.

Animal care officers or other law enforcement officers shall have the power to impound animals which create an animal nuisance for the purpose of abating the nuisance as follows:

(1) On public property, in all cases;

(2) On private property, if:

a. The consent of the resident or property owner is obtained;

b. The officer reasonably believes there is immediate and imminent danger or peril to the public if the animal in question is not impounded; or

c. Authorized by appropriate courts of law.

(Ord. No. 2010-06-17-0555, § 1, 6-17-10; Ord. No. 2020-10-29-0772, § 1, 10-29-20)

Sec. 5-154. Impounding abandoned or unrestrained animals.

(a) The department may order the seizure and impoundment of any abandoned animal as defined in this chapter. Disposition of said seized and impounded abandoned animals shall be in accordance with sections 5-157, 5-158, and 5-159. Any trap, neuter and return (TNR) program that has been registered with the department shall not constitute a violation of this section.

(b) Animal care officers or other law enforcement officers shall have the power to impound unrestrained animals for the purpose of abating the nuisance as follows:

(1) On public property, in all cases;

(2) On private property, if the consent of the resident or property owner is obtained;

(3) On private property, in all cases except fenced rear yards of residences, if the officer reasonably believes that the animal will run at large if not impounded.

(Ord. No. 2010-06-17-0555, § 1, 6-17-10; Ord. No. 2017-10-05-0755, § 1, 10-5-17)

Sec. 5-155. Impounding procedures.

Animal care officers or other law enforcement officers authorized pursuant to sections 5-153 or 5-154 to abate a nuisance, shall, prior to impounding an animal, leave notice at the residence of the premises where the unrestrained animal was found stating the kind and type of animal seized, the place where the animal is to be impounded, the hours when it may be reclaimed by the owner and the length of time it is to be held; provided the animal care officers or other law enforcement officers shall:

(1) Release the animal to the owner, if the animal was found unrestrained on the owner's premises and the owner agrees to restrain the animal in the future, or

(2) Release the animal to the owner if the animal was found unrestrained outside the owner's premises, but the owner readily presents himself/herself and agrees to restrain the animal in the future.

(Ord. No. 2010-06-17-0555, § 1, 6-17-10; Ord. No. 2020-10-29-0772, § 1, 10-29-20)

Sec. 5-156. Return of captured animal to owner.

(a) In addition to the issuance of a citation, the animal care officer may return an animal found at large to the known owner.

(b) The owner may redeem an impounded animal during normal business hours by paying the impoundment fee, sterilization fees if any, boarding fees, and the pre-release rabies vaccination fee if required by law for the subject species and proof of valid current vaccination cannot be produced.

(c) Upon impound of an intact dog or cat found at large, the department may, at the discretion of the director or their designee, conditionally release the dog or cat with the requirement that the owner sterilize the dog or cat within thirty (30) days from the date of the conditional release. The following shall be exempt from this requirement: A dog or cat that qualifies for a certified medical exception from a city veterinarian, or a dog or cat that is an exhibition or competition animal, or a dog that is a police or military service dog. Owners of exhibition or competition animals and police or military service dogs shall provide proof to the department. The owner shall provide proof of sterilization of the dog or cat to the department within thirty (30) days from the date of the conditional release.

(d) It shall be unlawful for anyone to whom an animal has been conditionally released under this section to fail to have the animal sterilized and provide proof of sterilization to the department within thirty (30) days from the date of the conditional release.

(Ord. No. 2010-06-17-0555, § 1, 6-17-10; Ord. No. 2013-11-21-0802, § 2, 11-21-13; Ord. No. 2015-04-30-0354, § 2, 4-30-15; Ord. No. 2017-10-05-0755, § 1, 10-5-17; Ord. No. 2024-12-05-0950, § 2, 12-5-24)

Sec. 5-157. Notifying owner of impounded animal.

If the owner of an impounded animal can be identified, the animal care officer shall upon impoundment notify the owner at the address stated on records of the department, if any, or the address as determined by a scanned registered microchip.

(Ord. No. 2010-06-17-0555, § 1, 6-17-10; Ord. No. 2015-04-30-0354, § 2, 4-30-15)

Sec. 5-158. Minimum time animals impounded; euthanasia authorized.

(a) Impounded animals shall be kept for a minimum of three (3) days, excluding the day the animal is impounded and any days the animal care services facility is not opened, and thereafter shall be subject to humane euthanization at the discretion of the department. Notwithstanding the above, animals may be adopted, rescued or fostered after being held for two (2) days excluding the day the animal is impounded and any days the animal care services facility is not opened.

(b) Animals may be adopted, rescued, fostered, or humanely euthanized prior to the time periods referenced above in the following circumstances:

(1) The owner of the animal releases ownership of the animal to the city.

(2) If a licensed veterinarian or designee determines an impounded animal is suffering from disease or injury such that the animal is in pain or is beyond reasonable medical help, the animal may be euthanized immediately.

(3) Due to their immature immune system, any abandoned animal under four (4) months of age shall become the property of the city upon delivery to the animal care services facility, for disposition at the discretion of the department.

(Ord. No. 2010-06-17-0555, § 1, 6-17-10; Ord. No. 2013-12-19-0922, § 2, 12-19-13; Ord. No. 2017-10-05-0755, § 1, 10-5-17)

Sec. 5-159. Unclaimed animals.

(a) Any animal not claimed by its owner after being held for two (2) days excluding the day the animal is impounded and any days the animal care services facility is not opened shall become the property of the city. The selection of an animal for adoption or rescue during the reclamation period or thereafter shall not confer any ownership right or right of possession to the animal.

(b) The department may sell unclaimed livestock found running free of restraint by public auction to the highest bidder for cash after notice of the auction is posted on a public bulletin board where other public notices are posted for the city.
(Ord. No. 2010-06-17-0555, § 1, 6-17-10; Ord. No. 2013-12-19-0922, § 2, 12-19-13; Ord. No. 2017-10-05-0755, § 1, 10-5-17)

Sec. 5-160. Charges for reclaiming, adopting impounded animals; liability of claimant.

(a) Any animal owner reclaiming an impounded animal shall, before the animal will be released to its owner, pay any and all fees associated with impoundment, boarding vaccinations, microchipping, sterilization and species specific testing as required by the department. The director is authorized to reduce or waive any such required fees.

(b) No animal shall be released from the animal care services facility without the owner presenting proof that the animal has had a rabies vaccination in compliance with the requirements of state law. An owner of any dog or cat who cannot provide proof of said rabies vaccination shall be subject to a fee for rabies vaccination of each dog or cat. An owner of any domestic ferret who cannot provide proof of said rabies vaccination shall be subject to a fee for rabies vaccination of each domestic ferret.

(c) Any citizen reclaiming or adopting any animal under the provisions of this section shall be liable for any applicable fees.

(d) All animals adopted from the animal care services facility shall be spayed or neutered within thirty (30) days unless this procedure has already been accomplished. Persons adopting animals from the animal care services facility shall pay the applicable fees for adopting a dog or cat. As an incentive for the adoption of animals, the director is authorized to advertise and reduce or waive adoption fees. A deposit may be collected for each pet adopted that has not yet been spayed or neutered. This deposit may be returned upon application and presentment of a valid spay/neuter certificate.

(e) The city animal care services facility is authorized to accept animals for humane disposition from individuals who reside in the city or in other municipalities or in unincorporated areas of Bexar County. The city animal care services facility is authorized to accept animals for humane disposition from Bexar County for animals in the unincorporated areas of Bexar County as long as the city and county maintain a joint animal control program by contractual agreement. The city animal care service facility is authorized to accept animals for humane disposition from other municipalities in Bexar County as long as the city and the other municipality in Bexar County maintain a joint animal control program by contractual agreement. An animal service fee shall be charged per animal.

(f) The department shall refund fees paid by persons who adopted an animal that dies within two (2) weeks of adoption due to apparent congenital illness or communicable disease that could have been contracted by the animal prior to adoption. Adoption fees shall be refunded as long as the terms of the adoption contract were followed.

(g) At the time animals are reclaimed from the animal care services facility, if necessary, they will be implanted with a registered microchip so the animal, if ever lost or stolen, can be returned to its owner.

(h) If an animal that is impounded is sterilized, currently vaccinated for rabies and has a registered microchip, the department will not charge an impound fee for the first impound only. The animal must be reclaimed within the time limits in section 5-158. The initial impound will count as a first impound in assessing fees for any future impounds.

(i) The first impound free policy applies toward each residence.
(Ord. No. 2010-06-17-0555, § 1, 6-17-10; Ord. No. 2015-04-30-0354, § 2, 4-30-15; Ord. No. 2017-10-05-0755, § 1, 10-5-17; Ord. No. 2020-10-29-0772, § 1, 10-29-20; Ord. No. 2024-12-05-0950, § 2, 12-5-24)

Sec. 5-161. Liability of owners of impounded animals.

(a) The owner of an animal impounded remains subject to prosecution for violation of this chapter regardless of reclamation or non-reclamation.

(b) The owner of an impounded animal remains liable for the fees incident to impoundment, regardless of reclamation of the animal or non-reclamation.
(Ord. No. 2010-06-17-0555, § 1, 6-17-10; Ord. No. 2020-10-29-0772, § 1, 10-29-20)

Sec. 5-162. Abatement of animal nuisance complaint and citation; summary statement.

(a) Any person may, upon presentation of a duly executed affidavit stating the existence of an animal nuisance, as defined in this chapter, and identifying the name and address of the owner or owners of such animal may request the city prosecutor to file a complaint in municipal court against the owner or owners of such animal under the provisions of this chapter. The filing of a complaint by the person will result in the issuance of a court summons to the owner or owners of the animal in question.

(b) Animal care officers and other law enforcement officers may issue the owner or owners of animals creating an animal nuisance, as defined in this chapter, a citation to appear in municipal court to answer the offense charged.
(Ord. No. 2010-06-17-0555, § 1, 6-17-10)

Sec. 5-163. Enforcement; interference with animal care officer, police.

(a) The provisions of this chapter shall be enforced by the department and the police department. It shall be a violation of this chapter for any person to interfere with an animal care officer or a police officer in the performance of his duties.

(b) It shall be unlawful for a person to make a false complaint or report of an alleged violation under this chapter.
(Ord. No. 2010-06-17-0555, § 1, 6-17-10; Ord. No. 2017-10-05-0755, § 1, 10-5-17)

Sec. 5-164. Mandatory sterilization requirements.

(a) If an animal is identified by the department as requiring sterilization in accordance with this chapter, the department will issue the owner a notice of compliance notifying the owner of the sterilization requirement and allow the animal's owner thirty (30) days to provide proof of sterilization to the department.

(b) Owners may receive a temporary extension of time to sterilize their dog or cat if a veterinarian provides documentation showing that an extension is needed for the health and safety of the animal.

(c) The following shall be exempt from the sterilization requirement:

(1) A dog or cat that qualifies for a certified medical exception from a veterinarian; or

(2) A dog or cat that has not received more than two (2) violations over the prior year and is an exhibition or show animal or service animal.

(d) It shall be unlawful for anyone to fail to have the animal sterilized and provide proof of sterilization to the department within thirty (30) days from the date of the notice to comply being issued.

(e) If an owner of animals intentionally, knowingly, or recklessly engages in non-compliance or refusal to comply with any spay/neuter ordinance requirements outlined in this chapter, the department may seek to impound and take ownership of any available pets after following the process outlined in section 5-117.
(Ord. No. 2017-10-05-0755, § 1, 10-5-17)

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Chapter 6

BUILDINGS*

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*__Editor's note—__Ordinance No. 84792, § 1, adopted September 19, 1996, consolidated all building inspection fees into one master fee schedule rather than having the construction related fees referenced throughout various section of the City Code. This is set out in § 6-3. Chapters and sections throughout the Code have been cross referenced to § 6-3 in order to clearly express that § 6-3 contains the most recent fees.

__Cross references—__Building-related codes, § 10-1 et seq.; flood plains, generally, § 35-4301 et seq.

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ARTICLE I. IN GENERAL

Sec. 6-1. Construction on city property.

(a) It shall be unlawful for any person to erect, place upon, or maintain, without the consent of the city council by ordinance, any building, structure, fence or other obstruction, or part of same, upon any real estate belonging to or controlled by the city.

(b) No use of public real estate of the city shall be made for private purposes, except by contract with or permission given by ordinance of the city council.

(c) Any person violating the terms of this section shall be guilty of a misdemeanor, and upon conviction shall be fined as provided in section 1-5 of this Code. Each day such building, structure, fence or other obstruction, or part thereof, shall be maintained or permitted to remain, or such use is made, after ten (10) days' notice to remove or desist from such use, by the police department, shall constitute a separate offense.
(Ord. No. 18784, §§ 1—3, 2-12-53; Code 1959, § 10-9)

Sec. 6-2. Fences.

(a) *Height.* No fence over six (6) feet high shall be built in the city unless all owners of property abutting the parcel where the fence is to be constructed have been contacted by the development services department, and have expressed no opposition to the proposed fence, or permission has been granted by ordinance adopted by the city council. Provided, that no fence in excess of twelve (12) feet in height shall be allowed under any conditions. This section shall not apply to any fence specifically required or allowed to be higher by some other section of the code.

(b) *Barbed wire.* It shall be unlawful for any person to erect or cause to be erected on any street or property within the city, any fence composed either wholly or in part of barbed wire, unless the use of such barbed wire is restricted to the placing of not more than three (3) strands thereof at the top of any fence over six (6) feet in height, provided such strand or strands slant away from the street or adjoining property and toward the property such fence may bound. Should the uppermost strand of barbed wire be not more than eighteen (18) inches higher than the top of the fence, and not over ten (10) feet from ground level, the strands of barbed wire shall not be considered in determining fence height restrictions.

(c) *Variances.* A fence in excess of those height restrictions found in chapter 35 article IV may not be built in any required building setback area in any zones except as allowed in chapter 35 article IV, unless a variance has been obtained from the board of adjustment; however, such a fence may be constructed elsewhere on a parcel upon compliance with this section.
(Code 1950, §§ 41-6, 41-7; Code 1959, §§ 10-10, 10-11; Ord. No. 39910, § 1, 9-9-71; Ord. No. 48944, 1-12-78; Ord. No. 49134, § 1, 3-9-78; Ord. No. 55125, 3-25-82; Ord. No. 92557, § 1, 9-21-00; Ord. No. 2008-01-10-0017, § 3, 1-10-08)

Cross reference—Retaining walls, § 6-181 et seq.

Sec. 6-3. Reserved.

Editor's note—Ord. No. 2008-09-11-0777G, § 2, adopted September 11, 2008, repealed § 6-3 in its entirety, which pertained to the fee schedule. See the Code Comparative Table for a complete derivation.

Sec. 6-4. Technological improvement fee.

An amount of three (3) percent of the fee assessed for any building, electrical, mechanical, plumbing, sidewalk, trench, sign, medical gas, gas, sewer or electrical maintenance permit required by this Code shall be required to be paid, in addition to the permit fee, at the time of application for any of the aforementioned permits.
(Ord. No. 88492, § 1, 9-17-98)

Sec. 6-5. Administrative fee for processing permits.

(a) Should an applicant for a mechanical, electrical, and plumbing permit request processing by city staff in lieu of on-line processing, an administrative fee in the amount of ten dollars ($10.00) shall be charged for such service.

(b) Should an applicant request city staff to schedule an inspection in lieu of on-line inspection processing, an administrative fee in the amount of three dollars ($3.00) per inspection request shall be charged for such service.

(c) Reserved.

(d) Should the applicant request to deposit money into their escrow account using a credit card, a processing fee of three (3) percent of the credit card transaction will apply.

(e) Should the applicant request to close their escrow account, an administrative fee in the amount of fifty dollars ($50.00) shall be charged for such service.
(Ord. No. 99731, § 6, 9-16-04; Ord. No. 2007-09-13-0973L, § 2, 9-13-07; Ord. No. 2008-09-11-0777G, § 3, 9-11-08; Ord. No. 2016-09-15-0697, § 2(Att. G), 9-15-16)

Secs. 6-6—6-15. Reserved.

ARTICLE II. DEPARTMENT OF DEVELOPMENT SERVICES*

Sec. 6-16. Created.

A department of development services is hereby created.
(Ord. No. 23216, § 1, 7-12-56; Code 1959, § 10-1; Ord. No. 41955, § 1, 3-15-73; Ord. No. 46468, § 1, 3-25-76; Ord. No. 52775, § 2, 9-11-80; Ord. No. 2008-01-10-0017, § 3, 1-10-08)

Sec. 6-17. Director and assistant director.

The department of development services shall be administered by a director known as the director of development services, and may be assisted by an assistant director known as the assistant director of development services.
(Code 1959, § 10-2; Ord. No. 2008-01-10-0017, § 3, 1-10-08)

*__Editor's note—__Ord. No. 2008-01-10-0017, § 3, adopted January 10, 2008, changed the title of article II from "Department of building inspections" to "Department of development services."

Sec. 6-18. Divisions.

The department of development services shall consist of the following divisions:

(1) Development services.

(2) Electrical inspections.

(3) Plumbing inspections.

(4) Heating and air conditioning inspections.

(5) Sidewalk and trench inspections.

(6) House numbering and permits.

(7) Minimum housing.

(8) Administration.
(Code 1959, § 10-2; Ord. No. 2008-01-10-0017, § 3, 1-10-08)

Sec. 6-19. Duties.

The department of development services shall in addition to all other duties and functions imposed by any ordinances, furnish administrative assistance to the board of adjustment in the performance of its duties under article IV of chapter 35 of this Code. Additionally, administrative assistance shall be furnished to the board of review for historic districts and landmarks in the performance of its duties under article VIII of chapter 35 of this Code.
(Code 1959, § 10-2; Ord. No. 2008-01-10-0017, § 3, 1-10-08)

Sec. 6-20. Fees for incorrect address or name on permits.

Whenever an incorrect address or incorrect business or assumed name (d.b.a.) is given to any permit writer working for the divisions enumerated in section 6-18, an address correction fee in the amount of twenty-five dollars ($25.00) shall be charged to the party giving such incorrect information.
(Ord. No. 23216, § 2, 7-12-56; Ord. No. 25282, § 1, 7-11-57; Code 1959, § 10-2; Ord. No. 41955, § 2, 3-15-73; Ord. No. 46468, § 2, 3-25-76; Ord. No. 52775, § 2, 9-11-80; Ord. No. 55811, § 29, 9-16-82; Ord. No. 61329, 8-29-85; Ord. No. 76463, § 8, 9-10-92)

Sec. 6-21. Training programs.

(a) The San Antonio Building Codes Academy (SABCA) is hereby established for the purpose of providing training courses relating to continuing education for technical codes and international code council certifications.

(b) Training courses sponsored by SABCA relating to technical code continuing education and certifications shall adhere to and be consistent with applicable state statutory authorities and administrative codes.

(c) For licensed plumbers, training courses must follow Texas Occupations Code, Chapter 1301, Plumbers.

(d) For licensed electricians, training courses must follow Texas Occupations Code, Chapter 1305, Electricians and 16 TAC ch. 73, electricians.

(e) For air conditioning and refrigeration contractors, training courses must follow Texas Occupations Code, Chapter 1302, Air Conditioning and Refrigeration Contractors and 16 TAC ch. 75, air conditioning and refrigeration contractors.
(Ord. No. 2008-01-10-2007, § 2, 1-10-07)

Sec. 6-22. San Antonio Building Codes Academy refund fee.

San Antonio Building Codes Academy refund fee: Fifty dollars ($50.00) (if canceled within one week of the event).
(Ord. No. 2010-09-16-0791, § 1(Att. G), 9-16-10)

Secs. 6-23—6-35. Reserved.

ARTICLE III. ABSENTEE PROPERTY OWNER REGISTRATION*

Sec. 6-36. Definitions.

The following words, terms, and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Absentee property owner means the owner, as subsequently defined, who has legal possession of property within the city limits of the City of San Antonio and resides outside of Bexar County, Texas. Post office boxes will not be accepted as proof of residency within Bexar County, Texas.

Department means the development services department.

Director means the director of the development services department and the director's authorized representatives.

Dwelling unit means one or more habitable rooms, including an efficiency unit, which is intended to be occupied by one or more persons for living, sleeping, cooking, eating and sanitation purposes.

Efficiency unit means a dwelling unit with one habitable room that contains facilities used for combined sleeping, living, cooking, eating and sanitation purposes.

Existing building means a building constructed in compliance with all codes at the time of construction, or one for which a legal building permit has been issued prior to the effective date of this article.

One-family dwelling means a dwelling designed exclusively for residential occupancy by not more than one family, including a community-based residential home as defined by the Community Homes for Disabled Persons Location Act, V.T.C.A., Human Resources Code § 123.001. One-family dwelling shall not include a two-family dwelling as defined by this section or a multi-family dwelling.

Owner means any person with legal possession of a one-family or two-family dwelling, according to the deed records in the county clerk's office of the county in which the complex is situated, or the duly authorized agent of the person with legal possession of a one-family or two-family dwelling, according to the deed records in the county clerk's office of the county in which the complex is situated.

*__Editor's note—__Prior to the reenactment of article III by Ord. No. 2013-09-19-0651, § 1, adopted September 19, 2013, Ord. No. 2011-12-01-0984, § 1, adopted December 1, 2011, repealed the former article III, §§ 6-36—6-41 in its entirety, which pertained to the building code. See the Code Comparative Table for a complete derivation.

Note—This article shall be effective on January 1, 2014.

Person means any individual, partnership, firm, company, corporation, association, joint stock company, trust, estate, or any other legal entity; or their legal representatives, agents, or assigns.

Two-family dwelling means a dwelling designed exclusively for residential occupancy by two (2) families, including a community-based residential home as defined by the Community Homes for Disabled Persons Location Act, V.T.C.A., Human Resources Code § 123.001. Two-family dwelling shall not include a one-family dwelling as defined by this section or a multi-family dwelling.
(Ord. No. 2013-09-19-0651, § 1, 9-19-13)

Sec. 6-37. Applicability and administration.

(a) This article shall apply to all one-family dwellings and two-family dwellings, as defined herein, which are now in existence or which may hereafter be constructed or converted from other uses and which are owned by an absentee property owner, as defined herein.

(b) This article is activated by the issuance of two (2) or more code violations within a 12-month period. Properties without code violations or with only one code violation per 12-month period are not affected by this article.

(c) The department director is authorized to administer and enforce the provisions of this article.

(d) This article shall not apply to any federal, state, or local governmental entities.
(Ord. No. 2013-09-19-0651, § 1, 9-19-13)

Sec. 6-38. Registration required.

(a) Upon the issuance of two (2) or more code violations within a 12-month period of time absentee property owners shall register with the department and provide the following information:

(1) The address and legal description of the property;

(2) The current name, physical address, mailing address, telephone number, and email information for any owner(s) with an ownership interest in the property.

(3) The contact information for a local manager of the properties and/or improvements located on said property, as applicable.

(b) Continued registration of the property by the absentee property owner is required for a period of two (2) years after the latest code violation.

(c) Absentee property owners whose property does not have a code violation may voluntarily register their properties at any time but are not required to do so.
(Ord. No. 2013-09-19-0651, § 1, 9-19-13)

Sec. 6-39. Registration fees.

Absentee property owners shall tender an annual registration fee of five hundred dollars ($500.00) upon registering their property with the department. Subsequent annual registration fees shall be due and postmarked no later than January 31st of each year.
(Ord. No. 2013-09-19-0651, § 1, 9-19-13; Ord. No. 2025-09-18-0629, § 2(Att. C), 9-18-25)

Sec. 6-40. Property manager or agent.

Absentee property owners must designate a local manager, who resides in Bexar County, for said properties and include the relevant contact information for the designated manager upon registering the property with the department. Property managers shall act as agents for the absentee property owner for purposes of accepting legal service, however the absentee property owner remains personally liable in criminal prosecutions for code violations.
(Ord. No. 2013-09-19-0651, § 1, 9-19-13)

Sec. 6-41. Jurisdiction, enforcement and penalties.

(a) Failure to register with the department after written notice to the absentee property owner, as is hereinafter specified, is a violation of this article. The absentee property owner shall

have forty-five (45) days in which to register from the date that written notice is issued to the property owner. Written notice shall be issued to the absentee property owner by means of personal service, or by first class mail to their last known address according to Bexar County Appraisal District records and posting on the property.

(b) Absentee property owners shall provide written notice to the department, including a copy of the deed, of a change in:

(1) Ownership of the property;

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(2) A change of contact information for either the owner or the designated manager.

Written notice must be provided to the department no later than thirty (30) days after said changes have occurred.

(c) Violation of this article is a Class C misdemeanor.

(1) This is a strict liability offense in which no mental state is required.

(2) The fine for this offense may not exceed five hundred dollars ($500.00).

(d) Administrative, civil, and criminal enforcement are alternative remedies which may be sought independently of each other. Criminal prosecution may occur regardless of pursuit of civil or administrative remedies and vice versa.
(Ord. No. 2013-09-19-0651, § 1, 9-19-13)

Secs. 6-42—6-50. Reserved.

ARTICLE IV. MINIMUM PROPERTY MAINTENANCE CODE*

Sec. 6-51. Adoption of the San Antonio Property Maintenance Code.

The San Antonio Property Maintenance Code is hereby adopted as the minimum housing code for the City of San Antonio. From the date on which the Ordinance shall take effect, the provisions thereof are controlling within the limits of the City of San Antonio, Texas.
(Ord. No. 2011-05-05-0354, § 2, 5-5-11; Ord. No. 2015-01-29-0065, § 1, 1-29-15)

Sec. 6-52. San Antonio Property Maintenance Code.

CHAPTER 1
SCOPE AND ADMINISTRATION

SECTION 101 - SCOPE AND GENERAL REQUIREMENTS

101.1 Title.

These regulations shall be known as the San Antonio Property Maintenance Code, hereinafter referred to as "this code."

101.2 Scope.

The provisions of this code shall apply to all existing residential and nonresidential structures and all existing premises and constitute minimum requirements and standards for premises and structures, equipment and facilities for light, ventilation, space, heating, sanitation, protection from the elements, life safety, safety from fire and other hazards, and for safe and sanitary maintenance; the responsibility of owners, an owner's authorized agent, operators; the occupancy of existing structures and premises, and for administration, enforcement and penalties.

101.3 Intent.

This code shall be construed to secure its expressed intent, which is to ensure public health, safety, and welfare insofar as they are affected by the continued occupancy and maintenance of structures and premises. Existing structures and premises that do not comply with these provisions shall be altered or repaired within a reasonable time to provide a minimum level of health and safety as required herein.

101.4 Severability.

If a section, subsection, sentence, clause, or phrase of this code is, for any reason, held to be unconstitutional, such decision shall not affect the validity of the remaining portions of this code.

SECTION 102 - APPLICABILITY

102.1 General.

Where there is a conflict between a general requirement and a specific requirement, the specific requirement shall govern. Where differences occur between provisions of this code and the referenced standards, the provisions of this code shall apply. Where, in a specific case, different sections of this code specify different requirements, the most restrictive shall govern.

102.2 Maintenance.

*__Editor's note—__Ord. No. 2011-05-05-0354, § 2, adopted May 5, 2011 and effective January 1, 2012, repealed and reenacted article IV in its entirety to read as herein set out. Formerly, article IV, § 6-51 pertained to the housing code, and derived from the Code of 1959, § 19A-1; Ord. No. 64489, § 3, adopted February 5, 1987; Ord. No. 93004, § 3, adopted November 30, 2000; and Ord. No. 93955, §§ 4, 5, adopted May 17, 2001.

Equipment, systems, devices, and safeguards required by this code or a previous regulation or code under which the structure or premises was constructed, altered, or repaired shall be maintained in good working order. No owner, an owner's authorized agent, operator or occupant shall cause any service, facility, equipment, or utility which is required under this section to be removed from or shut off from or discontinued for any occupied dwelling, except for such temporary interruption as necessary while repairs or alterations are in progress. The requirements of this code are not intended to provide the basis for removal or abrogation of fire protection and safety systems and devices in existing structures. Except as otherwise specified herein the owner or the owner's authorized agent shall be responsible for the maintenance of buildings, structures, and premises.

102.3 Application of other codes.

Repairs, additions or alterations to a structure or changes of occupancy, shall be done in accordance with the provisions of all codes adopted by the City.

102.4 Existing remedies.

The provisions in this code shall not be construed to abolish or impair existing remedies of the City or its officers or agencies relating to the removal or demolition of any structure which is dangerous, unsafe, or unsanitary. However, demolition and removal shall be regarded as a remedy of last resort.

102.5 Workmanship.

Repairs, maintenance work, alterations or installations which are caused directly or indirectly by the enforcement of this code shall be executed and installed in a workmanlike manner and installed in accordance with the manufacturer's installation instructions unless specified otherwise in state statutes and regulations.

102.6 Structural analysis.

Where structural analysis is used to assess a potentially unsafe structural condition, the analysis shall be permitted to use nominal strengths, nominal loads, load effects, required strengths and limit states in accordance with the requirements under which the structure was constructed or in accordance with any subsequent requirement.

102.7 Historic structures.

The provisions of this code may not be mandatory for existing structures designated as historic when such structures are judged by the code official to be safe and in the public interest of health, safety, and welfare.

102.8 Referenced codes and standards.

The codes and standards referenced in this code shall be those that are listed in Chapter 8 as adopted by the City and are considered part of the requirements of this code to the prescribed extent of each such reference. Where differences occur between provisions of this code and the referenced standards, the provisions of this code shall apply.

> **Exception:** Where enforcement of a code provision would violate the conditions of the listing of the equipment or appliance, the conditions of the listing shall apply.

102.9 Requirements not covered by code.

Requirements necessary for the strength, stability or proper operation of an existing fixture, structure, or equipment, or for the public safety, health, and general welfare, not specifically covered by this code, shall be determined by the code official in consultation with directors from appropriate City of San Antonio departments where needed.

102.10 Application of references.

References to chapter or section numbers, or to provisions not specifically identified by number, shall be construed to refer to such chapter, section, or provision of this code.

102.11 Other laws.

The provisions of this code shall not be deemed to nullify any provisions of local, state, or federal law including, but not limited to, the City's Absentee Property Owner's Registration requirements in San Antonio City Code Chapter 6 and the Vacant Property Owner Registration Program requirements in San Antonio City Code Chapter 12.

SECTION 103 - DEVELOPMENT SERVICES DEPARTMENT

103.1 Enforcement agency.

The Development Services Department shall be the enforcement agency for this code, and the Director thereof shall be known as the code official. The function of the agency shall be the implementation, administration, and enforcement of the provisions of this code.

103.2 Appointment.

The code official shall be appointed by the City Manager.

103.3 Designees.

The code official shall have the authority to delegate powers under this code. Such designees shall have the powers as delegated by the code official.

103.4 Liability.

The code official or employee charged with the enforcement of this code, while acting for the jurisdiction in good faith and without malice in the discharge of duties required by this code or other pertinent law or ordinance, shall not thereby be rendered personally liable, either civilly or criminally, and is hereby relieved from personal liability for any damage accruing to persons or property as a result of any act or by reason of an act or omission in the discharge of official duties. Any suit or criminal complaint instituted against any officer or employee because of an act performed by that officer or employee in the lawful discharge of duties and under the provisions of this code shall be defended by the legal representative of the jurisdiction until the final termination of the proceedings. The code official or any subordinate shall not be liable for costs in an action, suit or proceeding that is instituted in pursuance of the provisions of this code.

103.4.1 Legal defense.

Any suit or criminal complaint instituted against any officer or employee because of an act performed by that officer or employee in the lawful discharge of duties and under the provisions of this code or other laws or ordinances implemented through the enforcement of this code shall be defended by the legal representative of the jurisdiction until the final termination of the proceedings. The code official or any subordinate shall not be liable for costs in an action, suit or proceeding that is instituted in pursuance of the provisions of this code.

SECTION 104 - DUTIES AND POWERS OF THE CODE OFFICIAL

104.1 General.

The code official is hereby authorized and directed to enforce the provisions of this code. The code official shall have the authority to render interpretations of this code and to adopt policies and procedures in order to clarify the application of its provisions. Such interpretations, policies and procedures shall be in compliance with the intent and purpose of this code and shall be published.

Such policies and procedures shall not have the effect of waiving requirements specifically provided for in this code.

104.2 Inspections.

The code official shall make all of the required inspections or shall accept reports of inspections by approved agencies or individuals. All reports of such inspections shall be in writing and be certified by a responsible officer of such approved agency or by the responsible individual. The code official is authorized to engage such expert opinion as deemed necessary to report upon unusual technical issues that arise, subject to the approval of the appointing authority.

104.3 Right of entry.

The code official is authorized to enter the structure or premises at reasonable times to inspect subject to legal restrictions.

104.4 Identification.

The code official or employee charged with the enforcement of this code shall carry City issued identification when inspecting structures or premises in the performance of duties under this code. The code official shall make efforts to

notify available on-site management and impacted occupants of their presence and exhibit proper identification.

104.5 Notices and orders.

The code official shall issue all necessary notices or orders to ensure compliance with this code in accordance with Section 106.

104.6 Official records.

The code official shall keep official records of all business and activities of the department specified in the provisions of this code. Such records shall be retained in the official records for the period required for retention of public records.

SECTION 105 - APPROVAL

105.1 Modifications.

Whenever there are practical difficulties involved in carrying out the provisions of this code, the code official shall have the authority to grant modifications for individual cases upon application of the owner or owner's authorized agent, provided the code official shall first find that special individual reason makes the strict letter of this code impractical and the modification is in compliance with the intent and purpose of this code and that such modification does not lessen health, life and fire safety requirements. The order granting modifications shall be published.

105.2 Alternative materials, methods of construction and equipment.

The provisions of this code are not intended to prevent the installation of any material or to prohibit any design or method of construction not specifically prescribed by this code, provided that any such alternative has been approved. An alternative material design or method of construction shall be approved where the code official finds that the proposed design is satisfactory and complies with the intent of the provisions of this code, and that the material, method, or work offered is, for the purpose intended, at least not less than the equivalent of that prescribed in this code in quality, strength, effectiveness, fire resistance, durability, and safety. Where the alternative material, design or method of construction is not approved, the code official shall respond in writing, stating the reasons why the alternative was not approved. This section shall not supersede any historic or Neighborhood Conservation District (NCD) requirement.

105.3 Required testing.

Whenever there is insufficient evidence of compliance with the provisions of this code, or evidence that a material or method does not conform to the requirements of this code, or in order to substantiate claims for alternative materials or method the code official shall have the authority to require reasonable tests to be made as evidence of compliance at no expense to the jurisdiction.

105.3.1 Test methods.

Test methods shall be as specified in this code or by other recognized test standards. In the absence of recognized and accepted test methods, the code official shall be permitted to approve appropriate testing procedures performed by an approved agency.

105.3.2. Tests reports.

Reports of tests shall be retained by the code official for the period required for retention of public records.

105.4 Used material and equipment.

The use of used materials which meet the requirements of this code for new materials is permitted. Materials, equipment, and devices shall not be reused unless such elements are in good repair or have been reconditioned and tested when necessary and placed in good and proper working condition.

105.5 Approved materials and equipment.

Materials, equipment, and devices approved by the code official shall be constructed and installed in accordance with such approval.

105.6 Research reports.

Supporting data, where necessary to assist in the approval of materials or assemblies not specifically provided for in this code, shall consist of valid research reports from approved sources.

SECTION 106 - VIOLATIONS

106.1 Unlawful acts.

It shall be unlawful for a person, firm or corporation to be in conflict with or in violation of any of the provisions of this code.

106.2 Notice of violation.

The code official shall serve a notice of violation or order in accordance with Section 107.

106.3 Prosecution of violation.

Failure to comply with a notice of violation served in accordance with section 107 may result in criminal or civil penalty.

106.4 Violation penalties.

Any owner, tenant, person, firm, corporation or agent or employee thereof who violates any of the provisions of this San Antonio Property Maintenance Code and who fails to comply with the terms of the Notice of Violation in accordance with Section 106.2 within the time specified or any extensions of time granted by the code official, shall be fined upon conviction an amount not less than one hundred dollars ($100.00) and not more than two thousand dollars ($2,000.00) provided, however, in the event a defendant has once previously been convicted of the same offense, the defendant shall be fined an amount not less than two hundred dollars ($200.00) and shall be fined an amount not less than three hundred dollars ($300.00) for a third conviction of the same offense and for each conviction thereafter. Each day a violation is permitted to exist shall constitute a separate offense. Nothing in this section shall limit the remedies available to the City in seeking to enforce the provisions of this code.

106.5 Abatement of violation.

The imposition of the penalties herein prescribed shall not preclude the City Attorney from instituting appropriate action to restrain, correct or abate a violation, or to prevent illegal occupancy of a building, structure, or premises, or to stop an illegal act, conduct, business or utilization of the building, structure, or premises.

106.6 Personal liability of non-owners.

An individual who is an employee of either the owner, management company, or of the tenant of real property for which a notice of violation of this code is issued, or of a company that manages the property on behalf of the property owner, is not personally liable for civil or criminal penalties resulting from the violation if, not later than the tenth business day after the date the notice of violation is issued, the individual provides the property owner's name, current street address, and telephone number to the enforcement officer or the official's superior.

SECTION 107 - NOTICES AND ORDERS

107.1 Notice to person responsible.

Whenever the code official has determined that there has been a violation of this code or has grounds to believe that a violation has occurred, notice shall be given in the manner prescribed in sections 107.2 and 107.3 to the person responsible for the violation as specified in this code.

When a notice is provided under this section, the code official may inform the owner that if the owner commits another violation of the same subsection of this code on or before the first anniversary of the date of the notice, the City, without further notice, may proceed with the prosecution of said violation.

107.2 Form.

Such notice prescribed in Section 107.1 shall be in accordance with all of the following:

1. Be in writing with a statement in English and Spanish offering translation services and possible assistance options by the City.
2. Include a description of the real property sufficient for identification, including the affected dwelling unit and/or building, if applicable. This does not require a legal description.
3. Include a statement of the violation or violations and why the notice is being issued, including the applicable Code section(s) and a detailed description of the violation.

4. Include a correction order allowing a reasonable amount of time to make the repairs and improvements required to bring the premises into compliance with the provisions of this code.
5. Inform the property owner or owner's authorized agent of the right to appeal to the BSB with contact information for the BSB liaison. Upon request by appellant or authorized representatives, the BSB liaison shall provide written information as to appeal procedures.

107.3 Method of service.

Such notice shall be deemed to be properly delivered if a copy thereof is:

1. Delivered personally; or
2. Sent by certified mail, postage pre-paid, return receipt requested to the owner of record at the address as it appears on the Bexar County Appraisal District records; and if the notice is returned showing that the letter was not delivered, a copy thereof shall be posted in a conspicuous place in or about the structure affected by such notice; or
3. Sent by first class mail to the owner of record at the address as it appears on the Bexar County Appraisal District records and posting a notice in a conspicuous place in or about the structure affected by such notice.

107.4 Unauthorized tampering.

Signs, tags, or seals posted or affixed by the code official shall not be mutilated, destroyed, or tampered with, or removed without authorization from the code official.

107.5 Penalties.

Penalties for noncompliance with orders and notices shall be as set forth in Section 106.4.

107.6 Transfer of ownership.

It shall be unlawful for the owner of any dwelling unit or structure who has received a compliance order or upon whom a notice of violation has been served to sell, transfer, mortgage, lease or otherwise dispose of such dwelling unit or structure to another until the provisions of the compliance order or notice of violation have been complied with, or until such owner shall first furnish the grantee, transferee, mortgagee or lessee a true copy of any compliance order or notice of violation issued by the code official and shall furnish to the code official a signed and notarized statement from the grantee, transferee, mortgagee or lessee, acknowledging the receipt of such compliance order or notice of violation and fully accepting the responsibility without condition for making the corrections or repairs required by such compliance order or notice of violation.

SECTION 108 - UNFIT STRUCTURES AND UNSAFE EQUIPMENT

108.1 Unsafe conditions.

When equipment is found by the code official to be unsafe, or when a structure is found unfit for human occupancy or is found to be an unlawful structure, the structure and/or the equipment shall be deemed to be threats to the public health, safety, or welfare.

108.1.1 Unsafe structures.

Refer to San Antonio City Code, Chapter 6 - Buildings, Article VIII. Building Standards Board.

108.1.2 Unsafe equipment.

Unsafe equipment includes any boiler, heating equipment, elevator, moving stairway, electrical wiring or device, flammable liquid containers or other equipment on the premises or within the structure which is in such disrepair or condition that such equipment is a hazard to life, health, property, or safety of the public or occupants of the premises or structure.

108.1.3 Structure unfit for human occupancy.

A structure is unfit for human occupancy whenever the code official finds that such structure is unlawful, unsanitary, vermin or rat infested, contains filth and contamination, or lacks ventilation, illumination, sanitary or heating facilities or other essential equipment required by this

code, or because the location of the structure constitutes a hazard to the occupants of the structure to the public or to first responders.

108.1.4 Unlawful structure.

An unlawful structure is one found in whole or in part to be occupied by more persons than permitted under this code, or was erected, altered, or occupied contrary to law. This also includes those structures that were built without the required permits as outlined in San Antonio City Code Chapters 10 and 11.

108.1.5 Dangerous structure or premises.

Refer to San Antonio City Code, Chapter 6 - Buildings, Article VIII. Building Standards Board.

108.2 Closing of vacant structures.

Refer to San Antonio City Code, Chapter 6 - Buildings, Article VIII. Building Standards Board.

108.2.1 Authority to disconnect service utilities.

The code official shall have the authority to authorize disconnection of utility service to the building, structure or system regulated by this code and the referenced codes and standards set forth in Section 102.7 in case of emergency where necessary to eliminate an immediate hazard to life or property or when such utility connection has been made without approval. The code official shall notify the serving utility and, whenever possible, the owner or owner's authorized agent and occupant of the building, structure, or service system of the decision to disconnect prior to taking such action. If not notified prior to disconnection the owner, owner's authorized agent or occupant of the building structure or service system shall be notified in writing as soon as practical thereafter. If the notice is returned showing that the letter was not delivered, a copy thereof shall be posted in a conspicuous place in or about the structure affected by such notice.

The code official will notify any occupant(s) and the appropriate City department overseeing assistance programs at least three (3) days prior to taking such action on all lawfully occupied residential structures whenever feasible.

108.3 Vacate Notice and Right to Appeal.

Whenever the code official has determined a structure or equipment to be a threat to the public health, safety, or welfare under the provisions of this section, notice shall be posted in a conspicuous place in or about the structure affected by such notice and served on the owner or owner's authorized agent or occupant in accordance with Section 107.3. If the notice pertains to equipment, it shall also be placed on the equipment. The vacate notice shall follow the form prescribed in Section 107.2 with the exception of 107.2(4) and shall highlight the right to appeal to the BSB with contact information for the BSB liaison. Upon request by appellant or authorized representative, the BSB liaison shall provide written information as to the appeal procedures.

108.4 Prohibited occupancy.

Any occupied structure determined by the code official to be a threat or hazard to the public health, safety or welfare shall be vacated as notified by the code official. Failure to vacate as directed by the code official is a violation of this code. The code official shall advise the City department overseeing assistance programs immediately prior to or in conjunction with service of notice to lawfully occupied residential structures.

108.5 Abatement methods.

The owner, operator or occupant of a building, premises or equipment deemed to be a threat to the public health, safety, or welfare by the code official shall abate or cause to be abated or corrected such conditions either by repair, rehabilitation, demolition or by approved corrective action.

SECTION 109 - EMERGENCY MEASURES

109.1 Imminent danger.

When, in the opinion of the code official, there is imminent danger or when there is actual or potential danger to the building occupants because of explosives, explosive fumes or vapors or the presence of toxic fumes, gases or materials, or operation of defective or dangerous equipment,

or when the structure is found unfit for human occupancy by the code official as described in section 108.1.3 Structure unfit for human occupancy, the code official is hereby authorized and empowered to order and require the occupants to vacate the premises forthwith. The code official shall cause to be posted at each entrance to such structure a notice reading as follows: "This Structure is Unsafe and Its Occupancy Has Been Prohibited by the Code Official." It shall be unlawful for any person to enter such structure except for the purpose of securing the structure, making the required repairs, or removing the hazardous condition.

SECTION 110 - DEMOLITION

Refer to San Antonio City Code, Chapter 6 - Buildings, Article VIII. Building Standards Board.

SECTION 111 - MEANS OF APPEAL

The appellate process shall follow San Antonio City Code, Chapter 6 - Buildings, Article VIII. Building Standards Board.

SECTION 112 - STOP WORK ORDER

112.1 Authority.

Where the code official finds any work regulated by this code being performed in a manner contrary to the provisions of this code or in an unsafe manner, the code official is authorized to issue a stop work order.

112.2 Issuance.

The stop work order shall be in writing and shall be given to the owner of the property, to the owner's authorized agent, or to the person performing the work. Upon issuance of a stop work order, the cited work shall immediately cease. The stop work order shall state the reason for the order and the conditions under which the cited work is authorized to resume.

112.3 Emergencies.

Where an emergency exists, the code official shall not be required to give a written notice prior to stopping the work.

SECTION 113 - FEES

113.1 Fees.

The fees for activities and services performed by the department in carrying out its responsibilities under this code shall be as established by the applicable governing authority.

113.2 Refunds.

The code official is authorized to establish a refund policy.

CHAPTER 2
DEFINITIONS

SECTION 201 - GENERAL

201.1 Scope.

Unless otherwise expressly stated, the following terms shall, for the purposes of this code, have the meanings shown in this chapter.

201.2 Interchangeability.

Words stated in the present tense include the future; words stated in the masculine gender include the feminine and neuter; the singular number includes the plural and the plural, the singular.

201.3 Terms defined in other codes.

Where terms are not defined in this code and are defined in the codes in Chapter 8 of the San Antonio Property Maintenance Code, such terms shall have the meanings ascribed to them as stated in those codes.

201.4 Terms not defined.

Where terms are not defined through the methods authorized by this section, such terms shall have ordinarily accepted meanings such as the context implies.

201.5 Parts.

Whenever the words "dwelling unit," "dwelling," "premises," "building," "rooming house," "rooming unit," "housekeeping unit," or "story" are stated in this code, they shall be construed as though they were followed by the words "or any part thereof."

SECTION 202 - GENERAL DEFINITIONS

ANCHORED. Secured in a manner that provides positive connection.

ABSENTEE PROPERTY OWNER. The owner, as subsequently defined, who has legal possession of property within the city limits of the City of San Antonio and resides outside of Bexar County, Texas. Post office boxes will not be accepted as proof of residency within Bexar County, Texas. (See City Code Section 6-36 thru 6-50 for additional information regarding Absentee Property Owner registration.)

ACCUMULATION. A mass or quantity of something that has gradually gathered or been acquired.

APPROVED. Acceptable to the code official.

APPROVED AGENCY. An established and recognized organization that is regularly engaged in conducting tests, furnishing inspection services or furnishing product evaluation or certification where such organization has been approved by the code official.

BANDIT SIGN. Any sign posted on a utility pole, street sign or other street furniture or a sign posted in violation of this chapter in the public right-of-way having six (6) square feet or less of advertising area and made of vinyl, paper, cloth or fabric, polyboard, coroplast, corrugated plastic, poster board, plastic core, cardboard or plywood including signs with wood or wire framing, posts or stakes. No sign owned or placed by the city, the state, or a public utility shall be considered a bandit sign.

BASEMENT. That portion of a building which is partly or completely below grade.

BATHROOM. A room containing plumbing fixtures including a bathtub or shower.

BEDROOM. Any room or space used or intended to be used for sleeping purposes in either a dwelling or sleeping unit.

CITY. The City of San Antonio.

CODE OFFICIAL. The Director of Development Services or designee who is charged with the administration and enforcement of this code.

COST OF SUCH ABATEMENT OR EMERGENCY REPAIRS. The cost shall include the actual costs of the abatement or repair of the structure. Costs shall include, but not be limited to, expenses incurred or necessitated related to abatement or emergency repairs, such as asbestos survey and abatement if necessary; costs of inspectors, testing agencies or experts retained relative to the emergency repairs; costs of testing; surveys for other materials that are controlled or regulated from being dumped in a landfill; title searches; mailing(s); postings; recording; and attorney fees expended for recovering of the cost of abatement or emergency repairs.

DETACHED. When a structural element is physically disconnected from another and that connection is necessary to provide a positive connection.

DETERIORATION. To weaken, disintegrate, corrode, rust, or decay and lose effectiveness.

DWELLING UNIT. A single unit providing complete, independent living facilities for one or more persons, including permanent provisions for living, sleeping, eating, cooking and sanitation.

EASEMENT. That portion of land or property reserved for present or future use by a person or agency other than the legal fee owner(s) of the property. The easement shall be permitted to be for use under, on or above a said lot or lots.

EMERGENCY ESCAPE AND RESCUE OPENING. An operable exterior window, door or other similar device that provides for a means of escape and access for rescue in the event of an emergency.

EQUIPMENT SUPPORT. Those structural members or assemblies of members or manufactured elements, including braces, frames, lugs, snuggers, hangers or saddles, that transmit gravity load, lateral load and operating load between the equipment and the structure.

EXTERIOR PROPERTY. The open space on the premises and on adjoining property under the control of owners or operators of such premises.

FENCE. A tangible enclosure or barrier, but not including hedges, shrubs, trees, or other natural growth, erected for the purpose of providing a

boundary, separation of areas, means of protection, to prevent uncontrolled access, for decorative purposes, or concealment. This does not include an upright structure of building material forming an inner partition or exterior surface of a building or structure or any wall used in whole or in part to resist the lateral displacement of any material, and such wall is regulated by the International Building Code, as amended by the City.

FOUNDATION WALL. A structural component of a building such as vertical stone, concrete or masonry that supports the weight of the structure and its contents, and provides protection from moisture, movement and extreme temperatures.

GARBAGE. The animal or vegetable waste resulting from the handling, preparation, cooking and consumption of food.

GUARD. A building component or a system of building components located at or near the open sides of elevated walking surfaces that minimizes the possibility of a fall from the walking surface to a lower level.

HABITABLE SPACE. Space in a structure for living, sleeping, eating, or cooking. Bathrooms, toilet rooms, closets, halls, storage or utility spaces, and similar areas are not considered habitable spaces.

HAZARDOUS VEGETATION. Dead and dying trees, tree limbs or other natural growth which, by reason of rotting, deterioration, physical damage or storm damage constitutes a hazard to persons or structures within the vicinity thereof.

HISTORIC BUILDING. Any building or structure that is one or more of the following:

1. Listed or certified as eligible for listing, by the State Historic Preservation Officer or the Keeper of the National Register of Historic Places, in the National Register of Historic Places.
2. Designated as historic under an applicable state or local law.
3. Certified as a contributing resource within a National Register or state or locally designated historic district.

HOUSEKEEPING UNIT. A room or group of rooms forming a single habitable space equipped and intended to be used for living, sleeping, cooking, and eating which does not contain, within such a unit, a toilet, lavatory and bathtub or shower.

IMMINENT DANGER. A condition which could cause a reasonable likelihood of serious or life-threatening injury or death at any time.

INFESTATION. The presence, within or contiguous to, a structure or premises of insects, rats, vermin, or other pests.

UNSANITARY. A condition that is dirty and unhealthy so as to cause disease or harm people's health.

LABELED. Equipment, materials, or products to which have been affixed a label, seal, symbol or other identifying mark of a nationally recognized testing laboratory, approved agency or other organization concerned with product evaluation that maintains periodic inspection of the production of the above labeled items and whose labeling indicates either that the equipment, material, or product meets identified standards or has been tested and found suitable for a specified purpose.

LAVATORY. A fixed washbowl with running water and drainpipe customarily used to wash hands.

LAWFULLY. In accordance with the code requirements at the time of construction or installation.

LET FOR OCCUPANCY OR LET. To permit, provide or offer possession or occupancy of a dwelling, dwelling unit, rooming unit, building, premise, or structure by a person who is or is not the legal owner of record thereof, pursuant to a written or unwritten lease, agreement or license, or pursuant to a recorded or unrecorded agreement of contract for the sale of land.

LOT. Shall also include for purposes of this code, in addition to the land within its boundaries, all land adjacent to and extending beyond the property line to the curb line of adjacent streets, and where no curb exists, to the existing street

surface. The word lot shall also include all land lying between the property line of any lot and the center of adjacent alleys.

NEGLECT. The lack of proper maintenance for a building or structure.

OCCUPANCY. The purpose for which a building or portion thereof is utilized or occupied.

OCCUPANT. Any individual living or sleeping in a building or having possession of a space within a building.

OPENABLE AREA. That part of a window, skylight or door which is available for unobstructed ventilation and which opens directly to the outdoors.

OPERATOR. Any person who has charge, care or control of a structure or premises which is let or offered for occupancy.

OUTSIDE PLACEMENT. Any item, which is not customarily used or stored outside or not made of a material that is resistant to damage or deterioration from exposure to the outside environment, for a period in excess of twenty-four (24) hours. Said items include, but are not limited to, auto parts, appliances not in service, metal or wood products or parts not converted to a final use, beverage, food or other containers not stored within a closed household recycling bin or refuse container, plumbing fixtures commonly used indoors or that have been converted to another use. This includes placement in a structure that is open or not completely enclosed, including any porch cover or carport or upon any open porch or under any tarp.

This does not include lawn care tools or recreational equipment incidental to the use of the property. Building material stored outdoors on any site for construction or demolition of a structure on the premises shall be used or incorporated into the proposed structure or removed from the premises within sixty (60) days from the date of arrival on the premises or upon the expiration of any associated building permit, whichever comes later.

OWNER. Any person, agent, operator, firm or corporation having a legal or equitable interest in the property; or recorded in the official records of the state, county or municipality as holding title to the property or otherwise having control of the property including the guardian of the estate of any such person, and the executor or administrator of the estate of such person if ordered to take possession of real property by a court.

PERSON. An individual, corporation, partnership or any other group acting as a unit.

PEST ELIMINATION. The control and elimination of insects, rodents or other pests by eliminating their harborage places; by removing or making inaccessible materials that serve as their food or water; by other approved pest elimination methods.

POWER SAFETY COVER. A pool cover that is placed over the water area and is opened and closed with a motorized mechanism activated by a control switch.

PLUMBING APPURTENANCE. A manufactured device, prefabricated assembly or an on the job assembly of component parts that is an adjunct to the basic piping system and plumbing fixtures. An appurtenance demands no additional water supply and does not add any discharge load to a fixture or the drainage supply.

PREMISES. A lot, plot or parcel of land, easement or public way, including any structures thereon.

PRIVATE SWIMMING POOL. Any swimming pool which is closed to the general public and not defined as a semi-public pool.

PUBLIC WAY. Any street alley or similar parcel of land that is open to the outside air; leads to a street essentially unobstructed from the ground to the sky, which has been deeded, dedicated or otherwise permanently appropriated to the public for public use and has a clear width and height of not less than 10 feet (3084mm).

PUBLIC SWIMMING POOL. Any swimming pool which is open to the general public for a fee or otherwise.

PUBLISHED. Posted on the department website and kept in City files for a period of time.

REASONABLE TIME. The code official shall grant a minimum of 10 days to cure any notice of violation unless a stricter requirement exists in either City ordinance or State law. The code official may extend the timeframe for compliance based on the severity and nature of the condition and the reasonable availability of materials and labor and of utilities and other relevant circumstances.

ROOMING HOUSE. A building arranged or occupied for lodging, with or without meals, for compensation and not occupied as a one- or two-family dwelling.

ROOMING UNIT. Any room or group of rooms forming a single habitable unit occupied or intended to be occupied for sleeping or living, but not for cooking purposes.

RUBBISH. Combustible and noncombustible waste materials, except garbage; the term shall include the residue from the burning of wood, coal, coke and other combustible materials, paper, rags, cartons, boxes, wood, excelsior, rubber, leather, tree branches, yard trimmings, tin cans, metals, mineral matter, glass, crockery and dust and other similar materials.

SAFETY COVER. A structure, fabric or assembly, along with attendant appurtenances and anchoring mechanisms, that is temporarily placed or installed over an entire pool, spa or hot tub and secured in place after all bathers are absent from the water.

SEMI-PUBLIC SWIMMING POOL. (1) Any privately owned swimming pool or spa which is open to the general public for a fee; or (2) Any swimming pool or wading pool, spa, or sauna, serving a private club, motel, hotel, apartment building, school, childcare facility, recreational or physical fitness facility, institution, homeowner's association, or other similar activity or structure, the use of which is limited to members, residents, students or clients and their guests.

SLEEPING UNIT. A room or space in which people sleep, which can also include permanent provisions for living, eating and either sanitation or kitchen facilities, but not both. Such rooms and spaces that are also part of a dwelling unit are not sleeping unit s (i.e., hotel guest rooms, dormitory, and boarding houses).

STRUCTURAL MEMBERS. The components of a building that provides support and bear the primary loads and primary components of a structure.

STRUCTURE. That which is built or constructed.

SURFACE HAZARD. Holes, excavations, breaks, projections, obstructions and other hazardous conditions on paths, walkways, driveways, parking lots, parking areas and other parts of the premises which are accessible to any person entering thereon.

SWIMMING POOL. Any structure intended for swimming or recreational bathing that contains water over 24 inches (610 mm) deep. This includes in-ground, above-ground and on-ground swimming pool, hot tubs, and spas.

SWIMMING POOL - INDOOR. A swimming pool which is totally contained within another structure and surrounded on all four sides by the walls of the enclosing second structure.

SWIMMING POOL - OUTDOOR. A swimming pool which is not an indoor swimming pool.

TENANT. A person, corporation, partnership or group, whether or not the legal owner of record, occupying a building or portion thereof as a unit.

TOILET ROOM. A room containing a water closet (toilet) or urinal but not a bathtub or shower.

VENTILATION. The natural or mechanical process of supplying conditioned or unconditioned air to, or removing such air from, any space.

WORKMANLIKE. Executed in a skilled manner; e.g., generally plumb, level, square, in line, undamaged and without marring adjacent work.

YARD. An open space on the same lot with a structure.

CHAPTER 3
GENERAL REQUIREMENTS

SECTION 301 - GENERAL

301.1 Scope.

The provisions of this chapter shall govern the minimum conditions and the responsibilities of persons for maintenance of structures, equipment, and exterior property.

Occupied and partially occupied structures are to be maintained consistent with the requirements of the property maintenance code.

301.2 Responsibility.

The owner of the premises shall maintain the structure(s) and exterior property in compliance with these requirements, and the code under which the building was constructed, except as otherwise provided for in this code or in State or Federal Law. The owner or owner's agent shall be responsible to ensure that any repairs, additions or alterations to the building or portion thereof are performed or constructed in accordance with the International Building Code, International Residential Code or International Existing Building Code. A person shall not occupy as owner - occupant or permit another person to occupy premises which do not comply with the requirements of this chapter. Occupants of a dwelling unit, rooming unit or housekeeping unit are responsible for keeping that part of the dwelling unit, rooming unit, housekeeping unit or premises which they occupy and control in a clean, sanitary, and safe condition.

301.3 Vacant structures and land.

Refer to San Antonio City Code, Chapter 12, Article I for Vacant Structures which are located within the boundary of or within a one half-mile perimeter of the Central Business District, historic districts, neighborhood conservation districts, and city-initiated tax increment reinvestment zones (TIRZ); as well as all vacant historic landmarks and vacant structures with a one half-mile perimeter of all active military bases and defense base authorities.

Refer to San Antonio City Code, Chapter 6, Article VIII - Building Standards Board for all other vacant building standards.

Refer to Building Standards Board and Chapter 14 - Solid Waste, Article V Lot Clearance for vacant lots.

301.3.1 Boarding Standards.

Refer to APPENDIX C - BOARDING STANDARD; SECTION GENERAL; SECTION MATERIALS; and SECTION INSTALLATION.

SECTION 302 - EXTERIOR PROPERTY AREAS

302.1 Exterior maintenance.

All exterior property and premises shall be maintained in a clean, safe, and sanitary condition and free of outside placement, hazardous vegetation, or surface hazards. The occupant shall keep that part of the exterior property which such occupant occupies or controls in a clean and sanitary condition.

302.2 Grading and drainage.

All premises shall be graded and maintained to prevent the erosion of soil and to prevent the accumulation of stagnant water thereon, or within any structure located thereon.

Exception: Approved detention areas, retention areas, filtration areas and reservoirs.

302.3 Sidewalks.

All sidewalks, walkways, stairs, driveways, retaining walls, parking spaces and similar areas shall be kept in a proper state of repair, and maintained free from hazardous conditions. Damage due to work by public utilities shall be repaired by the specific public utility according to the same standards required as the property owner.

302.4 Weeds.

All improved premises and exterior property shall be maintained free from weeds or plant growth in excess of twelve (12) inches in height. All noxious weeds shall be prohibited. Weeds shall be defined as all grasses, annual plants, and vegetation, other than trees or shrubs provided; however, this term shall not include 1) cultivated flowers and gardens, (2) native grasses,

perennials and annual plants installed as part of a landscaping design, or 3) natural or manmade "rough" areas as part of golf course in current operation.

302.5 Rodent harborage.

All structures and exterior property shall be kept free from rodent harborage and infestation. Where rodents are found, they shall be promptly exterminated by approved processes which will not be injurious to human health. After extermination, proper precautions shall be taken to eliminate rodent harborage and prevent re-infestation.

302.6 Exhaust vents.

Pipes, ducts, conductors, fans, or blowers shall not discharge gases, steam, vapor, hot air, grease, smoke, odors or other gaseous or particulate wastes directly upon abutting or adjacent public or private property or that of another tenant and shall discharge a minimum four (4) feet from adjacent property lines or exhaust to the roof.

Exception: Pipes, ducts, conductors, fans, or blowers installed lawfully.

302.7 Accessory structures.

All accessory structures, including detached garages, shall be maintained structurally sound and in good repair.

302.7.1 Fences.

All fences, facing the street frontage of the premises or adjacent to a public way, and those fences that are required by other federal, state, or local ordinance, shall be maintained structurally sound and in good repair. Any of the following conditions shall be corrected:

1. Any fence, or any portion thereof, out of vertical alignment by more than fifteen (15) degrees.
2. Rotted, fire damaged or broken wooden support posts or cross members shall be repaired or replaced.
3. Broken, fire damaged or missing wooden slats shall be repaired or replaced.
4. Broken or severely bent metal posts or torn, cut or ripped metal fencing materials shall be repaired or replaced.
5. Any fence, or any portion thereof, having loose bricks, stones, rocks, mortar, masonry, or similar materials shall be repaired or replaced.

The above requirements shall not prohibit a fence, or any portion thereof, from being removed if the remaining portions are safe and in good condition and the erection and maintenance of a fence is not otherwise required by law.

302.8 Motor vehicles.

Refer to San Antonio City Code, Chapter 19 - Motor Vehicles and Traffic, Article X - Junked Vehicles.

302.9 Defacement of property.

Refer to San Antonio City Code Chapter 21, Article X, Graffiti.

SECTION 303 - SWIMMING POOLS, SPAS AND HOT TUBS

303.1 Swimming pools.

Swimming pools, spas and hot tubs shall be maintained in a clean and sanitary condition, and in good repair.

303.2 Enclosures.

The provisions of this section apply to existing private outdoor swimming pools, hot tubs and spas built prior to January 1, 2010. The provisions of this section do not apply to public or semi- public swimming pools, hot tubs, and spas.

All private swimming pools, hot tubs and spas containing water more than 24 inches (610 mm) in depth shall be completely surrounded by a fence or barrier at least 48 inches (1219 mm) in height above the finished ground level measured on the side of the barrier away from the pool. Gates and doors in such barriers shall be lockable or self-closing and self-latching. Where the self-latching device is less than 54 inches (1372 mm) above the bottom of the gate, the release mechanism shall be located on the pool side of the gate. Self-closing and self-latching gates shall be maintained such that the gate will positively close and latch when released from an open position of 6 inches (152 mm) from the gatepost. Privacy fences can serve as the

enclosure. Where a wall of dwelling unit serves as part of the enclosure doors must be lockable. No existing pool enclosure shall be removed, replaced, or changed in a manner that reduces its effectiveness as a safety barrier.

Where an above-ground pool structure is used as a barrier or where the barrier is mounted on top of the pool structure, and the means of access is a ladder or steps, the ladder or steps shall be capable of being secured, locked, or removed to prevent access; or the ladder or steps shall be surrounded by an enclosure as described in this section.

Exceptions:

1. Spas or hot tubs equipped with a lockable safety cover that complies with ASTM F1346.
2. Private swimming pools equipped with a power safety cover that complies with ASTM F1346 and is in working condition using the control switch.

All swimming pools, hot tubs and spas built after January 1, 2010 must comply with the requirements of Section 3109 of the 2015 International Building Code, as adopted by the City.

SECTION 304 - EXTERIOR STRUCTURE

304.1 General.

The exterior of all occupied or partially occupied structures shall be maintained in good repair, structurally sound and sanitary so as not to pose a threat to the public health, safety, or welfare.

Refer to San Antonio City Code, Chapter 12 Vacant Property Owner Registration for additional exterior maintenance requirements for certain vacant properties.

304.1.1 Unsafe conditions.

Refer to San Antonio City Code, Chapter 6 - Buildings, Article VIII. Building Standards Board.

304.2 Protective treatment.

All exterior surfaces, including but not limited to, doors, door and window frames, cornices, porches, trim, balconies, and decks shall be maintained in good condition. Exterior wood surfaces, other than decay resistant woods, shall be protected from the elements and decay by painting or other protective covering or treatment. All siding and masonry joints, as well as those between the building envelope and the perimeter of windows, doors, and skylights, shall be maintained weather resistant and watertight. All metal surfaces subject to rust or corrosion shall be coated to inhibit such rust and corrosion, and all surfaces with rust or corrosion shall be stabilized and coated to inhibit future rust and corrosion. Oxidation stains shall be removed from exterior surfaces. Surfaces designed for stabilization by oxidation are exempt from this requirement.

304.3 Premises identification.

The property shall have address numbers placed in a position to be plainly legible and visible from the street or road fronting the property. These numbers shall contrast with their background. Address numbers shall be Arabic numerals or alphabet letters. Numbers shall be a minimum of 4 inches (102 mm) high with a minimum stroke width of 0.5 inch (12.7 mm).

All multiunit buildings shall have signage that identifies all units contained within the building. The signage should be placed in a position to be plainly legible and visible from the driveway fronting the building. The signage shall have a contrasting background with a minimum of 4 inches (102mm) high lettering with a minimum stroke width of 0.5 inch (12.7 mm).

Effective January 1, 2016, in addition to premises identification in the front of the property as described above, residential properties using an alleyway longer than ten (10) lots in length to access a rear garage, carport or driveway will also require premises identification in the rear of the property along the alley.

304.4 Structural members.

All structural members shall be maintained free from deterioration and shall be capable of safely supporting the imposed dead and live loads.

304.5 Foundation walls.

All foundation walls shall be maintained plumb and free from open cracks and breaks and shall be kept in such condition so as to prevent the entry of rodents and other pests.

304.6 Exterior walls.

All exterior walls shall be free from holes, breaks, and loose or rotting materials; and maintained weatherproof and properly surface-coated where required to prevent deterioration.

304.7 Roof and drainage.

The roof and flashing shall be sound, tight, and not have defects that admit rain. Roof drainage shall be adequate to prevent dampness or deterioration in the walls or interior portion of the structure. Roof drains, gutters and downspouts shall be maintained in good repair and free from obstructions.

304.8 Decorative features.

All cornices, belt courses, corbels, terra cotta trim, wall facings and similar decorative features shall be maintained in good repair with proper anchorage and in a safe condition.

304.9 Overhang extensions.

All overhang extensions including, but not limited to canopies, marquees, signs, metal awnings, fire escapes, standpipes and exhaust ducts shall be maintained in good repair and be properly anchored so as to be kept in a sound condition. When required, all exposed surfaces of metal or wood shall be protected from the elements and against decay or rust by periodic application of weather-coating materials, such as paint or similar surface treatment.

304.10 Stairways, decks, porches, and balconies.

Every exterior stairway, deck, porch and balcony, and all appurtenances attached thereto, shall be maintained structurally sound, in good repair, with proper anchorage and capable of supporting the imposed loads.

304.11 Chimneys and towers.

All chimneys, cooling towers, smokestacks, and similar appurtenances shall be maintained structurally safe and sound, and in good repair. All exposed surfaces of metal or wood shall be protected from the elements and against decay or rust by periodic application of weather coating materials, such as paint or similar surface treatment.

304.12 Handrails and guards.

Every handrail and guard shall be firmly fastened and capable of supporting normally imposed loads and shall be maintained in good condition.

304.13 Window, skylight, and door frames.

Every window, skylight, door, and frame shall be kept in sound condition, good repair, and weather tight.

304.13.1 Glazing.

All glazing materials shall be maintained in sound condition and good repair.

304.13.2 Openable windows.

Every window, other than a fixed window, shall be easily openable and capable of being held in position by window hardware.

304.14 Insect screens.

Every door, window and other outside opening required for ventilation of habitable spaces, food preparation areas, food service areas or any areas where products to be included or utilized in food for human consumption are processed, manufactured, packaged or stored shall be supplied with approved tightly fitting screens of not less than 16 mesh per inch (16 mesh per 25 mm), and every screen door used for insect control shall have a self-closing device in good working condition.

Exceptions:

(1) Screens shall not be required where other approved means, such as air curtains or insect repellent fans, are employed.

(2) Habitable spaces served by air conditioning unless the air conditioning has not been functioning for more than seven (7) consecutive days.

(3) Doors are not required to be screened if there is an additional ventilation source in the room.

304.15 Doors.

All exterior doors, door assemblies and hardware shall be maintained in good condition. Locks at all entrances to dwelling units and sleeping units shall tightly secure the door. Locks on means of egress doors shall be in accordance with Section 702.3.

304.16 Basement hatchways.

Every basement hatchway shall be maintained to prevent the entrance of rodents, rain, and surface drainage water.

304.17 Guards for basement windows.

Every basement window that is openable shall be supplied with rodent shields, storm windows or other approved protection against the entry of rodents.

304.18 Building security.

304.18.1 Occupied and partially occupied structures.

Doors, attic access, windows or hatchways for dwelling units, room units or housekeeping units shall be provided with devices designed to provide security for the occupants and property within.

The owners of residential rental units shall be deemed to have met this requirement by installing devices that are required under the TEXAS PROPERTY CODE- TITLE 8 LANDLORD AND TENANT - CHAPTER 92. RESIDENTIAL TENANCIES- SUBCHAPTER D. SECURITY DEVICES.

Exception: Locking devices for Attic access are not required in single family dwellings.

304.18.2 All structures within the Central Business District, historic districts, vacant designated historic landmarks, and half-mile perimeters around active military bases.

Additional securing standards are required for vacant structures which are located within the boundary of or within a one half-mile perimeter of the Central Business District, historic districts, neighborhood conservation districts, and city-initiated tax increment investment zones (TIRZ) as well as all vacant historic landmarks and vacant structures within a one half-mile perimeter of all active military bases and defense base authorities. Refer to San Antonio City Code Chapter 12, Article I - Vacant Buildings.

1. *Securing Windows.* Window openings may not be secured by plywood or by other temporary securing methods unless the product and securing method is approved by the Code Official. Windows are to be maintained within window openings and secured with normal locking mechanisms and are to be maintained consistent with the requirements of this code.
2. *Securing doors.* Door openings may not be secured by plywood or by other temporary securing methods unless the product and securing method is approved by the Code Official. Doors are to be maintained within openings and secured with normal locking mechanisms and are to be maintained consistent with the requirements of this code.

Note: Temporary plywood may be used to secure windows and doors for a maximum of 14 days. Refer to San Antonio City Code, Chapter 6, Article VIII for all other vacant building standards.

SECTION 305 - INTERIOR STRUCTURE

305.1 General.

The interior of a structure and equipment therein shall be maintained in good repair, structurally sound and in a sanitary condition. Occupants shall keep that part of the structure which they occupy or control in a clean and sanitary condition. Every owner of a structure containing a rooming house, housekeeping units, a hotel, a dormitory, two or more dwelling units or two or more nonresidential occupancies, shall maintain, in a clean and sanitary condition, the shared or public areas of the structure and exterior property.

305.1.1 Unsafe conditions.

Refer to San Antonio City Code, Chapter 6 - Buildings, Article VIII. Building Standards Board.

305.2 Structural members.

All structural members shall be maintained structurally sound and be capable of supporting the imposed loads.

305.3 Interior surfaces.

All interior surfaces, including windows and doors, shall be maintained in good repair, clean and sanitary condition. Loose plaster, decayed wood and other defective surface conditions shall be corrected.

305.4 Stairs and walking surfaces.

Every stair, ramp, landing, balcony, porch, deck, or other walking surface shall be maintained in sound condition and good repair.

305.5 Handrails and guards.

Every handrail and guard shall be firmly fastened and capable of supporting normally imposed loads and shall be maintained in good condition.

305.6 Interior doors.

Every interior door shall fit reasonably well within its frame and shall be capable of being opened and closed by being properly and securely attached to jambs, headers or tracks as intended by the manufacturer of the attachment hardware.

SECTION 306 - COMPONENT SERVICE-ABILITY

Refer to San Antonio City Code, Chapter 6 - Buildings, Article VIII. Building Standards Board.

SECTION 307 - HANDRAILS AND GUARD RAILS

307.1 General.

Every exterior and interior flight of stairs having more than four risers shall have a handrail on one side of the stair and every open portion of a stair, landing, balcony, porch, deck, ramp, or other walking surface which is more than 30 inches (762 mm) above the floor or grade below shall have guards. Handrails shall not be less than 30 inches (762 mm) high or more than 42 inches (l067 mm) high measured vertically above the nosing of the tread or above the finished floor of the landing or walking surfaces. Guards shall not be less than 30 inches (762 mm) high above the floor of the landing, balcony, porch, deck, or ramp or other walking surface.

Exception: Guards shall not be required where exempted by the adopted building code. Guards in commercial buildings and R-2 Occupancy shall be governed by the International Fire Code, as amended by the City. In larger stairways, handrails may be located in the center of the stairway.

SECTION 308 - RUBBISH AND GARBAGE

308.1 Accumulation of rubbish or garbage.

All exterior property and premises, and the interior of every structure, shall be free from any accumulation of rubbish or garbage.

308.2 Disposal of rubbish.

Every occupant of a structure shall dispose of all rubbish in a clean and sanitary manner by placing such rubbish in approved containers.

308.2.1 Rubbish storage facilities.

The owner of every occupied premise shall supply approved covered containers for rubbish, and the owner of the premise shall be responsible for the removal of rubbish.

Exception: Unless provided otherwise by contract or by City.

308.2.2 Refrigerators.

Refrigerators and similar equipment not in operation shall not be discarded, abandoned, or stored on the exterior of the premises without first removing or securing the doors.

308.3 Disposal of garbage.

Every occupant of a structure shall dispose of garbage in a clean and sanitary manner by placing such garbage in an approved garbage disposal facility or approved garbage containers.

SECTION 309 - PEST ELIMINATION

309.1 Infestation.

All structures shall be kept free from insect and rodent infestation. All structures in which insects or rodents are found shall be promptly exterminated by approved processes that will not be injurious to human health. After extermination, proper precautions shall be taken to prevent reinfestation.

309.2 Extermination Prior to Occupancy.

Where infestation exists, the owner of any structure shall be responsible for extermination within the structure prior to renting or leasing the structure.

309.3 Single occupant.

The occupant of a one-family dwelling or of a single-tenant nonresidential structure shall be responsible for extermination on the premises.

309.4 Multiple occupancy.

The owner of a structure containing two or more dwelling units, a multiple occupancy, a rooming house, or a nonresidential structure shall be responsible for extermination in the public or shared areas of the structure and exterior property. If infestation is caused by failure of an occupant to prevent such infestation in the area occupied, the occupant and owner shall be responsible for extermination.

309.5 Occupant.

The occupant of any structure shall be responsible for the continued rodent and pest-free condition of the structure.

Exception: Where the infestations are caused by defects in the structure, the owner shall be responsible for extermination.

CHAPTER 4
LIGHT, VENTILATION AND OCCUPANCY LIMITATIONS

SECTION 401 - GENERAL

401.1 Scope.

The provisions of this chapter shall govern the minimum conditions and standards for light, ventilation, and space for occupying a structure.

401.2 Responsibility.

The owner of the structure shall provide and maintain light, ventilation and space conditions in compliance with these requirements. A person shall not occupy as owner - occupant, or permit another person to occupy, any premises that do not comply with the requirements of this chapter.

401.3 Alternative devices.

In lieu of the means for natural light and ventilation herein prescribed, artificial light or mechanical ventilation complying with the referenced standards in Chapter 8 shall be permitted.

SECTION 402 - LIGHT

402.1 Habitable spaces.

Every habitable space shall have at least one window of approved size facing directly to the outdoors or to a court. The minimum total glazed area for every habitable space shall be 8 percent of the floor area of such room. Wherever walls or other portions of a structure face a window of any room and such obstructions are located less than 3 feet (914 mm) from the window and extend to a level above that of the ceiling of the room, such window shall not be deemed to face directly to the outdoors nor to a court and shall not be included as contributing to the required minimum total window area for the room.

Exceptions:

1. Where natural light for rooms or spaces without exterior glazing areas is provided through an adjoining room, the unobstructed opening to the adjoining room shall be at least 8 percent of the floor area of the interior room or space, but not less than 25 square feet (2.33 m2). The exterior glazing area shall be based on the total floor area being served.
2. Where installed or constructed lawfully.

402.2 Common halls and stairways.

Every common hall and stairway in residential occupancies, other than in one- and two-family dwellings shall be lighted at all times with at least a 60-watt standard incandescent light bulb for each 200 square feet (19 m2) of floor area or equivalent illumination, provided that the spacing between lights shall not be greater than 30 feet (9144 mm). In other than residential occupancies, means of egress, including exterior means of egress, stairways shall be illuminated in accordance with Chapter 11 of the International Fire Code, as amended by the City.

Exceptions:

1. Unless installed or constructed lawfully.

402.3 Other spaces.

All other spaces shall be provided with natural or artificial light sufficient to permit the maintenance of sanitary conditions, and the safe occupancy of the space and utilization of the appliances, equipment, and fixtures.

SECTION 403 - VENTILATION

403.1 Habitable spaces.

Every habitable space shall have at least one openable window. The total openable area of the window in every room shall be equal to at least 45 percent of the minimum glazed area required in Section 402.1.

Exceptions:

1. Where rooms and spaces without openings to the outdoors are ventilated through an adjoining room, the unobstructed opening to the adjoining room shall be at least 8 percent of the floor area of the interior room or space, but not less than 25 square feet (2.33 m2). The ventilation openings to the outdoors shall be based on a total floor area being ventilated.

2. Unless installed or constructed lawfully.

403.2 Bathrooms and toilet rooms.

Every bathroom and toilet room shall comply with the ventilation requirements for habitable spaces as required by Section 403.1, except that a window shall not be required in such spaces equipped with a mechanical ventilation system. Air exhausted by a mechanical ventilation system from a bathroom or toilet room shall discharge to the outdoors and shall not be re-circulated.

Exception: Re-circulating mechanical ventilation system allowed where installed or constructed lawfully.

403.3 Cooking facilities.

Unless approved through the certificate of occupancy, cooking shall not be permitted in any rooming unit or dormitory unit, and a cooking facility or appliance shall not be permitted to be present in the rooming unit or dormitory unit.

Exceptions:

1. Where specifically approved in writing by the code official.

2. Devices such as coffee pots and microwave ovens shall not be considered cooking appliances.

403.4 Process ventilation.

Where injurious, toxic, irritating, or noxious fumes, gases, dusts, or mists are generated, a local exhaust ventilation system shall be provided to remove the contaminating agent at the source. Air shall be exhausted to the exterior and not be recirculated to any space.

Exception: Re-circulating vent hoods are allowed in residential occupancies where installed lawfully.

403.5 Clothes dryer exhaust.

Clothes dryer exhaust systems shall be independent of all other systems and shall be exhausted outside the structure in accordance with the manufacturer's instructions.

Exception: Listed and labeled condensing (ductless) clothes dryers.

SECTION 404 - OCCUPANCY LIMITATIONS

404.1 Privacy.

Dwelling units, hotel units, housekeeping units, rooming units and dormitory units shall be arranged to provide privacy and be separate from other adjoining spaces.

404.2 Minimum room widths.

A habitable room, other than a kitchen shall not be less than 7 feet (2134 mm) in any plan dimension. Kitchens shall have a clear passageway of not less than 3 feet (914 mm) between counter fronts and appliances or counter fronts and walls.

Exception: Where constructed lawfully.

404.3 Minimum ceiling heights.

Habitable spaces, hallways, corridors, laundry areas, bathrooms, toilet rooms and habitable basement areas shall have a clear ceiling height of not less than 7 feet (2134 mm).

Exceptions:

1. In one- and two-family dwellings, beams or girders spaced not less than 4 feet (1219 mm) on center and projecting not more than 6 inches (152 mm) below the required ceiling height.
2. Basement rooms in one- and two-family dwellings occupied exclusively for laundry, study, or recreation purposes, having a ceiling height of not less than 6 feet 8 inches (2033 mm) with not less than 6 feet 4 inches (1932 mm) of clear height under beams, girders, ducts, and similar obstructions.
3. In one- and two-family dwellings, rooms occupied exclusively for bathrooms, toilet rooms and laundry rooms having a minimum ceiling height of 6 feet 8 inches (2033 mm).
4. Rooms occupied exclusively for sleeping, study or similar purposes and having a sloped ceiling over all or part of the room, with a clear ceiling height of at least 7 feet (2134mm) over not less than one-third of the required minimum floor area. In calculating the floor area of such rooms, only those portions of the floor area with a clear ceiling height of 5 feet (1524 mm) or more shall be included.
5. Unless installed or constructed lawfully.

404.4 Habitable room and bedroom requirements.

Every habitable room and bedroom shall comply with the requirements of Sections 404.4.1 through 404.4.5.

404.4.1 Room area.

Every living room shall contain not less than 120 square feet (11.2 m2) and every bedroom shall contain not less than 70 square feet (6.5 m2) and every bedroom occupied by more than one person shall contain not less than 50 square feet (4.6 m2) of floor area for each occupant thereof.

Exception: Unless constructed lawfully.

404.4.2 Access from bedrooms.

Bedrooms shall not constitute the only means of access to other bedrooms or habitable spaces and shall not serve as the only means of egress from other habitable spaces.

Exception:

1. Units that contain fewer than two bedrooms.
2. Unless lawful at the time of construction or renovation.

404.4.3 Toilet accessibility.

Every bedroom shall have access to at least one Toilet and one lavatory without passing through another bedroom. Every bedroom in a dwelling unit shall have access to at least one Toilet and lavatory located in the same story as the bedroom or an adjacent story.

Exception: Unless constructed lawfully.

404.4.4 Prohibited occupancy.

Kitchens and non-habitable spaces shall not be used for sleeping purposes.

404.4.5 Other requirements.

Bedrooms shall comply with the applicable provisions of this code including, but not limited to, the light, ventilation, room area, ceiling height and room width requirements of this chapter; the plumbing facilities and water-heating facilities requirements of Chapter 5; the heating facilities and electrical receptacle requirements of Chapter 6; and the smoke detector and emergency escape requirements of Chapter 7.

404.5 Overcrowding.

The number of persons occupying a dwelling unit shall not create conditions that, in the opinion of the code official, endanger the life, health, safety or welfare of the occupants. The code official is authorized to utilize nationally recognized standards and applicable federal, state, and local laws to determine overcrowding conditions.

404.6 Efficiency unit.

Nothing in this section shall prohibit an efficiency living unit, from meeting the following requirements:

1. A unit occupied by not more than one occupant shall have a minimum clear floor area of 120 square feet (11.2 m2). A unit occupied by not more than two occupants shall have a clear floor area of not less than 190 square feet (17.7 m2). A unit occupied by three occupants shall have a clear floor area of not less than 260 square feet (24.2 m2). These required areas shall be exclusive of the areas required by Items 2 and 3.

   Exception: Where constructed lawfully.

2. A unit occupied by not more than one occupant shall have a minimum clear floor area of 120 square feet (11.2 m2). The unit shall be provided with a kitchen sink, cooking appliance and refrigeration facilities, each having a clear working space of not less than 30 inches (762 mm) in front. Light and ventilation conforming to this code shall be provided.

3. The unit shall be provided with a separate bathroom containing a toilet, lavatory and bathtub or shower.

4. The maximum number of occupants shall be three.

404.7 Food preparation.

All spaces to be occupied for food preparation purposes shall contain suitable space and equipment to store, prepare and serve foods in a sanitary manner. There shall be adequate facilities and services for the sanitary disposal of food wasteland refuse, including facilities for temporary storage.

CHAPTER 5
PLUMBING FACILITIES AND FIXTURE REQUIREMENTS

SECTION 501 - GENERAL

501.1 Scope.

The provisions or this chapter shall govern the minimum plumbing systems, facilities, and plumbing fixtures to be provided.

501.2 Responsibility.

The owner of the structure shall provide and maintain such plumbing facilities and plumbing fixtures in compliance with these requirements. A person shall not occupy as owner - occupant or permit another person to occupy any structure or premises which does not comply with the requirements of this chapter.

SECTION 502 - REQUIRED FACILITIES

502.1 Dwelling units.

Every dwelling unit shall contain its own bathtub or shower, lavatory, toilet, and kitchen sink which shall be maintained in a sanitary, safe working condition. The lavatory shall be placed in the same room as the toilet or located in close proximity to the door leading directly into the room in which such toilet is located. A kitchen sink shall not be used as a substitute for the required lavatory.

502.2 Rooming houses.

At least one toilet, lavatory and bathtub or shower shall be supplied for each four rooming units.

502.3 Hotels.

Where private toilets, lavatories and baths are not provided, one toilet, one lavatory and one bathtub or shower having access from a public hallway shall be provided for each ten occupants.

502.4 Employees' facilities.

A minimum of one toilet, one lavatory and one drinking facility shall be available to employees.

502.4.1 Drinking facilities.

Drinking facilities shall be a drinking fountain, water cooler, bottled water cooler or disposable cups next to a sink or water dispenser. Drinking facilities shall not be located in toilet rooms or bathrooms.

502.5 Public toilet facilities.

Public toilet facilities shall be maintained in a safe sanitary and working condition in accordance with the International Plumbing Code, as amended by the City.

SECTION 503 - TOILET ROOMS

503.1 Privacy.

Toilet rooms and bathrooms shall provide privacy and shall not constitute the only passageway to a hall or other space, or to the exterior. A door and interior locking device shall be provided for all common or shared bathrooms and toilet rooms in a multiple dwelling.

Exception: Except where provided otherwise in state rules and regulations.

503.2 Location.

Toilet rooms and bathrooms serving hotel units, rooming units or dormitory units or housekeeping units, shall have access by traversing not more than one flight of stairs and shall have access from a common hall or passageway.

503.3 Location of employee toilet facilities.

Employees shall have access to toilet facilities near the employees' working areas. The required toilet facilities shall be located not more than one story above or below the employees' working area and the path of travel to such facilities shall not exceed a distance of 500 feet (152 m). Employee facilities shall either be separate facilities or combined employee and public facilities.

Exception:

1. No toilet facility is required at offsite work areas.
2. In multi-unit residential properties, a toilet facility is not required if there is no onsite management office located on the property.
3. In multi-unit residential properties, where there is an onsite management office, there is no maximum travel distance to a toilet facility.
4. Facilities that are required for employees in storage structures or kiosks, which are located in adjacent structures under the same ownership, lease, or control, shall not exceed a travel distance of 500 feet (152 m) from the employees' regular working area to the facilities.

503.4 Floor surface.

In other than dwelling units, every toilet room floor shall be maintained to be a smooth, hard, nonabsorbent surface to permit such floor to be easily kept in a clean and sanitary condition.

SECTION 504 - PLUMBING SYSTEMS AND FIXTURES

504.1 General.

All plumbing fixtures shall be properly installed and maintained in working order, and shall be kept free from obstructions, leaks and defects and be capable of performing the function for which such plumbing fixtures are designed. All plumbing fixtures shall be maintained in a safe, sanitary, and functional condition.

504.2 Fixture clearances.

Plumbing fixtures shall have adequate clearances for usage and cleaning.

504.3 Plumbing system hazards.

Where it is found that a plumbing system in a structure constitutes a hazard to the occupants or the structure by reason of inadequate service, inadequate venting, cross connection, back siphonage, improper installation, deterioration, or damage or for similar reasons, the code official shall require the defects to be corrected to eliminate the hazard.

SECTION 505 - WATER SYSTEM

505.1 General.

505.1.1 Every sink, lavatory, bathtub, or shower, drinking fountain, Toilet or other plumbing fixture shall be properly connected to either a public water system or to an approved private water system.

505.1.2 All kitchen sinks, lavatories, laundry facilities, bathtubs and showers shall be sup-

plied with hot or tempered and cold running water in accordance with the International Plumbing Code.

Exceptions:

1. Non-residential facilities not open to the general public;
2. Parks, golf courses, and recreation facilities;
3. Non-residential facilities constructed lawfully without hot water; and
4. Outdoor kitchen sinks that are not the only sink for the dwelling unit.

This provision does not include food service areas and areas regulated by San Antonio City Code Ch. 13.

505.2 Contamination.

The water supply shall be maintained free from contamination, and all water inlets for plumbing fixtures shall be located above the flood-level rim of the fixture. Shampoo basin faucets, janitor sink faucets and other hose bibs or faucets to which hoses are attached and left in place, shall be protected by an approved atmospheric-type vacuum breaker or an approved permanently attached hose connection vacuum breaker.

505.3 Supply.

The water supply system shall be installed and maintained to provide a supply of water to plumbing fixtures, devices, and appurtenances in sufficient volume and at pressures adequate to enable the fixtures to function properly, safely, and free from defects and leaks.

505.4 Water heating facilities.

Water heating facilities shall be properly installed, maintained and capable of providing an adequate amount of water to be drawn at every required sink, lavatory, bathtub, shower, and laundry facility at a temperature of not less than 110°F (43°C). A gas-burning water heater shall not be located in any bathroom, toilet room, bedroom or other occupied room normally kept closed, unless adequate combustion air is provided. An approved combination temperature and pressure- relief valve and relief valve discharge pipe shall be properly installed and maintained on water heaters.

SECTION 506 - SANITARY DRAINAGE SYSTEM

506.1 General.

All plumbing fixtures shall be properly connected to either a public sewer system or to an approved private sewage disposal system.

506.2 Maintenance.

Every plumbing stack, vent, waste, and sewer line shall function properly and be kept free from obstructions, leaks, and defects.

SECTION 507 - STORM DRAINAGE

507.1 General.

Drainage of roofs and paved areas, yards and courts, and other open areas on the premises shall not be discharged in a manner that creates a public nuisance.

CHAPTER 6
MECHANICAL AND ELECTRICAL REQUIREMENTS

SECTION 601 - GENERAL

601.1 Scope.

The provisions or this chapter shall govern the minimum mechanical and electrical facilities and equipment to be provided.

601.2 Responsibility.

The owner of the structure shall provide and maintain mechanical and electrical facilities and equipment in compliance with these requirements. A person shall not occupy as owner - occupant or permit another person to occupy any premises which does not comply with the requirements of this chapter.

SECTION 602 - HEATING FACILITIES

602.1 Facilities required.

Heating facilities shall be provided in structures and shall be capable of maintaining room temperature of 60°F (16°C) in all habitable rooms, bathrooms, and toilet rooms.

602.2 Heat supply.

Every owner and operator of any building who rents, leases, or lets one or more dwelling units or sleeping units on terms, either expressed or implied, to furnish heat to the occupant s thereof shall supply heat during the period from November 1 to March 31 to maintain a temperature of not less than 60°F (16°C) in all habitable rooms, bathrooms, and toilet rooms.

Exception: When the outdoor temperature is below the winter outdoor design temperature for the locality, maintenance of the minimum room temperature shall not be required provided that the heating system is operating at its full design capacity. The winter outdoor design temperature for the locality shall be as indicated in Appendix D of the International Plumbing Code as amended by the City.

602.3 Room temperature measurement.

The required room temperatures shall be measured 3 feet (914 mm) above the floor near the center of the room and 2 feet (610 mm) inward from the center of each exterior wall.

SECTION 603 - MECHANICAL EQUIPMENT

603.1 Mechanical appliances.

All mechanical equipment, appliances, fireplaces, solid fuel-burning appliances, cooking appliances and water heating appliances shall be properly installed and maintained in a safe working condition and shall be capable of performing the intended function.

603.2 Removal of combustion products.

All fuel-burning equipment and appliances shall be connected to an approved chimney or vent.

Exception: Fuel-burning equipment and appliances which are labeled for unvented operation.

603.3 Clearances.

All required clearances to combustible materials shall be maintained.

603.4 Safety controls.

All safety controls for fuel-burning equipment shall be maintained in effective operation.

603.5 Combustion air.

A supply of air for complete combustion of the fuel and for ventilation of the space containing the fuel-burning equipment shall be provided for the fuel-burning equipment.

Exception: A supply of air for complete combustion of the fuel and for ventilation must be maintained as it was lawfully installed.

603.6 Energy conservation devices.

Devices intended to reduce fuel consumption by attachment to a fuel-burning appliance, to the fuel supply line thereto, or to the vent outlet or vent piping there from, shall not be installed unless labeled for such purpose and the installation is specifically approved.

SECTION 604 - ELECTRICAL FACILITIES

604.1 Facilities required.

Every occupied building shall be provided with an electrical system in compliance with the requirements of this section and Section 605.

604.2 Service.

The size and usage of appliances and equipment shall serve as a basis for determining the need for additional facilities in accordance with NFPA 70. Dwelling units shall be served by a three-wire, 120/240-volt, single-phase electrical service having a rating of not less than 60 amperes.

Exception: Electric service may be maintained if installed lawfully.

604.3 Electrical system hazards.

Where it is found that the electrical system in a structure constitutes a hazard to the occupants, first responders, or the structure by reason of inadequate service, improper fusing, insufficient receptacle and lighting outlets, improper wiring or installation, deterioration, or damage, or for

similar reasons, the code official shall require the defects to be corrected to eliminate the hazard.

SECTION 605 - ELECTRICAL EQUIPMENT

605.1 Installation.

All electrical equipment, wiring and appliances shall be properly installed and maintained in a safe and approved manner.

605.2 Luminaires.

Every public hall, interior stairway, toilet room, kitchen, bathroom, laundry room, boiler room and furnace room shall contain at least one electric operational luminaire.

Furnace room does not include a furnace closet.

SECTION 606 - DUCT SYSTEMS

606.1 General.

Duct systems shall be maintained free of obstructions and shall be capable of performing the required function.

CHAPTER 7
FIRE SAFETY REQUIREMENTS

SECTION 701 - GENERAL

701.1 Scope.

The provisions of this chapter shall govern the minimum conditions and standards for fire safety relating to structures and exterior premises, including fire safety facilities and equipment to be provided.

701.2 Responsibility.

The owner of the premises shall provide and maintain such fire safety facilities and equipment in compliance with these requirements. A person shall not occupy as owner - occupant or permit another person to occupy any premises that do not comply with the requirements of this chapter.

SECTION 702 - MEANS OF EGRESS

702.1 General.

A safe, continuous, and unobstructed path of travel shall be provided from any point in a building or structure to the public way. Means of egress shall comply with the code under which the building was constructed.

702.2 Aisles.

The required width of aisles in accordance with the code under which the building was constructed shall be unobstructed.

702.3 Locked doors.

All means of egress doors shall be readily openable from the side from which egress is to be made without the need for keys, special knowledge, or effort, except where the door hardware conforms to that permitted by the International Building Code, International Residential Code, or the required security devices enumerated in the Texas Property Code.

Exception: Double cylinder locking devices are allowed in single family and two-family dwellings where not used as group homes, daycare, foster care homes, childcare, assisted living or where prohibited by law.

702.4 Emergency escape openings.

Required emergency and escape and rescue openings shall be maintained in accordance with the code in effect at the time of construction, and both of the following:

1. Required emergency escape and rescue openings shall be operational from the inside of the room without the use of keys or tools.
2. Bars, grilles, grates, or similar devices are permitted to be placed over emergency escape and rescue openings provided that the minimum net clear opening size complies with the code that was in effect at the time of construction and such the unit is equipped with smoke alarms installed in accordance with Section 907.2.10 of the International Building Code. Such devices shall be releasable or removable from the inside without the use of a key, tool, or force greater than that which is required for normal operation of the escape and rescue opening.

SECTION 703 - FIRE PROTECTION SYSTEMS

703.1 General.

All systems, devices, and equipment to detect a fire, actuate an alarm, or suppress or control a fire or any combination thereof shall be maintained in an operable condition in accordance with the International Fire Code.

The duties of landlords to inspect and repair smoke alarms in residential dwelling units leased to others are governed by the TEXAS PROPERTY CODE- CHAPTER 92- SUBCHAPTER F. SMOKE DETECTORS.

703.2 Smoke Alarms.

In Group R1, R2, R3 occupancy used for commercial purposes and R, smoke alarms shall be installed in accordance with the International Fire Code, as amended by the City.

R-3 residential occupancies used for commercial purposes include:

1. Adult care facilities that provide accommodations for five or fewer persons of any age for less than 24 hours.
2. Child care facilities that provide accommodations for five or fewer persons of any age for less than 24 hours.
3. Congregate living facilities with 16 or fewer persons.

In R-3 Occupancies (1 and 2 family dwellings) not used for commercial purposes:

1. Smoke alarms shall be placed in accordance with the requirement adopted by the City at the time of construction; or
2. If not required at the time of construction, smoke alarms shall be placed on the ceiling or wall outside of each separate sleeping area in the immediate vicinity of bedrooms.

703.3 Power source.

In Group R occupancies and in dwellings not regulated as Group R occupancies, single-station smoke alarms shall receive their primary power from the building wiring provided that such wiring is served from a commercial source and shall be equipped with a battery backup. Smoke alarms shall emit a signal when the batteries are low. Wiring shall be permanent and without a disconnecting switch other than as required for overcurrent protection.

Exceptions:

1. Smoke alarms are permitted to be solely battery operated in existing buildings where no construction is taking place.
2. Smoke alarms are permitted to be solely battery operated in buildings that are not served from a commercial power source.
3. Smoke alarms are permitted to be solely battery operated in existing areas of buildings undergoing alterations or repairs that do not result in the removal of interior walls or ceiling finishes exposing the structure, unless there is an attic, crawl space or basement available which could provide access for building wiring without the removal of interior finishes.
4. Smoke alarms are permitted to be solely battery operated if added to comply with this section.
5. Smoke alarms are permitted to be operated solely from the building wiring if installed prior to the adoption date of this code.

703.4 Interconnection.

Where more than one smoke alarm is required to be installed within an individual dwelling unit in Group R-2, R-3, R-4 and in dwellings not regulated as Group R occupancies, the smoke alarms shall be interconnected in such a manner that the activation of one alarm will activate all of the alarms in the individual unit. The alarm shall be clearly audible in all bedrooms over background noise levels with all intervening doors closed.

Exceptions:

1. Interconnection is not required in buildings which are not undergoing alterations.

2. Smoke alarms in existing areas are not required to be interconnected where alterations or repairs do not result in the removal of interior wall or ceiling finishes exposing the structure.

703.5 Additional Requirements in Leased Tenancies contained within R-2 and R-3 occupancies not used for commercial purposes (including duplexes and houses for rent).

The following requirements apply:

1. The landlord shall determine that the smoke alarm is in good working order at the beginning of the tenant's possession by testing the smoke alarm with smoke, by operating the testing button on the smoke alarm, or by following other recommended test procedures of the manufacturer for the particular model.
2. A tenant shall not remove a battery from a smoke alarm without immediately replacing it with a working battery or knowingly disconnect or intentionally damage a smoke alarm, causing it to malfunction.
3. The duties of landlords to inspect and repair smoke alarms in residential dwelling unit s that are leased to others are governed by the TEXAS PROPERTY CODE CHAPTER 92- SUBCHAPTER F. SMOKE DETECTORS.

CHAPTER 8
REFERENCED STANDARDS

International Code Council (ICC)

International Building Code (2024 edition)

International Fuel Gas Code (2024 edition)

International Mechanical Code (2024 edition)

International Fire Code (2024 edition)

International Plumbing Code (2024 edition)

International Existing Building Code (2024 edition)

National Fire Protection Association (NFPA)

NFPA 70 National Electrical Code (2023 edition)

American Society of Mechanical Engineers (ASME)

American Society for Testing and Materials (ASTM)

ASTM F 1346 Performance Specifications for Safety Covers and Labeling Requirements for all Covers for Swimming Pools, Spas and Hot Tubs

Underwriters Laboratories, LLC (UL)

286-09: Smoke Detectors for Fire Alarm Systems (2009 edition)

Texas Property Code

Title 8. Landlord and Tenant - Chapter 92. Residential Tenancies

- Subchapter D. Security Devices
- Subchapter F. Smoke Detectors

ADDITIONAL ATTACHMENTS TO SAPMC:

APPENDIX A - PROPERTY MAINTENANCE CHECKLIST

APPENDIX B - OTHER

APPENDIX C - BOARDING STANDARDS

The below appendices are incorporated by reference within this Ordinance and attached.

Attachment I

APPENDIX A: PROPERTY MAINTENANCE CHECKLIST

The following checklist is meant to be used as a guide for common property maintenance items. It is not meant to include all code requirements. Some exceptions may be applicable.

EXTERIOR

SIDEWALKS AND DRIVEWAY (SAPMC 302.3)

- Proper state of repair
- Free from hazardous conditions

FOUNDATION

- Maintain plumb and free from cracks to prevent entry of rodents and other pests (SAPMC 304.5)

- Maintained free from deterioration; capable of safely supporting the imposed dead and live loads; structurally sound (SAPMC 304.4)

EXTERIOR WALLS

- Free from holes, breaks and loose or rotting materials (SAPMC 304.6)
- Maintain weatherproof and properly surface coated, no deterioration (SAPMC 304.6)
- House numbers at least 4" high of contrasting color, visible from the roadway (SAPMC 304.3)
- Properties abutting alleyways longer than ten (10) lots in length to access a rear garage, carport or driveway will also require house numbers at least 4" high of contrasting color, visible from the center of the alley. (SAPMC 304.3)

ROOF AND DRAINAGE

- Structurally sound, tight, and not have defects that admit rain, leak free; flashing in good condition (SAPMC 304.7)
- Prevent dampness or deterioration in the walls or interior portion of the structure (SAPMC 304.7)
- Gutters and downspouts; good repair and free from obstructions (SAPMC 304.7)
- Soffit and fascia in good repair (SAPMC 304.9)
- Chimney; structurally safe and sound; good repair (SAPMC 304.11)

STAIRS/PORCHES AND BALCONIES

- Structurally sound; good repair with proper anchorage (SAPMC 304.10)
- Capable of supporting the imposed loads (SAPMC 304.10)

HANDRAILS/GUARD

- Firmly fastened; capable of supporting load; good condition (SAPMC 304.12)
- More than four risers require handrail; walking surface more than 30" require guardrail (SAPMC 307.1)

DOORS/LOCKS

- Maintained in good condition (SAPMC 304.15)
- Locks on exterior door; means of egress; readily openable without key or special knowledge (SAPMC 702.3)

WINDOWS

- Sound condition; good repair and weather tight (SAPMC 304.13)
- Glazing material; maintained in sound condition and good repair (SAPMC 304.13.1)
- Easy openable (SAPMC 304.13.2)
- Insect screens; ventilation; tightly fitting; good working condition (SAPMC 304.14)

INTERIOR

FLOORS/INTERIOR WALLS/CEILINGS

- Clean and in good repair; no holes (SAPMC 305.3)
- Sound condition (SAPMC 305.3)

FIRE PROTECTION

MEANS OF EGRESS

- Required escape/ opening without the use of keys or tools (SAPMC 702.4)

SMOKE ALARMS

- Operable condition (SAPMC 703.1)
- Installed in accordance with the International Fire Code (SAPMC 703.2)
- Primary power from the structure wiring with battery backup; working batteries and functional connections. (SAPMC 703.3)
- Solely battery operated in existing structures where no construction is taking place (SAPMC 703.3)
- Interconnected; not required in existing structures not undergoing alterations (SAPMC 703.4)
- Good working order (SAPMC 703.5)

PLUMBING/MECHANICAL/ELECTRICAL

PLUMBING

- Sanitary and safe working condition (SAPMC 502.1)
- Free from obstructions, leaks, and defects (SAPMC 504.1)
- Connected to public water system or approved private water system (SAPMC 505.1)
- Provide supply of water to plumbing fixtures (SAPMC 505.3)
- Provide adequate amount of water at temperature not less than 110 F (SAPMC 505.4)

MECHANICAL

- Permanent heating facility must be properly installed/maintained (SAPMC 601.2)
- Heating facility capable of maintaining dwelling at 60 degrees (SAPMC 602.1)
- Fuel burning appliances/equipment must be maintained in safe working condition (SAPMC 603.1)

ELECTRICAL

- Adequate service and properly installed service panel (SAPMC 604.2)
- Free from electrical hazards; improper fusing; insufficient receptacle; improper wiring (SAPMC 604.3)

ACCESSORY STRUCTURES

GARAGES

- In good repair and structurally sound (SAPMC 302.7)

FENCES

- Structurally sound and good repair (SAPMC 302.7.1)
- Meets zoning code location requirements (UDC Article V, Ch. 35-514)

EXTERIOR MAINTENANCE

- Clean, safe, sanitary condition and free of outside placement, hazardous vegetation, and surface hazards (SAPMC 302.1)
- No vegetation in excess of 12" (SAPMC 302.4)
- Free of accumulation of rubbish or garbage (SAPMC 308.1)

PEST ELIMINATION

- Free of rodent harborage and infestation (SAPMC 302.5)

Disclaimer:

This is a general checklist provided for informational purposes only. This resource is not a substitute for the advice or services of an attorney.

Attachment II

APPENDIX B: OTHER

Code Enforcement Officers are responsible for enforcing the City's health and safety codes. However, we frequently receive requests for service from the public for issues that are not addressed by any City ordinance or addressed by other City Departments. Some examples are:

- **Mold** is not regulated by any City or Texas law. Frequently, mold is caused by a plumbing leak, leaking air conditioning ducts or a defective roof. In these cases, the best way to address this problem is to find and repair the source of moisture. Eliminating the source of water will prevent the further spread of mold. Once the necessary repairs are made the mold can usually be cleaned using household cleaners marketed for this purpose. Be sure and follow all the safety precautions on the label of the product you are using. For more information regarding mold assessors and remediators, please visit the Texas Department of Licensing and Regulations (TDRL) website at https://www.tdlr.texas.gov/mld/mld.htm
- **Blowing leaves** onto a city street is a frequent complaint and the City discourages this practice. This issue is referenced in Chapter 34 of the City code. Enforcement authority is granted to the CEO/President of the San Antonio Water System (SAWS) and/or their designated qualified SAWS

personnel. For more information, please contact the San Antonio Water System complaint hotline at (210) 233-2290.

- **Noise** nuisances are regulated by the San Antonio Police Department. You can report noise issues to SAPD through the non-emergency number, 210-207-7273.
- **Graffiti** abatement staff partners with several City, State and private agencies to get rid of this unsightly problem. A comprehensive list of these entities and contact information can be found on our Graffiti Abatement Program webpage found at http://www.sanantonio.gov/CES/Graffiti/Abatement.
- **Deed restrictions** are enforced by the mandatory homeowner association. These restrictions usually exceed City code requirements. The City cannot legally enforce the restrictions since they are private, contractual agreements between the subdivision developer, the buyer, and any subsequent owners of real estate. Not all properties have a mandatory homeowner association that actively regulates deed restrictions. In this case, there is usually an applicable City code that can address health, safety, and public nuisance violations.

Attachment III

APPENDIX C: BOARDING STANDARD

GENERAL

Scope.

Windows and doors shall be boarded in an approved manner to prevent entry by unauthorized persons and shall be painted to correspond to the color of the existing structure, white or gray.

MATERIALS

Boarding sheet material.

Boarding sheet material shall be minimum 1/2-inch-thick (12.7 mm) wood structural panels complying with the International Building Code.

Boarding framing material.

Boarding framing material shall be minimum nominal 2-inch by 4-inch (51 mm by 102 mm) solid sawn lumber complying with the International Building Code.

Boarding fasteners.

Boarding fasteners shall be minimum 3/8-inch-diameter (9.5 mm) carriage bolts of such a length as required to penetrate the assembly and as required to adequately attach the washers and nuts. Washers and nuts shall comply with the International Building Code.

INSTALLATION

Boarding sheet material.

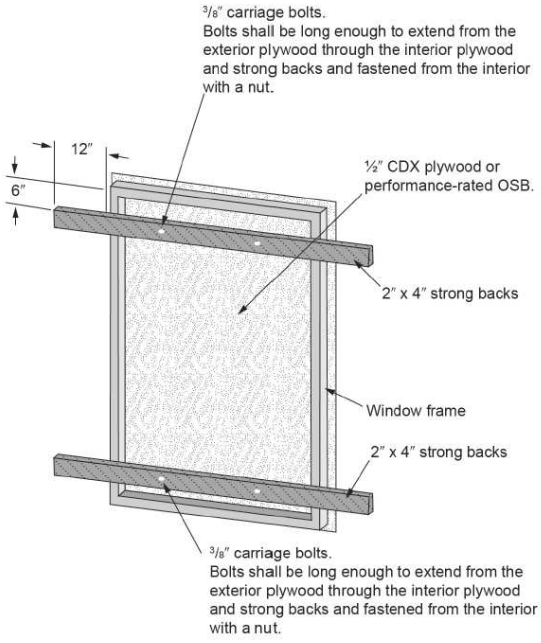
The boarding sheet material shall be cut to fit the door or window opening neatly or shall be cut to provide an equal overlap at the perimeter of the door or window.

Windows.

The window shall be opened to allow the carriage bolt to pass through or the window sash shall be removed and stored. The 2-inch by 4-inch (51 mm by 102 mm) strong back framing material shall be cut minimum 2 inches (51 mm) wider than the window opening and shall be placed on the inside of the window opening 6 inches (152 mm) minimum above the bottom and below the top of the window opening. The framing and boarding shall be predrilled. The assembly shall be aligned and the bolts, washers and nuts shall be installed and secured.

Doors.

Doors shall be secured by the same method as for windows or door openings. One door to the structure shall be available for authorized entry and shall be secured and locked in an approved manner.



(Ord. No. 2015-01-29-0065, § 2, 1-29-15; Ord. No. 2018-06-21-0492, § 1, 6-21-18; Ord. No. 2022-11-10-0874, § 1, 11-10-22; Ord. No. 2025-01-30-0076, § 1, 1-30-25, eff. 5-1-25)

Editor's note—Ord. No. 2022-11-10-0874, § 1, adopted Nov. 10, 2022, amended § 6-52, and in so doing changed the title of said section from amendment to the San Antonio Property Maintenance Code to read as set out herein.

Sec. 6-53. Fee schedule.

San Antonio Property Maintenance Code (paper copy): $16.98

(Ord. No. 2011-05-05-0354, § 2, 5-5-11; Ord. No. 2015-01-29-0065, § 2, 1-29-15)

Editor's note—Inasmuch as Ord. No. 2015-01-29-0065, § 2, adopted January 29, 2015, enacted provisions as § 6-52, and at the discretion of the editor the provisions of the former 6-52 have been redesignated as § 6-53. The historical notation has been preserved for reference purposes.

Sec. 6-54. Notice required to code official (detention facility).

Pursuant to authority granted to the code official in article IV, section 102.9 (Requirements not covered by code) and under the city charter, the code official, through the development services department, shall be notified by (1) the owner, (2) owner's representative, or (3) any contractor at least thirty (30) days prior to commencing any work to renovate, construct, or operate detention facilities within the City of San Antonio city limits. Detention facilities under this section shall have the same definition as under chapter 35 (Unified Development Code).

(Ord. No. 2026-04-16-0257, § 3, 4-16-26)

Secs. 6-55—6-65. Reserved.

ARTICLE V. APARTMENT INSPECTION PROGRAM

Sec. 6-66. Purpose; applicability; definitions.

(a) *Purpose:* The purpose and intent of this ordinance is to establish a program for addressing multifamily apartment complexes, with five (5) or more units; and for addressing the property owners who are not maintaining their property to minimum Code standards, and who have allowed their property to develop health, life, welfare and safety problems.

(b) *Applicability:* The provisions of this ordinance shall apply to all multifamily apartment complexes with five (5) or more dwelling units within the city limits.

(c) *Definitions:* The following words, terms and phrases, when used in this ordinance shall have the meanings ascribed to them in this subsection, except where the context clearly indicates a different meaning.

(1) *Apartment complex* means a multifamily complex with five (5) or more dwelling units, as currently defined in the Building Code as Group R-2.

a. This definition includes mixed use apartment complexes, in which multifamily units are blended with commercial properties.

(2) *Code official* refers to the director and his designees.

(3) *Director* shall refer to the director of development services department for the City of San Antonio, Bexar County, Texas; and/or his assigns.

(4) *Dwelling unit* means a single unit providing complete, independent living facilities for one (1) or more persons, including permanent provisions for living, sleeping, eating, cooking and sanitation.

(5) *Notice of violation* means that to avoid program points, the owner will have ten (10) calendar days to cure the violation(s); the ten (10) days being calculated from the date the notice is mailed, or personally delivered, to the owner or their registered agent or property manager.

(6) *Owner* means any person, agent, operator, firm or corporation having a legal or equitable interest in the property; or recorded in the official records of the state, county or municipality as holding title to the property or otherwise having control of the property including the guardian of the estate of any such person, and the executor or administrator of the estate of such person if ordered to take possession of real property by a court.

(7) *Program participant* means a property owner, property manager, and/or agent of an apartment complex with five (5) or more dwelling units who receives three (3) or more program points (discussed below) within six (6) months.

(8) *Program points* means an uncorrected violation which, after notice and the owner's failure to cure in a reasonable time, will individually constitute points that will go towards enrollment in this Program. Violations which originate under the following sections of the Code, as well as other Code sections internally referenced in individual sections are solely to be considered. Violations under these provisions, and other referenced sections, are categorized as conditions which are detrimental to the resident's health, life, safety and welfare.

(i) SAPMC 302.5 Rodent harborage; 303.2 Enclosures; 304.1 General; 304.1.1 Unsafe conditions; 304.4 Structural members; 304.5 Foundation walls; 304.6 Exterior walls; 304.7 Roof and drainage; 304.10 Stairways, decks, porches and balconies; 304.11 Chimneys and towers; 304.12 Handrails and guards; 304.13 Window, skylight and door frames; 304.13.1 Glazing; 304.13.2 Openable windows; 304.15 Doors; 304.18.1 Occupied and partially occupied structures; 305.1 General; 305.1.1 Unsafe conditions; 305.2 Structural members; 305.3 Interior surfaces; 305.4 Stairs and walking surfaces; 305.5 Handrails and guards; 307.1 General; 308.2.1 Rubbish storage facilities; 308.2.2 Refrigerators; 309.1 Infestation; 309.2 Extermination Prior to Occupancy; 309.4 Multiple occupancy; 403.1 Habitable spaces; 403.2 Bathrooms and toilet rooms; 403.4 Process ventilation; 403.5 Clothes dryer exhaust; 502.1 Dwelling units; 504.1 General; 504.2 Fixture clearances; 504.3 Plumbing system hazards; 505.1 Water System,; 505.2 Contamination; 505.3 Supply; 505.4 Water heating facilities; 506.1 General; 506.2 Maintenance; 602.1 Facilities required; 602.2 Heat supply; 602.3 Room temperature measurement; 603.1 Mechanical appliances; 603.2 Removal of combustion products; 603.3 Clearances; 603.4 Safety controls; 603.5 Combustion air; 603.6 Energy conservation devices; 604.1 Facilities required; 604.2 Service; 604.3 Electrical system hazards; 605.1 Installation; 605.2 Luminaires; 606.1 General; 702.1 General; 702.2 Aisles; 702.3 Locked doors; 702.4 Emergency escape openings; 703.1 General; 703.2 Smoke Alarms; 703.3 Power source; 703.4 Interconnection; 703.5 Additional Requirements in Leased Tenancies contained within R-2.

(ii) 505.1 Water System shall include water disconnections for nonpayment as a violation from which a program point or points may be issued.

(9) *Reasonable time to cure* means the time that it takes to reasonably fix a violation. It is a rebuttable presumption that ten (10) days is sufficient.

(10) *Structure* means that which is built or constructed.

(Ord. No. 2023-03-23-0166, § 1, 3-23-23; Ord. No. 2025-05-08-0345, § 1(Exh. A),5-8-25)

Sec. 6-67. Program point citations.

(a) *Notice of violations.*

(1) Notifications of a possible program point violation, prior to citation shall state:

a. The identity of the affected dwelling unit, if applicable;

b. The identity of the affected building, if applicable;

c. The applicable Code sections;

d. A description of the violation;

e. A statement explaining that a failure to timely cure the violation may result in the property being enrolled in the apartment inspection program.

(2) Such notice shall be deemed to be properly delivered if a copy is:

a. Delivered personally to the owner or their registered agent or property manager; or

b. Sent by first class mail, to the owner of record at his address as it appears on the Bexar County Appraisal District records, and posting a notice in a conspicuous place in or about the structure affected by such notice.

(3) Designation of a courtesy email address. A property owner may designate an operable and functioning email address as their desired means of notice and communication. The City may use this email address as a courtesy, in addition to other means of communicating with the property owner.

a. Use of email is an additional but not supplemental form of communication, and does not replace proper service as defined above.

(4) Notice shall be given each time a program point violation is noted. The second paragraph of SAPMC 107.1 "Notice to person responsible" shall not apply in this ordinance.

(b) *Failure to cure within a reasonable time:*

(1) If the property owner fails to cure the violations within a reasonable time, as defined herein, then upon further inspection demonstrating the continuing existence of said violations, those will individually count towards program points.

(c) *Reasonable time to cure:*

(1) In determining whether a period of time is a reasonable time to repair or remedy a condition, there is a rebuttable presumption that ten (10) days is a reasonable time. To rebut that presumption several factors may be considered, including but not limited to the following:

a. The date on which the owner received the notice;

b. The severity, scope, and nature of the condition;

c. The reasonable availability of materials and labor and of utilities from a utility company.

(2) Any requests for more time from the owner must be in writing to the director before the termination of the ten (10) days period to cure the violation. Written requests may made in several ways, it may be delivered in person, sent by mail, or transmitted by email. The requests for more time must include:

a. A plan to repair the violation(s); and

b. Any plan to mitigate the effects of the violation on the tenants; and

c. An estimate of the amount of time required to cure the violation.

(3) The director shall have the discretion to extend the time to cure the violation for so long as the director shall deem necessary and reasonable, and the director will notify the owner of their decision.

(d) *Program points applied.*

(1) If a property owner fails to cure the problem within a reasonable time, the code official shall issue a citation or ticket for the violation.

(2) The issuance of a citation or ticket for a listed violation will generate, administratively, a program point.

(3) The program point will not be applied against the owner or the property until:

a. The administrative appeal period of ten (10) days expires if the owner fails to appeal, or

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b. If there is an appeal, then only after the code official has made a finding against the owner and the property (see subsection (e) following).

(e) *Appeal of program points.*

(1) The property owner may administratively appeal a program point to the code official within ten (10) calendar days of issuance of the citation. The appeal of program points is separate and apart from the citation; and decisions in the administrative appeal shall not affect the criminal and civil processes in Municipal court. The appeal of program points shall be as follows:

a. The appeal must be in writing;

b. The appeal must state why the owner did not cure the violation within the reasonable time to cure—whether within the ten (10) days or for a longer period of time, if granted;

c. The appeal must include sufficient proof of any claims challenging the citation.

(2) The burden of proof in the appeal of program points applied, is upon the owner.

a. The standard of proof is clear and convincing.

b. The code official may consider any number of mitigating circumstances which may have impeded an owner in curing the violation within a reasonable time, including but not limited to:

1. Obstruction by tenant;

2. Lack of notice;

3. Act of God;

4. Supply or labor shortages constituting an impossibility;

5. Action or inaction of tenant which impedes repair.

(3) The appeal and decision by the code official must be made before the case appears in court.

(4) If the code official finds in favor of the owner, than the case will be withdrawn from consideration by the court.

(5) If the code official finds against the owner, then the case will proceed and be adjudicated by the court.

(6) An adjudication by the court in favor of the owner, not guilty or not liable, shall have the effect of removing the applicable program point and upon notice of the same the code official shall remove the program point.

(Ord. No. 2023-03-23-0166, § 1, 3-23-23)

Sec. 6-68. Registration.

(a) *Registration of an apartment complex.*

(1) Upon receiving three (3) or more program points (see definitions) within a contiguous six-month time period, a property shall be enrolled in the apartment inspection program.

(2) An apartment complex may also be ordered enrolled by the BSB, separately.

(3) Once enrolled, the apartment complex shall be in the program for a minimum of six (6) months.

(4) The owner shall register with the city not later than ten (10) calendar days after notice is sent from the director.

(b) *Information for registration.* Owners who register or who have been found by the code official to have ownership of a property eligible for the apartment inspection program shall be required to furnish all information requested on the registration forms.

(c) *Costs of the program.* Owners shall be assessed a fee from the city upon entry to the apartment inspection program.

(1) Payment of the assessed fee must be made within thirty (30) days of becoming registered in the apartment inspection program, or the property owner shall be in violation of the ordinance thereof and be made civilly and criminally liable for the infractions thereof.

(Ord. No. 2023-03-23-0166, § 1, 3-23-23)

Sec. 6-69. Notification to register.

(a) A notice of the requirement to register in the apartment inspection program will be sent to be property owner. To avoid penalties, the owner will have ten (10) calendar days to register the structure: the ten (10) days being calculated from the date the notice is mailed, or personally delivered, to the owner or their registered agent or property manager.

(1) Such notice shall be deemed to be properly delivered if a copy is:

a. Delivered personally the owner or their registered agent or property manager; or

b. Sent by first class mail, to the owner of record at his address as it appears on the Bexar County Appraisal District records, and posting a notice in a conspicuous place in or about the structure affected by such notice.

(Ord. No. 2023-03-23-0166, § 1, 3-23-23)

Sec. 6-70. Agent—property manager required.

(a) *Property manager.* Any owner, or other person in control of an apartment complex in this program shall be required to designate a property manager who shall be physically present at the apartment complex during scheduled inspections. The property manager shall have charge, care and control of the apartment complex, and shall provide access to the apartment complex for inspection upon request by the code official within a reasonable length of time, no more than fifteen (15) calendar days from receipt of said request.

(b) *Emergency contact information.* An owner, or other person in control of an apartment complex in this program shall provide the code official with the name, street address, and telephone number of a person or persons who can be contacted twenty four (24) hours a day, seven (7) days a week, in the event of an emergency condition. An emergency condition includes any fire, natural disaster, collapse hazard, burst pipe, serious police incident, or other condition that requires an immediate response to prevent harm to property or the public.

(Ord. No. 2023-03-23-0166, § 1, 3-23-23)

Sec. 6-71. Monitoring, inspection and condition standard.

(a) The code official may inspect apartment complexes entered into this program on at least a monthly basis.

(1) Inspections of this sort shall encompass the entire premise of the apartment complex, including but not limited to appurtenances, side structures, and infrastructure; as well up to five (5) percent of the all dwelling units, and a minimum of two (2) units.

(2) This shall not restrict the code official from entering the structure or premises in other circumstances, as deemed necessary by the code official.

(b) The owner shall not prohibit, bar or obstruct entry by the code official upon the premises, or any structure therein, of an apartment complex entered into this program.

(c) Upon the request of the code official, an owner shall provide access to habited dwelling units in order to permit a complete inspection.

(1) Requests to inspect habited dwelling units shall be made by the code official within a reasonable period of time, no less than ten (10) calendar days in advance of inspection.

(d) Property manager shall be present during scheduled inspections.

(Ord. No. 2023-03-23-0166, § 1, 3-23-23)

Sec. 6-72. Graduation from the apartment inspection program.

(a) To be removed from the apartment inspection program, the apartment complex must have completely fixed all the original violations and have received no more than two (2) program points for six (6) contiguous months.

(b) Failure to cure the violations, original and subsequent, in a reasonable time will result in the apartment complex remaining in the program until such time as all cited violations are cured.

(c) If within four (4) years from the date of graduation, an apartment complex or owner who had previously successfully graduated from this program is re-enrolled in the program due to further citations, their term will be in the program for a minimum of no less than one (1) year.
(Ord. No. 2023-03-23-0166, § 1, 3-23-23)

Sec. 6-73. Violation and penalties.

(a) If an apartment complex or owner reoffends and is placed back into the program within four (4) years from the date of the completion of their last enrollment, then the minimum time that they are in the program doubles to one (1) year.

(b) The city reserves the right to enforce this ordinance by all means available, whether civil, criminal, or administratively.

(c) A violation of this article is deemed to be a class C misdemeanor, with a penalty range of a fine up to five hundred dollars ($500.00).
(Ord. No. 2023-03-23-0166, § 1, 3-23-23)

Secs. 6-74—6-80. Reserved.

ARTICLE VI. RESERVED*

Secs. 6-81—6-130. Reserved.

*__Editor's note—__Ord. No. 2011-12-01-0984, § 1, adopted December 1, 2011, repealed the former article VI, §§ 6-81—6-84, 6-96—6-101, 6-116—6-119 in its entirety, which pertained to house moving and derived from Ord. No. 23832, §§ 1—5, adopted October 18, 1956; the Code of 1959, §§ 10-57—10-70; Ord. No. 32258, § 2, adopted April 23, 1964; Ord. No. 45535, § 12, adopted July 24, 1975; Ord. No. 49627, § 1, adopted July 27, 1978; Ord. No. 52523, § 21, adopted July 24, 1980; Ord. No. 55811, § 17, adopted September 16, 1982; Ord. No. 57788, § 1, adopted October 27, 1983; Ord. No. 61329, adopted August 29, 1985, and Ord. No. 2008-01-10-0017, § 3, adopted January 10, 2008.

For current provisions pertaining to similar subject matter, the user's attention is directed to chapter 10, building-related codes.

ARTICLE VII. RESERVED†

Secs. 6-131—6-155. Reserved.

ARTICLE VIII. BUILDING STANDARDS BOARD‡

DIVISION 1. GENERALLY

Sec. 6-155.1. Building standards board [standards board] established and authority.

(a) The building standards board (BSB) is hereby established, and shall consist of fourteen (14) members. Membership of the BSB shall consist of the following:

(1) Two (2) architects, one of which shall have demonstrated experience addressing adaptive reuse of existing and historic buildings;

(2) Two (2) engineers, one of which shall have demonstrated experience addressing adaptive reuse of existing and historic buildings;

(3) Two (2) general contractors, one of which shall have demonstrated experience addressing adaptive reuse of existing and historic buildings;

(4) Two (2) social workers;

(5) Two (2) health care professionals;

(6) Two (2) retired persons over the age of sixty-four (64);

†__Editor's note—__Ord. No. 2011-12-01-0984, § 1, adopted December 1, 2011, repealed the former article VII, §§ 6-131—6-140 in its entirety, which pertained to the relocation of buildings and derived from the Code of 1959, §§ 10-71—10-78; Ord. No. 34159, §§ 1, 2, adopted March 10, 1966; Ord. No. 34429, §§ 1, 2, adopted June 9, 1966, and Ord. No. 2008-01-10-0017, § 3, adopted January 10, 2008.

For current provisions pertaining to similar subject matter, the user's attention is directed to chapter 10, building-related codes.

‡__Editor's note—__Ord. No. 2011-05-05-0354, § 3, adopted May 5, 2011 and effective January 1, 2012, changed the title of article VIII from "Dangerous buildings and distressed properties" to "Building standards board."

(7) Two (2) veterans of the United States Military; or

(8) A professional property manager who may be substituted for one general contractor and/or one social worker, for a maximum total of two (2) possible substitutions.

Appointments shall be governed by chapter 2, article IX entitled "Boards and commission rules."

(b) A panel of the BSB shall consist of seven (7) members.

(c) All cases to be heard by the BSB may be heard by a panel of the BSB.

(d) The BSB shall adopt rules of procedure in accordance with the Texas Local Government Code. City Code chapter 2, article IX entitled "Boards and commissions rules" shall apply to the BSB to the extent that it does not conflict with this article and state law. The BSB shall render all decisions and findings in writing to the citizen with copies to the Code Official.

(e) Authority of the BSB is described below in divisions 2 "Dangerous buildings procedures" and 3, "Quasi-judicial enforcement of the San Antonio Property Maintenance Code."

(f) A quorum of the BSB shall be required to call a hearing or meeting to order. For cases to be heard by the full membership of the Board and advisory meetings, a quorum shall require a majority of the Board's membership. For cases to be heard by a panel of the Board, a quorum shall require a majority of the panel's membership. Lacking a quorum, the BSB or a panel of the BSB may not take any action.

(g) A majority vote of the members voting on a matter is necessary for the BSB to take any action.

(h) Under guidance of and subject to applicable statutes and laws, the BSB shall devise its administrative procedures, review and adjust such procedures annually, and make available to any interested person, a copy of such procedures.
(Ord. No. 2011-05-05-0354, § 3, 5-5-11; Ord. No. 2011-12-15-1048, § 1, 12-15-11; Ord. No. 2013-04-18-0273, § 1, 4-18-13; Ord. No. 2015-10-29-0921, § 1, 10-29-15)

Sec. 6-155.2. Building standards board administration.

(a) Chairman and Vice Chairman. The Chairman and Vice Chairman of the full Board shall serve as the Chair of each panel.

(b) Each panel of the BSB shall select one of its members to serve as Vice-Chairman of the panel.

(c) Disqualification of member. A member shall not hear a case in which that member has a personal, professional or financial interest. Where charges are initiated against a member of the BSB, such member shall not sit as a member of the BSB during the hearing of the case. The BSB shall abide by the City Ethics Code.

(d) Secretary. The Code Official shall designate a qualified clerk from the Department to serve as Secretary to the BSB. The Secretary shall file the minutes and any records of all BSB proceedings in the office of the BSB as public records. The minutes must show the vote of each member on each question or the fact that a member is absent or fails to vote.

(e) Meetings and open hearing. Meetings of the panels shall be held at predetermined times. All hearings before any panel of the BSB shall be open to the public. The appellant, the appellant's representative, the Code Official and any person whose interests are affected shall be given an opportunity to be heard. Each Chairman may administer oaths and compel witness attendance.

(f) Postponed hearing. If there is no quorum, either the citizen or the citizen's representative, and the Code Official or designee shall have the right to request a postponement of the hearing.

(g) Terms. Appointment shall be for terms of two (2) years. A member may serve no more than two (2) consecutive two-year terms for a total of four (4) years.
(Ord. No. 2011-05-05-0354, § 3, 5-5-11; Ord. No. 2013-04-18-0273, § 1, 4-18-13)

Sec. 6-155.3. Subcommittees.

(a) *Subcommittees.* BSB may form subcommittees to advise it on specific matters. Prior to conducting public hearings on any of the nation-

ally recognized property maintenance related codes, the San Antonio Property Maintenance Code, and any associated amendments thereto, or chapter 6, article VIII, building standards board, the BSB shall form code review subcommittees and shall select a chairman for such subcommittees. The purpose of code review subcommittees is to review the newly published codes and to receive public comments on these codes and their associated amendments. The building official will provide appropriate staff support to all such subcommittees. The chairman of each code review subcommittee shall report his subcommittee recommendations to the BSB during the subsequent public hearings conducted by the board on these codes.

(1) *Subcommittee membership.* Subcommittee membership shall consist of board members and may also consist of individuals who are not appointed by the mayor and city council, "non-board members" and who are required to reside in the city. A subcommittee is required to have at least four (4) board members. Subcommittees shall have not more than six (6) board members. Any board member may sit on a subcommittee as an ex-officio member but shall not be counted as part of the quorum or be authorized to vote. The number of non-board members to the subcommittee shall be limited to the lesser of four (4) or one less than the number of board members appointed to the sub-committee. The non-board members shall be appointed by either the full board or the subcommittee on which they will serve. Non-board members shall reside in the city unless the residence requirement is waived by the BSB through the approved selection process.

(2) *Non-board member selection.* Selection of candidates to serve as a non-board member to a subcommittee will be completed as per the subcommittee selection bylaws adopted by the board.

(3) *Subcommittee quorum and voting.* A majority of the combined board members and the non-board members shall constitute a quorum. A majority of subcommittee members shall be required to approve any item before the subcommittee.

(Ord. No. 2024-08-08-0544, § 2(Att. B), 8-8-24)

Sec. 6-155.4. Administrative liability.

No officer, attorney, agent, or employee of the city shall render himself or herself personally liable for any damage that may accrue to persons or property as a result of any act required or permitted and performed in good faith in the discharge of his or her duties under this article so long as such officer, agent, or employee is acting within the scope of his or her official capacity. Any suit brought against any attorney, officer, agent, or employee of the city acting within his or her official capacity and scope, as a result of any act required or permitted and performed in good faith in the discharge of duties under this article shall be defended by the city attorney until the final determination of the proceedings therein.

(Ord. No. 2011-05-05-0354, § 3, 5-5-11; Ord. No. 2024-08-08-0544, § 2(Att. B), 8-8-24)

Sec. 6-155.5. Severance.

Should any section, clause, sentence, or provision of this article be held illegal, invalid, or unenforceable in whole or part by a final judgment of a court of competent jurisdiction, such judgment shall not affect or invalidate the remaining provisions of this article which shall be treated as having been duly legislated without inclusion of such illegal, invalid, or unenforceable section, clause, sentence, or provision.

(Ord. No. 2011-05-05-0354, § 3, 5-5-11; Ord. No. 2024-08-08-0544, § 2(Att. B), 8-8-24)

Sec. 6-156. Definitions.

BSB: Building standards board is constituted as prescribed by the Texas Local Government Code. Authority of the BSB is described in division 2 and division 3.

Business days: Work days excluding weekends, and city, state and federal holidays.

Code official: The director of code enforcement services or his designee who is charged with the administration and enforcement of this chapter.

Dangerous building: Any building or structure which has any or all of the conditions or defects hereinafter described shall be deemed to be a dangerous building and a hazard to the public health, safety, and welfare, provided that such conditions or defects of dilapidation, substandardness, or unfitness for human habitation, pose a threat or potential threat to life, health, property, or human safety.

(1) Whenever any door, aisle, passageway, stairway or other means of exit is not of sufficient width or size or is not so arranged as to provide safe and adequate means of exit in case of fire or panic.

(2) Whenever the walking surface of any aisle, passageway, stairway, or other means of exit is so warped, worn, loose, torn, or otherwise unsafe as to not provide safe and adequate means of exit in case of fire or panic.

(3) Whenever the stress in any materials, member or portion thereof, due to all dead and live loads, is more than one and one-half (1½) times the working stress or stresses allowed in the Building Code for new buildings of similar structure, purpose, or location.

(4) Whenever any portion thereof has been damaged by fire, earthquake, wind, flood, or by any other cause, to such an extent that the structural strength or stability thereof is materially less than it was before such catastrophe and is less than the minimum requirements of the Building Code for new buildings of similar structure, purpose, or location.

(5) Whenever any portion, member, or appurtenance thereof is likely to fail, or to become detached or dislodged, or to collapse and thereby injure persons or damage property.

(6) Whenever any portion of a building, any member, appurtenance, or ornamentation on the exterior thereof is not of sufficient strength or stability, or is not so anchored, attached or fastened in place so as to be capable of resisting a wind pressure of one-half (½) of that specified in the Building Code for new buildings of similar structure, purpose, or location without exceeding the working stresses permitted in the Building Code for such buildings.

(7) Whenever the building or structure, or any portion thereof, because of: (i) dilapidation, deterioration, or decay; (ii) faulty construction; (iii) the removal, movement, or instability of any portion of the ground necessary to support such building; (iv) the deterioration, decay, or inadequacy of its foundation; or (v) any other cause, is likely to partially or completely collapse.

(8) Whenever, for any reason, the building or structure, or any portion thereof, is manifestly unsafe for the purpose for which it is being used.

(9) Whenever the exterior walls or other vertical structural members list, lean, or buckle to such an extent that a plumb line passing through the center of gravity does not fail inside the middle one-third (⅓) of the base.

(10) Whenever the building or structure, exclusive of the foundation, shows thirty-three (33) percent or more damage or deterioration of its supporting member or members, or fifty (50) percent damage or deterioration of its nonsupporting members, or fifty (50) percent damage or deterioration of enclosing or outside walls or coverings.

(11) Whenever the building or structure has been so damaged by fire, wind, earthquake or flood, or has become so dilapidated or deteriorated or neglected as to become a harbor for vagrants or criminals.

(12) Whenever any building or structure has been constructed, exists, or is maintained in violation of the city's minimum housing standards or technical building codes,

to the extent violation poses a threat or potential threat to life, health, safety, or property.

(13) Whenever a building or structure is used for dwelling purposes, because of inadequate maintenance, dilapidation, decay, damage, faulty construction, arrangement, inadequate light, air, or sanitation facilities, is determined by the health director to be unsanitary, unfit for human habitation, or in such a condition that is likely to cause sickness or disease.

(14) Whenever any building or structure, because of obsolescence, dilapidated condition, deterioration, damage, inadequate exits, lack of sufficient fire-resistive construction, faulty electric wiring, gas connections, or heating apparatus, or other mechanical, structural, or social cause, is determined by the fire chief to be a fire hazard.

(15) Whenever any building or structure is in such a condition as to constitute a public nuisance known to the common law or in equity jurisprudence.

(16) Whenever any portion of a building or structure remains for any period of time on a site after the demolition or destruction of the building or structure, unless such structure has been approved for partial demolition by the BSB or the department of development services in its permitting process.

(17) Whenever any building or structure, regardless of its structural condition, is unoccupied by its owners, lessees, or other invitees and is unsecured from unauthorized entry to the extent that it could be entered or used by vagrants or other uninvited persons as a place of harborage or could be entered by children.

(18) Whenever any building or structure is secured by a means inadequate to prevent unauthorized entry or use in the manner described in condition subsection (17) above.

Distressed property: A property or premises on which there is located a building or structure believed, by an appropriate city official, to suffer from one or more of the conditions or defects described in this section and to be deserving of consideration by the BSB.

(Ord. No. 85915, § 2, 4-17-97; Ord. No. 96273, § 1, 8-29-02; Ord. No. 2011-05-05-0354, §§ 3, 5, 5-5-11)

Sec. 6-157. Declaration of nuisance.

Any building or structure which has any or all of the conditions or defects described above in section 6-156, where such condition or conditions pose a threat or potential threat to life, health, property, or human safety, is hereby declared to be a public nuisance, is prohibited as unlawful, and shall be abated according to provisions of this article VIII.

It is an offense for an owner or occupant or other person having control of the building or structure to fail to abate such public nuisance.

Therefore failure to abate such condition may also be prosecuted as a criminal misdemeanor offense. It is a further offense and unlawful for any person to cause, permit, or allow a dangerous building after the thirtieth (30th) day after the date on which the building standards board finds a condition of nuisance and orders abatement, or after such extended date as may be lawfully permitted by the building standards board.

(Ord. No. 85915, § 2, 4-17-97; Ord. No. 2011-05-05-0354, § 5, 5-5-11)

DIVISION 2. DANGEROUS BUILDINGS PROCEDURES

Sec. 6-158. Dangerous buildings or structures cases.

(a) *Authority.*

(1) The building standards board is hereby authorized to hear and decide cases relating to dangerous buildings or structures.

(2) Any panel of the BSB may hear and decide a dangerous buildings or structures case.

(3) A majority of the members of the panel must hear a dangerous buildings or structures case.

(b) *Historic structures.*

(1) Concurrent with preparation of a dangerous building or structure case for referral to the BSB, and before a hearing, the development services director or designee shall advise in writing the city's historic preservation officer of the location of the subject building or structure and the nature of the violation. Such advisement shall commence the timeframe for status determination, in lieu of an application for demolition. Within thirty (30) days of receipt of the information, the city historic preservation officer shall advise the BSB in writing whether or not the building or structure is a landmark or is in an historic district, and if neither a landmark nor in an historic district, whether or not the building or structure has historical, cultural, architectural, or archaeological significance (structure having significance).

(2) If the building or structure is a landmark, in an historic district, listed or eligible for listing in the National Register of Historical Places, or possesses historical, cultural, architectural, or archaeological significance, BSB shall ensure that an order, finding, or other action taken complies with the requirements set out in the Uniform Development Code § 35-617. Provided, however, within sixty (60) days from the date of receipt of the information from the development services director or designee, the historic preservation officer must have obtained the historic and design review commission concurrence that a building r structure having significance should be designated a landmark. Further, the structure having significance must be so designated by city council one hundred eighty (180) days after the date of receipt of the information from the development services director or designee. If any one of the deadlines set out above is not met, the BSB may presume the building or structure does not have historical, cultural, architectural or archaeological significance.

(3) In instances in which a dangerous building or structure is designated a historic landmark or located within an historic district and has not received a recommendation of demolition from the historic design and review commission, the case shall be heard by the full membership of the BSB. All quorum requirements shall be met.

(c) The BSB shall act as authorized under all applicable statutes and laws.

(d) BSB duties shall include review of the procedures for each case brought before the board to confirm notice requirements have been satisfied; conduct a public hearing as required by this article to determine whether a building is a public nuisance, and issue abatement orders. In hearing cases pertaining to distressed buildings and structures, the BSB shall regard potential for curing title and to advise, when appropriate, property owners of programs which may be available to assist in preserving buildings as affordable housing.

(e) In addition to the city's authority under the V.T.C.A., Local Government Code § 214.001(m)(n) to perform public nuisance abatement of dangerous buildings or structures and secure its costs with a lien, whenever remediation is not accomplished within the allotted time, the city shall further exercise its authority, under V.T.C.A., Local Government Code § 214.0015, additional authority, to allow the BSB to elect to have the city perform limited repairs, as described below. Assessment for repairs, notice, and recovery of the assessment shall be performed by the city in the same manner as required for the fixing, filing, and foreclosure of liens arising from city services rendered to remediate other premises violations.

(f) A building may be repaired by the city under this section, only to the extent necessary to bring the building into compliance with

minimum standards, and only if the building is a non-homestead residential building with ten (10) or fewer dwelling units.

(g) The lien, however, may be imposed against any non-homestead real property to secure payment of qualified repair, removal, or demolition expenses.

(Ord. No. 2008-10-02-0869, § 1, 10-2-08; Ord. No. 2011-05-05-0354, § 3, 5-5-11; Ord. No. 2011-09-29-0788, § 1, 9-29-11; Ord. No. 2015-10-29-0921, § 1, 10-29-15)

Editor's note—Ord. No. 2011-05-05-0354, § 3, adopted May 5, 2011 and effective January 1, 2012, changed the title of section 6-158 from "Dangerous structure determination board established; composition; public hearing authority; duties; quorum" to "Dangerous buildings or structures cases." The historical notation has been preserved for reference purposes.

Sec. 6-159. Standards for repair, vacation, or demolition; BSB review of demolition settlement.

The following standards shall guide the code compliance director in his discretion in ordering a hearing to repair, vacate, secure, and/or demolish a dangerous building and these standards shall be observed and applied by the hearing officers who comprise the building standards board.

(1) The director of development services, at his/her discretion, may allow additional time to develop a rehabilitation plan for occupied homesteads under special circumstances faced by the owner including, but not limited to, mental and/or physical hardships; age; income; length of occupancy; and veteran status.

(2) If the alleged dangerous building can be feasibly repaired or the condition remedied so that it will no longer exist in violation of the terms of this article, it shall first be ordered remedied or repaired by the hearing officers. Demolition shall be regarded as a remedy of last resort.

(3) If the building is in such condition as to make it dangerous to the health or safety of its occupants, it shall be ordered by the hearing officers to be vacated.

(4) In any case where a dangerous building is fifty (50) percent or more damaged or decayed or deteriorated in its structure, or fifty (50) percent or more diminished in its value due to damage, decay, or deterioration, a presumption shall arise that the building cannot be repaired. Such presumption may be appropriately rebutted by the weight of the evidence.

(5) Principals of sound engineering practices shall be respected.

(6) In all cases of settlement in which a responsible party enters into a voluntary demolition agreement to accept city serviced demolition, all settlement agreements shall be reviewed by the BSB prior to execution by a duly authorized city official possessing settlement authority.

(Ord. No. 85915, § 2, 4-17-97; Ord. No. 2011-05-05-0354, § 5, 5-5-11; Ord. No. 2015-10-29-0921, § 1, 10-29-15)

Editor's note—Ord. No. 2011-05-05-0354, § 5, adopted May 5, 2011 and effective January 1, 2012, changed the title of section 6-159 from "Standards for repair, vacation, or demolition; DSDB review of demolition settlement" to "Standards for repair, vacation, or demolition; BSB review of demolition settlement." The historical notation has been preserved for reference purposes.

Sec. 6-160. Additional state authority.

Under authority of V.T.C.A., Local Government Code § 214.001, subch. A. Dangerous Structures, upon hearing, a building or structure shall be ordered demolished, vacated, secured, or repaired, and/or its occupants relocated if found to be:

(1) Dilapidated, substandard, or unfit for human habitation and a hazard to the public health, safety, and welfare; or

(2) Regardless of its structural condition, but having been subject to repeated criminal enforcement efforts, unoccupied by its owners, lessees, or other invitees, the building is unsecured from unauthorized entry to the extent that it could be entered or used by vagrants or other uninvited persons as a place of harborage or could be entered or used by children.

(Ord. No. 85915, § 2, 4-17-97)

Sec. 6-161. Inspection of buildings, schools, churches, etc.

The director of code compliance or development services may inspect or cause to be inspected periodically, all public buildings, schools, halls, churches, theaters, hotels, tenements, commercial buildings, manufacturing buildings, or loft buildings, flea markets, and tents for the purpose of determining whether any conditions exist which render any such place a dangerous building or structure within this article. The director may also inspect buildings under the following conditions:

(1) Any premises, building, wall, or structure about which complaints are filed by any persons alleging that any premises or a building, wall, or structure is or may be existing in violation of this article;

(2) Any premises, building, wall, or structure, as provided for in this article, alleged by the health, fire, or police departments of this city to be in violation of the terms of this article. Good faith shall be sufficient to support the director's inspection effort.

(3) Any premises, building, wall, or structure which the director in good faith has reason to believe may be in violation of this article.

(Ord. No. 85915, § 2, 4-17-97; Ord. No. 96273, § 1, 8-29-02)

Sec. 6-162. Notice of hearing.

(a) When the director of code compliance has probable cause to believe a building or structure to be dangerous, the code compliance director shall order a public hearing before the BSB and make a diligent effort to discover and notify in writing the owner and each lienholder or mortgagee, before the public hearing. The director must make a reasonable search of the instruments on file in the office of the county clerk to find the owner. Reliance on the real property lien and tax records of Bexar County, Texas, shall be sufficient to identify mortgagees and lienholders.

(b) The pre-hearing notice to the owner shall be:

(1) Personally to the owner in writing; or

(2) By letter addressed to the owner at the owner's post office address;

(3) If personal service cannot be obtained or the owner's post office address is unknown:

a. By publication at least twice within ten (10) consecutive days; and

b. By posting the notice on or near the front door of each building on the property to which the violation relates.

(c) The pre-hearing notice to lienholders/mortgagees shall be directed to them at addresses provided by the real property tax records of Bexar County, Texas, and deposit of the notice with the United States Postal Service, first class, shall be deemed sufficient for delivery.

(d) The notice shall state:

(1) The observations of the code compliance director:

- Identifying conditions enumerated above in section 6-156 of alleged dilapidation, substandard conditions, unfitness for human habitation, and hazard to the public health, safety, and welfare; or
- In the alternative, regardless of structural condition, a building or structure is unoccupied by its owners, lessees, or other invitees and unsecured to the extent it could be, or has been, entered by vagrants or other uninvited persons as a place of harborage or could be entered or used by children, and that the building has been subject to repeated criminal enforcement efforts; and

(2) Identification of the building and the property upon which the building is located. (This identification is not required to be a legal description.); and

(3) A statement that the owner, lienholder, or mortgagee shall be required at the hearing to present proof of the scope of

any work that may be required to comply with this article and the time it will reasonably take to perform the work; and

(4) A statement that the lienholder/mortgagee, as well as the owner, is entitled to attend the hearing and shall be afforded opportunity to comment.

(e) If the city files a notice in the official public records of real property for Bexar County, Texas, pertaining to the hearing, as set forth above, the notice shall bind all subsequent holders of interest in the property, according to state law.

(f) The city is not required to furnish any further notice to a mortgagee or lienholder, other than a copy of the building standards board's order, when the city has followed the notice requirements set forth here.

(g) The order, in regard to mortgagees and lienholders, shall notify them, as set forth below at section 6-162, of the owner's obligations and shall allow an additional reasonable time for the mortgagee/lienholder to perform the order if the owner fails to do so.
(Ord. No. 85915, § 2, 4-17-97; Ord. No. 2011-05-05-0354, § 5, 5-5-11)

Sec. 6-163. Notice of building standards board—Findings and order; statutory limits on demolition time.

(a) After the hearing, the BSB shall promptly notify by certified mail, return receipt requested, the owner and any mortgagee or lienholders, of the board's order, setting forth a description of the building or structure found unsafe, a statement of the particulars which made the building or structure a dangerous building, a reasonable time for the building to be vacated, secured, repaired, removed, or demolished, and the occupants relocated, if any, and an order requiring the same to be put in such condition as to comply with the terms of this article within such length of time, not exceeding thirty (30) days as is reasonable.

Within ten (10) days after the date the order is issued, the city shall also file a copy of the order in the city clerk's office and publish once in a newspaper of general circulation within the city a notice of:

(1) Street address or legal description of the property;

(2) Date of the hearing;

(3) Brief statement of results of the hearing; and

(4) Instructions stating where a complete copy of the order may be obtained.

(b) As prescribed by V.T.C.A., Local Government Code § 214.001(h), in conducting a hearing authorized under this article and upon a finding that the building is dangerous, the BSB shall require the owner, lienholder, or mortgagee of the building to within thirty (30) days:

(1) Secure the building from unauthorized entry; and/or

(2) Repair, remove, or demolish the building, unless the owner or lienholder establishes at the hearing that the work cannot reasonably be performed within thirty (30) days.

(c) If the BSB allows the owner, lienholder, or mortgagee more than thirty (30) days to repair, remove, or demolish the building, the BSB shall establish specific time schedules for the commencement and performance of the work and shall require the owner, lienholder, or mortgagee to secure the property in a reasonable manner from unauthorized entry while the work is being performed, as determined by the BSB. V.T.C.A., Local Government Code § 214.001(l).

(d) The BSB may not allow the owner, lienholder, or mortgagee more than ninety (90) days to repair, remove, or demolish the building or fully perform all work required to comply with the order unless the owner, lienholder, or mortgagee:

(1) Submits a detailed plan and time schedule for the work at the hearing; and

(2) Establishes at the hearing that the work cannot reasonably be completed within

ninety (90) days because of the scope and complexity of the work. V.T.C.A., Local Government Code § 214.001(i).

(e) If the BSB allows the owner, lienholder, or mortgagee more than ninety (90) days to complete any part of the work required to repair, remove, or demolish the building, the BSB shall require the owner, lienholder, or mortgagee to regularly submit progress reports to the BSB to demonstrate that the owner, lienholder, or mortgagee has complied with the time schedules established for commencement and performance of the work. The order may require that the owner, lienholder, or mortgagee appear before the BSB or the director of code compliance to demonstrate compliance with the time schedules. V.T.C.A., Local Government Code § 214.004(k).

(Ord. No. 85915, § 2, 4-17-97; Ord. No. 2011-05-05-0354, § 5, 5-5-11)

Editor's note—Ord. No. 2011-05-05-0354, § 5, adopted May 5, 2011 and effective January 1, 2012, changed the title of section 6-163 from "Notice of dangerous structures determination board—Findings and order; statutory limits on demolition time" to "Notice of building standards board—Findings and order; statutory limits on demolition time." The historical notation has been preserved for reference purposes.

Sec. 6-164. Burden of proof.

In any public hearing before the BSB to determine whether a building is in violation of the conditions set forth in this article, which may result in a finding of public nuisance and an abatement order, the owner, mortgagee, or lienholder has the burden of proof to demonstrate the scope of any work that may be required to abate the nuisance and the time it will take to reasonably perform the work. This burden is imposed under authority of V.T.C.A., Local Government Code § 214.001(l).

(Ord. No. 85915, § 2, 4-17-97; Ord. No. 2011-05-05-0354, § 5, 5-5-11)

Sec. 6-165. Responsible party's failure to abate; costs.

(a) If the building or structure, subject of the BSB order, is not vacated, secured, repaired, removed, or demolished, or the occupants are not relocated within the allotted time, the city may vacate, secure, remove, or demolish the building or relocate the occupants at its own expense.

(b) If the city incurs expenses under subsection (a) above, the city may assess its costs and secure same by a lien.

(c) In the event of city serviced demolition, following review and approval by the BSB, to abate the public nuisance, the owner shall be charged and billed for the expense of demolition of the structure or building, to prepare the premises for demolition, collapse the structure, remove and dispose of all debris to a legal disposal facility, plus any handling, transportation and disposal fees incurred, including any and all costs necessary to address special or hazardous wastes, and an administrative cost of two hundred fifty dollars ($250.00) and cause the expense hereof to be assessed on the real estate, lot or lots upon which such expense is incurred.

(d) Any case referred to the BSB for consideration shall also have attached as costs all expenses incurred by the city to research ownership and mortgagee/lienholder interests, as such research is required by state law to fix enforceable orders and liens.

(Ord. No. 85915, § 2, 4-17-97; Ord. No. 2011-05-05-0354, § 5, 5-5-11; Ord. No. 2025-09-18-0629, § 2(Att. C), 9-18-25)

Sec. 6-166. Hearing proceedings.

(a) The code compliance director or his/her designee shall prepare a notice to the owner, mortgagee, or lienholder, if any, having an interest in such alleged dangerous building notifying such persons that a hearing on the matter will be heard by the building standards board at a certain time on a certain day, not less than five (5) days and not more than sixty (60) days after receipt thereof, at a city facility appropriate to public hearings.

(b) The notice shall be served by verified personal delivery to such persons or by U.S. mail, certified return receipt requested. Where any such person is a corporation, service upon an officer thereof or designated agent shall be deemed sufficient. Where such entity's or person's principal place of business is located outside of the county, service upon the person in charge of the local office shall be deemed sufficient. Such notice shall be published one time in the city's

official publication in the event any person having an interest in such premises, or their heirs, cannot be located after reasonable efforts.

(c) The code compliance director or his/her designee shall present at such hearing facts bearing on the condition of the premises, and reports may be made by personnel of the departments of fire, development services, planning, other city departments, or other appropriate agencies.

(d) Any person having an interest in the property or who may be affected by conditions of the property shall be allowed to present evidence at such hearing, in person or by attorney, regarding condition of the premises and to hear the reports of any city personnel or of any other persons who may be present. The city shall have only those obligations to notify persons or entities as prescribed by statute.

(e) The BSB may require the posting of a performance bond not to exceed ten thousand dollars ($10,000.00) to ensure performance of any formal agreement that may be reached between the city and a person having an interest in the property to accomplish the remediation contract.

(f) The remedy of this section shall be available to the city in addition to any penal or other civil remedy which the city, state or other person may have to remedy public nuisance conditions.
(Ord. No. 85915, § 2, 4-17-97; Ord. No. 96273, § 1, 8-29-02; Ord. No. 2011-05-05-0354, § 5, 5-5-11)

Sec. 6-167. Expedited cases before the BSB.

In cases where the code compliance director determines that there is sufficient danger to the life, safety, or property of any person unless a dangerous building or structure, as defined in this article, is immediately repaired or demolished, or in cases where a dangerous building or structure, as defined in this article, is located within one thousand (1,000) feet of a public or private elementary school, middle school, high school, or a state recognized day care center, the code compliance director shall commence procedures to expedite vacation and/or repair or demolition of such dangerous building or structure. All such expedited cases shall include immediate written notice to the historical preservation officer, which expedition may include a request for a temporary restraining order (TRO). The director may, at his/her option, cause immediate remediation by requesting the city attorney to file in the district court a request for a TRO authorizing emergency abatement. In a request for a TRO, made pursuant to this section, the city attorney may seek any and all relief necessary to abate the emergency except demolition of the structure. Demolition may be sought pursuant to this section, at the request and concurrence of the director of code compliance and the historical preservation officer, by action for injunctive relief if such action is deemed necessary by the city attorney. (The above notwithstanding, the city attorney may seek any and all remedies available at law or equity as necessary for abatement under section 6-175.)

In cases of buildings or structures governed by section 35-617 of the Unified Development Code, Public Safety Hazards and Emergency Securing Measures, pertaining to landmarks and structures located within an historical district, the code compliance director shall expeditiously secure the structure in question to the extent practicable with resources available to the director. The director shall thereafter inform the historic preservation officer of these steps and shall provide copies of such information on securing to members of the historic and design review commission and the BSB.
(Ord. No. 85915, § 2, 4-17-97; Ord. No. 96273, § 1, 8-29-02; Ord. No. 2011-05-05-0354, § 5, 5-5-11)

Editor's note—Ord. No. 2011-05-05-0354, § 5, adopted May 5, 2011 and effective January 1, 2012, changed the title of section 6-167 from "Expedited cases before the DSDB" to "Expedited cases before the BSB." The historical notation has been preserved for reference purposes.

Sec. 6-168. Placarding.

(a) In emergency cases the director of code compliance shall cause to be posted at each entrance to such dangerous building a notice to read: DO NOT ENTER. THIS STRUCTURE TO BE DEMOLISHED BY THE DEPARTMENT OF CODE COMPLIANCE, CITY OF SAN ANTONIO.

Such notice shall remain posted until the required demolition is completed. Such notice shall not be removed without written permission of the code compliance director, and no unauthorized person shall enter the building for any purpose. It shall be unlawful for any person who enters such premises to remove the posted notice without written permission from the code compliance director.

(b) Buildings or structures subject to BSB hearings shall be appropriately placarded at discretion of the code compliance director with warning of dangers for which the director has probable cause for concern.
(Ord. No. 85915, § 2, 4-17-97; Ord. No. 2011-05-05-0354, § 5, 5-5-11)

Sec. 6-169. Reserved.

Editor's note—Ord. No. 2011-05-05-0354, § 3, adopted May 5, 2011 and effective January 1, 2012, repealed the former section 6-169 in its entirety, which pertained to administrative liability and derived from Ord. No. 85915, § 2, adopted April 17, 1997.

Sec. 6-170. Reports of suspected dangerous buildings.

The heads of the fire, police, and other city departments shall make prompt reports in writing to the code compliance director of all buildings or structures which are, or may be suspected to be dangerous buildings or structures within the terms of this article.
(Ord. No. 85915, § 2, 4-17-97)

Sec. 6-171. Disconnecting public utilities.

The code compliance director may request that public utilities be disconnected in order that demolition or other nuisance abatement actions may be accomplished without delay in those cases where the structure is open, vacant, dilapidated, or subject to any of the conditions defining public nuisance in this article.
(Ord. No. 85915, § 2, 4-17-97)

Sec. 6-172. State authority for summarily securing unoccupied buildings.

(a) *Purpose; no emergency required.* An owner or person in control of an unoccupied building shall ensure that the building is in such condition that an unauthorized person cannot enter into it through missing or unlocked doors or windows, or through other openings into the building. The city may secure unoccupied, unsecured structures after the owner(s) fail to do so after reasonable notice, or, in the base of an unsecured, unoccupied building located within one thousand (1,000) feet or a public or private elementary school, middle school, or high school, or a state recognized day care center, at the discretion of the code compliance director, the city may secure without prior notice, as prescribed by V.T.C.A., Local Government Code § 214.0011. Subsequent notice of discretionary, summary abatement shall be provided as set forth in subsection (k)(2) below. A lien may be filed on non-homestead residential structures to assure recovery of the cost of securing.

(b) *Definition.* An unsecured, unoccupied building is hereby defined to be any structure that currently has no legitimate occupant or tenant, or is occupied by persons who have no right to possession, and which has missing or unlocked doors or windows, or other unsecured openings into the building through which an unauthorized person, including a child, could enter. Any unoccupied, unsecured building is hereby declared to be a danger to the public health and safety and a public nuisance.

(c) *Notice.* Whenever it is found that an unoccupied building is in such condition that an unauthorized person or child could enter it through missing or unlocked doors or windows or other openings, the director of development services or the fire marshal shall cause a written "Notice To Secure" to be given to the owner of the property or to any person having control over the property. Such notice shall inform the addressee that the building is a public nuisance, and must be secured in compliance with this section within ten (10) days of the receipt of the notice, or that the city has already secured the structure. The notice shall be served to the addressee by first class mail or by personal delivery, and by posting the notice on or near the front door of the building by a code compliance investigator, fireman, peace officer, or other persons authorized by the director of development services. When

the city has already secured the structure, notice shall be given no later than the eleventh day after the date the structure is secured.

(d) *Appeal.* Any property owner who believes that the development services department or the fire marshal has erroneously identified his or her structure as an unsecured, unoccupied structure, shall have the opportunity to appear before a hearing of the board charged with declaring public nuisances, in person or by attorney, to present any relevant facts as to the condition of the premises upon submitting a written request for such hearing within thirty (30) days after the structure is secured. A hearing shall be held within twenty (20) days after the date a request is filed. Details concerning the right to appeal shall appear on the notice to secure or notice of accomplished securing. The board may require the posting of a performance bond not to exceed one thousand dollars ($1,000.00) to ensure performance of any agreement that may be reached with the owner of the property in question and which results in the postponement of a pending civil order to secure and/or clean.

(e) *Offense.* It is unlawful for any building owner or person having control of any premises to cause, permit, or allow a public nuisance as defined in this article or to fail to timely comply with a notice to secure ordered by the director of development services or fire chief, given pursuant to this section. Violation shall be punishable by a fine of not less than fifty dollars ($50.00) nor more than two thousand dollars ($2,000.00). Each day's failure to comply after the expiration of the notice period shall constitute a separate offense.

(f) *City may secure structures.* If the owner fails to comply with the notice to secure, the director of development services or fire marshal may order the boarding up of all openings to the building so as to prevent entry, or the securing of the structure in any other reasonable fashion.

(g) *Method of securing.* The securing of windows, doors, or any other opening allowing access to an unsecured, unoccupied structure shall be done with such materials and technique to effectively bar entrance to the structure. Such materials include, but are not limited to, plywood, lumber, steel, replacement glass, nails, screws, and bolts. The use of cardboard, tar paper, window and door screens, or any other material that will not effectively prevent entrance shall not be sufficient to meet the requirements of this section. Upon receipt of a notice to secure, each and every accessible means of entry must be secured.

(h) *Method of cleaning.* The cleaning of an unoccupied building shall include maintenance of said structure and its lot free and clear of garbage, trash, debris, rubbish, waste, wood and metal scrap, inoperative or abandoned appliances and furniture. All weed and grass cuttings shall be removed from the premise in accordance with the provisions of chapter 14 of the City Code.

(i) *Collections and liens.* If the city secures a structure pursuant to authority granted by the Texas Local Government Code and in accordance with this article VIII, the city shall proceed to secure payment for said actual costs of securing the property plus an administrative fee of two hundred fifty dollars ($250.00) by the following:

(1) *Residential property of ten (10) dwelling units or less:* If after thirty (30) days from billing for the securing of a structure, payment in full has not been made, the city may proceed to collect the amount due including the costs of securing, plus all associated costs and fees by filing a lien to be recorded in the real estate records of Bexar County, Texas, pursuant to authority granted by law.

(2) *All other structures:* If after thirty (30) days from billing for the securing of a structure, payment in full has not been made, the city shall bring suit in a court of competent jurisdiction to collect the amount due including the cost of securing plus all associated costs and fees. The city attorney is hereby further authorized to make use of whatever legal or equitable remedies are available to collect said monies due, including filing and foreclosure of liens as appropriate.

(j) *Fee and cost payable date.* The cost of securing, plus the attendant administrative cost of one hundred fifty dollars ($150.00), shall attach and become an account receivable on the date completion of the boarding-up, fencing, or other method of securing any structure.

(k) *Other remedies available.* The remedies provided in this section shall be available in addition to others provided by law or equity. The issuance of a notice to secure or imposition of a fine pursuant to another section of this code shall not be required as a prerequisite to the initiation of abatement action, nor shall the issuance of a notice to secure or imposition of a fine under this section preclude any other or additional abatement remedies.

(l) *Danger posed by unsecured structure:*

(1) Where the director of development services finds that an unsecured building, regardless of the date of its construction, poses such a danger to public, health, safety, and welfare that in the director judgment summary abatement is necessary, or where an unsecured building is located within one thousand (1,000) feet of a public or private grammar school, middle school, or high school, or a state recognized day care center, he/she shall cause the structure to be secured and cleaned.

(2) Notice to the owner(s) shall be provided before the eleventh (11th) day, after the structure is secured, by personal service, or notice by first class U.S. Mail at the owner's post office address. If personal service cannot be obtained and the owner's post office address is unknown, notice may be performed by either publishing the notice twice within a ten-day period in a newspaper of general circulation in the county in which the building is located, or posting the notice on or near the front door of the building. The notice shall contain the information required by applicable state law, and as such law may from time to time be amended, at least: (i) a description of the building and the property on which it is located (need not be legal description); (ii) description of the violation; (iii) statement of owner's need to secure or that city has secured, as the case may be; and (iv) explanation of owner's right to request a hearing on the matter, if within thirty (30) days of securing, owner files written request for hearing. The BSB must hear the matter within twenty (20) days after the date request is filed.

(3) It shall be unlawful for any person to enter such premises or remove the posted notice without written permission from the director of development services.

(4) The city's costs may be recovered and a lien filed in the same manner as to secure city expenses incurred to remediate other premises violations.

(Ord. No. 85915, § 2, 4-17-97; Ord. No. 94581, § 4, 9-20-01; Ord. No. 96273, § 1, 8-29-02; Ord. No. 2009-09-17-0731G, § 1, 9-17-09; Ord. No. 2011-05-05-0354, § 5, 5-5-11; Ord. No. 2011-09-29-0788, § 1, 9-29-11; Ord. No. 2012-11-08-0878, § 1, 11-8-12; Ord. No. 2025-09-18-0629, § 2(Att. C), 9-18-25)

Sec. 6-173. Enforcement; appeal to district court under substantial evidence rule; lien priority.

(a) Any owner, lienholder, or mortgagee of record, aggrieved by an order of the BSB under this article VIII may file in district court a verified petition setting forth that the decision is illegal, in whole or part, and specifying the grounds of the illegality. The petition must be filed within thirty (30) calendar days after the respective dates a copy of the final decision of the BSB is mailed to them by first class mail, certified return receipt requested, or such decision shall become final as to each of them upon expiration of each such 30-calendar-day period.

(b) In any judicial contest challenging the city's rights under this ordinance, the city shall pursue recovery of its attorney's fees as allowed by the Texas Local Government Code.

(c) An aggrieved party's appeal from an order of the BSB, when made to the district court, shall be limited, according to law, to a hearing under the substantial evidence rule, where under the

court may reverse or affirm, in whole or part, the BSB's decision. Accordingly, costs may not be allowed against the city.

(d) The lien securing payment of civil penalties or the costs of repairs, removal, or demolition, as the case may be, is inferior only to any previously and duly recorded bona fide mortgage liens, as prescribed by state law. The city's lien is superior to all other previously recorded judgment liens, and shall accrue interest at the rate of ten (10) percent a year, or as allowed by law, from the date of assessment until paid in full.
(Ord. No. 85915, § 2, 4-17-97; Ord. No. 2011-05-05-0354, § 5, 5-5-11)

Sec. 6-174. Other remedies; Chapters 54 and 214, Texas Local Government Code.

Nothing is this article shall preclude the city's pursuit of any and all other remedies allowed under the civil and criminal statutes, and in equity, to address conditions which are treated in this article, under the theory of public nuisance and abatement of dangerous structures or buildings. Neither shall the city be required, nor prohibited, to issue criminal citations before, after, or during any proceeding prescribed in this article.

Specifically, in addition to provisions of this article and remedies afforded under V.T.C.A., Local Government Code ch. 214, Municipal Regulation of Structures, the city further asserts full authority to exercise its right to remedy under all provisions of the Texas Local Government Code, including, but not limited to, ch. 54, subch. B, Municipal Health and Safety Ordinances, in prosecution of civil suits for enforcement, injunctive relief, and civil penalties to remedy conditions of public concern described in this article.
(Ord. No. 85915, § 2, 4-17-97)

Sec. 6-175. Emergency demolitions.

(a) Emergency arising from sudden acts or occurrences.

(1) Where it appears to the fire chief or director of development services or their designees, that due to structural defects or conditions arising from, but not limited to, fire, accident, water damage, vandalism, or other sudden act or occurrence thereby threatening the structural integrity of a building, there is clear and imminent danger to the life, safety or property of any person unless the building is immediately demolished, either of these officials shall declare its immediate vacation and demolition. The concurrence of the director of development services shall be required prior to execution of the demolition order. Such concurrence shall include a determination that under the circumstances no other abatement procedure is reasonably available except demolition.

(2) Notice that the structure has been determined to be a clear and imminent danger to life and safety shall be issued:

a. By placard affixed to the property or by stake driven into the ground. It shall be unlawful for any person to remove the posted notice without written permission of the director and no unauthorized person shall enter the building for any purpose; and

b. By notification to the city manager or designee and office of historic preservation ("OHP").

(b) Emergency arising from long-term deterioration.

(1) Where it appears to the fire chief or director of development services, or their designees, that structural defects or conditions arising from long-term deterioration threaten the structural integrity of a building such that there is clear and imminent danger to the life, safety or property of any person unless the building is immediately demolished, either of these officials shall declare its immediate vacation and demolition. The concurrence of the director of development services shall be required prior to the execution of the demolition order. Such concurrence shall include a determina-

tion that under the circumstances no other abatement procedure is reasonably available except demolition. Upon a determination that an emergency demolition is warranted, the following actions shall be taken:

(2) Notice that the structure has been determined to be a clear and imminent danger to life and safety shall be issued:

a. By placard affixed to the property or by stake driven into the ground. It shall be unlawful for any person to remove the posted notice without written permission of the director of development services and no unauthorized person shall enter the building for any purpose;

b. Via hand-delivery to the owner(s) of record per Bexar County Appraisal District records only if the owner resides within the Bexar County jurisdictional limits;

c. By email to the council district in which the subject structure is located; and

d. By email to the city manager or designee and office of historic preservation.

(3) If the subject structure is designated a historic landmark, located in a historic district, or determined by OHP to have historical, cultural, architectural, or archaeological significance, the OHP shall take the following actions no later than seventy-two (72) hours after notice is issued:

a. Determine, in conjunction with the property owner and any relevant city officials or commissions, including but not limited to the historic and design review commission or its committees, the feasibility of securing the structure and its stabilization;

b. Notify the San Antonio Conservation Society; and

c. Notify the registered neighborhood association in which the subject structure is located.

(4) Within seventy-two (72) hours of notice, a plan of action to stabilize the structure must be presented to the director of development services. Said plan of action shall be developed by a structural engineer registered in the state.

a. If the plan is approved by the director of development services, said plan must be implemented within twenty-four (24) hours of approval.

b. If the plan is determined infeasible by the director of development services, the required affidavits shall be executed for commencement of the emergency demolition.

(5) If stabilization of the structure is begun within twenty-four (24) hours of approval, the structure shall be scheduled for the next available hearing before the board charged with declaring public nuisances for presentation of a scope of work with dates certain for completion of rehabilitation.

(c) The emergency demolition shall be executed not later than ninety-six (96) hours after the last required written concurrence is made.

(d) After execution of the emergency demolition, the officials responsible shall:

(1) File copies of the affidavits among the official records of the dangerous premises unit property case file;

(2) Provide notice to the owner and lienholders/mortgagees of record and OHP; and

(3) Advise the board at its next regularly scheduled hearing.

(e) The historical designation, location or significance of a building or structure shall not prohibit, prevent, or stay an emergency demolition of a dangerous building or structure determined to be a clear and imminent danger to the life, safety or property of any person. Demolition shall be the remedy of last resort and if the structure can be vacated and secured and feasibly

repaired or the condition remedied so that the structure shall no longer be an imminent danger it shall first be ordered.

(f) The city, as a home-rule city, adopts the foregoing emergency abatement action pursuant to V.T.C.A., Local Government Code ch. 214.002, and the powers of self-rule granted by the voters under the City Charter as authorized by the Constitution of the state.
(Ord. No. 2008-10-02-0869, § 1, 10-2-08; Ord. No. 2011-05-05-0354, § 5, 5-5-11; Ord. No. 2011-09-29-0788, § 1, 9-29-11)

Secs. 6-176, 6-177. Reserved.

Editor's note—Ord. No. 2011-05-05-0354, § 3, adopted May 5, 2011 and effective January 1, 2012, repealed the former section 6-176 in its entirety, which pertained to severance and derived from Ord. No. 85915, § 2, adopted April 17, 1997.

DIVISION 3. QUASI-JUDICIAL ENFORCEMENT OF THE SAN ANTONIO PROPERTY MAINTENANCE CODE

Sec. 6-177.1. Statutory authority.

The building standards board (BSB) derives its authority to hear and decide San Antonio Property Maintenance Code cases from V.T.C.A., Local Government Code ch. 54, subch. C (Quasi-judicial enforcement of health and safety ordinances).
(Ord. No. 2011-05-05-0354, § 3, 5-5-11)

Sec. 6-177.2. San Antonio Property Maintenance Code cases.

(a) The building standards board (BSB) is hereby authorized to hear and decide cases relating to alleged violations of the San Antonio Property Maintenance Code (SAPMC).

(b) Any panel of the BSB may hear and decide a SAPMC case.

(c) A majority of the members of the panel must hear a case.

(d) The BSB shall have no authority to waive SAPMC requirements.
(Ord. No. 2011-05-05-0354, § 3, 5-5-11)

Sec. 6-177.3. Advisory authority.

(a) The full membership of the BSB may meet to review and consider amendments to the San Antonio Property Maintenance Code and shall make recommendations to the code official for adoption thereof.

(b) A panel of the BSB does not have advisory authority.

(c) The BSB has no other advisory authority.
(Ord. No. 2011-05-05-0354, § 3, 5-5-11)

Sec. 6-178. Initiation of cases under the SAPMC.

(a) Either the code official, a property owner, registered agent, lienholder, or a person in receipt of a notice of violation of the San Antonio Property Maintenance Code may initiate a case to be brought before the BSB.

(b) Whenever the code official has inspected or caused to be inspected any building, structure, or property and has found that the building, structure, or property is in violation of the San Antonio Property Maintenance Code the code official may initiate a case to be brought before the BSB if a property owner, registered agent, lienholder, or a person in receipt of a notice of violation fails to comply with the terms of the notice within ten (10) business days after service of notice as provided by the SAPMC.

(c) A property owner, registered agent, lienholder, or a person in receipt of a notice of violation of the San Antonio Property Maintenance Code shall have a right to appeal a notice of violation based on the claim that:

(1) The true intent of this code or the rules adopted thereunder have been incorrectly interpreted; and/or

(2) There is a special individual reason that makes the strict letter of this code impractical and the alternative proposal is in compliance with the intent and purpose of the SAPMC and that the alternative proposal does not lessen health, life and fire safety requirements or that the provisions of this code do not fully apply.

(d) The appeal must be filed not later than ten (10) business days after the service of notice as provided by the SAPMC. A request for additional time to comply with the notice due to financial inability or other extenuating circumstance is not a proper basis for appeal, but can be presented to the BSB upon hearing. An appeal must contain a brief statement identifying the notice or action being appealed, describing the relief being sought, and concluding with a statement as to whether the order should be reversed, modified or otherwise set aside. Filing a timely appeal stays further city action under the notice being appealed unless, in the opinion of the code official, a delay would present an immediate danger or unreasonable risk to any person or property.

(e) This division does not affect the ability of the city to proceed under the jurisdiction of the municipal court or to seek other available civil remedies.
(Ord. No. 2011-05-05-0354, § 3, 5-5-11)

Sec. 6-179. Notice procedures.

(a) Notice of a San Antonio Property Maintenance Code (SAPMC) case hearing must be given in accordance with V.T.C.A., Local Government Code § 54.035.

(b) Notice of a SAPMC case hearing before the BSB must be given:

(1) To the person who files a timely written appeal of a notice of violation of the SAPMC;

(2) By personal delivery, by certified mail with return receipt requested, or by delivery by the United States Postal Service using signature confirmation service, to the record owners of the affected property, and each holder of a recorded lien against the affected property, as shown by the records in the office of the county clerk of the county in which the affected property is located if the address of the lien holder can be ascertained from the deed of trust establishing the lien or other applicable instruments on file in the office of the county clerk; and

(3) To all unknown owners, by posting a copy of the notice on the front door of each improvement situated on the affected property or as close to the front door as practicable.

(c) The notice of the hearing must be posted and either personally delivered or mailed on or before the tenth (10th) day before the date of the hearing before the BSB panel and must state the date, time, and place of the hearing. In addition, the notice must be published in a news paper of general circulation in the municipality on one occasion on or before the tenth (10th) day before the date fixed for the hearing.

(d) The BSB may file a notice of a hearing before the BSB panel in the Bexar County official public records of real property.
(Ord. No. 2011-05-05-0354, § 3, 5-5-11)

Sec. 6-180. Reserved.

Sec. 6-180.1. Hearing procedures.

(a) The code official or his designee shall present at a SAPMC hearing facts bearing on the alleged violation of the San Antonio Property Maintenance Code. Personnel from other city departments or governmental agencies may also present facts before the BSB.

(b) Any person owning a legal interest in the property or who may be affected by the condition of the property in question shall be allowed to present evidence at the hearing, in person or by designated representative, regarding the alleged violation of the San Antonio Property Maintenance Code.

(c) BSB members may question any witness testifying before the board.

(d) The BSB shall not be bound by the strict rules of evidence, and may exclude irrelevant, immaterial, incompetent, or unduly repetitious testimony or evidence, or any evidence that does not comply with these rules.

(e) A majority vote of the members voting on a matter is necessary for the BSB to take any action.

(f) At the conclusion of the hearing, the BSB shall determine whether the person is in violation of the SAPMC. Upon a finding that a violation exists, the BSB is authorized to:

(1) Order the repair, within a fixed period, of buildings found to be in violation of the San Antonio Property Maintenance Code;

(2) Declare a building in violation of the San Antonio Property Maintenance Code to be substandard;

(3) Order action to be taken as necessary to remedy or alleviate a violation of the San Antonio Property Maintenance Code relating to a building and property;

(4) Order or direct any peace officer of the state, including a sheriff or constable or the city chief of police, to enforce and carry out the lawful orders or directives of the BSB;

(5) Determine the amount and duration of the civil penalty.

(g) If the BSB issues any order or assesses a civil penalty, the person in receipt of a notice of violation is liable for the violation of the SAPMC and shall be responsible for compliance with the BSB order and payment of the civil penalty subject to the requirements of V.T.C.A., Local Government Code § 250.003 and their right to appeal to District Court.

(h) Except for good cause, failure to appear at a SAPMC case hearing for which proper notice has been given shall result in a finding that the person is in violation of the SAPMC subject to the requirements of V.T.C.A., Local Government Code § 250.003 and their right to appeal to District Court.
(Ord. No. 2011-05-05-0354, § 3, 5-5-11)

Sec. 6-180.2. Judicial review of SAPMC cases.

(a) Any owner, lienholder, or mortgagee of record jointly or severally aggrieved by the decision of the BSB hearing may appeal to District Court in the manner provided in V.T.C.A., Local Government Code § 54.039.

(b) If no appeals are taken from the decision of the BSB panel within the required period, the decision of the BSB is, in all things, final and binding.
(Ord. No. 2011-05-05-0354, § 3, 5-5-11)

Sec. 6-180.3. Failure to comply with a BSB order; penalties.

(a) *Criminal offense and penalty.* A person commits an offense if the person fails to comply with a final order issued by the BSB relating to a violation of the SAPMC. Each day that a person fails to comply with a final order is a separate occurrence. The maximum penalty shall be five hundred dollars ($500.00) per offense, per occurrence. Proof of a culpable mental state is not required for conviction of an offense under this chapter.

(b) *Civil offense and penalty.* A person must comply with a final order issued by the BSB relating to a violation of the SAPMC. A person who fails to comply with a final order commits a civil offense punishable by a maximum fine of one thousand dollars ($1,000.00) a day for each day of noncompliance with the order as provided by V.T.C.A., Local Government Code ch. 54. Criminal conviction under subsection (a) does not preclude assessment or enforcement of applicable civil penalty for violation of a BSB order.
(Ord. No. 2011-05-05-0354, § 3, 5-5-11)

ARTICLE IX. RETAINING WALLS*

Sec. 6-181. Purpose.

The regulations established in this article have been made in accordance with a comprehensive plan for the protection of the life, safety and property of members of the public. They have been designed to regulate the location, construction, maintenance, repair and demolition of retaining walls and the use of ground which depends upon a retaining wall for

*__Cross reference—__Fences, § 6-2.

lateral support when such retaining walls are locates so as to possibly endanger the life, safety or property of the public.
(Code 1959, § 10-91)

Sec. 6-182. Definitions.

For the purpose of this article, the following terms, phrases, words, and their derivations shall have the following meaning:

Abutting land shall mean any land which lies touching a public highway or other public place.

Director of public works shall mean the person who is performing the duties of the director of public works of the city including the duties of city engineer. The term shall include his authorized representative when not inconsistent with the context.

Impact load shall mean extra load caused by extra weight being moved unto the surface.

Premises subject to this article shall mean all premises:

(1) Which are located upon abutting land whereby filling the level of the abutting land has been or will be raised above the level of the adjoining public street or other public place, or

(2) Which are located upon lands which the members of the public are invited to enter upon or to place their personal property upon, and which has land depending upon a retaining wall for its support in order to keep the life, person or property of the public from being endangered.

Retaining wall shall mean any wall used in whole or in part to resist the lateral displacement of any material.

Supported land shall mean any land depending upon a retaining wall in whole or in part for lateral support.

Surcharge load shall mean extra load above the safe load.
(Code 1959, § 10-92)

Sec. 6-183. Construction on city property; consent required; use for private purposes prohibited.

(a) It shall be unlawful for any person to erect, place upon, or maintain for private purposes any retaining wall or part of same upon any real estate owned or controlled by the city, except by contract with or permission given by ordinance of the city council.

(b) If any person has constructed or hereafter shall construct a retaining wall which is situated in whole or in part upon real estate owned or controlled by the city, nothing contained in this article is to be construed to grant to or to recognize in anyone any right, permit, franchise or easement to use any public real estate of the city for private purposes.
(Code 1959, §§ 10-94, 10-95)

Sec. 6-184. Filling abutting land, spilling of soil.

The abutting land owner as well as any person using the abutting land shall in any case where, by filling, the level of the abutting land has been raised above the level of the adjoining public street or other public place, keep soil used in so raising the level of the abutting land off the adjoining public street or other public place. The soil may be kept off the adjoining public street or other public place by a retaining wall built and maintained on the abutting land or by sloping the abutting land so as to accomplish the same purpose.
(Code 1959, § 10-96)

Sec. 6-185. Removal of walls.

The abutting land owner as well as any person using the abutting land shall in any case where the owner and/or user desires to remove a retaining wall in whole or in part on the abutting land, which has been used to keep soil off the public street or other public place, immediately slope the

abutting land in such a manner as to keep the soil from the abutting land off the public street or other public place.
(Code 1959, § 10-96)

Sec. 6-186. Repairs to existing walls.

The abutting land owner as well as any person using the abutting land shall when making repairs to an existing retaining wall, make structurally sound repairs as needed and make the repairs in accordance with plans and specifications prepared by a registered professional engineer; the plans and specifications shall have been approved by the director of public works before a building permit will be issued on abutting land.
(Code 1959, § 10-96)

Sec. 6-187. Overloads.

It shall be unlawful for the owner and/or user of any supported land which the members of the public are invited to enter upon or to place their personal property upon, to use or permit the use of the supported land in any manner which shall cause a surcharge load to be placed thereon. Impact load, if any, shall be considered in determining whether a surcharge load is being placed upon the supported land.
(Code 1959, §§ 10-96, 10-97)

Sec. 6-188. Design, construction and maintenance of retaining walls.

(a) All retaining walls subject to the provisions of this article shall be designed, constructed and maintained to resist the maximum lateral pressure of the retained material, in accordance with accepted engineering practice, when the supported land is being subject to the maximum load which can be put upon it during its present or intended use, whichever is the greater.

(b) A new retaining wall, shall be erected with a structurally sound wall in accordance with plans and specifications prepared by a registered professional engineer; the plans and specifications shall have been approved by the director of public works before a building permit will be issued on abutting land.
(Code 1959, §§ 10-96, 10-98)

Sec. 6-189. Inspections.

(a) The director of public works shall inspect or cause to be inspected periodically all retaining walls on land abutting a public highway, street, road, sidewalk or other public place if said retaining walls are located so as to create a possible dangerous and unsafe condition imperiling life, safety, or property of anyone using the public highway, street, road, sidewalk or other public place.

(b) The director of public works shall inspect or cause to be inspected any retaining wall or premises subject to this article about which complaints are filed by any person to the effect that said premises or retaining wall is or may be existing in violation of this article.

(c) The director of public works shall also inspect or cause to be inspected any retaining wall or premises subject to this article which he has reason to believe may be in violation of this article.
(Code 1959, § 10-102)

Sec. 6-190. Notice of dangerous premises.

(a) The director of public works shall notify in writing the owner, occupant, lessee, mortgagee, agent and all other persons known by him to have an interest in said premises at last known address as shown by the records of the assessor-collector of taxes of the city, of any premises found by him to be dangerous premises within the standards set forth in section 6-192 of this article, that:

(1) The owner must repair or replace with a structurally sound wall, or demolish the retaining wall in accordance with the terms of the notice and this article;

(2) The owner, occupant or lessee must remove immediately sufficient of the load on the supported land to prevent the retaining wall from imperiling the life, safety or property of any member of the public; and when necessary erect a permanent barricade to prevent the retaining wall from being overloaded;

(3) The mortgagee, agent, or other persons having an interest in the premises may at

his own risk repair or replace with a structurally sound retaining wall, or demolish the retaining wall or have such work or act done in accordance with the terms of the notice and this article; provided, that any person notified under this subsection to repair or replace with a structurally sound wall, or demolish the wall, or to vacate sufficient of the load on the supported ground of the retaining wall to relieve any overload upon the retaining wall shall be given any reasonable time, not exceeding thirty (30) days, as may be necessary to do or have done, the work or act required by the notice provided for herewith.

(b) The director of public works shall set forth in the notice provided for in subsection (a) a description of the premises deemed unsafe, a statement of the particulars which make the premises a dangerous premises and an order requiring the same to be put in such condition as to comply with the terms of this article within such length of time, not exceeding thirty (30) days as is reasonable.
(Code 1959, § 10-102)

Sec. 6-191. Compliance with notices.

(a) If the owner, occupant, mortgagee, or lessee fails to comply with the notices Provided in section 6-190 within the time given in the notice, the director of public works shall report the condition to the city attorney giving him a full report including a copy of the notice described in said section 6-190.

(b) The city attorney shall then take appropriate action to secure compliance with the order of the director of public works and to abate the nuisances involved.
(Code 1959, § 10-102)

Sec. 6-192. Definition of dangerous premises.

All premises subject to this article which have one (1) or more of the following defects or conditions shall be deemed a dangerous premises:

(1) Any retaining wall which lists, leans, or buckles to such an extent that a plumb line passing through the center of gravity falls outside the middle third of its base or foundation, and which may reasonably be expected to fall, in whole or in part, and injure members or property of any member of the public.

(2) Any retaining wall which has become damaged or deteriorated to the extent that it may reasonably be expected to fall, in whole or in part, and injure members or property of any member of the public.

(3) Any retaining wall which was built or repaired in a manner which furnishes insufficient lateral support for the load placed thereon by any purpose for which it is used.

(4) Any retaining wall which for any reason not heretofore mentioned is unsafe or dangerous to the life, safety or property of any member of the public.

(5) Any property in which the supported land is subject to surcharge and/or impact load or loads in excess of the safe load of the retaining wall involved which upon collapse of the wall in whole or in part, would endanger the life, safety or property of any member of the public.

(6) Any property on which there is an earth bank which upon collapse, in whole or in part, would endanger the life, safety, or property of any member of the public.
(Code 1959, § 10-99)

Sec. 6-193. Dangerous premises declared nuisance.

All dangerous premises within the terms of section 6-192 of this article are declared to be public nuisances, and shall be abated as provided herein.
(Code 1959, § 10-100)

Sec. 6-194. Standards for repair, vacation or demolition.

The following standards shall be followed in substance by the director of public works in ordering repair, vacation, and/or demolition:

(1) If the retaining wall can be feasibly repaired or the condition remedied so that it

will no longer exist in violation of the terms of this article, it shall be ordered remedied or repaired.

(2) If the retaining wall is in such condition as to make the use of the supported land dangerous to the life or safety of any member or property of the public, the supported land shall be ordered vacated back to a point where its use does not constitute a threat to the life, health or property of any member of the public.

(3) If the retaining wall was originally constructed or has been repaired in such a manner as to constitute a threat to the life, safety or property of any member of the public, it shall be ordered remedied or repaired, if economically feasible, otherwise it shall be ordered demolished.

(Code 1959, § 10-101)

Sec. 6-195. Expenses of construction, repair or demolition.

The entire expenses of the construction, repair or demolition of any retaining wall located on premises subject to this article shall be borne by the owner of the premises. The city is under no obligation to pay any part of the costs of the construction, maintenance or demolition of such retaining wall.

(Code 1959, § 10-104)

Sec. 6-196. Violations, penalty.

(a) It shall be unlawful for any owner, occupant, lessee, agent or any other person to erect, construct, enlarge, alter, repair, move, improve, remove, demolish, or use a retaining wall contrary to or in violation of any of the provisions of this article.

(b) Any person violating any of the provisions of this article shall be deemed guilty of a misdemeanor, and each such person shall be deemed guilty of a separate offense for each day or portion thereof during which any violation of any of the provisions of this code is committed, continued or permitted, and each violation shall be punishable in accordance with section 1-5.

(Code 1959, § 10-103)

Secs. 6-197—6-210. Reserved.

ARTICLE X. RESERVED*

Secs. 6-211—6-289. Reserved.

ARTICLE XI. ASBESTOS HEALTH PROTECTION SURVEY

Sec. 6-290. Definitions.

The following words, terms and phrases, are defined for purposes of this article as follows:

Asbestos survey shall mean an inspection of a building or facility to determine the location, quantity, and condition of asbestos containing material (ACM) therein by taking samples for analysis or by visual inspection.

Commercial building shall mean all buildings, including, but not limited to, institutional, public, and industrial structures which are not otherwise defined herein as residential buildings; however, the term specifically excludes:

(a) An industrial facility to which access is limited principally to employees of the facility because of processes or functions that are hazardous to human safety or health;

(b) A state or federal building or installation (civilian or military);

(c) A private residence;

(d) An apartment building or residential complex with no more than four (4) dwelling units;

(e) A manufacturing facility or building that is limited to workers and invited guests under controlled conditions; or

(f) A building, facility, or any portion thereof which has been determined to be struc-

*__Editor's note—__Ord. No. 2011-05-05-0354, § 1, adopted May 5, 2011 and effective January 1, 2012, repealed the former article X, divisions 1—3 in its entirety, which pertained to commercial and industrial buildings and derived from the Code of 1959, §§ 10A-1—10A-9, 10A-16—10A-29, 10A-36—10A-48, 10A-56—10A-64, and Ord. No. 2008-01-10-0017, § 3, adopted January 10, 2008.

turally unsound and in danger of imminent collapse by a professional engineer, registered architect, or a city, county, or state government official.

[Clarification comment (this comment does not have force of law): The above definition for commercial building meets the state's criteria for a "public building." By way of example, and not limitation, the structures regulated by this article as commercial buildings include any institutional, i.e., school, religious gathering place, industrial, or commercial trading place, including prisons and similar buildings.]

Demolition shall mean operations in which load-bearing structural members of a building are wrecked or removed.

Multiunit residential complex shall mean an apartment, condominium, hotel/motel or other complex or facility used, intended, or capable of

being used for domestic occupation; including temporary or transient lodging, which complex possesses five (5) or more units.

Person shall mean any individual, partnership, company, association, trust, foundation, governmental subdivision or agency, or any other entity recognized by law whether operated for profit or not for profit.

Renovation shall mean additions to or alterations beneath the interior surfaces of a commercial building or multiunit residential complex for purposes of repair or restoration by removal, repairing, and/or rebuilding, or other activity intended to or likely to disturb or dislodge asbestos present in a structure.

Residential building shall mean a single family dwelling, or a residential complex or apartment complex with four (4) or less units used or capable of being used for human habitation, all being categories of structures excluded from provisions of this article.
(Ord. No. 89710, § 1, 5-6-99)

Sec. 6-291. Applicability.

Prior to the issuance of a permit to any person for the renovation or demolition of any commercial building or multiunit residential complex within the city limits of the City of San Antonio, an asbestos survey shall be conducted of the areas to be renovated or demolished.
(Ord. No. 89710, § 1, 5-6-99)

Sec. 6-292. Application to otherwise exempt residential structure.

An asbestos survey shall not be required prior to the issuance of a permit for the renovation or demolition of an otherwise exempt residential building, as defined within this article, unless the renovation or demolition involves two (2) or more contiguous residential building sites which are part of a commercial or public project such as an urban renewal project, a highway construction project, a project to develop a shopping center or mall, the construction of an industrial facility or other large private development.
(Ord. No. 89710, § 1, 5-6-99)

Sec. 6-293. Transfer of property to and from city; contractual discretion.

The city's duly authorized representative, within the affected department, shall ensure performance of an asbestos survey on both residential buildings and commercial buildings, as defined within this article, in either of the following events: (1) prior to the sale or lease of any such building owned by the city to any person, and (2) prior to the sale or lease of any building by any person to the city. The city's management designee has recognized authority to exercise negotiation discretion to determine whether the city or the other party to the agreement shall bear asbestos survey expense. Nothing in this article shall be construed to diminish staff negotiation discretion for the city's benefit. This section expresses a voluntary commitment by the city to asbestos management and is not subject to criminal enforcement.
(Ord. No. 89710, § 1, 5-6-99)

Sec. 6-294. Previous survey; imminent danger.

An asbestos survey shall not be required under section 6-291, 6-292, or 6-293 if the commercial or residential building to be demolished, renovated, sold, or leased has been previously surveyed and satisfactory evidence of such survey is provided to the building official or the city management person designated to negotiate on behalf of the city, as the appropriate case may be. Additionally, an asbestos survey shall not be required if the building is determined to be in imminent danger of collapse or structurally unsafe to enter as prescribed by the city's dangerous structures and distressed properties ordinance, article VII, chapter 6 of this Code of Ordinances, or under the city's summary abatement authority. Unless an exigency is present, requirements of this article shall not be waived.

[Explanatory Note: The city's dangerous buildings and distressed properties ordinance, codified at chapter 6, article VIII, sections 6-156, et seq., also explains demolition procedures for dangerous structures when imminent danger is not present.]
(Ord. No. 89710, § 1, 5-6-99)

Sec. 6-295. Licensed surveyor.

Any asbestos survey required herein shall be conducted by an individual licensed by the state to perform an asbestos survey. The responsibility for accomplishment of the asbestos survey shall be upon the person seeking a permit and upon the owner of the property when the permit seeker is an agent or contractor. The cost of the asbestos survey under section 6-293 shall be borne by the seller or lessor, as may be contractually agreed.
(Ord. No. 89710, § 1, 5-6-99)

Sec. 6-296. Criminal offense; public nuisance; penalties.

No permit for demolition or renovation shall be issued without an asbestos survey as required herein as pertains to commercial and public buildings meeting the applicable definition requirements of this article. It shall be unlawful for any person to commence, conduct, or continue demolition or renovation operations without a permit as required under sections 6-291 and 6-292. Violators shall be deemed to have committed a Class C Misdemeanor criminal offense, and shall be subject to a fine of no less than one hundred dollars ($100.00) nor more than one thousand dollars ($1,000.00) for each violation. Each day a violation continues shall be deemed a separate offense. Commission of renovation or demolition in violation of this article, without benefit of an asbestos survey, is hereby declared to be commission of a public nuisance, deemed to pose a threat to the public health, safety, and welfare, and is prohibited as unlawful. It is also an offense for an owner, occupant, or other person having control of a building or structure to fail to cease or fail to cause to cease acts of demolition or renovation occurring, or threatening to occur, in violation of this article. The city reserves to itself all remedies, at law and in equity, which may be cumulative to the criminal law, to treat violations of this article; the city shall be neither required to issue nor prohibited from issuing criminal citations before, during, or after any civil proceeding to enforce this article.
(Ord. No. 89710, § 1, 5-6-99)

Sec. 6-297. Administrative penalty and referral to state department of health.

Violation of this article shall not be remediated or cured solely by imposition of an administrative fee, for late permit application, upon the person who failed to secure an asbestos survey. Any violation or apparent violation of this article shall be noticed to the Texas Department of Health.
(Ord. No. 89710, § 1, 5-6-99)

Secs. 6-298—6-315. Reserved.

ARTICLE XII. UNIVERSAL DESIGN AND CONSTRUCTION REQUIREMENTS FOR NEW SINGLE FAMILY HOMES, DUPLEXES AND TRIPLEXES BUILT WITH FUNDS ADMINISTERED BY THE CITY OF SAN ANTONIO*

Sec. 6-316. Universal design and construction requirements.

If a person receives financial assistance from city, state, or federal funds administered by the city for the construction of new single family homes, duplexes, or triplexes, that person shall construct the units in accordance with all other city codes and the following requirements.

(1) At least one entrance shall have a 36-inch door and be on an accessible route. (An accessible route is a continuous, unobstructed path at least thirty-six (36) inches wide connecting all interior and exterior elements and spaces of a house and site including corridors, parking, curb ramps, crosswalks and sidewalks and served by a no-step, flat entrance with a beveled threshold of one-half-inch or less).

(2) All interior door openings shall provide an unobstructed path no less than that provided by a 32-inches wide door, except for a door opening that provides access to a closet of fewer than fifteen (15) square feet in area.

(3) Each hallway shall have a width of at least thirty-six (36) inches and shall be level or with ramped or beveled changes at each door threshold.

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*__Editor's note—__Ord. No. 95641, § 1, adopted April 18, 2002, enacted provisions intended for use as art. XII, §§ 6-300—6-303. To preserve the style of this Code, and at the discretion of the editor, said provisions have been redesignated as art. XII, §§ 6-316—6-319.

(4) All bathrooms shall have the walls reinforced around the toilet for potential installation of grab bars. Walls around the shower and tub shall be reinforced for potential installation of grab bars or a pre-manufactured tub and shower surround may be used which includes grab bar(s) certified to meet the ADA requirement to bear a 250-pound load. Wall reinforcements shall comply with the standards set forth in requirement 6, Reinforced Walls For Grab Bars of the Fair Housing Act Design and Construction Guidelines; Federal Register/Volume 56 No.44/Wednesday, March 6,1991/Rules and Regulations, a copy of which is available for inspection at the office of the City Clerk.

(5) Each electrical panel, light switch or thermostat shall be mounted no higher than forty-eight (48) inches above the floor. Each electrical plug or other receptacle shall be at least fifteen (15) inches from the floor.

(6) An electrical panel located outside the dwelling unit must be between eighteen (18) inches and forty-two (42) inches above the finished grade and served by an accessible route.

(7) All hardware installed to open/close doors and operate plumbing fixtures shall be lever handles.

(Ord. No. 95641, § 1, 4-18-02)

Sec. 6-317. Applicability.

(a) This article applies to the construction of all new single family homes, duplexes or triplexes, for which an application for financial assistance from the city or its agents is received and for which a building permit will be issued under the city building code after the effective date of the ordinance from which this article derives.

(b) City financial assistance covered by this article includes but is not limited to:

(1) Contractual agreements involving a city-funded program or fund, including the San Antonio Housing Trust Foundation, Inc. or similar programs;

(2) Real estate purchase, lease, fee waiver, tax phase in, tax abatement;

(3) Donation of land by the city or its agents;

(4) Disbursement of federal, state, or city construction funds, for example but not limited to, U.S. Department of Housing and Urban Development funds such as Community Development Block Grant Program (CDBG) funds, Housing Investments Partnership Act (HOME Program) funds, and Housing Opportunities for Persons With Aids Program funds, and funds disbursed under the Federal Emergency Management Act; or

(5) Tax Increment Financing in a Tax Increment Reinvestment Zone established in accordance with the Tax Increment Financing Act.

(Ord. No. 95641, § 1, 4-18-02; Ord. No. 96621, § 11, 10-24-02)

Sec. 6-318. Waiver of exterior accessibility requirements.

(a) The director of development services or his designee may only grant modifications or an exemption to the requirements of this article regarding full compliance with exterior path of travel on an individual case-by-case basis. The criteria for granting a modification or exemption are as follows:

(1) The lot rises or falls so steeply from the street that a maximum 1:12 slope cannot be achieved without extensive grading; and

(2) No vehicular access to the back of the house will be available by means of an alley.

(b) Appeals of orders, decisions or determinations made by the director of development services may be made to the building and fire code board of appeals.

(Ord. No. 95641, § 1, 4-18-02)

Sec. 6-319. Implementation.

(a) A copy of the ordinance from which this article derives and attachments shall be included in city contracts funding the new construction of

single family homes, duplexes and triplexes entered into by the city or its agents, for example but not limited to, the San Antonio Housing Trust Fund, the department of housing and community development and the community initiatives department.

(b) Architects and builders shall:

(1) Clearly stamp or print "Universal Design" on plans submitted in accordance with this article;

(2) Clearly identify design elements complying with section 6-315 and attached to city funding contracts; and

(3) Certify that the plans comply with the requirements of this article.

(c) Plan checking, construction inspections and enforcement shall be accomplished by the development services department in accordance with existing procedures.
(Ord. No. 95641, § 1, 4-18-02)

Secs. 6-320—6-629. Reserved.

ARTICLE XIII. RESERVED*

Secs. 6-630—6-640. Reserved.

ARTICLE XIV. RESERVED†

Secs. 6-641—6-657. Reserved.

*__Editor's note—__Ord. No. 2011-12-01-0984, § 1, adopted December 1, 2011, repealed the former article XIII, §§ 6-630—6-632 in its entirety, which pertained to the International Residential Code and derived from Ord. No. 98890, § 1, adopted February 26, 2004; Ord. No. 2006-02-23-0258, § 3, adopted February 23, 2006; Ord. No. 2006-08-31-0960, §§ 1, 2, adopted August 31, 2006; Ord. No. 2008-09-11-0777G, § 5, adopted September 11, 2008; Ord. No. 2008-12-11-1160, § 3, adopted December 11, 2008; Ord. No. 2009-03-12-0179, § 6, adopted March 12, 2009; Ord. No. 2009-09-17-0731O, § 3, adopted September 17, 2009; Ord. No. 2009-10-01-0777A, §§ 2, 3, adopted October 1, 2009; Ord. No. 2010-09-16-0791, § 1(Att. G), adopted September 16, 2010, and Ord. No. 2011-09-15-0752, § 1(Att. F), adopted September 15, 2011.

For current provisions pertaining to similar subject matter, the user's attention is directed to chapter 10, building-related codes.

†__Editor's note—__Ord. No. 2011-12-01-0984, § 1, adopted December 1, 2011, repealed the former article XIV, §§ 6-641—6-657 in its entirety, which pertained to demolition contractor licenses and bonding and demolition permit requirements, and derived from Ord. No. 2006-09-21-1121, § 1, adopted September 21, 2006.

For current provisions pertaining to similar subject matter, the user's attention is directed to chapter 10, building-related codes.

ARTICLE XV. RESERVED‡

Secs. 6-658, 6-659. Reserved.

ARTICLE XVI. NAMING OF CITY FACILITIES AND STREETS**

DIVISION 1. GENERALLY

Sec. 6-660. Definitions.

The following definitions shall apply within this article:

Committee shall mean a body existing to perform the functions of this article consisting of, unless otherwise decided and appointed by the city council, a community representative from each district in which the facility is located who would otherwise be noticed under this article to be appointed by the councilmember for that district and all heads of departments to which the facility belongs.

Facility shall mean anything that is built, constructed, installed, grown, or established to serve or facilitate some city purpose or function. This shall include but is not limited to public recreational and sports buildings and areas, community centers, fire and police stations, office buildings, theaters, parks, hiking or nature trails,

‡__Editor's note—__Ord. No. 2011-12-01-0984, § 1, adopted December 1, 2011, repealed the former article XV, §§ 6-658 and 6-657 in its entirety, which pertained to the International Energy Conservation Code, and derived from Ord. No. 2007-01-11-0069, §§ 1, 2, adopted January 11, 2007; Ord. No. 2009-03-12-0179, § 3, adopted September 21, 2006, and Ord. No. 2009-05-21-0427, § 1, adopted May 21, 2009.

For current provisions pertaining to similar subject matter, the user's attention is directed to chapter 10, building-related codes.

**__Editor's note—__Ord. No. 2011-03-31-0239, § 1, adopted March 31, 2011, amended article XVI in its entirety to read as herein set out. Formerly, article XVI, division 1—3, pertained to similar subject matter, and derived from Ord. No. 2007-08-30-0913, § 2, adopted August 30, 2007, and Ord. No. 2007-12-13-1327, § 4, adopted December 13, 2007.

refuges, convention centers, bridges, fountains, gardens, or gazebos. Facility shall not include a street.

Property owner shall mean the person shown on the Bexar County Appraisal District's real property ad valorem tax rolls as the responsible party for payment of property taxes.

Significant reason shall mean a thoughtful, important, notable, or meaningful explanation or justification for an action.

Street shall mean any public roadway within the city limits.

UDC shall refer to chapter 35 of the City Code.
(Ord. No. 2011-03-31-0239, § 1, 3-31-11)

Sec. 6-661. Exclusions.

This article shall not apply to the naming of library facilities in accordance with the City's Charter. A library facility shall be named in accordance with the process established by the city's public library system's board of trustees.
(Ord. No. 2011-03-31-0239, § 1, 3-31-11)

Sec. 6-662. Choices of names.

(a) In all cases, the name choice should reflect and be appropriate to the type of facility, the facility's location, and the character and history of the particular community in which it exists.

(b) If the name is to honor a living person, caution should be exercised to ensure that the person is of such a character that the name shall still hold honor upon that person's death.

(c) Although the choices for a name are unlimited, names generally should be chosen to reflect:

(1) The location or geographical area or feature;

(2) Memorials to national or state leaders or public figures;

(3) Memorials to San Antonio or local leaders or persons;

(4) Mascots or characters of local folklore and fiction;

(5) Events or affairs of historic significance (battles, treaties, disasters);

(6) Ideals or goals (unity, harmony, patriotism);

(7) Significant causes (independence, suffrage, equality);

(8) Facilitators or benefactors of the property or facility;

(9) Traditional names for that type of facility (numbers for fire stations, locations for police stations).

(d) Any change of a facility's existing name should be done only for a significant reason which includes honoring a person, place, institution, entity or event.
(Ord. No. 2011-03-31-0239, § 1, 3-31-11)

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DIVISION 2. CHOOSING INITIAL FACILITY NAMES

Sec. 6-663. Commencement of process for naming of facility and specific areas; suggestion of initial name.

(a) The process to choose the initial name of any facility shall begin before the facility's completion upon presentment of a letter suggesting such to the city clerk.

(b) Specific rooms, areas, or other parts of a facility may be named individually before or after the completion of a facility.

(c) The name(s) shall be suggested to the committee by:

(1) City staff;

(2) The councilmember in whose district it is located; and/or

(3) A community representative.

(d) A facility naming fee shall not be required upon presentment of a letter to the city clerk. Estimated sign costs shall be collected prior to committee consideration.

(e) Signage shall complement the architecture and design of the building.

(f) The suggested name(s) shall be given to the city clerk who shall then deliver it to all appropriate councilmember and department head committee members.
(Ord. No. 2011-03-31-0239, § 1, 3-31-11)

Sec. 6-664. Committee procedure for selecting facility name; submission of name to city council.

(a) Once the city clerk has forwarded the initial name submission, the committee shall designate the date for its public hearing to consider the suggested facility name within thirty (30) days of its receipt. The committee may consider the naming of multiple facilities, rooms or parts of facilities within its member's jurisdiction during one (1) meeting.

(b) Upon designating the date for public hearing, the committee shall immediately cause notice to be served:

(1) By mail to all residents or businesses within a 200-foot radius of the facility to be named, and

(2) By public service announcements, press releases, and other appropriate community bulletins to the entire city.

(c) The date the committee shall meet to consider the suggested facility name shall not be more than ninety (90) days from the date of receipt of the suggested name nor be less than forty-five (45) days from the date the notice is mailed.

Example: The committee receives a facility name request on day one (1) but does not choose a hearing date until day thirty (30). This hearing date may not be later than day ninety (90) as calculated from the date of receipt. Further, the committee may not set the hearing date until day seventy-five (75) if it is assumed that the notice is mailed on day thirty (30) because the hearing date cannot be less than forty-five (45) days from the date the notice is mailed.

(d) The committee shall meet on the designated date to consider the submitted name(s). This meeting shall be open to the public and time shall be allowed for public comment. The committee shall either approve the submitted name and forward to city council or reject the submitted name.

(e) Within ten (10) working days, the committee shall forward in writing both the submitted name and its rationale for approving it to city council. No name shall be forwarded unaccompanied by the committee's rationale.
(Ord. No. 2011-03-31-0239, § 1, 3-31-11)

Sec. 6-665. Contents of notice.

(a) Notices for facility choice of name shall contain:

(1) A statement explaining the process to name a facility, room, or part of a facility; and,

(2) The submitted name(s); and,

(3) A description of what is to be named and its general location; and,

(4) Any submitted reason for the name(s), if applicable; and,

(5) The date, time, and place of the meeting to consider the suggested name(s); and,

(6) A statement that the meeting shall be open to the public and shall provide time for public comment; and,

(7) Information directing that any written response in favor of or against a submitted name may be sent to a named point of contact at a corresponding mailing address up until and including the scheduled committee hearing date. For calculation purposes of the two-thirds (2/3) responses in subsection 6-666(b), only those responses postmarked on or prior to the hearing date shall be considered.

(b) If the naming of more than one (1) facility, room, or part of a facility is to be considered at one (1) meeting, the information required by subsection (a) above, for each individual facility, room or part of a facility to be considered at that meeting may be included in one (1) notice.

(c) It shall be the responsibility of the department(s) to which the facility belongs to ensure proper delivery and content of all notices under this article.
(Ord. No. 2011-03-31-0239, § 1, 3-31-11)

Sec. 6-666. City council action.

(a) The name chosen and submitted by the committee shall be considered by the city council as soon as practical. The city council shall adopt or reject the name. Should the city council adopt the name, the committee's written rationale shall be kept for historical reference.

(b) If two-thirds (2/3) of the responses to the committee's written notice of a suggested name are against the suggested name, eight (8) votes of the city council members shall be required in order to adopt the suggested name.
(Ord. No. 2011-03-31-0239, § 1, 3-31-11)

DIVISION 3. CHANGING THE NAME OF A FACILITY

Sec. 6-667. Commencement of process for renaming a facility and specific areas; suggestion of new name.

(a) A request to change the name of a facility shall be filed with the office of the city clerk who shall follow procedures as directed by division 2 of this article.

(b) Specific rooms, areas, or other parts of a facility may be renamed individually.

(c) Once filed and complete, the city clerk shall deliver it to all appropriate council members and department-head committee members.

(d) The request to change the name of a facility shall be complete upon submitting:

(1) The current official facility name; and,

(2) The proposed new facility name; and,

(3) The name, address, and telephone number of each person, group, agency, or entity requesting the facility name change; and,

(4) The names, addresses, and telephone numbers of all of the property owners, residents, businesses, and tenants located within two hundred (200) feet of the facility in favor of the name change.

(5) Fees. Fees shall consist of:

a. Request fee.

b. Estimated facility sign replacement cost.

c. The projected notification fee(s).

(e) The requesting party, other than the city, shall pay the required fees.
(Ord. No. 2011-03-31-0239, § 1, 3-31-11)

Sec. 6-668. Committee procedure for approving name change; submission of name to city council; bypassing committee review.

(a) Under no circumstances shall a facility name change request bypass the committee.

(b) Committee review and recommendation.

(1) Time limitations shall not exceed ninety (90) days total from the time the application is complete to submitting a name to the city council. For computation purposes, the 90-day period begins when the application is complete. The department has fifteen (15) days to forward the completed application to the committee.

(2) Once the public hearing date has been chosen, the department shall immediately cause notice to be served:

a. By mail to all residents or businesses within a 200-foot radius of the facility to be named, and

b. By public service announcements, press releases, and other appropriate community bulletins to the entire city.

(3) A period of at least fifteen (15) days shall be required in order to give the department sufficient time to provide notice.

(4) The committee shall meet on the designated date to consider the submitted name(s). This meeting shall be open to the public and time shall be allowed for public comment. The committee shall either approve the submitted name and forward to city council or reject the submitted name. Should the committee reject the submitted name, estimated sign costs shall be reimbursed.

(5) Within thirty (30) days of concluding that the name should be changed, the committee shall submit in writing both the submitted name and its rationale for the choice to city council. No name shall be submitted unaccompanied by the committee's rationale.

(Ord. No. 2011-03-31-0239, § 1, 3-31-11)

Sec. 6-669. Contents of notice.

Notices for renaming facilities shall contain the following:

(1) A statement explaining the process to rename a facility, room, or part of a facility; and,

(2) The submitted name(s); and,

(3) A description of what is to be renamed and its general location; and,

(4) Any submitted reason for the name(s), if applicable; and,

(5) The date, time, and place of the meeting to consider the submitted name(s); and,

(6) A statement that the meeting shall be open to the public and shall provide time for public comment.

Information directing that any written response in favor of or against a submitted name change may be sent to a named point of contact at a corresponding mailing address up until and including the scheduled committee hearing date. For calculation purposes of the two-thirds (⅔) responses in subsection 6-666(b), only those responses postmarked on or prior to the hearing date shall be considered.

a. If the renaming of more than one (1) facility, room, or part of a facility is to be considered at one (1) meeting, the information required by subsection (a) above, for each individual facility, room or part of a facility to be considered at that meeting may be included in one (1) notice.

b. It will be the responsibility of the department(s) to which the facility belongs to notify the property owners, residents, tenants and businesses located within two hundred (200) feet of the facility. There shall be a notification period of thirty (30) days before the name change is sent to city council. This will afford the recipient the opportunity to notify the department(s) of their support of, or opposition to, the facility name change. The department shall not issue an owner/resident/business notification unless the applicant has paid all required fees.

(Ord. No. 2011-03-31-0239, § 1, 3-31-11)

Sec. 6-670. Required fees for renaming facilities.

An applicant, other than the city, shall pay for facility renaming signage. Signage shall complement the architecture and design of the building. All required fees are to be paid to the department at the time of application; otherwise, the application will be considered incomplete and rejected.
(Ord. No. 2011-03-31-0239, § 1, 3-31-11)

Sec. 6-671. City council action.

Prior committee review and submittal:

(1) The committee shall forward the submitted name to the city council as soon as practical, but in no case more than thirty (30) days after consideration. Subject to subsection 6-671(2) below, the city council shall adopt or reject the name. Should the city council adopt the name, the committee's written rationale shall be kept for historical reference. Should the city council reject the submitted name, the process is over.

(2) If two-thirds (⅔) of the responses to the committee's written notice of a suggested name are against changing the existing name, nine (9) votes of the city council members shall be required in order to adopt the suggested name.

(Ord. No. 2011-03-31-0239, § 1, 3-31-11)

DIVISION 4. NAMING OF CITY STREETS

Sec. 6-672. Choices of names.

(a) In all cases, the name choice should reflect and be appropriate to the street's location and the character and history of the particular community in which it exists.

(b) If the name is to honor a living person, caution should be exercised to ensure that the person is of such a character that the name shall still hold honor upon that person's death.

(c) Although the choices for a name are unlimited, names generally should be chosen to reflect:

(1) The location or geographical area or feature;

(2) Memorials to national or state leaders or public figures;

(3) Memorials to San Antonio or local leaders or public figures;

(4) Mascots or characters of local folklore and fiction;

(5) Events or affairs of historic significance (battles, treaties, disasters);

(6) Ideals or goals (unity, harmony, patriotism);

(7) Significant causes (independence, suffrage, equality);

(8) Facilitators or benefactors of the property.

(d) Change of a street's existing name should be done only for a significant reason. A significant reason for a street name change includes the following:

(1) To establish continuity of a street name.

(2) To eliminate duplication of name spelling or phonetics.

(3) To correct a misspelling.

(4) To enhance ease of location.

(5) For consistency with the street numbering system designation, including compass direction.

(6) To provide a necessary roadway designation, including: "street," "road," "lane," "circle," "drive," or "boulevard".

(7) To honor a person, place, institution, group, entity, or event.

(8) To enhance a neighborhood through the association of a street name with its location, area characteristics, and history.

(Ord. No. 2011-03-31-0239, § 1, 3-31-11)

DIVISION 5. CHOOSING INITIAL STREET NAMES

Sec. 6-673. Commencement of process for naming a new street.

(a) In no circumstances shall a street have or be given a name that is not in accordance with article V of the UDC.

(b) New streets shall have the name chosen by their developer, pursuant to article V of the UDC.
(Ord. No. 2011-03-31-0239, § 1, 3-31-11)

DIVISION 6. CHANGING THE NAME OF STREET

Sec. 6-674. Commencement of the process for changing the name of a street and/or adding the designation of a memorial name.

(a) An application to change the name of a street or adding a memorial name designation shall only be filed with the development services department by:

(1) A member of the city council;

(2) The director of development services, if it is determined that the street name change is in the best interest of the health, safety, welfare, and public convenience and safety of the citizens of San Antonio;

(3) One of the following located on the subject street:

a. A group;

b. An agency;

c. A business;

d. An owner of property; or

(4) An officer or authorized representative of a governmental subdivision, agency, or department.

(b) The official application shall be on a form prescribed by the development services department. A complete application shall consist of:

(1) The official application form, and

(2) Required fees (see section 6-677).

(c) In addition to the official application, the following shall be submitted:

(1) The name and address of all owners of property affected by the name change. The applicant shall submit this information for the purposes of official notification. The development services department shall verify the list of owners of property. An incorrect notification list shall cease the case until such time that a correct list is submitted by the applicant.

(2) A copy of the complete application shall also be submitted to the Office of Historic Preservation so that a review as provided in subsection 6-675(c) may commence.

(d) There shall be an application completeness review that shall take no longer than ten (10) business days.

(e) From the date of the respective city council action, a segment of street that city council has approved for change of name or addition of memorial designation may not be altered for a period of five (5) years.
(Ord. No. 2011-03-31-0239, § 1, 3-31-11; Ord. No. 2011-12-15-1049, § 1, 12-15-11; Ord. No. 2017-05-04-0296, § 1, 5-4-17)

Sec. 6-675. Administrative review.

(a) The development services department shall distribute copies of the application for review and comment to:

(1) Every city department.

(2) The United States Postal Service.

(3) Bexar County.

(4) Bexar Metro 9-1-1 Network.

(5) Applicable School District(s).

(6) City Public Service Energy.

(7) San Antonio Water System.

(8) BexarMet Water System.

(9) Texas Department of Transportation.

(10) Any other department or entity the director may determine is appropriate.

(b) The agencies listed in subsection (a) shall have a review and comment period consisting of no more than ten (10) days. The ten-day review and comment period shall begin the next business day following the completion of the application completeness review. All agency comments shall be addressed by the applicant before placement on any commission agenda. If no comment

is received by a reviewing agency by the tenth (10th) day, the application shall be presumed acceptable by that agency.

(c) During the administrative review of the application, the office of historic preservation shall make a determination whether the current street name affected by the application meets any of the following criteria:

(1) Names a street within a historic district, whether that be local or the National Register;

(2) Names a street wholly within, or a street with a portion within, the original thirty-six (36) square mile boundary of San Antonio;

(3) Is the name of a primary arterial as shown on the Major Thoroughfare Plan of the city.

Should any of these criteria be found, consideration by the historic and design review commission shall be required before the case can be scheduled for consideration by the planning commission, and any recommendation from those considering bodies shall be forwarded to the city council for their review.

(d) Staff shall schedule the item for consideration on the next available agenda of the planning commission or historic and design review commission, if applicable, following the completion of the administrative review period.
(Ord. No. 2011-03-31-0239, § 1, 3-31-11; Ord. No. 2011-12-15-1049, § 1, 12-15-11)

Sec. 6-676. Public hearing process for renaming.

(a) The renaming of streets, including the designation of a memorial name, requires a recommendation from city staff, the planning commission at a public hearing, the historic and design review commission if determined under subsection 6-675(c), and final consideration by city council at a public hearing.

(b) Not less than ten (10) days before the first public hearing, the development services department shall:

(1) Mail notice of the public hearing(s) to all owners of real property along the subject street segment as listed in the Bexar County Appraisal District, and registered neighborhood associations within which the subject street segment is located.

Notices of public hearing(s) for renaming streets shall contain the following:

a. An explanation of the request; and,

b. The submitted street name(s); and,

c. The general location of the street to be renamed; and,

d. The justification for the renaming submittal; and,

e. The date, time, and place of the public hearing(s) to consider the new street name(s); and,

f. A statement that the meeting(s) shall be open to the public in accordance with the Texas Open Meetings Act and shall provide time for public comment; and,

g. Information directing that any written response in favor of or against a submitted name change may be sent to the development services department.

(2) Post notice on the development services department's internet website and leave posted throughout the entire public process.

(c) At the public hearings, the planning commission shall consider the request and make a recommendation on the suggested name(s).

(d) The planning commission's recommendations and rationales for the recommendations shall be forwarded to the city council for final consideration in accordance with the city council agenda item scheduling procedures.

(e) Notification of the city council public hearing shall be as prescribed in section 6-676. Should the city council approve the new name(s),

the written rationale of the planning commission shall be kept by the city clerk for historical reference.
(Ord. No. 2011-03-31-0239, § 1, 3-31-11; Ord. No. 2011-12-15-1049, § 1, 12-15-11)

Sec. 6-677. Required fees.

All required fees shall be paid to the development services department at the time of application.

(1) Application processing fee of one thousand dollars ($1,000.00).

(2) Estimated costs associated with notice requirements in section 6-676.

(3) The cost of manufacturing and replacing street signs. The cost of replacing street signs is subject to change at any time. This includes, but is not limited to, any and all signs maintained by the Texas Department of Transportation (TxDOT); estimated costs related to new street sign manufacturing and installation; and projected notification costs. The applicant will be responsible for paying any applicable TxDOT fees. If an application for a street name change is denied by city council, the new street sign manufacture and installation fee shall be refunded to the applicant pursuant to the development services department's refund policy.

(Ord. No. 2011-03-31-0239, § 1, 3-31-11)

Sec. 6-678. Implementation.

The development services department shall administratively implement a street name change approved by the city council and the public works department shall install the new street signs.
(Ord. No. 2011-03-31-0239, § 1, 3-31-11)

Sec. 6-679. Notice of name change.

The development services department shall provide a copy of each recorded street name change ordinance to:

(1) Every reviewing party listed in subsection 6-675(a).

(2) The Bexar County Appraisal District.

(Ord. No. 2011-03-31-0239, § 1, 3-31-11)

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Chapter 7

CEMETERIES

Art. I. In General, §§ 7-1—7-25
Art. II. Historic City Cemeteries, §§ 7-26—7-32

ARTICLE I. IN GENERAL

Sec. 7-1. Burials in cemeteries only.

No human remains shall be buried anywhere within the city except in cemeteries now actually laid out for, and legally dedicated to such purposes and, with the consent of the city council evidenced by resolution, in land adjacent to an existing cemetery which has been or may be acquired by such cemetery and dedicated to cemetery purposes in accordance with state law.
(Code 1959, § 9-3)

Sec. 7-2. Depth of graves.

The bodies of all persons shall be interred in a grave not less than five (5) feet deep.
(Code 1950, § 10-6; Code 1959, § 9-4)

Sec. 7-3. Disinterments.

(a) The director of public health shall cause any human remains interred in any place within the city limits, other than as provided in section 7-1, to be at once disinterred, removed and reinterred as is provided in the case of pauper dead; the cost of which shall be a charge against the person violating this section and shall be collected as are other claims due the city.

(b) Disinterment of concrete vaults will be made only by special contract between the vault manufacturer and the city. Cemetery employees will open the grave but will not remove the vault therefrom.

(c) Disinterment for an inquest by court order will be made by the coroner or his lawful agent. Cemetery employees will not participate in any way. No liability for damage to casket or outer container will be assumed by the city in connection with disinterment or removal.

(d) The coroner or his lawful agent will furnish the city with proper permits and legal instruments regarding disinterments.
(Code 1950, § 10-3; Ord. No. 24901, § 1, 4-18-57; Code 1959, § 9-3; Ord. No. 39758, § 12, 7-29-71)

Sec. 7-4. Permits before disinterment.

No body shall be disinterred without a permit from the director of public health; provided, no permit of any nature is required for transfer of a body from one grave to another in the same cemetery.
(Code 1950, § 10-7; Code 1959, § 9-5)

State law reference—Cemeteries, Vernon's Ann. Civ. St. art. 912-1 et seq.

Sec. 7-5. Disposition of amputated human limbs.

Every physician, surgeon or other person whomsoever shall amputate any portion of the human body shall immediately bury or cause to be cremated, under the direction of the cemetery operation supervisor, such amputated portion, and within twelve (12) hours make report in writing to the director of public health, showing the exact disposition of the amputated portion of the human body and where buried or cremated.
(Code 1950, § 10-4; Code 1959, § 9-6)

Sec. 7-6. Removal of bodies from scene of death; consent of family or authorities.

(a) The body of any person who shall die within the city, or who shall die while in transit within the city, shall be immediately removed from the scene of death to the Robert B. Green Memorial Hospital, upon the order of the medical examiner, sheriff or deputy sheriff, constable or regular deputy constable, or a regular policeman of the city, except as otherwise directed by a member of the immediate family of the deceased person.

(b) It shall be unlawful for any person to remove a body from any location within the city, without consent of the immediate family or proper legal authorities, to any place other than the Robert B. Green Memorial Hospital.
(Code 1950, §§ 10-43, 10-46; Code 1959, §§ 9-7, 9-8)

Sec. 7-7. Examination, identification of persons dying under suspicious circumstances, notice to next of kin.

The body of any person who died under suspicious circumstances shall be received by Robert B.

Green Memorial Hospital and shall immediately be examined and a proper test of death shall be made, and the body shall be held for identification. The police department shall promptly notify the next of kin or other members of the family and give all possible aid and assistance to other authorities in contacting the next of kind or other members of the family of the deceased.
(Code 1950, § 10-44; Code 1959, § 9-9)

Sec. 7-8. Release of bodies of deceased persons.

The Robert B. Green Memorial Hospital shall release the body of a deceased person only upon written instructions of the next of kin or an authorized member of the family of the deceased to whatever funeral home directed after the release by the coroner in charge, if any, or if there is no coroner, by proper legal authorities, viz: the chief of police, or captain of police in charge, or lieutenant in charge of homicide, according to the manner provided by the hospital for disposition of such body, and the hospital shall keep a permanent record of all such cases.
(Code 1950, § 10-45; Code 1959, § 9-10)

Sec. 7-9. Use of undue influence to obtain release of body in morgue.

It shall be unlawful for any person to unlawfully solicit, persuade or use any undue influence or attempt to solicit, persuade or use any undue influence to obtain the release of any body held in the city-county morgue.
(Code 1950, § 10-47; Code 1959, § 9-11)

Sec. 7-10. Violation of sections 7-6 through 7-9.

Any person who violates any of the terms, conditions or regulations contained in sections 7-6 through 7-9 shall be guilty of a misdemeanor and, upon conviction, shall be fined as provided in section 1-5 of this Code. If the person so found guilty shall be a funeral home or funeral establishment or any licensed funeral director or embalmer under the laws of the state, the court shall certify the findings thereof to the state board of morticians.
(Code 1950, § 10-48; Code 1959, § 9-12)

Secs. 7-11—7-25. Reserved.

ARTICLE II. HISTORIC CITY CEMETERIES*

Sec. 7-26. Definitions.

Historic city cemeteries shall mean the following cemeteries owned by the city: City Cemetery #1, City Cemetery #2, City Cemetery #3, City Cemetery #4, City Cemetery #5, City Cemetery # 6, Knights of Pythias, Independent Order of Odd Fellows, and Dignowity. In addition, the following cemeteries under the possession and control of the city are considered historic city cemeteries: St. Elmo Lodge, Beacon Light Masonic, United Brothers of Friendship, Grand United Order of Odd Fellows, and San Antonio Lodge #1, as well as any other cemeteries which come into the possession and control of the city through a lack of maintenance on the part of the cemetery owners, the department of parks and recreation shall maintain an official list of historic eastside cemeteries.
(Ord. No. 2010-10-21-0910, § 2(Att. II), 10-21-10)

*__Editor's note—__Ord. No. 2010-10-21-0910, § 2(Att. II), adopted October 21, 2010, amended article II in its entirety to read as herein set out. Formerly, article II, divisions 1 and 2, pertained to San Jose Burial Park and city cemeteries, and derived from the Code of 1950, Ch. 10, §§ 10-20—10-30, 10-32, 10-34, 10-36—10-38, 10-40—10-42; Ord. No. 25690, §§ 3—9, 12—16, adopted October 24, 1957; the Code of 1959, §§ 9-3, 9-14—9-35; Ord. No. 31883, § 1, adopted November 14, 1963; Ord. No. 39758, §§ 1—8, 10, 11, adopted July 29, 1971; Ord. No. 45565, § 2, adopted August 7, 1975; Ord. No. 45566, § 2, adopted August 7, 1975; Ord. No. 48314, § 2, adopted July 28, 1977; Ord. No. 49446, § 1, adopted June 8, 1978; Ord. No. 49626, § 6, adopted July 27, 1978; Ord. No. 49671, § 1, adopted August 10, 1978; Ord. No. 52521, § 6, adopted July 24, 1980; Ord. No. 54281, § 7, adopted September 17, 1981; Ord. No. 55813, § 9, adopted September 16, 1982; Ord. No. 61335, §§ 11—13, adopted August 29, 1985; Ord. No. 63234, § 19, adopted July 16, 1976; Ord. No. 64612, § 1, adopted February 26, 1987; Ord. No. 67912, §§ 8, 9, adopted September 15, 1988; Ord. No. 74299, §§ 2—5, adopted September 12, 1991; Ord. No. 82818, § 1, adopted September 14, 1995; Ord. No. 86489, §§ 1—3, adopted August 28, 1997; Ord. No. 86609, §§ 19—21, 23—25, 27, adopted September 11, 1997; Ord. No. 92517, §§ 1—3, adopted September 14, 2000; Ord. No. 99739, §§ 1, 2, adopted September 16, 2004; Ord. No. 99752, § 1, adopted September 16, 2004; Ord. No. 101398, §§ 1, 2, adopted September 15, 2005; Ord. No. 2007-09-13-0973Q, § 1, adopted September 13, 2007.

Sec. 7-27. Oversight.

The department of parks and recreation provides oversight for the maintenance and operation of the historic city cemeteries and has the right to adopt rules, regulations and restrictions from time to time as necessary.
(Ord. No. 2010-10-21-0910, § 2(Att. II), 10-21-10)

Sec. 7-28. Hours.

The historic city cemeteries are open daily from dawn to dusk.
(Ord. No. 2010-10-21-0910, § 2(Att. II), 10-21-10)

Sec. 7-29. Burials.

No family plots or individual grave sites will be sold by the city.

An owner of a family plot or individual grave may request from the city permission to bury human remains in the historic city cemeteries. The owner must provide documentation to the city, in a form and content acceptable to city, evidencing ownership and the consent of all persons with an ownership right, to the requested burial. In the event the documentation supports a claim of ownership but initial digging reveals that the gravesite already contains human remains, the claim shall be denied and the owner shall not be allowed to bury the human remains.

The owner is responsible for providing information to the city regarding the deceased; including but not limited to, name, date of birth, date of death, planned date of burial, name of funeral home, a copy of the report of death certificate, and other burial information requested by the city.

The owner is responsible for contracting for the burial of the deceased with one or more entities that hold all required licensed and/or certifications. The owner is also responsible for contracting for all other desired services, including tents, chairs, monuments and foundations. Burials may occur any time the cemetery is open. The owner is responsible for all costs associated with the burial.
(Ord. No. 2010-10-21-0910, § 2(Att. II), 10-21-10)

Sec. 7-30. Disinterments.

Disinterments must be made at such time and in the manner directed by the city, work is to be performed by an entity that holds all required licenses and/or certifications, and in compliance with all applicable laws, ordinances and requirements of the state, county and city.
(Ord. No. 2010-10-21-0910, § 2(Att. II), 10-21-10)

Sec. 7-31. Cemetery maintenance.

The city shall be responsible for mowing, trimming, tree maintenance at its discretion and other routine maintenance at the historic city cemeteries. This includes, but is not limited to, tree or shrub removal or pruning. Grave owners, heirs, or family members shall also have the right to provide maintenance services at their property, if they elect to do so; however, this excludes the planting of any trees or shrubs.

Decorations are permitted but the city at its discretion shall have the right to remove any floral or plant materials that are dead or wilted.

The director of the department of parks and recreation shall have full authority to adopt any other rules and regulations necessary for the proper functioning of the historic city cemeteries.
(Ord. No. 2010-10-21-0910, § 2(Att. II), 10-21-10)

Sec. 7-32. Burial records.

The city is responsible for maintaining burial records in its possession and will provide information regarding the location of graves based on those records.
(Ord. No. 2010-10-21-0910, § 2(Att. II), 10-21-10)

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Chapter 8

CIVIL EMERGENCIES AND EMERGENCY MANAGEMENT*

Art. I. In General, §§ 8-1—8-30
Art. II. Emergency Management, §§ 8-31—8-40

Sec. 8-1. Definitions.

The following definitions shall apply in the interpretation and enforcement of this article:

Civil emergency is hereby defined to be:

(1) A riot or unlawful assembly characterized by the use of actual force or violence or any threat to use force if accompanied by immediate power to execute by three (3) or more persons acting together without authority of law.

(2) Any natural disaster or manmade calamity including flood, conflagration, cyclone, tornado, earthquake or explosion within the corporate limits of the city resulting in the death or injury of persons or the destruction of property to such an extent that extraordinary measures must be taken to protect the public health, safety and welfare.

Curfew shall mean a prohibition against any person or persons walking, running, loitering, standing or motoring upon any alley, street, highway, public property or vacant premises within the corporate limits of the city, excepting persons officially designated to duty with reference to such civil emergency.
(Code 1959, § 2-11; Ord. No. 36235, § 1, 2-15-68)

Sec. 8-2. Penalty for violation of article.

Any person violating the provisions of this article or executive order issued pursuant thereto shall be deemed guilty of a misdemeanor and upon conviction thereof shall be punished in accordance with section 1-5.
(Code 1959, § 2-12; Ord. No. 36235, § 8, 2-15-68)

Sec. 8-3. Proclamation by city manager.

(a) *Authority of city manager.* When in the judgment of the city manager a civil emergency as defined in this article is deemed to exist, the manager forthwith shall attempt to contact all members of the city council for an immediate emergency meeting. If it is not possible for city council to meet in an immediate emergency meeting, the manager may proclaim the existence of a civil emergency. Such proclamation by the manager is hereby determined to be a call for an emergency meeting of the city council. The emergency meeting shall be held as soon as the council members can assemble at city hall.

(b) *Filing of proclamation.* Any proclamation and order of the city manager issued hereunder shall be filed as a public record in the office of the city clerk.
(Code 1959, § 2-13; Ord. No. 36235, §§ 2, 6, 2-15-68)

Sec. 8-4. Curfew powers.

After proclamation of a civil emergency by the city manager, he may order a general curfew applicable to such geographical areas of the city or to the city as a whole, as he deems advisable, and applicable during such hours of the day or night as he deems necessary in the interest of the public safety and welfare.
(Code 1959, § 2-14; Ord. No. 36235, § 3, 2-15-68)

Sec. 8-5. Emergency powers.

After proclamation of a civil emergency, the city manager of the city may also in the interest of public safety and welfare make any or all of the following orders:

(1) Order the closing of all retail liquor stores;

(2) Order the closing of all beer taverns;

(3) Order the closing of all private clubs or portions thereof wherein the consumption of intoxicating liquor and/or beer is permitted;

*State law reference—Texas Disaster Relief Act, Vernon's Ann. Civ. St. art. 6889—7, § 8.

(4) Order the discontinuance of the sale of beer;

(5) Order the discontinuance of selling, distributing or giving away gasoline or other liquid flammable or combustible products in any container other than a gasoline tank properly affixed to a motor vehicle;

(6) Order the closing of gasoline stations and other establishments, the chief activity of which is the sale, distribution or dispensing of liquid flammable or combustible products;

(7) Order the discontinuance of selling, distributing, dispensing or giving away of any firearms or ammunition of any character whatsoever;

(8) Order the closing of any or all establishments or portions thereof, the chief activity of which is the sale, distribution, dispensing or giving away of firearms and/or ammunition;

(9) Issue such other orders as are imminently necessary for the protection of life and property.

(Code 1959, § 2-15; Ord. No. 36235, § 4, 2-15-68)

Sec. 8-6. Reserved.

Editor's note—The provisions of former § 8-6, which pertained to the duration of emergency and action by city council, have been deleted at the discretion of the city as being superseded by the provisions of Ord. No. 67229, adopted June 2, 1988 (codified in this chapter as Art. II, §§ 8-31—8-40). Former § 8-6 derived from Code 1959, § 2-16 and Ord. No. 36235, § 5, adopted Feb. 15, 1968.

Sec. 8-7. Seeking assistance from state military forces.

In any instance of civil emergency within the city as described in section 8-1 resulting in violence to person or property by a body of men acting together by force, which required the exercise of superior force to suppress same and it is impracticable to furnish information to the governor of the state in time to secure military aid by his order, the mayor of the city is hereby authorized to call in writing for aid upon the commanding officer of the state military forces stationed within the city or adjacent thereto, and the mayor shall at once notify the governor of his action.
(Code 1959, § 2-17; Ord. No. 36235, § 7, 2-15-68)

Secs. 8-8—8-30. Reserved.

ARTICLE II. EMERGENCY MANAGEMENT*

Sec. 8-31. Organization.

(a) There is hereby created the position of Office of Emergency Management Director of the City of San Antonio, which shall be held by the mayor in accordance with state law.

(b) An emergency management coordinator may serve under the direction of the director.

(c) The director shall be responsible for a program of comprehensive emergency management within the city and for carrying out the duties and responsibilities set forth in this article. The director may delegate authority for execution of these duties to the coordinator, but ultimate responsibility for such execution shall remain with the director.

(d) The operational emergency management organization of the City of San Antonio shall consist of the officers and employees of the city so designated by the director in the emergency management plans, as well as organized volunteer groups. The functions and duties of this organization shall be distributed among such officers and employees in accordance with the terms of the emergency management plan.
(Ord. No. 67229, § 1, 6-2-88)

Sec. 8-32. Emergency management director; powers and duties.

The duties and responsibilities of the emergency management director shall include the following:

(a) Conduct an on-going survey of actual or potential hazards which threaten life and property within the city and an on-going

*Editor's note—Ord. No. 67229, §§ 1—10, adopted June 2, 1988, did not specifically amend this Code; hence, codification of said provisions herein as Art. II, §§ 8-31—8-40 was at the discretion of the editor.

program of identifying and requiring or recommending the implementation of measures to prevent the occurrence or reduce the impact of such hazards if a disaster was to occur.

(b) Supervision of the development and approval of an emergency management plan for the City of San Antonio, and authority to recommend for adoption by the city council mutual aid agreements deemed necessary for the implementation of such plan.

(c) Authority to declare a local state of disaster. The declaration of a local state of disaster may not be continued, nor may it be extended, for a period in excess of seven (7) days except by or with the consent of the city council. Any order or proclamation declaring, continuing, or terminating a local state of disaster shall be given prompt and general publicity and shall be filed promptly with the city clerk.

(d) Issuance of necessary proclamations, regulations, or directives necessary for carrying out the purposes of this article. Proclamations, regulations, and directives shall be disseminated promptly by means calculated to bring their content to the attention of the general public and, unless circumstances attendant on the disaster prevent or impede such action, promptly filed with the city clerk.

(e) Direction and control of the operations of the City of San Antonio emergency management organization as well as the training of the emergency management personnel.

(f) Determination of all questions of authority and responsibility that may arise within the emergency management organization of the city.

(g) Maintenance of liaison with other municipal, county, district, state, regional, or federal emergency management organizations.

(h) Marshalling of necessary personnel, equipment, or supplies from any department of the city to aid in implementation of the provisions of the emergency management plan.

(i) Supervision over drafting and execution of mutual aid agreements, in cooperation with representatives of the state and of other political subdivisions of the state, and drafting and execution, if deemed desirable, of an agreement with the county and other municipalities within the county, for the county-wide coordination of emergency management efforts.

(j) Supervision and final authorization for the procurement of necessary supplies and equipment, including acceptance of private contributions which may be offered for the purpose of improving emergency management within the city.

(k) Authorizing agreements, after approval by the city attorney, for use of private property for public shelter and other purposes.

(l) Survey the availability of existing personnel, equipment, supplies, and services which could be used during a disaster provided for herein.

(m) Other requirements as specified in the Texas Disaster Act of 1975 (Chapter 418 Government Code, Vernon's Texas Civil Statutes).

(Ord. No. 67229, § 2, 6-2-88)

Sec. 8-33. Emergency management plan.

A comprehensive emergency management plan shall be developed and maintained in a current state. The plan shall set forth the form of the organization, tasks, duties, and powers, and designation of officers and employees to carry out the provisions of the plan. As provided by state law, the plan shall follow the standards and criteria established by the State Division of Emergency Management for the State of Texas. Insofar as possible, the form of organization, titles, and terminology shall conform to the recommendations of the State Division of Emergency Management. It shall be the duty of all departments and agencies to perform the functions assigned by the plan and to maintain their portion of the plan in a

current state of readiness at all times. The emergency management plan is attached hereto and incorporated herein and shall have the effect of law during the time of a disaster. Mutual aid agreement forms, also attached hereto and incorporated herein, are approved for execution in accordance with the emergency plan.
(Ord. No. 67229, § 3, 6-2-88)

Editor's note—The emergency management plan referred to in § 8-33 above has not been set out at length herein but is on file and available for inspection in the offices of the city.

Sec. 8-34. Interjurisdictional program.

The mayor is hereby authorized to join with the county judge of Bexar County and the mayors of the other cities in said county in the formation of an emergency management council for the County of Bexar and shall have the authority to cooperate in the preparation of a joint emergency management plan and in the appointment of a joint emergency management coordinator, as well as all powers necessary to participate in a countywide program of emergency management insofar as said program may affect the City of San Antonio.
(Ord. No. 67229, § 4, 6-2-88)

Sec. 8-35. Override of existing regulations.

At all times when orders, rules, and regulations made and promulgated pursuant to this article shall be in effect, they shall supersede and override all existing ordinances, orders, rules, and regulations insofar as the latter may be inconsistent therewith.
(Ord. No. 67229, § 5, 6-2-88)

Sec. 8-36. Liability.

This article is an exercise by the city of its governmental functions for the protection of the public peace, health, safety and welfare. The City of San Antonio, its employees and agents, shall not be liable for any damages sustained by persons as the result of implementation of the emergency plan authorized herein except as required by law.
(Ord. No. 67229, § 6, 6-2-88)

Sec. 8-37. Commitment of funds.

No person shall have the right to expend any public funds of the city in carrying out any emergency management activity authorized by this article without prior approval by the city council, nor shall any person have any right to bind the city by contract, agreement, or otherwise without prior and specific approval of the city council unless during a declared disaster. During a declared disaster, the director may expend and/or commit public funds of the city and execute mutual aid agreements when deemed prudent and necessary for the protection of health, life, or property.
(Ord. No. 67229, § 7, 6-2-88)

Sec. 8-38. Offenses; penalties.

(a) It shall be unlawful for any person to knowingly obstruct, hinder, or delay any member of the emergency management organization in the enforcement of any rule or regulation issued pursuant to this article, or to knowingly do any act forbidden by any rule or regulation issued pursuant to the authority contained in this article.

(b) It shall be unlawful for any person to knowingly wear, carry, or display any emblem, insignia, or any other means of identification as a member of the emergency management organization of the City of San Antonio unless authority to do so has been granted to such person by the proper officials.

(c) It shall be unlawful for any unauthorized person to knowingly operate or cause to be operated a siren or other device so as to simulate a warning signal or the termination of a warning signal.

(d) Each violation of the provisions of this article shall be punishable by a fine not to exceed one thousand dollars ($1,000.00).
(Ord. No. 67229, § 8, 6-2-88)

Sec. 8-39. Severability.

If any portion of this article shall, for any reason, be declared invalid such invalidity shall not

affect the remaining provisions hereof.
(Ord. No. 67229, § 9, 6-2-88)

Sec. 8-40. Limitations.

This article shall not be construed so as to conflict with any state or federal statute or with any military or naval order, rule, or regulation.
(Ord. No. 67229, § 10, 6-2-88)

Chapter 9

RESERVED*

*__Editor's note—__Ord. No. 2013-09-05-0557, §§ 3, 4, adopted September 5, 2013, repealed chapter 9, articles I—III in its entirety, which pertained to community relations, and derived from the Code of 1959, §§ 10B-1, 10B-3, 10B-4, 10B-23, 10B-25—10B-28; Ord. No. 33863, §§ 2—5, 7, adopted November 11, 1965; Ord. No. 34303, § 1, adopted April 21, 1986; Ord. No. 36650, §§ 1—3, adopted July 11, 1968; Ord. No. 43913, adopted June 13, 1974, and Ord. No. 49162, §§ 1—5, adopted March 23, 1978. For similar provisions, the user's attention is directed to sections 2-592—2-639.

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Chapter 10

BUILDING-RELATED CODES OF THE CITY OF SAN ANTONIO*

Article I. Administration and General

Sec. 10-1. Title of chapter; designation of building official.
Sec. 10-2. Purpose and scope of chapter; referenced codes.
Sec. 10-3. Applicability.
Sec. 10-4. Development services department.
Sec. 10-5. Duties and powers of building official.
Sec. 10-6. Permits.
Sec. 10-7. Floor and roof design loads.
Sec. 10-8. Submittal documents.
Sec. 10-9. Temporary structures, equipment and systems.
Sec. 10-10. Fees.
Sec. 10-11. Inspections and testing.
Sec. 10-12. Certificate of occupancy.
Sec. 10-13. Service utilities.
Sec. 10-14. Building-related and fire codes appeals and advisory board.
Sec. 10-15. Violations.
Sec. 10-16. Stop work order.
Sec. 10-17. Unsafe structures and equipment.
Sec. 10-18. Notice required to building official (detention facility).
Secs. 10-19—10-24. Reserved.

Article II. Definitions

Sec. 10-25. Non-referenced definitions.
Secs. 10-26—10-28. Reserved.

Article III. Building Code

Sec. 10-29. Adoption of International Building Code (2024).
Sec. 10-30. Amendments to the adopted chapters of the International Building Code (2024).
Sec. 10-31. Fee schedule.
Sec. 10-32. New commercial fee schedule.
Secs. 10-33—10-35. Reserved.

Article IV. Residential Code for One- and Two-Family Dwellings

Sec. 10-36. Adoption of International Residential Code (2024).
Sec. 10-37. Amendments to the adopted chapters and appendices J and K of the International Residential Code (IRC) (2024).
Sec. 10-38. Fee schedule.
Sec. 10-39. New residential construction fee schedule.
Secs. 10-40—10-45. Reserved.

Article V. Existing Building Code

Sec. 10-46. Adoption of International Existing Building Code (2024).

***Editor's note—**Ord. No. 2025-01-30-0075, § 1(Att. 1), adopted January 30, 2025, repealed the former Ch. 10, §§ 10-1—10-17, 10-25, 10-29—10-32, 10-36—10-39, 10-46—10-48, 10-51—10-54, 10-61—10-63, 10-71, 10-72, 10-81—10-83, 10-91, 10-92, 10-96, 10-97, 10-101, 10-111—10-120, 10-130, and enacted a new Ch. 10 as set out herein. The former Ch. 10 pertained to similar subject matter and derived from Ord. No. 2022-11-10-0875, § 1(Att. A), 11-10-22; Ord. No. 2024-08-08-0544, § 1(Att. A), 8-8-24.

Sec. 10-47. Amendments to the adopted chapters of the International Existing Building Code (2024).
Sec. 10-48. Fee schedule.
Secs. 10-49, 10-50. Reserved.

Article VI. Electrical Code

Sec. 10-51. Adoption of National Electrical Code (2023).
Sec. 10-52. Amendments to the adopted chapters of the National Electrical Code (2023).
Sec. 10-53. Electrical provisions.
Sec. 10-54. Fee schedule.
Secs. 10-55—10-60. Reserved.

Article VII. Mechanical Code

Sec. 10-61. Adoption of International Mechanical Code (2024).
Sec. 10-62. Amendments to the adopted chapters of the International Mechanical Code (2024).
Sec. 10-63. Fee schedule.
Secs. 10-64—10-70. Reserved.

Article VIII. Gas Code

Sec. 10-71. Adoption of International Fuel Gas Code (2024).
Sec. 10-72. Amendments to the adopted chapters and appendices of the International Fuel Gas Code (2024).
Secs. 10-73—10-80. Reserved.

Article IX. Plumbing Code

Sec. 10-81. Adoption of International Plumbing Code (2024).
Sec. 10-82. Amendments to the adopted chapters and appendices of the International Plumbing Code (2024).
Sec. 10-83. Fee schedule.
Secs. 10-84—10-90. Reserved.

Article X. Energy Conservation Code

Sec. 10-91. Adoption of International Energy Conservation Code (2021).
Sec. 10-92. Amendments to the adopted chapters of the International Energy Conservation Code (2021).
Secs. 10-93—10-95. Reserved.

Article XI. Swimming Pool and Spa Code

Sec. 10-96. Adoption of International Swimming Pool and Spa Code 2024.
Sec. 10-97. Amendments to the adopted chapters of the International Swimming Pool and Spa Code 2024.
Secs. 10-98—10-100. Reserved.

Article XII. Fire Prevention

Sec. 10-101. Fire prevention.
Secs. 10-102—10-110. Reserved.

Article XIII. Licensing and Registration

Sec. 10-111. Billboard operator license.
Sec. 10-112. Commercial sign operator license.
Sec. 10-113. City electrical contractors and electrical sign contractors, installers, maintenance electricians; licenses and registrations.
Sec. 10-114. City mechanical licenses.
Sec. 10-115. Residential building and home improvement contractor registrations.
Sec. 10-116. City registration, and insurance required.
Sec. 10-117. Irrigation systems and irrigators.
Sec. 10-118. State licensed responsible master plumber registration.
Sec. 10-119. Demolition contractor registration.
Sec. 10-120. Registered house mover.
Secs. 10-121—10-129. Reserved.

Article XIV. Signs and Billboards

Sec. 10-130. Signs and billboards.

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ARTICLE I. ADMINISTRATION AND GENERAL

Sec. 10-1. Title of chapter; designation of building official.

(a) This chapter is the building-related codes. Unless otherwise indicated by its use and context, the term "this chapter" refers to this chapter 10 including all provisions incorporated by reference in this chapter.

(b) The building official shall be known as the director of development services, and such term shall include his authorized representatives. Further, whenever the term or title "administrative authority," "code official," "authority having jurisdiction," "responsible official," "building official," "director" or other similar designation is used in any of the codes adopted by this chapter, it shall be construed as the director of development services, or his designee and authorized representatives.
(Ord. No. 2025-01-30-0075, § 1(Att. A), 1-30-25)

Sec. 10-2. Purpose and scope of chapter; referenced codes.

(a) *Purpose.* This chapter shall be construed to secure its expressed intent, which is to provide minimum requirements to safeguard the public safety, health and general welfare, insofar as they are affected by building construction, through structural strength, adequate means of egress facilities, stability, sanitary equipment, light and ventilation, energy conservation, fire safety, and in general to promote safety to life and property from fire and other hazards incident to the construction, design, erection, installation, alteration, addition, removal, demolition, replacement, repair, location, relocation, moving, quality of materials or use and occupancy, maintenance and operation of building, structures or premises, and to provide safety to fire fighters and emergency responders during emergency operations.

(b) The purpose of this chapter is not to create or otherwise establish or designate any particular class or group of persons who will or should be especially protected or benefited by the terms of this chapter.

(c) *Scope.* Article I of this chapter provides the administrative procedures to be followed by all persons engaged in the construction, design, erection, installation, alteration, addition, removal, demolition, replacement, location, relocation, land disturbance, moving, quality of materials, or use and occupancy, maintenance and operation of buildings, structures, or premises, as regulated by this chapter. All references to any provisions in the administrative chapters of the referenced model codes are construed to be a reference to the provisions of article I unless otherwise noted.

(d) *Referenced codes.* The other codes and standards listed in subsections (1) through (10) and referenced elsewhere in this chapter are considered part of the requirements of this chapter to the prescribed extent of each such reference. See article II through article XIII of this chapter.

(1) *Building.* The provisions of the International Building Code, as amended in article III, apply to the construction, design, erection, installation, alteration, addition, removal, demolition, replacement, repair, location, relocation, land disturbance, moving, quality of materials, or use and occupancy of every building or structure or any appurtenances connected or attached to such buildings or structures.

Exceptions:

a. Detached one- and two-family dwellings and multiple single-family dwellings (townhouses) not more than three (3) stories above grade plane in height with a separate means of egress and their accessory structures not more than three (3) stories above grade plane in height shall comply with this Code or the International Residential Code, as amended in article IV of this chapter.

b. Existing buildings and structures undergoing repair, alteration, change of occupancy, addition and/or relocation of existing buildings shall be permitted to comply with the

International Existing Building Code, as amended in article V of this chapter.

(2) *Electrical.* The provisions of the National Electrical Code, as amended in article VI of this chapter, shall apply to the installation of electrical systems, including alterations, repairs, replacement, equipment, appliances, fixtures, fittings, and appurtenances thereto.

(3) *Mechanical.* The provisions of the International Mechanical Code, as amended in article VII of this chapter, shall apply to the installation, alterations, repairs, and replacement of mechanical systems, including equipment, appliances, fixtures, fittings and/or appurtenances, including ventilating, heating, cooling, air conditioning and refrigeration systems, incinerators, and other energy-related systems.

(4) *Gas.* The provisions of the International Fuel Gas Code, as amended in article VIII of this chapter, shall apply to the installation of fuel gas piping from point of delivery, fuel gas appliances, gaseous hydrogen systems and related accessories as covered in this Code. These requirements apply to fuel gas piping systems extending from the point of delivery to the inlet connections of appliances and the installation and operation of gas appliances and related accessories. Piping system requirements shall include design, materials, components, fabrication, assembly, installation, testing, inspection and operation and maintenance.

(5) *Plumbing.* The provisions of the International Plumbing Code, as amended in article IX of this chapter, shall apply to the installation, alteration, repair, relocation, addition to use or maintenance and replacement of plumbing systems, including equipment, appliances, fixtures and fittings and appurtenances. The code shall also regulate nonflammable medical gas, inhalation anesthetic, vacuum piping, nonmedical oxygen systems and sanitary and condensate vacuum collection systems.

(6) *Energy.* The provisions of the International Energy Conservation Code, as amended in article X of this chapter, shall apply to all matters governing the design and construction of buildings for energy efficiency.

(7) *Property Maintenance.* The provisions of the San Antonio Property Maintenance Code shall apply to existing structures and premises; equipment and facilities; light, ventilation, space heating, sanitation, life, and fire safety hazards; responsibilities of owners, operators and occupants, and occupancy of existing premises and structures.

(8) *Fire prevention.* The provisions of the International Fire Code, as amended in City Code chapter 11, shall apply to matters affecting or relating to structures, processes and premises from the hazard of fire and explosion arising from the storage, handling or use of structures, materials or devices; from conditions hazardous to life, property or public welfare in the occupancy of structures or premises; and from the construction, extension, repair, alteration or removal of fire suppression, automatic sprinkler systems and alarm systems or fire hazards in the structure or on the premises from occupancy or operation.

(9) *Existing buildings.* The provisions of the International Existing Building Code, as amended in article V of this chapter, shall apply to matters governing the repair, alteration, change of occupancy, addition to and relocation of existing buildings.

(10) *Swimming pool and spa.* The provisions of the International Swimming Pool and Spa Code, as amended in article XI of this chapter shall apply to matters governing the construction, alteration, move-

ment, renovation, replacement, repair and maintenance of aquatic recreation facilities, pools, and spas.

(Ord. No. 2025-01-30-0075, § 1(Att. A), 1-30-25)

Sec. 10-3. Applicability.

(a) *General.* When there is a conflict between a general requirement and a specific requirement, the specific requirement shall be applicable. Where, in any specific case, different sections of this chapter specify different materials, methods of construction or other requirements, the most restrictive shall govern.

(b) *Other laws.* The provisions of this chapter do not nullify any provisions of local, state, or federal law.

(c) *Application of references.* References to article or section numbers, or to provisions not specifically identified by number, shall be construed to refer to such article or section or provision of this chapter.

(d) *Referenced codes and standards.* The codes and standards referenced in this chapter shall be considered part of the requirements of this chapter to the prescribed extent of each such reference. Where differences occur between provisions of this chapter and referenced codes and standards, the provisions of this chapter shall apply.

Exception: Where enforcement of the code provisions would violate the conditions of the listing of the equipment or appliance, the conditions of the listing and manufacturer's instructions shall apply.

(e) *Partial invalidity.* In the event that any part or provision of this chapter is held to be illegal or void, this shall not have the effect of making void or illegal any of the other parts or provisions.

(f) *Existing structures.* The legal occupancy of any structure existing on the date of adoption of this chapter shall be permitted to continue without change, except as specifically covered in this chapter, the San Antonio Property Maintenance Code, or the International Fire Code, as amended.

(1) *Buildings not previously occupied.* A building or portion of a building that has not been previously occupied or used for its intended purpose in accordance with the laws in existence at the time of its completion shall comply with the provisions of the International Building Code, as amended, or International Residential Code, as applicable, for new construction or with any current permit for such occupancy.

(2) *Building previously occupied.* The legal occupancy of any building existing on the date of adoption of this chapter shall be permitted to continue without change, except as otherwise specifically provided in this chapter, the International Fire code, or the San Antonio Property Maintenance Code, or as deemed necessary by the Building Official for the general safety and welfare of the occupants and the public.

(Ord. No. 2025-01-30-0075, § 1(Att. A), 1-30-25)

Sec. 10-4. Development services department.

(a) *Enforcement agency.* The development services department shall be the enforcement agency for the building-related codes, and the director thereof shall be known as the building official and as the code official.

(b) *Appointment.* The building official shall be appointed by the city manager or the city manager's designee.

(Ord. No. 2025-01-30-0075, § 1(Att. A), 1-30-25)

Sec. 10-5. Duties and powers of building official.

(a) *General.* The building official is authorized and directed to enforce the provisions of this chapter. The building official has the authority to render interpretations of this chapter and to adopt policies and procedures in order to clarify the application of its provisions. Such interpretations, policies and procedures shall be in accordance with the intent and purpose of this chapter. Such policies and procedures shall not have the effect of waiving requirements specifically provided for in this chapter. The building

official shall have the power to suspend or revoke city issued certificates of license and registration for cause.

(b) *Application and permits.* The building official shall receive applications, review construction documents and issue permits for the erection, repair, alteration, addition, demolition, change of occupancy and relocation of buildings and structures, inspect the premises for which such permits have been issued and enforce compliance with the provisions of this chapter.

(c) *Preliminary meeting under article V.* When utilizing the International Existing Building Code, as amended in article V, and when requested by the permit applicant or the building official, the building official shall meet with the permit applicant prior to the application for a construction permit to discuss plans for the proposed work or change of occupancy in order to establish the specific applicability of the provisions of this chapter.

Exception: Repairs and Level 1 alterations.

Building evaluation. The building official is authorized to require an existing building to be investigated and evaluated by a registered design professional based on the circumstances agreed upon at the preliminary meeting. The design professional shall notify the building official if any potential nonconformance with the provisions of this chapter is identified.

(c) *Notices and orders.* The building official shall issue all necessary notices or orders to ensure compliance with the provisions with this chapter.

(d) *Inspections.* The building official shall make all of the required inspections or may accept reports of inspection by approved agencies or individuals. Reports of such inspections shall be in writing and certified by a responsible officer of such approved agency or by the responsible individual. The building official is authorized to engage such expert opinion as deemed necessary to report upon unusual technical issues that arise, subject to the approval of the appointing authority.

(e) *Identification.* The building official shall carry proper identification when inspecting structures or premises in the performance of duties under this chapter.

(f) *Impersonation prohibited.* A person shall not impersonate the building official or designees through the use of a uniform, identification card, badge, or any other means. Any such impersonation shall be deemed a violation of this Code.

(g) *Right of entry.* Where it is necessary to make an inspection to enforce the provisions of this chapter, or where the building official has reasonable cause to believe that there exists in a structure or upon a premises a condition which is contrary to or in violation of this chapter which makes the structure or premises unsafe, dangerous or hazardous, the building official is authorized to enter the structure or premises at reasonable times to inspect or perform the duties imposed by this chapter, provided that if such structure or premises is occupied that credentials be presented to the occupant and entry requested. If such structure or premises is unoccupied, the building official shall first make a reasonable effort to locate the owner or other person having charge or control of the structure or premises and request entry. If entry is refused, the building official has recourse to the remedies provided by law to secure entry.

(h) *Notice of defects.* The building official shall examine, or cause to be examined, every building or structure or portion thereof reported as dangerous or damaged. If such is found to be unsafe as defined in this section, the building official shall give to the owner of such building or structure written notice stating the defects thereof. This notice shall require the owner or person in charge of the building, structure, or premise, within forty-eight (48) hours to commence either the required repairs or improvements or demolition and removal of the building or structure or portions thereof. All such work shall be completed within thirty (30) days from the date of notice unless otherwise stipulated by the building official. Service of notice shall be by certified mail made upon the owner or his agent. The designated period within which said owner or agent is

required to comply with the order of the building official shall begin as of the date he received such notice.

(i) *Department records.* The building official shall keep official records of applications received, permits and certificates issued, fees collected, reports of inspections, and notices and orders issued. Such records are retained in the official records for the period required for retention of public records.

(j) *Liability.* The building official, members and alternate members of the building-related and fire codes board of appeals, or employees charged with enforcement of this chapter, while acting for the city in good faith and without malice in the discharge of the duties required by this chapter or other pertinent law or ordinance, are not civilly or criminally rendered liable personally and are relieved from personal liability for any damage accruing to persons or property as a result of any act, or by reason of an act or omission in the discharge of official duties. Any suit or criminal complaint instituted against an officer or employee because of an act performed by that officer or employee in the lawful discharge of duties and under the provisions of this chapter shall be defended by legal representative of the city until the final termination of the proceedings. The building official or any subordinate shall not be liable for cost in any action, suit or proceeding that is instituted in pursuance of the provisions of this chapter.

(k) *Approved materials and equipment.* Materials, equipment, and devices approved by the building official shall be constructed and installed in accordance with such approval.

(1) *Appliance and fixture listing.* Appliances and fixtures shall be tested and listed in published reports by approved agencies and shall be installed in accordance with all instructions included as part of such listing.

(2) *Used materials and equipment.* The use of used materials which meet the requirements of this chapter for new materials is permitted. Used equipment and devices shall not be reused unless approved by the building official.

(l) *Modifications.* Whenever there are practical difficulties involved in carrying out the provisions of this chapter, the building official has the authority to grant modifications for individual cases, upon application of the owner or owner's authorized representative, providing the building official first finds that special individual reason makes the strict letter of this chapter impractical, and the modification is in compliance with the intent and purpose of this chapter, and that such modification does not lessen health, accessibility, life and fire safety, or structural requirements. The details of action granting modifications shall be recorded and entered in the files of the development services department.

(m) *Alternative materials, design and methods of construction and equipment.* The provisions of this chapter are not intended to prevent the installation of any material or to prohibit any design or method of construction not specifically prescribed by this chapter, provided that any such alternative has been approved. An alternative material, design or method of construction shall be approved where the building official finds that the proposed design is satisfactory and complies with the intent of the provisions of this chapter, and that the material, method or work offered is, for the purpose intended, at least the equivalent of that prescribed in this chapter in qualify, strength, effectiveness, fire resistance, durability, and safety. Where the alternative material, design or method of construction is not approved, the building official shall respond in writing, stating the reasons why the alternative was not approved.

(1) *Research reports.* Supporting data, where necessary to assist in the approval of materials or assemblies not specifically provided for in this chapter, shall consist of valid research reports from approved sources.

(2) *Tests.* Whenever there is insufficient evidence of compliance with the provisions of this chapter, or evidence that a material or method does not conform to the requirements of this chapter, or in order to substantiate claims for alternative materials or methods, the building

official has the authority to require tests as evidence of compliance to be made at no expense to the city. Test methods shall be as specified in this chapter or by other recognized test standards. In the absence of recognized and accepted test methods, the building official shall approve the testing procedures. Testing shall be performed by an approved agency. Reports of such tests shall be retained by the building official for the period required for retention of public records.

(Ord. No. 2025-01-30-0075, § 1(Att. A), 1-30-25)

Sec. 10-6. Permits.

(a) *Required.* Any owner or authorized agent who intends to construct, enlarge, alter, repair, move, demolish, or change the occupancy of a building or structure, to include a sign or billboard, or to erect, install, enlarge, alter, repair, remove, convert or replace any electrical, gas, mechanical or plumbing system, the installation of which is regulated by this chapter, who performs site work or causes any such work to be done, shall first make application to the building official and obtain the required permit. See chapter 28 of the City Code for additional permit requirements for signs and billboards.

(b) *Annual permit.* In lieu of an individual permit for each alteration to an already approved electrical, gas, mechanical or plumbing installation, the building official is authorized to issue an annual permit upon application therefor to any person, firm or corporation regularly employing one or more qualified tradespersons in the building, structure or on the premises owned or operated by the applicant for the permit. The person to whom an annual permit is issued shall keep a detailed record of alterations made under such annual permit. The building official shall have access to such records at all times, or such records shall be filed with the building official as designated.

(c) *Annual electrical maintenance permit.* An annual electrical maintenance permit is issued by the city to allow a property owner, property lessee or management company to employ persons qualified by this Code to maintain and make minor repairs to existing electrical systems on a property that is registered with the department. An electrical maintenance permit is not required when the property owner, property lessee or management company is registered with the city as an electrical contractor or employs a master electrician of record, registered with the city as an electrical contractor, who oversees and is responsible for the electrical maintenance.

(1) *Registration of persons qualified to perform work.* All persons performing electrical work under this section shall be licensed or registered as required by the city or state. All electrical work performed under this permit must be performed by master electricians, journeyman electricians, maintenance electricians, or electrical maintenance technicians. Initial applicants for maintenance technicians will have to complete eight (8) hours of training approved by the code official.

(2) *Limitations of work.* Work that may be performed under this permit by an electrical maintenance technician shall be limited to the maintenance of, repair or replacement of devices or lighting fixtures, having the same characteristics as the existing devices or fixtures, in or on existing outlets and shall include, but not be limited to the following:

a. 120-volt receptacles of all types.

b. 240-volt 3-wire and 4-wire dryer and range receptacles. Replacement of these receptacles shall be limited to like configuration and amperage receptacles.

c. Replacement of overcurrent devices and safety switches of only the same voltage, current, ampere interrupting capacity (AIC) including:

1. One or two pole circuit breakers not exceeding 60-amps at 240-volts.

2. One or two pole safety switches (fused or non-fused) not to exceed 60-amps at 240-volts.

3. Fuses not to exceed 60-amps at 240-volts.

d. Photocells and time clocks not to exceed 277-volts nominal.

e. Range hoods, disposals, and dishwasher motors.

f. Interior, exterior lighting and switches not to exceed 277-volts nominal.

g. Ceiling fans on approved boxes with proper bracing.

h. Pool lights and outlets provided they are protected with GFCI and are replaced with same.

i. Doorbell transformers and wiring to other low voltage devices with 120-volt connections.

j. Bathroom-type exhaust vents.

k. Electric gate repair.

Electrical maintenance work does not include the installation of any new electrical appurtenances, apparatus, equipment, machinery, or controls beyond the scope of any existing electrical installation.

(3) *Record keeping.* The applicant for an electrical maintenance permit must:

a. Maintain a copy of the permit at either the site where the work is being conducted or applicant's place of business if within the city.

b. Maintain a copy of the registration card for the certified personnel either at the location where the work is performed or the applicant's place of business if within the city.

c. Maintain a record of all work performed by registered personnel for a minimum of twelve (12) months.

(d) *Annual mechanical maintenance permit and annual plumbing maintenance permit for Residential Group R-2 apartment houses.* An annual mechanical maintenance permit and an annual plumbing maintenance permit, or the combination of both as one (1) annual mechanical/plumbing maintenance permit, are required for all apartment houses containing more than four (4) dwelling units where the occupants are primarily permanent in nature. In this section the term "permanent in nature" means having dwelling units where the original lease term is greater than two (2) months.

Exception: No permit is required for apartment houses that have self-contained, ductless air conditioning products that have a cooling capacity of three (3) tons or less or for individual apartment houses containing less than five (5) dwelling units each.

(1) *Scope.*

a. *Mechanical.* The annual mechanical maintenance permit replaces the necessity of obtaining individual permits for work performed on environmental air conditioning system, a process cooling or heating system, a commercial refrigeration system or commercial refrigeration equipment. The permit does not cover nor is a permit required for the installation, repair, or removal of the following:

1. Vent hood used in residential kitchens.

2. Portable or self-contained ductless air conditioning product that has a cooling capacity of three (3) tons or less.

3. Portable or self-contained heating product that does not require the forced movement of air outside the heating unit.

4. Environmental air conditioning equipment that is intended for temporary use and is not fixed in place.

5. Residential refrigerator, freezer, or ice machine.

b. *Plumbing.* The annual plumbing maintenance permit replaces the necessity of obtaining individual permits for work performed by an owner or maintenance technician or

maintenance engineer employed by the owner who performs plumbing maintenance work incidental to and in connections with other duties.

(2) *Permit holder.* An annual mechanical maintenance permit for mechanical maintenance work and an annual plumbing maintenance permit for plumbing maintenance work will only be issued to the building owner/manager or their authorized agent. For properties that contain less than twenty (20) dwelling units, the permits holder may obtain one (1) annual mechanical maintenance permit and one (1) annual plumbing maintenance permit covering multiple locations. For properties that contain twenty (20) or more dwelling units, the permit holder shall obtain one (1) annual mechanical maintenance and one (1) annual plumbing maintenance permit for the dwelling units contained within the property.

(3) *Annual mechanical maintenance permit and annual plumbing maintenance permit fees.* These fees shall be as follows:

Annual mechanical maintenance permit fee for single location	$50.00 per permit plus $0.21 per residential apartment unit
Annual mechanical maintenance permit fee for multiple locations	$50.00 per permit plus $2.00 per residential apartment unit
Annual plumbing maintenance permit fee for single location	$50.00 per permit plus $0.21 per residential apartment unit
Annual plumbing maintenance permit fee for multiple locations	$50.00 per permit plus $2.00 per residential apartment unit
Note: Owners of apartment houses have the option of taking out a combined annual mechanical/plumbing maintenance permit. These fees shall be as follows:	
Annual mechanical/ plumbing maintenance permit fee for single location	$100.00 per permit plus $0.42 per residential apartment unit
Annual mechanical/ plumbing maintenance permit fee for multiple locations	$100.00 per permit plus $4.00 per residential apartment unit

(4) *Record keeping.* Records of all work performed under the annual mechanical maintenance permit and annual plumbing maintenance permit shall be maintained by the permits holder for no less than twelve (12) months after performing such work and shall be made available for the building official's review upon request.

(5) *Periodic inspections.* Work performed under both the annual mechanical maintenance permit and the annual plumbing maintenance permit is subject to the building official's periodic inspections. No notice will be required by the building official to make periodic inspections of equipment located on the exterior of apartment houses. For periodic inspections of equipment located on the interior of apartment houses or their rooftops, coordination shall take place with the permits holder with a minimum five-day notice prior to the inspections. A date and time for the inspections shall be established by the building official. Maintenance records for both interior work and exterior work shall be made available during all interior inspections.

(6) *Limits of work performed under annual mechanical maintenance permit and annual plumbing maintenance permit.* Work performed under these permits shall be limited as follows:

a. *Mechanical:*

1. All work required for the continued normal performance of an existing environmental air conditioning system, a process cooling or heating system, a commercial refrigeration system or a commercial refrigeration system. Work does not include the following:

a. Total replacement of a system as defined by the

Texas Administrative Code as the simultaneous replacement of the condensing unit, the evaporator coil, the furnace, if applicable, and the air handling unit, or replacement of a package system.

b. Installation or repair of a boiler or pressure vessel that must be installed in accordance with rules adopted by the commission under V.T.C.A., Health and Safety Code Ch. 755.

2. Diagnosing and repairing problems associated with air conditioning, commercial refrigeration, or process cooling or heating equipment, and remedying or attempting to remedy these problems.

b. *Plumbing.* Repair, maintenance and replacement of existing potable water piping, existing sanitary waste and vent piping, existing plumbing fixtures and existing electric water heaters.

(7) *Work not covered by the annual mechanical or plumbing maintenance permit.* The following work is not covered by these permits unless it is performed by either a licensed contractor or a state licensed professional engineer:

a. *Mechanical:*

1. Total replacement of a system as defined by the Texas Administrative Code as the simultaneous replacement of the condensing unit, the evaporator coil, the furnace, if applicable, and the air handling unit, or replacement of a package system.

2. Replacement of any condensing unit that is more than one-half-ton larger than the current size.

3. Replacement of any furnace that is more than thirty-five thousand (35,000) BTU's larger than the current size.

4. Replacement of any evaporator coil that is more than one-half-ton larger than the current size.

5. Extension of any duct work more than one foot.

6. Relocating any equipment to a new location more than five (5) feet from the original location.

b. *Plumbing:*

1. Cutting into fuel gas plumbing systems.

2. Installation of gas fueled water heaters.

(8) *Who may perform work.* The following may perform maintenance work under these permits:

a. Licensed air conditioning contractors for the mechanical maintenance permit.

b. A person licensed as an engineer under V.T.C.A., Occupations Code Ch. 1001 and who engages in air conditioning and refrigeration contracting work and/or plumbing work in connection with the business in which the person is employed but does not engage in that work for the public.

c. A person who performs air conditioning and refrigeration maintenance work and/or plumbing maintenance work if the person:

1. Is a maintenance technician or maintenance engineer and is a regular employee of the build-

ing owner/manager of the property where the work is being performed;

2. Performs the work in connection with the business in which the person is employed; and

3. The person's employer does not engage in air conditioning and refrigeration contracting for the public and/or plumbing contracting work for the public.

(e) *Work exempt from permit.* Exemptions from permit requirements of this chapter shall not be deemed to grant authorization for any work to be done in any manner in violation of the provisions of this chapter or any other laws or ordinances of the city or state. Permits shall not be required for the following:

(1) *Building:*

a. One-story detached accessory structures used as tool and storage sheds, playhouses, and similar uses, provided the floor area does not exceed three hundred (300) square feet (27.9 m^2).

b. Minor repairs to fences not over six (6) feet (1829 mm) high. Replacement of up to twenty-five (25) percent of the overall contiguous length of a fence shall constitute minor repair.

c. Oil derricks.

d. Retaining walls that are not over four (4) feet (1219 mm) in height measured from the grade level at the front of the wall to the top of the wall, unless supporting a surcharge or impounding Class I, II or IIIA liquids.

e. Water tanks supported directly on grade if the capacity does not exceed five thousand (5,000) gallons (18,925 L) and the ratio of height to diameter or width does not exceed 2:1.

f. Sidewalks and driveways not more than thirty (30) inches (762 mm) above adjacent grade, and not over any basement or story below and are not part of an accessible route.

g. Painting, papering, tiling, carpeting, cabinets, counter tops, and similar finish work.

h. Temporary motion picture, television and theater stage sets and scenery.

i. Prefabricated swimming pools accessory to a Group R-3 occupancy that are less than twenty-four (24) inches (610 mm) deep and do not exceed five thousand (5,000) gallons (18,925 L) and are installed entirely above ground.

j. Shade cloth structures constructed for nursery or agricultural purposes, not including service systems.

k. Swings and other playground equipment accessory to detached one- and two-family dwellings.

l. Window awnings in Group R-3 and U occupancies, supported by an exterior wall that do not project more than fifty-four (54) inches (1,372 mm) from the exterior wall and do not require additional support.

m. Nonfixed and movable fixtures, cases, racks, counters, and partitions not over five (5) feet nine (9) inches (1,753 mm) in height.

n. Uncovered patios not more than thirty (30) inches (762 mm) above grade or not over any basement or story below.

o. Uncovered decks accessory to one- and two-family dwellings not exceeding three hundred (300) square feet in area, that are not more than thirty (30) inches above grade at any point, are not attached to a dwelling and do not serve a required exit door.

(2) *Electrical:*

a. Minor repairs or maintenance work when performed by a licensed electrical contractor, the replacement of lamps or the connection of approved portable electrical equipment to approved permanently installed receptacles.

b. Replacement of a refrigeration or HVAC system motor, solenoid valves or controls associated with the motor when performed by a licensed mechanical contractor.

c. The installation of that portion of wiring and equipment for telephone, voice, data, cable TV, broadband and other types of communication systems that operate at fifty (50) volts nominal or less. Such systems shall be grounded according to the applicable provisions of Article 250 and Chapter 8 of the NEC.

d. The installation of wiring and equipment by or for the city for the purpose of generating, transmitting, and delivering service to its customers.

e. Radio and television transmitting stations: The provisions of this chapter shall not apply to electrical equipment used for radio and television transmissions but do apply to equipment and wiring for a power supply and the installations of towers and antennas.

f. Temporary testing systems: A permit shall not be required for the installation for any temporary system required for the testing or servicing of electrical equipment or apparatus.

(3) *Gas:*

a. Replacement of any minor part that does not alter approval of equipment or make such equipment unsafe.

b. Portable LP-gas appliances and equipment of all types that is not connected to a fixed fuel piping system.

c. Installation of farm appliances and equipment such as brooders, dehydrators, dryers, and irrigation equipment.

d. Raw material (feedstock) applications except for piping to special atmosphere generators.

e. Oxygen-fuel gas cutting and welding systems.

f. Industrial gas applications using gases such as acetylene and acetylene compounds, hydrogen, ammonia, carbon monoxide, oxygen, and nitrogen.

g. Petroleum refineries, pipeline compressor or pumping stations, loading terminals, compounding plants, refinery tank farms and natural gas processing plants.

h. Integrated chemical plants or portions of such plants where flammable or combustible liquids or gases are produced by, or used in, chemical reactions.

i. LP-gas installations at utility gas plants.

j. Liquefied natural gas (LNG) installations.

k. Fuel gas piping in power and atomic energy plants.

l. Proprietary items of equipment, apparatus, or instruments such as gas-generating sets, compressors, and calorimeters.

m. LP-gas equipment for vaporization, gas mixing and gas manufacturing.

n. Temporary LP-gas piping for buildings under construction or renovation that is not to become part of the permanent piping system.

o. Installation of LP-gas systems for railroad switch heating.

p. Installation of hydrogen gas, LP-gas and compressed natural gas (CNG) systems on vehicles.

q. Except as provided in Section 401.1.1 of the IFGC as amended, gas piping, meters, gas pressure regulators and other appurtenances used by the serving gas supplier in the distribution of gas, other than undiluted LP-gas.

r. Piping systems for mixtures of gas and air within flammable range with an operating pressure greater than ten (10) psig (69 kPa gauge).

s. Portable fuel cell appliances that are neither connected to a fixed piping system nor interconnected to a power grid.

(4) *Mechanical:*

a. Portable heating appliance.

b. Portable ventilation appliances and equipment.

c. Portable cooling units.

d. Steam, hot water, or chilled water piping within any heating or cooling equipment or appliances regulated by this Code.

e. The replacement of any minor part that does not alter approval of equipment or an appliance or make such equipment or appliance unsafe.

f. Portable evaporative coolers.

g. Self-contained refrigeration systems that contain ten (10) pounds (4.5 kg) or less of refrigerant, or that are actuated by motors of one horsepower (0.75 kW) or less.

h. Portable fuel cell appliances that are not connected to a fixed piping system and are not interconnected to a power grid.

(5) *Plumbing:*

a. The stopping of leaks in drains, water, soil, waste, or vent pipe, provided, however, that if any concealed trap, drain pipe, water, soil, waste or vent pipe becomes defective and it becomes necessary to remove and replace the same with new material, such work shall be considered as new work and a permit shall be obtained and inspection made as provided in this chapter.

b. The clearing of stoppages or the repairing of leaks in pipes, valves or fixtures and the removal and reinstallation of water closets, provided such repairs do not involve or require the replacement or rearrangement of valves, pipes, or fixtures.

(f) *Emergency repairs.* Where equipment replacements and repairs must be performed in an emergency situation, the permit application shall be submitted within the next business day to the building official.

(g) *Repairs.* Application or notice to the building official is not required for ordinary repairs to structures, replacement of lamps or the connection of approved portable electrical equipment to approved permanently installed receptacles. Such repairs shall not include the cutting away of any wall, partition or portion thereof, the removal or cutting of any structural beam or load-bearing support, or the removal or change of any required means of egress, or rearrangement of parts of a structure affecting the egress requirements; nor shall ordinary repairs include addition to, alteration of, replacement or relocation of any standpipe, water supply, sewer, drainage, drain leader, gas, soil, waste, vent or similar piping, electric wiring or mechanical or other work affecting public health or general safety. When making repairs, defective material or parts shall be replaced or repaired in such a manner so as to preserve the original approval or listing.

(h) *Public service agencies.* A permit shall not be required for the installation, alteration or repair of generation, transmission, distribution or metering or other related equipment that is under the ownership and control of public service agencies by established right.

(i) *Application for permit.* To obtain a permit, the applicant shall first file an application in writing on a form furnished by the Development Services Department for that purpose. Such application shall:

(1) Identify and describe the work to be covered by the permit for which application is made.

(2) Describe the land on which the proposed work is to be done, by legal description, street address or similar description that will readily identify and definitely locate the proposed building or work.

(3) Indicate the use and occupancy for which the proposed work is intended.

(4) Be accompanied by construction documents and other information as required in section 10-8 of this chapter.

(5) State the valuation of the proposed work. Valuation shall include the cost of labor, materials, and profit.

(6) Be signed by the applicant, or the applicant's authorized agent.

(7) Give such other data and information as required by the building official.

(j) *Authorization to obtain plumbing permits.* The following lists those individuals, contractors and companies that are authorized to obtain plumbing permits:

(1) Any duly licensed (RMP) Responsible Master plumber registered with a company.

(2) Any homeowner performing plumbing work on a homestead wherein he/she resides. The installation must be made by the homeowner without the assistance of any person or persons.

(3) (TCEQ) 30 TAC 344 Licensed irrigators, who have a state irrigators license, for the installation of backflow devices for irrigation systems.

(4) Water softener companies that hold a Class III Texas Commission of Environmental Quality (TCEQ) license for the installation or change out of water softeners and associated equipment.

(5) Licensed fire line contractors for backflow devices on fire lines.

(6) Plumbing work performed by anyone who is regularly employed or acting as a maintenance man or maintenance engineer, incidental to and in connection with the business in which he is employed or engaged, and who does not engage in plumbing work for the general public. See state licensing law for definition of maintenance person or maintenance engineer.

Exceptions:

a. Any person who is employed by the railroad for plumbing work done upon the premises or equipment of the railroad, and who does not engage in plumbing work for the general public.

b. Any person engaged by any public service company for plumbing work in connection with laying, maintaining and the operation of its service mains or lines and the installation, alteration, adjustment, repair, removal, or renovation of all types of appurtenances, equipment and appliances directly related to public service companies, properties and/or jurisdiction.

(7) Gas work performed by a certified LP gas installer licensed under V.T.C.A., Natural Resources Code chapter 113.

(8) (OSSF) On-Site Sewage Facility companies that hold an (OSSF Installer I or Installer II) Texas Commission of Environmental Quality (TCEQ) license for installation of (OSSF) On-Site Sewage Facilities and associated equipment, to secure a Sewer Permit to install the Sewer line from the building drain to the OSSF tank.

(k) *Insurance.* Before any person shall engage in plumbing work within the city, such person shall provide a certificate of insurance issued by

an insurance company authorized and admitted to do business in the state for commercial general liability insurance and products completed operations coverage for master plumber for claims for property damage or bodily injury, regardless of whether the claim arises from a negligence claim or on a contract claim, and shall be in a coverage amount of not less than three hundred thousand dollars ($300,000.00) for all claims arising in any one-year period. Further, any persons engaged in plumbing work shall indemnify and hold harmless the city from any and all damages, claims, liens, or losses, including, but not limited to personal injury or death and property damage, arising from any acts or omission of any character whatsoever caused by such person, his agents, or employees, engaged in plumbing work.

(l) *Action on application.* The building official shall examine or cause to be examined application for permits and amendments thereto within a reasonable time after filing. Such applications may be reviewed by other departments of the city to verify compliance with any applicable laws and ordinances under their jurisdiction. If the application or the construction documents do not conform to the requirements of the pertinent laws, the building official shall reject such application in writing, stating the reasons for the rejection. If the building official is satisfied that the proposed work conforms to the requirements of this chapter and applicable laws and ordinances, and that fees specified in ordinances adopted by the city have been paid, the building official shall issue a permit for the work as soon as practicable. No building permit shall be issued where there is not a supply of approved water for domestic or fire protection use, and adequate to the purposes for which the property is intended to be used, and where there is not an all-weather road surface adequate to withstand the weight of a fire truck.

(m) *Time limitation of application.* An application for a permit for any proposed work shall be deemed to have been abandoned one hundred eighty (180) days after the date of filing, unless such application has been pursued in good faith or a permit has been issued, except that the building official is authorized to grant one (1) or more extensions of time for additional periods not exceeding ninety (90) days each. The extension shall be requested in writing and justifiable cause demonstrated.

(n) *Validity of permit.* The issuance or granting of a permit shall not be construed to be a permit for, or an approval of, any violation of any of the provisions of this chapter or of any other ordinance of the city. Permits presuming to give authority to violate or cancel the provisions of this chapter or other ordinances of the city shall not be valid. The issuance of a permit based on construction documents and other data shall not prevent the building official from requiring the correction of errors in the construction documents and other data. The building official is also authorized to prevent occupancy or use of a structure where in violation of this chapter or of any other ordinances of the city.

(o) *Expiration.* Every permit issued shall become invalid unless the work on the site authorized by such permit is commenced within one hundred eighty (180) days after its issuance, or if the work authorized on the site by such permit is suspended or abandoned for a period of one hundred eighty (180) days after the time the work is commenced. The building official is authorized to grant, in writing, one or more extensions of time, for periods not more than one hundred eighty (180) days each. The extension shall be requested in writing and justifiable cause demonstrated.

(p) *Construction noise.* All noise produced by the erection, including construction, excavation, demolition, alteration, or repair work, or the permitting or causing thereof, of any building or other structure, shall meet the requirements of section 21-52(a)(6) of the City Code. Observed violations will result in criminal and/or civil citations per section 21-58(b), suspension and revocation of the permit as follows:

- First violation will result in a citation.
- Second violation will result in a citation, and the building official may suspend the permit for ten (10) days. A compliance agreement shall be signed by contractor and property owner outlining that they will not violate this section again for this project.

The signed agreement shall be provided to the building official no later than three (3) business days of the second violation.

- Third violation will result in a citation, and the building official may revoke the permit.

Per section 21-52(a)(6)(b), the building official can issue waivers to perform work during hours not approved per section 21-52(a)(6)(a).

(q) *Suspension or revocation.* The building official is authorized to suspend or revoke a permit issued under the provisions of this chapter whenever the permit is issued in error or on the basis of incorrect, inaccurate, or incomplete information, or in violation of any ordinance or regulation or any of the provisions of this chapter.

(r) *Placement of permit.* The building permit or copy shall be kept on the site of the work until the completion of the project.

(s) *Demolition permit.* See section 10-119 of this chapter.

(t) *House moving permit.* See section 10-120 of this chapter.
(Ord. No. 2025-01-30-0075, § 1(Att. A), 1-30-25)

Sec. 10-7. Floor and roof design loads.

(a) *Live loads posted.* Where the live loads for which each floor or portion thereof of a commercial or industrial building is or has been designed to exceed fifty (50) psf (2.40 kN/m^2), such design live loads shall be conspicuously posted by the owner in that part of each story in which they apply, using durable signs. It shall be unlawful to remove or deface such notices.

(b) *Issuance of certificate of occupancy.* A certificate of occupancy required by section 10-12 shall not be issued until the floor load signs, required by section 10-7, have been installed.

(c) *Restrictions on loading.* It shall be unlawful to place, or cause or permit to be placed, on any floor or roof of a building, structure, or portion thereof, a load greater than is permitted by this chapter.
(Ord. No. 2025-01-30-0075, § 1(Att. A), 1-30-25)

Sec. 10-8. Submittal documents.

(a) *General.* Submittal documents consisting of construction documents, statement of special inspections, geotechnical report and other data as required by the development services department's application procedures shall be submitted electronically with each permit application. The construction documents shall be prepared by a registered design professional where required by this Code, the state, or any of its regulatory agencies. Where special conditions exist, the building official is authorized to require additional construction documents to be prepared by a registered design professional. Buildings, additions, and major renovations for the following occupancies shall also require a design professional to prepare the construction documents:

(1) All Group A (Assembly) occupancies.

(2) All Group E (Educational) occupancies.

(3) All Group I (Institutional) occupancies.

(4) Buildings and structures three (3) stories or more high.

(5) Buildings and structures five thousand (5,000) square feet or more in area.

(6) Electrical plans and specifications prepared by engineer. Installation or alteration of any equipment on the customer side of the CPS Energy point of delivery (service point) rated over six hundred (600) amps at two hundred fifty (250) volts or less and rated at over four hundred (400) amps at greater than two hundred fifty (250) volts, any system above six hundred (600) volts or when required by the Texas Engineering Practice Act shall have the electrical plans sealed by a professional engineer, licensed or registered with the state.

Exception: The building official is authorized to waive the submission of construction documents and other data not required to be prepared by a registered design professional if it is found that the nature of the work applied for is such that review of construction documents is not necessary to obtain compliance with this Code.

(b) *Construction documents.* Construction documents shall be in accordance with items (1) through (6).

(1) *Information on construction documents.* Construction documents shall be dimensioned and drawn to scale. Electronic media documents are permitted to be submitted where approved by the building official. Construction documents shall be of sufficient clarity to indicate the location, nature and extent of the work proposed and show in detail that it will conform to the provisions of this chapter and relevant laws, ordinances, rules, and regulations, as determined by the building official.

(2) *Fire protection system shop drawings.* Shop drawings for the fire protection system(s) shall be submitted to indicate conformance to this Code and the construction documents shall be approved prior to the start of system installation. Shop drawings shall contain all information as required by the referenced installation standards in chapter 9 of the IBC, as amended. Refer also to chapter 11 of this Code for additional requirements regarding fire protection system submittal documents and procedures.

(3) *Means of egress.* The construction documents shall show in sufficient detail the location, construction, size, and character of all portions of the means of egress including the path of the exit discharge to the public way in compliance with the provisions of this chapter. In other than occupancies of Groups R-2, R-3, and I-1, the construction documents shall designate the number of occupants to be accommodated on every floor, and in all rooms and spaces.

(4) *Exterior wall envelope.* Construction documents for all buildings shall describe the exterior wall envelope in sufficient detail to determine compliance with this chapter. The construction documents shall provide details of the exterior wall envelope as required, including flashing, intersections with dissimilar materials, corners, end details, control joints, intersections at roof, eaves, or parapets, means of drainage, water-resistive barrier, and details around openings.

The construction documents shall include manufacturer's installation instructions that provide supporting documentation that the proposed penetration and opening details described in the construction documents maintain the weather resistance of the exterior wall envelope. The supporting documentation shall fully describe the exterior wall system, which was tested, where applicable, as well as the test procedure used.

(5) *Exterior balconies and elevated walking surfaces.* Where balconies or other elevated walking surfaces have weather-exposed surfaces, and the structural framing is protected by an impervious moisture barrier, the construction documents shall include details for all elements of the impervious moisture barrier system. The construction documents shall include manufacturer's installation instructions.

(6) *Site plan.* The construction documents submitted with the application for permit shall be accompanied by a site plan showing to scale the size and location of new construction and existing structures on the site, distances from lot lines, the established street grades, and the proposed finished grades and, if applicable, flood hazard areas, floodways, and design flood elevations and it shall be drawn in accordance with an accurate boundary line survey. In the case of demolition, the site plan shall show construction to be demolished and the location and size of existing structures and construction that are to remain on the site or plot. The building official is authorized to waive or modify the requirement for a site plan when the application for permit is for alteration or repair or when otherwise warranted.

a. *Design flood elevations.* Where design flood elevations are not specified,

they shall be established in accordance with Appendix F, Floodplains - Areas of Special Flood, of the Unified Development Code.

(7) *Energy compliance.* Energy submittal documents shall include but not be limited to:

a. Energy compliance path.

b. Insulation materials and their R-values.

c. Fenestration U-factors and solar heat gain coefficients (SHGCs).

d. Area-weighted U-factor and solar heat gain coefficient (SHGC) calculations.

e. Mechanical system design criteria.

f. Mechanical and service water-heating systems and equipment types, sizes, and efficiencies.

g. Economizer description.

h. Equipment and system controls.

i. Fan motor horsepower (hp) and controls.

j. Duct sealing, duct and pipe insulation and location.

k. Lighting fixture schedule with wattage and control narrative.

l. Location of daylight zones on floor plans.

m. Air barrier and air sealing details, including location of the air barrier.

n. Depiction of the building thermal envelope

o. Photovoltaic systems and electric vehicle capabilities

p. Commissioning plan shall be developed by a registered design professional or approved agency and shall include the following items:

1. A narrative description of the activities that will be accomplished during each phase of commissioning, including the personnel intended to accomplish each of the activities.

2. A listing of the specific equipment, appliances or systems to be tested and a description of the tests to be performed.

3. Functions to be tested including, but not limited to, calibrations and economizer controls.

4. Conditions under which the test will be performed. Testing shall affirm winter and summer design conditions and full outside air conditions.

5. Measurable criteria for performance.

(c) *Examination of documents.* The building official shall examine or cause to be examined the accompanying submittal documents and shall ascertain by such examinations whether the construction indicated and described is in accordance with the requirements of this chapter and other pertinent laws or ordinances.

(1) *Approval of construction documents.* When the building official issues a permit, the construction documents shall be approved, in writing or by City of San Antonio watermark. The reviewed construction documents shall be retained by the building official. The applicant shall keep a copy of the reviewed and watermarked construction documents at the work site, and open to inspection by the building official or his duly authorized representative.

(2) *Previous approvals.* This chapter shall not require changes to the construction documents, construction, or designated occupancy of a structure for which a lawful permit has been issued or otherwise lawfully authorized, and the construction of which has been pursued in good faith within one hundred eighty (180) days after the effective date of this chapter and not abandoned.

(3) *Phased approval.* The building official is authorized to issue a permit for the construction of foundations or any other part of a building or structure before the construction documents for the whole building or structure have been submitted, provided adequate information, and detailed statements have been filed complying with pertinence requirements of this chapter. The holder of such permit for the foundation or other parts of a building or structure shall proceed at the owner's own risk with the building operation and without assurance that a permit for the entire structure will be granted.

(4) *Design professional in responsible charge.*

a. *General.* When documents are required to be prepared by a registered design professional, the owner or the owner's authorized agent shall engage and designate on the building permit application a registered design professional to act as the registered design professional in responsible charge. If the circumstances require, the owner or the owner's authorized agent shall designate a substitute registered design professional who shall perform the duties required of the original registered design professional in responsible charge. The building official shall be notified in writing by the owner or the owner's authorized agent if the registered design professional in responsible charge is changed or is unable to continue to perform the duties.

The registered design professional in responsible charge shall be responsible for reviewing and coordinating submittal documents prepared by others, including phased and deferred submittal items, for compatibility with the design of the building.

b. *Deferred submittals.* For the purposes of this section, deferred submittals are defined as those portions of the design that are not submitted at the time of application and are to be submitted to the building official within a specified period.

Deferral of any submittal items shall have the prior approval of the building official. The registered design professional in responsible charge shall list the deferred submittals on the construction documents for review by the building official.

Documents for deferred submittal items shall be submitted to the registered design professional in responsible charge who shall review them and forward them to the building official with a notation indicating that the deferred submittal documents have been reviewed and found to be in general conformance to the design of the building. The deferred submittal items shall not be installed until the deferred submittal documents have been approved by the building official.

(d) *Amended construction documents.* Work shall be installed in accordance with the approved construction documents, and any changes made during construction that are not in compliance with the approved construction documents shall be resubmitted for approval as an amended set of construction documents.

(e) *Retention of construction documents.* Approved construction documents shall be retained by the building official for a period of not less than one hundred eighty (180) days from the date of completion of the permitted work, or as required by state or local laws.

(f) *Changes to standard tower release agreement.* Changes to the individual control such as tenant and premise description found in the standard tower release agreement, attached to Ordinance Number 83931 as Exhibit II, do not require city council approval, provided there are no substantial changes to the standard tower lease agreement. All other substantial changes

to such agreement shall require city council approval subject to approval of the office of the city attorney.
(Ord. No. 2025-01-30-0075, § 1(Att. A), 1-30-25)

Sec. 10-9. Temporary structures, equipment and systems.

(a) *General.* The building official is authorized to issue a permit for temporary structures, equipment or systems. Such permits shall be limited as to time of service but shall not be permitted for more than one hundred eighty (180) days. The building official is authorized to grant extensions for demonstrated cause. Structures designed to comply with IBC Section 3103.6 shall not be in service for a period of more than one (1) year unless an extension of time is granted. Chapter 11 of this Code contains additional requirements for temporary structures and uses.

(b) *Conformance.* Temporary structures and uses shall conform to the structural strength, fire safety, means of egress, accessibility, light, ventilation, and sanitary requirements of this chapter as necessary to ensure public health, safety, and general welfare.

(c) *Temporary service utilities.* The building official is authorized to give permission to temporarily supply service utilities. The part covered by the temporary certificate shall comply with the requirements specified for temporary lighting, heat, or power in article VI of this chapter.

(d) *Termination of approval.* The building official is authorized to terminate such permit for a temporary structure, equipment or system and to order the same to be discontinued.
(Ord. No. 2025-01-30-0075, § 1(Att. A), 1-30-25)

Sec. 10-10. Fees.

(a) *Payment of fees.* A permit shall not be valid until the fees prescribed by the fee schedule adopted by the city have been paid, nor shall an amendment to a permit be released until the additional fee, if any, has been paid.

(b) *Schedule of permit fees.* A fee for each permit shall be paid as required, in accordance with the fee schedule adopted by the city, for buildings, structures, electrical, gas, mechanical, and plumbing systems or alterations requiring a permit.

(c) *Building-related permit valuations.* The applicant for a permit shall provide an estimated value of the work which the permit is being issued at time of application. Such estimated valuations shall include the total value of work, including materials, labor, and profit for which a permit is being issued. Where, in the opinion of the building official, the valuation is underestimated on the application, the permit shall be denied, unless the applicant can show detailed estimates acceptable to the building official. The building official shall have the authority to adjust the final valuation for permit fees.

(d) *Work commencing before permit issuance.* Any person who commences work on a building, structure, electrical, gas, mechanical or plumbing system before obtaining the necessary permits shall be subject to double permit fees for the specified area. The payment of such double fee shall not relieve any person from fully complying with the requirements of this Code in the execution of the work nor from any other penalties prescribed in this Code.

(e) *Structures being moved; inspection of buildings or structures that are located outside city limits.* An inspection to determine compliance with city requirements shall be made of a building or structure on which an application to move same into the city is pending before the zoning board of adjustment. A fee shall be charged in accordance with the fee schedule adopted by the city.

(f) *Re-inspection fees.* The re-inspection fee charged shall be in accordance with the fee schedule adopted by the city. In instances where re-inspection fees have been assessed, all fees shall be paid before release of utilities.

(g) *Refunds.* The building official is authorized to establish a refund policy.
(Ord. No. 2025-01-30-0075, § 1(Att. A), 1-30-25)

Sec. 10-11. Inspections and testing.

(a) *General.* Construction or work for which a permit is required is subject to inspection by the building official and such construction work shall remain accessible and exposed for inspection purposes until approved. Approval following an inspection is not an approval of a violation of the provisions of this chapter or of other ordinances of the city. Inspections presuming to give authority to violate or cancel the provisions of this chapter or of other ordinances of the jurisdiction are not valid. It is the duty of the permit applicant to cause the work to remain accessible and exposed for inspection purposes. Neither the building official nor the city are liable for expense entailed in the removal or replacement of any material required to allow inspection.

(b) *Preliminary inspection.* Before issuing a permit, the building official is authorized to examine or cause to be examined building, structures, and sites for which an application has been filed.

(c) *Required inspections and tests.* The building official, upon notification, shall make the inspections and tests set forth in paragraphs (1) through (15).

(1) *Footing and foundation inspection.* Footing and foundation inspections shall be made after excavations for footings are complete and any required reinforcing steel is in place. For concrete foundations, any required forms shall be in place prior to the inspection. Materials for the foundation shall be on the job, except where concrete is ready mix in accordance with ASTM C 94, the concrete need not be on the job.

(2) *Underground.* Underground inspections shall be made after trenches or ditches are excavated and bedded, raceways and cable or conductors installed, and before backfill is put in place. Where excavated soil contains rocks, broken concrete, frozen chunk, and other rubble that would damage or break the raceway, cable or conductors, or where corrosive action will occur, protection shall be provided in the form of granular or selected material, approved running boards, sleeves or other approved means.

(3) *Concrete slab and under-floor inspections.* Concrete slab and under-floor inspections shall be made after in-slab or under-floor reinforcing steel and building service equipment, conduit, piping accessories and other ancillary equipment items are in place, but before any concrete is placed or floor sheathing installed, including the subfloor.

(4) *Lowest floor elevation.* In flood hazard areas, upon placement of the lowest floor, including the basement, and prior to further vertical construction, the elevations certification required in Section 1612 of the IBC or Section R322 of the IRC as amended, shall be submitted to the building official.

(5) *Plumbing, mechanical, gas and electrical systems inspections and tests.* Concealment or rough-in inspections of plumbing, mechanical, gas and electrical systems shall be made prior to covering or concealment, before fixtures or appliances are set or installed, and prior to framing inspection.

Exception: For one- and two-family dwellings, back-filling of ground-source heat pump loop systems tested in accordance with Section M2105.28 of the 2024 IRC, as amended, prior to inspection shall be permitted.

(6) *Duct test for one- and two-family dwellings and townhomes.* All ducts for one- and two-family dwellings as well as townhomes, in unconditioned spaces, shall be duct tested prior to covering or concealment to disclose leaks and defects. Tests shall be made by an independent certified RESNET energy rater or an alternative approved by the building official using objective, verifiable testing criteria and results provided to the building official. Apparatus, material, and labor required for testing a mechanical system shall be furnished by the independent

certified RESNET energy rater or building official approved alternate. Where any work or installation does not pass an initial test or inspection, the necessary corrections shall be made to achieve compliance with this chapter. The work or installation shall then be re-submitted to the building official for inspection and testing. See also Section R403.3 of the 2021 IECC, as amended.

(7) *Frame inspection.*

a. *Building*—Framing Beam and Soffit inspections shall be made after all exterior beams and fire blocking at soffits (if required) is installed.

b. *Building*—Frame Tie Down/Wind Bracing shall be made after all elements of the wind bracing design have been fully installed.

c. *Building*—Framing inspections shall be made after the roof deck or sheathing, all framing, fire blocking, fire block seal at penetrations of the top and bottom plate, and bracing are in place and pipes, chimneys, and vents to be concealed are complete and the rough electrical, plumbing, heating wires, pipes and ducts are approved.

(8) *Types IV-A, IV-B and IV-C connection protection inspection.* In buildings of Types IV-A, IV-B and IV-C construction, where connection fire-resistance ratings are provided by wood cover calculated to meet the requirements of IBC Section 2304.10.1, inspection of the wood cover shall be made after the cover is installed, but before any other coverings or finishes are installed.

(9) *Lath and gypsum board inspection.* Lath and gypsum board inspections shall be made after the lathing and gypsum board, interior and exterior, is in place, but before any plastering is applied or any gypsum board joints and fasteners are taped and finished.

Exception: Gypsum board that is not part of a fire-resistance-rated assembly or a shear assembly.

(10) *Waterproofing.* Where balconies or other elevated walking surfaces have weather-exposed surfaces, and the structural framing is protected by an impervious moisture barrier, all elements of the impervious moisture barrier system shall not be concealed until inspected and approved.

Exception: Where special inspections are provided in accordance with Section 1705.1.1, Item 3.

(11) *Fire- and smoke-resistant penetrations.* Protection of joints and penetrations in fire-resistance-rated assemblies, smoke barriers and smoke partitions shall not be concealed from view until inspected and approved.

(12) *Energy efficiency inspections.* Inspections shall be made to determine compliance with Chapter 4(RE) of the 2021 IECC for detached one- and two-family dwellings and multiple single-family dwellings (townhomes) as well as Group R-2, R-3 and R-4 buildings three (3) stories or less in height above grade plane, and Chapter 4(CE) of the 2021 IECC for all other occupancies, as amended, and shall include, but not be limited to, inspections for: Envelope insulation R- and U-values, fenestration U-value, duct system R-value, and HVAC and water-heating equipment efficiency. Functional performance testing reports shall be submitted for equipment, controls, and economizers prior to certificate of occupancy issuance. A preliminary report of commissioning and test procedures and results shall be completed and certified by the registered design professional or approved agency and provided to the building owner or owner's authorized agent. For detached one and two-family dwellings and multiple single-family dwellings (townhomes) as well as Group R-2, R-3 and R-4 buildings three stories or less in height above grade plane, an independent certified RESNET energy rater or an alternative approved by the building official using objective, verifiable testing criteria, shall test and inspect the air barrier as per

Section R402.4 Air leakage, of the 2021 IECC. The results must be submitted on a form approved by the building official. The form shall show that construction is in compliance with the 2021 IECC.

(13) *Other inspections.* In addition to the inspections specified above, the building official is authorized to make or require other inspections of any construction work to ascertain compliance with the provisions of this chapter and other laws that are enforced by the development services department.

a. *Prefabricated construction assembly with electrical work.*

1. *Evaluation report.* Prior to the approval of a prefabricated construction assembly having concealed electrical work and the issuance of an electrical permit, the building official requires the submittal of an evaluation report on each prefabricated construction assembly, indicating the complete details of the electrical system, including a description of the system and its components, the basis upon which the system is being evaluated, test results and similar information, and other data as necessary for the building official to determine conformance to this chapter.

2. *Evaluation service.* The building official shall designate the evaluation service of an approved agency as the evaluation agency and review such agency's evaluation report for adequacy and conformance to this chapter.

3. *Follow-up inspection.* Except where ready access is provided to the electrical systems, service equipment and accessories for complete inspection at the site without disassembly or dismantling, the building official is authorized to conduct the in-plant inspections as frequently as necessary to ensure conformance to the approved evaluation report or shall designate an independent, approved inspection agency to conduct such inspections. The inspection agency shall furnish the building official with the follow-up inspection manual and a report of inspections upon request, and the electrical system shall have an identifying label permanently affixed to the system indicating that factory inspections have been performed.

4. *Test and inspection records.* Required test and inspection records shall be available to the building official at all times during the fabrication of the electrical system and the erection of the building, or such records as the building official designates shall be filed.

(14) *Special inspections.* For special inspections, see Section 1704 of the IBC, as amended.

(15) *Final inspection.* The final inspections shall be made after work required by building-related permits is completed. Failure to request a final inspection within thirty (30) days after the completion of a permit's work is a violation of this chapter.

(d) *Inspection agencies.* The building official is authorized to accept reports of approved inspection agencies, provided such agencies satisfy the requirements as to qualifications and reliability.

(e) *Inspection requests.* It shall be the duty of the holder of the building-related permit or their duly authorized agent to notify the building official when work is ready for inspection. It

shall be the duty of the permit holder to provide access to and means for inspections of such work that are required by this chapter.

(f) *Approval required.* Work shall not be done beyond the point indicated in each successive inspection without first obtaining the approval of the building official. The building official, upon notification, shall make the requested inspections and shall either indicate the portion of the construction that is satisfactory as completed, or notify the permit holder or his or her agent wherein the same fails to comply with this chapter. Any portions that do not comply shall be corrected and such portion shall not be covered or concealed until authorized by the building official.

(g) *Reinspection and retesting.* Where any work or installation does not pass an initial test or inspection, the necessary corrections shall be made so as to achieve compliance with this chapter. The work or installation shall then be resubmitted to the building official for inspection and testing. To receive a reinspection or retest, the applicant shall make a request to the building official and pay the reinspection fee in accordance with the fee schedule prior to the inspection or test.
(Ord. No. 2025-01-30-0075, § 1(Att. A), 1-30-25)

Sec. 10-12. Certificate of occupancy.

(a) *Use and occupancy.* No building or structure shall be used or occupied in whole or part, and no change in the existing use or occupancy classification of a building or structure or portion thereof shall be made, until the building official has issued a certificate of occupancy therefor as provided herein. Issuance of a certificate of occupancy shall not be construed as an approval if a violation of the provisions of this chapter or of other ordinances of the city.

Exception: Certificates of occupancy are not required for work exempt from permits under subsection 10-6(d).

(b) *Certificate issued.* After the building official inspects the building or structure and finds no violations of the provisions of this chapter or other laws that are enforced by the department, the building official shall issue a certificate of occupancy that contains the following:

(1) The building permit number.

(2) The address of the structure.

(3) The name and address of the owner or the owner's authorized agent.

(4) A description of that portion of the structure for which the certificate is issued.

(5) A statement that the described portion of the structure has been inspected for compliance with the requirements of this chapter for the occupancy and division of occupancy and the use for which the proposed occupancy is classified.

(6) The name of the building official.

(7) The edition of the IBC or IRC under which the permit was issued.

(8) The use and occupancy, in accordance with the provisions of Chapter 3 of the IBC.

(9) The type of construction as defined in Chapter 6 of the IBC.

(10) The design occupant load.

(11) Where an automatic sprinkler system is provided, whether the sprinkler system is required.

(12) Any special stipulations and conditions of the building permit.

(c) *Temporary occupancy.* The building official is authorized to issue a temporary certificate of occupancy before the completion of the entire work covered by the permit, provided that such portion or portions shall be occupied safely. The building official shall set a time period during which the temporary certificate of occupancy is valid.

(d) *Revocation.* The building official is authorized to suspend or revoke a certificate of occupancy or completion issued under the provisions of this chapter wherever the certificate is issued in error, or on the basis of incorrect information supplied, or where it is determined

that the building or structure or portion thereof is in violation of any ordinance or regulation or any of the provisions of this chapter.
(Ord. No. 2025-01-30-0075, § 1(Att. A), 1-30-25)

Sec. 10-13. Service utilities.

(a) *Connection of service utilities.* No person shall make connections from a utility, source of energy, fuel, power, water system or sewer system to any building or system that is regulated by this chapter for which a permit is required, until released by the building official.

(b) *Temporary connection.* The building official shall have the authority to authorize the temporary connection of the building or system to the utility, source of energy, fuel, power, water system or sewer system for the purpose of testing plumbing systems or for use under a temporary approval.

(c) *Authority to disconnect service utilities.* The building official has the authority to authorize disconnection of utility service to the building, structure or system regulated by the referenced codes and standards of subsection 10-2(c) of this chapter to eliminate a risk to life or property or when such utility connection has been made without the required authorization. The building official shall notify the serving utility, and wherever possible the owner or the owner's authorized agent and occupant of the building, structure, or service system of the decision to disconnect prior to taking such action. If not notified prior to disconnecting, the owner, owner's authorized agent, or occupant of the building, structure or service system shall be notified in writing, as soon as practical thereafter.

(d) *Connection after order to disconnect.* A person shall not make utility service or energy source connections to systems regulated by this Code which have been disconnected or ordered to be disconnected by the code official or the use of which has been ordered to be discontinued by the code official until the code official authorizes the reconnection and use of such systems.

(e) *Changing location of electric meters.* If alterations of the building, dwelling, structure, or wiring require changes in the location or size of the electric meter/service equipment, a licensed electrical contractor with the city shall acquire a permit for the work to be performed and coordinate the disconnecting and reconnecting of service with the utility.

(f) *Emergencies.* Where life or property may be in danger, a licensed electrical contractor with the city may disconnect the electric service to the building, dwelling or structure and shall immediately notify the utility.

(g) *Utility company rules.* The latest edition of the CPS Energy publication, "Electrical Service Standards," as approved by the building official and adopted by city council, is hereby incorporated, and made a part of this chapter for all electric services and meter installations. All other wiring, either public or private, shall conform to this chapter.
(Ord. No. 2025-01-30-0075, § 1(Att. A), 1-30-25)

Sec. 10-14. Building-related and fire codes appeals and advisory board.

(a) *General.* A building-related and fire codes appeals, and advisory board also known as the appeals and advisory board is created. The board shall hear and decide appeals of orders, decisions or determinations made by the building official or the fire chief relative to the application and interpretations of chapter 10, chapter 11, and specific articles in chapter 28 of the City Code, and in order to provide advice to the building official or fire chief on code-related matters.

(1) Members of the appeals and advisory board shall be appointed by the mayor and city council and shall hold office at its pleasure.

(2) Applications for appeal for any order, decision or determination made by the building official or the fire chief shall be filed on a form obtained from the building official within twenty-one (21) calendar days after the notice was served.

(3) A filing fee must accompany each application for appeal to the appeals and advisory board, as set forth in the fee schedule adopted by the city.

(4) The appeals and advisory board shall meet quarterly on general and codes-related matters and shall meet within fourteen (14) calendar days after either the building official or the fire chief receives an application appealing an associated order, decision, or determination relative to the application and interpretation of chapter 10, chapter 11 and specific articles in chapter 28.

(5) When requested by the building official or fire chief, the appeals and advisory board shall conduct public hearings on nationally recognized building-related codes, following publication, and shall make recommendations to the building official or fire chief for adoption or local amendment.

(b) *Application for appeal.* An application for appeal shall be based on a claim that:

(1) The true intent of chapters 10, 11 and specific articles in chapter 28 or the rules legally adopted thereunder have been incorrectly interpreted;

(2) The provisions of this chapter do not fully apply; or

(3) An equally good or better form of construction is proposed.

(c) *Limitation on authority.*

(1) The appeals and advisory board shall have no authority to waive requirements of chapters 10, 11 or 28.

(2) The appeals and advisory board shall review building-related and fire codes issues when requested to do so by the building official or fire chief and shall provide a recommendation to the building official or fire chief.

(3) The appeals and advisory board may also review and make recommendations to the building official or fire chief on any building-related or fire code issue, as requested by a citizen or board member when the request for board review is approved by both the building official and appeals and advisory board chairman.

(4) Appeals, as defined in subsection 10-14(a), do not require approval by either the building official or chairman of the appeals and advisory board in order to be heard.

(5) All meetings of the board must comply with the provisions of the Texas Open Meetings Act. Through board action, technical issue items may be added for discussion to any future board meeting agenda. Administrative and non-technical agenda items may only be added to the agenda and discussed when approved by the building official.

(6) Technical committees shall be established by the board to assist the building official and fire chief in determining recommendations for the adoption of the model codes listed in subsections 10-2(1)—(6) of this chapter and the model code listed in chapter 11 and any associated local amendments to these codes.

(7) The responsibilities of the appeals and advisory board shall be limited to those specifically contained in this chapter.

(d) *Qualifications.* The board of appeals shall consist of seventeen (17) members and seventeen (17) alternates who are qualified by experience and training to act on matters pertaining to building-related and fire codes and may not be employees of the city. Board of appeals members and alternate members shall reside in the city unless the residence requirement is waived by city council. New applicant and non-holdover existing member nominations to the board shall be made in writing to the secretary of the board of appeals by industry associations that are affiliated with nationally recognized organizations and include language nominating an individual for any membership within a given category. Industry associations may still request a preference for primary or secondary membership in its nomination letter. City council shall appoint board members accommodating this preference with an overall priority given existing board vacancies. Upon city council appointment,

the board is: (1) authorized to administratively switch primary and alternate membership designations within the same category; and also (2) to fill vacant primary member positions with alternate members within the same category. Exercise of board authority shall only be done where necessary for efficient administration of board function, with the approval of the individual impacted member, and with a majority vote of the board in favor of the action. Any action taken by the board under this section shall have no impact on the time a member shall serve on this board. Membership of the appeals and advisory board, including alternates, is by category and as follows:

(1) One (1) member and one (1) alternate shall be a structural engineer licensed or registered by the state as a professional engineer.

(2) One (1) member and one (1) alternate shall be a fire protection engineer licensed or registered by the state as a professional engineer.

(3) One (1) member and one (1) alternate shall be an electrical engineer licensed or registered by the state as a professional engineer.

(4) One (1) member and one (1) alternate shall be a plumbing engineer, or a mechanical engineer licensed or registered by the state as a professional engineer.

(5) One (1) member and one (1) alternate shall be an architect licensed by the state.

(6) Two (2) members and two (2) alternates shall be building contractors registered by the city.

(7) Two (2) members and two (2) alternates shall be licensed by the state as a master electrician. Of these, one (1) member and one (1) alternate represent organized labor, and one (1) member and one (1) alternate represent open shop.

(8) Two (2) members and two (2) alternates shall be licensed by the state as an air conditioning and refrigeration contractor. Of these, one (1) member and one (1) alternate shall represent organized labor and one (1) member, and one (1) alternate shall represent open shop.

(9) Two (2) members and two (2) alternates shall be licensed by the state as a master plumber. Of these, one (1) member and one (1) alternate represent organized labor and one (1) member and one (1) alternate represent open shop.

(10) One member and one alternate shall be a commercial building contractor.

(11) One (1) member and one (1) alternate shall be a commercial building owner, manager, or their representative.

(12) One (1) member and one (1) alternate shall be a residential group R-2 multi-family building owner, manager, or their representative.

(13) One (1) member and one (1) alternate: Licensed by either the city or the state as a master sign electrician.

The fire chief or designee shall be an ex-officio member. The building official or designee shall also be an ex-officio member and shall act as secretary to the appeals and advisory board. The building official or fire chief or their respective designees shall not have a vote on any matter before the appeals and advisory board.

The appeals and advisory board shall be subject to chapter 2, article IX entitled "Boards and Commissions," to the extent not in conflict with these provisions. Members shall be limited to three (3) consecutive two-year terms. Board membership shall continue in a holdover capacity until a replacement is appointed. The appeals and advisory board shall elect a chairman and vice-chairman annually, shall adopt rules of procedure for conducting its business and shall render all decisions and findings in writing to the appellant with copies to the building official or fire chief. All vacancies are filled for the unexpired portion of the term only.

(e) *Quorum and majority vote.*

(1) An appointed alternate member shall not serve on the appeals and advisory board,

or any board committee, when the appointed member for whom they are an alternate is present.

(2) Nine (9) appointed members or their appointed member alternates, constitutes a quorum of the appeals and advisory board.

(3) Voting shall only be conducted by appointed members or their appointed alternates, should the member not be present. No proxy votes shall be allowed.

(4) A majority vote of those members present, including alternate members representing absent members, shall be necessary for approval of any decision of the appeals and advisory board, and each member or alternate member, should the member be absent, shall have one vote including the chairman.

(5) The appeals and advisory board shall take no action on an appeal unless one (1) appointed member that is a subject matter expert is present for each major part of the appeal. For example: If an appeal has two (2) major parts, structural and plumbing, the structural engineer member and at least one (1) of the two (2) master plumber members must be present in order for the appeals and advisory board to take action on the appeal. Failure of the appeals and advisory board to have these subject matter experts present does not result in the approval of the applicant's appeal.

(f) *Sub-committees.* The appeals and advisory board may form sub-committees to advise it on specific matters. Prior to conducting public hearings on any of the nationally recognized building-related codes or the City of San Antonio Signs Code, and any associated amendments thereto, the appeals and advisory board shall form code review sub-committees and shall select a chairman for such sub-committee. The purpose of code review sub-committees is to review the newly published codes and to receive public comments on these codes and their associated amendments. The building official will provide appropriate staff support to all such sub-committees. The chairman of each code review sub-committee shall report his sub-committee recommendations to the appeals and advisory board during the subsequent public hearings conducted by the board on these codes.

(1) *Sub-committee membership.* Sub-committee membership shall consist of board members or their designated alternates, should the member not be present, and may also consist individuals who are not appointed by the mayor and city council, "non-board member," and who are required to reside in the city. A sub-committee is required to have at least four (4) board members or their designated alternates. Both the primary board member and alternate board member for any category may serve on a sub-committee, but only one (1) category member, primary or alternate, may serve as a voting member on the sub-committee. Sub-committees shall have not more than seven (7) board members and seven (7) designated alternates. Any board member may sit on a sub-committee as an ex-officio member but shall not be counted as part of the quorum or be authorized to vote. The number of non-board members shall be limited to the lesser of four (4) or one (1) less than the number of board members appointed to the sub-committee. The non-board members shall be appointed by either the full board or the sub-committee on which they will serve. Non-board members shall reside in the city unless the residence requirement is waived by the full board through the approved selection process.

(2) *Non-board member selection.* Selection of candidates to serve as a non-board member to a sub-committee will be completed as per the sub-committee selection bylaws adopted by the board.

(3) *Sub-committee quorum and voting.* A majority of the combined board members or their designated alternates, should the member not be present, of the sub-committee and the non-board members shall constitute a quorum. A majority of

sub-committee members shall be required to approve any item before the sub-committee.

(g) *Procedure.* The meeting of the board of appeals shall be conducted in conformity with parliamentary rules (Robert's Rules of Order), or other rules established by the appeals and advisory board, unless otherwise specified in chapters 10, chapter 11, and specific articles in chapter 28. The procedures shall not require compliance with strict rules of evidence but, shall mandate that only relevant information be received.

(h) *Open hearing and meeting.* All hearings and meetings of the appeals and advisory board shall be open to the public, and subject to the Texas Public Meetings Act. The appellant, the appellant's representative, the building official, fire chief and any other person whose interests are affected shall be given equal opportunity to be heard.

(i) *Appeals and advisory board decision on appeals.* A concurring vote of the majority of appointed members present once a quorum is established is required in order for the appeals and advisory board to modify or reverse the decision of the building official or fire chief.

(1) *Resolution.* The decision of the appeals and advisory board shall be by resolution. Certified copies, signed by the chairman of the appeals and advisory board, shall be furnished to the appellant and to the building official and fire chief.

(2) *Administration.* The building official and fire chief shall take immediate action in accordance with the decision of the appeals and advisory board.

(j) *Board of appeals action.* Any action taken by the building-related and fire codes board of appeals is final.
(Ord. No. 2025-01-30-0075, § 1(Att. A), 1-30-25)

Sec. 10-15. Violations.

(a) *Unlawful acts.* It shall be unlawful for any person, firm, or corporation to erect, construct, alter, extend, repair, move, remove, demolish, or occupy any building, structure or equipment regulated by this chapter, or cause same to be done, in conflict with or in violation of any of the provisions of this chapter.

(b) *Notice of violation.* The building official is authorized to serve a notice of violation or order on the person responsible for the erection, construction, alteration, extension, repair, moving, removal, demolition or occupancy of a building or structure in violation of the provisions of this chapter, or in violation of a permit or certificate issued under the provisions of this chapter. Such order shall direct the discontinuance of the illegal action or condition and the abatement of the violation.

(c) *Prosecution of violation.* If the notice of violation is not complied with promptly, the building official is authorized to request legal counsel of the city to institute the appropriate proceeding at law or in equity to restrain, correct or abate such violation, or to require the removal or termination of the unlawful occupancy of the building or structure in violation of such provisions of this chapter or of the order or direction made pursuant thereto.

(d) *Violation penalties.* Any person who violates a provision of this Code or fails to comply with any of the requirements thereof or who erects, constructs, alters, or repairs a building or structure in violation of the approved construction documents or directive of the building official, or of a permit or certificate issued under the provisions of this chapter, shall be subject to penalties prescribed by law.

(e) *Misdemeanor.* Any person violating any of the provisions of this Code or other ordinances which are enforced by the building official shall be deemed guilty of a misdemeanor. Each such person shall be deemed guilty of a separate offense for each day or portion thereof during which any violation of any of the provisions of this Code is committed, continued, or permitted. Each violation may be punishable by a fine not to exceed five hundred dollars ($500.00).
(Ord. No. 2025-01-30-0075, § 1(Att. A), 1-30-25)

Sec. 10-16. Stop work order.

(a) *Authority.* Whenever the building official finds any work regulated by this chapter being performed in a manner either contrary to the

provisions of this chapter or dangerous or unsafe, the building official is authorized to issue a stop work order.

(b) *Issuance.* The stop work order shall be in writing and shall be given to the owner of the property involved, or to the owner's agent, or to the person doing the work. Upon issuance of a stop work order, the cited work shall immediately cease. The stop work order shall state the reason for the order, and the conditions under which the cited work will be permitted to resume.

(c) *Emergencies.* Where an emergency exists, the building official shall not be required to give written notice prior to stopping work.

(d) *Unlawful continuance.* Any person who shall continue any work having been served with a stop work order, except such work as that person is directed to perform to remove the violation or unsafe condition, shall be subject to penalties as prescribed by law.
(Ord. No. 2025-01-30-0075, § 1(Att. A), 1-30-25)

Sec. 10-17. Unsafe structures and equipment.

(a) *Unsafe conditions.* Structures or existing equipment that are or hereafter become unsafe, insanitary, or deficient because of inadequate means of egress facilities, inadequate light, and ventilation, or which constitute a fire hazard, or are otherwise dangerous to human life or the public welfare, or that involve illegal or improper occupancy or inadequate maintenance, shall be deemed an unsafe condition. Unsafe structures shall be taken down and removed or made safe, as the building official deems necessary and as provided for in this section. A vacant structure that is not secured against unauthorized entry shall be deemed unsafe.

(b) *Record.* The building official shall cause a report to be filed on an unsafe condition. The report shall state the occupancy of the structure and the nature of the unsafe condition.

(c) *Notice.* If an unsafe condition is found, the building official shall serve on the owner, agent, or person in control of the structure, a written notice that describes the condition deemed unsafe and specifies the required repairs or improvements to be made to abate the unsafe condition, or that requires the unsafe structure to be demolished within a stipulated time. Such notice shall require the person thus notified to declare immediately to the building official acceptance or rejection of the terms of the order.

(d) *Method of service.* Such notice shall be deemed properly served if a copy thereof is: (a) delivered to the owner personally; (b) sent by certified or registered mail addressed to the owner at the last known address as referenced in the deed records with the return receipt requested; or (c) delivered in any other manner as prescribed by local law. If the certified or registered letter is returned showing the letter was not delivered, a copy thereof shall be posted in a conspicuous place in or about the structure affected by such notice. Service of such notice in the foregoing manner upon the owner's agent or upon the person responsible for the structure shall constitute service of notice upon the owner.

(e) *Restoration or abatement.* Where the structure or equipment determined to be unsafe by the building official is permitted to be restored to a safe condition, the owner, the owner's authorized agent, operator or occupant of a structure, premises or equipment deemed unsafe by the building official shall abate or cause to be abated or corrected such unsafe conditions either by repair, rehabilitation, demolition, or other approved corrective action. To the extent that repairs, alterations, or additions are made, or a change of occupancy occurs during the restoration of the structure, such repairs, alterations, additions or change of occupancy shall comply with subsection 10-2(c) of this chapter.
(Ord. No. 2025-01-30-0075, § 1(Att. A), 1-30-25)

Sec. 10-18. Notice required to building official (detention facility).

Pursuant to authority granted to the building official in article I, section 10-5 (Duties and powers of building official) and under the city charter, the building official, through the development services department, shall be notified by (1) the owner, (2) owner's representative, or (3) any contractor at least thirty (30) days prior to commencing any work to renovate, construct, or

operate detention facilities within the City of San Antonio city limits. Detention facilities under this section shall have the same definition as under chapter 35 (Unified Development Code). (Ord. No. 2026-04-16-0257, § 4, 4-16-26)

Secs. 10-19—10-24. Reserved.

ARTICLE II. DEFINITIONS

Sec. 10-25. Non-referenced definitions.

The following definitions are in addition to or supersede those listed in the referenced model codes of this chapter:

AHJ. Authority having jurisdiction.

Air conditioning and refrigeration contracting. Performing or offering to perform the design, installation, construction, repair, maintenance, service, or modification of equipment or a product in an environmental air conditioning system, a commercial refrigeration system, or a process cooling or heating system for the general public.

Air conditioning and refrigeration maintenance work. All work, including repair work, required for the continued normal performance of an existing environmental air conditioning system, a process cooling or heating system, a commercial refrigeration system, or commercial refrigeration equipment. The term does not include:

- The total replacement of a system; or
- The installation or repair of a boiler or pressure vessel that must be installed in accordance with rules adopted by the commission under V.T.C.A., Health and Safety Code ch. 755.

Approved. Approved by the building official or other authority having jurisdiction.

Approved agency. An established and recognized organization this is regularly engaged in conducting tests, furnishing product evaluation or certification or inspection services when such organization has been approved by the building official.

AWG. American Wire Gauge.

Billboard operator. An individual licensed by the city as a billboard operator who engages in the business of erecting, painting, servicing, or maintaining billboards or any other off-premises advertising in accordance with this chapter and chapter 28 of this Code.

Board of appeals. The building-related and fire codes appeals and advisory board of the city.

Building official. The director of the development services department or a duly authorized representative who may act on his behalf charged with the administration and enforcement of this chapter. For the purpose of this chapter, the building official shall also be known as the code official and AHJ.

Building owner / manager. A person or company that is in the business of managing properties and is responsible for the upkeep and maintenance of such properties.

Certificate of occupancy or C of O. A document issued by the building official after he inspects the building or structure and finds no violations of the provisions of this chapter or other laws that are enforced by the department.

Chapter. Chapter 10 of the City Code of San Antonio, Texas, also known as the building-related codes of the city, and any subsequent enactments, amendments and/or reenactment of chapter 10 of the City Code.

City. The City of San Antonio, Texas.

Commercial sign operator. An individual licensed by the city as a commercial sign operator who engages in the business of erecting, painting, servicing, or maintaining commercial signs in accordance with this chapter and chapter 28 of the City Code.

CPS Energy. City Public Service Energy.

Deck. An outdoor platform extending horizontally from the rear or side yard of the structure, attached to a building or self-supported.

Demolition. Has the meanings assigned in appendix A of chapter 35 of the City Code.

Demolition contractor. An individual or company or partnership doing the work of demolition for payment.

Department. Development services department of the city.

Distributed generation (DG). Includes, but is not limited to, electrical power derived from wind, water, sunlight, mechanical equipment, batteries, or fuel cells. DG includes all sources of electrical energy that are derived from equipment and/or systems other than the CPS Energy system that may include, wholly or in part, generation, transmission, and distribution of electrical energy.

1. All DG systems that are interactive with the electrical grid of CPS Energy shall be

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approved by the city and CPS Energy prior to the issuance of an electrical permit.

2. Stand-alone DG systems that are not connected to the electrical grid of CPS Energy require electrical permits when any portion, segment or component of the DG system operates at or is rated for operation above 50-volts (AC or DC) or above one thousand two hundred (1,200) watts.

3. Interactive DG systems shall be installed per CPS Energy regulations.

4. All DG systems shall meet the requirements of the US Environmental Protection Agency (EPA).

5. All DG systems shall meet the requirements of TCEQ.

Drain cleaner. An individual who has completed at least four thousand (4,000) hours working under the supervision of a responsible master plumber as a drain cleaner-restricted registrant, who has fulfilled the requirements of and is registered with the state plumbing licensing board, and who installs cleanouts and removes and resets p-traps to eliminate obstructions in building drains and sewers under the supervision of a responsible master plumber.

Drain cleaner—Restricted registrant. An individual who has worked as a plumber's apprentice under the supervision of a responsible master plumber, who has fulfilled the requirements of and is registered with the state plumbing licensing board, and who clears obstructions in sewer and drain lines through any code-approved existing opening under the supervision of a responsible master plumber.

DWV. Drain, waste, and vent.

Electrical apprentice. An individual, licensed by the state as an apprentice who works under the on-site direct supervision of a master electrician, a journeyman electrician, or a residential wireman, on behalf of an electrical contractor, or employing governmental entity who performs "electrical work" as defined in this chapter.

Electrical contracting. The business of designing, installing, erecting, repairing, or altering electrical wires or conductors to be used for light, heat, power, or signaling purposes. The term includes the installation or repair of ducts, raceways, or conduits for the reception or protection of wires or conductors and the installation or repair of any electrical machinery, apparatus, or system used for electrical light, heat, power, or signaling.

Electrical contractor. A person or entity engaged in electrical contracting.

Electrical maintenance technician. An individual registered with the city as an electrical maintenance technician, on behalf of a building owner or management group who performs limited "electrical maintenance work" as defined in this chapter.

Electrical maintenance work. The replacement or repair of existing electrical appurtenances, apparatus, equipment, machinery, or controls used in connection with the use of electrical energy in, on, outside, or attached to a building, dwelling, structure, property, or premises.

Electrical sign apprentice. An individual, licensed by the state as an electrical sign apprentice who works under the on-site direct supervision of a master electrician, master sign electrician, journeyman electrician, electrical sign journeyman electrician, or electrical sign technician, on behalf of an electrical sign contractor who performs "electrical sign work" as defined in this chapter.

Electrical sign contracting. The business of designing, manufacturing, installing, connecting, reconnecting, or servicing an electric sign, cold cathode, neon gas tubing, or outline gas tubing, or altering electric sign wiring or conductors either inside or outside of a building.

Electrical sign contractor. A person or entity engaged in electrical sign contracting.

Electrical sign technician. An individual registered with the city as a sign technician who works under the general supervision of a master

electrician or master sign electrician on behalf of an electrical sign contractor who performs "electrical sign work" as defined in this chapter.

Electrical sign work. All work and material used in manufacturing, installing, or contracting to install, erecting, hanging, connecting, reconnecting, servicing, or maintaining any electric or neon sign or electric neon tubing for any purpose, whether inside or outside of any building or structure or on any part of the public right-of-way subject to this chapter.

Electrical system. All material, fixtures, devices, and appliances for the purpose of conducting or utilizing electrical energy.

Electrical trade. Installing, contracting to install, maintaining, repairing, connecting, reconnecting, or servicing of any wiring, fixtures, or equipment used for conducting of electricity for which a permit is required by this chapter.

Electrical wiring. Any of the methods and materials described in the National Electrical Code as adopted by the city, except as may be amended by this chapter.

Electrical work. Labor or material used in installing, maintaining, modifying, or extending an electrical wiring system and the appurtenances, apparatus, or equipment used in connection with the use of electrical energy in, on, outside, or attached to a building, residence, structure, property, or premises. The term includes service entrance conductors as defined by the National Electrical Code as adopted by the city.

Electro-mechanical integrity. The condition of an electrical product, electrical system, or electrical equipment installed in accordance with its intended purpose and according to standards at least as strict as the standards provided by the National Electrical Code, the manufacturer's specifications, any listing or labeling on a product, and all other applicable codes or ordinances.

Electric utility company. The electric utility company is CPS Energy, governed by the CPS Energy board of trustees, an appointed board.

Fire chief. The chief officer of the San Antonio Fire Department or a duly authorized representative.

Firm. A business entity including, without limitation, a sole proprietorship, corporation, partnership, or any other entity that is legally recognized in Texas.

Foster care family home. A single independent residential occupancy that is the primary residence of the caregiver and licensed by the state to provide 24-hour care for six (6) or fewer children (including those related to the caregiver) up to the age of eighteen (18) years.

General contractor. A person actively engaged in and is completely responsible for the construction of commercial or industrial structures within the geographical areas to which this chapter applies.

Government agency. An executive, legislative, or judicial agency, department, board, commission, authority, institution, or instrumentality of the federal government, a state, county, municipality, or other political subdivision of the state.

Grease trap interceptor. A plumbing appurtenance installed in a sanitary drainage system to intercept nonpetroleum fats, oils, and greases (FOG) from a wastewater discharge and is identified by retention time, baffle(s), a minimum of two (2) compartments, a minimum total volume of five hundred (500) gallons, and gravity separation. Gravity grease interceptors are generally installed outside. See definition of gravity grease interceptors in section 10-82 of this chapter.

Home improvement contractor. A person or entity engaged in the business of making home improvements or who undertakes, offers to undertake, or agrees to perform any home improvement, whether or not such person is registered pursuant to this chapter. Registrations of a Home Improvement Contractor shall be made per section 10-115. Home improvement means the repair, replacement, remodeling, alteration, conversion, or modernization to any existing building, or any portion of an existing building, not owned by a government agency, which is used or designed to be used as a private residence or dwelling place for not more than two (2) families, and shall include, but not by way of limitation, the construction, replacement or

improvement of driveways, swimming pools, roofs, fences, other similar improvements, and home remodels that include the addition or elimination of any door, window or wall where the work area is equal to or less than fifty (50) percent of the building area. "Home improvement" shall not include:

(1) The construction of a new private residence or dwelling place for not more than two (2) families, and the initial construction of improvements or additions to the same lot or lots provided the addition or improvement is commenced within one (1) year from the date of completion of construction of the new residence or dwelling place; nor

(2) Any renovations or alterations that exceed fifty (50) percent of existing building total area.

IBC. International Building Code, 2024 edition, as amended by the city.

IEBC. International Existing Building Code, 2024 edition, as amended by the city.

IECC. International Energy Conservation Code, 2021 edition, as amended by the city.

IFC. International Fire Code, 2024 edition, as amended by the city.

IFGC. International Fuel Gas Code, 2024 edition, as amended by the city.

IMC. International Mechanical Code, 2024 edition, as amended by the city.

IPC. International Plumbing Code, 2024 edition, as amended by the city.

IRC. International Residential Code, 2024 edition, as amended by the city.

Irrigation installation. Fabrication of an irrigation system using components that include piping, fittings, valves, sprinkler heads and pumps; replacement, repair, alteration, or maintenance of a lawn sprinkler system component; or lawn sprinkler system site preparation including digging, trenching, vibratory flow operation, and final grading.

Irrigation contractor. A person licensed under V.T.C.A., Water Code Ch. 37 and V.T.C.A., Occupations Code Ch. 1903.

Irrigation system. An assembly of component parts permanently installed for the controlled distribution and conservation of water to irrigate landscape vegetation, reduce dust, or control erosion. The term does not include a system used on or by an agricultural operation as defined by V.T.C.A., Agriculture Code § 251.002.

ISPSC. International Swimming Pool and Spa Code, 2024 edition, as amended by the city.

Journeyman electrician. An individual, licensed by the state as a journeyman electrician, who works under the general supervision of a master electrician, on behalf of an electrical contractor or employing governmental entity who performs "electrical work" as defined in this chapter.

Journeyman plumber. An individual, licensed by the state as a journeyman plumber who has met the qualifications for registration as a plumber's apprentice or for licensure as a tradesman plumber-limited licensee, who has completed at least eight thousand (8,000) hours working under the actual installation, alteration, repair, service, and renovating of plumbing, and who has successfully fulfilled the examinations and requirements of the State Plumbing Licensing Board.

Journeyman sign electrician. An individual, licensed by the state as a journeyman sign electrician, who works under the general supervision of a master electrician or a master sign electrician on behalf of an electrical sign contractor who performs "electrical sign work" as defined in this chapter.

Licensed backflow assembly tester. An individual licensed by TCEQ as a backflow assembly tester.

LP gas installers. A person is not required to be licensed under this chapter to perform LPG system installation if the person performs LPG system installation as an LP gas installer licensed under V.T.C.A., Natural Resource Code Ch. 113, Subch. D.

Maintenance electrician. An individual licensed as a maintenance electrician who works under

the general supervision of a master electrician on behalf of an electrical contractor or employing government entity and who performs limited "electrical maintenance work" as defined in this chapter.

Master electrician. An individual licensed by the state as a master electrician who, on behalf of an electrical contractor, electrical sign contractor, or employing governmental entity, performs "electrical work" as defined by this chapter.

Master plumber. An individual licensed in the state as a master plumber who is skilled in the design, planning, superintending, and the practical installation, repair, and service of plumbing; who is knowledgeable about the codes, ordinances, or rules and regulations governing those matters; who alone, or through an individual or individuals under his supervision, performs plumbing work; and who has successfully fulfilled the examinations and requirements of the State Plumbing License Board.

Master sign electrician. An individual licensed by the state as a master sign electrician who, on behalf of an electrical sign contractor, performs "electrical sign work" as defined in this chapter.

Mechanical master. Any person licensed as a mechanical master in compliance with the prerequisites of this chapter who holds himself out to the public as being qualified to do the kind of mechanical work or to contract for the doing of the kind of mechanical work by himself or by the employment of mechanical technicians or mechanical apprentices which his license authorizes him to do.

Mechanical technician. Any person licensed as a mechanical technician, in compliance with the requirements of this chapter, who works for and under the general supervision and direction of a mechanical master, who does mechanical work contracted for by mechanical master, and who does not hold himself out to the public as being qualified to contract for the doing of mechanical work.

Medical gas piping endorsement. A document entitling the holder of a master or journeyman plumbing license to install piping used solely to transport gases used for medical purposes including but not limited to oxygen, nitrous oxide, medical air, nitrogen, and medical vacuum. Also, a document entitling the holder of a plumbing inspector license to inspect medical gas and vacuum system installations.

Multipurpose residential fire protection sprinkler specialist endorsement. A document entitling the holder of a master or journeyman plumber license to install a multipurpose residential fire protection sprinkler system in a one- or two-family dwelling. Also, a document entitling the holder of a plumbing inspector license to inspect a multipurpose residential fire protection sprinkler system.

Moral turpitude. Conduct that is contrary to justice, honesty, or good morals.

NEC. National Electrical Code, NFPA 70, 2020 edition, as amended by article VI of this chapter.

NFPA 70. National Electrical Code, NFPA 70, 2020 edition, as amended by article VI of this chapter.

Occupancy. The purpose for which a building, or part thereof, is utilized or occupied.

Occupant. Any person, agent, firm, or corporation that occupies a building or part thereof as an owner or a tenant.

Onsite. Onsite is defined as follows:

(1) *Work for multifamily dwellings (more than two (2) dwelling units); commercial; and industrial structures or facilities, onsite* shall mean "at the premises or structure where the work is being performed."

(2) *Work for one- and two-family dwellings: Onsite* shall mean "within an unimpeded path of not more than five hundred (500) feet in the same subdivision where the work is being performed."

Open wiring. The types of interior wiring described in the NEC, Articles 334, 338 and 340.

Owner. Has the meaning provided in chapter 1, section 1-2, rules of construction of the City Code and also includes any homeowner, property owner, person authorized to procure services of a

contractor, or any other person who orders, contracts for, or purchases the residential building construction services of a contractor, or the person entitled to the performance of the work of a contractor.

Patio (uncovered). An outdoor space for dining or recreation that adjoins a residence and includes a hard walking surface.

Pipe welder. A person who specializes in the welding of pipes and holds a valid certificate of competency from a recognized testing laboratory based on the requirements of the ASME Boiler and Pressure Vessels Code, Section IX.

Plumber's apprentice. An individual other than a master plumber, journeyman plumber, or tradesman plumber-limited licensee who, as the person's principal occupation, is engaged in learning and assisting in the installation of plumbing, is registered by the state plumbing licensing board, and works under the general supervision of a licensed responsible master plumber and the direct supervision of a licensed plumber. Direct supervision is defined as onsite supervisor.

Plumbing work. Any labor or material used in installing, maintaining, or modifying a plumbing system and the appurtenances, apparatus, or equipment used in connection with the use of plumbing in, on, outside, or attached to a building, residence, structure, property, or premises.

Porch. An outdoor space for dining or recreation that adjoins a residence and includes a hard walking surface with a solid roof to provide protection against the elements.

Porte cochere. A roofed structure that is open on at least three (3) sides and extends from the building entrance over an adjacent driveway and shelters vehicle ingress and egress.

Reclaimed water. Water from sources such as rainwater harvesting, A/C condensate collection, carwashes, ponds, lakes, rivers, or other sources as approved by the building official.

Recycled water. Water that, as a result of a tertiary treatment of domestic wastewater by a public agency, is suitable for a direct beneficial use or a controlled use that would not otherwise occur. The level of treatment and quality of the reclaimed/recycled water shall be approved by TCEQ.

Residential utilities installer (plumbing). An individual who has completed at least two thousand (2,000) hours working under the supervision of a responsible master plumber and a registered plumber's apprentice, who has fulfilled the requirements of and is registered by the State Plumbing License Board, and who constructs and installs yard water service piping for one- and two-family dwellings and building sewers.

Residential appliance. A unit of electrical equipment designed and installed in a dwelling by direct connection to an existing electrical circuit to perform a specific function.

Residential appliance installer. A person, other than a licensed electrician, who is licensed to perform electrical appliance installation.

Residential appliance installation contractor. A business entity, other than an electrical contractor or electrical sign contractor, engaged in residential appliance installation contracting.

Residential building contractor. A person, company, association, agency, or other entity registered with the city and certified, as required by section 10-116 of this chapter, to engage in the business of constructing, structurally altering or enlarging any one- or two-family detached dwelling or townhouse including detached accessory buildings in excess of three hundred (300) square feet in area thereto as regulated by the International Residential Code.

Registered contractor. A residential building contractor, as defined in this chapter, registered with the city to do residential building contracting.

Residential wireman. An individual, licensed by the state as a residential wireman, who may only perform electrical installations in single-family and multifamily dwellings not exceeding four (4) stories and who works under the general supervision of a master electrician, on behalf of an electrical contractor or employing governmental entity who performs "electrical work" as defined in this chapter.

Responsible master plumber. A person licensed as a master plumber who allows his master plumber license to be used by only one plumbing company for the purposes of offering and performing plumbing work under the person's master plumber license; is authorized to obtain permits for plumbing work; assumes responsibility for plumbing work under the person's license; and has submitted a certificate of insurance as required by Section 1301.3576 of the Plumbing License Law and Section 367.3 of the State Plumbing License Board Rules.

RP device. See definition of reduced pressure principle backflow preventer.

SAWS. San Antonio Water System (https://www.saws.org/).

Site work. Site work includes any of the following:

- The changing of grade on a site by more than twelve (12) inches (305 mm) vertical from the existing contours through cut or fill operations.
- The removal of trees or the process of grubbing.
- The construction of a commercial driveway and/or surface parking lot.
- The trenching of a site in order to install underground utilities.

Special inspector. See definition in section 10-30 of this chapter.

State. Texas.

Subcontractor. One who performs services under contract to a contractor.

TCEQ. Texas Commission on Environmental Quality (http://www.tceq.state.tx.us/).

TDLR. Texas Department of Licensing and Regulation (http://www.license.state.tx.us/).

TOPS permit. An electrical permit designed to allow the use of an existing or new electrical distribution and/or service prior to obtaining a certificate of occupancy. Connection to a service also requires the approval of CPS Energy.

Tradesman plumber—Limited license. An individual, who has completed at least four thousand (4,000) hours working under the direct supervision of a journeyman or master plumber as a registered plumber's apprentice, who has passed the required examination and fulfilled the other requirements of the state plumbing license board, who constructs and installs plumbing for one- and two-family dwellings under the supervision of the responsible master plumber, and who has not met or attempted to meet the qualifications for a journeyman plumber license.

Working days. Days exclusive of federal, state, or local holidays and weekends unless otherwise stated.
(Ord. No. 2025-01-30-0075, § 1(Att. A), 1-30-25)

Secs. 10-26—10-28. Reserved.

ARTICLE III. BUILDING CODE

Sec. 10-29. Adoption of International Building Code (2024).

The 2024 edition of the International Building Code, promulgated by the International Code Council, Chapters 2 through 35, and Appendices H and P is hereby adopted and incorporated in this article by reference as if fully set forth, except as it is amended by the following provisions of section 10-30. Provisions of this article are in addition to the provisions of the International Building Code. The following provisions coinciding with the provisions of the International Building Code supersede, repeal, or delete, when indicated, the corresponding provisions of the International Building Code.

All references within the model codes to any building, electrical, fuel gas, mechanical, plumbing, energy conservation, existing building, or swimming pool code shall be construed to be a reference to the respective building, electrical, fuel gas, mechanical, plumbing, energy conservation, existing building, or swimming pool code specifically adopted by reference in articles II through XIV of this chapter.
(Ord. No. 2025-01-30-0075, § 1(Att. A), 1-30-25)

Sec. 10-30. Amendments to the adopted chapters of the International Building Code (2024).

Additions to the International Building Code are shown as underlined text. Deletions to the *International Building Code* are shown as bracketed [~~strikethroughs~~].

Chapter 2, DEFINITIONS, is amended for ADOBE CONSTRUCTION, AMBULATORY CARE FACILITY, FIRE AREA and SPECIAL INSPECTOR to read as follows:

[BS] ADOBE ~~CONSTRUCTION~~ MASONRY. A type of earthen [~~C~~]construction in which the [~~exterior load-bearing and nonload-bearing walls and partitions are of~~] unfired clay based masonry units are formed without compression. [~~, and floors, roofs and interior framing are wholly or partly of wood or~~] May contain sand, aggregates, organic or inorganic binders, stabilizers, and other *approved* materials.

[BG] AMBULATORY CARE FACILITY. Buildings or portions thereof used to provide medical, surgical, psychiatric, nursing, dialysis, or similar care on a less than 24-hour basis to persons who are rendered incapable of self-preservation by the services provided or staff has accepted responsibility for care recipients already incapable.

[B] FIRE AREA. The aggregate floor area enclosed and bounded by *fire walls, fire barriers, exterior walls*, or *horizontal assemblies* of a building. Areas of the building not provided with surrounding walls shall be included in the fire area if such areas are included within the horizontal projection of the roof or floor next above.

Exception: Outdoor covered areas shall not be considered fire areas, nor shall they be considered as part of the fire area of a connected building where all of the following conditions are met:

1. The outdoor covered area is a Group A2 Occupancy less than 1,000 ft^2 or is a Group A3 Occupancy. If multiple Group A2 Occupancy outdoor covered areas are proposed, then the aggregate area of all of these areas shall be less than 1,000 ft^2 or separated by a minimum of 20 feet from each other.
2. The outdoor covered area is open on at least three sides and open a minimum of 50% of the perimeter of the area covered. In order to be considered "open" for the purpose of this exception, an open side shall be at least 50% open with the open area uniformly distributed to prevent the accumulation of smoke and toxic gases.
3. The outdoor covered area shall have adequate independent means of egress such that the occupants of the outdoor covered area are not required to egress through a connected or adjacent building.

[BS] SPECIAL INSPECTOR. A qualified person employed or retained by an approved agency who shall prove to the satisfaction of the registered design professional in responsible charge and [~~approved by~~] the *building official* that he/she [~~as having~~] has the competence necessary to inspect a particular type of construction requiring special inspection.

Chapter 2, DEFINITIONS, is amended to add COMPRESSED EARTH BLOCK, EARTHEN CONSTRUCTION and RAMMED EARTH to read as follows:

COMPRESSED EARTH BLOCK or CEB: A type of *earthen construction* in which the *masonry units* are individually formed by means of mechanical compression. May contain stabilizers or other approved materials.

EARTHEN CONSTRUCTION. A type of *masonry* construction in which the *load-bearing* and/or *non-load bearing* walls are composed primarily of a matrix of inorganic soil materials such as clay, sand and silt that have been mechanically formed and have not been burned or fired in a kiln.

Stabilized. *Earthen construction* to which complimentary stabilizers such as lime or Portland cement are added to the soil matrix to limit water absorption, increase structural stability, and increase durability.

Unstabilized. Earthen construction that does not meet the definition of "Stabilized."

RAMMED EARTH. A type of earthen construction in which monolithic wall panels are formed by mechanically compressing successive lifts of the soil matrix within a temporary formwork. May contain stabilizers or other approved materials.

SECTION 304, BUSINESS GROUP B, is amended by adding Fire Stations in the group as follows with remaining text to remain as written:

304.1 Business Group B. Business Group B occupancy includes, among others, the use of a building or structure, or a portion thereof, for office, professional or service-type transactions, including storage of records and accounts. Business occupancies shall include, but not be limited to, the following:

Fire stations (including the dormitory, apparatus bays, living and offices areas) if installed with an automatic smoke detection system in accordance with 907.2.9.3 and smoke alarms installed in accordance with 907.2.11.2 through 907.2.11.4.

Section 310.4, Residential Group R-3, is amended by removing Emergency services living quarters and adding Foster Care Family Homes to the group as follows with remaining text to remain as written:

310.4 Residential Group R-3. Residential Group R-3 occupancies where the occupants are primarily permanent in nature and not classified as Group R-1, R-2, R-4 or I, including:

Foster Family Home - A childcare facility certified or licensed by the Texas Department of Human services which provides care twenty-four (24) hours a day for not more than six (6) children.

Section [F] 501.2, Address identification, is amended to read as follows:

[F] 502.1 Address identification. All existing commercial and industrial buildings issued certificates of occupancy after September 10, 2006, and all new [~~New and existing~~] buildings shall be provided with approved address identification [~~numbers or letters~~]. The address identification shall be legible and placed in a position that is visible from the street or road fronting the property. Address identification characters shall contrast with their background. Address numbers shall be Arabic numbers or alphabetical letters. Numbers shall not be spelled out. Each character shall be a minimum of six inches [~~4 inches (102 mm)~~] high with a minimum stroke width of ½ inch (12.7 mm). For buildings with individual suites, the suite numbers shall be a minimum of four inches high with a minimum stroke width of ½ inch (12.7 mm). Where required by the fire code official, address identification shall be provided in additional approved locations to facilitate emergency response. Where access is by means of a private road and the building address cannot be viewed from the public way, a monument, pole, or other approved sign or means shall be used to identify the structure. Address numbers shall be maintained.

Section 503.1.4, Occupiable roofs, is amended to read as follows with all other text to remain as is:

503.1.4 Occupiable roofs. A roof level or portion thereof shall not be used as an occupiable roof unless the occupancy of the roof is an occupancy that is permitted by Table 504.4 for the story immediately below the roof. The area of the occupiable roofs shall not be included in the building area as regulated by Section 506. An occupiable roof shall not be included in the building height or number of stories as regulated by Section 504, provided that the penthouses and other enclosed rooftop structures comply with Section 1511. Rooftop canopies complying with Section 3105 and enclosed rooftop structures shall not exceed 1/3 of the occupied rooftop area. Enclosed rooftop structures shall not contain habitable spaces.

Section 503.1, General, is amended by adding Section 503.1.5, Outdoor Covered Areas for Group A2 Occupancies, as follows:

503.1.5 Outdoor Covered Areas for Group A2 Occupancies. Where an outdoor covered patio meets ALL of the conditions listed, the

covered patio is NOT required to be included in the calculated "building area" of the structure nor does it require any "types of construction separation" or "occupancy separation" to meet the City's Building Code.

1. The outdoor covered area is a Group A2 Occupancy less than 1,000 SF. If multiple covered areas are proposed, then the aggregate area of all of these areas shall be less than 1,000 SF or each additional area shall be separated by a minimum of 20 feet from each other.
2. The outdoor covered area is open on at least three sides and open a minimum of 50 percent of the perimeter of the area covered. In order to be considered "open" for the purpose of the exception, an open side shall be at least 50 percent open with the open area uniformly distributed to prevent the accumulation of smoke and toxic gases.
3. The outdoor covered area shall have adequate independent means of egress such that the occupants of the outdoor covered area are not required to egress through a connected or adjacent building.
4. Outdoor covered areas shall not be built within 10 feet of a property line (real or imaginary).
5. Outdoor covered areas of wood construction shall be built with fire retardant treated wood as per IBC Section 2303.2 or protected with a fire-resistance rated material approved by the city.
6. The calculated occupant load of the outdoor covered area(s) shall contribute to the occupant load of the existing building for calculation of a total occupant load and for determination of the number of required plumbing fixtures per Section 403 of the IPC.

Section 706.1.1, Party Walls, Exception 2 is deleted as follows, all other Code text remains as is:

[~~2. Party walls and fire walls are not required on lot lines dividing a building for ownership purposes where the aggregate height and area of the portions of the building located on both sides of the lot line do not exceed the maximum height and area requirements of this code. For the building official's review and approval, the official shall be provided with copies of dedicated access easements and contractual agreements that permit the owners of portions of the building located on either side of the lot line access to the other side for purposes of maintaining fire and life safety systems necessary for the operation of the building.~~]

Table 705.9, Maximum area of exterior wall openings based on fire separation distance and degree of opening protection, footnote 'j' is revised as follows with remaining text to remain as written:

j. The area of openings in a building containing only a Group U occupancy shade structure, private garage or carport with a fire separation distance of 5 feet or greater shall not be limited.

Section 901.5, Acceptance tests, is amended as follows:

901.5 Acceptance tests. Fire protection systems shall be tested in accordance with the requirements of this code and the International Fire Code. Where required, the tests shall be conducted in the presence of the Building Official [~~building official~~]. Tests required by this code, the International Fire Code and the standards listed in this code shall be conducted at the expense of the owner or the owner's authorized agent. It shall be unlawful to occupy portions of a structure until the required fire protection systems within that portion of the structure have been tested and approved. A representative of the Fire Marshal shall witness all required acceptance tests for all these systems.

Section [F] 901.6.2.1, High-rise buildings, is amended as follows:

[F] 901.6.2.1 High-rise buildings. For high-rise buildings, an integrated testing plan shall be [~~comply with NFPA 4~~] approved by the fire code official, with an integrated test performed prior to issuance of the certificate of occupancy

and at intervals not exceeding 10 years, unless otherwise specified by an integrated system test plan [~~prepared in accordance with NFPA~~ 4] approved by the fire code official. If an equipment failure is detected during integrated testing, a repeat of the integrated test shall not be required, except as necessary to verify operation of fire protection or life safety functions that are initiated by equipment that was repaired or replaced.

Section [F] 901.6.2.2, Smoke control systems, is amended as follows:

[F] 901.6.2.2 Smoke control systems. Where a fire alarm system is integrated with a smoke control system as outlined in Section 909, an integrated testing plan shall be approved by the fire code official [~~comply with NFPA~~ 4], with an integrated test performed prior to issuance of the certificate of occupancy and at intervals not exceeding 10 years, unless otherwise specified by an integrated system test plan [~~prepared in accordance with NFPA~~ 4] approved by the fire code official. If an equipment failure is detected during integrated testing, a repeat of the integrated test shall not be required, except as necessary to verify operation of fire protection or life safety functions that are initiated by equipment that was repaired or replaced.

SECTION 901, GENERAL, is amended by adding Section 901.8, Permits, to read as follows:

901.8 Permits. Permits for fire protection systems shall be required as set forth in the *International Fire Code*, as amended.

Section [F]903.1, General, is amended by adding Section [F]903.1.2, Safety Factor, to read as follows:

[F] 903.1.2 Safety factor. Automatic sprinkler systems shall be designed with a minimum safety factor of 5 PSI or 10% of required pressure (whichever is greater) taken at the source for the hydraulically most demanding design area.

Section [F] 903.2, Where required, is amended to read as follows with the Exception remaining as written:

[F] 903.2. Where required. Approved automatic sprinkler systems in new buildings and structures shall be provided in the locations described in Sections 903.2.1 through 903.2.12. Where existing open buildings and structures are modified such that, they are no longer open on at least three sides and open a minimum of 50% of the perimeter of the area covered, fire sprinklers systems shall be installed for these change in occupancies in accordance with the applicable requirements in this section. In order to be considered "open" for the purpose of this requirement, an open side shall be at least 50% open with the open area uniformly distributed to prevent the accumulation of smoke and toxic gases.

Section [F] 903.2.1, Group A, is amended to read as follows:

[F] 903.2.1 Group A. An automatic sprinkler system shall be provided throughout buildings and portions thereof used as Group A occupancies as provided in this section. For Group A-1, A-2, A-3 and A-4 occupancies, the automatic sprinkler system shall be provided throughout the story where the fire area containing the Group A-1, A-2, A-3 or A-4 occupancy is located, and throughout all stories from the Group A occupancy to, and including, the levels of exit discharge serving the Group A occupancy. For Group A-5 occupancies, the automatic sprinkler system shall be provided in the spaces indicated in Section [F] 903.2.1.5.

Exception: A one-story detached open pavilion consisting of only a roof and supporting columns that meets all of the following criteria shall not require fire sprinklers.

1. The detached open pavilion is a Group A2, Group A3 or Group A4 Occupancy.
2. The detached open pavilion is less than 12,000 ft^2 in area.
3. The detached open pavilion is separated from adjacent structures by minimum of 30 feet.
4. The detached open pavilion is open on at least three sides and open a minimum of 50% of the perimeter of the area covered. In order to be considered "open" for the purpose of this exception, an open side

shall be at least 50% open with the open area uniformly distributed to prevent the accumulation of smoke and toxic gases.

5. The detached open pavilion has a minimum of 300% of the total number of required exits and a minimum of 300% of total exit minimum width or required capacity based upon the occupant load of the pavilion.

Section 903.2.1.3, Group A-3, is amended by adding the following item to the list of conditions:

[F] 903.2.1.3 Group A-3. An automatic sprinkler system shall be provided throughout stories containing Group A-3 occupancies and throughout all stories from the Group A-3 occupancy to and including the levels of exit discharge serving that occupancy where one of the following conditions exists:

1. The fire area exceeds 12,000 square feet (1115 m^2).
2. The fire area has an occupant load of 300 or more.
3. The fire area is located on a floor other than a level of exit discharge serving such occupancies.
4. Any Group A-3 occupancy that serves alcohol shall comply with the fire sprinkler requirements for Group A-2 occupancies in Section 903.2.1.2.

Section [F] 903.2.6, Group I, is hereby amended by amending exception 2 as follows:

[F] 903.2.6 Group I. An Automatic sprinkler system shall be provided throughout buildings with a Group I fire area.

Exceptions:

1. An automatic sprinkler system installed in accordance with Section 903.3.1.2 shall be permitted in Group I-1, Condition 1 facilities.
2. An automatic sprinkler system is not required where Group I-4 child day care facilities are at the level of exit discharge and where every room where care is provided has not fewer than one exterior exit door.
3. In buildings where Group 1-4 daycare is provided on levels other than the level of exit discharge, an automatic sprinkler system in accordance with Section 903.3.1.1 shall be installed on the entire floor where care is provided, all floors between the level of care and the level of exit discharge, and all floors below the level of exit discharge other than areas classified as an open parking garage.

Section [F] 903.2.8, Group R, is amended by adding the following exception:

[F] 903.2.8 Group R. An *automatic sprinkler system* installed in accordance with Section 903.3 shall be provided throughout all buildings with a Group R *fire area*.

Exception: Foster care family homes as defined in Section 10-25.

Section [F] 903.2.11.1.1, Opening dimensions and access, is amended by adding the following sentence to the end of that section to read as follows:

[F] 903.2.11.1.1 Opening dimensions and access. Openings shall have a minimum dimension of not less than 30 inches (762 mm). Access to such openings shall be provided for the fire department from the exterior and shall not be obstructed in a manner such that firefighting or rescue cannot be accomplished from the exterior. Openings shall have a finished sill height which is no more than 44 inches (1117 mm) above the finished floor level of the story which the opening is serving.

Section [F] 903.2, Where required, is amended by adding Section [F] 903.2.13, Porte-cocheres, to read as follows:

[F] 903.2.13 Porte-cocheres. All porte-cocheres shall be protected with fire sprinklers.

Exception: Porte-cocheres of non-combustible construction under 1,000 square feet.

Section [F] 903.3.1.1.1, Exempt locations, is amended by adding item 6 as follows:

[F] 903.3.1.1.1 Exempt locations. Automatic sprinklers shall not be required in the following rooms or areas where such rooms or areas are protected with an *approved* automatic fire detection system in accordance with Section 907.2 that will respond to visible or invisible particles of combustion. Sprinklers shall not be omitted from any room merely because it is damp, of fire-resistance-rated construction or contains electrical equipment.

6. Equipment storage areas of fire stations where sprinklers are considered undesirable because of the nature of the contents, including firefighting apparatus and specialized equipment, when approved by the fire code official.

Section [F] 903.3.1.2, NFPA 13R sprinkler systems, is amended by amending [F] 903.3.1.2.3, Attics, and by adding Section [F] 903.3.1.2.4, Elevator machine room, to read as follows:

[F] 903.3.1.2.3 Attics. Attic protection shall be provided as follows:

1. Attics that are used or intended for living purposes or storage shall be protected by an *automatic sprinkler system*.

2. Where fuel-fired equipment is installed in an unsprinklered attic, not fewer than one quick-response intermediate temperature sprinkler shall be installed above the equipment.

3. Where located in a building of Type III, Type IV or Type V construction designed in accordance with Section 510.2 or 510.4, attics not required by Item 1 to have sprinklers shall comply with one of the following if the roof assembly is located more than 55 feet (16 764 mm) above the lowest level of required fire department vehicle access needed to meet the provisions in Section 503 of the International Fire Code.

3.1 Provide *automatic sprinkler system* protection.

3.2 Construct the attic using noncombustible materials.

3.3 Construct the attic using fire-retardant-treated wood complying with Section 2303.2.

[~~3.4 Fill the attic with noncombustible insulation.~~]

The height of the roof assembly shall be determined by measuring the distance from the lowest required fire vehicle access road surface adjacent to the building to the eave of the highest pitched roof, the intersection of the highest roof to the exterior wall, or the top of the highest parapet, whichever yields the greatest distance. For the purpose of this measurement, required fire vehicle access roads shall include only those roads that are necessary for compliance with Section 503 of the *International Fire Code*.

4. Group R-4, Condition 2 occupancy attics not required by Item 1 to have sprinklers shall comply with one of the following:

4.1 Provide *automatic sprinkler system* protection.

4.2 Provide a heat detection system throughout the attic that is arranged to activate the building fire alarm system.

4.3 Construct the attic using noncombustible materials.

4.4 Construct the attic using fire-retardant-treated wood complying with Section 2303.2.

[~~4.5 Fill the attic with noncombustible insulation.~~]

[F] 903.3.1.2.4 Elevator machine room. In all R occupancies or occupancies using an NFPA 13R system with elevator systems, the elevator machine room shall be sprinklered per NFPA 13.

SECTION 903, AUTOMATIC SPRINKLER SYSTEMS, is amended by amending [F] 903.4.1,

Electronic supervision, to add Exception 9, and adding Section [F] 903.6, Separation from non-sprinklered areas, to read as follows:

[F] 903.4.1 Electronic Supervision. Valves controlling the water supply for *automatic sprinkler* systems, pumps, tanks, water levels and temperatures, critical air pressures and waterflow switches on all automatic sprinkler systems shall be electrically supervised by a listed *fire alarm control unit*.

Exceptions:

9. Valves located outside buildings or in a vault that are sealed or locked in the open position.

[F] 903.6 Separation from non-sprinklered areas. Unless otherwise exempted by this code or the 2024 *International Fire Code* (IFC) or required to be of a higher fire resistive construction by this code or the IFC, a minimum one-hour fire barrier constructed in accordance with Chapter 7 shall be between sprinklered and non-sprinklered areas within a building.

Section [F] 904.2.2, Commercial hood and duct systems, is amended by adding Section [F] 904.2.2.1, Permit required, as follows:

[F] 904.2.2.1 Permit required. Prior to installation, a licensed contractor shall obtain a permit for automatic fixed pipe extinguishing system from the Fire Marshal's office. At the time a permit request is made, a diagram detailing exactly what will be installed at the "permit site" shall be submitted for Fire Department review and files. The diagram shall include:

1. Approximate length of pipe and elbows
2. Distance of nozzles from grill area
3. Exact size, type, and number of nozzles
4. Number and location of fusible links
5. Size of cooking surface area, hood, and vent area
6. Location of manual pull
7. Location of automatic gas or electric shut-off, electric shut-off is to be a total shut-off
8. The location of the automatic extinguishing system in the room and distance of exits must be shown

The installation is not complete until all automatic electric or gas shut offs are installed. Permitee is responsible for the total installation. Permitee shall call Fire Prevention for a final inspection after the system is completed. The fire inspector shall require an operations test of the system be performed on the final inspection. Agent discharge shall not be required if: (a) Installer certifies in writing that system has been designed and installed in accordance with manufacturers specifications, and (b) an air discharge test is performed.

Section [F] 905.1, General, is amended by adding Section [F] 905.1.1, Safety factor, as follows:

[F] 905.1.1 Safety factor. All standpipe systems with the exception of manual standpipes shall be designed with a minimum safety factor of 5 PSI or 10% of required pressure (whichever is greater) taken at the source for the hydraulically most demanding system and/or outlet.

Section [F] 905.2, Installation standard, is amended by adding Section [F] 905.2.1, Class-I reducers, as follows:

[F] 905.2.1 Class-I reducers. A 2.5 inch by 1.5-inch reducer shall be provided on Class-I standpipe connections with caps and chains.

Section [F] 905.4, Location of Class I standpipe hose connections, is amended as follows with all other code text to remain as written:

[F] 905.4 Location of Class I standpipe hose connections. Class I standpipe hose connections shall be provided in all of the following locations:

1. In every required *interior exit stairway* or *exterior exit stairway*, a hose connection shall be provided for each story above and below *grade plane*. Hose connections shall be located at [~~the main~~] an

intermediate [~~floor~~] landing between stories unless otherwise *approved* by the fire code official.

[~~Exception: A single hose connection shall be permitted to be installed in the open corridor or open breezeway between open stairs that are not greater than 75 feet (22 860 mm) apart.~~]

SECTION [F] 906.2, General requirements, is amended by adding Section [F] 906.2.1, Travel distance, as follows:

[F] 906.2.1 Travel distance. Travel distance is calculated from a point in the occupancy to the location of fire extinguisher located on the same floor level in accordance with the maximum distances listed in [F] Table 906.3(1) or [F] Table 906.3(2). Travel distance is calculated per floor when determining travel distance to a fire extinguisher in multi-story buildings.

Section [F] 906, PORTABLE FIRE EXTINGUISHERS, is amended by adding Section [F]906.5.1, Conspicuous locations in Group R occupancies, and Section [F] 906.11, Inspections of non-rechargeable fire extinguishers in R occupancies as follows:

[F] 906.5.1 Conspicuous locations in Group R occupancies. In addition to other areas listed herein or in NFPA 10, fire extinguishers in R occupancies may also be placed in any of the following location to satisfy the requirements:

1. On a wall in the unit;
2. Inside a closet, cabinet or pantry as long as the door has a label indicating that there is a fire extinguisher inside;
3. Inside a mechanical closet as long as the door has a label indicating that there is a fire extinguisher insider; or
4. Inside storage closets as long as the door has a label indicating that there is a fire extinguisher insider and there is no locking device on the door that requires a key or combination to open it.

If methods 2, 3, or 4 are utilized, the following must be done at the time of each new move-in: (i) A label or notice indicating that there is a fire extinguisher inside the area must be placed on the door; or (ii) a notice of the location of the fire extinguisher must be given to the resident.

[F] 906.11 Inspections of non-rechargeable fire extinguishers in R occupancies. As an alternative to required fire extinguisher annual inspections conducted by licensed and certified personnel, the owner or management company, their employees or agents are authorized to inspect non-rechargeable fire extinguishers located in R occupancies on an annual basis to ensure that:

1. The extinguisher's service life is not beyond the manufacturer's recommended warranty date;
2. Pin has not been removed;
3. The indicator gauge is in the green or good position;
4. Installed in the proper location per section 906.5;
5. No obvious physical damage, corrosion, or nozzle blockage is present; and
6. The operating instructions are present and legible.

The owner or owner's agent shall repair or replace a fire extinguisher if any of the deficiencies noted in items 1-6 above are discovered on inspection.

While inspecting the non-rechargeable fire extinguishers, the inspection personnel shall cause the contents of the non-rechargeable fire extinguishers to be stirred by turning the fire extinguishers upside down at least two times.

In lieu of placing tags or labels on non-rechargeable fire extinguishers to verify inspection, a log or inspection sheet may be maintained indicating compliance with all the requirements above.

SECTION 907, FIRE ALARM AND DETECTION SYSTEMS, is amended by repealing Section [F] 907.1.2, Fire alarm shop drawings, and

replacing with [F] 907.1.2, Fire alarm shop drawings, and adding Section [F] 907.1.4, Testing of Fire Alarm Systems, as follows:

[F] 907.1.2 Fire alarm shop drawings. Shop drawings for fire alarm systems shall be submitted for review and approval prior to system installation, and shall include, but not be limited to, all of the following where applicable to the system being installed:

1. A floor plan that indicates the use of all rooms.
2. Locations of alarm-initiating devices.
3. Locations of alarm notification appliances, including candela ratings for visible alarm notification appliances and tap values for speakers when installed.
4. Design minimum audibility level for occupant notification.
5. Location of fire alarm control unit, transponders, and notification power supplies.
6. Annunciators.
7. Power connection.
8. Battery calculations. Calculations shall be completed in accordance with NFPA 72, Section 10.5.6.3.1 and 10.5.6.3.2
9. Conductor type and sizes.
10. Voltage drop calculations. Calculations shall be completed using a maximum starting voltage of 20.4 volts for 24-volt systems and 10.2 volts for 12-volt systems.
11. Manufacturers' data sheets indicating model numbers and listing information for equipment, devices, and materials.
12. Details of ceiling height and construction.
13. The interface of fire safety control functions.
14. Classification of the supervising station.
15. For in-building emergency voice alarm communication systems and mass notification systems, speaker circuit load calculations providing a total dB loss at the end of each speaker circuit.
16. Acoustically distinguishable space classifications and designations in accordance with NFPA 72, 2019 Edition Chapter 8, indicated on the floor plans in each applicable area with a designation and classification legend provided in tabular form.
17. When utilizing acoustic modeling software to determine acoustically distinguishable spaces, include reports from the modeling software with the submittal package.
18. For aspirating smoke detection systems, full transport time calculations shall be provided with the submittal package.
19. For aspirating smoke detection systems, a dimensioned plan view and dimensioned isometric view of the protected area shall be provided with the submittal package.
20. For fire alarm control unit replacement projects, to include those with minor modifications to the existing system, that do not include the addition of initiating or signaling devices, with the exception of off premise communicators, a detailed fire alarm riser diagram that provides circuits and specific locations of all control equipment, annunciation equipment, power supplies, initiating and signaling devices shall be provided in the submittal package. Additionally, standby battery calculations for the new fire alarm control unit only, a scope of work narrative signed by the registered design professional in responsible charge or licensed planner, and a manufacturer's equipment data sheet for the new fire alarm control unit shall be provided in the submittal package. If a floor plan that reflects the configuration of the existing system is available, it shall be permitted to be submitted in lieu of the detailed riser diagram.

[F] 907.1.4 Testing of fire alarm systems. The following are required at the time of fire alarm acceptance testing unless approved by the Fire Marshal or his/her designee:

1. The written statement required by NFPA 72, Section 7.2.1
2. A copy of the Record of Completion as required by NFPA 72, Section 7.2.1
3. A copy of the Texas Department of Insurance Fire Alarm Installation Certificate
4. Approved plans bearing the original stamp and signature of the fire alarm plan reviewer
5. Original permit is on site.
6. Fire Review Activity form (plan review comments) if provided.
7. Proof of current licensing of the technician performing the tests.
8. Written approvals from the AHJ if partial installation inspections are requested by the contractor or technician.
9. Site specific software for software-based systems.
10. Written sequence of operation.
11. All testing equipment necessary to conduct the test (i.e., decibel meter, flashlight, intelligibility meter, etc.)

Section [F] 907.2.1.2, Emergency voice/alarm communication captions, is repealed in its entirety.

Section [F] 907.2.3, Group E, is amended to read as follows with remaining text to remain as written:

[F] 907.2.3 Group E. A manual fire alarm system that initiates the occupant notification signal utilizing an emergency voice/alarm communication system meeting the requirements of Section 907.5.2.2 and installed in accordance with Section 907.6 shall be installed in all newly constructed Group E [~~occupancies~~] occupancy campus complexes. Where automatic sprinkler systems or smoke detectors are installed, such systems or detectors shall be connected to the building fire alarm system.

Section [F] 907.2.7.1.1, Occupant notification, is repealed in its entirety.

Section [F] 907.2.8.2, Automatic smoke detection system, is hereby amended to read as follows:

[F] 907.2.8.2 Automatic smoke detection system. An automatic smoke detection system that activates the occupant notification system in accordance with Section 907.5 shall be installed throughout all interior corridors serving sleeping units. The automatic smoke detection system requirement is met only by the installation of smoke or beam detectors whenever possible. If environmental conditions do not allow the installation of smoke detectors, fire alarm heat detectors may be used on a limited basis when approved by the fire code official.

Exception: An automatic smoke detection system is not required in buildings that do not have interior corridors serving sleeping units and where each sleeping unit has a means of egress door opening directly to an exit or to an exterior exit access that leads directly to an exit.

Section [F] 907.2.13.1.2, Duct smoke detection, is amended to read as follows:

[F] 907.2.13.1.2 Duct smoke detection. Duct smoke detectors complying with Section 907.3.1 shall be located in accordance with the NFPA 90A: Standard for the Installation of Air-Conditioning and Ventilating Systems or as follows:

1. In the main return air and exhaust air plenum of each air-conditioning system having a capacity greater than 2,000 cubic feet per minute (cfm) (0.94 m^3/s). Such detectors shall be located in a serviceable area downstream of the last duct inlet.
2. At each connection to a vertical duct or riser serving two or more stories from a return air duct or plenum of an air-conditioning system. In Group R-1 and R-2 occupancies, a smoke detector is allowed to be used in each return air

riser carrying not more than 5,000 cfm (2.4 m^3/s) and serving not more than 10 air-inlet openings.

Section [F] 907.2.13.2, Fire department communication system, is repealed in its entirety.

Section [F] 907.2, Where required - new buildings and structures, is amended by adding Section [F] 907.2.24, Fire alarm systems for property protection, to read as follows:

[F] 907.2.24 Fire alarm systems for property protection. Fire alarm systems dedicated solely to the protection of property are permitted to be installed in facilities where a fire alarm system is not required by other sections of this code, or the International Building Code provided the following conditions are met:

1. Any and all automatic detection is installed, located, and maintained in accordance with the requirements of NFPA 72 and a documentation cabinet as required by NFPA 72 is provided and installed.
2. The installed system is monitored by a supervising station which provides remote, proprietary, or central station service.
3. One manual means of activation is installed in an *approved* location.
4. Where the fire alarm system control unit is located in an area that is not readily accessible to response personnel, a remote fire alarm system annunciator panel is installed.

Section [F] 907.3.1, Duct smoke detectors, is amended to read as follows:

[F] 907.3.1 Duct smoke detectors. Smoke detectors installed in ducts shall be *listed* for the air velocity, temperature, and humidity present in the duct. Duct smoke detectors shall be connected to the building's fire alarm control unit where a fire alarm system is required by Section 907.2. Activation of a duct smoke detector shall initiate a visible and audible supervisory signal at a *constantly attended location* and shall perform the intended fire safety function in accordance with this code, NFPA 90A: Standard for the Installation of Air-Conditioning and Ventilating Systems and the *International Mechanical Code*. In facilities that are required to be monitored by a supervising station, duct smoke detectors shall report only as a supervisory signal and not as a fire alarm. They shall not be used as a substitute for required open area detection.

Exceptions:

[~~1. The supervisory signal at a constantly attended location is not required where duct smoke detectors activate the building's alarm notification appliances.~~]

1. [~~2.~~] In occupancies not required to be equipped with a fire alarm system, actuation of a smoke detector shall activate a visible and an audible signal in an *approved* location. Smoke detector trouble conditions shall activate a visible or audible signal in an *approved* location and shall be identified as air duct detector trouble.
2. For fire alarm systems which cannot be programmed for supervisory signals, duct detectors shall be allowed to activate the alarm signal.

Section [F] 907.3., Fire safety functions, is amended by adding Section [F] 907.3.5, Fire alarm systems - emergency control, as follows:

[F] 907.3.5 Fire alarm systems - emergency control. At a minimum, the following functions, where provided, shall be activated by the fire alarm system:

1. Elevator capture and control in accordance with ASME/ANSI A17.1-2019, Safety Code for Elevators and Escalators.
2. Release of automatic door closures and hold open devices.
3. Stairwell and/or elevator shaft pressurization.
4. Smoke management and/or smoke control systems.
5. Initiation of automatic fire extinguishing equipment.

6. Emergency lighting control.
7. Unlocking of doors.
8. Emergency shutoff of gas and fuel supplies that may be hazardous provided the continuation of service is not essential to the preservation of life.
9. Emergency shutoff of audio systems for sound reinforcement or entertainment (i.e., music systems, systems for announcement and broadcast which are separate from public address systems) provided that such systems are not used to issue emergency instructions.
10. Emergency shutoff of systems used for the creation of displays or special effects (i.e. lighting effects, laser light shows, projection equipment).

Section [F] 907.4.2.1, Location, is amended to add the Exception to read as follows:

[F] 907.4.2.1 Location. Manual fire alarm boxes shall be located not more than 5 feet (1524 mm) from the entrance to each *exit*. In buildings not protected by an automatic *sprinkler system* in accordance with Section 903.3.1.1 or 903.3.1.2, additional manual fire alarm boxes shall be located so that the distance of travel to the nearest box does not exceed 200 feet (60 960 mm).

Exception: Where construction of the building prohibits the proper installation of a pull station (e.g., glass walls, interior brick, or rock walls), a pull station shall be allowed to be located in the normal path of egress, where approved by the Fire Marshal or his/her designee.

Section [F] 907.5.1.1, Presignal feature, is amended to read as follows:

[F] 907.5.1 Presignal feature and positive alarm sequences. A presignal feature or Positive Alarm Sequence as defined in NFPA 72 shall be provided only where *approved* and the fire department. Request to use a presignal feature or a Positive Alarm Sequence must be submitted in writing to the Fire Marshal and approval granted before installation. The presignal or Positive Alarm Sequence shall be annunciated at an approved, *constantly attended location*, having the capability to activate the occupant notification system in the event of fire or other emergency. When approved by the fire code official, the presignal feature or Positive Alarm Sequence shall be implemented in accordance with the requirements of NFPA 72.

Section [F] 907.5.2.1, Audible alarms, is amended by adding Section [F] 907.5.2.1.4, Testing of audible alarms in occupancies other than Group R, and Section [F] 907.5.2.1.5, Testing of audible alarms in Group R occupancies, as follows:

[F]907.5.2.1.4 Testing of audible alarms in occupancies other than Group R. Audibility levels for all occupancies other than Group R shall be in accordance with the public mode requirements of NFPA 72 and shall be tested utilizing the following criteria:

1. A sound pressure level meter, which has been calibrated within the last calendar year, and supplied by the fire alarm system installing contractor, shall be utilized to obtain readings. The sound pressure level meter will be held five feet above floor, pointed in the direction of the audible device.
2. All doors within the occupancy, including the bathroom and balcony doors shall be in the closed position.
3. Measurements shall be taken in the most remote areas of the occupancy first, including bathrooms and balconies.
4. Initial measurements to confirm the average ambient sound level in each area shall be taken.
5. The fire alarm system shall be activated and measurements in the tested areas shall be retaken and compared with the requirements.

[F] 907.5.2.1.5 Testing of audible alarms in Group R occupancies. Audibility levels for all Group R occupancies shall be in

accordance with the requirements of Section [F] 907.5.2.1.1, and shall be tested utilizing the following criteria:

1. A sound pressure level meter, which has been calibrated within the last calendar year, and supplied by the fire alarm system installing contractor, shall be utilized to obtain readings. The sound pressure level meter will be held five feet above floor, pointed in the direction of the audible device.
2. All doors within the occupancy, including the bathroom and balcony doors shall be in the closed position.
3. Ambient sound level shall be established with the television set at 50% of maximum volume, showers running, bathroom exhaust systems running, and air conditioning units running.
4. Levels shall be taken in the most remote area of the dwelling or sleeping unit first, including bathrooms and balconies.
5. Initial readings to confirm the ambient sound level in each area shall be taken.
6. The fire alarm system shall be activated and readings in the tested areas shall be retaken and compared with the requirements.

Section [F] 907.5.2.2, Emergency voice/alarm communication systems, is amended to read as follows:

[F] 907.5.2.2 Emergency voice/alarm communication systems. Emergency voice/alarm communication systems required by this code shall be designed and installed in accordance with NFPA 72. The operation of any automatic fire detector, sprinkler waterflow device or manual fire alarm box shall automatically sound an alert tone followed by voice instructions giving *approved* information and directions for a general or staged evacuation in accordance with the building's fire safety and evacuation plans required by Section 404 of the *International Fire Code*. In high-rise buildings, the system shall operate on at least the alarming floor, the floor above and the floor below. If the system is not reset after five minutes, the building shall sound the general evacuation signal and message in all zones unless an alternative Positive Alarm Sequence has been approved by the Fire Marshal. Speakers shall be provided throughout the building by paging zones. At a minimum, paging zones shall be provided as follows:

1. Elevator groups.
2. *Interior exit stairways*.
3. Each floor.
4. *Areas of refuge* as defined in Chapter 2.

Exception: In Group I-1 and I-2 occupancies, the alarm shall sound in a constantly attended area and a general occupant notification shall be broadcast over the overhead page.

Section [F] 907.5.2.2.4, Emergency voice/alarm communication captions, is repealed in its entirety.

Section [F] 907.5.2.3.1, Public use areas and common use areas, is amended to read as follows:

[F] 907.5.2.3.1. Public use areas and common use areas. Visible alarm notification appliances shall be provided in public use areas and common use areas as defined in Chapter 2.

Exceptions:

1. Where employee work areas have audible alarm coverage, the notification appliance circuits serving the employee work areas shall be initially designed with not less than 20-percent spare capacity to account for the potential of adding visible notification appliances in the future to accommodate hearing-impaired employee(s). For the purpose of this code, cold storage areas (e.g., walk-in coolers and freezers), mechanical and/or electrical rooms, main distribution, and intermediate distribution frame (MDF/IDF) rooms are considered employee work areas.
2. Visible notification appliances are not required in storage rooms or closets with an area of less than one hundred (100)

square feet (9.29 square meters), except for clean or soiled utility and clean or soiled linen rooms in Institutional Group I occupancies. NOTE: this exception does not apply to requirements set forth by entities other than the City of San Antonio (e.g., Texas Department of Licensing and Regulation enforcing the requirements of the Texas Accessibility Standards, Texas Department of State Health Services enforcing licensing of health care facilities in the State of Texas, or the Joint Commission, formerly the Joint Commission on Accreditation of Healthcare Organizations).

Section [F] 907.5.2.3.3.1, Wired equipment, is amended by adding items 4 and 5 and all other text to remain as written:

[F] 907.5.2.3.3.1 Wired equipment. Where wired equipment is used to comply with the future capability required by Section 907.5.2.3.3, the system shall include one of the following capabilities:

4. Extension of the fire alarm wiring to all living areas, restrooms, and sleeping areas of all dwelling units. The wiring must terminate in an electrical box suitable for securely mounting an audible/visible appliance. The fire alarm system shop drawings required by Section 907.1.2 shall include the power supply and circuit documentation to accommodate the extension of the wiring.

5. Where 200 percent of the visual alarms required in Table 907.5.2.3.2 for Groups I-1 and R-1 occupancies are provided in selected dwelling units, the selection of the dwelling units to be so equipped shall be at the discretion of the facility owner. Any dwelling units required to be equipped with audible/visual appliances to provide accessibility in accordance with Department of Housing and Urban Development rules, Americans with Disabilities Act Accessibility Guidelines or Texas Accessibility Standards are permitted to be included in the 200 percent total. The use of this exception requires the facility owner to sign and return the notarized SAFD Form 6007 (Letter of Understanding), which may be obtained from the San Antonio Fire Department Fire Prevention Division or the Development Services Department.

Section [F] 907.5.2.3, Visible alarms, is amended by adding a Subsection [F] 907.5.2.3.4, Group R-2 sleeping areas, and Section [F] 907.5.2.3.5, Combination devices, to read as follows:

[F] 907.5.2.3.4 Group R-2 sleeping areas. Living rooms in Group R-2 occupancies shall have audible notification appliances that meet the sleeping area audible requirements of NFPA 72, Chapter 18, Section 18.4.5, Subsection 18.4.5.1. When such units are required to be equipped with visible notification for the hearing impaired or when such units are designated as accessible in accordance with ICC/ANSI A117.1, combination audible and visible notification appliances that meet both the sleeping area audible requirements of NFPA 72, Chapter 18, Section 18.4.5, Subsection 18.4.5.1 and the effective intensity settings of NFPA 72, Chapter 18.5.5.7.2 shall be installed.

[F] 907.5.2.3.5 Combination devices. Combination 120 VAC single or multiple-station smoke detectors with an onboard visible notification appliance if utilized to meet the requirements of Section 907.2.11, will not be given credit for meeting the visible alarm notification requirements of Section 907.5.2.3.3 if these devices do not have the capability of supplying backup power for the visible notification appliance portion of the device. Should such devices be utilized to comply with Section 907.2.11, the visible appliance side of the device shall flash in synchronization with the notification appliances required in the unit.

Section [F] 907.6.3, Initiating device identification, is amended to read as follows with exceptions to remain as written:

[F] 907.6.3 Initiating device identification. The fire alarm system shall identify the specific initiating device address, location, device type, floor level where applicable and status including indication of normal, alarm,

trouble, and supervisory status, to the fire alarm panel, annunciator panel and to the supervising station as appropriate.

SECTION 907, FIRE ALARM AND DETECTION SYSTEMS, is amended by adding Section [F] 907.9, Alarm signal silencing switch, to read as follows:

[F] 907.9 Alarm signal silencing switch. A switch for silencing the alarm signal sounding appliances shall be permitted only if it is key operated, located within a locked cabinet or requires special knowledge. Such a switch shall be permitted only if visible zone alarm indication or equivalent has been provided by approved annunciation, printout, or other approved means, and subsequent alarms on other initiating devices circuits will cause the audible alarm signaling appliances to resound. A switch that is left in the "silence" position when there is no alarm shall operate trouble signals until the switch is restored to normal.

Section [F] 908.3, Fire alarm system interface, is hereby amended to read as follows:

[F] 908.3 Fire alarm system interface. Where an emergency alarm system is [~~interfaced~~] provided, it shall be interfaced with the [~~a~~] building's fire alarm system, and the signal produced at the fire alarm control unit shall be a supervisory signal.

Section [F] 912.2.1, Visible location, is amended by adding the following sentence to the end of that section to read as follows:

[F] 912.2.1 Visible location. Fire department connections shall be located on the street side of buildings or facing approved fire apparatus access roads, fully visible and recognizable from the street, fire apparatus access road or nearest point of fire department vehicle access or as otherwise *approved* by the *fire code official*. The fire department connection shall be identified by a sign installed above the connection with the letters "FDC" not less than 6 inches high and mounted no lower than 7 feet from grade to the bottom edge of the sign unless approved by the *fire code official*.

Section [F] 912.2.2, Existing buildings, is amended to read as follows:

[F] 912.2.2 Existing buildings. On existing buildings, wherever the fire department connection is not visible to approaching fire apparatus, the fire department connection shall be indicated by an *approved* sign mounted on the street front or on the side of the building. Such sign shall have the letters "FDC" not less than 6 inches (152 mm) high and words in letters not less than 2 inches (51 mm) high or an arrow to indicate the location. [~~Such~~] Signs shall be mounted no lower than 7 feet from grade to the bottom edge of the sign and are subject to the approval of the *fire code official*.

Section [F] 912.4.1, Locking fire department connection caps, is amended to read as follows:

[F] 912.4.1 Locking fire department connection caps. Fire department connection(s) shall have locking caps in the following areas/occupancies: the area described in Section 11-37 of the city's fire code; Group A, E, I occupancies; high-rise buildings; any other location that the fire code official determines that a locking cap would be necessary and/or beneficial for firefighting needs. [~~The fire code official is authorized to require locking caps on fire department connections for water-based fire protection systems where the responding fire department carries appropriate key wrenches for removal.~~]

SECTION [F] 912, FIRE DEPARTMENT CONNECTIONS, is amended by adding Section [F] 912.7, Location and type, as follows:

[F] 912.7 Location and type. Sprinkler system and standpipe fire department hose connections shall be as follows:

1. Within 40 feet of a public street, approved fire lane, or access roadway.

2. Within 250 feet of an approved fire hydrant measured per hose lay criteria in Chapter 11 of the City Code, Section 11-40, Section 507.5.1.2, except for R-2 apartments in which the fire department connection shall be within 500 feet of an

approved fire hydrant measured per hose lay criteria in Chapter 11 of the City Code, Section 11-40, Section 507.5.1.2.

3. Minimum of two feet above finished grade and a maximum of four feet above finished grade for standard inlets and minimum of 30 inches at lowest point above finished grade and maximum of four feet above finished grade for the five inch "Storz" inlet.
4. Freestanding FDCs shall be installed a minimum of one foot and a maximum of seven feet from the gutter face of the curb.
5. The Fire Code Official shall approve the location of freestanding fire department connections. Freestanding FDCs must be physically protected against impact per the requirements of Section 312 or other approved means.
6. Where provided, the five inch "Storz" inlet shall be installed at a 30-degree angle pointing down.
7. Fire department connections for H occupancies shall be freestanding, remote and located as determined by the fire code official.
8. Fire department connections for systems protecting fuel storage tanks shall be freestanding, remote and located as determined by the fire code official.
9. See Table 912.7

Table 912.7
FDC Connections required by System Type

Sprinkler Systems Wet Dry	Either a 5 Inch Storz inlet or (2) 2 ½ Inch inlets		
Standpipes: Automatic Wet Automatic Dry Semiautomatic Dry		Either a 5 Inch Storz inlet or (2) 2 ½ Inch inlets	
Standpipes: Manual Wet Manual Dry			A 5 Inch Storz inlet for the first 1000 gallons system demand and an additional 2 ½ inlet for every 250-gallon demand or portion thereof
Standpipes: All Highrise			Two fire department connections shall be provided for each zone, located either on opposite corners of the building where fire department apparatus access is provided or, where not possible, physically separated to the greatest extent possible for the following: 1. High-rise buildings 2. Buildings or multiple attached buildings exceeding 900 ft (274.3 m) perimeter distance Per 2019 NFPA 14 7.12.2.2

There shall be no more than one Storz connection in any configuration.

*One (1) 2.5-inch inlet is required for all systems designed per NFPA 13R. If the system demand is

greater than 250 GPM, two (2) 2.5-inch inlets are required to be installed. No FDC is required for projects designed per NFPA 13D.

Section 1003, GENERAL MEANS OF EGRESS, is amended by adding the Section [F] 1003.8, Special provisions, as follows:

[F] 1003.8 Special provisions. Rooms in E occupancies used for kindergarten or daycare classified as an E occupancy shall not be located above or below the first story.

Exceptions:

1. Basements or stories having floor levels located within four feet, measured vertically, from adjacent ground level at the level of exit discharge, provided the basement or story has exterior exit doors at that level.
2. In buildings equipped with an automatic sprinkler system throughout, rooms used for kindergarten or for daycare purposes may be located on the second story, provided there are at least two exterior exit doors for the exclusive use of such occupancies.

Section 1004.5, Areas without fixed seating, is amended by adding a sentence to the end of the main body of the section to read as follows:

1004.5 Areas without fixed seating. The number of occupants shall be computed at the rate of one occupant per unit of area as prescribed in Table 1004.5. For areas without *fixed seating*, the occupant load shall not be less than that number determined by dividing the floor area under consideration by the *occupant load* factor assigned to the function of the space as set forth in Table 1004.5. Where an intended function is not listed in Table 1004.5, the *Building Official* [~~building official~~] shall establish a function based on a listed function that most nearly resembles the intended function. When the calculated number is not a whole number, it is required to round up to the next whole number for determination of the occupant load of a space.

Exception: Where approved by the *Building Official*, [~~building official~~] the actual number of occupants for whom each occupied space, floor or building is designed, although less than those determined by calculation, shall be permitted to be used in the determination of the design *occupant load*.

Section 1008.2.1, Illumination level under normal power, is amended to read as follows with remaining text to remain as written:

1008.2.1 Illumination level under normal power. The means of egress illumination level shall be not less than 1 footcandle (11 lux) at the walking surface. Along *exit access stairways*, exit stairways and at their required landings, the illumination level shall not be less than an average of 10 footcandles (108 lux) at the walking surface when the stairway is in use.

Section 1008.3, Emergency power for illumination, is amended by adding Section 1008.3.6, Illumination in Group E occupancies, to read as follows:

1008.3.6 Illumination in Group E occupancies. Group E occupancies shall have emergency lighting in interior stairs, corridors, windowless areas with student occupancy, shops, and laboratories.

SECTION 1009, ACCESSIBLE MEANS OF EGRESS, is repealed and replaced with a new SECTION 1009 to read as follows:

SECTION 1009
ACCESSIBLE MEANS OF EGRESS

All buildings or portions of buildings must comply with the accessibility standards adopted by the State. Projects shall be submitted to the Texas Department of Licensing and Regulation for review, inspection, and approval in accordance with state law.

SECTION 1025.1, LUMINOUS EGRESS PATH MARKINGS, is amended by adding Exception #2, to read as follows:

Exception 2. Luminous egress path markings shall not be required where integral battery backup lighting is installed within an interior

exit stairway and is capable of indicating a failure and relaying that notification to a supervised system.

SECTION 1027, EXTERIOR EXIT STAIRWAYS AND RAMPS, is amended by adding Section 1027.7, Exterior fire escape, to read as follows:

1027.7 Exterior fire escape. Any existing fire escape which is deemed to be an adequate fire escape under the laws of the state or under the provisions of the city fire prevention regulations shall be deemed an adequate means of egress for emergency use, as required by this chapter, and the number of existing exterior fire escapes shall be provided to comply with the fire escape law of the state and the city fire prevention regulations.

CHAPTER 11, ACCESSIBILITY, is repealed and replaced with a new CHAPTER 11 to read as follows:

CHAPTER 11
ACCESSIBILITY

All buildings or portions of buildings must comply with the accessibility standards adopted by the state. Projects shall be submitted to the Texas Department of Licensing and Regulation for review, inspection, and approval in accordance with state law.

Section 1207, ENHANCED CLASSROOM ACOUSTICS, is deleted in its entirety.

Section 1210, TOILET AND BATHROOM REQUIREMENTS, is amended to add Sections 1210.4 through 1210.4.2, Baby Changing Stations, to read as follows:

1210.4 Baby changing stations. Each publicly available and accessible restroom serving Group A and Group M occupancy type areas, hospitals, and city owned buildings shall be equipped with a minimum of one (1) safe, sanitary, and convenient baby changing station under the following circumstances:

1. New building: all new buildings providing areas with the occupancy types specified, hospitals, and city owned buildings
2. Existing building: all existing buildings providing areas with the occupancy types specified, hospitals, and all city owned buildings; and any of the following changes are made:
   a. A new restroom is built
   b. The square footage of an existing restroom is increased by fifty (50) square feet or more
   c. The number of fixtures of an existing restroom is increased

Exception: The requirement to provide baby changing stations does not apply to a restroom that contains clear and visible signage indicating where an alternative restroom and/or a designated area approved by the "building official" with a baby changing station is located within the same building and on the same floor. The alternative restroom must be one (1) that is available to individuals of the gender of the original restroom.

1210.4.1 Definition. Baby changing station means a baby changing station, deck, table, or similar amenity that is intended for use by the public for the purpose of changing diapers on children weighing up to fifty (50) pounds.

1210.4.2 Appeals. Appeals to this requirement can be submitted to the building-related and fire codes appeals and advisory board in accordance with section 10-14 of this chapter.

Section 1502.4, Gutters, is amended by adding Section 1502.4.1, Zero lot line development, and Section 1502.4.2, Projections, to read as follows:

1502.4.1 Zero lot line development. On zero lot line development where roof projections are allowed by deed covenant or ingress/egress easements and the roof slopes towards the adjoining property, adequate gutters and downspouts shall be provided to direct roof water away from adjacent property. Roof projections shall not extend beyond a point one third the width of the easement or a maximum of 24 inches (610 mm). If there is no slope towards zero lot line, gutters are not necessary.

1502.4.2 Projections. Any Group R or Group U occupancy with roof edges less than three

feet (914 mm) to any property line shall be provided with gutters and downspouts to direct roof water away from adjacent property.

Section 1604.5.2, Photovoltaic (PV) panel systems, is amended by striking item number 6, with other text to remain as follows:

1604.5.2 Photovoltaic (PV) panel systems. Photovoltaic (PV) panel systems and *elevated PV support structures* shall be assigned a *risk category* as follows:

1. *Ground-mounted PV panel systems* serving only Group R-3 buildings shall be assigned to *Risk Category I*.
2. *Ground-mounted PV panel systems* other than those described in Items 1 and 5 shall be assigned to *Risk Category II*.
3. *Elevated PV support structures* other than those described in Items 4, 5 and 6 shall be assigned to *Risk Category II*.
4. *Rooftop-mounted PV panel systems* and *elevated PV support structures* installed on top of *buildings* shall be assigned to the same *risk category* as the risk category of the *building* on which they are mounted.
5. *PV panel systems* and *elevated PV support structures* paired with energy storage systems (ESS) and serving as a dedicated, stand-alone source of backup power for *Risk Category IV buildings* shall be assigned to *Risk Category IV*.
6. ~~*Elevated PV support structures* where the usable space underneath is used for parking of emergency vehicles shall be assigned to *Risk Category IV*.~~

Section 1704.2, Special inspections, and tests, is amended to read as follows:

1704.2 Special inspections and tests. Where application is made to the *Building Official* [~~*building official*~~] for construction as specified in Section 10-6 [~~Section 105~~], the owner or the registered design professional in responsible charge acting as the owner's authorized agent [~~, other than the contractor,~~] shall employ one or more *approved agencies* to provide *special inspections* and tests during construction on the types of work specified in Section 1705 and identify the *approved agencies* to the *Building Official*. [~~building official.~~] The *special inspector* shall not be employed by the contractor. These *special inspections* and tests are in addition to the inspections by the *Building Official* [~~*building official*~~] that are identified in Section 10-11 of this chapter. [~~110.~~]

Exceptions:

1. *Special inspections* and tests are not required for construction of a minor nature or as warranted by conditions in the jurisdiction as *approved* by the *Building Official* [~~*building official*~~]
2. Unless otherwise required by the *Building Official* [~~*building official*~~], *special inspections* and tests are not required for Group U occupancies that are accessory to a residential occupancy including, but not limited to, those listed in Section 312.1.
3. *Special inspections* and tests are not required for portions of structures designed and constructed in accordance with the cold-formed steel light-frame construction provisions of Section 2211.1.2 or the conventional light-frame construction provisions of Section 2308.
4. The contractor is permitted to employ the *approved agencies* where the contractor is also the owner.

Section 1704.2.1, Special inspector qualifications, is amended to read as follows:

1704.2.1 Special inspector qualifications. Prior to the start of the construction and upon request, the *approved agencies* shall provide written documentation to the *Building Official* [~~*building official*~~] demonstrating the competence and relevant experience or training of the *special inspectors* who will perform the special inspections and tests during construction. Experience or training shall be considered relevant where the documented experience or training is related in complexity to the same type of *special inspection* or testing activities for projects of similar complex-

ity and material qualities. These qualifications are in addition to qualifications specified in other section of this code.

The *registered design professional in responsible charge* and engineers of record involved in the design of the project are permitted to act as the *approved agency* and their personnel are permitted to act as the special inspectors for the work designed by them, provided they qualify as special inspectors.

Section 1704.2.4, Report requirement, is amended to read as follows:

1704.2.4 Report requirement. *Approved agencies* shall keep records of special inspections and tests. The *approved agency* shall submit reports of *special inspections* and tests to the *Building Official* upon request, [~~*building official*~~] and to the *registered design professional in responsible charge*. Individual inspection reports [~~Reports~~] shall indicate that work inspected or tested was or was not completed in conformance to *approved construction documents*. Discrepancies shall be brought to the immediate attention of the contractor for correction. If they are not corrected, the discrepancies shall be brought to the attention of the *Building Official* [~~*building official*~~] and to the *registered design professional in responsible charge* prior to completion of that phase of the work. A final report written by the *registered design professional in responsible charge* documenting all of the required *special inspections* and tests, the special inspectors, and the corrective action taken for [~~and correction of~~] any discrepancies noted in the inspections and [~~or~~] tests, shall be submitted [~~at a point in time agreed upon prior to the start of work~~] by the owner or the owner's authorized agent to [~~the *building official*.~~] the *Building Official* prior to the *Building Official* issuing the certificate of occupancy or temporary certificate of occupancy.

Section 1704.2.5.1, Fabricator approval, is amended to read as follows:

1704.2.5.1 Fabricator approval. *Special inspections* during fabrication required by Section 1704 are not required where the work is done on the premises of a fabricator that is enrolled in a nationally accepted inspections program acceptable to the *registered design professional in responsible charge*. [~~approved to perform such work without special inspection. Approval shall be based upon review of the fabricator's written fabrication procedures and quality control manuals that provide a basis for control of materials and workmanship, with periodic auditing of fabrication and quality control practices by an approved agency or the building official.~~] At completion of fabrication, the acceptable [~~approved~~] fabricator shall submit a *certificate of compliance* to the owner and the *registered design professional in responsible charge*. [~~or the owner's authorized agent for submittal to the Building Official as specified in Section 1704.5 stating that the work was performed in accordance with the approved construction documents.~~] The *certificate of compliance* shall state that the work was performed in accordance with the *approved construction documents*. The certificate of compliance shall also be made available to the *Building Official* upon request.

SECTION 2109, EMPIRICAL DESIGN OF ADOBE MASONRY, is amended to read as follows; All other code text remains as is:

SECTION 2109
EMPIRICAL DESIGN OF [~~ADOBE MASONRY~~] EARTHEN WALL SYSTEMS

2109.1 General. Empirically designed [~~adobe masonry~~] earthen wall systems shall conform to the requirements of Appendix A of TMS 402, except where otherwise noted in this section.

2109.1.1 Limitations. The use of empirical design of earthen wall systems [~~adobe masonry~~] shall be limited as noted below [~~in Section A.1.2 of TMS 402~~]. In buildings that exceed one or more of the limitations below [~~of Section A.1.2 of TMS 402~~], [~~masonry~~] earthen wall systems shall be designed in accordance with the engineered design provisions of Section 2101.2 [~~or the foundation wall provisions of Section 1807.1.5~~].

[~~Section A.1.2.2. of TMS 402 shall be modified as follows:~~

~~**A.1.2.2** Wind. Empirical requirements shall not apply to the design or construction of masonry for buildings, parts of buildings, or other structures to be located in areas where V_{asd} as determined in accordance with Section 1609.3.1 of the *International Building Code* exceeds 110 mph.~~]

2109.1.1.1 Gravity Loads. The resultant of gravity loads shall be placed within the center third of the wall thickness and within the central area bounded by lines at one-third of each cross-sectional dimension of foundation piers.

2109.1.1.2 Seismic. Empirically designed earthen wall systems are not permitted for buildings, parts of buildings or other structures in Seismic Design Categories B, C, D, E or F as defined in ASCE 7.

2109.1.1.3 Wind. Empirically designed earthen wall systems are not permitted for buildings, parts of buildings or other structures where the basic wind speed exceeds 115 mph (51 mps).

2109.1.1.4 Risk category. Empirically designed earthen wall systems are not permitted for buildings, parts of buildings or other structures in Risk Category IV as defined in ASCE 7.

2109.1.1.5 Other horizontal loads. Empirical requirements shall not apply to earthen wall systems resisting horizontal loads other than permitted wind or seismic loads.

2109.1.1.6 Support. Empirical requirements shall not apply to earthen wall systems vertically supported on wood construction.

2109.1.1.7 Below grade. *Earthen construction* shall not be permitted for use in foundations, footings, retaining walls or in any building element at or below grade.

2109.1.1.8 Height and area. Empirically designed *earthen construction* shall be limited to buildings or parts of buildings with a braced wall height not exceeding 9 feet (2.74 m) and an enclosed area less than or equal to 1600 square feet (150 m^2).

Exception: For buildings of empirically designed *earthen construction* when designed by a registered design professional, wall height limitation shall be increased to a maximum of 35 feet (10.6 m) as measured from the average specified finish grade adjacent to the wall and area limitations shall not apply.

2109.2 [~~Adobe~~] Earthen construction. [~~Adobe~~] Earthen construction shall comply with this section and shall be subject to the requirements of this code for Type V construction, Appendix A of TMS 402 and this section.

2109.2.1 Unstabilized [~~adobe~~] earthen construction. Unstabilized [~~adobe~~] earthen construction shall comply with Sections 2109.2.1.1 through 2109.2.1.5[4].

2109.2.1.1 Characteristic [~~C~~]compressive strength, f'_e. [~~Adobe~~] Earthen construction units shall have an average characteristic compressive strength as required by design but not less than 150 psi (1034 kPa). [~~of 300 psi (2068 kPa) when tested in accordance with ASTM C67.~~] Five samples shall be tested in accordance with ASTM C67 and characteristic compressive strength for each unit shall be determined by multiplying the result by the correction multiplier provided in Table 2109.2.1.1. [~~and individual unit are not~~] No individual unit is permitted to have a characteristic compressive strength of less than 125 psi (862 kPa). [~~250 psi (1724) kPa~~)].

TABLE 2109.2.1.1
PRISM STRENGTH CORRECTION FOR CHARACTERISTIC COMPRESSIVE STRENGTH, f'_e

Test Unit Height to Least Width Ratio H/W	ASTM C67 Correction Multiplier
<=0.5	0.50
0.70	0.60
1	0.70
1.5	0.75
2	0.77

Test Unit Height to Least Width Ratio H/W	ASTM C67 Correction Multiplier
3	0.95
4	1.00

2109.2.1.2 Modulus of rupture. [~~Adobe~~] Earthen construction units shall have an average modulus of rupture of not less than 50 psi (345 kPa) when tested in accordance with the following procedure. Five samples shall be tested, and individual units shall not have a modulus of rupture of less than 35 psi (241 kPa).

[~~**2109.2.1.3 Moisture content requirements.** Adobe units shall have a moisture content not exceeding 4 percent by weight.~~]

[~~**2109.2.1.4 Shrinkage cracks.** Adobe units shall not contain more than three shrinkage cracks and any single shrinkage crack shall not exceed 3 inches (76 mm) in length or ⅛ inch (3.2 mm) in width.~~]

2109.2.1.3 Condition of units. Adobe masonry and compressed earth block units used in load-bearing construction shall be whole and sound and not more than 10% of the bearing surface shall be missing or chipped. The basic unit competence of any questionable units shall be assessed by the ability to be dropped to a hard level surface from a height of not less than 24 in (609 mm) without fracture or delamination.

2109.2.1.4 Organic matter. Organic matter present in soils used for earthen construction shall be limited to not more than 5% as measured by AASHTO T267 Loss-on-Ignition Test.

Exception: Limits on organic matter content shall not apply to adobe masonry units.

2109.2.1.5 Soil acidity (pH). Prior to use in earthen construction, native soil acidity shall not be less than pH 7.0 as measured by ASTM D4972. Soil pH less than 7.0 shall be treated by thorough mixing with lime to raise pH to an acceptable level prior to use.

2109.2.2 Stabilized [~~adobe~~] earthen construction. Stabilized earthen construction [~~adobe~~] shall additionally comply with [~~Section 2109.2.1 for unstabilized adobe in addition to~~] Section[s] 2109.2.2.1 [~~and 2109.2.2.2~~].

2109.2.2.1 Soil requirements. Soil used for stabilized earthen construction [~~adobe units~~] shall be volumetrically stable and chemically compatible with the stabilizing material.

[~~**2109.2.2.2 Absorption requirements.** A 4-inch (102 mm) cube, cut from a stabilized adobe unit dried to a constant weight in a ventilated oven at 212°F to 239°F (100°C to 115°C), shall not absorb more than 2½ percent moisture by weight when placed on a constantly water-saturated, porous surface for seven days. Not fewer than five specimens shall be tested, and each specimen shall be cut from a separate unit.~~]

2109.2.3 Allowable stress. For empirically designed earthen construction, [~~T~~]the allowable compressive stress on gross cross-sectional area of a unit or sample [~~adobe~~] shall not exceed 30 psi (207 kPa).

Table 2109.2.3.1, ALLOWABLE SHEAR ON BOLTS IN ADOBE MASONRY, is amended to reflect changes to the title. Unaltered sections of the Table remain in full force:

TABLE 2109.2.3.1
ALLOWABLE SHEAR ON BOLTS IN [~~ADOBE~~] EARTHEN CONSTRUCTION MASONRY

2109.2.4 Detailed requirements. [~~Adobe~~] Earthen construction shall comply with Sections 2109.2.4.2[~~1~~] through 2109.2.4.9.

[~~**2109.2.4.1 Number of stories.** Adobe construction shall be limited to buildings not exceeding one *story*, except that two-*story* construction is allowed where designed by a *registered design professional*.~~]

2109.2.4.2 Mortar. Mortar for adobe masonry and compressed earth blocks [~~construction~~] shall comply with Sections 2109.2.4.2.1 and 2109.2.4.2.2.

2109.2.4.2.1 General. Mortar for use in earthen construction [~~adobe units~~] shall be [~~in accordance with Section 2103.2.1 or be~~]

composed of [~~adobe~~] soil of [~~the same~~] like composition and stabilization as the [~~adobe brick~~] earthen construction units. [~~Unstabilized adobe soil mortar is permitted in conjunction with unstabilized adobe brick units.~~]

2109.2.4.2.2 Mortar joints. Adobe masonry and compressed earth block units shall be laid with full head and bed joints and in full running bond of minimum ¼ unit overlap.

2109.2.4.3 Parapet walls. Parapet walls shall be constructed of stabilized earthen construction materials only. Parapet walls shall include flashing as described in Section 1404.4. [~~constructed of adobe units shall be waterproofed.~~]

2109.2.4.4 Wall thickness. For empirically designed earthen construction, [T]the minimum thickness of *exterior walls* in one-story buildings shall be 10 inches (254 mm). The walls shall be laterally supported at intervals not exceeding 24 feet (7315 mm). The minimum thickness of interior *load-bearing walls* shall be 8 inches (203 mm). The unsupported height of any wall of earthen construction [~~constructed of adobe units~~] shall not exceed 10 times the thickness of such wall.

2109.2.4.5 Foundations. Foundations for earthen [~~adobe~~] construction shall be in accordance with Section 2109.2.4.5.1 through [~~and~~] 2109.2.4.5.[~~2~~]5.

2109.2.4.5.1 Foundation support. Load bearing and nonload-bearing [~~W~~]walls [~~and partitions~~] constructed of [~~adobe units~~] earthen construction shall be supported by continuous footings and foundations. Width of foundation walls shall not be less than the width of earthen construction walls which they support. [~~foundations or footings that extend not less than 6 inches (152 mm) above adjacent ground surfaces and are constructed of solid masonry (excluding adobe) or concrete. Footings and foundations shall comply with Chapter 18.~~]

2109.2.4.5.2 Lower course requirements. [~~Stabilized adobe units shall be used in adobe walls for the first 4 inches (102 mm) above the finished first-floor elevation.~~] The lowest course of any wall of unstabilized adobe masonry units shall be stabilized.

2109.2.4.5.3 Height above grade. Foundation walls for earthen construction shall extend not less than 6 inches (152 mm) above adjacent finish grade.

2109.2.4.5.4 Damp-proofing. The lowest course of earthen construction shall be protected with a continuous damp-proofing barrier applied directly to the full width of the bearing surface of foundation walls. Maximum permeance of damp-proofing barrier shall be IBC Class I or II with a perm moisture rating of not more than 0.5 perm.

Exception: Damp-proofing may be held back a maximum of ¾ inches (20mm) at interior surfaces of walls not exposed to weather.

2109.2.4.5.5 Site Drainage. Grade surfaces adjacent to earthen wall systems shall be designed to provide adequate flow of water away from the foundation.

2109.2.4.6 Isolated piers or columns. [~~Adobe units~~] Earthen construction shall not be used for isolated piers or columns in a load-bearing capacity. Walls with a length less than the greater of three (3) times the wall thickness or [~~less than~~] 24 inches (610 mm) [~~in length~~] shall be considered to be isolated piers or columns.

2109.2.4.7 Tie beams. Exterior walls and interior *load-bearing walls* constructed of [~~adobe units~~] earthen construction shall have a continuous tie beam at the level of the floor or roof bearing and meeting the following requirements.

2109.2.4.8 Exterior finish. Exterior finishes applied to [~~adobe masonry~~] earthen walls shall be of any type permitted by this section or Chapter 14, except were stated otherwise in this section.

2109.2.4.8.1 Where required. Unstabilized [~~adobe masonry~~] earthen walls shall receive a weather protective exterior finish in accordance with Section 2109.2.4.8.

2109.2.4.8.2 Vapor permeance. Plaster and finish assemblies shall have a vapor permeance of not less than 5 perms.

Exception: Insulation products applied to the exterior of stabilized [~~adobe masonry~~] earthen walls in Climate Zones 2B, 3B, 4B and 5B shall not have a vapor permeance requirement.

2109.2.4.8.3 Plaster thickness and coats. Plaster applied to [~~adobe masonry~~] earthen walls shall be not less than 7/8 inch (22 mm) and not greater than 2 inches (51 mm) thick. Plaster shall be applied in not less than two coats.

2109.2.4.8.4 Plaster application. Where plaster is applied directly to [~~adobe masonry~~] earthen walls, no intermediate membrane shall be used.

2109.2.4.8.5 Lath for plaster. Lath shall be provided for all plasters, except where not required elsewhere in Section 2109.2.4.8. Where lathing is used as the method of plaster attachment, lathing shall be of galvanized stucco netting with galvanized [~~F~~]fasteners that shall be corrosion resistant and spaced at a maximum of 16 inches (406 mm) on center with a minimum 1 ½-inch (38 mm) penetration into the [~~adobe~~] earthen wall. [~~Metal lath shall comply with ASTM C1063, as modified by this section, and shall be corrosion resistant. Plastic lath shall comply with ASTM C1788, as modified by this section.~~] Wood substrates shall be protected with No. 15 asphalt felt, an approved wood preservative or other protective coating prior to lath application.

2109.2.4.8.9.5 Conditions where lathing is not required. For unstabilized [~~adobe~~] earthen walls finished with unstabilized clay plaster, lathing shall not be required.

Section 2403.5, Louvered windows or jalousies is amended to remove wired glass:

2403.5 Louvered windows or jalousies. Float, wired and patterned glass in louvered windows and jalousies shall ne not thinner than nominal 3/16 inch (4.8 mm) and not longer that 48 inches (1219 mm). Exposed glass edges shall be smooth.

~~Wired glass with wire exposed on longitudinal edges shall not be used in louvered windows or jalousies.~~

Where other glass types are used, the design shall be submitted to the building official for approval.

Section 2404.3, Wired, patterned and sandblasted glass, is amended to repeal Section 2404.3.1, Vertical wired glass, in its entirety.

Section 2406, Safety Glazing, is amended to prohibit the use of wired glass in Section 2406.4:

2406.4 Hazardous locations. The locations specified in Sections 2406.1 through 2406.4.7 shall be considered to be specific hazardous locations requiring safety glazing materials. Wired glass shall be prohibited for applications specified in Sections 2406.1 through 2406.4.7.

Section 2407, Glass in handrails and guards, is amended to prohibit the use of wired glass in Section 2407.1 with following text to remain:

2407.1 Materials. Glass used in handrail or guard shall be laminated glass constructed of fully tempered or heat-strengthened glass and shall comply with Category II of SPSC 16 CFR Part 1201 or Class A of ANSI Z97.1. Glazing in a handrail or a guard shall be of approved safety glazing material that conforms to the provisions of Section 2406.1.1. For all glazing types, the minimum nominal thickness shall be ¼ inch (6.4 mm). Wired glass shall be prohibited in handrails and guards.

Section 2408, Glazing in athletic facilities, is amended to prohibit the use of wired glass:

2408.1 General. Glazing in athletic facilities and similar uses subject to impact loads, which forms whole or partial wall sections or which is used as a door or part of a door, shall comply with this section. Wired glass shall be prohibited.

Section 2902.2, Separate facilities, Exception 6 is amended as follows, all other code text remains as is:

Exceptions:

6. Separate facilities shall not be required where rooms having both water closets

and lavatory fixtures are designed for use by both sexes and privacy for water closets [~~in accordance with Section 405.3.4 of the International Plumbing Code. Urinals shall be located in an area visually separated from the remainder of the facility or each urinal that is provided shall be located in a stall~~] with walls and a door enclosing the fixtures.

Section 3114.3, Intermodal shipping containers, is repealed in its entirety.

Section 3306.7, Covered walkways, is amended by adding an exception "B" to read as follows:

3306.7 Covered walkways. Covered walkways shall have a clear height of not less than 8 feet (2438 mm) as measured from the floor surface to the canopy overhead. Adequate lighting shall be provided at all times. Covered walkways shall be designed to support all imposed loads. The design live load shall be not less than 150 psf (7.2 kN/m^2) for the entire structure.

Exception A: Roofs and supporting structures of covered walkways for new, light-frame construction not exceeding two stories above grade plane are permitted to be designed for a live load of 75 psf (3.6 kN/m^2) or the loads imposed on them, whichever is greater. In lieu of such designs, the roof and supporting structure of a covered walkway are permitted to be constructed as follows:

1. Footings shall be continuous 2-inch by 6-inch (51 mm by 152 mm) members.
2. Posts not less than 4 inches by 6 inches (102 mm by 152 mm) shall be provided on both sides of the roof and spaced not more than 12 feet (3658 mm) on center.
3. Stringers not less than 4 inches by 12 inches (102 mm by 305 mm) shall be placed on edge upon the posts.
4. Joists resting on the stringers shall be not less than 2 inches by 8 inches (51 mm by 203 mm) and shall be spaced not more than 2 feet (610 mm) on center.
5. The deck shall be planks not less than 2 inches (51 mm) thick or wood structural panels with an exterior exposure durability classification of at least 23/32 inch (18.3 mm) thick nailed to the joists.
6. Each post shall be knee braced to joists and stringers by members not less than 2 inches by 4 inches (51 mm by 102 mm); 4 feet (1219 mm) in length.
7. A curb that is not less than 2 inches by 4 inches (51 mm by 102 mm) shall be set on edge along the outside edge of the deck.

Exception B: Pedestrian canopies for construction or demolition of buildings not exceeding 36 feet (10.97 m) in height or three stories, whichever is less, may be constructed of metal scaffolds of two-inch (51 mm) tubing adequately braced by 1.25-inch (32 mm) tubing. The passageway shall not be less than 39 inches (991 mm) in width at any point with a head room of not less than eight feet (2.44 m). The scaffold ends shall be braced by approved diagonal cross bracing maintaining a maximum of eight feet (2.44 m) between ends. A solid, tightly sheathed cover between scaffold and job site to be not less than 0.5 inch (12.7 mm) ply board with railing when required by this section. The roof shall be tightly sheathed with a minimum of two-inch (51 mm) nominal wood planking.

APPENDIX H, SIGNS, is amended as follows:

SECTION H101, GENERAL, SECTION H102, DEFINITIONS, SECTION H103, LOCATION, SECTION H104, IDENTIFICATION, SECTION H113, MARQUEE SIGNS, and SECTION H114, PORTABLE SIGNS, are repealed. See Chapter 28, San Antonio Code, for additional requirements.

Section H105.2, Permits, drawings and specifications, is amended to read as follows:

H105.2 Permits, drawings and specifications. Where a permit is required, as provided in Article I of this chapter [~~Chapter 1~~], submittal documents consisting of construction documents, engineering calculations and other data shall be submitted in two or more sets with each permit application. [~~shall be required.~~] These documents shall show the dimensions, material and required details of

construction, including loads, stresses, and anchors. The submittal documents shall also be accompanied by the written consent of the owner or lessee of the premises upon which the sign is to be erected. The construction documents and engineering calculations shall be prepared by a Texas registered professional engineer and shall be signed and sealed.

Exception. Construction documents identified above will not be required to be stamped and sealed by a Texas registered professional engineer for the following conditions unless otherwise required by the *Building Official* because of unusual design or site conditions:

1. Pole signs that are 12 feet (3.66 m) or less in height.
2. Monument signs that are eight feet (2.44 m) or less in height.
3. Wall signs that weigh 600 lbs. (272 kg) or less.
4. Channel letters that weigh 7.5 psf (359.1 N/m2) or less.

Section H107, COMBUSTIBLE MATERIALS, is amended by repealing Sections H107.1.2, Electric sign faces, and H107.1.3, Area limitation.

Section H109, GROUND SIGNS, is amended by repealing Section H109.1, Height restrictions, and Section H109.2, Required clearance.

Section H110, ROOF SIGNS, is amended by repealing Section H110.3, Height of solid signs, Section H110.4, Height of open signs, and Section H110.5, Height of closed signs.

Section H112, PROJECTING SIGNS, is amended by repealing Section H112.4, Height limitation.

APPENDIX P, SLEEPING LOFTS, is adopted in its entirety.
(Ord. No. 2025-01-30-0075, § 1(Att. 1), 1-30-25)

Sec. 10-31. Fee schedule.

Development services establishes minimum values for the cost of commercial construction based upon the costs per square foot as published and updated by the International Code Council and used with the Army Corp of Engineers' modifier for the city. This value is established at the time the building plans are submitted. Additional valuation checks may be performed by the plans examiners during their review of the plans.

Commercial Plan Review Fees	
Valuation $0.00—$1,000.00	$100.00
Valuation $1,001.00—$200,000.00	$100.00+$1.60/$1,000.00, or fraction thereof, over $1,000.00
Valuation $200,001.00—$1,000,000.00	$418.40+$1.50/$1,000, or fraction thereof, over $200,000.00
Valuation $1,000,001.00—$5,000,000.00	$1,618.40+$0.75/$1,000.00, or fraction thereof, over $1,000,000.00
Valuation $5,000,001.00+	$4,618.40+$0.50/$1,000.00, or fraction thereof, over $5,000,000.00
School District Plan Reviews:	
School districts with school district projects valued at over five hundred thousand dollars ($500,000.00) shall be entitled to a twenty-five (25) percent waiver of plan review and permit fees, but in no case shall said school district pay less than a minimum fee of eight hundred sixty-eight dollars and forty cents ($868.40) for plan review, one thousand four hundred ten dollars ($1,410.00) for building permit, and one hundred thirty-six dollars and seventy cents ($136.70) for the related surcharges.	
Landscape Plan Review	
Base fee Plus 11% of the Building Plan Review Fee	$27.50
Commercial Irrigation Plan Review	$100.00

Commercial Swimming Pool Plan Review Fee	(based upon valuation)
Pool Commercial Landscape Plan Review	
Base fee Plus 11% of the Building Plan Review Fee	$27.50
Commercial Permit Fees	
Valuation: $0—$1,000	$100.00
Valuation: $1,001—$25,000	$100.00+$7.28/$1,000, or fraction thereof, over $1,000.00
Valuation: $25,001—$75,000	$274.87+$5.72/$1,000, or fraction thereof, over $25,000
Valuation: 75,000	$560.00+$2.00/$1,000, or fraction thereof, over $75,000
School District Plan Reviews:	
School districts with school district projects valued at over five hundred thousand dollars ($500,000.00) shall be entitled to a twenty-five (25) percent waiver of plan review and permit fees, but in no case shall said school district pay less than a minimum fee of eight hundred sixty-eight dollars and forty cents ($868.40) for plan review, one thousand four hundred ten dollars ($1,410.00) for building permit, and one hundred thirty-six dollars and seventy cents ($136.70) for the related surcharges.	
Commercial Conditional Permit Fees (plus the Building Permit Fee)	$200.00
Commercial Fence (plus Plan Review Fee)	Based Upon Building Valuation
Commercial Re-Roof (plus Plan Review Fee when applicable)	Based Upon Building Valuation
Document Management Fee	Walk Through Plans - $10.00; School Districts - Interior Finishout - $10.00; Retaining Walls - $10.00; Demolition - $10.00; 10 Day Plans - $25.00; Site Plans - $30.00; 20 Day Plans - $50.00; 35 Day Plans - $150.00/Roll; School Districts - New - $150/Roll
Special Services Fees—Building Plan Review and Inspection	
Additional Plan Review (i.e., revised)—Per Reviewer (All Disciplines) per Hour (1 hour minimum)	$100.00
Administrative Exception/ Variance Request	$350.00
Commercial Project Modification Request Fee per Modification Request	$350.00
After-hour Inspection Fee (per hour with 1 hour minimum)	$100.00
After-hours Commercial Plan Review—Per Reviewer (All Disciplines) per Hour (1 hour minimum)	$100.00
Commercial Plan Retrieval Fee per Plan	$100.00
Commercial Walk-Through Fee for Plans over 500 Square Feet (per plan)	$100.00
Inspection for which no fee is specifically indicated (per hour with 1 hour minimum)	$100.00
Inspection Schedule Fee (Free on-line)	$3.00
Plan Review by Appointment Processing Fee (per appointment)	$200.00

Plus Additional Plan Review Fee per Reviewer per hour (1 hour minimum)	$100.00
Preliminary Plan Review	
Fee per Reviewer per hour and per discipline (1 hour minimum per discipline)	$100.00
Plus Additional Plan Review Fee per Reviewer per hour and per discipline (1 hour minimum per discipline)	$100.00
Re-inspection Fee	$51.50
Median and turn lane review (outside of plat) per hour	$100.00
Permit extension fee: 50% of permit (plus cost of permit)	
Building-related and Fire Codes Appeals and Advisory Board Fees	
Building-related and Fire Codes Appeal Fee	$155.00
Certificate of Occupancy	
Commercial Certificate of Occupancy	$200.00
Temporary Commercial Certificate of Occupancy	$500.00
Temporary Commercial Certificate of Occupancy Extension	$100.00
Expired Certificate of Occupancy Fine (basic fee plus C of O fee)	$500.00
Fine for New Commercial Construction Occupancy without C of O	$500.00
Fine for Existing Commercial Construction Occupancy without C of O (plus C of O Fee)	$200.00
Miscellaneous	
Certificate of Occupancy Tent Fee	$100.00
Certificate of Occupancy Mall Cart	$100.00
Certificate of Occupancy—Name Change	$50.00
Certificate of Occupancy—Address Correction	$50.00
Duplicate Copy of Certificate of Occupancy (plus tax)	$5.00
Re-inspection Fee	$51.50
Miscellaneous Building Development Fees	
Permit Processing Fee	$10.00
Building Permit ready/status letter	$50.00
Link child-parent permits, per commercial permit	$10.00
Permit Refund Fee	$50.00
Permit Amendment Fee	$10.00
Duplicate copy of City issued registration card	$5.00
Contractor number research fee	$10.00
Occupant load adjustment fee per hour	100.00
Building/Suite assignment fee:	
Building numbers (per address)	$100.00
Suite numbers (per assigned suite number)	$20.00
Permit Reprint Fee (subject to sales tax)	$5.00
Name, Address or DBA Change on Permit	$50.00
Notary Public	$6.00
Open Permit Review Fee	$3.00/Permit

Rental of Facility Fees: $125/hour (daily min. fee of $250; Max. fee of $1,000); Security Personnel: $15/hour/staff (with 1-hour minimum); DSD Staff: $30/hour/staff (with 1-hour min.); Custodian Service: $15/hour (with 2-hour min.)

(Ord. No. 2025-01-30-0075, § 1(Att. 1), 1-30-25)

Sec. 10-32. New commercial fee schedule.

Beginning with the launch of BuildSA in the winter of 2020, a flat fee based on occupancy group and square feet for commercial trade permit fees will be assessed. Below are the fees for Occupancy Groups A (Assembly), B (Business), E (Educational), F (Factory and Industrial), H (High Hazard), I (Institutional), M (Mercantile), and U (Utility and Miscellaneous). Projects with an S (Storage) occupancy group will be calculated at fifty (50) percent of fees noted below (with a minimum fee of one hundred dollars ($100.00)).

New Commercial Construction—Complex Plans			
Occupancy Groups: A, B, E, F, H, I, M, S, U			
Range (sq. ft.)	*Mechanical*	*Electrical*	*Plumbing*
≤1,000 sq. ft.	$100.00	$100.00	$100.00
per additional 1,000 over 1,000	$5.00	$5.00	$5.00
≤ 5,000 sq. ft.	$120.00	$120.00	$120.00
per additional 1,000 over 5,000	$15.00	$15.00	$15.00
≤ 10,000 sq. ft.	$195.00	$195.00	$195.00
per additional 1,000 over 10,000	$20.00	$20.00	$30.00
≤ 25,000 sq. ft.	$495.00	$495.00	$645.00
per additional 1,000 over 25,000	$30.00	$30.00	$35.00
≥ 50,000 sq. ft.	$1,245.00	$1,245.00	$1,520.00
per additional 5,000 over 50,000	$35.00	$35.00	$35.00

As noted in above table, there is an additional charge beyond the flat fee when the size of a project is greater than the base size. For example, an Occupancy B project size area equal to 1,901 square feet:

- 1,000 sq. ft. base fee = $100.00.
- Each additional 1,000 square feet or increment thereof over 1,000 square feet will assess an additional charge of $5.00.
- Total Fee= $100 + [$5.00 x (1,901-1,000)/1,000] = $104.51.

Rather than paying a fee of $100.00, the final fee is $104.51 for a project that is 1.901 square feet in size.
(Ord. No. 2025-01-30-0075, § 1(Att. 1), 1-30-25)

Secs. 10-33—10-35. Reserved.

ARTICLE IV. RESIDENTIAL CODE FOR ONE- AND TWO-FAMILY DWELLINGS

Sec. 10-36. Adoption of *International Residential Code* (2024).

The 2024 edition of the *International Residential Code* for *One-and-Two-family Dwellings*, promulgated by the International Code Council, Chapters 2 through 10, 12 through 23, Section P2904, Chapter 44 and Appendices BB, BG and BO are adopted and incorporated in this article by reference as if fully set forth, except as it is amended by the following provisions of section 10-37. Provisions of this article are in addition to the provisions of the *International Residential Code*. The following provisions coinciding with the provisions of the *International*

Residential Code supersede, repeal, or delete, when indicated, the corresponding provisions of the *International Residential Code*.

All references within the model codes to any building, electrical, fuel gas, mechanical, plumbing, energy conservation, existing building, or swimming pool code shall be construed to be a reference to the respective building, electrical, fuel gas, mechanical, plumbing, energy conservation, existing building, or swimming pool code specifically adopted by reference in articles II through XIV of this chapter.
(Ord. No. 2025-01-30-0075, § 1(Att. 1), 1-30-25)

Sec. 10-37. Amendments to the adopted chapters and Appendices J and K of the *International Residential Code* (IRC) (2024).

Additions to the *International Residential Code* (IRC) are shown as underlined text. Deletions of the IRC are shown as bracketed [~~strikethroughs~~].

TABLE R301.2 is amended to read as follows:

TABLE R301.2
CLIMATIC AND GEOGRAPHIC DESIGN CRITERIA

GROUND SNOW LOAD°	WIND DESIGN		SEISMIC DESIGN CATEGORY[f]	SUBJECT TO DAMAGE FROM		
	Speed[d] (mph)	Topographic effects[k]		Weathering[a]	Frostline depth[b]	Termite[c]
6	108	NO	A	Negligible	0	Moderate To Heavy

WINTER DESIGN TEMP[e]	ICE BARRIER UNDERLAYMENT REQUIRED[h]	FLOOD HAZARDS[g]	AIR FREEZING INDEX[i]	MEAN ANNUAL TEMP[j]
30°	NO	Appendix F, UDC	16	68.7°

Section R304.1.2, Ground contact is amended to read as follows:

R304.1.2 Ground contact. All wood in contact with the ground, embedded in concrete in direct contact with the ground or embedded in concrete exposed to the weather that supports permanent structures intended for human occupancy shall be *approved* pressure-preservative-treated wood suitable for ground contact use, except that untreated wood used entirely below groundwater level or continuously submerged in fresh water shall not be required to be pressure-preservative treated. Creosote-treated railroad ties will not be approved for use in retaining wall construction unless the wall is exempt from the requirement for a permit under Section 10-6(e)(1)(d) of this chapter and the wall is located greater than 4 feet (1.22 m) from the public right-of-way.

SECTION R306, FLOOD-RESISTANT CONSTRUCTION, is hereby repealed and replaced with the City's flood plain ordinance found in Appendix F, Floodplain Areas of Special Flood Hazard, of the Unified Development Code (UDC).

Section R309.2, One- and two-family dwellings automatic fire sprinkler systems, and Section R309.2.1, Design and installation, are deleted and replaced with the following:

R309.2 One- and two-family dwellings automatic fire sprinkler systems. Where automatic residential fire sprinkler systems are installed, they shall be designed and installed in accordance with Section P2904 or NFPA 13D.

[~~R309.2 One and two-family dwellings automatic fire systems. An automatic sprinkler system shall be installed in one-and two-family dwellings.~~

~~Exception: An automatic sprinkler system shall not be required for additions or alterations to existing buildings that are not already provided with a sprinkler system.~~

~~R309.2.1 Design and installation. Automatic sprinkler systems shall be designed and installed in accordance with Section P2904 or NFPA 13D.~~]

Section R311.2.2, Alterations, repairs, and additions, is amended to read as follows:

R311.2.2 Alterations, repairs and additions. Where *alterations, repairs* or *additions* requiring a building permit occur [~~,~~] inside of existing dwellings that have attached garages or inside of existing dwellings within which fuel-fired appliances exist, or where one or more sleeping rooms are added or created in existing dwellings, the individual *dwelling unit* shall be equipped with carbon monoxide alarms located as required for new *dwellings*.

Exceptions:

1. Work involving the exterior surfaces of *dwellings*, such as the replacement of roofing or siding, or the addition or replacement of windows or doors, or the addition of a porch or deck.
2. Installation, alteration, or repairs of plumbing systems.
3. Installation, alteration or repairs of mechanical systems that are not fuel fired.

Section R318.7, Stairways, is amended as follows:

R318.7 Stairways. Where required by this code or provided, stairways shall comply with this section.

Exceptions:

1. Stairways not within or not serving a building, porch or deck.
2. Stairways leading to nonhabitable attics.
3. Stairways leading to crawl spaces.

Section R318.8, Ramps, is amended as follows:

R318.8 Ramps. Where required by this code or provided, ramps shall comply with this section.

Exception: Ramps not within or not serving a building, porch, or deck.

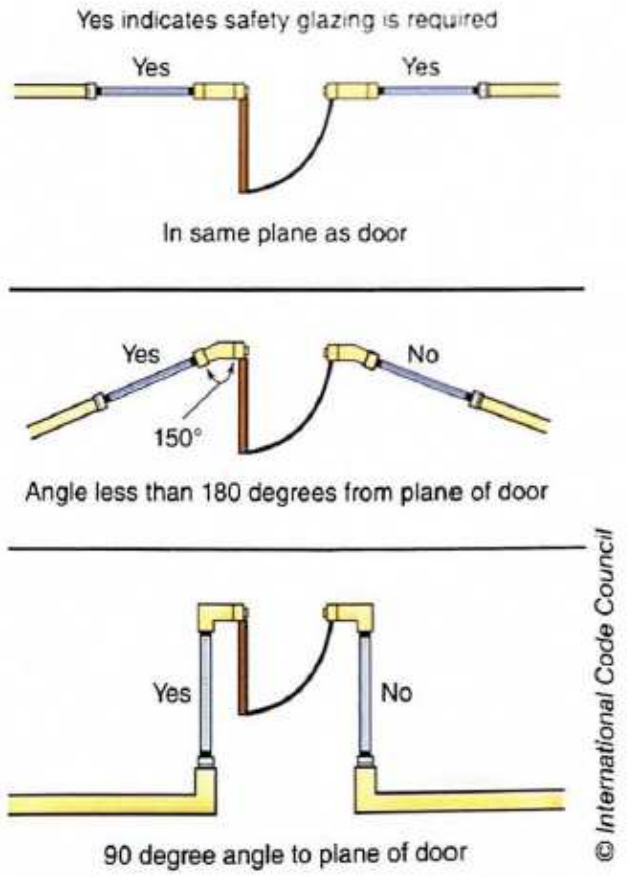
Section R324.4.2, Glazing adjacent to doors, is amended to read as follows:

R324.4.2 Glazing adjacent to doors. Glazing in an individual fixed or operable panel adjacent to a door shall be considered to be a hazardous location where the bottom exposed edge of the glazing is less than 60 inches (1524 mm) above the floor or walking surface and it meets either of the following conditions:

1. Where the glazing is within 24 inches (610 mm) of either side of the door in the plane of the door in a closed position.
2. Where the glazing is on a wall less than 180 degrees (3.14 rad) from the plane of the door in a closed position and within 24 inches (610 mm) of the hinge side of an in-swinging door.

Exceptions:

1. Decorative glazing.
2. Where there is an intervening wall or other permanent barrier between the door and the glazing.
3. Where access through the door is to a closet or storage area. [~~3 feet (914 mm) or less in depth. Glazing in this application shall comply with section R324.4.3~~]
4. Glazing that is adjacent to the fixed panel of patio doors.



Glazing Adjacent to Doors

Section R403.1.6, Foundation anchorage, is amended in the first paragraph only to read as follows:

R403.1.6 Foundation anchorage. Wood sill plates and wood walls that are part of the braced wall provisions of this code and supported directly on continuous foundations shall be anchored to the foundation in accordance with this section.

Section R408, UNDER-FLOOR SPACE, is amended by adding Section R408.9, Foundation Repair, to read as follows:

R408.9 Foundation Repair. A foundation repair permit and assumption of Engineer of Record letter and any construction documents must be submitted at time of application. The engineer shall inspect foundation repairs and submit a letter for the repairs. Any skirting removed, repaired, or replaced along with ventilation, sub-floor access and drainage will require a final inspection by the building official or an engineer's letter for those repairs.

Section R903.4, Roof drainage, is amended by adding Sections R903.4.2, Zero lot line development, and R903.4.3, Gutters and downspouts, to read as follows:

R903.4.2 Zero lot line development. On zero lot line development where roof projections are allowed by deed covenant or ingress/egress easements, adequate gutters and downspouts shall be provided to direct roof water away from adjacent property. Roof projec-

tions shall not extend beyond a point one third the width of the easement or a maximum of 24 inches (610 mm).

R903.4.3 Gutters and downspouts. Any Group R or Group U occupancy with roof edges less than three feet (914 mm) to any property line shall be provided with gutters and downspouts to direct roof water away from adjacent property.

Section M1305.1.2, Appliances in attics, is amended by adding Section M1305.1.2.2, Access for cooling or heating appliance, to read as follows:

M1305.1.2.2 Access for cooling or heating appliance. For one- and two-family residential occupancies and townhomes with newly installed cooling or heating appliances in the attic space, a permanent ladder, fold-away ladder, or a direct access door opening from the house on the same floor level shall be installed.

Section M1411.5, Signs and identification, is amended as follows:

M1411.5 Signs and identification. Each refrigeration system using Group A2L refrigerant shall have the following information legibly and permanently indicated on a markable label provided by the equipment manufacturer.

[~~1. Contact information of the responsible company that installed the refrigeration system.~~]

[~~2.~~]1. The system refrigerant charge and the refrigerant number.

Section M1411.9.1, Auxiliary and secondary drain systems, is amended as follows:

M1411.9.1 Auxiliary and secondary drain systems. In addition to the requirements of Section M1411.9, a secondary drain or auxiliary drain pan shall be required for each cooling or evaporator coil where damage to any building components will occur as a result of overflow from the equipment drain pan or stoppage in the condensate drain piping. Such piping shall maintain a minimum horizontal slope in the direction of discharge of not less than 1/8 unit vertical in 12 units horizontal (1-percent slope). Drain piping shall be not less than 3/4-inch (19 mm) nominal pipe size. One of the following methods shall be used:

1. An auxiliary drain pan with a separate drain shall be installed under the coils on which condensation will occur. The auxiliary pan drain shall discharge to a conspicuous point of disposal [~~to alert occupants~~] for an interior installation or to a clearly visible location near an egress door for an exterior installation in the event of a stoppage of the primary drain. The pan shall have a minimum depth of 1.5 inches (38 mm), shall be not less than 3 inches (76 mm) larger than the unit or the coil dimensions in width and length and shall be constructed of corrosion-resistant material. Galvanized sheet steel pans shall have a minimum thickness of not less than 0.0236-inch (0.6010 mm) (No. 24 Gage). Nonmetallic pans shall have a minimum thickness of not less than 0.0625 inch (1.6 mm).

2. A separate overflow drain line shall be connected to the drain pan installed with the equipment. This overflow drain shall discharge to a conspicuous point of disposal [~~to alert occupants~~] for an interior installation or to a clearly visible location near an egress door for an exterior installation in the event of a stoppage of the primary drain. The overflow drain line shall connect to the drain pan at a higher level than the primary drain connection.

3. An auxiliary drain pan without a separate drain line shall be installed under the coils on which condensation will occur. This pan shall be equipped with a water level detection device conforming to UL 508 that will shut off the equipment served prior to overflow of the pan. The pan shall be equipped with a fitting to allow for drainage. The auxiliary drain pan shall be constructed in accordance with Item 1 of this section.

4. A water-level detection device conforming to UL 508 shall be installed that will

shut off the equipment served in the event that the primary drain is blocked. The device shall be installed in the primary drain line, the overflow drain line or the equipment-supplied drain pan, located at a point higher than the primary drain line connection and below the overflow rim of such pan.

Section M1411.9.2, Drain pipe materials and sizes, is amended as follows:

M1411.9.2 Drain pipe materials and sizes. Components of the condensate disposal system shall be ABS, cast iron, copper, cross-linked polyethylene, CPVC, galvanized steel, PE-RT, polyethylene, polypropylene or PVC pipe or tubing. Components shall be selected for the pressure and temperature rating of the installation. Joints and connections shall be made in accordance with the materials specified in Article IX of this chapter [~~applicable provisions of Chapter 30~~]. Condensate waste and drain line size shall be not less than ¾-inch (19 mm) nominal diameter from the drain pan connection to the place of condensate disposal. Where the drain pipes from more than one unit are manifolded together for condensate drainage, the pipe or tubing shall be sized in accordance with an *approved* method. Primary drain lines located in unconditioned spaces, except for crawl spaces, shall be insulated with foam plastic rubber-based insulation or other approved material with a minimum thickness of ⅜ inch.

Section M1411.15, Locking access port caps, is amended to read as follows:

M1411.15 Locking Access port caps. Refrigerant circuit access ports ~~located outdoors~~ shall be fitted with ~~locking-type tamper-resistant~~ caps ~~or shall be otherwise secured to prevent unauthorized access~~.

Section M1502.6, Makeup air, is deleted in its entirety.

Section M2002.4.1, Requirements for discharge pipe, is amended to read as follows:

M2002.4.1 Requirements for discharge piping.

The discharge piping serving a pressure relief valve, temperature relief valve or combination valve shall:

1. Not be directly connected to the drainage system.
2. Discharge through an air [~~break~~] gap located in the same room as the boiler.
3. Not be smaller than the diameter of the outlet of the valve served and shall discharge full size to the air [~~break~~] gap.
4. Serve a single relief device and shall not connect to piping serving any other relief device or equipment.
5. Discharge to [~~the floor, to the pan serving the boiler or storage tank, to~~] a waste receptor or to the outdoors. Discharge to the floor of a garage or basement will only be allowed if approved by the *code official*. Terminate to the exterior a minimum of six inches (152 mm) and a maximum of 12 inches (304 mm) above the finish grade.
6. Discharge in a manner that does not cause personal injury or structural damage.
7. Discharge to a termination point that is accessible [~~readily observable by the building occupants~~].
8. Not be trapped.
9. Be installed to flow by gravity.
10. Terminate not more than 6 inches (152 mm) above the floor or waste receptor flood level rim.
11. Not have a threaded connection at the end of the piping.
12. Not have valves or tee fittings.
13. Be constructed of those materials indicated in Section P2906.5 or materials tested, rated and *approved* for such use in accordance with ASME A112.4.1.
14. Union or flex connector on temperature pressure relief valve shall be placed within six inches (1522 mm) of the valve for removal and replacement.

Section M2005.2, Prohibited locations, is amended as follows:

M2005.2 Prohibited locations. Fuel-fired water heaters shall not be installed in a room used as a storage closet. Water heaters located in a bedroom or bathroom shall be installed in a sealed enclosure so that *combustion air* will not be taken from the living space. Installation of direct-vent water heaters within an enclosure is not required. Storage type water heaters shall not be installed in an attic unless accessible from a door opening from the house on the same floor level. Water heaters installed in a garage having an ignition source shall be elevated such that the source of ignition is not less than 18 inches (457 mm) above the garage floor, unless the ignition source is listed as flammable vapor ignition resistant. An electric water heater is the only type of water heater that may be installed under a stairway or landing.

(Ord. No. 2025-01-30-0075, § 1(Att. 1), 1-30-25)

Sec. 10-38. Fee schedule.

Residential plan review fees and residential permit fees apply to all separate additions, renovations, and installations to existing residential homes. See section 10-39 for fees for new residential construction.

Building	
Residential Plan Review Fees. See section 10-39 for new residential construction plan review fees.	
Valuation: $0—$24,000	$100.00
Valuation: $24,001—$200,000	$100.00 plus $1.38/1,000, or fraction thereof, over $24,000
Valuation $200,001—$1,000,000	$342.88+$0.72/$1,000, or fraction thereof, over $200,000
Valuation $1,000,001+	$918.88+$0.17/$1,000, or fraction thereof, over $1,000,000
Construction for new homes valued under $100,000 will receive a 25% discount applied to the building plan review fees.	
Mobile home Installation	$50.00
Landscape Plan Review	
Base Fee	$27.50
Plus percent of the Building Plan Review Fee	11%
Residential Swimming Pool Plan Review Fee	Based upon valuation
Residential Plan Retrieval Fee	$100.00
Residential Permit Fees	
Residential Building Permit Fees. See section 10-39 for new residential construction building permit fees.	
Valuation: $0—$1,000	$100.00
Valuation: $1,001—$25,000	$100.00+$7.28/$1,000, or fraction thereof, over $1,000
Valuation: $25,001—$75,000	$274.87+$5.72/$1,000, or fraction thereof, over $25,000
Valuation $75,000	$560.00+$1.25/$1,000, or fraction thereof, over $75,000
*Homes valued under $100,000 will receive a 25% discount applied to the building permit fees.	
Residential Fence Permit	$25.00
Residential Swimming Pool Permit Fee	Based upon valuation with $30,000/minimum value
Residential Re-roof Permit	$25.00
Special Services Fees—Building Plan Review and Inspection	

Additional Plan Review (i.e., revised)—Per Reviewer per Hour (1 hour minimum)	$100.00
Administrative Exception/Variance Request	$350.00
After-hours Plan Review—Residential—Building, Tree Preservation, Drainage (Per hour with 1.25 hour minimum)	$100.00
Inspection for which no fee is specifically indicated (per hour with 1 hour minimum)	$100.00
After-hour Inspection Review—per Reviewer per Hour (1 hour minimum)	$100.00
Link child-parent permits	$5.00/residential permit
Inspection Schedule Fee (free on-line)	$3.00
Re-inspection Fee	$51.50
Residential Building Plan Application Administrative Processing Fee (free on-line)	$10.00
Permit extension fee	50% of permit
Building-related and Fire Codes Appeals and Advisory Board Fees	
Building-related and Fire Codes Appeal Fee	$155.00
Certificate of Occupancy	
Residential	
Temporary Residential Certificate of Occupancy	$150.00
Temporary Residential Certificate of Occupancy Extension	$75.00
Residential Construction Moving in without Certificate of Occupancy	$300.00
Registration Fees	
Homebuilders—Registration/2-year registration and renewal	$170.00
Home Improvement Contractor—Registration/2-year registration and renewal	$150.00
Home Improvement Contractor—Appeal	$155.00
Home Improvement Contractor—Duplicate Registration Card (plus tax)	$5.00
House Mover Contractor Registration	
House Mover—Registration/2-year registration and renewal	$120.00
Duplicate Registration Card (plus tax)	$5.00
Moving Buildings	
Moving buildings or structures	$100.00
Building Plan Review and Permit Fees	
Building plan review and building permit fees are based upon the project's square footage. For fee calculation purposes, building square footage shall be the total area of all floors under roof and enclosed within the outer surface of the outside enclosing walls or columns. The fees for each separate building shall be separately calculated.	
Residential Construction	
Miscellaneous Building Development Fees	
Permit Refund Fee	$50.00
Permit Reprint Fee (subject to sales tax)	$5.00
Permit Refund Fee	$50.00

Permit Amendment Fee	$10.00
Name, Address or DBA Change on Permit	$50.00
Notary Public	$3.00

(Ord. No. 2025-01-30-0075, § 1(Att. 1), 1-30-25)

Sec. 10-39. New residential construction fee schedule.

This fee schedule applies to new residential home construction. See section 10-38 for fees for separate additions, renovations, and installations to existing residential homes.

Fee Schedule for New Residential Construction										
	Basic Permit Fees							*Optional Permit Fees*		
SF Range	*Building Permit*	*Electrical Permit*	*Mechanical Permit*	*General Plumbing Permit*	*Sewer Permit*	*Plan Review*	*Total Basic Permit Fees*	*TML Permit**	*TOPS Permit**	*Gas Permit**
0000-0500	$150	$100	$80	$60	$64	$200	$654	$57	$54	$64
0501-1000	$425	$100	$80	$119	$64	$200	$988	$57	$54	$64
1001-1250	$450	$100	$80	$128	$64	$200	$1,022	$57	$54	$64
1251-1500	$625	$100	$80	$132	$64	$200	$1,201	$57	$54	$64
1501-1750	$800	$100	$85	$145	$64	$200	$1,394	$57	$54	$64
1751-2000	$850	$100	$85	$149	$64	$200	$1,448	$57	$54	$64
2001-2250	$850	$100	$85	$151	$64	$200	$1,450	$57	$54	$64
2251-2500	$850	$100	$85	$156	$64	$200	$1,455	$57	$54	$64
2501-3000	$880	$110	$85	$164	$64	$200	$1,503	$57	$54	$64
3001-3500	$920	$110	$90	$178	$64	$400	$1,762	$57	$54	$64
	Basic Permit Fees							Optional Permit Fees		
SF Range	Building Permit	Electrical Permit	Mechanical Permit	General Plumbing Permit	Sewer Permit	Plan Review	Total Basic Permit Fees	TML Permit*	TOPS Permit*	Gas Permit*
3501-4000	$930	$120	$110	$190	$64	$400	$1,814	$57	$54	$64
4001-5000	$1,000	$125	$140	$207	$64	$400	$1,936	$57	$54	$64
5001-6000	$1,100	$125	$165	$223	$64	$400	$2,077	$57	$54	$64
6001-6500	$1,200	$150	$245	$283	$64	$600	$2,542	$57	$54	$64

Fee Schedule for New Residential Construction										
	Basic Permit Fees							*Optional Permit Fees*		
SF Range	*Building Permit*	*Electrical Permit*	*Mechanical Permit*	*General Plumbing Permit*	*Sewer Permit*	*Plan Review*	*Total Basic Permit Fees*	*TML Permit**	*TOPS Permit**	*Gas Permit**
6501-7000	$1,400	$150	$245	$342	$64	$600	$2,801	$57	$54	$64
7001-7250	$1,550	$200	$245	$351	$64	$600	$3,010	$57	$54	$64
7251-7500	$1,725	$200	$245	$355	$64	$600	$3,189	$57	$54	$64
7501-7750	$1,900	$200	$250	$368	$64	$600	$3,382	$57	$54	$64
7751-9000**	$2,000	$200	$250	$372	$64	$600	$3,486	$57	$54	$64
	*Optional Fees **For projects over ninety thousand (90,000) square feet, the fees are determined by combining smaller increments to equal the square footage.									

(Ord. No. 2025-01-30-0075, § 1(Att. 1), 1-30-25)

Secs. 10-40—10-45. Reserved.

ARTICLE V. EXISTING BUILDING CODE

Sec. 10-46. Adoption of *International Existing Building Code* (2024).

The 2024 edition of the International Existing Building Code, promulgated by the International Code Council, Section 101 and 102 of Chapter 1, and Chapters 2 through 16, is adopted and incorporated in this article by reference as if fully set forth, except as it is amended by the following provisions of section 10-47. Provisions of this article are in addition to the provisions of the International Existing Building Code. The following provisions coinciding with the provisions of the International Existing Building Code supersede, repeal, or delete, when indicated, the corresponding provisions of the International Existing Building Code.

All references within the model codes to any building, electrical, fuel gas, mechanical, plumbing, energy conservation, existing building, or swimming pool code shall be construed to be a reference to the respective building, electrical, fuel gas, mechanical, plumbing, energy conservation, existing building, or swimming pool code specifically adopted by reference in articles II through XIV of this chapter.
(Ord. No. 2025-01-30-0075, § 1(Att. 1), 1-30-25)

Sec. 10-47. Amendments to the adopted chapters of the *International Existing Building Code* (2024).

Additions to the *International Existing Building Code* (IEBC) are shown as underlined text. Deletions of the IEBC are shown as bracketed [~~strikethroughs~~].

Section 101.1, Title, is amended as follows:

> **101.1 Title.** These regulations shall be known as the Existing Building Code of San Antonio, Texas, [NAME OF JURISDICTION] herein referred to as "this code."

Section [A] 101.4.2, Buildings previously occupied, is amended by amending the reference to the International Property Maintenance Code to read as follows:

> **[A] 101.4.2 Buildings previously occupied.** The legal occupancy of any building existing on the date of adoption of this code shall be permitted to continue without change, except as is specifically covered in this code, the

International Fire Code, or the San Antonio [~~International~~] Property Maintenance Code, or as is deemed necessary by the code official for the general safety and welfare of the occupants and the public.

Section 202, GENERAL DEFINITIONS, is amended by amending the definition for Change of Occupancy to read as follows:

CHANGE OF OCCUPANCY. Any of the following shall be considered as a change of occupancy where the current *International Building Code* requires a greater degree of safety, accessibility, structural strength, fire protection, means of egress, ventilation or sanitation than is existing in the current building or structure:

1. Any change in the occupancy classification of a building or structure.
2. A change in the purpose of, or a change in the level of activity within, a building or structure.
3. A change in use.

Existing open buildings and structures that are modified such that they are no longer open on at least three sides and open a minimum of 50% of the perimeter of the area covered are also considered a change of occupancy and fire sprinklers systems shall be installed for these change in occupancies in accordance with the applicable requirements of the *International Building Code* and *International Fire Code*. In order to be considered "open" for the purpose of this requirement, an open side shall be at least 50% open with the open area uniformly distributed to prevent the accumulation of smoke and toxic gases.

SECTION 306, ACCESSIBILITY FOR EXISTING BUILDINGS, is repealed in its entirety.

Section 502.6, Enhanced classroom acoustics, is deleted.

Section 503.18, Enhanced classroom acoustics, is deleted.

Section 503.20, Two-way communications systems, is deleted.

Section 506.5, Structural, is amended as follows, all other Code text remains as is:

506.5 Structural. [~~Any building undergoing a change of occupancy shall satisfy the requirements of this section.~~] The code official shall be authorized to require the compliance with this section.

Section 506.6, Enhanced classroom acoustics, is deleted.

Section 903.4, Enhanced classroom acoustics, is deleted.

Section 1011.2.1, Automatic sprinkler system, is amended as follows:

1011.2.1 Automatic sprinkler system. The installation of an automatic sprinkler system shall be required where there is a change of occupancy classification and Chapter 9 of the current *International Building Code* requires an automatic sprinkler system based on the new occupancy or where there is a change of occupancy within the space where there is a different fire protection system threshold requirement in Chapter 9 of the current *International Building Code* than exists in the current building or space. ~~The installation of the automatic sprinkler system shall be required within the area of the change of occupancy and areas of the building not separated horizontally and vertically from the change of occupancy by a nonrated permanent partition and horizontal assemblies, fire partition, smoke partition, smoke barrier, fire barrier or fire wall.~~

~~Exceptions:~~

~~1. An automatic sprinkler system shall not be required in a one- or two-family dwelling constructed in accordance with the International Residential Code.~~

~~2. Automatic sprinkler system shall not be required in a townhouse constructed in accordance with the International Residential Code.~~

~~3. The townhouse shall be separated from adjoining units in accordance with Section R302.2 of the *International Residential Code*.~~

Section 1011.4, Enhanced classroom acoustics, is deleted.

Section 1101.6, Enhanced classroom acoustics, is deleted.

Section 1102.2, Area limitations, is amended by adding Section 1102.2.1, Fire wall alternative, as follows:

1102.2.1 Fire wall alternative. In other than Groups H, F-1 and S-1, fire barriers and floor and roof assemblies constructed in accordance with Sections 707 and 711, respectively, of the *International Building Code* shall be permitted to be used in lieu of fire walls to separate the existing building from an addition for the purpose of complying with the area limitations required for the new occupancy where all of the following conditions are met:

1. The buildings (existing building and addition) are protected throughout with an automatic sprinkler system in accordance with Section 903.3.1.1 of the *International Fire Code*.
2. The maximum allowable area between fire barriers, horizontal assemblies, or any combination thereof shall not exceed the maximum allowable area determined in accordance with Chapter 5 of the *International Building Code* without an increase allowed for an automatic sprinkler system in accordance with Section 506 of the *International Building Code*.
3. The fire-resistance rating of the fire barriers and horizontal assemblies shall not be less than that specified for fire walls in Table 706.4 of the International Building Code.

Exception: Where horizontal assemblies are used to limit the maximum allowable area, the required fire resistance rating of the horizontal assemblies shall be permitted to be reduced by 1 hour provided the height and number of stories increases allowed for an automatic sprinkler system by Section 504 of the *International Building Code* are not used for the buildings.

(Ord. No. 2025-01-30-0075, § 1(Att. 1), 1-30-25)

Sec. 10-48. Fee schedule.

See the fee schedule for the *International Building Code* above.

(Ord. No. 2025-01-30-0075, § 1(Att. 1), 1-30-25)

Secs. 10-49, 10-50. Reserved.

ARTICLE VI. ELECTRICAL CODE

Sec. 10-51. Adoption of National Electrical Code (2023).

The 2023 edition of the National Electrical Code, promulgated as a standard by the National Fire Protection Association, is adopted and incorporated in this article by reference as if fully set forth, except as it is amended by the following provisions of section 10-52. Provisions of this article are in addition to the provisions of the National Electrical Code. The following provisions coinciding with the provisions of the National Electrical Code supersede, repeal, or delete, when indicated, the corresponding provisions of the National Electrical Code.

All references within the model codes to any building, electrical, fuel gas, mechanical, plumbing, energy conservation, existing building, or swimming pool code shall be construed to be a reference to the respective building, electrical, fuel gas, mechanical, plumbing, energy conservation, existing building, or swimming pool code specifically adopted by reference in articles II through XIV of this chapter.

(Ord. No. 2025-01-30-0075, § 1(Att. 1), 1-30-25)

Sec. 10-52. Amendments to the adopted chapters of the National Electrical Code (2023).

Additions to the National Electrical Code (NEC) are shown as underlined text. Deletions of the NEC are shown as bracketed [strikethroughs].

Article 100, Definitions, is amended for Dwelling Unit to read as follows:

Dwelling Unit. A single unit, providing complete and independent living facilities for one or more persons, including permanent

provisions for living, sleeping, cooking and sanitation to include free-standing habitable structures at dwellings.

Article 200.6, Means of Identifying Grounded Conductors, paragraphs (A), (A)(1), (A)(2), A (3) and paragraphs (B), (B)(1), (B)(2), (B)(3) and (B)(4) are amended as follows, with all other Code text remaining as is:

200.6. Means of Identifying Grounded Conductors.

(A) Sizes 10 [6] AWG or Smaller. The insulation of grounded conductors of 10 [6] AWG or smaller shall be identified by one of the following means:

(A) (1)A continuous white outer finish shall be used on all systems with a voltage of less than 150 Volts between the grounded and ungrounded conductors.

(A) (2)A continuous gray outer finish shall be used on all systems with a voltage of 150 Volts or higher between the grounded and ungrounded conductors.

[~~(A) (3) [Three continuous white or gray stripes along the conductor's entire length on other than green insulation.~~]

(B) Sizes 8 [4] AWG or Larger. An insulated grounded conductor 8 [4] AWG or larger shall be identified by one of the following means:

(B) (1) A continuous white outer finish shall be used on all systems with a voltage of less than 150 Volts between the grounded and ungrounded conductors.

(B) (2) A continuous gray outer finish shall be used on all systems with a voltage of 150 Volts or higher between the grounded and ungrounded conductors.

[~~(B) (3) Three continuous white or gray stripes along the conductor's entire length on other than green insulation.~~]

(B) (3) [~~(4)~~] At the time of installation, be identified by a distinctive white or gray marking tape at its terminations. The [~~This~~] marking tape shall encircle the conductor insulation a minimum of two inches in length.

Article 200.7, Use of Insulation of a White or Gray Color or with Three Continuous White or Gray Stripes, is amended just on the title as follows; all other Code text remains as is:

200.7 Use of Insulation of a White or Gray Color or with Three Continuous White or Gray Stripes on Cables Listed in Article 334.

Article 210.5, Identification for Branch Circuits, paragraphs (C)(1)(a), (C)(2), (C)(2)(a) and (C)(2)(b) are amended as follows, all other Code text remains as is:

210.5 Identification for Branch Circuits.

(C) Identification of Ungrounded Conductors. Ungrounded conductors shall be identified in accordance with 210.5(C)(1) or (2), as applicable.

(1) **Branch Circuits Supplied from More Than One Nominal Voltage System.** Where the premises wiring system has branch circuits supplied from more than one nominal voltage system, each ungrounded conductor of a branch circuit shall be identified by phase or line and by nominal voltage system at all termination, connection, and splice points in accordance with 210.5(C)(1)(a) and (C)(1)(b). Different systems within the same premises that have the same nominal voltage shall be permitted to use the same identification.

(a) *Means of Identification.* Conductors 10 AWG and smaller shall have factory colored insulation. Conductors 8 AWG and larger may have factory colored insulation or black insulation with a marking tape that encircles the insulation a minimum of two inches in length. Color of insulation or marking tape shall comply with the following table: [~~The means of identification shall be~~

~~permitted to be by separate color coding, marking tape, tagging, or other approved means.~~]

Exception: Where #10 or smaller NM cable where the white or gray "grounded" conductor is used as a phase conductor, it shall be permitted to be field-marked with the required phase conductor color, throughout the entire visible length in disconnects, junction boxes, panels, and termination points. No white or gray insulation color shall be visible.

UNGROUNDED CONDUCTOR IDENTIFICATION COLORS FOR ELECTRICAL SYSTEMS			
208Y/120 Volts	**120/240 Volts**	**480Y/277 Volts**	**120/240 Volts**
A - Black	*A - Black*	*A - Purple*	*A - Black*
B - Red	B - Orange (high leg)	B - Brown	B - Red
C - Blue	C - Blue	C - Yellow	

Informational Note 1: Conductors used for switch legs shall be the same color as the branch circuit conductors.

Informational Note 2: Conductors used for travelers may be of the same color as its associated switch leg or may be any of the above colors not used on the project. The colors designated for the grounded conductor, grounding conductors or for identification of the high leg may not be used for travelers.

Informational Note 3: In existing installations where modifications to the electrical system are required, and there is an established system of colors for ungrounded conductors, the existing color-coding system may continue to be used.

(2) **Branch Circuits Supplied from Direct-Current Systems.** Where a branch circuit is supplied from a dc system operating at more than 60 volts, each ungrounded conductor of 8 [4] AWG or larger shall be identified by polarity at all termination, connection, and splice points by marking tape, tagging, or other approved means; each ungrounded conductor of 10 [6] AWG or smaller shall be identified by polarity at all termination, connection, and splice points in compliance with 210.5(C)(2)(a) and (b). The identification methods utilized for conductors originating within each branch-circuit panelboard or similar branch-circuit distribution equipment shall be documented in a manner that is readily available or shall be permanently posted at each branch-circuit panelboard or similar branch-circuit distribution equipment.

(a) *Positive Polarity, Sizes 10 ~~[6]~~ AWG or Smaller.* Where the positive polarity of a dc system does not serve as the connection point for the grounded conductor, each positive ungrounded conductor shall be identified by one of the following means:

* * * * *

(b) *Negative Polarity, Sizes 10 ~~[6]~~ AWG or Smaller.* Where the negative polarity of a dc system does not serve as the connection point for the grounded conductor, each negative ungrounded conductor shall be identified by one of the following means:

Article 210.8, Ground-Fault Circuit-Interrupter Protection for Personnel, paragraph (B)Other Than Dwelling Units, is amended to add Number 16, all other code text remains as is:

(B) Other Than Dwelling Units. All 125-volt through 250-volt receptacles supplied by single-phase branch circuits rated 150 volts or less to ground, 50 amperes or less, and all receptacles supplied by three-phase branch circuits rated 150 volts or less to ground, 100 amperes or less, installed in the following locations shall be provided with GFCI protection.

(16) Aircraft hangar

Article 210.23, Permissible Loads, Multiple-Outlet Branch Circuits, paragraph (A) 10-Ampere Branch Circuits, is deleted as follows, all other code text remains as is:

[~~**(A) 10-Ampere Branch Circuits.** A 10-ampere branch circuit shall comply with the requirements of 210.23(A)(1) and (A)(2).~~

~~**(1) Load Permitted for 10-Ampere Branch Circuits.** A 10-ampere branch circuit shall be permitted to supply one or more of the following:~~

~~(1) Lighting outlets~~

~~(2) Dwelling unit exhaust fans on bathroom or laundry room lighting circuits~~

~~(3) A gas fireplace unit supplied by an individual branch circuit~~

~~(2) **Loads Not Permitted for 10-Ampere Branch Circuits.** A 10-ampere branch circuit shall not supply any of the following:~~

~~(1) Receptacle outlets~~

~~(2) Fixed appliances, except as permitted for individual branch circuits~~

~~(3) Garage door openers~~

~~(4) Laundry equipment]~~

Article 210.52, Dwelling Unit Receptacle Outlets, paragraph (B)(1) and (C)(2) are amended as follows, all other code text remains as is:

(B) Small Appliances.

(1) **Receptacle Outlets Served.** In the kitchen, pantry, breakfast room, dining room, or similar area of a dwelling unit, the two or more 20-ampere small-appliance branch circuits required by 210.11(C)(1) shall serve all wall and floor receptacle outlets covered by 210.52(A), and all countertop outlets covered by 210.52(C) [~~, and receptacle outlets for refrigeration equipment~~]. Receptacle outlets for refrigeration equipment shall not be connected to the small- appliance branch circuits.

(C) Countertops and Work Surfaces.

(2) **Island and Peninsular Countertops and Work Surfaces.** Receptacle outlets, if installed to serve an island or peninsula countertop or work surface, shall be installed in accordance with 210.52(C)(3). [~~If a receptacle outlet is not provided to serve an island or peninsular countertop or work surface, provisions shall be provided at the island or peninsula for future addition of a receptacle outlet to serve the island or peninsular countertop or work surface.~~]

Article 210.70, Lighting Outlets Required, is amended to include 210.70(D); all other code text remains as is:

210.70 Lighting Outlets Required. Lighting outlets shall be installed where specified in 210.70(A), (B), [~~and~~] (C), and D. The switch or wall-mounted control device shall not rely exclusively on a battery unless a means is provided for automatically energizing the lighting outlets upon battery failure.

(D) **Open Lamps.** Lighting outlets required by 210.70(A)(3) and 210.70(C) with open lamps shall be guarded where installed less than seven feet above the working surface measured directly below the lamp or where exposed to physical damage.

Article 215.12, Identification for Feeders, paragraphs (C)(1)(a), (C)(2), (C)(2)(a) and (C)(2)(b) are amended to read as follows:

215.12 Identification for Feeders.

(C) **Identification of Ungrounded Conductors.** Ungrounded conductors shall be identified in accordance with 215.12(C)(1) or (C)(2), as applicable.

(1) **Feeders Supplied from More Than One Nominal Voltage System.** Where the premises wiring system has feeders supplied from more than one nominal voltage system, each ungrounded conductor of a feeder shall be identified by phase or line and system at all termination, connection, and splice points in compliance with 215.12(C)(1)(a) and (C)(1)(b).

(a). *Means of Identification.* Feeders shall be color coded in accordance with Article 210.5(C)(1)(a). [~~The means of identification shall be permitted to be by separate color coding, marking tape, tagging, or other approved means.~~]

(2) **Feeders Supplied from Direct-Current Systems.** Where a feeder is supplied from a dc system operating at more than 60 volts, each ungrounded conductor of 8 [4] AWG or larger shall be identified by polarity at all termination, connection, and splice points by marking tape, tagging, or other approved means; each ungrounded conductor 10 [6] AWG or smaller shall be identified by polarity at all termination, connection, and splice points in compliance with 215.12(C)(2)(a) and (C)(2)(b). The identification methods utilized for conductors originating within each feeder panelboard or similar feeder distribution equipment shall be documented in a manner that is readily available or shall be permanently posted at each feeder panelboard or similar feeder distribution equipment.

(a). *Positive Polarity, sizes 10 [6] AWG or Smaller.* Where the positive polarity of a dc system does not serve as the connection for the grounded conductor, each positive ungrounded conductor shall be identified by one of the following means:

* * * * *

(b). *Negative Polarity, sizes 10 [6] AWG or Smaller.* Where the negative polarity of a dc system does not serve as the connection for the grounded conductor, each negative ungrounded conductor shall be identified by one of the following means:

* * * * *

Article 220.41, Dwelling Units, Minimum Unit Load, is amended as follows, all other code text remains as is:

220.41 Dwelling Units, Minimum Unit Load. In one-family, two-family, and multifamily dwellings, the minimum unit load shall be not less than 33 volt-amperes/m^2 (3 volt-amperes /ft^2). Unit loads include the following lighting and receptacle outlets, and no additional load calculations shall be required.

(1) All general-use receptacle outlets of 20-ampere rating or less, including receptacles connected to the circuits specified in 210.11(C)(3) and (C)(4)

(2) The receptacle outlets specified in 210.52(E) and (G)

(3) The lighting outlets specified in 210.70

The minimum lighting load shall be determined using the minimum unit load and the floor area as determined in 220.5(C) for dwelling occupancies. Motors rated less than 1/8 hp and connected to a lighting circuit shall be considered part of the minimum lighting load. A maximum load of 1440 VA, consisting of receptacles at 180 VA each plus luminaires at their maximum allowed lamp wattage shall be permitted on a 15 A branch circuit and a maximum load of 1920 VA, consisting of receptacles at 180 VA each plus luminaires at their maximum allowed lamp wattage shall be permitted on a 20 A branch circuit. When using the optional VA method in lieu of the total number of outlets described in the previous sentence, the VA load shall be computed in accordance 210.20(A) - receptacles at 100% plus luminaires at 125%.

Article 225.30(B), Common Supply Equipment, is repealed in its entirety.

Article 230.2, Number of Services, paragraph (F) and (G) are added as follows, all other code text remains as is:

230.2 Number of Services. A building or other structure served shall be supplied by only one service unless permitted in 230.2(A) through (G) [(D)]. For the purpose of 230.40, Exception No. 2 only, underground sets of conductors, 1/0 AWG and larger, running to the same location and connected together at their supply end but not connected together at their load end shall be considered to be supplying one service.

(F) **Color Coding.** Service entrance conductors shall be color coded in accordance with Article 210.5(C)(1)(a).

(G) **Fire Barrier Separation.** A minimum two-hour fire barrier is required to separate the areas served by each service. The fire barrier shall be constructed per the International Building Code. Electrical wiring in buildings with multiple services shall not cross the fire barrier.

Exception No. 1: A fire barrier is not required where an additional service is permitted by CPS Energy to supply legally required fire pumps.

Exception No. 2. A fire barrier is not required where separate services are permitted in accordance with Article 206.1 of the CPS Energy Standards and all service disconnecting means can be grouped together in a manner approved by CPS Energy. In no case shall grouped service disconnects exceed six handles.

Article 230.30, Installation, paragraph (B) is amended as follows, all other code text remains as is:

230.30 Installation.

(B) **Wiring Methods.** Underground service conductors shall be installed in accordance with the applicable requirements of this Code covering the type of wiring method used and shall be limited to the following methods as modified below:

(1) RMC conduit

(2) IMC conduit

(3) Type NUCC conduit - encased in controlled low strength material (CLSM)

(4) HDPE conduit - encased in controlled low strength material (CLSM)

(5) PVC conduit - encased in controlled low strength material (CLSM)

(6) RTRC conduit - encased in controlled low strength material (CLSM)

(7) Type IGS cable

(8) Type USE conductors or cables

(9) Type MV or Type MC cable identified for direct burial applications

(10) Type MI cable, where suitably protected against physical damage and corrosive conditions.

(11) Type TC-ER cable where identified for service entrance use and direct burial applications.

Where encasement is required above, it shall be a minimum 75 mm (3 in.) thick controlled low strength material envelope for new construction and additions.

Article 230.82, Equipment Connected to the Supply Side of Service Disconnect, is amended as follows, all other code text remains as is:

230.82 Equipment Connected to the Supply Side of Service Disconnect. Only the following equipment shall be permitted to be connected to the supply side of the service disconnecting means:

(5) Conductors used to supply energy management systems, circuits for standby power systems, fire pump equipment, and fire and sprinkler alarms, if provided with service equipment and install in accordance with requirements for service-entrance conductors. Such connections shall not be made within service equipment enclosures.

(6) Solar photovoltaic systems, fuel cell systems, wind electric systems, energy storage systems, or interconnected electric power production sources, if provided with a disconnecting means listed as suitable for use as service equipment, and overcurrent protection as specified in Part VII of Article 230. Such connections shall not be made within service equipment enclosures.

Article 240.4, Protection of Conductors, paragraph (B) is amended as follows, all other code text remains as is:

240.4 Protection of Conductors

(B) **Overcurrent Devices Rated 800 Amperes or Less.**

* * * * *

[~~If the overcurrent protection device is an adjustable trip device installed in accordance with 240.4(B)(1), (B)(2), and (B)(3), it shall be permitted to be set to a value that does not exceed the next higher standard value above the ampacity of the conductors being protected as shown in Table 240.6(A) where restricted access in accordance with 240.6(C) is provided.~~]

Article 240.24, Location in or on Premises, paragraph (D) is amended as follows, all other code text remains as is:

240.24 Location in or on Premises.

(D) **Not in Vicinity of Easily Ignitable Material.** Newly installed [O]overcurrent protection devices shall not be located in the vicinity of easily ignitable material, such as in clothes closets, storage rooms, janitor rooms, and similar. Replacements per the International Existing Building Code are permitted in existing location.

Article 250.52, Grounding Electrodes, paragraphs (A)(3)(1) and (A)(5)(2) are amended as follows, all other code text remains as is:

250.52 Grounding Electrodes.

(A) **Electrodes Permitted for Grounding.**

(3) **Concrete-Encased Electrode.** A concrete-encased electrode shall consist of at least 6.0 m (20 ft) of either of the following:

(1) One or more bare or zinc galvanized or other electrically conductive coated rebar of not less than 13 mm (1/2 in.) in diameter, installed in one continuous 6.0 m (20 ft) length, or if in multiple pieces, the rebar shall be connected together by steel tie wires, exothermic welding, welding, or other effective means to create a 6.0 (20 ft) or greater length

Informational Note to (A)(3)(1): A piece of reinforcing steel conforming to (1) above which has additional length, without splice, extended up past the sole plate of the structure to which the grounding electrode may be connected to and extended to the service equipment is acceptable. The portion of the reinforcing steel extending above the sole plate shall be painted green and the paint removed from the bar where the connection is made to the grounding electrode conductor.

(5) **Rod and Pipe Electrodes.** Rod and pipe electrodes shall not be less than 2.44 m (8 ft) in length and shall consist of the following materials.

(2) Rod-type grounding electrodes of stainless steel and copper or zinc coated steel shall be at least 15.87 mm (⅝ in.) in diameter [~~, unless listed~~].

Article 250.118, Types of Equipment Grounding Conductors, paragraph (A) is amended as follows, all other code text remains as is:

250.118 Types of Equipment Grounding Conductors.

(A) **Permitted.** As a minimum, the equipment grounding conductor shall consist of a conductor as described in item (1) as follows and may be supplemented by any of the other means described in items (2) through (14) as follows: [~~Each equipment grounding conductor run with or enclosing the circuit conductors shall be one or more or a combination of the following:~~]

Article 250.119, Identification of Wire-Type Equipment Grounding Conductors, paragraphs (B), (B)(1) and its Exception and (B)(2)c are amended as follows, all other code text remains as is:

250.119 Identification of Wire-Type Equipment Grounding Conductors.

(B) **Conductors 8[4] AWG and Larger.** Equipment grounding conductors 8 [4] AWG and larger shall comply with the following:

(1) At the time of installation, if the insulation does not comply with

250.119(A), it shall be permanently identified as an equipment grounding conductor at each end and at every point where the conductor is accessible.

Exception: *Conductors 8 [4] AWG and larger shall not be required to be marked in conduit bodies that contain no splices or unused hubs.*

(2) Identification shall encircle the conductor and shall be accomplished by one of the following:

c. Marking the insulation or covering with green tape, a minimum of two inches in length, or green adhesive labels at the termination

Article 250.120, Equipment Grounding Conductor Installation, is amended as follows:

250.120 Equipment Grounding Conductor Installation. An equipment grounding conductor shall be installed in accordance with 250.120 (A), (B), and (C). In one- and two-family dwellings, replacement of a panel will require that the feeder include separate grounded and grounding conductors, unless the 2-wire system is still in place throughout the dwelling(s) or if 3 wire receptacles have been installed in compliance with 250.130C or 406.4D(2)(b) or (c).

Article 314.19, Boxes Enclosing Flush Devices or Flush Equipment, is amended as follows:

314.19 Boxes Enclosing Flush Devices or Flush Equipment. Boxes used to enclose flush devices or flush equipment shall be of such design that the devices or equipment will be completely enclosed on the back and sides, and substantial support for the devices or equipment will be provided. Screws for supporting the box shall not also be used to attach a device or equipment. Boxes for flush devices or equipment shall have a minimum volume of 221 cm^3 (13.5 $in.^3$).

ARTICLE 330.6, Listing Requirements, is amended as follows:

330.6 Listings Requirements. Type MC cable shall be listed. Fittings used for connecting type MC cable to boxes, cabinets, or other equipment shall be listed and identified for such use. Additionally, all fittings shall be equipped with an anti-shorting bushing.

Article 330.112, Insulation, is amended as follows with all other code provisions (A & B) remaining as is:

330.112 Insulation. Insulated conductors shall comply with 330.112(A) or (B) and shall be color coded per the requirements of this chapter.

Article 330.116, Sheath, is amended as follows:

330.116 Sheath. Metallic covering shall be one of the following types: smooth metallic sheath, corrugated metallic sheath, or interlocking metal tape armor. The metallic sheath shall be continuous and close fitting. A nonmagnetic sheath or armor shall be used on single conductor Type MC. Supplemental protection of an outer covering of corrosion-resistant material shall be permitted and shall be required where such protection is needed. The sheath shall not be used as a current-carrying conductor. The cutting of the interlocking metal tape armor shall be performed with an approved rotary cutting tool designed for cutting MC cable.

Article 406.12, Tamper-Resistant Receptacles, is amended to include 406.12 (11) and (12); all other code text remains as is:

(11) Public areas of assembly occupancies where children might be present

(12) All areas accessible to patients

Article 408.30, General, is amended as follows:

408.30 General. All panelboards shall have a rating not less than the minimum feeder capacity required for the load calculated in accordance with Part III, IV, or V of Article 220, as applicable. Panelboards containing the 120 Volt branch circuits serving the interior of one- and two-family dwelling units shall be located in the interior of the structure in a readily accessible location.

Article 410.36, Means of Support, (B) Suspended Ceilings is amended as follows; All other code text remains as is:

410.36 Means of Support.

(B) **Suspended Ceilings.** Framing members of suspended ceilings systems used to support luminaires shall be securely fastened to each other and shall be securely attached to the building structure at appropriate intervals. Luminaires shall be securely fastened to the ceiling framing member by mechanical means such as bolts, screws, or rivets. Listed clips identified for use with the type of ceiling framing members(s) and luminaire(s) shall also be permitted. Two independent support wires per luminaire on opposing corners shall be permitted when installed in accordance with 300.11(B).

Article 440.8, Single Machine and Location, is amended as follows:

440.8 Single Machine and Location. An air-conditioning or refrigerating system shall be considered to be a single machine under the provisions of 430.87, Exception No. 1, and 430.112, Exception. The motors shall be permitted to be located remotely from each other. Air-conditioning and refrigeration equipment shall not be installed within a zone measured 900 mm (3 ft) horizontally and 2.5 m (8 ft) vertically from the top of a bathtub rim or shower stall threshold unless fully concealed above the ceiling. The zone shall be all-encompassing and include the space directly over the tub or shower stall.

Article 445.18, Disconnecting Means, (A) Disconnecting Means is amended as follows; All other code text remains as is:

(A) **445.18 Disconnecting Means.** Generators other than cord-and-plug-connected portable generators shall have one or more disconnecting means. Each disconnecting means shall simultaneously open all associated ungrounded conductors. Each disconnecting means shall be lockable open in accordance with 110.25.

[~~The disconnecting means shall be permitted to be located within the generator behind a hinged cover, door, or enclosure panel. Where the generator disconnecting means is located within the generator, a field applied label meeting the requirements of 110.21(B) shall be provided indicating the location of the generator disconnecting means.~~]

Article 517.6, Patient Care-Related Electrical Equipment, is amended as follows:

517.6 Patient Care-Related Electrical Equipment. The reconditioning requirements of this Code shall not apply to patient care-related electrical equipment.

Exception: Temporary equipment.

Article 517.10, Applicability, (B) Not Covered is amended as follows; All other code text remains as is:

517.10 Applicability.

(B) Not Covered. Part II shall not apply to the following:

(3) Areas used exclusively for any of the following purposes:

a. Intramuscular injections (immunizations)

b. Psychiatry and psychotherapy

c. Alternative medicine

[~~d. Optometry~~]

d [e]. Pharmacy services not contiguous to health care facilities

Article 525.20, Wiring Methods, (B) Single-Conductor is amended as follows; All other code text remains as is:

525.20 Wiring Methods.

(B) **Flexible Cords and Single-Conductor Cables.** Flexible cords shall be permitted only in sizes 12 AWG or larger and shall contain a separate grounding conductor. A maximum of one 25-foot (7.65 m) extension cord may be connected to each individual receptacle provided as part of the manufacturers listed generator. Single-conductor cable shall be permitted only in sizes 2 AWG or larger.

Article 604.10, Uses Permitted, Exception No. 1, is amended as follows, All other code text remains as is:

604.10 Uses Permitted.

Exception No. 1: *In concealed spaces, one end of tapped cable shall be permitted to extend into hollow walls* <u>*of manufactured wall systems, with removable panels for access to the wiring system,*</u> *for direct termination at switch and outlet points.*

Article 680.23, Underwater Luminaires, (A)General (4) is amended as follows; All other code text remains as is:

680.23 Underwater Luminaires.

(A) **General.**

(4) **Voltage Limitation.** No luminaires shall be installed for operation on supply circuits over 150 volts between conductors <u>and the limits are 15 volts ac or 30 volts dc at the luminaire</u>.

Article 701.4, Capacity and Rating, paragraph (D)(2) is amended as follows, All other code text remains as is:

701.4 Capacity and Rating.

(D) **Parallel Operation.** Parallel operation shall comply with Part I or Part II of Article 705 where the legally required source capacity required to supply the legally required load is maintained at all times. Parallel operation of the legally required source(s) shall consist of the sources specified in 701.4 (D)(1) and (D)(2).

(2) **Alternate Source.** Legally required standby sources shall be permitted to operate in parallel where the necessary equipment to establish and maintain a synchronous condition is provided. <u>For paralleling electric generators or auxiliary power supplies, including emergency electric generators or auxiliary power supplies, the transfer scheme shall parallel no more than one (1) second with CPS Energy's distribution system during the transfer of the load from emergency/standby power to normal power. Such distributed generation systems shall be approved by CPS Energy's Distributed Generation section.</u>

Article 705.50, System Operation, is amended to read as follows:

705.50 System Operation. Interconnected microgrid systems shall be capable of operating in interactive mode with a primary source of power, or electric utility, or other electric power production and distribution network. Microgrid systems shall be permitted to disconnect from other sources and operate in island mode <u>only during the loss of utility power to act as a backup power source.</u>

Article 706.7, Commissioning and Maintenance, (A) Commissioning is amended as follows; All other code text remans as is:

(A) **Commissioning.** ESSs shall be commissioned upon installation. <u>Commissioning for one-and-two family dwellings shall be conducted by CPS Energy.</u> [~~This shall not apply to one-and-two family dwellings.~~]

(Ord. No. 2025-01-30-0075, § 1(Att. 1), 1-30-25)

Sec. 10-53. Electrical provisions.

(a) *General.* The provisions of this section shall apply to the design, construction, installation, use and maintenance of electrical systems and equipment. Where differences occur between provisions of this Code and referenced codes or standards, the provisions of this Code shall apply.

(b) *Equipment and door labeling.* The disconnecting means for each service, feeder or branch circuit originating in a switchboard or panelboard shall be legibly and durably marked to indicate its purpose unless such purpose is clearly evident to the code official. Doors into electrical panel rooms shall be marked with a plainly visible and legible sign stating ELECTRICAL ROOM or similar approved wording.

(c) *TOPS (Temporary on Permanent Set) permit.* The section outlines the requirements for obtaining a permit to allow the connection of

the new or existing electrical service to CPS Energy prior to having all final inspections completed on a project. The issuance of a TOPS permit and the subsequent connection to the utility company service does not allow an owner or the occupants to occupy the building or structure until a C of O has been issued. The above permit does not waive any of the applicable provisions of articles IV and VIII.

(1) *Section 10-1302.3.1 Permit Application.* A licensed electrical contractor registered with the city must make the application for the TOPS permit. The electrical contractor must also request that the TOPS permit be attached to the main building permit in the city's computer system. The TOPS permit is required in addition to the main electrical permit for the project.

(2) The following are the general conditions for obtaining a TOPS permit for new construction and may be modified by the code official to suit project specific conditions:

a. The electrical service must be complete along with all grounding requirements, and the electrical conductors originating from the service equipment must be terminated in an approved electrical manner.

b. The building permit on residential construction shall have an approved foundation and complete frame inspection. The building permit on commercial construction shall have a complete foundation and at minimum a partial frame inspection.

c. On residential construction all trade permits must have approved rough-ins and a complete plumbing top out. On commercial construction all trade permits must have a minimum of a partial rough in including a partial plumbing top out.

d. The plumbing sewer permit shall have an approved final inspection on both commercial and residential.

(3) *Existing construction.* The following are the general conditions for obtaining a TOPS permit for existing construction and may be modified by the code official to suit project specific conditions:

a. The electrical service must be in good condition and comply with the city electrical code including all grounding requirements.

b. The electrical loads originating from the existing service equipment, that will not be utilized for construction power, must be disconnected, and safeguarded from accidental contact with an energized electric bus bar.

c. Temporary GFCI protected outlets must be provided at the service equipment location to be used during construction related activities.

d. All necessary and or required trade permits must be obtained prior to giving a final approval to CPS to energize the service equipment.

(e) *Electrical inspections supervisor.* The electrical inspections supervisor of the development services department shall also serve as the master of record for electrical work performed by city electricians.

(Ord. No. 2025-01-30-0075, § 1(Att. 1), 1-30-25)

Sec. 10-54. Fee schedule.

Electrical License and Registration Fees	
Master	
Renewal—City license (two-year renewal)	$300.00
DBA change on master electrical license	$20.00
Journeyman—Renewal of city license (two-year renewal)	$200.00

Maintenance technician—Annual (may only perform work not requiring a permit)	$35.00
Electrical Inspection Fee	
Electrical inspection permit fee (basic fee). See section 10-39 for new residential construction electrical inspection fee.	$50.00
Service rating:	
0—200 amps	$3.25
201—600 amps	$6.50
601—1,000 amps	$8.65
1,001—2,500 amps	$10.80
Over 2,500 amps	$12.50
Temporary meter loop (TML). See section 10-39 for new temporary meter loop fee.	$2.15
Temporary on permanent sets (TOPS). See section 10-39 for temporary on permanent sets fee.	$2.15
Work with CPS	$2.15
Gear items	
Switchboards up to four handles	$10.25
Switchboards each additional handle	$1.60
Panelboards/loadcenters	$4.85
Xmfr 1—50 kva	$4.30
Xmfr over 50 kva	$9.70
Safety switch or circuit breaker 30 amps and over	$1.10
Miscellaneous items	
Underground work per 100 linear ft	$1.60
Outside overhead work per 100 linear ft	$1.60
Foundation/concrete encased electrode	$1.60
Controls/low voltage systems over 50 volts	$1.60
Commercial/industrial repair	$9.75
Light fixtures	
HID fixtures	$1.60
Ceiling fans	$1.60
Fluorescent fixtures/ballast retrofits	$0.16
Sign circuit	$1.10
General purpose outlets/devices/equipment less than one hp	$0.16
Dedicated equipment/appliance outlets 20 amps and over	$1.50
Motors	
1—7.5 hp	$2.15
7.5—25 hp	$3.25
25—50 hp	$8.10
Over 50 hp	$10.80
UPS/generator/distributed generation/storage batteries	
1—5 kw	$1.60
5—50 kw	$3.25
51—300 kw	$4.85
Over 301 kw	$6.50

Temporary wiring	
Power/lights (per every ten outlets)	$3.25
Festival booths	$5.00
Carnival rides	$5.00
Special occupancies	
Class 1, 2, or 3, of article 500 (per each circuit)	$1.00
Medical equipment (MRI, X-ray, scanners, etc.) each circuit	$1.00
Miscellaneous electrical permits Reconnect	
Reconnect inspection	$50.00
30-day (cleaning)	$2.15
180-day (leasing)	$12.89
Maintenance permit fee (electric only)	
Basic permit fee	$50.00
Plus per residential apartment unit	$0.21
Plus per 10,000 sq. ft. of commercial space	$7.00
Building-related and Fire Codes Appeals and Advisory Board Fees	
Building-related and Fire Codes Appeal Fee	$155.00
Special Services for Electrical	
After-hour inspection fee (per hour with one-hour minimum)	$100.00
Electrical plan review only (without building plan number)—(per hour with one-hour minimum)	$100.00
Inspection for which no fee is specifically indicated (per hour with one-hour minimum)	$100.00
Inspection schedule fee (free on-line)	$3.00
Permit processing fee	$10.00
Permit extension fee	50% of permit (plus cost of permit)
Re-inspection fee	$51.50
Permit refund fee	$50.00
Open permit review fee	$3.00/permit
Permit amendment fee	$10.00
Link child permit to parent permit fee	$5.00
Contractor number research fee	$10.00
Duplicate copy of city issued electrical license	$10.00
Rental of facility fees: $125.00/hour (daily min. fee of $250.00; max. fee of $1,000.00); security personnel—$15.00/hour/staff (with one-hour minimum); DSD staff—$30.00/hour/staff (with one-hour min.); custodian service—$15.00/hour (with two-hour min.)	

(Ord. No. 2025-01-30-0075, § 1(Att. 1), 1-30-25)

Secs. 10-55—10-60. Reserved.

ARTICLE VII. MECHANICAL CODE

Sec. 10-61. Adoption of *International Mechanical Code* (2024).

The 2024 edition of the *International Mechanical Code*, promulgated by the International Code Council, Chapters 2 through 15 is adopted and incorporated in this article by reference as if fully set forth, except as it is amended by the following provisions of section 10-62. Provisions of this article are in addition to the provisions of the *International Mechanical Code*. The following provisions coinciding with the provisions of the *International Mechanical Code* supersede,

repeal, or delete, when indicated, the corresponding provisions of the *International Mechanical Code*.

All references within the model codes to any building, electrical, fuel gas, mechanical, plumbing, energy conservation, existing building, or swimming pool code shall be construed to be a reference to the respective building, electrical, fuel gas, mechanical, plumbing, energy conservation, existing building, or swimming pool code specifically adopted by reference in articles II through XIV of this chapter.
(Ord. No. 2025-01-30-0075, § 1(Att. 1), 1-30-25)

Sec. 10-62. Amendments to the adopted chapters of the *International Mechanical Code* (2024).

Additions to the *International Mechanical Code* (IMC) are shown as underlined text. Deletions of the IMC are shown as bracketed [~~strikethroughs~~].

Section 202, GENERAL DEFINITIONS, is amended by adding the following definition:

> **NFPA 70.** The National Electrical Code, as amended by Article VI of this Code.

Section 301.10, Electrical, is amended as follows:

> **301.10 Electrical.** Electrical wiring, controls and connections to equipment and appliances regulated by this code shall be in accordance with NFPA 70. All wiring, including control wiring, exposed to weather shall be installed in a raceway approved for the environment.

Section 304, INSTALLATION, is amended by adding Section 304.13 Installation at gas valve, as follows:

> **304.13 Installation at gas valve.** Minimum Schedule 40 metallic pipe shall be installed at the gas valve and extended a minimum of two inches outside the gas furnace and gas rooftop unit's casing and may be connected to an approved listed flexible gas connector.

Section 306.3, Appliances in attics, is amended by adding 306.3.2 Access for cooling or heating appliance, as follows:

> **306.3.2 Access for cooling or heating appliance.** For one-and two-family residential occupancies and townhomes with newly installed cooling or heating appliances in the attic space, a permanent ladder, fold-away ladder, or direct access door opening from the house on the same floor level shall be installed.

Section 307.2.1, Condensate disposal, is deleted and replaced with the following text:

> **307.2.1 Condensate disposal.** Condensate disposal shall be in accordance with Chapter 34, Section 34-274 of the City Code of San Antonio. [~~Condensate from all cooling coils and evaporators shall be conveyed from the drain pan outlet to an approved place of disposal. Such piping shall maintain a minimum horizontal slope in the direction of discharge of not less than one-eighth unit vertical in 12 units horizontal (1-percent slope). Condensate shall not discharge into a street, alley or other areas so as to cause a nuisance.~~]

Section 307.2.1.1, Condensate discharge, is amended as follows:

> **307.2.1.1 Condensate discharge.** Condensate drains shall not directly connect to any plumbing drain, waste, or vent pipe. Condensate drains shall not discharge into a plumbing fixture other than a floor sink, floor drain, trench drain, mop sink, hub drain, standpipe, utility sink or laundry sink. Condensate drain connections to a lavatory wye branch tailpiece or to a bathtub overflow pipe shall not be considered as discharging to a plumbing fixture. Except where [~~discharging to grade outdoors~~] installed per Chapter 34, Section 34-274 of the City Code of San Antonio, the point of discharge of condensate drains shall be located within the same occupancy, tenant space or dwelling unit as the source of the condensate.

Section 30fv 07.2.2, Drain pipe materials and sizes, is amended as follows; All other code text remains as is:

> **307.2.2 Drain pipe materials and sizes.** Components of the condensate disposal system shall be ABS, cast iron, copper, and copper alloy, CPVC, cross-linked polyethylene, galvanized steel, PE-RT, polyethylene, polypropylene, PVC or PVDF pipe or tubing. Components shall be selected for the pressure

and temperature rating of the installation. Joints and connections shall be made in accordance with the applicable provisions of Chapter 7 of the *International Plumbing Code* relative to the material type. Condensate waste and drain line size shall be not less than ¾-inch pipe size and shall not decrease in size from the drain pan connection to the place of condensate disposal. Where the drain pipes from more than one unit are manifolded together for condensate drainage, the pipe or tubing shall be sized in accordance with Table 307.2.2. Primary drain lines located in any unconditioned space, except for crawl spaces, shall be insulated with foam plastic rubber-based insulation or approved material with a minimum thickness of ⅜ inch.

Section 307.2.4.1, Ductless mini-split system traps, is amended as follows:

307.2.4.1 Ductless mini-split system traps. Ductless mini-split equipment that produces condensate shall be [~~provided with an in-line check valve located in the drain line, or a trap~~] in accordance with their manufacturers' recommendations.

Section 504.4.1, Termination location, is amended as follows:

504.4.1 Termination location. Exhaust duct terminations shall be in accordance with the dryer manufacturer's installation instructions. Where the manufacturer's instructions do not specify a termination location, the exhaust duct shall terminate not less than 3 feet (914 mm) in any direction from openings into buildings, including openings in ventilated soffits or any mechanical equipment.

Section 606.2, Where required, is amended as follows; All other code text remains as is:

606.2 Where required. Smoke detectors shall be installed where indicated in Section 606.2.1 through 606.2.3 or in accordance with NFPA 90A "Standard for the Installation of Air Conditioning and Ventilating Systems."

Section 1006.6, Safety and relief valve discharge, is amended to read as follows:

1006.6 Safety and relief valve discharge. Safety and relief valve discharge pipes shall be of rigid pipe that is approved for the temperature of the system. High-pressure-steam safety valves shall be vented to the outside of the structure. The discharge piping serving pressure relief valves, temperature relief valves and combinations of such valves shall:

1. Not be directly connected to the drainage system.
2. Discharge through an air [~~break~~] gap located in the same room as the appliance.
3. Not be smaller than the diameter of the outlet of the valve served and shall discharge full size to the air [~~break~~] gap.
4. Serve a single relief device and shall not connect to piping serving any other relief device or equipment.
5. Discharge to [~~the floor, to the pan serving the boiler or storage tank, to~~] a waste receptor or to the outdoors. Discharge to the floor of a garage or basement will only be allowed if approved by the code official. Terminate to the exterior a minimum of six inches (152 mm) and a maximum of 12 inches (304 mm) above the finish grade.
6. Discharge in a manner that does not cause personal injury or structural damage.
7. Discharge to a termination point that is accessible [~~readily visible and observable by the building occupants~~]. If the discharge termination point is not readily visible and observable, a leak detection monitoring device with alarm notification (and not automatic shut-off) is required.
8. Not be trapped.
9. To be installed to flow by gravity.
10. Terminate not more than 6 inches (152 mm) above the floor or flood level rim of the waste receptor.
11. Not have a threaded connection at the end of the piping.

12. Not have valves or tee fittings.

13. Utilize piping material complying with Section 1202

14. Union or flex connector on temperature pressure relief valve shall be placed within six inches (1522 mm) of the valve for removal and replacement.

Section 1101.7, Changing refrigerant, is amended to read as follows; All other code text remains as is:

1101.7 Changing refrigerant. Changes of refrigerant in an existing system to a refrigerant with a different refrigerant designation or containing more than 220 pounds (99.8 kg) of Group A1 shall be allowed only where in accordance with the following:

Section 1101.9, Locking access port caps, is amended to read as follows:

1101.9 ~~Locking~~ Access port caps. Refrigerant circuit access ports ~~located outdoors~~ shall be fitted with ~~locking-type tamper-resistant~~ caps ~~or shall be otherwise secured to prevent unauthorized access~~.

~~This section shall not apply to refrigerant circuit access ports on equipment installed in controlled areas such as on roofs with locked access hatches or doors.~~

Section 1102.3, Access port protection, is repealed in its entirety.

Section 1109.2.5, Refrigerant pipe shafts, is amended to read as follows:

1109.2.5 Refrigerant pipe shafts. Refrigerant piping that penetrates two or more floor/ceiling assemblies shall be enclosed in a fire-resistance-rated shaft enclosure. The fire-resistance-rated shaft enclosure shall comply with Section 713 of the International Building Code.

Exceptions:

1. Refrigeration systems using R-718 refrigerant (water).
2. Piping in a single direct refrigeration system [~~using Group A1 refrigerant~~] where the refrigerant quantity does not exceed the limits of Table 1103.1 for the smallest occupied space through which the piping passes.
3. Piping located on the exterior of the *building* where vented to the outdoors.

(Ord. No. 2025-01-30-0075, § 1(Att. 1), 1-30-25)

Sec. 10-63. Fee schedule.

Heating and Air Conditioning (Mechanical)	
Heating and Air Conditioning (Mechanical) License Fees	
Master Renewal—City License per year	$150.00
Technician (journeyman) (may only perform work not requiring a permit)—Renewal	$35.00
Heating and Air Conditioning (Mechanical) Inspection Fees	
Basic Heating and Air Conditioning (Mechanical) Permit (basic fee). See section 10-39 for new residential construction basic heating and air conditioning permit fee.	$50.00
Residential (new systems) (includes inspection fee)	$77.00
Each Additional System (includes inspection fee)	$55.00
Roof-Top Unit (gas or electric)	$15.85
Gas furnace; gas wall furnace; gas unit heater; gas radiant heater; gas boiler (steam); gas floor furnace; commercial gas dryer; gas boiler (hot water); gas duct heater (per each item)	$9.60

Condensing unit; condensing unit/heat pump; indoor condensing unit; cooling coil; commercial exhaust fan; condenser (no compressor); commercial electric dryer; fan coil unit; fan powered box; type II range hood (steam); chiller; absorption unit; reach-in cooler; wall mounted unit; make-up air; heat pump; refrigeration unit; air handler; mini splits; electric furnace; electric unit heater; electric radiant heater; ventilation fan; variable air volume unit; type I range hood (grease); fume hood; cooling tower; walk-in cooler; icemaker (split system); evaporative cooler (refrigeration equipment); hot water coil; remote condensing unit; condenser (refrigeration equipment); ventilating fan (not on other permitted installation); hood served by mechanical exhaust (including ducts and makeup air systems); condensing unit (mobile homes and manufactured housing); any regulated device for which no specific fee is listed; replacement of any device which originally required a permit (per each item)	$6.25
Curtain Fire Damper; Smoke Damper; Duct Outlet; Ceiling Fire Damper; Smoke/Fire Damper (per each item)	$2.00
Building-related and Fire Codes Appeals and Advisory Board Fees	
Building-related and Fire Codes Appeal Fee	$155.00
Special Heating and Air Conditioning (Mechanical) Fees	
After-hour Inspection Fee (per hour with 1 hour minimum)	$100.00
Inspection for which no fee is specifically indicated (per hour with 1 hour minimum)	$100.00
Permit Processing Fee	$10.00
Inspection Schedule Fee (Free on-line)	$3.00
Mechanical Plan Review—This fee is charged to review plans without a building permit (per hour with a 1 hour minimum)	$100.00
Permit Extension Fee	50% of permit (plus cost of permit)
Re-inspection Fee	$51.50
Open Permit Review Fee	$3.00/Permit
Annual Continuing Education for City Licenses Holder	$150.00
Permit Refund Fee	$50.00
Permit Amendment Fee	$10.00
Rental of Facility Fees: $125/hour (daily min. fee of $250; Max fee of $1,000); Security Personnel: $15/hour/staff (with 1 hour minimum); DSD Staff: $30/hour/staff (with 1 hour min.); Custodian Service: $15/hour (with 2-hour min.)	

(Ord. No. 2025-01-30-0075, § 1(Att. 1), 1-30-25)

Secs. 10-64—10-70. Reserved.

ARTICLE VIII. GAS CODE

Sec. 10-71. Adoption of *International Fuel Gas Code* (2024).

The 2024 edition of the *International Fuel Gas Code*, Chapters 2 through 8 and Appendices A through C, promulgated by the International Code Council, is adopted, and incorporated in this article by reference as if fully set forth, except as it is amended by the following provisions of section 10-72. Provisions of this article are in addition to the provisions of the *International Fuel Gas Code*. The following provisions coinciding with the provisions of the *International Fuel Gas Code* supersede, repeal, or delete, when indicated, the corresponding provisions of the *International Fuel Gas Code*.

All references within the model codes to any building, electrical, fuel gas, mechanical, plumbing, energy conservation, existing building, or swimming pool code shall be construed to be a reference to the respective building, electrical, fuel gas, mechanical, plumbing, energy conservation, existing building, or swimming pool code specifically adopted by reference in articles II through XIV of this chapter.
(Ord. No. 2025-01-30-0075, § 1(Att. 1), 1-30-25)

Sec. 10-72. Amendments to the adopted chapters and appendices of the *International Fuel Gas Code* (2024).

Additions to the International Fuel Gas Code (IFGC) are shown as underlined text. Deletions of the IFGC are shown as bracketed [strike-throughs].

Section 202, GENERAL DEFINITIONS, is amended by adding the following definition:

NFPA 70. The National Electrical Code, as amended by Article VI of this Code.

Section 301 (IFGC), GENERAL, is amended by adding Section 301.16, Separation from electrical lines in a ditch, to read as follows:

301.16 Separation from electrical lines in a ditch. When outside the footprint of the building, no plumbing, gas, sewer, or water piping shall be installed in the same ditch with electric lines unless a separation of 36 inches (914 mm) horizontally is maintained for commercial installations. A separation of 12 inches (305 mm) horizontally is required for residential installations.

Section 401.5, Identification, is amended to include a second paragraph to read as follows:

401.5 Identification. For other than steel pipe and CSST, exposed piping shall be identified by a yellow label marked "Gas" in black letters. The marking shall be spaced at intervals not exceeding 5 feet (1524 mm). The marking shall not be required on pipe located in the same room as the *appliance* served. CSST shall be identified as required by ANSI LC 1/CSA 6.26.

All medium pressure gas piping systems shall identify its operating gas pressure with an approved metallic tag and the following wording shall be stamped into the tag at the meter:

WARNING
1-5 psi gas pressure
Do Not Remove

Section 403.3.2, Steel, is amended as follows:

403.3.2 Steel. Steel, stainless steel and wrought-iron pipe shall be not lighter than Schedule 40 [~~10~~] and shall comply with the dimensional standards of ASME B36.10M and one of the following standards:

1. ASTM A53/A53M.
2. ASTM A106.
3. ASTM A312.

Section 403.9, Metallic piping joints and fittings, is amended by adding section 403.9.6, Welded pipe, as follows:

403.9.6. Welded pipe. All welded joints in piping system shall be welded by a certified pipe welder as defined in Article II of this chapter.

Section 404.2, CSST, is amended by adding sections 404.2.1, Meter loop, and 404.2.2, Exterior walls; as follows:

404.2.1 Meter loop. CSST is prohibited in the meter loop.

404.2.2 Exterior walls. CSST is prohibited in exterior walls.

Section 404.6, Underground penetrations prohibited, is amended by adding the following exception:

404.6 Underground penetrations prohibited. Gas piping shall not penetrate building foundation walls at any point below grade. Gas piping shall enter and exit the building at a point above grade and the annular space between the pipe and the wall shall be sealed.

Exception: Gas piping may penetrate a slab-on-grade foundation, above or below grade, where the installation complies with Section 404.14.

Section 406.4.1, Test pressure, is deleted and replaced with the following text:

406.4.1 Test pressure. The rough-in piping inspection shall include testing by closing all openings and subjecting the pipes to an air pressure that will support a column of mercury 15 inches (381 mm) in height or a 10-psi air test. For gas systems with pressures in excess of 14 inches of water column, the test pressure shall not be less than 1.5 times the operating pressure for the system and shall hold this pressure for a minimum of 30 minutes.

The final inspection shall include a column of mercury six inches (152 mm) in height or of a five-psi air test with appliance shut-off valves attached thereto. For gas systems with pressures in excess of 14 inches of water column, the test pressure shall not be less than 1.5 times the operating pressure for the system and shall hold this pressure for a minimum of 30 minutes.

Section 406.4.2, Test duration, is amended as follows:

406.4.2 Test duration. Test duration shall be held for a length of time satisfactory to the code official, but in no case for less than 15 minutes. For welded piping, and for piping carrying gas at a pressure in excess of 14 inches of water column pressure (3.48 kPa), the test duration shall be held for a length of time satisfactory to the code official, but in no case for less than 30 minutes. [~~not less than ½ hour for each 500 cubic feet (14 m^3) of pipe volume or fraction thereof. When testing a system having a volume less than 10 cubic feet (0.28 m^3) or a system in a single-family dwelling, the test duration shall be not less than 10 minutes.~~] The duration of the test shall not be required to exceed 24 hours.

Section 406.4, Test pressure measurement, is amended by adding section 406.4.3, Test gauges, as follows:

406.4.3 Test gauges. Test gauges shall be a grade 1A or better as per ANSI/ASME B40.100-2005.

Section 409.5, Appliance shutoff valve, is amended as follows and by adding the following exception:

409.5 Appliance shutoff valve. Each appliance shall be provided with a shutoff valve in accordance with Section 409.5.1[,] or 409.5.2. [~~or 409.5.3.~~]

Exception: An outdoor appliance shall have a shutoff valve at the piping connection to the gas piping system.

Section 409.5.3, Located at manifold, is repealed in its entirety.
(Ord. No. 2025-01-30-0075, § 1(Att. 1), 1-30-25)

Secs. 10-73—10-80. Reserved.

ARTICLE IX. PLUMBING CODE

Sec. 10-81. Adoption of *International Plumbing Code* (2024).

The 2024 edition of the *International Plumbing Code*, Chapters 2 through 15 and Appendices B through E, promulgated by the International Code Council, is adopted, and incorporated in this article by reference as if fully set forth, except as it is amended by the following provisions of section 10-82. Provisions of this article are in addition to the provisions of the International Plumbing Code. The following provisions coinciding with the provisions of the

International Plumbing Code supersede, repeal, or delete, when indicated, the corresponding provisions of the *International Plumbing Code*.

All references within the model codes to any building, electrical, fuel gas, mechanical, plumbing, energy conservation, existing building, or swimming pool code shall be construed to be a reference to the respective building, electrical, fuel gas, mechanical, plumbing, energy conservation, existing building, or swimming pool code specifically adopted by reference in articles II through XIV of this chapter.
(Ord. No. 2025-01-30-0075, § 1(Att. 1), 1-30-25)

Sec. 10-82. Amendments to the adopted chapters and appendices of the *International Plumbing Code* (2024).

Additions to the *International Plumbing Code* (IPC) are shown as underlined text. Deletions of the IPC are shown as bracketed [~~strikethroughs~~].

Section 202, GENERAL DEFINITIONS, GREASE INTERCEPTOR, Gravity is amended as follows:

> **Gravity.** Plumbing appurtenances of not less than 500 gallons (1893 L) capacity that are installed in the sanitary drainage system to intercept free-floating fats, oils, and grease from wastewater discharge. Separation is accomplished by gravity during a retention time of not less than 30 minutes. The appurtenance shall be a double compartment, first compartment 60% and the second compartment 40% with a minimum 20" manhole access to each compartment unless otherwise approved by the code official.

Section 202, GENERAL DEFINITIONS, is amended by adding the following definitions:

> **NFPA 70.** The National Electrical Code, as amended by Article VI of this Code.

Section 301, GENERAL, is amended by adding Section 301.8, Accessible openings, Section 301.9, Separation from electrical lines in a ditch, and Section 301.10, Support, as follows:

> **301.8 Accessible openings.** When accessible openings are required by this Code, they shall be a minimum of 12 inches x 12 inches (305 mm x 305 mm) in dimension unless otherwise approved by the code official.
>
> **301.9 Separation from electrical lines in a ditch.** When outside the footprint of the building, no plumbing, gas, sewer, or water piping shall be installed in the same ditch with electric lines unless a separation of 36 inches (914 mm) horizontally is maintained for commercial installations. A separation of 12 inches (305 mm) horizontally is required for residential installations.
>
> **301.10 Support.** Exterior appliances or equipment supported from the ground shall rest on level concrete or other approved base extending not less than three (3) inches (76 mm) above the adjoining ground level.

Section 305.4.1, Sewer depth, is amended as follows:

> **305.4.1 Sewer depth.** Building sewers [~~that connect to private sewage disposal systems~~] shall be installed not less than 12 [~~NUMBER~~] inches (304 mm) below finished grade. [~~at the point of septic tank connection.~~] [~~Building sewers shall be installed not less than [Number] inches (mm) below grade.~~]

Section 312.1.1, Test gauges, is amended as follows:

> 312.1.1 Test Gauges. Gauges used for testing shall be [~~as follows:~~] grade 1A or better as per ANSI/ASME B40.100-2005.
>
> 1. Tests requiring a pressure of 10 pounds per square inch (psi) (69 kPa) or less shall utilize a testing gauge having increments of 0.10 psi (0.69 kPa) or less.
> 2. Tests requiring a pressure of greater than 10 psi (69 kPa) but less than or equal to 100 psi (689 kPa) shall utilize a testing gauge having increments of 1 psi (6.9 kPa) or less.
> 3. Tests requiring a pressure of greater than 100 psi (689 kPa) shall utilize a testing gauge having increments of 2 psi (14 kPa) or less.

Section 312.2, Drainage and vent water test, is amended as follows:

312.2 Drainage and vent water test. Prior to any concealment, a [A] water test and subsequent inspection shall be applied to the drainage system either in its entirety or in sections. If applied to the entire system, all openings in the piping shall be tightly closed, except the highest opening, and the system shall be filled with water to the point of overflow. If the system is tested in sections, each opening shall be tightly plugged except the highest opening of the section under test, and each section shall be filled with water, but sections shall not be tested with less than a 3.5-foot (1067 mm) [10-foot (3048 mm)] head of water. In testing successive sections, not less than the upper 10 feet (3048 mm) of the next preceding section shall be tested so that no joint or pipe in the building, except the uppermost 10 feet (3048 mm) of the system, shall have been submitted to a test of less than a 3.5-foot (1067 mm) [10-foot (3048 mm)] head of water. This pressure shall be held for not less than 15 minutes. The system shall then be tight at all points. The first-floor underground drain, waste, and vent piping (Rough-In) systems shall be retested to at least slab height and inspected after all backfill is in place and foundation steel installed but prior to placement of concrete.. The system shall be tested to the overflow level of the Tub, or the next reasonable point on the system as approved by the code official.

Section 312.7, Gravity sewer test, is deleted in its entirety.

[312.7 Gravity sewer test. Gravity sewer tests shall consist of plugging the end of the building sewer at the point of connection with the public sewer, filling the building sewer with water, testing with not less than a 10-foot (3048 mm) head of water and maintaining such pressure for 15 minutes.]

Section 312.8, Forced sewer test, is deleted in its entirety.

[312.8 Forced sewer test. Forced sewer tests shall consist of plugging the end of the building sewer at the point of connection with the public sewer and applying a pressure of 5 psi (34.5 kPa) greater than the pump rating and maintaining such pressure for 15 minutes.]

Section [M] 314.2.1, Condensate disposal, is amended with the following text:

[M] 314.2.1 Condensate disposal. Condensate disposal shall be in accordance with Chapter 34, Section 34-274 of the City Code of San Antonio for newly constructed commercial buildings. Existing commercial buildings shall be permitted to follow Chapter 34, Section 34-274 of the City Code of San Antonio for condensate disposal. Primary drain lines located in any unconditioned space, except for crawl spaces, shall be insulated with foam plastic rubber-based insulation or approved material with a minimum thickness of 3/8 inch. Condensate from all cooling coils and evaporators shall be conveyed from the drain pan outlet to an approved place of disposal. Such piping shall maintain a horizontal slope in the direction of discharge of not less than one-eighth unit vertical in 12 units horizontal (1-percent slope). Condensate shall not discharge into a street, alley, or other areas so as to cause a nuisance.

Section [M] 314.2.1.1, Condensate discharge, is amended as follows:

[M] 314.2.1.1 Condensate discharge. Condensate drains shall not directly connect to any plumbing drain, waste, or vent pipe. Condensate drains shall not discharge into a plumbing fixture other than a floor sink, floor drain, trench drain, mop sink, hub drain, standpipe, utility sink or laundry sink. Condensate drain connections to a lavatory wye branch tailpiece or to a bathtub overflow pipe shall not be considered as discharging to a plumbing fixture. Except where [discharging to grade outdoors] installed per Chapter 34, Section 34-274 of the City Code of San Antonio, the point of discharge of condensate drains shall be located within the same occupancy, tenant space or dwelling unit as the source of the condensate.

Section [M] 314.2.4.1, Ductless mini-split system traps, is amended as follows:

[M] 314.2.4.1 Ductless mini-split system traps. Ductless mini-split equipment that produces condensation shall be in accordance with their manufacturers' recommendations. [~~provided with an in-line check valve located in the drain line, or a trap.~~]

Section 401.3, Water conservation, is deleted and replaced with the following text:

401.3 Water conservation. The maximum discharge flow rates for plumbing fixture fittings shall be in accordance with applicable standards referenced in Chapter 15 and listed in Table 604.4, but in no case shall they exceed the maximum requirements of the Texas Commission of Environmental Quality (TCEQ), Chapter 372, titled "Environmental Performance Standards for Plumbing Fixtures" and/or the requirements set forth by these amendments.

Table 403.1, MINIMUM NUMBER OF REQUIRED PLUMBING FIXTURES, note e is deleted in its entirety and replaced with the following text and shall apply to all Classifications in the Table:

e. Service sinks are not required for an occupant load of 15 or fewer or as otherwise approved by the code official.

Section 403.2, Separate facilities, Exception 6 is amended as follows, all other code text remains as is:

Exceptions:

6. Separate toilet facilities shall not be required where rooms having both water closets and lavatory fixtures are designed for use by all persons regardless of sex and privacy is provided for water closets and urinals [~~in accordance with Section 405.3.4. and for urinals in accordance with Section 405.3.5~~] with walls and a door enclosing the fixtures.

Section 404, ACCESSIBLE PLUMBING FACILITIES, is deleted. Refer to TDLR Architectural Barriers Texas Accessibility Standards (TAS) Chapter 6.

Section 405.3.1, Water closets, urinals, lavatories, and bidets, is amended as follows:

405.3.1 Water closets, urinals, lavatories, and bidets. A water closet, urinal, lavatory, or bidet shall not be set closer than 15 inches (381 mm) from its center to any side wall, partition, vanity, or other obstruction. Where partitions or other obstructions do not separate adjacent water closets, urinals, or bidets, the fixtures shall not be set closer than 30 inches (762 mm) center to center between adjacent fixtures or adjacent water closets, urinals, or bidets. There shall be not less than a 21-inch (533 mm) clearance in front of a water closet, urinal, lavatory or bidet to any wall, fixture, or door. Water closet compartments shall be not less than 30 inches (762 mm) in width and not less than 60 inches (1524 mm) in depth for floor-mounted water closets and not less than 30 inches (762 mm) in width and 56 inches (1422 mm) in depth for wall-hung water closets.

Section 410.2, Small occupancies, is amended as follows:

410.2 Small Occupancies. Drinking fountains shall not be required for an occupant load of 30 [~~15~~] or fewer.

Section 410.4, S+ubstitution, is amended as follows:

410.4 Substitution. Where [~~restaurants provide~~] drinking water is provided in a container free of charge, drinking fountains shall not be required [~~in those restaurants. In other occupancies, where [three or more] drinking fountains are required, water dispensers, shall be permitted to be substituted for not more than 50 percent of the required number of drinking fountains.~~]

Section 424.1, Approval, is amended by adding Section 424.1.1, Non-water using urinals, as follows:

424.1.1 Non-Water using urinals. Non-water urinals shall conform to ASME A112.19.2/

CSA B 45.1, ASME 112.19.19 or CSA B45.5/ IAPMO Z124. Non-water urinals shall provide a trap seal that complies with the International Plumbing Code. Non-water urinals shall permit the uninhibited flow of waste through the urinal to the sanitary drainage system. Non-water urinal installations shall be designed to have an active plumbing fixture drain discharge ahead of the urinal drain by means of a vertical wet vent above the urinal drain tee. Refer to section 912.1.1 Vertical Wet Vent Permitted in the International Plumbing Code. (Texas House Bill 2667 (Legislative Session 81 (R))). In addition, the installation of an appropriately sized water distribution and fixture supply piping must be installed in the wall at a location immediately adjacent to the non-water urinal so that a water supplied urinal may be placed at a future date.

Section 502.3, Water heaters installed in attics, is amended as follows:

502.3 Water heaters installed in attics. Storage type water heaters shall not be installed in an attic unless accessible from a door opening on the same floor level in one-and two-family residential occupancies and town-homes. Attics containing a water heater shall be provided with an opening and unobstructed passageway large enough to allow removal of the water heater. The passageway shall not be less than 30 inches (762 mm) in height and 22 inches (559 mm) in width and not more than 20 feet (6096 mm) in length when measured along the centerline of the passageway from the opening to the water heater. The passageway shall have continuous solid flooring not less than 24 inches (610 mm) in width. A level service space not less than 30 inches (762 mm) in length and 30 inches (762 mm) in width shall be present at the front or service side of the water heater. The clear access opening dimensions shall be not less than 20 inches by 30 inches (508 mm by 762 mm) where such dimensions are large enough to allow removal of the water heater.

Section 502, INSTALLATION, is amended by adding Section 502.6, Water heaters installed under stairways and landings, as follows:

502.6 Water heaters installed under stairways and landings. An electric water heater is the only type of water heater that may be installed under a stairway or landing.

Section 502, INSTALLATION, is amended by adding Section 502.7, Water heaters installed in garages, as follows:

502.7 Electric water heaters installed in garages. Electric water heaters shall be elevated not less than 18 inches (457 mm) above the garage floor.

Section 504.6, Requirements for discharge piping, is amended as follows:

504.6 Requirements for discharge piping. The discharge piping serving a pressure relief valve, temperature relief valve or combination thereof shall:

1. Not be directly connected to the drainage system.
2. Discharge through an air gap located in the same room as the water heater.
3. Not be smaller than the diameter of the outlet of the valve served and shall discharge full size to the air gap.
4. Serve a single relief device and shall not connect to piping serving any other relief device or equipment.
5. Discharge to [~~the floor, to the pan serving the water heater or storage tank, to~~] a waste receptor or to the outdoors. Discharge to the floor of a garage or basement will only be allowed if approved by the *code official*. Terminate to the exterior a minimum of six inches (152 mm) and a maximum of 12 inches (304 mm) above the finish grade.
6. Discharge in a manner that does not cause personal injury or structural damage.
7. Discharge to a termination point that is accessible [~~readily observable by the building occupants~~].
8. Not be trapped.
9. Be installed so as to flow by gravity.
10. Terminate not more than 6 inches (152 mm) above and not less than two times

the discharge pipe diameter above the floor or *flood level rim* of the waste receptor.

11. Not have a threaded connection at the end of such piping.

12. Not have valves or tee fittings.

13. Be constructed of those materials listed in Section 605.4 or materials listed, rated, and *approved* for such use in accordance with ASME A112.4.1.

14. Be one nominal size larger than the size of the relief valve outlet, where the relief valve discharge piping is installed with insert fittings. The outlet end of such tubing shall be fastened in place.

15. Union or flex connector on temperature pressure relief valve shall be placed within six inches (152.4 mm) of the valve for removal and replacement.

Section 604.4, Maximum flow and water consumption, Exceptions, is amended as follows:

604.4 Maximum flow and water consumption. The maximum water consumption flow rates and quantities for all plumbing fixtures and fixture fittings shall be in accordance with Table 604.4.

Exceptions:

[~~1. Blowout design water closets having a maximum water consumption of 3 ½ gallons (13 L) per flushing cycle.~~]

1. [~~2.~~] Vegetable sprays.

2. [~~3.~~] Clinical sinks having a maximum water consumption of 4 ½ gallons (17 L) per flushing cycle.

3. [~~4.~~] Service sinks.

4. [~~5.~~] Emergency showers.

Table 604.4, MAXIMUM FLOW RATES AND CONSUMPTION FOR PLUMBING FIXTURES AND FIXTURE FITTINGS, is amended as follows:

TABLE 604.4
MAXIMUM FLOW RATES AND CONSUMPTION FOR PLUMBING FIXTURES[d] AND FIXTURE FITTINGS

PLUMBING FIXTURE OR FIXTURE FITTING	MAXIMUM FLOW RATE OR QUANTITY[b]
Lavatory, private	1.5 [~~2.2~~] gpm at 60 psi
Lavatory, public (metering)	0.25 gallon per metering cycle
Lavatory, public (other than metering)	0.5 gpm at 60 psi
Shower head[a,c]	2.0 gpm at 80 psi
Sink faucet	2.2 gpm at 60 psi
Urinal	0.5 [~~1.0~~] gallon per flushing cycle
Water closet	1.28 [~~1.6~~] gallons per flushing cycle

For SI: 1 gallon = 3.785 L, 1 gallon per minute = 3.785 L/m.

1 pound per square inch = 6.895 kPa.

a. A hand-held shower spray is a shower head. All associated heads shall be appropriate for the flow rate.

b. Consumption tolerances shall be determined from referenced standards.

c. Shower heads shall comply with all requirements for high-efficiency showerheads in ASME A112.18.1-2020/CSA B125.1

d. Where the Environmental Protection Agency has accepted that specific plumbing fixtures, by make and model, meet or exceed WaterSense standards, such fixtures installed will be from the most current listing available at the time of installation.

Section 604.9, Water hammer, is amended as follows:

604.9 Water hammer. The flow velocity of the water distribution system shall be controlled to reduce the possibility of water hammer. A water-hammer arrestor shall be installed where quick-closing valves are utilized. Water-

hammer arrestors shall be installed in accordance with the manufacturer's instructions. Water-hammer arrestors shall conform to ASSE 1010. Water-hammer arrestors shall be installed to protect all washing machines, kitchen sinks, dishwashers, tubs, and shower locations from water hammer. A separate tub and shower set back-to-back may be served by a single set of water-hammer arrestors, provided that the continuation of the water line from one fixture (where the arrestors are located) to the other fixture does not exceed 8 linear feet as measured along the pipe.

Table 605.3, WATER SERVICE PIPE, is amended to reflect changes. Unaltered sections of the Table remain in full force:

TABLE 605.3
WATER SERVICE PIPE

MATERIAL	STANDARD
Polyvinyl chloride (PVC) plastic pipe	ASTM D1785; ASTM D2241; ASTM D2672; CSA B137.3 AWWA C900-07

Section 605.3, Water service pipe, is amended to add section 605.3.2, Lead Testing, to read as follows:

605.3.2 Lead Testing. Upon exposure of the waterline/service line from the meter to the home for repair, replacement or inspection, a plumber, or their employee or agent, performing such work shall perform a test on their exposed pipe material and any exposed connectors or solder for the presence of lead, if not already performed. A lead swab test performed on a clean pipe surface area, connector or solder is acceptable to meet the above requirement and shall not require the removal of any section of the pipe. The San Antonio Water System (SAWS) shall provide guidance on acceptable testing methods consistent with TCEQ or EPA guidelines. Photographs of any area of the pipe, connector or solder that is tested as well as the completed swab test must be taken and shall be submitted to SAWS along with information identifying the property and testing location within ten (10) business days of receiving test results. Testing is not required on pipe material that is part of infrastructure, developments or construction that occurred after 2014.

Section 605.23.2, Plastic pipe or tubing to other piping material, is amended as follows:

605.23.2 Plastic pipe or tubing to other piping material. Joints between different types of plastic pipe or between plastic pipe and other piping material shall be made with approved adapters or transition fittings. Schedule 40 plastic socket molded (female adapter) fittings are prohibited when connecting to pipe threads.

Section 606.2, Location of shutoff valves, is amended as follows:

606.2 Location of shutoff valves. Shutoff valves shall be installed in the following locations:

1. On the fixture supply at [to] each plumbing fixture other than bathtubs and showers in one-and two-family residential *occupancies*, and other than in individual dwelling or sleeping units that are provided with unit shutoff valves in hotels, motels, boarding houses, and similar *occupancies*.

[~~2. On the water supply pipe to each sill cock.~~]

2. [~~3.~~] On the water supply pipe to each appliance or mechanical equipment.

Section 607.3, Thermal expansion control, is amended as follows:

607.3 Thermal expansion control. Where a storage water heater is supplied with cold water that passes through an on-site check valve, pressure reducing valve or backflow preventer, a thermal expansion control device shall be connected to the water heater cold water supply pipe at a point that is downstream of all check valves, pressure reducing valves and backflow preventers. Thermal expansion tanks shall be sized in accordance with the tank manufacturer's instructions and shall be sized such that the pressure in the water distribution system shall not exceed that required by Section 604.8. Thermal expansion

control is limited to the use of expansion tanks (per water conservation requirements of 1998, Ordinance 89128).

Table 608.1, APPLICATION OF BACKFLOW PREVENTERS, is amended to reflect changes. Unaltered sections of the Table remain in full force:

TABLE 608.1 APPLICATION OF BACKFLOW PREVENTERS

DEVICE	DEGREE OF HAZARD[a]	APPLICATION[b]	APPLICABLE STANDARDS
Backflow preventer for carbonated beverage machines	Low hazard	Backpressure or backsiphonage Sizes ¼" - ½"	ASSE ~~[1022]~~ 1015

Section 608.14, Backflow protection, is amended to add section 608.14.10, More than one assembly, as follows:

608.14.10 More than one assembly. Where more than one (1) backflow preventer is installed on a single premise, and the backflow preventers are installed in one location, each separate backflow preventer shall be permanently marked in an approved manner to identify the location of the system that the backflow preventer serves.

Section 608.15, Location of backflow preventers, is amended by adding Section 608.15.3, Access, and Section 608.15.4, Identification, as follows:

608.15.3 Access. All backflow preventers shall be readily accessible.

608.15.4 Identification. All backflow preventers that have been insulated per 608.15.2, resulting in the preventer's identification plate being covered, shall have a weatherproof tag permanently affixed to the outside of the insulation that identifies the make, model, and serial number of the backflow preventer.

Section 608.17.1.1, Carbonated beverage dispensers, is amended as follows:

608.17.1.1 Carbonated beverage dispensers. The water supply connection to each carbonated beverage dispenser shall be protected against backflow by a backflow preventer conforming to ASSE 1015 [~~1022~~] or by an air gap. The portion of the backflow preventer device downstream from the second check valve of the device and the piping downstream therefrom shall not be affected by carbon dioxide gas.

Section 608.17.2, Connections to boilers, is amended as follows:

608.17.2 Connections to non-potable boilers. The potable supply to the boiler shall be equipped with a backflow preventer with an intermediate atmospheric vent complying with ASSE 1013. [~~1012, ASSE 1081 or CSA B64.3.~~] Where conditioning chemicals are introduced into the system, the potable water connection shall be protected by an air gap or a reduced pressure principle backflow preventer, complying with ASSE 1013, CSA B64.4 or AWWA C511.

Section 608.17.5, Connections to lawn irrigation systems, is amended as follows:

608.17.5 Connections to lawn irrigation systems. The potable water supply to lawn irrigation systems shall be protected against backflow by [~~an atmospheric vacuum breaker,~~] a pressure vacuum breaker assembly, a double-check valve assembly or a reduced pressure principle backflow prevention assembly. [~~Valves shall not be installed downstream from an atmospheric vacuum breaker.~~] Where chemicals are introduced into the system or there is an on-site sewage facility (OSSF) system, the potable water supply shall be protected against backflow by a reduced pressure principle backflow prevention assembly. The irrigation system

shall be designed and installed in accordance with City Ordinance #100322 and #2008-08-07-0653.

Section 702.3, Building sewer pipe, is amended as follows:

702.3 Building sewer pipe. Though not required, building sewer pipes three inch and four inches are recommended to be a minimum of Schedule 40 PVC or SDR26. Though not required, sewer lines six inch and larger are recommended to be a minimum of SDR 35 PVC. Cast-iron and Stainless steel 316L may also be used for all sizes. Polyethylene (PE) plastic pipe (SDR-PR) ASTM F 714 may be used for replacement of underground sewers by pipe-bursting methods in Section 717. *Building sewer* pipe shall conform to one of the standards listed in Table 702.3.

Section 705.1, General, is amended by adding section 705.1.1, Joint couplings, as follows:

705.1.1 Joint Couplings. All underground or under slab mechanical joint coupling installations shall be shielded and Wide-Bodied.

Section 708.1.8, Manholes, is amended as follows:

708.1.8 Manholes. Manholes and manhole covers shall be of an approved type. Manhole located inside of a building shall have gas-tight covers that require tools for removal. Manhole covers shall be identified as "SEWER" and shall not indicate a utility company thereon.

Section 708.1, Cleanouts required, is amended by adding section 708.1.13, Individual fixture, as follows:

708.1.13 Individual fixture. All washing machines and kitchen sinks shall have an accessible clean out.

Section 717.4, Permitting, is repealed in its entirety.

Section 717.8, Post-installation recorded video camera survey, is amended as follows.

717.8 Post-installation recorded video camera survey. The completed, relined piping system shall be inspected internally by a recorded video camera survey after the system has been flushed and flow-tested with water. The video survey shall be reviewed by a licensed engineer [~~submitted to the code official~~] prior to finalization of the permit. The video survey shall be reviewed and evaluated to provide verification that no defects exist. Any defects identified shall be repaired and replaced in accordance with this code.

Section 717.9, Certification, is amended as follows.

717.9 Certification. A certification shall be provided in writing to the code official, from a licensed engineer [~~the permit holder~~], that the relining materials have been installed in accordance with the manufacturer's installation instructions, the applicable standards and this code.

Section 802.4, Waste Receptors, is amended by adding an exception as follows:

802.4 Waste Receptors. For other than hub drains that receive only clear-water waste and standpipes, a removable strainer or basket shall cover the outlet of waste receptors. Waste receptors shall not be installed in concealed spaces. Waste receptors shall not be installed in plenums, crawl spaces, attics, interstitial spaces above ceilings and below floors. Ready access shall be provided to waste receptors.

Exception: Waste receptors may be installed in a plenum. The trap shall be deep seal type and shall be protected by one of the methods in sections 1002.4.1.1 thru 1002.4.1.5.

Section 903.1.1, Roof extension unprotected, is amended as follows:

903.1.1 Roof extension unprotected. Open vent pipes that extend through a roof shall be terminated [~~not less than~~] at least 6 [~~NUMBER~~] inches (152 mm) above the roof.

Section 905.4, Vertical rise of vent, is amended as follows:

905.4 Vertical rise of vent. Every dry vent shall rise vertically to a point not less than 6 inches (152 mm) above the flood level rim of the highest trap or trapped fixture being vented. When structural conditions require

horizontal vents to be installed below the flood level rim of the fixture they serve, they shall have a cleanout installed on the riser in an accessible location.

Exception: Vents for interceptors located outdoors.

Section 915.2.3, Connection, is amended as follows:

915.2.3 Connection. The combination waste and vent system shall have a minimum of two vents, one at the start of the system and one at the end of the system before the last fixture [~~be provided with a dry vent connected at any point within the system or the system shall connect to a horizontal drain that serves vented fixtures located on the same floor~~]. *Combination waste and vent systems* connecting to *building drains* receiving only the discharge from a one or more stacks shall be provided with a dry vent. The vent connection to the combination waste and vent pipe shall extend vertically to a point not less than 6 inches (152 mm) above the flood level rim of the highest fixture being vented before offsetting horizontally. The horizontal length of a combination waste and vent system shall be unlimited.

Section 917.1, Single-stack vent system permitted, is amended by adding section 917.1.1, Engineering certification, as follows:

917.1.1 Engineering certification. Single stack vent systems are considered to be an alternative engineering design system and shall be installed in strict accordance with the engineered design. Upon completion of this alternative design system, the design engineer shall submit a letter of the inspection of the systems compliance with the alternative design. The compliance letter shall be signed, sealed, and dated, by the design engineer. Signage shall be permanently placed on site identifying the plumbing system as an alternative engineering design Single Stack Vent System and any alterations to the system shall be reviewed by an engineer.

Section 1003.2, Approval, is amended as follows:

1003.2 Approval. The size, type and location of each interceptor shall be designed and installed in accordance with the manufacturer's instructions and the requirements of this section based on the anticipated conditions of use. Wastes that do not require treatment or separation shall not be discharged into any interceptor or separator. All interceptors shall be stamped or labeled by the manufacturer with an indication of its size in gallons or its full discharge rate in gallons per minute (gpm). The full discharge rate to such an interceptor shall be determined at full flow. Each interceptor shall be rated equal to or greater than the incoming flow.

Section 1003.3.2, Food waste disposers restriction, is amended as follows:

1003.3.2 Food waste disposers restriction. [~~A food waste disposer shall not discharge to a grease interceptor.~~] Where food waste disposers connect to grease interceptors, a solids interceptor shall separate the discharge before connecting to the grease interceptor. Solids interceptors and grease interceptors shall be sized and rated for the discharge of the food waste disposer. Emulsifiers, chemicals, enzymes, and bacteria shall not discharge into the food waste disposers.

SECTION 1004, MATERIALS, JOINTS, AND CONNECTIONS, is amended by adding Section 1004.2, Sample well, as follows:

1004.2 Sample well. An effluent sampling well for all interceptors shall be required. For new construction, the sample well shall have a riser a minimum of 6 inches (153 mm) in diameter and shall be installed after the confluence of all wasted streams from the facility and prior to discharging into the *sanitary sewer* collection system. The well shall be perpendicular to the effluent lateral to allow observation of the flow stream and provide for sampling of wastewater. For remodeling of an existing structure requiring installation of an interceptor, the option to use an existing 4-inch (102 mm) diameter sample well may be permitted in lieu of a 6-inch (153 mm) sample well.

SECTION 1202, MEDICAL GASES, is amended by adding Section 1202.2, Medical gases not regulated by NFPA 99, as follows:

1202.2 Medical gases not regulated by NFPA 99. Where medical gases are installed in other than human medical care facilities such as, but not limited to, veterinary clinics, educational, instructional, and training facilities, etc, the installation shall comply with the minimum standards of the International Plumbing Code such as, but not limited to, the piping materials, support, testing, etc. The piping systems shall be appropriately labeled with the contents every 20 feet.

Section 1301.9.4, Makeup water, is amended as follows:

1301.9.4 Makeup water. Where an uninterrupted supply is required for the intended application, potable or reclaimed water shall be provided as a source of makeup water for the storage tank. The makeup water supply shall be protected against backflow in accordance with Section 608. A *full-open valve* located on the makeup water supply line to the storage tank shall be provided. Inlets to the storage tank shall be controlled by fill valves or other automatic supply valves installed to prevent the tank from overflowing and to prevent the water level from dropping below a predetermined point. Where makeup water is provided, the water level shall not be permitted to drop below the source water inlet or the intake of any attached pump. Where non-potable systems are supplied with makeup water form a potable source, the potable makeup shall be protected by both an air gap and a RP backflow device in accordance with Section 608.

(Ord. No. 2025-01-30-0075, § 1(Att. 1), 1-30-25)

Sec. 10-83. Fee schedule.

Plumbing, Gas, Sewer	
Plumbing License and Registration Fees	
Annual Irrigation Contractor Registration Fee	$85.00
Plumbing, Gas, Sewer Permit Fees	
Plumbing Inspection (Basic Fee)	$50.00
Fixture; Roof Drain; Reverse Osmosis, Fire Sprinkler Head (per unit)	$7.00
Grease Trap; Oil Separator; Sand Trap; Lint Trap; Neutralization Tank (or tank receiving discharge of liquid waste from fixtures); Drain, Appurtenance; Appliance	
0—500 gallons	$12.00
>500 gallons	$17.00
Water Heater, Vent (gas/electric)	$8.00
Back-flow Prevention Device	
1/4" - ¾"	$15.00
1"	$20.00
1 ¼"	$45.00
1 ½"	$55.00
2"+	$75.00
Water Softener	$17.00
Underground Waterline	
0—100 ft	$10.00
101—250 ft	$15.00
251—500 ft	$25.00
501—1,000 ft	$45.00
1,001—2,000 ft	$75.00
2,001—3,000 ft	$100.00
Over 3,001 ft (plus additional $25 for each 200 ft or part thereof over 3,001 ft)	$125.00
Irrigation System Inspection Fee	$50.00
Residential Landscape Irrigation System Permit Fee	$50.00
Commercial Landscape Irrigation System Permit Fee	$100.00
Gas Inspection (basic fee)	$50.00
1—5 openings (fee for each of the first five opening)	$10.00
5 openings (fee for each opening over five)	$3.00

Plumbing, Gas, Sewer	
Gas Test; Extension (with 1 opening); Replace Gas Line; Split Meter; Move Meter; Butane Conversion (each)	$8.00
Sewer Inspection (Basic Fee)	$50.00
0—60 ft.	$10.00
61—150 ft	$20.00
151—300 ft	$35.00
301—500 ft.	$50.00
501—750 ft.	$70.00
751—1,000 ft.	$110.00
>1,000 ft. (plus $20.00 for each 150 ft or part thereof over 1,000 ft)	$125.00
Reclaim Water Line Openings Inspection	$50.00
1—4 openings (flat fee)	$40.00
>4 openings (fee for each opening over 4)	$5.00
Medical Gas Inspection (basic fee) (oxygen - O_2; nitrous oxide - N_2O; medical compress air - MedAir Nitrogen - N_2; vacuum - Vac; carbon dioxide - CO_2; helium - He)	$50.00
1—5 openings (flat fee)	$13.00
5 openings (fee for each opening over 5)	$3.00
Building-related and Fire Codes Appeals and Advisory Board Fees	
Building-related and Fire Codes Appeal Fee	$155.00
Special Services for Plumbing	
After-hour Inspection Fee (per hour with 1 hour minimum)	$100.00
Inspection for which no fee is specifically indicated (per hour with 1 hour minimum)	$100.00
Permit Refund Fee	$50.00
Permit Amendment Fee	$10.00
Inspection Schedule Fee (free on-line)	$3.00
Re-inspection Fee	$51.50
Permit Processing fee	$10.00
Completion permit fee	50% of permit (plus cost of permit)
Plumbing Plan Review only (without building plan number)—Per hour/1 hour minimum	$100.00
Open Permit Review Fee	$3.00/Permit
Rental of Facility Fees: $125/hour (daily min. fee of $250; Max fee of $1,000); Security Personnel: $15/hour/staff (with 1 hour minimum); DSD Staff: $30/hour/staff (with 1 hour min.); Custodian Service: $15/hour (with 2-hour min.)	

(Ord. No. 2025-01-30-0075, § 1(Att. 1), 1-30-25)

Secs. 10-84—10-90. Reserved.

ARTICLE X. ENERGY CONSERVATION CODE

The city council approves and adopts the recommendations of the mayor's sustainable task force:

The city supports the adoption and implementation of energy provisions that result in energy savings of 15% or greater than the currently adopted code in 2008 (IECC 2000 with 2001 supplement and ASHRAE 90.1 1999), the goal of 30% energy savings in 2012 over the currently adopted code in 2008 (IECC 2000 with 2001 supplement and ASHRAE 90.1 1999), the goal of net-zero carbon by 2030 with the intent to provide flexibility to permit the use of innovative approaches and techniques to achieve the effective use of energy and to reduce greenhouse gas and ozone precursor emissions in the city and which is not intended to abridge safety, health, or environmental requirements contained in other applicable codes or ordinances.

The city approves the goals of the following recommendations of the sustainable building task force:

(1) That the development services department, office of public utilities within finance, and the office of sustainability coordinate with CPS Energy and San Antonio Water System (SAWS) to evaluate a new construction residential and commercial financial incentive program to include the provision of specific rebates or other incentives, with an ultimate goal of achieving net zero carbon by 2030 and be designed to reward improved performance in a scaled fashion, within the current limitations of all applicable laws and regulations.

(2) That CPS Energy and SAWS provide existing rebate and incentive information to the city to coordinate and promote incentives to provide one-stop information.

(3) That the office of sustainability provide information on sustainable building practices and incentives to encourage residential and commercial developers to exceed minimum code requirements and serve as a clearinghouse for green building information from a wide and ever-increasing variety of sources.

(4) That the city office of sustainability coordinate education awareness with other agencies or organizations that include workshops, trainings, and seminars which will provide sustainable building practices for residential and commercial buildings that exceed minimum code requirements.

(5) That the city office of sustainability promote an annual San Antonio Green Leadership awards program to recognize all new residential and commercial builders, architects, and others that significantly exceed the minimum code and to post those names on the city's website and through additional public media outlets.

(6) That CPS Energy and SAWS evaluate incentives and rebates to support energy and water conservation for programs that exceeds code and include such programs in a unified city-wide promotion.

(7) That energy incentives be provided to achieve thirty (30) percent or greater savings above the currently adopted energy code.

(8) That the Building-Related and Fire Codes Appeals and Advisory Board (BRFCAAB) review the city's current energy code as needed but not less often than every three years and recommend changes to make periodic progress toward the goal of net-zero carbon by 2030.

(9) That the city office of sustainability would monitor the implementation of the recommendations of the mayor's task force on sustainable buildings, review COSA sustainability energy policies and goals, and measure periodic progress toward the goal of net-zero carbon by 2030.

(10) That the city office of sustainability would recommend the establishment or modification of interim goals to attain agreed long-term goals and make recommendations to city management, city council, and the BRFCAAB as needed but not less often than every three (3) years. Interim and long-term goals would be evaluated and recommended for amendment as required on the basis of sustainable environmental and community benefits, return on investment and practical impact on the regulated community.

(Ord. No. 2025-01-30-0075, § 1(Att. 1), 1-30-25)

Sec. 10-91. Adoption of *International Energy Conservation Code* (2021).

The 2021 edition of the *International Energy Conservation Code*, promulgated by the International Code Council, Chapters 2[CE] through 5[CE], Chapters 2[RE] through 5[RE] and both the commercial and residential Chapters 6 (referenced standards), is adopted and incorporated in this article by reference as if fully set forth, except as it is amended by the

following provisions of section 10-92. Provisions of this article are in addition to the provisions of the *International Energy Conservation Code*. The following provisions coinciding with the provisions of the *International Energy Conservation Code* supersede, repeal, or delete, when indicated, the corresponding provisions of the *International Energy Conservation Code*.

All references within the model codes to any building, electrical, fuel gas, mechanical, plumbing, energy conservation, existing building, or swimming pool code shall be construed to be a reference to the respective building, electrical, fuel gas, mechanical, plumbing, energy conservation, existing building, or swimming pool code specifically adopted by reference in articles II through XIV of this chapter.
(Ord. No. 2025-01-30-0075, § 1(Att. 1), 1-30-25)

Sec. 10-92. Amendments to the adopted chapters of the *International Energy Conservation Code* (2021).

Additions to the *International Energy Conservation Code* (IECC) are shown as underlined text. Deletions of the IECC are shown as bracketed [~~strikethroughs~~].

Section C402.3, Roof solar reflectance and thermal emittance, is amended to read as follows (exceptions are unchanged):

C402.3 Roof solar reflectance and thermal emittance. Low-sloped roofs, with a slope less than or equal to 2 units vertical per 12 units horizontal, directly above cooled conditioned spaces in *Climate Zones 0 through 3* shall comply with one or more of the options in Table C402.3. Roof surfaces with a slope greater than 2 units vertical per 12 units horizontal, directly above cooled conditioned spaces shall have a minimum reflectance of 0.35 or a minimum Solar Reflective Index of 29.

Section C402.4.2, Minimum skylight fenestration area, Exception is amended by adding a sixth exception as follows. All other language in Section C402.4.2 remains:

Exception: Skylights above *daylight zones* of enclosed spaces are not required in:

1. Buildings in *Climate Zones 6* through 8.
2. Spaces where the designed *general lighting power* densities are less than 0.5 W/ft^2 (5.4 W/m^2).
3. Areas where it is documented that existing structures or natural objects block direct beam sunlight on not less than half of the roof over the enclosed area for more than 1,500 daytime hours per year between 8 a.m. and 4 p.m.
4. Spaces where the *daylight zone* under rooftop monitors is greater than 50 percent of the enclosed space floor area.
5. Spaces where the total area minus the area of sidelit *daylight zones* is less than 2,500 square feet (232 m^2), and where the lighting is controlled in accordance with Section C405.2.3.
6. Spaces designed as storm shelters complying with ICC 500.
7. In warehouses protected by Early Suppression Fast Response (ESFR) fire sprinklers where vertical wall fenestration is provided with a minimum areas equal to that determined by Section C402.4.2.

Section C404.6.1, Circulation systems, is amended to read as follows:

C404.6.1 Circulation systems. Heated-water circulation systems shall be provided with a circulation pump. The system return pipe shall be a dedicated return pipe or a cold-water supply pipe. Gravity and thermosyphon circulation systems shall be prohibited. Controls for circulating hot water system pumps shall automatically turn off the pump when the water in circulation loop is at the desired temperature and when there is not a demand for hot water. The controls shall limit the temperature of the water entering the cold-water piping to not greater than 104°F (40°C) and shall comply with one of the following:

1. Controls for circulating hot water system pumps shall start the pump based on the identification of a demand for hot water within the occupancy. The controls shall automatically turn off the pump when

the water in the circulation loop is at the desired temperature and when there is not a demand for hot water.

2. Controls for circulating hot water system pumps shall include a timer clock switch operating pumps based on time of day/night. Controls shall also include a return water temperature sensor switch to pause the re-circulating pump whenever the return water is hot.

Section C405.6, Dwelling electrical meter, is modified to read as follows:

C405.6 Dwelling electrical meter. Each dwelling unit located in a Group R-2 multi-family building shall have a separate electrical meter.

Section C405.12, Energy monitoring, is modified to read as follows with remaining text to remain as written:

C405.12 Energy monitoring. New buildings with a gross conditioned floor area of [~~25,000~~] 100,000 square feet or larger shall be equipped to measure, monitor, record and report energy consumption data in compliance with Sections C405.12.1 through C405.12.5

Exception: R-2 occupancies and individual tenant spaces in other occupancies are not required to comply with this section provided that the space has its own utility services ad meters and has less than [~~5,000~~] 10,000 square feet of conditioned floor area.

SECTION C409, ELECTRIC VEHICLE (EV) CAPABLE, and Section C409.1, Electric vehicle power supply, and Section C409.2, Number of parking spaces, are added as follows:

SECTION C409
ELECTRIC VEHICLE (EV) CAPABLE

This section applies to all buildings not included in SECTION R410.

C409.1 Electric vehicle power supply. The main electrical service panel shall have the capacity to support the required number of spaces detailed in C409.2. The property owner will designate which branch panel(s) will be utilized for future EV charging. The designated branch panel(s) shall reserve the space and capacity to support one future 40-ampere breaker for every 2 spaces required. The designated breaker spaces may be located in multiple branch panels as long as the total number space and capacity is met. The reserved space(s) in the designated branch panel(s) shall be labeled "For Future EV". The Director may increase the number of spaces per 40-ampere breaker or lower the breaker's ampere size as smart charging technology is developed.

C409.2 Number of parking spaces. The reserved capacity shall be capable to support 5% of the total required parking spaces.

Section C501.5, Historic buildings, is amended to read as follows:

C501.5 Historic buildings. Provisions of this code relating to the construction, *repair, alteration*, restoration, and movement of structures, and *change of occupancy* shall not be mandatory for *historic buildings*. [~~provided a report has been submitted to the code official and signed by a registered design professional or a representative of the State Historic Preservation Office or the historic preservation authority having jurisdiction, demonstrating that compliance with that provision would threaten, degrade, or destroy the historic form, fabric, or function of the building.~~]

Section C503.2.1, Roof replacement, is amended to read as follows:

C503.2.1 Roof replacement. *Roof replacements* shall comply with Section C402.1.3, C402.1.4, C402.1.5 or C407 where the existing roof assembly is part of the *building thermal envelope* and contains insulation entirely above the roof deck. In no case shall the *R*-value of the roof insulation re reduced or the *U*-Factor of the roof assembly be increased as part of the *roof replacement*. New skylights are not required to be provided as part of a roof replacement where the existing building did not have skylights. Where new skylights are

installed at the option of the owner as part of the roof replacement, they shall meet Section C503.2.3.

Table R402.1.3, INSULATION MINIMUM R-VALUES AND FENESTRATION REQUIREMENTS BY COMPONENT, is amended as follows with all other text in the table to remain as is:

Climate Zone	*Fenestration U-Factor*	*Skylight U-Factor*	*Glazed Fenestration SHGC*	*Ceiling R-Value*	*Wood Frame Wall R-Value*	*Mass Wall R-Value*	*Floor R-Value*	*Basement Wall R-Value*	*Slab R-Value & Depth*	*Crawl Space Wall R-Value*
2	0.40	0.65	0.25	[~~49~~] 38	13 or 0&10ci	4/6	13	0	0	0

Section R402.4.1.1, Installation, is amended to read as follows:

R402.4.1.1 Installation. The components of the *building thermal envelope* as listed in Table R402.4.1.1 shall be installed in accordance with the manufacturer's instructions and the criteria indicated in Table R402.4.1.1, as applicable to the method of construction. [~~Where required by the code official, an~~] An approved third party shall inspect all components and verify compliance. Insulation letters shall not be submitted to the *Building Official* prior to the inspection being performed and shall be submitted on a form approved by the *Building Official*.

Section R402.4.1.2, Testing, is amended by amending the first paragraph to read as follows. All other language in Section R402.4.1.2 remains:

R402.4.1.2 Testing. The *building* or dwelling unit shall be tested for air leakage. The maximum air leakage rate for any *building or dwelling unit* under any compliance path shall not exceed 5.0 air changes per hour or 0.28 cubic feet per minute (CFM) per square foot [$0.0079 m^3/(s \times m^2)$] of dwelling unit enclosure area. Testing shall be conducted in accordance with ANSI/RESNET/ICC 380, ASTM E 779 or ASTM E 1827 and reported at a pressure of 0.2-inch w.g. (50 Pascals). [~~Where required by the code official, testing~~] Testing shall be conducted by an *approved* third party. A written report of the results of the test shall be signed by the party conducting the test and provided to the *Building Official* [~~code official~~]. Testing shall be performed at any time after creation of all penetrations of the *building thermal envelope* have been sealed.

Section R402.4.6, Electrical and communication outlet boxes (air-sealed boxes), is amended as follows.

R402.4.6 Electrical and communication outlet boxes (air-sealed boxes). Electrical and communication outlet boxes installed in the building thermal envelope shall be sealed to limit air leakage between conditioned and unconditioned spaces [~~. Electrical and communication~~] or outlet boxes shall be tested in accordance with NEMA OS 4, *Requirements for Air-Sealed Boxes for Electrical and Communication Applications* and shall have an air leakage rate of not greater than 2.0 cubic feet per minute (0.944 L/s) at a pressure differential of 1.57 psf (75 Pa). Electrical and communication outlet boxes shall be marked "NEMA OS 4" or "OS 4" in accordance with NEMA OS 4. Electrical and communication outlet boxes shall be installed per the manufacturer's instructions and with any supplied components required to achieve compliance with NEMA OS 4.

Section R402.6, Radiant Barrier, is added to read as follows:

R402.6 Radiant Barrier. In new dwellings, a roof radiant barrier with an emittance of 0.10 or less as tested in accordance with ASTM C-1371 or ASTM E-408 is required above conditioned spaces. The radiant barrier shall be installed according to the manufacturer's instructions.

Exceptions:

1. Roofs covered with materials that have a solar reflectance of 0.4 or greater.
2. Residential buildings with sealed attics such as foam type insulation or similar.
3. Residential buildings with all mechanical equipment and all ductwork located wholly within the conditioned space.

R403.3.1, Ducts located outside conditioned space, is amended by adding an exception as follows.

R403.3.1 Ducts located outside conditioned space. Supply and return ducts located outside conditioned space shall be insulated to an R-value of not less than R-8 for ducts 3 inches (76 mm) in diameter and larger and not less than R-6 for ducts smaller than 3 inches (76 mm) in diameter. Ducts buried beneath a building shall be insulated as required per this section or have an equivalent thermal distribution efficiency. Underground ducts utilizing the thermal distribution efficiency method shall be listed and labeled to indicate the R-value equivalency.

Exception:

1. Supply and return ducts in attics shall be insulated to an R-value of not less than R-6 for ducts 3 inches (76 mm) in diameter and larger, where the efficiency of the installed cooling equipment is higher than the minimum required by federal law for climate zone 2.

Section R403.5.1.1, Circulation systems, is amended to read as follows:

R403.5.1.1 Circulation systems. Heated water circulation systems shall be provided with a circulation pump. The system return pipe shall be a dedicated return pipe or a cold-water supply pipe. Gravity and thermosyphon circulation systems shall be prohibited. Controls for circulating hot water system pumps shall automatically turn off the pump when the water in the circulation loop is at the desired temperature and when there is no demand for hot water. The controls shall limit the temperature of the water entering the cold-water piping to not greater than 104°F (40°C) and shall comply with one of the following:

1. Controls for circulating hot water system pumps shall start the pump based on the identification of a demand for hot water within the occupancy. The controls shall automatically turn off the pump when the water in the circulation loop is at the desired temperature and when there is no demand for hot water.
2. Controls for circulating hot water system pumps shall include a timer clock switch operating pumps based on time of day/night. Controls shall also include a return water temperature sensor switch to pause the re-circulating pump whenever the return water is hot.

Section R403.6.3, Testing, is repealed in its entirety.

Section R404, ELECTRICAL POWER AND LIGHTING SYSTEMS, is repealed in its entirety.

Table R406.5, Maximum energy Rating Index, is amended as follows:

TABLE R406.5
MAXIMUM ENERGY RATING INDEX

CLIMATE ZONE	ENERGY RATING INDEX
0-1	52
2	59 [~~52~~]
3	51
4	54
5	55
6	54
7	53
8	53

SECTION R409, PHOTOVOLTAIC (PV) CAPABLE, and Section R409.1, Electrical service reserved space, are added as follows:

SECTION R409
PHOTOVOLTAIC (PV) CAPABLE

This section applies to detached one- and two-family dwellings and townhouses three stories or less in height above grade plane.

R409.1 Electrical service reserve space. The main electrical service panel shall have a reserved space to allow installation of a dual pole circuit breaker for future solar electric installation and shall be labeled "For Future Solar Electric." The reserved space shall be positioned at the opposite (load) end from the input feeder location or main circuit location.

SECTION R410, ELECTRIC VEHICLE (EV) READY, and Section R410.1, Electric vehicle ready, are added as follows:

SECTION R410
ELECTRIC VEHICLE (EV) READY

This section applies to detached one- and two-family dwellings and townhouses three stories or less in height above grade plane.

R410.1 Electric vehicle ready. One- and two- family dwellings, townhouses three stories or less with a garage shall have a dedicated 40amp/240volt single receptacle for EV use.

Exception: Properties without a garage.

Section R501.6, Historic buildings, is amended to read as follows:

R501.6 Historic buildings. Provisions of this code relating to the construction, *repair, alteration*, restoration, and movement of structures, and change of occupancy shall not be mandatory for *historic buildings*. [~~provided that a report has been submitted to the code official and signed by the owner, a registered design professional, or a representative of the State Historic Preservation Office or the historic preservation authority having jurisdiction, demonstrating that compliance with that provision would threaten, degrade, or destroy the historic form, fabric, or function of the building.~~]

(Ord. No. 2025-01-30-0075, § 1(Att. 1), 1-30-25)

Secs. 10-93—10-95. Reserved.

ARTICLE XI. SWIMMING POOL AND SPA CODE

Sec. 10-96. Adoption of *International Swimming Pool and Spa Code* 2024.

The 2024 edition of the *International Swimming Pool and Spa Code*, promulgated by the International Code Council, hereby adopted, and incorporated in this article by reference as if fully set forth, except as it is amended by the following provisions of section 10-97. Provisions of this article are in addition to the provisions of the *International Pool and Spa Code*. The following provisions coinciding with the provisions of the *International Pool and Spa Code* supersede, repeal, or delete, when indicated, the corresponding provisions of the *International Pool and Spa Code*.

All references within the model code to any building, electrical, fuel gas, mechanical, plumbing, energy conservation, existing building, or swimming pool code shall be construed to be a reference to the respective building, electrical, fuel gas, mechanical, plumbing, energy conservation, existing building or swimming pool code specifically adopted by reference in articles II through XIV of this chapter.

(Ord. No. 2025-01-30-0075, § 1(Att. 1), 1-30-25)

Sec. 10-97. Amendments to the adopted chapters of the *International Swimming Pool and Spa Code* 2024.

Additions to the *International Swimming Pool and Spa Code* (ISPSC) are shown as underlined text. Deletions to the ISPSC are shown as bracketed [~~strikethroughs~~].

Section 102.9, Other laws, is amended to read as follows:

102.9 Other laws. The provisions of this code shall not be deemed to nullify any provisions of local, state, or federal law, nor shall any conflicts with state law this code supersede any state law, to include but not limited to;

1. Texas Department of State Health Services (TDSHS); Standards for Public Pools and Spas; 2865. 181 through § 2865.20811, (TDSHS rules do not apply to pools located on one- and two-family dwellings or townhouses lots).
2. Texas Department of Licensing and Regulation (TDLR); 2012 Texas Accessibility Standards (TAS), TAS provide the scoping and technical requirements

for accessibility for Swimming Pool, wading pools and spas and shall comply with 2012 TAS, Section 242. TAS rules do not apply to pools serving one- and two-family dwellings or townhouses).

3. City of San Antonio City Code Section 34-273(11), *Pool construction requirements on or after May 1, 2013*.

4. Texas Health and Safety Code; Title 9. Safety, Subtitle A. Public Safety, Chapter 757. Pool Yard Enclosures.

Exception: Elements regulated under Texas Department of Licensing and Regulation TDLR) and built-in accordance with TDLR approved plans, including any variances or waivers granted by the TDLR, shall be deemed to be in compliance with the requirements of this Chapter.

PART 2- ADMINISTRATION AND ENFORCEMENT, including Sections 103, 104, 105, 106 107, 108, 109, 110, 111, 112, 113, and 114, is deleted in its entirety.

Section 202 Definitions is amended by adding the definition for the San Antonio Metropolitan Health District.

SAN ANTONIO METROPOLITAN HEALTH DISTRICT regulates the operation of public pools. Routine inspections on pools and spas open to the public are conducted to document compliance with the standards set forth in State Law.

Section 302.4, Concealed piping inspection, is amended as follows:

302.4 Concealed piping inspection. Piping, including process piping, that is installed in trenches, shall be [~~inspected~~] tested at 25 psi for 15 min prior to backfilling.

SECTION 305, BARRIER REQUIREMENTS, is amended by amending 305.1, General, and 305.1.1, Construction fencing required and 305.2, Outdoor swimming pools and spas, to read as follows:

Section 305.1 General. The provisions of this section shall apply to the design of barriers for restricting entry into areas having pools and spas. In one -and two-family dwellings and townhouses, where spas or hot tubs are equipped with a lockable safety cover complying with ASTM F1346 and swimming pools are equipped with a powered safety cover that complies with ASTM F1346, the areas where those spas, hot tubs or pools are located shall not be required to comply with Sections 305.2 through 305.7.

305.1.1 Construction fencing required. The construction sites for in-ground swimming pools and spas shall be provided with construction fencing to surround the site from the time that any excavation occurs up to the time that the permanent barrier is completed. The [fencing] barrier shall be not less than [4] 3 feet ([~~1219~~] 914 mm) in height.

305.2 Outdoor swimming pools and spas. Outdoor pools and spas and indoor swimming pools shall be surrounded by a barrier that complies with Sections 305.2.1 through 305.7 and in accordance with the Texas Administrative Code, Texas Health, and Safety Code 757 for public pools.

Section 305.2.8, Chain link dimensions, is amended by adding Section 305.2.8.1, Chain link fencing prohibited, as follows:

Section 305.2.8.1 Chain link fencing prohibited. Chain link fencing is not permitted as a barrier in public pools built after January 1, 1994.

Section 305.4, Structure wall as a barrier, is amended as follows with all other code text to remain as written:

Section 305.4 Structure wall as a barrier. Where a wall [~~of a dwelling or structure~~] of a one- and two-family dwelling or townhouse or its accessory structure serves as part of the barrier and where doors, gates or windows provide direct access to the pool or spa through that wall, one of the following shall be required:

The wall of a building with windows in accordance with 2024 International Building Code, Section 1031 in Group R2 occupancies shall not be used as part of pool enclosure.

Other windows that are part of a pool yard enclosure shall be permanently closed and unable to be opened for public pools.

* * * * *

Section 305.6, Natural barriers, is amended by amending the title as follows with all other code text to remain as written:

Section 305.6 Natural barriers used in a one- and two-family dwelling or townhouse.

Section 306.2 Slip resistant, is amended as follows:

Section 306.2 Slip resistant. For other than residential pools and spas, [D]decks, ramps, coping, and similar step surfaces shall be slip resistant and cleanable. For residential pools and spas, decks, ramps and similar step surfaces shall be slip resistant and cleanable. [~~Where surfaces are evaluated for slip resistance, such surfaces shall have, when tested wet, a minimum pendulum slip rating classification of P4 if tested in accordance with SA AS4586 or a minimum Dynamic Coefficient of Friction (DCOF) of 0.42 if tested in accordance with ANSI A326. The design professional shall determine the appropriate classification and level of slip resistance necessary based on surface type, placement environment, and pedestrian traffic.~~] Special features in or on decks such as markers, brand insignias, and similar materials shall be slip resistant.

Section 307.1.5, Accessibility, is amended to add the Exception to read as follows:

Section 307.1.5 Accessibility. An accessible route to public pools and spas shall be provided in accordance with the International Building Code. Accessibility within public pools and spas shall be provided as required by the accessible recreational facilities provisions of the International Building Code. Pool and spa lifts providing an accessible means of entry into the water shall be listed and labeled in accordance with UL 60335-2-1000 and be installed in accordance with ICC A117.1 and NFPA 70.

Exception: Components of projects regulated by and registered with Architectural Barriers Division of Texas Department of Licensing and Regulation shall be deemed to be in compliance with the requirements of this chapter.

Section 311.1, General, is amended by adding the following:

Section 311.1 General. Suction entrapment avoidance for pools and spas shall be provided in accordance with APSP 7 (ANSI/PHTA/ICC7) or for public swimming pools in accordance with State of Texas Rules for Public Swimming Pools and Spas, Title 25 TAC Chapter 265 Subchapter L, Rule §265.190.

Section 321.1, Backwash water or draining water, is amended as follows:

Section 321.1 Backwash water or draining water. For public pools, backwash water [~~and draining water~~] shall be discharged to the sanitary [~~or storm~~] sewer, or into an *approved* disposal system on the premise, or shall be disposed of by other means approved by the state or local authority. Direct connections shall not be made between the end of the backwash line and the disposal system. Drains shall discharge through an air gap.

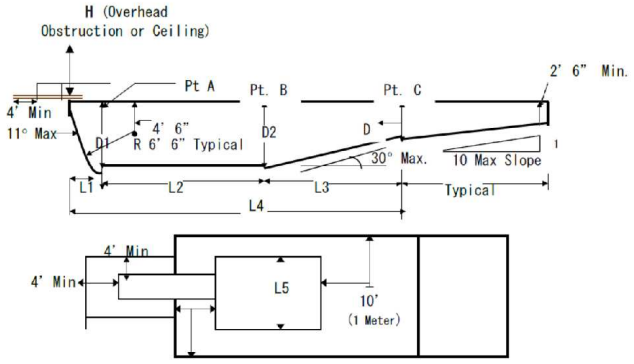
Section 402.12, Water envelopes, is amended to delete Table 402.12 and Figure 402.12, add Figure 25 TAC 265.186(e)(6) and to read as follows:

Section 402.12 Water envelopes. The minimum diving water envelopes shall be in accordance with [~~Table 402.12~~] Texas Department of State Health Services, Administrative Code Title 25, Chapter 265, Section186 (e) and Figure: 25 TAC 256.186 (e) (6).

Add Figure 25 TAC 265.186(e)(6):

ADD: Figure 25 TAC § 265.186(e)(6):

Maximum Diving Board Height Over Water	**¾ Meter**	**1 Meter**	**3 Meters**
Max. Diving Board Length	12 ft.	16 ft.	16 ft.
Minimum Diving Board Overhang	2 ft. 6 in.	5 ft.	5 ft.
D1 Minimum	8 ft. 6 in.	11 ft. 2 in.	12 ft. 2 in.
D2 Minimum	9 ft.	10 ft. 10 in.	11 ft. 10 in.
D3 Minimum	4 ft.	6 ft.	6 ft.
L1 Minimum	4 ft.	5 ft.	5 ft.
L2 Minimum	12 ft.	16 ft. 5 in.	19 ft. 9 in.
L3 Minimum	14 ft. 10 in.	13 ft. 2 in.	13 ft. 11 in.
L4 Minimum	30 ft. 10 in.	34 ft. 7 in.	38 ft. 8 in.
L5 Minimum	8 ft.	10 ft.	13 ft.
H Minimum	16 ft.	16 ft.	16 ft.
From Plummet to Pool Wall at Side	9 ft.	10 ft.	11 ft. 6 in.
From Plummet to Adjacent Plummet	10 ft.	10 ft.	10 ft.



Section 402.13, Ladders for diving equipment, is amended to remove the Exception as follows:

402.13 Ladders for diving equipment. Ladders shall be provided with two grab rails or two handrails. There shall be a uniform distance between ladder treads, with a 7-inch (178 mm) minimum distance and 12-inch (305 mm) maximum distance. Supports, platforms, steps, and ladders for diving equipment shall be designed to carry the anticipated loads. Steps and ladders shall be of corrosion-resistant material, easily cleanable and with slip-resistant tread.

~~Exception: The distance between treads for the top and bottom riser can vary but shall be not less than 7 inches (178 mm) and not greater than 12 inches (305 MM).~~

Section 411.2.1, Tread dimensions and area, is amended as follows:

Section 411.2.1 Tread dimensions and area. Treads shall have a minimum unobstructed horizontal depth (i.e., horizontal run) of 12 inches and a minimum width of 20 inches. [~~not be less than 24 inches (607mm) at the leading edge. Treads shall have an unobstructed surface area of not less than 240~~

~~square inches (154838mm2) and an unobstructed horizontal depth of not less than10 inches (254 mm) at the center line.~~]

Section 411.2.2, Risers, is amended as follows:

Section 411.2.2 Risers. Risers for steps shall have a maximum uniform height of 10 inches, with the bottom riser height allowed to taper to zero. [~~except for the bottom riser, shall have a uniform height of not greater than 12 inches (305 mm) measured at the center line. The bottom riser height is allowed to vary to the floor.~~]

Section 411.5.1, Swimouts, is amended by adding the following text to item 4 as follows:

Section 411.5.1 Swimouts. Swimouts, located in either the deep or shallow area of a pool, shall comply with all of the following:

4. The leading edge shall be visibly set apart and provided with a horizontal solid or broken stripe at least 1 inch wide on the top surface along the front leading edge of each step. This stripe shall be plainly visible to persons on the pool deck. The stripe shall be a contrasting color to the background on which it is applied, and the color shall be permanent in nature and shall be a slip-resistant surface.

Section 411.5.2, Underwater seats, and benches, is amended by adding the following text to item 5 as follows:

Section 411.5.2 Underwater seats and benches. Underwater seats and benches, whether used alone or in conjunction with pool stairs, shall comply with all of the following:

5. The leading edge shall be visibly set apart and provided with a horizontal solid or broken stripe at least 1 inch wide on the top surface along the front leading edge of each step. This stripe shall be plainly visible to persons on the pool deck. The stripe shall be a contrasting color to the background on which it is applied, and the color shall be permanent in nature and shall be a slip-resistant surface.

Section 412, Signage, is to be repealed in its entirety and replaced with Texas Department of State Health Services (TDSHS); Standards for Public Pools and Spas, 265. 181 through § 265.211 requirements for signage.

SECTION 603, MARKINGS, AND INDICATORS, is amended by repealing Section 603.2, Class D-2 pools, and replacing with 603.2, Class A and B pools, as follows:

Section 603.2 Class A and B pools. Class A and B pools over 5 feet deep: the transition point of the pool from the shallow area to the deep area of the pool shall be visually set apart with a 4-inch minimum width row of floor tile, a painted line, or similar means using a color contrasting with the bottom; and a rope and float line shall be provided between 1 foot and 2 feet on the shallow side of the 5-foot depth along and parallel to this depth from one side of the pool to the other side. The floats shall be spaced at not greater than 7-foot intervals; and the floats shall be secured so they will not slide or bunch up. The stretched float line shall be of sufficient size and strength to offer a good handhold and support loads normally imposed by users. If the owner or operator of the pool knows or should have known in the exercise of ordinary care that a rope or float is missing, broken, or defective, the problem shall be promptly remedied.

Section 609.9, Infant care, is amended to read as follows:

609.9 Infant Care. Baby-changing tables shall be provided in toilet facilities [~~having two or more water closets~~].

Section 610.5.1, Uniform height of 9 inches, is amended to read as follows:

Section 610.5.1 Uniform height of [9]10 inches. Except for the bottom riser, risers at the centerline shall have a maximum uniform height of [~~9~~] 10 inches ([~~229~~] 254 mm). The bottom riser height shall be permitted to vary from the other risers.

Section 804.1, General, is amended as follows:

Section 804.1 General. The minimum diving water envelopes shall be in accordance with Table 804.1 and Figure 804.1, or the manufacturer's specifications, whichever is greater. Negative construction tolerances shall not be applied to the dimensions of the minimum diving water envelopes given in Table 804.1.

(Ord. No. 2025-01-30-0075, § 1(Att. 1), 1-30-25)

Secs. 10-98—10-100. Reserved.

ARTICLE XII. FIRE PREVENTION

Sec. 10-101. Fire prevention.

See Chapter 11 of this Code.

(Ord. No. 2025-01-30-0075, § 1(Att. 1), 1-30-25)

Secs. 10-102—10-110. Reserved.

ARTICLE XIII. LICENSING AND REGISTRATION

Sec. 10-111. Billboard operator license.

(a) *License required.* All persons engaging in the business of erecting, painting, servicing or maintaining billboards or any other off-premises advertising sign shall, for the purposes of this chapter, be considered billboard operators and must be licensed to do business per sections 10-111 and 10-116. A license holder supplying his license for a firm or corporation doing business under this chapter shall not supply his license to a second firm or corporation. Any permit issued to the license holder shall be for work being done by the license holder and his firm or corporation. The licensing requirement shall not be applicable to employees or subcontractors performing work under the supervision of the licensed billboard operator.

(b) *Examination required, application.* Before a billboard operator license may be issued, each person seeking such a license shall take an examination and file an application for the examination with the building official.

(c) *Qualifications.* Prior to taking the examination required by this chapter, each applicant shall demonstrate to the building official an ability to read and write English and show proof of at least four (4) years practical experience at the trade working under a billboard operator. The applicant shall also submit to the building official an affidavit, duly sworn, setting forth his experience. Proof of the applicant's experience shall be included with the affidavit.

(d) *Examination fee; test score; issuance of license.* Examinations are administered by an approved third party, and the associated examination fees are paid directly to the approved third party by the applicant. After the building official has approved the application, the applicant has passed the required examination, and the applicant has paid the license fee in accordance with the city approved fee schedule, the building official shall issue the applicant a billboard operator license.

(Ord. No. 2025-01-30-0075, § 1(Att. 1), 1-30-25)

Sec. 10-112. Commercial sign operator license.

(a) *License required.* Any person engaged in the business of erecting, painting, maintaining, or servicing commercial signs must be licensed as a commercial sign operator by the city per sections 10-112 and 10-116.

(b) *Examination required, application.* Before a billboard operator's license may be issued, each person seeking such a license shall take an examination and file an application for the examination with the building official.

(c) *Qualifications.* Prior to taking the examination required by this chapter, each applicant shall demonstrate to the building official an ability to read and write English, and show proof of at least two (2) years of experience in commercial sign installation working under a licensed commercial sign operator, or a licensed commercial sign operator from another city provided that the licensing qualifications and examinations are similar in design and quality to that of the city as determined by the building official, or can show proof of at least four (4) years of experience in commercial sign installation,

provided the verification of experience shall be provided to the building official in a manner established by written policy. The applicant shall also submit to the building official an affidavit, duly sworn, setting forth his experience. Proof of the applicant's experience shall be included with the affidavit.

(d) *Examination fee; test score; issuance of license.* Examinations are administered by an approved third party, and the associated examination fees are paid directly to the approved third party by the applicant. After the building official has approved the application, the applicant has passed the 2018 International Building-Related Codes required examination, and the applicant has paid the license fee in accordance with the city approved fee schedule, the building official shall issue the applicant a commercial sign operator license.
(Ord. No. 2025-01-30-0075, § 1(Att. 1), 1-30-25)

Sec. 10-113. City electrical contractors and electrical sign contractors, installers, maintenance electricians; licenses and registrations.

(a) *Effect of state licensing.* Upon the state's enforcement of House Bill 1487, passed by the 78th session of the Texas Legislature that established the state licensing of electricians, the city no longer licenses electricians through testing administered by the city.

Exception: The building official will continue to renew those electrical licenses issued prior to the state's electrical license program. All provisions and regulations of this chapter shall apply to licenses issued by the city and/or the state.

(b) *State licensed electrical contractors and electrical sign contractors, registration.* State licensed electrical contractors and electrical sign contractors shall register with the city before performing any electrical work or electrical sign work regulated by this chapter, chapter 10-116 and/or chapter 28, Signs, and billboards.

(c) *General liability and completed operation insurance.*

(1) A licensed contractor shall furnish the name of the insurance carrier, policy number, name, address, and telephone number of the insurance agent with whom the contractor is insured to the building official or to any customer who requests it. An electrical contractor, electrical sign contractor, or the holder of an annual electrical maintenance permit must continuously maintain on file with the building official in a form of a certificate addressed to the city showing the above referenced persons carrying the following types and amounts of insurance:

a. The insurance must be at least three hundred thusand dollars ($300,000.00) per occurrence (combines for property damage and bodily injury).

1. Be at least six hundred thousand dollars ($600,000.00) aggregate (total amount the policy will pay for property damage and bodily injury coverage); and

2. Be at least three hundred thousand dollars ($300,000.00) aggregate for products and completed operations.

b. The holder of any contractor's license is responsible for providing evidence of a new or renewal policy of any required insurance coverage upon termination or renewal of any policy.

c. Any insurance certificate required by this Code must be written through a company licensed to issue the insurance in the state and the insurance may be approved by office of the city attorney.

(d) *City classifications of licenses and registrations.* The following are the classifications of city licenses and registrations regulated by this Code:

(1) *Licenses:*

a. Electrical contractor.

b. Electrical sign contractor.

c. Master electrician.

d. Master sign electrician.

e. Journeyman electrician.

(2) *Registrations:*

a. Electrical maintenance technician.

(e) *City licenses, registration cards and certificates.*

(1) A registration card, bearing the building official's signature, shall be issued to each person receiving a city registration or license.

(2) Each such registration card shall expire at midnight of the renewal date. A new card shall be issued provided that the registration or license holder has complied with the regulations of this Code pertaining to renewals.

(3) Each registration certificate or card, when issued to an electrical contractor, electrical sign contractor shall be issued to a person and registered in the name of the firm by which the person is employed. The firm shall be known as the holder of such registration certificate or card and shall notify the code official if the licensee is no longer in its employment. No further permits will be issued to the firm based upon the previous license holder's name who is no longer employed by the firm.

(4) It shall be a violation of this Code for any person to alter or amend in any manner, lend, rent, or transfer a registration certificate or card, and for any person to make use of any such rights for which the person is not registered or licensed.

(5) Each electrical contractor, electrical sign contractor, or residential appliance installation contractor shall display the registration certificate in a conspicuous place in the firm's place of business. Each holder of a registration card shall carry the registration card on his person at all times while performing electrical work, electrical sign work or residential appliance installation covered by this Code and shall present it to the building official upon demand.

(f) *License expiration, renewal, and continuing education.* A license may be renewed at any time within thirty (30) days before the expiration date, unless such license has been revoked or canceled by the building official. Applicants shall show proof of having satisfactorily completed an accredited four-hour code study course, approved by the building official, for each year of renewal within the twenty-four (24) months immediately preceding such renewal. All electrical and sign licenses shall expire at midnight on the anniversary date of their issuance and shall be subject to renewal for a two-year period of time.

(g) *License prerequisite to issuance of permit.* A permit for electrical work or electrical sign work shall not be issued to any person unless such person is the holder of a license to perform the class of work described in such permit as provided in this chapter. An annual electrical maintenance permit required by this chapter shall not be issued unless the owner of the property provides evidence that the maintenance work will be performed by individuals qualified in accordance with subsection 10-6(c) of this chapter.

(h) *Electrical contractors, electrical sign contractors; responsibilities.*

(1) Every electrical or electrical sign contractor, before engaging in electrical or electrical sign work, must procure a master electrician or master electrician sign license for the conduct of such work. Electrical work is regulated by this Code. Electrical sign work is regulated by chapter 28, Signs, and billboards.

a. Electrical contractor work shall not include the manufacture of any sign regulated by this Code or chapter 28.

b. Electrical sign contractor work shall not include the extensions of, or additions to, an existing branch circuit.

(2) A licensed contractor shall display its name and license number on both sides of each vehicle owned or operated by the business and used in the conduct of his

work. Lettering shall be of a contrasting color and at least two (2) inches in height.

a. An electrical contractor's license number shall be preceded by the letters "EM" or "TECL" depending on whether the business is operating under a local license or state license.

b. An electrical sign contractor's license number shall be preceded by the letters "SM" "TSCL" for city licenses or state licenses respectively.

(3) All of a contractor's non-exempt work shall be performed by licensed or registered individuals. A contractor is responsible for compliance with applicable codes for all such work performed on its behalf.

(4) The licensed contractor's name, address, phone number, and license number shall appear on all proposals, invoices, and written contracts proposed by the contractor. The following information: "Regulated by The Texas Department of Licensing and Regulation, P.O. Box 12157, Austin, Texas 78711, 1-800-803-9202, 512-463-6599; website: www.tdlr.texas.gov shall be listed on all proposals, invoices, and written contracts.

(5) A licensed contractor shall maintain employee records and records of all work performed on its behalf for a period of four (4) years after completion of the work and shall make those records available to the code official at the contractor's place of business during normal business hours for inspection and copying.

(6) A licensed contractor and its designated master electrician are responsible for supervision of all licensees or registered persons performing work on behalf of the contractor to assure compliance with applicable statutes and rules and, in particular, standards of conduct set out in these rules.

(i) *Master electrician and master sign electrician.*

(1) *Responsibility.* The master electrician of record shall be liable and responsible for the layout and technical supervision of any work that requires the securing of a permit under the master's license. Failure of the master to properly provide for the supervision and control of work being performed on behalf of the business may cause the work being performed under permit to be discontinued by the building official.

(2) *Limitation on multiple business affiliations.* Any master electrician or master sign electrician affiliated with a business as herein provided shall not engage in the operation of a second electrical or electrical sign business, under the provisions of this Code, unless it is under the same name and insurance of the first business. Any permit issued to a business must be for work being done by that business. Any master electrician or master sign electrician obtaining permits for any person, business or entity will be notified to appear before the building official for consideration of a complaint.

(j) *Supervision of licensees.*

(1) *Journeyman electrician and journeyman sign electrician.* A journeyman electrician shall perform electrical or electrical sign work under the general supervision of a master electrician or master sign electrician on behalf of an electrical or electrical sign contractor.

(2) *Residential wireman.* A residential wireman shall perform electrical work only as defined by section 10-25 under the general supervision of a master electrician.

(3) *Electrical apprentice.* Electrical apprentices shall be supervised by a licensed individual other than an electrical apprentice. Continuous supervision of an electrical apprentice is not required; however, the supervising licensee must

by onsite and is responsible for supervising, reviewing and inspecting all work performed by the electrical apprentices to ensure compliance with any applicable codes and standards. The maximum number of apprentices that may be supervised by an individual master electrician, journeyman electrician or journeyman sign electrician on an individual job site is eight (8). The maximum number of apprentices performing work defined in section 10-25 that may be supervised by an individual Residential Wireman on an individual job site is four (4).

(k) *Electrical maintenance technician; performance of work.* A maintenance electrician may perform all of the work under the annual electrical maintenance permit permitted by subsection 10-6(c). A registered electrical maintenance technician may perform all of the work permitted by subsection 10-6(c) but may not perform work involving voltages or amperages that exceed the limits described in subsections 10-6(c)(2) a.—f.
(Ord. No. 2025-01-30-0075, § 1(Att. 1), 1-30-25)

Sec. 10-114. City mechanical licenses.

(a) *Licensing and registration.* Along with section 10-116, any person performing any form of mechanical work in the city shall have in his possession a valid and authenticated mechanical license issued by the building official or a valid mechanical license issued by the state, except as otherwise provided under subsection 10-114(g) or as exempted under federal or state law. The city no longer licenses mechanical contractors through testing administered by the city.

Exception: The building official will continue to renew those mechanical licenses based on completing continued education program.

(b) *General liability insurance.*

(1) A city mechanical licensed contractor shall furnish the name of the insurance carrier, policy number, name, address, and telephone number of the insurance agent with whom the contractor is insured to the building official and to any customer who requests it.

(2) City licensed mechanical contractors must continuously maintain on file with the building official in a form of a certificate addressed to the city showing the above referenced persons carrying the following types and amounts of insurance.

a. The insurance must be at least three hundred thousand dollars ($300,000.00) per occurrence (combined for property damage and bodily injury);

b. Be at least six hundred thousand dollars ($600,000.00) aggregate (total amount the policy will pay for property damage and bodily injury coverage); and

c. Be at least three hundred thousand dollars ($300,000.00) aggregate for products and completed operations.

(3) The holder of any city contractor's license is responsible for providing evidence of a new or renewal policy of any required insurance coverage upon termination or renewal of any policy.

(4) Any insurance certificate required by this Code must be written through a company licensed to issue the insurance in the state and the insurance may be approved by office of the city attorney.

(5) Insurance amount requirements for State issued Air Conditioning and Refrigeration Licenses class A or B of any endorsement shall be regulated by the Texas Department of Licensing and Regulation (TDLR) section 75.40 of the Administrative Rules

(c) *City classifications of licenses and registrations.* The following are the classifications of city licenses and registrations regulated by this Code. Any person whose license was destroyed or lost may obtain a duplicate license upon payment of the fee set forth in the fee schedule adopted by the city.

(1) *Licenses:*

a. Master mechanical contractor license.

b. Journeymen mechanical license.

(d) *City license cards.*

(1) A registration card, bearing the building official's signature, shall be issued to each person receiving a city registration or license.

(2) All city licenses shall expire on December 31 of each year. Licenses shall be renewed prior to the expiration date. Each person holding a valid mechanical license shall renew same in sufficient time to have the license renewal form returned to the development services department with the appropriate renewal fee prior to license expiration date. Any person who does not renew his license prior to expiration date has the right to appeal to the building-related and fire codes appeals and advisory board.

(3) Each card, when issued to a mechanical contractor, shall be issued to a person, and registered in the name of the firm by which the person is employed. The firm shall be known as the holder of such registration certificate or card and shall notify the code official if the licensee is no longer in its employment. No further permits will be issued to the firm based upon the previous license holder's name who is no longer employed by the firm.

(4) It shall be a violation of this Code for any person to alter or amend in any manner, lend, rent, or transfer a registration certificate or card, and for any person to make use of any such rights for which the person is not registered or licensed.

(5) Each holder of a city issued card shall carry the registration card on his person at all times while performing mechanical work covered by this Code and shall present it to the building official upon demand.

(e) *Continuing education requirements for mechanical contractors, license expiration, and renewal.* A license may be renewed at any time within thirty (30) days before the expiration date, unless such license has been revoked or canceled by the building official. Applicants shall show proof of having satisfactorily completed the required continuing education as follows:

(1) Mechanical contractors licensed by the state must maintain the required amount of continuing education mandated by state law in order to perform work in the city.

(2) Mechanical contractors licensed by the city will be required to attend eight (8) hours of continuing education annually.

a. This training is mandatory for maintenance of city license.

b. Training curriculum will be established by the building official, will be in accordance with state law and will be reviewed by the board annually.

c. Annual training will be conducted by the development services department.

d. A licensee may not receive continuing education credit for attending the same course more than once.

e. A fee, established by ordinance in the development services department fee schedule, shall be paid by the licensee for each course.

(f) *Certain acts prohibited.* In addition to other provisions of this Code, it shall be unlawful for any person to do any of the following acts:

(1) To display, cause or permit to be displayed or to have in one's possession any instrument purporting to be licensed for the doing of any mechanical work, knowing such instrument to be fictitious or to have canceled, revoked suspended or altered;

(2) To lend or knowingly permit the use of any license for the doing of any mechanical work to any person not entitled thereto, under the provisions of this chapter;

(3) To display or represent as one's own a license for the doing of any mechanical work when such license has not been lawfully issued to the person so displaying the same;

(4) To fail or refuse to surrender to the building official on demand any license for the doing of any mechanical work, which has been suspended, canceled or revoked as provided for in this chapter;

(5) To apply for or have in one's possession more than one (1) current license of the same type provided for in this chapter;

(6) To use a false or fictitious name or give a false or fictitious address in any application for any license provided for in this chapter, or any renewal or duplicate thereof, or knowingly make a false statement or knowingly conceal a material fact or otherwise commit fraud in making any such application;

(7) To employ as a master or technician in mechanical work any person not licensed as provided in this chapter;

(8) To perform any character of mechanical work for which a license is required by this chapter while such license is suspended, canceled or revoked.

(g) *Master mechanical contractor limitations on multiple business affiliations.* Any master mechanical contractor affiliated with a business as herein provided shall not engage in the operation of a second mechanical contracting business, under the provisions of this Code, unless it is under the same name and insurance of the first business. Any permit issued to a business must be for work being done by that business. Any master mechanical contractor obtaining permits for any person, business or entity will be notified to appear before the building official for consideration of a complaint.

(h) *Journeymen mechanical; performance of work; supervision and ratio.* A mechanical journeymen shall perform mechanical work under the general supervision of a master mechanical contractor. A journeymen shall directly supervise the work of a mechanical apprentice provided that a ratio of eight (8) apprentices to one (1) journeyman is not exceeded.

(i) *Development services inspection supervisor.* The mechanical inspections supervisor of the development services department shall also serve as the master of record for mechanical work performed by city employed mechanical workers. (Ord. No. 2025-01-30-0075, § 1(Att. 1), 1-30-25)

Sec. 10-115. Residential building and home improvement contractor registrations.

(a) *Registration.* Any person performing any form of residential construction or home improvement work in the city shall be working under a contractor registered per sections 10-115 and 10-116 with a valid and authenticated home builder registration card issued by the building official in their possession.

Exceptions:

(1) Any person who will own a detached single-family dwelling for a period of twelve (12) months after completion of the building permit and final inspection for the single-family dwelling or accessory building thereto.

(2) Building trade subcontractors who are performing work for the residential building contractor are not required to be registered under this section (e.g., framing subcontractor, flooring subcontractor, drywall subcontractor, painting subcontractor, etc.).

(3) Any person who will repair, replace, or modify non-structural building components to an existing residential detached accessory structure not exceeding three hundred (300) square feet.

(b) *General liability and insurance.*

(1) A registered contractor shall furnish and present the name of the insurance carrier, policy number, name, address, and telephone number of the insurance agent with whom the contractor is insured to the building official or to any customer upon request.

(2) City registered homebuilder contractors must maintain insurance of the following types and amounts:

a. The insurance must be at least five hundred thousand dollars

($500,000.00) per occurrence (combined for property damage and bodily injury);

b. Be at least one million dollars ($1,000,000.00) aggregate (total amount the policy will pay for property damage and bodily injury coverage);

c. Be at least five hundred thousand ($500,000.00) aggregate for products and completed operations; and

d. The City of San Antonio must be listed as certificate holder on the certificate of liability insurance.

(3) City registered home improvement contractors must maintain insurance of the following types and amounts:

a. The insurance must be at least three hundred thousand dollars ($300,000.00) per occurrence (combined for property damage and bodily injury);

b. Be at least six hundred thousand dollars ($600,000.00) aggregate (total amount the policy will pay for property damage and bodily injury coverage);

c. Be at least three hundred thousand dollars ($300,000.00) aggregate for products and completed operations; and

d. The City of San Antonio must be listed as certificate holder on the certificate of liability insurance.

(4) The holder of any city contractor's registration is responsible for providing evidence of a new or renewal policy of any required insurance coverage upon termination or renewal of any policy.

(5) Any insurance certificate required by this Code must be written through a company licensed to issue the insurance in the state and the insurance may be approved by office of the city attorney.

(c) *Responsibilities.* A registered residential building contractor shall be responsible for exercising such supervision and control of his operations as is necessary to secure full compliance with the provisions of the adopted International Residential Code (IRC) and other applicable laws of the city, state, and United States.

(d) *Penalties.* A violation of this section shall constitute a Class C misdemeanor offense with a fine not to exceed five hundred dollars ($500.00) per violation. Each day or portion thereof out of compliance with the registration requirements set above shall constitute a separate offense.

(e) *Application procedures; requirements.*

(1) An applicant for an original registration or renewal must submit an application to the building official on a form established by the department. Each applicant must fully disclose in the application whether the applicant has:

a. Entered a plea of guilty or nolo contendre (no contest) to:

1. Any felony charge, or

2. A misdemeanor involving moral turpitude.

b. Been convicted of:

1. A felony, or

2. A misdemeanor involving moral turpitude and the time for appeal has elapsed or the conviction has been affirmed on appeal.

c. Entered a plea of guilty or nolo contendre (no contest) or been convicted of:

1. Any felony, or

2. Misdemeanor arising out of a violation of the building code or local amendments thereto in the state whether or not said violation involves moral turpitude.

d. Lost or is suspended from residential building contractor privileges in any jurisdiction in the state. A failure to

disclose under subsection 10-115(e)(1) shall be sufficient grounds to deny the application.

(2) The building official shall have the right to investigate and examine the qualifications and fitness of an applicant.

a. Upon receipt of an application, the building official shall conduct a criminal background check on the applicant or any person responsible for the application. The applicant will submit to the building official an officially sealed criminal history record information maintained by the department of Federal Bureau of Investigation or other methods as approved by building official.

b. For home builder registrations only, one agent affiliated with the contractor must obtain a Residential ICC Certification or other certifications and/or credentials approved by the building official; or the company has a minimum of five (5) years of continued registration with no violations per section 10-115(j), suspensions, or revocation. A new or renewed registration issued before January 1, 2024, that does not meet either of these requirements will be under probation. The probation will be lifted once requirements are met or the registration canceled on January 1, 2024.

(3) A person may not be issued a registration unless the person:

a. Is at least eighteen (18) years of age; and

b. Is a United States citizen or a lawfully admitted alien; and

c. The building official is satisfied with the person's honesty, integrity, and trustworthiness based on information supplied and discovered in connection with the application.

Commentary: Full disclosure includes an interest in, or ownership of any entity engaged in the residential building contractor business that has lost or been suspended from residential building constructor privileges.

(f) *Duties and powers of building official.*

(1) There is hereby vested in the building official the duty of examining the applications for contractor registrations, including the issuance, reissuance, renewal, suspension, or cancellation of such registration.

(2) The building official shall establish procedures consistent with this Code for the issuance of registrations for residential contractors.

(3) The building official shall have the duty to keep all registration application records. The building official shall further have the power and duty to adopt, amend, or repeal rules and regulations consistent with the provisions of this section as may be necessary for the proper administration and enforcement hereof.

(g) *Appealing a denial of registration.*

(1) If either an original or renewal registration is denied, the building official shall furnish the applicant a written statement setting forth the grounds for the refusal within ten (10) working days. Such statement shall be by certified mail, return receipt requested, to the mailing address provided in the application unless the applicant is present to receive and acknowledge in writing receipt of such letter. The applicant or their representative shall then have fifteen (15) working days from receipt of notice to appeal the building official's decision in accordance with section 10-14 of this chapter.

(2) Nothing in this section shall be interpreted as to deny a subsequent application at the expiration of one (1) year from denial of initial registration.

(h) *Fees; registration period.* The application fee for contractor registration shall be as set forth in this section.

(1) A home builder registration fee of one hundred seventy dollars ($170.00) is

required and said registration shall be valid for a period of two (2) years. The registration holder shall be required to re-register every two-year period of time and pay a fee of one hundred seventy dollars ($170.00) for each two-year period of time to maintain registration.

(2) A home improvement registration fee of one hundred fifty dollars ($150.00) is required and said registration shall be valid for a period of two (2) years. The registration holder shall be required to re-register every two-year period of time and pay a fee of one hundred fifty dollars ($150.00) for each two-year period of time to maintain registration.

(i) *Contractor limitations on multiple business affiliations.* Any contractor affiliated with a business as herein provided shall not engage in the operation of a second contracting business, under the provisions of this Code, unless it is under the same name and insurance of the first business. Any permit issued to a business must be for work being done by that business. Any contractor obtaining permits for any person, business or entity will be notified to appear before the building official for consideration of a complaint.
(Ord. No. 2025-01-30-0075, § 1(Att. 1), 1-30-25)

Sec. 10-116. City registration, and insurance required

(a) *Application procedures; requirements.*

(1) An applicant for an original registration or renewal must submit an application to the building official on a form established by the department.

(2) The building official shall have the right to investigate and examine the qualifications and fitness of an applicant.

(b) *City registration cards.*

(1) A registration card, bearing the building official's signature, shall be issued to each person receiving a city registration.

(2) Registrations shall be renewed prior to the expiration date. Each person holding a valid registration shall renew same in sufficient time to have the renewal form returned to the development services department with the appropriate renewal fee prior the expiration date. All city registrations shall expire two (2) years after issuance. Registrations shall be renewed prior to expiration date. Each person holding a valid registration shall renew same in sufficient time to have the renewal form and insurance information returned to the department with the appropriate renewal fee prior to registration expiration date.

(3) Each registration card, when issued to a contractor, shall be issued to a person, and registered in the name of the firm by which the person is employed. The firm shall be known as the holder of such registration and shall notify the code official if the registration holder is no longer in its employment. No further permits will be issued to the firm based upon the previous registration holder's name who is no longer employed by the firm.

(4) It shall be a violation of this Code for any person to alter or amend in any manner, lend, rent, or transfer a registration card, and for any person to make use of any such rights for which the person is not registered.

(5) Each holder of a city issued registration card shall carry the registration card on his person at all times while performing construction work covered by this Code and shall present it to the building official upon demand.

(c) *Registrations or city licenses not transferable.* No registration, or city license shall be transferred, and no holder of any registration shall allow his name or registration to be used by any other person, either for the purpose of performing construction work or obtaining a permit under the penalty of forfeiture of registration and payment of fines

(d) *Continuation of the business upon death, disability, or termination of the business's master.* Upon the death, disability or termination of a registered contractor, such business will be allowed to complete existing work for which permits had been obtained prior to the severance of such registered holder provided insurance is posted, if applicable, and sufficient evidence is submitted to and approved by the building official as to the ability of the business to complete the work in accordance with the requirements of this chapter. Monthly approval may be granted by the building official for a period not to exceed six (6) months. On or before the expiration of such period the business shall associate a registered contractor of the appropriate classification or cease operations.

(e) *Qualifications of contractors.* It shall be a violation of this chapter for a person who does not hold a license to engage in electrical, mechanical, plumbing, home builder, home improvement, demolition, house mover, billboard operator, commercial sign operator and/or electrical sign construction for which a permit is required, or to undertake to execute such construction or to cause the undertaking of such construction.

(f) *Documentation.* The building official shall adopt rules regarding the form of documentation that will be accepted as proof of compliance with any experience, verification of registration status, or other pertinent information the building official feels is relevant for inclusion.

(g) *Record of issuance.* The building official shall maintain a record that is available to the general public of all registrations issued pursuant to this chapter.

(h) *Misrepresentation.* It shall be a violation of this chapter for any person to represent themselves with any class of license or registration set forth in this Code or to use the words "electrical contractor," "master electrician," "master sign electrician," "electrician," "mechanical contractor," "master mechanical contractor," "master HVAC contractor," "master plumber," "responsible master plumber," "building contractor," "homebuilder," homebuilder contractor, "home improvement contractor" or words of similar import or meaning on signs, business cards, stationery, or by any other manner whatsoever, unless such person is properly registered/licensed within the meaning of the word used as provided in this chapter.

(i) *Change of name.* Upon payment of the fee set by ordinance, posting of any necessary bonds and compliance with any other requirements of this chapter, the holder of a valid license may apply to the building official for a change on the name of a registration or license.

(j) *Communication, ready access, and vehicle identification.*

(1) *Means of communication.* Every registered contractor must maintain a bona fide company address and telephone number to enable the building official to contact the contractor in case of a job discrepancy. Any person holding a registration and doing work in the city shall report to the building official any change of address and telephone number in order to allow the building official to maintain accurate registration records. Acceptable means for receiving communications include, but are not limited to, a person available at the place of business, an answering machine, voice mail, a pager, or a cellular telephone.

(2) *Registered contractor present for business.* The registered contractors are responsible for the general on the job or off the job oversight, direction and management of work and individuals performing work related to the registration type to fulfill the contractors responsibility to the client or employer. Registered contractors shall be present during construction related to that type of registration. "Present" shall mean: On site, in the office, or available to be reached during the times of 7:45 a.m. and 4:30 p.m. Central Standard time. Upon request of the building official, registered contractors shall make themselves available to meet on the job site.

(3) *Vehicle identification.* Any contractor engaged in erecting, installing, servicing,

or maintaining a billboard or any person engaged in mechanical, electrical, plumbing or building construction shall ensure that all vehicles required to be on the job are identified with the contractor/company name, city registration number or state license number if applicable. For contractors operating with local license numbers, the number should be prefixed with "EM", "SM" or "HM" and those operating with state licenses shall have the TECL, TSCL or shall have the appropriately identified with the prefixes designated by the state (TDLR). Lettering on the vehicle shall be at least two (2) inches high and shall be in full view and legible at all times.

(k) *Cancellation and suspension of city licenses and registration; appeals.* Any license or registration granted under this chapter may be canceled, revoked, or suspended by the building official if the holder of such license or registration violates provisions of this chapter or any ordinance of the city relating to electrical work.

(1) A contractor's certificate of registration or city license may be cancelled or suspended by the building official after a hearing before the building official if the registered contractor is convicted of any penal offense arising out of or related to the performance of a registered contract or the registered contractor suffers a judgment against them in a civil action predicated upon fraud in connection with the performance of a registered contract.

(2) The building official may also administratively cancel or suspend a certificate of registration or city license after a hearing before the building official for any one or more of the following reasons:

a. Conviction or entering a plea of guilty or nolo contendre (no contest) by the registered person or entity of:

i. A felony, or

ii. Misdemeanor involving moral turpitude.

b. Conviction or entering a plea of guilty or nolo contendre (no contest) in connection with a violation of any adopted technical construction code or amendments thereto in the state;

c. Making any false statement as to a material matter in an application for registration, renewal or hearing in connection with same;

d. Three (3) separate violations of this chapter, provided the violations occur within the previous twelve-month period;

e. Upon judicial determination of an abandonment or willful failure to perform any billboard operator, commercial sign operator, mechanical, electrical, plumbing or building contract or project in or undertaken by a registered contractor, or willful deviation from or disregard of plans or specifications in any material respect;

f. Upon judicial determination that the contractor knowingly made substantial misrepresentation on the part of the registered contractor in the procurement of a contract;

g. Upon judicial determination of fraud on the part of the registered contractor in the execution of or in the material alteration of any registered contract or mortgage promissory note or other document relating to the contract;

h. Upon judicial determination that the registered contractor knowingly prepared or accepted any mortgage, promissory note or other evidence of indebtedness pertaining to a billboard, commercial sign, mechanical, electrical, plumbing, or building transaction with knowledge that it recited a greater monetary obligation than the agreed consideration for the construction work;

i. With knowledge, the billboard, commercial sign, mechanical, electrical,

plumbing, or building contractor directly or indirectly published any advertisement relating to electrical construction which contains assertions, representations or statements which are false, deceptive or misleading;

j. Failure of the registered contractor to notify the building official of any change in the ownership, management, or business name;

k. Conducting a billboard, commercial sign, mechanical, electrical, plumbing, or building contractor business in any name other than the one registered;

l. Obtaining a billboard, commercial sign, mechanical, electrical, plumbing, or building permit for an unregistered contractor or for one whose registration has been suspended, cancelled or denied.

(3) The building official may take any of the following actions against the holder of the city license or certificate of registration:

a. No suspension.

b. Suspension for thirty (30) days.

c. Suspension for sixty (60) days.

d. Suspension for ninety (90) days.

e. Suspension for one hundred eighty (180) days.

f. Cancellation.

(4) The building official shall send the registered contractor a written notice of any administrative action to be taken against the registered contractor by certified mail, return receipt requested, at the last known mailing address. The notification shall give not less than ten (10) working days' notice of the hearing. The building official is authorized to conduct hearings for the purpose of making findings of fact to assist him in making his decision.

(5) A written decision to cancel or suspend a certificate of registration or city license shall be required and list the reasons for the building official's decision. This written decision shall be forwarded to the registered contractor by certified mail, return receipt requested to the registered contractor's last known address. This mailing may be waived provided that the registered contractor signs and acknowledges receipt of the written decision from the building official. The registered contractor shall then have twenty-one (21) days from receipt of this notice to appeal the building official's decision to the building-related and fire codes board of appeals. The decision of the building official shall be final after expiration of this time.

(6) *Board appellate process.*

a. A registered or city licensed contractor shall have the right to appeal the building official's decision in accordance with section 10-14 of this chapter.

b. A perfected appeal tolls the building official's decision to suspend or cancel the registration until the board renders its decision.

c. Neither the board nor the building official shall have any authority to suspend a registration for longer than one hundred eighty (180) days.

d. A cancellation shall prevent the registered contractor from pulling new permits for a period of at least one (1) year. For purposes of this section, a cancellation of a registration does not alleviate the registered contractor from performing current obligations or absolve them from liability under a contract. If approved by the building official, the registered contractor may perform currently permitted obligations while cancelled, the contractor shall not be subject to penalty for being unregistered. All other code provi-

sions are applicable. Upon the expiration of a one-year period, a contractor may apply for a new certificate of registration. No provision of this section shall be interpreted to mean that a new certificate of registration will be issued after a prior certificate of registration has been cancelled. A denied applicant for a new certificate of registration is required to wait one year before applying again. There shall be no limit on the number of times a denied applicant may reapply.

e. A suspension shall prevent the registered contractor from pulling new permits in the city for the suspension time period. A suspension of registration does not alleviate the registered contractor from performing currently permitted obligations under the registered contract. If approved by the building official, the contractor shall not be subject to penalty for operating while suspended when performing currently permitted obligations. However, all other code provisions apply. The board's decision to affirm or affirm as modified a suspension of a registration means that the suspension time begins the following working day.

(l) *Violations under this section.* The following list shall constitute a non-exclusive list of violations under this section. It is unlawful for any registered contractor to:

(1) Display or cause a permit to be displayed or to have in one's possession any instrument purporting to be a registration, city license, or state registration for doing any construction work, knowing it to be fictitious or to have been canceled, suspended or altered;

(2) Lend or permit the use of any registration for doing any construction work to any person not entitled to it;

(3) Allow any person to display or to represent as one's own city registration, city license or state license for any construction work when the registration, city license or state license has not been lawfully issued to the person displaying it;

(4) To fail or refuse to surrender to the building official on demand any registration or city license for the doing of any mechanical, electrical, plumbing or building work, which has been suspended, canceled or revoked as provided for in this chapter;

(5) To apply for or have in one's possession more than one current registration or city license of the same type provided for in this chapter;

(6) Use a false or fictitious name or address in any application for any registration or permit provided for in this chapter or any renewal or make a false statement or conceal a material fact or otherwise commit fraud in making any application;

(7) Perform any contractor work for which a registration, city license or state license is required without having the registration, city license or state license or while the registration, city license or state license is suspended, expired or canceled;

(8) Perform any work for which a permit is required without having the permit or after the permit has been canceled;

(9) Fail or refuse to make the necessary repair or changes for code violations as provided in a written notice issued by the building official. A reasonable amount of time shall be granted in the written notice taking into consideration the work to be completed and the circumstances. A separate violation is deemed to be committed each day after the expiration of the time for correction provided in the notice until the work is corrected;

(10) Permit any construction work covered by this section to be performed by any person not properly registered, while in control of premises covered by this section;

(11) Remove, break, change, destroy, tear, mutilate, cover or otherwise deface or injure any official notice or seal posted by the building official;

(12) Place or leave the property in such condition that it injures or endangers persons or property authorized to be on the construction site.

(Ord. No. 2025-01-30-0075, § 1(Att. 1), 1-30-25)

Sec. 10-117. Irrigation systems and irrigators.

(a) *License required.* An irrigation contractor is required to hold a license issued under V.T.C.A., Water Code Ch. 37 and V.T.C.A., Occupations Code § 1903.251.

(b) *Registration.*

(1) All irrigation contractors, prior to doing any irrigation system installation in the territorial limits or extraterritorial jurisdiction (ETJ) of the city shall be required to be registered with the development services department of the city per sections 10-116 and 10-117.

(2) An irrigation contractor's registration must be submitted on forms available from the development services department and shall include the following information:

a. The irrigation contractor's full name;

b. The irrigation contractor's license number;

c. The irrigation contractor's business name;

d. The irrigation contractor's business address;

e. The irrigation contractor's business telephone number; and

f. The irrigation contractor's telefax number.

(3) The irrigation contractor shall provide a certificate of insurance by an insurance company authorized in the state certifying that the irrigation contractor is insured to the limit of at least:

a. Three hundred thousand dollars ($300,000.00) public liability per occurrence; and

b. Three hundred thousand dollars ($300,000.00) property liability per occurrence and product/completed operations. In lieu of insurance, the irrigation contractor may provide a bond in the amount of ten thousand dollars ($10,000.00) conditioned that the irrigation contractor shall faithfully observe all applicable laws.

(4) The irrigation contractor shall renew registration annually upon submission of the registration form and payment of the fee.

(5) A licensed plumber may be issued an irrigation permit.

(c) *Permits and inspections.* All irrigation contractors, prior to doing any irrigation system installation in the territorial limits or extraterritorial jurisdiction (ETJ) of the city shall apply and be issued permits from the development services department on forms provided by said department. The irrigation system shall be installed in accordance with the following:

(1) City Code of San Antonio, Texas;

(2) Local Government Code;

(3) Texas Water Code;

(4) Texas Occupations Code; and

(5) Texas Commission on Environmental Quality (TCEQ).

The irrigation system shall be inspected prior to covering the sprinkler heads as requested by the installer. Any defects in the installation determined during the inspection shall be corrected before the inspection is considered approved. If the irrigation system is being constructed as part of the building permit, a certificate of occupancy shall not be issued until all inspections have been approved.

(d) *Minimum standards and specifications.* V.T.C.A., Occupations Code § 1903.053 entitled "Standards" and the rules adopted by the Texas Commission on Environmental Quality (TCEQ) Page 1 Chapter 344 - Landscape Irrigation Rule Project No. 2007-027-344-CE are hereby incorporated by reference as minimum standards and specifications for the design, installation, and the operation of irrigation systems.

(e) *Violations and enforcement.*

(1) It shall be a violation to install an irrigation system in the city without first obtaining an irrigation system permit from the development services department. Any violation of this article shall be a Class C misdemeanor punishable by a fine not to exceed five hundred dollars ($500.00) per violation. Each day or portion thereof during which a violation of any of the provisions of this article is committed shall constitute a separate offense. A fine or criminal penalty prescribed by this section does not apply to a violation in the ETJ.

(2) *Civil enforcement.*

a. The city may seek civil enforcement against such violators in the corporate limits of the city and in the ETJ. Enforcement in the ETJ is authorized pursuant to and under the authority granted by V.T.C.A., Local Government Code §§ 212.001 et seq.

b. Any person who commits a violation under this article shall be subject to a civil penalty of up to one thousand dollars ($1,000.00) per violation per day.

(f) *Fee schedule.* Irrigation related fees shall be as set forth in the city fee schedule.
(Ord. No. 2025-01-30-0075, § 1(Att. 1), 1-30-25)

Sec. 10-118. State licensed responsible master plumber registration.

(a) *License.* Before any person shall engage in the business of plumbing within the city, said person shall have a current responsible master plumber's license obtained from the state board of plumbing examiners and the required insurance. The state license shall be registered with the city by submitting the appropriate registration as required by the city and sections 10-116 and 10-118.

(b) *Insurance required.* Per state law, a political subdivision that requires a responsible master plumber or an agent of a responsible master plumber to obtain a permit before performing plumbing in the political subdivision shall verify through the board's internet website, or by contacting the board by telephone, that the responsible master plumber has on file with the board a certificate of insurance.

(c) *Enforcement.* Each locally designated plumbing inspector shall enforce the state board licensing law and board rules and municipal ordinances and should file complaints with the board and with local prosecutors. (V.T.C.A., Occupations Code Ch. 1301, 22 Texas Administrative Code Chapters 361, 363, 365, and 367.)

(d) *Requirements for plumbing companies and responsible mater plumbers.* Every responsible master plumber doing plumbing work in the city shall abide by the state board licensing law and board rules and municipal ordinances. (V.T.C.A. Occupations Code, Ch. 1301, 22 Texas Administrative Code Chapters 361, 365, and 367.)
(Ord. No. 2025-01-30-0075, § 1(Att. 1), 1-30-25)

Sec. 10-119. Demolition contractor registration.

(a) *Registration.* It shall be unlawful for any person to maintain, own or operate a demolition contracting business, unless a registration issued by the building official is first obtained as provided herein per sections 10-116 and 10-119.

Exceptions:

(1) A person who demolishes fences six (6) feet or less in height, playground equipment, above ground swimming pools, sidewalks or driveways, decks, oil derricks, shade cloth structures, or mechanical equipment, residential or commercial

sheds less than three hundred (300) square feet and similar accessory structures.

(2) A property owner may demolish single story residential structures if the demolition is to be performed by the property owner with proof of ownership.

(b) *Demolition registration, insurance required, and bond.*

(1) *Registration.* It shall be a violation of this chapter for a person who does not hold a current city registration to engage in the demolition work for which a permit is required, or to undertake to execute such work or to cause the undertaking of such work.

(2) *Misrepresentation.* It shall be a violation of this chapter for any person to represent themselves with any registration set forth in this Code or to use the words "demolition contractor," or words of similar import or meaning on signs, business cards, stationery, or by any other manner whatsoever, unless such person is properly registered within the meaning of the word used as provided in this chapter.

(3) *General liability and insurance.*

a. A registered demolition contractor shall furnish and present the name of the insurance carrier, policy number, name, address, and telephone number of the insurance agent with whom the contractor is insured to the building official or to any customer upon request.

b. City registered demolition contractors must maintain insurance of the following types and amounts:

1. Automobile liability insurance with limits of personal injury one hundred thousand dollars ($100,000.00) each person, three hundred thousand dollars ($300,000.00) each accident, property damage fifty thousand dollars ($50,000.00) each accident.

2. Public liability (bodily injury) insurance with limits not less than three hundred thousand dollars ($300,000.00) for each occurrence.

3. Public liability (property damage) insurance with limits of not less than one hundred thousand dollars ($100,000.00) for each accident and two hundred thousand dollars ($200,000.00) in the aggregate.

c. The policy shall:

1. Include the hazards of explosion and collapse coverage.

2. Provide that the same shall not be cancelled until a ten-day or non-renewal has been served upon the city development services department.

3. The City of San Antonio must be listed as certificate holder on the certificate of liability insurance.

4. Applicant shall file with the building official certificates of insurance executed by the insurance carrier issuing said policies certifying that said insurance is in full force and effect and that the demolition operations are covered by such policies.

(4) *Indemnity bond.* Before such permit shall be issued, the person, firm, association or corporation applying therefore shall execute and deliver to the city, to be kept on file in the city clerk's office, a good and sufficient bond of indemnity, issued by a surety company licensed to do business in the state, in the sum of five thousand dollars ($5,000.00) to be approved by the city attorney and conditioned that the person, firm, association or corporation making such application shall promptly pay in and unto the city any and all costs, damages and expenses which said city may incur or suffer, including, but not

limited to, damages to streets, sidewalks, utilities, or other public places by reason of carelessness or negligence in the performance of such demolition, or by reason of any defects caused from or arising from careless, negligent or imperfect demolition procedures, or any and all acts and omissions of said applicant, his agents, servants, or subcontractors.

(c) *Responsibilities.* A registered demolition contractor shall be responsible for exercising such supervision and control of his operations as is necessary to secure full compliance with the provisions of the adopted city requirements and all other applicable laws of the city, state and United States.

(d) *Penalties.* It shall be unlawful for any person to demolish any building or structure in the city or cause the same to be done, contrary to or in violation of any of the provisions of this Code or any currently adopted building code. Any person, firm or corporation violating any of these provisions shall be deemed guilty of a separate offense for each day or portion thereof during which any violation is committed, continued, or permitted, and each separate violation shall be punishable by a fine not to exceed five hundred dollars ($500.00).

(e) *Application procedures; requirements.*

(1) An applicant for an original registration or renewal must submit an application to the building official on a form established by the department.

(2) The building official shall have the right to investigate and examine the qualifications and fitness of an applicant.

(3) A person may not be issued a registration unless the person:

a. Is at least eighteen (18) years of age; and

b. Is a United States citizen or a lawfully admitted alien.

(f) *Duties and powers of building official.*

(1) There is hereby vested in the building official the duty of examining the applications for contractor registrations, including the issuance, reissuance, renewal, suspension, or cancellation of such registration.

(2) The building official shall establish procedures consistent with this Code for the issuance of registration for demolition contractors.

(3) The building official shall have the duty to keep all registration application records. The building official shall further have the power and duty to adopt, amend, or repeal rules and regulations consistent with the provisions of this section as may be necessary for the proper administration and enforcement hereof.

(g) *Appealing a denial of registration.*

(1) *Appeal to board.* If either an original or renewal registration is denied, the building official shall furnish the applicant a written statement setting forth the grounds for the refusal within ten (10) working days. Such statement shall be by certified mail, return receipt requested, to the mailing address provided in the application unless the applicant is present to receive and acknowledge in writing receipt of such letter. The applicant or their representative shall then have fifteen (15) working days from receipt of notice to appeal the building official's decision in accordance with section 10-14 of this chapter.

(2) Nothing in this section shall be interpreted as to deny a subsequent application at the expiration of one (1) year from denial of initial registration.

(h) *Fees and registration period.* The application fee for contractor registration shall be as set forth in this section.

(1) An initial registration fee of eighty five dollars ($85.00) is required and said registration shall be valid for a period of two (2) years. The registration holder shall be required to re-register every two-year period of time and pay a fee of

thirty-five dollars ($35.00) for each two-year period of time to maintain registration.

(i) *Demolition permit; in general.*

(1) No person, firm, association, or corporation shall demolish any building or structure in the city, or cause the same to be done, without first obtaining a demolition permit for each such building or structure authorized by the city.

(2) Every demolition permit shall be valid during the time outlined in the permit. If demolition is not complete, the director of development services may extend the permit upon request of the applicant.

(j) *Application requirements.*

(1) Applications for demolition permits shall require the following information:

a. Name and address of demolition contractor.

b. Name and address of building and property owners including a notarized letter authorizing demolition of building or structure.

c. Except for single-family residence and other single-story buildings where it is not possible for debris to fall on public walkways or thoroughfares, the building official shall require an engineering report, prepared by a qualified registered professional engineer, of the building or structure to be demolished so as to determine the condition of the framing, floors and walls copy of which is to be filed with the building official.

d. The demolition contractor shall be required to prepare a complete plan and schedule for demolition to be filed with the building official. Should the plan and schedule be changed at any time, the changes must be approved by the building official and a copy of such changes must be filed with the building official.

e. The location site of the disposal of debris and the proposed route to be used to disposal site.

f. Applicant shall submit the current demolition registration number and bond materials of the demolition contractor who has been hired to perform the work. All demolition contractors, as defined in this chapter, shall be registered and bonded. Any substitution of contractor listed in the application shall be reported to the building official with appropriate registration and bonding materials. A failure to notify the building official shall result in administrative and/or criminal and/or civil penalties. It shall be an affirmative defense to prosecution that substitute contractor was registered and bonded at the time.

g. Supplemental materials as prescribed by the building official.

(k) *Miscellaneous provisions.*

(1) No structural or load-supporting members, which would affect the stability of the structure, shall be cut, or removed from any story until all construction materials above such a story have been completely demolished and removed.

(2) No material shall be dropped to any point outside the exterior walls of the structure except in enclosed chutes.

(3) In masonry construction, the demolition of exterior walls and floor construction shall be removed and dropped into the storage space before commencing the removal of exterior walls and floor in the story below.

(4) In buildings with a structural steel frame member type construction, the steel framing may be left in place during the demolition of masonry. Where this is done, all steel beams girders and similar

structural supports shall be cleared of all loose material as the masonry demolition progresses downward.

(5) No wall, chimney or other structural part shall be left at the end of each shift in such condition that it may collapse due to wind, vibration, or any other cause.

(6) Upon the completion of demolition operations, the site shall be completely cleared of rubbish, brush, weeds, and other debris. The site must be left free of ponds and underground tanks shall be removed. Basement slabs shall be broken up to allow drainage and septic tanks, wells, cesspools, and cisterns shall be broken open and filled in.

(7) Security service during non-working hours shall be provided by the contractor.

(8) Where shown to be necessary in the plan for demolition, the city shall coordinate and approve the blocking of walkways, thoroughfares, and alleys to protect the public.

(9) The city council may issue a permit for selective use of explosives for demolition purposes if the contractor has complied with all of the conditions of this chapter and if the plan for selective demolition by the use of explosives is conducted in accordance with §§ 1926.900—1926.914 inclusive of Subpart "U" of the Rules and Regulations of the Occupational Safety and Health Administration of the Department of Labor, 29 CFR, part 1926, subpart U.

(l) *Demolition fee schedule.*

Demolition Registration Fees	
Demolition Contractor	
Initial—City Registration/2-year registration	$85.00
Renewal—City Registration/2-year renewal	$35.00
Duplicate—City Registration Card (plus tax)	$5.00
Demolition Permit Fees	
Residential	$75.00
Commercial	
Single-story	$100.00
2—3 stories	$200.00
>3 stories	$650.00

(Ord. No. 2025-01-30-0075, § 1(Att. 1), 1-30-25)

Sec. 10-120. Registered house mover.

(a) *Registration.* It shall be unlawful for any person to maintain, own or operate a house moving contracting business, unless a registration issued by the building official is first obtained as provided herein sections 10-116 and 10-120.

(b) *House mover registration, insurance, security, and bond required.*

(1) *Compliance with section.* No person except a licensed house mover, shall move any building or structure over, across or along any street, public way, or public place within the city except as specifically provided in this article.

Exception: Nothing contained in this article shall require a license or bond for the movement of oversized equipment, or buildings or structures of a temporary nature, when such equipment, building, or structures are within the legal road limit as required by the state statutes; nor shall bond and license be required of one passing through the city enroute between two (2) other incorporated cities, except those cities in the county.

(2) *General liability and insurance.*

a. A registered house moving contractor shall furnish and present the name of the insurance carrier, policy number, name, address, and telephone number of the insurance agent with whom the contractor is insured to the building official or to any customer upon request.

b. City registered house moving contractors must maintain insurance of the following types and amounts:

1. Ten thousand dollars ($10,000.00) for each person

for bodily injury, twenty thousand dollars ($20,000.00) for bodily injury liability for each accident, and five thousand dollars ($5,000.00) for property damage liability for each accident.

2. Comprehensive general liability specifically including coverages for hazards of explosion and collapse in the amount of three hundred thousand dollars. ($300,000.00).

c. The policy shall:

1. Provide that the same shall not be cancelled until a ten-day or non-renewal has been served upon the city.

2. The City of San Antonio must be listed as certificate holder on the certificate of liability insurance.

3. Applicant shall file with the building official certificates of insurance executed by the insurance carrier issuing said policies certifying that said insurance is in full force and effect and that the moving operations are covered by such policies.

(3) *Bond.* Before a house mover's license is issued, the applicant shall file with the building official a surety bond in the amount of two thousand dollars ($2,000.00), saving and protecting the city harmless from any and all damages and to pay for any and all damages to public property, that may arise from the use of any of the streets, alleys, boulevards, or other public places in the moving of any building or structure. Such bond shall contain a provision for a ten-day written notice to the city of cancellation by the surety.

(c) *Responsibilities.* A registered house moving contractor shall be responsible for exercising such supervision and control of his operations as is necessary to secure full compliance with the provisions of the adopted city requirements and all other applicable laws of the city, state, and United States.

(d) *Penalties.* It shall be unlawful for any person to move any building or structure in the city or cause the same to be done, contrary to or in violation of any of the provisions of this Code or any currently adopted city or state laws. Any person, firm or corporation violating any of these provisions shall be deemed guilty of a separate offense for each day or portion thereof during which any violation is committed, continued, or permitted, and each separate violation shall be punishable by a fine not to exceed five hundred dollars ($500.00).

(e) *Application procedures; requirements.*

(1) An applicant for an original registration or renewal must submit an application to the building official on a form established by the department.

(2) The building official shall have the right to investigate and examine the qualifications and fitness of an applicant.

(3) A person may not be issued a registration unless the person:

a. Is at least eighteen (18) years of age; and

b. Is a United citizen or a lawfully admitted alien.

(f) *Duties and powers of building official.*

(1) There is hereby vested in the building official the duty of examining the applications for contractor registrations, including the issuance, reissuance, renewal, suspension, or cancellation of such registration.

(2) The building official shall establish procedures consistent with this Code for the issuance of registration for demolition contractors.

(3) The building official shall have the duty to keep all registration application records. The building official shall further have the power and duty to adopt, amend, or

repeal rules and regulations consistent with the provisions of this section as may be necessary for the proper administration and enforcement hereof.

(g) *Appealing a denial of registration.*

(1) *Appeal to board.* If either an original or renewal registration is denied, the building official shall furnish the applicant a written statement setting forth the grounds for the refusal within ten (10) working days. Such statement shall be by certified mail, return receipt requested, to the mailing address provided in the application unless the applicant is present to receive and acknowledge in writing receipt of such letter. The applicant or their representative shall then have fifteen (15) working days from receipt of notice to appeal the building official's decision in accordance with section 10-14 of this chapter.

(2) Nothing in this section shall be interpreted as to deny a subsequent application at the expiration of one (1) year from denial of initial registration.

(h) *Fees and registration period.* The application fee for contractor registration shall be as set forth in this section.

(1) An initial registration fee of one hundred and twenty dollars ($120.00) is required and said registration shall be valid for a period of two (2) years. The registration holder shall be required to re-register every two-year period of time and pay a fee of one hundred and twenty dollars ($120.00) for each two-year period of time to maintain registration.

(2) The moving of any building or structure over, across or along any street, public way, or public place within will commence only after a permit has been issued by the building official. Permit fees are outlined in fee schedule section 10-31.

(i) *House moving permit; general.*

(1) No person, firm, association or corporation shall move building or structure in the city, or cause the same to be done, without first obtaining a permit for each such building or structure authorized by the city.

(2) Every house moving permit shall be valid during the time outlined in the permit. The director of development services may extend the permit upon request of the applicant.

(3) No person shall move any building or structure over, across, or along any street, public way, or public place within the city until a permit for such work has been issued as provided in this section.

(4) A registered house mover shall in each case before moving or preparing to move any building or structure, apply to the director of development services by written application for a permit to do so, in which application the building or structure to be moved shall be described with the extreme dimensions of its width, length and height, present location, the place to which it is proposed to be moved, and the location, on the lot at the destination.

(5) Before application for permit is made, the house mover shall notify the public utilities, railroads, and other persons whose facilities are involved in such movement.

(6) Before application for permit is made, the house mover shall notify the police department, fire department and public works department, and shall obtain proper clearance from each of these departments in writing. This clearance shall specify the day of the week, hour of the day, the moving is to take place. The route to be taken shall be at the discretion of the police department and public works department.

(7) *Warning devices.* If it becomes temporarily necessary to leave the building on public property, there shall be placed around the building or structure, and all equipment, red lanterns, flares, or other warning devices. No building or structure

under any condition shall be allowed to remain in or on the streets, public ways, or public places for more than twenty-four (24) hours except weekends. Any building or structure which occupies or moves along or across any portion of public property after sundown shall have sufficient lights and flares continually burning for the protection of the public.

(8) *Escort.* No person shall move a building or structure across or along any street, public way or public place within the city unless accompanied or escorted by at least one (1) police officer that has been retained by the person for such service.

(Ord. No. 2025-01-30-0075, § 1(Att. 1), 1-30-25)

Secs. 10-121—10-129. Reserved.

ARTICLE XIV. SIGNS AND BILLBOARDS

Sec. 10-130. Signs and billboards.

See chapter 28 of this Code and articles I, II, III and XIII of this chapter.

(Ord. No. 2025-01-30-0075, § 1(Att. 1), 1-30-25)

Chapter 11

FIRE PREVENTION*

Article I. In General

Sec. 11-1. Unlawful acts; penalties; remedies.
Sec. 11-2. Notice required to fire department (detention facility).
Secs. 11-3—11-15. Reserved.

Article II. Fire Department

Sec. 11-16. Fees for certain permits and services.
Sec. 11-17. Fee for firefighting unit on stand-by basis.
Sec. 11-18. Fee for videotape of arson evidence record.
Sec. 11-19. Fee for duplicating dispatch tapes.
Sec. 11-20. Fees for use of San Antonio Fire Department Training Academy by outside agencies.
Sec. 11-21. Annual private ambulance company franchise fee.
Sec. 11-22. After-hour fire plan review fee.
Sec. 11-23. Watercraft rescue fee.
Sec. 11-24. Fire systems plan review fee.
Secs. 11-25—11-30. Reserved.

Article III. Fire Prevention Code

Sec. 11-31. Reserved.
Sec. 11-32. Adoption of the International Fire Code.
Sec. 11-33. Definitions.
Sec. 11-34. Enforcement.
Sec. 11-35. Storage of flammable or combustible liquids in outside above-ground tanks prohibited.
Sec. 11-36. Establishments of limits in which gasoline service stations are to be restricted.
Sec. 11-37. Establishment of limits in which bulk storage of liquefied petroleum gas is to be restricted.
Sec. 11-38. Establishment of limits of districts in which storage of explosives and blasting agents is prohibited.
Sec. 11-39. Reporting violations.
Sec. 11-40. Amendments Made to the 2024 International Fire Code.
Secs. 11-41—11-55. Reserved.

Article IV. Fireworks

Sec. 11-56. Use, shoot, discharge, etc., prohibited.
Sec. 11-57. Display permits.
Sec. 11-58. Amusement parks utilizing permanent facilities for repeated public fireworks displays.
Sec. 11-59. Storage of fireworks.
Secs. 11-60—11-70. Reserved.

***Charter references—**Power to prevent nuisances, § 3, Par 13; power to establish fire zones, § 3, Par. 13.

Cross references—Fire safety, § 3-113 et seq.; dangerous buildings, § 6-156 et seq.; building-related codes, § 10-1 et seq.; alarm systems, § 25-56 et seq.

State law reference—Fire prevention powers of city, Vernon's Ann. Civ. St. arts. 1175(25), (34), 1011.

Article V. Emergency Medical Services

Sec. 11-71. EMS incident report search fee.
Sec. 11-72. EMS stand-by fee.
Sec. 11-73. Bicycle paramedic stand-by fee.

ARTICLE I. IN GENERAL

Sec. 11-1. Unlawful acts; penalties; remedies.

(a) It shall be unlawful to do any act prohibited hereby and it shall be unlawful to fail to do or perform any act required hereby.

(b) Any person, firm, corporation or agent or employee thereof, upon conviction of a violation of any of the provisions of this chapter shall be guilty of a Class C misdemeanor, and fined an amount not less than one hundred dollars ($100.00) and not more than two thousand dollars ($2,000.00) provided, however, in the event a defendant has once previously been convicted under this chapter, the defendant shall be fined an amount no less than two hundred dollars ($200.00) and shall be fined no less than three hundred dollars ($300.00) for a third conviction and for each conviction thereafter. Each day a violation is permitted to exist shall constitute a separate offense.

(c) Nothing in this section shall limit the remedies available to the city in seeking to enforce the provisions of this chapter.
(Ord. No. 64489, 5, 2-5-87; Ord. No. 79918, § 2, 3-31-94)

Sec. 11-2. Notice required to fire department (detention facility).

Pursuant to authority granted to the fire chief in chapter 11 of the city code and under the city charter, the fire chief, through the development services department or other member of the fire department, as authorized by the fire chief and city manager, shall be notified by (1) the owner, (2) owner's representative, or (3) any contractor at least thirty (30) days prior to commencing any work to renovate, construct, or operate detention facilities within the City of San Antonio city limits. Detention facilities under this section shall have the same definition as under chapter 35 (Unified Development Code).
(Ord. No. 2026-04-16-0257, § 5, 4-16-26)

Secs. 11-3—11-15. Reserved.

ARTICLE II. FIRE DEPARTMENT*

Sec. 11-16. Fees for certain permits and services.

(a) The following fees are hereby established for obtaining certain permits from the fire prevention division of the fire department.

(1)	Blaster permit:		
	a.	Initial	$220.00
	b.	Renewal	150.00
(2)	Explosive handler's permit, per year		100.00
(3)	Quarry blasting permit, per year		500.00
(4)	Explosive storage permit, per year		200.00
(5)	Duplicate permits		25.00
(6)	Burning permits, per seven (7) days		225.00
(7)	LPG/CNG/LNG tanks:		
	First tank on permit		200.00
	Each additional tank		100.00
(8)	Aboveground temporary flammable liquid storage tank permits:		
	a.	Thirty (30) days	100.00
	b.	One hundred eighty (180) days	100.00
	c.	One (1) year	200.00
(9)	Hazardous chemical tank, per ninety (90) days		100.00
(10)	Fixed pipe automatic extinguishing systems in hoods and ducts, per system		150.00
(11)	Explosive site permit:		
	a.	Utilities, per ninety (90) days	200.00
	b.	Excavation, per thirty (30) days	200.00

*__Charter reference—__Creation of fire department, § 50, chief of the fire department, § 59.

c. Swimming pools and septics, per thirty (30) days 150.00

(12) a. Sprinkler system permit. A sprinkler system permit fee shall be assessed for reviewing plans, inspecting, and hydrostatic testing of sprinkler systems. The fee will be assessed according to the following schedule: one hundred and fifty dollars ($150.00) for any system with one (1) to twenty (20) heads; two hundred dollars ($200.00) for any system with twenty-one (21) to two hundred (200) heads; two hundred dollars ($200.00) for the first two hundred (200) heads plus seventy-five cents ($0.75) for each additional head with a maximum fee of two thousand dollars ($2,000.00) per floor. In addition, if the sprinkler system is located on more than one (1) floor, the fee will also include a charge of fifty dollars ($50.00) for each additional floor. (Basements or underground levels are considered floors for purposes of this fee.)

b. Major sprinkler system work permit. A major sprinkler system work permit fee of one hundred dollars ($100.00) shall be assessed for major sprinkler system related work not involving sprinkler head modifications. The Fire Chief or his designee shall make the final determination of whether a system modification constitutes major sprinkler system related work; however, the following modifications shall always constitute major work: installation of a fire pump, underground fire main, riser, supply main, cross main or any other change that could significantly affect the hydraulic characteristics of the system.

c. Sprinkler system remodel permit. If a modification of an existing sprinkler system is planned in a building (or an area of a building), a sprinkler system remodel permit fee shall be required prior to start of construction and a fee assessed according to the following schedule: one hundred-fifty dollars ($150.00) for one (1) to twenty (20) head modifications; two hundred dollars ($200.00) for twenty-one (21) to two hundred (200) head modifications; two hundred dollars ($200.00) for the first two hundred (200) heads plus seventy-five cents ($0.75) per head for each additional head modification with a maximum fee of two thousand dollars ($2,000.00) per floor. If the modification of the sprinkler system is located on more than one (1) floor, the fee will also include a charge of fifty dollars ($50.00) for each additional floor. (Basements or underground levels are considered floors for purposes of this fee.)

d. Underground fire line. A fee of two hundred dollars ($200.00) shall be assessed for testing and approving an installed underground fire line.

e. Standpipes. A fee of two hundred dollars ($200.00) for the first standpipe and one hundred and twenty-five dollars ($125.00) thereafter shall be assessed for testing and approving installed standpipes.

f. Hydrants. A fee of two hundred dollars ($200.00) for the first hydrant and one hundred and twenty-five dollars ($125.00) thereafter shall be assessed for testing and approving installed hydrants.

g. Fast track sprinkler system permit (45-day expiration with no renewal unless approved by the fire marshal or his/her designee): One hundred dollars ($100.00).

h. Visual inspections. A fee of one hundred twenty five dollars ($125.00) shall be assessed for visual inspec-

tions of underground fire lines or sprinkler systems and components not in conjunction with a hydrostatic test.

(13) a. Fire alarm system permit. A fee shall be assessed for reviewing plans, inspecting and testing of fire alarm systems. The fee shall be assessed based on the following schedule: One hundred and fifty dollars ($150.00) for any system with one (1) to twenty (20) initiating or signaling devices; two hundred dollars ($200.00) for any system with twenty-one (21) to two hundred (200) devices; two hundred dollars ($200.00) for the first two hundred (200) devices plus seventy-five cents ($0.75) for each additional device with a maximum fee of two thousand dollars ($2,000.00) per

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floor. In addition, if the fire alarm is located on more than one (1) floor, the fee will also include a charge of fifty dollars ($50.00) for each additional floor. (Basements or underground levels are considered floors for purposes of this fee.)

The permit fee for major fire alarm system work not involving modification of initiating and/or signaling devices is one hundred fifty dollars ($150.00). The fire marshal or their designee shall make the final determination of whether a system modification constitutes major fire alarm system related work; however, the following modifications shall always constitute major work: installations of a fire alarm panel, or any other significant modification of the system.

b. Fire alarm remodel permit. If a modification of an existing fire alarm system is planned in a building (or area of a building), then a fire alarm system remodel permit shall be required prior to start of construction and a fee assessed according to the following schedule: One hundred and fifty dollars ($150.00) for one (1) to twenty (20) device modifications; two hundred dollars ($200.00) for any system with twenty-one (21) to two hundred (200) device modifications; two hundred dollars ($200.00) for the first two hundred (200) devices plus seventy-five cents ($0.75) for each additional device modification with a maximum fee of two thousand dollars ($2,000.00) per floor. If the modification of the fire alarm system is located on more than one (1) floor, the fee will also include a charge of fifty dollars ($50.00) for each additional floor. (Basements or underground levels are considered floors for purposes of this fee.)

c. Fire alarm panel replacement permit. The initial permit fee shall be one hundred fifty dollars ($150.00) and include up to twenty (20) devices. Two hundred dollars ($200.00) shall be charged for an initial permit and include between twenty-one and two hundred (21—200) devices. Two hundred dollars ($200.00) shall be charged for an initial permit plus seventy-five cents ($0.75) per device exceeding two hundred (200) up to a maximum of two thousand dollars ($2,000.00) per floor. An additional fee of fifty dollars ($50.00) per floor for each floor (beyond the floor of work) affected by the panel replacement is required.

d. Fire alarm fast track permit. A fee of one hundred dollars ($100.00) is required to begin work prior to plan review. The permit shall have a 45-day expiration, with no renewal, unless approved by the fire marshal or his/her designee.

(14) Float and food booth permit:

a. Per day, if prepaid: Thirty-five dollars ($35.00), plus the technology fee provided for in section 21-161 of this Code.

b. Per day, if collected on site: Forty-five dollars ($45.00), which includes the technology fee provided for in section 21-161 of this Code.

(15) Bonfire permit, per event: Two hundred sixty-four dollars and fifty cents ($264.50), plus the fire watch fees provided for in subsection 11-16(k)(2) of this Code.

(16) Fireworks:

a. Fireworks (large or 1.3G) display permit. Per event: Two hundred sixty-four dollars and fifty cents ($264.50), plus the fire watch fees provided for in subsection 11-16(k)(2) of this Code.

b. Pyrotechnics (small, 1.4G or pyrotechnics special effects) display permit.

1. Per day: One hundred fifty dollars ($150.00), plus the fire

watch fees provided for in subsection 11-16(k)(2) of this Code.

2. Maximum, per event: Four hundred fifty dollars ($450.00), plus the fire watch fees provided for in subsection 11-16(k)(2) of this Code.

c. Flame effect (proximate audience) display permit.

1. Per day: One hundred fifty dollars ($150.00), plus the fire watch fees provided for in subsection 11-16(k)(2) of this Code.

2. Maximum, per event: Four hundred fifty dollars ($450.00), plus the fire watch fees provided for in subsection 11-16(k)(2) of this Code.

(17) Amusement parks:

a. Annual fireworks/ pyrotechnics display . . 484.00

b. Pyrotechnics display . . 242.00

(18) Amusement park fireworks annual storage permit 121.00

(19) Waste oil and class III B combustible liquid tank permit 150.00

A permit fee of one hundred and fifty dollars ($150.00) for each waste oil and class IIIB combustible liquid tank is hereby established for the review of plans and inspection of the installation of the waste oil or class IIIB combustible liquid tank.

(20) Special event inspection fee:

For plan review and inspections involving floor plans greater than five thousand (5,000) square feet but less than or equal to fifteen thousand (15,000) square feet 275.00

For plan review and inspections involving floor plans exceeding fifteen thousand (15,000) square feet. 425.00

(21) Annual night club operational permit fee. An annual fee for a night club operational permit is hereby established according to the following schedule: one hundred seventy five dollars ($175.00) for night clubs with an occupant load of less than three hundred (300), and two hundred seventy five dollars ($275.00) for night clubs with an occupant load of three hundred (300) or more.

(22) Permit extension fee. A permit extension fee of one half of the amount of the original permit fee is required for the extension of a valid construction-related permit (sprinkler, fire alarm, fixed extinguishing systems, etc.) for a period of no more than one hundred eighty (180) days.

(23) Mobile food establishment annual inspection fee. Three hundred dollars ($300.00).

(b) The fee for tracing flammable liquid leaks to the source by the fire prevention division of the fire department is hereby established at two hundred dollars ($200.00).

(c) (1) A reinspection fee of one hundred fifty dollars ($150.00) shall be assessed for each inspection or reinspection, to include Failed and Phased Pass inspections, when work for which an inspection or reinspection is requested is not approved. A reinspection fee may also be assessed when the permit is not properly posted on the work site, when the approved plans are not readily available to the inspector, when access is not provided on the date for which inspection is requested or for noncompliance with approved plans, requiring reinspection and approval of the fire official. All reinspection fees shall be paid before final release of public utilities and issuance of the certificate of occupancy.

(2) Minor re-inspection fee 35.00

(3) General inspection fee 75.00

(d) A fee of two hundred dollars ($200.00) for test and thirty dollars ($30.00) per subsequent test shall be assessed for testing required smoke control systems.

(e) Preliminary review of plans. The following fee schedule is hereby established for preliminary review of plans by the fire department: A minimum fee of seventy five dollars ($75.00) per hour, one hour minimum) for the review of plans prior to submission for approval shall be assessed for the first hour the fire department is involved in the review to be paid prior to the review; For each additional hour or portion thereof, there shall be an additional minimum charge of seventy five dollars ($75.00). Incurred fees not prepaid must be paid prior to issuance of the building permit.

(f) A fee of two hundred fifty dollars ($250.00) per system for plan review, testing, and approving an installed gaseous suppression system, such as halon, and carbon dioxide.

(g) Fees for state required annual inspections:

(1) a. State required annual inspections of any child daycare facility licensed to serve twelve (12) children or less that requires certification or approval by the fire marshal's office shall be assessed a fee of fifty dollars ($50.00) which shall be remitted at the fire marshal's office prior to the required inspection.

b. State required annual inspections of foster homes, half-way houses, group care homes or similar short-term placement occupancies that require certification or approval by the fire marshal's office shall be assessed a fee of one hundred dollars ($100.00) which shall be remitted at the fire marshal's office prior to the required inspection.

c. State required annual inspections of any child daycare facility licensed to serve more than twelve (12) children that requires certification or approval by the fire marshal's office shall be assessed a fee of one hundred dollars ($100.00), which shall be remitted to the fire marshal's office prior to the required inspection.

d. State required annual inspections of adult daycare facility or other similar occupancy that requires certification or approval by the fire marshal's office shall be assessed a fee of one hundred dollars ($100.00), which shall be remitted to the fire marshal's office prior to the required inspection.

(2) a. State required annual inspection of hospitals or other similar occupancies that require certification or approval by the fire marshal's office shall be assessed a fee based on the number of beds in the facility. The inspection fee will consist of a charge of three dollars ($3.00) per bed with a minimum fee of two hundred dollars ($200.00) and a maximum fee of one thousand five hundred dollars ($1,500.00).

b. State required annual inspection of nursing homes or other similar occupancies that require certification or approval by the fire marshal's office shall be assessed a fee based on the number of beds in the facility. The inspection fee will consist of a charge of three dollars ($3.00) per bed with a minimum fee of two hundred dollars ($200.00) and a maximum fee of one thousand five hundred dollars ($1,500.00).

(3) State or private/public required annual inspections of laboratories, clinics and bonded warehouses or other similar occupancies that require certification or approval by the fire marshal's office shall be assessed a fee which shall be remitted at the fire marshal's office prior to the required inspection as follows:

Laboratories, clinics, rehabilitation facilities. $150.00

Bonded warehouses or other similar occupancies	150.00

(h) Aboveground storage tank fee. A permit fee of three hundred thirty dollars ($330.00) for each aboveground storage tank regardless of capacity is hereby established and shall be assessed for the construction of any permanent aboveground storage tank used for the storage of flammable liquids, combustible liquids, or hazardous materials, and shall be paid prior to commencement of any construction. Plans must be submitted for approval prior to the issuance of a permit.

(i) Underground storage tank fee. A permit fee of three hundred thirty dollars ($330.00) per underground storage tank shall be assessed for the inspection of the installation, interior lining, filling with inert material or removal of any underground storage tank used for the storage of flammable liquids, combustible liquids or hazardous materials. A permit shall be obtained prior to commencement of any activity stated above.

(j) (1) Retest fee. If a retest of a fire protection system or portion thereof is necessary due to failure of a previous test, a retest fee of one hundred fifty dollars ($150.00) per retest shall be paid at the fire marshal's office prior to retesting.

(2) Rescheduling fee. If a test or a retest of any fire protection system is canceled within twenty-four (24) hours of the scheduled test, a rescheduling fee of one hundred fifty dollars ($150.00) shall be paid prior to rescheduling of the required test.

(k) (1) If special circumstances warrant, the chief may allow an inspector to conduct an inspection or test after normal working hours when a request is made by a contractor or owner's representative. The cost for each service is eighty dollars ($80.00) per man-hour with a minimum of two (2) hours. Payment shall be remitted at the fire marshal's office prior to the inspection.

(2) If special circumstances warrant, the use of a fire watch, the cost for each fire department employee engaged in the fire watch is eighty dollars ($80.00) per man-hour with a minimum of two (2) hours. Included as part of the eighty dollar ($80.00) fee is a fire watch administrative fee of two dollars and fifty cents ($2.50) per man-hour to cover the cost of administering the fire watch service.

(l) Reserved.

(m) A fee of six hundred forty-five dollars ($645.00) shall be assessed to any individual that a fire unit of the City of San Antonio Fire Department rescues or attempts to rescue at a low-water crossing.

(n) The fee for routine fire reports, fire reports without case number, fire records searches, plans, codes, or references shall be that authorized by V.T.C.A., Government Code, ch. 552.

(o) An environmental research fee of fifty dollars ($50.00) per address request shall be assessed. This environmental research fee shall apply for record searches relating to hazardous incidents and hazardous materials storage at a specific location where fire department staff must conduct research to find the requested information.

(p) A filing fee of one hundred fifty-five dollars ($155.00) is required to be submitted in order to file an appeal with the building-related and fire codes appeals and advisory board. A filing fee of one hundred fifty-five dollars ($155.00) is required to be submitted in order to file an appeal of the decision of the building-related and fire codes appeals and advisory board with city council.

(q) High-rise building annual inspection fee. A fee of six hundred fifty dollars ($650.00) is required for an annual inspection of a high-rise building ten (10) floors in height and under. A fee of eight hundred fifty dollars ($850.00) is required for an annual inspection of a high-rise building eleven (11) floors or more in height.

(r) Fuel dispenser installation fee. A fee of one hundred dollars ($100.00) for each installation of a fuel dispenser is hereby established for the inspection and testing of said dispenser.

(s) A permit fee of one hundred dollars ($100.00) for each site of a fuel line not part of an underground storage tank is hereby established for the inspection and testing of said fuel line.

(t) A permit fee of two hundred fifty seven dollars and fifty cents ($257.50) for each spray paint booth is here established for the review of plans and the inspection of the installation of each spray paint booth.

(u) A fee of twenty-five dollars ($25.00) per request shall be assessed for changing the address on hazardous material permits, inspection reports, and other records.

(v) Reserved.

(w) A fee of five hundred fifty-five dollars ($555.00) per hour per apparatus per incident, plus any applicable fire department personnel overtime costs, is hereby established for recovery of costs associated with commercial trench/confined space rescue incidents. The hourly rate shall be prorated in 15-minute increments at the beginning of each increment. All expendable commodities used at the scene will be billed at cost to the person, corporation, or entity which required the trench/confined space rescue.
(Code 1959, § 15-10.5; Ord. No. 57561, §§ 1, 2, 9-15-83; Ord. No. 59317, § 2, 9-4-84; Ord. No. 61331, §§ 1-3, 8-29-85; Ord. No. 65619, § 1, 9-3-87; Ord. No. 67921, §§ 1-9, 9-15-88; Ord. No. 70251, §§ 1, 2, 4, 5, 11-14, 16, 9-14-89; Ord. No. 72268, § 1, 9-13-90; Ord. No. 72437, § 5, 10-4-90; Ord. No. 74296, §§ 1-3, 9-12-91; Ord. No. 76468, §§ 1—5, 9-10-92; Ord. No. 76471, § 1, 9-10-92; Ord. No. 76473, § 1, 9-10-92; Ord. No. 76576, §§ 1, 2, 9-24-92; Ord. No. 78729, §§ 1, 2, 9-15-93; Ord. No. 79918, § 2, 3-31-94; Ord. No. 80784, § 1, 9-14-94; Ord. No. 86608, §§ 1—24, 9-11-97; Ord. No. 90493, §§ 1, 4, 9-16-99; Ord. No. 91127, § 1, 1-13-00; Ord. No. 92515, § 2, 9-14-00; Ord. No. 94582, § 5, 9-20-01; Ord. No. 98186, §§ 1—6, 9-18-03; Ord. No. 99734, §§ 1—3, 9-16-04; Ord. No. 101400, § 1, 9-15-05; Ord. No. 2007-04-05-0360, § 1, 4-5-07; Ord. No. 2007-09-13-0973F, § 1, 9-13-07; Ord. No. 2007-09-13-0973L, § 3, 9-13-07; Ord. No. 2008-09-11-0777B, § 1, 9-11-08; Ord. No. 2008-09-11-0777G, § 9, 9-11-08; Ord. No. 2009-09-17-0731E, § 1, 9-17-09; Ord. No. 2009-10-01-0776, § 1, 10-1-09; Ord. No. 2010-09-16-0791, § 1(Att. A), 9-16-10; Ord. No. 2011-09-15-0752, § 1(Att. A), 9-15-11; Ord. No. 2011-12-01-0985, § 2, 12-1-11; Ord. No. 2013-09-12-0631, § 2(Att. D), 9-12-13; Ord. No. 2015-01-29-0067, § 2, 1-29-15; Ord. No. 2015-09-10-0758, § 2(Att. D), 9-10-15; Ord. No. 2016-09-15-0697, § 2(Att. B), 9-15-16; Ord. No. 2021-09-16-0682, § 2(Att. G), 9-16-21; Ord. No. 2022-11-10-0875, § 3(Att. B), 11-10-22)

Editor's note—Ord. No. 2009-10-01-0776 shall be effective January 1, 2010.

Sec. 11-17. Fee for firefighting unit on stand-by basis.

The following fee is established for the engagement of a fully equipped reserve firefighting unit by outside agencies on a stand-by basis as follows:

(1) A fee of two hundred fifty ($250.00) per hour, or fraction thereof, per vehicle shall be charged to outside agencies required by or requesting the city to furnish a fully equipped reserve firefighting unit for standby fire protection within the city. Services shall be for a minimum of two (2) hours, with additional hours, or fractions thereof, to be paid at the full rate of two hundred fifty dollars ($250.00); and

(2) The following rules will apply when the city makes such services available:

a. The fee will cover all costs associated with the rental and staffing of the firefighting vehicle.

b. Personnel operating the fire vehicle shall be employees of the San Antonio Fire Department.

(Ord. No. 74295, § 1, 9-12-91; Ord. No. 79918, § 2, 3-31-94)

Note—See the editor's note to § 11-16.

Sec. 11-18. Fee for videotape of arson evidence record.

The fee for a videotape copy of an arson evidence record is seventy-five dollars ($75.00).
(Ord. No. 84793, § 5, 9-19-96)

Sec. 11-19. Fee for duplicating dispatch tapes.

The fee for duplicating dispatch recordings of the emergency medical services division of the fire department shall be that amount authorized to be charged by the provisions of V.T.C.A., Government Code, ch. 552.
(Ord. No. 90501, § 1, 9-16-99; Ord. No. 2010-09-16-0791, § 1(Att. A), 9-16-10)

Sec. 11-20. Fees for use of San Antonio Fire Department Training Academy by outside agencies.

The fee schedules set out below for use of the San Antonio Fire Department Training Academy by outside agencies are hereby established.

Classroom and Drill Field use only	
SAFD Instructors (if required, i.e., weekends or after hours)	$65.00 per hour, per instructor
Classroom Fee (with no equipment use)	$10.00 per hour
Drill Field	$10.00 per hour
Classroom Fee (with AV equipment use)	$15.00 per hour
Live Fire Training	
Instructors (5 students per instructor, minimum 2 SAFD instructors)	$65.00 per hour per instructor
Natural Gas Burn	$100.00 per day
Class A Burn	$75.00 per day
Student Fee	$10.00 per student (10 students minimum)
Classroom Fee (if used)	$10.00 per hour
Stand Alone Specialty Classes	
Specialized Classes (such as ropes, extrication, wildland firefighting)	$50.00 per class per student
CPAT Testing	
CPAT Certification, when done concurrent with SAFD CPAT	$25.00 per person
Out of Cycle CPAT	$400.00 per hour (4 hours minimum)

(Ord. No. 2008-09-11-0777B, § 3, 9-11-08)

Sec. 11-21. Annual private ambulance company franchise fee.

Annual private ambulance company franchise fee to operate within the city limits of San Antonio: Five thousand dollars ($5,000.00).
(Ord. No. 2015-09-10-0758, § 2(Att. D), 9-10-15)

Sec. 11-22. After-hour fire plan review fee.

After-hour fire plan review fee: One hundred dollars ($100.00) per hour, with a one-hour minimum.
(Ord. No. 2015-09-10-0758, § 2(Att. K), 9-10-15)

Sec. 11-23. Watercraft rescue fee.

(a) A watercraft rescue fee of seven hundred fifty dollars ($750.00) shall be assessed for the rescue of a distressed watercraft (one suffering from mechanical issues, for example).

(b) A watercraft rescue fee of one thousand two hundred dollars ($1,200.00) shall be assessed for the rescue of an overturned watercraft.
(Ord. No. 2016-09-15-0697, § 2(Att. B), 9-15-16)

Sec. 11-24. Fire systems plan review fee.

Fire systems plan review fee: One hundred dollars ($100.00) per permit.

Note: Fees collected under this section shall be deposited within the applicable development services department fund.
(Ord. No. 2016-09-15-0697, § 2(Att. B), 9-15-16)

Editor's note—Ord. No. 2016-09-15-0697, § 2(Att. B), adopted September 15, 2016, enacted provisions intended for use as section 11-22. Inasmuch as there are already provisions so designated, and at the discretion of the editor, said provisions have been redesignated as section 11-24.

Secs. 11-25—11-30. Reserved.

ARTICLE III. FIRE PREVENTION CODE*

Sec. 11-31. Reserved.

*__Editor's note—__Ord. No. 79918, § 2, adopted March 31, 1994, amended the provisions of Art. III, §§ 11-31—11-40, in their entirety to read as herein set out. The provisions of former Art. III pertained to the fire prevention code and have been amended by said Ord. No. 79918 to reflect the adoption of the 1991 Edition of the Uniform Fire Code. Former history notation has been retained where appropriate for reference purposes.

Sec. 11-32. Adoption of the International Fire Code.

The 2024 edition of the International Fire Code, including Appendices B, C, D, F, I, L and M developed by the International Code Council is hereby adopted by the City of San Antonio, Texas, as the fire code for the city from the effective date hereof and shall govern all activities specified therein for the purpose of prescribing regulations governing conditions hazardous to life and property from fire and explosion. The 2024 edition of the International Fire Code as adopted is incorporated by reference in this article.

(Code 1959, § 15-1; Ord. No. 55205, § 2, 4-15-82; Ord. No. 65619, § 1, 9-3-87; Ord. No. 79918, § 2, 3-31-94; Ord. No. 85342, § 1, 12-19-96; Ord. No. 89129, § 3, 1-21-99; Ord. No. 99482, § 1, 7-22-04; Ord. No. 2007-04-05-0360, § 2, 4-5-07; Ord. No. 2009-10-01-0776, § 2, 10-1-09; Ord. No. 2011-12-01-0985, § 3, 12-1-11; Ord. No. 2015-01-29-0067, § 3, 1-29-15; Ord. No. 2015-11-12-0946, § 2, 11-12-15; Ord. No. 2018-06-21-0494, § 2, 6-21-18; Ord. No. 2022-11-10-0875, § 4, 11-10-22; Ord. No. 2025-01-30-0075, § 2, 1-30-25)

Editor's note—Ord. No. 2009-10-01-0776 shall be effective January 1, 2010.

Sec. 11-33. Definitions.

(a) Whenever the word "jurisdiction" is used in the International Fire Code, it shall be held to mean the City of San Antonio, Texas.

(b) Whenever the words "Chief of the Bureau of Fire Prevention" are used in the International Fire Code it shall be held to mean "The Fire Chief."

(Code 1959, § 15-3; Ord. No. 55205, § 2, 4-15-82; Ord. No. 65619, § 1, 9-3-87; Ord. No. 79918, § 2, 3-31-94; Ord. No. 99482, § 2, 7-22-04; Ord. No. 2007-04-05-0360, § 3, 4-5-07)

Sec. 11-34. Enforcement.

The International Fire Code shall be enforced by the fire prevention division and other members of the fire department duly authorized by the fire chief.

(Code 1959, § 15-2; Ord. No. 55205, § 2, 4-15-82; Ord. No. 65619, § 1, 9-3-87; Ord. No. 79918, § 2, 3-31-94; Ord. No. 99482, § 2, 7-22-04; Ord. No. 2007-04-05-0360, § 4, 4-5-07)

Sec. 11-35. Storage of flammable or combustible liquids in outside above-ground tanks prohibited.

Storage of flammable or combustible liquids in aboveground tanks is prohibited unless authorized by the fire chief or his designee.

(Code 1959, § 15-4; Ord. No. 55205, § 2, 4-15-82; Ord. No. 65619, § 1, 9-3-87; Ord. No. 79918, § 2, 3-31-94; Ord. No. 2007-04-05-0360, § 5, 4-5-07)

Sec. 11-36. Establishments of limits in which gasoline service stations are to be restricted.

It shall be unlawful for any person to establish, construct, operate or maintain a gasoline service station, for the storage, sale and delivery of gasoline, oil or other auto supplies within the following described limits:

> Beginning at the south curbline of Dolorosa Street, where it crosses San Pedro Creek and with the meanders of the creek south two hundred (200) feet; thence east with a line parallel to and two hundred (200) feet from the south curb of Dolorosa Street across South Flores and Dwyer Avenue to the San Antonio River; thence east with the meanders of the river to the Market Street bridge and south curb line of Market Street to and across South Alamo Street to the point of intersection with the southeast curb line of South Alamo Street; thence north across Market Street and along the east curb line of South Alamo to the point of intersection with the south curb line of East Commerce Street; thence east on the south curb line of East Commerce Street to a point opposite the east curb line of Bonham Street; thence north across East Commerce Street and along the east curb line of Bonham Street, across Blum and Crockett Streets, to the southeast curb line of Bonham Street; thence northeast, along the southeast curb line of Bonham Street to the point of intersection of the curb line of Bonham Street and the center line of East Houston Street; thence west along the center line of East Houston Street to the point of intersection with the east line of Avenue E, thence north along the east line of Avenue E to the point of intersection with the north line of East Travis Street, thence west

along the north curb line of East Travis Street; across the San Antonio River to the east curb line of Soledad Street and to Travis Street; thence along the north curb line of Travis Street across Main Avenue to the west curb line of North Flores Street; thence south along the west curb line of North Flores Street to a point two hundred feet north from the north curb line of West Houston Street; thence west along a line parallel to and two hundred (200) feet from the north curb line of West Houston Street to the west side of Cameron Street; thence south with the west curb line of Cameron Street across West Houston to West Commerce Street; thence west with the north curb line of West Commerce Street to the San Pedro Creek; thence south with the meanders of San Pedro Creek to the place of beginning.

(Code 1959, §§ 13-4, 15-5; Ord. No. 55205, § 2, 4-15-82; Ord. No. 65619, § 1, 9-3-87; Ord. No. 79918, § 2, 3-31-94; Ord. No. 2007-04-05-0360, § 6, 4-5-07)

Sec. 11-37. Establishment of limits in which bulk storage of liquefied petroleum gas is to be restricted.

(a) The limits which bulk storage of liquefied petroleum gas are restricted, are hereby established as the area bounded by the inner curb lines of the following streets and interstate highways:

Beginning at the intersection of I.H. 35 and I.H. 10; thence east along I.H. 35 to its intersection with I.H. 37; thence south along I.H. 37 to its intersection with West Drexel Street; thence west along West Drexel Street to its intersection with Lone Star Blvd.; thence west along Lone Star Blvd. to its intersection with South Flores Street; thence north along South Flores Street to its intersection with West Cevallos Street; thence west along West Cevallos Street to its intersection with I.H. 35 to its intersection with I.H. 10 to the point of termination.

(b) Vehicles for hauling or transporting liquefied petroleum gases shall not be driven in this area or other areas designated by the fire marshal.

(Code 1959, § 15-6; Ord. No. 55205, § 2, 4-15-82; Ord. No. 65619, § 1, 9-3-87; Ord. No. 79918, § 2, 3-31-94; Ord. No. 2007-04-05-0360, § 7, 4-5-07)

Sec. 11-38. Establishment of limits of districts in which storage of explosives and blasting agents is prohibited.

The limits referred to in Section 5601 of the International Fire Code, in which storage of explosives and blasting agents is prohibited, are hereby established at five thousand (5,000) feet beyond the corporate limits of the city.

(Code 1959, § 15-7; Ord. No. 55205, § 2, 4-15-82; Ord. No. 65619, § 1, 9-3-87; Ord. No. 79918, § 2, 3-31-94; Ord. No. 99482, § 2, 7-22-04; Ord. No. 2007-04-05-0360, § 8, 4-5-07; Ord. No. 2011-12-01-0985, § 3, 12-1-11)

Sec. 11-39. Reporting violations.

It shall be the duty of all members of the fire department to immediately report any violation of this code to the fire chief.

(Code 1959, § 15-2; Ord. No. 55205, § 2, 4-15-82; Ord. No. 65619, § 1, 9-3-87; Ord. No. 79918, § 2, 3-31-94; Ord. No. 2007-04-05-0360, § 9, 4-5-07)

Sec. 11-40. Amendments made to the 2024 International Fire Code.

SECTION [A]101.3 PURPOSE is amended by adding SECTION [A]101.3.1 FIRE CHIEF AUTHORIZATION to read as follows:

[A] 101.3.1 Fire Chief Authorization. The Fire Chief is authorized to make and enforce such rules and regulations for the prevention and control of fires and fire hazards as may be necessary from time to time to carry out the intent of this Code. Three certified copies of such rules and regulations shall be filed with the City Clerk of the City of San Antonio and shall be in effect immediately thereafter and additional copies shall be kept in the office of the Fire Department for distribution to the public.

SECTION [A] 104 DUTIES AND POWERS OF THE FIRE CODE OFFICIAL is amended by adding SECTION 104.1.1 AUTHORITY OF THE FIRE CHIEF AND THE FIRE DEPARTMENT

and SECTION 104.1.2 ADDITIONAL DUTIES AND POLICE POWERS OF FIRE DEPARTMENT MEMBERS to read as follows:

104.1.1 Authority of the fire chief and the fire department. The Fire Chief is duly authorized to act by any means he deems necessary to protect life and property from fire hazards. The Fire Chief may delegate his power to any other member of the Fire Department.

104.1.2 Additional duties and police powers of fire department members. In addition to the duties required or prescribed for members of the Fire Department in connection with the regular functions of such department, when so required by order of the City Manager in case of riots, floods, or other public emergencies or catastrophes or public danger of any sort, and all fires by order of the Fire Chief, Deputy Chief, Assistant Chief, District Chief, or any Captain or Lieutenant of the Fire Department, each and all members of the Fire Department shall be and become vested with full Police powers and shall perform all duties required for the protection of persons or property or the preservation of public safety, peace and order.

SECTION [A] 104.4 RIGHT OF ENTRY is amended to read as follows:

[A] 104.4 Right of entry. Where it is necessary to make an inspection to enforce the provisions of this code, or where the fire code official has reasonable cause to believe that there exists in a structure or on any premises a condition that is contrary to or in violation of this code that makes the structure or premises unsafe, dangerous or hazardous, the fire code official is authorized to enter the structure or premises at all reasonable times to inspect or to perform the duties imposed on the fire code official by this code. If such structure or premises is occupied, the fire code official shall present credentials to the occupant and request entry. If such structure or premises is unoccupied, the fire code official shall first make a reasonable effort to locate the owner, the owner's authorized agent or other person having charge or control of the structure or premises and request entry. If entry is refused, the fire code official shall have recourse to every remedy provided by law to secure entry.

No owner or occupant or any other person having charge, care or control of any building or premises shall fail or neglect, after proper demand is made as herein provided, to properly permit entry therein by the Chief or his authorized representative for the purpose of inspection or examination under such exigent circumstances affecting the safety of persons and/or property, or to take such prudent action to extinguish a fire or abate a fire hazard.

SECTION [A]104.4 RIGHT OF ENTRY is amended by adding SECTION [A]104.4.2 PHOTOGRAPHIC DOCUMENTATION to read as follows:

[A] 104.4.2 Photographic documentation. Members of the Fire Department making such examinations or inspections shall have the right, with proper credentials, and be authorized to take a reasonable number of photographs or videotapes for evidence and for records for use by the Fire Department to study hazards and scientific control for fire safety.

SECTION [A] 104.5 IDENTIFICATION is amended by adding SECTION [A] 104.5.1 IMPERSONATION to read as follows:

[A] 104.5.1 Impersonation. A person shall not impersonate the fire code official or his designee through the use of a uniform, identification card, badge, or any other means. Any such impersonation shall be deemed a violation of this Code.

SECTION [A]105.2 APPLICATION is amended by adding SECTION [A] 105.2.5 INVESTIGATION FEE/WORKING WITHOUT A PERMIT to read as follows:

[A] 105.2.5 Investigation fee/working without a permit. Work requiring a permit shall not commence until said permit is posted in a conspicuous place on the job site and approved plans are available at this location. Where work is commenced prior to obtaining said permit, the fees provided for in Section 11-16 of the City Code may be doubled, but the

payment of such double fee shall not relieve any person from fully complying with the requirements of Chapter 11 as amended by this ordinance in the execution of the work nor of any other penalties prescribed herein.

SECTION 105.5 REQUIRED OPERATIONAL PERMITS is amended to read as follows:

105.5 Required operational permits. The fire code official is authorized to issue operational permits for the operations set forth in Sections 105.5.1 through 105.5.58. Required permits and associated fees are listed in Chapter 11, Section 11-16, in Chapter 16 entitled Licenses and Business Regulations, Article I, In General, Sec. 16-3 for hazardous materials, and in other associated chapters of this code. Materials stored, used, dispensed, or handled in amounts exceeding the amounts listed in TABLE 105.5.9 PERMIT AMOUNTS FOR COMPRESSED GASES, TABLE 105.5.11 PERMIT AMOUNTS FOR CRYOGENIC FLUIDS, and TABLE 105.5.22 PERMIT AMOUNTS FOR HAZARDOUS MATERIALS are subject to the provisions of this section.

SECTIONS 105.5.1 ADDITIVE MANUFACTURING THROUGH 105.5.8 COMBUSTIBLE FIBERS, 105.5.10 COVERED AND OPEN MALL BUILDINGS, 105.5.12 CUTTING AND WELDING THROUGH 105.5.15 EXHIBITS AND TRADE SHOWS, 105.5.17 FIRE HYDRANTS AND VALVES, 105.5.19 FLOORING FINISHING THROUGH 105.5.21 FUMIGATION AND INSECTICIDAL FOGGING, 105.5.24 HIGH-PILED STORAGE THROUGH 105.5.28 LIQUID- OR GAS-FUELED VEHICLES OR EQUIPMENT IN ASSEMBLY BUILDINGS, 105.5.30 LP-GAS THROUGH 105.5.33 MISCELLANEOUS COMBUSTIBLE STORAGE, 105.5.35 MOTOR FUEL DISPENSING FACILITIES, 105.5.39 ORGANIC COATINGS THROUGH 105.5.42 PLANT EXTRACTION SYSTEMS, 105.5.45 PYROXYLIN PLASTICS THROUGH 105.5.48 ROOFTOP HELIPORTS, AND 105.5.50 STORAGE OF SCRAP TIRES AND TIRE BYPRODUCTS THROUGH 105.5.54 WOOD PRODUCTS are repealed.

TABLE 105.5.9 PERMIT AMOUNTS FOR COMPRESSED GASES is amended by deleting:

"Type of Gas"

SECTIONS 105.5.18 FLAMMABLE AND COMBUSTIBLE LIQUIDS and 105.5.22 HAZARDOUS MATERIALS are amended to read as follows:

105.5.18 Flammable and combustible liquids. An operational permit is required:

1. To use or operate a pipeline for the transportation within facilities of flammable or combustible liquids. This requirement shall not apply to the off-site transportation in pipelines regulated by the Department of Transportation (DOT) nor does it apply to piping systems.

2. To store, handle or use Class I liquids in excess of 5 gallons (19 L) in a building or in excess of 10 gallons (37.9 L) outside of a building, except that a permit is not required for the following:

2.1. The storage or use of Class I liquids in the fuel tank of a motor vehicle, aircraft, motorboat, mobile power plant or mobile heating plant, unless such storage, in the opinion of the fire code official, would cause an unsafe condition.

2.2. The storage or use of paints, oils, varnishes or similar flammable mixtures where such liquids are stored for maintenance, painting or similar purposes for a period of not more than 30 days.

3. To store, handle or use Class II or Class IIIA liquids in excess of 25 gallons (95 L) in a building or in excess of 60 gallons (227 L) outside a building, except for fuel oil used in connection with oil-burning equipment.

4. To store, handle or use Class IIIB liquids in tanks or portable tanks for fueling motor vehicles at motor fuel-dispensing facilities or where connected to fuel-burning equipment. Exception: Fuel oil and used motor oil used for space heating or water heating.

5. To remove Class I or II liquids from an underground storage tank used for fueling motor vehicles by any means other than the approved, stationary on-site pumps normally used for dispensing purposes.

6. To operate tank vehicles, equipment, tanks, plants, terminals, wells, fuel-dispensing stations, refineries, distilleries and similar facilities where flammable and combustible liquids are produced, processed, transported, stored, dispensed or used.

7. To place temporarily out of service (for more than 90 days) an underground, protected above-ground or above-ground flammable or combustible liquid tank.

8. To change the type of contents stored in a flammable or combustible liquid tank to a material that poses a greater hazard than that for which the tank was designed and constructed.

9. To manufacture, process, blend or refine flammable or combustible liquids.

105.5.22 Hazardous materials. An operational permit is required to store, transport on site, dispense, use, or handle hazardous materials in excess of the amounts listed in Table 105.5.22. Permit fees are listed in Chapter 16 entitled Licenses and Business Regulations, Article I, In General, Sec. 16-3 for hazardous materials.

SECTION 105.5.34 MOBILE FOOD PREPARATION VEHICLES is hereby repealed and replaced with SECTION 105.5.34 MOBILE FOOD ESTABLISHMENTS to read as follows:

105.5.34 Mobile food establishments. An operational permit is required for the operation and maintenance of a mobile food establishment. Small, lightweight vendor push carts, as determined by the fire code official, are not covered under this section. For permit to operate a Mobile Food Establishment, see Section 319, Permit fee information in Chapter 11, Section 11-16 of the City Code.

SECTION 105.5.49 SPRAYING OR DIPPING is amended to read as follows:

105.5.49 Spraying or dipping. An operational permit is required to conduct a spraying or dipping operation utilizing flammable or combustible liquids, or the application of combustible powders regulated by Chapter 24. All spray booths (to include permanent, temporary, and mobile spraying and dipping operations) require an operational permit and approval by the fire code official.

SECTION 105.5 REQUIRED OPERATIONAL PERMITS is amended by adding SECTIONS 105.5.58 IN- BUILDING TWO-WAY RADIO ENHANCEMENT SYSTEM, 105.5.59 FOOD BOOTHS, 105.5.60 PORTABLE OUTDOOR GAS-FIRED HEATING APPLIANCES and 105.5.61 PARADE FLOATS to read as follows:

105.5.58 In-building two-way radio enhancement system. An operational permit is required for the operation of any In-Building Two-Way Radio Enhancement System.

105.5.59 Food booths. An operational permit is required for the operation of a food booth. For permit to operate a food booth, see Section 323. Permit fee information can be found in Chapter 11, Section 11-16 of the City Code.

105.5.60 Portable outdoor gas-fired heating appliances. An operational permit is required for the operation and maintenance of a portable outdoor gas-fired heating appliance. For permit to use portable outdoor gas-fired heating appliances, see Section 324.

105.5.61 Parade floats. An operational permit is required to operate a Parade Float. For permit to operate a Parade Float see Section 324. Permit fee information can be found in Chapter 11, Section 11- 16 of the City Code.

SECTION [A]105.6 REQUIRED CONSTRUCTION PERMITS is amended to read as follows:

Section [A] 105.6 Required construction permits. The fire code official is authorized to issue construction permits for work as set forth in Section 105.6.1 through 105.6.25.

Required permits and associated fees can be found in Chapter 11, Section 11-16 of the City Code.

SECTIONS [A]105.6.6 ENERGY STORAGE SYSTEMS, [A]105.6.10 FUEL CELL POWER SYSTEMS THROUGH [A]105.6.11 GAS DETECTION SYSTEMS, [A]105.6.14 HIGH-PILED COMBUSTIBLE STORAGE THROUGH [A]105.6.18 PLANT EXTRACTION SYSTEMS and [A]105.6.21 SOLAR PHOTOVOLTAIC POWER SYSTEM are repealed.

SECTION [A] 105.6.8 FIRE PUMPS AND RELATED EQUIPMENT is amended to read as follows:

[A] 105.6.8 Fire pumps and related equipment. A construction permit is required for installation of or modification to fire pumps and related fuel tanks, jockey pumps, controllers, and generators. Maintenance performed in accordance with this code is not considered to be a modification and does not require a construction permit. A fuel storage tank permit is required for the installation of a diesel pump fuel tank 60 gallons or larger.

SECTION 105 PERMITS is amended by adding SECTION [A] 105.6.13.1 CONSTRUCTION DOCUMENTS to read as follows:

[A] 105.6.13.1 Construction documents. The construction documents for the following tanks shall be prepared by a professional engineer licensed by the State of Texas:

1. Above ground storage tanks (AST) of 1320 gallons or larger used to store flammable liquids. (Class 1A, 1B, 1C)
2. All underground tanks used for the storage and dispensing of flammable or combustible liquids.

SECTION [A]106 CONSTRUCTION DOCUMENTS is amended by adding SECTION [A] 106.2.1.1 OCCUPANCY CLASSIFICATION LETTER to read as follows:

[A] 106.2.1.1 Occupancy classification letter. Two copies of a completed "Occupancy Classification Letter" (a.k.a. "Commodities Letter") or other approved Fire Protection report shall be submitted to the City for buildings or portions thereof that are to be used for any of the following purposes:

1. Warehousing or storage.
2. Retail including rack display of products.
3. Hazardous material storage and/or use.
4. Manufacturing.

The Occupancy Classification Letter is required to be submitted:

1. with the building permit submittal documents when seeking a building permit,
2. to the SAFD Fire Inspector during a Certificate of Occupancy inspection, or
3. at any other time when required by the fire code official.

The Occupancy Classification Letter is to be prepared by the owner and/or tenant of the building/space in question or a registered design professional. It is to be signed, dated and on company letterhead. If the Occupancy Classification Letter is prepared by a registered design professional representing the owner and/or tenant of the building/space in question, the letter is to be countersigned by the owner and/or tenant. The Occupancy Classification Letter is to be kept on site at all times. Prior to a change in 1) the type or amount of hazardous material(s) used or stored, 2) the type or amount of storage or storage height or method, or 3) the manufacturing process, a revised Occupancy Classification Letter is to be submitted to the Fire Chief or his designee for review.

SECTION 112 MEANS OF APPEALS is repealed and replaced with SECTION 112 BUILDING-RELATED AND FIRE CODES APPEALS AND ADVISORY BOARD to read as follows:

SECTION 112
BUILDING-RELATED AND FIRE CODES APPEALS AND ADVISORY BOARD

All Chapter 11 appeals and advisory opinions shall be directed to and addressed by the Building-Related and Fire Code Appeals and

Advisory Board, as codified in Chapter 10, Section 10-14 of the City Code of San Antonio, Texas.

SECTION [A] 113 VIOLATIONS is amended by adding SECTION [A] 113.1.1 WORK STARTED WITHOUT A PERMIT to read as follows:

[A] 113.1.1 Work started without a permit. No work shall be started on any Fire Protection System at a new construction site or an existing structure, other than maintenance work, without a permit being issued, without a FAST-TRACK permit being issued, or without approval from the Fire Marshal. Both the individual contractor and the site general contractor may be held liable for such actions.

SECTION [A] 113.4 VIOLATION PENALTIES is amended to read as follows:

[A] 113.4 Violation penalties. Persons who shall violate a provision of this code or shall fail to comply with any of the requirements thereof or who shall erect, install, alter, repair or do work in violation of the approved construction documents or directive of the fire code official, or of a permit or certificate under provisions of this code shall be guilty of a Class C Misdemeanor as defined by the Municipal Code of the City of San Antonio. Each day that a violation continues after due notice has been served shall be deemed a separate offense.

SECTION [A] 115 UNSAFE STRUCTURES OR EQUIPMENT is amended by adding [A]115.2.1 REMOVAL OF OCCUPANTS to read as follows:

[A] 115.2.1 Removal of occupants. A member of the Fire Department is authorized to require the removal of occupants at a location when actual occupancy exceeds the permitted or posted occupant load. A person commits an offense if he refuses to obey an order to vacate.

SECTION 202, GENERAL DEFINITIONS remains unchanged, except for the following amendments adding, deleting and modifying definitions as follows:

ADMINISTRATOR is the City Manager for the City of San Antonio, Texas.

AUTHORIZED EMERGENCY VEHICLE shall have the meaning set out in the Texas Transportation Code § 541.201.

DESIGNATED PREMISES shall mean property being used for a purpose allowed as a permitted use in an Apartment District, Office District, Local Retail District, Business District, Commercial District, Manufacturing District, Multiple Family Residence District, Mobile Home District, Townhouse Residence District, Industry District, or Planned Unit Development District as those terms are used in Chapter 35 of the City Code of San Antonio, Texas, whether or not the premises are so zoned, or a public or private school, or a church, or a facility owned or operated by the City or Bexar County or by a city-owned utility, where off-street parking is provided on the premises for occupants thereof and others.

FESTIVAL SEATING shall mean a form of audience/spectator accommodation in which no seating, other than a floor or ground surface, is provided for the audience/spectators gathered to observe a performance.

[BF] FIRE AREA. The aggregate floor area enclosed and bounded by fire walls, fire barriers, exterior walls or horizontal assemblies of a building. Areas of the building not provided with surrounding walls shall be included in the fire area if such areas are included within the horizontal projection of the roof or floor next above.

Exception: Outdoor covered areas shall not be considered fire areas, nor shall they be considered as part of the fire area of a connected building where all of the following conditions are met:

1. The outdoor covered area is a Group A2 Occupancy less than 1,000 ft^2 or is a Group A3 Occupancy. If multiple Group A2 Occupancy outdoor covered areas are proposed, then the aggregate area of all of these areas shall be less than 1,000 ft^2 or separated by a minimum of 20 feet from each other.
2. The outdoor covered area is open on at least three sides and open a minimum of

50 percent of the perimeter of the area covered. In order to be considered "open" for the purpose of this exception, an open side shall be at least 50 percent open with the open area uniformly distributed to prevent the accumulation of smoke and toxic gases.

3. The outdoor covered area shall have adequate independent means of egress such that the occupants of the outdoor covered area are not required to egress through a connected or adjacent building.

FIRE LANE shall mean any area appurtenant to entrances or exits of a building deemed necessary by the Fire Chief or his designee to remain free and clear of parked vehicles for access to such building in case of fire or other emergency and designated by him as such, and may include sidewalks, driveways, portions of parking lots, or any other area adjacent to or near building entrances or exits, or any fire hydrant.

FIRE MARSHAL shall mean the fire code official responsible for investigations of fires, inspection of facilities, and code enforcement.

FIRE WATCH. A temporary measure intended to ensure continuous and systematic surveillance of a building or portion thereof by one or more qualified individuals for the purposes of identifying and controlling hazards, detecting early signs of unwanted fire, raising an alarm of fire and notifying the fire department. Qualified individuals are defined as State Certified Fire Inspectors assigned to the Fire Prevention Division of the City of San Antonio, or, if approved by the Fire Marshal, Texas Certified Firefighters, Peace Officers, individuals employed by a private security firm, or other designated individuals whose sole duty when assigned a fire watch is to perform constant patrols of the premises and keep watch for signs of unwanted fire. A written log must be maintained, and personnel must have at least one approved means of notifying the fire department of fire or other emergencies.

FOSTER CARE FAMILY HOME shall mean a single independent residential occupancy that is the primary residence of the caregiver and licensed by the state to provide twenty-four (24) hour care for six or fewer children (including those related to the caregiver) up to the age of eighteen (18) years.

HIGHWINDS shall mean sustained wind velocity of 15 mph or gusts of 25 mph.

MAINTENANCE AGREEMENT shall mean a contractual agreement between a building owner and a licensed or registered firm to perform general maintenance work to life safety or fire protection or detection systems including, but not limited to, upgrades to an existing system that do not include modification to the existing system configuration and repair of fault conditions. Such an agreement may include provisions for testing and inspection in accordance with appropriate standards.

MOBILE FOOD ESTABLISHMENT shall mean a mobile food operation using any heat producing equipment to cook, fry, or warm products for consumption from a motorized vehicle, towable trailer, or watercraft.

MONITORING AGREEMENT shall mean a contractual agreement between a building owner and a licensed or registered firm to provide monitoring service when required. Such service shall include either remote or central service.

NIGHT CLUB shall mean a tavern (as defined by the Unified Development Code, City of San Antonio, Texas) with more than 2,000 square feet of building area excluding kitchen, restrooms and storage areas. A nightclub use may include, in addition to the provision of alcohol for on premise consumption, a dance hall or dance floor, food services, and/or live entertainment (as defined by the Unified Development Code, City of San Antonio, Texas) as an accessory use when conducted less than 3 days per week. Taverns with less than 2,000 square feet of building area excluding kitchen, restrooms, and storage areas will be considered a nightclub for the purposes of this code if, in addition to the provision of serving alcohol for on premise consumption, the establishment provides all of the following:

1. Live entertainment (as defined by the Unified Development Code, City of San Antonio, Texas) or pre-recorded music, and

2. A dance floor and
3. Hours of operation that extend past 10:00 pm.

Exceptions: Restaurants with a tavern as an accessory use, or establishments with 501 (c)(3) non-profit, tax exempt status.

PARK shall mean the standing of a vehicle, whether occupied or not, upon a street otherwise than temporarily for the purpose of, and while actively engaged in, receiving or discharging passengers or loading or unloading merchandise or in obedience to traffic regulations, signs, or signals or an involuntary stopping of a vehicle by reason of a cause beyond the control of the operator of the vehicle.

PORTE COCHERE shall mean a roofed structure that is open on at least three sides and extends from the building entrance over an adjacent driveway and shelters vehicle ingress and egress.

SPECIAL EVENT shall mean an indoor or outdoor event that, in the opinion of the Fire Code Official or their designee, meets any of the following criteria:

1. Constitutes a use or occupant load ordinarily not permitted by the face of the Certificate of Occupancy.
2. Requires the means of egress to be altered from a configuration that was previously approved by the Building Code Official, Fire Code Official, or their designee (e.g., installation of booths, curtains, partitions, tables/chairs, etc. or the locking of select doors to limit access to portions of a building or area).
3. Poses a condition that compromises any life safety systems that were previously approved by the Building Code Official, Fire Code Official, or their designee (e.g., reduced lighting, increased sound levels, installation of alternate interior finishes, etc.).
4. Poses a condition that reduces the effectiveness of public safety services of any kind (e.g., Conditions that result in reduced access to fire hydrants, sprinkler riser/pump rooms, Fire Department Connections, etc.)."

NOTE: Special Events required to submit plans for each event (review and inspection) in accordance with Section 11-16 Special Event Inspection may submit standard configuration plan packages to the San Antonio Fire Department Fire Prevention Division for review and inspection on an annual basis. Any deviation from the standard configuration as described in the above criteria will require new plans to be submitted for review each time the approved standard configuration is altered. Approved standard configurations for Special Events are required to be reviewed and inspected for code compliance once per year.

SPECIAL HAZARD SYSTEM shall include any one of the following:

1. Carbon Dioxide Extinguishing Systems complying with Section 904.8 and NFPA Standard 12
2. Halon 1301 Systems complying with Section 904.9 and NFPA Standard 12A
3. Explosion Prevention Systems complying with Section 911.3 and NFPA Standard 69
4. Clean Agent Fire Extinguishing Systems complying with 904.10 and NFPA Standard 2001
5. Fixed Aerosol Fire Extinguishing Systems complying with Section 904.12 and NFPA Standard 2010

TESTING AND INSPECTION AGREEMENT shall mean a contractual agreement between a building owner and a licensed or registered firm to perform testing and inspection work only for life safety or fire protection and detection equipment in accordance with appropriate standards.

SECTION 203 OCCUPANCY CLASSIFICATION AND USE is amended by adding definitions to read as follows:

[BG] 203.9.3 Residential Group R-3. Residential Group R-3 occupancies where the

occupants are primarily permanent in nature and not classified as Group R-1, R-2, R-4 or I, including:

Foster Care Family Homes

SECTION 304 COMBUSTIBLE WASTE MATERIAL is amended by adding SECTION 304.2.1 DANGEROUS STORING OF COMBUSTIBLES to read as follows:

304.2.1 Dangerous storing of combustibles. It shall be unlawful and a nuisance for any person to have or keep or store, within the city, any quantity of tar, pitch, resin, petroleum or its products, or other combustible materials or substances in such manner that such materials or substances shall be in danger of taking and communicating fire.

SECTION 305 IGNITION SOURCES is amended by adding SECTION 305.6 IGNITED MATERIALS IN STREETS PROHIBITED to read as follows:

305.6 Ignited materials in streets prohibited. No person may place or possess burning materials on a street, alley, or public easement if that conduct creates a disturbance or causes a fire hazard.

SECTION 307.1 GENERAL is amended by adding SECTION 307.1.2 CARRYING BURNING MATERIALS to read as follows:

307.1.2 Carrying burning materials. No person in the city shall carry or cause to be carried, in any street or other thoroughfare, any burning coal or firebrands, unless the same is shut up in a covered vessel.

SECTION 307.2 PERMIT REQUIRED is amended by adding SECTION 307.2.2 BURNING RUBBISH, BRUSH AND OTHER COMBUSTIBLE MATTER to read as follows:

307.2.2 Burning rubbish, brush and other combustible matter.

1. Unlawful to burn trash without permit. It shall be unlawful for any person to burn or cause to be burned, any trash, brush, tree limbs, grass, trees, leaves, paper, boards, planks, shavings, or any other combustible materials whatsoever within the corporate limits of the City, without first having a permit as required by subsection (2) of this section, unless the same is burned in an incinerator or container which has been approved in writing by the Fire Chief or his designee, and said incinerator or container when used for burning shall be located in such a way that no smoke shall go into surrounding buildings, nor shall the operation of said incinerator or container create a fire hazard to the surrounding property.
2. Application for a permit. Any person desiring to burn any trash or other combustible material within the City shall make application to the Fire Chief or his designee for a permit to burn said materials. The application for a permit shall contain the following information:
   a. The name, address and telephone number of the person making application for permit.
   b. The type of material and the quantity to be burned.
   c. The location in the City at which the material is to be burned and the legal description of the property together with the name and owner of the property.
   d. The date on which the material is to be burned and the time at which the burning will commence and the estimated time necessary to complete the burning.
   e. A statement by the person making the application that he assumes all liability and responsibility for all damages to all persons and property by reason of the fire, and that he will take all necessary precautions to ensure that no damages result from the fire.
   f. A statement by the person making the application for a permit that he will burn the materials only on the date and at the time designated in the permit issued by the Fire Chief or his designee, and in accordance

with any special instruction set forth in the permit issued by the Fire Chief's Office.

3. Permit issued after investigation. When an application to burn any trash or other combustible materials is made to the Fire Chief, and such burning is not a violation of air pollution standards, he shall conduct an inspection of the premises on which the material is to be burned and the surrounding property to determine if the burning, as requested by the applicant would be a fire hazard and dangerous to the adjoining or nearby property. If the Fire Chief, or his designee, finds from his inspection of the property that the burning would not be a fire hazard or danger to adjoining or nearby property, or violation of air pollution standards, he shall cause to be issued a permit which shall contain the following information and conditions:
   a. The name, address, and telephone number of the person to which the permit is issued.
   b. The location, address, and telephone number of the person for which the material is to be burned.
   c. The date and time at which the material is to be burned.
   d. A statement that the applicant assumes all liability and responsibility for all damages to all persons and property by reason of the fire.
   e. That the fire will not be left unguarded at any time during the burning and that an adult person shall be in attendance at all times.
   f. Any condition which the Fire Chief or his designee find from the surrounding circumstances to be necessary to prevent the fire from being a fire hazard and a danger to adjoining or nearby property.
4. When not to issue a permit. No permit shall be issued for the burning of any materials at any time except during the day between one hour after sunrise and one hour before sunset, except for ceremonial bonfires, when:
   a. The site of the bonfire has been approved by the Fire Chief or his designee; and
   b. The bonfire is held under the supervision of Fire Department personnel. Failure of any person or persons at such a bonfire to adhere to fire safety instructions and requirements of the Fire Department representative assigned to supervise same shall constitute a violation of this chapter. No permit shall be issued if the burning would be contrary to the provisions of this section, nor shall such permit be issued if the Fire Chief, or his designee, shall have reason to believe that weather conditions, type or location of the materials to be burned, or the use of property within the area affected would cause the burning to be a hazard or otherwise violate the provisions of this section.

SECTION 308.1 GENERAL is amended by adding SECTION 308.1.11 PROJECTION OF IGNITED MATERIALS to read as follows:

308.1.11 Projection of ignited materials. No person shall drop or throw ignited material from a structure or vehicle.

SECTION 308 OPEN FLAMES is amended by adding SECTION 308.3.3 CHAFING FUEL DEVICES and SECTION 308.4.2 FIRE HAZARD PROHIBITED to read as follows:

308.3.3 Chafing fuel devices. Single-well cooking equipment using combustible oils or solids (chafing fuels) shall meet the following criteria:

1. They shall be used in commercially available devices intended for use with chafing fuels.
2. They shall be secured to the device to prevent tipping and unintentional movement.

3. They shall have lids available for immediate use.
4. They shall be used for warming only and not cooking.
5. They shall be limited to two square feet (0.2 m^2) of warming surface.
6. They shall be placed on noncombustible surface materials.
7. They shall be separated from each other by a horizontal distance of not less than 24 in. (610 mm).
8. They shall be kept at a horizontal distance of not less than 24 in. (610 mm) from any combustible material.
9. A portable extinguisher with a minimum of a 2-A:10-B:C rating shall be provided within 30 ft of each chafing fuel device, or an approved automatic extinguishing system shall be provided.

308.4.2 Fire hazard prohibited. in Group R, Division 1 & 2 occupancies, a person shall not construct, erect, install, maintain or use any incinerator, barbecue pit or grill, or fuel fired lanterns, heaters, or torches or so burn any combustible material as to constitute or occasion a fire hazard by the use or burning thereof or as to endanger the life or property of any person thereof.

The use or burning of any such devices under the following conditions shall constitute a fire hazard and is strictly prohibited:

1. Within 10 linear feet of any combustible surface, including but not limited to decks, porches, balconies, walls, or verandas.
2. Beneath any balcony, porch, roof overhang, deck, or veranda.

Exceptions:

1. Fuel burning devices supplied by the building's source of fuel with additional safeguards as approved by the fire code official.
2. Outdoor kitchens connected as part of the R-1 or R-2 common recreation area with additional safeguards as approved by the fire code official.
3. One- and two-family dwellings, except where use or burning is within 5 feet of adjacent structure or neighboring property.

SECTION 314.4 VEHICLES is amended to read as follows:

314.4 Vehicles. Liquid-fueled or gaseous-fueled vehicles, aircraft, boats, or other motorcraft shall not be located indoors except as follows:

1. The engine starting system is made inoperable or ignition batteries are disconnected except where the fire code official requires that the batteries remain connected to maintain safety features.
2. Fuel in fuel tanks does not exceed any of the following:

2.1. Class I, II and III liquid fuel does not exceed one-quarter tank or 5 gallons (19 L), whichever is less or for large diesel vehicles, minimum amount required to position vehicle.

2.2. LP gas does not exceed one-quarter tank or 6.6 gallons (25 L), whichever is less.

2.3. CNG does not exceed one-quarter tank or 630 cubic feet (17.8 m3), whichever is less.

2.4. Hydrogen does not exceed one-quarter tank or 2,000 cubic feet (57 m3), whichever is less.

Exception: Increase in fuel quantity may be authorized with additional safeguards or as approved by the fire code official.

3. Fuel tanks and fill openings are closed and sealed to prevent tampering.
4. Vehicles, aircraft, boats or other motorcraft equipment are not fueled or defueled within the building.

SECTION 315.3.1 CEILING CLEARANCE is amended to read as follows:

315.3.1 Ceiling clearance. Storage shall be maintained 2 feet (610 mm) or more below the ceiling in nonsprinklered areas of buildings or

not less than 18 inches (457 mm) below the level of the sprinkler deflectors in sprinklered areas of buildings.

Exceptions:

1. The 2-foot (610 mm) ceiling clearance is not required for storage along walls in nonsprinklered areas of buildings.
2. The 18-inch (457 mm) ceiling clearance is not required for storage along walls in areas of buildings equipped with an automatic sprinkler system in accordance with 903.3.1.1, 903.3.1.2 or 903.3.1.3

SECTION 315.3.3 EQUIPMENT ROOMS is amended to read as follows:

315.3.3 Equipment rooms. Combustible material shall not be stored in boiler rooms, mechanical rooms, elevator machine rooms, electrical equipment rooms or in fire command centers as specified in Section 508.1.5, nor within 10 feet of any furnace or boiler room door.

CHAPTER 3 GENERAL REQUIREMENTS is amended by adding SECTION 323 FOOD BOOTHS to read as follows:

SECTION 323 FOOD BOOTHS

323.1 Permits. For permit to operate a food booth, see Section 105.5.59. It shall be unlawful to operate a food booth without a permit.

323.2 Fire Extinguishers. A minimum of one 2A:10BC fire extinguisher shall be required for all food booths. Booths containing deep fat fryers shall have a class K portable fire extinguisher for up to four fryers having a maximum cooking medium capacity of 80 pounds each. For every additional group of four fryers having a maximum cooking capacity of 80 pounds each, an additional class K extinguisher will be required. For individual fryers exceeding 6 square feet in surface area, class K extinguishers will be installed in accordance with manufacturers' recommendations. All fire extinguishers shall have a current annual inspection sticker (within a year) issued by a licensed extinguisher company or provide proof that the extinguisher is new (store receipt).

323.3 Location. Food booths utilized for cooking shall have a minimum of 10 feet clearance on two sides. Booths shall not be placed in fire lanes unless otherwise approved by the fire code official. Booths shall not be placed within 10 feet of amusement rides or devices.

323.4 Cooking equipment location. Barbeque pits shall not be located within 10 feet of combustible materials. Barbeque pits shall not be located under the food booth canopy.

323.5 Acceptable cooking sources. The following are the only approved cooking sources for food booths:

1. Wood or charcoal
2. Propane
3. Natural Gas
4. Electricity

323.6 Generators. Fuel tanks shall be of adequate capacity to permit uninterrupted operation during normal operating hours. Generators shall be isolated from contact with the public. Storage of gasoline is not allowed in or near generators or food booths.

323.7 Decorations. All decorative material shall be at least six feet away from any open flame, cooking element, or heat source or be flame resistant.

323.8 Escape route. All concession stands shall have a minimum of a three ft. aisle for emergency escape.

323.9 Propane. All equipment used in conjunction with propane tanks must be UL Listed for the purposes in which they will be used. Tanks shall be secured to prevent falling. Tanks shall only be white or aluminum in color. Only one spare tank will be allowed in a food booth. Emptied propane tanks are to be removed from the site immediately after use. Regulators shall be attached to the tanks as close as possible. Leaks can be detected using a soap and water solution. Tank shutoff valves and/or additional shutoff valves shall be accessible and away from the cooking appliance(s). Propane tanks shall not be within five feet of

an ignition source. Propane tanks shall not be located within 10 feet of a building door or window.

323.10 Area. A food booth shall consist of an area 10 feet by 10 feet. Extended food booths that exceed 10 feet by 10 feet space and used for cooking will be charged additional fees. These fees will be charged in one hundred square foot increments and any portion thereof.

CHAPTER 3 GENERAL REQUIREMENTS is amended by adding SECTION 324 PORTABLE OUTDOOR GAS-FIRED HEATING APPLIANCES to read as follows:

SECTION 324 PORTABLE OUTDOOR GAS-FIRED HEATING APPLIANCES

324.1 General Requirements.

1. It shall be unlawful to operate portable outdoor gas-fired heating appliances without a permit as required by Section 105.5.60.
2. Portable outdoor gas-fired heating appliances must comply with Section 605.5 of this code.
3. One 2A:10BC fire extinguisher installed in accordance with NFPA 10 and Section 906 of this code must be provided for every 3000 square feet of area where portable outdoor gas-fired heating appliances are used. The maximum travel distance to a fire extinguisher is not to exceed 75 feet.

CHAPTER 3 GENERAL REQUIREMENTS is amended by adding SECTION 324 PARADE FLOATS to read as follows:

SECTION 325 PARADE FLOATS

325.1 Permits. For a permit to operate a Parade Float, see Section 105.5.61. It shall be unlawful to operate a Parade Float without a permit.

325.2 Decorative materials. Decorative material on parade floats shall be noncombustible or flame retardant.

325.3 Fire protection. Motorized parade floats and towing apparatus shall be provided with a minimum 2A:10BC-rated portable fire extinguisher readily accessible to the operator.

325.4 Exhaust pipes. Motorized float exhaust pipes must be extended past the exterior of the float and be clear of all decorative material.

325.5 Escape hatch. Motorized floats shall be equipped with a quick escape hatch from interior driver compartments.

SECTION 403.2 GROUP A OCCUPANCIES is amended by adding SECTION 403.2.5 EXHIBITION HALLS - GENERAL to read as follows:

403.2.5 Exhibit halls - general. The operator of premises used as a place of exhibition shall:

1. Notify each lessee of the Fire Code requirements at the time the lease is made.
2. Where required by the Fire Chief or his designee, submit to the Fire Chief or his designee, 15 days before public operation, a detailed explanation of the nature of the operation and two copies of accurately scaled floor plans which show:
   a. The exhibit layout.
   b. Aisles.
   c. Exits.
   d. Exhibits.
   e. Show decorator's booth.
   f. Location and nature of fire extinguishing equipment; and
   g. Dates when open to the public or trade.
3. Construct, operate, and maintain the exhibition in a manner satisfying this code and the approved plans.
4. Employ one or more certified fire inspector(s) of the SAFD as required and approved by the Fire Marshal, to be on duty at such place whenever, in the opinion of the Fire Marshal, it is essential for public safety.

5. A floor plan of display area must be submitted to the Fire Marshal at least 15 days prior to the event for approval.

SECTION 403.2 GROUP A OCCUPANCIES is amended by adding SECTIONS 403.2.6 SITTING OR STANDING IN AISLES PROHIBITED, 403.2.7 AUTOMOTIVE VEHICLESAND EQUIPMENT IN EXHIBIT HALLS, SECTION 403.2.8 COOKING AND FOOD-WARMING DEVICES IN EXHIBIT BOOTHS, SECTION 403.2.9 WAITING SPACES, SECTION 403.2.10 LIFE SAFETY EVALUATION, SECTION 403.2.11 EVALUATION CONTENT, SECTION 403.2.12 OUTDOOR FACILITIES, SECTION 403.2.13 GENERAL REQUIREMENTS FOR ACCESS AND EGRESS ROUTES WITHIN ASSEMBLY AREAS, SECTION 403.2.14 FLAME-RETARDANT REQUIREMENT, SECTION 403.2.15 EXHIBITS, and SECTION 403.2.16 OPEN FLAME DEVICES to read as follows:

403.2.6 Sitting or standing in aisles prohibited. The operator of premises used as a place of assembly shall prevent the sitting or standing in aisles, passageways, or stairways while the premises are occupied.

403.2.7 Automotive vehicles and equipment in exhibit halls. The operator of and exhibitors at premises used as a place of exhibition may display automotive vehicles and equipment inside a structure if:

1. The amount of fuel in the vehicle or equipment fuel tanks is limited to the greater of:
   a. The minimum amount adequate for vehicle positioning; or
   b. One quarter tank or five gallons, whichever is less.

   Exception: Increase in fuel quantity is authorized with additional safeguards as approved by the fire code official.
2. Vehicle or equipment tanks are effectively locked or adequately sealed.
3. Vehicle or equipment battery cables are disconnected from the ignition systems.
4. Vehicle or equipment ignition keys are possessed at all times by a responsible person at the display location.
5. Vehicle operation is limited to brief parade type displays as specifically approved by the Fire Marshal.
6. Show vehicles with LPG tanks shall not be permitted inside the exhibit halls.

403.2.8 Cooking and food-warming devices in exhibit booths.

1. Gas-fired devices shall comply with the following:
   a. Natural gas-fired devices shall be in accordance with NFPA 54, National Fuel Gas Code, or NFPA 58, Liquefied Petroleum Gas Code.
   b. The use of LP-Gas cylinders shall be prohibited.
   c. Nonrefillable LP-Gas cylinders shall be approved for use where permitted by the authority having jurisdiction.
2. The devices shall be isolated from the public by not less than 48 in. (1220 mm) or by a barrier between the devices and the public.
3. Single-well cooking equipment using combustible oils or solids shall meet the following criteria:
   a. They shall have lids available for immediate use.
   b. They shall be limited to two ft^2 (0.2 m^2) of cooking surface.
   c. They shall be placed on noncombustible surface materials.
   d. They shall be separated from each other by a horizontal distance of not less than 24 in. (610 mm).
   e. They shall be kept at a horizontal distance of not less than 24 in. (610 mm) from any combustible material.

4. A portable fire extinguisher shall be provided within the booth for each device or an approved automatic extinguishing system shall be provided.

403.2.9 Waiting spaces. In theaters and other assembly occupancies where persons are admitted to the building at times when seats are not available or when the permitted occupant load has been reached and persons are allowed to wait in a lobby or similar space until seats or space is available, the following requirements shall apply:

1. Such use of a lobby or similar space shall not encroach upon the required clear width of exits.
2. The waiting spaces shall be restricted to areas other than the required means of egress.
3. Exits for waiting spaces shall be in addition to the exits specified for the main auditorium area.

403.2.10 Life safety evaluation. Where the occupant load of an assembly occupancy exceeds 6000, a life safety evaluation shall be performed. Where a life safety evaluation is required by other provisions of the Code, it shall comply with the following:

1. The life safety evaluation shall be performed by persons acceptable to the authority having jurisdiction.
2. The life safety evaluation shall include a written assessment of safety measures for conditions listed in Section 403.2.11.
3. The life safety evaluation shall be approved annually by the authority having jurisdiction and shall be updated for special or unusual conditions.

403.2.11. Evaluation content. Life safety evaluations shall include an assessment of the following conditions and the related appropriate safety measures:

1. Nature of the events and the participants and attendees.
2. Access and egress movement, including crowd density problems.
3. Medical emergencies.
4. Fire hazards.
5. Permanent and temporary structural systems.
6. Severe weather conditions.
7. Earthquakes.
8. Civil or other disturbances.
9. Hazardous materials incidents within and near the facility.
10. Relationships among facility management, event participants, emergency response agencies, and others having a role in the events accommodated in the facility.

403.2.12 Outdoor facilities. In outdoor facilities, where approved by the authority having jurisdiction, the number of occupants who are each provided with not less than 15 square feet (1.4 m2) of lawn surface shall be permitted to be excluded from the maximum occupant load of 6000 in determining the need for a life safety evaluation.

403.2.13 General requirements for access and egress routes within assembly areas. General requirements shall comply with 403.2.13.1 and 403.2.13.2.

403.2.13.1 Festival seating. Festival seating shall be prohibited within a building, unless otherwise permitted by the following:

1. Festival seating shall be permitted in assembly occupancies having occupant loads of 250 or less.
2. Festival seating shall be permitted in assembly occupancies where occupant loads exceed 250, provided that an approved life safety evaluation has been performed.

403.2.13.2 Access and egress routes. Access and egress routes shall be maintained so that crowd management, security, and emergency medical personnel are able to reach any individual at any time, without undue hindrance.

403.2.14 Flame-retardant requirement. Scenery and prop material construction shall comply with 403.2.14.1 through 403.2.14.3.

403.2.14.1 Combustible scenery. Combustible scenery of cloth, film, vegetation (dry), and similar materials shall meet the requirements of NFPA 701, Standard Methods of Fire Tests for Flame Propagation of Textiles and Films.

403.2.14.2 Foamed plastics. Foamed plastics shall be permitted to be used only by specific approval of the authority having jurisdiction.

403.2.14.3 Scenery and props. Scenery and stage properties on thrust stages shall be of noncombustible materials, limited-combustible materials, or fire-retardant-treated wood.

403.2.15 Exhibits. Exhibits shall comply with 403.2.15.1 through 403.2.16.

403.1.15.1 Travel distance. The travel distance within the exhibit booth or exhibit enclosure to an exit access aisle shall not exceed 50 ft (15 m).

403.2.15.2 Multilevel exhibits. The upper deck of multilevel exhibits exceeding 300 ft^2 (28 m^2) shall have not less than two remote means of egress.

403.2.15.3 Construction. Exhibit booths shall be constructed of the following:

1. Noncombustible or limited-combustible materials.
2. Wood exceeding ¼ in. (6.3 mm) nominal thickness.
3. Wood that is pressure-treated, fire-retardant wood meeting the requirements of NFPA 703, Standard for Fire Retardant-Treated Wood and Fire-Retardant Coatings for Building Materials.
4. Flame-retardant materials complying with NFPA 701, Standard Methods of Fire Tests for Flame Propagation of Textiles and Films.
5. Foamed plastics and materials containing foamed plastics having a heat release rate for any single fuel package that does not exceed 100 kW, where tested in accordance with UL 1975, Standard for Fire Tests for Foamed Plastics Used for Decorative Purposes.
6. Cardboard, honeycombed paper, and other combustible materials having a heat release rate for any single fuel package that does not exceed 150 kW, where tested in accordance with UL 1975, Standard for Fire Tests for Foamed Plastics Used for Decorative Purposes.

403.2.15.4 Curtains, drapes, and decorations. Curtains, drapes, and decorations shall comply with section 807.1.

403.2.15.5 Decorative material. Acoustical and decorative material including, but not limited to, cotton, hay, paper, straw, moss, split bamboo, and wood chips shall be flame-retardant treated to the satisfaction of the authority having jurisdiction and conforming to flame-proofing requirements of the NFPA.

403.2.15.5.1 Treatment. Materials that cannot be treated for flame retardancy shall not be used.

403.2.15.5.2 Foam products. Foamed plastics, and materials containing foamed plastics and used as decorative objects such as, but not limited to, mannequins, murals, and signs, shall have a heat release rate for any single fuel package that does not exceed 150 kW where tested in accordance with UL 1975, Standard for Fire Tests for Foamed Plastics Used for Decorative Purposes.

403.2.15.5.3 Aggregate area as approved. Where the aggregate area of acoustical and decorative materials is less than 10 percent of the individual floor or wall area, such materials shall be permitted to be used subject to the approval of the authority having jurisdiction.

403.2.16 Open flame devices. Open flame devices within exhibit booths shall comply with Section 4104.2.

SECTION 405.3 FREQUENCY is amended by adding SECTION 405.3.1 CONDUCTING FIRE

DRILLS IN E OCCUPANCIES and 405.3.2 FIRE DRILLS FOR E OCCUPANCIES to read as follows:

405.3.1 Conducting fire drills in E occupancies. The operator of premises housing an E Occupancy shall conduct fire drills:

1. Without warning.
2. In a manner requiring:
   a. all students to immediately leave the structure upon hearing the fire drill signal.
   b. a roll call by classes outside the structure; and
   c. doors to be closed as each area is evacuated.
3. In a manner simulating fire conditions.
4. In a manner prohibiting students from running or playing.
5. If approved, in a manner permitting security persons to remain inside the structure during drills, which include:
   a. Complete checks of each section of the structure.
   b. The use of varying evacuation routes.
   c. Occasional simulation of blocked exits.
   d. Provisions for calling the fire department; and
   e. The use of varying drill times.
6. During weather which does not pose a health threat to students.
7. As an exercise in discipline and procedure, rather than speed; and
8. By pulling a manual pull station.

405.3.2 Fire drills for E occupancies. FIRE CHIEF'S POWER TO ORDER FIRE DRILL. The Fire Chief may require a fire drill at any E Occupancy at any time.

SECTIONS 407.5 HAZARDOUS MATERIALS INVENTORY STATEMENT and 407.6 HAZARDOUS MATERIALS MANAGEMENT PLAN are repealed and replaced by S E C T IONS 407.5 HAZARDOUS MATERIALS INVENTORY STATEMENT and 407.6 HAZARDOUS MATERIALS MANAGEMENT PLAN to read as follows:

407.5 Hazardous materials inventory statement. Where required by the fire code official, each application for a permit shall include a Hazardous Materials Inventory Statement (HMIS). The HMIS shall comply with NFPA 1 annex D.

407.6 Hazardous materials management plan. Where required by the fire code official, each application for a permit shall include a Hazardous Materials Management Plan (HMMP). The HMMP shall comply with NFPA 1 annex D. The fire code official is authorized to accept a similar plan required by other regulations.

SECTION 501.3 CONSTRUCTION DOCUMENTS is amended by adding SECTION 501.3.2 SITE PLAN to read as follows:

501.3.2 Site plan. A digital copy of the Fire Protection Site Plan (labeled as such) shall be submitted with the construction documents at the time of application for a building permit. Plans must be reviewed and approved by the Fire Marshal and/or fire plan review staff prior to issuance of a building permit. The approved Fire Protection Site Plan will be retained by the City of San Antonio. The Fire Protection Site Plan shall show and include, but not be limited to, the following:

1. Compass reading.
2. Property and/or lot lines.
3. Street frontages.
4. Location of all buildings (existing and proposed).
5. Fire apparatus access roads (i.e., fire lanes, aerial apparatus access roads) to buildings. Fire lanes shall be highlighted and shall include dimensions (width, turning radii, clearance to overhead obstructions, etc.). The plans shall also show dimensions and calculations for evaluation of compliance with Section D105.3.
6. Fences, gates, walls, streams and other obstructions to firefighter access.

7. Location of all fire hydrants (existing and proposed). This shall include the direction and the distance to all hydrants not shown on the site plan, but within one thousand feet of the building to be protected.
8. Size (diameter and length) and locations of all fire main piping (proposed and existing). The pressure class and type of new pipe to be installed shall be identified.
9. The location, type, and size of backflow prevention devices, where installed.
10. Number of lanes, including turning lanes, of all adjacent streets and the location of medians as applicable.
11. Location of all automatic sprinkler and standpipe risers.
12. Location of fire department connection(s).
13. Size, type, and location of valves including post indicator valve (if they are located in a pit), control room automatic sprinkler system shut-off, etc.
14. Other water supplies.
15. Where required, type of protection from collision that may cause physical damage to fire protection equipment.

SECTIONS 503.1.1 BUILDINGS AND FACILITIES is amended to read as follows:

503.1.1 Buildings and facilities. Approved fire apparatus access roads shall be provided for every facility, building or portion of a building hereafter constructed or moved into or within the jurisdiction. The fire apparatus access road shall comply with the requirements of this section and shall extend to within 150 feet (45 720 mm) of all portions of the facility and all portions of the exterior walls of the first story of the building as measured by an approved route around the exterior of the building or facility. In sprinklered Group R-2 apartment houses, the distance may be measured through open breezeways having a minimum clear width of six feet.

Exceptions:

1. The fire code official is authorized to increase the dimension of 150 feet (45 720 mm) where any of the following conditions occur:

1.1 The building is equipped throughout with an approved automatic sprinkler system installed in accordance with Section 903.3.1.1, 903.3.1.2 or 903.3.1.3. The dimension shall be increased from 150 feet to 200 feet. This increase shall not be applicable to Groups H and I Occupancies, buildings with occupancies having High-Piled Combustible Storage and high-rise buildings.

1.2 Fire apparatus access roads cannot be installed because of location on property, topography, waterways, nonnegotiable grades or other similar conditions, and an approved alternative means of fire protection is provided.

1.3 There are not more than two Group R-3 or Group U occupancies.

1.4 The building is a non-combustible Group S-2 open parking garage meeting the requirements of the International Building Code Section 406.3, with or without a sprinkler system. The increase shall be allowed to be up to 200 feet.

2. Where approved by the fire code official, fire apparatus access roads shall be permitted to be exempted or modified for solar photovoltaic power generation facilities.

SECTIONS 503.1.1 BUILDINGS AND FACILITIES is amended by adding SECTION 503.1.1.1 ACCESS FROM ADJACENT LOT to read as follows:

503.1.1.1 Access from adjacent lot. Where fire apparatus access roads for a building or buildings are provided from an adjacent lot, a fire lane easement or ingress/egress easement is required to be recorded on the adjacent lot's plat that is providing the common access. The adjacent lot's plat is to clearly show the easement graphically.

Exception: In lieu of the graphical easement, a note may be placed on the plat that, at a minimum, states the following: "Ingress and egress shall be provided between all adjacent lots for adequate fire department vehicle access per the City of San Antonio Fire Code. The cross access shall not be blocked, nor may this note be taken off the plat without written permission from the City of San Antonio Director of Development Services and the San Antonio Fire Department Fire Marshal."

SECTION 503.2.1 DIMENSIONS is amended by adding SECTIONS 503.2.1.1 DIVIDED ENTRANCE TO PROPERTY and 503.2.1.2 MOUNTABLE CURBS to read as follows:

503.2.1.1 Divided entrance to property. When guard houses, security stations, median, landscape islands or other similar use obstructions are so located as to create a one-way and partially obstruct the entrance(s) to a property or fire lane(s) in any location, such one way(s) shall be a minimum of fourteen feet clear on each side of the obstruction. This minimum requirement is only applicable at the point(s) of obstruction and is not permitted along required aerial apparatus access roads, fire apparatus access roads adjacent to fire hydrants or fire department connections, or at any location where a fire apparatus vehicle is expected to be positioned for the duration of the fire event. Turning radii shall be permitted in accordance with Section 503.2.4.

503.2.1.2 Mountable curbs. Mountable curbs are permitted when approved by the Fire Marshal.

SECTION 503.2.3 SURFACE is amended to read as follows:

503.2.3 Surface. Fire apparatus access roads shall be designed and maintained to support the imposed loads of fire apparatus and shall be surfaced so as to provide all-weather driving capabilities.

Drivable grass surfaces, or other alternative drivable surfaces, are permitted when approved by the Fire Marshal or his designee and in accordance with all of the following conditions:

1. Sealed documents indicating compliance with the provisions of 503.2.3 shall be submitted by a registered design professional for review.
2. The drivable grass surface, or alternative drivable surface, shall not be used as the primary access to the site.
3. The surface shall be capable of supporting the imposed load of fire apparatus weighing at least 85,000 pounds.
4. Blue traffic reflectors shall be provided on each side of the surface every 20 feet to clearly mark its boundaries. Vegetation on and surrounding the surface shall be maintained such that said reflectors are visible at all times.
5. Sod is not permitted to be placed over the drivable base.
6. If the surface proposed is to be used as the aerial apparatus access road for the facility, concrete curbing, or other approved edging, shall be installed along both sides of the portion to be used as such for enhanced lateral stability.
7. If sand or other free-flowing fill is used as a main structural component for the surface, concrete curbing or other approved edging shall be installed along both sides of the surface for material containment.
8. The surface shall be maintained in proper working order at all times when utilized as a required fire lane. Should the surface become damaged or fall into disrepair, the Fire Marshal or his designee shall be authorized to require the repair and re-certification of said surface.

SECTION 503.2.4 TURNING RADIUS is amended to read as follows:

503.2.4 Turning radius. The required turning radius of a fire apparatus access road shall be determined by the fire code official.

The turning radii of a fire apparatus access roadway shall require a minimum of 50 feet outside radius and a minimum of 25 feet clear distance to the inside radius on all turns in excess of 30 degrees.

SECTION 503.2.5 DEAD ENDS is amended to read as follows:

503.2.5 Dead ends. Dead-end fire apparatus access roads in excess of 150 feet (45 720 mm) in length shall be provided with an approved area for turning around fire apparatus. Turn arounds approved by the Fire Marshal or as permitted by Appendix D are acceptable.

Exception: Where the building is equipped throughout with an approved sprinkler system in accordance with Section 903.3.1.1, 903.3.1.2, or 903.3.1.3, the maximum length of dead-end fire apparatus access roads shall be increased to 200 feet. This increase shall not be applicable to Groups H and I Occupancies, buildings with occupancies having High-Piled Combustible Storage, and high-rise buildings. This increase shall apply to all non-combustible Group S-2 open parking garages meeting the requirements of the International Building Code Section 406.3, with or without an approved automatic fire sprinkler system.

SECTION 503.2.7 GRADE is repealed and replaced with SECTION 503.2.7 GRADE to read as follows:

503.2.7 Grade. The gradient for a fire apparatus access road shall not exceed 12%.

SECTION 503.3 MARKING is repealed and replaced by SECTION 503.3 MARKING to read as follows:

503.3 Marking. Upon the designation of a fire lane pursuant to this ordinance, the Fire Marshal shall give notice of such designation to the owner of such designated premise, directing the owner to cause signs to be posted at the expense of the owner at designated locations stating: "Fire Lane - No Parking at any Time City Ord. 54547." Such signs shall be of standard size and color, of standard lettering and mounting, conforming to specifications established by the Director of Public Works. In addition to the signs, the owners of such designated premises at their option, or, if so directed by the Fire Marshal, shall paint all fire lane curbs red with white- stenciled letters stating, "Fire Lane, No Parking". Lettering for the curbs shall use 4-inch lettering with a distance of not more than 40 feet between wording. It shall be unlawful to park any vehicle other than an authorized emergency vehicle in a designated fire lane when such signs are in place, or such red curbing exists. In areas where the fire lane may not be clearly defined, the Fire Marshal may require a 4-inch red stripe be painted that defines the boundaries of the fire lane.

SECTION 503.4.1 TRAFFIC CALMING DEVICES is repealed.

SECTION 503.6 SECURITY GATES is amended to read as follows and by adding 503.6.1 DIRECTION OF SWING to read as follows:

503.6 Security gates. The installation of security gates across a fire apparatus access road shall be approved by the fire marshal. Where security gates are installed, they shall have an approved means of emergency operation to include a fire department specific key switch, lock, or box. Upon loss of power to electric gate operators, a secondary power source or clearly marked and identified manual release shall be provided. The security gates and the emergency operation shall be maintained operational at all times. Electric gate operators, where provided, shall be listed in accordance with UL 325. Gates intended for automatic operation shall be designed, constructed and installed to comply with the requirements of ASTM F2200.

503.6.1 Direction of swing. Security gates installed across a Fire Apparatus Access Road shall swing in the direction of travel towards the building or open horizontally to avoid backing up of Fire Apparatus and to allow for an expedited response.

SECTION 503 FIRE APPARATUS ACCESS ROADS is amended by adding SECTIONS 503.7 FIRE MARSHAL AUTHORITY TO DESIGNATE FIRE LANES, 503.8 SUMMONS TO BE ISSUED FOR PARKING VIOLATION, 503.9 REMOVAL OF VEHICLE BY PROPERTY OWNER, 503.10

REMOVAL OF VEHICLE BY FIRE CHIEF, and 503.11 ABANDONMENT OF FIRE LANE to read as follows:

503.7 Fire marshal authority to designate fire lanes. The Fire Marshal is hereby authorized to designate fire lanes on designated premises where such areas must be free of parked vehicles and other obstructions to provide ready access to buildings therein, in case of fire or other emergencies. The Fire Marshal's designation of such fire lanes does not obviate the owner of such property of their responsibility to maintain the area. Further, owners of the private property or their designated representative may request that additional fire lanes be designated by the Fire Marshal.

503.8 Summons to be issued for parking violation. A summons or notice to appear in answer to a charge of parking in violation of this section specifying the location of the fire lane in which such violation occurred and the date and time of such violation, may be issued by any police officer or any member of the Arson Investigating unit or inspectors in the Fire Prevention Bureau of the Fire Department.

503.9 Removal of vehicle by property owner. Except an authorized emergency vehicle, the owner of private property, or their agent, may have any motor vehicle that is parked in a legally designated fire lane removed and stored at either their own expense or that of the vehicle operator.

The owner of the premises, or their agent, who has a vehicle removed and stored, is not liable for damages incurred as a result of removal or storage, if the vehicle is removed by a vehicle wrecker service insured against liability for property damage incurred in towing vehicles and is stored by a storage company insured against liability for property damage incurred in the storage of vehicles.

503.10 Removal of vehicle by fire chief. Any vehicle parked in any designated fire lane may be removed at the vehicle owners' expense upon the authorization of the Fire Chief under the following conditions:

1. When the vehicle violates City Ordinance 54547 (Fire Lanes) by parking in a fire lane, or
2. When a vehicle blocks the ingress/egress of a business, theater, night club, apartment complex, gymnasium or a place of assembly, or
3. When a vehicle's presence threatens the life safety of the public by impeding the ability of the fire apparatus and emergency medical equipment to respond to an emergency.

The Fire Chief shall cause such vehicle to be removed by the towing service operating under a contract with the city and shall further cause such vehicle to be impounded in one of the Police Department Vehicle Storage sections.

503.11 Abandonment of fire lane. No owner, manager or person in charge of any premises served by a required fire lane shall abandon or close any such fire lane without the written permission from the Fire Marshal.

SECTION 504.1 REQUIRED ACCESS is amended by adding SECTION 504.1.1 FIREFIGHTER PERSONNEL ACCESS to read as follows:

504.1.1 Firefighter personnel access. A minimum width of five (5) feet of clear space shall be provided to allow for firefighter personnel to access the building from all sides of the exterior.

SECTION 505.1 ADDRESS IDENTIFICATION is repealed and replaced with SECTION 505.1 ADDRESS IDENTIFICATION to read as follows:

505.1 Address identification. New and existing buildings shall have approved address numbers, building numbers or approved building identification. The address identification shall be legible and placed in a position that is visible from the street or road fronting the property. Address identification characters shall contrast with their background. Address

numbers shall be Arabic numbers or alphabetical letters. Numbers shall not be spelled out. Address characters shall be a minimum of 6 inches (102 mm) high with a minimum stroke width of 0.5 inch (12.7 mm). For buildings with individual suites, the suite numbers shall be a minimum of 4 inches high with a minimum stroke width of 0.5 inches. Where required by the fire code official, address identification shall be provided in additional approved locations to facilitate emergency response. Where access is by means of a private road and the building cannot be viewed from the public way, a monument, pole or other sign or means shall be used to identify the structure. Address numbers shall be maintained.

SECTION 505 PREMISES IDENTIFICATION is amended to add sections 505.3 MULTI- BUILDING COMPLEXES, 505.3.1 MULTI-ADDRESS COMPLEXES, 505.4 MALL LEASE SPACES, and 505.5 TENANT IDENTIFICATION to read as follows:

505.3 Multi-building complexes. Office, industrial and apartment complexes shall be identified by name and number on a site map at the main entry roadway to identify the location of each building in the complex.

505.3.1 Multi-address complexes. Office and industrial complexes with multiple addresses contained within shall post all addresses so that they are visible from roadway.

505.4 Mall lease spaces. Each mall lease space shall be identified by a uniform size number at a uniform easily visible location in proximity to exterior and mall entrance doors.

505.5 Tenant identification. Each occupied tenant space provided with a secondary exit to the exterior or exit corridor shall be provided with tenant identification by business name and address. Letters and numbers shall be posted on the corridor side of the door, be plainly legible and shall contrast with their background.

Exception: Tenant identification is not required for anchor stores.

SECTION 506 KEY BOXES is amended to add SECTIONS 506.2.1 KEY BOX ACCESS AND REMOVAL OF KEYS and 506.3 KEY BOX LOCATION AND CONTENTS to read as follows:

506.2.1 Key box access and removal of keys. The Fire Department shall have the only key to the key box. Removal of any key by other than the authorized Fire Department personnel shall be a violation of this Code.

506.3 Key box location and contents. Required key boxes shall be located as follows and as approved by the Fire Marshal:

1. Within 12 feet of the emergency elevators and visible from the entrance to the emergency elevator; or
2. Between 5 and 7 feet to the side of the main entrance level to the building and between 5 to 7 feet from the grade where practical, or as approved by the Fire Marshal.

The key box shall contain designated keys essential to emergency operations including, but not limited to, the following:

1. Elevator keys capable of accessing all floors in the building.
2. Stairway keys.
3. Fire control station keys.
4. Alarm System keys.

SECTION 507.3 FIRE FLOW is amended to read as follows and by adding SECTION 507.3.1 FIREFLOW FOR RURAL ISOLATED AREAS to read as follows:

507.3 Fire flow. Fire Flow requirements for buildings or portions of buildings and facilities shall be as per Appendix B of the International Fire Code or other approved method as determined by the Fire Marshal. When utilizing Table C105.1 to determine number and distribution of fire hydrants, and the flow requirement falls between the values on the table, the flow requirement shall be rounded up to meet the higher value.

507.3.1 Fire flow for rural isolated areas. The fire flow requirements for rural, isolated structures may be determined as follows. The

Fire Marshal may modify the fire flow requirements for small, isolated buildings or light hazard occupancies (as defined in NFPA 13, referenced in Chapter 80) under the following conditions:

1. The building is fully protected with an approved automatic fire sprinkler system installed in accordance with Section 903.3.1.1 or 903.3.1.2.
2. The automatic sprinkler system demand, including hose stream demand is provided.
3. The building is located in a subdivision area considered by the Code Official to be in a rural setting.
4. Provision of a fully compliant water supply is a severe economic burden.
5. A minimum of 60-foot yard is provided between the buildings and property lines (dedicated right-of-way may be used to obtain clear distance); and
6. When the Fire Code required fire flow is available at the property line, the owner shall connect to the water supply system and provide on-site fire hydrants and water supply as is otherwise required by the Code.

SECTION 507.4 WATER SUPPLY TEST is repealed and replaced with SECTION 507.4 WATER SUPPLY TEST to read as follows:

507.4 Water supply test. Adequacy of the water supply shall be determined by an approved flow test that is conducted on the fire hydrants nearest the project site unless otherwise approved by the Code Official. The flow test shall be as follows:

1. The flow test shall have been conducted no more than 12 months prior to the date of construction document submittal to the City of San Antonio.
2. The flow test shall be conducted in accordance with NFPA 291, Recommended Practice for Fire Flow Testing and Marking of Hydrants and any other applicable local, state, or national standards and/or requirements.
3. The flow test results shall be submitted with the construction documents in accordance with the COSA standard fire flow test format.
4. If the water supply piping is not yet constructed, hydraulic calculations for the proposed piping design shall be submitted. The calculations shall be based on the flow test conducted on the fire hydrants nearest the project site and shall verify that the piping design provides the minimum require fire flow at no less than 25 psi residual. Upon completion of construction and prior to final certificate of occupancy, a flow test shall be conducted to verify the results of the calculations.

SECTION 507.5.1 WHERE REQUIRED is repealed and replaced with SECTION 507.5.1 WHERE REQUIRED to read as follows:

507.5.1 Where required. Public and/or private fire hydrants are required to be installed where one or more of the following conditions exist:

1. Existing fire hydrants do not meet the required fire hydrant location and spacing criteria defined in Section 507.5.1.1, 507.5.1.2, or Appendix C.
2. The complexity of the project justifies their installation as determined by the Fire Marshal.

SECTION 507.5.1.1 HYDRANT FOR STANDPIPE SYSTEMS is repealed and replaced with SECTION 507.5.1.1 FIRE HYDRANT LOCATION AND SPACING FOR NON-SINGLE-FAMILY DEVELOPMENTS to read as follows:

507.5.1.1 Fire hydrant location and spacing for non-single-family developments. Sufficient fire hydrants shall be considered to be provided for a building when:

1. Not more than 500 feet of hose will be required to reach from a fire hydrant to all exterior portions of the first floor of the structures in question; and

   Exception: Where the building is equipped throughout with an approved sprinkler system installed in accordance

with Section 903.3.1.1, 903.3.1.2, or 903.3.1.3, the maximum distance from hydrants to all exterior portions of the building shall be increased to 750 feet as the hose lays. This increase shall not be applicable to Groups H and I Occupancies, buildings with occupancies having High-Piled Combustible Storage and high-rise buildings. This increase shall apply to all non- combustible Group S-2 open parking garages meeting the requirements of the International Building Code, Section 406.3, with or without a sprinkler system.

2. All fire hydrants required as prescribed by Appendix C shall be within 500 feet of a point on the building being protected and said distance is measured per the hose lay criteria in Section 507.5.1.2.

   Exception: Where the building is equipped throughout with an approved sprinkler system installed in accordance with Section 903.3.1.1, 903.3.1.2, or 903.3.1.3, the maximum distance from hydrants to a point on the building shall be increased to 750 feet as the hose lays. This increase shall not be applicable to Groups H and I Occupancies, buildings with occupancies having High-Piled Combustible Storage and high-rise buildings. This increase shall apply to all non-combustible Group S- 2 open parking garages meeting the requirements of the International Building Code Section 406.3, with or without a sprinkler system.

SECTION 507.5.1 WHERE REQUIRED is amended by adding SECTION 507.5.1.2 FIRE HYDRANT LOCATION AND SPACING to read as follows:

507.5.1.2 Fire hydrant location and spacing. Fire hydrants shall be located and spaced per the following criteria:

1. Hose lay is measured along public streets, fire lanes, and access roadways for Fire Department vehicles. This hose lay consists of 350 feet of supply line as deployed by truck, and 150 feet of hose deployed by hand. Unless otherwise increased in this Code, where the building is equipped throughout with an approved sprinkler system installed in accordance with Section 903.3.1.1, 903.3.1.2, or 903.3.1.3, the maximum distance from hydrants to a point on the building shall be increased to 750 feet as the hose lays with 550-foot hose lay by the truck and 200-foot hose lay by hand.

2. No fire flow credit is allowed for hydrants which are so obstructed as to make their use impractical, such as, but not limited to, hydrants across main line railroad tracks that are in heavy use or across limited access highway, expressways, primary thoroughfares, across streams, or walls. Hydrants requiring fire apparatus to drive against oncoming traffic to supply water for fire protection and not in the normal direction of travel on one-way streets or highway access roads shall be considered obstructed unless approved by the fire code official.

3. Hydrants required by this code along both public and private water mains shall be spaced no closer than 300 feet with spacing between hydrants not to exceed 600 feet. Additional non- required hydrants may be spaced no closer than 200 feet from required hydrants unless approved by the fire code official.

4. Fire hydrants shall be located along the public right-of-way or along the Fire Department access roadways, preferably at intersections or on islands separating parking areas which cannot be obstructed by parked vehicles. Hydrants in areas subject to physical damage shall be protected from collision. Fire hydrants across more than four lanes of traffic (including turning lanes) or across medians are not considered accessible.

5. Where existing or proposed fire line(s) and/or existing or proposed fire hydrant(s) are to be used to meet the requirements of this Code and are provided from an adjacent lot, said appurtenances shall be provided with a dedicated water ease-

ment. The easement is required to be recorded on the adjacent lot's plat that is proposing the shared access. The adjacent lot's plat is to clearly show the water easement graphically. Recordation by legal instrument alone is not approved by the Fire Marshal.

SECTION 507.5.3 PRIVATE FIRE SERVICE MAINS AND WATER TANKS is amended by adding SECTION 504.5.3.1 PRIVATE FIRE SERVICE MAIN to read as follows:

507.5.3.1 Private fire service main. Private fire mains as used in this Code are the pipe and its appurtenances on private property between San Antonio Water System, other public water system, or other sources of water and the base elbow of private fire hydrants or the rise for automatic sprinkler or standpipe systems. When connected to a public water system, the private fire main begins at a point designated by the public water utility. When connected to a gravity tank or pressure tank, the private fire main begins at the inlet side of the tank check valve.

SECTION 507.5.5 CLEAR SPACE AROUND HYDRANTS is amended to read as follows:

507.5.5 Clear space around hydrants. A 3-foot (914 mm) clear space shall be maintained around the circumference of fire hydrants, except as otherwise required or approved. The clear space around hydrant and the access to the hydrant shall be no more than eight percent (8%) slope.

SECTION 507.5 FIRE HYDRANT SYSTEMS is amended by adding SECTIONS 507.5.7 DESIGN CRITERIA FOR WATER MAINS and 507.5.8 FIRE HYDRANT INSTALLATION CRITERIA to read as follows:

507.5.7 Design criteria for water mains.

1. Where the fire service mains are used to supply required fire hydrants, the mains shall be sized to flow the required fire flow as determined by Section 507.3.

2. Where the fire service mains are used to supply required fire hydrants plus fire sprinkler and/or fire standpipe systems, the mains shall be sized to flow the larger of the fire hydrant flow demand as determined by Section 507.3, the fire sprinkler demand as determined by Section 903.3 or the fire standpipe demand as determined by Section 905.2.

3. The required number of fire hydrants for the fire flow determined by Section 507.3 shall be specified in Appendix C, Table C102.1.

4. When sizing the fire service main, the distribution of the fire flow among the required fire hydrants (as determined by item no. 1 or 2 above) shall be as determined by the Fire Marshal, but in most cases shall have no less than 1,000 GPM at the hydraulically remote fire hydrant with the remaining fire flow equally distributed among the remaining required fire hydrants.

5. Main Size:

5.1. Minimum diameter for public water mains shall be six inches in single-family residential areas and eight inches in all other areas. Larger mains may be required to accommodate fire flow requirements.

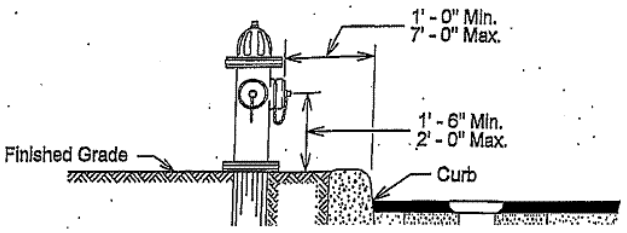
5.2. Private fire mains shall be hydraulically calculated.

6. Water pressure in private fire mains shall not be less than thirty-five pounds per square inch (35 psi) with no hydrants in use. When hydrants are in use supplying the required fire flow, water pressure in the main at the fire hydrant discharge level shall be not less than 25 pounds per square inch (25 psi) residual.

7. Except for specific requirements of this code, all hydrants and mains required for private protection shall be designed, constructed, and operated in conformance with the local water purveyor's criteria, specifications and regulations for public fire hydrants and mains on public streets and NFPA 24.

507.5.8 Fire hydrant installation criteria. Fire hydrants shall be installed per the following criteria:

1. Fire hydrants shall be a minimum of one foot and a maximum of seven feet from the gutter face of the curb which forms a public way or Fire Lane. Fire hydrants in parking lots adjacent to a Fire Lane or public way shall meet the same requirement for distance and be located on a curbed island or protected by bollards.
2. The steamer (pumper) connection shall be a minimum of one and one-half feet and a maximum of two feet above grade.
3. All private hydrants shall be painted red.
4. Fire hydrants shall be right turn only.
5. The steamer (pumper) connection shall face the street, fire access road or fire lane.
6. The steamer (pumper) connection shall have a nominal inside diameter of 4 inches.
7. Hydrants shall have two other hose connections with a nominal inside diameter of 2.5 inches in addition to the steamer (pumper) connection.
8. Hydrants, public or private, shall be located not less than 40 feet from the building to be protected.



SECTION 509.1 IDENTIFICATION is amended to read as follows:

509.1 Identification. Fire protection equipment shall be identified in an approved manner. Rooms containing controls for air-conditioning systems or fire protection systems shall be identified for the use of the fire department. Signs utilizing symbols shall have white reflective symbols on red background per guidelines found in NFPA 170. Signs shall be a minimum size of 4 inches by 6 inches, red background with white lettering with letters a minimum of .05-inch letter stroke. Approved signs required to identify fire protection equipment and equipment location shall be constructed of durable materials, permanently installed and readily visible. For exterior signs, heavy-gauge, sign-grade aluminum shall be used. Interior signs shall be constructed of rigid plastic, light-gauge aluminum or other approved, durable, water- resistant material.

SECTION 510.1 EMERGENCY RESPONDER COMMUNICATIONS ENHANCEMENT SYSTEMS IN NEW BUILDINGS is amended to read as follows and by adding SECTION 510.1.1 EXEMPTIONS and SECTION 510.1.2 FAILURE TO COMPLY to read as follows:

510.1 Emergency responder communications enhancement systems in new buildings. Approved in- building, emergency responder communications enhancement system (ERCES) for emergency responders shall be provided in all new buildings. .

Except as otherwise provided, no person shall erect, construct, modify or cause any building, structure or any part thereof, causing the failure to support adequate radio coverage for City of San Antonio public safety services to include, but not limited to, police, fire, and public works department. A certificate of occupancy may not be issued for any building or structure which fails to comply with this requirement.

510.1.1 Exemptions. This section shall not apply to any building less than 50,000 square feet or any building less than four stories with less than 50,000 square feet per floor.

510.1.2 Failure to comply. Failure to comply with this code shall be grounds for the Director of Development Services to revoke any previously issued Certificate of Occupancy for the building or structure. A written appeal may be taken to the Building-related and Fire Codes Appeals and Advisory Board regarding the revocation of the Certificate of Occupancy.

SECTION 510.2 EMERGENCY RESPONDER COMMUNICATIONS ENHANCEMENT SYSTEM IN EXISTING BUILDINGS is repealed and replaced by 510.2 NEEDS ASSESSMENT SURVEY and amended by adding 510.2.1 RETROACTIVE REQUIREMENTS to read as follows:

510.2 Needs assessment survey. A needs assessment survey to determine if the installation of an in-building two-way radio enhancement system for in-building emergency responder communications coverage shall be completed based on the criteria set forth in Section 510.1 through 510.5. The needs assessment survey shall not be completed without prior coordination and approval of the radio licensing authority and AHJ, shall be submitted in an acceptable format and shall comply with the following:

1. In addition to the requirements set forth in Section 510.1, a needs assessment survey shall always be conducted for any building with one or more basements or below-grade levels, to include any underground parking facilities and structures.

2. Surveys shall be conducted utilizing industry standard, calibrated test equipment to perform on-site spectrum analysis of radio signal levels. Documentation of equipment calibration shall be provided with the test report package. Each floor should be divided into 20 equal test grids.

3. Measurements should be taken at the center of each test grid or as close to the center as possible.

4. Critical areas must be designated on the floor plan and included in the survey are fire command centers, fire pump rooms, exit stairwells, exit passageways, elevator lobbies, standpipe cabinets, and sprinkler sectional valve locations.

5. For projects where the scope includes the building shell only all exterior finish materials (cladding, brickwork, veneer), all roofing materials, glazing, interior finish materials for the shell stage (drywall, wood paneling, flooring and custom finishes) shall be installed to include weather sealing of all glazing, prior to the site survey being conducted. Additionally, all exterior doors shall be closed.

6. For projects where the scope includes building shell and interior tenant finish out, all of the requirements for shell stage shall apply with the addition of all interior walls, doors and partitions being installed. Where such walls, doors and partitions include glazing, the installation of such glazing shall be complete to include any required sealing. Additionally, any doors specified with seals and / or sweeps shall have said seals and/or sweeps installed prior to the site survey being conducted.

7. For storage occupancy projects that require installation of rack systems for storage of materials and/or products, all survey requirements for shell and finish out stages shall apply and all rack storage equipment shall be installed prior to any survey being conducted.

8. An acceptable survey shall yield a minimum signal strength inbound and outbound of - 95dBm and Delivered Audio Quality (DAQ) of 3.0.

9. Survey results shall be submitted to the fire code official for review and approval.

10. A construction permit is required for all emergency responder communications enhancement system installation.

510.2.1 Retroactive requirements. In the event it is determined that installation of an Emergency Responder Communications Enhancement System (ERCES) is required, all existing buildings which meet the criteria set forth by the currently adopted code and local amendments will be granted a three (3) year period to provide an approved in-building, two-way emergency responder communication coverage as required in Chapter 11. The three (3) year period begins upon Owner or Occupant being notified of requirement.

SECTION 510.3.2 OPERATIONAL PERMIT is repealed.

SECTION 510.4.2.5 SYSTEM MONITORING is amended to read as follows:

510.4.2.5 System monitoring. The in-building, emergency responder communications enhancement system shall be monitored by a listed fire alarm control unit, or where approved by the fire code official, shall sound an audible signal at a constantly attended on-site location. Automatic supervisory signals shall include the following:

1. Loss of normal AC power supply.
2. System battery charger(s) failure.
3. Signal source malfunction.
4. Failure of active RF-emitting device(s).
5. Low-battery capacity at 70-percent of the 12-hour operating capacity has been depleted.
6. Failure of critical system components.
7. The communications link between the fire alarm system and the in-building emergency responder communications enhancement system.
8. Oscillation of active RF-emitting device(s).
9. For buildings equipped with a fire command center, the fire command center shall be equipped with a dedicated annunciator which provides the status of all RF-emitting devices, the location(s) of all active system components and provides visual and labeled indicators for all critical system components to include RF-emitting device(s).

SECTION 605.4 FUEL OIL STORAGE SYSTEMS is amended to read as follows:

605.4 Fuel oil storage systems. Fuel oil storage systems for building heating systems shall be installed and maintained in accordance with this code. Tanks and fuel-oil piping systems shall be installed in accordance with the International Mechanical Code. Above ground storage tanks and piping for generators shall comply with Chapter 57.

SECTION 606.2 WHERE REQUIRED is amended to add exception 5 to read as follows:

Exceptions:

5. At San Antonio Fire Department fire stations where a portable fire extinguisher is provided within 30 feet (9144 mm) of commercial cooking equipment.

SECTION 607 COMMERCIAL COOKING OIL STORAGE is repealed.

SECTION 901.4 FIRE PROTECTION AND LIFE SAFETY SYSTEMS is amended by adding SECTION 901.4.8 FIRE MAINS to read as follows:

901.4.8 Fire Mains. Fire service mains bedding, backfill/initial backfilling for concrete steel cylinder pipe (CSC), ductile iron pipe (DI), and polyvinyl chloride pipe (PVC) in all nominal diameters shall be composed of sand, well graded crushed stone or gravel conforming to the following requirements unless modified by the engineer:

MODIFIED GRADE 5	*PERCENT*
Retained on ½" sieve	0%
Retained on ⅜" sieve	0—5%
Retained on No. 4 sieve	20—80%
Retained on No. 10 sieve	75—100%
Retained on No. 20 sieve	98—100%

The backfill shall be installed prior to the inspection, with the joints left exposed.

SECTION 901.5 ADMINISTRATION OF INSTALLATION ACCEPTANCE TESTING is amended to read as follows:

901.5 Administration of Installation Acceptance Testing. Fire protection and life safety systems and appurtenances thereto shall be subject to acceptance tests as contained in the installation standards and as approved by the fire code official. The fire code official shall be notified before any required acceptance testing. A representative of the Fire Marshal shall witness all required acceptance tests for all these systems.

SECTIONS 901.6.2.1 HIGH-RISE BUILDINGS and 901.6.2.2 SMOKE CONTROL SYSTEMS are amended to read as follows:

901.6.2.1 High-rise buildings. For high-rise buildings, an integrated testing plan shall 4 be approved by the fire code official, with an integrated test performed prior to issuance of the certificate of occupancy and at intervals not exceeding 10 years, unless otherwise specified by an integrated system test plan approved by the fire code official. If an equipment failure is detected during integrated testing, a repeat of the integrated test shall not be required, except as necessary to verify operation of fire protection or life safety functions that are initiated by equipment that was repaired or replaced.

901.6.2.2 Smoke control systems. Where a fire alarm system is integrated with a smoke control system as outlined in Section 909, an integrated testing plan shall be approved by the fire code official with an integrated test performed prior to issuance of the certificate of occupancy and at intervals not exceeding 10 years, unless otherwise specified by an integrated system test plan approved by the fire code official. If an equipment failure is detected during integrated testing, a repeat of the integrated test shall not be required, except as necessary to verify operation of fire protection or life safety functions that are initiated by equipment that was repaired or replaced.

SECTION 901 GENERAL is amended by adding SECTION 901.6.4 MAINTENANCE AGREEMENT to read as follows:

901.6.4 Maintenance Agreement. A maintenance agreement, as defined by Section 202, with a licensed fire protection company shall be provided to the Fire Marshal for each fire protection system at all times. Proof of a maintenance agreement shall be provided during any system acceptance test. Agreements for testing and inspection only as defined by Section 202 shall not be credited with having met this requirement.

SECTION 901.7 SYSTEMS OUT OF SERVICE is amended to read as follows:

901.7 Systems out of service. Where a required fire protection system is out of service, the fire department and the fire code official shall be notified immediately and, where required by the fire code official, the building shall either be evacuated or an approved fire watch shall be provided for all occupants left unprotected by the shutdown until the fire protection system has been returned to service.

Exception: Facilities with an approved notification and impairment management program. The notification and impairment program for water-based fire protection systems shall comply with NFPA 25.

A fire watch will be performed at all times that a system is taken out of service. Except for emergencies, the fire code official shall be given 72 hours notice before a system is voluntarily taken out of service. When, at the discretion of the Fire Chief or his designee, there is a life safety issue, uniformed employees of the San Antonio Fire Department or other fire watch personnel as approved by the Fire Chief, or his designee shall perform a fire watch. Fire watch personnel shall be provided with at least one approved means for notification to the fire department dispatch and their sole duty shall be to perform constant patrols and watch for safety hazards and occurrences of fire. The cost of the fire watch shall be at the current overtime rate for fire inspections and shall be the sole responsibility of the

owner/contractor to pay. The fire watch fee shall be paid to the City of San Antonio before final approval is granted on system work.

SECTION 903.1 GENERAL is amended by adding SECTION 903.1.2 SAFETY FACTOR to read as follows:

903.1.2 Safety factor. Automatic sprinkler systems shall be designed with a minimum safety factor of 5 PSI or 10% of required pressure (whichever is greater) taken at the source for the hydraulically most demanding design area.

SECTION 903.2 WHERE REQUIRED is amended to read as follows:

903.2 Where required. Approved automatic sprinkler systems in new buildings and structures shall be provided in the locations described in Sections 903.2.1 through 903.2.13. Where existing open buildings and structures are modified such that, they are no longer open on at least three sides and open to a minimum of 50% of the perimeter of the area covered, automatic sprinkler systems shall be installed for these change-in occupancies in accordance with the applicable requirements in this section. In order to be considered "open" for the purpose of this requirement, an open side shall be at least 50% open with the open area uniformly distributed to prevent the accumulation of smoke and toxic gases.

Exception: Spaces or areas in telecommunications buildings used exclusively for telecommunications equipment, associated electrical power distribution equipment, batteries not required to have an automatic sprinkler system by Section 1207 for energy storage systems and standby engines, provided that those spaces or areas are equipped throughout with an automatic smoke detection system in accordance with Section 907.2 and are separated from the remainder of the building by not less than 1-hour fire barriers constructed in accordance with Section 707 of the International Building Code or not less than 2-hour horizontal assemblies constructed in accordance with Section 711 of the International Building Code, or both.

SECTION 903.2.1 GROUP A is amended to read as follows:

903.2.1 Group A. An automatic sprinkler system shall be provided throughout buildings and portions thereof used as Group A occupancies as provided in this section. For Group A- 1, A-2, A-3 and A-4 occupancies, the automatic sprinkler system shall be provided throughout the story where the fire area containing the Group A-1, A-2, A-3 or A-4 occupancy is located, and throughout all stories from the Group A occupancy to, and including, the levels of exit discharge serving the Group A occupancy. For Group A-5 occupancies, the automatic sprinkler system shall be provided in the spaces indicated in Section 903.2.1.5.

Exception: A one-story detached open pavilion consisting of only a roof and supporting columns that meets all of the following criteria shall not require fire sprinklers.

1. The detached open pavilion is a Group A2, Group A3 or Group A4 Occupancy.
2. The detached open pavilion shall be less than 12,000 ft^2 in area.
3. The detached open pavilion shall be separated from adjacent structures by minimum of 30 feet.
4. The detached open pavilion is open on at least three sides and open a minimum of 50% of the perimeter of the area covered. In order to be considered "open" for the purpose of this exception, an open side shall be at least 50% open with the open area uniformly distributed to prevent the accumulation of smoke and toxic gases.
5. The detached open pavilion shall have a minimum of 300% of the total number of required exits and a minimum of 300% of total exit minimum width or required capacity based upon the occupant load of the pavilion.

SECTION 903.2.1.3 GROUP A-3 is amended to read as follows:

903.2.1.3 Group A-3. An automatic sprinkler system shall be provided throughout stories containing Group A-3 occupancies and

throughout all stories from the Group A-3 occupancy to and including the levels of exit discharge serving that occupancy where one of the following conditions exists:

1. The fire area exceeds 12,000 square feet (1115 m^2).
2. The fire area has an occupant load of 300 or more.
3. The fire area is located on a floor other than a level of exit discharge serving such occupancies.
4. Any Group A-3 occupancy that serves alcohol shall comply with the fire sprinkler requirements for Group A-2 Occupancies in section 903.2.1.2.

SECTION 903.2.2.2 LABORATORIES INVOLVING RESEARCH AND DEVELOPMENT OR TESTING is amended to read as follows:

903.2.2.2 Laboratories involving research and development or testing. An automatic sprinkler system shall be installed throughout the fire areas utilized for the research and development or testing of lithium-ion or lithium metal batteries.

Exception: If the standard testing conducted within the fire areas utilized for the research and development or testing of lithium-ion or lithium metal batteries would adversely affect an automatic sprinkler system installation, the fire code official may accept alternative means of protection of the fire area and surrounding areas without the requirement of an automatic sprinkler system.

SECTION 903.2.6 GROUP I is amended to read as follows:

903.2.6 Group I. An automatic sprinkler system shall be provided throughout buildings with a Group I fire area.

Exceptions:

1. An automatic sprinkler system installed in accordance with Section 903.3.1.2 shall be permitted in Group I-1, Condition 1 facilities.
2. An automatic sprinkler system is not required where Group I-4 child day care facilities are at the level of exit discharge and where every room where care is provided has not fewer than one exterior exit door.
3. In buildings where Group I-4 day care is provided on levels other than the level of exit discharge, an automatic sprinkler system in accordance with Section 903.3.1.1 shall be installed on the entire floor where care is provided, all floors between the level of care and the level of exit discharge and all floors below the level of exit discharge other than areas classified as an open parking garage.

SECTION 903.2.8 GROUP R is amended to read as follows:

903.2.8 Group R. An automatic sprinkler system installed in accordance with Section 903.3 shall be provided throughout all buildings with a Group R fire area.

Exception: FOSTER CARE FAMILY HOME as defined in Section 202 General Definitions.

SECTION 903.2.11.1.1 OPENING DIMENSIONS AND ACCESS is repealed and replaced with SECTION 903.2.11.1.1 OPENING DIMENSIONS AND ACCESS to read as follows:

903.2.11.1.1 Opening dimensions and access. Openings shall have a minimum dimension of not less than 30 inches (762 mm). Such openings shall be accessible to the fire department from the exterior and shall not be obstructed in a manner that firefighting or rescue cannot be accomplished from the exterior. Openings shall have a finished sill height of no more than 44 inches above the finished floor level of the story which the opening is serving.

SECTION 903.2 WHERE REQUIRED is amended by adding SECTION 903.2.13 PORTE COCHERES to read as follows:

903.2.13 Porte-cocheres. All porte-cocheres shall be protected with fire sprinklers.

Exceptions: Porte-cocheres of non-combustible construction under 1,000 square feet.

SECTION 903.3.1.1.1 EXEMPT LOCATIONS is amended to read follows:

903.3.1.1.1 Exempt locations. Automatic sprinklers shall not be required in the following rooms or areas where such rooms or areas are protected with an approved automatic fire detection system in accordance with Section 907.2 that will respond to visible or invisible particles of combustion. Sprinklers shall not be omitted from a room merely because it is damp, of fire-resistance-rated construction or contains electrical equipment.

1. A room or space where sprinklers constitute a serious life or fire hazard because of the nature of the contents, when approved by the fire code official.
2. Generator and transformer rooms separated from the remainder of the building by walls and floor/ceiling or roof/ceiling assemblies having a fire-resistance rating of not less than 2 hours.
3. Rooms or areas that are of noncombustible construction with wholly noncombustible contents.
4. Fire service access elevator machine rooms and machinery spaces.
5. Machine rooms, machinery spaces, control rooms and control spaces associated with occupant evacuation elevators designed in accordance with Section 3008 of the International Building Code.
6. Equipment storage areas of fire stations where sprinklers are considered undesirable because of the nature of the contents, including firefighting apparatus and specialized equipment, when approved by the fire code official.

SECTION 903.3.1.2.3 ATTICS is amended to read as follows:

903.3.1.2.3 Attics. Attic protection shall be provided as follows:

1. Attics that are used or intended for living purposes or storage shall be protected by an automatic sprinkler system.
2. Where fuel-fired equipment is installed in an unsprinklered attic, not fewer than one quick- response intermediate temperature sprinkler shall be installed above the equipment.
3. Where located in a building of Type III, Type IV or Type V construction designed in accordance with Section 510.2 or 510.4 of the International Building Code, attics not required by Item 1 to have sprinklers shall comply with one of the following if the roof assembly is located more than 55 feet (16 764 mm) above the lowest level of fire department vehicle access needed to meet the provisions in Section 503:

3.1 Provide automatic sprinkler system protection.

3.2 Construct the attic using noncombustible materials.

3.3 Construct the attic using fire-retardant-treated wood complying with Section 2303.2 of the International Building Code.

The height of the roof assembly shall be determined by measuring the distance from the lowest required fire vehicle access road surface adjacent to the building to the eave of the highest pitched roof, the intersection of the highest roof to the exterior wall, or the top of the highest parapet, whichever yields the greatest distance. For the purpose of this measurement, required fire vehicle access roads shall include only those roads that are necessary for compliance with Section 503.

4. Group R-4, Condition 2 occupancy attics not required by Item 1 to have sprinklers shall comply with one of the following:

4.1 Provide automatic sprinkler system protection.

4.2 Provide a heat detection system throughout the attic that is arranged to activate the building fire alarm system.

4.3 Construct the attic using noncombustible materials.

4.4 Construct the attic using fire-retardant-treated wood complying with Section 2303.2 of the International Building Code.

SECTION 903 AUTOMATIC SPRINKLER SYSTEMS is amended to add SECTION 903.3.1.2.4. ELEVATOR MACHINE ROOM, to read as follows:

903.3.1.2.4 Elevator machine room. In all R occupancies or occupancies using a 13R system with elevator systems, the elevator machine room shall be sprinklered per NFPA 13 standards.

SECTION 903.4.1 ELECTRONIC SUPERVISION is amended to read as follows:

903.4.1 Electronic supervision. Valves controlling the water supply for automatic sprinkler systems, pumps, tanks, water levels and temperatures, critical air pressures and waterflow switches on all automatic sprinkler systems shall be electrically supervised by a listed fire alarm control unit.

Exceptions:

1. Automatic sprinkler systems protecting one- and two-family dwellings.
2. Limited area sprinkler systems in accordance with Section 903.3.8, provided that backflow prevention device test valves located in limited area sprinkler system supply piping shall be locked in the open position unless supplying an occupancy required to be equipped with a fire alarm system, in which case the backflow preventer valves shall be electrically supervised by a tamper switch installed in accordance with NFPA 72 and separately annunciated.
3. Automatic sprinkler systems installed in accordance with NFPA 13R where a common supply main is used to supply both domestic water and the automatic sprinkler system, and a separate shutoff valve for the automatic sprinkler system is not provided.
4. Jockey pump control valves that are sealed or locked in the open position.
5. Control valves to commercial kitchen hoods, paint spray booths or dip tanks that are sealed or locked in the open position.
6. Valves controlling the fuel supply to fire pump engines that are sealed or locked in the open position.
7. Trim valves to pressure switches in dry, preaction and deluge sprinkler systems that are sealed or locked in the open position.
8. Underground key or hub gate valves in roadway boxes.
9. Valves located outside buildings or in a vault that are sealed or locked in the open position.

SECTION 903 AUTOMATIC SPRINKLER SYSTEMS is amended by adding SECTION 903.7 SEPARATION FROM NON- SPRINKLERED AREAS to read as follows:

903.7 Separation from non-sprinklered areas. Unless otherwise exempted by the International Building Code (IBC) or International Fire Code (IFC) or required to be of a higher fire resistive construction by the IBC or IFC, a minimum of one-hour fire barrier constructed in accordance with the International Building Code shall be between sprinklered and non-sprinklered areas within a building.

SECTION 904.2.2 COMMERCIAL HOOD AND DUCT SYSTEMS is amended by adding SECTION 904.2.2.1 PERMIT REQUIRED to read as follows:

904.2.2.1 Permit required. Prior to installation, a licensed contractor shall obtain a permit for automatic fixed pipe extinguishing system from the Fire Marshal's office. At the time a permit request is made, a diagram detailing exactly what will be installed at the "permit site" shall be submitted for Fire Department review and files. The diagram shall include:

1. Approximate length of pipe and elbows.
2. Distance of nozzles from grill area.
3. Exact size, type and number of nozzles.

4. Number and location of fusible links.
5. Size of cooking surface area, hood, and vent area.
6. Location of manual pull.
7. Location of automatic gas or electric shut-off, electric shut-off is to be a total shut-off.
8. The location of the automatic extinguishing system in the room and distance of exits must be shown.

The installation is not complete until all automatic electric or gas shutoffs are installed. Permittee is responsible for the total installation. The permittee shall call Fire Prevention for a final inspection after the system is completed. The fire inspector shall require an operations test of the system be performed on the final inspection. Agent discharge shall not be required if: (a) Installer certifies in writing that system has been designed and installed in accordance with manufacturers specifications, and (b) an air discharge test is performed.

SECTION 905.1 GENERAL is amended by adding SECTION 905.1.1 SAFETY FACTOR to read as follows:

905.1.1 Safety factor. All standpipe systems with the exception of manual standpipes shall be designed with a minimum safety factor of 5 PSI or 10% of required pressure (whichever is greater) taken at the source for the hydraulically most demanding system and/or outlet.

SECTION 905.2 INSTALLATION STANDARD is amended by adding SECTION 905.2.1 CLASS-I REDUCER to read as follows:

905.2.1 Class-I reducer. A 2.5-inch by 1.5-inch reducer shall be provided on Class-I standpipe connections with caps and chains.

SECTION 905.4 LOCATION OF CLASS I STANDPIPE HOSE CONNECTIONS is amended to read as follows:

905.4 Location of Class I standpipe hose connections. Class I standpipe hose connections shall be provided in all of the following locations:

1. In every required interior exit stairway or exterior exit stairway, a hose connection shall be provided for each story above and below grade plane. Hose connections shall be located at an intermediate landing between stories unless otherwise approved by the fire code official.
2. On each side of the wall adjacent to the exit opening of a horizontal exit.

   Exception: Where floor areas adjacent to a horizontal exit are reachable from an interior exit stairway or exterior exit stairway hose connection by a 30-foot (9144 mm) hose stream from a nozzle attached to 100 feet (30 480 mm) of hose, a hose connection shall not be required at the horizontal exit.
3. In every exit passageway, at the entrance from the exit passageway to other areas of a building.

   Exception: Where floor areas adjacent to an exit passageway are reachable from an interior exit stairway or exterior exit stairway hose connection by a 30-foot (9144 mm) hose stream from a nozzle attached to 100 feet (30 480 mm) of hose, a hose connection shall not be required at the entrance from the exit passageway to other areas of the building.
4. In covered mall buildings, adjacent to each exterior public entrance to the mall and adjacent to each entrance from an exit passageway or exit corridor to the mall. In open mall buildings, adjacent to each public entrance to the mall at the perimeter line and adjacent to each entrance from an exit passageway or exit corridor to the mall.
5. Where the roof has a slope less than 4 units vertical in 12 units horizontal (33.3-percent slope), a hose connection shall be located to serve the roof or at the highest landing of an interior exit stairway with access to the roof provided in accordance with Section 1011.12.
6. Where the most remote portion of a nonsprinklered floor or story is more than 150 feet (45 720 mm) from a hose

connection or the most remote portion of a sprinklered floor or story is more than 200 feet (60 960 mm) from a hose connection, the fire code official is authorized to require that additional hose connections be provided in approved locations.

SECTION 906.2 GENERAL REQUIREMENTS is amended by adding SECTION 906.2.2 TRAVEL DISTANCE to read as follows:

906.2.2 Travel distance. Travel distance is calculated from a point in the occupancy to the location of fire extinguisher located on the same floor level in accordance with the maximum distances listed in Table 906.3(1) or Table 906.3(2).

Travel distance is calculated per floor when determining travel distance to a fire extinguisher in multi- story buildings.

SECTION 906 PORTABLE FIRE EXTINGUISHERS is amended by adding SECTION 906.5.1 CONSPICUOUS LOCATIONS IN GROUP R OCCUPANCIES to read as follows:

906.5.1 Conspicuous locations in group R occupancies. In addition to other areas listed herein or in NFPA10, fire extinguishers in R occupancies may also be placed in any of the following locations to satisfy the requirements:

1. On a wall in the unit.
2. Inside a closet, cabinet or pantry.
3. Inside a mechanical closet; or
4. Inside a storage closet with no locking device on the door that would require a key or combination to open it.

If methods 2, 3, or 4 are utilized, the following must be done prior to or at the time of move-in:

1. A label or notice must be placed on the door to indicate there is a fire extinguisher inside the area; or
2. A notice disclosing the location of the fire extinguisher must be provided to the occupant.

SECTION 906 PORTABLE FIRE EXTINGUISHERS is amended by adding SECTION 906.11 INSPECTIONS OF NON-RECHARGEABLE FIRE EXTINGUISHERS IN GROUP R OCCUPANCIES to read as follows:

906.11 Inspections of non-rechargeable fire extinguishers in R occupancies. As an alternative to required fire extinguisher annual inspections conducted by licensed and certified personnel, the owner or management company, their employees or agents are authorized to inspect non-rechargeable fire extinguishers located in R occupancies on an annual basis to ensure that:

1. The extinguisher's service life is not beyond the manufacturer's recommended warranty date.
2. Pin has not been removed.
3. The indicator gauge is in the green or good position.
4. Installed in the proper location per section 906.5.
5. No obvious physical damage, corrosion, or nozzle blockage is present; and
6. The operating instructions are present and legible.

The owner or owner's agent shall repair or replace a fire extinguisher if any of the deficiencies noted in items 1-6 above are discovered on inspection.

While inspecting the non-rechargeable fire extinguishers, the inspection personnel shall cause the contents of the non-rechargeable fire extinguishers to be stirred by turning the fire extinguishers upside down at least two times.

In lieu of placing tags or labels on non-rechargeable fire extinguishers to verify inspection, a log or inspection sheet may be maintained indicating compliance with all the requirements above.

SECTION 907.1.2 FIRE ALARM SHOP DRAWINGS is repealed and replaced with SECTION 907.1.2 FIRE ALARM SHOP DRAWINGS to read as follows:

907.1.2 Fire alarm shop drawings. Shop drawings for fire alarm systems shall be submitted for review and approval prior to system installation, and shall include, but not be limited to, all of the following where applicable to the system being installed:

1. A floor plan that indicates the use of all rooms.
2. Locations of alarm-initiating devices.
3. Locations of alarm notification appliances, including candela ratings for visible alarm notification appliances and tap values for speakers when installed.
4. Design minimum audibility level for occupant notification.
5. Location of fire alarm control unit, transponders and notification power supplies.
6. Annunciators.
7. Power connections.
8. Battery calculations. Calculations shall be completed in accordance with NFPA 72, Sections 10.5.6.3.1 and 10.5.6.3.2.
9. Conductor type and sizes.
10. Voltage drop calculations. Calculations shall be completed using a maximum starting voltage of 20.4 volts for 24-volt systems and 10.2 volts for 12-volt systems.
11. Manufacturers' data sheets indicating model numbers and listing information for equipment, devices and materials.
12. Details of ceiling height and construction.
13. The interface of fire safety control functions.
14. Classification of the supervising station.
15. For in-building emergency voice alarm communication systems and mass notification systems, speaker circuit load calculations providing a total dB loss at the end of each speaker circuit.
16. Acoustically distinguishable space classifications and designations in accordance with NFPA 72, Chapter 18 indicated on the floor plans in each applicable area with a designation and classification legend provided in tabular form.
17. When utilizing acoustic modeling software to determine acoustically distinguishable spaces, include reports from the modeling software with the submittal package.
18. For aspirating smoke detection systems, full transport time calculations shall be provided with the submittal package.
19. For aspirating smoke detection systems, a dimensioned plan view and dimensioned isometric view of the protected area shall be provided with the submittal package.
20. For fire alarm control unit replacement projects, to include those with minor modifications to the existing system, that do not include the addition of initiating or signaling devices, with the exception of off premise communicators, a detailed fire alarm riser diagram that provides circuits and specific locations of all control equipment, annunciation equipment, power supplies, initiating and signaling devices shall be provided in the submittal package. Additionally, standby battery calculations for the new fire alarm control unit only, a scope of work narrative signed by the registered design professional in responsible charge or licensed planner, and a manufacturer's equipment data sheet for the new fire alarm control unit shall be provided in the submittal package. If a floor plan that reflects the configuration of the existing system is available, it shall be permitted to be submitted in lieu of the detailed riser diagram.

SECTION 907.1 GENERAL is amended by adding SECTION 907.1.4 TESTING OF FIRE ALARM SYSTEMS to read as follows:

907.1.4 Testing of Fire Alarm Systems. The following are required at the time of fire alarm acceptance testing unless approved by the Fire Marshal or his/her designee:

1. The written statement required by NFPA 72, Section 7.2.1.
2. A copy of the Record of Completion as required by NFPA 72, Section 7.2.1.
3. A copy of the Texas Department of Insurance Fire Alarm Installation Certificate.
4. Approved plans bearing the original stamp and signature of the fire alarm plan reviewer.
5. Original permit is on site.
6. Fire Review Activity form (plan review comments) if provided.
7. Proof of current licensing of the technician performing the tests.
8. Written approvals from the AHJ if partial installation inspections are requested by the contractor or technician.
9. Site specific software for software-based systems.
10. Written sequence of operation.
11. All testing equipment necessary to conduct the test (i.e., decibel meter, flashlight, intelligibility meter, etc.).

SECTION 907.2.1.2 EMERGENCY VOICE/ ALARM COMMUNICATION SYSTEM CAPTIONS is repealed.

SECTION 907.2.2.2 LABORATORIES INVOLVING RESEARCH AND DEVELOPMENT OR TESTING is amended to read as follows:

907.2.2.2 Laboratories involving research and development or testing. A fire alarm system activated by an air-sampling-type smoke detection system or a radiant-energy-sensing detection system shall be installed throughout the entire fire area utilized for the research and development or testing of lithium-ion or lithium metal batteries.

Exception: If the standard testing conducted within the fire areas utilized for the research and development or testing of lithium-ion or lithium metal batteries would adversely affect a fire alarm system installation and detection system, the fire code official may accept alternative means of detection and notification of the fire area and surrounding areas without the requirement of a fire alarm system, air-sampling-type smoke detection system, or radiant-energy-sensing detection system.

SECTION 907.2.3 GROUP E is amended to read as follows; all other code text remains as is:

907.2.3 Group E. A manual fire alarm system that initiates the occupant notification signal utilizing an emergency voice/alarm communication system meeting the requirements of Section 907.5.2.2 and installed in accordance with Section 907.6 shall be installed in all newly constructed Group E occupancy campus complexes. Where automatic sprinkler systems or smoke detectors are installed, such systems or detectors shall be connected to the building fire alarm system.

SECTION 907.2.7.1.1 OCCUPANT NOTIFICATION is repealed.

SECTION 907.2.8.2 AUTOMATIC SMOKE DETECTION SYSTEM is amended to read as follows:

907.2.8.2 Automatic smoke detection system. An automatic smoke detection system that activates the occupant notification system in accordance with Section 907.5 shall be installed throughout all interior corridors serving sleeping units. The automatic smoke detection system requirement is met only by the installation of smoke or beam detectors whenever possible. If environmental conditions do not allow the installation of smoke detectors, fire alarm heat detectors may be used on a limited basis when approved by the fire code official.

Exception: An automatic smoke detection system is not required in buildings that do not have interior corridors serving sleeping units and where each sleeping unit has a means of

egress door opening directly to an exit or to an exterior exit access that leads directly to an exit.

SECTION 907.2.13.1.2 DUCT SMOKE DETECTION is repealed and replaced with SECTION 907.2.13.1.2 DUCT SMOKE DETECTION to read as follows:

907.2.13.1.2 Duct smoke detection. Duct smoke detectors complying with Section 907.3.1 shall be located in accordance with the National Fire Protection Association standard NFPA 90A: Standard for the Installation of Air-Conditioning and Ventilating Systems or as follows:

1. In the main return air and exhaust air plenum of each air-conditioning system having a capacity greater than 2,000 cubic feet per minute (cfm) (0.94 m3/s). Such detectors shall be located in a serviceable area downstream of the last duct inlet.
2. At each connection to a vertical duct or riser serving two or more stories from a return air duct or plenum of an air-conditioning system. In Group R-1 and R-2 occupancies, a smoke detector is allowed to be used in each return air riser carrying not more than 5,000 cubic feet per minute (cfm) (2.4 m3/s) and serving not more than 10 air-inlet openings.

SECTION 907.2.13.2 FIRE DEPARTMENT COMMUNICATION SYSTEM is repealed.

SECTION 907 FIRE ALARM AND DETECTIONS SYSTEMS is amended by adding SECTION 907.2.24 FIRE ALARM SYSTEMS FOR PROPERTY PROTECTION to read as follows:

907.2.24 Fire alarm systems for property protection. Fire alarm systems dedicated solely to the protection of property are permitted to be installed in facilities where a fire alarm system is not required by other sections of this code, or the International Building Code provided the following conditions are met:

1. Any and all automatic detection is installed, located and maintained in accordance with the requirements of NFPA 72 and a documentation cabinet as required by NFPA 72 is provided and installed.
2. The installed system is monitored by a supervising station which provides remote, proprietary or central station service.
3. One manual means of activation is installed in an approved location.
4. Where the fire alarm system control unit is located in an area that is not readily accessible to response personnel, a remote fire alarm system annunciator panel is installed.

SECTION 907.3.1 DUCT SMOKE DETECTORS is repealed and replaced by SECTION 907.3.1 DUCT SMOKE DETECTORS to read as follows:

907.3.1 Duct smoke detectors. Smoke detectors installed in ducts shall be listed for the air velocity, temperature and humidity present in the duct. Duct smoke detectors shall be connected to the building's fire alarm control unit when a fire alarm system is required by Section 907.2. Activation of a duct smoke detector shall initiate a visible and audible supervisory signal at a constantly attended location and shall perform the intended fire safety function in accordance with this code, NFPA 90A: Standard for the Installation of Air-Conditioning and Ventilating Systems and the International Mechanical Code. In facilities that are required to be monitored by a supervising station, duct smoke detectors shall report only a supervisory signal and not as a fire alarm. They shall not be used as a substitute for required open area detection.

Exceptions:

1. In occupancies not required to be equipped with a fire alarm system, actuation of a smoke detector shall activate a visible and an audible signal in an approved location. Smoke detector trouble conditions shall activate a visible or audible signal in an approved location and shall be identified as air duct detector trouble.

2. For fire alarm systems which cannot be programmed for supervisory signals, duct detectors shall be allowed to activate the alarm signal.

SECTION 907 FIRE ALARM AND DETECTIONS SYSTEMS is amended by adding SECTION 907.3.5 FIRE ALARM SYSTEMS - EMERGENCY CONTROL to read as follows:

907.3.5 Fire alarm systems - Emergency Control. At a minimum, the following functions, where provided, shall be activated by the fire alarm system:

1. Elevator capture and control, in accordance with ASME/ANSI A17.1, Safety Code for Elevators and Escalators.
2. Release of automatic door closures and hold open devices.
3. Stairwell and/or elevator shaft pressurization.
4. Smoke management and/or smoke control systems.
5. Initiation of automatic fire extinguishing equipment.
6. Emergency lighting control.
7. Unlocking of doors.
8. Emergency shutoff of gas and fuel supplies that may be hazardous provided the continuation of service is not essential to the preservation of life.
9. Emergency shutoff of audio systems for sound reinforcement or entertainment (i.e. music systems, systems for announcement and broadcast which are separate from public address systems) provided that such systems are not used to issue emergency instructions.
10. Emergency shutoff of systems used for the creation of displays or special effects (i.e. lighting effects, laser light shows, projection equipment)

SECTION 907.4.2.1 LOCATION is amended to read as follows:

907.4.2.1 Location. Manual fire alarm boxes shall be located not more than 5 feet (1524 mm) from the entrance to each exit. In buildings not protected by an automatic sprinkler system in accordance with Section 903.3.1.1 or 903.3.1.2, additional manual fire alarm boxes shall be located so that the distance of travel to the nearest box does not exceed 200 feet (60 960 mm).

Exception: Where construction of the building prohibits the proper installation of a manual fire alarm box (e.g., glass walls, interior brick or rock walls), a manual fire alarm box shall be allowed to be located in the normal path of egress, where approved by the Fire Marshal or his/her designee.

SECTION 907.5.1.1 PRESIGNAL FEATURE is repealed and is replaced by SECTION 907.5.1.1 PRESIGNAL FEATURES AND POSITIVE ALARM SEQUENCES to read as follows:

907.5.1.1 Presignal features and positive alarm sequences. A presignal feature or Positive Alarm Sequence as defined in NFPA 72 shall not be installed unless approved by the fire code official and the fire department. Request to use a Presignal feature, or a Positive Alarm Sequence must be submitted in writing to the Fire Marshal and approval granted before installation. Where a Presignal feature or Positive Alarm Sequence is provided, a signal shall be annunciated at a constantly attended location approved by the fire code official, so that occupant notification can be activated in the event of fire or other emergency. When approved by the fire code official, the Presignal feature, or Positive Alarm Sequence shall be implemented in accordance with the requirements of NFPA 72.

SECTION 907.5.2.1 AUDIBLE ALARMS is amended by adding SECTIONS 907.5.2.1.4 TESTING OF AUDIBLE ALARMS IN OCCUPANCIES OTHER THAN GROUP R and 907.5.2.1.5 TESTING OF AUDIBLE ALARMS IN GROUP R OCCUPANCIES to read as follows:

907.5.2.1.4 Testing of audible alarms in occupancies other than Group R. Audibil-

ity levels for all occupancies other than Group R shall be in accordance with the public mode requirements of NFPA 72, and shall be tested utilizing the following criteria:

1. A sound pressure level meter, which has been calibrated within the last calendar year, and supplied by the fire alarm system installing contractor, shall be utilized to obtain readings. The sound pressure level meter will be held five feet above floor, pointed in the direction of the audible device.

2. All doors within the occupancy, including bathroom doors and balconies, shall be in the closed position.

3. Measurements shall be taken in the most remote areas of the occupancy first, including bathrooms and balconies.

4. Initial measurements to confirm the average ambient sound level in each area shall be taken.

5. The fire alarm system shall be activated and measurements in the tested areas shall be retaken and compared with the requirements.

907.5.2.1.5 Testing of audible alarms in Group R occupancies. Audibility levels for all Group R occupancies shall be in accordance with the requirements of Section 907.5.2.1.1, and shall be tested utilizing the following criteria:

1. A sound pressure level meter, which has been calibrated within the last calendar year, and supplied by the fire alarm system installing contractor, shall be utilized to obtain readings. The audiometer will be held five feet above floor, pointed in the direction of the audible device.

2. All doors within the occupancy, including the bathroom and balcony doors shall be in the closed position.

3. Ambient sound level shall be established with the television set at 50 percent of maximum volume, showers running, bathroom exhaust systems running, and air conditioning units running.

4. Levels shall be taken in the most remote area of the dwelling or sleeping unit first, including bathrooms and balconies.

5. Initial readings to confirm the ambient sound level in each area shall be taken.

6. The fire alarm system shall be activated and readings in the tested areas shall be retaken and compared with the requirements.

SECTION 907.5.2.2, EMERGENCY VOICE/ALARM COMMUNICATION SYSTEMS is amended to read as follows:

907.5.2.2 Emergency voice/alarm communication systems. Emergency voice/alarm communication systems required by this code shall be designed and installed in accordance with NFPA 72. The operation of any automatic fire detector, sprinkler waterflow device or manual fire alarm box shall automatically sound an alert tone followed by voice instructions giving approved information and directions for a general or staged evacuation in accordance with the building's fire safety and evacuation plans required by Section 404 of the International Fire Code. In high-rise buildings, the system shall operate on a minimum of the alarming floor, the floor above and the floor below. If the system is not reset after five minutes, the building shall sound the general evacuation signal and message in all zones unless an alternative Positive Alarm Sequence has been approved by the Fire Marshal. Speakers shall be provided throughout the building by paging zones. At a minimum, paging zones shall be provided as follows:

1. Elevator groups.

2. Interior exit stairways.

3. Each floor.

4. Areas of refuge as defined in Chapter 2.

Exception: In Group I-1 and I-2 occupancies, the alarm shall sound in a constantly attended area and a general occupant notification shall be broadcast over the overhead page.

SECTION 907.5.2.2.4 EMERGENCY VOICE/ ALARM COMMUNICATION CAPTIONS is repealed.

SECTION 907.5.2.3.1 PUBLIC USE AREAS AND COMMON USE AREAS is amended to read as follows:

907.5.2.3.1. Public use areas and common use areas. Visible alarm notification appliances shall be provided in public use areas and common use areas as defined in Chapter 2.

Exceptions:

1. Where employee work areas have audible alarm coverage, the notification appliance circuits serving the employee work areas shall be initially designed with not less than 20-percent spare capacity to account for the potential of adding visible notification appliances in the future to accommodate hearing- impaired employee(s). For the purpose of this code, cold storage areas (e.g., walk-in coolers and freezers), mechanical and/or electrical rooms, main distribution and intermediate distribution frame (MDF/ IDF) rooms are considered employee work areas.

2. Visible notification appliances are not required in storage rooms or closets with an area of less than one hundred (100) square feet (9.29 square meters), except for clean or soiled utility and clean or soiled linen rooms in Institutional Group I occupancies. NOTE: this exception does not apply to requirements set forth by entities other than the City of San Antonio (e.g., Texas Department of Licensing and Regulation enforcing the requirements of the Texas Accessibility Standards, Texas Department of State Health Services enforcing licensing of health care facilities in the State of Texas, or the Joint Commission, formerly the Joint Commission on Accreditation of Healthcare Organizations).

SECTION 907.5.2.3.3.1 WIRED EQUIPMENT is amended to read as follows:

907.5.2.3.3.1 Wired equipment. Where wired equipment is used to comply with the future capability required by Section 907.5.2.3.3, the system shall include one of the following capabilities:

1. The replacement of audible appliances with combination audible/visible appliances or additional visible notification appliances.

2. The future extension of the existing wiring from the unit smoke alarm locations to required locations for visible appliances.

3. For wired equipment, the fire alarm power supply and circuits shall have not less than 5-percent excess capacity to accommodate the future addition of visible alarm notification appliances, and a single access point to such circuits shall be available on every story. Such circuits shall not be required to be extended beyond a single access point on a story. The fire alarm system shop drawings required by Section 907.1.2 shall include the power supply and circuit documentation to accommodate the future addition of visible notification appliances.

4. Extension of the fire alarm wiring to all living areas, restrooms, and sleeping areas of all dwelling units. The wiring must terminate in an electrical box suitable for securely mounting an audible/visible appliance. The fire alarm system shop drawings required by Section 907.1.2 shall include the power supply and circuit documentation to accommodate the extension of the wiring.

5. Where 200 percent of the visual alarms required in Table 907.5.2.3.2 for Groups I-1 and R-1 occupancies are provided in selected dwelling units, the selection of the dwelling units to be so equipped shall be at the discretion of the facility owner.

Any dwelling units required to be equipped with audible/visual appliances to provide accessibility in accordance with Department of Housing and Urban Development rules, Americans with Disabilities Act Accessibility Guidelines or Texas Accessibility Standards are permitted to be included in the 200 percent total. The use of this exception requires the facility owner to sign and return the notarized SAFD Form 6007 (Letter of Understanding), which may be obtained from Development Services or the San Antonio Fire Department Office of the Fire Marshal.

SECTION 907.5.2.3 VISIBLE ALARMS is amended by adding SECTION 907.5.2.3.4 GROUP R-2 SLEEPING AREAS and SECTION 907.5.2.3.5 COMBINATION DEVICES to read as follows:

907.5.2.3.4 Group R-2 sleeping areas. Living rooms in Group R-2 Occupancies shall have audible notification appliances that meet the sleeping area audible requirements of NFPA 72, Chapter 18, Section 18.4.5, Subsection 18.4.5.1 When such units are required to be equipped with visible notification for the hearing impaired or when such units are designated as accessible in accordance with ICC/ANSI A117.1 combination audible and visible notification appliances that meet both the sleeping area audible requirements of NFPA 72, Chapter 18, Section 18.4.5 Subsection 18.4.5.1 and the effective intensity settings of NFPA 72, Chapter 18.5.5.1 shall be installed.

907.5.2.3.5 Combination devices. Combination 120 VAC single or multiple-station smoke detectors with an onboard visible notification appliance if utilized to meet the requirements of Section 907.2.11, will not be given credit for meeting the visible alarm notification requirements of Section 907.5.2.3.3 if these devices do not have the capability of supplying backup power for the visible notification appliance portion of the device. Should such devices be utilized to comply with Section 907.2.11, the visible appliance side of the device shall flash in synchronization with the notification appliances required in the unit.

SECTION 907.6.3 INITIATING DEVICE IDENTIFICATION is amended to read as follows; all other code text remains as is:

907.6.3 Initiating device identification. The fire alarm system shall identify the specific initiating device address, location, device type, floor level where applicable and status including indication of normal, alarm, trouble and supervisory status, to the fire alarm panel, annunciator panel and to the supervising station, as appropriate.

SECTION 907 FIRE ALARM AND DETECTION SYSTEMS is amended by adding SECTION 907.11 ALARM SIGNAL SILENCING SWITCH to read as follows:

907.11 Alarm signal silencing switch. A switch for silencing the alarm signal sounding appliances shall be permitted only if it is key operated, located within a locked cabinet, or requires special knowledge. Such a switch shall be permitted only if visible zone alarm indication or equivalent has been provided by approved annunciation, printout, or other approved means, and subsequent alarms on other initiating devices circuits will cause the audible alarm signaling appliances to resound. A switch that is left in the "silence" position when there is no alarm shall operate trouble signals until the switch is restored to normal.

SECTION 908.3 FIRE ALARM SYSTEM INTERFACE is amended to read as follows:

908.3 Fire alarm system interface. Where an emergency alarm system is provided, it shall be interfaced with the building's fire alarm system, and the signal produced at the fire alarm control unit shall be a supervisory signal.

SECTION 912.2.1 VISIBLE LOCATION is amended to read as follows:

912.2.1 Visible location. Fire department connections shall be located on the street side of buildings or facing approved fire apparatus access roads, fully visible and recognizable from the street, fire apparatus access road or nearest point of fire department vehicle access or as otherwise approved by the fire code official. The fire department connection shall

be identified by a sign installed above the connection with the letters "FDC" not less than 6 inches high and mounted no lower than 7 feet from grade to the bottom edge of the sign unless approved by the fire code official.

SECTION 912.2.2 EXISTING BUILDINGS is amended to read as follows:

912.2.1 Existing buildings. On existing buildings, wherever the fire department connection is not visible to approaching fire apparatus, the fire department connection shall be indicated by an approved sign mounted on the street front or on the side of the building. Such sign shall have the letters "FDC" not less than 6 inches (152 mm) high, words in letters not less than 2 inches (51 mm) high or an arrow to indicate the location and mounted no lower than 7 feet from grade to the bottom edge of the sign. Such signs shall be subject to the approval of the fire code official.

SECTION 912.4.1 LOCKING FIRE DEPARTMENT CONNECTION CAPS is repealed and replaced with SECTION 912.4.1 LOCKING FIRE DEPARTMENT CONNECTION CAPS to read as follows:

912.4.1 Locking fire department connection caps. FDC shall have locking caps in the following areas/occupancies: The area described in section 11-37 of these amendments, Group A, E, I occupancies, High-Rise buildings, and any other location a fire code official determines that a locking cap would be necessary and/or beneficial for firefighting needs.

SECTION 912 FIRE DEPARTMENT CONNECTIONS is amended by adding SECTION 912.8 LOCATION AND TYPE and TABLE 912.8 to read as follows:

912.8 Location and type. Sprinkler system and standpipe fire department hose connections shall be as follows:

1. Within forty (40) feet of a public street, approved fire lane, or access roadway.
2. Within 250 feet of an approved fire hydrant measured per hose lay criteria in Section 507.5.1.2, except for R-2 Apartments in which the fire department connection shall be within 500 feet of an approved fire hydrant measured per hose lay criteria in Section 507.5.1.2.
3. Minimum of two feet above finished grade and a maximum of four feet above finished grade for standard inlets and minimum of 30 inches at lowest point above finished grade and maximum of four feet above finished grade for the five inch "Storz" inlet.
4. Freestanding FDCs shall be installed a minimum of one foot, and a maximum of seven feet, from the gutter face of the curb.
5. The Fire Code Official shall approve the location of freestanding fire department connections. Freestanding FDCs must be physically protected against impact per the requirements of Section 312 or other approved means.
6. Where provided, the five inch "Storz" inlet shall be installed at a 30-degree angle pointing down.
7. Fire department connections for H occupancies shall be freestanding, remote and located as determined by the fire code official.
8. Fire department connections for systems protecting fuel storage tanks shall be freestanding, remote and located as determined by the fire code official; and
9. See Table 912.8 - FDCs Required, by System Type

Table 912.8 - FDCs Required, by System Type

Sprinkler Systems Wet/Dry	Either a 5-inch Storz inlet or (2) 2 ½-inch inlets		Buildings or multiple attached buildings that exceed 900 feet (274.3 m) perimeter distance shall have at least two (2) remotely located fire department connections (FDCs) physically separated to the furthest extent possible
Standpipes Auto Wet/Dry Semi-Auto Dry		Either a 5-inch Storz or (2) 2 ½ - inch inlets	
Standpipes: Manual Wet Manual Dry			A 5-inch Storz inlet for the first 1000 gallons system demand and an additional 2 ½ - inch inlet for every 250-gallon demand or portion thereof
Standpipes: All High-Rise Buildings			Two Fire Dept. Connections (FDCs) shall be provided for each zone, located either on opposite corners of the building where fire department apparatus access is provided, or where not possible, physically separated to the greatest extent possible. In accordance with NFPA 14.7.12.2.2

There shall be no more than one Storz connection in any configuration *One (1) 2.5-inch inlet is required for all systems designed per NFPA 13R. If the system demand is greater than 250 GPM, two (2) 2.5-inch inlets are required to be installed. No FDC is required for projects designed per NFPA 13D.

SECTION 915.1 GENERAL is amended to read as follows:

915.4 General. Carbon monoxide (CO) detection shall be installed in new buildings in accordance with Section 915.1.1. Carbon monoxide detection shall be installed in existing buildings in accordance with Section 1103.9.

SECTION 915.4.4 INTERCONNECTION is amended to read as follows:

915.4.4 Interconnection. Where more than one carbon monoxide alarm is required to be installed, carbon monoxide alarms shall be interconnected in such a manner that the actuation of one alarm will activate all of the alarms throughout the dwelling unit or sleeping unit. Physical interconnection of carbon monoxide alarms shall not be required where listed wireless alarms are installed and all alarms sound upon activation of one alarm.

SECTION 1003 GENERAL MEANS OF EGRESS is amended by adding SECTION 1003.8 SPECIAL PROVISIONS to read as follows:

1003.8 Special provisions. Rooms in E occupancies used for kindergarten or daycare, children five or under, classified as an E occupancy shall not be located above or below the first story.

Exceptions:

1. Basements or stories having floor levels located within four feet, measured vertically, from adjacent ground level at the level of exit discharge, provided the basement or story has exterior exit doors at that level.
2. In buildings equipped with an automatic sprinkler system throughout, rooms used for kindergarten or for daycare purposes may be located on the second story, provided there are at least two exterior exit doors for the exclusive use of such occupancies.

SECTION[BE]1004.5 AREAS WITHOUT FIXED SEATING is amended to read as follows:

1004.5 Areas without fixed seating. The number of occupants shall be computed at the rate of one occupant per unit of area as prescribed in Table 1004.5. For areas without fixed seating, the occupant load shall not be less than that number determined by dividing the floor area under consideration by the occupant load factor assigned to the function of the space as set forth in Table 1004.5. Where an intended function is not listed in Table 1004.5, the Building Official shall establish a function based on a listed function that most nearly resembles the intended function. When the calculated number is not a whole number, it is required to round up to the next whole number for determination of the occupant load of a space.

Exception: Where approved by the Building Official, the actual number of occupants for whom each occupied space, floor or building is designed, although less than those determined by calculation, shall be permitted to be used in the determination of the design occupant load.

SECTION [B]1008.3 ILLUMINATION REQUIRED BY AN EMERGENCY ELECTRICAL SYSTEM is amended by adding SECTION 1008.3.3 ILLUMINATION IN GROUP E to read as follows:

1008.3.3 Illumination in Group E. Group E occupancies shall have emergency lighting in interior stairs, corridors, windowless areas with student occupancy, shops, and laboratories.

SECTION 1009, ACCESSIBLE MEANS OF EGRESS is repealed and replaced with a new SECTION 1009 to read as follows:

1009 ACCESSIBLE MEANS OF EGRESS. All buildings or portions of buildings must comply with the accessibility standards adopted by the State. Projects shall be submitted to the Texas Department of Licensing and Regulation for review, inspection and approval in accordance with state law.

SECTION 1025 LUMINOUS EGRESS PATH MARKINGS is amended by adding an additional exception to read as follows:

[BE] 1025.1 General. Approved luminous egress path markings delineating the exit path shall be provided in high-rise buildings of Group A, B, E, I-1, M or R-1 occupancies in accordance with this section.

Exceptions:

1. Luminous egress path markings shall not be required on the level of exit discharge in lobbies that serve as part of the exit path in accordance with Section 1028.2, Exception 1.
2. Luminous egress path markings shall not be required where integral battery backup lighting is installed within an interior exit stairway and is capable of indicating a failure and relaying that notification to a supervised system.

SECTIONS 1103.4.2 THREE TO FIVE STORIES, 1103.4.4 ATRIUMS AND COVERED MALLS, 1103.4.5 ESCALATORS IN GROUP B AND M OCCUPANCIES, AND 1103.4.6 ESCALATORS CONNECTING FOUR OR FEWER STORIES are repealed.

SECTION 1103.5.1 GROUP A-2 is amended to read as follows:

1103.5.1 Group A-2. Where alcoholic beverages are consumed in a Group A-2 occupancy identified as a Night Club as defined by this code and having an occupant load of 300 or more, the fire area containing the Group A-2 occupancy shall be equipped with an automatic sprinkler system in accordance with Section 903.3.1.1. Occupancies shall have 5 years from October 1, 2018, to comply with the fire sprinkler installation requirements.

SECTION 1103.7.5.1 Group R-1 HOTEL AND MOTEL MANUAL FIRE ALARM SYSTEM is repealed and replaced with 1103.7.5.1 GROUP R-1 HOTEL AND MOTEL MANUAL FIRE ALARM SYSTEM to read as follows:

1103.7.5.1 Group R-1 hotel and motel manual fire alarm system. A manual fire alarm system that activates the occupant

notification system in accordance with Section 907.5 shall be installed in existing Group R-1 hotels and motels more than three stories or with more than 20 sleeping units.

Exceptions:

1. Buildings less than two stories in height where all sleeping units, attics and crawl spaces are separated by a 1-hour fire-resistance-rated construction and each sleeping unit has direct access to a public way, egress court or yard.
2. Manual fire alarm boxes are not required throughout the building where the following conditions are met:

2.1 The building is equipped throughout with an automatic sprinkler system installed in accordance with Section 903.3.1.1 or 903.3.1.2.

2.2 The notification appliances will activate upon sprinkler water flow.

2.3 Not less than one manual fire alarm box installed at an approved location.

SECTION 1103.7.6 GROUP R-2 is repealed and replaced with 1103.7.6 GROUR R-2 to read as follows:

1103.7.6 Group R-2. A manual fire alarm system that activates the occupant notification system in accordance with Section 907.5 shall be installed in existing Group R-2 occupancies if the dwelling units or sleeping units are served by an interior corridor and the building is either more than three stories in height or contains more than 16 dwelling or sleeping units. Group R-2 occupancies shall have until October 1, 2023, to comply with the manual fire alarm system retrofit requirements.

Exceptions:

1. Where each living unit is separated from other contiguous living units by fire barriers having a fire-resistance rating of not less than .75 hour, and where each living unit has either:

1.1. Its own independent exit or its own independent stairway or ramp discharging at grade;

1.2. Its own independent exit directly to the exterior of the building that is connected to an exterior balcony with a stairway or ramp discharging at grade; or

1.3. Its own independent egress directly to the exterior of the building at grade.

2. A separate fire alarm system is not required in buildings that are equipped throughout with an approved supervised automatic sprinkler system installed in accordance with Section 903.3.1.1 or 903.3.1.2.

3. Where the interior corridor serves less than 5 units in a building that is two stories or less and is equipped with sealed battery or electric smoke alarms installed on the ceiling at the highest point of the interior corridor, interconnected with smoke alarm (s) located somewhere in the sleeping or dwelling units served by the corridor, and the corridor shall be equipped with emergency lighting. Occupancies utilizing this exception must register with the San Antonio Fire Department Office of the Fire Marshal for an inspection when installation is complete.

SECTION 1103.8 SINGLE AND MULTIPLE-STATIONSMOKE ALARMS is amended to read as follows:

1103.8 Single- and multiple-station smoke alarms. Single-and multiple-station smoke alarms shall be installed in existing Group I-1 and R occupancies in accordance with Sections 1103.8.1 through 1103.8.3.

Exception: All R3 occupancies not used for commercial purposes, including duplexes and houses for rent.

SECTION 1103.8.1 WHERE REQUIRED is repealed and replaced with SECTION 1103.8.1 WHERE REQUIRED to read as follows:

1103.8.1 Where required. Existing Group I-1 and R occupancies shall be provided with single-station smoke alarms in accordance with Section 907.2.11, except as provided in Section 1103.8.2 and 1103.8.3.

Exception: Where smoke detectors connected to a fire alarm system have been installed as a substitute for smoke alarms if installed in all sleeping areas as prescribed in 907.2.11.

SECTION 1103.8.2 INTERCONNECTION is repealed and replaced with SECTION 1103.8.2 INTERCONNECTION to read as follows:

1103.8.2 Interconnection. Where more than one smoke alarm is required to be installed within an individual dwelling or sleeping unit, the smoke alarms shall be interconnected in such a manner that the activation of one alarm will activate all of the alarms in the individual unit. The alarm shall be clearly audible in all bedrooms over background noise levels with all intervening doors closed.

Exceptions:

1. Interconnection is not required in buildings that are not undergoing alterations.
2. Smoke alarms in existing areas are not required to be interconnected where alterations do not result in the removal of interior wall or ceiling finishes exposes the structure.

SECTION 1103.8.3 POWER SOURCE is amended to read as follows:

1103.8.3 Power source. Single-station smoke alarms shall receive their primary power from the building wiring provided that such wiring is served from a commercial source and shall be equipped with a battery backup. Smoke alarms with integral strobes that are not equipped with battery backup shall be connected to an emergency electrical system. Smoke alarms shall emit a signal when the batteries are low. Wiring shall be permanent and without a disconnecting switch other than as required for overcurrent protection.

Exceptions:

1. Smoke alarms are permitted to be solely battery operated in existing buildings where construction is not taking place.
2. Smoke alarms are permitted to be solely battery operated in buildings that are not served from a commercial power source.
3. Smoke alarms are permitted to be solely battery operated in existing areas of buildings undergoing alterations or repairs that do not result in the removal of interior walls or ceiling finishes exposing the structure, unless there is an attic, crawl space or basement available that could provide access for building wiring without the removal of interior finishes.
4. In all R-2 occupancies, smoke alarms are permitted to be solely battery operated if added to comply with Section 1103.8.
5. In all R-2 occupancies, smoke alarms are permitted to be operated solely from the building wiring if installed prior to October 1, 2018.

SECTION 1103.9 CARBON MONOXIDE DETECTION is amended by adding SECTION 1103.9.1 CARBON MONOXIDE ALARMS IN EXISTING R—2 OCCUPANCIES to read as follows:

1103.9.1 Carbon monoxide alarms in existing R-2 occupancies. Carbon monoxide alarms shall be installed in all existing Group R-2 dwelling units and sleeping units where any of the following conditions apply:

1. If the code that was in effect at the time of construction required carbon monoxide detectors to be provided.
2. Dwelling units and sleeping units located in buildings that contain fuel-burning appliances servicing multiple dwelling units or sleeping units.

   Dwelling units and sleeping units shall have one year from October 1, 2018 to comply with the Carbon Monoxide Alarms retrofit requirements.

Installation:

If the code that was in effect at the time of construction required carbon monoxide alarms to be provided, they shall be installed in accordance with that code.

If the code that was in effect at the time of construction did not require carbon monoxide alarms to be provided, carbon monoxide alarms are permitted to be solely battery operated or plugged into an existing electrical plug. Carbon

monoxide alarms are permitted to be solely battery operated in dwelling units that are not served from a commercial power source. Carbon monoxide alarms are permitted to be a combination of smoke and carbon monoxide alarms.

Exceptions:

1. A carbon monoxide detection system in accordance with Section 915.5 shall be an acceptable alternative to carbon monoxide alarms.
2. Carbon monoxide detection shall not be required in individual dwelling units or sleeping units where an electric or sealed battery carbon monoxide alarm is provided in the room(s) containing the fuel-burning appliance serving multiple dwelling units or sleeping units and the unit(s) immediately adjacent to the room containing the fuel-burning appliance serving multiple dwelling units or sleeping units.

SECTION 1104.1 GENERAL is repealed and replaced with SECTION 1104.1 GENERAL to read as follows:

1104.1 General. Means of egress in existing buildings shall comply with the minimum egress requirements when specified in Table 1103.1 as further enumerated in Sections 1104.2 through 1104.25, or the building code that applied at the time of construction, if in the opinion of the fire code official, they do not constitute a distinct hazard to life. Existing buildings that were not required to comply with a building code at the time of construction shall comply with the minimum egress requirements when specified in Table 1103.1 as further enumerated in Sections 1104.2 through 1104.25 and, in addition, shall have a life safety evaluation prepared, consistent with the requirements of Section 403.2.10 and 403.2.11. The life safety evaluation shall identify any changes to the means of egress that are necessary to provide safe egress to occupants and shall be subject to review and approval by the fire code official. The building shall be modified to comply with the recommendations as set forth in the approved evaluation.

SECTION 1104.5 ILLUMINATION EMERGENCY POWER, SUBSECTION 7 is amended to read as follows; all other code text remains as is:

7. Groups R-1 and in R-2 in interior stairs and corridors only.

Exception: Where each dwelling unit or sleeping unit has direct access to the outside of the building at grade.

SECTION [BE] 1104.16.2 OPENING PROTECTIVES is repealed.

SECTION [BE] 1104.16 FIRE ESCAPE STAIRWAYS is amended by adding SECTION 1104.16.7 EXTERIOR FIRE ESCAPES to read as follows:

1104.16.7 Exterior Fire Escapes. Any existing exterior fire escape which is deemed to be an adequate fire escape under the laws of the State or under the provisions of the City fire prevention regulations shall be deemed an adequate means of egress for emergency use as required by this chapter and the number of existing exterior fire escapes shall be provided to comply with the fire escape law of the State and the City fire prevention regulations.

TABLE 1104.18 COMMON PATH, DEAD-END AND TRAVEL DISTANCE LIMITS (by occupancy) is amended by altering the number of "Dead-End Limit" Sprinklered (feet) chart for the following occupancy groups listed:

TABLE 1104.18 COMMON PATH, DEAD-END AND TRAVEL DISTANCE LIMITS (by occupancy)

	COMMON PATH LIMIT		*DEAD-END LIMIT*		*TRAVEL DISTANCE LIMIT*	
OCCUPANCY	*Unsprinklered (feet)*	*Sprinklered (feet)*	*Unsprinklered (feet)*	*Sprinklered (feet)*	*Unsprinklered (feet)*	*Sprinklered (feet)*
Group A	20/75 a	20/75 [a,j]	20 a	20 a	200	250[j]
Group B[h]	75[g]	100[j]	50	70	200	300[J]
Group E	75	75[j]	20	70	200	250[j]
Group F-1, S-1h	75[g]	100[j]	50	70	200[c]	250 [c,h,j]
Group F-2, S-2h	75[g]	100[j]	50	70	300	400 [j]
Group H-1	25	25[l]	0	0	75	75 [j,l]
Group H-2	50	100[l]	0	0	75	100 [j,l]
Group H-3	50	100[l]	20	20	100	150 [j,l]
Group H-4	75	75[l]	20	20	150	175 [j,l]
Group H-5	75	75[l]	20	50	150	200 [j,l]
Group I-1	75	75 [j]	20	70	200	250 [j]
Group I-2	Notes d,e,f,g	Notes d,e,f,g,j	Note e,f	Note e,f	150	250 [b,j]
Group I-3	100	100 [j]	NR	NR	150[b]	200[b,j]
Group I-4 (Day care centers)	NR	NR	20	20	200	250[j]
OCCUPANCY	COMMON PATH OF EGRESS TRAVEL LIMIT		DEAD-END LIMIT		EGRESS ACCESS TRAVEL DISTANCE LIMIT	
	Unsprinklered (feet)	Sprinklered (feet)	Unsprinklered (feet)	Sprinklered (feet)[j]	Unsprinklered (feet)	Sprinklered (feet)
Group M (Covered or Open Mall)	75	100[j]	50	70	200	400
Group M (Mercantile)	75	100[j]	50	70	200	250[i,j]
Group R-1 (Hotels)	75	75 [j,k]	50	70	200	250 [j,k]
Group R-2 (Apartments)	75	125 [j,k]	50	70	200	250 [j,k]
Group R-3 (One-and Two- Family)	NR	NR	NR	NR	NR	NR
Group R-4 (Residential Care / Assisted Living)	NR	NR	NR	NR	NR	NR
Group U	75[g]	100[j]	20	70	300	400[j]

OCCUPANCY	COMMON PATH LIMIT		DEAD-END LIMIT		TRAVEL DISTANCE LIMIT	
	Unsprinklered (feet)	*Sprinklered (feet)*	*Unsprinklered (feet)*	*Sprinklered (feet)*	*Unsprinklered (feet)*	*Sprinklered (feet)*

NR—No Requirements.
For SI: 1 foot= 304.8 mm, 1 square foot = 0.0929 m^2
a. See Section 1030.9.5 for dead-end aisles in Group A occupancies.
b. This dimension is for the total travel distance, assuming incremental portions have fully utilized their allowable maximums. For travel distance within the room, and from the room exit access door to the exit, see the appropriate occupancy chapter.
c. See Section 412 of the International Building Code for special requirements on spacing of doors in aircraft hangars.
d. Separation of exit access doors within a care recipient sleeping room, or any suite that includes care recipient sleeping rooms, shall comply with Section 1105.5.6.
e. In smoke compartments containing care recipient sleeping rooms and treatment rooms, dead-end corridors shall comply with Section 1105.6.5.
f. In Group I-1, Condition 2, care recipient sleeping rooms or any suite that includes care recipient sleeping rooms shall comply with Section 1105.7.
g. Where a tenant space in Group B, S and U occupancies has an occupant load of not more than 30, the length of a common path of egress travel shall be not more than 100 feet.
h. Where the building, or portion of the building, is limited to one story and the height from the finished floor to the bottom of the ceiling or roof slab or deck is 24 feet or more, the exit access travel distance is increased to 400 feet.
i. For covered and open malls, the exit access travel distance is increased to 400 feet.
j. Buildings equipped with an approved automatic sprinkler system in accordance with Section 903.3.1.1.
k. Buildings equipped with an approved automatic sprinkler system in accordance with Section 903.3.1.2.
l. Group H occupancies equipped with an approved automatic sprinkler system in accordance with Section 903.2.5.

SECTION 1104.22 EXTERIOR STAIRWAY PROTECTION is repealed.

SECTION 1104.25 EGRESS PATH MARKINGS is repealed.

SECTION 1107.1 LITHIUM-ION TECHNOLOGY ENERGY STORAGE SYSTEMS is amended to read as follows:

1107.1 Lithium-ion technology energy storage systems. Beginning January 1, 2026, the owner of an energy storage system (ESS) utilizing lithium-ion battery technology having capacities exceeding the values in Table 1207.1.3 and permitted prior to October 1, 2018 shall provide the fire code official a failure modes and effects analysis (FMEA) or other approved hazard mitigation analysis in accordance with Section 104.2.2 for review and approval.

Exception: Detached one-and two-family dwellings and townhouses.

SECTION 1203.1 GENERAL is amended by adding SECTIONS 1203.1.10 NATURAL GAS GENERATORS and 1203.1.11 DIESEL FUELED GENERATORS FUEL TANK VENTING to read as follows:

1203.1.10 Natural gas generators. Natural gas generators shall be allowed to be used as

an emergency or standby power source for emergency life safety equipment only when all of the following conditions are met:

1. The natural gas line supplying the generator must have a separate shutoff that is not affected by turning off the supply line to the building.
2. The shutoff for the natural gas line supplying the generator must have a sign at the shutoff that reads: "EMERGENCY GENERATOR GAS LINE, SHUT DOWN THIS LINE ONLY FOR EMERGENCIES INVOLVING EMERGENCY GENERATOR"
3. The generator must be a minimum of 10 feet from any building opening.
4. The installation of all natural gas generators shall be required to meet the provisions of the currently adopted International Plumbing Code and National Electrical Code.

1203.1.11 Diesel fueled generator fuel tank venting. Fuel tanks associated with diesel fueled generators shall be vented in accordance with Section 5704.2.7.3.3.

SECTION 1204.10 FIRE EXTINGUISHER is amended to read as follows:

1204.10 Fire extinguisher. A listed portable fire extinguisher complying with Section 906 with a minimum rating of 3-A:40-B:C shall be provided not more than 30 feet from the portable generator.

SECTION 2301 GENERAL is amended by adding SECTIONS 2301.7 PORTABLE SERVICE STATIONS and 2301.8 FLAME DETECTION SYSTEMS to read as follows:

2301.7 Portable service stations.

1. No person shall own, operate or maintain a tank used for the storage of flammable liquids maintained on skids or a similar type stand which is designed or intended to be used for dispensing flammable liquids into the fuel tanks of motor vehicles owned by the public.
2. The foregoing provisions of this article are intended to prohibit the use of so-called portable service station or similar units constructed to dispense flammable liquids to the motoring public and designed so that the unit can be easily picked up and moved.

2301.8 Flame detection systems. Fuel dispensing areas inside and outside of buildings that fuel vehicles fueled by gases including, but not limited to LPG, LNG, CNG, or Hydrogen shall provide a flame detection system that complies with approved standards. The flame detection system shall be designed to detect flame of gaseous fuels that are being dispensed.

SECTION 2303.2 EMERGENCY DISCONNECT SWITCHES is repealed and replaced with SECTION 2303.2 EMERGENCY DISCONNECT SWITCHES to read as follows:

2303.2 Emergency disconnect switches. An approved, clearly identified and readily accessible emergency disconnect switch shall be provided at an approved location to stop the transfer of fuel to the fuel dispensers in the event of a fuel spill or other emergency. An emergency disconnect switch for exterior fuel dispensers shall be located within 100 feet (30 480 mm) of, but not less than 20 feet (6096 mm) from, the fuel dispensers. For interior fuel-dispensing operations, the emergency disconnect switch shall be installed at an approved location. Such devices shall be distinctly labeled as: EMERGENCY FUEL SHUTOFF. Signs shall be provided in approved locations and be a minimum of 7 inches high and 10 inches wide.

SECTION 2303.2 EMERGENCY DISCONNECT SWITCHES is amended by adding SECTION 2303.2.2 ADDITIONAL EMERGENCY DISCONNECT SWITCHES FOR ATTENDED SELF-SERVICE to read as follows:

2303.2.2 Additional emergency disconnect for attended self-service. Attended facilities shall have an additional emergency disconnect switch located inside the building for attendant use at a location approved by the fire code official.

SECTION 2306.2.1.1 INVENTORY CONTROL FOR UNDERGROUND TANKS is repealed and replaced with SECTION 2306.2.1.1 INVENTORY CONTROL FOR UNDERGROUND TANKS to read as follows:

2306.2.1.1 Inventory control for underground tanks.

Accurate daily (normal working days only) inventory records shall be maintained and reconciled on all Class I, II or III-A liquid storage tanks for indication of possible leakage from tanks or piping. The records shall be made available for inspection by the Fire Marshal, and shall include, as a minimum, records showing by product: daily reconciliation between sales, use, receipts, and inventory on hand. If there is more than one system consisting of a tank(s), serving pump(s), or dispenser(s) for any product, the reconciliation shall be made separately for each tank system.

1. Daily inventory shall be maintained for each tank system at each location by the operator. The inventory records shall be kept for the past 12 months at the premises.

2. Inventory shall be based on the actual daily measurement and recording daily recording of actual sales, or by readout from an automated gauging system. The inventory records shall include a daily compilation of gain or loss. The mere recording of pump meter reading and product delivery receipts shall not constitute adequate inventory records.

3. The operator of the location shall be held responsible for notifying the owner or person(s) in control of the facility to take action to correct any abnormal loss or gain not explainable by spillage, temperature variations or both causes.

4. The Fire Marshal may require the operator of an underground tank storage system to test the system for tightness, at the operator's expense, when accurate daily inventory records have not been maintained as required or when in his judgment conditions indicate possible leakage of product from the location of such tanks.

5. The Fire Marshal may require copies of Class I, II and III-A liquid storage tank inventories, deliveries or receipt of product sales and dip gauge stick readings or other control measures in addition to copies of any tank tightness or line leakage test results from the station operator, agent, or terminal management.

6. When a service station tank is found to be leaking, its contents shall be removed immediately. If any investigations or tests indicate the source of such loss, the owner shall take immediate action to correct the system failure and remove dangerous spillage from the environment.

7. The Fire Marshal may order the closure of a Service Station by barricading if necessary and the emptying of contents from storage tanks should the operator of a service station be unwilling to cooperate with the Fire Department during the search for the source of such leakage or should the Fire Marshal determine that a hazardous condition exists that merits such action.

SECTION 2306.2.3 ABOVE-GROUND TANKS LOCATED OUTDOORS, ABOVE GRADE is amended by adding SECTIONS 2306.2.3.1 INSPECTIONS, 2306.2.3.2 REQUIRED ACCESS, and 2306.2.3.3 FIRE HYDRANT ACCESS to read as follows:

2306.2.3.1 Inspections. An inspection of the installation shall be conducted prior to loading the tank with fuel. For those installations approved by the Fire Chief or his designee to dispense class 1 liquids, the initial loading of fuel shall be witnessed by the fire inspector.

2306.2.3.2 Required access. Fire apparatus access roads shall be provided for every aboveground storage tank. The aboveground storage tank shall not be more than 150 feet from fire apparatus access roads as measured by an approved route.

2306.2.3.3 Fire hydrant access. A minimum of one fire hydrant shall be provided for every aboveground storage tank. The aboveground storage tank shall not be located more than 500 feet from a fire hydrant as measured by an approved route. The distance may be extended to 850 feet for tanks constructed to the design criteria of UL 2085. A minimum of two fire hydrants meeting the distance requirements per Table C102.1 shall be required for storage tank farms exceeding an aggregate capacity of 48,000 gallons of Class I, II, and IIIA liquid fuels. Fire flow requirements for storage tank farms and refineries shall be determined by a licensed Fire Protection Engineer and shall have a minimum flow of 2000 gallons per minute.

SECTION 2307 LIQUIFIED PETROLEUM GAS MOTOR FUEL DISPENSING FACILITIES is repealed.

SECTION 2311.8.9 GAS DETECTION SYSTEM is amended to read as follows:

2311.8.9 Gas detection system. Repair garages used for repair of vehicles fueled by gases, including, but not limited to, hydrogen, CNG, and LNG, shall be provided with a gas detection system that complies with Section 916. The gas detection system shall be designed to detect leakage of gaseous fuel. Where lubrication or chassis service pits are provided in garages used for repairing LNG-fueled vehicles, gas sensors shall be provided in such pits.

SECTION 2809 EXTERIOR STORAGE OF FINISHED LUMBER AND SOLID BIOFUEL PRODUCTS is amended by adding SECTION 2809.6 LUMBER STORAGE OTHER THAN COMMERCIAL LUMBER DEALERS to read as follows:

2809.6 Lumber storage other than commercial lumber dealers. It shall be unlawful for any person within the City limits to place, pile, or cause to be placed or piled, any lumber or timber to a greater height than six feet at the topmost portion from ground level. Storage of lumber in such instances must allow at least an 18-inch space from ground level to bottom of the lumber pile. Such pile must be at least three feet from any adjoining property line and total pile area shall not exceed 100 square feet. Any lumber stored or kept upon, or in, any premises in the City must be piled in a neat and orderly manner free from rubbish or other waste materials. Nothing in this section shall apply to storage of lumber by commercial lumber dealers.

SECTION 3103.2 APPROVAL REQUIRED is repealed and replaced with SECTION 3103.2 APPROVAL REQUIRED and 3103.2.1 PERMITS is added to read as follows:

3103.2 Approval required. Tents and membrane structures used for assembly purposes having an occupant load over 50, and all other occupancies having an area in excess of 1,200 square feet shall not be erected, operated or maintained for any purpose without first obtaining a permit and approval from the fire code official.

3103.2.1 Permits. Permit to operate a tent or air supported structure shall consist of a Certificate of Occupancy issued by Development Services.

SECTION 3301 GENERAL is amended by adding SECTION 3301.3 ADDRESS NUMBERS to read as follows:

3301.3 Address numbers. Buildings under construction shall place address numbers and/or building numbers in a position that is plainly legible and visible from the street or road fronting the property with minimum six-inch numbers.

SECTION 3306.5 AUTOMATIC SPRINKLER SYSTEM is amended by adding SECTION 3306.5.2 FURNITURE, FIXTURES, AND EQUIPMENT to read as follows:

3306.5.2 Furniture, fixtures, and equipment. In buildings where an automatic sprinkler system is required, furniture, fixtures and equipment shall not be stored in the building until the system has been tested and approved by the fire code official and monitoring of system is active.

Exception: As approved by the fire code official.

CHAPTER 37 COMBUSTIBLE FIBERS is amended by adding Section 3706 CONSTRUCTION AND PROTECTION REQUIREMENTS to read as follows:

Section 3706 Construction and protection requirements.

1. Handling and storage of large quantities of wastepaper, rags, or other combustible materials shall not be allowed in a building of any type in excess of 1,500 square feet area unless the building is protected with an approved automatic sprinkler system.

2. Handling and storage building for wastepaper, rags or other combustible materials shall not exceed one story in height unless of Type I construction and fully protected with approved automatic sprinkler system.

3. No loose wastepaper, rags, trash or rubbish of any kind, or similar combustible materials shall be allowed on the premises on the outside of any building.

4. Bales, wastepaper, rags, and other combustibles in baled lots shall be stored in buildings. Said buildings shall be required to have aisles when 25,000 cubic feet or more of such materials are stored. Baled materials, if stored outside of buildings, shall not be stored within 25 feet of any building. EXCEPTION: Baled materials may be stored within 25 feet of a building's outside wall when a wall sprinkler curtain is provided on the building.

SECTION 4104.2 OPEN-FLAME COOKING DEVICES is amended to read as follows:

4104.2 Open-flame cooking devices. Charcoal burners and other open-flame cooking devices shall not be operated on combustible balconies or within 10 feet (3048 mm) of a combustible surface.

Exceptions:

1. One-and two-family dwellings.

2. Group R occupancies in compliance with the provisions, and meeting exceptions, of Section 308.4.2.

SECTION 4106 MOBILE FOOD PREPARATION VEHICLES is amended to read as follows:

SECTION 4106 MOBILE FOOD ESTABLISHMENTS

4106.1 General. Mobile food establishments that are equipped with appliances that produce smoke or grease-laden vapors for the purpose of preparing, cooking or serving food shall comply with NFPA 96 and this section. Indoor use of mobile food preparation vehicles is prohibited unless approved by the fire code official.

4106.2 Permit required. It shall be unlawful to operate mobile food establishments without a permit as required by Section 105.5.32. Annual mobile food establishment permits must be displayed in a visible location in or on the mobile food establishment.

4106.2.1 Site placement. Mobile food establishments left on site for more than 24 hours at carnivals, fairs, festivals, or other public events will be subject to Food Booth permit requirements, inspections, and fees as set forth in Section Chapter 11, Section 11-16 of the City Code and Section 105.5.34 of this code in addition to any fees associated with the annual mobile food establishment permits.

4106.3 Exhaust hood. All Mobile Food Establishments permitted after January 1, 2019, which utilize cooking equipment that produces grease-laden vapors shall be provided with a kitchen exhaust hood constructed in accordance with Section 606.

4106.4 Maintenance. Maintenance of systems on mobile food establishments shall be in accordance with Sections 4106.4.1 through 4106.4.3.

4106.4.1 Exhaust system. The exhaust system, including hood, grease-removal devices, fans, ducts and other appurtenances, shall be inspected and cleaned in accordance with NFPA 96.

4106.4.2 Fire protection systems and devices. Fire protection systems and devices shall be maintained in accordance with 901.6.

4106.4.3 Fuel gas systems. Fuel gas systems shall be maintained in accordance with Sections 4106.4.3.1 through 4106.4.3.4.

4106.4.3.1 LP-gas systems. LP-gas containers installed on the vehicle and fuel gas piping systems shall be inspected annually by an approved inspection agency, person or special expert who is qualified to ensure that system components are free from damage, suitable for the intended service and not subject to leaking.

4106.4.3.2 CNG systems. CNG containers and fuel gas piping systems shall be inspected annually by an approved inspection agency, person or special expert who is qualified to ensure that system components are free from damage, suitable for the intended service and not subject to leaking.

4106.4.3.3 Annual leakage test. All fuel gas piping systems and appliances shall be checked annually for leakage at the operating pressure of the system using a manometer or pressure gauge. Where leakage is indicated, the gas supply shall be turned off until repairs have been made and the system no longer leaks.

4106.5 Manual system operation for the automatic fire extinguishing system(s). A manual actuation device shall be provided for the automatic fire extinguishing system(s) provided for the cooking appliance(s). The manual actuation device shall be unobstructed and in view from the means of egress, located at or near a means of egress from the cooking area, and at a location acceptable to the fire code official. The manual actuation device shall be installed not more than 48 inches (1200 mm) nor less than 42 inches (1067 mm) above the walking surface of the means of egress and shall clearly identify the hazard protected. The manual actuation shall require a maximum force of 40 pounds (178 N) and a maximum movement of 14 inches (356 mm) to actuate the fire suppression system.

4106.6 Fire protection. Fire protection shall be provided in accordance with Sections 4106.6.1 through 4106.6.4

4106.6.1 Fire protection for cooking equipment. Cooking equipment shall be protected by automatic fire extinguishing systems in accordance with Section 904.13 when Section 4106.3 applies.

4106.6.2 Fire extinguisher. Portable fire extinguishers shall be provided in accordance with Section 906.4 and shall have a minimum of one (2A:10BC) portable fire extinguisher mounted in a conspicuous place within the kitchen area.

4106.6.3 Additional extinguishers. In addition to any other required fire extinguisher, a class K portable fire extinguisher shall be provided as follows:

1. For deep fryers with up to four fryers having a maximum cooking medium capacity of 80 pounds each.
2. For every additional group of four fryers having a maximum cooking capacity of 80 pounds each.
3. For individual fryers exceeding 6 square feet in surface area, class K extinguishers shall be installed in accordance with the extinguishers manufacturers' recommendations.
4. Solid fuel cooking appliances with fireboxes 5 cubic feet or less in volume shall have a minimum 2.5 gallon or two 1.5 gallon Class K wet-chemical portable fire extinguishers.

4106.6.4 Generators. Mobile food vendors with portable generators shall have a (3A:40BC) portable fire extinguisher in addition to the other fire extinguishers.

4106.7 Appliance connection to fuel supply piping. Gas cooking appliances shall be secured in place and connected to fuel-supply piping in accordance with the manufacturer's installation instructions.

4106.8 Baffles and Closures.

4106.8.1 Baffles. All deep-fat fryers shall have a steel baffle between the fryer and surface flames of an adjacent appliance or shall maintain a 16-inch separation distance. The baffle, if installed, shall be eight inches in height.

4106.8.2 Lids. A positive closing lid shall be required on the fryer with latching mechanisms that secure it in the open and closed positions. Exception: fryers installed under a fixed pipe extinguishing system.

4106.9 Emergency egress. Emergency egress shall comply with Section 4106.9.1 through Section 4106.9.2.2.

4106.9.1 Aisles. Mobile food establishments shall have a clear, unobstructed height over the aisle-way portion of the unit of at least 74 inches from floor to ceiling, and a minimum of 30 inches of unobstructed horizontal aisle space.

4106.9.2 Additional exit. Should travel distance from any portion of the interior exceed 10 feet, the mobile food establishments shall have a minimum of two exits located remote from each other and so arranged as to provide a means of unobstructed travel to the outside of the vehicle.

4106.9.2.1 Exit location. A secondary means of egress shall be located remote of the main exit door, with an unobstructed minimum passage of 24" X 24 " to the outside. The bottom of this secondary means of egress shall not be more than four feet above the vehicle floor or a readily accessible horizontal surface capable of supporting a weight of 300 pounds minimum opening to the outside.

4106.9.2.2 Latching. The latch mechanism of any exit facility shall be operable by hand and shall not require the use of a key or special knowledge for operation from the inside. The secondary exit shall be labeled with the word "EXIT" with two-inch minimum letters on contrasting background.

4106.10 LP-gas systems. Where LP-gas systems provide fuel for cooking appliances, such systems shall comply with Chapter 61 and Sections 4106.10.1 through 4106.10.8.

4106.10.1 Maximum aggregate volume. The maximum aggregate capacity of LP-gas containers transported on the vehicle and used to fuel cooking appliances only shall not exceed 200 pounds (91 kg) propane capacity.

4106.10.2 Protection of container. LP-gas containers installed on the vehicle shall be securely mounted and restrained to prevent movement. LP-gas containers shall be located and secured on the exterior of the mobile food establishment, open to atmosphere or if containers are kept in compartment, said compartment must be separate from the interior food preparation area. Access must be from the exterior of the unit and compartment floor and exterior door must be vented to the atmosphere.

4106.10.3 LP-gas container construction. LP-gas containers shall be manufactured in compliance with the requirements of NFPA 58.

4106.10.4 Protection of system piping. LP-gas system piping, including valves and fittings, shall be adequately protected to prevent tampering, impact damage, and damage from vibration.

4106.10.5 LP-gas alarms. A listed LP-gas alarm shall be installed within the vehicle in the vicinity of LP-gas system components, in accordance with the manufacturer's instructions.

4106.10.6 No smoking sign. All mobile units with propane shall post a "NO SMOKING" sign next to or directly above the propane bottle and visible to the public. Such sign shall be posted with a minimum of four-inch lettering.

4106.10.7 Listed hoses. Any hose used to pipe LP-gas to a device shall be listed by UL, FM, or other approved agency and listed specifically for LP Gas service. All couplings, fittings, and any other devices shall meet the requirements for LP Gas Service as outlined in the International Fuel Gas Code, NFPA 58 and 54, or be deemed unapproved and removed from service.

4106.10.8 LPG tank location. LPG tanks shall be located outside the mobile food establishment a minimum of five feet from the primary means of egress.

4106.11 CNG systems. Where CNG systems provide fuel for cooking appliances, such systems shall comply Sections 4106.11.1 through 4106.11.4.

4106.11.1 CNG containers supplying only cooking fuel. CNG containers installed solely to provide fuel for cooking purposes shall be in accordance with Sections 4106.11.1.1 through 4106.11.1.3.

4106.11.1.1 Maximum aggregate volume. The maximum aggregate capacity of CNG containers transported on the vehicle shall not exceed 1,300 pounds (590 kg) water capacity.

4106.11.1.2 Protection of container. CNG containers shall be securely mounted and restrained to prevent movement. Containers shall not be installed in locations subject to a direct vehicle impact.

4106.11.1.3 CNG container construction. CNG containers shall be an NGV-2 cylinder.

4106.11.2 CNG containers supplying transportation and cooking fuel. Where CNG containers and systems are used to supply fuel for cooking purposes in addition to being used for transportation fuel, the installation shall be in accordance with NFPA 52.

4106.11.3 Protection of system piping. CNG system piping, including valves and fittings, shall be adequately protected to prevent tampering, impact damage, and damage from vibration.

4106.11.4 Methane alarms. A listed methane alarm shall be installed within the vehicle in accordance with the manufacturer's instructions.

CHAPTER 42 AUTOMOBILE WRECKING YARDS is added to read as follows:

CHAPTER 42 AUTOMOBILE WRECKING YARDS

4201 Automobile dismantling and storage. Nothing but automobile dismantling shall be carried on in any automobile wrecking yard or establishment, and if repairs are made to any automobile or other self-propelled vehicle, such repairs shall be made in a building meeting all the requirements of a public automobile garage or automobile repair shop and in keeping with the regulations for such occupancy.

All gasoline shall be drained from the gasoline reservoirs of all automobiles or other self-propelled vehicles stored or kept on the premises, unless such automobiles or vehicles are in such state of repair as to enable them to be removed from the premises under their own power.

CHAPTER 43 PROTECTION OF OUTDOOR STORAGE is added to read as follows:

CHAPTER 43 PROTECTION OF OUTDOOR STORAGE

4301 General.

4301.1 The hazards of exposure to outdoor storage from ignition sources and exposing fires and the infinite variety of conditions under which such exposures can occur render impossible the formulation of any single table, formula, or set of rules that can cover all conditions adequately.

4301.2 In general, the provision of automatic fire protection is impractical for outdoor storage. As a result, the following is required:

1. Control of potential ignition sources such as from exposing buildings, transformers, yard equipment, refuse burners, overhead power lines, and vandals.
2. Elimination of adverse factors such as trash accumulations, weeds, and brush.
3. Provision of favorable physical conditions such as limited pile sizes, low storage heights, wide aisles, and possible use of fire-retardant covers (e.g., tarpaulins).

4. Rapid and effective application of manual fire-fighting efforts by the provision of fire alarms, strategically located hydrants, and adequate hose houses or hose reels.

4301.3 Outdoor storage is acceptable for materials as follows:

1. Of low fire hazard, not requiring protection even if located indoors.
2. Of sufficiently low value that a potential loss would not justify the utilization of building space.
3. Of such severe fire hazard that indoor protection is impractical when balanced against potential loss of large volume and bulk, making it impractical to construct and protect a building to house the storage.

4301.4 Where materials that normally would be stored in buildings are stored outdoors in temporary emergencies, special precautions shall be taken for their safeguard and that they be moved to a storage warehouse as soon as possible.

4302 Responsibilities of Management

4302.1 It is the responsibility of management to properly consider the hazards of the various materials handled. Protection requirements and storage arrangements vary with the combustibility of the materials. The care, cleanliness, and maintenance exercised by management determine to a large extent the relative fire safety in the storage area.

4303 Site.

4303.1 In selecting a site for outdoor storage, the following requirements shall be followed:

1. Adequate public water system with hydrants suitably located for protection of the storage.
2. Adequate all-weather roads for fire department apparatus response.
3. Sufficient clear space from buildings or from other combustible storage that constitutes an exposure hazard.
4. Absence of flood hazards.
5. Adequate clearance space between storage piles and any highways, bridges, railroads, and woodlands.
6. Topography as level as possible to provide storage stability.
7. Adequate clearance between the storage of combustible materials and pipelines, pipe bridges, cable trays and electrical transmission lines.

4303.2 The entire site shall be surrounded by a fence or other suitable means to prevent unauthorized access. An adequate number of gates shall be provided in the surrounding fence or other barriers to permit ready access of fire apparatus.

4304 Material Piling.

4304.1 Materials shall be stored in unit piles as low in height and small in area as is consistent with good practice for the materials stored. The maximum height shall be determined by the stability of pile, effective reach of hose streams, combustibility of the commodity, and ease of pile breakdown under fire or mop-up conditions. Under no circumstances shall the pile size dimensions exceed 50 feet by 150 feet by 20 feet high unless the specific commodities maximum dimensions are listed elsewhere in the code.

4304.2 Aisles shall be maintained between individual piles, between piles and buildings, and between piles and the boundary line of the storage site. Sufficient driveways having the width of at least 20 ft shall be provided to allow the travel of fire equipment to all portions of the storage area. Aisles shall be at least twice the pile height to reduce the spread of fire from pile to pile and to allow ready access for firefighting, emergency removal of material, or salvage purposes.

4304.3 As the commodity class increases in combustibility or where storage could be ignited easily from radiation, wider aisles shall be provided. Smaller unit piles could be an alternative to wider aisles if yard space is limited.

4304.4 Boundary posts with signs designating piling limits shall be provided to indicate yard area, roadway, and aisle limits.

4305 Buildings and Other Structures.

4305.1 Yard storage, particularly storage of commodities in the higher heat release category, shall have as much separation as is practical from important buildings and structures, but not less than that offered by NFPA 80A, Recommended Practice for Protection of Buildings from Exterior Fire Exposures.

4305.2 As guidance in using NFPA 80A to establish clear spaces, the following classification of severity with commodity classes of this standard shall be used on the basis of 100 percent openings representing yard storage:

1. Light severity—Commodity Class I.
2. Moderate severity—Commodity Class II.
3. Interpolate between moderate and severe severity for Commodity Class III.
4. Severe severity—Commodity Class IV and Class A plastics.

The guidelines of Section 4205.2 apply to the equivalent commodity classes of this standard. The severity of the exposing building or structure also shall be a consideration where establishing a clear space.

4306 Yard Maintenance and Operations

4306.1 The entire storage site shall be kept free from accumulation of unnecessary combustible materials. Vegetation shall be kept to a maximum of four inches high. Procedures shall be provided for weed control and the periodic cleanup of the yard area.

4306.2 No heating equipment shall be located or used within the storage area. Salamanders, braziers, portable heaters, and other open fires shall not be used.

4306.3 Smoking shall be prohibited, except in locations prominently designated as smoking areas. "No Smoking" signs shall be posted in prohibited areas.

4306.4 Welding and cutting operations shall be prohibited in the storage area.

4306.5 Tarpaulins used for protection of storage against the weather shall be of fire-retardant fabric.

4306.6 Motorized vehicles using gasoline, diesel fuel, or liquefied petroleum gas as fuel shall be garaged in a separate, detached building.

4307 Fire Protection

4307.1 Fire extinguishers of an appropriate type shall be placed at well-marked strategic points throughout the storage area so that one or more portable fire extinguisher units can quickly be made available for use at any point. Where the climate is such that there is a danger of freezing, suitable extinguishers for freezing temperatures shall be used.

SECTION 5003.4 SAFETY DATA SHEETS is amended to add SECTION 5003.4.1 SAFETY DATA SHEET SUBMITTAL to read as follows:

5003.4.1 Safety data sheet submittal. The Fire Marshal may require that information on the nature of any and all potentially hazardous material be submitted to the Fire Department on the Standard Material Safety Data Sheet provided by the U.S. Department of Labor Occupational Safety and Health Administration.

SECTION 5004.2.2.5 MONITORING is amended to read as follows:

5004.2.2.5 Monitoring. An approved monitoring method shall be provided to detect hazardous materials in the secondary containment system. The monitoring method is allowed to be visual inspection of the primary or secondary containment, or other approved means. Where secondary containment is subject to the intrusion of water, a monitoring method for detecting water shall be provided. Where monitoring devices are provided, they shall be connected to approved visual or audible alarms. Such systems shall be inspected and tested by the owner or occupant annually and properly maintained in an operative condition at all times. Records of inspections, tests and repairs shall be maintained and readily available to the fire code official upon request.

SECTION 5601.1.3 FIREWORKS is amended by adding SECTIONS 5601.1.3.1 UNLAWFUL POSSESSION OF FIREWORKS, 5601.1.3.2 INSTIGATING OR AIDING A MINOR TO VIOLATE THE ORDINANCE PROHIBITING

FIREWORKS, and 5601.1.3.3 SUMMONS TO BE ISSUED FOR VIOLATION OF FIREWORKS ORDINANCE to read as follows:

5601.1.3.1 Unlawful possession of fireworks. It shall be unlawful for any person to have, keep, store, sell, offer for sale, give away, use, transport or manufacture fireworks or pyrotechnics of all kinds in any quantity, within the corporate limits of the City without a permit.

5601.1.3.2 Instigating or aiding a minor to violate the ordinance prohibiting fireworks. No person shall furnish money or a thing of value to a minor for the purchase of fireworks or encourage, act in conjunction with or in any manner instigate or aid a minor in the act of having, keeping, storing, selling, offering for sale, giving away, using, transporting, or manufacturing fireworks within the corporate limits of the City. Such actions shall constitute Class C misdemeanors and be punished by a fine not to exceed $2,000.00.

5601.1.3.3 Summons to be issued for violation of fireworks ordinance. A summons or notice to appear in answer to a charge of illegal possession or use of fireworks in violation of this section specifying the location of such violation, the date and time of such violation, and the name and address of the offender, may be issued by any Police Officer, Arson Investigator, Fire Inspector or by any Firefighter who has been assigned to citation duties by the Fire Chief.

SECTION 5601.2 PERMIT REQUIRED is amended by adding SECTIONS 5601.2.5 CONGESTED AREAS through 5601.2.13 APPEALS TO THE BOARD OF APPEALS CONCERNING EXPLOSIVES PERMITS to read as follows:

5601.2.5 Congested areas. When explosives or explosive ingredients are stored, handled, used or transported or processed in congested mercantile, industrial, commercial or other heavily populated areas, the explosive permit must be countersigned by the Fire Chief and the Chief of Police or by a person authorized to act for each. No explosive permit for use in these areas shall be valid unless it bears the signature of each of the above-named officials.

5601.2.6 Prohibited explosives. It shall be unlawful for any person to have, keep, store, sell, offer for sale, give away, use, transport or manufacture any of the explosives listed in Section 5601.3 any quantity, within the corporate limits of the City, or to store, sell, use or offer for sale such explosives within 5000 feet beyond the City limits unless authorized by the Fire Marshal.

5601.2.7 Applicant qualifications. Only those persons who have proven to the Fire Marshal by examination or actual test or by check references of three persons not related to the applicant, or by all those means, that they are qualified to manufacture, store, handle, use, transport, or possess explosives and ingredients and who have proved to the satisfaction of the Fire Marshal that they have read, or have had read to them, and understood the provisions of this section shall be given an explosives permit. Applicants who fail the written examination may repeat the exam after 30 days. Those failing the test the second time may retake the test for the third time after 90 days. Persons failing the test three times will not be permitted to repeat test for one year from date of last test taken.

5601.2.8 Inspection required. Upon receipt of an application for a permit, special permit or certificate of fitness as required by this chapter, the Fire Marshal shall make or cause to be made an investigation to determine if all conditions of this article applying to the permit specified are fulfilled, and if the Fire Marshal shall find that the things required to be set forth and are true and that the requirements of this article are fulfilled, the permit or certificate herein mentioned shall be issued.

5601.2.9 Purpose specified. Explosive permit shall specify the purpose for which the explosives or other ingredients are to be manufactured, stored, handled, transported or possessed, and the maximum amount that will be allowed.

5601.2.10 Application for permit.

1. All applications for permits shall be in writing or submitted through the customer portal system. Government departments, firms, corporations, partnerships, contractors, or other legal entity may obtain explosive permits through a person authorized to act for or assumed legal responsibility for them.
2. The Fire Marshal shall not issue an explosive permit if he receives a written objection from the City Manager, Chief of Police or from persons authorized to act for them.
3. The Arson Division shall do a computer investigation check based on the information on the application.
4. Every person applying for a permit must be able to read and write the English language.
5. The Fire Marshal or his designate may request written comments on each permit application from the various affected City of San Antonio utilities or franchise holders. When, in the opinion of the Fire Marshal, such utility or franchise holder has a valid objection to the issuance of a permit, no permit shall be approved until such objection has been resolved to the satisfaction of the Fire Marshal or his designate.
6. When, in the opinion of the Fire Marshal or his designate, there is a substantial danger to life, health, or property in the immediate area exposed to the blasting for which a permit is being requested, said permit may be denied.

5601.2.11 Permit limitations.

1. Explosives Handling Permits may be issued for a period, not to exceed one year from date of issuance, deemed advisable by the Fire Marshal.
2. No employee of a government department, firm, partnership or individual shall be issued an explosives handler permit unless his employer first obtains an explosives site permit.
3. An employee's explosive permit shall become void if his employer's explosive permit is revoked or expires without being renewed.
4. Permits shall be unassignable and nontransferable, and no person shall operate under, or have the benefit of, another person's permit.
5. The Fire Marshal shall revoke an explosive permit for violation of any of the provisions of this chapter. The offender shall have the right to appeal the Fire Marshal's revocation decision.
6. The death of any permittee, shall, ipso facto, immediately render the permit void, and the personal representative or heirs of the decedent must apply for a permit to cover remaining explosives or ingredients or uncompleted operations requiring a permit. If a permittee is discharged from his employment, his permit shall become immediately void and shall be delivered to his employer, who must deface it by writing across the face thereof the word "Void", together with a notation of the date and reason for the voidance, and thereafter mail or deliver it to the Fire Marshal, and the employer must at once take possession and charge of any explosives or ingredients for which the permittee was accountable. In the event of the dissolution or transfer of the business of any permittee, the successor in interest of the permittee shall immediately apply for a permit to cover any explosives, ingredients or operations relating to same.
7. In the event of the bankruptcy of a permittee, the trustee or receiver of his bankrupt estate shall immediately apply for a permit to cover any remaining explosives, ingredients, or operations relating thereto. The permit shall not pass with any forced sale or other forced transfer of explosives, ingredients, or operations covered by it, and the transferee must immediately apply for a permit to cover same.

8. Any permit that becomes void during the period for which it was issued shall be returned within ten days to the Fire Marshal and it shall be accompanied with all Photostat copies that have been made.
9. The Fire Marshal shall be notified of the loss or destruction of any valid permit.

5601.2.12 Blasting site permits.

1. Blasting permits shall be issued by the Fire Marshal and shall set forth the name of the contractor or other responsible party applying, the name of the property owner upon whose property the blasting is to be done and the location of the property. Such permit shall be valid and operative for a period not to exceed 90 days from date issued, except for quarry operation permits, which shall be issued for a period not to exceed one year.
2. The Fire Marshal shall not issue a permit to exceed 10,000 pounds of explosive materials for construction blasting, 500 electric or non-electric blasting caps for use per day at a permitted site, or 50 pounds of black powder of any kind.
3. The Fire Marshal may limit the quantity of explosives or blasting agents to be permitted at any location.
4. The Fire Marshal may defer the issuance of an explosives permit in order to make any such investigation as he deems necessary.

5601.2.13 Appeals to the board of appeals concerning explosives permits. Any person who has been refused issuance of an explosive permit or who has had his explosive permit revoked may appeal such action by notifying the Chairman of the Building-Related and Fire Codes Appeals and Advisory Board in writing within 21 days after he has received notice of such refusal or revocation.

SECTION 5607.1 GENERAL is amended by adding SECTION 5607.1.1 CONDITIONS OF APPROVAL to read as follows:

5607.1.1 Conditions of approval. The Fire Marshal shall set other conditions to the approval of a permit application that are necessary, in his opinion, to adequately protect the public health and safety. These conditions may include, but are not limited to, reduced allowable particle velocities, additional monitoring, increased insurance protection, hours of operation, type and amount of explosives used and engineered blasting plans.

SECTION 5607.4 RESTRICTED HOURS is repealed and replaced with SECTION 5607.4 RESTRICTED HOURS to read as follows:

5607.4 Restricted hours. Except by written approval by the Fire Marshal, no blasting operations shall be conducted on Saturdays, Sundays or legal holidays or between the hours of 5:00 p.m. and 8:00 a.m.

SECTION 5607.13 FIRING CONTROL is amended by adding SECTION 5607.13.1 NOTIFICATION TO THE FIRE DEPARTMENT PRIOR TO BLASTING to read as follows:

5607.13.1 Notification to the fire department prior to blasting. The permit holder of the construction blast site shall call the SAFD dispatch center prior to the blast to notify them that a controlled construction blast will occur. The permit holder shall notify the Fire Department with the time and location of the blast.

SECTION 5607.14 POST-BLAST PROCEDURES is amended by adding SECTION 5607.14.1 REMOVAL OF EQUIPMENT to read as follows:

5607.14.1 Removal of equipment. All exposed blasting cap lead wires in the ground from previous shots shall be removed at the end of the workday.

SECTION 5607 BLASTING is amended by adding SECTION 5607.16 PARTICLE VELOCITY PERMITTED and SECTION 5607.17 BLAST MONITOR REQUIRED to read as follows:

5607.16 Particle velocity permitted. Peak particle velocity, airblast and flyrock requirements shall comply with NFPA 495 Chapter 11 and this code. A particle velocity of 1.7 inches per second will be the maximum velocity allowed by permit. One and seven-tenths (1.7) inches per second particle velocity or

above will require the immediate suspension of blasting and corrective procedures implemented to reduce the excess velocity. The Fire Marshal may reduce this limit to adequately protect the public safety.

5607.17 Blast monitor required. A blast monitor, such as a seismic blast-recording machine, is required in connection with all permits issued inside the City limits of San Antonio unless specifically exempted by the Fire Marshal. Recordings shall comply with Bureau of Mines Standards for safety and property protection. Seismic readings for each blast shall be submitted to the Fire Marshal's office after each blast for record keeping as appropriate.

SECTION 5608.1 GENERAL is amended by adding SECTIONS 5608.1.1 PUBLIC DISPLAYS - DUTIES OF THE OPERATOR through 5608.1.5 FIRE INSPECTORS TO BE PRESENT to read as follows:

5608.1.1 Public displays - duties of the operator. The operator of a public fireworks display shall comply with the following:

1. The minimum radius of the secured area surrounding a fireworks display (the minimum safe distance between the mortar site and spectators) shall be 70 feet per shell inch of the largest shell to be fired. Spectators shall be restrained using a barrier approved by the Fire Marshal. Security officers shall be provided and assigned as approved by the Fire Marshal.

2. Fire projectiles:

2.1. So that the range of aerial display shall be not more than 200 feet and the fireworks shall be discharged vertically from steel or other approved tubes; or

2.2. So that they will impact in a body of water.

3. Maintain an unobstructed spatial separation of:

3.1. 600 feet between the ignition point and a school.

3.2. 200 feet between the ignition point and a highway, railroad, or building other than a school; and

3.3. 50 feet between the ignition point and an overhead obstruction.

4. Discontinue the display if the wind carries fireworks debris to adjoining property; and

5. Immediately after display:

5.1. Search the display site for unfired fireworks or fireworks debris; and

5.2. Safely dispose of any unfired fireworks or fireworks debris in the prescribed by the Fire Marshal.

5608.1.2 Fireworks permits. Possession and use of fireworks and pyrotechnics shall be allowed in connection with a firework display in celebration of a recognized holiday under the following conditions:

1. The site of the display has been previously approved by the Fire Marshal.

2. The display is in conjunction with a special event or occasion as approved by the fire code official or is within 10 days of a federal, state or city holiday, and is in connection with a public holiday celebration.

3. The display is to be held under the supervision of the Fire Marshal or his representative. In addition to other violations contained in this chapter, it shall be unlawful for any person conducting such a display or storing or moving explosives preparatory to such an event, to fail to adhere to all specifications and directions of the Fire Department representative supervising such event.

5608.1.3 Materials not to be stored in city. The material to be used for a public display authorized by this division shall not be stored within the City limits but shall be brought in on the day of the public display and then shall be taken immediately to the place of display for further handling and storage.

5608.1.4 Limitation on time and number of displays. No display authorized by this division shall be commenced prior to the hour of 1:00 P.M. nor later than 10:00 P.M. Sundays through Thursdays and no later than 11:00 P.M. on Fridays and Saturdays.; however, fireworks display may be commenced between the hours of 10:00 P.M. on December 31 of any year and between the hours of midnight and 1:00 A.M. on January 1 of any year if such displays comply with all other requirements of this code. Any display authorized by this division shall be completed within one hour after the time the display is commenced, and no permit shall authorize more than two displays in each 24 hours.

5608.1.5 Fire inspectors to be present. For each public display of fireworks under this division, not less than two Fire Prevention officers of the city shall be in attendance during the display. If more than two fire inspectors are required or the inspector's work takes longer than two hours, the additional expense shall be borne by the applicant for the permit at the rate per man-hour as provided for in Section 11-16(k) of the City Code. The Fire Chief may require standby firefighting unit at the expense of the applicant.

SECTION 5608.2.2 USE OF PYROTECHNICS BEFORE A PROXIMATE AUDIENCE is amended by adding SECTION 5608.2.2.1 INSIDE USE OF PYROTECHNICS to read as follows:

5608.2.2.1 Inside use of pyrotechnics. The use of pyrotechnics inside of a building shall be unlawful unless authorized and approved in writing by the Fire Marshal prior to the issuance of a permit. The Fire Marshal may require the owner or person in possession or control of the building or premises to provide without charge to the department a technical opinion and report stating whether harmful smoke would be produced and pose a health hazard to the public. The opinion and report shall be prepared by a qualified engineer, specialist, laboratory, or fire safety specialty organization acceptable to the Fire Marshal and the owner. A permit for the use of pyrotechnics shall be issued when approved by the Fire Marshal. Application for a permit shall be made in writing 10 days prior to the use of pyrotechnics.

SECTION 5608.2 PERMIT APPLICATION is amended by adding SECTIONS 5608.2.3 PROCEDURE FOR APPLYING; PERMIT FOR FIREWORKS DISPLAY through 5608.2.8 DUTIES OF PERMITTEE to read as follows:

5608.2.3 Procedure for applying; Permit for Fireworks Display. A permit applicant shall, at least 10 days before using fireworks, file with the Fire Marshal a completed permit application showing the:

1. Pyrotechnics:
   a. Business address.
   b. Proof of legal competency; and
   c. Record of previous experience with fireworks.
2. Address of the proposed display.
3. Amount, type, and class of fireworks to be used.
4. Address of the company supplying the fireworks.
5. Date of proposed display.
6. Starting and ending times of the proposed display; and
7. Diagram of the proposed display grounds, detailing:
   a. Firing points
   b. Location of buildings and highways on or adjoining the grounds.
   c. Spectator restraining lines; and
   d. Overhead obstructions.
8. Completed permit application to the Fire Marshal including the surety bond or insurance coverage required by State Law.

The Fire Marshal shall, within five days from date of the completion of the requirements in Subsection (l) of this section, approve or refuse to approve the permit. If the Fire Marshal refuses to approve issuance, he shall immediately send to

the applicant by certified mail, return receipt requested, a written statement explaining the basis of the refusal.

The permittee shall notify in writing, at least 48 hours prior to consideration by the Fire Marshal, all residents within 1000 feet of a proposed fireworks site.

5608.2.4 Refusal to issue. The Fire Marshal may refuse to approve issuance of a permit if the applicant:

1. Intentionally makes a false statement as to a material matter in the permit application.
2. Is a fugitive from justice.
3. Is under a felony indictment.
4. Has been finally convicted of a felony offense within that five-year period immediately preceding the filing of the application.
5. Has been finally convicted of a misdemeanor violation of an explosives law or regulation within the two-year period immediately preceding filing of the application.
6. Held a permit issued under this article, which permit was revoked within that one-year period immediately preceding the filing of the application.
7. Has been adjudicated a mental defective; is an unlawful user of, or addicted to, a controlled substance or dangerous drug, or suffers from any other handicap, infirmity, defect, or condition which might reasonably diminish his competency to safely conduct the proposed activity or would create an unreasonable risk of injury to life or property in the performance of the proposed activity.

5608.2.5 Revocation of permit. The Fire Marshal shall revoke a permit if the permittee:

1. Intentionally makes a false statement as to a material matter in the permit application.
2. Knowingly allows another to use his permit.
3. Violates a term or condition of the permit.
4. Fails within the applicable time period to comply with an order or notice on him under this article; or
5. Fails to discharge a duty imposed on him by this Section.

The Fire Marshal shall, within five days from the date of revocation, send to the permittee by certified mail, return receipt requested, a written statement explaining the basis of the revocation.

5608.2.6 Appeal of permit refusal or revocation. If the Fire Marshal refuses to issue a permit under this section, that action is final unless the applicant or permittee, within 21 days after receiving a written notice of the action, files a written appeal with the Building Related Fire Codes Appeals and Advisory Board.

5608.2.7 Bond. The permittee shall furnish a bond or certificate of insurance in the minimum amount of one million dollars. The Fire Marshal may increase the amount of the required bond or insurance when he deems it advisable.

5608.2.8 Duties of permittee. A permittee shall:

1. Upon request, make his permit available for inspection to a member of the Fire Department, Police Officer, or any other authorized person.
2. Notify the Fire Marshal of the loss or destruction of an unexpired permit, notice to be given immediately upon discovery of the loss or destruction.
3. Secure a replacement permit for that lost or destroyed.
4. Comply immediately with the Fire Marshal's order to dispose of fireworks which become hazardous during the performance of this permitted activity; and
5. Return his permit to the Fire Marshal immediately upon its expiration, together

with a statement detailing the cause of expiration and the disposition of unused fireworks.

SECTION 5701.4 PERMITS is amended by adding SECTION 5701.4.1 PERMIT REQUIRED PRIOR TO INSTALLATION to read as follows:

5701.4.1 Permit required prior to installation. A tank installation permit from the Fire Department is required prior to beginning installation. Application for permit shall be accompanied by construction documents, in accordance with Section 106, for installation over the Edward's Aquifer and shall be reviewed by the Aquifer Study Division of the San Antonio Water System prior to submittal to the Fire Department for a permit.

SECTION 5703.6 PIPING SYSTEMS is amended by adding SECTION 5703.6.12 PRESSURIZED PIPING to read as follows:

5703.6.12 Pressurized piping. Where a pressurized (remote pumped) piping system is connected to a tank, the piping system shall have an approved leak detection device installed in the system to monitor for leaks in the piping.

SECTION 5704.2.11.4.2 LEAK DETECTION is amended to read as follows:

5704.2.11.4.2 Leak detection. Underground storage tank systems shall be provided with an approved method of leak detection from any component of the system that is designed and installed in accordance with NFPA 30. The following are approved methods of leak detection:

1. Manual tank gauging (for tanks less than 1,000 gallons).
2. Automatic tank gauging and inventory control.
3. Vapor monitoring.
4. Groundwater monitoring.
5. Interstitial monitoring of double-wall systems.
6. Monitoring of systems with secondary containment barriers.
7. Statistical Inventory Reconciliation (SIR) - (for tanks and lines).

NOTE: Documentation of performance claims for the SIR method must show the system's ability to detect releases of 0.1 GPH with 95% or more probability of detection and five percent or less probability of false alarm.

SECTION 5704.2.12.2 TESTING OF UNDERGROUND TANKS is amended to read as follows:

5704.2.12.2 Testing of underground tanks. Before being covered or placed in use, tanks and piping connected to underground tanks shall be tested for tightness in the presence of the fire code official. Piping shall be tested in accordance with Section 5703.6.3. The system shall not be covered until it has been approved. Each tank shall be tested for tightness hydrostatically or pneumatically at not less than three pounds per square inch or not more than five pounds per square inch for 60 minutes. Pneumatic testing shall not be used on a tank containing flammable or combustible liquids or vapors.

SECTION 5704.2.12.2 TESTING OF UNDERGROUND TANKS is amended by adding SECTIONS 5704.2.12.2.1 EXISTING TANKS AND PIPING and 5704.2.12.2.2 ALTERNATE TEST METHOD to read as follows:

5704.2.12.2.1 Existing tanks and piping. Existing underground storage tanks and piping shall be tested for leakage every five years at the owner's or operator's expense or when the Fire Marshal has reasonable cause to believe a leak exists. A log or record shall be kept, and the log shall be made available for inspection by the Fire Marshal when requested. Notice of test shall be provided in writing to the Fire Marshal by the owner or operator.

5704.2.12.2.2 Alternate test method. The Fire Marshal may require that the standpipe method of testing for tank leaks be utilized if, in the Fire Marshal's opinion, the air pressured tests would be unlikely to detect a leak, cause damage to tank or cause expulsion of contained liquids.

SECTION 5706.2.4 PERMANENT AND TEMPORARY TANKS is amended to read as follows:

5706.2.4 Permanent and temporary tanks. The capacity of permanent above-ground tanks containing Class I or II liquids shall not exceed 1,100 gallons (4164 L). The capacity of temporary above-ground tanks containing Class I or II liquids shall not exceed 2,000 gallons (7 570 L). Tanks shall be of the single-compartment design.

CHAPTER 80, REFERENCED STANDARDS, is amended by adding the following referenced standard:

NFPA 90A-24 Standard for the Installation of Air-Conditioning and Ventilating Systems

APPENDIX B, SECTION B102.1 DEFINITIONS is amended to read as follows:

FIRE FLOW. The flow rate of a water supply, measured at 25 pounds per square inch (psi)(172 kPa) residual pressure, that is available for firefighting.

APPENDIX B, SECTION B104.2 AREA SEPARATION IS AMENDED to read as follows:

B104.2 Area separation. Portions of buildings that are separated by fire walls without openings, constructed in accordance with the International Building Code, are allowed to be considered as separate fire-flow calculation areas.

Exception: Where building additions are protected with an approved automatic sprinkler system and separated from the existing building by an approved fire barrier with minimum fire resistance ratings and protected openings as per the International Building Code, fire areas may be considered as separate.

APPENDIX B, SECTION B105 FIRE-FLOW REQUIREMENTS FOR BUILDINGS is repealed and replaced with SECTION B105 FIRE-FLOW REQUIREMENTS FOR BUILDINGS to read as follows:

B105.1 One- and two-family dwellings. The minimum fire-flow and flow duration requirements for one- and two-family dwellings having a fire-flow calculation area that does not exceed 3,600 square ft (344.5 m 2) shall be 1,000 gallons per minute (3785.4 L/min) for 1 hour. Fire-flow and flow duration for dwellings having a fire-flow calculation area in excess of 3,600 square feet (344.5 m2) shall not be less than that specified in Table B105.1.

Exception: A reduction in required fire-flow of 50 percent, as approved, is allowed when the building is equipped with an approved automatic sprinkler system.

B105.2 Buildings other than one-and -two family dwellings. The minimum fire-flow and flow duration for buildings other than one- and two-family dwellings shall be as specified in Table B105.1.

Exceptions:

1. Buildings equipped throughout with an approved automatic sprinkler system in accordance with Sections 903.3.1.1, 903.3.1.2, or 903.3.1.3 shall qualify for a reduction in the required fire flow according to Table B105.2 below. Note also the minimum and maximum fire flows listed in the table for the fully sprinklered occupancies listed.
2. Non-fire sprinklered, non-combustible open parking garages meeting the requirements of the International Building Code Section 406.3 shall have a maximum required fire flow of 2,200 GPM.

Table B105.1 Minimum Required Fire-Flow And Flow Duration For Buildings

FIRE-FLOW CALCULATION AREA (square feet)					*FIRE-FLOW (gallons per minute)*[b]	*FLOW DURATION (hours)*
Type IA and IB [a]	*Type IIA and IIIA* [a]	*Type IV and V-A* [a]	*Type IIB and IIIB* [a]	*Type V-B* [a]		
0-22,700	0-12,700	0-8,200	0-5,900	0-3,600	1,500	2
22,701-30,200	12,701-17,000	8,201-10,900	5,901-7,900	3,601-4,800	1,750	
30,201-38,700	17,001-21,800	10,901-12,900	7,901-9,800	4,801-6,200	2,000	
38,701-48,300	21,801-24,200	12,901-17,400	9,801-12,600	6,201-7,700	2,250	
48,301-59,000	24,201-33,200	17,401-21,300	12,601-15,400	7,701-9,400	2,500	
59,001-70,900	33,201-39,700	21,301-25,500	15,401-18,400	9,401-11,300	2,750	
70,901-83,700	39,701-47,100	25,501-30,100	18,401-21,800	11,301-13,400	3,000	3
83,701-97,700	47,101-54,900	30,101-35,200	21,801-25,900	13,401-15,600	3,250	
97,701-112,700	54,901-63,400	35,201-40,600	25,901-29,300	15,601-18,000	3,500	
112,701-128,700	63,401-72,400	40,601-46,400	29,301-33,500	18,001-20,600	3,750	

FIRE-FLOW CALCULATION AREA (square feet)					*FIRE-FLOW (gallons per minute)*[b]	*FLOW DURATION (hours)*
Type IA and IB [a]	*Type IIA and IIIA* [a]	*Type IV and V-A* [a]	*Type IIB and IIIB* [a]	*Type V-B* [a]		
128,701-145,900	72,401-82,100	46,401-52,500	33,501-37,900	20,601-23,300	4,000	4
145,901-164,200	82,101-92,400	52,501-59,100	37,901-42,700	23,301-26,300	4,250	
164,201-183,400	92,401-103,100	59,101-66,000	42,701-47,700	26,301-29,300	4,500	
183,401-203,700	103,101-114,600	66,001-73,300	47,701-53,000	29,301-32,600	4,750	
203,700-225,200	114,601-126,700	73,301-81,100	53,001-58,600	32,601-36,000	5,000	
225,201-247,700	126,71-139,400	81,101-89,200	58,601-65,400	36,001-39,600	5,250	
247,701-271,200	139,401-152,600	89,201-97,700	65,401-70,600	39,601-43,400	5,500	
271,201-295,900	152,601-166,500	97,701-106,500	70,601-77,000	43,401-47,400	5,750	
295,901-Greater	166,501-Greater	106,501-115,800	77,001-83,700	47,401-51,500	6,000	
-	-	115,801-125,500	83,701-90,600	51,501-55,700	6,250	
-	-	125,501-135,500	90,601-97,900	55,701-60,200	6,500	
-	-	135,501-145,800	97,901-106,800	60,201-64,800	6,750	
-	-	145,801-156,700	106,801-113,200	64,801-69,600	7,000	
-	-	156,701-167,900	113,201-121,300	69,601-74,600	7,250	
-	-	167,901-179,400	121,301-129,600	74,601-79,800	7,500	
-	-	179,401-191,400	129,601-138,300	79,801-85,100	7,750	
-	-	191,401-Greater	138,301-Greater	85,101-Greater	8,000	

For SI: 1 square foot = 0.0929 m^2, 1 gallon per minute = 3.785 L/m, 1 pound per square inch= 6.895 kPa.

a. Types of construction are based on the International Building Code.

b. Measured at 25 PSI residual pressure.

Table B105.2—Fire Flow Reductions For Fully Sprinklered Buildings

Construction Type	*Occupancy Type*[4,5]	*% Reduction*	*Minimum (GPM)*	*Maximum (GPM)*
All	A	75	1,500	2,000
VB, IIIB, IIB	B	50	1,500	2,200
All Others	B	50	1,500	2,000

Construction Type	*Occupancy Type*[4,5]	*% Reduction*	*Minimum (GPM)*	*Maximum (GPM)*
All	E	75	1,500	2,000
VB, IIIB, IIB	F	50	1,500	2,200
All Others	F	50	1,500	2,000
All	H-1	See Footnotes	1,500	See Footnotes
All	H-2	See Footnotes	1,500	See Footnotes
All	H-3	See Footnotes	1,500	See Footnotes
All	H-4	See Footnotes	1,500	See Footnotes
Construction Type	Occupancy Type[4,5]	% Reduction	Minimum (GPM)	Maximum (GPM)
All	H-5	See Footnotes	1,500	See Footnotes
All	I	75	1,500	2,000
VB, IIIB, IIB	M	50	1,500	2,200
All Others	M	50	1,500	2,000
All	R	50	1,500	2,000
All except VB[2]	S-1 high piled Class I-IV commodities, ≤ 12,000 sq ft.		Greater of Approved Sprinkler Demand[3] (ASD) or 1,500 GPM	
All except VB[2]	S-1 high piled Class I-IV commodities, 12,000 sq ft		Greater of 2,200 GPM or the ASD + 25%	
All except VB[2]	S-1 high piled Class V commodities, ≤ 2,500 sq ft.		Greater of 1,500 GPM or the ASD	
All except VB[2]	S-1 high piled Class V commodities, 2,501-6,000 sq ft		Greater of 1,500 GPM or the ASD + 500 GPM	
All except VB[2]	S-1 high piled Class V commodities, 6,000 sq ft		Greater of 2,200 GPM or the ASD + 1,000 GPM	
All except VB[2]	S-1 Aircraft			
Hangers, Helistops	50	1,500	2,200	
All except VB[2]	S-2	50	1,500	2,200

Footnotes:

1. As determined by Fire Marshal on a case-by-case basis.
2. These occupancies that are constructed of Type VB construction shall not be granted a reduction in the required fire flow due to the installation of a fire sprinkler system.
3. Approved sprinkler demand (ASD) is the sprinkler demand as defined in NFPA or other nationally recognized standards and includes the hose stream demand. When multiple sprinkler systems are in one building, the approved sprinkler demand shall be the greatest sprinkler demand (including hose stream demand).
4. Occupancies containing High Piled Combustible Storage as defined in Chapter 32 shall be evaluated using the criteria for S-1 occupancies.
5. Mixed-use occupancies shall be evaluated for the most restrictive occupancy present in the building.

B105.3 FIRE-FLOW REQUIREMENTS FOR HYDRANTS PROTECTING CERTAIN ABOVE GROUND FLAMMABLE AND COMBUSTIBLE LIQUID STORAGE TANKS.

The minimum required fire flow for above ground storage tanks used for the storage of Class I, II, and IIIA liquid fuels in excess of 12,000 gallons, storage tank farms with an aggregate capacity of 48,000 gallons or greater,

or for refineries shall be a minimum 2,000 gallons per minute unless approved by the fire code official.

APPENDIX C, FIRE HYDRANT LOCATIONS AND DISTRIBUTION is hereby amended by amending TABLE C102.1 REQUIRED NUMBER AND SPACING OF FIRE HYDRANTS to read as follows:

TABLE C102.1 Number and Distribution of Fire Hydrants

PRE-FLOW REQUIREMENT (GPM)	*MINIMUM NUMBER OF HYDRANTS*
1,750 or less	1
1,751-2,250	2
2,251-3,250	3
3,251-4,000	4
4,001-5,000	5
5,001-6,000	6
6,001-7,000	7
7,001 or more	8 or more[a]

For SI: 1 foot= 304.8 mm, 1 gallon per minute = 3.785 L/m.

a. One hydrant for each 1, 000 gallons per minute or fraction thereof.

APPENDIX D FIRE APPARATUS ACCESS ROADS

APPENDIX D SECTION D103.5 FIRE APPARATUS ACCESS ROAD GATES is amended to read as follows:

D103.5 Fire apparatus access road gates. Gates securing the fire apparatus access roads shall comply with all of the following criteria:

1. Where a single gate is provided, the gate width shall be not less than 20 feet (6096 mm). Where a fire apparatus road consists of a divided roadway, the gate width shall be not less than 14 feet 4267 mm).
2. Gates shall be of the swinging or sliding type.
3. Construction of gates shall be of materials that allow manual operation by one person.
4. Gate components shall be maintained in an operative condition at all times and replaced or repaired when defective.
5. Electric gates shall be equipped with a means of opening the gate by fire department personnel for emergency access. Emergency opening devices shall be approved by the fire code official.
6. Methods of locking shall be submitted for approval by the fire code official.
7. Electric gate operators, where provided, shall be listed in accordance with UL 325.
8. Gates intended for automatic operation shall be designed, constructed and installed to comply with the requirements of ASTM F2200.

APPENDIX D SECTIONS D103.6.1 ROADS 20 TO 26 FEET IN WIDTH and D103.6. 2 ROADS MORE THAN 26 FEET IN WIDTH are repealed and replaced with SECTIONS D103.6.1 ROADS 20 TO 26 FEET IN WIDTH and D103.6.2 ROADS MORE THAN 26 FEET IN WIDTH to read as follows:

D103.6.1 Roads 20 to 26 feet in width. Fire lane signs in accordance with Section 503.3 of this code shall be posted on both sides of fire apparatus access roads that are 20 to 26 feet wide (6096 to 7925 mm).

D103.6.2 Roads more than 26 feet in width. Fire lane signs in accordance with Section 503.3 of this code shall be posted on one side of fire apparatus access roads more than 26 feet wide (7925 mm) and less than 32 feet wide (9754 mm).

APPENDIX D SECTION D104.1 BUILDINGS EXCEEDING THREE STORIES OR 30 FEET IN HEIGHT is repealed.

APPENDIX D SECTION D105.1 WHERE REQUIRED is amended to read as follows:

D105.1 Where required. Where the vertical distance between the grade plane and the highest roof surface exceeds 30 feet (9144 mm), approved aerial fire apparatus access roads shall be provided. For the purposes of this section, the highest roof surface shall be

determined by measurement to the eave of a pitched roof, the intersection of the roof to the exterior wall, or the top of parapet walls, whichever is greater.

Exceptions:

1. In other than Group R only buildings, aerial fire apparatus access roads per this section are not required where all of the following conditions are met:
   a. the building is equipped throughout with an approved automatic sprinkler system in accordance with Section 903.3.1.1, and
   b. roof access from an enclosed stairwell is provided for buildings 2 or more stories in height. Stairwell must be contiguous from the lowest level of fire department vehicle access to the roof and designed in accordance with the International Building Code, and
   c. any required fire apparatus access roads and fire lanes are designed with a minimum 25-foot width and provided throughout the platted property.
2. In Group R only buildings, aerial fire apparatus access roads per this section are not required where all of the following conditions are met:
   a. the building is no more than four stories in height, and
   b. the building is protected by an approved automatic sprinkler system in accordance with Section 903.3.1, and
   c. the building meets the allowable area provisions of Chapter 5 of the International Building Code without the use of the area increase factor due to sprinkler protection. (Note: Refer to IBC Equation 5-1.)

APPENDIX D SECTION D105.2 WIDTH is amended to read as follows:

D105.2 Width. Aerial fire apparatus access roads shall have a minimum unobstructed width of 26 feet (7925 mm), exclusive of shoulders, in the immediate vicinity of the building or portion thereof.

Exception: An aerial apparatus access lane may be less than 26ft wide where a minimum 25ft wide fire lane or fire apparatus access road is provided throughout the platted property.

APPENDIX D SECTION D105.3 PROXIMITY TO BUILDING is amended to read as follows:

D105.3 Proximity to building. At least one of the required access routes meeting this condition shall be located within a minimum of 15 feet (4572 mm) and a maximum of 39 feet from the building. The road shall be positioned parallel to the side(s) where the aerial access equipment will have maximum use and access by the fire department. The side of the building on which the aerial fire apparatus access road is positioned shall be approved by the fire code official. The length of the aerial apparatus road shall total at least one of the following:

1. The entire length of one side of the building provided the length is a minimum of 50 feet, or
2. 25% of the entire building perimeter.

APPENDIX D FIRE APPARATUS ACCESS ROADS is hereby amended by adding SECTION D106.4 SEPARATE ACCESS ROADS to read as follows:

D106.4 Separate access roads. The requirement for two separate and approved fire apparatus access roads are met with the following conditions:

1. A minimum of two separate entrances into the complex are made from the street or public way.
2. The distance between the two entrances are equal to not less than one half the length of the maximum overall diagonal dimension of the property or area to be

served, measured in a straight line between accesses, as per IFC, section D104.3.

Exception: Where it is physically impossible to be one-half the diagonal dimension apart, the access road will be approved if the following conditions are met:

a. The two separate fire apparatus access road must be separated as far as physically and practically possible.

b. The two separate entrances must be a minimum of 150 feet apart measured in a straight line between accesses.

3. The two separate entrances are allowed to share a common path of travel on the complex site so long as blockage in any one area of this path does not block access from both the primary and secondary access simultaneously. Each of the two separate fire apparatus roads shall meet the requirements of the IFC Section 503, Fire Apparatus Access Roads.

APPENDIX D SECTION D107.1 ONE- OR TWO-FAMILY RESIDENTIAL DEVELOPMENTS is amended to read as follows:

D107.1 One or two-family dwelling residential developments. Developments of one- or two- family dwellings where the number of dwelling units exceeds 30 shall be provided with two separate and approved fire apparatus access roads.

Exceptions:

1. Where there are more than 30 dwelling units accessed from a single public or private fire apparatus access road and all dwelling units are equipped throughout with an approved automatic sprinkler system in accordance with Section 903.3.1.1, 903.3.1.2 or 903.3.1.3, access from two directions shall not be required.

2. The number of dwelling units accessed from a single fire apparatus access road shall not be increased unless fire apparatus access roads will connect with future development, as determined by the fire code official.

3. Developments of more than 30 dwelling units but less than 126 dwelling units shall not require a separate and remote fire apparatus access road where:

   a. a divided entrance with a minimum of 24 feet per side is provided, and

   b. the divided entrance is connected to a minimum 30 foot wide, with no parking on either side, fire apparatus access road of no greater than 450 feet in length, and

   c. is connected to a looped street configuration as approved by the fire code official.

4. Developments of more than 30 dwelling units but less than 126 dwelling units having a secondary, all weather, gated access, that is utilized by emergency vehicles only meeting the remoteness requirements in Section D107.2 are considered in compliance with this section.

APPENDIX L, SECTION L101, GENERAL is repealed and replaced with SECTION L101, GENERAL to read as follows:

Section L101 GENERAL

L101.1 Installation. Where installed, Firefighter air replenishment systems (FARS) shall comply with this appendix.

L101.1.1 Supply Riser. Each stairwell shall have a supply riser. SCBA fill panels shall be located on odd numbered floors commencing at the first level in the primary stairwell and on even numbered floors commencing at level 2 in the remaining stairwells. Fill panels in buildings over 500,000 square feet in floor area shall be located adjacent to each standpipe connection.

APPENDIX L, SECTION L104.14.1, LOCATION is repealed and replaced with SECTION L104.14.1, LOCATION to read as follows:

L104.14.1 Location. The external mobile air connection shall be located with approved

separation from the fire department connection (FDC) to allow functionality of both devices by first responders; shall be visible from and within 50 feet of a fire apparatus access road along an unobstructed path; and shall be located in a secured cabinet with an approved sign.

APPENDIX M HIGH-RISE BUILDINGS - RETROACTIVE AUTOMATIC SPRINKLER REQUIREMENT is repealed and replaced with APPENDIX M HIGH-RISE BUILDINGS - AUTOMATIC SPRINKLER RETROFIT REQUIREMENT to read as follows:

APPENDIX M HIGH-RISE BUILDINGS—AUTOMATIC SPRINKLER RETROFIT REQUIREMENT

M101.1 Scope. An automatic sprinkler system shall be installed in all existing high-rise buildings in accordance with the requirements and compliance schedule of this appendix.

M102.1 Definition. High-rise building is defined in Chapter 2 of the International Fire Code.

SECTION M103 WHERE REQUIRED

M103.1 High-rise buildings. An automatic sprinkler system installed in accordance with Section 903.3.1.1 of the adopted International Fire Code shall be provided throughout existing high-rise buildings.

Exceptions:

1. Airport Control Towers
2. Open Parking Structures
3. Group U occupancies
4. Occupancies in Group F-2
5. Buildings with an occupancy in Assembly Group A-5
6. Individually owned dwelling units in high-rise buildings

SECTION M104 COMPLIANCE

M104.1 Letter of intent. By January 1, 2017, owners of existing high-rise buildings must have submitted to the fire code official a letter expressing the owner's intent to comply with this section.

M104.2 Compliance schedule. Building owners shall file a compliance schedule with the fire code official not later than October 1, 2021. The compliance schedule shall not exceed twelve (12) years for an automatic sprinkler system retrofit and shall comply with the following schedule for installation.

1. Not later than October 1, 2024, the building owner shall install a water supply for the automatic sprinkler system on all floors of the high-rise building in accordance with the adopted standards of the International Fire Code.

2. Not later than October 1, 2027, the building owner shall install an automatic sprinkler system in accordance with the adopted standards of the International Fire Code on 50% of the floors of the building.

3. Not later than October 1, 2030, the building owner shall install an automatic sprinkler system in accordance with the adopted standards of the International Fire Code on all floors of the building.

M104.3 Alternate Compliance Schedule for Multi-Building Owners. Owners of multiple high-rise buildings are considered to have met the requirements of Appendix M if a fire sprinkler system has been installed on all floors of:

1. at least 33 percent of the owner's high-rise buildings not later October 1, 2024;

2. at least 66 percent of the owner's high-rise buildings not later than October 1, 2027; and

3. all of the owner's high-rise buildings not later than October 1, 2030.

M104.4 Compliance with state law. Owners of applicable residential high-rise buildings must comply with Health and Safety Code,

Chapter 766, Subchapter B. Fire Protection Sprinkler Systems in Certain Residential High-Rise Buildings in Certain Counties.

(Ord. No. 2018-06-21-0494, § 3, 6-21-18; Ord. No. 2022-11-10-0875, Att. C, 11-10-22; Ord. No. 2025-01-30-0075, § 4(Att. B), 1-30-25)

Secs. 11-41—11-55. Reserved.

ARTICLE IV. FIREWORKS

Sec. 11-56. Use, shoot, discharge, etc., prohibited.

It shall be unlawful for any person to in any manner use, shoot, discharge, explode, ignite, or display any fireworks within the city, except as provided for in this section.

(Code 1959, § 26-15; Ord. No. 65619, § 1, 9-3-87; Ord. No. 79918, § 2, 3-31-94)

Sec. 11-57. Display permits.

(a) Any citizen of the city may give a public fireworks display, provided he secures a permit therefor from the Fire Marshal or his/her designee, as provided in this section. Application therefor shall be addressed to the Fire Marshal, shall state the name and residence of the applicant, the time and place of the proposed exhibition, a description of the kind, character and quantity of the fireworks intended to be displayed, and shall be accompanied by a cashier's or certified check for the amount of the fireworks permit fee.

(b) The Fire Marshal or his/her designee shall grant or reject such application as he sees fit in the reasonable exercise of his discretion. If same is rejected, the check for the amount of the fireworks permit fee shall be returned to the applicant; if it is granted, such check shall be retained as a fee for the permit.

(c) Fire inspectors to be present. For each public display of fireworks under this section, not less than two (2) fire prevention inspectors of the city shall be in attendance during the event. If more than two (2) fire inspectors are required or the inspectors work longer than two (2) hours, the additional expense shall be borne by the applicant for the permit at the rate per man-hour as provided for in section 11-16(k) of the City Code.

(d) No such permit shall be granted to any applicant more than twice during any calendar year, and any fireworks display thereunder shall be concluded not later than 10:00 p.m. on the date specified under the penalty as provided in section 1-5 of this Code. The display time may be extended past 10:00 p.m. as authorized by the on site inspector and the Fire Marshal or his/her designee.

(e) Reserved.

(f) As used in this section the term "fireworks" shall be given its usual and ordinary meaning, and shall include but not be limited to the following: firecrackers, Roman candles, sparklers, torpedoes, bombs, skyrockets, buzz bombs, atomic wings, aerial flash salutes, and trail blazers.

(Code 1950, § 41-10; Ord. No. 18384, § 1, 10-2-52; Ord. No. 53446, 2-26-81; Ord. No. 65619, § 1, 9-3-87; Ord. No. 70251, §§ 8, 9, 9-14-89; Ord. No. 71014, § 2, 2-1-90; Ord. No. 79918, § 2, 3-31-94; Ord. No. 2010-09-16-0791, § 1(Att. A), 9-16-10; Ord. No. 2011-11-03-0907, § 2, 11-3-11)

Sec. 11-58. Amusement parks utilizing permanent facilities for repeated public fireworks displays.

(a) *Authorization.* Notwithstanding the requirements of Chapter 33 of the the current International Fire Code adopted by the city or any superseding chapter and code as amended by sections 11-56, 11-57 and 11-40 of the City Code, an operator of an amusement park utilizing a permanent facility for repeated public fireworks displays may give nightly fireworks displays at such an amusement park provided he complies with the requirements of this section. As used herein, the term "nightly" shall mean one or more nights during the period covered by the permit. The applicant for a permit under this section may be the owner or operator (whether an individual, partnership or corporation) of the amusement park or any subsidiary or affiliate company.

(b) *Applicability.* This section shall apply only if the display facility is constructed for the purpose of multiple or repeat fireworks displays from the same location and the facility is permanent in nature or as approved by the Fire Marshal; however, the use of a floating barge on a lake or other body of water wholly located within the park shall be permitted and shall be considered a permanent display facility. Such a permanent display facility must be located on the grounds of a privately owned, commercially operated park open to the general public which contains various exhibits and devices for entertainment and/or educational purposes and which commercially operated park will operate at least five (5) days per week for at least two (2) months out of each calendar year or as approved by the Fire Marshal.

(c) *Annual display permits.* Prior to any display of fireworks at such amusement park, the operator must obtain either a single show permit from the city under section 11-57 or an annual display permit from the city under this section 11-58. An annual display permit will authorize the permittee to give nightly fireworks displays at the permittee's amusement park for a period of up to one year from the effective date of issuance. An annual display permit is neither transferable nor assignable.

(d) *Application for annual display permit.* The initial application shall be addressed to the Fire Marshal who shall, within seven (7) days after receipt of the application, endorse his written recommendation for approval thereon unless there exists some ground for disapproval under this section. The Fire Marshal shall pass upon such application within three (3) weeks of receipt and shall approve the same unless grounds for disapproval under subsection (f) exist. The application shall be accompanied by a cashier's or certified check for the amount as provided for in subsection 11-16(a)(17) of this Code, depending on whether the applicant requests permission for pyrotechnics display only, or fireworks and pyrotechnics displays. The permit shall be issued by the Fire Prevention Office upon approval of the application by the Fire Marshal. If the application is not approved by the Fire Marshal, the applicant may petition the Building and Fire Codes Board of Appeals or any superseding board to pass upon such application and the Building and Fire Codes Board of Appeals or any superseding board may grant or reject the same within its discretion. A certified copy of the Building and Fire Codes Board of Appeals or any superseding board action shall permit the Fire Prevention Office to issue the permit, which shall indicate on its face the effective period of the permit. Annual renewal permits may be approved by the Fire Marshal.

(e) *Application; contents.* The application for an annual permit shall be made in writing and submitted to the Fire Marshal at least thirty (30) days before the first use of fireworks under the permit. The application shall contain all the information required immediately below, and, in addition, required information found in Chapter 33 of the the current International Fire Code adopted by the city or any superseding chapter and code as amended by section 11-40 of the City Code:

(1) Name and permanent business address of applicant with designation of persons responsible for supervision of such displays;

(2) Diagram of display facility demonstrating its permanence and location at amusement park as contemplated by paragraph (a) of this section;

(3) Copy of applicant's state board of insurance license to conduct repeated fireworks displays;

(4) Copies of all participating pyrotechnicians' state operators license;

(5) Starting and ending times for each proposed display;

(6) Diagram of fire prevention and protection systems and description of fire safety procedures to be used to demonstrate compliance with paragraphs (n) and (o) of this section; and

(7) A surety bond or certificate of insurance coverage in an amount deemed adequate by the Fire Marshal for payment of all damages which may be caused either to a person or persons or to property by reason

of the permitted storage and arising from acts of the permittee, his agents and employees or subcontractors, provided, however, the amount of such bond or insurance shall not be required to exceed one million dollars ($1,000,000.00) per occurrence.

(f) *Grounds for disapproval.* The Fire Marshal may disapprove any application on the following grounds:

(1) Any of the grounds specified in Chapter 33 of the current International Fire Code adopted by the city or any superseding chapter and code as amended by section 11-40 of the City Code;

(2) Incompleteness of the application; or

(3) Failure of the applicant to meet the requirements of an amusement park with a permanent display facility as stated in paragraph (a) of this section.

If the Fire Marshal does not approve the issuance of the permit, the Fire Marshal shall within ten (10) days of the filing of the application for the permit, send to the applicant by certified mail, return receipt requested, a detailed explanation of the basis for refusal.

(g) *Special provisions.* The Fire Marshal may prescribe reasonable special provisions attached to the permit intended to minimize nuisance, prevent fires and explosions, and to protect property and public safety. The Fire Marshal may prescribe additional fire protection safeguards or safety reviews after the issuance of the annual permit should current weather, environmental, or site conditions warrant.

(h) *Grounds for revocation.* The Fire Marshal may revoke an annual permit on any of the following grounds:

(1) Any of the grounds specified in Chapter 33 of the current International Fire Code adopted by the city or any superseding chapter and code as amended by section 11-40 of the City Code;

(2) Failure of the permittee to meet the definition for a permanent facility at an amusement park under paragraph (a) of this section;

(3) Failure of the permittee to comply with special provisions prescribed according to paragraph (g) of this section;

(4) Failure of the permittee or operator to discharge a duty imposed on him by paragraphs (k) and (l) of this section;

(5) Failure of the permittee or operator to comply with the fire prevention and protection provisions of paragraph (n) or the fire prevention and safety program provisions of paragraph (o) of this section;

(6) Failure of the permittee or operator to construct and maintain the display facility in accordance with paragraph (m) of this section; or

(7) Changing weather, environmental, or wildfire concerns may create hazardous conditions where a pre-approved site may need to be re-evaluated. The Fire Marshal, or his/her designee, shall notify permit holders within seventy-two (72) hours of the next scheduled display that a site safety evaluation based on the changing conditions is required. The Fire Marshal may revoke the permit if additional approved fire prevention safeguards addressing the conditions are not provided.

(i) *Revocation; notice.* The Fire Marshal shall, within five (5) days from the date of revocation, send to the permittee by certified mail, return receipt requested, a written statement explaining the basis of the revocation.

Exception: Revocation under subsection (h)(7).

(j) *Appeal from refusal to issue annual permit or from decision to revoke.* If the Fire Marshal refuses to approve the application for a permit under this section, or the Fire Marshal makes a decision to revoke a permit issued under this section, that action is final unless the applicant or permittee, within ten (10) days after receiving a written notice from the Fire Marshal of the

action, files a written appeal with the Building and Fire Codes Board of Appeals or any superseding board for review and decision by the Building and Fire Codes Board of Appeals or any superseding board. The Building and Fire Codes Board of Appeals or any superseding board shall hear the appeal within twenty (20) days of the filing of the appeal with the Building and Fire Codes Board of Appeals or any superseding board.

(k) *Duties of the permittee.* A permittee shall:

(1) Upon request, make his permit available for inspection to a member of the fire department, police officer or other authorized person;

(2) Notify the Fire Marshal of the loss or destruction of an unexpired permit or license, notice to be given immediately upon discovery of the loss or destruction;

(3) Secure a replacement permit for that lost or destroyed;

(4) Comply immediately with the Fire Marshal's order to dispose of fireworks which become hazardous during the performance of a permitted activity;

(5) Return to the Fire Marshal any permit or license of the city upon its expiration and, if no superseding permit has been issued or the permit renewed, a detailed statement on the disposition of unused fireworks in the possession of the permittee upon expiration of the permit;

(6) Comply with special provisions prescribed according to paragraph (g) of this section;

(7) Construct and maintain an adequate fire prevention and protection system according to paragraph (n) of this section; and

(8) Operate an adequate fire prevention and safety program according to paragraph (o) of this section.

(l) *Duties of the operator.* The operator of a public fireworks display pursuant to this section shall:

(1) Restrain spectators by natural or man-made barriers at least two hundred (200) feet from the launch site;

(2) Fire projectiles:

a. The range of aerial display shall be not more than eight hundred (800) feet vertically and the fireworks shall be discharged vertically from steel, fiber or plastic tubes; or

b. So that the debris will fall in a body of water;

(3) Maintain an unobstructed spatial separation of:

a. Six hundred (600) feet between the ignition point and a school; and

b. Two hundred (200) feet between the ignition point and a highway, railroad or building open to the public other than a school;

(4) Discontinue the display if the wind carries dangerous fireworks debris (i.e. live shells or flaming debris) to adjoining property or if there are steady winds of twenty-five (25) mph or more at the time of the display;

a. Search the display area for unfired fireworks or fireworks debris; and

b. Safely dispose of unfired fireworks or firework debris in a manner approved by the Fire Marshal;

1. Conduct all display operations under the supervision of a properly licensed State of Texas licensed pyrotechnician; and

2. Comply with all permit special provisions as prescribed by the Fire Marshal pursuant to subsection (g) of this section.

(m) *Permanent display facility; construction requirements.* The permanent display facility shall be designed to assure continuous compliance with Chapter 33 of the current International Fire Code adopted by the city or any superseding chapter and code as amended. In addition, the Fire Marshal may prescribe reasonable requirements for construction of such facilities for the purposes of minimizing nuisance, preventing fires and explosions, and protecting property and public safety.

(n) *Fire prevention and protection system.* All permanent display facilities under this section shall construct and maintain an adequate fire prevention and protection system which shall include the following:

(1) Notwithstanding the requirements of Chapter 33 of the current International Fire Code adopted by the city or any superseding chapter and code as amended, for each public display, the operator shall have at least one trained and experienced in-house safety officer or in-house firefighter in attendance;

(2) For each public display, an operable privately owned fire truck approved by the Fire Marshal shall be maintained on the premises of the park or the park shall at its expense have arranged for such a vehicle to be provided by the city or other fire department approved by the Fire Marshal;

(3) During any display, air pressurized water hand held extinguishers or other approved portable extinguishers will be available for immediate use; and

(4) Any other reasonable fire prevention and protection systems prescribed by the Fire Marshal.

(o) *Fire prevention and safety program.* All permanent display facilities under this section shall develop and utilize the following program for fire prevention, fire protection and safety:

(1) An annual training program for in-house firefighters, including fire drills at the permanent display facility. Written guidelines for this training program shall be submitted to the Fire Marshal for his approval; and

(2) An annual staff training program for all staff handling the fireworks which provides for procedures to be followed for safety and evacuation in the event of a fire or explosion. Written guidelines for this training program shall be submitted to the Fire Marshal for his approval.

(p) *Limitation on time and number of displays.* No displays authorized by this section 11-58 shall be commenced prior to the hour of 9:00 a.m. or later than 11:00 p.m.; provided however, fireworks displays may be commenced after 11:00 p.m. on December 31st of any year, but before 1:00 a.m. on the following January 1st if such displays comply with all other requirements of the code. Any display authorized under this section shall be completed within one hour after the time the display is commenced. Display time limits on the day of the display may be extended with the approval of the on-site fire inspector and the Fire Marshal.

The use of Class C special effects pyrotechnics such as smoke effects, flash effects, etc. in shows shall not be subject to any time or number of display restrictions.

(q) *Class C special effects pyrotechnics.* Class C special effects pyrotechnics such as smoke effects, flash effects, etc. may be used by the holder of an annual display permit under this section 11-58 in shows without meeting the requirements of a display under this section 11-58 or section 11-57; provided, (i) the use of all such Class C devices complying with all applicable federal rules, laws and regulations for the use and storage of such Class C fireworks and (ii) the application of the Class C fireworks in the show has been approved by the Fire Marshal prior to the firework's first use in each new show. Approval of an application in one show shall constitute continuing approval of the same application in repeat performances of the same show.
(Ord. No. 66645, Att. A, 2-25-88; Ord. No. 75274, § 1, 2-20-92; Ord. No. 79918, § 2, 3-31-94; Ord. No. 99734, §§ 4, 5, 9-16-04; Ord. No. 99482, § 2, 7-22-04; Ord. No. 2011-11-03-0907, § 3, 11-3-11; Ord. No. 2025-01-30-0075, § 3, 1-30-25)

Sec. 11-59. Storage of fireworks.

(a) *Authorization.* Notwithstanding the requirements of Chapter 33 of the current International Fire Code adopted by the city or any superseding chapter and code as amended and subject to the requirements of state law, an operator of an amusement park utilizing permanent facilities for repeated public fireworks

displays and holding a valid annual display permit pursuant to section 11-58 may store fireworks on the amusement park property provided he obtains an annual storage permit from the Fire Marshal and provided that the requirements of this section are met. Annual storage permits issued pursuant to this section are neither transferable nor assignable. The applicant for a permit under this section may be the owner or operator (whether an individual, partnership or corporation) of the amusement park or any subsidiary or affiliated company.

(b) *Application for storage permit.* The application shall be addressed to the Fire Marshal, who shall, within seven (7) days after receipt of the application, endorse his/her written recommendation for approval thereon unless there exists some ground for disapproval under this section. The Fire Marshal shall pass upon such application within three (3) weeks of its receipt and shall approve the same unless grounds for disapproval exist under subsection (d) hereof. The application shall be accompanied by a cashier's or certified check for the amount as provided for in subsection 11-16(a)(18) of the City Code. The permit shall be issued by the Fire Prevention Office upon approval of the application by the Fire Marshal. If the application is not approved, the application may be presented to the Building and Fire Codes Board of Appeals or any superseding board which may then pass upon such application and may grant or reject same within its discretion. A certified copy of the Building and Fire Codes Board of Appeals or any superseding board action of approval shall be all that is required for the Fire Prevention Office to issue the permit.

(c) *Application; contents.* The application for an annual storage permit shall be addressed to the city council and shall contain the following information:

(1) Name and permanent business address of the applicant with designation of persons responsible for supervision of such storage;

(2) A surety bond or certificate of insurance coverage in an amount deemed adequate by the Fire Marshal for payment of all damages which may be caused either to a person or persons or to property by reason of the permitted storage and arising from acts of the permittee, his agents and employees or subcontractors, provided, however, the amount of such bond or insurance shall not be required to exceed one million dollars ($1,000,000.00) per occurrence;

(3) Maximum amount of each general type or class of fireworks to be stored at the park at any one time;

(4) Name and address of the company(s) supplying the fireworks;

(5) Detailed diagram of the proposed storage facility which demonstrates compliance with the construction requirements of paragraph (h) of this section; and

(6) Detailed operating procedures of the proposed storage facility which demonstrates compliance with paragraphs (i) and (k) of this section.

(d) *Grounds for disapproval.* The Fire Marshal may disapprove any application on the following grounds:

(1) Incompleteness of the application;

(2) Failure of the applicant to hold a valid annual display permit under section 11-58;

(3) Applicant has intentionally made false statements as to a material matter in the permit application;

(4) Applicant is under indictment for a felony or has been finally convicted of a felony offense within the five-year period immediately preceding the date of filing the application;

(5) Applicant was finally convicted of a misdemeanor violation of an explosives law within the two-year period immediately preceding the filing of the application;

(6) Applicant has held a permit under section 11-57 or 11-58 or this section and

such permit was revoked within the one year period immediately preceding the filing of the application; or

(7) The applicant has been adjudicated a mental defective; is an unlawful user of or addicted to a controlled substance or dangerous drug; or suffers from any other handicap, infirmity, defect, or condition which might reasonably diminish his competency to safely conduct the proposed activity and/or would create an unreasonable risk of injury to life or property in the performance of the proposed activity.

(e) *Special provisions.* The Fire Marshal may prescribe reasonable special provisions attached to the permit intended to minimize nuisance, prevent fires and explosions, and to protect property and public safety.

(f) *Grounds for revocation.* The Fire Marshal may revoke an annual permit on any of the following grounds:

(1) If the permittee intentionally makes a false statement as to a material matter in the permit application;

(2) If the permittee knowingly allows another to use his permit;

(3) If the permittee fails to comply with any special provisions of the permit;

(4) If the permittee fails, within the applicable time period, to comply with an order of the Fire Marshal pursuant to this section; or

(5) If the permittee fails to comply with any of the requirements of paragraphs (i), (j), (k), or (l) of this section.

(g) *Revocation; notice.* The Fire Marshal shall, within five (5) days from the date of revocation, send to the permittee by certified mail, return receipt requested, a written statement explaining the basis of the revocation and the effective date which shall allow permittee a reasonable period of time to remove the fireworks from the storage facility.

(h) *Appeal from refusal to issue permit; from decision to revoke.* If the Fire Marshal refuses to approve the issuance of a permit issued under this section, that action is final unless the applicant or permittee, within ten (10) days after receiving a written notice from the Fire Marshal of the action, files a written appeal with the clerk of the city for review and determination by the Building and Fire Codes Board of Appeals or any superseding board shall hear the appeal within twenty (20) days of the filing of the appeal.

(i) *Storage construction requirements.* All fireworks other than those to be used in a display to occur within twelve (12) hours must be stored in magazines meeting the construction requirements of this paragraph. Each such magazine shall be constructed and maintained to be:

(1) Bullet resistant;

(2) Non-combustible or flame retardant;

(3) Moisture resistant adequate to prevent dampening of fireworks or explosive ingredients;

(4) Adequately ventilated to prevent dampening or heating of fireworks or explosive ingredients with ventilation covered by a screen of a size of mesh adequate to prevent entry of sparks and rodents;

(5) The owner or operator shall construct and maintain magazines using one of the following assemblies:

a. Masonry units at least eight (8) inches thick, with all hollow spaces filled with concrete, well-tamped sand, or equivalent material;

b. Reinforced concrete of at least six (6) inches thick;

c. Two (2) layered fourteen (14) gauge steel, with layers separated by at least six (6) inches of concrete, well-tamped sand, or equivalent material;

d. One layered six (6) gauge steel, lined on the interior with wood at least four (4) inches thick;

e. Two (2) layered six (6) gauge steel, with layers separated by a one-half (½) inch air space and lined on the interior with wood at least two (2) inches thick or two (2) layered wood with layers at least two (2) inches thick, and separated by four (4) inches of concrete, well-tamped sand, or equivalent material;

f. A portable indoor magazine which meets the requirements of all applicable federal rules and regulations for the storage of fireworks used in conjunction with permanent magazines.

(6) Floors of all non-portable magazines shall be securely anchored in place and shall be capable of withstanding the loads imposed;

(7) The magazine shall contain one or more doors, each of which is bullet resistant, weather resistant, fire resistant and of strength equal to the magazines' assembly described in subsection (i)(5) and secured with hinges and hasps attached to the door and magazine by means of welding, riveting, or bolting with fastening nuts on the inside of the magazine and equipped with a substantial and adequate means of locking as approved by the Fire Marshal. Locking devices shall be provided with protectors to minimize the possibility of tampering;

(8) The magazine interior shall, to the extent reasonably possible, have a smooth finish with all nails, screws, bolts, and nuts countersunk or blinded;

(9) Heating and lighting sources, if any, within the magazine shall be limited to those artificial sources having an operating temperature less than the ignition temperature of the material stored; and

(10) Unobstructed spacing separation between magazines and occupied buildings, passenger railways, public highways, and other magazines, as required by the Fire Marshal, shall be maintained.

(j) *Maintenance and safety.* The operator shall comply with the following safety procedures intended to minimize fires and explosions:

(1) The magazine shall be maintained clean, dry, and free of grit, paper, empty packages, rubbish, and other combustible materials;

(2) Magazines shall be limited to the storage of fireworks and detonating materials only. Detonating materials must be stored in separate magazines. No metal tools shall be stored inside the same magazine as any fireworks or detonating materials;

(3) The land surrounding magazines shall be kept clear of brush, dried grass, leaves, trash and debris for a distance of at least fifty (50) feet;

(4) Smoking, matches, open flames, spark producing devices and firearms shall be prohibited inside or within fifty (50) feet of the magazines. Combustible material shall not be stored within fifty (50) feet of magazines;

(5) A written record of all fireworks received and stored shall be maintained at the site and such records shall be made available to the Fire Marshal upon request;

(6) When any fireworks have deteriorated to an extent that they are in an unstable or dangerous condition, then the operator shall immediately notify the Fire Marshal of this fact. When ordered to do so by the Fire Marshal, the operator shall destroy such fireworks or explosive ingredients in a manner approved by the Fire Marshal;

(7) Empty containers of fireworks shall not be used for any purpose. The operator shall destroy all empty containers of fireworks in a safe manner as prescribed by the Fire Marshal;

(8) The operator shall comply with any other reasonable special provisions prescribed by the Fire Marshal intended to prevent fires and explosions.

(k) *Magazines; security.* The operator shall comply with the following security procedures:

(1) Magazines shall be kept locked at all times except during inspection, loading and unloading of fireworks;

(2) Magazines shall be in the custody of competent persons at all times, each of which must be at least twenty-one (21) years of age. Each such custodian shall be responsible for compliance with all safety and security requirements. No person may entrust the custody of the magazines to a person whom he knows or has reason to believe is legally incompetent;

(3) The magazine shall be located in restricted areas which are not readily open to the general public visiting the park;

(4) The doors of magazines shall display conspicuous warning signs as designed in conformity with Fire Marshal specifications. Such warning signs shall also be posted at least twenty-five (25) feet, but not more than two hundred (200) feet, from the magazine along its vehicular and pedestrian approaches;

(5) No non-essential or unauthorized personnel shall enter the magazine. Magazines shall be situated such that access by the general public or other non-essential or unauthorized personnel is precluded by natural or man-made barriers, such as walls, pits, fencing, or bodies of water;

(6) The operator shall immediately notify the Fire Marshal and the police department of any suspected theft of fireworks; and

(7) The operator shall comply with any other reasonable special provisions prescribed by the Fire Marshal intended to ensure adequate security for stored fireworks.

(l) The operator shall allow entry for inspection by the Fire Marshal or his designees at reasonable times to ensure compliance with this section.

(Ord. No. 66645, Att. A, 2-25-88; Ord. No. 79918, § 2, 3-31-94; Ord. No. 99482, § 2, 7-22-04; Ord. No. 2011-11-03-0907, § 4, 11-3-11; Ord. No. 2025-01-30-0075, § 3, 1-30-25)

Secs. 11-60—11-70. Reserved.

ARTICLE V. EMERGENCY MEDICAL SERVICES*

Sec. 11-71. EMS incident report search fee.

A EMS incident report search fee of four dollars ($4.00) for on-site searches and ten dollars ($10.00) for off-site searches shall be charged for each emergency medical services incident report provided to a requester.

(Ord. No. 82813, § 2, 9-14-95)

Sec. 11-72. EMS stand-by fee.

(a) An EMS stand-by fee to provide emergency medical services to outside agencies shall be assessed at a rate of one hundred dollars ($100.00) per hour. The fee shall cover the rental of a fully equipped reserve ambulance on a stand-by basis and the necessary staffing. Services shall be for a minimum of two (2) hours, with additional hours or fraction thereof, to be paid at the full rate of two hundred dollars ($200.00). Staffing shall be from the EMS division and shall be paid by the San Antonio Fire Department at the same overtime rate the city pays paramedics.

(b) In the event a unit coordinates a service, such as material or transportation, all charges for services shall be made under the same fee structure as for a regular call.

(Ord. No. 86608, § 25, 9-11-97)

Sec. 11-73. Bicycle paramedic stand-by fee.

(a) A bicycle paramedic stand-by fee for emergency medical services requested for special event activities shall be assessed at a rate of one hundred ten dollars ($110.00) per hour. The fee shall cover the cost of staffing the event with two (2) paramedics on bicycles. Service shall be for a minimum of two (2) hours, with additional hours or fractions thereof, to be paid at the full rate of one hundred ten dollars ($110.00). Requests for service will be coordinated through the EMS administrative office.

*__Editor's note—__Ord. No. 82813, § 2, adopted Sept. 14, 1995, amended Ch. 11 by the creation of Art. V, § 11-71 to read as herein set out.

(b) In the event a unit coordinates a service, such as material or transportation, all charges for services shall be made under the same fee structure as for a regular call.
(Ord. No. 86608, § 26, 9-11-97; Ord. No. 2016-09-15-0697, § 2(Att. B), 9-15-16)

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Chapter 12

VACANT BUILDINGS AND DECONSTRUCTION*

Article I. Vacant Structures in the Central Business District, Historic Districts, Vacant Designated Historic Landmarks, and Half-Mile Perimeters around Active Military Bases, and Within One Thousand Feet of a Public or Private School or State Licensed Child-Care Facility

Sec. 12-1. Definitions.
Sec. 12-2. Applicability and administration.
Sec. 12-3. Registration required.
Sec. 12-4. Registration fees.
Sec. 12-5. Property manager or agent.
Sec. 12-6. Standard of care for vacant property.
Sec. 12-7. Fee waivers.
Sec. 12-8. Exemptions.
Sec. 12-9. Jurisdiction, enforcement and penalties.
Secs. 12-10—12-19. Reserved.

Article II. Deconstruction

Sec. 12-20. Purpose and scope.
Sec. 12-21. Definitions.
Sec. 12-22. Applicability and administration.
Sec. 12-23. Demolition permit and deconstruction requirements.
Sec. 12-24. Exemptions.
Sec. 12-25. Appeals.
Sec. 12-26. Violations, penalties, and enforcement.

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*__Editor's note—__Ord. No. 2022-09-08-0668, § 1, adopted Sep. 8, 2022, amended Ch. 12 in its entirety and in so doing changed the title of said Ch. 12 from vacant buildings to read as set out herein.

__Editor's note—__Prior to the reenactment of chapter 12 by Ord. No. 2014-06-19-0461, § 1, adopted June 19, 2014, Ord. No. 65513, § 2(b), adopted August 13, 1987, repealed the former chapter 12, relative to flood plains, in its entirety in conjunction with the adoption of the Unified Development Code. The substantive provisions of the former chapter 12 derived from Ord. No. 57969, § 2(Arts. 1—6), adopted December 1, 1983 and Ord. No. 64791, adopted March 26, 1987. Provisions regarding flood plains are currently contained in chapter 35 of this Code.

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ARTICLE I. VACANT STRUCTURES IN THE CENTRAL BUSINESS DISTRICT, HISTORIC DISTRICTS, VACANT DESIGNATED HISTORIC LANDMARKS, AND HALF-MILE PERIMETERS AROUND ACTIVE MILITARY BASES, AND WITHIN ONE THOUSAND FEET OF A PUBLIC OR PRIVATE SCHOOL OR STATE LICENSED CHILD-CARE FACILITY

Sec. 12-1. Definitions.

The following words, terms, and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

(1) *Active military base* means a federal military reservation which serves to house and train U.S. military troops and which is located in full or in part within the meets and bounds of the San Antonio city limits.

(2) *Central business district* is located as noted on maps which will be made available by the Director, and as previously defined in this Code as: Beginning at South San Marcos Street at its intersection with West Commerce Street, south to its intersection with Matamoros Street, east to its intersection with the Union Pacific Railway, south to South Alamo Street, north to its intersection with East Cesar Chavez Boulevard, east to South Cherry Street, north to its intersection with East Commerce Street, east to its intersection with North Mesquite Street, north to its intersection with Burleson Street, west to its intersection with Austin Street, north to its intersection with Casa Blanca Street, west to Newell Avenue, southwest to East Elmira Street, west to the intersection of West Elmira and the westbound service road of Interstate Highway 10, underneath Interstate Highway 10, then westbound from the intersection of the Interstate Highway 10 eastbound service road and Perez Street to its intersection with North Frio Street, south to its intersection with West Martin Street, west to its intersection with North San Marcos Street, south to its intersection with West Commerce Street.

(3) *Child-care facility* means a facility licensed, certified, or registered by the Texas Department of Family and Protective Services to provide assessment, care, training, education, custody, treatment, or supervision for a child under 18 years of age who is not related by blood, marriage, or adoption to the owner or operator of the facility, for all or part of the twenty-four-hour day, whether or not the facility is operated for profit or charges for the services it offers.

(4) *City initiated tax increment reinvestment areas* (or *city initiated TIRZ*) means the districts created by city council consistent with Section III(B) and IV(D) of the city council adopted Tax Increment Financing Program Policy. These districts aim to revitalize areas through reinvestment initiatives and the implementation of existing city programs and city adopted plans.

(5) *Defense base development authority* means a special district and political subdivision created under V.T.C.A., Local Government Code ch. 379(B).

(6) *Department* means the Office of Historic Preservation for the City of San Antonio, Bexar County, Texas.

(7) *Director* refers to the director of the Office of Historic Preservation for the City of San Antonio, Bexar County, Texas, and his/her designees.

(8) *Half-mile perimeter* means a radius distance of one-half (½) mile extending from the perimeter of an area into the surrounding neighborhoods which are within the city limits.

(9) *Historic district* means an area designated as such through approved means by city

council, state or federal authority, and as previously defined and adopted in this Code.

a. *Historic landmark* means an individual structure or property which has been designated as such through approved means by city council, state or federal authority, and as previously defined and adopted in this Code.

(10) *Neighborhood conservation district* means an area designated as such through approved means by city council, state or federal authority, and as previously defined and adopted in this Code.

(11) *Owner* means any person, agent, firm, partnership or corporation having a legal interest in the property.

(12) *Private school* means a school that offers a course of instruction for students in one or more grades from prekindergarten through grade 12 and is not operated by a governmental entity.

(13) *Public school* means a school that offers instruction for students in one or more grades from prekindergarten through grade 12 that is operated by a governmental entity or funded by a governmental source.

(14) *Secured* means that all accessible means of ingress and egress to the vacant structure, including but not limited to all exterior doorways and windows are locked so as to prevent unauthorized entry by vagrants and criminals.

a. *Temporarily secured* means that all accessible means of ingress and egress to the vacant structure, including but not limited to all exterior doorways and windows are covered with plywood which has been nailed or bolted in place so as to prevent unauthorized entry by vagrants and criminals.

(15) *Structure* means that which is built or constructed.

(16) *Vacant structure* means that all lawful activity has ceased, or reasonably appears to have ceased for thirty (30) days.

a. *Lawful activity* is that the current use of the structure is also that which the structure was built for or intended to be used for.

(Ord. No. 2014-06-19-0461, § 1, 6-19-14; Ord. No. 2016-09-15-0699, § 1, 9-15-16; Ord. No. 2023-09-21-0672, § 1, 9-21-23)

Sec. 12-2. Applicability and administration.

(a) This article shall apply to all vacant structures, as defined herein, which are now in existence or which may hereafter be constructed or converted from other uses and which are located within the boundary of or within a one-half-mile perimeter of the Central Business District, all historic districts, neighborhood conservation districts, city initiated TIRZ, as well as all vacant historic landmarks and vacant structures within a one-half-mile perimeter of all active military bases and defense base authorities, and all vacant structures located within one thousand (1,000) feet of a public or private school or a child-care facility that is open and in operation.

(b) The director is authorized to administer and enforce the provisions of this article.

(c) The director shall have the authority to render interpretations of this title and to adopt policies and procedures in order to clarify the application of its provisions. The director, at his sole discretion, may also enter into an agreement with a registered property owner to obtain compliance with this article by a date certain.

(Ord. No. 2014-06-19-0461, § 1, 6-19-14; Ord. No. 2016-09-15-0699, § 1, 9-15-16; Ord. No. 2023-09-21-0672, § 1, 9-21-23)

Sec. 12-3. Registration required.

(a) The vacant structure property owner shall have ninety (90) days in which to register from the date that written notice is issued to the property owner. Written notice shall be issued to the vacant structure property owner by means of personal service, or by first class mail to their

last known address according to Bexar County Appraisal District records, and by posting on the property. The Director may consider evidence provided that the property is listed for sale or lease for fair market value and for a reasonable length of time for purposes of extending the length of time before the property must be registered.

(b) Upon the issuance of notice to register vacant structure, property owners shall register with the Department and provide the following information:

(1) The address and legal description of the property;

(2) The current name, physical address, mailing address, telephone number, and email information for any owner(s) with an ownership interest in the property. Corporations or corporate entities shall submit the same information pertaining to their registered agent.

(3) The contact information for a local manager of the properties and/or improvements located on said property, as applicable.

(4) Proof of liability insurance, no less than one hundred thousand dollars ($100,000.00), for the property and/or a surety bond for the value of structure if insurance cannot be obtained. Said value shall be the appraised value as determined by the Bexar County Appraisal District. This subsection is not applicable to single family residential structures.

(5) Complete the comprehensive plan of action form, provided by the department, detailing a timeline for correcting violations, rehabilitation, maintenance while vacant, and future use of the structure. The plan of action must be updated every six (6) months.

(6) A complete floor plan of the property for use by first responders in the event of a fire or other catastrophic event.

(7) Criminal trespass affidavits shall be filed with the San Antonio Police Department by the property owner and said property owner shall post "No Trespass" placards on the premises. Additional employment of security services for the property for a specified number of hours every day, may be required by the director on the basis of the property's history of code and/or criminal violations.

(8) Vacant structure property owners shall provide written notice to the director, including a copy of the deed, of a change in:

a. Ownership of the property;

b. Contact information for either the owner or the designated manager.

Written notice must be provided to the department no later than 30 days after said changes have occurred.

(c) Continued annual registration of the property by the vacant structure property owner is required until said structure is deemed occupied and in compliance with all relevant code requirements by the director.
(Ord. No. 2014-06-19-0461, § 1, 6-19-14)

Sec. 12-4. Registration fees.

(a) Vacant structure property owners shall tender an annual registration fee of four hundred dollars ($400.00) for single-family residential structures or nine hundred dollars ($900.00) for all other structures, with an annual inspection fee of one cent ($0.01) per square foot, as determined by Bexar County Appraisal District, with a fifty-dollar ($50.00) minimum charge. The registration fee shall be pro-rated for the first time a property is registered with the city. Subsequent annual registration fees shall be due and postmarked no later than January 31st of each year.

(b) If the registration paperwork is submitted in its entirety within forty-five (45) days of the date the written notice was mailed, then the property owner may be entitled to a one hundred dollar ($100.00) discount. However, failure to submit the registration paperwork in its entirety

within the ninety (90) day time period may result in an additional one hundred fifty dollar ($150.00) fee.
(Ord. No. 2014-06-19-0461, § 1, 6-19-14; Ord. No. 2016-06-16-0466, § 1, 6-16-16; Ord. No. 2025-09-18-0629, § 2(Att. E), 9-18-25)

Sec. 12-5. Property manager or agent.

(a) Vacant structure property owners must designate a local manager for said properties and include the relevant contact information for the designated manager upon registering the property with the department. Property managers shall act as agents for the property owner for purposes of accepting legal service, however the vacant property owner remains personally liable in criminal prosecutions for code violations.

(b) The property manager or agent must be available at the number listed at all times in the event of an emergency or catastrophe. For all vacant properties except for single-family residential structures: the name and telephone number of the property manager or agent must be posted at the front of the building, in large, legible print.
(Ord. No. 2014-06-19-0461, § 1, 6-19-14)

Sec. 12-6. Standard of care for vacant property.

(a) The standard of care, subject to approval by the director, shall include, but is not limited to:

(1) *Protective treatment:* All exterior surfaces, including but not limited to, doors, door and window frames, cornices, porches, trim, balconies, decks and fences, shall be maintained in good condition, weather tight and in such condition so as to prevent the entry of rodents and other pests. All exposed wood or metal surfaces subject to rust or corrosion, other than decay resistant woods or surfaces designed for stabilization by oxidation shall be protected from the elements and against decay or rust by periodic application of weather coating materials such as paint or similar surface treatment. All surfaces with rust or corrosion shall be stabilized and coated to inhibit future rust and corrosion. Oxidation stains shall be removed from exterior surfaces. All siding, cladding and masonry joints, as well as those between the building envelope and the perimeter of windows, doors and skylights, shall be maintained weather resistant and water tight.

(2) *Premises identification:* The property shall have address numbers placed in a position to be plainly legible and visible from the street or road fronting the property. These numbers shall contrast with their background. Address numbers shall be Arabic numerals or alphabet letters. Numbers shall be a minimum of four inches (102mm) high with a minimum stroke width of one-half inch (12.7mm). All buildings shall display a vacant building identification placard as required by the director.

(3) *Structure:* All structural members and foundation shall be maintained free from deterioration, and shall be capable of safely supporting the imposed loads.

(4) *Exterior walls:* All exterior walls shall be kept in good condition and shall be free from holes, breaks, and loose or rotting materials. Exterior walls shall be maintained weatherproof and properly surface coated where necessary to prevent deterioration.

(5) *Roof and drainage:* The roof and flashing shall be sound, tight and not have defects that admit rain. Roof drainage shall be adequate to prevent accumulation, dampness or deterioration. Roof drains, gutters and downspouts shall be maintained in good repair, free from obstructions and operational.

(6) *Decorative features:* All cornices, belt courses, corbels, applications, wall facings and similar decorative features shall be maintained in good repair with proper anchorage and in a safe condition.

(7) *Overhang extensions and awnings:* All overhang extensions including, but not

limited to canopies, marquees, signs, awnings, and fire escapes shall be maintained in good repair and be properly anchored and supported as to be kept in a sound and safe condition.

(8) *Stairways, decks, porches and balconies:* Every exterior stairway, deck, porch and balcony, and all appurtenances attached thereto, shall be maintained structurally sound, in good repair, with proper anchorage and capable of supporting the imposed loads.

(9) *Chimneys and towers:* All chimneys, cooling towers, smoke stacks and similar appurtenances shall be maintained structurally safe and sound, and in good repair.

(10) *Handrails and guards:* Every exterior handrail and guard shall be firmly fastened and capable of supporting normally imposed loads and shall be maintained in good condition.

(11) *Window, skylight and door:* Every window, storefront, skylight and exterior door part, including but not limited to the frame, the trim, window screens and hardware shall be kept in sound condition and good repair. All broken or missing windows shall be replaced with glass and secured in a manner so as to prevent unauthorized entry. All broken or missing doors shall be replaced with new doors which shall be secured to prevent unauthorized entry. All glass shall be maintained in sound condition and good repair. All exterior doors, door assemblies and hardware shall be maintained in good

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condition and secured. Locks at all exterior doors, exterior attic access, windows, or exterior hatchways shall tightly secure the opening. Windows and doors shall not be secured by plywood or other similar means mounted on the exterior except as a temporary securing measure, and the same shall be removed within a period of time designated by the director.

(12) *Basement hatchways and windows:* Every basement hatchway shall be maintained to prevent the entrance of rodents, rain and surface drainage water. Every basement window that is openable shall be supplied with rodent shields, storm windows or other approved protection against entry of rodents.

(b) All repairs shall be subject to approval by the director. All required permits and final inspections prior to and/or following repairs shall be in accordance with applicable laws and rules. Historic properties and properties within designated historic districts are additionally subject to all applicable rules and regulations as codified in chapter 35 of the Code.

(c) Failure to maintain the vacant property to the standard of care specified by the department is a violation of this article.
(Ord. No. 2014-06-19-0461, § 1, 6-19-14)

Sec. 12-7. Fee waivers.

All fee waivers must be applied for, using the forms provided, on an annual basis, and are subject to approval by the director. A fee waiver is only valid for twelve (12) months.

(1) Property which has been devastated by a catastrophe such as fire or flood: The owner has thirty (30) days to register from the date of the disaster but may be exempt from the fees. This exemption is for the duration of one (1) year from the date of the catastrophe; thereafter all applicable fees are due.

(2) A property owner who is indigent must register and is otherwise subject to this article but may be exempt from the fees.

(3) Representatives of a property owner who is deceased or is no longer legally competent must register the property and are otherwise subject to this article but may be exempt from the registration fees.

(4) Where the owner of the property has obtained a building permit and is progressing in an expedient manner to prepare the premises for occupancy, the owner must register the property and is otherwise subject to this article but may be exempt from the registration fees.

(5) Where the property owner of a property that is not a single-family residence has maintained the property to the standard of care required under this article, as well as all other applicable ordinances and laws, the owner must register the property but may be exempt from the registration fees.
(Ord. No. 2014-06-19-0461, § 1, 6-19-14; Ord. No. 2016-06-16-0466, § 1, 6-16-16)

Sec. 12-8. Exemptions.

Single-family residential structures which meet the standard of care as stated in section 12-6 are exempt from this article.
(Ord. No. 2014-06-19-0461, § 1, 6-19-14)

Sec. 12-9. Jurisdiction, enforcement and penalties.

(a) Written notice of violation will precede the issuance of a criminal citation, in which the vacant property owner will be given a reasonable length of time, as determined by the director, to remedy the violation. Written notice shall be issued to the vacant structure property owner by means of personal service, or by first class mail to their last known address according to Bexar County Appraisal District records, and by posting on the property.

(b) Failure to register with the department after written notice to the vacant structure property owner, as is hereinafter specified, is a violation of this article.

(c) Violation of this chapter is a Class C misdemeanor.

(1) This is a strict liability offense in which no mental state is required.

(2) The fine for this offense may not exceed five hundred dollars ($500.00).

(d) Administrative, civil, and criminal enforcement are alternative remedies which may be sought independently of each other. Criminal prosecution may occur regardless of pursuit of civil or administrative remedies and vice versa.
(Ord. No. 2014-06-19-0461, § 1, 6-19-14)

Secs. 12-10—12-19. Reserved.

ARTICLE II. DECONSTRUCTION

Sec. 12-20. Purpose and scope.

(a) *Purpose.* This article shall be construed to secure its expressed intent, which is to provide demolition and deconstruction requirements to safeguard the public safety, health, and general welfare associated with building removal, including the reduction of airborne toxic pollutants, carbon emissions, water consumption, and the dumping of refuse and demolition waste. In addition, this article seeks to increase the availability of high-quality and reclaimed building materials for local re-use; improve equity of access to building materials for use in affordable housing preservation and production; encourage neighborhood continuity; retain historic building materials in the communities from which they originated; develop and sustain a local workforce in construction, heritage trades, and deconstruction; and achieve citywide sustainability goals and mitigation strategies outlined in the city's adopted Climate Action and Adaptation Plan (CAAP), including the development of a local circular economy. The purpose of this article is not to create or to establish a standard for a building product, material or aesthetic method in construction, renovation, maintenance, or other alteration of a residential or commercial building.

(b) *Scope.* This article provides the procedures to be followed by all persons engaged in the removal of residential and accessory structures within the territorial limits of the City of San Antonio, Texas that meet the criteria for deconstruction established herein.
(Ord. No. 2022-09-08-0668, § 1, 9-8-22)

Sec. 12-21. Definitions.

The following definitions shall apply in the interpretation and enforcement of this article.

Accessory structure means a building, structure, or use on the same lot with, and of a nature customarily incidental and subordinate to, the principal building or use. Examples include garages carriage houses, accessory dwelling units, or tool sheds.

Certified deconstruction contractor means any person doing work within the building trades or construction professions that has successfully completed a deconstruction certification program as administered through the City of San Antonio Office of Historic Preservation.

City means the City of San Antonio, Texas.

Deconstruction means the systematic dismantling of a structure, typically in the opposite order it was constructed, from roof to foundation, in order to maximize the salvage of materials for re-use, in preference over salvaging materials for recycling, energy recovery, or sending the materials to the landfill.

Demolition means the complete or partial removal of a structure from a site.

Director means the director of the office of historic preservation for the City of San Antonio, Bexar County, Texas, and his/her designee.

Multi-unit structure means a residential structure with two (2) or more residential attached dwelling units including, but not limited to, duplexes, apartments, townhomes, and condominiums.

Period of deconstruction means the period beginning on the date the city issues a demolition permit with deconstruction requirements and ending on the date the city approves the

post-deconstruction form, which shall be a maximum of sixty (60) calendar days or as specifically provided in the permit requirements of the subject application, whichever period is greater.

Post-deconstruction form means an inventory of actual materials salvaged for re-use or donation, as well as materials discarded or landfilled, to be completed and submitted after deconstruction is fully complete to initiate permit closure by the director.

Pre-deconstruction form or *salvage plan* means an inventory of materials to be salvaged for re-use or donation as part of an application to deconstruct.

Recycling means the processing of waste materials into new products or material feedstock for products. Materials that can be recycled include, but are not limited to, concrete, metal piping, and asphalt roofing shingles.

Re-use means the utilization of a product or material that was previously installed for the same or similar function to extend its life cycle. Materials salvageable for re-use include, but are not limited to, cabinets, doors, hardware, fixtures, flooring, siding, and framing lumber.

Single-family structure means a dwelling unit for one (1) family.

Structure means a walled or roofed building that was constructed to provide occupied or unoccupied shelter or enclosure.
(Ord. No. 2022-09-08-0668, § 1, 9-8-22)

Sec. 12-22. Applicability and administration.

This article applies to any request for demolition of residential and accessory structures within the territorial limits of the City of San Antonio that meets the criteria for deconstruction as established in this article.

(1) *Criteria.* Any application for demolition of a structure that is determined by the director to meet the criteria for deconstruction shall consider the construction date and original use of the structure. The director, at his or her discretion, may refer the applicability of criteria to a property to the historic and design review commission (HDRC) for a recommendation before a determination is made.

a. *Construction date.* The construction date of a structure shall be informed by available primary sources including, but not limited to Sanborn Maps, deed records, appraisal district data, and/or other applicable research methods.

b. *Original use.* The original use of the property shall be determined by the director after a visual assessment of construction type and reference to the 1968 city plan. The current zoning or use of the property does not determine whether the requirements of this section apply.

(2) *Phasing.* This article shall take effect in phases as set forth below.

a. Phase i shall take effect on October 1, 2022. Deconstruction requirements shall apply to demolition permit applications for city-executed demolitions for:

1. Residential single-family structures, multi-unit structures with four (4) units or less, and accessory structures that were constructed on or before December 31, 1920, regardless of zoning overlay; and

2. Residential single-family structures, multi-unit structures with four (4) units or less, and accessory structures that were constructed on or before December 31, 1945, and that have either: been locally designated as historic and carry a historic zoning overlay (H, HL, HS, or HE); or, are located within a Neighborhood Conservation District (NCD) and carry a NCD zoning overlay.

b. Phase II shall take effect on January 1, 2023. Deconstruction requirements shall apply to demolition permit applications for:

1. Residential single-family structures, multi-unit structures four (4) units or less, and accessory structures that were constructed on or before December 31, 1920, regardless of zoning overlay; and

2. Residential single-family structures, multi-unit structures four (4) units or less, and accessory structures that were constructed on or before December 31, 1945, and that have either: been locally designated as historic and carry a historic zoning overlay (H, HL, HS, or HE); or, are located within a Neighborhood Conservation District (NCD) and carry a NCD zoning overlay.

c. Phase III shall take effect on January 1, 2025. Deconstruction requirements shall apply to demolition permit applications for:

1. Residential single-family structures, multi-unit structures eight (8) units or less, and accessory structures that were constructed on or before December 31, 1945, regardless of zoning overlay; and

2. Residential single-family structures, multi-unit structures eight (8) units or less, and accessory structures that were constructed on or before December 31, 1960, and that have either: been locally designated as historic and carry a historic zoning overlay (H, HL, HS, or HE); or, that are located within a neighborhood conservation district (NCD) and carry a NCD zoning overlay.

(3) The director is authorized to administer and enforce the provisions of this article and adopt rules, procedures, and forms to implement the provisions of this article.

(4) The director may temporarily suspend or modify the requirements of this article based on a determination that such requirements are temporarily infeasible due to economic or technical circumstances. The director shall temporarily suspend the requirements of this article if, at any time, there are less than three (3) certified deconstruction contractors registered with the city.

(Ord. No. 2022-09-08-0668, § 1, 9-8-22)

Sec. 12-23. Demolition permit and deconstruction requirements.

(a) *Permit required.* No person shall demolish a residential or accessory structure that is eligible for deconstruction under this article without first obtaining a demolition permit from the city.

(1) *Pre-application conference.* An applicant requesting to demolish a structure that meets the criteria for deconstruction, may meet with the office of historic preservation to discuss the procedures and requirements pursuant to this Code. The required forms may be obtained from the office of historic preservation prior to or at the time of application.

(2) *Applications.* All applications for demolition of a residential structure shall be referred to the office of historic preservation for a determination of applicability for deconstruction. The director shall determine, in writing, the construction date, original use, and applicability for deconstruction. If the provisions of this article apply, the city shall notify the applicant of the director's decision and of the deconstruction requirements of the demolition permit within ten (10) business days after an application for demolition permit is filed with the city's

development services department. The director, at his or her discretion, may refer the applicability of criteria to a property to the historic and design review commission (HDRC) for a recommendation before a determination is made. An appeal of the director's decision may be made as set forth in section 12-25 of this article.

(3) *Issuance of a permit.* A demolition permit for deconstruction shall only be issued to a certified deconstruction contractor who shall be responsible for the deconstruction activities of the subject application throughout the period of deconstruction.

(b) *Deconstruction requirements.* Upon issuance of a permit, a certified deconstruction contractor shall adhere to the applicable deconstruction requirements and submit to the office of historic preservation the following forms and documentation for review and approval before the post-work evaluation is performed.

(1) *Pre-deconstruction form.* The certified deconstruction contractor of a structure subject to deconstruction under this article shall complete and submit a pre-deconstruction form to the office of historic preservation.

(2) *Post-deconstruction form.* The certified deconstruction contractor of a structure subject to deconstruction under this article shall complete and submit a post-deconstruction form to the office of historic preservation within ten (10) calendar days after completion of the deconstruction work.

(3) *Documentation.* The certified deconstruction contractor of a structure subject to deconstruction under this article shall submit documentation identifying the destination for all materials removed to the office of historic preservation no more than ten (10) calendar days after completion of the deconstruction work as part of a complete post-deconstruction form. The office of historic preservation shall review and approve the documentation before conducting the post-work evaluation. The certified deconstruction contractor shall be responsible for providing the office of historic preservation office copies of documentation requirements as provided by staff:

a. Photographs of deconstruction in progress, to be taken weekly at a minimum;

b. Itemized receipt of materials and quantities donated to a nonprofit or community organization;

c. Itemized receipt of materials and quantities sold;

d. Itemized list and photographs of salvaged material that will be re-used on site or at another site;

e. Transaction receipt or weight tickets for the disposal of hazardous material abated during the course of deconstruction; and

f. Transaction receipts or weight tickets for all materials taken to a transfer facility, material recovery facility, and/or landfill.

(4) *Site posting.* The office of historic preservation shall provide the certified deconstruction contractor a sign(s) when the deconstruction permit is issued. The certified deconstruction contractor shall post the sign(s) on site before the first day of deconstruction activity and it shall remain on site until the deconstruction is complete. The sign(s) shall indicate that the structure is being deconstructed and must provide city contact information for questions or concerns.

a. The sign(s) must remain in place throughout the period of deconstruction;

b. The sign(s) must be placed on each street frontage of the site; and

c. The sign(s) must be posted within five (5) feet of a street lot line and must remain visible to pedestrians and motorists. Signs are not required

along street frontages that are not improved or not named, and/or do not allow motor vehicle access.

(5) *Building removal.* Building removal shall be performed by a certified deconstruction contractor as follows:

a. Building removal shall be completed within the period of deconstruction;

b. Materials shall be removed by hand to the fullest extent possible while maintaining original sizes and dimensions;

c. Nails, screws, or items used to secure materials in place shall be removed and prepared for re-use where feasible; and

d. Removal and disposal of hazardous materials shall be in accordance with this article, and any other local, state, or federal laws, rules, or regulations.

(6) *Salvageable materials.* The property owner may re-use, sell, or donate salvage materials from a deconstruction site before the materials leave the site, provided that the distribution of the materials meets the documentation requirements under section 12-23(b) of this article. The rules and procedures outlined in chapter 16, article XIII—Garage sales do not apply to active deconstruction sites.

(7) *Site storage.* Materials shall be stored and covered to protect them from exposure to rain and permeable ground contact during the period of deconstruction. Materials from the deconstructed building may only be safely stored on site during the period of deconstruction, provided that they are safely stacked and secured. The property owner shall remove all materials not sold, donated, or re-used from the deconstruction site by the deconstruction completion date and within the period of deconstruction.

(8) *Deconstruction review.* Before post-deconstruction review is approved by the director, the certified deconstruction contractor of a structure shall submit a post-deconstruction form and all required documentation to the office of historic preservation.

(c) *Site inspections.* Upon the written consent of the property owner of the subject application, the director is authorized to conduct site inspections throughout the period of deconstruction to assure compliance with this article.

(d) *Compliance.* Any demolition work that exceeds or violates the provisions of this article shall be subject to penalties set forth in section 12-26 of this article. Compliance with the provisions of this article does not exempt the demolition of buildings or structures from any other requirement.

(1) Certified deconstruction contractors shall follow all deconstruction, building related and licensing requirements, regulations, and laws.

(2) Failure to complete deconstruction, remove materials, and obtain approval of the post-deconstruction form within the period of deconstruction shall result in the city completing the abatement of the property at cost of the property owner.

(e) *Suspension or revocation of deconstruction certification.* In the event a certified deconstruction contractor fails or refuses to comply with requirements of this article, performs demolition work that exceeds or violates the deconstruction requirements of the demolition permit issued, or does not complete the deconstruction activities and documentation of a permit issued under this article, then the director may suspend or revoke the deconstruction certification of such contractor, cancel all unexecuted permits issued to such contractor, and stop all work being done by such contractor, and withhold approval of further permits for deconstruction work until any or all incomplete or defective work of such contractor is fully completed by such contractor. Suspension or revocation of deconstruction contractor certification is accomplished by mailing to the holder of such certification a written notice by certified mail stating the permit or certification is suspended or revoked or by personally delivering to the holder thereof a written notice stating

the permit or certification is suspended or revoked. An appeal of the director's decision may be made as set forth in section 12-25 of this article.
(Ord. No. 2022-09-08-0668, § 1, 9-8-22)

Sec. 12-24. Exemptions.

(a) *Exemptions.* Building conditions, damage, catastrophic events, or other factors may limit suitability for deconstruction and the amount of material that can be reasonably or safely salvaged. The following are exempt from the requirements of this article:

(1) A structure is unsuitable for deconstruction because:

a. The structure has been determined to be a clear and imminent danger to life, safety, or property under San Antonio City Code Chapter 6, Section 6-175, emergency demolitions; or

b. A large majority of material in the structure is not suitable for re-use as determined by the director upon review of a request from exemption from the certified deconstruction contractor assigned to the project.

(b) *Determination of an exemption.* The director will decide exemptions based on evidence submitted as well as by an inspection of the conditions of the property to confirm unsuitability. Upon determining that the request for an exemption contains all the required information, the office of historic preservation will contact the applicant within five (5) business days to request a site visit on a mutually agreed upon date and time. Within five (5) business days of the site visit, the director will either approve, deny, in whole or in part, or request additional information. Receipt of requested additional information will be reviewed and a determination will be made within five (5) days of receipt. The director, at his or her discretion, may refer the criteria for exemption to the historic and design review commission (HDRC) for a recommendation before a determination is made. The director's decision may be appealed in accordance with section 12-25 of this article.
(Ord. No. 2022-09-08-0668, § 1, 9-8-22)

Sec. 12-25. Appeals.

(a) *Notice of appeal.* An appeal of the director's decision may be made by the property owner of the subject application. The property owner shall file a notice of appeal with the office of historic preservation within ten (10) business days after the issuance of the director's decision. Upon receipt of a notice of appeal, the director shall transmit to the board of adjustment for the City of San Antonio all original documents and materials, or true copies thereof, constituting the record upon which the decision appealed from was based.

(b) *Appeal hearing.* The board of adjustment (BOA) shall decide the appeal within sixty (60) days after receipt of a notice of appeal. The property owner may appear at the appeal hearing in person or by agent or attorney. The BOA shall consider the same criteria as the director. The BOA may reverse or affirm, in whole or in part, or modify the director's decision by the concurring vote of seventy-five (75) percent of the members.

(c) *Building standards board.* Notwithstanding any other language in this section, demolition orders issued by the building standards board (BSB) requiring compliance with this article shall follow appeal procedures in accordance with chapter 6, article VIII, section 6-173 of the City Code.
(Ord. No. 2022-09-08-0668, § 1, 9-8-22)

Sec. 12-26. Violations, penalties, and enforcement.

(a) *Violations.* It shall be unlawful for a person to fail to adhere to any provision of this article. Each violation of a particular section of this article shall constitute a separate offense, and each day an offense continues shall be considered a new violation for purposes of enforcing this article.

(b) *Penalties.*

(1) *Criminal.* A conviction for violation of any provision of this article shall constitute a Class C misdemeanor. A person convicted of a violation shall be fined an amount not to exceed five

hundred dollars ($500.00) per violation. A culpable mental state is not required to prove an offense under this article.

(2) *Civil.* A person found liable for violation of any provision of this article shall be subject to a civil penalty in an amount not to exceed one thousand dollars ($1,000.00) per violation.

(3) *Administrative.* The director, at his or her discretion, is authorized to take any and all appropriate administrative actions against violators of this chapter and upon a finding thereof, including but not limited to recommendations that registrations to conduct business within the city be revoked for a set length of time, revocations of certificates of deconstruction, and denial or revocation of present and future permits for a set length of time. Appeals of any administrative action taken will follow the process set forth in their respective chapters.

(c) Nothing in this article shall limit the remedies available to the city as provided by law in seeking to enforce this Deconstruction Code. The director shall have authority to designate trained personnel to issue notices of violation and to make accompanying affidavits to enforce this Code for the benefit of the public health, safety, and welfare.
(Ord. No. 2022-09-08-0668, § 1, 9-8-22)

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Chapter 13

FOOD AND FOOD HANDLERS*

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*__Editor's note—__Ord. No. 2008-05-15-0402, § 1(Att. 1), repealed and reenacted chapter 13 to read as herein set out. Formerly, chapter 13, arts. I—XII, pertained to similar subject matter. See the Code Comparative Table for a complete derivation.

Section 2 of said ordinance states the following: Violations occurring after the effective date of this ordinance shall be punished as provided in revised Chapter 13. Violations prior to the effective date shall be punished under the former applicable Sections which shall remain in effect for that purpose."

__Charter reference—__General powers relating to food and food establishments, § 3, par. 13.

__Cross references—__Discrimination in places of public accommodation, § 9-16 et seq.; ice cream and frozen desserts, § 13-171 et seq.

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ARTICLE I. IN GENERAL

Sec. 13-1. Legislative authority.

The provisions of this chapter are adopted in the exercise of the powers granted to this city by law including, but not limited to, provisions of state law and Article I of the City Charter.
(Ord. No. 2008-05-15-0402, § 1(Att. I), 5-15-08)

Sec. 13-2. Food establishment rules.

(a) The following are hereby adopted by this chapter:

The Texas Food Establishment Rules, 25 TAC §§ 228.1—228.246, effective date August 8, 2021.

(b) The following sections of the Texas Food Establishment Rules are not adopted by this chapter:

25 TAC §§ 228.2(2), 228.2(12), 228.2(14)(c)(i—vi), 228.2(26).

(c) To the extent that these Code provisions are more strict than the Food Establishment Rules from the Code of Federal Regulations, and the Texas Food Establishment Rules, this Code shall control.
(Ord. No. 2008-05-15-0402, § 1(Att. I), 5-15-08; Ord. No. 2014-08-07-0539, § 2, 8-7-14; Ord. No. 2016-03-03-0163, §§ 1, 2, 3-3-16; Ord. No. 2021-11-18-0875, § 1, 11-18-21)

Sec. 13-3. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Adulterated shall mean the condition of a food:

(1) If it bears or contains any poisonous or deleterious substance in a quantity which may render it injurious to health;

(2) If it bears or contains any added poisonous or deleterious substance for which no safe tolerance has been established;

(3) If it consists in whole or in part of any filthy, putrid or decomposed substance, or if it is otherwise unfit for human consumption;

(4) If it has been processed, prepared, packed or held under unsanitary conditions, whereby it may have become contaminated with filth, or whereby it may have been rendered injurious to health;

(5) If it is in whole or in part the product of a diseased animal, or an animal which had died otherwise than by slaughter; or

(6) If its container is composed in whole or in part of any poisonous or deleterious substance which may render the contents injurious to health.

Bed and breakfast extended shall mean an establishment with more than seven (7) rooms for rent or an establishment that provides food service other than breakfast to overnight guests.

Bed and breakfast food establishment shall mean a bed and breakfast that provides food service to customers in addition to its overnight guests.

Bed and breakfast limited shall mean an establishment that has seven (7) or fewer rooms for rent, serves breakfast to overnight guests and is not a retail food establishment.

Charitable feeding shall mean the provision of food to individuals without charge, payment, or other compensation to benefit those in need at an outdoor location not owned, leased or controlled by the individual or organization providing food.

City shall mean the City of San Antonio, Texas.

Corn roaster shall mean a rotisserie type of oven mounted on a vehicle, trailer, or pushcart that is designed to cook whole ears of corn with the shucks in place.

Current permit is one which is current, valid, unsuspended and unrevoked.

Department shall mean the health department of the city also known as the San Antonio Metropolitan Health District.

Director shall mean the director of the health department of the city or their authorized designee.

Downtown business district shall have the same meaning as set out in the Unified Development Code of the city.

Event sponsor/coordinator shall mean the organizer, sponsor or coordinator for a special event with two (2) or more temporary food establishments. The event sponsor/coordinator shall be responsible for submission of all applications and fees to the department on behalf of event participants, and shall have oversight of event participants.

Farmers market shall mean a location certified by the Texas Department of Agriculture or the Texas Certified Farmer's Market Association used primarily for the distribution and sale of raw agricultural products grown by farmers or for the distribution and sale of custom processed agricultural products made by agricultural producers from their agricultural products which are sold directly to consumers and such products meet all applicable federal, state, and local health laws regulating their manufacture and sale.

Farmers market/flea market/trade show food establishment shall mean a food establishment which is operated only at a farmers market and/or a flea market and/or a trade show and where only a sample of the food or foods is provided to the consumer.

Flea market shall mean a location either indoors or outdoors with or without structures in compliance with all building, zoning and other requirements of the city where persons including farmers sell a variety of goods which may include whole uncut fresh fruits and vegetables and prepackaged food products directly to consumers.

Food establishment shall mean an operation that stores, prepares, packages, serves, vends food directly to the customer, or otherwise provides food for human consumption:

(1) Such as a restaurant; retail food store; satellite or catered feeding location; catering operation if the operation provides food directly to a consumer or to a conveyance used to transport people; market; vending machine location; self-service food market, conveyance used to transport people; institution; or food bank; and

(2) Relinquishes possession of food to a consumer directly, or indirectly through a delivery service such as home delivery of grocery orders or restaurant takeout orders, or delivery service that is provided by common carriers.

Food establishment includes:

(1) An element of the operation such as a transportation vehicle or a central preparation facility that supplies a vending location or satellite feeding location unless the vending or feeding location is permitted by the regulatory authority; and

(2) An operation that is conducted, in a mobile, stationary, temporary, or permanent facility or location and where consumption is on or off the premises; regardless if there is a charge for the food.

For the limited purpose of permits, food establishment shall not include:

(1) A food establishment, mobile food establishment or temporary food establishment that offers only whole, uncut fresh fruits or vegetables;

(2) A bed and breakfast limited;

(3) Charitable feeding;

(4) A cottage food production operation;

(5) A food establishment that offers only prepackaged foods that are not TCS foods; or

(6) A school cafeteria that is operated by an independent school district or non-profit contractor.

Food vendor shall mean any person, group of persons, firm or corporation who individually or by or through an agent or employer, offers for sale, sells, attempts to sell, exposes for sale or gives away any food intended for human consumption from any vehicle or by a person afoot.

Inspector shall mean an authorized representative of the director.

Jurisdictional limits of this city includes all of the area within the corporate limits of the city but exclusive of that part of such territory which lies within the corporate limits of another city, town or village.

Liquid waste shall mean fluid, resulting from wastes produced from food vending operations, composed of solids, whether dissolved or in suspension; liquids, whether in solution, in emulsion or in separate phases; and gases. The term shall also include melted ice.

Mobile food court shall mean property where multiple mobile food establishments are allowed to operate pursuant to rules set out in this chapter and consistent with chapter 35 of the City Code.

Processing shall mean any operation or combination of operations whereby dead animals, dead fowl, fish, inedible offal, meat scraps, bones, suet, feathers, unrendered animal fat, waste cooking greases, and similar animal matter is prepared for disposal at a rendering establishment, stored, or is treated for commercial use or disposition other than as food for human consumption.

Processing area shall mean any area in which processing is conducted.

Produce shall mean any whole uncut raw fruit, raw vegetable, raw nuts in the shell, raw herbs used in food, and raw spices.

Rendering business shall mean the collection or rendering, or boiling, or refining, or storing pending further processing or disposal at a rendering establishment of dead animals, dead fowls, fish, inedible offal, meat scraps, bones, suet, feathers, unrendered animal fat, waste cooking greases, and similar animal matter, or the transportation of such matter to and disposal at a rendering establishment, either as a separate business or in connection with any other established business.

Rendering establishment shall mean any establishment, plant, or premises at or within which dead animals, dead fowls, fish, inedible offal, meat scraps, bones, suet, feathers, unrendered animal fat, waste cooking greases, and similar animal matter is rendered, boiled, processed, or otherwise prepared to obtain a product for commercial use or disposition other than as food for human consumption.

Sample shall mean a food product promotion where only a bite-sized portion of food is offered free of charge to demonstrate its characteristics and shall not consist of a whole meal, an individual portion, or a whole sandwich.

School food establishment shall mean a food establishment operated by a person who contracts with a school to provide food services on a for profit basis where food is prepared and intended for service primarily to students attending schools, including kindergarten, preschool and elementary schools, junior high schools, high schools, colleges and universities. A school food establishment is a food establishment and may include concession stands located on the school premises or other school-sponsored venues.

Servicing area shall mean an operating base location to which a mobile food establishment or transportation vehicle returns regularly for such things as discharging liquid or solid wastes and refilling water tanks. No food preparation, service or utensil/warewashing is conducted at a servicing area.

Simple snow cone or *simple raspa* shall mean a food item consisting of crushed ice which was purchased pre-crushed from a licensed processor that is covered or mixed with syrup which was prepackaged from an approved source.

Snow cone/shaved ice/raspa shall mean a food item prepared from block or cubed ice by a shaving process that is covered or mixed with a syrup that may be prepared by the operator in a central preparation facility or on the mobile food establishment, or be purchased prepackaged.

Special event shall mean an event that is sponsored or recognized or organized by an organization such as a neighborhood association, religious group, cultural group, political party, church, school, sports team, fraternal organization, non-profit group/organization, city, county, state, or federal government or an organized

mass gathering of people such as a concert, sporting event, trade show, flea market, farmers market, carnival, circus, or other similar type of show or celebration, or a celebration or gathering which may be based around a specific calendar date which is recognized by the federal, state, county or city government as a holiday or celebratory day or by an abovementioned group or organization, or an event approved by the director.

Sticker shall mean a decal issued by the director that is numbered and has the month and year of the expiration date of the permit which shall be displayed on the mobile food establishment.

Temporary food establishment shall mean a food establishment that operates for a period of no more than fourteen (14) consecutive days in conjunction with a single special event or celebration.

Terminal market area shall mean the area within the boundaries of S. Laredo on the north, Elmendorf on the west, Ceralvo on the south and Navidad on the east.

Time and temperature control for safety food (TCS food) shall mean a food requiring time and temperature control for safety to limit pathogen growth or toxin production. The term includes a food that must be held under proper temperature controls, such as refrigeration, to prevent the growth of bacteria that may cause human illness. A TCS food may include a food containing protein and moisture and that is neutral or slightly acidic, such as meat, poultry, fish, and shellfish products; pasteurized and unpasteurized milk and dairy products; raw seed sprouts; baked goods that require refrigeration, including cream or custard pies or cakes; and ice products. The term does not include a food using TCS food as ingredients if the final food product does not require time or temperature control for safety to limit pathogen growth or toxin production.

Trade show shall mean an exhibition organized so that individuals and companies in a specific industry can showcase and demonstrate their latest products and/or services.

Vegetable and fruit vendor shall mean any food vendor dispensing farm fresh produce from a mobile food establishment.

Vehicle shall mean every device in, upon, or by which any food is or may be transported, pushed or drawn.

Vend shall mean the act of dispensing food by a person from a mobile food establishment or afoot within or without a building and shall include for the purpose of this article the act of offering to give away and to give away any substances intended for use as food.

(Ord. No. 2008-05-15-0402, § 1(Att. I), 5-15-08; Ord. No. 2010-02-04-0096, § 1, 2-4-10; Ord. No. 2012-05-17-0355, § 2, 5-17-12; Ord. No. 2013-04-11-0258, § 2, 4-11-13; Ord. No. 2014-08-07-0539, § 2, 8-7-14; Ord. No. 2015-12-17-1066, § 2, 12-17-15; Ord. No. 2016-03-03-0163, §§ 1, 2, 3-3-16; Ord. No. 2018-09-13-0713, § 1(Att. C.1), 9-13-18; Ord. No. 2025-09-18-0629, § 2(Att. D), 9-18-25)

Sec. 13-4. Enforcement, authority to enter premises.

(a) The provisions of this chapter shall be enforced by the director and his designated agents.

(b) The director and each inspector of the city acting under his authority or the authority of the city council, is, for the purpose of protecting the public health and enforcing this chapter, hereby authorized and directed, at any or all reasonable times when inspection may be deemed proper, to enter any premises, room, apartment, or place in the city, or if no objection be made, without the city, wherein any food establishment is operated or carried on, or where any food products are kept, produced, prepared or handled, and also any room, place, premises, vehicle or appurtenances, used in connection with such business or operation, and to make a complete inspection of each such room, place, premises or vehicles, and all machinery, equipment, furniture, utensils and other things found therein; and also to make a thorough inspection and examination of all foodstuffs and other things therein found, which are used or kept for the purposes of such business, which are reasonably within the purpose

and intent of this chapter. All such inspectors are also authorized and directed to stop and inspect within the city, or by permission without the city, any wagon or vehicle which appears to be used for the purpose of transporting or delivering any such food products. Such director and inspector shall also be authorized to require, and the persons in charge of any such place or vehicle shall furnish to the director or inspector, such reasonable and proper samples as he may demand for making any tests of such food products.
(Ord. No. 2008-05-15-0402, § 1(Att. I), 5-15-08)

Sec. 13-5. Duty of inspectors.

Every person appointed, or acting by or under the authority of the city who is charged with the duty of inspecting food establishments, or food products, or any operations in connection therewith, shall perform all such duties under the direction of the director, and shall make all such inspections, examinations and reports, and in such manner and form as may be required and directed by the director.
(Ord. No. 2008-05-15-0402, § 1(Att. I), 5-15-08)

Sec. 13-6. Cooperation by owners, managers and employees with inspectors.

Every person who owns, manages or conducts any food establishment, and each agent, or employee of such person, shall answer truly such questions and render such information and assistance and give such written statements or certificates, as may be asked or required by the director or any such inspector for the purpose of facilitating any inspection or examination under the provisions of this chapter, and shall also upon request of such officer exhibit to such officer and permit him to examine upon request, any license, permit or certificate, relating to such food establishment and also any bill or delivery ticket evidencing the purchase or delivery of any food product and showing the name of the person from whom such food product was had or purchased.
(Ord. No. 2008-05-15-0402, § 1(Att. I), 5-15-08)

Sec. 13-7. Interference with inspectors.

No person shall interfere with or refuse to permit the director or any such inspector to make any inspection or refuse to furnish the information authorized under section 13-5; and if any person shall refuse permission or bar or obstruct any inspection, then any permit issued by the city for such food establishment shall become subject to revocation and shall become null and void on written order of the director.
(Ord. No. 2008-05-15-0402, § 1(Att. I), 5-15-08)

Sec. 13-8. Condemnation of food products.

(a) Samples of food, drink and other substances shall be taken and examined by the director as often as he deems necessary for the detection of unwholesome and deleterious qualities. The director may condemn and forbid the sale of or cause to be removed or destroyed, any food or drink which is unwholesome or deleterious according to the procedure outlined in this section.

(b) When such unwholesome or deleterious food comes to the attention of the director he shall promptly condemn the same and the owner, manager or other person in charge of the same shall thereupon immediately and in the presence of the director destroy such food by opening the containers, if it is in containers, and immediately denature and render the food inedible as may be approved by the director; however, if such owner, manager or other person shall notify the director of his desire to appeal, such owner, manager or other person shall immediately transport such foodstuff to such place as the director may designate or approve and shall there store such food. The director shall promptly, either by request or his own volition, make further inspection and examination of such food. If such inspection and examination shows that the food should not be condemned, then the owner thereof may remove the same again to his place of business for sale or otherwise as he may desire.

(c) Any food or drink which appears to the regulatory authority to be unwholesome, or of possible deleterious quality, or any piece of equipment capable of contaminating food or drink products shall be retained by attaching thereto a "San Antonio Retained" tag. Food and equip-

ment so retained may not be removed, disturbed or used without the permission of the regulatory authority. Anyone, except the regulatory authority, removing a "San Antonio Retained" tag when attached to any food or equipment shall be in violation of this chapter and subject to all penalties provided for herein.
(Ord. No. 2008-05-15-0402, § 1(Att. I), 5-15-08)

Sec. 13-9. Appeals from condemnation of food products.

In case such owner, manager or other person in charge of such condemned foodstuff, shall desire to appeal from the judgment of any such officer, the owner, manager or other person shall immediately transport such foodstuffs to such place as the officer may designate or approve, and shall there store such foodstuff, and the director shall promptly, on the written request of the owner or on his own motion, make a further inspection and examination of the foodstuffs, and the judgment of the director shall be final and conclusive; and if such judgment be that the foodstuff shall be condemned, then the foodstuff shall be immediately destroyed or stored as provided in section 13-8, or in such manner as the director may direct; but if such judgment be that the foodstuff should not be condemned then the owner thereof may remove it again to his place of business.
(Ord. No. 2008-05-15-0402, § 1(Att. I), 5-15-08)

Sec. 13-10. Destruction of condemned food products.

Unless the owner, manager or other person shall notify the director of his desire to appeal the condemnation of foodstuff pursuant to section 13-8 and shall immediately comply with the requirements of section 13-8, such destruction of condemned meat, fish, or other foodstuff, may be affected by slashing or otherwise separating the substance of same, after which same shall be immediately denatured and rendered inedible as may be approved by the director.
(Ord. No. 2008-05-15-0402, § 1(Att. I), 5-15-08)

Sec. 13-11. Penalty for violation.

Any person who violates a provision of this chapter shall upon conviction in the municipal court of the city be subject to a fine not to exceed two thousand dollars ($2,000.00) for each offense if the court finds that the offense was committed intentionally, knowingly or recklessly, and each day shall constitute a separate offense.
(Ord. No. 2008-05-15-0402, § 1(Att. I), 5-15-08)

Sec. 13-12. Injunctive relief.

In the addition to and cumulative of all other penalties, the director shall have the right to seek injunctive relief for any or all violations of this chapter.
(Ord. No. 2008-05-15-0402, § 1(Att. I), 5-15-08)

Sec. 13-13. Charitable feeding.

(a) No permit is required and no regulations apply to charitable feeding of four (4) individuals or fewer.

(b) Except as set out in subsection (d), no permit is required for giving away whole, uncut fresh fruits or vegetables or pre-packaged, non TCS foods such as canned goods, granola bars, bottled water, non-refrigerated fruit drinks, bagged potato chips, popcorn, pre-packaged snack cakes and candy bars.

(c) If there is any handling of TCS foods, any person engaged in charitable feeding activities to five (5) or more individuals in one instance shall comply with the following:

(1) Either a certified food handler or certified food manager must be present when food is prepared, or onsite while food is distributed if food will be prepared onsite. Food handler and food manager certification shall be in accordance with the requirements set out in state law; and

(2) The department shall be notified within twenty-four (24) hours after charitable feeding activities with the name of the person or organization providing the charitable feeding activities, and the location and date and time of feeding.

(d) Charitable feeding of five (5) or more individuals in one instance within the following designated parks may be conducted only by following the standard reservation process including the payment of all required reservation fees:

River Walk, Travis Park, Main Plaza, Alamo Plaza, Milam Park, Madison Square Park and Hemisfair Park.

(e) Any person engaged in charitable feeding activities shall remove all undistributed food from the feeding site upon conclusion of the charitable feeding activities and dispose of all trash, debris, and waste water generated during feeding.

(f) The department shall post minimum safety requirements for safe food handling and preparation on the department's website as guidance for any charitable feeding activity. The director may condemn and forbid the distribution, or cause to be removed or destroyed, any food or drink which is unwholesome or deleterious according to the procedure outlined in this chapter.

(g) Charitable feeding activities may not be conducted on streets where a traffic hazard is created or in violation of other rules and regulations regarding public streets and the use of right-of-way.

(h) This section does not apply to a special event as set out within subsection 13-27(f).
(Ord. No. 2015-12-17-1066, § 2, 12-17-15; Ord. No. 2019-09-12-0694A, § 1(Att. H), 9-12-19; Ord. No. 2025-09-18-0629, § 2(Att. D), 9-18-25)

Secs. 13-14—13-20. Reserved.

ARTICLE II. PERMITS GENERALLY

Sec. 13-21. Required for food establishments in the city.

(a) It shall be unlawful for any person to operate a food establishment or rendering business in the city who does not possess a valid unsuspended or unrevoked permit from the department. No person/owner/operator shall, within the city, manufacture, sell, or offer or expose for sale, or have in possession with intent to sell, any food product without the proper permits. A person operating a temporary food establishment shall also be required to secure a permit before they shall be allowed to operate.

(b) Charitable feeding activities are not considered a food establishment and do not require a permit under this chapter, except as otherwise set out in subsection 13-13(d) and provided that charitable feeding of five (5) or more individuals in one instance be conducted in accordance with section 13-13.
(Ord. No. 2008-05-15-0402, § 1(Att. I), 5-15-08; Ord. No. 2015-12-17-1066, § 2, 12-17-15)

Sec. 13-22. Filing application.

Every person desiring a permit to establish, maintain, or operate a food establishment within the city shall make a written application stating the name and residence of the applicant if an individual, all the members of the firm if an association or partnership, the name or residence of the applicant, its officers and directors if a corporation, and the location and description of the premises where such food establishment is to be conducted, and file such application with the department.
(Ord. No. 2008-05-15-0402, § 1(Att. I), 5-15-08; Ord. No. 2025-09-18-0629, § 2(Att. D), 9-18-25)

Sec. 13-23. Investigation of application.

It shall be the duty of the director upon the filing of such application to make or cause to be made an investigation of the premises and equipment and appliances to be used in connection therewith for the purpose of determining the fitness and suitability of such premises for a food establishment from a sanitary standpoint, and when such inspection shall have been completed, the director shall file with the department his recommendation for or against issuance of a permit.
(Ord. No. 2008-05-15-0402, § 1(Att. I), 5-15-08)

Sec. 13-24. Issuance of permit.

(a) If the director is satisfied that the premises, equipment and appliances where a food establishment is to be located, are proper and suitable from a sanitary standpoint, and meet all the requirements of the laws of the state or of the ordinances of the city relating to the conduct and operation of the business named in such application, he shall issue or cause to be issued a permit

in accordance with such application, upon receipt of the permit fee provided by section 13-27. Permit fees are non-refundable.

(b) No permit or license for the use, construction, reconstruction or repair of any building or structure used or to be used as a part of a rendering business shall be issued by any department of the city until the plan therefore shall show adequate means for carrying out the provisions of this chapter and until such plan shall have been approved by the director.
(Ord. No. 2008-05-15-0402, § 1(Att. I), 5-15-08; Ord. No. 2025-09-18-0629, § 2(Att. D), 9-18-25)

Sec. 13-25. Form, expiration.

Permits for the operation of food establishments shall be issued under the corporate seal of the city, signed by the director, and shall authorize the person therein named to establish, maintain and operate a food establishment at the place designated in such permit. Such permit shall be required on an annual basis with October 1st being the first day of each permit year and shall be renewed in each successive year thereafter. The department may prorate the initial permit fee based on the date of initial issuance.
(Ord. No. 2008-05-15-0402, § 1(Att. I), 5-15-08; Ord. No. 2025-09-18-0629, § 2(Att. D), 9-18-25)

Sec. 13-26. Display.

Every person authorized to operate a food establishment in accordance with the provisions of this chapter shall post such permit and the latest city health inspection report, or cause them to be posted, in a conspicuous place within the premises where such food establishment is authorized to be established, maintained or operated. A food establishment may also choose to voluntarily display a grade placard distributed by the Department consistent with the score received for that inspection period. A food establishment shall not display a grade placard not provided by the department or a grade placard inconsistent with the food establishment's inspection score.
(Ord. No. 2008-05-15-0402, § 1(Att. I), 5-15-08; Ord. No. 2016-03-03-0163, §§ 1, 2, 3-3-16)

Sec. 13-27. Fees enumerated.

(a) A person who operates a food establishment shall obtain a permit and pay a permit fee for each establishment. The fees are based on gross annual volume of food sales as follows:

(1) For an establishment with gross annual volume of sales of $0—$49,999.00, the fee is $310.00

(2) For an establishment with gross annual volume of sales of $50,000.00—$149,999.00, the fee is $618.00

(3) For an establishment with gross annual volume of sales of $150,000.00 or more, the fee is $928.00

(b) A school food establishment permit fee is two hundred forty dollars ($240.00).

(c) A fee of two hundred forty dollars ($240.00) will be charged for a school cafeteria that is either operated by an independent school district or a non-profit contractor and that requires two (2) inspections per school year.

(d) A fee of one hundred fifty dollars ($150.00) will be charged for a pre-permitting inspection of existing food establishment facilities when there is a change of ownership requiring a new permit without requiring issuance of a new certificate of occupancy.

(e) A fee of one hundred fifty dollars ($150.00) in addition to the appropriate permit fee listed above in section (a) will be charged for inspection and permit of a food establishment that has been operating without a permit.

(f) Temporary food establishments shall secure a permit more than three (3) days before beginning operation and shall pay a fee of fifty-two dollars ($52.00) per stand, per event. Each event is considered a separate permit period. The fee shall be paid prior to commencing operations. Permit fees are non-refundable. However, the date of the event may be rescheduled or the event may be canceled and rescheduled if the applicant makes a request to reschedule by contacting the department's duty supervisor at

least two (2) business days prior to the event. A temporary food establishment that will be operating at multiple events may secure a permit for a period of two (2) years and shall pay a fee of two hundred dollars ($200.00) per food booth. The permit shall be secured more than three (3) days before beginning operation at the first event.

(g) A special event (except farmers markets) that has two (2) or more temporary food establishments or booths shall have an event sponsor/coordinator. It shall be the responsibility of the event sponsor/coordinator to collect the temporary food establishment permit fees from the participants so that all fees may be paid to the department with a single payment. These fees shall be paid at least three (3) days in advance of the event as directed in this section.

(h) Temporary food establishments located at a farmers market may operate for up to a year with an annual permit fee of one hundred dollars ($100.00).

(i) A temporary food establishment may operate for a maximum of fourteen (14) consecutive days after which all operations must cease unless granted an exemption by the director or a permit is obtained under subsection (h).

(j) An annual fee of seventy-five dollars ($75.00) shall be charged for a farmers market/flea market/trade show food establishment permit. Persons not requiring an annual permit may opt to obtain a temporary food establishment permit for special events.
(Ord. No. 2008-05-15-0402, § 1(Att. I), 5-15-08; Ord. No. 2010-02-04-0096, § 2, 2-4-10; Ord. No. 2012-05-17-0355, § 2, 5-17-12; Ord. No. 2013-04-11-0258, § 2, 4-11-13; Ord. No. 2015-12-17-1067, § 1, 12-17-15; Ord. No. 2016-03-03-0163, §§ 1, 2, 3-3-16; Ord. No. 2016-09-15-0697, § 2(Att. C), 9-15-16; Ord. No. 2018-09-13-0713, § 1(Att. C.2), 9-13-18; Ord. No. 2019-09-12-0694A, § 1(Att. H), 9-12-19; Ord. No. 2025-09-18-0629, § 2(Att. D), 9-18-25)

Sec. 13-28. Reserved.

Editor's note—Ord. No. 2025-09-18-0629, § 2(Att. D), adopted Sept. 18, 2025, repealed § 13-28, which pertained to the effect of additional employees on fees and derived from Ord. No. 2008-05-15-0402, § 1(Att. I), adopted May 15, 2008; Ord. No. 2010-02-04-0096, § 3, adopted February 4, 2010; Ord. No. 2012-05-17-0355, § 2, adopted May 17, 2012.

Sec. 13-29. Disposition of permit fees.

All fees payable under this chapter for whatever purpose required shall be deposited in the general fund of the city.
(Ord. No. 2008-05-15-0402, § 1(Att. I), 5-15-08)

Sec. 13-30. Transferability.

Permits, as required by section 13-21, shall not be transferable from either one food establishment to another food establishment at a different location or from one person to another person who may subsequently own a certain food establishment.
(Ord. No. 2008-05-15-0402, § 1(Att. I), 5-15-08; Ord. No. 2016-03-03-0163, §§ 1, 2, 3-3-16)

Sec. 13-31. Revocation and reinstatement of permits.

(a) Permits issued under this chapter may be suspended or revoked by the director upon violation by the owner or operator of any of the terms of this chapter and upon written notice from the director or his representative. When such permit is suspended or revoked the operation of the establishment shall cease as stipulated in the written notice of suspension or revocation.

(b) Whenever a permit to operate an establishment is suspended or revoked, the owner or operator of said establishment may request a hearing with the director provided that the request is in writing and it is filed with the director within ten (10) working days of the suspension or revocation. If no request for hearing is filed within the ten-day period, the suspension or revocation of the permit to operate becomes final. If a request for hearing is filed within the ten-day period, the director shall hold the hearing and render a decision in writing to the owner or operator of the establishment within ten (10) working days of receipt of the request. The decision of the director is final.

(c) A suspended permit may be reinstated provided a written application for reinstatement is submitted to the director and provided that

the violated provisions of this chapter have been corrected. The director or his representative shall make a reinspection and thereafter as many reinspections as may be necessary to assure that the applicant has complied with the requirements of this chapter. If the director finds that compliance has been accomplished, the permit shall be reinstated. The fee for reinstatement of a permit under this chapter shall be one hundred dollars ($100.00).

(d) Whenever a revocation of a permit has become final the holder of such revoked permit may make written application for a new permit to operate provided the director is satisfied that the provisions of this chapter have been met and any additional provisions, with regard to training, that the director deems necessary, are met. The new permit shall be processed and the fee paid as provided in this chapter for new permits.

(e) Any establishment which had its permit revoked two (2) times in a 36-month period will be ineligible to apply for a new permit for six (6) calendar months after the second or subsequent revocation.
(Ord. No. 2008-05-15-0402, § 1(Att. I), 5-15-08)

Sec. 13-32. Reinspection fee.

(a) A reinspection fee may be charged for any food establishment or food vendor regulated under this chapter. The reinspection fee for inspections beyond the normal schedule will be one hundred fifty dollars ($150.00).

(b) Fees are due upon the reinspection and failure to pay the fee will result in the immediate suspension of the appropriate permit. Such suspension will only be lifted at such time as the reinspection fee is paid and violations noted are corrected.
(Ord. No. 2008-05-15-0402, § 1(Att. I), 5-15-08; Ord. No. 2015-09-10-0758, § 2(Att. E), 9-10-15; Ord. No. 2025-09-18-0629, § 2(Att. D), 9-18-25)

Sec. 13-33. Replacement of permits.

The department shall collect a fifteen dollar ($15.00) fee for the replacement of any lost, damaged or otherwise absent permit or certificate issued under this chapter.
(Ord. No. 2008-05-15-0402, § 1(Att. I), 5-15-08)

Sec. 13-34. Food permit late charge.

The department shall collect a late of one hundred dollars ($100.00) for any permit or certificate fee issued under any section of this chapter that is more than thirty (30) days overdue. No permit or certificate shall be issued until all charges and fees have been paid.
(Ord. No. 2008-05-15-0402, § 1(Att. I), 5-15-08; Ord. No. 2025-09-18-0629, § 2(Att. D), 9-18-25)

Secs. 13-35—13-40. Reserved.

ARTICLE III. FOOD ESTABLISHMENTS*

Sec. 13-41. Sanitation requirements of temporary food establishments.

(a) Sanitation of temporary food establishments will be governed by V.T.C.A, Administrative Code, § 228.222 of the Texas Food Establishment Rules as adopted in section 13-2.

(b) At the close of business a temporary food establishment may not store prepared food for re-serving. Food left in the temporary food establishment overnight must be secured to prevent any possibility of contamination or tampering.
(Ord. 2025-09-18-0629, § 2(Att. D)

Sec. 13-42. Sanitation requirements for farmers market/flea market/ trade show food establishments.

(a) Food may be transported using any mode of transportation that is clean and free of material that may adulterate food products.

(b) Food items may be displayed on tables as long as there is overhead protection.

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*__Editor's note—__Ord. No. 2025-09-18-0629, § 2(Att. D), adopted Sept. 18, 2025, amended article III in its entirety to read as herein set out. Former article III, §§ 13-41—13-45, pertained to exemption for establishments selling non-potentially hazardous food, bed and breakfast limited, sanitation requirements of temporary food service establishments, and sanitation requirements for farmers market/flea market/ trade show food establishments, and derived from Ord. No. 2008-05-15-0402, § 1(Att. I), adopted May 15, 2008; Ord. No. 2012-05-17-0355, § 2, adopted May 17, 2012; Ord. No. 2019-09-12-0694A, § 1(Att. H), adopted Sept. 12, 2019; and Ord. No. 2021-11-18-0875, § 1, adopted Nov. 18, 2021.

(c) All TCS foods shall be kept at safe food temperatures as required by the Texas Food Establishment Rules.

(d) Samples may be offered provided that:

(1) The samples are cut and prepared at the location or at a source location that complies with all applicable laws and is licensed or permitted by a state, county or local jurisdiction.

(2) Samples of fresh fruits and vegetables are washed in potable water to remove any soil or other materials so that they are wholesome and safe for consumption.

(3) Samples of TCS food are maintained according to safe food temperatures listed in the Texas Food Establishment Rules.

(4) Samples are dispensed in a manner that will protect the food item from environmental or human contamination.

(5) Samples are stored in approved, clean, sanitized and covered containers.

(6) Samples are disposed of no later than four (4) hours after the beginning of the operation, if not served or consumed.

(7) A gravity fed handwashing station is provided with potable water, soap, and paper towels.

(8) The samples are handled with equipment such as utensils and/or gloves. No bare hand contact of food is permitted.

(9) Three (3) pans are provided to properly wash, rinse, and sanitize all utensils.

(e) A garbage container with a tight fitting lid shall be provided.

(f) All waste water shall be properly disposed of into a sanitary sewer system.

(g) Cooking demonstrations conducted as a sampling operation shall comply with the following:

(1) The requirements of temporary food establishments as set out in section 13-41 are followed, and

(2) Only a sample of the food or foods may be provided to the consumer.

(h) A farmer or egg producer that sells eggs directly to the consumer at a farmers market shall:

(1) Label the eggs with the farmer's/producer's name and address and label the eggs as "ungraded";

(2) Provide the following statement on the label: SAFE HANDLING INSTRUCTIONS: To prevent illness from bacteria, keep eggs refrigerated, cook eggs until yolks are firm, and cook foods containing eggs thoroughly; and

(3) Maintain the eggs at an ambient air temperature of forty-five (45) degrees Fahrenheit or less, and prevent eggs from contacting ice or water.

(Ord. 2025-09-18-0629, § 2(Att. D)

Secs. 13-43—13-60. Reserved.

ARTICLE IV. MOBILE FOOD COURTS AND MOBILE FOOD ESTABLISHMENTS*

Sec. 13-61. Exclusions.

This article does not apply to those vehicles which are permitted, approved, or allowed to distribute food under other provisions of this Code.

(Ord. No. 2008-05-15-0402, § 1(Att. I), 5-15-08)

Sec. 13-62. Permit requirements.

(a) No person shall operate a mobile food court or mobile food establishment or vend food afoot who does not possess a valid, current mobile food court permit or mobile food establishment permit from the director as provided in this article. The permit for a mobile food establishment shall specify the type of food to be vended,

*__Editor's note—__Ord. No. 2012-05-17-0355, § 2, adopted May 17, 2012, changed the title of article IV from "Mobile food establishments" to "Mobile food courts and mobile food establishments."

the manner in which the food is to be vended, and include a description of any vehicle to be used in the food vending operation.

(b) A person seeking a mobile food establishment permit from the director shall make application on a form provided by the director, and shall provide all of the information listed in subsections (1)—(13) as part of the application:

(1) The name and address of the owner and/or operator;

(2) A government issued identification of the applicant;

(3) A description of the owner and/or operator;

(4) If the applicant represents a corporation, association or partnership, the names and addresses of the officers or partners;

(5) The name under which the food vending operation will be operated;

(6) A description of the type of food or the specific foods to be vended; as for example unpackaged TCS, prepackaged TCS foods, and openly handled TCS foods;

(7) The manner of mobile food vending operation to be conducted; as for example foot vending, truck, trailer, pushcart, etc.;

(8) A description of any vehicle to be used in the mobile food vending operation along with the license or registration and vehicle identification number of any vehicle licensed or registered with the state;

(9) A notarized letter on the form issued by the department that contains the address and food establishment permit number of the central preparation facility required by this article;

(10) Documentation indicating the volume capacity of any required water and wastewater storage tanks either on the tank itself or in writing;

(11) If the permit application is for the sale of approved openly handled TCS foods from a pushcart, a vehicle or a trailer, a water sample test result from a drinking water bacteriology laboratory accredited by the Texas Commission on Environmental Quality showing the absence of coliform and E. coli which was performed within thirty (30) days prior to the date of the permit application;

(12) Any other information reasonably required by the director; and

(13) If the person seeking a mobile food establishment permit from the director will be vending frozen or refrigerated confections, including but not limited to ice cream cones, frozen ice cream novelties, raspas or paletas directly to consumers on a public street, sidewalk or right-of-way, or will travel with the person's mobile food establishment on a public street, sidewalk or right-of-way to or from a location where the person vends, then the person shall provide as part of the application to the director a written statement from the city police department certifying that the person seeking a mobile food establishment's permit is not a sex offender registered with the state department of public safety and that the records reviewed by the city police department indicate that the person seeking a mobile food establishment permit has not been convicted of any sexual offense or any offense against a child as defined by applicable law. The basic requirements for submitting requests for criminal backgrounds of persons engaged in mobile food vending are specific in Exhibit 1 hereto on file in the office of the city clerk, and hereby adopted and incorporated herein for all purposes by reference.

(c) A person seeking a mobile food court permit from the director shall make application on a form provided by the director, and shall provide all of the information listed in subsections (1)—(5) as part of the application:

(1) The name and address of the owner and/or operator;

(2) A description of the owner and/or operator;

(3) If the applicant represents a corporation, association or partnership, the names and addresses of the officers or partners;

(4) The address and name under which the mobile food court will be operated; and

(5) Any other information reasonably required by the director.

(d) Upon receiving a proper application for a mobile food court permit or mobile food establishment permit, the director shall make appropriate inspections of the location, food, equipment, vehicles and other reasonable inspections concerned with the mobile food court or mobile food vending operation and shall issue a permit and a sticker only if:

(1) The application complies with subsection (b) or (c), and

(2) The inspection reveals compliance with the applicable requirements of all federal and state statutes and regulations, and all city ordinances governing the proposed mobile food court or mobile food establishment operation.

(e) Mobile food court and mobile food establishment fees shall be as follows:

(1) A permit for the sale of unpackaged, non-TCS foods by peddling from afoot, from a pushcart, from a vehicle, or from a trailer shall be one hundred dollars ($100.00) per year.

(2) A permit for the sale of pre-packaged TCS foods from a pushcart, from a vehicle, or from a trailer shall be two hundred dollars ($200.00) per year.

(3) A permit for the sale of approved openly handled TCS foods from a pushcart, from a vehicle, or from a trailer shall be two hundred fifty-eight dollars ($258.00) per year.

(4) The fee for each written statement from the city police department for persons age seventeen (17) and older as required in subsection (b)(13) shall be the sum of the fees required to obtain the local, state and national criminal histories for the applicant. There shall be no fee for the written statement for persons under the age of seventeen (17).

(5) The director of the center city development office, or its successor city department, shall establish a fee for a special permit and associate permit for mobile food establishments in the downtown business district. The permit fee for vending in the downtown business district and associate fee shall be in addition to any other applicable fees set out in this chapter.

(6) The permit fee for the operation of a mobile food court shall be two hundred twenty dollars ($220.00) per year.

(f) All funds collected for permits under the provisions of this article shall be deposited in the general fund of the city.

(g) The valid sticker shall be displayed by a mobile food establishment:

(1) Inside the vehicle, used in connection with the mobile food vending operation, at the top of the windshield on the passenger side of the vehicle;

(2) On an enclosed trailer on the outside of the unit next to the servicing window so that it is not obscured when the serving window is closed for travel;

(3) At the top right-hand corner on the front of a pushcart, bicycle or tricycle used in connection with the mobile food vending operation; or

(4) In front of the sink of a corn roaster or hot dog cart used in connection with the mobile food vending operation.

(h) Mobile food court permits and mobile food establishment permits shall be valid for only one year from the date of issuance unless sooner suspended or revoked.

(i) Mobile food court and mobile food establishment permits shall not be transferred or assigned and shall be considered suspended should the character of the food vending operation be changed from that specified in the permit.

(j) Every mobile food establishment permit shall be renewed each year in like manner as the original permit application, except that the written statement from the city police department required under subsection (b)(13) shall be renewed every two (2) years from the date of issuance by the city police department of such written statement, with a current written statement to be provided to the director by the permit holder every two (2) years at the time the permit holder is seeking permit renewal.

(k) The director shall make routine, unannounced inspections of mobile food courts, mobile food establishments, central preparation facilities and servicing areas when applicable, to determine whether or not the vending operation is being conducted in such a manner as to comply with the conditions of the permit, the provisions of this article, other applicable city ordinances and state and federal statutes, regulations and rules.

(l) Samples of food and other substances used in the preparation of food may be taken or retained until examined by the director for the detection of unwholesome and deleterious qualities. The director may condemn and forbid the sale of or cause to be removed or destroyed, any food which is adulterated, tainted, diseased, fermented, decaying or otherwise unwholesome, unclean or deleterious to health. The owner, operator or other person in charge of such food shall immediately and in the presence of the director, destroy such adulterated, tainted, diseased, fermented, decaying or otherwise unwholesome, unclean food as directed by the director.

(m) It is the responsibility of the mobile food establishment permitholder and/or the operator to ensure compliance with this article. Violations of this article shall result in the issuance of a citation and/or the suspension or revocation of the permit.

(Ord. No. 2008-05-15-0402, § 1(Att. I), 5-15-08; Ord. No. 2009-09-17-0731D, § 2, 9-17-09; Ord. No. 2012-05-17-0355, § 2, 5-17-12; Ord. No. 2014-04-03-0206, § 3, 4-3-14; Ord. No. 2014-08-07-0539, § 2, 8-7-14; Ord. No. 2016-03-03-0163, §§ 1, 2, 3-3-16; Ord. No. 2025-09-18-0629, § 2(Att. D), 9-18-25)

Sec. 13-63. Operation requirements and restrictions.

(a) Mobile food establishments are subject to the following requirements and restrictions unless specifically addressed otherwise:

(1) It shall be unlawful for an afoot food vendor to sell any TCS foods within the city. It shall be unlawful for an afoot food vendor to sell from a stand or other temporary structure located upon any public street, sidewalk, right-of-way, or other adjacent public or private area without a permit as required under this chapter.

(2) It shall be unlawful for the operator of a mobile food establishment as defined in subsections 13-62(e)(1)—(3) to remove the food from the mobile establishment to vend from a stand or other temporary structure located upon any public street, sidewalk, right-of-way, or other adjacent public or private area without a permit as required by this chapter; except that mobile food establishments may sell produce from no more than three (3) tables that are six (6) feet long and stand at least eighteen (18) inches above the ground, and that are located adjacent to the permitted mobile food establishment.

(3) It shall be unlawful to operate a mobile food establishment on streets where a traffic hazard is created and as listed in Exhibit No. 1 of subsection 16-236(b).

(4) Mobile food establishments may operate in parks subject to the requirements set in section 22-2.

(5) Mobile food establishments may stop in a public street, or right-of-way, provided:

a. This area is not in or within fifty (50) feet of an intersection;

b. This area is not an area prohibited to the standing or parking of vehicles;

c. All items are vended from the curbside of the vehicle or the rear of the vehicle;

d. The mobile food establishment is in compliance with the requirement for hazard lamps as set forth in subsection 13-63(a)(14); and

e. The mobile food establishment is vending in a safe manner.

(6) Mobile food establishments may be stopped on private property, properly zoned and with the written notarized permission of the property owner if the mobile food establishment has access to approved flush type toilet facilities, connected to an approved type sewage system on the private commercial property. Mobile food establishments must be parked on a paved surface and in clean surroundings.

(7) Food vendors shall comply with this Code as well as with state and federal law and nothing in this article shall exempt a food vendor from zoning ordinances.

(8) Mobile food establishments operating within Market Square or El Mercado shall comply with the appropriate provisions of chapter 32, article II.

(9) No person shall operate a mobile food establishment within three hundred (300) feet of the property line of any public, private elementary, middle or high school grounds one hour before, during, and one hour after school hours.

(10) Reserved.

(11) It shall be unlawful to operate a mobile food establishment in the downtown business district with the exception of vendors who have obtained a special permit from the center city development office, or its successor city department, in addition to having all required valid mobile food establishment permit(s). The city manager or her designee shall have authority to establish policies and procedures governing the issuances and regulation of the special permit for mobile food establishments in the downtown business district to include distance requirements from schools and food establishments and access to restroom facilities.

(12) The hours of operation of any mobile food establishment operating in a residential area shall be from 7:00 a.m. Central Standard Time until 9:00 p.m. in June, July and August and until 8:00 p.m. the remainder of the year.

(13) The total noise level of any mobile food establishment shall comply with chapter 21, article III. The mobile food establishment shall turn off all music and recorded messages while stationary, except when stopped at a controlled intersection.

(14) Mobile food establishments that are operating in a residential area shall comply with V.T.C.A., Transportation Code § 547.703. When stationary, the mobile food establishment must turn on its hazard lamps as defined in V.T.C.A., Transportation Code § 547.331, except when stopped at a controlled intersection.

(15) No mobile food establishment shall be parked in violation of section 35-311 of the unified development code.

(16) No food vendor or food handler who meets the requirements set forth in subsections 13-62(b)(13) or 13-63(a)(17) shall be a sex offender registered with the state department of public safety or shall have been convicted of any sexual offense or any offense against a child as defined by applicable law.

(17) Prior to vending, each food vendor and food handler who will be vending frozen or refrigerated confections, including but not limited to ice cream cones, frozen ice cream novelties, raspas or paletas directly to consumers, on a public street, sidewalk, or right-of-way, or who will travel with a mobile food establishment on a public street, sidewalk or right-of-way to or from a location where the food vendor or food handler vends, shall be required to

obtain a written statement issued by the city police department certifying that the food vendor or food handler is not a sex offender registered with the state department of public safety and that the records reviewed by the city police department indicate that the food vendor or food handler has not been convicted of any sexual offense or any offense against a child as defined by applicable law. The basic requirements for submitting requests for criminal backgrounds of persons engaged in mobile food vending are specific in Exhibit 1 hereto on file in the office of the city clerk, and hereby adopted and incorporated herein for all purposes by reference.

(18) Each food vendor and food handler who is required under subsection (17) to obtain a written statement from the city police department must renew this written statement every two (2) years from the date of issuance by the police department of such written statement.

(19) The fee for each written statement from the city police department for persons age seventeen (17) and older as required in subsections (17) and (18) shall be the sum of the fees required to obtain the local, state, and national criminal histories for the applicant. There shall be no fee for the written statement for persons under the age of seventeen (17). These fees are set by entities other than the city, and can be modified by them at any time.

The Federal Bureau of Investigation has increased its fee by one dollar and twenty-five cents ($1.25), causing an increase in the fee required by section 13-63(a)(19) from thirty-seven dollars ($37.00) to thirty-eight dollars and twenty-five cents ($38.25). That increase is hereby approved.

FY 2019 Rate	*FY 2020 Rate*	*New Revenue Amount*
$37.00	$38.25	$320

The FY 2020 rate set out above shall be increased during FY 2020 by the amount required to obtain the local, state, and national criminal histories for the applicant without further action of the city council by ordinance or otherwise.

(20) Each food vendor and food handler who is required to obtain a written statement from the city police department shall carry the current written statement from the city police department, as required under subsection (17), on their person at all times while vending.

(21) It shall be unlawful for a person who has obtained a mobile food establishment permit pursuant to section 13-62, and to whom subsection 13-62(b)(13) applies, to hire or allow a food vendor or food handler to vend on a public street, sidewalk, or right-of-way, or to travel with a mobile food establishment on a public street, sidewalk or right-of-way to or from a location where the food vendor or food handler will vend, who has not first obtained a current written statement issued by the city police department as required by subsections (17) and (18).

(22) It shall be unlawful for a person operating a mobile food establishment to place or allow the placement of any table, chair, awning or other seating or eating area at, near or around the location of the mobile food establishment for customer use except that this provision shall not be construed to conflict with or prohibit a mobile food court from providing such accommodations in accordance with section 13-67.

(b) Subsections (a)(2), (a)(4), (a)(5), (a)(6), (a)(9), and (a)(22) shall not apply to mobile food establishments while operating at a special event.

(Ord. No. 2008-05-15-0402, § 1(Att. I), 5-15-08; Ord. No. 2012-05-17-0355, § 2, 5-17-12; Ord. No. 2013-04-11-0258, § 2, 4-11-13; Ord. No. 2014-08-07-0539, § 2, 8-7-14; Ord. No. 2015-11-19-0968, § 1, 11-19-15; Ord. No. 2019-09-12-0694A, § 1(Att. G), 9-12-19; Ord. No. 2025-09-18-0629, § 2(Att. D), 9-18-25)

Sec. 13-64. Sanitation requirements generally.

Mobile food establishments shall comply with the following requirements. These requirements pertain to all mobile food establishments unless specifically addressed otherwise:

(1) Mobile food establishments shall comply with all sanitation and construction regulations as outlined in 25 TAC § 228.221 of the Texas Food Establishment Rules as adopted in this chapter unless specifically addressed in this section.

(2) A mobile food establishment shall be operated from a central preparation facility that is licensed or approved by a local, state or federal agency or an approved servicing area as applicable so as to be an approved source and the mobile food establishment shall report to the central preparation facility or servicing area as needed, but not less than once per calendar week for all cleaning and servicing operations. The mobile food establishment shall acquire needed supplies from the central preparation facility or other approved source. The mobile food establishment and central preparation facility or servicing area shall maintain documentation of each visit to the central preparation facility or servicing area and shall have that documentation available for inspection. Mobile food establishments dispensing fresh fish and shrimp are exempt from this provision.

(3) Mobile food establishments that dispense snow cones/shaved ice/raspas, shrimp, fish, shellfish, or crusteacea shall provide a gravity fed hand washing system, soap, and paper towels.

(4) Liquid waste resulting from any mobile vending operation shall be stored in permanently installed retention tanks of at least fifteen (15) percent larger capacity than the water supply tank and shall be drained and thoroughly flushed during servicing operations. All liquid waste shall be discharged to an approved sanitary sewage disposal system at the central preparation facility or servicing area.

(5) All food that requires packaging or preparation by the vendor shall be processed in the central preparation facility that is required as a support facility for a mobile food establishment.

(6) Mobile food establishments dispensing snow cones/shaved ice/raspas shall be designed so as to enable the operator of the unit to protect the equipment, syrup, ice and utensils used in the operation of the unit from dust, insects and rodents while the unit is in transit or overnight storage.

(7) Mobile food establishments shall provide waste containers for customers at such times when the unit is parked.

(Ord. No. 2008-05-15-0402, § 1(Att. I), 5-15-08; Ord. No. 2014-08-07-0539, § 2, 8-7-14; Ord. No. 2016-03-03-0163, §§ 1, 2, 3-3-16; Ord. No. 2021-11-18-0875, § 1, 11-18-21; Ord. No. 2025-09-18-0629, § 2(Att. D), 9-18-25)

Sec. 13-65. Sanitation requirements for units with facilities to prepare or dispense unpackaged time/temperature for safety control foods.

In addition to the sanitation requirements described in section 13-64, food vendors preparing and vending food from a mobile food establishment with facilities to prepare or dispense unpackaged TCS foods, shall comply with the following requirements:

(1) A mobile food establishment central preparation facility or servicing area required in subsection 13-64(2), shall include at least overhead protection for any supplying, cleaning or servicing operation except those areas used only for the loading of water and/or the discharge of sewage and other liquid waste, through the use of a closed system of hoses, need not be provided with overhead protection. Within this central preparation facility/servicing area, there shall be a location

provided for the flushing and the draining of liquid waste separate from the location provided for water servicing and for the loading and the unloading of food and related supplies.

(2) The central preparation facility and servicing area will maintain a log of mobile food establishments being serviced at the central preparation facility or servicing area and require each mobile food establishment that is serviced to document the date and time of arrival and departure from the central preparation facility or servicing area and the services performed. The mobile food establishment, central preparation facility and servicing area will make available for inspection the record or records of the mobile food establishments serviced.

(3) All water and gas distribution pipes or tubing shall be constructed and installed in accordance with public health, fire department and plumbing standards as set out by the ordinances of the city. The water for said operations shall be from an approved source. Every calendar week, mobile food establishments shall check chlorination of its water supply. Every calendar month, mobile food establishments shall sanitize water tanks. Records of all such test results and sanitization shall be made available to the department upon inspection.

(4) A water heating device of no less than six (6) gallons, or an instantaneous water heater, capable of producing one hundred ten (110) degrees Fahrenheit hot water during the entire time of operation shall be provided in the mobile food establishment.

(5) All food service operations shall be carried on from within the mobile food establishment.

(6) Any additional equipment or the arrangement thereof other than approved when the permit was issued shall be prohibited unless approved in advance by the director.

(Ord. No. 2008-05-15-0402, § 1(Att. I), 5-15-08; Ord. No. 2014-08-07-0539, § 2, 8-7-14; Ord. No. 2016-03-03-0163, §§ 1, 2, 3-3-16; Ord. No. 2025-09-18-0629, § 2(Att. D), 9-18-25)

Editor's note—Ord. No. 2014-08-07-0539, § 2, adopted August 7, 2014, changed the title of section 13-65 from "Sanitation requirements for units with facilities to prepare food" to "Sanitation requirements for units with facilities to prepare or dispense unpackaged potentially hazardous food." The historical notation has been preserved for reference purposes.

Sec. 13-66. Special requirements for units which are hand pushed.

In addition to the requirements described in section 13-64, the following requirements shall be met by mobile food establishments of TCS foods from a hand pushed mobile food establishment; except that snow cones/shaved ice/raspas, produce, prepackaged novelty ice cream food vendors are exempt from the provisions of subsections (6), (7), and (8).

(1) All equipment utilized in the mobile food establishment shall have prior approval of the director.

(2) Snowcones/shaved ice/raspa vendors shall provide a gravity fed hand washing station. Soap and paper towels are to be provided. Waste water from handwashing is to be collected in a sealable container and disposed of in a sanitary sewer.

(3) Any additional equipment or the arrangement thereof other than approved when the permit was issued shall be prohibited unless approved in advance by the director.

(4) The mobile food establishment shall be located in clean surroundings, on a paved surface or equally impervious ground and maintained in a clean and sanitary condition.

(5) A push cart vendor shall be prohibited from operating on the public streets.

(6) The mobile food establishment shall be cleaned and serviced at the central

preparation facility or servicing area and shall be stored inside a building when not in operation. The mobile food establishment shall acquire needed supplies from the central preparation facility or other approved source. The mobile food establishment shall provide documentation of each visit to the central preparation facility or servicing area and shall have that documentation available for inspection. With prior approval from the director or his designee, however, the mobile food establishment may be kept on site in a location that is secured, fenced and inaccessible to the public during nonoperating hours. When so stored on site, such mobile food establishment must be covered for protection from the elements and potential vectors with covering approved by the director or his agent. The mobile food establishment stored on site shall be cleaned and serviced on the same standards as those units cleaned and serviced in a central preparation facility or servicing area and must meet all other requirements of this chapter.

(7) Hand pushed mobile food establishments openly handling TCS foods and drink shall be equipped with a two-compartment sink, a separate handwashing sink, soap and paper towels, and provided with an adequate amount of hot and cold running water. The sink, potable water holding tanks, and waste water holding tank shall be installed and operated in accordance with the city development services department's plumbing regulations.

(8) Facilities to heat water and TCS foods on hand pushed mobile food establishments shall be installed and operated in accordance with the city fire department rules and regulations.

(Ord. No. 2008-05-15-0402, § 1(Att. I), 5-15-08; Ord. No. 2014-08-07-0539, § 2, 8-7-14; Ord. No. 2016-03-03-0163, §§ 1, 2, 3-3-16; Ord. No. 2025-09-18-0629, § 2(Att. D), 9-18-25)

Sec. 13-67. Operation requirements and restrictions for mobile food courts.

(a) Mobile food courts shall comply with the following requirements:

(1) The property must meet all commercial zoning requirements;

(2) All mobile food establishments situated on the property shall be located on an impermeable surface such as concrete or rolled asphalt;

(3) All mobile food establishments that remain on the property overnight shall have temporary connections for electricity, potable water and sewage disposal, or a system to adequately provide these services to each mobile food establishment;

(4) All mobile food establishments that are unable to comply with the requirements of subsection 13-67(a)(3) shall be removed from the property overnight and serviced by an approved central preparation facility prior to its next day of operation; and

(5) A restroom equipped with flush type toilets and properly plumbed to a sanitary sewage system with sufficient capacity to meet the needs of the mobile food court's mobile food establishments and customers shall be available on the property. Restrooms shall be equipped with hand sinks, hot and cold water and either hand towels or forced air hand dryers.

(b) Mobile food establishments in compliance with subsection 13-67(a)(3) shall be exempt from subsections 13-64(2), 13-64(4), and 13-64(5).

(c) Subsections 13-63(a)(9), 13-63(a)(10), 13-63(a)(12), and 13-63(a)(15) shall not apply to mobile food establishments operating in a mobile food court.

(d) Mobile food establishments which operate exclusively in a mobile food court shall be exempt from the criminal background check requirement as set out within this article.

(e) Permanent pavilions and similar seating areas for customers may be provided.
(Ord. No. 2012-05-17-0355, § 2, 5-17-12; Ord. No. 2016-03-03-0163, §§ 1, 2, 3-3-16)

Secs. 13-68—13-80. Reserved.

ARTICLE V. RENDERING

Sec. 13-81. Purpose.

The regulations established in this article have been in accordance with a comprehensive plan for the purpose of promoting health, safety, morals and the general welfare of the community. They have been designed to regulate the location, the equipment and the mode of operation of the rendering establishments or business within the city, as defined in this article, for the purpose of protecting the general public as well as the residents of this city from health hazards arising from unsanitary conditions which may exist in conjunction with the operation of rendering establishments.
(Ord. No. 2008-05-15-0402, § 1(Att. I), 5-15-08)

Sec. 13-82. Nuisance declared and disposal required.

All dead animals, dead fowl, dead fish, inedible offal, meat scraps, bones, suet, feathers, unrendered animal fat, waste cooking greases, and similar animal matter located within the city not properly kept under refrigeration or not disposed of as garbage under the provisions of chapter 14 are hereby declared a nuisance and menace to the public health, requiring the prompt collection and disposal thereof under the authority and direction of the director.
(Ord. No. 2008-05-15-0402, § 1(Att. I), 5-15-08)

Sec. 13-83. Methods of disposal generally.

(a) All matter declared a nuisance in section 13-82, which is derived in whole or in part, directly or indirectly, from the carcass or carcasses of any cattle, horses, mules, asses, sheep, goats, hogs, or other livestock, domestic animals or domestic fowl which at the time of death had any disease or diseases shall be disposed of in a manner consistent with state law.

(b) All matter declared a nuisance in section 13-82, not covered by subsection (a), shall be turned over or delivered by the owner thereof:

(1) Directly to a rendering establishment having a current permit as herein provided in this article;

(2) To collector of material for processing, as defined in this article, having a current permit as provided in this article; or

(3) To a city sanitary landfill designated by the director. The person having such animals and fowl in his possession and desiring to avail himself of this means of disposal shall contact the department for the location of the sanitary landfill, shall have such animals and fowl transported there at his expense, and shall supply sufficient personnel to unload and place same where designated.

(Ord. No. 2008-05-15-0402, § 1(Att. I), 5-15-08)

Sec. 13-84. Permit application, fee and requirements for issuance.

(a) Every person who is operating or desires to operate a rendering business or any phase thereof, shall immediately make application in writing to the director, upon forms prescribed and furnished by such health officer, for all required permits to operate and do business within the city, and shall pay therefore an annual fee based upon the cost of inspecting the facilities of such rendering business or phase thereof to be computed as prescribed in this article. The annual fee shall include the cost of re-inspecting the facilities as a result of failure to keep such facilities in such a manner as to meet the requirements of this article. No permit shall be issued for any premises which are in violation of the zoning ordinance of the city.

(b) The fees shall be computed as follows:

(1) The amount for a collector's permit shall be based upon the number of transport vehicles to be inspected, at forty eight dollars ($48.00) per vehicle per year;

(2) The amount for a rendering materials storage facility permit shall be ninety

dollars ($90.00) per year when such facility is not an integral part of a rendering establishment;

(3) The amount for a rendering establishment permit shall be three hundred sixty dollars ($360.00) per year.

(c) All fees listed in subsection (b), shall be payable to the city, and shall accompany the application for permit. Permit for operation of a rendering business shall be issued under the corporate seal of the city, shall be signed by the director and shall authorize the person therein named to establish, maintain and operate a rendering business at the place designated in such permits. Such permits shall expire one year from the month of original issuance or renewal, and shall be renewed in each successive year thereafter.

(d) Following the receipt of an application for a permit and proof that the required annual fee has been paid, the director will conduct such investigation as he deems necessary to determine whether the applicant's premises, personnel and equipment are proper and adequate for the services proposed or offered. Upon a determination by the director that the applicant has met the requirements of this chapter, he will issue the applicant the appropriate permit. The collector's rendering materials, storage facility, and/or rendering establishment permit will be displayed upon the wall of the main office located upon the premises for which the permit is issued. Should the application for permit be denied, three-fourths (¾) of the fee will be returned.
(Ord. No. 2008-05-15-0402, § 1(Att. I), 5-15-08; Ord. No. 2008-09-11-0777C, § 1, 9-11-08; Ord. No. 2019-09-12-0694A, § 1(Att. H), 9-12-19)

Sec. 13-85. Use of streets, etc., for private disposition prohibited.

It shall be unlawful for any person not having a current collector's permit issued pursuant to this article to use the streets, alleys or avenues of the city for the purpose of collecting, removing or transporting animal matter declared a nuisance in section 13-82.
(Ord. No. 2008-05-15-0402, § 1(Att. I), 5-15-08)

Sec. 13-86. Operation of a rendering establishment without a permit prohibited.

It shall be unlawful for any owner, operator, or person in charge at the time to operate a rendering establishment within the city without having a current rendering establishment permit issued pursuant to this chapter. A separate permit is required for each premises.
(Ord. No. 2008-05-15-0402, § 1(Att. I), 5-15-08)

Sec. 13-87. Operation of a storage facility for materials to be rendered without a permit prohibited.

It shall be unlawful for any owner, operator, or person in charge at the time to engage in the rendering business by maintaining, operating or causing to be operated any separate premises as a facility where animal matter, declared to be a nuisance in section 13-82, is collected or stored pending further processing or disposal unless the aforesaid separate premises has a current rendering materials storage facility permit issued pursuant to this chapter or is an integral part of a currently permitted rendering establishment. A separate permit is required for each premises requiring a rendering materials storage facility permit.
(Ord. No. 2008-05-15-0402, § 1(Att. I), 5-15-08)

Sec. 13-88. Operation of transport vehicle without meeting certain requirements prohibited.

It shall be unlawful for any person to operate or to cause another to operate a transport vehicle upon the roads, highways, streets, alleys, or avenues within the city for the purpose of collecting, removing, or transporting animal matter declared a nuisance in section 13-82, unless said transport vehicle is covered by a current collector's permit and meets the requirements for such vehicles set forth in this chapter.
(Ord. No. 2008-05-15-0402, § 1(Att. I), 5-15-08)

Sec. 13-89. Rendering business creating offenses or becoming nuisances.

It shall be unlawful for any person to operate a rendering business or any phase thereof within

the city unless the rendering business or phase thereof shall at all times be so conducted as to create no offense or nuisance.
(Ord. No. 2008-05-15-0402, § 1(Att. I), 5-15-08)

Sec. 13-90. Nuisances defined in connection with rendering businesses.

Any, all or any combination of the following conditions or places within the city are hereby specifically declared to be a nuisance dangerous to public health punishable as such, and shall be abated.

(1) Any condition or place allowed to exist which permits any dangerous, unwholesome, nauseous, or offensive odors, gases or fumes to escape into the open air in such amounts as to be substantially offensive, uncomfortable and annoying to any community, family, or person or ordinary sensibilities, tastes, and habits at a distance of more than two hundred (200) feet from the building, premises, or processing area where such odors, gases or fumes emanated;

(2) Any condition or place allowed to exist which constitutes a breeding place for flies;

(3) Any condition or place allowed to exist where sewage, sewerage, human excreta, waste water, garbage, or any other matter is deposited, stored, discharged, or exposed in such a way as to be a potential instrument or medium in the transmission of disease to or between any person or persons;

(4) Any condition or place allowed to exist, harboring rats;

(5) Any condition or place allowed to exist which may be proven to injuriously affect the public health; or

(6) Any collection of water in which mosquitoes are breeding.

(Ord. No. 2008-05-15-0402, § 1(Att. I), 5-15-08)

Sec. 13-91. Construction and general layout of processing areas of rendering business.

(a) All processing areas of rendering businesses shall have sufficient space for the conduct in a sanitary manner of operations carried on therein; for the installation of necessary utility equipment; and for the installation of processing equipment in such a manner that such equipment shall be easily accessible for cleaning.

(b) All processing areas of rendering businesses shall be constructed in accordance with the subsequent applicable provisions of these regulations so as to be easily maintained in a sanitary condition and to prevent harborage areas for rodents, roaches and other vermin.

(c) All processing areas of rendering businesses shall be in a closed building which is constructed in accordance with this chapter and shall be kept clean and in good repair.

(d) All raw materials shall be received into, unloaded and/or stored in a closed room or area immediately upon arrival at the processing area.

(e) Storage facilities for finished products shall be located, constructed and maintained so as to prevent contamination of finished products by materials for rendering- entering into and processed through the rendering establishment. Storage facilities for finished products shall be separate from receiving and processing areas. Any opening between receiving or processing areas and storage areas shall be equipped with tight fitting self-closing completely metal clad doors which shall be maintained in good working order. There shall be no direct openings between areas where materials for rendering are received and prepared for processing and the storage areas for finished products.

(f) Hide storage shall be separate from material for rendering and finished product areas and all openings between these areas shall be provided with self-closing doors.

(g) A paved area constructed of concrete or other equally impervious material adequate in size and provided with adequate drains in good working order leading to a sanitary sewer system

shall be provided and used for the washing of transport vehicles. This area shall be provided with adequate supply of hot water of 180°F or other suitable cleaning and sanitization provision for transport vehicles.

(h) A paved area constructed of concrete or other equally impervious material adequate in size and provided with adequate drains in good working order leading to a sanitary sewer shall be provided at the unloading area for materials for rendering and any other area where spillage of raw, finished or waste products is likely to occur. Said areas shall be provided with an adequate supply of hot water of 180°F or other suitable cleaning and sanitization provisions.
(Ord. No. 2008-05-15-0402, § 1(Att. I), 5-15-08)

Sec. 13-92. Transport vehicles.

(a) The beds of all transport vehicles used in hauling materials for processing, as defined in this ordinance, on public streets shall be completely enclosed with fixed tight fitting top, sides and ends, The transport vehicle bed, top, sides and ends shall be constructed of impervious material which can be easily cleaned and sanitized and shall be leak proof.

(b) All transport vehicles used on the roads, highways, streets, alleys or avenues within the city to haul materials for processing shall be identified on each side of the transport vehicle as follows:

(1) Name of company in letters at least three (3) inches high and three-quarters of an inch (¾") depth.

(2) The words "inedible" in letters at least two (2) inches high and three-eighths of an inch (⅜") depth on the panel as in subsection (a).

(c) All vehicles used to transport finished products shall be properly cleaned and sanitized before usage.
(Ord. No. 2008-05-15-0402, § 1(Att. I), 5-15-08)

Sec. 13-93. Premises.

(a) The premises shall be kept in a clean, neat condition and shall be free of rodent infestation, of places conducive to insect breeding and of unwarranted collection of refuse, waste material and other objectionable conditions; provided, that for the purposes of this section, the premises shall be deemed to include the back, front and side yards of property occupied by the processing phase of a rendering business, docks and areas where vehicles are loaded or unloaded; driveways, approaches, pens, and alleys; and buildings or portions of buildings which are part of such establishments even though not used for processing purposes.

(b) Loose lumber and other building or salvage materials shall be stored in an orderly manner at least eighteen (18) inches above the ground; non-salvageable materials shall be removed from the premises.

(c) The premises shall be well drained and shall be so maintained that there are no pools of standing water.
(Ord. No. 2008-05-15-0402, § 1(Att. I), 5-15-08)

Sec. 13-94. Floors.

(a) Floors in processing areas shall be smooth, in good repair and kept clean.

(b) Floors in all rooms or areas where processing is done or where utensils are washed shall be constructed of good quality concrete or equally impervious and easily cleanable material. All surfaces of such floors shall be graded to drain to floor drains in good working order which shall be trapped in accordance with the Uniform Plumbing Code as adopted by the city and which shall be connected to a sanitary sewer. There shall be a minimum of one floor drain to each four hundred (400) square feet of floor area. Gutters, if used to conduct such drainage, shall be so constructed and located as to be easily cleanable; in such case floors shall be properly graded to drain to such gutters and said gutters shall be provided with traps, cleanouts and vents as required by the Uniform Plumbing Code as adopted by the city.

(c) During operations the floors in processing areas shall be kept free of any accumulation of processing wastes, including blood, manure, scraps, grease, water, dirt and litter. When processing is conducted at short irregular

intervals, such processing wastes shall be removed from floors and properly disposed of immediately following each individual period of processing. Such floors shall be thoroughly cleaned at a minimum of at least once for each 24-hour period.

(d) Floors in all rooms and areas where finished products are stored, handled, ground, or bagged shall be constructed of good quality concrete or other equally impervious material. Such floors shall be kept in good repair and kept clean.
(Ord. No. 2008-05-15-0402, § 1(Att. I), 5-15-08)

Sec. 13-95. Walls, ceilings, partitions, and posts.

(a) Walls, partitions, posts, ceilings and exposed overhead structures of all rooms and areas shall be kept clean and in good repair.

(b) Those sections of walls, partitions, posts, ceilings and exposed overhead structures in processing areas which become soiled during processing shall be thoroughly cleaned at least once in each 24-hour period.

(c) Walls, partitions and posts in all processing areas shall be finished with smooth, washable, surfaces of concrete, cement-plaster, or other equally impervious and easily cleanable material.

(d) Interior walls separating one room or area from another shall extend from the floor to the ceiling. Such walls shall be free from openings except for necessary doorways equipped with tight fitting self-closing completely metal clad doors, and necessary openings for conveyors.

(e) All outer walls and roofs and openings therein shall be protected against the entrance and harborage of rodents, and insects.
(Ord. No. 2008-05-15-0402, § 1(Att. I), 5-15-08)

Sec. 13-96. Doors, windows and openings.

(a) All outside doors and openings shall be effectively protected at all times against the entrance of insects, rodents and other vermin.

(b) All outside doors shall be completely metal clad and shall be tight fitting and in good working order.

(c) Screens when used shall be tight fitting, kept clean, in good repair, and of not less than sixteen (16) meshes to the square inch.

(d) All interior doors shall be tight fitting, completely metal clad, and self-closing and in good working order.

(e) Doors and windows shall be kept clean and in good repair.
(Ord. No. 2008-05-15-0402, § 1(Att. I), 5-15-08)

Sec. 13-97. Toilet, shower, and dressing rooms

(a) Well-located and properly separated toilet and dressing room facilities are required for employees of each sex. Each employee shall be provided with a metal locker at least fifteen (15) inches × eighteen (18) inches × sixty (60) inches. The lockers shall be raised at least sixteen (16) inches above the floor on legs or other suitable supports. The lockers shall have sloping tops.

(b) The minimum size of any dressing room shall be at least eight (8) feet × ten (10) feet for a maximum of four (4) employees. Ten (10) square feet per man shall be provided for each additional man over four (4) and through ten (10). Five (5) square feet per man shall be provided for each additional man over ten (10).

(c) Dressing rooms shall be separated from adjoining toilet rooms by tight full-height walls or partitions. Toilet rooms and dressing rooms shall have solid, close fitting, self-closing doors and in good working order.

(d) Water closets, lavatories and showers in good working order shall be provided for each sex according to the Uniform Plumbing Code as adopted by the city plumbing code.

(e) A supply of toilet paper with holder shall be provided and maintained at every water closet.

(f) Lavatories in good working order shall be provided and maintained with hot and cold water under pressure and an adequate supply of soap and individual hand towels shall be maintained.

(g) Showers in good working order shall be provided and maintained with hot and cold water under pressure and an adequate supply of soap and individual towels shall be maintained. The provisions of a towel for general or common use shall be prohibited.

(h) The floors and walls of toilet rooms and dressing rooms shall be of impervious material and the floor shall be pitched about one-eighth-inch per foot to properly located floor drains in good working order. Such rooms shall be provided and maintained with adequate lighting and good ventilation.

(i) Employee toilet and dressing rooms shall be separated from other areas of the establishment by walls extending from the floor to the ceiling and shall be constructed in accordance with this article.
(Ord. No. 2008-05-15-0402, § 1(Att. I), 5-15-08)

Sec. 13-98. Water supply.

(a) The water supply of each rendering business shall be from a public water supply; or shall be from a private source complying with the requirements of the Safe Drinking Water Act, with the exceptions as provided in subsection (b).

(b) There shall be no physical connection between the rendering business' water supply and any unsafe or questionable supply. The use of water from any such unsafe or questionable supply shall be permitted only for limited purposes such as fire control or condensers. In all cases supply lines for unsafe or questionable water shall be clearly identified.

(c) Hot and cold water shall be conveniently accessible to all parts of the establishment. Such water shall be under ample pressure and shall be available through such outlets and in such quantities as may be necessary to meet effectively the needs of the establishment at all times.

(d) The hot water system shall have sufficient capacity to furnish ample water with a temperature of at least 180°F during all periods of processing and clean-up operations.
(Ord. No. 2008-05-15-0402, § 1(Att. I), 5-15-08)

Sec. 13-99. Plumbing and related facilities.

(a) The plumbing system in each rendering business shall be installed in compliance with this Code.

(b) All outlets and connections to fixtures and equipment shall be so installed as to prevent backflow into the water-distribution system.

(c) Plant sewer lines shall be separate from toilet sewer lines to a point outside the building.

(d) Where necessary to prevent discharge into the sewage collection system of solid wastes likely to clog the system, the liquid wastes containing such solid materials shall be passed through a separator or indirect waste receptor which shall effectively retain such solids prior to discharge into the sewage collection system.

(e) All overhead drain lines and piping shall be so located and installed or so protected that leakage and condensation therefrom will not drip upon employees, processing equipment, utensils, finished product, or floors in working areas.

(f) Drinking water facilities of a sanitary type shall be provided and maintained in good working order in the establishment and shall be so located as to be convenient for use by employees.
(Ord. No. 2008-05-15-0402, § 1(Att. I), 5-15-08)

Sec. 13-100. Disposal of wastes.

(a) All wastes shall be handled and disposed of in a manner which will prevent contamination of the water supply, processing equipment, packaging materials, containers, and finished products.

(b) All liquid wastes shall receive such treatment as may be required by the state department of state health services and shall be disposed of in a manner approved and permitted by the state commission on environmental quality.

(c) Containers shall be used for the collection and holding of solid wastes and shall be kept covered or otherwise protected at all times so that such wastes shall not be accessible to flies, rodents, other vermin or otherwise create a nuisance.

(d) Solid wastes shall be disposed of daily by burial. Such burial shall be in accordance with sanitary landfill operations as prescribed by the state commission on environmental quality.

(e) No material for rendering, waste product, offal, polluting material, tallow, spent chemical, liquids, or other wastes of any kind shall be stored, deposited or disposed of in any manner as may cause pollution of the surrounding land.

(f) Drinking water facilities of a sanitary type shall be provided and maintained in good working order in the establishment and shall be so located as to be convenient for use by employees.
(Ord. No. 2008-05-15-0402, § 1(Att. I), 5-15-08)

Sec. 13-101. Ventilation.

(a) An adequate ventilation system shall be provided and maintained in good working order in a rendering establishment to collect odors, condensates and vapors.

(b) The ventilation collecting system described in this section, shall discharge the collected odors into a treatment system which; will remove odorous matter sufficiently to meet the requirements of this article.

(c) Employee toilet rooms and dressing rooms shall be adequately vented to the outside air. If such venting be provided by a window, the window shall be provided with a tight fitting screen of not less than sixteen (16) meshes to the square inch.

(d) Space heaters, gas stoves and water heaters shall be vented in accordance with this Code.
(Ord. No. 2008-05-15-0402, § 1(Att. I), 5-15-08)

Sec. 13-102. Control of odors.

(a) Rendering cooker odors shall not be released or emitted into the atmosphere in concentration which will cause a nuisance, as defined in section 13-90.

(b) All rendering cooker odors shall be collected whereby the odors are collected and passed through scrubbers or condensers; condensibles so removed by the scrubbers or condensers shall be disposed of into a sanitary sewer in accordance with this Code; the non-condensibles discharged from such scrubbers or condensers shall be collected and discharged to direct flame incineration.
(Ord. No. 2008-05-15-0402, § 1(Att. I), 5-15-08)

Sec. 13-103. Equipment and utensils.

(a) Equipment and utensils in rendering businesses shall be constructed of impervious materials, so designed and fabricated as to facilitate cleaning, so located or placed as to be readily accessible for cleaning, and shall be kept clean and in good repair.

(b) Equipment utilized in handling and processing of materials for rendering shall not be used in connection with finished products or in the finished products room or area.
(Ord. No. 2008-05-15-0402, § 1(Att. I), 5-15-08)

Sec. 13-104. Cleanliness of personnel.

(a) Persons who engage in rendering businesses shall, while thus engaged, wear washable outer garments such as uniforms, coats, aprons, or coveralls, and shall wear caps or other washable head covering. If gloves are worn, they shall be of easily cleanable material. When such persons change their activity within a rendering establishment from one operation to another, suitable change of garments and personal clean-up shall be made so as to prevent contamination of finished products.

(b) Persons who engage in rendering businesses shall begin each day's work with clean clothing. Suitable receptacles shall be provided to receive soiled clothing. Such clothing shall not be reworn before being laundered.
(Ord. No. 2008-05-15-0402, § 1(Att. I), 5-15-08)

Sec. 13-105. Operating procedures.

(a) Operating procedures of rendering establishments shall be such as to produce finished products which are protected from cross contamination by materials for rendering entering such establishments.

(b) All material for rendering received on the rendering business premises shall be placed in the materials for rendering storage room immediately upon receipt. All materials for

rendering shall be received into, unloaded and/or stored in a closed room or area immediately upon arrival at the rendering establishment.

(c) All materials for rendering received by the rendering business shall be rendered within twenty-four (24) hours of receipt; provided that; dry or other non-odorous material may be stored within the materials for rendering storage room for a period not to exceed forty-eight (48) hours, if so stored as to prevent a nuisance and/or development of a malodorous condition.

(d) Collection vehicles used within the rendering business shall be washed and sanitized at least once in each 24-hour period.

(e) Adult flies shall be controlled, and places conducive to fly breeding and/or fly development shall be eliminated.

(f) All metal drums or reusable containers utilized in the collection of materials for rendering shall be thoroughly washed, scrubbed and sanitized immediately upon emptying. All cleaned and sanitized containers shall be stored inside. (Ord. No. 2008-05-15-0402, § 1(Att. I), 5-15-08)

Secs. 13-106—13-110. Reserved.

ARTICLE VI. CERTIFICATION OF FOOD ESTABLISHMENT PERSONNEL*

Sec. 13-111. Food manager and food handler certification requirements.

Food managers and food handlers shall be certified consistent with the requirements set out in 25 TAC § 228.31 of the Texas Food Establishment Rules as adopted in section 13-2. (Ord. No. 2025-09-18-0629, § 2(Att. D), 9-18-25)

*__Editor's note—__Ord. No. 2025-09-18-0629, § 2(Att. D), adopted Sept. 18, 2025, amended article VI in its entirety to read as herein set out. Former article III, §§ 13-111—13-121, pertained to food manager and food handler certification regulations, and derived from Ord. No. 2008-05-15-0402, § 1(Att. I), adopted May 15, 2008; Ord. No. 2012-05-17-0355, § 2, adopted May 17, 2012; Ord. No. 2013-04-11-0258, § 2, adopted April 11, 2013; Ord. No. 2015-12-17-1066, § 2, adopted Dec. 17, 2015; Ord. No. 2016-03-03-0163, §§ 1, 2, adopted March 3, 2016; Ord. No. 2019-09-12-0694A, § 1(Att. H), adopted Sept. 12, 2019; and Ord. No. 2021-11-18-0875, § 1, adopted Nov. 18, 2021.

Secs. 13-112—13-125. Reserved.

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Chapter 14

SOLID WASTE*

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Article III. Fees

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*__Editor's note—__Ord. No. 2010-11-04-0955, § 1, adopted November 4, 2010, repealed and reenacted chapter 14 in its entirety to read as herein set out. Formerly, chapter 14, articles I—V, pertained to similar subject matter, and derived from Ord. No. 74249, § 1(Att. I), adopted September 5, 1991; Ord. No. 74301, §§ 1, 2, adopted September 12, 1991; Ord. No. 78731, § 1, adopted September 15, 1993; Ord. No. 88498, § 1, adopted September 17, 1998; Ord. No. 92522, § 1, adopted September 14, 2000; Ord. No. 94592, § 1, adopted September 20, 2001; Ord. No. 94743, § 1, adopted October 18, 2001; Ord. No. 96411, § 1, adopted September 20, 2002; Ord. No. 101395, § 1, adopted September 15, 2005; Ord. No. 2006-06-29-0817, § 4, adopted June 29, 2006; Ord. No. 2006-09-07-1013, § 1, adopted September 7, 2006; Ord. No. 2007-01-18-0072, § 1, adopted January 18, 2007; Ord. No. 2007-09-13-0973M, § 1, adopted September 13, 2007; Ord. No. 2008-05-15-0403, § 1, adopted May 15, 2008; Ord. No. 2008-09-11-0777G, § 10, adopted September 11, 2008; Ord. No. 2009-09-17-0731G, § 2, adopted September 17, 2009; Ord. No. 2009-09-17-0731Q, §§ 1, 2, adopted September 17, 2009; Ord. No. 2009-10-15-0837, § 1, adopted October 15, 2009; Ord. No. 2009-11-19-0941, § 1, adopted November 19, 2009.

Section 2 of Ord. No. 2010-11-04-0955 states the following: Violations occurring after the effective date of this Ordinance shall be punished as provided in the revised Chapter 14. The complete amendment and replacement by this Ordinance of Chapter 14, Solid Waste, of the City Code of the City of San Antonio, Texas, does not apply to any violation committed under this Chapter before the effective date. A violation committed before the effective date is governed by that Chapter as it existed on the date the violation was committed, and the former law is continued in effect for that purpose. For purposes of this section, a violation was committed before the effective date if any element of the violation occurred before that date."

Charter reference—General powers relative to garbage disposal, § 3, Par. 11.

Cross references—Junk and salvage dealers, § 16-186 et seq.; junked vehicles, § 19-356 et seq.; pollution control, § 26-1 et seq.

State law references—Garbage generally, Texas Health and Safety Code, Chapter 341; Solid Waste Disposal Act.

Sec. 14-41. Commercial refuse and recycling collection.
Sec. 14-42. Reserved.
Sec. 14-43. Multi-family recycling.
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ARTICLE I. INTRODUCTION

Sec. 14-1. Definitions.

As used in this chapter, the following terms shall have the meanings shown:

Biodegradable shall mean a substance capable of breaking down into its small constituent parts when the degradation is the result of naturally-occurring micro-organisms such as bacteria, fungi, and algae.

Brush shall include tree branches, woody vines, shrubs, and other herbaceous and woody plants less than six (6) feet in length, excluding posts, boards, lumber or their fragments. Stumps, roots, or shrubs with root balls, loose or containerized leaves and grass clippings are unacceptable for brush collection. Brush does not include any material generated at a location other than the residence from which it is collected.

Bulky waste shall include only municipal solid wastes in the forms of irregularly sized items that do not readily fit into refuse containers, which include but are not limited to, large appliances (e.g. refrigerators, water heaters, washers, and dryers), toilets and furniture, also small and medium-sized appliances, and other domestic wastes and discards which are commonly regarded by the regulated community as large non-putrescible municipal solid waste items. Bulky waste does not include household hazardous waste, hazardous or special wastes, construction and demolition waste, vehicle parts, commercial tires, brush, electronics, or products containing glass which may break during collection. Bulky waste does not include waste generated at a location other than the residence from which it is collected.

Bulky waste collection center shall mean a citizen collection station that allows drop off of bulky waste such as furniture, appliances, toys, water heaters, etc. The facility may consist of one or more storage containers to collect material that will then be transported to the landfill or recycle facility for disposal. Site operational procedures and types of MSW accepted are detailed in this chapter.

Business customer shall mean a person that produces business waste that the city has agreed to collect.

Business municipal waste shall mean garbage and recycling MSW similar, in both content and volume, to that generated at a residence.

Business services shall mean collection of business waste (brush, bulky and special bagged leaf collection not included) from business customers, provided by the city, and is limited to a maximum of five (5) container sets for each business receiving these services. Refuse and recycling collection service at such location must be feasible and within existing collection routes.

Central Business District (CBD) shall mean all streets and portions of streets within the area bounded as follows: Beginning at the interchange between Cesar Chavez Boulevard (formerly Durango Boulevard) and I-H 35 Expressway; thence northward and eastward along I-H 35 Expressway to I-H 37 Expressway; thence southward on I-H 37 Expressway to Cesar Chavez Boulevard, thence west on Cesar Chavez Boulevard to I-H 35 Expressway, the point of beginning.

City shall mean the City of San Antonio.

Collection shall mean the act of removing solid waste (or recycling materials) that have been placed for the purpose of collection, and transportation to a permitted solid waste disposal or processing facility.

Collection assistance service shall mean a collection service provided to a customer residence wherein there is no able-bodied person capable of setting out refuse, recyclables, or organics at the public right-of-way. The director will set eligibility requirements for this service.

Collection contractor shall mean a private company that provides collection services on behalf of the city.

Collection system shall mean the collection and transportation of garbage, organics or recycling in a specially designed truck affixed with a mechanical arm assembly. Service is provided in the form of either automated (one-person crew) or semi-automated method (multiple-

person crew). This system utilizes specially designed containers issued by the city. Automated service is also known as mechanized collection.

Commercial refuse shall include any solid wastes generated as a by-product of any commercial operation but shall not include swills, slops, toxic or corrosive materials, manure, or any other material found harmful to personnel or equipment as determined by the director or his designee. Commercial refuse shall also include MSW that was not generated at the city customers CPS account address and non-residential MSW (MSW that is generated from a business) that may be collected from businesses such as law offices, community centers and pools.

Compostable shall mean a substance that is biodegradable and capable of breaking down without leaving a chemical trace or residue. It should decompose into humus, which provides valuable nutrients to the soil.

Composting shall mean the controlled biological decomposition of organic solid waste.

Container shall mean a specially-designed wheeled container designed for use in the city's collection system. Containers for garbage are provided in three (3) sizes: small, standard (medium) and large. Containers for recycling and organics are available in two (2) sizes: small and large.

Contaminants shall mean materials placed in recycling or organics containers other than those listed as acceptable in the respective program.

Contaminated pile shall include any pile of brush or bulky items containing material not provided for (or specifically prohibited) in its respective definition. It includes piles in which the contaminating materials are commingled with, or placed on top of, the pile, or if such items are placed so close to the pile or in such large amounts that the items cannot reasonably be removed from the pile.

Corporation shall include nonprofit corporations, professional associations created pursuant to statute, and joint stock companies.

CPS shall mean CPS Energy or its successor and predecessor. CPS Energy is the billing agent for city solid waste fees. CPS Energy electric meter accounts shall serve as a basis for residential service eligibility.

Dead animal collection service shall mean the collection of dead animals, not including livestock, listed species, or rodents.

Dead animal collector shall be a collection employee who is operating a dead animal collection truck and whose chief duty it is to make dead animal collections in places other than the point of collection.

Deface shall mean and apply to writing, carving or scratching on the varnish or paint or plaster of any public refuse or recycling containers, or staining such containers with paint, or any other article which will produce a discoloration of the painting or plaster on them.

Demolition material shall mean sheetrock, plaster, lumber, insulation, roofing materials, and other materials generated from remodeling or demolition.

Department shall mean the solid waste management department or its successor.

Detachable containers shall mean waste containers such as dumpsters and roll-off containers as often used by commercial waste collectors.

Director shall mean the director of the solid waste management department or his successor or predecessor. The director may designate fully authorized representatives to act on his behalf.

Disposal shall mean the discharge, deposit, dumping, spilling, leaking, or placing of any solid or liquid waste (whether containerized or non-containerized) into or on any land.

Downsize shall mean a customer request for a smaller size container. Customers may downsize at no charge.

Drop-off event shall mean an event sponsored by the city allowing eligible users to drop-off residential MSW materials for disposal or recycling.

Earth and construction materials shall mean earth, rocks, concrete and similar materials and

waste materials resulting from construction or remodeling by a building contractor or materials from an unimproved lot.

EPA shall mean the U.S. Environmental Protection Agency.

Food scraps shall mean food substances that remain from meal preparation and cooking as well as leftovers and spoiled food from the refrigerator. Food scraps include all fruits and vegetables, breads, cereal, dairy products (solids only, no liquids), table scraps, coffee grounds and filters, and tea bags. Food scraps do not include entire carcasses from hunting or meal preparation.

Food-soiled paper shall mean paper or cardboard products that have become soiled by food residue. Food-soiled paper includes used paper towels and napkins, used paper cups and plates, paper take-out containers and cups, greasy pizza boxes, and coffee filters.

Garbage. See "Refuse."

Hazardous waste shall mean any liquid or solid waste identified or listed as a hazardous waste by the administrator of the U.S. Environmental Protection Agency (EPA) pursuant to the federal Solid Waste Disposal Act, as amended by the Resource Conservation and Recovery Act of 1976.

Hospital related waste (see special waste) shall mean waste that is generated by a medical facility such as a hospital, medical office, dentist's office, medical laboratory, veterinarian's office, medical clinic, medical weight-loss clinic, mortuary, or other similar facility where needles, syringes, scalpels, or other sharp tools are commonly used and where human blood, fluids, or tissues have been in contact with the waste or are a portion of the waste. Such wastes may or may not be infectious waste.

Household hazardous wastes shall mean any MSW in quantities and packaging intended for use by households that is toxic, corrosive, flammable and/or considered dangerous and shall include but not be limited to bleaches, herbicides, pesticides, drain cleaners, paint thinners and solvents.

Industrial solid waste shall mean waste determined to be of industrial origin and classified by the Texas Commission on Environmental Quality as Class I, Class II, or Class III.

Infectious waste (see special waste) shall mean waste containing pathogens or biologically active material, which because of its type, concentration, and quantity, is capable of transmitting disease to persons exposed to the waste. This waste must be handled and processed according to TDSHS regulations before disposal.

Injure shall mean and include any and all character of physical damage, whether caused by fire or force, and which shall be done or caused willfully by any person.

Land clearing shall mean removal of organic matter or appurtances from vacant, improved, or unimproved lots or tracts of land.

Lot shall have its ordinary meaning but shall also include, in addition to the land within its boundaries, all land adjacent to and extending beyond the property line to the curb line of adjacent streets, and where no curb exists, to the existing street surface. The word lot shall also include all land lying between the property line of any lot and the center of adjacent alleys.

Manual collection system shall mean the collection and transportation of garbage or recycling by means of a system that requires a person to manually lift and load the material into the collection vehicle.

Mechanized collection system shall mean the collection of brush and bulky materials using trucks equipped with a boom to collect brush and bulky waste and trucks equipped with a mechanical arm to grasp, lift and empty garbage, recycling and organics containers. Mechanized collection trucks only require a one-person crew. Mechanized collection is the standard methodology used.

Mulch shall mean the organic product resulting from chipping of wood and woody materials.

Multi-family residential property means three (3) or more dwellings, typically rented and not owner-occupied where multiple families live. Certain aspects may be shared, including parking, outdoor space and mail delivery points.

Multi-family residential property may include apartments, condominiums, and townhouses. If solid waste collection services are also shared for these properties, container service from the city is not feasible for such developments and is only provided to limited multi-family residential properties meeting the conditions at section 14-43(b)(1) of this chapter.

Municipal solid waste (MSW) shall mean solid waste resulting from or incidental to municipal, community, commercial, institutional, and recreational activities, including garbage, rubbish, ashes, street cleanings, dead animals, and all other solid waste other than industrial or hazardous solid waste.

Non-compostable materials shall mean materials not capable of undergoing biological decomposition through composting and materials that do decompose under biological conditions, but leave behind residues such as metals or toxins. Non-compostable materials include but are not limited to aluminum foil, appliance, ceramics, clothing, cooking grease or oil, construction and demolition materials, disposable mop sheets, glass, household hazardous waste, liquids, rocks, scrap metal, and Styrofoam®.

Non-traditional residential property refers to single-family dwellings, typically owner-occupied property located within a medium to high density development typically comprised of small lots where access to a public street is limited. Typically the ownership of the land below the dwelling and the dwelling itself is the same. These properties are also referred to as an infill development zone. Non-traditional residential property also includes multifamily dwellings with four (4) or fewer units such as a duplex, triplex or quadplex. Non-traditional residential properties with four (4) or fewer dwellings that abut a city street and have enough space at the street for the city's mechanized collection service are provided city collection services. Non-traditional residential properties with five (5) or more units may be eligible for city services by exception if the city determines that site design meets the requirements for mechanized collection service.

Organic material recycling shall mean the collection, separation, recovery, and sale or reuse of organic materials from other recyclables and refuse for curbside collection in the green container that would otherwise be disposed or processed as municipal waste.

Organics shall mean materials used as feedstock for manufacturing compost, such as leaves, grass, shrubs and tree trimmings, certain food scraps and food-soiled paper.

Other organic material shall mean other organic materials accepted in the green container such as shredded paper, sawdust, dryer lint, cotton balls, toothpicks, and wooden Popsicle sticks.

Owner as used herein shall include, but not limited to, any equitable owner, any person having a possessory right to the land or building or the person occupying it, any part owner, joint owner, tenant in common, tenant in partnership, joint tenant or tenant by the entirety.

Parcel shall mean any tract of land that has not been subdivided into lots, but shall also include, in addition to the land within its boundaries, all land adjacent to and extending beyond the property line to the curb line of adjacent streets, and, where no curb exists, to the surface of an adjacent public street or road. The word parcel shall also include all land lying between the property line and the center of any adjacent alley.

Pay as you throw shall mean a system wherein fees are assessed in proportion with the amount of waste generated at each residence. Fees are based on the size of the garbage (brown) container selected by the customer and provided to each customer (ratepayer) by the city.

Person shall mean an individual, corporation (including a government corporation) organization, governmental subdivision or agency, federal agency, state, political subdivision of a state, interstate agency or body, business or business trust, partnership, association, firm, company, joint stock company, commission, or any other legal entity.

Point of collection shall be a convenient location at or in the public right-of-way accessible to collection trucks or equipment from a passable

roadway adjacent to each residence. The point of collection for brush and bulky waste is at the curb or edge of pavement.

Private street shall mean a non-publicly owned street, road, or driveway. City-provided services may be conditionally provided on private streets.

Prohibited waste shall mean any waste prohibited from landfill disposal by the EPA, the city, TCEQ, or landfill-operating permit. Prohibited wastes also include wastes that may be injurious to collectors or may cause damage to collection vehicles.

Public street shall mean a publicly owned street, roadway, or alley from which solid waste services are provided.

Public right-of-way shall mean a municipally owned street, roadway, or alley dedicated for public use.

Public trash container shall mean and include all approved waste containers or containers designed for public use and placed on the streets and sidewalks by the city or by anyone else under the direction of the city.

Putrescible waste shall mean solid wastes which are capable of being decomposed by microorganisms with sufficient rapidity as to cause nuisances from odors or gases and capable of providing food for, or attracting, birds and disease vectors.

Recyclable materials shall mean those solid wastes that are separated for recycling or reuse such as newspaper, mixed office paper, corrugated cardboard, kraft paper, container glass, aluminum and tin cans, magazines, steel aerosol cans, and plastic bottles and containers.

Recycling shall mean the collection, separation, recovery, and sale or reuse of metals, glass, paper, plastics, and other materials that would otherwise be disposed or processed as municipal waste.

Recycling drop-off center shall mean an area where an individual may deposit recyclable materials and where recyclables may be sorted.

Refuse shall mean garbage and/or municipal solid waste generated at a residence or business. Refuse does not include recycling commodities intended to be placed in recycling containers, industrial waste, hazardous waste or any other prohibited waste.

Residential customer shall mean a person living in a residential dwelling with four (4) units or less that produces residential waste that the city collects.

Rubbish shall mean non-putrescible solid waste, excluding ashes, consisting of both combustible and noncombustible waste materials; combustible rubbish includes paper, rags, cartons, wood, excelsior, furniture, rubber, plastics, yard trimmings, leaves, and similar materials, unless placed on property pursuant to and in compliance with other ordinances or regulations of the city; noncombustible rubbish includes glass, crockery, tin cans, aluminum cans, metal furniture, and like materials which will not burn.

Scavenging shall mean an unauthorized partial or total removal of contents of trash or recycling containers or any other item set out by a resident with the intent of collection by the city.

Solid wastes shall mean any refuse, rubbish, earth or construction materials, white goods, recyclable materials, sludge from a waste water treatment plant, water supply treatment plant or air pollution control facility, organic material, and other discarded material, including solid, liquid, semisolid, or contained gaseous material resulting from municipal, commercial, and agricultural operations, and from community and institutional activities (changes in state and federal regulations may change these definitions) but does not include:

(1) Solid or dissolved material in domestic sewage or solid or dissolved materials in irrigation return flows or industrial discharges subject to regulation.

(2) Soil, dirt, rock, sand, and other natural or manmade inert solid materials used to fill land if the object of the fill is to make the land suitable for the construction of surface improvements.

(3) Waste materials that result from activities associated with the exploration,

development, or production of oil or gas and are subject to control by the Railroad Commission of Texas.

(4) Special wastes as defined by this chapter.

(5) Hazardous wastes.

Special waste shall mean any liquid, semi-liquid, solid waste or combination of solid wastes that because of its quantity, concentration, physical or chemical characteristics or biological properties, require special handling and disposal to protect the human health or the environment. Special wastes include, but are not limited to:

(1) Household hazardous waste.

(2) Infectious and hospital related wastes.

(3) Municipal water and wastewater treatment plant sludges.

(4) Grease and grit trap wastes.

(5) Slaughterhouse wastes.

(6) Dead animals.

(7) Drugs, contaminated foods, or drink products, other than those contained in normal household waste.

(8) Pesticide (insecticide, herbicide, fungicide, or rodenticide) containers.

(9) Asbestos or materials containing asbestos.

(10) Contaminated soil.

(11) Tires.

Special wastes may need pretreatment before they are disposed of.

Storm damage shall primarily refer to organic materials generated as a result of forces of nature. In circumstances determined by the city, storm damage may also include building materials, roofing, furniture, and other bulky residential items.

Tarp shall mean a solid or semi-solid cover placed and secured over open-topped vehicles and/or trailers to secure the contents and to prevent their dispersal from the vehicle or trailer.

TCEQ shall mean Texas Commission on Environmental Quality and its successor and predecessor agencies.

TDSHS shall mean Texas Department of State Health Services and its successor and predecessor agencies.

Transfer station shall mean a fixed facility used for transferring solid waste from collection vehicles to long haul vehicles.

TxDOT shall mean the Texas Department of Transportation and its successor and predecessor agencies.

Upsize shall mean exchanging the container currently in possession of a customer for a larger size container. The upsize request must be made by the customer. A one-time upsize fee associated with the pay as you throw system will be assessed beginning with the second request to upsize the garbage cart. The monthly fees corresponding with the size of the garbage container will be assessed.

Vacuum truck shall refer to any vehicles which transport liquid and semisolid wastes to a solid waste disposal or processing site.

Valet collection shall refer to the process by which a person, firm, corporation, partnership or other entity collects recyclable material from tenants at a multi-family property and takes the recycling to a centralized location on the same multi-family property.

Vehicle shall mean any device used to transport solid wastes and include, but are not limited to cars, pickups, vans, dumps trucks, trailers, roll-off containers, tractor trailers, rear and side loading packer trucks.

Weeds shall mean all uncultivated vegetable growth or plant matter that has grown to more than twelve (12) inches in height, other than trees.

White goods shall include household appliances.

Yard trimmings shall mean grass, weeds, leaves, tree trimmings, plants, shrubbery prunings, and such other similar materials which are generated in the maintenance of yards, gardens, or commercial landscaping in the city and which

are separated from other solid waste materials and placed in a designated container for collection.
(Ord. No. 2010-11-04-0955, § 1(Att. I), 11-4-10; Ord. No. 2013-01-31-0079, § 1, 1-31-13; Ord. No. 2015-09-10-0760, § 1, 9-10-15; Ord. No. 2018-09-13-0713, § 1(Att. G.2), 9-13-18; Ord. No. 2020-01-30-0057, § 1, 1-30-20)

Secs. 14-2—14-9. Reserved.

ARTICLE II. RESIDENTIAL SERVICES PROVIDED FOR BY THE CITY*

Sec. 14-10. Procedures for garbage, recycling, and organics collection service.

(a) *Containers.*

(1) *Types to use.* It shall be the duty of the owner, manager, tenant, or occupant of any dwelling, building, or premises to place household refuse, recycling, and organics in authorized containers for collection by city trucks in the manner prescribed below. Residents serviced by the city's collection system shall be provided reusable, wheeled containers. Use of these containers is mandatory. Only city-provided containers will be serviced. Ownership of these containers belongs to the city. All materials placed out for collection must be within the container. No materials set outside or alongside the container will be collected.

(2) *Weight limitations.* It shall be the duty of the owner, tenant or occupant of any dwelling, building or premises to ensure that the total weight of any container

*__Editor's note—__Ord. No. 2015-09-10-0760, § 1, adopted September 10, 2015, amended article II in its entirety to read as herein set out. Formerly, article II pertained to similar subject matter, and derived from Ord. No. 2010-11-04-0955, § 1(Att. I), adopted November 4, 2010, and Ord. No. 2013-01-31-0079, § 1, adopted January 21, 2013.

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and contents does not exceed the maximum weight limitation imprinted on the container.

(3) *Number and size of containers.* It shall be the duty of the owner, manager, tenant, or occupant of any dwelling, building, or premises to provide for a sufficient number of containers of adequate capacity to contain the solid waste, recyclables, or organic materials generated at such dwelling, building, or premises from one pickup time to the next pickup time.

a. *City-provided collection.* CPS energy electric meter accounts shall be the basis for provision of city-provided containers. Each such residential account shall be provided one container for each service type.

b. *Convenience.* Containers (small size) may be substituted for low-volume generators or locations with storage space constraints.

c. *Additional containers.* Large volume generators and locations wherein the electric meter account does not accurately reflect the residences (e.g., master meters) may be provided additional containers. Current garbage containers must be of large size before additional containers may be added. An additional monthly fee will be assessed for each additional garbage container in accordance with the garbage container size.

d. Residents may select a small, standard (medium) or large container for garbage. Monthly fees will be assessed in accordance with the garbage container size.

1. *Container default size.* If a residential customer lives at an address that has been previously serviced by the department, the customer's address will default to the previous occupant's garbage container size. Residents are required to contact the department to request a different container size, if desired. New customers not previously serviced by the department that do not provide notification of their desired level of service will default to the standard (medium) sized garbage container.

2. *Changing container size.* Residents may switch from a smaller to larger size garbage container. The customer is not assessed a fee for the first request to switch from a smaller to a larger garbage container but will be assessed a fee for every subsequent request for a larger garbage container. Residents may switch from a larger size to a smaller size at any time without incurring additional fees. Any exemption must be approved by the director or his designee.

3. *Convenience.* Containers (small size) may be substituted for low-volume generators of recycling or organics or locations with storage space constraints.

4. *Additional containers.* The procedure outlined at subsection (3)c. above applies.

5. *New move-ins.* When a new residential customer occupies an existing home, the existing size garbage container and applicable fees apply to the new residential customer until such residential customer requests a change of container size.

e. *Multiple units.* Owners of multiple units on a master meter must select one size and the same size of container for garbage, recycling and

organics collection for their property. Any exemption must be approved by the director or his designee.

(4) *Placement and removal of containers.* It shall be the duty of the owner, manager, tenant, or occupant of any dwelling, building, or premises, or the proprietor or manager of any place of business, either in person or by his agent, or employee to place, or cause to be placed, such containers at a place accessible to the collection truck, as may be designated by the director or his designee. Containers shall not block sidewalks or be placed within three (3) feet of a mailbox, parked car, or other fixed object and shall be clear of low hanging limbs and utility lines. Containers shall not be placed within three (3) feet of other collection containers. All containers must be placed and removed from the curbside in compliance with those specifications listed in subsections (c) and (d).

a. The standard location for container placement on public streets shall be at the base of the curb (where curbs exist) with wheels against the curb.

b. Where placement at the standard location is not possible or feasible, alternate locations shall be used:

1. Streets without curbs shall be at the edge of pavement.
2. High traffic streets shall be in the parkway at the top of the curb.
3. Driveway apron may also be used in certain restricted locations.
4. Alleys shall be on a pad specifically constructed for containers or where no pad exits, on a level surface.

c. Customers receiving collection at the street are required to maintain improvements, trees, and other vegetation in such a way as to:

1. Provide a minimum overhead clearance of fourteen (14) feet high.
2. Not extend out in to the roadway in a manner that impedes upon the safe and efficient collection of solid waste.

(5) *Sanitation and maintenance of containers.*

a. It shall be the duty of the owner, manager, tenant, or occupant of any dwelling, building, or premises to keep all reusable containers and the location in which they are placed in a clean condition and free of fly and other insect breeding.

b. When re-usable or disposable containers are placed at a common pickup location in multifamily living units, it shall be the responsibility of the owner or manager to maintain the containers and area in a sanitary condition.

c. It shall be the duty of the city to repair or replace damaged city-owned containers. Where it is determined that the resident is at fault for damage or abuse, resident may be subject to the fees in subsection 14-30(a).

(b) *Time for collection.*

(1) It shall be the duty of the owner, manager, tenant or occupant of any dwelling, building or premises to place all containers at the designated point of collection no earlier than 6:00 p.m. of the day preceding scheduled collection. Containers not set out in non-CBD areas by 7:00 a.m. on the day of collection or not at the point of collection when the collection crew passes may not be serviced until the next regularly scheduled collection.

(2) It shall be the duty of the owner, manager, tenant, or occupant of any dwelling, building or premises to remove all containers from the collection point by 10:00 p.m. on the same day as the collection except where such containers may be stored in alleys designated for collection. Contain-

ers not removed shall be declared a public nuisance and may be removed by the city.

(c) *Collection in alleys.*

(1) Alley collection containers shall be limited to residents receiving alley collection service on and before October 1, 2010. Alleys constructed after October 1, 2010 may be serviced if the following conditions are met:

a. At least fifty (50) percent of customers to be serviced in the alley request through petition to receive alley collection service.

b. Alley surface must be asphalt or concrete, smooth, and have a pavement condition index (PCI) of one hundred (100) percent. PCI refers to the physical condition of a roadway; measurement is based on numeric values ranging from zero (0) (poorest condition) to one hundred (100) (new or excellent pavement).

c. Vegetation must be trimmed and clear of alleyway.

d. Alley must not have obstacles or debris stockpiles.

e. Must have clearance of fifteen (15) feet wide and fourteen (14) feet high.

f. Must have clear path through the entire alley.

g. Director or his designee must confirm that such alley satisfies the criteria.

(2) No other collections shall be performed in the alley, including brush collection, bulky collection, or special collections. Placement of any materials in the alley that are not authorized for collection from the alley is a violation of this chapter and may result in fines or penalties.

(3) It shall be the duty of owners, tenants or occupants of the abutting properties to keep the alleyway clear of obstructions including intruding or overhanging brush and tree limbs.

(4) There must be clearance of at least fifteen (15) feet wide by fourteen (14) feet high and be free of debris for refuse/recycling collection vehicles to pass through the alley. This shall be the responsibility of owners, tenants, or occupants.

(5) Temporarily closed. Alleys may be temporarily closed for construction activity (surface repair, utility repairs, or improvements), debris stockpiles, or overgrown vegetation preventing collection.

a. In the event when an alley is impassible due to debris stockpiles or overgrown vegetation, customers of the abutting property will be notified by the city to take action in maintaining vegetation.

b. Failure to comply with the department's request for customer action may result in the alley being temporarily closed for collection of refuse and recycling containers. Residents shall be notified that the alley is temporarily closed and that refuse and recycling containers shall be placed at the street side for collection until further notice by the department. Once the temporarily closure is lifted, the department shall notify customers to resume placing refuse and recycling containers in the alley for collection.

c. Alleys that are temporarily closed for greater than one (1) year due to customer non-compliance may be permanently closed.

(6) Permanently closed. Alleys with refuse, organics or recycling collection may be permanently closed if one (1) or more of the conditions are met:

a. Unsafe road conditions, obstacles, or any condition that is unsafe for city collection crews.

b. Illegal dumping that blocks access or a path for collection crews.

c. Formal petition by owners or residents, or whomever pays for the service, in which fifty (50) percent of the persons abutting the alley in any given block request that collection service be discontinued.

d. Alleys that are temporarily closed for greater than one (1) year due to customer non-compliance.

(7) Reopening a permanently closed alley. An alley may be re-opened for refuse and recycling collection if the following conditions are met:

a. At least fifty (50) percent of customers serviced in the alley request through petition to have the alley reopened.

b. Alley surface must be asphalt or concrete, smooth, and have a pavement condition index of at least eighty-five (85) percent.

c. Vegetation must be trimmed and clear of alleyway.

d. Alley must not have obstacles or debris stockpiles.

e. Minimum clearance of fifteen (15) feet wide and fourteen (14) feet high.

f. Must have clear path through the entire alley.

g. Director or his designee must approve alley collection service.

(Ord. No. 2015-09-10-0760, § 1, 9-10-15; Ord. No. 2018-09-13-0713, § 1(Att. G.2), 9-13-18)

Sec. 14-11. Residential refuse collection.

(a) *Acceptable materials.*

(1) Household refuse shall be placed in containers designated by the city.

(2) The designated color for refuse containers is brown.

(3) To maintain container sanitary and to prevent windblown litter, all material placed in refuse containers shall be contained in sealed bags.

(b) *Reserved.*

(Ord. No. 2015-09-10-0760, § 1, 9-10-15)

Sec. 14-12. Residential recycling collection.

(a) *Acceptable materials.*

(1) Residents are provided a blue recycling container in which to place specified items defined as recyclable materials. Residents participating in the recycling program receive once-per-week collection of recyclable materials. Specific collection days are designated by the director each week.

(2) Acceptable recyclable materials shall be designated by the city, and include:

a. Newspaper.

b. Mixed office paper.

c. Magazines.

d. Corrugated cardboard.

e. Kraft paper.

f. Aluminum and tin cans.

g. Steel aerosol cans.

h. Plastic bottles, tops and containers.

i. Single-use plastic bags bundled (soccer ball-size bundle).

(3) Recyclable jars, bottles and other food containers should be rinsed and free of contaminants.

(4) Recyclables shall be placed in the container loosely and not bagged.

(5) At the discretion of the director or his designee, department staff may inspect recycling containers. A recycling container shall not be collected if one (1) or more of the following conditions occur:

a. Contamination of the recycling container by depositing non-recyclable

solid waste, in the recycling container, including but not limited to the following:

1. Refuse.
2. Appliances.
3. Clothes.
4. Dead animals.
5. Garden hoses.
6. Toys.
7. Diapers.
8. Grass clippings.
9. Bagged leaves.
10. Household hazardous waste.

b. Reserved.

(6) If a recycling container is not serviced due to the conditions detailed in subsection (b) the department shall notify the resident to which the recycling container is assigned in writing when and for what reason the recycling container was not serviced. Customers receiving notification of no service shall have the option of removing the contaminated material from the cart and placing the cart out for collection on the next recycling collection day. Repeated violations may result in a non-compliance contamination fee to process the contaminated cart and be subject to the measures outlined at subsection (b) below.

(b) *Non-participation in city recycling program / compliance attainment.* Residents not participating in the city recycling program will receive once-per-week collection of refuse. Non-participants include the following:

(1) Residents electing not to participate in the city recycling program; these units do not receive a recycling container.

(2) Residents that have been removed from the city recycling program. Reasons for removal from the program include, but are not limited to repeated occurrences of contamination of the recycling container as described in subsection (a)(5). Residents removed from the city recycling program shall be notified in writing by the department when the recycling container is removed. Such residents may be issued an additional brown cart and will be assessed additional monthly fees for a minimum of six (6) months.

(c) *Containers.* Residential recycling containers shall be used, distributed, maintained, and collected following the requirements established in subsection 14-10(a).

(d) *Time for collection.* Residential recycling containers shall be placed at and removed from the designated points of collection following the requirements established in subsection 14-10(b).

(e) *Collection in alleys.* Residential recycling collection service shall be consistent with the requirements established in subsection 14-10(c).

(f) *Additional recycling containers.* Materials placed in recycling containers must only be the recyclable items as described above. Residents requesting additional recycling containers must demonstrate that they use existing containers properly before additional containers will be provided.

(Ord. No. 2015-09-10-0760, § 1, 9-10-15; Ord. No. 2018-03-29-0204, § 1, 3-29-18)

Sec. 14-13. Residential brush collection.

(a) *Time for brush collection.* Brush collection will take place two (2) times annually by regularly scheduled and approximately evenly spaced cycles as determined by the city. Requests for brush collection service other than during the regularly scheduled cycles shall be considered "out of cycle brush and bulky item collection" services as established in section 14-14.

(b) *Brush collection schedule.* Residential customers receiving refuse, organics and recycling services from the city will be notified of the brush collection schedule. It shall be the duty of any person to place items for collection only after city notification. It shall be unlawful to place any such items at or near curbside at any time that is outside the time frame noted in the collection schedule.

(Ord. No. 2015-09-10-0760, § 1, 9-10-15)

Sec. 14-14. Residential bulky waste collection.

(a) *Time for bulky item waste collection.* Bulky waste collection will take place twice annually by regularly scheduled and approximately evenly spaced cycles as determined by the city. Requests for bulky item waste collection service other than during the regularly scheduled cycles shall be considered "out of cycle brush and bulky item collection" services as established in section 14-14.

(b) *Bulky item waste collection schedule.* Residential customers receiving collection services from the city shall be notified of the bulky item waste collection schedule. It shall be the duty of any person to place items for collection only after city notification. It shall be unlawful to place any such items at or near curbside at any time that is outside the time frame noted in the collection schedule.

(c) *Volume limit for bulky item waste collection.* Bulky item waste collection shall not exceed eight (8) cubic yards. If material exceeds the eight (8) cubic yard maximum volume limit, material will not be collected.
(Ord. No. 2015-09-10-0760, § 1, 9-10-15)

Sec. 14-15. Out of cycle brush and bulky item waste collection.

(a) Out of cycle brush and/or bulky item collection. A person may arrange for brush and/or bulky item collection at any time. These special collections occur out of the scheduled brush and bulky item collection cycles and will be collected at the person's cost. The person may either arrange for collection through a private commercial hauler or request an out-of-cycle service collection according to the schedule of fees set out in section 14-30.

(b) It shall be the duty of the person making the request to ensure that items are placed on or near curbs in accordance with subsections 14-14(a) and (b). Failure to comply shall be deemed a public nuisance.
(Ord. No. 2015-09-10-0760, § 1, 9-10-15)

Sec. 14-16. Brush or bulky item waste set-out and collection.

(a) *[Duties.]* It shall be the duty of the owner, manager, tenant or occupant of any dwelling, building, or premises to:

(1) Place only acceptable, non-commingled, non-contaminated, brush or bulky item waste out for collection at the curb.

(2) Place acceptable, non-commingled, non-contaminated brush or bulky items in a safe and accessible location. Placement shall meet all of the following criteria:

a. Near the curb.

b. Clear of overhead obstructions.

c. Clear of utility appurtenances.

d. Clear of fences.

e. Clear of other personal property such as improvements, trees and other vegetation.

f. Only upon notification by the city.

(3) Remove the door or lids of all refrigerators, freezers, and similar airtight appliances for safety. Doors or lids shall be placed alongside said appliances.

(b) *No collection in alleys.* It shall be unlawful for any person to place brush and/or bulky items in alleys for collection.

(c) *Origin of waste.* It shall be unlawful for any person to place brush and/or bulky items that did not originate at the residence from which it is being collected curbside for collection. Furthermore, all materials placed out for collection, and any additional wastes which might accumulate on or contiguous with said piles, are considered the responsibility of the owner, manager, tenant or occupant of any dwelling, building, or premises in front of which the materials are placed.

(d) *Non-compliant piles.* It shall be considered a violation of this section if a pile meets any of the following:

(1) Contaminated (as defined in section 14-1 "definitions").

(2) Placed curbside in advance of one (1) week prior to the scheduled collection week.

(3) Left curbside more than one (1) week after the scheduled collection.

(e) *Penalties for violation.* A person found in violation of this section is subject to one (1) or more of the following:

(1) A fee according to the schedule of fees set out in subsection 14-45(a).

(2) A citation and associated penalties.

The property owner shall be primarily responsible to the city for reimbursement of any and all remediation expenses incurred by the city as a result of damage to personal or real property that may occur during any brush or bulky waste collection action (whether regularly, specially scheduled, or ordered for purposes of protecting the public health, safety, or welfare) caused by waste materials obscuring the property or impeding the city's ability to address the waste matter. Damages to property may include damage to meters, sprinkler systems, plumbing appurtenances, fencing, mailboxes, automobiles, or any other item of personal or real property. Costs may be undertaken at the discretion of the city to repair damaged property. The city should maintain the authority to determine if damaged property must be immediately repaired or replaced in order to preserve public health or safety. Tenants and other persons shall be secondarily responsible for reimbursement to the city. The same priority for reimbursement responsibility shall apply to direct fees and payment of administrative costs for extraordinary solid waste services.
(Ord. No. 2015-09-10-0760, § 1, 9-10-15)

Sec. 14-17. Residential organics material collection.

(a) *Acceptable materials.* Residents are provided a green container in which to place specific items defined as organic materials. Acceptable green container materials shall be designated by the city and include the following:

(1) Leaves;

(2) Tree trimmings (no longer than height of cart);

(3) Yard trimmings;

(4) Brush;

(5) Food scraps;

(6) Food-soiled paper and cardboard;

(7) Other organic materials may be added to the program at the discretion of the director or his designee.

(b) *Not accepted green container items.*

(1) At the discretion of the director or his designee, department staff may inspect organics recycling containers. An organics material container shall not be collected if one or more of the following conditions occur:

a. Contamination of the organics recycling container by depositing non-recyclable solid waste, including but not limited to:

1. Plastic bags or plastic containers of any kind including those labeled "compostable" or "biodegradable";

2. Diapers;

3. Dead animals;

4. Pet waste;

5. Cigarette butts or ashes;

6. Non-compostable materials;

7. Household hazardous waste.

b. Reserved.

(2) If an organics container is not serviced due to the conditions detailed in subsection (b) the department shall notify the resident to which the container is assigned in writing when and for what reason the organics container was not serviced. Residents receiving notification of no service shall have the option of removing the contaminating material from the container and placing the container out for collection on the next organics collec-

tion day. Repeated violations may result in a non-compliance contamination fee to process the contaminated cart.

(c) *Removal from organics collection.* A resident that repeatedly places unacceptable items in the organics cart may be removed from the program by the city.

(d) *Proper placement of organic materials in the green container.* Brush materials shall be placed loose in the green container or in a Kraft paper bag. Brush material must be cut into smaller pieces and not stuffed into the container. Food scraps can be wrapped in newspaper or can be placed in a paper bag. Organic materials cannot be contained in plastic bags or plastic containers of any kind including those labeled "compostable" or "biodegradable."

(e) *Containers.* Residential organic material containers shall be used, distributed, maintained, and collected following the requirements established in subsection 14-10(a).

(f) *Time for organic material collection.* Residents participating in the organics program receive once-per-week collection of organics. Specific weekly collection days are designated by the director.

(g) *[Placement and removal.]* Residential organics containers shall be placed at and removed from the designated points of collection following the requirements established in subsection 14-10(b).

(h) *Non-participation in the organic material collection program.* Residents not participating in the organic material collection program will receive once-per-week collection of refuse and are subject to the procedures outlined in section 14-10. Non-participants include the following:

(1) Residents electing not to participate in the city's organic material collection program. Such residents shall surrender their issued organics container, if any, and the city will remove it.

(2) Residents that have been removed from the city's organic material program.

Reasons for removal from the program include but are not limited to repeated occurrences of contamination of the organic material container as described in subsection (b). Residents that have been removed from the city's organics materials collection program will be notified in writing by the department when the organics container is removed.

(i) *Collection in alleys.* Residential organics collection services shall be consistent with the requirements established in subsection 14-10(c).

(j) *Additional organics containers.* Materials placed in organics containers must only be the items as described above. Residents requesting additional organics containers must demonstrate that they use existing containers properly before additional containers will be provided.
(Ord. No. 2015-09-10-0760, § 1, 9-10-15; Ord. No. 2018-03-29-0204, § 1, 3-29-18)

Sec. 14-18. Drop-off and recycling sites.

(a) *Compliance with onsite signs and site operating regulations.* It shall be the duty of any person using city solid waste drop-off, recycling, and/or processing site to follow all traffic, safety, and directional signs, site operating rules and verbal directions, or directions posted or given within any city solid waste drop-off and/or processing facility at all times. Only materials authorized for acceptance at the site are allowed. Failure to comply will constitute a violation of this chapter and may result in denial of access to these facilities.

(b) *Covered loads (tarps).* All loads of materials entering a city drop-off, recycling or processing site must be secured and covered either by the containment of the vehicle or, if an open topped vehicle, by a covering (tarp). Loaded vehicles exiting city sites must also be covered or contained. Texas state law regarding covered loads must be followed at all times by vehicles using city disposal or processing sites. It shall be the duty of the driver of the vehicle to comply with this section.

(c) *Assumption of risk.* Any person entering upon a city-operated solid waste drop-off, recycling or processing site for any purpose shall be

conclusively presumed to know and appreciate the hazards and the extent of the risk which accompanies the accumulation of scrap wood,

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glass, nails, and solid wastes of every description and the use of trucks, vehicles and heavy machinery used to move, remove, bury and dispose of solid waste. Every person entering upon any such site shall be conclusively presumed to have assumed the risk of injury or damage connected with or resulting from such hazards and danger by his or her action in entering upon such site, and for and in consideration of the permission granted by the city to enter upon such site. Upon entering a city operated solid waste disposal, recycling or processing site, every person shall be deemed to have covenanted not to sue and to indemnify, save harmless and defend the city, its agents, officers, and employees, from and against any and all claims of any nature whatsoever for injury or damage to person or property, whether real or asserted, arising out of or resulting from the entry by such person.

(d) *Identification and proof of residence.* All individuals requesting to use a city drop-off, recycling or processing site may be required to provide identification and proof of city residence. Acceptable proof includes a current CPS Energy statement reflecting assessment of solid waste or environmental fees accompanied by a valid driver's license or State of Texas ID card. Those not able to provide such proof are not eligible to use the site, however, at locations where fees are assessed, those not able to prove San Antonio residence may be required to pay the higher "commercial and non-resident" rate as set out in section 14-30.

(e) *Salvaging or scavenging.* Salvaging or scavenging items deposited at a site or from vehicles that are waiting to make deposits at a site is prohibited.

(Ord. No. 2015-09-10-0760, § 1, 9-10-15)

Sec. 14-19. Dead animal collection.

(a) *Dead animal collection general.* The city shall collect dead animals generated at customer's residences and as may be found in the city's public rights-of-way. Dead animals located on freeways are the responsibility of TxDOT.

(1) Prior to loading a dead companion animal, such as a dog or cat, into the truck for transport and disposal, the dead animal collector will visually inspect the animal for an identification tag. If a tag is visible, the collector shall determine if it can be removed in a safe, sanitary, and respectful manner. If the tag contains information that is not legible, does not contain adequate contact information, or cannot be removed in a safe, sanitary and respectful manner, then the tag does not need to be removed and no further action is required.

(2) The department will not retrieve and return a dead animal once it has been collected and placed in a collection vehicle for disposal.

(3) The city and its agents shall not be required to clean any remaining residues from the point of collection.

(b) *Dead animal collection from residences.*

(1) Disposal in refuse containers. Dead animals collected from residences must be bagged and placed in the refuse container for collection with weekly service.

(2) Animals too large to be placed in the refuse container must be bagged and placed at the point of collection.

(c) *Dead animal collection request to the city.*

(1) Residents may request collection by contacting the city's customer call center and providing the location and description of the dead animal.

(2) Dead animals will not be retrieved from underneath buildings or in attics, drainage ditches, or private property except as outlined below. Collection of dead animals other than at the point of collection shall require mutual approval from the director or his designee and the property owner, tenant, or occupant. The city and its agents shall not be held liable for any damages to private property caused by collection activity.

(Ord. No. 2015-09-10-0760, § 1, 9-10-15)

Sec. 14-20. Commercial services.

(a) City-provided business municipal solid waste. Businesses provided services by the city or city-contractors in non-CBD areas, shall be similar to and in conjunction with residential collection. It shall be the duty of the owner, manager, tenant, or occupant of any business establishment or building or the agent or employee of any such person to comply with the minimum standards set out in sections 14-10 and 14-11 as applicable, in this chapter. Fees outlined in subsection 14-30(c) apply to city-provided business solid waste collection services.

(b) Businesses receiving service from the city shall manage, classify and characterize their wastes in accordance with applicable city, state, and federal regulations. Industrial, hazardous and other regulated wastes are prohibited from collection by the city.

(c) City-provided collection services are provided for use by small quantity generators who generate MSW similar, in both content and volume, to that generated at a residence. A maximum of five (5) container sets will be provided at each business receiving this service. Refuse and recycling collection service at such location must be feasible and within existing collection routes.
(Ord. No. 2015-09-10-0760, § 1, 9-10-15)

Sec. 14-21. Bulky waste drop-off sites.

(a) *Acceptable items.* Bulky drop-off sites are available to city of residents to bring acceptable materials. The solid waste management department director or the director's designee shall define acceptable materials. Commercial waste is not accepted at the bulky waste collection centers.

(b) *Compliance with onsite signs and drop-off site operating regulations.* Any person entering upon a city-operated solid waste drop-off site shall comply with the rules established in subsection 14-18(a).

(c) *Covered loads (tarps).* All loads of materials entering a city drop-off site shall comply with the rules established in subsection 14-18(c).

(d) *Non-compliant materials/loads.* Loads containing household hazardous waste, hazardous or special wastes, brush, electronics, liquids, dead animals, dirt, rock, waste generated at a location other than the residence from which it is collected, waste generated from land-clearing, loads delivered in commercial vehicles, or any other waste prohibited by this chapter and as further described in subsection 14-45(i).

(e) *Assumption of risk.* Any person entering upon a city-operated solid waste drop-off site shall comply with the rules established in subsection 14-18(c).

(f) *Identification and proof of residence.* All individuals requesting to use a city drop-off site, recycling or processing site will be required to provide identification and proof of city residence. Acceptable proof includes a current CPS Energy statement reflecting assessment of solid waste or environmental fees accompanied by a valid driver's license or State of Texas ID card.

(g) *Salvaging or scavenging.* Any person entering upon a city-operated solid waste drop-off shall comply with the salvaging and scavenging rules established in subsection 14-18(e).
(Ord. No. 2015-09-10-0760, § 1, 9-10-15)

Secs. 14-22—14-24. Reserved.

Sec. 14-25. Other services.

(a) *Drop-off events (Dial-a-Trailer, free landfill disposal, household hazardous waste).* City-sponsored refuse household hazardous waste or recycling drop-off events may be conducted periodically or in accordance with an annual schedule. Drop-off events may be conducted by the city, its collection contractors or in partnership with a private disposal company or recycling processor. Users of these events shall comply with all sections of this code and any additional requirements set by the director. The city reserves the right to screen for and serve only eligible users and will accept only residential wastes at drop-off events.

(b) *Collection assistance service.* Residential locations wherein no able-bodied person capable of handling containers resides may be eligible for

collection assistance service. On collection day(s) the collector will walk up to a mutually agreed location within the lot, retrieve, empty and return the container to the point from which it was retrieved.

(1) Residents must be eligible, enrolled, and approved for special collection assistance service.

(2) Re-enrollment shall be required annually.

(3) At such time as the situation changes wherein an able-bodied resident becomes available, special collection assistance service terminates and containers must be placed at the point of collection in order to be serviced.

(4) Upon request for this service and mutual agreement with the city on the retrieval location, resident shall provide safe and unimpeded access to the collector on collection day(s). The collector will not open any gates to reach the container. Dogs and other animals must be restrained.

(5) Default container size for customers receiving collection assistance service is small. Exceptions will be reviewed by the department.

(c) *Special services to route customers.* Only residential customers receiving collection services from the city may request the city to perform two (2) free of charge collections for grass clippings, leaves, and weeds. Each residential customer on the system is entitled to two (2) such service calls, per fiscal year, on request. These twice yearly, free service calls limit total combined waste materials, per call, per residential customer, to eight (8) cubic yards that shall not exceed fifty (50) bags and/or boxes predicated upon 0.16 cubic yards per bag/box. Each bag or box must not weigh more than forty (40) pounds and must comply with specifications below. Furthermore, boxes must be made of brown bio-degradable cardboard that contains no deleterious substances. Containers for special services collection of leaves shall be in conformance with the specifications below:

(1) *Paper bags.* Paper bags shall be of two-ply kraft and have a wet strength of forty (40) pounds. When placed for collection they shall be securely tied with wire, twine, or tape. These containers must at all times be able to maintain their structural integrity when lifted.

(2) *Cardboard boxes.* Cardboard boxes may be used as receptacles for collection of leaves provided they are securely closed to prevent blowing, spilling, and scattering of the materials contained therein and provided that boxes used for this purpose are able to maintain their structural integrity when lifted and of a size and type that can be readily handled by one (1) person when placed in the garbage vehicle. Such boxes shall not exceed four (4) feet in greatest dimension or weigh more than a combined weight (container and its contents) of forty (40) pounds.

(d) *Services to privately-owned streets, roads and driveways.*

(1) Locations within the city limits with privately-owned streets or not abutting a public roadway desiring city collection services may be eligible for such services, provided the conditions below are met:

a. The department determines that it has safe and unimpeded access for its collection trucks and equipment and the development layout is compatible with the city's standard collection methodology.

b. Owner, property manager, tenant association representative, or person authorized to represent the owner(s) executes a release of liability indemnity agreement, agrees that such city services shall be exclusive within the agreed area, and provides a list of addresses for each meter unit for assessment of fees by CPS Energy.

(2) Upon satisfactory provision of the items in subsection (1) above, all designated residents are eligible for all services listed in this chapter, must comply with provisions of this chapter, and shall be assessed fees accordingly for the term of the agreement.

(3) In cases impacting public health and safety, where the director determines that the procedure in subsections (1) and (2) above are not feasible, the director may require residents to bring their wastes to the nearest point abutting a public street or roadway.

(e) *Authority to respond to and manage catastrophic damage.*

(1) The director shall have authority to take necessary action and prescribe requirements in response to damage resulting from storms.

(2) The level of action taken will be in consideration of public health and safety, severity of damage, spread of impact, other departmental priorities, and parity of service entitlements. The director may determine that no extraordinary action is necessary and that any storm damage debris should be managed through normal service levels or at the expense of the resident.

(f) *Extra garbage service.* Residents who have excess garbage and require that their garbage container be serviced more than once on their week of collection can request an extra garbage service by calling the city. The additional collection occurs the same week in which their garbage container is serviced but on an alternate collection day. A fee applies for each excess garbage collection service. The service is limited to three (3) times per year and may not be available certain weeks of the year.

(Ord. No. 2015-09-10-0760, § 1, 9-10-15; Ord. No. 2020-01-30-0057, § 1, 1-30-20)

Sec. 14-26. Residential services in areas with limited accessibility.

(a) Non-traditional residential property or subdivisions with five (5) units or more may be eligible for service by exception. Upon request, the department will assess the development design layout. The development design must meet the requirements for the services outlined in sections 14-1 and 14-10 through 14-17 of this chapter and the requirements below:

(1) Provides room for maneuverability of the truck and collection arm/boom.

(2) Provides eight (8) feet of space adjacent to the curb for collection of brush and bulky materials.

(3) Provides space on the public street/private street or driveway for the containers on collection day.

(4) Provides space inside the property for storage of containers between collections.

(5) No structure that could impede automated collection is allowed within five (5) feet of the curb.

(6) Private streets or driveways should be constructed to local type A (conventional street design standards); allow two-way traffic; be through-streets connecting to another street without dead-ends or provide a cul-de-sac or spot to turn around designed in accordance with Section and Figure D103.1 Appendix D *Fire Apparatus Access Roads,* 2018 International Fire Code, adopted at section 11-32 of the San Antonio Municipal Code; parking in the streets/driveways on local type A streets is allowed at all times.

(7) Private streets or driveways that are not constructed to local type A standards may be eligible for city collection if the street/driveway on which collection is occurring meets the fire lane dimension and layout requirements outlined in the 2018 International Fire Code. This includes a minimum twenty-five-foot wide, two-way, fire apparatus road. The fire apparatus road being used for collection should have adequate no parking signage and striping on each side of the street as required by the City of San Antonio Development Services Department however, off-street parking stalls

are allowed outside of the fire lane path. Turnaround and curb radius dimensions on curves and intersections should also meet the requirements of the 2018 International Fire Code or subsequent local amendments as approved by the City of San Antonio Development Services Department. Dead ends without a turnaround meeting the requirements of the International Fire Code are not allowed.

(b) If the non-traditional residential property or subdivision is determined to be feasible and approved, all residences in the development are required to use city-provided service and will be assessed monthly solid waste fees. In cases where private streets or driveways must be utilized for service, the streets/driveways must be maintained by the owners and the developer/homeowners association/property manager must comply with the requirements for private streets outlined in section 14-25(d)(1) and (2).

(c) Non-traditional residential property or subdivisions that do not meet the requirements listed herein are not eligible for city services and shall utilize private service providers. City solid waste fees will not be assessed.
(Ord. No. 2020-01-30-0057, § 1, 1-30-20)

Secs. 14-27—14-29. Reserved.

ARTICLE III. FEES

Sec. 14-30. Fees.

(a) *Residences.* Use of city garbage, brush, and refuse collection and removal and disposal services and payment of fees set out below for such services shall be mandatory except as exempted in subsection (d) below. The monthly fees for household garbage that includes recycling, brush, leaves, and organics collection shall be as follows:

Residential and Other Sites

Type (regular account for curbside garbage, recycling and organics)	*Charge Per Month*
Single- or multi-family residential unit selecting small garbage container	$14.76
Single- or multi-family residential unit selecting standard (medium) garbage container	20.26
Single- or multi-family residential unit selecting large garbage container	30.75
Environmental fee—Solid waste per unit	3.00
Environment fee—Parks per unit	2.00

Description of Service	*Fee*
Vacant lots, or persons, entities and organizations that do not have regular accounts	Out of cycle fees apply (subsection 14-30(e)(5))
Commercial and non-city residents disposal/recycling of brush at a city operated brush recycling site, based on weight of brush rounded upward to the nearest twenty (20) lb. increment, yielding a minimal disposal fee based on twenty (20) lbs	Twenty-five dollars ($25.00) per ton, or four dollars and seventy-five cents ($4.75) per cubic yard if scales are not available; twenty-five dollars ($25.00) minimum charge
Commercial disposal/recycling of wood mulch resulting from mechanically shredded, ground or chipped brush at a city operated brush recycling site, by persons having a valid tree maintenance license issued by the city under section 12-171	No charge; subject to available capacity at the facility as determined by the director, SWMD.
Residential, in city, non-commercial brush at a brush shredding site, based on weight of brush rounded upward to the nearest 20-pound increment, yielding a minimal disposal fee based on twenty (20) pounds	Twenty-three dollars and fifty cents ($23.50) per ton or four dollars and forty-seven cents ($4.47) per cubic yard in quarter cubic yard increments if scales are not available.
Sale to the general public of finely-screened landscaping mulch from a brush shredding site, based on sales rounded upward to the nearest 20-pound increment, yielding a minimum sale of twenty (20) pounds; subject to availability	Three cents ($0.03) per pound in increments of twenty (20) pounds; converted to twelve dollars ($12.00) per cubic yard in quarter cubic yard increments if scales are not available

Description of Service	*Fee*
Coarse ground mulch from a brush shredding facility	No charge; subject to availability as determined by the director
Collection of bagged leaves. Available only to residential customers on collection system, for leaves only	Minimum twenty dollars ($20.00) per service call per residence for each eight (8) cubic yards; each eight (8) cubic yard increment; or part of an increment over eight (8) cubic yards, costs twenty dollars ($20.00) (bags only, no boxed leaves)
Cart damaged or inoperable	Normal wear and tear, no charge to exchange; where resident is determined to be at fault, fifty-five dollars ($55.00) per cart
Cart lost or stolen	First replacement cart, no charge; subsequent replacement carts, fifty-five dollars ($55.00) per cart
Additional refuse container(s)	Fee assessed in accordance with the monthly fee schedule above. Current container(s) must be of maximum size before requesting additional container(s).
Additional organics or recycling cart	No charge
Upsize from smaller to larger volume garbage container	First upsize: No charge Subsequent upsizes: Twenty-five dollars ($25.00) per occurrence
Extra garbage service (brown cart)	Ten dollars ($10.00) per collection; limited to three (3) times per year
Non-compliance contamination fee	Twenty-five dollars ($25.00) per occurrence
Non-compliance diaper contamination fee	Fifty dollars ($50.00) per occurrence
Automatic charge for container(s) at residence	Residents who possess and use containers that are not assigned to their address will be charged the monthly fee corresponding to that size container.

(b) *Environmental services fee.* All properties, residential and nonresidential, shall pay a monthly environmental services fee of three dollars and twenty-four cents ($3.24) per each electrical meter account, billed and collected as provided below in section 14-31. At locations where the electrical meter does not accurately reflect the number of units, an environmental fee shall apply to each residential and nonresidential unit. This fee is intended to defray municipal expense necessary to cleaning up illegally dumped waste, collecting and disposing of dead animals, performing regulatory maintenance on closed landfills, providing environmental services to the city's park system, and equitably sharing costs for neighborhood clean-ups benefiting residents and businesses that do not pay a monthly solid waste processing fee. Exemptions at subsection (d), recited below, do not apply to the environmental services fee.

(c) *Business solid waste fee.* The monthly solid waste fee for businesses receiving refuse and recycling services only (brush, bulky, and bagged leaf collection is not included) from the city, including hotels, motels, small offices, and premises not specifically listed in the residential schedule shall be as follows:

Type (regular business account receiving city services)	*Charge Per Month*
Single unit on one meter and multiple units on master meter, per unit small garbage cart	$14.76
Single unit on one meter and multiple units on master meter, per unit standard (medium) garbage cart	18.76
Single unit on one meter and multiple units on master meter, per unit large garbage cart	26.76

(d) *Exemptions.* Apartment houses and mobile home parks may be exempted from payment of solid waste fees upon furnishing of sufficient evidence assuring acceptable removal of all garbage and refuse by private means. For such exemption to be granted, written application must be submitted to and approved by the director or his designee.

Single-family residences on premises not abutting public roadways, and to which access is possible only across private property, and premises abutting public roadways but on which the dwelling is so remote from such roadway as to make city collection impractical, may be exempted from such collection service and charges.

Non-traditional residential property with single-family residences that are determined to be incompatible with the city's standard collection methodology may be exempted from such collection service and charges.

(1) Exemptions may be granted on certain meter accounts if the number of meters serving a dwelling does not reflect the true nature of the dwelling.

(2) New single-family residences shall be exempted from city garbage collection service and charges while under construction and after completion until initial occupancy of the structure. Initial occupancy shall be interpreted as the sale or lease of the property to a second party for occupancy or the first electric meter account name change, whichever occurs first.

(e) *Disposal, brush facility, commercial haulers, and special service program fees.* Persons disposing of brush for recycling at a city facility or using special city solid waste program services shall pay a fee or fees as set out below unless contractual arrangements specify otherwise.

(1) *Unknown tare weight.* A vehicle for which the tare (unloaded) weight is not on the disposal facility attendant's records will be charged for the full weight of the vehicle plus trailer(s) and load. After dumping the load, the vehicle and trailer(s) will be reweighed to determine the tare weight and the amount to be refunded at that time.

(2) *Residential city customers.* In order for a load, either brush for recycling or household hazardous waste, to be considered residential city, the material must originate from within the city corporate limits and must be generated by a residential, non-commercial entity. Proof of origination must include both of the following:

a. Valid state ID card or driver's license.

b. Current CPS Energy bill reflecting both items listed below.

1. Same name as on the driver's license.

2. Billing for the city environmental fee.

(3) *Penalty for uncovered load (unlawful unsecured loads for both brush and solid waste, all facilities).* All vehicles entering a disposal, recycling, deposit, or waste management facility, whether city or privately owned, shall have sufficient load restraints to prevent loss or spillage of load due to wind or motion of the vehicle on the road. Any vehicle driver who does not comply, will be required to pay an uncovered or inadequately secured load penalty of five dollars ($5.00) per load at the scale house, in addition to any other fees, before being allowed to enter the facility. A person commits an offense if the person delivers an unsecured or uncovered load to any disposal, recycling, or waste management facility within the city's corporate limits. Similarly, vehicles exiting a disposal, recycling, deposit, or waste management facility whether city or privately owned carrying brush or solid waste materials shall have sufficient load restraints to prevent loss or spillage of load. Uncovered load penalty, per load: Five dollars ($5.00).

(4) *Dead animal fee.* A ten dollar ($10.00) dead animal fee applies to all small dead animals (not requiring special handling) and dead animals from commercial businesses originating within city (veterinarian charges, per animal).

(5) *Out-of cycle fees.* All requests for pick-up of bulky waste and/or out of cycle bulky items and/or brush at a residential location will apply as follows:

One item.	$50.00
Up to four (4) cubic yards . .	50.00
Each additional four (4) cubic yards (or any portion thereof)	25.00

(6) *State disposal levy.* All disposal facility customers, including residences, will be assessed their share of the state disposal levy, which will be collected at the same time as any city fees, and in addition to any city fees. Fee as applicable per state statute.

(7) *Reserved.*

(8) *Commercial/industrial haulers.*

Permit Description	*Fee*
Vehicle permit fee (seven thousand (7,000) pounds or more gross vehicular weight), per vehicle, per year	$2,250.00
Vehicle permit fee (six thousand nine hundred ninety-nine (6,999) pounds or less gross vehicular weight), per vehicle, per year	150.00

(f) *Credits/refunds, residential.* No credit/refund shall be made for residential service unless exempted under subsection (d).

(1) *Example 1—Customer has a business and takes their residential refuse to dumpster at their business.* No credit/refund is allowed.

(2) *Example 2—Customer has a commercial establishment in a residential building and has paid residential fee and commercial disposal service charge.* Verification must be made by the director or his designated representative that a business is actually at the stated address and operating as stated. CPS Energy should verify that customer has been billed and rendered payment during disputed period and provide verification in writing that they were under contract to provide service. An alternative would be for customer to provide cancelled checks payable to commercial disposal service covering period of dispute.

Once the necessary verification has been made, a credit/refund can be granted retroactive to one (1) year (twelve (12) months) or to date this activity started, whichever occurs first. An additional two (2) years (twenty-four (24) months) credit/refund can be granted if the customer submits the request in written form. In the event of a refund, a memo providing results of the field investigation, other information verified, and recommendation to refund should be attached to a request for payment and forwarded to fiscal programs for processing.

(3) *Example 3—Customer is operating a small business out of a residence.* This activity is classified as a "home occupation." A child care activity may fall into this category as long as it meets zoning requirements. If the customer is operating in accordance with the above descriptions, they will be charged as a residence. There shall be no credit/refund if they are not operating in accordance with the description of a home occupation. If the customer is operating in accordance with the above descriptions, they will be charged as a residence. There shall be no credit/refund if they are not operating in accordance with the description of a home occupation.

(4) *Example 4—Customer has a house for sale and wants solid waste fee discontinued.* As long as the collection service is available and electric service is provided to an address, CPS Energy shall include in a monthly electric and gas bill the solid waste service charges prescribed in the current ordinance relative to collection fees. No refund or credit shall be made.

(5) *Example 5—Customer lives in an apartment that has separate electric utility service (CPS Energy) meters and has therefore been billed for city solid waste collection and private collection by the apartment owner. Is the tenant entitled to a refund or credit?* Verification must be made by solid waste personnel that CPS Energy meters are being used, solid waste fees paid, and private garbage service is being provided. Once the facts are determined and verified as presented by the customer, apartment owners should be contacted and informed of the exemption form requirement. With verification

of facts as described above, a credit/refund can be granted to the tenant retroactive up to one (1) year (twelve (12) months) or whenever tenant moved into apartment, whichever occurs first. An additional two (2) years (twenty-four (24) months) credit/refund can be granted if the customer submits the request in written form. The credit/refund is not to exceed three (3) years (thirty-six (36) months). A memo from the department providing the information described above for verification and a request for payment for the amount to be refunded should be forwarded to fiscal programs for processing and forwarded to the finance department for payment. If the customer is in agreement, credit can be given. The credit should be processed through the usual credit process with CPS Energy.

(Ord. No. 2010-11-04-0955, § 1(Att. I), 11-4-10; Ord. No. 2011-09-15-0752, § 1(Att. G), 9-15-11; Ord. No. 2013-01-31-0079, § 1, 1-31-13; Ord. No. 2013-09-12-0631, § 2(Att. P), 9-12-13; Ord. No. 2014-09-18-0694, § 2(Att. N), 9-18-14; Ord. No. 2015-09-10-0760, § 1, 9-10-15; Ord. No. 2017-09-14-0656, § 2(Att. B), 9-14-17; Ord. No. 2018-03-29-0204, § 1, 3-29-18; Ord. No. 2018-09-13-0713, § 1(Att. G.2), 9-13-18; Ord. No. 2019-09-12-0694A, § 1(Atts. L, M), 9-12-19; Ord. No. 2020-01-30-0057, § 1, 1-30-20; Ord. No. 2023-09-14-0627, § 2(Att. B), 9-14-23; Ord. No. 2024-09-19-0705, § 2(Att. E), 9-19-24; Ord. No. 2025-09-18-0629, § 2(Att. G), 9-18-25)

Sec. 14-31. Collection of charges.

(a) The solid waste service charges prescribed in this chapter shall be included in the CPS Energy monthly electric and gas bill rendered to customers within the corporate limits of the city.

(b) The charges fixed in this chapter for the removal of solid waste shall be included as a separate item on the regular utility bill and shall be paid monthly in accordance with existing practices. Any person who shall fail or refuse to pay the charges fixed in this chapter within the time specified shall be deemed to be delinquent, and the city may, at its option, cause any or all utility service and solid waste removal service to be discontinued and such discontinuance shall be reported to the director of the Metropolitan Health District.

(Ord. No. 2010-11-04-0955, § 1(Att. I), 11-4-10)

Secs. 14-32—14-39. Reserved.

ARTICLE IV. REGULATION, PERMITS AND LICENSING

Sec. 14-40. Solid waste haulers.

It is unlawful to operate a solid waste vehicle without a permit (public nuisance). It is an offense for a person to collect or offer to collect, or to dispose or offer to dispose of, solid waste within the city's corporate limits unless the person has obtained and affixed a current, valid permit decal to each vehicle covered by this article. Under authority of V.T.C.A., Local Government Code ch. 217, subch. C, regulation by a home rule municipality, it is further declared a public nuisance for a person to collect or offer to collect, or to dispose or offer to dispose of, solid waste within the city's corporate limits unless the person has secured and affixed a current, valid permit decal to each vehicle covered by this article.

(1) *Recyclables exemption.* Any vehicle used exclusively for transporting recyclable materials to recycling facilities is not required to pay the vehicle permit fee or to possess and display a permit. Vehicles performing only deliveries to a city-operated brush recycling facility and other duly authorized brush recycling facilities will be permit exempt only upon approval from the director. All brush disposal and other fees apply.

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(2) *Annual and quarterly solid waste hauler permits.* The annual permit shall be effective for twelve (12) months from the date of issuance, if issued and fully paid at commencement of the permit year, May 1st. Quarterly permits may be secured on May 1, August 1, November 1, and February 1 of each calendar year, or the next business day should any of the above dates fall upon weekends or city holidays. These individual quarterly permits and quarterly fee payments shall not be pro-rated for use of the vehicle during partial quarters. Failure to pay within a ten-day grace period will result in a penalty sum to be imposed as promulgated by the city council.

(3) *Permit fees; timely payment discounts; late payment penalty.*

a. *Fee schedule.* Prior to the issuance of a solid waste hauler permit, the applicant shall pay the current permit fee for each vehicle in accordance with the vehicle permit fees schedule for commercial/industrial vehicles. Such fee schedule may be reviewed by the city annually and adjusted by the city council.

b. *Proration.* Applicant will be entitled to prorate annual permit fees for vehicle units added after commencement of the annual permit period. Prorations shall not be allowed on a daily or monthly basis but will be calculated on a quarterly basis. Any portion of a quarter for which a permit fee is paid must satisfy the entire quarterly obligation.

c. *Early payment discount; late payment penalty.* Early annual and quarterly payments made before the first day of the month when due will be entitled to a ten-percent discount. Late payments, made after a ten-day grace period, applicable to annual and quarterly payments, shall be subject to a ten-percent late fee penalty.

City-owned or leased vehicles. Vehicles owned and/or leased by the city are exempt from paying the vehicle permit fee and from displaying a permit decal. The vehicle permit fee is in addition to any other city fees or charges for disposal at any city solid waste disposal or processing facility.

(4) *Permits for solid waste hauling vehicles; permit conditions.* Persons who own or operate vehicles defined in this article shall permit with the city in accordance with the following:

a. For the purposes of permitting within this article, the following words and phrases shall have the meanings respectively ascribed to them by this section unless the context requires otherwise:

City means the City of San Antonio, Texas, as represented by the official acts of the city council and council designated representatives.

Department means the City of San Antonio Solid Waste Management Department or its successor.

Director means the director of the solid waste department or his/her designee.

Hauler means a person who owns, drives, or operates a vehicle for the purpose of collecting or disposing solid waste.

Permit means the formal consent provided by the city to a person which entitles the person to collect, offer to collect, or dispose of waste within the corporate limits of the city, which consent is evidenced by display of a permit decal.

Permittee means a person issued a permit under this article.

Person means an individual, corporation (including a government corporation), organization, governmental subdivision or agency, political subdivision of a state, interstate agency or body, business

or business trust, partnership, association, firm, company, joint stock company, commission, or any other legal entity, including, but not limited to non-profit organizations, utilities, education and special districts, and municipalities.

Shall, whenever used in this article, will be interpreted in its mandatory sense; "may" is permissive.

Solid waste means any garbage, refuse, sludge from a waste treatment plant, water supply treatment plant or air pollution control facility, and other discarded material, including solid, liquid, semisolid, or contained gaseous material resulting from industrial, municipal, commercial, mining, and agricultural operations, and from community and institutional activities, but does not include the following:

1. Solid or dissolved material in domestic sewage (i.e., material confined within a POTW collection or treatment system) or solid or dissolved material in irrigation return flows or industrial discharges subject to regulation by permit issued pursuant to V.T.C.A., Water Code ch. 26.
2. Solid dirt, rock, sand, and other natural or man-made inert solid materials being used to landfill when the object of the filling activity is to make the land suitable for the construction of surface improvements.
3. Waste materials that result from activities associated with the exploration, development, or production of oil or gas and are subject to control by the state railroad commission.

Vehicle means a "for-hire" or other commercial, industrial, motorized instrument of solid waste conveyance regulated under this article, and used, designed and/or equipped to collect, move, or dispose of solid waste materials within the corporate limits of the city. For example, vehicle includes, but is not limited to, those owned or operated to haul waste generated by the owner of the vehicle, such as a demolition company, construction company, commercial or residential builder, including, but not limited to hazardous or special wastes regularly or occasionally disposed within the city's jurisdiction, including those vehicles that transport liquid wastes.

b. *Solid waste transportation; duties of solid waste haulers; permit conditions; prorations and discounts.* It shall be conditions of any permit issued to a person that:

1. Any person receiving a permit shall have the duty to exercise reasonable, prudent, and sufficient care when undertaking his/her activity in order to preserve the health, safety, and general welfare of the community. The permittee must obtain and maintain current all the necessary legal documents required by local, state, and federal authorities.
2. In the event of an unpermitted, illegal disposal, or accidental discharge of solid waste during collection or hauling, the permittee shall immediately contain the impacted area and safely recover the discharged solid waste. The permitted solid waste hauler shall take any

and all action as may be required by local, state, or federal officials, having jurisdiction, so that the discharge will not present a public health or environmental hazard, threat, or nuisance.

3. Failure to promptly and properly take effective remedial action necessary to public health and safety protection shall constitute a violation of this article and a violation of the permit conditions.

4. Permit application; representations become permit conditions. In addition to complying with the proper registration or license procedures established by the agencies having jurisdiction over permittee's activities, all persons owning, operating, or driving solid waste vehicles subject to this article shall complete a permit application to receive a permit from the city through the solid waste management department or its successor department. All applicants, including those persons who may claim exemption, must generally supply the department with the following information and documentation in order for the department to make an informed decision. The following representations made by the applicant also become conditions of the permit:

   A. Name, business address, and telephone number of the applicant solid waste hauler. If the applicant is a corporation, the names and addresses of its president, all vice-presidents and agent, for service shall be provided.

   B. The trade name under which the applicant hauls or intends to haul solid waste.

   C. The number and type of vehicle(s) that the applicant intends to operate, together with a general physical description or manufacturer's trade description of each vehicle (e.g., year made, model, manufacturer's rated capacity).

   D. The period of time the applicant has been engaged in the activity of hauling solid waste refuse and the daily hours of operation of his intended collection, transportation, and disposal activity.

   E. Certificates of insurance or other documentation evidencing that the applicant has obtained insurance coverages described below.

   F. No later than August 8, 2006 and annually thereafter during the month of April, permittees shall furnish to the city a descriptive list of all vehicles engaged in solid waste hauling and list which vehicles will be collecting within or using any landfill disposal or other legal disposal site within the city's jurisdiction for solid waste disposal or deposit. Based upon the best available information, the solid waste hauler shall project the anticipated annual tonnage of solid waste to be disposed of by his

company and the source(s) of such waste as being either generated inside the city limits or outside the city limits expressed in a percentage of the hauler's total projected annual tonnage.

G. Commercial concerns that are not in the business of hauling solid waste for others but rather are hauling waste generated by themselves or their own commercial activities, shall permit their vehicles in accordance with this article.

H. Notices; driver agent; violations.

i. For purposes of notice, where required by this article, it shall be sufficient to notify the permittee by certified mail at the address represented in the permit application. When a violation of this article is alleged, in contemplation of criminal or civil prosecution, certified mail, return receipt, shall be sufficient evidence of notice of violation to a permittee in whose name a permit has been issued, whether the permit is current or delinquent.

ii. When a violation of this article is alleged, based upon a vehicle's displaying no evidence of a permit, a citation upon the driver of the vehicle shall be the same as and legally sufficient to effect notice of the violation to the owner. In which case, the driver is the apparent agent of the owner, as allowed by law. Thereafter, service of process for civil or criminal prosecutions shall be conducted as prescribed by law. Where the permittee is a corporation, notice may be personally hand delivered to the president, any vice president, or agent of the corporation. In the event the president, a vice president, or registered agent cannot with reasonable diligence be found at the registered office, duplicate copies of the notice shall be sent to the registered agent identified according to records of the secretary of state by certified mail, return receipt requested. Or, in the alternative or in supplementation, any sufficient form of substituted service provided by law may be employed.

I. Any other requested relevant information that

can reasonably be provided to the department which bears a reasonable relationship to the regulation of permittees under this article and is necessary to evaluate the permit application.

(5) *Investigation of information set out in application.* The director or his designee may conduct an investigation to determine the accuracy of information supplied by the applicant prior to the issuance of a permit. Supplying false information to the department shall be grounds for refusal to grant a permit or revocation of a permit if already issued. The hauler shall at least annually update the information contained in the application to reflect any substantive changes in the information required by the initial application.

(6) *Insurance requirements.* With the application, hauler must show, for vehicles intended to carry seven thousand (7,000) pounds gross vehicular weight or more, evidence of a commercial general (public) liability insurance policy in an amount of no less than five hundred thousand dollars ($500,000.00) and thereafter keep same in full force and effect with an insurance company authorized to do business in the state. The policy shall insure the public against any loss or damage that may result to any person or property from the operation of the hauler's collection, transportation, and disposal activities. In addition, the hauler utilizing vehicles that are intended to carry seven thousand (7,000) pounds gross vehicular weight or more shall carry business automobile liability coverage for each and every vehicle of that capacity owned or operated by hauler with combined single limits for bodily injury and property damage of not less than five hundred thousand dollars ($500,000.00).

The policies shall contain a provision requiring that the city be provided with thirty (30) days advance notice, in writing, of cancellation or material change in the policies. In the event of cancellation or material change in the hauler's policies, the permit shall be suspended along with hauler's vehicular activities until such time as the hauler can again secure appropriate coverage.

(7) *Vehicle inspection—General requirements.* Prior to the issuance of a permit, the department may require the applicant to submit for inspection by the department at a city facility each vehicle to be permitted. Any city inspections hereunder shall be conducted by trained and qualified city inspectors carrying proper identification. In the event that the department chooses to inspect the vehicle, the department or its agents shall determine whether or not the vehicle(s) is constructed and equipped in accordance with the provisions of this article and that the vehicle(s) are generally in good repair. In addition to the initial optional department inspection prior to the issuance of a permit, designated employees of the department are hereby authorized to randomly re-inspect the vehicles at "off-road" locations periodically in order to observe that the vehicles are generally maintained in good repair and are likely not to constitute a public health hazard or public nuisance under the provisions of this and any other governing ordinances. These optional "off-road" department inspections may take place at a city facility to be designated by the department, at a city-owned or privately owned and operated transfer or landfill facility, or at the permittee's place of business during normal business operation hours. These optional "off-road" department inspections are in no way meant to satisfy the otherwise legally mandated inspection of motor vehicle requirements of the state department of public safety or the state department of transportation. All transport vehicles shall have a valid department of public safety inspection sticker properly displayed.

(8) *Compliance monitoring.* The city will monitor disposal sites within its jurisdiction on an as needed basis and may pursue enforcement, including, but not limited to, issuance of criminal citations to drivers of non-compliant vehicles used for hauling, citations to responsible legal entities, and establishment of predicates for civil enforcement against any responsible person.

(9) *Payment of all undisputed taxes, fees, and debts.* Prior to the issuance of any permit

under this article, the applicant shall demonstrate, upon the director's request, the payment of any undisputed, previously due and outstanding, sales and/or property taxes, fees, and other debts owed to the city including any past due utility related accounts.

(10) *City contracts.* Contractors and subcontractors who perform city contracts and/or who participate in public projects must be in compliance with permit and fee requirements. Non-compliant haulers are not eligible to perform city contracts or to act as subcontractors to city contractors. Eligibility shall be verified by the city's various contracting departments in coordination with the solid waste management department.

(11) *Issuance of permit.* Upon the applicant's fulfilling the requirements set out in this article, the department will issue either an annual or quarterly permit(s) to the applicant for the qualifying vehicle(s). The annual permit(s) shall be valid for a period of twelve (12) months from the date of issuance or for a quarter (three (3) months), dependent on timely payment of vehicle permit fees. The requirements set out herein must be satisfied prior to the reissuance of a permit.

a. *Local authority.* A permit issued by the city pursuant hereto does not authorize the collection, transporting, discharge, or disposal of regulated hazardous solid wastes. Any transporter carrying hazardous solid waste from, within, or through, the city shall have obtained applicable state department of health services, state commission on environmental quality, or USEPA permit(s), all as may be necessary, and use the appropriate hazardous solid waste transportation and disposal manifest and routing system.

b. *Display.* Prior to the operation of any vehicle regulated by this article, each permittee:

1. Shall clearly and visibly display on both exterior sides of each vehicle on the door(s) or fender(s) the business or trade name of the hauler contained in the permit application in a color clearly contrasting with the background color in three-inch letters or larger.

2. Shall permanently affix the permit decal for prominent display as instructed by the solid waste management department. The permitted solid waste hauler shall keep the vehicle permit issuance receipt, or a copy thereof, with the vehicle and/or equipment operator at all times.

3. Transfer. A permit issued under this article is non-transferable from one solid waste hauler to another solid waste hauler without prior written approval of the director and submittal of proper re-registration information to the city. A permitted hauler who changes names or transfers permits by sale or other enterprise transfer, such as lease, must notify the city and pay an administrative transfer fee of twenty-five dollars ($25.00) per vehicle or as established by subsequent city budget ordinances.

c. *Solid waste hauling vehicle specifications and maintenance requirements.*

1. *Permit condition.* It shall be the duty of the permittee to ensure that all solid waste transportation vehicles utilizing the public streets, public alleys, and highways within the corporate limits of the city to transport solid waste at all operational times conform to the following minimum vehicle specifications and maintenance requirements.

Failure to do so shall constitute a violation of this article and permit conditions.

2. *Service standards and equipment.* The permittee shall be required to maintain and operate its solid waste hauling vehicles and related equipment in good order to render sanitary service subject to the terms of this ordinance and the permit(s) issued pursuant hereto. The vehicles that are seven thousand (7,000) pounds gross vehicular weight or more that are used in the collection of solid waste refuse shall be all metal, watertight, and shall be equipped with closed bodies equipped with hydraulically operated devices for compacting collected garbage. Those vehicles that are seven thousand (7,000) pounds gross vehicular weight or more shall meet all federal and state laws and regulations with the exception of brush trucks and vehicles designed to haul roll-off collection containers, which are regulated by the state tarp law. All vehicles shall be kept in a clean and sanitary condition and all vehicles shall be cleaned inside and outside at least once each week. The solid waste hauler shall additionally cause the vehicle exterior to be clean, vector free, and relatively odor free at the beginning of each working day and provide for intermittent wash downs of vehicle and equipment exteriors and wash outs of container interiors as necessary to generally maintain the above conditions. Failure to comply with this section may result in revocation of a vehicle permit granted herein.

d. *Solid waste hauler violation; penalties.* It shall be unlawful for a person to do or perform any act prohibited by this article and it shall be unlawful for a person to fail to do or perform any act required hereby. Each day's violation hereof shall constitute a separate offense. Any person or permittee who is found guilty in the municipal court of the city of violating this article and/or waste hauler permit provisions shall be fined not less than five hundred dollars ($500.00) nor more than two thousand dollars ($2,000.00) for each offense. If the finder of fact (the court or jury) imposes a fine in excess of five hundred dollars ($500.00), the finder of fact must also find that the violation was committed knowingly, intentionally, or recklessly. Each day on which a violation shall occur or continue shall be deemed a separate and distinct actionable offense. In addition to the penalties provided for herein, the city may seek recovery in a court of competent jurisdiction for any actual damages it might suffer. The city may also seek reasonable attorney fees, court costs, and other expenses of litigation along with all other relief, both in law and in equity, to which it might be entitled. Additional recoveries and relief in law and/or equity under existing federal or state law are not precluded by specific recoveries obtained by the city under this section.

1. *Civil remedy; additional injunction to temporarily or permanently remove alleged permit offenders from streets; jail for contempt.* In prosecuting permit violations, the department will refer cases for civil and criminal prosecution and will assist the office of the city attorney in preparing and prosecuting petitions in courts of competent jurisdiction. The office

of the city attorney is authorized to pursue civil relief, which may include, but is not limited to, an injunctive order, to remove vehicles belonging to offenders from streets and city property, and to enjoin persons from operating vehicles in violation of this article's permitting provisions. In such case, a petition for injunctive relief need not be preceded by a criminal conviction. The city may be entitled to its attorneys fees and costs and may plead entitlement to delinquent permit fees, and interest on the debt and judgment as may be allowed by law. The city may plead and prove facts to uphold issuance of a court order, the violation of which shall place the offender at risk of contempt of court and jail.

In addition to criminal prosecution, this section is cumulative, and not exclusive, of any other remedies at law and in equity to which the city may be entitled.

2. *Presumption of debt.* A hauler's use of city property, streets, alleys, roads, or other rights-of-way, without permit, shall create a presumption of debt. The city may elect to pursue debt enforcement against a hauler who uses such city property without proper permit(s). If the city elects this remedy, the city may plead the value of the service rendered to the delinquent hauler. In such case, the city may enforce a final judgment by all means at its disposal, including but not limited to recording and fixing liens, acquiring execution, foreclosure, and seizure orders from the court, and orders from the court directing sale of hauler's property to satisfy the judgment.

e. *Falsifying information.* Any person who knowingly makes any false statements, representations, or certifications in any solid waste permit application or affidavit filed with the city or required to be maintained pursuant to this article shall, upon conviction, be punished by a fine of not more than two thousand dollars ($2,000.00).

(Ord. No. 2010-11-04-0955, § 1(Att. I), 11-4-10; Ord. No. 2013-01-31-0079, § 1, 1-31-13)

Sec. 14-41. Commercial refuse and recycling collection.

(a) *[Duty to comply.]* It shall be the duty of the owner, manager, tenant, or occupant of any business establishment or building or the agent or employee of any such person to comply with the following minimum standards.

(b) *Types of containers for commercial refuse collection.* For private service commercial collection of municipal solid waste, suitable containers must be used. Generally, the collector and their client will determine the type of container to use depending on volume and type of waste generated. The city does not specify the exact type of container but sets the following standards for containers. In the Central Business District, as defined in section 14-1, cardboard boxes, paper bags and plastic bags shall not be used as containers for any commercial refuse collection and only roll-out containers and dumpsters are acceptable types of containers for commercial refuse collection. It shall be the duty of the owner, manager, tenant or occupant of any premises or building, or the agent or employee of any such person to place waste at the designated point of collection and ensure that said waste is contained in reusable containers (cans), detachable containers (dumpsters or roll-offs), or disposable containers defined as follows:

(1) *Plastic bags.* Plastic bags shall be of a thickness capable of containing all materials therein and have a lifting strength of

forty (40) pounds when filled. When placed for collection they shall be securely tied with wire, twine, tape, or ends fashioned into a knot. Sharp items are not to be placed into these containers. In the Central Business District, as defined in section 14-1, plastic bags shall not be used as containers for any commercial refuse collection.

(2) *Paper bags.* Paper bags shall be of two-ply kraft and have a wet strength of forty (40) pounds. When placed for collection they shall be securely tied with wire, twine, or tape. These containers must at all times be able to maintain their structural integrity when lifted. In the Central Business District, as defined in section 14-1, paper bags shall not be used as containers for any commercial refuse collection.

(c) *Minimum standards of containers for all commercial refuse collection.* It shall be the duty of the owner, manager, tenant or occupant of any premises or building, or the agent or employee of any such person to ensure that the containers used comply with the following minimum standards:

(1) They must fully contain the waste. No overflow of waste out of the container shall be permitted. The container shall have a tight fitting lid or shall be fully closed (tied, taped, or somehow enclosed) to prevent the scattering of the contained debris.

(2) They shall be of sufficient strength to prevent the rupturing of the container and the subsequent scattering of the contained waste.

(3) They shall be leak proof to prevent the spilling of any liquid wastes.

(4) They shall be kept clean, free of odors, and in good condition.

(5) All containers and the location in which they are placed shall be kept in a clean condition and free of fly and other insect breeding.

(6) Containers must be maintained in good repair and free of holes, cracks, rusted or decayed bottoms, and splits and shall at all times be kept covered.

(7) In the Central Business District, as defined in section 14-1, cardboard boxes, paper bags, and plastic bags shall not be used as containers for any commercial refuse collection. Bags are not considered "sealed containers" and all trash must be placed in sealed containers.

(8) In the Central Business District, as defined in section 14-1, only roll-out containers and dumpsters are acceptable types of containers for commercial refuse collection. All roll-out containers must be clearly marked with the user's name, address, and a contact telephone number. Identification methods must be legible, permanent, and not subject to removal. Identification via spray paint is not considered a permanent method.

(9) In the Central Business District, as defined in section 14-1, all acceptable types of containers for commercial refuse collection must be kept in a clean and sanitary condition. All trash inside containers must be bagged. Inspection of trash containers is part of routine health inspections.

(d) *Commercial manual collection—Wastes from restaurant related activities.*

(1) It shall be the duty of the owner, manager, tenant or occupant of any business establishment or building or the agent or employee of any such person to segregate trash generated from restaurant related activities into three (3) categories consisting of garbage/trash, grease, and slop wastes.

(2) It shall be the duty of the owner, manager, tenant or occupant of any business establishment or building or the agent or employee of any such person to make separate provisions for the proper collection of these categories and commingling of such categories is not permitted.

(3) It shall be the duty of the owner, manager, tenant or occupant of any business establishment or building or the agent or employee of any such person to clean stains or spots resulting from the collection of these wastes immediately.

(e) *Placement and removal of containers for commercial manual curbside collection.*

(1) Roll-out containers in the Central Business District, as defined in section 14-1, shall be placed out for manual collection only between the hours of 10:00 p.m. to 3:00 a.m. and shall be immediately removed after collection. It shall be unlawful for the owner, manager, tenant or occupant of any business establishment or building, or the agent or employee of any such person to place, allow or suffer to remain any containers, either empty or containing solid waste, after 9:00 a.m. Empty roll-out containers remaining after 9:00 a.m. will be subject to issuance of a citation with a fine up to two thousand dollars ($2,000.00) per violation.

(2) In other non-CBD areas of the city, containers (except for detachable containers such as dumpsters or roll offs) shall be placed out for collection no sooner than 7:00 a.m. All containers shall be removed from the curb by 10:00 p.m.

(3) It shall be unlawful for the owner, manager, tenant or occupant of any business establishment or building, or the agent or employee of any such person to place, allow or suffer to remain after it has been emptied by the garbage collector, any container for solid waste, rubbish, or trash in, on, or about any street, plaza, park, sidewalk, or other public place, except in any alley in the rear or side of such premises or building.

(f) *Time of collection.* It shall be the duty of the person hauling solid waste, recycling, or grease and grit trap wastes, to comply with the time set for collection in this section. Time of collection is dependent on the location of the containers being serviced:

(1) In the Central Business District (CBD) as defined in section 14-1, collection of roll-out containers is permitted only between the hours of 10:00 p.m. and 5:00 a.m. The director of downtown operations may make exceptions for Fiesta, parades, and other city functions.

(2) In the Central Business District (CBD) as defined in section 14-1, there shall be no manual curbside collection of roll-out containers between the hours of 5:00 a.m. and 10:00 p.m.

(3) In the Central Business District (CBD) as defined in section 14-1, collection for dumpsters is permitted only between the hours of 6:00 p.m. and 10:00 p.m. and between the hours of 3:00 a.m. and 7:30 a.m.

(4) There is a designated "target zone" within the Central Business District (CBD), as defined in section 14-1. The "Target Zone" boundary consists of the area contained within N. St. Marys Street on the West, E. Commerce Street on the South, Losoya on the East, and Peacock Alley on the North. Within this "target zone," collection for dumpsters is permitted only between the hours of 6:00 a.m. to 7:30 a.m. and between 6:00 p.m. and 10:00 p.m. Only plastic dumpsters are allowed within the "target zone."

(5) In other (non-CBD) areas of the city there will be no collection of waste, recycling, or grease and grit trap wastes, from commercial properties between the hours of 10:00 p.m. and 7:00 a.m. and there will be no collection of waste or recycling from residential or multi-family properties between the hours of 10:00 p.m. and 7:00 a.m. In the absence of complaints from affected citizens within two hundred (200) feet, an automatic variance for collection from commercial properties between 10:00 p.m. and 7:00 a.m. is granted.

(g) *Commercial collection of special waste including hospital related wastes and infectious wastes.* These types of wastes will be collected in accordance with TDSHS regulations. The city reserves the right to amend this chapter 14 to

establish additional regulations for the safe handling, storage, and disposal of these types of waste. It shall be the duty of any person disposing of special waste to comply with TDSHS regulations.

(h) *Noise and public nuisance.* Collection of commercial refuse involves the use of heavy equipment, trucks, and large metallic containers such as dumpsters, which may create excessive noise in non-CBD areas. However, in the event of a complaint from an affected citizen, the following procedure shall be followed:

(1) Citizen shall first attempt to resolve the nuisance through contact with the commercial hauler.

(2) If the matter is unresolved, the citizen may contact the solid waste management department and request assistance from the city to mediate between the citizen and the commercial hauler.

(3) If the matter continues to be unresolved, the citizen may file a written complaint with the solid waste determination board and request a formal hearing.

(Ord. No. 2010-11-04-0955, § 1(Att. I), 11-4-10; Ord. No. 2013-01-31-0079, § 1, 1-31-13; Ord. No. 2015-03-05-0158, § 1, 3-5-15)

Sec. 14-42. Reserved.

Sec. 14-43. Multi-family recycling.

(a) *Definitions.* For the purposes of this section, the following terms shall have the meaning shown:

Manager means a person, corporation, partnership or entity, who acts as an agent for the owner in managing a multi-family property.

Multi-family property means a property with three (3) or more residential dwelling units including but not limited to, apartments, townhomes, condominiums, high rise condominiums and San Antonio Housing Authority properties.

Owner means any persons, corporation, partnership or entity, or their agent (such as a condominium or homeowners association), jointly or severally, having an ownership interest in a multi-family property responsible for solid waste collection.

Recycling collection service means a property that is serviced by a recycling collector for recyclable materials.

Recycling collector means a person, firm, corporation, partnership or entity that collects recyclable material from multi-family properties within the city.

Recycling container means a container marked with signage clearly indicating that it is only to be used only for the collection of recyclable materials and with signage clearly indicating the types of recyclable materials accepted.

Recyclable materials mean those materials that are separated from garbage and trash for the purpose of recycling, such as, but not limited to, newspaper, mixed office paper, corrugated cardboard, kraft paper, aluminum and tin cans, magazines, steel aerosol cans, glass bottles, glass containers, plastic bottles and plastic containers with resin code mobius numbers 1—7.

Recycling facility means a recycling materials recovery or reuse facility.

Refuse means any mixture of putrescible and non-putrescible solid and semi-solid wastes including garbage and trash.

Self-haul when used in reference to recyclable materials generated by a multi-family property means the collection and transportation of such materials where an owner or employee or agent of the entity hauls the material to a recycling facility rather than hiring a recycling collector to perform this function.

Source separation means to divide solid waste at the place of generation, prior to collection, into separate containers that are designated for recyclable materials and refuse.

Tenant means a person or group that rents and occupies a residential space within a multi-family property from a multi-family owner for a period of time.

(b) *Requirements for owners or managers of multi-family properties.*

(1) Owners or managers of multi-family properties shall provide a recycling plan in accordance with subsection (b)(5) and shall provide recycling collection service in accordance with subsection (b)(6). Owners or managers of multi-family properties with four (4) or less units may apply to receive and pay for the city's curbside recycling and garbage service as provided by the department in section 14-30.

(2) Recycling collection service shall be provided in accordance with this chapter. Recycling collection service shall be required on a frequency sufficient to avoid containers which are overflowing.

(3) Owners or managers of multi-family properties must supply recycling containers through private contracts with their recycling collector or other appropriate means, placed in an appropriate location, to make the disposal of recycling material as convenient as garbage material and which offers equal access opportunity to a recycling container as a garbage container for tenants of the properties.

a. Recycling containers shall be of appropriate size and number for anticipated recyclables generated at the property.

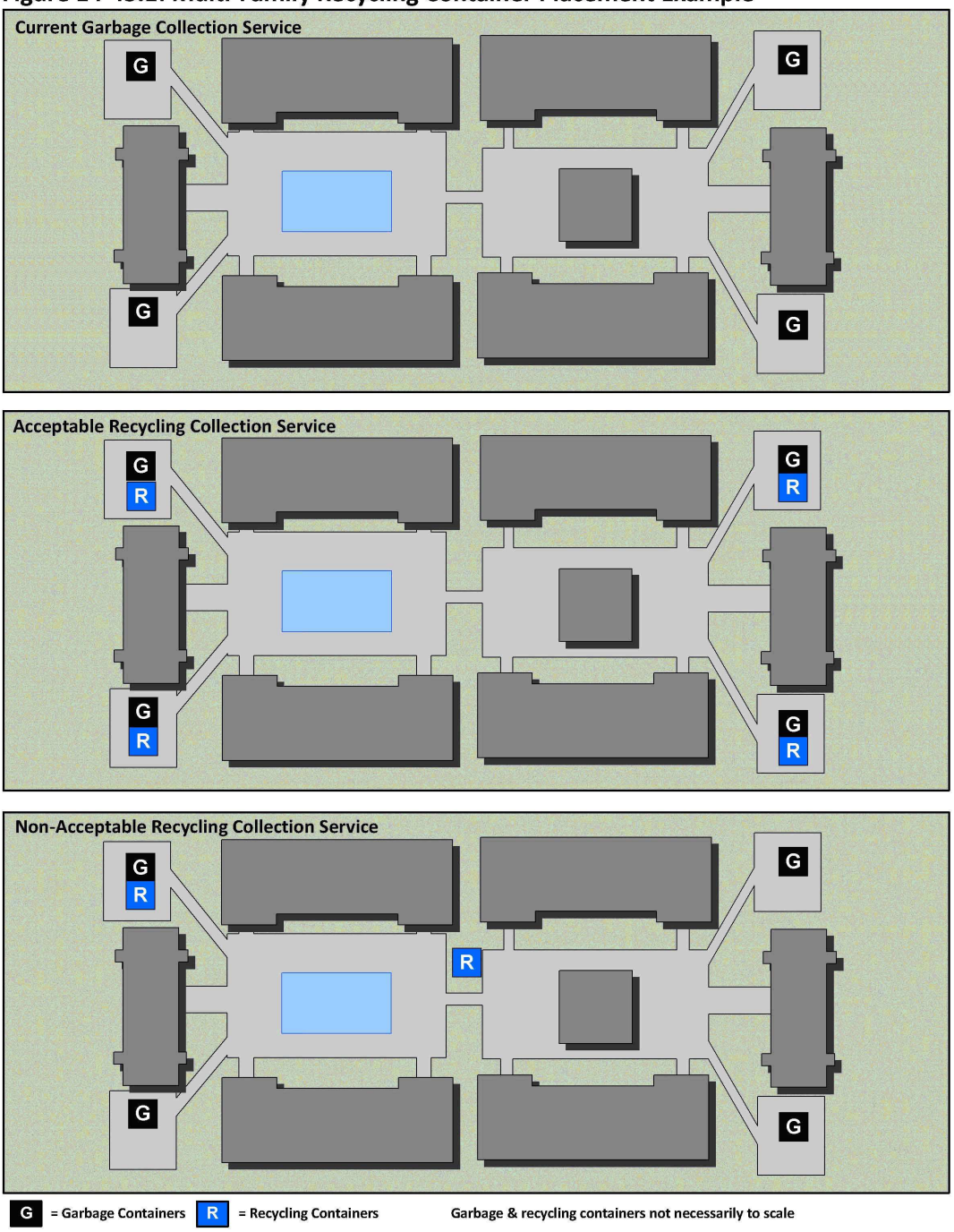
b. Recycling collection service shall be as convenient to the tenant as garbage collection service. Owner is required to have or to secure recycling collection service that allows for the placement of recycling containers as close as possible to garbage containers.

1. Should a complex offer door to door valet garbage collection service, then the recycling service should be of a similar nature.

2. Should a high rise complex have a designated chute for garbage collection service, then the recycling service should be of a similar nature or should be as convenient for the tenant.

c. Figure 14-43.1, multifamily recycling container placement example, demonstrates in a graphical manner what is meant by the "appropriate number" number of containers and the "convenient" placement of containers that will allow for equal access opportunities by tenants.

Figure 14-43.1: Multi-Family Recycling Container Placement Example



d. At a minimum, owners or managers of multi-family properties must provide clear and visible signage on the containers indicating:

1. The container is only for recyclable materials, and

2. The types of accepted recyclable materials.

e. This requirement does not prohibit owners or managers of multi-family properties from negotiating with a recycling collector to provide recycling containers as a provision of a service agreement or contract.

(4) Owners or managers of multi-family properties must ensure that tenants are educated about recycling services as follows:

a. Information, including the types of recyclable materials accepted and the location of recycling containers must be distributed to all tenants upon the commencement of providing recycling services and upon move-in of a new tenant.

b. All occupants must be given information and instructions upon any change in recycling services to the property.

(5) Prior to the multi-family property owner or manager initiating the start of recycling collection service in accordance with this section, a "recycling plan" must be developed and submitted to and approved by the department. The department will make forms for this plan available in both a printed form and in an electronic format.

a. All recycling plans will be due to the department no later than three (3) months prior to the indentified start time of the recycling services as follows:

1. For multi-family properties with three hundred (300) units or more, recycling plans must be submitted by April 1, 2011.

2. For multi-family properties with at least two hundred (200) units but not more than two hundred ninety-nine (299) units, recycling plans must be submitted by July 1, 2011.

3. For multi-family properties with at least one hundred (100) units but not more than one hundred ninety-nine (199) units, recycling plans must be submitted by October 1, 2011.

4. For multi-family properties with three (3) to ninety-nine (99) units, recycling plans must be submitted by January 1, 2012.

5. Owners or managers of new multi-family properties established or receiving a certificate of occupancy after the plan submission dates above shall submit a recycling plan to the department within thirty (30) days of receiving a certificate of occupancy.

6. If the recycling plan is rejected by the department, the owner or manager of the multi-family property has thirty (30) days from notification of the rejection to submit a revised plan for approval. A rejected plan will not constitute an acceptable excuse to not start the service by the date prescribed below.

b. Owners or managers of multi-family properties shall submit an update to their recycling plan to the department whenever one of the following occurs:

1. A change in the ownership or a change of management of the property.

2. A change in recycling collector services.

3. A change in the method of collection, such as a change in the types of containers.

(6) Recycling service and program implementation consistent with the approved recycling plan will be required to begin at all multi-family complexes by the following dates:

a. For multi-family properties with three hundred (300) units or more, recycling service must start on or before July 1, 2011.

b. For multi-family properties with at least two hundred (200) units but not more than two hundred ninety-nine (299) units, recycling service must start on or before October 1, 2011.

c. For multi-family properties with at least one hundred (100) units but not more than one hundred ninety-nine (199) units, recycling service must start on or before January 1, 2012.

d. For multi-family properties with three (3) to ninety-nine (99) units, recycling service must start on or before April 1, 2012.

e. Owners or managers of multi-family properties established or receiving a certificate of occupancy after the recycling service start dates above shall start recycling service on or before thirty (30) days of receiving approval for their recycling plan.

(7) The minimum parking required for the multi-family property may be reduced in order to provide adequate space for recycling container storage areas as required by this section. In such cases the recycling container storage area shall be screened in accordance with subsection 35-511(c).

(c) *Requirements for recycling collectors.*

(1) All recycling collectors shall register with the department prior to providing collection of recyclable materials. The department will make the registration form available in both a printed form and in an electronic format.

(2) Recycling collectors who collect recyclable materials generated from multi-family properties within the city shall deliver those recyclable materials to a recycling facility for processing.

(3) Recycling collectors shall submit an annual report to the department by March 1 of each year, documenting activities that occurred in the previous calendar year. The reporting requirement will go into effect on March 1, 2013 and will include data from calendar year 2012. Vendors who only provide valet collection and do not deliver recycling to a processor are exempt from reporting requirement. The department will provide a form to registered collectors for submitting their annual data.

a. Total number of living units served for such multi-family properties;

b. Total number of tons of recyclable material collected for such collection services;

c. The names and addresses of the recycling facilities to which the recyclable materials collected within the city were delivered for recycling;

d. Additional information as required by the director or his designee.

(4) An owner or manager of a multi-family property that elects to self-haul recyclable materials generated at such multi-family property shall be required to submit an annual report. Self haulers may opt to submit their annual reports through their material recovery facility.

(d) *Requirements for city.*

(1) Upon request, the department shall provide, in a printed form and an electronic format, educational and promotional material such as posters, introductory letters and signage to all owners or managers of multi-family properties upon submittal of an approved recycling plan.

(2) The department shall manage the components of the program by providing:

a. The property owner or manager with technical assistance in the development of the recycling plan.

b. Approval of the recycling implementation plan submitted by the property owner or manager.

c. Periodic site inspection to ensure compliance and to follow up on any complaints.

(3) The department will be responsible for collecting, tabulating and reporting on recycling data. Reports will be produced on an annual basis to report on the tons of materials recycled by the multi-family properties.

(e) *Enforcement.*

(1) The director or his designee shall have authority to designate personnel to enforce and to administer the provisions of this article. Those designated by the director or his designee may exercise any enforcement powers as set forth in sections 1-5 and 14-60.

(2) Such enforcement shall not hold owners or managers of multi-family properties responsible for tenants' participation or non-participation in the recycling program or for contamination of recyclable materials.

(3) In accordance with V.T.C.A., Local Government Code §§ 250.003 and 250.004, an individual who is an employee of the owner of a multi-family property cannot be cited for non-compliance with this section as long as he or she provides the owner's name, current street address and telephone number to the enforcement official.

(4) It is an offense for a person to do or perform any act prohibited in this section and it is an offense for a person to fail to do or perform any act required hereby. Each day's violation hereof shall constitute a separate offense for which the conviction shall be punished by a fine not to exceed two thousand dollars ($2,000.00). Violators of this section, pertaining to waste hauling, shall be subject to the penalties recited above. Should the court impose a fine in excess of five hundred dollars ($500.00), the finder of fact must find that the offense was committed knowingly, intentionally, or recklessly.

(Ord. No. 2010-12-09-1026, § 1, 12-9-10; Ord. No. 2013-01-31-0079, § 1, 1-31-13; Ord. No. 2020-01-30-0057, § 1, 1-30-20)

Sec. 14-44. Solid waste determination board established; composition; actions.

(a) The solid waste determination board is hereby established and shall consist of the solid waste management director, the planning and community development director, and the development services and code enforcement director or their designated representatives. The board shall convene upon request of an individual filing a written complaint pursuant to subsection 14-41(h)(3). The board shall have the power to revoke the automatic variance granted in subsection 14-41(f)(5). In determining whether the collection of commercial refuse created excessive noise, the board shall cause a copy of the board's order and written complaint to be served upon the accused by certified mail, return receipt requested at least twenty (20) days before the date appointed in the order for the hearing. Where the accused is a corporation, notice shall be hand delivered to the president, any vice-president, or registered agent of the corporation at its registered office. In the event that the president, any vice-president, or registered agent cannot with reasonable diligence be found at the registered office, duplicate copies of the notice shall be sent to the secretary of state by certified mail, return receipt requested. The accused may appear in person or by counsel, or both, at the time and place named in the order, and make his defense to the same. If the complainant fails to appear, the complaint shall be dismissed. If the accused fails or refuses to appear, the board may proceed to hear and determine the charge in his

absence. If the accused pleads guilty, or if upon a hearing of the charges, the board, by a vote, finds the complaint to be true, it may enter an order revoking the automatic variance granted in subsection 14-41(f)(5) at the location in question and assess an administrative penalty. The action of the solid waste determination board in revoking (or not revoking) the automatic variance and the assessment of a penalty shall be appealable by the commercial hauler (or the complainant) in a court of competent jurisdiction within thirty (30) days after the date of hearing.

(b) It shall be unlawful for any person, or his agent or employee, whose automatic variance at a specified location in non-CBD areas has been revoked, to collect commercial refuse at the specified location in non-CBD areas between the hours of 10:00 p.m. and 7:00 a.m. and continued violations shall result in an administrative penalty of up to $500.00 per violation.
(Ord. No. 2010-11-04-0955, § 1(Att. I), 11-4-10; Ord. No. 2015-03-05-0158, § 1, 3-5-15; Ord. No. 2015-09-10-0760, § 1, 9-10-15)

ARTICLE V. PROHIBITIONS

Sec. 14-45. General prohibitions.

(a) Violation; penalty. It shall be unlawful for a person to intentionally, knowingly, or recklessly do or perform any act prohibited hereby, and it is an offense for a person to fail to do or perform any act required hereby. Each day's violation hereof shall constitute a separate offense. Upon conviction, any violation hereof shall be punished as provided in section 1-5 of this Code, except that any person, firm, corporation or agent or employee thereof who violates any of the provisions of section 14-46 and 14-47 shall be fined an amount not less than one hundred dollars ($100.00) and not more than two thousand dollars ($2,000.00). However, in the event a defendant has once previously been convicted under this article, the defendant shall be fined an amount no less than two hundred dollars ($200.00) and shall be fined no less than three hundred dollars ($300.00) for a third conviction and for each conviction thereafter. Should the court impose a fine in excess of five hundred dollars ($500.00), the finder of fact must find that the offense was committed knowingly, intentionally, or recklessly.

(b) Unfranchised residential collection prohibited. Except for private, residential garbage collection service which may be provided to dwellings which are exempted under subsection 14-30(d), it shall be unlawful for a person to provide or attempt to provide garbage collections service within the city to dwellings of the type enumerated in subsection 14-30(a) without first obtaining from the city a franchise to conduct such business on public streets.

(c) Tampering with and defacing containers.

(1) It shall be unlawful for any person, other than one legally authorized by the director, to remove, displace, injure, deface, destroy, uncover, or in any manner remove, withdraw, or disturb any part or portion of the contents.

(2) It shall be unlawful for any person to tamper with, injure, or deface any collection system or collection container for solid waste in the city.

(d) Placement of public refuse containers. It shall be unlawful for a person to place public trash containers upon the streets, plazas, parks and other public property of the city for the reception of such trash without the consent of the city given by the director.

(e) Scavenge or salvage. It shall be unlawful for any person to scavenge or salvage refuse, recyclables, or organics without written consent of the director or without written consent of the generator of the solid waste or recyclables.

(f) Placement. It shall be unlawful for the owner of a vehicle to park a vehicle within three (3) feet of a collection container on collection day.

(g) Cul-de-sacs. It shall be illegal for vehicles to be parked head-in in a cul-de-sac so as to impede collection on collection day. Because head-in cul-de-sac parking blocks collection containers, limiting access or preventing collection, collection will not be provided when such is the case. Vehicles parked in a cul-de-sac shall be

parked parallel with the flow of traffic with both front and back wheels on the passenger side within eighteen (18) inches of the curb.

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(h) Non-compliant loads. The city shall not provide solid waste collection services if one (1) or more of these conditions occur:

(1) Loads placed for collection which do not meet requirements as set out by this chapter will not be serviced by the city and will be the responsibility of the owner, manager, tenant or occupant of any dwelling, building or premises to correct the situation immediately.

(2) It shall be unlawful for any person to place for collection by the city any earth, rock, gravel, construction and demolition materials, or other prohibited waste. Debris generated as a result of land-clearing is prohibited.

(3) It shall be unlawful for any person to place broken glass, ashes, or manure in any container without first wrapping materials securely in paper or some other type of non-combustible material. These materials must be placed in the refuse container and not the recycling container.

(4) No large metal machinery or automotive parts will be collected.

(5) It shall be unlawful for any person to place for collection by the city any liquids in containers.

(6) It shall be unlawful for any person to place syringes from home health care in any refuse container without first securely enclosing them in a sealed canister or bottle. Syringes shall not be placed in recycling or organics containers.

(7) It shall be unlawful for any person to place in a recycling or organics container for collection by the city any item other than those items listed as acceptable materials for the respective program.

(8) After having provided notice to offending resident, enforcement options available for chronic violators of recycling and organics collection program requirements include, but are not limited to:

a. Non-collection with no reduction in fees.

b. Removal of recycling or organics collection container, with no reduction in fees.

c. Provision of additional refuse container(s) and assessment of additional monthly fee(s).

d. Assessment of a fee in the form of a recycling or organics non-compliance contamination fee, or a non-compliance diaper contamination fee, depending on the type of contamination in the recycling or organics container, in the amount as provided in section 14-30, per occurrence.

(9) It shall be unlawful for any person living outside the city limits to bring garbage in to the city for collection by city crews.

(10) It shall be unlawful for any person to place at or near curbside or to allow to remain at curbside any waste, regardless of character, for collection, intended collection, or to place or allow any such waste to rest or remain at or near curbside for purposes of temporary storage, regardless of disposal intent, which material rests or remains at or near curbside in excess of any 48-hour period, inclusive of weekends and holidays. It shall be an affirmative defense to a violation of this prohibition that the responsible person placed the material at or near curbside or allowed the material to rest or remain there in response to official written notice from the city that instructed such waste placement in comportment with a designated or specially scheduled city collection event (e.g., the city's brush and bulky waste collection program).

(11) It shall be unlawful for anyone other than the person who has control of the premises who has been issued city containers to place materials in said person's containers.

(12) It shall be unlawful for anyone other than the city to remove automated containers from the address they were issued.

(i) The director of the solid waste management department or his designee, director of public works, director of code enforcement services, and the director of the Metropolitan Health District have authority and discretion to direct collection and disposal of otherwise impermissible waste left at or near curbside in violation of this chapter when in the respective judgment of any one of them, the public health, safety or welfare requires removal and legal disposal of such waste, and in such case the responsible party, deemed to be the owner of the property benefitted or person in control of the premises, shall pay the city its reasonable costs for loading, transport, and due disposal of the material plus an administrative fee of ten (10) percent which administrative fee is here deemed reasonable and necessary due to the small and irregular volumes of individual waste to be addressed by this provision for benefit of the health, safety, and welfare, and for which volumes economies of scale and schedule will not be possible. (This fee is separate and independent of any other fees recited in this chapter.) Any such costs may include testing and/or analysis of material necessary to its safe and legal disposal. Even if such tests show a benign character capable of disposal as municipal solid waste or household hazardous waste, the benefitted property owner or responsible person shall be responsible for such charges when in the opinion of any of the directors referenced above, such testing was necessary to verify worker safety or legal options for disposal or any other health or safety concern of the city official. Costs for such extraordinary city services may and shall attach as a lien to the benefitted property when perfected according to law under such conditions as state law may allow under authority of the Texas Health and Safety Code and as further authorized by this Code at subsection 14-65(b) et seq., and section 14-64, for issuance of service to fix a lien.

(j) It is the affirmative duty of any person responsible for solid waste to ensure and perform legal disposal of solid waste. Persons responsible for solid waste are property owners, tenants/occupants, or generators. Persons alleged to be in violation of this chapter must present to the judge or trier of fact a true and credible receipt from a duly licensed and regulated landfill or disposal facility to demonstrate the waste in question has been legally and properly disposed according to its character (type of material).

(k) No collection in alleys. It shall be unlawful for any person to place brush, bulky waste or any form of debris in alleys.

(l) Refusing material for disposal, deposit, or recycling. The director or the director's authorized representative, shall have the right to refuse acceptance of any material for disposal or deposit for recycling at any city-owned facility when, in his/her opinion, such material poses by its nature a threat to the health and safety of any employee, may result in pollution of the environment, pose a detriment to the site, or violate state operation permits as a result of its disposal or deposit in facility or site area. This discretionary authority pertains to any city operated facility, including, but not limited to, brush recycling facilities, the city's household hazardous waste site(s), and any other fixed or temporary sites used by the city for purposes of solid waste management.

(m) It shall be unlawful for the owner, manager, tenant or occupant of any premises or building within the city, or the agent or employee of any such person to place, allow or suffer to remain after it has been emptied by the city or city's contractor, any container for solid waste, rubbish, or trash in, on, or about any street, plaza, park, sidewalk, or other public place, except in an alley in the rear of such premises.
(Ord. No. 2010-11-04-0955, § 1(Att. I), 11-4-10; Ord. No. 2013-01-31-0079, § 1, 1-31-13; Ord. No. 2015-09-10-0760, § 1, 9-10-15; Ord. No. 2018-03-29-0204, § 1, 3-29-18)

Sec. 14-46. Burning of solid waste.

It shall be unlawful for any owner, manager, tenant, and/or occupant of any dwelling unit, building, and/or premises to burn solid waste on any premise within the city, unless approval has been granted by the TCEQ and the fire department.
(Ord. No. 2010-11-04-0955, § 1(Att. I), 11-4-10)

Sec. 14-47. Objectionable or unsightly matter and dumping declared public nuisances.

(a) It shall be unlawful and declared a nuisance for any person owning, claiming, occupying, or having supervision or control of any real property, occupied or unoccupied, within the corporate limits of the city or its extraterritorial jurisdiction to permit or allow any refuse, rubbish, trash,

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debris, filth, carrion, junk, garbage, impure or unwholesome matter of any kind, or other objectionable or unsightly matter of whatever kind to remain upon any such real property, or within any public easement on or across such real property, or upon any adjacent public street or alley right-of-way between the property line of such real property and where the paved surface of the street or alley begins, or that is visible from another's property.

(b) It shall be unlawful and declared a nuisance for any person, entity, or an agent or employee for a person or entity to cast, throw, drop, place, sweep, deposit, accumulate, or spill refuse, rubbish, trash, debris, filth, carrion, junk, garbage, impure or unwholesome matter of any kind, or other objectionable or unsightly matter of whatever kind in or upon any street, sidewalk, park, canal, stream, drain, sewer receiving basin, or any other public or private property within the city or its extraterritorial jurisdiction, except as provided in this chapter.
(Ord. No. 2010-11-04-0955, § 1(Att. I), 11-4-10)

Secs. 14-48—14-59. Reserved.

ARTICLE VI. ENFORCEMENT AND PENALTIES

Sec. 14-60. Enforcement program.

(a) All officials duly authorized, including but not limited to peace officers of the state, and those authorized by statute to issue citations for Class C criminal misdemeanors, may assist the city in enforcement of this chapter.

(b) Additionally, the directors of the departments of solid waste management, public works, code enforcement services, and the Metropolitan Health District shall have authority, at their discretion, to designate trained personnel to issue notices of violation (NOVs) and to make accompanying affidavits to support prosecution as part of the city's ongoing efforts to regulate and manage wastes for benefit of the public health, safety, and welfare, in coordination with the office of the city attorney, the municipal courts, the police department, the Texas Commission on Environmental Quality, and any agencies with jurisdictional interests in solid waste regulation and management.
(Ord. No. 2010-11-04-0955, § 1(Att. I), 11-4-10)

ARTICLE VII. LOT CLEARANCE

Sec. 14-61. Declaration of public nuisances; areas required to be kept clear; duty of property owners; time period to abate.

(a) As provided by V.T.C.A. Health and Safety Code, ch. 342, V.T.C.A. Local Government Code, chs. 51 and 54, and the home-rule powers of the city, the following conditions are found to be a threat to the public health, safety, and/or welfare and are declared a public nuisance; the prompt abatement of which is a public necessity:

(1) Wherever a lot or parcel contains weeds and/or brush over twelve (12) inches in height within one hundred fifty (150) feet of the curb line of adjacent streets and where no curb exists, to the edge of the street or road surface, or within one hundred fifty (150) feet of a property line belonging to another.

(2) All lots and parcels of land within the city shall be kept completely free and clear of garbage, trash, debris, rubbish, waste, wood and metal scrap, inoperative or abandoned appliances and furniture. Weed and grass cuttings, however, need not be removed unless they will be of such quantity as to be a hazard to pedestrians and notice is issued by the director of development services ("director") or designee to the property owner, tenant or occupant.

(3) Bamboo growth that crosses the property line of another.

(4) If a tract of land is smaller than three (3) acres, the entire tract shall be kept free of weeds and brush over twelve (12) inches in height.

(b) It is the duty and responsibility of the owner of a lot or parcel of land within the city to keep and maintain said lot or parcel of land free of public nuisances.

(c) The owner of the lot or parcel must abate any public nuisance within seven (7) calendar days after the date the notice is mailed.
(Ord. No. 2010-11-04-0955, § 1(Att. I), 11-4-10; Ord. No. 2011-09-29-0788, § 2, 9-29-11)

Sec. 14-62. Issuance, service of notice.

(a) Whenever the director of development services receives information of the existence of any lot or parcel that contains a public nuisance as defined by this Code, the director of development services or sanitarian shall cause written notice to be issued to the owner of the lot or parcel of the violation provided that notice shall not be required prior to abatement of violations described in section 14-65.

(b) Unless specified otherwise, notice shall be provided in one (1) of the following forms:

(1) Personally in writing.

(2) By letter mailed to the owner's address as recorded in the Bexar County Appraisal District records and by posting the notice on a placard attached to a stake driven into the ground on the lot or parcel to which the violation relates.

(3) If service cannot be obtained by the above, then notice shall be given by one (1) of the following:

a. By publication at least once.

b. By posting the notice on or near the front door of each building on the lot or parcel to which the violation relates.

c. By posting the notice on a placard attached to a stake driven into the ground on the lot or parcel to which the violation relates, if the lot or parcel contains no buildings.

(c) When the known owner is a corporation, notice shall be served or addressed for delivery to the president, vice-president, or registered agent of the corporation. When the corporation shall fail to appoint or maintain a registered agent, or when ever its officers or registered agent cannot with reasonable diligence be found at the registered office, duplicate copies of the notice may be served on the secretary of state by sending said duplicate copies by certified mail, return receipt requested.

(d) Unless specified otherwise, notice under this article shall contain all of the following items:

(1) An identification, which is not required to be a legal description, of the lot or parcel.

(2) A description of the Code violations that occurred on the lot or parcel.

(3) The time period, as provided in this article, in which the owner must abate the nuisance.

(4) A statement noting that upon failure of the owner to abate the situation within such time period, the city may cause the correction and abatement work to be done on its own and charge the owner for the expense involved as set out in this article, and upon failure of the owner to pay the city for such expense, the city may fix a lien on the lot or parcel for the expense involved.

(d) The city may also inform the owner that if the owner commits another violation of the same kind or nature that poses a danger to the public health and safety on or before the first anniversary of the date of notice, the city, without further notice, may correct the violation at the owner's expense and assess the expense against the lot or parcel.
(Ord. No. 2010-11-04-0955, § 1(Att. I), 11-4-10; Ord. No. 2011-09-29-0788, § 2, 9-29-11)

Sec. 14-63. Unlawful noncompliance; fines.

(a) It shall be unlawful for the owner of any land within the city to knowingly, recklessly, or with criminal negligence fail to have any weeds, brush, or rubbish mowed, cut, removed, or otherwise bring property into compliance with the standards set forth in section 14-61.

(b) Upon conviction for violation hereof, the owner shall be fined an amount no less than one hundred dollars ($100.00) and not more than two thousand dollars ($2,000.00) provided, however, in the event a defendant has once previously been convicted under this article, the defendant shall

be fined an amount no less than two hundred dollars ($200.00) and shall be fined no less than three hundred dollars ($300.00) for a third conviction and for each conviction thereafter. Each day a violation is permitted to exist shall constitute a separate offense.

(c) Prosecution for offenses under this section shall not affect the right of the city to abate the nuisance in a manner provided by this article, nor shall abatement by the city be a bar to prosecution for the offenses.
(Ord. No. 2010-11-04-0955, § 1(Att. I), 11-4-10)

Sec. 14-64. Abatement by city; payment of costs by owner; imposure of lien for nonpayment; removal of trees for access; alleyway clearance.

(a) If the owner fails to comply with the terms of this article within seven (7) days of notice of a violation, the city may cause the work necessary to abate the violation to be done at the owner's expense.

(b) Whenever the city shall abate a violation as provided by this article, the director of development services may select a private contractor to cut the vegetation and/or clean the land to bring the lot or parcel into compliance.

(c) Unless otherwise provided for in this article, administrative staff may conduct a review of the abatement procedures to ensure compliance with this article.

(d) The city shall assess costs to the owner for all work done or improvements made as is needed to bring any lot or parcel into compliance with this article, including an administrative cost of two hundred fifty dollars ($250.00) and cause the expense hereof to be assessed on the real estate, lot or lots upon which such expense is incurred.

(e) A statement of the costs incurred by the city shall be mailed to the owner in a manner provided for in this article. The statement shall demand payment within thirty (30) days from the date of mailing. Said statement shall serve as notice of completed abatement under this section.

(f) If such statement has not been paid within such period, the city may file a statement of expenses incurred with the Bexar County Clerk stating the owner's name, if known, and the legal description of the lot or parcel. The statement of expenses or a certified copy of the statement shall be prima facie proof of the expenses incurred. Such statement shall be and the city shall have a privileged lien for expenditures made and interest accruing in the manner provided for in V.T.C.A., Health and Safety Code § 342.007(c). Such liens shall be inferior only to tax liens and liens for street improvements. The city may foreclose such liens in a proceeding brought in accordance with applicable law. The remedy allowed in this subsection shall not be the city's sole remedy.

(g) It may be necessary at times to remove trees or parts thereof in order for the city to effect entry of mowing or clearing equipment. In such cases, trees or parts thereof may be removed if there is no other reasonable means to effect such entry and shall be limited to the extent necessary to do so. Any tree which is six (6) or more inches in diameter at fifty-four (54) inches above the ground should not be removed without coordination with the city arborist. The cost of this work shall be included in the cost charged to the owner.

(h) It shall be the duty of an owner, tenant or occupant of properties abutting an alleyway to keep the alleyway clear of obstructions caused by intruding and overhanging brush and/or tree limbs. There must be a clearance of at least fourteen (14) feet high by fifteen (15) feet wide for vehicles to enter the alley and the alley bed must be reasonably free of debris and passable to the vehicle.
(Ord. No. 2010-11-04-0955, § 1(Att. I), 11-4-10; Ord. No. 2011-09-29-0788, § 2, 9-29-11; Ord. No. 2025-09-18-0629, § 2(Att. C), 9-18-25)

Sec. 14-65. Summary abatement by city.

(a) Any violation of section 14-61 occurring within one thousand (1,000) feet of public or private elementary school, middle school, high school, or daycare property lines is hereby declared

to be a public health and safety emergency, and the city shall, without prior notice, summarily abate these violations.

(b) Weeds within the location parameters enumerated in section 14-61 which are in excess of forty-eight (48) inches in height and are an immediate danger to the health, life, or safety of any person may, without prior notice, be abated by the city.

(c) A second or subsequent violation of the same kind or nature that poses a danger to the public health and safety which occurs on or before the first anniversary of the date of notice of the previous violation may, without prior notice, be abated by the city.

(d) Expenses incurred in such summary abatements shall be assessed to the owner and a lien created in the manner provided for in this article.

(e) No later than the tenth day after the date of summary abatement, the owner of the lot or parcel shall be notified in accordance with this article. The notice shall contain the following items:

(1) Identification, which is not required to be a legal description, of the lot or parcel;

(2) Description of the violations that occurred on the lot or parcel;

(3) Statement that the city has abated the violation;

(4) Date the city completed the abatement;

(5) Statement that the owner will be charged for the expense involved as set out in this article, and upon failure of the owner to pay the city for such expense, a lien may be fixed on the lot or parcel for the expense involved; and

(6) A statement of the owner's right to request an administrative hearing to appeal the city's summary abatement actions.

(Ord. No. 2010-11-04-0955, § 1(Att. I), 11-4-10)

Sec. 14-66. Owner's right to hearing of summary abatement.

(a) Any affected owner may request an administrative hearing by filing a written request with the director of development services not later than the 30th day after the date of the summary abatement.

(b) The hearing shall be conducted not later than the 20th day after the date the request is filed unless otherwise waived by the owner. The owner may testify, present witnesses, or offer written information related to the city's summary abatement.

(c) The administrative hearing shall be conducted before the city's board charged with declaring public nuisances in accordance with its hearing rules and procedures. After taking testimony the board may uphold or reverse the determination of the director of development services.

(Ord. No. 2010-11-04-0955, § 1(Att. I), 11-4-10; Ord. No. 2011-09-29-0788, § 2, 9-29-11)

Sec. 14-67. Remedies not exclusive.

The remedies set forth in this chapter are cumulative of all other remedies available to the city relating to the subject matter hereof. Specifically, the city attorney may institute any legal action to enforce this chapter or enjoin or otherwise cause the abatement of any condition described in this chapter, as well as for the recovery of all expenses incurred in connection therewith, including without limitation administrative and legal expenses, attorney's fees and costs, and for civil penalties as provided by law.

(Ord. No. 2010-11-04-0955, § 1(Att. I), 11-4-10)

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Chapter 15

HEALTH*

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State law reference—General health power of cities, Vernon's Ann. Civ. St. art. 1175(28), (34).

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ARTICLE I. IN GENERAL

Sec. 15-1. Assistance to needy persons; qualifications for participants; prescribing regulations and payment.

(a) Pursuant to the provisions of section 3, paragraph 12 of the charter of the city, needy persons who are in need of the basic necessities of life due to incapacity or unemployability because of physical or mental illness or handicap or disabling accident, or who are in such need because of the death, desertion, incarceration or enforced absence of the head of a family, and who are in such need because they are not eligible for assistance under the provisions of the state welfare act or under the provisions or any of the laws of the state, shall be eligible for public assistance funds appropriated by the city to provide for them the basic necessities of life.

(b) The director of welfare shall prescribe specific eligibility requirements and payments, which may be more restrictive than those contained in this section, subject to approval of the city manager
(Code 1959, § 18-4; Ord. No. 23885, 1, 11-1-56; Ord. No. 36767, § 1, 8-22-68)

Sec. 15-2. Fees for services from health department.

(a) In cases where individuals are covered by Medicaid or private insurance, the city's STD, tuberculosis and immunization clinics will bill Medicaid or the individual's private insurance company for clinic fees at the applicable Medicaid or private insurance company's reimbursement rate. Individuals not covered by Medicaid, private insurance or a qualified immunization program, may be assessed fees on a sliding scale based on the patient's family income. No patient otherwise qualified to receive health clinic services will be denied said services based on an ability to pay the established fee.

(b) Individuals not covered by the provisions in subsection (a) who receive vaccinations from the health department will reimburse the health department based on the current fee schedule of the vaccine used, plus all applicable administrative fees.

(c) All individuals, organizations and and/or businesses, including foster homes, requesting health department inspections for any type of facility or establishment not currently regulated or licensed elsewhere in this Code shall pay a sixty dollar ($60.00) fee for the initial inspection. Correction of violation(s) is to be verified by the health department after receiving written notification from the permit holder that the violations have been eliminated or at the end of the specified period of time and be noted on the inspection report and in the health department's records. All fees shall be paid before the inspections are performed. Fees collected under this section shall be deposited into the city general fund.

(d) Non-food or environmental re-inspections, which shall include but not be limited to the re-inspection of swimming pools and spas, day care facilities, foster homes, hotels/motels, rendering, smoking violations, air pollution sources, and mobile living parks, are established as follows:

Cost of reinspection shall be:

First reinspection	$100.00
Second reinspection	115.00
Third reinspection.	125.00
Fourth reinspection	150.00

(e) The administrative service fee charged by the health department for all office visits for non Medicaid patients is hereby established at fifteen dollars ($15.00).

(f) A fee of two dollars ($2.00) is hereby established for a protective cover for birth and death certificates.
(Code 1959, § 18-5; Ord. No. 54275, §§ 7-9, 9-17-81; Ord. No. 57568, §§ 6, 7, 9-15-83; Ord. No. 67911, § 9, 9-15-88; Ord. No. 71256, 3-22-90; Ord. No. 72269, § 11, 9-13-90; Ord. No. 76476, §§ 6, 7, 9-10-92; Ord. No. 86606, §§ 20, 22, 9-11-97; Ord. No. 90494, §§ 13, 14, 9-16-99; Ord. No. 94584, § 12, 9-20-01; Ord. No. 98187, § 9, 9-18-03; Ord. No. 101405, §§ 11, 12, 9-15-05; Ord. No. 2006-09-07-1002, § 2, 9-7-06; Ord. No.

2006-09-07-1003, §§ 3, 4, 9-7-06; Ord. No. 2007-09-13-0973G, § 9, 9-13-07; Ord. No. 2009-09-17-0731F, § 1, 9-17-09; Ord. No. 2011-09-15-0752, § 1(Att. B), 9-15-11; Ord. No. 2013-09-12-0631, § 2(Att. E), 9-12-13; Ord. No. 2014-09-18-0694, § 2(Att. E), 9-18-14; Ord. No. 2015-09-10-0758, § 2(Att. E), 9-10-15; Ord. No. 2016-09-15-0697, § 2(Att. C), 9-15-16)

Sec. 15-3. Fees for emergency medical services.

(a) The fee for the transportation (transport) of patients requiring basic life support emergency medical services is one thousand five hundred dollars ($1,500.00) per patient plus twelve dollars ($12.00) per mile. The fee for the transportation (transport) of patients requiring advanced life support level I emergency medical services is one thousand five hundred dollars ($1,500.00) per patient plus twelve dollars ($12.00) per mile. The fee for the transportation (transport) of patients requiring advanced life support level II emergency medical services is one thousand five hundred dollars ($1,500.00) per patient plus twelve dollars ($12.00) per mile. In addition to the transportation fee, a surcharge of one hundred dollars ($100.00) is assessed to each nonresident patient who is transported for emergency medical services. A nonresident is any person who does not permanently reside within the territorial limits of the city or who resides within the territorial limits of an adjoining incorporated city which does not have a contract with the city to provide emergency medical services.

(b) The fee for an emergency medical services call which does not require transportation (non-transport) is one hundred dollars ($100.00) per patient.

(c) The fee for the transportation of a deceased person to the morgue is seventy dollars ($70.00).

(d) There is hereby established the following schedule of fees to be paid to the city by each patient who is provided or administered the listed emergency medical supplies, medications, or services, per each use:

	Per Use
(1) Albuterol	$5.00
(2) Dextrose	5.00
(3) Epinephrine	5.00
(4) Atrophine	5.00
(5) Naloxone	10.00
(6) Normal saline	5.00
(7) Bandaging	10.00
(8) Intravenous line	10.00
(9) Oxygen and related supplies	15.00
(10) Electrocardiogram monitor and electrocardiogram related supplies	35.00
(11) Amiodarone	170.00
(12) Spinal immobilization (blocks, straps, cervical collar, and backboard)	20.00
(13) Bag valve unit mask	10.00
(14) Yellow blanket	3.00
(15) Air splint	10.00
(16) Laryngoscope blade	5.00
(17) EZ-Intraosseus (IO) needle	125.00
(18) Glucagon	100.00
(19) Analgesic medication	10.00
(20) CPAP mask & CPAP valve	40.00
(21) Endo-tracheal tube checker	15.00
(22) Endo-tracheal tubes	15.00
(23) King tube	40.00
(24) Diazepam	175.00
(25) Mucosal Atomization Devices (MAD)	5.00
(26) Ondansetron (Zofran)	3.00
(27) Adenosine	50.00
(28) Argyle Salem Sump Tube 6 FR	10.00
(29) Olanzapine (Zyprexa) (IV/IM)	40.00
(30) Diphenhydramine (Benadryl) (IV/IM)	3.00
(31) Magnesium sulfate	3.00
(32) Methylprednisolone (Solu-Medrol)	5.00
(33) Vasopressin	5.00
(34) Nitroglycerin spray	20.00
(35) Olanzapine (Zyprexa)	20.00
(36) Flex Guide ET Tube Intro 15 Fr	10.00
(37) Diltiazem (Cardizem)	3.00
(38) Dopamine drip	15.00
(39) Nitroglycerin drip	15.00
(40) Hemostatic agents	30.00
(41) Pelvic binders	50.00
(42) Levophed	10.00
(43) Tourniquet	25.00
(44) Lidocaine	5.00

(Code 1959, § 18-7; Ord. No. 55322, 5-13-82; Ord. No. 57563, §§ 1—3, 9-15-83; Ord. No. 61332, § 1, 8-29-85; Ord. No. 63240, § 1, 7-16-86; Ord. No. 74297, § 2, 9-12-91; Ord. No. 74298, § 2, 9-12-91; Ord. No. 76470, § 1, 9-10-92; Ord. No. 84793, §§ 1, 2, 9-19-96; Ord. No. 88493, §§ 1, 2, 9-17-98;

Ord. No. 92523, §§ 1, 2, 9-14-00; Ord. No. 94583, § 1, 9-20-01; Ord. No. 98191, § 1, 9-18-03; Ord. No. 99746, § 1, 9-16-04; Ord. No. 101394, § 1, 9-15-05; Ord. No. 2006-09-07-1001, § 1, 9-7-06; Ord. No. 2007-09-13-0973F, § 2, 9-13-07; Ord. No. 2008-09-11-0777, § 4, 9-11-08; Ord. No. 2009-09-17-0731E, § 2, 9-17-09; Ord. No. 2010-09-16-0791, § 1(Att. A), 9-16-10; Ord. No. 2011-09-15-0752, § 1(Att. A), 9-15-11; Ord. No. 2012-09-13-0699, § 2(Att. B), 9-13-12; Ord. No. 2013-09-12-0631, § 2(Att. D), 9-12-13; Ord. No. 2014-09-18-0694, § 2(Att. D), 9-18-14; Ord. No. 2018-09-13-0713, § 1(Att. B.2), 9-13-18; Ord. No. 2024-09-19-0705, § 2(Att. D), 9-19-24)

Sec. 15-4. Health department laboratory fees.

(a) A fee in the amount of twenty-five dollars ($25.00) per test is hereby established for all persons requesting a water bacteriology test from the health department laboratory.

(b) The fee charged by the health department for T-Spot.®TB ELISPOT interferon gamma releasing assay (IGRA) for Tuberculosis testing is hereby established at sixty-nine dollars ($69.00).

(c) Veterinarian clinics located outside of the city limits shall be charged a rabies testing fee of forty dollars ($40.00) per test by the health department.

(d) The following schedule of testing fees are hereby established to be paid to the health department by private medical providers and private laboratories:

Test	*Per Test*
Rapid Plasma Reagin (RPR) Screen Qualitative	$3.67
Rapid Plasma Reagin (RPR) Screen Quantitative	13.97
Treponema Pallidum Particle Agglutination (TPPA)	6.23
Chlamydia Trachomatis/Neisseria Gonorrhea (CT/GC) Combo Amplified DNA Probe	30.90
HIV Ag/Ab Combo EIA Screen	4.56
HIV Western Blot	46.45
Frozen Dessert Petri Film Aerobic Count	7.98

(Ord. No. 61333, § 2, 8-29-85; Ord. No. 67911, § 10, 9-15-88; Ord. No. 84794, § 2, 9-19-96; Ord. No. 98187, § 11, 9-18-03; Ord. No. 2007-09-13-0973G, § 10, 9-13-07; Ord. No. 2014-09-18-0694, § 2(Att. E), 9-18-14)

Editor's note—Ord. No. 2014-09-18-0694, § 2(Att. E), adopted September 18, 2014, changed the title of section 15-4 from "Fee for water bacteriology test" to "Health department laboratory fees." The historical notation has been preserved for reference purposes.

Sec. 15-5. Reserved.

Editor's note—Ord. No. 2014-09-18-0694, § 2(Att. E), adopted September 18, 2014, repealed the former section 15-5 in its entirety, which pertained to the fee for water lead test, and derived from Ord. No. 67911, § 11, adopted September 15, 1988, and Ord. No. 94584, § 14, adopted September 20, 2001.

Sec. 15-6. Consulting fees.

(a) A consulting fee is established to be charged to institutions, organizations and individuals utilizing health department data, patients and/or facilities in research and/or demonstration projects. This consulting fee shall be two hundred fifty dollars ($250.00) per project or one-half (0.5) percent of the total project cost, whichever is higher. Consulting fees shall not be charged to research and/or demonstration projects that are cosponsored by the health department and in which the health department receives other project related financial support.

All potential research and/or demonstration projects that will utilize health department data, patients and/or facilities must be reviewed by the health department institutional review board and receive approval from the said board.

(b) A consulting fee is established to be charged to individuals and establishments requesting consulting services from the food and environmental division of the health department. This consulting fee shall be one hundred thirty-five dollars ($135.00) per hour with a one-hour minimum.

(c) Fees collected under this section shall be deposited in the city general fund.

(d) The established consulting fees shall be paid before consulting activities related to the health department can take place.
(Ord. No. 67911, § 12, 9-15-88; Ord. No. 2015-09-10-0758, § 2(Att. E), 9-10-15)

Sec. 15-7. Immunization record copy fee.

Individuals requesting copies of immunization records shall pay a fee of four dollars ($4.00) per record issued. Fees will only be charged for replacement records; the initial immunization record will be issued at no charge as a part of the routine immunization process.
(Ord. No. 67911, § 13, 9-15-88; Ord. No. 94584, § 16, 9-20-01; Ord. No. 99735, §§ 5, 6, 9-16-04)

Secs. 15-8—15-17. Reserved.

Sec. 15-18. Cross connection survey fees.

All individuals or businesses requesting a cross connection survey inspection from the health department shall pay a one hundred ninety-four dollars ($194.00) fee for each cross connection survey inspection performed. Fees shall be paid before surveys or inspections are performed. Fees collected under this section shall be deposited into the city general fund.
(Ord. No. 74294, § 9, 9-12-91; Ord. No. 94584, §§ 17, 18, 9-20-01; Ord. No. 98187, § 13, 9-18-03; Ord. No. 2018-09-13-0713, § 1(Att. C.3), 9-13-18)

Sec. 15-19. Asbestos inspection fee.

All individuals and/or businesses requesting an asbestos demolition inspection from the health department shall pay a ninety-five dollar ($95.00) fee for each site inspected. Fees shall be paid before inspections are performed. Fees collected under this section shall be deposited into the city general fund.
(Ord. No. 74294, § 10, 9-12-91; Ord. No. 94584, §§ 19, 20, 9-20-01; Ord. No. 98187, § 15, 9-18-03)

Sec. 15-20. Fee for health profiles.

A fee in the amount of five dollars ($5.00) for a CD ROM copy and fifteen dollars ($15.00) for a bound copy of the annual Health Profiles published by the San Antonio Metropolitan Health District is hereby established for all persons requesting the annual report on the health of the community. Fees collected under this section shall be deposited into the city general fund.
(Ord. No. 94584, §§ 27, 28, 9-20-01)

ARTICLE II. COMMUNICABLE DISEASES

DIVISION 1. GENERALLY

Sec. 15-21. Vaccination prerequisite to admission to schools.

No child or other person shall be permitted to attend any of the public schools, or any place of education within this city, unless such child or other person shall first present a certificate from some duly qualified physician to the director of public health that such child or other person has been successfully vaccinated as required by state and local school district regulations. Such certificate shall give a description of such child or person, his age and nationality, the kind of vaccination used, and such other information as the director of public health may require, for which purpose the director of public health shall furnish the necessary blanks to all persons requiring the same.
(Code 1950, § 14-3; Code 1959, § 18-9)

Sec. 15-22. Certificate of vaccination.

The director of public health, or his assistant, shall give a certificate of such vaccination, or certify to the correctness of such certificate presented from some other physician, and such certificate, or certified certificate, shall be presented to the superintendent, principal or teacher of the school at which such child or person seeks to be admitted, before admission.
(Code 1950, § 14-4; Code 1959, § 18-10)

Sec. 15-23. List of vaccinated or unvaccinated persons in schools.

It shall be the duty of all persons conducting any place or institution of education within the limits of the city to furnish the director of public health, whenever so required, a list by name of all teachers, pupils, employees and other persons connected

therewith, if vaccinated, and if not vaccinated such statement shall so show. The director of public health may require the certificate of such duly qualified physician that such teachers, pupils, employees and other persons connected therewith, have been successfully vaccinated within five (5) years preceding the date of such report, such certificate to give such description and other particulars to be furnished on such blanks as are provided for in section 15-21.
(Code 1950, § 14-5; Code 1959, § 18-11)

Sec. 15-24. When vaccination compulsory.

Whenever in the opinion of the director of public health it is necessary for the public health, or the health of any such place or institution of education, that all teachers, pupils, employees or other persons therewith connected be vaccinated, the board of health may require such vaccination within such period of time and under such regulations as the director of public health may require.
(Code 1950, § 14-6; Code 1959, § 18-12)

Sec. 15-25. Diseased persons, notification.

It shall be unlawful for any person afflicted with any communicable disease to be or remain in this city, or for any physician to treat any such afflicted person, or for any person to keep, nurse or care for any such afflicted person, unless notice of the presence of such contagious disease be given to the director of public health as required in this article and also unless such afflicted person be kept, cared for and treated under the conditions prescribed in this article. The presence and treatment otherwise than as aforesaid of any person afflicted with a contagious disease is hereby prohibited and declared to be a public nuisance and a menace to the health of the city, which it shall be unlawful for any person to permit, maintain or continue in any apartment or on any premises in this city owned, or occupied or controlled by him.
(Code 1950, § 14-1; Code 1959, § 18-8)

Sec. 15-26. Standard of care of diseased persons required.

(a) Every person in this city afflicted with a contagious disease, whether in any hospital, either public or private or on private premises, shall be kept, cared for and treated under the following conditions:

(1) *Room.* The room or apartment in which the patient shall be kept shall be clean and shall have sound and tight walls, roof, floor, windows and doors. It shall have ample and suitable facilities for light and ventilation, and such room shall be so situated or arranged as to be completely shut off and isolated from members of the family, or other persons not authorized by the health authorities to enter such room. All furniture, bedding and other things in such room shall be kept at all times in a clean and sanitary condition.

(2) *Physician.* A legally qualified physician shall be in attendance on the patient, and shall make not less than one visit to such patient each day prior to convalescence.

(3) *Nursing.* The patient shall be placed and remain at all times prior to convalescence in the care of a trained nurse who shall be constant attendance.

(4) *Food, drugs and supplies.* The patient shall be regularly provided with proper and sufficient food, drugs, and medical supplies suited to the case.

(b) The enumeration of the foregoing conditions shall not be held to excuse the absence or neglect of any other requirements duly made by law, ordinance or the director of public health.
(Code 1950, § 14-7; Code 1959, § 18-13)

Sec. 15-27. Hospitalization of diseased persons, when required.

Whenever it shall appear to the director of public health that any person in this city is afflicted with any contagious disease, and that such person is not being kept, cared for, or treated in compliance with the requirements of this article, or any other requirements or restrictions imposed by law upon such person, or that such person neglects, fails or refuses to observe and obey any law for such cases made and provided, it shall become the duty of the director of public health, and he is hereby authorized and directed to pro-

ceed to remove, or cause to be removed, at once such afflicted person to the contagious diseases annex of the county and city hospital or to any other public hospital which may be established by ordinance of this city for the purpose of treating contagious diseases, where such afflicted person shall be kept, cared for and teated under the direction of the director of public health and at public expense. At the option of the patient, he may be removed to any other hospital willing to receive the patient, and, in the option of the director of public health, able and willing to provide the required isolation, care and treatment.
(Code 1950, § 14-8; Code 1959, § 18-14)

Sec. 15-28. Removal of diseased persons.

No person shall remove a smallpox or cholera patient or person suffering with any disease, without the consent of the director of public health or his assistants. Such person may, however, be removed to the hospital, pest house or such other place as the director of public health may designate.
(Code 1950, § 14-10; Code 1959, § 18-15)

Sec. 15-29. Tampering with notices of presence of disease.

It shall be unlawful for any person to remove or cause to be removed from any house, wall, fence, or other place, any placard, bill or other notice announcing the existence of a contagious disease within or upon the premises; provided, the director of public health may by written order permit the removal of such placard, bill or notice.
(Code 1950, § 14-11; Code 1959, § 18-16)

Sec. 15-30. Circulation of false rumors of disease.

It shall be unlawful for any person within the corporate limits of the city falsely or willfully or wantonly to circulate or cause to be circulated any report to the effect that any contagious or infectious disease exists in the city.
(Code 1950, § 14-12; Code 1959, § 18-17)

Secs. 15-31—15-40. Reserved.

DIVISION 2. VENEREAL DISEASES

Sec. 15-41. Duty of person to report.

Every person within the city who shall be afflicted with any venereal disease shall immediately report such fact to the director of public health, and place himself under the care of some competent physician, or person authorized to prescribe or treat such disease, or if unable to procure the proper treatment for such disease shall report this fact to the director of public health.
(Code 1950, § 14-13; Code 1959, § 18-18)

Sec. 15-42. Duty of parent or guardian of minor to report.

If any minor living with his parent or guardian in the city shall be afflicted with any venereal disease, such parent or guardian shall, immediately upon discovering the existence of such disease, make report thereof to the director of public health as required of all other diseased persons under section 15-41.
(Code 1950, § 14-14; Code 1959, § 18-19)

Sec. 15-43. Who may prescribe treatment.

No druggist nor any other person, except a legalized practitioner of medicine, shall be permitted to prescribe, sell or give any remedy, proprietary, patent or other medicine, for the treatment of venereal diseases.
(Code 1950, § 14-15; Code 1959, § 18-20)

Sec. 15-44. Venereal clinic.

There is hereby established and provided a suitable clinic, as determined by the director of public health, as a place for the detention and custody of persons who may be subject to quarantine for venereal disease, and who should be segregated for the provisions of the law made and provided in this particular.
(Code 1950, § 14-16; Code 1959, § 18-21)

Secs. 15-45—15-60. Reserved.

ARTICLE III. OCCUPATIONAL INJURIES

Sec. 15-61. City policy.

It is hereby declared to be the policy of the city to protect the health and welfare of its citizens by the implementation and adoption of safety measures in industry and enterprise by protecting working men and women against unsafe and hazardous working conditions.
(Code 1959, § 10C-1; Ord. No. 39875, § 1, 8-26-71)

Sec. 15-62. Safety and health regulations adopted.

The rules and safety standards prescribed by the United States Department of Labor as adopted for application throughout the state by the Texas Occupational Safety Board, such rules and safety standards published in the Federal Register in Volume 36, Number 75, Part II and entitled, "Safety and Health Regulations for Construction," be and the same are hereby adopted by the city for application throughout the corporate limits of the city. Three (3) copies of the Federal Register, Volume 36, Number 75, Part II, marked Exhibit "A," are incorporated by reference in this section and have been filed in the office of the city clerk pursuant to Section 17 of the city charter for permanent record and inspection.
(Code 1959, § 10C-2; Ord. No. 39875, § 2, 8-26-71)

Sec. 15-63. Definitions.

For the purposes of this article, the following definitions are adopted.

Employee shall mean a person who works for an employer for wages, compensation, or other things of value, but shall not include any person employed in the domestic services of another in a private residence.

Employer includes every person, firm, corporation, partnership, stock association, agent, manager, representative or foreman or any other person having control or custody of any employment, place of employment, or any employee; except carriers regulated by the Interstate Commerce Commission.

Place of employment shall mean every place where, either temporarily or permanently, any trade, industry, or business is carried on, or where any person is directly or indirectly employed by another for direct or indirect gain or profit, but not including domestic service performed in a private residence.

Safe and *safety* as applied to employment or places of employment, mean such freedom to employees from occupational injury as the nature of the employment reasonably permits.

Safety device and safeguard shall be given a broad interpretation so as to include any practicable method of mitigating or preventing occupational injury.
(Code 1959, § 10C-3; Ord. No. 39875, § 3, 8-26-71)

Sec. 15-64. Safety measures required of employers.

(a) Every employer shall furnish and maintain employment and a place of employment which shall be reasonably safe and healthful for employees. Every employer shall install, maintain and use such methods, processes, devices and safeguards including methods of sanitation and hygiene as are reasonably necessary to protect the life, health and safety of such employees and shall do every other thing reasonably necessary to render safe such employment and place of employment.

(b) Every employer shall comply with the rules and safety regulations prescribed in this article, provided any employer or group of employers in the same or similar industry, trade or business shall, if and when exempted by the Texas Occupational Safety Board from the application of state safety regulations, be exempted from the application of the safety regulations prescribed in this article.
(Code 1959, § 10C-4; Ord. No. 39875, § 4, 8-26-71)

Sec. 15-65. Enforcement.

The director of building inspections of the city shall have the power and duty to carry out the provisions of this chapter and the safety regulations prescribed in this article. He and his desig-

nated assistants are authorized to conduct site inspections to assure compliance with such safety regulations.
(Code 1959, § 10C-5; Ord. No. 39875, § 5, 8-26-71)

Sec. 15-66. Construction advisory board.

(a) To assist the director of building inspections in the enforcement of safety regulations, there is hereby created a construction advisory board consisting of five (5) members who shall be appointed by the city council. Such appointment shall be for a period of two (2) years. Board members shall serve without compensation. Board members shall be residents of the city and shall include:

(1) One (1) member of Association of General Contractors.

(2) One (1) representative of the building trades council.

(3) One (1) council member.

(4) One (1) layman.

(5) One (1) licensed practicing physician.

(b) The board members shall choose from among their number one member to act as chairman and one member to act as secretary. The board shall serve in an advisory capacity and shall make recommendations to and advise the director of housing and inspections in matters relating to compliance with and enforcement of the safety regulations.
(Code 1959, § 10C-6; Ord. No. 39875, § 6, 8-26-71)

Sec. 15-67. Penalty for violation of chapter and safety regulations.

It shall be unlawful for any person to do or perform any act prohibited by this article, and it shall be unlawful for any person to fail to do or perform any act required by this article, and any person so violating the provisions of this article and the safety regulations prescribed shall be deemed guilty of a misdemeanor and shall upon conviction be punished as provided in section 1-5. Each and every day of continuance thereof shall constitute a distinct and separate offense.
(Code 1959, § 10C-7; Ord. No. 39875, § 7, 8-26-71)

Secs. 15-68—15-80. Reserved.

ARTICLE IV. HOTELS*

Sec. 15-81. Definitions.

The term hotel, within the meaning of this article, is any hotel, lodging house or inn in the city having three (3) or more rooms where transient guests are fed or lodged for pay.
(Code 1950, § 29-1; Code 1959, § 18-59)

Sec. 15-82. Maintenance standards in general.

Every person who owns, manages or conducts any hotel in the city shall at all times keep and maintain the same, and each and every room, apartment or place and all fixtures, furniture, bedding and other things used in connection with such business in a thoroughly clean and sanitary condition. Each such hotel and any person engaged in conducting the same, shall, in addition to these special provisions, be subject to all provisions of chapter 13.
(Code 1950, § 29-2; Code 1959, § 18-60)

Sec. 15-83. Guest registration.

(a) No person registering in a hotel shall do so or attempt to do so under any false name or identity. No person registering in a hotel shall present for the purpose of registration, false identification or any identification which misrepresents or fails to disclose the registrant's true identity.

(b) It shall be the duty of the owner or operator of any hotel as defined in this chapter to keep, in a format chosen by the hotel sufficient to comply with the record keeping requirements set out in this ordinance, a register, of persons accommodated in such establishment for the purpose of verifying registrants' identities. Such register shall include, for all guest rooms and guest stays, either:

(1) The name of the registrant, the type of official photo identification presented and

*__Cross reference—__Hotel occupancy tax, § 31-66 et seq.
__State law reference—__Minimum health standards for hotels, Vernon's Ann. Civ. St. art. 4477-1, § 17.

any personal identification number contained thereupon, the registrant's address, and the expected duration of the registrant's stay in such establishment; or, in the alternative,

(2) Documentation that the person guaranteed payment using a valid credit card issued in the name of the registrant as provided by the registrant, which at the time of registration, was verified through the hotel's customary credit card verification procedures.

No such owner or operator, or his employee, agent or representative shall knowingly write, cause to be written or permit to be written, in any register in any such hotel any other or different name or designation than the true name of the person so registered therein, or the name by which such person is generally known.

(c) Such record or register shall be available at all times for inspection by any officer of the police department of the city, and maintained for a period of two (2) years.

(d) Any person who shall violate any provision of this section shall be guilty of a class C misdemeanor and shall, upon conviction, be punished by a fine of not more than five hundred dollars ($500.00).
(Code 1950, § 29-6; Ord. No. 22111, § 1, 1-5-56; Code 1959, § 18-64; Ord. No. 99517, § 1, 7-29-04)

Sec. 15-84. Rental of hotel rooms for periods less than twelve (12) hours prohibited.

It shall be unlawful for any hotel or the owner or operator of any hotel in the city to rent, offer to rent, or register to a lodger any room for a period of less than twelve (12) hours or to publish or advertise a rate for a room for a period of less than twelve (12) hours. The rental of a room to a lodger for which a contractual agreement was made at least seven (7) days prior to the lodger's arrival shall be excepted from the limitations and established in this subsection.
(Ord. No. 2008-12-11-1162, § 1, 12-11-08)

Secs. 15-85—15-100. Reserved.

ARTICLE V. RODENT CONTROL*

DIVISION 1. GENERALLY

Sec. 15-101. Definitions.

For the purposes of this article, the following terms shall mean:

Business building shall mean any structure, whether public or private, regardless of the type of material used in its construction, located within the boundaries of the city that is adapted to occupancy for the transaction of business, whether vacant or occupied, for the rendering of professional services, for the display, sale or storage of goods, wares or merchandise or for the performance of work or labor, including hotels, rooming houses, beer parlors, office buildings, public buildings, stores, markets, restaurants, grain elevators, abattoirs, warehouses, workshops and factories, or any other structures not mentioned above.

Opening shall mean and refer to any opening in the foundation, side or walls of any business building, including the roof, chimney, eaves, grills, windows, sidewalk grates and sidewalk elevators, through which a rat may enter.

Premises shall include all business buildings, outhouses, sheds, barns, garages, docks, wharves, piers, grain elevators and abattoirs, whether public or private, and any and all other structures used in connection with the operation of any business building as defined in this section.

Rat harborage shall mean any condition found to exist under or in which rats may find shelter or protection, and shall include any defective construction which would permit the entrance of rats into any business building.

Rat-stoppage shall mean any form of ratproofing designed to prevent the ingress of rats into business buildings. It is essentially the closing or protecting of all openings in exterior or interior walls and foundation or grates in a sidewalk of business buildings with ratproof materials installed in such a manner as to prevent rats from gaining entrance.
(Code 1950, § 47-1; Code 1959, § 18-40)

*State law reference—Requirement that rodents be exterminated in property used for human habitation, Vernon's Ann. Civ. St. art. 4477-1, § 7.

Sec. 15-102. Ratproofing new construction.

(a) Any new construction coming within the purview of this article within the city shall be planned according to the provisions of division 2 of this article, and no permit shall be issued for such new buildings until such plans conform to such provisions.

(b) It shall be unlawful for any person to construct, within the city, any business building, curb or farmers' market, unless such construction shall render the structure ratproof in accordance with the regulations prescribed by this article.

(c) The director of building inspections is charged with the specific enforcement of this section.
(Code 1950, § 47-5; Code 1959, § 18-41)

Sec. 15-103. Ratproofing existing construction.

The director of public health or his representative is authorized, for the purpose of eradicating any rat infestation, by written notice to order the owner, occupant, agent or any other person in custody of any rat-infested business building to protect such building by rat-stoppage as provided in division 2 of this article, regardless of the need for any remodeling of or repairs to such buildings otherwise; and further to order that such rat-control methods be employed as may be deemed necessary by the director of public health or his representatives to maintain such building free from rats. Such written order shall specify the time, in no event less than fifteen (15) days, for completion of such work and improvements. Unless such work and improvements are completed in accordance with such written order by such person within the time so specified or within the time to which a written extension has been granted by the director of public health or his representative, such person shall be deemed guilty of an offense under the provisions of this article.
(Code 1950, § 47-6; Code 1959, § 18-42)

Sec. 15-104. Inspections.

The director of public health or his representative is authorized to make frequent and unannounced inspections of existing business buildings within the city for the purpose of determining rat infestation, and to make inspections during the

course of and upon completion of any new construction, repairs, remodeling or installation of rat-control measures to business buildings to ensure compliance with the provisions of this article. No person shall interfere with or refuse to permit such inspection.
(Code 1950, § 47-7; Code 1959, § 18-43)

Sec. 15-105. Ratproofing to be approved.

The director of public health or his representative shall approve all materials used and the method of installation of ratproofing construction, repairs or remodeling.
(Code 1950, § 47-8; Code 1959, § 18-44)

Sec. 15-106. Ingress and egress of rats.

(a) *Leaning objects against buildings.* It shall be unlawful to permit fishing poles, ladders or any other object that a rat could climb on in order to reach the roof of any business building to lean against the side or walls of such business building.

(b) *Elevator shafts, etc.* The owner of any business building shall protect elevator shafts, fire escapes and guy wires in such manner that rats will not be able to gain ingress into such building.

(c) *Adjacent trees and limbs.* It shall be the duty of any person in charge of a business building to trim the branches of all trees extending over and against such building, and such branches shall be cut and trimmed, and kept trimmed and cut, so that no part of any branch or any part of such tree shall be closer than ten (10) feet to any business building. The tops of all trees shall be cut back ten (10) feet from a line extending perpendicularly from any exterior wall of a business building.
(Code 1950, § 47-9; Code 1959, § 18-45)

Sec. 15-107. Harborage of rats.

(a) *Accumulations of garbage or rubbish.* No garbage, rubbish, waste or manure shall be placed, left, dumped or permitted to accumulate or remain in any building or premises in the city so that the same shall or may afford food for or a harboring or breeding place for rats.

(b) *Accumulations of lumber, boxes, etc.* It shall be unlawful for any person to permit any premises, improved or unimproved, or any open lot or alley in the city, to accumulate number, boxes, barrels, bricks or stones and similar materials that may be permitted to remain thereon and that may be used as a harborage by rats, unless the same shall be placed on open racks and elevated not less than eighteen (18) inches above the ground with a clear intervening space underneath, to prevent the harborage of rats.

(c) *Unlawful disposition of waste.* It shall be unlawful for any person to dump or place on any land or on any waterway within the city any dead animal, butchers' offal, seafood or any waste vegetables, animal matter or any food products whatsoever.
(Code 1950, § 47-10; Code 1959, § 18-46)

Sec. 15-108. Extermination of rats.

(a) *Traps.* All storerooms, warehouses or other business buildings in the city shall be provided by the owner, occupant, agent or any other person in custody of such building, with one or more traps which shall be kept set and freshly baited at frequent intervals and maintained in good working condition, and shall be inspected daily, and any rat caught therein shall be killed, removed and disposed of daily in a manner acceptable to the director of public health, and such trap reset and rebaited.

(b) *Other methods.* Rats may be destroyed also by such means other than trapping as are approved by the director of public health, or by any other authorized agency of the United States public health service or the state board of health. Rat burrows and other exterior harborage shall be treated under methods directed by the director of public health.

(c) *Closing buildings.* When the director of public health shall find any building, structure or premises so heavily infested with rats as to result in his opinion in a present menace to public health, he shall have authority to close the same to any occupancy or use until such rats have been eradicated or while such rats are being eradicated.
(Code 1950, § 47-11; Code 1959, § 18-47)

Secs. 15-109—15-120. Reserved.

DIVISION 2. CONSTRUCTION REQUIREMENTS

Sec. 15-121. Requirements are minimum.

The regulations set forth in this division are minimum requirements for applying rat-stoppage to business buildings in order to obtain maximum rat-stoppage at a minimum cost to the owner or occupant thereof.
(Code 1950, § 47-12; Code 1959, § 18-48)

Sec. 15-122. Where protective coatings required.

Solid sheet metal, expanded metal and wire cloth, when specified in this article, shall have a rust-resisting, protective coating, preferably galvanized.
(Code 1950, § 47-13; Code 1959, § 18-49)

Sec. 15-123. Markets.

Curb or farmers' markets in which fruit or vegetables or any other food products are exposed and offered for sale, on racks, stands, platforms and in vehicles outside of business buildings, shall have floors paved with concrete or asphalt for the entire surface area of the market. Display racks, stands or platforms on which fruit or vegetables or any other food products are displayed or offered for sale shall be of sufficient height that all such fruits, vegetables or other food products shall be kept at a distance of not less than eighteen (18) inches above the floor pavement, and shall be so constructed that rats cannot harbor thereunder.
(Code 1950, § 47-14; Code 1959, § 18-50)

Sec. 15-124. Masonry or concrete exterior wall construction, foundation and exterior wall openings.

(a) All foundation wall ventilator openings shall be covered for their entire height and width with perforated sheet-metal plates of a thickness not less than fourteen (14) gauge, or with expanded sheet metal of a thickness not less than eighteen (18) gauge, or with iron grills or grates, or with any other material of sufficient strength and equal rat-resisting properties. The openings therein shall be small enough to prevent the ingress of rats, and in no instance shall be larger than one-half inch.

(b) All other foundation and exterior wall openings, excluding those used for the purpose of ventilation, light, doors and windows, such as those openings around pipes, electric cables, conduits, openings due to deteriorated wall, broken masonry or concrete, shall be protected against the ingress of rats by closing such openings with cement mortar, concrete or masonry, or close-fitting sheet metal or pipe flanges of suitable size or other material with equal rat-resisting properties, which shall be securely fastened in place.
(Code 1950, § 47-15; Code 1959, § 18-51)

Sec. 15-125. Doors.

(a) All exposed edges of the lower eight (8) inches of wooden doors and door jambs, serving as entrances into business buildings from the ground, basement or cellar floors, and other doors accessible to rats, shall be protected against the gnawing of rats by covering such doors and jambs with solid sheet metal of not less than twenty-four-gauge thickness. The same material shall be used on doorsills or thresholds; or such doorsills or thresholds may be constructed of cement, stone, steel or cast iron.

(b) Doors, door jambs and sills of coal chutes and hatchways that are constructed of wood shall be covered with solid sheet metal of twenty-four-gauge or heavier, or such chutes may be replaced with metal chutes of twenty-four-gauge or heavier, installed in such manner as will prevent the ingress of rats.

(c) All doors on which metal flashings have been applied shall be properly hinged to provide for free swinging. When closed, doors shall fit snugly so that the maximum clearance between any door, jamb and sill shall not be greater than three-eighths of an inch.

(d) Door jambs and sills constructed of metal, concrete, masonry, stone or cement mortar, or cast iron and steel, when fitting closely to exclude rats, are not required to comply with this section.
(Code 1950, § 47-16; Code 1959, § 18-52)

Sec. 15-126. Windows and other openings.

(a) All windows and other openings for the purpose of light or ventilation located in the exterior walls and within thirty (30) inches above the existing ground level immediately below such openings, shall be covered for their entire height and width, including frame, with wire cloth of nineteen-gauge or heavier, having a mesh of not larger than one-half inch.

(b) All other windows and other openings for the purpose of light or ventilation in the exterior walls, which may be accessible to rats by way of exposed pipes, wires, conduits and other appurtenances, shall be covered with guards of wire cloth of nineteen-gauge or heavier, having a mesh of not larger than one-half inch. In lieu of such wire cloth covering on such openings, such pipes, wires, conduits and other appurtenances shall be blocked from rat usage by installing sheet-metal guards as provided in the following section.
(Code 1950, § 47-17; Code 1959, § 18-53)

Sec. 15-127. Pipes, wires and conduits.

(a) Pipes, wires, conduits and other appurtenances which may cause openings to be accessible to rats shall be blocked from rat usage, where such openings are not ratproofed as provided in section 15-126, by installing sheet-metal guards of twenty-four-gauge or heavier.

(b) Such guards when used on horizontal pipes, wires, conduits or other appurtenances shall be placed in a vertical position, and shall be snugly fitted around the pipe, wire, conduit or other appurtenances. Such guards shall measure not less than twelve (12) inches beyond and on all sides of the pipe, wire, conduit or other appurtenance where the intervening space between the wall and pipe permits, shall extend thirty (30) inches in an upward direction and twelve (12) inches in a downward direction and shall be securely fastened to the pipe, wire, conduit or other appurtenance and also to the adjacent wall wherever practicable so that the guard will remain in a vertical position at all times.

(c) Such guards when used on vertical pipes, wires, conduits or other appurtenances shall be fitted snugly around the pipe, wire, conduit or other appurtenance, shall be placed in a horizontal position at a right angle thereto and shall extend horizontally from the pipe, wire, conduit or other appurtenance for a minimum distance of twelve (12) inches beyond and on all sides of the pipe, wire, conduit or other appurtenance, where the intervening space between the pipe and wall permits, and shall be securely fastened to the pipe, wire, conduit or other appurtenance and also to the adjacent wall wherever practicable in such manner that the guard will remain in a horizontal position at all times.
(Code 1950, § 47-18; Code 1959, § 18-54)

Sec. 15-128. Light wells in sidewalks.

Light wells with windows in exterior walls that are located below the outside ground level shall be protected from the ingress of rats by one of the following methods:

(1) Installing over the light wells iron or steel grills or steel gratings, or other material of equal strength and rat-resisting properties, with opening in grills or gratings not to exceed one-half inch in shortest dimension;

(2) Installing securely to and completely covering existing metal grills that are broken or have openings larger than one-half inch in shortest dimension, or are otherwise defective, with expanded metal of eighteen-gauge or heavier, having openings not greater than one-half inch in shortest dimension, or with sixteen-gauge or heavier wire cloth with one-half inch mesh;

(3) At the option of the owner the opening in the wall of the building below the grate may be entirely closed with brick or concrete or partially closed and the remaining open space covered with nineteen-gauge or heavier wire cloth with mesh not to exceed one-half inch.

(Code 1950, § 47-19; Code 1959, § 18-55)

Sec. 15-129. Solid masonry or sheet-metal curtain walls in certain wood frame construction.

(a) Business buildings constructed on piers having wooden floor sills less than twelve (12) inches

above the surface of the ground shall have the intervening space between the floor sill and ground protected against the ingress of rats by installing a solid masonry or concrete wall not less than four (4) inches thick, or solid sheet-metal curtain wall of twenty-four-gauge or heavier around the entire perimeter of the business building and extending such curtain wall to a depth of not less than thirty-six (36) inches below the surface of the ground level and fastening securely to the exterior wall of the business building, in such manner as will prevent rats from entering the building.

(b) Business buildings constructed on piers having wooden floor sills greater than twelve (12) inches above the ground level shall have the intervening spaces between the floor sill and ground protected against the ingress of rats by installing curtain walls in accordance with the preceding paragraph, or by protecting such building against the ingress of rats as provided in section 15-129.

(c) In lieu of the installation of curtain walls, all ground floors of wood construction may be replaced with concrete of not less than three (3) inches in thickness with the exterior walls protected for a height of twenty-four (24) inches above the concrete floor with masonry, concrete or solid metal of twenty-four-gauge or heavier. Exterior wall protection shall be securely tied into the concrete floor at all points.
(Code 1950, § 47-20; Code 1959, § 18-56)

Sec. 15-130. Openings in ground floors of wooden construction.

In business buildings constructed on piers having wooden floor sills greater than twelve (12) inches above the ground level solid sheet metal coverage of twenty-four-gauge or heavier may be installed snugly around each pipe, cable, wire, conduit or other utility service passing through a wooden ground floor in lieu of curtain walls. Such metal coverage shall not be less than eight (8) inches in diameter larger than the diameter of the pipe, cable, wire, conduit or other utility service, and shall be securely fastened to the wooden floor. All other openings in wood ground floors through which rats may gain entrance into double walls or the interior of business buildings, such as openings that may exist in floors and double walls above floor sills, shall be closed with twenty-four-gauge or heavier solid sheet metal or sixteen-gauge or heavier wire cloth of one-half inch mesh or with concrete or masonry.
(Code 1950, § 47-21; Code 1959, § 18-57)

Sec. 15-131. Wall openings, doors and windows of wood frame construction.

Wood frame construction business buildings having concrete or masonry foundation walls shall have ventilators in foundation walls protected as provided in section 15-124. All miscellaneous wall openings, doors and windows shall be protected as provided in sections 15-124 through 15-126.
(Code 1950, § 47-22; Code 1959, § 18-58)

Secs. 15-132—15-150. Reserved.

ARTICLE VI. MOSQUITO CONTROL

Sec. 15-151. Collections of water regulated.

The collections of water to be considered as coming within the terms of sections 15-152 through 15-156 are those waters which are contained in ditches, ponds, pools, excavations, holes, depressions, cesspools, privy vaults, fountains, basements, cisterns, tanks, shallow wells, barrels, troughs, urns, receptacles in which potted plants or flowers are placed, cans, boxes, bottles, tubs, buckets, defective house roof gutters, tanks or flush closets, automobile casings or any other water containers.
(Code 1950, § 62-38; Code 1959, § 41-11)

Sec. 15-152. Enforcing officers, right of entry.

The director of public health and those working directly under his supervision, shall enforce the provisions of sections 15-151 through 15-156 and for this purpose may at all reasonable times enter in and upon any premises within the city.
(Code 1950, § 62-39; Code 1959, § 41-12)

Sec. 15-153. Failure to abate mosquito breeding conditions after notice.

If any person responsible under the terms of sections 15-151 through 15-156 for the existence

of any conditions which give rise to mosquito breeding, refuses to take all necessary measures to prevent the same, in accordance with the terms of this article, within three (3) days after notice from the director of public health, or his duly authorized representative, so to do, he shall be guilty of a misdemeanor.
(Code 1950, § 62-40; Code 1959, § 41-13)

Sec. 15-154. Treatment of water conditions conducive to breeding required.

It shall be unlawful for the occupant or owner of any premises in the city, or the agent of the owner, if the owner be a nonresident or absent from the city, to cause, suffer or permit any collection of standing or flowing water in which mosquitoes breed, or are likely to breed, unless such collection of water is treated in the manner prescribed herein, so as to prevent the breeding of mosquitoes, and any such collection of water, so unlawfully maintained, is declared to be a nuisance.
(Code 1950, § 62-41; Code 1959, § 41-14)

Sec. 15-155. Methods of treatment for preventing breeding.

The methods of treatment of any such collection of water for the purpose of preventing the breeding of mosquitoes may be one or more of the following:

(1) Complete abolition of water containers described in section 15-151 when in the opinion of the director of public health, or his duly authorized representative, such containers are unnecessary, or constitute a menace to the health of the city;

(2) Complete emptying of unscreened or untreated containers, together with their thorough drying or cleaning, every four (4) days;

(3) Screening with wire netting of at least sixteen (16) meshes to the inch, one way, or any other material which will effectively prevent the ingress, or egress of mosquitoes;

(4) Using an approved larvicide;

(5) Covering completely the surface of the water with kerosene, petroleum or paraffine oil, once ever seven (7) days;

(6) Cleaning and keeping sufficiently free of vegetable growth and other obstructions, stocking with mosquito-destroying fish; absence of half-grown mosquito larvae to be evidence of compliance with the measure;

(7) Filling or draining of depressions or containers.

(Code 1950, § 62-42; Code 1959, § 41-15)

Sec. 15-156. Discharges of untreated water on property within city declared nuisance.

It shall be unlawful for the occupant or owner of any premises adjoining the city, or the agent of the owner, if such owner be a nonresident, to cause, suffer or permit any water to be discharged or flow upon property within the city in a manner that is likely to cause such water to collect, stand or stagnate upon property within the city, in which water mosquitoes breed, or are likely to breed, unless such collection of water is treated in the manner prescribed in section 15-155 so as to prevent the breeding of mosquitoes, and any such discharges or flowing of water into the city which water subsequently collects, stands upon or stagnates upon property within the city, is declared to be a nuisance.
(Code 1950, § 62-43; Code 1959, § 41-16)

Secs. 15-157—15-170. Reserved.

ARTICLE VII. EMBALMING ROOMS*

Sec. 15-171. Sewer and waste disposal lines; connection to city sewer system required.

All dead or embalming rooms used in the care and preparation for burial or transportation of dead human bodies by funeral establishments regulated by state law, within the city shall be required to connect their sewer and wastes disposal lines to the sanitary sewer systems of the city.
(Code 1959, § 18-88; Ord. No. 32954, § 1, 12-24-64)

*State law reference—Funeral directing and embalming, Vernon's Ann. Civ. St. art. 4582b.

Sec. 15-172. Sewer, drainage installation plans prerequisite to building permit, certificate of occupancy.

The issuance of necessary building permits and certificates of occupancy required under the ordinances of the city prior to the construction or occupancy of any room, building or structure within the city shall, in the case of any room, building or structure to be used as a dead or embalming room, be withheld and denied unless and until the applicant for such permit shall have submitted plans and specifications providing for the installation of drainage and sewer lines connecting such dead or embalming room with the sanitary sewer system of the city.
(Code 1959, § 18-89; Ord. No. 32954, § 2, 12-24-64)

Sec. 15-173. Compliance with enumerated sanitary regulations required.

All dead or embalming rooms, located within the city, used in the care and preparation for burial or transportation of dead human bodies by funeral establishments as same are regulated by state law shall comply with and conform to the following sanitary regulations:

(1) Of such size and dimensions to accommodate an operating or embalming table, a sink or other sewage receptacle with water and sanitary sewer connection, an instrument table, cabinet or shelves.

(2) Walls and ceiling shall be as nearly airtight as possible; walls to be run from floor to ceiling and covered with an impervious material easily cleanable to the level of splash.

(3) Outside ventilation shall be provided by windows or transoms which can be lowered from the top. If for any reason ventilation cannot be provided by windows or transoms, an eight-inch ventilator pipe must be installed to run from the ceiling of the room for a distance of at least two (2) feet above the roof of the building. All such openings to be effectively screened with sixteen-mesh screens.

(4) Air conditioning or forced draft ventilation shall be separate from the ventilation in other parts of the building. No returned or recirculated air from the dead or embalming room shall be allowed to enter the ventilation system of any other part of the building.

(5) The floor of such room shall be of an impervious, easily cleanable material, with adequate floor drains.

(6) The preparation room shall be private and there shall be no general passageway through it. The entrance shall be separate from all public entrances to the building. No toilet or commode shall be located within the preparation room. Only equipment necessary for the preparation of bodies for burial or shipment will be permitted in a preparation room.

(7) Doors and windows to the preparation room shall be so installed and constructed as to obstruct outside view, and to prevent fumes or odor from entering any other part of the building.

(8) No cross connection shall exist between the water supply system and any equipment or apparatus used in conjunction with the operation of the preparation room. Aspirations shall be plumbed to prevent backsiphonage as specified in chapter 24.

(9) That all dead or embalming rooms shall have an ample supply of water which meets the requirements of the state department of health.

(Code 1959, § 18-90; Ord. No. 32954, § 3, 12-24-64)

Sec. 15-174. Enforcement; report of violations to state board of morticians.

It shall be the duty of the director of public health the city, to enforce the provisions of this article and to see that all persons who engage in the business of embalming and the preserving of dead human bodies, within the city, comply with the sanitary requirements provided for in this

article; it shall be the further duty of the director of public health to report to the state board of morticians any and all violations of the provisions of this article.
(Code 1959, § 18-91; Ord. No. 32954, 4, 12-24-64)

Secs. 15-175—15-185. Reserved.

ARTICLE VIII. SWIMMING POOLS*

Sec. 15-186. Adoption of the Texas Department of Health Standards for Swimming Pools and Spas.

The 1999 version of the Texas Department of Health Standards for Swimming Pools and Spas, Texas Administrative Code, Title 25-Health Services, Part I-Texas Department of Health, Chapter 265-General Sanitation, Subchapter K-Standards for Public Pools and Spas, including any revisions or amendments that may be made at the state level, is hereby adopted by the City of San Antonio, Texas for the purpose of prescribing regulations governing public and semipublic swimming pools. Not less than three (3) copies have been and are now filed in the office of the city clerk of the City of San Antonio and the same are hereby adopted and incorporated as fully as if set out at length herein, and from this date on which the ordinance shall take effect, the provisions thereof shall be controlling within the limits of the City of San Antonio, Texas.

The design and structural standards for swimming pools or spas that apply to new swimming pools or new spas constructed on or after October 1, 1999 are contained in these rules. The design and structural standards for swimming pool or spa design and construction that apply to swimming pools and spas existing prior to October 1, 1999 are those standards that were in existence at the time the swimming pool or spa was constructed, including then applicable local, state and federal laws except as otherwise stated in these rules. Except for those design and structural items specifically stated in these rules which existing swimming pools shall adhere to on or after October 1, 1999, owners and operators of existing swimming pools and spas may follow the rules in these sections instead of the rules in existence at the time the swimming pool or spa was constructed. Owners and operators of existing swimming pools or spas may follow the rules in this section after adoption by the Board of Health when rules became effective in June, 1999, prior to October 1, 1999.

The 1999 version of Vernon's Texas Statutes and Codes Annotated, Health and Safety Code, Title 9 Safety, Subtitle A. Public Safety, Chapter 757 Pool Yard Enclosures, including any revisions or amendments that may be made at the state level, is hereby adopted by the City of San Antonio, Texas for the purpose of prescribing regulations governing pool yard enclosures. Not less than three (3) copies have been and are now filed in the office of the city clerk of the City of San Antonio and the same are hereby adopted and incorporated as fully as if set out at length herein, and from this date on which the ordinance shall take effect, the provisions thereof shall be controlling within the limits of the City of San Antonio, Texas.
(Ord. No. 94266, § 1, 8-2-01)

Sec. 15-187. Responsible for knowledge of all rules.

All owners and operators of public and semipublic swimming pools are responsible for knowledge of all rules as set forth in the 1999 version of the Texas Department of Health Standards for Swimming Pools and Spas, Texas Administrative Code, Title 25-Health Services, Part I-Texas Department of Health Chapter 265-General Sanitation, Subchapter K-Standards for Public Pools and Spas, and all owners and operators of public and semipublic swimming pools are responsible for knowledge of all rules

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*__State law reference—__Minimum sanitary requirements for swimming pools and bathhouses, Vernon's Ann. Civ. St. art. 4477-1, § 15.

__Editor's note—__Ord. No. 94266, §§ 1—4, adopted August 2, 2001, amended article VIII in its entirety to read as herein set out. Formerly, article VIII pertained to similar subject matter and derived from Code 1950, §§ 41-13, 41-34; Code 1959, §§ 18-121—18-127; Ord. No. 17390, § 6, adopted March 20, 1952; Ord. No. 54279, §§ 1(1—8), (15), adopted September 17, 1981; Ord. No. 57568, § 7, adopted September 15, 1983; Ord. No. 67911, § 14, adopted September 15, 1988; Ord. No. 86606, § 24, adopted September 11, 1997.

as set forth in the 1999 version of Vernon's Texas Statutes and Codes Annotated, Health and Safety Code, Title 9 Safety, Subtitle A. Public Safety, Chapter 757 Pool Yard Enclosures.

All owners and operators of public and semipublic swimming pools are additionally responsible for knowledge of all guidelines pertaining to the maintenance of public or semipublic swimming pools.
(Ord. No. 94266, § 2, 8-2-01)

Sec. 15-188. Compliance with ADA.

All owners and operators of public or semipublic swimming pools are responsible for being in compliance with all relevant and applicable requirements of Title II State and Local Governments and Title III Public Accommodations of the Americans with Disabilities Act (ADA).
(Ord. No. 94266, § 2, 8-2-01)

Sec. 15-189. Definitions.

For the purposes of this article, the following words and phrases shall have the meanings respectively ascribed to them by this section:

Health director shall mean the director of the metropolitan health district or his authorized designee.

Health officer shall mean any employee of the San Antonio Metropolitan Health District or any individual designated by the health director to enforce the provisions of this article.

Operation of a swimming pool shall refer to when the swimming pool is open to swimmers for use.

Operator shall mean any individual who is in charge of the day to day operation or maintenance of a swimming pool or spa, including but not limited to a business manager, complex manager, property owner, association manager, or rental agent.

Owner shall mean the person, firm or corporation who is the fee title holder of the property upon which the swimming pool or spa is located or his agent.

Public swimming pool shall mean any swimming pool, spa or sauna which is open to the general public.

Revocation shall mean that a swimming pool license is repealed and that operation under that license shall permanently cease.

Semipublic swimming pool shall mean:

(1) Any privately owned swimming pool or spa which is open to the general public for a fee; or

(2) Any swimming or wading pool, spa or sauna, serving a private club, motel, hotel, apartment building, school, child care facility, recreational or physical fitness facility, institution, home owner's association, or other similar activity or structure, the use of which is limited to members, residents, students, or clients and their guests.

Suspension shall mean to cease operation of a swimming pool on a temporary basis as directed by the health officer.

Swimming pool shall mean any structure either indoors or outdoors, used or suitable to be used for bathing, swimming purposes or as a spa or sauna, together with buildings, equipment and appurtenances used in connection therewith.

Working days shall mean every day of the week except all Saturdays, Sundays and those scheduled holidays officially adopted and approved by the San Antonio City Council for City of San Antonio employees.
(Ord. No. 94266, § 4, 8-2-01)

Sec. 15-190. License required for public and semipublic pools.

(a) It shall be unlawful for an owner or operator to operate a public or semipublic swimming pool without a license therefor. The licensee or his agent shall permit entrance to the premises to make inspections at reasonable times.

(b) It shall be unlawful for an owner or operator to operate a public or semipublic swimming pool within the City of San Antonio, Texas without a license therefor or to continue to

operate a public or semipublic swimming pool for which a license has been suspended or revoked by the health director or his health officer.
(Ord. No. 94266, § 4, 8-2-01)

Sec. 15-191. Application for a license.

Every owner or operator desiring a license to operate a public or semipublic swimming pool within the City of San Antonio, Texas shall deliver a written application to the health director stating the name and address of the applicant and the location of the premises where such swimming pool is located. The applications shall be made on forms prescribed by the health director.
(Ord. No. 94266, § 4, 8-2-01)

Sec. 15-192. Issuance, fees for license.

Upon delivery of the required application, as provided in section 15-191, and upon payment of two hundred twenty-three dollars ($223.00) for one or two (2) swimming pools at the same location or on the same premises plus seventy-three dollars ($73.00) for each additional swimming pool at the same location or on the same premises, the health director or health officer shall issue a license to the applicant.
(Ord. No. 94266, § 4, 8-2-01; Ord. No. 96404, § 2, 9-19-02; Ord. No. 2008-09-11-0777C, § 2, 9-11-08; Ord. No. 2018-09-13-0713, § 1(Att. C.4), 9-13-18)

Sec. 15-193. Term of license.

Licenses shall be issued for a period not to exceed one (1) year with all licenses to expire on September 30 of each year. Licenses shall be automatically renewed upon payment of the required fees in [section] 15-192 and if currently in compliance with this article.
(Ord. No. 94266, § 4, 8-2-01)

Sec. 15-194. Intoxication; communicable disease.

It shall be unlawful for an individual who appears to a reasonable person to be in an intoxicated condition, or afflicted with any open skin infection wounds capable of being transmitted through water, such as impetigo, to use any public or semipublic swimming pool. It shall be unlawful for any owner or operator of a public or semipublic swimming pool, to knowingly permit any individual in an intoxicated condition or knowingly permit any person with an open skin infection wound capable of being transmitted through water, such as impetigo, to use said public or semipublic swimming pool.
(Ord. No. 94266, § 4, 8-2-01)

Sec. 15-195. Animals.

It shall be unlawful for an owner or operator of a public or semipublic swimming pool to knowingly permit animals to enter or remain in said public or semipublic swimming pool enclosure area, except that service animals for persons with disabilities shall be allowed, provided that they may not enter the swimming pool.
(Ord. No. 94266, § 4, 8-2-01)

Sec. 15-196. License permit request.

It shall be unlawful for the owner or operator of a public or semipublic swimming pool to fail to make the license available to the health officer upon request or within three (3) working days.
(Ord. No. 94266, § 4, 8-2-01)

Sec. 15-197. Safety equipment.

The owner or operator of a public or semipublic swimming pool shall operate a swimming pool with the following safety equipment being provided and maintained in good condition and ready for use at each swimming pool at all times:

(1) A lightweight reaching pole constructed of fiberglass or some other non-electrical-conducting material, not less than twelve (12) feet long, with a body hook or shepherd's crook with blunted ends; and

(2) A Coast Guard approved ring or buoy (fifteen (15) inches to twenty-four (24) inches) attached to 1/4-inch to 3/8-inch diameter rope at least two-thirds (⅔) the width of the pool; and

(3) Any additional equipment that is required by applicable state laws and regulations because of the size or type of use of

swimming pool, including ring buoys, throw ropes, backboards, and first aid kits; and

(4) A telephone or other electronic means capable of summoning emergency service readily accessible within two hundred (200) feet unimpeded distance (an unlocked door or gate shall not be considered an impediment) of the swimming pool yard.

(Ord. No. 94266, § 4, 8-2-01)

Editor's note—Ord. No. 94266, § 4, adopted September 2, 2001, enacted provisions intended for use as subsections 15-197(a—d). To preserve the style of the Code, and at the editor's discretion, said provisions have been redesignated as subsections 15-197(1—4).

Sec. 15-198. Dry and wet saunas.

A health officer has the authority to routinely inspect dry and wet saunas to insure that they are maintained in a clean and sanitary manner. (Ord. No. 94266, § 4, 8-2-01)

Sec. 15-199. Notice of violation, suspension, revocation, and reinstatement of licenses.

(a) The health director or his health officer may issue a notice of violation to the owner or operator of a swimming pool and may also order that the owner or operator immediately close a swimming pool if a swimming pool or its enclosure constitutes an immediate hazard to the public, including but not limited to: (1) water quality violations that pose a significant risk to swimming pool users; (2) the main drain of the swimming pool not being visible; (3) drains, skimmers, or suction outlets improperly covered as required by the Texas Department of Health regulations; and (4) visible contamination of the swimming pool with algae, debris, or other dangerous substances. The owner or operator may open the swimming pool or spa after the required maintenance or repairs have been successfully completed.

(b) Licenses issued under this article may be suspended by the health director or his health officer if:

(1) An owner fails to close the swimming pool after being directed to do so; or

(2) An owner fails to cure a violation listed in a notice of violation.

The suspension is effective ten (10) working days after the postmark date on the written notice to the owner or his agent. The written notice may be made by personal delivery, and shall be made by United States certified mail, return receipt requested, to the owner of the swimming pool at his last known address, from the health director or his health officer. Operation of the swimming pool shall cease upon receipt of the notice of suspension.

(c) Whenever a license to operate a swimming pool is suspended, the owner of said swimming pool may request a hearing with the health director provided that the request is in writing and that it is filed with the health director within ten (10) working days of receipt of the notice of suspension. If no request for hearing is filed within the ten-day period, the suspension of the license to operate becomes final. If a request for hearing is filed within the ten-day period, the health director shall hold the hearing and render a decision in writing to the owner or operator of the swimming pool within ten (10) working days of receipt of the request.

(d) The owner of the swimming pool has the right to appeal the health director's decision to municipal court within five (5) working days of receiving such decision by submitting written notice to the health director. Failure to appeal within the time allotted shall result in the health director's decision as final. A municipal court judge shall sit as the administrative appeal hearing officer, and shall conduct the appeal as a civil administrative hearing. The administrative appeal hearing officer shall prepare a written memorandum of findings within ten (10) working days and declare the health director's decision either affirmed or reversed.

(e) The license may be reinstated provided that the violated provisions of this article have been corrected. The health director may require the owner or operator to attend up to sixteen (16) hours of training as a condition of lifting the suspension. This training may consist of one of the following courses: 1) the NRPA, "Certified Aquatic Facility Operator" (A.F.O.); 2) the NSPF,

"Certified Pool-Spa Operator" (C.P.O.); 3) Y.M.C.A., "Pool Operator on Location" (P.O.O.L.); 4) the NSPI, "Service Technician I" or Service Technician II" or "Certified Service Technician"; or 5) completion of a six-hour course encompassing the concepts and information in the CPSC "Guideline for Addressing Potential Entrapment Hazards Associated with Pools and Spas", Publication Number 363-009801, and other related issues. If the health director or his health officer finds that compliance has been accomplished and the required training completed, the license may be reinstated. The health director or his health officer may make a reinspection and thereafter as many reinspections as may be necessary to assure that the owner or operator has complied with the requirements of this article.

(f) The health director may revoke an operating license if:

(1) The owner or operator interferes with an inspection being conducted by the health officer; or

(2) The owner's license is repeatedly suspended.

(g) The revocation is effective ten (10) working days after the postmark date on the written notice to the owner or his agent. The written notice may be made by personal delivery, and shall be made by United States certified mail, return receipt requested, to the owner of the swimming pool at his last known address, from the health director or his health officer. Operation of the swimming pool shall cease upon receipt of the notice of revocation.

(h) Whenever a license to operate a swimming pool is revoked, the owner of said swimming pool may request a hearing with the health director provided that the request is in writing and that it is filed with the health director within ten (10) working days of receipt of the notice of revocation. If no request for hearing is filed within the ten-day period, the revocation of the license to operate becomes final. If a request for hearing is filed within the ten-day period, the health director shall hold the hearing and render a decision in writing to the owner or operator of the swimming pool within ten (10) working days of receipt of the request.

(i) The owner of the swimming pool has the right to appeal the health director's decision to municipal court within five (5) working days of receiving such decision by submitting written notice to the health director. Failure to appeal within the time allotted shall result in the health director's decision as final. A municipal court judge shall sit as the administrative appeal hearing officer, and shall conduct the appeal as a civil administrative hearing. The administrative appeal hearing officer shall prepare a written memorandum of findings within ten (10) working days and declare the Health Director's decision either affirmed or reversed.

(j) Whenever a revocation of a license has become final, the owner or operator of such revoked license may make written application for a new license. The health director may require the owner or operator to attend up to sixteen (16) hours of training, as set forth in subsection 15-199 (e) of this article, as a condition of issuing a new license. A new license may be issued if all provisions of this article are met and all required training has been completed. The health director or his health officer may make a reinspection and thereafter as many reinspections as may be necessary to assure that the owner or operator has complied with the requirements of this article. The new license shall be processed and the fee paid as provided in this article for new licenses.

(k) Whenever a swimming pool owner or operator is required to cease operations of a swimming pool due to a notice of violation, suspension or revocation of the license, all access to the swimming pool shall be restricted, and a notice shall be posted at the swimming pool location in clear view to the public, notifying the public that the swimming pool is closed.

(l) Any swimming pool owner, who had his license revoked two (2) times in a thirty-six-month period for a specific pool may be ineligible to apply for a new license on that specific pool for six (6) calendar months after the second or subsequent revocation. The health director shall have the sole discretion to issue a new license during this period.
(Ord. No. 94266, § 4, 8-2-01)

Sec. 15-200. Penalty for violation.

(a) Any owner or operator who violates a provision of this article shall upon conviction in the municipal court of the City of San Antonio be subject to a fine not to exceed two thousand dollars ($2,000.00) for each offense, and each day shall constitute a separate offense.

(b) The purpose of this article is to promote swimming pool safety. In keeping with that purpose, the municipal court is urged to consider deferred adjudication under article 42.12 of the Texas Code of Criminal Procedure where circumstances warrant. Conditions of the deferral may include the defendants attending and successfully completing a training course recommended or provided by the health director as set forth in subsection 15-199(e) of this article.
(Ord. No. 94266, § 4, 8-2-01)

Sec. 15-201. State and federal pools.

Swimming pools belonging to the state and the federal government are exempt from regulation under this article.
(Ord. No. 94266, § 4, 8-2-01)

Sec. 15-202. Landlord and tenant.

The terms of this article shall not be construed to alter the terms of any lease or other agreement between landlord and tenant or others relating to property that is the subject of this article; provided that no provisions of any lease or other agreement shall be construed to excuse compliance with this article by any person. It is the intent of this article to identify the parties that will be held responsible for compliance with and violations of this article, rather than to determine the rights and liabilities of persons under agreements to which the City of San Antonio, Texas is not a party.
(Ord. No. 94266, § 4, 8-2-01)

Sec. 15-203. Review of drownings.

The San Antonio Metropolitan Health District (SAMHD) may gather statistical data for any drowning that occurs in a swimming pool or spa.
(Ord. No. 94266, § 4, 8-2-01)

Sec. 15-204. Cumulative effect.

The provisions of this article are cumulative of other ordinances of the City of San Antonio, Texas and of state and federal regulations. Compliance with this article does not excuse compliance with any other applicable law, whether enforceable by the health officer, by other officials of the city, or by state or federal agencies.
(Ord. No. 94266, § 4, 8-2-01)

Sec. 15-205. Conflict with state or federal law.

If any section of Chapter 15, Article VIII of the Code of the City of San Antonio, Texas or the application thereof to any circumstance is in conflict with state or federal law, then the applicable federal or state law shall control.
(Ord. No. 94266, § 4, 8-2-01)

Secs. 15-206—15-220. Reserved.

ARTICLE IX. REGULATION OF CHILD CARE FACILITIES*

Sec. 15-221. Definitions.

The following definitions shall apply in the interpretation and enforcement of this article:

Care giver shall mean a person at least eighteen (18) years old and able to care for children in a child care facility in accordance with the Texas Department of Human Services minimum standards.

Child shall mean an individual under fourteen (14) years of age.

Child care facility shall mean a place other than the child's or children's own home or homes in which care, supervision and guidance of a child or children unaccompanied by parents, guardian or custodian is provided on a regular basis for a period of less than twenty-four (24)

*__Editor's note—__Ord. No. 69216, § 1, adopted April 6, 1989, amended the Code by the addition of provisions designated as Ch. 15, Art. IX. At the discretion of the editor the provisions enacted by said Ord. No. 69216 have been codified herein as §§ 15-221—15-232.

Cross references—Food and food handlers, Ch. 13; licenses and business regulations, Ch. 16.

hours a day, whether operated for profit or nonprofit. For the purpose of this article, family day homes will be excluded.

Day care center shall mean a child care facility that provides care for more than twelve (12) children under fourteen (14) years of age for less than twenty-four (24) hours a day.

Department shall mean the San Antonio Metropolitan Health District.

Division shall mean the division established or designated by the Director of the San Antonio Metropolitan Health District to enforce the provisions in this article.

Family day home shall mean a facility that regularly provides care in the caretaker's own residence for not more than six (6) children under fourteen (14) years of age, excluding the caretaker's own children, and that provides care after school hours for not more than six (6) additional elementary school siblings of the other children given care, but the total number of children, including the caretaker's own, does not exceed twelve (12) at any given time.

Group day care home shall mean a facility that provides care for less than twenty-four (24) hours a day for seven (7) to twelve (12) children under fourteen (14) years of age.

On-site-preparation shall mean the preparation of food on the premises of the facility involving the use of multi-use utensils or equipment.

Person shall mean an individual, a public or private agency, an association, or a corporation.

Primary food production shall mean preparation and serving of food as a meal.

Reinspection shall mean any additional inspection services required beyond the first inspection and one follow-up inspection.

Sanitation shall mean effective bactericidal treatment by a process that provides enough accumulation heat or concentration of chemicals for enough time to reduce the bacterial count, including pathogens, to safe level on utensils and equipment.

Satellite shall mean food served but not prepared on-site by an approved source.

Sick or ill child shall mean any child whose participation in a regular child care program is prohibited due to discomfort, injury or other symptoms of illness.

Sick child care shall mean the care of children with short-term illness and/or disability either as a primary service or as a component of other child care services.
(Ord. No. 69216, § 1(2), 4-6-89)

Sec. 15-222. Permit requirements for child care facilities.

(a) *General requirements.* Every person, association, institution, or corporation whether profit or nonprofit, who shall conduct or manage a child care facility shall obtain a permit from the department prior to operation of the facility. If required, appropriate permits or licenses shall be obtained from the State of Texas or any other agency.

Rules and regulations of appropriate state agencies not stated in this article shall be deferred to the appropriate state agency for enforcement. The operator of a child care facility is responsible for complying with all zoning, building, fire, and health ordinances of the City of San Antonio, to be regulated by said departments.

For the purposes of this article, three (3) categories of permits shall exist:

(1) Child care facilities not involved in on-site preparation of food service.

(2) Child care facilities involved in on-site preparation of food service.

   a. Primary food production.
   b. Satellite.
   c. Food production for teaching experience.

(3) Group day-care home facilities.

(b) *Application.* Every person desiring a permit to establish, maintain, or operate a child care facility within the city shall make written application on forms provided by the department. An application for a permit is to be made not less than thirty (30) days before the date planned for opening a new establishment or the expiration date of the current permit for an existing facility. The applicant for a permit must be the legal owner of/or designated representative for the child care facility.

(c) *Ordinance orientation.* Before any permit is issued under this article, the owner or his designated representative of any facility shall be required to attend an orientation meeting on the requirements of this article. The director of health shall ensure that such meetings are provided to the public monthly or as needed. It shall be the duty of the permit holder to ensure that at least one staff member who has attended an orientation meeting shall be present at all times during the hours of operation.

(d) *Conditions for permit issuance.* Upon the filing of an application by an applicant for a permit to operate a child care facility, and following attendance at an ordinance orientation, the director of health or his representative shall make or cause to be made such investigation as he may deem necessary to determine the ability of the applicant to meet the requirements of this article for said permit.

The director of health or his representative shall have the authority to grant a permit to operate a child care facility or to disapprove the application for such permit. The director of health or his representative shall collect any or all fees from the applicant in the proper amount as herein specified. The director of health shall then issue a City of San Antonio, Department of Health Child Care Facility Permit.

In the event the director of health shall refuse to grant a permit to any applicant, the provisions of section 15-227 shall govern any appeal of such denial. The reason(s) for such action shall be provided to the applicant in writing and details provided to correct the problem(s), if possible, which caused denial of the permit request.

(e) *Terms and conditions of a permit.* The permit holder, upon acceptance of the permit issued by the department, shall:

(1) Maintain a copy of this article at the facility and comply with the provisions and directives of the department.

(2) Allow representatives of the department access to the facility within the hours of operation, in order to determine whether the facility is in compliance with this article.

(3) Accept notices issued and served by the department in accordance with provisions herein contained.

(4) Be subject to the administrative, civil, injunctive, and criminal remedies authorized by this article for failure to comply with the provisions contained herein, or an order, warning, or directive of the department.

(5) Post the permit in a conspicuous place within the premises where such child care facility is authorized to be established, maintained, or operated.

(6) Immediately contact the department in the event of a fire, flood, extended interruption of water or electrical service, or other emergency in the facility which may immediately affect the health and safety of the children in care.

(7) It shall be the duty of the permit holder to abide by all the provisions of this article. It shall further be the duty of the permit holder to ensure that employees, agents, owners and/or operators of the child care facility abide by the provisions of this article.

The department is to provide a written copy of the terms and conditions applicable to a permit; except that failure by the provider to obtain required information will not prevent the department from taking any authorized action or seeking any remedy upon the failure of the permit holder to comply with this article or any other order, warning or directive of the department.

The department is to make available to the permit holder a copy of this article for his reference and compliance requirements.

(f) *Variances.* This article is to be liberally construed and applied to promote its underlying purpose of protecting public health.

(1) The department, when no health hazards result, may waive and/or modify the requirements of this article as a condition of child care facility's permit to operate.

(2) The information that is to be retained in the department's file on the child care facility when the requirements of this article are modified and/or waived includes:

a. A citation, by article section number, of the rationale for considering a modification and/or waiver of the article requirement;
b. An analysis of the potential public health hazards and issues associated with the proposed action;
c. Additional scientific data and information, as required by the department, proving that food safety or public health will not be comprised by the proposed action; and
d. A statement of proposed standard procedures for the operation or process under consideration, clearly specifying critical control points and monitoring procedures which will be routinely checked by the person in charge and which may be easily confirmed by the department.

(3) Procedures to implement additional requirements and waivers are to become conditions of compliance with this Code, and variations from the approved procedure are to be considered the same as other violations of the provisions of this article.

(4) The department may accept any identified existing facilities and/or equipment which were in use before the effective date of this article, but do not fully meet all of the current requirements for design and fabrication; provided that:

a. The facilities and equipment are in good repair and capable of being maintained in sanitary condition; and

b. Any food-contact surfaces comply with the provision of the Rules on Food Service Sanitation adopted herein; and

c. Facilities and equipment are replaced as provided for in the Rules on Food Service Sanitation adopted herein.

(g) *Permit fee.*

(1) The permit fee for child care facilities not involved in on-site preparation of food service shall be sixty dollars ($60.00) (pro-rated at five dollars ($5.00) per month until May 31 following date permit issuance) upon issuance and annually thereafter.

(2) The permit fee for child care facilities involved in on-site preparation of food service shall be:

a. Primary food production (pro-rated at seventeen dollars and fifty cents ($17.50) per month)	$210.00
b. Satellite or non-meal production (pro-rated at eight dollars and thirty-three cents ($8.33) per month)	100.00
c. Food production for learning experience upon issuance and annually thereafter (pro-rated at three dollars ($3.00) per month)	36.00

(3) The permit fee for group day home facilities shall be one hundred five ($105.00) (pro-rated at eight dollars and seventy-five cents ($8.75) per month) upon issuance and annually thereafter.

(4) All new facilities shall pay permit fees as shown in this section with the following provisions: The amount in each case shall be provided according to the month in which such establishment began operations. Those establishments commencing operation on July 1st shall pay a pro-rated portion of the stated charge.

(5) Permit fees charged to agencies providing after school care of school age children at multiple sites not involved in on-site preparation of food shall be twenty dollars ($20.00) per site annually. Those establishments commencing operation on July 1st shall pay a pro-rated portion of the stated charge.

(h) *Renewal of permit.* The permit shall expire on the thirty-first day of May following the date of its issuance and shall be renewed annually by making application in the same manner as a new establishment.

(i) *Transfer of permits.* Permits, as required by this article, shall not be transferrable from either one child care facility to another child care facility at a different location or from one person to another person who may subsequently own a certain facility, except that a permit holder who operates a facility may, upon his closing of that facility for the purpose of continuing the business at another facility, apply to the director of health for a transfer of his permit to the new location. Such application shall be accompanied by the inspection fee of five dollars ($5.00). The director of health shall authorize such transfers if, upon inspection, it is determined that the new facility complies with the provisions of this Code. The director of health may effect such transfer by cancellation of the permit and issuance of a new permit for the new facility.

Within ten (10) days of the sale of an on-going child care facility, the existing permit will remain in effect. Application for a new permit must be completed within that ten-day period and the permittees must attend an ordinance orientation prior to the issuance of the new permit. Existing permits after the ten-day period will be null and void.

(j) *Suspension and revocation of permits.* Violations, deficiencies, or conditions which, individually or in combination, jeopardize the health and safety of children in care may result in the department moving to suspend or revoke any permits issued to the child care facility. The depart-

ment will consider an immediate threat to the health and safety of a child to be in existence when the facility administration or the person responsible refuses or fails to act at once, or cannot act at once, to correct a violation of this article where the violation would create a life-threatening emergency or subject a child to injury.

(1) Suspension. The department may suspend a permit to operate all or part of a facility's operation when it determines through inspection, examination of food, records, employees or other means, that the principles of food safety, food-borne illness prevention, communicable disease prevention, and environmental health cannot be assured in the continued operation of the child care facility. The permit may be summarily suspended without prior warning, notice of a hearing, or hearing, upon providing written notice of the summary suspension to the permit holder or person in charge when conditions exist which directly endanger the lives of children or their health or safety.

(2) Revocation. The department may revoke a permit to operate a facility when it determines that the facility is unable to correct or eliminate continuing conditions which are life threatening or endanger the health of the children. The revocation of the permit will be done in consultation with the Licensing Division of the Texas Department of Human Services. Any denial or revocation of a permit by the city shall be reported to the Texas Department of Human Services. The city shall also report any violation notices or illegal operation to said department.

If a facility is closed for a period of six (6) months or more following revocation of a permit, a new certificate of occupancy must be issued by the building inspections department prior to the health department consideration of a new permit.

(3) Whenever a permit to operate a facility is suspended or revoked, the owner or operator of said facility may request a hearing with the director of health provided that the request is in writing and it is filed with the director within ten (10) working days of suspension or revocation becomes final.

If a request for a hearing is filed within the ten-day period, the director of health shall hold the hearing and render a decision in writing to the owner or operator of the facility within ten (10) working days of receipt of the request.

A suspended permit may be reinstated provided a written application for reinstatement is submitted to the director of health and provided that the violated provisions of this article have been corrected. The director of health or his representative shall make a reinspection and thereafter as many reinspections as may be necessary to assure that the applicant has complied with the requirements of this article. If the director finds that compliance has been accomplished, the permit shall be reinstated.

Whenever a revocation of a permit to operate a facility has become final, the holder of such revoked permit may make written application for a new permit to operate provided the director of health is satisfied that the provisions of this article have been met.

The new permit shall be processed and the fee paid as provided in this article for new permits. Any facility which has had its permit revoked two (2) times in a twelve-month period will be ineligible to apply for a new permit for six (6) calendar months after the second or subsequent revocation.

(4) If the director of health suspends or revokes a permit or disqualifies a person from receiving a permit, he shall forward to the person, in writing, by registered or certified mail, the reasons for denial, suspension, revocation, or disqualification, and inform the person that such action is appeal. able to city council and notice that upon exhausting administrative appeals, an action may be filed in a District Court

of Bexar County within thirty (30) days after the city's decision is final and appealable.

The applicant or his representative shall file a written "Notice of Appeal" with the city clerk appealing such determination to the city council. The "Notice of Appeal" shall be filed within ten (10) days after receipt of notification from the director of health.

(Ord. No. 69216, § 1(3), 4-6-89; Ord. No. 86606, § 26, 9-11-97; Ord. No. 101405, §§ 13, 14, 9-15-05; Ord. No. 2007-09-13-0973G, § 11, 9-13-07)

Sec. 15-223. Issuance of permit not to create vested rights.

No permits shall be deemed to grant a vested or property right, but such permit shall remain subject to the terms and provisions of this article and subject to such future regulations as shall be promulgated by the city council by ordinance and any investment made by an applicant or permittee shall be made subject to this article.
(Ord. No. 69216, § 1(4), 4-6-89)

Sec. 15-224. Inspections.

An inspection of the facility is to be performed at least once every year or as determined by the director of health. Additional inspections are to be performed based upon assessments of potential risks of food-borne illnesses including a history of critical violations and numerous or repeat noncritical violations of this Code; the hazards associated with the particular foods being prepared, stored, or served; the methods and extent of food storage, preparation and service.

Where joint occupancy of buildings exists between schools approved by the Texas Education Agency and child care facilities providing care to school age children attending the school, existing public school inspections may substitute for any required site inspections for the child care facilities.

Pre-operational inspections, follow-up inspections and other investigations are to be conducted in accordance with the applicable provisions of this article.

(a) *Inspection report.* The inspection report form adopted by the department is to be used to report the findings of the facility inspection.

The inspection report is to identify the conditions found which are in violation of this article including pertinent administrative information, critical violations, and the Code sections which have been violated.

The inspection report is to specify the time-frame for correction of violations. A copy of the completed inspection report and the notice to correct violations is to be delivered to the person in charge or to the permit holder at the conclusion of the inspection for written acknowledgement of receipt.

The completed inspection report is to be treated as a public document and shall be made available for public disclosure to any person who requests it according to law.

(b) *Correction of violations.* Imminent health hazards which may be created by sewage backup, extended interruption of water or electrical service, or other conditions which endanger food safety, are to be eliminated by immediate suspension of operations.

The permit holder shall comply with warnings, notices or directives issued by the department, including securing approval to resume operation if operations were suspended.

Critical violations designated on the inspection report are to be corrected by the date and time specified by the department, but in all cases, within ten (10) days following the inspection.

Non-critical violations designated on the inspection report are to be corrected by

the date and time specified by the department, but in no event later than the next scheduled inspection.

Correction of violations is to be verified by the department after receiving written notification from the permit holder that the violations have been eliminated or at the end of the specified period of time and be noted on the inspection report and in the department's records.

Cost of reinspection shall be:

1st reinspection	$ 100.00
2nd reinspection.....	115.00
3rd reinspection	125.00
4th reinspection	150.00

(Ord. No. 69216, § 1(5), 4-6-89; Ord. No. 2015-09-10-0758, § 2(Att. E), 9-10-15)

Sec. 15-225. Operations of a child care facility.

(a) *General requirements common to all child care facility operations:*

(1) *Animals:*

a. All animals shall be kept in accordance with the applicable city Code pertaining to animals and livestock.

b. Animals kept on the premises shall be vaccinated according to the recommendations of a licensed veterinarian.

c. The facility and yard shall be kept free of stray animals.

d. Animals are prohibited from food preparation areas and food storage areas at any time.

e. Unpenned animals are prohibited in areas when food is being served.

f. Provisions shall be made to prevent access of animal feces by children and the premises must be kept free of animal feces.

g. The facility shall seek consultation for the keeping of other than domesticated animals.

h. It shall be the duty of the owners, operator or person in charge to comply with the provisions of this subsection.

(2) *Building, equipment and grounds:*

a. Cribs shall meet U.S. Consumer Product Safety Commission Guidelines (1974). Crib slats shall be spaced no more than two and three eighths (2⅜) inches apart, the minimum height shall be twenty-two (22) inches from the top of the railing to the mattress at its lowest level, and shall have no corner post extensions above two (2) inches.

b. The walls and ceiling inside the building shall be maintained in a state of good repair.

c. All surfaces shall be provided with a minimum of twenty (20) foot candles of light at a distance of thirty (30) inches from the floor.

d. All floors shall be maintained in state of good repair in order that they may be properly cleaned.

e. All floors shall be cleaned as often as necessary to prevent accumulations of dust and lint.

f. The roof of the building shall be repaired when necessary to prevent leaks.

g. Doors and windows shall be repaired as necessary to prevent entry of rodents and insects.

h. The grounds shall be kept clean and free of litter at all times.

i. Playground equipment shall be maintained in a state of good repair at all times in accordance with the U.S. Consumer Product Safety Commission Guidelines for public playground safety.

j. A swimming pool, if present, shall be operated and maintained in accordance with city codes and applicable state standards.

k. All equipment designated for use by children shall be maintained in a clean condition and in good repair.

l. Children shall not be cared for in indoor areas or space in temperatures greater than eighty-four (84) degrees Fahrenheit or less than sixty-five (65) degrees Fahrenheit, to be measured at a level where children's activity takes place.

m. Wading pools when used shall be maintained according to department requirements.

n. Impact-absorbing surfaces made of energy-absorbing mats or loose materials such as wood chips or sand shall be provided under playground climbing equipment. Such materials shall be maintained so that the surface is not allowed to become compacted.

o. It shall be the duty of the owners, operator or person in charge to comply with the provisions of this subsection.

(3) *Hygienic practices:*

a. General:

1. All surfaces, including toys, that come in contact with children's mouths shall be sanitized on a daily basis.

2. Staff shall make provisions for proper storage and handling of items of personal hygiene.

b. Handwashing:

1. Handwashing facilities shall be easily accessible to children.

2. Soap, disposable towels and sanitary tissue shall be provided.

3. Children shall wash hands after using the toilet, before eating meals or snacks, and before taking part in food preparation activities.

4. Hot water temperature shall not exceed one hundred twenty (120) degrees Fahrenheit at outlets used by children.

5. Hot and cold water, under pressure, shall be supplied to all handwashing sites by means of a mixing faucet.

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6. Where multi-use or reusable hand towels or washcloths are used, provisions shall be made to ensure that cross-contamination does not occur.

c. Diapering:
   1. Care givers shall change children's diapers on a smooth, non-absorbent, and easily cleanable surface or a surface with a clean, disposable, non-permeable covering.
   2. Dirty disposable diapers and table coverings shall be put immediately into plastic-bag lined, waste receptacles which have tight-fitting lids and to which the children have no access.
   3. Soiled clothing, including non-disposable diapers, shall be placed immediately in separate plastic bags labeled with the child's name for laundering.
   4. After every use the diaper-changing area, whether or not a non-permeable covering is used, shall be cleaned, wiped with a sanitizing solution and allowed to dry.
   5. Guidelines established by the Texas Department of Health shall be followed for sanitation of diaper-changing surfaces.
   6. Facilities that care for infants shall have a lavatory located in the immediate vicinity of the diaper-changing table equipped with hot and cold running water with a mixing type faucet.

d. It shall be the duty of the owners, operator, person in charge, or care giver to comply with the provisions of this subsection.

(4) *Immunizations and disease control:*

a. The child care facility health records shall be available for inspection by the director of health or his representative at all times.
b. Immunizations required by this article shall be those set forth by the director of health.
c. It shall be the responsibility of the facility's operator to seek recommendations from the department on appropriate methods for control of infectious diseases.
d. The department shall make available to facilities recommendations on appropriate measures for control of infectious diseases.
e. All child care facility employees shall have two (2) hours annually of training in general sanitation.
f. It shall be the duty of the owners, operator, or person in charge to comply with the provisions of this subsection.

(5) *Pest control:*

a. Effective measures such as excluding, inspecting and exterminating shall be used to minimize the entry, presence and propagation of rodents, insect, birds or other pests.
b. The premises shall be maintained so that harborage or feeding of insects, rodents, birds, or other pests will be prevented. (Chapter 15, Article V)
c. It shall be the duty of the owners, operator, person in charge, or care giver to comply with the provisions of this subsection.

(6) *Staff health:*

a. People whose behavior or health appears to endanger the health, safety, or well-being of children must not be at the center.
b. People must not smoke in the children's presence or consume alcohol when children are at the center. People who appear to be under the influence of alcohol or other drugs must not be in the center when children are present.
c. Staff members who have a chronic or acute illness which requires treatment with medications whose use could result in impaired judgment shall make those conditions known to the director of the facility.
d. It shall be the duty of the owners, operator, person in charge, or care giver

to comply with the provisions of this subsection.

(7) *Toilet facilities:*

a. Toilet facilities shall be designed, located and the number required in accordance with the Texas Department of Human Services minimum requirements.

b. Facilities that keep infants shall have a lavatory with hot and cold running water and a mixing-type faucet in the immediate vicinity of the diaper-changing table.

c. Toilet facilities shall be maintained in a clean sanitary condition.

d. Lavatories shall be of a size appropriate to small children. Step stools, when used to make lavatories accessible, shall be of stable design.

e. Restroom doors, when present on toilet rooms used by the children, shall not be equipped with locks or self-closing devices except that facilities providing after school care to school age children only shall be exempt from this requirement.

f. It shall be the duty of the owners, operator or person in charge to comply with the provisions of this subsection.

(8) *First-Aid:* The facility shall make provisions for the following:

a. A first-aid kit containing, as a minimum: adhesive bandages, soap, cotton tip applicators, absorbant cotton, sterile gauze squares, adhesive tape, magnifying glass, tweezers for removing splinters, hydrogen peroxide, syrup of ipecal, and a thermometer.

b. Supplies being kept handy in a designated location, out of the children's reach, and providing a guide to first-aid and emergency care.

c. It shall be the duty of the owners, operator or person in charge to comply with the provisions of this subsection.

(b) *Requirements related to the child care facilities involved in the on-site preparation of food service.* The "Rules on Food Service Sanitation" are adopted by reference for use in facilities involved in the on-site preparation of food. Child care facility food service staff shall have a minimum of six (6) hours training in food service sanitation yearly. (Ord. No. 69216, § 1(6), 4-6-89)

Sec. 15-226. Sick/handicapped child care.

(a) *Sick child care.* The director of health is authorized to promulgate standards for the care of sick children in child care facilities. Facilities providing such care shall be required to apply to the director for minimal requirements of operation which will protect the health, safety and well-being of sick children in care.

(b) *Care for handicapped children.* The facility shall make arrangements appropriate for the needs of handicapped children in care to ensure that those needs are met in accordance with the provisions of this article. The director of health is authorized to promulgate standards for the care of handicapped children in child care facilities. (Ord. No. 69216, § 1(7), 4-6-89)

Sec. 15-227. Due process.

(a) *Remedies—Procedural safeguards.*

(1) The remedies provided in this section are to be applied to the extent required to protect public health and assure food safety, in accordance with law and the department's rules for such procedures.

(2) An individual's rights to equal protection and due process are to be preserved when applying the remedies set forth in this article.

(b) *Notices.*

(1) A notice provided for in this article is properly served by any of the following methods:

a. Personally delivering the notice to the permit holder or the manager, operator or person in charge of the child care facility;

b. Sending the notice to the permit holder's last known address by registered or certified mail, or by other public means so that a written acknowledgement or receipt may be required;

c. Complying with any manner of service authorized for serving a civil process on an individual or organization, as appropriate; and

d. Having the notice personally served by any officer, employee or agent of the department, law enforcement officer or any individual authorized to serve a civil process.

(2) A suspension order or hold order should be delivered personally to the permit holder or person in charge, or the order may be clearly posted at a public entrance to the child care facility, provided a copy of the notice is also sent by first-class mail to the permit holder or to the owner or custodian of the child care facility, as appropriate.

(3) Service is effective at the time of the notice's receipt or if service is made under section 15-227(b)(2) at the time of the notice's posting.

(4) Proof of proper service may be made by affidavit of the individual making service or by admission of the receipt signed by the permit holder or his authorized agent.

(c) *Hearings.*

(1) The department shall hold hearings as required by this article.

(2) Hearings shall be conducted in accordance with applicable laws and administrative procedures.

(3) The department may appoint a hearing board to hear and make recommendations, concerning administrative remedies to achieve compliance with the provisions of this article to the director of health.

(4) This board may be composed of a department representative, a qualified hearing officer or independent board members, as appointed by the department.

(5) The hearing board may make recommendations to the director of health as follows:

a. Suspending, revoking, modifying or imposing reasonable restrictions or conditions on a permit to operate a child care facility, or recommending the closure of any child care facility that is being operated without a valid permit as required by section 15-222(a);

b. Issue orders to abate or correct violations of this Code and establishing a schedule for the abatement or corrections of violations;

c. Deferring or suspending the imposition or execution of a decision and order, and imposing a probationary period, upon the condition that the respondent comply with the hearing board's reasonable terms and conditions;

d. Approving the offer of a consent agreement, including the terms, conditions, penalties and a waiver of the right to a hearing, entered into by the department and the respondent after a hearing notice has been served;

e. Ordering reinspection of a facility to determine compliance with a hearing board's order;

f. Assessing, levying, suspending or ordering the payment of any applicable fee established by the department for any reinspection required, and for the reinstatement of a permit after suspension.

(6) A hearing proceeding commences at the time the department notifies the respondent of the hearing proceeding.

(7) A hearing notice is to contain the following information:

a. Purpose of the hearing;

b. Time, date and place of the hearing;

c. Facts that constitute the basis or reason for the hearing;

d. The rights of the respondent including the right to be represented by counsel and to present witnesses and evidence on their behalf.

(8) Hearing procedures:

a. Hearings are to be conducted in an expeditious, fair and impartial manner;

b. A complete record of the proceedings is to be prepared and maintained, although

a verbatim transcript of the hearing is not required.

c. The parties to a hearing have the right to be represented by counsel, to examine and cross-examine witnesses and to present evidence in support of their position.

d. The department is to present at the hearing its evidence, orders, directives and reports related to the proposed or appealed remedy. Written evidence may be received, if it will expediate the hearing without substantial predjudice to any party's interests. Documentary evidence may be received in the form of a copy or excerpt.

(d) *Summary permit suspension.* The department may suspend a permit to operate a child care facility when it determines through inspection, examination of food, records, employees or other means, as provided in this Code, that the principles of food-borne illness prevention and child health and safety cannot be assured in the continued operation of the child care facility.

The permit may be summarily suspended without prior warning, notice of a hearing, or hearing upon providing written notice of the summary suspension to the permit holder or person in charge. The summary suspension notice is to:

(1) State that the child care facility permit is immediately suspended and that all food operations are to immediately cease;

(2) State the reasons for summary suspension with reference to the sections of this Code which are in violation;

(3) Provide the name and address of the department representative to whom a written request for reinspection can be made and who can certify that reasons for the suspension have been eliminated; and

(4) State that the permit holder has the right to an appeal hearing upon submission of a written request within ten (10) days of receiving this notice.

The summary suspension will remain in effect until the conditions cited in the notice of suspension no longer exist and their elimination has been confirmed by the department during a reinspection.

The department will conduct a reinspection of the child care facility within forty-eight (48) hours of receiving a written request.

The suspended permit is to be reinstated immediately if reinspection by the department determines that the public health hazard no longer exists and a notice of reinstatement is to be provided to the permit holder or person in charge.

(e) *Restriction of infected or diseased employees.* The department may prohibit a person from working when it has reasonable cause to believe an employee of a child care facility has a possible transmitted disease; may be infected with a disease in a communicable form which is transmissible through food; may be a carrier of organisms that cause such diseases; or is affected with a boil, an infected wound or acute respiratory infection.
(Ord. No. 69216, § 1(8), 4-6-89)

Sec. 15-228. Violations and penalties.

(a) A person having any duty under this article as specified above commits an offense if he fails to fulfill that duty or fails to comply with any provision of this article with any of the requirements hereof.

(b) Any person who violates any provisions of this article, shall be guilty of a misdemeanor and, upon conviction thereof, shall be punished by a fine of not more than one thousand dollars ($1,000.00), for each offense. Each day on which a violation shall occur or continue shall be deemed a separate and distinct actionable offense.

(c) When it appears that a person has violated , is violating, or is threatening to violate the permit requirements of this article, the department may file a suit in a district court for injunctive relief pursuant to Vernon's Annotated Rules on Civil Procedures.
(Ord. No. 69216, § 1(9), 4-6-89)

Sec. 15-229. Creation of advisory committee for health-related issues in child care facilities.

(a) The advisory committee of child care facilities shall be composed of seven (7) citizens of the

City of San Antonio appointed by the director of health.

(b) Members of this committee serve for terms of two (2) years. Terms shall be staggered and shall coincide with the city's fiscal year.

(c) The members must represent the following groups:

(1) Parents, guardians, or custodians of children who use the facilities;

(2) Child advocacy groups;

(3) Operators who are representative of a variety of facilities throughout the city;

(4) Experts in various professional fields that are relevant to child care and development;

(5) Experts in various professional fields that are relevant to public health, but not employed by the department.

(d) At least two (2) members of the department staff shall meet with the committee, as "ex officio" members, and the department shall provide staff necessary for the committee.

(e) The committee shall review material submitted by the department and advise the department of problems of child care facilities within the purview of the department.

(f) The committee shall meet a minimum of twice a year or as determined by the director of health and shall serve at no expense to the City of San Antonio; a quorum is necessary for the committee to meet.
(Ord. No. 69216, § 1(10), 4-6-89)

Sec. 15-230. Creation of interpretation guide.

The director of health shall cause to be created an interpretation guide to provide clarification and guidance to child care providers on the requirements of this Code and to provide pertinent information. This guide may be in a written or video form or both; the contents of which are to be determined by the director of health.
(Ord. No. 69216, § 1(11), 4-6-89)

Sec. 15-231. Creation of training component.

The director of health shall cause to be created a training program, and shall determine the contents of said training program. The training program shall relay information to potential or existing child care workers of Code requirements and pertinent information on issues related to the health and safety of children in out-of-home care.
(Ord. No. 69216, § 1(12), 4-6-89)

Sec. 15-232. Separability.

If any provision or application of any provision of this article is held invalid, that invalidity shall not affect other provisions or applications of this article.
(Ord. No. 69216, § 1(13), 4-6-89)

Secs. 15-233—15-259. Reserved.

ARTICLE X. SECONDHAND/REFURBISHED MATTRESS CONSUMER PROTECTION REGULATIONS

Sec. 15-260. Definitions.

City means the City of San Antonio.

Department means the development services department.

Director means the director of the development services department.

Germicidal treatment provider means any person performing germicidal treatment methods of cleaning. Each germicidal treatment provider is required to be permitted as detailed in this article.

Germicide means a substance or agent that kills germs, especially pathogenic microorganisms; a disinfectant.

Mattress means large pad for supporting the reclining body, used as or on a bed, consisting of a quilted or similarly fastened case, usually of heavy cloth, that contains hair, straw, cotton,

foam rubber, etc., or a framework of metal springs. As used in this article, a mattress includes the box springs.

Mattress retailer means any person selling or renting secondhand or refurbished mattress as defined in this article. Each mattress retailers is required to be permitted as detailed in this article.

Person means an individual, association, corporation, or any other business entity.

Refurbish means to make neat, clean, or complete, as by renovating, re-equipping, or restoring. The term necessarily includes removing and replacing original parts with non-original, used, second-hand parts.

Sanitary means a condition of good order and cleanliness that precludes the probability of disease transmission.

Secondhand means previous use in any manner other than previous use as a floor model.
(Ord. No. 2015-12-03-1020, § 3, 12-3-15)

Sec. 15-261. Scope and intent of article.

To provide consumer protection regulations for the sale or rental of secondhand or refurbished mattresses and germicidal treatment of such mattresses. For purposes of this article, both secondhand as well as refurbished mattresses must receive germicidal treatment prior to sale or rental.
(Ord. No. 2015-12-03-1020, § 3, 12-3-15)

Sec. 15-262. Duties and powers of the director.

The director is hereby authorized and directed to enforce the provisions of this article with the health department consultation and collaboration, as appropriate, and shall have the authority to render interpretations of this article and to adopt policies and procedures in order to clarify and administer the application of its provisions. Such interpretations, policies and procedures shall be in compliance with the intent and purpose of this article. Such policies and procedures shall not have the effect of waiving requirements specifically provided for in this article.
(Ord. No. 2015-12-03-1020, § 3, 12-3-15)

Sec. 15-263. Permitting requirements.

(a) *In general.* Any mattress retailer and any germicidal treatment provider in the City of San Antonio (city) must be permitted through the department and pay a biennial fee as provided for in this article. Each business location must be separately permitted to conduct the service it provides that is regulated under this article: 1) sell or rent secondhand or refurbished mattresses; and/or 2) provide germicidal treatments services. Conducting business without obtaining required permit(s) is a violation under this article.

(b) *Permitting application requirements.*

(1) Application for an initial permit or renewal must be made through the department on an approved application form which may be obtained from the department.

(2) A separate application is required to be completed and submitted for each specific business location regardless of common ownership resulting in individual permits for each location.

(3) The appropriate permitting fee, payable to the department, must accompany each application.

(4) Additional information that may be required includes:

a. Explanation of the germicidal treatment method to be applied to secondhand and refurbished mattresses;

b. Any other information the department may determine is necessary.

(c) *Permitting miscellaneous regulations.*

(1) The permitting requirement does not apply to a custom upholstery business that does not sell or rent secondhand or refurbished mattresses.

(2) A person selling or renting secondhand or refurbished mattresses and also apply-

ing germicidal treatment methods must receive separate permits from the department to conduct each business.

(Ord. No. 2015-12-03-1020, § 3, 12-3-15)

Sec. 15-264. Germicidal treatment requirements.

(a) *General requirements.* Germicidal treatment is required on all secondhand or refurbished mattresses by a permitted germicidal treatment provider using a method identified below before they may be sold or rented to consumers.

(b) *Treatment methods.*

(1) *Chemical spray.*

a. Only those products specifically approved by the health department may be used as a germicidal treatment method.

b. Mechanical, compressed air, hand pump, or electric sprayers must be used and they must be of the continuous spray type. No intermittent spray devices are allowed.

c. Chemicals must be in liquid form. Aerosol sprays shall not be used.

d. Liquid sprays must include a simple but positive means of detection or verification by means of an ultraviolet lamp unit.

e. Liquid sprays requiring premixing or dilution shall not be approved.

f. Spray area must be in such a location as to be protected from wind.

g. Manufacturers' specifications such as amount of coverage, operator safety precautions, and other warning labels must be followed.

(2) *Dry heat.*

a. A minimum temperature of two hundred thirty (230) degrees Fahrenheit for a period of one hour and fifteen (15) minutes, within a closed chamber is required for proper germicidal treatment. The minimum temperature may be reduced to two hundred five (205) degrees Fahrenheit for a period of one hour and thirty (30) minutes for foam products which may be damaged at two hundred thirty (230) degrees Fahrenheit.

b. The dry heat chamber shall be equipped with a recording clock to accurately record the time and temperature. The clock shall be attached on the outside of the chamber and the heat bulb sending unit must be installed within the chamber at the furtherest point practical from the entry of the heat.

c. The chamber and automatic circulating heat devices shall maintain equal and uniform temperatures in all sections of the chamber.

d. All mattresses shall be spaced within the chamber to allow not less than four (4) inches on all sides of each article for full circulation of heat or air.

(3) *Steam.*

a. Treatment by the steam method shall consist of steam under pressure of fifteen (15) pounds per square inch maintained for thirty (30) minutes or a pressure of twenty (20) pounds per square inch maintained for twenty (20) minutes.

b. An alternate method may consist of two (2) applications of streaming steam, maintained for a period of one hour each, to be applied at intervals of not less than six (6) nor more than twenty-four (24) hours.

(4) *Other methods.* Any other method of germicidal treatment may be used provided such proposed method is in accordance with national or model standards relating to germicidal treatment, it is in compliance with the intent and purpose of this article, and it provide equal or greater protection to the public than those specifically listed in subsec-

tions (1) through (3). The director of the health department is required to evaluate any proposed written request to conduct germicidal treatments in a method outside those specifically mentioned in this article and sign any written approval, detailing a finding that the method proposed is in accordance with this subsection.

(Ord. No. 2015-12-03-1020, § 3, 12-3-15)

Sec. 15-265. Notice, storage, labeling and records requirements.

(a) *Germicide treatment provider notice.* Any person providing germicidal treatment services shall, after performing such services, attach a label as described in this section.

(b) *Retail notices.* Any person engaged in the sale or rental of secondhand and/or refurbished mattresses shall provide notices to the public at all retail locations providing such services. Notices shall be as follows:

(1) A 20"x20" (minimum) sign at the front entrance(s) identifying in writing (minimum 100-point type in English) that the location sells and/or rents secondhand and/or refurbished mattresses. Other languages may be used in addition to English on separate signs.

(2) A label prominently displayed on each secondhand or refurbished mattress in English identifying it as such and providing confirmation of compliance with germicidal treatment. Other languages may be used in addition to English, but shall be presented on separate labels. No person shall remove the label or position, arrange or display a mattress in such a manner as to obstruct the view of the label from the purchaser and/or department representatives.

(3) Each retail location shall provide written notification to the customer advising that they are purchasing and/or renting (as applicable), secondhand and/or refurbished sanitized mattresses. Each retail location shall retain signed customer confirmation acknowledging that they understand they are purchasing or renting secondhand and/or refurbished sanitized mattresses.

(c) *Secondhand and refurbished mattresses segregation requirements.*

(1) Persons engaged in the sale and/or germicidal treatment of such mattresses shall keep same separate and apart from new mattresses.

(2) Secondhand and refurbished mattresses which have not been germicidally treated and properly labeled, shall not be displayed on the sales floor.

(d) *Label requirements.*

(1) A secondhand or refurbished mattress label shall be attached to the secondhand or refurbished mattress and be at least twelve (12) square inches and state, plainly stamped or printed in red ink on all white material:

a. "SECONDHAND OR REFURBISHED MATTRESS - SANITIZED" in capital letters at least one-fourth-inch high;

b. That the secondhand or refurbished mattress has been germicidally treated by a method either listed in this article or approved by the director of the health department;

c. The method of germicidal treatment applied;

d. The date the secondhand or refurbished mattress was germicidally treated;

e. The name and address of the person for whom the secondhand or refurbished mattress was germicidally treated;

f. The germicidal treatment permit identification number assigned by the department; and

g. Shall be in a form and contain any other information prescribed by the department with input from the health department.

(2) Making any false or misleading statement on any label required by this article is unlawful; further, removing, defacing, altering, or positioning any label or statement thereon for the purpose of defeating the provisions of this article is unlawful except that the label may be removed by the consumer.

(e) *Records.* Records must be kept for a period not less than two (2) years from the point of sale, rental and time of germicidal treatment.

(1) Any person engaged in the sale or rental of secondhand and/or refurbished mattresses shall keep records of acknowledgements as required under subsection (b)(3) above.

(2) Records verifying germicidal treatment and other information as required by the director of the development services department shall be kept by both the retailer of secondhand/refurbished mattresses and the germicidal treatment provider and must be provided to the city within a reasonable time of a request to verify compliance. A copy of such treatment received by the retailer shall suffice to comply with this section. The development services department may require, at the expense of the person, that an independent audit of the records of the person be conducted with the results of such audit provided to both parties.

(3) Each person required to obtain a germicidal treatment permit shall:

a. Conspicuously post a copy of the permit on the premises of the person's business near the treatment device; and

b. Keep accurate records describing mattresses treated, date of treatment, method of treatment, and the name and address of the owner of each item.

(Ord. No. 2015-12-03-1020, § 3, 12-3-15)

Sec. 15-266. Permitting fees.

(a) *Secondhand/refurbished mattress retailer permit.* The initial permit fee for the first two-year term is a fixed two hundred twenty dollars ($220.00), regardless of time in actual operation. Subsequent permit fees shall be adjusted based upon the number of secondhand/refurbished mattresses sold and rented during the previous two-year period. Should operations cease prior to two (2) years, any subsequent new permit fee shall follow the graduated fee schedule listed below. Calculation for permit fee purposes is based separately upon all such business locations held under the same ownership.

The graduated fee schedule is as follows:

(1) For less than two thousand (2,000) such mattresses sold and rented, the fee is two hundred twenty dollars ($220.00);

(2) Two thousand (2,000) to nine thousand nine hundred ninety-nine (9,999) such mattresses sold and rented, the fee is three hundred thirty dollars ($330.00);

(3) Ten thousand (10,000) to nineteen thousand nine hundred ninety-nine (19,999) such mattresses sold and rented, the fee is four hundred forty dollars ($440.00);

(4) Twenty thousand (20,000) to twenty-nine thousand nine hundred ninety-nine (29,999) such mattresses sold and rented, the fee is six hundred sixty dollars ($660.00);

(5) Thirty thousand (30,000) to forty-nine thousand nine hundred ninety-nine (49,999) such mattresses sold and rented, the fee is eight hundred eighty dollars ($880.00);

(6) Fifty thousand (50,000) to one hundred thousand (100,000) such mattresses sold and rented, the fee is one thousand three hundred twenty dollars ($1,320.00); and

(7) Over one hundred thousand (100,000) such mattresses sold and rented, the fee is one thousand three hundred twenty dollars ($1,320.00) plus three cents ($0.03) for each additional mattress.

(b) *Germicidal treatment permit.* One hundred ten dollars ($110.00) each fixed for a two-year term and any subsequent biennial renewal.
(Ord. No. 2015-12-03-1020, § 3, 12-3-15)

Sec. 15-267. Enforcement of law.

(a) The department and the health department are responsible for enforcement of this article.

(b) Each person required to be permitted under this article shall provide sale and rental data for separate business locations to determine compliance with this article when requested by the department.

(c) Each person required to be permitted as a germicidal treatment provider under this article shall maintain each business location in a sanitary condition.

(d) Each person required to be permitted as a germicidal treatment provider under this article shall allow, during normal business hours, an authorized representative or representatives of the department and/or health department to conduct an announced or unannounced inspection of their place of business for purposes of determining compliance with this article and regulations.

(e) Each person required to be permitted under this article shall allow an authorized representative or representatives of the department and/or health department to copy records and take photographs of mattresses and premises during inspections.

(f) City authority to deny, suspend or revoke permits.

(1) An application for permit issuance or renewal will be denied by the director of the department if the applicant fails or refuses to provide a complete application, pay the appropriate fee, or provide requested information.

(2) An application for permit renewal may be denied by the director of the department if the applicant has failed to make acceptable progress implementing corrective actions to comply with this article and/or to remedy previous violations of the article.

(3) A permit may be suspended or revoked by the director of the department if the permit holder violates this article. Such decision shall be based on and supported by evidence of violation. Notice of suspension or revocation shall be sent to the last known address of the permit holder detailing a time of no more than ten (10) working days from the time of receipt to contest such action through a hearing before the director. Once notified within that time period, the director shall conduct a hearing within a reasonable time and either affirm or overrule the action taken. Should action be affirmed after the hearing, a permit holder may appeal the final decision of the director, which shall be in writing and contain the reason for the suspension or revocation. Notice of appeal must be filed with a court of proper jurisdiction within ten (10) working days of the director's final decision; otherwise, the appeal is waived. The permit shall be suspended or revoked only for the location where the violation occurred.

(Ord. No. 2015-12-03-1020, § 3, 12-3-15)

Sec. 15-268. Penalty for violation.

A violation under this article is a strict liability offense and any person violating any of its provisions shall be deemed guilty of a misdemeanor. Each such person shall be deemed guilty of a separate offense for each day or portion thereof during which any violation of any of the provisions of this article are committed, continued or permitted. Each violation may be punishable by a fine not less than one hundred dollars ($100.00) nor more than two thousand dollars ($2,000.00).
(Ord. No. 2015-12-03-1020, § 3, 12-3-15)

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ARTICLE XI. SICK AND SAFE LEAVE BENEFITS*

Sec. 15-269. Definitions.

In this article:

City means the City of San Antonio, Texas.

Department means the health department of the city also known as the San Antonio Metropolitan Health District.

Director means the director of the San Antonio Metropolitan Health District or their authorized designee.

Employee means an individual who performs work for pay within the City of San Antonio, Texas for an employer including work performed through the services of a temporary or employment agency. An employee who is typically based outside of the city (the employee works outside the geographical boundaries of the City of San Antonio for more than fifty (50) percent of work hours in a year) and performs work in the city on an occasional basis is covered by this article if the employee performs more than two hundred forty (240) hours of work in the city within a year. Employee does not mean an individual who is an independent contractor according to title 40, section 821.5 of the Texas Administrative Code (TAC).

Employer means any person, company, corporation, firm, partnership, labor organization, nonprofit organization, or association that pays an employee to perform work for an employer and exercises control over the employee's wages hours and working conditions. The term does not include:

(1) The United States;

(2) A corporation wholly owned by the government of the United States;

(3) The state or any state agency;

(4) The City of San Antonio, Texas, or any other political subdivision of the state or other agency that cannot be legally regulated by city ordinance; or

(5) Any person, company, corporation, or firm subject to, or with employees subject to the Railway Labor Act (45 U.S.C. 181 et seq.).

Family member means:

(1) Any of the following as they relate to an employee:

a. Spouses, domestic partners, and both different-sex and same-sex significant others; or

b. Any other family member within the second degree of consanguinity or affinity; or

c. A member of the covered employee's household;

(2) A minor's parents, regardless of the sex or gender of either parent.

The concept of parenthood is to be liberally construed without limitation as encompassing legal parents, foster parents, same-sex parent, step-parents, those serving *in loco parentis*, and other persons operating in caretaker roles.

Sick and safe leave means a period of paid leave from work accrued by an employee in accord with this article. Sick and safe leave is a fringe benefit as defined by the Texas Labor Code and not a wage or a component of salary.

Year means a regular and consecutive twelve (12) month period as determined by the employer. (Ord. No. 2018-08-16-0620, § 2, 8-16-18; Ord. No. 2019-10-03-0795, § 1, 10-3-19)

Sec. 15-270. Scope and intent of article.

To provide employees with the ability to accrue and use sick and safe leave when they need to be absent from work because the employee or the employee's family member suffer illness, injury, stalking, domestic abuse, sexual assault, or otherwise require medical or health care, including preventative care and mental health care. This ordinance does not require the payment of

*__Editor's note—__Ord. No. 2019-10-03-0795, § 1, adopted Oct. 3, 2019, amended art. XI, and in so doing changed the title of said article which pertained to earned paid sick time.

sick and safe leave upon separation from employment and it does not require that sick and safe leave be calculated as an increase to salary or wages for an employee. No provision of this article is designed or intended to conflict with or be preempted by the Federal Labor Standards Act (FLSA) (29 U.S.C. 201, et seq.) or the Texas Minimum Wage Act (TMWA) (Texas Lab. Code Section 62.001, et seq.).
(Ord. No. 2018-08-16-0620, § 2, 8-16-18; Ord. No. 2019-10-03-0795, § 1, 10-3-19)

Sec. 15-271. Duties and powers of the director.

(a) The director is hereby authorized to carry out and enforce the provisions of this article, to educate employers and employees about this article, to render interpretations of this article, and to adopt policies and procedures in order to clarify and administer the application of this article's provisions. Such interpretations, policies and procedures shall be in compliance with the intent and purpose of this article. Such policies and procedures shall not have the effect of waiving requirements specifically provided for in this article.
(Ord. No. 2018-08-16-0620, § 2, 8-16-18)

Sec. 15-272. Sick and safe leave requirements.

(a) *General.* An employer shall provide an employee with sick and safe leave that meets the requirements of this article in an amount up to the employee's available sick and safe leave. The employer shall provide sick and safe leave at the rate of pay that the employee would have earned if the employee had worked the scheduled work time, exclusive of any overtime premium, tips, or commissions, but no less than the state minimum wage.

(b) *Accrual requirements and yearly cap.*

(1) An employer shall grant an employee one (1) hour of sick and safe leave for every thirty (30) hours worked for the employer in the City of San Antonio sick and safe leave shall accrue in one (1) hour unit increments. There shall be no accrual of a fraction of an hour of sick and safe leave unless an employer chooses such smaller increment.

(2) Sick and safe leave shall accrue starting at the commencement of employment or the date this article is effective, whichever is later. However, consistent with Section 15-272(C)(1), use of sick and safe leave shall not be required until after an employee has met the established requirements for employment benefit eligibility, as applicable.

(3) This article does not require an employer to provide an employee with more sick and safe leave in a year than the baseline amount specified in this section. This article does not require an employer to allow an employee to accrue more than the baseline amount specified of sick and safe leave in a year. An employer may inform an employee that leave requested in excess of the employee's available sick and safe leave will not be paid. The baseline amount for sick and safe leave for full time employees under this article is fifty-six (56) hours per employee per year unless the employer chooses a higher limit.

(4) All available sick and safe leave up to the baseline amount provided in this section shall be carried over to the following year. Provided, that an employer that makes at least the baseline amount of sick and safe leave available to an employee at the beginning of the year under the purpose and usage requirements of this article is not required to carry over sick and safe leave for that year.

(5) A written contract made pursuant to title 29, section 158(d) of the United States Code, or other state or federal law that provides for collective bargaining between an employer and a labor organization representing employees shall determine the benefits provided to employees and shall not be subject to this article.

(c) *Usage requirements.*

(1) Sick and safe leave shall be available for an employee to use in accord with this article, provided, that an employer that has an established employment benefit eligibility period prior to the effective date of this article for all employees may restrict or limit an employee from using sick and safe leave during an employee's benefit eligibility period. An established eligibility period applying to the use of sick and safe leave may not exceed ninety (90) days from the start of employment. Employment benefit eligibility periods for the use of sick and safe leave are not applicable to, and do not supersede, any other timeline or eligibility requirement set out in state or federal law.

(2) An employee may request sick and safe leave from an employer for an absence from the employee's scheduled work time caused by:

a. The employee's physical or mental illness or injury, preventative medical or health care or health condition; or

b. The employee's need to care for a family member's physical or mental illness, preventative medical or health care, injury or health condition; or

c. The employee's or their family member's need to seek medical attention, seek relocation, obtain services of a victim services organization or participate in legal or court ordered action related to an incident of victimization from domestic abuse, sexual assault, or stalking involving the employee or the employee's family member.

(3) Verification of leave.

a. An employer may not adopt verification procedures that would require an employee to provide a detailed description of the domestic abuse, sexual assault, stalking, illness, injury, health condition or other health need when making a request for sick and safe leave under this section.

b. Consecutive days missed. An employer may adopt reasonable verification procedures consistent with section 15-272(c)(3)(c) to establish that an employee's request for more than three (3) consecutive days of sick and safe leave meets the requirements of this article.

c. Reasonable verification procedures for consecutive days missed:

1. An employer cannot request leave verification documentation from an employee until the employee's fourth (4^{th}) consecutive day of using sick and safe leave.

2. An employee will choose what documentation to provide in responding to a request for verification. The department will make examples of verification available to employers and employees.

3. Verification may include a written statement from the employee that the employee took either "sick" or "safe" leave provided by this article.

d. Abuse of sick and safe leave. Employers suspecting abuse of sick and safe leave, including patterns of use, may request verification of the employee's need for leave, consistent with limitations and parameters established by state and federal law, or other source. Indications of patterns of use may include but are not limited to, repeated use of unscheduled sick and safe leave on or adjacent to weekends, holidays, vacation, pay day, on days when other leave has been denied, or when mandatory shifts are scheduled. An employer must abide by all existing

federal and state laws regarding discrimination and employment practices.

e. An employer that determines that an employee has failed to comply with the verification requirements set out in 15-273(c)(3)(b), (c) or (d), may address that failure consistent with its established disciplinary processes and procedures.

f. Confidentiality and nondisclosure. If, in conjunction with this article, an employer possesses health or medical information regarding an employee or an employee's family member or information pertaining to domestic abuse, sexual assault, or stalking of an employee or an employee's family member, the employer must treat such information as confidential and not disclose the information except with permission of the employee, when ordered by a court or administrative agency, or when otherwise required by federal, state or local law.

(4) An employer shall provide sick and safe leave for an employee's absence from the employee's scheduled work time if the employee has available sick and safe leave and makes a timely request for the use of sick and safe leave before their scheduled work time. An employer may not prevent an employee from using sick and safe leave for an unforeseen qualified absence that meets the requirements of this section.

(5) This section does not require any employer to allow an employee to use more than the baseline amount set forth within section 15-272(b)(3) of sick and safe leave in a year.

(6) An employee who is rehired by an employer within six (6) months following separation from employment from that employer may use any sick and safe leave available to the employee at the time of the separation. An employer is not required to pay out the balance of sick and safe leave to an employee upon separation from employment. However, if an employer chooses to pay out the balance of sick and safe leave to an employee upon separation from employment, the employer is not required to reinstate any sick and safe leave upon rehiring of the employee.

(d) *Requiring employees to find a replacement to work scheduled time prohibited.* An employer shall not require an employee to find a replacement to cover the hours of sick and safe leave as a condition of using sick and safe leave. This article does not prohibit an employer from allowing an employee to voluntarily exchange hours or voluntarily trade shifts with another employee or prohibit an employer from establishing incentives for employees, to voluntarily exchange hours or voluntarily trade shifts.

(e) *Donating unused sick and safe leave.* This article does not prohibit an employer from permitting an employee to donate available sick and safe leave to another employee.

(f) *Employee transfer.* Neither the amount of sick and safe leave nor the right to use sick and safe leave shall be affected by an employee's transfer to a different facility, location, division or job position with the same employer.
(Ord. No. 2018-08-16-0620, § 2, 8-16-18; Ord. No. 2019-10-03-0795, § 1, 10-3-19)

Sec. 15-273. No change to more generous leave policies.

(a) An employer may provide paid leave benefits to its employees that exceed or otherwise meet the requirements of this article. This article does not require an employer who makes paid time off available to an employee in a manner consistent with this article to provide additional sick and safe leave to that employee. An employer that provides the following minimum requirements to employees will be considered to be compliant with this article:

(1) The employer provides an amount of leave for employees that is consistent with what is set out in section 15-272 (b) as a baseline amount;

(2) An employee may use provided leave for circumstances set out in this article.

(b) This article does not require an employer to provide additional sick and safe leave to an employee if the employee has used paid time off that meets the requirements of this article for a purpose not specified in section 15-272.

(c) This article does not prohibit an employer from granting sick and safe leave to an employee prior to accrual by the employee.

(d) A covered employer with a leave policy that is otherwise compliant with the requirements of this article must still comply with and meet all other applicable requirements established by this article, including the prohibition of retaliating against employees that utilize sick and safe leave consistent with this article.
(Ord. No. 2018-08-16-0620, § 2, 8-16-18; Ord. No. 2019-10-03-0795, § 1, 10-3-19)

Sec. 15-274. Notice, recordkeeping, and signage requirements.

(a) *Monthly notice to employee.* On no less than a monthly basis, an employer shall provide, or make available for review, electronically or in writing to each employee a statement showing the amount of the employee's available sick and safe leave or the paid time off (PTO) balance that can be used in the same manner as sick and safe leave. This section does not create a new requirement for certified payroll.

(b) *Notice in employee handbook.* An employer who provides an employee handbook to its employees must include a notice of an employee's rights and remedies under this article in that handbook.

(c) *Recordkeeping.* For the period required for maintenance of records under title 29, section 516(a) of the Code of Federal Regulations, an employer shall maintain records establishing the amount of sick and safe leave accrued and used by each employee.

(d) *Posting of signs.* If the director makes such signage publicly available on the department's website, an employer shall display a sign describing the requirements of this article in a conspicuous place or places where notices to employees are customarily posted. The director has the authority to prescribe the size, content, and posting location of signs required under this section. The signs displayed under this section shall be in English and other languages, as determined by the director.
(Ord. No. 2018-08-16-0620, § 2, 8-16-18; Ord. No. 2019-10-03-0795, § 1, 10-3-19)

Sec. 15-275. Retaliation prohibited.

An employer may not transfer, demote, discharge, suspend, reduce hours or directly threaten these actions against an employee because that employee requests or uses sick and safe leave consistent with this article, reports or attempts to report a violation of this article, participates or attempts to participate in an investigation or proceeding under this article, or otherwise exercises any rights afforded by this article.
(Ord. No. 2018-08-16-0620, § 2, 8-16-18; Ord. No. 2019-10-03-0795, § 1, 10-3-19)

Sec. 15-276. Investigation and withdrawal of complaints.

(a) An employee may file a complaint with the department and the department may investigate complaints, including anonymous complaints alleging a violation of this article.

(b) A complaint alleging a violation of this article must be filed with the department by or on behalf of an aggrieved employee within one (1) year from the date of the violation. A complaint will be deemed to be received by any member of city staff if provided in writing and shall be directed to the department by city staff. A submitted complaint should provide the following information:

(1) Name of company or employer;

(2) Location of company or employer (including branch or office);

(3) Date of incident or violation;

(4) Explanation of incident or violation;

(5) List of witnesses or persons with knowledge of the incident or violation, as applicable.

(c) An employer shall provide relevant information and testimony when requested by the department for the purposes of determining compliance with this article within fifteen (15) days of the department's request for information. An employer may request an additional ten (10) days to provide information as determined to be appropriate and upon approval of the director. Relevant information and testimony includes, and is limited to, only the information necessary to determine whether a violation of this article has occurred. This article does not provide the department with subpoena power.

(d) Pre-investigation voluntary compliance. The department will provide written notice to a employer advising that a complaint has been filed alleging a violation of this chapter and will be investigated by the department. Upon receipt of a notice of complaint, the employer will have ten (10) business days to resolve the subject matter of the complaint by paying an employee for sick and safe leave that was taken and not paid for, provide an additional period of sick and safe leave to what was denied or taken without pay, and/or addressing and correcting an administrative violation. Additional voluntary compliance methods or options can be considered and approved by the director as appropriate to the resolution of a complaint.

(e) The department shall only investigate matters related to this article and submitted complaints related to this article. The department may inform employees and relevant personnel at a worksite of an investigation of a complaint at that worksite alleging a violation of this article.

(f) Withdrawal of complaints. An employee, at any time and at the employee's sole discretion, may withdraw their complaint. A complaint is withdrawn by the employee, and will be deemed to be received, when the employee notifies an employee or elected official of the City of San Antonio in writing. A complaint withdrawal will terminate the investigation process immediately, and will result in a finding of "withdrawn complaint" with respect to the outcome of the investigation. A finding of "withdrawn complaint" will result in no fine being assessed against the employer.
(Ord. No. 2018-08-16-0620, § 2, 8-16-18; Ord. No. 2019-10-03-0795, § 1, 10-3-19)

Sec. 15-277. Enforcement.

The department has the authority to enforce the provisions of this article.
(Ord. No. 2018-08-16-0620, § 2, 8-16-18)

Sec. 15-278. Violation(s); civil penalties; voluntary compliance.

(a) Civil penalty. Any employer who intentionally, knowingly, recklessly or negligently violates any provision of this chapter shall, consistent with the judicial procedure laid out in § 20-104 et seq., be fined an amount not more than five hundred dollars ($500.00). Each day that a violation is committed or permitted to exist shall constitute a separate offense. Each violation of a particular section or subsection of this article constitutes a separate offense.

(b) If it is determined after investigation of a timely complaint that a violation of this article has occurred an employer shall receive written notice of the violation and the civil penalty assessed, if any. Such written notice is presumed to have been received on the fifth day after the notice is mailed.

(c) Post-investigation voluntary compliance. If the municipal court/administrative hearing officer finds after investigation of a timely complaint that a violation of this article has occurred, the department may seek voluntary compliance from the employer to remedy any violation of this article before submitting the violation for prosecution. Upon receipt of a notice of violation, the employer will have ten (10) business days to resolve the violation by paying an employee for sick and safe leave that was taken and not paid for, provide an equivalent period of sick and safe leave to what was denied or taken without pay, and/or addressing and correcting an administrative violation. Additional voluntary compliance methods or options can be considered and approved by the director as

appropriate to the resolution of a violation. If voluntary compliance is not achieved within ten (10) business days following the employer's receipt of the written violation notice, the violation will be submitted for filing at Municipal Court.

(d) For a violation of this article that occurs after the effective date of the ordinance from which this article derives but before April 1, 2020, the department may issue a notice to the employer that a civil penalty may be assessed for a violation that occurs on or after April 1, 2020. Provided, that a civil penalty for a violation of section 15-275 (retaliation prohibited) may be assessed anytime after the effective date of the enabling ordinance.

(e) This section does not create a criminal offense.
(Ord. No. 2018-08-16-0620, § 2, 8-16-18; Ord. No. 2019-10-03-0795, § 1, 10-3-19)

Sec. 15-279. Annual report.

The director shall publish an annual report regarding implementation and enforcement of this article including, without limitation, information about the number and nature of complaints reported, investigations undertaken, specific violations found, compliance achieved, and penalties assessed in the prior year, information about the industries and occupations with high rates of complaints and violations, and a discussion of this article's impact on employers and employees. This report may also include the director's recommendations for improvements to this article.
(Ord. No. 2018-08-16-0620, § 2, 8-16-18; Ord. No. 2019-10-03-0795, § 1, 10-3-19)

Sec. 15-280. Severability.

It is hereby declared to be the intention of the city council that the sections, paragraphs, sentences, clauses and phrases of this chapter are severable, and if any phrase, clause, sentence, paragraph or section of this chapter shall be declared unconstitutional by the valid judgment or decree of any court of competent jurisdiction, such unconstitutionality shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections of this chapter, since the same would have been enacted by the city council without the incorporation in this chapter of any such unconstitutional phrase, clause, sentence, paragraph or section.
(Ord. No. 2019-10-03-0795, § 1, 10-3-19)

Sec. 15-281. Effective date.

This article shall become effective on December 1, 2019.
(Ord. No. 2018-08-16-0620, § 2, 8-16-18; Ord. No. 2019-10-03-0795, § 1, 10-3-19)

Editor's note—Ord. No. 2019-10-03-0795, § 1, adopted Oct. 3, 2019, added a new § 15-280 to the Code, and in so doing renumbered the former § 15-280 as § 15-281, as set out herein.

ARTICLE XII. DOMESTIC VIOLENCE SIGNAGE

Sec. 15-282. Definitions.

City means the City of San Antonio.

Department means the health department of the city also known as the San Antonio Metropolitan Health District.

Director means the director of the San Antonio Metropolitan Health District or their authorized designee.

Person means an individual, association, corporation, or any other business entity.

Place of public accommodation shall include every business within the city, whether wholesale or retail, which is open to the general public and offers, for compensation, any product, service or facility. The term place of public accommodation shall include, but not be limited to, all taverns, hotels, motels, apartment hotels, apartment houses with four (4) or more tenant units, restaurants or any place where food or beverages are sold, retail and wholesale establishments, hospitals, theaters, motion picture houses, museums, bowling alleys, golf courses and all public conveyances, as well as the stations or terminals thereof.
(Ord. No. 2023-10-19-0747, § 2, 10-19-23)

Sec. 15-283. Scope and intent of article.

To provide regulations for the display of signage related to domestic violence in order to increase community awareness and vigilance about this critical issue and ensure that those in need have access to support services.
(Ord. No. 2023-10-19-0747, § 2, 10-19-23)

Sec. 15-284. Duties and powers of the director.

The director is hereby authorized to carry out and enforce the provisions of this article, to educate the community about this article, to render interpretations of this article, and to adopt policies and procedures in order to clarify and administer the application of this article's provisions. Such interpretations, policies and procedures shall be in compliance with the intent and purpose of this article. Such policies and procedures shall not have the effect of waiving requirements specifically provided for in this article.
(Ord. No. 2023-10-19-0747, § 2, 10-19-23)

Sec. 15-285. Requirement of display of domestic violence signage.

(a) A person who operates a place of public accommodation shall post in clear view, signage prescribed by the department, featuring domestic violence prevention resources in all restrooms at the entity. The signage shall be placed on the bottom right corner of the restroom mirror. If no mirror is available, or the mirror is smaller than forty-eight (48) inches by thirty (30) inches in size, then the signage shall be placed on the back of the restroom door at eye level or five feet from the floor.

(b) The director shall prescribe the design and content of the signage required to be posted under this article and make the signage available on the department's website, in person or by mail upon request. The signage shall contain information regarding services and assistance available to victims of domestic violence and be in English and Spanish, and any other language determined appropriate by the director.
(Ord. No. 2023-10-19-0747, § 2, 10-19-23)

Sec. 15-286. Enforcement.

(a) The department shall have authority to enforce the provisions of this article.

(b) Any citizen may register a complaint with the department which may initiate an investigation by the department.

(c) The department, while an establishment is undergoing otherwise mandated inspections, inspect for compliance with this article.

(d) The director shall inform the entity of any discovered failure to comply with this article. The entity shall cure the violation or demonstrate to the director that the finding of non-compliance was incorrect. If the entity is found to be in non-compliance, the department shall provide the entity signage and resource materials.

(e) Section 1-5 of the City Code does not apply to this article.
(Ord. No. 2023-10-19-0747, § 2, 10-19-23)

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Chapter 16

LICENSES AND BUSINESS REGULATIONS*

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*__Charter reference—__Power to license and regulate businesses, § 3.

__Cross references—__Regulation of sales of alcoholic beverages, § 4-1 et seq.; fee schedule, § 6-3; licensing and registration, § 10-111 et seq.; food handlers, § 13-96 et seq.; restaurants, § 13-201 et seq.; bottling works, vinegar and pickles factories, § 13-121; pecan products establishments, § 13-141 et seq.; mobile food vending, § 13-231 et seq.; private garbage and trash collection services, § 14-51 et seq.; hotels, § 15-81 et seq.; embalming rooms, § 15-171 et seq.; massage parlors, § 17-1 et seq.; mobile home parks, § 18-1 et seq.; wrecker services, § 19-386 et seq.; off-premises sign operators, § 28-51 et seq.; on-premises sign operators, § 28-71 et seq.; taxation, § 31-1 et seq.; tourist and trade centers, § 32-1 et seq.; taxicabs, § 33-16 et seq.; horse-drawn carriages, § 33-201 et seq.

__State law reference—__General authority of city to license and regulate businesses, Vernon's Ann. Civ. St. art. 1175(24).

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ARTICLE I. IN GENERAL

Sec. 16-1. Accreditation of day care homes; fees.

(a) The department of human resources and services is authorized to implement a day care homes accreditation system. The director of the department of human resources is authorized to promulgate standards, subject to subsequent city council approval, to qualify day homes within the city limits for accreditation from the City of San Antonio.

(b) The following fee schedule for the accreditation process is hereby established:

Application fee	$10.00
Accreditation certificate fee	5.00
Annual renewal fee.	5.00

The director of finance is authorized to establish the necessary accounts for deposit of the assessed fees.

(Ord. No. 60921, §§ 1, 2, 6-20-85)

Editor's note—Nonamendatory Ord. No. 60921, §§ 1, 2, adopted June 20, 1985, has been codified herein as § 16-1 at the discretion of the editor.

Sec. 16-2. Reserved.

Editor's note—Ord. No. 99733, § 5, adopted September 16, 2004, repealed § 16-2 in its entirety, which pertained to a license fee for sidewalk photographers, and derived from Ord. No. 63230, § 2, adopted July 16, 1986.

Sec. 16-3. Application/permit fee for facilities using hazardous materials; response fee based on materials and man-hours required at scene of accident.

(a) An annual permit fee is hereby imposed on every person or corporation that owns, operates, or acts as the agent for any business location where one or more hazardous materials are used, stored, transported, manufactured, generated, disposed or sold within the city, in the fee amounts and for the types of businesses or activities and for the quantities of chemical listed in table I. Businesses and/or locations utilizing, storing, transporting, manufacturing, disposing of, or selling hazardous materials in quantities in excess of the operational permitting requirements of the Code of Ordinances of the City of San Antonio, Part II-Code, Chapter 11 Fire Prevention Code are subject to the provisions of this section.

(b) Where more than one location is used by the same person, corporation or entity, a separate service fee shall be paid for each location within the city.

(c) The annual permit fees listed in table I shall be applied based upon the maximum quantity of a hazardous material present at any one time during the preceding year, except that each service station engaged in retail sales of fuel shall pay a flat fee of six hundred dollars ($600.00) per location. Exception: Retail service stations storing thirty thousand (30,000) gallons of fuel or less shall pay a flat fee of one hundred fifty dollars ($150.00) per location.

(d) The annual permit is required for each location used by the permittee, and a change of ownership of the location where the chemicals are stored, manufactured, generated, disposed of or sold shall be cause for a new permit. The change of ownership of the business or entity handling the chemicals shall be cause for a new permit.

(e) A "hazardous material response fee" shall be paid to the city fire department by the person, corporation, or entity which created the hazard or which owned the materials or chemicals and said fee shall be determined by the time required at the scene of the hazardous incident at the rate of eight hundred dollars ($800.00) per hour per apparatus per incident, plus any applicable fire department personnel overtime costs. The hourly rate shall be prorated in 15-minute increments at the beginning of each increment. All expendable commodities used at the scene will be billed at cost to the person, corporation, or entity which created the hazard or which owned the hazardous materials or chemicals.

(f) The annual permit fees shall be due and payable thirty (30) calendar days from date of invoice for calendar year. Payment shall be by cash, money order, or check made payable to the City of San Antonio, and payable at the City of

San Antonio, Treasury Division, at 506 Dolorosa Street or by addressing the payment to the City at P.O. Box 839966, San Antonio, Texas 78283-3966.

(g) A five (5) percent late penalty shall attach when payment is due (thirty (30) calendar days from invoice) and shall be collected and processed in the same manner as if they were part of the service fee. Said penalty may be partially or wholly waived by the city treasurer only if the delinquent payment is documented as not due to the error, oversight, or intent of the permittee.

(h) Annual hazardous materials permits shall be issued for each location operated or maintained by the permittee, and the permittee shall post said permit in a conspicuous place at each such location.

(i) Natural persons who use, store, transport, generate or dispose of hazardous materials in household consumer quantities for personal, noncommercial purposes are specifically excluded from compliance with the provisions of this section.

(1) Enforcement of this section shall be enforced by the fire prevention division and other members of the fire department duly authorized by the fire chief.

(2) Any person or corporation having any duty under subsections (a) through (i) commits an offense if they knowingly fail to comply with any provisions of this section or with any of the requirements thereof.

(3) Any persons violating any provisions of this section shall be guilty of a misdemeanor. Each day upon which such a violation occurs constitutes a separate offense. Upon conviction, each violation shall be punishable by a fine of not less than one hundred dollars ($100.00) nor more than two thousand dollars ($2,000.00).

Table I
Hazardous Materials Fees

001	$600.00/ $150.00	Retail Service Station over 30,000 gallons/Retail Service Stations 30,000 gallons or less	
002	300.00	101 lbs	999 lbs
003	390.00	1,000 lbs	4,999 lbs
004	490.00	5,000 lbs	9,999 lbs
005	600.00	10,000 lbs	49,999 lbs
006	1,020.00	50,000 lbs	99,999 lbs
007	1,190.00	100,000 lbs	499,999 lbs
008	1,530.00	500,000 lbs	999,999 lbs
009	1,870.00	1,000,000 lbs	4,999,999 lbs
010	2,220.00	5,000,000 lbs	9,999,999 lbs
011	2,560.00	10,000,000 lbs	49,999,999 lbs
012	3,250.00	50,000,000 lbs	99,999,999 lbs
013	3,930.00	100,000,000 lbs	and above

(Ord. No. 72267, §§ 1-9, 9-13-90; Ord. No. 76469, §§ 1—4, 9-10-92; Ord. No. 84793, §§ 3, 4, 9-19-96; Ord. No. 90493, §§ 2, 3, 9-16-99; Ord. No. 92515, § 1, 9-14-00; Ord. No. 2006-09-07-1000, § 1, 9-7-06; Ord. No. 2008-09-11-0777B, § 5, 9-11-08; Ord. No. 2009-09-17-0731E, § 3, 9-17-09; Ord. No. 2011-09-15-0752, § 1(Att. A), 9-15-11; Ord. No. 2013-09-12-0631, § 2(Att. D), 9-12-13; Ord. No. 2015-01-29-0067, § 5, 1-29-15; Ord. No. 2021-09-16-0682, § 2(Att. B), 9-16-21; Ord. No. 2022-09-15-0678, § 2(Att. D), 9-15-22)

Editor's note—Ord. No. 72267, §§ 1-9, adopted Sept. 13, 1990, did not specifically amend the Code and at the discretion of the editor said provisions have been included herein as § 16-3.

Cross references—Environmental provisions, § 3-97; spill or release notification and cleanup, § 3-101; fire prevention, Ch. 11.

Sec. 16-4. Regulations governing basic service rates for cable television systems.

(a) Pursuant to the regulatory jurisdiction permitted under Section 3 of the Cable Television Consumer Protection and Competition Act of 1992 (47 U.S.C. § 543) and the authority to grant and regulate franchises under Article XI of the City Charter of the City of San Antonio, the City of San Antonio shall regulate the rates for the provision of cable service or any other communications service provided over a cable system to cable subscribers by any cable television system operating in the City of San Antonio to the extent authorized under Section 3 of the Act in accordance with regulations prescribed by the Federal Communications Commission.

(b) Pursuant to the authority of Article XI of the City Charter, the office of the supervisor of public utilities shall carry out the regulatory function established herein. The supervisor of public utilities shall perform studies and submit reports to the city council for final action. By resolution of the city council so directing, the cable advisory committee shall hold public hearings which will provide a reasonable opportunity for consideration of the views of interested parties. Notice of such hearings shall be published in a newspaper of general circulation at least five (5) days prior to the date of the scheduled public hearing. The cable advisory committee shall submit a report to the city council which will be submitted along with the report of the supervisor of public utilities for final action by the city council. Upon receipt of the reports of the supervisor of public utilities and the cable advisory committee, the city council shall act upon such matters at a regularly scheduled meeting of the city council at which time interested parties shall be provided a reasonable opportunity to have their views considered by the city council.

(c) In carrying out the regulatory jurisdiction established in this section, the supervisor of public utilities shall in all respects conform to the requirements of the Federal Communications Commission set forth in Part 76 of Chapter I of Title 47 of the Code of Federal Regulations, and those requirements are hereby adopted as applicable to the regulatory jurisdiction established herein. A copy of such requirements are attached to Ordinance No. 78870 as Exhibit I and incorporated herein by reference.
(Ord. No. 78870, §§ 1—3, 10-7-93)

Editor's note—Ord. No. 78870, §§ 1—3, adopted Oct. 7, 1993, has been codified herein at the discretion of the editor as § 16-4.

Cross reference—Tampering with CATV system prohibited, § 21-18.

Sec. 16-5. Tax phase-in application fee.

A non-refundable application fee of fifteen hundred dollars ($1,500.00) is hereby established and is to be charged with the submittal of any tax phase-in application.
(Ord. No. 86607, § 1, 9-11-97)

Sec. 16-6. Notice of tenant rights.

(a) If a residential tenant fails to timely pay rent and a landlord delivers to the tenant a notice to vacate for non-payment of rent, a landlord shall provide the tenant a notice of tenant rights within one (1) business day of the date of delivery of the notice to vacate for non-payment of rent.

(b) A property owner or landlord who, individually or through an agent or representative intentionally, knowingly, recklessly, or negligently violates this section shall be given one warning. After the first violation and receipt of a warning, a property owner who, individually or through an agent or representative intentionally, knowingly, recklessly, or negligently violates this section shall, consistent with the judicial procedure laid out in section 20-104 et seq. of the city Code (administrative adjudication hearings) and as the sole remedy for the violation, be fined an amount not more than five hundred dollars ($500.00). Nothing herein shall create a private cause of action for the failure to deliver a notice of tenant rights.

(c) A complaint alleging a violation of this section must be reported within ninety (90) days from the date of the violation.

(d) It shall be a defense to prosecution:

(1) That the eviction proceedings were instituted against a tenant when the tenant, members of the tenant's household, or guests breached the terms of the lease other than for non-payment of rent or fees; or

(2) Delivery of a prior version of the notice of tenant's rights unless the property owner has received a warning for delivery of an obsolete version of the notice of tenant's rights.

(e) A notation on a copy of the notice of tenant rights shall be prima facie evidence of the manner of its delivery.
(Ord. No. 2020-06-25-0453, § 7, 6-25-20)

Secs. 16-7—16-15. Reserved.

ARTICLE II. BILLIARD HALLS

Sec. 16-16. Definitions.

As used in this article, the following words and terms shall have the definitions ascribed in this section, to wit:

Billiard hall shall mean any place wherein a billiard table or tables are provided to be played on for compensation.

Billiard table is defined as any table surrounded by a ledger or cushion with or without pockets in which balls are impelled by a stick or a cue and which is not operated solely by a coin deposit.

Coin-operated billiard table is a billiard table as defined herein that is operated solely by a coin deposit.

Licensee shall mean every person, firm, association of persons, and corporation holding a billiard table license.
(Code 1959, § 8A-1; Ord. No. 32225, § 1, 4-9-64; Ord. No. 46600, § 1, 4-29-76)

Sec. 16-17. License required.

It shall be unlawful for any person to keep, have, conduct or operate any billiard table for profit within the city without first obtaining a license therefor.
(Code 1959, § 8A-2; Ord. No. 32225, § 2, 4-9-64)

Sec. 16-18. Exceptions.

The provisions of section 16-17 shall not apply to billiard tables kept on the premises of religious, charitable and educational organizations not operated for private profit and for the use of members and their guests; nor to billiard tables kept in private residences and used without charge by members of the family or bona fide guests; nor to billiard tables kept on the premises of bona fide clubs or social organizations not operated for private profit and which provide for membership privileges and activities although a charge may be made to members and their guests to help defray costs of upkeep and maintenance.
(Code 1959, § 8A-2; Ord. No. 32225, § 2, 4-9-64)

Sec. 16-19. Application for license.

Before obtaining a license required by this article, the applicant shall make a written, signed application therefor to the city tax assessor-collector. The application shall be made on forms provided by the city and shall set forth information concerning the applicant including but not limited to:

(1) The full name, age, place of birth and present residence and business address of the applicant.

(2) The length of residence of the applicant in city and state and whether or not he is a citizen of the United States.

(3) A personal description of the applicant including age, height, weight, race, color of eyes, complexion, color of hair, facial marks and defects if any, sex, marital status and telephone number.

(4) Whether applicant has been charged with or convicted of any felony or misdemeanor, but excluding traffic violations, and if so full information concerning each.

(5) The number of billiard tables to be obtained and the location of the proposed billiard hall.

(Code 1959, § 8A-4; Ord. No. 32225, § 4, 4-9-64)

Sec. 16-20. Amount of fee and occupation tax; payment; refunds.

The fee for a license required by this article shall be ten dollars ($10.00) annually for each billiard table. In addition every licensee shall pay one-half the state tax for each billiard table operated by the licensee. The tax shall be paid annually to the city treasurer on or before the effective date therefor. No refund shall be made after said tax is paid.
(Code 1959, § 8A-3; Ord. No. 32225, § 3, 4-9-64; Ord. No. 37514, § 1, 5-22-69; Ord. No. 39555, § 1, 6-3-71; Ord. No. 46600, § 1, 4-29-76)

Sec. 16-21. Receipt; proration.

The city treasurer, who shall issue a receipt for each license and license renewal, showing the period covered thereby and the amount of tax for which the receipt is issued. Where a license is

which the receipt is issued. Where a license is issued for a period of less than one (1) year, the fee shall be prorated on the basis of one-quarter of the annual fee for each three (3) months.
(Code 1959, § 8A-3; Ord. No. 32225, § 3, 4-9-64; Ord. No. 37514, § 1, 5-22-69; Ord. No. 39555, § 1, 6-3-71; Ord. No. 46600, § 1, 4-29-76)

Sec. 16-22. Investigation of applicant by chief of police; issuance or denial of license.

The city treasurer shall refer the application filed pursuant to this article to the chief of police who shall verify the accuracy of the statements made in the application and may request character references from two (2) citizens of the county attesting to the applicant's good moral character. The chief of police shall then submit his' recommendation to the city treasurer who shall issue or refuse the license accordingly.
(Code 1959, § 8A-5; Ord. No. 32225, § 5, 4-9-64; Ord. No. 46600; § 1, 4-29-76)

Sec. 16-23. Term; renewals.

(a) All licenses issued pursuant to this article shall expire one (1) year from the date the license is effective except as follows:

(1) Where an establishment operating under a billiard hall license only subsequently obtains a beer license, the next renewal is effective to the date of expiration of the beer license.

(2) Where an establishment operating under a beer license only subsequently installs one (1) or more billiard tables, the initial billiard hall license shall cover the period from its effective date to the date of expiration of the beer license.

(b) Licenses may be renewed upon application to the city treasurer. Application for renewal shall be referred to the chief of police for determination as to continuing compliance with this article.
(Code 1959, § 8A-3; Ord. No. 32225, § 3, 4-9-64; Ord. No. 37514, § 1, 5-22-69; Ord. No. 39555, § 1, 6-3-71; Ord. No. 46600, § 1, 4-29-76)

Sec. 16-24. Sealing machines for failure to pay tax.

The license and dues inspectors of the city treasurer's office are authorized to and shall have the power to seal or make inoperable without damaging any billiard table on which the license tax has not been paid. The license and dues inspectors are authorized to release any billiard tables so sealed upon the payment in full of all license fees and occupation taxes due and the payment of a fee of five dollars ($5.00) to the city treasurer for each billiard table so sealed.
(Code 1959, § 8A-3; Ord. No. 32225, § 3, 4-9-64; Ord. No. 37514, § 1, 5-22-69; Ord. No. 39555, § 1, 6-3-71; Ord. No. 46600, § 1, 4-29-76)

Sec. 16-25. Posting license in a conspicuous place.

Any license issued under this article shall be posted by the licensee in a conspicuous place near the entrance of any room or rooms where any billiard tables are operated, maintained or kept for profit or for the amusement of their patrons.
(Code 1959, § 8A-8; Ord. No. 32225, § 8, 4-9-64)

Sec. 16-26. Transfer of license.

A license issued pursuant to this article may be transferred to a different lawful location upon application and payment of a transfer fee of one dollar ($1.00). Licenses may not be transferred to a different licensee.
(Code 1959, § 8A-9; Ord. No. 32225, § 9, 4-9-64)

Sec. 16-27. Zoning regulations to be complied with.

No license shall be issued for any location where the proposed operation would be in violation of chapter 35, Zoning.
(Code 1959, § 8A-10; Ord. No. 32225, § 10, 4-9-64)

Sec. 16-28. Revocation of license.

The chief of police may revoke or suspend the license of any person issued under the provisions of this article if the applicant has knowingly

made any false, misleading or fraudulent statement of fact in the licensing application; or upon any grounds that would warrant the denial of issuance of the license in the first place; or for permitting gambling within the billiard hall. Notice of the suspension or revocation shall be given to the licensee in writing, with the reasons for the suspension or revocation specified in the notice. The notice shall be served either by personal service upon the licensee, or by posting the notice upon the establishment.
(Code 1959, § 8A-6; Ord. No. 32225, § 6, 4-9-64; Ord. No. 46600, § 1, 4-29-76)

Sec. 16-29. Appeal from revocation.

When an applicant is refused a license required by this article or when a license is revoked or suspended by the chief of police the applicant may appeal to the city council within ten (10) days of such refusal, revocation or suspension, which appeal shall be perfected by delivering to the city clerk a letter stating that an appeal is desired. In the event of the filing of an appeal, until such appeal has been determined by the city council, the suspension order shall be stayed. The city council shall within a reasonable time after receiving the notice of appeal hold a hearing thereon and after the hearing sustain or reverse the decision of the chief of police. If no appeal is taken from the finding made by the chief of police within the prescribed ten-day period, the decision of the chief of police shall be final. (Code 1959, § 8A-7; Ord. No. 32225, § 7, 4-9-64; Ord. No. 46600, § 1, 4-29-76)

Sec. 16-30. Unobstructed view by general public.

(a) Every billiard hall shall have unobstructed windows or open space on at least one (1) side so that the area is open to view by the general public passing by on a public street or using a corridor, lobby or other rooms to which the public resorts and is admitted without charge. The licensee shall not permit any obstruction of such public view by the use of drawn shades, blinds, partitions or other structures or obstructions.

(b) The requirements of (a) above may be waived or modified by the chief of police if the licensee can demonstrate:

(1) The billiard hall is located in a structure deemed a historic landmark, or the structure is within a historic district or a designated business development district, and deemed to have architectural or historic significance; and

(2) Compliance with the unobstructed view requirement shall require alterations to the structure that will have a substantially detrimental effect on its historic or architectural features. In making his decision, the chief shall consider the written opinion of the city's historic preservation officer in regards to (1) and (2) above. The historic preservation officer shall submit such written opinion to the chief within fourteen (14) days from the date the chief requests the opinion. Failure by the historic preservation officer to submit such written opinion shall be deemed as establishment of both conditions (1) and (2) above.

(Code 1959, § 8A-11; Ord. No. 32225, § 11, 4-9-64; Ord. No. 94707, § 1, 10-11-01)

Sec. 16-31. Hours of operation.

It shall be unlawful for any person to keep, conduct or operate any billiard table or coin-operated billiard table for profit or to allow or permit any billiard hall to remain open for business or open to the public before the hour of 7:00 a.m. or after the hour of 2:00 a.m. provided, however, that national or state-wide tournaments may be conducted without complying with such hours if sponsored by any established national billiard association which submits a written request at least forty-five (45) days prior to the first day of the tournament, to the city manager, and if it receives city council's approval by way of ordinance.
(Code 1959, § 8A-13; Ord. No. 32225, § 13, 4-9-64; Ord. No. 37504, § 5-22-69; Ord. No. 37931, § 1, 9-25-69; Ord. No. 39707, § 1, 7-22-71; Ord. No. 46600, § 1, 4-29-76; Ord. No. 63743, 9-25-86; Ord. No. 69322, 4-20-89)

Sec. 16-32. Proprietors prohibited from permitting betting.

It shall be unlawful for any person who keeps, conducts or operates a billiard table for profit or for the amusement of their patrons knowingly to permit or allow any wager or bet to be made on the outcome of any game, contest or exhibition played upon any such billiard table.
(Code 1959, § 8A-15; Ord. No. 32225, § 15, 4-9-64)

Sec. 16-33. Presence of minors.

No person under eighteen (18) years of age shall be permitted to remain in any billiard hall where any intoxicating beverages are dispensed or consumed, unless accompanied by parent, legal guardian or spouse of legal age.
(Code 1959, § 8A-16; Ord. No. 32225, § 16, 4-9-64; Ord. No. 35383, § 1, 4-27-67; Ord. No. 42665, § 1, 8-23-73)

Secs. 16-34—16-50. Reserved.

ARTICLE III. CARNIVALS AND STREET SHOWS*

Sec. 16-51. Where prohibited.

Carnivals or street shows are hereby forever barred and forbidden in Milam Park and Presidio Plaza (sometimes called Market House Square).
Code 1950, § 57-2; Code 1959, § 26-6)

Sec. 16-52. Special licensing provisions for carnivals in downtown business district.

(a) No commercial carnival activity shall be conducted in that area of the downtown business district as defined in the Unified Development Code of the city during fiesta week of each year unless and until the carnival activity is licensed and authorized by the city or its duly authorized representative.

(b) Any person found guilty of violating the provisions of this section shall be punished as is provided in section 1-5.
(Code 1959, § 26-6.1; Ord. No. 28702, §§ 1, 2, 7-14-60; Ord. No. 2014-04-03-0206, § 4, 4-3-14)

Editor's note—Ord. No. 2014-04-03-0206, § 4, adopted April 3, 2014, changed the title of section 16-52 from "Special licensing provisions for carnivals in central business district" to "Special licensing provisions for carnivals in downtown business district." The historical notation has been preserved for reference purposes.

Sec. 16-53. Spectators on awnings prohibited; duty of owners.

(a) It shall be unlawful for any person to go upon or be on any awning over any street or other public place in the city during any parade, procession, carnival, fiesta or other similar celebration or during the time the public is assembled and congregated on the sidewalks of such streets or other public places for the purpose of viewing such parade, procession, carnival, fiesta or other similar celebration.

(b) It shall be unlawful for the owner of any building or his tenant or lessee or any other occupant thereof, to willfully allow any person to go upon the awning of any building over any street or other public place or to pass through any window, door or other opening for the purpose of going upon an awning in the building during any parade, procession, carnival, fiesta or other similar celebration.
(Code 1950, §§ 57-3, 57-4; Code 1959, §§ 26-7, 26-8)

Sec. 16-54. Confetti, etc., throwing unlawful.

It shall be unlawful for any person when on any street, park, public ground or other public place during any festival, carnival, fiesta or other public gathering, celebration or demonstration, to throw, spread, place, put, apply or otherwise use any confetti, feather dusters, wife beaters, paint, shoe polish, talcum powder, flour, meal, whips, flapjacks, ticklers, torpedoes or other explosives, or to have in his possession any of such articles, devices, materials or substances whatsoever for such use.
(Code 1950, § 57-6; Code 1959, § 26-9)

*__Cross reference—__Parades, § 19-431 et seq.

Secs. 16-55—16-65. Reserved.

ARTICLE IV. VIRTUAL CURRENCY KIOSKS

Sec. 16-66. Scope and intent of this article.

To provide regulations for the display of signage to combat crypto-kiosk fraud in order to increase community awareness and vigilance about "urgent payment" scams predominantly targeting older citizens and provide for enforcement and assessment of civil penalties for noncompliance.
(Ord. of 05-07-2026(1), § 1, 5-7-26)

Sec. 16-67. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Blockchain means a decentralized digital ledger that stores information across a network of computers or nodes in blocks that are verified and validated to ensure legitimate and accurate transactions.

Chief means the chief of police, or designee, of the San Antonio Police Department.

City means the City of San Antonio, Texas inclusive of its extraterritorial jurisdiction.

Conspicuous means a location on or immediately adjacent to a virtual currency kiosk that is clearly visible to a user standing in front of the kiosk. Required signage in this article must be positioned such that it is not obstructed by glare, external signage, or any physical barrier, ensuring it is within the user's direct line of sight during a transaction.

Crypto ATM or *Bitcoin ATM* means a standalone electronic kiosk that allows users to buy and sell cryptocurrency in exchange for cash or with a debit card or other digital asset. Virtual currency kiosk, crypto ATMs, Bitcoin ATMs, and/or digital asset kiosks shall all be interchangeable and mean the same in this article.

Crypto currency means a virtual currency that utilizes cryptography to secure transactions that are digitally recorded on a cryptographically secured, distributed ledger (blockchain).

Department means the code enforcement division of development services department or any department authorized to file administrative citations pursuant to city code chapter 20, article II.

Digital asset means a digital representation of value that is used as a medium of exchange, unit of account, or store of value, and is not legal tender, whether or not denominated in legal tender.

Digital asset kiosk means any electronic terminal, interactive kiosk, or automated teller machine (ATM) that allows a user to purchase, sell, or exchange digital assets or cryptocurrency with cash or debit card or other digital assets. Virtual currency kiosk, crypto ATMs, Bitcoin ATMs, and/or digital asset kiosks shall all be interchangeable and mean the same in this article.

Director means the director or designee of the code enforcement division or of any other department authorized to file administrative citations pursuant to city code chapter 20, article II.

Owner means a person or entity which owns or operates the business or premises where the virtual currency kiosk is located.

User means any person who purchases or sells virtual currency through a virtual currency kiosk located within the city.

Virtual currency means any digital representation of value for which transactions are recorded on a cryptographically secured ledger or any similar technology or system.

Virtual currency kiosk means an electronic terminal operated by a virtual currency kiosk operator to enable the operator to facilitate the exchange of virtual currency for money, bank credit, or other virtual currency. Virtual currency kiosk, crypto ATMs, Bitcoin ATMs, and/or digital asset kiosks shall all be interchangeable and mean the same in this article.

Virtual currency kiosk operator means a person or entity which owns, leases, manages, maintains, or facilitates the exchange of virtual currency at virtual currency kiosks for money, bank credit, or other virtual currency, including but not limited to, by (1) connecting directly to a separate "virtual currency exchange" that performs the actual virtual currency transmission, or (2) drawing upon the virtual currency in the possession of the electronic terminal's operator.
(Ord. of 05-07-2026(1), § 1, 5-7-26)

Sec. 16-68. Duties and powers of the chief and director.

The chief and director(s) are hereby authorized to carry out and enforce the provisions of this article, to educate the community about this article, to render interpretations of this article, and to adopt policies and procedures in order to clarify and administer the application of this article's provisions.
(Ord. of 05-07-2026(1), § 1, 5-7-26)

Sec. 16-69. Requirement of posting of fraud prevention signage.

(a) Any person or entity operating or providing access to a virtual currency kiosk on its premises shall post on or adjacent to the kiosk a conspicuous written warning in the form prescribed by the department within readable and direct line of sight of the user as the user is standing in front of the kiosk.

(b) The posted signage required in this section shall be developed and issued by the San Antonio Police Department in conformance with the signage requirements listed in this article.
(Ord. of 05-07-2026(1), § 1, 5-7-26)

Sec. 16-70. Requirements in written signage.

(a) The posted sign shall provide notice to include:

(1) The potential fraud or scam risks associated with utilizing the virtual currency kiosk; and

(2) Call 9-1-1.

(b) All written signs must be in both English and Spanish to ensure accessibility and clear notice to users.

(c) All text must be at least eighteen (18) point font and color-coded such that it is noticeable, viewable, and readable.
(Ord. of 05-07-2026(1), § 1, 5-7-26)

Sec. 16-71. Enforcement; administrative adjunction; civil penalty.

(a) The department shall have authority to enforce the provisions of this article.

(b) Any person or other city department may register a complaint with the department which may initiate an investigation by the department.

(c) It shall be a violation of this article for any person or entity operating or providing access to a virtual currency kiosk to fail to post the required signage and maintain it in conformity with the requirements stated herein.

(d) Violations of this article shall be adjudicated by an administrative hearing officer pursuant to chapter 20, article II of the city code.

(e) A person or entity found liable thereof shall be assessed a civil fine of not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00) per violation. Each day a virtual currency kiosk remains on a premises in non-conformity with this article shall constitute a new violation.
(Ord. of 05-07-2026(1), § 1, 5-7-26)

Secs. 16-72—16-110. Reserved.

ARTICLE V. RESERVED*

Secs. 16-111—16-160. Reserved.

*__Editor's note—__Ord. No. 2012-12-06-0933, § 2, adopted December 6, 2012, repealed the former article V, divisions 1 and 2 in its entirety, which pertained to human display establishments, and derived from the Code of 1959, §§ 19B-1—19B-25; Ord. No. 57134, §§ 1—25, adopted June 16, 1983; Ord. No. 57296, §§ 1—25, adopted July 21, 1983; Ord. No. 89769, §§ 2, 3, 5, adopted May 13, 1999, and Ord. No. 99741, §§ 4, 5, adopted September 16, 2004.

ARTICLE VI. RESERVED*

Secs. 16-161—16-185. Reserved.

ARTICLE VII. USED AUTO PARTS RECYCLERS AND METAL RECYCLING ENTITIES†

DIVISION 1. USED AUTO PARTS RECYCLERS

Sec. 16-186. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Best management practices means a technique or series of structural and non-structural techniques which, when used in a stormwater pollution prevention plan, as required by federal law, is proven to be effective in controlling industrial related runoff.

Chief of police means the chief of police for the city and such persons as may be designated to perform the chief's duties under this article.

City means the City of San Antonio, Bexar County, Texas.

Department means the department of development services.

Director means the director of the development services department or designee.

Fluff means the non-metallic materials remaining after metals have been shredded and the metal and other reusable components have been separated.

Hazardous material means any substance, material, chemical, or by-product that poses a substantial present or potential risk or hazard or is capable of causing harm to human health, life, property, or the environment, including chemicals or substances that pose physical and/or health hazards (such as flammability/ignitability, reactivity, toxicity and/or corrosiveness), regardless of whether such material is handled and/or stored for use as waste, such as, but not limited to:

(1) Flammable solids, liquids and/or gases (e.g. propane, gasoline-contaminated scrap metal); or

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***Editor's note—**Ord. No. 99733, § 4, adopted September 16, 2004, repealed article VI in its entirety, which pertained to itinerant vendors, and derived from the Code of 1959, §§ 28-14—28-18, 28-20—28-23.1; Ord. No. 48072, §§ 1—5, 7—11, adopted May 26, 1977; Ord. No. 71133, § 2, adopted February 22, 1990, and Ord. No. 90492, § 3, adopted September 16, 1999.

†**Editor's note—**Ord. No. 2012-12-13-1006, §§ 2—51, adopted December 13, 2012, amended article VII in its entirety to read as herein set out. Formerly, article VII, divisions 1 and 2, pertained to salvage yards and auto dismantlers, and derived from Ord. No. 2008-06-19-0594, § 1, adopted June 19, 2008; Ord. No. 2009-09-17-0731G, § 3, adopted September 17, 2009; Ord. No. 2009-10-01-0777F, § 1, adopted October 1, 2009. Furthermore, Ord. No. 2012-12-13-1006 enacted provisions intended for use as sections 16-211—16-230. Inasmuch as there are already provisions so designated, and at the discretion of the editor, said provisions have been redesignated as sections 16-210.1—16-210.20.

State law reference—Authority to regulate, Vernon's Ann. Civ. St. art. 1175(24).

Note—Compliance with both divisions is in addition to state and federal mandates.

(2) Explosives, unstable reactive solids, liquids, and/or gases (e.g. out-of-date of degraded chemical containers, damaged fuel cells); or

(3) Toxic materials (e.g. lead-based paints or lead-acid batteries, coolant-containing ethylene glycol); or

(4) Corrosive materials (e.g. acidic cleaning agents, sulfuric acid from vehicle batteries).

Metal recycling entity means a business that is operated from a fixed location and is predominately engaged in the following and excludes used automotive parts recycling businesses.

(1) Performing the manufacturing process by which scrap, used, or obsolete ferrous or nonferrous metal is converted into raw material products consisting of prepared grades and having an existing or potential economic value, by a method that in part requires the use of powered tools and equipment, including processes that involve processing, sorting, cutting, classifying, cleaning, baling, wrapping, shredding, shearing, or changing the physical form of that metal;

(2) The use of raw material products described under subsection (1) in the manufacture of producer or consumer goods; or

(3) Purchasing or otherwise acquiring scrap, used, or obsolete ferrous or nonferrous metals for the eventual use of the metal for the purposes described by subsection (1) or (2).

Metal Shredder Residue (MSR), also known as Shredder Residue (SR), is the material leftover after shredding metal for recycling and magnetic separation (this primarily contains recoverable metals like aluminum, copper, stainless steel and wire) has occurred.

Motor vehicle means:

(1) Any motor driven or propelled vehicle required to be registered under the laws of this state;

(2) A trailer or semitrailer, other than manufactured housing, that has a gross vehicle weight that exceeds four thousand (4,000) pounds;

(3) A travel trailer;

(4) An all-terrain vehicle or a recreational off-highway vehicle, as defined by Transportation Code, § 502.001, designed by the manufacturer for off-highway use that is not required to be registered under the laws of this state; or

(5) A motorcycle, motor-driven cycle, or moped that is not required to be registered under the laws of this state.

Refer to State of Texas Administrative Code Title 16, Part 4, Chapter 87-10 Definitions

Non-repairable motor vehicle means a motor vehicle:

(1) That is damaged, wrecked, or burned to the extent that the only residual value of the vehicle is as a source of parts or scrap metal;

(2) That comes into this state under a comparable ownership document that indicates that the vehicle is nonrepairable;

(3) That a salvage vehicle dealer has reported to the Texas Department of Motor Vehicles under Transportation Code § 501.1003;

(4) For which an owner has surrendered evidence of ownership for the purpose of dismantling, scrapping, or destroying the motor vehicle; or

(5) That is sold for export only under Transportation Code § 501.099.

Refer to State of Texas Administrative Code Title 16, Part 4, Chapter 87-10 Definitions

Normal allocation means all the parts of a motor vehicle constituting its ordinary assemblage.

Person means an individual, corporation, partnership or any other group acting as a unit.

Regulated material means:

(1) Aluminum material;

(2) Bronze material;

(3) Copper or brass material;

(4) Lead material; or

(5) Regulated metal.

Refer to State of Texas Occupation Code Title 12 1956.

Regulated metal means:

(1) Manhole covers;

(2) Guardrails;

(3) Metal cylinders designed to contain compressed air, oxygen, gases or liquids;

(4) Malt beverage kegs made from metal other than aluminum;

(5) Historical markers or cemetery vases, receptacles, or memorials made from metal other than aluminum;

(6) Unused rebar;

(7) Street signs;

(8) Drain gates;

(9) Safes;

(10) Communication, transmission, and service wire or cable;

(11) Condensing or evaporator coils for central heating or air conditioning units;

(12) Utility structures, including the fixtures and hardware;

(13) Aluminum or stainless steel containers designed to hold propane for fueling forklifts;

(14) Metal railroad equipment, including tie plates, signal houses, control boxes, signs, signals, traffic devices, traffic control devices, traffic control signals, switch plates, e-clips, and rail tie functions; (O) catalytic converters not attached to a vehicle;

(15) Fire hydrants;

(16) Metal bleachers or other seating facilities used in recreational areas or sporting arenas;

(17) Any metal item clearly and conspicuously marked with any form of the name, initials, or logo of a governmental entity, utility, cemetery, or railroad;

(18) Insulated utility, communications, or electrical wire that has been burned in whole or in part to remove the insulation;

(19) Backflow valves;

(20) Metal in the form of commonly recognized products of the industrial metals recycling process, including bales, briquettes, billets, sows, ingots, pucks, and chopped or shredded metals;

(21) Commercial grade lead batteries or lead-acid batteries.

Refer to State of Texas Occupation Code Title 12 1956.

Salvage motor vehicle means:

(1) A motor vehicle that:

a. Has damage to or is missing a major component part to the extent that the cost of repairs, including parts and labor other than the cost of materials and labor for repainting the motor vehicle and excluding sales tax on the total cost of repairs, exceeds the actual cash value of the motor vehicle immediately before the damage, or

b. Is damaged and that comes into this state under an out-of-state salvage motor vehicle certificate of title or similar out-of-state ownership document that states on its face "accident damage," "flood damage," "inoperable," "rebuildable," "salvageable," or similar notion; and

(2) Does not include:

a. A nonrepairable motor vehicle;

b. An out-of-state motor vehicle with a "rebuilt," "prior salvage," "salvaged," or similar notation; or

c. A motor vehicle for which an insurance company has paid a claim for:

1. The cost of repairing hail damage, or

2. Theft, unless the motor vehicle was damaged during the theft and before recovery to the extent described by subparagraph (1)a.

Used automotive parts recycler means a person licensed under this division to operate a used automotive parts recycling business.

Used automotive parts recycling means the dismantling and reuse or resale of used automotive parts and the safe disposal of salvage motor vehicles or nonrepairable motor vehicles, including the resale of those vehicles ("UAPR").
(Ord. No. 2012-12-13-1006, §§ 2—51, 12-13-12; Ord. No. 2025-05-15-0352, § 2, 5-15-25)

Sec. 16-187. Zoning requirement.

(a) Appropriate zoning or legal, nonconforming use registration is required for the establishment or expansion of a use as required by Chapter 35, Unified Development Code of the City Code of San Antonio, Texas, including Article III, Zoning and Article IV: Procedures.

(1) Used auto parts recycling businesses are allowed to expand within the boundaries of the parcel on which the use is lawfully located. This expansion allows for major repairs, additions, and new buildings, provided all appropriate permits are obtained. Expansion is not permitted onto adjacent parcels, even if they are under common ownership, without zoning approval from city council.

(2) Any owner or operator found to have illegally expanded will be subject to enforcement action and may have their registration of nonconforming rights terminated in accordance with section 35-706(a).

(b) In granting any required specific use authorization, the city council may impose conditions that the applicant must comply with prior to issuance of a license and a certificate of occupancy by the director of development services for the use of land or buildings on the property pursuant to the approval. City council imposed conditions shall not be construed as conditions precedent to the granting of specific use authorization. City council imposed conditions shall be construed as conditions precedent to the granting of a license and certificate of occupancy.

(1) No new used auto parts recycling business shall be permitted within one thousand (1,000) feet of an existing metal recycling entity or used auto parts recycling business unless an "S" specific use authorization is granted by city council, in accordance with section 35-423. The method of measurement shall be measured from property line to property line.

(Ord. No. 2012-12-13-1006, §§ 2—51, 12-13-12; Ord. No. 2025-05-15-0352, § 2, 5-15-25)

Sec. 16-188. License required.

(a) A person shall not own or operate a used automotive parts recycling business within the city without a valid city-issued used automotive parts recycler license.

(b) A person owning or operating a used automotive parts recycling business shall not accept regulated material, as defined above, outside a motor vehicle's normal allocation, without a city issued metal recycling entity license.

(c) The director may revoke the certificate of occupancy pursuant to chapter 10 of the City Code for operating without a license.
(Ord. No. 2012-12-13-1006, §§ 2—51, 12-13-12; Ord. No. 2025-05-15-0352, § 2, 5-15-25)

Sec. 16-189. Application for license.

(a) All applications for licenses to operate a used automotive parts recycling business must be made in writing to the director on a form prescribed by the director and shall, among other things, contain:

(1) The name, residence, and business address of the applicant (this information shall

be listed for each member of the partnership or an authorized representative of a corporation);

(2) The name and nature of the proposed operation; and

(3) The present zoning, address, and legal description of the premises for which application is being applied.

(b) All applications must contain the following statement:

"The license applied for shall be subject to all provisions of the codes and ordinances of the city relating to used automotive parts recycling as well as all state and federal regulations relating to such operations."

(c) All applications must be signed and sworn to by the party applying for the license (by a general partner of a partnership and by an officer of a corporation) before a notary public or other official authorized to administer oaths.

(d) The application must include:

(1) A copy of the State of Texas Pollutant Discharge Elimination System Discharge permit or notice of coverage for that location if required;

(2) A copy of the approved Texas Commission on Environmental Quality (TCEQ) storm water multi-sector permit for that location;

(3) A San Antonio Water System (SAWS) letter of compliance regarding compliance with the Texas Pollutant Discharge Elimination System for that location dated within the last eighteen (18) months; and

(4) A copy of the State of Texas registration as a used automotive parts recycler.

(e) The director may require code enforcement officers to physically ascertain that supportive documents of all permits are kept on file at the used automotive parts recycling business. In such cases, the application shall not be approved until the officers have ascertained the documents' existence and validity. Enforcement of federal or state requirements shall remain the responsibility of the appropriate agencies.
(Ord. No. 2012-12-13-1006, §§ 2—51, 12-13-12; Ord. No. 2025-05-15-0352, § 2, 5-15-25)

Sec. 16-189.01 Fire prevention plan.

All used automotive parts recycling businesses shall prepare a fire prevention plan to obtain a business license. This shall be submitted to the development services department to be approved by the San Antonio Fire Department. As each facility may address fire prevention differently, only the following minimum standards must be addressed:

(1) Fire department access;

(2) Egress;

(3) Water systems;

(4) Fire notification system.

In the event of a fire at a licensed UAPR site where emergency services respond to a working fire, the current fire prevention plan shall be reviewed, updated and submitted to the director by an approved third party, when required by the fire official.
(Ord. No. 2025-05-15-0352, § 2, 5-15-25)

Sec. 16-190. License fees.

The annual used automotive parts recycler license fee is one thousand dollars ($1,000.00) paid to the city with the license application. The fee will be refunded in the event the license is refused. The license shall cover the period from the first day of January through the last day of December of each year. Only the first year's license may be prorated for each month or fraction thereof. The fee for issuing a duplicate license for one that is lost, destroyed or mutilated shall be ten dollars ($10.00).
(Ord. No. 2012-12-13-1006, §§ 2—51, 12-13-12; Ord. No. 2025-05-15-0352, § 2, 5-15-25; Ord. No. 2025-09-18-0629, § 2(Att. C), 9-18-25)

Sec. 16-191. Issuance, renewal or denial of licenses.

(a) Annual licenses shall be issued by the director upon receipt of the prescribed fee and the completed application, or a thirty-day

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temporary license (at the discretion of the director) may be issued to be finalized, provided that:

(1) The applicant, including partners or officers in the case of a partnership or a corporation, has not been convicted or found liable within the previous five (5) years of three (3) or more convictions or findings of liability of this division.

(2) Upon receipt of three (3) or more convictions or findings of liability, the director shall require a meeting with the owner about whether the use of the UAPR has become a nuisance. Refusal by an owner to attend this meeting shall result in license denial.

(3) After inspection, the premises are in compliance with this division and other applicable city ordinances and codes.

(4) In the event a license is denied, the applicant may appeal this decision to the city council.

(Ord. No. 2012-12-13-1006, §§ 2—51, 12-13-12; Ord. No. 2025-05-15-0352, § 2, 5-15-25)

Sec. 16-192. Revocation of licenses.

(a) The director may temporarily suspend business operations or revoke a license if the license holder has accrued three (3) or more citations accepted by the municipal court over three (3) separate occasions at a permitted property over a rolling twelve-month period, whether the citations are issued to the owner or owner's representative.

(b) Failure to correct multiple issues identified in a monthly inspection report under the following provisions is grounds for the director to revoke the UAPR license: Sections 16-195, fencing; 16-196, manner of storage; waste containment; weed and brush maintenance; fire safety path; 16-197, motor vehicle crushing equipment or industrial devices; 16-199, rodent and vector control; section 10-12, certificate of occupancy; section 35-709, expansion of nonconforming use.

Exception: Subsection 16-195(f).

(c) Revocation by the director, if such should occur, may take place only after opportunity is afforded the dealer to confer with the director.

(1) The business shall temporarily cease operations until such time as a meeting with the director is held and final determination is reached. The director shall meet within three (3) business days of the owner's request for a meeting.

(d) In the event a license is revoked, the license holder may appeal this decision to the city council.

(Ord. No. 2012-12-13-1006, §§ 2—51, 12-13-12; Ord. No. 2025-05-15-0352, § 2, 5-15-25)

Sec. 16-193. Appeal process for license denial or revocation.

(a) *License denial.*

(1) The director shall issue the applicant a written notice of a used automotive parts recycler license application denial by certified mail, return receipt requested. The denial notice shall inform the applicant of the right of appeal and of the time limit for the written notice of appeal.

(2) The applicant shall have the right of an appeal to the city council if requested in writing and delivered to the director within thirty (30) days after the applicant's receipt of the director's written notice of dealer's license denial. If currently licensed, an appeal from the order of the director shall stay all proceedings unless the director certifies, by reason of the facts stated in the certificate, a stay in his opinion would cause imminent peril to life or property. When such a certificate is filed, proceedings shall not be stayed except by a restraining order granted by a court of proper jurisdiction. Upon disposition by city council, any stay of proceedings is lifted.

(3) The city council may uphold, reverse, or modify the director's decision or action. Failure to appeal to the city council within the prescribed period shall render the director's decision or action final.

(b) *License revocation.*

(1) The director shall issue the used automotive parts recycler written notice of license revocation by certified mail, return receipt requested. The license revocation notice shall inform the used automotive parts recycler of the right of appeal and of the time limitation for the written notice of appeal.

(2) The used automotive parts recycler has the right of an appeal to the city council if requested in writing and delivered to the director within thirty (30) days after the receipt of the director's written notice of used automotive parts recycler's license revocation. An appeal from the order of the director shall stay all proceedings unless the director certifies, by reason of the facts stated in the certificate, a stay in his opinion would cause imminent peril to life or property. When such a certificate is filed, proceedings shall not be stayed except by a restraining order granted by a court of proper jurisdiction. Upon disposition by city council, any stay of proceedings is lifted.

(3) The city council may uphold, reverse, or modify the director's decision or action. Failure to file an appeal to the city council within the prescribed period shall render the director's decision or action final. Revocation of a license may not exceed one (1) year.

(Ord. No. 2012-12-13-1006, §§ 2—51, 12-13-12; Ord. No. 2025-05-15-0352, § 2, 5-15-25)

Sec. 16-194. Variances.

The board of adjustment is authorized to grant, pursuant to the procedures set forth in Chapter 35, Unified Development Code of the City Code of San Antonio, Texas, a variance from the provisions of sections 16-195 and 16-196, but only due to unique circumstances on the premises or adjacent thereto (such as topography), not created by the used automotive parts recycler and not merely financial, and which are not a part of general conditions in the area. The board of adjustment, however, may not grant variances to subsection 16-196(g) nor to conditions imposed by city council, nor to requirements set by state or federal regulations.

(Ord. No. 2012-12-13-1006, §§ 2—51, 12-13-12; Ord. No. 2025-05-15-0352, § 2, 5-15-25)

Sec. 16-195. Fencing.

(a) All used automotive parts recycling businesses must be enclosed on all sides (including front and rear) with a substantial and anchored wall or screen fence to include the following:

(1) Constructed as an adequate barrier to limit the migration of rodents and other vectors from the used automotive parts recycling businesses to an adjacent property.

(2) The wall or screen fence must be constructed with appropriate screen drains so as not to inhibit necessary water drainage.

(3) Existing, licensed businesses under the December 13, 2012, ordinance may install and/or maintain corrugated or similar metal fencing material.

(4) Entry and exit gates are not required to be screened.

(b) All walls or screen fences shall be maintained in a neat, solid, and safe condition. No wall or screen fence shall be kept in a listing, damaged, or decaying condition.

(1) Any fence, or any portion thereof, out of vertical alignment by more than fifteen (15) degrees must be repaired.

(2) Any fence, or any portion thereof, having loose bricks, stones, rocks, mortar, masonry, or metal panel, including caps, or similar materials shall be repaired or replaced.

(c) The wall or screen fence must be constructed such that the interior of the used automotive parts recycling entity is not visible from the exterior. Buildings, salvage or nonrepairable oversized vehicles as defined in Chapter 35, Unified Development Code of the City Code of San Antonio, Texas, and any piles of crushed vehicles or salvage materials in compliance with

the International Fire Code, as amended by the city, are excluded from this requirement. The wall or screen fence for used automotive recycling entities located within one hundred (100) feet of a property with a residence thereon must be constructed or modified so that it is eight (8) feet in height. The wall or screen fence for all other existing metal recycling entities must be six (6) feet in height. All metal recycling entities established after the effective date of this ordinance change are required to maintain fences at least eight (8) feet in height. All solid screen fences allowed to be constructed in excess of eight (8) feet in height shall require certification by a licensed engineer that the foundation and support structure are designed to sustain wind loads in accordance with the International Building Code.

(1) All new fences shall be constructed of wood; stone; rock; concrete block; precast concrete panels; masonry brick; brick; or commercially available metal panel (capped and painted to reduce reflectivity and/or heat from the exterior only), or other material(s) which are similar in durability.

a. Barbed wire, razor wire, and all other similar materials are regulated pursuant to section 35-514(a)(6)c.

(d) Those sections of a used auto parts recycling entity which are contiguous with another UAPR or other metal recycling entity (MRE) are exempt from subsection (a), if those sections otherwise have an adequate barrier as required by subsection (a), to inhibit the migration of rodents and other vectors between the metal recycling entities or used auto parts recycling entities.

(e) Gates for access to the used automotive parts recycling entity's premises at each street or alley line must not have combined openings exceeding thirty (30) percent of the alley or street frontage. All gates for access must not swing outward and must be kept closed when the used automotive parts recycling entity is not open for business. This will not apply to access points on a railroad right-of-way.

(f) The fencing requirements in this subsection do not apply to used automotive parts recycling entities whose business is conducted solely within a completely enclosed structure or structures.

(g) In the event of a conflict between the fencing requirements of this division and the requirements of Chapter 35, Unified Development Code of the City Code of San Antonio, Texas, the requirements of this article shall supersede.
(Ord. No. 2012-12-13-1006, §§ 2—51, 12-13-12; Ord. No. 2025-05-15-0352, § 2, 5-15-25)

Sec. 16-196. Manner of storage; waste containment; weed and brush maintenance; fire safety path.

(a) Salvage materials on the premises of a used automotive parts recycling business shall be arranged so that a reasonable inspection of, or access to, all parts of the premises can be had at any time by the proper fire, health, police, code enforcement, and building authorities which inspections used automotive parts recyclers shall permit during business hours or any reasonable period afterwards. All junked, wrecked or inoperable vehicle bodies located outside of a building shall be so stacked only with the use of metal racks or other safe supports so that the vehicle frames are at least six (6) inches above the ground and such that the lowest part of the vehicle is not touching the ground or base surface and are arranged to provide ease of inspection, control of insects and rodents, and to facilitate water drainage, containment, and waste control. Neither the vehicle bodies, vehicle parts, nor other salvage materials and any scrap, used or obsolete ferrous or nonferrous metal, including regulated material shall be stored or stacked higher than the height of the used automotive parts recycling business wall or screen fence except as noted in subsection 16-195(b).

Exception: Stacking mandates shall not include those vehicles in initial intake/holding areas being processed prior to public access. Intake/holding areas must be fenced or otherwise sectioned off from the main yard and shall not exceed a size of five (5) total acreage per certificate

of occupancy. Vehicle processing includes removal of various contaminated liquid wastes along with other contaminated materials, hazardous waste, and special waste, including, but not limited to, oil, gas, Freon, mercury and biohazardous materials as required by state and federal law. An unprocessed vehicle must be labeled as such and may not be in process for greater than fourteen (14) days.

(b) No salvage materials shall be placed in any manner outside of the used automotive parts recycling business surrounding screen fence or wall.

(c) Areas where recycling operations exist shall be kept clean of any weeds and/or brush over four (4) inches tall. All other area of the premises shall be kept clean of any weeds and/or brush over twelve (12) inches tall within one hundred fifty (150) feet from the curb line of adjacent to residential uses, businesses, streets or the edge of the streets or road surface where no curb exists.

(d) Upon the used auto parts recycling business' possession of all salvage materials, contaminated liquid wastes along with other contaminated materials, hazardous waste, and special waste - including Freon - shall be removed from the salvage materials and contained, stored, and disposed in compliance with all applicable state and federal regulations. Disposal of accumulated contaminated liquids and materials shall be accomplished by a duly licensed contractor. The metal recycling entity shall maintain on premises all completed manifests evidencing legal disposal for a period of three (3) years from the date of disposal. A code enforcement officer shall review the manifests, bills of sale, or other proof of legal disposal at least once every three (3) months.

(e) All hazardous solid waste, hazardous liquid, regardless of character to or category, shall be so contained as to prevent negative impacts on human health or the environment. All storage of hazardous liquid or hazardous solid waste shall be subject to applicable local, state and federal regulations. In no event shall any metal recycling entity maintain a volume and weight of stored liquid or hazardous solid waste inventory in excess of the lesser of the maximum exempt amounts allowed by the fire code as adopted within the City Code or state and federal regulations for a small quantity generator. All hazardous liquid or hazardous solid waste shall be stored only in above ground containers in accordance with applicable federal, state and local laws and administrative regulations. It is unlawful for any hazardous liquid or hazardous solid waste to be held in a container that leaks, is in any other manner not in compliance with state and federal regulations, or in any manner fails to completely contain the material in question.

(f) All used automotive parts recycling entities, as defined by this division, shall have a fire safety path. No salvage materials, vehicles, brush, low hanging limbs (less than fourteen (14) feet), or items obstructing the pathway, shall be placed within ten (10) feet of the surrounding wall or screen fence. The fire chief shall oversee fire safety path specifications and compliance for each metal recycling entity and may alter the required number of feet in accordance with the location, use, size, and other characteristics of an individual metal recycling entity. All penalties and appellate procedures of chapter 11 of this Code shall apply to this subsection.

(g) In accordance with chapter 11 of the City Code, outdoor storage shall comply with the following:

(1) Materials shall be stored in unit piles as low in height and small in area as is consistent with good practice for the materials stored. The maximum height shall be determined by the stability of pile, effective reach of hose streams, combustibility of the commodity, and ease of pile breakdown under fire or mop-up conditions. Under no circumstances shall the pile size dimensions exceed fifty (50) feet by one hundred fifty (150) feet by twenty (20) feet high unless the specific commodities maximum dimensions are listed elsewhere in the Code.

(2) Aisles shall be maintained between individual piles, between piles and buildings, and between piles and the bound-

ary line of the storage site. Sufficient driveways having the width of at least twenty (20) feet shall be provided to allow the travel of fire equipment to all portions of the storage area. Aisles shall be at least twice the pile height to reduce the spread of fire from pile to pile and to allow ready access for firefighting, emergency removal of material, or salvage purposes.

(3) As the commodity class increases in combustibility or where storage could be ignited easily from radiation, wider aisles shall be provided. Smaller unit piles could be an alternative to wider aisles if yard space is limited.

(4) Boundary posts with signs designating piling limits shall be provided to indicate yard area, roadway, and aisle limits.

(Ord. No. 2012-12-13-1006, §§ 2—51, 12-13-12; Ord. No. 2025-05-15-0352, § 2, 5-15-25)

Sec. 16-197. Motor vehicle crushing equipment or industrial devices.

(a) Motor vehicle crushing shall be performed in compliance with TCEQ and SAWS regulations.

(b) Motor vehicle crushing is only allowed at licensed used automotive parts recyclers or metal recycling entities.

(c) It is unlawful for motor vehicle crushing equipment or industrial devices to operate in contradiction to this section and chapter 21, offenses and miscellaneous provisions, article III, noise, of this Code.

(d) A used automotive parts recycler may not operate heavy machinery in a used automotive parts recycling facility between the hours of 7:00 p.m. of one day and 7:00 a.m. of the following day.

(1) This section does not apply to conduct necessary to a sale or purchase by the recycler.

(Ord. No. 2012-12-13-1006, §§ 2—51, 12-13-12; Ord. No. 2025-05-15-0352, § 2, 5-15-25)

Sec. 16-198. Emergency contact numbers.

(a) All persons in the business of used automotive parts recycling shall place and maintain a sign on the premises that may be read from the street right-of-way listing the names and telephone numbers of at least one (1) person in the county who may be called to give admittance to the premises in case of emergency.

(b) It is unlawful to fail to place and maintain a sign as required under this section.

(Ord. No. 2012-12-13-1006, §§ 2—51, 12-13-12; Ord. No. 2025-05-15-0352, § 2, 5-15-25)

Sec. 16-199. Rodent and vector control.

(a) All persons in the business of used automotive parts recycling shall have a rodent and vector extermination treatment covering the entire premises conducted a minimum of once every three (3) months, conducted in such a manner and utilizing such chemicals as are acceptable to the director.

(b) A rodent and vector control program is the responsibility of the used automotive parts recycler and shall be on-going for the duration of the used automotive parts recycling business' operation.

(c) A code enforcement officer shall inspect all used automotive parts recycling businesses within the city a minimum of once every three (3) months for purposes under this section. At the time of the inspection, the inspector shall be provided with evidence to prove that such extermination procedure has occurred within the preceding three-month period and that the person in the business of used automotive parts recycling has an on-going program for observation, determination, and control of rodents and vectors. The presentation of evidence of a service contract with a recognized and licensed pest control contractor may satisfy this requirement.

(d) If a professional exterminator has been employed, a receipt for payment for services rendered must be provided. If the person conducts the extermination without using a professional exterminator, the person shall request health department certification at the time the extermination occurs and furnish the code enforce-

ment officer with such evidence sufficient to show that the pest control has been accomplished in an efficient manner.

(e) It is unlawful for any person to fail to have the necessary rodent and vector extermination conducted in accordance herewith, and it is also unlawful to fail to present to the code enforcement officer upon request the necessary verification of such effective extermination or fail to allow the required entry to the premises.
(Ord. No. 2012-12-13-1006, §§ 2—51, 12-13-12; Ord. No. 2025-05-15-0352, § 2, 5-15-25)

Sec. 16-200. Monthly inspections; nuisance declared.

(a) The department of development services is authorized to conduct monthly inspections of all used automotive parts recycling businesses for the purpose of assuring compliance with the terms of this division. However, a code enforcement officer or peace officer may inspect used automotive parts recycling businesses upon reasonable suspicion of any wrongdoing at any time activity regulated under this article is conducted. A comprehensive inspection form shall be devised by said department to be completed at the time of such inspections during monthly, quarterly and annual inspections indicating the date the inspections occurred. This form indicating the date of the last inspection shall be posted by the used automotive parts recycler in a conspicuous place on the premises at all times.

(b) Conditions maintained in violation of this division which impact public health, safety, or welfare, or which deprive neighbors of their safe or peaceful use of nearby properties are unlawful and a public nuisance. Further, a failure to allow either monthly or other inspections or post inspections as required is unlawful.

(1) If a violation of this chapter is observed, a notice of violation shall be issued providing two (2) business days to cure the defect unless otherwise provided by the director.

(c) As noted in section 16-206(f), enforcement of federal or state requirements shall remain the responsibility of the appropriate agencies. If a reportable spill quantity (per TCEQ definition) is observed, the Texas Commission on Environmental Quality (TCEQ), San Antonio Water System (SAWS), the health department, San Antonio Fire Department (SAFD) and/or the hazardous material unit for the city will be notified, as applicable.
(Ord. No. 2012-12-13-1006, §§ 2—51, 12-13-12; Ord. No. 2025-05-15-0352, § 2, 5-15-25)

Sec. 16-201. Time limit for compliance by newly annexed used automotive parts recycling businesses.

(a) Used automotive parts recycling businesses which are annexed into the city shall have a period of one (1) year from the effective date of the annexation to install fencing as required by this division. Used automotive parts recyclers whose businesses are annexed shall also demonstrate compliance with existing federal, state, and county laws and regulations applicable to fencing requirements for such facilities at the date of annexation.

(b) Subsequent to annexation, the director shall promptly notify affected used automotive parts recyclers in newly annexed areas of the obligations under this division.
(Ord. No. 2012-12-13-1006, §§ 2—51, 12-13-12; Ord. No. 2025-05-15-0352, § 2, 5-15-25)

Sec. 16-202. Violation and penalties.

It is unlawful for a person to do or perform any act prohibited by this division or fail to do or perform any act required by this division. A violation under this division is a Class C misdemeanor offense, unless specifically stated otherwise, and upon conviction, a person shall be fined an amount not less than one hundred dollars ($100.00) nor more than two thousand dollars ($2,000.00). The provisions of this subsection are in addition to and not in lieu of any administrative, criminal, or civil prosecution or penalties as provided by local and state laws. Each day that a violation of this article continues shall be considered a separate offense.

(a) Anyone who violates any provision of this article shall be subject to prosecution in administrative, criminal, and/or civil courts, under all applicable local

and state laws, and will be strictly accountable for any penalties and punishment accrued therefrom.

(b) Alternative adjudication; administrative enforcement. All violations of the provisions of this article and of the rules and regulations established by the director, unless specifically stated otherwise, may be enforced by administrative adjudication pursuant to chapter 20, article II, City Code of Ordinances.

(Ord. No. 2012-12-13-1006, §§ 2—51, 12-13-12; Ord. No. 2025-05-15-0352, § 2, 5-15-25)

Sec. 16-202.1. Updates for amendments.

The city, through appropriate staff and stakeholder commentary, shall review and recommend amendments to these regulations every five (5) years.

(Ord. No. 2025-05-15-0352, § 2, 5-15-25)

DIVISION 2. METAL RECYCLING ENTITIES

Sec. 16-203. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them, except where the context clearly indicates a different meaning:

Best management practices means a technique or series of structural and non-structural techniques which, when used in a stormwater pollution prevention plan, as required by federal law, is proven to be effective in controlling industrial related runoff.

Building construction materials means copper pipe, tubing, or wiring, aluminum wire, aluminum siding, plumbing supplies, electrical supplies, metal window frames, metal doors, metal door frames, metal downspouts, metal gutters, air conditioning units and other similar materials except for obsolete, nonregulated materials.

Chief of police means the chief of police for the city and such persons as he may designate to perform his duties under this division.

City means the City of San Antonio, Bexar County, Texas.

Clear thumbprint impression means an intentional recording of the friction ridge detail on the volar pads of the thumb.

Department means the department of development services.

Director means the director of the development services department.

Fluff means the non-metallic materials remaining after metals have been shredded and the metal and other reusable components have been separated.

Hazardous material means any substance, material, chemical, or by-product that poses a substantial present or potential risk or hazard or is capable of causing harm to human health, life, property, or the environment, including chemicals or substances that pose physical and/or health hazards (such as flammability/ignitability, reactivity, toxicity and/or corrosiveness), regardless of whether such material is handled and/or stored for use as waste, such as, but not limited to:

(1) Flammable solids, liquids and/or gases (e.g. propane, gasoline-contaminated scrap metal); or

(2) Explosives, unstable reactive solids, liquids, and/or gases (e.g. out-of-date of degraded chemical containers, damaged fuel cells); or

(3) Toxic materials (e.g. lead-based paints or lead-acid batteries, coolant-containing ethylene glycol); or

(4) Corrosive materials (e.g. acidic cleaning agents, sulfuric acid from vehicle batteries).

Metal recycling entity means a business that is predominately engaged in the following and excludes used automotive parts recycling businesses ("MRE").

(1) Performing the manufacturing process by which scrap, used, or obsolete ferrous or nonferrous metal is converted into raw material products consisting of prepared grades and having an existing or potential economic value, by a method that in part requires the use of powered tools and

equipment, including processes that involve processing, sorting, cutting, classifying, cleaning, baling, wrapping, shredding, shearing, or changing the physical form of that metal;

(2) The use of raw material products described under subsection (1) in the manufacture of producer or consumer goods; or

(3) Purchasing or otherwise acquiring scrap, used, or obsolete ferrous or nonferrous metals for the eventual use of the metal for the purposes described by subsection (1) or (2).

Metal Shredder Residue (MSR), also known as Shredder Residue (SR), is the material leftover after shredding metal for recycling and magnetic separation (this primarily contains recoverable metals like aluminum, copper, stainless steel and wire) has occurred.

Minor means any person younger than eighteen (18) years of age.

Motor vehicle means:

(1) Any motor driven or propelled vehicle required to be registered under the laws of this state;

(2) A trailer or semitrailer, other than manufactured housing, that has a gross vehicle weight that exceeds four thousand (4,000) pounds;

(3) A travel trailer;

(4) An all-terrain vehicle or a recreational off-highway vehicle, as defined by Transportation Code, § 502.001, designed by the manufacturer for off-highway use that is not required to be registered under the laws of this state; or

(5) A motorcycle, motor-driven cycle, or moped that is not required to be registered under the laws of this state.

Refer to State of Texas Administrative Code Title 16, Part 4, Chapter 87-10 Definitions.

Non-repairable motor vehicle means:

(1) That is damaged, wrecked, or burned to the extent that the only residual value of the vehicle is as a source of parts or scrap metal;

(2) That comes into this state under a comparable ownership document that indicates that the vehicle is nonrepairable;

(3) That a salvage vehicle dealer has reported to the Texas Department of Motor Vehicles under Transportation Code § 501.1003;

(4) For which an owner has surrendered evidence of ownership for the purpose of dismantling, scrapping, or destroying the motor vehicle; or

(5) That is sold for export only under Transportation Code § 501.099.

Refer to State of Texas Administrative Code Title 16, Part 4, Chapter 87-10 Definitions.

Person means an individual, corporation, partnership or any other group acting as a unit.

Real-time electronic web-based database means an electronic filing system in which data is organized by fields and records and that is capable of transmitting a file or responding to input immediately via the internet.

Regulated material means:

(1) Aluminum material;

(2) Bronze material;

(3) Copper or brass material;

(4) Lead material; or

(5) Regulated metal.

Refer to State of Texas Occupation Code Title 12 1956.

Regulated metal means:

(1) Manhole covers;

(2) Guardrails;

(3) Metal cylinders designed to contain compressed air, oxygen, gases or liquids;

(4) Malt beverage kegs made from metal other than aluminum;

(5) Historical markers or cemetery vases, receptacles, or memorials made from metal other than aluminum;

(6) Unused rebar;

(7) Street signs;

(8) Drain gates;

(9) Safes;

(10) Communication, transmission, and service wire or cable;

(11) Condensing or evaporator coils for central heating or air conditioning units;

(12) Utility structures, including the fixtures and hardware;

(13) Aluminum or stainless steel containers designed to hold propane for fueling forklifts;

(14) Metal railroad equipment, including tie plates, signal houses, control boxes, signs, signals, traffic devices, traffic control devices, traffic control signals, switch plates, e-clips, and rail tie functions; (O) catalytic converters not attached to a vehicle;

(15) Fire hydrants;

(16) Metal bleachers or other seating facilities used in recreational areas or sporting arenas;

(17) Any metal item clearly and conspicuously marked with any form of the name, initials, or logo of a governmental entity, utility, cemetery, or railroad;

(18) Insulated utility, communications, or electrical wire that has been burned in whole or in part to remove the insulation;

(19) Backflow valves;

(20) Metal in the form of commonly recognized products of the industrial metals recycling process, including bales, briquettes, billets, sows, ingots, pucks, and chopped or shredded metals; and

(21) Commercial grade lead batteries or lead-acid batteries.

Refer to State of Texas Occupation Code Title 12 1956.

Salvage materials refers to any motor vehicle, salvage motor vehicle, nonrepairable motor vehicle and all their respective parts, scrap, used or obsolete ferrous and nonferrous metals, and regulated materials and regulated metals as defined in this division.

Salvage motor vehicle means:

(1) A motor vehicle that:

a. Has damage to or is missing a major component part to the extent that the cost of repairs, including parts and labor other than the cost of materials and labor for repainting the motor vehicle and excluding sales tax on the total cost of repairs, exceeds the actual cash value of the motor vehicle immediately before the damage; or

b. Is damaged and that comes into this state under an out-of-state salvage motor vehicle certificate of title or similar out-of-state ownership document that states on its face "accident damage," "flood damage," "inoperable," "rebuildable," "salvageable," or similar notion; and

(2) Does not include:

a. A nonrepairable motor vehicle;

b. An out-of-state motor vehicle with a "rebuilt," "prior salvage," "salvaged," or similar notation; or

c. A motor vehicle for which an insurance company has paid a claim for:

1. The cost of repairing hail damage, or

2. Theft, unless the motor vehicle was damaged during the theft and before recovery to the extent described by subparagraph (1)a.

Used automotive parts recycler means a person licensed under this division to operate a used automotive parts recycling business.

Used automotive parts recycling means the dismantling and reuse or resale of used automotive parts and the safe disposal of salvage motor vehicles or non-repairable motor vehicles, including the resale of those vehicles ("UAPR").
(Ord. No. 2012-12-13-1006, §§ 2—51, 12-13-12; Ord. No. 2025-05-15-0352, § 2, 5-15-25)

Sec. 16-204. Zoning requirement.

(a) Appropriate zoning, or legal, nonconforming use registration is required for the establishment or expansion of a use as required by Chapter 35, Unified Development Code of the City Code of San Antonio, Texas, including Article III, Zoning and Article IV: Procedures.

(1) Metal recycling entities are allowed to expand within the boundaries of the parcel on which the use is lawfully located. This expansion allows for major repairs, additions, and new buildings, provided all appropriate permits are obtained. Expansion is not permitted onto adjacent parcels, even if they are under common ownership, without zoning approval from city council.

(2) Any owner or operator found to have illegally expanded will be subject to enforcement action and may have their registration of nonconforming rights terminated in accordance with section 35-706(a).

(b) In granting any required specific use authorization, the city council may impose conditions that the applicant must comply with prior to issuance of a license and a certificate of occupancy by the director of development services for the use of land or buildings on the property pursuant to the approval. City council imposed conditions shall not be construed as conditions precedent to the granting of specific use authorization. City council imposed conditions shall be construed as conditions precedent to the granting of a license and certificate of occupancy.

(1) No new MRE shall be permitted within one thousand (1,000) feet of an existing metal recycling entity or used auto parts recycling business unless an "S" specific use authorization is granted by city council, in accordance with section 35-423. The method of measurement shall be measured from property line to property line.

(Ord. No. 2012-12-13-1006, §§ 2—51, 12-13-12; Ord. No. 2025-05-15-0352, § 2, 5-15-25)

Sec. 16-205. License required.

(a) A person shall not own or operate a metal recycling entity without a valid city issued metal recycling entity license.

(b) If a metal recycling entity is operating as a used automotive parts recycler both licenses are required.

(c) A person commits an offense under this division if they do not hold a valid city-issued license. Under V.T.C.A., Occupations Code § 1956.003, such an offense is a Class B misdemeanor unless it is shown on the trial of the offense that the person has been previously convicted, in which event the offense is a Class A misdemeanor.

(d) The director may revoke the certificate of occupancy pursuant to chapter 10 of the City Code for operating without a license.
(Ord. No. 2012-12-13-1006, §§ 2—51, 12-13-12; Ord. No. 2025-05-15-0352, § 2, 5-15-25)

Sec. 16-206. Application for license.

(a) An application for a license to operate a metal recycling entity must be made in writing to the director on a form prescribed by the director and shall, among other things, contain:

(1) The name, residence, and business address of the applicant (this information shall be listed for each member of the partnership or an authorized representative of a corporation);

(2) The name and nature of the proposed operation; and

(3) The present zoning, address, and legal description of the premises for which application is being applied.

(b) All applications must contain the following statement:

"The license applied for shall be subject to all provisions of the codes and ordinances of the city relating to metal recycling entities as well as all state and federal regulations relating to such operations."

(c) Reserved.

(d) All applications must be signed and sworn to by the party applying for the license (by a general partner of a partnership or an authorized representative of a corporation) before a notary public or other official authorized to administer oaths.

(e) The application must include:

(1) A copy of the State of Texas pollutant discharge elimination system discharge permit or notice of coverage for that location if required;

(2) A copy of the approved Texas Commission on Environmental Quality (TCEQ) stormwater multi-sector permit for that location; and

(3) A SAWS letter of compliance with the Texas Pollutant Discharge Elimination System for that location dated within the last eighteen (18) months; and

(4) A copy of the State of Texas registration as a metal recycling entity.

(f) The director may require code enforcement officers to physically ascertain that supportive documents of all permits are kept on file at the metal recycling entity. In such cases, the application shall not be approved until the officers have ascertained the documents' existence and validity. Enforcement of federal or state requirements shall remain the responsibility of the appropriate agencies.
(Ord. No. 2012-12-13-1006, §§ 2—51, 12-13-12; Ord. No. 2025-05-15-0352, § 2, 5-15-25)

Sec. 16-206.1. Fire prevention plan.

(a) All metal recycling entities shall prepare a fire prevention plan to obtain a business license. This shall be submitted to the development services department to be approved by the San Antonio Fire Department. As each facility may address fire prevention differently, only the following minimum standards must be addressed:

(1) Fire department access;

(2) Egress;

(3) Water systems;

(4) Fire notification system.

(b) In the event of a fire at a licensed MRE site where emergency services respond to a working fire, the current fire prevention plan shall be reviewed, updated and submitted to the director by an approved third party, when required by the fire official.
(Ord. No. 2025-05-15-0352, § 2, 5-15-25)

Sec. 16-207. License fees.

The annual metal recycling entity license fee shall be one thousand dollars ($1,000.00) paid to the city with the license application. The fee will be refunded in the event the license is refused. The license shall cover the period from the first day of January through the last day of December of each year. Only the first year's license may be prorated for each month or fraction thereof. The fee for issuing a duplicate license for one that is lost, destroyed or mutilated shall be ten dollars ($10.00).
(Ord. No. 2012-12-13-1006, §§ 2—51, 12-13-12; Ord. No. 2025-05-15-0352, § 2, 5-15-25; Ord. No. 2025-09-18-0629, § 2(Att. C), 9-18-25)

Sec. 16-208. Issuance, renewal or denial of licenses.

(a) Annual licenses shall be issued by the director upon receipt of the prescribed fee and the completed application, or a thirty-day temporary license (at the discretion of the director) may be issued, to be finalized, provided that:

(1) The applicant, including partners or officers in the case of a partnership or a corporation, has not been convicted or found liable within the previous five (5) years of three (3) or more convictions or findings of liability of this division.

(2) Upon receipt of (3) three or more convictions or findings of liability, the director shall require a meeting with the owner about whether the use of the MRE has become a nuisance. Refusal by an owner to attend this meeting shall result in license denial.

(3) After inspection, the premises are in compliance with this division and other applicable city ordinances and codes.

(b) In the event a license is denied, the applicant may appeal this decision to the city council.
(Ord. No. 2012-12-13-1006, §§ 2—51, 12-13-12; Ord. No. 2025-05-15-0352, § 2, 5-15-25)

Sec. 16-209. Revocation of licenses.

(a) The director may temporarily suspend business operations or revoke a license if the license holder has accrued three (3) or more citations accepted by the municipal court over three (3) separate occasions at a permitted property over a rolling twelve-month period, whether the citations are issued to the owner or owner's representative.

(b) Failure to correct multiple issues identified in a monthly inspection report under the following provisions is grounds for the director to revoke the metal recycling entity's license: Sections 16-210.2, fencing; 16-210.3, manner of storage; waste containment; weed and brush maintenance; fire safety path; 16-210.4, motor vehicle crushing equipment or industrial devices; 16-210.6, Rodent and vector control; section 10-12, certificate of occupancy; section 35-709, expansion of nonconforming use.

(c) Section 16-210.13, stock to be open for examination, requires that the stock or inventory of any metal recycling entity shall at any time during ordinary business hours be accessible for examination by any peace officer or authorized inspector of the director's office. Failure to comply with section 16-210.13 is grounds for the revocation of or the refusal to issue or renew any license required of a metal recycling entity under this division.

(d) Section 16-210.15, acceptance of property suspected stolen; peace officer requested holds; violation, provides that a failure to comply is grounds for the revocation of or the refusal to issue or renew any license required of a metal recycling entity. Section 16-210.15 applies solely to division 2.

(e) Revocation by the director, if such should occur, may take place only after opportunity is afforded the dealer to confer with the director.

(1) The business shall temporarily cease operations until such time as a meeting with the director is held and final determination is reached. The director shall meet within three (3) business days of the owner's request for a meeting.

(f) In the event a license is revoked, the license holder may appeal this decision to the city council.
(Ord. No. 2012-12-13-1006, §§ 2—51, 12-13-12; Ord. No. 2025-05-15-0352, § 2, 5-15-25)

Sec. 16-210. Appeal process for license denial or revocation.

(a) *License denial.*

(1) The director shall issue a written notice of a metal recycling entity license denial to the applicant by certified mail, return receipt requested. The denial notice shall inform the applicant of the right of appeal and of the time limit for the written notice of appeal.

(2) The applicant shall have the right of an appeal to the city council if requested in writing and delivered to the director within thirty (30) days after the applicant's receipt of the director's written notice of license denial. If currently licensed, an appeal from the order of the director shall stay all proceedings unless the director certifies, by reason of the facts stated in the certificate, a stay in his opinion would cause imminent peril to life or property. When such a certificate is filed, proceedings shall not be stayed except by a restraining order granted by

a court of proper jurisdiction. Upon disposition by city council, any stay of proceedings is lifted.

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(3) The city council may uphold, reverse, or modify the director's decision or action. Failure to appeal to the city council within the prescribed period shall render the director's decision or action final.

(b) *License revocation.*

(1) The director shall issue the metal recycling entity a written notice of license revocation by certified mail, return receipt requested. The revocation notice shall inform the metal recycling entity of the right of appeal and of the time limit for the written notice of appeal. The revocation shall become final on the 31st day after the metal recycling entity's receipt of said notice unless an appeal is properly filed.

(2) The metal recycling entity has the right of an appeal to the city council if requested in writing and delivered to the director within thirty (30) days after the receipt of the director's written notice of metal recycling entity license revocation. An appeal from the order of the director shall stay all proceedings unless the director certifies, by reason of the facts stated in the certificate, a stay in his opinion would cause imminent peril to life or property. When such a certificate is filed, proceedings shall not be stayed except by a restraining order granted by a court of proper jurisdiction. Upon disposition by city council, any stay of proceedings is lifted.

(3) The city council may uphold, reverse, or modify the director's decision or action. Failure to file an appeal to the city council within the prescribed period shall render the director's decision or action final.

(Ord. No. 2012-12-13-1006, §§ 2—51, 12-13-12; Ord. No. 2025-05-15-0352, § 2, 5-15-25)

Sec. 16-210.1. Variances.

The board of adjustment is authorized to grant, pursuant to the procedures set forth in Chapter 35, Unified Development Code of the City Code of San Antonio, Texas, a variance from the provisions of sections 16-210.2 and 16-210.3, but only due to unique circumstances on the premises or adjacent thereto (such as topography), not created by the dealer and not merely financial, and which are not a part of general conditions in the area. The board of adjustment, however, may not grant variances to subsection 16-210.3(g) nor to imposed conditions set forth by city council, nor to requirements set by state or federal regulations.

(Ord. No. 2012-12-13-1006, §§ 2—51, 12-13-12; Ord. No. 2025-05-15-0352, § 2, 5-15-25)

Sec. 16-210.2. Fencing.

(a) All metal recycling entities must be enclosed on all sides (including front and rear) with a substantial and anchored wall or screen fence to include the following:

(1) Constructed as an adequate barrier to limit the migration of rodents and other vectors from the metal recycling entity to an adjacent property.

(2) The wall or screen fence must be constructed with appropriate screen drains so as not to inhibit necessary water drainage.

(3) Existing, licensed businesses under the December 13, 2012, ordinance may install and/or maintain corrugated or similar metal fencing material.

(4) Entry and exit gates are not required to be screened.

(b) All walls or screen fences shall be maintained in a neat, solid, and safe condition. No wall or screen fence shall be kept in a listing, damaged, or decaying condition.

(1) Any fence, or any portion thereof, out of vertical alignment by more than fifteen (15) degrees must be repaired.

(2) Any fence, or any portion thereof, having loose bricks, stones, rocks, mortar, masonry, or metal panel, including caps, or similar materials shall be repaired or replaced.

(c) The wall or screen fence must be constructed such that the interior of the metal recycling entity is not visible from the exterior. Buildings, salvage or nonrepairable oversized vehicles as defined in Chapter 35, Unified Development Code of the City Code of San Antonio, Texas, and any piles of crushed vehicles or salvage materials in compliance with the International Fire Code, as amended by the city, are excluded from this requirement. The wall or screen fence for metal recycling entities located within one hundred (100) feet of a property with a residence thereon must be constructed or modified so that it is eight (8) feet in height. The wall or screen fence for all other existing metal recycling entities must be six (6) feet in height. All metal recycling entities established after the effective date of this ordinance change are required to maintain fences at least eight (8) feet in height. All solid screen fences allowed to be constructed in excess of eight (8) feet in height shall require certification by a licensed engineer that the foundation and support structure are designed to sustain wind loads in accordance with the International Building Code.

(1) All new fences shall be constructed of wood; stone; rock; concrete block; precast concrete panels; masonry brick; brick; or commercially available metal panel (capped and painted to reduce reflectivity and/or heat from the exterior only), or other material(s) which are similar in durability.

a. Barbed wire, razor wire, and all other similar materials are regulated pursuant to section 35-514(a)(6)c.

(d) Those sections of a metal recycling entity which are contiguous with another metal recycling entity or other Used Auto Parts Recycler (UAPR) are exempt from subsection (a), if those sections otherwise have an adequate barrier as required by subsection (a), to inhibit the migration of rodents and other vectors between the metal recycling entities or used auto parts recyclers.

(e) Gates for access to the metal recycling entity's premises at each street or alley line must not have combined openings exceeding thirty (30) percent of the alley or street frontage. All gates for access must not swing outward and must be kept closed when the metal recycling entity is not open for business. This will not apply to access points on a railroad right-of-way.

(f) The fencing requirements in this subsection do not apply to metal recycling entities whose business is conducted solely within a completely enclosed structure or structures.

(g) In the event of a conflict between the fencing requirements of this division and the requirements of Chapter 35, Unified Development Code of the City Code of San Antonio, Texas, the requirements of this article shall supersede.

(Ord. No. 2012-12-13-1006, §§ 2—51, 12-13-12; Ord. No. 2025-05-15-0352, § 2, 5-15-25)

Sec. 16-210.3. Manner of storage; waste containment; weed and brush maintenance; fire safety path.

(a) Salvage materials on the premises of a metal recycling entity shall be arranged so that a reasonable inspection of, or access to, all parts of the premises can be had at any time by the proper fire, health, police, code enforcement, and building authorities which inspections dealers shall permit during business hours or any reasonable period afterwards.

(b) No salvage materials shall be placed in any manner outside of the metal recycling entity's surrounding screen fence or wall.

(c) Areas where recycling operations exist shall be kept clean of any weeds and/or brush over four (4) inches tall. All other area of the premises shall be kept clean of any weeds and/or brush over twelve (12) inches tall within one hundred fifty (150) feet from the curb line of adjacent to residential uses, businesses, streets or the edge of the streets or road surface where no curb exists.

(d) Upon the metal recycling entity's possession of all salvage materials, contaminated liquid wastes along with other contaminated materials, hazardous waste, and special waste - including Freon - shall be removed from the salvage materials and contained, stored, and disposed in compliance with all applicable state and federal

regulations. Disposal of accumulated contaminated liquids and materials shall be accomplished by a duly licensed contractor. The metal recycling entity shall maintain on premises all completed manifests evidencing legal disposal for a period of three (3) years from the date of disposal. A code enforcement officer shall review the manifests, bills of sale, or other proof of legal disposal at least once every three (3) months.

(e) All hazardous solid waste, hazardous liquid, regardless of character to or category, shall be contained as to prevent negative impacts on human health or the environment. All storage of hazardous liquid or hazardous solid waste shall be subject to applicable local, state and federal regulations. In no event shall any metal recycling entity maintain a volume and weight of stored liquid or hazardous solid waste inventory in excess of the lesser of the maximum exempt amounts allowed by the fire code as adopted within the City Code or state and federal regulations for a small quantity generator. All hazardous liquid or hazardous solid waste shall be stored only in above ground containers in accordance with applicable federal, state and local laws and administrative regulations. It is unlawful for any hazardous liquid or hazardous solid waste to be held in a container that leaks, is in any other manner not in compliance with state and federal regulations, or in any manner fails to completely contain the material in question.

(f) All metal recycling entities, as defined by this division, shall have a fire safety path. No salvage materials, vehicles, brush, low hanging limbs (less than fourteen (14) feet), or items obstructing the pathway, shall be placed within ten (10) feet of the surrounding wall or screen fence. The fire chief shall oversee fire safety path specifications and compliance for each metal recycling entity and may alter the required number of feet in accordance with the location, use, size, and other characteristics of an individual metal recycling entity. All penalties and appellate procedures of chapter 11 of this Code shall apply to this subsection.

(g) In accordance with chapter 11 of the City Code, outdoor storage shall comply with the following:

(1) Materials shall be stored in unit piles as low in height and small in area as is consistent with good practice for the materials stored. The maximum height shall be determined by the stability of pile, effective reach of hose streams, combustibility of the commodity, and ease of pile breakdown under fire or mop-up conditions. Under no circumstances shall the pile size dimensions exceed fifty (50) feet by one hundred fifty (150) feet by twenty (20) feet high unless the specific commodities maximum dimensions are listed elsewhere in the Code.

(2) Aisles shall be maintained between individual piles, between piles and buildings, and between piles and the boundary line of the storage site. Sufficient driveways having the width of at least twenty (20) feet shall be provided to allow the travel of fire equipment to all portions of the storage area. Aisles shall be at least twice the pile height to reduce the spread of fire from pile to pile and to allow ready access for firefighting, emergency removal of material, or salvage purposes.

(3) As the commodity class increases in combustibility or where storage could be ignited easily from radiation, wider aisles shall be provided. Smaller unit piles could be an alternative to wider aisles if yard space is limited.

(4) Boundary posts with signs designating piling limits shall be provided to indicate yard area, roadway, and aisle limits.

(Ord. No. 2012-12-13-1006, §§ 2—51, 12-13-12; Ord. No. 2025-05-15-0352, § 2, 5-15-25)

Sec. 16-210.4. Motor vehicle crushing equipment or industrial devices.

(a) Motor vehicle crushing shall be performed in compliance with TCEQ and SAWS regulations.

(b) Motor vehicle crushing is only allowed at licensed used automotive parts recyclers or metal recycling entities.

(c) It is unlawful for motor vehicle crushing equipment or industrial devices to operate in contradiction to this section and chapter 21, offenses and miscellaneous provisions, article III, noise, of this Code.
(Ord. No. 2012-12-13-1006, §§ 2—51, 12-13-12; Ord. No. 2025-05-15-0352, § 2, 5-15-25)

Sec. 16-210.5. Emergency contact numbers.

(a) All metal recycling entities shall place and maintain a sign on the premises that may be read from the street right-of-way listing the names and telephone numbers of at least one (1) person in the county who may be called to give admittance to the premises in case of emergency.

(b) It is unlawful to fail to place and maintain a sign as required under this section.
(Ord. No. 2012-12-13-1006, §§ 2—51, 12-13-12; Ord. No. 2025-05-15-0352, § 2, 5-15-25)

Sec. 16-210.6. Rodent and vector control.

(a) All persons owning or operating metal recycling entities shall have a rodent and vector extermination treatment covering the entire premises conducted a minimum of once every three (3) months, conducted in such a manner and utilizing such chemicals as are acceptable to the director.

(b) A rodent and vector control program is the responsibility of all persons owning or operating a metal recycling entity and shall be on-going for the duration of the metal recycling entity's operation.

(c) A code enforcement officer shall inspect all metal recycling entities, as defined by this division, within the city a minimum of once every three (3) months. At the time of the inspection, the inspector shall be provided with evidence to prove that such extermination procedure has occurred within the preceding three-month period and that the person who owns or operates a metal recycling entity has an on-going program for observation, determination, and control of rodents and vectors. The presentation of evidence of a service contract with a recognized and licensed pest control contractor may satisfy this requirement.

(d) If a professional exterminator has been employed, a receipt for payment for services rendered shall be provided. If the person conducts the extermination without using a professional exterminator, the person shall request health department certification at the time the extermination occurs and furnish the code enforcement officer with such evidence sufficient to show that the control has been accomplished in an efficient manner.

(e) It is unlawful for any person to fail to have the necessary rodent and vector extermination conducted in accordance herewith, and it is also unlawful to fail to present to the code enforcement officer upon request the necessary verification of such effective extermination or allow the required entry to the premises.
(Ord. No. 2012-12-13-1006, §§ 2—51, 12-13-12; Ord. No. 2025-05-15-0352, § 2, 5-15-25)

Sec. 16-210.7. Monthly inspections; nuisance declared.

(a) The development services department is authorized to conduct monthly inspections of all metal recycling entities for the purpose of assuring compliance with the terms of this division. However, a code enforcement officer or peace officer may inspect a metal recycling entity upon reasonable suspicion of any wrongdoing at any time activity regulated under this article is conducted. A comprehensive inspection form shall be devised by said department to be completed at the time of such inspections during monthly, quarterly and annual inspections indicating the date the inspections occurred. This form indicating the date of the last inspection shall be posted by the metal recycler in a conspicuous place on the premises at all times.

(b) Conditions maintained in violation of this division which impact public health, safety, or welfare, or which deprive neighbors of their safe or peaceful use of nearby properties shall be unlawful and shall be deemed a public nuisance.

Further, a failure to allow either monthly or other inspections or post inspections as required is unlawful.

(c) If a violation of this chapter is observed, a notice of violation shall be issued providing two (2) business days to cure the defect unless otherwise provided by the director.

(d) As noted in section 16-206(f), enforcement of federal or state requirements shall remain the responsibility of the appropriate agencies. If a reportable spill quantity (per TCEQ definition) is observed, the Texas Commission on Environmental Quality (TCEQ), San Antonio Water System (SAWS) the health department, San Antonio Fire Department (SAFD) and/or the hazardous material unit for the city will be notified, as applicable.
(Ord. No. 2012-12-13-1006, §§ 2—51, 12-13-12; Ord. No. 2025-05-15-0352, § 2, 5-15-25)

Sec. 16-210.8. Time limit for compliance by newly annexed metal recycling entities.

(a) Metal recycling entity businesses which are annexed into the city shall have a period of (1) year from the effective date of the annexation to install fencing as required by this division. Persons whose metal recycling entities are annexed shall also demonstrate compliance with existing federal, state, and county laws and regulations applicable to fencing requirements for such facilities at the date of annexation.

(b) Subsequent to annexation, the director shall promptly notify affected license holders in newly annexed areas of the obligations under this division.

(c) It is unlawful for a person to fail to install fencing or demonstrate federal, state and county legal compliance as required under this section.
(Ord. No. 2012-12-13-1006, §§ 2—51, 12-13-12; Ord. No. 2025-05-15-0352, § 2, 5-15-25)

Sec. 16-210.9. Records required to be kept by metal recycling entities as to regulated material.

(a) The provisions of this section apply to all business carried on at a single location. With the exception of the sale or transfer of aluminum cans, a person who owns or operates a metal recycling entity shall keep at the place of business a record in a real-time electronic web-based database, in a form and method approved by the chief of police, in which it shall be entered daily, in English, a full description of each transaction in which personal property is purchased or otherwise received at the place of business. Such description shall include:

(1) The date and time of receipt of any item;

(2) The full name and current address of the person or place of business from which each item was received;

(3) A clear thumbprint impression from the person seeking to transfer, sell or otherwise give the items that are the subject of each transaction;

(4) Verified evidence that the person transferring, selling or otherwise giving the items is at least eighteen (18) years of age by presentation of valid identification, including a photograph of the face of person transferring, selling or otherwise giving the item, in the form of:

a. A current driver's license from Texas or another state within the United States;

b. An identification card issued by the state department of public safety; or

c. United States military identification.

(5) A description of the salvage vehicle and/or trailer or other mode of transportation in or on which each item received was carried to, delivered or transported to the metal recycling entity including state and license plate number, if applicable;

(6) The individual transaction number assigned by the metal recycling entity to each item received;

(7) A description of the items received as part of the transaction including, where customary in the business, the size, weight, material, and any other designations or descriptions customarily employed in the sale and purchase of such items;

(8) A digital photo of the seller, and digital photograph of items received;

(9) The name or employee number of the employee who facilitates or conducts the transaction.

(b) The real-time electronic web-based database described in subsection (a) shall be created and maintained by the police department. The person who owns or operates the metal recycling entity or its agents or employees shall forward the required record and descriptions set forth in subsection (a) in an electronic format to the designated police department web site before the close of business on each day on which the metal recycling entity is open for business. Failure to comply with any provision of this section is unlawful and punishable as provided for in this division and is grounds for the revocation of or the refusal to issue or renew any license required of a metal recycling entity under this Code.

(c) The person who owns or operates a metal recycling entity or agents or employees of such entity shall maintain copies of consecutively numbered receipts provided to the seller or transferor of the property. Such receipt shall be dated on the actual date of the transaction and shall list the items sold or otherwise transferred. A printed version of the record input and transmitted to the real-time electronic web-based database as described in this section shall satisfy this requirement. An accurate copy or record of receipts obtained shall be retained for a period of not less than one (1) year.

(d) A person who owns or operates the metal recycling entity or the agents or employees shall, upon request, submit and exhibit the various business records that are required to be maintained under this section for inspection or copying by any peace officer or authorized inspector of the director. Failure to maintain or to so permit the examination or copying of such records when requested is unlawful and punishable as provided under this division.

(e) The metal recycling entity shall be on-line with the real-time database within ninety (90) days of the approval and signing of the ordinance from which this division derives by the city council. All other sections of this division will be immediately enforced upon the approval and signing of the ordinance from which this division derives by city council.
(Ord. No. 2012-12-13-1006, §§ 2—51, 12-13-12; Ord. No. 2025-05-15-0352, § 2, 5-15-25)

Sec. 16-210.10. Government or utility property.

(a) It is unlawful for any person who owns or operates a metal recycling entity, or agents or employees of said entity to purchase or receive an item of property, including but not limited to street signs, traffic signals, manhole covers, road and bridge guard rails, street light poles and fixtures, on which are written or affixed the words "Property of the City of San Antonio" or other words or markings demonstrating ownership by the city except in the following circumstances:

(1) Where the person offering such property for sale is an employee of the city authorized by the director to make such a sale and provides the person who owns or operates a metal recycling entity or agents or employees of said entity with a written authorization from the city manager for the sale of such property; or

(2) Where the person offering such property for sale presents at the time of such offer a valid receipt from the director evidencing the purchase of such property by the person offering such property; or

(3) Where the person offering such property for sale presents at the time of such offer a valid authorization for the disposal of "surplus," "salvage," scrap," and e-waste" in accordance with the city procurement policy and procedures manual as part of a contract signed by the director responsible for the associated project.

(b) It is unlawful for any person who owns or operates a metal recycling entity or agents or employees of said entity to purchase or receive an item of property that is marked with any form of the name or initials of a governmental agency, including but not limited to the state and the United States of America and their agencies and political subdivisions or that the person who

owns or operates a metal recycling entity or agents or employees of said entity know or should reasonably be expected to know belongs to a governmental agency, including but not limited to street signs, traffic signals, manhole covers, road and bridge guard rails, street light poles and fixtures, except:

(1) Where the person offering such property for sale is an employee of the governmental agency authorized by that agency to make such a sale and provides the person who owns or operates a metal recycling entity or agents or employees of said entity with a written authorization from the agency for the sale of such property; or

(2) Where the person offering such property for sale presents at the time of such offer a valid receipt from the governmental agency evidencing the purchase of such property by the person offering such property; or

(3) Where the person offering such property for sale presents at the time of such offer a valid authorization for the disposal of "surplus," "salvage," "scrap," and "e-waste" or analogous concepts in accordance with established policies and procedures as part of a contract signed by the agency director responsible for the associated project.

(c) It is unlawful for any person who owns or operates a metal recycling entity or agents or employees of said entity to purchase or receive an item of property that is marked with any form of the name or initials of an electrical, telephone, cable, or other public utility company or that the person who owns or operates the metal recycling entity or agents or employees of said entity know or should reasonably be expected to know belongs to a public utility unless the person offering such property for sale presents at the time of such offer a valid receipt from the public utility company evidencing the purchase of such property by the person offering such property or a contractual agreement signed by the director of the public utility company authorizing the sale and disposal of "surplus," "salvage," "scrap," and "e-waste" or analogous concepts in accordance with established policies and procedures.
(Ord. No. 2012-12-13-1006, §§ 2—51, 12-13-12; Ord. No. 2025-05-15-0352, § 2, 5-15-25)

Sec. 16-210.11. Acceptance of building construction materials.

(a) It is unlawful for any person who owns or operates a metal recycling entity or agents or employees of said entity to receive, sell, dismantle, deface or in any manner alter or dispose of any building construction material unless compliance is made with sections 16-210.9 and 16-210.14.

(b) It is unlawful for any person who owns or operates a metal recycling entity or agents or employees of said entity to receive, sell, dismantle, deface or in any manner alter or dispose of any building construction material unless the person who owns or operates the metal recycling entity or agents or employees of said entity:

(1) Records, along with the description of the property, the serial number, or other identifying characteristics of each part or piece of building construction material; or

(2) Obtains a written, signed statement from the seller attesting to lawful ownership of the property, a receipt from the lawful owner, or a written, signed statement from the lawful owner of the property providing that the seller has authorization to sell or otherwise transfer, that property.

(Ord. No. 2012-12-13-1006, §§ 2—51, 12-13-12; Ord. No. 2025-05-15-0352, § 2, 5-15-25)

Sec. 16-210.12. Acceptance of air conditioning unit parts.

If regulated material being offered for sale includes condensing or evaporator coils for central heating or air conditioning units, the person offering it for sale must display:

(1) Their air conditioning and refrigeration contractor license issued under V.T.C.A., Occupations Code ch. 1302, subch. F or G; or

(2) Their air conditioning and refrigeration technician registration issued under V.T.C.A., Occupations Code ch. 1302, subch. K; or

(3) A receipt, bill of sale, or other documentation showing that they purchased the coils they're attempting to sell; or

(4) A receipt, bill of sale, or other documentation showing that they purchased a replacement heating or air conditioning unit.

(Ord. No. 2012-12-13-1006, §§ 2—51, 12-13-12; Ord. No. 2025-05-15-0352, § 2, 5-15-25)

Sec. 16-210.13. Stock to be open for examination.

The stock or inventory of any metal recycling entity shall at any time during ordinary business hours be accessible for examination by any peace officer or authorized inspector of the director's office. Failure to comply with any provision of this section, in addition to being unlawful and punishable as provided in this division, shall be grounds for the revocation of or the refusal to issue or renew any license required of a metal recycling entity under this division.

(Ord. No. 2012-12-13-1006, §§ 2—51, 12-13-12; Ord. No. 2025-05-15-0352, § 2, 5-15-25)

Sec. 16-210.14. Articles to be retained at least seventy-two (72) hours; tag; exceptions.

(a) Notwithstanding the provisions of subsections (b) and (c), it is unlawful for any person who owns or operates a metal recycling entity to process, dismantle or in any manner alter, dispose of, sell or remove from the premise any regulated metal purchased or otherwise received at the licensed place of business for seventy-two (72) hours after receipt, excluding weekends and holidays, provided that there is no requirement to keep aluminum cans for more than twenty-four (24) hours. During such 72-hour period, all items of property shall be stored or displayed at the business location, in the exact form received, and in a manner so as to be identifiable from the description entered in the database. Such property shall not be kept in such a manner so as to prevent or impede its examination.

(b) A peace officer with reasonable suspicion to believe that an item of regulated material in the possession of a metal recycling entity is stolen may place the item on hold in the manner provided by V.T.C.A., Occupations Code § 1956.037.

(c) Exceptions. A person who owns or operates a metal recycling entity or an agent or employee of said entity is not required to comply with the provisions of this section if the person who owns or operates a metal recycling entity or agent or employee of said entity verifies that the person or entity seeking to sell or otherwise transfer the metal items has one of the following licenses or permits to establish that he is a manufacturing, industrial, commercial, retail, or other seller that sells regulated material in the ordinary course of business:

(1) A valid city-issued metal recycling entity license, which the metal recycling entity shall record by photocopying the license or recording the license number in connection with the sale and maintain for a period of not less than three (3) years, or

(2) A valid city-issued construction, demolition, or electrical permit, which the metal recycling entity shall record by photocopying the permit or recording the project number located on the permit in connection with the sale and maintain for a period of not less than one (1) year.

(Ord. No. 2012-12-13-1006, §§ 2—51, 12-13-12; Ord. No. 2025-05-15-0352, § 2, 5-15-25)

Sec. 16-210.15. Acceptance of property suspected stolen; peace officer requested holds; violation.

(a) It is the duty of every person who owns or operates a metal recycling entity or the agents or employees of said entity to report immediately to the police department, by filing a formal complaint, any offer to sell to the person who owns or operates the metal recycling entity or the agents or employees of said entity, property that such person who owns or operates the metal

recycling entity, or agents or employees of said entity have actual knowledge is stolen or by reasonable diligence should know is stolen, together with the identity, when known, and description of the person or persons making such offer. Such person who owns or operates the metal recycling entity or the agents or employees of said entity shall also report any property acquired by the person who owns or operates the metal recycling entity, that the person who owns or operates the metal recycling entity or agents or employees subsequently determine or reasonably suspect to be stolen property, and the person who owns or operates metal recycling entity, or agents or employees shall furnish such other information as might be helpful to the police in investigating the matter.

(b) It is the duty of every person who owns or operates a metal recycling entity or agents or employees to hold all suspected stolen property in a secure place for sixty (60) days upon request by a peace officer. The person who owns or operates a metal recycling entity or agents or employees, may not process or remove the property from the premises before the 60th day after receipt of the request from a peace officer to hold the property unless the hold is released at an earlier time in writing by a peace officer of this state or a court order.

(c) Failure to comply with any provision of this section is unlawful and punishable as provided in this division and grounds for the revocation of or the refusal to issue or renew any license required of a metal recycling entity under this division.
(Ord. No. 2012-12-13-1006, §§ 2—51, 12-13-12; Ord. No. 2025-05-15-0352, § 2, 5-15-25)

Sec. 16-210.16. Facsimile, telecopy, or similar equipment required.

A person who owns or operates a metal recycling entity shall maintain at the place of business, or otherwise have immediate access to, a facsimile, telecopy, or other equipment of similar function on which notifications of stolen property or other notifications relating to regulated metal property may be expeditiously received from the police department. The equipment must be operable at all times during the usual and customary business hours of the metal recycling entity. The person who owns or operates a metal recycling entity shall maintain the facsimile number or other access number of the equipment on file with the chief of police and shall notify the chief of police within twenty-four (24) hours after any change in the number. Failure to comply with this section is unlawful and punishable as provided in this division.
(Ord. No. 2012-12-13-1006, §§ 2—51, 12-13-12; Ord. No. 2025-05-15-0352, § 2, 5-15-25)

Sec. 16-210.17. Purchasing or receiving goods from minors.

(a) It is unlawful for any person who owns or operates a metal recycling entity or agent or employee to purchase or otherwise receive in the course of business, any item, ownership of which is claimed by any minor, or which may be in the possession of or under control of a minor, unless:

(1) The minor is accompanied by his parent or guardian, who shall state in writing, that such transaction is taking place with such parent's or guardian's full knowledge and consent;

(2) The minor has a valid official identification document such as a driver's license; or

(3) The only items offered for sale by the minor are aluminum cans, or non-regulated materials.

(b) It is the duty of such person who owns or operates a metal recycling entity or an agent or employee, to preserve and keep on file, and available for inspection, such written statements of consent for a period of not less than one (1) year. A violation of this subsection is unlawful and punishable as provided in this division.
(Ord. No. 2012-12-13-1006, §§ 2—51, 12-13-12; Ord. No. 2025-05-15-0352, § 2, 5-15-25)

Sec. 16-210.18. Acceptance of property inscribed with company name.

It is unlawful for any person who owns or operates a metal recycling entity, or the agents

or employees, to purchase or receive an item of property that is marked with any form of the name or initials of a private company or that the person who owns or operates a metal recycling entity or agent or employee knows or should reasonably be expected to know belongs to a private company unless the person offering such property for sale presents at the time of such offer a written, signed statement from the seller attesting to lawful ownership of the property, a receipt from the lawful owner, or a written, signed statement from the lawful owner of the property providing that the seller has authorization to sell or otherwise transfer that property.
(Ord. No. 2012-12-13-1006, §§ 2—51, 12-13-12; Ord. No. 2025-05-15-0352, § 2, 5-15-25)

Sec. 16-210.19. Acceptance of property delivered by shopping cart.

It is unlawful for any person who owns or operates a metal recycling entity, the agents or employees to purchase or receive an item of property that is transported to the metal recycling entity by a shopping cart that is marked with any form of the name or initials of a private company or that the person who owns or operates the metal recycling entity, or agent or employee knows or should reasonably be expected to know belongs to a private company unless the person operating the shopping cart presents at the time of transportation of property to the person who owns or operates the metal recycling entity or the agent or employee a valid receipt from the owner of the shopping cart evidencing the purchase of the shopping cart by the person operating the shopping cart.
(Ord. No. 2012-12-13-1006, §§ 2—51, 12-13-12; Ord. No. 2025-05-15-0352, § 2, 5-15-25)

Sec. 16-210.20. Violation and penalties.

It is unlawful for a person to do or perform any act prohibited by this division or fail to do or perform any act required by this division. A violation under this division is a Class C misdemeanor offense, unless specifically stated otherwise, and upon conviction, a person shall be fined an amount not less than one hundred dollars ($100.00) nor more than two thousand dollars ($2,000.00). The provisions of this subsection are in addition to and not in lieu of any administrative, criminal, or civil prosecution or penalties as provided by local and state laws. Each day that a violation of this article continues shall be considered a separate offense.

(a) Anyone who violates any provision of this article shall be subject to prosecution in administrative, criminal, and/or civil courts, under all applicable local and state laws, and will be strictly accountable for any penalties and punishment accrued therefrom.

(b) Alternative adjudication; Administrative enforcement: All violations of the provisions of this article and of the rules and regulations established by the director, unless stated otherwise, may be enforced by administrative adjudication pursuant to chapter 20, article II, City Code of Ordinances.
(Ord. No. 2012-12-13-1006, §§ 2—51, 12-13-12; Ord. No. 2025-05-15-0352, § 2, 5-15-25)

Sec. 16-210.21. Updates for amendments.

The city, through appropriate staff and stakeholder commentary, shall review and recommend amendments to these regulations every five (5) years.
(Ord. No. 2025-05-15-0352, § 2, 5-15-25)

ARTICLE VIII. PAWNBROKERS, JEWELERS AND SECONDHAND DEALERS*

Sec. 16-211. Records required.

(a) Every pawnbroker, jeweler or person doing business as such in the city, or who may hereafter engage in such business, and every dealer in any character or type of secondhand goods, wares or merchandise, shall keep a record book in which he shall make accurate daily entries of any articles sold to or purchased by him in the course of his business, with a description of such articles as follows:

(1) He shall affix a number to each article so received by him, and shall make an entry of such number in the record book.

*__State law reference—__Vernon's Ann. Civ. St. art. 1175(24).

(2) He shall make a record in the record book of the name and address and birthdate of the person from whom he received the article, along with the person's description or the distinctive number from such person's driver's license or military identification.

(3) He shall record the date of the transaction of purchase and of disposition, together with a description or identification of the goods sold to the pawnbroker, including serial numbers, if available. He shall make an entry in the book of the disposition made by him of the article, and, if sold, he shall state to whom sold and the price received therefor.

(b) The record books required to be kept by this section shall at all times be open to the inspection of the chief of police, or his agent without need of judicial writ or other process. It shall be the duty of the persons required to keep the record books to exhibit the record books to any police officer for inspection whenever demanded.
(Code 1959, § 26-29)

Sec. 16-212. Doing business with minors.

No pawnbroker, jeweler or person doing business as such in the city, or who may hereafter engage in such business and no dealer in any character of secondhand goods, wares or merchandise shall have any business dealing with a person less than eighteen (18) years of age, except with the written consent of the parent or guardian of the minor in each particular transaction. The written consent shall be sworn to before and notarized by a notary public in the county and shall be retained by the pawnbroker for a period of one (1) year from the date of the transaction.
(Code 1959, § 26-29)

Sec. 16-213. Stolen, lost articles.

It shall be the duty of every pawnbroker, jeweler, or person doing business as such in the city, or who may hereafter engage in such business, and every dealer in any character or type of secondhand goods, wares, or merchandise whatsoever, to report to the police any article pledged or sold to him, or which is sought to be pledged or sold to him, if he shall have reason to believe that the article was stolen or lost, and found by the person attempting to sell it in the case of a lost article.
(Code 1959, § 26-29)

Secs. 16-214—16-225. Reserved.

ARTICLE IX. PEDDLERS, HAWKERS, CANVASSERS; SOLICITORS*

Sec. 16-226. Definitions.

As used in this article the following words and phrases shall have the definitions ascribed to them by this section:

Canvasser. The term "canvasser" includes "solicitor" and any person who makes retail sales for future delivery of tangible property from house to house or in any public place, whether or not payment is collected at the time of such sale, and such sales are taxable transactions under the provisions of the limited sales, excise and use tax of the state.

Peddler shall include the term "hawker" and shall mean any person who makes retail sales of tangible property from house to house or in any public place, and such sales are not made from an established place and delivery is made at the time of sale, whether or not payment is collected at the time of such sale.

Public place shall mean, for purposes of Article IX, a place to which the general public has a right to resort and is not prohibited by section 19-8 of the City Code, but does not include streets, traffic medians, shoulders and improved shoulders.

Real property shall mean any lot, tract, parcel, or section of land and shall include whatever is erected, growing upon, or affixed to the land; but shall not mean nor include the interior of a permanent commercial structure if such structure

*__State law reference—__Authority to regulate, Vernon's Ann. Civ. St. art. 1175(24).

is used simultaneously for a business purpose for which a certificate of occupancy has been issued and is in effect.

Retail sale shall mean any sale other than a sale of tangible property to any purchaser who is purchasing the tangible property for the purpose of reselling it in the normal course of business either in the form or condition in which it is purchased or as an attachment to or as an integral part of other tangible property.

Tangible property shall mean property which may be seen, weighed, measured, felt or touched or which is in any other manner perceptible to the senses.
(Code 1959, § 28-1; Ord. No. 51213, 2, 9-6-79; Ord. No. 66193, § 1, 12-3-87; Ord. No. 71697, §§ 1, 2, 6-7-90; Ord. No. 88723, § 1, 10-22-98)

Sec. 16-227. License required.

It shall be unlawful for any person to engage in the business of peddler or canvasser of any tan-

gible property without having first secured a license therefor in compliance with the provisions of this article.
(Code 1959, § 28-2; Ord. No. 51213, § 1, 9-6-79)

Sec. 16-228. Qualifications for license.

No peddler s or canvasser s license shall be issued to any person who has been convicted of the commission of a felony in a court of competent jurisdiction within one (1) year of the date of the application, to any person who has been on probation or parole as a result of a felony within six (6) months of the date of the application or to any person who has knowingly made any false, misleading or fraudulent statement of fact in the license application. A license shall not be issued to any person who has been convicted of a violation of any of the provisions of this article or to any person whose license has previously been revoked, if such conviction or revocation occurred within one (1) year of the date of the application.
(Code 1959, § 28-3; Ord. No. 51213, § 5, 9-6-79)

Sec. 16-229. Application for license.

Applicants for license under this article shall file a written sworn application with the city treasurer at least five (5) days prior to the date of the initial contemplated sale. The application shall state thereon the description and license plate number of any vehicles intended to be operated in connection with his business and the kind of merchandise to be peddled or canvassed. The applicant shall also provide the following:

(1) The name or names of the person or persons having the management or supervision of the applicant s business, if any, and the permanent address of such person or persons;

(2) The name and address of the person on whose account the business will be carried on, if any, and if a corporation under the laws of what state it is incorporated;

(3) The place or places where the applicant within the three (3) months preceding the date of the application peddled or canvassed, stating the nature thereof and giving the applicant s full address in each place, and his local address and telephone number;

(4) Whether or not the applicant has been convicted of the commission of a felony in a court of competent jurisdiction within one (1) year of the date of the application and if the applicant has been on probation or parole as a result of a felony within six (6) months of the date of the application; and

(5) Whether or not the applicant has previously held a license issued under the provisions of this article and if such license was revoked.

(Code 1959, § 28-5; Ord. No. 51213, § 3, 9-6-79)

Sec. 16-230. Investigation of applicant by chief of police.

Upon the receipt of a license application the original shall be referred to the chief of police, who shall cause an investigation to be made for the purpose of ascertaining the veracity of the statements made in the application. If, as a result of the investigation, the chief of police finds that the applicant does not meet the requirements set forth in section 16-228 of this article then he shall endorse his disapproval and his reasons for the same upon the application.
(Code 1959, § 28-4; Ord. No. 51213, § 7, 9-6-79)

Sec. 16-231. Denial of license; appeal; hearing.

Any person denied a license shall have the right to appeal such action to the city council. In such case the procedure shall be the same as in revocation. After holding a hearing the council shall, by majority vote, either sustain the action of the city treasurer or issue an order to the city treasurer to issue the license.
(Code 1959, § 28-5.1; Ord. No. 51213, § 6, 9-6-79)

Sec. 16-232. License fees.

(a) The license fee for a foot peddler s license shall be one hundred twenty dollars ($120.00) for a license expiring one (1) year from the date of issue. The fee for a license for a peddler utilizing a truck, cart, or other vehicle in his/her business

shall be one hundred eighty dollars ($180.00) for a license expiring one (1) year from the date of issue. The fee for a canvasser s license shall be sixty dollars ($60.00) for a license expiring one (1) year from the date of issue.

(b) All license fees collected hereunder shall be compensation to the city for the services herein required of it and to partially defray the expenses of enforcement of this article.
(Code 1959, § 28-5.2; Ord. No. 51213, § 4, 9-6-79; Ord. No. 63230, § 1, 7-16-86; Ord. No. 90492, § 2, 9-16-99; Ord. No. 99733, § 2, 9-16-04)

Sec. 16-233. Transfer of license prohibited.

No license issued under the provisions of this article is transferrable and the authority a license confers shall be conferred only on the licensee named therein.
(Code 1959, § 28-5.3; Ord. No. 51213, § 8, 9-6-79)

Sec. 16-234. Revocation of license.

(a) *Grounds.* Any license issued hereunder shall be revoked by the city treasurer if the license holder is convicted of a violation of any of the provisions of this article or has knowingly made a false material statement in the application or otherwise becomes disqualified for the issuance of a license under the terms of this article.

(b) *Notice.* Notice of the revocation shall be given to the licensee in writing, with the reasons for the revocation specified in the notice, served either by personal service of such notice upon the licensee or by certified United States mail to his last known address. The revocation shall become effective the day following personal service or if mailed, three (3) days from the date of mailing.

(c) *Appeal; hearing.* The licensee shall have ten (10) days from the date of such revocation in which to file notice with the city clerk of his appeal to the city council from the order of the city treasurer. The city clerk shall provide for a city council hearing on the appeal at the earliest convenient regular city council meeting and shall notify the appellant and the city treasurer of the date of the city council hearing. After holding a hearing on such revocation, the city council shall by majority vote either sustain the action of the city treasurer or issue an order to the city treasurer to reinstate the license.

(d) In the event of the filing of an appeal from a revocation issued under the provisions of this article, then, until such appeal has been determined by the city council such revocation order shall be stayed.
(Code 1959, § 28-5.4; Ord. No. 51213, § 6, 9-6-79)

Sec. 16-235. Use of traffic islands, medians, etc., for storage or sale of tangible property prohibited.

No person shall store or keep or offer for sale any tangible property on any traffic island, median or other traffic control device located within the corporate limits of the city.
(Code 1959, § 28-5.5; Ord. No. 51213, § 9, 9-6-79)

Sec. 16-236. Areas prohibited to peddlers and canvassers; affirmative defense.

(a) *Public property generally.* It shall be unlawful for any person to peddle, canvass or solicit or cause or permit to be peddled, canvassed or solicited any tangible property or services on city owned property with the exception of:

(1) Parks, as provided under the applicable provisions of Chapter 22;

(2) Sidewalks and where such activities are not prohibited by subsection (b) of this section or section 19-8 of the City Code and;

(3) Persons and their agents who have contracted for services within the city for sales on the grounds of city-owned property.

(b) *Downtown business district*

(1) *Definitions.*

Display means any manner in which any person shows, exhibits, demonstrates, presents, or otherwise makes visible goods, merchandise, or service.

Downtown business district has the same meaning as in the Unified Development Code of San Antonio Texas.

Hawk means offering goods, merchandise, or services by calling or crying out.

Inhibit means to cause any person walking or otherwise proceeding to swerve, dodge, change direction, or come to a complete stop to avoid a display, transaction or person involved in vending.

Public property means any real property owned or controlled by the city.

Vend means offering goods, merchandise, or services in exchange for compensation; accepting compensation in exchange for goods, merchandise, or services; or distribution or display of merchandise or commercial advertising matter.

(2) *Vending in the downtown business district prohibited.*

a. It shall be unlawful for any person to peddle, canvass, or solicit or cause or permit to be peddled, canvassed or solicited, any property or services or to hawk, sell, or vend goods, merchandise, or services in the downtown business district on public property, provided that any vending that inhibits pedestrian or traffic flow on adjacent property is prohibited notwithstanding any lease provision or the possession of a validly issued permit.

b. It shall be unlawful to display or transport merchandise or goods within the downtown business district, outside of areas permitted under subsection (3)c. unless the merchandise or goods are enclosed, covered or not visible during transport.

(3) *Exceptions.* The prohibition against vending does not apply to the following:

a. Vending, on public property leased to a private individual or business, of food and/or beverage services provided that such vending complies with all other laws and the food and/or beverage service does not inhibit pedestrian or traffic flow on adjacent public property and is offered and exchanged solely within stationary eating establishments to patrons seated outside the structure of the building; all other vending offered in such leased areas shall require a permit issued under subsection (3)c.;

b. Vending of goods, merchandise, or services offered and exchanged solely within the interior of any permanent structure;

c. Vending goods, merchandise, or services as allowed by any permit from the city which expressly allows operations in the downtown business district;

d. Wearing nametags, badges, shirts, aprons or other personal clothing attire with company information, logos or other identifying items; or

e. Vending officially sanctioned by the city as part of a special event sponsored or co-sponsored by the city.

(4) *Permits.* Downtown business district vending permits shall be issued annually by the designated city department in accordance with procedures adopted by the city manager or the city manager s designee and such policies shall include, but not be limited to, standards for the amount of space necessary for the issuance of a permit. The city manager or the city manager s designee shall have authority to issue permits solely for real property owned by the city and leased to a private individual or business and such vending shall be merely an ancillary use to and shall be compatible with the main business of the property in which the vending is taking place. The city manager or the city manager s designee shall evaluate each proposed vending location and shall only be authorized to issue permits for those locations which the city manager or the city manager s designee has determined are large enough that vending in those locations would have no effect on adjacent

public property. The city manager shall be authorized to adopt policies allowing for singing groups or other group performers to qualify for a group permit provided that such groups always stay together as a unit while exercising their vending rights under the permit and provided that each individual in the group has otherwise satisfied the conditions of obtaining a permit such as the required criminal background check and the wearing of an identifying badge or card. The director of downtown operations shall have authority to immediately suspend, subject to an appeal process to the city manager or the city manager s designee, any such permits in the event that the permitee does not comply with the policies and procedures adopted by city manager or is in violation of this chapter.

(5) *Fees.*

a. A vending permit fee of seven hundred and fifty dollars ($750.00) shall be paid to the city with the submission of each application for a vending permit for one location to pay for the cost of review and verification of accuracy of the application and conformance with the other requirements of this Code. An additional vending permit fee of one hundred dollars ($100.00) shall be paid for each additional location.

b. A group vending permit fee of seven hundred and fifty dollars ($750.00) shall be paid to the city with the submission of each application for a group vending permit for one location to pay for the cost of review and verification of accuracy of the application and conformance with the other requirements of this Code. An additional vending permit fee of one hundred dollars ($100.00) shall be paid for each additional location.

(6) *Penalties.* A person who intentionally, knowingly or recklessly violates any provision of this subsection (b) is guilty of a class C misdemeanor and shall upon conviction be subject to a fine as follows:

a. A person convicted of a violation of this subsection (b) shall be fined a minimum amount of not less than two hundred dollars ($200.00) per violation and a maximum amount of not more than two thousand dollars ($2,000.00) per violation.

b. A person convicted of a second or any subsequent violation shall be fined not less than five hundred dollars ($500.00) and not more than two thousand dollars ($2,000.00).

c. Each violation of this subsection (b) shall constitute a separate offense, and each day an offense continues shall be considered a new violation for purposes of enforcing this subsection (b). Violations shall include convictions and offenses in which deferred adjudication was granted.

(c) It shall be unlawful for any person other than the actual real property owner to use a license issued under this article to peddle, canvass or solicit or cause to be peddled, canvassed or solicited any tangible property or services on privately owned real property without having on the real property a sworn and notarized written statement authorizing such use from the owner of such real property to include:

(1) The full street address of the real property;

(2) The exact nature of the use authorized;

(3) The specific dates and times such use is authorized;

(4) The printed name and address of the owner;

(5) The printed name, address, and position of the owner s authorized representative signing if the owner is not able to sign personally;

(6) A contact number at which the owner or the owner's representative can be reached at all times the real property is authorized for use; and

(7) The printed name and address of all persons authorized to use the real property.

The requirements in this subsection are in addition to any other requirements of this Code and shall not be used to nullify, substitute, or override any other subsections or provisions.

(d) It shall be an affirmative defense to any prosecution under this section that the peddler, canvasser or solicitor operated only off the surfaced portion of a public street, within one thousand (1,000) linear feet of the cemetery, excluding S.W. Military Drive and Mission Road, and not closer than thirty (30) feet to any street intersection provided that it is:

(1) Easter, Mother's Day, or Father's Day or within three (3) days prior to or three (3) days after such holiday, or

(2) Between October 27 and November 6 (inclusive) to cover All Soul's Day/All Saints Day,

and provided further that such peddler, canvasser or solicitor operating within one thousand (1,000) feet of San Fernando Cemetery shall not make sales within one hundred fifty (150) feet from the property line of an existing flower shop.

(e) The sale of flowers shall not be subject to frequency of use restrictions on Castroville Road between General McMullen and Inca Streets on all three (3) days before and all three (3) days after and on Valentine's Day, Easter, Mother's Day, Father's Day, All Souls' Day and All Saints' Day if the vendor has the authorization from the real property owner for such use as required by this section.

(f) No exception or defense listed in this section shall be a defense in any way to prosecution for a violation of section 19-8 of the City Code.
(Code 1959, § 28-5.6; Ord. No. 51213, § 10, 9-6-79; Ord. No. 51478, § 1, 11-14-79; Ord. No. 51683, § 1, 1-3-80; Ord. No. 56455, §§ 1—3, 1-27-83; Ord. No. 65691, § 17, 9-10-87; Ord. No. 66193, § 1, 12-3-87; Ord. No. 71697, §§ 3, 4, 6-7-90; Ord. No. 85310, § 3, 12-12-96; Ord. No. 88723, § 3, 10-22-98; Ord. No. 90497, § 1, 9-16-99; Ord. No. 94585, § 1, 9-20-01; Ord. No. 2006-11-02-1257, § 2, 11-2-06)

Sec. 16-236.1. Guided tour sales prohibited from Alamo East.

Guided tour sales are hereby prohibited from Alamo East, within the Historic Alamo Fortress Compound.
(Ord. No. 69292, § 7, 4-13-89)

Sec. 16-237. Exceptions to article.

(a) This article is not to be construed as prohibiting or limiting the distribution or sale of religious publications, newspapers, handbills or other written or printed matter sold or distributed for the purpose of disseminating information or news on sidewalks or in any public place.

(b) This article is not to be construed as prohibiting "house-to-house" peddling or canvassing.

(c) This article is not to be construed as requiring the licensing of canvassers engaged solely in interstate commerce.

(d) Any person who peddles any food or beverage for human consumption shall not be subject to the licensing provisions of this article, but must be licensed for such peddling by the health department as provided in chapter 13 of this Code.
(Code 1959, § 28-5.7; Ord. No. 51213, § 12, 9-6-79; Ord. No. 51478, § 1, 11-14-79; Ord. No. 71697, § 5, 6-7-90)

Sec. 16-238. Police to aid in enforcement.

It shall be the duty of any police officer of the city to require any person seen canvassing or peddling and who is not known by such officer to be duly licensed, to produce his canvasser's or peddler's license and to enforce the provisions of this article against any person found to be violating the same.
(Code 1959, 28-5.8; Ord. No. 51213, § 7, 9-6-79)

Sec. 16-239. Hours during which activities prohibited.

(a) It shall be unlawful for any person to intentionally peddle, canvass or solicit, or intentionally cause or knowingly permit to be peddled,

canvassed, sold or solicited any tangible property under a license as required by this article on sidewalks and at public places between the hours of 11:00 p.m. and 8:00 a.m. or door-to-door at private residences between the hours of 8:00 p.m. and 8:00 a.m.

(b) Except as otherwise allowed in this article it shall be unlawful for any person, entity, or an agent or employee for a person or entity to use a license issued under this article to peddle, canvass or solicit or cause to be peddled, canvassed or solicited any tangible property or services on any portion of a privately owned real property more than three (3) times within any calendar month. For the purposes of this subsection all usage within a 24-hour day shall be counted as one (1) use. All lots, tracts, parcels, or sections of land sharing a street address or parking area shall be considered one (1) real property under this subsection.

(c) The restrictions in subsection (b) above shall not apply if all the tangible property is carried at all times on or by a non-stationary person using a license issued under this article and actively engaged in the peddling, canvassing, or soliciting of such tangible property.
(Ord. No. 60654, § 1, 5-9-85; Ord. No. 71697, § 6, 6-7-90; Ord. No. 88723, §§ 2, 3, 10-22-98; Ord. No. 2010-01-14-0014, § 1, 1-14-10)

Sec. 16-240. Peddling, canvassing, or soliciting in the AT&T Center.

(a) Notwithstanding anything in this section to the contrary, it shall be unlawful for any person to peddle, canvass, or solicit or cause or permit to be peddled, canvassed or solicited any tangible property or services in the public right-of-way or on city-owned property within the defined area surrounding the AT&T Center.

(b) The geographic boundaries of the area covered by this prohibition shall consist of the area surrounding the AT&T Center Parkway described and bounded as follows: the area beginning at the 3000 block of E. Commerce; thence eastward of E. Commerce to Coca Cola Dr.; thence northward on Coca Cola Dr. to E. Houston St.; thence westward on E. Houston St. to N. Walters St.; thence northward on N. Walters St. to N. Edgar Dr.; thence northward on N. Edgar Dr. to Pullman; thence eastward on Pullman to N. Walters; thence northward on N. Walters to the IH 35 northbound access road; thence eastward on IH 35 northbound access road to AT&T Center Parkway; thence southward on AT&T Center Parkway to E. Houston St.; thence westward on E. Houston St. to Coca Cola Dr.; the area beginning at the 3130 block of E. Commerce; thence eastward on E. Commerce to E. Houston St.; thence westward on E. Houston St. to AT&T Center Parkway; and the area beginning at the 100 block of Gembler Rd.; thence eastward on Gembler Rd. to Paulson. This prohibition shall encompass the entire area of the boundary streets and all public rights-of-way and city-owned property which are adjacent to or abut the boundary streets described. A map of the area encompassed by this section is on file with the city clerk.

(c) Any person who violates the language in subsection (a) will be subject to having all tangible property related to the violation immediately removed and may be subject to prosecution for a Class C misdemeanor and a fine not to exceed five hundred dollars ($500.00).
(Ord. No. 99090, §§ 1—3, 4-15-04; Ord. No. 2006-05-11-0569, § 2, 5-11-06)

Editor's note—Inasmuch as Ord. No. 2006-05-11-0569, § 2, adopted May 11, 2006, changed the name of the SBC Center Parkway to the AT&T Center Parkway, the title of section 16-240 has been changed from "Peddling, canvassing, or soliciting in the SBC area" to "Peddling, canvassing, or soliciting in the AT&T Center." The historical notation has been preserved for reference purposes.

Secs. 16-241—16-250. Reserved.

ARTICLE X. MINORITY AND WOMAN BUSINESS ENTERPRISE PROGRAM*

Sec. 16-251. Policy.

It is the policy of the City of San Antonio to attempt to provide a remedy for past underutilization of minority and woman-owned businesses

*__Editor's note—__Ordinance No. 77758, adopted April 8, 1993, did not specifically amend this Code, hence, codification of §§ 1—4 of such ordinance as §§ 16-25—16-254 herein was at the editor's discretion.

Cross reference—Administration, Ch. 2.

and prevent ongoing underutilization of minority and women's business enterprises in the city's contracting process by ensuring the full and equitable participation of minority and woman's business enterprises in the provision of goods and services to the city on a contractural basis in the manner identified in Attachment I of Ordinance No. 77758, on file in the office of the city clerk.
(Ord. No. 77758, § 1, 4-8-93)

Sec. 16-252. Goal.

The ultimate goal of this article is to remedy the effects of past underutilization in the local marketplace by increasing the use of minority and women's business enterprises above the present low level to one more comparable to their representation in the San Antonio business community. The provisions of this article shall apply to all contracts awarded by the city, except as may be hereinafter specifically exempted, and shall be liberally construed for the accomplishment of its policies and purposes.
(Ord. No. 77758, § 2, 4-8-93)

Sec. 16-253. Conflicts with other ordinances or resolutions.

The provisions of this article from April 8, 1993, the date of adoption, shall supercede all previous minority and woman business enterprise contracting ordinances and council resolutions.
(Ord. No. 77758, § 3, 4-8-93)

Sec. 16-254. Determination of continuing need; amendments.

The city council shall regularly, at least every five (5) years, determine whether there is a continuing need for a minority and woman business enterprise program, make relevant findings, and, if necessary, enact appropriate amendments to this article.
(Ord. No. 77758, § 4, 4-8-93)

Secs. 16-255—16-275. Reserved.

ARTICLE XI. TRAVEL BUREAUS*

Sec. 16-276. Defined.

For the purposes of this article, the term "travel bureau" shall mean any person engaging in or carrying on the business of bringing persons together or putting them in communication with each other for the purpose of or to the end that such persons may contract or agree between themselves to travel from one place to another place in an automobile or other vehicle in the possession or under the control of one of the persons on an expense-sharing basis.
(Ord. No. 19004, § 1, 4-30-53: Code 1959, § 39-1)

Sec. 16-277. License required.

It shall be unlawful for any person, either as principal or as agent or representative of another, to engage in the business of operating a travel bureau, or to advertise or hold himself out as operating a travel bureau, within the city, without having first obtained a license therefor.
(Ord. No. 19004. § 4-30-53; Code 1959, § 39-2)

Sec. 16-278. Application for license, information, oath.

Every person before opening, maintaining or operating a travel bureau in the city shall make an application for a license for each such place of business maintained or operated by him upon a blank to be furnished by the tax assessor-collector on a form prescribed by such officer which shall include, among other things, the name and address of the applicant, both residence and place of business, including the street number, and, if the applicant is a partnership or association, of every member thereof, and, if a corporation, of each officer or director thereof; also the name under which the business is to be conducted. The application for license shall be sworn to by the applicant.
(Ord. No. 19004, § 3, 4-30-53; Code 1959, § 39-3)

*__State law reference—__Authority to regulate, Vernon's Ann. Civ. St. art. 1175(24).

Sec. 16-279. Separate license and application for each establishment.

A separate license and application shall be required for each establishment, office or place of business conducting the business of operating a travel bureau regardless of the ownership thereof.
(Ord. No. 19004, § 4, 4-30-53; Code 1959, § 39-4)

Sec. 16-280. Information to be shown on face of license; posting.

The license required by section 16-227 shall state the address at which the business is to be conducted and the name under which the business is to be conducted. Such license shall be kept conspicuously posted at the place of business of the licensee where it may be readily available for inspection by the public.
(Ord. No. 19004, § 5, 4-30-53; Code 1959, § 39-5)

Sec. 16-281. Licenses not transferable or assignable; issuance of more than one license to same licensee.

Licenses issued under the provisions of this chapter shall not be transferable or assignable, but shall be valid only for the use of the licensee named therein. No licensee shall maintain more than one (1) place of business under the same license. The tax collector, however, may issue more than one (1) license to the same licensee upon compliance with all the provisions of this chapter governing the original issuance of a license or each new license.
(Ord. No. 19004, § 6, 4-30-53; Code 1959, § 39-6)

Sec. 16-282. Licenses valid only at address stated; changing location of business.

Licenses issued under the provisions of this article shall be valid only at the address stated in the license; provided, however, should a licensee desire to change his place of business to another location, he shall give written notice thereof to the tax assessor-collector, who shall attach to the license, in writing, his record of the change and the date thereof, which shall be authority for the operation of such business under such license at such new location.
(Ord. No. 19004, § 7, 4-30-53; Code 1959, § 39-7)

Sec. 16-283. Bond required; amount; conditions, etc.

Before any license shall be issued as provided by this article, the applicant shall furnish in writing a good and sufficient bond in the sum of one thousand dollars ($1,000.00) to be approved by the city attorney. Such bond shall be conditioned that the holder of the license shall well and truly pay to the mayor or his successors in office, any final judgment that may be rendered against such licensee not to exceed the amount of the bond, for the benefit of every person who may recover a final judgment against the licensee, arising and growing out of any material false or fraudulent representation of the licensee, his agents, servants or employees concerning transportation to be furnished or the person furnishing such transportation in connection with the conduct of the business licensed under this article; and further conditioned, that any person having a cause of action against the obligor of such bond arising and growing out of the conduct of the business licensed under this article may sue in his own name and recover on such bond without the joinder of the city or the mayor therein; and further conditioned, that such person may sue and recover upon such bond from time to time until the full amount is exhausted.
(Ord. No. 19004, § 8, 4-30-53; Code 1959, § 39-8)

Sec. 16-284. When new or additional bond required.

Whenever recovery has been had on the bond required by section 16-283 so that the same is depleted or exhausted, the licensee shall immediately file a new or additional bond as provided in section 16-283 for the original bond so as to maintain at all times a good and sufficient bond in the full amount of one thousand dollars ($1,000.00).
(Ord. No. 19004, § 9, 4-30-53; Code 1959, § 39-9)

Sec. 16-285. License fee.

After having filed the application as required by section 16-278 and bond as required by section 16-283 with the city clerk and secured the license as herein provided for the licensee shall pay to the tax assessor-collector the sum of twenty-five dollars ($25.00) as an annual license fee.
(Ord. No. 19004, § 10, 4-30-53; Code 1959, § 39-10)

Sec. 16-286. Disposition of fees and collections.

All fees and collections under this chapter shall be paid to the city tax assessor-collector and be by him paid into the general fund of the city to be used for the purpose of defraying the expenses of enforcement and supervision of this article.
(Ord. No. 19004, § 11, 4-30-53; Code 1959, § 39-11)

Sec. 16-287. Records to be kept; information to be shown.

Each licensee under the provisions of this article shall keep a complete set of records in duplicate showing a list of each person who shall apply to him as the owner or operator of a vehicle desiring to secure persons to travel from one point to another with such owner or operator of such vehicle on an expense-sharing basis, and showing the name of every person making application and the date and hour of the application to such licensee desiring to be put into communication with the owner or operator of a vehicle for the purpose of arranging to travel from one place to another with the owner or operator of such vehicle on an expense-sharing basis. The records shall show the

name and address of each such person and if such person is offering to transport persons from one point to another upon an expense-sharing basis, then such records shall show fully the make, year, model, license number, motor number and ownership of any automobile or vehicle proposed to be used in that connection, and shall show fully any remuneration, commission or compensation paid to the licensee hereunder, by whom paid and for what service such remuneration was paid, shall show the point where such travel is to originate and the point where it is to terminate, and shall show, if the licensee is in possession of the information, the charge made for the transportation of the amount of expense borne by each party thereto. The records shall further show clearly the name of each person which the licensee may bring together with any other person for the purpose of contracting to travel on an expense-sharing basis and the date and hour when such persons were brought together. The record shall also show the name of the person making the record. Each transaction described hereinabove shall constitute a separate transaction. The failure on the part of any licensee to keep the required records of each transaction shall constitute a separate offense. Such records shall at all reasonable times during business hours be subject to inspection by the tax collector and his duly authorized agents.
(Ord. No. 19004, § 12, 4-30-53; Code 1959, § 39-12)

Sec. 16-288. Revocation of license; notice, hearing, grounds.

Any license granted under the provisions of this article shall be subject to revocation by the city council after due notice to the holder of such license and hearing thereon, upon proof of the violation of any of the provisions of this article.
(Ord. No. 19004, § 13, 4-30-53; Code 1959, § 39-13)

Sec. 16-289. Second or additional license not to be issued within one year after revocation.

In the event the license of any person issued under the provisions of this article shall be revoked by the city council, as provided in section 16-288, no second or additional license shall be issued to such person within one year of the date such license was revoked.
(Ord. No. 19004, § 14, 4-30-53; Code 1959, § 39-14)

Sec. 16-290. Motorbus companies and motorbus ticket brokers excluded.

This article shall not apply to any person doing business under and as permitted by the laws of this state relating to motorbus companies or motorbus ticket brokers.
(Ord. No. 19004, § 15, 4-30-53; Code 1959, § 39-15)

ARTICLE XII. GARAGE SALES*

Sec. 16-291. Purpose.

The city council hereby recognizes that the City of San Antonio is made up in part of many diverse neighborhoods which are a noteworthy example of its divergent cultures and heritage. The unique qualities of the city's residential areas result in an attractive example of civic pride to homeowners, home renters and home buyers alike. The increasing number of garage sales throughout the city has detrimentally impacted many of its neighborhoods and has warranted this regulation.

As a matter of public policy the city council aims to preserve, enhance and perpetuate the economic value and the residential character of the city's neighborhoods in part by regulating garage sales. Such preservation promotes and protects the health, safety, comfort, economic investment, and general welfare of the people living in San Antonio.

More specifically, this garage sale ordinance is designed to achieve the following goals:

*Editor's note—Ord. No. 67681, § 1, adopted Aug. 4, 1988, amended Ch. 16 by the addition of Art. XII, §§ 16-291—16-308. Section 3 of said Ord. No. 67681 provided as follows: "Each violation of any provision of this ordinance, except section 16-303, shall be punishable by fine up to fifty dollars ($50.00) for the first two convictions and up to five hundred dollars ($500.00) for each conviction thereafter. Each day a violation is committed or permitted to continue shall constitute a separate offense and shall be punishable as such hereunder."

(1) To protect residential areas from the permanent encroachment of commercial uses;

(2) To protect the aesthetic qualities of neighborhoods; and

(3) To ensure the harmonious and orderly operation of garage sales in residential areas.

(Ord. No. 67681, § 1, 8-4-88)

Sec. 16-292. Definitions.

As used in this article the following words and terms shall have the meanings ascribed to them in this section:

Charitable/nonprofit organization shall mean any organization qualifying as nonprofit under Section 501(c) of the Federal Income Tax Code or the Texas Nonprofit Corporation Act.

Department shall mean the neighborhood services department.

Director shall mean the director of neighborhood services or designee.

Garage sale operator shall mean any person with a permit issued by the department to operate a garage sale.

Garage sales shall mean all general sales, open or advertised to the public, conducted from or on a residential premises (single-family, duplexes or apartments), in any residential zone for the purpose of disposing of tangible personal property. Said sale includes situations in which more than five (5) specific items of tangible personal property are to be sold.

Person shall mean and include individuals, partnerships, voluntary associations and corporations.

Personal property shall mean property which is owned, utilized, and maintained by an individual or members of his or her residence and acquired in the normal course of living in or maintaining a residence. Merchandise purchased for resale at a garage sale or obtained by consignment for sale at a garage sale is prohibited.

Residence shall mean any single-family structure or multi-family complex which may be owned, rented or leased.

(Ord. No. 67681, § 1, 8-4-88; Ord. No. 98184, § 4, 9-18-03; Ord. No. 2006-09-21-1122, § 1, 9-21-06)

Sec. 16-293. Signage.

Refer to chapter 28, Signs.

(Ord. No. 67681, § 1, 8-4-88; Ord. No. 2017-05-04-0297, § 2, 5-4-17)

Cross reference—Signs, Ch. 28.

Sec. 16-294. Zoning Ordinance applicability.

All permit requirements shall be subject to the provisions of this article as well as the Zoning Ordinance of the City of San Antonio.

(Ord. No. 67681, § 1, 8-4-88)

Cross reference—Zoning, § 35-3001 et seq.

Sec. 16-295. Additional Code applicability.

All sales of food items shall be subject to the provisions of Chapter 13 of the City Code of San Antonio.

(Ord. No. 67681, § 1, 8-4-88)

Sec. 16-296. Garage sale operator's permit.

It shall be a violation of this article for any person to operate or participate in the operation of a garage sale without first obtaining the proper permit from the director.

(Ord. No. 67681, § 1, 8-4-88; Ord. No. 98184, § 4, 9-18-03; Ord. No. 2006-09-21-1122, § 1, 9-21-06)

Sec. 16-297. Term of permit, replacement permit for inclement weather.

(a) All permits covered by this article shall continue in full force from the date specified on the permit. Each garage sale shall not exceed two (2) consecutive days.

(b) Should inclement weather unreasonably hinder the operation of the garage sale during the time authorized by the permit, the depart-

ment shall issue a replacement permit allowing the completion of the authorized time provided that:

(1) The garage sale operator requests the replacement permit within one week from the initial permit's date of issuance; and

(2) The replacement shall be valid for the completion of the initial permit's allotted time within thirty (30) days from the replacement permit's date of issuance; and

(3) Only one replacement permit shall be issued for any garage sale permit regardless of subsequent weather conditions or circumstances.

(4) No more than one replacement permit shall be issued per calendar year per address.

Replacement permits shall be issued at the development business and services center and the city's community link centers.
(Ord. No. 67681, § 1, 8-4-88; Ord. No. 100589, §§ 1, 2, 3-24-05; Ord. No. 2006-09-21-1122, § 1, 9-21-06)

Editor's note—Ord. No. 100589, § 1, adopted March 24, 2005, changed the title of § 16-297 from "Term of permit" to "Term of permit, replacement permit for inclement weather."

Sec. 16-298. Maximum number of garage sales.

The department shall issue one (1) permit for each garage sale. Each residence is allowed four (4) garage sales per calendar year per location not to exceed one (1) garage sale per quarter.
(Ord. No. 67681, § 1, 8-4-88; Ord. No. 98184, § 4, 9-18-03; Ord. No. 2006-09-21-1122, § 1, 9-21-06; Ord. No. 2006-10-12-1185, § 1, 10-12-06)

Sec. 16-299. Permit nontransferable.

No permit covered by this article shall be transferable, nor shall a permit holder allow his name to be used by any other party for the purposes of operating a garage sale.
(Ord. No. 67681, § 1, 8-4-88)

Sec. 16-300. Permits issued in violation of this article.

Any permit issued in violation of any provision of this article shall be absolutely void and no rights whatsoever shall accrue.
(Ord. No. 67681, § 1, 8-4-88)

Sec. 16-301. Application for a permit.

(a) An application for a garage sale operator's permit shall be made upon forms provided by the director.

(b) The application will contain all information necessary to fully advise the director of the date(s), location (street address), hours of operation of the garage sale and any other information that may be reasonably required by the director.

(c) Only the owner or lessee of the residential property upon which the garage sale is being conducted may obtain such permit.

(d) Before such permit shall be issued the applicant shall provide proof of address (driver's license, utility bills or other identification) and any other pertinent information as may be reasonably required by the director. Upon verification and compliance with provisions of this article, and payment of the proper fee, the applicant will be issued a permit for a garage sale by the department.

(e) By making application for such garage sale permit, accepting said permit and conducting such sale, the owner or lessee of the property to whom such permit is granted, authorizes any code enforcement officer of the City of San Antonio to enter upon the property for the purpose of determining that such sale is being conducted in accordance with the provisions of this article.
(Ord. No. 67681, § 1, 8-4-88; Ord. No. 98184, § 4, 9-18-03; Ord. No. 2006-09-21-1122, § 1, 9-21-06)

Sec. 16-302. Permit number and garage sale information.

(a) Each permit issued shall bear the street address of the residence where the sale will be located, the date(s) and hours when the garage sale will be held and any other information deemed necessary by the director.

(b) The permit must be clearly displayed and visible for a distance of six (6) feet from the curbline or nearest edge of paved portion of the street or right-of-way or be immediately available for inspection at the sale location.
(Ord. No. 67681, § 1, 8-4-88; Ord. No. 98184, § 4, 9-18-03; Ord. No. 100589, § 3, 3-24-05; Ord. No. 2006-09-21-1122, § 1, 9-21-06)

Sec. 16-303. Removal of signs advertising garage sales.

A garage sale operator shall remove any advertising sign upon expiration of the garage sale permit.
(Ord. No. 67681, § 1, 8-4-88; Ord. No. 98184, § 4, 9-18-03)

Sec. 16-304. Fee.

No permit shall be issued unless the applicant has first paid the director a garage sale operator's fee of sixteen dollars ($16.00) for each permit obtained in person and sixteen dollars and fifty cents ($16.50) for each permit issued by mail. However, payment of the fee shall not be required to obtain a permit for the fourth garage sale held by an operator at the same residence during a calendar year. The applications for such free permits shall only be made at the city's development business and services center and the city's community link centers. Operators must submit the receipts showing payment of the garage sale operator's fees for their three (3) previous qualifying garage sales in order to obtain the free permit.
(Ord. No. 67681, § 1, 8-488; Ord. No. 72266, § 1, 9-13-90; Ord. No. 80782, § 8, 9-14-94; Ord. No. 98184, § 4, 9-18-03; Ord. No. 2006-09-07-1007, § 1, 9-7-06; Ord. No. 2006-09-21-1122, § 1, 9-21-06; Ord. No. 2006-10-12-1185, § 1, 10-12-06)

Sec. 16-305. Hours of operations.

An applicant having a valid permit may operate a garage sale between the hours of 9:00 a.m. and 6:00 p.m.
(Ord. No. 67681, § 1, 8-4-88)

Sec. 16-306. Display of sale items.

Personal property shall be exhibited or displayed on the private property where the residence is located, not closer than five (5) feet to the front or side property lines and cannot be placed in the public right-of-way.
(Ord. No. 67681, § 1, 8-4-88)

Sec. 16-307. Sale of food items.

Food items shall not be sold under authority of a garage sale permit. A permit for the sale of food items may be obtained from the Metropolitan Health District and such sale must be conducted in compliance with Chapter 13 of the City Code.
(Ord. No. 67681, § 1, 8-4-88)

Sec. 16-308. Exception for churches, charitable and nonprofit organizations.

Any church, charitable or nonprofit organization may hold a maximum of twelve (12) garage sales per year, provided that:

(a) The church or organization does not hold more than one (1) garage sale per month.

(b) The sale must be conducted on the church or organization property.

(c) A member of the church or organization, authorized to represent it, must register as a church, charitable or nonprofit organization with the department. No fee will be charged for registration.

(d) None of the net earnings of a garage sale shall inure to a shareholder or other individual.

(e) The garage sale operator's fee set forth in section 16-304 shall not apply to the fourth garage sale held by such organizations. The applications for such free permits shall only be made at the city's development business and services center and the city's community link centers. Operators must submit the receipts showing payment of the garage sale operator's fees for their three (3) previous qualifying garage sales in order to obtain the free permit.

(Ord. No. 67681, § 1, 8-4-88; Ord. No. 98184, § 4, 9-18-03; Ord. No. 2006-09-21-1122, § 1, 9-21-06; Ord. No. 2006-10-12-1185, § 1, 10-12-06)

Sec. 16-309. Penalties for violation.

(a) It shall be a violation of this article for any person to operate, participate in or recklessly to allow to be operated upon property owned or controlled by that person a garage sale in a manner not in compliance with the provisions of this article. Each day a violation is committed or permitted to continue shall constitute a separate offense.

(b) Unless otherwise specified, each violation of any provision of this article shall be punishable by an administrative penalty of double the garage sale operator's fee.

(c) It shall be unlawful for any garage sale operator to fail to remove any advertising sign upon expiration of the garage sale permit. A violation of this subsection shall be punishable by a criminal fine not to exceed fifty dollars ($50.00) for each day past the deadline for removing signs. (Ord. No. 98184, § 4, 9-18-03; Ord. No. 2006-09-21-1122, § 1, 9-21-06)

Sec. 16-310. Administrative hearing.

(a) A person charged for a violation of this article punishable by an administrative penalty may, within ten (10) days of receipt of notice of violation request a hearing with a hearing officer designated by the city manager.

(b) Failure of the person charged with a violation of this article punishable by an administrative penalty to timely request a hearing or failure to appear at a scheduled hearing shall constitute a waiver of the right to a hearing or to challenge the validity or amount of the penalty imposed.

(c) The hearing officer shall set a time and place for the hearing as soon as practicable but within thirty (30) days of the receipt of the request for hearing. The hearing officers shall have authority to administer oaths and to issue orders compelling the attendance of witnesses and the production of documents, such orders to be enforced by a municipal court.

(d) The hearing shall be conducted in an informal process to determine whether there is a sufficient factual and legal basis to impose the administrative penalty. The rules of evidence shall not apply, provided that the decision of the hearing officer shall in all cases be based upon substantial and reliable evidence. All parties to the hearing shall have the right to present evidence.

(e) The hearing officer shall issue a written order stating his decision. The record of witness testimony may be preserved for appellant review by the use of an audio tape recording or a videotape recording.

(f) The administrative penalty imposed under this article is due and payable upon the expiration of the period to request a hearing or upon notice of the hearing officer's decision if a hearing is requested. Failure to pay the administrative penalty shall result in no further permits being issued for the address of the violation or the person charged with the violation.

(g) A person on whom an administrative penalty is imposed may appeal the decision to the municipal court by filing an appeal petition with the municipal court clerk not later than thirty (30) days after the order is filed. The appeal hearing shall be scheduled to occur within thirty (30) days of the filing of the appeal petition. The appeal hearing before a municipal court judge shall be an administrative proceeding for the purpose of confirming or overruling the order issued by the hearing officer based upon the

evidence presented to the hearing officer. The decision of the municipal court judge shall be final and shall not be appealable.

(h) Neither a notice of intent to appeal nor the filing of an appeal petition shall stay the enforcement and collection of the hearing officer's decision unless the service of the notice of appeal is preceded by the posting of a bond with the municipal court clerk in an amount set by a municipal court judge.
(Ord. No. 2006-09-21-1122, § 1, 9-21-06)

Secs. 16-311—16-320. Reserved.

ARTICLE XIII. NEWSPAPER VENDING MACHINES IN DOWNTOWN IMPROVEMENT DISTRICT, DOWNTOWN PARKS, PLAZAS, ETC.*

Sec. 16-321. Regulations governing publication vending boxes incorporated by reference.

(a) By Ordinance No. 69132 of March 23, 1989; Ordinance No. 69447 of May 11, 1989; Ordinance No. 72546 of November 1, 1990; and Ordinance No. 73646 of May 16, 1991, the City of San Antonio established regulations and a permitting system for publication vending boxes placed on public rights-of-way in the downtown area. Said provisions are incorporated herein by reference as if set out at length herein.

(b) The purpose of these provisions was to rid the portion of the city which had been renovated under the Tri-Party Downtown improvements of the clutter of the various vending boxes, establish uniform and harmonious design for such boxes, limit locations to places where pedestrian traffic would not be impeded, and afford all publications equal and full access to the sidewalk areas for vending their publications.

(c) The following changes are hereby made to the publication vending box regulations and the aforementioned ordinances are amended to the extent they are in conflict with the following:

(1) Expansion of the regulated area from Tri-Party streets only to include all of the area presently within the established boundaries of the Downtown Improvement District as indicated on the Attachment A to Ordinance No. 79102, the city downtown parks and plazas, the Main Library and convention facilities.

(2) Limiting publication vending outlets in the regulated area to the "Modular System" which has been one of two systems, and eliminating the "Hitching Post System."

(3) The total number of locations is revised from a previous authorization of seventy-one (71) to one hundred twenty-six (126); the total number of spaces is increased from five hundred seven (507) to six hundred ninety-eight (698); certain locations are rearranged to accommodate changed demands resulting partially from the *San Antonio Light* newspaper no longer being in circulation; and space numbers are revised at previously authorized locations in order to streamline the permitting process (see Attachment C to Ordinance No. 79102).

(d) Newspaper vending boxes. Annual fee for placement of a newspaper vending box in right-of-way in the downtown area: Fifty dollars ($50.00).
(Ord. No. 79102, 11-10-93; Ord. No. 2006-09-07-1010, § 8, 9-7-06)

Editor's note—The complete text of regulations regarding publication vending machines in the areas noted is on file and available for inspection in the offices of the city.

Secs. 16-322—16-400. Reserved.

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*__Editor's note—__Ord. No. 79102, adopted Nov. 10, 1993, made changes to the publication vending box regulations previously enacted by the city, and at the discretion of the editor, former Art. XIII, §§ 16-321—16-331, relative to publication vending machines in the area of Tri-Party Downtown Transportation improvements, which derived from Ord. No. 69132, adopted March 23, 1989, has been deleted and replaced with a single section adopting these regulations by reference.

Cross references—Streets and sidewalks, Ch. 29; tourist and trade center areas, Ch. 32.

ARTICLE XIV. EXTRACTION OPERATION REGULATIONS

Sec. 16-401. Purpose.

In order to promote the health, safety, and welfare of those who work or reside near extraction operations, and to protect air quality and the water resources of the city, the regulations in this article are applicable to extraction operations.
(Ord. No. 87907, § 5, 6-4-98)

Sec. 16-402. Definitions.

As used in this article, the following words and phrases shall have the definitions ascribed to them by this section.

Blasting shall mean the practice or occupation of extracting heavy masses of rock, or other materials imbedded in the ground, by means of explosives.

Extraction operation shall mean the use of a lot or tract of land primarily for extraction of materials (including limestone, rock, sand, gravel, or soil, but not oil or natural gas) for any purpose including such extraction performed in a special district as identified in section 35-3171 or 35-3230 of this Code.

Extraction site shall mean the location of materials or rock removal or extraction operations as delineated by a plat, site plan or a certificate of occupancy.

Regulatory authority shall mean the San Antonio Fire Department.
(Ord. No. 87907, § 5, 6-4-98)

Sec. 16-403. Scope.

This article shall apply, within the corporate limits and within applicable limits of the extraterritorial jurisdiction of the city, to any activity that is related to the extraction or removing of rock or materials from the ground or any related activity and, with respect to such activities, this section shall supplant chapter 21, article III of this Code. Further, it is acknowledged that V.T.C.A., Local Government Code § 217.042 authorizes home rule municipalities to define and prohibit any certain activities within five thousand (5,000) feet outside the city's corporate limits. Where the city council determines by separate ordinance that any extraction operation, within five thousand (5,000) feet outside the city's corporate limits, is in violation of this article and as a result of such violation(s) poses a risk to the health and safety of the citizens of the city, the authority vested in the city by V.T.C.A., Local Government Code § 217.042 shall be exercised.
(Ord. No. 87907, § 5, 6-4-98)

Sec. 16-404. Blasting.

All blasting activity that falls within the scope of this article shall comply with the following provisions:

(1) *Permit required.*

a. Prior to any blasting activity or preparation for blasting activity at an extraction site, an appropriate blasting or explosives permit must be acquired from the regulatory authority.

b. Each such blasting or explosives permit will authorize blasting for extraction of materials (i.e. rock, stone, etc.) only at the extraction site designated on the permit, and shall be reviewed annually by the regulatory authority.

c. The extraction site operator, or designated representative, may apply for an appropriate blasting or explosives permit in accordance with the following procedures:

1. The applicant shall submit a completed permit application form and fee as required by the regulations contained in the Uniform Fire Code (UFC), as adopted and amended by the city council to the regulatory authority.

2. The chief of the fire department shall have thirty (30) days in which to approve or deny the permit application.

3. Any party aggrieved by the denial of a permit or inaction by the chief of the fire department may appeal such decision in accordance with the provisions of the UFC, provided such appeal is made in the manner required by such regulations.

4. Upon receipt of the appeal notification, the appeal board shall take the actions required to review the appeal in accordance to the said UFC as amended and adopted by the city.

(2) *Hours of operation.* The hours during which excavation may take place by blasting or use of explosives shall be any time during the hours between 8:00 a.m. and 5:00 p.m. except for on Saturdays, Sundays or on legal holidays, unless required by applicable safety regulations.

(3) *Regulatory compliance.* All blasting operations located within an extraction operation shall comply with the applicable provisions of the Uniform Fire Code (UFC), as amended and adopted by the city council, and with this article, as well as all applicable local, state and federal regulations concerning industrial noise and dust levels as well as applicable drainage, water and air standards. (Specifically included in such regulations are all applicable requirements of chapter 34 of this Code, pertaining to pollution prevention and control, and as such regulations may, from time to time, be amended.)

(4) *Environmental protection.* For extraction sites and other land uses located within the ERZD, all required approvals of the Texas Natural Resource Conservation Commission (TNRCC), or its successor agencies, and the regulatory authority must be obtained prior to initiating blasting or the removal of materials from the ground by means of explosives within the site.

(5) *Storage and handling.* The storage area for explosives shall be clearly marked and identified on the premises and a security fence must be established at a distance of at least twenty-five (25) feet from the containers in which explosive materials are to be stored. The security fence shall be at least eight (8) feet in height and shall be made of chain link or other appropriate material. A lockable eight-foot gate shall be provided for access in and out of the security fence surrounding the storage area. The access gate for the explosives storage area must be kept locked at all times with an appropriate locking device or padlock. No keys to the locking device or padlock, preventing access to the explosives storage area, may be distributed by the quarry operator to any person other than those employees or subcontractors who have been trained and/or certified in the proper handling, storage, and use of explosive materials. As an alternative to the fencing requirement provided in this section, the quarry operator may use a solid steel storage container that has a lockable access point

and that is capable of containing an accidental discharge or explosion of the explosive agents stored within the container. The storage facility in which explosive materials are stored must be located at least three hundred (300) feet from any adjoining property line.

(6) *Monitoring of blasting.* Quarry operators shall be required to perform monitoring of blasting events to accumulate data with respect to the seismographic and airblast effects of the blasting activity as required by federal and state law. The quarry operator shall conduct independent monitoring of blasting events if directed, and to the extent and frequency reasonably required, by the regulatory agency. The information generated in the form of reports or other data from this monitoring must be made available to the chief's office of the city fire department within seventy-two (72) hours from receipt by the owner/operator of a written request to review such information. The chief officer of the city fire department shall honor and maintain the confidentiality of data submitted by quarry operators and identified as confidential data to the extent allowed by law.

(7) *Safety standards.* The quarry operator is responsible and required to comply with all applicable provisions of any federal or state law or applicable regulations promulgated by OSHA, MSHA, ATF, or any other executive agency of the federal or state government relating to the use, handling, storage, or detonation of explosives. In addition to compliance with federal and state law, the owner shall be required to comply with the provision of the city fire code by registering, on an annual basis, with the city and/or the Bexar County Fire Marshall with respect to blasting activities. This annual registration with the city fire department shall be in lieu of the requirement to obtain individual permits each time a blasting event is performed.

(8) *Inspections.*

a. The holder of a quarry blasting permit shall make quarry site available to the regulatory authority for inspection at all times during regular office hours.

b. All records, including monitoring records referenced in subsection (6), above, relating to blasting activities will be made available to the regulatory authority during normal office hours within seventy-two (72) hours after such request is made.

(Ord. No. 87907, § 5, 6-4-98)

Sec. 16-405. Control of adverse effects.

(a) *General requirements.* Subsection 16-404(c) notwithstanding, extraction activities and facilities, and reserve tracts, shall not be subject to the requirements of chapter 21, article III of this Code, provided such operations have secured and are in compliance with the necessary permits and the requirements of this section. Extraction activities and blasting shall be conducted according to this section.

(b) *Airblast (noise) limits.* For the purpose of this article, the air overpressure and related noise generated by the use of explosives in excavation activities shall be measured by the airblast created thereby. Airblast shall not exceed the maximum limits listed below at the location of any dwelling, public building, school, church, or community or institutional building outside the permit area, except as provided in subsection (f) of this section.

Lower frequency limit of measuring system, in Hz (plus-minus 3 dB)	*Maximum level, in dB*
0.1 Hz or lower—flat response*	134 peak
2 Hz or lower—flat response	133 peak
6 Hz or lower—flat response	129 peak
C-weighted—slow response*	105 peak dBC

*Only when approved by the regulatory authority.

(c) *Monitoring requirement.*

(1) The operator shall conduct monitoring to ensure compliance with the airblast standards. Airblast measurement of blasts must be performed to the extent required by subsection 16-404(f).

(2) The measuring systems shall have an upper-end flat-frequency response of at least two hundred (200) Hz.

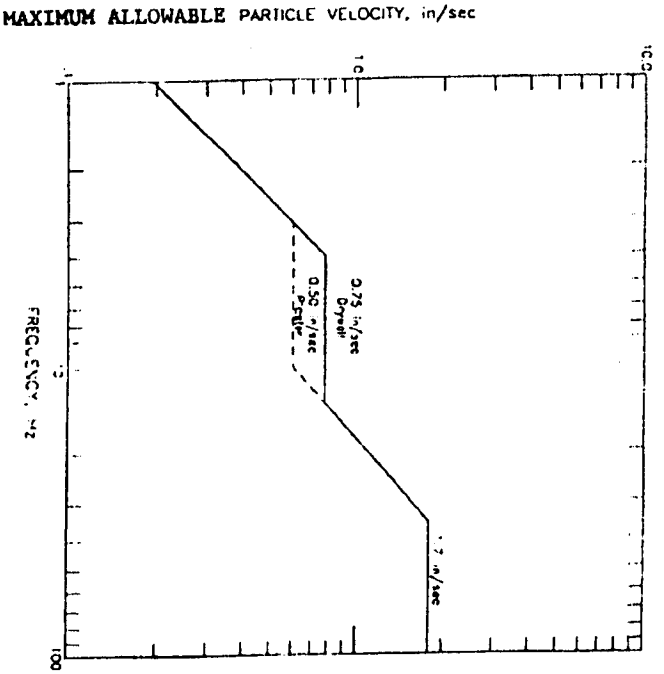
(d) *Flyrock.* Flyrock traveling in the air or along the ground shall not be cast from the blasting site beyond the area under the control of the operator.

(e) *Ground vibration.*

(1) *General.* In all blasting operations, except as otherwise authorized in subsection (f) below, the maximum ground vibration shall not exceed the values illustrated in Figure 1, below. The maximum ground vibration for protected structures listed in subsection (2)a. below shall be established in accordance with the maximum peak-particle-velocity limits as shown below.

(2) *Maximum peak particle velocity.*

a. The maximum ground vibration shall not exceed the following limits at the location of any dwelling, public building, school, church, or community or institutional building outside the area under the control of the operator:



*When plaster is used in construction of nearest structure.

b. A seismographic record including both particle velocity and vibration-frequency levels shall be maintained for each blast to the extent required by subsection 16-404(f).

(f) The maximum airblast and ground vibration standards of this section shall not apply at the following locations:

(1) At structures owned by the permittee and not leased to another person;

(2) At structures owned by the permittee and leased to another person, if a written waiver by the lessee has been obtained.

(Ord. No. 87907, § 5, 6-4-98)

Sec. 16-406. Burning of hazardous waste prohibited.

(a) No biomedical waste or hazardous waste as defined by the Texas Solid Waste Disposal Act may be burned, or otherwise used as a fuel in conjunction with any quarry activity.

(b) The subsection above notwithstanding, the use of tires as a fuel is allowed for quarry operations to the extent and in a manner that is permitted by state and federal law.

(Ord. No. 87907, § 5, 6-4-98)

Sec. 16-407. Beneficial concept reuse plan.

(a) All owners of properties that are used primarily for extraction activities shall be required to notify the planning department five (5) years prior to the time at which the extraction activities are projected to terminate or as soon as possible if the projected life of the extraction activity is less than five (5) years. Within the five (5) years following the notification, the owner of the property shall cooperate with the city in the city's effort to perform long range and short term planning related to transportation, traffic, land use, and infrastructure systems. Prior to any redevelopment of the property after termination of the extraction operations, the owner or developer intending to redevelop the property must file a beneficial conceptual reuse plan (BCRP) with the city. The BCRP must contain the following information:

(1) Perimeter property lines;

(2) Name of the plan and the development/operation;

(3) Scale of map;

(4) Proposed land uses by location, type, and acreage, and their relationship to existing land uses;

(5) Existing and proposed circulation system of collector, arterial, and local type B streets (clearly identified), and their relationship to any adjacent major thoroughfares, and any proposed alternative pedestrian circulation system;

(6) Contour lines at intervals no greater than ten (10) feet;

(7) Ownership from title and/or city or county roads for adjacent properties and, if known, proposed development of such land;

(8) Existing adjacent or perimeter streets (including right-of-way widths), intersections, and developments;

(9) One-hundred-year floodplain limits as identified from the most current flood insurance rate maps published by the Federal Emergency Management Agency for the city and/or the applicable county;

(10) Location map indicating the location and distance of the BCRP in relation to adjacent streets and at least two (2) major thoroughfares;

(11) Name and address of the owner or developer.

(b) Revisions to a BCRP may be made at any time by submission of a new BCRP to the director of planning. The director of planning shall notify the planning commission of any revision to a BCRP by reporting on the nature and extent of said revision to the commission within thirty (30) days of the receipt of a revised BCRP. The BCRP shall be considered an open record for the purpose of disclosure.

(Ord. No. 87907, § 5, 6-4-98)

Sec. 16-408. Public health, safety and welfare.

Extraction operations, which fall within the scope of this article which operations include all related uses shall abide by the public health, safety, and welfare safeguards of this article. Owners and/or operators of such activities shall:

(1) Comply with applicable water quality standards set forth in chapter 34 of this Code;

(2) Upon request of the regulatory authority, SAWS or public works environmental, provide to the city's and/or SAWS satisfaction, documentation evidencing the characterization, handling, and disposal of any industrial waste generated by the activity. Documentation which will satisfy the characterization inquiry includes process knowledge literature and/or waste analysis records;

(3) Upon request of the regulatory authority and/or SAWS, independent of the Federal Emergency Planning and Community Right to Know Act, (EPCRA), provide copies of material safety data sheets (MSDS) for material maintained, stored, or used on the site. The materials, subject of this section, are those materials whose properties for volatility, flammability, explosive potential, corrosiveness, radioactivity, or other toxic or hazardous property allow them to be listed in the North American Emergency Response Guidebook, current edition and as amended;

(4) Upon request of the regulatory authority and/or SAWS, provide a site plan, when the regulatory authority and/or SAWS determines a site plan is necessary to an independent environmental assessment or other inquiry pertinent to the public health, safety, or welfare.

(Ord. No. 87907, § 5, 6-4-98)

Sec. 16-409. Enforcement and inspection.

(a) This article shall be enforced by the city fire department.

(b) Extraction operations shall be available for inspection during regular office hours.

(Ord. No. 87907, § 5, 6-4-98)

Sec. 16-410. Penalties.

(a) *General.*

(1) Violation of any provision of this article is a class C misdemeanor and upon conviction may be punished by a fine not to exceed two thousand dollars ($2,000.00) per occurrence.

(2) Except for blasting violations which are covered by subsection (b) below, the city attorney's office may immediately seek additional remedies at law or in equity to prevent a violation of this section.

(b) *Blasting.* In addition to the criminal penalties noted above:

(1) The city attorney's office may immediately seek additional remedies at law or in equity to prevent blasting by any party who does not have a blasting permit.

(2) The city attorney's office may seek to revoke a blasting permit pursuant to the provisions of the UFC where the permit holder has demonstrated a pattern of intentional violations of this article. A pattern of violations is established upon three final convictions for substantive and not administrative violations within a twelve-month period in municipal court.

(Ord. No. 87907, § 5, 6-4-98)

Secs. 16-411—16-499. Reserved.

ARTICLE XV. BOOTING OPERATIONS*

DIVISION 1. GENERAL PROVISIONS

Sec. 16-500. Definitions.

In this chapter:

Abandoned motor vehicle has the same meaning as defined by the Texas Transportation Code and V.T.C.A., Occupations Code § 2303.154(a-1).

Boot has the same meaning as defined by the Texas Occupations Code.

Booting company has the same meaning as defined by the Texas Occupations Code and in-

*__Editor's note—__Prior to the reenactment of article XV by Ord. No. 2012-05-17-0356, Ord. No. 2011-12-01-0984, § 1, adopted December 1, 2011, repealed the former article XV, §§ 16-411—16-417 in its entirety, which pertained to irrigation systems and irrigators and derived from Ord. No. 2008-08-07-0653, § 1, adopted August 7, 2008.

For current provisions pertaining to similar subject matter, the user's attention is directed to chapter 10, building-related codes.

cludes any company that holds a contract to enforce parking violations/restriction by installing and removing a boot, or collects money related to the installation or removal of a boot.

Boot operator has the same meaning as defined by the Texas Occupations Code.

City means the City of San Antonio.

Department means the San Antonio Police Department, chief of police, or his designee.

Director or *department director* shall mean the department head assigned the responsibility for supervising the city's ground transportation services or the authorized or designated representative of such department head.

Parking facility has the same meaning as defined by the Texas Occupations Code.

Person means an individual, assumed name entity, partnership, joint-venture, association, corporation, or other legal entity.

Property entrance means any point of access by a vehicle to private property including adjoining properties and alley ways.

Property owner has the same meaning as defined by the Texas Occupations Code.

Unauthorized vehicle has the same meaning as defined by the Texas Occupations Code.

Vehicle has the same meaning as defined by the Texas Occupations Code.

Vehicle owner or operator has the same meaning as defined by the Texas Occupations Code.
(Ord. No. 2012-05-17-0356, § 1(Exh. A), 5-17-12)

Sec. 16-501. Scope.

(a) This article applies only to parking facilities offering parking space for pay that cause or allow the booting of unauthorized vehicles.

(b) This article does not apply to the booting of vehicles:

(1) In relation to delinquent municipal parking citations;

(2) As provided in V.T.C.A., Occupations Code § 2308.004:

a. In the exercise of a statutory or contractual lien right with regard to a vehicle, or

b. By a commercial office building owner or manager.

(Ord. No. 2012-05-17-0356, § 1(Exh. A), 5-17-12)

Sec. 16-502. Authority and duties of the department.

The department shall implement and enforce this article. In addition to the powers and duties elsewhere prescribed in this article, the department is authorized to:

(1) Adopt rules and regulations, consistent with the provisions of this article and all applicable state laws, with respect to matters incidental or appropriate to the powers and duties as may be necessary for the proper administration and enforcement of this article.

(2) Conduct random periodic investigations of booting companies throughout the city concerning their compliance with this article and state law.

(3) Inspect booting service equipment for compliance with safety standards.

(4) Conduct random inspections of booting service company records and facilities for compliance with state law and public safety.

(Ord. No. 2012-05-17-0356, § 1(Exh. A), 5-17-12)

Sec. 16-503. Requirements for posting signs.

(a) A minimum of one sign shall be placed on the right or left side of each driveway or curb cut through which a vehicle can enter the property, including an entry from an alley or other property abutting the property and at intervals along the entrance so that no entrance is farther than twenty-five (25) feet from a sign if:

(1) Curbs, access barriers, landscaping, or driveways do not establish definite vehicle entrances onto a parking facility from a public roadway other than an alley, and

(2) The width of an entrance exceeds thirty-five (35) feet.

(b) Each sign must conform to the minimum requirements as set forth in the Texas Occupations Code with no more than a six-inch sign height or more than a quarter-inch letter variations, with lettering at least one inch in height in a solid color that contrasts with the background that clearly states:

(1) How to pay for parking in the parking facility (i.e., 'pay attendant' or 'pay drop box,' etc.), and the hourly or other fee for such service; provided, however, for parking facilities utilizing different rates for various periods of parking, fee information may be contained on a separate sign adjacent to the pay station;

(2) A telephone number provided by the department for vehicle owners to make complaints;

(3) If unauthorized vehicles may be booted in or towed from the parking facility, the following: 'Receipts must be displayed on dashboard.'; and

(4) Notice to 'See receipt for expiration time.'

(c) In addition, signage must be:

(1) Located at all pay stations, and

(2) Unobstructed by vegetation or any other obstruction.

(d) In addition to the requirements listed in this section, signage located at pay stations shall clearly state the street address of the parking facility in lettering at least one inch in height in a solid color that contrasts with the background.

(e) When the fee to park in a parking facility during a special event is a different amount than the hourly, daily or monthly rate, conspicuous temporary signage at least two (2) feet high and two (2) feet wide shall be posted at all entrances to the parking facility and at all pay stations, clearly stating the amount of the special event parking fee in letters not less than six (6) inches high.

(f) Any signage indicating a price for parking on a property must also indicate the amount of time a person may park for that price, in lettering at least as large as the lettering of the price. A failure to indicate the time increment covered will be deemed to allow for parking at that rate for a 24-hour period.

(g) Upon review by the department, a parking facility installing boots under this chapter may be required to install additional signage in order to correct problems associated with conformity of signage due parking facility layout.

(h) A parking facility may not accept signage or installation of signs from a booting or towing company.

(i) A booting or towing company will not hold ANY interest in the required signage.
(Ord. No. 2012-05-17-0356, § 1(Exh. A), 5-17-12)

Sec. 16-504. Requirement for parking fee receipt.

(a) A booting company and/or boot operator commits an offense if he, either personally or through an employee or agent, immobilizes or causes the immobilization of a vehicle on a parking lot unless, at the time a vehicle is parked on the parking lot, the parking lot owner provides receipts in accordance with subsection (b) of this section to a vehicle owner or operator in exchange for payment of the parking fee.

(b) A parking lot owner shall provide two (2) receipts for each vehicle parked on its premises. One receipt is to be placed in the front window and the other may be retained by the vehicle owner. Receipts must be issued by either an electronic pay station or a uniformed parking lot attendant.

(c) All parking receipts must indicate:

(1) The amount paid to park the vehicle by the vehicle owner or operator;

(2) The date and time the parking fee was received from the vehicle owner or operator;

(3) The time when authorization for the vehicle to be parked on the parking lot expires; and

(4) The location of the parking lot on which the vehicle is parked.

(Ord. No. 2012-05-17-0356, § 1(Exh. A), 5-17-12)

Sec. 16-505. Requirements for installation and removal of a boot.

(a) No vehicle may be booted for expiration of time for parking unless the expired time has exceeded one hour.

(b) No vehicle may be booted if the violation is a first offense for that vehicle on that subject property. In the case of a first offense, notice should be placed conspicuously on the front windshield of the vehicle indicating the offense and that any future violations may result in booting of the vehicle. This section applies only if the vehicle owner has made some payment to park and time has expired. If no payment was made, and proper signage was in place, the vehicle may be booted on a first offense.

(c) Only one boot may be placed on a vehicle.

(d) When a vehicle is booted, the boot operator must affix a notice to the vehicle advising:

(1) That the vehicle has been booted and damage may occur if the vehicle is moved;

(2) The date and time the boot was installed;

(3) The name, address and telephone number of the boot operator and booting company;

(4) A 24-hour telephone number for removal of the boot;

(5) Any fees due and owing; and

(6) The right to a hearing regarding the imposition of booting fees.

(e) A permit holder commits an offense if he either personally or through an employee or agent:

(1) Immobilizes a vehicle by installing a boot on a tire not located on the driver's side of the vehicle;

(2) Immobilizes a vehicle on a parking lot for which the parking lot owner does not provide a receipt to the vehicle owner or operator;

(3) Fails to arrive at a parking lot within thirty (30) minutes after the time the licensee is notified to do so by the vehicle owner or operator or the owner or operator's representative; or

(4) Fails to remove a boot without charge to the vehicle owner or operator, or to the parking lot owner, if the removal is requested before the boot is completely installed.

(f) No fee for removal of a boot may be charged if the vehicle owner is able to produce a valid receipt showing proper payment was made, even if the receipt was not displayed at the time of booting.

(g) A booting company or boot operator may not employ any devices intended to do damage to a vehicle.

(Ord. No. 2012-05-17-0356, § 1(Exh. A), 5-17-12)

Sec. 16-506. Beneficial interests and rebates prohibited.

(a) A parking lot operating company or general manager may not have a direct or indirect monetary or ownership interest in a vehicle immobilization service that for compensation immobilizes unauthorized vehicles in a parking lot in which the parking lot operating company or general manager has an interest.

(b) A parking lot operating company or general manager of a parking lot in which vehicles are immobilized may not accept any rebate, compensation or other valuable consideration, directly or indirectly, from a vehicle immobilization operator in connection with the immobilization of vehicles.

(Ord. No. 2012-05-17-0356, § 1(Exh. A), 5-17-12)

Secs. 16-507—16-509. Reserved.

DIVISION 2. PERMITTING

Sec. 16-510. Company permit required.

(a) A person shall not knowingly operate, allow to be operated, or cause to be operated, a booting company as defined in section 16-500 without first obtaining an operating permit, nor shall a person boot a vehicle within the city unless

the person who installs a boot or who employs or contracts with said person has been granted such operating permit.

(b) Before an operating permit is granted, a written application for such on a form provided for that purpose must be submitted to and approved by the director in accordance with the provisions of this chapter.
(Ord. No. 2012-05-17-0356, § 1(Exh. A), 5-17-12)

Sec. 16-511. Application.

(a) To obtain an operating permit, a person shall submit an application to the department in the manner prescribed by this section. The applicant must be the person who will own and/or operates the proposed booting company or if an association, the chief officer. An applicant shall file with the department a written application containing the following:

(1) The form of business of the applicant; if the business is a corporation or association, a copy of the documents establishing the business and the name, address and citizenship of each person with a direct interest in the business; notice of any change in an applicant's form of business shall be provided to the department director, within ten (10) business days of the change;

(2) The name, street address, phone number, TDLR license number and verified signature of the applicant and of the applicant's proposed business; an applicant shall notify the department, in writing, of any change in the foregoing within ten (10) business days of the change;

(3) A representation of whether the applicant is a citizen of the United States of America by birth or naturalization, or, if alien, evidence of the applicant's legal residence in the United States and of the applicant's legal right to engage in employment therein;

(4) An identification and description of any revocation or suspension of an operating permit held by the applicant or the applicant's business which occurred prior to the date of filing the application.

(5) The number of boots to be used by the company and identification numbers of each boot;

(6) A description of the operations of the proposed booting company and the location of the fixed facilities to be used in the operation;

(7) A description of the distinctive uniform to be worn by the applicant's boot operators;

(8) Documentation from an insurance company authorized by this chapter evidencing a willingness to provide, prior to commencement of the proposed service, the insurances required by this chapter; and

(9) Written documentation authorizing the release to the city of any and all information which an organization or entity may have concerning the applicant and a release to said organization or entity from all liability which may result from the furnishing of such to the city.

(b) Within a reasonable time following receipt of an application, the department shall review the information submitted, investigate the applicant's fitness to conduct a booting company, and prepare a written recommendation to the director.

(c) The director shall approve an application meeting the requirements of the public convenience and necessity and meeting the requirements for obtaining an operating permit as set forth in this chapter.

(d) Permits shall be valid for one year from the date of issuance.
(Ord. No. 2012-05-17-0356, § 1(Exh. A), 5-17-12)

Sec. 16-512. Boot installer permit.

In accordance with the terms and provisions of this chapter, every person, before installing or removing a boot or accepting employment to become a boot operator within the city, shall apply

for and obtain a driver or boot operator permit. Boot operator permits must be renewed on a yearly basis.
(Ord. No. 2012-05-17-0356, § 1(Exh. A), 5-17-12)

Sec. 16-513. Investigation of applicant.

(a) Upon receipt of an application for a boot operator permit, the director shall conduct an investigation concerning the character, experience and qualifications of the applicant to determine whether or not the applicant is fit, willing and able to operate a boot within the city in a manner consistent with the general welfare of the public and in accordance with the requirements of this chapter, rules and regulations established by the director, and all other applicable rules, regulations and laws.

(b) The applicant, at the time of application and at his own expense, shall:

(1) Be eighteen (18) years of age or older;

(2) Be a citizen of the United States of America by birth or naturalization, or, if alien, submit evidence of legal residence in the United States and legal right to engage in employment therein;

(3) Execute an authorization in writing for the provision to the city of any and all information which an organization or entity may have concerning the applicant and a release to said organization or entity from all liability which may result from the furnishing of such to the city;

(4) Be approved for employment by a holder; an applicant shall provide the director with the name and business address of said prospective employer and shall, upon transfer of employment from one holder to another, notify said director of such in writing within two (2) business days of the transfer and further, pay the fifteen-dollar ($15.00) fee required by this chapter.

(c) The director shall approve an application meeting the requirements for obtaining a boot operator permit as set out in this division and shall disapprove any application not meeting said requirements.
(Ord. No. 2012-05-17-0356, § 1(Exh. A), 5-17-12)

Sec. 16-514. Denial of permits.

(a) If the director, however, based on the investigation required by this chapter, determines that good cause exists for denial of the application, then the department director shall notify the applicant, of his decision and of his basis therefore. Upon the applicant receiving notice of the director's decision, the applicant may appeal such decision in accordance with section 16-519 of this chapter.

(b) An application for a permit shall be denied where the applicant:

(1) Is under indictment for or has been convicted of the offense of criminal homicide including murder, capital murder, manslaughter, but excluding criminally negligent homicide;

(2) Has falsified or materially altered or omitted pertinent information in any governmental record, including an application for an operating permit; or

(3) Has not met the requirements for obtaining an operating permit as set forth in this chapter, rules, or regulations established by the department director.

(c) An application for a permit may also be denied where the applicant is under indictment or has been convicted of any of the following:

(1) Any offense involving fraud or theft;

(2) Any offense involving the unauthorized use of a motor vehicle;

(3) Any violation of state or federal laws regulating firearms;

(4) Any offense involving violence to any person except conduct classified as no greater than a Class C misdemeanor offense under the state law;

(5) Any offense involving prostitution or the promotion of prostitution;

(6) Any offense involving sexual assault, sexual abuse or indecency;

(7) Any offense involving the use, sale or possession of drugs;

(8) Any offense involving driving while intoxicated; or

(9) Any other job-related offense.

(d) Upon denial of an application for a permit, an applicant shall not be eligible for re-application for a period of twelve (12) months from the date of denial, or, in the case of an appeal, from the date the hearing examiner affirms the denial.
(Ord. No. 2012-05-17-0356, § 1(Exh. A), 5-17-12)

Sec. 16-515. Renewal of permits.

(a) To obtain renewal of a permit, a permit holder shall file with the department, at least forty-five (45) days prior to the expiration date of the permit agreement, a written, sworn application for permit renewal. The permit shall then be renewed unless the department determines, before the renewal date, that good cause exists for recommending to the director that the application for permit renewal be denied based on documentation:

(1) That the holder is in noncompliance and/or has demonstrated a history of noncompliance with the provisions of this chapter, the rules and regulations of the director, the permit agreement, the operating permit or laws and TDLR rules;

(2) That the holder, since the date of his issuance of the original permit:

a. Has been convicted of any felony;

b. Has had his felony probation, parole or mandatory supervision revoked;

c. Has falsified or materially altered or omitted pertinent information in any governmental record, including an application for permit renewal; or

d. Has not met the requirements for permit renewal as set forth in this chapter; or

(3) That good cause exists to deny renewal.

(b) If the director decides to deny the application for renewal of a permit, the director shall notify the holder of such decision, giving specific reasons for the basis of the denial. Upon the holder receiving notice of the director's decision, the holder may appeal such decision in accordance with section 16-519 of this chapter.

(c) If the permit expires at no fault of the holder before a ruling either on the approval or denial of the renewal, then the holder may continue to operate the booting company pending a final decision.
(Ord. No. 2012-05-17-0356, § 1(Exh. A), 5-17-12)

Sec. 16-516. Transfer of permits.

Each permit issued pursuant to the provisions of this chapter is separate and distinct and shall not be transferable from the permit holder to another person or entity.
(Ord. No. 2012-05-17-0356, § 1(Exh. A), 5-17-12)

Sec. 16-517. Reserved.

Sec. 16-518. Revocation and suspension of permit.

(a) The director may revoke a permit, or suspend such permit for a period not to exceed one hundred twenty (120) days, where the director has determined it is in the best interest of the public or where the holder:

(1) Since the date of issuance of the permit, has been convicted for violations of any city, state, or federal law where said violation relates directly to the duties and responsibilities of the holder;

(2) Since the date of issuance of the permit, has been indicted for criminal homicide, including murder or manslaughter but excluding criminal negligent homicide, or for any of the offenses listed in section 16-514 of this chapter;

(3) Has under his employment or contract, a boot operator whose permit has been suspended or revoked under the provisions of this chapter;

(4) Has failed to comply with a correction order issued to him by the director within the time specified in the order;

(5) Has failed to comply with this chapter or any department rules, orders, or directives;

(6) Has failed to pay a permit fee at the time it was due;

(7) Has failed to pay a monetary penalty at the time it was due; or

(8) Has allowed the operation of a boot without the city's approval.

(b) Upon revocation of an operating permit, a holder shall not be eligible for re-application for a period of forty-eight (48) months from the date of revocation.
(Ord. No. 2012-05-17-0356, § 1(Exh. A), 5-17-12)

Sec. 16-519. Right to appeal director's decisions; hearing officer established; procedure for appeals.

(a) An applicant or a permit holder may appeal to a hearing officer a decision by the director to revoke, suspend, or deny a permit. The director shall appoint a hearing officer for such appeals. Such hearing officer is hereby authorized to affirm, modify, or reverse the director's decisions.

(b) Upon receiving notice of the director's decision, said applicant or permit holder shall have ten (10) business days from the date of receipt thereof during which to appeal such decision to the hearing officer. The appeal shall be in writing, accompanied by an appeal fee of one hundred dollars ($100.00), and directed to the director. If no appeal is made to the hearing officer within ten (10) business days after receipt of the director's decision, the director's decision shall become final.

(c) Upon revocation, suspension, or denial of a permit, the permit holder shall immediately cease operation of services, whether or not an appeal is filed.

(d) Upon the scheduling of the hearing officer's review of the director's decision, the applicant or permit holder shall be given an opportunity to appear before said officer and present to him any information, including witnesses, which may be of assistance in arriving at a decision on the matter.

(e) Upon action being taken by the hearing officer, the director shall promptly and without delay act in accordance therewith and pursuant to the directions thereof.
(Ord. No. 2012-05-17-0356, § 1(Exh. A), 5-17-12)

Sec. 16-520. Display of permit.

Boot operators shall keep their permit on their person during all working hours and shall allow the director, a peace officer, or any other person authorized to enforce the provisions of this chapter to examine said permit upon request.
(Ord. No. 2012-05-17-0356, § 1(Exh. A), 5-17-12)

Sec. 16-521. Boot operator lists to be furnished and maintained.

Any booting company operating within the city limits shall provide to the director a list of all persons employed to operate boots on its behalf, as well as a list of all properties, persons, businesses or other entities with which it has contracted or otherwise agreed to provide booting services. Any additions or deletions to said list must be reported to the director within ten (10) days of such addition or deletion.
(Ord. No. 2012-05-17-0356, § 1(Exh. A), 5-17-12)

Sec. 16-522. Fees.

(a) The following fees are hereby established:

(1)	Boot operator permits	$ 15.00
(2)	Renewal of boot operator permits	15.00
(3)	Replacement of lost boot operator permits	15.00
(4)	Booting company permit . . .	100.00
(5)	Late permit payment	28.00

(b) All fees are due upon request of service and non-refundable.
(Ord. No. 2012-05-17-0356, § 1(Exh. A), 5-17-12)

Secs. 16-523—16-529. Reserved.

DIVISION 3. OPERATIONS

Sec. 16-530. Information and data to be kept and maintained two years; records to be made available for inspection.

Each booting company shall maintain at the business office information and data on the booting company business and operations. The following specific requirements are hereby prescribed:

(1) Accurate records, reports, receipts, booting operator manifests, and other operating information and data as may be required by the director shall be kept and maintained in a safe place for at least two (2) years after date, and all such documents shall be made available at a place readily accessible for examination and copying at all reasonable times by the department or a peace officer upon request;

(2) For good cause and upon request by the director, every holder shall submit to the department or peace officer, in accordance with the uniform system prescribed, such information and data (including, but not limited to, reports, receipts, pictures, and statistics for each month and/or year of operation) as determined necessary by the director to evaluate the holder's operations; submission of the information and data shall be no later than the fifth calendar day following the request by the department or immediately if requested by a peace officer.

(Ord. No. 2012-05-17-0356, § 1(Exh. A), 5-17-12)

Sec. 16-531. Business office.

A holder of a permit to operate a booting company shall maintain a business office in a location other than a dwelling and within the city limits.

(Ord. No. 2012-05-17-0356, § 1(Exh. A), 5-17-12)

Sec. 16-532. Amount of insurance.

(a) Except as otherwise provided by the holder's operating authority, the public liability and property damage insurance required by this chapter shall be the minimum amount. The state minimum amount as listed in V.T.C.A., Transportation Code § 2308 and shall be required as set forth in subsection (b).

(b) A booting company must obtain insurance for the insured facility or place of business that meets the following requirements:

(1) A general liability insurance policy on a broad form with:

a. A combined single limit for bodily injury and property damage for each occurrence of at least five hundred thousand dollars ($500,000.00); and

b. An aggregate limit for all occurrences for each policy year of at least five hundred thousand dollars ($500,000.00); and

(2) An automobile liability insurance policy covering the applicant and the applicant's employees for vehicles owned, hired, or otherwise used in the applicant's business, with a combined single limit for each occurrence of at least five hundred thousand dollars ($500,000.00).

(Ord. No. 2012-05-17-0356, § 1(Exh. A), 5-17-12)

Sec. 16-533. Fee schedule.

(a) No booting fees may be charged other than those fees listed in this subsection, including charges for dollies, special equipment, or mileage.

(b) The maximum, total fee a permit holder may charge for removing a boot from a vehicle is thirty-five dollars ($35.00). No additional fees may be charged.

(c) If a vehicle has been booted, it shall not be towed during the first twenty-four (24) hours.

(d) A booting company shall accept payment by cash, an electronic check, debit card, or credit card for any fee or charge associated with the removal of a boot. A booting company may not collect a fee for any charge associated with the removal of a boot from a person who offers to pay the charge with cash, an electronic check, debit card, or credit card form of payment that the booting company is not equipped to accept.

(e) In no way is subsection (a) above to be construed to mean that a booting company may not charge less than the fees stated in subsection (b). These fees are the maximum that can be charged for any booting of a vehicle in accordance with this article.
(Ord. No. 2012-05-17-0356, § 1(Exh. A), 5-17-12)

Sec. 16-534. Written contract required.

A booting company or boot operator may boot vehicles on a private lot only if the private property owner has entered into a written contract with the booting company authorizing it to perform that service and the contract is on file with the department.
(Ord. No. 2012-05-17-0356, § 1(Exh. A), 5-17-12)

Secs. 16-535—16-539. Reserved.

DIVISION 4. ENFORCEMENT

Sec. 16-540. Enforcement by police officers.

(a) Any officer observing a violation of this article, state law or Texas Department of Licensing and Regulation Rule may take necessary action to ensure the safety of the public and its interests.

(b) Any person employed by the city as a parking enforcement officer has authority to enforce the provisions of this chapter and to issue citations for violations of this chapter.
(Ord. No. 2012-05-17-0356, § 1(Exh. A), 5-17-12)

Sec. 16-541. Penalties.

(a) Each violation of this chapter shall be deemed a separate offense.

(b) An offense committed under this article, other than section 19-390 is punishable by a fine of not less than two hundred dollars ($200.00) nor more than five hundred dollars ($500.00). The minimum fine shall be three hundred dollars ($300.00) for the second conviction of the same offense within any two-year period. A third conviction within any two-year period will result in a fine of five hundred dollars ($500.00). At no time shall the minimum fine exceed the maximum fine established in this subsection.

(c) Prosecution for an offense under this section does not prevent the use of other enforcement remedies or procedures applicable to the person charged with the conduct or involved in the offense.

(d) The city shall have the right to seek other means of enforcement, to include but not limited to, seeking civil enforcement through means of injunctive relief in any court of competent jurisdiction.
(Ord. No. 2012-05-17-0356, § 1(Exh. A), 5-17-12)

Sec. 16-542. Service of notice.

(a) Each permit holder shall designate and maintain a representative to receive service of notice required under this chapter to be given a holder and to serve notice required under this chapter to be given a driver or boot operator employed by a holder.

(b) Notice required under this chapter to be given:

(1) A holder or the holder's designated representative must be personally served or served by certified mail, return receipt requested, directed to the address, last known to the director, of the holder to be notified, or to the holder's designated representative; or

(2) A driver or boot operator authorized by the city must be personally served or served by certified mail, return receipt requested, directed to the address, last known to the director, of the driver or boot operator to be notified, or to the designated representative for drivers or boot operators.

(c) Service executed in accordance with this section constitutes notice to the person to whom the notice is addressed. In the case of certified mail, notice occurs on the date indicated as the delivery date on the return receipt or on the fifth day after the date of postmark, whichever is sooner.
(Ord. No. 2012-05-17-0356, § 1(Exh. A), 5-17-12)

Secs. 16-542—16-899. Reserved.

ARTICLE XVI. CREDIT ACCESS BUSINESSES*

Sec. 16-900. Short title and purpose.

(a) This article may be known and cited as "Credit Access Businesses Regulation."

(b) The purpose of this article is to protect the welfare of the citizens of the city by monitoring credit access businesses in an effort to reduce abusive and predatory lending practices. To this end, this article establishes a registration program for credit access businesses, imposes restrictions on extensions of consumer credit made by credit access businesses, and imposes recordkeeping requirements on credit access businesses.
(Ord. No. 2012-09-20-0739, § 1, 9-20-12)

Sec. 16-900.1. Definitions.

As used in this article:

Certificate of registration means a certificate of registration issued by the director under this article to the owner or operator of a credit access business.

Consumer means an individual who is solicited to purchase or who purchases the services of a credit access business.

Consumer's language of preference is the language the consumer understands best.

Credit access business has the meaning given that term in V.T.C.A., Finance Code § 393.601.

Deferred presentment transaction has the meaning given that term in V.T.C.A., Finance Code § 393.601.

Director means the director of the department designated by the city manager, or the city manager's designee, to enforce and administer this article and includes any representatives, agents, or department employees designated by the director.

Extension of consumer credit has the meaning given that term in V.T.C.A., Finance Code § 393.001.

Motor vehicle title loan has the meaning given that term in V.T.C.A., Finance Code § 393.601.

Person means any individual, corporation, organization, partnership, association, financial institution, or any other legal entity.

Registrant means a person issued a certificate of registration for a credit access business under this article and includes all owners and operators of the credit access business identified in the registration application filed under this article.

State license means a license to operate a credit access business issued by the Texas Consumer Credit Commissioner under V.T.C.A., Finance Code ch. 393, subch. G.
(Ord. No. 2012-09-20-0739, § 1, 9-20-12)

Sec. 16-900.2. Violations; penalty.

(a) A person who violates a provision of this article, or who fails to perform an act required of the person by this article, commits an offense. A person commits a separate offense for each and every violation relating to an extension of consumer credit, and for each day during which a violation is committed, permitted, or continued.

(b) An offense under this article is punishable by a fine of not more than five hundred dollars ($500.00).

(c) A culpable mental state is not required for the commission of an offense under this article and need not be proved.

(d) The penalties provided for in subsection (b) are in addition to any other remedies that the city may have under city ordinances and state law.
(Ord. No. 2012-09-20-0739, § 1, 9-20-12)

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*__Editor's note—__Ord. No. 2012-09-20-0739, § 1, adopted September 20, 2012, and effective January 1, 2013, enacted provisions intended for use as article XVI, sections 16-901—16-913. Inasmuch as there are already provisions designated as sections 16-901—909 and 16-910—16-919, and at the discretion of the editor, said provisions have been redesignated as article XVI, sections 16-900—16-900.12.

Prior to the reenactment of article XVI by Ord. No. 2012-09-20-0739, Ord. No. 2011-12-01-0984, § 1, adopted December 1, 2011, repealed the former article XVI, § 16-900 in its entirety, which pertained to local registration of state registered homebuilders and derived from Ord. No. 99731, § 7, adopted September 16, 2004, and Ord. No. 2007-09-13-0973L, § 4, adopted September 13, 2007.

For current provisions pertaining to similar subject matter, the user's attention is directed to chapter 10, building-related codes.

Sec. 16-900.3. Defenses.

It is a defense to prosecution under this article that at the time of the alleged offense the person was not required to be licensed by the state as a credit access business under V.T.C.A., Finance Code ch. 393, subch. G.
(Ord. No. 2012-09-20-0739, § 1, 9-20-12)

Sec. 16-900.4. Registration required.

A person commits an offense if the person acts, operates, or conducts business as a credit access business without a valid certificate of registration. A certificate of registration is required for each physically separate credit access business.
(Ord. No. 2012-09-20-0739, § 1, 9-20-12)

Sec. 16-900.5. Registration application.

(a) To obtain a certificate of registration for a credit access business, a person must submit an application on a form provided for that purpose to the director. The application must contain the following:

(1) The name, street address, mailing address, facsimile number, and telephone number of the applicant.

(2) The business or trade name, street address, mailing address, facsimile number, and telephone number of the credit access business.

(3) The names, street addresses, mailing addresses, and telephone numbers of all owners of the credit access business and other persons with a financial interest in the credit access business, and the nature and extent of each person's interest in the credit access business.

(4) A copy of a current, valid state license held by the credit access business pursuant to V.T.C.A., Finance Code ch. 393, subch. G.

(5) A copy of a current, valid certificate of occupancy showing that the credit access business is in compliance with the San Antonio Unified Development Code.

(6) A non-refundable application fee of fifty dollars ($50.00).

(b) An applicant or registrant shall notify the director within forty-five (45) days after any material change in the information contained in the application for a certificate of registration, including, but not limited to, any change of address and any change in the status of the state license held by the applicant or registrant.
(Ord. No. 2012-09-20-0739, § 1, 9-20-12)

Sec. 16-900.6. Issuance and display of certificate of registration; presentment upon request.

(a) The director shall issue to the applicant a certificate of registration upon receiving a completed application under section 16-900.5.

(b) A certificate of registration issued under this section must be conspicuously displayed to the public in the credit access business. The certificate of registration must be presented upon request to the director or any peace officer for examination.
(Ord. No. 2012-09-20-0739, § 1, 9-20-12)

Sec. 16-900.7. Expiration and renewal of certificate of registration.

(a) A certificate of registration expires on the earlier of:

(1) One year after the date of issuance; or

(2) The date of revocation, suspension, surrender, expiration without renewal or other termination of the registrant's state license.

(b) A certificate of registration may be renewed by making application in accordance with section 16-900.5. A registrant shall apply for renewal at least thirty (30) days before the expiration of the registration.
(Ord. No. 2012-09-20-0739, § 1, 9-20-12)

Sec. 16-900.8. Non-transferability.

A certificate of registration for a credit access business is not transferable.
(Ord. No. 2012-09-20-0739, § 1, 9-20-12)

Sec. 16-900.9. Maintenance of records.

(a) A credit access business shall maintain a complete set of records of all extensions of consumer credit arranged or obtained by the credit access business, which must include the following information:

(1) The name and address of the consumer.

(2) The principal amount of cash actually advanced.

(3) The length of the extension of consumer credit, including the number of installments and renewals.

(4) The fees charged by the credit access business to arrange or obtain an extension of consumer credit, and

(5) The documentation used to establish a consumer's income under section 16-900.10.

(b) A credit access business shall maintain a copy of each written agreement between the credit access business and a consumer evidencing an extension of consumer credit (including, but not limited to, any refinancing or renewal granted to the consumer).

(c) A credit access business shall maintain copies of all quarterly reports filed with the Texas Consumer Credit Commissioner under V.T.C.A., Finance Code § 393.627.

(d) The records required to be maintained by a credit access business under this section must be retained for at least three (3) years and made available for inspection by the city upon request during the usual and customary business hours of the credit access business.
(Ord. No. 2012-09-20-0739, § 1, 9-20-12)

Sec. 16-900.10. Restriction on extensions of consumer credit.

(a) The cash advanced under an extension of consumer credit that a credit access business obtains for a consumer or assists a consumer in obtaining in the form of a deferred presentment transaction may not exceed twenty (20) percent of the consumer's gross monthly income.

(b) The cash advanced under an extension of consumer credit that a credit access business obtains for a consumer or assists a consumer in obtaining in the form of a motor vehicle title loan may not exceed the lesser of:

(1) Three (3) percent of the consumer's gross annual income; or

(2) Seventy (70) percent of the retail value of the motor vehicle.

(c) A credit access business shall use a paycheck or other documentation establishing income to determine a consumer's income.

(d) An extension of consumer credit that a credit access business obtains for a consumer or assists a consumer in obtaining and that provides for repayment in installments may not be payable in more than four (4) installments. Proceeds from each installment must be used to repay at least twenty-five (25) percent of the principal amount of the extension of consumer credit. An extension of consumer credit that provides for repayment in installments may not be refinanced or renewed.

(e) An extension of consumer credit that a credit access business obtains for a consumer or assists a consumer in obtaining and that provides for a single lump sum repayment may not be refinanced or renewed more than three (3) times. Proceeds from each refinancing or renewal must be used to repay at least twenty-five (25) percent of the principal amount of the original extension of consumer credit.

(f) For purposes of this section, an extension of consumer credit that is made to a consumer within seven (7) days after a previous extension of consumer credit has been paid by the consumer will constitute a refinancing or renewal.
(Ord. No. 2012-09-20-0739, § 1, 9-20-12)

Sec. 16-900.11. Requirement consumer understand the agreement.

(a) Every agreement between the credit access business and a consumer evidencing an extension of consumer credit (including, but not limited to, any refinancing or renewal granted to the consumer), must be written in the consumer's language of preference. Every credit access business

location must maintain on its premises, to be available for use by consumers, agreements in the English and Spanish languages.

(b) For every consumer who cannot read, every agreement between the credit access business and a consumer evidencing an extension of consumer credit (including, but not limited to, any refinancing or renewal granted to the consumer) must be read to the consumer in its entirety in the consumer's language of preference, prior to the consumer's signature.

(c) For every consumer who cannot read, every disclosure and notice required by law must be read to the consumer in its entirety in the consumer's language of preference, prior to the consumer's signature.
(Ord. No. 2012-09-20-0739, § 1, 9-20-12)

Sec. 16-900.12. Referral to consumer credit counseling.

A credit access business shall provide a form, to be prescribed by the director, to each consumer seeking assistance in obtaining an extension of consumer credit which references non-profit agencies that provide financial education and training programs and agencies with cash assistance programs. The form will also contain information regarding extensions of consumer credit, and must include the information required by subsections 16-900.9(a)(1)—(5) specific to the loan agreement with the consumer. If the director has prescribed a form in the consumer's language of preference, the form must be provided to the consumer in the consumer's language of preference.
(Ord. No. 2012-09-20-0739, § 1, 9-20-12)

ARTICLE XVII. REFUND ANTICIPATION LOAN REGULATION

Sec. 16-901. Short title and purpose.

(a) This article may be known and be cited as "refund anticipation loan regulation." This entire chapter shall be deemed an exercise of the police power of the city for the protection of the public economic and social welfare, health, peace and morals, and for the protection of consumers who are offered and/or enter into refund anticipation loans, refund anticipation checks, assisted direct deposits, and other similar transactions facilitated in the city, and shall be liberally construed to effectuate its purpose.

(b) Nothing in this chapter shall be construed to regulate the practices of lending institutions governed by federal and/or state banking laws.

(c) Nothing in this chapter shall be construed to relieve a facilitator as defined herein of complying with any legal or regulatory obligation(s) that may apply to it under federal, state, or other local law, including but not limited to the federal Truth-in-Lending Act.
(Ord. No. 2006-03-23-0370, § 1(Exh. A), 3-23-06)

Sec. 16-902. Definitions.

As used in this chapter:

Assisted direct deposit or *ADD* means a mechanism or agreement through which a taxpayer's refund is deposited in a bank account other than the taxpayer's, and then the remaining portion of the refund, minus fees to the facilitator and the lender, is deposited in the taxpayer's own account.

Bank product means a RAL, RAC, ADD, or other similar mechanism, agreement, or transaction that allows a taxpayer to receive an income tax refund or a loan against an anticipated refund from an entity other than the IRS, and/or allows the facilitator to collect fees for its non-bank product services or products, bank product fees, and other similar fees from the proceeds of the taxpayer's income tax refund.

Bank product fee means all charges, fees, or other consideration charged or imposed by the facilitator and the lender for the making of or in connection with a bank product, and includes:

(1) Any charge, fee, or other consideration for a deposit account used for receipt of the taxpayer's tax refund;

(2) Processing or administrative fees for bank products that are not charged to taxpayers who receive their refunds directly from the IRS via mail or direct deposit to the taxpayer's bank account; and

(3) In the case of a RAL, the charges, fees or other consideration charged or imposed by the lender for making the loan.

This term does not include any charge, fee, or other consideration usually charged or imposed by the facilitator in the ordinary course of business, such as fees for tax return preparation and fees for electronic filing of tax returns, if the same fees in the same amount are charged to the facilitator's customers who do not use bank products.

Disclosure means complete and accurate information, presented in a clear, concise, and understandable manner in all written and oral notices, documents, and explanations required under this chapter.

Facilitator means a person, partnership, corporation or other business entity that, for compensation or other financial benefit from a taxpayer or any other person, assists the taxpayer in applying for or obtaining a bank product. The term does not include a lender that provides a bank product, a servicer for the lender that operates under the lender's name or any person who does not have direct contact with a borrower in connection with applying for or obtaining a bank product.

RAL annual percentage rate or *APR* is the annualized interest rate for the RAL as determined in accordance with the federal Truth in Lending Act.

Refund anticipation check or *RAC* means a check or other payment mechanism:

(1) Representing proceeds of the taxpayer's tax refund;

(2) Which was issued by a depository institution or other person that received a direct deposit of the taxpayer's tax refund; and

(3) For which the taxpayer has paid a fee or other consideration.

Refund anticipation loan or *RAL* means any loan a taxpayer may receive against his or her anticipated income tax refund.

Taxpayer means any natural person who, singly or jointly with another natural person, is solicited for, receives information about, applies for, and/or receives the proceeds of a bank product.

(Ord. No. 2006-03-23-0370, § 1(Exh. A), 3-23-06)

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Sec. 16-903. Prohibited practices.

A facilitator shall not:

(1) Offer or facilitate a bank product except as expressly provided in this chapter;

(2) Require a client to use a bank product in order to receive non-bank product services or products from the facilitator;

(3) Obtain the signature of a taxpayer on a disclosure required under this chapter that contains blank spaces to be filled in after the taxpayer has signed the disclosure;

(4) For any bank product application that has been approved under the facilitator's usual and customary approval procedures, fail to arrange for a bank product promptly after the taxpayer applies for the bank product and approval is granted; or

(5) Facilitate a bank product for which the bank product fee, is greater than the fee stated in the disclosure, or facilitate a RAL for which the APR is greater than the interest rate stated in the disclosure, provided, however, that an increase in an APR on a RAL above the interest stated in the disclosure brought about by a lender's decision to fund a RAL at an amount less than the taxpayer's anticipated refund shall not constitute a violation of this subsection.

(Ord. No. 2006-03-23-0370, § 1(Exh. A), 3-23-06)

Sec. 16-904. Required disclosures and practices.

(a) As set forth more specifically in subsections (b)—(d), if a facilitator offers to make or facilitate a bank product for the taxpayer, the facilitator must explain that the taxpayer has a choice of methods for receiving a tax refund, must first disclose the availability and timing of receiving a refund directly from the IRS without using a bank product before describing any available bank products, and must provide clear, complete, and accurate information about each available option, including receiving a refund directly from the IRS. All such disclosures shall be provided to the taxpayer in written forms which have been preapproved by the director of the department of community initiatives and which, at a minimum shall be in 14-point type and must be offered to the taxpayer in either English or Spanish language written versions, as requested by the taxpayer. The facilitator must simultaneously provide a point-by-point oral explanation of the disclosures in English or Spanish as appropriate, or in a language understood by the taxpayer in the event that the taxpayer does not understand the disclosures in English or Spanish (which may be provided using a translator provided by the taxpayer).

(b) Before the facilitator allows the taxpayer to enter into a bank product arrangement, the facilitator must:

(1) Complete the disclosures required under subsection (a) accurately with all relevant information for each taxpayer,

(2) Provide the required point-by-point oral explanation in English, Spanish, or other language understood by the taxpayer (which may be provided using a translator provided by the taxpayer); and

(3) Complete all blanks in the disclosure form and, only after all blanks are filled, have the form signed and dated by the taxpayer and the facilitator.

The facilitator must provide the taxpayer with a copy of the signed disclosures, and must keep a copy of the signed disclosures on file with the taxpayer's records (e.g., tax return or other records of service) in accordance with the facilitator's usual retention procedures.

(c) At the conclusion of providing services or products, a facilitator must provide an itemized statement of the charges for services, at least separately stating the fees and charges for any of the following charged to the taxpayer:

(1) Preparing the return;

(2) Filing the return;

(3) Providing other services (which services shall be separately itemized);

(4) Providing or facilitating a bank product, which shall be broken down by provider

fees and, where applicable, lender fees. The itemized statement shall also clearly indicate that these are charges for services rendered and do not include interest owed or to be owed on the bank product; and

(5) The itemized statement shall also clearly indicate the APR for any bank product used by the taxpayer.

(d) The disclosures and practices required in this section apply to all facilitators that offer to provide or facilitate bank products in the city, regardless of:

(1) The medium or means by which they communicate that offer;

(2) The medium or means by which they provide or facilitate the bank products; and

(3) Whether the facilitator offers to provide or facilitate bank products from its own office or premises, or at the taxpayer's office, premises, or residence.

(Ord. No. 2006-03-23-0370, § 1(Exh. A), 3-23-06)

Sec. 16-905. Required posting.

(a) Every facilitator shall post, in a prominent location on its premises, a written schedule showing separately its current fees for each service or product offered such as preparing the tax return, bank products offered or facilitated by the facilitator, the electronic filing of the taxpayer's tax return, and any other service or product.

(b) Every facilitator shall post, in a prominent location on its premises, the written disclosures required under subsection 16-904, all of which shall contain the following or a substantially similar legend, centered at the top of the page, in bold, capitalized, one-inch high letters, stating:

NOTICE CONCERNING REFUND ANTICIPATION LOANS, REFUND ANTICIPATION CHECKS, AND OTHER BANK PRODUCTS.

(c) The postings required by this section shall be made in no less than 28-point type and, in the case of a paper disclosure, on a document measuring no less than sixteen (16) inches by twenty (20) inches. The postings required in this section shall be displayed in a prominent location at each office, premise, or location where the facilitator is offering or facilitating bank products.

(d) No facilitator may offer or facilitate a bank product unless the notices required by this section are displayed, and the interest rate and fees (as applicable) actually charged for the bank product are the same as or less than the interest rate or fees displayed in the notices.

(Ord. No. 2006-03-23-0370, § 1(Exh. A), 3-23-06)

Sec. 16-906. Administration and enforcement.

The director of the department of community initiatives ("director") shall enforce and administer this chapter, and is hereby authorized to adopt procedures for its implementation. The director and the director's designee are authorized to enter the premises of any facilitator and inspect all disclosures, postings, and other relevant documents for the purpose of determining compliance with this chapter. The director and his designees shall limit their inspections to examining only those documents necessary for the enforcement of the provisions of this article. The director and the director's designees are authorized to issue citations for violations of this chapter to any facilitator, the office manager of any facilitator's business office where bank products are facilitated or any other person engaged in actions in violation of this article.

(Ord. No. 2006-03-23-0370, § 1(Exh. A), 3-23-06)

Sec. 16-907. Remedies.

Any person violating the provisions of this section shall be guilty of a class C misdemeanor and shall be subject to a maximum monetary penalty of five hundred dollars ($500.00) for each infraction. Each day of noncompliance and each specific failure to provide the required oral and written disclosures shall be a separate violation and the monetary penalties shall accumulate.

(Ord. No. 2006-03-23-0370, § 1(Exh. A), 3-23-06)

Secs. 16-908, 16-909. Reserved.

ARTICLE XVIII. DONATION CONTAINERS*

Sec. 16-910. Definitions.

Attended donation container means any donation container at which an employee or representative of the sponsoring company or organization is present to accept donations. A donation container shall have a person present to accept donations at least twenty (20) hours a week to be considered attended. Donation containers placed inside of permitted buildings shall be considered attended.

Donation container means any box, building, trailer or other receptacle that is intended for use as a collection point for donated clothing or other household materials.

Person includes an individual, sole proprietorship, corporation, association, nonprofit corporation, partnership, joint venture, limited liability company, estate, trust, public or private organization that is not a state agency, business trust, public corporation, or any other legal or commercial entity.

Recyclable material means material that has been recovered or diverted from the solid waste stream for purposes of recycling, or reclamation, a substantial portion of which is consistently used in the manufacture of products which may otherwise be produced using raw or virgin materials. Examples of recyclable materials under this article include, but are not limited to:

Paper: Most types of paper, such as ad circulars, catalogs, carbonless paper, dry goods packaging with liners removed (example: cereal, pasta, rice, beer/soda cartons), envelopes, file folders, flattened cardboard, junk mail, magazines, newspapers, office paper, paperback books, paper bags, paper towel/toilet paper cores, phone books, non-metallic gift wrap.

Plastics: Labeled #1 through #7 with the recycling symbol* on the bottom. Examples include: beverage bottle, shampoo and lotion bottles, meat trays, condiment bottles, prescription and medicine bottles.

Glass bottles and jars, all colors: Examples: beverage bottles, food and condiment bottles and jars (jelly, mustard, mayonnaise).

Metal cans: Aluminum, steel and tin beverage and food cans, aerosol cans, baking tins.

Recycling means a process by which recyclable materials that have served their intended use or are scrapped, discarded, used, surplus, or obsolete are collected, separated, or processed and returned to use in the form of raw materials in the production of new products.

Recycling container means any box, building, trailer or other receptacle that is intended for use as a collection point for the collection of recyclable material that will be subject to recycling by any person.

Unattended donation container means any donation container at times when no employee or representative of the sponsoring company or organization is present to accept donations. Donation containers placed inside of permitted buildings or businesses shall not be considered unattended.

*__Note—__The effective date for permitting to begin is January 1, 2010.

Figure 16-910-1. Example of Unattended Donation Containers:

(Ord. No. 2009-10-29-0860, § 1, 10-29-09)

Sec. 16-911. Donation containers prohibited.

(a) It shall be unlawful for any person to place or maintain, or allow to be placed or maintained, any donation container within the city, without having first secured a permit and container decal in compliance with the provisions of this article.

(b) Any donation container located within the jurisdiction of the city that does not have a current, valid permit shall be subject to impoundment by the city. Any donation container impounded by the city shall be released to the owner upon securing a permit, and the payment of an impound fee of two hundred dollars ($200.00), and a daily storage fee of twenty dollars ($20.00) for each day in city possession after impound.

(c) Notwithstanding any other provision of this Code, no provisions of this article shall apply to recycling containers. No provisions of this article shall apply to any donation container located on the property of any public or private school, church or community center.
(Ord. No. 2009-10-29-0860, § 1, 10-29-09)

Sec. 16-912. Authorizing or allowing donation containers on real property prohibited.

It shall be unlawful for any person that owns, leases, or is entitled to possession of real property within the city, to authorize or allow any donation container to be placed on or remain on such real property without a valid permit decal in compliance with the provisions of this article.
(Ord. No. 2009-10-29-0860, § 1, 10-29-09)

Sec. 16-913. Permit requirements.

A permit and container decal to allow a donation container as an accessory use shall be issued by the department of housing and neighborhood services provided the following conditions are satisfied:

(1) The person receiving a permit to place or maintain a donation container is registered to operate in the state as a non-profit corporation.

(2) The property owner provides written authorization allowing the donation container on the property.

(3) The permit holder shall be responsible to collect the contents of the donation container to prevent overflow.

(4) The visual and structural integrity of the donation container must be maintained continuously.

(5) The placement of the donation container shall not impede traffic nor visually impair any motor vehicle operation within a parking lot, driveway or street.

(6) The donation container shall not be located in a required building setback, buffer yard, access easement, drainage easement, floodplain, driveway, utility easement or fire lane.

(7) A minimum of one (1) stacking or parking space per donation container shall be required on-site.

(8) Occupation of any parking spaces by the donation container shall not reduce any required parking spaces for the principal use on a lot.

(9) The permit holder placing or maintaining the donation container shall display current contact information including street address and telephone number on the donation container. This information must be readable and clearly visible to the public.

(10) The current permit decal for the specific donation container must be affixed and displayed at all times on the outside of the container.

(11) All signage shall comply with chapter 28, signs and billboards. For the purposes of on-premises signs, signage visible on the donation container shall be considered an attached sign.

(12) The donation container may only be used as a collection container for clothing and household materials. All donation materials must fit into and be placed inside the donation container. The collection or storage of any materials outside the container is prohibited.

(13) The donation container shall be located at least 200 feet away from any residential dwelling.

(14) The number of donation containers allowed for each property by a permit holder shall not exceed two (2).

(15) The maximum number of donation containers allowed for each property shall not exceed four (4).

(16) The size of each donation container shall not exceed four (4) cubic yards.

(17) Each donation container must have an attached sign indicating that all donations must fit into and be placed inside the container.

(18) The property is not located in a single-family or multi-family zoning district unless the primary use on the property is not residential, such as a church, public or private school or community center.

(Ord. No. 2009-10-29-0860, § 1, 10-29-09)

Sec. 16-914. Application for permit.

(a) Applicants for permits under this article shall file a written sworn application with the department of housing and neighborhood services. The application shall include the written authorization from the property owner allowing the donation container on the property.

(b) A separate permit and application shall be required for each container regardless of the ownership thereof. Permits issued under the provisions of this article shall be valid only at the address stated in the permit.

(c) The annual permit fee for a donation container shall be two hundred forty dollars ($240.00). All permits shall expire on December 31st of each calendar year regardless of the date of issuance, provided however that the fee for each permit shall be prorated at twenty dollars ($20.00) for each month or portion of a month for which the permit is issued.

(d) Any person denied a permit shall have the right to appeal such action. In such case the procedure shall be the same as in revocation.
(Ord. No. 2009-10-29-0860, § 1, 10-29-09; Ord. No. 2025-09-18-0629, § 2(Att. C), 9-18-25)

Sec. 16-915. Transfer of permit prohibited.

No permit issued under the provisions of this article is transferrable and the authority a permit confers shall be conferred only on the permit holder named therein.
(Ord. No. 2009-10-29-0860, § 1, 10-29-09)

Sec. 16-916. Revocation of permit.

(a) Grounds. Any permit issued hereunder shall be revoked by the department of housing and neighborhood services if the permit holder is in violation of any of the provisions of this article or has knowingly made a false material statement in the application or otherwise becomes disqualified for the issuance of a permit under the terms of this article.

(b) Notice. Notice of the revocation shall be given to the permit holder in writing, with the reasons for the revocation specified in the notice, served either by personal service of such notice upon the permit holder or by certified United States mail to their last known address. The revocation shall become effective the day following personal service or if mailed, three (3) days from the date of mailing.

(c) Appeal; hearing. The permit holder shall have ten (10) days from the date of such revocation in which to file notice with the director of housing and neighborhood services of their appeal to the director of housing and neighborhood services from the order revoking such permit. The director of housing and neighborhood services shall provide for a hearing on the appeal not later than fifteen (15) days after the notice of appeal is filed. After holding a hearing on such revocation, the director of housing and neighborhood services shall either sustain the action of the department of housing and neighborhood services or issue an order reinstating the permit. The decision of the director of housing and neighborhood services may be appealed by the permit holder to the board of adjustment in accordance with procedures for appeal to that board.

(d) In the event of the filing of an appeal from a revocation issued under the provisions of this article, then until such appeal has been finalized such revocation order shall be stayed.

(e) In the event the permit is finally revoked as provided herein, the person, firm or organization placing or maintaining the donation container shall remove such donation container from the property not later than ten (10) days after such final decision.

(f) In the event the permit of any person issued under the provisions of this article shall be revoked by the department of housing and neighborhood services, as provided herein, no second or additional permit shall be issued to such person within one (1) year of the date such permit was revoked.
(Ord. No. 2009-10-29-0860, § 1, 10-29-09)

Sec. 16-917. Maintenance and upkeep.

The permit holder and the property owner shall be held jointly and severally liable and responsible for the maintenance, upkeep, and servicing of the container and clean up and removal of any donations left on the property outside of the container. The city shall have the authority to abate any property in violation of this article that is deemed a public nuisance under the procedures contained in sections 14-61 to 14-67.
(Ord. No. 2009-10-29-0860, § 1, 10-29-09)

Sec. 16-918. Offense/penalty.

(a) A violation of this section is a class C misdemeanor and upon conviction a person shall be fined an amount not to exceed five hundred dollars ($500.00).

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(b) No culpable mental state shall be required to support a conviction for a violation of this section.

(c) Nothing in this section shall limit the remedies available to the city in seeking to enforce the provisions of this article. Each day's violation thereof shall constitute a separate offense.

(d) Where it is deemed necessary by the city manager and the director, the city attorney's office is hereby empowered to secure injunctive relief to enforce the provisions of this article. This shall be in addition to, and not in lieu of, the criminal penalties provided for in this article.
(Ord. No. 2009-10-29-0860, § 1, 10-29-09)

Sec. 16-919. Reserved.

ARTICLE XIX. TIRE STORAGE, TRANSPORTATION, AND DISPOSAL*

DIVISION 1. GENERALLY

Sec. 16-920. Purpose of article.

The purpose of this article is to establish regulations and procedures for the safe transportation, appropriate storage, and proper disposal of used or scrap tire.
(Ord. No. 2009-10-29-0861, § 1, 10-29-09)

Sec. 16-921. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

City means the City of San Antonio.

Department means the housing and neighborhood services department.

Director means the director of housing and neighborhood services or designee.

Driver means a person designated to act as a driver of a permittee's truck(s) pursuant to the permit.

Elements of nature means rainfall, snow, sleet, hail or other natural precipitation.

Manifest means a record of all used or scrap tires transported and/or received at a scrap tire facility.

Operator means the person in care, custody and control of a scrap tire facility.

Permit means a valid tire transporters permit issued by the city pursuant to this article.

Permittee means a person who holds a valid tire transporters permit issued by the city pursuant to this article.

Public highway means the entire width between the boundary lines of every way publicly maintained when any part thereof is open to the use of the public for purposes of vehicular travel.

Scrap tire means a whole tire or any portion of a tire that can no longer be used for its original intended purpose or is being held, transported, or processed for disposal or recycling.

Scrap tire facility means any business or establishment where one hundred (100) or more scrap tires per year are collected, repaired, processed, recycled, scrapped, sold, bought or stored.

Storage means the collection or accumulation of scrap tires on the ground or in roll-off containers.

Tire means any tire, whether new or used, whether serviceable or unserviceable, made wholly or partially of rubber which was manufactured for use on any vehicle propelled by a motor (including vehicles pushed or pulled by a vehicle propelled by a motor), regardless of whether such vehicle is intended for use on a public highway, provided that such tire is not mounted upon a wheel or rim and in service upon or carried as a component spare part of a vehicle.

Tire disposer means any person who, in compliance with all applicable state, federal and local

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*__Editor's note—__**Ord. No. 2009-10-29-0861, § 1, adopted October 29, 2009, enacted provisions intended for use as article XVIII, §§ 16-920—16-937. Inasmuch as there are already provisions so designated as article XVIII, and at the discretion of the editor, said provisions have been redesignated as article XIX, §§ 16-920—16-937.

Note—This article shall be effective November 8, 2009.

laws, rules and regulations, disposes of or converts tires to another purpose including, without limitation, persons who:

(1) Landfill, incinerate or otherwise dispose of tires as waste or as fuel;

(2) By shredding, grinding, chemical treatment or other means reduce tires into basic components for oil, steel, carbon black, rubber, road paving or other marketable salvage materials; or

(3) Convert tires into other useful items such as doormats and sandal soles.

Tire marking means the marking of a scrap tire with the facility's permit number.

Tire piece means a particle of scrap tire or scrap tire piece that has been split, quartered or shredded to a usable size such as two-inch minus, or other size required by an industry user or recycler.

Tire transporter means a person or entity permitted by the city to pick up and deliver used and/or scrap tires or shredded tire pieces from and to dealers of tires or permitted scrap tire facilities or state-registered tire recycling facilities.

Truck means a vehicle designated to be operated by a permittee's drivers for the transport of scrap tires pursuant to the permit.

Used tire means a tire, including a recapped or retreaded tire, suitable for continued use for its original intended purpose.
(Ord. No. 2009-10-29-0861, § 1, 10-29-09)

Sec. 16-922. Approved storage methods.

All used tires, scrap tires and tire pieces stored within the city must be kept in a manner which prevents their exposure to and collection of the elements of nature. Tires must not be allowed to hold water, dirt, rubbish or other foreign materials. Monitoring and control measures are to be implemented as necessary to eliminate the presence of mosquito breeding and rodent harborage.

(1) Used tires, scrap tires and tire pieces shall be stored separately.

(2) Used tires, scrap tires and tire pieces stored outside shall be:

a. Screened from public view;

b. Properly stored:

1. On racks or neatly stacked not in excess of ten (10) feet in height; or

2. In a roll-off container front-load dumpster, or other metal storage container, including a trailer not exceeding forty-five (45) feet × eight (8) feet by thirteen (13) feet if covered and if the stacked tires do not exceed height of thirteen (13) feet and the container and contents are shielded from rainwater. No more than four (4) containers may be stored at any one (1) scrap tire facility location; and

(3) In compliance with all applicable fire code provisions.
(Ord. No. 2009-10-29-0861, § 1, 10-29-09)

Sec. 16-923. Unapproved storage of tires declared a public nuisance.

The storage of any tire upon any premises within the city in such a manner that does not conform to the approved storage methods defined in 16-922 is hereby declared to be a public nuisance which is subject to abatement at the expense of the owner of such premises as provided by law.
(Ord. No. 2009-10-29-0861, § 1, 10-29-09)

Sec. 16-924. Penalty for violations of this article.

A violation of any of the provisions of this article constitutes a Class C misdemeanor that shall be punishable, upon conviction, by a fine of not less than one hundred dollars ($100.00) nor more than two thousand dollars ($2,000.00). Each day that any violation continues shall constitute a separate offense. In the event a defendant has once previously been convicted under this article, the defendant shall be fined an amount not less

than two hundred dollars ($200.00) and not less than three hundred dollars ($300.00) for a third conviction and for each conviction thereafter.
(Ord. No. 2009-10-29-0861, § 1, 10-29-09)

Sec. 16-925. Exemptions.

This article does not apply to any department, branch or agency of federal, state, or municipal government. Landfilled scrap tires are not subject to the storage requirements provided herein.
(Ord. No. 2009-10-29-0861, § 1, 10-29-09)

DIVISION 2. PERMITS AND RECORDS

Sec. 16-926. Scrap tire facility license required.

(a) It shall be unlawful for any person to own or operate a scrap tire facility without a valid scrap tire facility license issued under this article.

(b) To obtain a scrap tire facility license, an application must be submitted to the director. The applicant must be the person who will own, control, or operate the tire business. The application must be signed and verified by the applicant and contain all of the following information:

(1) The name, mailing address, and telephone numbers of each owner and operator of the facility.

(2) The physical address and telephone number of the facility.

(3) The approximate number of scrap tires that will be stored on site at the facility.

(c) A one-time processing fee of twenty-five dollars ($25.00) shall be charged upon initial registration and an annual assessment of two hundred and fifty dollars ($250.00) thereafter.
(Ord. No. 2009-10-29-0861, § 1, 10-29-09)

Sec. 16-927. Scrap tire identification.

(a) Scrap tires shall be marked with the permit number of the scrap tire facility within twenty-four (24) hours of receipt.

(b) Whole scrap tires shall be marked on the outside of the tire in a manner sufficient to provide notice of ownership. Said marking of the permit number shall be at least one (1) inch in height.
(Ord. No. 2009-10-29-0861, § 1, 10-29-09)

Sec. 16-928. Scrap tire facility transport and records.

(a) It shall be unlawful for any scrap tire facility to cause or permit any scrap tire to be transported upon any public highway other than by a permitted tire transporter.

(b) All scrap tires shall be covered and secured during transport upon any public highway by a permitted tire transporter.

(c) Each scrap tire facility shall maintain a daily manifest of the numbers of scrap tires received and delivered. The daily manifest shall include:

(1) The number of tires received from the transporter or other means;

(2) The number of tires removed by the transporter;

(3) The date of transaction;

(4) The name and permit number of the transporter.
(Ord. No. 2009-10-29-0861, § 1, 10-29-09)

Sec. 16-929. Transporter permit required.

(a) It shall be unlawful for any person to transport scrap tires upon any public highway within the city unless such person is acting pursuant to a permit prominently displayed on the truck.

(b) It is an affirmative defense to prosecution under this section that the cargo transported by such person:

(1) Contains four (4) or less scrap tires;

(2) Contains four (4) percent or less scrap tires by volume and is part of a general cargo of "municipal solid waste" as that term is defined by V.T.C.A., Health and Safety Code § 361.003; or

(3) Originated outside of the city and is destined for transport outside of the city, provided that no scrap tires are loaded or unloaded within the city.

(c) Each person desiring a tire transporter permit shall make application to the department setting forth:

(1) The name of such person;

(2) The business address of such person;

(3) The address within the county at which the records required in this division will be maintained;

(4) The principal business or occupation of such person;

(5) A description of each truck which will be used by such applicant for the transport of scrap tires including the manufacturer, gross weight, license number, color, vehicle identification number, year of manufacture and registered owner thereof;

(6) The name and residence address of each driver who will be authorized to drive the applicant's trucks and their respective driver's license numbers; and

(7) That neither the applicant nor any proposed driver has had a permit which has been revoked under this article within the immediately preceding period of three (3) years.

(d) A fee of fifty dollars ($50.00) per truck shall be assessed annually.
(Ord. No. 2009-10-29-0861, § 1, 10-29-09)

Sec. 16-930. Issuance, duration, and amendment.

(a) The department shall issue a permit or permits to the applicant designating the truck(s) and driver(s) authorized pursuant thereto unless it is found that:

(1) Any statement on the application was incomplete or false;

(2) The applicant or any driver listed on the application has committed any offense involving the unlawful disposal or storage or theft of tires within the immediately preceding period of three (3) years; or

(3) The applicant or any driver listed on the application has had a permit under this article revoked within the immediately preceding period of three (3) years.

(b) Permits are valid for a period of twelve (12) months from date of issuance and are nontransferable.

(c) In addition to the permit itself, the department shall issue to the permittee one (1) identification card for each driver covered thereby and one (1) or more identification plates, stickers or decals to be attached by the permittee in such places and manner as the director may administratively direct to each truck covered thereby.

(d) Permits issued under this article may be amended as to the trucks or drivers authorized thereunder upon application to the director in the same manner as the original application. Such fees shall not be prorated, and no credit shall be allowed for any truck or driver which is deleted.
(Ord. No. 2009-10-29-0861, § 1, 10-29-09)

Sec. 16-931. Authorized drivers and trucks.

(a) It shall be unlawful for a permittee to allow any truck to be used for the transport of scrap tires except those trucks designated in the permit. The permittee shall ensure that each such truck bears the plates, stickers or decals issued at all times.

(b) It shall be unlawful for any permittee to allow any truck while used for the transport of scrap tires to be operated except by the drivers designated in the permit.

(c) It shall be unlawful for any person to act as a driver of any permittee's truck while used for the transport of scrap tires unless the person is in possession of the driver identification cards issued in such person's name to the permittee.
(Ord. No. 2009-10-29-0861, § 1, 10-29-09)

Sec. 16-932. Tire transporter disposal and records.

(a) It shall be unlawful for any transporter to dispose of any scrap tires transported by such permittee other than by the delivery of such tires to a registered scrap tire facility.

(b) Each transporter shall maintain a daily manifest of the numbers of scrap tires received and delivered. The daily manifest shall include:

(1) The name and address of the facility from where scrap tires were received and/or delivered;

(2) The number of tires received or disposed; and

(3) Date of transaction.

(Ord. No. 2009-10-29-0861, § 1, 10-29-09)

Sec. 16-933. Maintenance and inspection of records.

(a) The records required to be made pursuant to this article are government records under V.T.C.A., Penal Code § 37.01.

(b) Such records shall be retained for three (3) years from date of creation at the address designated in the application for registration.

(c) All required records shall be made available to the department upon request during regular business hours.

(d) Said records may be inspected, audited, or copied by the department as required to ensure compliance with this article.

(Ord. No. 2009-10-29-0861, § 1, 10-29-09)

DIVISION 3. REVOCATION

Sec. 16-934. Grounds for scrap tire facility license or transporter permit revocation.

Any permit issued under this article may be revoked in accordance with the procedures herein prescribed if it is found that the transporter designated in the permit has:

(1) Violated the provisions of this article;

(2) Violated any state or municipal law or ordinance involving the unlawful disposal or storage or theft of tires;

(3) Violated any provision of V.T.C.A., Penal Code ch. 37 relating to the records required to be kept under this article; or

(4) Provided any statement in the application for the permit which was known to be false or should have been known to be false by any person required to swear to the application.

(Ord. No. 2009-10-29-0861, § 1, 10-29-09)

Sec. 16-935. Investigation of facts prior to revocation; notice of possible revocation.

Whenever the director receives reliable information that grounds for revocation exist, an investigation of the facts shall be conducted. If the director finds that there are grounds for revocation, written notice shall be provided to the permittee by personal service or by certified mail, return receipt requested, to the address set forth in the application. Such notice shall set forth:

(1) The specific grounds upon which the permit may be revoked;

(2) That there will be a hearing before the director in which the city will seek the revocation of the permit;

(3) The date, time and place of such hearing; and

(4) That the permittee may appear and present testimony.

(Ord. No. 2009-10-29-0861, § 1, 10-29-09)

Sec. 16-936. Administrative hearing on permit revocation.

(a) All hearings shall be held by the director or designated representative who shall serve as the hearing officer.

(b) All hearings shall be conducted under rules consistent with administrative proceedings.

(c) If the permittee fails to appear at the hearing, the city shall introduce evidence to establish a prima facie case showing that grounds exist for revocation of the permit.

(d) After completion of the presentation of evidence by all parties appearing, the hearing officer shall issue a written order as to whether or not there are grounds for revocation of the permit.

(e) A copy of the order shall be personally delivered or mailed by certified mail, return receipt requested, to the permittee within ten (10) days of the hearing.
(Ord. No. 2009-10-29-0861, § 1, 10-29-09)

Sec. 16-937. Appeals.

(a) The revocation of a permit may be appealed to district court upon the filing of a verified petition setting forth the legal grounds for the appeal. The petition must be filed within thirty (30) calendar days after a copy of the final decision of the hearing officer is provided to the permittee, or such decision shall become final upon expiration of the 30-calendar-day period.

(b) Said appeal shall be limited to a hearing under the substantial evidence rule; whereunder the court may reverse or affirm, in whole or part, the hearing officer's decision.
(Ord. No. 2009-10-29-0861, § 1, 10-29-09)

Secs. 16-938, 16-939. Reserved.

ARTICLE XX. BOARDING HOMES*

DIVISION 1. GENERAL

Sec. 16-940. Purpose.

(a) The purpose of this article is to implement the provisions of V.T.C.A., Health and Safety Code ch. 260, entitled "Boarding Home Facilities," as amended, which allows the city to establish regulations for the protection of the health and safety of residents of boarding home facilities. It is the intent and purpose of the city to administer and enforce this chapter to ensure the health, safety and welfare of boarding home facility residents by establishing standards for construction, maintenance, reporting, record-keeping, education, and training for owners, operators and employees of boarding home facilities. These standards are implemented pursuant to the city's home-rule authority under Article XI, Section 5 of the Texas Constitution and the authority to license or permit lawful businesses subject to the city's police power granted by V.T.C.A., Local Government Code §§ 54.005 and 215.075.

(b) The city intends that this chapter fully comply with the Federal Fair Housing Amendments Act of 1988 ("FHAA"), the Americans with Disabilities Act of 1990 ("ADA"), and the Americans with Disabilities Amendments Act of 2008, and all other applicable state and federal legislation. It is the express intent of the city that this chapter be construed in a manner consistent with the FHAA, the ADA, and all other applicable state and federal legislation at all times.
(Ord. No. 2012-12-13-0971, § 1, 12-13-12)

Sec. 16-941. Definitions.

Unless the context clearly indicates otherwise, in this chapter:

Abuse means:

(1) The negligent or willful infliction of injury, unreasonable confinement, intimidation, or cruel punishment with resulting physical or emotional harm or pain to a resident by the person's caretaker, family member, or other individual who has an on-going relationship with the person; or

(2) Sexual abuse of a resident, including any involuntary or non-consensual sexual conduct that would constitute an offense under V.T.C.A., Penal Code § 21.08 (indecent exposure), as amended, or V.T.C.A., Penal Code ch. 22 (assaultive offenses), as amended, committed by the person's caretaker, family member or other individual who has an on-going relationship with the person.

*__Editor's note—__Section 3 of Ord. No. 2012-12-13-0971, adopted December 13, 2012, also states the following: "Violations occurring on or after March 1, 2013 shall be punished as provided in the revised Chapter 16, Article XX of the City Code of San Antonio, Texas. Violations prior to March 1, 2013 shall be punished under the applicable sections of the City Code for those purposes."

Assistance with self-administration of medication means:

(1) Assisting a resident by reminding the resident to take medication;

(2) Opening and removing medications from a container;

(3) Placing medication in a resident's hand or in or on a clean surface such as a medication reminder box; and

(4) Reminding a resident when a prescription medication needs to be refilled.

Boarding home facility means an establishment that:

(1) Furnishes, in one (1) or more buildings, lodging to three (3) or more elderly and/or disabled persons who are unrelated to the owner of the establishment by blood or marriage;

(2) Provides community meals, light housework, meal preparation, transportation, grocery shopping, money management, laundry services, or assistance with self-administration of medication to persons/residents who are capable of feeding, dressing, moving, self-evacuating, bathing and attending to other personal needs or maintenance without assistance; and

(3) Does not provide personal care services to persons/residents.

Conviction means a conviction in a federal court or a court of any state or foreign nation or political subdivision of a state or foreign nation that has not been reversed, vacated, or pardoned. "Conviction" includes disposition of charges against a person by community supervision, including probation and deferred adjudication.

Department means the department designated by the city manager to enforce and administer this chapter.

Direct threat means a significant risk to the health or safety of others that cannot be eliminated by a modification of policies, practices, or procedures, or by the provision of auxiliary aids or services.

Director means the director of the department designated by the city manager to enforce and administer this chapter and includes representatives, agents, or department employees designated by the director.

Disability means a disability as defined in 42 U.S.C. § 12102, as amended.

Elderly means sixty-five (65) years of age or older.

Employee means a person who performs caretaking duties or regularly works in a boarding home facility.

Exploitation means the illegal or improper act or process of an owner, operator, employee, caretaker, family member, or other individual who has an on-going relationship with the resident using the resources of a resident for monetary or personal benefit, profit, or gain without the informed consent of the resident.

Injury, incident, or *unusual accident* means an event that resulted in a change in resident's physical or mental status that requires intervention by a private or public entity responsible for medical or mental health services or an event that requires the facility to take safety and protection measures for the resident or others. This term includes, but is not limited to, the following:

(1) An allegation of abuse, neglect, or exploitation.

(2) Death.

(3) A resident's unexplained absence from the boarding home facility.

(4) Fire.

(5) Criminal acts.

(6) Fights between residents.

Neglect means the failure of a resident or permit holder to provide goods or services, including medical services that are necessary to avoid physical or emotional harm or pain.

Operator means the person in control of a boarding home facility.

Owner means an individual who has an ownership interest in a corporation or other legal

entity operating a boarding home facility or the owner of the real property where a boarding home facility is located.

Permit holder means:

(1) A person in whose name a boarding home facility permit has been issued;

(2) Each individual listed as an owner or operator of the boarding home facility on the application for a boarding home facility permit;

(3) Each individual who has an ownership interest in the corporation or other legal entity owning or operating the boarding home facility, regardless of whether the individual's name or signature appears on the boarding home facility permit application; and

(4) Each officer of the corporation or other legal entity owning or operating a boarding home facility, regardless of whether the individual's name or signature appears on the boarding home facility permit application.

Personal care services means:

(1) Assistance with meals, dressing, movement, bathing, or other personal needs or maintenance;

(2) The administration of medication by a person licensed to administer medication or the assistance with or supervision of medication; or

(3) General supervision or oversight of the physical and mental well-being of a person who needs assistance to maintain a private and independent residence in an assisted living facility or who needs assistance to manage the person's personal life, regardless of whether a guardian has been appointed for the person.

Resident means a person who is residing in a boarding home facility.
(Ord. No. 2012-12-13-0971, § 1, 12-13-12)

Sec. 16-942. Authority of the director.

The director shall implement and enforce this chapter and may by written order establish such rules, regulations, or procedures, not inconsistent with this chapter or other city ordinances, rules, or regulations, or any county, state, or federal laws or regulations, as the director determines are necessary to discharge any duty under or to effect the policy of this chapter.
(Ord. No. 2012-12-13-0971, § 1, 12-13-12)

DIVISION 2. ADMINISTRATIVE

Sec. 16-943. Permit required.

(a) A person commits an offense if he owns or operates a boarding home facility in the city without a valid permit issued under this chapter.

(b) It is a defense to prosecution under this section if a person operates a facility listed in section 16-944 of this chapter.
(Ord. No. 2012-12-13-0971, § 1, 12-13-12)

Sec. 16-944. Exemptions.

This chapter does not apply to the following:

(1) Home and community support services licensed under V.T.C.A., Health and Safety Code ch. 142, as amended.

(2) Convalescent and nursing homes and related institutions licensed under V.T.C.A., Health and Safety Code ch. 242, as amended.

(3) Continuing care facilities licensed under V.T.C.A., Health and Safety Code ch. 246, as amended.

(4) Assisted living facilities licensed under V.T.C.A., Health and Safety Code ch. 247, as amended.

(5) Intermediate care facilities for the mentally retarded licensed under V.T.C.A., Health and Safety Code ch. 252, as amended.

(6) A person that provides from home health, hospice, or personal assistance services only to persons enrolled in a program funded wholly or partly by a state agency

with jurisdiction over mental health and mental disability and monitored by that state agency or its designated local authority in accordance with standards set by that agency as defined in V.T.C.A., Health and Safety Code § 142.003(a)(19), as amended.

(7) An establishment conducted by or for the adherents of a well-recognized church or religious denomination for the purpose of providing facilities for the care and treatment of the sick who depend exclusively on prayer or spiritual means for healing, without the use of any drug or material remedy, if the establishment complies with safety, sanitary, and quarantine laws and rules as defined in V.T.C.A., Health and Safety Code § 242.003(3), as amended.

(8) A facility that provides personal care services only to persons enrolled in a program that is funded in whole or in part by a state department or agency and that is monitored by a state department or agency or its designated local mental retardation authority in accordance with standards set by the state department or agency, as defined in V.T.C.A., Health and Safety Code § 247.004(4), as amended.

(9) A hotel as defined by V.T.C.A., Tax Code § 156.001, as amended.

(10) A retirement community as defined by V.T.C.A., Tax Code § 11.18, as amended.

(11) A monastery or convent.

(12) A childcare facility as defined by V.T.C.A., Human Resources Code § 42.002, as amended.

(13) A family violence shelter center as defined by V.T.C.A., Human Resources Code § 51.002, as amended.

(14) A fraternity or sorority house, or other dormitory, associated with an institution of higher education.

(Ord. No. 2012-12-13-0971, § 1, 12-13-12)

Sec. 16-945. Permit application.

To obtain a permit to operate a boarding home facility, a person must submit an application to the director on a form provided for that purpose. The applicant must be the owner or operator of the boarding home facility. If the owner or operator is not an individual, an authorized officer or agent of the owner or operator must file the form. The application must contain the following information before it is considered to be complete:

(1) The name, street address, mailing address, e-mail address, telephone number, a legible copy of the driver's license or other official state or federal identification card, and date of birth of the applicant. The street address may not be the address of the boarding home facility unless the applicant actually resides full-time at the boarding home facility.

(2) The name, street address, mailing address, e-mail address, telephone number, a legible copy of the driver's license or other official state or federal identification card, and position of the authorized officer or agent filing the form on behalf of the applicant, if the applicant is not an individual. The street address may not be the address of the boarding home facility unless the authorized officer or agent actually resides full-time at the boarding home facility.

(3) The form of business of the applicant; the name, street address, mailing address, e-mail address, telephone number, a legible copy of the driver's license or other official state or federal identification card, and date of birth of a high managerial agent of the business; and, if the business is a legal entity, such as a corporation or association, a copy of the documents establishing the business.

(4) If the operator of the boarding home is renting or leasing the home or facility, then the operator must present a letter from the owner of the real property authorizing the use of the rental property to operate a boarding home and acknowledg-

ing the requirements for the property to be used as a boarding home set out within this article.

(5) The street address and telephone number of the boarding home facility.

(6) The name, street address, mailing address, e-mail address, and telephone number of a person or persons to contact in an emergency as required by this chapter.

(7) Documentary evidence of payment of ad valorem taxes, fees, fines, and penalties owed to the city in connection with the real property used to operate the boarding home facility.

(8) The names, street addresses, mailing addresses, e-mail addresses, telephone numbers, legible copies of the drivers' licenses or other official state or federal identification cards, and dates of birth of any owners, operators, or employees of the boarding home facility other than the applicant. The street address may not be the address of the boarding home facility, unless the owner, operator, or employee actually resides full-time at the boarding home facility.

(9) Completed state or federal request and release forms authorizing the city to obtain a criminal history report on each owner and operator of the boarding home facility.

(10) The maximum number of residents that will reside at the boarding home facility.

(11) The services to be offered or provided to the residents of the boarding home facility.

(12) A zoning verification letter stating that the proposed use of the property complies with the city's Unified Development Code.

(13) If the boarding home facility has one (1) or more residents with a disability, a list of disabilities of the residents.

(14) A statement that, by filing the application, the applicant swears or affirms under penalty of perjury that, to the best of the applicant's knowledge, all information contained in the application is true and correct and that the application is complete and includes all information required to be disclosed under this section.

(15) Such additional information as the applicant desires to include or that the director deems necessary to aid in the determination of whether the requested permit should be granted.

(Ord. No. 2012-12-13-0971, § 1, 12-13-12)

Sec. 16-946. Notification of change of information.

The permit holder shall notify the director within ten (10) days after any material change in the information contained in the application for a permit to operate a boarding home facility, including any change in ownership or operation of the property and any new disabilities served by the boarding home facility.

(Ord. No. 2012-12-13-0971, § 1, 12-13-12)

Sec. 16-947. Fees.

(a) The fee for a permit to operate a boarding home facility is one thousand dollars ($1,000.00).

(b) No refund of a permit fee will be made.

(Ord. No. 2012-12-13-0971, § 1, 12-13-12)

Sec. 16-948. Issuance and denial of permit.

(a) Upon payment of all required fees and the submission of a complete application, the director shall issue a permit to operate a boarding home facility to the applicant if the director determines that:

(1) The applicant has complied with all requirements for issuance of the permit;

(2) The applicant, owners, operators, and employees of the boarding home facility meet the criminal history qualifications of this chapter;

(3) The applicant, owners, operators, or employees of the boarding home facility do not own or operate another permitted boarding home facility in the city for which the permit is currently suspended or has been revoked;

(4) The applicant has not made a false statement as to a material matter in the application for a permit;

(5) The condition and use of the boarding home facility complies with zoning regulations, and all other standards in this article applicable to the property;

(6) The applicant, owners, and operators do not owe the city any ad valorem taxes, fees, fines or penalties.

(7) The proposed boarding home facility is not within one-half (½) mile of an existing boarding home facility;

For purposes of this section the measurement of the one-half (½) mile shall be in a straight line, without regard to intervening structures or objects, from the nearest property line of the lot on which the proposed boarding home facility is located, to the nearest property line of the existing registered and permitted boarding home facility described in the above subsection, which requires separation.

(b) City council may grant a variance to the proposed boarding home facility authorizing its location within one-half (½) mile of another registered permitted boarding home facility consistent with section 16-949 below.

(c) If the director determines that the requirements of subsection (a) have not been met, and, if applicable, a variance under section 16-949 has been denied, the director shall deny the permit.

(d) If the director determines that an applicant should be denied a permit, the director shall notify the applicant in writing that the application is denied and include in the notice the reason for denial and a statement informing the applicant of the right of appeal.
(Ord. No. 2012-12-13-0971, § 1, 12-13-12)

Sec. 16-949. Variance from distance requirement.

(a) The fee to file an application for the variance from the distance requirement set out above in subsection 16-948(a)(7) shall be three hundred dollars ($300.00).

(b) The variance procedure shall be as follows:

(1) Application. When requesting a variance in accordance with subsection 16-948(b) the applicant shall submit the following information to the director of the development services department, or his or her designee:

a. Completed variance request form with the following information:

1. The name and address of the applicant for the boarding home facility;

2. The name and address of the boarding home facility subject to the request, if applicable;

3. The name of the property owner where the boarding home facility will be located;

4. The name and address of the registered permitted boarding home facility currently in existence which triggered the request for variance;

5. Notarized authorization by the property owner consenting to the variance request.

b. Statement of justification for the variance, and how the variance meets the criteria in subsection 16-949(b)(4)a. below;

c. A site and floor plan showing the following information:

1. North arrow and scale;

2. Boundaries of the property;

3. Location and dimensions of all buildings and structures;

4. All fences, parking area, and landscape area; and

(2) Hearing. The director of the development services department, or his or her designee, shall set a date for a public hearing on the first available city council agenda after the passage of thirty (30) days from the date a complete variance application is received;

(3) Notices. No later than ten (10) days prior to the date of the hearing, the director of the development services department, or his or her designee, shall send written notice of the variance request, to include the date and time of the scheduled public hearing, to:

a. The property owner of the registered permitted boarding home facility currently in existence which triggered the request for variance;

b. The applicant requesting the variance;

c. Registered neighborhood associations within a one-half (½) mile radius; and

d. Each owner, as indicated by the most recently approved municipal tax roll, of real property, within two hundred (200) feet of the property.

(4) City council may grant a variance to the proposed boarding home facility authorizing its location within one-half (½) mile of another registered permitted boarding home facility, as that distance is determined by the manner of measurement prescribed by subsection 16-948(a)(7)a. provided that city council finds the following:

a. Enforcement of the distance separation requirement is not in the best interest of the public, constitutes waste or inefficient use of land or other resources, creates an undue hardship on an applicant for a license or permit, does not serve its intended purpose, is not effective or necessary, or for any other reason the city council, after consideration of the health, safety, and welfare of the public and the equities of the situation.

b. If at the conclusion of the public hearing the city council grants the applicant's request for a variance, the city council may impose additional conditions on the granting of the variance, where such conditions are intended to mitigate the impacts caused by the boarding home facility and are in the public interest.

(5) Renewal and transfer. A variance granted pursuant to this subsection is valid for subsequent renewals of the registration for which a variance was sought. A variance granted pursuant to this subsection may not be transferred to another location, or to another operator, except in the event when city council approves as a condition of the variance the transfer to another location.

(c) Variance violation. The director of the development services department, or his or her designee, may request the city attorney to seek any and all remedies available at law and or equity to assure the conditions imposed on the granting of the variance are enforced.

(d) If a variance is denied, no new application for the same location shall be accepted within twelve (12) months from date of the denial.
(Ord. No. 2012-12-13-0971, § 1, 12-13-12)

Sec. 16-950. Suspension of permit; prohibition of new residents.

(a) The director may suspend a boarding home facility permit for a period not to exceed ninety (90) days if the director finds that the permit holder or an employee of the boarding home facility has:

(1) Failed to comply with any provision of this article, any other ordinance, or any state or federal law applicable to the operation of a boarding home facility; or

(2) Intentionally or knowingly impeded or refused to allow an inspection by the director authorized under this chapter.

(b) A boarding home facility for which the permit has been suspended may not admit any new residents during the time the permit is suspended.

(c) In lieu of suspending a permit for a boarding home facility, the director, at his sole discretion, may enter into a compliance agreement with a permit holder if the director determines that the

compliance agreement would eliminate the noncompliance that would otherwise justify a suspension, result in prompt future inspections, and elevate one (1) or more conditions at the boarding home facility to a standard above the requirements of this chapter.

(d) The director shall send a written statement of the reasons for the suspension, the date the suspension is to begin, the duration of the suspension, and the permit holder's right to appeal by certified mail, return receipt requested.

(e) A permit holder whose permit is suspended may not be granted a permit to operate additional boarding home facilities during the period of suspension.

(f) A permit holder commits an offense if he operates or owns a boarding home facility that admits new residents during the time that the suspension of the permit is in effect.
(Ord. No. 2012-12-13-0971, § 1, 12-13-12)

Sec. 16-951. Revocation of permit.

(a) Except as provided in subsection (b), the director shall revoke any permit issued to operate a boarding home facility if the director determines that:

(1) The permit holder fails to meet the criminal history qualifications of this article or employs a person at the facility who fails to meet the criminal history qualifications.

(2) The permit holder intentionally made a false statement as to a material matter in the application or in a hearing concerning the permit;

(3) The permit holder failed to pay a fee required by this article at the time it was due; or

(4) A cause for suspension under section 16-950 has occurred and the permit has already been suspended at least once within the preceding twelve (12) months.

(b) In lieu of revoking a permit for a boarding home facility, the director, at his sole discretion may enter into a compliance agreement with a permit holder if the director determines that the compliance agreement would eliminate the noncompliance that would otherwise justify a revocation, result in prompt future inspections, and elevate one (1) or more conditions at the boarding home facility to a standard above the requirements of this chapter.

(c) Before revoking a license under subsection (a), the director shall notify the permit holder in writing by certified mail, return receipt requested, that the permit is being considered for revocation. The notice must include the reason for the proposed revocation, action the permit holder must take to prevent the revocation, and a statement that the permit holder has ten (10) calendar days to comply with the notice.

(d) If, after ten (10) calendar days from the date of the notice required in subsection (c) was sent or delivered (whichever is later), the permit holder has not complied with required actions listed in the notice, the director shall revoke the permit and notify the permit holder in writing of the revocation. The notice must include the reason for the revocation, and a statement informing the permit holder of the right of appeal.

(e) If a permit has been revoked, the permit holder has ten (10) calendar days from the date the notice was sent or delivered (whichever is later), to relocate the residents of the facility and cease operations. An appeal of the revocation does not suspend or toll this deadline.
(Ord. No. 2012-12-13-0971, § 1, 12-13-12)

Sec. 16-952. Appeals.

If the director denies issuance or renewal of a permit or suspends or revokes a permit issued under this article, the action is final unless the permit holder files a written appeal within ten (10) business days to the director, or his designee. Appeals regarding technical matters will be reviewed by the building related and fire codes appeals and advisory board or other appropriately identified board or committee.
(Ord. No. 2012-12-13-0971, § 1, 12-13-12)

Sec. 16-953. Expiration and renewal of permit.

(a) A permit to operate a boarding home facility expires one (1) year after the date of issuance.

(b) A permit holder shall apply for renewal at least thirty (30) calendar days before the expiration of the permit on a form provided by the director. The permit holder shall update the information contained in the original permit application required under section 16-945 of this article or any subsequent renewals under this section, if any of the information has changed. The permit holder shall sign a statement affirming that there is either no change in the information contained on the original permit application and any subsequent renewal applications, or that any information that has been updated is accurate and complete.

(c) The director shall follow the procedures set forth in this article when determining whether to renew a permit.

(d) The fee for the renewal of a permit to operate a boarding home facility is one thousand dollars ($1,000.00).
(Ord. No. 2012-12-13-0971, § 1, 12-13-12)

Sec. 16-954. Nontransferability.

A permit to operate a boarding home facility is not transferable to another owner, operator, or location.
(Ord. No. 2012-12-13-0971, § 1, 12-13-12)

Sec. 16-955. Posting requirements.

The permit holder shall prominently and conspicuously post for display in a public area inside the boarding home facility that is readily available to residents, the operator, employees, and visitors the following:

(1) The permit issued under this chapter to operate the boarding home facility. The permit must be presented upon request to the director or to a peace officer for examination.

(2) A sign prescribed by the director specifying how complaint may be registered with the city.

(3) A notice in a form prescribed by the director stating that inspection and related reports are available at the facility for public inspection and providing a telephone number that may be used to obtain information concerning the facility.

(4) A copy of the most recent inspection report relating to the facility by the city or a concise and accurate summary of that inspection report.

(5) A notice in a form prescribed by the director that lists the name, location, and contact information for:

a. The closest local public health services agency in the proximity of the facility; and

b. A local organization or entity that represents, advocates, or serves elderly persons or persons with disabilities, including any related toll-free contact information for reporting emergencies to the organization or entity.

(Ord. No. 2012-12-13-0971, § 1, 12-13-12)

Sec. 16-956. Reasonable accommodations.

(a) *Purpose.* The city intends to ensure that all persons with a disability have an equal opportunity to use and enjoy a dwelling by providing such persons with reasonable accommodations in rules, policies, practices, and procedures promulgated under this chapter consistent with the Fair Housing Amendments Act of 1988 ("FHAA") 42 U.S.C. § 3601, et seq., and the Americans with Disabilities Act of 1990 ("ADA"), 42 U.S.C. § 12101, et seq., as amended.

(b) *Method of submitting a request for a reasonable accommodation; fees; confidentiality.*

(1) A request for a reasonable accommodation may be submitted at any time that the accommodation may be necessary to ensure equal access to housing.

(2) A request for a reasonable accommodation may be submitted by an individual with a disability, the person's representative, or a permit holder providing housing for one (1) or more individuals with disabilities.

(3) A request for a reasonable accommodation must be submitted in writing to the director on the form provided by the department, or in the form of a letter.

(4) There is no fee for an application requesting a reasonable accommodation.

(5) If an individual needs assistance in making a request for a reasonable accommodation, the city will provide assistance to ensure that the application process is accessible to the individual.

(c) *Application.* An applicant shall submit the following information before an application for a reasonable accommodation is considered to be complete:

(1) The applicant's name, mailing address, street address, telephone number, and email address.

(2) The applicant's relation to the individual or individuals with a disability, if applicable.

(3) The address of the property to which the requested reasonable accommodation would apply.

(4) A disability determination by the Social Security Administration or the Department of Veteran's Affairs, or other substantially equivalent medical determination, that substantiates that the individual who would obtain the benefit of the reasonable accommodation is:

a. An individual with a physical or mental impairment that substantially limits one (1) or more major life activities;

b. An individual who is regarded as having such an impairment; or

c. An individual with a record of such an impairment.

(5) The section, or sections, of this chapter from which a reasonable accommodation is being requested.

(6) A brief explanation of why the requested accommodation is necessary for the individual or individuals with disabilities to have equal access to housing.

(d) *Review of application by director; required findings.*

(1) Upon receipt of a complete application for a reasonable accommodation, the director shall review the application and issue a written ruling that grants, grants with conditions, or denies the application.

(2) Before making a decision, the director may request an inspection of the boarding home facility and the land on which it is located. If the director makes such a request:

The applicant must make the property, the facility, and its records available for the inspection within twenty (20) calendar days after the date of the request or the application shall be automatically denied.

(3) If the director deems it necessary to request additional information from the applicant consistent with federal law, the director shall contact the applicant in writing and specify the additional information that is required. If the director makes such a request:

The applicant must provide the additional information to the director within twenty (20) calendar days after the date of the request or the application shall be automatically denied.

(4) All proposed decisions of the director shall be submitted to the city attorney for legal review to determine if the proposed decision complies with local, state and federal laws and regulations.

(5) The director may impose reasonable conditions on any accommodation granted consistent with the purpose of this chapter.

(6) The written decision must be consistent with the FHAA and based on a consideration of the following factors:

a. Whether the housing that is the subject of the request will be used by one (1) or more individuals with a disability.

b. Whether the requested accommodation is necessary to make specific housing available to one (1) or more individuals with a disability.

c. Whether the requested accommodation would impose an undue financial or administrative burden on the city.

d. Whether the requested accommodation would require a fundamental alteration in the nature of a city program or law.

e. The potential impacts of the requested accommodation on the applicant, the other residents of the boarding home facility, and the surrounding neighborhood.

f. Whether a failure to grant an accommodation would result in the property having no economically viable use.

g. Whether there are alternative accommodations that are reasonable and have an equal, or less of an, impact on the city, the applicant, the other residents of the boarding home facility, and the surrounding neighborhood.

(e) *Written decision; appeal.*

(1) The director shall issue a written decision within twenty (20) business days of:

a. Receipt of a completed application, provided that the director is able to issue a decision based on the information provided in the original request;

b. The completed inspection of the property, facility and its records, as requested by the director; or

c. The director's receipt of all additional requested information.

(2) All written decisions must explain in detail the basis of the decision and notify the applicant of the right to appeal the decision to the director, or his designee.

(3) If the director denies an application for a reasonable accommodation, the action is final unless the applicant files an appeal to the director or his designee. An appeal of technical matters will be considered by the building related and fire codes appeals and advisory board, or other identified appropriate technical board, committee or entity.

(Ord. No. 2012-12-13-0971, § 1, 12-13-12)

Sec. 16-957. Inspections; fees.

(a) *Required inspections.*

(1) A boarding home facility must pass all required inspections.

(2) The permit holder shall keep a current file of reports and other documentation on site that is needed to demonstrate compliance with applicable ordinances, laws, and regulations, including, but not limited to, documentation of those requirements set out in sections 16-963, 16-966, 16-968, 16-969 and 16-970 of this article. Inspection records must be signed and dated by the appropriate authority and there must be no pending corrective actions.

(3) The following inspections are required:

a. Permitting inspection.

b. Annual permit renewal inspection.

c. Annual fire inspection.

d. Annual kitchen inspection for a boarding home facility that provides meal preparation.

(b) *Other inspections.* The director may inspect any boarding home facility for the purpose of ascertaining whether violations of this article or any other city ordinances exist. The director is authorized at a reasonable time to inspect:

(1) The exterior of a structure and the surrounding premises; and

(2) The interior of a structure if the permission of the owner, occupant, or person in control is given or a search warrant is obtained.

(c) *Consequences of refusal to inspect.* If the owner, occupant, or person in control denies permission to search any part of the interior or exterior of the structure or the surrounding premises, the director may suspend the permit to operate a boarding home facility in accordance with section 16-950.

(d) *Reinspections.* Whenever a boarding home facility is inspected by the director and a violation of this code is found, the building or premises will, after the expiration of any time limit for compliance given in the notice or order issued because of the violation, be reinspected by the director to determine that the violation has been eliminated.

(e) *Reinspection fee.* The permit holder shall pay:

(1) To the director, fifty-one dollars and fifty cents ($51.50) per inspector, per hour, for each reinspection after the first inspection by that department that must be conducted before the violation is determined to be eliminated; and

(2) To the director of any other city department the fee required (if any) by the applicable code for each reinspection by that department that must be conducted before the violation is determined to be eliminated.

(Ord. No. 2012-12-13-0971, § 1, 12-13-12)

Sec. 16-958. Reports to the state health and human services commission.

As required by V.T.C.A., Health and Safety Code ch. 260, before September 30th of each year, the director shall submit a report to the state health and human services commission. The report must contain the following information:

(1) The total number of boarding home facilities issued permits by the city during the preceding state fiscal year.

(2) The total number of boarding home facility applications for which permits were denied, including a summary of the causes for denial.

(3) The total number of boarding home facility permits that were active on August 31st of the preceding state fiscal year.

(4) The total number of residents housed in each boarding home facility reported.

(5) The total number of inspections conducted by the city at each boarding home facility.

(6) The total number of permits suspended or revoked as a result of an inspection.

(7) A summary of the outcome for any residents displaced by suspension or revocation of a permit.

(Ord. No. 2012-12-13-0971, § 1, 12-13-12)

DIVISION 3. STRUCTURE AND MAINTENANCE

Sec. 16-959. Construction, remodeling, and maintenance.

(a) *In general.* Each permit holder shall ensure the residents' health, safety, comfort, and protection through the standards contained in this section that address the construction, remodeling, and maintenance of a boarding home facility.

(b) *Applicable regulations.* Each boarding home facility must comply with the following codes and regulations:

(1) Local zoning, building and property maintenance codes.

(2) Federal, state, or local adopted fire codes and standards.

(3) Federal, state, and local health and safety codes.

(4) Federal and state accessibility regulations.

(c) *Public pathways and stairways.* A public pathway or stairway in a building must maintain a minimum unobstructed width in accordance with the local fire code, as amended, and must be provided with a convenient light switch controlling an adequate light system.

(d) *Maintenance.*

(1) The permit holder shall maintain the dwelling and premises in a clean and sanitary condition.

(2) The permit holder shall keep a boarding home facility in good repair and maintenance in a manner that will promote the health, comfort, safety, and well-being of residents.

(3) The permit holder shall be responsible for the extermination of any insects, rodents or other pests in the rooms occupied by residents, storage areas, attics, or on the premises or yard.

(Ord. No. 2012-12-13-0971, § 1, 12-13-12)

Sec. 16-960. Sleeping rooms.

(a) *Sleeping space per person.* Each room occupied for sleeping purposes by one (1) occupant must contain at least seventy (70) square feet of floor space, and every room occupied for sleeping purposes by more than one (1) person must contain at least fifty (50) square feet of floor space for each occupant.

(b) *Emergency exit.* Each sleeping room must provide access to an emergency exit without passing through another sleeping room.

(Ord. No. 2012-12-13-0971, § 1, 12-13-12)

Sec. 16-961. Telephone.

A telephone that is connected to a land line must be available twenty-four (24) hours a day, be easily accessible, and afford privacy for use by residents. A list of emergency telephone numbers, including the numbers of the local police department, local fire department, ambulance, the city department that issued the boarding home permit, the state department of family and protective services (DFPS), the local mental health authority, and the Texas Information and Referral Network, must be placed in plain view on or next to the telephone and made accessible to persons who are visually or hearing impaired, as needed.

(Ord. No. 2012-12-13-0971, § 1, 12-13-12)

Sec. 16-962. Kitchen.

(a) A kitchen must be accessible to each resident without going through a sleeping room of another resident.

(b) A kitchen must have a food preparation area of at least six (6) square feet that is smooth, impermeable, free of cracks, and easily cleanable.

(c) If a boarding home facility has a kitchen it must contain a minimum floor space of sixty (60) square feet for dining area. A kitchen with an attached dining area must be at least one hundred (100) square feet in area.

(d) A kitchen must contain a sink with at least two (2) compartments for manual dishwashing.

(e) A kitchen must contain an operational cooking stove with at least two (2) burners fueled by gas or electricity.

(f) A kitchen must contain at least one (1) cabinet with a minimum of five (5) cubic feet of storage space per resident, suitable for storage of food and utensils.

(g) The permit holder shall keep the kitchen in a clean and sanitary condition.

(Ord. No. 2012-12-13-0971, § 1, 12-13-12)

DIVISION 4. RESIDENT HEALTH AND SAFETY

Sec. 16-963. Emergency precautions.

(a) The permit holder shall provide fire escapes and exits that are kept in good repair and accessible at all times in accordance with applicable fire codes, as amended.

(b) The permit holder shall implement a written fire and evacuation plan that sets forth the responsibilities and steps to be taken by staff and residents in the event of a fire or other emergency. If a boarding home facility has a resident who has a mobility-impairment, the permit holder shall submit the written plan to the local fire department and obtain its approval of the plan.

(c) The permit holder shall post an emergency evacuation plan in each sleeping room and the kitchen of the facility.

(d) The permit holder shall ensure that each resident receives training on the emergency evacuation plan at least two (2) times per year and shall maintain documentation of such training.

(e) Flammable supplies and gasoline-operated maintenance equipment and lawn care equipment must be stored in the garage of the facility or in a detached storage shed.

(f) The permit holder shall ensure that all residents are shown how to use all emergency exits from the boarding home facility within twenty-four (24) hours after arrival at the boarding home facility. The permit holder shall maintain documentation of such training.

(g) First aid supplies.

(1) The permit holder shall provide first aid supplies as recommended by the American Red Cross.

(2) The permit holder shall ensure that the first aid supplies are readily accessible to all the residents and inform the residents of the location of the supplies.

(Ord. No. 2012-12-13-0971, § 1, 12-13-12)

Sec. 16-964. Poisonous, toxic, and flammable materials.

(a) The permit holder shall ensure that poisonous, toxic, and flammable materials:

(1) Are stored and maintained away from bed linens, towels, food items, and kitchen equipment; and

(2) Are not used in a way that contaminates food equipment or utensils or constitutes a hazard to employees or residents.

(b) The permit holder shall prominently and distinctly label poisonous, toxic, and flammable materials for easy identification of contents.

(Ord. No. 2012-12-13-0971, § 1, 12-13-12)

Sec. 16-965. Food and drink; meals.

(a) *In general.* If a boarding home facility serves meals to one (1) or more residents, the permit holder shall ensure the following:

(1) All food and drink is clean and free from spoilage, pathogenic organisms, toxic chemicals, and other harmful substances.

(2) All food and drink is prepared, stored, handled, and served so as to be safe for human consumption.

(3) All food or drink subject to spoilage is maintained at a temperature of forty-one (41) degrees Fahrenheit or below.

(4) Hot foods that are ready to be served are maintained at one hundred thirty-five (135) degrees Fahrenheit or above at all times.

(5) All food or drink stored in the freezer is maintained at a temperature of no higher than zero (0) degrees Fahrenheit.

(6) All food stored in food containers shall be appropriately labeled, dated, and protected from flies, insects, rodents, dust and moisture.

(b) *Animals prohibited.* With the exception of service animals for persons with disabilities, birds, cats, dogs, or other animals are not permitted in areas where food is prepared or stored, or where utensils are washed or stored.

(c) *Food handling.*

(1) An owner, operator, employee, or resident engaged in food handling shall:

a. Observe sanitary methods, including hand washing; and

b. Not be assigned to preparing foods for others at the facility if carrying a disease that can be transmitted to others.

(2) If preparing meals for residents, staff must obtain a valid food handler's permit in accordance with chapter 13 of this Code.

(Ord. No. 2012-12-13-0971, § 1, 12-13-12)

Sec. 16-966. Reporting and investigation of injuries, incidents and unusual accidents and the establishment of policies and procedures to ensure resident health and safety.

(a) Each permit holder of a boarding home facility must ensure that there is on-site supervision of its boarding home facility during any time that a resident is present at the facility.

(b) Each permit holder of a boarding home facility must develop and implement policies and procedures for investigating and documenting injuries, incidents and unusual accidents that involve residents. Permit holders must also establish policies and procedures necessary to ensure resident health and safety.

(1) Minimum requirements for the documentation of injuries, incidents or unusual accidents should include, but are not limited to:

a. Date and time of the injury, incident or unusual accident occurred.

b. Description of the injury, incident or unusual accident.

c. Description of any medical or mental health treatment the resident received.

d. Steps taken by the permit holder to prevent future injuries, incidents or unusual accidents if a problem at the room and board facility resulted in the injury, incident or unusual accident.

e. When the resident's legal guardian or legally authorized representative was notified about the injury, incident or unusual accident.

(2) Residents, the resident's guardian, or legally authorized representatives should be given access to records within forty-eight (48) hours of requesting the records from the permit holder.

(c) In addition to investigating and documenting injuries, incidents or unusual accidents, a permit holder must report any allegations of abuse, neglect or exploitation of an adult age sixty-five (65) or older or an adult with a disability to the state department of family and protective services. Failure to report suspected abuse, neglect or exploitation of an elderly adult or adult with a disability is a Class A misdemeanor.

(1) Each permit holder should ensure that each resident has access to a telephone twenty-four (24) hours per day that is easily accessible and affords privacy for use by residents.

(2) The permit holder shall ensure that no resident is harassed, threatened or intimidated at anytime for making a report of abuse, neglect or exploitation.

(3) Permit holders will provide each resident with a copy of the definitions of abuse, neglect or exploitation as outlined in V.T.C.A., Human Resource Code ch. 48.

(4) Permit holders will allow law enforcement personnel, emergency medical and fire personnel access to the room and board facility when these professionals are responding to a call at the permit holder's room and board facility.

(d) No operator or other employee of a boarding home facility shall provide services or engage in behavior that constitutes a financial conflict of interest including:

(1) Borrowing from or loaning money to residents;

(2) Witnessing wills in which the operator or employee is a beneficiary;

(3) Co-mingling the resident's funds with the operator's or other residents' funds; or

(4) Becoming the guardian, conservator or power of attorney for a resident.

(e) If a permit holder becomes the representative payee for a resident or assists a resident with general money management, the permit holder shall:

(1) Maintain separate financial records for each resident for which the permit holder is the representative payee for the entire period of time the permit holder is the resident's representative payee and continue to maintain the resident's records for one (1) year past the last calendar day the permit holder is the resident's representative payee;

(2) Include in the records an itemized list of expenditures that the permit holder has made on behalf of the resident, including the charges that are assessed by the permit holder;

(3) Maintain receipts for all expenditures in addition to the itemized documentation;

(4) Develop a budget with the resident outlining routine expenditures and ensure that expenditures that are not routine are discussed with the resident before the resident's funds are expended; and

(5) The permit holder will allow the resident, the resident's guardian, or legally authorized representative access to the resident's financial records that are maintained by the permit holder within forty-eight (48) hours of receiving a request.

(f) A permit holder of a boarding home facility shall develop a service agreement with each resident and maintain a copy of the agreement signed by the resident.
(Ord. No. 2012-12-13-0971, § 1, 12-13-12)

Sec. 16-967. Assistance with self-administration of medication.

(a) Assistance with self-administration of medication may be provided to an adult resident who can identify his or her medication and knows when the medication should be taken but requires assistance with self-administration. Assistance with self-administration of medication may not be provided to a minor.

(b) Assistance with self-administration of medication is limited to:

(1) Reminding the resident to take medication;

(2) Opening a container, removing medication from a container, and placing medication in a resident's hand or in or on a clean surface, such as a pill cup or medication reminder box, for the resident's self-administration; and

(3) Reminding the resident when a prescription needs to be refilled.

(c) The permit holder shall store all residents' medication in a locked area. The permit holder shall provide a central locked storage area or individual locked storage areas at the boarding home facility for each resident's medication.

(1) If the boarding home facility uses a central medication storage area, a boarding home employee must be available to provide access at all times and each resident's medication must be stored separately from other residents' medications within the storage area.

(2) If a resident's medication requires refrigeration, the permit holder shall provide a refrigerator with a designated and locked storage area or a refrigerator inside a locked medication room.

(3) The permit holder shall store medications labeled "for external use only" separately within the locked area.

(d) The permit holder shall ensure that poisonous substances are labeled and safely stored within a locked area.

(e) If a boarding home facility stores controlled substances, the permit holders shall adopt and enforce a written policy for preventing the diversion of the controlled substances.

(f) After a resident ceases to reside in the boarding home facility, the permit holder shall properly dispose of any of the resident's remaining medication in accordance with applicable laws.
(Ord. No. 2012-12-13-0971, § 1, 12-13-12)

Sec. 16-968. Requirements for in-service education of boarding home facility staff.

(a) Each permit holder, employee and staff member of a boarding home facility must be trained on the following subjects prior to contact with residents:

(1) Employer rules and policies.

(2) Preventing, recognizing, and reporting abuse, neglect, and exploitation of residents.

(3) Residents' rights, including all applicable rights from the following:

a. V.T.C.A., Human Resource Code ch. 102 (Rights of the Elderly), as amended.

b. V.T.C.A., Human Resource Code ch. 112 (Developmental Disabilities), as amended.

c. V.T.C.A., Property Code ch. 301 (Fair Housing Practices), as amended.

d. V.T.C.A., Property Code ch. 92 (Residential Tenancies), as amended.

(4) Policies and procedures for contacting emergency personnel when health or safety of a resident or another individual is at risk.

(5) Complaint process specific to the city and the boarding home facility.

(6) Assisting residents with self-administration of medication.

(7) Prevention, recognition, and reporting of injuries, incidents, and unusual accidents to residents and others in the boarding home facility.

(8) Emergency, evacuation and disaster plans.

(9) Assisting residents with obtaining health and social services.

(10) Services provided by the boarding home facility, including:

a. Nutrition, meal preparation, and dietary needs, if the boarding home facility provides meal preparation;

b. Sanitation;

c. Laundry, if the boarding home facility provides laundry services; and

d. House work, if the boarding home facility provides house work.

(b) Each permit holder and employee of a boarding home facility is subject to the following ongoing training requirements:

(1) Updates and changes in any policies and procedures within ten (10) days after the permit holder or employee becomes aware of the change.

(2) Orientation specific to the needs of each new resident within one (1) business day of the resident moving into the facility.

(3) Orientation specific to the needs of a resident whose needs have changed due to injury, illness, hospitalization, or other circumstances that affect the resident's needs within one (1) day after permit holder or employee becoming aware of the change.

(Ord. No. 2012-12-13-0971, § 1, 12-13-12)

Sec. 16-969. Criminal background history checks.

(a) A boarding home facility permit holder's permit to operate a boarding home may be denied, revoked, suspended, or denied for renewal if the permit holder has been convicted of a criminal offense listed in subsections (c) or (d) of this section or if the permit holder has in its employ any person convicted of a criminal offense listed in subsection (c) or (d).

(b) The permit holder must complete any state or federal request and release forms that are required to obtain a criminal history report for the permit holder. In addition to the permit fee, the permit holder will provide funding to the county/municipality in a manner specified by the county/municipality to cover any fees imposed by state or federal agencies for the report.

(c) The following histories will disqualify a permit holder from obtaining a permit to operate a boarding home or will serve as a bar to being employed by a boarding home facility:

(1) V.T.C.A., Penal Code ch. 19 (criminal homicide);

(2) V.T.C.A., Penal Code ch. 20 (kidnapping and unlawful restraint);

(3) V.T.C.A., Penal Code § 21.02 (continuous sexual abuse of young child or children);

(4) V.T.C.A., Penal Code § 21.08 (indecent exposure);

(5) V.T.C.A., Penal Code § 21.11 (indecency with a child);

(6) V.T.C.A., Penal Code § 21.12 (improper relationship between educator and student);

(7) V.T.C.A., Penal Code § 21.15 (improper photography or visual recording);

(8) V.T.C.A., Penal Code § 22.011 (sexual assault);

(9) V.T.C.A., Penal Code § 22.02 (aggravated assault);

(10) V.T.C.A., Penal Code § 22.021 (aggravated sexual assault);

(11) V.T.C.A., Penal Code § 22.04 (injury to a child, elderly individual or disabled individual);

(12) V.T.C.A., Penal Code § 22.041 (abandoning or endangering child);

(13) V.T.C.A., Penal Code § 22.05 (deadly conduct);

(14) V.T.C.A., Penal Code § 22.07 (terroristic threat);

(15) V.T.C.A., Penal Code § 22.08 (aiding suicide);

(16) V.T.C.A., Penal Code § 25.031 (agreement to abduct from custody);

(17) V.T.C.A., Penal Code § 25.08 (sale or purchase of a child);

(18) V.T.C.A., Penal Code § 28.02 (arson);

(19) V.T.C.A., Penal Code § 29.02 (robbery);

(20) V.T.C.A., Penal Code § 29.03 (aggravated robbery);

(21) V.T.C.A., Penal Code § 30.02 (burglary);

(22) V.T.C.A., Penal Code ch. 31 (theft) that is punishable as a felony;

(23) V.T.C.A., Penal Code § 33.021 (online solicitation of a minor);

(24) V.T.C.A., Penal Code § 34.02 (money laundering);

(25) V.T.C.A., Penal Code § 35A.02 (Medicaid fraud);

(26) V.T.C.A., Penal Code § 42.09 (cruelty to animals); or

(27) A conviction under the laws of another state, federal law, or the Uniform Code of Military Justice for an offense containing elements that are substantially similar to the elements of an offense listed in this subsection.

(d) A person may not own a boarding home or be employed in a position the duties of which involve direct contact with a resident in a boarding home before the fifth anniversary of the date the person is convicted of any felony offense not listed in subsection (c) or any of the following non-felony offenses:

(1) An offense under V.T.C.A., Penal Code § 22.01 (assault), that is punishable as a Class A misdemeanor;

(2) An offense under V.T.C.A., Penal Code § 32.45 (misapplication of fiduciary property or property of a financial institution), that is punishable as a Class A misdemeanor or a felony;

(3) An offense under V.T.C.A., Penal Code § 32.46 (securing execution of a document by deception), that is punishable as a Class A misdemeanor or a felony;

(4) An offense under V.T.C.A., Penal Code § 37.12 (false identification as peace officer);

(5) An offense under V.T.C.A., Penal Code § 42.01(a)(7), (8), or (9) (disorderly conduct); or

(6) A conviction under the laws of another state, federal law, or the Uniform Code of Military Justice for an offense containing elements that are substantially similar to the elements of an offense listed in this subsection.

(e) The permit holder must ensure that all employees, including volunteers who are not residents, have had a background check of conviction records, pending charges and disciplinary board decisions completed within the past two (2) years, and is repeated every year thereafter, and that the individual is not disqualified under the provisions of subsections (c) and (d) of this section. The permit holder will immediately discharge any employee or volunteer whose criminal history check reveals conviction of a crime that bars employment or volunteer service.
(Ord. No. 2012-12-13-0971, § 1, 12-13-12)

Sec. 16-970. Assessment and periodic monitoring of residents.

(a) The permit holder, or a designee of the permit holder, shall:

(1) Complete and document an initial assessment of a resident within ten (10) days after the date the resident begins residing at the facility, and conduct periodic monitoring thereafter, to ensure that the resident is capable of self-administering medication and completing basic elements of personal care as listed in subsections (b) and (c). The initial assessment will be used as a tool to determine if the needs of the resident can be provided by a boarding home facility or if the resident needs personal care services or medication administration that cannot be provided by the boarding home facility.

(2) Complete and document an annual assessment and conduct periodic monitoring to ensure that each resident is capable of self-administering medication and completing basic elements of personal care as listed in subsection (b) and (c). The annual assessment will be used as a tool to determine if the needs of the resident can continue to be provided by a boarding home facility or if the resident needs personal care services or medication administration that cannot be provided by the boarding home facility.

(b) Elements of the self-administration of medication to be assessed include the ability to perform each of the following tasks with little assistance:

(1) Identifying the name of the medication.

(2) Providing a reason for the medication (the owner or operator cannot force the resident to disclose a health condition that is the basis for the medication if the resident refuses).

(3) Distinguishing color or shape.

(4) Preparing the correct number of pills (dosage).

(5) Confirming the time to take medications.

(6) Reading labels.

(c) Elements of personal care to be assessed by the permit holder include but are not limited to the resident's ability to do the following:

(1) Eat independently.

(2) Bathe without assistance.

(3) Dress without assistance.

(4) Move and transfer independently.

(d) As a result of the initial assessment, or a subsequent annual assessment, if a permit holder finds that a resident is unable to perform basic elements of personal care as listed in subsection (c), or is in a state of self-neglect, and believes that a higher level of care is needed, the owner or operator shall:

(1) Contact the state department of family and protective services by phoning the state-wide intake division at 1-800-252-5400;

(2) Notify the resident's guardian or legally authorized representative;

(3) Notify a family member designated by the resident, the legal guardian, or the legally authorized representative; and

(4) Contact the appropriate health or human services authority to advise that the resident requires services beyond what can be provided by the boarding home facility.

(c) A state of self-neglect does not exist if the resident receives outside professional services that meet the resident's need for personal care or self-administration of medication. In these cases, the resident can remain in the boarding home facility provided that all needs for personal care and self-administration of medication are met.
(Ord. No. 2012-12-13-0971, § 1, 12-13-12)

DIVISION 5. ENFORCEMENT

Sec. 16-971. Violations; penalty.

(a) A permit holder, employee, or other person who violates any provision of this chapter, or who fails to perform a duty required by this chapter, commits an offense.

(b) An offense under this chapter is punishable by a fine not to exceed two thousand dollars ($2,000.00).

(c) A separate offense occurs each day or part of a day that the violation is committed, continued, or permitted.

(d) Emergency closing order.

(1) If the director finds a boarding home facility operating in violation of the standards prescribed by this chapter and the violations create an immediate threat to the health and safety of a resident in the facility, the director may order immediate closing of all or part of the facility.

(2) The order of immediate closure under subsection (d)(1) is effective immediately on providing written notice of the order to the owner or operator by facsimile, email or hand-delivery.

(3) The order of closure of all or part of a boarding home facility is valid for ten (10) days after its effective date.

(4) If the permit holder does not promptly relocate the residents of the boarding home facility upon receiving the order of closure for that facility, the city shall provide for the relocation of those residents. If possible, the city will relocate those residents to a boarding home facility in the city for which there is a current valid permit. The relocation may not be to a facility with a more restrictive environment unless all other reasonable alternatives are exhausted. The director is authorized to seek to recover the cost of relocating the residents from the owner and operator of the closed facility.

(5) The director and the building related and fire codes appeals and advisory board, or other appropriate technical board or committee, shall expedite any hearing or decision involving an emergency closing order issued under this section.

(e) The city attorney may petition a district court or a county court at law for civil penalties and for injunctive relief to restrain a continuing violation of the standards or permit requirements for a boarding home facility under this chapter if the violations create an immediate threat to the health or safety of the facility residents.

(f) The city attorney may petition a district court or a county court at law for civil penalties and for injunctive relief to restrain the continuing operation of a facility that is providing services inconsistent with those prescribed by this article and state law until such time as said facility becomes appropriately licensed by the state or meets the requirements to obtain a permit under this article.

(g) The remedies and procedures in this section and in other laws are cumulative law, and the use of any particular remedy or procedure does not prevent the enforcement of any other law.
(Ord. No. 2012-12-13-0971, § 1, 12-13-12)

Secs. 16-972—16-1000. Reserved.

ARTICLE XXI. IN-HOME CAREGIVER LICENSING REGULATIONS*

Sec. 16-1001. Short title and purpose.

(a) This article may be known and cited as "In-Home Caregiver Licensing Regulation."

(b) The purpose of this article is to protect the welfare of the elderly and disabled citizens of the city who require in-home health and personal assistance services, by requiring a criminal background check and a license for those persons who provide these services, who are not otherwise licensed by the state, and to prevent these vulnerable citizens from being abused, neglected or exploited by their in-home caregivers.
(Ord. No. 2012-10-11-0809, § 1, 10-11-12)

*__Editor's note—__Ord. No. 2012-10-11-0809, § 1, adopted October 11, 2012, enacted provisions intended for use as article 21, §§ 21-01—21-12. To preserve the style of this Code, and at the discretion of the editor, said provisions have been redesignated as article XXI, §§ 16-1001—16-1012.

__Note—__This article shall take effect January 1, 2013.

Sec. 16-1002. Definitions.

As used in this article:

Assistance with self-administration of medication means and is limited to:

(1) Assisting a patient by reminding the patient to take medication;

(2) Opening and removing medications from a container;

(3) Placing medication in a patient's hand or in or on a clean surface such as a pill cup or medication reminder box for the patient's self-administration; and

(4) Reminding a patient when a prescription medication needs to be refilled.

Caregiver means a person who provides in-home personal assistance and home health services who is exempt from the licensing requirement under V.T.C.A., Health and Safety Code § 142.003(4) as "an individual whose permanent residence is in the patient's residence" or V.T.C.A., Health and Safety Code § 142.003(13) as "an individual hired and paid directly by the patient or the patient's family or legal guardian to provide home health or personal assistance services."

Conviction means a conviction in a federal court or a court of any state or foreign nation or political subdivision of a state or foreign nation that has not been reversed, vacated, or pardoned. "Conviction" includes disposition of charges against a person by community supervision, including probation and deferred adjudication.

Director means the director of the department designated by the city manager, or the city manager's designee, to enforce and administer this

article and includes representatives, agents, and department employees designated by the director.

Disabled person means an individual who by reason of physical or mental disease, defect or injury is substantially unable to protect himself from harm or to provide food, shelter or medical care for himself.

Elderly person means an individual sixty-five (65) years of age or older.

Home health service has the meaning given that term in V.T.C.A., Health and Safety Code § 142.001(13).

Patient means an elderly or disabled person.

Personal assistance service has the meaning given that term in V.T.C.A., Health and Safety Code § 142.001(22).

Personal care has the meaning given that term in V.T.C.A., Health and Safety Code § 142.001(22-a).
(Ord. No. 2012-10-11-0809, § 1, 10-11-12)

Sec. 16-1003. Registration required.

(a) A person commits an offense if the person acts or provides services as a caregiver to a patient under this article without a license.

(b) An offense under this article is punishable by a fine of not more than five hundred dollars ($500.00). A separate offense occurs each day or part of a day that the violation is committed.

(c) A culpable mental state is not required for the commission of an offense under this article and need not be proved.

(d) It is an affirmative defense to prosecution, with the same effect as V.T.C.A., Penal Code § 2.04, that the caregiver is related within the third degree by consanguinity or affinity to the client, as determined under V.T.C.A., Government Code Ch. 573.
(Ord. No. 2012-10-11-0809, § 1, 10-11-12)

Sec. 16-1004. License application.

To obtain a license to act or provide services as a caregiver, a person must submit an application to the director on a form provided for that purpose. The application must include the following:

(1) The name, street address, mailing address, e-mail address, telephone number, a legible copy of the driver's license or other official state or federal identification card, and date of birth of the applicant. The street address may not be the address of the patient unless the applicant actually resides full-time at this location;

(2) A statement whether the applicant has ever been convicted or placed on community supervision, including probation and deferred adjudication, and including the offense and the date; and

(3) A non-refundable application fee of fifty dollars ($50.00).
(Ord. No. 2012-10-11-0809, § 1, 10-11-12)

Sec. 16-1005. Notification of change of information.

A caregiver shall notify the director within ten (10) days after any material change in the information contained in the application for a license to act or provide services as a caregiver, including, but not limited to any change of address and any convictions as defined by this article.
(Ord. No. 2012-10-11-0809, § 1, 10-11-12)

Sec. 16-1006. Issuance and denial of license.

(a) The director shall issue a license to a person to act or provide services as a caregiver if the director determines:

(1) The license application is complete;

(2) The applicant is not disqualified under section 16-1012 (criminal history) of this chapter; and

(3) The applicant has not made a false statement as to a material matter in the application for a license.

(b) The director shall deny a license if the director determines the applicant does not meet all the requirements of subsection (a). The director, at the time he denies a license, shall notify the applicant in writing by certified mail, return receipt requested, that the license is denied. The

notice must include the reason for the denial, and a copy of section 16-1008 regarding the procedure for appeals.
(Ord. No. 2012-10-11-0809, § 1, 10-11-12)

Sec. 16-1007. Revocation of license.

(a) The director shall revoke a license issued to a caregiver if the director determines that:

(1) The caregiver currently fails to meet the criminal history qualifications of section 16-1012 of this article; or

(2) The caregiver intentionally made a false statement as to a material matter in the application or in a hearing concerning the license.

(b) The director, at the time he revokes a license, shall notify the caregiver in writing by certified mail, return receipt requested, that the license is revoked. The notice must include the reason for the proposed revocation, and a copy of section 16-1008 regarding the procedure for appeals.
(Ord. No. 2012-10-11-0809, § 1, 10-11-12)

Sec. 16-1008. Procedure for appeals.

(a) An applicant or caregiver shall have ten (10) business days from the date of receipt of notice from the director of the denial or revocation of a license to appeal such decision to a hearing officer. The appeal shall be in writing, accompanied by an appeal fee of one hundred dollars ($100.00), and directed to the director of administrative services, San Antonio Police Department. If no appeal is made to a hearing officer within ten (10) business days after receipt of the director's decision, the director's decision shall become final.

(b) Upon timely notice of appeal, the city manager, or the city manager's designee, shall appoint a hearing officer for such appeals. The applicant or caregiver shall be given an opportunity to appear before said officer and present to him any information, including witnesses, which may be of assistance in arriving at a decision on the matter. Such hearing officer is hereby authorized to affirm or reverse the director's decision, and the decision of the hearing examiner shall become final.

(c) Upon denial or revocation of a license by the director, the applicant or caregiver shall immediately cease acting or providing services as a caregiver.
(Ord. No. 2012-10-11-0809, § 1, 10-11-12)

Sec. 16-1009. Expiration and renewal of license.

(a) A license to act or provide services as a caregiver expires one year after the date of issuance.

(b) A caregiver shall apply for renewal at least thirty (30) days before the expiration of the license by submitting an application required under section 16-1004 of this chapter.

(c) The director shall follow the procedures set forth in section 16-1006 when determining whether to renew a license.
(Ord. No. 2012-10-11-0809, § 1, 10-11-12)

Sec. 16-1010. Non-transferability of license.

A license to act or provide services as a caregiver is non-transferrable.
(Ord. No. 2012-10-11-0809, § 1, 10-11-12)

Sec. 16-1011. Duty to carry license.

A caregiver, while acting or providing services under this article, shall carry the license on his or her person. This license must be presented for examination upon request to the director, to a peace officer, or to the client's family or legal guardian.
(Ord. No. 2012-10-11-0809, § 1, 10-11-12)

Sec. 16-1012. Criminal history.

(a) A person may not be issued a license as a caregiver if the person has been convicted of any of the following offenses:

(1) V.T.C.A., Health and Safety Code §§ 481.112, 481.1121, 481.1122, 481.113, 481.114, 481.122 (illegal manufacture or delivery of a controlled substance);

(2) V.T.C.A., Penal Code Ch. 19 (criminal homicide);

(3) V.T.C.A., Penal Code Ch. 20 (kidnapping and unlawful restraint);

(4) V.T.C.A., Penal Code § 21.02 (continuous sexual abuse of young child or children);

(5) V.T.C.A., Penal Code § 21.08 (indecent exposure);

(6) V.T.C.A., Penal Code § 21.11 (indecency with a child);

(7) V.T.C.A., Penal Code § 21.12 (improper relationship between educator and student);

(8) V.T.C.A., Penal Code § 21.15 (improper photography or visual recording);

(9) V.T.C.A., Penal Code § 22.01 (assault) as amended, that is punishable as a Class A misdemeanor;

(10) V.T.C.A., Penal Code § 22.011 (sexual assault);

(11) V.T.C.A., Penal Code § 22.02 (aggravated assault);

(12) V.T.C.A., Penal Code § 22.021 (aggravated sexual assault);

(13) V.T.C.A., Penal Code § 22.04 (injury to a child, elderly individual or disabled individual);

(14) V.T.C.A., Penal Code § 22.041 (abandoning or endangering child);

(15) V.T.C.A., Penal Code § 22.05 (deadly conduct);

(16) V.T.C.A., Penal Code § 22.07 (terroristic threat);

(17) V.T.C.A., Penal Code § 22.08 (aiding suicide);

(18) V.T.C.A., Penal Code § 25.031 (agreement to abduct from custody);

(19) V.T.C.A., Penal Code § 25.08 (sale or purchase of a child);

(20) V.T.C.A., Penal Code § 28.02 (arson);

(21) V.T.C.A., Penal Code § 29.02 (robbery);

(22) V.T.C.A., Penal Code § 29.03 (aggravated robbery);

(23) V.T.C.A., Penal Code § 30.02 (burglary);

(24) V.T.C.A., Penal Code Ch. 31 (theft);

(25) V.T.C.A., Penal Code § 32.45 (misapplication of fiduciary property or property of a financial institution);

(26) V.T.C.A., Penal Code § 32.46 (securing execution of a document by deception);

(27) V.T.C.A., Penal Code § 32.53 (exploitation of child, elderly individual or disabled individual);

(28) V.T.C.A., Penal Code § 33.021 (online solicitation of a minor);

(29) V.T.C.A., Penal Code § 34.02 (money laundering);

(30) V.T.C.A., Penal Code § 35A.02 (Medicaid fraud);

(31) V.T.C.A., Penal Code § 42.09 (cruelty to animals);

(32) V.T.C.A., Penal Code § 37.12 (false identification as peace officer); or

(33) V.T.C.A., Penal Code § 42.01(a)(7), (8), or (9) (disorderly conduct involving a firearm).

(b) A person may not be issued a license as a caregiver if the person has been convicted of an offense under the laws of another state, federal law, or the Uniform Code of Military Justice containing the elements that are substantially similar to the elements of an offense listed in subsection (a).
(Ord. No. 2012-10-11-0809, § 1, 10-11-12)

Secs. 16-1013—16-1099. Reserved.

ARTICLE XXII. SHORT TERM RENTALS

DIVISION 1. GENERAL

Sec. 16-1100. Purpose.

The purpose of this article is to establish regulations for the protection of the health and safety of occupant(s) of short term rental proper-

ties, and to protect the integrity of the neighborhoods in which short term rental properties operate.
(Ord. No. 2018-11-01-0858, § 2, 11-1-18; Ord. No. 2024-06-13-0433, § 2, 6-13-24)

Sec. 16-1101. Definitions.

As used in this article the following words and phrases shall have the definitions ascribed to them by this section:

Agent means a person designated by the short term rental operator in lieu of themselves as the 24-hour emergency contact for a lawfully operating short term rental

Bed and Breakfast shall be as defined in City Code of San Antonio, Texas, chapter 35, appendix 'A'.

City housing incentive means any monetary payment or concession provided by the City of San Antonio which has the expressed purpose of spurring or encouraging the development of housing, whether affordable or not, or redevelopment in the City of San Antonio.

Cooking facilities means a room or space designed to prepare meals. This space shall include, at a minimum, an operational refrigerator, microwave oven or stove, and sink. A hot plate shall not satisfy the requirement for a cooking facility.

Director means the director of development services and/or his designee.

Occupant means the person(s) who have lawfully obtained the exclusive use and possession of the short term rental property or portion thereof from its operator, and the guest(s) of such person(s).

Operator means any person who operates a short term rental, as defined in this article. For purposes of this article, a lessee of a unit, when expressly permitted in writing by owner, may serve as operator of a short term rental.

Operator occupied means a property lessee, as reflected in a valid lease agreement, and with the express permission of the property owner, who makes his or her legal residence at the site or in the unit, as evidenced by vehicle registration, or similar means.

Owner means the person or entity that holds legal and/or equitable title to the private property.

Owner occupied means a property owner, as reflected in title records, who makes his or her legal residence at the site or in the unit, as evidenced by homestead exemption, vehicle registration, or similar means.

Quiet hours means the hours between ten o'clock (10:00) p.m. and six o'clock (6:00) a.m., Sunday through Thursday, and between eleven o'clock (11:00) p.m. and six o'clock (6:00) a.m., Friday and Saturday. Noise shall not exceed sixty-three (63) decibels on residential zoned property as defined by chapter 35 (Unified Development Code), when measured from property under separate ownership.

Short term rental shall be as defined in City Code of San Antonio, Texas, chapter 35, appendix 'A'.

Short term rental permit means the permit issued by the city that identifies the subject property as a lawful short term rental, the short term rental permit number, the names and contact information of the owner, operator, and agent if applicable, and 24-hour emergency contact phone for at least one of the preceding.

Short term rental platform means a person or entity that provides a means through which an owner or operator may offer a dwelling unit, or portion thereof, for short term rental use, and from which the person or entity financially benefits.

Sleeping area means a room or space within a dwelling designed or used for sleeping, including a bedroom. Tents, hammocks, recreational vehicles and/or other vehicles and outdoor areas shall not be considered a sleeping area.
(Ord. No. 2018-11-01-0858, § 2, 11-1-18; Ord. No. 2024-06-13-0433, § 2, 6-13-24)

Sec. 16-1102. Authority of the director.

The director of development services (the "director") shall implement and enforce this chapter

and may by written order establish such procedures, not inconsistent with this chapter or other city ordinances, rules, or regulations, or any county, state, or federal laws or regulations, as the director determines are necessary to discharge any duty under this chapter.
(Ord. No. 2018-11-01-0858, § 2, 11-1-18; Ord. No. 2024-06-13-0433, § 2, 6-13-24)

Sec. 16-1103. Permit required.

(a) No short term rental shall operate within the City of San Antonio without a current valid short term rental permit.

(b) All individual units having cooking, sleeping, and bathing facilities, within common buildings, regardless of ownership, shall require a separate, individual permit for each unit intended to be used as a short term rental.

(1) On residential properties which are not multi-family buildings (e.g., duplex, fourplex), a single individual unit, which is not owner occupied, but which is located on the same land parcel as an owner-occupied unit of common ownership as the non-owner occupied units shall be considered a (Type 1) short term rental unit. Additional non-owner occupied units in excess of this allowance on the same land parcel shall be considered (Type 2) short term rental units.

(2) In a multi-family building, a single individual unit, which is not owner occupied, but which is located on the same land parcel as an owner-occupied unit of common ownership as the non-owner occupied units shall be considered a (Type 1) short term rental unit. Additional non-owner occupied units in excess of this allowance on the same land parcel shall be considered (Type 2) short term rental units.

(3) No property shall be eligible to obtain short term rental permits by utilizing multiple block faces (e.g. a corner lot). All units on a lot must be assessed as being solely on one (1) block face. The street for which the STR unit is addressed on will determine the appropriate block face.

(c) All platforms that display short term rental listings for properties in San Antonio shall require that all owners using the platform include a permit number in any listing for a short term rental on the platform. The city shall notify and request that a Short Term Rental Platform remove a listing from the platform if the short term rental listing lacks a permit number or the permit number is invalid, expired, or has been revoked. The notification must identify the listing(s) to be removed by its URL and state the reason for removal. The platform shall remove the listing within ten (10) business days.
(Ord. No. 2018-11-01-0858, § 2, 11-1-18; Ord. No. 2024-06-13-0433, § 2, 6-13-24)

Sec. 16-1104. Short term rental permit.

(a) *Application.* Application for a short term rental permit shall be made either in writing or electronically. Upon submission of a complete application, the director of development services, or his designee, shall determine whether a unit is to be considered a (Type 1) or (Type 2). Providing false documentation shall result in a denial of the application and a one (1) year denial for subsequent applications for STR permits for that owner at that property. Application for a short term rental permit shall be accompanied by a one-time application fee of three hundred dollars ($300.00) for Type 1 and four hundred fifty dollars ($450.00) for Type 2 and shall include the following information, at a minimum:

(1) A list of all owners, operators, and agents (if applicable) of the short term rental including names, addresses, current email address(es) of owner/operator, and telephone numbers.

(2) A sketch or narrative describing the location of the available parking spaces as required by subsection 16-1108(b), Parking.

(3) A sketch of the floor plan, which identifies sleeping areas, proposed maximum number of guests, evacuation route(s), location of fire extinguisher(s). If the

short term rental has outdoor amenities, include the posted notice of Quiet Hours with the STR Permit.

(4) The name, address and 24-hour telephone numbers of a contact person, who is the owner, operator, or designated agent and who shall be responsible and authorized to respond to complaints concerning the use of the short term rental.

(5) A sworn, self certification that the owner of the short term rental has met and will continue to comply with the standards and other requirements of this article including, but not limited to: maintenance of insurance coverage of the unit or portions thereof in accordance with this article and obtaining annual independent inspections of required fire extinguishers in compliance with the city's current fire code.

(b) *Completeness of application.* Applications shall not be considered complete until all documentation required under this article has been submitted, and until the full application and permit fees have been paid. Incomplete applications will not be accepted. Failure to provide all required information within forty-five (45) calendar days of submittal will result in a denial of the short term rental application and will forfeit the permit fee.

(c) *Acknowledgement by applicant.* In connection with submission of the application, each applicant shall acknowledge that any permit granted by director under this article does not supersede any property-specific restrictions against short term rentals that may exist under law, agreement, lease, covenant or deed restriction.
(Ord. No. 2018-11-01-0858, § 2, 11-1-18; Ord. No. 2024-06-13-0433, § 2, 6-13-24)

Sec. 16-1104.01. Hotel occupancy tax ("HOT").

(a) Pursuant to section 31-70 of City Code, the owner or operator shall submit a monthly report of HOT to the City of San Antonio, even if the short term rental unit was not rented during any such month or participates on a platform that collects on their behalf.

(b) Short term rentals are required to report HOT on or before the last day of the calendar month, following the reporting period. If you have no revenue for a reporting period, enter "0". Failure to report online HOT will result in penalty and interest fees and permit revocation. Failure to report zero revenue will result in penalty and interest fees and may result in permit revocation. Should the last day to file fall on a weekend or City of San Antonio official holiday, the report must be received no later than the next scheduled City workday, or penalty and interest will be applied.

(c) A short term rental platform that collects state HOT in the City of San Antonio shall collect and remit to the City of San Antonio the applicable HOT for the City of San Antonio and Bexar County, as calculated on the amount the short term rental guest pays to the short term rental owner/operator.

(d) A short term rental platform that does not collect state HOT in the City of San Antonio is not required to collect and remit to the City of San Antonio the applicable HOT for the City of San Antonio and Bexar County. A short term rental that does not have a short term rental platform collect and remit HOT to the City of San Antonio on their behalf is still responsible for collection and remittance of the applicable HOT for the City of San Antonio and Bexar County to the City of San Antonio.

(e) All short term rentals located outside of the San Antonio city limits but inside Bexar County shall report and remit Bexar County HOT to the City of San Antonio.

(f) In the event that the City of San Antonio no longer collects HOT on behalf of Bexar County, the city will provide a ninety-day notice to all short term rental platforms.

(g) This section shall take effect ninety (90) days after enactment.
(Ord. No. 2024-06-13-0433, § 2, 6-13-24)

Sec. 16-1105. Expiration and renewal of permit.

(a) Unless revoked by Director earlier pursuant to this article, a permit to operate a short term rental expires, as follows:

(1) (Type 1) permits expire three (3) years after the date of issuance.

(2) (Type 2) permits expire three (3) years after the date of issuance.

(b) A permit holder shall apply for renewal prior to the expiration of the permit on a form provided by the director. The permit holder shall update the information contained in the original permit application required under section 16-1104 of this article or any subsequent renewals under this section, if any of the information has changed. The permit holder shall sign a statement affirming that there is either no change in the information contained on the original permit application and any subsequent renewal applications, or that any information that has been updated is accurate and complete. Complete applications for renewal received after the expiration of a current permit shall be treated as applications for a new permit, as described in section 16-1104.

(c) The director shall follow the procedures set forth in this article when determining whether to renew a permit.

(d) The fee for the renewal of a permit to operate a short term rental is three hundred dollars ($300.00) for Type 1 and four hundred fifty dollars ($450.00) for Type 2.
(Ord. No. 2018-11-01-0858, § 2, 11-1-18; Ord. No. 2024-06-13-0433, § 2, 6-13-24)

Sec. 16-1106. Non-transferability.

A permit to operate a short term rental is not transferable to another owner, unit or location. A permit holder may update the operator, agent, or 24-hour emergency contact name and contact information without submitting a new permit application.
(Ord. No. 2018-11-01-0858, § 2, 11-1-18; Ord. No. 2024-06-13-0433, § 2, 6-13-24)

Sec. 16-1107. Tiers.

(a) Short term rental (Type 1) regulations: This subsection applies to a short term rental use that is rented for periods of less than thirty (30) consecutive days; and property is owner or operator occupied.

A short term rental use under this section may include the rental of less than an entire dwelling unit, if the following conditions are met:

(1) A sleeping area must at a minimum include the shared use of a full bathroom;

(2) The owner is generally present at the licensed short term rental property;

(3) May not operate without a permit as required by section 16-1103, permit required.

(b) Short term rental (Type 2) regulations. This subsection applies to a short term rental that is rented for periods of less than thirty (30) consecutive days; and is not owner or operator occupied.

A short term rental use under this section may not:

(1) Include the rental of less than an entire dwelling unit;

(2) Operate without a permit as required by section 16-1103, permit required.

If a permit for a short term rental (Type 2) use meets the requirements for renewal under section 16-1105 (expiration and renewal of permit) and the property received a city-issued notice of violation related to the life, health, or public safety of the structure, the property is subject to an inspection by the building official to determine if the structure poses a hazard to life, health, or public safety.

(c) Accessory dwelling units used as short-term rentals must comply with chapter 35, section 35-371.
(Ord. No. 2018-11-01-0858, § 2, 11-1-18; Ord. No. 2024-06-13-0433, § 2, 6-13-24)

Sec. 16-1108. General standards.

All short term rentals permitted pursuant to this chapter are subject to the following standard requirements:

(a) *Occupancy.* The maximum number of persons, as indicated on the approved permit, allowed to reside in a short term rental shall be defined by the San Antonio Property Maintenance Code.

(b) *Parking.* Shall comply with City Code Chapter 35, Unified Development Code with respect to required parking (see section 35-526). No required parking shall be permitted within public right-of-way or access easements as defined by City Code (see section 35-526) and state regulations regarding parking. The yard(s) shall not be utilized to provide the necessary parking. Properties that are unable to provide at least one (1) off street parking space may submit an application for a parking adjustment to the board of adjustment.

(c) *Insurance.* The applicants shall keep, at a minimum, an insurance policy sufficient for personal injury liability of guests.

(d) *Life safety.*

(1) Short term rentals and structures where they are located shall conform to all applicable city-adopted codes, regulations, and ordinances.

(2) A 2A:10B:C type fire extinguisher (a standard five-pound extinguisher) shall be properly mounted within 75 feet of all portions of the short term rental on each floor.

(3) Smoke and carbon monoxide detectors shall be installed and conform to all applicable city-adopted codes, regulations, and ordinances.

(4) Every sleeping area shall have at least one operable emergency escape and rescue opening per all applicable city-adopted codes, regulations, and ordinances.

(5) An evacuation plan shall be posted conspicuously in each unit or permitted sleeping area.

(6) Every bedroom/sleeping area in a short term rental that does not comply with this section shall not be used as a sleeping area and where equipped with a door, shall remain locked at all times when the dwelling is being used as a short term rental. Such a non-compliant sleeping area shall not be included in the maximum occupancy calculation as defined by the San Antonio Property Maintenance Code for the short term rental. The owner/operator shall notify every occupant, in writing, that the non-compliant sleeping area may not be used for sleeping.

(e) *Conduct on premises.*

(1) Short term rental operators shall be responsible for informing their occupants of all relevant city codes and occupants' liability for violations of same.

(2) Excessive noise or other disturbance outside the short term rental is prohibited per chapter 21, article III of the Code of Ordinances. This includes, but is not limited to, decks, portals, porches, balconies, patios, hot tubs, pools, saunas or spas. For short term rentals that provide outdoor amenities, the operator shall provide notice in the outdoor space of required quiet hours, being the hours between ten o'clock (10:00) p.m. and six o'clock (6:00) a.m., Sunday through Thursday, and between eleven o'clock (11:00) p.m. and six o'clock (6:00) a.m., Friday and Saturday.

(3) No overnight sleeping outdoors or outdoor sleeping spaces for rent.

(f) *Signage.*

(1) Signage shall be in compliance with the city's current sign code as well

as any design, design review, and/or approval requirements for the zoning district in which the property is located.

(2) All advertisements, including online or proprietary (website, app, or other technology) will include the short term rental permit number within the description or body for public reference.

(g) *Tenant indoor notification.* The operator shall post in a conspicuous location of the dwelling the following minimum information:

(1) Maximum number of occupants.

(2) Location of required off-street parking, other available parking and prohibition of parking on landscaped areas.

(3) Quiet hours and noise restrictions as defined per chapter 21, article III of the Code of Ordinances.

(4) Restrictions of outdoor facilities.

(5) Twenty-four-hour contact person and phone number.

(6) Property cleanliness requirements.

(7) Trash pick-up requirements, including location of trash cans.

(8) Flooding hazards and evacuation routes.

(9) Emergency numbers.

(10) Notice that failure to conform to the occupancy and parking requirements is a violation of the City Code and occupant or visitor can be cited.

(11) Short term rental permit, health department permit, and/or any other required permits, if applicable.

(12) Hotel occupancy tax registration.

(h) *Emergency contact.* The owner/operator of the short term rental shall provide the city with a twenty-four-hour contact number for the operator or a designated agent per section 16-1104, and shall provide timely updates to city of any changes thereto. Should a city official respond to the short term rental and issue a citation for any violation of city ordinances, the operator or their agent shall be called by the city official. The operator or their agent shall attempt to contact the occupants within one hour of the call to address the occupants about the complaints. Should a second complaint be filed and citation issued to any part of the occupants or guests, the owner/operator must take timely appropriate steps, in accordance with the individual rental agreement, to assure future complaints do not occur.

(Ord. No. 2018-11-01-0858, § 2, 11-1-18; Ord. No. 2024-06-13-0433, § 2, 6-13-24)

Sec. 16-1109. Inspections.

To ensure continued compliance with the requirements of this section a short term rental may be inspected in the following methods:

(a) Inspections upon complaint or suspicion of a violation. The city may perform inspections when a violation is reported or suspected in accordance with established code enforcement procedures.

(Ord. No. 2018-11-01-0858, § 2, 11-1-18; Ord. No. 2024-06-13-0433, § 2, 6-13-24)

Sec. 16-1110. Enforcement/penalty.

(a) A person commits an offense under this article if that person owns or operates a short term rental in the city without a valid permit.

(b) Short term rental permits shall be revoked if three or more citations are accepted by the municipal court over three separate occasions, and are issued at a permitted property over a rolling three-year period, whether the citations are issued to the operator or any occupants. Subsequent findings of not guilty or not liable shall not be considered against the owner/operator. Failure to provide updated information to the city regarding designated agent or responsible party shall be a violation of this section.

(c) Violation of any section of this article shall constitute an offense resulting in permit revocation in accordance with subsection 16-1111, revocation procedures in addition to administrative, criminal and/or civil adjudication.

(d) Failure to timely pay any applicable hotel occupancy tax is a violation of this article, and shall result in permit revocation if arrearage is not paid within ninety (90) days of the issuance of a delinquency notice, in accordance with subsection 16-1111, revocation procedures.

(e) Failure to successfully complete the renewal process of a short term rental permit is considered a violation of this article.

(f) The provisions of this subsection are in addition to and not in lieu of any administrative, criminal, or civil prosecution or penalties as provided by local and state laws.

(g) Violation of the terms and conditions of a short term rental permit under this article shall be punishable by a fine of not less than two hundred dollars ($200.00) but not more than five hundred dollars ($500.00) per occurrence. Penalties for other violations of the City Code shall be as applicable. Each day a violation of this article continues shall be considered a separate offense. Each day that a unit is occupied in violation of this article shall be considered a separate offense, and, upon conviction, shall be subject to a minimum fine of two hundred dollars ($200.00) to a maximum fine of five hundred dollars ($500.00) per violation, per day.

(h) For each day any violation of this section occurs it shall constitute a separate offense and is separately punishable, but may be joined in a single prosecution.

(i) Anyone who violates any provision of this article shall be subject to prosecution in administrative, criminal and/or civil courts, under all applicable local and state laws, and will be strictly accountable for any penalties and punishments accrued therefrom.

(1) Criminal enforcement: A violation of this article is a strict liability offense, and no mental state is necessary for proof of the defendant's culpability. A violation of this article is a class C misdemeanor offense. Upon finding of culpability, a person shall be fined an amount not less than one hundred dollars ($100.00), nor more than five hundred dollars ($500.00). Each day in which a violation occurs shall constitute a separate violation.

(2) Alternative adjudication; Administrative enforcement: All violations of the provisions of this article and of the rules and regulations established by the director may be enforced by administrative adjudication pursuant to chapter 20, article II, City Code of Ordinances.

(3) Civil enforcement: Violations of the provisions of this article which rise to the level of a public nuisance will be subject to injunctive relief in state district court.

(j) Compliance meeting:

(1) Upon receipt of numerous complaints or complaints of a habitual nature, the director may require a meeting with the owner/operator about whether the use of the short term rental has become a problem property and to discuss immediate compliance with the laws of the state and city.

(2) Written notice to meet with the director shall be issued upon documentation provided which tend to show that a short-term rental may be a problem property.

(3) Indication that a location is a problem property will be based upon a review of documents showing the same including but not limited to, police and code calls for service, 311 calls, police reports, gatherings that cause a public disturbance, and noise complaints.

(4) Problem property is defined here as a location where regular or habitual disturbances of quiet enjoyment or violations of local and state laws have occurred.

(5) Refusal by an owner/operator to attend this meeting will be taken as evidence of culpability and may result in permit revocation.

(6) If the property is determined to be a problem property, the director may order

abatement actions to attain compliance with this article such as a mutually agreed upon written plan of action up to administrative revocation of the permit.

(Ord. No. 2024-06-13-0433, § 2, 6-13-24)

Sec. 16-1111. Revocation procedures.

The director is authorized to suspend or revoke a short term rental permit issued under the provisions of this article wherever the permit is issued in error, or on the basis of incorrect information supplied, or where it is determined that the building, structure, unit, or portion thereof is in violation of any ordinance or regulation or any of the provisions of this article. In addition, if any violations have been committed and not corrected within the time specified, the director shall begin the procedures to revoke the short term rental permit in accordance with the following:

(a) The director shall give written notice to the owner/operator regarding the revocation.

(b) If a short term rental permit is revoked, the owner/operator may not reapply for the same property for a period of twelve (12) months.

(Ord. No. 2018-11-01-0858, § 2, 11-1-18; Ord. No. 2024-06-13-0433, § 2, 6-13-24)

Sec. 16-1112. Appeals.

If the director denies issuance or renewal of a permit or suspends or revokes a permit issued under this article, the action is final unless the permit holder files a written appeal within twenty (20) calendar days to the director, or his/her designee. Appeals shall be heard by the board of adjustment (BOA) pursuant to section 35-481.

(Ord. No. 2018-11-01-0858, § 2, 11-1-18; Ord. No. 2024-06-13-0433, § 2, 6-13-24)

Sec. 16-1113. Other restrictions on use of premises.

This article does not create any right to operate a short term rental in violation of any lease, license, deed restriction, covenant, easement, or other legal encumbrance. Unless expressly authorized by the city, any property which has received a city housing incentive is ineligible to receive a permit to operate a (Type 2) short-term rental during the period of time that the property owner (or third party beneficiary, as the case may be) is eligible to receive a city housing incentive.

(Ord. No. 2018-11-01-0858, § 2, 11-1-18; Ord. No. 2024-06-13-0433, § 2, 6-13-24)

Sec. 16-1114. Nonconforming rights.

Short term rentals (Type 2) in existence as of date of ordinance. Properties which are used as short term rental (Type 2) establishments as of date of ordinance adopting this article that can also provide written confirmation from the City of San Antonio Finance Department showing proof of registration and proof that their account is not in arrears with the City of San Antonio Finance Department for hotel occupancy tax collection, may be registered as short term rental (Type 2) establishments at the department of development services and upon such registration will be granted a permit, subject to compliance with requirements under this article. Registration of the short term rental (Type 2) establishment shall be complete with receipt of applicable permit. Registration is not transferable to another owner, operator, or location. Nonconforming rights shall not transfer with change of owner, and any short term rental permit shall be revoked by director. Notwithstanding the foregoing, for purposes of this subsection, the conveyance or transfer of a unit or property ownership to a legal entity controlled by or providing equitable ownership of the prior owner shall not constitute a change in owner. It shall be the obligation of any new property owner to apply for a new short term rental permit under this article, and to provide evidence satisfactory to director that ownership did not change, in order to maintain nonconforming rights hereunder.

(Ord. No. 2018-11-01-0858, § 2, 11-1-18; Ord. No. 2024-06-13-0433, § 2, 6-13-24)

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Chapter 17

MASSAGE BUSINESSES*

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Sec. 17-2. Exceptions.

Article II. Operation Regulations

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Sec. 17-22. Revocation, suspension, refusal to apply or renew permits.
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Sec. 17-24. Transfer of permit prohibited.

Article IV. Penalty Provisions

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***Editor's note—**Ord. No. 2019-02-14-0122, adopted Feb. 14, 2018, repealed the former Ch. 17, §§ 17-1—17-48, and enacted a new Ch. 17, as set out herein. The former Ch. 17 pertained to similar subject matter and derived from Ord. No. 66723, §§ 1—21, 3-3-88.

Charter reference—Authority of city to license and regulate businesses, § 3, par. 13.

State law reference—Power of city to regulate massage establishments, Vernon's Ann. Civ. St. art. 2372v.

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ARTICLE I. GENERAL

Sec. 17-1. Definitions.

Unless the particular provision or the context otherwise requires, the definitions and provisions contained in this section shall govern the construction, meaning and application of words and phrases used in this chapter.

Chief shall mean the chief of police of the San Antonio Police Department or designee.

Department shall mean the San Antonio Police Department.

Employee shall mean any person, other than a masseur, who renders any service in connection with the operation of a massage business and who receives compensation from the operator of the business or from patrons.

Massage establishment shall mean a place of business that advertises or offers massage therapy or other massage services. The term includes a place of business that advertises or offers any service described by a derivation of the terms "massage therapy" or "other massage services" to include aromatherapy and spa services. Solo practitioners shall not be considered a business as herein defined.

Massage therapy shall mean the manipulation of soft tissue by hand or through a mechanical or electrical apparatus for the purpose of body massage. The term includes effleurage (stroking), petrissage (kneading), tapotement (percussion), compression, vibration, friction, nerve strokes, and Swedish gymnastics. Massage therapy may include the use of oil, lubricant, salt glows, heat lamps, hot and cold packs, jacuzzi, aromatherapy, and sauna. The terms "therapy" and "therapeutic" do not include diagnosis, the treatment of illness or disease, or any service or procedure for which a license to practice medicine, chiropractic, physical therapy, or podiatry is required by law.

Masseur shall mean any person who engages in the practice of massage therapy as herein defined and who is licensed by the Texas Department of Licensing and Regulation. The use of the masculine gender in this chapter shall include in all cases the feminine gender as well.

Patron shall mean any person who receives massage therapy under such circumstances that it is reasonably expected that he or she will pay money or give any other consideration therefor.

TDLR shall mean the Texas Department of Licensing and Regulation.
(Ord. No. 2019-02-14-0122, § 1, 2-14-19)

Sec. 17-2. Exceptions.

The provisions of this chapter shall not apply to hospitals, nursing homes, sanitariums or persons working under the direction of any such person or in any such establishment, nor shall this chapter apply to barbers, cosmetologists, chiropractors, physical therapists, assistant physical therapists or athletic trainers, lawfully carrying out their particular profession or business and holding a valid unrevoked license or certificate of registration issued by the state.
(Ord. No. 2019-02-14-0122, § 1, 2-14-19)

ARTICLE II. OPERATION REGULATIONS

The following regulations apply to all massage establishments, regardless as to whether the establishment is required to maintain a city permit.

Sec. 17-3. State license required.

All persons engaging in the business of massage therapy as defined in this chapter shall have an establishment and/or individual license as a masseur from the Texas Department of Licensing and Regulation, regardless as to whether the establishment itself is required to have a city permit.
(Ord. No. 2019-02-14-0122, § 1, 2-14-19)

Sec. 17-4. Display of licenses and permits.

The massage establishment shall prominently display its license from the Texas Department of Licensing and Registration at the entrance to the premises.

The massage establishment shall prominently display its City of San Antonio permit, if so required to obtain, at the entrance to the premises.

The individual masseur shall display his license issued by the Texas Department of Licensing and Regulation intended for massage therapy at the entrance to the premises.

The massage establishment shall prominently display its certificate of occupancy at the entrance to the premises.
(Ord. No. 2019-02-14-0122, § 1, 2-14-19)

Sec. 17-5. Hours.

No massage business shall be kept open for any purpose between the hours of 10:00 p.m. and 8:00 a.m.
(Ord. No. 2019-02-14-0122, § 1, 2-14-19)

Sec. 17-6. Entrances, exits.

No massage business shall have any entrance or any exit way providing a direct passageway to any other type of business or residence.
(Ord. No. 2019-02-14-0122, § 1, 2-14-19)

Sec. 17-7. Residential use prohibited.

No massage establishment shall be located in a zone other than commercial and shall not be in or used for residential purposes. The zoning unit of the development services department shall inspect for compliance on a regular basis.
(Ord. No. 2019-02-14-0122, § 1, 2-14-19)

Sec. 17-8. Health and safety.

All massage establishments operating under the authority of this chapter are declared to be public places, and shall not, during business hours, have the doors to the entrances or exits of such establishments locked or obstructed in any way so as to prevent free ingress and egress of persons; provided, however, such doors may be closed.

No metal door, or other solid barrier requiring action on the part of the person in charge to allow entry, shall be installed in front of the passageway to the interior of the massage establishment's area containing massage therapy rooms.

All requirements of the International Fire Code, International Building Code, and San Antonio Property Maintenance Code shall be adhered to and inspected on a regular basis.
(Ord. No. 2019-02-14-0122, § 1, 2-14-19)

Sec. 17-9. Sanitation.

(a) All premises used pursuant to this chapter shall be periodically inspected during regular business hours for safety of structure and adequacy of plumbing, ventilation, heating and illumination.

(b) Floors shall be free from any accumulation of dust, dirt and refuse. Well marked toilet and hand washing facilities for permittees, employees and patrons shall be provided. All walls, ceilings, windows and doors shall be free of dust, dirt, and refuse. In high humidity areas, including toilet rooms, shower rooms, steam rooms, locker rooms, and other such rooms, the walls, ceilings and floors shall be constructed or covered with a material that is smooth, non-absorbent and easily cleaned.
(Ord. No. 2019-02-14-0122, § 1, 2-14-19)

Sec. 17-10. Towels, cloths, sheets, robes.

Towels, cloths, sheets, and robes shall not be reused. Each patron shall be provided clean, unused linen, towels, cloths, sheets, and robes. Heavy white paper may be substituted for sheets provided that such paper is changed for every patron. Soiled linens and towels shall be stored in a clearly marked receptacle and shall not be reused prior to laundering.
(Ord. No. 2019-02-14-0122, § 1, 2-14-19)

Sec. 17-11. Animals prohibited.

No animals, exempting service animals, shall be permitted within a massage establishment at any time.
(Ord. No. 2019-02-14-0122, § 1, 2-14-19)

Sec. 17-12. Equipment.

All equipment used for the treatment of patrons at establishments regulated by this chapter shall be kept in a clean and sanitary condition, and the equipment shall be kept in good working order.
(Ord. No. 2019-02-14-0122, § 1, 2-14-19)

ARTICLE III. CITY PERMIT

Sec. 17-13. Establishments which must register with the city.

The requirements of this article shall apply only to those establishments that have the following violations:

(1) Business or individual charged with any violation of the Penal Code as listed in section 17-23; or

(2) Three (3) or more violations of the San Antonio Property Maintenance Code within a twelve (12) month period; or

(3) Failure to post the TDLR license for business, owner, and/or masseur.

If an establishment is charged with any of the violations above, it shall be required to obtain and maintain a city permit for a minimum of three (3) years.
(Ord. No. 2019-02-14-0122, § 1, 2-14-19)

Sec. 17-14. Determination that the establishment must register with the city.

(a) After notice of the chief's determination that the establishment must apply for a city permit, the establishment shall have ten (10) days from the mailing of the chief's decision to submit its permit application to the department pursuant to section 17-16.

(b) If the establishment disagrees with the chief's determination that the establishment must apply for a city permit, the establishment must send a protest letter to the chief within ten (10) days of the mailing of the chief's decision.

(1) The appeal will follow the administrative appellate process as described in section 17-24.

(c) Failure to submit the permit application registration paperwork within ten (10) days, or failure to protest the designation within the ten (10) days, will result in criminal charges against the business and the business owner, as well as administrative penalties including but not limited to financial penalties, revocation of the establishment's certificate of occupancy and issuance of a notice to vacate.
(Ord. No. 2019-02-14-0122, § 1, 2-14-19)

Sec. 17-15. Application for permit.

Any person required to have a city massage establishment permit shall file a written application with the chief on a form to be furnished by the department. The applicant shall submit the following:

(1) The type of ownership of the business, i.e. whether individual, partnership, corporation or otherwise;

(2) The name, style and designation under which the business or practice is to be conducted;

(3) The business address and all telephone numbers where the business is to be conducted;

(4) A complete list of the names and the residence addresses of all masseurs and employees in the business and the name and residence address of the manager or other person principally in charge of the operation of the business, if said employees and masseurs have been hired as of date of application. This information shall be updated once employees and masseurs have been hired;

(5) The following personal information concerning the applicant, if an individual; and concerning each stockholder holding more than ten (10) percent of the stock of the corporation, each officer and director, if the applicant is a corporation; and concerning the partners, including limited partners, if the applicant is a partnership; and the holder of any lien, of any nature, upon the business and/or the equipment used therein; and concerning

the manager or other person principally in charge of the operation of the business:

a. The name(s), complete residence addresses and residence telephone numbers;

b. Written proof of age;

c. Height, weight, color of hair and eyes, and sex;

d. Two (2) front face portrait photographs taken within thirty (30) days of the date of application and at least two (2) by two (2) inches in size;

e. The massage establishment or similar business history from five (5) years prior to the date of application, including but not limited to, whether or not such person previously operated in this or another city or state under license or permit; if any such license or permit had been denied, revoked or suspended and the reason therefor.

f. All criminal arrests other than misdemeanor traffic violations, fully disclosing the jurisdiction in which arrested and the disposition thereof;

g. Fingerprints obtained by applicant at a licensed facility and provided to the chief. Said fingerprints shall be retained on file by the chief.

(6) Such other information and identification as shall be deemed necessary by the chief to discover the truth of the matters hereinabove required to be set forth in the application;

(7) Documentation of personal background check conducted at a licensed facility.

(8) Written declaration by the applicant, under penalty of perjury, that the foregoing information contained in the application is true and correct, said declaration being duly dated and signed and submitted to the department.

(Ord. No. 2019-02-14-0122, § 1, 2-14-19)

Sec. 17-16. Approval.

(a) In the case of applications for massage establishment permits, the city shall cause to be conducted an investigation of the premises where the massage operations is to be carried out, for the purposes of assuring that such premises comply with all requirements as set forth in this chapter and the state, and with all regulations of public health, safety and welfare.

(b) Before any permit shall be issued under this article, the chief shall first sign his approval for the application.

(c) A new permit shall be required for any change in ownership.

(Ord. No. 2019-02-14-0122, § 1, 2-14-19)

Sec. 17-17. Issuance or denial of massage establishment permits.

The chief shall issue the city massage establishment permit within thirty (30) days of receipt of the application unless he finds that:

(1) The correct permit fee has not been tendered to the city concurrently with the application;

(2) The operation, as proposed by the applicant, if permitted, would not comply with all applicable laws, including but not limited to the city's building, zoning and health regulations;

(3) The applicant, if an individual, or any of the stockholders holding more than ten (10) percent of the stock of the corporation, or any of the officers and directors, if the applicant is a corporation, or any of the partners, including limited partners, if the applicant is a partnership, or the holder of any lien of any nature on the business and/or equipment used therein; and the manager or other person principally in charge of the operation of the business, have been convicted of a felony or misdemeanor involving moral turpitude within five (5) years of the submittal of application;

(4) The applicant has knowingly made any false, misleading or fraudulent state-

ments of fact in the permit application or in any document required by the city in conjunction therewith;

(5) The applicant has had a massage establishment, masseur or other similar permit or license denied, revoked or suspended by the city or any other state or local agency within five (5) years prior to the date of application;

(6) The applicant, if an individual, or any of the officers and directors if the applicant is a corporation, or any of the partners, including limited partners, if the applicant is a partnership, and the manager or other person principally in charge of the operation of the business, is not over the age of eighteen (18) years.

(Ord. No. 2019-02-14-0122, § 1, 2-14-19)

Sec. 17-18. Fees generally.

The permit fee for a massage establishment shall be seventy-five dollars ($75.00) per year made payable to the City of San Antonio and submitted to the department.
(Ord. No. 2019-02-14-0122, § 1, 2-14-19)

Sec. 17-19. Fees for separate locations.

Should any massage establishment have more than one (1) location where the business of massage is pursued, then a permit, stating both the address of the principal place of business and of the other location shall be issued by the chief on the tender of a permit fee of thirty-five dollars ($35.00) per permit per additional location. Permits issued for other locations shall terminate on the same date as that of the principal place of business, regardless of the date of issuance.
(Ord. No. 2019-02-14-0122, § 1, 2-14-19)

Sec. 17-20. Non-refundable fees

All fees required in this chapter are non-refundable. Payment of the fees shall be by cashier's check or money order and made payable to the City of San Antonio.
(Ord. No. 2019-02-14-0122, § 1, 2-14-19)

Sec. 17-21. Renewal of permits; updated list of employees and masseurs.

Each permit shall be valid for a term commencing upon issuance and shall expire on the 31st of December, unless sooner revoked or surrendered. Each permit shall be subject to renewal as of its expiration date by the filing of a renewal application with the chief. Renewal applications must be filed at least ninety (90) days prior to the expiration date of the permit that is to be renewed. The required background check shall be conducted on a yearly basis upon receipt of a renewal application.

Operator shall provide an updated list of personnel on a quarterly basis with masseur name and accompanying TDLR permit for the establishment and individual masseurs.
(Ord. No. 2019-02-14-0122, § 1, 2-14-19)

Sec. 17-22. Revocation, suspension, refusal to apply or renew permits.

Any of the following charged offenses in one (1) twelve (12) month period shall consist of grounds for revocation, suspension, or refusal to renew permits:

(1) Any of the following offenses as described in V.T.C.A., Penal Code, ch. 43:
   a. Prostitution;
   b. Promotion of prostitution;
   c. Aggravated promotion of prostitution;
   d. Compelling prostitution;
   e. Obscenity;

(2) Any of the following offenses as described in V.T.C.A., Penal Code, ch. 21:
   a. Public lewdness; or
   b. Indecent exposure; or

(3) Harboring a runaway child as described in V.T.C.A., Penal Code, ch. 25;

(4) Criminal attempt, conspiracy or solicitation to commit any of the above offenses;

(5) Human trafficking as described in V.T.C.A., Penal Code, ch. 20A;

(6) Human smuggling as described in V.T.C.A., Penal Code, ch. 20.05; or

(7) Any violation of this chapter.
(Ord. No. 2019-02-14-0122, § 1, 2-14-19)

Sec. 17-23. Denial, suspension and revocation of permits; hearing board; appeal; revocation of certificate of occupancy.

(a) A massage establishment permit may be denied, revoked or suspended by the chief in any case where any of the provisions of this chapter are violated, or where any employee of the permittee is or was engaged in any conduct which violates any of state laws or city ordinances at the establishment and the permittee has actual or constructive knowledge thereof. A criminal charge is sufficient to move forward with suspension or revocation regardless of whether there has been a conviction at that time.

(b) A board comprised of the chief, development services director or designee, and the city manager or designee shall hear all appeals in which a permit has been required, denied, revoked or suspended. The board shall have the authority to determine, after hearing, to uphold, modify, or reverse the decision by the chief.

(c) An appeal must be filed with the vice division of the department within ten (10) calendar days of the decision of the chief.

(d) The appellate hearing shall be held no later than twenty (20) business days from receipt of appeal.

(e) Written decision of the board shall be issued within ten (10) calendar days of hearing.

(f) The decision of the board shall be final.

(g) If a massage establishment permit is revoked, the establishment's certificate of occupancy shall be revoked pursuant to chapter 10, City of San Antonio Code of Ordinances.
(Ord. No. 2019-02-14-0122, § 1, 2-14-19)

Sec. 17-24. Transfer of permit prohibited.

No massage establishment permit is transferable, severable or divisible, and such authority as a permit confers shall be conferred only upon the permittee named therein.
(Ord. No. 2019-02-14-0122, § 1, 2-14-19)

ARTICLE IV. PENALTY PROVISIONS

Sec. 17-25. Penalty.

Any person who intentionally, knowingly or recklessly violates any provision of this chapter shall be deemed to be guilty of a misdemeanor and shall upon conviction be punished by a fine not exceeding five hundred dollars ($500.00).
(Ord. No. 2019-02-14-0122, § 1, 2-14-19)

Sec. 17-26. Authority to file suit.

The city attorney is hereby authorized to file suit to enjoin any violation of this chapter in addition to or in lieu of any other remedies set forth in this chapter or under any other applicable state statute to enjoin the violation of this chapter.
(Ord. No. 2019-02-14-0122, § 1, 2-14-19)

Sec. 17-27. Remedies.

Civil enforcement and criminal penalties are alternative remedies that may be sought independently of each other. Criminal prosecution may occur regardless of pursuit of civil remedies and vice versa.
(Ord. No. 2019-02-14-0122, § 1, 2-14-19)

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Chapter 18

MOBILE LIVING PARKS*

Article I. In General

Sec. 18-1. Short title.
Sec. 18-2. Interpretation and purpose.
Sec. 18-3. Definitions.
Sec. 18-4. Reserved.
Sec. 18-5. Authority of the director.
Sec. 18-6. General prohibition against mobile living unit being parked outside licensed parks.
Sec. 18-7. Nonconforming uses.
Sec. 18-8. Registration of park owner/manager/agent required.
Sec. 18-9. Records required.
Sec. 18-10. Rules of conduct for mobile living park.
Sec. 18-11. Duties of owner regarding health and safety.

Article II. Licenses and Inspections

Sec. 18-12. Licenses required.
Sec. 18-13. Application for license; plans required; late charge.
Sec. 18-14. License fee.
Sec. 18-15. Issuance or denial of license.
Sec. 18-16. Inspections; declaration of a public nuisance.
Sec. 18-17. Suspension and revocation of license.
Sec. 18-18. Comfort stations.
Sec. 18-19. Reserved.
Sec. 18-20. Appeals.
Sec. 18-21. Enforcement provisions.

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*__Editor's note—__Ord. No. 2017-12-14-1009, § 1, adopted December 14, 2017, amended chapter 18 in its entirety to read as herein set out. Formerly, chapter 18 pertained to similar subject matter, and derived from Ord. No. 85609, § 1, adopted February 13, 1997; Ord. No. 94584, §§ 21, 22, adopted September 20, 2001; Ord. No. 98187, § 17, adopted September 18, 2003, and Ord. No. 2008-09-11-0777C, § 3, adopted September 11, 2008.

__Cross references—__Buildings generally, § 6-1 et seq.; building-related codes, § 10-1 et seq.; fire prevention, § 11-1 et seq.; railroads, § 27-1 et seq.; streets and sidewalks, § 29-1 et seq.; taxicabs, § 33-16 et seq.; horse-drawn carriages, § 33-201 et seq.; water and sewers, § 34-1 et seq.; Unified Development Code, Ch. 35; flood plain provisions, § 35-4301 et seq.; subdivisions, mobile home parks, § 35-4401 et seq.

__State law reference—__Uniform Standard Code for Mobile Homes, Vernon's Ann. Civ. St. art. 5221f.

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ARTICLE I. IN GENERAL

Sec. 18-1. Short title.

This chapter 18 shall be known and captioned as "Mobile Living Parks."
(Ord. No. 2017-12-14-1009, § 1, 12-14-17)

Sec. 18-2. Interpretation and purpose.

The mobile living parks have the potential environmental, sanitation, and safety problems of a small, compact, permanent residential subdivision, while existing on the private property of the park owner, who is responsible for the upkeep of the private streets, roads, utilities, and common facilities throughout the park. The purpose of these regulations is to assure the park community residents an environment in accordance with the City Code, and to protect and promote the health, safety and general welfare of park residents and those living near the parks. If the standards or requirements of any other applicable provision of the City Code are more restrictive, the latter shall control.
(Ord. No. 2017-12-14-1009, § 1, 12-14-17)

Sec. 18-3. Definitions.

The definitions herein apply only to this chapter regulating park operations. They are related to the environmental, sanitation, and safety of its residents, with particular attention to water supply hookups and sewer line hookups, and are not to be used interchangeably with definitions in other ordinances in the unified development code, or in statutes of the state or the federal government.

For the purposes of this chapter, the following terms, phrases, words and their derivations shall have the following meanings:

Camping trailer shall mean a portable unit mounted on wheels and constructed of collapsible partial side walls which fold for towing by another vehicle and unfold to provide living quarters.

Comfort station means a public restroom and/or wash facilities.

Dependent mobile living unit shall mean a mobile living unit: (1) without its own sewer and/or water connections to accommodate a flush water closet, or (2) without a tub and/or shower, or (3) without a lavatory and/or sink within the unit, making the mobile living unit "dependent" upon outside facilities for these comforts.

Director shall mean the director of development services or an authorized representative.

Health department is the public health department of the City of San Antonio.

HUD-Code manufactured home means a structure constructed on or after June 15, 1976, according to the rules of the United States Department of Housing and Urban Development, transportable in one or more sections, which, in the traveling mode, is eight (8) body feet or more in width or forty (40) body feet or more in length, or, when erected on site, is three hundred twenty (320) or more square feet, and which is built on a permanent chassis and designed to be used as a dwelling with or without a permanent foundation when connected to the required utilities, and includes the plumbing, heating, air-conditioning, and electrical systems.

Licensee shall mean any person or other legal entity licensed to operate and maintain a mobile living unit park under the requirements and provisions of this chapter.

Mobile home means a structure that was constructed before June 15, 1976, transportable in one or more sections, which, in the traveling mode, is eight (8) body feet or more in width or forty (40) body feet or more in length, or, when erected on site, is three hundred twenty (320) or more square feet, and which is built on a permanent chassis designed to be used as a dwelling with or without a permanent foundation when connected to the required utilities, and includes the plumbing, heating, air-conditioning, and electrical systems.

Mobile living unit shall mean a HUD-code manufactured home, mobile home, camping trailer, dependent mobile living unit, motor home, recreational vehicle, self-contained mobile living unit, travel trailer, truck camper, and collectively means and refers to all.

Mobile living park means a contiguous development of land that has been separated into two (2) or more mobile living home sites which may or may not be contiguous, which are platted or designed for the accommodation or placement of mobile living units, and which are rented or offered for rent by the site owner.

Mobile living park operator is the park owner, manager, agent, or employee who is in charge of the day to day operations or maintenance of the park facilities and utilities.

Mobile living home site is a plot of ground within a mobile living park which is apparently designed for and designated as the location for only one (1) mobile living unit and not apparently designed to be used for accommodating any other purpose other than the customary accessory structures.

Motor home shall mean a mobile living unit that is a vehicular unit apparently designed to provide living quarters for recreational, camping or travel use, built on or permanently attached to a self-propelled motor vehicle chassis or on a chassis cab or van which is an integral part of the vehicle.

Recreational vehicle shall mean a type of mobile living unit that is a vehicle:

(1) Built on a single chassis;

(2) Four hundred (400) square feet or less when measured at the largest horizontal projections;

(3) Self-propelled or permanently towable by a car or light duty truck; and

(4) Designed primarily for recreational, camping, travel, or seasonal use.

Self-contained mobile living unit shall mean a mobile living unit having a water-flush toilet, lavatory, tub or shower, and kitchen sink, all of which are connected to water storage and sewage holding tanks located within the unit and which facilities are also capable of being connected to outside utilities. A mobile living unit shall not be considered self-contained unless all plumbing fixtures and electrical outlets are both capable of being operated independent of outside utilities and capable of being connected to outside utilities.

Travel trailer shall mean a type of mobile living unit that is a vehicular portable structure built on a permanent chassis, designed by the manufacturer to be towed by another vehicle and used as a dwelling, and which:

(1) In the traveling mode does not require a special highway permit;

(2) Is less than eight (8) feet in width; and

(3) Is less than forty (40) feet in length exclusive of pulling or towing equipment.

Truck camper shall mean a mobile living unit constructed to provide living quarters for recreation travel, or camping use, consisting of a roof, floor, and sides designed to fit onto the bed of a truck. Such units are, for the purpose of this chapter, considered a dependent type of mobile living unit because they do not have a water supply line hookup or a sewer hookup.
(Ord. No. 2017-12-14-1009, § 1, 12-14-17)

Sec. 18-4. Reserved.

Sec. 18-5. Authority of the director.

The director shall coordinate with the health department, department of human services, and any other city or county department as necessary to implement and enforce this chapter. This may, by written order, establish such procedures, not inconsistent with this chapter or other city, state, or federal rules or regulations, as the director determines are necessary to discharge any duty under this chapter.
(Ord. No. 2017-12-14-1009, § 1, 12-14-17)

Sec. 18-6. General prohibition against mobile living unit being parked outside licensed parks.

It shall be unlawful for a mobile living park owner, operator, or licensee to cause or allow to be parked, a mobile living unit in violation of the zoning requirements of the unified development code of the city, and other applicable regulations in chapter 19 the City Code.
(Ord. No. 2017-12-14-1009, § 1, 12-14-17)

Sec. 18-7. Nonconforming uses.

Any mobile living unit park in violation of the provisions of this chapter constitutes a public nuisance, and the city attorney is hereby authorized to institute litigation to restrain the operation of the park until the cessation of the public nuisance. Licensees of mobile living parks existing prior to September 3, 1970 shall bring the mobile living park into conformance with respect to the public health and safety provisions of this chapter not later than October 1, 1997. Any suit seeking a court order for the cessation of park operations shall also seek termination of all utilities after reasonable notice to all residents by posting a letter of notice in a prominent place at all entrances, and at one or more places of gathering or at a comfort station in the park.
(Ord. No. 2017-12-14-1009, § 1, 12-14-17)

Sec. 18-8. Registration of park owner/manager/agent required.

Each mobile living park shall be under the direct, day to day management of the owner or his designated agent operator, or an employee manager. The full name, address and date of birth and contact telephone number of the owner, and designated agent operator or employee manager shall be registered with the director by the park owner, and any change of ownership or management or operator shall be reported to update said registration within thirty (30) days of any change. Failure by the park owner to register the name and address of said owner, and the name and address of the park manager or agent operator shall constitute good cause for the revocation of the mobile living park license on the tenth day after notice is deposited with the United States Postal Service by certified mail to the park owner at the park owner's registered address or last known address. Automatic revocation shall occur on the tenth day, unless a hearing is requested by the park owner in writing. If the park owner fails to comply with this section, he or she shall thereafter be in violation of this chapter.
(Ord. No. 2017-12-14-1009, § 1, 12-14-17)

Sec. 18-9. Records required.

Copies of all records generated from the daily operation, management, supervision, repair, and maintenance of the mobile living park and other records related to the protection of health or safety shall be available for inspection by the director during normal business hours. These records shall also include a listing of sites being used at any time during the licensing period. The original records or complete copies thereof shall be maintained by the registered park manager or registered park owner, in the park's business office or where rents are paid in the park. Failure of the park manager or operator to maintain auditable records is hereby declared to be a separate and distinct misdemeanor crime.
(Ord. No. 2017-12-14-1009, § 1, 12-14-17)

Sec. 18-10. Rules of conduct for mobile living park.

It shall be the duty of the owner of a mobile living park to prescribe rules and regulations for residents, consistent with this chapter, and to make adequate contract provisions for the enforcement of such rules.
(Ord. No. 2017-12-14-1009, § 1, 12-14-17)

Sec. 18-11. Duties of owner regarding health and safety.

It shall be the duty of both the owner and the operator or manager or agent in charge of the day to day operation of a mobile living park, to comply strictly with the following requirements:

(1) To take such emergency measures as deemed necessary by the director to preserve the immediate health and safety of all persons residing in the mobile living park;

(2) To report to the director all known cases of communicable disease affecting any resident, guest or employee of the mobile living park; and

(3) To facilitate City Code inspections and audits requested by the director to determine compliance with this chapter.

(4) To comply with all City Code requirements and standards which relate to public health and safety, to assist and cooperate with any city official in the investigation of alleged violations of any

city ordinances within the park, and to facilitate the officials' ingress into the park to the alleged violation site.

(5) In the event that the mobile living park, in whole or in part, is closed for health reasons, is subject to an immediate vacate order by the director, or has been declared a nuisance by the city due to health and safety concerns, the owner shall be responsible for all moving costs and related expenses for the tenants and renters on the property as are affected by the nuisance conditions, and shall finalize and execute all arrangements to move them by a date certain, as determined by the city.

a. The owner shall immediately post a performance bond of $100,000.00, payable to the city, for the costs to remediate and cure the nuisance conditions, as well as to move such tenants and renters as are affected.

b. In the event that the city has to move the owner's tenants and renters from the property, the performance bond of $100,000.00 shall be forfeit to the city and the amount paid in full. If the costs to the city exceed $100,000.00, the owner shall be strictly liable to the city for the additional costs and shall pay the remainder no later than thirty (30) days after notice has been mailed to the owner.

(Ord. No. 2017-12-14-1009, § 1, 12-14-17)

ARTICLE II. LICENSES AND INSPECTIONS

Sec. 18-12. Licenses required.

It shall be unlawful for any person to establish, maintain or operate within the city a mobile living park by the day, week, month, or longer period of time, for compensation, unless there has been obtained by the owner or operator of the mobile living park a license issued by the director. The license is non-transferable; upon sale or transfer of ownership, the new owner shall apply for a license within thirty (30) days of the sale or change of ownership.

(Ord. No. 2017-12-14-1009, § 1, 12-14-17)

Sec. 18-13. Application for license; plans required; late charge.

(a) All applications for licenses to operate a mobile living park must be made in writing to the director on a form prescribed by the said director and shall, among other things, contain:

(1) The name, residence, business address, contact phone number, and email address of the applicant (this information shall be listed for each member of a partnership or each officer of a corporation);

(2) The name and nature of the proposed operation; and

(3) The present zoning, address, and legal description of the premises for which application is being applied.

(b) All applications must contain the following statement:

The license applied for shall be subject to all provisions of the codes and ordinances of the City relating to mobile living parks as well as all state and federal regulations relating to such operations. All applications must be signed and sworn to by the party applying for the license (by a general partner of a partnership and by an officer of a corporation) before a notary public or other official authorized to administer oaths.

(c) The application must include:

(1) A zoning verification letter stating that the proposed new use of the property complies with the city's unified development code.

(2) If a septic system is in use on the property a letter from Bexar County Development Services a licensed plumber will be required providing proof that the system is in sound condition.

(3) The director may require code enforcement officers to physically ascertain that supportive documents of all permits are

kept on file at the operate a mobile living park. In such cases, the application shall not be approved until the officers have ascertained the documents' existence and validity. Enforcement of federal or state requirements shall remain the responsibility of the appropriate agencies.

(4) A statement that, by filing the application, the applicant swears or affirms under penalty of perjury that to the best of the applicant's knowledge, all information contained in the application is true and correct and that the application is complete and includes all information required to be disclosed under this section.

(Ord. No. 2017-12-14-1009, § 1, 12-14-17)

Sec. 18-14. License fee.

There shall be a license fee of thirty five dollars ($35.00) per annum for each useable mobile living park site, occupied or unoccupied. The license fee shall be payable by the park owner. The license fee shall be collected by the development services department before a license or any renewal thereof is issued to operate such mobile living park. The license fee shall be based upon the number of useable sites as of October 1st, which is the first day of each licensing year, plus any additional sites that are made useable on any day of the license year, and shall be payable annually, in advance, not later than the last day of October of the new licensing year or upon making the site useable. The development services department shall issue a receipt on a form prescribed for that purpose. No sites may be made useable during the licensing year which are not licensed on October 1st without first paying the annual license fee per space. If one structure or combination of structures on one site overlaps onto a second site, regardless of the nonuse of the second site's utility hookups, the second site shall incur the license fee. If the park owner also owns the structure on a site, the leasing of the structure constitutes leasing of the site on which it is situated for purposes of this chapter.

Upon issuance or renewal of the license, the owner or operator shall attend a mandatory training class, to be completed within thirty (30) days after the license date is issued or renewed. (Ord. No. 2017-12-14-1009, § 1, 12-14-17)

Sec. 18-15. Issuance or denial of license.

(a) Following the receipt of an application for a license required by this article together with the list of identified usable sites and the payment of the prescribed annual license fee based upon the number of usable sites, the director shall conduct such investigation as he or she deems necessary to determine whether the applicant's mobile living park and the sites therein meet the minimum requirements of this chapter.

In determining whether to grant or renew the license the director shall take into account the global legal history of the owner(s) and operator(s). Said legal history shall include all civil and criminal actions which have been taken against the owner(s) and operator(s), specifically as they relate to Code, environmental, and health violations of local, state and federal laws.

(b) The director shall issue or deny a license to operate the mobile living park or any of the site(s) therein within ten (10) working days. Failure to issue a denial of a license for the park or denial of the right to use any mobile living park sites therein within the ten (10) day time limit shall constitute license approval of the subject park or approval of the subject sites.
(Ord. No. 2017-12-14-1009, § 1, 12-14-17)

Sec. 18-16. Inspections; declaration of a public nuisance.

(a) The director and each inspector of the city acting under his or her authority, for the purpose of protecting the public health, safety, and general welfare, is hereby authorized and directed at any or all reasonable times to make quarterly and/or yearly inspections of mobile living park and each mobile living park site therein to determine compliance with this chapter and all other applicable ordinances of the city. To ensure

continued compliance with the requirements of this section a mobile living park may be inspected in the following methods:

(1) Proactive inspections. The city's development services department will perform regular inspections for compliance with this chapter;

(2) Quarterly inspections will focus on continued compliance with the city property maintenance code, chapter 6 building code, chapter 10 building code, chapter 11 fire code and the health code; and/or

(3) Annual inspections will be conducted for all exterior maintenance of mobile living units trailers

(b) Inspections will include, but are not limited to:

(1) Private roadways, electric, water, and sewer connections. All plumbing fixtures shall be properly connected to either the public sanitary sewer or to an approved private sewage disposal system

(2) Septic systems must be properly registered with Bexar County and should be regularly maintained.

(3) Maintenance includes proper anchorage trailers and decks, porches, rails, and stairs.

(4) Recreational vehicle parks will be inspected in accordance with local codes and NFPA standard 1194.

(c) A code enforcement officer, sanitarian, fire inspector, or peace officer may inspect mobile living parks upon reasonable suspicion of a violation of an activity or required performance regulated under this chapter. A form shall be prescribed by the respective department to be completed at the time of such inspection indicating the date the inspection occurred and will be provided in person, posted on property, mailed CMRRR or regular mail if posted to the representative and/or mailed to permittee.

(d) Conditions maintained in violation of this division which impact public health, safety, or welfare, or which deprive neighbors of their safe or peaceful use of nearby properties are unlawful and a public nuisance. Further, a failure to allow inspections as required is unlawful.
(Ord. No. 2017-12-14-1009, § 1, 12-14-17)

Sec. 18-17. Suspension and revocation of license.

(a) *Suspension.* Any license to operate a mobile living park issued under the provisions of this chapter may be suspended by the director for the violation of any of the provisions of this division which constitutes an immediate health or safety hazard. Such suspension notice, hand delivered or mailed by certified mail, return receipt requested shall take effect immediately upon said written notice. The suspension of the license may be lifted by the director as soon as he or she deems the park to be in compliance with this chapter, with or without re-inspection. In the event of suspension by the director, the licensee shall have the right to appeal per section 18-20 of this chapter.

(b) *Revocation.* For failure to comply with the terms of this chapter, the director may revoke any license issued under provisions of this division after an administrative due process hearing pursuant to section 18-20, at which the license holder shall be given an opportunity to be heard and present evidence relevant to the issue in question.

(c) *Notice.* If after the administrative hearing, the director makes the determination to permanently revoke or temporarily suspend the mobile living park license, the director shall post a public notice in a conspicuous place at each entrance to the mobile living park. The notice shall state: "Violation Notice: This is an unlicensed park, and is not available for new occupancy by order of the Director of Development Services." The removal or destruction of this notice shall constitute a misdemeanor crime.
(Ord. No. 2017-12-14-1009, § 1, 12-14-17)

Sec. 18-18. Comfort stations.

(a) Each mobile living park that provides accommodations for dependent mobile living units shall provide one or more comfort stations in the park.

(b) Each comfort station shall have separate facilities for male and female residents which contain not less than:

(1) One flush toilet each sex.

(2) One lavatory for each sex, supplied with hot and cold running water under pressure.

(3) One shower for each sex, supplied with hot and cold running water under pressure.

(4) One laundry sink or washing machine supplied with hot and cold running water under pressure.

(5) One mop sink, at least fourteen (14) by fourteen (14) inches square and fourteen (14) inches deep supplied with hot and cold running water under pressure.

(6) Plumbing fixtures shall be maintained in working order and proper repair, and in full compliance with applicable city codes.

(c) The plumbing fixtures listed in subsection (b) will accommodate up to twelve (12) dependent mobile living units. For each additional ten (10) dependent mobile living units or fraction thereof, one flush toilet, one shower and one lavatory shall be provided for each sex, with laundry facilities as described in subsection (b)(4).

(d) If the mobile living park does not accept any dependent mobile living units, the requirements of subsection (b) shall be waived.

(e) Comfort stations shall meet the following requirements prior to license issuance or renewal:

(1) The interior shall be lighted with a minimum of forty (40) foot candles of illumination at lavatories and laundry facilities, if applicable.

(2) The interior finish shall be of moisture resistant material which shall withstand frequent washing and cleaning. Floors shall be constructed of concrete or other equally impervious, easily cleanable material.

(3) Water heaters shall be of adequate size to supply a minimum of three (3) gallons of water per hour per useable mobile living park site.

(4) All rooms shall be well ventilated with all openings effectively screened with size sixteen (16) mesh screens.

(5) Comfort stations, dressing rooms, toilets, showers stalls, plumbing fixtures, and surrounding areas shall at all times be kept clean, sanitized, well dried, and in useable working condition.

(Ord. No. 2017-12-14-1009, § 1, 12-14-17)

Sec. 18-19. Reserved.

Sec. 18-20. Appeals.

If the director denies issuance or renewal of a permit or suspends or revokes a permit issued under this article, the action is final unless the permit applicant or holder files a written appeal within ten (10) business days to the director, or his designee. Appeals regarding technical matters will be reviewed by the building related and fire codes appeals and advisory board. Appeals regarding the maintenance of a property will be heard by the building standards board (BSB).
(Ord. No. 2017-12-14-1009, § 1, 12-14-17)

Sec. 18-21. Enforcement provisions.

It is unlawful for a person to do or perform any act prohibited by this division, and it shall be unlawful for a person to fail to do or perform any act required by this division. Anyone who violates any provision of this Act shall be liable to be prosecuted in criminal and civil courts by the city, under all applicable provisions and laws as authorized by the city and the state, and will be strictly accountable for any penalties and punishments accrued therefrom.

Criminal enforcement: A violation of this Act is a strict liability offense, and no mental state is necessary for proof of the defendant's culpability. A violation of this division is a Class C misdemeanor offense. Upon finding of culpability, a person shall be fined an amount not less than one hundred dollars ($100.00), nor more

than five hundred dollars ($500.00). Each day in which a violation occurs shall constitute a separate violation.

Administrative hearing officer enforcement: All violations of the provisions of this chapter and of the rules and regulations established by the director, determined to be related to health and safety violations may be enforced by administrative adjudication.

The total fines, costs, and fees per violation shall not be less than three hundred dollars ($300.00) and shall not exceed one thousand dollars ($1,000.00). The total fines, costs, and fees shall not be less than five hundred dollars ($500.00); for the second violation of said sections. The total fines, costs, and fees shall not exceed one thousand dollars ($1,000.00) for the third violation of said sections. Fines assessed shall be paid before a new license will be issued each year. Violators shall be issued a summons. The summons must provide information as to the time and place of an administrative adjudication hearing.

The designated administrative hearing officer may question witnesses and review documents presented by the parties before issuing an order. The order shall be in writing and shall state whether the person charged is liable for the violation, and the amount of any fines assessed against the person or company charged. The fines shall be assessed in accordance with this section. The failure of any person charged with a violation to appear at the hearing shall be an admission of liability for the charged violation, and will result in default judgment.

Fines, costs, or fees assessed by the hearing officer may be levied against the license/permit holder, if the person summoned or the holder for whom such person works, fails to pay such fines, costs, or fees within thirty (30) days after the order is filed.

A person determined by the administrative hearing officer to be in violation may appeal the decision to municipal court by filing an appeal petition with the municipal court clerk not later than thirty (30) days after the order is filed and by paying the a twenty-five dollar ($25.00) appeal filing fee. The appeal hearing must be held within ten (10) days of the filing of the appeal petition. The appeal hearing before a municipal court judge shall be pursuant to the pure substantial evidence rule and limited to affirming, reversing, or modifying the order issued by the administrative hearing officer, based upon the evidence presented to the administrative hearing officer as reflected in the court records and transcripts. It is the sole responsibility of the person appealing the administrative hearing officer's decision, to formally request in writing that a record be made of the hearing prior to the actual hearing. The record of witness testimony may be preserved for appellate review by the use of an audio tape recording or a video tape recording. All costs, including costs to transcribe audio or video recordings to written documents, all other transcripts and all court records, shall be paid for by the person appealing the administrative hearing officer's decision, and must be fully paid upon notice of appeal, or notice of cost from the court clerks, whichever is later.

Neither a notice of intent to appeal nor the filing of an appeal petition shall stay the enforcement and collection of the judgment order unless the service of the notice of appeal is preceded by the posting of a cash bond in the same amount of the adjudged penalty. However, the bond may not in any case be for a sum less than fifty dollars ($50.00).

Appeals of default judgments before an administrative hearing officer are defined as follows. "Default judgment" means that which is defined in § 239 et seq. of the Texas Rules of Civil Procedure. Upon appeal of a default judgment, the standard rules apply. Because these cases are fine-only civil enforcement actions taken before an administrative hearing officer, for an appeal, no transcript of a hearing is necessary, nor is it necessary for any evidence to be presented or preserved before the administrative hearing officer. Additionally, a correct copy of the original petition or affidavit of the Code officer shall be adequate proof of the underlying charges or claims, so long as the same are legally sufficient.

Civil injunction enforcement: Violations of the provisions of this chapter which rise to the level of a common or public nuisance will be liable to being enjoined by the city in an injunctive lawsuit in state district court. In addition to being restrained by order of the court, the violators may be subject to further penalties—both monetary and injunctive—as well as being held responsible to pay the city for the city's attorneys' fees and all such costs for pursuing this lawsuit against them.
(Ord. No. 2017-12-14-1009, § 1, 12-14-17)

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Chapter 19

MOTOR VEHICLES AND TRAFFIC*

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ARTICLE I. IN GENERAL

Sec. 19-1. Definitions.

The following words and phrases when used in this chapter shall for the purpose of this chapter have the meanings respectively ascribed to them in this section.

Alley shall mean minor ways which are used primarily for vehicular service access to the back or the side of properties otherwise abutting on a street.

Ambulance shall mean any privately owned vehicle equipped or used for transporting the wounded, injured or sick.

Authorized emergency vehicle shall mean vehicles of the fire department, police vehicles, public and private ambulances for which permits have been issued by the state board of health, emergency vehicles of municipal departments or public service corporations as are designated or authorized by the governing-body of an incorporated city, private vehicles operated by volunteer firemen or certified emergency medical services volunteers while answering a fire alarm or responding to a medical emergency, and vehicles operated by blood banks or tissue banks, accredited or approved under the laws of this state or the United States, while making emergency deliveries of blood, drugs or medicines, or organs.

Barricade shall mean every barrier, obstruction or block placed upon or across any road, street or highway of this city by an authorized person for the purpose of preventing the passage of motor vehicles over such street, road or highway during a period of construction or during a flood or other emergency.

Boot means a device intended to immobilize a vehicle and designed to attach to the tire or wheel.

Boundary street shall mean a public street which is adjacent to and abutting one (1) or more sides of the proposed site.

Build-out year shall mean the proposed year of completion of the land development project, when its capacity for attracting and producing traffic is maximized.

Central business district shall mean all streets and portions of streets within the area bounded as follows: Beginning at the interchange between Durango Boulevard and I.H. 35 Expressway; thence northward and eastward along I.H. 35 Expressway to I.H. 37 Expressway; thence southward on I.H. 37 Expressway to Durango Boulevard; thence westward along Durango Boulevard to I.H. 35 Expressway the point of beginning.

Commercial motor vehicle shall mean a motor vehicle, other than a motorcycle, designed or used primarily to transport property. The term shall include a passenger car reconstructed and used primarily for delivery purposes, but shall not include a passenger car used to deliver the United States mail.

Controlled-access highway shall mean every highway, street or roadway in respect to which owners or occupants of abutting property or -lands and other persons have no legal right of access to or from the same, except at such points only and in such manner as may be determined by the public authority having jurisdiction over such highway, street or roadway.

Crosswalk shall mean:

(1) That part of a roadway at an intersection included within the connections of the lateral lines of the sidewalks on opposite sides of the highway measured from the curbs, or in the absence of curbs from the edges of the traversable roadway;

(2) Any portion of a roadway at an intersection or elsewhere distinctly indicated for pedestrian crossing by lines or other markings on the surfaces.

Decal parking shall mean the duly authorized loading zone parking of a vehicle with a decal parking program sticker or visitor permit prominently displayed in the front window on the driver's side of the vehicle. The time limit for decal parking need not be posted since notice of all rules and regulations applicable to decal parking are provided to decal purchasers. Decal parking includes parking with a visitor permit.

Driver shall mean every person who drives or is in actual physical control of a vehicle.

Driveway shall mean every way or place in private ownership and used for vehicular travel by the owner and those having express or implied permission from the owner but not by other persons.

Flashing emergency light shall mean any lamp mounted on an authorized emergency vehicle or ambulance which displays a flashing light visible under normal atmospheric conditions from a distance of five hundred (500) feet from such vehicle.

Intermediate construction phase shall mean on land development projects with multiple phases of construction, there may be several intermediate construction phases which precede the final construction phase. The final construction phase is completed in the build-out year.

Intersections shall mean the area embraced within the prolongation or connection of the lateral curb lines, or, if none then the lateral boundary lines of the roadways of two (2) highways which join one another at or approximately at right angles, or the area within which vehicles traveling upon different highways joining at any other angle may come in conflict.

Laned roadway shall mean a roadway which is divided into two (2) or more clearly marked lanes for vehicular traffic.

Loading zone shall mean that space adjacent to a curb reserved for the exclusive use of commercial vehicles during the loading and unloading of materials and decal parking. Loading zones shall be established only by ordinance, and the city traffic engineer shall designate such zones by the erection and maintenance of signs giving public notice of each loading zone, its hours of enforcement, and the length of parking time allowed, except that decal parking time limits need not be posted.

Moped shall mean a motor-driven cycle whose speed attainable in one (1) mile is not more than thirty (30) miles per hour and that is equipped with a motor that produces not more than two-brake horsepower. If an internal combustion engine is used, the piston displacement may not exceed fifty (50) cubic centimeters and the power drive system may not require the operator to shift gears.

Motorcycles shall mean every motor vehicle having a saddle for the use of the rider and designed to travel on not more than three (3) wheels in contact with the ground, but excluding a tractor.

Motor-driven cycle shall mean every motorcycle with a motor which has an engine piston displacement of not more than one hundred twenty-five (125) cubic centimeters.

Motor vehicle shall mean every vehicle which is self-propelled and every vehicle which is propelled by electric power obtained from overhead trolley wires but not operated upon rails.

No parking zone shall mean any and all places designated as no parking zones by the traffic engineer and identified as such by appropriate signs.

Occupancy shall mean the presumed level of build out as estimated by the property owner of the proposed development at the later of five (5) years or build out.

Official traffic-control devices shall mean all signs, signals, markings, and devices not inconsistent with this Act placed or erected by authority of a public body or official having jurisdiction, for the purpose of regulating, warning, or guiding traffic and includes:

(1) *Traffic control signal* which shall mean any device, whether manually, electrically, or mechanically operated, by which traffic is alternately directed to stop and permitted to proceed.

(2) *Railroad sign or signal* which shall mean any sign, signal or device erected by authority of a public body or official or by a railroad and intended to give notice of the presence of railroad tracks or the approach of a railroad train.

Owner shall mean a person who holds the legal title of a vehicle. In the event a vehicle is the subject of an agreement for the conditional sale or lease with an option to purchase, and with an immediate right of possession vested in the conditional vendee or lessee, such conditional vendee or lessee shall be deemed the owner for the purpose of this chapter.

Paid-parking zone means both parking meter zones and pay station zones.

Park shall mean the standing of a vehicle, whether occupied or not, upon a street otherwise than temporarily for the purpose of, and while actively engaged in, receiving or discharging passengers or loading or unloading merchandise or in obedience to traffic regulations, signs, or signals or an involuntary stopping of a vehicle by reason of a cause beyond the control of the operator of the vehicle.

Parking meter means a device, other than a pay-and-display station or a pay-by-space station, located at a parking space and intended to receive money for parking. Multiple parking meters may be located on one (1) pole.

Parking meter space means a space for which a parking meter is installed.

Parking meter zone means an area in which parkers must pay a parking meter to park.

Pay station means any electronic device that is either a pay-and-display station or a pay-by-space station. Parking meters are not pay stations.

Pay station zone means an area in which parkers must pay a pay station to park.

Pay-and-display station means an electronic pay station that dispenses a receipt for payment to be displayed as required in section 19-221.

Pay-by-space station means an electronic device serving multiple parking spaces at which a customer enters the number of the space occupied and pays. The station records the space numbers for which payment has been made and for how long payment has been made.

Peak hour trips (PHT) shall mean the number of traffic units generated by and attracted to the proposed development during its heaviest hour of use, dependent on type of use.

Pedestrian shall mean any person afoot.

Phased construction project shall mean any land development project which is developed in greater than a single phase. Such projects are identified by the issuance of permits or approvals of submittals to the city.

Pole trailer shall mean every vehicle with or without motive power designed to be drawn by another vehicle and attached to the towing vehicle by means of a reach or pole, or by being boomed or otherwise secured to the towing vehicle, and ordinarily used for transporting long or irregularly shaped loads such as poles, pipes, or structural members capable, generally, of sustaining themselves as beams between the supporting connections.

Police officer shall mean every officer authorized to direct or regulate traffic or to make arrests for violations of traffic regulations.

Private road shall mean every way or place in private ownership and used for vehicular travel by the owner and those having expressed or implied permission from the owner but note by other persons.

Projected traffic shall mean the traffic which is projected to exist on an existing or proposed street, exclusive of site-generated traffic.

Railroad shall mean a carrier of persons or property upon cars, other than street cars, operated upon stationary rails.

Railroad train shall mean a steam engine, electric or other motor, with or without cars coupled thereto, operated upon rails, except streetcars.

Recreational vehicle shall mean any motor vehicle, including an oversized motor vehicle, primarily designed as temporary living quarters for recreational camping or travel use including a travel trailer, camping trailer, truck camper, and motor home.

Right-of-way shall mean the right of one (1) vehicle or pedestrian to proceed in a lawful manner in preference to another vehicle or pedestrian approaching under such circumstances of direction, speed and proximity as to give rise to danger of collision unless one grants precedence to the other.

Road tractor shall mean a vehicle designed for the purpose of mowing the right-of-way of a public

highway, or a motor vehicle designed or used for drawing another vehicle or a load and not constructed to carry:

(1) An independent load; or

(2) A part of the weight of the vehicle and load to be drawn.

Roadway shall mean that portion of a street or highway improved, designed, or ordinarily used for vehicular travel. In the event a highway includes two (2) or more separate roadways the term "roadway" as used herein shall refer to any such roadway separately but not to all such roadways collectively.

Safety zone shall mean the area or space officially set apart within a roadway for the exclusive use of pedestrians and which is protected or is so marked or indicated by adequate signs as to be plainly visible at all times while set apart as a safety zone.

School bus shall mean every motor vehicle owned by any private, public or governmental agency and operated for the transportation of children to or from school. Provided, however, that the term "school bus" shall not include motor vehicles which do not conform to the rules, regulations and standards established by the state department of education in regard to color and marking, nor shall it include any vehicle constituting a part of the fleet of any street transportation company serving the public generally.

School crossing zone shall mean that portion of any street or public property which, on the basis of an engineering and traffic investigation, the traffic engineer may designate for the crossing of those attending a school or other institution of learning.

School or other institution of learning shall mean any public or private organization giving regular instruction and having an average daily attendance of fifty (50) students or more.

School zone shall mean each and every street and all public property or ways within one thousand (1,000) feet of the boundaries of any school or other institution of learning.

Semitrailer shall mean a vehicle designed or used with a motor vehicle so that part of the weight of the vehicle and its load rests on or is carried by another vehicle.

Sidewalk shall mean that portion of a street between the curb lines or the lateral lines of a roadway and the adjacent property lines intended for the use of pedestrians.

Site-generated traffic shall mean vehicular trips attracted to, or produced by, the proposed development site.

Street or highway shall mean the entire width between the boundary lines of every way publicly maintained when any part thereof is open to the use of the public for purposes of vehicular traffic.

Study area boundary shall mean the limits of the area in which analysis is conducted or for which information is provided. This area is determined by the property owner or its representative, and agreed to by the city traffic engineer, based on the size of the development and the PHTs projected to be generated by the proposed development. In the case of a level 1 or 2 TIA, this may include the site, and the area within a distance no greater than one-fourth (¼) mile from the boundary of the site. In the case of a level 3 TIA, this area will be determined by the property owner based on sound engineering judgment and agreed to by the city, but in all cases shall be no more than the area contained in a one-mile radius from the site. In those instances where the property owner has neither submitted preliminary plans nor applied for an initial development permit prior to the effective date of this ordinance, the determination of the area to be studied by the property owner must be approved by the city's traffic engineer for all TIA levels, and before granting approval of a level 2 TIA, the city's traffic engineer may require the area of the study to exceed the maximum area prescribed above by one-fourth (¼) mile.

Through highway shall mean every highway or portion thereof on which vehicular traffic is given preferential right-of-way, and at the entrances to which vehicular traffic from intersecting highways is required by law to yield right-of-way to vehicles on such through highway in obedience to

a stop sign, yield sign or other official traffic-control device, when such signs or devices are erected as provided in this chapter.

Traffic shall mean pedestrians, ridden or herded animals, vehicles, buses, and other conveyances either singly or together while using any street for purposes of travel.

Traffic control device shall mean any electric traffic control signals, stop signs, yield right-of-way signs, and any other such device designed and used to control the movement of traffic.

Traffic-control signal shall mean any device, whether manually, electrically, or mechanically operated, by which traffic is alternately directed to stop and permitted to proceed.

Traffic engineer shall mean the director of traffic and transportation for the city.

Trailer shall mean a vehicle that:

(1) Is designed or used to carry a load wholly on its own structure; and

(2) Is drawn or designed to be drawn by a motor vehicle.

Trip generation summary shall mean a table summarizing the trip generation characteristics of the development for the entire day and the a.m. and p.m. peak periods including the rates and units used to calculate the number of trips. Information on appropriate trip generation rates and procedures may be obtained by contacting the public works department. Institute of Transportation Engineers trip rates will be used unless a better source is identified and is acceptable to the Director of Public Works or his/her designee.

Truck shall mean every motor vehicle designed, used or maintained primarily for the transportation of property.

Truck-tractor shall mean a motor vehicle:

(1) Designed and used primarily for drawing another vehicle; and

(2) Not constructed to carry a load other than a part of the weight of the vehicle and load to be drawn.

Vehicle shall mean every device in, upon, or by which any person or property is or may be transported or drawn upon a highway, except devices used exclusively upon stationary rails or tracks.

Warning sign shall mean every sign, signal, marking and device erected or placed upon any street, road, highway or barricade, or erected or placed upon any street, road or highway within the city which is under construction or being repaired for the purpose of regulating, warning or guiding motor vehicular traffic or otherwise stating the conditions under which traffic by motor vehicle may be had upon such street, road or highway. A warning sign shall include, but shall not be limited to a flagman placed upon any street, road or highway for the purpose of directing traffic around or upon such street, road or highway as is under construction or in the process of being repaired.

(Code 1959, §§ 38-1—38-12; Ord. No. 29496, § 1, 5-24-61; Ord. No. 35903, § 1, 11-2-67; Ord. No. 40269, §§ 1, 2, 1-13-72; Ord. No. 41445, § 1, 11-9-72; Ord. No. 42075, § 1, 4-12-73; Ord. No. 45540-A, 7-31-75; Ord. No. 45770, 9-25-75; Ord. No. 63132, 6-26-86; Ord. No. 74210, §§ 4, 5, 8-29-91; Ord. No. 84917, § 1, 10-3-96; Ord. No. 87147, § 1, 12-18-97; Ord. No. 91700, § 1, 4-27-00; Ord. No. 2010-05-06-0387, § 1, 5-6-10)

State law reference—Similar provisions, Vernon's Ann. Civ. St. art. 6701d, §§ 1—20H.

Sec. 19-2. Reservation of powers.

Nothing in this chapter shall be construed as prohibiting the city from providing for bus stops, for taxicab stands and other matters of similar nature, including the loading or unloading of trucks, vans or other commercial or noncommercial vehicles within the parking meter zones provided for by this article.

(Code 1959, § 38-99)

Sec. 19-3. Exercise of police powers.

This chapter shall be deemed and construed to be an exercise of the police power of the city for the preservation and protection of the public safety, and all of its provisions be liberally construed with a view to the effectuation of such purpose.

(Code 1959, § 38-100)

Sec. 19-4. Required obedience to traffic ordinance.

It shall be unlawful for any person to do any act forbidden or fail to perform any act required in this chapter. The penalty for violation shall be as prescribed in section 1-5. Each day of violation shall constitute a separate offense.
(Code 1959, § 38-18)

Sec. 19-5. Public employees to obey traffic regulations.

The provisions of this chapter shall apply to the driver of any vehicle owned or used in the service of the United States government, this state, county or city, and it shall be unlawful for any said driver to violate any of the provisions of this chapter, except as otherwise permitted in this chapter or by state statute.

State law reference—Similar provisions, Vernon's Ann. Civ. St. art. 6701, § 24(j).

Sec. 19-6. Persons propelling pushcarts or riding animals to obey traffic regulations.

Every person propelling any pushcart or riding an animal upon a roadway, and every person driving any animal-drawn vehicle, shall be subject to the provisions of this chapter, except those provisions which by their very nature can have no applications.
(Code 1959, § 38-20)

State law reference—Similar provisions, Vernon's Ann. Civ. St. art. 6701d, § 25.

Sec. 19-7. Use of coasters, roller skates, and similar devices restricted.

(a) No person upon roller skates, or riding in or by means of any coaster, toy vehicle, or similar device, shall go upon any roadway except while crossing a street on a crosswalk and when so crossing such person shall be granted all the rights and shall be subject to all of the duties applicable to pedestrians.

(b) The above section does not apply to roadways within city parks.
(Code 1959, § 38-21; Ord. No. 2008-04-17-0317, § 2, 4-17-08)

Sec. 19-8. Soliciting from occupants of vehicles prohibited; causing a child to solicit from occupants of vehicles prohibited; penalty.

(a) It shall be unlawful for a person to stand on a traffic median, shoulder, improved shoulder or sidewalk and solicit, or attempt to solicit, employment, business or charitable contributions from the occupants of any vehicle on a roadway.

(b) It shall be unlawful for a person to knowingly cause a child ten (10) years of age or younger to stand on a traffic median, shoulder, improved shoulder or sidewalk and solicit, or attempt to solicit, employment, business or charitable contributions from the occupants of any vehicle on a roadway.

(c) For purposes of this section, the term "cause" shall mean aid, direct, hire, encourage, permit, or allow.

(d) Violation of any portion of this section constitutes a misdemeanor punishable by a fine not to exceed two hundred dollars ($200.00).

(e) Notwithstanding the other provisions of section 19-8 or any other provision in the City Code, a person seventeen (17) years of age or older may solicit employment, business or charitable contributions while standing on a traffic median, shoulder, improved shoulder, sidewalk, or the improved portion of the roadway from occupants of any vehicle on a roadway provided said person wears a florescent orange visibility vest, does not impede traffic, enters or remains in a roadway only while the controlling traffic signal prohibits vehicle movement, and has obtained a permit to do so, or who is a member of an organization which has obtained a permit to do so, from the chief of police.

(f) Permits may be issued to no person or organization more than once per calendar year for a period of no more than two (2) consecutive days, which days must fall within fifteen (15) days prior to a nationally-recognized holiday, and for no hours other than those between the hours of 9:00 a.m. and one (1) hour before sunset.

(g) The chief of police shall issue a solicitation permit upon application provided said application states the name and address of the person or organization for whom solicitations are made, the names and addresses of the persons soliciting, the locations at which soliciting will take place, and the times during which the soliciting will take place.

(h) Permit applications must be accompanied by a fee of two hundred dollars ($200.00) and a certificate of insurance signed by an agent authorized to bind coverage indicating that the applicant has obtained, at his sole expense, insurance coverage (1) that is written by an insurance company with an A- or better rating by AM Best and that is admitted and licensed to do business in the State of Texas; (2) that is in full force and effect for the duration of the permit period; (3) that provides one million dollars ($1,000,000.00) of liability coverage per occurrence with no deductible; (4) that insures the applicant and all persons who will be soliciting; (5) that names the City of San Antonio, its officers, employees, and elected representatives as an additional insureds; (6) that provides that any insurance or self-insurance maintained by the city shall apply in excess of and not contribute with it; (7) that is written on an occurrence basis; and (8) that is otherwise acceptable to, and approved by, the risk manager of the City of San Antonio.

(i) Notwithstanding the other provisions of §§ 19-8, 16-227, 16-240 or any other provision of the City Code, a person sixteen (16) years of age or older may solicit the sale of newspapers to occupants of motor vehicles from sidewalks, walkways, raised medians, islands and other off-roadway surfaces and may deliver the newspaper to any such occupant who responds to the solicitation in order to complete the sales transaction so long as doing so does not impede traffic flow and provided that such person wears a fluorescent orange visibility vest. The owner and publisher of the newspaper will be responsible for periodically monitoring the activity of any such solicitor under the age of eighteen (18), such monitoring to be done by an agent or employee of the newspaper who is at least twenty-one (21) years of age. Any solicitor under the age of eighteen (18) must have the consent of a parent or adult having custody of the child.

(j) The owner and publisher of any newspaper distributed pursuant to subsection (i) shall maintain at its sole expense insurance coverage:

(1) That is written by an insurance company with an A- or better rating by AM Best and that is submitted and licensed to do business in the state;

(2) That is in full force and effect at any time sales and distribution are being conducted pursuant to subsection (i);

(3) That provides one million dollars ($1,000,000.00) of liability coverage per occurrence;

(4) That insures the newspaper and all persons who will be selling and distributing on its behalf;

(5) That names the city, its officers, employees and elected representatives as additional insures;

(6) That provides that any insurance or self-insurance maintained by the city shall apply in excess of and not contribute with it; and

(7) That is written on an occurrence basis.

The owner and publisher shall file and keep current a certificate of insurance signed by an agent authorized to bind coverage indicating that the owner and publisher has obtained the aforementioned insurance coverage, with the chief of police.

(Ord. No. 71696, §§ 1—5, 6-7-90; Ord. No. 82745, § 1, 8-31-95; Ord. No. 100823, § 1, 5-5-05)

Cross reference—Peddlers, hawkers, canvassers, and solicitors, § 16-226 et seq.

Sec. 19-9. Vulnerable road users.

(a) In this section, a vulnerable road user means:

(1) A pedestrian, including a runner, physically disabled person, child, skater, highway construction and maintenance worker, tow truck operator, utility worker, other

worker with legitimate business in or near the road or right-of-way, or stranded motorist or passenger;

(2) A person on horseback;

(3) A person operating equipment other than a motor vehicle, including, but not limited to, a bicycle, handcycle, horse-driven conveyance, or unprotected farm equipment; or

(4) A person operating a motorcycle, moped, motor-driven cycle, or motor-assisted scooter.

(b) An operator of a motor vehicle passing a vulnerable road user operating on a highway or street shall:

(1) Vacate the lane in which the vulnerable road user is located if the highway has two (2) or more marked lanes running in the same direction; or

(2) Pass the vulnerable road user at a safe distance.

(c) For the purpose of subsection (b)(2), when road conditions allow, safe distance is at least:

(1) Three (3) feet if the operator's vehicle is a passenger car or light truck; or

(2) Six (6) feet if the operator's vehicle is a truck, other than a light truck, or a commercial motor vehicle as defined by V.T.C.A., Transportation Code § 522.003.

(d) An operator of a motor vehicle that is making a left turn at an intersection, including an intersection with an alley or private road or driveway, shall yield the right-of-way to a vulnerable road user who is approaching from the opposite direction and is in the intersection, or is in such proximity to the intersection as to be an immediate hazard.

(e) An operator of a motor vehicle may not overtake a vulnerable road user traveling in the same direction and subsequently make a right-hand turn in front of the vulnerable road user unless the operator is safely clear of the vulnerable road user, taking into account the speed at which the vulnerable road user is traveling and the braking requirements of the motor vehicle making the right-hand turn.

(f) An operator of a motor vehicle may not maneuver the vehicle in a manner that:

(1) Is intended to cause intimidation or harassment to a vulnerable road user, or

(2) Threatens a vulnerable road user.

(g) An operator of a motor vehicle shall exercise due care to avoid colliding with any vulnerable road user on a roadway or in an intersection of roadways.

(h) It is an affirmative defense to prosecution under this section that at the time of the offense the vulnerable road user was acting in violation of the law.
(Ord. No. 2010-04-0097, § 1, 2-4-10)

Secs. 19-10—19-20. Reserved.

ARTICLE II. ADMINISTRATION AND ENFORCEMENT

DIVISION 1. GENERALLY

Sec. 19-21. Authority of traffic engineer.

In addition to the maintenance of all official traffic controls, devices and regulations which are established pursuant to separate ordinance and this Code, the traffic engineer is hereby authorized:

(1) To determine and establish speed regulations, school zones, regulatory devices, signs, signals and all other traffic control devices as shall be deemed necessary for the public safety and welfare or to regulate, warn or guide traffic for the safe and expeditious flow thereof.

(2) To place and maintain traffic control signs, signals and devices when and as required under the provisions contained in this chapter to make effective the provisions of this chapter.
(Code 1959, § 38-13; Ord. No. 39650, § 1, 7-8-71; Ord. No. 45301, 5-29-75)

Sec. 19-22. Emergency and experimental regulations.

The traffic engineer is hereby authorized to make and enforce temporary or experimental devices to cover emergencies or special conditions. No such temporary or experimental device shall remain in effect more than two hundred seventy (270) days. The traffic engineer may test traffic control devices under actual conditions of traffic.
(Code 1959, § 38-14; Ord. No. 35903, § 2, 11-2-67)

Sec. 19-23. Authority of police and fire department officials.

(a) It shall be the duty of the officers of the police department, or such officers as are assigned by the chief of police, to enforce all street traffic laws of this city and all of the state vehicle laws applicable to street traffic in this city.

(b) Officers of the police department or such officers as are assigned by the chief of police are hereby authorized to direct all traffic by voice, hand, or signal in conformance with traffic laws, provided that in the event of a fire, flood, or other emergency or to expedite traffic or to safeguard pedestrians, officers of the police department may direct traffic or erect temporary signs or barricades to warn and protect the public, notwithstanding the provisions of the traffic laws.

(c) Officers of the fire department, when at the scene of a fire, may direct or assist the police in directing traffic thereat or in the immediate vicinity.
(Code 1959, § 38-17; Ord. No. 63132, 6-26-86)

State law reference—Powers of local authorities, Vernon's Ann. Civ. St. art. 6701d, § 27.

Sec. 19-24. Obedience to police and fire department officers, barricades; penalty for violation.

(a) It shall be unlawful for any person to wilfully fail or refuse to comply with any lawful order or direction of a police officer or fire department official.

(b) It shall be unlawful for any person to wilfully move a barricade erected by a person authorized to erect such barricade, or circumvent or drive a motor vehicle past a barricade so erected.

(c) Violation hereof shall be punished by a fine of not less than twenty-five dollars ($25.00) nor more than two hundred dollars ($200.00).
(Code 1959, § 38-19; Ord. No. 63132, 6-26-86)

Secs. 19-25—19-35. Reserved.

DIVISION 2. VIOLATIONS

Sec. 19-36. Summons.

Any city employee whose duty is to enforce the parking provisions contained in this chapter shall attach to any vehicle parked in violation thereof, a notice that such vehicle has been parked in violation of such provisions and summoning the violator to appear at the office of the clerk of the municipal court in regard to such violation.
(Code 1959, § 38-96)

Sec. 19-37. Owner prima facie responsible.

When any vehicle is found parked in violation of any parking provisions contained in this chapter, such fact shall be prima facie evidence that the person in whose name it is registered is guilty of a violation of the parking provisions contained in this chapter.
(Code 1959, § 38-97)

Sec. 19-38. Payment of fine, issuance of process.

(a) The following schedule of fines for parking violations is hereby established:

Violations	*Fine*
(1) Failure to pay a parking meter or a pay station, staying after the paid-for time has expired, or failure to display pay-and-display station receipt on the inside of the vehicle's windshield and on the side next to the curb so that it is easily readable by police and parking enforcement officers	$ 52.00
(2) Overtime parking	35.00
(3) Parking in a loading zone	57.00

Violations	*Fine*
(4) Parked within a 20 ft. of crosswalk at an intersection	57.00
(5) Parked within 50 ft. of a railroad crossing	40.00
(6) Obstructing flow of traffic	35.00
(7) Parked facing oncoming traffic	57.00
(8) Overloading taxi stand	35.00
(9) Parked in an alley	35.00
(10) Double parked	35.00
(11) Parked within 15 ft. of a fire plug	107.00
(12) Emergency parking restriction/sacked meter	35.00
(13) Blocking a street	57.00
Blocking a sidewalk	57.00
Blocking a driveway	57.00
(14) Blocking a fire lane	140.00
(15) Parked more than 18 inches from the curb/edge of roadway	57.00
(16) Parked with tire on or over the curb/edge of roadway	35.00
(17) Parked during restricted hours	35.00
(18) Using public street for storage	48.00
(19) Parked in no parking zone; no parking this side of block	57.00
(20) Handicap parking violation	252.00
(21) Oversized vehicle in residential zone or any posted no parking zone	500.00
(22) Parked on front lawn/side setback	48.00
(23) Curbstone	50.00
(24) Parking in residential permit parking zone without required permit	35.00
(25) False representation of motor vehicle entitlement to permit	35.00
(26) Duplication of permit; display of a duplicated permit	35.00
(27) Failure to surrender permit upon request	35.00
(28) Other violations	57.00

(b) If the violator fails to make payment within the above-mentioned time limitations, the clerk of the municipal court shall issue process for his appearance.

(Code 1959, § 38-98: Ord. No. 34175, 3-10-66; Ord. No. 36055, § 1, 12-21-67; Ord. No. 51102, § 1, 8-9-79; Ord. No. 80787, § 1, 9-14-94; Ord. No. 90496, § 1, 9-16-99; Ord. No. 98188, § 1(Att. A), 9-18-03; Ord. No. 2009-09-17-0731I, § 1(Att. A), 9-17-09; Ord. No. 2010-05-06-0387, § 2, 5-6-10; Ord. No. 2014-04-17-0259, § 1, 4-17-14; Ord. No. 2018-03-01-0161, § 3, 3-1-18; Ord. No. 2025-03-20-0179, § 1, 3-20-25; Ord. No. 2025-09-18-0629, § 2(Att. F), 9-18-25)

Sec. 19-39. Moving violations; minimum schedule of fines.

The following minimum schedule for the payment of fines for moving traffic violations is hereby established:

All improper turns	$ 15.00
Barricade; removing a barricade in order to enter or entering a barricaded street	25.00
Crossing double stripe	25.00
Cutting through private property	25.00
Impeding traffic by traveling less than minimum authorized speed	25.00
Improper passing	25.00
License:	
Expired or no (chauffeurs) (comm. operator) (operators) license	25.00
Expired or no state license plates	25.00
No trailer license plate	15.00
Only one state license plate	25.00
Using another's driver's license	25.00
Using another's state license plate	25.00
Violation driver's license codes 1 through 7	25.00
Lights:	
Failure to dim	25.00
No headlights	15.00
No license plate light	15.00
No taillight	15.00
One headlight	15.00
No lights	25.00
Red light or blinking red light, failure to stop for	15.00
No valid inspection sticker	25.00
Racing	50.00

Right-of-way, failure to grant:	
At a fixed sign of blinking amber light	25.00
To a pedestrian	25.00
To an emergency vehicle	50.00
School:	
Failure to stop at crossing when children are in crosswalk	50.00
Failure to stop at crossing when flags are down	50.00
Failure to stop for bus loading or unloading school children	50.00
Speeding:	
$1.00 per mile over the speed limit for the first 10 miles with a minimum of $5.00 and $2.00 per mile over the speed limit thereafter.	
Stop sign	15.00
Unnecessary noise (muffler, etc.)	15.00
Wrong way on one-way street	25.00

(Code 1959, § 38-98.1; Ord. No. 34231, § 2, 3-24-66; Ord. No. 36055, § 2, 12-21-67)

Secs. 19-40—19-50. Reserved.

DIVISION 3. IMPOUNDING

Sec. 19-51. Removal of vehicles to police pound.

Any vehicles that shall be found standing or parked in violation of any city ordinance, or any vehicle that may be abandoned or left in any public place, or any wrecked or disabled vehicle that constitutes a traffic hazard, shall be immediately removed to and impounded in the police department's vehicle storage facility provided by the city for such purposes, by any police officer, or parking manager of the public works department and duly authorized representatives, or the police department's operator of the vehicle storage facility, or other persons duly authorized and acting under and by authority and direction of any member of the police department.

(Code 1959, § 38-101; Ord. No. 64109, § 1, 12-4-86; Ord. No. 2008-03-13-0202, § 1, 3-13-08)

Sec. 19-51.1. Vehicle impound fee.

A vehicle impound fee of twenty dollars ($20.00) for each vehicle taken into the control and custody of the police department or its duly authorized agent or operator is hereby fixed as the charge for initiation of a vehicle impoundment, which shall be collected by the police department before the impounded vehicle is released.

(Ord. No. 63242, § 2, 7-16-86; Ord. No. 99741, § 1, 9-16-04; Ord. No. 2008-03-13-0202, § 1, 3-13-08)

Editor's note—Ord. No. 63242, § 2, adopted July 16, 1986, amended Ch. 19, Art. II, Div. 3 by the addition of provisions designated at the discretion of the editor as § 19-51.1.

Sec. 19-52. Vehicles held pending payment of charges.

Any such vehicle so removed and impounded shall be towed to the space or police vehicle storage facility that has been provided for the storage of such vehicle; said vehicle so towed and/or impounded shall be retained and held by the police department or the police department's operator of the vehicle storage facility until all charges for towing and storage against such vehicles shall have been paid to the duly authorized officer, or the police department's operator in charge of said facility for the benefit of the city to reimburse the city or its operator for the expense of towing and storing such vehicles.

(Code 1959, § 38-102; Ord. No. 2008-03-13-0202, § 1, 3-13-08)

Sec. 19-53. Storage fees.

The following storage fees shall apply for each day that a vehicle remains under the control and in the possession of the police department or its operator, or duly authorized agent as the charge for storage of said impounded vehicle which shall

be collected by the police department or its operator before the impounded vehicle is released:

(1) For any vehicle that is not longer than twenty (20) feet, or wider than seven (7) feet, the rate shall be twenty dollars ($20.00) per day.

(2) For any vehicle that is longer than twenty (20) feet but does not exceed forty (40) feet, or is not longer than twenty (20) feet but wider than seven (7) feet, the rate shall be twenty dollars ($20.00) per day.

(3) For any vehicle or combination of vehicles longer than forty (40) feet long and regardless of width, the rate shall be twenty dollars ($20.00) per day.

(Code 1959, § 38-103; Ord. No. 35365, § 1, 4-27-67; Ord. No. 39551, 6-3-71; Ord. No. 52578, 7-31-80; Ord. No. 57565, 2, 9-15-83; Ord. No. 63242, 1, 1-16-86; Ord. No. 64624, 2-26-87; Ord. No. 67922, §§ 1—3, 9-15-88; Ord. No. 90498, § 2, 9-16-99; Ord. No. 96408, § 1, 9-19-02; Ord. No. 2006-09-07-1008, § 1, 9-7-06; Ord. No. 2008-03-13-0202, § 1, 3-13-08)

Sec. 19-53.1. Notification fee.

(a) The city police department vehicle storage unit or the police department's vehicle storage facility operator is hereby authorized to charge a notification fee in the amount of fifty dollars ($50.00) to the registered owner to notify the registered owner and the primary lien holder that said vehicle will be sold at auction if the vehicle is not retrieved by the vehicle owners within a designated period of time and such other information as required by law.

(b) Said notice shall be mailed certified mail to the vehicle owner and the primary lien holder on the third day after the vehicle has been impounded.

(Ord. No. 78726, §§ 1, 2, 9-15-93; Ord. No. 90498, § 3, 9-16-99; Ord. No. 96408, § 2, 9-19-02; Ord. No. 99741, § 2, 9-16-04; Ord. No. 2006-09-07-1008, § 2, 9-7-06; Ord. No. 2008-03-13-0202, § 1, 3-13-08)

Editor's note—Ord. No. 78726, §§ 1, 2, adopted Sept. 15, 1993, has been codified herein at the discretion of the editor as § 19-53.1.

Sec. 19-54. Release of impounded vehicles.

(a) Impounded motor vehicles shall be released by the police department or the operator of the police department's vehicle storage facility, after payment is made of any towing or storage charges or fees, only upon receipt of one (1) of the following:

(1) Submission of certificate of title or other satisfactory proof that the person applying for the release is the owner of the vehicle.

(2) Submission of the certificate of title and of a current power of attorney duly executed by the owner requesting release to the person named therein and presenting same.

(3) Release of impounded vehicle to lienholder. A motor vehicle which has not been claimed by the owner after ten (10) days of impoundment (including the day the vehicle arrived at the storage facility) and after the mortgage note is thirty (30) days delinquent, shall be released to the claimant identifying himself as lienholder or agent of the lienholder named on the certificate of title upon the submission of a surety bond from a city licensed corporate surety firm which shall indemnify, save and hold harmless the city from all damage, liability, costs, attorney's fees, expenses, actions, judgments and special proceedings that may arise, accrue or be brought against the city by reason of releasing the vehicle to the bonded vehicle claimant, up to the amount of the bond, and upon payment of towing charges and storage fees.

The surety bond shall be submitted at the police department vehicle storage facility and shall be in either the original mortgage amount of the vehicle or an amount equal to the current National Automobile Dealers Association book value plus ten (10) percent.

In the alternative, the lienholder may submit a non-vehicle-specific surety bond in the amount of fifty thousand dollars ($50,000.00) or more, against which the

lienholder may repossess a number of vehicles with a cumulative value not exceeding ninety (90) percent of the bond amount.

A separate indemnification agreement shall be signed by the vehicle claimant who appears at the vehicle storage facility to take possession of the vehicle, and said claimant shall identify himself or herself as the lienholder or the lienholder's agent, and shall state that said claimant holds the City of San Antonio harmless and fully indemnified against any claims of loss of property which may arise out of the release of the vehicle.

The surety bond shall include a statement that:

1. The title owner is in default of his mortgage contract by virtue of being delinquent in a scheduled payment by at least thirty (30) days, that the person named in the bond is the lienholder or the legal agent of the lienholder being bonded, that the named lienholder has paramount right of possession of the vehicle, and is legally entitled to repossess same, or
2. That the title owner is in default of his mortgage contract by virtue of the seizure of the mortgaged vehicle by peace officers who have identified it as contraband and subject to confiscation under Chapter 59 of the Code of Criminal Procedure, thus entitling the lienholder to exercise a contractual right of repossession to preserve the mortgage collateral.

The signatory of the indemnification agreement and the surety bond, if signing as agent for a principal or as agent for or officer of a corporation, shall certify in writing and under oath before a notary public that he or she has full authority to execute the document on behalf of the corporation.

(b) Nothing herein shall prevent the release of any motor vehicle by any person upon the service of an order or judgment directing such release by a court of competent jurisdiction.

(c) The terms "motor vehicle," "lien," "owner," "mortgagee," "mortgagor," and "certificate of title" used herein shall have the same meanings as defined in Vernon's Ann. Civ. St. art. 6687-1.
(Code 1959, § 38-104; Ord. No. 32724, 8-27-64; Ord. No. 71862, § 1, 7-12-90; Ord. No. 2008-03-13-0202, § 1, 3-13-08)

Sec. 19-55. Auction processing fee.

An auction processing fee of thirty-two dollars ($32.00) for each vehicle sold at auction by the city is hereby established to be paid by each purchaser.
(Ord. No. 90498, § 1, 9-16-99; Ord. No. 98190, § 3, 9-18-03; Ord. No. 99741, § 3, 9-16-04)

Secs. 19-56—19-65. Reserved.

ARTICLE III. TRAFFIC-CONTROL DEVICES

Sec. 19-66. Conformity with state manual.

All traffic-control signs, signals and devices installed or erected in the city shall conform to the manual and specifications approved by the state highways and public transportation commission. All signs and signals required under this chapter shall so far as practicable be uniform as to type and location throughout the city. All traffic-control devices so erected and not inconsistent with the provisions of state law or this chapter shall be official traffic-control devices.

State law reference—Similar provisions, Vernon's Ann. Civ. St. art. 6701d, § 31.

Sec. 19-67. Obedience.

(a) The driver of any vehicle, motor vehicle or animal shall obey the instructions of any official traffic-control device, sign or signal applicable thereto placed in accordance with ordinance,

unless otherwise directed by a police officer, subject to the exceptions granted the driver of an authorized emergency vehicle permitted by this chapter.

(b) Whenever authorized signs are erected indicating that no right or left or U-turn is permitted, no driver of a vehicle shall disobey the direction of any such sign.

Sec. 19-68. Ratification of existing devices; schedules of devices specifying type, location, and authorizing ordinance number on file with the city clerk.

(a) All traffic-control signs, signals, devices, and markings placed or erected prior to the adoption of this Code and in use for the purpose of regulating, warning or guiding traffic are hereby affirmed, ratified and declared to be official traffic-control devices, provided such traffic-control devices are not inconsistent with the provisions of this chapter or state law.

(b) The following schedules of devices, labeled "A" through "Q," shall be kept at the office of the city clerk on file for inspection by the public, and shall be updated by the city clerk with each change, deletion, or addition to any of the schedules:

Schedule	*Code Section Establishing*	*Description*
A	19-78	"Traffic-control signal locations"
		(a) Full traffic signal locations
B	19-112	"One-way street locations"
		(a) One-way at all times
		(b) One-way seven a.m. to nine a.m. and two p.m. to four p.m.
		(c) One-way seven a.m. to nine a.m. and two p.m. to five p.m., school days only
C	19-162	"Stop Intersection Locations"
		(a) All way stops
		(b) Cross street stop
D	19-146	"Yield Right-of-Way Intersection Locations"
		(a) Cross street yield
E	19-132	"Maximum speed limits expressed in miles per hour"
		(a) Maximum speed limit
F	19-217	"Parking Meter Zones"
		(a) Thirty minute parking zones
		(b) Sixty minute parking zones
		(c) One hundred twenty minute parking zones, seven a.m. to six p.m.
		(d) Fifteen minute parking zones
G	19-193	"Parking Prohibited at all times."
		(a) All vehicles.
		(b) "Truck-tractor" or "Semitrailer," as defined in Texas Transportation Code Chapter 621, either together or separate.
H	19-195	"Stopping, standing or parking prohibited during certain hours, except Sundays and holidays"
		(a) Prohibited seven a.m. to nine a.m.
		(b) Prohibited ten a.m. to six p.m.
		(c) Prohibited four p.m. to six p.m.
		(d) Prohibited seven a.m. to nine a.m. and four p.m. to six p.m.
		(e) Prohibited seven a.m. to six p.m.
		(f) Prohibited all times.
		(g) Prohibited nine a.m. to ten a.m. and one p.m. to two p.m.
		(h) Prohibited ten a.m. to eleven a.m. and two p.m. to three p.m.

Schedule	*Code Section Establishing*	*Description*
		(i) Prohibited seven a.m. to nine a.m. and two p.m. to four p.m. school days only
		(j) Prohibited 12:00 a.m. to 5:00 a.m.
		(k) Stopping, standing, or parking prohibited seven a.m. to nine a.m. and two p.m. to five p.m. school days only
		(l) Stopping, standing, or parking prohibited ten p.m. to six a.m. except Sundays and holidays
		(m) Stopping, standing, or parking prohibited six p.m. to seven a.m.
		(n) Stopping, standing, or parking prohibited nine p.m. to six a.m.
		(o) Stopping, standing or parking prohibited eight a.m. to five p.m., except Sundays and holidays
I	19-77	"Prohibited left turns"
		(a) Prohibited at all times.
		(b) Prohibited seven a.m. to nine a.m. and four p.m. to six p.m.
		(c) Prohibited seven a.m. to nine a.m. and four p.m. to six p.m. Monday through Friday
J	19-79(a)	"Right turn on red prohibited"
		(a) Prohibited at all times.
		(b) Prohibited seven a.m. to nine a.m. and two p.m. to four p.m.
K	19-79(b)	"Prohibited left turn on red"
		(a) Prohibited at all times
L	19-201	"Identified parking spaces for handicapped"
M	19-251	"School speed zones"
		(a) School crosswalk (midblock), cell phone use prohibited
		(b) School crosswalks (intersection), cell phone use prohibited
		(c) School crosswalk (midblock), 7:00 a.m. to 9:00 a.m. and 2:00 p.m. to 4:00 p.m., specified speed, school days only and cell phone use prohibited
		(d) School crosswalk (intersection), 7:00 a.m. to 9:00 a.m. and 2:00 p.m. to 4:00 p.m., specified speed, school days only and cell phone use prohibited
		(e) School crosswalk (midblock), flashing beacon, specified speed, school days only, cell phone use prohibited
		(f) School crosswalk (intersections), flashing beacon, specified speed, school days only, cell phone use prohibited
		(h) School crosswalk (midblock), 7:00 a.m. to 9:00 a.m. and 2:00 p.m. to 5:00 p.m., specified speed, school days only and cell phone use prohibited
		(i) School crosswalk (intersection), 7:00 a.m. to 9:00 a.m. and 2:00 p.m. to 5:00 p.m., specified speed, school days only and cell phone use prohibited
N	19-81	"Do not enter signs"
		(a) Prohibited to enter at all times
O	19-458	
		(a) Bus and right turn lane
		(b) Exclusive bus lane
P	19-163	
		(a) Commercial loading zone, 30-minute limit

Schedule	*Code Section Establishing*	*Description*
		(b) Commercial loading zone, 30-minute limit, loading 7 a.m. to 10 a.m. only
		(c) Commercial loading zone, 30-minute limit, loading 9 to 11 a.m. and 1 to 3 p.m. only
		(d) Commercial loading zone, 30-minute limit, loading 11 a.m. to 6 p.m. only
		(e) Commercial loading zone, 30-minute limit, no loading 7 a.m. to 9 a.m.
		(f) Commercial loading zone, 30 minute limit, no loading 7 to 9 a.m., 11 a.m. to 6 p.m.
		(g) Commercial loading zone, 30 minute limit, no loading 7 to 9 a.m., 4 to 6 p.m.
		(h) Commercial loading zone, 30 minute limit, no loading 4 to 6 p.m.
		(i) Passenger loading zone, 15 minute limit
		(j) Passenger loading zone, 15 minute limit, 10 a.m. to 6 p.m. only
		(k) Passenger loading zone, 15 minute limit, no loading 4 p.m. to 6 p.m.
		(l) Student loading zone, 7 to 9 a.m., 2 to 4 p.m. school days only
		(m) Student loading zone, 10 minute limit, 2:30 to 3:30 p.m. school days
		(n) Mail pick-up, 15 minute limit
Q	19-216	"Parking meter locations"
		(a) With Saturday enforcement indicated

(Ord. No. 65227, 6-25-87; Ord. No. 68746, § 1, 2-2-89; Ord. No. 72941, § 2, 1-17-91; Ord. No. 94755, § 1, 10-25-01; Ord. No. 97049, § 1, 1-16-03; Ord. No. 97622, § 1, 5-15-03; Ord. No. 97623, § 1, 5-15-03; Ord. No. 99085, § 1, 4-15-04; Ord. No. 99654, § 1, 9-2-04; Ord. No. 100422, § 1, 2-17-05; Ord. No. 101244, § 1, 8-28-05; Ord. No. 101382, §§ 1—3, 5, 9-15-05; Ord. No. 101495, § 1, 9-29-05; Ord. No. 2006-04-20-0521, § 1, 4-20-06; Ord. No. 2007-03-29-0358, § 1, 3-29-07; Ord. No. 2006-11-02-1275, § 1, 11-2-06; Ord. No. 2007-08-30-0914, § 1, 8-30-07; Ord. No. 2008-05-29-0451, § 1, 5-29-08; Ord. No. 2008-11-06-0990, § 1, 11-6-08; Ord. No. 2009-08-20-0660, § 1, 8-20-09; Ord. No. 2010-10-21-0915, § 1, 10-21-10; Ord. No. 2011-06-16-0504, § 1, 6-16-11; Ord. No. 2012-04-12-0266, § 1, 4-12-12; Ord. No. 2012-11-15-0902, § 1, 11-15-12; Ord. No. 2013-11-21-0801, § 1, 11-21-13; Ord. No. 2014-03-06-0128, § 1, 3-6-14; Ord. No. 2015-04-09-0290, §§ 1, 2, 4-9-15; Ord. No. 2017-04-06-0205, §§ 1, 2, 4-6-17; Ord. No. 2018-03-01-0161, § 1, 3-1-18; Ord. No. 2019-04-11-0305, § 1, 4-11-19; Ord. No. 2020-03-19-0189, § 1, 3-19-20; Ord. No. 2021-11-04-0826, §§ 1—3, 11-4-21; Ord. No. 2022-06-09-0423, § 1, 6-9-22; Ord. No. 2022-12-15-0971, 12-15-22; Ord. No. 2023-12-12-0978, § 2, 12-12-23; Ord. No. 2024-06-06-0402, § 1(Exh. 1), 6-6-24; Ord. No. 2024-12-05-0974, § 1(Exh. 1), 12-5-24; Ord. No. 2025-03-20-0179, § 2, 3-20-25; Ord. No. 2025-06-12-0466, § 1(Exh. 1), 6-12-25; Ord. No. 2025-12-04-0793, § 1(Exh. 1), 12-4-25)

Sec. 19-69. Traffic and engineering survey.

Whenever the traffic engineer determines there is a necessity for the erection, removal or change of any traffic-control device or regulation such

determination shall be based upon a traffic and engineering survey, conducted upon the following standards:

(1) The public welfare, including safety and traffic factors to insure the safe and expeditious flow of traffic shall be considered.

(2) The development of the property surrounding the proposed area shall be analyzed.

(3) The requirements of vehicular traffic flow in the proposed area shall be determined.

(4) The amount of pedestrian and vehicular traffic in the proposed area shall be considered.

(5) Any information that has been provided by property owners pursuant to section 19-82 of this Code.

(Code 1959, § 38-15; Ord. No. 84917, § 2, 10-3-96)

Sec. 19-70. Traffic control information filed with clerk.

Whenever the traffic engineer shall erect, remove or change any traffic-control device or regulation, he shall file written information of such action with the city clerk.

(Code 1959, § 38-16)

Sec. 19-71. Avoidance of traffic-control devices.

(a) At the intersection of any streets at which vehicular traffic is controlled by an authorized traffic-control device it shall be unlawful for any person to drive any vehicle across the sidewalk area or across private property at such intersection to avoid complying with such traffic-control device.

(b) No person shall drive any vehicle through, around, or under any crossing gate or barrier at a railroad grade crossing while such gate or barrier is closed or is being opened or closed.

(Code 1959, § 38-24)

Sec. 19-72. Traffic-control signal legend.

Whenever traffic is controlled by traffic-control signals exhibiting different colored lights, or colored lighted arrows, successively one at a time or in combination, only the colors green, red and yellow shall be used, except for special pedestrian signals carrying a word legend, and said lights shall indicate and apply to drivers of vehicles and pedestrians as follows:

(1) *Green indication:*

a. Vehicular traffic facing a circular green signal may proceed straight through or turn right or left unless a sign at such place prohibits either such turn. But vehicular traffic, including vehicles turning right or left, shall yield the right-of-way to other vehicles and to pedestrians lawfully within the intersection or an adjacent crosswalk at the time such signal is exhibited.

b. Vehicular traffic facing a green arrow signal, shown alone or in combination with another indication, may cautiously enter the intersection only to make the movement indicated by such arrow, or such other movement as is permitted by other indications shown at the same time. Such vehicular traffic shall yield the right-of-way to pedestrians lawfully within an adjacent crosswalk and to other traffic lawfully using the intersection.

c. Unless otherwise directed by a pedestrian control signal, as provided in this division, pedestrians facing any green signal, except when the sole green signal is a turn arrow, may proceed across the roadway within any marked or unmarked crosswalk.

(2) *Steady yellow indication.*

a. Vehicular traffic facing a steady yellow signal is thereby warned that the related green movement is being terminated or that a red indication will be exhibited immediately thereafter when vehicular traffic shall not enter the intersection.

b. Pedestrians facing a steady yellow signal, unless otherwise directed by

a pedestrian control signal, are thereby advised that there is insufficient time to cross the roadway before a red indication is shown and no pedestrian shall then start to cross the roadway.

(3) *Steady red indication.*

a. Vehicular traffic facing a steady red signal alone shall stop at a clearly marked stop line, but, if none, before entering the crosswalk on the near side of the intersection, and may then turn right or, if the intersecting streets are both one-way streets and left turns are permissible, may turn left after standing until the intersection may be entered safely, yielding right-of-way to pedestrians lawfully within an adjacent crosswalk and to other traffic lawfully using the intersection. Traffic not so turning shall remain standing until an indication to proceed is shown. Turns shall be prohibited on a steady red sign if a notice is posted at such intersection giving notice that such turns are prohibited.

b. Unless otherwise directed by a pedestrian control signal as provided in this division, pedestrians facing a steady red signal alone shall not enter the roadway.

In the event an official traffic-control signal is erected and maintained at a place other than an intersection, the provisions of this section shall be applicable except as to those provisions which by their nature can have no application. Any stop required shall be made at a sign or marking on the pavement indicating where the stop shall be made, but in the absence of any such sign or marking, the stop shall be made at the signal.

State law reference—Similar provisions, Vernon's Ann. Civ. St. art. 6701d, § 33.

Sec. 19-73. Flashing signals.

Whenever an illuminated flashing red or yellow signal is used in a traffic sign or signal, it shall require obedience by vehicular traffic as follows:

(1) *Flashing red (stop signal).* When a red lens is illuminated with rapid intermittent flashes, drivers of vehicles shall stop at a clearly marked stop line, but if none, before entering the crosswalk on the near side of the intersection, or if none, then at the point nearest the intersecting roadway where the driver has a view of approaching traffic on the intersecting roadway before entering the intersection, and the right to proceed shall be subject to the rules applicable after making a stop at a stop sign.

(2) *Flashing yellow (caution signal).* When a yellow lens is illuminated with rapid intermittent flashes, drivers of vehicles may proceed through an intersection or past such signal only with caution.

State law reference—Similar provisions, Vernon's Ann. Civ. St. art. 6701d, § 35.

Sec. 19-74. Lane-direction-control-signals.

When lane-direction-control signals are placed over the individual lanes of a street or highway, vehicular traffic may travel in any lane over which a green signal is shown, but shall not enter or travel in any lane over which a red signal is shown.

State law reference—Similar provisions, Vernon's Ann. Civ. St. art. 6701d, § 35A.

Sec. 19-75. Obedience to directional signs at certain intersections.

(a) Two (2) directional signs, one (1) pointing left only and the other pointing both left and straight ahead, as shown on a drawing adopted by reference which is on file in the office of the city clerk, are hereby authorized at the following locations to control traffic as stated:

(1) Going south on Pecos for left turn into Houston Street.

(2) Going south on St. Mary's for left turn into Houston Street.

(3) Going east on Houston Street for left turn into Navarro Street.

(b) When a directional sign is located in advance of an intersection and that directional sign consists of two (2) arrows, the right arrow indicates a right hand turn with the subscript ONLY under it and the left arrow having a double head indicating either a straight ahead or right turn, the vehicular traffic in the right lane must turn right. The traffic in the adjacent lane may turn right or proceed ahead, be authorized at the following locations to control traffic as stated:

(1) Going south on St. Mary's (S) for right turn into Commerce (E).

(c) It shall be unlawful for the driver of any vehicle to fail to proceed in the direction specified by the directional sign for his lane of traffic at the location set out in subsections (a) and (b) above.
(Code 1959, § 38-24.1; Ord. No. 32330, § 1, 5-28-64; Ord. No. 37295, § 1, 2-27-69; Ord. No. 41554, § 1, 12-7-72; Ord. No. 41914, § 1, 3-8-73)

Sec. 19-76. Obedience to no-turn signs.

Wherever authorized signs are erected indicating that no right, left, or "U" turn is permitted, no driver of a vehicle shall disobey the directions of any such sign.
(Code 1959, § 38-25)

Sec. 19-77. Specific prohibited turns.

(a) Whenever signs are erected pursuant to separate ordinance, giving notice thereof, no person shall operate his vehicle so as to make a prohibited turn at any intersection described in such ordinance.

(b) It is hereby expressly provided that the driver of any vehicle who violates any of the provisions of this section shall be guilty of a misdemeanor.
(Code 1959, § 38-25.1; Ord. No. 36183, §§ 1, 3, 2-1-68; Ord. No. 47456, 12-9-76; Ord. No. 49413, §§ 1, 2, 5-25-78)

Sec. 19-78. Full signal operation locations.

All official traffic-control devices established by separate ordinance and located within the corporate limits of this city and which are situated at street intersections are hereby established as official traffic-control devices to be in full signal operation at such street intersections. All such traffic-control devices are hereby expressly found to conform to the manual and specifications of the state department of highways and public safety.
(Code 1959, § 38-27; Ord. No. 30204, § 1, 3-14-62)

Sec. 19-79. Right turn and left turn prohibited at certain intersections.

(a) Whenever signs are erected at intersections pursuant to separate ordinances of the city, which prohibit right turns on a red signal, the driver or operator of any vehicle shall not be permitted to make a right turn when facing the red signal.

(b) Whenever signs are erected at intersections enumerated pursuant to separate ordinances of the city, which prohibit left turns on a red signal, the driver or operator of any vehicle shall not be permitted to make a left turn when facing the red signal.
(Code 1959, § 38-27.1; Ord. No. 41660, § 1, 1-4-73; Ord. No. 42683, § 1, 8-23-73)

Sec. 19-80. Pedestrian "walk," "don't walk" and "wait" signal lights.

(a) Whenever special pedestrian control signals exhibiting the words "walk," "wait" or "don't walk" are in place, such signals shall indicate as follows:

(1) "*Walk.*" Pedestrians facing such signals may proceed across the street in the direction of the signal and shall be given the right-of-way by drivers of all vehicles.

(2) "*Don't Walk,*" *or* "*Wait.*" No pedestrians shall start to cross the street in the direction of the signal, but any pedestrian who has partially completed his crossing on the "walk" signal shall proceed to a sidewalk or safety island while the "don't walk" or "wait" signal is showing.

(b) No pedestrian shall cross a roadway other than in a crosswalk in any business district.
(Code 1959, § 38-28)

State law reference—Similar provisions, Vernon's Ann. Civ. St. art. 6701d, § 34.

Sec. 19-81. "Do Not Enter" signs.

Whenever official traffic control signs are erected at intersections of the city, which prohibit entry onto a street, the driver or operator of any vehicle shall not enter upon said prohibited street.

All such signs are hereby expressly found to conform to the manual and specifications of the State Department of Highways and Public Safety.
(Ord. No. 68746, § 2, 2-2-89)

Secs. 19-82—19-95. Reserved.

Editor's note—Ord. No. 2009-08-20-0661, § 2, adopted August 20, 2009, repealed the former sections 19-82, 19-83, 19-83.1 and 19-84 in their entirety, which pertained to traffic impact analysis (TIA) required, TIA format, TIA review fees, and point at which TIA is required, respectively, and derived from Ord. No. 84917, § 3, adopted October 3, 1996; Ord. No. 85561, §§ 1, 2, adopted February 6, 1997, and Ord. No. 91700, §§ 2, 3, adopted April 27, 2000.

ARTICLE IV. COLLISIONS AND ACCIDENTS

Sec. 19-96. Negligence defined.

Negligence, as used herein, shall be defined as a failure to use the same degree of care as a person of ordinary prudence would use under the same or similar circumstances.
(Code 1959, § 30-66)

Sec. 19-97. Negligent collision; penalty.

(a) If any person driving or operating or in charge of any vehicle, animal, railroad engine, or railroad car shall by negligence cause, suffer or permit such vehicle to come into collision with any other vehicle of -any nature whatever or with any animal, person, street sign, street post, fire hydrant, mailbox, or any other obstacle or object whatever, in or on any public street or any public place whatever, in the city, such person shall be deemed guilty of the offense of negligent collision.

(b) The driver of any vehicle who violates subsection (a) shall be guilty of a misdemeanor, and shall, upon conviction, be fined in accordance with section 1-5.
(Code 1959, §§ 38-65, 38-67)

Sec. 19-98. Duty of arresting officer.

In the case of any person arrested for violation of section 19-97, the arresting officer shall take the license number, name, and make of the car, the name and address of the driver thereof, and notify the driver in writing to appear before any of the corporation courts of this city at a time and place to be specified by a written notice from the corporation court, and upon the promise in writing of such person to appear at such time and place, such officer shall forthwith release such person from custody. Any person willfully violating such promise, regardless of the disposition of the charge upon which he was originally arrested shall be fined in accordance with section 1-5.
(Code 1959, § 38-68)

Secs. 19-99—19-110. Reserved.

ARTICLE V. GENERAL RULES OF VEHICLE OPERATION

DIVISION 1. GENERALLY

Sec. 19-111. Limitations on turning around (U-turns).

The driver of any vehicle shall not turn such vehicle so as to proceed in the opposite direction upon any street in a business district; at any intersection controlled by a traffic-control signal unless signs are posted permitting a U-turn; nor upon any other street unless such movement can be made in safety without interfering with other traffic.
(Code 1959, § 38-26; Ord. No. 38205, § 1, 1-8-70)

Sec. 19-112. One-way street locations.

Upon those streets and parts of streets designated by separate ordinance, vehicular traffic

shall move only in the direction indicated when signs indicating the direction of traffic are erected and maintained at every intersection.
(Code 19-59, § 38-30)

Sec. 19-113. Entering and leaving alleys.

Vehicles shall enter all alleys running in a general direction of north and south and all right-angled or L-shaped alleys from the north end and leave from the south end, and shall enter east and west alleys from the east and leave from the west end, except that the alley lying between Broadway and Jefferson and extending from Travis Street to Pecan Street shall be entered by vehicles from the south end and exit made from the north end. This section shall only apply to alleyways within an area bounded by I.H. 35, I.H. 37 and Durango Boulevard.
(Code 1959, § 38-31; Ord. No. 48160, 6-23-77)

Sec. 19-114. Restricted access.

No person shall drive a vehicle onto or from any controlled-access roadway except at such entrances and exits as are established by public authority. No person shall drive a vehicle across the median strip between lanes of a controlled roadway.
(Code 1959, § 38-57)

Sec. 19-115. Direction of traffic on controlled-access highways.

The direction of travel of vehicles on each lane of a controlled-access roadway shall be one way only as designated.
(Code 1959, § 38-53)

Secs. 19-116—19-130. Reserved.

DIVISION 2. SPEED AND RELATED MATTERS

Sec. 19-131. Thirty miles per hour speed limit in certain districts.

As a result of an engineering and traffic investigation by the city department of traffic and transportation, the city council has determined that the prima facie reasonable and safe maximum speed limit on the public streets of the city, except as provided in section 19-132, is thirty (30) miles per hour. No person shall drive a vehicle on a city street at a speed greater than is reasonable and prudent under the circumstances then existing. The limit of thirty (30) miles per hour shall be lawful but any speed in excess of thirty (30) miles per hour, except as provided in section 19-132, shall be prima facie evidence that speed is not reasonable or prudent and that it is unlawful.
(Code 1959, § 38-46; Ord. No. 39861, § 1, 8-26-71; Ord. No. 53255, § 1, 1-15-81)

Sec. 19-132. Maximum speed limits other than thirty miles per hour.

As a result of a traffic and engineering survey, conducted by the traffic engineer, the maximum, reasonable, safe and prudent speed limits have been found and are hereby declared to be in force on all streets designated by separate ordinance of the city. Nothing in this section shall be construed to affect the provisions of this chapter relating to allowable speeds in school zones.
(Code 1959, § 38-47; Ord. No. 31666, § 1, adopted 8-14-63, effective 8-23-63)

State law reference—Authority of city to alter maximum prima facie speed limits, Vernon's Ann. Civ. St. art. 6701d, § 169.

Sec. 19-133. Minimum speed limits.

The minimum, reasonable, safe and prudent speed limit for the interstate highways and expressways within the city limits are hereby declared to be uniformly ten (10) miles per hour less than the maximum reasonable, safe and prudent speed limit for said highways.
(Code 1959, § 38-48; Ord. No. 47786, 3-24-77)

State law reference—Authority of city to establish minimum speed regulations, Vernon's Ann. Civ. St. art. 6701d, § 170.

Secs. 19-134—19-145. Reserved.

DIVISION 3. RIGHT-OF-WAY GENERALLY

Sec. 19-146. Yield right-of-way sign locations.

All street intersections established as yield right-of-way intersection by separate ordinance of the city are hereby established as official yield right-of-way sign locations, and it shall be unlawful for any person to fail to comply with the signs erected at such intersections.
(Code 1959, § 38-34)

Secs. 19-147—19-160. Reserved.

ARTICLE VI. STOPPING, STANDING AND PARKING

DIVISION 1. GENERALLY

Sec. 19-161. Cross street stop sign locations.

All street intersections established by separate ordinance as stop intersections and at which a stop sign is situated are hereby established as official stop sign locations.
(Code 1959, § 38-32)

State law reference—Authority of city to establish stop intersections, Vernon's Ann Civ. St. art. 67-Old, § 91.

Sec. 19-162. All-way stop locations.

At intersections and junctions at which all streets have stop signs erected, commonly known as all-way stop sign intersections, the driver or operator reaching the intersection first and making a complete stop first shall have the right to proceed into or across said intersection. When two (2) or more vehicles arrive thereat and stop at approximately the same time, the driver or drivers of the vehicles which are to the right of the other vehicles shall proceed into or across the said intersection first.
(Code 1959, § 38-33; Ord. No. 47498, § 1, 12-16-76)

Sec. 19-163. Loading zone.

(a) It shall be unlawful for any person to park, cause to be parked, or permit to be parked any motor vehicle of which he is the owner, or of which he has the custody or control, in any loading zone of any of the streets of the city at any hour of the day or night, except after noon on Saturdays, on Sundays or holidays as defined in section 19-218, as provided below.

(b) Commercial vehicles loading, unloading, delivering or picking up freight or materials shall be permitted to park in loading zones for a period not to exceed thirty (30) minutes.

(c) In cases where, due to the nature of the freight and materials or the business involved, loading operations will necessitate parking vehicles for a period longer than thirty (30) minutes, then the chief of police department may issue, after evidence is presented him of such need, special permits for such operations.

(d) Where construction vehicles involved in building construction or maintenance must be parked in loading zones or on the city streets for extended periods of time, the city traffic engineer may issue permits for such privilege. A fee of fifteen dollars ($15.00) per day per parking space will be filed with the city traffic engineer as a prerequisite to the granting of this permit.

(e) Noncommercial vehicles are permitted to be parked in loading zones except during the hours of 8:00 a.m. to 6:00 p.m., however such vehicles are prohibited from being parked at any hour of the day or night in those certain loading zones marked and designated by a sign worded "Loading Zone Day-Night."

(f) Any authorized vehicle which remains parked beyond the posted time limit of a loading zone, and any unauthorized vehicle which is parked in a posted loading zone, is hereby declared to be a violation of the parking enforcement ordinances of this city, and shall be cited with a civil parking violation ticket and may be either towed to the police department vehicle impoundment facility or immobilized with a wheel locking device, and subjected to all administrative adjudication procedures and ordinances applicable to parking meter zone violations.

(g) Any violation of this section shall be punished in accordance with section 1-5.
(Code 1959, § 38-77; Ord. No. 33964, §§ 1, 2, 1223-65; Ord. No. 35626, § 1, 7-27-67; Ord. No. 43883, § 1, 6-6-74; Ord. No. 65692, § 1, 9-10-87; Ord. No. 73958, § 5, 7-18-91; Ord. No. 86612, § 2, 9-11-97; Ord. No. 96409, § 3, 9-19-02)

Sec. 19-164. Parking of buses and taxicabs regulated.

The driver of a bus or taxicab shall not park upon any street in any business district at any place other than at a bus stop or taxicab stand, respectively, except that this provision shall not prevent the driver of any such vehicle from temporarily stopping in accordance with other stopping or parking regulations at any place for the purpose of and while actually engaged in loading or unloading passengers.
(Code 1959, § 38-78)

Sec. 19-165. Restricted use of bus and taxicab stands.

No person shall stop, stand, or park a vehicle, other than a bus in a bus stop or other than a taxicab in a taxicab stand, which any such stop or stand has been officially designated and appropriately signed except that the driver of a passenger vehicle may temporarily stop therein for the purpose of and while engaged in loading or unloading passengers.
(Code 1959, § 38-79)

Sec. 19-166. Signs or markings indicating angle parking.

The city traffic engineer shall determine upon which streets angle parking shall be permitted and shall mark or sign such streets, but such angle parking shall not be indicated upon any federal-aid or state highway within this city unless the state highway and public transportation commission has determined by resolution or order entered in its minutes that the roadway is of sufficient width to permit angle parking without interfering with the free movement of traffic.
(Code 1959, § 38-81)

Sec. 19-167. Obedience to angle parking signs or markings.

Upon those streets which have been signed or marked by the traffic engineer for angle parking, no person shall park or stand a vehicle other than at the angle to the curb or edge of the roadway indicated by such signs or markings.
(Code 1959, § 38-82)

Sec. 19-168. Parking in alleys; alleys designated loading zones.

No person shall park a vehicle within any alley in such a manner or under such conditions as to leave available less than ten (10) feet of the width of the roadway for the free movement of vehicular traffic, and no person shall stop, stand or park a vehicle within any alley in such position as to block the driveway entrance to any abutting property; alleys within the central business district are hereby designated loading zones and also subject to the provisions of section 19-163.
(Code 1959, § 38-83; Ord. No. 29940, § 1, 11-8-61)

Sec. 19-169. Parking for certain purposes prohibited.

It shall be unlawful for any person to park unused cars in any street or public place for more than twenty-four (24) hours or at any time for purposes of storage, washing, greasing or repairing such vehicle, (except repairs necessitated by an emergency) sale, or display of advertising signs or posters fixed to such vehicle, or any trailer, semi-trailer, or house trailer, not attached to a tractor or towing vehicle.
(Code 1959, § 38-84)

Sec. 19-170. Parking of rendering plant vehicles; limited; special permits.

(a) It shall be unlawful for any person to park a vehicle used for the purpose of collecting, removing or transporting dead animals, dead fowl, inedible offal, meat scraps, bones, suet, feathers, unrendered animal fat, waste cooking greases, and/or similar animal matter in any street or public place; provided, however, that for purposes of loading, such vehicles may park for not more than thirty (30) minutes.

(b) In cases where loading operations will necessitate parking vehicles for a period longer than thirty (30) minutes, then the director of the department of public health may issue, after evidence is presented to him of such need, special permits for such operations.
(Code 1959, § 38-84.1; Ord. No. 34352. § 1, 5-12-66)

Sec. 19-171. Parking adjacent to schools.

When official signs are erected indicating no parking upon that side of a street adjacent to any school property, no person shall park a vehicle in any such designated place.
(Code 1959, § 38-85)

Sec. 19-172. Parking prohibited on narrow streets.

(a) The traffic engineer is hereby authorized to erect signs indicating no parking upon any street when the width of the roadway does not exceed twenty (20) feet, or upon one (1) side of a street as indicated by such signs when the width of the roadway does not exceed thirty (30) feet.

(b) When official signs prohibiting parking are erected upon narrow streets as authorized herein, no person shall park a vehicle upon any such street in violation of any such sign.
(Code 1959, § 38-86)

Sec. 19-173. Driver leaving parking space to yield right-of-way.

Every driver of a motor vehicle parked on a roadway or other public property and leaving such parking area for the traveled portion of a roadway shall yield to vehicles moving upon such roadway.
(Code 1959, § 38-61)

Sec. 19-174. Parking prohibited on controlled-access roadway.

No person shall park a vehicle on the traveled portion of a controlled-access roadway.
(Code 1959, § 38-55)

Sec. 19-175. Parking on expressways.

(a) No person shall stand or park a motor vehicle on the roadway portion of any expressway located within the city limits.

(b) No person shall stand or park any motor vehicle on the untraveled portion of any expressway located within the city limits, except for repairs necessitated by an emergency and in no event for a period in excess of two (2) hours.

(c) Equipment owned by governmental agencies, or their contractors, while being used in the performance of authorized duties on the various expressways within the city are exempted from the provisions of this section.

(d) Any person who shall violate any provision of this section shall be deemed to be guilty of a misdemeanor and shall upon conviction be punished by a fine not exceeding two hundred dollars ($200.00).
(Code 1959, § 38-55.1; Ord. No. 34317, §§ 1—3, 4-28-66; Ord. No. 34425, §§ 1—4, 6-9-66)

Sec. 19-176. Public tour and school bus loading and unloading around Alamo East.

Loading and unloading of public tour and school buses is limited to the designated ten minute "Bus Loading Zone" located on Alamo Plaza East, north of Crockett Street.
(Ord. No. 69292, § 4, 4-13-89; Ord. No. 71159, § 1, 3-1-90)

Editor's note—Ord. No. 69292, § 4, adopted April 13, 1989. amended Ch. 19 by the addition of provisions which have been designated at the discretion of the editor as § 19-176.

Cross references—Prohibited parking at Alamo East, 19208; public tour and school bus parking, § 19-209.

Sec. 19-177. Local tour zone.

The sale of public tours in the downtown business district, as defined by section 16-236(c), is limited to the two (2) local tour zones located on the west curb of Alamo Plaza East just south of the Alamo Fortress Compound, at all times, and the designated twenty-minute local tour zones on the north curb of Crockett St., effective Midnight to 6 p.m.

The sale, peddling or solicitation of public tours at any other location within the downtown business district is strictly prohibited and punishable, upon conviction, by a fine of not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00).

Exhibit A which is attached hereto and incorporated herein for all purposes sets out the locations of the above Zones.
(Ord. No. 71159, § 2, 3-1-90)

Editor's note—Ord. No. 71159, § 2, adopted March 1, 1990, amended Ch. 19 by the addition of provisions which have been designated at the discretion of the editor as § 19-177. Exhibit A, referred to above, has not been set out at length herein but is on file and available for inspection in the offices of the city.

Cross references—Areas prohibited to peddlers and canvassers, § 16-236; guided tour sales prohibited from Alamo East, within the Historic 1936 Alamo Fortress Compound, § 16-236.1.

Sec. 19-178. Parking prohibited on city property not designated for parking.

(a) This section shall not apply to city property designed in whole or in part as a parking facility, garage or lot.

(b) No person shall park a vehicle on city property that is not designated for parking.

(c) The city manager or his designee is authorized to place signs on said property forewarning persons that parking is prohibited. Said signs shall:

(i) Face the street or streets fronting the property;

(ii) Be at least eighteen (18) inches wide and twenty-four (24) inches tall;

(iii) Contain the international symbol for towing vehicles;

(iv) State "NO PARKING ANYTIME - VEHICLES WILL BE TOWED AT OWNER'S OR OPERATOR'S EXPENSE"; and

(v) Contain a telephone number that is answered twenty-four (24) hours a day to enable the owner or operator of a vehicle to locate the vehicle.

(d) Where signs are posted in the manner described above on city property, the city manager or his designee may order the impoundment of a vehicle parked on city property.
(Ord. No. 84042, § 1, 5-2-96)

Secs. 19-179—19-190. Reserved.

DIVISION 2. SPECIFIC PARKING REGULATIONS*

Sec. 19-191. Application of article.

The provisions of this division prohibiting the standing or parking of a vehicle shall apply at all times or at those times herein specified or as indicated on official signs except when it is necessary to stop a vehicle to avoid conflict with other traffic or in compliance with the directions of a police officer or official traffic-control device.
(Code 1959, § 38-87)

Sec. 19-192. Regulations not exclusive.

The provisions of this article imposing a time limit on parking shall not relieve any person from the duty to observe other and more restrictive provisions prohibiting or limiting the stopping, standing, or parking of vehicles in specified places or at specified times.
(Code 1959, § 38-88)

Sec. 19-193. Parking prohibited at all times on certain streets.

When signs are erected giving notice thereof, no person shall park a vehicle at any time upon any of the streets designated as "no parking zones" by separate ordinance of the city.
(Code 1959, § 38-89)

Sec. 19-194. Parking of certain vehicles prohibited on certain streets, and parking of certain motor vehicles prohibited on front lawns of residential zones.

(a) It shall be unlawful for any person owning or having control of any oversized vehicle as defined in chapter 35 of this Code, to park the same in front of any lot or parcel used solely for a residential use (to include home occupations) within a special district, as defined in chapter 35 of this Code, or zoned FR, RD, or UD or upon any street within the following residential zoning districts: FR, R-3, R-4, R-5, R-6, R-20, RM-4, RM-5, RM-6, NP-8, NP-10, NP-15, MH, MF-25, MF-33, MF-40, MF-50, or residential PUD or other planned residential districts, according to the zoning provisions of the city (chapter 35) at all times. This section shall not apply to the parking of such vehicles for such time as is actually necessary to load or unload passengers, freight or merchandise.

(b) No oversized vehicle of any type shall be parked at any time within the restricted parking area as defined in chapter 35 in any of the residential districts as listed in subsection (a) above, provided, however, this section shall not apply to the parking of such vehicles for such time as is actually necessary to load or unload passengers, freight or merchandise, or if the oversized vehicle bears a valid special handicapped parking permit as allowed in section 35-385 of this Code. In addition, an oversized vehicle, other than one that is also defined as a truck-tractor, road-tractor, semi-trailer, trailer or commercial motor vehicle with three (3) or more axles, may be parked within the restricted parking area for such time as is actually necessary for trip preparation as allowed in section 35-385 of this Code.

(c) In this section, the terms truck-tractor, road-tractor, semitrailer, trailer, and commercial motor vehicle shall not mean nor include a recreational vehicle.

(d) It shall be unlawful for any person owning or having control of a motor vehicle, water craft, non-motorized camper, or any trailer designed to be pulled by a motor vehicle and/or to carry a watercraft, camper or motor vehicle to park or allow same to be parked at any time in the side yard setback or front yard, as defined in chapter 35 of this Code, or in any area between the property line of the lot and the curb line or the edge of the adjacent street within any of the residential districts as listed in subsection (a); provided, however, that motor vehicles, watercrafts on trailers, campers and other trailers may

*__State law reference__—Authority of city to regulate standing and parking of vehicles, Vernon's Ann. Civ. St. art. 6701d, § 27(a)(1).

be parked only on the side yard set back or front yard with all wheels on permanently maintained parking areas constructed of:

(1) Gravel with barriers or permanent curbing to define the driveway;

(2) Concrete;

(3) Brick; or

(4) Asphalt;

extending from the curb, street, or alley in a contiguous course, and only where such parking areas are no wider than the width established by subsection (e). Recreational vehicles may be parked in accordance with the provisions of section 35-385 for the purposes of trip preparation, however nothing in this subsection shall invalidate the provisions for oversized or recreational vehicles listed in this chapter or chapter 35 of this Code nor permit the parking of such vehicles in a manner inconsistent with subsection (b) or section 35-385.

(e) The gravel, concrete, or asphalt parking area referred to in subsection (d) shall be no wider than fifty (50) percent of the average width of the lot, except in the following situations:

(1) The vehicle is parked at a residential building which does not meet the minimum setback requirements as set out in chapter 35; or

(2) The vehicle is parked at a residential building where the width of the lot is twenty-five (25) feet or less; or

(3) The vehicle is parked at a residential building abutting a street which is curbless or which is less than thirty (30) feet wide.

(4) The specific zoning for the lot sets a maximum for such widths.

(f) The authority to enforce the provisions of this section shall be vested in the police department and with the code compliance department.

(g) For purposes of this section, proof that the vehicle was, at the time of the offense alleged, owned by the person charged with the offense, shall constitute prima facie evidence that the vehicle was parked or left standing at the place charged by the owner; but the owner shall have the right to introduce evidence to show that the vehicle was not parked by him as charged in the complaint.

(h) This section shall be enforced as prescribed in section 19-225 of this Code.
(Code 1959, § 38-89.5; Ord. No. 60150, § 1, 1-24-85; Ord. No. 72724, § 1, 11-29-90; Ord. No. 84874, § 1, 9-26-96; Ord. No. 85645, § 1, 2-20-97; Ord. No. 87147, § 2, 12-18-97; Ord. No. 90065, § 1, 7-1-99; Ord. No. 101564, § 1, 10-20-05)

Sec. 19-195. Stopping, standing, or parking prohibited during certain hours on certain streets.

(a) When signs are erected in each block giving notice thereof, no person shall park a vehicle during the hours specified and upon any of the streets described by separate ordinance of the city establishing such hours of parking on such streets; provided, this section shall not be applicable on Sundays or public holidays as defined under section 19-218.

(b) When signs are erected in each block of the streets as listed below giving notice thereof, no person shall park a vehicle between the hours of 7:00 a.m. and 6:00 p.m. Monday through Friday and between 7:00 a.m. and 12:00 noon on Saturdays. Public holidays as defined in section 19-218.

Street	*Extent*	*Side*
Houston (E)	Broadway to Alamo	Odd
Houston (E)	Soledad to Presa (N)	Odd
Presa (N)	Crockett to College	Both
Commerce (W)	Broadway to Soledad	Even

(Code 1959, § 38-90; Ord. No. 31222, § 1, 3-27-63; Ord. No. 39650, § 3, 7-8-71; Ord. No. 40268, § 1, 1-13-72; Ord. No. 41445, § 2, 11-9-72)

Sec. 19-196. Parking time limited on certain streets.

When signs are erected in each block, giving notice thereof, no person shall park a vehicle for longer than the one (1) hour or two (2) hours,

whichever is designated by the signs at any time between the hours of 7:00 a.m. and 6:00 p.m. on any day except Sundays and holidays.
(Code 1959, § 38-91; Ord. No. 41445, § 3, 11-9-72)

Sec. 19-197. Parking time limit signs required except for decal program time limits; prohibited parking signs required.

Whenever an ordinance prohibits parking or imposes a parking time limit, except any time limit imposed by the decal program, the traffic engineer shall erect a sign giving notice thereof, and no such parking regulation shall be given effect unless such sign is erected at the time of the alleged parking violation.
(Code 1959, § 38-92; Ord. No. 74210, § 3, 8-29-91)

Sec. 19-198. Unauthorized parking in city owned parking lots prohibited.

(a) It shall be unlawful for any person to stop, stand or park any vehicle at any time on any day in the following city-owned parking lots:

(1) The parking lot located at the loading ramp area to the Theater of the Performing Arts and extending to that area between the Theater of the Performing Arts and the Hemisfair Arena (north of the Arena);

(2) The parking lot located in that area between the Hemisfair Waterway (southeast of the Arena) and extending to the area in front of the Arena ticket office (south and southwest of the Arena);

(3) The parking lots of the San Antonio Public Library, located at 230 South St. Mary's Street and 210 West Market Street;

(4) The parking lot south of police headquarters (west of San Pedro Creek and east of Laredo Street);

(5) The parking lot west of police headquarters (east of Santa Rosa Street and south of Nueva Street);

(6) The welfare division parking lot south of Graham Alley and east of Santa Rosa Avenue.

(b) It shall be unlawful for any person to stop, stand or park any vehicles:

(1) Between the hours of 7:00 a.m. and 6:00 p.m. in slots 1—13 daily, and between 7:00 a.m. and 4:30 p.m. daily in all other slots, except Saturdays, Sundays, and the holidays named in section 19-218 of this chapter in the parking lot on the west side (Plaza de Armas), north and south sides, (Military Plaza) of City Hall;

(2) Between the hours of 7:00 a.m. and 6:00 p.m. daily, except Saturdays, Sundays and the holidays named in section 19-218 of this chapter in the parking lot located on the east and west side of city hall annex (east of San Pedro Creek between Dolorosa and Nueva Streets); and

(3) Between the hours of 7:00 a.m. and 6:00 p.m. daily except Saturdays, Sundays, and the holidays named in section 19-218 of this chapter in the parking lot located west of the Bexar County Jail (east of South Santa Rosa between West Nueva and Dolorosa Streets).

(c) Provided, however, that subsections (a) and (b) above shall not apply to any city motor vehicle bearing exempt license plates or motor vehicles bearing properly affixed permit decals issued by the city manager parked on the lots described in subsections (b)(2) and (b)(3) above, and provided further that subsections (a) and (b) above shall not apply to any motor vehicle parked on the city hall parking lot described in subsection (b)(1) bearing properly affixed permit decals issued by the city manager or vehicles displaying a valid "disabled" tag issued to the permanently disabled persons placed in the lower left-hand side of the front windshield when these vehicles are parked in spaces designated for the disabled and otherwise parked in compliance with section 19-201.

(d) Violation of any of the provisions hereof shall be punished in accordance with section 1-5.
(Code 1959, § 38-95.1; Ord. No. 30158, § 1, 1-23-63; Ord. No. 31331, § 1, 5-8-63; Ord. No.

36152, §§ 1, 2, 1-25-68; Ord. No. 37672, §§ 1, 2, 7-10-69; Ord. No. 39522, §§ 1, 2, 5-27-71; Ord. No. 41553, § 1, 12-7-72; Ord. No. 45019, § 1, 3-13-75; Ord. No. 45815, 10-9-75; Ord. No. 50702, § 1, 5-3-79; Ord. No. 51511, § 1, 11-21-79; Ord. No. 54549, § 2, 11-12-81)

Sec. 19-199. Rates at city parking facilities.

(a) *Administrative fees:*

	Rate
Late key-in fee	$8.00
Card activation/replacement fee	28.00

(b) *Downtown decals:*

	Rate
Residential	$20.00
Commercial	30.00

(c) *Hourly parking (except Market Square Lot and Library Garage):*

	Rate
First ½ hour	$2.00
1 hour	3.00
1½ hour	5.00
2 hours	7.00
2½ hours	8.00
3 hours	9.00
Lost ticket	18.00

(d) *Daily parking:*

	Rate
Houston/Nolan lot	$3.00
IH-35 lots	3.00
IH 37 Lot	2.00
Municipal court/Frio lots	4.00
Convention Center lot	6.00
Finesilver lot	1.00

(e) *Flat rate parking:*

	Rate
Continental lot	$8.00
Library garage	5.00
Market Square lot	10.00
Dolorosa lot (Weekdays)	5.00
Dolorosa lot (Weeknights and weekends except event rate parking)	5.00
St. Mary's garage (Weekdays)	10.00
St. Mary's garage (Weeknights and weekends except event rate parking)	5.00
Houston Street garage	10.00
Convention Center lot	8.00
Convention Center garage	10.00
IH 35 Lots	5.00
Durango Lot	10.00
Houston Nolan Lot	5.00

(f) *Event rate parking:*

	Rate
Houston/Nolan lots	$10.00
Municipal Court/Frio lots	8.00
IH-37 lot	5.00
IH-35 lots	15.00
Fiesta Vendor Oversize Daily Permit at IH-35 Lots	20.00
Dolorosa Lot	15.00
Durango Lot	15.00
Market Square Lot	15.00
Houston Street Garage	15.00
Library Garage	5.00
Marina Garage	15.00
St. Mary's Garage	15.00
Broadway Lot	15.00

(g) *Monthly parking:*

	Rate
IH-35 lots	$37.00
IH 37 Lot	25.00
Houston/Nolan lot	35.00
Library garage	50.00
Frio Street lot	35.00
Market Square lot	55.00
Dolorosa lot	75.00
Resident parking (all garages unless otherwise stated)	50.00
Convention Center garage	100.00
Convention Center lot	55.00
St. Mary's garage	100.00
St. Mary's garage (resident)	55.00

	Rate
Houston Street garage (resident)	55.00
Houston Street garage (upper level)	120.00
Houston Street garage (basement)	150.00
Continental lot	60.00
Hemisfair	35.00
Finesilver lot	25.00

(h) *Market Square lot:*

	Rate
First ½ hour	$2.00
1 hour	3.00
1½ hour	4.00
2 hours	5.00
2½ hours	6.00
3 hours	7.00
Lost ticket	14.00

(i) *Library garage:*

	Rate
First½ hour	$1.00
1 hour	2.00
1½ hour	3.00
2 hours	4.00
2½ hours	5.00
3 hours	6.00
Lost ticket	12.00

(j) *Convention center garage event rates:*

	Rate
Convention center garage (non-parking) (Not for profit)	$500.00
Convention center garage (non-parking) (For profit)	5,000.00

(k) A one-time fee reduction of twenty dollars ($20.00) is authorized to provide an incentive for monthly customers to participate in an electronic payment program.

(l) The city manager or the manager's designee may, without further council action, offer free parking or discounts from the parking rates specified in section 19-199 when in the best interests of the city. Nonexclusive examples possibly appropriate for exercising this authority are special events held downtown by local companies and events held in San Antonio by out-of-town organizations. The city manager or the manager's designee may further offer discounts to local entities negotiating for parking for employees or other large groups. They further may, for the customers of downtown businesses making a request, match lower prices offered by private-sector parking competitors. The city manager or the manager's designee may develop policies and procedures to put this subsection into effect, including validation or similar programs, and may, without council action, terminate any agreement reached under the authority of this subsection. The city manager or the manager's designee may reduce generally all or any part of the rates in set in section 19-199 if they find the rates are so high that they reduce parking system revenue.

(Code 1959, § 38-95.2; Ord. No. 57387, 8-4-83; Ord. No. 64827, 4-2-87; Ord. No. 66449, §§ 3, 4, 1-21-88; Ord. No. 70356, § 1, 10-5-89; Ord. No. 72271, §§ 3, 4, 9-13-90; Ord. No. 74300, §§ 1, 3, 9-12-91; Ord. No. 82819, §§ 1—4, 9-14-95; Ord. No. 84099, § 1, 5-16-96; Ord. No. 84798, §§ 1—3, 9-19-96; Ord. No. 85839, §§ 1, 2, 4-3-97; Ord. No. 86501, § 1, 8-28-97; Ord. No. 88497, §§ 1, 2, 9-17-98; Ord. No. 89166, § 1, 1-28-99; Ord. No. 92521, §§ 1, 2, 9-14-00; Ord. No. 95292, §§ 1, 2, 2-14-02; Ord. No. 96414, § 1, 9-19-02; Ord. No. 98194, § 2, 9-18-03; Ord. No. 99751, § 1, 9-16-04; Ord. No. 101140, §§ 2, 3, 7-14-05; Ord. No. 2006-09-07-0995, § 1, 9-7-06; Ord. No. 2008-05-29-0454, § 1, 5-29-08; Ord. No. 2009-09-17-0731N, § 1, 9-17-09; Ord. No. 2010-09-16-0791, § 1(Atts. H, I), 9-16-10; Ord. No. 2011-09-15-0752, § 1(Att. E), 9-15-11; Ord. No. 2013-09-12-0631, § 2(Att. O), 9-12-13; Ord. No. 2014-09-18-0694, § 2(Att. M), 9-18-14; Ord. No. 2015-09-10-0758, § 2(Atts. M, N), 9-10-15; Ord. No. 2016-09-15-0697, § 2(Att. H), 9-15-16; Ord. No. 2018-09-13-0713, § 1(Att. F.1), 9-13-18)

Sec. 19-200. Reserved parking for certain consuls of other nations; unauthorized vehicles prohibited.

(a) Parking space on certain portions of city streets is hereby reserved for consuls of certain nations as indicated below:

Nation	*Reserved parking area*
Nicaragua	Adjacent to 310 South St. Mary's approximately seventy-five (75) feet north of Villita Street. Twenty (20) feet in length and on the even side of South St. Mary's.
El Salvador	Adjacent to 206 West Travis approximately thirty (30) feet west of North Flores Street. Twenty (20) feet in length and on the even side of West Travis.
Honduras	Adjacent to 5414 Lancashire. Thirty (30) feet in length and on the even side of Lancashire.

(b) Parking in the areas described above of vehicles other than official consular vehicles or authorized emergency vehicles is hereby prohibited.

(Code 1959, § 38-95.4; Ord. No. 44281, § 1, 9-5-74)

Sec. 19-201. Parking for disabled persons; violations.

(a) *Designations.* Locations which are designated by separate ordinance as parking spaces for use by vehicles used by or for the transportation of disabled individuals as defined in Vernon's Ann. Civ. St. art. 6675a-5e-1 shall be restricted to use by such disabled individuals, when such vehicles display a valid "disabled" tag issued to the permanently disabled or an identification card issued to temporarily disabled persons placed in the lower left-hand side of the front windshield provided by the state department of highways and public transportation.

(b) *Violations.* It shall be unlawful and a violation of the provisions of this section for any person:

(1) To cause, allow, permit or suffer any vehicle registered in the name of, or operated by such person to be parked in any space hereby reserved for the disabled, unless there is affixed to such a vehicle a valid "disabled" tag or a temporarily disabled person identification card placed in the lower left-hand side of the front windshield.

(2) To cause, allow, permit or suffer any vehicle registered in the name of or operated by such person to be parked in any space hereby reserved for the disabled, even if such vehicle has affixed thereto a valid "disabled" tag or a temporarily disabled person identification card placed in the lower left-hand side of the front windshield, if the vehicle is not being used by or for the transportation of a disabled person.

(3) To cause, allow, permit or suffer any vehicle registered in the name of or operated by such person to park a vehicle so that the vehicle blocks an access or curb ramp or any other architectural improvement designed to aid the disabled.

(c) *Presumptions.* Whenever any vehicle stands in a parking space reserved for the disabled, and such vehicle does not have a valid "disabled" tag affixed thereon or displaying a temporarily disabled person identification card placed in the lower left-hand side of the front windshield, such fact shall be prima facie evidence that the vehicle has been parked illegally, and that the registered owner of such vehicle did knowingly cause, allow, permit or suffer such vehicle to be parked in such location.

(d) *Penalty.* Any person violating the provisions of this section shall, upon conviction, be subject to the penalty prescribed in section 1-5 of this Code. (Code 1959, § 38-95.5; Ord. No. 50744, §§ 1—4, 5-10-79; Ord. No. 54374, §§ 2—5, 10-1-81)

Sec. 19-202. Reserved parking for Bexar County sheriff personnel.

(a) *Designations.* The east side of South Main between Dolorosa and Nueva Streets is hereby reserved for the parking of vehicles either belonging to the Bexar County Sheriff's Department or operated by county sheriff personnel which bear an identification sticker approved by the county sheriff affixed to the rear window.

(b) *Violations.* It shall be unlawful and a violation of the provisions of this section for any person to cause, allow, permit or suffer any vehicle registered in the name of or operated by such person to be parked in any space hereby reserved for county sheriff personnel unless there is affixed to the rear window of such vehicle a valid identification sticker approved by the county sheriff.

(c) *Presumptions.* Whenever any vehicle stands in a parking space reserved for the county sheriff personnel, and such vehicle does not have a valid identification sticker approved by the county sheriff affixed thereon such fact shall be prima facie evidence that the vehicle has been parked illegally and that the registered owner of such vehicle did knowingly cause, allow, permit or suffer such vehicle to be parked in such location.

(d) *Penalty.* Any person who shall violate any provisions of this section shall be deemed guilty of a misdemeanor and shall upon conviction be punished in accordance with section 1-5.
(Code 1959, § 38-95.6; Ord. No. 54390, § 6, 10-8-81)

Sec. 19-203. Reserved parking for county district court clerk personnel.

(a) *Designation.* One (1) parking space on the

west side of Main Plaza between Dolorosa and Villita Streets, and so designated by sign, is hereby reserved for the parking of vehicles either belonging to county district court clerk or operated by the county district court clerk personnel which has displayed on the front windshield dash an identification plaque approved by the county district court clerk.

(b) *Violations.* It shall be unlawful and a violation of the provisions of this section for any person to cause, allow, permit or suffer any vehicle registered in the name of or operated by such person to be parked in any space hereby reserved for the county district court clerk personnel unless there is displayed on the front windshield dash of such vehicles a valid identification plaque approved by the county district court clerk.

(c) *Presumptions.* Whenever any vehicle stands in a parking space reserved for the county district court clerk personnel and such vehicle does not have a valid identification plaque approved by the county district court clerk displayed therein, such fact shall be prima facie evidence that the vehicle has been parked illegally and that the registered owner of such vehicle did knowingly cause, allow, permit or suffer such vehicle to be parked in such location.

(d) *Penalty.* Any person who shall violate any provisions of this section shall be deemed to be guilty of a misdemeanor and shall upon conviction be punished in accordance with section 1-5.
(Ord. No. 58874, 6-14-84)

Sec. 19-204. Reserved parking for City of San Antonio.

(a) *Designation.* The north side of Trevino Street from South Main Avenue to a point one hundred thirty-five (135) feet west of South Main Avenue is hereby reserved for the parking of vehicles either belonging to the City of San Antonio or operated by City of San Antonio personnel which has displayed on the front windshield dash an identification plaque approved by the director of the department of public works.

(b) *Violations.* It should be unlawful and a violation of the provisions of this section for any person to cause, allow, permit or suffer any vehicle registered in the name of or operated by such person to be parked in any space hereby reserved for the City of San Antonio personnel unless there is displayed on the front windshield dash of such vehicles a valid identification plaque approved by the director of public works, or unless such vehicle is parked between the hours of 7:00 a.m. and 6:00 p.m. daily, except Saturdays, Sundays and holidays named in section 19-218 of this Code.

(c) *Presumptions.* Whenever any vehicle stands in a parking space reserved for the City of San Antonio personnel and such vehicle does not have a valid identification plaque approved by the director of the public works department displayed herein, such fact shall be prima facie evidence that the vehicle has been parked illegally and that the registered owner of such vehicle did knowingly cause, allow permit or suffer such vehicle to be parked in such location.

(d) *Penalty.* Any person who shall violate any provisions of this section shall be deemed to be guilty of a misdemeanor and shall upon conviction be punished in accordance with section 1-5, Chapter 1 of the City Code.
(Ord. No. 63812, § 1, 10-16-86)

Sec. 19-205. Parking on rights-of-way beneath Interstate Highways 35 and 37 on certain streets prohibited.

It shall be unlawful for any person to park on the public right-of-way underneath Interstate Highway 35 between West Commerce and Buena Vista Streets, Camaron and North Flores Streets, West Houston and West Commerce Streets, and Buena Vista and Guadalupe Streets and Interstate Highway 37 between Ninth Street and Jones Avenue, Nolan and Houston Streets, Josephine and Grayson Streets, and Newell Street and Pearl Parkway between the hours of 2 a.m. and 6 a.m. or park single unit motor vehicles of size and capacity greater than prescribed for one and one-half (1½) ton trucks on said public rights-of-way.
(Ord. No. 64014, § 3, 11-13-86; Ord. No. 64363, § 3, 1-15-87)

Editor's note—Ord. No. 64014, § 3, adopted Nov. 13, 1986, amended the Code by the addition of a section to Art. VI, Div. 2 of this chapter, which provisions have been included herein at the discretion of the editor as § 19-205.

Sec. 19-206. Reserved parking for San Antonio Police Department, Marked Patrol Vehicles Only.

(a) *Designations.* The south curb lane of the 200 block of W. Neuva Street next to the police department, located between S. Laredo Street and the driveway next to San Pedro Creek.

(b) *Violations.* It shall be unlawful and a violation of the provisions of this section for any person to cause, allow, permit or suffer any vehicle registered in the name of, or operated by such person to be parked in any space hereby reserved for San Antonio Police personnel unless the vehicle is a marked patrol vehicle.

(c) *Presumptions.* Whenever any vehicle stands in a parking space reserved for the San Antonio Police personnel, and such vehicle is not a marked patrol vehicle such fact shall be prima facie evidence that the vehicle has been parked illegally and that the registered owner of such vehicle did knowingly cause, allow permit or suffer such vehicle to be parked in such location.

(d) *Penalty.* Any person who shall violate any provision of this section shall be deemed to be guilty of a misdemeanor and shall upon conviction be punished by a fine of not less than one dollar ($1.00) nor more than two hundred dollars ($200.00).

(Ord. No. 73719, 5-30-91)

Editor's note—Ord. No. 73719, adopted May 30, 1991 amended Ch. 19 by the addition of provisions which have been designated at the discretion of the editor as § 19-206.

Sec. 19-207. Reserved parking for county officials.

(a) *Designation.* Twenty-five parking spaces on the west side of Main Plaza between Dolorosa and West Nueva Streets, designated by signs, are hereby reserved for the parking of vehicles which belong to Bexar County officials and which have displayed on the front windshield dash an identification plaque signed and approved by the parking administrator of the city department of public works.

(b) *Violations.* It shall be a civil violation of the provisions of this section for any person to cause, allow, permit or suffer any vehicle registered in the name of or operated by such person to be parked in any space hereby reserved for Bexar County officials unless there is displayed on the front windshield dash of such vehicles a valid identification plaque approved by the parking administrator of the city department of public works.

(c) *Presumption.* Whenever any vehicle standing in a parking space reserved herein does not have a valid identification plaque displayed therein, such fact shall create a legal presumption that the registered owner of such vehicle did knowingly cause, allow, permit or suffer such vehicle to be parked in such location.

(d) *Penalty.* Any vehicle determined to be in violation of this section shall be subject to immediate impoundment, and the violator shall be subject to a civil fine of not more than two hundred dollars ($200.00), and other enforcement measures stated in the administrative hearing officer's order.

(Ord. No. 664-72, § 2, 1-28-88; Ord. No. 69852, § 2, 7-20-89)

Sec. 19-208. Prohibited parking at Alamo East, within the Historic 1836 Alamo Fortress Compound.

Vehicular parking is hereby prohibited on Alamo East, at all times within the Historic 1836 Alamo Fortress Compound. Public tour and school bus parking, loading and unloading are likewise prohibited from this area.

(Ord. No. 69292, § 3, 4-13-89)

Editor's note—Ord. No.69292, § 3, adopted April 14, 1989, amended Ch. 19 by the addition of provisions which have been designated at the discretion of the editor as § 19-208.

Cross reference—Public town and school bus loading and unloading around Alamo East, § 19-176.

Sec. 19-209. Public tour and school bus parking for Alamo.

Public tour and school buses may park in a restricted parking area under Interstate Highway 37 south of Nolan Street while waiting to return

to the Alamo to pick up tourists and students. Routes between the Alamo and the designated parking under IH 37 are shown in Exhibit III.
(Ord. No. 69292, § 5, 4-13-89)

Editor's note—Ord. No.69292, § 5, adopted April 13, 1989, amended Ch. 19 by the addition of provisions which have been designated at the discretion of the editor as § 19-209.

Sec. 19-210. Former prisoners of war and Purple Heart recipients exempt from the payment of parking fees.

A vehicle displaying special license plates issued by the Texas State Department of Highways and Public Transportation to former prisoners of war as provided in V.T.C.A., Transportation Code § 502.257, and to Purple Heart recipients, as provided in V.T.C.A., Transportation Code § 502.260, is exempt from the payment of parking fees collected at parking garages and lots which are owned or leased by the city, or collected through parking meters charged by the city. This exemption does not allow parking a vehicle at a place or time that parking is prohibited.
(Ord. No. 79262, 12-9-93; Ord. No. 87912, § 1, 6-4-98)

Secs. 19-211—19-215. Reserved.

DIVISION 3. PARKING METERS

Sec. 19-216. Reserved.

Editor's note—Ord. No. 2010-05-06-0387, § 3, adopted May 6, 2010, repealed the former section 19-216 in its entirety, which pertained to parking meter zone, loading zone and no parking during certain hours—when restrictions applicable, and derived from the Code of 1959, § 38-19.1; Ord. No. 28398, § 1, adopted March 31, 1960; Ord. No. 29941, § 1, adopted November 8, 1961; Ord. No. 29961, § 1, adopted November 22, 1961; Ord. No. 73959, § 5, adopted July 18, 1991, and Ord. No. 74210, § 8, adopted August 29, 1991.

Sec. 19-217. Parking meter and pay station zones.

(a) The city manager or the manager's designee, severally, may establish paid-parking zones, both along public street right-of-way and on parking lots owned or controlled by the city. All areas for which city council has previously authorized parking meters and has not repealed the authorization are paid-parking zones.

(b) The city manager or the manager's designee, severally, may determine where within paid-parking zones to install parking meters and where to install pay stations.
(Code 1959, § 38-69; Ord. No. 2010-05-06-0387, § 4, 5-6-10)

Editor's note—Ord. No. 2010-05-06-0387, § 4, adopted May 6, 2010, changed the title of section 19-217 from "Parking meter zone" to "Parking meter and pay station zones."

Sec. 19-218. When regulations in effect.

(a) Paid-parking zone regulations apply on public street right of way throughout the city Monday through Saturday between the hours of 8:00 a.m. and 6:00 p.m., except on designated city holidays or as otherwise indicated on the device.

(b) Paid-parking zone regulations other than for on-street parking apply during the days and hours designated on the device. The city manager and her designee, severally, may determine the days and hours of operation for current or future paid-parking zones.
(Code 1959, § 38-70; Ord. No. 37794, § 1, 8-14-69; Ord. No. 39283, § 1, 2-25-71; Ord. No. 39650, § 2, 7-8-71; Ord. No. 48777, 11-23-77; Ord. No. 2010-05-06-0387, § 4, 5-6-10)

Sec. 19-219. Designation of parking spaces.

Individual parking spaces within an on-street parking meter zone are designated by the individual meter poles. Individual parking spaces for off-street parking facilities are designated by lines or numbers or both. The city need not designate individual spaces in the on-street pay-station zones, but pay-station zones should have signs at both ends of the zone. Parkers must park their vehicles within the signs.
(Code 1959, § 38-71; Ord. No. 2010-05-06-0387, § 4, 5-6-10)

Sec. 19-220. Installation and set-up of meters and pay stations.

(a) The traffic engineer must provide for installing, setting up, and maintaining parking meters and pay stations where authorized by law.

(b) Each parking meter and pay stations must be set so as to be actuated by the deposit of the appropriate coins of the United States of America or of certain credit/debit cards. Each parking meter or pay station must show the legal parking time for the zone.

(c) The city manager, the manager's designee, and the director of the department overseeing parking operations may issue a parking card for use in a pay station and may establish rules to administer usage.

(Code 1959, § 38-72; Ord. No. 2010-05-06-0387, § 4, 5-6-10)

Editor's note—Ord. No. 2010-05-06-0387, § 4, adopted May 6, 2010, changed the title of section 19-220 from "Installation of meters" to "Installation and set-up of meters."

Sec. 19-221. Operation of meters and pay stations.

(a) When any vehicle is parked in any on-street paid-parking zone, the operator of such vehicle must immediately pay the parking meter or pay station by a method indicated on the device for the desired parking time. When paying with a credit or debit card, the minimum payment is for sixty (60) minutes. The operator of a vehicle in a parking meter space may pay for the desired parking time at a pay and display station, if the rates and time limits are the same as the parking meter and the receipt is properly displayed on the vehicle. Receipts from pay and display stations must be attached to the inside of the vehicle's windshield and on the side next to the curb so that it is easily readable by police and parking enforcement officers.

(b) The proper amounts for the use of a parking meter or pay station space are as follows:

(a) *One-hour parking:* The required amount for the use of an on-street parking space within the maximum 60-minute limit shall be:

Length of Time	*Money Amount*
10 minutes	30 cents
20 minutes	60 cents
30 minutes	90 cents
40 minutes	120 cents
50 minutes	150 cents
60 minutes	180 cents

(b) *Two-hour parking:* The required amount for the use of an on-street parking space within the maximum 120-minute limit shall be:

Length of Time	*Money Amount*
10 minutes	30 cents
20 minutes	60 cents
30 minutes	90 cents
40 minutes	120 cents
50 minutes	150 cents
60 minutes	180 cents
70 minutes	210 cents
80 minutes	240 cents
90 minutes	270 cents
100 minutes	300 cents
110 minutes	330 cents
120 minutes	360 cents

(c) *Ten-hour parking:* The required amount for the use of an on-street parking space within the maximum ten-hour limit shall be:

Length of Time	*Money Amount*
1 hour	30 cents
2 hours	60 cents
3 hours	90 cents
4 hours	120 cents
5 hours	150 cents
6 hours	180 cents
7 hours	210 cents
8 hours	240 cents
9 hours	270 cents
10 hours	300 cents

(c) When any vehicle is parked in an off-street paid-parking zone, the operator of such vehicle shall immediately pay by whatever methods indicated on the device as required for the desired parking time. The proper amount for the use of a parking meter or pay station space will be indicated by signage or on the device for that particular parking facility.

(d) Pay-and-display station receipts allow parking only a single vehicle that must not exceed eighteen (18) feet in length.

(Code 1959, 38-73; Ord. No. 37794, 1, 8-14-69, Ord. No. 53754, § 6, 5-14-81; Ord. No. 66449, § 1,

1-21-88; Ord. No. 2009-09-17-0731N, § 2, 9-17-09; Ord. No. 2010-05-06-0387, § 4, 5-6-10; Ord. No. 2010-09-16-0791, § 1(Att. I), 9-16-10; Ord. No. 2013-09-12-0631, § 2(Att. O), 9-12-13)

Editor's note—Ord. No. 2010-05-06-0387, § 4, adopted May 6, 2010, changed the title of section 19-221 from "Operation of meters" to "Operation of meters and pay stations."

Sec. 19-222. Violations.

It is unlawful and a violation of the provisions of this article for any person:

(1) To cause, allow, permit or suffer any vehicle registered in the name of, or operated by, such person to be parked in a paid-parking zone when the pay station or parking meter governing the space does not show paid-for time.

(2) To deposit in a parking meter or pay station any payment for the purpose of parking beyond the maximum legal parking time for the particular zone.

(3) To park a vehicle at any place in a parking meter zone except within a parking meter space.

(4) To park any vehicle across any line or marking or a parking meter or pay station space or in such position that the vehicle is not entirely within the area designated by the line or markings.

(5) To fail to pay at the appropriate parking meter or pay station the proper amount immediately upon parking in a paid-parking zone.

(6) To fail to attach and display a pay station receipt to the inside of the vehicle's windshield adjacent to the curb. The receipt must be placed in a position so that it can be read from outside of the vehicle.

(Code 1959, § 38-74; Ord. No. 2010-05-06-0387, § 4, 5-6-10)

Sec. 19-223. Presumptions.

The presence of a vehicle in a paid parking zone (a) when the paid-for time shown on adjacent parking meter is expired, (b) when the paid-for time shown on the relevant pay-by-space station has expired, or (c) when the paid-for time shown on the pay-and-display station receipt has expired is prima facie evidence (x) that the vehicle has been parked beyond the legal period of time fixed by this article or (y) that the operator did not deposit proper payment.

(Code 1959, § 38-75; Ord. No. 2010-05-06-0387, § 4, 5-6-10)

Sec. 19-224. Enforcement of regulations.

It is the duty of the police department and the parking division of the downtown operations department, through its parking enforcement section, or of such other city employees as may be designated by the city manager, to enforce the provisions of this article and prosecute offenders. Parking violation notices should contain the number of the parking meter or pay station at which the vehicle is parked, the name of the state and number of the vehicle's license plate; the nature of the violation, and any other facts, a knowledge of which is necessary to a thorough understanding of the circumstances attending such violation.

(Code 1959, § 38-76; Ord. No. 64109, § 2, 12-4-86; Ord. No. 2010-05-06-0387, § 4, 5-6-10)

Sec. 19-225. Administrative adjudication of stopping, standing and parking violations.

(a) *Establishment of administrative adjudication.* All stopping, standing, and parking ordinance violations listed under V.T.C.A., Transportation Code §§ 545.301, 545.302, 545.303, and/or the City Code are hereby declared to be civil offenses.

(b) *Notice of right to instanter hearing and notice of time and place of scheduled hearings.* The citation or summons must provide information as to the time and place of an administrative adjudication hearing and must contain a notification that the person charged has the right of an instanter hearing prior to the scheduled hearing. The issuing peace officer or authorized parking enforcement agent shall not be required to attend the instanter hearing.

(c) *Hearing officers.* Hearing officers shall be appointed by the city manager. Said officers shall have authority to administer oaths and to issue

orders compelling the attendance of witnesses and the production of documents, such orders to be enforced by a municipal court.

(d) *Vehicle registered owner presumed to be operator.* At the hearing, it is presumed that the registered owner of the vehicle that is the subject of the hearing is the person who parked or stopped the vehicle at the time and place of the offense charged.

(e) *Prima facie evidence.* The state department of highways and public transportation computer generated record of the registered vehicle owner is prima facie evidence of its contents. The original or any copy of the summons or citation is also prima facie evidence of the facts contained therein.

(f) *Hearing officer order.* The hearing officer shall issue a written order stating whether or not the person charged is liable for the violation, and the amount of any fine, costs, or fee assessed against the person charged. The order shall be filed with the municipal court director. The failure of any person charged with an offense to appear at the hearing shall be an admission of liability for the charged offense. The record of witness testimony may be preserved for appellant review by the use of an audio tape recording or a video tape recording.

(g) *Enforcement measures.* Hearing office orders may be enforced by the following:

(1) Vehicle impoundment if the subject vehicle is found on any public street, public right-of-way, public easement, or city-owned parking facility, or other public property, if the vehicle owner has committed three (3) or more offenses in any calendar year;

(2) Immobilization of the subject vehicle if found on any public right-of-way, easement, city owned parking facility or other public property;

(3) Imposition of an added fine after a specified time;

(4) Refusal to allow registration of the subject vehicle as provided by V.T.C.A., Transportation Code § 702.003.

(h) *Maximum fine.* The total fine per violation shall not exceed five hundred dollars ($500.00). All fines, costs, and fees shall be paid into the city treasury general fund for the use and benefit of the city.

(i) *Appeal.* A person determined by the hearing officer to be in violation may appeal the decision to a municipal court by filing an appeal petition with the court clerk not later than thirty (30) days after the order is filed and by paying a five dollar ($5.00) appeal filing fee. The appeal hearing must be scheduled to occur within ten (10) days of the filing of the appeal petition. The appeal hearing before a municipal court judge shall be an administrative proceeding for the purpose of confirming or overruling the order issued by the administrative hearing officer based upon the evidence presented to the administrative hearing officer. The record of witness testimony may be preserved for appellant review by the use of an audio tape recording or a video tape recording.

(j) *Bond.* Neither a notice of intent to appeal nor the filing of an appeal petition shall stay the enforcement and collection of the judgment order unless the service of the notice of appeal is preceded by the posting of a bond with the municipal court director in an amount set by a municipal court judge.

(k) *Effective date.* Parking and stopping offenses occurring before September 1, 1987, shall be governed by the law in effect when the offense occurred, and the former law is continued in effect for that purposes.

(l) *Administrative procedures.* The municipal court director shall establish a written body of administrative procedures for these cases.

(m) *Booting fee.* The city shall recover the cost of enforcement of a hearing officer's order to boot an offending vehicle by requiring the payment of a sixty-dollar ($60.00) booting fee prior to debooting or prior to release of a vehicle from the impoundment facility. No booting fee shall be collected, however, if the vehicle is towed and impounded to remove it from risk of vandalism or theft within twenty-four (24) hours of booting,

said protective impoundment to be at the discretion of the parking enforcement supervisor or any police officer.

(n) *Misdemeanor offense.* It shall be unlawful for any unauthorized person to remove the immobilization device (boot) from the wheel of a vehicle, or to remove the booted wheel from a vehicle, or to move the booted vehicle, or to disable or damage the booting device. Violation of this subsection shall constitute a Class "C" misdemeanor offense, punishable by a fine of not more than five hundred dollars ($500.00).
(Ord. No. 65690, § 1, 9-10-87; Ord. No. 66559, 2-11-88; Ord. No. 90496, § 2, 9-16-99; Ord. No. 99738, § 1, 9-16-04; Ord. No. 2009-09-17-0731I, § 2, 9-17-09; Ord. No. 2010-05-06-0387, § 4, 5-6-10; Ord. No. 2018-03-01-0161, § 3, 3-1-18)

Sec. 19-226. Free parking at meters for gasoline-electric hybrid vehicles.

(a) The director of downtown operations is to adopt a system of registering gasoline-electric hybrid vehicles (hybrids). On application by the owner, the director will register hybrids and issue decals, placards, or other evidence of registration to be affixed to or displayed on the hybrid. The director is to establish rules for the proper display of the evidence of registration.

(b) Registered hybrids properly displaying the evidence of registration may park without charge at all parking meters maintained by the city, but only for the maximum duration of the meter. Hybrids remaining at a meter beyond its maximum duration may be ticketed in the same manner as other vehicles with expired meters. Meter charges are not abated for hybrids or other vehicles displaying evidence of registration issued to a different vehicle.
(Ord. No. 2006-05-04-0557, § 1, 5-4-06; Ord. No. 2007-05-10-0523, § 1, 5-10-07)

Secs. 19-227—19-235. Reserved.

DIVISION 4. COMMERCIAL PARKING AREAS

Sec. 19-236. Requirements for signs to be posted at commercial parking areas.

(a) *Definitions:*

(1) A "commercial parking area" is any land or structure used in connection with a business activity for the parking of vehicles and includes, but is not limited to:

a. A parking area offered to the general public at a set rate, whether it be by the hour, day or month.

b. A parking area reserved for the exclusive use of customers of a particular business.

c. A parking area intended for the use of individuals who own or rent space in or who work at a particular business location.

(2) "Entrance to the commercial parking area" is any opening to a commercial parking area which is capable of being used by a vehicle to affect ingress into the area where such opening is not marked with an exit sign conforming to the notice standards set out herein.

(b) *Scope.* Every commercial parking area, except those which are offered to the general public at no charge, shall be subject to the notice provisions set out herein.

(c) *Notice required:* The owner of a commercial parking area, or his agent, or the lessee of a commercial parking area, or his agent, shall give notice of the conditions under which the area may be used at every entrance of the commercial parking area. Such notice shall be given orally or in writing and shall include the following:

(1) A statement specifying those persons who may park in the area and prohibiting all others.

(2) The rates charged for parking in that area and the term of parking applicable to those rates, if the facility is offered to the general public.

(3) Where unauthorized vehicles are to be towed from the area, the name and telephone number of the operator of the parking area or the name and telephone number of the party charged with removing unauthorized vehicles, together with the storage location of the vehicles.

(d) *Form of notice:* The written notice required by this section shall be plainly visible to the public, shall be in English, and shall be in lettering of at least three (3) inches high.

(e) *Barriers.*

(1) The owner or lessee of a commercial parking area shall erect a physical barrier at

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every entrance and exit of such parking area constructed and maintained not less than twenty-six (26) inches in height from the ground surface of the parking area. If such physical barrier consists of a chain or cable, such chain or cable shall be attached to a supporting pipe or structure not less than twenty-six (26) inches above the ground surface of the parking area at each and every point of attachment. Said barrier is to be in place at any time the commercial parking area or the business or business building for which it provides exclusive parking for employees, tenants or customers is closed for business. The provisions of this paragraph shall not apply to commercial parking areas if the owner of said parking area, or his lessee, manifest the intention, by failure to construct a physical barrier, to allow the general public free parking at such times as the commercial parking area, the business establishment, or the business building for which it provides exclusive parking is not open for business.

(2) It shall be an affirmative defense to any prosecution under this subsection that the commercial parking area is one that provides only parallel or "head in" parking such that any motor vehicle parked thereon directly abuts a public street without an intervening sidewalk, raised curb or structure between such parking area and a public street.

(f) *Towing vehicles from parking areas:* Prior to the towing of any vehicle from a commercial parking lot, without the consent of the owner of that vehicle, the individual or towing company towing the vehicle shall notify the police department, radio message center, and provide the following information:

(1) The individual or business organization authorizing the towing.

(2) The name of the individual and the business organization towing the vehicle.

(3) The make, model, color, and license number of the vehicle to be towed.

(4) The location from which the vehicle is being removed and the location to which the vehicle will be towed.

(5) The charge to be made for the tow.

(Code 1959, § 34-8.1; Ord. No. 45008, § 1, 3-6-75; Ord. No. 45055, § 1, 3-20-75; Ord. No. 45428, § 1, 7-3-75; Ord. No. 48015, § 1, 5-12-77)

Secs. 19-237—19-239. Reserved.

DIVISION 5. PARKING FOR UNAUTHORIZED SALE*

Sec. 19-240. Definitions.

When used in this division, the following terms shall have the following meanings:

Authorized official shall mean the police chief, the director of code compliance, or any other city official designated by the city manager or their designees.

Property and *premises* shall mean all lots or parcels of land (platted and/or unplatted), together with all buildings, structures, yards areas, parking spaces and contiguous rights-of-way as defined by the Unified Development Code; collectively used for the same, general purpose or use as permitted by zoning.

Reasonable notice to the public shall mean:

(1) Any method making the sign or wording reasonably visible to a person passing by the perimeter of the property if the property is not open to the public;

(2) Any method making the sign or wording reasonably visible to a person entering onto the property or passing by the vehicle if the property is open to the public; or

(3) Any method making the sign or wording reasonably visible to a person passing by the vehicle or perimeter of the property if the vehicle is parked on a right-of-way.

*__Editor's note—__Section 2 of Ord. No. 2006-06-08-0694 states the following: "A violation of any parking regulations established herein is hereby declared to be a civil parking violation, and shall be punished by a penalty established in City Code Section 19-225."

Unauthorized sale shall mean the display for sale of any parked vehicle for which an exemption is not given within this article.

Unauthorized sale vehicle shall mean any vehicle displayed for an unauthorized sale.

Vehicle shall mean a motor vehicle, motorcycle, watercraft, trailer, semi-trailer, camper or recreational vehicle.
(Ord. No. 2006-06-08-0694, § 1, 6-8-06)

Sec. 19-241. Exceptions.

It shall be an exception to the presumption of an unauthorized sale if:

(1) The property is zoned residential, and

a. The registered owner of the vehicle actually resides on the property; and

b. No more than five (5) vehicles are displayed for sale on a property zoned single family residential during the calendar year; and

c. No more than one (1) vehicle per property zoned single family residential is displayed for sale at any one time; or

(2) The vehicle is located on property zoned for such sales and for which a certificate of occupancy for such sales is in effect and for which there is a valid license issued by the state department of transportation for such sales at that location. Any vehicle located on a public right-of-way shall not be included in this exception.
(Ord. No. 2006-06-08-0694, § 1, 6-8-06)

Sec. 19-242. Unauthorized sale presumed.

(a) Any vehicle on which is displayed a sign or words giving reasonable notice to the public that the vehicle is for sale shall be presumed to be an unauthorized sale vehicle.

(b) Any vehicle located on property on which is displayed signage or writing giving reasonable notice to the public that the vehicle on it is for sale shall be presumed to be a unauthorized sale vehicle.

(c) All vehicles, under the control of one or more sellers acting in concert with each other, located on property on which is displayed signage or writing giving reasonable notice to the public that a non-specified vehicle on it is for sale shall be presumed to be unauthorized sale vehicles.
(Ord. No. 2006-06-08-0694, § 1, 6-8-06)

Sec. 19-243. Declaration of unauthorized sale vehicle to be a public nuisance.

An unauthorized sale vehicle is hereby declared to be a public nuisance as it:

(1) Creates a visual blight;

(2) Increases traffic hazards due to its distractive nature;

(3) Poses a safety hazard to potential purchasers;

(4) Disturbs the peace and quiet of residential neighborhoods;

(5) Tends to attract other vendor types thereby creating a "flea market" atmosphere;

(6) Causes damage to public property due to curb jumping;

(7) Causes damage to private property due to accumulations of trash and traffic over unpaved surfaces;

(8) Fails to protect the legitimate interests of licensed vehicle dealers; and/or

(9) Fails to protect the public against fraudulent transactions.
(Ord. No. 2006-06-08-0694, § 1, 6-8-06)

Sec. 19-244. Unauthorized sale unlawful.

(a) It shall be unlawful for any person or entity to knowingly place or cause to be placed any vehicle in such a manner as to be an unauthorized sale vehicle.

(b) An offense under this division shall be a parking violation and shall be subject to the maximum fine provided in this article for civil parking violations.

(c) The remedies within this division are not exclusive and nothing herein shall preclude the city's pursuit of any and all other remedies allowed by City Code or state statute.
(Ord. No. 2006-06-08-0694, § 1, 6-8-06)

Sec. 19-245. Determination of an unauthorized sale vehicle.

The authorized official shall have the authority to determine if a vehicle is an unauthorized sale vehicle if that official has:

(1) Personally observed the vehicle to be within the definition and presumption of an unauthorized sale vehicle or can combine his/her observations with another official to satisfy the definition and presumption; and

(2) Has made a record and has secured the record of any other official's observations stating the specific observations to support the vehicle being within the definition and presumption as well as stating that none of the exceptions to the definition and presumption were applicable.

(Ord. No. 2006-06-08-0694, § 1, 6-8-06)

Sec. 19-246. Towing of unauthorized sale vehicles authorized.

(a) Upon determination that the vehicle is an unauthorized sale vehicle and upon the expiration of any time given to correct the unauthorized sale violation, an authorized official, after issuance of a citation or summons, may cause any unauthorized sale vehicle and any property on or in the unauthorized sale vehicle to be removed and stored at a vehicle storage facility at the owner's or person in control of the vehicle's expense.

(b) Before any unauthorized sale vehicle shall be towed, the city shall first attach in a reasonably conspicuous manner to the vehicle's front windshield or, if the vehicle has no front windshield, to a conspicuous part of the vehicle a notice stating that:

(1) The vehicle is displayed and parked in violation of the prohibition of unauthorized sale;

(2) The vehicle will be towed and stored at the expense of the owner or person in control of the vehicle if it is not removed from the area by a specified time not to exceed four (4) hours from the date the notice is attached;

(3) If the vehicle is found to be in violation of the prohibition of unauthorized sale within the next ninety (90) days, it may be towed and stored at the expense of the owner or person in charge of the vehicle without further notice.

(c) Any towing, storage or other fees incurred due to the towing of an unauthorized sale vehicle shall be in addition to any fine imposed due to the parking violation and shall not lessen such fine.

(d) If the unauthorized sale vehicle has been noticed within the previous ninety (90) days that it is in violation of the prohibition of unauthorized sale, no further notice or time to correct the violation shall be required before the vehicle may be towed.
(Ord. No. 2006-06-08-0694, § 1, 6-8-06)

Sec. 19-247. Owner's right to hearing.

(a) An owner of a vehicle cited and/or towed under this division shall be entitled to a hearing under this article.

(b) Should the hearing officer determine the person charged is not liable for the violation, the city shall refund all storage and towing payments to the person or entity having made such payments.
(Ord. No. 2006-06-08-0694, § 1, 6-8-06)

Sec. 19-248. Property owner may remove vehicle.

Nothing within this division shall preclude the owner of the property on which a vehicle is parked from removing a vehicle on the property owner's own initiative. Such removal, however, shall be a private matter and shall not be considered sanctioned or authorized by the city.
(Ord. No. 2006-06-08-0694, § 1, 6-8-06)

DIVISION 6. MOTOR VEHICLE IDLING*

Sec. 19-249. Definitions.

In this division:

(1) *Idle* means the operation of an engine in the operating mode where the engine is not engaged in gear, where the engine operates at a speed at the revolutions per minute specified by the engine or vehicle manufacturer for when the accelerator is fully released, and there is no load on the engine.

(2) *Motor vehicle* means any self-propelled device powered by an internal combustion engine and designed to operate with four (4) or more wheels in contact with the ground, in or by which a person or property is or may be transported, and is required to be registered under V.T.C.A., Transportation Code § 502.002, excluding vehicles registered under § 502.006(c).

(3) *Primary propulsion engine* means a gasoline or diesel-fueled internal combustion engine attached to a motor vehicle that provides the power to propel the motor vehicle into motion and maintain motion.

(Ord. No. 2016-06-30-0517, § 2, 6-30-16)

Sec. 19-249.001. Applicability.

This division applies within the jurisdiction of the City of San Antonio.

(Ord. No. 2016-06-30-0517, § 2, 6-30-16)

Sec. 19-249.002. Idling prohibited.

(a) No person shall cause, suffer, allow, or permit the primary propulsion engine of a motor vehicle to idle for more than five (5) consecutive minutes when the motor vehicle is not in motion.

(b) No driver using the vehicle's sleeper berth may idle the vehicle;

(1) In a school zone;

(2) Within one thousand (1,000) feet of a public school during its hours of operation;

(3) Within one thousand (1,000) feet of a hospital; or

(4) In a residential area.

(Ord. No. 2016-06-30-0517, § 2, 6-30-16)

Sec. 19-249.003. Exemptions.

Section 19-249.002 does not apply to:

(1) A motor vehicle that has a gross vehicle weight rating of fourteen thousand (14,000) pounds or less;

(2) A motor vehicle that has a gross vehicle weight rating greater than fourteen thousand (14,000) pounds and that is equipped with 2008 or subsequent model year heavy-duty diesel engine or liquefied or compressed natural gas engine that has been certified by the United States Environmental Protection Agency or a state environmental agency to emit no more than thirty (30) grams of nitrogen oxide emissions per hour when idling;

(3) The primary propulsion engine of a motor vehicle being used to provide air conditioning or heating necessary for employee health or safety in an armored vehicle while the employee remains inside the vehicle to guard the contents or while the vehicle is being loaded or unloaded;

(4) A motor vehicle forced to remain motionless because of traffic conditions over which the operator has no control;

(5) A motor vehicle being used by the United States military, national guard, or reserve forces, or as an emergency or law enforcement motor vehicle;

(6) The primary propulsion engine of a motor vehicle providing a power source necessary for mechanical operation, other than propulsion;

(7) The primary propulsion engine of a motor vehicle being operated for maintenance or diagnostic purposes;

*__Editor's note—__Ord. No. 2016-06-30-0517, § 10, adopted June 30, 2016, states that the penalty provisions of this division shall be effective January 1, 2017.

(8) The primary propulsion engine of a motor vehicle being operated solely to defrost a windshield;

(9) The primary propulsion engine of a motor vehicle that is being used to supply heat or air conditioning necessary for passenger comfort and safety in vehicles intended for commercial or public passenger transportation or passenger transit operations, in which case idling up to a maximum of thirty (30) minutes is allowed;

(10) The primary propulsion engine of a motor vehicle being used to provide air conditioning or heating necessary for employee health or safety while the employee is using the vehicle to perform an essential job function related to roadway construction or maintenance;

(11) The primary propulsion engine of a motor vehicle being used as airport ground support equipment;

(12) The owner of a motor vehicle rented or leased to a person who operates the vehicle and is not employed by the owner; section 19-249.002 does apply to the operator of the vehicle; or

(13) A motor vehicle when idling is necessary to power a heater or air conditioner while a driver is using the vehicle's sleeper berth for a government-mandated rest period and is not within two (2) miles of a facility offering external heating and air conditioning connections at a time when those connections are available.

(Ord. No. 2016-06-30-0517, § 2, 6-30-16)

Sec. 19-250. Reserved.

ARTICLE VII. SCHOOL ZONES AND SCHOOL BUSES*

DIVISION 1. GENERALLY

Sec. 19-251. School zones designated; driving restrictions.

(a) As a result of an engineering and traffic investigation by the public works department the city council has determined that the prima facie reasonable and prudent maximum speed on the public streets and highways of the city designated as school zones and described in separate ordinances of the city may be established at speeds of twenty (20), twenty-five (25), thirty (30) or thirty-five (35) miles per hour.

(b) No person shall drive a vehicle on a public street or highway designated as a school zone at a speed greater than is reasonable and prudent under the circumstances then existing. On that portion of those streets or highways designated as a school zone, the prima facie maximum reasonable and prudent speed in miles per hour when school is in session shall be such as provided in subsection (a) above, provided that an appropriate sign giving notice thereof is erected. Such signs shall state the prima facie maximum speed and the times during which the school zone is in effect or operation, or shall state the prima facie maximum speed when flashing and shall be accompanied by a flashing beacon or light during the times the school zone is in effect or operation. The times each school zone shall be in effect or operation shall be specified by the city traffic engineer and established by ordinance. Any speed in excess of that established by ordinance for a designated school zone while that school zone is in operation or effect shall be prima facie evidence that the speed is not reasonable and prudent and that it is unlawful.

(c) It shall be unlawful for any person to drive or operate any vehicle into or through any school crossing at a time when there is a child or children crossing or standing therein; provided that the said school zone has been indicated by

*__State law reference—__Regulations relative to school buses, Vernon's Ann. Civ. St. art. 6701d, § 105.

signs or placards not less than one hundred (100) feet from said crossing, and where such crossings have been established across paved streets its boundaries should be marked by lines of white or yellow paint and no crossing shall be greater than twenty (20) feet in width.

(d) Upon those streets and parts of streets near or adjacent to schools designated as school zones, vehicular traffic shall move only in the direction and during the hours specified when signs indicating the direction of traffic are erected.
(Code 1959, § 38-40; Ord. No. 31666, § 1, 8-14-63; Ord. No. 41504, § 1, 11-22-72; Ord. No. 42075, § 2, 4-12-73; Ord. No. 54506, § 1, 11-5-81; Ord. No. 99662, §§ 1—3, 9-2-04)

Editor's note—Sections 2 and 3 of Ord. No. 99662, adopted September 2, 2004, state the following: "Section 2. Until such time as specific speeds for specific school zones as authorized by 19-251(a) are designated and changed/established by ordinance, the prima facie reasonable, prudent and safe maximum speed on the public streets and highways of the city designated as school zones shall remain twenty (20) miles per hour. All existing designations of school zones shall remain in effect until such time as they are changed by separate ordinance.

Section 3. Until such time as specific times for specific school zones as authorized by 19-251(b) are changed and/or established by ordinance, the speed limit of twenty (20) miles per hour on public streets and highways designated by the city council as school zones shall remain in effect between the hours of 7:00 a.m. and 9:00 a.m. in the morning and 2:00 p.m. and 4:00 p.m. in the afternoon on any day of the regular or any special summer school term, and any speed in excess of twenty (20) miles per hour in such zones while such zones are in effect shall be prima facie evidence that the speed is not reasonable and prudent and that it is unlawful."

State law reference—Authority of city to create school zones, Vernon's Ann. Civ. St. art. 6701d, § 167(d).

Sec. 19-252. Passing school busses prohibited.

Except as hereinafter provided, the driver of a vehicle upon any and all public streets and thoroughfares within the city upon meeting or overtaking from either direction any school bus which has stopped on the street for the purpose of receiving or discharging any school children shall stop the vehicle before reaching such school bus when there is in operation on said school bus to the front two (2) alternately flashing red lights located at the same level and to the rear, two (2) alternately flashing red lights located at the same level, and these lights shall have sufficient intensity to be visible at five hundred (500) feet in normal sunlight, and said driver shall not proceed until such school bus resumes motion or is signaled by the school bus driver to proceed or the visual signals are no longer actuated.
(Code 1959, § 38-44; Ord. No. 31666, § 1, 8-14-63; Ord. No. 42075, § 3, 4-12-73)

State law reference—Similar provisions, Vernon's Ann. Civ. St. art. 6701d, § 104(a).

Sec. 19-253. When passing of school busses is not prohibited.

The driver of a vehicle upon a street within the corporate limits of this city with separate or divided roadways need not stop upon meeting or passing a school bus which:

(a) Is on a different roadway or when upon a controlled-access highway or street and the school bus is stopped in a loading zone which is a part of or adjacent to such highway or street and where pedestrians are not permitted to cross the roadway.

(b) Is on any public streets within the central business district of this city as defined in this chapter.

Editor's note—Similar provisions, Vernon's Ann. Civ. St. art. 6701d, § 104(b).

Sec. 19-254. Reserved.

Editor's note—Ord. No. 2014-11-06-0843, § 3, adopted November 6, 2014, repealed the former section 19-254 in its entirety, which pertained to regulating the use of hand-held mobile telephones and mobile communication devices in reduced speed school zones, and derived from Ord. No. 2008-08-21-0727, § 1, adopted August 21, 2008.

Sec. 19-255. Regulating the use of hand-held mobile communication devices while driving.

(a) In this section:

(1) *Engaging in a call* means talking to, dialing, or listening on a hand-held mobile communication device, but does not include holding a mobile communication device to activate or deactivate the device.

(2) *Hand-held mobile communication device* means a text-messaging device or other electronic, two-way communication device that uses a commercial mobile service, as defined by 47 U.S.C. § 332, that is designed to receive and transmit voice communication, text message or pictorial communication, or both, whether by internet or other electronic means. The term includes a mobile telephone, and a personal digital assistant (PDA).

(3) *Hands-free mobile telephone* means a mobile telephone that has an internal feature or function or that is equipped with an attachment or addition, whether or not permanently part of the mobile telephone, by which a user engages in a call without the use of either hand (or prosthetic device or aid in the case of a physically disabled person) whether or not the use of either hand (or prosthetic device) is necessary to activate or deactivate the mobile telephone.

(4) *Park* or *parked* shall mean for the operator to completely cease movement of a motor vehicle in a lawful manner and location. For purposes of this section, "parked" does not include or mean a vehicle stopped in a lane of traffic due to either a lawful traffic control device, or the conditions on the roadway, or traffic congestion patterns then existing.

(5) *Text message* means a two-way communication (whether real-time or asynchronous) in which data (composed in whole or in part of text, numbers, images, or symbols) is sent, entered, or received by a method other than by voice and transmitted through either a short message service (SMS) or a computer network. The term does not include a communication transmitted through a global positioning or navigation system.

(b) A person commits an offense if the person uses a hand-held mobile communication device to:

(1) Engage in a call;

(2) Send, read, or write a text message;

(3) View pictures or written text whether transmitted by internet or other electronic means;

(4) Engage in gaming; or

(5) Engage in any other use of the device while operating a moving motor vehicle.

(c) This section does not apply to an operator of a motor vehicle using a hand-held mobile communications device:

(1) While the vehicle is legally parked or is being driven on private property;

(2) That is affixed to the vehicle and used as a global positioning or navigation system;

(3) That is used with a hands-free mobile communication telephone or other such device;

(4) While operating an authorized emergency vehicle in an official capacity; or

(5) Who is licensed by the Federal Communications Commission while operating a radio frequency device other than a hand held mobile communication device.

(d) It shall be an affirmative defense to prosecution under this section that the person was using a hand-held mobile communication device for the purpose of:

(1) Executing the person's official duties;

(2) Reporting illegal activity to a law enforcement agency;

(3) Communicating with an emergency response operator, a fire department, a law enforcement agency, a hospital, a physician's office, or a health clinic regarding a medical or other emergency situation; or

(4) Preventing injury to a person or property.

(e) Only warning citations may be issued for the first thirty (30) days following the effective date of this section so that an educational effort by the city may be conducted to inform the public about the importance and requirements of this new section. Thereafter, a person convicted of an

offense under this section shall be punished by a fine of not more than two hundred dollars ($200.00).

(f) An offense under this section is not a moving violation and may not be made a part of a person's driving record or insurance record.

(g) In addition to enforcement by a peace officer of the city, this section may be enforced by a peace officer of another entity, including those employed by school districts, duly authorized to issue traffic citations within the city.
(Ord. No. 2010-10-07-0853, § 1, 10-7-10; Ord. No. 2014-11-06-0843, § 1, 11-6-14)

Secs. 19-256—19-265. Reserved.

DIVISION 2. DIVISION OF SCHOOL CROSSING GUARDS

Sec. 19-266. Creation.

There is hereby created the division of school crossing guards; the members of which shall have the qualifications and duties hereinafter enumerated.

Sec. 19-267. Qualifications, appointment, and removal.

(a) Members shall be women or men of good moral character and above the age of twenty-one (21) years.

(b) Members shall be appointed by the city manager and shall be subject to removal by him. They shall not be regular members of the police department as established by general ordinances or laws of the state.
(Code 1959, § 38-42; Ord. No. 44946, § 1, 2-20-75)

Sec. 19-268. Duties.

(a) Members of the school crossing guards shall serve at such times during school hours and before and after school hours as directed by the chief of police. They shall be stationed at street

intersections, or their street crossings within any school zones heretobefore, and hereafter established within the city, as directed by the chief of police.

(b) Such school crossing guards shall have no powers of arrest, but shall take the license number of any motorist violating this chapter and report it to the police department.

(c) It shall be unlawful for the driver of any motor or other vehicle to fail to stop when ordered to do so by a school crossing guard.
(Code 1959, § 38-43)

Secs. 19-269—19-280. Reserved.

ARTICLE VIII. MISCELLANEOUS DRIVING RULES

Sec. 19-281. Traffic on streets closed for repairs.

It shall be unlawful for any person to lead or ride, or cause to be ridden, any horse, mule, or other animal, or to drive, or cause to be driven, any carriage, wagon, car, bicycle, dray, automobile, or any other vehicle, or to walk over, across, or upon any street or plaza in the city while such street or plaza is in the course of repair and has been closed to public travel, or after repairs have been completed but before such street or plaza shall have been opened by the city to public travel.

Sec. 19-282. Driving through funeral or other processions.

No driver of a vehicle shall drive between the vehicles comprising a funeral or other authorized procession while they are in motion.
(Code 1959, § 38-49)

Sec. 19-283. Limitations on backing.

The driver of a vehicle shall not back the same unless such movement can be made with reasonable safety and without interfering with other traffic.

Sec. 19-284. Riding on motorcycles.

A person operating a motorcycle shall not ride other than upon the permanent and regular seat attached thereto or carry any other person nor shall any other person ride upon such motorcycle other than upon a firmly attached seat to the rear or side of the operator.
(Code 1959, § 38-51)

State law reference—Similar provisions, Vernon's Ann. Civ. St. art. 6701d, § 174.

Sec. 19-285. Clinging to moving vehicles.

Any person riding upon any bicycle, motorcycle, coaster, roller skates, sled, or any toy vehicle shall not attach the same or himself to a moving vehicle upon any roadway.
(Code 1959, § 38-52)

Sec. 19-286. Driving or parking on sidewalks prohibited.

(a) It shall be unlawful for any person to drive or propel or park or stand any vehicle upon any sidewalk.

(b) Law enforcement officers and emergency medical personnel while using bicycles provided by governmental agencies and while in the performance of their authorized duties are exempt from the provisions of subsection (a). Any person, while parking a bicycle in city installed bike racks, is also exempt from the provisions of this section.
(Code 1959, § 38-54; Ord. No. 53243, § 1, 1-15-81; Ord. No. 88129, § 1, 7-23-98)

Sec. 19-287. Operating heavy construction equipment on expressways.

(a) No person shall drive or operate any motor graders, combines or heavy construction equipment such as motor powered scrapers, motor cranes, pneumatic tired rollers, pneumatic tired front end loaders or backhoes on any expressway located within the city.

(b) Equipment owned by governmental agencies, or their contractors, while being used in the performance of authorized duties on the various expressways within the city, and equipment that complies with the statutory size restrictions as

specified in Vernon's Ann. Civ. St. art. 6701d-11, section 3, and is not impeding the flow of traffic, are exempted from the provisions of this section.

(c) Any person who shall violate any provision of this section shall be deemed to be guilty of a misdemeanor and shall upon conviction be punished in accordance with section 1-5.
(Code 1959, § 38-55.2; Ord. No. 34316, §§ 1, 2, 4-28-66; Ord. No. 34424, §§ 1—3, 6-9-66; Ord. No. 43843, 5-30-74)

Sec. 19-288. Only vehicles permitted on controlled-access roadways.

No person shall occupy or use any controlled-access roadway except in or upon a motor vehicle. Pedestrians and equestrians are prohibited from using controlled-access roadways, including the traveled portion, the median strip and the shoulders.
(Code 1959, § 38-56)

Sec. 19-289. Unlawful riding.

No person shall ride in or on any portion of a motor vehicle not designed for the transport of passengers, except when engaged in the necessary discharge of employment or business duties; and no operator of a motor vehicle shall drive on any public street or right-of-way within the City of San Antonio while a passenger under the age of fourteen (14) is in or on any portion of the vehicle that is not designed for passengers, including the bed of a pickup truck which is not equipped with securely attached passenger seats, or which is not equipped with a camper or other truck-bed accessory that provides a roof and four (4) walls.
(Code 1959, § 38-58; Ord. No. 68419, § 1, 12-1-88)

Sec. 19-290. Railroad trains not to block streets.

(a) It shall be unlawful for the directing officer or the operator of any railroad train to operate the train in such a manner as to prevent the use of the street for purposes of travel for a period of time longer than five (5) minutes. It shall be a defense to prosecution under this section that the train, other than a switch engine, was in motion at a speed of more than three (3) miles per hour during all or a part of the period of blocking travel and was not standing for five (5) minutes or more.

(b) It shall be unlawful for the directing officer or the operator of any railroad train to operate the train in such a manner that a street, blocked by a train so as to prevent its use for travel, is a second time blocked without the intervention of a period of at least five (5) minutes during which such street shall be open to travel.
(Code 1950, § 46-17; Ord. No. 25882, § 1, 12-19-57; Code 1959, §§ 33-3, 33-59)

State law reference—Similar provisions, Vernon's Ann. Civ. St. art. 6701d-5.

Sec. 19-291. Opening doors to vehicles.

No person shall open the door of any vehicle unless and until such opening can be made without endangering either pedestrians on a sidewalk or vehicles in a moving lane of traffic.
(Code 1959, § 38-60)

Sec. 19-292. Truck routes; weight of loaded vehicles.

(a) All Interstate Highway, U.S. Highway and State Highway numbered routes within the city are designated as truck routes.

(b) It shall be unlawful for any truck over 18,000 lbs. gross vehicle weight rating (or 18,000 lbs. gross cargo weight rating in the case of a truck-trailer or truck-trailer unit) to use, travel upon or be driven over any street, avenue, or highway within the city not designated as a truck route.

(c) If the point of origin or destination, for commercial purposes only, for any truck is off the truck route, but is on an arterial street, then the truck may proceed by the shortest possible route, consisting of city arterial streets (defined for this purpose as those streets marked for two (2) or more lanes in each direction) to or from the nearest truck route. If the point of origin or destination is not on a truck route or a city arterial street, then the truck may proceed by the shortest possible route to or from the nearest numbered route or city arterial street.

(d) No commercial motor vehicle, truck, tractor, truck-tractor, trailer, semi-trailer, or other vehicle nor any combination of such vehicles shall be operated over or upon the streets, bridges, or public ways of the city, the total gross weight of which exceeds that permitted a like vehicle on the highways of the state.

(e) Sections of the Code to the contrary notwithstanding, violations of this section shall be punishable by a fine not to exceed five hundred dollars ($500.00).
(Code 1959, § 38-62; Ord. No. 31028, §§ 1, 2, 1-9-63; Ord. No. 83390, § 1, 1-4-96)

Cross reference—Weight limited bridges, § 29-193 et seq.

Sec. 19-293. Trucks not to travel park roads.

(a) This section is for the purpose of protecting park roads, designed primarily for private passenger automobile traffic carrying passengers into and out of the public parks of the city for recreational purposes, from the damaging and deteriorating effects of heavy, through vehicular traffic.

(b) All use of park roads by trucks having a combined body and weight load in excess of seven thousand, five hundred (7,500) pounds is prohibited.

(c) This section shall not prohibit upon park roads:

(1) Operation of emergency vehicles.

(2) Operation of trucks or buses owned or operated by the city; public utilities, by any contractor or materialman while engaged in repair, maintenance or construction of park roads, or utilities within the park.

(3) Operation of any truck serving a park function or performing a service for a concessionaire within a park.

(4) School buses.
(Code 1959, § 38-63)

Sec. 19-294. Motor assisted scooters, neighborhood electric vehicles, pocket bikes, and mini motorbikes.

(a) In this section, the following definitions apply:

Motor assisted scooter means:

(1) A self-propelled device with:

a. At least two (2) wheels in contact with the ground during operation;

b. A braking system capable of stopping the device under typical operating conditions;

c. A gas or electric motor not exceeding forty (40) cubic centimeters;

d. A deck designed to allow a person to stand or sit while operating the device; and

e. The ability to be propelled by human power alone; and

(2) Does not include a pocket bike or mini motorbike.

Neighborhood electric vehicle means a vehicle subject to Federal Motor Vehicle Safety Standard 500 (49 C.F.R. Section 571.500). The operation of neighborhood electric vehicles on a street or highways with a posted speed limit of thirty-five (35) miles per hour or less is authorized, provided that all other requirements in V.T.C.A., Transportation Code ch. 551, subch. D, shall apply.

Pocket bike or *mini motorbike* means a self-propelled vehicle that is equipped with an electric motor or internal combustion engine having a piston displacement of less than fifty (50) cubic centimeters, is designed to propel itself with not more than two (2) wheels in contact with the ground, has a seat or saddle for the use of the operator, is not designed for use on a highway, and is ineligible for a certificate of title under Chapter 501 of the Texas Transportation Code. The term does not include:

(1) A moped or motorcycle;

(2) An electric bicycle or motor-driven cycle, as defined by Section 541.201 of the Texas Transportation Code;

(3) A motorized mobility device, as defined by Section 542.009 of the Texas Transportation Code;

(4) An electric personal assistive mobility device, as defined by Section 551.201 of the Texas Transportation Code; or

(5) A neighborhood electric vehicle.

Protective headgear means headgear which meets the minimum safety standards for protective headgear used by motorcyclists in this state as adopted by the state department of transportation.

(b) A person commits an offense if the person:

(1) Operates a motor assisted scooter, a pocket bike or mini motorbike on a street, highway or sidewalk; or operates a neighborhood electric vehicle on a street or highway with a posted speed limit greater than thirty-five (35) miles per hour;

(2) Operates a pocket bike or mini motorbike anywhere in a park;

(3) Operates a motor assisted scooter in a park, unless on a designated park trail where the operation of such scooters is specifically authorized by sign;

(4) Operates, if under twenty-one (21) years of age, a motor assisted scooter, a pocket bike or mini motorbike unless wearing protective headgear;

(5) Knowingly fails as a parent of a child or a guardian of a ward, to directly supervise the operation by a child or a ward under fifteen (15) years of age of a motor assisted scooter, pocket bike or mini motorbike; and

(6) Operates a motor assisted scooter which has been mechanically altered from the original manufacturer's design;

(c) A culpable mental state is not required, and need not be proved, for an offense under subsections (b)(1), (2), (3), (4) or (6).

Any person who engages in any activity specified in subsections (b)(1), (2), (3), (5), and (6), commits a class C misdemeanor and is subject to a fine not to exceed five hundred dollars ($500.00).

Any person who fails to wear protective headgear in violation of subsection (b)(4), commits a class C misdemeanor and is subject to a fine of not less than ten dollars ($10.00) nor more than fifty dollars ($50.00).
(Ord. No. 2006-02-09-0172, §§ 1—3, 2-9-06; Ord. No. 2013-05-09-0321, § 1, 5-9-13)

Sec. 19-295. Requirement for use of front and rear lights when operating a bicycle at nighttime.

While operating a bicycle on a public street a person may not operate a bicycle at nighttime, the period beginning one-half hour after sunset and ending one-half hour before sunrise, unless the bicycle is equipped with:

(1) A lamp on the front of the bicycle that emits a white light visible from a distance of at least five hundred (500) feet in front of the bicycle; and

(2) On the rear of the bicycle:

a. A red reflector that is:

1. Of a type approved by the department of public safety; and

2. Visible when directly in front of lawful upper beams of motor vehicle headlamps from all distances from fifty (50) to three hundred (300) feet to the rear of the bicycle; or

b. A lamp that emits a red light visible from a distance of five hundred (500) feet to the rear of the bicycle.

Any person who engages in any activity specified in this section may be subject to prosecution for a class C misdemeanor and a fine not to exceed two hundred dollars ($200.00).
(Ord. No. 2010-04-08-0302, §§ 1, 2, 4-8-10)

Secs. 19-296—19-305. Reserved.

ARTICLE IX. EMERGENCY VEHICLES

DIVISION l. GENERALLY

Secs. 19-306—19-320. Reserved.

DIVISION 2. AUTHORIZED EMERGENCY VEHICLES

Sec. 19-321. Authorized emergency vehicles governed by state law.

Authorized emergency vehicles shall be governed by the pertinent provisions of the state traffic laws.
(Code 1959, § 38-35; Ord. No. 31359, § 1, 5-22-63)

State law reference—Application of state traffic laws to authorized emergency vehicles, Vernon's Ann. Civ. St. art. 6701d, § 24.

Secs. 19-322—19-335. Reserved.

DIVISION 3. AMBULANCES

Sec. 19-336. Definitions.

As used in this division the following terms have the meanings as indicated below:

Emergency shall mean a circumstance in which the element of time is involved in treating and transporting a sick, wounded or injured person in order to protect such person's health or life.

Emergency ambulance shall mean any motor vehicle designed, equipped or used for transporting the injured or sick from an emergency site to a medical facility for treatment.

Emergency ambulance service shall mean responding to calls for ambulance service to the site of an emergency, the ambulance trip to the place or from the place of an emergency, the transporting of sick and injured from site to a medical facility or the rendering of first aid or medical assistance at an emergency site from an emergency ambulance.

Emergency run shall mean an ambulance trip to a place where an emergency exists, or from such place to a hospital, or other medical facility for treatment.
(Code 1959, § 38-36.4; Ord. No. 44606, § 4, 11-14-74)

Sec. 19-337. Compliance.

Except as provided in section 19-338, drivers of ambulances operating on the public streets of this city shall comply with all city ordinances and regulations applicable to motor vehicles generally including ordinances and regulations governing the speed of ordinary vehicles.

Sec. 19-338. Exemptions to ambulances.

(a) The driver of an ambulance, when removing patients to or from a hospital or private residence may park or stand irrespective of city ordinances regulating the parking or standing of vehicles on the public streets.

(b) The driver of an ambulance, when responding to an emergency call and displaying a red

flashing emergency light, may exercise the privileges set forth in this section subject to the conditions herein stated:

(1) Park or stand irrespective of the provisions of city ordinances regulating the parking or standing of vehicles on public streets.

(2) Proceed past a red or stop signal or stop sign but only after slowing to a speed not in excess of ten (10) miles per hour.

(c) This section shall not be construed to relieve the driver of an ambulance from the duty to drive with due regard for the safety of others, nor his employer from liability for the consequences of said driver's negligence. Nothing in this section shall be construed to authorize operating or driving an ambulance at a speed in excess of that which is permissible under city ordinances governing the speed of motor vehicles generally.
(Code 1959, § 38-37; Ord. No. 31666, § 1, 8-14-63)

Sec. 19-339. Emergency ambulance calls.

(a) It shall be unlawful for any person other than a member of the fire department, emergency medical services division to operate, drive, or cause to be operated or driven any ambulance on the streets of the city for the purpose of furnishing emergency ambulance service, or to furnish or attempt to furnish emergency ambulance service in the city.

(b) It is an affirmative defense to prosecution that the site of an emergency is outside of the area served by the city emergency medical services system, and the emergency ambulance is operating on city streets only for the purpose of responding to an emergency site so located for transporting the victim(s) to a medical facility.

(c) It is an affirmative defense to prosecution that the driver of such an ambulance is operating same pursuant to a contract for maintaining an ambulance at a particular location or event for the purpose of transporting sick or injured persons for medical or hospital treatment.

(d) It is an affirmative defense to prosecution that the site of an emergency is inside the area served by the city emergency medical services system, but permission has been received from the emergency medical service dispatcher to make such emergency run. Upon receipt of a request to make such an emergency run, the dispatcher shall grant such permission if no other ambulance, public or private, has been previously dispatched to the emergency scene.
(Code 1959, § 38-36.1; Ord. No. 35006, §§ 1—3, 12-1-66; Ord. No. 35537, §§ 1—3, 6-22-67; Ord. No. 43411, § 7, 2-21-74; Ord. No. 44606, § 1, 11-14-74)

Sec. 19-340. Area covered.

The area served by the city emergency medical services system shall consist of the corporate limits of the city, the unincorporated areas of the county, and all other incorporated cities in the county which have contracted with the city for coverage under the system. This area is shown in documents on file in the office of the city clerk for public inspection.
(Code 1959, § 38-36.2; Ord. No. 44606, § 2, 11-14-74)

Sec. 19-341. Emergency medical services dispatcher.

The emergency medical services dispatcher shall be the person designated by the fire chief to handle calls for emergency medical services, and shall be available by telephone at all hours.
(Code 1959, § 38-36.3; Ord. No. 44606, § 3, 11-14-74)

Sec. 19-342. Insurance.

It shall be unlawful for any person to drive, operate, or allow to be operated, or cause, permit or allow any person within his employ to drive an ambulance, upon the public streets of this city, . unless he carries liability insurance for such ambulance in the amount of five thousand dollars ($5,000.00) per person and ten thousand dollars ($10,000.00) per accident to cover personal injury, and in the amount of five thousand dollars ($5,000.00) to cover property damage and unless he has filed with the city clerk a certificate of insurance, issued by an insurance company licensed to do business in the state, in the amounts specified above, which certificate shall recite that in case of cancellation of said insurance the in-

surer will give written notice to the city clerk of such proposed cancellation at least thirty (30) days prior to the effective date of such cancellation.
(Code 1959, § 38-39)

Secs. 19-343—19-355. Reserved.

ARTICLE X. JUNKED VEHICLES*

Sec. 19-356. Definitions.

Antique vehicle means a passenger car or truck that is at least twenty-five (25) years old.

Inoperable means a vehicle that is in such condition at the time of inspection, that it is no longer usable for the purpose for which it was manufactured, regardless of the potential for repair or restoration. If the vehicle is wrecked, dismantled or partially dismantled it is presumed to be inoperable.

Junked vehicle means a vehicle that is self-propelled or was manufactured to be self-propelled, or any part thereof, in ordinary public view, which remains inoperable for a continuous period of ten (10) days.

Motor vehicle collector means a person who:

(1) Owns one or more antique or special interest vehicles; and

(2) Acquires, collects, or disposes of an antique or special interest vehicle or part of an antique or special interest vehicle for personal use to restore and preserve an antique or special interest vehicle for historic interest.

Ordinary public view means a vehicle or any part thereof or the tarp or cover thereon is visible at any time of the year from any public right-of-way, or adjacent land or the first floor level of a building thereon, which is owned or occupied by a person other than the property owner or occupant of the property on which the vehicle is located or parked.

Property owner means the owner of any premises, as listed in the real property tax records of the city on which the junked vehicle is located.

Scrapyard shall include salvage yards as defined by this Code.

Special interest vehicle means a motor vehicle of any age that has not been changed from original manufacturer's specifications and, because of its historic interest, is being preserved by a hobbyist.
(Ord. No. 100203, § 3, 12-16-04)

Sec. 19-357. Declaration of junked vehicle to be a public nuisance.

A junked vehicle, including a part of a junked vehicle, that is visible at any time of the year from a public place or public right-of-way:

(1) Is detrimental to the safety and welfare of the public;

(2) Tends to reduce the value of private property;

(3) Invites vandalism;

(4) Creates a fire hazard;

(5) Is an attractive nuisance creating a hazard to the health and safety of minors;

(6) Produces urban blight adverse to the maintenance and continuing development of municipalities; and

(7) Is a public nuisance.
(Ord. No. 100203, § 3, 12-16-04)

Sec. 19-358. Offense.

(a) A person commits an offense if the person maintains a public nuisance as described by section 19-357.

(b) An offense under this article is a misdemeanor punishable by a fine not to exceed two hundred dollars ($200.00). In the event, a defendant has once previously been convicted under this article; the defendant shall be fined an amount not less than one hundred dollars ($100.00) for

*__Editor's note—__Ord. No. 100203, §§ 2, 3, adopted December 16, 2004, repealed and reenacted article X to read as herein set out. Formerly, article X pertained to similar subject matter and derived from Ord. No. 69456, § 1, adopted May 11, 1989; Ord. No. 76464, § 2, adopted September 10, 1992; Ord. No. 99730, § 2, adopted September 16, 2004.

Cross reference—Impounding of vehicles, § 19-51 et seq.

each conviction thereafter. Each day a violation is permitted to exist shall constitute a separate offense.

(c) Upon conviction, the court shall order abatement and removal of the nuisance within ten (10) calendar days of conviction.

(1) The person convicted shall be responsible for the removal and abatement as provided in subsection 19-363(b) and shall provide verification of the abatement and removal within fourteen (14) calendar days of conviction.

(2) Should the convicted person fail to remove the nuisance within the time allowed, the city shall remove and abate the nuisance without further notice to any party and shall recover all costs for the removal and abatement in the manner provided in this article.

(Ord. No. 100203, § 3, 12-16-04)

Sec. 19-359. Authority to abate nuisance.

A junked vehicle or part of a junked vehicle as a public nuisance may be abated and removed from a private or public property or a public right-of-way if the following procedures are followed:

(1) A person authorized to administer the procedures to abate and remove the nuisance may enter private property to:

a. Examine a public nuisance;

b. Obtain information to identify the nuisance; and

c. Remove or direct the removal of the nuisance.

(2) A public hearing shall be provided before removal of the public nuisance if requested in writing by a person to whom notice is required under subsection 19-361(a)(3).

(3) The municipal court may issue necessary orders to enforce the procedures of this article.

(4) Procedures for abatement and removal of a public nuisance must be administered by regularly salaried, full-time employees of the municipality or county, except that any authorized person may remove the nuisance.

(Ord. No. 100203, § 3, 12-16-04)

Editor's note—Ord. No. 100203, § 3, adopted December 16, 2004, enacted provisions intended for use as subsections (a)—(d). To preserve the style of this Code, and at the discretion of the editor, said provisions have been redesignated as subsections (1)—(4).

Sec. 19-360. Commencement of abatement proceedings.

(a) The proceeding for abatement and removal of a public nuisance under this article shall be commenced upon the sending of the notice as prescribed by this article.

(b) Relocation of a public nuisance to another location within the city limits, after a proceeding for the abatement and removal of the public nuisance has commenced, shall have no effect on the proceeding if the junked vehicle constitutes a public nuisance at the new location.

(Ord. No. 100203, § 3, 12-16-04)

Sec. 19-361. Notice to abate.

(a) Notice for abatement and removal of a public nuisance under this article must provide not less than ten (10) days notice of the nature of the nuisance. The notice must be personally delivered or sent by certified mail with a five-day return requested to:

(1) The last known registered owner of the nuisance;

(2) Each lienholder of record of the nuisance; and

(3) The owner or occupant of:

a. The property on which the nuisance is located; or

b. If the nuisance is located on a public right-of-way, the property adjacent to the right-of-way.

(b) The notice must state that:

(1) The nuisance must be abated and removed not later than the tenth day after the date on which the notice was personally delivered or mailed; and

(2) Any request for hearing must be in writing and be made before the ten-day period expires.

(c) If the post office address of the last known registered owner of the nuisance is unknown, notice may be placed on the nuisance or, if the owner is located, personally delivered.

(d) If notice is returned undelivered, action to abate the nuisance shall be continued to a date not earlier than the eleventh day after the date of the return.
(Ord. No. 100203, § 3, 12-16-04)

Sec. 19-362. Abatement hearing.

(a) If a person for whom notice is required under subsection 19-361(a)(3) requests a hearing, the public hearing shall be held no earlier than the 11th day after the date of the service of notice.

(b) At the hearing, the junked motor vehicle is presumed, unless demonstrated otherwise by the owner, to be inoperable.

(c) The court shall issue an order or resolution following the conclusion of the hearing.

(d) A resolution or order requiring the removal of the nuisance must:

(1) Prohibit the vehicle from being reconstructed or made operational after removal;

(2) Require that, not later than the fifth day after the date of removal, notice identifying the vehicle or part thereof be given to the appropriate state agency or department for the cancellation of the certificate of title issued for the vehicle.

(3) Include if the information is available at the location of the nuisance, the vehicle's:

a. Description;

b. Vehicle identification number; and

c. License plate number.
(Ord. No. 100203, § 3, 12-16-04)

Sec. 19-363. Removal and disposal of nuisance.

(a) The ordered removal of a public nuisance by the court may be done by any person or entity so authorized by the city manager, police department, or code compliance department.

(b) A junked vehicle, including a part of a junked vehicle, may be removed to a scrapyard, a motor vehicle demolisher, or a suitable site operated by the city or county.

(c) If the city or county determines that commercial disposition of junked vehicles is not available or is inadequate, the city or county may:

(1) Finally dispose of a junked vehicle or vehicle part; or

(2) Transfer it to another disposal site if the disposal is scrap or salvage only.

(d) Any proceeds from the transfer of the junked vehicle or part thereof to the site authorized by this section shall be used to reimburse the city for all costs incurred in the notification, investigation, hearing, and disposal procedures (including any and all variable towing and disposal fees from contracted sources) within this article. Any remaining proceeds shall be transferred to the lienholder of record or, if none, the owner of record.

(e) The vehicle may not be reconstructed or made operable after removal.
(Ord. No. 100203, § 3, 12-16-04)

Sec. 19-364. Exceptions.

The procedures and penalties authorized by this article shall not apply to a vehicle or vehicle part that is:

(1) Completely enclosed in a building in a lawful manner and is not visible from the street or public or private property or;

(2) Stored or parked in a lawful manner on private property in connection with the business of a licensed vehicle dealer or junkyard, or that is an antique vehicle or

a special interest vehicle, stored by a motor vehicle collector on the collector's property, if the vehicle or part and the outside storage area, if any, are:

a. Maintained in an orderly manner;

b. Not a health hazard; and

c. Screened from ordinary public view by appropriate means, including a fence, rapidly growing trees, or shrubbery.

(Ord. No. 100203, § 3, 12-16-04)

Secs. 19-365—19-385. Reserved.

ARTICLE XI. WRECKER SERVICE*

DIVISION 1. GENERAL PROVISIONS

Sec. 19-386. Compliance with state and local ordinances.

All towing companies, tow truck drivers, vehicle storage facilities and property owners under this article shall comply with all applicable state laws, local ordinances and rules issued by the state department of licensing and regulation applicable to a tow truck, towing company, tow operator, or storage facilities.

(Ord. No. 2013-01-31-0075, § 1(Att. I), 1-31-13)

Sec. 19-387. Definitions.

In this chapter:

City means the City of San Antonio.

City parking manager means the director of the department overseeing city parking facilities, or their designee.

Combination vehicle means a combination of two (2) or more vehicles being propelled by one (1) power unit, regardless if the power unit is capable of carrying cargo.

Consent tow has the same meaning as defined by V.T.C.A., Occupations Code § 2308.002.

Department means the San Antonio Police Department.

Director shall mean the chief of police or his designee.

Driver means an individual who drives or operates a tow truck.

Hooked up means the vehicle is fully prepared for transport by attachment to a tow truck, lifted in a tow position, with tow lights and safety chains attached and, if required, placed on a dolly in a raised position and the ONLY thing remaining is for the tow operator to drive away.

Nonconsent tow has the same meaning as defined by V.T.C.A., Occupations Code § 2308.002.

Operate means to drive or to be in control of a tow truck or the vehicle storage facility.

Operator means the driver or owner of a tow truck or the operator of a vehicle storage facility.

Parking facility has the same meaning as defined by V.T.C.A., Occupations Code § 2308.002.

Person means an individual, assumed name entity, partnership, joint-venture, association, corporation, or other legal entity.

Property entrance means any point of access by a vehicle to private property including adjoining properties and alley ways.

Property owner means the owner or authorized agent of private, real property.

Tow truck has the same meaning as defined by V.T.C.A., Occupations Code § 2308.002.

Towing company has the same meaning as defined by state law and includes any company that holds a contract to enforce parking violations/restriction through the use of a nonconsent tow or collects money related to a nonconsent tow.

Unauthorized vehicle has the same meaning as defined by V.T.C.A., Occupations Code § 2308.002.

Vehicle has the same meaning as defined by V.T.C.A., Occupations Code § 2308.002.

*__Editor's note—__Ord. No. 2013-01-31-0075, § 1(Att. I), adopted January 31, 2013, repealed and reenacted article XI in its entirety to read as herein set out. Formerly, article XI, division 1—5, pertained to similar subject matter, and derived from Ord. No. 96242, § 1(Attach. I), adopted August 22, 2002, and Ord. No. 2008-03-13-0202, § 1, adopted March 13, 2008.

Vehicle owner or operator has the same meaning as defined by V.T.C.A., Occupations Code § 2308.002.

Vehicle storage facility has the same meaning as defined by V.T.C.A., Occupations Code § 2308.002.
(Ord. No. 2013-01-31-0075, § 1(Att. I), 1-31-13)

Sec. 19-388. Authority and duties of the department.

The department shall implement and enforce this article. In addition to the powers and duties elsewhere prescribed in this article, the department is authorized to:

(1) Conduct random periodic investigations of towing, and vehicle storage facilities throughout the city concerning their compliance with this article and state law.

(2) Inspect tow trucks vehicles for compliance with, vehicle and equipment safety standards established by this chapter.

(3) Conduct random inspections of tow trucks records and facilities for compliance with state law and public safety. Inspections should be performed in a reasonable manner so as to comply with the laws of the state.

(4) Conduct random inspections of vehicle storage facility records, facilities, and storage lots for compliance with state law and public safety. Inspections should be performed in a reasonable manner so as to comply with the laws of the state.
(Ord. No. 2013-01-31-0075, § 1(Att. I), 1-31-13)

Sec. 19-389. Exemptions.

Except as specifically noted, this article does not apply to:

(1) A person towing a vehicle with the express consent of the owner or operator of the vehicle;

(2) A person towing a vehicle from public streets and ways or private property under the direction of the department;

(3) A person who engages in towing a vehicle in connection with a bona fide repossession of same when written authorization has been received from the lienholder.
(Ord. No. 2013-01-31-0075, § 1(Att. I), 1-31-13)

DIVISION 2. OPERATIONS

Sec. 19-390. Prohibition against unattended vehicles in certain areas.

The owner or operator of a vehicle may not leave unattended on a parking facility a vehicle that:

(1) Is in or obstructs a vehicular traffic aisle, entry, or exit of the parking facility;

(2) Prevents a vehicle from exiting a parking space in the facility;

(3) Is in or obstructs a fire lane marked in accordance with this Code;

(4) Obstructs immediate access to a trash dumpster; the trash dumpster or area of immediate access to the dumpster must be conspicuously and legibly marked on all sides of access with the warning "NO PARKING-TOW AWAY ZONE" (signage shall be in white letters, or other contrasting color, at least three (3) inches tall);

(5) Obstructs a curb painted red and conspicuously and legibly marked with the warning "NO PARKING-TOW AWAY ZONE." (Curb markings or signs shall be at intervals not to exceed fifty (50) feet and in compliance with state law.);

(6) Is improperly parked on private property in a restricted or reserved parking area which has been properly marked pursuant to state law; or

(7) A fee for parking has not been paid to the parking facility if the facility has been properly marked pursuant to state law.
(Ord. No. 2013-01-31-0075, § 1(Att. I), 1-31-13)

Sec. 19-391. Requirements for posting signs.

(a) A minimum of one (1) sign shall be placed on the right or left side of each driveway or curb cut through which a vehicle can enter the property, including an entry from an alley or other property abutting the property.

(b) At intervals along the entrance so that no entrance is farther than twenty-five (25) feet from a sign if:

(1) Curbs, access barriers, landscaping, or driveways do not establish definite vehicle entrances onto a parking facility from a public roadway other than an alley; and

(2) The width of an entrance exceeds thirty-five (35) feet.

(c) Each sign must conform to the minimum requirements as required by state law.

(d) Each sign must be posted in a manner and location so that the signs are facing and conspicuous to the driver of a vehicle entering the property.

(e) Upon review by the chief of police or his designee, a parking facility causing tows under this chapter may be required to install additional signage in order to correct problems associated with conformity of signage due to parking facility layout.

(Ord. No. 2013-01-31-0075, § 1(Att. I), 1-31-13)

Sec. 19-392. Information and data to be kept and maintained two (2) years; records to be made available for inspection.

Each tow truck company shall maintain at the business office information and data on his towing company business and operations. The following specific requirements are hereby prescribed:

Accurate records, reports, receipts and other operating information and data as may be required by the director shall be kept and maintained in a business office located in Bexar County for at least two (2) years after date, and all such documents shall be made available at a place readily accessible for examination and copying at all reasonable times by the department or a peace officer upon request.

(Ord. No. 2013-01-31-0075, § 1(Att. I), 1-31-13)

Sec. 19-393. Vehicle storage facility's and towing company's duty to report after towing or accepting a lawfully repossessed or towed vehicle.

(a) Whenever any vehicle is removed from private property without the consent of the vehicle owner or a lienholder, a control number must be requested from the department within forty-five (45) minutes of the vehicle leaving the property by reporting the following information to the department:

(1) A general description, including the year, make, model, and color;

(2) The state and number of the vehicle's license plate, if any;

(3) The vehicle identification number;

(4) The date and time of the tow as well as the location from which the vehicle would have been towed;

(5) The name of the company towing the vehicle;

(6) The name of the person or entity authorizing the tow and a valid contact phone number; and

(7) The name of the vehicle storage facility to which the vehicle has been or will be taken.

(b) Whenever any person tows, carries, transports or otherwise takes a motor vehicle pursuant to a request by a lienholder incident to a lawful repossession, the person so taking the vehicle shall, within forty-five (45) minutes of taking possession, report to the department:

(1) A general description of the vehicle, including the year, make, model, and color;

(2) The state and number of the vehicle's license plate, if any;

(3) The vehicle identification number of the vehicle;

(4) The date and time of tow as well as the location from which the vehicle was towed;

(5) The name of the company towing the vehicle, the name and state department of licensing and regulation number issued to the driver of the tow truck driver doing the tow, and the name and location where the vehicle is being stored; and

(6) The name, title and phone number of the lienholder causing the vehicle to be repossessed.

(c) The required report must be made by telephone, by facsimile, other electronic device, or delivered personally to the department.
(Ord. No. 2013-01-31-0075, § 1(Att. I), 1-31-13)

Sec. 19-394. Claimed vehicles.

(a) When a storage facility acquires possession of a private property non-consent towed motor vehicle, the storage facility is entitled to:

(1) Towing charges, if applicable;

(2) Impound fees when authorized by state law;

(3) Storage fees as allowed by state law; and

(4) Notification charges.

(b) A vehicle storage facility must notify owners or operators of vehicles:

(1) What methods of payments are accepted;

(2) The location from which the vehicle may be retrieved;

(3) The total amount of charges if the vehicle is picked up the same day as the call;

(4) Procedures for civil recourse as provided in V.T.C.A., Occupations Code §§ 2308.452 and 2308.455; and

(5) Procedures for filing complaints with the state department of licensing and regulation.

(c) A towing company that removes or is in the process of removing a vehicle from a parking facility, upon request of the vehicle owner or operator, shall provide the owner or operator an explanation of the reason for removing the vehicle from the parking facility.
(Ord. No. 2013-01-31-0075, § 1(Att. I), 1-31-13)

Sec. 19-395. Disposition of unclaimed vehicles.

Unclaimed vehicles may be sold at a public auction by an auctioneer licensed by the state department of licensing and regulation.
(Ord. No. 2013-01-31-0075, § 1(Att. I), 1-31-13)

Sec. 19-396. Removing wrecked or abandoned vehicles on public streets, ways or other public property.

(a) In the interest of public safety, it shall be unlawful for any person or towing company, on the public street and ways of the city to knowingly respond for the purpose of moving, towing, hauling, debris or hazardous material cleanup, or otherwise transport in, on or over the public streets and ways of the city any vehicle which has been involved in a collision on a public street, way or other public property, whether or not removed to private property following the collision, or any vehicle that requires towing and is on a public street, way or other public property, unless directed to do so by the chief of police or his designee.

(b) In city parking lots or facilities, the city parking manager or his designee, the chief of police or his designee may impound or relocate to another location on the lot or facility, any vehicle that is blocking an entrance, exit, fire lane or otherwise obstructing access. Any charge for relocation shall be assessed against the vehicle owner. Any vehicle not authorized to be parked at a city facility shall be removed at the direction of the city parking manager or his designee.

(c) Other motor vehicles on public streets, ways or public property may be removed only with the express consent of the owner or operator, in compliance with V.T.C.A., Occupations Code § 2308.351 or at the direction of the director or his designee.

(d) Any owner of a vehicle whose vehicle has been towed from a public way, street or property at the direction of the chief of police or his designee, where it was necessary for the department to incur expense for the cleanup of hazardous waste and/or material, the owner of said vehicle shall be responsible for payment of the cost associated with the clean up.

(e) The department shall have the right to retain any vehicle, to include but not limited to tractors and trailers, in its possession which belongs to said vehicle owner until the payment for

all charges associated with the towing of the vehicle, to include but not limited to recovery and clean up fees, have been paid.
(Ord. No. 2013-01-31-0075, § 1(Att. I), 1-31-13)

Sec. 19-397. Reserved.

Sec. 19-398. Authority to inspect.

The department may inspect a vehicle storage facility, tow truck or towing company to determine whether they are in compliance with this article and other applicable law.
(Ord. No. 2013-01-31-0075, § 1(Att. I), 1-31-13)

Sec. 19-399. Amount of insurance.

The public liability and property damage insurance required by this chapter shall be the minimum amount required by the state.
(Ord. No. 2013-01-31-0075, § 1(Att. I), 1-31-13)

Sec. 19-400. Disposition of property left in towed vehicles.

Upon request of an individual demonstrating ownership or right to possession of a vehicle, a vehicle storage facility shall give that individual access to a vehicle in the facility and allow removal of any personal property left in the towed vehicle, unless otherwise indicated by a law enforcement officer. All such personal property must be surrendered to the property owner regardless of whether or not any or all fees associated with the towing or storage of the vehicle have been paid. "Personal property" for purposes of this section refers to property in the vehicle which is not permanently affixed to the vehicle. The vehicle storage facility must request a receipt from the person to whom the personal property is released for any such property removed from the stored vehicle. Nothing in this provision is intended to conflict with the provisions of 16 Tex. Admin. Code § 85.708
(Ord. No. 2013-01-31-0075, § 1(Att. I), 1-31-13)

DIVISION 3. FEES

Sec. 19-401. Service rates.

The rates hereinafter described are to be utilized by towing companies for non-consent tows originating within the corporate limits of the city pursuant to this article.
(Ord. No. 2013-01-31-0075, § 1(Att. I), 1-31-13)

Sec. 19-402. Fee schedule.

(a) No towing fees may be charged other than those fees listed in this subsection, including charges for dollies, special equipment, or mileage.

(b) The maximum fee that may be charge for towing under this article shall be:

(1) One hundred seventy-seven dollars ($177.00) for vehicles ten thousand (10,000) pounds or less.

(2) One hundred ninety-six dollars ($196.00) for vehicles between ten thousand one (10,001) and twenty-four thousand nine hundred ninety-nine (24,999) pounds.

(3) Six hundred two dollars ($602.00) for any vehicle or combination vehicle twenty-five thousand (25,000) pounds or more.

(c) Weight, for purposes of this section, shall be determined by the gross weight recorded on the vehicle registration.

(d) If the owner or operator of a vehicle which is parked in violation of this Code or state law arrives before the vehicle is hooked up, the wrecker operator shall release the vehicle for free. If the owner or operator of a vehicle which is parked in violation of this Code or state law arrives after the vehicle is hooked up but before it is removed from the property, the wrecker operator shall advise them the vehicle will be release upon payment of the drop fee. The wrecker operator will allow the vehicle owner or operator at least fifteen (15) minutes to get the funds for the drop fee. There is nothing requiring the wrecker operator to release a legally towed vehicle that is properly hooked up and has left the private property.

(e) The maximum fee that may be charged for a drop fee under this chapter shall be one-half (½) of the full rate as set forth in subsection (b) above.

(f) For payment of any fee under this section, a towing company or vehicle storage facility shall accept payment by an electronic check, debit card, or credit card for any charge associated with delivery or storage of a vehicle. For payment of any fee under this section, a vehicle storage facility shall accept payment by an electronic check, debit card, or credit card for any charge associated with delivery or storage of a vehicle. Release of a vehicle may not be denied based on the inability of the facility to accept payment by electronic check, debit card, or credit card of any charge associated with delivery or storage of the a vehicle unless the inability to accept such payment is due to factors outside the control of the vehicle storage facility, such as a power outage or machine malfunction. However, payment by credit or debit card may be refused if the named cardholder is not present.

(g) In no way is subsection (b) above to be construed to mean that a towing company may not charge less than the fees stated in this section. These fees are the maximum that can be charged for any towing, or drop fee of a vehicle in accordance with this article.
(Ord. No. 2013-01-31-0075, § 1(Att. I), 1-31-13)

Sec. 19-403. Tow fee study.

(a) Three (3) or more towing companies performing, either alone or together, fifty (50) percent or more of the nonconsent tows during the preceding calendar year may request a tow fee study. Said request must be made in writing to the director. The request must identify the specific fees requested to be reviewed and indicate the requestor's willingness to provide any necessary financial documentation that the city may deem necessary to conduct the review.

(b) A non-refundable fee of five thousand dollars ($5,000.00) in the form of a cashier's check payable to the city must be forwarded to the director before the study will be undertaken. This fee is intended to defray the cost of the study.

(c) The tow fee study shall be performed at the direction of the department director. The methodology used to conduct study will be established by the finance department of the city. The finance department shall determine what financial information is necessary to conduct the study, to include but not limited to financial information requested from non-consent towing companies in the city. Any and all towing companies joining in the request for a tow fee study must provide all requested financial information. Such information shall be kept confidential to the maximum extent allowed by law.

(d) The tow fee study shall be completed within one hundred twenty (120) days of the date that the deposit is paid and all requested financial information is received, whichever is later.

(e) The findings of the tow fee study shall be presented to city council. The city council shall adopt an ordinance that increases or decreases the maximum fees for nonconsent tows or that makes a finding that an adjustment is not justified. If the study indicates that a rate increase is justified, then the department director shall submit his recommendation to city council.

(f) The provisions of this item shall not be required if a rate study has been performed within the preceding period of forty-eight (48) months. In the intervening forty-eight (48) months, the finance department will perform an analysis of fuel costs as follows:

(1) A fuel adjustment calculation will be performed if:
   a. The average annual price of diesel fuel as reported by OPIS for the San Antonio area is below three dollars and eighty-three cents ($3.83), or
   b. The average annual price of diesel fuel as reported by OPIS for the San Antonio area is above three dollars and ninety-five cents ($3.95).
   c. If the average annual price as reported by OPIS for the San Antonio area is between three dollars and eighty-three cents ($3.83) and three dollars and ninety-five cents ($3.95), there will be no fuel adjustment calculation.

(2) Any adjustment in the rate due to fuel cost fluctuation shall become effective January 1, starting the first year after the enactment of this Code provision.

(g) Nothing in this section shall preclude the city from undertaking a tow fee study at its own discretion at any time.
(Ord. No. 2013-01-31-0075, § 1(Att. I), 1-31-13)

DIVISION 4. ENFORCEMENT

Sec. 19-404. Enforcement by police officers.

Any peace officer observing a violation of this article, state law or state department of licensing and regulation rule may take necessary action to ensure the safety of the public and its interests.
(Ord. No. 2013-01-31-0075, § 1(Att. I), 1-31-13)

Sec. 19-405. Offenses.

(a) A person commits an offense if by act or omission he violates a provision of this article. A culpable mental state is not required for commission of an offense under this article unless the provision defining the conduct expressly requires a culpable mental state.

(b) A person commits an offense if he intentionally or knowingly tampers with, removes, or destroys a tow warning sign required by this article without the consent of the property owner.

(c) A person commits an offense if he performs a nonconsent tow originating in this city and tows the vehicle to a location outside Bexar County or he fails to take the vehicle directly to a VSF at the time of the tow.

(d) A person commits an offense if he or she charges a fee for towing in excess of the maximum fee set forth by the city. For purposes of this subsection, person includes, but is not limited to, any owner or officer of an entity that charges such an excess fee.
(Ord. No. 2013-01-31-0075, § 1(Att. I), 1-31-13)

Sec. 19-406. Penalties.

(a) Each violation of this chapter constitutes a separate offense, with the exception of section 19-391. With regard to section 19-391, a separate offense is committed each day in which an offense occurs.

(b) A violation of section 19-390 shall not be deemed an offense punishable under this chapter. However, such violation may be subject to penalty pursuant to state law or other city ordinance.

(c) An offense committed under this article, other than section 19-390 is punishable by a fine of not less than two hundred dollars ($200.00) nor more than five hundred dollars ($500.00). The minimum fine established in this subsection shall be doubled for the second conviction of the same offense within any two-year period. A third conviction within any two-year period will result in a fine of five hundred dollars ($500.00). At no time shall the minimum fine exceed the maximum fine established in this subsection. Nothing in this section shall prohibit application of any fines authorized by state law to be assessed.

(d) Prosecution for an offense under this section does not prevent the use of other enforcement remedies or procedures applicable to the person charged with the conduct or involved in the offense.
(Ord. No. 2013-01-31-0075, § 1(Att. I), 1-31-13)

Secs. 19-407—19-431. Reserved.

ARTICLE XII. RESIDENT-ONLY PARKING PERMITS*

Sec. 19-432. Definitions.

When used in this article, the following terms have the meanings ascribed to them below:

Block means a street segment between two (2) cross streets and with no intervening streets crossing both blockfaces.

***Editor's note—**Prior to the reenactment of article XII by Ord. No. 2014-04-17-0259, § 1, adopted April 17, 2014, Ord. No. 2007-11-29-1193, § 1, adopted November 29, 2007, repealed article XII, §§ 19-431—19-444 in its entirety, which pertained to parades, and derived from Ord. No. 66526, § 1, adopted February 4, 1988; Ord. No. 67471, §§ 1—4, adopted July 7, 1988; Ord. No. 86615, § 1, adopted September 11, 1997; Ord. No. 101404, § 1, adopted September 15, 2005. Similar provisions may now be found in article XVII.

Note—Section 4 of Ord. No. 2014-04-17-0259 states the following: "Any parking zones established under this ordinance shall remain in effect until May 1, 2015, unless reenacted by the City Council on or before that date."

Blockface means one side of a block with no intervening streets. Because blocks may have intervening cross streets that do not penetrate both blockfaces, blocks may have more than two (2) blockfaces.

Commuter vehicle means any vehicle other than a resident vehicle.

Curbside-parking space means twenty (20) linear feet of curb, excluding those portions of the curb where the parking of any motor vehicle is not permitted.

Director means the director of the Center City Development Office.

Parking official means the person in the Center City Development Office so designated by the director.

Residential permit parking zone means the area designated for resident-only parking during specific hours and days of the week.

Temporary residential parking permit means a temporary permit issued by the city authorizing curbside parking in a residential-permit parking zone during the time curbside parking is otherwise restricted.

Resident means one who lives in a residential segment.

Residential parking permit means a permit issued under the authority of this article.

Residential segment means one or more blockfaces consisting entirely of residences, whether single or multifamily. A non-residential use on a blockface does not prevent the blockface from being residential if the non-residential use does not front on the blockface.

Senior engineer means the traffic or other similar engineer overseeing traffic regulations in the transportation and capital improvements department or other similar department should it be renamed.

Chronic commuter-parking problem is when at least twenty-five (25) percent of occupied spaces in a proposed residential permit parking zone are not traced to a resident license plate during the parking survey period.
(Ord. No. 2014-04-17-0259, § 1, 4-17-14)

Sec. 19-433. Residential permit parking zones.

(a) For purposes of this article, a "chronic commuter-parking problem" encompasses commuter curbside-parking at the same hours and on the same days, but does not include parking for events that, by their nature, are likely to occur less frequently than monthly.

(b) In carrying out the functions assigned by this article, the parking official shall consult with and obtain the concurrence of the senior engineer.

(c) The director must develop forms and procedures for carrying out the provisions of this article and must set and post on the city's website a schedule of all fees to be charged for permits under this article. The director must further provide for both occupant and visitor permits in a way that substantially accomplishes the purposes of this article.
(Ord. No. 2014-04-17-0259, § 1, 4-17-14)

Sec. 19-434. Petition for designation or dedesignation.

(a) Residents of a residential segment may petition the parking official to initiate a residential permit parking zone for the residential segment. The petition must be for at least both sides of one block if both sides are residential or, if only one blockface is residential, one residential blockface. Petitions for a residential segment shall not be considered if they are for the same area for which a petition has been denied by the city council in the last twelve (12) calendar months. Each petition shall be accompanied by the nonrefundable petition fee stated for this provision in the city fee schedule.

(b) The petition must include, at a minimum, the following:

(1) A description of the residential segment;

(2) A description of the chronic parking problem or condition to be remedied;

(3) Signatures consenting to a residential permit parking zone representing not less than sixty (60) percent of the addresses in the residential segment;

(4) The name, address and telephone number of a resident of the proposed residential permit parking zone to serve as a contact;

(5) The names and addresses of all residents within the proposed residential permit parking zone; and

(6) Any other information reasonably required by the parking official to make any determination required under this article.

(c) The parking official must review each petition for completeness and make a determination of completeness within five (5) working days. If the parking official finds the petition complete, the official must process the petition according to this section. If the parking official finds the petition incomplete, he shall return the petition with written notice of the deficiencies.

(d) Once a complete petition is received, the parking official should forward a copy with all attachments to the senior engineer.

(e) City council may dedesignate a resident-only permit parking zone at any time, with or without a resident initiation. Resident initiated petitions presented to city council for dedesignation shall be subject to the same criteria, evaluation, review and fees as presented in this section for designation.

(Ord. No. 2014-04-17-0259, § 1, 4-17-14; Ord. No. 2015-04-30-0359, § 1, 4-30-15)

Editor's note—Ord. No. 2015-04-30-0359, § 1, adopted April 30, 2015, changed the title of section 19-434 from "Petition for designation" to "Petition for designation or dedesignation." The historical notation has been preserved for reference purposes.

Sec. 19-435. Parking survey.

When the petition is complete, the Center City Development Office must obtain a parking survey that is conducted in the manner prescribed by the senior engineer and that covers the proposed residential permit parking zone. The parking survey must determine all information that the parking official or the senior engineer believes useful, but it must at a minimum determine the following:

(1) The total number of legal curbside parking spaces in the proposed residential permit parking zone;

(2) The number of legal curbside parking spaces regularly occupied by vehicles;

(3) The number of curbside parking spaces regularly occupied by commuter vehicles;

(4) The general hours of occupancy of curbside parking spaces by commuter vehicles;

(5) The extent to which commuter parking materially impairs curbside parking near residents' homes by the residents themselves;

(6) The existence of air and noise pollution, hazardous conditions, and deterioration of the residential environment as a result of traffic congestion and insufficient parking in the area;

(7) The extent that the designation of a residential permit parking zone would reduce traffic congestion and any other problems identified in this section;

(8) Whether designation as a residential permit parking zone would impede traffic mobility;

(9) Whether the problems identified in the survey can reasonably be solved at no additional cost to the city through an alternative to a residential permit parking zone;

(10) Whether at least sixty (60) percent of curbside spaces are occupied by vehicles, and of those vehicles whether at least twenty-five (25) percent are commuter vehicles; and

(11) Any other traffic issue identified by the senior engineer.

(Ord. No. 2014-04-17-0259, § 1, 4-17-14)

Sec. 19-436. Criteria for designation.

The criteria for a residential permit parking zone area are:

(1) At least sixty (60) percent of curbside spaces must be occupied by vehicles for the proposed residential permit parking zone to be eligible for designation; and

(2) At least twenty-five (25) percent of curbside spaces must be occupied by commuter vehicles for the proposed residential permit parking zone to be eligible for designation.

(Ord. No. 2014-04-17-0259, § 1, 4-17-14)

Sec. 19-437. Parking regulations and fees.

If the parking official finds that an petition meets the criteria for designation, the official and the senior engineer must develop recommendations for the days of the week and the times of day that commuter parking should be prohibited in the resident-only parking-permit area. No such plan should impede traffic mobility. No plan may prohibit commuter parking on a blockface on which a non-residential property faces.

The petition fee is fifty dollars ($50.00) and non-refundable. This fee will be collected even if an area does not meet the criteria to become a residential permit parking area.

Resident-only parking permits are ten dollars ($10.00) each and a total of four (4) permits per address may be purchased annually. The permit will be valid for one year and must be renewed annually.

Temporary residential parking permits are temporary and valid for one-day use only. They are one dollar ($1.00) each and up to twenty (20) passes for one event may be purchased. The temporary residential permit will include the date of your event on the pass and will only be valid for the day indicated on the pass.

(Ord. No. 2014-04-17-0259, § 1, 4-17-14)

Sec. 19-438. Public hearing.

(a) After developing recommendations for commuter-parking restrictions, the parking official must conduct a public hearing to receive comment on the proposed restrictions.

(b) Written notice of the public hearing must be mailed at least ten (10) days before the date of the public hearing as follows:

(1) Addressed to "Occupant" of each property within, and within two hundred (200) feet of, the boundaries of the proposed residential permit parking zone;

(2) To each registered neighborhood association in whose area the proposed residential permit parking zone is located, provided that notice may be given electronically if the neighborhood association has provided an email address to the Center City Downtown Office.

(c) The boundaries of a residential permit parking zone are the outer perimeters of the constituent properties.

(d) The parking official must further publish notice of the hearing at least once and at least ten (10) days before the hearing. The notice must be published in a form prescribed by the director and in a newspaper of general circulation in the city. The director must also email the notice to the council member for the district on which the proposed residential permit parking zone would be located.

(e) The notice must clearly state the purpose, date, time, and location of the public hearing; the location and boundaries of the proposed residential permit parking zone; the regulations proposed for the area; and the permit fees that will be charged.

(f) Mailed notice is given when deposited in the United States mail, properly addressed, postage paid. The affidavit of a person who has knowledge of the mailing is prima facie evidence that notice was given.

(g) At the public hearing, any interested person, including the senior engineer, may present testimony, orally or in writing, regarding the proposed residential permit parking zone, the proposed regulations, and the permit fees. The director may establish rules for the conduct of the public hearing.

(h) The public hearing may be conducted by the director or the parking official. It should be conducted not earlier than 5:30 p.m. and on a workday at a location reasonably convenient to the proposed residential permit parking zone. Any location within two (2) miles of the area qualifies as reasonably convenient, but the location may be more than two (2) miles if a closer place is not reasonably available.
(Ord. No. 2014-04-17-0259, § 1, 4-17-14)

Sec. 19-439. Parking official or senior engineer action.

Following the close of the public hearing, the parking official or senior engineer may modify the proposal in response to public comment. If the parking official finds that it meets the criteria for designation the official must present the petition to city council. If the parking official finds that it does not meet the criteria for designation the official should so advise the applicant and need not submit the proposal to city council.
(Ord. No. 2014-04-17-0259, § 1, 4-17-14)

Sec. 19-440. City council action.

City council may designate or dedesignate a resident-only permit parking zone at any time, with or without a resident initiation. Only city council can designate or dedesignate a resident-only permit parking zone. The city council may designate or dedesignate resident-only permit parking zones according to the procedures of this division, but is not bound to approve any petition presented to it.
(Ord. No. 2014-04-17-0259, § 1, 4-17-14; Ord. No. 2015-04-30-0359, § 1, 4-30-15)

Sec. 19-441. Notice to residents.

Promptly after adoption of an ordinance creating a residential permit parking zone, the parking official must mail notice to the occupant of every address within the area containing the following information:

(1) The existence, boundaries, and numerical designation of the residential permit parking zone;

(2) The parking restrictions specified in the ordinance creating the residential permit parking zone;

(3) The effective date of the regulations;

(4) The procedures and associated fees to obtain permits; and

(5) An application for a residential parking permit in the form to be prescribed by the director.

The parking official or director shall also ensure that signs are posted in the designated area identifying the residential permit parking zone.
(Ord. No. 2014-04-17-0259, § 1, 4-17-14)

Sec. 19-442. Compliance with other laws.

A permit issued pursuant to this article does not excuse compliance with any other generally applicable law, including, but not limited to, parking meter payment, no-parking signs, and restricted parking for disabled persons.
(Ord. No. 2014-04-17-0259, § 1, 4-17-14)

Sec. 19-443. Offenses and fines.

(a) It is unlawful to park a motor vehicle not displaying a permit in a curbside parking space in a residential permit parking zone on a day or during hours for which a permit is required.

(b) It is unlawful to falsely represent that a motor vehicle is entitled to a permit. The display of a permit on a motor vehicle not entitled to the permit is such a representation.

(c) It is unlawful to duplicate, or attempt to duplicate, a permit. It is also a violation of this article for any person to display a duplicated permit on a motor vehicle.

(d) Fines for violations under this section shall be in accordance with the schedule set out in section 19-38 of the City Code (Payment of fine; issuance of process).
(Ord. No. 2014-04-17-0259, § 1, 4-17-14)

Sec. 19-444. Revocation of permit.

In addition to other applicable penalties, the parking official must revoke the residential parking permit and any associated visitor permit or

service provider permit of any person adjudicated to have committed three (3) or more violations of this article within any 12-month period. The parking official must mail to the permit holder by certified mail, return receipt requested, notice of revocation and an instruction to surrender the permit. The permit holder must then surrender the permits within ten (10) calendar days, and failure to do so is a separate violation. Prima facie evidence of delivery of the notice may be established by (a) a signed return receipt or (b) an envelope containing the notice that the postal service has marked as refused or unretrieved by the addressee.
(Ord. No. 2014-04-17-0259, § 1, 4-17-14)

Sec. 19-445. Defenses.

It is an affirmative defense to a charge of violating this article that the motor vehicle parked in a residential permit parking zone was:

(1) A motor vehicle owned by, or operated under contract to, a utility and was being used in the course of official business in the residential permit parking zone;

(2) A motor vehicle clearly identified as owned by, or operated under contract with, a federal, state, or local governmental agency; was being used in the course of official government business; and was not parked while the operator was working at his customary office or job site;

(3) An authorized emergency vehicle; or

(4) A motor vehicle used for delivery or service-business purposes, including but not limited to moving vans and sanitation, repair, electrical, and plumbing-service motor vehicles, in connection with business at a residence in the residential permit parking zone.

(Ord. No. 2014-04-17-0259, § 1, 4-17-14)

Sec. 19-446. Cumulative effect.

This article is cumulative of other requirements imposed by ordinances and regulations of the city. In case of an inconsistency, the more restrictive provision governs.
(Ord. No. 2014-04-17-0259, § 1, 4-17-14)

Sec. 19-447. Adjudication.

Cases involving violations of the parking provisions of this article are adjudicated in the same way as any other parking violation.
(Ord. No. 2014-04-17-0259, § 1, 4-17-14)

Sec. 19-448. Removal of vehicle and emergency restrictions.

In a residential permit parking zone designated by the senior engineer as a tow-away zone and in which the proper signs have been posted, a parking-enforcement officer or personnel designated by the police chief may authorize the towing of a vehicle parked in violation of this article.

If police or an official in the parking division of the city determine that the residential permit parking zone must be suspended for a specific time period they will place temporary no parking emergency restriction signs over the residential permit parking signage. These restrictions will supersede the residential permit parking zone and will remain in place until it is determined by the police or official that the suspension is no longer necessary.
(Ord. No. 2014-04-17-0259, § 1, 4-17-14)

Sec. 19-449. Reserved.

ARTICLE XIII. RESERVED*

Secs. 19-450—19-457. Reserved.

ARTICLE XIV. BUS LANES†

Sec. 19-458. "Exclusive Bus Lanes" and "Buses and Right Turns Only Lanes" established.

The city manager is hereby authorized to restrict right curb traffic lanes of public streets for

*__Editor's note—__Ord. No. 2007-11-29-1193, § 2, adopted November 29, 2007, repealed article XIII, §§ 19-450—19-457, in its entirety, which pertained to run, walk and cycling events, and derived from Ord. No. 67471, § 5, adopted July 7, 1988, and Ord. No. 101404, §§ 2, 3, adopted September 15, 2005. Similar provisions may now be found in article XVII.

†__Cross references—__Vehicles for hire, Ch. 33; shuttles, § 33-300 et seq.; tour vehicles, § 33-700 et seq.

the exclusive use of passenger buses, or for buses and right turns only at locations the city council shall determine to be beneficial and convenient to the public, and in addition, is authorized to erect signs stating "Buses Only" or "Buses and Right Turns Only" in accordance with such determination of the city council, and to paint instructional markings on the street to notify drivers of non-bus vehicles to enter the bus lane only to make a right turn within five hundred (500) feet where such use of the right lane is permitted.
(Ord. No. 72941, § 1, 1-17-91)

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Sec. 19-459. Definitions.

Bus shall mean a motor vehicle designed to carry twenty (20) or more passengers and used to transport persons for compensation, including sightseeing tour buses.

Bus Lane and *Bus and Right Turn Lane* shall mean the right curb lane for the traffic traveling from the intersecting street first mentioned to the second intersecting street mentioned in each of the below described "bus and right turn lane" and "exclusive bus lane" locations.
(Ord. No. 72941, § 1, 1-17-91)

Sec. 19-460. "Bus and Right Turn Lane" locations established.

Bus and right turn lanes are hereby approved for and established on the following streets:

Navarro Street, from Nueva Street to Martin Street;

St. Mary's Street, from Navarro Street to Nueva Street;

Commerce Street, from Alamo Street to Santa Rosa Street;

Dolorosa and Market Streets, from Santa Rosa to Alamo Street.
(Ord. No. 72941, § 1, 1-17-91)

Sec. 19-461. "Exclusive Bus Lane" locations established.

Exclusive bus lanes are hereby established for the following locations:

Navarro Street, from Main Avenue to St. Mary's Street;

Alamo Plaza, from Houston Street to Commerce Street.
(Ord. No. 72941, § 1, 1-17-91)

Sec. 19-462. Penalty for unauthorized use.

Any person who drives a vehicle other than a bus in a bus lane where prohibited, or who drives for a distance of more than five hundred (500) feet without turning right where right turn within five hundred (500) feet are permitted, shall be guilty of a Class C misdemeanor and, upon conviction, shall be fined not less than one dollar ($1.00) nor more than two hundred dollars ($200.00).
(Ord. No. 72941, § 1, 1-17-91)

Secs. 19-463—19-500. Reserved.

ARTICLE XV. DRAINAGE EASEMENTS

Sec. 19-501. Operation of motor vehicle in city drainage easement prohibited.

(a) It shall be unlawful to operate a motor vehicle upon or in any watercourse, drainage way, natural channel, stream or other location that is dedicated to the city as a drainage easement.

(b) The director of public works is authorized to erect and post signs along drainage easements forewarning persons that the operation of motor vehicles along same is prohibited.

(c) Each violation hereof shall be punishable by a fine of not less than one dollar ($1.00) and not more than two hundred dollars ($200.00).
(Ord. No. 86136, § 1, 6-12-97)

Sec. 19-502. Exception: Vehicles operated at the direction of a governmental entity.

It is an exception to section 19-501 if the motor vehicle is operated by the owner of property abutting the easement in order to maintain said easement in the manner prescribed and directed by all relevant provisions of the City Code including chapter 14, article V (entitled lot clearance) and any other who is operating a motor vehicle at the expressed direction of the federal, state or a local government for maintenance of the easement, in furtherance of a criminal investigation, or for other official business.
(Ord. No. 86136, § 1, 6-12-97)

Secs. 19-503—19-599. Reserved.

ARTICLE XVI. NON-RADIOACTIVE HAZARDOUS MATERIALS ROUTE

Sec. 19-600. Definitions.

Bexar County terminal means a business or other location within the boundaries of Bexar County which business or location serves as a point of origination or receipt for shipments of NRHM.

City means the City of San Antonio and that physical area within the corporate boundaries of the City of San Antonio.

Local delivery of regulated material(s) means transportation that originates in Bexar County, Texas, is bound for delivery in Bexar County, or both.

Non-radioactive hazardous materials (NRHM) means those non-radioactive materials classified as hazardous by the United States government through the Secretary of Transportation pursuant to his or her authority under 49 U.S.C.A. Sec. 1801 et seq. (1976).

Non-radioactive hazardous materials (NRHM) transportation means motor vehicle transportation of non-radioactive hazardous materials in such quantities that the vehicle is required to carry and exhibit placards pursuant to Title 49, Code of Federal Regulations (CFR), Part 172.

NRHM (non-radioactive hazardous materials) vehicle means a vehicle transporting regulated materials and subject to provisions and regulations of this Article XVI.

Prohibited non-radioactive hazardous materials route means the following streets and public highways and segments of streets and public highways:

(1) Both upper and lower highway levels, Southbound from IH 35/IH 37/US 281 interchange to the IH10/IH 35/Alamo Street interchange;

(2) Both upper and lower highway levels, Northbound on IH 35 from the IH 10/IH 35/US 90 interchange to the IH 10/IH

35/US 281 interchange with the exception that vehicles turning North onto IH 35 from US 90/IH 10 Westbound shall exit onto San Marcos Street (exit 154A);

(3) Both upper and lower highway levels and both directions of IH 10 from the IH 10 interchange at the 1,000 block of Fredericksburg Road to the IH 10 /IH 35 interchange at exit 570 of IH 10;

(4) Both directions of IH 37, from the IH35 /IH 37 /US 281 interchange to the IH 37 /Durango Street interchange.

Requiring placards, when used to describe a vehicle, means any vehicle transporting hazardous materials in sufficient quantity to require placarding as set forth in the United States Department of Transportation Hazardous Materials Regulations 49 U.S.C.A. Sec. 1801, et seq. (1976).

Regulated materials means non-radioactive hazardous materials of the character regulated by this article and affected by this local non-radioactive hazardous materials route regulation.

Through traffic transportation means transportation of regulated material(s) that originates outside of Bexar County, Texas, and involves no deliveries or pick-ups in Bexar County.
(Ord. No. 94321, § 1, 8-9-01)

Sec. 19-601. Transporting non-radioactive hazardous materials within corporate boundaries of city.

No person shall transport, contract, or arrange, or participate in the transport, contract, or arrangement to transport non-radioactive hazardous materials within the corporate boundaries of the city unless his/her destination or point of departure is a Bexar County terminal and unless such transport is conducted in compliance with this article.
(Ord. No. 94321, § 1, 8-9-01)

Sec. 19-602. Mandated permissible routes for local delivery.

(a) When any NRHM vehicle (truck, trailer, motor vehicle or any other vehicle) is carrying non-radioactive hazardous material to commercial consumers, domestic consumers, gasoline service stations, bulk stations or other points of origin or destination located within the corporate limits of the city, the carrier must use the safest route available by the best use of the highest classification roadways.

(b) For purposes of local delivery, classification of roadways from highest to lowest are as follows:

Interstate highway

U.S. highway

State highway

Loop

F.M. road

Spur

Major arterial street

Minor arterial street

Collector street

Local street

(c) For purposes of local delivery, the public health and safety reason for use of highest classification roadways is to reduce the risk and severity of potential harm to persons and property that may result from a spill of regulated or hazardous material.
(Ord. No. 94321, § 1, 8-9-01)

Sec. 19-603. Loop 1604 prohibition.

Transportation of non-radioactive hazardous materials is prohibited and unlawful on those portions of Loop 1604 that traverses the Edwards Aquifer Recharge Zone with the following exception:

Exception: Transportation of regulated materials is permissible on those portions of Loop 1604 that traverse the Edwards Aquifer Recharge Zone when NRHM vehicles are performing local delivery in North Bexar County bounded by an area one mile South of Loop 1604 and Northward to the Bexar County limit between O'Connor Road and Bandera Road.
(Ord. No. 94321, § 1, 8-9-01)

Sec. 19-604. Prohibitions on certain freeways and the central business district on both upper and lower freeway levels.

(a) All transportation, whether local delivery or through transportation, of non-radioactive hazardous materials is prohibited and unlawful on the following roadways:

(1) Both upper and lower highway levels, Southbound from IH 35/IH 37/US 281 interchange to the IH10/IH 35/Alamo Street interchange;

(2) Both upper and lower highway levels, Northbound on IH 35 from the IH 10 /IH 35/US 90 interchange to the IH 10/IH 35/US 281 interchange with the exception that vehicles turning North onto IH 35 from US 90/IH 10 Westbound shall exit onto San Marcos Street (exit 154A);

(3) Both upper and lower highway levels and both directions of IH 10 from the IH 10 interchange at the 1,000 block of Fredericksburg Road to the IH 10 /IH 35 interchange at exit 570 of IH 10;

(4) Both directions of IH 37, from the IH35 /IH 37 /US 281 interchange to the IH 37 /Durango Street interchange.

(b) Frontage roads and access roads abutting and/or appurtenant to prohibited routes, described above at (a), are likewise prohibited to through traffic and local delivery except to the extent that a frontage or access road may qualify as best use and highest classification highway necessary to local delivery, in which case the frontage or access of a prohibited route may be used by the NRHM vehicle, but only for purposes of local delivery.
(Ord. No. 94321, § 1, 8-9-01)

Sec. 19-605. Permissible NRHM roadway routes for through traffic.

(a) The prohibition of section 19-602, pertaining to unlawful routing of regulated materials, shall not apply if the non-radioactive hazardous materials are transported on the following permissive roadways. It shall be prohibited and unlawful for through traffic transportation of non-radioactive hazardous materials to be performed on any but the following routes, which are IH 410, and those highways that spoke outward from IH 410, more specifically described as:

(1) Interstate Highway 410; and/or

(2) Highways directly connecting Interstate Highway Loop 410 outward to the Bexar County limits and only on those portions of said highways outside Loop 410, being:

IH-10 from its intersection with IH 410 (near mile marker 17) to the county boundary near mile marker 545;

IH 10 from its intersection with IH 410 (near mile marker 33) to the county boundary near mile marker 594;

US-87 from its intersection with IH 410 (near mile marker 36) to the county boundary near the 14,100 block of US 87;

US-181 from its intersection with IH 410 (near mile marker 41) to the county boundary near the 9,100 block of US 181 at Calaveras Creek;

IH-37 from its intersection with IH 410 (near mile marker 41) to the county boundary near mile marker 119;

US-281 from its intersection with IH 410 (near mile marker 45) to the county boundary near the 25,600 block of US 281;

IH-35 from its intersection with IH 410 (near mile marker 26) to the county boundary near mile marker 174;

IH 35 from its intersection with IH 410 (near mile marker 53) to the county boundary near mile marker 134;

US-90 from its intersection with IH 410 (near mile marker 6) to the county boundary near mile marker 155; and

HWY 16 South from its intersection with IH 410 (near mile marker 50) to the county boundary near 23,490 Highway 16 South.

(b) All provisions of this article pertaining to necessity for placarding of vehicles transporting regulated materials shall apply to transport of all such materials in the city, regardless of route.

(c) It shall be an affirmative defense to a departure from the permissible route that the vehicle in question is immediately and directly destined for a location providing food, fuel, rest, safe haven, or repair. NRHM vehicles are allowed to use the access, frontage, and intersecting road ways as needed to enter and leave the location providing food, fuel, rest, safe haven or repair.
(Ord. No. 94321, § 1, 8-9-01)

Sec. 19-606. Local delivery routes; burden of proof on responsible person to demonstrate best use of highest classification roadways.

(a) It is prohibited and unlawful for any person to transport, arrange, or contract, or participate in transport, arrangement or contract for transportation of local delivery of non-radioactive hazardous materials which transport is performed on any street or roadway within the jurisdiction of the city which route is not based on the best use of the highest classification roadway. It shall be the affirmative duty of any person so engaged in transport, arrangement or contract for transport of regulated materials to determine, devise, and restrict local delivery to such restricted route for benefit of the public health, safety, and welfare. The affirmative duty includes an obligation to make best use of highest classification roadways.

(b) Within the context of this section, "best use" of the highest classification roadway requires the responsible person to use a route that protects neighborhoods and the traveling public from nuisance, inconvenience, or disturbance of normal sensibilities of any person, as well as minimizes exposure of neighborhoods and the traveling public to risks inherent in NRHM transport. The reason for such affirmative duty is that by federal regulatory definition, NRHM is material which has been determined to pose an unreasonable risk to health, safety, or property. Such unreasonable risk places a burden of proof on the responsible person to demonstrate best use of the highest classification roadway.

(c) A formal complaint, properly drawn and corroborated as may be required by law, shall create a rebuttable presumption that the responsible person violated the best use standard for highest classification roadway transportation or delivery of NRHM.
(Ord. No. 94321, § 1, 8-9-01)

Sec. 19-607. Empty vehicles.

(a) The routing prohibitions of sections 19-602—19-606 and the placarding requirements of this article shall not apply to an empty vehicle that has been used previously to transport regulated materials provided the vehicle meets the requisites of subsection (b) below.

(b) A vehicle that has transported non-radioactive hazardous materials in bulk packaging or in any other type of container and is required to be placarded pursuant to Title 49, Code of Federal Regulations, Part 172, must and shall remain placarded when it is empty unless it is: (1) sufficiently cleaned of residue and purged of vapors to remove any potential hazard; or (2) refilled with a material requiring different placards or no placards, to such an extent that any residue remaining in the packaging is no longer hazardous.
(Ord. No. 94321, § 1, 8-9-01)

Sec. 19-608. Placard requirements.

The operator of a vehicle used to transport hazardous materials requiring placards shall:

(1) Apply and display appropriate placards meeting United States Department of Transportation specifications on each end and each side of the vehicle; and

(2) Before operation inspect the vehicle to determine that:

a. The brakes and tires are in good working condition; and

b. The steering mechanism is in good working condition; and

c. The electrical wiring is well insulated and firmly secured; and

d. The vehicle is in a condition adequate to safely transport hazardous materials.

(Ord. No. 94321, § 1, 8-9-01)

Sec. 19-609. Unlawful use of prohibited routes.

No operator of a motor vehicle transporting non-radioactive hazardous materials, as defined in this article, and scheduled for delivery to or from a Bexar County terminal, or found or apprehended on any public roadway in the city, shall transport those materials on any street or public highway, or segment of a street or public highway designated as a "prohibited non-radioactive hazardous materials route".

It is hereby declared unlawful for any person to transport or be responsible for arrangement or contract (an arranger) for transport of non-radioactive hazardous materials on any public roadway or street designated a prohibited non-radioactive hazardous materials route.

It is hereby declared unlawful for any person to transport or be responsible for arrangement or contract (an arranger) for transport of non-radioactive hazardous materials, which materials are required under state or federal regulation to be transported under placard, which materials are detected or apprehended in a condition of transport without appropriate placard.
(Ord. No. 94321, § 1, 8-9-01)

Sec. 19-610. Police department discretion and public safety.

(a) The police department may temporarily suspend the operation of some or any vehicles carrying regulated non-radioactive hazardous materials, without notice whenever road, weather, traffic, or other exigent circumstances warrant such action.

(b) The police department may redirect through traffic vehicles carrying regulated non-radioactive hazardous materials onto any highway or roadway, public or private, when the through traffic route is blocked for any reason, and/or in response to any exigent circumstance, which police direction for benefit of public safety shall have authority of law.
(Ord. No. 94321, § 1, 8-9-01)

Sec. 19-611. Emergency response vehicle carrying fuel.

It shall be permissible and an affirmative defense to violation of this Article that the vehicle carrying a regulated material is carrying fuel directly to the scene of an emergency, or for a public emergency purpose, specific to the function of fueling equipment used to respond to or address the emergency.
(Ord. No. 94321, § 1, 8-9-01)

Sec. 19-612. Prohibited parking and standing.

No vehicle transporting regulated non-radioactive hazardous materials may park or stand at any location within the City of San Antonio except for purposes of loading or unloading with the following exceptions:

(1) Vehicles parked in designated truck parking areas of locations providing food, fuel, rest, safe haven, or repair;

(2) Vehicles parked in the parking areas of businesses engaged in the transportation, storage or production of hazardous materials.

(Ord. No. 94321, § 1, 8-9-01)

Sec. 19-613. Criminal Class C misdemeanor, civil remedy, and enforcement.

(a) Violation of any of the provisions of this article shall constitute an offense punishable by a fine of not less than five hundred dollars ($500.00) and not to exceed two thousand dollars ($2,000.00), to the extent such violation may pose a fire or public health threat. Local Government Code Sec. 54.001(b).

(b) Both officers of the fire department, having citation authority under the laws of the State of Texas, and officers of the police department are expressly authorized to enforce the provisions of this article, as are other peace officers with jurisdiction to enforce the laws and ordinances of the city and state on public roadways within the city.

(c) The city shall be entitled to pursue all remedies, at law and in equity, including but not limited to injunctive relief, with attendant civil penalties as may be provided under state statute, which remedies shall be cumulative of the criminal laws, none of which shall be mutually exclusive of the other.
(Ord. No. 94321, § 1, 8-9-01)

Secs. 19-614—19-629. Reserved.

ARTICLE XVII. PROCESSIONS AND ASSEMBLIES*

Sec. 19-630. Definitions.

For this chapter, the following definitions shall apply, unless the context clearly indicates otherwise:

Chief of police means the chief of police of the San Antonio Police Department or his or her designated representative.

City attorney means the city attorney of the City of San Antonio or his or her designated representative.

City manager means the city manager of the City of San Antonio or his or her designated representative.

Commercial procession means a procession, the sole or principal object of which is not First Amendment activity.

First Amendment activity means all expressive and associative activity that is protected by the United States and Texas Constitutions, including speech, press, assembly, and the right to petition, but not including commercial advertising, revenue-generating events, or fundraising.

First Amendment procession means a procession, the sole or principal object of which is First Amendment activity.

Organize means to arrange systematically as an individual or with a committee or group for harmonious or united action.

Procession marshal means an individual or individuals who shall coordinate with SAPD during a procession.

Permit holder means a person issued a procession and/or public assembly permit pursuant to this article.

Permitting official means the individual charged with issuing the procession permits and public assembly permits.

Procession means a group of persons moving along, by whatever means, in an orderly, formal manner on any street, alley, or public thoroughfare from a point of origin to a point of termination or a group of persons moving along, by whatever means, in an orderly, formal manner anywhere else in the city from a point of origin to a point of termination in such a way as to impact the normal flow or regulation of pedestrian or vehicular traffic.

Procession and public assembly permit office means the office within the Center City Development and Operations Department charged with issuing public procession permits and assembly permits.

Procession permit means the procession permit required by this article to hold a procession on city property or rights-of-way.

Procession unit means any vehicle, animal or object used to transport a person who is participating in a procession.

Public assembly means a gathering of a group of persons, for either First Amendment activity or for other purposes, on public spaces owned or managed by the City of San Antonio. Assemblies shall generally occur in city parks and on sidewalks.

Public assembly permit means the permit required by the city to reserve city property for a public assembly on city property.

Traffic control personnel means a commissioned peace officer licensed by the State of Texas and authorized to control the movement, direction, and flow of vehicular traffic under state law and local ordinances.
(Ord. No. 2018-03-01-0151, § 1(Att. A), 3-1-18)

*__Editor's note—__Ord. No. 2018-03-01-0151, § 1(Att. B), adopted March 1, 2018, amended article XVII in its entirety to read as herein set out. Formerly, article XVII, sections 19-630—19-639 pertained to parades, runs, walks and related events, and derived from Ord. No. 2007-11-29-1193, § 3, adopted November 29, 2007, and Ord. No. 2008-03-13-0201, § 1, adopted March 13, 2008.

Sec. 19-631. Procession and public assembly policy of the city; permit required.

(a) It is the policy of the city to facilitate the expressive and associative activity that is protected by the United States and Texas Constitutions, including speech, press, assembly, and the right to petition. The city shall, in exercising its control of public spaces, allow for full expression of First Amendment processions and assemblies as is compatible with the regulations outlined below. In particular, public assemblies that occur in city parks and associated sidewalks that do not interfere with previously scheduled events occurring in the park, or impede the flow of pedestrian traffic on sidewalks, shall be allowed free of charge and with no permit required.

(b) No person shall organize any procession or public assembly that impedes the normal flow or regulation of pedestrian or vehicular traffic without having first obtained a procession permit. (Ord. No. 2018-03-01-0151, § 1(Att. A), 3-1-18)

Sec. 19-632. Exceptions to application.

No permit shall be required for:

(1) The movement of persons in an orderly, formal manner from a point of origin to a point of termination on a sidewalk, so long as the movement does not impede the normal flow or regulation of pedestrian or vehicular traffic; or

(2) A public assembly that does not impede the normal flow or regulation of pedestrian or vehicular traffic, unless the person organizing the assembly desires to reserve the city property for exclusive use for the assembly.

(Ord. No. 2018-03-01-0151, § 1(Att. A), 3-1-18)

Sec. 19-633. Application for procession permit and public assembly permit.

(a) A person seeking issuance of a procession permit or a public assembly permit shall file an application with the permitting official on forms provided by such individual.

(b) First Amendment procession permits.

(1) An application for a First Amendment procession permit shall be filed with the permitting official not less than fifteen (15) business days nor more than one hundred fifty (150) calendar days before the proposed procession date;

(2) Where the organization of a First Amendment procession, however, begins within fifteen (15) business days of the proposed procession date, an application for a First Amendment procession permit shall be filed with the permitting official within three (3) calendar days of the date on which organization of the procession begins, but not less than two (2) calendar days before the proposed procession date.

(3) The permitting official may consider a First Amendment application filed less than fifteen (15) business days, but not less than two (2) calendar days, before the proposed procession date where organization of the procession began more than fifteen (15) calendar days before the proposed procession date so long as there is adequate time for the procession and public assembly permit office to process the application and for the chief of police to plan for the procession.

(4) First Amendment procession permits shall be obtained at no cost to the applicant.

(c) Commercial procession.

(1) An application for a commercial procession permit shall be filed with the permitting official not less than forty-five (45) calendar days nor more than one hundred fifty (150) calendar days before the proposed procession date.

(2) The permitting official may consider a commercial procession application filed less than forty-five (45) calendar days before the proposed procession date, but not less than four (4) calendar days, before the proposed procession date where organization of the procession began more than forty-five (45) calendar days before the proposed procession date so long as

there is adequate time for the procession and public assembly permit office to process the application and for the chief of police to plan for the procession.

(3) Commercial procession applications shall be accompanied by a fee of seventy-five dollars ($75.00). If the organizers of an event cannot provide payment with the application, an organizer may submit an affidavit attesting that he or she will provide payment within fifteen (15) business days of the date of the submission of the application. Failure to provide payment will trigger the surety bond requirement in section 19-636 for future procession events by organizers, and the organizer signing the affidavit shall become personally responsible for payment.

(d) The permit holder for a procession actually held during a prior year may receive advance approval of the route, date, and time not more than thirteen (13) months in advance of the scheduled date of the procession. The permitting official may give advance approval after receiving a written request from the permit holder. The permit holder shall receive the right of first refusal as to the route, date, and time of the procession that may be exercised until ninety (90) calendar days prior to the approved date of the procession.

(e) The application shall contain the following:

(1) The name, address, and telephone number of the person seeking to conduct the procession;

(2) Where the procession is to be held for or by an entity, rather than an individual, the name, address, and telephone number of the entity and the name, address, and telephone number of the head of the entity;

(3) Where the procession is to be held by or for any person other than the applicant, documentation evidencing authority to make the application;

(4) The name, address, and telephone number of the person who will be the procession chairperson and who will be responsible for its conduct;

(5) The date the procession will be conducted;

(6) The location of the assembly area, the starting point of the procession, the route of the procession, the ending point of the procession, and the location of the disbanding area;

(7) The approximate number of persons who will participate in the procession;

(8) The approximate number vehicles that will be included in the procession and a description of those vehicles;

(9) The approximate number of animals and the type of animals that will be included in the procession;

(10) The time when the procession will begin and end;

(11) A statement as to whether the procession will occupy all or only a portion of the width of the streets proposed to be used;

(12) The time at which units of the procession will arrive at the assembly area;

(13) The purpose of the procession; and

(14) Any other information related to public safety that the permitting official or chief of police finds necessary to an evaluation of the request under the standards for issuance set forth in section 19-634.

(f) Public assembly permit.

(1) If the planned procession requires the exclusive use of a city facility such as a park or plaza for an assembly area associated with the procession, the person seeking the procession permit shall so indicate on the application, and the permitting official will, after coordination with the appropriate city departments, issue a public assembly permit subject to the normal reservation regulations and fees associated with the requested city facility.

(2) If an applicant requests a public assembly permit for a city facility without requesting an associated procession permit, the permitting official will direct the applicant to the applicable city department reservation office or official for further assistance.

(Ord. No. 2018-03-01-0151, § 1(Att. A), 3-1-18)

Sec. 19-634. Standards for issuance.

(a) The permitting official and the chief of police shall uniformly treat each application in a just, fair, and nondiscriminatory manner bearing in mind that the time, place, duration, and manner of use of the public streets, parks, and other public ways and places for procession and assembly must be consistent with public safety, the maintenance of order, and rights of others to exercise free speech. The permitting official and the chief of police shall issue a permit when, from a consideration of the application, they find that:

(1) The conduct of the procession will not substantially interrupt the safe and orderly movement of other traffic near its route;

(2) The conduct of the procession will not require the diversion of so great a number of police officers of the city to properly police the line of movement and the areas near there as to prevent normal police protection to the city;

(3) The conduct of such procession will not require the diversion of so great a number of ambulances as to prevent normal ambulance service to portions of the city other than that to be occupied by the proposed line of march and areas near there;

(4) The concentration of persons, animals and vehicles at assembly and disbanding points of the procession will not unduly interfere with proper fire and police protection of, or ambulance service to, areas near such assembly or disbanding areas;

(5) The conduct of such procession or assembly will not interfere with the movement of firefighting equipment en route to a fire;

(6) The procession is scheduled to move from its point of origin to its point of termination without unreasonable delays en route;

(7) The applicant has fulfilled the requirements of this article; and

(8) The event does not conflict with a previously scheduled event that is scheduled to:

a. Occur at the same time and place; or

b. Occur at the same time, though at a different location or along a route that crosses over or conflicts with previously scheduled events; and

(9) When SAPD is available where the proposed event is to take place downtown.

(b) If the chief of police determines that the applicant's proposed route conflicts with a previously scheduled event, street closure(s), or construction, then the permitting official or the chief of police will contact the applicant to discuss alternative routes.

(c) Upon final approval of the route by the chief of police, the chief will then create and approve a traffic safety plan for approved route.

(d) Time and place restrictions in issuing procession or public assembly permits.

(1) No procession or public assembly permit shall be issued for streets in the "Downtown Business District" as defined in the City's Unified Development Code Appendix A, Section 35-A101(b), on non-holiday weekdays, between the hours of 7:30—9:00 a.m. and 4:30—6:00 p.m.

(2) No procession or public assembly permit shall be issued for state or federal highways at any time.

(Ord. No. 2018-03-01-0151, § 1(Att. A), 3-1-18)

Sec. 19-635. Notice of rejection; appeal.

(a) The permitting official shall act upon the application for a procession permit within three (3) calendar days it has been filed. If an application for permit has been filed under subsections 19-633(b)(2) or (3), or under subsection 19-633(c)(2) for an event which will take place within five (5) days of the submission of the application, the permitting official shall act upon the application as soon as is practicably possible. If the permitting official and/or the chief of police does not approve the application, the permitting official shall mail, by certified mail/return receipt requested, to the applicant, within ten (10) calendar days after the date upon which the application was filed, a notice of his action, stating the reason for his denial of a permit. The applicant shall have the right to appeal a denial of a procession permit to either the city council or the city manager by filing notice of appeal with the city clerk, specifying whether the appeal is to the city council or the city manager, within seven (7) calendar days after receipt of the notice provided above. The appeal shall be heard within ten (10) calendar days of the filing of the appeal. The council or manager or the manager's designee shall hear the appeal as soon as practicable. The decision of the city council or the city manager or the designee is final.

(b) Where the denial of a permit application is upheld on appeal by the city council or the city manager, the city, acting by and through its city attorney, shall, within five (5) days following the appellate decision, apply to either a United States federal district court or to a state district court for a judicial determination as to whether the proposed procession described in the application may be prohibited, naming the applicant as party defendant. The city attorney shall exert every reasonable effort to have the case heard on its merits without delay. The burden of showing that the proposed procession may be prohibited shall rest on the city. If the city appeals an adverse judicial determination, it shall file its notice of appeal within five (5) days after the ruling has been issued by the court.
(Ord. No. 2018-03-01-0151, § 1(Att. A), 3-1-18)

Sec. 19-636. Duties of and costs to be paid by permit holder.

(a) Each permit holder shall comply with all requirements of this article, the permit directions and conditions, and with all applicable laws and ordinances.

(b) Each commercial procession permit holder is responsible for the costs of:

(1) Providing traffic control devices for the procession route in accordance with section 19-66; and

(2) Providing traffic control personnel, whether on duty or on overtime, for the procession route.

(c) Each First Amendment procession and commercial procession permit holder is responsible for cleaning up his or her procession route.

(d) In reviewing the application for a procession permit, the chief of police or his or her designee shall determine the number of peace officers and traffic control devices necessary to control traffic in the area of the requested procession. The chief or his or her designee will consider the following factors and identify the effect of each factor in assessing the estimated traffic control costs for commercial processions:

(1) The route and the identification of roadways that cross through or feed into the street of the proposed route;

(2) The number of anticipated participants and vehicles in the event;

(3) Identification of other roadways, or public transportation and emergency vehicle routes that may be affected by the event;

(4) Length of the route and the identification of the number of intersections along the route that will require barricades or traffic control personnel;

(5) Whether intersections must be individually barricaded or whether officers can be assigned to move along with the event;

(6) The date and time of the event;

(7) Volume of vehicular and pedestrian traffic typical on and along the route for the time of day, day of the week and time of year for the proposed route.

The cost for each city police department officer shall be set in accordance with the collective bargaining agreement. The cost for traffic control devices will be set in accordance with the prices set in the city's annual contract for traffic control devices. The permittee may choose to contract directly with a traffic control device provider subject to compliance with the Texas Manual on Uniform Traffic Control Devices.

For First Amendment events, the city shall absorb the cost of the traffic control devices and traffic control personnel costs on behalf of the permit holder.

Traffic control personnel shall be in a number sufficient to adequately safeguard the flow of both participant and non-participant traffic in order to minimize congestion, as determined by the chief of police. Any additional costs for police personnel deemed necessary to provide security due to the nature of the event will not be assessed to the permit holder. Traffic control personnel shall be limited to the furthest extent practicable to city uniformed police officers, and may include, with approval of the chief of police, other uniformed, certified peace officers knowledgeable of traffic control laws. Events held within the downtown expressway loop requires the use of SAPD officers, unless staffing limitations, as determined by the chief of police, require the use of other certified peace officers may be permitted by the chief. When available and safely practicable, the chief or his or her designee shall utilize on-duty officers before off-duty officers.

The chief of police shall finalize and utilize a traffic control plan for First Amendment processions. For larger commercial processions, commercial procession applicants must timely provide to the SAPD a proposed barricade plan for the SAPD's approval. A commercial procession permit holder shall receive from the city an invoice for the required costs within fifteen (15) calendar days after the procession. The payment for these costs shall be due to the city within thirty (30) calendar days after the date of the procession. If the applicant disputes the costs assessed by the police department, the applicant may file an appeal with the office of the city manager within seven (7) business days of receipt of the invoice. The appeal must identify the specific costs in dispute. The city manager or his or her designee will review the assessed costs based on the criteria required to be used by the chief of police and render a final decision regarding the costs to be paid by the permittee with in fifteen (15) business days of receiving the appeal. No costs shall be owed during the appeal until the office of the city manager has rendered its decision.

The chief of police shall create a written standard operating procedure for issuance of permits and assessments of traffic control costs in conformity with this section.

(e) If a commercial procession applicant owes fees not timely paid in connection with a commercial procession previously approved and conducted or if the estimated costs to the city for a commercial procession under this section are greater than ten thousand dollars ($10,000.00), the applicant shall, prior to approval of the application for a commercial procession permit, file a surety bond in accordance with and as described in section 1-16 in the amount of the estimated costs.

(f) Prior to approval of the application for a commercial procession permit, the applicant shall submit to the permitting official a certificate of insurance and endorsement evidencing commercial general liability coverage, including premises/operations, independent contractors, personal injury, and contractual liability, at a combined single limit of one million dollars ($1,000,000.00) per occurrence, with the city being named as the additional insured by endorsement. The applicant shall provide at least thirty (30) days' advance notice of cancellation or material alteration of the insurance policy.

(g) At least twenty-four (24) hours before the scheduled start of the event, the permit holder for a commercial procession shall make a reasonable effort to notify the businesses and residences located around the assembly area, along the procession route, and around the disbanding

area of the scheduled procession. A copy of any flyer or handout used in making the notification shall be provided to the permitting official at least twenty-four (24) hours prior to the beginning of the procession. It is recommended, but not required, that the permit holder for a "First Amendment Procession" provide the same notices.
(Ord. No. 2018-03-01-0151, § 1(Att. A), 3-1-18)

Sec. 19-637. Revocation of permit.

The permitting official and the chief of police shall each individually have the authority to revoke a procession permit or public assembly permit issued pursuant to this article when the conditions supporting the findings made by the permitting official pursuant to section 19-634 change in such a way, prior to the date on which the procession or assembly is to be held, that a procession permit would not otherwise be issued. The permitting official and the chief of police shall each individually have the authority to revoke a procession permit or public assembly permit if the permit holder does not comply with section 19-636.
(Ord. No. 2018-03-01-0151, § 1(Att. A), 3-1-18)

Sec. 19-638. Public conduct during processions.

(a) *Interference.* It shall be unlawful for any person to hamper, obstruct or impede, or interfere with any procession or procession assembly or with any person, vehicle, or animal participating or used in a procession.

(b) *Driving through processions.* It shall be unlawful for any driver of a vehicle to drive between the vehicles or persons comprising a procession when such vehicles or persons are in motion and are conspicuously designated as a procession unless directed to do so by a police officer.

(c) *Parking on procession route.* The chief of police shall have the authority, when reasonably necessary, to prohibit or restrict the parking of vehicles along a street or highway or part thereof constituting a part of the route, forming area, disbanding area, or buffer zone of a procession. The chief of police shall post signs to such effect, and it shall be unlawful for any person to park or leave unattended any vehicle in violation thereof.

(d) *Prohibited substances.* It shall be unlawful for any person to sell, possess, or use a pressurized container of the substance commonly known as "liquid string," "silly string," or "super string," or any quantity of the small explosive devices commonly known as "snappers," "throw downs," "pop pops," or "popping match sticks," which are paper-wrapped wads of sand coated with a minute quantity of explosive powder and adhesive, producing a small report upon impact with hard surfaces, in any public place or private property.

(e) *Control of processions; restrictions.* The permitting official shall identify a point of contact or liaison within the SAPD to facilitate coordination and communication during the procession. Once the procession starts, the SAPD will coordinate with the procession group to ensure safe and efficient movement of the procession in accordance with the parameters outlined in the permit. SAPD will provide clear direction and take appropriate action if the procession begins to go outside the parameters of the permit or if there is a situation that threatens individual or public safety.

(f) *Procession floats or vehicles.* No participant shall throw or give away candy, gifts, tokens, advertisements, or any other objects from any float or transportation vehicle while the float or transportation vehicle is on the procession route. Failure to observe these requirements shall constitute a violation of this article and the chief of police is empowered to remove this unit from the procession immediately.
(Ord. No. 2018-03-01-0151, § 1(Att. A), 3-1-18)

Sec. 19-639. Criminal penalties.

(a) It shall be unlawful to fail to obtain a permit required under this chapter for any procession. Any violation committed intentionally, knowingly or recklessly shall be deemed to be guilty of a misdemeanor and shall upon conviction be punished by a fine not exceeding five hundred dollars ($500.00).

(b) The intentional, knowing or reckless commission of any act made unlawful by section 19-638 shall be deemed a misdemeanor and shall upon conviction be punished by a fine not exceed five hundred dollars ($500.00).
(Ord. No. 2018-03-01-0151, § 1(Att. A), 3-1-18)

Sec. 19-640. Procession marshal.

The procession marshal may complete a procession marshal orientation by the San Antonio Police Department ("SAPD"). The procession marshal helps ensure that the procession is moving along in a timely fashion and that health and other issues are promptly reported to SAPD. The procession marshal shall conduct him or herself in such a way that complies with state law and local ordinances. The designation and use of a procession marshal or marshals is optional and is not required for any procession permit issuance. Only traffic control personnel as defined by this section can control and direct vehicular traffic.
(Ord. No. 2018-03-01-0151, § 1(Att. A), 3-1-18)

Secs. 19-641—19-649. Reserved.

ARTICLE XVIII. AUTOMATED TRAFFIC ENFORCEMENT DEVICES ON SCHOOL BUSES

Sec. 19-650. Definitions.

In this article:

(1) *School bus* has the same meaning as in V.T.C.A., Transportation Code § 541.201 (Vehicles).

(Ord. No. 2016-06-30-0516, § 1, 6-30-16)

Sec. 19-651. Applicability; adjudication.

(a) This article applies to the part of an independent school district that is in the full purpose limits of the city if:

(1) The school district has installed a system on a school bus that is capable of producing a recorded image depicting the license plate attached to the front or the rear of a motor vehicle that passes the school bus in violation of this article;

(2) The school district's board of trustees has adopted procedures that provide, at a minimum, the following protections for the owner of any vehicle who is cited for a violation of this article:

a. Prior to proceeding with a civil action for the collection of any fine, the video of the violation must be reviewed by an independent and impartial person who is not affiliated with the entity that owns or installed the camera ("reviewing person"), and the decision whether to proceed with a civil action must not have any financial impact upon the reviewing person;

b. The reviewing person must make a written finding that there is probable cause to believe a motor vehicle passed a school bus when the stop arm was activated, and that the motor vehicle had sufficient time to stop after the arm was activated;

c. The reviewing person must establish written proof of the ownership of the motor vehicle;

d. Written notice of the alleged violation must be mailed to the owner of the motor vehicle not later than the thirtieth day after the date the violation is alleged to have occurred at:

1. The owner's address as shown on the registration records of the Texas Department of Motor Vehicles; or

2. If the vehicle is registered in another state or country, the owner's address as shown on the motor vehicle registration records of the department or agency of the other state or country analogous to the Texas Department of Motor Vehicles.

e. The notice of violation must contain:

1. A description of the violation alleged;

2. The location where the violation occurred;

3. The date and time of the violation;

4. The name and address of the owner of the vehicle involved in the violation;

5. The registration number displayed on the license plate of the vehicle involved in the violation;

6. A copy of a recorded image of the violation limited solely to a depiction of the area of the registration number displayed on the license plate of the vehicle involved in the violation;

7. The amount of the civil penalty for which the owner is liable;

8. The number of days the person has in which to pay or contest the imposition of the civil penalty and a statement that the person incurs a late payment penalty if the civil penalty is not paid or imposition of the penalty is not contested within that period;

9. A statement that the owner of the vehicle in the notice of violation may elect to pay the civil penalty by mail sent to a specified address instead of appearing at the time and place of the administrative adjudication hearing;

10. Information that informs the owner of the vehicle named in the notice of violation: of the owner's right to contest the imposition of the civil penalty against the person in an administrative adjudication hearing; that imposition of the civil penalty may be contested by submitting a written request for an administrative adjudication hearing before the expiration of the period specified under subdivision viii; and that failure to pay the civil penalty or to contest liability for the penalty in a timely manner is an admission of liability and a waiver of the owner's right to appeal the imposition of the civil penalty, and

11. A point of contact, including phone number and email address, for the office or person designated by the school district to provide information and answer inquiries from those persons who have been issued a citation.

f. A notice of violation is presumed to have been received on the fifth day after the date the notice is mailed.

g. The person cited must be provided a reasonable opportunity to contest by appeal the citation of the alleged violation in person, by mail, and through an attorney, including the ability to provide proof that the person did not own the motor vehicle at the time of the alleged violation;

h. Independent and impartial hearing examiners ("hearing examiner") who are not affiliated with the entity that owns or installed the camera and are qualified to practice law must be appointed by the school district, and the determination whether a violation occurred must not have any financial impact upon the hearing examiner;

i. The cited person shall have at least thirty (30) days to appeal a citation from the date that they received notice, and the hearing examiner must have the ability to extend this time period upon a showing of good cause;

j. All persons who testify at the hearing shall testify under oath, and the person cited shall have the right to produce evidence and call witnesses;

k. At the hearing, the hearing examiner must find by a preponderance of the evidence that the person cited owned the vehicle at the time of the violation, that the violation occurred, and that there are no facts or circumstances establishing any reasonable justifications or excuses for any violation;

l. Upon expiration of the time for appeal, collection efforts may not be commenced without proof that the person cited received actual notice of the citation; and

m. No arrest warrant may be issued for a violation of the article, the violation may not appear on a person's driving record, and any outstanding fines may not be reported to a collection agency.

(3) The school district's board of trustees enters a finding in its minutes that the process adopted by the school district under this section satisfies constitutional due process requirements.

(b) A school district covered by this article may establish any procedure reasonably necessary to carry out the purpose of this article, including, without limitation, citation of a violator, a process for adjudication in person or by mail, the appointment of hearing examiners, the standard of proof, the administration of oaths, the production of evidence or the attendance of

witnesses, deadlines for responding to notices and citations, and a process for the payment of a fine.

(c) The procedure created by a school district under this section may not create a duty or responsibility to a city officer or employee, assign a duty to a city officer or employee, or create an expense or obligation for the city.

(d) A school district that establishes automated traffic enforcement procedures and collects fines pursuant to this ordinance shall:

(1) File an annual report, in June of each year on a form approved by the city manager's office, to provide information related to enforcement under this ordinance;

(2) File quarterly reports in September, December, March and June, to provide geo-location information to identify geographically the location of citations; and

(3) Designate and maintain a current point of contact, including phone number and email address, for the office or person designated by the school district to provide information and answer inquiries regarding this process.

(Ord. No. 2016-06-30-0516, § 1, 6-30-16; Ord. No. 2018-12-13-1017, § 1, 12-13-18)

Sec. 19-652. Civil offense created.

(a) The owner of a motor vehicle that is operated in violation of V.T.C.A., Transportation Code § 545.066 (Passing a School Bus; Offense) by passing a stopped school bus displaying the visual signals required by V.T.C.A., Transportation Code § 547.701(c) (Additional Equipment Requirements for School Buses and Other Buses Used to Transport Schoolchildren) commits a civil offense and is liable for a civil fine.

(b) Each violation is a separate civil offense.

(c) If the reviewing person, based upon the recording equipment installed on a school bus, determines that a motor vehicle has been operated in violation of this article, the motor vehicle is presumed to have been operated in violation of this article, and the school district may charge the owner of the vehicle the fine as provided by this article.

(d) A defense to V.T.C.A., Transportation Code § 545.066 (Passing a School Bus; Offense) is a defense to the civil offense created by this section.

(e) This article does not create a criminal offense.

(Ord. No. 2016-06-30-0516, § 1, 6-30-16)

Sec. 19-653. Fine.

(a) The fine for an offense under this article shall not exceed three hundred dollars ($300.00).

(b) A school district may assess to a person who is liable for a fine under this article an additional twenty-five dollar ($25.00) fine if:

(1) The person fails to timely respond to a citation or appeal the citation under this article, and if:

(2) The person fails to timely pay a fine assessed against the person under this article.

(c) The council finds that the purpose of this article is to obtain compliance, and to provide for the safety of school children, and not to raise revenue for the city. The city further finds that the fines collected under this article serve the municipal public purpose of enhancing traffic safety compliance with respect to school buses. Accordingly, the city assigns a fine collected for a violation of this article to the school district on whose behalf the school bus that recorded the violation was operated.

(d) A fine under this article is payable directly to the school district or the district's assignee. The fine may be used by the school district only to enhance student safety.

(Ord. No. 2016-06-30-0516, § 1, 6-30-16; Ord. No. 2018-12-13-1017, § 1, 12-13-18)

Secs. 19-654—19-659. Reserved.

ARTICLE XIX. MOTOR-ASSISTED SCOOTERS, ELECTRIC BICYCLES, AND BICYCLES EQUIPPED WITH GPS

Sec. 19-660. Definitions and exclusions.

(a) As used in this article:

(1) *Bicycle equipped with GPS* means a device that a person may ride and that is propelled by human power and has two (2) tandem wheels at least one of which is more than fourteen (14) inches in diameter, which has a global positioning system (GPS) to determine the geographic location of the bicycle.

(2) *Director* means the director of the department designated by the city manager to enforce and administer this article and includes representatives, agents, or department employees designated by the director.

(3) *Dockless vehicle* means a bicycle equipped with GPS, an electric bicycle, or a motor assisted scooter that is available for use for a fee;

(4) *Electric bicycle* means a bicycle that:

a. Is designed to be propelled by an electric motor, exclusively or in combination with the application of human power;

b. Cannot attain a speed of more than twenty (20) miles per hour without the application of human power; and

c. Does not exceed a weight of one hundred (100) pounds.

(5) *Fleet manager* means the person responsible for the daily operations of a dockless vehicle service, who must be based in the city.

(6) *Motor-assisted scooter* means a self-propelled device, not including a pocket bike or mini-motorbike, with:

a. At least two (2) wheels in contact with the ground during operation;

b. A braking system capable of stopping the device under typical operating conditions;

c. A gas or electric motor not exceeding forty (40) cubic centimeters;

d. A deck designed to allow a person to stand or sit while operating the device; and

e. The ability to be propelled by human power alone.

(7) *Permit agreement* means the written agreement between the city and a person for an operating permit which authorizes the operation of a service providing dockless vehicles for compensation.

(8) *Permit holder* means the person who owns the operation if a sole proprietorship, or the person who has been designated as managing the operation if any other entity, of a service providing dockless vehicles for compensation.

(9) *Person* means an individual, partnership, corporation, company, association or other legal entity.

(b) This article does not apply to a moped or motorcycle; a motorized mobility device (Transportation Code Section 542.009); an electric personal assistive mobility device (Transportation Code Section 551.201; or a neighborhood electric vehicle (Transportation Code Section 551.301).
(Ord. No. 2018-10-11-0803, § 1, 10-11-18)

Sec. 19-661. Operation, parking, and required equipment of motor-assisted scooters, electric bicycles, and bicycles equipped with GPS.

(a) Operation of motor-assisted scooters:

(1) Riders must always yield to pedestrians.

(2) Riders must use bike lanes when available.

(3) In the absence of a bike lane, riders may ride on streets which have a speed limit

of thirty-five (35) miles per hour or less. Riders must obey all state and city traffic laws.

(4) Riding on sidewalks is prohibited.

(5) Riders may not ride on trails, creek ways, plazas and in parks, including but not limited to the Riverwalk, Alamo Plaza, La Villita, Main Plaza and Market Square. Public streets that intersect parks and plazas may be ridden upon.

(6) The person operating or in control must be at least sixteen (16) years of age.

(7) Riders may not have any passengers. Only one person may be on the vehicle when it is being operated.

(8) Riders may not use a portable wireless communication device while operating a vehicle.

(9) The wearing of a helmet is encouraged but not required.

(b) Operation of electric bicycles, and bicycles equipped with GPS:

(1) Riders must always yield to pedestrians.

(2) Riders may not ride on sidewalks, and must use bike lanes when available.

(3) Riders must obey state and city traffic laws.

(4) For electric bicycles, the person operating or in control must be at least sixteen (16) years of age.

(6) Riders may not use a portable wireless communication device while operating a vehicle.

(7) The wearing of a helmet is encouraged but not required.

(c) Parking of motor-assisted scooters, electric bicycles and bicycles equipped with GPS:

(1) These vehicles may not be parked on streets, except in areas designated by the director by paint, decals or signs.

(2) These vehicles may be parked upright on sidewalks in a manner that does not impede the normal and reasonable pedestrian access on a sidewalk, or in any manner that would reduce the minimum clear width of a sidewalk to less than three (3) feet, except as prohibited below in subsection (2).

(3) These vehicles may not be parked on sidewalks at the following locations:

a. In the area beginning at a bus stop flag pole, continuing back fifteen (15) feet in the direction from which busses arrive, for the full width of the sidewalk;

b. Within eight (8) feet of commercial or pedestrian loading zones, or disabled parking zones;

c. Within four (4) feet of street fixtures that require pedestrian access, including but not limited to benches, parking pay stations and transit information signs;

d. Within five (5) feet of curb ramps, entryways and driveways, meaning within five (5) feet of the slope change that signifies the start of the curb ramp, entryway or driveway;

e. Within eight (8) feet of a building entrance;

f. On trails, creek ways, plazas and parks, including but not limited to the Riverwalk, Alamo Plaza, La Villita, Main Plaza and Market Square.

g. In a space reserved for a swell cycle, or any other docking station for shared bicycles.

(d) Required equipment of motor-assisted scooters, electric bicycles and bicycles equipped with GPS:

(1) These vehicles may not be operated at nighttime unless the vehicle is equipped with:

a. A lamp on the front of the vehicle that emits a white light visible from a distance of a least five hundred (500) feet in front of the vehicle; and

b. A red reflector that is visible when directly in front of lawful upper

beams of motor vehicle headlamps from all distances from fifty (50) to three hundred (300) feet to the rear of the vehicle, or a lamp that emits a red light visible from a distance of five hundred (500) feet to the rear of the vehicle.

(2) These vehicles may not be operated without a working bell, horn, or other sound mechanism.

(Ord. No. 2018-10-11-0803, § 1, 10-11-18; Ord. No. 2019-02-14-0111, § 1, 2-14-19; Ord. No. 2019-05-30-0426, § 4, 5-30-19; Ord. No. 2019-12-12-1028, § 4, 12-12-19)

Sec. 19-662. Dockless vehicle for hire permit agreements.

(a) A person must register and obtain a permit agreement from the city, and pay any applicable fees, prior to providing a dockless vehicle to for any compensation, including but not limited to any money, thing of value, payment, consideration, donation, gratuity or profit.

(b) Reserved.

(c) Reserved.

(d) Reserved.

(e) A permit agreement is non-transferrable. This regulation should not be construed to impede the continuing use of trade names.

(Ord. No. 2018-10-11-0803, § 1, 10-11-18; Ord. No. 2019-12-12-1028, § 4, 12-12-19)

Sec. 19-663. Issuance, renewal, suspension and revocation of permit agreements.

(a) The director shall refuse to issue or renew a permit agreement if the applicant:

(1) Does not meet the requirements in the permit application, including failing to meet any requirements established by the director;

(2) Intentionally or knowingly makes a false statement as to a material matter in an application for a permit agreement; or

(3) Has been convicted twice within a 12-month period for a violation of this article, or has had a permit agreement revoked within two (2) years of the date of application.

(b) If the director determines that a permit agreement should be denied, the director shall notify the applicant or operator in writing that the application is denied and include in the notice the specific reason or reasons for denial and a statement informing the applicant or operator of the right to, and the process for, appeal of the decision.

(c) The director shall revoke a permit agreement if the director determines that the permit holder has:

(1) Made a false statement as to a material matter in the application concerning the operating authority permit;

(2) Failed to maintain the insurance required by this article;

(3) Operated dockless vehicles in excess of the number authorized by the permit agreement; or

(4) Failed to pay a fee required by this article.

(d) After revocation of an operating authority permit, an operator is not eligible for another permit for a period of up to two (2) years, depending on the severity of the violation resulting in the revocation.

(e) Reserved.

(Ord. No. 2018-10-11-0803, § 1, 10-11-18; Ord. No. 2019-12-12-1028, § 4, 12-12-19)

Sec. 19-664. Dockless vehicle operations.

(a) Each dockless vehicle permitted under this article must display the emblem of the permit holder, a unique identification number, and a 24-hour phone number for customers and citizens to report safety concerns, make complaints, ask questions, or request a dockless vehicle be relocated.

(b) The fleet manager, or a designated representative, shall be available by the phone number provided on the application, seven (7) days a week between 8:00 a.m. and 5:00 p.m. to accept calls from the director.

(c) Permit holders shall not attach any personal property (other than dockless vehicles), fixtures, or structures to the public right-of-way without the separate written permission of the director. Any permission to place items in the public right-of-way must be incorporated into the permit.

(d) Permit holders shall provide the director electronic access to the current list of dockless vehicles available for rent in the city, which includes the unique identification number for each vehicle.

(e) Permit holders shall educate customers regarding the law applicable to riding, operating, and parking a dockless vehicle. A permit holder's application must provide information notifying the user that:

(1) The use of helmets is encouraged for the safety of the drivers;

(2) The legal parking of dockless vehicles;

(3) The legal operation of dockless vehicles, including the duty to yield to pedestrians.

(4) For motor-assisted scooters and electric bicycles, the areas where riding and parking are prohibited.

(f) Notices of violations or broken vehicles:

(1) Permit holders shall have one (1) hour after receiving notice of a violation, including scenarios where ADA accessibility is impacted (parking within thirty-six (36) inches of an ADA ramp, or blocking an ADA ramp), from any source, to correct violations for a dockless vehicle being parked in prohibited area under this article; for other violations the permit holder has two (2) hours after receiving notice to correct the violation.

(2) Permit holders are required to lock vehicles reported as broken, from any source, and must remove the vehicle within two (2) hours.

(3) After the time for correcting a violation has expired, the city may remove and impound a vehicle that is parked in violation of this article or broken. The permit holder must pay the city a fee of one hundred dollars ($100.00) to obtain the return of each vehicle impounded.

(4) City staff, and other persons authorized by city staff, including but not limited to Centro San Antonio and any other identified partners, may remove dockless vehicles parked in prohibited areas, dockless vehicles blocking ADA facilities, or dockless vehicles located within areas identified consistent with section 19-664(h), in violation of this article, or that are identified as broken, immediately and without notice of violation to a permit holder, in which case the city may not impose an impound fee.

(g) Permit holders shall cooperate with the city in the collection and analysis of aggregate data concerning its operations:

(1) Permit holders shall provide a monthly report to the director of the maximum number of permitted vehicles in use by riders at any time in the previous week; and

(2) Permit holders shall provide a monthly report to the director that includes:

a. The total number of rides the previous month;

b. The total number of vehicles in service for the previous month;

c. The average number of rides per vehicle per day;

d. Anonymized aggregated data taken by the permit holder's dockless vehicles in the form of heat maps showing routes, trends, origins, and destinations; and

e. Anonymized trip data taken by the permit holder's dockless vehicles that includes the origin and destination, trip duration, distance and date and time of trip.

(3) Permit holders shall provide such other reports at the director's request.

(h) Notwithstanding the above, the director has the authority to identify areas where vehicles must be removed to accommodate special events, construction, and maintenance work performed by the downtown public improvement district. The director shall have the authority to establish the time for any required removal and any subsequent deployment.
(Ord. No. 2018-10-11-0803, § 1, 10-11-18; Ord. No. 2019-02-14-0111, § 1, 2-14-19; Ord. No. 2019-12-12-1028, § 4, 12-12-19)

Sec. 19-665. Insurance.

(a) A permit holder shall procure and keep in full force and effect the insurance coverage required by the executed permit agreement between the city and permit holder.

(b) Insurance required under this article must be consistent with requirements established by written permit agreement between the city and permit holder.

(c) No person who has a twenty (20) percent or greater ownership interest in the permit holder may have an interest in the insurance company.

(d) A permit holder may not be self-insured.

(e) Any insurance policy required by this article must be on file with and approved by the city prior to the issuance of a permit agreement, must remain in effect during the term of the permit agreement.
(Ord. No. 2018-10-11-0803, § 1, 10-11-18; Ord. No. 2019-12-12-1028, § 4, 12-12-19)

Sec. 19-666. Indemnification.

(a) Permit holder covenants and agrees to fully indemnify, defend and hold harmless, the city and the elected officials, employees, officers, directors, volunteers and representatives of the city, individually and collectively, from and against any and all costs, claims, liens, damages, losses, expenses, fees, fines, penalties, proceedings, actions, demands, causes of action, liability and suits of any kind and nature, including but not limited to, personal or bodily injury, death and property damage (collectively "CLAIMS"), made upon the city directly or indirectly arising out of, resulting from or related to permit holder's violation of this contract, including any violation attributable to any agent, officer, director, representative, employee, consultant or subcontractor of permit holder, and their respective officers, agents employees, directors and representatives while in the exercise of the rights or performance of the duties under this contract. The indemnity provided for in this paragraph shall not apply to any liability resulting from the negligence or intentional misconduct of city, its officers or employees. In the event permit holder and city are found jointly liable by a court of competent jurisdiction, liability shall be apportioned comparatively in accordance with the laws for the State of Texas, without, however, waiving any governmental immunity available to the city under Texas law and without waiving any defenses of the parties under Texas law.

(b) The provisions of this indemnity are solely for the benefit of the parties hereto and not intended to create or grant any rights, contractual or otherwise, to any other person or entity. The parties shall advise each other in writing within 24 hours of any claim or demand against either party that it reasonably believes are covered by permit holder's indemnity obligations hereunder. The city shall have the right, at its option and at its own expense, to participate in such defense without relieving permit holder of any of its obligations under this paragraph.

(c) Defense counsel permit holder shall retain the right to select defense counsel in fulfilling its obligation hereunder to defend and indemnify city, unless such right is expressly waived by permit holder in writing. City shall also have the right, at its option, to be represented by advisory counsel of its own selection and at its own expense.

(d) *Employee litigation*. In any and all claims against any party indemnified hereunder by any employee of permit holder, any subcontractor, anyone directly or indirectly employed by any of them or anyone for whose acts any of them may be liable, the indemnification obligation herein

provided shall not be limited in any way by any limitation on the amount or type of damages, compensation or benefits payable by or for permit holder or any subcontractor under worker's compensation or other employee benefit acts.

(e) It is expressly understood and agreed that permit holder is and shall be deemed to be an independent contractor and permit holder responsible to all parties for its respective acts or omissions and that city shall in no way be responsible therefor.
(Ord. No. 2018-10-11-0803, § 1, 10-11-18)

Sec. 19-667. Enforcement.

(a) The director shall enforce this article.

(b) Upon observing a violation of this article, the director shall take necessary action to ensure effective regulation of dockless vehicles.

(c) The director may, with or without notice, inspect any dockless vehicle operating under this article to determine whether the dockless vehicle complies with this article and other applicable laws.
(Ord. No. 2018-10-11-0803, § 1, 10-11-18)

Sec. 19-668. Criminal offenses.

(a) A person commits an offense if, within the city, the person operates or causes or permits the operation of a dockless vehicle service without a valid permit agreement issued under this article.

(b) A person commits an offense if the person violates or attempts to violate a provision of this article.

(c) A culpable mental state is not required for the commission of an offense under this article. A separate offense is committed each day in which an offense occurs.

(d) Prosecution for an offense under this article does not prevent the use of other enforcement remedies or procedures applicable to the person charged with the conduct or involved in the offense.

(e) Any person who violates any of the provisions of this article shall be guilty of a Class C misdemeanor and upon adjudication or conviction thereof shall be fined in an amount not to exceed five hundred dollars ($500.00) for each offense.
(Ord. No. 2018-10-11-0803, § 1, 10-11-18)

Sec. 19-669. Inconsistent city code provisions.

This article controls over any previously enacted ordinance or provision of the City Code of San Antonio, Texas, to the extent there is any conflict, including but not limited to sections 19-286, 19-294 and 29-20.
(Ord. No. 2018-10-11-0803, § 1, 10-11-18)

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Chapter 20

MUNICIPAL COURT*

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*__Editor's note—__Ord. No. 100824, §§ 1, 2, adopted May 5, 2005, amended chapter 20 in its entirety to read as herein set out. Formerly, chapter 20 pertained to similar subject matter and derived from the Code of 1950, §§ 15-1, 15-2; the Code of 1959, §§ 11-1—11-3; Ord. No. 23236, § 2, adopted August 1, 1956; Ord. No. 59318, § 1, adopted September 4, 1984; Ord. No. 65689, §§ 1, 2, adopted September 10, 1987; Ord. No. 73698, § 3, adopted May 23, 1991; Ord. No. 98638, § 1, adopted December 18, 2003; Ord. No. 99748, § 4, adopted September 16, 2004.

For stylistic purposes, a uniform numbering system has been used to conform to the Code of Ordinances.

__Charter reference—__Municipal court generally, § 112 et seq.

__Cross reference—__Police, § 25-1 et seq.

__State law references—__Municipal court, Vernon's Ann. Civ. St. art. 1194 et seq.; Vernon's Ann. C.C.P. art. 45.01 et seq.

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ARTICLE I. MUNICIPAL COURT OF RECORD*

Sec. 20-1. Creation of the court.

In accordance with the City Charter and Chapter 30 of the Texas Government Code, there shall be a municipal court of record for the city which shall be divided into the *Municipal Courts of Record Nos. 1* through *8* and the *Magistrate Court* (hereinafter "municipal court(s)" unless otherwise noted).
(Ord. No. 100824, § 2, 5-5-05)

Sec. 20-2. Jurisdiction.

The municipal courts and the magistrate court shall have, but not be limited to:

(1) The general jurisdiction provided by Chapter 30 of the Texas Government Code and all other state laws for municipal courts, municipal courts of record and magistrate courts;

(2) Jurisdiction over criminal cases arising under ordinances authorized by Sections 215.072, 217.042, 341.903, and 401.002 of the Local Government Code, as amended;

(3) Concurrent jurisdiction with a justice court in any precinct in which the city is located in criminal cases that arise within the territorial limits of the city and are punishable only by fine;

(4) Civil jurisdiction for the purpose of enforcing city ordinances enacted pursuant to Subchapter A, Chapter 214, Local Government Code; Chapter 682, Transportation Code, or Subchapter E, Chapter 683, Transportation Code;

(5) Concurrent jurisdiction with a district court or a county court at law under Subchapter B, chapter 54, Local Government Code, pursuant to Chapter 30 of the Government Code, within the city's territorial limits and property owned by the city located in the city's extraterritorial jurisdiction for the purpose of enforcing health and safety and nuisance abatement ordinances;

(6) Jurisdiction for all appeals as provided under general, state and local law for municipal courts of record;

(7) Authority to issue search warrants for the purpose of investigating a health and safety or nuisance abatement ordinance violation;

(8) Authority to issue seizure warrants for the purpose of securing, removing, or demolishing the offending property and removing the debris from the premises; and

(9) Authority to issue additional writs, warrants and other process as authorized by the general laws of the state.

(Ord. No. 100824, § 2, 5-5-05)

Sec. 20-3. Municipal courts department.

Pursuant to Articles V and VIII of the City Charter, there shall be a municipal courts department for the city, consisting of the office of the judiciary and municipal court administrative services. The administrative services director/municipal court clerk and presiding judge shall work in cooperation for the benefit of the municipal courts. As part of the budget process, the budget for the municipal courts department shall be divided into separate budgets for the office of the judiciary and municipal court administrative services.
(Ord. No. 100824, § 2, 5-5-05)

Sec. 20-4. Office of the judiciary.

Pursuant to Article VIII of the City Charter and § 30.00003 of the Texas Government Code, there is hereby created the office of the judiciary of the municipal courts department which shall consist of the presiding judge, the full-time municipal judges, substitute judges and other assigned personnel as needed for the operation of the courts, including a court administrator appointed by the city manager with the recommendation of the presiding judge. The court administrator shall hire, supervise, direct and remove

*__Editor's note—__Ord. No. 2012-10-04-0780, § 2, adopted October 4, 2012, designated sections 20-1—20-17 as "Article I. Municipal Court of Record."

administrative personnel assigned to the office of the judiciary as authorized by the city manager in the annual budget.
(Ord. No. 100824, § 2, 5-5-05)

Sec. 20-5. Judge.

Pursuant to Article VIII of the City Charter and §§ 30.00006 and 30.00224 of the Texas Government Code:

(1) The city council shall appoint each full-time municipal judge and substitute municipal judge (to include part-time municipal judges by definition) by ordinance for a term of two (2) years, beginning on the date established by the ordinance that accomplishes the appointment or reappointment;

(2) Each municipal judge and substitute municipal judge shall:

a. Be a resident of the state;

b. Be a citizen of the United States;

c. Be a licensed attorney in good standing;

d. Have two (2) or more years of experience in the practice of law in the state;

e. Be a resident of the city for at least three (3) years immediately preceding the judge's appointment;

(3) The city council shall establish, at the time of appointment, the salary and benefits of full-time municipal judges as provided or authorized by ordinance, which may not be diminished during the municipal judge's term of office and may not be based directly or indirectly on fines, fees or costs collected by the court. Substitute municipal judges shall be compensated on an hourly basis as provided by ordinance for service as a temporary replacement for a municipal judge for any reason and as directed by the presiding judge;

(4) Each substitute municipal judge, while serving as a municipal judge, possesses all of the powers and shall discharge all of the duties of a municipal judge ("municipal judge" shall mean full-time municipal judge and substitute and part-time municipal judge unless otherwise noted);

(5) The municipal judges shall take judicial notice of state law and the ordinances and corporate limits of the city. The municipal judges may grant writs of mandamus, attachment and other writs necessary to the enforcement of the jurisdiction of the court and may issue writs of habeas corpus in cases in which the offense charged is within the jurisdiction of the court. The municipal judges are magistrates and shall perform the duties of a magistrate in the city detention center as needed in accordance with the Texas Code of Criminal Procedure, to include issuing administrative search warrants;

(6) The municipal judges within the city may exchange benches under the direction of the presiding judge and act for each other in any proceeding pending in the municipal courts of record or magistrate court. An act performed by any of the municipal judges is binding on all parties to the proceeding;

(7) A municipal judge who accepts employment with the city vacates the judicial office;

(8) If a vacancy occurs in the office of municipal judge during a term, then a qualified person shall be appointed and confirmed in the same manner for the remainder of the unexpired term;

(9) Each municipal judge is subject to the holdover provision in Section 160 of the City Charter prior to appointment and confirmation of a successor;

(10) Municipal judges shall be subject to removal from office as provided by state law;

(11) The municipal judges shall have all other powers and duties assigned to a municipal judge by the city charter, city ordinances and state law;

(12) The municipal judges shall follow all rules of practice, procedure and operation contained in the ordinances of the city and state law;

(13) Each municipal judge shall maintain work hours as directed by the presiding judge and shall be responsible for the caseload distributed to him by the presiding judge; and

(14) Each full-time municipal judge shall submit documentation for all leave taken during work hours as established by the presiding judge.

(Ord. No. 100824, § 2, 5-5-05)

Sec. 20-6. Presiding judge.

There shall be a presiding judge of the municipal courts of record for the city, who shall be appointed by the city council from among the associate full-time municipal judges.

The presiding judge shall be the administrative judge for the office of the judiciary of the municipal courts department and shall perform the duties of that office as provided by §§ 30.00007 and 30.00224 of the Texas Government Code, other state law and as assigned by the city council by ordinance. The presiding judge shall:

(1) Maintain administrative oversight of the municipal judges;

(2) Establish work rules for the administration of the municipal courts, in consultation with the director/clerk;

(3) Maintain a central docket for the cases filed within the municipal court's jurisdiction;

(4) Provide for the distribution of cases from the central docket to the individual municipal judges to equalize the distribution of business in the courts, to include shifting the assignment of cases between individual courts and municipal judges in furtherance of judicial economy;

(5) Establish the work hours for each municipal judge;

(6) Schedule and approve vacation and other absences for each municipal judge and provide monthly reports of these to the city council;

(7) Provide monthly case adjudication reports for each municipal judge, as well as judicial complaints to city council;

(8) Assign the duties of each municipal judge;

(9) Assign municipal judges to exchange benches and to act for each other in pending proceedings;

(10) Designate a full-time municipal judge to assist in administration and to act for the presiding judge while the presiding judge is absent; and

(11) Administer the budget established through the city's budget process for the office of the judiciary of the municipal courts department.

(Ord. No. 100824, § 2, 5-5-05)

Sec. 20-7. Court reporter and recording of proceedings.

(a) The municipal court of record shall comply with the recording procedures set forth in Chapter 30 of the Texas Government Code.

(b) A court reporter may be provided for the purpose of preserving a record in cases tried before the municipal courts. The court reporter shall:

(1) Meet the qualifications provided by law;

(2) Be selected by the city manager with the recommendation of the presiding judge;

(3) Receive compensation as set by the city manager on the recommendation of the presiding judge;

(4) Preserve the record through written notes, transcribing equipment, recording equipment or any combination of these methods; and

(5) Not be required to record testimony in a case in which neither the defendant, the prosecutor nor the municipal judge demands it.

(c) In lieu of a court reporter, a good quality electronic recording device may be used to report court proceedings. A court reporter is not required to be present to certify the reporter's record.
(Ord. No. 100824, § 2, 5-5-05; Ord. No. 2024-03-21-0194, § 1, 3-21-24)

Sec. 20-8. Municipal court administrative services.

Pursuant to Articles V and VIII of the City Charter and § 30.00003 of the Texas Government Code, there is hereby created the municipal court administrative services of the municipal courts department which shall consist of the administrative services director/municipal court clerk and assigned staff.
(Ord. No. 100824, § 2, 5-5-05)

Sec. 20-9. Administrative services director/ municipal court clerk.

The administrative services director of the municipal courts department shall be appointed by the city manager, shall serve as the municipal court clerk and shall be the official clerk for the municipal courts and magistrate court. The administrative services director/municipal court clerk ("director/clerk" unless otherwise noted) shall discharge the duties attendant upon that position as prescribed herein and by §§ 30.00009 and 30.00225 of the Texas Government Code and applicable state law. The director/clerk shall:

(1) Administer oaths and affidavits, issue process, make certificates, provide all clerical preparation of complaints, affix the seal of the courts thereto, and generally perform the duties that a clerk of a county court of law exercising criminal jurisdiction performs for that court, including maintaining an index of all court judgments;

(2) Maintain a central docket for all cases filed in the municipal courts, in consultation with the presiding judge;

(3) Maintain an index of municipal court judgments;

(4) To the extent required by law, maintain and preserve all documents and other records of the municipal courts and make them available for inspection at all reasonable times by any interested party;

(5) Collect all fines, court costs and fees for offenses prosecuted under the jurisdiction of the municipal courts and issue receipts for payment;

(6) Require all designated staff responsible for collection of fines, costs and fees to execute fidelity bonds as may be required by law; however, the city may self-insure for these fidelity bonds as permitted by law and if self-insured, the director/clerk shall maintain a record of said bonds;

(7) Make a daily report of all cases brought before the municipal courts reflecting whether reset, adjudicated, dismissed or tried, to include the case number, the name of the defendant, the nature of the offense and reason for each dismissal or acquittal, and make such report available to the presiding judge and the chief prosecutor;

(8) Administer the budget established by the city's budget process for the municipal court administrative services of the municipal court department and hire, direct, supervise and remove all staff as authorized by the city manager; and

(9) Take an oath to faithfully perform the duties of the position.

(Ord. No. 100824, § 2, 5-5-05)

Sec. 20-10. Deputy clerks.

Pursuant to Article V and VIII of the City Charter and §§ 30.00009 and 30.00225 of the Texas Government Code, the director/clerk may hire deputy clerks, warrant officers and other personnel as needed for the proper operation of the courts, as authorized by the city manager and approved by the city council in the annual budget. The deputy clerks shall:

(1) Assist the director/clerk in performing the duties of that position;

(2) Execute fidelity bonds as may be required by law; however, the city may self-insure for these fidelity bonds as permitted by law;

(3) Act for one another in performing services to the municipal courts as needed; and

(4) Possess all of the powers of the clerk and shall discharge all of the attendant duties of the position as required.

(Ord. No. 100824, § 2, 5-5-05)

Sec. 20-11. City marshal.

There shall be the position of marshal. The position may consist of a city marshal, deputy marshal(s), part-time deputy marshal(s), and reserve deputy marshal(s). The city marshal(s) shall:

(1) Meet and maintain all qualifications necessary and be certified as peace officers by the state commission on law enforcement officer Standards and Education;

(2) Be peace officers of the city, hired as municipal employees only and not in compliance with Chapter 143 of the Local Government Code;

(3) Be hired and directed by the director/clerk as authorized by the city manager in the annual budget for the municipal courts administrative services of the municipal courts department;

(4) Perform all the duties assigned by the director/clerk to include:

a. Executing legal process issuing from municipal courts and the magistrate court including, but not limited to: warrants of arrest, subpoenas, citations, and summons;

b. Facilitating case closure through the collection of case fines/costs using approved departmental procedures;

c. Providing security services as needed, to include serving as a court bailiff, providing prisoner transport, assisting with detention officer duties and operating security equipment;

d. Maintaining records and all documents required for designated duties; and

e. Other duties as assigned by the director/clerk; and

(5) Not accept or maintain any off-duty employment that conflicts with the policy established by the director/clerk, subject to approval by the city manager.

(Ord. No. 100824, § 2, 5-5-05)

Sec. 20-12. General practice, procedure and operations.

(a) The practices, procedures and operations of the municipal courts shall be governed by:

(1) Local rules established by the city municipal courts, as amended;

(2) Applicable state law, as amended, including:

a. Chapter 30 of the Government Code;

b. Chapters 27, 44 and 45 of the Code of Criminal Procedure; and

c. The Texas Rules of Appellate Procedure, as amended.

(b) General hours of operation shall be from 8:00 a.m. to 5:00 p.m., with additional weekend and evening hours established as determined to be necessary by the presiding judge and director/clerk and as supported by the budgets of the department.

(c) The magistrate court shall operate twenty-four (24) hours a day, seven (7) days a week.

(d) Reserved.

(e) Except as designated herein, all other court fees, special expense or administrative fees, and fines shall be assessed in accordance with state law or by ordinance as required by statute.

(Ord. No. 100824, § 2, 5-5-05; Ord. No. 2024-03-21-0194, § 2, 3-21-24)

Sec. 20-13. Reserved.

Editor's note—Ord. No. 2019-09-12-0694A, § 1(Att. F), adopted Sept. 12, 2019, repealed § 20-13 which pertained to municipal court technology fund and derived from Ord. No. 100824, § 2, adopted May 5, 2005.

Sec. 20-14. Reserved.

Editor's note—Ord. No. 2019-09-12-0694A, § 1(Att. F), adopted Sept. 12, 2019, repealed § 20-14 which pertained to municipal court building security fund and derived from Ord. No. 100824, § 2, adopted May 5, 2005.

Sec. 20-15. Child safety fund.

(a) There is hereby created the municipal court child safety trust fund. The municipal court shall by order assess a court cost on each parking violation not less than two dollars ($2.00) and not to exceed five dollars ($5.00), as established by city council in the annual budget, pursuant to V.T.C.A., Criminal Procedure § 102.014, as amended. The court costs under this subsection shall be collected in the same manner that other fines in the case are collected.

(b) A person convicted of an offense under V.T.C.A., Transportation Code Subtitle C, Title 7, when the offense occurs within a school crossing zone as defined by V.T.C.A., Transportation Code § 541.302, shall pay as court costs twenty-five dollars ($25.00) in addition to other taxable court costs. A person convicted of an offense under Section 545.066, Transportation Code, shall pay as court costs twenty-five dollars ($25.00) in addition to other taxable court costs. The additional court costs under this subsection shall be collected in the same manner that other fines and taxable court costs in the case are collected and shall be assessed only in the city.

(c) A person convicted of an offense under V.T.C.A., Education Code § 25.093 or 25.094, shall pay as taxable court costs twenty dollars ($20.00) in addition to other taxable court costs. The additional court costs under this subsection shall be collected in the same manner that other fines and taxable court costs in the case are collected.

(d) In this section, a person is considered to have been convicted in a case if the person would be considered to have been convicted under V.T.C.A., Local Government Code § 133.101.

(e) The director/clerk shall collect the costs and shall pay them to the city treasurer for deposit in a fund to be known as the "municipal court child safety trust fund" established as required by V.T.C.A., Local Government Code Ch. 106, and in compliance with V.T.C.A., Local Government Code Ch. 343, as amended.

(f) The city council hereby directs the city manager to administer the municipal court child safety trust fund.

(g) This section shall control over any prior ordinance provisions in conflict herewith.
(Ord. No. 2024-09-19-0705, § 2(Att. G), 9-19-24)

Sec. 20-16. Internet and kiosk convenience fee.

An internet and kiosk convenience fee is imposed as follows:

Municipal court, per transaction for payment of fines: $4.00.

(Ord. No. 99748, § 4, 9-16-04; Ord. No. 100284, § 2, 5-5-05; Ord. No. 2014-09-18-0694, § 2(Att. G), 9-18-14)

Editor's note—Because Ord. No. 100824 enacted new provisions as §§ 20-1—20-15, and did not address the former § 20-6, said ordinance requires the renumbering of the former § 20-6 as § 20-16. The historical notation has been preserved for reference purposes.

Ord. No. 2014-09-18-0694, § 2(Att. G), adopted September 18, 2014, changed the title of section 20-16 from "Internet convenience fee" to "Internet and kiosk convenience fee." The historical notation has been preserved for reference purposes.

Sec. 20-17. Reserved.

Editor's note—Ord. No. 2019-09-12-0694A, § 1(Att. F), adopted Sept. 12, 2019, repealed § 20-17 which pertained to juvenile case manager fund and derived from Ord. No. 2009-09-17-0731I, § 3, adopted Sept. 17, 2009.

Secs. 20-18—20-99. Reserved.

ARTICLE II. ADMINISTRATIVE ADJUDICATION HEARINGS*

Sec. 20-100. Purpose.

It is the intent of this article to promote, protect and improve the health, safety and welfare

*__Editor's note—__Section 4 of Ord. No. 2012-10-04-0780 states the following: "Violations occurring after the effective date of this Ordinance shall be punished as provided in the revised Chapter 20, City Code. Violations occurring prior to

of the citizens of the city, by providing for administrative hearing officers with the authority to impose administrative penalties in order to provide an equitable, expeditious, effective and inexpensive method to enforce ordinances described by V.T.C.A., Local Government Code § 54.032, Ordinances Subject to Quasi-Judicial Enforcement, and to provide continued authority to adjudicate parking violations under section 19-225 of the city Code.
(Ord. No. 2012-10-04-0780, § 2, 10-4-12)

Sec. 20-101. Authority and supplementary provisions.

The City of San Antonio (the "city"), as a home-rule city, adopts in this article a procedure for administrative adjudication hearings pursuant to V.T.C.A., Local Government Code § 54.044 and the powers of self-rule granted by the voters under the city Charter as authorized by the Constitution of the State.

Nothing in this article shall preclude the city's pursuit of any and all other remedies allowed under the civil and criminal statutes and, in equity, to address conditions which are treated in this article. Neither shall the city be required to issue, nor be prohibited from issuing, criminal citations before, during, or after any proceeding prescribed in this article.
(Ord. No. 2012-10-04-0780, § 2, 10-4-12; Ord. No. 2013-11-21-0803, § 3, 11-21-13)

Sec. 20-102. Jurisdiction.

(a) The jurisdiction of the administrative hearing officers shall be limited to city ordinances:

(1) For the preservation of public safety, relating to the materials or methods used to construct a building or improvement, including the foundation, structural elements, electrical wiring or apparatus, plumbing and fixtures, entrances or exits;

(2) Relating to the fire safety of a building or improvement, including provisions relating to materials, types of construction or design, warning devices, sprinklers or other fire suppression devices, availability of water supply for extinguishing fires, or location, design, or width of entrances or exits;

(3) Relating to dangerously damaged or deteriorated buildings or improvements;

(4) Relating to conditions caused by accumulations of refuse, vegetation, or other matter that creates breeding and living places for insects and rodents;

(5) Relating to a building code or to the condition, use or appearance of property in the city; or

(6) Relating to animal care and control.

(7) Relating to the provision of notices of tenant rights by landlords and property owners to tenants in residential rental units who have received a notice to vacate for non-payment of rent as set out in section 16-6 of the city Code.

(b) Pursuant to the home rule powers of the city, the jurisdiction of the administrative hearing officers shall include the administrative adjudication of parking violations under section 19-225 and violations under section 16-68 of the city code.
(Ord. No. 2012-10-04-0780, § 2, 10-4-12; Ord. No. 2013-11-21-0803, § 3, 11-21-13; Ord. No. 2020-06-25-0453, § 6, 6-25-20; Ord. of 05-07-2026(1), § 2, 5-7-26)

Sec. 20-103. Definitions.

For the purpose of this article, the following definitions shall apply unless the context clearly indicates or requires a different meaning:

City means the City of San Antonio, Texas.

Person means any natural person, corporation, partnership, joint venture, association (including homeowners or neighborhood associations), trust or any other entity recognized by law.

Violator means the person charged with violating a city ordinance described in section 20-102 of this article.
(Ord. No. 2012-10-04-0780, § 2, 10-4-12)

Sec. 20-104. Establishment of an administrative hearing officer; duties.

(a) An administrative hearing officer shall be hired by the city manager and shall serve under the direction of the presiding judge of the municipal court to preside over the administrative adjudication hearings established under this article. The city manager may also provide for associate administrative hearing officers to preside over the administrative adjudication hearings established under this article and shall have the same powers, duties and functions, and must meet the same qualifications, as the administrative hearing officer.

(b) The administrative hearing officer shall:

(1) Be a licensed attorney in good standing with the State Bar of Texas;

(2) Be authorized to administer oaths and issue orders compelling the attendance of witnesses and production of documents;

(3) Act pursuant to the authority granted by V.T.C.A., Local Government Code § 54.044, this article and in section 19-225 of the city code; and

(4) Enforce and adjudicate parking violations pursuant to the provisions, duties and procedures in section 19-225 of the city code.

(5) Be responsible for additional administrative adjudicative duties as assigned by passage of ordinance.

(Ord. No. 2012-10-04-0780, § 2, 10-4-12)

Sec. 20-105. Notice and hearing.

(a) A violator is entitled to notice by citation or summons.

(b) A citation or summons issued pursuant to the procedures adopted under this article must:

(1) Notify the violator that the person has the right to a hearing;

(2) Provide information as to the time and place of the hearing;

(3) State the type, date and location of violation;

(4) State the penalty range for which the violator may be liable; and

(5) Provide instructions and the due date for paying penalties, costs and fees, as prescribed by the municipal court clerk in conformance with section 20-106, in lieu of a hearing and payment of which shall be an admission of liability for the violation charged.

(c) The original or a copy of the summons or citation shall be kept by the municipal court clerk as a record in the ordinary course of business of the city and is rebuttable proof of the facts it states.

(d) The person who issued the citation or summons is not required to attend a hearing under this article.

(e) A violator who fails to appear at a hearing authorized under this article is considered to admit liability for the violation charged. The administrative hearing officer shall issue an order of liability and assess appropriate penalties, costs and fees against the violator in conformance with section 20-106 of this article.

(f) At a hearing under this article, the administrative hearing officer shall issue an order stating whether the violator is liable for the violation. Upon a finding of liability, the administrative hearing officer shall issue an order:

(1) Assessing the penalty, costs and fees; and

(2) Requiring abatement of the violation by a specific date.

(g) Upon a finding of liability, the administrative hearing officer may set the date and time for a compliance hearing. A copy of the order shall be provided to the violator as notice of the compliance hearing.

(h) If, at a compliance hearing, the administrative hearing officer finds that the violator has remedied or abated the violation, the administrative hearing officer may reduce the applicable penalty, fees and costs.

(i) If, at a hearing under this article, the administrative hearing officer finds the violator is not liable for the violation, the violator shall not be responsible for any penalty, cost or fee.

(j) An order issued pursuant to this article may be filed with the municipal court clerk, who shall keep the order in a separate index and file. The order may be recorded using microfilm, microfiche, or data processing techniques.
(Ord. No. 2012-10-04-0780, § 2, 10-4-12)

Sec. 20-106. Establishing penalty.

(a) The establishment of a penalty shall be consistent with and pursuant to the provisions of V.T.C.A., Local Government Code § 54.044, and as amended.

(b) The penalty range to be assessed against a violator found liable under this article shall be:

(1) Not less than twenty dollars ($20.00), nor more than one thousand dollars ($1,000.00) a day for a first violation;

(2) Not less than two hundred fifty dollars ($250.00), nor more than one thousand dollars ($1,000.00) a day for a second violation; and

(3) Not less than five hundred dollars ($500.00), nor more than one thousand dollars ($1,000.00) a day for a third or subsequent violation.

(c) In addition to the penalty assessed, the administrative hearing officer may require the violator to pay fees and costs.

(d) In determining the amount of penalty to be assessed, the administrative hearing officer shall consider the following factors:

(1) The gravity of the violation;

(2) Any actions taken by the violator to correct the violation;

(3) Any previous violations committed by the violator;

(4) The actual costs of repairs to the city due to the violation as supported by receipts or testimony or other evidence;

(5) Indigence of the violator; and

(6) Any other relevant evidence.
(Ord. No. 2012-10-04-0780, § 2, 10-4-12)

Sec. 20-107. Enforcement of order.

An order issued against a person found liable for a city ordinance violation under this article may be enforced by:

(1) Filing a civil suit for the collection of a penalty assessed against the person;

(2) Obtaining an injunction that:

a. Prohibits specific conduct that violates the ordinance; or

b. Requires specific conduct necessary for compliance with the ordinance; and

(3) Referral to a collection agency for non-payment of assessed penalties, costs and fees, with the cost to the city for collection services assessed as costs and added to the judgment.
(Ord. No. 2012-10-04-0780, § 2, 10-4-12)

Sec. 20-108. Appeal.

(a) A person who is found by an administrative hearing officer to have violated an ordinance under this article may appeal the determination by filing a petition in the municipal court before the 31st day after the date the administrative hearing officer's order is filed. An appeal does not stay enforcement and collection of the judgment unless the person, before filing the appeal petition, posts a bond with the municipal court for twice the amount of the penalties, costs and fees ordered by the administrative hearing officer.

(b) If a person found liable for a violation does not timely appeal the administrative hearing officer's order, the order shall become a final judgment.

(c) The municipal court's review shall be limited to a hearing under the substantial evidence rule.
(Ord. No. 2012-10-04-0780, § 2, 10-4-12; Ord. No. 2013-11-21-0803, § 3, 11-21-13)

Sec. 20-109. Disposition of administrative penalties, costs and fees.

(a) Except as provided in subsections (b) and (c), penalties, costs and fees assessed under this article shall be paid into the city's general fund for the use and benefit of the city.

(b) Twenty dollars ($20.00) of each penalty assessed and paid for development services department violations set out in subsections 20-102(a)(1)—(5) shall be deposited into the development services department compliance assistance account established in section 20-110 of this article.

(c) Twenty dollars ($20.00) of each penalty assessed and paid for animal care services department violations set out in subsection 20-102(a)(6) shall be deposited into the animal care services department compliance assistance account established in section 20-110 of this article.
(Ord. No. 2012-10-04-0780, § 2, 10-4-12; Ord. No. 2013-11-21-0803, § 3, 11-21-13)

Sec. 20-110. Compliance assistance account.

(a) Compliance assistance accounts are composed of:

(1) Penalties collected under subsections 20-109(b) and (c) of this article; and

(2) Any funds donated by a person, as accepted by city council ordinance.

(b) The development services department compliance assistance account shall be used for the sole purpose of rehabilitating, repairing or abating nuisances of properties and premises in the city for persons who:

(1) Have been found liable for an administrative violation under this article;

(2) Are found by the administrative hearing officer to be indigent and financially unable to comply with an administrative order under section 20-105;

(3) File a request for funds with the development services department for the purpose of rehabilitating and/or repairing the person's property or premises until it complies with the administrative order;

(4) Have not have received funds from the compliance assistance account within the preceding sixty (60) months;

(5) Do not qualify for other home repair or rehabilitation assistance programs available through the city; and

(6) Own and occupy the property.

(c) The animal care services department compliance assistance account shall be managed by the animal care services department and used for the sole purpose of abating animal care and control violations set out in chapter 5 of this Code for persons who:

(1) Have been found liable for an administrative violation set out in chapter 5 of this Code;

(2) Are found to be indigent and financially unable to abate the cited violation as defined under this section as determined by the director of the animal care services department or an administrative hearing officer;

(3) Filed with the animal care services department a request for funds that are to be used to provide reasonable measures that would abate the violation;

(4) Have not have received funds from the compliance assistance account within the preceding sixty (60) months;

(5) Do not qualify for other animal care and control assistance programs available through the city that would abate the violation; and

(6) Own the animal at issue.

(d) The director of the development services department and the director of the animal care services department shall adopt policies and procedures consistent with this article for the administration of each account's funds.
(Ord. No. 2012-10-04-0780, § 2, 10-4-12; Ord. No. 2013-11-21-0803, § 3, 11-21-13; Ord. No. 2017-10-05-0755, § 2, 10-5-17; Ord. No. 2020-10-29-0772, § 2, 10-29-20)

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Chapter 21

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ARTICLE I. IN GENERAL

Sec. 21-1. Leaving children in vehicles unattended.

(a) A person commits an offense if he, with criminal negligence, leaves a child in an unattended motor vehicle.

(b) City police officers, fire department and emergency medical personnel are authorized to take such prudent action as may be required to relieve the threat of danger to a child regardless of possible damage to the vehicle in question. The policy shall be that the law enforcement officer shall make personal contact with any person receiving a citation hereunder.

(c) For the purposes of this section, the term "child" shall mean any person whose apparent age is ten (10) years or less or who, because of physical or mental disability, is unable to avoid the hazards of being unattended.

(d) For the purposes of this section, the term "unattended" shall mean in the absence of a person of at least sixteen (16) years of age in the vehicle or immediately adjacent thereto.
(Ord. No. 58799, § 1, 5-24-84)

Sec. 21-2. Abandoned iceboxes, etc.

It shall be unlawful for any person in the city to place, or allow to be placed, outside of any building or dwelling in a location accessible to children any abandoned, unattended or discarded icebox, refrigerator, freezer or any other container of any type that has an airtight snap lock or other locking device, or a magnetic seal-type door without first removing the lock or doors from such icebox, refrigerator, freezer, or container.
(Ord. No. 19522, § 1, 9-3-53; Code 1959, § 26-1; Ord. No. 53872, 6-4-81)

Sec. 21-3. Advertising on public or private property.

(a) It shall be unlawful for any person to paint, print, stamp or indent letters, words or figures, on any fence, tree, post, building, wall, sidewalk or bridge in this city, or to post bills on any fence, building, walk, sidewalk or bridge, in this city, without having first obtained the consent of the parties owning or controlling the same.

(b) It shall be unlawful for any person to distribute or cause to be distributed, deposited, placed, thrown, scattered or cast any handbill upon any private property if requested by anyone thereon not to do so, or if there is placed on such premises in a conspicuous place upon or near the main entrance to the premises, a weatherproof card, not less than three (3) inches by four (4) inches in size bearing the words "no solicitation," "no advertisements," "no handbills," or any similar notice indicating in any manner that the occupants of such premises do not desire to have any such handbills left upon their premises. The letters on such cards shall be not less than two-thirds (⅔) of an inch in height.

(c) This section does not apply to any department, branch or agency of federal, state, or municipal government and any religious, political or charitable handbills.
(Code 1950, § 41-1; Code 1959, § 26-3; Ord. No. 2010-12-16-1089, § 1, 12-16-10)

Sec. 21-4. Distributing or scattering handbills in streets.

It shall be unlawful for any person to throw, cast or distribute or cause or permit to be thrown, cast or distributed any handbill, circular, card, booklet, placard or other advertising matter whatsoever in or upon any street or public grounds or other places within the city; provided that nothing in this section contained shall be deemed to prohibit or otherwise regulate the delivery of any such matter by the United States postal service, or prohibit the distribution of copies of newspapers regularly sold by the copy or subscription. This section is not intended to prevent the lawful distribution of anything other than commercial and business advertising matter. Violation of this section shall be punished in accordance with section 1-5.
(Code 1959, § 26-4)

Sec. 21-5. Throwing handbills in parked vehicles.

It shall be unlawful for any person to throw, place or deposit, or cause to be thrown, placed or

deposited, any circular, dodger, handbill or other advertising or printed matter of any character whatsoever, in or on any vehicle parked or standing upon or along any street or other public place within the city, without the express consent and permission of the owner or person in charge of the vehicle.
(Code 1950, § 41-3; Code 1959, § 26-5)

Sec. 21-6. Injuries to property; graffiti.

(a) It shall be unlawful for any person to break or cause to be broken, intentionally, any glass, window, sash, blind, door, gate or fence, or in any manner to mar, deface or injure any house, building or other property on premises within the city, not his own.

(b) It shall be unlawful for any person willfully and maliciously to:

(1) Cut, mar, injure, or remove any tree, shrub, or plant;

(2) Injure, remove, destroy, deface or interfere with any fence, wall, gate or turnstile bounding or enclosing any park, square, schoolhouse or other public building; or

(3) Remove, injure, mar or deface any street sign, traffic signal controller box, signal pole, street or sidewalk attached emblem, marker, raised button divider, street and sidewalk painted logo, or painted sign, lane divider other traffic aid marker, or any public or private building or other property to include public utilities.

(Code 1950, § 41-12; Code 1959, § 26-16; Ord. No. 62604, § 1, 3-27-86; Ord. No. 79326, § 1, 12-16-93; Ord. No. 92830, § 2, 11-2-00; Ord. No. 93735, § 2, 4-5-01; Ord. No. 100553, § 2, 3-10-05; Ord. No. 2007-05-03-0480, § 1, 5-3-07)

Sec. 21-7. Pecans, gathering.

It shall be unlawful for any person to climb pecan trees in any public park or street within the city or to throw sticks, stones or other missiles for the purpose of gathering pecans.
(Code 1950, § 41-11; Code 1959, § 26-21)

Sec. 21-8. Peeping toms.

It shall be unlawful for any person to enter or intrude in or upon any real property of another within the city and invade the privacy of, or disturb, the occupants or residents of such property by looking into or peeping into any dwelling or structure situated thereon.
(Ord. No. 17285, § 1, 2-28-52; Ord. No. 18445, § 1, 10-23-52; Code 1959, § 26-22)

Sec. 21-9. Soil, removal of.

It shall be unlawful for any person to cut sod or sward off, or remove earth or ground from any lot, street or common in the city, without first obtaining the consent of the parties owning or controlling the same.
(Code 1950, § 41-21; Code 1959, § 26-23)

Sec. 21-10. Spitting in public places.

The spitting upon sidewalks, crosswalks, the floors of churches, public halls, theaters, motor buses or other similar public places is hereby declared a nuisance and unlawful; provided, spitting in and upon the streets is not hereby included in the words "other public places."
(Code 1950, § 41-22; Code 1959, § 26-24)

Sec. 21-11. Tower of the Americas; throwing object from observation decks prohibited.

It shall be unlawful for any person to hurl or throw or cause to be hurled or thrown any object of any type or nature from the observation decks of the structure known as the "Tower of the Americas."
(Code 1959, § 26-24.1)

Sec. 21-12. Uniforms, unlawful use.

(a) It shall be unlawful for any person, not a member thereof, to wear any uniform identical with the uniform worn by any uniformed members of the police department or the fire department of the city, or to wear any uniform or part thereof similar to the uniform worn by any member of either of such departments in a manner calculated to deceive or mislead the public as to his identity.

(b) The term "Uniform," as used in this section, shall include the cap, badge, blouse, trousers, leggings, additional official insignia and any other habiliments worn by any uniformed member of either of such departments.
(Code 1950, § 41-25; Code 1959, § 26-25)

Sec. 21-13. Missiles.

It shall be unlawful for any person within the city to throw stones or other missiles, or to shoot with a bow and arrow, or to shoot or discharge any stone or other missile with or from a sling or from an elastic spring.
(Code 1950, § 41-15; Code 1959, § 26-20)

Sec. 21-14. Air gun, paint ball gun or spring gun; furnishing to minor.

(a) It shall be unlawful for any person within the city to sell, or give to, or place in the possession of, any person under the age of sixteen (16) years, any gun which discharges a bullet or missile by means of compressed air, or any gun discharging a bullet or missile by means of a spring.

(b) It shall be unlawful for any person to possess, discharge or bring into a public park any gun, which discharges a bullet, missile or paintball by means of compressed air, gas propellant, or any gun discharging a bullet, missile or paintball by means of a spring. It shall be an affirmative defense to any charge that written permission was provided by the director of parks and recreation for a special event.
(Ord. No. 2008-04-17-0317, § 3, 4-17-08)

Editor's note—Ord. No. 2008-04-17-0317, § 3, adopted April 17, 2008, amended section 21-14 in its entirety to read as herein set out. Formerly, section 21-14 pertained to air gun or spring gun; furnishing to minors, and derived from the Code of 1950, § 41-19, and the Code of 1959, § 26-26.

Cross reference—Regulation of firearms and weapons, § 21-151 et seq.

Sec. 21-15. Toy gun, explosive, etc.; furnishing to minors.

It shall be unlawful for any person within the city to sell to, give to, or place in the possession of, any person under the age of sixteen (16) years any leaded cartridge, or any explosive of any kind, or to sell to, give to or place in the possession of any person under the age of sixteen (16) years, any gun or toy gun, capable of exploding or discharging any explosive cap or cartridge, or any toy cannon, capable of exploding or discharging any explosive cap or cartridge, or any other firearm of any description, capable of exploding or discharging any explosive cap or cartridge of any description.
(Code 1950, 41-20; Code 1959, § 26-27)

Cross reference—Regulation of firearms and weapons, § 21-151 et seq.

Sec. 21-16. Carrying loaded rifle or shotgun.

It shall be unlawful for any person, other than duly authorized peace officers, to carry a loaded rifle or shotgun on any public street within the city or in a motor vehicle while the same is being operated on any public street within the city.
(Code 1959, § 26-28)

Cross reference—Regulation of firearms and weapons, § 21-151 et seq.

Sec. 21-17. Certain knives prohibited generally; exceptions; penalty for violation.

(a) It shall be unlawful for any person to intentionally or knowingly carry on or about his person a knife with a blade less than five and one-half (5½) inches in length, which knife is equipped with a lock mechanism so that upon opening, it becomes a fixed blade knife.

(b) The above prohibition set forth in subsection (a) shall not be applicable to a person carrying such a knife:

(1) In the actual discharge of his duties as a peace officer, a member of the armed forces or national guard, or a guard employed by a penal institution;

(2) On his own premises or premises under his control;

(3) Traveling;

(4) Engaged in lawful hunting, fishing or other lawful sporting activity; or

(5) Using such a knife in connection with a lawful occupation, during such utilization.

(Code 1959, § 26-28.1)

Cross references—Regulation of firearms and weapons, § 21-151 et seq.; possession of a knife, § 21-155.

Sec. 21-18. Tampering with CATV system prohibited.

(a) It shall be unlawful for any person to make any unauthorized connection whether physical, electrical, acoustical, inductive or otherwise, with any part of a city-franchised cable television system for the purpose of enabling himself or others to receive any television signals, radio signals, pictures, programs, sounds or any other information transmitted over the cable television system, without payment to the franchisee or its lessees.

(b) It shall be unlawful for any person, without the consent of a franchised cable television company, to willfully tamper with, remove or injure any cable, wires, or other equipment used for the distribution of television signals, radio signals, pictures, programs, sounds or any other information transmitted over the cable system.

(Ord. No. 50508, §§ 1, 2, 3-8-79; Code 1959, § 26-30)

Cross reference—Regulations governing basic service rates for cable television systems, § 16-4.

Sec. 21-19. Washing windshields of motor vehicles upon public streets prohibited; exception.

(a) It shall be unlawful for any person to knowingly wash or attempt to wash the windshield of any motor vehicle in and upon a public street, with or without the permission of the motor vehicle owner. This section shall not extend to washing of windshields by the owner of a motor vehicle or the owner's agent, when the vehicle is legally parked on a city street.

(b) For the purposes of this section the term "public street" shall mean the paved portion of right-of-way intended for vehicular traffic.

(Code 1959, § 26-32; Ord. No. 52865, § 1, 10-2-80)

Sec. 21-20. Parachuting from Tower of the Americas.

(a) It shall be unlawful for any person to parachute, or attempt to parachute from the observation levels or any other level of the structure known as the "Tower of the Americas."

(b) It shall be unlawful for any person to carry parachute equipment to the observation levels or any other level of the structure known as the "Tower of the Americas."

(c) Any person violating this section shall be guilty of a misdemeanor, and upon conviction shall be fined an amount not to exceed two hundred dollars ($200.00).

(Ord. No. 61868, §§ 1—3, 11-25-85)

Editor's note—Ord. No. 61868, §§ 1—3, adopted Nov. 25, 1985, did not specifically amend the Code; hence, inclusion herein as § 21-20 was at the discretion of the editor.

Sec. 21-21. Hazardous items prohibited at Fiesta events.

During Fiesta San Antonio, the annual Fiesta event sponsored by the San Antonio Fiesta Commission, it shall be unlawful for any person to sell or use a pressurized container of the substance commonly known as "liquid string," "silly string," or "super string" or any quantity of the small explosive devices commonly known as "snappers," "throwdowns," and "pop pops," which are paper-wrapped wads of sand coated with a minute quantity of explosive powder and adhesive, producing a small report upon impact with hard surfaces, in any public place or private property where the general public is invited for Fiesta related events.

(Ord. No. 64758, § 1, 3-19-87)

Sec. 21-22. Public nudity.

(a) It shall be unlawful for an individual to intentionally or knowingly appear in a state of nudity in a public place.

(b) It shall be unlawful for an individual to intentionally or knowingly appear in a state of semi-nudity in a public place unless within a permitted sexually oriented business and valid sexually oriented business employee permit.

(c) Nude or nudity or state of nudity shall mean the following:

(1) The appearance of the bare buttock; anus; male genitals; female genitals; or female breast;

(2) A state of dress which fails to completely or opaquely cover the buttock; anus; male genitals; female genitals; or female breast.

(d) Semi-nude or semi-nudity or state of semi-nudity shall mean a state of dress that which fails to completely and opaquely cover:

(1) Human genitals, pubic region or pubic hair; or

(2) Crevice of buttocks or anus;

(3) Any portion of the female breast that is situated below a point immediately above the top of the areola; or

(4) Any combination of the foregoing.

(e) Public place shall mean any public street, sidewalk, alley, or other public thoroughfare, in or such close proximity thereto, as to be observed the public traveling on such street, sidewalk, or other thoroughfare, and/or all locations owned by or open to the general public inclusive of the sheds, enclosures, buildings, improvements, and fixtures upon the location.

(Ord. No. 2012-12-06-0933, §§ 3, 5, 12-6-12)

Editor's note—Ord. No. 2012-12-06-0933, §§ 3, 5, adopted December 6, 2012, repealed and reenacted section 21-22 in its entirety to read as herein set out. Formerly, section 21-22 pertained to adult arcades, and derived from Ord. No. 67481, § 1, adopted July 7, 1988; Ord. No. 68791, §§ 1—11, adopted February 9, 1989; Ord. No. 98203, § 1, adopted September 25, 2003; Ord. No. 100191, § 1, adopted December 16, 2004. For current provisions pertaining to adult arcades, the user's attention is directed to article IX, division 4 of this chapter.

Sec. 21-23. Use of city facilities prohibited for public consumer gun shows; exemption for sport, outdoor trade and antique shows.

(a) City-owned facilities shall not be used for the purpose of staging public consumer gun shows. The city manager and city staff are directed to cease booking events that are open to the public and are primarily devoted to the display and sale of weapons, ammunition, and firearm or military paraphernalia.

(b) This section does not apply to sport, outdoor trade, or antique shows, which may, incidentally, include the display of, but do not include the over-the-counter sale of, weapons or ammunition.

(Ord. No. 79998, §§ 1, 2, 4-14-94)

Editor's note—Ord. No. 79998, adopted April 14, 1994, has been codified herein at the discretion of the editor as § 21-23.

Sec. 21-24. Policies regarding performances at city-owned facilities.

(a) City staff is directed to monitor the need for crown control measures, specifically pertaining to seating arrangements and lighting levels, to enhance enforcement of state and local criminal laws at performances held at the Convention Center Arena and Municipal Auditorium.

(b) Staff is directed to review the level of police security at each performance held at the Convention Center Arena and Municipal Auditorium and document those instances where security levels need to be increased in relation to the type of event, the identity of the performer and the size of the crowd.

(c) The city council reaffirms its policy that criminal laws should be enforced to the fullest extent possible and directs staff to take every reasonable step to detect and confiscate illegal substances at performances held in city-owned facilities and arrest those persons who violate criminal laws.

(d) Staff is directed to monitor the type of container or package in which illegal substances are confiscated and the types of events where contraband is confiscated in order to determine whether an ordinance prohibiting containers or packages at the Convention Center and Municipal Auditorium during certain performances is necessary.

(Res. No. 85-54-73, 9-19-85)

Editor's note—Resolution No. 85-54-73, adopted September 19, 1985, did not specifically amend the Code, therefore such ordinance was treated as adding a new § 21-24 at the discretion of the editor.

Sec. 21-25. Prostitution, loitering for prostitution prohibited.

(a) *Definitions.* For the purpose of this section, the words or phrases set out in this subsection (a) mean the following:

Known prostitute or panderer means a person who, within two (2) years previous to the date of arrest for violations of this section, has within the knowledge of the arresting officer been convicted of violating any law or ordinance prohibiting

soliciting, committing, or offering to commit prostitution, promotion of prostitution, or aggravated promotion of prostitution.

Loiter means to delay or linger without a lawful purpose for being on a public street or place, for the purpose of committing a crime such as opportunity may be discovered.

(b) *Prostitution.* It is unlawful for any person to:

(1) Commit or offer to commit "prostitution," "promotion of prostitution" or "aggravated promotion of prostitution," as those acts are defined in Texas Penal Law;

(2) Knowingly transport a person into, or within, the city to promote that person's engaging in prostitution, or procuring or paying for transportation with that purpose;

(3) Knowingly receive, offer or agree to receive another into any place, building or vehicle for the purpose of any person committing prostitution;

(4) Knowingly permit another to remain there for such purpose, or to knowingly in any way aid, abet or participate in prostitution; or

(5) Secure or offer to secure a person for the purpose of committing prostitution, promotion of prostitution or aggravated promotion of prostitution.

(c) *Loitering for prostitution.*

(1) It is unlawful for any person to loiter in or near any street or place open to the public in a manner and under circumstances manifesting the purpose of inducing, enticing, soliciting or procuring another to commit prostitution.

(2) Among the circumstances, but not the only circumstances, which may be considered in determining whether such purpose is manifested are the following: that such person is a known prostitute or panderer, and repeatedly beckons to, or stops or attempts to stop, or engages any person passing by in conversation indicative of soliciting for prostitution, or repeatedly stops or attempts to stop a motor vehicle operator by hailing, waiving of arms or any other bodily gesture.

(3) No arrest shall be made for a violation of this section unless the arresting officer first affords such person an opportunity to explain such conduct, and no person shall

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be convicted of violating this section if it appears that the explanation given was true, and additionally did disclose a lawful purpose.

(4) Peace officers enforcing this section shall have the same amount of discretion as allowed under the Texas Penal Code.

(d) *Penalties.* All violations of this section shall be punished as a Class C misdemeanor.
(Ord. No. 88321, §§ 1—4, 8-20-98)

Sec. 21-26. Sitting or lying down in the right-of-way.

(a) This section applies in the central business district of the city which is defined as the area within the boundaries set out beginning at South San Marcos Street at its intersection with West Commerce Street, south to its intersection with Matamoros Street, east to its intersection with the Union Pacific Railway, south to South Alamo Street, north to its intersection with East Durango Boulevard, east to South Cherry Street, north to its intersection with East Commerce Street, east to its intersection with North Mesquite Street, north to its intersection with Burleson Street, west to its intersection with Austin Street, north to its intersection with Casa Blanca Street, west to Newell Avenue, southwest to East Elmira Street, west to the intersection of West Elmira and the westbound service road of Interstate Highway 10, underneath Interstate Highway 10, then westbound from the intersection of the Interstate Highway 10 eastbound service road and Perez Street to its intersection with North Frio Street, south to its intersection with West Martin Street, west to its intersection with North San Marcos Street, south to its intersection with West Commerce Street.

(b) A person commits an offense if, after having been notified by a law enforcement officer that the conduct violates this section, the person continues to sit or lie down in the right-of-way between the roadway and the abutting property line or structure, or on an object placed in that area, in a manner that would:

(1) Hinder the unobstructed passage of a person;

(2) Require a person to take evasive action to avoid physical contact;

(3) Block the passage of a person entering or leaving a building; or

(4) Require a person entering or leaving a building to take evasive action to avoid physical contact.

(c) This section does not apply to a person who:

(1) Sits or lies down because of a medical emergency;

(2) As the result of a disability, uses a wheelchair or similar device to move about;

(3) Operates or patronizes a commercial establishment that conducts business on the sidewalk in compliance with the ordinances of the city;

(4) Participates in or views a parade, festival, performance, rally, demonstration, or similar event;

(5) Sits on a chair or bench that is supplied by a public agency or by the abutting private property owner; or

(6) Sits within a bus stop zone while waiting for public or private transportation.

(d) A culpable mental state is not required, and need not be proven, for an offense under this section.

(e) Any person who engages in any activity specified in subsection (b) may be subject to prosecution for a class C misdemeanor and a fine not to exceed five hundred dollars ($500.00).
(Ord. No. 100378, §§ 1, 2, 2-3-05; Ord. No. 2010-04-15-0326, §§ 1, 2, 4-15-10)

Sec. 21-27. Urinating and/or defecating in public.

(a) A person commits an offense if he or she urinates and/or defecates:

(1) In or on a public street, alley, sidewalk, yard, park, building, structure, plaza, or utility right-of-way, or other public place; or

(2) In public view.

(b) It is an affirmative defense to prosecution under this section if the person was in a restroom.

Any person who engages in any activity specified in subsections (a)(1) or (a)(2) may be subject to prosecution for a class C misdemeanor and a fine not to exceed five hundred dollars ($500.00). (Ord. No. 100381, §§ 1, 2, 2-3-05)

Sec. 21-28. Camping in public.

(a) Except in designated areas, it shall be unlawful for any person to camp in any public place.

(b) In this section, the term public place means an outdoor area to which the public has access and includes, but is not limited to, streets, highways, parks, parking lots, alleyways, pedestrian ways, and the common areas of schools, hospitals, apartment houses, office buildings, transport facilities, and shops.

(c) In this section, the term "camp" means to use a public place for living accommodation purposes such as, but not limited to any of the following:

(1) Storing personal belongings;

(2) Making a camp fire;

(3) Using any tents shelter or other structure, furniture, refuse or vehicle for living accommodation;

(4) Carrying on cooking activities; or

(5) Doing any digging or earth breaking.

(d) The activities listed in subsection (c) shall constitute camping when it reasonably appears, in light of all the circumstances, that the participants, in conducting these activities, are in fact using the area for living accommodation purposes regardless of the intent of the participants or the nature of any other activities in which they may also be engaging.

(e) It shall be an affirmative defense to prosecution that a person is the person who owns the property or has secured the permission of the property owner to camp in a public area.

(f) This section does not apply to camping or cooking in a city park in compliance with park regulations.

Any person who engages in any activity specified in subsections 28(a)-(d) above, may be subject to prosecution for a class C misdemeanor and a fine not to exceed five hundred dollars ($500.00). (Ord. No. 100379, §§ 1, 2, 2-3-05)

Sec. 21-29. Aggressive solicitation.

(a) In this section, the following definitions apply:

Aggressive manner means:

(1) Making any physical contact with or touching another person in the course of the solicitation without the person's consent;

(2) Following the person being solicited, if that conduct is:

a. Likely to cause a reasonable person to fear imminent bodily harm or the commission of a criminal act upon property in the person's possession; or

b. Reasonably likely to intimidate the person being solicited into responding affirmatively to the solicitation;

(3) Continuing to solicit a person after the person has made a negative response;

(4) Blocking the safe or free passage of the person being solicited or requiring the person, or the driver of a vehicle, to take evasive action to avoid physical contact with the person making the solicitation;

(5) Using obscene or abusive language or gestures toward the person being solicited; or

(6) Approaching the person being solicited in a manner that:

a. Is likely to cause a reasonable person to fear imminent bodily harm or the commission of a criminal act upon property in the person's possession; or

b. Is reasonably likely to intimidate the person being solicited into responding affirmatively to the solicitation.

Automated teller machine means a device, linked to a bank's account records, which is able to carry out banking transactions.

Automated teller facility means the area comprised of one or more automatic teller machines, and any adjacent space that is made available to banking customers.

Bank includes a bank, savings bank, savings and loan association, credit union, trust company, or similar financial institution.

Charitable contribution meter means a rededicated parking meter sanctioned by the city to allow charitable donations to be made by the public to support services for the homeless or some other charitable purpose.

Check cashing business means an entity in the business of cashing checks, drafts, or money orders for consideration.

Parking meter or *pay station* means a location on a street, parking lot or parking garage where persons pay for parking by either cash or credit to a person or at a machine or other device designed to accept payment.

Public area means an area to which the public has access and includes, but is not limited to, a sidewalk, street, highway, park, parking lot, alleyway, pedestrian way, or the common area of a school, hospital, apartment house, office building, transport facility, or shop.

Solicit means to request, by the spoken, written, or printed word, or by other means of communication an immediate donation or transfer of money or another thing of value from another person, regardless of the solicitor's purpose or intended use of the money or other thing of value, and regardless of whether consideration is offered.

(b) A person commits an offense if the person solicits:

(1) In an aggressive manner in a public area; or

(2) Within fifty (50) feet of the following areas where the public is considered vulnerable or where solicitation would interfere with the flow of traffic:

a. An automated teller machine;

b. An automated teller facility;

c. The entrance or exit of a bank;

d. The entrance or exit of a check cashing business;

e. A charitable contribution meter;

f. A parking meter or parking pay station on a street;

g. A public parking garage or parking lot pay station;

h. The entrance or exit of a restaurant or the service area of an outdoor eating establishment;

i. In a bus, at a bus station or stop, or at a facility operated by a transportation authority for passengers; or

j. A marked crosswalk.

(c) A culpable mental state is not required, and need not be proved, for an offense under this section.

(d) Any person who engages in any activity specified in subsection (b), maybe subject to prosecution for a Class C misdemeanor and a fine not to exceed five hundred dollars ($500.00).
(Ord. No. 100380, §§ 1, 2, 2-3-05; Ord. No. 2011-11-17-0958, § 1, 11-17-11)

Sec. 21-30. Reserved.

ARTICLE II. DANGEROUS SUBSTANCES

Sec. 21-31. Legislative findings; prohibited substances.

Because the following chemical compounds are either toxic by inhalation, ingestion or both; have a potential for abuse by persons in that inhalation can cause a condition of intoxication, inebriation, excitement, stupefaction, or exhilaration; cause a dulling of the brain or nervous system; cause damage, mental or physical; or have any combi-

nation of these properties or effects; and because certain persons in the community, particularly young people, are prone to abuse such substances; and because "glue sniffing" and "paint sniffing" have been documented as having caused irreversible mental and physical damage, and even death among minors in the city and are a particular problem among certain minorities, the following twenty-one (21) chemical compounds are hereby defined as and declared to be "dangerous substances":

(1) Acetone
(2) Amyl acetate
(3) Benzene
(4) Butyl acetate
(5) Butyl alcohol
(6) Carbon tetrachloride
(7) Chloroform
(8) Cyclohexanone
(9) Ethyl alcohol
(10) Ethyl acetate
(11) Hexane
(12) Isopropyl alcohol (rubbing alcohol)
(13) Isopropyl acetate
(14) Methyl "cellosolve" (ethylene glycol monomethyl ether acetate)
(15) Methyl ethyl ketone (2-butanone; MEK)
(16) Methyl isobutyl ketone (MIBK)
(17) Orthochlorobenzalmalononitrile (CS)
(18) Toluene (toluol)
(19) Trichloroethylene
(20) Tricresyl phosphate (TOCP, TMCP, or TPCP)
(21) Xylene (xylol)

(Code 1959, §§ 26-11.1, 26-14.1; Ord. No. 56606, §§ a—k, 2-24-83)

Sec. 21-32. Sale of substances to minors prohibited.

It shall be unlawful for any person to sell, offer to sell, transfer, or offer to transfer to any other person under the age of eighteen (18) years any can or other container of paint spray, glue, airplane plastic cement, household cement, cement, shellac, paint thinner, lacquer, adhesive substance, or aerosol mixture of pigment and liquid that forms a thin coating which contains a dangerous substance as defined in this article. It shall be unlawful for the owner or person in control of a retail establishment to allow any agent or employee of the retail establishment to make such a sale or transfer or attempt to make such a sale or transfer.

(Code 1959, § 26-14.1; Ord. No. 56606, §§ a—k, 2-24-83)

Sec. 21-33. Signs to be posted where offered for sale.

All vendors of the products enumerated in Section 21-32 shall post in a prominent place, during opening hours, a sign to be furnished by the city, stating that it is illegal to sell the products to persons under eighteen (18) years of age. It shall be an affirmative defense to an action alleging violation of this section if the city has failed to furnish such a sign to the retail establishment.

(Code 1959, § 26-14.1; Ord. No. 56606, §§ a—k, 2-24-83)

Sec. 21-34. Exemption for model airplane, etc., kits.

Notwithstanding any of the provisions of this article, the provisions hereof shall not apply to, control, or in any way affect the sale, display, storage or transfer of glue or cement which is a part of a kit used for the construction of model airplanes, model boats, model automobiles, model trains, or similar models, and which is sold simultaneously with the rest of the kit and packaged, stored, and displayed as a unit.

(Code 1959, § 26-14.1; Ord. No. 56606, §§ a—k, 2-24-83)

Sec. 21-35. Inhaling prohibited.

It shall be unlawful for any person to inhale any paint spray, glue, airplane glue, plastic cement, household cement, cement, shellac, paint thinner, lacquer, adhesive substance, or aerosol

mixture of pigment and liquid that forms a thin coating which contains a dangerous substance above, or the fumes or vapors thereof, with the intent of obtaining intoxicating or narcotic effect, a state of inebriation, excitement, stupefaction, exhilaration, or a dulling of the brain or nervous system.
(Code 1959, § 26-14.1; Ord. No. 56606, §§ a—k, 2-24-83)

Sec. 21-36. Prima facie evidence of existence in containers.

If a can or other container contains a list of ingredients or contents, and one (1) or more of the dangerous substances enumerated in section 21-31 is listed as an ingredient or content, that shall constitute prima facie evidence that the can or container does in fact contain such a dangerous substance or dangerous substances.
(Code 1959, § 26-14.1; Ord. No. 56606, §§ a—k, 2-24-83)

Sec. 21-37. Certain substances to be kept in closed storage.

(a) When offered for sale in a retail establishment, adhesive substances and aerosol mixtures of pigment and liquid that form a thin coating which contain either methyl isobutyl ketone (MIBK), toluene or toluol, trichloroethylene, or xylene or xylol shall not be openly stored or displayed or otherwise offered for sale from a counter or other location that is accessible to the public. When in storage such products shall be stored in a closed building that is not accessible to the public, but if the same are stored in an outside area, the containers shall be locked or otherwise secured and the area must be enclosed by a fence at least eight (8) feet in height.

(b) Should the owner, manager, or person in control of any retail establishment or other premises, store or display any adhesive substance or aerosol mixture of pigment and liquid that forms a thin coating in any manner other than that

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prescribed in subsection (a), such shall constitute a violation hereof, and upon conviction, such violation shall be punished in accordance with section 1-5.
(Code 1959, § 26-14.1; Ord. No. 56606, §§ a—k, 2-24-83)

Secs. 21-38—21-50. Reserved.

ARTICLE III. NOISE*

DIVISION 1. GENERALLY

Sec. 21-51. Definitions and standards.

[As used in this division the following words and terms shall have the meanings respectively ascribed:]

A-weighted sound level shall mean the sound pressure level in decibels as measured on a sound level meter using the A-weighting network. The level so read is designated dB(A) or dBA.

Daytime/evening shall mean the hours between six o'clock a.m. and ten o'clock p.m., Sunday through Thursday and six o'clock a.m. and eleven o'clock p.m. Friday and Saturday.

Director shall mean director of housing and neighborhood services department.

Impulsive sound shall mean sound of short duration, usually less than one second, with an abrupt onset and rapid decay. Examples of sources of impulsive sound include explosions, drop forge impacts, and the discharge of firearms.

Legal holidays shall mean New Year's Day (January 1), Memorial Day (observed date), Fourth of July (July 4), Labor Day (observed date), Thanksgiving Day (observed date), and Christmas Day (December 25).

Leq shall mean an average measure of continuous noise that has the equivalent acoustic energy of the fluctuating signal over the same time period. The time period of monitoring will be continuous over any two (2) hours and will use the A-weighting network reported in decibel units.

Nighttime shall mean the hours between ten o'clock (10:00) p.m. and six o'clock (6:00) a.m., Sunday through Thursday and eleven o'clock (11:00) p.m. and six o'clock (6:00) a.m. Friday and Saturday.

Noise nuisance shall mean any loud, irritating, vexing or disturbing sound originating from a nearby property under separate ownership which causes injury, discomfort, or distress of a person of reasonable nervous sensibilities, or any sound that exceeds the maximum permitted sound levels specified in subsections 21-52(a)(6)b., (9)—(12), and (21)—(60)b.

Sound level shall mean the weighted sound pressure level obtained by the use of a sound level meter and frequency weighting network such as A, B or C as specified in American National Standards Institute specifications for sound level meters (ANSI S1.4-1971). If the frequency weighting employed is not indicated, the A-weighting shall apply.

Sound level meter shall mean an instrument which includes a microphone, amplifier, RMS detector, integrator or time averages, output meter, and weighting network used to measure sound pressure levels.
(Ord. No. 94706, § 2(Attach. A), 9-13-01; Ord. No. 2007-04-05-0371, § 1, 4-5-07; Ord. No. 2022-02-17-0112, § 1, 2-17-22)

Sec. 21-52. Noise nuisance enumeration.

(a) The following acts, among others not hereinafter enumerated, are declared to be "noise nuisances," and are unlawful and in violation of the provisions of this division when such acts are done or accomplished or carried on in such a manner, or with such volume, intensity, or with

*__Editor's note—__Ord. No. 94706, § 1(Attach. A), adopted September 13, 2001, repealed and reenacted art. III to read as herein set out. Formerly, art. III pertained to similar subject matter and derived from the Code of 1950, Ch. 40; Ord. No. 18222, adopted August 28, 1952; the Code of 1959, § 25-3; Ord. No. 62550, adopted March 20, 1986; Ord. No. 70842, §§ 3, 4, adopted December 21, 1989; Ord. No. 75012, adopted January 9, 1992; Ord. No. 83939, § 1(a)—(c), adopted April 11, 1996.

State law reference—Prevention of noises by automobiles, Vernon's Ann. Civ. St. art. 6701d, §§ 133, 134.

continued duration, so as to annoy, to distress, or to disturb the quiet, comfort, or repose of a person of reasonable nervous sensibilities, within the vicinity or hearing thereof, or so as to endanger or injure the safety or health of humans or animals, or so as to interfere with the physical well being of humans or animals, or so as to endanger or injure personal or real property:

(1) The playing or permitting or causing the playing of any radio, television, phonograph, drum, juke box, nickelodeon, musical instrument, sound amplifier or similar device which produces, reproduces, or amplifies sound.

(2) Any loud or vociferous language or any soliciting for, or description of, any amusement house, moving picture theater, or other like place of amusement, or for the performance therein, in the entrance thereto, the foyer or lobby thereof, or on the sidewalks adjoining the same.

(3) The keeping of any animal, fowl, or bird, which makes frequent or long, continued noise.

(4) The continued or frequent sounding of any horn or other signal device on any automobile or vehicle, motorcycle, bus or other vehicle, except as a danger signal.

(5) The discharge into the open air of the exhaust of any steam engine, stationary internal combustion engine, automobile, motorcycle, or other motor vehicle or boat, except through a muffler or other device which prevents loud or explosive noises therefrom.

(6) The erection, including construction, excavation, demolition, alteration, or repair work, or the permitting or causing thereof, of any building or other structure, or the operation or the permitting or causing the operation of any tools or equipment used in construction, excavation, drilling, demolition, alteration or repair work:

a. Other than during the hours between seven o'clock (7:00) a.m. and eight o'clock (8:00) p.m. on Monday through Friday and eight o'clock (8:00) a.m. and eight o'clock (8:00) p.m. on Saturday and nine o'clock (9:00) a.m. and five o'clock (5:00) p.m. on Sunday, except on legal holidays as defined in section 21-51; or

b. Other than when a waiver, as defined below, is issued by the building official or designee; or

c. At any time such that the sound level at or across a real property boundary exceeds eighty (80) dBA; or

d. This section shall not apply in cases of urgent necessity in the interest of public safety, or in cases of public convenience, including city sponsored or co-sponsored fiestas, parades, and public events; or

e. Concrete pours when the notification process, when required, has been performed; or

f. Limited heavy machinery and construction equipment repairs thirty (30) minutes before the listed construction hours or after the listed construction hours, but no later than ten o'clock (10:00) p.m.

Waiver. A waiver to perform erection, including construction, excavation, demolition, alteration, or repair work, or the permitting or causing thereof, of any building or other structure, or the operation or the permitting or causing the operation of any tools or equipment used in construction, excavation, drilling, demolition, alteration or repair work during hours not approved per section 21-52(a)(6)a. can be requested and issued by the building official or designee. The request for waiver must be submitted one (1) business day prior to the start of off-hour construction and must detail the reason for the request and dates and times of the off-hour construction. The waiver will be issued for a maximum of one-week intervals. If the erection is

completed on a parcel located within three hundred (300) feet of an occupied residential structure the notification process must be completed prior to the commencement of work. Waivers may be issued due to special conditions such as weather related conditions; and/or where literal enforcement of the ordinance would result in unnecessary hardship.

Notification process. Any occupied residential structure within three hundred (300) feet of the parcel containing the approved construction must receive written notice, via flyer and/or door hanger, of the dates and times of the proposed construction, with a point of contact's name and number. This notification is to be delivered a minimum of seventy-two (72) hours before the scheduled work starts. For occupied residential structures that are located within gated communities and/or apartment complexes, notification to the home owners association, neighborhood association, or management company will be considered notification to all occupied residential structures within the organization. The dates and times of the proposed off-hour construction, with a point of contact's name and number, must be posted at the job site, as approved by the building official or designee.

Exception. Newly constructed residential subdivision, with an operational sales office within the subdivision and not more than ninety-five (95) percent of new homes in the subdivision have been sold. This does not apply to adjacent areas of the subdivision that are within three hundred (300) feet of an occupied residential structure that is not part of the newly constructed residential subdivision.

(7) The crying, calling, or shouting, in person or by a mechanical device, or the use of any whistle, rattle, bell, gong, clapper, hammer, drum, horn, loudspeaker or phonograph with or without an amplifier, hand organ, or other devices or instruments, musical or otherwise.

(8) The raucous shouting, whistling, yelling, singing, hooting, or crying of peddlers, hawkers, vendors or any other persons.

(9) The making of noise which exceeds sixty-three (63) decibels on residential zoned property as defined by chapter 35 (Unified Development Code), when measured from property under separate ownership.

(10) The making of noise which exceeds seventy (70) decibels on business zoned property as defined by chapter 35 (Unified Development Code), when measured from property under separate ownership.

(11) The making of noise which exceeds seventy-two (72) decibels on industrial zoned property as defined by chapter 35 (Unified Development Code), when measured from property under separate ownership.

(12) The making of noise which exceeds eighty-five (85) decibels using the Leq method of noise measure for noise emanating from entertainment zoned property as defined by chapter 35 (Unified Development Code), when measured from property under separate ownership. Any adjacent property owned, leased, controlled or managed by any person or entity or any affiliate that directly or indirectly controls, is controlled by, or shares common control with the other entity that has an ownership interest or lease interest in the monitored property shall not be considered property under separate ownership for purposes of determining the boundaries of the noise source property in an entertainment district.

(b) Special noise corrections. Corrections shall be made to the basic octave band levels specified in subsections 21-52(a)(10) through (12) and section 21-60(b) for the specific conditions listed in accordance with the following table, designated as Table 1, except that nighttime corrections shall not apply in the River Walk area.

(c) River Walk Area corrections. Subsections (a)(10) through (12) above shall not apply in the River Walk Area, which shall be, regulated by the noise provisions in section 21-60.

TABLE 1

Corrections Permitted to Basic Octave Band Levels

Noise is Present at Nighttime . .	Subtract	7 dB
Noise Contains Strong Pure-Tone Components or is Impulsive (Meter reading changes at a rate greater than 10 dB per second)	Subtract	7 dB

Noise Has an "On Time" of No More Than:	*And an "Off Time" Between Successive "On Times" of at Least:*	
0.5 minutes	1 hour	
5.0 minutes	1 hour	Add 10 Decibels
10.0 minutes	2 hour	to Permitted
20.0 minutes	4 hour	Levels

(Ord. No. 94706, § 2(Attach. A), 9-13-01; Ord. No. 2022-02-17-0112, § 1, 2-17-22)

Sec. 21-53. Vibration.

It shall be unlawful for any person to create, maintain or cause any ground or airborne vibration which is perceptible without instruments at any point on any affected property adjoining the property in which the vibration source is located.
(Ord. No. 94706, § 2(Attach. A), 9-13-01)

Sec. 21-54. Vehicular mounted sound amplification systems.

It shall be unlawful for any person operating or controlling a motor vehicle in either a public or private place within the city to operate any sound amplifier which is part of, or connected to, any radio, stereo receiver, compact disc player, cassette player, or other similar device in the motor vehicle, in such a manner that, when operated, is audible at a distance of thirty (30) or more feet from the source or, when operated causes a person to be aware of the vibration accompanying the sound in any location outside the confines of the vehicle emitting the sound, noise, or vibration. A culpable mental state is not necessary to constitute a violation of this section.
(Ord. No. 94706, § 2(Attach. A), 9-13-01)

Sec. 21-55. Exceptions.

The provisions of this division shall not apply to:

(1) The emission of sound for the purpose of alerting persons to an emergency; or

(2) Sound produced by emergency vehicles; or

(3) Sound produced by a vehicle motor while the vehicle is moving on a public right-of-way, public waterway, airport runway, or railway; or

(4) Sound produced by any governmental body in the performance of a governmental function; or

(5) Sound generated at a scheduled stadium event; by parade spectators and participants on the parade route during

a permitted parade; by outdoor celebration participants sponsored or co-sponsored by the city for the general welfare of the public; by patrons and participants using cannons and gunfire during historical battle reenactments for which a pyrotechnic permit has been obtained and the explosives have been inspected and approved by the fire marshal; by pyrotechnic displays that are inspected and approved by the city fire marshal.

(6) Sound produced by the operation of any air-conditioning unit, heat pump, or swimming pool machinery which does not produce a sound exceeding sixty-three (63) dBA on residential property or seventy (70) dBA on non-residential property, when measured at a distance of either fifteen (15) feet from the equipment producing the sound, or to the nearest exterior wall of a residential or commercial building under separate ownership, whichever distance is shorter.

(7) Sound produced solely for the purpose of encouraging citizen participation in elections.

(Ord. No. 94706, § 2(Attach. A), 9-13-01)

Sec. 21-56. Method of noise measurement.

Whenever portions of this chapter prohibit noise over a certain decibel limit, measurement of said noise shall be made with a decibel meter meeting the standards prescribed by the American National Standards Institute. The instruments shall be maintained in calibration and good working order. Calibration corrections shall be employed in meeting the response specifications prior to every sampling of noise. Measurements recorded shall be taken so as to provide a proper representation of the noise being measured. The microphone shall be positioned so as not to create any unnatural enhancement or diminution of the measured noise. A windscreen for the microphone shall be used. Traffic, aircraft and other transportation noise sources and other background noises shall not be considered in taking measurements except where such background noise interferes with the primary noise being measured. Times when the level of primary noise being measured does not exceed that of the background noise shall be considered as "off times" of the primary noise in determining the corrections from the correction table found in subsection 21-52(b). Except as provided in subsection 21-52(a)(12), measurements may be taken at a point on adjacent public or private property or on either side of an adjacent public right-of-way at or near the boundary line of the property where the noise is generated.

(Ord. No. 94706, § 2(Attach. A), 9-13-01)

Sec. 21-57. Enforcement.

(a) *Administrative stop order.*

(1) The director, his/her designee, or duly authorized noise abatement officers may issue an order to any person having possession or control over noise generating property to immediately halt any sound which exposes any person, except those excluded in subsection (2) below, to continuous or impulsive noise levels in excess of those shown in Table 1. Within five (5) days following issuance of such an order, the director or his/her duly authorized representative may apply to the appropriate court for an injunction to replace the administrative stop order.

(2) No stop order shall be issued if the only persons exposed to sound levels in excess of those listed in Table 1 are exposed as a result of:

a. Trespass; or

b. Invitation upon private property by the person causing or permitting the sound.

(b) *Seizure of noise producing property.* The director or his/her duly authorized agents are hereby authorized to apply to any magistrate for an administrative search warrant for the purpose of entering private property to investigate and identify noise nuisance producing devices, machines, instruments, or objects. Such identified property may be seized to summarily abate the noise nuisance if:

(1) A person who is cited for the subject noise violation has been convicted of a

violation of any provision of this article within the preceding twelve (12) months, or has been declared to be an "habitual noise nuisance violator" within the preceding twenty-four (24) months; or

(2) The location of the noise nuisance has been declared an habitual noise nuisance source by the director, after appropriate notice to the real property owner or person in possession of the subject noise-source real property, of an administrative hearing to be held for the purpose of hearing evidence and determining whether the subject location is in fact an "habitual noise nuisance source." Upon finding a location to be an "habitual noise nuisance source," the noise producing property shall be immediately seized at the time of any subsequent violations whether or not there is a previous noise nuisance conviction associated with the location.

Such seizures shall be for the purpose of assuring continued cessation of the noise nuisance after the departure of the noise abatement peace officers by securing the instrumentality of the noise nuisance temporarily. The noise producing device, machine, instrument, or object shall be returned to the owner or person proving the right of possession, or to his/her authorized agent, not sooner than twenty-four (24) hours after seizure. Any disputed ownership or right of possession shall be resolved at a property disposition hearing before a magistrate of the city. Seizure of noise nuisance producing property shall be accomplished in addition to and not in lieu of municipal court prosecution and/or a civil suit for injunctive relief and civil penalties.

(c) *Impoundment of noise nuisance animals.* Upon the determination by the director that any animal(s) at an identified address or location within the city has produced noise on two (2) occasions of a nature and intensity that violates the standards established by this division and/or section 5-201, animal nuisances, he/she may notify the resident or occupant that the animal(s) are producing a noise nuisance, and that an administrative hearing shall be held for the purpose of determining if the animal(s) constitute a continuing noise nuisance which must be summarily abated by seizure and impoundment until the owner or person from whom the animal was seized provides written consent of another person to provide shelter and care for the animal(s) in a fenced property not less than two hundred (200) feet from any neighboring residential structure or until the tenth day of impoundment. Said animals shall be destroyed if not reclaimed on or before the ten (10) days of impoundment.

(d) *Declaration of habitual noise nuisance producer.* After producing noise measured at decibels in excess of the maximum allow by this article on three (3) separate days within a 12-month period, the noise producer shall be given notice of an administrative hearing before a municipal court magistrate for the purpose of introducing evidence so that the magistrate can make a determination of whether or not the cited noise producer is an "habitual noise nuisance producer," and if the magistrate so finds, a written declaration of said finding shall be signed by the magistrate and kept on file by the abatement officer for a period of one year.

(e) *Declaration of habitual noise nuisance location.* After the production of noise in excess of that allowed by this article by anyone at the same address or property location on three (3) separate days within a 12-month period, the owner or lessee or person in possession shall be given notice of an administrative hearing before a municipal court magistrate for the purpose of introducing evidence so that the magistrate can make a determination of whether or not the location is an "habitual noise nuisance source," and if the magistrate so finds, a written declaration of said finding shall be signed by the magistrate and shall be kept on file by the abatement officer for a period of one (1) year.

(f) *Seizure.* If the magistrate determines that the noise producer is an "habitual noise nuisance producer" or that the location is an "habitual noise nuisance source," the noise producing instrument, equipment, or other noise producing item used by the habitual noise nuisance producer may be immediately seized at the time of a subsequent decibel measurement in excess of that allowed by this article. At the time of such

seizure, a written notice of the right to an immediate administrative hearing before a municipal court magistrate shall be issued to the habitual noise producer or owner or person in possession of the habitual noise nuisance source. The hearing shall be for the purpose of determining if a noise nuisance actually occurred on which the abatement officer based his seizure, and to voice any complaints about the manner of the seizure. If the noise produced is determined by the magistrate not to constitute a noise nuisance, the subject property shall be immediately delivered to the person from whom it was seized.
(Ord. No. 94706, § 2(Attach. A), 9-13-01; Ord. No. 2007-04-05-0371, § 1, 4-5-07)

Sec. 21-58. Penalties.

(a) It shall be unlawful for a person to do or perform any act prohibited by this article, and it shall be unlawful for a person to fail to do or perform any act required by this article. A violation of this article is a class C misdemeanor offense, no culpable mental state or criminal intent is required, and upon conviction, a person shall be fined an amount not less than one hundred dollars ($100.00) and not more than five hundred dollars ($500.00).

(b) Unless otherwise specifically provided for in this article, if it is found that a person intentionally, knowingly or recklessly violated any provision of this article, then upon conviction a person shall be fined an amount not less than one hundred dollars ($100.00) and not more than two thousand dollars ($2,000.00) except that, in the event a person has once previously been convicted under this article, the person shall be fined an amount not less than two hundred dollars ($200.00) and shall be fined not less than three hundred dollars ($300.00) for a third conviction and for each conviction thereafter.

(c) Nothing in this section shall limit the remedies available to the city in seeking to enforce the provisions of this chapter. Each day's violation thereof shall constitute a separate offense.
(Ord. No. 94706, § 2(Attach. A), 9-13-01; Ord. No. 2008-03-06-0168, § 1, 3-6-08)

Sec. 21-59. Identification of violator.

The persons responsible for violations of this division are identified as follows:

(1) *At private residences.* Any adult resident present at the time of the offense, and any adult guest or adult trespasser with the ability to control the level of noise at the time of the offense when no adult resident is present at the time of the offense.

(2) *At business locations.* Any business owner, operator, manager, employee in charge, and all persons in control or in possession of the noise nuisance generating instrument or property at the time of the offense.

(3) *At any location with an unattended noise nuisance producing machine, device, instrument, child, animal or combination of same.* Any person who leaves unattended any machine, instrument, device, child, animal, or any combination of same, which thereafter commences producing noise in violation of this article.

(Ord. No. 94706, § 2(Attach. A), 9-13-01; Ord. No. 2007-04-05-0371, § 1, 4-5-07)

Sec. 21-60. River Walk standards.

In addition to the foregoing noise regulations, the following acts are declared to be noise nuisances when occurring in the River Walk area and it shall be unlawful for establishments located in the River Walk area, and the owners, managers, or officers thereof:

(1) To place or cause to be placed speakers or amplified music on or near the patio of the establishment or in any other location outside the enclosed building on any side of the premises which can be seen from the San Antonio River;

(2) To create or allow the creation of noise from the establishment which exceeds a decibel level of seventy-two (72) dBA using the A frequency weighting and eighty (80) dBC using the C frequency

weighting. This section is intended to prohibit the stated noise levels under both frequency measurements; and

(3) To, if the establishment has been declared a habitual noise nuisance under section 21-57 of this chapter, and in addition to the remedies provided in section (e) thereof, keep any windows and doors to the establishment open after the hour of 10:00 p.m. except as necessary to provide for entry and exit to and from the establishment for a period of ninety (90) days from the date of declaration.

For purposes of this chapter, the term, "River Walk area" shall have the meaning assigned to it in Chapter 35, Article III of this Code.
(Ord. No. 94706, § 2(Attach. A), 9-13-01)

Sec. 21-61. Appointment of abatement officers.

The city manager, his/her designee, or the director is authorized to appoint state licensed peace officers as "abatement officers" for nuisance abatement duties, and said officers shall report to the director or his/her designee as members of the staff of said department. Each peace officer appointment shall terminate with the termination of the nuisance abatement duty for which the peace officer was hired.
(Ord. No. 94706, § 2(Attach. A), 9-13-01; Ord. No. 2007-04-05-0371, § 1, 4-5-07)

Secs. 21-62—21-65. Reserved.

DIVISION 2. QUIET ZONES

Sec. 21-66. Created.

(a) *Schools and other institutions of learning.* All territory embraced within a distance of two hundred and fifty (250) feet of the real property upon which is situated any public or private school or institution of learning is hereby declared to be "Quiet Zone" during the period of time the schools and institutions of learning are in session.

(b) *Hospitals and sanitariums.* All territory embraced within a distance of two hundred and fifty (250) feet of the real property upon which is situated any hospital, sanitarium or other like institution for the treatment of sick persons, public and private, shall be held to be, and are declared to be "Quiet Zones."
(Ord. No. 94706, § 2(Attach. A), 9-13-01)

Sec. 21-67. Display of signs and placards.

It shall be the duty of the director to place and maintain, or cause to be placed and maintained, on lampposts or other such post or object in some conspicuous place on every street, avenue, and alley in the vicinity of every school or other institution of learning, public and private, and every sanitarium, hospital or other like institution, public and private, signs or placards which shall indicate that the same is a "quiet zone." The signs or placards shall be placed on such streets, avenues and alleys at a distance of not less than two hundred fifty (250) feet in every direction from the real property upon which is situated, any school or other institution of learning, or any hospital, sanitarium or other like institution for the treatment of sick persons. The signs or placards shall read in a manner similar to, but not restricted to the following: "School—Quiet Zone," or "Hospital—Quiet Zone." Where proper and lawful, the signs or placards designating a quiet zone may also designate the lawful speed limit in such school, or other institution of learning, zone or area in a manner similar to, but not restricted to, the following: "School—Quiet Zone—Speed Limit M.P.H."
(Ord. No. 94706, § 2(Attach. A), 9-13-01; Ord. No. 2007-04-05-0371, § 1, 4-5-07)

Sec. 21-68. Creation of "noise nuisance" therein.

The making, causing, or creating, or permitting or allowing to be made, caused, or created, any loud, vexing, irritating or disturbing noise which interferes with the operations or workings of any school, or other institution of learning, public or private, or hospital, sanitarium or other like institution for the treatment of sick persons, public or private, situated within an area designated as a "Quiet Zone" is hereby declared to be a "noise nuisance," unlawful and prohibited.
(Ord. No. 94706, § 2(Attach. A), 9-13-01)

Secs. 21-69—21-79. Reserved.

DIVISION 3. PARTY, GATHERING, EVENT

Sec. 21-80. Definitions.

Officer shall mean a police, peace, or abatement officer.

Party, gathering or *event* shall mean a group of five (5) or more persons who have assembled or are assembling in a manner so as to create a substantial disturbance of the quiet enjoyment of

private or public property. This includes, but is not limited to, excessive noise or traffic, fights, and/or disturbances of the peace.

Person responsible for the party, gathering or event shall mean:

(1) Any adult person in actual or lawful control or possession of the premises;

(2) Any adult person who organized the party, gathering or event; or

(3) The parent or guardian having custody or control of any minor responsible for the party, gathering or event regardless of whether the parent or guardian was present at the time of the party, gathering or event.

Reasonable costs may include:

(1) The salary of the each responding officer, at the salary then in effect for each classification of each individual officer, for the amount of time actually spent at the location in responding to the party, gathering, or event;

(2) The actual cost of any medical treatment to injured officers;

(3) The cost of repairing any damaged city equipment or property; and

(4) A one hundred fifty dollar ($150.00) administrative fee.

(Ord. No. 2007-04-05-0371, § 2, 4-5-07)

Sec. 21-81. Persons responsible for party liable for city costs.

(a) Should an officer respond to a party, gathering or large event and while at the location determines that there is a substantial disturbance of the quiet enjoyment of private or public property, any person responsible for the party, gathering or event shall be liable for the reasonable costs of any second or subsequent response by any police officer to that same incident or for a response to the same location for another party, gathering or event within sixty (60) days.

(b) If two (2) or more persons are responsible for the party, gathering or event such persons shall be jointly and severally liable for the reasonable costs of a second or subsequent response.

(c) The liability imposed by this section may be in addition to any civil or criminal penalties or fines.

(Ord. No. 2007-04-05-0371, § 2, 4-5-07)

Sec. 21-82. Notice of liability.

(a) Upon determining that the party, gathering or event is a substantial disturbance of the quiet enjoyment of private or public property, the responding officer shall notify any person responsible for the party, gathering or event that a second response the same day or subsequent response within sixty (60) days from the date of the current party, gathering or event will result in liability for the reasonable costs of the second or subsequent response.

(b) The city shall notify any person responsible for the party, gathering or event of the reasonable costs within sixty (60) days of each second or subsequent response. The reasonable costs for multiple subsequent responses may be included in one statement. The notice shall be delivered to the address the person responsible provides to the responding officer.

(Ord. No. 2007-04-05-0371, § 2, 4-5-07)

Sec. 21-83. Exceptions and limitations.

(a) The costs of a second or subsequent response shall be waived if any person responsible for the party, gathering or event initiated the request for a police response and assisted the officers in dispersing persons at the party, gathering or event.

(b) The costs assessed for each second or subsequent response shall not exceed one thousand dollars ($1,000.00) per response.

(Ord. No. 2007-04-05-0371, § 2, 4-5-07)

Sec. 21-84. Hearing procedures.

(a) A person liable for the costs of a response may, within ten (10) days of receipt of notice of the costs imposed, request a hearing with an administrative hearing officer duly appointed by the city manager or his/her designee.

(b) Failure of the person liable for the costs to timely request a hearing or failure to appear at a scheduled hearing shall constitute a waiver of the right to a hearing or to challenge the validity or amount of the costs imposed and shall be an admission of liability.

(c) A hearing shall be scheduled as soon as practicable but within thirty (30) days of the receipt of the request for hearing. The hearing officer shall have authority to administer oaths and to issue orders compelling the attendance of witnesses and the production of documents, such orders to be enforced by a municipal court.

(d) The hearing shall be conducted to determine whether there is a sufficient factual and legal basis to impose the costs of the police, peace, or abatement officer response and the reasonableness of the amount. All parties to the hearing shall have the right to present evidence. The record of witness testimony may be preserved for appellant review by the use of an audio tape recording or a videotape recording.

(e) The hearing officer shall issue a written order stating whether or not the person is liable for the costs, and the amount of the reasonable costs. The order shall be filed with the municipal court director.

(f) Costs imposed under this section are due and payable upon the expiration of the period to request a hearing or upon notice of the hearing officer's decision if a hearing is requested. Costs shall accrue interest at a rate of ten (10) percent per annum, or as allowed by law, from the date of assessment until paid in full.

(g) A person found liable for the costs of a second or subsequent response may appeal the decision to the municipal court by filing an appeal petition with the municipal court clerk not later than thirty (30) days after the order is filed. The appeal hearing shall be scheduled to occur within thirty (30) days of the filing of the appeal petition. The appeal hearing before a municipal court judge shall be an administrative proceeding for the purpose of affirming or reversing the order issued by the hearing officer based upon the evidence presented at the hearing. The decision of the municipal court judge shall be final and shall not be appealable.

(h) Neither a notice of intent to appeal nor the filing of an appeal petition shall stay the enforcement and collection of the hearing officer's decision unless the service of the notice of appeal is preceded by the posting of a bond with the municipal court clerk in an amount set by a municipal court judge.
(Ord. No. 2007-04-05-0371, § 2, 4-5-07)

Secs. 21-85—21-90. Reserved.

ARTICLE IV. ATTENDANCE OF CHILDREN AT CERTAIN PERFORMANCES IN CITY FACILITIES*

Sec. 21-91. Definitions.

As used in this article the following words and terms shall have the meanings respectively ascribed:

Aid or assist shall mean intentionally or knowingly concealing, disguising or misrepresenting the age of a child.

Control over city-owned facilities shall mean any person, or employee of such person, authorized by lease to produce, direct, participate in or perform any musical, dramatic or theatrical performance at a city-owned facility. This term shall not include peace officers in performance of their official duties.

Direct shall mean commanding movement of any actor, performer, stage equipment or stage props.

Explicit reference shall mean the use of words which have a readily recognizable meaning describing or depicting conduct proscribed hereby, but shall not include words which are merely suggestive or have meanings which are equally consistent with actions not proscribed hereby.

*__Editor's note—__Ord. No. 61850, adopted Nov. 14, 1985, did not specifically amend the Code; hence, inclusion herein of §§ 1—9 as Art. IV. §§ 21-91—21-99 was at the discretion of the editor.

Intentionally, knowingly, recklessly shall have those meanings as defined in the Texas Penal Code.

Leased area shall mean that area of a city-owned facility identified by lease providing for performance of a musical, dramatic or theatrical production.

Participate shall mean placing or moving equipment or props used in a musical, dramatic or theatrical production.

Perform shall mean acting or performing a musical, dramatic or theatrical production.

Performance shall mean any musical, dramatic or theatrical production performed by any individual or identifiable group whether or not the production includes more than one individual or identifiable group staged in a city-owned facility.

Performance obscene as to a child shall mean a performance which contains a description of or explicit reference to:

(a) Anal copulation;

(b) Bestial sexual relations;

(c) Sadistic, masochistic or violent sexual relationships;

(d) Sexual relations with a child;

(e) Sexual relations with a corpse;

(f) Exhibition of male or female genitals;

(g) Rape or incest; or

(h) A vulgar or indecent reference to sexual intercourse, excretory functions of the body, or male or female genitals;

and which, taken as a whole: (1) Appeals to the prurient interest of a child under the age of fourteen (14) years in sex; and (2) violates generally prevailing standards in the adult community as to the suitability of such performances for observation of a child under the age of fourteen (14) years; and (3) lacks any serious, artistic, literary, political or scientific merit as to a child under the age of fourteen (14) years.

Person shall mean any individual, partnership, corporation or other legal entity of any kind.

Produce shall mean contractual responsibility for advertising, staging or setting up a musical, dramatic or theatrical production.
(Ord. No. 61850, § 1, 11-14-85) Supp. No. 15

Sec. 21-92. Admission of children.

No person having control over a city-owned facility shall intentionally, knowingly, or recklessly allow or permit a child under the age of fourteen (14) years to enter or to remain within a leased area in a city-owned facility within one hour before or at any time during a performance is scheduled, if such person (1) knows, or (2) has knowledge of sufficient facts and circumstances from which a reasonable person would know that the performance is or will be a performance obscene as to a child, unless such child is admitted with a parent or legal guardian.
(Ord. No. 61850, § 2, 11-14-85)

Sec. 21-93. Producing, performing, directing or participating in a performance.

No person shall intentionally, knowingly, or recklessly produce, perform, direct, or participate in a performance within the leased area if such person:

(1) Knows; or

(2) Has knowledge of sufficient facts and circumstances from which a reasonable person would know that:

a. A child under the age of fourteen (14) years of age is present without a parent or legal guardian; and

b. The performance is or will be a performance obscene as to a child.

(Ord. No. 61850, § 3, 11-14-85)

Sec. 21-94. Advertising and notification.

Any person who shall produce or direct a performance, and who (1) knows, or (2) has knowledge of such facts and circumstances from which a reasonable person would know that the performance is or will be a performance obscene as to a

child shall cause and provide by contract or otherwise for inclusion in any advertising for such performance the following notice:

> "This performance may contain material not suitable for children without supervision. Parental discretion is advised. No child under the age of fourteen (14) years of age will be admitted without a parent or legal guardian."

No person shall intentionally, knowingly, or recklessly contract for or obtain any advertising for a performance which is obscene as to a child, without providing for the notice required by the foregoing sentence to be included therein.
(Ord. No. 61850, § 4, 11-14-85)

Sec. 21-95. Aiding or assisting a child in attendance.

No person shall intentionally or knowingly aid or assist a child under the age of fourteen (14) years not accompanied by a parent or legal guardian in gaining admission to, or in remaining present during a performance which the actor (1) knows, or (2) knows such facts and circumstances from which a reasonable person would know that the performance is or will be a performance obscene as to a child.
(Ord. No. 61850, § 5, 11-14-85)

Sec. 21-96. Defenses.

It shall be an affirmative defense to any prosecution under Section 21-92 above if the person having control over a city-owned facility attempts to ascertain the true age of a child seeking entrance to a performance obscene as to a child by requiring production of a birth certificate, school record, including identification showing the child's age or other school record indicating the child to be enrolled in eighth (8th) grade or higher, and not relying solely on oral allegations or apparent age of the child.
(Ord. No. 61850, § 6, 11-14-85)

Sec. 21-97. Penalties.

Each act or failure to act as required herein shall be punishable by a fine of not less than fifty dollars ($50.00) nor more than two hundred dollars ($200.00).
(Ord. No. 61850, § 7, 11-14-85)

Sec. 21-98. Severability.

If, for any reason, any one or more sections, sentences, clauses or parts of this article are held legally invalid, such judgment shall not prejudice, affect, impair or invalidate the remaining sections, sentences, clauses or parts of this article.
(Ord. No. 61850, § 8, 11-14-85)

Sec. 21-99. Applicable effective date.

The requirements of this article shall apply only to leases providing for performances of musical, theatrical or dramatic productions in City-owned facilities executed after the effective date of this article [Ordinance Number 61850].
(Ord. No. 61850, § 9, 11-14-85)

Secs. 21-100—21-120. Reserved.

ARTICLE V. YOUTH CURFEW*

Sec. 21-121. Definitions.

[As used in this article the following words and terms shall have the meanings respectively ascribed:]

(a) *Child* shall mean any person who is ten (10) years of age or older and under seventeen (17) years of age; or, seventeen (17) years of age or older and under eighteen (18) years of age who is alleged or found to have engaged in delinquent conduct or conduct indicating a need for supervision as a result of acts committed before seventeen (17) years of age.

(b) *Parent* shall mean a person who is the natural or adoptive parent of a person. As used herein, "parent" shall also include a court appointed guardian or other person eighteen (18) years of age or older, authorized by the parent, by a court order, or by the court appointed guardian to have the care and custody of a person.

*__Editor's note—__Ord. No. 74025, adopted July 25, 1991, as amended, has been included herein at the discretion of the editor as Art. V, §§ 21-121—21-125.

Ord. No. 2015-04-30-0331, § 2, adopted April 20, 2015, readopted and continued in effect chapter 21, article V, with no changes, effective June 4, 2015.

(c) *Guardian* shall mean any person to whom custody of a child has been given by a court order.

(d) *Emergency* shall include but not be limited to fire, natural disaster, an automobile accident, or obtaining immediate medical care for another person.

(e) *Public place* shall mean any place to which the public or a substantial group of the public has access and includes, but is not limited to, streets, highways, and the common areas of schools, hospitals, apartment houses, office buildings, transport facilities, and shops.

(f) *Juvenile curfew processing office* shall be consistent with V.T.C.A., Texas Code of Criminal Procedure Art. 45.059 and shall include the Juvenile Case Management Section of the San Antonio Municipal Court.

(Ord. No. 74025, § 1, 7-25-91; Ord. No. 76419, § 1, 9-3-92; Ord. No. 2012-05-17-0357, 5-17-12; Ord. No. 2018-05-31-0402, § 2, 5-31-18)

Sec. 21-122. Violations and offenses.

(a) It shall be a violation of this article for a child to purposefully remain, walk, run, stand, drive or ride about in or upon any public place in the city between the hours of 11:00 p.m. and 6:00 a.m.

(b) It shall be a violation of this article for a child to purposefully remain, walk, run, stand, drive or ride about in or upon any public place in the city between the hours of 9:00 a.m. and 2:30 p.m. on a Monday, Tuesday, Wednesday, Thursday or Friday on school days only.

(c) It shall be unlawful for the parent or guardian having legal custody of a child to knowingly allow or permit the child to be in violation of the curfew imposed in subsections (a) and (b).

(Ord. No. 74025, § 2, 7-25-91; Ord. No. 79327, § 1, 12-16-93; Ord. No. 86567, § 1, 9-4-97; Ord. No. 2009-06-04-0445, § 2, 6-4-09; Ord. No. 2012-05-17-0357, 5-17-12; Ord. No. 2018-05-31-0402, § 2, 5-31-18)

Editor's note—Ord. No. 2018-05-31-0402, § 2, adopted May 31, 2018, amended § 21-122 and in so doing changed the title of said section from "Offenses" to "Violations and offences" as set out herein.

Sec. 21-123. Exceptions.

It shall not be a violation of section 21-122 of this article that:

(a) The child was accompanied by his or her parent, guardian or another adult approved by the parents;

(b) The child was on emergency errand directed by his or her parent or guardian;

(c) The child was attending a school, government sponsored, or religious activity or was going to or coming from a school, religious, or government sponsored activity without detour or stop;

(d) The child was engaged in a lawful employment or volunteer work at a recognized charity institution or was going to or coming from such activity without detour or stop;

(e) The child was on the sidewalk of the place where such child resides or on the sidewalk of a place where the child had permission from his or her parent or guardian to be;

(f) The child was in a motor vehicle involved in intrastate or interstate transportation or transportation for which passage through the curfew area was the most direct route;

(g) The child was exercising his or her First Amendment Rights protected by the United States or Texas Constitution, including, but not limited to the free exercise of religion, freedom of speech, and freedom of assembly;

(h) The child is married or had been married or had disabilities of minority removed in accordance with V.T.C.A., Family Code ch. 31.

(i) With respect to subsection 21-122(b) of this article, that the violation occurred during the scheduled vacation of or on a holiday observed by the school in which the child was enrolled; or that the child had graduated from high school or received a high school equivalency certificate; or that the child had permis-

sion to be absent from school or be in a public place from an authorized school official. In the case of a child being educated in a home school, a parent shall be deemed a school official.

(Ord. No. 74025, § 3, 7-25-91; Ord. No. 76419, §§ 2—4, 9-3-92; Ord. No. 79327, § 2, 12-16-93; Ord. No. 2009-06-04-0445, § 2, 6-4-09; Ord. No. 2012-05-17-0357, 5-17-12; Ord. No. 2018-05-31-0402, § 2, 5-31-18)

Editor's note—Ord. No. 2018-05-31-0402, § 2, adopted May 31, 2018, amended § 21-123 and in so doing changed the title of said section from "Defenses" to "Exceptions" as set out herein.

Sec. 21-124. Enforcement procedure.

(a) Any peace officer, upon finding a child in violation of section 21-122 of the City Code, may transport the child to the juvenile curfew processing office in accordance with V.T.C.A., Code of Criminal Procedure Art. 45.059(a)(3). Upon transport, the peace officer may determine the name and address of the child, and the name and address of his or her parent(s) or guardian(s) and may issue a warning notice or a citation to the parent(s) or guardian(s) of the child.

(1) Upon issuance of a citation, a complaint will be filed against the parent(s) or guardian(s) in municipal court for violation of City Code subsection 21-122(c). The police department shall file all necessary legal papers, supply all necessary documentation, and provide necessary testimony as required for pursuing violation of this article by any parent(s) or guardian(s).

(Ord. No. 74025, § 4, 7-25-91; Ord. No. 86567, § 2, 9-4-97; Ord. No. 2009-06-04-0445, § 2, 6-4-09; Ord. No. 2012-05-17-0357, 5-17-12; Ord. No. 2018-05-31-0402, § 2, 5-31-18)

Sec. 21-125. Penalties.

(a) Any child violating the provisions of this article may be referred to the Juvenile Case Management Section of the San Antonio Municipal Court/Truancy Court.

(b) Parent(s) or guardian(s) of a child violating this article shall be guilty of a misdemeanor, which shall be punishable by a fine of not less than fifty dollars ($50.00) nor more than five hundred dollars ($500.00).

(c) In assessing punishment for either any parent(s), or guardian(s), the municipal court judges are encouraged to consider the community service program.

(Ord. No. 74025, § 5, 7-25-91; Ord. No. 2012-05-17-0357, 5-17-12; Ord. No. 2018-05-31-0402, § 2, 5-31-18)

Secs. 21-126—21-150. Reserved.

ARTICLE VI. REGULATION OF FIREARMS AND WEAPONS*

Sec. 21-151. Definition of firearm.

As used in this article, the term "firearm" shall mean any device designed, made, or adapted to expel a projectile through a barrel by using the energy generated by an explosion or burning substance or any device readily convertible to that use.

(Ord. No. 79328, § 1, 12-16-93)

Sec. 21-152. Discharge of firearm.

(a) It shall be unlawful for any person to discharge a firearm within the city limits of the City of San Antonio.

(b) It is an affirmative defense to prosecution for a violation of this provision that:

(1) The person discharging the firearm was a certified peace officer at the time and the discharge was done in the performance of his duties as such; or

*__Editor's note—__Ord. No. 79328, adopted Dec. 16, 1993, amended Ch. 21 by the addition of provisions which have been included herein at the discretion of the editor as Art. VI, §§ 21-151—21-156.

Cross references—Furnishing air gun or spring gun to minor, § 21-14; furnishing toy gun, explosives to minors, § 21-15; carrying loaded rifle or shotgun, § 21-16; certain knives prohibited, § 21-17.

(2) The person discharging the firearm was a certified security guard at the time and the discharge was done in the performance of his duties as such; or

(3) The discharge was justified under the provisions of Chapter 9 of the Texas Penal Code; or

(4) The discharge occurred at a firing range or other area designated for target practice.

(Ord. No. 79328, § 2, 12-16-93; Ord. No. 84805, § 1, 9-19-96)

Sec. 21-153. Carrying a firearm prohibited; exceptions.

(a) It shall be unlawful for any person to carry a firearm within the city limits of the City of San Antonio at:

(1) A public park; or

(2) A public meeting of a governmental body; or

(3) A political rally, political parade, or official political meeting; or

(4) A nonfirearms-related school, college, or professional athletic event.

(b) It is an affirmative defense to prosecution for a violation of this provision that:

(1) The firearm is being carried by a certified peace officer; or

(2) The firearm is being carried by a certified security officer in the performance of his employment.

(Ord. No. 79328, § 3, 12-16-93; Ord. No. 84805, § 2, 9-19-96)

Sec. 21-154. Possession of or access to firearm by person under seventeen years of age.

(a) It shall be unlawful for any person seventeen (17) years of age or older to intentionally, knowingly, recklessly, or with criminal negligence facilitate, suffer, or permit the discharge of a firearm by any person under the age of seventeen (17) by allowing that person to obtain unsupervised access to the firearm.

(b) It shall be unlawful for any person seventeen (17) years of age or older to intentionally, knowingly, recklessly, or with criminal negligence facilitate, suffer, or permit the physical possession of a firearm by any person under the age of seventeen (17) by allowing that person to obtain unsupervised access to the firearm.

(c) It is an affirmative defense to prosecution under subsections (a) and (b) that:

(1) The firearm was possessed or discharged at a firing range or an area designated for target practice and was possessed or discharged under the supervision of any person seventeen (17) years of age or older; or

(2) The access to the firearm was obtained as a result of the commission of a crime; or

(3) The possession or discharge of the firearm was justified under the provisions of Chapter 9 of the Texas Penal Code; or

(4) Reasonable precautions under the attendant circumstances were taken to prevent unsupervised access to the firearm by any person under the age of seventeen (17).

(Ord. No. 79328, § 4, 12-16-93; Ord. No. 84805, § 3, 9-19-96)

Sec. 21-155. Possession of knife.

It shall be unlawful for any person under the age of seventeen (17) to possess or carry any knife on a public roadway or public right-of-way; on any other property in which a governmental entity has an interest; or on private property without the permission of the owner or the person in control of the property within the city limits of the City of San Antonio.

(Ord. No. 79328, § 5, 12-16-93)

Cross references—Certain knives prohibited generally; exceptions, § 21-17.

Sec. 21-156. Possession of firearm restricted.

(a) It shall be unlawful for any person under the age of seventeen (17) to carry a firearm on a public roadway or public right-of-way; on any

other property in which a governmental entity has an interest; or on private property without the permission of the owner or person in control of the property within the city limits of the City of San Antonio.

(b) It is an affirmative defense to prosecution for a violation of this provision that: The firearm is being carried at a firing range or an area designated for target practice.

(c) Law enforcement officers authorized to enforce this article are hereby authorized to seize any firearms in the possession of any person under the age of seventeen (17) in the city limits of the City of San Antonio where there is probable cause to believe said firearms are being or will be used in the commission of a crime or where they pose a danger to said persons or others. The firearms shall be held by the San Antonio Police Department and released only to an adult who can demonstrate ownership. This provision will serve to prevent those under the age of seventeen from harming themselves or others. Firearms not claimed within ninety (90) days shall be destroyed.

(d) A letter shall be sent by the Department of Community Initiatives to the parent(s) or guardian(s) of any person charged under this section advising of the charge and asking for their cooperation in better supervising the child. (Ord. No. 79328, § 6, 12-16-93; Ord. No. 84805, § 4, 9-19-96)

Sec. 21-157. Carrying of weapons, including concealed handguns, on city-owned premises prohibited; posting of notice.

(a) It is the intent of the city council to prohibit any person other than a commissioned security officer employed by the city and licensed peace officers from carrying or possessing weapons including concealed handguns on city-owned premises, including city-owned buildings, parking garages, lots, and other parking areas but excluding city-owned or operated public parks, streets and sidewalks.

(b) It is the intent of the city council that the term weapon shall include a firearm, handgun, club, illegal knife, knife, and any prohibited weapon listed in Texas Penal Code Section 46.05(a) and have the same meaning as said items are defined in Section 46.01, Texas Penal Code.

(c) The city council directs the city manager, or his designee to post the appropriate signs and such other notice, in accordance with Section 30.05 of the Texas Penal Code (the Criminal Trespass Law), to carry out the city council's above-stated intent.

(d) The city manager is authorized to take all steps reasonable and necessary to deny entry or continued presence on city-owned premises to all such persons possessing weapons including concealed handguns, including prosecution of such violators for the offense of criminal trespass. (Res. No. 95-52-66, 12-21-95)

Editor's note—Provisions enacted by Res. No. 95-52-66, adopted Dec. 21, 1995, have been included herein at the discretion of the editor as § 21-157.

Secs. 21-158—21-160. Reserved.

ARTICLE VII. DEVELOPMENT SERVICES FEE

Sec. 21-161. Assessment of fees.

An amount of three (3) percent of the following charges assessed by the city shall be required to be paid at the time of application in addition to each such charge:

Health department fees: Mobile food court, rendering establishments and storage, rendering materials collectors, swimming pool license, cross connection survey, childcare fees, and custodial care inspection fee;

Building inspections department fees: Sign erection permits, gas permits, sidewalk permits, electrical permits, plumbing permits, heating and air conditioning permits, re-inspection fees, sewer connection permits, and building permits;

Planning department fees: Historic design review commission application fee, plan amendment fee, zoning procedures, postponement request fee, non-conforming rights fee-zoning, zoning

verification fee, emergency add-on fee, minor plats, plan review fees, vacating declaration fees, replat fees, major plats, historic design review commission inspection fees, plat deferral fee, amending plat fees, site improvement time extension fee, and development plat fee; and

Fire department fees: Smoke control plan & review test, above-ground temp. flam. Liquid permit, hazardous chemical-flammable liquid tank permit, amusement park firework display permit, amusement park permit pyrotechnics, amusement park storage, fire record & search, blaster permit, new fire sprinkler system fee, fast track sprinkler permit, major sprinkler system not involving heads, sprinkler mod fee, underground fire line, standpipe, hydrants, explosive handlers permit, new fire alarm systems fee, fast track fa permit, major alarm mod not involving initiating and or signaling devices, fire alarm remodel, fire alarm panel replacement, float/food booth permit, waste oil tanks and class III combustible liquid thanks, flammable liquids leak tracing, gaseous suppression system permit, reschedule fee, after hours inspection, fire watch, inspections - hospital/nursing home, inspections - day care/foster home, general inspections, minor re-inspections, explosive site permit, explosive site evacuation permit, explosive site swimming pool, pyrotechnics, quarry blasting permit, explosive storage permit, burning permits, double permit, lab/clinics/massage therapy/rehab/physical therapy/or similar occupancies/bonded warehouses or similar occupancies, lpg tank permits, fireworks display and bonfire permit, fixed pipe fire extinguishing system permit, environmental research, filing an appeal, working w/o a permit, change of address, spray paint booths, fuel lines, standby fire company, waste oil tank plan review and insp., re-inspection fees - fire codes, above ground storage tank fee, fire protection system rescheduling fee, other fire protection system improvements, underground storage tank fee, permit investigation fee, fire protection system retest fee, and recovery fee: fire prevention, as well as any future fire prevention fees covered under section 11-16.

(Ord. No. 90490, § 2, 9-16-99; Ord. No. 2008-09-11-0777G, § 12, 9-11-08; Ord. No. 2025-09-18-0629, § 2(Att. D), 9-18-25)

Secs. 21-162—21-169. Reserved.

ARTICLE VIII. PREVENTION AND CONTROL OF THE SPREAD OF OAK WILT

Sec. 21-170. General requirements.

(a) The provisions of this section apply to any person, firm, corporation, business entity, city department, public or private utility to the extent permitted by law.

(b) All wounds to the trunk, limbs and root system of oak trees in the city that expose sapwood shall be painted within thirty minutes of the wound with asphaltic or exterior oil or latex based paint.

(c) Firewood from oak wilt infected trees shall not be brought into the city at anytime.

(Ord. No. 97332, § 18, 3-13-03)

Sec. 21-171. Tree maintenance license.

It shall be unlawful for any person or firm to engage in the business or occupation of pruning, treating, or removing trees without a valid tree maintenance license by the city. A tree maintenance license shall be valid for three (3) years from the date of issuance. An application for a tree maintenance license shall not be deemed complete until proof of successful completion of continuing education credits and proof of current liability insurance are submitted, and all applicable fees are paid. The applicant is required to carry general liability insurance in a minimum amount of three hundred thousand dollars ($300,000.00) in the aggregate each. Further, proof of insurance shall be required as a condition precedent to secure a permit as required in this subsection and upon each subsequent renewal. A failure to maintain proof of insurance for the permitted year shall result in a revocation of the issued permit. Proof of minimum coverage amounts maintained for the preceding year must be provided with each application for renewal. Proof of insurance shall be underwritten by an organization licensed/authorized to do

business in the state. The city shall be listed on the policy for notification of any lapse in coverage.

A tree maintenance license shall require proof of completion of a minimum of fifteen (15) continuing education credits (CEU's) as approved by the city arborist per three-year licensing period before the license is issued, including written acknowledgement by signature of the code of ethics for the city tree maintenance license. An initial temporary license may be issued for a period of one (1) year to allow the applicant time to obtain the necessary CEU's. A temporary license shall only be issued following the completion of a two-hour city sponsored introductory class on safety, Oak Wilt, tree biology, tree pruning and tree identification. The two (2) hours credit will be applied to the 15-hour CEU requirement for the three-year maintenance license. A knowledge assessment administered by the city must be successfully completed to receive credit. Certified arborists will qualify automatically for the tree maintenance license and shall receive fifty (50) percent reduction on their tree maintenance license fee. In addition, if the tree maintenance license holder is not on the job site, a crew member with at least a minimum of two (2) hours of city arborist approved continuing education credits shall be on site during tree pruning operations.

Failure to maintain or submit any of the above requirements will result in the immediate revocation of the tree maintenance license. No license shall be required of any employee of a public utility or the city while performing tree maintenance in their capacity as such employee.
(Ord. No. 97332, § 18, 3-13-03; Ord. No. 2011-10-20-0862, § 2, 10-20-11)

Sec. 21-172. Penalty.

Violation of any of the provisions of this section shall be a misdemeanor offense and shall be punished by a fine of not less than fifty dollars ($50.00) nor more than five hundred dollars ($500.00) for the first offense and a fine of not less than one hundred dollars ($100.00) nor more than ($500.00) for the second offense.
(Ord. No. 97332, § 18, 3-13-03)

Secs. 21-173—21-199. Reserved.

ARTICLE IX. SEXUALLY ORIENTED BUSINESSES*

DIVISION 1. DEFINITIONS; PERMIT REQUIRED

Sec. 21-200. Definitions.

As used in this article, the following words and terms shall have the meanings ascribed to them in this section, unless the context of their usage clearly indicates another meaning:

Act shall mean the same as that term is defined in V.T.C.A., Penal Code § 1.07 or as may hereafter be amended therein.

Actor shall mean the same as that term is defined in V.T.C.A., Penal Code § 1.07 or as may hereafter be amended therein.

*__Editor's note—__Ord. No. 2012-12-06-0933, §§ 4, 6, adopted December 6, 2012, repealed and reenacted article IX in its entirety to read as herein set out. Formerly, article IX, divisions 1—3, pertained to nudity and semi-nudity prohibited at public places and licensing of human display establishments, and derived from Ord. No. 101022, § 1, adopted June 9, 2005.

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Adult arcade shall mean any "premises" to which members of the public or members of any club, group or association are admitted and permitted to use one or more arcade devices.

Adult bookstore means an adult bookstore, adult novelty store, or adult video store where more than thirty (30) percent of its inventory (that is offered for sale, rental or viewing for any form of consideration to on-premises customers) or floor space consists of one or more of the following:

(1) Books, magazines, or sound recordings, or printed, visual or audio material of any kind which are characterized by their emphasis on the description or depiction of specified anatomical areas or specified sexual activities; or

(2) Non-contraceptive instruments, devices, toys, or paraphernalia designed for use in connection with specified sexual activities, books, magazines, pamphlets, pictures, drawings, photographs, motion picture films, or sound recordings, or printed, visual or audio material of any kind, which, because of the depiction or description of specified sexual activities in the materials offered for sale, is restricted to adults.

(3) Novelty items designed as sight gags, advertised as such and not designed or advertised for sexual activity, are not instruments or devices as defined and regulated herein.

Adverse secondary effects shall mean any one of the following conditions caused by the existence of or geographic proximity to a sexually oriented business:

(1) The existence of violations of law, including but not limited to: prostitution, promotion of prostitution, aggravated promotion of prostitution, compelling prostitution, obscenity, sale or distribution or display of material harmful to a minor, sexual performance by a child, employment harmful to children, possession or promotion of child pornography, public lewdness, indecent exposure, indecency with a child, sexual assault, aggravated sexual assault, pandering, loitering, trespass, or any violation of V.T.C.A., Health and Safety Code ch. 481, criminal attempt to conduct a violation of law, criminal conspiracy to conduct a violation of law, or solicitation to conduct a violation of law.

(2) Diminution of surrounding property value.

(3) Unsanitary health conditions resulting from improper disposition of bodily secretions thereby posing a threat of spreading infection or disease.

(4) Those adverse secondary effects found to exist by the Texas Legislature at V.T.C.A., Local Government Code § 243.001(a).

(5) Those adverse secondary effects described by findings incorporated in the cases of N.W. Enterprises v. City of Houston, 352 F.3d 162 (5th Circ. 2003); Baby Dolls Topless Saloons v. City of Dallas, 295 F.3d 471 (5th Circ. 2002); City of Renton v. Playtime Theatres, Inc., 475 U.S. 41 (1986); Young v. American Mini Theatres, 427 U.S. 50 (1976); FW/PBS, Inc. v. City of Dallas, 493 U.S. 215 (1990); Barnes v. Glen Theatre, Inc., 501 U.S. 560 (1991); City of Erie v. Pap's A.M., 529 U.S. 277, 120 S. Ct. 1382 (2000); City of Los Angeles v. Alameda Books, Inc. 122 S. Ct. 1728 (2002); LLEH, Inc. v. Wichita County, Texas, 289 F.3d 358 (5th Circ. 2002); Mitchell v. Commission on Adult Entertainment, 10 F.3d 123 (3d Circ 1993); Shultz v. City of Cumberland, 228 F.3d 831 (7th Circ. 2000) Hang On, Inc. v. City of Arlington, 65 F.3d 1248 (5th Circ. 1995); 2300, Inc. v. City of Arlington, 888 S.W. 2d 123 (Tex. App. - Forth Worth 1994); Colacurcio v. City of Kent, 163 F.3d 545 (9th Circ. 1998), cert denied, 529 U.S. 1053 (2000); Kev, Inc. V. Kitsap County, 793 F.2d 1053 (9th Circ. 1986); Center for Fair Public Policy v. Maricopa County, 336 F.3d 1153 (9th Circ. 2003); DLS, Inc. v. Chattanooga, 107 F.3d 403 (6th Circ. 1997); Jake's Ltd, Inc. v. Coates, 384 F.3d 884 (8th Circ. 2002); and on studies, reports, and/or testimony in other communities including, but not limited to: Houston, Texas; Phoenix, Arizona; Minneapolis, Minnesota; St.

Paul, Minnesota; Indianapolis, Indiana; Dallas, Texas; Amarillo, Texas; Garden Grove, California; Los Angeles, California; Whittier, California; Austin, Texas; Seattle, Washington; Oklahoma City, Oklahoma; Cleveland, Ohio; Beaumont, Texas; Newport News, Virginia; Bellevue, Washington; New York, New York; St. Croix County, Wisconsin; Arlington, Texas; Detroit, Michigan; Seattle, Washington; Rochester, New York; Denver, Colorado; El Paso, Texas; and also findings from the Texas City Attorneys Association Crime and Value Related Effects of Sexually Oriented Businesses (2008); Florida Survey of Appraisers (2008); The American Center for Law and Justice (1996); and National Law Center Summary of Sexually Oriented Business Land Use Studies (1996)

Adult cabaret means an establishment whose one of its primary business purposes is the offering to customers of live entertainment which is intended to provide sexual stimulation or sexual gratification to such customers, and which is distinguished by or characterized by an emphasis on matter depicting, describing or relating to specified sexual activities, or specified anatomical areas.

Adult encounter parlor means an establishment whose one of its primary business purposes is the provision of premises where customers either congregate, associate, or consort with employees who engage in specified sexual activities with or in the presence of such customers, or who display specified anatomical areas in the presence of such customers, with the intent of providing sexual stimulation or sexual gratification to such customers.

Adult lounge means an adult cabaret, as defined above, which is a permitted or licensed premises, pursuant to the Texas Alcoholic Beverage Code, where alcoholic beverages may be served or sold.

Adult modeling studio means an establishment whose one of its primary business purposes is the provision to customers of figure models who are so provided with the intent of providing sexual stimulation or sexual gratification to such customers and who engage in specified sexual activities or display specified anatomical areas while being observed, painted, painted upon, sketched, drawn, sculptured, photographed, or otherwise depicted by such customers.

Adult mini-theatre shall mean any premises that is subject to regulation under V.T.C.A., Local Government Code ch. 243 as amended, to which members of the public or members of any club, group or association are admitted and permitted to use one or more "mini-theatre devices."

Alcoholic beverage shall mean the same as that term is defined in V.T.C.A., Penal Code § 1.07 or as may hereafter be amended therein.

Applicant shall mean an individual or owner-operator who files an application.

Application shall mean any request for a permit that is completed accurately and filed in compliance with the provisions of this article.

Application amendment shall mean a document wherein is contained a change to the information provided on an application or renewal application.

Arcade device shall mean any coin, currency or slug operated or electronically or mechanically controlled machine or device that dispenses or effectuates the dispensing of "entertainment" that is intended for the viewing of five (5) or fewer persons in exchange for any payment of consideration.

Association shall mean the same as that term is defined in V.T.C.A., Penal Code § 1.07 or as may hereafter be amended therein.

Background investigation shall mean the review, analysis, and inquiry made by the chief of police in response to an application for a permit.

Certificate of occupancy shall mean a certificate indicating that the premises comply with all the provisions of the UDC Section 35-424 and the building code. The certificate of occupancy is issued after approval of a building permit and construction has occurred pursuant to a building

permit. A sexually oriented business permit shall not be issued unless a certificate of occupancy is obtained for the premises.

Chief or *chief of police* shall mean the director of the city police department or designee authorized to carry out tasks such as those set forth herein.

Church means a building in which persons regularly assemble for religious worship intended primarily for purposes connected with such worship or for propagating a particular form of religious belief.

Commence an action shall mean to file a cause of action with a court of any jurisdiction, to pursue an appeal in any appellate or supreme court and/or to obtain a settlement of a cause of action.

Close corporation shall mean a corporation whose stock is not offered or sold on an exchange.

Commercial multi-unit center means a building or structure (including a shopping mall or strip shopping center) containing three (3) or more separate premises, each of which is offered by lease or otherwise for separate occupancy or control and each of which occupies an enclosed area having its own door or entranceway opening onto public property, a public way, or a common area.

Community supervision shall mean the same as that term is defined at V.T.C.A., Code of Criminal Procedure art. 42.12, § 2 or as may hereafter be amended therein.

Conduct any business in a sexually oriented business. Any person who does any one or more of the following shall be deemed to be conducting business in a sexually oriented business:

(1) Operates a cash register, cash drawer or other depository on the sexually oriented business premises where cash funds or records of credit card or other credit transactions generated in any manner by the operation of the establishment or the activities conducted therein are kept;

(2) Displays or takes orders from any customer for any merchandise, goods, entertainment or other services offered on the sexually oriented business premises;

(3) Delivers or provides to any customer any merchandise, goods, entertainment or other services offered on the sexually oriented business premises;

(4) Acts as a door attendant to regulate entry of customers or other persons into the sexually oriented business premises; or

(5) Supervises or manages other persons in the performance of any of the foregoing activities on the sexually oriented business premises.

Configuration or *configured* shall mean the interior layout or interior construction design of a sexually oriented business.

Conviction as used in this article shall mean the written declaration of a court, signed by the trial judge, that the defendant has been adjudged guilty of the offense in question, regardless of the punishment assessed. The term "convicted of" shall mean the person has a conviction on his record for the offense or activity stated.

Corporation shall mean a business entity created pursuant to statute and capable of issuing common or preferred stock. It shall include a closed corporation. In addition, the term shall also mean the same as that term is defined at V.T.C.A., Penal Code § 1.07 or as may hereafter be amended therein.

Customer means any person who:

(1) Is allowed to enter a sexually oriented business or any portion thereof in return for the payment of an admission fee, membership fee, or any other form of consideration or gratuity;

(2) Enters a sexually oriented business or any portion thereof and purchases, rents or otherwise partakes of any merchandise, goods, entertainment or other services offered therein; or

(3) Enters a sexually oriented business or any portion thereof based upon a private membership to the club or as a guest of an owner, operator, manager, floor-manager, employee, dancer, entertainer or model.

Dancer shall have the same meaning as the term "entertainer."

Denial of revocation/suspension shall mean a document wherein is contained the refusal of the hearing officer to revoke a permit and the reasons for the refusal.

Diagram shall mean a drawing sufficient to depict each area of a sexually oriented business, whether open or closed, accessible or inaccessible to customers or patrons, including but not limited to, each entrance, exit, room, bar, kitchen, office, stairway, or lavatory. The drawing must indicate the square footage of the entire establishment, along with square footage of each enclosed area within the establishment. Each area should also be labeled by usage.

Dressing room shall mean an enclosed area where entertainers are allowed to change clothes and where customers or patrons shall be prohibited from viewing or entering.

Employee shall mean:

(1) Any person who renders any service whatsoever to any customer of a sexually oriented business, works in or about a sexually oriented business, or conducts any business in and for a sexually oriented business; and, either receives or expects to receive compensation from the operator, owner, manager, floor-manager, or customers of the sexually oriented business.

(2) Excepted from this definition of "employee" are the following: providers of legitimate accounting services, legal services, deliveries of goods for immediate use by the sexually oriented business, and maintenance services for the sexually oriented business.

(3) By way of example, rather than limitation, the term "employee" includes the operator and other management personnel, clerks, dancers, models and other entertainers, food and beverage preparation personnel, door persons, bouncers, security personnel, and cashiers. This definition is intended to include the conventional employer-employee relationships, independent contractor relationships, agency relationships, and any other scheme or system whereby the "employee" has an expectation of receiving compensation, tips, or other benefits from the sexually oriented business, operator, owner, manager, floor-manager, or customers in exchange for services provided.

Entertainer shall mean any individual, male or female, who poses, dances, or knowingly or intentionally appears for the purpose of being observed or viewed for any reason by any individual while in a state of nudity, semi-nudity, or while engaging in specified sexual activities.

Entertainer's permit shall mean a license issued to an individual as lawful authority to act as an entertainer in a sexually oriented business.

Entertainment shall mean:

(1) Any live exhibition, display or performance; or

(2) Any still picture(s) or movie picture(s), whether mechanically, electrically or electronically displayed; or

(3) Any combination of the foregoing, in which the specified anatomical areas or specified sexual activities are depicted.

File or *filed* or *filing* shall mean personal delivery to the chief of police or his designee at the city police headquarters or personal delivery to the clerk of a court.

Floor-manager shall mean any individual holding a position in a sexually oriented business with the responsibility for direct supervision of the operation of the sexually oriented business and for monitoring and observing the areas of the sexually oriented business to which customers or patrons are admitted at times during which the sexually oriented business is open for business; or, at times during which customers or patrons are on the premises of the sexually oriented business.

Floor-manager's permit shall mean a license issued to an individual as lawful authority to act as a floor-manager for a sexually oriented business.

Form shall mean one or more pages wherein exist a uniform method of eliciting from an applicant the information required for an application in accordance with the provisions of this article. The referenced pages shall include a verification or jurat where the applicant can affirm under oath and on the basis of personal knowledge that the information provided is accurate and complete; however, the referenced pages shall specifically exclude the affidavit required of an owner-operator.

Identify shall mean the act of stating or declaring an identity.

Identity shall mean the true and correct name, address, telephone number, and facsimile number of the pertinent association, corporation, individual, operator, person, or owner.

Individual shall mean the same as that term is defined in V.T.C.A., Penal Code § 1.07 or as may hereafter be amended therein.

Interior door shall mean any opening between interior rooms through which foot traffic may occur and which serves as an entrance or an exit between the rooms, excluding electrically cooled rooms used as food storage devices, liquor cabinets, and food pantries.

Invest shall mean to provide money, bartering, or in-kind services toward a sexually oriented business in anticipation or expectation of generating a profit or incurring a tax benefit at some time in the future.

Investment shall mean the noun of the term "invest."

Lavatory shall mean a room where exists a sink for washing hands and a toilet.

Licensed day-care center means a facility licensed by the State of Texas, whether situated within the city or not, that provides care, training, education, custody, treatment or supervision for more than twelve (12) children under fourteen (14) years of age, where such children are not related by blood, marriage or adoption to the owner or operator of the facility, for less than twenty-four (24) hours a day, regardless of whether or not the facility is operated for a profit or charges for the services it offers.

Multifamily tract means any residential tract that contains any building or buildings or portion or portions thereof, that is designed, built, rented, leased, sold, let out or hired out to be occupied, or which is occupied, in separate units, each containing living, sleeping and food preparation facilities, as the homes or residences of three (3) or more families, groups, or individuals living independently of each other.

Manager, unless otherwise specified herein, shall mean any individual who supervises or directs any employee, floor-manager, contractor, or sub-contractor of a sexually oriented business.

Manager's affidavit shall mean a sworn statement based upon personal knowledge by a manager of a sexually oriented business wherein is stated:

(1) That the attached copy of the photographic identification of an applicant for a manager's permit is a true and correct copy of the photographic identification of said applicant;

(2) The identity of the sexually oriented business at which the applicant shall be employed under the manager's permit;

(3) The information in the attached application is true and correct and the applicant is qualified to receive the requested permit.

Manager's permit shall mean a license issued to an individual as lawful authority to act as a manager of a sexually oriented business.

Massage parlor means any place where, for any form of consideration or gratuity, massage, alcohol rub, administration of fomentation, electric or magnetic treatments, or any other treatment or manipulation of the human body which occurs as a part of, or in connection with, such treatment, manipulation, or service related thereto, exposes specified anatomical areas. The definition of a massage parlors shall not include the practice of massage in any licensed hospital, nor by a licensed massage therapist, hospital, licensed physicians, surgeons, chiropractor, osteopath, nurse, technician working under the supervision of a licensed physician, surgeon, chiropractor, or os-

teopath, nor by trainers of any amateur, semiprofessional or professional athlete or athletic team or school athletic program.

Model shall have the same meaning as the term "entertainer."

Notice or *notice of rejection* shall mean a document wherein the chief of police informs an individual that an application or renewal application is denied and also specifies therein the reasons for the rejection.

Notice of intention to revoke/suspend permit shall mean a document wherein the chief of police notifies a permit holder of his intention to revoke the permit.

Notice of revocation or *notice of revocation/suspension* shall mean a document wherein is contained the decision of the hearing officer to revoke/suspend a permit based upon the allegations contained in a notice of intention to revoke/suspend permit.

Nude or *nudity* or *state of nudity* shall mean the following:

(1) The appearance of the bare buttock; anus; male genitals; female genitals; or entire female breast;

(2) A state of dress which fails to completely and opaquely cover the buttock; anus; male genitals; female genitals; or entire female breast.

Nude modeling studio means any place where a person who, for money or any form of consideration, appears in a state of nudity or displays specified anatomical areas, to be observed, sketched, drawn, painted, sculptured, photographed, or otherwise depicted by other persons. This definition shall not include nude modeling by an adult that occurs in conjunction with art classes of a university, college, or any art class supervised by an art instructor paid by an arts school.

Nudity attraction establishment means any place of business where nudity or semi-nudity is regularly or routinely advertised as a characteristic of the business or which regularly attracts patrons with nudity or semi-nudity.

Operator shall mean the following:

(1) An individual who owns a sexually oriented business, if the establishment is a sole proprietorship or if the establishment is an assumed name of an individual;

(2) Each individual partner of a general partnership, if the partnership owns any interest in a sexually oriented business;

(3) Each individual who is a general partner or a limited partner of a limited partnership, if the partnership owns any interest in a sexually oriented business;

(4) Each individual who is an officer or director of a corporation, if the corporation owns any interest in a sexually oriented business;

(5) Each association, individual, or person who is a stockholder of a closed corporation, if the closed corporation owns any interest in a sexually oriented business;

(6) Each manager, as defined in the Texas Limited Liability Company Act, of a limited liability company, if the company owns any interest in a sexually oriented business; and

(7) Each association, if the association owns any interest in a sexually oriented business.

Owner shall mean each association, individual, person, partner, closed corporation, corporation, business entity, or manager (as defined by the Texas Limited Liability Company Act) who owns an interest in a sexually oriented business.

Owner-operator shall mean:

(1) An owner or each member of a group of owners whose aggregate ownership interest in a sexually oriented business equals or exceeds thirty-five (35) percent, and

(2) Who has been designated by a sexually oriented business pursuant to the provisions of this article as being a member of the class authorized to apply for and, if otherwise qualified, receive a sexually oriented business permit.

Patron shall have the same meaning as the term "customer."

Permit shall mean either a sexually oriented business permit, a manager's permit, a floor-manager's permit, an entertainer's permit, a temporary manager's permit, a temporary floor-manager's permit, a temporary entertainer's permit, or any other permit defined in this article, depending upon the context used.

Permit holder shall mean the individual who applied for and received a manager's permit, floor-manager's permit, entertainer's permit, temporary manager's permit, temporary floor-manager's permit, temporary entertainer's permit, or, in the case of a sexually oriented business establishment permit, the owner-operator of the sexually oriented business. It shall also include any individual who applied for and received any permit defined in this article, depending upon the context used.

Person shall mean the same as that term is defined in V.T.C.A., Penal Code § 1.07 or as may hereafter be amended therein.

Public park means a publicly owned or leased tract of land, whether situated in the city or not, designated, dedicated, controlled, maintained and operated for use by the general public for active or passive recreational or leisure purposes by the city or any political subdivision of the state and containing improvements, pathways, access or facilities intended for public recreational use. The term "public park" shall not include parkways, public roads, rights-of-way, esplanades, traffic circles, easements or traffic triangles unless such tracts or areas contain and provide improvements or access to a recreational or leisure use by the public.

Public place in this article shall mean all locations owned by or open to the general public inclusive of the sheds, enclosures, buildings, improvements, and fixtures upon the location. This term includes but is not limited to any sexually oriented business, restaurant, tavern, bar, club or other establishment. This term also includes those locations that are restricted to specific members, restricted to adults, or restricted to patrons invited to the location, whether or not an admission charge is levied.

Residential. Pertaining to the use of land, whether situated within the city or not, for premises such as homes, townhomes, patio homes, manufactured homes, duplexes, condominiums and apartment complexes, which contain habitable rooms for nontransient occupancy and which are designed primarily for living, sleeping, cooking, and eating therein. A premises which is designed primarily for living, sleeping, cooking and eating therein shall be deemed to be residential in character unless it is actually occupied and used exclusively for other purposes. Hotels, motels, boarding houses, nursing homes, college or university dormitories, hospitals, and nursery schools shall not be considered to be residential. The term "residential" shall also include any unimproved tract designated for tax appraisal purposes as residential by the Bexar County Appraisal District if situated in the city or by the appraisal district of the county in which the tract is situated if not situated in the city. The term additionally shall include any tract, that, based upon the records of the planning official has been subdivided or platted for residential use, but that is not yet designated for tax appraisal purposes as residential.

Renewal application shall mean an application to re-establish a valid and existing permit for another term.

Renewal permit shall mean a valid and existing permit that is re-established for another term.

Respondent shall mean:

(1) That individual or owner-operator who holds:

   a. A sexually oriented business permit;

   b. A manager's permit;

   c. A floor-manager's permit; or

   d. An entertainer's permit; and

(2) Defends his own permit in a revocation/suspension proceeding or appeal thereof.

Revocation proceeding or *revocation/suspension proceeding* shall mean the process by which any permit required herein is or may be revoked or suspended.

School shall mean a building, whether situated within the city or not, where persons regularly assemble for the purpose of instruction or education together with the playgrounds, stadia and other structures or grounds used in conjunction therewith. The term is limited to:

(1) Public and private schools used for primary or secondary education, in which any regular kindergarten or grades one (1) through twelve (12) classes are taught;, and

(2) Special educational facilities in which students who have physical or learning disabilities receive specialized education in lieu of attending regular classes in kindergarten or any of grades one (1) through twelve (12).

Semi-nude or *semi-nudity* or *state of semi-nudity* shall mean a state of dress which fails to completely and opaquely cover:

(1) Human genitals, pubic region or pubic hair;

(2) Crevice of buttocks or anus;

(3) Any portion of the female breast that is situated below a point immediately above the top of the areola; or

(4) Any combination of the foregoing.

Sexual encounter establishment means any business or commercial establishment that, as one of its primary business purposes, offers for any form of consideration, a place where two (2) or more persons may congregate, associate, or consort for the purpose of specified sexual activities or the exposure of specified anatomical areas when one or more of the persons is in a state of nudity or semi-nudity. The definition of sexual encounter establishment shall not include an establishment where a medical practitioner, psychologist, psychiatrist, or medical professional, licensed by the state engages in medically approved and recognized therapy or treatment.

Sexually oriented business or *SOB* means an adult arcade, adult bookstore or adult video store, adult cabaret, adult motel, adult mini-theater, escort agency, nude modeling studio, unlicensed massage parlor, or any other establishment whose one of its primary business purposes is the offering of a service, live entertainment or the selling, renting, or exhibiting of devices or any specified anatomical parts intended to provide sexual stimulation or sexual gratification to the customer and which is distinguished by or characterized by an emphasis on matter depicting, describing or relating to specified sexual activities or specified anatomical areas. The term "sexually oriented business" shall not be construed to include:

(1) Any business operated by or employing licensed psychologists, licensed physical therapists, licensed athletic trainers, licensed cosmetologists, or licensed barbers performing functions authorized under the licenses held;

(2) Any business operated by or employing licensed physicians or licensed chiropractors engaged in practicing the healing arts; or

(3) Any retail establishment whose major business is the offering of wearing apparel for sale to customers.

Sexually oriented business [permit] or *SOB permit* shall mean the original license issued to an owner-operator of a sexually oriented business as lawful authority to operate a sexually oriented business.

SOB shall mean sexually oriented business.

Specified anatomical areas shall mean failure to completely and opaquely cover:

(1) Human genitals, pubic region or pubic hair;

(2) Crevice of buttocks or anus;

(3) Any portion of the female breast that is situated below a point immediately above the top of the areola;

(4) Any combination of the foregoing; or

(5) Human male genitals in a discernibly erect state.

Specified criminal act shall mean any of the following offenses:

(1) As described in V.T.C.A., Penal Code ch. 21 or as may hereafter be amended therein:
   a. Public lewdness;
   b. Indecent exposure; or
   c. Indecency with a child.

(2) As described in V.T.C.A., Penal Code ch. 22 or as may hereafter be amended therein:
   a. Sexual assault, or
   b. Aggravated sexual assault.

(3) As described in V.T.C.A., Penal Code ch. 43 or as may hereafter be amended therein:
   a. Prostitution;
   b. Promotion of prostitution;
   c. Aggravated promotion of prostitution;
   d. Compelling prostitution;
   e. Sale, distribution or display of harmful material to a minor;
   f. Sexual performance by a child;
   g. Employment harmful to a child; or
   h. Possession or promotion of child pornography.

(4) As described in V.T.C.A., Health and Safety Code ch. 481 or as may hereafter be amended therein.

(5) As described in V.T.C.A., Penal Code ch. 15 or as may hereafter be amended therein:
   a. Criminal attempt to conduct any of the aforementioned offenses;
   b. Criminal conspiracy to conduct any of the aforementioned offenses;
   c. Criminal solicitation to conduct any of the aforementioned offenses; or
   d. Criminal solicitation of a minor to conduct any of the aforementioned offenses that are also identified in V.T.C.A., Penal Code § 15.031.

(6) Human trafficking as described in V.T.C.A., Penal Code ch. 20A or as may hereafter be amended therein.

Specified sexual activity means actual and simulated human genitals in a state of sexual stimulation or arousal, even if completely and opaquely covered, actual or simulated human masturbation, sexual intercourse, sodomy, fellatio, cunnilingus, fondling or other erotic touching of human genitals, pubic region, buttock or female breast, and excretory functions as part of or in connection with the above described activity or any act of bestiality, masturbation, sexual intercourse, sodomy, fellatio, sadomasochism, or physical contact with a person's own or another person's specified anatomical area.

Stage name shall mean an alias used by an entertainer during the course and scope of entertaining.

Substantial evidence shall mean the same as that term is defined by state courts or in state jurisprudence regarding the standard of proof used in review of decisions in administrative proceedings.

Temporary entertainer shall mean an individual who holds a temporary entertainer's permit.

Temporary entertainer's permit shall mean an entertainer's permit that is valid for a reduced period of time, as set forth in this article.

Temporary floor-manager shall mean an individual who holds a temporary floor-manager's permit.

Temporary floor-manager's permit shall mean a floor-manager's permit that is valid for a reduced period of time, as set forth in this article.

Temporary manager shall mean an individual who holds a temporary manager's permit.

Temporary manager's permit shall mean a manager's permit that is valid for a reduced period of time, as set forth in this article.

Tract means a contiguous parcel of land under common ownership, whether situated within the city or not.
(Ord. No. 2012-12-06-0933, §§ 4, 6, 12-6-12)

Sec. 21-201. Remedial effect.

The provisions of this article are remedial and they shall, notwithstanding any other provision of

this Code, be construed to apply to each association, corporation, individual, operator, owner, owner-operator, person, or sexually oriented business, now existing and as hereafter shall exist.
(Ord. No. 2012-12-06-0933, §§ 4, 6, 12-6-12)

Sec. 21-202. Supplemental effect.

The provisions of this article are supplemental and shall be cumulative with all other laws and ordinances applicable in any manner to an association, corporation, individual, operator, owner, owner-operator, person, or sexually oriented business, now existing and as hereafter shall exist.
(Ord. No. 2012-12-06-0933, §§ 4, 6, 12-6-12)

Sec. 21-203. Construction of terms.

Whenever the context requires herein, the following construction shall apply: the use of the masculine shall mean the feminine and vice versa; the use of the singular shall mean the plural and vice versa; and, the reference to any class of individual or person shall include each individual or person within the class, unless specifically excepted by the text of the reference. For example, when referencing an "owner-operator," each individual or person within the class of "owner-operator" is being referenced, unless the text of the section specifically excepts all but one within the class.
(Ord. No. 2012-12-06-0933, §§ 4, 6, 12-6-12)

DIVISION 2. SEXUALLY ORIENTED BUSINESS PERMITS; CONFIGURATION; DUTY OF OWNERS, MANAGERS; RECORDS

Sec. 21-204. Total nudity prohibited.

(a) It shall be unlawful for an individual to intentionally or knowingly appear in a state of nudity in a sexually oriented business.

(b) It shall be unlawful for an individual, person, corporation, or association that manages, or operates a sexually oriented business to intentionally or knowingly allow an individual to appear on the premises of said establishment in a state of nudity.
(Ord. No. 2012-12-06-0933, §§ 4, 6, 12-6-12)

Sec. 21-205. Sexually oriented business establishment permit required.

(a) It shall be unlawful for any person to own, operate or conduct any business in a sexually oriented business located within the city unless there is a permit for said establishment.

(b) It shall be unlawful for any person to own, operate, or conduct any business in a sexually oriented business located within the city unless the SOB permit is posted at or near the principal public entrance to the establishment in such a manner that it will be conspicuous to patrons who enter the premises.

(c) In any prosecution under subsection (a) above, it shall be presumed that there was no permit at the time of the alleged offense, unless a permit was then posted as provided in subsection (b).
(Ord. No. 2012-12-06-0933, §§ 4, 6, 12-6-12)

Sec. 21-206. Process for requesting an SOB establishment permit.

(a) The chief of police shall create a form for each type of permit consistent with the provisions of this article.

(b) An applicant may obtain a form from the city government website page (sanantonio.gov/sapd) or at the San Antonio Police Department (SAPD or police department) Headquarters Records Unit. Applications shall be accepted Tuesday through Thursday, excluding Holidays, between the hours of 1:00 p.m. and 4:00 pm. Applications shall not be accepted at any other time or on any other day.

(c) At the time that the chief receives an application, the applicant shall pay the required fee of four hundred dollars ($400.00). The applicant will receive a receipt and paperwork from the records division along with their completed application and submit said information and waiver form to the identification division. The identification division shall take fingerprints and generate an SOB permit number. The applicant will then be photographed at the identifications division.

(d) All photographs and applications shall be used to perform a background investigation and for the purpose of photographic identification of permit holders, and shall be kept on record with the chief of police while the applicant possesses a valid permit, and for a period of five (5) years after the expiration, revocation, or denial of the permit.

(e) All photographs of applicants shall be destroyed at the expiration of five (5) years after the expiration, revocation, or denial of the permit, but all applicants submitting new applications shall be required to comply with photograph and fingerprint requirements in this section.

(f) The police department shall conduct the criminal background check and verify the applicant is eligible to receive an SOB permit.

(g) A business seeking a sexually oriented establishment permit shall be required to post an outdoor sign on the premises advising the public that it has applied for an SOB permit upon application for said permit. The outdoor sign shall be posted within seventy-two (72) hours of the submittal of application.
(Ord. No. 2012-12-06-0933, §§ 4, 6, 12-6-12)

Sec. 21-207. Use of a permit.

(a) A permit issued under the provisions of this article is not a property interest but shall be a purely personal privilege that is subject to revocation or suspension if the respondent is found to have violated a provision of this article.

(b) By authority of this article, by accepting a permit, the holder of the permit consents that the chief of police or a peace officer may detain the individual on the premises of a sexually oriented business for the purpose of verifying identity and permit.

(c) Any owner, operator, or owner-operator that enjoys the benefit of a sexually oriented business permit or has accepted a permit through the owner-operator, consents, by authority of this article, that the chief of police or peace officer may enter the premises of the sexually oriented business at any time an owner, operator, owner-operator, manager, floor-manager, employee, customer or patron is on the premises to conduct an investigation or inspect the premises for the purpose of performing any duty imposed by this article.

(d) All peace officers shall have the duty to enforce the provisions of this article and cooperate with the chief of police in the enforcement hereof.

(e) It shall be unlawful for an individual to use the permit of another. It shall be unlawful for an individual holding a permit to transfer that permit for use by another individual. Excepting an entertainer's permit, permits are valid for one (1) sexually oriented business establishment only and may not be transferred to any other establishment or location.
(Ord. No. 2012-12-06-0933, §§ 4, 6, 12-6-12)

Sec. 21-208. Amendment.

(a) An applicant or permit holder shall file an application amendment with the chief of police any time a prior statement contained in an application is known to the applicant to be materially incomplete or inaccurate because of changed circumstances.

(b) An applicant or permit holder shall file an application amendment with the chief of police any time a prior statement contained on an application is known to the applicant to be materially incomplete or inaccurate because the statement was incomplete or inaccurate at the time of filing.

(c) The time in which to file an application amendment is:

(1) Thirty (30) calendar days from the date of changed circumstances, or

(2) Thirty (30) calendar days from the date that the applicant knows that a prior statement was incomplete or inaccurate.

(d) It shall be unlawful for an applicant or permit holder to fail to comply with this section.
(Ord. No. 2012-12-06-0933, §§ 4, 6, 12-6-12)

Sec. 21-209. Same—Non-refundable fees.

All fees required in this article are non-refundable. Payment of the fees shall be by cashier's check or money order and made payable to the city.
(Ord. No. 2012-12-06-0933, §§ 4, 6, 12-6-12)

Sec. 21-210. Same—Term; renewal.

Each permit shall be valid for a term commencing upon issuance and shall expire on the 31st of December, unless sooner revoked, or surrendered. Each permit shall be subject to renewal as of its expiration date by the filing of a renewal application with the chief of police. Renewal applications must be filed at least twenty (20) days prior to the expiration date of the permit that is to be renewed.
(Ord. No. 2012-12-06-0933, §§ 4, 6, 12-6-12)

Sec. 21-211. Same—Issuance or denial.

(a) Within thirty (30) days of receipt of any application, either original or renewal, the chief shall grant or deny the requested permit and give written notice to the applicant as to the decision, unless such time period is extended at the request of the applicant as provided in subsection (d) below.

(b) The chief of police shall issue a permit to the applicant within thirty (30) days of verification unless one or more of the following conditions exist:

(1) The applicant's sexually oriented business is located within one thousand (1,000) feet of any public or private elementary, secondary or high school, any place of regular religious worship, including property used as a church, synagogue, mosque, or other religious worship facility, public park, or licensed day-care center. Measurements shall be made in a straight line, without regard to intervening structures or objects, from the nearest point on the property line of the applicant's sexually oriented business to the nearest point on the property line of such school, church, public park, or licensed day-care center;

(2) The applicant's sexually oriented business is located within one thousand (1,000) feet of any other sexually oriented business for which there is a permit. Measurements shall be made in a straight line, without regard to intervening structures or objects, from the nearest point on the property line of the applicant's sexually oriented business to the nearest point on the property line of any other sexually oriented business;

(3) The applicant's sexually oriented business is located within one thousand (1,000) feet of any property located within an "RP" or a residential zoning district boundary, whether temporary or permanent, or devoted to a residential use, including any land zoned for one of the aforementioned residential uses which is also described as a planned unit development or traditional neighborhood development, but excluding airports;

(4) The applicant failed to supply all of the information requested on the application;

(5) The applicant gave materially false, fraudulent or untruthful information on the application;

(6) The applicant's sexually oriented business is not in compliance with section 21-215 of this article (the chief may allow any noncompliance with section 21-215 to be cured during the chief's review period established in subsection (d), below, provided that it must be cured before the notice of decision on the permit is issued);

(7) The application or the sexually oriented business does not meet any other requirement of this article;

(8) The operator has had a permit revoked for the same sexually oriented business within the 180-day period next preceding the date that the application was filed; or

(9) The applicant has not demonstrated that the owner of the sexually oriented business owns or holds a lease for the property or the applicable portion thereof upon

which the sexually oriented business will be situated or has a legally enforceable right to acquire the same.

(10) Downtown district prohibition. In addition to the location restrictions of subsection (a), it shall be a violation to operate, own, manage, or maintain a sexually oriented business within the "D" downtown zoning district boundary.

(11) Certificate of occupancy. A certificate of occupancy for the business has not been obtained. Said certificate of occupancy shall not authorize the operation of an unpermitted sexually oriented business.

(c) Method of measurement and survey requirements.

(1) Sole tenant. Measurements shall be in a straight line, without regard to intervening structures or objects, from the nearest property line of the lot on which the sexually oriented business is located, to the nearest property line of the protected properties described in the above subsection (a), which requires separation. This method of measurement shall apply to a sexually oriented business that is the sole tenant, within one (1) building, located on one (1) platted lot.

(2) Multiple tenants. Measurements shall be in a straight line, without regard to intervening structures or objects, from the nearest point of the occupied space of the sexually oriented business to the nearest property line of the protected property described in the above subsection (a) which requires separation. This method of measurement shall apply to a sexually oriented business that is a tenant within a multiple tenant building.

(3) Easements excluded. In calculating the distances described in subsections (b)(1) and (b)(2) above, easements (such as right-of-way, drainage and utility easements) that are zoned as, or abut, a protected property classification, shall not be considered as part of the protected property.

(4) Survey. A certified survey prepared by a licensed surveyor or licensed engineer showing distance measurements in accordance with subsections (1) and (2) of this subsection shall be submitted to the director of development services for all sexually oriented businesses as part of the application for the certificate of occupancy for the use. Any certificate of occupancy issued for a building or facility used to conduct a sexually oriented business without submission of the required survey shall be null and void.

(5) Property uses and distances for original applications shall be determined as of the time that the application is filed. If a renewal application is timely filed as provided in this section, the property uses and measurements for the renewal application shall be determined as of the time that the original application for the sexually oriented business was filed. If not timely filed, renewal applications shall be subject to the same fees and shall be treated in the same manner in all respects as original applications.

(d) In the event that the chief determines that an applicant is not eligible for a permit, the applicant shall be given notice in writing of the reasons for the denial within thirty (30) days of the receipt of its application by the chief of police provided that the applicant may request, in writing, that such period be extended for an additional period of not more than ten (10) days at any time before the notice is issued in order to make modifications necessary to comply with this section.

(e) An applicant may appeal the decision of the chief regarding such denial by filing a written request for a hearing within twenty (20) days after he is given notice of such denial. The chief's decision on the application shall be final unless an appeal is timely filed. An appeal shall not stay the chief's decision on the issuance of a permit. The applicant's written request for a hearing shall set out the grounds on which the denial is challenged.

(1) The hearing shall be conducted by a hearing official designated by the city man-

ager. Hearings shall be conducted by the hearing official. The hearing official shall not have participated in any investigation or decision relating to the denial of the permit. At the hearing the hearing official shall receive oral and written testimony regarding the application. Hearings shall be conducted under rules issued by the chief, which shall be consistent with the nature of the proceedings and shall ensure that each party may present evidence, cross-examine witnesses and be represented by legal counsel.

(2) The hearing official shall conduct the hearing within twenty (20) days after receipt of the applicant's written request for a hearing unless the applicant requests an extension in writing. The hearing official shall render a written decision and issue notice thereof to the applicant within five (5) days after the conclusion of the hearing. The written decision of the hearing official shall be final subject to the provisions of section 21-252 of this article.

(f) Failure of the chief to give timely notice of his action on an application, or failure of the hearing official to timely conduct or give notice of his decision on an appeal from the chief's decision shall entitle the applicant to the issuance of a temporary permit upon written demand therefor filed by the applicant with the chief unless the delay resulted from a written request for a delay or deferral by the applicant. Such temporary permit shall only be valid until the third day after the chief gives notice of his action on the application or the hearing official gives notice of his decision on the appeal, as applicable.

(g) In any instance in which the applicant's establishment is to be situated within one thousand (1,000) feet, as measured hereunder, from another proposed establishment for which a previously filed permit application has been denied, and the previously filed application is still subject to appeals, the chief may grant the permit on a conditional basis, subject to the outcome of the appeals on the previous application. A permit so issued may be withdrawn and denied effective upon the third day after notice thereof is given to the operator following the resolution of the appeals on the prior permit. In case of denial the applicant shall have the same rights of appeal hereunder as if the permit had been denied in the first instance.

(h) The provisions of subsection (b)(2) above shall not be construed to prohibit a sexually oriented business for which there is a permit from relocating to another location situated within one thousand (1,000) feet of its existing location, provided that the proposed location complies with all applicable requirements of this article other than its proximity to its own existing sexually oriented business location. An original permit application shall be required to be filed for the proposed relocation, and the chief shall conditionally grant the application on the stipulation that the permit will not actually be issued until the applicant discontinues operation at its existing location and surrenders the permit for its existing location. Any such relocation must be completed within one hundred eighty (180) days from the date that the permit is conditionally granted or the conditional grant of the application will become void. Pending the removal of the sexually oriented business to its new location, both the old and new locations shall be deemed to be operating under a permit for purpose of measurements to locations of other proposed sexually oriented business for which applications may be filed.

(i) If an application is rejected based on an inspection of the premises only, the chief of police shall provide to the owner-operator a notice of rejection within twenty (20) business days following the deadline to issue a permit or notice.

(j) An applicant may request a re-inspection only if the owner-operator:

(1) Submits the request, by certified mail, return receipt requested, within ten (10) business days subsequent to the receipt of the decision of the chief of police, and

(2) Pays to the city a nonrefundable inspection fee of one hundred fifty dollars ($150.00) with the submission of the request.

(Ord. No. 2012-12-06-0933, §§ 4, 6, 12-6-12)

Sec. 21-212. Same transfer upon change.

(a) A permit is personal to the owner(s) and the operator designated in the application who holds the permit on the owner(s)' behalf as the owner(s)' agent, provided it may be transferred pursuant to this section. A transfer application must be filed by the tenth day next following any change of the owner(s) or operator designated on the application. In the event that a transfer application is not timely filed, then the permit shall be invalid for any purpose relating to the operation of the sexually oriented business, and any transfer shall require the filing of an original permit application and be subject to the regulations applicable thereto. For purposes of measurements between sexually oriented businesses under section 21-211 of this Code, an establishment for which the permit has become invalid by operation of this section shall be treated as though it had a permit until the permit is revoked pursuant to section 21-213 of this Code.

(b) The chief shall prescribe a form on which permit transfer applications shall be made. The form shall include a statement under oath that the original application remains correct as previously submitted in all respects except those that are amended hereby. The transfer application shall contain a statement under oath that the individual signing the transfer application has personal knowledge of the information contained therein and that the information is true and correct and shall not be complete unless accompanied by a nonrefundable transfer fee of one hundred dollars ($100.00). Transfer applications shall be filed in the same place and at the same time as original applications and the fee shall be payable in the same manner as for original applications, as provided in section 21-206 of this Code.

(c) Transfers shall be reviewed, issued and subject to appeal in the same manner as original applications, pursuant to section 21-211 of this Code, except that subsections 21-211(b)(1), (2), and (3) shall not apply, and they shall be issued for the remaining term of the permit to be transferred.

(d) No change in ownership of a sexually oriented business or transfer of a permit for a sexually oriented business shall be allowed during the pendency of any administrative proceeding under section 21-213 of this article, from the time that any request for revocation or suspension has been filed with the hearing official until the hearing official's order is final. Any such transfer or attempted transfer shall confer no rights whatsoever in the permit for the sexually oriented business to the putative transferee.
(Ord. No. 2012-12-06-0933, §§ 4, 6, 12-6-12)

Sec. 21-213. Same—Revocation or suspension of permit.

(a) The city attorney shall have the authority to request the revocation of a permit for any one or more of the following reasons:

(1) The owner or operator of the permitted sexually oriented business knowingly allowed a person under eighteen (18) years of age to enter an sexually oriented business;

(2) The permitted sexually oriented business does not conform to the provisions of this article;

(3) Three (3) or more cumulative violations of any of the specified criminal acts or of the provisions contained in this article have occurred on the premises of the permitted sexually oriented business. These violations must have occurred in a consecutive period of twelve (12) months, and the owner, operator or any manager, or floor-manager licensed under this article:

a. Knowingly allowed such violations to occur;

b. Did not make a reasonable effort to prevent the occurrence of such violations; or

c. Should have known that such violations were occurring or did occur;

(4) The operator of the permitted sexually oriented business gave materially false, fraudulent or untruthful information on the original, renewal or transfer application form;

(5) The sexually oriented business has not been open for business for a period of

thirty (30) consecutive days, unless due to circumstances beyond the control of the owner, and the owner is proceeding with due diligence, given all attendant circumstances, to open or reopen the establishment;

(6) There was a change of owner or operator for which a transfer application was not timely filed pursuant to section 21-212 of this Code; or

(7) The permit was erroneously issued in contravention of the criteria of this article.

(b) The city attorney shall have sole authority to initiate any action for revocation of a permit; provided, that the chief may request that the city attorney give priority to any such action based upon the number or nature of violations involving a particular sexually oriented business.

(c) Prior to revocation of a permit, the city attorney, with the assistance of the chief, shall investigate the grounds alleged to determine whether probable cause for revocation may exist and, if so, shall notify the owner(s) and operator in writing of reasons for the proposed revocation and grant such owner(s) and operator the opportunity to appear before a designated hearing official at a time and place specified within such notice. The hearing official shall not have participated in any investigation of the alleged grounds for the revocation. Such hearing shall be held not less than twenty (20) days after the notice is given. Hearings shall be conducted under rules issued by the chief. Such rules shall be consistent with the nature of the proceedings and shall ensure that each party may present evidence, cross-examine witnesses and be represented by legal counsel. If, after the hearing, the hearing official finds that the permit should be revoked, he shall issue a written order revoking such permit which shall be effective upon the date the written notice is given. If the hearing official determines, based upon the nature of the violation, that the ends of justice would be served by a suspension in lieu of a revocation, he may suspend the operation of the permit for a period of time to be stated in the order of suspension.

(d) A sexually oriented business shall be treated as having a permit for purposes of measurements under subsection 21-211(b)(2) of this Code, pending the final disposition of any court action involving judicial review of a permit revocation. An establishment holding a suspended permit shall be treated as having a permit for the purpose of measurements made under subsection 21-211(b)(2) of this Code.

(Ord. No. 2012-12-06-0933, §§ 4, 6, 12-6-12)

Sec. 21-214. Same—Other permit provisions.

(a) A permit is valid only at the location for which it is issued.

(b) It shall be unlawful for any person to counterfeit, forge, change, deface, or alter a permit.

(c) A permit may be cancelled upon written request of the owner(s) or operator and surrender of the permit to the chief. Permits shall be surrendered at the same place and at the same time as provided in section 21-206 of this article. The surrender of a permit shall be effective upon its filing in the office of the police department.

(d) A permit shall not constitute authorization to operate the sexually oriented business as an adult arcade or adult mini-theatre as that term is defined herein and in division 4 of this article. Each sexually oriented business that also constitutes an adult arcade or adult mini-theatre shall require an additional permit under division 4 of this article.

(Ord. No. 2012-12-06-0933, §§ 4, 6, 12-6-12)

Sec. 21-215. Exterior portions of sexually oriented business.

It shall be unlawful for an owner or operator of a sexually oriented business to allow the merchandise or activities of the sexually oriented business to be visible from any point outside such sexually oriented business.

(Ord. No. 2012-12-06-0933, §§ 4, 6, 12-6-12)

Sec. 21-216. Persons younger than eighteen (18) prohibited from entry; attendant required.

(a) It shall be unlawful to allow a person who is younger than eighteen (18) years of age to enter or be on the premises of a sexually oriented business at any time that the sexually oriented business is open for business.

(b) It shall be the duty of the operator of each sexually oriented business to ensure that an attendant is stationed at each public entrance to the sexually oriented business at all times during such sexually oriented business's regular business hours. It shall be the duty of the attendant to not allow any person under the age of eighteen (18) years to enter the sexually oriented business. It shall be presumed that an attendant knew a person was under the age of eighteen (18) unless such attendant asked for and was furnished:

(1) A valid operator's, commercial operator's, or chauffeur's driver's license, or

(2) A valid personal identification certificate issued by the Texas Department of Public Safety reflecting that such person is eighteen (18) years of age or older.

(Ord. No. 2012-12-06-0933, §§ 4, 6, 12-6-12)

Sec. 21-217. Notices.

(a) Any notice required or permitted to be given by the chief or any other city office, division, department or other agency under this article to any applicant, operator or owner of a sexually oriented business may be given either by personal delivery or by United States mail addressed to the most recent address as specified in the application for the permit, or transfer application which has been received by the chief or any notice of address change which has been received by the chief. Notices mailed as above shall be deemed given upon their deposit in the United States mail. In the event that any notice given by mail is returned by the postal service, the chief shall cause it to be posted at the principal entrance to the establishment.

(b) Any notice required or permitted to be given to the chief by any person under this article shall not be deemed given until and unless it is received by the police department at the times and in the manner provided for filing of applications in section 21-206 of this article.

(c) It shall be the duty of each owner who is designated on the permit application and each operator to furnish notice to the chief in writing of any change of residence or mailing address.

(Ord. No. 2012-12-06-0933, §§ 4, 6, 12-6-12)

Sec. 21-218. Configuration of buildings.

An individual or entity violates this article if he operates a sexually oriented business establishment which fails to meet the configuration requirements in this section. The layout or interior construction design of any such establishment must include each of the following:

(1) Excepting a door that may serve as an entrance or exit to the building of the sexually oriented business and excepting the interior of lavatories, for each area to which a customer or patron on the premises is allowed access, the following requirements are applicable:

a. Each interior door must be made of clear glass that is no thicker than one-half-inch or of wood that is no thicker than one and one-half (1½) inches.

b. All wooden doors must contain a clear glass window that is no thicker than one-half-inch and at least twelve (12) inches wide by twelve (12) inches high. Said window must be unobstructed at all times and situated on the door at a height no less than four and one-half (4½) feet and no greater than six (6) feet from the ground.

c. Excepting the doorknob, no interior door may be made of metal, reinforced by metal, or be thicker than allowed herein.

d. No interior door may have more than one (1) throw from the doorknob or in any other manner latch from more than one (1) place into a striker plate whenever the door is closed.

e. Excepting one (1) lock that forms part of the doorknob and is neither a deadbolt nor chain, no interior door may have a deadbolt, chain, and any type of lock.

f. Each interior doorframe to a wooden door may not be reinforced with any type of metal, excepting a cubic area that is part of the striker plate in the

dimensions of not more than six (6) inches long by two (2) inches wide by six (6) inches high.

(2) Excepting conduits for plumbing, heating, air conditioning, ventilation, electrical service, cable or satellite television, or food or drink service, no opening is allowed:

a. In any wall;

b. Partition;

c. Screen;

d. Lavatory stall;

e. Dressing room; or

f. Any other barrier between viewing areas or toilettes.

(3) The conduits for plumbing, heating, air conditioning, ventilation, electrical service, and cable or satellite television must be so screened or otherwise configured to prevent their use as openings that would allow any portion of an individual to penetrate the wall or barrier between the viewing areas or toilettes.

(4) During hours of operation, the light fixtures shall be kept on at a sufficient intensity to illuminate by not less than one (1) foot-candle as measured at four (4) feet above the level of the floor and at every area where customers or patrons are allowed.

(5) Excepting the lavatories, no area to which patrons or customers have access, shall be less than three hundred (300) square feet.

(Ord. No. 2012-12-06-0933, §§ 4, 6, 12-6-12)

Sec. 21-219. Access, supervision.

(a) It shall be unlawful for any owner, operator, manager, or floor-manager of any sexually oriented business to permit any employee to provide any entertainment to any customer in any separate area within a sexually oriented business to which entry or access is blocked or obscured by any door, curtain or other barrier, regardless of whether entry to such separate area is by invitation, admission fee, club membership fee or any form of gratuity or consideration.

(b) It shall be the duty of any owner, operator or manager, or floor-manager of a sexually oriented business to allow immediate access by any police officer, city fire department official or health officer to any portion of the premises of the sexually oriented business upon request for purpose of inspection of such premises for compliance with this article, or any other applicable law.

(c) It shall be the duty of any owner, operator or manager of a sexually oriented business to ensure that at least one (1) floor-manager is on duty on the premises at all times during which the sexually oriented business is open for business or during which customers are on the premises.

(d) It shall be the duty of any owner, operator or manager of a sexually oriented business to ensure that all persons acting as managers, floor managers or entertainers on the premises hold and display permits under this article, and that entertainers comply with section 21-234 of this article.

(e) It shall be the duty of the manager to ensure that no entertainer or floor-manager is allowed or suffered to conduct any business on the premises of a sexually oriented business unless the manager thereof has in his possession or control a sexually oriented business permit for the floor-manager, or entertainer. On-site cards shall be made available for immediate inspection by any police officer, fire department official or health officer. Entertainers working at more than one sexually oriented business may retrieve their on-site cards upon departing the premises in order to present them to a manager at any other sexually oriented business where such persons are employed to hold while the entertainer remains on those premises.

(f) It shall be the duty of any owner, operator or manager to maintain a complete list of all persons, including names and addresses, who conduct any business on the premises and are required to obtain a permit under this article.

(Ord. No. 2012-12-06-0933, §§ 4, 6, 12-6-12)

Sec. 21-220. Hours of operation.

(a) A sexually oriented business establishment shall not allow customers or patrons onto the premises during the hours of 2:15 a.m. through 7:00 a.m. on any day of the week.

(b) It shall be unlawful for a sexually oriented business establishment to allow customers or patrons onto the premises during the proscribed hours as provided in subsection (a).
(Ord. No. 2012-12-06-0933, §§ 4, 6, 12-6-12)

Sec. 21-221. Posting of permit.

(a) The sexually oriented business permit shall be framed and posted at the main entrance of the establishment, in such a manner that it is plainly visible to the general public entering the establishment, at a height of no less than four (4) feet and no more than six (6) feet from the ground. It shall be unlawful to obstruct from plain view a posted sexually oriented business permit.

(b) It shall be unlawful to fail or refuse to post the sexually oriented business permit.

(c) If a notice of revocation is delivered, the chief of police shall remove the sexually oriented business permit from the wall of the sexually oriented business establishment; post the notice of revocation on the exterior wall next to the front entrance of the sexually oriented business establishment; and, post a copy of the notice of revocation on the exterior side of each door that may serve as an entrance or exit to the sexually oriented business establishment.

(d) It shall be unlawful for an individual other than the chief of police to destroy or remove a posted notice of revocation.
(Ord. No. 2012-12-06-0933, §§ 4, 6, 12-6-12)

Sec. 21-222. Same—Records.

(a) The owner-operator, manager, or floor-manager of any sexually oriented business shall keep on the premises a register of all employees of the sexually oriented business establishment that includes a copy of a photographic identification card issued by a governmental authority of the United States of America or any state, possession, commonwealth, or territory thereof to the employee and:

(1) Each employee's true name;

(2) Aliases;

(3) Gender;

(4) Height;

(5) Weight;

(6) Color of hair and eyes;

(7) Date of birth;

(8) Date of initial employment;

(9) Date of termination, if applicable; and

(10) Specific job or employment duties.

(b) The register shall be maintained for all current employees and ex-employees employed at any time during the preceding thirty-six (36) months, except that the ordinance shall not operate to require this information prior to its effective date.

(c) It shall be unlawful to fail to maintain the register or refuse to present the register to a peace officer upon request.
(Ord. No. 2012-12-06-0933, §§ 4, 6, 12-6-12)

DIVISION 3. SEXUALLY ORIENTED BUSINESS EMPLOYEE PERMITS, OPERATIONS, AND CONDUCT

Sec. 21-223. Definitions.

As used in this division, the following words and terms shall have the meanings ascribed to them in this division, unless the context of their usage clearly indicates another meaning:

Conduct any business in a sexually oriented business. Any person who does any one or more of the following shall be deemed to be conducting business in a sexually oriented business:

(1) Operates a cash register, cash drawer or other depository on the premises of the sexually oriented business where cash funds or records of credit card or other credit transactions generated in any manner by the operation of the sexually oriented business or the activities of the premises of the sexually oriented business;

(2) Displays or takes orders from any customer for any merchandise, goods, entertainment or other services offered on the premises of the sexually oriented business;

(3) Delivers or provides to any customer any merchandise, goods, entertainment or other services offered on the premises of the sexually oriented business;

(4) Acts as a door attendant to regulate entry of customers or other persons into the premises of the sexually oriented business; or

(5) Supervises or manages other persons in the performance of any of the foregoing activities on the premises of the sexually oriented business.

Customer means any person who:

(1) Is allowed to enter a sexually oriented business or any portion of a sexually oriented business in return for the payment of an admission fee, membership fee or any other form of consideration or gratuity;

(2) Enters a sexually oriented business or any portion of a sexually oriented business and purchases, rents or otherwise partakes of any merchandise, goods, entertainment or other services offered therein; or

(3) Is a member of and on the premises of a sexually oriented business operating as a private or membership club or a sexually oriented business that reserves any portion of the premises of the sexually oriented business as a private or membership club.

Chief or *chief of police* means the chief of police and such employee(s) of the police department as he may designate to perform the duties of the chief under this article.

Employee means any person who renders any service whatsoever to the customers of a sexually oriented business, works in or about a sexually oriented business or who conducts any business in a sexually oriented business and who receives or has the expectation of receiving any compensation from the operator, or customers of the sexually oriented business. By way of example, rather than limitation, the term includes the operator and other management personnel, clerks, dancers, models and other entertainers, food and beverage preparation and service personnel, door persons, bouncers, and cashiers. It is expressly intended that this definition cover not only conventional employer-employee relationships but also independent contractor relationships, agency relationships, and any other scheme or system whereby the "employee" has an expectation of receiving compensation, tips, or other benefits from the sexually oriented business or its customers in exchange for services performed.

Entertainer shall mean any individual, male or female, who poses, dances, or knowingly or intentionally appears for the purpose of being observed or viewed for any reason by any individual while in a state of nudity, semi-nudity, or while engaging in specified sexual activities.

Entertainer's permit shall mean a license issued to an individual as lawful authority to act as an entertainer in a sexually oriented business.

Entertainment shall mean:

(1) Any live exhibition, display or performance;

(2) Any still picture(s) or movie picture(s), whether mechanically, electrically or electronically displayed; or

(3) Any combination of the foregoing, in which the specified anatomical areas or specified sexual activities are depicted.

Manager means any person who supervises, directs or manages any employee of an sexually oriented business or any other person who conducts any business in an sexually oriented business with respect to any activity conducted on the premises of the sexually oriented business, including any "on-site manager."

Operator means the manager or other natural person principally in charge of an sexually oriented business.

Owner or *owners* means the proprietor if a sole proprietorship, all general partners if a partnership, or the corporation if a corporation.

Permit means a current, valid permit issued by the chief pursuant to the terms of this article.

Separate area means any portion of the interior of a sexually oriented business separated from any other portion of a sexually oriented business by any wall, partition or other divider.

Specified anatomical areas:

(1) Less than completely and opaquely covered:

a. Human genitals, pubic region or pubic hair;

b. Buttock;

c. Any portion of the female breast that is situated below a point immediately above the top of the areola; or

d. Any combination of the foregoing; or

(2) Human male genitals in a discernibly erect state, even if completely and opaquely covered.

Sexually oriented business or *SOB* means an adult arcade, adult bookstore or adult video store, adult cabaret, adult motel, adult mini-theater, escort agency, nude modeling studio, unlicensed massage parlor, or any other establishment whose one of its primary business purposes is the offering of a service, live entertainment or the selling, renting, or exhibiting of devices or any specified anatomical parts intended to provide sexual stimulation or sexual gratification to the customer and which is distinguished by or characterized by an emphasis on matter depicting, describing or relating to specified sexual activities or specified anatomical areas. The term "sexually oriented business" shall not be construed to include:

(1) Any business operated by or employing licensed psychologists, licensed physical therapists, licensed athletic trainers, licensed cosmetologists, or licensed barbers performing functions authorized under the licenses held;

(2) Any business operated by or employing licensed physicians or licensed chiropractors engaged in practicing the healing arts; or

(3) Any retail establishment whose major business is the offering of wearing apparel for sale to customers.

Sexually oriented business [permit] or *SOB permit* shall mean the original license issued to an owner-operator of a sexually oriented business as lawful authority to operate a sexually oriented business.

SOB shall mean sexually oriented business.

Specified sexual activity means actual and simulated human genitals in a state of sexual stimulation or arousal, even if completely and opaquely covered, actual or simulated human masturbation, sexual intercourse, sodomy, fellatio, cunnilingus, fondling or other erotic touching of human genitals, pubic region, buttock or female breast, and excretory functions as part of or in connection with the above described activity or any act of bestiality, masturbation, sexual intercourse, sodomy, fellatio, sadomasochism, or physical contact with a person's own or another person's specified anatomical area.
(Ord. No. 2012-12-06-0933, §§ 4, 6, 12-6-12)

Sec. 21-224. Entertainer, manager, and floor manager permit required.

(a) It shall be unlawful for any person who does not hold a permit to act as an entertainer, a manager, or floor-manager of or in a sexually oriented business.

(b) It shall be the duty of the operator and owners of each sexually oriented business to ensure that no person acts as an entertainer, manager, or floor-manager of or in the sexually oriented business unless that person holds a permit.
(Ord. No. 2012-12-06-0933, §§ 4, 6, 12-6-12)

Sec. 21-225. Process for requesting an SOB entertainer, manager, and floor manager permit.

(a) The chief of police shall create a form for each type of permit consistent with the provisions of this article.

(b) An applicant may obtain a form from the city government website page (sanantonio.gov/sapd) or at the San Antonio Police Department (SAPD) Headquarters Records Unit. Applications shall be accepted Tuesday through Thursday, ex-

cluding holidays, between the hours of 1:00 p.m. and 4:00 pm. Applications shall not be accepted at any other time or on any other day.

(c) At the time that the chief of police receives an application, the applicant shall pay the required fee of one hundred fifty dollars ($150.00) at the records unit service window. The applicant will receive a receipt and paperwork from the records division along with their completed application and submit said information and waiver form to the identification division. The identification division shall take fingerprints and generate an SOB permit number. The applicant will then be photographed at the identification division.

(d) All photographs and applications shall be used to perform a background investigation and for the purpose of photographic identification of permit holders, and shall be kept on record with the chief of police while the applicant possesses a valid permit, and for a period of five (5) years after the expiration, revocation, or denial of the permit.

(e) All photographs of applicants shall be destroyed at the expiration of five (5) years after the expiration, revocation, or denial of the permit, but all applicants submitting new applications shall be required to comply with photograph and fingerprint requirements in this section.

(f) The police department shall conduct a criminal background check and verify the applicant is eligible to receive an SOB entertainer, manager, or floor-manager permit. All application information related to entertainer's permits shall be held confidential by the police department.
(Ord. No. 2012-12-06-0933, §§ 4, 6, 12-6-12)

Sec. 21-226. Qualifications and specifications—Manager's permit and temporary manager's permit.

(a) Unless an individual is disqualified under one or more of the provisions of this section, an individual who performs the following acts shall be qualified for a permit:

(1) Pay one hundred fifty dollars ($150.00) as a non-refundable processing fee to the city;

(2) Answer under oath accurately and completely the requests for information contained on the form for the permit;

(3) Provide proof of identity by presenting to the chief a valid and lawful photographic identification card that was issued to the individual by a governmental authority of the United States of America or any state, possession, commonwealth, or territory thereof;

(4) Provide proof that the applicant is at least eighteen (18) years of age or older; and

(5) Appear at the place designated by the chief of police and submit to being photographed and fingerprinted.

(b) If on the basis of substantial evidence, the chief concludes that one of the following conditions exists then an individual shall be disqualified from receiving the manager's permit:

(1) The individual is a sex offender subject to registration under V.T.C.A., Code of Criminal Procedure ch. 62;

(2) The individual is convicted of a felony, not included in section 21-230, in any jurisdiction during the preceding ten (10) years;

(3) The individual has been convicted of or been placed on deferred adjudication for a specified criminal act, not included in section 21-230, in any jurisdiction, during the preceding ten (10) years;

(4) The individual has submitted false information on a form for the permit or the individual has responded falsely to inquiries in a background investigation;

(5) At the time of application, the individual is disqualified from receiving or holding a permit pursuant to section 21-230 of this article; or

(6) At the time of application, the individual has a suspended permit or has had a permit revoked within the past calendar year, pursuant to section 21-230 of this article.

(c) An individual who applies for a manager's permit shall provide the following information:

(1) The information contained in a valid and lawful photographic identification card that was issued to the individual by a governmental authority of the United States of America or any state, possession, commonwealth, or territory thereof;

(2) The name and address of the sexually oriented business for which the individual requests the permit;

(3) Whether the individual has been convicted of or placed on deferred adjudication for an offense for which the individual is subject to registration under V.T.C.A., Code of Criminal Procedure ch. 62, along with a list of each of the aforementioned offenses;

(4) Excluding traffic offenses, a list of each misdemeanor or felony, not included in subsection (c)(3), for which the individual has been convicted or received deferred adjudication during the past ten (10) years;

(5) Excluding traffic offenses, a list of each misdemeanor or felony, not included in subsection (c)(3), for which the individual is under community supervision at the time of application;

(6) The name and address of each court and jurisdiction listed in response to subsection (c)(3) herein;

(7) The name and address of each court and jurisdiction for those offenses that the individual is under community supervision at the time of application in response to subsection (e)(3);

(8) A signed waiver and authorization allowing the chief to request criminal history reports from pertinent federal, state, and local law enforcement for the individual submitting an application; and

(9) A driver's license number of a state, possession, commonwealth or territory of the United States of America, if issued, and, a Social Security number of the United States of America, if issued.

(d) A manager's permit shall consist of one (1) photographic identification card that contains the following information: a photograph of the manager; the name and address of the sexually oriented business at which the manager's permit is valid; the permit identification number assigned by the city; the date of issuance; the effective date; and, the date of expiration.

(e) A temporary manager's permit shall be issued within three (3) business days of the application when:

(1) The applicant for a manager's permit has submitted a completed application pursuant to the provisions herein;

(2) The applicant supplies the police department with a copy of a valid and lawful photographic identification card that was issued to the individual by a governmental authority of the United States of America or any state, possession, commonwealth, or territory thereof;

(3) A preliminary investigation indicates that the applicant is otherwise qualified under this section for the issuance of a temporary manager's permit; and

(4) The applicant has not applied for or been granted a temporary manager's permit in the year preceding the application.

(f) Each temporary manager's permit is valid for thirty (30) calendar days from the date of issuance or until the issuance of a manager's permit, whichever occurs first.
(Ord. No. 2012-12-06-0933, §§ 4, 6, 12-6-12)

Sec. 21-227. Same—Floor-manager's and temporary floor-manager's permit.

(a) Unless an individual is disqualified under one or more of the provisions of this article, an individual who performs the following acts shall be qualified for a floor-manager's permit:

(1) Pay one hundred fifty dollars ($150.00) as a nonrefundable processing fee to the city, and

(2) Perform those acts detailed at subsection 21-226(c) herein.

(b) The following conditions shall disqualify an individual from obtaining a floor-manager's permit: those conditions specified at subsection 21-226(b) herein.

(c) An individual who applies for a floor-manager's permit shall provide that information specified at subsection 21-226(c).

(d) A floor-manager's permit shall consist of two (2) photographic identification cards that contains a photograph of the floor-manager, the permit identification number assigned by the city, the date of issuance, the effective date, and the date of expiration.

(e) A temporary floor-manager's permit shall be issued within three (3) business days of application for same if:

(1) The applicant has submitted a completed application pursuant to the provisions herein and paid one hundred fifty dollars ($150.00) as a nonrefundable processing fee to the city;

(2) The applicant supplies the police department with copy of a valid and lawful photographic identification card that was issued to the individual by a governmental authority of the United States of America or any state, possession, commonwealth, or territory thereof;

(3) A preliminary investigation indicates that the applicant is otherwise qualified under this section for the issuance of a temporary floor-manager's permit; and

(4) The applicant has not applied for or been granted a temporary floor-manager's permit in the year preceding the application.

(f) Each temporary floor-manager's permit is valid for ten (10) business days from the date of issuance.

(Ord. No. 2012-12-06-0933, §§ 4, 6, 12-6-12)

Sec. 21-228. Same—Entertainer's permit and temporary entertainer's permit.

(a) Unless an individual is disqualified under one or more of the provisions of this article, an individual who performs the following acts shall be qualified for an entertainer's permit:

(1) Pay one hundred fifty dollars ($150.00) as a nonrefundable processing fee to the city, and

(2) Perform those acts detailed at subsection 21-226(c).

(b) The following conditions shall disqualify an individual from obtaining an entertainer's permit: those conditions specified at subsections 21-226(b) and (c), and section 21-230.

(c) An individual who applies for an entertainer's permit shall provide the information specified in subsection 21-226(c).

(d) An entertainer's permit shall consist of two (2) identification cards that contain a photograph of the entertainer, the permit identification number assigned by the city, the date of issuance, the effective date, and the date of expiration.

(e) A temporary entertainer's permit shall consist of two (2) identification cards that contain the permit identification number assigned by the city, the date of issuance, the effective date, and the date of expiration.

(f) A temporary entertainer's permit shall be issued within three (3) business days of the application when:

(1) The applicant for a temporary entertainer's permit has submitted a completed application to the police department identification division, pursuant to the provisions herein, and prior to 3:00 p.m. of the last business day before a scheduled performance by applicant;

(2) The applicant supplies the police department with a copy of a valid and lawful photographic identification card that was issued to the individual by a governmental authority of the United States of America or any state, possession, commonwealth, or territory thereof;

(3) If the aforementioned photographic identification and signature of the applicant for a temporary entertainer's permit are not available at the time the application for a temporary entertainer's permit is submitted to the police department, a legible copy of said identification and signature shall be transmitted via facsimile transmission or personal delivery to the police department by the manager, along

with a manager's affidavit, wherein the manager vouches for said identification and signature, in a manager's affidavit, prior to the time of the first performance by the temporary entertainer;

(4) Preliminary investigation warrants the issuance of a temporary entertainer's permit;

(5) The applicant pays one hundred fifty dollars ($150.00) as a nonrefundable processing fee to the city for each temporary entertainer's permit;

(6) The applicant designates the sole sexually oriented business at which the temporary entertainer's permit may be used;

(7) The applicant has not applied for or been granted more than three (3) temporary entertainer's permits during the calendar year for which the application is made and the sexually oriented business at which the permit will be used has not hosted more than eleven (11) entertainers who have a temporary entertainer's permit during the calendar year in which an applicant seeks a temporary entertainer's permit for use at said sexually oriented business.

(g) A temporary entertainer permit shall be valid for a period of not longer than seven (7) calendar days from the date of issuance and shall be valid at only one (1) designated sexually oriented business.
(Ord. No. 2012-12-06-0933, §§ 4, 6, 12-6-12)

Sec. 21-229. Term, transfer, amendment.

(a) A permit is valid for a term commencing upon issuance and expiring the 31st of December, unless previously revoked or suspended.

(b) A permit is personal to the named permit holder and is not valid for use by any other person.

(c) Each permit holder shall notify the police department of their new address within ten (10) days following any change of address.
(Ord. No. 2012-12-06-0933, §§ 4, 6, 12-6-12)

Sec. 21-230. Denial, revocation, or refusal to renew permits.

Any of the following offenses shall consist of grounds for denial, revocation, or refusal to renew permits:

(1) Any of the following offenses as described in V.T.C.A., Penal Code ch. 43:
   a. Prostitution;
   b. Promotion of prostitution;
   c. Aggravated promotion of prostitution;
   d. Compelling prostitution;
   e. Obscenity;
   f. Sale, distribution or display of harmful material to a minor;
   g. Sexual performance by a child;
   h. Employment harmful to children; or
   i. Possession or promotion of child pornography;

(2) Any of the following offenses as described in V.T.C.A., Penal Code ch. 21:
   a. Public lewdness;
   b. Indecent exposure; or
   c. Indecency with a child;

(3) Sexual assault or aggravated sexual assault as described in V.T.C.A., Penal Code ch. 22;

(4) Harboring a runaway child as described in V.T.C.A., Penal Code ch. 25;

(5) Criminal attempt, conspiracy or solicitation to commit any of the above offenses;

(6) Human trafficking as described in V.T.C.A., Penal Code ch. 20A; or

(7) Any violation of this article.

The above-listed offenses shall be grounds for the denial, revocation or refusal for renewal of a permit under this division because persons who hold that permit are employed by sexually oriented businesses where there is a high degree of opportunity for unlawful sexual conduct or the solicitation thereof, lewd conduct, obscenity offenses, and conduct harmful to minors. Therefore,

the enumerated offenses are directly related to the duties and responsibilities authorized by the subject permit. There is a serious need to protect members of the public and fellow employees of sexually oriented business from persons who have the foregoing criminal histories.
(Ord. No. 2012-12-06-0933, §§ 4, 6, 12-6-12)

Sec. 21-231. Inspections and background checks; deadlines.

The police department shall conduct all necessary background investigations prior to the expiration of thirty (30) calendar days from the receipt of an application for a sexually oriented business permit for an entertainer, manager, or floor manager for the purpose of determining whether each applicant is in compliance with the provisions of this article, and based upon those findings, the chief of police shall either issue or reject the permit in accordance with the deadlines found in subsections 21-211(a) and (b).
(Ord. No. 2012-12-06-0933, §§ 4, 6, 12-6-12)

Sec. 21-232. Same—Denial of permits.

(a) No permit application shall be accepted nor shall a permit be issued to any person who does not provide proof that he is at least eighteen (18) years old. Any permit issued by virtue of any misrepresentation or error to any person under age eighteen (18) shall be void.

(b) In the event that the chief fails to issue or deny a permit application within the time specified herein, then the applicant shall, upon written request, be immediately issued a temporary permit which shall be valid until the third day after the applicant is given notice of the decision of the chief or the hearing officer.

(c) An applicant may appeal the decision of the chief regarding denial by filing a written request for a hearing within twenty (20) days after notice has been given of the denial. The chief's decision on the application shall be final unless an appeal is timely filed. An appeal shall not stay the chief's decision on the issuance of a permit. The applicant's written request for a hearing shall set out the grounds on which the denial is challenged.

(d) The hearing shall be conducted by a hearing official designated by the city manager. Hearings shall be conducted by the hearing official. The hearing official shall not have participated in any investigation or decision relating to the denial of the permit. At the hearing the hearing official shall receive oral and written testimony regarding the application. Hearings shall be conducted under rules issued by the chief, which shall be consistent with the nature of the proceedings and shall ensure that each party may present evidence, cross-examine witnesses and be represented by legal counsel.

(e) The hearing official shall conduct the hearing within twenty (20) days after receipt of the applicant's written request for a hearing unless the applicant requests an extension in writing. The hearing official shall render a written decision and issue notice thereof to the applicant within five (5) days after the conclusion of the hearing. The written decision of the hearing official shall be final subject to the provisions of section 21-252 of this article.
(Ord. No. 2012-12-06-0933, §§ 4, 6, 12-6-12)

Sec. 21-233. Same—Permits.

(a) Each permit issued by the chief shall consist of two (2) photographic identification cards, a personal card and an on-site card excepting a manager's permit.

(b) If any personal card or on-site card is lost or stolen, the holder thereof shall immediately notify the police department and request a replacement, which shall be issued for a fee of ten dollars ($10.00) within three (3) business days following verification of the identity of the holder.
(Ord. No. 2012-12-06-0933, §§ 4, 6, 12-6-12)

Sec. 21-234. Display.

(a) Each manager, floor-manager, and/or entertainer (temporary or otherwise) shall conspicuously display their personal card upon their person at all times while acting as an entertainer, floor-manager, or manager of or in a sexually oriented business.

(b) Each floor-manager or entertainer shall provide their on-site card to the manager in charge of the sexually oriented business to hold while the floor-manager or entertainer is on the premises.

(c) In any prosecution under this section, it shall be presumed that the actor did not have a permit unless the permit was in display as required under section (a) of this subsection.
(Ord. No. 2012-12-06-0933, §§ 4, 6, 12-6-12)

Sec. 21-235. Duties of owners, employees and customers.

(a) Notwithstanding any other provision in this article, owners are not criminally culpable for violations of employees, except that owners remain criminally culpable for their own and personal violations.

(b) Each manager, floor-manager, entertainer, and owner-operator shall comply with the provisions of this article.

(c) Each temporary manager, temporary floor-manager, and temporary entertainer shall comply with the provisions of this article.

(d) Each employee, customer, and patron shall comply with the provisions of this article.

(e) Each manager, floor-manager, temporary manager, and temporary floor-manager, and owner-operator shall ensure that each employee, customer, and patron complies with the provisions of this article.

(f) It shall be unlawful for a manager, floor-manager, temporary manager, or temporary floor-manager, or owner-operator to allow conduct described in this section of this article. Whenever an employee, customer, or patron fails to comply with this section of this article, it shall be presumed that a manager or floor-manager, temporary manager, or temporary floor-manager, allowed the prohibited conduct if the manager, floor-manager, temporary manager, or temporary floor-manager was present on the premises at the time of the violation.

(g) Three-foot rule.

(1) It shall be unlawful for any person to intentionally or knowingly entertain or appear in a state of semi-nudity on the premises of a sexually oriented business unless the person is more than three (3) feet from any patron or customer.

(2) It shall be unlawful for a patron or customer on the premises of a sexually oriented business to intentionally or knowingly approach within three (3) feet or less of a person who is entertaining or appearing in a state of semi-nudity.

(h) It shall be unlawful for any person entertaining or appearing in a state of semi-nudity at a sexually oriented business to accept a gratuity unless it is placed in a receptacle provided for receipt of gratuities or delivered hand-to hand without touching and with the hand of each person extended at least one and one-half (1½) feet away from the body of that person. The receptacle may not be located on any person or their clothing.

(i) It shall be unlawful for any permittee hereunder or operator of a sexually oriented business to allow any room within the establishment to be used for the purpose of live semi-nude entertainment unless the room is marked with a sign in typeface no less than one (1) inch in length per letter in such a manner that it is plainly visible to the general public at a height of no less than four (4) feet and no more than six (6) feet from the ground stating, "Three Foot Rule - It is a violation of the San Antonio City Code for a customer or patron to intentionally or knowingly approach within three feet or less of any person who is in a state of semi-nudity or entertaining."

(j) It shall be unlawful for any employee to be in a state of semi-nudity, or to perform specified sexual activities while in the presence of any customer or patron and while in an area within the sexually oriented business not subject to the direct line of site of a manager or floor-manager.

(k) It shall be unlawful for any employee to entertain while in a lavatory, or in a stairway or elevator used as access between floors.

(l) It shall be the duty of the owner-operator to ensure that there exists at least one (1) manager for the sexually oriented business at all times. It shall be the duty of each owner-operator or man-

ager of a sexually oriented business to ensure there are a sufficient number of managers or floor managers stationed in such a manner so that all patrons and customers are in view of at least one (1) floor-manager at all times, excepting patrons and customers in the lavatory.

(m) It shall be unlawful for a manager, floor-manager, owner-operator, or operator on the premises of any sexually oriented business to allow any individual to be on the premises of a sexually oriented business who is younger than eighteen (18) years of age. It shall be presumed that a manager, or floor-manager allowed the individual to be on the premises if the manager or floor-manager was present on the premises at the time the underage individual was present.

(n) It shall be unlawful for any individual to be on the premises of any sexually oriented business who is younger than eighteen (18) years of age.

(o) It shall be the duty of the owner-operator, or operator of any sexually oriented business to conform the interior of the premises to the specifications provided in this article.

(p) It shall be the duty of the owner-operator of any sexually oriented business to notify the chief of police and the director of development services, or their duly authorized representative, that the location is ready for the inspections required under this article prior to the expiration of any applicable deadline contained herein.

(q) It shall be the duty of the owner-operator of a sexually oriented business to post, display, and maintain free of obstruction, the following notices with typeface no less than one (1) inch in length per letter, at the entrance of the establishment, in such a manner that they are plainly visible to the general public at a height of no less than four (4) feet and no more than six (6) feet from the ground:

(1) "Three Foot Rule - It is a violation of the San Antonio City Code for a customer or patron to intentionally or knowingly approach within three feet or less of any person who is in a state of semi-nudity or entertaining."

(2) "No Minors - No individual under the age of eighteen is allowed inside the premises."

(3) "Patrons' conduct is being observed by management. Illegal conduct will not be permitted."

(4) The notices shall include the appropriate city ordinance number.

(r) It shall be unlawful to fail to post the notices herein required.
(Ord. No. 2012-12-06-0933, §§ 4, 6, 12-6-12)

DIVISION 4. PERMITS, CONDUCT, AND OPERATIONS OF ADULT ARCADES

Sec. 21-236. Definitions.

As used in this section, the following words shall have the meanings herein ascribed, unless the context of their use clearly indicates another meaning:

Adult arcade shall mean any "premises" to which members of the public or members of any club, group or association are admitted and permitted to use one or more arcade devices.

Adult arcade permit shall mean the original license issued to a duly authorized agent of an owner or operator of an adult arcade as lawful authority to operate an adult arcade.

Arcade device shall mean any coin, currency or slug operated or electronically or mechanically controlled machine or device that dispenses or effectuates the dispensing of "entertainment" that is intended for the viewing of five (5) or fewer persons in exchange for any payment or consideration.

Duly authorized agent shall mean an individual who has actual authority to file an application with the chief of police for an adult arcade permit on behalf of any association, corporation, individual, owner, operator, or person and who meets the requirements set forth in subsection 21-238(i) and is not disqualified per subsection 21-238(j) below.

Employee shall mean any person employed by an employer in consideration for monetary compensation or profit.

Entertainment shall mean: any live exhibition, display or performance; any still picture(s) or movie picture(s), whether mechanically, electri-

cally or electronically displayed; or any combination of the foregoing, in which specified sexual activities are depicted.

Individual shall mean a natural person.

Manager shall mean any individual holding a position in an adult arcade with the responsibility for direct supervision of the operation of the adult arcade and for monitoring and observing the areas of the adult arcade to which customers or patrons are admitted at times during which the adult arcade is open for business; or, at times during which customers or patrons are on the premises of the adult arcade.

Manager's permit shall mean a license issued to an individual as lawful authority to act as a manager of an adult arcade.

Operator shall mean the "individual" who is principally in charge of the management of the "adult arcade."

Owner shall include, but not be limited to, any equitable owner, any person having a possessory right to the land or building or the person occupying it, any part owner, joint owner, tenant in common, tenant in partnership, joint tenant or tenant by the entirety.

Premises shall mean a building; provided that if a building has been physically divided into separate units that each has its own individual means of ingress or egress to the exterior of the building and which are offered by lease or otherwise for separate use and control, then "premises" shall refer to each such separate unit.

Specified sexual activities or *specified anatomical areas* shall have the same meanings as proscribed in this article.
(Ord. No. 2012-12-06-0933, §§ 4, 6, 12-6-12)

Sec. 21-237. Permits required.

(a) It shall be unlawful for an individual, person, corporation, operator, owner, or association to operate an adult arcade within the city, unless the chief of police has issued an adult arcade permit to the adult arcade's duly authorized agent.

(b) It shall be unlawful for an individual to act as a manager of an adult arcade, unless the chief has issued a manager's permit to said individual.

(c) The adult arcade permit will be issued to the duly authorized agent, but will be issued in the name of the adult arcade and will be specific for that location only.
(Ord. No. 2012-12-06-0933, §§ 4, 6, 12-6-12)

Sec. 21-238. Process for requesting arcade permit.

(a) The chief of police shall create a form for each type of permit consistent with the provisions of this division.

(b) An applicant may obtain a form from the city government website page (sanantonio.gov/sapd) or at the San Antonio Police Department (SAPD or police department) Headquarters Records Unit. Applications shall be accepted Tuesday through Thursday, excluding holidays, between the hours of 1:00 p.m. and 4:00 p.m. Applications shall not be accepted at any other time or on any other day.

(c) At the time that the chief receives an application, the duly authorized agent shall pay a four hundred dollar ($400.00) nonrefundable processing fee to the city at the records unit service window. The applicant will receive a receipt and paperwork from the records division along with their completed application and submit said information and waiver form to the identification division. The identification division shall take fingerprints and generate an adult arcade permit number. The applicant will then be photographed at the identification division.

(d) All photographs shall be used to perform a background investigation and for the purpose of photographic identification of permit holders, and shall be kept on record with the chief of police while the applicant possesses a valid permit, and for a period of five (5) years after the expiration, revocation, or denial of the permit.

(e) All photographs of applicants shall be destroyed at the expiration of five (5) years after the expiration, revocation, or denial of the permit, but

all applicants submitting new applications shall be required to comply with photograph and fingerprint requirements in this section.

(f) All applicants shall submit to a criminal background check for the purpose of verifying the information requested in subsection (j).

(g) All fees required in this subsection are non-refundable. Payment of the fees shall be by cashier's check or money order and made payable to the city.

(h) It shall be unlawful to apply for an adult arcade permit, unless the individual who applies is a duly authorized agent and files an accurate and complete sworn affidavit at the time of filing the application in which the individual declares:

(1) The individual's identity;

(2) The identity of the association, corporation, individual, owner, operator, or person on whose behalf the individual seeks an adult arcade permit;

(3) The identity of the adult arcade;

(4) The identity of each association, corporation, individual, owner, operator or person with an ownership interest in the adult arcade;

(5) The basis for the actual authority as being one of the following:

a. The individual is the sole owner or operator;

b. The individual is the president, chief executive officer, or equivalent of a corporation that is an owner or operator and the individual also owns a majority of the issued voting stock for the corporation;

c. The individual is the president, chief executive officer, or equivalent of a corporation that is an owner or operator and the individual attaches a corporate resolution from the corporation's board of directors or from a majority of the corporation's voting stockholders wherein is authorized the application for the permit;

d. The individual is a general partner of a partnership that is an owner or operator; or

e. The individual is a manager (as defined by the Texas Limited Liability company Act) of a Texas Limited Liability Company that is an owner or operator;

f. State that all information is on the basis of personal knowledge; and

g. State that all information is true and correct and acknowledge that a false statement is subject to criminal penalty, including but not limited to charges of perjury.

(i) Unless a duly authorized agent is disqualified under one or more provisions of this article, an agent who performs the following acts shall be qualified to receive on behalf of an owner or operator an adult arcade permit:

(1) The duly authorized agent pays the required processing fee to the city;

(2) The duly authorized agent submits a diagram of the premises; and

(3) Allows an inspection of the premises by the police department.

(j) If on the basis of substantial evidence, the chief concludes that one or more of the following conditions exists then a duly authorized agent shall be disqualified from receiving an adult arcade permit for the adult arcade for which the permit is sought:

(1) The individual is a sex offender subject to registration under V.T.C.A., Code of Criminal Procedure ch. 62;

(2) If any owner or operator of the adult arcade is convicted of a felony in any jurisdiction in the past ten (10) years;

(3) If any owner or operator of the adult arcade has been convicted of or received deferred adjudication for a specified criminal act in any jurisdiction in the past ten (10) years;

(4) If the duly authorized agent, owner, or operator of the adult arcade has refused

to allow an inspection of the premises of the adult arcade by at least three (3) business days prior to a deadline to issue a permit or notice of rejection;

(5) If the duly authorized agent, owner, or operator of the adult arcade has failed to submit to the department of development services a diagram by at least ten (10) business days prior to the deadline to issue a permit or notice of rejection;

(6) If the duly authorized agent or any individual, owner, or operator of the adult arcade has submitted false or incomplete information on an application form for the permit or has falsely responded to inquiries in a background investigation;

(7) If the duly authorized agent or any owner or operator of the adult arcade has previously had an adult arcade permit revoked;

(8) If the duly authorized agent or any owner or operator of the adult arcade has an adult arcade permit that is currently suspended;

(9) If the adult arcade fails to conform to the configuration requirements set forth in section 21-246; or

(10) If the duly authorized agent or any owner or operator of the adult arcade has had an adult arcade permit revoked within the preceding year or is otherwise disqualified from receiving or holding a permit under this article.

(Ord. No. 2012-12-06-0933, §§ 4, 6, 12-6-12)

Sec. 21-239. Same—Manager's permit.

(a) An applicant may obtain a form from the city government website page (sanantonio.gov) or at the San Antonio Police Department (SAPD or police department) Headquarters Records Unit. Applications shall be accepted Tuesday through Thursday, excluding holidays, between the hours of 1:00 p.m. and 4:00 p.m. Applications shall not be accepted at any other time or on any other day.

(b) At the time that the chief receives an application, the applicant pays a one hundred fifty dollar ($150.00) non-refundable processing fee to the city at the records unit service window. The applicant will receive a receipt and paperwork from the records division along with their completed application and submit said information and waiver form to the identification division. The identification division shall take fingerprints and generate an adult arcade permit number. The applicant will then be photographed at the identification division.

(c) All photographs shall be used to perform a background investigation and for the purpose of photographic identification of permit holders, and shall be kept on record with the chief of police while the applicant possesses a valid permit, and for a period of five (5) years after the expiration, revocation, or denial of the permit.

(d) All photographs of applicants shall be destroyed at the expiration of five (5) years after the expiration, revocation, or denial of the permit, but all applicants submitting new applications shall be required to comply with photograph and fingerprint requirements in this section.

(e) All applicants shall submit to a criminal background check for the purpose of verifying the information requested in this division.

(f) All fees required in this subsection are non-refundable. Payment of the fees shall be by cashier's check or money order and made payable to the city.

(g) Unless an individual is disqualified under one or more of the provisions of this division, an individual who performs the following acts shall be qualified for a manager's permit:

(1) Pay the required processing fee;

(2) Answer under oath accurately and completely the requests for information contained on the form for the permit;

(3) Provide proof of identity by presenting to the chief a valid and lawful photographic identification card that was issued to the individual by a governmental authority of

the United States of America or any state, possession, commonwealth, or territory thereof; and

(4) Appear at the place designated by the chief to submit to being photographed and fingerprinted;

(5) Provide the following information:

a. The information contained in a valid and lawful photographic identification card that was issued to the individual by a governmental authority of the United States of America or any state, possession, commonwealth, or territory thereof;

b. The name and address of the adult arcade for which the individual requests the permit;

c. Whether the individual has been convicted of or placed on deferred adjudication for an offense for which the individual is subject to registration under V.T.C.A., Code of Criminal Procedure ch. 62, along with a list of each of the aforementioned offenses;

d. A list of each misdemeanor, excluding traffic offenses, or felony, not included in section 21-230, for which the individual has been convicted or received deferred adjudication during the past ten (10) years;

e. A list of each misdemeanor, excluding traffic offenses, or felony, not included in section 21-230, for which the individual is under community supervision at the time of application;

f. The name and address of each court and jurisdiction listed in response to the above;

g. The name and address of each court and jurisdiction for those offenses that the individual is under community supervision at the time of application in response to the above; and

h. A signed waiver and authorization allowing the chief to request criminal history reports from pertinent federal, state, and local law enforcement for the individual submitting an application.

(h) If on the basis of substantial evidence, the chief concludes that one of the following conditions exists then an individual shall be disqualified from receiving the manager's permit:

(1) The individual is a sex offender subject to registration under V.T.C.A., Code of Criminal Procedure ch. 62;

(2) The individual is convicted of a felony, not included in section 21-230, in any jurisdiction during the preceding ten (10) years;

(3) The individual has been convicted of or been placed on deferred adjudication for a specified criminal act, not included in subsection 21-230, in any jurisdiction, during the preceding ten (10) years;

(4) The individual has submitted false information on a form for the permit or the individual has responded falsely to inquiries in a background investigation;

(5) At the time of application, the individual is disqualified from receiving or holding a permit pursuant to this article; or

(6) At the time of application, the individual has a suspended permit or has had a permit revoked within the past calendar year, pursuant to this article.

(i) A manager's permit shall consist of one (1) photographic identification card that contains the following information: a photograph of the manager; the name and address of the adult arcade at which the manager's permit is valid; the full name of the manager; the date of issuance; the effective date; and, the date of expiration.
(Ord. No. 2012-12-06-0933, §§ 4, 6, 12-6-12)

Sec. 21-240. Amendment.

(a) An applicant or permit holder shall file an application amendment with the chief of police any time a prior statement contained on an application is known to the applicant to be materially incomplete or inaccurate because of changed circumstances.

(b) An applicant or permit holder shall file an application amendment with the chief of police any time a prior statement contained on an application is known to the applicant to be materially incomplete or inaccurate because the statement was incomplete or inaccurate at the time of filing.

(c) The time in which to file an application amendment is:

(1) Thirty (30) calendar days from the date of changed circumstances, or

(2) Thirty (30) calendar days from the date that the applicant knows that a prior statement was incomplete or inaccurate.

(d) It shall be unlawful for an applicant or permit holder to fail to comply with this section. (Ord. No. 2012-12-06-0933, §§ 4, 6, 12-6-12)

Sec. 21-240.5. Issuance or denial of permits; reinspection; delivery of notice.

(a) The chief of police shall issue the permits to an applicant who qualifies under the provisions of this division by the 30th day after receipt of an application;

(b) The chief of police shall issue a notice of rejection to an applicant who fails to qualify under the provisions of this division by the 30th day after receipt of an application;

(c) The chief shall conduct all necessary background investigations prior to the expiration of thirty (30) calendar days from the receipt of an application for an adult arcade permit or manager's permit for the purpose of determining whether each applicant is in compliance with the provisions of this division, and based upon those findings, the chief shall either issue or reject the permit in accordance with the deadlines herein stated.

(d) The chief, the director of the department of development services, or their designated representatives, and any other pertinent city department or the department's designated representatives, shall complete all inspections required for an application prior to the expiration of thirty (30) calendar days from receipt of the application for an adult arcade permit or manager's permit, and based upon those findings, the chief shall either issue or reject the permit in accordance with the deadlines herein designated.

(e) If an application is rejected based on an inspection of the premises only, the chief shall provide to the duly authorized agent a notice of rejection within ten (10) business days following the deadline to issue a permit or notice.

(f) An applicant may request a re-inspection only if the duly authorized agent:

(1) Submits the request, by certified mail, return receipt requested, within ten (10) business days following the receipt of the decision of the chief, and

(2) Pays to the city a nonrefundable inspection fee of one hundred fifty dollars ($150.00) with the submission of the request.

(g) The chief, the director of the department of development services, or their designated representatives, and any other pertinent city department or the department's designated representatives, shall complete a re-inspection and either issue or reject a permit based upon a request for re-inspection not more than fifteen (15) business days from the date of receipt of the request for re-inspection. If upon re-inspection the chief concludes the noted problems have not been remedied, the chief shall issue a notice of rejection and notify the applicant.

(h) The chief shall send the permit or notice of rejection to the applicant's address, as listed in the application by United States Postal Service postmarked by the final day as herein stated.

(i) Unless otherwise stated in this subsection, delivery by the United States Postal Service shall be presumed to be on the third business day after depositing the mail with the United States Postal Service, unless the applicant has proof to the contrary.

(j) In this subsection, the last known address of an applicant, contained in an application or an amendment, is presumed as the correct address. Whenever delivery to an address is authorized or

mandated under the provisions of this subsection, delivery to the presumed correct address is sufficient to comply under this subsection.

(k) Personal delivery or delivery by mail as prescribed in this subsection, shall be prima facie evidence that the chief has fulfilled his duty to deliver a permit, notice of rejection, notice of intention to revoke/suspend permit, notice of revocation/suspension, or denial of revocation/suspension.

(l) The chief shall issue the requested permit if the chief fails to deliver notice of rejection and does not have prima facie proof of the delivery or deposit, and if the applicant files a written request for issuance of the permit not later than the tenth business day following the deadline to issue a permit or notice. If the applicant fails to timely file a request for the permit upon the failure of the chief to issue the notice, then the applicant shall waive any appeal or cause of action that he may have herein.

(m) The deadlines imposed by this division may be extended by the mutual agreement of the chief of police and the pertinent individual, except as follows:

(1) The chief shall not agree to shorten any deadline;

(2) The chief shall not agree to extend any deadline wherein there is an express provision in this subsection that a failure to comply with the deadline shall result in an applicant's waiver of appeal or cause of action; or

(3) As otherwise prohibited within this subsection.

(n) Notwithstanding the provisions of this section, an applicant whose application is rejected under the provisions of this article and is aggrieved by the decision of the hearing officer may petition to any court having jurisdiction on the subject matter.

(Ord. No. 2012-12-06-0933, §§ 4, 6, 12-6-12)

Editor's note—Ord. No. 2012-12-06-0933, § 6, adopted December 6, 2012, enacted provisions intended for use as section 21-240. Inasmuch as there are already provisions so designated, and at the discretion of the editor, said provisions have been redesignated as section 21-240.5.

Sec. 21-241. Term of permit.

(a) Each adult arcade permit and manager's permit issued shall be valid until December 31st at which time it shall expire, unless the permit is sooner revoked or surrendered.

(b) Each adult arcade permit and manager's permit shall be subject to renewal as of its expiration date by filing a renewal application.

(c) Each renewal application must be filed at least twenty (20) calendar days prior to the date of expiration.

(d) Except as expressly indicated herein, all of the deadlines, fees, and procedures applicable to any application and permit shall also be applicable to each renewal application and renewal permit.

(e) The chief shall not require another photograph for a renewal application unless he cannot verify the identity of the applicant who filed a renewal application; or, unless the applicant filing a renewal application is different from the individual who filed the original application.

(Ord. No. 2012-12-06-0933, §§ 4, 6, 12-6-12)

Sec. 21-242. Use of permit.

(a) A permit issued under the provisions of this division is not a property interest but shall be a purely personal privilege that is subject to revocation or suspension if the respondent is found to have violated a provision of this division.

(b) By authority of this division, by accepting a permit, the holder of the permit consents that the chief or a peace officer may detain the individual on the premises of an adult arcade for the purpose of verifying identity and permit.

(c) Any owner or operator that enjoys the benefit of an adult arcade permit or has accepted a permit through a duly authorized agent consents, by authority of this section, that the chief or peace officer may enter the premises of the adult arcade at any time an owner, operator, manager, floor-manager, employee, customer or patron is on the premises to conduct an investigation or inspect the premises for the purpose of performing any duty imposed by this division.

(d) All peace officers shall have the duty to enforce the provisions of this division and cooperate with the chief in the enforcement hereof.

(e) It shall be unlawful for an individual to use the permit of another. It shall be unlawful for an individual holding a permit to transfer that permit for use by another individual. Permits are valid for one (1) adult arcade only and may not be transferred to any other establishment or location.
(Ord. No. 2012-12-06-0933, §§ 4, 6, 12-6-12)

Sec. 21-243. Procedure for administrative hearings; revocation or suspension of permits.

(a) Conditions resulting in revocation/suspension of adult arcade permit.

(1) An adult arcade permit shall be subject to revocation if, after the issuance of the initial permit:

a. Any permit holder of the adult arcade permit is convicted of a felony or specified criminal act as defined in this article;

b. Any material information on the permit application which would likely have resulted in a denial of the permit is found to have been false when submitted; or

c. An individual or entity not listed on the permit application becomes a duly authorized agent, owner or operator of the adult arcade and such agent, owner or operator would have caused a disqualification if listed on the original permit application.

(2) An adult arcade permit shall be subject to revocation/suspension if, after the issuance of the initial permit, one or more employees of the adult arcade have a cumulative total among them of three (3) or more convictions for felonies or specified criminal acts as defined in this article where the acts that lead to the convictions occurred on the licensed premises within a consecutive 12-month period.

(3) An adult arcade permit shall be subject to revocation/suspension if, after the issuance of the initial permit, any employees of that establishment have a cumulative total among them of three (3) or more convictions or deferred adjudications for any violations of this article wherein the violations that lead thereto have all occurred on the licensed premises on at least three (3) separate calendar dates within a consecutive six-month period.

(b) Conditions resulting in revocation/suspension of manager's permit.

(1) A manager's permit shall be subject to revocation if, after the issuance of the initial permit, the permit holder is convicted of a felony or specified criminal act as defined in this article.

(2) A manager's permit shall be subject to revocation/suspension if, after the issuance of the initial permit, the permit holder has a cumulative total of three (3) or more convictions or deferred adjudications in the name of the permit holder for any violations of this article wherein the violations occurred on at least three (3) separate calendar dates within a consecutive 12-month period:

(c) Notice of intention to revoke/suspend permit. If, on the basis of information and belief, the chief of police concludes that any permit issued under this article is subject to revocation or suspension because of the existence of any of the conditions set forth herein, the chief of police shall initiate a revocation/suspension proceeding by sending a notice of intention to revoke/suspend permit to the permit holder which shall detail the following:

(1) The factual basis for the intention to revoke/suspend the permit;

(2) The provisions of this article alleged to be violated;

(3) The calendar date by which any request for contested case hearing is due; and

(4) The person or office with which any request for a hearing must be filed and the address at which any such request must be filed.

(d) Request for a hearing is required within twenty (20) days of notice having been given by filing a written request for a hearing with the person or office indicated on the notice of intention to revoke/suspend permit.

(e) Upon proper request as set forth above, and except in the case of a continuance granted in accordance with the requirements of this article, each party with standing to contest is entitled to an opportunity to respond and to present evidence and argument on each allegation in the notice of intention to revoke/suspend permit at a hearing to be held within twenty (20) days after the date of filing of their request as shown by the date of filing stamped on the request.

(f) Result of request or failure to request hearing. If no request for a hearing is timely filed, the hearing officer shall revoke the permit in question and issue a notice of revocation. If a request for a hearing is timely filed, the hearing officer shall conduct a hearing in accordance with the provisions of this article.

(g) Notice of a hearing shall be sent or delivered to the person requesting a hearing not less than ten (10) business days from the date of the hearing; shall include a statement of the time, place, and nature of the hearing; and shall be sent via personal delivery or U.S. Postal Service, to the last known address of the person. Notice of a hearing shall be considered timely if properly addressed and postmarked not less than ten (10) business days from the date of the hearing.

(h) Representation by counsel. Each party to a hearing is entitled to the assistance of counsel, at the party's expense.

(i) Status of permit during hearing. While a hearing is pending, and prior to the final decision of the hearing officer regarding revocation or suspension, a permit remains valid unless:

(1) It expires without timely application for renewal;

(2) It is voluntarily withdrawn or surrendered by the permit holder; or

(3) The permit holder commits an act or omission contrary to the provisions of this article which otherwise invalidates the permit.

(j) Decision of the hearing officer.

(1) If on the basis of substantial evidence the hearing officer finds that any of the conditions set forth herein exist for the permit in question, the hearing officer shall revoke the permit.

(2) If on the basis of substantial evidence the hearing officer finds that any of the conditions set forth herein exist for the permit in question, and the permit holder has not had the permit suspended in the previous twelve (12) calendar months, the hearing officer shall suspend the permit for a period of sixty (60) calendar days.

(3) If on the basis of substantial evidence the hearing officer finds that any of the conditions set forth herein exist for the permit in question and the permit holder has had the permit suspended within the previous twelve (12) calendar months, the hearing officer shall revoke the permit.

(4) If the hearing officer does not find the existence of any conditions for which the permit in question may be suspended or revoked under this article, the hearing officer shall deny revocation or suspension.

(5) This section shall not apply during any judicial appeal following the decision of the hearing officer.

(Ord. No. 2012-12-06-0933, §§ 4, 6, 12-6-12)

Sec. 21-244. Same—Notice of revocation or suspension.

(a) A final decision or order by the hearing officer shall be issued in writing, and shall be rendered not later than five (5) days after the hearing.

(b) Following a final decision, any revocation or suspension of the permit in question shall take effect upon the date of delivery of the notice of the hearing officer's decision or such other date as may be set by the hearing officer and stated in the notice.

(c) Any act authorized by a permit shall be unauthorized and in violation of this article upon and after the effective date of any suspension of the permit until the suspension expires.

(d) Any act authorized by a permit shall be unauthorized and in violation of this article upon and after the effective date of any revocation of the permit unless and until a new permit, if any, is applied for and granted pursuant to the terms of this article. If a permit has been revoked because of crimes or activities occurring on the premises of an adult arcade, any and all permit holders of the adult arcade permit which has been revoked are disqualified from receiving or holding any permit under this article for a period of one (1) calendar year from the effective date of the revocation.

(e) If an adult arcade permit is suspended or revoked because of crimes or activities occurring on the premises of the adult arcade, each and every individual, person, or association listed with the city as a duly authorized agent, owner, or operator of a adult arcade at the time of any suspension or revocation of the adult arcade permit for that establishment shall be considered to have had an adult arcade permit suspended or revoked as if they held the permit in their own name for purposes of determining whether they are qualified to participate in another permit application under this article. If an adult arcade permit is suspended or revoked because of crimes or activities of one or more of the permit holders which did not occur on the licensed premises, then only that individual(s) shall be considered to have had an adult arcade permit suspended or revoked for purposes of determining whether they are eligible to participate in another permit application under this article.
(Ord. No. 2012-12-06-0933, §§ 4, 6, 12-6-12)

Sec. 21-245. Same—Judicial appeal.

If an application is denied or a permit revoked or suspended by the hearing officer, then:

(1) A respondent shall have thirty (30) calendar days from the date of receipt of notice of rejection or notice of revocation in which to file suit in a Judicial District Court of Bexar County, Texas, and

(2) The respondent shall waive any appeal or cause of action if suit is not filed within the time specified herein.

(Ord. No. 2012-12-06-0933, §§ 4, 6, 12-6-12)

Sec. 21-246. Configuration; lighting; signage.

The following minimum standards shall apply to the interior design of the premises of all adult arcades after the effective date of this article:

(1) At least one manager's station shall be located within the premises and such location shall provide an employee, operator, agent, or owner on duty, an unobstructed view of every area of the adult arcade to which any patron may be permitted access for any purpose, other than toilet facilities, from said manager's station. If an adult arcade has two (2) or more manager's stations, the interior design of the adult arcade shall be configured to provide an unobstructed view of each area of the adult arcade to which any patron may be permitted access for any purpose other than toilet facilities, from at least one of the manager's stations. The view required must be by direct line of sight from the manager's station. Restrooms may not contain any arcade device.

a. It shall be the duty of the owners, operators, agents or employees of the adult arcade to ensure that the view area specified in this section remains unobstructed by merchandise, display racks or other materials at all times that any patron is present in the adult arcade to ensure that no patron is permitted access to any area of the adult arcade which is

not within this view area. At all times that any patron is present in the adult arcade, it shall be the duty of the owners, operators, agents or employees of each adult arcade to ensure that at least one person who is charged with responsibility for the operation of the adult arcade is on duty at the adult arcade and situated in the manager's station with the view area designated herein.

b. It shall be an exception to the requirements of this subsection that the area of the adult arcade in question is being video monitored.

(2) Video monitoring alternative.

a. No adult arcade shall equip any areas into which patrons may be permitted access, other than toilet facilities, with interior doors, screens, curtains or any other opaque coverings which could obstruct the view into an area in which patrons may be permitted except as allowed under subsection (2)b. It shall be the duty of the owners, operators, agents, and employees of the adult arcade to ensure that each area into which patrons may be permitted access, other than toilet facilities, is not equipped with interior doors, screens, curtains, or any other opaque coverings which could obstruct the view into each area in which patrons may be permitted access except as allowed in subsection (2)b.

b. As an alternative to subsection (1), a room in which a patron is allowed to view a video on the premises may be equipped with an interior door if the owners, operators, agents and employees of the adult arcade:

1. Maintain continuous videotape monitoring of each room in which a patron is located;

2. Make the tapes of each of the videotaped rooms available to police officers upon request for immediate inspection during any hours which the establishment is open for business;

3. Keep and maintain the tapes of each videotaped room for review by law enforcement personnel without notice, for a period of two (2) weeks;

4. Maintain the configuration requirements and other requirements set forth in this division.

(3) During hours of operation, the light fixtures shall be kept on at a sufficient intensity to illuminate by not less than three (3) foot-candle as measured at four (4) feet above the level of the floor and at every area where customers or patrons are allowed. Lighting shall not be subject to intensity control by means of rheostat or other device, but shall be maintained at constant intensity in every area where customers or patrons are allowed. Light control, including on and off switches, shall be maintained at a central location by the manager, and shall not be accessible to customers or patrons. It shall be the duty of the owners, operators, agents or employees of the adult arcade to ensure that the illumination specified in this section is maintained at all times that any patron is present in the adult arcade or at all times the adult arcade is open for business.

(4) Each adult arcade must comply with the following configuration requirements. Nothing herein shall allow the placement of interior doors except as allowed in subsection (2)b.

a. Excepting a door that may serve as an entrance or exit to the building of the establishment for each area to which a customer or patron on the premises is allowed access, excepting the interior of lavatories, any interior door allowed herein must be made of clear glass that is no thicker than one-half-inch or of wood that is no thicker than one and one-half

(1½) inches. All wooden doors must contain a clear glass window that is no thicker than one-half-inch and at least twelve (12) inches wide by twelve (12) inches high. The window must be situated on the door at a height no less than four and one-half (4½) feet and no greater than six (6) feet from the ground. The window may not be partially or fully covered in any manner. Excepting the doorknob, no interior door may be made of metal, reinforced by metal, or be thicker than allowed herein. The door to any interior room may only have one (1) throw from the doorknob or in any other manner latch from more than one (1) place into a striker plate whenever the door is closed; and, excepting one (1) lock that forms part of the doorknob and is neither a deadbolt nor chain, no interior door may have a dead bolt, chain, and/or any type of lock.

b. For each area to which a customer or patron is allowed access, excepting a doorframe that may serve as an entrance or exit to the establishment, each interior doorframe to a wooden door may not be reinforced with any type of metal, excepting a cubic area that is part of the striker plate in the dimensions of not more than six (6) inches long by two (2) inches wide by six (6) inches high.

c. Excepting conduits for plumbing, heating, air conditioning, ventilation, electrical service, or cable or satellite television, no opening is allowed in any wall; partition; screen; lavatory stall; or any other barrier between viewing areas or toilets.

d. The conduits for plumbing, heating, air conditioning, ventilation, electrical service, and cable or satellite television must be so screened or otherwise configured to prevent their use as openings that would allow any portion of an individual to penetrate the wall or barrier between the viewing areas or toilets.

e. All interior walls of any areas into which patrons may be allowed access shall be continuous from floor to ceiling with no apertures, holes or other openings. It shall be the duty of the owners, operators, agents, or employees of the adult arcade to ensure that all interior walls of each area into which patrons may be allowed access is continuous from floor to ceiling with no apertures, holes or other openings.

(5) It shall be the duty of the owners, operators, agents, or employees to ensure that each separate room or compartment of the adult arcade into which patrons may be allowed access will be prominently displayed to ordinary public view with signs as follows:

a. A poster or sign containing an AIDS information telephone number and stating, "Stop AIDS: avoid contact with sexual fluids and dirty needles."

b. A poster or sign containing an AIDS information telephone number and stating, "AIDS is transmitted by sex without condoms or by sharing needles."

c. Alternatively, a poster or sign with a similar message as approved in writing by the city health director may be displayed.

d. In rooms in which video surveillance is being used, a sign notifying persons that video surveillance is being used in the rooms.

e. A sign warning of activities which constitute criminal behavior in the rooms as approved by the police department.

f. Each sign required by this section shall be in lettering not less than

one-half-inch in height unless otherwise approved by the health director.

g. Signage shall be in both the English and Spanish languages.

(6) An adult arcade shall be required to post an outdoor sign advising the public that it has applied for a sexually oriented business permit upon application for said permit. Said sign shall be posted within seventy-two (72) hours of the submittal of application.

(Ord. No. 2012-12-06-0933, §§ 4, 6, 12-6-12)

Sec. 21-247. Violations; other prohibited conduct; enforcement.

(a) A person having any duty under this article commits an offense if he knowingly or recklessly fails to fulfill that duty or fails to comply with any provision of this division or with any of the requirements hereof.

(b) It shall be unlawful for any owner, operator, agent, or employee present in an adult arcade to knowingly or recklessly allow more than one (1) patron or client at a time to enter or occupy a room in which an arcade device is located. A sign shall be posted at the entryway of each such room which notifies patrons that only one (1) patron at a time may enter or occupy this room.

(c) It shall be unlawful for any owner, operator, agent, or employee present in an adult arcade to knowingly or recklessly allow or permit any of the specified sexual activities to occur in the adult arcade or for any owner, operator or employee to knowingly or recklessly allow or permit the adult arcade to be used as a place in which solicitation for any act of specified sexual activities occur.

(d) In case any premises are erected, constructed, reconstructed, altered, repaired, converted, maintained or used in violation of this division, the city, in addition to imposing criminal sanctions provided therefore, may institute any appropriate action or proceeding, including an action for abatement of a nuisance under state statute, or judicial proceedings to prevent such unlawful erection, construction, reconstruction, alteration, repair, conversion, maintenance or use, to restrain, correct or abate such violation, or to prevent such illegal act, conduct or use.

(Ord. No. 2012-12-06-0933, §§ 4, 6, 12-6-12)

Sec. 21-248. Authority to file suit.

The city attorney is authorized, at his discretion, in addition to or in lieu of any other remedies set forth in this division, or under any other applicable state statute, to commence an action to enjoin the violation of this division or to enjoin any person, corporation, or association from establishing, operating, or maintaining a public place or adult arcade contrary to the provisions herein, or in any other statute or doctrine.

(Ord. No. 2012-12-06-0933, §§ 4, 6, 12-6-12)

DIVISION 5. PENALTIES

Sec. 21-249. Penalties.

(a) The violation of any provision of this article, including the doing of anything which is herein prohibited or declared to be unlawful or the failure to do anything or perform any duty which is required herein, shall be punishable as provided by V.T.C.A., Local Government Code § 243.010(b). Each day that any violation shall continue shall constitute and be punishable as provided by V.T.C.A., Local Government Code § 243.010(b). Each day that any violation shall continue shall constitute and be punishable as a separate offense.

(b) The revocation or suspension of any permit shall not prohibit the imposition of a criminal penalty and the imposition of a criminal penalty shall not prevent the revocation or suspension of a permit.

(Ord. No. 2012-12-06-0933, §§ 4, 6, 12-6-12)

Sec. 21-250. Authority to file suit.

The city attorney is hereby authorized to file suit to enjoin any violation of this article in addition to or in lieu of any other remedies set forth in this article or under any other applicable state statute to enjoin the violation of this article.

(Ord. No. 2012-12-06-0933, §§ 4, 6, 12-6-12)

Sec. 21-251. Alternative remedies.

Civil enforcement and criminal penalties are alternative remedies that may be sought independently of each other. Criminal prosecution may occur regardless of pursuit of civil remedies and vice versa.
(Ord. No. 2012-12-06-0933, §§ 4, 6, 12-6-12)

Sec. 21-252. Judicial review.

(a) Any owner, operator, entertainer, manager or applicant of a sexually oriented business who is aggrieved by a decision that denies, suspends, or revokes a permit, and who has complied fully and timely with all applicable provisions pertaining to appeals of decisions in this article may seek appropriate judicial relief by writ of certiorari or other available remedy in a court of competent jurisdiction.

(b) The decision of the hearing official suspending or revoking a permit under this article shall be final as of the date written notice of the hearing official's decision is given to the owner, operator, entertainer, manager, or floor manager of a sexually oriented business, but in order to afford the permit holder an opportunity to seek judicial review shall not be effective for purposes of enforcement of the decision by the chief or the hearing officer until the 30th day following such notice.
(Ord. No. 2012-12-06-0933, §§ 4, 6, 12-6-12)

Secs. 21-253—21-279. Reserved.

ARTICLE X. GRAFFITI

Sec. 21-280. Definitions.

For the purposes of this article, the following definitions shall apply:

Director shall mean the director of the department designated by the city manager to enforce and administer this article or the director's authorized representative.

Felt tip marker shall mean an indelible marker or similar implement with any size tip.

Graffiti shall mean any unauthorized inscription, word, letter, figure, symbol or design visible from a public place, public right-of-way or another person's property that is marked, etched, scratched, drawn, painted or made in any manner on any surface of tangible property regardless of its content or nature and regardless of the nature of the material of the structural component or property. It shall be a rebuttable presumption that the inscription, word, letter, figure, symbol or design was unauthorized if:

(a) The graffiti is inconsistent with the design and use of the subject property;

(b) There is no specific written authorization by the owner on file with the department for the graffiti; or

(c) The person causing the graffiti was unknown to the owner.

Graffiti implement shall mean any aerosol paint container, any type of felt tip marker, paint stick, etching tool, or adhesive materials to include stickers or items capable of scarring or otherwise defacing glass, metal, concrete or wood.

Guardian shall mean any person to whom custody of a minor has been given by a court order.

Paint stick or *graffiti stick* shall mean any device containing a solid form of paint, chalk, wax epoxy, or other similar substances capable of being applied to a surface by pressure, and upon application, leaving a visible mark.

Parent shall mean a person who is the natural or adoptive parent of a person. As used herein, "parent" shall also include a court appointed guardian or other person eighteen (18) years of age or older, authorized by the parent, by a court order, or by the court appointed guardian to have the care and custody of a person.

Property owner shall include, but not be limited to, any equitable owner, any person having a possessory right to the land or building or the person occupying it, any part owner, joint owner, tenant in common, tenant in partnership, joint tenant or tenant by the entirety, or any person, individual, corporation, association or partnership in apparent or actual control of the property or any agent or employee of any of the foregoing.

Sticker shall mean any item that is attached with adhesive material capable of scarring or otherwise defacing glass, metal, concrete or wood.

Unauthorized shall mean without the specific written consent of the owner on file with the department or without authority of law, regulation or ordinance.

Written authorization shall mean the written consent of the property owner to allow graffiti on his property. Said written consent shall be on a form proscribed by the department and filed with the department prior to the placement of any authorized graffiti.
(Ord. No. 2007-05-03-0480, § 2, 5-3-07; Ord. No. 2010-06-24-0617, § 1, 6-24-10; Ord. No. 2013-08-29-0568, § 1, 8-29-13)

Sec. 21-281. Causing graffiti on property unlawful.

It is a violation of the Texas Penal Code and shall be unlawful for any person to knowingly place or cause to be placed any graffiti upon any surface of public or private buildings, structures or other facilities or upon any natural features of public or private property. Penalty is as provided in the Penal Code § 28.08.
(Ord. No. 2007-05-03-0480, § 2, 5-3-07)

Sec. 21-282. Possession of graffiti implements unlawful.

(a) It shall be unlawful for any person to have in his or her possession any graffiti implement in any public park, public or private school ground, public library, public playground, public swimming pool, public recreational facility, any public right-of-way, or any other public grounds or public buildings in the city when any of the above premises are closed to the public.

(b) It shall be unlawful for any person to have in his or her possession, for the purpose of defacing property, any graffiti implement while on private property not open to the public. The graffiti implement shall be presumed to be for the purpose of defacing property if it is in the holder's possession while the holder is on private property closed to the public.

(c) It shall be an offense for the parent or legal guardian of a child under seventeen (17) years of age to intentionally, knowingly, recklessly, or with criminal negligence allow the child to violate the provisions of this article.

(d) It shall be an affirmative defense to prosecution if the person uses the graffiti implement in their employment or in connection with a school, civic or religious activity or has written permission from the director or owner of the premises to engage in an authorized activity utilizing the implements.

(e) Violation of any provisions of this section shall be a misdemeanor offense and shall be punishable by a mandatory fine of not less than two hundred dollars ($200.00) nor more than five hundred dollars ($500.00) for the first offense and a mandatory fine of not less than four hundred dollars ($400.00) nor more than five hundred dollars ($500.00) for second and subsequent offenses. The court shall have the discretion to provide other means of punishment which may include community service and/or restitution.
(Ord. No. 2007-05-03-0480, § 2, 5-3-07; Ord. No. 2013-08-29-0568, § 1, 8-29-13)

Sec. 21-283. Graffiti declared a nuisance.

Any graffiti is hereby declared to be a public nuisance as it:

(1) Tends to reduce the value of private property;

(2) Invites vandalism, additional graffiti, and other criminal activities;

(3) Produces urban blight; and

(4) Is detrimental to the safety and welfare of the public.

(Ord. No. 2007-05-03-0480, § 2, 5-3-07)

Sec. 21-284. Owner responsibility and graffiti removal.

(a) It shall be unlawful for any property owner to fail to abate or cause the abatement of graffiti from his or her property after receiving notice of the nuisance and being given an opportunity to effect the abatement within the time allowed by this article unless otherwise exempted.

(b) This section shall not apply:

(1) To property that is residential owner-occupied or is a commercial property occupied by an ongoing business;

(2) To graffiti located on transportation infrastructure; or

(3) In cases in which the removal of the graffiti would create a hazard for the person performing the removal.

(c) Prior to any enforcement efforts by the city, the director shall inform the property owner that the city will remove the graffiti from the owner's property free of charge if the owner provides written consent for the removal and releases the city, its contractors, and/or volunteer personnel from liability in the performance of the graffiti abatement by completing a permission and waiver form.

(d) If the city informs the property owner of the removal free of charge in accordance with subsection (d) and the United States Postal Service returns the notice as "refused" or "unclaimed," or the property owner fails to respond to the city's request for written permission to remove the graffiti within ten (10) days of the date such request is mailed, the property owner will be deemed to have refused the offer.
(Ord. No. 2007-05-03-0480, § 2, 5-3-07; Ord. No. 2010-06-24-0617, § 1, 6-24-10)

Editor's note—Ord. No. 2010-06-24-0617, § 1, adopted June 24, 2010, changed the title of section 21-284 from "Failure to remove graffiti" to "Owner responsibility and graffiti removal." The historical notation has been preserved for reference purposes.

Sec. 21-285. Notice to abate graffiti.

(a) If the property owner refuses the offer of removal free of charge, the director shall serve written notice to abate the graffiti from the property within fifteen (15) days after the date the notice is received.

(b) Notice under this article shall be given:

(1) Personally in writing;

(2) By letter sent by certified mail, addressed to the property owner at the property owner's address as contained in the records of the Bexar County Appraisal District; or

(3) If service cannot be obtained under subsections (1) or (2):

a. By publication at least once in a newspaper of general circulation;

b. By posting the notice on or near the front door of each building on the property to which the notice relates; or

c. By posting the notice on a placard attached to a stake driven into the ground on the property to which the notice relates.

(c) If the director mails a notice to a property owner in accordance with this section and the United States Postal Service returns the notice as "refused" or "unclaimed," the validity of the notice is not affected, and the notice is considered delivered.

(d) Notice under this article shall contain:

(1) An identification, which is not required to be a legal description, of the property;

(2) A description of the location of the graffiti on the property;

(3) The time period in which the owner must abate the nuisance;

(4) A statement that the owner must abate the graffiti nuisance within such time period;

(5) A statement that the owner may request a hearing within fifteen (15) days;

(6) A statement that should the owner fail to abate the situation within the stated time period, the city may cause the correction and abatement work to be done on it's own and shall charge the owner for the expenses involved, and upon failure of the owner to pay the city for such expense, fix a lien on the lot or parcel for the expense involved;

(7) A statement that if the owner demonstrates a hardship as defined in section 21-288, the director shall cause the graf-

fiti to be abated without cost to the owner, and no lien shall be placed on the property.

(e) Notice under this article shall be deemed to have been received:

(1) For personal service, as of the date the notice was given personally to the owner;

(2) For mailed notice, the date the notice is received; or

(3) For notice by posting, fifteen (15) days after notice was posted on the property or structure.

(Ord. No. 2007-05-03-0480, § 2, 5-3-07; Ord. No. 2010-06-24-0617, § 1, 6-24-10)

Sec. 21-286. Hearing.

The owner of a lot or parcel subject to abatement under this article may request a hearing by notifying the director within fifteen (15) days following the date the city serves the required notice. The hearing shall be conducted by a hearing official designated by the city manager for the purpose of determining whether the conditions constitute a public nuisance under the provisions of this article. Unless notice is waived by the owner, the owner shall be provided written notice of the time and place of the hearing at least ten (10) days prior thereto. At the hearing, the owner and the director may present any evidence relevant to the proceedings. If the hearing official finds that conditions constituting a nuisance hereunder exist, the hearing official shall issue an order so stating.

(Ord. No. 2007-05-03-0480, § 2, 5-3-07; Ord. No. 2010-06-24-0617, § 1, 6-24-10)

Sec. 21-287. Paint provided.

An owner who demonstrates to the director that his structure has been subjected to graffiti may be provided sufficient paint materials, if available, to cover the graffiti on the structure on the property. The materials will typically be from donated sources or bulk purchases and the paint may not match the existing background surface color. The owner shall have ten (10) business days following receipt of the paint materials to abate the graffiti.

(Ord. No. 2007-05-03-0480, § 2, 5-3-07)

Sec. 21-288. Hardships.

(a) Each notice given under section 21-285 shall advise of the availability of the relief under this section. Applications for relief under this section shall be submitted to the director in such form and with such proofs of ownership, repeat occurrences and related factors as may be required to determine whether the applicant is entitled to assistance within ten (10) days following the date the city mails, posts or delivers the notices under section 21-285.

(b) The director may cause the graffiti to be abated without cost to the owner if an owner demonstrates that the property for which notice of graffiti has been issued has been the subject of at least two (2) prior graffiti incidents (evidenced by either notices provided pursuant to this article or bona fide police reports) during the preceding one hundred eighty (180) days, that the owner complied with the requirements of this article by abating the prior graffiti within ten (10) business days of the date of the applicable notice or police report and that the city has abated the property no more than twice in a calendar year.

(Ord. No. 2007-05-03-0480, § 2, 5-3-07)

Sec. 21-289. Abatement by city; payment of costs by owner; imposition of lien.

(a) If an owner fails to abate a graffiti nuisance during the time allowed for abatement and/or fails to respond to the notice of the nuisance, the director may order abatement of the nuisance to be done at the owner's expense. This remedy shall be in addition to any other remedy available to the city.

(b) Persons authorized by the director to abate the nuisance may enter private property to examine a public nuisance, to obtain information to identify the nuisance, and to remove or direct the removal of the nuisance.

(c) Whenever the city shall abate a graffiti nuisance as provided by this article, the director shall have the option of selecting a private contractor to abate the nuisance.

(d) The city shall assess to the owner a charge for all work done to abate the graffiti nuisance, including an administrative expense of one hundred eighty dollars ($180.00), and cause the expense thereof to be assessed on the property upon which such expense is incurred. All revenue collected shall be deposited in a separate account in the city dedicated to graffiti abatement.

(e) A statement of the costs incurred by the city to abate the nuisance shall be mailed to the owner, if the owner and mailing address is known, and, if not known, may be published in a newspaper of general circulation in the city. The statement shall demand payment within thirty (30) days from the date of receipt or publication.

(f) If such statement has not been paid within such period, the city manager or other official designated by the city manager may file a statement of expenses incurred with the county clerk stating the owner's name, if known, and the legal description of the lot or parcel. The statement of expenses or a certified copy of the statement shall be prima facie proof of the expenses incurred. Such statement shall be and the city shall have a privileged lien for expenditures made and interest accruing at the rate of ten (10) percent on the amount due from the date incurred by the city. Such liens shall be inferior only to tax liens and liens for street improvements. The city may foreclose such liens in a proceeding brought in accordance with applicable law. The remedy allowed in this subsection shall not be the city's sole remedy.
(Ord. No. 2007-05-03-0480, § 2, 5-3-07; Ord. No. 2009-09-17-0731G, § 4, 9-17-09)

Secs. 21-290—21-299. Reserved.

ARTICLE XI. SOCIAL HOST UNDERAGE DRINKING ACCOUNTABILITY

Sec. 21-300. Title.

This article shall be known as "social host underage drinking accountability."
(Ord. No. 2016-12-15-0999, § 1, 12-15-16)

Sec. 21-301. Legislative purpose.

The purposes of this article are to:

(1) Protect the public health, safety and general welfare;

(2) Promote the reduction of underage drinking by imposing a civil fine on persons or entities responsible for gatherings where alcohol is consumed by, served to or in the possession of underage persons;

(3) Facilitate the enforcement of laws prohibiting the service to, consumption of or possession of alcoholic beverages by underage persons; and

(4) To offset the city's costs associated with providing fire, police, and other emergency services to gatherings involving underage drinking, by imposing a civil fee upon the persons or entity responsible for the gathering involving underage drinking to occur on their premises, at their residences, or at rented facilities.
(Ord. No. 2016-12-15-0999, § 1, 12-15-16)

Sec. 21-302. Legislative findings.

The recitals set forth above are incorporated herein as legislative findings by the city council.
(Ord. No. 2016-12-15-0999, § 1, 12-15-16)

Sec. 21-303. Definitions.

For the purpose of this article, the following definitions shall apply:

Alcoholic beverage means alcohol, or any beverage containing more than one-half of one percent of alcohol by volume, which is capable of use for beverage purposes, either alone or when diluted, including but not limited to beer, wine, ale, liquor, distilled spirits and wine coolers.

Gathering involving underage drinking means a party or gathering of two (2) or more persons at which one or more underage person possesses or consumes an alcoholic beverage.

Other private property refers to hotel or motel room; an assembly hall or meeting room; a common room of a dwelling unit used for a party (e.g., recreation room of an apartment building); a site in a privately owned campground; privately owned vacant lot; privately owned agricultural land; or privately owned rural land whether occupied as a dwelling, part or other social function, and whether owned, leased, rented or used without compensation.

Public safety services and/or *response costs* means the costs associated with responses by law enforcement, fire and other emergency response providers to gatherings involving underage drinking, including but not limited to:

(1) The portion of the cost of salaries and benefits of law enforcement, fire or other emergency response personnel for the amount of time spent responding to, remaining at, or otherwise dealing with the gathering(s) involving underage drinking, and the administrative costs attributable to such response(s);

(2) The cost of any medical treatment to or for any law enforcement, fire or other emergency response personnel injured responding to, remaining at or leaving the scene of a gathering involving underage drinking; and

(3) The cost of the use of any equipment or property, and the cost of repairing any equipment or property damaged, in responding to, remaining at or leaving the scene of a gathering involving underage drinking.

Residence includes a dwelling unit such as a home, condominium or apartment; structures on the residence other than the dwelling such as a garage, studio, tent, boat dock, swimming pool, barn or boat house; land on the residence whether improved or unimproved such as a yard, patio, open fields, piers or lake shores; water bodies on the residence such as a pond, lake, river or stream; a motor vehicle, camper or trailer located on the residence or a boat, watercraft, or other marine vessel located on the residence whether occupied on a temporary or permanent basis, whether occupied as a dwelling or for a party or gathering, and whether owned, leased, rented, or used with or without compensation.

Underage person means any person less than twenty-one (21) years of age.
(Ord. No. 2016-12-15-0999, § 1, 12-15-16)

Sec. 21-304. Prohibition of gatherings involving underage drinking.

No person shall suffer, permit or host a gathering involving underage drinking at a location under his or her control, including but not limited to the person's residence, other private property, place, premises, or public place.
(Ord. No. 2016-12-15-0999, § 1, 12-15-16)

Sec. 21-305. Protected activities.

This article shall not apply to activities duly permitted by the state or the city, or to activities protected by the First or Fourteenth Amendments to the United States Constitution.
(Ord. No. 2016-12-15-0999, § 1, 12-15-16)

Sec. 21-306. Violation(s); civil penalties.

It shall be a civil violation for a person to violate section 21-304 of this article. Law enforcement personnel, at the officer's discretion, may immediately issue a notice of violation for this civil violation upon evidence of the violation. There is no requirement of a first warning in order for law enforcement to issue this civil citation.

(1) Civil penalty. A first violation of this section shall result in a notice of violation with a civil penalty not to exceed three hundred dollars ($300.00). A second or subsequent violation shall result in a notice of violation with a civil penalty not to exceed five hundred dollars ($500.00).

(2) Peace officers employed by the city, and the San Antonio police department, are hereby authorized to issue notices of violations for violations of the article, by

issuing a written notice of violation to any and all responsible persons identified by law enforcement within thirty (30) days of the violation. The notice of violation may be delivered in person, or by certified mail.

(3) The notice of violation shall include:

a. The name(s) of the person(s) being held liable for the payment of such costs;

b. The location where the gathering involving underage drinking occurred;

c. A description of the violation;

d. The date and time of the violation;

e. The amount of the civil penalty for which the person is liable;

f. Notice and warning that a second or subsequent violation of this article on the same date or within six (6) months of the date of the notice shall result in the person's liability for the cost of providing public safety services (i.e., fire, ambulance, law enforcement, and other emergency providers), and that the cost recovery for public safety responses shall be separate and distinct from a civil penalty for a violation;

g. Notice of the right and method to request an administrative hearing to challenge the validity of the notice of violation, and the deadline for requesting that hearing; and

h. Notice that failure to contest or pay the civil penalty in a timely manner is an admission of liability and a waiver of the right to appeal the imposition of the civil penalty.

(4) The civil penalty prescribed in this section is in addition to any civil cost recovery fee for public safety responses that may be assessed pursuant to section 21-307.

(Ord. No. 2016-12-15-0999, § 1, 12-15-16)

Sec. 21-307. Imposition of civil cost recovery fee for public safety responses.

The requirement of a first warning in subsection 21-306(3)d. does not limit the ability of public safety personnel to issue a civil citation for the imposition of civil penalties for cost recovery on the same day that the warning is given if the warning does not end the gathering involving underage drinking. The cost recovery for public safety responses shall be separate and distinct from a civil penalty for a civil violation described in section 21-306.

(1) The amount of cost recovery under this subsection shall be the response costs.

(2) The city police department shall develop a schedule of costs for use in determining response costs subject to this article.

(3) If there is more than one responsible person for the gathering then each responsible person shall be jointly and severally liable for the civil penalty and/or for the costs incurred for public safety services pursuant to this article.

(4) Civil cost recovery fee(s) shall not be imposed for the medical response costs in those situations where those present at the gathering call for emergency services for an actual emergency at the premises.

(Ord. No. 2016-12-15-0999, § 1, 12-15-16)

Sec. 21-308. Hearings on the imposition of civil fine and/or imposition of civil cost recovery fee for public safety response; appeals.

(a) The city manager, or the city manager's designee, shall appoint an independent hearings officer ("hearings officer"), to preside over appeals under this article.

(b) Any person subject to a civil penalty pursuant to section 21-306 or subject to a civil cost recovery fee for public safety responses pursuant to section 21-307 shall have the right to request an administrative hearing within forty-five (45) days of the issuance of a notice of violation. To request such a hearing, the person requesting

the hearing shall notify the city clerk's office, in writing, within forty-five (45) days of the issuance of the citation.

(c) The hearings officer is delegated the power and duty to hear any appeal hearing under section 21-308. The hearings officer shall conduct a hearing on the matter within ninety (90) days of the request for the hearing unless one of the parties requests a continuance for good cause. The hearings officer shall render a decision within thirty (30) days of the conclusion of the hearing. The hearings officer shall have the sole authority for sustaining or overturning a notice of violation or imposition of response costs issued under this article. The decision of the hearings officer shall be final.

(d) An appeal of a notice of violation under section 21-307, or imposition of costs under section 31-308, must include the following procedures:

(1) Every person who appeals shall have the right to appear in person or through an attorney;

(2) All persons who testify at the hearing shall testify under oath, and the person who appealed shall have the right to produce evidence, and subpoena and call witnesses; and

(3) The burden of proof is on the city to prove by a preponderance of the evidence that the civil violation occurred.

(Ord. No. 2016-12-15-0999, § 1, 12-15-16)

Sec. 21-309. Billing and civil penalty and civil cost recovery fee for public safety responses; debt to city; enforcement.

(a) The amount of a civil penalty and/or civil cost recovery fee for public safety responses shall be deemed a debt owed to the city by the person responsible for the gathering. Any person owing such penalty and/or fees shall be liable in an action brought in the county for recovery of such penalty and/or fees.

(b) The police chief shall mail notice via certified mail within twenty (20) days of the public safety response for which the person is liable giving rise to such costs. The police chief shall calculate and compile an itemized list of applicable response costs. The notice shall contain the following information:

(1) The name(s) of the person(s) being held liable for the payment of such costs;

(2) The address of the residence or other private property where the gathering involving underage drinking occurred;

(3) The date and time of the response;

(4) The law enforcement, fire and/or emergency service responder who responded;

(5) The date and time of any previous warning given pursuant to Article 91-307;

(6) An itemized list of the response costs for which the person(s) is liable;

(7) Information regarding the date payment is due;

(8) The right and method to request an administrative hearing to challenge the imposition of response costs and/or civil penalties; and

(9) Notice that failure to contest or pay the civil penalty or costs in a timely manner is an admission of liability and a waiver of the right to appeal the imposition of the civil penalty and costs.

(c) The responsible person must remit payment of the noticed costs and/ or civil penalties to the city within forty-five (45) days of the notice thereof. The payment of any such costs shall be stayed upon a timely request for an administrative hearing made pursuant to section 21-308.

(d) The city manager, and the city manager's designee, shall have the authority to file any action or proceeding to recover such civil penalties, public safety response costs, expenses and/ or civil penalties, and take any other actions at law which he may deem necessary to recover same.

(Ord. No. 2016-12-15-0999, § 1, 12-15-16)

Sec. 21-310. Remedies cumulative; actions; relationship to other laws.

The remedies provided under this article are cumulative, and shall not restrict the city to any other remedy to which it is entitled under law or equity. Nothing in this article shall be deemed to preclude the imposition of any criminal penalty under state law. Nor shall anything in this article be deemed to conflict with any penalty or provision under state law, or prohibit any conduct authorized by the state of federal constitution.
(Ord. No. 2016-12-15-0999, § 1, 12-15-16)

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Chapter 22

PARKS AND RECREATION*

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*__Cross references—__Creation of park and recreation department, § 50; director of parks and recreation, § 64 et seq.

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ARTICLE I. IN GENERAL

Sec. 22-1. Restrictions on sale and use of alcoholic beverages in parks.

(a) Except as provided in subsection (b), it shall be unlawful for any person to sell, possess, consume or distribute alcoholic beverages in any city park.

(b) The following parks or park facilities are exempted from the restriction in subsection (a):

(1) Sunken Garden Theater in Brackenridge Park;

(2) Koehler Area in Brackenridge Park;

(3) S.A. Zoo in Brackenridge Park;

(4) Witte Museum in Brackenridge Park;

(5) HemisFair Park;

(6) Tower of the Americas;

(7) King William Park;

(8) La Villita;

(9) Market Square;

(10) RiverWalk;

(11) Reserved;

(12) McFarlin Tennis Center in San Pedro Park;

(13) Spanish Governor's Palace;

(14) Reserved;

(15) Coliseum Oaks Park;

(16) Martin Luther King Plaza;

(17) Dorie Miller;

(18) Sunrise;

(19) Willow Springs Golf Course;

(20) Harlandale;

(21) Kingsborough;

(22) Mission Del Lago Golf Course;

(23) Mission Parkway;

(24) Pytel;

(25) Riverside Golf Course;

(26) Southside Lions-Area, east of Pecan Valley Drive only;

(27) Stinson;

(28) Mateo Camargo picnic facility;

(29) Reserved;

(30) Reserved;

(31) Reserved;

(32) Reserved;

(33) Reserved;

(34) Reserved;

(35) Reserved;

(36) Reserved;

(37) Kennedy Park Softball Complex;

(38) Reserved;

(39) Reserved;

(40) Reserved;

(41) Reserved;

(42) Rosedale Mass picnic facility;

(43) Graff Pavilion in O. P. Schnabel Park;

(44) Reserved;

(45) Cedar Creek Golf Course;

(46) Eisenhower Mass picnic facility;

(47) North East Sports Park in McAllister Park;

(48) Olmos Basin Park;

(49) Olmos Basin Golf Course;

(50) San Antonio Botanical Garden and San Antonio Garden Center;

(51) San Pedro Driving Range and Par 3;

(52) Alva Jo Fischer Softball Complex in Lady Bird Johnson Park;

(53) Belmeade Park;

(54) Lions Field Center;

(55) San Pedro Playhouse in San Pedro Park;

(56) Main Plaza, but only in accordance with the rules and regulations promulgated by Main Plaza Conservancy as reviewed and approved by the city manager.

(57) Brackenridge Park Golf Course.

(58) Northern Hills Golf Course;

(59) Northeast Golf Center;

(60) Golf Expansion Area in O.P. Schnabel Park;

(61) Polo Field Driving Range Building in Brackenridge Park.

(c) The director of parks and recreation or his designated representative is authorized to issue a special permit to allow the possession and consumption of alcohol within restricted parks for specific events. The director shall have authority to establish guidelines for the issuance of such permits imposing whatever conditions he deems appropriate.

(Code 1959, § 27-8; Ord. No. 58957, § 1, 6-28-84; Ord. No. 59042, § 1, 7-12-84; Ord. No. 59804, § 1, 11-20-84; Ord. No. 60015, § 1, 1-3-85; Ord. No. 60484, § 1, 3-28-85; Ord. No. 60545, §§ 1, 2, 4-11-85; Ord. No. 61317, § 1, 8-29-85; Ord. No. 61395, § 1, 9-5-85; Ord. No. 62692, § 1, 4-10-86; Ord. No. 62771, § 1, 4-24-86; Ord. No. 62936, § 1, 5-22-86; Ord. No. 63085, § 1, 6-19-86; Ord. No. 63310, § 1, 7-24-86; Ord. No. 63345, §§ 1, 2, 7-31-86; Ord. No. 63397, § 1, 8-7-86; Ord. No. 63589, § 1, 9-4-86; Ord. No. 63632, § 1, 9-11-86; Ord. No. 63689, § 1, 9-18-86; Ord. No. 64008, § 1, 11-13-86; Ord. No. 64009, § 1, 11-13-86; Ord. No. 64371, § 1, 1-15-87; Ord. No. 64623, § 1, 2-26-87; Ord. No. 65079, § 1, 5-21-87; Ord. No. 65236, §§ 1, 3, 6-25-87; Ord. No. 65310, § 1, 7-9-87; Ord. No. 65441, § 1, 7-30-87; Ord. No. 65849, § 1, 10-7-87; Ord. No. 65881, § 1, 10-15-87; Ord. No. 65936, § 1, 10-2-87; Ord. No. 66027, § 1, 11-5-87; Ord. No. 66911, § 1, 4-7-88; Ord. No. 66027, § 1, 11-5-87; Ord. No. 66911, § 1, 4-7-88; Ord. No. 67757, § 1, 8-18-88; Ord. No. 68319, § 1, 11-17-88; Ord. No. 68588, § 1, 1-5-89; Ord. No. 69813, § 1, 7-13-89; Ord. No. 69851, § 1, 7-20-89; Ord. No. 70417, § 1, 10-19-89; Ord. No. 70704, § 3, 12-7-89; Ord. No. 71155, § 2, 3-1-90; Ord. No. 71156, § 2, 3-1-90; Ord. No. 71217, § 2, 3-15-90; Ord. No. 71688, § 1, 6-7-90; Ord. No. 71794, § 1, 6-28-90; Ord. No. 71942, § 4, 7-19-90; Ord. No. 72180, § 1, 8-30-90; Ord. No. 72725, § 1, 11-29-90; Ord. No. 74749, § 1, 11-14-91; Ord. No. 75897, § 1, 6-4-92; Ord. No. 75978, § 1, 6-18-92; Ord. No. 78598, § 1, 9-2-93; Ord. No. 79555, § 2, 2-3-94; Ord. No. 86910, § 1, 11-6-97; Ord. No. 88608, § 1, 10-8-98; Ord. No. 89570, § 1, 4-8-99; Ord. No. 92282, § 1, 8-10-00; Ord. No. 94855, § 1, 11-1-01; Ord. No. 95687, § 1, 4-25-02; Ord. No. 2006-03-23-0377, § 1, 3-23-06; Ord. No. 2008-05-29-0450, § 2, 5-29-08; Ord. No. 2008-11-20-1041, § 3, 11-20-08; Ord. No. 2010-04-15-0328, § 3, 4-15-10; Ord. No. 2012-05-03-0325, § 1, 5-3-12; Ord. No. 2015-12-03-1021, §§ 1, 2, 12-3-15; Ord. No. 2025-02-13-0109, § 1(Exh. I), 2-13-25)

Sec. 22-2. Vendors operating in parks.

(a) It shall be permissible for properly licensed vendors to offer for sale in city parks, prepared and packaged food items and soft drinks subject to the following restrictions:

(1) Vendor's vehicles, carts and other conveyances shall be restricted to park roads and parking areas.

(2) No vending shall be permitted in recreation or other park activity buildings with the exception of the Woodlawn Lake Community Room.

(3) Vending shall not be construed to mean dispensing of soft drinks or prepackaged food items from vending machines.

(4) Vendors may not operate in any city park or park facility covered by a city concession contract.

(5) Vendors shall not use any utility outlets in the conduct of their operations.

(6) Vendors shall pick up trash and refuse accumulations in and around their area of operation.

(7) Notwithstanding the preceding vending shall not be allowed in any portion of Woodlawn Lake Park or on any street adjacent to the park, except: (a) the Woodlawn Lake Community Room for food and non-alcoholic drink vending services; and (b) in the three (3) designated

mobile vending locations identified by the department of parks and recreation. Vendors wishing to provide pre-packaged prepared food items, pre-packaged food items and soft drinks in the mobile vending designated locations in Woodlawn Lake Park shall make application to the Department of Parks and Recreation. Permits will be issued for no more than a three-month period. When more than three (3) applications are received for use of these locations, a lottery will be held by the department of parks and recreation to select the approved vendors for the next three-month period. Approved vendors shall be required to pay a two hundred twenty-five dollar ($225.00) permit fee for each three-month period.

(8) The director of parks and recreation shall have authority to institute approved vendor licensing programs in other city parks outside of the downtown business district with similar terms, conditions and restrictions as contained in subsection (7) and shall be authorized to charge a fee of two hundred twenty-five dollar ($225.00) permit fee for each three-month period.

(b) The tax assessor-collector shall, when issuing the appropriate license provide with said license an instruction list outlining the above described restrictions.

(Code 1959, § 27-9; Ord. No. 42641, §§ 1, 2, 8-16-73; Ord. No. 92500, § 1, 9-14-00; Ord. No. 2006-09-07-1009, § 1, 9-7-06; Ord. No. 2008-09-11-0777E, § 1, 9-11-08; Ord. No. 2010-09-16-0791, § 1(Att. C), 9-16-10; Ord. No. 2014-04-03-0206, § 5, 4-3-14; Ord. No. 2025-02-13-0109, § 1(Exh. I), 2-13-25)

Sec. 22-3. Glass beverage containers prohibited in certain parks.

(a) It shall be unlawful for any person to carry on to or to possess within any city parks any glass beverage container, unless specifically exempted from this restriction by city ordinance.

(b) The following parks shall be exempted from the restriction in subsection (a), as well as all indoor park facilities:

(1) S.A. Zoo in Brackenridge Park;

(2) Witte Museum in Brackenridge Park;

(3) HemisFair Park;

(4) Tower of the Americas;

(5) La Villita;

(6) Market Square;

(7) RiverWalk;

(8) McFarlin Tennis Center in San Pedro Park;

(9) Spanish Governor's Palace;

(10) San Antonio Botanical Center;

(11) Mission Del Lago Golf Course;

(12) Riverside Golf Course;

(13) Cedar Creek Golf Course;

(14) San Pedro Driving Range and Par 3;

(15) Olmos Basin Golf Course;

(16) Willow Springs Golf Course.

(17)—(46) Reserved.

(47) Golden Park.

(Code 1959, § 27-34; Ord. No. 58825, § 1, 5-31-84; Ord. No. 60015, § 2, 1-3-85; Ord. No. 60484, § 2, 3-28-85; Ord. No. 62146, § 1, 1-9-86; Ord. No. 63311, § 1, 7-24-86; Ord. No. 65079, § 2, 5-21-87; Ord. No. 65236, § 2, 6-25-87; Ord. No. 65849, § 2, 10-7-87; Ord. No. 65881, § 2, 10-15-87; Ord. No. 65936, § 2, 10-22-87; Ord. No. 66027, § 2, 11-5-87; Ord. No. 66911, § 2, 4-7-88; Ord. No. 68319, § 2, 11-17-89; Ord. No. 69851, § 2, 7-20-89; Ord. No. 70-417, § 12, 10-19-89; Ord. No. 70704, § 4, 12-7-89; Ord. No. 71155, § 3, 3-1-90; Ord. No. 71156, § 3, 3-1-90; Ord. No. 71217, § 3, 3-15-90; Ord. No. 71688, § 2, 6-7-90; Ord. No. 71794, § 3, 6-28-90; Ord. No. 72179, § 1, 8-30-90; Ord. No. 72180, § 2, 8-30-90; Ord. No. 72725, § 2, 11-29-90; Ord. No. 73485, § 1, 4-9-91; Ord. No. 74749, § 2, 11-14-91; Ord. No. 75872, § 1, 5-28-92; Ord. No. 75897, § 2, 6-4-92; Ord. No. 75978, § 2, 6-18-92; Ord. No. 78598, § 2, 9-2-93; Ord. No. 79555, § 3, 2-3-94; Ord. No.

86910, § 2, 11-6-97; Ord. No. 88608, § 2, 10-8-98; Ord. No. 89570, § 2, 4-8-99; Ord. No. 92282, § 2, 8-10-00; Ord. No. 94855, § 2, 11-1-01; Ord. No. 95687, § 2, 4-25-02)

Sec. 22-4. Use of park roads by heavy vehicles.

(a) *Purpose.* The purpose of this section is the protection of park roads, designed primarily for private passenger automobile traffic carrying passengers into and out of the public parks of the city for recreational purposes from the damaging and deteriorating effects of heavy, through vehicular traffic.

(b) *Maximum weight.* All use of park roads by trucks having a combined body and weight load in excess of seven thousand five hundred (7,500) pounds is prohibited.

(c) *Exceptions.* This section shall not prohibit upon the park roads:

(1) The operation of emergency vehicles;

(2) The operation of trucks owned or operated by the city; by public utilities, by any contractor or materialman, while engaged in repair, maintenance or construction of park roads, or utilities within the park;

(3) The operation of any truck serving a park function or performing a service for a concessionaire within a park.

(Ord. No. 25828, 12-5-57; Code 1959, § 27-11)

Sec. 22-4.1. Motor vehicles in city parks.

(a) It shall be unlawful for a person to drive any motor vehicle, motorcycle, motorbike, motor scooter, or other motor-driven device or vehicle into, along or across any public park, park property, public playground or park creekway which is owned, operated or maintained by the city, except upon public roadways, designated multi-use trails and parking areas maintained by the city for the operation of such vehicles; no such vehicle shall be driven upon any trail located therein, nor shall any such vehicle be driven on a footbridge spanning a creek, driveway or stream located therein.

(b) It shall be an affirmative defense to any charge that the vehicle driven by the defendant was a motorized wheelchair or other necessary walking aid; a vehicle being used for the purpose of construction, maintenance or repair of said parks or playgrounds; or an authorized emergency response vehicle.

(c) It shall be an affirmative defense to any charge that the defendant has received written permission from director of the parks and recreation department to drive a vehicle outside of designated areas. The director of the parks and recreation department shall consider damage to parkland, noise, safety and the general welfare of park patrons and the public in making his determination to approve or disapprove the request.

(d) Any person violating the provisions of this section shall be guilty of a class C misdemeanor.
(Ord. No. 2008-04-17-0317, § 4, 4-17-08)

Sec. 22-5. Parking of vehicles in city parks.

It shall be unlawful for any person to park, or cause to be parked, any type of vehicle in any city park, on bridle trails, on the grass, or picnic areas, inside enclosures or in any area where such parking is prohibited by posted signs, painted stripes or red curbing. Parking of vehicles shall be permitted only in certain areas designated by appropriate signs.
(Ord. No. 35646, § 1, 8-10-67; Code 1959, § 27-11)

Sec. 22-6. Speed limits in city parks.

It shall be unlawful for any person to drive or operate any type of motor vehicle in any city park at a speed greater than indicated by appropriate traffic signs and in no event shall such speed exceed thirty (30) miles per hour.
(Code 1959, § 27-13)

Sec. 22-6.1. Park facility promotional rates and fees.

Director of parks and recreation department is authorized to approve special promotions,

rates and fees for parks and recreation facilities that are designed to market and maximize utilization of these facilities.
(Ord. No. 101402, § 8, 9-15-05)

Sec. 22-7. Reserved.

Editor's note—Ord. No. 2013-09-12-0631, § 2(Att. H), adopted September 12, 2013, repealed the former section 22-7 in its entirety, which pertained to charges for use of baseball, softball diamonds, gymnasiums, and derived from the Code of 1959, § 27-18; Ord. No. 49626, § 3, adopted July 27, 1978; Ord. No. 52521, § 2, adopted July 24, 1980; Ord. No. 54281, §§ 1, 14, adopted September 17, 1981; Ord. No. 61335, § 4, adopted August 29, 1985; Ord. No. 63234, § 1, adopted July 16, 1986; Ord. No. 65691, § 1, adopted September 10, 1987; Ord. No. 86609, §§ 33, 34, 36, adopted September 11, 1997; Ord. No. 88494, § 2, adopted September 17, 1998; Ord. No. 94585, §§ 2—4, adopted September 20, 2001; Ord. No. 99739, § 3, adopted September 16, 2004; Ord. No. 101402, § 9, adopted September 15, 2005; Ord. No. 2007-09-13-0973I, § 1, adopted September 13, 07; Ord. No. 2008-09-11-0777E, § 2, adopted September 11, 2008; Ord. No. 2009-09-17-0731J, § 1, adopted September 17, 2009, and Ord. No. 2012-05-31-0393, § 2, adopted May 31, 2012.

Sec. 22-8. Clubhouse rental fees.

(1) Olmos Clubhouse: Thirty dollars ($30.00) per hour with a four-hour minimum.

(2) Woodlawn Lake Island House: Thirty dollars ($30.00) per hour with a four-hour minimum.

(3) Hillside Acres Clubhouse: Thirty dollars ($30.00) per hour with a four-hour minimum.

(4) Roosevelt Clubhouse: Fifty dollars ($50.00) per hour with a four-hour minimum.

(5) A damage/cleanup deposit of one hundred dollars ($100.00) is hereby authorized to be collected at the time reservation for aforesaid facilities is made. Said damage/cleanup is refundable to the user in whole or in part based on the condition rented premises are in after a reserved event. The amount of damage/cleanup deposit refunded to the user shall be determined by the director of parks and recreation or his designee and shall be based on policies established for each facility.

(6) Pursuant to Ordinance 63005, of June 4, 1986, the Woodlawn Lake Community Association and Church's Fried Chicken, Inc., may henceforth use the Woodlawn Lake Island House without payment of established use fees; such free use being limited to official association functions and official company-sponsored events.
(Code 1959, § 27-19; Ord. No. 49626, § 4, 7-27-78; Ord. No. 54281, § 3, 9-17-81; Ord. No. 61335, § 5, 8-29-85; Ord. No. 63234, § 3, 7-16-86; Ord. No. 65691, § 2, 9-10-87; Ord. No. 88494, § 2, 9-17-98; Ord. No. 2006-09-07-1009, § 2, 9-7-06; Ord. No. 2008-09-11-0777E, § 3, 9-11-08; Ord. No. 2010-09-16-0791, § 1(Att. C), 9-16-10; Ord. No. 2013-09-12-0631, § 2(Att. H), 9-12-13)

Editor's note—Ord. No. 2013-09-12-0631, § 2(Att. H), adopted September 12, 2013, changed the title of section 22-8 from "Party facilities rental fees" to "Clubhouse rental fees." The historical notation has been preserved for reference purposes.

Sec. 22-9. Fees for admission and use of Spanish Governor's Palace.

(a) The following fees are approved for use of the Spanish Governor's Palace:

Adults: $5.00

Seniors/Military: $3.00

Children: $3.00

Spanish Governor's Palace Courtyard Rental Rate:

Side Courtyard:

$175.00 for three (3) hours

Side and Main Courtyard:

$500.00 for up to six (6) hours

$125.00 for each additional hour

(b) Children enrolled in elementary and middle school grades in the San Antonio Metropolitan Area, along with accompanying adult guide(s) and supervisor(s) shall be admitted free when their admission is associated with formal and regularly scheduled educational tours sponsored by their respective school(s) or by a chartered, not-for-profit organization. The department director shall ascertain whether such tours are a part of a sustained regular or annual educational program by such schools or organizations. One-time tours shall not qualify for free admission but may qualify for reduced rates as determined by the department director.
(Code 1959, § 27-20; Ord. No. 49626, § 3, 7-27-78; Ord. No. 52521, § 1, 7-24-80; Ord. No. 59314,

§ 5, 9-4-84; Ord. No. 61335, § 6, 8-29-85; Ord. No. 63234, § 4, 7-16-86; Ord. No. 65691, § 4, 9-10-87; Ord. No. 68272, § 1, 11-10-88; Ord. No. 92517, § 4, 9-14-00; Ord. No. 98189, § 1, 9-18-03; Ord. No. 2007-09-13-0973C&D, § 1, 9-13-07; Ord. No. 2008-09-11-0777A, § 2, 9-11-08; Ord. No. 2009-09-17-0731D, § 1, 9-17-09; Ord. No. 2013-09-12-0631, § 2(Att. C), 9-12-13)

Sec. 22-10. Fee for use of park pavilions.

(a) A reservation use fee of fifteen dollars ($15.00) per hour with a four-hour minimum on Monday through Thursday; and thirty dollars ($30.00) per hour with a four-hour minimum on Friday, Saturday, Sunday and holidays for park pavilions is hereby authorized. Users may reschedule use of the pavilion one time with no charge by giving a minimum of thirty (30) days notice. One-half (½) of the reservation use fee will be refunded if use of the pavilion is canceled prior to thirty (30) days of the scheduled use. No refunds will be made if less than thirty (30) days notice of cancellation is given.

(b) Koehler picnic area and pavilion reservation fees are as follows:

(1) Monday through Thursday: Twenty-five dollars ($25.00) per hour with a four-hour minimum.

(2) Friday through Sunday or holidays: Thirty-five dollars ($35.00) per hour with a four-hour minimum.

(c) Graff Pavilion reservation fees are as follows:

(1) Monday through Thursday: Twenty-five dollars ($25.00) per hour with a four-hour minimum.

(2) Friday through Sunday or holidays: Thirty-five dollars ($35.00) per hour with a four-hour minimum.

(3) Additional per use fee of the kitchen area in connection with any reservation, anytime: Ninety dollars ($90.00).

(d) Cypress Pavilion reservation fees are as follows:

(1) Monday through Thursday: Fifteen dollars ($15.00) per hour with a four-hour minimum.

(2) Friday through Sunday or holidays: Thirty dollars ($30.00) per hour with a four-hour minimum.

(Code 1959, § 27-21; Ord. No. 52521, § 4, 7-24-80; Ord. No. 54281, § 2, 9-17-81; Ord. No. 57564, § 1, 9-15-83; Ord. No. 63234, 5, 7-16-86; Ord. No. 80030, 4-21-94; Ord. No. 84796, § 1, 9-19-96; Ord. No. 86609, § 14, 9-11-97; Ord. No. 94585, §§ 5—7, 9-20-01; Ord. No. 99739, § 4, 9-16-04; Ord. No. 99750, §§ 1, 2, 9-16-04; Ord. No. 2006-09-07-1009, § 3, 9-7-06; Ord. No. 2007-09-13-0973I, § 1, 9-13-07; Ord. No. 2007-09-13-0973O, § 1, 9-13-07; Ord. No. 2008-09-11-0777E, § 4, 9-11-08; Ord. No. 2010-09-16-0791, § 1(Att. C), 9-16-10; Ord. No. 2013-09-12-0631, § 2(Att. H), 9-12-13)

Sec. 22-11. Fee for use of Mateo Camargo Park.

(a) Fees for use of Mateo Camargo Park shall be as follows:

(1) Attendance four hundred (400) or less: $375.00

(2) Attendance four hundred and one (401) to one thousand (1,000): $700.00

(3) Attendance one thousand and one (1,001) or more: $1,100.00

(4) Pavilion only: $275.00

(b) Non-profit organization rental rate:

(1) Attendance four hundred (400) or less: $250.00

(2) Attendance four hundred and one (401) to one thousand (1,000): $500.00

(3) Attendance one thousand and one (1,001) or more: $800.00

(c) Damage/cleanup fees for Mateo Camargo Park shall be as follows:

(1) Attendance four hundred (400) or less: $500.00

(2) Attendance four hundred and one (401) to one thousand (1,000): $800.00

(3) Attendance one thousand and one (1,001) or more: $1,500.00

(d) Users may reschedule use of Mateo Camargo Park one (1) time with no charge by giving a minimum of thirty (30) days notice. One-half (½) of the reservation use fee will be refunded if use of the park is canceled prior to thirty (30) days of the scheduled use. No refunds will be made if less than thirty (30) days notice of cancellation is given.

(Code 1959, § 27-22; Ord. No. 52521, § 5, 7-24-80; Ord. No. 54281, § 22, 9-17-81; Ord. No. 57564, § 3, 9-15-83; Ord. No. 63234, § 6, 7-16-86; Ord. No. 65691, § 5, 9-10-87; Ord. No. 86609, § 15, 9-11-97; Ord. No. 96406, § 1, 9-19-02; Ord. No. 99739, § 5, 9-16-04; Ord. No. 101402, § 1, 9-15-05; Ord. No. 2010-09-16-0791, § 1(Att. C), 9-16-10)

Sec. 22-12. Fee for use of Rosedale Park mass picnic facility.

(a) Fees for the use of Rosedale Park mass picnic facility shall be as follows:

(1) Attendance four hundred (400) or less: $575.00

(2) Attendance four hundred and one (401) to one thousand (1,000): $1,100.00

(3) Attendance one thousand and one (1,001) or more: $1,700.00

(4) Pavilion only: $275.00

(b) Non-profit organization rental rate:

(1) Attendance four hundred (400) or less: $450.00

(2) Attendance four hundred and one (401) to one thousand (1,000): $850.00

(3) Attendance one thousand and one (1,001) or more: $1,300.00

(c) Damage/cleanup fees for Rosedale Park mass picnic facility shall be as follows:

(1) Attendance four hundred (400) or less: $500.00

(2) Attendance four hundred and one (401) to one thousand (1,000): $800.00

(3) Attendance one thousand and one (1,001) or more: $1,500.00

(d) Users may reschedule use of Rosedale Park picnic facilities one (1) time with no charge by giving a minimum of thirty (30) days notice. One-half (½) of the reservation use fee will be refunded if use of the park is canceled prior to thirty (30) days of the scheduled use. No refunds will be made if less than thirty (30) days notice of cancellation is given.

(Code 1959, § 27-22; Ord. No. 52521, § 5, 7-24-80; Ord. No. 54281, § 22, 9-17-81; Ord. No. 57564, § 3, 9-15-83; Ord. No. 63234, § 6, 7-16-86; Ord. No. 65691, § 5, 9-10-87; Ord. No. 86609, § 16, 9-11-97; Ord. No. 96406, § 2, 9-19-02; Ord. No. 99739, § 6, 9-16-04; Ord. No. 101402, § 2, 9-15-05; Ord. No. 2010-09-16-0791, § 1(Att. C), 9-16-10)

Sec. 22-13. Aquatics fees.

(a) The parks and recreation department is hereby authorized to charge the fees set by the following schedule for admission to San Antonio Natatorium.

(1) Persons under the age of eighteen (18) years $2.00

(2) Persons aged eighteen (18) to fifty-nine (59) years 4.00

(3) Persons aged sixty (60) years and over 3.00

(4) Adults (age eighteen (18) to fifty-nine (59) years) may purchase an adult swim pass good for twenty (20) admissions to the San Antonio Natatorium for seventy dollars ($70.00). The adult swim pass must be used within ninety (90) days of issuance and will expire ninety (90) days after the date of issuance regardless of the number of admissions utilized.

(5) Seniors (aged sixty (60) years and over) may purchase a senior swim pass good for twenty (20) admissions to the San Antonio Natatorium for fifty dollars ($50.00). The senior swim pass must be

used within ninety (90) days of issuance and will expire ninety (90) days after the date of issuance regardless of the number of admissions utilized.

(6) Individuals requiring swimming exercises as a part of a health care provider directed therapeutic program may apply for no charge admission to the San Antonio Natatorium. Said application must be accompanied by a written confirmation of the need for therapeutic swimming exercise, and the duration of this need, by the health care provider and be for a specifically named individual. Upon review of said application and documentation, city parks and recreation staff may issue a permit for no charge admission to the San Antonio Natatorium for the duration of the certified need. Admission will be for swim times open to the general public only, and the city shall provide no other services beyond admission to the San Antonio Natatorium.

(b) The parks and recreation department is hereby authorized to charge the following special group rates for use of the San Antonio Natatorium:

(1)	Special group rate, nonexclusive, two-hour minimum, per hour	$ 20.00
(2)	Special group rate, exclusive use, two-hour minimum, per hour	30.00
(3)	Special group rate, exclusive use, eight-hour minimum, per day	200.00

(4) A group rate damage/cleanup deposit of five hundred dollars ($500.00) is hereby authorized to be collected at the time reservation for aforesaid facilities is made. Said damage/cleanup deposit is refundable to the user in whole or in part based on the condition rented premises are in after a reserved event. The amount of damage/cleanup deposit refunded to the user shall be determined by the director of parks and recreation or his designee and shall be based on policies established for each facility.

(c) When the San Antonio Natatorium is rented by a group under terms of above established group rates, any admission fees charged by the group must be coordinated with and approved by the director, parks and recreation.

(d) The admission fees established in subsections (a) and (b) pertain to general public admissions. Incidental use of the San Antonio Natatorium by the San Antonio Independent School District shall be pursuant to the agreement between the city and SAISD manifested by Ordinance No. 50030, November 2, 1978, which is adopted by reference as if set forth herein at length.

(e) (1) Individuals enrolled in group swim and group water aerobics sessions offered by the city shall pay a fee of thirty dollars ($30.00) per session.

(2) Individuals enrolled in private swim session shall pay a fee of fifty dollars ($50.00) for four (4) 30-minute lessons.

(3) Individuals enrolled in water fitness offered by the city shall pay a fee of forty dollars ($40.00) per month.

(f) Reserved.

(g) There is hereby established a rental fee for the private use of the city's indoor and outdoor swimming pools for private splash parties. Said rentals will only occur before or after normal operating hours when the pools are not open to the public and will be for a two-hour period only. In addition to the rental fee indicated below, persons renting city pools shall be required to pay the city for the cost of providing life guards for the event. The number of lifeguards required for this use will be determined by parks and recreation department staff based on the number of individuals utilizing the facility and the pool being utilized. Rental fees for said use shall be as follows:

Number of Users	*Indoor/Outdoor Pools*
1 to 75 persons	$150.00

Number of Users	*Indoor/Outdoor Pools*
76 to 150 persons	200.00
151 to 250 persons	250.00

(Code 1959, § 27-24; Ord. No. 61335, § 7, 8-29-85; Ord. No. 63234, § 8, 7-16-86; Ord. No. 67912, § 2, 9-15-88; Ord. No. 84796, §§ 2, 3, 9-19-96; Ord. No. 89451, § 1, 3-18-99; Ord. No. 94585, §§ 8, 9, 9-20-01; Ord. No. 99739, § 7, 9-16-04; Ord. No. 2006-09-07-1009, § 4, 9-7-06; Ord. No. 2007-09-13-0973I, § 1, 9-13-07; Ord. No. 2009-09-17-0731J, § 2, 9-17-09; Ord. No. 2010-09-16-0791, § 1(Att. C), 9-16-10; Ord. No. 2013-09-12-0631, § 2(Att. H), 9-12-13; Ord. No. 2014-09-18-0694, § 2(Att. H), 9-18-14)

Editor's note—Ord. No. 2013-09-12-0631, § 2(Att. H), adopted September 12, 2013, changed the title of section 22-13 from "Admission fees for San Antonio Natatorium" to "Aquatics fees." The historical notation has been preserved for reference purposes.

Sec. 22-14. Reserved.

Editor's note—Ord. No. 2025-02-13-0109, § 1(Exh. I), adopted February 13, 2025, repealed § 22-14, which pertained to admission fees for San Antonio Botanical Center and derived from Code, 1959, § 27-25; Ord. No. 52016, §§ 1, 2, 3-27-80; Ord. No. 54281, § 23, 9-17-81; Ord. No. 55813, § 8, 9-16-82; Ord. No. 63234, § 9, 7-16-86; Ord. No. 64825, § 1, 4-2-87; Ord. No. 66654, § 3, 2-25-88; Ord. No. 67912, § 3, 9-15-88; Ord. No. 78723, § 1, 9-15-93; Ord. No. 84796, §§ 4—6, 9-19-96; Ord. No. 86609, §§ 40, 42, 9-11-97; Ord. No. 93554, § 2, 3-8-01; Ord. No. 98189, § 2, 9-18-03; Ord. No. 99739, §§ 8, 9, 9-16-04; Ord. No. 2007-09-13-0973I, § 1, 9-13-07; Ord. No. 2009-09-17-0731J, § 3, 9-17-09; Ord. No. 2010-09-16-0791, § 1(Att. C), 9-16-10; Ord. No. 2013-09-12-0631, § 2(Att. H), 9-12-13; Ord. No. 2016-09-15-0697, § 2(Att. E), 9-15-16.

Sec. 22-15. Use fee for wedding ceremonies.

Use fees may be assessed by the director of downtown operations for individual wedding ceremonies held on properties in the downtown business district approved by the director of downtown operations.

(Code 1959, § 27-27; Ord. No. 54281, § 13, 9-17-81; Ord. No. 57564, § 7, 9-15-83; Ord. No. 63234, § 10, 7-16-86; Ord. No. 86609, § 29, 9-11-97; Ord. No. 2006-09-07-1009, § 5, 9-7-06; Ord. No. 2007-09-13-0973C&D, § 1, 9-13-07; Ord. No. 2008-09-11-0777A, § 3, 9-11-08; Ord. No. 2009-09-17-0731D, § 3, 9-17-09; Ord. No. 2014-04-03-0206, § 5, 4-3-14)

Sec. 22-16. Reserved.

Editor's note—Ord. No. 2013-09-12-0631, § 2(Att. H), adopted September 12, 2013, repealed the former section 22-16 in its entirety, which pertained to participation fees for city athletic leagues, and derived from the Code 1959, § 27-28; Ord. No. 54281, § 15, adopted September 17, 1981; Ord. No. 61335, § 8, adopted August 29, 1985; Ord. No. 65691, § 9, adopted September 10, 1987; Ord. No. 67912, § 4, adopted September 15, 1988; Ord. No. 98189, §§ 3, 4, adopted September 18, 2003; Ord. No. 101402, § 10, adopted September 15, 2005; Ord. No. 2006-09-07-1012, § 1, adopted September 7, 2006; Ord. No. 2007-09-13-0973P, § 1, adopted September 13, 2007; Ord. No. 2008-09-11-0777E, § 5, adopted September 11, 2008; Ord. No. 2009-09-17-0731J, § 4, adopted September 17, 2009; Ord. No. 2010-09-16-0791, § 1(Att. C), adopted September 16, 2010, and Ord. No. 2012-05-31-0393, § 2, adopted May 31, 2012.

Sec. 22-17. Park usage fee for special events.

(a) Permit fees shall be assessed for the use of downtown parks for special events to include any commercial for-profit, commercial non-profit, non-commercial, civic, ceremonial, or other types of special event at rates to be established by the director of downtown operations.

(1) Commercial/for-profit use shall include any sales, catered events, fairs, shows etc.

(2) Commercial use by nonprofit organizations, to include any sales, catered events, fairs, shows, etc., events will only be certified as nonprofit if a minimum of fifty (50) percent of the gross proceeds of the events go directly to a federally designated 501c3 nonprofit organization.

(3) Noncommercial use shall be limited to events for which no sales are permitted or donations accepted.

(4) For special events sponsored or co-sponsored by the city, no fees for such use.

(5) For film or photo production use, two hundred dollars ($200.00) for the first four (4) hours of use, and forty dollars ($40.00) for each additional hour or part thereof of use in any 24-hour period.

All reservations for special events in Alamo Plaza will be on first-come, first-serve basis. Reservations for any year will not be taken

before January first of that year. When Alamo Plaza special event reservations are received for the same date and time, a lottery will be held by the department of downtown operations to confirm the reservation.

Alamo Plaza East may not be reserved for any commercial use. Amplified sound is not permitted in Alamo Plaza, except for ceremonial or civic events, with the prior written approval of the director of downtown operations. Commercial use of Alamo Plaza shall be limited to no more than two (2) events per month.

(b) A park usage fee for special events within city parks shall be charged per day per event. These fees are as follows:

(1) Small events with minimum set up requirements:

a. Family events $50.00

b. Organization/company events 75.00

(2) Larger events with set up or special activities:

a. Attendance four hundred (400) or less: Four hundred fifty dollars ($450.00).

b. Attendance four hundred one (401) to one thousand (1,000): Seven hundred fifty dollars ($750.00).

c. Attendance one thousand one (1,001) or more: One thousand one hundred dollars ($1,100.00).

(3) Non-profit organization rental rate:

a. Attendance four hundred (400) or less: Three hundred fifty dollars ($350.00).

b. Attendance four hundred one (401) to one thousand (1,000): Six hundred dollars ($600.00).

c. Attendance one thousand and one (1,001) or more: Nine hundred dollars ($900.00).

(c) Damage/cleanup fees for special events shall be as follows:

(1) Attendance four hundred (400) or less: Five hundred dollars ($500.00).

(2) Attendance four hundred and one (401) to one thousand (1,000): Eight hundred dollars ($800.00).

(3) Attendance one thousand one (1,001) or more: One thousand five hundred dollars ($1,500.00).

(d) Damage and clean-up deposit for Alamo Plaza shall be as follows:

(1) Two thousand dollars ($2,000.00) for non-profit agencies/organizations.

(2) Five thousand dollars ($5,000.00) for commercial agencies/organizations.

(Code 1959, § 27-29; Ord. No. 54281, § 16, 9-17-81; Ord. No. 59314, § 3, 9-4-84; Ord. No. 63234, § 11, 7-16-86; Ord. No. 70254, § 6, 9-14-89; Ord. No. 72332, § 1, 9-13-90; Ord. No. 84796, § 7, 9-19-96; Ord. No. 88494, § 1, 9-17-98; Ord. No. 92517, §§ 5—8, 9-14-00; Ord. No. 96406, §§ 3, 4, 9-19-02; Ord. No. 98189, § 5, 9-18-03; Ord. No. 99739, § 10, 9-16-04; Ord. No. 101402, § 3, 9-15-05; Ord. No. 2007-09-0937C&D, § 1, 9-13-07; Ord. No. 2008-09-11-0777, § 4, 9-11-08; Ord. No. 2009-09-17-0731D, § 4, 9-17-09; Ord. No. 2010-09-16-0791, § 1(Att. C), 9-16-10; Ord. No. 2014-09-18-0694, § 2(Att. H), 9-18-14)

Editor's note—Section 3 of Ordinance No. 88494, adopted Sept. 17, 1998, states that "all park usage fees collected for special events in Alamo Plaza will be deposited into the City's General Fund in Revenue Index No. 015792, entitled Alamo Plaza Special Events."

Sec. 22-18. Stage facility user fees.

The parks and recreation department is hereby authorized to charge the stage facility user fees set by the following schedule:

(1) Showmobile and stagemobile, per eight (8) hours, plus $50.00 for each hour over eight (8) $650.00

(2) Reserved.

(3) Reserved.

(4) Mini-stage (no sound equipment or technician), per day 275.00

(5) Audio equipment rental, per set up. 300.00

(6) Stage extension fee 175.00

(Code 1959, § 27-30; Ord. No. 54281, § 17, 9-17-81; Ord. No. 61335, § 9, 8-29-85; Ord. No. 65691, § 10, 9-10-87; Ord. No. 86609, § 31, 9-11-97; Ord. No. 92517, §§ 9, 10, 9-14-00; Ord. No. 99739, § 11, 9-16-04; Ord. No. 101402, § 4, 9-15-05; Ord. No. 2006-09-07-1009, § 6, 9-7-06; Ord. No. 2007-09-13-0973I, § 1, 9-13-07; Ord. No. 2010-09-16-0791, § 1(Att. C), 9-16-10)

Sec. 22-19. Fees for use of Sunken Gardens Theater.

The rental fees for use of the Sunken Gardens Theater shall be:

(1) Attendance to any event in the Sunken Garden Theater will be strictly limited to no more than four thousand eight hundred (4,800) individuals per event. Facility renters will not allow more than four thousand eight hundred (4,800) individuals to attend any event in this facility. Any facility renter who allows attendance more than the maximum of four thousand eight hundred (4,800) per event will have their event canceled and will be precluded from rental or use of this facility in the future.

(2) Commercial events for which admission is charged will pay fifteen (15) percent of all gross sales by the facility renter, to include but not limited to admission fees, merchandise, food and beverage concession sales and booth rentals, up to a maximum of six thousand dollars ($6,000.00) per event. The facility renter will pay a minimum of three thousand dollars ($3,000.00) per event regardless of gross sales.

(3) Commercial events by non-profit organizations for which admission fees are charged will pay ten (10) percent of the of all gross sales by the facility renter, to include but not limited to admission fees, merchandise, food and beverage concession sales and booth rentals, up to a maximum of three thousand dollars ($3,000.00) per event. The facility renter will pay a minimum of one thousand five hundred dollars ($1,500.00) per event regardless of gross sales. Events will only be certified as non-profit for use of the Sunken Garden Theater if a minimum of fifty (50) percent of the gross proceeds of the events go directly to a federally designated 501c3 non-profit organization.

(4) Events for which no admission is charged will pay will pay ten (10) percent of the of all gross sales by the facility renter, to include but not limited to merchandise, food and beverage concession sales and booth rentals, up to a maximum of one thousand five hundred dollars ($1,500.00) per event. The facility renter will pay a minimum of five hundred dollars ($500.00) per event regardless of gross sales.

(5) Events sponsored or cosponsored by the city to which a donation may or may not be solicited will pay no rental fee for the use of the Sunken Garden Theater, providing however, the reserving department, agency or entity will be required to pay all direct costs associated with this use including but not limited to preparation of facility, clean-up of facility after event, costs associated with the use of the adjacent Valero Parking garage, portable toilet services and security. Failure to pay these costs will preclude that department, agency or entity from utilizing the Sunken Garden Theater in the future on a "no rental fee" basis until such time as these costs have been paid for.

(6) All events shall pay a damage/clean-up deposit of one thousand five hundred dollars ($1,500.00).

(Code 1959, § 27-31; Ord. No. 57564, § 4, 9-15-83; Ord. No. 59172, § 5, 8-9-84; Ord. No. 61335, § 10, 8-29-85; Ord. No. 65691, § 11, 9-10-87; Ord. No. 84796, § 8, 9-19-96; Ord. No. 92517, § 11, 9-14-00; Ord. No. 93687, § 1, 3-29-01; Ord. No. 2007-09-13-0973I, § 1, 9-13-07)

Sec. 22-20. Fees for use of football, soccer, rugby, multi-use, softball and baseball fields.

The following fees shall be collected by the director of parks and recreation department for rental of football, soccer, rugby, multi-use, softball and baseball fields.

(1) Twelve dollars ($12.00) per hour before 5:00 p.m.

(2) Sixteen dollars ($16.00) per hour after 5:00 p.m.

(Code 1959, § 27-32; Ord. No. 54281, § 19, 9-17-81; Ord. No. 63234, § 2, 7-16-86; Ord. No. 86609, § 38, 9-11-97; Ord. No. 99739, § 12, 9-16-04; Ord. No. 2007-09-13-0973I, § 1, 9-13-07; Ord. No. 2008-09-11-0777E, § 6, 9-11-08; Ord. No. 2009-09-17-0731J, § 5, 9-17-09; Ord. No. 2013-09-12-0631, § 2(Att. H), 9-12-13; Ord. No. 2016-09-15-0697, § 2(Att. E), 9-15-16)

Editor's note—Ord. No. 2013-09-12-0631, § 2(Att. H), adopted September 12, 2013, changed the title of section 22-20 from "Fees for use of football, soccer or rugby fields" to "Fees for use of football, soccer, rugby, multi-use, softball and baseball fields." The historical notation has been preserved for reference purposes.

Sec. 22-21. Criteria for establishing fees for recreation related classes.

The department of parks and recreation is hereby authorized to charge a fee for specialized recreation related classes, programs or activities and such fees and costs will be set based on the following criteria:

(1) The fee shall be equal to the direct and indirect cost of the classes, programs or activities as determined by the director of parks and recreation.

(2) The cost determination shall include, but not be limited to, professional service fees paid to specialist instructors, materials used in connection with a special class or activity and other direct and indirect costs incurred in providing the program.

(3) The total cost of a specialized service or program shall be divided equally among the registered participants in the program.

(Code 1959, § 27-33; Ord. No. 54281, § 24, 9-17-81)

Sec. 22-21.1. Participation fees.

(a) Reserved.

(b) Reserved.

(c) An annual fee shall be charged for participation in after school youth programs in accordance with the fee structure set forth below:

After School Challenge Program Fees		
Federal Poverty Level (FPL)*		
	185% of FPL and below	*186% and over of FPL*
Annual cost for 1st child	$25.00	$260.00
Each additional child	15.00	160.00
Annual maximum per family	55.00	580.00
* Depending on family or household size and as updated and published annually in January of each calendar year in the Federal Register.		

(d) A youth sports participation fee of ten dollars ($10.00) will be charged to each participant per sport per league season registration for recreational sports, swim teams and softball leagues.

(e) The fee for cultural based instructional classes shall be sixty dollars ($60.00) per adult (age eighteen (18) to fifty-nine (59)) per participant per class; thirty dollars ($30.00) per youth and persons age sixty (60) and over, per participant per class; fifteen dollars ($15.00) per youth each additional class, same youth; and, twenty-five dollars ($25.00) for each additional youth family member.

(f) Reserved.

(g) Recreation program holiday/spring break camp supply fee of three dollars ($3.00) per day per participant per class.

(h) Adult and senior program participation fee of fifteen dollars ($15.00) per participant per year for persons eighteen (18) to fifty-nine (59), and seven dollars ($7.00) per participant per year for persons sixty (60) and over.

(i) City athletic leagues fees are as follows:

(1) Youth softball team entry fee: Four hundred dollars ($400.00).

(2) Gate admission fee of two dollars ($2.00) per person.

(j) Reserved.

(k) Contracted program classes, fees to be determined, and revenue divided as follows:

(1) Community centers: Seventy (70) percent to the instructor and thirty (30) percent to the city.

(2) Senior centers: Eighty (80) percent to the instructor and twenty (20) percent to the city.

(l) Reserved.

(m) Reserved.

(n) An annual fee shall be charged for participation in a summer youth program in accordance with the fee structure set forth below:

Summer Youth Program Fees		
Federal Poverty Level (FPL)*		
	185% of FPL and below	*186% and over of FPL*
Annual cost for 1st child	$25.00	$260.00
Annual cost for 2nd and 3rd child each	15.00	160.00
Annual cost for 4th child or more	0.00	0.00
Annual maximum per family	55.00	580.00
* Depending on family or household size and as updated and published annually in January of each calendar year in the Federal Register.		

(o) Fitness room fees: One hundred twenty dollars ($120.00) per adult (eighteen (18) to fifty-nine (59)) per year per participant; thirty dollars ($30.00) per youth per year per participant; and twenty-five dollars ($25.00) for persons sixty (60) and over per year per participant.

(p) Adaptive sports program fees: Twenty dollars ($20.00) per adult (eighteen (18) to fifty-nine (59)) per sport per participant; twelve dollars ($12.00) per youth, per sport per participant; and ten dollars ($10.00) for persons sixty (60) and over, per sport per participant.

(Ord. No. 96406, § 5, 9-19-02; Ord. No. 98189, §§ 6—8, 9-18-03; Ord. No. 99739, § 13, 9-16-04; Ord. No. 101402, § 7, 9-15-05; Ord. No. 2006-09-07-1009, § 7, 9-7-06; Ord. No. 2007-09-13-0973B, §§ 1—3, 9-13-07; Ord. No. 2007-09-13-0973I, § 1, 9-13-07; Ord. No. 2008-06-12-0513, § 1, 6-12-08; Ord. No. 2008-08-14-0701, §§ 1, 2, 8-14-08; Ord. No. 2009-09-17-0731J, § 6, 9-17-09; Ord. No. 2010-09-16-0791, § 1(Att. C), 9-16-10; Ord. No. 2013-09-12-0631, § 2(Atts. F, H), 9-12-13; Ord. No. 2015-09-10-0758, § 2(Att. F), 9-10-15)

Editor's note—Ord. No. 2007-09-13-0973B, § 1, adopted September 13, 2007, states the following: "Section 22-21.1(a) of the City Code of the City of San Antonio relating to supply fees charged to participants enrolled in after school programs shall be rescinded effective December 31, 2007."

Ord. No. 98189, §§ 6, 7, adopted September 18, 2003, did not specify manner of inclusion; hence, inclusion as subsections (e) and (f) is at the discretion of the editor. Section 8 of said ordinance changed the title of § 22-21.1 from "program supply fees" to "participation fees." The historical notation has been preserved for reference purposes.

Sec. 22-22. Reserved.

Editor's note—Ord. No. 2010-09-16-0791, § 1(Att. C), adopted September 16, 2010, repealed the former section 22-22 in its entirety, which pertained to rental rates for use of space in the Garden Center Building of Mahncke Park, and derived from Ord. No. 61092, §§ 1, 2, adopted July 25, 1985.

Sec. 22-23. Rental fees for La Villita Plazas, streets, buildings and furniture.

The following rental fees for La Villita Plazas Street, buildings, furniture and services are hereby established:

Facility	*Seating Capacity*	*Daily Rental*	*Security Deposit*
Bolivar Hall		$500.00	$500.00
Plaza Maverick:	1,000		$500.00
Non-commercial		$1,000.00	
Commercial		$2,000.00	
Plaza Juarez:	300	$700.00	$500.00
Plaza Nacional:	150	$500.00	$500.00
Cos House	100	$500.00	$500.00
Public streets in La Villita: Villita Street, Alamo Street frontage, O'Neil Ford Plaza, areas within and surrounding La Villita, and other open spaces and common areas at La Villita not listed above	NA	$300.00/ per area	$500.00

A charge of eight dollars ($8.00) per table and two dollars ($2.00) per chair and a set-up charge of one dollar ($1.00) per item shall be assessed for use of La Villita's tables and/or chairs outside of events or rentals in La Villita. A charge of one hundred dollars ($100.00) per day shall be assessed for use of La Villita stage lighting along with a deposit of one hundred dollars ($100.00).

A damage deposit of two hundred dollars ($200.00) per contract for equipment rental is hereby approved. All rentals shall include a custodial fee as calculated by the center city development and operations department director, or their designee, based on an estimate of the number of hours of custodial services needed and the hourly rate of the city's then current contract for custodial services, which in FY 2020 is fifteen dollars and fifty cents ($15.50) per hour for a custodian and seventeen dollars and fifty cents ($17.50) per hour for a custodian supervisor.
(Ord. No. 63234, § 12, 7-16-86; Ord. No. 90497, § 2, 9-16-99; Ord. No. 101402, § 5, 9-15-05; Ord. No. 2006-09-07-1010, § 2, 9-7-06; Ord. No. 2007-09-0973C&D, § 1, 9-13-07; Ord. No. 2008-09-11-0777A, § 5, 9-11-08; Ord. No. 2019-09-12-0694A, § 1(Att. A), 9-12-19)

Editor's note—Ord. No. 63234 § 12, adopted July 16, 1986, did not specifically amend the Code; hence, inclusion herein as § 22-23 was at the discretion of the editor.

Sec. 22-23.1. Reserved.

Editor's note—Ord. No. 2009-09-17-0731D, § 6, adopted September 17, 2009, repealed the former section 22-23.1 in its entirety, which pertained to HemisFair Park catering fees, and derived from Ord. No. 92517, § 12, adopted September 14, 2000, and Ord. No. 2008-09-11-0777A, § 6, adopted September 11, 2008.

Sec. 22-23.2. La Villita temporary vending permit.

The director of parks and recreation will establish policies and procedures for a working artist program to allow local, working artists to demonstrate and sell unique, hand made products in designated areas within La Villita. Permit fees shall be as follows:

(1) Working artist program daily rate: $25.00.

(2) Working artist program monthly rate: $300.00.

(Ord. No. 98189, § 9, 9-18-03; Ord. No. 2006-09-07-1010, § 3, 9-7-06)

Sec. 22-24. Fees for use of Eisenhower Park picnic facilities.

(a) Fees for the use of Eisenhower Park mass picnic facility shall be as follows:

(1) Attendance four hundred (400) or less: $575.00

(2) Attendance four hundred and one (401) to one thousand (1,000): 1,100.00

(3) Attendance one thousand and one (1,001) or more: 1,700.00

(4) Pavilion only: 275.00

(b) Non-profit organization rental rate:

(1) Attendance four hundred (400) or less: $450.00

(2) Attendance four hundred and one (401) to one thousand (1,000): 850.00

(3) Attendance one thousand and one (1,001) or more: 1,300.00

(c) Damage/cleanup fees for the use of Eisenhower Park mass picnic facility shall be as follows:

(1) Attendance four hundred (400) or less: $500.00

(2) Attendance four hundred and one (401) to one thousand (1,000): 800.00

(3) Attendance one thousand and one (1,001) or more: 1,500.00

(d) Users may reschedule use of Eisenhower Park picnic facilities one (1) time with no charge by giving a minimum of thirty (30) days notice. One-half (½) of the reservation use fee will be refunded if use of the park is canceled prior to thirty (30) days of the scheduled use. No refunds will be made if less than thirty (30) days notice of cancellation is given.
(Ord. No. 65691, § 7, 9-10-87; Ord. No. 86609, § 17, 9-11-97; Ord. No. 96406, § 6, 9-19-02; Ord. No. 99739, § 14, 9-16-04; Ord. No. 101402, § 6, 9-15-05; Ord. No. 2010-09-16-0791, § 1(Att. C), 9-16-10)

Sec. 22-25. Overnight camping fees.

(a) It is unlawful to camp in city park areas unless by permit in designated areas and only by reservation or during a holiday declaration allowed for by subsection 22-28(a).

(b) Appropriate use and reservation policies for overnight camping will be at the discretion of the director of parks and recreation.

(c) Fees for overnight camping in parks with approved, designated camping facilities shall be as follows:

(1) One night rental shall be from 3:00 p.m. on day of reservation until noon the following day.

Consecutive night rentals shall be from 3:00 p.m. of first day to noon of last day.

(2) One night: Twenty dollars ($20.00).

(d) Any person violating the provisions of this section shall be guilty of a class C misdemeanor. (Ord. No. 2008-04-17-0317, § 5, 4-17-08; Ord. No. 2010-09-16-0791, § 1(Att. C), 9-16-10)

Editor's note—Ord. No. 2008-04-17-0317, § 5, adopted April 17, 2008, amended § 22-25 in its entirety to read as herein set out. Formerly, § 22-25 pertained to overnight camping fees for Eisenhower Park and McAllister Park, and derived from Ord. No. 65691, § 8, adopted September 10, 1987, and Ord. No. 2006-09-07-1009, § 8, adopted September 7, 2006.

Sec. 22-25.1. Fires and fire hazards—Smoking, campfires and cooking fires.

(a) It shall be unlawful to have a fire except in designated fire pits, fire rings, and barbeque pits.

(b) Smoking shall be prohibited in parks designated as natural areas by the director of parks and recreation and parks developed as part of the Linear Creekway Parks development program (Leon Creek, Salado Creek, Medina River), except in areas located within these parks designated as smoking areas. "Smoking" shall mean inhaling, exhaling, burning, or carrying any lighted cigar, cigarette, pipe, weed, plant, or other combustible substance in any manner or in any form.

(c) It shall be unlawful to collect firewood, except kindling, in city park areas.

(d) It shall be unlawful to utilize a portable barbeque pit, grill or similar device in parks that are designated as natural areas by the director of parks and recreation with the following exceptions:

Portable, compressed-fuel camping or backpack stoves may be used in natural areas only in designated camping sites and only if user of such cooking stove has reserved the camping site. Burning of wood, charcoal and artificial logs is prohibited in such camping sites.

(e) The director of parks and recreation department may declare an area as "extreme fire hazard" and all fires and smoking will be prohibited without exception until such designation is removed. It is understood that this declaration may precede such designation by the fire department.

(f) Any person violating the provisions of this section shall be guilty of a class C misdemeanor. (Ord. No. 2008-04-17-0317, § 6, 4-17-08)

Sec. 22-26. Prohibiting the use of bicycles, skates, skateboards, rollerblades, in public parks except for in designated areas.

(a) It shall be unlawful to drive, ride or use bicycles, skates, skateboards, or rollerblades in any city park except:

(1) On those trails approved for such use as designated by the director of the parks and recreation department or the director of the downtown operations department for all downtown parks administered by the downtown operations department;

(2) On park roads; or

(3) On designated park equipment.

(b) It shall be an affirmative defense to any charge that a bicycle used was by a child riding a tricycle or bicycle with training wheels under immediate adult supervision.

(c) Any person violating the provisions of this section shall be guilty of a class C misdemeanor. (Ord. No. 2008-04-17-0317, § 7, 4-17-08)

Editor's note—Ord. No. 2008-04-17-0317, § 7, adopted April 17, 2008, amended § 22-26 in its entirety to read as herein set out. Formerly, § 22-26 pertained to prohibiting bicycles, skates, skateboards, rollerblades, motorized and non-motorized vehicles on walking/running tracks and trails in selected public parks, and derived from Ord. No. 91093, § 1, adopted January 6, 2000.

Sec. 22-26.1. Trails.

(a) The director of the parks and recreation department or the director of the downtown operations department for all downtown parks administered by the downtown operations department, shall have the authority to specify use categories for trails, which shall be determined by park location, park conditions, and size and/or construction material(s) of trails. Each trail within a city park will be designated into an appropriate use category. All park trails shall be determined to be pedestrian trails unless specifically designated as another category.

(b) The following trail designations shall utilized:

(1) Nature trails shall be utilized for walking or hiking. Bicycles, skateboards, rollerblades, motorized or non-motorized vehicles are prohibited.

(2) Pedestrian trails shall be utilized for walking, hiking or jogging. Bicycles, skateboards, rollerblades, motorized or non-motorized vehicles are prohibited. The exception of children on tricycles or on bicycles with training wheels may be allowed, as long as they are utilized under immediate adult supervision.

(3) Bicycle trails shall be utilized for biking. Walking, hiking, jogging, skateboards, rollerblades, motorized or non-motorized vehicles are prohibited.

(4) Multi-use trails shall be utilized for a combination of activities including but not limited to walking, hiking, jogging, biking and skating, as specifically designated. Bicycles and skaters will give right-of-way to walkers. Some limited motorized equipment may be allowed in certain designated areas and within parameters determined by the director of parks and recreation. Any such allowed equipment shall give right-of-way to all other users.

(c) It shall be unlawful to utilize a trail in violation of its designated use determined by the director of the parks and recreation department or the director of the downtown operations department.

(d) It shall be unlawful for any person to enter a naturally vegetated area in a city park not designated for public access.

(e) It shall be unlawful to bring horses onto any city trails unless the director of the parks and recreation department has designated the trail for horse riding.

(f) It shall be an affirmative defense to any charge that the person was an employee or official of the city performing maintenance, security or monitoring activities.

(g) Any person violating the provisions of this section shall be guilty of a class C misdemeanor. (Ord. No. 2008-04-17-0317, § 8, 4-17-08)

Sec. 22-27. Daily rental rates for the Arneson River Theater.

The following daily rental rates for the Arneson River Theater are hereby established:

(1) *Non-commercial rate:* Two hundred fifty dollars ($250.00) per hour, fifty dollars ($50.00) per additional hour plus five hundred dollars ($500.00) security deposit.

(2) *Commercial rate:* $500.00/per hour, then $100.00/additional hour plus $500.00 security deposit.

(Ord. No. 66836, § 1, 3-24-88; Ord. No. 90497, § 3, 9-16-99; Ord. No. 2006-09-07-1010, § 1, 9-7-06; Ord. No. 2007-09-0973C&D, § 1, 9-13-07; Ord. No. 2008-09-11-0777A, § 7, 9-11-08)

Editor's note—Ord. No. 66836, § 1, adopted March 24, 1988, did not specifically amend the Code; hence, inclusion of said provisions as § 22-27 was at the discretion of the editor.

Sec. 22-28. Public parks hours of operation and curfew.

(a) All public parks owned or operated by the city, except for the River Walk between Josephine Street and Eagleland Drive, Alamo Plaza, La Villita, Market Square, Woodlawn Lake Park and HemisFair Park shall be closed for all purposes at 11:00 p.m. each day and re-opened for public use at 5:00 a.m. each day. Woodlawn Lake Park shall be closed for all purposes at 12:00 midnight each day and re-opened for public use at 5:00 a.m. each day. Public parks may be utilized for special events and/or holiday use

between the hours of 11:00 p.m. and 5:00 a.m. on any day with the prior written approval of the director of the department of parks and recreation ("director") through the issuance of a special events permit or holiday declaration. A holiday declaration by the director shall have the effect of lifting the curfew for those parks specified by the director during those time periods specified by the director. The department of parks and recreation shall develop written guidelines for the issuance of special events permits. At a minimum, the department of parks and recreation shall have authority to reject any and all applications on the basis of protecting the health and safety of the public and the foregoing guidelines shall include such authority. Said written guidelines may include limitations on the types of special uses, noise limitations, maintenance requirements, limitations on the frequency with which any individual, group, association or entity shall be granted such special use permits and any other restrictions deemed appropriate by the department of parks and recreation. The curfew set forth in this section will not apply to organized programs and activities in public parks and parks facilities staffed, sponsored or co-sponsored by the department of parks and recreation. It is an affirmative defense to prosecution that during those hours prohibited by this section there occurred an official use or event by an organization which has entered into a lease or license agreement with the city specifically authorizing such use of such specific area in the public park. The department of parks and recreation shall have authority to set more restrictive hours of operation for individual parks and facilities on a case by case basis but not to change the hours of the curfew violations as defined by this section.

(b) It shall be unlawful for a person to be in or on a public park in violation of this section.

(c) If an events permit has been issued to a person in accordance with subsection (a) hereof, it shall be unlawful for such person to be in or on a public park in violation of any condition or limitation set forth in such events permit.

(d) Reserved.

(e) Notwithstanding subsection (a), parks designated as natural areas by the director of parks and recreation and parks developed as part of the Linear Creekway Parks development program (Leon Creek, Salado Creek, Medina River) shall be closed for all purposes each day at sunset, or after events scheduled by the department of parks and recreation are completed, and will re-open each day at sunrise.

(f) Any person violating the provisions of this section shall be guilty of a class C misdemeanor.

(g) Any vehicle left parked after the curfew hours established above shall be subject to towing. (Ord. No. 66877, 3-31-88; Ord. No. 89570, §§ 3, 4, 4-8-99; Ord. No. 92091, § 1, 6-29-00; Ord. No. 2008-04-17-0317, § 9, 4-17-08; Ord. No. 2012-05-03-0325, § 2, 5-3-12; Ord. No. 2025-02-13-0109, § 1(Exh. I), 2-13-25)

Editor's note—Ord. No. 66877, adopted March 31, 1988, did not specifically amend this Code; hence inclusion of said provisions as § 22-28 was at the discretion of the editor. Ord. No. 92091, § 1, adopted June 29, 2000, changed the title of § 22-28 from "Closure of Padre and Comanche Lookout Parks at nightfall or after scheduled events." to "Public parks hours of operation and curfew."

Sec. 22-29. Reserved.

Editor's note—Ord. No. 2006-09-07-1010, § 4, adopted September 7, 2006, repealed § 22-29 in its entirety, which pertained to admission fees for Tower of the Americas and derived from Ord. No. 67912, § 7, adopted September 15, 1988; Ord. No. 69981, § 1, adopted August 10, 1989; Ord. No. 76474, § 1, adopted September 10, 1992; Ord. No. 82818, § 2, adopted September 14, 1995, and Ord. No. 94585, §§ 10—12, adopted September 20, 2001.

Sec. 22-30. Special facilities use fees for HemisFair Park and Alamo Plaza.

The parks and recreation department is hereby authorized to charge the following use fees for facilities at HemisFair Park and Alamo Plaza for special major events:

(1) *Hemisfair Park:*

Use by non-profit agencies/ organizations:	$2,000.00
Use by commercial agencies/ organizations:	4,000.00

(2) *Alamo Plaza:*

Use by non-profit agencies/ organizations: 2,000.00

Use by commercial agencies/ organizations: 5,000.00

(3) *Damage and clean-up deposit:* A deposit of five thousand dollars ($5,000.00) for commercial agencies/organizations or two thousand dollars ($2,000.00) for non-profit agencies/organizations shall be required for each special major event reservation, with said deposit to be returned if damage does not occur and if cleanup by the user is deemed to be satisfactory by the director, department of downtown operations, or his/her designee.

(Ord. No. 70254, § 7, 9-14-89; Ord. No. 78723, § 2, 9-15-93; Ord. No. 88494, § 2, 9-17-98; Ord. No. 2007-09-0973C&D, § 1, 9-13-07; Ord. No. 2008-09-11-0777A, § 8, 9-11-08)

Editor's note—Ord. No. 2008-09-11-0777A, § 8, adopted September 11, 2008, changed the title of § 22-30 from "HemisFair special facilities use fees" to "Special facilities use fees for HemisFair Park and Alamo Plaza."

Sec. 22-31. La Villita McAllister Building use fees.

A use fee of three hundred dollars ($300.00) per event with a five hundred dollar ($500.00) security deposit for La Villita McAllister Building is hereby approved.

(Ord. No. 84796, § 9, 9-19-96; Ord. No. 2006-09-07-1010, § 5, 9-7-06; Ord. No. 2008-09-11-0777A, § 9, 9-11-08)

Sec. 22-32. Community centers, senior centers and gymnasiums rental fees.

Community centers, senior centers and gymnasiums use permits. Use of the department of parks and recreation's community centers, senior centers and gymnasiums for meetings, special events, or other occasional purposes by the public, either after regular facility hours, or when not in use for city programs will require the payment of the following fees and deposits:

(1) Gym only practice or games use, (no admission or entry fees may be charged, and no food or drinks may be served or sold), thirty dollars ($30.00) per hour with a two-hour minimum.

(2) Gym only, general use (with admission or other fee charged or food or drinks served or sold), fifty dollars ($50.00) per hour with a two-hour minimum; a one hundred dollar ($100.00) damage/clean up deposit will be paid prior to a permit being issued for this use, deposit to be returned, less any expenses encountered by city for cleaning or damage.

(3) Meeting room only, general use, fifty dollars ($50.00) per hour with a two-hour minimum; a one hundred dollar ($100.00) damage/cleanup deposit will be paid prior to a permit being issued for this event, deposit to be returned, less any expenses encountered by city for cleaning or damage.

(4) Discount: If an entire facility is rented in a single booking the total gym and meeting room rental rates shall be discounted by twenty (20) percent.

(Ord. No. 84796, § 10, 9-19-96; Ord. No. 90497, § 4, 9-16-99; Ord. No. 94585, § 13, 9-20-01; Ord. No. 99739, § 15, 9-16-04; Ord. No. 2007-09-13-0973I, § 1, 9-13-07; Ord. No. 2009-09-17-0731J, § 7, 9-17-09; Ord. No. 2013-09-12-0631, § 2(Att. H), 9-12-13; Ord. No. 2016-09-15-0697, § 2(Att. E), 9-15-16)

Editor's note—Ord. No. 2013-09-12-0631, § 2(Att. H), adopted September 12, 2013, changed the title of section 22-32 from "Community centers, senior centers and clubhouse rental fees" to "Community centers, senior centers and gymnasiums rental fees." The historical notation has been preserved for reference purposes.

Sec. 22-33. Reserved.

Editor's note—Ord. No. 2025-02-13-0109, § 1(Exh. I), adopted February 13, 2025, repealed § 22-33, which pertained to fee schedule for the Hertzberg Circus Museum and derived from Ord. No. 84848, § 1, 9-26-96.

Sec. 22-34. Commercial filming and movie production permit.

A permit is required for commercial filming and/or movie production activity in any city park, the River Walk, or Alamo Plaza. Applica-

tions for such filming or movie production activity shall be submitted to the San Antonio Film Commission in the city's convention and visitor's bureau. Fees for issuance of the commercial filming and movie production permit shall be as follows:

Area	*Fee*
River Walk	$200.00 per filming or production
Alamo Plaza	$200.00 per filming or production
All other city parks	$50.00 per filming or production

Upon receipt of approval from the San Antonio Film Commission, and receipt of the appropriate fee, the department of parks and recreation shall issue a permit for said activity. Fees will not be assessed for noncommercial filming activities designed solely to promote San Antonio as a tourist destination. Fee assessments and waivers will be a joint decision with the city's film commission and the department of parks and recreation.
(Ord. No. 86609, § 2, 9-11-97)

Sec. 22-35. Miscellaneous fees and charges.

(a) Reserved.

(b) Reserved.

(c) Sale of surplus plants . . . . . Cost

(d) Private tours of park facilities, per tour $50.00
(Ord. No. 86609, § 7, 9-11-97; Ord. No. 90497, § 5, 9-16-99; Ord. No. 94585, § 14, 9-20-01; Ord. No. 2006-09-07-1009, § 9, 9-7-06; Ord. No. 2010-09-16-0791, § 1(Att. C), 9-16-10)

Sec. 22-35.1. San Antonio convention facilities rental rates.

Note:
Class I: All events for which admission is charged or other compensation realized.
Class II: Events for which no admission is charged or other compensation realized, or for school, church, or other recognized non-profit organizations receiving all receipts from the sale of tickets or donations.
Class III: Noncommercial meetings and conventions.

All rates, unless otherwise specified, are on a per day basis. All convention facilities contracts will have a minimal rental charge of three hundred dollars ($300.00).
Ticket Provider Exemption Fee: $0.00—$2.00 per ticket
Facility Access Fee for Ticketed Events: $3.00—$5.00 per ticket
The director of convention sports and entertainment facilities (CSEF), in coordination with the city manager's office, is authorized to reduce or waive fees established herein and associated with the use of any CSEF facility.
A "rental day" is defined by the San Antonio Convention Facility as beginning at 6:00 am and ending 12:00 midnight. Additional charges of three hundred dollars ($300.00) per hour or any portion of an hour on events going past 12:00 midnight, with prior approval by director of convention facilities or his representative.
Move-in or move-out between 12:00 midnight to 6:00 am is $100.00 per hour or any portion of an hour, with prior approval by Director of Convention facilities.

Municipal Auditorium

A. *Class I (for-profit organizations/public events):*

1. *Entire theatre:*
   Min. daily charge: $5,000.00
   Max. daily charge: $6,200.00
2. *1st floor only:*
   Min. charge: $4,000.00
   Max. charge: $5,000.00
3. *Move-in/out:* $1,300.00
4. *Lower level:*
   Min. charge: $1,500.00
   Max. charge: $2,100.00
5. *Exhibit space (per sq. ft.):* $0.26
6. *Exhibit space:*
   Min. charge: $1,500.00
   Max. charge: $2,100.00
7. *Per hour rate:* $300.00

B. *Class II (non-profit organizations):*

1. *Entire theatre:*
   Min. daily charge: $4,000.00
   Max. daily charge: $5,000.00
2. *Entire theatre (flat rate charge):* $4,700.00
3. *1st floor only:*
   Min. charge: $3,300.00

Max. charge: $4,100.00

4. *1st floor flat rate charge:* $3,600.00
5. *Lower level:*

   Min. charge: $1,300.00
6. *Rental of space for social events:* $1,500.00
7. *Exhibit space (per sq. ft.):* $0.18
8. *Exhibit space:*

   Min. charge: $1,300.00

   Max. charge: $1,900.00
9. *Move-in/out:* $1,000.00
10. *Per hour rate:* $300.00

C. *Class III (meetings and conventions):*

1. *Entire theatre (daily charge):* $2,500.00
2. *1st floor only:* $2,000.00
3. *Move in/out:* $900.00
4. *Lower level:* $1,200.00
5. *Exhibit space (per sq. ft.):* $0.18
6. *Per hour rate:* $300.00

Equipment rental rates:

A. *Compactor pull fee:* $600.00

B. *Orchestra pit removal fee:* $850.00

Rental Rates for Convention Center Meeting Rooms: $108.00—2,822.00

Rental Rates for Convention Center Stars at Night Ballroom: $1,715.00—17,479.00

Rental Rate(s) for Plaza Acequia

F&B event rate: $2,500.00

Flat rate: $4,000.00

Rental Rate(s) for Lila Cockrell Theatre: $1,700.00—8,034.00

Rental Rate(s) for Convention Center Ballroom "C"

A. *Class I (for-profit organizations/public events):*

1. Flat charge: $9,600.00

   Move in/out: $4,800.00
2. Min. daily charge: $9,600.00

   Max. daily charge: $10,800.00

   Move in/out: $4,800.00
3. Per section rate: $4,055.00

   Move in/out: $2,025.00

   $0.26/net sq. ft. of space

B. *Class II (non-profit organizations):*

1. Flat charge: $8,175.00

   Move in/out: $4,085.00
2. Min. daily charge: $8,175.00

   Max. daily charge: $8,760.00

   Move in/out: $4,055.00
3. Per section rate: $3,270.00

   Move in/out: $1,635.00

   $0.18/net sq. ft. of space

C. *Class III (meetings and conventions):*

1. Flat charge: $6,250.00

   Move in/out: $3,125.00
2. Per section rate: $2,500.00

   Move in/out: $1,250.00

Rental Rate(s) for Convention Center Ballroom "B"

A. *Class I (for-profit organizations/public center events):*

1. Flat charge: $4,245.00

   Move in/out: $2,125.00
2. Min. daily charge: $4,245.00

   Max. daily charge: $6,480.00

   Move in/out: $2,125.00
3. $0.26/net sq. ft. of space

B. *Class II (non-profit organizations):*

1. Flat charge: $3,185.00

   Move in/out: $1,595.00
2. Min. daily charge: $3,185.00

   Max. daily charge: $5,965.00
3. $0.18/net sq. ft. of space

C. *Class III (meetings and conventions):*

1. Flat charge: $2,390.00
   Move in/out: $1,195.00

Rental Rate for Convention Center Ballroom "A"

A. *Class I (for-profit organizations/public events):*

1. Flat charge: $5,660.00
   Move in/out: $2,830.00
2. Min. daily charge: $5,660.00
   Max. daily charge: $8,490.00
   Move in/out: $2,830.00
3. $0.26/net sq. ft. of space

B. *Class II (non-profit organizations):*

1. Flat charge: $4,245.00
   Move in/out: $2,120.00
2. Min. daily charge: $4,245.00
   Max. daily charge: $6,480.00
   Move in/out: $2,120.00
3. $0.18/net sq. ft. of space

C. *Class III (meetings and conventions):*

1. Flat charge: $3,185.00
   Move in/out: $1,590.00

After-midnight move-in/move-out: $300.00/hour

Rental Rates for Use of Exhibit Hall Space for General Session: $6,118.00—12,236.00

Rental Rates for Convention Center Bridge Hall/Gallery: $665.00—2,653.00

Rental Rates for Convention Center Exhibit Halls: $2,611.00—29,376.00

Rental Rates for Convention Center Hemisfair Ballroom: $1,293.00—12,638.00

Wolff Stadium facility access fee:* $45,000.00

Miscellaneous facility fees and charges:

Minimum daily contractor fee: . .	$450.00
Lost key charge:.	200.00
Rekeying/recording charge:	100.00
Replacement fee for lost access card for convention center meeting rooms	50.00
Bleachers at convention center:	
Entire set	5,000.00
Per section	500.00
Equipment rental rates for convention center events (per item):	
Chairs	1.50
Tables (6 ft., 8 ft. classroom, round)	12.00
Risers (4' x 8')	22.00
Meeting room lecterns	40.00
Executive lecterns	75.00
Convention center equipment changeover service fee:	
Meeting room	100.00
Ballroom	400.00
Merida Plaza rental fee	2,500.00
River View Terrace rental fee . . .	850.00

(Ord. No. 86616, § 1, 9-11-97; Ord. No. 88496, §§ 1, 2, 9-17-98; Ord. No. 93084, §§ 1—3, 12-14-00; Ord. No. 99745, §§ 1, 2, 9-16-04; Ord. No. 2007-09-13-0973K, §§ 1, 2, 9-13-07; Ord. No. 2008-09-11-0777J, § 1, 9-11-08; Ord. No. 2010-09-16-0791, § 1(Att. F), 9-16-10; Ord. No. 2011-09-15-0752, § 1(Att. D), 9-15-11; Ord. No. 2012-09-13-0699, § 2(Att. D), 9-13-12; Ord. No. 2015-09-10-0758, § 2(Att. J), 9-10-15; Ord. No. 2017-09-14-0656, § 2(Att. A), 9-14-17; Ord. No. 2025-09-18-0629, § 2(Att. J), 9-18-25)

Sec. 22-35.2. Audio and lighting equipment rental fees for Lila Cockrell and Municipal Auditorium.

Fees for audio and lighting equipment rental in the Lila Cockrell and Municipal Auditorium:

(1)	Moving lights, per light per day	$125.00
(2)	Wireless intercom:	
	Per headset per day	30.00

***Editor's note—**Ord. No. 2011-09-15-0752 provides for an increase of $1.00 per ticket.

	Per base station per day . . .	100.00
(3)	Recording patch, per room per day ($400.00 maximum per customer)	20.00
(4)	Extensive lighting, per light per day ($500.00 maximum per customer)	7.00
(5)	Audio/visual sound package, per day	750.00
(6)	Audio/visual overtime rate, per hour	40.00
(7)	Orchestra pit fee, per pit restore	$1,500.00
(8)	Projector rental fee, per projector per day	$750.00
(9)	Orchestra shell deployment fee	$500.00

(Ord. No. 90500, § 1, 9-16-99; Ord. No. 2022-09-15-0678, § 2(Att. F), 9-15-22)

Sec. 22-35.3. Dance floor and recording equipment rental fees for Henry B. Gonzalez Convention Center.

Fees for dance floor and recording equipment rental in the Henry B. Gonzalez Convention Center:

(1)	Recording patch, per room per day ($400.00 maximum per customer)	$ 20.00
(2)	Dance floor rental, per 3' x 3' section	6.00

(Ord. No. 90500, § 1, 9-16-99; Ord. No. 2012-09-13-0699, § 2(Att. D), 9-13-12)

Sec. 22-35.4. Fees for staff review of development plans, amendment of plans, development plats, and variances related to UDC 35-503.

(a)	Development plans:	
	Single family, plus thirty-five dollars ($35.00) per phase	$200.00
	Non single family, plus thirty-five dollars ($35.00) per phase	280.00
(b)	Amending plans:	
	Single family	120.00
	Non single family	190.00
(c)	Single phase fee	175.00
(d)	Variance	175.00

(Ord. No. 98189, § 11, 9-18-03; Ord. No. 2007-09-13-0973I, § 1, 9-13-07)

Editor's note—These fees are only in effect until such time as they are adopted as part of the Unified Development Code, Chapter 35 of the City Code of San Antonio, at which point this section shall no longer be operative.

Sec. 22-35.5. Marketing and sales partnership program fees.

Marketing and sales partnership program marketing fees:

Minimum fee: $1,000.00

Less than 250 guest rooms: $10.00 per room

251—500 guest rooms: $15.00 per room

501—750 guest rooms: $20.00 per room

More than 750 guest rooms: $25.00 per room

Marketing and sales partnership program booking fee: $5.00 per room night booked

(Ord. No. 2010-09-16-0791, § 1(Att. E), 9-16-10)

Sec. 22-35.6. Parking rate for city lots located around the Convention Center.

The buyout for parking fees in lots surrounding Convention Center (Yturri Lot and lots adjacent to the Convention Center off Tower of the Americas Way) is established at fifteen dollars ($15.00) per spot.

(Ord. No. 2024-09-19-0705, § 3(Att. H), 9-19-24)

Editor's note—Ord. No. 2024-09-19-0705, § 3(Att. H), adopted September 19, 2024, set out provisions intended for use as § 22-35.1. Inasmuch as there were already provisions so designated, said section has been codified herein as § 22-35.6 at the discretion of the editor.

ARTICLE II. PARK POLICE*

Sec. 22-36. Authority to commission as peace officers; minimum standards.

(a) Pursuant to authority of Vernon's Ann. C.C.P. art. 2.12(13), park police of the department of parks and recreation meeting the

*__Editor's note—__Ord. No. 2009-01-15-0030, § 1, adopted January 15, 2009, amended article II in its entirety to read as herein set out. Formerly, article II pertained to park rangers, and derived from Ord. No. 27051, § 1, adopted October 30, 1958; the Code of 1959, § 27-14; Ord. No. 45868, §§ 1—3, adopted October 23, 1975.

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minimum standards outlined in Rules and Regulations of the Texas Commission Law Enforcement Officer Standards and Education are hereby authorized to be commissioned as peace officers.

(b) The commissions shall not be made until such time as the city council is satisfied beyond a reasonable doubt that the minimum standards required by subsection (a) have been met.
(Ord. No. 2009-01-15-0030, § 1, 1-15-09)

Sec. 22-37. City park police appointed peace officers.

Park police are designated peace officers of the city, but shall not be members of or employed as officers of the police department of the city, but may be subject to the supervision of the city's police department in the performance of their duties.
(Ord. No. 2009-01-15-0030, § 1, 1-15-09)

Sec. 22-38. Administrative duties.

The city manager or the city manager's designee is hereby directed to administer all aspects of the park police operations and to coordinate with all applicable city departments and state agencies in matters related to park police commissioning, certification, duties, responsibilities, functions, training and operational procedures.
(Ord. No. 2009-01-15-0030, § 1, 1-15-09)

Sec. 22-39. Policy implementation and guidelines.

The city manager or the city manager's designee is hereby directed to formulate and implement policies, functions, areas of responsibility and operational procedures relative to the park police operations. Such policies, functions, areas of responsibility and operational procedures shall be concurred in by the chief of police, city attorney and director of personnel and shall reflect the following sections.
(Ord. No. 2009-01-15-0030, § 1, 1-15-09)

Sec. 22-40. Park police functions.

The park police functions shall be as follows:

(1) To assist visitors to and users of city parks and recreation facilities by providing information and related assistance.

(2) To provide for the safety and security of visitors to and users of the city parks and recreation facilities and protection of public parks and recreation property and facilities.

(3) To assist the police department as needed and as requested.

(4) To carry out such law enforcement responsibilities as are commensurate with their status as commissioned peace officers.

(Ord. No. 2009-01-15-0030, § 1, 1-15-09)

Sec. 22-41. Park police physical areas of responsibilities.

During duty hours shall be confined to city parks, streets, roads and parking lots therein, recreation facilities operated by the department of parks and recreation located on non-park property, the Riverwalk, La Villita, San Jose Burial Park, old city cemeteries, San Antonio River Authority owned land open to the public adjacent to the San Antonio River between South Alamo Street and Mission Espada, and such other areas as may be directed by the city manager or her designee.
(Ord. No. 2009-01-15-0030, § 1, 1-15-09; Ord. No. 2011-06-02-0448, § 2, 6-2-11)

Sec. 22-42. Enforcement action.

(a) Park police law enforcement actions shall be limited to the areas set forth in this article, except that this article shall not imply a limitation on the inherent law enforcement responsibility of a commissioned peace officer.

(b) Procedures for arrest and detention, booking and investigative responsibilities by park police and related to subsequent follow up actions shall be jointly established by the city manager, or the city manager's designee, and the police department.

(c) Reporting procedures of the park police will be compatible with the current police department data collection system.
(Ord. No. 2009-01-15-0030, § 1, 1-15-09)

Sec. 22-43. Off-duty employment.

Park police off-duty employment guidelines will be established by the city manager, or the city manager's designee.
(Ord. No. 2009-01-15-0030, § 1, 1-15-09)

Secs. 22-44—22-55. Reserved.

ARTICLE III. BRACKENRIDGE AND KOEHLER PARKS

Sec. 22-56. Reserved.

Editor's note—Ord. No. 98235, § 2, adopted September 25, 2003, repealed § 22-56 in its entirety, which pertained to dogs and cats in Brackenridge, Koehler and Commanche Lookout Parks and derived from the Code of 1950, § 43-3; the Code of 1959, § 27-5; Ord. No. 35358, § 3, adopted April 27, 1967, and Ord. No. 89570, § 5, adopted April 8, 1999.

Sec. 22-57. Annoying animals or fowl.

It shall be unlawful for any person to annoy any animal or fowl belonging to the city situated in Brackenridge Park, Koehler Park or the zoological area contiguous thereto.
(Code 1950, § 43-5; Code 1959, § 27-7)

Sec. 22-58. Feeding animals or fowl.

It shall be unlawful for any person, except those authorized to do so by the San Antonio Zoological Society, to feed any animals or fowl belonging to the zoo, any food other than that which can be obtained from the vending machines in the zoological area.
(Code 1950, § 43-4; Code 1959, § 27-6; Ord. No. 35358, § 4, 4-27-67)

Sec. 22-59. Parking.

Parking shall be prohibited on Sundays on the west curb of North St. Mary's Street from Tuleta Drive south to the city's property line near the Tuesday Musical Club parking lot. Parking shall be prohibited at all times on the east curb of North St. Mary's from Tuleta Drive south to the city's property line near the Alvin Street intersection.
(Ord. No. 63030, § 1, 6-12-86)

Secs. 22-60—22-70. Reserved.

ARTICLE IV. WOODLAWN AND KENNEDY PARKS

Sec. 22-71. Glass beverage containers; jogging trail; signs.

(a) It shall be unlawful for any person to bring into Woodlawn Park any glass beverage container, and signs to this effect shall be maintained by the city. Any person violating this section while signs are in place shall be punished in accordance with section 1-5.

(b) It shall be unlawful to drive or ride any motorized vehicle or bicycle on the lake walk (jogging trail) at Woodlawn Park. Any person violating this section while signs are in place prohibiting such use of these trails shall be punished in accordance with section 1-5. It shall be unlawful to drive or ride any motorized vehicle or bicycle on the walk or jogging trail at Kennedy Park.
(Code 1959, § 27-25.5; Ord. No. 67495, § 1, 7-14-88)

Sec. 22-72. Reserved.

Editor's note—Ord. No. 88494, § 2, adopted Sept. 17, 1998, repealed § 22-72 which pertained to fees for use of the Bertha Almaguer Activity Building and derived from Code 1959, § 27-26; Ord. No. 54281, § 4, adopted Sept. 17, 1981; Ord. No. 59314, § 2, adopted Sept. 4, 1984; Ord. No. 63234, § 15, adopted July 16, 1986; and Ord. No. 65691, § 3, adopted Sept. 10, 1987.

Sec. 22-73. Parking.

Parking on Josephine Tobin Drive (North and South) in Woodlawn Park is hereby prohibited on Sundays. Appropriate signs shall be erected to indicate this prohibition.
(Ord. No. 58957, § 2, 6-28-84)

Sec. 22-74. Reserved.

Editor's note—Ord. No. 88236, § 1, adopted Aug. 6, 1998, repealed § 22-74 which pertained to swimming in the San Antonio River prohibited and penalty, and derived from Code 1959, § 27-3.

Secs. 22-75—22-85. Reserved.

ARTICLE V. SWIMMING

Sec. 22-86. Reserved.

Editor's note—Ord. No. 96406, § 7, adopted September 19, 2002, repealed § 22-86 in its entirety, which pertained to admission fees for city-owned outdoor swimming pools and derived from the Code of 1959, § 27-16; Ord. No. 49626, § 1, adopted July 27, 1978; Ord. No. 49671, § 2, adopted August 10, 1978; Ord. No. 65691, § 12, adopted September 10, 1987; Ord. No. 89451, § 2, adopted March 18, 1999, and Ord. No. 94585, § 15, adopted September 20, 2001.

Sec. 22-87. Swimming in San Antonio River prohibited; penalty.

(a) It shall be unlawful to swim in the San Antonio River within the corporate limits of the City of San Antonio. "Swim" as used herein shall include bathing, wading or any other water contact recreational activity.

(b) Violation of any of the provisions of this section shall be a misdemeanor offense and shall be punished by a fine of not more than five hundred dollars ($500.00).
(Ord. No. 88236, § 2, 8-6-98)

Sec. 22-88. Swimming in city parks and city public property prohibited; penalty.

(a) It shall be unlawful to swim in any body of water, natural or man-made, in any city park or other city public area within the corporate limits of the City of San Antonio, except in designated swimming pools or swimming facilities during operating hours. "Swim" as used herein shall include bathing, wading, or any other water contact recreational activity. "Body of water" as used herein shall include but is not limited to lakes, ponds, creeks, water fountains or any other water feature.

(b) The director of parks and recreation shall have authority to grant exemptions to this policy under appropriate conditions to conduct supervised recreation or education programs.
(Ord. No. 88236, § 3, 8-6-98; Ord. No. 2008-04-17-0317, § 10, 4-17-08)

Sec. 22-89. Reserved.

Editor's note—Ord. No. 2013-09-12-0631, § 2(Att. H), adopted September 12, 2013, repealed the former section 22-89 in its entirety, which pertained to public swimming pool splash party rentals, and derived from Ord. No. 90497, § 6, adopted September 16, 1999; Ord. No. 2008-09-11-0777E, § 7, adopted September 11, 2008, and Ord. No. 2010-09-16-0791, § 1(Att. C), adopted September 16, 2010.

Sec. 22-90. Operation of motorized vessels on lakes, ponds, river or streams other than the San Antonio River.

(a) It shall be unlawful to operate a motorized boat, barge or other water craft/vessels in any public lake, pond, river, stream, or drainage canal within the city limits. This section shall not apply to the San Antonio River, which is addressed in sections 22-143 and 22-144.

(b) Motorized shall refer to any method of automation that is generated by fuel or electrical power.

(c) It shall be an affirmative defense to any charge that:

(1) Water craft is a remote control operated toy, or

(2) Written permission is provided by the director of parks and recreation.

(d) Any person violating the provisions of this section shall be guilty of a class C misdemeanor.
(Ord. No. 2008-04-17-0317, § 11, 4-17-08)

Sec. 22-91. Operation of canoes, kayaks or other non-motorized vessels on lakes, ponds, river or streams except for the portion of the San Antonio River between Hildebrand Avenue and South Alamo St.

(a) Canoes, kayaks or other non-motorized vessels may be operated in any public lake, pond, river or stream within the city limits, but only in areas designated for such use by the director of parks and recreation. Such areas shall not include:

(1) The San Antonio River between Hildebrand Avenue and South Alamo St. which is covered by sections 22-143 and 22-144, or

(2) On man-made drainage channels. Operation of non-motorized vessels in the

excepted areas must be by special permit issued in the discretion of the director of parks and recreation or the director of downtown operations.

(b) All persons operating allowed vessels on the above reference bodies of water shall wear a life preserver vest in an appropriate manner at all times. The city does not have knowledge of the condition or quality of any water way or its suitability for use in canoeing or kayaking. Any operation of the above referenced vessels is at the sole risk of the user.

(c) The director of parks and recreation may temporarily prohibit operation of vessels on such bodies of water during flood hazard times or at other times to protect the public health and safety.

(d) The operation of canoes, kayaks and other non-motorized vessels is prohibited during special events (such as 4th of July fireworks and model boat races) on notice of the director of the parks and recreation department.

(e) Any person violating the provisions of this section shall be guilty of a class C misdemeanor.
(Ord. No. 2008-04-17-0317, § 12, 4-17-08)

Secs. 22-92—22-100. Reserved.

ARTICLE VI. FISHING

Sec. 22-101. Fishing in city lakes generally.

Fishing is permitted in and on all city-owned lakes that are under the jurisdiction of the city parks and recreation department subject to compliance with all state and city laws and regulations.
(Code 1950, § 41-8; Ord. No. 15314, § 1, 6-28-51; Code 1959, § 27-1; Ord. No. 35358, § 1, 4-27-67)

Sec. 22-102. Species which may be taken from city lakes; injuring illegal fish.

It shall be unlawful for any person to take more than six (6) large-mouth black bass or subspecies thereof or six (6) crappie or ten (10) sunfish or perch during one (1) day. It shall be unlawful to take and possess a large-mouth bass or subspecies thereof of less than seven (7) inches. It shall be unlawful to injure any illegal fish.
(Code 1950, § 41-8; Ord. No. 15314, § 2, 6-28-51; Code 1959, § 27-2)

Secs. 22-103—22-115. Reserved.

ARTICLE VII. MUNICIPAL GOLF COURSES

Sec. 22-116. Reserved.

Editor's note—Ord. No. 2025-02-13-0109, § 1(Exh. I), adopted February 13, 2025, repealed § 22-116, which pertained to definitions and derived from Code 1959, § 27-15; Ord. No. 76330, § 1, 8-20-92; Ord. No. 77517, § 2, 3-4-93; Ord. No. 86610, § 1, 9-11-97; Ord. No. 89856, § 11, 5-27-99; Ord. No. 94591, § 1, 9-20-01; Ord. No. 96412, §§ 1, 2, 9-19-02; Ord. No. 99747, § 1, 9-16-04.

Sec. 22-117. Reserved.

Editor's note—Ord. No. 2025-02-13-0109, § 1(Exh. I), adopted February 13, 2025, repealed § 22-117, which pertained to special permits for disabled and derived from Code 1959, § 27-15.

Sec. 22-118. Fees and charges.

(a) All fees and charges shall be assessed in accordance with terms outlined in city council approved management agreements between city and operators.
(Code 1959, § 27-15; Ord. No. 45535, § 22, 7-24-75; Ord. No. 48314, §§ 1, 3, 7-28-77; Ord. No. 49626, § 5, 7-27-78; Ord. No. 51047, § 1, 7-26-79; Ord. No. 52521, § 7, 7-24-80; Ord. No. 54281, §§ 8-12, 9-17-81; Ord. No. 55813, §§ 2-7, 9-16-82; Ord. No. 61335, § 1, 8-29-85; Ord. No. 63234, § 16, 7-16-86; Ord. No. 68539, § 3, 12-22-88; Ord. No. 70254, § 1, 9-14-89; Ord. No. 73259, §§ 1, 2, 3-7-91; Ord. No. 74125, § 1, 8-15-91; Ord. No. 76330, § 2, 8-20-92; Ord. No. 77517, § 3, 3-4-93; Ord. No. 80788, §§ 1—6, 9-14-94; Ord. No. 83838, §§ 1, 2, 3-28-96; Ord. No. 86223, §§ 1—3, 6-26-97; Ord. No. 86610, §§ 3, 5, 7—9, 11, 13, 15, 9-11-97; Ord. No. 89856, §§ 1—10, 5-27-99; Ord. No. 90591, § 21, 9-30-99; Ord. No. 92520, §§ 1—3, 9-14-00; Ord. No. 94591, §§ 2—5, 9-20-01; Ord. No. 96412, §§ 3—10, 9-19-02; Ord. No. 98193, §§ 1—4, 9-18-03;

Ord. No. 99747, §§ 2—12, 9-16-04; Ord. No. 101396, §§ 1, 2, 9-15-05; Ord. No. 2006-09-07-1011, § 1, 9-7-06; Ord. No. 2025-02-13-0109, § 1(Exh. I), 2-13-25)

Note—Discount rates are authorized until September 30, 2005 for existing discount card holders, after which date these rates will automatically expire. Discount cards will be honored through their respective expiration dates through September 30, 2005.

Sec. 22-119. Reserved.

Editor's note—Ord. No. 2025-02-13-0109, § 1(Exh. I), adopted February 13, 2025, repealed § 22-119, which pertained to limitations on playing time and derived from Code 1959, § 27-15; Ord. No. 45535, § 22, 7-24-75; Ord. No. 48314, §§ 1, 3, 7-28-77; Ord. No. 49626, § 5, 7-27-78; Ord. No. 51047, § 1, 7-26-79; Ord. No. 52521, § 7, 7-24-80; Ord. No. 54281, §§ 8—12, 9-17-81; Ord. No. 55813, §§ 2—7, 9-16-82; Ord. No. 63234, § 17, 7-16-86; Ord. No. 70254, § 2, 9-14-89; Ord. No. 76330, § 3, 8-20-92; Ord. No. 77517, § 4, 3-4-93; Ord. No. 86610, § 16, 9-11-97; Ord. No. 99747, § 13, 9-16-04.

Sec. 22-120. Reserved.

Editor's note—Ordinance No. 86610, § 17, adopted September 11, 1997, deleted § 22-120 in its entirety. Formerly, such section pertained to late green fees and derived from Code 1959, § 27-15; Ord. No. 45535, § 22, 7-24-75; Ord. No. 48314, §§ 1, 3, 7-28-77; Ord. No. 49626, § 5, 7-27-78; Ord. No. 51047, § 1, 7-26-79; Ord. No. 52521, § 7, 7-24-80; Ord. No. 54281, §§ 8—12, 9-17-81; Ord. No. 55813, §§ 2—7, 9-16-82.

Secs. 22-121—22-135. Reserved.

Editor's note—Ord. No. 2025-02-13-0109, § 1(Exh. I), adopted February 13, 2025, repealed §§ 22-121—22-131, which pertained to refunds, privately owned golf cars, unauthorized playing of golf, sale of golf equipment at city municipal golf course, golf course promotion and maximum utilization, fees and charges for services at Brackenridge Park Polo Field and San Pedro Golf Range, Brackenridge Park Polo Field Golf Range and San Pedro Golf Range and par 3 golf course golf lessons; retail sales; promotions, administration of revenue, fees and charges for services at Cedar Creek and Mission del Lago golf ranges, declaration of holidays, golf facilities hours of operation and curfew, food and beverages on city golf course property and derived from Code 1950, § 43-10; Code 1959, §§ 27-10, 27-12, 27-15; Ord. No. 29625, § 1, 6-28-61; Ord. No. 35358, § 5, 4-27-67; Ord. No. 45535, §§ 2, 22, 72.4-75 Ord. No. 48314, §§ 1, 3, 7-28-77; Ord. No. 49626, § 5, 7-27-78; Ord. No. 51047, § 1, 7-26-79; Ord. No. 52521, § 7, 7-24-80; Ord. No. 54281, §§ 8—12, 9-17-81; Ord. No. 55813. §§ 2—7, 9-16-82; Ord. No. 63234, § 18, 7-16-86; Ord. No. 65097, §§ 1—3, 5-28-87; Ord. No. 68539, §§ 1, 2, 12-22-88; Ord. No. 70254, §§ 3—5, 9-14-89; Ord. No. 73259, §§ 3—6, 3-7-91; Ord. No. 74125, § 2, 8-15-91; Ord. No. 76330, §§ 4—8, 8-20-92; Ord. No. 77517, §§ 5—9, 3-4-93; Ord. No. 83838, §§ 3, 4, 3-28-96; Ord. No. 86610, § 18, 9-11-97; Ord. No. 92091, § 2, 6-29-00; Ord. No. 92520, §§ 4, 5, 9-14-00; Ord. No. 96180, § 1, 8-8-02; Ord. No. 96412, §§ 11, 12, 9-19-02; Ord. No. 98193, § 5, 9-18-03; Ord. No. 99747, §§ 14—17, 9-16-04)

ARTICLE VIII. TENNIS

Sec. 22-136. McFarlin Tennis Center fees.

(a) The parks and recreation department is hereby authorized to charge the following court fees before 5:00 p.m. at McFarlin Tennis Center:

(1)	Student (per person, per hour)	$3.25
(2)	Senior citizen (per person, per hour)	3.25
(3)	Adult (18 to 49) (per person, per hour)	6.25

(b) Court fees after 5:00 p.m.:

(1)	Student (per person, per hour)	4.25
(2)	Senior citizen (per person, per hour)	4.25
(3)	Adult (18 to 49) (per person, per hour)	7.25

(c) Tournament fees, per hour, per court	10.00
(d) Tournament assessment fee, per player, per event	2.00

(e) Tennis league participation fee:

(1)	Per individual participant per league	$50.00
(2)	Reserved.	

(Code 1959, § 27-17; Ord. No. 49626, § 2, 7-27-78; Ord. No. 52521, § 3, 7-24-80; Ord. No. 54281, § 5, 9-17-81; Ord. No. 57564, § 5, 9-15-83; Ord. No. 61335, § 2, 8-29-85; Ord. No. 63234, § 13, 7-16-86; Ord. No. 65691, § 13, 9-10-87; Ord. No. 67912, § 5, 9-15-88; Ord. No. 69784, § 1, 7-6-89; Ord. No. 86609, § 11, 9-11-97; Ord. No. 98189, § 10, 9-18-03; Ord. No. 99739, §§ 16, 17, 9-16-04; Ord. No. 2006-09-07-1009, § 10, 9-7-06; Ord. No. 2009-09-17-0731J, § 8, 9-17-09; Ord. No. 2010-09-16-0791, § 1(Att. C), 9-16-10; Ord. No. 2013-09-12-0631, § 2(Att. H), 9-12-13)

Sec. 22-137. Reserved.

Editor's note—Ord. No. 2010-09-16-0791, § 1(Att. C), adopted September 16, 2010, repealed the former section 22-137 in its entirety, which pertained to Fairchild Park Tennis Center fees, and derived from the Code of 1959, § 27-17.1; Ord. No. 53585, § 2, adopted April 2, 1981; Ord. No. 54281, § 6, adopted September 17, 1981; Ord. No. 57564, § 6, adopted September 15, 1983; Ord. No. 61335, § 3, adopted August 29, 1985; Ord. No. 63234, § 14, adopted July 16, 1986; Ord. No. 65691, § 14, adopted September 10, 1987; Ord. No. 67912, § 6, adopted September 15, 1988; Ord. No. 69784, § 2, adopted July 6, 1989; Ord. No. 86609, § 12, adopted September 11, 1997; Ord. No. 2006-09-07-1009, § 11, adopted September 7, 2006.

ARTICLE IX. RIVER WALK*

Sec. 22-138. Definitions.

The following words, terms, and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Business establishment shall mean a business that contains at least one (1) entrance along the River Walk area.

Queue shall mean to form a line or arrange in a line.

Right-of-way shall mean an area or strip of land, designated by the city on the map attached hereto and incorporated herein for all purposes as Attachment I, occupied or unoccupied by a walkway, for pedestrian traffic or other similar uses for the safe passage of pedestrians. Any reference on the map in Attachment I to concrete walk (conc. walk), concrete slab (conc. slab), and landing shall be included in the definition of right-of-way. The definition shall only apply to this article unless otherwise specified. A copy of Attachment I shall be available for inspection in the office of the city clerk.

River Walk area shall have a meaning consistent with Chapter 35, Article VII of the City Code.
(Ord. No. 83938, § 1, 4-11-96)

*__Cross reference—__Tourist and trade center areas, Ch. 32.

Sec. 22-139. Purpose.

The purpose of this article is to preserve the safety of the visitors to the River Walk area; to reduce the number of people queuing along the River Walk area awaiting entry into a business establishment; and to promote the use of technology to summon waiting patrons to business establishments instead of queuing along the River Walk area.
(Ord. No. 83938, § 1, 4-11-96)

Sec. 22-140. Declared public nuisance.

(a) It shall be unlawful for a business establishment, its owners, its designated agent, the person in charge of the premises, or the owner of the property to allow any obstruction on the public right-of-way of the River Walk area.

(b) It shall be unlawful for a business establishment, its owner, designated agent, person in charge of the premises, or owner of the property to allow patrons to queue on, or wait for entrance into the business establishment on the public right-of-way of the River Walk area.
(Ord. No. 83938, § 1, 4-11-96)

Sec. 22-141. Penalty.

Violation of section 22-140(a) or section 22-140(b) above is hereby declared a public nuisance. A violator of section 22-140(a) or section 22-140(b) shall be guilty of a misdemeanor and upon conviction shall be subject to a fine of not less than one hundred dollars ($100.00), but not more than five hundred dollars ($500.00) for the first violation. Every subsequent violation of section 22-140(a) or section 22-140(b) shall subject the violator to a fine of not less than two hundred dollars ($200.00), but not more than five hundred ($500.00).
(Ord. No. 83938, § 1, 4-11-96)

Sec. 22-142. Work barge rental fees.

Rental fee for the use of a city owned work barge on the San Antonio River shall be sixty dollars ($60.00) per hour. Barges may only be operated by a certified city operator and the rental fee shall include the services of the operator. All rental fees received for said rentals shall

be deposited into the city general fund. No rental fee will be assessed for the use of barges in official city sponsored events or by city departments.
(Ord. No. 85156, § 1, 11-21-96; Ord. No. 2008-09-11-0777A, § 10, 9-11-08)

Sec. 22-143. Operation of vessels on the San Antonio River for commercial purposes.

(a) No boat or barge may be operated or launched in the San Antonio River Channel for commercial purposes without approval of the city council expressed in an ordinance expressly identifying the individual, corporation, partnership or other entity authorized to provide such services.

(b) For purposes of the foregoing section, the "San Antonio River channel" is defined as the San Antonio River between South Alamo Street and the head waters of the river located at Hildebrand Avenue and Brackenridge Park, together with the Riverbend and all man-made canals connected to the bed of the San Antonio River between these points.

(c) Any person who violates this section is subject to a fine of up to five hundred dollars ($500.00) per violation.
(Ord. No. 85958, § 1, 5-1-97; Ord. No. 2008-04-17-0317, § 13, 4-17-08)

Sec. 22-144. Operation of vessels on the San Antonio River for noncommercial purposes.

(a) No boat or barge may be operated or launched in the San Antonio River channel for noncommercial purposes without written approval of the director of the department of parks and recreation or downtown operations of the city.

(b) Applications for approval to operate or launch vessels on the San Antonio River channel for noncommercial purposes submitted to the director of the department of parks and recreation downtown operations must include details regarding the applicant, the type of vessel, passenger capacity. Purpose, requested date(s) and duration of launch and operation. For events involving multiple vessels to be operated on the San Antonio River channel, the director of the department of parks and recreation is invested with discretion to accept an application summarizing the required information for all vessels involved in the event.

(c) For purposes of the foregoing section, the "San Antonio River Channel" is defined as the San Antonio River between South Alamo Street and the head waters of the river located at Hildebrand Avenue and Brackenridge Park, together with the Riverbend and all man-made canals connected to the bed of the San Antonio River between these points.

(d) The department of downtown operations shall develop guidelines for determining approval or disapproval of any such application which are consistent with the purposes stated in this section and stating a process for appeal of any such permit denial.

(e) Any person who violates this section is subject to a fine of up to five hundred dollars ($500.00) per violation.
(Ord. No. 85958, § 2, 5-1-97; Ord. No. 2008-04-17-0317, § 13, 4-17-08)

Sec. 22-145. Pets in city parks.

(a) Notwithstanding the provisions of chapter 5 of the City Code, persons shall be allowed to remove the leash from dogs within designated dog parks located in park facilities.

(b) It shall be unlawful for any person to take an animal into the following parks under any circumstances:

(1) Zoological areas contiguous to Brackenridge Park.

(2) Friedrich Wilderness Area.

(3) Crownridge Canyon Nature Area.

(Ord. No. 98235, § 1, 9-25-03; Ord. No. 2011-06-02-0448, § 3, 6-2-11)

Sec. 22-146. Operation of vessels on the San Antonio River for commercial purposes—Mission Reach and Eagleland Areas.

(a) No boat or barge may be operated or launched in the Mission Reach or Eagleland areas of the San Antonio River for commercial

purposes without approval of the city council expressed in an ordinance expressly identifying the individual, corporation, partnership or other entity authorized to provide such services.

(b) For purposes of the foregoing section, the "Mission Reach and Eagleland areas" are defined as the San Antonio River between South Alamo Street and Mission Espada.

(c) Any person who violates this section is subject to a fine of up to five hundred dollars ($500.00) per violation.
(Ord. No. 2011-06-02-0448, § 4, 6-2-11)

Secs. 22-147—22-160. Reserved.

ARTICLE X. PARKS AND RECREATION FACILITY REFUND POLICY*

Sec. 22-161. Parks and recreation facility refund policy.

There is hereby established the following permit, reservation, and use fee refund policy for all parks and facilities operated by the city's department of parks and recreation:

(1) All permits, reservations and use fees shall be one hundred (100) percent refundable if the holder of the permit, reservation or use fee provides the department of parks and recreation written notice of cancellation ninety (90) calendar days before the date of the permit, reservation or use.

(2) All permits, reservations and use fees shall be fifty (50) percent refundable if the holder of the permit, reservation or use fee provides the department of parks and recreation written notice of cancellation eighty-nine (89) to thirty (30) calendar days before the date of the permit, reservation or use.

(3) All permits, reservations and use fees will be non-refundable and forfeited to the city for any cancellations with less than thirty (30) days notice.

(4) One (1) rescheduled use can be granted with at least sixty (60) calendar days written notice to the department of parks and recreation.

(Ord. No. 94585, § 16, 9-20-01)

*__Editor's note—__Ord. No. 94585, § 16, adopted September 20, 2001, enacted provisions intended for use as art. X, § 22-145. To preserve the style of this Code, and at the discretion of the editor, said provisions have been redesignated as art. X, § 22-161.

ARTICLE XI. CITY PARKS AS PARK SAFETY ZONES†

Sec. 22-162. Definitions.

The following words, terms, and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

City means the City of San Antonio, Texas.

City parks means any land, including improvements to the land, which is administered, operated or managed by the city for the use of the general public as a park, trail or natural area, and city recreational areas which include, but are not limited to: conservation areas, jogging trails, hiking trails, bicycle trails, stretches of river designated for canoeing or kayaking, recreational centers, water parks, swimming pools, soccer fields and baseball fields. A map depicting the city parks shall be kept and maintained by the San Antonio Police Department.

Loiter means standing or sitting idly, whether in a vehicle or not, in and around an area.

Park safety zone in the context of this article means all city parks, with the exception of cemeteries and golf courses.

Permanent residence means a place where the person abides, lodges, or resides for fourteen (14) or more consecutive days.

Sex offender means an individual who is required to register as a sex offender under Chapter 62 of the Texas Code of Criminal Procedure, or by a state or federal agency. Sex

†__Note—__This article shall take effect March 1, 2014.

offender shall also refer to civilly committed sexually violent predators, as referenced under V.T.C.A., Health and Safety Code ch. 841.

Temporary residence means a place where a person abides, lodges or resides for a period of fourteen (14) or more total days during any calendar year and which is not the person's permanent address, or a place where the person routinely abides, lodges or resides for a period of four (4) or more consecutive or nonconsecutive days in any month and which is not the person's permanent address.
(Ord. No. 2013-12-05-0855, § 1, 12-5-13)

Sec. 22-163. Sex offender residence restrictions.

(a) It is an offense for a sex offender to establish a permanent or temporary residence within one thousand (1,000) feet of the real property comprising a park safety zone.

(b) The residence restriction of this section does not apply to the section of the Riverwalk, on the street level only, which is South of Lexington Avenue and North of South Alamo Street.

(c) A culpable mental state is not required for the commission of this offense and need not be proved.
(Ord. No. 2013-12-05-0855, § 1, 12-5-13)

Sec. 22-164. Sex offender entry and loitering restrictions.

(a) It is an offense for a sex offender to intentionally or knowingly enter a park safety zone.

(b) It is an offense for a sex offender to intentionally or knowingly loiter within three hundred (300) feet of a park safety zone.

(c) The entry and loitering restrictions of this section do not apply to the section of the Riverwalk, on the street level only, which is South of Lexington Avenue and North of South Alamo Street.

(d) A sex offender who has a right to be present at an official meeting is exempted from this section and may approach and enter a park safety zone for such time as is necessary to attend the official meeting. This exemption shall only apply to those areas of the park safety zone that are necessary for attendance at the official meeting, and any sex offender found outside such areas shall be in violation of this article.

(e) When a polling place for an election is located within a park safety zone, a sex offender is exempted from this section and may approach and enter the park safety zone for the limited purpose of voting if the sex offender qualifies to vote at such place. This exemption shall only apply to those areas of the park safety zone that are necessary for voting, and any sex offender found outside such areas shall be in violation of this article.
(Ord. No. 2013-12-05-0855, § 1, 12-5-13)

Sec. 22-165. Distance measurement.

Distances under this article shall be measured between the sex offender's residence, temporary residence or location and the nearest property line of the park safety zone.
(Ord. No. 2013-12-05-0855, § 1, 12-5-13)

Sec. 22-166. Affirmative defenses.

(a) It is an affirmative defense to prosecution for sex offender residence restrictions that the sex offender had already established a temporary or permanent residence within the park safety zone prior to the date of this article's adoption, and has complied with all of the sex offender registration laws of the state.

(b) It is an affirmative defense to prosecution under this article that the sex offender was a minor when the offense was committed, and does not qualify as a sex offender under this article as an adult.

(c) It is an affirmative defense to prosecution under this article that the sex offender is under an order of a court in the state or of the Texas Department of Criminal Justice Parole Board, permitting the person to be within the park safety zone.

(d) Affirmative defenses have the same effect as specified in V.T.C.A., Penal Code § 2.04.
(Ord. No. 2013-12-05-0855, § 1, 12-5-13)

Sec. 22-167. Exemptions.

Exemptions from the terms of this chapter shall not be contrary to the public interest but may be granted where, owing to special conditions, or when a literal enforcement of the provisions of this chapter will result in unnecessary hardship. A sex offender shall have the right to make an appeal for an exemption from a provision of this chapter by making a request to the Chief of the San Antonio Police Department, in writing, stating why an exemption should be granted. The decision of the chief of police, which may be made based solely on the written appeal without further hearing, shall be final.
(Ord. No. 2013-12-05-0855, § 1, 12-5-13)

Sec. 22-168. Penalties.

Any person who violates any of the provisions of this article shall be guilty of a Class C misdemeanor and upon adjudication or conviction thereof shall be fined in an amount not to exceed five hundred dollars ($500.00) for each and every offense. Each and every violation or day such violation shall continue or exist shall be deemed a separate offense. The penal provisions imposed under this section shall not preclude the city from filing suit to enjoin a violation of this section. The city shall retain all legal rights and remedies available to it pursuant to local, state and federal law.
(Ord. No. 2013-12-05-0855, § 1, 12-5-13)

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Chapter 23

PLANNING*

Art. I. In General, §§ 23-1—23-15
Art. II. Reserved, §§ 23-16—23-21

ARTICLE I. IN GENERAL

Secs. 23-1—23-15. Reserved.

ARTICLE II. RESERVED*

Secs. 23-16—23-21. Reserved.

*__Editor's note__—Ord. No. 61208, adopted Aug. 8, 1985, provided for the deletion of § 2-2 of the 1959 Code from which former §§ 23-16—23-21 relative to the planning commission derived. Provisions pertaining to the planning commission are currently set out in § 30-4.1

__Charter reference__—Planning commission, § 117 et seq.

*__Cross references__—Buildings generally, § 6-1 et seq.; flood plains, § 12-1 et seq.; mobile home parks, § 18-1 et seq.; streets and sidewalks, § 29-1 et seq.; subdivisions, § 30-1 et seq.; water and sewers, § 34-1 et seq.; zoning, § 35-1 et seq.

Chapter 24

RESERVED*

*__Editor's note—__Ord. No. 2011-12-01-0984, § 1, adopted December 1, 2011, repealed the former chapter 24, articles I—III in its entirety, which pertained to the plumbing and fuel gas code. See the Code Comparative Table for a complete derivation.

For current provisions pertaining to similar subject matter, the user's attention is directed to chapter 10, building-related codes.

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Chapter 25

POLICE*

Article I. In General

Sec. 25-1. Duties of police generally.
Sec. 25-2. Duties of police at fires.
Sec. 25-3. Calling on citizens for assistance.
Sec. 25-4. Police dogs; tormenting, beating.
Sec. 25-5. Authority of police to issue notices to appear in municipal court; exceptions.
Sec. 25-6. Fees for record searches, reports, fingerprints.
Sec. 25-7. Fee for use of firearms simulator.
Sec. 25-8. Surcharge for off-duty police officer.
Sec. 25-9. Fee for database access.
Sec. 25-10. No fee for processing or return of personal property.
Secs. 25-11—25-20. Reserved.

Article II. Reserved

Secs. 25-21—25-40. Reserved.

Article III. Abandoned Property

Sec. 25-41. Sale at public auction of certain property held by police for four months.
Sec. 25-42. Notice of sale; sale to highest bidder.
Sec. 25-43. Sale; bill of sale; persons prohibited from bidding.
Sec. 25-44. Record of sale; accounting for proceeds of sale.
Secs. 25-45—25-55. Reserved.

Article IV. Alarm Systems

Sec. 25-56. Definitions.
Sec. 25-57. Permit required; fee; application; transferability; false statements.
Sec. 25-58. Permit duration; renewal and inspection.
Sec. 25-59. Duties of permit holder.
Sec. 25-60. Alarm reset required.
Sec. 25-61. Reserved.
Sec. 25-62. Indirect alarm reporting.
Sec. 25-63. Automatic dialing systems; standards.
Sec. 25-64. Alarm dispatch records.
Sec. 25-65. System performance reviews and consultations.
Sec. 25-66. Service fee.
Sec. 25-67. Revocation of permit.
Sec. 25-68. Appeal from service fee, denial or revocation of permit.
Sec. 25-69. Subsequent inspections and issuance of a new permit.
Sec. 25-70. Violations; penalty; corporations, partnerships and associations.
Sec. 25-71. Exemptions implementation of chapter.
Sec. 25-72. Disclaimer.

***Charter references—**Police department created, § 50; appointment and removal of chief of police, § 57; authority and duties of policemen, § 58.

Cross references—Civil emergencies, § 8-1 et seq.; fire department, § 11-16 et seq.; motor vehicles and traffic, § 19-1 et seq.; municipal courts, § 20-1 et seq.; offenses and miscellaneous provisions, Ch. 21.

State law reference—Police department authorized, Vernon's Ann. Civ. St. art. 1175(27).

Secs. 25-73—25-80. Reserved.

Article V. Restricted Entry Access Systems

Sec. 25-81. Definitions.
Sec. 25-82. Permit requirement.
Sec. 25-83. Electronically controlled key pad system requirement.
Sec. 25-84. Compliance term.
Sec. 25-85. Reporting code.
Sec. 25-86. Emergency access code changes.
Sec. 25-87. Maintenance of restricted entry access system.
Sec. 25-88. Permit application.
Sec. 25-89. Notice.
Sec. 25-90. Penalties.

ARTICLE I. IN GENERAL

Sec. 25-1. Duties of police generally.

It shall be the duty of the police of the city at all times of the day and night, within the city limits, and the officers and members of the police force of the city are hereby empowered to specially preserve the public peace, prevent crime, detect and arrest offenders, suppress riots, mobs and insurrections, disperse unlawful and dangerous assemblages, and assemblages which obstruct the free passage of the public streets, sidewalks and plazas; to protect the rights of person and property, guard the public health; to preserve order at all the public meetings, assemblages, theaters and all places of public amusement or resort; to prevent confusion and regulate the movement of vehicles in the streets, highways and public places of the city; to remove all nuisances in the streets, plazas or highways of the city not otherwise provided for; to arrest all mendicants and beggars and all dangerous and suspicious characters, and all loafers and pimps; to assist, advise and protect strangers and travelers in the public plazas, streets and highways of the city, and to repress and restrain all unlawful and disorderly conduct or practices therein; and to enforce and prevent the violation of this Code and all laws of the state and ordinances of the city.
(Code 1950, § 16-58; Code 1959, § 32-1)

Sec. 25-2. Duties of police at fires.

It shall be the duty of the city police to keep away from the vicinity of any fire, all idle or suspicious persons lurking near the same; and they may compel any person to aid in extinguishing the fire, and to render any other necessary and reasonable assistance that the occasion may require; and they shall have power to arrest any person who shall refuse or fail to obey their orders.
(Code 1950, § 16-62; Code 1959, § 32-2)

Sec. 25-3. Calling on citizens for assistance.

Whenever, in order to quell any riotous or disorderly conduct, to make any arrest, or for any other purpose herein provided for, an additional force may be found necessary, the chief of police or any peace officer of the city, may call upon any citizen and require his aid and assistance, and it shall be unlawful for any such citizen to refuse, when so called upon, his aid and assistance.
(Code 1950, § 16-60; Code 1959, § 32-3)

Sec. 25-4. Police dogs; tormenting, beating.

It shall be unlawful for any person to willfully or maliciously torture, torment, beat, kick, strike, mutilate, injure, disable or kill any dog used by the police department of the city in the performance of the functions or duties of such department or to interfere with or meddle with any such dog while being used by the police department or any officer or member thereof.
(Code 1959, § 26-22.1; Ord. No. 32135, §§ 1, 2, 2-27.64)

Sec. 25-5. Authority of police to issue notices to appear in municipal court; exceptions.

(a) Whenever a person is arrested by a city police officer for any violation under section 1-5 of this Code in the municipal courts of the city, other than violations of the Texas Uniform Act Regulating Traffic on Highways (Article 6701d, V.A.C.S.), and such person is not immediately taken before a magistrate where required under subsection (b) hereof, the arresting officer shall prepare written notice to appear in court containing the name and address of such person, driver's license number or other identification, the offense charged, and a statement promising to appear in a municipal court of the city and at a time to be designated in a notice to be mailed to said person by the clerk of the court, if the arrested person gives his written promise to appear in court at the time and place to be so specified by signing the written notice prepared by the arresting officer.

(1) After it is signed, the original of the notice shall be retained by the officer and a copy delivered to the person arrested. Thereupon the officer shall release the person arrested from custody.

(2) The time specified in the notice to be mailed must be at least five (5) days after such arrest unless the person arrested shall demand an earlier hearing.

(3) The place specified in said mailed notice shall be a courtroom in the municipal courts building of the city.

(4) A written promise to appear in court may be complied with by an appearance by counsel.

(b) The above procedure is not authorized in any of the following cases:

(1) When a person arrested demands an immediate appearance before a magistrate.

(2) The person arrested is being arrested on a Warrant or has outstanding warrants against him.

(3) The safety of the person arrested or the safety of others may be jeopardized by his release, in the judgment of the police officer or his superiors.

(4) The person arrested fails or refuses to give satisfactory identification.

(5) The person arrested is intoxicated to a degree where he is unable to care for himself.

(6) Where medical treatment or physical examination of the person arrested is required.

(7) Where a police officer has used physical force on the person arrested.

(8) Where otherwise provided by the rules and regulations of the police department issued by the chief of police and approved by the firemen's and policemen's civil service commission.

(Code 1959, § 32-3.1; Ord. No. 38905, §§ 1, 2, 9-10-70; Ord. No. 66146, 11.24.87)

Sec. 25-6. Fees for record searches, reports, fingerprints.

(a) The police department is hereby authorized to charge the fees listed below in connection with the following services:

(1) A fee of thirty dollars ($30.00) shall be charged for an arrest record letter.

(2) A fee of thirty dollars ($30.00) shall be charged for a clearance letter.

(3) A fee of thirty dollars ($30.00) shall be charged for a visa letter.

(4) A fee of six dollars ($6.00) shall be charged for notarization or certification of an arrest record letter, a clearance letter, or a visa letter.

(b) The police department is hereby authorized to charge a fee of ten dollars ($10.00) for any fingerprint work performed. Each fingerprint card will be charged at the rate of ten dollars ($10.00) each.

(c) All charges collected and received for the services provided herein shall be accounted for and handled in accordance with instructions issued by the city director of finance.

(d) The police department is authorized to charge an application processing fee of thirty dollars ($30.00) for the processing of criminal history reviews. There will be no charge for applicants who have submitted applications for employment with the city.

(Code 1959, § 32-5.1; Ord. No. 45535, § 29, 7-24-75; Ord. No. 49628, § 1, 7-27-78; Ord. No. 52579, 7-31-80; Ord. No. 63241, §§ 1, 2, 7-16-86; Ord. No. 83260, § 1, 12-7-95; Ord. No. 86614, §§ 5, 6, 9-11-97; Ord. No. 99741, § 6, 9-16-04; Ord. No. 2009-09-17-0731K, §§ 1, 2, 9-17-09; Ord. No. 2014-09-18-0694, § 2(Att. I), 9-18-14; Ord. No. 2019-09-12-0694A, § 1(Att. G), 9-12-19)

Sec. 25-7. Fee for use of firearms simulator.

The police department is authorized to charge a fee of ten dollars ($10.00) per scenario for use of the firearms simulator.

(Ord. No. 86614, § 7, 9-11-97)

Sec. 25-8. Surcharge for off-duty police officer.

The police department is authorized to charge a surcharge of ten dollars ($10.00) per hour in excess of the hourly pay for each off-duty police officer providing security, crowd control, and other police-related activities at those city facili-

ties at which the current collective bargaining agreement requires the use of sworn personnel for those purposes.
(Ord. No. 86614, § 8, 9-11-97; Ord. No. 2025-09-18-0629, § 2(Att. H), 9-18-25)

Sec. 25-9. Fee for database access.

A fee shall be charged for access, by governmental agencies, to the city police department's mobile data system for the purpose of accessing available local, state, and national databases. The annual fee shall be one hundred twenty dollars ($120.00) for each set, or part thereof, of ten (10) units provided access. (For example, access for twenty-five (25) units would be three hundred sixty dollars ($360.00): One hundred twenty dollars ($120.00) for the first set of ten (10); One hundred twenty dollars ($120.00) for the second set of ten (10); and One hundred twenty dollars ($120.00) for the incomplete portion of the third set of ten (10)).
(Ord. No. 99741, § 7, 9-16-04)

Sec. 25-10. No fee for processing or return of personal property.

The police department will not charge a fee for the processing or return of personal property. The term "personal property," as used in this subsection, shall refer to property which, at the time of its release, is not classified as evidence, recovered property, or found property.
(Ord. No. 2009-09-17-0731K, § 3, 9-17-09; Ord. No. 2021-09-16-0682, § 2(Att. D), 9-16-21)

Editor's note—Ord. No. 2021-09-16-0682, § 2(Att. D), adopted September 16, 2021, amended § 25-10 and in so doing changed the title of said section from fee for processing personal property to read as set out herein.

Secs. 25-11—25-20. Reserved.

ARTICLE II. RESERVED*

Secs. 25-21—25-40. Reserved.

*__Editor's note—__Former Art. II, §§ 25-21—25-27, relative to private security patrols, and derived from Code 1950, §§ 39-1—39-4, 39-6, 39-7, 39-9, 39-15 and Code 1959, §§ 32-6—32-12, has been deleted as being preempted by Article 4413(29b), V.A.C.S.

ARTICLE III. ABANDONED PROPERTY

Sec. 25-41. Sale at public auction of certain property held by police for four months.

All abandoned, stolen or recovered property of any kind, except motor vehicles, which shall remain unclaimed with the police department for a period of four (4) months without being claimed or reclaimed by the owners, whether known or not, may be sold and disposed of at public auction, as provided in this article.
(Code 1959, § 32-14; Ord. No. 35224, § 1, 2-23-67)

Sec. 25-42. Notice of sale; sale to highest bidder.

Thirty (30) days notice of the time and place of sale of all abandoned, stolen or recovered property, except bicycles, and in the case of bicycles, fifteen (15) days notice of the time and place of sale and a descriptive list of the property and bicycles to be offered for sale shall be posted at the door of the county courthouse and on the bulletin board located in the city hall lobby and a copy thereof shall be sent by certified mail to the last known address of the owner, in the event the name of the owner is known to the police chief. Thereafter, the property shall be offered for sale at public auction to the highest bidder for each piece of property or bicycle, or assembled in lots, whichever, in the discretion of the police chief, shall offer the best price obtainable for such property or vehicles.
(Code 1959, § 32-16; Ord. No. 35224, § 3, 2-23-67)

Sec. 25-43. Sale; bill of sale; persons prohibited from bidding.

The public auction provided for in section 25-16 shall be conducted at the place and hour designated in the notice and all sales shall be for cash. Said property shall be sold as is, and a bill of sale, if requested, shall be given to the purchaser but no title transfer or title papers of any nature shall be furnished. City employees or members of their immediate families shall not be permitted to bid on any of the above items and no person that is delinquent in the payment of city

property taxes shall be permitted to bid on any of the above items nor shall any sale of said items be made to such person.
(Code 1959, § 32-17; Ord. No. 35224, § 4, 2-23-67)

Sec. 25-44. Record of sale; accounting for proceeds of sale.

Within five (5) days after any such sale has been completed, the chief of police shall make a record thereof, under oath, to the controller of the city and shall account for the money received at all such sales in the same manner as is prescribed for him to account for all other monies that may come into his custody as chief of police.
(Code 1959, § 32-18; Ord. No. 35224, § 5, 2-23-67)

Secs. 25-45—25-55. Reserved.

ARTICLE IV. ALARM SYSTEMS*

Sec. 25-56. Definitions.

For purposes of this article, the following definitions shall apply unless the context requires a different definition:

(a) *Alarm system* means any mechanical or electrical device which is used to protect buildings or premises from criminal acts, unauthorized entries, and fires by warning persons of a fire, crime or unauthorized entry through the emission of a sound or the transmission of a signal or message. For purposes of this article, unless otherwise specifically noted, an alarm system shall not include:

(1) An alarm installed on a vehicle unless the vehicle is permanently located at a site.

(2) Alarm systems that monitor temperature, humidity, or any other condition not directly related to the detection of an unauthorized entry into a premises, attempted robbery at a premises, or a fire.

(3) Proprietary alarm systems not designed or intended to alert law enforcement or fire agencies or others outside the protected building, structure, or facility, but which are designed solely to alert the inhabitants, security personnel, or others directly connected with or employed by the owner or operator of the protected building, structure or facility.

(4) An alarm installed upon premises occupied by the United States Government, the State of Texas, the City of San Antonio, or Bexar County.

(b) *Alarm notification* means a notification intended to summon the police or fire department, which is designed either to be initiated purposely by a person or by an alarm system that responds to a stimulus characteristic of unauthorized entry or fire, to include smoke and heat.

(c) *Alarm site* means a single premises or location (one street address including apartment number, suite number, etc.) served by an alarm system or systems that are under the control of one owner.

(d) *Answering service* means a telephone answering business providing among its services receiving, on a continuous basis through trained employees, emergency signals from alarm systems, and thereafter immediately relaying the message by live voice to the communication center of the police or fire department.

(e) *Applicant* means the person, individual, corporation, partnership, association, organization or similar entity, who is applying to be permit holder.

(f) *Automatic alarm notification* means an alarm notification sent over telephone lines, by direct connection or otherwise, including a prerecorded voice message, synthesized voice message, or coded signal indicating the existence of the emergency situation that the alarm system is designed to detect.

***Editor's note—**Section 1 of Ord. No. 76472, adopted Sep. 10, 1992, amended Art. IV to read as herein set out. Formerly, Art. IV consisted of §§ 25-56—25-72, which pertained to alarm systems and derived from § 1 of Ord. No. 66724, adopted Mar. 3, 1988.

Cross reference—Electricity, generally, § 10-1 et seq.

(g) *Automatic dialing device* means an alarm system which automatically sends over regular telephones lines, by direct connection or otherwise, a prerecorded voice message or coded signal indicating the existence of the emergency situation that the alarm system is designed to detect.

(h) *Central station* means a system or group of systems operated for its customers by any person, in which the operations of electrical protection circuits and devices are transmitted to, recorded in, maintained and supervised from a central location having trained operators and/or trained service technician or guards in attendance or on call at all times that have the duty to take appropriate action upon receipt of a signal or message, including the relaying of messages by live voice to the communications center of the police and fire departments.

(i) *Chief* means the chief of police or fire department of the city or his designated representative.

(j) *False alarm notification* means an alarm notification to the police or fire departments, for which the responding officer or firefighter finds no evidence of criminal activity or fire, smoke or heat for which the alarm system was designed to give notice.

(k) *Interconnect* means to connect an alarm system to a voice-grade telephone line, either directly or through a mechanical device that utilizes a standard telephone, for the purpose of using the telephone line to transmit an emergency message upon the activation of the alarm system.

(l) *Local alarm* means an alarm system that emits a signal at an alarm site that is audible or visible from the exterior of a structure.

(m) *Modified central station* means an office to which remote alarm and supervisory signaling devices are connected, where operators supervise the circuits.

(n) *Permit holder* means the person designated in the application as required in section 25-57 who will be responsible for the proper maintenance and operation of the alarm system and payment of the fees assessed under this article.

(o) *Person* means an individual, corporation, partnership, association, organization or similar entity.

(p) *Primary trunkline* means a telephone line leading directly into the communication center of the police or fire departments that is for the purpose of handling emergency calls on a person-to-person basis, and which is identified as such by a specific number included among the emergency numbers listed in the telephone directory issued by the telephone company.

(q) *Special trunkline* means a telephone line leading into the communication center of the police or fire department which has as its primary purpose the handling of emergency signals or messages originating either directly or through a central location from automatic dialing devices.

(r) *Unauthorized entry* means entry of any type, whether intentional or accidental, not authorized by the owner.

(s) *Victim* means a person who is the subject of an offense under the Texas:

(1) V.T.C.A., Family Code §§ 71.004 (family violence) or 261.001(1) (child abuse); or

(2) V.T.C.A., Penal Code §§ 22.011 (sexual assault), 22.021 (aggravated sexual assault) or 42.042 (stalking).

(Ord. No. 76472, § 1, 9-10-92; Ord. No. 2015-06-18-0563, § 1, 6-18-15)

Note—Subsection (s) shall take effect October 1, 2015.

Sec. 25-57. Permit required; fee; application; transferability; false statements.

(a) No person shall operate or cause to be operated an alarm system without an alarm permit issued by the chief. A separate permit is required for each fire or burglary alarm system on each alarm site.

(b) The following annual fees, which are nonrefundable, shall be due for the issuance and renewal of each permit:

(1) Fifty dollars ($50.00) for a residential alarm site;

(2) Thirty dollars ($30.00) for a residential alarm site for a person sixty-five (65) years of age, or older.

(3) The fee for a permit shall be waived for a residential alarm site at which a resident provides certification notice, on a form developed by the chief, that the resident has been a victim as defined in subsection 25-56(s);

(4) Two hundred dollars ($200.00) for an initial commercial alarm site; and

(5) Two hundred fifty dollars ($250.00) for renewal of a commercial alarm site.

(c) Upon receipt of a completed application form and the required fee, the chief shall issue an alarm permit to an applicant unless the applicant has failed to pay a service fee assessed under section 25-66 or has had an alarm permit revoked at this or any other alarm site, and the violation causing the revocation has not been corrected.

(d) Each alarm permit application must contain the following information:

(1) Name, address, and telephone number of the permit holder and/or individual who will be responsible for the proper maintenance and operation of the alarm system and payment of fees assessed under this chapter;

(2) Classification of the alarm site as either residential or commercial;

(3) The purpose of each alarm system located at the alarm site, i.e., burglary, robbery, personal hostage, or fire;

(4) The street address of the alarm site on which the alarm system is to be installed and operated; if the alarm site is an apartment, includes the building number and apartment number, if applicable;

(5) Any business name, if any used for the premises on which the alarm system is to be installed and operated;

(6) The name of the person or licensed alarm system company who will install and/or maintain the alarm system; and

(7) The names and telephone numbers of two (2) persons who are able to and have agreed:

(i) To receive notification at any time;

(ii) To come to the alarm site within one and one-half (1½) hours after receiving a request from a member of the police or fire department to do so; and

(iii) To grant access to the alarm site and to deactivate the alarm system if such becomes necessary.

(8) Other information required by the chief which is necessary for the enforcement of this chapter.

(e) Any false statement of a material matter made by an applicant for the purpose of obtaining an alarm permit shall be sufficient cause for refusal to issue a permit.

(f) An alarm permit cannot be transferred to another alarm system except by authorization of the chief. A permit holder shall inform the chief of any permitted changes to the information listed on the permit application within two (2) business days. No fee will be assessed for such changes.

(g) A permit holder shall cancel an alarm permit for any alarm system which is removed from an alarm site or which otherwise ceases to come under the permitting requirements of this chapter. Cancellation may be accomplished by returning the alarm permit to the chief or his designated representative.

(h) All fees owed by an applicant must be paid before an alarm permit may be issued or renewed.

(i) The police and fire departments shall protect all information on an application as confidential information, provided, however, nothing in this article shall prohibit the use of such information for legitimate law and fire code enforcement purposes and for enforcement of this article.

(j) Persons operating a newly activated or reactivated alarm system must notify the police department alarm unit (or after normal business hours, the police dispatcher's office) within twelve (12) hours after commencing operation of the

address of the alarm site, the name and the address of the operator, and of any contact persons. Persons who give such notification are exempt from the permit requirement for a period not to exceed four (4) calendar days.

(k) The residence owner shall be charged an unpermitted alarm fee in the amount of two hundred fifty dollars ($250.00) for each false burglary alarm call where the residence does not have a valid alarm permit. The business owner shall be charged an unpermitted alarm fee in the amount of two hundred fifty dollars ($250.00) for each false burglary alarm call where the business does not have a valid alarm permit. The business owner shall be charged an unpermitted alarm fee in the amount of five hundred dollars ($500.00) for each false robbery alarm call where the business does not have a valid alarm permit. The residence or business owner shall be charged an unpermitted alarm fee in the amount of two hundred fifty dollars ($250.00) for each false fire alarm call where the residence or business does not have a valid alarm permit.
(Ord. No. 76472, § 1, 9-10-92; Ord. No. 86614, § 1, 9-11-97; Ord. No. 87450, § 1, 2-26-98; Ord. No. 98190, § 3, 9-18-03; Ord. No. 2006-09-07-1000, § 3, 9-7-06; Ord. No. 2006-09-07-1008, § 3, 9-7-06; Ord. No. 2008-09-11-0777F, §§ 1, 2, 9-11-08; Ord. No. 2009-09-17-0731K, § 4, 9-17-09; Ord. No. 2015-09-10-0758, § 2(Att. H), 9-10-15; Ord. No. 2024-09-19-0705, § 2(Att. C), 9-19-24; Ord. No. 2025-09-18-0629, § 2(Att. H), 9-18-25)

Sec. 25-58. Permit duration; renewal and inspection.

An alarm permit is issued for one (1) year and must be renewed every year upon submission of an updated application. It is the responsibility of the permit holder to submit an application prior to the permit expiration date. The chief shall determine the first expiration date of a permit. The permit holder for an alarm system shall keep such permit at the alarm site and shall produce such permit or evidence thereof for inspection upon the request of any member of the police or fire department or their designated representative. A permit shall not be renewed if the applicant owes outstanding service fees at other alarm sites for which he is the permit holder.
(Ord. No. 76472, § 1, 9-10-92; Ord. No. 96408, § 3, 9-19-02)

Sec. 25-59. Duties of permit holder.

(a) A permit holder shall:

(1) Maintain the premises containing an alarm system in a manner that insures proper operation of the alarm system;

(2) Maintain the alarm system in a manner that will minimize false alarm notifications;

(3) Respond or cause a representative to respond within one and one-half (1½) hours when requested by the city to repair or deactivate a malfunctioning alarm system, to provide access to the premises or to provide security for the premises;

(4) Not manually activate an alarm for any reason other than an occurrence of an event that the alarm system was intended to report;

(5) Notify the police or fire department dispatcher, central station or modified center station dispatcher prior to activation of an alarm for maintenance purposes; and

(6) Maintain at each alarm site, a complete set of written operating instructions for each alarm system, except that special codes, combinations, or passwords may be excluded in these instructions.

(b) A permit holder shall adjust the mechanism or cause the mechanism to be adjusted so that an alarm signal will sound for no longer than twenty (20) minutes after being activated, except when prohibited by fire code.

(c) Whenever a person listed on the application or listed on an amendment to the application is unable or unwilling to perform the duties set out in section 25-57(d)(7) the permit holder shall within two (2) business days file an amendment to the permit application listing a person

who is able and will perform those duties so that at all times the application on file with the police or fire department designates at least two (2) persons who are able and willing to perform such duties.
(Ord. No. 76472, § 1, 9-10-92)

Sec. 25-60. Alarm reset required.

Any person who is notified by any member of the police or fire department of the activation of an alarm system (and who is able to give access to the alarm site) shall come to the alarm site within one and one-half (1½) hours of the time such person is notified of such activation and shall provide the police or fire department any necessary access or assistance.
(Ord. No. 76472, § 1, 9-10-92)

Sec. 25-61. Reserved.

Sec. 25-62. Indirect alarm reporting.

(a) A person who is engaged in the business of relaying alarm notifications to the city shall:

(1) Communicate alarm notifications to the city in a manner and form determined by the chief.

(2) Comply with the requirements of this chapter and any rules and regulations promulgated by the chief.

(Ord. No. 76472, § 1, 9-10-92)

Sec. 25-63. Automatic dialing systems; standards.

(a) An alarm system, other than an alarm system in a local, state or federal governmental entity or a financial institution, which transmits automatic alarm notifications directly to the communications center of the police and fire departments shall be prohibited. No automatic dialing device shall be keyed or interconnected to a primary trunkline (or the 911 emergency number). Automatic dialing devices designed to transmit signals directly to the police or fire department may be interconnected to a special trunkline into the department as designated by the chief for that purpose. Before such a device is interconnected to a special trunkline as herein provided, the person performing such interconnection shall first obtain instructions from the chief concerning the procedure to be followed. The chief shall designate the telephone number to be used for this purpose.

(b) Automatic dialing devices installed on any premises within the city which are interconnected to a special trunkline transmitting signals into the police or fire department that will be responded to by members of the police or fire department shall meet the following minimum standards:

(1) The content of the type of recorded message to be transmitted by such device must be intelligible and in a format approved by the chief or his designated agent as appropriate for the nature of the alarm.

(2) No recorded message shall be delivered to the police or fire department more than three (3) times as the result of a single stimulus of the sensory mechanism.

(3) The length of time for transmitting the recorded message must not exceed fifteen (15) seconds.

(4) The time gap between delivery of each recorded message must be in the range from ten (10) to twelve (12) seconds.

(5) The sensory mechanism used in connection with such devices must be adjusted to suppress false alarm notifications so that the devices will not be actuated by impulses due to transient pressure changes in water pipes, fire alarm systems, short flashes of light, wind noise such as the rattling or vibration of the doors or windows, vehicular noise adjacent to the installation, or other forces unrelated to genuine alarms.

(6) All components comprising such a device must be maintained by the owner or lessee in good repair to ensure reliability of operation.

(c) Every person who has interconnected any automatic dialing device in the city to a special trunkline in the communication center of the

police or fire department shall provide a current list of such installations to the chief or his designated agent. The list shall include:

(1) The name, home address and telephone number of the owner or lessee of the device.

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(2) The address of the location where the device is installed and the telephone number at such location.

(3) The name and telephone number of at least two (2) other persons who can be reached at any time and who are authorized to respond to any emergency signal transmitted by the automatic dialing device, and who can grant access to the premises wherein the device is installed and to deactivate the alarm system if such becomes necessary.

The information required to be provided herein shall be available only to the chief or his designated agent for use in the course of his official duties. Such information shall be used only in connection with official law or fire code enforcement matters.

(d) Any person who sells or installs automatic dialing devices shall give written notice to the purchaser or customer that interconnection of the device to a special trunkline into the police and fire departments is subject to the terms of this article. This requirement shall be deemed to be complied with if a copy of this article is provided to such purchaser or customer.

(e) Persons owning or leasing an automatic dialing device may have the device interconnected to a telephone line transmitting directly to:

(1) A central station;

(2) A modified central station;

(3) An answering service.

The relaying of messages by intermediate services to the police or fire department shall be over a special trunkline, except that central stations may relay messages over a direct line.
(Ord. No. 76472, § 1, 9-10-92)

Sec. 25-64. Alarm dispatch records.

(a) The police or fire dispatcher receiving the alarm notification and/or the police officer or firefighter responding to a dispatch resulting from a fire, burglary, robbery, or personal hostage alarm notification shall whenever possible cause to be recorded in the police or fire information systems such information as necessary to permit the chief to maintain records, including but not limited to the following information:

(1) Identification of the permit holder;

(2) Identification of the alarm site;

(3) Dispatcher received time, dispatch time and time firefighter or police officer arrived at scene time;

(4) Date of occurrence;

(5) Name of permit holder's representative on premises, if any.

(b) The responding police officer or firefighter shall prepare and submit the appropriate reports in regard to any criminal offenses, attempts or other incidents which contributed to the alarm notification as determined by investigation.

(c) The responding police officer should, if possible, leave a written notification at the alarm site advising of the false alarm notification, the date and time of the police response.

(d) The police alarm unit will notify by phone or mail the alarm permit holder or the licensed alarm system company upon the occurrence of a fourth false alarm notification during any twelve-month period at any single alarm site.
(Ord. No. 76472, § 1, 9-10-92; Ord. No. 87450, §§ 2, 3, 2-26-98)

Sec. 25-65. System performance reviews and consultations.

If there is reason to believe that an alarm system is not being used or maintained in a manner that insures proper operation and suppresses false alarms, the chief may require a conference with the alarm permit holder to review circumstances of each false alarm.

If there is belief that an alarm is the result of circumstances beyond the reasonable control of the permit holder, the permit holder or the permit holder's representative may request a conference with the chief.
(Ord. No. 76472, § 1, 9-10-92)

Sec. 25-66. Service fee.

(a) Except as provided in subsections (b), (c) and (d), the holder of an alarm permit shall pay a service fee of fifty dollars ($50.00) for the fourth and fifth false burglary alarm notification emitted from such alarm system in the preceding 12-month period, seventy-five dollars ($75.00) for the sixth and seventh false burglary alarm notification emitted in the preceding 12-month period, and one hundred dollars ($100.00) for each false burglary alarm notification emitted in excess of seven (7) in the preceding 12-month period; two hundred dollars ($200.00) for the second false robbery or false manually activated emergency assistance alarm notification emitted from such alarm system in the preceding 12-month period, three hundred dollars ($300.00) for the third false robbery or false manually activated emergency assistance alarm notification emitted from such alarm system in the preceding 12-month period, four hundred dollars ($400.00) for the fourth false robbery or false manually activated emergency assistance alarm notification emitted from such alarm system in the preceding 12-month period, five hundred dollars ($500.00) for the fifth and each subsequent false robbery or false manually activated emergency assistance alarm notification emitted from such alarm system in the preceding 12-month period; one hundred twenty-five dollars ($125.00) for the second, third, and fourth false fire, smoke, or heat alarm notifications emitted from such alarm system within the preceding 12-month period, two hundred fifty dollars ($250.00) for the fifth, sixth, seventh, eighth, ninth, and tenth emitted in the preceding 12-month period, and five hundred dollars ($500.00) for each emitted in excess of ten (10) in the preceding 12-month period. Where, however, prior to the arrival of fire department personnel, a false fire, smoke, or heat alarm notification is cancelled, the holder of an alarm permit shall pay, instead, a service fee of fifty dollars ($50.00) for the second, third, and fourth false fire, smoke, or heat alarm notifications emitted from such alarm system within the preceding 12-month period, one hundred twenty-five dollars ($125.00) for the fifth, sixth, seventh, eighth, ninth, and tenth emitted in the preceding 12-month period, and two hundred fifty dollars ($250.00) for each emitted in excess of ten (10) in the preceding 12-month period.

(b) If a person notifies the chief and applies for an alarm permit before a new alarm system is put into service, no service fee will be assessed during the first sixty (60) days after the system is put into service, and alarm notifications during that period will not be counted in determining when a service fee will be assessed.

(c) If the responding police officer or firefighter determines that an alarm notification was caused by unauthorized entry, attempted unauthorized entry, robbery, attempted robbery, an attempt to take a person hostage, or fire-related causes that notification will not be counted in determining when a service fee will be assessed.

(d) If the total number of burglar alarm calls received by the police dispatcher's office exceeds .65 percent of the total number of permitted burglar alarm systems during any twenty-four-hour period, those burglar alarm notifications will not be counted by the alarm unit as a false alarm notification for any alarm permit holder (residential or commercial) in the city.

(e) A person owing a service fee for a false alarm notification shall pay a collection fee of thirty (30) percent of any amount that is more than sixty (60) days past due, where the collection is by an attorney or private vendor who has entered into a contract for the purpose of doing so.

(Ord. No. 76472, § 1, 9-10-92; Ord. No. 86614, § 2, 9-11-97; Ord. No. 87450, § 4, 2-26-98; Ord. No. 2006-09-07-1000, § 4, 9-7-06; Ord. No. 2006-09-07-1008, § 4, 9-7-06; Ord. No. 2008-09-11-0777F, § 3, 9-11-08; Ord. No. 2009-09-17-0731K, § 5, 9-17-09; Ord. No. 2012-12-13-1007, § 1, 12-13-12)

Sec. 25-67. Revocation of permit.

(a) The chief shall revoke an alarm permit if he determines that:

(1) There is a false statement of a material matter in the application for a permit;

(2) The permit holder has violated sections 25-57, 25-58, 25-59, 25-60, and 25-62;

(3) The permit holder has failed to make payment of a service fee assessed under section 25-66 within thirty (30) days of receiving written notice to do so; or

(4) A permit for an alarm may be revoked if mechanical malfunction or faulty equipment has caused ten (10) or more false alarms notifications by such alarm system in a twelve-month period. "Mechanical malfunction" and "faulty equipment" shall not relate, for purposes of this section, false alarms caused by human error or an act of God.

(b) A person commits an offense if he operates an alarm system during the period in which his alarm permit is revoked.

(c) The chief shall provide at least thirty (30) days' notice to the permittee prior to revocation. (Ord. No. 76472, § 1, 9-10-92; Ord. No. 86614, § 4, 9-1197; Ord. No. 87450, § 6, 2-26-98)

Sec. 25-68. Appeal from service fee, denial or revocation of permit.

(a) Any permit holder assessed a service fee under section 25-66(a) may appeal the decision of the chief to the city manager within ten (10) days of receipt of notice of assessment of such service fee and in the same manner for other appeals as provided for herein.

(b) If the chief refuses to issue or renew a permit, or revokes a permit, he shall send to the applicant or permit holder by certified mail, return receipt requested, written notice of his action and a statement of the right to appeal such action, such notice to include:

(1) The specific dates on which there have been false alarms notification from such alarm system which were caused by mechanical malfunction or faulty equipment, if revocation is based upon item(a)(4) of section 25-67;

(2) The amount of any fees assessed under section 25-67 that are due and owing and the date such fees were incurred, if revocation is based on item (a)(3) of section 25-67;

(3) That a hearing may be held before the city manager or his designated representative to determine whether the permit for such alarm system should remain revoked or be reinstated; and

(4) That the permit holder may appear in person and/or be represented by counsel, may present testimony and may cross-examine all witnesses.

(c) The applicant or permit holder may appeal the decision of the chief to the city manager by filing with the city manager a written request for a hearing, setting forth the reasons for the appeal, within ten (10) days after receipt of the notice from the chief. The filing of a request for an appeal hearing with the city manager stays an action of the chief in revoking a permit until the city manager or his designated representative makes a final decision. If a request for an appeal hearing is not made within the ten-day period, the action of the chief is final.

(d) The city manager or his designated representative shall set a time and place for the hearing, which shall be served upon the applicant or permit holder by certified mail, return receipt requested. The city manager or his representative shall serve as hearing officer at an appeal and consider evidence by any interested person. The formal rules of evidence do not apply at an appeal hearing. All parties to the hearing shall have the right to present evidence and shall have the right of cross-examination. The hearing officer shall make his decision on the basis of a preponderance of the evidence within fifteen (15) days after the request for an appeal hearing is filed. The time for hearing an appeal may be extended by agreement of the parties. The hearing officer shall affirm, reverse, or modify the action of the chief. The decision of the hearing officer is final as to administrative remedies with the city.
(Ord. No. 76472, § 1, 9-10-92)

Sec. 25-69. Subsequent inspections and issuance of a new permit.

(a) If a permit for an alarm system has been revoked under section 25-67(a)(4), the person in control of the alarm site on which the alarm system is located must request that an inspec-

tion be made of the alarm system prior to any new permit being issued. Such inspection shall be made by the San Antonio Police or Fire Department representative as soon as possible after receiving the request, but in any event not later than ten (10) regular working days after the person has made the request. If upon such inspection it is found that the alarm system is in proper working order, the person in control of the alarm site may apply for a new permit for such alarm system. A fee of forty dollars ($40.00) will be assessed for this inspection payable in advance.

(b) Reserved.
(Ord. No. 76472, § 1, 3-3-88)

Sec. 25-70. Violations; penalty; corporations, partnerships and associations.

(a) A person commits an offense if he violates by commission or omission any provision of this chapter that imposes upon him a duty or responsibility.

(b) In addition to prohibiting or requiring certain conduct of individuals, it is the intent of this chapter to hold a corporation, partnership or other association criminally responsible for acts or omissions performed by an agent acting in behalf of the corporation, partnership or other association, and within the scope of his employment.

(c) Any person, firm or corporation who violates, disobeys, omits, neglects or refuses to comply with or who resists the enforcement of any of the provision of this article shall be fined not more than two hundred dollars ($200.00) for each offense. Each day that a violation is permitted to exist shall constitute a separate offense.

(d) Any person who operates an alarm system without a valid permit (unless excepted by subsection 25-57(a)) shall be issued a notice pursuant to section 25-5 of this Code or a summons upon the filing of a complaint, and upon conviction shall be assessed a fine not less than three hundred dollars ($300.00) nor more than five hundred dollars ($500.00) for each separate offense. It shall be an affirmative defense to a violation of this subsection that the resident, tenant, or person responsible for the proper maintenance and operation of the alarm system had not received notice either by the police department as provided in subsection 25-64(c) or an alarm system company of the permit required by subsection 25-57(a). Notice is presumed to have been received if during the twelve-month period prior to the date of the violation, one (1) or more police responses had been made to the alarm site by the police department.
(Ord. No. 76472, § 1, 9-10-92; Ord. No. 87450, § 5, 2-26-98)

Sec. 25-71. Exemptions implementation of chapter.

Local, state or federal government entities that operate alarm systems shall be required to obtain an alarm permit. Fees for permits and excessive false alarms shall be waived for these entities.
(Ord. No. 76472, § 1, 9-10-92)

Sec. 25-72. Disclaimer.

The City of San Antonio shall not be under any duty or obligation to any person by reason of this article and specifically disclaims liability for any damages which may be caused by the failure of any department of the city to monitor and/or respond to an alarm notification transmitted by any means or for any damage as a result of any unreasonable delay in response to such alarm notification.
(Ord. No. 76472, § 1, 9-10-92)

Secs. 25-73—25-80. Reserved.

ARTICLE V. RESTRICTED ENTRY ACCESS SYSTEMS

Sec. 25-81. Definitions.

[For purposes of this article, the following definitions shall apply unless the context requires a different definition:]

Access controller means a person or entity controlling entry access to any residential development to which access by the public is restricted

by means of a restricted entry access system. For the purposes of section 25-90, the term "access con-

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troller" does not include an agent, representative, or employee of the person or entity controlling entry access to a residential development.

Electronically controlled key pad system means a restricted entry access system which functions in such a way that it allows or permits entry access only after depressing keys or push buttons and requires the use of no other equipment of any kind, including but not limited to, keys or cards.

Emergency access code is a sequence of one (1) or more alphabetic or numeric characters assigned at the sole discretion of the access controller for the purpose of complying with this article.

Residential development means any multi-unit development used for residential purposes and shall include apartment houses, condominiums, townhouses, mobile home parks, single-family residences, multifamily residences, planned unit developments, or any other residential development.

Restricted entry access system means any device or system of devices which control or restrict entry access to a residential development. The term restricted entry access system as used herein does not include a system serving only one (1) dwelling unit.
(Ord. No. 84636, § 1, 8-29-96)

Sec. 25-82. Permit requirement.

The access controller may not restrict entry access to any residential development without first having submitted a completed application for a restricted entry access permit.
(Ord. No. 84636, § 1, 8-29-96)

Sec. 25-83. Electronically controlled key pad system requirement.

Where entry access to residential developments is restricted by the use of a restricted entry access system, access must be available through an electronically controlled key pad system or staffed twenty-four (24) hours a day through at least one (1) entrance to the residential development. Other entry access systems functioning simultaneously with an electronically controlled key pad system are permitted. Each entrance served by an electronically controlled key pad system must allow access through entry of the same emergency access code.
(Ord. No. 84636, § 1, 8-29-96)

Sec. 25-84. Compliance term.

Access controllers who, on the effective date of this article, restrict entry access to a residential development under their control by a means of either an electronically controlled key pad system or other restricted entry access system must bring such residential developments into compliance with this ordinance no later than one (1) year from the effective date of this article. An access controller installing a restricted entry access system after the effective date of this article shall submit an application to the police department alarm unit at least fourteen (14) days before entry access is restricted by such system. In addition, the access controller must specify the date on which the new emergency access code will become effective; such date shall not be less than fourteen (14) days after the date on which notice is provided. Fifteen (15) days after submission of a permit application, the access controller may restrict access to the residential development unless it receives notice under section 25-88(d) that its application has been denied.
(Ord. No. 84636, § 1, 8-29-96)

Sec. 25-85. Reporting code.

The access controller who controls restricted entry access to residential developments by means of any electronically controlled key pad system shall report the emergency access code to such system to the police department alarm unit prior to the granting of a permit for such system. In addition, access controllers must provide written operating instructions for each electronically controlled key pad system.
(Ord. No. 84636, § 1, 8-29-96)

Sec. 25-86. Emergency access code changes.

(a) Access controllers who restrict entry access to residential developments by means of any electronically controlled key pad system shall not change the emergency access code reported to the police department alarm unit without first giving

at least two (2) working days' written notice of the new emergency access code to the police department alarm unit. In addition, the access controller must specify the date on which the new emergency access code will become effective; such date shall not be less than two (2) days after the date on which notice is provided.

(b) An access controller may change the emergency access code without prior notice to the police department alarm unit in the event there is an emergency arising from a threat to the health or safety of individuals in or near the residential development or to the personal or real property of individuals in or near the residential development. An access controller who does so must provide written notice to the police department alarm unit not later than the next business day following the code change.
(Ord. No. 84636, § 1, 8-29-96)

Sec. 25-87. Maintenance of restricted entry access system.

An access controller restricting access to a residential development by means of an electronically controlled key pad system shall utilize its best efforts to keep the restricted entry access system in good working order. During any period in which such system is malfunctioning, entry access may not be restricted unless there is an alternate entrance to the residential development which is controlled by an electronically controlled key pad system and the emergency access code to the alternative restricted entry access system has been provided to the police department alarm unit.
(Ord. No. 84636, § 1, 8-29-96)

Sec. 25-88. Permit application.

(a) An access controller shall make application for a restricted entry access permit to the police department alarm unit. Such application shall state:

(1) The name, address and telephone number (if applicable) of the residential development to which access is restricted;

(2) The name, address and telephone number of the access controller (of the residential development or any association governing the residential development) and the name, address and telephone number of the access controller's authorized agent, if different from the access controller;

(3) The name, address and telephone number of the local contact person for the access controller;

(4) The name, address and telephone number of another person who may be contacted in the case of an emergency;

(5) Each of the street addresses within the residential development, whether designating improved or unimproved property;

(6) The location of each restricted entry access system and the manner in which access is restricted;

(7) If the system is an electronically controlled key pad system erected prior the effective date of this article, the emergency access code for such system in effect at the time of application; and

(8) If the system is an electronically controlled key pad system erected after the effective date of this article, the emergency access code for such system and the date the emergency access code for such system would be in effect.

(b) Upon submission of a completed application, the police department alarm unit shall issue a restricted entry access permit to the applicant within the fourteen-day period referred to in section 25-84.

(c) If any material information on the application changes after submission of the original application, the access controller shall provide written notice of the change to the police department alarm unit within fourteen (14) days of the occurrence. Material changes requiring notification include, but are not limited to, the addition of street addresses to a residential development or the change of street address within a residential development.

(d) Within fourteen (14) days after submission of a permit application, the police department alarm unit shall either issue a restricted entry

access permit to the applicant or notify the applicant that the application has been denied, stating the reason for the denial.

(e) The application must include instructions for each applicable electronically controlled key pad system for an entrance to the residential development and a permit fee of fifty dollars ($50.00) for each restricted entry access system.

(f) It shall be unlawful for any person to intentionally make a false or misleading representation while applying for a permit under this section. A person who does so shall, upon conviction, be punished by a fine of not less than two hundred dollars ($200.00) nor more than five hundred dollars ($500.00).
(Ord. No. 84636, § 1, 8-29-96)

Sec. 25-89. Notice.

Unless otherwise indicated, for purposes of this article, notice shall be deemed to have been provided when:

(1) It is deposited in the United States Mail, certified mail, return receipt requested;

(2) Hand delivered with a signed receipt; or

(3) Delivered via facsimile transmission with a transmittal receipt with a copy sent by regular mail.

(Ord. No. 84636, § 1, 8-29-96)

Sec. 25-90. Penalties.

(a) *Violations.* Unless otherwise provided, the failure to adhere to any of the provisions of this article shall constitute a civil offense.

(b) *Notice.* A citation alleging such a violation shall be issued by a police officer, served on the access controller, and shall provide the time and place of an administrative hearing to be held before the chief of police or his designee. Such hearing shall be held not earlier than ten (10) days from the issuance of the citation.

(c) *Right to cure.* It is an affirmative defense to a violation of this article involving an electrical, electronic, hardware or mechanical failure of a restricted entry access system that such system was repaired within seventy-two (72) hours of the issuance of the citation or that entry access was not restricted for more than seventy-two (72) hours from the issuance of a citation.

(d) *Hearing.* At the administrative hearing, witnesses may be called by either party. The failure of any person charged with a violation to appear at the hearing shall be an admission of liability of the charged violation. The chief of police or his designee shall issue a written order stating whether or not the person charged is liable for the violation and the amount of any fine. The order shall be filed with the municipal court director.

(e) *Fines.* The total fine for an offense shall not exceed five hundred dollars ($500.00); however, no fine or penalty may be imposed for a violation where there was no finding of liability for violation of this article on a separate occasion during the twelve-month period preceding the date of the issuance of the citation. Failure to comply with the order of the chief of police or his designee within thirty (30) days from the date the order is filed shall constitute a separate offense; payment of any fine or imposition of any penalty shall be abated during the pendency of any appeal.

(f) *Enforcement.* In the event the access controller fails to appeal or comply with the order of the chief of police or his designee within thirty (30) days of the date the order is filed, the order may be enforced by:

(1) The imposition of an additional fine not to exceed five hundred dollars ($500.00); and/or

(2) The revocation of the restricted entry access permit.

(g) *Appeal.* A person determined by the chief of police or his designee to be in violation of this article may appeal the decision to a hearing officer, who shall be appointed by the city manager, by filing a written appeal with the municipal court director not later than thirty (30) days after the order is filed and by paying a five dollar ($5.00) appeal filing fee. The hearing officer shall set the time and place of the appeal hearing. Such hearing shall not be held earlier than ten (10) days from the date notice of the time and place of the appeal hearing is delivered to the access

controller. The municipal court director shall establish a written body of administrative procedures for appeals.

(h) *Appeal hearing.* The appeal hearing shall be a hearing de novo. Witnesses may be called by either party. The failure of the appellant to appear at the appeal hearing shall be an admission of liability for the charged violation. The hearing examiner shall issue a written appeal order stating whether or not the person charged is liable for the violation and the amount of any fine. The appeal order shall be filed with the municipal court director. The failure to comply with the appeal order within thirty (30) days shall constitute a separate offense.

(i) *Enforcement of appeal order.* In the event the access controller fails to comply with the appeal order within thirty (30) days from the date the appeal order is filed, the appeal order may be enforced by:

(1) The imposition of an additional fine not to exceed five hundred dollars ($500.00); and/or

(2) The revocation of the restricted entry access permit.

(Ord. No. 84636, § 1, 8-29-96)

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Chapter 26

POLLUTION CONTROL*

Article I. In General

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Article II. Air Pollution

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Sec. 26-18. Registration required; fee; penalty.
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Article III. Green Events Certification

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Article IV. Coal Tar Sealant Pavement Products

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*__Cross references—__Health generally, § 15-1 et seq.; sewers and sewage disposal, § 34-146 et seq.

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ARTICLE I. IN GENERAL

Secs. 26-1—26-15. Reserved.

ARTICLE II. AIR POLLUTION*

Sec. 26-16. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Air contaminant means particulate matter, radioactive material, dust, fumes, gas, mist, smoke, vapor, odor, including any combination of those items, produced by processes other than natural.

Air pollution means the presence in the atmosphere of one or more air contaminants or combination of air contaminants in such concentration and of such duration that: (A) are or may tend to be injurious to or to adversely affect human health or welfare, animal life, vegetation, or property; or (B) interfere with the normal use or enjoyment of animal life, vegetation, or property.

City means the City of San Antonio, Texas.

Current registration means a current and valid registration issued under this article.

Department means the health department of the city also known as the San Antonio Metropolitan Health District.

Director means the director of the health department of the city or designee.

Facility means a business location with one or more discrete or identifiable structure, device, item, equipment, or enclosure that constitutes or contains a stationary source, including appurtenances other than emission control equipment. A mine, quarry, well test, or road is not considered to be a facility.

Person means an individual, corporation, organization, governmental subdivision or agency, business trust, partnership, association, or any other legal entity.

Source means a point of origin of air contaminants, whether privately or publicly owned or operated.
(Ord. No. 2015-11-19-0967, § 2, 11-19-15)

Sec. 26-17. Rules and regulations of Texas Commission on Environmental Quality (TCEQ) and the Texas Clean Air Act, Chapter 382 of the Texas Health and Safety Code adopted by reference.

The Texas Clean Air Act, V.T.C.A., Health and Safety Code ch. 382, and rules and regulations of the Texas Commission on Environmental Quality (TCEQ) thereto, are incorporated herein by reference and are hereby adopted as rules and regulations for the control of air pollution within the city.
(Ord. No. 2015-11-19-0967, § 2, 11-19-15)

Sec. 26-18. Registration required; fee; penalty.

A business facility located within the city that is a source of air pollution is required to register with the department. A registration fee of three hundred dollars ($300.00) per year is required for each facility. The fee shall be payable in advance on an annual basis with October 1st being the first day of each registration year and is non-refundable. The department may prorate the initial registration fee based on the date of registration. The department shall issue a receipt on a form to be prepared for that purpose. Facilities that are owned and operated by a governmental entity shall be exempt from payment of the fees but shall be registered. It shall

*__Editor's note—__Ord. No. 2015-11-19-0967, § 2, adopted November 19, 2015, amended article II in its entirety to read as herein set out. Formerly, article II, §§ 26-16—26-21, pertained to similar subject matter, and derived from the Code of 1959, §§ 3A-1—3A-5; Ord. No. 55812, § 4, adopted September 16, 1982; Ord. No. 63231, § 2, adopted July 16, 1986; Ord. No. 67911, § 16, adopted September 15, 1988; Ord. No. 94584, § 24, adopted September 20, 2001; Ord. No. 98187, § 19, adopted September 18, 2003, and Ord. No. 2008-09-11-0777C, § 4, adopted September 11, 2008.

be unlawful for any person to operate or cause to be operated any business facility unless there is current registration for the facility.
(Ord. No. 2015-11-19-0967, § 2, 11-19-15; Ord. No. 2025-09-18-0629, § 2(Att. D), 9-18-25)

Sec. 26-19. Legal staff authorized to seek injunctive relief, etc.

The legal staff of the city, without regard to prosecutions in municipal court, is authorized to seek injunctive relief to prevent any further violation or seek court order for the assessment of a penalty for each day such violation continues, as the court may deem proper, or for both injunctive relief and penalty. The legal staff of the city shall seek to prosecute and enjoin violations in a court of appropriate jurisdiction by working with and through the state attorney general or such other legal staff of the Texas Commission on Environmental Quality as may request such action.
(Ord. No. 2015-11-19-0967, § 2, 11-19-15)

Sec. 26-20. Penalty for violations.

The operation, within the city, of a business facility that is a source of air pollution which is not registered with the department is hereby declared to be unlawful and punishable in accordance with section 1-5.
(Ord. No. 2015-11-19-0967, § 2, 11-19-15)

Secs. 26-21—26-29. Reserved.

ARTICLE III. GREEN EVENTS CERTIFICATION

Sec. 26-30. Definitions.

For this article, the following definitions shall apply, unless the context clearly indicates otherwise:

Certification holder shall mean a person issued a green event certification pursuant to this article.

City manager shall mean the city manager of the City of San Antonio or designated representative.

City-owned property shall mean all facilities, parks, and other real property owned or controlled by the city.

Director shall mean the director of the office of sustainability or designated representative.

Event shall mean any organized gathering of individuals.

Green event certification shall mean an event that has received certification as green because of the resource conservation measures that will be employed during the event and the subsequent reduction of waste, energy and materials consumption.

Green event facility shall mean a building or facility that has been previously certified by design and best management practices as a green event compliant venue. If the building or facility capacity is under two thousand (2,000) occupants a certification level of "silver" or higher is required. If the building or facility capacity is two thousand (2,000) or more occupants, a certification level of "gold" or higher is required.

Green event scorecard shall mean the listing of measures that an event can utilize to obtain the various levels of compliance with this article, as developed and maintained by the OS. Each measure is assigned a number of points that can be combined toward achieving a certification level of silver, gold, platinum, and verde.

Large scale event shall mean an event with a total of two thousand (2,000) or more participants and support personnel.

Medium scale event shall mean an event with a total of one thousand (1,000) or more, but less than two thousand (2,000), participants and support personnel.

Mission Verde shall mean the sustainability resolution adopted and endorsed by the city.

OS shall mean the office of sustainability of the city.

Organize shall mean to arrange systematically as an individual or with a committee or group for harmonious or united action.

Person shall mean an individual, corporation (including a government corporation) organization, governmental subdivision or agency, federal agency, state, political subdivision of a state, interstate agency or body, business or business

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trust, partnership, association, firm, company, joint stock company, commission, or any other legal entity.
(Ord. No. 2010-04-08-0303, § 1, 4-8-10; Ord. No. 2016-04-14-0283, § 1, 4-14-16)

Sec. 26-31. Green event certification required.

(a) No person shall organize any medium or large scale event on city-owned property or requiring a right-of-way permit without having first obtained a green event certification. No person shall organize any medium or large scale event receiving city funding or sponsorship which is valued at half or greater of the total event costs without having first obtained a green event certification.

(b) All medium scale events at city-owned property or requiring a right of way permit must obtain a certification of "silver" or higher. All large scale events at city-owned property or requiring a right of way permit must obtain a certification of "gold" or higher. Events receiving city sponsorship which is valued at half or greater of the total event costs must obtain a certification of "platinum" or higher.

(c) Event venues can apply to the director for listing as certified green event facilities. Event organizers that are using the green event certified facilities would not need to complete the scorecard unless they wish to be recognized for higher levels of certification than the event facility includes.
(Ord. No. 2010-04-08-0303, § 1, 4-8-10)

Sec. 26-32. Exceptions.

This article shall not apply to:

(1) Events with less than a total of one thousand (1,000) participants and support personnel;

(2) Events and parades not providing or including food or beverages as a part of the event;

(3) Events held on city-owned property that is managed or operated for the city under a third party lease;

(4) Any event held at a green certified facility; or

(5) Any event that is held on private property and the event is not receiving city funding or sponsorship which is valued at half or greater of the total event costs.

(Ord. No. 2010-04-08-0303, § 1, 4-8-10)

Sec. 26-33. Standards for issuance of certification.

(a) The city shall uniformly treat each application in a just, fair, and nondiscriminatory manner bearing in mind that the objective of the green events policy is to target the reduction of waste, energy and materials consumption at events.

(b) A "green events planning guide" shall be developed by the OS and outline how to organize and coordinate a certifiable green event. The guide shall describe how to minimize and offset the impact of an event.

(c) The event organizers will complete a "green events scorecard" which shall be made available by the relevant city department controlling the facility, issuing the permit, or providing funding or sponsorship which is valued at half or greater of the total event costs. The "green events scorecard" will be submitted along with each city contract, permit application, or as otherwise required for events covered by the ordinance. The "green events scorecard" shall contain the various measures and practices available to qualify for the required point standards needed for certification for the applicable event.

(d) Event organizers will have the opportunity to purchase necessary certification points from OS by contributing to the "Mission Verde Offset Fund." Proceeds from the fund will go towards local environmental activities. The "Mission Verde Offset Fund" fees are fifty-five dollars ($55.00) per point for medium-scale events and seventy-five dollars ($75.00) per point for large-scale events. These amounts may be changed to fit future needs to reinforce effectiveness of this article. For example, an event with fifteen thousand (15,000) participants that requires a gold rating and chooses to do none of the scorecard items can pay an offset cost of four thousand five hundred dollars ($4,500.00) to the "Mission Verde

Offset Fund" to pay for local environmental activities such as tree plantings or energy conservation programs.

(e) Non-mandated events can voluntarily complete and submit a "green events scorecard" to the OS and contribute to the "Mission Verde Offset Fund" to purchase points needed for certification or to voluntarily provide support for local environmental programs. All events completing a scorecard will receive a "green event" rating to use in event advertising and publications.
(Ord. No. 2010-04-08-0303, § 1, 4-8-10; Ord. No. 2016-04-14-0283, § 1, 4-14-16)

Sec. 26-34. Application for certification.

(a) A person seeking issuance of a green event certification shall complete the "green events scorecard", develop and submit a recycling/waste plan, and file an application (including the green events scorecard and the recycling/waste plan) with the city on forms provided by the relevant department in charge of the facility, responsible for issuing the permit, or providing funding or sponsorship which is valued at half or greater of the total event costs. The recycling/waste plan is mandatory for all events, is subject to review and approval by the city, and must address:

(1) The number of recycling receptacles to trash receptacles - reflecting a 1:1 ratio of recycling receptacles to trash receptacles;

(2) Items to be recycled;

(3) Name of the trash and recycling haulers; and

(4) Outreach methods to reduce recycling contamination.

(b) An application for a green event certification shall be filed with the relevant department with the applicable contract or permit application.

(1) The application shall contain the following information:

a. The name and contact information of the person seeking to conduct the event;

b. Where the event is to be held for or by an entity, rather than an individual, the name, address, and telephone number of the entity and the name, address, and telephone number of the head of the entity;

c. Where the event is to be held by or for any person other than the applicant, documentation evidencing authority to make the application;

d. The name and contact information of the person who will be the event chairperson and who will be responsible for conducting the event;

e. The date the event will be conducted;

f. The location of the event;

g. The approximate number of persons who will participate in the event;

h. The time when the event will begin and end;

i. The purpose of the event; and

(2) Any other information which the director finds necessary to an evaluation of the request under the standards for issuance set forth in section 26-33. If any of the above required information is included on the standard application form for the permit or contract required by the relevant city department or otherwise filed and available to the city for enforcement of this article, the information does not have to be duplicated for the "green event scorecard."
(Ord. No. 2010-04-08-0303, § 1, 4-8-10; Ord. No. 2016-04-14-0283, § 1, 4-14-16)

Sec. 26-35. Notice of rejection; appeal.

(a) The relevant city department shall act upon the application for a certification within five (5) calendar days after it has been filed with the required permit application or contract. If the relevant city department does not approve the application, they shall mail, by e-mail if an address is provided, or by certified mail/return receipt requested, to the applicant, within ten

(10) calendar days after the date upon which the application was filed, a notice of their action, stating the reason for the denial of a permit.

(b) The applicant shall have the right to appeal a denial of a certification to the director by filing notice of appeal with the city clerk within seven (7) calendar days after receipt of the notice provided above. The appeal shall be heard within ten (10) calendar days of the filing of the appeal. The director or the director's designee shall hear the appeal as soon as practicable. The decision of the director or the designee is final.
(Ord. No. 2010-04-08-0303, § 1, 4-8-10)

Sec. 26-36. Duties and costs to be paid by certification holder.

(a) Each certification holder shall comply with all requirements of this article, the "green event scorecard", the certification directions and conditions, the requirements of the contract or permit issued by the relevant department and with all applicable laws and ordinances. The certification holder shall attest no later than thirty (30) days after the event is completed that they have complied with all the measures on the "green events scorecard" which they proposed to implement to obtain the certification.

(b) The director shall create written standard procedures to be used by relevant city departments for issuance of certifications, enforcement, and the evaluation and assessment of facilities and events in conformity with this section. City staff will conduct periodic random checks of events that have received certification to verify compliance with this article.

(c) If an applicant owes fees not timely paid in connection with an event previously approved and conducted, the applicant shall, prior to approval of the application for a certification, pay these fees.
(Ord. No. 2010-04-08-0303, § 1, 4-8-10)

Sec. 26-37. Revocation of certification.

The director shall have the authority to revoke a certification issued pursuant to this article when the conditions supporting the findings made by the relevant city department pursuant to section 26-33 change in such a way, prior to the date on which the event is to be held, that a certification would not otherwise be issued.
(Ord. No. 2010-04-08-0303, § 1, 4-8-10)

Sec. 26-38. Penalty for violation.

The violation of any of the rules and regulations set forth in this article is hereby declared to be unlawful and punishable in accordance with section 1-5.
(Ord. No. 2010-04-08-0303, § 1, 4-8-10)

Sec. 26-39. Reserved.

ARTICLE IV. COAL TAR SEALANT PAVEMENT PRODUCTS*

Sec. 26-40. Definitions.

Except as may otherwise be provided or clearly implied by context, all terms shall be given their commonly accepted definitions. For the purpose of this article, the following definitions shall apply unless the context clearly indicates or requires a different meaning:

Asphalt based sealer means a petroleum based sealer material that is commonly used on driveways, parking lots, and other surfaces and does not contain polycyclic aromatic hydrocarbons.

City means the City of San Antonio, Texas.

Coal tar means a byproduct of the process used to manufacture steel.

Coal tar sealant pavement product means a material that contains coal tar and is for use on asphalt or concrete surfaces including a driveway or parking lot. These surface applied sealing products contain coal tar, coal tar pitch, coal tar pitch volatiles, or any variation assigned the Chemical Abstracts Service (CAS) numbers 65996-93-2, 65996-89-6, or 8007-45-2.

*__Editor's note__—Ord. No. 2016-06-30-0518, § 14, adopted June 30, 2016, states that the penalty provisions of this article shall be effective January 1, 2017.

Director means the director of the Transportation and Capital Improvements Department of the City of San Antonio.

Polycyclic aromatic hydrocarbons means a group of organic chemicals formed during the incomplete burning of coal, oil, gas, or other organic substances. Present in coal tar and believed harmful to humans, fish, and other aquatic life.
(Ord. No. 2016-06-30-0518, § 4, 6-30-16)

Sec. 26-41. Prohibitions.

(a) No person shall apply a coal tar sealant product within the City of San Antonio.

(b) No person shall allow a coal tar sealant product to be applied upon property that is under that person's ownership or control.

(c) No person shall contract with any commercial sealer product applicator, residential or commercial developer, or any other person for the application of any coal tar sealant product to any driveway, parking lot, or other surface within the city.

(d) No commercial sealer product applicator, residential or commercial developer, or other similar individual or organization shall direct any employee, independent contractor, volunteer, or other person to apply any coal tar sealant product to any driveway, parking lot, or other surface within the city.
(Ord. No. 2016-06-30-0518, § 4, 6-30-16)

Sec. 26-42. Reserved.

Sec. 26-43. Asphalt-based sealcoat products.

The provisions of this article shall only apply to coal tar sealant products and shall not affect the use of asphalt based sealant products within the city.
(Ord. No. 2016-06-30-0518, § 4, 6-30-16)

Sec. 26-44. Enforcement and penalty.

(a) All officials duly authorized, including but not limited to peace officers of the state, and those authorized by statute to issue citations for class C criminal misdemeanors, may assist the city in enforcement of this article.

(b) The city shall request that the San Antonio Water System assist in enforcement of this article. The directors of the departments of transportation and capital improvements, the metropolitan health district and development services are hereby authorized to designate trained personnel to enforce this article in the manner and to the extent allowed by law, including, but not limited to, filing complaints with the city municipal prosecutor's office for such violations, serving notices of violations of this article and filing civil enforcement actions, in coordination with the office of the city attorney, the municipal courts, and the police department.

(c) Each person suspected to be in violation of this article shall allow, during normal business hours, an authorized representative or representatives of the city to conduct an inspection of their place of business for purposes of determining compliance with this article.

(d) Nothing in this section shall limit any and all other criminal, civil or administrative remedies available to the city in seeking to enforce the provisions of this article. The city attorney's office is hereby empowered to secure injunctive relief to enforce the provisions of this article. This shall be in addition to, and not in lieu of, the criminal penalties provided for in this article.
(Ord. No. 2016-06-30-0518, § 4, 6-30-16)

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Chapter 27

RAILROADS*

Sec. 27-1. Tampering with railroad facilities.

It shall be unlawful for any person, in any way, to tamper with, damage or destroy any railroad track or appurtenance, or any bridge, viaduct, trestle or culvert structure supporting a railroad track or any appurtenance thereto, or any signal system or appurtenances thereto, telegraph line, telephone line, power line or signal system line maintained or operated as a railroad facility, whether located upon privately-owned property used for the maintenance and operation of railroad tracks, or located within the limits of any public highway, roadway, street, alleyway or walkway dedicated for public use within the city.
(Code 1950, § 46-10; Code 1959, § 33-1)

Sec. 27-2. Whistles.

It shall be unlawful for any person to sound a steam whistle, or an air whistle, or an air siren on any locomotive in the city except in the following instances:

(1) When a person or an animal is discovered in a position of peril, at which time an alarm signal may be sounded by successive blasts of a whistle, each not longer than two seconds' duration, until the peril is past; and

(2) When the locomotive is approaching an interlocking switch and signal apparatus, at which time a whistle signal may be used by blasts of a whistle, each not longer than three seconds' duration.

(Code 1950, § 46-5; Code 1959, § 33-2)

State law reference—State requirements generally, Vernon's Ann. Civ. St. art. 6371.

Sec. 27-3. Flagmen required at crossings.

Every railroad company shall station and maintain a flagman at such of its crossings as may be indicated by resolution of the city.
(Code 1950, § 46-19; Code 1959, § 33-4)

State law reference—Similar provisions, Vernon's Ann. Civ. St. art. 6371.

Sec. 27-4. Failure to obey flagman's signals.

It shall be unlawful for any person, either on foot or on horseback, to fail or refuse to stop when flagged or signaled so to do by any flagman or watchman at any point within the city where a railroad crosses a street of the city.
(Code 1950, § 46-20; Code 1959, § 33-5)

State law reference—Similar provisions, Vernon's Ann. Civ. St. art. 6701d, § 86.

Sec. 27-5. Maintenance of roadbed and other property.

It shall be the duty of every railroad corporation which has a track in the city to keep its roadbed, street crossings, culverts, switches and drainage in good repair.
(Code 1950, § 46-18; Code 1959, § 33-6)

Sec. 27-6. How crossings to be constructed.

(a) Whenever a street or road crosses the track of any railroad at grade, within the city, such crossing shall be planked level with the tops of the rails, and extended to the ends of the ties. The planks shall be not less than three (3) inches thick, and laid close, so as to form a smooth and even surface.

(b) All crossings shall be at least two-thirds of the width of the streets, and at the crossing of all

*Charter reference—Authority of city to regulate the laying of tracks, § 3, Par. 13(12).
Cross reference—Motor vehicles and traffic, § 19-1 et seq.
State law reference—Restrictions, duties and liabilities of railroads, Vernon's Ann. Civ. St. art. 6354 et seq.

streets where curb and sidewalks have been laid, the planking is to be extended the full width of the street.
(Code 1950, § 46-21; Code 1959, § 33-7)

Sec. 27-7. Grading approaches to tracks.

Whenever it is necessary to grade approaches to the track, such grade shall be not more than five (5) percent. Suitable provisions shall be made in all cases to carry off drainage which would otherwise be impeded by such approaches.
(Code 1950, § 46-22; Code 1959, § 33-8)

Sec. 27-8. When gates required.

Whenever it shall be directed by the city council so to do, each railway company operating its trains and having its tracks within the city shall erect and maintain, on all street crossings over and along which their tracks are laid, the latest improved railway crossing gates, and shall have such gates erected within ninety (90) days from the date of the passage of the council's order or resolution.
(Code 1950, § 46-23; Code 1959, § 33-9)

Sec. 27-9. Failure to provide gates.

Any officer, agent or employee of any railway company operating any line of railway, or propelling or moving any train, car or locomotive over and along any street crossing not provided with crossing gates, as provided for in section 27-8 shall be guilty of a misdemeanor.
(Code 1950, § 46-24; Code 1959, § 33-10)

Sec. 27-10. Lights at crossings.

(a) *Required.* It shall be the duty of every railway company operating a railway in the city to provide lights at the crossings of their respective railways with the streets of the city when notified to do so.

(b) *Notice to provide.* The notice to railway companies to provide lights at the crossings of their respective railways with the streets of the city shall be by resolution of the city council, duly passed by that body, and served on the agent or representative of the company, corporation or association. The resolution shall state the places or crossings to be lighted and the time the lights shall burn. A copy of the resolution, certified to by the city clerk, shall be served on such company by registered mail.
(Code 1950, §§ 46-25, 46-26; Code 1959, §§ 33-11, 33-12)

Sec. 27-11. Summons for violations of chapter.

Whenever a complaint is made and filed in the municipal court that any railroad company has violated the provisions of this chapter, it shall be the duty of the court to immediately issue and deliver to any policeman a citation, commanding the officer to summon the company, corporation or association to answer the complaint at some stated time in the municipal court, after service thereof.
(Code 1950, § 46-27; Code 1959, § 33-13)

Sec. 27-12. Service of summons and trial.

It shall be the duty of the officer to whom a citation shall be delivered to forthwith serve a copy thereof upon the local agent or representative, and to make his written return thereon, showing how he has executed the same, and thereupon to cause the same to be filed with the papers in the case. When service has been effected, the prosecution shall stand for trial, and be tried before the judge of the municipal court in like manner as other prosecutions.
(Code 1950, § 46-28; Code 1959, § 33-14)

Sec. 27-13. Judgment; levy for nonpayment of fine and costs.

If, upon the trial of a complaint, the company shall be found guilty, judgment shall be duly entered against it for the amount of the fine assessed, together with the costs of prosecution, and if defendant shall fail to pay the same within ten (10) days from the rendition of the judgment, then it shall be the duty of the clerk of the municipal court to issue a writ of fieri facias for the amount of such fine and costs, directed to any policeman of the city, commanding such officer forthwith to levy the same upon the goods and chattels, lands, tenements and effects of the defendant within the city for the satisfaction thereof.
(Code 1950, § 46-29; Code 1959, § 33-15)

Sec. 27-14. Form of writ authorizing levy.

A writ of fieri facias issued pursuant to this chapter shall conform as nearly as may be to writs issued in civil cases under the laws of the state, and shall be attested by the city clerk under the seal of the municipal court.
(Code 1950, § 46-30; Code 1959, § 33-16)

Sec. 27-15. How writ to be executed.

It shall be the duty of the officer to whom a writ of fieri facias is delivered to forthwith proceed to levy and collect the amounts therein directed, and in all his proceedings thereunder shall conform as nearly as may be to the laws of the state relating to levy and satisfaction of executions in civil cases.
(Code 1950, § 46-31; Code 1959, § 33-17)

Sec. 27-16. Speed of trains generally.

It shall be unlawful for any engineer or other person in charge of any locomotive, train, motor car or other vehicle for the transportation of freight or passengers, by railroad, to run the same onto any street crossing within the corporate limits of this city at a greater speed than twenty (20) miles per hour, except upon the portions of the railroad lines as provided in section 27-17 hereof. Where no streets are crossed by the railroad line, train speed on that line is not restricted by the city.
(Code 1959, § 33-18; Ord. No. 36307, § 1, 3-7-68)

Sec. 27-17. Speed limit in specific locations.

Upon the portions of the railroad lines set out in this section, the maximum speed authorized for any train or vehicle, operated on rails, entering any street crossing is as follows:

(1) *Upon the Missouri Kansas Texas Railroad Line.*

a. From north city limits to Loop 410 ..... 60 m.p.h.
b. From Loop 410 to Hoefgen St. ..... 45 m.p.h.
c. From Hoefgen St. to S. Alamo St. ..... 30 m.p.h.
d. From S. Alamo St. to Durango Blvd. ..... 20 m.p.h.

(2) *Upon the Missouri Pacific Railroad Line.* (Laredo to Palestine Line)

a. From south city limits to Taft St. ..... 45 m.p.h.
b. From Taft St. to Ceralvo St. 40 m.p.h.
c. From Ceralvo St. to Russell St. ..... 30 m.p.h.
d. From Russell St. to Norwood St. ..... 40 m.p.h.
e. From Norwood St. to Loop 410 ..... 45 m.p.h.
f. From Loop 410 to north city limits ..... 60 m.p.h.

(3) *Upon the Missouri Pacific Railroad Line.* (San Antonio to Corpus Christi Line)

a. From south city limit to Quintana Rd. ..... 45 m.p.h.

(4) *Upon the Southern Pacific Railroad Line.*

a. From the M.K.T. Railroad crossing to Pine St. ..... 40 m.p.h.
b. From Pine St. to Probandt St. ..... 30 m.p.h.
c. From Probandt St. to Brady St. ..... 40 m.p.h.
d. From Brady St. to south city limits ..... 45 m.p.h.

(5) *Upon the Southern Pacific Railroad Line.* (Kerrville Branch)

a. From Southern Pacific Main Line to Loop 410 ..... 20 m.p.h.
b. From Loop 410 to north city limits ..... 30 m.p.h.

(6) *Upon the Southern Pacific Railroad Line.* (Corpus Christi Line)

a. From Southern Pacific Line to S.E. Military Dr. ..... 20 m.p.h.
b. From S.E. Military Dr. to south city limits ..... 30 m.p.h.

(Code 1959, § 33-19; Ord. No. 36307, § 2, 3-7-68)

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CODE

CITY OF

SAN ANTONIO, TEXAS

VOLUME II

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Chapter 28

SIGNS*

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***Editor's note—**Ord. No. 2017-05-04-0297, § 1(Att. 1), adopted May 4, 2017, amended chapter 28 in its entirety to read as herein set out. Formerly, chapter 28, articles I—IX, pertained to similar subject matter. See the Code Comparative Table for a complete derivation.

State law reference—Authority of city to regulate, control or prohibit the erection of signs or billboards, Vernon's Ann. Civ. St. art. 1175(24).

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ARTICLE I. IN GENERAL

Sec. 28-1. Short title.

This chapter may be referred to as the "Sign code for San Antonio." See also chapter 10, Building-related code, articles I, II, III, VI and XII.
(Ord. No. 2017-05-04-0297, § 1(Att. 1), 5-4-17)

Sec. 28-2. Legislative findings; intent.

(a) It is the intention that this chapter be liberally construed to cover advances in technology and its impact on city interests in aesthetics and traffic safety not contemplated at its inception.

(b) Throughout this chapter, subsections prefaced "commentary" have been inserted below individual sections of the text. Each commentary is intended as an official statement of legislative finding or purpose. Whenever a section or subsection is deemed to require clarification, explanation of intent, or further elaboration, a commentary has been included. These commentaries have been legislatively adopted together with the more formal text of the chapter. They are intended as a guide to the administration and interpretation of the chapter and shall be treated in that fashion.

(c) This chapter constitutes a baseline for regulatory compliance involving signs. Placement of such signs advertising commercial and non-commercial messages must therefore comply with reasonable time, place and manner regulations found in this chapter. In case of conflict, specific governs general language. Unless specifically stated otherwise or is clear from the context, this chapter will control.

(d) The city, through appropriate staff and stakeholder commentary, shall review and recommend amendments to sign regulations with such review to coincide with the Unified Development Code technical code updates as noted in section 35-111 and its corresponding city schedule.
(Ord. No. 2017-05-04-0297, § 1(Att. 1), 5-4-17)

Sec. 28-3. Purpose.

(a) To provide minimum standards to protect the life, health, safety, property, welfare, convenience and enjoyment of the general public by regulating and controlling the design, quality of materials, construction, erection, location, electrification, lighting, use, maintenance and safe transportation of all signs and sign structures as well as confirm that all sign operators are properly licensed, insured, and bonded.

(b) To make San Antonio safer by eliminating or reducing safety hazards, contribute to the development and maintenance of an attractive visual environment while facilitating message communication to the public.

(c) To protect the safety and efficiency of the city's transportation network by reducing confusion or distractions to motorists and enhancing motorists' ability to see and react.

(d) To ensure safe construction and minimizing potential hazards or obstructions to access and views by requiring all signs to conform to erection and maintenance regulations.

(e) To preserve, protect and enhance aesthetic and economic/property values by establishing height, size, light and movement requirements.

(f) To preserve, protect and enhance the image and attractiveness of the city for its citizens and visitors through identification of the special character and economic advantages of its subareas.

(g) Preserve and enhance visitor impression of the city by restricting off premises sign construction.

(h) Preserve, protect and improve quality of life, which although difficult to define, is possibly the city's most valuable resource.
(Ord. No. 2017-05-04-0297, § 1(Att. 1), 5-4-17)

ARTICLE II. ADMINISTRATION AND PROCEDURES

Sec. 28-4. In general.

This chapter establishes a legal framework for sign regulation within the jurisdiction.

(1) *Public considerations.* No sign or related structure shall be approved or erected in

contravention to public life, health, safety and welfare considerations as outlined below and a sign or related structure so constructed constitutes a violation of this chapter:

a. Signs erected which obstruct the view of the operators of motor vehicles on public streets or entering such streets from private property.

b. Signs erected or in the process of being erected constituting a public hazard or an obstruction to building egress, such as a window or door.

c. Signs supported on or attached to any fire escape, door, or window casing.

d. Signs with damage, deterioration or other defects constituting a hazard to public life, health, safety and welfare.

e. Revolving beam or beacon of light resembling any emergency vehicle light and signs resembling traffic control signs.

f. Signs which encroach or project over city public property or right-of-way except as expressly authorized in this chapter.

g. Portable signs except as expressly authorized in this chapter.

h. Digital display signs configured to resemble a warning or danger signal or are otherwise easily confusable with a warning or danger signal.

i. Digital display signs resembling or simulating any lights or official signage used to control traffic in accordance with the 2003 Manual on Uniform Traffic Control Devices, with Revision No. 1 published by the Federal Highway Administration (FHWA).

j. Signs emitting excessive luminance.

(2) *City authority.* Any purported city authorization to erect a sign in violation of subsection (1) above is invalid and is automatically rescinded. Nothing herein shall be construed so as to restrict or prohibit lawful sign erection in compliance with this chapter. The city is authorized to evaluate and alleviate the life, safety, health and welfare concern of a sign or related structure 1) constructed; 2) in the process of being constructed; 3) damaged; or 4) otherwise deteriorated; - all so as to present a clear and present danger to the public by any reasonable means necessary under the circumstances then existing as a valid exercise of its police powers. Costs associated with alleviating the sign or related structure shall be forwarded to the sign owner for immediate remittance.

(Ord. No. 2017-05-04-0297, § 1(Att. 1), 5-4-17)

Sec. 28-5. Jurisdiction, enforcement and appeals.

(a) *Jurisdiction.* The provisions of this chapter shall be applicable to the entire area within the corporate limits of the city and in the extraterritorial jurisdiction (ETJ) of the city as defined in the Municipal Annexation Act.

(b) *Enforcement.* Enforcement shall be made by departments of development services, police, or other departments designated by the city manager against any violator of any provision of this chapter. As a condition precedent for the lawful erection and continued erection and maintenance of signs within its jurisdiction, city staff shall have the right to enter into the property wherein said sign is displayed or erected or to be erected, during reasonable working hours, for inspection and/or other health and safety regulatory purposes. Failure to permit city staff entry to the premises and/or to conduct a lawful investigation, or any obstruction thereof, will result in immediate termination of any existing permit and/or permission to lawfully display, erect or maintain said sign. The sign owner or operator must file a written appeal of such termination to the building-related and fire codes appeals and advisory board within ten (10) days of notice of the same being mailed to the sign-owner and/or operator prior to any other

administrative or legal action taken by the sign owner and/or operator. A proper and timely filed appeal shall be heard by the building-related and fire codes appeals and advisory board as mandated by chapter 10 of the City Code and termination is tolled pending the outcome. This procedure applies to all pre-existing signs erected, maintained and displayed within the city. This provision may be enforced by the city, using all civil, administrative and/or criminal procedures and remedies available; the election of one means does not preclude enforcement by another.

(c) *Duties and powers of the director.*

(1) *In general.* The director is authorized and directed to enforce the provisions of this chapter. The director has the authority to render interpretations of this chapter and to adopt policies and procedures in order to clarify the application of its provisions. Such interpretations, policies and procedures shall be in accordance with the intent and purpose of this chapter. Such policies and procedures shall not have the effect of waiving requirements specifically provided for in this chapter. The director shall have the power to suspend or revoke city issued certificates of license and registration as detailed in this chapter.

(2) *Application and permits.* The director and designees shall receive applications, review construction documents and issue permits for the erection, repair, alteration, addition, demolition, and relocation of sign structures, inspect the premises for which such permits have been issued and enforce compliance with the provisions of this chapter.

(3) *Notices and orders.* The director and designees shall issue all necessary notices or orders to ensure compliance with the provisions with this chapter.

(4) *Inspections.* The director and designees shall make all of the required inspections, or may accept reports of inspection by approved agencies or individuals. Reports of such inspections shall be in writing and certified by a responsible officer of such approved agency or by the responsible individual. The director is authorized to engage such expert opinion as deemed necessary to report upon unusual technical issues that arise, subject to the approval of the appointing authority.

(5) *Identification.* The director and designees shall carry proper identification when inspecting structures or premises in the performance of duties under this chapter.

(6) *Impersonation prohibited.* A person shall not impersonate the director or designees through the use of a uniform, identification card, badge or any other means. Any such impersonation is a violation of this chapter.

(7) *Notice of defects.* The director and designees shall examine, or cause to be examined, every building or structure or portion thereof reported as dangerous or damaged.

(8) *Department records.* The director and designees shall keep official records of applications received, permits and certificates issued, fees collected, reports of inspections, and notices and orders issued. Such records are retained in the official records for the period required for retention of public records.

(9) *Liability.* The director, members and alternate members of the building-related and fire codes board of appeals, or employees charged with enforcement of this chapter, while acting for the city in good faith and without malice in the discharge of the duties required by this chapter or other pertinent law or ordinance, are not civilly or criminally rendered liable personally and are relieved from personal liability for any damage accruing to persons or property as a result of any act, or by reason of an act or omission in the discharge of official duties. Any suit or criminal complaint instituted against an officer or employee because of an act performed by that officer or employee in the lawful discharge of duties

and under the provisions of this chapter shall be defended by legal representative of the city until the final termination of the proceedings. The director or any subordinate shall not be liable for cost in any action, suit or proceeding that is instituted in pursuance of the provisions of this chapter.

(10) *Approved materials and equipment.* Materials, equipment and devices approved by the director shall be constructed and installed in accordance with such approval.

(11) *Modifications.* Whenever there are practical difficulties involved in carrying out the provisions of this chapter, the director is authorized to grant modifications for individual cases, upon application of the owner or owner's authorized representative, providing the director first finds, that special individual reason based upon unique circumstances or undue hardship makes the strict letter of this chapter impractical, the modification is in compliance with the intent and purpose of this chapter, and that such modification does not lessen any of the following: health, accessibility, life and fire safety, or structural requirements. Any modification must be supported through consultation with and upon the advice of qualified persons as defined in this chapter and by review and evaluation of objective criteria. The details of action granting modifications including all materials reviewed and statements by personnel consulted shall be recorded in writing and entered in the files of the department of development services.

(12) *Administrative exceptions.* To facilitate flexibility in design while maintaining the safety, health and welfare of the public, the director in concurrence with qualified personnel may grant administrative exceptions to the following provided 1) the director certifies that the proposed exception does not conflict with the intent of this chapter; and 2) the applicant demonstrates, through documentation and/or studies, based on generally accepted engineering, design and installation principles, that exceptions to the standard provided by this chapter would not pose a threat to health and safety. The director shall not modify minimum and maximum dimensions for sign spacing, heights and areas more than ten (10) percent of the value listed in this code where an administrative variance is considered. Any exception shall not eliminate the distinctions between on-premise and off-premise sign types, single and multi-tenant sign types, nor sign sizes by zoning district, street classification or like areas of legislative prerogative.

(13) *Alternative materials, design and methods of construction and equipment.* The provisions of this chapter are not intended to prevent the installation of any material or to prohibit any design or method of construction not specifically prescribed by this chapter, provided that any such alternative has been approved by the director. An alternative material, design or method of construction shall be approved where the director, in consultation with qualified persons and based upon objective criteria supporting that decision, finds that the proposed design is satisfactory and complies with the intent of the provisions of this chapter, and that the material, method or work offered is, for the purpose intended, at least the equivalent of that prescribed in this chapter in qualify, strength, effectiveness, fire resistance, durability and safety including minimization of driver distraction. Where the alternative material, design or method of construction is reviewed, the director shall respond in writing to the requester, stating the decision and reasons supporting such decision. The details resulting in a decision including all materials reviewed and statements by personnel consulted shall be recorded in writing and entered in the files of the department of development services.

a. *Research reports.* Supporting data, where necessary to assist in the

approval of materials or assemblies not specifically provided for in this chapter, shall consist of valid research reports from objective third party sources including national and internationally recognized authorities and/or standards.

b. *Tests.* Whenever there is insufficient evidence of compliance with the provisions of this chapter, or evidence that a material or method does not conform to the requirements of this chapter, or in order to substantiate claims for alternative materials or methods, the director has the authority to require tests as evidence of compliance to be made at no expense to the city. Test methods shall be as specified in this chapter or by recognized industry test standards including, but not limited to, ASTM and UL standards. In the absence of recognized and accepted test methods, the director may approve the testing procedures, provided such testing procedures are performed and supported by appropriate qualified persons through written review and opinion reports. If seals and/or signatures are required in the performance of such duties, reports must reflect them. Reports of such tests shall be retained by the department of development services for the period required for retention of public records.

(d) *Board authority, appeals and variance procedures.*

(1) *Board authority.*

a. The building-related and fire codes appeals and advisory board, also known as the appeals and advisory board: authorized to hear and decide appeals of orders, decisions or determinations made by the director relative to the application and interpretation regarding licensing issued under this chapter, on-premise and off-premises signs and electrical considerations as explicitly set out in various sections of this chapter. The appeals and advisory board acts as an appellate and advisory board to the director regarding interpretations of this chapter.

b. The board of adjustment: authorized to hear and grant variances from regulations not specifically reserved for the appeals and advisory board.

(2) *Appeals.*

a. A decision by the director regarding an interpretation of this chapter may be appealed within twenty-one (21) days after notice is served to the appeals and advisory board in accordance with City Code section 10-14. The appeals and advisory board may hear the arguments in favor and against the interpretation from any interested party.

b. A party who seeks to appeal an interpretation shall submit a written request along with the required appeals to the department of development services. The director shall review the notice of appeal for completeness within three (3) working days. The appellate agency for purposes of completeness review is the appeals and advisory board. Upon receipt of a complete application for an appeal and the fee, the appeals and advisory board must meet within fourteen (14) calendar days after either the building official receives an application in accordance with City Code section 10-14. The appeals and advisory board may reverse or affirm, in whole or in part, or modify the director's order, requirement, decision, or determination from which an appeal is taken and make the correct order, requirement, decision, or determination in accordance with chapter 10 of the City Code. The applicant will be

notified of such decision by first class mail or by e-mail at the request of the applicant. This request shall be made in writing and signed by the applicant containing at a minimum an email address for where the decision is to be sent. Development services shall keep proof of the request and a log of the email sent containing the appeals and advisory board decision. Note that public notice and appeals of the appeals and advisory board's decisions shall be in accordance with chapter 10.

(3) *Variances.*

a. Any person seeking a variance from the requirements of this article shall submit a written request on an application form approved by the director along with the required variance application fee to the development services department. The director shall review the variance application for completeness within three (3) working days. The appellate agency for purposes of completeness review shall be the appeals and advisory board. Upon receipt of the complete variance application and fee, the application shall be placed on the first open date of the docket of the board of adjustment that meets the requirements of the Texas Open Meetings Act.

b. The director shall not forward a variance application to the board of adjustment for consideration that would eliminate the distinctions between on-premises and off-premises sign types, single and multi-tenant sign types, nor sign sizes by zoning district, street classification or like areas of legislative prerogative. An applicant may appeal the director's decision to the appeals and advisory board pursuant to subsection (2).

c. The board of adjustment may grant a variance if it finds that:

1. The variance is necessary because strict enforcement of the regulation prohibits any reasonable opportunity to provide adequate signs on the site, considering the unique features of a site such as its dimensions, landscaping, or topography; or

2. A denial of the variance would probably cause a cessation of legitimate, longstanding active commercial use of the property; and

3. After establishing that one or more of the findings set forth in subparagraphs 1. or 2. have been met, the board finds that:

A. Granting the variance does not provide the applicant with a special privilege not enjoyed by others similarly situated or potentially similarly situated;

B. Granting the variance will not have a substantially adverse impact upon neighboring properties; and

C. Granting the variance will not substantially conflict with the stated purposes of chapter 28.

(4) The board of adjustment shall not grant a variance if that variance would eliminate the distinctions between on-premises and off-premises sign types, single and multi-tenant sign types, sign sizes by zoning district, street classification or like areas of legislative prerogative.

(5) The board of adjustment shall conduct its review and render a decision in accordance with the procedures contained in chapter 35 of the City Code. In making its decision, the board shall consider the

director's recommendation and apply the factors delineated in subsection (3)c. above. The action taken by the board shall be in the form of a motion to grant the variance. Such motion shall require a three-fourths (¾) vote by the appointed members of the board.

(6) The person seeking the variance or the owners or lessees of property lying one thousand (1,000) feet of any point of the lot or portion thereof on which a variance is desired may appeal the decision of the board of adjustment. Within seven (7) days after the board of adjustment's final action an appeal to the city council may be made. The appeal shall be initiated by filing a letter indicating that the applicant seeks to appeal the decision of the board to the city council. The appeal shall be accompanied with the required appeal application fee and delivered to the city clerk. The city council shall consider all the circumstances of the variance request, including the factors outlined in this section, and make its determination by majority vote. If the city council has not acted on the appeal on or before the 60th calendar day after the date the letter of appeal was filed with the city clerk, the decision of the board of adjustment shall be final.

(7) Public notice of such variance request to the board of adjustment or further appeal to city council shall be in accordance with chapter 35 of the City Code.

(8) Voting procedures.

a. The board of adjustment shall vote in accordance with chapter 35, article 8 of the City Code.

b. The appeals and advisory board shall vote in accordance with chapter 10 of the City Code.

(Ord. No. 2017-05-04-0297, § 1(Att. 1), 5-4-17)

Sec. 28-6. Definitions.

When used in this chapter, the following terms have the following meanings:

Abandoned sign means any sign structure that upon the expiration of thirty (30) calendar days after written notice is given:

(1) Is not in lawful compliance with this chapter; or

(2) Is not classified as a nonconforming sign.

Action video means the use of action footage shot with any device, the product of which is sized to fit and be displayed by an electronic message sign or similar device.

Adjacent means two (2) properties, lots or parcels where they abut or where they are nearby and are separated by a dissimilar type of manmade or geologic feature.

Advertiser means any natural person who uses signs or other medium to display a message to the public.

Advertising means the activity of displaying a message to the public.

Advertising bench means any bench providing seating to the general public without charge, which may bear advertising.

Alamo Plaza Park means the city park area bound by East Houston Street on the north, by the eastern portion of Alamo Plaza (Street) on the east, by Blum (Street) on the south, and the western portion of Alamo Plaza (Street) on the west.

Animated sign (aka *moving sign*) means a sign any sign, or part of a sign, which changes physical position by any movement or rotation or that depicts action, motion, light, or color changes through any means.

Animation means the use of movement or some element thereof, to depict action or create a special effect or scene.

Appeal means a formal request for hearing to a higher authority submitted pursuant to the requirements of this chapter.

Approved means acceptable to the director or authority having jurisdiction.

Arterial type A street classification means any street designated as a super primary or secondary arterial type A in the city major thoroughfare plan.

Arterial type B street classification means any street designated as super, primary or secondary arterial type B in the city major thoroughfare plan.

Attached means fixed or adjoined to something else.

Awning or canopy sign means a sign that is mounted or painted on, or attached to, an awning, or canopy that is otherwise permitted by this chapter.

Back to back sign means a structure containing two (2) parallel signs whose faces are oriented in opposite directions and are spaced no more than ten (10) feet apart.

Bandit sign means any sign posted on a utility pole, street sign or other street furniture or a sign posted on public property or public right-of-way in violation of this chapter. No sign owned or placed by the city, the state, or a public utility shall be considered a bandit sign.

Banner sign means a temporary, unframed sign made of various flexible materials.

Bill means any advertising poster or hand bill.

Billboard means a structure erected to display an off-premises message. (See "Off-premises signs.")

Billboard operator means any person licensed by the development services department to install, erect, service, maintain, alter, repair or demolish billboards.

Board means the building-related and fire codes appeals and advisory board, unless specifically stated otherwise or it is clear by the context that something else is intended.

Cabinet means the part of a sign structure consisting of metal enclosures which have a face area to provide messages or advertising and which may or may not be illuminated.

Canopy sign means a sign that is a part of or attached to an awning, canopy or other fabric, plastic or structural protective cover over an entrance or window, or along a building facade.

Changeable-copy sign means a sign or portion thereof on which the copy or symbols change either automatically through electrical or electronic means (for example, time and temperature units), digitally projected or manually though placement of letters or symbols on a panel mounted in or on a track system.

Channel letter sign means a sign composed of raised, cut-out letters or symbols constructed of a material which may or may not be illuminated.

City means the City of San Antonio, Texas.

Commercial collector street classification means a street which primarily serves non-residential purposes and provides access to abutting, nonresidential property, collecting traffic from local streets to distribute to arterial streets and expressways. Also refers to arterial type B.

Cultural facilities means establishments such as museums, art galleries, public libraries and community centers, botanical and zoological gardens, and theaters for performing arts, which, although they may charge an admission fee, are essentially nonprofit and are principally funded through public expenditures, foundation grants, and donations.

Cutouts means reproductions of that portion of the graphic elements of an off-premises sign which project beyond the normal limits of the advertising face to dramatize the copy and the advertising message.

Digital display means a sign face, display or device that displays images composed of electronically illuminated segments and/or a series of

grid lights, including cathode ray, light emitting diode (LED) display, plasma screen, liquid crystal display (LCD), fiber optic or other electronic media or technology.

Digital projection means the ability to project an image, geographic design, or any other such figure onto the facade of any structure through video mapping or any other type of technologies.

Digital sign means a sign regulated under this chapter that is fitted with a digital display.

Director means the director of development services and includes authorized designees, unless specifically stated otherwise or clear from the context.

Dwell time means the interval of change between each individual message. Dwell time shall not include the one second or less required to change a message.

Electronic message center means a sign capable of displaying words, symbols or figures that can be changed by remote or automatic means.

Electric sign means any sign on which letters, figures, designs, or messages are formed or outlined by electric illumination, or by a transparent or translucent medium which is electrically illuminated, whether the illuminating device is contained within or on the sign and shall also include all outside building outlining, and interim decorative displays and gas tube window outlining. Signs illuminated by electric lights which are not attached to the sign, and signs which are lighted by floodlights or projectors, are not classified as electric signs within the meaning of this chapter. Any portable sign that has electrical components attached, connected to, or part of the sign, or support, whether electrified or not, shall be considered an electric sign and all provisions of this chapter pertaining to electric signs shall apply.

Embellishments means any feature to include, but not limited to, a cut-out, neon or plastic letters, clock, electric device, and space extension which is added to an advertising structure.

Encroach means something is built on or hangs over another's property interest.

Event means something that occurs in a certain place during a particular interval of time with a clearly established beginning and end.

Expressway street classification means any street designated as an expressway in the city major thoroughfare plan.

Facade means the exterior walls of a building exposed to public view or that wall viewed by persons not within the building, including any vertical extension of a building wall (parapet), but not including any part of the building roof.

Feather sign (aka *feather-type sign*) means a sign in a feather, flutter, square, teardrop and half drop shape usually self-supported or supported by a pole(s) and firmly affixed to the ground.

Fireproof structure means a sign constructed entirely of steel members including structural support for the sign face. The sign face and its support members may be constructed of wooden or metal panels.

Flashing means a pattern of changing light illumination where the sign illumination alternates suddenly between fully illuminated and fully non-illuminated, inverse illuminated or operates with transitory bursts, for periods of less than one (1) second. This term includes blinking, strobing and twinkling. Animation as defined does not fall under the definition of flashing.

Flashing sign means any directly or indirectly illuminated sign exhibiting changing natural or artificial light or color effects by any means whatsoever.

Footcandle means a unit of light measurement equal to one (1) lumen per square foot. Footcandle may be abbreviated "fc."

Freestanding sign means a sign not attached to a building or any structure other than its own support, supported by one (1) or more columns, uprights or braces in or upon the ground, and that may extend over any portion of a building.

Government sign means a sign erected and maintained on a sign pursuant to and in discharge

of any governmental functions, or required by law, ordinance or other governmental regulation.

Historic area means a district or zone designated by the city council or a unit of the state or federal government, within which the buildings, structures, appurtenances and places are of basic and vital importance because of their association with history, or because of their unique architectural style and scale. An historic area may also be a part of, or related to, a square, park, or other area; the design of which should be preserved and/or developed according to a fixed plan based on cultural, historical, or architectural motives or purposes.

Historical building means any building or structure which is officially designed as historically or architecturally significant by a unit of local, state, or federal government.

Illegal sign means any sign unlawfully erected or maintained and includes sign structure and signs that have lost nonconforming rights.

Illuminated sign means a sign with electrical equipment installed for illumination, either internally illuminated through its sign face by a light source contained inside the sign or externally illuminated by reflection of a light source aimed at its surface.

Incidental/way finding sign means a non-illuminated sign, generally informational, that has a purpose secondary to the use of the lot on which it is located, such as "no parking," "entrance," "loading only," "telephone," and other similar directives. "For sale/lease" signs not more than thirty-two (32) square feet in area are considered incidental signs.

Local street classification means any street not defined in this chapter as:

(1) An arterial type A;

(2) Arterial type B;

(3) Commercial collector; or

(4) Expressway.

Luminance means an objective measurement of the brightness of illumination, including illumination emitted by an electronic sign, measured in candles per square foot (cd/ft^2).

Maintenance as it pertains to structural integrity of on-premises signs regarding the upkeep, care, refacing and servicing of equipment comprising sign components and sign structures. Any electrical work must be in compliance with chapter 10 regulations. However, it does not include any rebuilding, reconstructing or any reconfiguration of the existing sign cabinet.

Maintenance, nonconforming means the replacement or repair of existing electrical appurtenances, apparatus, equipment, machinery, or controls used in connection with the use of electrical energy in, on, outside, or attached to a sign, or sign structure. This precludes any technological improvements to nonconforming signage.

May implies permissiveness and connotes a non-mandatory action.

Menu board means a sign placed so as to be viewed from a drive-through lane and containing a listing of products and prices offered by the business. A menu board may include a mechanism for ordering products while viewing the sign.

Mobile sign means a sign affixed in any manner whatsoever to a motor vehicle while in motion for the purpose of advertising.

Monument sign means a permanent sign not attached to a building and constructed directly and continuously upon the ground or a grade-level support structure with no separation between the sign and the ground or grade-level support structure. Monument signs shall not be supported by visible columns, uprights, poles or braces and shall be of continuous solid construction without holes, gaps or spacing. See section 35-A101 of the Unified Development Code.

Multiple tenant sign means an on-premises pole sign that advertises three (3) or more occupancies on the same premises. Each tenant shall not advertise more than the allowable maximum for each street classification to include digital and traditional electronic space at any one (1) point of time.

Natural feature means that which is found in its natural or original state out of doors and has not been converted into a structure as defined in

this section, and includes but is not limited to trees, bushes, shrubbery, rocks, boulders, and earth.

Neighborhood means a distinct segment of the community, usually consisting of essentially similar housing stock whose boundaries are defined by physical barriers such as major arterial streets and railroads and/or natural features such as creeks and rivers.

Nit means a unit of illuminative brightness equal to one (1) candle per square meter, measured perpendicular to the rays of the source.

Nonconforming sign means a sign which was lawful prior to the adoption or revision, or amendment of this chapter, but which fails, by reason of such adoption, revision, or amendment, to conform to the present requirements of this chapter.

Occupancy means a business, office, or other enterprise which has a separate certificate of occupancy.

Off-premises sign means any sign not meeting the definition of, or considered an on-premises sign, including but not necessarily limited to, a sign that pertains or directs attention to a business, product, service, activity, person, organization, institution, event, place, object, or location not located, manufactured, conducted, sold, or offered on the premises on which the sign is located. An off-premises sign shall not include plaques or memorials by the city on public property within the Rio Districts.

Off-premises digital sign means an off-premises sign outfitted with a digital display.

Off-premises sign operator means any person licensed by the director to install, erect, service, maintain, alter, repair or demolish non-electrical off-premises signs. Any electrical sign work conducted on an off premises sign shall be done by a state licensed master electrician or a licensed master sign electrician.

On-premises digital sign means an on-premises sign outfitted with a digital display.

On-premises sign operator means any person licensed by the director to install, erect, service, maintain, alter, repair or demolish non-electrical on-premises signs. Any electrical work shall require a licensed master sign electrician or master electrician. Please note for on-premises operator, see license requirements.

On-premises sign means a sign that directs attention to a recognized commercial or industrial activity pertaining to a business, product, service, activity, person, organization, institution, event, place, or object that actually is manufactured, conducted, sold, or offered upon the premises on which the sign is located, except that any sign bringing more than mere incidental rental income to the property owner in contrast to the rental of its corresponding business/office space, shall not be considered an on-premises sign.

Park means a publicly owned tract of land designated and used by the public for active and/or passive recreation.

Pennant means any lightweight plastic, fabric, or other material, whether or not containing a message of any kind, suspended from a rope, wire, or string, usually in series, and designed to move in the wind.

Permitted area means the area that is authorized for use for a permitted event by the department exercising control of the public property.

Permitted event means an event that is allowed to use public property by the issuance of a permit by the department exercising control over the use of the public property.

Person means an individual, association, or corporation.

Place means to physically place or cause to be physically placed.

Pole sign means a sign that is mounted on a free standing pole or other support.

Political sign means a temporary sign announcing or supporting political candidates or issues in connection with any national, state or local election.

Portable sign means any sign designed or constructed to be easily moved from one location to another, including signs mounted upon or

designed to be mounted on a vehicle, trailer, wheeled carrier, or other mobile structure, but not a motor vehicle. A portable sign which has its wheels removed is a portable sign. The term "nonelectric portable sign" means any portable sign which does not have any electrical components.

Practical experience means performing work with, but not limited to, hand tools and equipment, welding equipment, hole-diggers, cranes, and other equipment used in the installation of and/or the construction of signs.

Premises means a single lot or parcel of land (platted and/or unplatted), together with all buildings, structures, yards areas and parking spaces as defined by the Unified Development Code; under the same ownership and used for the same, general purpose or use as permitted by zoning.

Private profiteering means a tangible benefit or gain for the placement of unauthorized off-premises signs in:

(1) Residential zoning districts, and

(2) Non-residential zoning districts.

Public nuisance means any legal sign erected or maintained in any manner:

(1) To constitute an immediate threat to the health, safety or welfare of the public, or is

(2) Dangerously damaged or deteriorated.

Public right-of-way means an area or strip of land, dedicated for municipal public use, occupied or intended to be occupied by a street, walkway, railroad, utility line, drainage channel, or other municipal public uses as authorized by law. It is a rebuttable presumption that any area within fifteen (15) feet of the edge of a paved portion of a public street maintained by the city is public right-of-way.

Qualified person means one with the requisite skills, knowledge and training as evidenced by certifications, licenses, or experience to offer sound and competent judgment as to a particular issue.

Recognized commercial or industrial activities means activities customarily permitted only in zoned commercial or industrial areas except that none of the following shall be considered recognized commercial or industrial activities:

(1) Outdoor signs;

(2) Agricultural, forestry, ranching, grazing, farming and related activities, including, but not limited to, temporary roadside fresh produce stands;

(3) Activities not housed in a permanent building or structure having functioning water and sewer connections and functioning electrical connections;

(4) Activities conducted in a building primarily used as a residence;

(5) Railroad right-of-way;

(6) Activities more than two hundred (200) feet from the edge of the right-of-way;

(7) Activities conducted only seasonally;

(8) Activities not conducted by human beings;

Reface means removing vinyl and replacing, restoring, repainting or repairing the existing advertising sign face area which is attached, annexed, or supported from the sign cabinet and/or main structure. The term specifically includes altering the shape of a registered "trademark sign" to prevent misidentification with the registered trademark. It does not include any other rebuilding, reconstructing or reconfiguration of the existing sign cabinet and/or existing supporting structure. Reface is a type of maintenance.

Roof sign means a sign that is mounted on, and is wholly supported by, the roof of a building and which projects above the point of a building with a flat roof, the cave line of a building with a gambrel, gable, or hip roof, or the deck of a building with a mansard roof.

Shall/must means a mandatory action.

Sign means any object, device, display, structure, description, figure, painting, drawing, message, plaque, placard, poster, or thing or any part thereof, situated outdoors or indoors, that is designed or used to advertise, inform, identify,

display, direct, or attract attention to anything by any means, including words, letters, figures, design, symbols, fixtures, colors, illumination or projected images. The foregoing enumeration of signs shall not be considered to be exclusive. The term "sign" shall include all other devices or structures as may reasonably be included under it, whether attached or unattached. This definition excludes all national or state flags, non-electric window displays, graffiti placed without the authority of the property's owner or representative, the official announcements or signs of government, and athletic scoreboards displaying no otherwise off-premises signage.

Sign assembly means all parts of an advertising structure.

Sign-face area means the entire advertising area or "sign face" within the sign excluding any framing, bracing, trim, or molding and the supporting structure. A Matrix 2-D symbol is not part of the area.

Simulcast means a simultaneous live transmission of the permitted event from the permitted area to one or more permitted areas or to an area on private property.

Street frontage means the distance for which a lot adjoins a public street, from one lot line intersecting a street to the furthest distant lot line intersecting the same street.

Structure means anything built, constructed or erected or any piece or work artificially built-up or composed of parts joined together in some definite manner including, but not limited to, buildings of any kind, utility poles, fences, fire-hydrants, street light standards, traffic light standards, traffic directional sign standards or any other thing to which a sign, may be placed, affixed, erected, painted, posted, maintained or displayed.

Temporary sign means a sign advertising messaging displayed for a limited period of time and subject to reasonable placement and manner regulations as set forth in this chapter.

Temporary sign on public street right-of-way means an off-premise temporary sign that is permitted to be placed on the right-of-way of a road or highway maintained by the city.

Three-dimensional sign means a sign having or appearing to have three (3) dimensions: length, width, and depth.

Type A street classification (commercial collector) means any street designated as a primary or secondary arterial type A in the city major thoroughfare plan.

Variance means the right to build on land in a way prohibited by strict application of this chapter.

V-type sign means a structure composed of two (2) signs with the faces oriented in opposing directions and in the shape of the letter "V"; provided, however, that only one (1) face can be viewed from any one direction.

Wall sign means a sign fastened to, projected on, or painted on, the wall of a building or structure in such a manner that the wall becomes the supporting structure for, or forms the background surface of, the sign and which does not protrude more than eighteen (18) inches from the building or structure.

Window sign means any sign, picture, symbol, or combination thereof, designed to communicate information about an activity, business, commodity, event, sale, or service, that is placed inside a window or upon the window panes or glass and is visible from the exterior of the window.

Zone means one of the standard zoning classifications established in chapter 35 of the City Code.

(Ord. No. 2017-05-04-0297, § 1(Att. 1), 5-4-17; Ord. No. 2023-6-01-0369, § 1(Att. I), 6-1-23)

Sec. 28-7. Certain items exempted from chapter provisions.

Letters or figures on windows, doors, awnings and advertising benches placed pursuant to a contract with the city are not addressed by this chapter.

(Ord. No. 2017-05-04-0297, § 1(Att. 1), 5-4-17)

Sec. 28-8. Classification of signs.

(a) All signs regulated under this chapter are classified initially as on-premises signs, off-premises signs or government signs. All regulated signs under this chapter follow this initial classification. With the exception of government signs, all signs regulated under this chapter may display noncommercial speech. Nothing herein shall be interpreted to waive legal rights under local, state or federal law.

(b) Signs regulated by this chapter are further classified as:

(1) Temporary signs.

(2) Wall signs.

(3) Projecting signs.

(4) Pole signs.

(5) Roof signs.

(6) Portable signs.

(7) Electric signs.

(8) Official or government signs.

(9) Back to back signs.

(10) V-type signs.

(11) Digital signs.

(Ord. No. 2017-05-04-0297, § 1(Att. 1), 5-4-17)

Sec. 28-9. Violations; penalties; civil remedies; abandoned and nuisance signs.

(a) *Violations.* Failure to comply with the provisions of this chapter shall constitute a violation of the City Code. Each day a violation exists shall constitute a separate violation and, consequently, a separate offense.

(b) *Penalties.* Any person violating any provision of this chapter shall be guilty of a misdemeanor and shall, upon conviction, be punished by a fine not to exceed five hundred dollars ($500.00).

(c) *Civil and administrative remedies.* A violation of this chapter 28 is also subject to civil and administrative penalties.

(1) Administrative hearing officer. Under authority of V.T.C.A., Local Government Code ch. 54 et seq., the city may bring an administrative action to enforce this chapter 28, pursuant to chapter 20, article II, Administrative adjudication hearings.

(2) Building standards board. Under authority of V.T.C.A., Local Government Code ch. 54 et seq., the city through its city attorney or designee may bring a civil action to, without limitation, compel the repair or demolition of a structure or to obtain approval to remove said structure and recover associated costs. In this specific action the city may also bring a claim for civil penalties under V.T.C.A., Local Government Code § 54.017 and an action in rem against the structure that may result in a judgment against the structure as well as the defendant.

(3) Nothing in this chapter shall preclude the city's pursuit of any and all other remedies allowed under civil and criminal statues and, in equity, to address conditions which are treated in this chapter. Neither shall the city be required to issue, nor be prohibited from issuing, criminal citations before, during, or after any proceeding prescribed in this chapter.

(4) Civil remedies contained herein shall be construed to be in addition to the power of the city to abate public nuisances.

(d) *Abandoned sign.*

(1) The director or designee shall notify the owner of the structure, the owner's agent or the owner of the property on which the structure is located by certified mail that: 1) the sign structure is out of lawful compliance with this chapter; 2) the reasons why the sign structure is out of compliance; and 3) contact information. Such notice shall also state that upon the expiration of thirty (30) days without

corrective measures being completed, the sign structure is abandoned and subject to removal at owner's expense.

Commentary: Nonconforming signs are, by definition, legally erected signs, which by reason of adoption, revision, or amendment of law, do not conform to present legal requirements. It is the intention that nonconforming signs not be exempt from regulations enacted under municipal police power authority to ensure life, safety and public welfare. Example: City enacts legislation to lower light levels of all signs, including existing signs. A nonconforming sign must be brought into compliance with this regulation and nonconforming status will not shield it from enforcement of section 28-9 of this chapter.

(2) The director and designee(s), severally, are authorized to extend the time period under subsection (1) for up to six (6) months for good cause shown supported by written documentation stating the reasons why thirty (30) days is insufficient to complete corrective measures. Any discretion to extend time is tempered and balanced with public safety and welfare. No such action shall be taken that endangers public safety and welfare or waive requirements under the City Code.

(3) If an abandoned sign is removed as permitted hereinabove, the director shall send service of notice by certified mail of such removal and disposition to the owner of the sign or agent, if mailing address is known, and, if not known, said notice may be published in a newspaper of general circulation in the city. Disposition follows subsection (f) below.

(e) *Nuisances; repair; removal; disposition.* Any sign erected or maintained in any manner to constitute: 1) an immediate threat to the health, safety or welfare of the public; or 2) is dangerously damaged or deteriorated, is hereby classified as a public nuisance, prohibited as unlawful, and shall be abated according to the following provisions.

(1) *Immediate threat to the health, safety or welfare of the public.* Where it appears to the director in coordination and consultation with a qualified person, that due to structural defects or conditions arising from, but not limited to, fire, accident, or other act or occurrence threatening the structural integrity of the sign structure, there is or appears to be an immediate threat to the health, safety or welfare of the public, the director shall declare its immediate demolition. Such declaration shall include a determination that under the circumstances no other abatement procedure is reasonably available except demolition. City is authorized to use any legal means for recoupment of expenditures arising out of the demolition order. Written notice shall be made by certified mail to owner of the structure, the owner's agent or the owner of the property on which the structure is located as soon as practical under the circumstances then existing. Said notice shall contain information detailing that city will dispose of the sign without further notice or opportunity to salvage.

(2) *Dangerously damaged or deteriorated.* If a sign structure is dangerously damaged or deteriorated as determined by the director in coordination and consultation with a qualified person, the director must give the owner of the structure, the owner's agent or the owner of the property on which the structure is located written notice by certified mail stating the defects thereof and sufficient time to complete repairs or improvements or demolition and removal of the structure. Said notice shall contain information detailing the city's options to store or dispose of the sign without further notice. The director is authorized to determine sufficient time under the circumstances then existing, but as a general rule, such time shall not exceed thirty (30) days.

a. *Conditions or defects.* Any structure which has any or all of the condi-

tions or defects hereinafter described constitutes a dangerously damaged or deteriorated structure and a hazard to the public health, safety, and welfare:

1. *General conditions.* Whenever the structure, or any portion thereof, because of:
   A. Dilapidation, deterioration, or decay;
   B. Faulty construction;
   C. The removal, movement, or instability of any portion of the ground necessary to support such structure;
   D. The deterioration, decay, or inadequacy of its foundation; or
   E. Any other cause, is likely to partially or completely collapse.
2. *Specific.*
   A. *Foundations.*
      1) Condition of anchor bolts and/or bottom plate show excessive wear, deterioration, cracks or stress fractures.
      2) Condition of foundation systems including but not limited to spread or pier footings show signs of decay, rupture, or other indications of undue stress.
   B. *Sign structures.*
      1) Pole/pylon damaged by impact, obvious signs of tension, shear, or stress fractures through any means.
      2) Over bored or worn holes in all plate connections.
      3) Poor or improperly made welds which may or may not show signs of burn through.
      4) Plate connectors, rings or gussets showing stress fractures or other types of damage/deterioration.
   C. *Connections.*
      1. Any connectors showing deficiencies, loose or missing nuts, bolts or other means of connection.
      2. Required bracing bearing shows signs of stress of any type or magnitude.
      3. Unapproved or improper use of materials to make repairs/corrections to any component of a sign structure.

b. *Standards for repair or demolition.* The following standards guide the director in the discretion in ordering that a dangerously damaged structure be repaired, vacated, secured, and/or demolished and these standards will be observed and applied by the board on appeal.
   1. If the alleged dangerous structure can be feasibly repaired or the condition remedied so that it will no longer exist in violation of the terms of this chapter, it shall first be ordered remedied or repaired by the director.
   2. In any case where a dangerous structure is fifty (50) percent or more damaged or deteriorated in its structure, a presumption shall arise that

the structure cannot be repaired. Such presumption may be appropriately rebutted by the weight of the evidence.

3. Principals of sound engineering practices shall be respected.

4. The director is authorized to extend the time period under subsection (e)(2) for up to sixty (60) days for good cause shown supported by written documentation stating the reasons why thirty (30) days is insufficient to complete corrective measures. Any discretion to extend time is tempered and balanced with public safety and welfare. No such action shall be taken that endangers public safety and welfare or waive requirements under the City Code.

(3) *Abatement.*

a. The designated period within which said owner of the structure, the owner's agent or the owner of the property on which the structure is located is required to comply with an order of the director shall begin as of the date notice is received.

b. Responsible party's failure to abate; costs.

1. If the sign structure or its components, subject of the DSD order, is not secured, repaired, removed, or demolished, or the occupants are not relocated within the time prescribed as detailed above, the city is authorized to secure, remove, or demolish at the owners own expense.

2. If the city incurs expenses under subsection 1. above, the city may assess its costs and secure same by a lien.

3. In the event of city serviced demolition, following review and approval by the DSD, to abate the public nuisance, the owner shall be charged and billed for the expense of demolition of the sign structure, to prepare the premises for demolition, collapse the structure, remove and dispose of all debris to a legal disposal facility, plus any handling, transportation and disposal fees incurred, including any and all costs necessary to address special or hazardous wastes, and a ten (10) percent administration expense charge.

4. Any case referred to the DSD for consideration shall also have attached as costs all expenses incurred by the city to research ownership and mortgagee/lien holder interests, as such research is required by state law to fix enforceable orders and liens.

Commentary: A repair permit must be issued first before any legal sign may be repaired. An illegally erected sign shall not be repaired under any circumstance and any illegal sign may be demolished without classifying it as a public nuisance.

(f) *Disposal.* City may permanently dispose of any removed sign authorized under subsection (e) provided applicable written notice is given of that action. Additionally, any sign removed under subsection (e) may, but need not, be stored or impounded and will not be returned to the owner until all applicable charges for removal and storage are paid. Should a sign be stored or impounded, and any such sign remains unclaimed for a period of thirty (30) days after its removal or if the removal and storage costs are not paid within the 30-day period, the city may, after notice to the sign owner or agent, or if not known, notification by publication in a newspaper of general circulation in the city and a hearing before the director, destroy, sell, or otherwise dispose of the sign.

(Ord. No. 2017-05-04-0297, § 1(Att. 1), 5-4-17)

Sec. 28-10. Posting signs and bills on public and private property.

(a) No person shall affix a sign or bill by any means whatsoever to any private property without having first obtained the written permission of the owner or the owner's agents. Nothing within this chapter shall be interpreted or applied so as to prohibit a property owner or that owner's agent from removing or authorizing the removal of unauthorized signage.

(b) Except as expressly provided in this chapter, no person shall affix a sign or bill by any means whatsoever to any public property, including public right-of-way, without having first obtained the written permission of the city through appropriate legislative action or approved permitting procedures through the city's transportation and capital improvements department. Nothing within this chapter shall be interpreted or applied so as to prohibit the city, through its staff, from removing or authorizing the removal of unauthorized signage on public property or public right-of-way.

Commentary: non-governmental signs are generally not permitted on city right-of-way unless 1) expressly provided for in this chapter; 2) permitted pursuant and through the city's transportation and capital improvement's department way-finding sign permitting process; or 3) through city council approval.
(Ord. No. 2017-05-04-0297, § 1(Att. 1), 5-4-17)

Sec. 28-11. Recorded sign easement agreements.

Any recorded private sign easement agreement or any other legal agreement that eliminates or purports to eliminate the distinctions between on-premises and off-premises sign types, single and multi-tenant sign types, or sign sizes by zoning district or street classification constitutes a violation of this chapter. This provision shall operate prospectively from July 3, 2017.
(Ord. No. 2017-05-04-0297, § 1(Att. 1), 5-4-17; Ord. No. 2023-6-01-0369, § 1(Att. I), 6-1-23)

Sec. 28-12. Signs posted at commercial parking areas.

See chapter 19, section 19-236, Requirements for signs posted at commercial parking areas.
(Ord. No. 2017-05-04-0297, § 1(Att. 1), 5-4-17)

Secs. 28-13—28-19. Reserved.

ARTICLE III. REGULATORY REQUIREMENTS

DIVISION 1. LICENSE AND INSURANCE

Sec. 28-20. In general.

All persons engaging in the business of erecting, painting, servicing refacing, maintaining or demolishing signs regulated by the chapter must be licensed and insured to conduct business in this jurisdiction, unless specifically excepted in this chapter. Work shall not commence until the insured license holder has posted a compliance bond and been issued a proper permit for the proposed work by the development services department.
(Ord. No. 2017-05-04-0297, § 1(Att. 1), 5-4-17)

Sec. 28-21. License.

(a) *License required.* See section 28-20 above.

(b) *City issued licenses.* The city issues an on premise sign operator license and an off premise sign operator license authorizing holders of such licenses to perform duties as they are defined in section 28-6.

(c) *State issued licenses.* See City Code, chapter 10, section 10-113, Electrical contractors and electrical sign contractors, installers, maintenance electricians; licenses and registrations. Registration requirements under chapter 10 include a background check verifying one (1) qualifying master per contractor.

(d) *Term of licenses; right to renew.* All licenses issued pursuant to this chapter shall continue in full force from the date of issuance until the end of the city's fiscal year, and may be renewed annually thereafter, without examination, unless the license has been suspended for cause.

Notwithstanding this, continuing education units (CEU) are required in order to renew city issued licenses. A limitation exists where the licensee (state or city issued) shall neither master nor engage in the operation of a second electrical or electrical sign business, unless it is under the same name and insurance of the first business.

(e) *Renewal date.* A person licensed under this chapter must renew his license within thirty (30) days of the beginning of the city's fiscal year or the license shall be declared in default and the holder shall be subject to reexamination.
(Ord. No. 2017-05-04-0297, § 1(Att. 1), 5-4-17)

Sec. 28-22. Off-premises sign operator license.

(a) *License required.* A person engaging in the business of erecting, painting, servicing or maintaining non-electrical off-premises signs must be licensed to do business by the city. A license holder supplying his license for a firm or corporation doing business under this Code shall not supply his license to a second firm or corporation. Any permit issued to the license holder shall be for work being done by the license holder and his firm or corporation. The licensing requirement shall not be applicable to employees or subcontractors performing work under the supervision of the licensed off-premises sign operator.

(b) *Examination, application and fee.* Each person seeking an off premise sign operator license must file an application and pay a fee with the director and take and pass an examination given by an approved third party. A license shall not issue without taking and passing such examination. An additional fee shall be charged upon reexamination.

(c) *Qualifications.* As part of the application process, each application shall show proof to the director of at least four (4) years of practical experience at the trade working under an off-premise sign operator. The applicant shall also submit to the director an affidavit, duly sworn, setting for and including proof of such experience.

(d) *Minimum test score.* The director shall issue a license provided a minimum of score of seventy-five (75) percent has been achieved on the off-premises sign operator's examination and the annual license fee has been paid.

(e) *Vehicle identification.* Any contractor engaged in erecting, installing, servicing, or maintaining an off-premises sign shall ensure that all vehicles required to be on the job site are identified with the contractor/company name and license number. Lettering on the vehicle shall be at least two (2) inches high, and shall be in full view and legible at all times.
(Ord. No. 2017-05-04-0297, § 1(Att. 1), 5-4-17)

Sec. 28-23. On-premises sign operator license.

(a) *License required.* A person engaging in the business of erecting or maintaining on-premises signs must be licensed to do business by the city. Such a license does not authorize electrical work on any sign. A license holder shall supply the license to only one (1) firm or corporation doing business. Any permit issued to the license holder shall be for work being done by the license holder and this firm or corporation. Work shall be conducted by the license holder issued the permit; however, a new license holder is permitted to complete work under the issued permit. The licensing requirement is inapplicable to employees or subcontractors performing work under the supervision of the license holder.

(b) *Examination, application and fee.* Each person seeking an on premise sign operator license must file an application and pay a fee with the director and take and pass an examination given by nationally or internationally recognized authorities. A license shall not issue without taking and passing such examination. An additional fee shall be charged upon reexamination as detailed in the fee schedule.

(c) *Qualifications.* As part of the application process, each applicant shall show proof to the director of a minimum of two (2) years experience in on-premises sign installation working under a licensed on-premises sign operator, or a licensed on-premises sign operator from another city provided that licensing qualifications and

examinations are similar in design and quality to that of the city as determined by the director, or can show proof of a minimum of four (4) years experience in on-premises sign installation, provided that verification of experience shall be determined by the director. The applicant shall submit to the director an affidavit, duly sworn, setting forth his experience.

(d) *Minimum test score.* The director will issue a license provided a minimum of score of seventy-five (75) percent has been achieved on the off-premises sign operator's examination and the annual license fee has been paid.
(Ord. No. 2017-05-04-0297, § 1(Att. 1), 5-4-17; Ord. No. 2023-6-01-0369, § 1(Att. I), 6-1-23)

Sec. 28-24. Nontransferability.

A license issued pursuant to this chapter is not transferrable.
(Ord. No. 2017-05-04-0297, § 1(Att. 1), 5-4-17)

Sec. 28-25. Unlawful use of license.

A person licensed under this chapter will not allow his name to be used by any other party for the purposes of doing work or obtaining a permit. Violations of this section will result in revocation of the license, and the holder will be subject to all other penalties provided by law.
(Ord. No. 2017-05-04-0297, § 1(Att. 1), 5-4-17)

Sec. 28-26. Revocation and suspension.

(a) *Grounds.* The appeals and advisory board is authorized to uphold, modify or overrule the director's decision to suspend or revoke the city issued license of any person found to have:

(1) Committed any fraud or deceit in obtaining a license.

(2) Secured sign permits under his license and thereafter allowing a person without a proper license to do the work.

(3) Committed gross negligence, incompetency, or misconduct in the performance of sign work. Misconduct includes, but is not be limited to, a failure to:

a. Offer remittance on permit applications upon ninety (90) days past due and permits issued, and

b. Close permits within the prescribed time period required by chapter 10 of this Code.

(4) Intentionally made a false or misleading material statement on an application for a permit or registration form for nonconforming signs.

(5) Perform any contractor work for which a permit is required without having the permit or after the permit has been canceled.

(b) *Hearing.* In determining the validity of charges brought under this section, the appeals and advisory board shall proceed upon information provided to show just cause for license suspension or revocation. The board, whenever it deems the information sufficient to support further action on its part, shall convene a hearing to further investigate the charges. Procedural requirements follow chapter 10 of this Code. The accused may appear in person or be represented by counsel, or both, and present his defense to the board. If the accused fails, or refuses, to appear, the board may proceed to hear and determine the charge in his absence. If the accused pleads guilty, or if the board, by a majority of members present after a quorum has been established, finds the charges to be true, the board shall uphold, modify or overrule the director's decision to suspend or revoke the city issued license.

(c) *Record.* When the board has completed its hearing, it shall file a record of its finding and decision with the city clerk and forward a certified copy of the finding and decision to the accused.

(d) *Length of suspension.* If the board determines to suspend a license, it shall make a determination on the length of that suspension.

In no case, however, may a suspension period exceed one hundred eighty (180) days, nor be less than thirty (30).

(e) *Appeal.* Any appeal from the decision of the board shall be made to a court of proper jurisdiction by following procedures found under section 10-14.

(f) *Reapplication.* If a license is revoked, a new licensed may not be applied for a period of one (1) year.

(g) *Operating while suspended or revoked.* It shall be unlawful for any person whose license has been suspended or revoked by the board to engage in, or do, sign work for which a permit is required under this article.
(Ord. No. 2017-05-04-0297, § 1(Att. 1), 5-4-17; Ord. No. 2023-6-01-0369, § 1(Att. I), 6-1-23)

Sec. 28-27. State issued master sign electrician's license and master electrician license.

See section 10-113, electrical contractors and electrical sign contractors, installers, maintenance electricians; licenses and registrations, of the City Code.
(Ord. No. 2017-05-04-0297, § 1(Att. 1), 5-4-17)

Sec. 28-28. Indemnification and insurance requirements.

(a) Indemnity. All persons holding an on or off premise sign operator's license shall agree to indemnify and hold harmless the city, its members, agents, officers and employees, their successors and assigns, individually or collectively, from and against all liability for any fines, claims, suits, demands, action or causes of action of any kind and nature including, but not limited to, personal injury or death, and property damage, in any way arising out of or resulting from any activity or operation of the licensee. This indemnification shall be a prerequisite to the issuance of the off-premises sign operator's or on-premises sign operator's license. The license holder shall pay all expenses incurred in defending against any such claims made against the city; however, the license holder shall not be liable for any injury, damage, or loss caused by the sole negligence or willful misconduct of the city, its agents or employees. The licensee and the city shall give prompt and timely notice of any claim made, or suit instituted, which in any way affects or might affect either party.

(b) Insurance. Subject to the license holder's right to maintain reasonable deductibles in such amounts as are approved by the city, the licensee shall procure and maintain at his own expense, the following types and amounts of insurance:

Type	Amount
(1) Workers compensation and employer's liability	Statutory amount of $500,000.00 for each accident
(2) Comprehensive general (public) liability, to include, but not be limited to, the following: (a) Premises/operations (b) Independent contractors (c) Personal injury (d) Products/completed operations (e) Contractual liability (f) Explosion, collapse and underground property damage	Combined single limit for bodily injury or property damage: $1,000,000.00 or its equivalent
(3) Comprehensive automobile liability, to include coverage for: a. Owned/leased automobiles. b. Non-owned automobiles c. Hired cars	Combined single limit for bodily injury or property damage: $1,000,000.00 or its equivalent

(c) The licensee further agrees that with respect to the required insurances, the city shall:

(1) Be named as additional insured/or insured, as its interest may appear.

(2) Be provided with a waiver of subrogation.

(3) Be provided with thirty (30) days advance notice, in writing, of cancellation or material change.

(4) Be provided with certificates of insurance evidencing the required insurances, prior to the commencement of the city's fiscal year. Notices and certificates of insurance shall be provided to the director of the development services department and the city clerk.

(d) Should a person holding a license sever employment connections with a firm which is jointly covered by the same insurance, a new certificate showing proper coverage will be required of both parties.

(e) If the insurance cancels or renews at periods other than the annual license renewal date, new evidence to show that the license holder is maintaining proper coverage shall be furnished to the city.
(Ord. No. 2017-05-04-0297, § 1(Att. 1), 5-4-17)

DIVISION 2. PERMIT AND COMPLIANCE BOND

Sec. 28-29. Permit required.

A validly issued license and insurance are prerequisites to the issuance of a permit for work in this jurisdiction. No permit for work will issue unless an applicant shows proof of license and insurance as provided in division 1, unless specifically excepted below. Only a registered contractor or city licensed contractor is authorized to obtain sign permits for the installation, erection, or alteration of any sign. Work includes erection, painting, servicing, refacing, maintaining or demolishing a sign regulated by this chapter.
(Ord. No. 2017-05-04-0297, § 1(Att. 1), 5-4-17)

Note—See chapter 10 for a detailed description of registered contractor or city licensed contractor.

Sec. 28-30. Permit exceptions.

(a) On-premise signs not exceeding one (1) square foot of facing, and non-lit, attached to a residence, apartment or mixed use building used solely for home occupation purposes.

Any activity carried out for gain by a resident conducted as an accessory use in the resident's dwelling unit as defined in chapter 35.

(b) Non-electric or non-illuminated signs not exceeding thirty-two (32) square feet of facing, composed of durable material, situated wholly upon private property and securely affixed to a building, fence or wall and having a frame or trim not more than three (3) inches wide except said signs shall comply with applicable erection and maintenance permit regulations. This exception does not apply to any signs erected in the Riverwalk Area as defined in this chapter.

(c) Signs or markers on public property used by a public utility holding a franchise from the city to designate bus stops or cab stands.

(d) Government signs.

(e) Incidental/way finding signs.

(f) Temporary signs on residential zoned properties and residential zoned uses that are maximum ten (10) square feet in area and in accordance with all applicable provisions of section 28-73.
(Ord. No. 2017-05-04-0297, § 1(Att. 1), 5-4-17; Ord. No. 2023-6-01-0369, § 1(Att. I), 6-1-23)

Sec. 28-31. Permit application process.

(a) *General application requirements.* In compliance with chapter 10 and all adopted amendments, including Appendix H to the International Building Code, to obtain a city issued sign permit, the applicant must first file an application in writing on a form furnished by the development services department for that purpose. Such application shall:

(1) Identify the type, size, shape, zoning district and location (or proposed location) of sign through drawings and specifications.

(2) Identify the premises and street address of the sign (or proposed location).

(3) Identify the means and methods of construction including, where required, an engineer's certification.

(4) Be signed by the applicant, or applicant's authorized agent.

(5) Give other information as required by the director.

(6) Where engineering is required by the applicable provisions of this chapter, chapter 10 of the City Code and the adopted International Building Code including Appendix H, Sign, certification by a Texas licensed engineer shall be provided as part of the permit application.

(b) *Off-premises application requirements.* In addition to general application requirements above, an off-premises sign permit application must include:

(1) The distance to the nearest off-premises sign on the same side of the roadway.

(2) An affidavit from the property owner authorizing erection of the sign or an executed lease agreement.

(3) Two (2) demolition permit numbers of off premises signs registered with the city that have been removed and their date(s) of removal.

(4) Proof of a state permit for off-premises sign placement along the main-traveled way of the interstate and primary systems of a highway. In order to submit an application for a city sign permit, proof of commercial or industrial zoning must be submitted to the State of Texas and a state issued sign permit must be issued to erect the sign. Proof of this state sign permit must be included in the permit application to the city.

(c) *Application completeness review and approval.*

(1) *Completeness review.* A permit application shall not be deemed complete unless the application form is filled out completely and all requested information has been provided. No form shall be deemed complete until the application fee has been paid. The applicant shall be notified of the status of the application by certified mail or through the customer notification system. An application remaining incomplete at the expiration of thirty (30) days is invalid.

(2) *Approval process.* Once an application is deemed complete, the director shall examine or cause to be examined permit applications within as reasonable time. As part of such process, the director may forward the application to other city departments in order to verify compliance with any applicable laws and ordinances under their jurisdiction. If the application or attached documentation does not conform to pertinent law, the director shall reject such application in writing, stating the reasons for the denial. If the director is satisfied that the proposed work conforms to applicable law and fees have been paid, the director shall issue a permit as soon as practicable.

(d) *Considerations for issuing sign permits.*

(1) *In general.* A permit for the erection or alteration of any sign over any sidewalk, alley, or other public property, or on or over any roof or building, shall not be issued to any person except upon the condition that the permit may be withdrawn at any time, in which case the sign shall be immediately removed by the owner thereof.

Comment. See chapter 10 of this Code for general sign inspection requirements.

(2) *Off premises relocation permit application considerations.*

a. Any off premises sign structure removed in the city within two (2) years prior to July 3, 2017 may be credited as a required removal provided the development services department has previously identified the removed sign through a

demolition permit application as such under then-existing regulations. Demolition permits must be issued by the development services department and structures demolished prior to issuance of a relocation permit. Once an application for a relocation permit is filed, such application shall not be amended except for adjustment of the location of the relocated off premises sign structure on the same property.

b. Once a relocation permit has issued, the permit holder must have the relocated structure under construction within three (3) calendar days of the permit issuance date or identify the site with a sign bearing the company and operator's name, operator's license number, and the permit number. The sign shall measure no more than four (4) feet high by three (3) feet in length and shall be affixed to an upright of ten (10) feet overall, set in a minimum of three (3) feet below ground level, and a minimum of six (6) feet above ground level, facing the flow of traffic and clearly visible from the street. For purposes of this subsection a billboard shall be considered to be under construction when the sign pole is set in concrete in the ground in an upright position.

c. A permit holder shall have one hundred eighty (180) days from the time the relocation permit is issued or thirty (30) days from the time the installation is complete to request a final inspection of the relocated off premises sign, whichever comes first. Should such a request not be made within the time prescribed, the relocation permit is invalid. However, one (1) 90-day extension period may be granted. The request for the extension must be made before the 180-day period lapses. If an inspection has not been requested by the end of that extension, the relocation permit is invalid. Should the operator still desire to place a billboard at the site in question, an applicant must apply for a new relocation permit pay all required fees.

(3) *Limitation on relocation permits.*

a. Relocation permits will only be issued on a one-for-two basis, i.e., one (1) relocation permit issued for every two (2) billboards removed. For every billboard relocated pursuant to a relocation permit, a minimum of two (2) billboards must be removed and their combined advertising display area square footage must be equal to or exceed twice the advertising display area square footage of the relocated billboard. For purposes of determining the monthly allocation of square footage of advertising display area, an application for a relocation permit shall be charged to the month within which the application is filed.

b. Each off premises sign company may relocate no more than one thousand three hundred forty-four (1,344) square feet of advertising display area during any given calendar month, provided a minimum of two (2) billboards and twice the amount of advertising display area square footage are removed per relocation permit issued. This relocation limitation of one thousand three hundred forty-four (1,344) square feet must be used within a given calendar month and shall not be cumulative on a month-to-month basis. No credit shall be issued should more than two thousand six hundred eighty-eight (2,688) square feet of advertising display area be removed during any given calendar month.

c. An off premises sign erected pursuant to a relocation permit shall conform to all provisions of this chapter as well as any other

applicable City Code provisions. In addition to the maximum sign face restrictions detailed in subsection 28-50(d), the maximum size sign face area of a relocated billboard as viewed from one (1) direction is the average square footage of sign face area of the prior removed billboards, excluding embellishments, as viewed from one (1) direction (i.e., adding the sign face areas of two (2) billboards to be removed as viewed from one (1) direction and dividing by two (2).

(4) *Height adjustment permits.* A height adjustment permit can be issued if all of the following conditions are met for an existing billboard structure.

a. The owner shall file an application with the development services department providing it with photographic evidence that the sign face is obstructed by a ramp, elevated roadway, traffic sign or similar highway structure.

b. The structure is not located within the following boundaries:

1. Both sides of I.H. 10, an expressway, between Highway 90 to I.H. 35 for a distance of five hundred (500) feet from the street right-of-way.

2. Both sides of I.H. 35, an expressway, between I.H. 10 to I.H. 37 for a distance of five hundred (500) feet from the street right-of-way.

3. Both sides of I.H. 37, an expressway, between I.H. 35 I.H. 10/Highway 90 for a distance of five hundred (500) feet from the street right-of-way.

4. Both sides of I.H. 10,/Highway 90, an expressway, between I.H.10/I.H. 35 and I.H. 37 for a distance of five hundred (500) feet from the street right-of-way.

c. The existing billboard structure was installed prior to the building or installation of the obstruction.

d. The existing billboard was not converted to a digital face in the previous three (3) years.

e. The existing billboard must retain the same basic structural configuration, including number of faces and lighting method after adjustment. The building official may allow minor alterations that do not affect the configuration.

f. The adjusted height would be coordinated with and approved by the development services department to create adequate sign face visibility for an existing obstructed billboard but may not exceed eighty-five (85) feet above the grade level at the base of the sign. The bottom of the sign face may not exceed ten (10) feet above the obstruction at the point nearest to the billboard.

g. All adjustments shall comply with the most recently adopted version of the International Building Code as adopted under chapter 10.

(e) *Billboard permits are not transferable.* A permit must be utilized by the operator to whom it is issued. Any operator who intentionally gives, lends, sells, or otherwise conveys a permit to another operator shall have his license revoked and shall be subject to all penalties as established in the City Code.
(Ord. No. 2017-05-04-0297, § 1(Att. 1), 5-4-17; Ord. No. 2023-6-01-0369, § 1(Att. I), 6-1-23)

Sec. 28-32. Obtaining permit for another.

It shall be unlawful for any person licensed under the provisions of this chapter to obtain a permit on behalf of, or for the benefit of, any

unlicensed person whose business activities are such that such unlicensed person would need a license to obtain a permit.
(Ord. No. 2017-05-04-0297, § 1(Att. 1), 5-4-17)

Sec. 28-33. Validity of permit.

The issuance or granting of a permit shall not be construed to be a permit for, or an approval of, any violation of any of the provisions of this chapter or of any other ordinance of the city. Permits presuming to give authority to violate or cancel the provisions of this chapter or other ordinances of the city shall not be valid. The issuance of a permit based on construction documents and other data shall not prevent the director from requiring the correction of errors in the construction documents and other data. The director is also authorized to prevent use of a structure where in violation of this chapter or of any other ordinances of the city.
(Ord. No. 2017-05-04-0297, § 1(Att. 1), 5-4-17)

Sec. 28-34. Continuation of the business upon death, disability or termination of the business's master.

Upon the death or disability of a registered contractor or city licensed contractor (the master), the business will be allowed to complete existing work for which permits have been obtained prior the severance of the master provided insurance is posted and sufficient evidence is submitted to and approved by the director as to the ability of the business to complete the work as required under law. Monthly approval may be granted by the director for period not to exceed six (6) months. On or before the expiration of such period, the business shall associate a new master of the appropriate classification or cease operations. Upon termination of a master, a letter shall be provided stating the cause of termination prior to a new contractor being issued a completion permit.
(Ord. No. 2017-05-04-0297, § 1(Att. 1), 5-4-17)

Sec. 28-35. Suspension or revocation.

The director is authorized to suspend or revoke a permit issued under the provisions of this chapter whenever the permit is issued in error or on the basis of incorrect, inaccurate or incomplete information, or in violation of any ordinance or regulation or any of the provisions of this chapter.
(Ord. No. 2017-05-04-0297, § 1(Att. 1), 5-4-17)

Sec. 28-36. Compliance bond required for permit.

(a) *Posting compliance bond.* A license holder shall first post a compliance bond in the name of the City of San Antonio in a sufficient amount to cover the estimated work to be done before being issued a sign permit. A written estimate must be submitted prior to the issuance of a permit and the bond must continue for one (1) year succeeding the completed work. The compliance bond shall ensure the full and faithful compliance by the licensee of all the covenants, terms, and conditions of the construction codes of the city and stands as surety for payment by the licensee of all valid city claims.

(b) *Bond recovery and disposition.* The director shall report each violation of this chapter to the office of the city attorney who shall immediately make demand on the compliance bond holder and his sureties for the amount of liability for each offense. Should the compliance bond holder default, the city attorney is authorized to file suit upon the bond for recovery of any amount due the city. All sums of money collected under the provisions of this section shall be deposited in the general fund of the city.
(Ord. No. 2017-05-04-0297, § 1(Att. 1), 5-4-17)

Secs. 28-37—28-40. Reserved.

ARTICLE IV. ERECTION AND MAINTENANCE REGULATIONS

DIVISION 1. IN GENERAL

Sec. 28-41. Erection and maintenance.

(a) *General.* All signs and components thereof shall be erected and maintained in good repair and with the proper and secure structural supports. All signs and their immediate surrounding area shall be kept free of weeds, trash and

other refuse. The display surfaces of all signs shall be kept neatly painted or posted. All signs regulated under this chapter shall comply with applicable provisions of chapter 10 of the City Code, the adopted International Building Code including Appendix H, Signs, and the adopted National Electric Code unless otherwise provided in this chapter. Additional/supplemental requirements are provided under this chapter.

(1) No signs shall be erected on or over public property in a manner which interferes with any fire hydrant, traffic light, fire alarm box or street light. Similarly, off-premises signs and on-premises signs shall not be erected in any location where, by reason of traffic conditions, fire, or explosion hazards, the sign would imperil public safety or hamper the functions of the fire department.

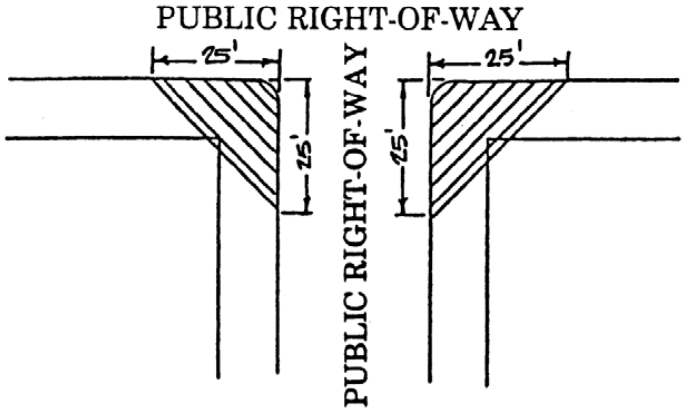
(2) All signs shall be securely fastened or anchored to a building wall, structural framing, or other foundation, with a sufficient number of bolts or anchors to resist the stress resulting from the dead weight of the sign and wind loads. The use of staples, wires, and wood plugs in erecting signs is prohibited.

(3) All signs governed by this chapter, excluding electric signs, shall be constructed of durable materials and securely attached to framework and supports made of wood, metal, or other similar material of equivalent strength. On-premises signs may be made of pressed wood. All electric signs shall have metal supports and frames.

(b) *Preventing obstructions.*

(1) All signs governed by this chapter shall be situated in a manner which does not interfere with or obstruct windows, doors, or other means of exit from a building. No sign shall be supported on or attached to any fire escape, door, or window casing.

(2) On any corner lot on which a front yard is required by the zoning ordinance of the city, no structure, including signs shall be maintained within the triangular area formed by the intersecting street lines and a straight line connecting such street lines, at points twenty-five (25) feet from the point of intersection measured along such street lines.



(3) Signs within the 25-foot triangular area public right-of-way described immediately above are illegal and are subject to removal without prior notification.

(4) Unless permitted by other sections of this chapter, signs within the public right-of-way but outside the 25-foot triangular area described above are presumed illegal and subject to penalties described in this chapter including, but not limited to, sign removal at owner's (if known) expense and other legal means, without prior notification. It is a rebuttable presumption that prior sign placement was legally authorized by this chapter or other legal means. This subsection shall not be interpreted to limit city authority to abate a public danger presented by an otherwise legal structure.

(c) *Clear vision area.* No sign shall be placed within the clear vision area defined in chapter 35.

(d) *Government signs.* Nothing in this chapter shall be construed to prevent or affect the display of insignia, legal notices or informational, directional or traffic signs which are legally required or necessary to the essential functions of government agencies.

(e) *Identification.* Every sign hereafter erected, constructed or maintained, for which a permit is required and for which engineering is required to obtain a permit, shall be plainly marked with the name of the person, firm or corporation erecting and maintaining such sign (license holder) and shall have affixed on the front thereof the permit number (AP) issued for said sign or other method of identification approved by the director.
(Ord. No. 2017-05-04-0297, § 1(Att. 1), 5-4-17)

Sec. 28-42. Minimum sign residential buffer/ setback and height restrictions.

Signs on property that abuts a single-family residential property shall meet the following minimum setback and height restrictions in addition to the other applicable sign provisions listed in chapter 28.

(1) Freestanding signs on properties abutting a platted lot that is zoned and used for single-family residential purposes shall require a minimum ten-foot setback from the property line abutting the residential property and be a maximum of eight (8) feet in height, except as provided below.

(2) Freestanding signs on properties abutting a platted lot that is zoned and used for single-family residential purposes may be erected to exceed eight (8) feet in height, provided that such sign is located back from the minimum ten (10) foot setback required above one (1) foot for each one (1) foot of height in excess of eight (8) feet prescribed above.

(3) This section shall not apply to a sign that is subject to an agreement between the sign owner and all owners of single-family property abutting and/or within one hundred (100) feet of the sign. The agreement shall: a) be in writing; b) signed by the owner of the sign and all owners of single-family property abutting and/or within one hundred (100) feet of the sign; c) identify the minimum permitted setback from the property line abutting the single-family residential property or properties; and d) identify the maximum permitted height of the sign. Note that the use of this provision shall not permit a minimum setback less than ten (10) feet and the agreed sign height shall not exceed that prescribed elsewhere in this chapter.

(4) The owner of a property that abuts a lot that is zoned and/or used for single-family residential purposes is entitled to place one (1) sign ("relocated sign") on an abutting platted lot that is zoned and used for commercial purposes ("relocation site"), subject to an agreement between the sign owner and the owner of the relocation site. A relocated sign shall be treated as an on-premises sign. The relocated sign agreement shall: a) be in writing; b) signed by the owner of the relocated sign and the owner of the relocation site; and c) identify the location of the relocated sign. A relocated sign may either be a freestanding sign or part of a multi-tenant sign on the relocation site. A relocated sign shall be in addition to any signage permitted on the relocation site and shall not be subject to the limitation on the number or spacing of signs permitted on the relocation site.

(Ord. No. 2017-05-04-0297, § 1(Att. 1), 5-4-17)

Sec. 28-43. Digital displays; general.

(a) All digital displays (both on-premise and off-premise) must meet the following general requirements in addition to any additional specific listed elsewhere in the code:

(1) A digital display may not display light of such intensity or brilliance to cause glare or otherwise impair the vision of the driver, or results in a nuisance to the driver.

(2) A digital display must not be configured to resemble a warning or danger signal or to cause a driver to mistake the digital sign for a warning or danger signal.

(3) A digital display must not resemble or simulate any lights or official signage used to control traffic in accordance with the 2003 Manual on Uniform Traffic

Control Devices, with Revision No. 1 published by the Federal Highway Administration (FHWA).

(4) A digital display is subject to all existing restrictions on light intensity or brilliance contained in chapter 35, the Unified Development Code, including, but not limited to, subsection 35-612.

(5) A digital display sign must be equipped with both a dimmer control and a photocell which automatically adjusts the display's intensity according to natural ambient light conditions.

(6) Digital display light intensity exceeding the following intensity levels (nits) constitutes "excessive intensity or brilliance":

Intensity Levels (NITS)		
Color	*Daytime*	*Nighttime*
Red Only	3150	1125
Green Only	6300	2250
Amber Only	4690	1675
Full Color	7000	2500

(7) In addition to the maximum intensity levels (NITS) listed above, all digital displays shall be illuminated at a level no greater than 0.3 footcandles over ambient light levels for the location and time and shall employ light cutoff devices such as, but not limited to, louvers in order to minimize light escaping above the horizontal plane. Footcandle readings shall be measured at ground level at the distances shown in the table below.

Sign Size (ft^2)	*Distance From Source*
0 to 100	100 feet
101 to 350	150 feet
351 to 650	200 feet
Over 651	250 feet

(8) As measured from the nearest residential property line, the maximum light emanation from an adjacent digital sign display shall be 0.2 footcandles.

(9) Prior to the issuance of any digital sign permit, the application shall include acknowledgement that the light intensity has been factory pre-set not to exceed seven thousand (7,000) NITS and that the intensity level is protected from end-user manipulation.

(10) The digital display must contain a default mechanism that will freeze the sign in one (1) position if a malfunction occurs. If the sign continues to be a danger to the traveling public, the digital display shall be turned off.

(11) Luminance shall be measured using a calibrated, certified luminance meter and/or photometer.

(12) Luminance measurements shall be taken during the hours between the end of evening civil twilight and the beginning of morning civil twilight

(13) At least five (5) measurements shall be made for each sign or sign areas, and the readings recorded.

(14) The recorded measurements, including the date and time made and the permit number for the sign(s) in question shall be documented in the city's permitting system.

(b) Existing signs. All digital displays, as defined, lawfully in existence prior to July 3, 2017 shall conform to the provisions of this article within one (1) year of ordinance passage; provided however, that incandescent or monochrome LED signs using a single display color and which are used exclusively to display text is excluded from the requirements of this provision.

(Ord. No. 2017-05-04-0297, § 1(Att. 1), 5-4-17; Ord. No. 2023-6-01-0369, § 1(Att. I), 6-1-23)

DIVISION 2. REGULATIONS BASED UPON SIGN CLASSIFICATION

Subdivision A. On-Premises Signs

Sec. 28-44. In general.

(a) *Special districts.* Specific regulations for historic landmarks and districts, neighborhood conservation districts, corridor districts, river

improvement overlay districts and other overlay districts are contained in chapter 35 of this Code.

(b) *Freestanding, multiple-tenant signs in non-residential zoning districts.* Freestanding, multiple-tenant signs twenty-five (25) feet or more in height in non-residential zoning districts shall contain the address number of the sign clearly visible from the street with each numeral being a minimum of six (6) inches in height. Those signs less than twenty-five (25) feet in height shall contain an address number of the sign with each numeral being a minimum of three (3) inches in height. The portion of the sign utilized for minimum compliance with this subsection shall not be included in the calculation of sign area.

(c) **Incidental/way finding signs.** Incidental/way finding signs may be erected in the city within the premises of an apartment complex and subdivision and commercial properties provided the signs do not exceed thirty-two (32) square feet in area and twelve (12) feet in height and they comply with applicable sections of chapters 35 and 37, but not spacing requirements. Under no circumstance shall any sign be erected so as to erode the safety and security of the traveling public.
(Ord. No. 2017-05-04-0297, § 1(Att. 1), 5-4-17)

Sec. 28-45. Sign height and area.

(a) Height computation. The height of a sign shall be computed as the distance from the ground level of the sign to the top of the highest attached component of the sign.

(b) Sign area.

(1) *Total-sign area computation.* The area of a sign shall be computed on the actual area of the sign. Included in the actual area shall be any open space which gives definition to the sign including the shape of any writing, object, representations, emblems, or other displays. Any border which forms an integral part of the background of the display, or differentiates the sign from the backdrop or structure against which it is placed should also be included in the actual total-sign area. The computation of sign area shall not include any structure, bracing, or wall that is necessary to support the sign.

(2) *Double-faced signs.* The area of a sign shall be computed on a sign face basis and all requirements with respect to sign area refer to the area of a single face. A double-faced sign shall be permitted to have the allowed area for a single-faced sign on each of the two (2) faces of the sign.

(3) *Three-dimensional signs.* For three-dimensional signs and objects, the sign area is the rectangle within which the largest two-dimensional projection (silhouette) of the object can be enclosed.

(4) *Channel letter signs.* For channel letter signs, the sign area shall be the smallest rectangle that will encompass the limits of the writing, including spaces between the letters. Each advertising message shall be considered separately.

(5) *Lots fronting on two (2) or more streets.* Platted lots fronting on two (2) or more streets are allowed the permitted freestanding signage for each frontage, but such signage cannot be transferred from one frontage to another.

(c) Height and size limitation.

(1) For the first freestanding sign on a lot, the height and size maximum shall be in accordance with Table 1 and/or Table 2 if applicable. All subsequent freestanding signs on the lot shall not exceed seventy-five (75) percent of the allowable height and size specified in the appropriate table(s).

On lots with frontage on more than one (1) street, the same shall apply for each street.

(2) One (1) freestanding sign shall be permitted for each one hundred fifty (150) feet of street frontage. On lots with frontage on more than one (1) street, the same shall apply for each street. All allowed

freestanding signs shall be in accordance with Table 1 and/or Table 2 as specified in subsection (1) above.

Table 1
Maximum-Allowable Heights and Sizes for Freestanding Signs in Nonresidential Zoning Districts

Street Classification	*Height (Ft.)*	*Size (SF)*
Local	16 ft	75 ft
Arterial Type B/ Commercial Collector	24 ft	150 ft
Arterial Type A	40 ft	240 ft
Expressway	50 ft*	375 ft

* Not to exceed fifty (50) feet in height above the adjacent street grade, measured from the grade level of the centerline of the main-traveled way, not including a frontage road or controlled access highway, closest to the sign at a point perpendicular to the sign location, not to exceed a maximum of sixty (60) feet above ground level.

** Note: Sign height and square footage may vary depending on special districts and overlays.

(d) Height and size limitation. Freestanding multiple tenant signs in nonresidential zoning districts shall be limited in height and size in accordance with Table 2.

Table 2
Maximum Allowable Heights and Sizes for Freestanding Multiple Tenant Signs in Nonresidential Zoning Districts

Street Classification	*Height (Ft.)*	*Size (SF)*
Local	20 ft	125 ft
Arterial Type B/ Commercial Collector	32 ft	250 ft
Arterial Type A	50 ft	500 ft
Expressway	60 ft(2)	650 ft(1)

(1) The maximum size for an individual tenant's portion of a freestanding multiple tenant sign in a nonresidential zoning district may not exceed the maximum size allowed for a freestanding sign in a nonresidential zoning district as specified in Table 1 of this section.

(2) Not to exceed sixty (60) feet in height above the adjacent street grade, measured from the grade level of the centerline of the main-traveled way, not including a frontage road or controlled access highway, closest to the sign at a point perpendicular to the sign location, not to exceed a maximum of seventy (70) feet above ground level.

** Note: Sign height and square footage may vary depending on special districts and overlays.

(e) No single tenant shall exceed three hundred seventy-five (375) square feet of advertising on a multi-tenant sign at any given time. This provision is intended to address hybrid static and changeable copy multi-tenant signs.

(f) The expressway standards set out in Tables 1 and 2, excluding the 10 ft increase for adjacent grade allowance, shall also apply to lots, or any portion of lots, located within five hundred (500) feet of an expressway where said lot or lots do not have frontage on an expressway. If an expressway size sign is erected on a lot which does not have expressway frontage, said sign shall be setback a minimum of one hundred (100) feet from the nearest street easement or right-of-way and a minimum of two hundred (200) feet from the nearest residential zone. Said sign or signs shall be oriented to the expressway.
(Ord. No. 2017-05-04-0297, § 1(Att. 1), 5-4-17; Ord. No. 2023-6-01-0369, § 1(Att. I), 6-1-23)

Sec. 28-46. Provisions applicable to residential zoning districts.

(a) The provisions of this section apply to all signs in any residential zoning district and within a radius of one hundred (100) feet of a residential zoning district or a public park boundary.

(b) The following signs are allowed in residential zones:

(1) One (1) attached, non-illuminated nameplate identifying a business authorized in that zoning district not to exceed one (1) square foot in sign area.

(2) Freestanding signs are allowed in accordance with Table 1 for residential R-2 and 3 occupancy types defined per the currently adopted International Building Code under chapter 10. In addition, one (1) identification sign per entrance is allowed.

(3) For nonresidential uses:

a. On local streets, one (1) freestanding sign and one (1) attached sign, each not to exceed thirty-six (36) square feet in sign area are allowed.

b. With primary frontage on arterials/commercial collectors and expressways, freestanding signs are allowed in accordance with Table 1.

c. Digital signs are permitted under a. and b. above in accordance with this article IV, division 1, In general, sections 28-41 and 28-48.

d. For local streets and residential collectors in residential zones, freestanding signs are limited to a maximum height of eight (8) feet and must be set back a minimum of fifteen (15) feet from any public right-of-way and ten (10) feet from side and rear lot lines abutting residential uses. No portion of an illuminated non-digital sign shall have a luminance greater than two hundred (200) foot candles as measured within six (6) inches of the sign face.

e. No sign or part of any sign regulated under this section 28-44 shall move, flash, rotate, or change its illumination.

(Ord. No. 2017-05-04-0297, § 1(Att. 1), 5-4-17; Ord. No. 2023-6-01-0369, § 1(Att. I), 6-1-23)

Sec. 28-47. Provisions applicable to nonresidential zoning districts.

(a) The number and size of signs allowed in nonresidential zoning districts are based on Tables 1 and 2 of this article and the street classification as specified in the major thoroughfare plan, article IV of the Unified Development Code and the definitions included in this chapter.

(b) Local streets.

(1) *Freestanding signs.*

a. One (1) freestanding sign per platted lot is permitted; provided, however, on lots with frontage on more than one (1) street, one (1) sign shall be allowed on each street on which the lot has frontage.

b. The sign shall be set back a minimum of five (5) feet from the street right-of-way and ten (10) feet from all interior side lot lines.

c. In addition to other authorized signs, businesses shall be allowed up to eight (8) square feet of sign area. If attached to a freestanding sign, the area of this sign shall be counted toward the allowable area for the freestanding sign.

(2) *Attached signs.* The aggregate area of all attached signs shall not exceed twenty-five (25) percent of a building facade or fifty (50) square feet for each occupancy that has a separate and distinct public entrance, whichever is greater.

(c) Arterials type A and B/Commercial collectors.

(1) *Freestanding signs.*

a. One (1) freestanding sign per platted lot is permitted; provided, however, on lots with frontage on more than one (1) street, one (1) sign shall be allowed on each street on which the lot has frontage. Additional freestanding signs are permitted with a minimum spacing of every one hundred fifty (150) linear feet. Additional freestanding signs shall not exceed seventy-five (75) percent of the allowable height and size set out in Tables 1 and 2 of this article.

b. Signs shall be set back a minimum of ten (10) feet from street rights-of-way if the height of the sign exceeds twenty-five (25) feet. Signs shall be set back a minimum of ten (10) feet from side or rear lot lines if the adjacent property is zoned residential or is used for residential.

(2) *Attached signs.* The aggregate area of all attached signs shall not exceed twenty-five (25) percent of a building facade or

seventy-five (75) square feet for each occupancy that has a separate and distinct public entrance, whichever is greater.

(d) Expressways.

(1) *Freestanding signs.*

a. One (1) freestanding sign per platted lot is permitted; provided, however, on lots with frontage on more than one (1) street, one (1) sign shall be allowed on each street on which the lot has frontage. Additional freestanding signs are permitted with a minimum spacing of every one hundred fifty (150) linear feet. Additional freestanding signs shall not exceed seventy-five (75) percent of the allowable height and size set out in Tables 1 and 2 of this division.

b. Setback requirements follow subsection (c)(1)b. for arterials immediately above.

(2) *Attached signs.* The aggregate area of all attached signs shall not exceed twenty-five (25) percent of a building facade or one hundred (100) square feet for each occupancy that has a separate and distinct public entrance, whichever is greater.

(e) Special regulations for nonresidential zoning districts.

(1) *Menu boards.* Menu boards shall be oriented to internal vehicular traffic and shall not be directed to traffic on adjacent streets.

(2) *Wall signs.* All channel letter signs shall not extend more than eighteen (18) inches from the facade.

(3) *Ground-mounted flag/feather type signs.* In addition to other authorized signs, businesses shall be allowed ground-mounted flag/feather type signs on the non-residential lot provided all the following conditions listed below are met.

a. The ground-mounted flag/feather type sign is securely attached to the ground by an approved mounting system designed for its specific purpose and to ensure the safety of the sign and citizens.

b. No sign shall be so installed/located as to create an obstruction that would interfere with use of any public right-of-way or to create a visual obstruction/traffic hazard to motorists.

c. The sign is installed on non-residentially zoned and/or non-residentially used private property. It may not be located on the public right-of-way.

d. The sign has a maximum area of twenty (20) square feet and maximum height of twelve (12) feet measured from ground to top of the sign.

e. Each ground-mounted flag-feather type flag is spaced/separated from any other ground mounted flag/feather type sign a minimum of fifty (50) feet.

Exception: Up to three (3) ground-mounted feather type flags may be installed in a grouping with less than fifty (50) feet separation, so long as the grouping is separated from another individual and/or grouping of ground-mounted feather type flags.

Commentary: Note ground-mounted flag/feather type devices without lettering or symbols are not considered signs per this section are therefore are not regulated as such. Note that while these devices without letters or symbols are not considered signs they are still not permitted to be installed in the public right-of-way.

(4) *Projecting signs.*

a. *Installation on a pipe.* In instances where a building is set back from

the property line, a projecting sign may be installed on a pipe overhanging the sidewalk provided that:

1. The pipe is set inside the property line unless the line is more than twenty-five (25) feet away from the street curb. In the latter instance, the pipe shall be set at the property side of the sidewalk, or if there is no sidewalk, no closer than ten (10) feet to the curb. If the pipe is set in an area that can be traversed by vehicles, it shall be surrounded by curbing as specified by the director.
2. Projecting signs must comply with the regulation clearances over sidewalks and distances from curb lines.
3. No wooden poles or timbers shall be used. Only sound straight, steel, galvanized, or iron pipes in good condition, free from all major flaws and defects, and painted with weatherproof paint, are authorized.
4. All pipes must be set at least three (3) feet in the ground and embedded in concrete; however, this subsection shall not apply to any existing sign hung under the auspices of a special permit which is still valid issued by the director of housing and inspections before April 11, 1940.
5. The cross arms of angle iron for side guys are to be bolted or welded to the pipes in a secure manner, and side guys are to be of galvanized cable.
6. The pipe must extend far enough above the top of the sign to provide space for a suitable headlift which must be of galvanized cable.
7. All pipes must be of sufficient diameter and strength to properly support the weight of the signs which are to be installed on them. The minimum size of the pipe in relation to the weight shall be as follows:

Weight in Pounds	*Size in Inches*
Up to 175	3
175—250	4
>250—325	5
>325—400	6

8. All pipes used for signs weighing in excess of one hundred (100) pounds must be of the well casing type or the equivalent. Lighter weight pipe may be used for signs weighing one hundred (100) pounds or less and situated entirely within the property lines. In no case may a sign be supported by a pipe less than three (3) inches in diameter.

b. *Installation not on a pipe.* In addition to section 28-41 above, projecting signs shall not be erected so as to overhang any street, alley, or plaza. Such signs may extend into the public right-of-way from the building facade provided the space is not used for, or designed to be used for, vehicular ingress and egress to a building for a maximum distance of eight (8) feet or a distance equal to two-thirds (⅔) the width of the abutting sidewalk, whichever distance is greater. However, the horizontal clearance between any portion of the sign and the curb line shall not be less than two (2) feet. Projecting signs shall not exceed one hundred fifty (150) square feet in sign area and shall be a minimum of eight and one-half (8½) feet above the adjacent sidewalk or grade.

(5) *Awning and canopy signs.* See section 28-41 of this chapter and specifically, Sections 3105 and 3106 of the International Building Code.

(6) *Marquee signs.* See section 28-41 of this chapter and specifically, Appendix H of the International Building Code.

(7) *Incidental signs.* Incidental signs may be erected on any platted lot without limit to number, provided the signs do not exceed thirty-two (32) square feet in area or twelve (12) feet in height. These signs are not required to meet spacing requirements.

(8) *Pole signs.* A pole, post or standard used to support any sign or floodlight shall not be set in or upon any sidewalk, street or other public property. See section 28-41 for general construction requirements.

(9) *Roof signs.* See section 28-41. In addition:

a. Roof signs may be used for on-premises advertising only.

b. Roof signs, except electrical signs, shall not exceed thirty-two (32) feet in total height above that portion of the roof of the building, or structure, over which they are erected. All such signs hall be constructed of durable material and shall be set back a minimum of seven (7) feet from the inside line of the exterior wall of the building, the distance being measured at right angles to the line of the wall. An open space of not less than six (6) feet shall be maintained below the bottom of the sign and the roof, except for necessary vertical supports. Adequate provision shall also be made for grounding metallic parts of all roof signs as a protection against lightning. No roof signs shall be erected so as to extend over a sidewalk, street, or other public property.

c. All existing off-premises signs classified as roof signs and registered with the city by September 22, 1984 are awarded nonconforming status. This nonconforming status is valid so long as the sign is used solely for off-premises advertising. A change from off-premises to on-premises advertising revokes the nonconforming status of the sign immediately.

(Ord. No. 2017-05-04-0297, § 1(Att. 1), 5-4-17)

Sec. 28-48. Digital displays and projections; on-premises.

Specific requirements. In addition to general digital display requirements in division 1, In general, above, on-premises sign digital displays shall comply with the following:

(1) *Light intensity.* Footcandle readings shall be no more than as stated in the general digital display requirements measured at ground level at the distances shown in Table 3.

Table 3

Sign Size (ft^2)	*Distance From Source*
0 to 100	100 feet
101 to 350	150 feet
351 to 650	200 feet
Over 651	250 feet

(2) *Standards.*

a. Use of digital projection and video is prohibited on displays greater than thirty-two (32) square feet.

b. Use of flashing, strobing or scrolling line-travel text such as, but not limited to, "ticker-tape" is prohibited.

c. Use of sound is prohibited.

(3) *Placement.*

a. No more than one (1) two-sided digital display per each freestanding sign structure is permitted.

b. No more than one (1) two-sided digital display is permitted for each street frontage for an individual premise.

c. Minimum spacing between electronic message centers is two hundred (200) feet.

(4) *Sign dimensions.*

a. Digital displays shall be permitted at heights and areas in accordance with Table 2.

b. In no case shall any digital display exceed three hundred seventy-five (375) square feet nor exceed sixty (60) feet in overall height.

(Ord. No. 2017-05-04-0297, § 1(Att. 1), 5-4-17; Ord. No. 2023-6-01-0369, § 1(Att. I), 6-1-23)

Editor's note—Ord. No. 2023-6-01-0369, § 1(Att. I), 6-1-2023, amended § 28-48, and in so doing changed the title of said section from digital displays; on-premises to read as set out herein.

Sec. 28-49. Sign master plan development agreement.

(a) *Purpose.* Designation of an area for a sign master plan will allow flexibility in signage location in exchange for a minimum twenty-five (25) percent cumulative reduction in both total sign area and sign height within the master plan area. Note that this is in addition to the twenty-five (25) percent mandatory reduction for secondary signage.

(b) *Requirements.* Commercial property owners who want more flexibility in locating on-premises signs can do so by entering into a sign master plan development agreement. To qualify for a sign master plan an area must:

(1) Include two (2) or more contiguous lots, which may be separated by a street or drainage rights-of-way, that are not included in any other sign master plan development agreement.

(2) The owners of all lots within the sign master plan development agreement must agree in writing that neither they nor their successors in ownership shall exceed the maximum height, square footage and number set out in this article on any of the lots within the plan.

(3) All existing signs within the sign master plan development agreement must be in conformance with this article.

Once approved, the applicant's sign master plan area will be defined as a single premises for the purpose of determining whether a sign is an on-premises sign. A sign which advertises a use on a lot within the plan area which is not a use which occurs on that lot shall be termed a sign master plan (SMP) sign. The use advertised on an SMP sign shall be termed an SMP use.

The square footage and height of an SMP sign shall be subtracted from the square footage and height of the allowable on-premises signs on the lot where the SMP use occurs. In no case shall the square footage, height and number of signs on any lot in a plan area exceed the maximum amounts allowed in this article.

(c) *Submittal requirements.*

(1) A sign master plan must be submitted to the director for consideration.

(2) All land owners included in the sign master plan must submit:

a. A letter signed by all the property owners in the plan area agreeing to the terms of the plan and that they and their successors will abide by the plan.

b. A site plan showing the sign master plan area boundaries.

c. A site plan showing the location of all signage.

d. A table showing the square footage and heights of all signs throughout the plan by lot.

(3) The director may approve the sign master plan (SMP), approve the SMP with conditions, or deny the SMP. Once approved, the applicant must record the SMP in the official deed records for Bexar County, Texas. The department shall not issue permits unless and until the applicant provides proof of recordation.

(4) Appeals shall be considered in accordance with appellate provisions of this chapter.

Commentary: This subsection shall not be interpreted to exclude an owner of separate parcels from entering into a sign master plan agreement.

(d) *Changes to sign master plan development agreement.* If changes or amendments to a sign master plan are being requested by a property owner whose property is subject to the respective sign master plan, then all property owners within that sign master plan shall have six (6) months to respond to the suggested changes or amendments made by the proposing property owner. A failure of the property owner(s) or their representatives to respond to no less than three (3) Building Official approved and documented attempts to inform the property owners of the proposed changes and allow feedback on the proposed change(s), shall result in a finding of no objection the proposed changes to the plan. However, the sign master plan changes cannot negatively impact the party(s) that fail to respond to the proposed changes. Section (d) only applies to Sign Master Plans created after the effective date of this section of the sign ordinance, and reference to this section of the sign ordinance shall be included in future sign master plans for notice purposes.
(Ord. No. 2017-05-04-0297, § 1(Att. 1), 5-4-17; Ord. No. 2023-6-01-0369, § 1(Att. I), 6-1-23)

Sec. 28-50. Nonconforming sign abatement.

(a) *Continuance.* Any nonconforming sign may be continued in operation and maintained after the effective date of this chapter; provided, however, that no such sign shall be changed in any manner that increases its noncompliance with the provisions of this chapter; and, provided further, that the burden of establishing such a sign to be nonconforming under this section rests entirely upon the person claiming nonconforming status.

(b) *Freestanding signs and multi-tenant signs.* Freestanding pole signs and freestanding, multi-tenant pole signs that are nonconforming due to square footage, height, or spacing requirements may be refaced and/or have general maintenance performed. In general, whenever the sign cabinet is removed and lowered to the ground to facilitate the general maintenance and/or refacing due to property or personnel safety consideration considerations, it shall, at that time, lose its nonconforming status unless a permit is issued prior to doing so. The contractor shall submit a written request, prior to removal of the sign cabinet, outlining the proposed work to be performed, dates for accomplishment of same and property or personnel safety considerations involved. If approved, the contractor shall be issued a basic sign inspection permit and shall request an inspection on said permitted sign when the sign cabinet is first taken down and again just prior to re-installation. When the sign cabinet is first lowered to the ground, the license holder of record for the company shall supply an independent third party evaluation in writing by a Texas licensed structural engineer as to the structural integrity of the sign cabinet and its structural supports. If it is determined that the sign cabinet or structural supports are not structurally sound, the sign shall, at that time, lose its nonconforming status as outlined below. A nonconforming sign will lose its status as nonconforming upon a failure to gain approval and have the sign inspection permit issued prior to the sign cabinet being taken down.

Commentary: It is the intent of this section for nonconforming signs to continue in existence for the usable life span of the sign and not have years of noncompliance increased through reconstruction. Maintenance pertaining to a nonconforming sign ("nonconforming maintenance") by definition is distinguished from maintenance and shall be used for all off-premises signs classified as nonconforming.

(c) *Registered trademarks.* Notwithstanding any other provision of this chapter, a nonconforming registered "trademark sign" may be refaced and modified so as to prevent misidentification with the registered trademark. The original height or width of the "trademark sign" shall not be increased when the sign is modified.

(d) *Termination of nonconforming rights.*

(1) *By abandonment.* Abandonment of a nonconforming sign shall terminate the

right to maintain such sign in accordance with the abandoned sign procedure of this chapter.

(2) *By violation of sign provisions.* Any violation of these provisions shall terminate immediately the right to maintain a nonconforming sign.

(3) *By damage or deterioration.* The right to maintain any nonconforming sign shall terminate and shall cease to exist whenever the sign assembly is damaged or deteriorated as described in section 28-9 above.

(Ord. No. 2017-05-04-0297, § 1(Att. 1), 5-4-17)

Subdivision B. Off-Premises Signs

Sec. 28-51. In general.

New off-premises signs are prohibited in the city and no new construction permits shall be issued unless for a relocation of a legally erected, existing, off-premises sign as authorized under this chapter 28.

Comment: See subsection 28-31(d) for relocation of existing off-premises signs.

(Ord. No. 2017-05-04-0297, § 1(Att. 1), 5-4-17)

Sec. 28-52. Sign specifications and maintenance.

Authorized off-premises signs shall comply with the following specifications:

(1) *Height.* All off-premises signs erected after July 3, 2017 shall not exceed forty-two and one-half (42½) feet in height above the adjacent street grade, measured from the grade level of the centerline of the main-traveled way, not including a frontage road or controlled access highway, closest to the sign at a point perpendicular to the sign location; not to exceed a maximum of sixty (60) feet above ground level.

(2) *Spacing.* Any sign relocation must meet the following spacing requirements:

a. On interstates, freeways or expressway systems, off-premises signs up to six hundred seventy-two (672) square feet shall not be closer than one thousand five hundred (1,500) feet along one (1) side of the roadway.

b. On primary and secondary arterial streets, off-premises signs up to three hundred ninety-nine (399) square feet shall not be closer to any other off-premises sign than seven hundred fifty (750) feet along one (1) side of the roadway; on secondary arterial streets, off-premises signs ninety-nine (99) square feet and less shall not be erected closer than five hundred (500) feet along one (1) side of the roadway.

c. On collector and local access streets, off-premises signs ninety-nine (99) square feet and less shall not be erected closer than five hundred (500) feet along one side of the roadway.

(3) *Setback.*

a. *Generally.* An off-premises sign may be installed on a side or rear property line provided the lot is zoned to permit zero (0) setbacks, and the adjoining zoning classifications are not residential. No part of the sign, its support structure, light fixtures, or catwalks may overhang the property line. An off-premises sign erected adjacent to residentially zoned property shall observe the side and rear yard setbacks required by the zoning ordinance. In such instances light fixtures and catwalks may overhang the setback lines no more than six (6) feet. However, no part of the sign face or its support structure shall overhang the setback lines.

b. *Large off-premises signs.* Off-premises signs greater than seventy-five (75) square feet must comply with all property setback lines established in chapter 35 for the

applicable zoning category and set back a minimum of thirty (30) feet from adjacent residential zones. All off-premises signs greater than seventy-five (75) square feet must be setback from the following facilities, districts, and parks as specified below:

1. *Large urban parks.* A 1,000-foot radius from the park boundaries.
2. *Publicly owned and operated sports complexes.* A 500-foot radius from the complex boundaries.
3. *Community parks.* A 300-foot radius from the park boundaries.
4. *Neighborhood parks.* A 200-foot radius from the park boundaries.
5. *Cultural facilities.* A 500-foot radius from the facility boundary.
6. *Historic buildings and structures.* A 200-foot radius from the building or structure.
7. *Historic districts.* A 500-foot radius from the district boundary.
8. *Universities and colleges.* Off-premises signs in excess of seventy-five (75) square feet shall not be permitted on the opposite side of a public street bordering a university or college.

c. *Small off-premises signs.* Off-premises signs which measure seventy-five (75) square feet or less of sign face shall adhere to property lines, but are not required to conform to the other setback limits established in this chapter.

d. *Distance from overpass, etc., railings.* All off-premises signs shall be set back a distance of at least fifteen (15) feet from the railing of an overpass or bridge on any road, street, highway, or expressway.

e. *Commentary.* All park definitions are taken from the San Antonio Parks Plan, 1981 edition. A publicly owned sports complex is meant to be a facility such as the Alvo Jo Fischer or Kennedy Softball Complexes. The radius setback requirements do not apply to private parks, country clubs, etc., which are not open to the general public. Any legally erected off-premises sign which no longer conforms to the provisions of this chapter due to the creation of a new park, historic district, etc., shall be officially recognized as nonconforming by the director according to the requirements established in section 28-55. Off-premises signs are no longer permitted within historic districts. Existing off-premises signs in historic districts are awarded nonconforming status in accordance with the provisions of section 28-55.

(4) *Area.*

a. The maximum size of the sign face, as viewed from one (1) direction, for any off-premises sign is:

1. Six hundred seventy-two (672) square feet along freeways, expressways and interstate highways.
2. Three hundred ninety-nine (399) square feet along arterials.
3. Ninety-nine (99) square feet along collectors and local access streets.

b. The square footage requirements specified in paragraphs (1)a. through c. pertain to the sign face per se. Embellishments and cutouts, may be utilized on off-premises signs as long as these extensions do not

measure more than twenty (20) percent of the allowable square footage for the sign face.

(5) *Inspection.* All legally erected and registered off-premises signs, including relocations, must be inspected upon construction and thereafter annually. This inspection includes maintenance and structural deficiency evaluation and may require, if necessary, further inspection by a licensed engineer and remediation. The operator or owner must pay an annual inspection fee as provided in the fee schedule for each registered sign. The annual inspection fee is payable within thirty (30) days after the beginning of each fiscal year. Failure to pay the annual inspection fee or within this time period is a violation of this chapter and punishable as prescribed.

(6) *Construction requirements.*

a. The following are considered to be routine maintenance activities that do not require an amended permit:
   1. The replacement of nuts and bolts;
   2. Nailing, riveting, or welding;
   3. Cleaning and painting;
   4. Manipulation of the sign structure to level or plumb it;
   5. Changing of the advertising message;
   6. The replacement of minor parts if the materials of the minor parts are the same type as those being replaced and the basic design or structure of the sign is not altered;
   7. Changing all or part of the sign structure but only if materials similar to those of the sign structure being replaced are used; and
   8. Upgrading existing lighting for an energy efficient lighting system.

b. The following are considered to be customary maintenance activities that may be made but require an amended permit before the initiation of such an activity:
   1. Replacement of poles, but only if not more than one-half of the total number of poles of the sign structure are replaced in any 12-month period and the same material is used for the replacement poles; and
   2. Adding a catwalk to the sign structure.

c. The following are examples of substantial changes that may be made but require an amended permit before the initiation of such an activity:
   1. Adding lights to an un-illuminated sign
   2. Changing the number of poles in the sign structure;
   3. Adding permanent bracing wires, guy wires, or other reinforcing devices;
   4. Changing the material used in the construction of the sign structure, such as replacing wooden material with metal material;
   5. Adding faces to a sign or changing the sign configuration;
   6. Increasing the height of the sign;
   7. Changing the configuration of the sign structure, such as changing a "V" sign to a stacked or back to back sign, or a single face sign to a back-to back sign; and
   8. Moving the sign structure or sign face.

d. To add a catwalk to a sign structure the catwalk must meet Occupational Safety and Health Administration guidelines.

(Ord. No. 2017-05-04-0297, § 1(Att. 1), 5-4-17; Ord. No. 2023-6-01-0369, § 1(Att. I), 6-1-23)

Sec. 28-53. Display prohibitions.

(a) *In general.* Off-premises signs which 1) utilize intermittent or flashing illumination devices; 2) change light intensity, brightness or color; 3) are constructed and operated so as to create an appearance or illusion of motion; or 4) utilize sound, are strictly prohibited.

(b) *Exception.* Light intensity, brightness or color regulations specific to off premises digital signs are addressed in section 28-54 immediately below.
(Ord. No. 2017-05-04-0297, § 1(Att. 1), 5-4-17)

Sec. 28-54. Digital displays; off-premise.

(a) New, off-premise digital signs are prohibited within the jurisdiction of the city, provided however, that the director was previously authorized to issue fifteen (15) off-premise digital sign permits pursuant to Ordinance No. 2007-12-06-1247. The director may be authorized to issue additional off-premise digital sign permits pursuant to any future pilot program ordinance adopted by city council. Existing off-premise digital signs are subject to this section and all other relevant provisions of this chapter, the City Code, and state and federal law.

Commentary: Under the one (1) year pilot program, thirteen (13) off-premises digital signs were permitted. No new off-premise digital signs are permitted in the city or the ETJ, with the exception of one additional digital sign permit authorized by city council ordinance, and the ten (10) permits authorized by city council through the Digital Media and Arts pilot program. The thirteen (13) existing off-premises digital displays that were approved, and any additional approved off-premises digital displays, are required to be maintained in accordance with the requirements listed here in this section.

(b) Off-premises sign operators testing or maintaining existing off-premise digital signs shall comply with the following requirements:

(1) The dwell time, defined as the interval of change between each individual message, shall be at least ten (10) seconds, and a change of message must be accomplished within one (1) second or less. The dwell time shall not include the one (1) second or less required to change a message.

(2) The off-premises digital sign shall contain a default mechanism that will freeze the sign in one (1) position if a malfunction occurs.

(3) The off-premises digital sign may not display light of such intensity or brilliance to cause glare or otherwise impair the vision of the driver, or results in a nuisance to the driver.

a. Off-premises digital sign light intensity exceeding 0.3 footcandles or the following intensity levels (nits) constitutes "excessive intensity or brilliance":

Intensity Levels (NITS)		
Color	*Daytime*	*Nighttime*
Red Only	3,150	1,125
Green Only	6,300	2,250
Amber Only	4,690	1,675
Full Color	7,000	2,500

b. Prior to the issuance of a sign permit, the applicant shall provide written certification from the sign manufacturer that the light intensity has been factory pre-set not to exceed seven thousand (7,000) NITS and that the intensity level is protected from end-user manipulation by password-protected software or other method as deemed appropriate by the director.

(4) The off-premises digital sign shall not be configured to resemble a warning or danger signal or to cause a driver to mistake the digital sign for a warning or danger signal.

(5) An off-premises digital sign is subject to all existing restrictions on light intensity or brilliance contained in chapter 35 of the Unified Development Code, including but not limited to subsection 35-612(p)(6).

(6) An off-premises digital sign must not resemble or simulate any lights or official signage used to control traffic in

accordance with the 2003 Manual on Uniform Traffic Control Devices, with Revision No. 1 published by the Federal Highway Administration (FHWA).

(7) An off-premises digital sign must be equipped with both a dimmer control and a photocell, which automatically adjusts the display's intensity according to natural ambient light conditions.

(8) Except for a sign that qualifies as nonconforming under section 28-55, an off-premises digital sign must comply with sign face size restrictions set forth in section 28-52. A nonconforming sign may not be enlarged beyond its present size without forfeiting its nonconforming status.

(9) An off-premises digital sign may not be within two thousand (2,000) feet of another off-premise digital sign facing the same traveled way. In no case shall an off-premise digital sign be in a line of sight with another off-premise digital sign. Spacing requirements for off-premise digital signs in relation to other classifications of signs shall comply with section 28-52.

(c) The city, through appropriate personnel, may exercise its police powers to protect public health, safety, and welfare by requiring emergency information to be displayed via digital signs. Upon notification, the off-premises sign operators shall display in appropriate sign rotations: Amber Alert emergency information or emergency information regarding terrorist attacks, or natural disasters. Emergency information messages are to remain in rotation according to the designated issuing agencies protocols.

(d) Notwithstanding subsection (a) above, the owner of an existing legally permitted off-premises digital sign erected under the 2007 one-year pilot program may place a second digital display of nor more than six hundred seventy-two (672) square feet on the backside of the existing digital sign provided that the following conditions are met:

(1) For each additional digital display, the owner shall completely remove four (4) square feet of sign face off an existing off-premises sign for one (1) square foot of digital display.

a. The sign faces must be removed prior to receiving a permit for each digital display.

b. If a face is removed from a structure, the entire sign assembly must be removed.

c. No credit will be given for the area of the sign face removed to convert to a digital display.

d. For each additional digital display, at least one (1) sign assembly must contain a minimum of one (1) face of approximately six hundred seventy-two (672) square feet and be removed from designated protected corridors and overlays.

(2) An off-premises digital sign owner, with approval by the city, may make alterations to the digital signs as necessary to deploy the additional digital displays.

(3) An off-premises digital sign owner must apply for all necessary permits within six (6) months of the approval of this article.

(4) An owner who deploys a digital display under this subsection must, in addition to the above, remove any permitted sign assembly from within the city containing a sign face smaller than one hundred (100) square feet. Removal of the signs must be completed within eighteen (18) months of the approval of the ordinance, with at least one-third (⅓) of the operator's inventory removed within twelve (12) months of the approval of the ordinance. Upon good cause shown, the director may grant an extension for the removals of no more than ninety (90) days.

(e) The owner of a sign qualifying for a second digital display under subsection (d) above that did not deploy the display during the allotted time may place a second display so long as all permits have been applied for within nine (9) months of the approval of this article. Such

placement may only occur if all other applicable requirements of subsection (d) have been satisfied.

(f) Notwithstanding subsection (a) above, as of the latest date of this ordinance, for a three (3) year period, the owner of an existing legally permitted off-premises sign structure may place up to two digital displays of no more than six hundred seventy-two (672) square feet each on the structure, provided that the following conditions are met:

(1) The sign structure is not located within the following areas:

a. Downtown area within the following boundaries:

1. Both sides of I.H. 10, an expressway, between South Alamo Street to I.H. 35 for a distance of five hundred (500) feet from the street right-of-way.

2. Both sides of I.H. 35, an expressway, between I.H. 10 to I.H. 37 for a distance of five hundred (500) feet from the street right-of-way.

3. Both sides of I.H. 37, an expressway, between I.H. 35 to Carolina Street for a distance of five hundred (500) feet from the street right-of-way.

4. Both sides of I.H. 10,/Highway 90, an expressway, in the Mission Reach Overlay District for a distance of five hundred (500) feet from the street right-of-way.

b. Any street categorized as an Arterial Street or smaller, excluding locations where the structure is located on an arterial or smaller street but oriented toward the expressway and the structure is within one-hundred (100) feet from the expressway right-of-way.

c. A historic overlay district.

d. Both sides of I.H. 37, an expressway, between the south most intersection of I.H. 37 and Jones Maltsberger Road and I.H. 35 for a distance of five hundred (500) feet from the street right-of-way.

e. Within five hundred (500) feet of a structure located on a property zoned HL, HE, or HS.

f. Within two thousand (2000) feet of another digital off-premises sign.

g. Within two thousand (2000) feet of the city limits for City of San Antonio.

h. Within one thousand five hundred (1,500) feet of another existing legally permitted off-premises sign structure.

i. Within ten (10) feet of the adjacent expressway.

j. Within the Hill Country Gateway Corridor, GC-1, as defined per the 2003 Ordinance 97656.

(2) The new digital display shall comply with the following:

a. Digital Sign lighting requirements per the MLOD Standards per the Uniform Development Code Section 35-339.04.

b. The orientation to the highway of the existing sign structure shall not be modified.

c. The height of the existing sign structure shall not be increased. And the structure was not changed in height under a height adjustment permit within the past three (3) years.

d. A minimum of forty (40) hours of public service announcement time shall be provided to the City of San Antonio each year, initially starting at the activation of the sign and renewing at the start of each calendar year.

(3) Takedown credits, utilization and requirements.

a. Takedown credits will be accrued through the removal of existing permitted billboards within the City of San Antonio at a per square footage of sign face removed at a one (1) for one (1) ratio. Billboards removed in the areas defined under section 28-54(f)(1) will receive Takedown Credits at a per square footage of sign face removed at a one and a half (1.5) for one (1) ratio.

b. Relocation credits per Sections 28-56 and 28-57 can be converted to Takedown Credits at a ratio of one (1) square footage of sign face relocation credit to a half (0.5) square footage of takedown credit. A maximum of fifty percent (50%) of required takedown credits needed for the conversion of a digital face can be converted from relocation credits.

c. For each new digital display, the billboard owner shall need four (4) square feet of takedown credits for one (1) square foot of digital display.

d. The sign faces must be removed prior to receiving takedown credits and a permit for each digital display.

e. If a face is removed from a structure, the entire sign assembly must be removed.

f. No credit will be given for the area of the sign face removed to convert to a digital display.

g. Credits for a takedown to be utilized for digital conversion shall not be transferred from one licensed billboard operator to another.

(4) A maximum of eight (8) digital conversion permits will be issued per calendar year starting on January 1, 2024 and will conclude on December 31, 2026. Conversion permits are only good for the year issued and cannot be transferred to another calendar year. One (1) permit will be issued for each billboard structure to be converted to digital. The billboard owner will have the option to convert one (1) or both faces of an existing dual face billboard. If the owner only converts one (1) face of a dual face structure, then a new permit will be required to convert the second face in any future year. No new faces can be added to existing billboards under the digital conversion and no more than two (2) digital faces can be added to an existing structure.

a. Licensed billboard operators with four-hundred (400) or more permitted billboards shall be allocated four (4) conversion permits per year.

b. Licensed billboard operators with twenty (20) to three-hundred ninety-nine (399) permitted billboards shall be allocated one (1) conversion permit per year.

c. Licensed billboard operators with less than twenty (20) permitted billboards shall be allocated the remaining allowable conversions using the following process:

1. A company wishing to participate in the digital conversion process during each calendar year must submit a completed application detailing the location to be converted, the number of faces to be converted, and billboards that will be removed to accrue the required takedown credits.

2. Development services department will conduct a drawing in the presence of participants.

3. The company selected by the drawing must submit a final application within sixty (60) days of the selection drawing date.

4. All demolition requirements need to be completed in six (6) months after the application

has been issued and approved. The director is authorized to extend this time an additional ninety (90) days for good cause shown supported by written documentation stating the reasons why six (6) months was insufficient to complete the required demolitions.

5. If the company drawn to perform the conversion fails to meet the deadline, the next company in line will be awarded the right to perform a digital conversion.

6. Approval to receive a digital conversion permit cannot be transferred or sold.

(g) Notwithstanding any prior permit limitations, the director may issue up to ten (10) off-premise digital display permits associated with the Digital Media and Arts (DMA) two-year pilot program.

(1) The DMA permits shall be authorized for use only in the eight (8) districts established by, and more particularly described in, the DMA pilot program ordinance, being:

- UTSA District
- Downtown West District
- Downtown East District
- Downtown South District
- Alamodome East District
- Port San Antonio District
- Brooks City Base District
- Toyota Field District

(2) No more than three (3) permits may be authorized for use in any one (1) district.

(3) Two (2) of the DMA permits shall be reserved for use on city facilities and shall be subject to the city's procurement process and procedures.

(4) DMA permittees shall be subject to the DMA pilot program policy and guidelines, including any revenue sharing and cost-bearing conditions.

(5) DMA participation revenue detail:

i. Revenue Share - Ten (10) percent during the two-year pilot program and thereafter.

ii. Revenue shall go to the City of San Antonio Arts and Culture Department.

iii. Display time share for city use - Twenty (20) percent of display time guaranteed, plus an additional five (5) percent remnant time, if available.

iv. Pilot Art Contribution - One hundred thousand dollars ($100,000.00) per permit.

(6) At the end of the two-year pilot program, said program will be evaluated by city for potential program time extension. City council shall have sole discretion to authorize any additional program time beyond the initial two-year pilot program.

(7) A limited number of digital displays on existing buildings that allow off-premise advertising will be allowed with the city receiving a percentage of revenue share and time share on the display.

(8) Size limitations - Maximum display size shall be limited to twenty-five (25) percent of the side of a building on which a display is located. On regulated streets, the display must meet all Texas Department of Transportation regulations which may require smaller digital display size.

(9) To the best of permittee's ability, each display will strive for carbon neutrality.

(10) Lighting intensity levels shall comply with the provisions of this chapter.

(11) No display shall be located on the San Antonio Riverwalk.

(12) No display shall be located on any historic designated structures.

(13) Any display to be located in the RIO District shall require HDRC and OHP approval.

(14) The content of any display shall conform to existing laws and city policy. Permittee voluntarily agrees to not display prohibited content including, but not limited to:

i. Explicit images.

ii. Advertising for smoking or vaping products, vendors or facilities.

(Ord. No. 2017-05-04-0297, § 1(Att. 1), 5-4-17; Ord. No. 2019-09-12-0718, § 1, 9-12-19; Ord. No. 2019-11-07-0910, § 4, 11-7-19; Ord. No. 2023-6-01-0369, § 1(Att. I), 6-1-23; Ord. No. 2025-06-12-0465, § 4, 6-12-25)

Sec. 28-55. Legally erected nonconforming rights.

(a) Generally. Any legally erected off-premises sign which, by reason of revisions to this chapter, no longer complies with its provisions, is awarded

nonconforming status by the director if the operator registers the off-premises sign with the director within one hundred eighty (180) days of the effective date of passage of the chapter revisions. After that time, the director may order any unregistered nonconforming off-premises sign removed at the operator's expense.

(b) Damaged or deteriorated structures. The right to maintain any nonconforming off-premises sign terminates and is subject to removal at owner's expense whenever it is damaged or deteriorated beyond fifty (50) percent of its replacement value.

(c) Nonconforming rights awarded under subsection (a) run with the site for sixty (60) days following the removal of the nonconforming off-premises sign, provided such land owner within twenty-four (24) hours after removal of the nonconforming off-premises sign files with the department a written notice of intent to replace the nonconforming off-premises sign with an off-premises sign relocated from another site.

During that 60-day period, an off-premises sign may be erected at the identical location of the nonconforming off-premises sign, provided that the new sign shall be erected to conform to all relocation, construction, height and spacing requirements of this chapter. The new sign shall have the same size sign face as the previous off-premises sign but shall not exceed the limits of subsection 28-52(4). If the existing sign exceeds the standards set out in this chapter, the new sign must conform to the provisions of subsection 28-52(4). Provided further, that during the same 60-day period, no off-premises sign may be erected within the applicable spacing regulations except at the identical location of the removed nonconforming off-premises sign.
(Ord. No. 2017-05-04-0297, § 1(Att. 1), 5-4-17)

Sec. 28-56. Governmental action.

(a) General rule. Notwithstanding subsection 28-31, a legally erected off-premises sign may be relocated on the same premises due to governmental action or eminent domain proceedings on a one-for-one basis.

If the sign owner can demonstrate that the original location is not physically or economically feasible for the sign structure to be relocated, the sign owner may relocate the sign to any other location within the city with the exception of a historic district, scenic corridor overlay district, or an urban corridor district on a one-for-one basis.

(1) *Physically feasible* means that the remaining site is configured in such a way that the structure cannot be moved to a location that provides adequate visibility or the structure interferes with the landowner's use of the site.

(2) *Economically feasible* means that the structure owner and the landowner are unable to agree to contractual terms for the use of the sign.

(b) Specific rules. A legally erected off-premise sign located in a historic district or scenic corridor overlay district removed as a result of governmental action or eminent domain proceeding may not be relocated to the same premises or any other historic district or scenic corridor overlay district, but may be relocated to any other premises within the city, including urban corridor districts, on a one-for-one basis.

A legally erected off-premises sign located in an urban corridor district required to be removed by governmental action or eminent domain proceeding may not be relocated to any historic district, scenic corridor overlay district or a different urban corridor district, but may be relocated within the same urban corridor district or in any other premises not specifically prohibited within the city on a one-for-one basis.

(c) Under subsection (a) and (b), if the off premises sign is nonconforming under the zoning ordinance, it will continue to retain nonconforming status in accordance with the following stipulations:

(1) A demolition permit shall be obtained by a licensed off-premises sign operator prior to removal of the off-premises sign. An off-premises sign removed pursuant to this section shall neither be credited to the two-for-one requirement for reloca-

tion permits provided in section 28-31 nor impact the monthly limitation on square feet for advertisement display area per off-premises sign company under section 28-31.

(2) An off-premises sign relocated pursuant to this section must comply with all construction, height, setback and other regulations set forth in this chapter unless specifically indicated otherwise in this section.

(3) An off-premises sign relocated pursuant to this section must be relocated to the same premises as perpendicular to the right-of-way as practicable, such site to be approved by the director or his designated representative prior to removal of the off-premises sign.

(4) The size of the sign face of an off-premises sign relocated pursuant to this section shall not exceed the size of the sign face of the removed off-premises sign.

(Ord. No. 2017-05-04-0297, § 1(Att. 1), 5-4-17)

Sec. 28-57. Relocation and replacement of existing off-premises signs.

(a) The owner of a premises where an existing off-premises sign has been previously erected in accordance with prior rules and regulations is authorized to erect an on-premises sign in accordance with the current provisions of this chapter.

(b) Once an on-premises sign permit has been issued as authorized under this chapter, the owner of the existing off-premises sign is entitled to a permit under this section for the one time only relocation of an off-premises sign with the same face area, notwithstanding the provisions of section 28-31 and section 28-58 of this chapter, provided the relocation is not less than six hundred (600) feet nor more than seven hundred (700) feet from the location of the original off-premises sign; and provided that the owner's premises:

(1) Are in use as a tax exempt entity under the provisions of Section 501(c)(3) of the Internal Revenue Code;

(2) Have a primary facility or structure which is outside of the boundary of the scenic corridor; and

(3) Further provided, that the new location of the off-premises sign meets the spacing and all set back requirements except that the city may not require a greater front yard set back than the present front yard setback of the off-premises sign to be removed, of this chapter 28 of the City Code in effect at the time of the move.

(Ord. No. 2017-05-04-0297, § 1(Att. 1), 5-4-17)

Sec. 28-58. Scenic corridors and historic districts.

(a) *Scenic corridors.* Off-premises signs are prohibited along the following freeways, expressways, state highways, or arterials, designated as scenic corridors. An off-premises sign is "along" said freeways, expressways, state highways or arterials if it is erected within six hundred sixty (660) feet of the public right-of-way.

(1) Any expressway or freeway constructed after April 13, 1986.

(2) McAllister Freeway/IH-37 between its intersections with Sunset Road and IH-10/US Highway 90.

(3) Charles Anderson Loop/FM 1604 as defined in the city's major thoroughfare plan as well as any future extensions of FM 1604.

(4) State Highway 151 and any extension of same.

(5) Wurzbach Parkway between its intersections with IH-35 and Lockhill-Selma Road.

(6) IH-10 between its intersections with Hildebrand Avenue and IH-37.

(7) IH-35 between its intersections with IH-37 and IH-10.

(8) IH Loop 410 S between its intersections with New Sulphur Springs Road (FM 3432) and Pearsall Road.

(9) IH-35 between its intersections with IH Loop 410 S and Charles Anderson Loop/FM 1604.

(10) IH-37 between its intersections with IH Loop 410 S and Charles Anderson Loop/FM 1604.

(11) State highways, and arterials as defined by the city's major thoroughfare plan that are located or come into existence after April 17, 2003, within the area bounded by IH Loop 410S, IH-35, Charles Anderson Loop/FM 1604, and IH-37, including:

a. Somerset Road/FM 2790.
b. Senior Road.
c. Noyes Road.
d. State Highway 16 South.
e. South Zarzamora Street.
f. Applewhite Road.
g. Neal Road.
h. Pleasanton Road.
i. Watson Road.
j. Fischer Road.
k. Martinez Losoya/FM 2537.
l. US Highway 281 S.
m. FM 3499.
n. Roosevelt Avenue/FM 1937.
o. Brauning Road.
p. Blue Wing Road.
q. Southton Road.
r. S. Presa/U.S. 181 S.

(b) *Historic districts.* Off-premises signs are prohibited in historic districts.

(c) *Commentary.* The McAllister Freeway between Sunset Road and Josephine Street provides San Antonians with a particularly unique view of their city. Because most of the land abutting the freeway is publicly owned, off-premises signs have not become commonplace along it. Prohibiting off-premises signs along the McAllister Freeway is intended to enhance an especially striking view of the downtown, Trinity University, the large trees in Olmos and Brackenridge Parks, and the Incarnate Word Property. Designating Loop 1604, State Highway 151 and all future freeways as scenic corridors will serve to preserve natural surroundings, thereby enhancing the aesthetic environment, reducing visual blight and distraction and further promoting traffic safety.
(Ord. No. 2017-05-04-0297, § 1(Att. 1), 5-4-17)

Subdivision C. Government Signs

Sec. 28-59. General.

Except as specifically provided for in this chapter or other law, governmental signs are exempt from permitting requirements.
(Ord. No. 2017-05-04-0297, § 1(Att. 1), 5-4-17)

Subdivision D. Urban Corridors

Sec. 28-60. Purpose.

(a) Within the city's jurisdiction there are many roadway corridors which have been and/or will continue to be very significant to the city. Some of these corridors are important because they have shaped the sense of what individual neighborhoods of the city are in their role as historic entrances to the city. Other corridors are significant because they serve as new gateways to the city or because of surrounding natural, historic, cultural, and aesthetic areas. These corridors are amenities and assets of great value to the city, its inhabitants and its economy. The city council aims to preserve, enhance, and perpetuate the value of these roadway corridors and hereby authorizes the establishment of urban corridors.

(b) Corridor purposes.

(1) To create a more attractive, cohesive, and safe corridor environment.

(2) To safeguard San Antonio's heritage by preventing the despoliation of areas that reflect important elements of the city's cultural, natural, historic, and economic fabric.

(3) To create favorable impressions of San Antonio that provides environmental enrichment for the citizens of the city and visitors thereto.

(4) To enhance San Antonio's image as a progressive, scenic, and livable city.

(5) To preserve, protect, and enhance areas of high tourist and visitor visibility.

(6) To enhance the appearance and economic viability of urban corridors within neighborhoods.

(7) To provide corridor motorists and pedestrians with rewarding viewing opportunities.

(8) To reduce visual chaos and limit distractions along public roadways.

(9) To stabilize and strengthen property values within the corridors.

(Ord. No. 2017-05-04-0297, § 1(Att. 1), 5-4-17)

Sec. 28-61. Designation criteria.

To be designated as an urban corridor, an area must meet one (1) or more of the following criteria:

(1) Recognized primary entryway to the city.

(2) The corridor abuts, traverses, or links designated historic landmarks and/or districts.

(3) The corridor traverses areas where natural vegetation representative of the native landscape is present along at least fifty (50) percent of the street frontage.

(4) There is substantial public and/or private commitment of resources for redevelopment or revitalization of at least fifty (50) percent of the corridor's buildings or infrastructure.

(5) The corridor has historically served as a regional or neighborhood commercial center for at least fifty (50) years.

(6) The corridor provides primary access to one (1) or more major tourist attractions.

(7) The corridor abuts, traverses, or links the San Antonio River or its major tributaries, area lakes, or major parks.

(8) The corridor traverses residential areas where housing is present along at least fifty (50) percent of the street frontage.

(Ord. No. 2017-05-04-0297, § 1(Att. 1), 5-4-17)

Sec. 28-62. Designation process.

(a) This division and section authorizes the establishment of urban corridors within the city's extraterritorial jurisdiction to regulate sign standards. Ordinances designating each urban corridor shall identify the designated street corridor(s) and specify the sign standards for that corridor.

(b) Designation of specific urban corridors shall be initiated at the direction of the city council or by a memorandum signed by a majority of council members.

(c) The planning commission is hereby designated in accordance with Section 118, Paragraph 3, of the City Charter to hold public hearings on all proposed urban corridor sign standards and submit a recommendation to the city council. The city council shall also hold a public hearing prior to considering urban corridor sign standards. The director of the development services department shall provide notice of each public hearing to the owners of real property inside and within two hundred (200) feet of the proposed urban corridor. Such notice shall be served by depositing the notice, properly addressed and postage paid, in a city post office not less than ten (10) days prior to the scheduled date of the public hearings to all owners who have rendered their property for taxes on the last approved tax roll.

(Ord. No. 2017-05-04-0297, § 1(Att. 1), 5-4-17)

Sec. 28-63. Boundaries.

To be designated as an urban corridor, a street must be a collector, arterial, or expressway. An urban corridor shall be designated on both sides of a street except when one (1) side is not located within the city's extraterritorial jurisdiction.

(1) The maximum width of an urban corridor along either side of the street right-of-way shall not exceed the distance indicated in the table below:

Collector street	100 feet
Arterial street	200 feet
Expressway	500 feet

(2) The minimum length of urban corridor districts shall generally comply with the following distances:

Collector street	1,320 feet
Arterial street	2,640 feet
Expressway	5,280 feet

(Ord. No. 2017-05-04-0297, § 1(Att. 1), 5-4-17)

Sec. 28-64. Sign standards.

(a) *General.* Ordinances establishing specific urban corridors may include requirements for on- and off-premises signs subject to the guidelines included herein. Specific corridor ordinances may include more or less restrictive standards for off-premises signs. In event of a conflict between a specific corridor ordinance and other provisions of this chapter, the most restrictive shall apply.

(b) *Prohibited signs.* The following signs are prohibited in urban corridors unless expressly authorized by the city council to create a unifying theme in a specific urban corridor:

(1) Animated, moving, flashing, or rotating signs. However, digital displays, including but not limited to, electronic message centers up to twenty-five (25) percent of the allowable sign area are permitted.

(2) Three-dimensional objects such as vehicles, animals, instruments or other figures; propellers, wind powered or other similar devices or objects; and air-filled figures other than balloons one (1) foot or less in diameter.

(3) Signs which (1) utilize intermittent or flashing illumination devices; (2) which change light intensity, brightness or color; or (3) which are constructed and operated so as to create an appearance or illusion of motion unless specifically authorized by the city council to create a unifying theme in an urban corridor. This prohibition includes digital displays.

(4) Roof signs.

(c) *Temporary signs within urban corridors.* Banners, pennants, streamers, and balloons one (1) foot or less in diameter may be used as temporary advertising for a maximum duration of thirty (30) days each six (6) months. Permits in accordance with the City Code and this chapter are required for signs over thirty-two (32) square feet in size.

(d) *On-premises pole sign.*

(1) Platted lots along designated urban corridors shall be permitted one (1) pole sign for each two hundred (200) linear feet of street frontage or fraction thereof, but in any event shall be permitted at least one (1) sign. A pole sign shall not be erected closer than two hundred (200) feet along one (1) side of the street to another pole sign within the same platted lot.

(2) In lieu of the signs permitted in subsection (1) above, platted lots along expressways shall be permitted one (1) pole sign for each one hundred (100) linear feet of street frontage or fraction thereof provided the sign area for each sign does not exceed two hundred fifty (250) square feet.

(3) The maximum height for pole signs shall be in accordance with the table below. The height of a sign shall be measured from the adjacent primary street grade provided that the overall height of the sign does not exceed sixty (60) feet above ground level.

Maximum Sign Height (in Feet)

Designated Street	*Pole Sign*	*Multiple Tenant Sign*
Local street	10—15	15—25
Collector/arterial street	30—40	40—50
Expressway	40—50	50—60

(4) The maximum allowable sign area for each pole sign shall be established in accordance with the table below. For signs with more than one (1) face, only

the area of one (1) face shall be counted, provided only one (1) face is visible from any one (1) direction.

Maximum Sign Area (in Square Feet)

Designated Street	*Pole Sign*	*Multiple Tenant Sign*
Local street	64—96	96—160
Collector/arterial street	200—300	350—500
Expressway	350—500	500—650

(5) The following signs shall not be included in the total allowable sign area: temporary signs, signs which are designed not to be visible from or directed to traffic on the adjacent street, electric directional signs less than five (5) feet in height, and signs which are exempted from the permit requirement in subsection (g) below.

(e) *Wall signs.* Wall signs shall not extend or project more than one-third (⅓) the vertical height of the sign above the roof or parapet of a building or structure. The maximum allowable sign area for wall signs along all street frontages shall be as follows:

Cabinet Signs	20% of the wall area
Channel Letter Signs	25% of the wall area

(f) *Maintenance.* The director may order the removal of any sign not meeting these standards at the expense of the sign or property owner within sixty (60) days of notification by the city. If the business or activity for which a sign was permitted, ceases to operate for a period of one hundred eighty (180) days, the sign shall be considered abandoned and the sign shall be removed by the sign or property owner.

(g) *Permit requirement.* A permit must be obtained from the department before a sign may be erected within an urban corridor. Applications for a permit shall be made upon forms provided by the department. All signs shall display a decal as evidence of the permit. However, the following signs are exempt from the permit requirement:

(1) Governmental signs. Governmental agencies are encouraged to coordinate their signs with respect to color size, height and placement.

(2) Non-electric directional signs not exceeding fifteen (15) square feet in size. These signs must be composed of durable material, situated wholly upon private property and not exceed a maximum height of eight (8) feet.

(3) Signs less than fifteen (15) square feet in size and designed not to be read by the traveling public, including menu boards, service station pump decals and spanners.

(h) *Nonconforming signs.* Nonconforming signs shall be brought into conformance with the requirements of the urban corridor ordinance when there are alterations or repairs to the sign exceeding fifty (50) percent of the sign's value.

(i) *Map requirement.* All urban corridors shall include a map, either indented or in an appendix detailing location at a minimum.
(Ord. No. 2017-05-04-0297, § 1(Att. 1), 5-4-17; Ord. No. 2023-6-01-0369, § 1(Att. I), 6-1-23)

Sec. 28-65. Specific urban corridors—IH-10/FM 1604 Urban corridor.

(a) *Boundaries.* The following areas which are located outside the city limits are designated as the I.H. 10 West/Loop 1604 urban corridor:

(1) Both sides of I.H. 10 West, an expressway, between Wurzbach Road and Boerne Stage Road for a distance of five hundred (500) feet from the street right-of-way.

(2) Both sides of Loop 1604, an expressway, between Northwest Military Highway and Hausman Road for a distance of five hundred (500) feet from the street right-of-way.

(3) Both sides of Babcock Road, an arterial street, between Loop 1604 and Camp Bullis Road for a distance of two hundred (200) feet from the street right-of-way.

(4) Both sides of Camp Bullis Road, an arterial street, between I.H. 10 West and Babcock Road for a distance of two hundred (200) feet from the street right-of-way.

(b) *Designation criteria.* The areas specified in subsection (a) above meet the designation criteria established above:

(1) The corridor serves as a recognized primary entryway to the city.

(2) The corridor traverses areas where natural vegetation representative of the native landscape is present along at least fifty (50) percent of the street frontage.

(3) The corridor provides primary access to one or more major tourist attractions.

(c) *Other provisions.* In addition to the requirements set forth in this section, the mandatory provisions of sections 28-64 and 28-5 shall be applicable to this corridor.

(d) *Off-premises signs.* Off-premises signs are prohibited in the corridor.

(e) *Maximum sign height and area.*

(1) The maximum heights for on-premises signs are as follows:

Maximum Sign Height (in Feet)

Designated Street	*Pole Sign*	*Multiple Tenant Sign*
Local street	10	15
Collector/arterial street	30	40
Expressway	40	50

(2) The maximum allowable sign area for on-premises signs are as follows:

Maximum Sign Area (in Square Feet)

Designated Street	*Pole Sign*	*Multiple Tenant Sign*
Local street	64	96
Collector/arterial street	200	350
Expressway	350	500

(Ord. No. 2017-05-04-0297, § 1(Att. 1), 5-4-17)

Sec. 28-66. Same—UC-2, Broadway urban corridor district.

(a) *Boundaries.* The following area is designated as the Broadway urban corridor district: both sides of Broadway, an arterial, between IH-35 and the city limits of Alamo Heights for a distance of two hundred (200) feet from the street right-of-way.

(b) *Designation criteria.* This corridor meets the following designation criteria established by section 28-61:

(1) The corridor provides primary access to one or more major tourist attractions.

(2) The corridor abuts, traverses, or links the San Antonio River or its major tributaries, area lakes, or major parks.

(c) *Other provisions.* In addition to the requirements set forth in this section, the mandatory provisions of sections 35-339(a)(1), 28-64, and 35-339(b)(2) are applicable to this district.

(d) *Setback.* The setback along Broadway is established at twenty-five (25) feet.

(e) *Screening.* The following uses shall be screened from Broadway to a height sufficient to completely screen the use from view at ground level: all outside storage, industrial activities, off-street loading areas as required by the 1987 version of chapter 35, the Unified Development Code, article III, Zoning, division 9, Supplemental regulations, Subdivision D., Off-street truck loading requirements, refuse storage areas, air conditioning and heating equipment, and microwave and satellite antennas. An opaque screen composed of berms, walls, fences, vegetation, or a combination of these materials shall be used.

(f) *Off-premises signs.* Off-premises signs are prohibited in this corridor district.

(g) *Maximum sign height.* The maximum heights for on-premises signs are thirty (30) feet for pole signs and forty (40) feet multiple tenant signs.

(h) *Maximum sign size.* The maximum allowable sign areas for on-premises signs are two hundred (200) square feet for pole signs and three hundred fifty (350) square feet for multiple tenant signs.
(Ord. No. 2017-05-04-0297, § 1(Att. 1), 5-4-17)

Sec. 28-67. Same—UC-3, Fredericksburg Road urban corridor district.

(a) *Boundaries.* The following area is designated as the Fredericksburg Road urban corridor district: both sides of Fredericksburg Road, an arterial, between Martinez Creek and Santa Barbara Street for a distance of two hundred (200) feet from the street right-of-way.

(b) *Designation criteria.* This corridor meets the following designation criteria established by section 28-61:

(1) The corridor has historically served as a regional or neighborhood commercial center for at least fifty (50) years.

(2) There is substantial public and/or private commitment of resources for redevelopment or revitalization of at least fifty (50) percent of the corridor's buildings or infrastructure.

(c) *Other provisions.* In addition to the requirements set forth in this section, the mandatory provisions of sections 35-339(a)(1), 28-64, and 35-339(b)(2) are applicable to this district.

(d) *Setback.* The setback along Fredericksburg Road is established at twenty-five (25) feet.

(e) *Screening.* The following uses shall be screened from Fredericksburg to a height sufficient to completely screen the use from view at ground level: all outside storage, industrial activities, off-street loading areas as required by the 1987 version of chapter 35, the Unified Development Code, article III, Zoning, division 9, Supplemental regulations, Subdivision D., Off-street truck loading requirements, refuse storage areas, air conditioning and heating equipment, and microwave and satellite antennas. An opaque screen composed of berms, walls, fences, vegetation, or a combination of these materials shall be used.

(f) *Off-premises signs.* Off-premises signs are prohibited in this corridor district.

(g) *Maximum sign height.* The maximum heights for on-premises signs are thirty (30) feet for pole signs and forty (40) feet for multiple tenant signs.

(h) *Maximum sign size.* The maximum allowable sign areas for on-premises signs are two hundred (200) square feet for pole signs and three hundred fifty (350) square feet for multiple tenant signs.
(Ord. No. 2017-05-04-0297, § 1(Att. 1), 5-4-17)

Sec. 28-68. Same—UC-4, North St. Mary's Street urban corridor district.

(a) *Boundaries.* The following area is designated as the North St. Mary's Street urban corridor district: both sides of North St. Mary's Street, an arterial, between I.H. 35 and HWY 281 for a distance of two hundred (200) feet from the street right-of-way.

(b) *Designation criteria.* This corridor meets the following designation criteria established by section 28-61:

(1) The corridor has historically served as a regional or neighborhood commercial center for at least fifty (50) years.

(2) The corridor provides primary access to one or more major tourist attractions.

(3) The corridor abuts, traverses, or links the San Antonio River or its major tributaries, area lakes, or major parks.

(c) *Other provisions.* In addition to the requirements set forth in this section, the mandatory provisions of sections 35-339(a)(1), 28-64, and 35-339(b)(2) are applicable to this district.

(d) *Setback.* The setback to this urban corridor is established at zero (0) feet.

(e) *Screening.* The following uses shall be screened to a height sufficient to completely screen the use from view at ground level: all outside storage, industrial activities, off-street loading areas as required by the 1987 version of chapter 35, the Unified Development Code, article III, Zoning, division 9, Supplemental regulations, subdivision D., Off-street truck loading requirements, refuse storage areas, air conditioning and heating equipment, microwave and satellite antennas. An opaque screen composed of berms, walls, fences, vegetation, or a combination of these materials shall be used.

(f) *Off-premises signs.* Off-premises signs are prohibited in this corridor district.

(g) *Maximum sign height.* The maximum height for on-premises signs are thirty (30) feet for pole signs and forty (40) feet for multiple tenant signs.

(h) *Maximum signs size.* The maximum allowable sign areas for on-premises signs are two hundred (200) square feet for pole signs and three hundred fifty (350) square feet for multiple tenant signs.
(Ord. No. 2017-05-04-0297, § 1(Att. 1), 5-4-17)

Sec. 28-69. Same—UC-5, Main Ave./McCullough Ave. urban corridor district.

(a) *Boundaries.* The following area is designated as the Main Ave./McCullough Ave. urban corridor district: a distance of one hundred (100) feet from the street right-of-way on either side of Main Ave. a collector, between I.H. 35 on the south and Huisache Ave. on the north, and two hundred (200) feet from the street right-of-way on either side of McCullough Ave. an arterial, between I.H. 35 on the south and Huisache Ave. on the north.

(b) *Designation criteria.* This corridor meets the following designation criteria established by section 28-61:

(1) The corridor abuts, traverses, or links designated historic landmarks and/or districts.

(2) The corridor has historically served as a regional or neighborhood commercial center for at least fifty (50) years.

(c) *Other provisions.* In addition to the requirements set forth in this section, the mandatory provisions of sections 35-339(a)(1), 28-64, and 35-339(b)(2) are applicable to this district.

(d) *Setback.* The setback along Main Ave./McCullough Ave. are established at fifteen (15) feet for local streets, twenty (20) feet for collector/arterial streets and twenty-five (25) feet for expressways.

(e) *Screening.* The following uses shall be screened from Main Ave./McCullough Ave. to a height sufficient to completely screen the use from view at ground level all outside storage, industrial activities, off-street loading areas as required by the 1987 version of chapter 35, the Unified Development Code, article III, Zoning, division 9, Supplemental regulations, subdivision D., Off-street truck loading requirements, refuse storage areas, air conditioning and heating equipment, and microwave and satellite antennas. An opaque screen composed of berms, walls, fences, vegetation, or a combination of these materials shall be used.

(f) *Off-premises signs.* Off-premises signs are prohibited in this corridor district.

(g) *Maximum pole sign height.* The maximum heights for on-premises pole signs are fifteen (15) feet for local streets, twenty-four (24) feet for collector/arterial streets and forty (40) feet for expressways.

(h) *Reserved.*

(i) *Maximum multi-tenant sign height.* The maximum height for on-premises multi-tenant signs are fifteen (15) feet for local streets, thirty-two (32) feet for collector/arterial streets, and fifty (50) feet for expressways.

(j) *Maximum pole sign area.* The maximum allowable sign area for on-premises pole signs are sixty-four (64) square feet for local streets, one hundred fifty (150) square feet for collector/arterial streets and three hundred fifty (350) square feet for expressways.
(Ord. No. 2017-05-04-0297, § 1(Att. 1), 5-4-17)

Sec. 28-70. Same—UC-6, San Pedro urban corridor district.

(a) *Boundaries.* The following area is designated as the San Pedro Urban Corridor District: Both sides of San Pedro Avenue, an arterial, between I.H. 35 to the south and Ashby Street to the north for a distance of two hundred (200) feet from the street right-of-way.

(b) *Designation criteria.* This corridor meets the following designation criteria established by section 28-61:

(1) The corridor abuts, traverses, or links designated historic landmarks and/or districts.

(2) The corridor has historically served as a regional or neighborhood commercial center for at least fifty (50) years.

(c) *Other provisions.* In addition to the requirements set forth in this section, the mandatory provisions of sections 35-339(a)(1), 28-64, and 35-339(b)(2) are applicable to this district.

(d) *Screening.* The following uses shall be screened from San Pedro Avenue to a height sufficient to completely screen the use from view at ground level: All outside storage, industrial activities, off-street loading areas as required by the 1987 version of chapter 35, the Unified Development Code, article III, Zoning, division 9, Supplemental regulations, subdivision D., off-street truck loading requirements, refuse storage areas, air conditioning and heating equipment, and microwave and satellite antennas. An opaque screen composed of berms, walls, fences, vegetation, or a combination of these materials shall be used.

(e) *Off-premises signs.* Off-premises signs are prohibited in this corridor district.

(f) *Maximum sign height.* The maximum heights for on-premises pole signs are: Local streets—Ten (10) feet, collector/arterial street—Twenty-four (24) feet, and expressway—Forty (40) feet.

The maximum heights for on-premises multi-tenant signs are: Local streets—Fifteen (15) feet, collector/arterial—Thirty-two (32) feet, and expressway—Fifty (50) feet.

(g) *Maximum sign size.* The maximum allowable sign area for on-premises pole signs are: Local streets—Sixty-four (64) feet, collector/arterial street—One hundred fifty (150) square feet, and expressway—Three hundred fifty (350) square feet.

The maximum allowable sign area for on-premises multi-tenant signs are: Local streets—Ninety-six (96) square feet, collector/arterial street—Two hundred and fifty (250) square feet, and expressway—Five hundred (500) square feet. (Ord. No. 2017-05-04-0297, § 1(Att. 1), 5-4-17; Ord. No. 2024-12-19-1017, § 4, 12-19-24)

Subdivision E. ETJ Regulations

Sec. 28-71. Off-premises signs in the extra territorial jurisdiction (ETJ).

(a) Off-premises signs erected in the ETJ pursuant to a relocation permit shall adhere to the following size and spacing requirements:

(1) On interstates, freeways and expressway systems, off-premises signs up to six hundred seventy-two (672) square feet shall not be closer than one thousand five hundred (1,500) feet along one side of the roadway.

(2) On primary and secondary arterial streets, off-premises signs up to three hundred ninety-nine (399) square feet shall not be closer to any other off-premises sign than one thousand (1,000) feet along one side of the roadway; on secondary arterial streets, off-premises signs ninety-nine (99) square feet and less shall not be erected closer than seven hundred fifty (750) feet along one side of the roadway.

(3) On collector and local access streets, off-premises signs ninety-nine (99) square feet and less shall not be erected closer than seven hundred fifty (750) feet along one side of the roadway.

(4) All off-premises signs under subsections (1), (2), and (3) above must be:

a. Within eight hundred (800) feet of at least two (2) adjacent recognized commercial or industrial activities located on the same side of the roadway, and

b. At least five hundred (500) feet, as measured along one side of the road, from any structure located within a zoning district exclusively used by one or more human beings for residential purposes. This subsection is inapplicable to commercial zoned districts.

(b) Temporary off-premises signs erected in the ETJ shall adhere to the spacing requirements set forth in subdivision F., Temporary signs.

Commentary: As there are no zoning designations within the ETJ, the applicable regulations for temporary signs shall be based upon the actual use of the property. Temporary signs on properties with a residential use shall be subject to the regulations in section 28-73. Temporary signs on properties with a non-residential use and vacant properties shall be subject to the regulations in section 28-74.
(Ord. No. 2017-05-04-0297, § 1(Att. 1), 5-4-17)

Subdivision F. Temporary Signs

Sec. 28-72. In general.

(a) General prohibition. Temporary sign placement is prohibited in the city and ETJ unless permitted as provided in this division. Signs in violation of this division constitute bandit signs.

(b) All temporary signs must comply with reasonable time, place and manner regulations and are subject to all applicable City Code requirements, including underlying zoning districts and uses.

(c) Zoning districts and uses are outlined in the Unified Development Code (UDC) of the city.

(1) Temporary signs may only be placed in residential zoning districts and uses identified in Table 311-1 of the UDC.

(2) Temporary signs may only be placed in nonresidential zoning districts and uses identified in Table 311-2 of the UDC.

(d) A temporary sign permit is required in order to display a temporary sign, unless specifically excepted from permitting requirements. A department issued decal or other approved identification means authorizing temporary placement must be displayed on all temporary signs regulated under this division, unless such sign is excepted from permitting requirements. Only one (1) temporary sign permit for a temporary sign advertising a commercial message may be issued for the premises and only in specified areas detailed in each section below except for noncommercial speech in residential zoning districts.

(e) A temporary sign is authorized for one (1) single continuous maximum specified time period detailed in each section below. Signs exceeding maximum time periods are illegal and subject to removal.

(f) Private profiteering involving unauthorized temporary sign placement is prohibited in and constitutes a violation of this chapter.

(g) No temporary sign permit is transferrable or assignable from one (1) permit holder to another, to another property or be used for a different time period than what it was issued. A permit holder may not switch signs under one (1) sign permit.

(h) Temporary signs are prohibited severally:

(1) With an area greater than that prescribed in the applicable sections below;

(2) Which is more than the maximum height prescribed in the applicable sections below;

(3) Which is illuminated; or

(4) Which has any moving elements.

(i) Temporary signs must be constructed of durable building materials reflecting the temporary nature of the sign and securely affixed to a structure or ground. Signs shall have a non-reflective surface.

(j) Permit application. An application for a temporary sign permit must include, at a minimum:

(1) A map and listing identifying the street and block number where each sign shall be placed regardless of size.

Commentary: The director may modify the map requirement for the application

if the temporary sign is intended to be mobile in nature (e.g., real estate open houses, etc.)

(2) Prior permission of the underlying property owner.

(3) Acknowledgement that signs will be spaced as required under this chapter.

(4) Acknowledgement that sign square footage is not limited to a specific shape unless specifically stated under each section below. No offensive shapes may be utilized.

(5) Payment of fees.

Note: The director of development services may accept confirmation from another governmental agency where appropriate.

(Ord. No. 2017-05-04-0297, § 1(Att. 1), 5-4-17)

Sec. 28-73. Temporary signs on residential zoned properties and residential uses.

(a) In general.

(1) Temporary signs placed in residential zoning districts and uses identified in subsection 28-72(c) shall comply with this section.

(2) A sign placed on private property requires property owner approval. Any sign placed without property owner approval is illegal and subject to removal and offending party subject to prosecution for trespass.

(3) Maximum size. Ten (10) square feet.

(4) Maximum height limitation. Six (6) feet measured from ground to top of sign.

(5) Permit validity period. Maximum of ninety (90) days.

Commentary: Note that if the on-premise event (e.g., home sale; remodel work; etc.) for which the temporary sign is used at the residential property goes beyond ninety (90) days, an automatic renewal of the temporary sign is allowed until the on-premise event is completed as long as the event is permitted properly in accordance with any other applicable sections of the City Code.

(6) Distance limitation.

a. *Spacing.* No sign may be placed closer than twenty-five (25) feet from a street intersection or median opening. Signs shall be placed no closer than three (3) feet from the edge of the sign to the street curb or, if there is no curb, the edge of pavement.

b. *Encroachment.* Signs shall not encroach on either the sidewalks or streets.

(7) Noncommercial speech and on-premises commercial speech narrowly tailored to lawful commercial transactions relating to the premise are authorized. All other on and off premises commercial speech is prohibited.

Comment: The exception to commercial advertising in subsection (7) is intended to address temporary on-premises advertising concerns in narrow circumstances, including, but not limited to home for sale signs, re-roofing signs, and the like, so long as the temporary advertisement is related to the premises itself.

Exception: For residential zoned properties that are 1) vacant, and 2) one (1) or more acres in size, temporary signs with off-premises commercial speech is permitted to follow the size, spacing and permitting requirements of section 28-74.

(Ord. No. 2017-05-04-0297, § 1(Att. 1), 5-4-17)

Sec. 28-74. Temporary signs on nonresidential zoned properties and nonresidential uses.

(a) *In general.*

(1) Temporary signs placed in nonresidential zoning districts and uses identified in subsection 28-72(c) shall comply with this section.

(2) In addition to general sign construction requirements in section 28-72, all temporary nonresidential signs must be securely affixed to a structure or ground. Through authority granted in section 28-5, the director may provide interpretations and adopt written policies and procedures and this includes, but is not limited to, specific installation requirements for different types of signs.

(3) Any banner type of sign placed on a facade must follow the permanent sign placement regulations found in this chapter.

(4) Property owner and development services department approval is required prior to sign placement. Any sign placed without required approval is a violation of this chapter and subject to removal.

(5) Commercial and noncommercial speech are authorized.

(b) *Large sign.*

(1) *Size range.* Between ten (10) and sixty-four (64) (maximum) square feet.

(2) *Height.* Not to exceed sixteen (16) feet.

Comment: Note that engineering requirements referenced in other sections of this chapter are applicable to temporary signs.

(3) *Temporary placement.*

a. A licensed sign contractor is required to apply for and be issued a permit to place a temporary large sign.

b. The development services department must review the plan for conformity and perform necessary inspections prior to permit issuance.

c. Permit validity period. Duration of the temporary event for which the temporary sign is used for, but not more than five (5) years. The permit can be renewed up to four (4) times (maximum five (5) years) by the applicant upon and submission of evidence that the event is not yet over.

d. The sign erector shall certify in writing that the sign will not interfere with public safety.

(4) *Distance limitation.*

a. An owner or agent of the commercial business is limited to four (4) temporary permits for large signs displaying commercial off-premises speech per five-mile radius of the commercial location and one (1) temporary permit for displaying commercial on-premises speech. A person is limited to four (4) temporary permits for signs displaying noncommercial speech.

b. There shall be a minimum spacing requirement of one hundred fifty (150) feet between large temporary signs.

Exception: A sign grouping of up to a maximum of four (4) temporary large signs are permitted to be installed less than one hundred fifty (150) feet apart provided 1) the sign grouping does not have more than one hundred twenty-eight (128) square feet of sign face area, and 2) no other temporary signs are installed within three hundred (300) feet of the sign grouping. Each individual sign in the sign grouping shall be less than sixty-four (64) square feet in sign area.

(5) *Sign identification requirements.* A separate department issued decal or other approved identification means authorizing temporary placement must be displayed on each temporary sign.

(c) *Small sign.*

(1) *Size range.* Any sign less than ten (10) square feet.

(2) *Height.* The total height of the sign may not exceed three (3) feet above the ground.

(3) *Temporary placement.*

a. An applicant is required to apply for and be issued an individual permit to place a temporary small sign.

b. The development services department must review the application.

c. Temporary placement is authorized from Friday until no later than 9:00 p.m. the following Monday. If a federally recognized holiday falls on a Friday, then the signs are permitted from the preceding Thursday until no later than 9:00 p.m. the following Monday. If a federally recognized holiday falls on a Monday, then signs are permitted from Friday until no later than 9:00 p.m. the following Tuesday. Signs may not be either placed or picked up between the hours from 6:00 a.m. to 9:00 a.m. or from 4:00 p.m. to 7:00 p.m. on weekdays.

d. Signs must be self-supporting and placed into the ground by a single stake or no more than two (2) stakes. Placement on a utility pole, street light pole, sign pole, fence, tree or other manmade or natural feature is prohibited.

(4) *Distance limitation.*

a. No sign may be placed closer than twenty-five (25) feet from a street intersection or median opening, driveway curb cuts, fire hydrant, or any other public man made feature. Additionally, signs shall not be erected in any location where, by reason of traffic conditions, fire, or explosion hazards, the sign would imperil public safety or hamper the functions of the fire department.

b. Placement on any esplanade or island that is located between a road or highway or otherwise divides traffic is prohibited.

(5) *Minimum spacing requirement.* Two hundred (200) feet between small temporary signs with permits held by the same permit holder, measured in a straight line. Small temporary signs with permits held by different permit holders must be a minimum of five (5) feet apart.

(6) *Sign identification requirements.* A separate department issued decal or other approved identification means authorizing temporary placement must be displayed on each temporary sign.

(d) *Inflatables.* The temporary display of inflatable signs is permitted for a maximum period of twenty-one (21) days per calendar quarter per platted lot. Inflatables shall be limited to a height of thirty (30) feet for the inflatable device, not to include the height of any building or structure on which it might be placed.
(Ord. No. 2017-05-04-0297, § 1(Att. 1), 5-4-17; Ord. No. 2023-6-01-0369, § 1(Att. I), 6-1-23)

Sec. 28-75. Temporary signs on public right-of-way and city public property.

(a) *In general.* Temporary sign placement for city public right-of-way and city public property only as authorized by law, including underlying zoning district and use requirements. This does not allow placement on the state highway system or a scenic or urban corridor. It is a rebuttable presumption that any are within fifteen (15) feet of the edge of the paved portion of a road or highway maintained by the city is public right-of-way.

(1) *Government placement.* Signs placed or authorized in writing to be placed on public property or on/over the street right-of-way by, or at the direction of the federal, state or local government is permitted and an affirmative defense to prosecution only for the time and the location specified in such written permission.

(2) *Restrictions on otherwise allowable temporary placement.* No signs shall be erected on or over city public property in a manner which interferes or has the potential to interfere, at the director's reasonable discretion, with any fire hydrant, traffic light, fire alarm box or street light. Similarly, signs shall not be erected in any location where, by reason of traffic conditions, fire, or explosion

hazards, the sign would imperil public safety or hamper the functions of the fire department.

(b) *Temporary placement on city public street right-of-way.* Off premises signs are only permitted to be placed on the city right-of-way of a road or highway maintained by the city provided that the following regulations are observed and required fees have been paid.

(1) *Schedule.* Off premises signs are permitted from Friday until no later than 9:00 p.m. the following Monday. If a federally recognized holiday falls on a Friday, then the signs are permitted from the preceding Thursday until no later than 9:00 p.m. the following Monday. If a federally recognized holiday falls on a Monday, then signs are permitted from Friday until no later than 9:00 p.m. the following Tuesday. Signs may not be either placed or picked up between the hours from 6:00 a.m. to 9:00 a.m. or from 4:00 p.m. to 7:00 p.m. on weekdays.

(2) *Size.* Signs shall not exceed six (6) square feet in size. Irregular shaped signs shall fit in a 24-inch by 36-inch rectangle, square or circle. The total height of the sign may not exceed three (3) feet above the ground measured from the base of the sign support structure. Signs may be two-dimensional only and shall have a non-reflective surface.

(3) *Spacing between signs.*

a. A minimum of five (5) feet must be maintained between each off premises sign of different advertisers.

b. The signs of each advertiser must be spaced so that no two (2) signs advertising the same good, service, business, political campaign, or particular piece of real property (for sale or lease), are closer than two hundred (200) feet from each other measured in a straight line. If a new residential subdivision or development is being advertised, no sign of any advertiser may be closer than two hundred (200) feet from any other sign of the same advertiser.

(4) *Sign location.*

a. Signs must be self-supporting and placed into the ground by one (1) to two (2) stakes. No off premises sign is permitted on a utility pole, guardrail, street light pole, sign pole, fence, tree or other manmade or natural feature unless authorized under this section.

b. No sign may be placed closer than twenty-five (25) feet from a street intersection or median opening. Any off premises sign determined to be in a location that causes an immediate hazard to public safety may be immediately removed by the city.

c. Signs shall be placed no closer than three (3) feet from the edge of the sign to the street curb or, if there is no curb, the edge of pavement. Signs shall not encroach on either the sidewalks or streets.

d. No sign may be placed on any esplanade or island that is located between a road or highway or otherwise divides traffic.

e. Placement limitation. Three (3) miles or less from the property, location, or business being advertised. Additionally, placement depends on the underlying zoning district and use classification:

- Public ROW in residential zoning districts or use—Commercial and noncommercial speech are authorized.
- Public ROW in non-residential zoning districts or use—Commercial and noncommercial speech are authorized.

(5) *Registration, permits and fees.* See article V, Fee schedule.

a. An advertiser is required to register with the department and post a permit decal on each temporary sign

to be placed. Each advertiser shall pay a registration fee as well as a permit decal fee. The first two (2) permit decals shall be included in any registration fee.

Commentary: Registration includes, but is not limited to, any event, such as a garage sale, peddlers sign, or carnival.

b. Where an advertiser wishes to advertise multiple locations, a permit decal must be obtained for each business location subdivision location, or service location to be advertised by off premises signs.

c. An off premises sign will not be placed on the right-of-way of a road or highway unless an off premises permit decal is affixed on the face of the off premises sign.

Commentary: Registration and decals are required on any temporary sign placed in the right-of-way.

(6) *Map and listing required.* In addition to payment of the appropriate fees, the advertiser shall provide a map and listing identifying the street and block number where each sign shall be placed including another governmental agency.

(7) *Permission of abutting property owners is required.* Nothing in this division authorizes the placement of signage contrary to existing property law. The advertiser must secure all necessary permission of any and all parties having a property interest in the right-of-way prior to placing any off premises sign.

(c) *Temporary placement over and across city public right-of-way.*

(1) Banner signs projecting over and across public street rights-of-way are limited to noncommercial speech and such placement is authorized solely in locations approved and utilized prior to the date of this chapter enactment.

(2) No part of the banner sign shall be closer to the street grade than fourteen and one-half (14½) feet.

(3) The sign erector shall certify in writing that the sign will not interfere with public safety. Banner signs shall be constructed of durable cloth and standard sign hooks, lag screws or expansion bolts and shields shall be used where required to support the sign. Construction materials are limited to flexible natural or synthetic fabric or membrane and prohibit solid materials which might damage, injure or otherwise endanger vehicles or persons below in the event of a collapse.

(4) Maximum of ninety (90) days.

(d) *Temporary placement on city roadways.*

(1) *Mobile signs: Signs in transit.*

a. Generally. It shall be unlawful to carry or transport by any means, or cause to be so carried or transported, any sign in excess of thirty-two (32) square feet in area, without the approval of the director of the development services department. This provision shall not apply to a sign on a vehicle which is used principally for a purpose other than advertising.

Commentary. Commercial vehicles which have the business's name, logo, slogan or license number painted on them are primarily means of transportation, not an advertising medium. Therefore, the provisions of subsection (a) do not apply to the automobile, truck, or van per se.

b. Vehicles used principally for commercial advertising must comply with applicable off-premises sign requirements.

(2) *Mobile signs: Stationary.* Mobile signs no longer in transit and stationary must meet temporary placement requirements for the specific zoning district in which it is located. A failure to meet this require-

ment is a violation of this chapter. For purposes of classification as stationary, a mobile sign must be stationary for at least twenty-four (24) hours. This provision shall not apply to stationary vehicles at their own place of business.

(3) *Portable sign.*

In general. It is unlawful to intentionally place or display, or cause to be placed or displayed, any portable sign on any premises or be utilized in connection with a mobile sign in transit for the purpose of commercial advertising.

Exception. A portable sign may be placed or displayed at a properly zoned storage area of one properly licensed under this chapter provided such placement was prior to September 22, 1985 and it has been granted nonconforming rights through the process required in Ordinance No. 62652. Portable signs must conform to regulations for on-premises signage.

Commentary. The law under Ordinance No. 62652 required portable signs to be registered within one hundred eighty (180) days of enactment by mid-1986. Any portable sign not meeting this requirement may not be placed or displayed.

(e) *Temporary placement on public property.*

(1) The temporary display of an on-premises sign and/or an on-premises digital display, as they are defined in section 28-6, is permitted on public property for a permitted event for a maximum of thirty (30) days per event per calendar quarter. The temporary on-premises display must:

a. Be erected in the area specified in the permit for the event;

b. Be erected only for the period specified in the permit for the use of the public property;

c. Only contain an on-premises message related to the specific event;

d. Be permitted by the department exercising control of the public property; and

e. Be permitted by the development services department if required by this chapter;

(2) Notwithstanding subsection (1) above, on-premises digital displays shall not be authorized for events located in Alamo Plaza Park or in the Riverwalk Area.

(3) On-premises signs and/or on-premises digital displays shall be authorized for events hosted in Main Plaza, provided such events are permitted events approved by a Texas non-profit corporation managing Main Plaza under a management agreement approved by the city council.

(4) City department work programs such as "Movies in the Park", are authorized on-premises signs or on-premises digital displays on public property and are exempt from the permit requirements of this section.

(5) The event may only be simulcast from the permitted area to another area on public property permitted for the event or may only be simulcast from the permitted area to private property.

(6) This section does not apply to public art.

(7) To the extent that this section is in conflict with any other provision of the City Code, this section prevails or supersedes the provision in conflict.

(8) Nothing herein shall act as a limitation on city council's authority to authorize on-premises signs or on-premises digital displays for specific events.

(9) Only: 1) on-premises commercial speech, and 2) noncommercial speech is authorized.

Commentary: On-premises commercial, it is authorized only at permitted event in restricted areas. Advertising is classified as on-premises for that event.

(f) *Confiscation of bandit sign placed in right-of-way and public property.*

(1) Any bandit sign placed in violation of the provisions of this section by placement in right or way and public property is hereby declared a nuisance to the public health, safety and welfare and may be confiscated and disposed of immediately without notice.

(2) Bandit signs are abandoned trash at the time of posting and may be removed and discarded without notice. Any citizen removing a bandit sign shall do so at his or her own risk and neither the city nor any public utility exercising control of the right-of-way, pole or fixture shall be liable for damage, loss or injury due to such independent acts.

(g) *Placement of bandit sign—Criminal offense, penalty.*

(1) A person commits an offense if the person places a bandit sign in violation of this section. Legally placed temporary signs in all areas become bandit signs when they violate the terms of authorized placement. Placement of multiple bandit signs constitutes a separate and distinct violation for each sign.

(2) An offense under this section is punishable as follows:

a. First offense by a fine of not less than one hundred dollars ($100.00) and not more than five hundred dollars ($500.00);

b. Second offense by a fine of not less than two hundred dollars ($200.00) and not more than five hundred dollars ($500.00); or

c. Third offense or thereafter by a fine of not less than three hundred dollars ($300.00) and more than five hundred dollars ($500.00).

(3) It is a defense to prosecution if:

a. The sign is placed on the right-of-way of a road or highway maintained by the city by a person other than the defendant, and

b. Without the knowledge of the defendant.

(h) *Placement of bandit sign—Administrative, penalty.*

(1) In addition to any civil penalties described in section 28-9 of this chapter, where the alleged violator of any provision of section 28-75, Temporary signs on public right-of-way and public property is the holder of a valid annual temporary sign permit, the director will follow administrative penalty provisions below, prior to application of criminal charges:

a. *First violation.* A written warning shall be given.

b. *Second violation.* Revocation of permit and require double fee for new permit and forwarding to administrative hearing officer—Minimum three hundred dollar ($300.00) civil penalty.

c. *Third violation.* Revocation of permit and require double fee for new permit; said permit and any additional permits shall not be issued to the violator until one hundred twenty (120) days has passed from the date of revocation and forwarding to administrative hearing officer—Minimum five hundred dollar ($500.00) civil penalty.

(3) The accused may appeal the revocation of the permit and the one hundred twenty (120) days hold on the ability to obtain temporary permits to the building related and fire codes appeals and advisory board.

a. The request for appeal must be submitted to the development services department, by certified mail, return receipt requested, within seven (7) days of receipt of the director's determination. A failure to appeal within the prescribed period finalizes the director's determination.

b. Appellate procedures follow this chapter and applicable provisions of chapter 10 of the City Code.

(Ord. No. 2017-05-04-0297, § 1(Att. 1), 5-4-17; Ord. No. 2023-6-01-0369, § 1(Att. I), 6-1-23)

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ARTICLE V. FEE SCHEDULE

Sec. 28-76. Fee schedule.

The following fee schedule details the fees charged for all examinations, reexaminations and various sign permits required by this chapter. Note that the fee schedule shall be passed by the city council by separate ordinances. A copy of the ordinance will be posted in the offices of the department of development services and in the office of the city clerk.

Off-premises sign operator license examination fee		$80.00
Off-premises sign operator license reexamination fee		$80.00
Off-premises sign operator's license		$375.00
Renewal of off premises sign operator's license		$375.00
On-premises sign operator license examination fee		$80.00
On-premises sign operator license reexamination fee		$80.00
On-premises sign operator's license		$100.00
Renewal of on-premises sign operator's license		$100.00
Duplicate license for one lost, destroyed or mutilated		$5.00
Off-premises sign annual inspection fee:	≤72 ft^2	$50.00
	>72—300 ft^2	$50.00
	>300—672 ft^2	$75.00
Portable sign annual inspection fee, per year		$50.00
On-premises sign permit fee:	≤32 ft^2 of sign area	$10.80
	> 32 ft^2 of sign area	$10.80 + $0.22 per ft^2 over 32 ft^2
	Sign height fee	$2.00 per ft of height
	Cloth banners	$5.40
Electrical sign inspection fee: In addition to the commercial fees required by this section, the following are also required for electrical signs:	Gas or Vacuum Tube	$10.80
	Incandescent Sign	$5.40
	Plus # of sockets each	$0.22
Off-premises sign removal permit:		$100.00
Banner/inflatable permits:	Sign inspection fee	$50.00
	Banner, cloth or other	$5.40
	Street light pole across street	$5.40
	Flag lines	$1.60
Preliminary site inspections, each		$50.00
On-premises sign permits inspection fee:	≤32 ft^2	$60.80
	>32 ft^2	$60.80 + $0.22/$ft^2$ over 32 ft^2
On-premises sign permits—Gas tube/electric:		$10.80
On-premises sign permits—Incandescent signs:		$5.40 + $0.22/ socket
On-premises sign permits—Sign ht/ft		$2.00
On-premises sign permits—Digital display/electronic message center fee Commentary: This fee is in addition to other required permit and inspection fees		$15.00
Off-premise sign permits—Inspection fee:	≤ 75 ft^2	$66.20
	> 75 ft^2	$66.20 + 0.22 ft^2 over 75 ft^2

Historic designated properties: See Chapter 35 C-112	<15 ft^2 sign permits per sign	$75.00
	Permit application	$25.00
	HDRC sign approval application fee	$50.00
	Paint permit fee, per permit application	$10.00
Off-premises digital sign permits inspection fee:	≤75 ft^2	$264.80
	> 75 ft^2	$264.80 + 0.88 ft^2 over 75 ft^2
Off-premises digital sign annual inspection fee:	≤72 ft^2	$200.00
	>72—300 ft^2	$300.00
	>300—672 ft^2	$400.00
Sign certification fee, per inspection		$50.00
Sign plan review fee, per permit		$50.00
Additional processing fee for paper applications		$50.00
Temporary signs per section 28-74 renewal fee		$25.00
Temporary signs per section 28-75 public property/ROW		1st two signs included in event permit (i.e., garage sale, etc.); third is $50.00 permit fee plus $5.00 for each decal

(Ord. No. 2017-05-04-0297, § 1(Att. 1), 5-4-17)

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Chapter 29

STREETS AND SIDEWALKS*

Art. I. **In General, §§ 29-1—29-35**

Art. II. **Street Numbering, §§ 29-36—29-65**

Div. 1. Generally, §§ 29-36—29-50

Div. 2. Street Numberers, §§ 29-51—29-65

Art. III. **Sidewalk and Curbing Contractors, §§ 29-66—29-105**

Art. IV. **Excavations, §§ 29-106—29-204**

Div. 1. General Provisions, §§ 29-106—29-123

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Div. 3. Costs, Fees and Enforcement, §§ 29-168—29-171

Div. 4. Indemnification, Insurance, Bonding, and Liability, §§ 29-172—29-178

Div. 5. Variances and Exemptions, §§ 29-179, 29-180

Div. 6. Certificated Telecommunication Providers, §§ 29-181—29-186

Div. 7. Fiscal Provisions, §§ 29-187, 29-188

Div. 8. Reserved, §§ 29-189, 29-190

Div. 9. Sidewalk Construction, §§ 29-191—29-202

Div. 10. Weight Limited Bridges, §§ 29-203, 29-204

***Editor's note—**Ord. No. 93319, § 1, adopted January 25, 2001, repealed the former articles IV, V, and VI and enacted new provisions as set out herein. Formerly, articles IV, V, and VI pertained to excavations, sidewalk construction, and weight limited bridges, respectively, and derived from Code 1950, §§ 52-20—52-31, 52-162—52-177; Code 1959, §§ 35-16—35-27, 35-29—35-45; Ord. No. 33865, §§ 1—5, adopted Nov. 11, 1965; Ord. No. 37301, §§ 1, 2, adopted Feb. 27, 1969; Ord. No. 39762, § 5, adopted July 29, 1971; Ord. No. 40639, §§ 3, 4, adopted April 27, 1972; Ord. No. 45535, §§ 21, 23, adopted July 24, 1975; Ord. No. 49627, §§ 15, 16, adopted July 27, 1978; Ord. No. 52523, § 6, adopted July 24, 1980; Ord. No. 54272, § 1, adopted Sept. 17, 1981; Ord. No. 55811, § 23, adopted Sept. 16, 1982; Ord. No. 59311, § 8, adopted Sept. 4, 1984; Ord. No. 61329, adopted August 29, 1985; Ord. No. 71464, § 4, adopted April 26, 1990; Ord. No. 79913, §§ 1—3, adopted March 31, 1994; Ord. No. 88489, §§ 1—7, adopted Sept. 17, 1998; Ord. No. 88491, §§ 1—5, adopted Sept. 17, 1998.

Ord. No. 93319 renamed articles V and VI to read as divisions 9 and 10, respectively, of article IV.

Charter references—General street powers of city, § 3, par. 7 et seq.; construction and repair of sidewalks, § 3, par. 13(11).

Cross references—Planning, § 3-1 et seq.; mobile home parks, § 18-1 et seq.; parks and recreation, § 22-1 et seq.; soliciting from occupants of vehicles prohibited, § 19-8; railroads, § 27-1 et seq.; signs, § 28-1 et seq.; subdivisions, § 30-1 et seq.; water and sewers, § 34-1 et seq.; notice prior to making street improvements, § 34-37; zoning, § 35-1 et seq.

State law reference—General authority relative to streets and sidewalks, Vernon's Ann. Civ. St. art. 1175(16)—(18), (20).

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ARTICLE I. IN GENERAL

Sec. 29-1. Use of streets a privilege.

The use of the streets by any person for the purpose of operating or causing to be operated thereon any vehicle engaged in transporting passengers for hire over fixed routes is declared a public franchise or privilege in the nature of a franchise and such business or occupation a public utility, the exercise of which is conditioned upon and subject to grant, authorization, license, inspection and regulation by the city council.
(Code 1950, § 13-3; Code 1959, § 1-18)

Sec. 29-2. Reserved.

Editor's note—Ord. No. 71696, § 6, adopted June 7, 1990, repealed former § 29-2, relative to collecting donations, selling goods, services and soliciting business upon public streets prohibited, which derived from Code 1959, § 26-31 and Ord. No. 52865, § 2, adopted Oct. 2, 1980.

Sec. 29-3. Depositing litter, trash and waste material.

It shall be unlawful for any person to throw, dump, deposit, or place any litter, trash or waste material of any kind in or on any public plaza, square, park, street, parkway or sidewalk, or in any planter box or plant container located on such sidewalk.
(Code 1959, § 26-17.1; Ord. No. 36462, § 1, 4-25-68)

Sec. 29-4. Discharges of impure water and fluids into streets.

(a) It shall be unlawful for any person to run or discharge any fluid or water containing oil, grease, soap, lye, washing powder, mud or filth, on or into any of the public streets within the city; however, the scrubbing of walks and driveways with reasonable amounts of mild detergent and flushed with clear water from a hose not to exceed three-fourths of an inch in diameter and operating on normal city water pressure shall not be deemed a violation of this section even though water incidentally spills over into the city streets, provided the water does not extend into the traffic lanes.

(b) Spots on walks or driveways may be dissolved and washed in the manner described above, but the flushing of liquid oil, grease, kerosene, naphtha, or other solvents detrimental to asphalt into city streets shall be prohibited. Sections of this Code dealing with water conservation are not waived under this section.

(c) In locations where drainage conditions do not permit complete runoff, and pooling of water results between the curb and the traffic lane, the person responsible for such pooling shall be responsible for the immediate removal of such pooled water, or will be deemed to be in violation of this section.

(d) For the purposes of this section, the term "traffic lane" shall mean that portion of the roadway beginning at a point three (3) feet out from the curb line adjoining the location involved.
(Code 1950, § 41-4; Ord. No. 17835, 7-3-52; Ord. No. 20304, 6-17-54; Ord. No. 20459, § 1, 8-19-54; Code 1959, § 26-14)

Sec. 29-5. Sweeping and cleaning sidewalks by merchants in sidewalk stands.

(a) It shall be the duty of all persons selling vegetables, fruits or other commodities on the plazas and squares of the city to sweep and clean the several spaces or stands respectively occupied by them, and also to sweep and clean the area within a radius of five (5) feet from each of such spaces or stands.

(b) Such spaces shall be so swept and cleaned immediately before the several occupants quit the same, and at each time that they may be occupied by them. All litter, trash, refuse and other matter so swept together shall be immediately removed from the plazas and squares by such occupants and shall be disposed of in the same manner as is provided by chapter 14 for the disposal of garbage.
(Code 1950, § 52-10; Code 1959, § 35-5)

Sec. 29-6. Transportation which is injurious to streets.

(a) It shall be unlawful for any person to transport or cause to be transported any gravel, broken rock, coal, wood, coarse sand and trash on

or over any street in the city in such manner as to permit any such substance to fall out of any vehicle upon any street of the city, and it shall be unlawful for any person to use or cause to be used any vehicle for hauling any such substance, other than vehicles with a bed or box tightly constructed and of sufficient size to carry such substance securely so that the same cannot drop out on any street.

(b) All vehicles used for the transportation of crushed stone, wood, dirt, trash, sand, gravel or coal shall be constructed in such a manner as to prevent leakage or spillage of crushed stone, wood, dirt, garbage, gravel or coal upon the city streets.
(Code 1950, §§ 52-11, 52-12; Code 1959, §§ 35-6, 35-7)

Sec. 29-7. When opening of manholes prohibited.

Manholes shall not be opened in the streets of the business section lying between Alamo Plaza and Flores Street, and between Market and Travis Streets, between the hours of 8:00 a.m. and 9:00 p.m. except for an emergency.
(Code 1950, § 52-13; Code 1959, § 35-8)

Sec. 29-8. Gratings; abutting steps.

The gratings to be used for covering the openings left in the sidewalks of any street, plaza, public lane or alley for lighting and ventilating the cellars of any house or building within the city shall be made in such a manner that they will be entirely safe for persons walking across the same, and the iron bars used for such grating shall be of heavy iron, and not over one (1) inch apart; but no grate hereafter constructed shall extend or project into the sidewalk more than twenty-four (24) inches beyond the building line, nor shall any steps be allowed upon any pavement or sidewalk unless the latter be more than eight (8) feet in width, and in that event they may be allowed by the city council so long as they may not be considered an obstruction to such sidewalks.
(Code 1950, § 52-14; Code 1959, § 35-9)

Sec. 29-9. Reserved.

Editor's note—Ord. No. 2007-01-11-0065, § 2, adopted January 11, 2007, repealed § 29-9 in its entirety, which pertained to permit required to plant trees, etc. in public ways, and derived from the Code of 1950, § 52-17, and the Code of 1959, § 35-10.

Sec. 29-10. Duty of property owners to trim overhanging trees, etc., and remove debris.

It shall be the duty of the occupant, owner or agent of every premises in the city to keep all trees and shrubs on his premises well trimmed so that they will not overhang the sidewalks or streets in such manner as to interfere with free passage over the same. Such abutting property owners, occupants and agents shall further keep the streets and sidewalks adjoining their property free from debris.
(Code 1950, § 52-10; Code 1959, § 35-11)

Sec. 29-11. Maintenance of sidewalks, parkways, curbs and driveways by abutting owners.

(a) It shall be the duty of any property owner, or person, firm or corporation making special use of any sidewalk, curb, parkway or driveway for purposes of ingress and/or egress, or regress for loading, unloading, loading elevators, downspout drains or any other specific use to keep the sidewalks, parkway, curb and driveway abutting said property in a good and safe condition and free from any defects and hazards.

(b) It shall be the duty of the owner of abutting property or any special user, upon receipt of written notification by the director of public works or any of his subordinates, of any defects or dangerous condition of any unsafe and dangerous defect in any sidewalk, curb, gutter, parkway or driveway to repair the same and put it in a safe condition, free from defect and hazard, within thirty (30) days from date of receipt of such notice.

(c) The abutting property owner or person enjoying the use of any property abutting upon any sidewalk, curb, parkway or driveway, or any abutting owner or person who is making special use of any sidewalk, curb, parkway or driveway which is or has become defective and has resulted in

causing damage either to person or property or both as a result of such defective condition, shall be primarily liable and shall and will indemnify and save harmless the city from and against any and all actions, claims, damages, costs and expenses which may be suffered by the city all in such manner as to save the city whole and harmless from all such actions, claims, damages, costs and expense, and such primary liability and indemnity shall exist without regard to whether or not notice of injury, or of such defect has been given the city as provided by section 150 of article XII of the city charter.

(d) Any violation of this section or any provision hereof shall be deemed a misdemeanor and upon conviction, the person or persons found guilty shall be subject to the penalty prescribed in section 1-5.
(Code 1959, § 35-27.1)

Sec. 29-12. Grant of use of streets to utilities and carriers.

It shall be unlawful for any person to use any street or grounds of the city for the purpose of conducting and operating thereon any character of public utility or the business of a common carrier or any other character of business, unless the right to do so is granted by an ordinance duly passed by the city council.
(Code 1950, § 52-19; Code 1959, § 35-12)

Sec. 29-13. Curb cuts, prohibited in certain areas.

No permit shall be issued for construction of any curb cut or driveway leading on to those portions of Commerce Street and Houston Street which lie between Main Avenue and Alamo Street unless the proposed driveway conforms to all of the following requirements:

(1) There shall be a sight triangle adjoining each side of the driveway which shall extend ten (10) feet from the edge of the driveway along the front property line and six (6) feet into the property. Within such area there shall be no wall, vegetation or other obstruction of any nature to interfere with vision of drivers or pedestrians, except that there may be within such area one (1) column supporting a building; provided, no horizontal dimension of such column which is perpendicular to any possible sight line through the sight triangle shall exceed twenty-four (24) inches.

(2) There shall be a warning system using audible or visible signals to warn pedestrians of existing vehicles.

(3) Sufficient off-street storage area shall be provided to prevent the use of street or sidewalk area for storage and to prevent the backing up onto the street or sidewalk area of vehicles using the driveway.

(4) Where the curb cut or driveway is to be used in connection with a parking facility for automobiles, the design of the parking facility shall be such that the width of the driveway and the direction of traffic flow shall conform to sound traffic engineering principles.

(Ord. No. 22395, § 1, 2-23-56; Ord. No. 27549, § 1, 5-7-59; Code 1959, § 35-13)

Sec. 29-14. Duties of public service corporations when improvements to be made.

(a) All public service corporations lawfully having rails, tracks, mains, pipes, poles, conduits, wires or other fixtures or appliances in the public streets of the city are required to take notice of any resolution of the city council and the advertisement inviting bids for the permanent improvement of any street.

(b) It shall be the duty of each public service corporation, after first obtaining a proper permit from the city authorities, to lay, place, repair or renew, in such time and manner as not to hinder or interfere with such work of improvement, all proper rails, tracks, mains, conduits, pipes or other fixtures and appliances, of such size, condition, character, material, weight and arrangement as to suffice fully for all the needs of the service to be rendered by or which may reasonably be required of such public service corporation on such street for and during the period of at least ten (10) years from and after the time of such

improvement, so that it may not be necessary to disturb the pavement of such street for any such purpose during such period.
(Code 1950, § 52-81; Code 1959, § 35-14)

Sec. 29-15. Repairs to buildings after setbacks.

(a) Whenever the city council shall order or authorize the opening or widening of any street and it may become necessary to cut or set back any building or structure on such street to conform to the new property and street line to be established, the owners of property abutting thereon shall be permitted, on application to the director of building inspections, to repair or reconstruct such parts of such building or structure as may be required to replace any parts of the same cut away or removed, with the same style of construction and materials as may conform to the building.

(b) This section shall not authorize the construction of any wooden building or structure or roofs of any combustible materials in districts where such materials are forbidden.

(c) The building may be extended at the rear of the building by a structure corresponding in size to the part cut away. Such extensions shall be constructed under the provisions of this section.
(Code 1950, § 52-82; Code 1959, § 35-15)

Sec. 29-16. Reserved.

Editor's note—Ord. No. 65513, § 2(d), adopted Aug. 13, 1987, provided in part for the deletion of former § 29-16 relative to standard street curb and sidewalk requirements for certain new construction. The provisions of former § 29-16 derived from Code 1959, § 35-87 and Ord. No. 41480, § 1, adopted Nov. 16, 1972.

Sec. 29-17. Specifications.

All sidewalks, cross walk-ways, drive approaches, curbs and combination curb and gutter shall comply with and be in accordance with the specifications for curbs and sidewalks set forth in this chapter and as outlined in chapter 30 of this Code.
(Code 1959, § 35-88; Ord. No. 41480, § 1, 11-16-72)

Sec. 29-18. City's liability not extended by granting permits, leases, etc.

No ordinance or other proceeding of the city council, and no act thereunder by any official of the city, and no failure on the part of the city to object to the use by any person for basement or other purposes of any space under any sidewalk in any public street or place of the city shall be taken to evidence any grant of, or lease or consent by the city to any permanent right to the use of such space; but the city shall at all times have the right and power to revoke any permission given for the use of such space, or to take and use, or cause to be taken and used, any and all such space when needed for public use.
(Code 1950, § 52-32; Code 1959, § 35-28; Ord. No. 30271, § 2, 4-11-62)

Sec. 29-19. Reserved.

Editor's note—Ord. No. 2007-08-30-0913, § 3, adopted August 30, 2007, repealed § 29-19 in its entirety, which pertained to fees for street name changes, and derived from Ord. No. 60446, §§ 1—3, adopted March 21, 1985.

Sec. 29-20. Placement and maintenance of appurtenances prohibited on sidewalks and rights-of-way improved in the Tri-Party Downtown Transportation Improvements Project.

(a) For purpose of this section, the following terms shall have the meanings as indicated:

Appurtenance shall mean any accessory or subordinant building, object or structure, fence, street furniture fixture, trash receptacles, planters, vending machine (excluding newspaper vending machine), fountain, public artwork, or bicycle rack located within the city public right-of-way. Newspaper vending machines are specifically addressed by separate ordinance.

Designated street shall mean any street or public right-of-way which has been or will be improved or reconstructed under the Tri-Party Downtown Transportation Improvements Plan, as set out in the list on Attachment A, attached hereto and incorporated herein.

Person shall mean an individual, corporation, partnership, firm, or association.

(b) It shall be unlawful for a person to knowingly place or maintain an appurtenance on a sidewalk or public right-of-way abutting a designated street.

(c) It shall be unlawful for a person to knowingly cause another person to place or maintain an appurtenance on a sidewalk or public right-of-way abutting a designated street. For purposes of this section, a person knowingly causes another person to place or maintain an appurtenance when he aids, directs, hires, or enters into a contract with another person for the aforementioned purpose.

(d) Any person placing or maintaining an appurtenance in violation of this section shall, upon conviction, be punished by a fine of not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00). In addition, any appurtenance found to be in violation hereof may be identified by placing thereon a highly visible and easily read notice stating that the appurtenance is in noncompliance and must be removed within seventy-two (72) hours. If the appurtenance is not removed, the city may remove same and dispose of it at a police department auction of unclaimed or abandoned property and in accordance with the procedures and practices governing such auctions.

(e) This section shall become effective on April 15, 1989, for Tri-Party Downtown Transportation Improvements on which construction has been completed and for which beneficial occupancy by the city has occurred. It shall take effect on other Tri-Party Downtown Transportation Improvements streets at subsequent completion milestones as indicated on the Construction Phasing Timetable as shown in Attachment B.

(Ord. No. 69131, §§ 1—5, 3-23-89)

Editor's note—Ord. No. 69131, §§ 1—5, adopted March 23, 1989, did not specifically amend the Code and at the discretion of the editor said provisions have been included herein as § 29-20. Attachments A and B referred to in § 29-20 have not been set out at length herein but are on file and available for inspection in the offices of the city.

Cross reference—Newspaper vending machines in area of Tri-Party Downtown Transportation Improvements, § 16-321 et seq.

Sec. 29-21. Compensation for costs associated with restoration, reconstruction and repair of damage to Tri-Party Downtown Transportation Improvements.

(a) It shall be the responsibility of the persons and/or utility companies that damage or disturb public Tri-Party Downtown Transportation Improvements, which are generally indicated by location in Attachment I hereto, as may be amended to include further future and similar improvements, to compensate the City of San Antonio for actual costs of labor, equipment, materials and overhead associated with city public works department restoration, reconstruction and/or repair of said improvements in general accordance with Tri-Party Design Plans and Specifications.

(b) Persons and/or utility companies causing construction, excavation or demolition to take place within or under, the public Tri-Party Downtown Transportation Improvements shall be responsible to construct bedding and initial backfill in the excavation up to an elevation to be determined in each instance by the city engineer, at which point Tri-Party specified backfill subgrade or base will be constructed by the city public works department. That initial construction of bedding and initial backfill by the person and/or utility company, shall be accomplished in accordance with prudent civil and utility engineering and construction standards. This city public works department construction is a means to assure that the Tri-Party Improvements restoration, reconstruction and/or repair may be successfully placed above such initial construction, excavation or demolition conducted by persons and/or utility companies.

(c) Tri-Party Improvements pavement, including subgrade, base course(s), and surface course, will be replaced by city public works department forces to generally conform to design sections indicated on applicable construction documents for the Tri-Party Downtown Transportation Improvements Project. These construction documents shall include drawings and specifications as originally prepared by:

Package 1—Johnson, Johnson & Roy, Inc. and others;

Package 2—Ford, Powell & Carson and others;

Package 3-LAN/Saldana and Amphion Environmental;

and any and all changes or modifications to those documents made during the course of original construction as evidenced in the "as-built" record drawings.

Where, in the opinion of the director of public works, it is necessary for the city public works department to modify original construction methods, materials, or design to achieve the intent of the original Tri-Party Improvements design, those additional changes shall also be incorporated by the city in the Tri-Party Improvements restoration, reconstruction and/or repair, and paid for by the person and/or utility company.

(d) Any person or utility company considering construction, excavation, or demolition activity within, or under the Tri-Party Improvements shall in advance of same, submit design plans to the city's building inspector for review and comment and shall secure proper permits and/or approvals and pay appropriate fees as otherwise required by the San Antonio City Code. Additionally, the person or private utility company that intends to disturb Tri-Party Improvements shall post a bond, make a cash deposit with the city, or provide other suitable forms of financial security as determined by the city's building inspector in an amount that approximates the projected costs of inspection/observation, labor, equipment, materials, and overhead associated with the city public works department restoration, reconstruction and/or repair activities as estimated in writing and in advance

of construction by the city engineer. Upon completion of the work conducted by the public works department, the person or utility company shall be presented with a final invoice stating the actual costs incurred by the public works department listed by general accounting categories. Within thirty (30) days of city issuance of the final invoice to the person or utility company, reimbursement to the city shall occur. Upon satisfactory payment of the invoice, the city shall release any remaining forms of financial security posted by the person or private utility company.

(e) Emergency conditions requiring immediate response by affected parties warrant the city's building inspector to exercise hereby authorized discretion to waive and/or modify normal standard procedures outlined herein and to promulgate special written conditions to expeditiously address the resolution of the emergency conditions.

(f) To the maximum extent permitted by applicable law, this section shall apply to previously authorized franchise agreements and licenses or contracts allowing use of the city's public right-of-way.

(g) Conviction for violation of this section shall be punishable by a fine in San Antonio Municipal Court not to exceed five hundred dollars ($500.00), and city council hereby directs that any said fines collected be deposited into Fund No. 29, Project 014000, Streets/Drainage Maintenance and Improvement Fund.

(Ord. No. 69219, §§ 1—7, 4-6-89)

Editor's note—Ord. No. 69219, §§ 1—7, adopted April 6, 1989, did not specifically amend the Code and at the discretion of the editor said provisions have been included herein as § 29-21. Attachment I referred to in § 29-21 has not been set out at length herein but is on file and available for inspection in the offices of the city.

Secs. 29-22—29-35. Reserved.

Editor's note—Ord. No. 2007-01-11-0065, § 2, adopted January 11, 2007, repealed §§ 29-22 and 29-23 in their entirety. Formerly, §§ 29-22 and 29-23 pertained to the sale of land processing fee; real estate fee; public right-of-way license fee; reduction and waivers; lease transfer fee, and fees for cell towers on city-owned property, respectively, and derived from Ord. No. 99729, § 1, adopted September 16, 2004, and Ord. No. 2006-09-07-0996, § 1, adopted September 7, 2006.

ARTICLE II. STREET NUMBERING

DIVISION 1. GENERALLY*

Secs. 29-36—29-50. Reserved.

DIVISION 2. STREET NUMBERERS†

Sec. 29-51. License required; application for license; numbering specifications; penalty.

(a) *License required.* It shall be unlawful for any person to maintain, own or operate a business which engages in painting house or street numbers on curbs or driveway approaches for pay, or to paint house or street numbers on curbs or driveway approaches for pay, unless said person has been issued a license for such business from the city, or is an employee of such a licensed person.

(b) *Application for license, contents; fees; term, nonassignability.*

(1) Application for such a license required by this division shall be made to the department of building inspections and shall contain the correct name and address of the applicant, including the office address and telephone number where the business may be contacted.

(2) The fee for the initial license shall be twenty-five dollars ($25.00).

(3) A license shall be good for one (1) year.

(4) A fee of twelve dollars and fifty cents ($12.50) shall be charged for each annual renewal.

(5) No license issued pursuant to this division shall be assignable or transferrable.

***Editor's note—**Ord. No. 65513, § 2(d), adopted Aug. 13, 1987, provided in part for the deletion of former Div. 1, §§ 29-36—29-40 relative to general street numbering provisions. Former §§ 29-36—29-40 derived from Code 1950, §§ 52-2, 52-4—52-7; Code 1959, §§ 35-1—35-3.1, 35-4.3; Ord. No. 42254, §§ 1, 2, adopted May 24, 1973; and Ord. No. 57453, § 3, adopted Aug. 18, 1983.

†**Cross references—**Licenses and business regulations, Ch. 16; size and specifications for street numbers in subdivisions, § 35-4134.

(c) Street numbers.

(1) *Numbering system.* The numbering of all structures fronting on public streets shall be in conformity with the following system:

a. Commerce Street, with its continuations to the city limits, shall divide the city north and south and the San Antonio River shall divide the city east and west. Each street crossing the established east and west base line (Commerce Street) shall have the word "north" or "south" prefixed to its name proper, according as the line of such street shall be north or south of such established east and west base line. Each street crossing the established north and south base line (San Antonio River) shall have the word "east" and "west" prefixed to its name proper, according as the line of such street shall be east or west of such established north and south base line.

b. The odd numbers shall apply to the north and west sides of the streets, and the even numbers to the south and east sides of the streets. The first block will be numbered from 100 up, the second block from 200 up, the third block from 300 up, and so on.

c. Tracts of land longer than five hundred (500) feet that have not as yet been subdivided in blocks and streets will be allowed ten (10) numbers to approximately every two hundred fifty (250) feet.

(2) *Conflicting street numbers.* Any old number in conflict with the number given by the director of building inspections shall be removed and any person refusing or neglecting to remove the same shall be guilty of an offense.

(3) *Where and by whom street numbers to be affixed.*

a. To ensure uniformity and regularity in the numbering of structures, it shall be the responsibility of the owner of any structure fronting on a public street to place numbers on the structure in so conspicuous a manner that the number may be easily discernible from the opposite side of the street.

b. If any structure shall be located too far back from the street for a number on its front to be easily seen and read from the opposite side of the street, or the front of the structure is hidden, or the view obstructed by trees, plants, shrubbery or other objects, then the number of such structure and premises shall be placed on a plank or post in a conspicuous part of the premises whereon the structure is located.

(4) *Size and specifications for street numbers.*

a. Each street number shall be of any durable material.

b. All numbers painted on curbs or driveway approaches shall be black on a white rectangular background, or white on a black rectangular background, and of a durable and waterproof finish.

c. The numbers on curbs shall be a minimum of three (3) inches in height, with the background at least one (1) inch higher than the digits, and extending at least one and one-half (1½) inches beyond the digits on both ends. The width of the digits shall be in proportion to the height. A one (1) inch distance shall be maintained between figures.

d. The rectangular background shall be no more than twenty (20) inches in length.

e. The street numbers may be on the driveway approach or curb. If on the curbs, they shall be placed not more than two (2) feet from the driveway at the nearest point. If the lot has no front driveway, the numbers shall be centered on the lot.

(d) *Penalty for violation.* It shall be unlawful for any person to paint or have an employee paint such numbers on curbs or driveway approaches without a license, or other than in accordance with this division. Upon conviction for violation hereof, a licensee shall be punished by fine of not less than one dollar ($1.00) nor more than two hundred dollars ($200.00).
(Code 1959, §§ 35-4.1, 35-4.2; Ord. No. 57453, §§ 1—4, 8-18-83)

Editor's note—At the direction of the city, street numbering provisions as set out in Code §§ 35-4131—35-4134 (derived from Ord. No. 65513, § 2(i), adopted Aug. 13, 1987) have been transferred to Ch. 29, Art. Il and at the discretion of the editor also set out within § 29-51(c).

Cross reference—Similar provisions regarding subdivision street numbers, § 35-4131 et seq.

Secs. 29-52—29-65. Reserved.

ARTICLE III. SIDEWALK AND CURBING CONTRACTORS

Sec. 29-66. "Contractor" defined.

For the purposes of this article, the term "contractor" shall mean any person undertaking or doing any work of constructing sidewalks, curbing or gutters.
(Code 1959, § 35-61; Ord. No. 40639, § 1(1), 4-27-72)

Sec. 29-67. License required.

It shall be unlawful for any contractor to make any excavation or commence or prosecute any such work in any part of any public street, sidewalk or other public place in the city without first obtaining a license therefor. The license shall remain unsuspended and in effect at the time when the excavation or construction for the work is in good faith actually commenced or prosecuted on the ground.
(Code 1959, § 35-61; Ord. No. 40639, § 1(1), 4-27-72)

Sec. 29-68. Application for license; information required.

Every contractor desiring to engage in the business or occupation of constructing sidewalks, curbing or gutters in public streets or other public places shall make, sign and file with the director -of building inspections an application in writing, requesting the issuance of a license by the city to such contractor authorizing such contractor to engage in such business or occupation. The application shall list each person expected to manage or superintend the performance of the work for the applicant, and shall also state the names of each person owning or holding any financial interest or share of stock in any corporation applying for the license, and for each person so required to be mentioned, application shall also state the experience of the person in such construction work, stating when, how and where, and during what periods such experience was gained, and shall also state whether or not the applicant has duly conformed to all requirements of the city as to all such work theretofore done by applicant in the city and if not, why not.
(Code 1959, § 35-62; Ord. No. 40639, § 1(2), 4-27-72)

Sec. 29-69. False statements in application for license.

Any false or misleading statement made in any such application for a license required by this article shall be sufficient grounds for the director of building inspections to suspend any license granted thereon.
(Code 1959, § 35-63; Ord. No. 40639, § 1(3), 4-27-72)

Sec. 29-70. Approval or disapproval of application for license.

Each application for a license required by this division shall, before being so filed, be presented by the applicant to the director of building inspections who shall be authorized to approve it by his signature, or to withhold such approval in the event he be of opinion that sufficient reason exists why such license should not be granted.
(Code 1959, § 35-64; Ord. No. 40639, § 1(4), 4-27-72)

Sec. 29-71. Appeal from disapproval of license application.

If the application for a license required by this article is not approved by the director of building

inspections, the director shall, if requested by the applicant, present the application to the city council which shall fix a date for a hearing of the matter and cause the notice thereof to be given to the applicant. Upon the hearing being had, the city council may either reject the application or approve the same on such conditions as they may order.
(Code 1959, § 35-65; Ord. No. 40639, § 1(5), 4-27-72)

Sec. 29-72. Issuance of license.

If an application for a license required by this article is approved, the director of building inspections shall, upon payment by the applicant of the required fee and posting of the required bond, issue to the applicant a written license for a period of one (1) year beginning at the first day of January through the last day of December.
(Code 1959, § 35-66; Ord. No. 40639, § 1(6), 4-27-72; Ord. No. 42160, § 1, 5-3-73)

Sec. 29-73. License not transferable.

A license issued pursuant to this article shall not be transferable, and it shall be unlawful for any contractor to sublet any work without the written consent of the director of building inspections, and then only to another duly licensed contractor.
(Code 1959, § 35-67; Ord. No. 40639, § 1(7), 4-27-72)

Sec. 29-74. License fee.

For each such license issued, the department of building inspections shall collect, and receive, for the use of the city, a license fee of sixty dollars ($60.00). The fee for issuing a duplicate license for one lost, destroyed or mutilated shall be fifty dollars ($50.00).
(Code 1959, § 35-68; Ord. No. 40639, § 1(8), 4-27-72; Ord. No. 45535, § 9, 7-24-75; Ord. No. 49627, § 22, 7-27-78; Ord. No. 52523, § 16, 7-24-80; Ord. No. 61329, 8-29-85; Ord. No. 2008-09-11-0777G, § 16, 9-11-08)

Cross reference—Fee schedule, § 6-3.

Sec. 29-75. Implied agreement of applicant or licensee.

Every person making application and receiving a license under this article shall be held to have agreed to perform, observe and comply with all the terms, stipulations, conditions and provisions of this chapter, which provisions shall be and become a part of every contract or agreement for such work which may be hereafter made or entered into by and between a contractor and any property owner.
(Code 1959, § 35-69; Ord. No. 40639, § 1(9), 4-27-72)

Sec. 29-76. Suspension of license.

In the event any contractor shall fail or refuse to conform to the provisions of this chapter, or fail or refuse to obey the instructions of the director of building inspections or fail or refuse to comply with any provision of any contract made by such contractor consistent with this chapter, or in the event any contractor shall fail or refuse to provide any additional bond when required by this chapter, then the director of building inspections shall be authorized by written notice to such contractor to suspend the license of such contractor, cancel all unexecuted permits issued to such contractor, and stop all work being done by him, and to withhold from him all further permits for such work, until any or all incomplete or defective work of such contractor, or other objection, shall be fully and completely remedied by such contractor, and such suspension set aside by written notice from the director delivered to such contractor, and in case such failure or refusal by contractor be, in the opinion of the director, willful or persistent, the director may decline to set aside such suspension, and such contractor shall, in such case, if he desires to have such suspension set aside, petition the city council therefor, who shall determine such matter after due notice and hearing.
(Code 1959, § 35-70; Ord. No. 40639, § 1(10), 4-27-72)

Sec. 29-77. Permit for work required.

Before proceeding with any work or placing any materials on the ground by or for any con-

tractor, the contractor shall make, sign and file with the director of building inspections a written application for a permit authorizing the work, which application shall be in such form as may be required by the director. The application shall include the lines, grades and specifications for the work. The director, subject to the provisions of this Code and upon payment of the permit fee, shall issue to such contractor a signed permit in writing which, among other things, shall be dated, name the contractor and property owner, and contain a receipt for the permit fees, and describe the character and location of the work, and authorize such work to be executed as herein provided. The permit shall remain unsuspended and in effect at the time when the excavation or construction work is in good faith actually commenced or prosecuted on the ground.
(Code 1959, § 35-71; Ord. No. 40639, § 1(1), (11), 4-27-72)

Sec. 29-78. Life of permit.

All work authorized by a permit issued under this article shall be commenced within six (6) months after date of issuance and thereafter continuously prosecuted. Further time will be allowed only if an extension of time be granted by the director of building inspections.
(Code 1959, § 35-72; Ord. No. 40639, § 1(12), 4-27-72)

Sec. 29-79. Renewal of permit; work to conform to permit.

No work shall be done under any permit issued under this article except as stated in the permit. If the permit is allowed to expire, the contractor shall apply for and procure a new permit, paying the fee therefor as before, before proceeding with any such work.
(Code 1959, § 35-73; Ord. No. 40639, § 1(13), 4-27-72)

Sec. 29-80. Fees; refunds.

(a) The fees for permits and inspections coming within the terms of this article shall be as follows:

(1) *Sidewalks,* nine cents ($0.09) per square foot.

(2) *Curbing,* nine cents ($0.09) per running foot.

(3) *Gutters,* eight cents ($0.08) per running foot.

(4) *Combined curbs and gutters,* eight cents ($0.08) per running foot.

(5) *Reinspections,* twenty-five dollars ($25.00).

(b) No permit shall be issued for less than a fee of one dollar ($1.00) in any case based on the work authorized, and the fee in each case shall be paid to the director of development services upon issuance of the permit.

(c) The director of development services shall keep, or cause to be kept, as a record of his office, a copy of each permit and receipt issued.

(d) If a job for which a permit has been issued under this article is not started, the permittee may apply for a refund of said permit fee to the director of finance within one hundred eighty (180) days of the date of the issuance of said permit. The director of finance will forward such application with a recommendation to the city manager for approval. The city manager may authorize the refund of any portion of the permit fee; however, in every such case the city shall retain not less than five dollars ($5.00) of the permit fee.
(Code 1959, §§ 35-74, 35-61; Ord. No. 40639, § 1(14), 4-27-72; Ord. No. 45545, § 20, 7-24-75; Ord. No. 45565, § 6, 8-7-75; Ord. No. 49627, § 17, 7-27-78; Ord. No. 59311, § 9, 9-4-84; Ord. No. 61329, 8-29-85; Ord. No. 76463, § 11, 9-10-92; Ord. No. 2008-09-11-0777G, § 16, 9-11-08)

Sec. 29-81. Bond required.

A good and sufficient bond shall be filed with the application for the license required by this article, executed by a bonding company, which bond shall be approved by the director as to form and sufficiency and shall be in the sum of not less than two thousand dollars ($2,000.00). The bond shall be conditioned, among other things, that the contractor shall faithfully, at his own cost and expense, furnish all proper materials, tools and appliances, and perform, execute, construct and complete all such work undertaken by such contractor, and observe and comply with the specifi-

cations, requirements and provisions of this chapter. The bond shall remain in effect at the time when excavation or construction for the work is in good faith actually commenced or prosecuted on the ground.
(Code 1959, § 35-75; Ord. No. 40639, § 1(1), (15), 4-27-72)

Sec. 29-82. Maintenance provisions in bond.

(a) Every contractor licensed under this article shall be bound and obligated to construct all work, and use such materials in the construction thereof, so that the same shall be and remain for and during a period of not less than one (1) year from and after the date of completion in good, sound, smooth and serviceable condition and free from all cracks, breaks, disintegration, undue wear, scaling or departures from true line or grade, or other defects which might impair the permanence or usefulness of the work; however, such cracks as may appear in expansion joints, or cuts between blocks, shall not be deemed to be defects unless in the opinion of the director of building inspections such cracks are excessive in opening or deflection of surface.

(b) Each such bond issued pursuant to this article shall continue in effect for and during the maintenance period of one (1) year as to all work constructed or commenced in good faith on the ground during the period of the license in connection with which the bond may be given.
(Code 1959, §§ 35-76, 35-77; Ord. No. 40639, § 1(16), (17), 4-27-72)

Sec. 29-83. Withdrawal of surety on bond.

On written notice to the director of building inspections and the contractor, any surety on a bond issued pursuant to this article may withdraw from all liability thereon on account of any and all further work undertaken by the contractor for which excavation or construction was not in good faith actually begun on the ground before the delivery of the notice, and after receipt of the notice the contractor shall not begin any new work unless and until the contractor shall provide and procure the approval of a new bond in the same manner as required for the first bond.
(Code 1959, § 35-79; Ord. No. 40639, § 1(19), 4-27-72)

Sec. 29-84. When additional security required.

If the director of building inspections shall be of opinion at any time and on any reasonable grounds that the solvency of or financial responsibility on any bond of any contractor is or may be insufficient or materially reduced by actual or possible claims, then the director may make written demand on such contractor for an additional bond which shall be of corresponding amount, form and sufficiency, and thereupon such contractor shall immediately furnish such additional bond. The previous bond shall not be held to cover any work not actually begun as aforesaid, before the date of such new bond, but all work begun after such date shall be covered by such new bond.
(Code 1959, § 35-78; Ord. No. 40639, § 1(18), 4-27-72)

Sec. 29-85. Decision of director binding on contractor and sureties.

In any question as to when any work was actually begun, the decision of the director of building inspections shall be conclusive on the contractor and the sureties on all such bonds.
(Code 1959, § 35-80; Ord. No. 40639, § 1(20), 4-27-72)

Sec. 29-86. Removal and reconstruction where work defective.

All construction work in the streets, sidewalks and public places of the city is declared to be wholly subject to the exclusive control of the city, and whenever, in the opinion of the director of building inspections, any such work shall not have been duly completed within a reasonable time or shall have been executed in a defective manner, whether because of bad workmanship or materials or because not true to the lines or grades or specifications therefor given to him by the city engineer, then upon written demand or notice from the director, such contractor shall promptly remedy, complete or remove and reconstruct such incomplete or defective work all as the director may require, and these provisions shall also comprehend and apply to all repair and maintenance work. If the contractor shall fail or refuse so to do within a reasonable time to be

specified by the director of building inspections, then, if the director shall so order, such work shall be completed or corrected or removed and wholly or partially reconstructed by the city, or its instance, in such manner as in the opinion of the director may be necessary to make such work as good as originally required, and such work may be done by contract or otherwise, under the provision of this chapter and the direction of the director.
(Code 1959, § 35-81; Ord. No. 40639, § 1(21), 4-27-72)

Sec. 29-87. Liability of contractor and sureties for defective work.

A contractor whose work is completed by the city shall, on completion of the work and according to the certified bill of the cost thereof to be prepared by the director of building inspections, pay to the city, on its order, the cost of the work for all of which the sureties on the contractor's bond shall be liable as such sureties.
(Code 1959, § 35-82; Ord. No. 40639, § 1(22), 4-27-72)

Sec. 29-88. Liability of contractor and sureties for maintenance and repair work.

If any defects develop during the one (1) year guaranty period established by this article which, in the opinion of the director of building inspections, are due in any measure to defects of workmanship or material, such contractor shall remedy, repair or reconstruct such work, or any part thereof, as may be required by the director, and such work shall be known as maintenance or repair work and the sureties or contractor's bond shall be fully liable for any default of such contractor under this section.
(Code 1959, § 35-83; Ord. No. 40639, § 1(23), 4-27-72)

Sec. 29-89. Duty to barricade, light, etc.

At all times during which any work under a contract coming within the provisions of this article is being performed and until the work is completed and accepted, the contractor shall place and maintain all necessary and proper barriers and other safeguards, including watchmen, if necessary, upon and around the work for the prevention of accidents, and at night shall place, maintain and keep suitable and sufficient lights.
(Code 1959, § 35-84; Ord. No. 40639, § 1(24), 4-27-72)

Sec. 29-90. Indemnification of city for accident.

A contractor doing work pursuant to this article shall indemnify and save harmless the city from and against any and all actions and claims, and against all costs, damages and expenses to which the city may be put by reason of any injury or alleged injury to any person or property, resulting or alleged to result from or to be occasioned by any act, negligence, carelessness or want of skill in connection with or in the conduct of any of said work or in guarding such work, or from any improper methods, tools, implements or materials used in its prosecution, or by or on account of any alleged act or omission whatever of such contractor or his agent, employees or servants, or of any assignee or subcontractor or his agents, employees or servants. Such contractor and his bondsmen shall well and truly make payment of any and all sums so recovered against the city in any suit on account of such injuries to which the city may be made a party, together with all such costs, damages and expenses as may be suffered by the city, all in such manner as to save the city whole and harmless from all such actions or claims.
(Code 1959, § 35-85; Ord. No. 40639, § 1(25), 4-27-72).

Sec. 29-91. Actions on bond by property owner.

Whenever the director of building inspections shall declare in writing that a contractor has failed or refused to construct and complete any such work in conformity with this chapter, either the city or any contracting property owner injured on the contract may sue and recover his damages on the bond required by this article.
(Code 1959, § 35-86; Ord. No. 40639, § 1(26), 4-27-72)

Secs. 29-92—29-105. Reserved.

ARTICLE IV. EXCAVATIONS

DIVISION 1. GENERAL PROVISIONS

Sec. 29-106. Administration.

The director is the principal city official responsible for the administration of the right of way, right of way permits, the regulation of same and ordinances related thereto. The director may delegate any or all of the duties hereunder.

(1) The position of right-of-way manager in the public works department is hereby established. The right-of-way manager in the public works department shall have the same duties, responsibilities and authority as specified for the director stated herein.

(2) The position of utility coordinator in the public works department is hereby established. The utility coordinator shall supervise utility construction projects and utility inspections.

(Ord. No. 93319, § 1, 1-25-01)

Sec. 29-107. Definitions.

The following definitions apply in this chapter of the city Code. The terms, phrases, words, abbreviations, and their derivations shall have the same meanings herein. When not inconsistent with the context, words used in the present tense include the future; words in the plural number include the singular number, and words in the singular include the plural. The word "shall" is mandatory and not merely permissive.

Abandoned facilities means facilities no longer in service or physically disconnected from the operating facilities, or from any other facilities that are in use or that still carry service.

Administrative fee means the fee charged by the city to recover its costs incurred for right-of-way management; including, but not limited to, costs associated with registering applicants; issuing, processing, and verifying right-of-way permit applications; inspecting job sites and restoration improvements; determining the adequacy of right-of-way restoration; revoking right-of-way permits and other costs the city may incur in implementing the provisions of this article.

Applicant means an owner or authorized agent of an owner, who submits an application for a permit under these provisions of the city Code.

Area of influence means that area around a utility excavation where the pavement and subgrade is impacted by the excavation and is subject to more rapid deterioration due to the trench excavation.

Certificated telecommunications provider or *CTP* means a person who has been issued a certificate of convenience and necessity, certificate of operating authority, or service provider certificate of operating authority by the Texas Public utility Commission or "PUC" to offer local exchange telephone service as defined by Section 283 of the Local Government Code or "the Act."

City means the City of San Antonio.

Contractor means any public or private person or organization, other than the city.

Day means business day unless otherwise specified.

Department means the department of public works or a successor department that is responsible for management of the right of way and roadway infrastructure.

Director means the director of the city department of public works, or his or her designee.

Emergency operations are defined as those operations and repairs necessary to prevent damage or injury to the health or safety of the public or any person and the work necessary to address a service interruption. Upgrading of facilities, new service installation and neighborhood improvement projects are not emergency operations.

Excavation means an activity that removes or otherwise disturbs soil, pavement, driveways, curbs, or sidewalks in the right-of-way and does not include landscaping activity unless the activity removes or disturbs the paved portion of the right-of-way.

Facilities means the plant, equipment, and property, including but not limited to lines, poles, mains, pipes, conduits, ducts, cables, micro network nodes, network nodes, node support poles, and wires located under, on, or above the surface of the ground within the right-of-way and valves, and related facilities and equipment used or useful for the provision of utility services.

FCC means Federal Communications Commission.

Governing body means the mayor and the city council of the city of San Antonio, Texas.

Governmental entity means any county, township, city, town, village, school district, library district, road district, drainage or levee district, sewer district, water district, fire district or other municipal corporation, quasi-municipal corporation or political subdivision of the State of Texas or of any other state of the United States and any agency or instrumentality of the State of Texas or of any other state of the United States or of the United States.

Micro network node means a network node that is not larger in dimension than twenty-four (24) inches in length, fifteen (15) inches in width, and twelve (12) inches in height, and that has an exterior antenna, if any, not longer than eleven (11) inches.

Network node means equipment at a fixed location that enables wireless communications between user equipment and a communications network. The term includes: equipment associated with wireless communications; a radio transceiver, an antenna, a battery-only backup power supply, and comparable equipment, regardless of technological configuration; and coaxial or fiber-optic cable that is immediately adjacent to and directly associated with a particular collocation. The term does not include: an electric generator; a pole; or a macro tower.

Network provider means a wireless service provider; or a person that does not provide wireless services and that is not an electric utility but builds or installs on behalf of a wireless service provider: network nodes; or node support poles or any other structure that supports or is capable of supporting a network node.

New street means the paved portion of the right-of-way that has been constructed, reconstructed, or resurfaced with an asphalt overlay, hot in place recycling, full-depth reclamation, reconstruction or other structural street maintenance treatment. "New street" includes all concrete paved streets, streets constructed or structurally resurfaced during the preceding seven years, for a collector or arterial street or during the preceding five (5) years for a residential street or alley or any street with a pavement condition index greater than eighty-five (85) as defined herein.

Node support pole means a pole installed by a network provider for the primary purpose of supporting a network node.

Pavement condition index (PCI) means a measure of the condition of the right-of-way on a scale of 1-100. The PCI is available through the department.

Pavement degradation recovery fee means the cost incurred by the city and the public associated with a decrease in the useful life of a street caused by excavations and failures in restoration of the right-of-way.

Permit means a permit issued under this chapter authorizing excavation in the right-of-way.

Permittee means any person or right-of-way user to whom a permit is issued to excavate a right-of-way.

Person means any person, company, partnership, agency or other public or private entity, excepting the city.

Pole means a service pole, a municipally owned utility pole, node support pole, or utility pole.

Registration means the application process of a ROW user to use any portion of the right-of-way.

Repair means the temporary or permanent construction work necessary to make the right-of-way useable.

Repair area means that area around an excavation where the pavement and subgrade is impacted by an excavation.

Restoration means the process by which an excavated right-of-way and surrounding area, including pavement and foundation, is returned to the same condition, or better, than existed before the commencement of the work.

Resurfacing means any repaving, overlay, seal or reconstruction which creates a new pavement surface over the entire width of the street, excluding crack seals and localized base and pavement repairs.

Right-of-way or *public right-of-way* means the surface of, and the space above and below, any street, road, highway, freeway, lane, path, drainage way, channel, fee interest, public way or place, sidewalk, alley, boulevard, parkway, drive, or other easement now or hereafter held by the city or over which the city exercises any rights of management or control and shall include but not be limited to all easements now held, or hereafter held, by the city but shall specifically exclude private property.

Right-of-way (ROW) user means a person, its successors and assigns, that uses the right-of-way for purposes of work, excavation, provision of services, and to install, construct, maintain, repair facilities thereon, including, but not limited to, landowners, utilities, service providers, and contractors.

Routine service operation means a work activity that makes no material change to the facilities and does not disrupt traffic.

Service means a commodity provided to a person by means of a delivery system that is comprised of facilities located or to be located in the right of way, including, but not limited to, gas, telephone, cable television, internet services, wireless service, open video systems, alarm systems, steam, electric, water, telegraph, data transmission, petroleum pipelines, or sanitary sewage.

Service pole means a pole, other than a municipally owned utility pole, owned or operated by a municipality and located in a public right-of-way, including: a pole that supports traffic control functions; a structure for signage; a pole that supports lighting, other than a decorative pole; and a pole or similar structure owned or operated by a municipality and supporting only network nodes.

Street means the pavement and sub-grade of a city residential, collector or arterial roadway.

Supplementary application means an application made to excavate or obstruct more of the right-of-way than allowed in, or to extend a permit that has already been issued.

TMUTCD shall mean Texas Manual on Uniform Traffic Control Devices, latest edition.

Transport facility means each transmission path physically within a public right-of-way, extending with a physical line from a network node directly to the network, for the purpose of providing backhaul for network nodes.

Utility shall mean any privately or publicly owned entity which uses public rights-of-way to furnish to the public any general public service, including, without limitation, sanitary sewer, gas, electricity, water, mobile services, telecommunications services, information services, cable services, video services, petroleum products, telegraph, heat, steam or chilled water, together with the equipment, structures, and appurtenances belonging to such entity and located within and near the right-of-way. Poles are regulated herein only as specifically set forth in this chapter.

UECM means Utility Excavation Criteria Manual, current edition.

White lining means marking the excavation site with white washable marking paint or flags prior to requesting a utility locate in order to further identify the site.

Wireless service means any service, using licensed or unlicensed wireless spectrum, including the use of Wi-Fi, whether at a fixed location or mobile, provided to the public using a network node.

Wireless service provider means a person that provides wireless service to the public.

(Ord. No. 93319, § 1, 1-25-01; Ord. No. 2016-11-10-0894, § 2, 11-10-16; Ord. No. 2017-08-31-0609, § 1, 8-31-17)

Sec. 29-108. Utility coordination committee.

Each utility shall name a utility coordinator who shall participate in the utility coordination committee.
(Ord. No. 93319, § 1, 1-25-01)

Sec. 29-109. Field utility coordination.

(a) The ROW user shall notify the department at each of the following times during a project:

(1) Forty-eight (48) hours before the start of construction;

(2) Upon completion of the initial backfill; and

(3) Upon completion of the project.

(b) The ROW user shall mark the site of the proposed excavation with white lining and/or flags prior to making a request for locates and actual excavation. White lining is not required for excavations of more than sixty (60) feet long unless the excavation is located in pavers, cobblestone, pavements, sidewalks, or other public flatwork.

(c) The ROW user shall make a request for a utility locate not more than fourteen (14) days and not less than forty-eight (48) hours prior to the commencement of the proposed excavation. Such request shall be made to the state One-Call Center and the San Antonio Water System ("SAWS"). A request made using the One-Call Center (811) shall be made by telephone or facsimile and shall include the date, location, extent and reason for such proposed excavation. A request to SAWS shall be done via SAWS's website, www.saws.org.

(d) The use of markers, stakes, poles, barricades or other devices shall be used in such a way to avoid damage to adjoining property. The use of "non-washable" markers is prohibited.

(e) The ROW user shall mark the proposed excavation site with paint and/or flags in colors established by the One-Call System. The markings shall be placed a distance of not less than five (5) feet in all directions from the outside boundary of the site to be excavated.

(f) All excavations shall commence within fourteen (14) days of the date of the utility locate. In the event that the excavator fails to commence work within fourteen (14) days or the utility locate marks are not visible at the time the excavation is scheduled to commence, the ROW user is required to request a new utility locate.

(g) Compliance with the Texas Utilities Code is required at all times.

(h) All barricades, plates, cones, traffic directional equipment, and all other traffic control devices owned by the ROW user and used on or near any excavation shall be clearly and visibly marked with the name of the permittee and/or ROW user, as applicable, at all times such equipment is used on or near the right of way. An exception to the marking requirement may be made in the event the traffic control equipment is not owned by the permittee or ROW user.

(i) A network provider conducting routine maintenance on network nodes, including micro network nodes, or network support poles that do not require excavation or closing of sidewalks or vehicular lanes in the right-of-way as provided for in V.T.C.A., Local Government Code § 284.157, shall provide the right-of-way manager notice not more than fourteen (14) days and not less than forty-eight (48) hours prior to commencement of the planned routine maintenance.
(Ord. No. 93319, § 1, 1-25-01; Ord. No. 2017-08-31-0609, § 1, 8-31-17)

Sec. 29-110. Maps and records of registrants.

Each ROW user must maintain accurate maps and records of its facilities. The information shall be made available to the department within five (5) days of request by the department. The maps and records shall depict horizontal and vertical locations of all facilities in and near the right of way. The information shall be provided in electronic format compatible with city software or shall be subject to a conversion fee. Maps and records shall indicate horizontal location and a description of the facility for the area involved in the permit application and two (2) block radius. The department may have facilities located if the

ROW user does not provide the requested information. In such event the ROW user shall reimburse the cost to the city to locate the facilities.
(Ord. No. 93319, § 1, 1-25-01)

Sec. 29-111. Notice.

Notice for purposes of this article shall be made to city via electronic message (e-mail), overnight courier (generally used carrier with tracing available), or hand delivery with signed receipt, facsimile to the department, or United States mail return receipt required.
(Ord. No. 93319, § 1, 1-25-01)

Sec. 29-112. Registration.

All ROW users must register with the city within thirty (30) days of the effective date of the ordinance from which this article derives. Any person who is not an existing ROW user prior to the effective date of the ordinance from which this article derives and who wishes to become a ROW user must first register with the city. All ROW users shall report all changes in its registration information within thirty (30) days of such change. No ROW user shall be authorized to utilize the right-of-way in any capacity or manner without registering and obtaining the necessary right-of-way permit from the city.
(Ord. No. 93319, § 1, 1-25-01)

Sec. 29-113. Registration information.

The information required for registration includes the following:

(1) Identity and legal status of ROW user and names of all operators of any facilities on the right of way.

(2) Name, address, telephone number, fax number and email address of officer, agent or employee responsible for the accuracy of the registration information.

(3) Name, address, telephone number, fax number and email address of the local representative of the ROW user who shall be available at all times to act on behalf of the ROW user in the event of an emergency.

(4) If applicable, certification number issued by public utilities commission.

(5) General description of services to be provided.

(6) Insurance and bonding information.

(7) Employee safety certification information.

(Ord. No. 93319, § 1, 1-25-01)

Sec. 29-114. Employee safety certification.

The ROW user operating facilities or constructing facilities in any public right of way is responsible for the safe movement of pedestrian and vehicular traffic through the construction area. The ROW user shall obtain certification through a city approved training organization for a sufficient number of employees working within the right of way such that a certified employee is present at the job site during construction activities. The ROW user shall meet all requirements for barricading and traffic control as specified in the TMUTCD. Alternative training programs may be submitted to the director for city certification. Only those individuals who are qualified by means of adequate training in safe traffic control practices and have a basic understanding of the principles established by applicable standards and regulations, including those in TMUTCD, as evidenced by certification, shall place and maintain the traffic control devices in the construction area. Employee certificates shall be maintained current by ROW user at all times. An employee shall produce, upon request of an inspector or certified police officer, proof of a valid training certificate.
(Ord. No. 93319, § 1, 1-25-01)

Sec. 29-115. Reserved.

Sec. 29-116. Reporting obligations.

All ROW users shall provide on demand, proof of any necessary permit, license, certification, grant, registration, franchise agreement or any other authorization required by any governmental entity, including, but not limited to, the city, State or Federal Government, including a description of the ROW user's intended use of the right-of-way, information sufficient to determine

whether the ROW user is subject to franchising or licensing by the city, and information to determine whether the ROW user has applied for and received any certificate of authority required by the PUC. The information provided shall be sufficient to determine that the ROW user has applied for and received any permit or other approvals required by the FCC. ROW users shall provide all such other information as may be reasonably required by the city to complete the registration statement.
(Ord. No. 93319, § 1, 1-25-01)

Sec. 29-117. Permit required.

It is unlawful for any person, its agents, servants or employees to dig, plow, blast, make cuts, openings, bore, excavate or use the right-of-way for any purpose without first having made application and obtained a permit therefore. It is unlawful for any person, its agents, servants or employees to make or cause to be made any excavation in or under the surface of any right-of-way for the installation, repair or removal of any facilities, or for any other purpose without first obtaining from the director a permit in compliance with this chapter.

(1) Before issuing a permit, the director shall have been provided a written application, on a form furnished by the director, setting forth the name and residence or business address of the applicant; the location and approximate area of the excavation, including its approximate length and width, and, if the excavation is in a street, whether it is parallel or transverse to the direction of the travel lanes; and, the purpose of the excavation. The application form shall include plans prepared in accordance with city specifications.

(2) At the time the permit is issued, the applicant shall pay a nonrefundable application fee in an amount as provided for in this chapter.

(3) All sums paid to the city pursuant to this chapter, shall be deposited in a separate fund or funds and shall be expended only for the repair resurfacing, rehabilitation, reconstruction, or other improvement of city streets where excavation has occurred after the effective date of the ordinance from which this article derives.

(4) The proposed location, depth and other characteristics of any facilities for which the permit is issued shall be subject to approval of the director, and all backfilling, compaction and pavement restoration performed for any excavation shall comply with the requirements of this chapter.

(5) No fee or requirement authorized or imposed pursuant to this chapter shall be construed to affect or alter in any way any obligation of public and private utilities with facilities installed in any right-of-way to relocate the facilities at no cost to the city, subject to state law, if applicable, in the event that relocation is required by the city to accommodate a proper governmental use of the right-of-way.

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(6) Combinations of permits shall be permitted at the discretion of the director. Fees shall be assessed based on the excavations permitted.

(7) Subdivision monuments, historical markers, and any other signs or structures with foundations in the right-of-way, excluding billboards, are subject to this chapter.

(Ord. No. 93319, § 1, 1-25-01)

Sec. 29-118. Excavation permit application.

Application for a permit shall be addressed to the director and made on a form furnished for that purpose, stating the extent, dimensions, character and purpose of the cut or excavation to be made, the location, by street and number if possible, where the work is to be done, and the time in which it is to be completed. The application form shall be accompanied by maps of the existing facilities in the area, to the extent available, and the location of the proposed facilities, methodology of construction; proposed start and completion dates.

(1) *Joint applications.* Applicants may apply jointly for permits to excavate the right-of-way at the same time and place. Applicants who apply jointly for a right-of-way permit may share in the payment of the permit fee. Applicants must agree among themselves as to the portion each shall pay. The city will recognize only one (1) point of contact.

(2) *Supplementary applications.* A permit shall only be valid for the area of the right-of-way specified within the permit. No permittee may cause any work to be done outside the area specified in the permit, except as provided herein. Any permittee who determines that an area greater than that which is specified in the permit must be excavated must:

a. Make application for a permit extension and pay any additional fees required thereby; and

b. Receive a new right-of-way permit or permit extension.

Permits will be issued or denied within ten (10) days of application. Unless granted for a longer period, an excavation permit shall be valid for thirty (30) days and for the dates specified in the permit. The applicant may request the permit be valid for such longer period as may be necessary in the circumstances, in advance, as part of the application. The city may approve or deny the application for such extended permit period. No permittee may commence work before the permit start date or, except as provided herein, may continue working after the end date. If a permittee does not complete the work by the permit end date, the permittee must apply for and may receive a new right-of-way permit or a permit extension for additional time. This supplementary application must be submitted to the city prior to the permit end date.

An expedited permit may be requested, and shall be issued within two (2) days of application upon a showing of good cause.

(Ord. No. 93319, § 1, 1-25-01)

Sec. 29-119. Issuance of permit.

Every person making application for a permit in accordance with the provisions of this chapter and having complied with such provisions shall be entitled thereto, and, upon filing such application with the director, it shall be his duty to issue the permit, when the provisions of this chapter shall have been complied with.

(1) Upon receiving a written application for an excavation permit and a plan prepared in accordance with city specifications, the director's designee shall set forth all requirements, approve or disapprove the application, sign and return it to the applicant. Excepting only emergency excavations, at least one (1) working day prior to the start of work, the applicant shall telephone the city street maintenance division and request a permit number, informing the city the date the work will commence. A permit number shall then be assigned to the job and a permit shall be sent to the applicant.

(2) No permit shall be transferable. A permit shall be void unless the excavation to be

made pursuant thereto is commenced within the time stated therein and the work diligently completed.

(3) Each permit shall state a time period for completion of all the work to be done thereunder. The director may grant extensions of time.

(4) No person in violation of any requirement of this chapter shall be issued an excavation permit, nor shall any contractor or agent apply for or be issued an excavation permit on the person's behalf, until the outstanding violation is corrected or a plan for correction is approved by the director. The foregoing requirement is in addition to any penalty or remedy for violation that may be imposed or sought by the city at law or equity.

(5) No work shall be done under any permit issued under this chapter except as stated in the permit. If the permit is allowed to expire, the ROW user shall procure a new permit, paying the applicable fee therefor as before, before proceeding with any such work.

(Ord. No. 93319, § 1, 1-25-01)

Sec. 29-120. Excavation to be under supervision of the director.

(a) Any ROW user engaged in making or backfilling any excavation in any right-of-way shall at all times while such work is in progress keep at the job location the permit, or a copy thereof, and shall, on demand, exhibit the permit to the director, right-of-way manager or designee, or any police officer. At all times while the work is in progress the ROW user shall also maintain at the job location, a barricade, approved traffic control plan if applicable, and signs bearing the contractor's name, the name of the utility that is having facilities installed, maintained, repaired, replaced, and/or removed under, on, or above the ROW, contact information for both the contractor and utility, and a brief description of the permitted work. Employees and contractors of the ROW user engaged in carrying out the permitted work shall also have on their person a conspicuous identifier of the utility for whom permitted work is being performed.

(b) The ROW user shall protect from damage, utility conduits, sewer conduits, water conduits, lawns, shrubbery, trees, fences, structures, or other property at, near or encountered in his work. The ROW user shall determine the boundary of the right-of-way.

(c) All excavations and other construction in the streets shall be conducted so as to interfere as little as practicable with the use of rights-of-way and with the use of private property, in accordance with any lawful and reasonable direction given by or under the authority of the governing body of the city under the policy and regulatory powers of the city necessary to provide for public convenience. The ROW user shall reasonably protect from damage, utility facilities, sewer facilities, water facilities, lawns, shrubbery, trees, fences, structures, or other property encountered in his work. The ROW user shall not trespass upon private property. The ROW users shall determine the boundary between public right-of-way and private property.

(d) All transmission and distribution structures, lines, equipment and facilities erected by a ROW user within the city shall be so located as to cause minimum interference with the proper use of the public rights-of-way, and to cause minimum interference with the rights and reasonable convenience of property owners who join any of the said streets.

(e) The city reserves the right to lay, and allow to be laid, electricity, sewer, gas, water and other pipe lines or cables and facilities, as well as drainage pipes and channels and streets and to perform, and allow to be performed, any underground and overhead installation or improvement that may be deemed necessary or proper by the governing body of the city, in, across, along, over or under any right-of-way or public place occupied by a ROW user and to change any curb or sidewalk or the grade of any street and to maintain all of the city's facilities. In allowing such work to be performed by others, the city shall not be liable to a ROW user for any damage caused by those persons or entities.

Nothing herein shall relieve any third party from responsibility for damages caused to a ROW user by such third party.

(f) If the city requires a ROW user to adapt or conform its facilities, or in any way or manner to alter, relocate or change its property to enable any other corporation or person, except the city, to use, or to use with greater convenience, any right-of-way or public place, the ROW user shall not be required to make any such changes until such other corporation or person shall have undertaken, with solvent bond, to reimburse a ROW user for any loss and expense which will be caused by, or arise out of such removal, change, adaptation, alteration, conformance or relocation of a ROW user's facilities; provided, however, that the city shall never be liable for such reimbursement.
(Ord. No. 93319, § 1, 1-25-01; Ord. No. 2016-11-10-0894, § 3, 11-10-16)

Sec. 29-121. Additional excavation permit.

Subsequent to issuance of a permit, if it is necessary to excavate a larger area than originally estimated, the permittee shall at once pay to city the amount necessary to obtain the additional permit necessary.
(Ord. No. 93319, § 1, 1-25-01)

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Sec. 29-122. Appeal.

A right-of-way user that has been denied registration, has been denied a permit, has had a permit revoked, or believes that fees imposed are invalid, may have the denial, revocation, or fee imposition reviewed, upon written request as follows:

(1) Appellant shall provide, within five (5) days of denial, a written notice of appeal filed with the right-of-way manager of the department. The notice must state the alternatives available and routes explored, hardship encountered, cost comparison of other alternatives and a statement of any other significant factors. The right-of-way manager shall provide a written decision within five (5) days of receipt of the appeal. Failure to render a decision within five (5) business days shall constitute a denial.

(2) If a further denial is given, the appellant may thereafter file a written notice of appeal with the director within five (5) days. The notice must state the alternatives available and routes explored, hardship encountered, cost comparison of other alternatives and a statement of any other significant factors. The director shall provide a written decision within the ten (10) business days. Failure to render a decision within ten (10) days shall constitute a denial.

(3) If a further denial is given, the appellant may thereafter file a written notice of appeal to the city council with the city clerk within five (5) business days of receipt of the directors written decision. The clerk shall notify the director and the appellant of the placement of the appeal on the first available city council agenda in compliance with the Texas Open Meetings law.

(Ord. No. 93319, § 1, 1-25-01)

Sec. 29-123. Denial of permit.

A permit may be denied or suspended for any of the following reasons:

(1) Failure to provide proof of a surety bond or liability insurance acceptable to the city.

(2) Failure to secure a contractor's license or other required license.

(3) Failure to perform in accordance with the requirements of the UECM or in accordance with these provisions.

(4) The excavation would be in a new street and not otherwise permitted by this article.

(5) The proposed warning or other traffic control procedures or equipment do not comply with the requirements of the TMUTCD or the requirements of the director.

(6) The proposed activity would violate a city ordinance or State or Federal statute.

(7) The permit application contains false or misleading information.

(8) The activity would cause a public health or safety hazard.

(9) The ROW user is not authorized within the city.

(10) The ROW user is in violation of this chapter relative to work in progress.

Denied permits may be appealed as set forth in this article.

(Ord. No. 93319, § 1, 1-25-01)

DIVISION 2. TECHNICAL SPECIFICATIONS

Sec. 29-124. Energy, electric and gas standards.

Technical standards for energy, electric and gas are defined in the UECM.

(Ord. No. 93319, § 1, 1-25-01)

Sec. 29-125. Water and sewer regulations and standards.

Water and sanitary sewer providers shall work to provide a connection service point beyond the pavement to all commercial and residential tracts in their service area as streets are constructed either by connection or conduit, for existing development. Technical standards for water and sanitary sewer are defined in the UECM.

(Ord. No. 93319, § 1, 1-25-01)

Sec. 29-126. Storm sewer standards.

Technical standards for storm sewer are defined in the UECM.
(Ord. No. 93319, § 1, 1-25-01)

Sec. 29-127. Reserved.

Sec. 29-128. Compliance with safety regulations.

The permittee and ROW user shall comply with all applicable federal, state and local safety regulations and requirements, including, by example and not limitation, the occupational safety and health standards for the construction industry.
(Ord. No. 93319, § 1, 1-25-01)

Sec. 29-129. Commencement and completion.

After obtaining the permit and prior to commencing the work, the permittee shall notify the director, and shall commence and complete all work within the time specified in the permit unless an extension of time is granted by the director.
(Ord. No. 93319, § 1, 1-25-01)

Sec. 29-130. Safe conduct of work.

Every permittee and ROW user shall prosecute its work diligently and in a good, safe, and workmanlike manner, and shall safeguard and protect the public using the street or right of way where the work is being performed from accidents or damage by placing barriers, lights and other sufficient safeguards around all cuts, openings, and excavations. All material, implements and tools stored upon the premises and used in connection with the excavation shall be stored in a safe and non-hazardous manner. All work must be performed only within the hours and days as set forth in the UECM and in accordance with the requirements of the permit. Work in residential areas may only occur during daylight hours. Certain commercial areas and hospital districts are subject to noise controls and other limitations. Details are available in the UECM and from the department.
(Ord. No. 93319, § 1, 1-25-01)

Sec. 29-131. Emergency excavations.

Nothing in this article shall be construed to prevent any person maintaining any pipe, conduit, or duct in or under any street, or right-of-way by virtue of any law, ordinance or permit, from making such excavation as may be necessary for compliance with law or for the preservation of life or property when the necessity arises, provided that the person making the excavation shall notify the director within twenty-four (24) hours. Except as specifically provided otherwise in this article, excavations authorized by this section shall be subject to all fees and requirements of this article.
(Ord. No. 93319, § 1, 1-25-01)

Sec. 29-132. Traffic control safety.

In the event of non-compliance with the TMUTCD, the ROW user shall be notified in writing of the violation. In the event of continued non-compliance, the director may revoke the permit, in addition to any other remedies available to the city.
(Ord. No. 93319, § 1, 1-25-01)

Sec. 29-133. Excavation in streets in good condition.

The permittee shall complete pavement restoration of the excavated area within thirty (30) days on major arterial, minor arterial and collector streets and within thirty (30) days on residential and alley streets after final backfill is completed and accepted by the director. The permittee shall conduct the work with a minimum disturbance to existing utilities and shall coordinate all work in or near the existing utilities with the utility owners.

(1) *Excavation in new streets.* There shall be no excavation in new streets without the prior approval of the director. Any request for a permit to excavate a new street shall include a description of the proposed work and proposed restoration of the area, as well as a statement as to why alternate procedures cannot or should not be used in lieu of excavating a new street.

(2) *Excavation in arterial streets in good condition.*

a. A permit holder shall perform jacking and boring operations in a manner that does not weaken or impair the right of way upon completion of restoration of the excavation.

b. Excavation in all streets in good condition regardless of age should not occur without prior approval of the director. Streets assigned a PCI of eighty-six (86) or above by the pavement management system are deemed to be in good condition and are subject to the review procedures of excavation of new streets.

c. Restoration of the excavated area of streets in good condition shall be in accordance with this article.

(3) *Excavation in Portland Cement Concrete (PCC) pavement surface.* If the existing pavement is PCC, the concrete shall be cut first with a saw to a minimum depth of half the thickness of the concrete which shall also cut the reinforcing steel. The concrete can then be broken out with an air chisel or pavement breaker. No more than six (6) inches of PCC shall be broken back beneath the saw cut. Further criteria is set forth in the UECM. The guidelines for jacking and boring are set forth in the UECM.

(4) *Responsibility of excavated area maintenance.* A permittee or ROW user shall maintain their repairs in the right-of-way for the life of the street as defined in this article.

(Ord. No. 93319, § 1, 1-25-01)

Sec. 29-134. Lawful use of right-of-way.

(a) The use of the right-of-way in any manner which violates federal, state, or local laws, or city codes and regulations, including, without limitation, those relating to health, safety, noise, environmental protection, waste disposal and water and air quality, is prohibited. All permittees shall provide satisfactory evidence of compliance with the foregoing upon request of the city.

(b) Permittee shall dispose of all material removed from the right-of-way and any waste created by permittee in compliance with all state, federal and local laws and requirements.

(c) If a permittee discovers any contaminated, regulated, or hazardous materials in the right-of-way, permittee shall be responsible for environmental assessment, excavation, testing, transportation, and disposal of any such contaminated or regulated material in accordance with applicable law, or the permittee may elect to abandon the contaminated area of the right of way and reroute around the contaminated area. The permittee shall promptly notify the city in writing of the condition.

(Ord. No. 93319, § 1, 1-25-01)

Sec. 29-135. Tree trimming and graffiti abatement.

Permission is granted to a ROW user, subject to the requirements of the city's tree ordinance, which may be amended from time to time, to trim trees upon and overhanging the public right-of-way, so as to prevent the branches of such trees from coming in contact with a ROW user's facilities. When so directed by the city, the tree trimming shall be done under the supervision and direction of the city. The city shall report damage or vandalism to the ROW user's facilities as soon as practicable after city discovers or learns of such event. The ROW user shall make the necessary repairs or restoration, including cleaning of graffiti, within forty-eight (48) hours after the ROW user discovers or learns of any misuse, destruction, damage, or vandalism to its facilities.

(Ord. No. 93319, § 1, 1-25-01)

Sec. 29-136. Conformance with major thoroughfare plan.

A ROW user shall consult the city's Major Thoroughfare Plan ("MTP") prior to the acquisition of any interest in real property in the city for the installation or relocation of service lines or other equipment or facilities along or adjacent to any street, right-of-way, thoroughfare, highway, or any proposed street, right-of-way, highway or thoroughfare to attempt to minimize any future

conflict regarding the location of such facilities. All ROW users are charged at all times with constructive notice of the MTP subsequent to the effective date of the ordinance from which this article derives. The city shall have no liability for the value of or loss by a ROW user of any improvements constructed in the area shown in the MTP subsequent to the effective date of the ordinance from which this article derives.
(Ord. No. 93319, § 1, 1-25-01)

Sec. 29-137. Rights in the event of abandonment.

In the event the city closes, vacates, abandons or conveys any right-of-way containing facilities of the ROW user, any such closure, vacation, abandonment or conveyance of land shall be subject to the rights of the ROW user.
(Ord. No. 93319, § 1, 1-25-01)

Sec. 29-138. Supervision by city of location of poles and conduits.

All poles in the rights-of-way shall be of sound material and straight, and shall not interfere with the flow of water in any gutter or drain, and shall be placed so as not to unduly interfere with either vehicular nor pedestrian travel. The location and route of all conduits, fiber, cables, and utilities, and facilities placed and constructed by a ROW user in the construction and maintenance of its system in the city shall be subject to the reasonable and proper control, direction and approval of the city. Any "non-standard" placement of poles, stubs, guys and anchors is subject to all provisions of this chapter. Any "standard" placement of poles, stubs, guys, and anchors is exempt from this chapter. "Standard" is defined by the provisions of the UECM.
(Ord. No. 93319, § 1, 1-25-01)

Sec. 29-139. Attachments to poles.

(a) Nothing shall obligate or restrict a ROW user from exercising its rights to enter into pole attachment, pole usage, joint ownership or other wire space or facilities agreements with light and/or power companies or with other wire-using companies authorized to operate within the city.

(b) A ROW user shall utilize existing poles, conduits, and other facilities whenever reasonably and/or economically possible. Prior to the utilization of any right-of-way for the placement of any of its facilities, the ROW user shall make available to the director any utility pole usage agreement with each utility within the city currently owning poles, conduits, and other facilities, whose poles, conduits and facilities are to be used.

(c) A permit for a network node, node support pole, or transport facility expires due to nonperformance:

(1) On midnight of the 183rd day following the date the permit is approved if installation has not commenced by that date;

(2) On midnight of the 365th day following the date the permit is approved if installation is not completed by that date; and

(3) On midnight of the 60th day following the date installation and final testing is complete if the node, node support pole, or transport facility is not placed into active commercial service as of that date.

(4) The right-of-way manager may grant a one-time extension for up to thirty (30) days to an expiration date in this section, provided the right-of-way manager determines in their sole discretion that the network provider has shown good cause for granting the extension. Good cause is determined in the right-of-way manager's sole discretion and, in any event, must be due to circumstances entirely outside of the network provider's control and may not in any way be the result of a business decision or market forces.

(d) Where anticipated construction activities will involve service pole re-enforcement or replacement, network providers shall notify the city right-of-way manager before submitting application materials. Replacement pole must comply with Texas Department of Transportation specifications and standards, Texas Manual on Uniform Traffic Control Devices requirements, and applicable federal or state standards. Prior

to construction, network provider shall agree that all re-enforced or replaced service poles will be owned by the city. Where a traffic signal pole is reinforced or replaced, the traffic signal must remain operational throughout construction, and if necessary, network provider must provide a temporary signal trailer or other temporary pole during construction.
(Ord. No. 93319, § 1, 1-25-01; Ord. No. 2017-08-31-0609, § 1, 8-31-17; Ord. No. 2020-04-02-0225, § 1, 4-2-20)

Sec. 29-140. Temporary rearrangement of aerial wires.

The ROW user shall rearrange its transmission media temporarily as necessary to permit the moving of houses or other bulky structures. The requesting parties shall pay the reasonable and necessary expense of such temporary rearrangements. The ROW user may require payment in advance. The ROW user shall be given not less than five (5) days advance notice to arrange for such temporary rearrangements. The ROW user shall remove its transmission media in connection with the demolition of unsafe structures, including emergency or ordered demolitions at no cost to the city. The ROW user may invoice third parties for the cost of this work where applicable.
(Ord. No. 93319, § 1, 1-25-01)

Sec. 29-141. Utility excavation criteria manual adopted.

The director is authorized to develop the Utility Excavation Criteria Manual (UECM), First Edition, which shall be approved and adopted as the City of San Antonio, departments of public works' official technical and policy manual no later than the effective date of the ordinance from which this article derives. Three (3) copies of the UECM shall be placed on file and available for inspection in the offices of the city clerk.
(Ord. No. 93319, § 1, 1-25-01)

Sec. 29-142. Backfill of excavated area.

(a) Open trenches may be temporarily backfilled for the convenience of the permittee or the public safety. At least one (1) hour prior to beginning

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permanent backfill operations, the permittee shall notify the director of the time the backfill will begin.

(b) All excess water and mud shall be removed from the trench prior to backfilling. Any backfill placed during a rainy period or at other times, where excess water cannot be prevented from entering the trench, will be considered temporary and shall be removed as soon as weather permits. All disturbed base material or any base that has been undermined shall be removed and discarded. The new roadway base material shall be a minimum depth of six (6) inches asphalt treated base or other approved roadway base material, as detailed in the UECM.
(Ord. No. 93319, § 1, 1-25-01)

Sec. 29-143. Restoration of pavement.

Unless otherwise specified in the permit, restoration of the asphalt pavement of any street, alley right-of-way or other public place shall be performed by the permittee or by the city, upon request by the permittee. Nothing in this section shall relieve the ROW user from the responsibility to maintain the excavation or installation in a safe condition until it is repaved by city or otherwise restored. In addition to all other applicable fees or charges, if the ROW user or permittee making the excavation requests repaving by the city, the ROW user shall pay for repaving at a rate to be established by the city.

(1) No trench shall be opened in any street for the purpose of laying pipes, conduits or ducts more than four hundred (400) feet in advance of the pipe, conduit or ducts being placed in the trench, other than with the prior written consent of the director.

(2) All excavations shall comply with the standards and requirements established from time to time by the director for compaction, backfill and pavement restoration.

(3) Any excavated pavement, debris and other rubble shall be removed, together with any surplus material, within one (1) working day from the time such material is placed upon the street. After backfilling is completed, and prior to repaving the cut, the ROW user shall remove all loose paving material and trim the edges of the excavation at the street surface to the satisfaction of the director.

(4) Whenever any caving occurs in the sidewalls of any excavation, the pavements above such caving shall be cut away, trench backfilled and pavement restored in accordance with the UECM. In no case shall any side or lateral tamping fill any void under a pavement.
(Ord. No. 93319, § 1, 1-25-01)

Sec. 29-144. Excavation specifications.

All excavations shall be made in accordance with plans submitted with the permit application and in accordance with specifications set forth in the UECM. All plans shall be prepared in accordance with all city specifications and the UECM. All excavations shall be repaired in such a way so as not to become depressed, cracked, broken, or in any way fail during the remaining "life of the street." The remaining "life of the street" for this purpose shall be until the PCI index drops to below fifty (50) or until the subject area is repaved by the city or other entity. Additional specifications may be contained in the UECM.
(Ord. No. 93319, § 1, 1-25-01)

Sec. 29-145. Cleanup of right-of-way.

In every case and at all times, the work of removing from the right-of-way all obstructions, surplus materials, debris and waste matter of every description caused by and accumulated from the excavation shall be the responsibility of the ROW user. Streets shall be cleaned by use of a regenerative air or vacuum street sweeper. The ROW user shall clean the surrounding area, as outlined above, within one (1) day upon completion and approval of all trench work and pavement restoration unless the director, sufficient reason therefor having been given to his satisfaction, grants an extension of time.
(Ord. No. 93319, § 1, 1-25-01)

Sec. 29-146. Substandard repair of pavement or right-of-way.

In case the pavement or the surface of the street, alley, or right-of-way in, over or near any

excavation should become depressed, cracked, or broken any time or fails in any way at any time after the excavation has been made and during the remaining life of the street, the ROW user shall comply with any applicable obligations of this article, including, without limitation, reimbursement to city of the cost to restore the street or right-of-way and payment of the pavement degradation recovery fee as set forth in this chapter.
(Ord. No. 93319, s; 1, 1-25-01)

Sec. 29-147. Failure to complete work within specified time.

In the event any work governed by this chapter is not completed by the ROW user within the time required or in accordance within the specifications required herein or by the director, the director may cause such work to be performed as is necessary to secure the work area to a safe and passable condition. The ROW user shall reimburse the city for the costs of securing the site.
(Ord. No. 93319, § 1, 1-25-01)

Sec. 29-148. Permanent pavement repairs.

All permanent pavement repairs shall be made under one (1) of the two (2) following methods:

(1) *Permanent pavement repairs by city.* If the city is to make the permanent pavement repairs, the ROW user shall maintain the excavated area for a period of two (2) weeks after acceptance by the director. After the two-week period, the city will be responsible for maintaining the excavated area until final restoration is made. Backfill failures shall remain the responsibility of the ROW user. The ROW user shall reimburse the city for all costs of any backfill failure before and/or after permanent pavement repair.

(2) *Permanent pavement repairs by ROW user.* If the ROW user is authorized to make permanent pavement repairs, the ROW user will maintain the excavated area until permanent pavement restoration of the excavated area is complete. The ROW user shall make final repairs within thirty (30) days on arterial and collector streets and within thirty (30) days on residential, local and alley streets after the director makes final inspection. Backfill failures shall remain the responsibility of the ROW user.

(Ord. No. 93319, § 1, 1-25-01)

Sec. 29-149. Responsibility for signs, barricades and warning devices.

The ROW user working in any right-of-way is responsible for the safe movement of traffic, both pedestrian and vehicular, through the construction area. The ROW user shall meet all requirements for barricading and traffic control as specified in the TMUTCD.

(1) Only those individuals who are qualified by means of adequate training in safe traffic control practices and have a basic understanding of the principles established by applicable standards and regulations, including those in TMUTCD, may place and maintain the traffic control devices in a construction area.

(2) The ROW user must either subcontract the barricading to a firm specializing in traffic control, or submit the qualifications and name(s) of employees to the director for approval prior to the work commencing. They must also submit a traffic control plan for review. All signs and barricades must conform to the requirements of the TMUTCD.

(3) All barricades, plates, and other traffic control equipment must conform to TMUTCD specifications and must be inspected and approved by the director if not provided by a traffic control firm.

(4) All barricades, plates, and other traffic control equipment must display accurate and sufficient information including the name of the ROW user.

(5) Non-compliance with the TMUTCD shall be cited in writing. In the event of noncompliance after citation, the director may place the necessary devices as required and the ROW user shall pay the charges therefor. The ROW user shall reimburse

the city for all such expenses as well as five hundred dollars ($500.00) for noncompliance. Failure to comply with this provision may result in denial of application for future permits.

(6) All traffic control devices must be removed immediately upon completion of work.

Prior to commencement of any excavation, or any work relative to a permit, the ROW user shall install at the work site informational sign in conformance with the Requirements of the UECM.
(Ord. No. 93319, § 1, 1-25-01)

Sec. 29-150. Duty to barricade.

At all times during construction activity, the contractor and/or ROW user, as applicable, shall place and maintain all necessary and proper barriers and other safeguards, including watchmen certified in accordance with the safety training described in this article, if necessary, upon and around the work for the prevention of accidents, and after daylight hours, shall place, maintain and keep suitable sufficient lights, in accordance with the TMUTCD.
(Ord. No. 93319, § 1, 1-25-01)

Sec. 29-151. Inspection.

The permittee shall make the work-site accessible to the city, and others as authorized by law, for inspection at all reasonable times during performance of the work.
(Ord. No. 93319, § 1, 1-25-01)

Sec. 29-152. Materials testing.

The department may require testing of materials used in construction in or near the right-of-way to determine conformance to required specifications, including, but not limited to, compaction tests on backfill materials, subgrade, aggregate base course, Portland concrete (rigid pavement), asphaltic concrete (flexible pavement) and other construction materials as deemed necessary by the department.
(Ord. No. 93319, § 1, 1-25-01)

Sec. 29-153. Duties of persons making excavations or creating obstructions.

Any person who shall cause to be made any excavation or obstruction in any street or right-of-way may not suffer the same to remain there beyond a time reasonably sufficient for the completion of the work and/or removal of the obstruction, and shall repair the subject portion of such street, or right-of-way so as to restore the same to its condition previous to the making of such cut or obstruction. It shall be the duty of such excavators to protect the area while such condition exists and promptly to repair the same so as to leave the street or right-of-way in as good condition as before the excavation.
(Ord. No. 93319, § 1, 1-25-01)

Sec. 29-154. Cease work.

At any time, the director may order the immediate cessation of any work which poses a threat to the health, safety or well being of the public. The director may revoke the permit of any permittee in any instance where there is a threat to the health, safety or well being of the public.
(Ord. No. 93319, § 1, 1-25-01)

Sec. 29-155. Requirements.

The director may issue a written notice to the permittee indicating work that does not conform to the terms of the permit, applicable standards, conditions, or codes, or other applicable regulation. Within ten (10) days after issuance of written notice, the permittee shall present proof to the director that the violation has been corrected. If such proof has not been presented within the required time, the director may revoke the permit.
(Ord. No. 93319, § 1, 1-25-01)

Sec. 29-156. Reporting.

When the work under any permit hereunder is completed, the permittee shall furnish the director a completion certificate.
(Ord. No. 93319, § 1, 1-25-01)

Sec. 29-157. Revocation of permit.

The city reserves its right, as provided herein, to revoke any permits, without refund of the

permit fee, in the event of a breach by the permittee of the terms and/or conditions of the permit or of this chapter or any city ordinance. A breach of the terms of the permit shall include, but not be limited to the following:

(1) The violation of any provision of the permit;

(2) An evasion or attempt to evade any provision of the permit, or the perpetration or attempt to perpetrate any fraud or deceit upon the city or its citizens;

(3) Any material misrepresentation of any fact in the permit application;

(4) The failure to meet insurance, surety bond, or indemnification requirements;

(5) The failure to complete the work in a timely manner;

(6) The failure to correct a condition indicated on an order issued pursuant to this article;

(7) Repeated traffic control violations;

(8) Failure to repair facilities damaged in the right-of-way; or

(9) Violation of any part of this article.

If the director determines that the permittee has committed a breach of any law or condition of the right-of-way permit, the director shall make a written demand upon the permittee to remedy such violation. Continued violation may be cause for revocation of the permit, or legal action, or both. The director may revoke the permit, provide specifications to cure the breach, or both. Within five (5) calendar days of receiving notification of the breach, permittee shall contact the director with a plan, acceptable to the director, for correction of the breach. Permittee's failure to do so or permittee's failure to timely implement the approved plan shall be cause for revocation of the permit.
(Ord. No. 93319, § 1, 1-25-01)

Sec. 29-158. Work done without a permit.

No cut, excavation, grading or disturbing of the right-of-way in any way shall be made other than excavations necessary for emergency work without first securing a permit. No person or ROW user shall at any time open or encumber more of the right of way than shall be reasonably necessary to complete a project in the most expeditious manner.
(Ord. No. 93319, § 1, 1-25-01)

Sec. 29-159. Right-of-way restoration requirements.

(a) The work to be done pursuant to the permit and any repair and subsequent restoration of the right-of-way must be completed within the dates specified in the permit. In the event of circumstances beyond the control of the permittee or when work is prohibited by unseasonable or unreasonable conditions, the director may extend the dates on receipt of a substantiated supplementary application for a permit extension.

(b) All earth, materials, sidewalks, paving, crossing, or improvements of any kind which are owned or possessed by city and damaged, disturbed, or removed by a ROW user shall be fully repaired promptly by the ROW user at its sole expense, to the reasonable satisfaction of the director.

(c) After any excavation, the ROW user shall, at its expense, restore the right-of-way, trench envelope, pavement structure and the surrounding area, to the same or better condition than it was prior to the excavation. The restoration shall be made in accordance with specifications set forth in the UECM and the repair shall endure without failure for the remaining life of the street, as such period is described in this article.

(d) In the event the ROW user fails to restore the right-of-way in the manner and to the condition required herein, or fails to satisfactorily and timely complete all restoration, the city may, at its option, serve written notice upon the ROW user that, unless within five (5) days after serving of such notice a satisfactory arrangement can be made for the proper restoration of the right-of-way by the ROW user, the city may take over the work and prosecute same to completion, by contract or otherwise, at the expense of the ROW user, and the ROW user and its surety shall be liable to the city for any and all cost incurred by the city by reason of such prosecution and com-

pletion, including, without limitation, the applicable public inconvenience penalty. Nothing contained herein shall limit any other remedies available to the city.

(e) If any excavation cannot be back-filled immediately, the ROW user shall securely and adequately cover the excavation and maintain proper barricades, safety fencing and/or lights as required, from the time of the opening of the excavation until the excavation is surfaced and opened for travel.

(f) In all right-of-way restoration, the ROW user guarantees its work and shall maintain it for the remaining life of the street following completion of the restoration. During the period following completion, the ROW user shall, in the event of any failure of the restoration, upon notification from the director, reimburse city for pavement restoration costs and the pavement degradation recovery fee as provided for in this article. Additionally, the ROW user in the event of such failure, shall within forty-eight (48) hours of notice from city, repair the subject trench envelope.

(g) The "life of the street" guarantee period shall be applicable to failure of the pavement surface as well as failure of the trench envelope. Notwithstanding remediation of the pavement structure by city, the ROW user retains repair responsibility at all times during the guaranty period for the trench envelope.

(h) Excavations in streets and/or right-of-way with PCI values of eighty-six (86) or greater shall be deemed one hundred (100) percent loss of pavement life. These excavations require i) Block to block and curb to curb pavement reconstruction, ii) Use of a hot mix asphalt repaving process, or iii) Such other method of repair as the director approves, for all cuts. Specifications are available in the UECM.

(i) A right-of-way user whose work is completed by the city shall, on completion of the work and according to the certified bill of the cost thereof to be prepared by the director, pay to the city, on its order, the amount of the certified bill as reimbursement for such work.
(Ord. No. 93319, § 1, 1-25-01)

Sec. 29-160. Excavations not in accordance with permit declared unlawful.

(a) It shall be unlawful for any person to make, cause or allow to be made, any excavation, or to install, cause or allow to be installed any tank, pipe, conduit, duct, tunnel, utility pole or other utility or appliance in or under the surface of any street, alley, sidewalk, right-of-way or other public place, at any location, other than that described in the application for the permit and as shown on the plans filed with the director, and in accordance with the requirements of the permit. If the circumstances appearing after the excavation is commenced make it impossible to comply with the permit, the director may grant a waiver to take the circumstances into account.

(b) Failure to comply with requirements set forth in the chapter or on any permit shall be cause for revocation of the subject permit and of any other permits held by the same permittee until the violations have been corrected or the director has approved alternative requirements.
(Ord. No. 93319, § 1, 1-25-01)

Sec. 29-161. Removal and reconstruction where work defective.

All construction work in the streets, right-of-way, sidewalks and public places of the city is declared to be subject to the exclusive control of the city, and whenever, in the opinion of the director, any such work shall not have been duly completed within a reasonable time or shall have been executed in a defective manner, whether because of bad workmanship or materials or because not true to the lines or grades or specifications therefor given to him by the director, then upon written demand or notice from the director, such ROW user or contractor shall promptly remedy, complete or remove and reconstruct such incomplete or defective work all as the director may require, and these provisions shall also apply to all repair and maintenance work. If the contractor or ROW user shall fail or refuse to do so within a reasonable time to be specified by the director, then, if the director shall so order, such work shall be completed or corrected or removed and wholly or partially reconstructed

by the city, in such manner as in the opinion of the director may be necessary to make such work as good as originally required, and such work may be done by contract or otherwise, under the direction of the director.
(Ord. No. 93319, § 1, 1-25-01)

Sec. 29-162. Location and relocation of facilities.

Subject to applicable federal, state, and local law, the ROW user shall, upon the request of the city, locate and/or relocate its facilities situated within any right-of-way, at no expense to the city, where reasonable and necessary to accommodate street construction, widening, or public improvement projects of the city. When relocation is necessitated by federal government requirements, and includes reimbursements, the city will reimburse applicant for its proportionate share from funds provided the city in such reimbursements.
(Ord. No. 93319, § 1, 1-25-01)

Sec. 29-163. Pre-excavation facilities location.

The ROW user shall contact the One Call Center (811), so long as that center is in existence and utilized by the city, or such other center at the time utilized by city, at least forty-eight (48) hours prior to excavation. The ROW user shall protect and support all utility facilities during construction. The ROW user shall also contact the San Antonio Water System ("SAWS") via SAWS's website, www.saws.org.
(Ord. No. 93319, § 1, 1-25-01; Ord. No. 2017-08-31-0609, § 1, 8-31-17)

Sec. 29-164. Relocation facilities for city.

In the event the city finds it necessary to move a ROW user's equipment to protect it, city shall notify the local representative of the ROW user. ROW user shall promptly move or facilitate the relocation of the subject facilities at ROW user's expense.
(Ord. No. 93319, § 1, 1-25-01)

Sec. 29-165. Right-of-way vacation and reservation of right.

In the event of vacation of a right-of-way requiring the relocation of facilities, the ROW user being relocated shall pay the costs of the relocation where the ROW user does not own an easement or other real property interest.
(Ord. No. 93319, § 1, 1-25-01)

Sec. 29-166. Abandoned facilities.

A ROW user owning abandoned facilities in the right-of-way shall:

(1) Remove its facilities and repair, at its expense, any damage caused by the removal. The director may allow some or all facilities to remain if the director determines same is in the best interest of the public to do so; or

(2) Provide information satisfactory to the city that the ROW user's obligations for its facilities in the right-of-way have been lawfully assumed by another authorized ROW user.

The facilities of a ROW user who fails to comply with this section, and those facilities which remain unused for two (2) years, shall be deemed to be abandoned unless, within the aforesaid two-year period, the city receives written confirmation and reasonable evidence that the ROW user intends to use the facilities. The city may exercise any remedies or rights it has at law or in equity, including, but not limited to, taking possession of the abandoned facilities or requiring the removal of the facilities by the ROW user.
(Ord. No. 93319, § 1, 1-25-01)

Sec. 29-167. Routing and spatial assignment.

The city reserves the right, in the permit or otherwise, to restrict or determine the route (pathway) and/or spatial location, whether horizontal, vertical or depth, of any facility and/or structure or improvement in the right-of-way.
(Ord. No. 93319, § 1, 1-25-01)

DIVISION 3. COSTS, FEES AND ENFORCEMENT

Sec. 29-168. Fees.

(a) *Permit application fee.* There is a permit application fee of fifty dollars ($50.00). Permits shall be issued or denied within ten (10) days.

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There is an expedited application fee of two hundred fifty dollars ($250.00) for permits, which shall be issued or denied within two (2) days. The fees are paid by an applicant when a permit is issued. The fees are charged for administration and input of permit data. An expedited permit may be requested upon a showing of good cause, including but not limited to a pending order for service that cannot be met by means of existing facilities of the ROW user. An expedited permit may be requested and shall be issued or denied within two (2) days of application.

(b) *Inspection fee.* The work allowed by each permit shall be subject to inspection as determined by the director and a fee of one hundred twenty dollars ($120.00) per point repair; sixty dollars ($60.00) re-inspection fee; and Tier 1 (0 to 60 days): sixty dollars ($60.00) per day, Tier 2 (61 to 120 days): ninety dollars ($90.00) per day, Tier 3 (121 to 180 days): one hundred twenty dollars ($120.00) per day, Tier 4 (>180 days): one hundred fifty dollars ($150.00) per day for project permit. The tier rate shall be based on the number of days estimated by the applicant in the application. In the event the excavation takes a longer period than the days estimated, the rate for the excavation shall be the Tier 4 rate. The department shall collect the fee from an applicant for each inspection by the department for any excavation. The fee shall be paid at the time of application for a permit. Inspections may be performed on any and all excavations, at the discretion of the director, based on previous performance of the utility owner, location of excavation, type of work and/or construction methodology. Overtime inspection fees are incurred at a rate of fifty dollars ($50.00) per hour and eighty-five dollars ($85.00) per hour on Sundays and holidays.

(c) *Permit expiration fee.* A fee of thirty dollars ($30.00) will be charged for any permit that has not been extended before its expiration date and for any permit wherein work has not been completed by the expiration date provided for in the permit. The thirty-day period begins with the date of issuance of the permit.

(d) *Electronic maps submittal fee.* A fee of forty dollars ($40.00) per hour will be charged for each hour of labor necessitated by information submitted to city in hard copy format in lieu of submittals to city in electronic format. There is a minimum of two (2) hours.

(e) *Pavement degradation recovery fee.* This reimbursement to the city is due upon failure of any ROW user's restoration, or upon a ROW user's failure to restore the right-of-way. The following provisions apply to excavations in streets with certain PCI indexes.

(1) *PCI OF O-50.* Excavations in streets and/or rights-of-way with PCI values of fifty (50) or less shall be deemed to be excavations in streets with nominal loss of life. The ROW user excavator shall promptly repair the trench envelope and surface in accordance with specifications set forth herein and in the UECM. The repair shall have a guaranty by the ROW user as set forth herein.

(2) *PCI OF 51-85.* In the event of an excavation in a street or right-of-way having a PCI of fifty-one (51) to eighty-five (85), the ROW user excavator shall promptly repair the trench envelope and surface in accordance with the specifications set forth herein and in the UECM. The repair shall have a guaranty as set forth herein. In the event of failure of the repair during the guaranty period, the ROW user/excavator shall reimburse the city for its pavement restoration cost and pay the pavement degradation recovery fee, calculated as set forth herein.

(3) *PCI OF 86-100.* Excavations in streets and/or right of way with PCI values of eighty-six (86) or greater shall be deemed one hundred (100) percent loss of pavement life. These excavations require block to block and curb to curb pavement reconstruction. Use of a "hot mix asphalt repaving process" is an option with approval of the director. Specifications are available in the department. In the event of any trench failure in the street or right-of-way during the guaranty period, the ROW user shall reimburse the city for its costs to repair the failure, and pay the pavement degradation recovery fee, calculated

as set forth herein. Additionally, in the event of such failure, the ROW user shall within forty eight (48) hours repair the subject trench envelope, if required by the director.

(f) All repairs, for streets or right of way of any PCI, are guaranteed by the excavator making the repair, and the excavator causing the repair to be made, for the "life of the street." The "life of the street" for these purposes is defined to be until such time as that certain street or right-of-way is repaved by the city or another, in the same location as the excavation, or until such time as the PCI index of such street or right-of-way drops to below fifty (50).

(g) *Pavement degradation recovery fee calculation.* The area of influence adjacent to the trench is calculated by using the following formula: [(Length of cut in feet + (two (2) times the depth of trench in feet)) × (Width of the cut in feet + (two (2) times the depth of trench in feet))]/ 9 = square yards of area of influence. All damage(s) caused directly or indirectly to the street surface or subsurface outside the pavement excavated area shall be regarded as a part of the excavation repair area. This includes any holes drilled into the pavement and not properly plugged, as well as damages caused by work equipment. These areas, as established by the director, will be included in the total area to be repaired.

(h) The pavement degradation recovery fee is determined by multiplying the percent loss of life by the pavement cost per square yard determined above by the area of influence. Unit costs shall be updated annually.

(Ex. Trench = Fifteen (15) feet long × two (2) feet wide × four (4) feet deep = (15 + (2x4)) x (2 + (2x4)) / 9 = area of influence of 25.56 square yards)

(1) Damage recovery cost calculation. The damage recovery cost per square yard shall be based on the pavement thickness and/or street classification (residential, collector minor arterial or major arterial), and the (PCI).

(2) Pavement cross-sectional thickness determination. Determine the pavement cross-sectional thickness (in inches) from one of the following sources:

a. City pavement management system (PMS) data base information; or

b. From infrastructure plans on file in the city engineer's office.

c. From the as-built drawings on file in the city engineer's office

(3) Pavement equivalent granular thickness (EGT) determination. The pavement equivalent granular thickness (EGT) value is equal to the sum of all the layers in the existing pavement section times the respective value for each material as follows:

Pavement Material	*EGT Value per Inch*
Lime Stabilized Subgrade	0.6
Crushed Limestone Base	1.0
HMACP, Type A or B	2.0
HMACP, Type C, or D	1.8
Asphalt Stabilized Base	1.7
Asphalt In-Place Base Stabilization	1.6
Old or Weathered Concrete	2.0
Newly or Mildly Weathered Concrete	3.0

(4) Pavement section classification determination. Use the calculated EGT Value from above to determine the classification of the pavement section.

Total EGT Value	*Classification*	*Cost per Sq. Ft.*
Less than or equal to 15	Thin	$28/SY
Greater than 15 but less than 20	Medium	$34/SY
Equal or greater than 20	Thick	$42/SY

a. Using the PCI value determine the percent loss of life of the pavement by locating the value at the bottom of the graph (Appendix B—Figure B.1) and moving up to intersect the curved line. Read the percent loss of life on the left side of the figure. Round the value to the nearest whole number. The percent loss of life can also be calculated using the following formula:

Percent Loss of Life = $0.0039 \times ((PCI/20)^{6.963})$

b. Pavement cost per square yard determination. Use the classification from above to determine the cost per square yard for the area to be excavated. The cost per square yard rates shall be updated annually.

c. Pavement restoration cost is the cost reimbursement owning the city for repair of the pavement riding surface and base and sub-base courses in the event of a failure or a failure of restoration or no restoration by a right-of-way user.

(i) *Registration fee.* There is a fee of forty-five dollars ($45.00) per right-of-way user per year for processing registration information, which fee will be collected upon registration.

(j) *Barricade fees.*

Barricades, on city streets (including sidewalks and alleys) per sq. ft. of closure per day $0.0629

Barricades in traveled portion of city streets between curbs including sidewalk and alley, per sq. ft. per day, minimum $50.00

Private barricading of streets or portions of streets, per block of roadway closed, per day of closure (block parties). $100.00

(k) Minimum inspection fee for sidewalks and curb permit $50.00

(Ord. No. 93319, § 1, 1-25-01; Ord. No. 101397, § 1, 9-15-05; Ord. No. 2008-09-11-0777G, § 16, 9-11-08; Ord. No. 2009-09-17-0731L, § 1, 9-17-09; Ord. No. 2010-09-16-0791, § 1(Att. G), 9-16-10; Ord. No. 2012-09-13-0699, § 2(Att. F), 9-13-12; Ord. No. 2015-09-10-0758, § 2(Att. O), 9-10-15)

Sec. 29-169. Penalty for violation of this chapter.

Each violation of this chapter shall be punishable by a fine not to exceed five hundred dollars ($500.00). Each day during which a violation continues shall be deemed a separate violation of this chapter. Any fines that are collected pursuant to this section shall be deposited into Fund No. 29, Project 014000, Streets/Drainage Maintenance and Improvement Fund.
(Ord. No. 93319, § 1, 1-25-01)

Sec. 29-170. Public inconvenience penalty.

Public inconvenience penalties are assessed and calculated from the date of expiration of the permit until date of completion of work or repair or of final backfill if turned over to the department for repair. This penalty shall not exceed and is capped by statutory limits. Public inconvenience penalties are charged per day as follows:

Type of Facility	*Unit of Cost*	*Fee Rate*			
	(Per Day)	*31—75 Days*	*76—90 Days*	*90—100 Days*	*>100 Days*
(a) Traffic Lane	Per Square Foot	$0.0521	$0.1042	$0.1563	$0.2084

Type of Facility	*Unit of Cost*	*Fee Rate*			
	(Per Day)	*31—75 Days*	*76—90 Days*	*90—100 Days*	*>100 Days*
(b) Sidewalk	Per Square Foot	$0.0026	$0.0052	$0.0078	$0.0104
(c) Driveway	Per Each	$39.00	$78.00	$117.00	$156.00
(d) Parking	Per Meter	$14.00	$21.00	$28.00	$42.00
Metered Traffic Lane	*In addition to Traffic Lane Fee				

(Ord. No. 93319, § 1, 1-25-01)

Sec. 29-171. Clean up costs.

The ROW user shall maintain the area on and around the excavation and related work in a clean, safe and orderly fashion at all times during conduct of the excavation and shall clean the same area upon completion of work.
(Ord. No. 93319, § 1, 1-25-01)

DIVISION 4. INDEMNIFICATION, INSURANCE, BONDING, AND LIABILITY

Sec. 29-172. Liability of right-of-way user.

To the extent allowed by law, the right-of-way user shall be liable to the city for any damage or loss occasioned by any act or omission occurring in connection with his excavation, and subject to state law, the ROW user shall fully indemnify, hold harmless and defend city, its officers and employees from and against any and all suits, actions, judgments, losses, costs, demands, claims, expenses (including attorney's fees), damages, and liabilities of every kind to which the city, its officers or employees may be subjected for injury of any type, death or property damage arising from or connected with any such act or omission. City shall promptly notify a permittee, or ROW user, at the address set forth in the permit, or last known address, of any claim or suit served upon the city and alleging negligent or wrongful conduct by the permittee or ROW user in connection with an excavation.
(Ord. No. 93319, § 1, 1-25-01)

Sec. 29-173. Insurance.

(a) Right-of-way users shall furnish an original completed certificate of insurance or the city's standard certificate of insurance form to the city's finance department, city clerk's office, and public works department, which shall be completed by an agent authorized to bind the named underwriter(s) and their company to the coverage, limits, and termination provisions shown thereon, and which shall furnish and contain all required information referenced or indicated thereon. The original certificate(s) or form must have the agent's original signature, including the signer's company affiliation, title and phone number, and be mailed directly from the agent to the city. The city shall have no duty to pay or perform under this article until such certificate shall have been delivered to the city's finance department, city clerk's office, and public works department, and no officer or employee, other than the city's risk manager, shall have authority to waive this requirement.

(b) The city reserves the right to review the insurance requirements of this section to modify insurance coverage and their limits when deemed necessary and prudent by the city's risk manager based upon changes in statutory law, court decisions, or circumstances surrounding this article, but in no instance will the city allow modification whereupon the city may incur increased risk.

(c) Subject to the right-of-way user's right to maintain reasonable deductibles in such amounts as are approved by the city, right of way users shall obtain and maintain in full force and effect for the duration of the permit, and any extension thereof, and/or duration of time it maintains facilities in the public right of way, at the right-of-way user's sole expense, insurance coverage written on an occurrence basis, by companies authorized and admitted to do business in the

State of Texas and rated A- or better by A.M. Best Company and/or otherwise acceptable to the city, in the following types and amounts:

Type	*Amount*
1. Workers' Compensation Employer's Liability	Statutory $500,000/$500,000/$500,000
2. Commercial General (Public) Liability Insurance to include coverage for the following: (a) Premises/Operations (b) Independent Contractors (c) Products/completed operations (d) Contractual Liability (e) Personal Injury (f) Explosion, collapse, underground (g) Broad form property damage, to include fire legal liability	Bodily injury and property damage of $2,000,000.00 per occurrence $5,000,000.00 general aggregate or its equivalent in umbrella or excess liability coverage

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Type	*Amount*
*3. Business Automobile Liability (a) Owned/leased vehicles (b) Non-owned vehicles (c) Hired vehicles	Combined single limit for bodily injury and property damage of $1,000,000.00 per occurrence or it's equivalent.
*4. Professional Liability (Claims made from)	$1,000,000.00 per claim to pay on behalf of the insured all sums which the insured shall become legally obligated to pay as damages by reason of any act, malpractice, error or omission in professional services.
*5. Contractor's Pollution Liability Coverage	$1,000,000.00 written on a claims made form with a two-year extended reporting period
*6. Pollution Liability Motor Carrier and Trucker Coverage endorsing the upset, overturn and remediation of a load in transport.	$1,000,000.00 per occurrence written on an occurrence form) (Combined single limit for bodily injury and property damage.)
*If applicable	

(d) The city shall be entitled, upon request and without expense, to receive copies of the policies and all endorsements thereto as they apply to the limits required by the city, and may make a reasonable request for deletion, revision, or modification of particular policy terms, conditions, limitations or exclusions (except where policy revisions are established by law or regulation binding upon either of the parties hereto or the underwriter of an such policies). Upon such request by the city, the rights-of-way user shall exercise reasonable effort to accomplish such changes in policy coverage, and shall pay the cost thereof.

(e) Right-of-way users shall ensure that all insurance contracts and certificate(s) of insurance contain the following required provisions:

(1) Name the city and its officers, employees, volunteers, agents, and elected representatives as additional insureds with respect to the operations and activities of, or on behalf of, the named insured performed in the right-of-way under provision of this chapter, with the exception of the professional liability, workers' compensation and liability policy; and

(2) Right-of-way user's insurance shall be deemed primary with respect to any insurance or self-insurance carried by the city; and

(3) Provide for an endorsement that the "other insurance" clause shall not apply to the city where the city is an additional insured shown on the policy; and

(4) Workers' compensation and employers' liability will provide for a waiver of subrogation in favor of the city.

(f) Right-of-way user shall notify the city in the event of any notice of cancellation, nonrenewal or material change in coverage and shall give such notices not less than thirty (30) days prior to the change, or ten (10) days notice for cancellation due to non-payment of premiums, which notice must be accompanied by a replacement certificate of insurance. All notices shall be given to the city at the following address:

City of San Antonio Finance Department P.O. Box 839966 San Antonio, Texas 78283-3966	City of San Antonio City Clerk's Office P.O. Box 839966 San Antonio, Texas 78283

(g) Nothing herein contained shall be construed as limiting in any way the extent to which the right-of-way user may be held responsible for payments of damages to persons or property resulting from the right-of-way user's or its subcontractors' performance of the work performed in the public right-of-way.

(h) The city owned utilities, city public service and San Antonio Water System, shall not be required to provide the insurance specified herein.

(i) With respect to the right-of-way user's obligation to comply with the requirements for Commercial General (public) Liability Insurance coverage to include pollution coverage, the city may allow the right-of-way user to self-insure upon annual production of evidence that is satisfactory to the city's risk manager. With respect to the right-of-way user's obligation to comply with the requirements for automobile liability insurance and for workers' compensation insurance, a right of way user may self-insure, provided the right-of-way user tenders satisfactory evidence of self-insurance as contemplated by the State motor vehicle financial responsibility law, Tex. Transp. Code § 601.124, and the Texas Workers' Compensation Act, Tex. Labor Code § 407.001 et seq.
(Ord. No. 93319, § 1, 1-25-01)

Sec. 29-174. Performance/assurance bond.

Before a permit shall be issued, the applicant therefore shall execute and deliver to the city, to be kept on file in the city clerk's office, a good and sufficient bond of or assurance, in the sum of ten thousand dollars ($10,000.00) to be approved by the risk manager and conditioned that the person making the application shall promptly adjust, pay and settle all legitimate claims for damages that may result by reason of carelessness or negligence in the manner of performing such work or by reason of any defects therein caused or arising from careless, negligent or imperfect construction thereof, and to hold the city free and harmless from liability on all such claims for damages to the performance or assurance bond shall cover the cost of repairs in or upon the street, sidewalk or other public place where the work is to be done that may become necessary by reason of such cut or excavation having been made. The bond shall be maintained until the work is accepted by the city.
(Ord. No. 93319, § 1, 1-25-01)

Sec. 29-175. Optional continuing bond and deposit.

In lieu of a bond of performance or assurance required for each permit issued under the performance/assurance bond section of this article, the applicant may maintain a one-time bond of performance or assurance with the director the sum of one hundred thousand dollars ($100,000.00) for the purposes specified in section 29-174, and shall have on file, in the city clerk's office, an approved bond of performance or assurance in like amount, being then in full force and effect, against which claims shall not have been presented aggregating more than one hundred thousand dollars ($100,000.00); provided, further, that section 29-174 shall not apply to applications for permits to make cuts, openings or excavations in any street, plaza or other public place paved under contract with the city, unless the contract of maintenance and the maintenance bond therefor shall have expired. The bond shall be maintained until the applicant is no longer working in or on city streets.
(Ord. No. 93319, § 1, 1-25-01)

Sec. 29-176. Liability of contractor and sureties for maintenance and repair work.

Any defects of workmanship or material relating to work done by an excavator during the initial project or becoming known or which should have been known during the guarantee period (the life of the street) shall be known as maintenance or repair work and both the excavator and the sureties and/or the contractor's bond shall be fully liable for any default of such contractor under this section. In the event of a failure in the restoration of an excavation, the ROW user shall have one opportunity to repair, in a timely manner, the section of the restoration that has failed at its expense, which repair shall be in accordance with the standards set forth in this chapter. In the event of any subsequent failure of that section of the restoration, the city retains the right and option to terminate the ROW user's guaranty, upon written notice to the ROW user. In such event, the ROW user shall reimburse the city for its direct costs associated with the repair of the failure of the restoration work.
(Ord. No. 93319, § 1, 1-25-01)

Sec. 29-177. When additional security required.

In the event the director reasonably believes the contractor or ROW user;s solvency is threatened, the director may, at any time, make written

demand on a contractor or ROW user for bonds and the contractor or ROW user shall immediately furnish such additional bond or bonds.
(Ord. No. 93319, § 1, 1-25-01)

Sec. 29-178. Decision of director binding on contractor, ROW user, and sureties.

In any question as to when any work was actually begun or other specific dates, the decision of the director shall be conclusive on the contractor, ROW user, and the sureties on all such bonds.
(Ord. No. 93319, § 1, 1-25-01)

DIVISION 5. VARIANCES AND EXEMPTIONS

Sec. 29-179. Variances/exemptions.

A permittee or ROW user may request a variance from any of the requirements of this chapter by filing a written request with the director stating the requirement and the basis for the variance. Incomplete variance requests may be rejected. The applicant shall bear its own expenses of the application process.

(1) Any request for a variance from any right-of-way restoration requirement shall be made in writing in advance of any contemplated work and shall be accompanied by digitally formatted detailed plans of the substituted reconstruction and/or repair of the excavated area, if applicable.

(2) Any request for an exemption from any penalty or fee other than as provided in this, shall be made in writing, and shall be accompanied by a written detailed request stating the reasons therefor.

(3) Any request for an exemption from any permit, or any other requirement of this chapter shall be made in writing, by detailed written request therefor, stating all pertinent reasons.

(4) The department shall grant or deny an application for a variance within ten (10) days of receipt of the application for variance.

(5) Denial of the variance may be appealed in accordance with the appeal section of this chapter.

(Ord. No. 93319, § 1, 1-25-01)

Sec. 29-180. Exception for irrigation, sprinkler and residential purposes.

This article shall not be applicable to excavations which are not in pavement and are solely for the purpose of creating a sprinkler system for one (1) or more residential units located in Bexar County.
(Ord. No. 93319, § 1, 1-25-01)

DIVISION 6. CERTIFICATED TELECOMMUNICATION PROVIDERS

Sec. 29-181. Certificated telecommunications providers authority required/non-exclusive use.

A CTP must provide evidence that the CTP has acquired authorization from the Texas Public Utility Commission pursuant to state law, prior to obtaining a permit to use public rights-of-way. The CTP's right to use and occupy the public rights-of-way shall not be exclusive and CTP recognizes the city's right to exercise its police powers and manage its public rights-of-way, based on the Act and all other State or Federal laws.
(Ord. No. 93319, § 1, 1-25-01)

Sec. 29-182. Additional authority required.

The CTP and any of its affiliates are not authorized to provide cable television service as a cable operator or to operate an open video system in the city, but must first obtain a separate franchise agreement from the city for that purpose, under such terms and conditions as may be required by law. This section does not preclude the CTP from providing its services to cable television companies. Unless a cable television operator shows proof of appropriate city authorization, nothing herein shall authorize the CTP to license, sublicense, lease, sublease or by any instrument authorize any cable television operator the right to use or utilize the transmission media or facilities of the CTP.
(Ord. No. 93319, § 1, 1-25-01)

Sec. 29-183. Transfer and notice.

A CTP shall notify the director and the city's supervisor of public utilities of any sale, transfer, merger or assignment of the ownership or control of a CTP's business within at least thirty (30) days of such sale, transfer, merger or assignment. A CTP shall also maintain and provide current point-of-contact information with the director and the city's supervisor of public utilities at all times during which the CTP uses the right-of-way.
(Ord. No. 93319, § 1, 1-25-01)

Sec. 29-184. Exemption from fees.

Certificated telecommunications providers are exempted from the following fees provided for in this article:

(1) Permit application fee, including expedited application fee, and permit expiration fee.

(2) Additional excavation permit fee.

(3) Inspection fee.

(4) Pavement degradation fee.

(5) Division 8 fees.

(6) Registration fee.

(Ord. No. 93319, § 1, 1-25-01)

Sec. 29-185. Waiver of bonds.

Unless determined otherwise by the director a CTP will be exempt from the bonding requirements of this article, including sections 29-175 and 29-176, however, in the event that the director determines, based upon reasonable grounds, that a bond is necessary to protect the public assets, or the health and safety of the public, then the director may require that a CTP post a reasonable bond not to exceed one hundred thousand dollars and zero cents ($100,000.00). The director shall consult with the city's risk manager prior to imposing a bond on a CTP. Factors to be considered in determining reasonable grounds may include, but not limited to, a conviction for violation of this article, a general pattern of sub-standard adherence to the provisions of this article or the failure to comply with this article. If three (3) years pass from the date that the director requires a bond of a CTP and it has not been necessary for the city to seek performance under the bond, then a bond will no longer be required pursuant to this section.
(Ord. No. 93319, § 1, 1-25-01)

Sec. 29-186. CTP indemnity.

A CTP shall indemnify the city as specified by § 283.057 of the Texas Local Government Code, as may be amended. A CTP shall be exempt from all indemnity requirements of this article that are inconsistent with § 283.057.
(Ord. No. 93319, § 1, 1-25-01)

DIVISION 7. FISCAL PROVISIONS

Sec. 29-187. Right-of-way management fund.

[(a)] Section 1: The director of finance is authorized to establish a project within the Miscellaneous Special Revenue—Streets & Drainage Fund 29-014002, entitled "Right-of-Way Management Street Restoration Project" to account for all revenues and expenditures to manage construction, excavation and placement of utilities; establishing fees; providing a penalty for violation by fine of not more than six hundred ($600.00) per day, per violation, and providing for publication. The director of finance is authorized to record and account for the project in accordance with Generally Accepted Accounting Principles (GAAP).

[(b)] Section 2: The director of finance is authorized to establish a project within the Miscellaneous Special Revenue— Streets & Drainage Fund 29-014003, entitled "Right of Way Management Street Restoration Reserve" to account for penalties and payment repair revenues authorized. The director of finance is authorized to record and account for the project in accordance with Generally Accepted Accounting Principles (GAAP).

[(c)] Section 3: Eighteen (18) new positions (one (1) Administrative Assistant II, six (6) Engineering Technicians, one (1) Fiscal Officer, three (3) Permit Clerks, one (1) Right-of-Way Manager, one (1) GIS Manager, four (4) Sr. Engineering Technicians, one (1) Utility coordinator) are hereby authorized in Fund 29-014002.

[(d)] Section 4: Funds in the amount of one million one hundred thirty thousand six hundred forty-four dollars ($1,130,644.00) are appropriated in Fund 29-14002, entitled Miscellaneous Special Revenue: Streets & Drainage—Right-of-Way Management Restoration Project, as set out in Attachment I.

[(e)] Section 5: The following fees authorized by this article are to be deposited in Fund 29-014002 in the index codes indicated below and budgets are authorized to be established:

Index Code	*Title*	*Activity*	*Amount*
069153	Permit Application Fee		$241,146.00
069161	Inspection Fee		$661,250.00
069179	GIS Processing Fee		$51,667.00
069187	Pavement Degradation Fee		$100,000.00
069195	Admin Fee—Pavement Repair		$79,080.00

[(f)] Section 6: The following fees authorized by this article are to be deposited in Fund 29-014003 in the index codes indicated below and budgets are authorized to be established:

Index Code	*Title*	*Activity*	*Amount*
069690	Penalties		$253,958.00
069708	Pavement Repair Revenue		$790,804.00

Attachment I is authorized for adoption into fiscal year 2000/2001 annual budget in Fund 29-014 (Streets Maintenance Special Revenue Fund) in Project 29-014002 (Right-of-Way Management Street Restoration Project). The personnel complement and budget appropriations, for the department, contained therein is authorized.

A separate fund shall be created, effective as of the effective date of the ordinance from which this article derives, known as the Right-of-Way Management Street Restoration Fund, for the purpose of identifying and controlling all revenues and expenses attributable to the Right-of-Way Management Street Restoration Program. All right-of-way management charges collected by the city, after the effective date of the ordinance from which this article derives, and other monies city council may wish to designate for this fund, shall be deposited in the Right-of-Way Management Street Restoration Fund. Such revenues shall be used for the purposes of administration, studies, engineering, construction, reconstruction and other reasonable and customary charges associated with the operation of the Right-of-Way Management Program.

Revenue collected through Right-of-Way Management shall be recorded and accounted for in a manner that insures that said funds are expended solely for expenses accrued by the Right-of-Way Management Street Restoration Program. The balance of funds on deposit in the account at the end of any fiscal year shall remain in the account and not be absorbed into the general fund.
(Ord. No. 93319, § 1, 1-25-01; Ord. No. 2008-09-11-0777G, § 16, 9-11-08)

Sec. 29-188. Annual report.

A report shall be made to the city council on an annual basis detailing the revenue and expenditure from the street excavation permit and associated fees collected and expended for the Right-of-Way Management Program.
(Ord. No. 93319, § 1, 1-25-01)

DIVISION 8. RESERVED*

Secs. 29-189, 29-190. Reserved.

DIVISION 9. SIDEWALK CONSTRUCTION

Sec. 29-191. Exemption for walk done under contract with city.

The provisions of this article shall not apply to any sidewalk or curbing construction or repairs

*__Editor's note—__Ord. No. 2007-01-11-0065, § 2, adopted January 11, 2007, repealed division 8, §§ 29-189 and 28-190, in its entirety, which pertained to licenses to use public right-of-way and derived from Ord. No. 93319, § 1, adopted January 25, 2001; Ord. No. 96508, §§ 3—5, adopted October 3, 2002, and Ord. No. 96509, §§ 2—13, adopted October 3, 2002.

done under contract with the city, except to the extent which may be specified in such contract or ordinance passed pursuant thereto, or as further described herein.
(Ord. No. 93319, § 1, 1-25-01)

Sec. 29-192. Procedure for making sidewalk improvements and assessments.

(a) Whenever the city council shall find a public necessity for laying any sidewalk or curbing on any public street or place along, in front of or abutting of any private in the city, and shall pass an ordinance ordering the construction of such sidewalk or curbing, specifying the extent of such sidewalk or curbing required and naming the street or public place along which it is ordered to be constructed. The ordinance shall give a general description of each parcel of abutting property sufficient to identify the parcel and the name of the owner of the property of known.

(b) It shall be the duty of each owner of such abutting property forthwith to lay and construct, or cause to be laid and constructed, such sidewalk or curbing as so ordered and of the character required.

(c) It shall not be necessary for the city council expressly to declare such public necessity in each successive case, but the necessity shall be presumed to have been found and declared whenever the laying of sidewalks or curbing is ordered. If any owner is unknown to the city council it shall be sufficient so to state in the ordinance requiring the construction.

(d) Each order and notice of any sidewalk, curbing or repairs for property situated at the intersection of any two (2) streets or public places shall be deemed to include the construction of the sidewalk, curbing or repairs along the property mentioned and extending to the curb line of the street or public place.

(e) If any property has an unpaved alley abutting on the street or public place and intersecting on the street or public place and intersecting the street or public place, the sidewalk along the street or public place on either side of the alley shall be extended and maintained by the owner of each parcel of property abutting on the alley without special order or notice therefore, one-half (½) of the distance across such alley at a grade not higher than the sidewalk as may be fixed and determined by the director of public works.
(Ord. No. 93319, § 1, 1-25-01)

Sec. 29-193. Procedure when improvement consists of repairs.

(a) When the city council shall be of the opinion that any sidewalk or curbing is in need of repairs, the repairs may be ordered and notice given to owners all in the same manner and with like purpose and effect as provided for original construction of the sidewalks or curbing. It shall be the duty of the owners of the property to construct the repairs, or cause the repairs to be

constructed so as to lay, construct and restore the sidewalk or curbing to good, safe and sound condition conforming to city specifications.

(b) Whenever the city council finds that any old sidewalk or curbing is so broken or disintegrated as to require construction of a new sidewalk, either wholly or in part, the council may order even though such old broken or disintegrated sidewalk or curbing may then exist along such premises.

(c) Each order of the city council shall be made pursuant to a report of the director of public works, when made by ordinance shall have the full force of condemnation were expressed in such ordinance.
(Ord. No. 93319, § 1, 1-25-01)

Sec. 29-194. Procedure for improvement.

All sidewalk, curbing and guttering work constructed or contracted for by the city, independently of and apart from any paving contract, shall be conducted, and proceedings and assessments therefore made and had substantially as provided by state law. The cost of the construction or repair of sidewalks and curbing when so constructed or contracted for and not included with paving work shall be payable in two (2) equal installments, the first payable thirty (30) days after the date of the certificate of the director of public works provided within the division evidencing the completion of the improvements and acceptance thereof by the city, and the second payable one (1) year after such date. The construction or repair of such sidewalk and curbing on any number of streets and for any number of separate parcels of property where situated, and through originally ordered at different dates, may be included in the same proceedings and contracts, and the improvement so ordered for each parcel of property and the street or public place upon which such property abuts shall be deemed to be separate and distinct improvements, neither affected by any other such improvement included in the same proceedings or contract. Except as stipulated within this division all pertinent provisions of state law shall apply to the construction or repair of sidewalk and curbing, and the assessments to be levied on account of the cost of such work.
(Ord. No. 93319, § 1, 1-25-01)

Sec. 29-195. Notice to owner.

Upon passage of any ordinance ordering the laying and construction of any sidewalk, curbing or repairs, the director of public works shall issue a written notice addressed to each owner of such property, which notice shall be sent by certified mail, return receipt requested, and shall include the substance of such ordinance.
(Ord. No. 93319, § 1, 1-25-01)

Sec. 29-196. Substituted service.

If an owner of property is not found or is unknown or is a nonresident, it shall be sufficient service of the notice required above (notice to owner) to public the same three (3) consecutive times in any newspaper of general circulation published in the city in the English language, or it shall be sufficient service of the notice on any owner of any property to deliver the notice to the agent, if any, collecting rentals on the property, or to any owner of any such parcel of property, and it shall also be sufficient service of the notice, if the city shall forward the notice to the owner by certified or by registered United States mail, provided the receipt of the owner for the letter forwarded is received and filed by the director as evidence of service.
(Ord. No. 93319, § 1, 1-25-01)

Sec. 29-197. When work is to commence.

Work on the construction of each sidewalk, curbing or repair ordered as provided above shall be commenced within the period of time as specified by ordinance, and the work shall thereafter be prosecuted to completion within the time thus slated.
(Ord. No. 93319, § 1, 1-25-01)

Sec. 29-198. Failure to commence work.

If any person owning any property, or any portion or share in the fee title thereof, after the passage of any ordinance requiring improvements under this article and the service of any required

notice, shall fail or refuse to commence the construction of such repairs, or to cause such work to be commenced within the period specified by ordinance, or if the person shall allow the work to be discontinued before completion other than by written consent of the director, the person shall be adjudged guilty of a misdemeanor.
(Ord. No. 93319, § 1, 1-25-01)

Sec. 29-199. Periodic inspections to assure compliance; complaints for noncompliance.

Upon the expiration of the period of time specified by an ordinance requiring improvements to be made under this article, the director of public works shall inspect or have inspection made of the premises on which the work was ordered to be constructed and shall cause a complaint to be filed in the municipal court against each person who, after the order and notice, has failed or refused to begin or to continue the improvements, or to cause such improvements to be begun and continued. The inspection and complaint shall be made at least one each month until the work shall be commenced and prosecuted with diligence.
(Ord. No. 93319, § 1, 1-25-01)

Sec. 29-200. Liability of owner for cost of work; lien.

Whenever the city shall, after issuing the order and notice required by this article, construct, or contract for, or whenever any owner of any property shall enter into a lawful contract in writing for the construction or repair of any sidewalk or curbing, independently of and apart from any paving contract or other proceedings for the assessment of the cost of the work against such property and the owner thereof, the cost of such work, in accordance with the city Charter, shall nevertheless be a personal liability against the owner as well as a first and prior lien and charge against such abutting property, and such cost shall be paid by the owner of the city, or to the contractor constructing and completing the work, as herein provided, or as may be provided by the terms of any such contract made and entered into by and between the owner of the property and the contractor.
(Ord. No. 93319, § 1, 1-25-01)

Sec. 29-201. Work to be supervised and approved by director of public works.

Every owner and contractor, and each agent, servant or employee of a contractor employed on work coming the terms of this article shall cause the work to conform strictly to the city specifications and requirements. work in the streets shall always be subject to the further supervision and approval or rejection by the director of public works, acting personally or by one of his assistants. If the work is not constructed in strict conformity with the specifications and the lines and grades for such work, the director of public works shall condemn the work, and it shall be promptly removed by the person or contractor who constructed it and without further notice be reconstructed as originally ordered and authorized, until the work shall comply with all such requirements.
(Ord. No. 93319, § 1, 1-25-01)

Sec. 29-202. Certificate of approval.

When work is fully completed pursuant to this article, the director of public works shall, if requested by the contractor or any owner of any such parcel of property, inspect the work and if it be approved, furnish to such applicant a written certificate showing the completion of the work and the acceptance thereof by the city, for which inspection and final certificate, the applicant, shall, upon application therefore, pay a fee of two dollars ($2.00) to the director of public works, for which fee he shall account to the city. Any owner of such property may refuse to make payment on account of the work until the director has certified to the completion and acceptance of such work.
(Ord. No. 93319, § 1, 1-25-01)

DIVISION 10. WEIGHT-LIMITED BRIDGES

Sec. 29-203. Bridge weight limit violation.

It shall be unlawful for the operator of any vehicle to drive, haul, push or tow, wholly or partially, any load upon a posted weight limited bridge, which collectively exceeds the officially

designated and posted maximum bridge weight, whether or not all load bearing wheels travels onto the bridge.
(Ord. No. 93319, § 1, 1-25-01)

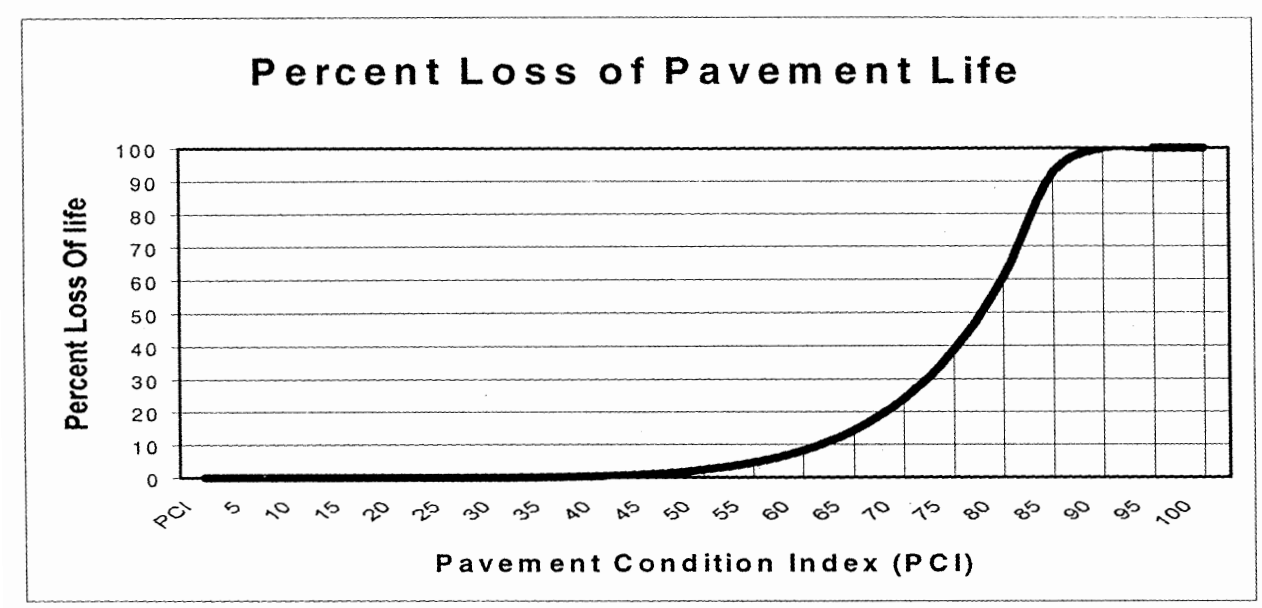
Sec. 29-204. Penalty upon conviction.

This is not a traffic ordinance authorized under the Texas Motor Vehicle Statutes, and is not governed by the penal provisions there under. Any violation of the provisions of this division is hereby declared to be a health and safety related misdemeanor, and upon conviction is punishable by a fine of not more than five hundred dollars ($500.00).
(Ord. No. 93319, § 1, 1-25-01)

Appendix "B"

Formula:

Percent Loss of Pavement Life = $0.0039 \times (PCI/20^{6.963})$



Read the Percent Loss of Pavement Life on the left side of the figure. Round the value to the nearest whole number. Table of PCI values in increments of five (5) follows and shall be used as a guide:

PCI	5	10	15	20	25	30	35	40	45	50	55	60	65	70	75	80	85	90	95	100
PLL Value	0	0	0	0	0	0	0	0	0	2.30	4.47	8.19	14.30	23.96	38.73	60.70	92.58	100.00	100.00	100.00

PCI > 85 use 100% Loss of Pavement Life

PCI ≤ 50 use 0% Loss of Pavement Life

Pavement Cost per Square Yard Rate is scheduled as follows:

Classification	*Cost per Square Yard (FY 2000-2001)*
Thin (flexible pavement)	$32

Classification	*Cost per Square Yard (FY 2000-2001)*
Medium (flexible pavement)	$38
Thick (flexible pavement)	$42
The cost per square yard rates shall be updated annually.	

To determine pavement classification you must first determine the pavement equivalent granular thickness (EGT). The EGT value is equal to the sum of all the layers in the existing pavement section times the respective value for each material as follows:

Pavement Material	*EGT Value per Inch*
Lime Stabilized Subgrade	0.6
Crushed Limestone Base	1.0
HMACP, Type A or B	2.0
HMACP, Type C or D	1.8
Asphalt Stabilized Base	1.7
Ashpalt In-Place Base Stabilization	1.6
Old or Weathered Concrete	2.0
Newly or Mildly Weathered Concrete	3.0

EGT value = SUM (EGT value per inch × inches of material in the section)

Note: The pavement cross-sectional thickness (in inches) can be determined from one of the following sources:

(1) City of San Antonio's Pavement Management System

(2) Field investigation through coring or excavation of sample sections, or

(3) From the as-built drawings on file in the city engineer's office.

Then, determine the pavement classification as follows:

Total EGT Value	*Classification*
Less than or equal to 15	Thin (flexible pavement)
Greater than 15 but less than 20	Medium (flexible pavement)
Equal to or greater than 20	Thick (flexible pavement)

Use the pavement classification to determine pavement cost per square yard rate.

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Chapter 30

RESERVED*

*__Editor's note__—Ord. No. 65513, § 2(e), adopted Aug. 13, 1987, provided for the deletion of former Ch. 30 relative to subdivisions in conjunction with the adoption of the Unified Development Code. Provisions concerning subdivisions are currently contained in Ch. 35. The substantive sections of former Ch. 30 derived from Code 1959, §§ 36-1—36-20, 36-22—36-31, 36-34—36-39 and the following ordinances:

Ord. No.	Section	Date	Ord. No.	Section	Date
45029		3-13-75	55758	4	9- 2-82
48211	4, 5	7- 7-77	55814	1	9-16-82
48486	1, 2	9- 8-77	56261	1	12-16-82
48557	2	9-29-77	56608	1—5, 9—12	2-24-83
48667	1—8, 10—12	10-27-77	57569	1, 2	9-15-83
49585	1	7-20-78	57800	1	10-27-83
50956	1	7- 5-79	59315	1—6	9- 4-84
52119	1—3, 5	4-24-80	59873		12- 6-84
52573	2—5, 8	7-31-80	60959	3	6-27-85
52783	1, 2	9-18-80	61208		8- 8-85
53868	1—3, 5—7, 10	6- 4-81	61336	1	8-29-85
54285	1	9-17-81	63235	2	7-16-86
55117	1—12, 14, 16—19 21, 22, 25—27	3-25-82	64080	§ 1(Att.1—5)	11-20-86
55430	1—3	6-10-82	65180		6-11-87

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Chapter 31

TAXATION*

Article I. In General

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Sec. 31-2. Ad valorem tax rate for the maintenance and operation of the city government (2002).
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Article II. General Occupation Tax

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Sec. 31-17. Businesses, professions and occupations for which required; duration.
Sec. 31-18. Tax levied; amount.
Sec. 31-19. When taxes due and payable.
Sec. 31-20. Partial payment of tax prohibited.
Sec. 31-21. Issuance of license.
Sec. 31-22. License numbers.
Sec. 31-23. Receipts for licenses.
Sec. 31-24. Display of license.
Sec. 31-25. Discriminatory practices of licensee prohibited.
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Article III. Coin-Operated Machines

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Sec. 31-42. Machines exempt from tax.
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Sec. 31-44. When tax is due.
Sec. 31-45. Issuance of decal.
Sec. 31-46. Display of decal.
Sec. 31-47. Attachment to machine.
Sec. 31-48. Sealing and release of machines.
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Article IV. Hotel Occupancy Tax

Sec. 31-66. Definitions.
Sec. 31-67. Use of tax proceeds.
Sec. 31-68. Tax authorized; tax rate; exceptions to tax.
Sec. 31-69. Collection; payment to city; fee for collection.
Sec. 31-70. Reports.
Sec. 31-71. Availability of records.
Sec. 31-72. Rules and regulations.

***Charter reference—**Taxation generally, § 89 et seq.

Cross references—Licenses and business regulations, § 16-1 et seq.; ad valorem tax exemption for residential and commercial sites, §§ 35-456, 35-476.

State law references—Authorization for occupation tax, V.T.C.A. Tax Code, § 192.009; occupation taxes generally, V.T.C.A. Tax Code, § 191.121 et seq.

Sec. 31-73. Violations.
Sec. 31-74. Suit to enjoin hotel operations.
Sec. 31-75. Surety bond in lieu of injunction suit.
Sec. 31-76. Fine upon conviction.
Sec. 31-77. Tampering with government records.
Secs. 31-78—31-85. Reserved.

Article V. Residence Homestead Exemption For The Elderly

Sec. 31-86. Exemption granted.
Sec. 31-87. Effective date.
Sec. 31-88. Limitations of exemption.
Sec. 31-89. Determinative date for exemption.
Secs. 31-90—31-115. Reserved.

Article VI. Reserved

Secs. 31-116—31-199. Reserved.

Article VII. Residence Homestead Exemption For The Disabled

Sec. 31-200. Definitions.
Sec. 31-201. Exemption granted.
Sec. 31-202. Effective date.
Sec. 31-203. Limitations of exemption.
Sec. 31-204. Determinative date for exemption.
Sec. 31-205. Exemption granted.
Sec. 31-206. Effective date.
Secs. 31-207—31-219. Reserved.

Article VIII. General Residence Homestead Exemption

Sec. 31-220. Exemption granted.
Sec. 31-221. Effective date.
Sec. 31-222. Limitations of exemption.
Sec. 31-223. Determination date for exemption.

ARTICLE I. IN GENERAL

Sec. 31-1. Adoption of state tax code.

The provisions of the Texas Tax Code as set forth in V.T.C.A., Tax Code, § 1.01 through § 211.259 is hereby adopted by the city as if set forth at length herein. Three (3) copies of the Tax Code shall be filed in the office of the city clerk.

Sec. 31-2. Ad valorem tax rate for the maintenance and operation of the city government (2002).

The city council hereby sets and levies for general purposes an ad valorem tax rate of 36.204 cents per one hundred dollars ($100.00) of assessed valuation for the tax year beginning January 1, 2002, and ending December 31, 2002, on all property, real, personal, mobile, and mixed, within the limits of the city, not otherwise exempted by the Constitution or laws of the state and ordinance of the city.
(Ord. No. 96400, § 1, 9-19-02)

Sec. 31-3. Ad valorem tax rate to pay the principle and interest on the funded debt of the city (2002).

To provide for the payment of the principal and interest on general obligation bonds and certificates of obligation issued by the city and to create a sinking fund for the payment thereof as they severally mature, there hereby is levied for the tax year beginning January 1, 2002 and ending December 31, 2002, a special tax of, and at the rate of, 21.650 cents per one hundred dollars ($100.00) of assessed valuation on all property, real, personal, mobile, and mixed, within the limits of the city, not otherwise exempted by the Constitution or laws of the state and ordinance of the city.
(Ord. No. 96401, § 1, 9-19-02)

Secs. 31-4—31-15. Reserved.

ARTICLE II. GENERAL OCCUPATION TAX

Sec. 31-16. Enforcement.

It shall be the duty of the police to assist in the enforcement of this article, and they are required to report to the tax assessor-collector every person pursuing any business, vocation or occupation without having the required license.
(Code 1950, § 34-1; Code 1959, § 14-23)

Sec. 31-17. Businesses, professions and occupations for which required; duration.

It shall be the duty of every person pursuing a business, profession or occupation within the city, upon which there is or may be levied an occupation tax by the city council, before commencing, engaging in or pursuing same, to procure a license from the office of the tax assessor-collector. The license shall be valid to midnight of the last day of May following issuance of the license.
(Code 1950, § 34-1.1; Code 1959, § 14-24)

Sec. 31-18. Tax levied; amount.

There is hereby levied upon every person within the limits of the city pursuing a business, profession or occupation, a tax equal to one-half (½) of the tax imposed by the state upon each such business, profession or occupation and a tax or fee charge of one-half (½) of any fee so charged by the state which under the statutes and the constitution of the state may be imposed by the city.
(Code 1950, § 34-2; Code 1959, § 14-25)

Sec. 31-19. When taxes due and payable.

Occupation taxes shall become due on the day upon which the person first engages in the pursuit, vocation, occupation or calling, and shall be payable annually, in advance, before the first day of June.
(Code 1950, § 34-3; Code 1959, § 14-26)

Sec. 31-20. Partial payment of tax prohibited.

It shall be unlawful on the part of the tax assessor-collector to receive partial payments on account of occupation taxes, but the same shall be received by him only for the full periods authorized by the laws of the state.
(Code 1950, § 34-4; Code 1959, § 14-27)

Sec. 31-21. Issuance of license.

Before any person shall engage in any pursuit, vocation, occupation or calling which is subject to the occupation tax provided for in section 31-18, the amount of the tax shall be paid to the tax assessor-collector, who shall give a receipt therefor upon forms furnished by the director of finance, and shall issue to the person applying therefor a license signed by the director of finance, attested by the tax assessor-collector, and sealed with the seal of the city, to pursue for the time named in the license, the occupation, pursuit, vocation or calling named in the license.
(Code 1950, § 34-5; Code 1959, § 14-28)

Sec. 31-22. License numbers.

The director of finance shall furnish the tax assessor-collector with all occupation tax receipts numbered serially, and such collector shall number each license issued by him to correspond with the number on the receipt.
(Code 1950, § 34-6; Code 1959, § 14-29)

Sec. 31-23. Receipts for licenses.

All occupation taxes shall be receipted for by the tax assessor-collector only upon printed receipts furnished and counter-signed by the director of finance. All occupation receipts issued by the assessor-collector shall have duplicate stubs which shall be signed by him at the time of payment in like manner as the receipt. One of these stubs shall be filed with the assessor-collector's monthly report to the director of finance, and the other stub shall be retained by him until he makes his annual statement.
(Code 1950, § 34-7; Code 1959, § 14-30)

Sec. 31-24. Display of license.

Each occupation license shall be posted by the licensee in a conspicuous place at his place of business.
(Code 1950, § 34-8; Code 1959, § 14-31)

Sec. 31-25. Discriminatory practices of licensee prohibited.

It shall be unlawful for any licensee doing business in the city under and by virtue of any license issued by the city to deny admission to the place of business to any person, merely because he is a member of the armed forces of the United States or its allies, of the reserve officers' training corps, of the boy scouts of America, of the fire and police departments of the city, whether they are in or out of uniform, or to any governmental employee in or out of uniform, or because of citizenship in any Latin-American republic or merely because of racial origin, provided the admission of such person is not in conflict with state and federal laws.
(Code 1950, § 34-9; Code 1959, § 14-32)

Sec. 31-26. Revocation.

Any license granted or issued by the city shall be subject to revocation by the city council after due notice to the holder of such license and hearing thereon, upon proof of violation of section 31-25.
(Code 1950, § 34-10; Code 1959, § 14-33)

Sec. 31-27. Lien for taxes in arrears.

All arrearages of occupation taxes, which may be due by reason of a business having been carried on without the payment of a tax, shall be a lien upon all stock and fixtures owned or used in or making a part of any business or vocation liable to such tax, which lien shall authorize the tax assessor-collector to seize and sell, after ten (10) days' notice, so much of the stock or other personal property of any person owing such taxes as will satisfy the claim for taxes, and all costs incurred by such proceedings.
(Code 1950, § 34-14; Code 1959, § 14-34)

Secs. 31-28—31-39. Reserved.

ARTICLE III. COIN-OPERATED MACHINES*

Sec. 31-40. Occupation tax required.

Every owner or operator who owns, controls, possesses, exhibits, displays, or who permits to be

*__Editor's note—__Ordinance No. 76466, adopted Sep. 10, 1992, amended Art. III to read as herein set out. Formerly, Art. III consisted of §§ 31-41—31-48, which pertained to coin-operated machines and derived from §§ 14-32, 14-36, 14-38, 14-39, 14-41—14-44 of the 1959 Code, and § 1 of Ord. No. 46599, adopted April 29, 1976.

exhibited or displayed in this city any coin operated machine which are not exempt from payment by section 31-42 of this Code, shall pay the appropriate annual taxes as provided in section 31-43.
(Ord. No. 76466, 9-10-92)

Sec. 31-41. Definitions.

The terms "owner," "operator," "coin-operated machine," "music coin-operated machine," "skill or pleasure coin-operated machine," or "service coin-operated machine," as used in this section, shall have the meanings given to them in chapter eight, V.A.T.S., coin-operated services. The term "tax," as used in this section, shall have the meaning of "occupation tax."
(Ord. No. 76466, 9-10-92)

Sec. 31-42. Machines exempt from tax.

Gas meters, pay telephones, pay toilets, food vending, confection vending, beverage vending, merchandise vending and cigarette vending machines, which are now subject to an occupation or gross receipts tax, stamp vending machines and "service coin-operated machines," and machines exclusively for the amusement of children, are expressly exempt from the provisions of this article.
(Ord. No. 76466, 9-10-92)

Sec. 31-43. Amount of tax.

(a) The following tax shall be collected by the tax assessor-collector:

(1) For each coin-operated machine the annual occupation tax shall be an amount that does not exceed one-fourth (¼) the amount of the state tax.

(2) The tax shall be prorated on a semiannual basis. That is, the amount of the tax shall be one-half (½) of the annual amount when paid on a machine placed in operation from December to May.

(3) There shall be no proration of the tax paid on a coin-operated machine which has been sealed for any of the reasons in section 31-48.

(b) The tax assessor-collector may not refund any part of a tax after it is paid.
(Ord. No. 76466, 9-10-92)

Sec. 31-44. When tax is due.

Tax on a coin-operated machine is due by June 1, and shall expire on the last day of May of each year. Payment of the tax is verified by placement of a decal on each coin-operated machine prior to its placement, display, or use.
(Ord. No. 76466, 9-10-92)

Sec. 31-45. Issuance of decal.

Upon payment of the tax required by section 31-43, a decal representing payment of the tax shall be issued by the assessor-collector for placement on the machine under the guidelines of section 31-47. No tax receipt or decal shall be issued for a period longer than one (1) year.
(Ord. No. 76466, 9-10-92)

Sec. 31-46. Display of decal.

It shall be unlawful for any person to possess or exhibit within the city, any coin-operated amusement machine without having first properly attached thereto a valid current decal issued by the city tax assessor-collector, thereby verifying the payment of the tax thereon for the current coin-operated machine tax year of June 1 through May 31. Decal shall be conspicuous and visible to the public, and attached in accordance with section 31-47.
(Ord. No. 76466, 9-10-92)

Sec. 31-47. Attachment to machine.

Occupation tax decals shall be conspicuously attached to a permanent surface of the machine so as to make the decal visible for inspection without movement of machine. Decals not properly displayed will be invalid. Tax decals shall be securely and permanently attached to the coin-operated machine. It shall be unlawful to enclose any tax decal in a plastic cover or to in any way affix the decal in a less than permanent manner so that the decal may be removed or moved from one machine to another without the destruction of the decal resulting as a consequence of such removal. The decal must be attached by use of the

adhesive exposed on back following complete removal of the protective backing. Decals shall not be affixed by the use of tape. Any decal not affixed permanently to a machine as described in this section by use of the adhesive backing on the decal shall be immediately voided. Any decal removed from a machine shall be immediately voided. Occupation tax decals issued under the provisions of this article are not transferrable from one person to another or from one coin-operated machine to another.
(Ord. No. 76466, 9-10-92)

Sec. 31-48. Sealing and release of machines.

(a) The special tax investigators of the city tax office are authorized to and shall have the power to inspect any coin-operated machines for compliance of this article and shall seal or otherwise make inoperable any coin-operated machine on which the city occupation tax has not been paid or on which the decal has been improperly placed, removed, invalidated, voided, or defaced in such a manner as to deem the decal number unreadable.

(b) The special tax investigators are authorized to release any machine so sealed upon the payment in full of the tax due and verification of the correct placement of the current decal on the coin-operated machine so sealed, and the payment of a penalty of five dollars ($5.00) to the assessor-collector for each machine so sealed. A coin-operated machine shall remain sealed and it shall be unlawful to play, use, or remove from the premises where it was located when sealed, any machine sealed by an investigator until such time as all taxes and penalty fees are paid in accordance with the provisions contained in this article.
(Ord. No. 76466, 9-10-92)

Secs. 31-49—31-65. Reserved.

ARTICLE IV. HOTEL OCCUPANCY TAX*

Sec. 31-66. Definitions.

The following words, terms and phrases are, for the purposes of this article (except where the context clearly indicates a different meaning), defined as follows:

Alternate collection / reporting period shall mean a period of a day or days other than the regular calendar months. Such periods are approved by the city finance director upon request by the hotel manager, operator, or person in control, or imposed by the city finance director upon his finding that collections are at risk of loss if collections accumulated for the full calendar month [are] in the possession of the hotel owner, operator, manager, or person in control.

Consideration shall mean the price of, or value received for, the right to use a sleeping room, bed, or dormitory space or other sleeping facility in a hotel, and includes the price of conveniences customarily provided in connection with sleeping accommodations, including mattress, sheets, bedspreads, pillows, pillow cases, bed frames, air conditioning, electricity, lighting, water, soap, towels, wash cloths, toilet tissue, shower or bath facilities, lavatory, chairs, trash receptacles, plus any other goods or services which are not ordinarily subject to sales tax. The consideration paid for a sleeping room or facility shall not include the price of food served, nor the price of personal services rendered to the occupant which are unrelated to cleaning and readying a room for occupancy, nor any sales tax, nor occupancy tax assessed by other governmental agencies, provided that these charges are stated separately on the folio or invoice of the occupant. Charges not stated separately shall be presumed to be part of

*__Editor's note—__**Ord. No. 67104, adopted May 12, 1988, amended Art. IV, §§ 31-66—31-74, relative to the hotel occupancy tax, in its entirety to read as herein set out. Prior to said amendment, the substantive provisions of Art. IV derived from Code 1959, §§ 14-5, 14-46—14-51; Ord. No. 36347, § 3, adopted March 14, 1968; Ord. No. 43385, § 1, adopted Feb. 14, 1974; Ord. No. 54564, § 3, adopted Nov. 19, 1981; Ord. No. 57798, § 1, adopted Oct. 27, 1983; Ord. No. 63239, §§ 1, 2, adopted July 16, 1986; and Ord. No. 65174, adopted June 11, 1987.

State law references—Hotel occupancy tax, Vernon's Ann. Civ. St. art. 1269j-4.1; §§ 3a, 3b, 3d.

the consideration paid for occupancy of a sleeping room or sleeping facility, and shall be taxed under this article.

Hotel shall mean any building or complex of buildings, trailer, converted railroad pullman car, or any other facility in which the public may, for a consideration, obtain sleeping accommodations. The term shall include hotels, motels, tourist homes, houses or courts, lodging houses, inns, rooming houses, trailer houses, trailer motels, parked railroad pullman cars used for sleeping accommodations and not involving the transportation of travelers, dormitory where bed space is rented, apartments not occupied by permanent residents, and all other facilities where rooms or sleeping facilities or space are furnished for a consideration. The term hotel does not include hospitals, sanitariums or nursing homes.

Monthly collection/reporting period shall mean the regular calendar months of the year.

Occupancy shall mean the use or possession of, or the exclusive right to the use or possession of a sleeping room or sleeping facility in a hotel.

Occupant shall mean any individual, corporation, governmental agency, partnership, or association that has paid a consideration for the exclusive right to use a sleeping room or sleeping facility in a hotel.

Permanent resident shall mean any occupant who has occupied or has paid for the exclusive right to occupy a particular sleeping room or rooms or sleeping facility in a hotel for at least thirty (30) consecutive days; however, one change of sleeping rooms or facility during the first thirty (30) days of occupancy in the hotel shall not terminate the status of the permanent resident. Any person who does not fully prepay for the first thirty (30) days is not a permanent resident during the first thirty (30) days of occupancy.
(Ord. No. 67104, 5-12-88)

Sec. 31-67. Use of tax proceeds.

All hotel tax revenues above and beyond the seven (7) percent rate, up to the maximum tax rate of nine (9) percent, together with any attendant late penalties, shall be devoted exclusively to the "Capital Improvement Plan For Convention Center Expansion," and related renovations.
(Ord. No. 67104, 5-12-88; Ord. No. 67923, § 9(a), 9-15-88; Ord. No. 78834, § 6, 9-30-93)

Sec. 31-68. Tax authorized; tax rate; exceptions to tax.

(a) *Authorization.* There is hereby levied a tax upon the cost of or consideration paid for a sleeping room or sleeping facility furnished by any hotel.

(b) *Tax rate.* The tax shall be equal to nine (9) percent of the total price of a sleeping room or sleeping facility, said price to include all goods and services provided by the hotel which are not ordinarily subject to sales tax.

(c) *Exceptions.*

(1) There shall be no tax on the cost of or consideration paid for occupancy of a hotel sleeping room or sleeping facility priced at less than two dollars ($2.00) per day.

(2) The cost of or consideration paid for a hotel room or facility not ordinarily used for sleeping, such as a meeting room, is not subject to this tax.

(3) The cost of or consideration paid for a sleeping room or facility occupied by a permanent guest is not subject to this tax.

(4) There can be no occupancy tax on the consideration paid directly by the United States Treasury if the constitutional exemption is invoked. This exception is not extended to employees of the federal government or any local government who pay the consideration for sleeping room or sleeping facilities without the federal government being a party to the contract.

(Ord. No. 67104, 5-12-88; Ord. No. 78834, § 2, 9-30-93)

Sec. 31-69. Collection; payment to city; fee for collection.

(a) Every person owning, operating, managing or controlling any hotel shall collect the tax imposed under this article and pay same to the city tax collector with the report required hereinafter.

(b) Reserved.

(c) The report and the tax remittance shall become delinquent on the first day of the second calendar month following the collection/reporting month; and on the thirty-first day after the end of any alternate collection/reporting period.
(Ord. No. 67104, 5-12-88; Ord. No. 101393, § 2, 9-15-05)

Sec. 31-70. Reports.

(a) Every person required to collect the tax by section 31-69 shall file a report with the city finance director or his designated representative showing the consideration paid for all rooms or sleeping space occupancies in the preceding calendar month, the amount of tax collected on such occupancies, and any other useful and relevant information as the city finance director may require.

(b) Timely reports must be submitted so as to arrive at the office of the city tax collector by the twentieth day of the month following the calendar month collection/reporting period or by the twentieth day after the end of any alternate collection/reporting period approved by or imposed by the city finance director.

(c) Reports shall include gross sleeping-room revenues, gross exempt sleeping room revenues, city occupancy tax collected, and net occupancy tax due the city. It shall also include the signature of the hotel's local manager or person in control of business operations at the reporting hotel, who shall sign a statement that the report is accurate to the best of his/her knowledge and belief.

(d) The report and the tax remittance shall be for the calendar month or other collection/reporting period requested by a hotel business manager or operator and approved by the director of finance. For such alternate collection/reporting periods, delinquency shall occur on the thirty-first day after the end of the alternate reporting period, and the office of internal audit shall audit and provide report/remittance pick-up service if so directed by the finance director.

(e) The finance director shall impose a daily or weekly collection/reporting period, and shall provide for daily or weekly pick-up of reports and tax collections, whenever he has reason to believe that the tax revenues will not be remitted in the normal course of business, such as an impending bankruptcy or business closing, or the maintenance of unauditable records.
(Ord. No. 67104, 5-12-88)

Sec. 31-71. Availability of records.

Each person required to collect the tax must make records available for inspection by the city finance director or his designated representative, at the hotel where the tax is collected.
(Ord. No. 67104, 5-12-88)

Sec. 31-72. Rules and regulations.

The city finance director is authorized to issue rules and regulations necessary to effectuate the full intent and purpose of this article concerning the information required on reports, the collection reporting periods, audits, the retention of records at the hotel, the forcible seizure of records for auditing purposes, the imposition of a daily or weekly collection/reporting period, the referral of delinquent reports and/or collections to the legal department for purpose of enjoining continued operation of a hotel, the filing of criminal complaints for violations of this article, and the acceptance of a surety bond in lieu of enjoining a hotel from doing business.
(Ord. No. 67104, 5-12-88)

Sec. 31-73. Violations.

(a) *Reserved.*

(b) *Date of first penalty.* In addition, he shall pay five (5) percent of the unremitted delinquent tax as a late penalty if the report is not submitted or the tax is not remitted by the last day of the calendar month in which they are due; provided that the penalty shall never be less than five dollars ($5.00).

(c) *Monthly penalty.* After the first calendar month of delinquency, he shall pay an additional five (5) percent of the unremitted tax on the first day of each delinquent month; provided that the penalty shall never be less than five dollars ($5.00).

(d) *Interest on delinquent balance.* Delinquent taxes shall accrue interest on the first day of each month at the annual rate of ten (10) percent per annum.
(Ord. No. 67104, 5-12-88; Ord. No. 101393, § 2, 9-15-05)

Sec. 31-74. Suit to enjoin hotel operations.

The finance director shall refer any hotel occupancy tax account that has a delinquent balance older than sixty (60) days to the city attorney for the purpose of filing a suit to enjoin the hotel owner, operator, manager, and other persons in control from operating any hotel in the City of San Antonio until the tax is paid and/or the report filed. This remedy shall be in addition to the remedy of a collection suit and in addition to the municipal court criminal complaint that may be filed for each violation of this article.
(Ord. No. 67104, 5-12-88)

Sec. 31-75. Surety bond in lieu of injunction suit.

The finance director shall not refer a delinquent account to the city attorney for the purpose of enjoining the hotel operators from doing business in San Antonio if the owner, manager, operator, or other persons in control provides an acceptable surety bond in an amount equal to the city hotel occupancy tax collected by the subject hotel in the six (6) best net revenue months of the twelve (12) full calendar months immediately prior to the acquisition of the bond, said bond to ensure payment for a one-year period, and be updated and approved by the finance director annually if said hotel operators desire to continue such protection from business-closing during a period of delinquency.
(Ord. No. 67104, 5-12-88)

Sec. 31-76. Fine upon conviction.

A violation of any of the requirements of this article shall constitute a Class "C" misdemeanor crime, and upon conviction, shall be punished by a fine of not less than fifty dollars ($50.00) nor more than five hundred dollars ($500.00).

The auditor or the city tax collector shall mail a delinquency notice to the hotel manager, operator, or person in control, and in said notice, shall give a date certain for the filing of criminal complaint for failure to report or remit collected tax revenues, or for failure to do any other specified act required by this article.
(Ord. No. 67104, 5-12-88)

Sec. 31-77. Tampering with government records.

The auditor of hotel tax records which are created and maintained at the hotel business shall report any evidence of false entry in or false alteration of said records to the finance director, who shall make the determination of whether or not to file a criminal charge against the person in control of said records pursuant to Texas Penal Code, Section 37.10, entitled "Tampering With Government Records," after consultation and advise of the city attorney.
(Ord. No. 67104, 5-12-88)

Secs. 31-78—31-85. Reserved.

ARTICLE V. RESIDENCE HOMESTEAD EXEMPTION FOR THE ELDERLY*

Sec. 31-86. Exemption granted.

Upon compliance with all requirements of this article and all other applicable laws and resolutions, eighty-five thousand dollars ($85,000.00) of the assessed value of residence homestead of persons sixty-five (65) years of age or older shall be exempt from ad valorem taxes levied by the city.
(Code 1959, § 14-58: Ord. No. 42679, § 1(1), 8-23-73; Ord. No. 44159, 8-1-74; Ord. No. 58152, § 1, 1-19-84; Ord. No. 62252, § 1, 1-30-86; Ord. No. 97234, § 2, 2-20-03; Ord. No. 2022-06-16-0433, § 5, 6-16-22)

Sec. 31-87. Effective date.

The exemption granted by this article shall be effective as to such residence homesteads as may qualify hereunder commencing with the 2022 tax year.
(Code 1959, § 14-59; Ord. No. 42679, § 1(2), 8-23-73; Ord. No. 44159, 8-1-74; Ord. No. 58152,

*__State law reference—__Residence homestead exemption, V.T.C.A. Tax Code, 11.13.

§ 2, 1-19-84; Ord. No. 62252, § 2, 1-30-86; Ord. No. 97234, § 3, 2-20-03; Ord. No. 2022-06-16-0433, § 6, 6-16-22)

Sec. 31-88. Limitations of exemption.

The exemption authorized hereby shall extend only to a residential homestead as same may be defined by the laws of the state. Such exemptions shall be allowed only if the property in question is in fact a residential homestead of the applicant and such person has attained the age of sixty-five (65) during the tax year.
(Code 1959, § 14-62: Ord. No. 42679, § 1(5), 8-23-73; Ord. No. 44159, 8-1-74; Ord. No. 97234, § 4, 2-20-03)

Sec. 31-89. Determinative date for exemption.

The exemption for an individual sixty-five (65) years of age or older is effective as of January 1 of the tax year in which such person qualifies for the exemption (attains the age of sixty-five (65) and applies to the entire tax year.
(Code 1959, § 14-63; Ord. No. 42679, § 1, 8-23-73; Ord. No. 4415, 8-1-74; Ord. No. 97234, § 5, 2-20-03)

Secs. 31-90—31-115. Reserved.

ARTICLE VI. RESERVED*

Secs. 31-116—31-199. Reserved.

ARTICLE VII. RESIDENCE HOMESTEAD EXEMPTION FOR THE DISABLED

Sec. 31-200. Definitions.

As used in this section, the term "disabled" means under a disability for purposes of receiving disability insurance benefits under the Federal Old Age, Survivors and Disability Insurance Act administered by the Social Security Administration, and shall include all conditions required for eligibility under said Act.
(Ord. No. 100324, § 2, 1-20-05)

Sec. 31-201. Exemption granted.

Upon compliance with all requirements of this article and all other applicable laws and resolutions, eighty-five thousand dollars ($85,000.00) of the assessed value of the residence homestead of a disabled individual shall be exempt from ad valorem taxes levied by the city.
(Ord. No. 100324, § 2, 1-20-05; Ord. No. 2022-06-16-0433, § 8, 6-16-22)

Sec. 31-202. Effective date.

The exemption granted by this article shall be effective as to such residence homesteads as may qualify hereunder commencing with the 2022 tax year.
(Ord. No. 100324, § 2, 1-20-05; Ord. No. 2022-06-16-0433, § 9, 6-16-22)

Sec. 31-203. Limitations of exemption.

The exemption authorized hereby shall extend only to a residence homestead as same may be defined by the laws of the state. Such exemption shall be allowed only if the property in question is in fact a residence homestead of the applicant and such person meets the definition of disabled during the tax year.
(Ord. No. 100324, § 2, 1-20-05)

Sec. 31-204. Determinative date for exemption.

The exemption for an individual who is disabled is effective as of January 1 of the tax year in which such person qualifies for the exemption (meets the definition of "disabled") and applies to the entire tax year.
(Ord. No. 100324, § 2, 1-20-05)

Sec. 31-205. Exemption granted.

Upon compliance with all requirements of this article and all other applicable laws and resolutions of the state and the city, the residence homestead of an individual shall be exempt from

*__Editor's note—__The former article VI, divisions 1—4, which pertained to tax increment financing (TIF) and reinvestment zones and derived from Ord. No. 88196, § 1, adopted July 30, 1998, was not intended for codification and has been removed at the direction of the city.

ad valorem taxes levied by the city in the amount equal to ten (10) percent of the appraised value of the residence homestead or the statutorily mandated minimum of five thousand dollars ($5,000.00).
(Ord. No. 2022-06-16-0433, § 2, 6-16-22)

Sec. 31-206. Effective date.

The exemption granted by this article shall extend only to such residence homesteads as may qualify hereunder commencing with the 2022 tax year, which began January 1, 2022.
(Ord. No. 2022-06-16-0433, § 3, 6-16-22)

Secs. 31-207—31-219. Reserved.

ARTICLE VIII. GENERAL RESIDENCE HOMESTEAD EXEMPTION*

Sec. 31-220. Exemption granted.

Upon compliance with all requirements of this article and all other applicable laws and resolutions of the state and the city, the residence homestead of an individual shall be exempt from ad valorem taxes levied by the city in the amount equal to 0.01 percent of the appraised value of the residence homestead or the statutorily mandated minimum of five thousand dollars ($5,000.00).
(Ord. No. 2019-06-24-0584, § 2, 6-24-19)

Sec. 31-221. Effective date.

The exemption granted by this article shall extend only to such residence homesteads as may qualify hereunder commencing with the 2019 tax year, which began January 1, 2019.
(Ord. No. 2019-06-24-0584, § 2, 6-24-19)

Sec. 31-222. Limitations of exemption.

The exemption authorized by this article shall extend only to a residence homestead as the same may be defined by the laws of the State of Texas and the city.
(Ord. No. 2019-06-24-0584, § 2, 6-24-19)

Sec. 31-223. Determination date for exemption.

The exemption for an individual granted by this article is effective as of January 1 of the tax year in which the individual qualifies for it and applies to the entire tax year.
(Ord. No. 2019-06-24-0584, § 2, 6-24-19)

*__Editor's note—__Ord. No. 2019-06-24-0584, § 2, adopted June 24, 2019, added new §§ 31-205—31-208 to the Code; however, said provisions have been redesignated as §§ 31-220—31-223, at the discretion of the editor, for purposes of maintaining Code format.

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Chapter 32

TOURIST AND TRADE CENTER AREAS*

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ARTICLE I. IN GENERAL

Sec. 32-1. Rental rates for convention facilities; policies.

(a) The rental rates for the Convention Facilities, including the Convention Center Arena, the Lila Cockrell Theatre, the Municipal Auditorium, the Beethoven Hall, the South and North Exhibit Halls, the North Banquet Hall, the Gallery, the South Banquet Hall, the Meeting Rooms, and the International Conference Center shall be as set out in Attachment I to Ordinance No. 80783, as amended, which was approved and adopted, and which is incorporated herein by reference.

(b) The Rental Policies of the San Antonio Convention Center, the Services of the San Antonio Convention Center and the Municipal Auditorium Rental Policies, (Attachments II, III and IV) are approved and adopted and incorporated herein by reference.

(c) Reserved.

(d) Registration fees.

Cashiers/credit cards, per hour	$14.00
Data entry—onsite, per hour	14.00
Exhibitor, per hour	14.00
Room monitors, per hour	13.00
Pre-registration, per hour	13.00
Message/info booth, per hour	13.00
Office clerks, per hour	13.00
Stuff bags, per hour	13.00
Working/non-working supervision, per hour	13.00

(Ord. No. 78727, §§ 1, 2, 9-15-93; Ord. No. 80783, §§ 1, 2, 9-14-94; Ord. No. 82812, 9-14-95; Ord. No. 2013-09-12-0631, § 2(Att. N), 9-12-13)

Editor's note—Ord. No. 78727, adopted Sept. 15, 1993, as amended by Ord. No. 80783, adopted Sept. 14, 1994, has been codified herein at the discretion of the editor as § 32-1. Attachments I—IV referenced above are on file and available for inspection in the offices of the city.

Sec. 32-2. Rates and fees for the Alamodome.

The rates and fees for the Alamodome shall be as set out in Attachment I to Ordinance No. 78728 which attachment is incorporated herein by reference.

The five dollar ($5.00) parking fee for the Alamodome as set out in attachment I to Ordinance No. 78728 is hereby increased to twenty dollars ($20.00). All other rates and fees for the use of the Alamodome shall remain in full force and effect.

The renewal and improvement facility fee is established in the amount of four dollars ($4.00) per ticket sold for events at the Alamodome.

The following fees are hereby established:

Convention Center executive board room rental, per day	$500.00
Lila Cockrell Theatre and Municipal Auditorium scaffolding rental per event	50.00
Lila Cockrell Theatre and Municipal Auditorium banner drop fee, per drop	50.00
Lila Cockrell Theatre and Municipal Auditorium lighting tree rental per day	15.00
Truss rental, per stick	25.00
per corner block	10.00
Municipal Auditorium caterer's application fee(renewable every three (3) years)	300.00
Risers: From $10.00 per day to $20.00 per day	
Tables: From $5.00 per day to $10.00 per day	
Dance floor: From $3.50 per piece to $5.00 per piece	
Chairs: From $.60 per chair to $1.20 per chair	
Audio visual service fee—Daily rate:	
Audio monitor operator	250.00
Audio technical director	300.00
Audio visual service fee—Hourly rate:	
AV Technical setup, with a one-hour minimum	35.00

House audio operation, with a one-hour minimum	35.00
House rigger supervisor, with a one-hour minimum	68.00
House rigger setup, with a four-hour minimum	40.00
House rigger setup/show, with a four-hour minimum	40.00
House lights operator, with a four-hour minimum	40.00
Audio/visual overtime rate: From $25.00 per hour to $30.00 per hour	
Maximum special event parking rate for events with over ten thousand (10,000) attendees	60.00
The director of convention and sports facilities is authorized to determine the parking rate for such special events in an amount up to the maximum special event parking rate.	
Ticket service charge fee	$2.00
Extra labor services fee—Daily rate:	
Audio production	200.00
Repair/maintenance of client equipment (does not include parts)	100.00

(Ord. No. 78728, § 1, 9-15-93; Ord. No. 98192, § 1, 9-18-03; Ord. No. 99744, §§ 1—4, 9-16-04; Ord. No. 101392, § 2, 9-15-05; Ord. No. 2006-09-07-0998, §§ 1, 2, 9-7-06; Ord. No. 2013-09-12-0631, § 2(Att. M), 9-12-13; Ord. No. 2014-09-18-0694, § 2(Att. K), 9-18-14; Ord. No. 2015-09-10-0758, § 2(Att. H), 9-10-15; Ord. No. 2017-09-14-0656, § 2(Att. A), 9-14-17; Ord. No. 2024-09-19-0705, § 2(Att. H), 9-19-24)

Editor's note—Ord. No. 78728, adopted Sept. 15, 1993, has been codified herein at the discretion of the editor as § 32-2. Attachment I referenced above is on file and available for inspection in the offices of the city.

Sec. 32-3. Parks department lease agreement name changes or assignment application fees.

Applications to the department of parks and recreation for name changes, name additions or assignments for any lease or license agreement administered by said department shall require payment of the following application fee:

Name change or addition application fee	$ 300.00
Assignment application fee	1,500.00

The application fee shall be due and payable upon receipt of the application for name changes, name additions, or assignments. Fees are not refundable and will be retained by the city if the name change, name addition, or assignment is approved or not.

(Ord. No. 86609, § 9, 9-11-97; Ord. No. 2006-09-07-1010, § 6, 9-7-06)

Sec. 32-4. Carver Community Cultural Center fees.

Preservation fee that supports the maintenance of the Carver Community Cultural Center is $2.00 per ticket.

Description	Charge
License (in Accordance with Business Classifications Below)	

Description	Charge
Class I—Non-Profit Organization ("Non-profit organization" is defined as an organization that is not intending to make a financial or monetary gain from the use of capital in a transaction or series of transactions. Examples: Includes IRS 501(c)3 organization, social, civic, neighborhood association, government- or church-sponsored events.)	Jo Long—$250.00 for the first four hours, $100.00 for subsequent four hours

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Description	Charge
Class II—Non-Profit Organization that is charging for admission, collecting donations, or conducting other fundraising as part of the event.	Jo Long—$400.00 for the first four hours, $200.00 for subsequent four hours Little Carver—$250.00 for the first four hours, $100.00 for subsequent four hours
Class III—Profit-Making Organization or Individual ("Profit organization" is defined as benefiting, advancing, making a financial or monetary gain from the use of capital in a transaction or series of transaction.)	Jo Long—$500.00 for the first four hours, $200.00 for subsequent four hours Little Carver—$300.00 for the first four hours, $100.00 for subsequent four hours
Class IV—City of San Antonio Departments Sponsored Events Monday through Friday—7:45 a.m. to 4:30 p.m. excluding holidays (requires the signature of the director of the city department.)	No Charge
License Fee for Holdover or Late Booking	
Fee for events beyond 12:00 midnight (must be approved by the director of managing city department for Carver or representative.)	$50.00 per half hour
Fee for events vacating venue after their contract agreement time frame (1—60 minutes and every hour there after)	$150.00
Rehearsal	
First rehearsal day Monday—Friday during the hours of 7:45 a.m. to 4:30 p.m.	No charge
One rehearsal after 4:30 p.m. Monday—Friday or anytime on a weekend day	$150.00 per four-hour period
Additional rehearsals	License rates will apply for any additional rehearsal dates.
Security Deposit	
For use of the Jo Long Theatre or the Little Carver Civic Center	$200.00
Box Office	
Fee for staffing the box office	$50.00 per performance
Security Personnel	
Required—Necessary level determined by Carver staff	Varies Fees payable to security officers
Technical Fees (All technical fees are subject to change in accordance with the International Alliance Theatrical State Employee regulations.)	
Weekday (Monday—Friday, 7:45 a.m. to 4:30 p.m.)	1st Carver technician—No charge
	Additional technicians—$30.00 per hour up to eight hours, with a minimum charge for four hours
Weekends and holidays	$30.00 per hour up to eight hours, with a minimum charge for four hours
Weekdays, weekends and holidays—After eight hours on the same day	After eight hours on the same day and up to 12 hours—$26.00 per hour After 12 hours on the same day—$35.00 per hour Between the hours of midnight and 6:00 a.m.—$35.00 per hour

Description	Charge
Equipment (Non-Technical)	
Marley dance floor	$75.00 per day—Off-premises rental $75.00 per event—Use at Carver
Drum kit	$100.00 per day
Risers	$10.00 each per day
Piano (9 ft. K. Kawai) (available only at the Jo Long Theatre)	$125.00 per day
Upright piano	$75.00 per day
Tables (eight feet long, six feet long, eight feet round)	$0.00—Up to three tables; $10.00 each—Exceeding three $10.00 each—If used to sell concessions or novelties
LCD Projector	$125.00 per event—Large $75.00 per event—Small
Microphones	$10.00 per day
Follow spot	$50.00 each per day
Carver equipment rental fee	For the 2020 fiscal year, $25.00
Custodial/Clean up	
Jo Long Theatre	$150.00—Dressing rooms $100.00—No dressing rooms
Little Carver Civic Center	$100.00—Dressing rooms $50.00—No dressing rooms
If licensee will serve food concessions	Additional $150.00
Insurance	
Tenant user liability insurance	Insurance purchased from the City of San Antonio is $100.00 for 1—650 people. This insurance premium is subject to change at the discretion of the city's risk manager.
Ticket Prices	
Little Carver Civic Center ticket prices	$90/Season
	$25/Individual
Jo Long Theater Ticket Prices	For the 2019 fiscal year, $325.00/Season. For the 2020 fiscal year, $350.00/Season.
Go Rio San Antonio Ticket Prices	
River Barge Ticket Prices	
Adult	$14.50
Child	$8.50
Military	$11.50
Resident	$12.50
Senior	$11.50
Shuttle All Day	$20.50
Shuttle Three (3) Day	$29.50
Charter Peak Time (General Public)	$220.00
Charter Non-Peak Time (General Public)	$170.00
Charter Peak Time (Schools, Senior, Non-Profit)	$170.00
Charter Non-Park Time (Schools, Senior, Non-Profit)	$120.00

Description	Charge
Playbill Advertising	
Two-page spread	$3,000
Inside front or back cover	$2,000
Outside back cover	$2,500
Full page	$1,500
Half page	$1,000
Last-Minute Change Fee	$50
Lease/Rental Charges: Jo Long Theater/Little Carver Civic Center	
For profit and non-profit (charging admission)	For the 2019 fiscal year, $200.00 for the initial four-hour block, $100.00 for subsequent four-hour blocks. For the 2020 fiscal year, $250.00 for the initial four-hour block, $150.00 for subsequent four-hour blocks.
Non-profit (not charging admission)	For the 2019 fiscal year, $100.00 for the initial four-hour block, $50.00 for subsequent four-hour blocks. For the 2020 fiscal year, $150.00 for the initial four-hour block, $100.00 for subsequent four-hour blocks.

(Ord. No. 2013-09-12-0631, § 2(Att. B), 9-12-13; Ord. No. 2015-09-10-0758, § 2(Att. C), 9-10-15; Ord. No. 2018-09-13-0713, § 1(Att. A.1, A.2, E.1), 9-13-18; Ord. No. 2019-09-12-0694A, § 1(Atts. C, I), 9-12-19; Ord. No. 2022-09-15-0678, § 2(Att. A, B, G), 9-15-22)

Sec. 32-5. Mission marquee plaza rental.

Fiscal year 2016 rates:

Mission marquee plaza rental (new fee) major special event use: Two thousand dollars ($2,000.00) per day.

Commercial use: Five hundred dollars ($500.00) for first three (3) hours and one hundred dollars ($100.00) for each additional hour.

Non-commercial use: Two hundred fifty dollars ($250.00) for first hour and fifty dollars ($50.00) for each additional hour.

(Ord. No. 2015-09-10-0758, § 2(Att. A), 9-10-15)

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Sec. 32-6. Plaza de Armas Fees.

Fiscal year 2016 rates:

Storefront gallery and exhibit hall rental:

Private event: One thousand dollars ($1,000.00) per day plus [a] two hundred fifty dollar ($250.00) non-refundable deposit.

Public event: Five hundred dollars ($500.00) per day.

(Ord. No. 2015-09-10-0758, § 2(Att. L), 9-10-15)

Editor's note—Ord. No. 2015-09-10-0758, § 2(Att. L), adopted September 10, 2015, enacted provisions intended for use as section 32-5. Inasmuch as there are already provisions so designated, and at the discretion of the editor, said provisions have been redesignated as section 32-6.

Secs. 32-7—32-15. Reserved.

ARTICLE II. MARKET SQUARE (TOURIST TRADE CENTER NO. 1)

DIVISION 1. GENERALLY

Sec. 32-16. Definitions.

For the purpose of this chapter, the following words and phrases shall be defined as follows:

Centro de Artes del Mercado is all of that property owned by the city bounded on the north by West Commerce Street, on the west by an alley running north and south, on the south by Produce Row and bounded on the east by Santa Rosa Street.

Director is the director of the parks and recreation department or his authorized representative.

El Mercado is all of that property owned by the city housing specialty shops bounded on the north by West Commerce Street, on the east by an alley running north and south between Produce Row and West Commerce Street, on the south by Produce Row, and bounded on the west by San Saba Street.

Farmer is any person who sells or offers for sale farm products actually raised, grown or produced by him on land owned or leased by him, or some member of his immediate family.

Farmers Market Plaza is all of that property owned by the city bounded on the north by West Commerce Street, on the east by San Saba Street, on the south by Dolorosa Street, and on the west by the expressway east boundary line. All references in this Code or in Chapter 32 previously referring to the "Farmers Market" are changed to read the "Farmers Market Plaza."

Fiesta Room is the air conditioned, separate area on the west end of the El Mercado building to be utilized as designated by the director or manager.

Load is that amount of produce which is contained in one (1) vehicle at the time it enters the Farmers Market.

Mall areas are all city-owned properties within Market Square not specially referred to as the Farmers Market, El Mercado or Centro de Artes del Mercado referred to as Mariachi Mall, Madero Mall and Hidalgo Mall.

Manager is the Market Square Manager or his authorized representative.

Market Square is that area of the city bounded on the north by West Commerce Street, on the west by the expressway east boundary line, on the south by Dolorosa Street, and on the east by Santa Rosa Street.

Permanent stall is a separately identified area on the inside of the Farmers Market building which is available for annual lease from the city.

Produce merchant is any person who sells or offers for sale any farm products which were not raised, grown or produced by him on land owned or leased by him or some member of his immediately family.

Shop is a designated leased premises in the El Mercado which is used solely for the business to be conducted by the tenant, as provided in Article I of Attachment 1, a copy of which is on file and available for public inspection in the office of the city clerk.

Stall is any marked or unmarked area, part or portion of the Farmers Market which may be designated by the director as places to be used on a daily basis for parking, standing or stopping any vehicle for the purpose of selling, offering or exposing for sale, delivering, transferring, loading, unloading or displaying of produce or other merchandise.

Vehicle is every device in or upon, or by which any person or property is or may be transported or drawn upon a highway, including devices moved by human power.
(Code 1959, § 21-1; Ord. No. 50570, § 2, 3-29-79; Ord. No. 66913, § 1, 4-7-88; Ord. No. 79223, § 1, 11-23-93; Ord. No. 84164, § 1, 5-23-96)

Sec. 32-17. Designation of Market Square as tourist trade center.

Market Square, having met the legal definition for designation, as a tourist trade center, is hereby officially designated and recognized as tourist trade center No. 1.
(Code 1959, § 21-1.1; Ord. No. 51602, § 1, 12-13-79)

Sec. 32-18. Parks and recreation department; director, duties.

(a) The parks and recreation department shall be responsible for administering the policies, plans and actions required for effective operation of all activities in the Market Square complex.

(b) The Director of the Parks and Recreation Department shall have general supervision over the city owned part of Market Square. The director, the Market Square Manager and their employees are hereby vested with all power necessary to require compliance with this chapter, the rules and regulations promulgated hereunder, and the orderly regulation of traffic and parking on Market Square and on all streets, thoroughfares, malls and on all other public property; and it shall be the duty of the director, the Market Square Manager and their employees to enforce strict compliance with all provisions of this chapter affecting and regulating business in Market Square.
(Code 1959, § 21-2; Ord. No. 50570, § 2, 3-29-79; Ord. No. 84164, § 2, 5-23-96)

Sec. 32-19. Contracts for leased space.

(a) The city manager or his designated representative is hereby authorized to enter into contracts not to exceed a term of six (6) years for designated city-owned property at Market Square, except as noted in (3) and (4) below.

(1) Three (3) days for special activities in the plaza areas or the Centro de Artes del Mercado, or as directed by the city manager.

(2) On a daily basis for temporary vending in the plaza areas.

(3) Four-year leases for all tenants in the 1993 completed renovation of the Farmers Market Plaza leasing in-line shop, specialty truck, or food court space.

(4) For all tenants licensing kiosks and push carts in the Farmers Market Plaza the license term will not exceed a one-year period.

(b) Copies of leases for purposes authorized in this chapter are attached hereto as Attachments 1-4, which are incorporated herein by reference.

(c) The following rental rate schedule for El Mercado, the Farmers Market Plaza, and Other Designated Areas in the Market Square complex is established as follows:

El Mercado:

Retail Space	$1.00 psf per month, First Year
	$1.15 psf per month, Second Year
	$1.25 psf per month, Third Year
	$1.25 psf per month plus CPI, Fourth, Fifth and Sixth Year
Retail Space in Common Area	$1.35 psf per month, with $0.05 annual increments
Garbage Assessment Fee:	$0.015 psf per month
Utilities (Water, Gas, and Electricity)	To be pro-rated among tenants
Extra Display Space	$0.30 psf per month

Common Area Encroachment Fee	$250.00 daily
Late Payment Penalties	$20.00 late charge on payments not made by 11th day when due
	Ten percent (10%) per annum interest penalty on payments not made within 30 days
Farmers Market Plaza:	
In-Line Stores and Food Court	$1.35 psf per month, Year 1
	$1.35 psf per month, Year 2
	$1.35 psf per month, Year 3
	$1.38 psf per month, Year 4
	$1.40 psf per month, Year 5
	$1.41 psf per month, Year 6
	$1.42 psf per month, Year 7
	$1.45 psf per month, Year 8
Garbage Assessment Fee	$0.025 psf per month
Utilities (In-Line Stores) (water, gas, electricity)	To be pro-rated among tenants, based upon square footage leased, of 50% of the total utilities services provided by the city to the leased premises
Utilities (Food Court)	Tenants shall be metered and billed for water separately
Kiosks	$300 per month
Garbage/Utilities	$25.00 per month
Push Carts	$250 per month
Garbage/Utilities	$15.00 per month
Late Payment Penalties	$20.00 late charge on payments not made by 11th day when due
	Ten percent (10%) per annum interest penalty on payments not made within 30 days
Common Area Encroachment Fee	$250.00 daily
Storage Space Fees	$0.25 psf, per month
Outdoor Display Space for Private Sector:	
Merchandise Display Space Designated in Plaza Areas	$0.40 psf per month, First Year
	$0.45 psf per month, Second Year
	$0.50 psf per month, Third Year
	$0.50 psf per month, plus CPI, Fourth, Fifth and Sixth Year
Late Payment Penalties	$20.00 late charge on payments not made on 11th day when due
	Ten percent (10%) per annum interest penalty on payments not made within 30 days
Private Sector Garbage Assessment and Common Area Maintenance Fee	$0.06 psf per month
Common Area Encroachment Fee	$250.00 Daily
Outdoor Sidewalk Space for Dining Used by Restaurants:	
	$0.40 psf per month, First Year
	$0.45 psf per month, Second Year
	$0.50 psf per month, Third Year
	$0.50 psf per month, plus CPI, Fourth, Fifth and Sixth Years
Late Payment Penalties	$20.00 late charge on payments not made by 11th day when due
	Ten percent (10%) per annum interest penalty on payments not made within 30 days
Restaurant on city-owned property:	
Restaurant Interior	$1.25 psf per month, or 6% of gross receipts, whichever is greater, First, Second and Third Year

	$1.25 psf per month, plus CPI, or 6% of gross receipts, whichever is greater, Fourth, Fifth and Sixth Year
Outdoor Sidewalk Space	$0.40 psf per month, First Year
	$0.45 psf per month, Second Year
	$0.50 psf per month, Third Year
	$0.50 psf per month, plus CPI, Fourth, Fifth and Sixth Year
Utilities (Water, Gas, and Electricity)	Reimbursement from applicable meters
Late Payment Penalties	$20.00 late charge on payments not made on 11th day when due
	Ten percent (10%) per annum interest penalty on payments not made within 30 days

(Code 1959, § 21-3; Ord. No. 50570, § 2, 3-29-79; Ord. No. 70253, § 1, 9-14-89; Ord. No. 74293, §§ 1—4, 9-12-91; Ord. No. 78722, §§ 1, 2, 9-15-93; Ord. No. 79223, §§ 2—4, 11-23-93; Ord. No. 94566, §§ 1, 2, 9-20-01)

Sec. 32-20. Initial and future rates.

Initially, all contracts executed under authority of this chapter shall be at rates to phase in the established fair market rate over a three year period. Future adjustment of the lease rates will be annually in accordance with the consumer price index (CPI) after market rates have been reached. A market analysis will be conducted every five (5) years to determine additional future rates.
(Code 1959, § 21-4; Ord. No. 50570, § 2, 3-29-79; Ord. No. 74293, § 5, 9-12-91)

Sec. 32-21. Fee collections.

The director is hereby authorized to collect fees, daily or monthly, for all space rented in the Market Square complex. It shall also be the duty of the director to collect fees for the delivery of produce to the Farmers Market, as shown on Exhibits A—B [incorporated herein by reference].
(Code 1959, § 21-5; Ord. No. 50570, § 2, 3-29-79)

Sec. 32-22. Hours of operation.

(a) The director is authorized to establish the opening and closing hours of any and all operations within Market Square and Farmers Market Plaza.

(b) Failure of tenants and lessees to maintain stated minimum operating hours shall result in the following penalties:

First offense	Written warning
Second offense	Twenty-five dollar ($25.00) fine
Third offense	Fifty dollar ($50.00) fine
Fourth offense	Five hundred dollar ($500.00) fine
Fifth offense	Default declared and cause for termination of lease and/or license established

(Code 1959, § 21-6; Ord. No. 50570, § 2, 3-29-79; Ord. No. 94566, § 3, 9-20-01)

Sec. 32-23. Right reserved to refuse rentals.

(a) The director shall have the right to refuse to rent any area of the Market Square complex to any person guilty of willful violations of the rules and regulations promulgated under this division.

(b) No tenant may own or operate more than two (2) stores within the Market Square complex, to include any combination of pushcarts, kiosks, in-line stores, food court stalls and specialty trucks. Kiosks in their entirety constitute two (2) individual retail stores.
(Code 1959, § 21-7; Ord. No. 50570, § 2, 3-29-79; Ord. No. 94566, § 4, 9-20-01)

Sec. 32-24. Special activities—Authority to develop rules.

The director is specifically authorized to develop, implement and enforce all necessary and proper rules for the conduct of special activities in Market Square.
(Code 1959, § 21-8; Ord. No. 50570, § 2, 3-29-79)

Sec. 32-25. Same—Prohibited on holidays.

There will be no scheduling of special events on the following holidays:

(1) Thanksgiving Day;

(2) Christmas Eve;

(3) Christmas Day;

(4) New Year's Eve; and

(5) New Year's Day.
(Code 1959, § 21-9; Ord. No. 50570, § 2, 3-29-79)

Sec. 32-26. Same—Duration.

All special activities not designated by the department shall not exceed three (3) days in length, unless approved by the city manager.
(Code 1959, § 21-10; Ord. No. 50570, § 2, 3-29-79)

Sec. 32-27. Same—Availability of facilities; priorities.

Facilities will be provided upon request to eligible sponsors as the schedule allows. Priority will be given to nonprofit organizations, groups or individuals.
(Code 1959, § 21-11; Ord. No. 50570, § 2, 3-29-79)

Sec. 32-28. Same—Rental rate schedule for facilities and special events.

The following rental rate schedule for Market Square facilities and events is hereby established:

(1) *Plaza areas:* Mariachi Plaza, one thousand dollars ($1,000.00) per day. Other plaza areas, four hundred dollars ($400.00) per plaza per day.

Use of all Market Square Plazas, including San Saba Street and Santa Rosa Street, by commercial agencies/organizations, six thousand eight hundred dollars ($6,800.00) per day.

Use of all Market Square Plazas, including San Saba Street, by non-profit agencies/organizations, two thousand six hundred dollars ($2,600.00) per day.

Use of all Market Square Plazas, including San Saba Street, by Market Square tenant-led organizations, two thousand six hundred dollars ($2,600.00) per day.

Rental of any plaza area will not include usage of city-owned equipment, such as tables and chairs. Lessee will provide at their own expense any equipment necessary in conjunction with rental of the plaza areas. A garbage container fee, per event, of two hundred dollars ($200.00) shall be paid by the lessee for using the plazas for any event.

The director of center city development and operations has the authority to waive or reduce plaza rental fees as a co-sponsorship for public events.

(2) *Closing of San Saba Street:* Daily rental, eight hundred dollars ($800.00).

a. Lessee must rent the necessary barricades required for San Saba Street closure from the Market Square Activity in the department of parks and recreation.

b. Barricade rental: Eighty dollars ($80.00) per event closure.

c. Garbage container fee, per event, of two hundred dollars ($200.00) per event will be paid by lessee for using the plazas and/or San Saba Street for any event.

(3) *Temporary outdoor vending in plaza areas:* All fees are payable in advance. Rental rates will apply to non-food vendors, working artisans, artists and craftsmen:

a. Monthly, three hundred forty-five dollars, ($345.00).

b. Daily, twenty-five dollars ($25.00).

No selling of any type of clothing apparel will be permitted in the pedestrian plaza areas. Any type of clothing accessory or accessory item will generally not be permitted to be sold unless the clothing accessory or accessory item is hand crafted as per the definition of working artisans and craftsmen, and with the prior written approval of the Market Square manager.

Working artisans and craftsmen are defined as those persons who use raw and natural products and creatively handicraft individually every component and who demonstrate their craft on premises at all times.

There will be no non-festival related temporary food vending in the plaza areas of Market Square. Mobile or stationary raspa vendors will not be permitted in any area of Market Square complex except during special outdoor public events, and with the prior written approval of the Market Square manager.

(4) *Photographer and shoe shine fees:* All fees are to be collected in advance.

a. Only non-stationary photographers will be permitted to set up on a daily basis in the plaza areas of Market Square. Daily fee of six dollars and twenty-five cents ($6.25). Monthly rate of one hundred twenty-five dollars ($125.00).

b. Shoe shine persons will be permitted to set up on a daily basis in the plaza area of Market Square. Shoe shiners will be limited to areas designated by the director or Market Square manager. Equipment will be limited to one (1) chair only and no storage of equipment is provided. Daily fee of six dollars and twenty-five cents ($6.25). Monthly rate of one hundred twenty-five dollars ($125.00).

(5) *Registration of working artists, craftsmen, photographers and shoe shiners:* All working artists, craftsmen, photographers and shoe shiners will be authorized for temporary outdoor vending on a first-come/merchandise basis on the Tuesday of the second week of each January.

(Code 1959, § 21-11.1; Ord. No. 50570, 3-29-79; Ord. No. 54277, § 1, 9-17-81; Ord. No. 61334, § 1, Exh. B, 8-29-85; Ord. No. 70253, §§ 2—8, 9-14-89; Ord. No. 74293, §§ 6—9, 9-12-91; Ord. No. 78722, §§ 3—10, 9-15-93; Ord. No. 84164, § 3, 5-23-96; Ord. No. 84796, §§ 11—13, 9-19-96; Ord. No. 88494, § 2, 9-17-98; Ord. No. 94585, §§ 17, 18, 9-20-01; Ord. No. 2006-09-07-1010, § 7, 9-7-06; Ord. No. 2009-09-17-0731D, § 5, 9-17-09; Ord. No. 2019-09-12-0694A, § 1(Att. K), 9-12-19)

Sec. 32-29. Loading zones.

The director is hereby authorized to designate sections of the Market Square complex as loading zones, and to enforce all necessary and proper rules.

(Code 1959, § 21-12; Ord. No. 50570, § 2, 3-29-79)

Sec. 32-30. Possession of beverages in other than plastic or paper container.

(a) *Prohibited.* It shall be unlawful for any person to knowingly possess a beverage in the area of the Market Square complex unless such beverage is in a plastic or paper container. For purposes of this section, the contents of a container, other than paper or plastic, shall be presumed to be the beverage its label indicates.

(b) *Exceptions.* The provisions of this section shall not apply to restaurants or other establishments in the Market Square complex where beverages in bottles, cans or glasses are served in the regular course of business; however, possession of beverages in such containers shall be restricted to the immediate area of the establishment's leased premises.

(c) *Penalty.* Any person violating the terms of this section shall, upon conviction, be punished by a fine of not less than five dollars ($5.00) nor more than two hundred dollars ($200.00).

(Ord. No. 59685, § 1—3, 10-30-84)

Sec. 32-31. Restrictions governing sale of alcoholic beverages during special events.

(a) Off-premises sale of alcoholic beverages from public places during all celebrations and festivals co-sponsored by the city, sponsored by the Parks and Recreation Department, Market Square Division, or held pursuant to contractual authority at Market Square, shall be confined to public places leased for the festival or celebration.

(b) The intent of this policy is not to prohibit the off-premise sale of alcoholic beverages conducted in accordance with the law but to permit the sale of off-premises alcoholic beverages from public spaces only to those nonprofit organizations who have leased public areas for the festival or celebration.

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(c) All alcoholic beverage concessions erected for and during celebrations and festivals shall be restricted to one (1) alcoholic beverage concession per mall area; one alcoholic beverage stand on San Saba Street; and one alcoholic beverage concession inside the Farmers Market whenever that facility is leased for a festival or celebration. The size of each alcoholic concession is limited to no larger than a 16′ x 8′ stand placed in each mall area, the Farmers Market, and a stand no larger than 24′ x 8′ on San Saba Street whenever San Saba Street is entirely utilized.

(d) A sufficient number of licensed and bonded security personnel shall be provided prior to arid during the sale of all alcoholic beverages for all celebrations and festivals as determined by the chief of police taking into consideration the type of event and anticipated attendance. Costs of security shall be borne by the sponsoring organization, unless provided otherwise by written agreement.

(e) This section shall not impair any contractual rights or obligations to the extent and for the duration they are in effect.
(Ord. No. 66678, §§ 1—5, 2-25-88; Ord. No. 84164, § 4, 5-23-96)

Editor's note—Ord. No. 66678, adopted Feb. 25, 1988, did not specifically amend this Code; hence inclusion of §§ 1—5 as 32-31 was at the discretion of the editor.

Secs. 32-32—32-40. Reserved.

DIVISION 2. FARMERS MARKET

Sec. 32-41. "Day" defined.

The term "day," as used in this division, shall mean that period of time from the opening hour in the morning to the closing hour ill the evening of any calendar day, such opening and closing hours to be established from time to time by the director.
(Code 1959, § 21-28; Ord. No. 50570, § 2, 3-29-79)

Sec. 32-42. Entitlements upon payment of fee.

The fee paid for the daily rental of a stall shall entitle the farmer, produce merchant or person to the use of such assigned stalls between the opening and closing hours of the Farmers Market on the day for which the fee is paid, or until the load which he had on his vehicle at the time he rented such stall has been sold; however, in no event shall such farmer, produce merchant or person be entitled to use such stall longer than the day for which the fee was paid without the payment of an additional fee for each day. No produce or merchandise may be placed in the assigned stall in addition to that upon which a fee was originally paid without the payment of an additional fee.
(Code 1959, § 21-27; Ord. No. 50570, § 2, 3-29-79)

Sec. 32-43. Hiring of persons guilty of prior violations prohibited.

No farmer, produce merchant, or person shall hire as an agent or employee anyone who has been barred from the Farmers Market for violation of any provision of this chapter or any regulation promulgated by the director.
(Code 1959, § 21-29; Ord. No. 50570, § 2, 3-29-79)

Sec. 32-44. Produce, products required to be grown, produced by seller.

It shall be the duty of every person desiring to use the area designated for farmers to first furnish the director with satisfactory evidence that the produce or products to be sold by him in the area designated for farmers have been raised or grown or produced by him upon land or premises owned or leased by him or some member of his immediate family. The director may require a statement in writing signed by such person evidencing the above facts, and any false statement made therein shall be deemed a violation of this article, and the person making such false statement shall be guilty of a misdemeanor.
(Code 1959, § 21-30; Ord. No. 50570, § 2, 3-29-79)

Sec. 32-45. Hawking, etc., prohibited.

It shall be unlawful for any person to make an outcry or do any hawking or spieling, or to use loud or boisterous language for the purpose of drawing customers or attracting attention to the Farmers Market.
(Code 1959, § 21-31; Ord. No. 50570, § 2, 3-29-79)

Sec. 32-46. Litter, rubbish prohibited.

No person shall throw, place or permit to be thrown or placed on the Farmers Market, or any part thereof, or the public streets adjacent thereto, any rubbish, refuse or litter of any kind, or any vegetables or produce which are likely to become dangerous or offensive to the public.
(Code 1959, § 21-32; Ord. No. 50570, § 2, 3-29-79)

Sec. 32-47. Leaving personal items after hours prohibited.

No person shall enter, occupy, use or leave any produce, commodity, container, box, crate, basket, motor vehicle or other type of personal property of any description within the limits of the Farmers Market during such time as the market is closed, without the permission of the director.
(Code 1959, § 21-33; Ord. No. 50570, § 2, 3-29-79)

Sec. 32-48. Deceitful pricing; refusal to sell.

It shall be unlawful for any person occupying a stall in the Farmers Market to resort to any trick or scheme to ask prices which are unreasonable when compared to prices asked for similar products at that time, or to refuse to sell his merchandise for the purpose of holding a stall. Such action on the part of a person in holding a stall shall be sufficient cause for the director to forfeit all rights, including fees paid, to such stall by such person.
(Code 1959, § 21-34; Ord. No. 50570, § 2, 3-29-79)

Sec. 32-49. Parking.

(a) It shall be unlawful for any person to park, stop or stand a motor vehicle on any of the driveways in the Farmers Market in such a manner as to block or prevent the passing of other vehicles.

(b) The director is hereby authorized to designate certain areas on the ground level floor of the Farmers Market building, as defined in section 32-16, as customer parking only areas and to cause signs to be erected showing such designation. No person shall park a motor vehicle for a period of time in excess of one (1) hour during normal hours of operation.
(Code 1959, § 21-35; Ord. No. 50570, § 2, 3-29-79)

Sec. 32-50. Rules of operation for parking deck.

The director is hereby authorized to set rules of operation for the parking deck on the Farmers Market. Such rules of operation shall include the authority to close the parking deck during designated hours; enforce all other applicable sections of this chapter in regard to parking and traffic regulations; and to implement measures that assure easy flow of traffic and parking space turnover.
(Code 1959, § 21-35.1; Ord. No. 50570, § 2, 3-29-79)

Sec. 32-51. Vehicle speeds.

It shall be unlawful for any person to drive a motor vehicle in the Farmers Market at a speed of more than five (5) miles per hour.
(Code 1959, § 21-35.2; Ord. No. 50570, § 2, 3-29-79)

Sec. 32-52. Removal, notification of unattended merchandise.

Produce left unattended by the owner may be removed from the stall by the director, and all rights to such stall shall be forfeited. The city shall have the right to remove or dispose of such produce without liability. An owner must notify the market master of unattended produce.
(Code 1959, § 21-36; Ord. No. 50570, § 2, 3-29-79)

Sec. 32-53. Poultry, fish, etc., prohibited from sale.

It shall be unlawful for any person to sell or offer for sale any poultry, fish or livestock of any kind.
(Code 1959, § 21-37; Ord. No. 50570, § 2, 3-29-79)

Sec. 32-54. Director's authority to prohibit sale of foreign produce.

The director may prohibit the sale of any produce not grown in the continental United States.
(Code 1959, § 21-38; Ord. No. 50570, § 2, 3-29-79)

Sec. 32-55. Produce-related items.

Produce-related items may be sold only with the permission of the director.
(Code 1959, § 21-39; Ord. No. 50570, § 2, 3-29-79)

Sec. 32-56. Unauthorized sales personnel.

It shall be unlawful for any person other than farmers and produce merchants, or agents or employees of produce merchants to sell any produce whatsoever on any part of the Farmers Market.
(Code 1959, § 21-40; Ord. No. 50570, § 2, 3-29-79)

Sec. 32-57. Loitering.

It shall be unlawful for any person to loiter, linger or loaf on or about the Farmers Market.
(Code 1959, § 21-41; Ord. No. 50570, § 2, 3-29-79)

Sec. 32-58. Fixing prices.

It shall be unlawful for farmers, produce merchants or persons to agree among themselves to fix or raise prices, or to exert any influence, pressure, or persuasion on any other farmer, produce merchants or person to fix or raise prices of produce being sold or to be sold on the Farmers Market.
(Code 1959, § 21-42; Ord. No. 50570, § 2, 3-29-79)

Sec. 32-59. Animals prohibited.

It shall be unlawful for any owner, keeper or person having the custody or control of any dog, cat or other animal to cause or permit such animal to go into or upon the Farmers Market.
(Code 1959, § 21-43; Ord. No. 50570, § 2, 3-29-79)

Sec. 32-60. Unwholesome produce prohibited.

It shall be unlawful for any person to bring, cause to be brought, sell, offer for sale, or expose for sale in the Farmers Market, any produce unfit for human consumption or otherwise not suitable for sale on the Farmers Market because of age, disease, damage or other conditions affecting the wholesomeness of the produce. The decision of the director or his representative shall be final in determining the quality, condition and wholesomeness of all produce in the Farmers Market.
(Code 1959, § 21-44; Ord. No. 50570, § 2, 3-29-79)

Sec. 32-61. Obstruction of public ways prohibited.

It shall be unlawful for anyone to place any barrel, box, crate, wood, vehicle, merchandise, or other substances on any walking area in the Farmers Market so as to obstruct entirely or in part passage along such walking areas, or any part thereof.
(Code 1959, § 21-45; Ord. No. 50570, § 2, 3-29-79)

Sec. 32-62. Inferior quality items in boxes, crates, etc.

It shall be unlawful for any person with intent to deceive, or to defraud, to sell, offer for sale, expose for sale or to possess for sale, any box, basket, crate, bag, or other container containing produce, merchandise or other commodity of a quality inferior to that with which such container is apparently filled.
(Code 1959, § 21-46; Ord. No. 50570, § 2, 3-29-79)

Sec. 32-63. Signs.

Each farmer, produce merchant or person, before doing business in the Farmers Market, shall provide a sign of the size, color, lettering and material specified by the director. Such signs shall at all times be displayed in a conspicuous location which shall be approved by the director. No signs, placards or other advertising material other than price signs and above-described signs shall be displayed at the Farmers Market.
(Code 1959, § 21-47; Ord. No. 50570, § 2, 3-29-79)

Sec. 32-64. Sanitary bags, sacks required.

All burlap bags, sacks, cloth or any other fabric, when used while wet to protect produce by persons utilizing the Farmers Market, must be thoroughly laundered and cleaned before being used for such purpose. The decision of the director as to the cleanliness of such fabric shall be final, and when he has determined that a fabric is too dirty

for use on produce, the owner thereof must have such fabric laundered and cleaned before he shall be authorized to use the fabric.
(Code 1959, § 21-48; Ord. No. 50570, § 2, 3-29-79)

Sec. 32-65. Weights and measures.

No person shall possess, use or permit to be used, a weighing device or measuring device, which has not been sealed by the State of Texas, Texas Agriculture Department Inspector of Weights and Measures, within one (1) year, in weighing or measuring any commodity which is offered for sale, exposed for sale, or sold, or in computing the charge for services rendered based upon weight or measure.
(Code 1959, § 21-49; Ord. No. 50570, § 2, 3-29-79)

Sec. 32-66. Health cards for employees.

Any person in the Farmers Market who shall handle produce, either as owner or employee, must have a health card, and such card must be prominently displayed in the stall or stalls.
(Code 1959, § 21-50; Ord. No. 50570, § 2, 3-29-79)

Sec. 32-67. Licenses, certificates; display.

Produce licenses and other required certificates must be prominently displayed in stalls. Such licenses and other required certificates must be framed and hung on the wall of the stall.
(Code 1959, § 21-51; Ord. No. 50570, § 2, 3-29-79)

Sec. 32-68. Display, storage heights.

All farmers, produce merchants or persons must display their produce eighteen (18) inches or more above the ground. Persons with coolers must store all produce in coolers, or it must be covered and eighteen (18) inches above the ground. Persons with no coolers must store their produce, covered, at least eighteen (18) inches above the ground. Produce must not be stored higher than five (5) feet above the ground.
(Code 1959, § 21-52; Ord. No. 50570, § 2, 3-29-79)

Sec. 32-69. Garbage, refuse disposal; general conditions.

All farmers, produce merchants or persons will dispose of all refuse. Refuse must be taken to designated garbage disposal areas. All persons are responsible for keeping their stall in a presentable and sanitary condition at all times.
(Code 1959, § 21-53; Ord. No. 50570, § 2, 3-29-79)

Sec. 32-70. Applicability of health provisions.

All stipulations of chapter 15 are applicable in the operation of the Farmers Market and will be enforced.
(Code 1959, § 21-54; Ord. No. 50570, § 2, 3-29-79)

Sec. 32-71. Non-produce-related items.

Items not related to produce operations will not be sold or stored in stalls unless authorized by the director.
(Code 1959, § 21-55; Ord. No. 50570, § 2, 3-29-79)

Sec. 32-72. Bedding, sleeping in stalls.

There will be no bedding or sleeping allowed in stalls.
(Code 1959, § 21-56; Ord. No. 50570, § 2, 3-29-79)

Sec. 32-73. Assignment of existing leases.

(a) A tenant shall not assign the existing lease in the Farmers Market and the business conducted on the leased premises or any interest therein without first obtaining the written consent of the city, which consent shall not be unreasonably withheld, and which consent will be evidenced by the passage of a city ordinance based upon recommendations by the city staff, giving due consideration to the tenant mix and product mix as affected by such assignment. However, where the tenant is a sole proprietorship and the tenant dies, the surviving spouse or the tenant's heir or a testamentary beneficiary of the tenant or a representative of the tenant's estate designated by a court of competent jurisdiction may operate the establishment until the end of the term of the lease then in effect, and subject to city council approval.

(b) In addition to the foregoing, until the expiration of one (1) year from the commencement date of the lease agreement of any new tenant in the Farmers Market Plaza, said tenant may not sell, assign, sublease, or otherwise transfer said tenant's business or any part thereof or any

interest therein or transfer the lease agreement under which said tenant is leasing space in said Farmers Market Plaza to another party under any circumstances whatsoever, and thereafter, said tenant may not so assign, sublet, or otherwise transfer without first obtaining the written approval of the City of San Antonio, as evidenced by the passage of a City of San Antonio ordinance. In the event a tenant has been approved to purchase an existing business from either a new tenant or existing tenant of the Farmers Market Plaza and said approved tenant changes or alters the approved merchandise use of the leased premises at the Farmers Market Plaza without the prior written approval of the City of San Antonio, then the lease agreement will be immediately terminated.
(Ord. No. 74896, § 1, 12-5-91; Ord. No. 79223, § 5, 11-23-93; Ord. No. 84164, § 5, 5-23-96)

Secs. 32-74—32-85. Reserved.

DIVISION 3. EL MERCADO

Sec. 32-86. Promulgation of rules; violations; Fiesta Room.

(a) The director is specifically authorized to develop, implement, and enforce all necessary and proper rules for the management and operation of El Mercado. Violation of such rules shall be cause for termination of any lease agreement pertaining to El Mercado between the city and the violator or his representative. Such violation shall also be good and sufficient reason for refusal to lease any space in the Market Square to said violator or his representative.

(b) The director is specifically authorized to develop, implement and enforce all necessary and proper rules for the management and operation of the Fiesta Room. Violation of such rules shall be cause for immediate cancellation of any lease agreement pertaining to the Fiesta Room between the city and the violator or his representative. Such violation shall also be good and sufficient reason for refusal to lease any space in Market Square to said violator or his representative.
(Code 1959, § 21-72; Ord. No. 50570, § 2, 3-29-79)

Sec. 32-87. Bus parking zone.

The driveway area directly in front of the Fiesta Room is hereby designated as a bus parking zone, and the director is authorized to implement all necessary and proper rules.
(Code 1959, § 21-72.1; Ord. No. 50570, § 2, 3-29-79)

Sec. 32-88. Employees guilty of past violations.

No tenant in El Mercado shall hire as an agent, or employ any person who has been barred from El Mercado for violation of any provision of this chapter or regulation promulgated by the director.
(Code 1959, § 21-73; Ord. No. 50570, § 2, 3-29-79)

Sec. 32-89. Operating hours.

The director shall have the authority to establish opening and closing hours of El Mercado and shall have the right to extend or limit hours of operation when deemed necessary.
(Code 1959, § 21-74; Ord. No. 50570, § 2, 3-29-79)
Cross reference—Rental rate schedule for facilities, § 21-11.1.

Sec. 32-90. Littering prohibited.

No person shall throw, place or permit to be thrown or placed on the El Mercado, or any part thereof, or the public streets adjacent thereto, any rubbish, refuse or litter of any kind, or any obstructions which are likely to become dangerous or offensive to the public.
(Code 1959, § 21-75; Ord. No. 50570, § 2, 3-29-79)

Sec. 32-91. Deceitful pricing; refusal to sell.

It shall be unlawful for any person occupying a shop in the El Mercado to resort to any trick or scheme to ask prices which are unreasonable when compared to prices asked for similar items at that time, or to refuse to sell his merchandise for the purpose of holding a shop. Such action on the part of a person in holding a shop shall be sufficient cause for the director to forfeit all rights, including fees paid, to such shop by such person.
(Code 1959, § 21-76; Ord. No. 50570, § 2, 3-29-79)

Sec. 32-92. Loitering, etc.

It shall be unlawful for any person to loiter, linger or loaf on or about the El Mercado.
(Code 1959, § 21-77; Ord. No. 50570, § 2, 3-29-79)

Sec. 32-93. Fixing prices.

It shall be unlawful for tenants to agree among themselves to fix or raise prices, or to exert any influence, pressure or persuasion on any other tenant to fix or raise prices of items being sold or to be sold on or about the El Mercado.
(Code 1959, § 21-78; Ord. No. 50570, § 2, 3-29-79)

Sec. 32-94. Animals prohibited.

It shall be unlawful for any owner, keeper or person having the custody or control of any dog, cat or other animal to cause or permit such animal to go into or upon the El Mercado.
(Code 1959, § 21-79; Ord. No. 50570, § 2, 3-29-79)

Sec. 32-95. Obstruction of public ways prohibited.

It shall be unlawful for anyone to place any barrel, box, crate, wood, vehicle, merchandise or other substances on any walking area in the El Mercado so as to obstruct entirely or in part passage along such walking areas or any part thereof.
(Code 1959, § 21-80; Ord. No. 50570, § 2, 3-29-79)

Sec. 32-96. Packing, displaying boxes, etc., deceptively.

It shall be unlawful for any person with intent to deceive, or to defraud, to sell, offer for sale, expose for sale or to possess for sale, any box, basket, crate, bag or other container containing merchandise or other commodity of a quality inferior to that with which such container is apparently filled.
(Code 1959, § 21-81; Ord. No. 50570, § 2, 3-29-79)

Sec. 32-97. Signs.

Each tenant, before doing business in the El Mercado, shall provide a sign of the size, color, lettering and material specified by the director. Such signs shall at all times be displayed in a conspicuous location which shall be approved by the director. No signs, placards or other advertising material other than price signs and above-described signs shall be displayed at the El Mercado.
(Code 1959, § 21-82; Ord. No. 50570, § 2, 3-29-79)

Sec. 32-98. Health cards for employees; display.

Any person in the El Mercado who shall handle food products, either as owner or employee, must have a health card and such card must be prominently displayed in the shop or shops.
(Code 1959, § 21-83; Ord. No. 50570, § 2, 3-29-79)

Sec. 32-99. Licenses, certificates; display.

Food licenses and other required certificates must be prominently displayed in shops. Such licenses and other required certificates must be framed and hung on the wall of the shop.
(Code 1959, § 21-84; Ord. No. 50570, § 2, 3-29-79)

Sec. 32-100. Disposal of garbage, refuse; general conditions.

All tenants and/or employees will dispose of all refuse. Refuse must be taken to designated garbage disposal areas. All persons are responsible for keeping their shop in a presentable and sanitary condition at all times.
(Code 1959, § 21-85; Ord. No. 50570, § 2, 3-29-79)

Sec. 32-101. Applicability of health code.

All stipulations of Articles I through IV of Chapter 13, Food and Food Handlers, are applicable in any shop handling food products in the El Mercado, and will be enforced.
(Code 1959, § 21-86; Ord. No. 50570, § 2, 3-29-79)

Sec. 32-102. Reserved.

Editor's note—Section 2 of Ord. No. 74896, adopted Dec. 5, 1991, repealed § 32-102 in its entirety. Formerly, § 32-102 pertained to the procedure for reletting merchant's spaces and derived from § 1 of Res. No. 84-29-35, adopted June 28, 1984.

Sec. 32-103. Assignment of existing leases.

A tenant shall not assign the existing lease in El Mercado and the business conducted on the leased premises or any interest therein without first obtaining the written consent of the city,

which consent shall not be unreasonably withheld, and which consent will be evidenced by the passage of a city ordinance, based upon recommendation by the city staff and the Market Square commission, giving due consideration to the tenant mix and product mix as affected by such assignment. However, where the tenant is a sole proprietorship and the tenant dies, the surviving spouse or the tenant's heir or a testamentary beneficiary of the tenant or a representative of the tenant's estate designated by a court of competent jurisdiction may operate the establishment until the end of the term of the lease then in effect, and subject to city council approval.
(Res. No. 84-29-35, § 1, 6-28-84; Ord. No. 74896, § 2, 12-5-91)

Sec. 32-104. Leases to prohibit independent contracts which amount to an assignment or subletting of the leased premises.

Leases on spaces in El Mercado shall be written so as to prohibit the tenant from entering into any independent contracts relative to the operation of the business amounting to any assignment or subletting of the leased premises, as determined solely by the city. This section shall also apply to the leases on spaces in the Farmers Market Plaza.
(Res. No. 84-29-35, § 1, 6-28-84; Ord. No. 74896, § 2, 12-5-91; Ord. No. 79223, § 6, 11-23-93)

Sec. 32-105. Renewal leases.

The City hereby exercises its option to renegotiate renewal leases as provided in Section 31.2 of the El Mercado lease agreement. The term of renewal lease shall be for a period not to exceed three (3) years. Upon written notification, if received within ninety (90) days from the expiration of the original term of the existing lease, of any tenant's intent to renew and renegotiate the terms and conditions of a renewal lease. The Director or Market Square Manager is hereby authorized and directed to renew and renegotiate terms and conditions of a renewal lease.
(Res. No. 84-29-35, § 1, 6-28-84; Ord. No. 84164, § 6, 5-23-96)

Secs. 32-106—32-120. Reserved.

DIVISION 4. CENTRO DE ARTES DEL MERCADO

Sec. 32-121. Promulgation of rule; violations.

The director is specifically authorized to develop, implement and enforce all necessary and proper rules for the management and operation of the Centro de Artes del Mercado. Violation of such rules shall be cause for immediate cancellation of any lease agreement pertaining to the Centro de Artes del Mercado building between the city and *the violator or his representative. Such violation* shall also be good and sufficient reason for refusal to lease any space in Market Square to said violator or his representative.
(Code 1959, § 21-102; Ord. No. 50570, § 2, 3-29-79)

Sec. 32-122. Exclusive catering agreements.

No exclusive catering agreement will be a part of any lease agreement or contract pertaining to the Centro de Artes del Mercado.
(Code 1959, § 21-103; Ord. No. 50570, § 2, 3-29-79)

Sec. 32-123. Display of food licenses, etc.

Food licenses and other required certificates must be prominently displayed in the kitchen area of the Centro de Artes del Mercado by any person or persons using the kitchen to handle food products.
(Code 1959, § 21-104; Ord. No. 50570, § 2, 3-29-79)

Cross reference—Tourist and trade center areas, Ch. 32.

Sec. 32-124. Health card for food handlers.

Any person or persons who shall handle food products, either as caterer or employee, must have a health card and such card must be prominently displayed in the kitchen area of the Centro de Artes del Mercado building.
(Code 1959, § 21-105; Ord. No. 50570, § 2, 3-29-79)

Sec. 32-125. Applicability of health provisions.

All stipulations of articles I through IV of chapter 13, Food and Food Handlers, are applica-

ble to any person handling food products in the kitchen area of the Centro de Artes del Mercado, and will be enforced.
(Code 1959, § 21-106; Ord. No. 50570, § 2, 3-29-79)

Sec. 32-126. Execution of memorandum of understanding for the public display of proprietary art work.

(a) The Director or Market Square Manager is hereby authorized to execute memorandums of understanding for a period not to exceed one (1) year with various artists for the public display of propriety art work in the Centro de Artes in Market Square.

(b) The Director or Market Square Manager is hereby authorized to act on behalf of the city in the preparation and handling of the various memorandums of understanding for the public display of propriety art work in the Centro de Artes in Market Square.
(Ord. No. 63205, §§ 1, 2, 7-10-86; Ord. No. 84164, § 7, 5-23-96)

Secs. 32-127—32-135. Reserved.

DIVISION 5. MALL AREAS

Sec. 32-136. Establishment of boundaries authorized.

The director is hereby specifically authorized to establish certain boundaries separating the mall areas into different sections for purpose of calculating rental fees.
(Code 1959, § 21-122; Ord. No. 50570, § 2, 3-29-79)

Sec. 32-137. Authorized lease agreements; fees and conditions.

The director is hereby authorized to enter into lease agreements for the operation of outdoor dining areas and other business activities related to lessee's business. Rental fees and conditions of lessee's operation are incorporated in Attachment 4 and Exhibit A, not set out herein but on file and available for public inspection in the office of the city clerk.
(Code 1959, § 21-123; Ord. No. 50570, § 2, 3-29-79)

Sec. 32-138. Promulgation of rules; violations.

The director is specifically authorized to develop, implement and enforce all necessary and proper rules for the management and operation of the mall areas. Violation of such rule shall be cause for immediate cancellation of any lease agreement pertaining to the mall areas between the city and the violator or his representative. Such violation shall also be good and sufficient reason for refusal to lease any space in the Market Square to said violator or his representative.
(Code 1959, § 21-124; Ord. No. 50570, § 2, 3-29-79)

Cross reference—Tourist and trade center areas. Ch 32.

Sec. 32-13. Temporary vending permits, rates.

The director is hereby authorized to issue daily permits for temporary vending in the mall areas of Market Square. Rental rates for temporary vending in the mall areas shall be at the same rates as established under section 32-20.
(Code 1959, § 21-125; Ord. No. 50570, § 2, 3-29-79)

Sec. 32-140. Rules for temporary vending; director's decision re use.

The director is hereby authorized to develop, implement and enforce all necessary and proper rules for temporary vending in the mall areas. Violation of such rules shall be cause for the immediate termination of the permit of the violator. It shall be at the sole discretion of the director as to whether the goods or services to be sold are in keeping with the atmosphere of the area and whether a permit shall be issued. The decision of the director shall be final.
(Code 1959, § 21-126; Ord. No. 50570, § 2, 3-29-79)

Sec. 32-141. Charge for rental equipment.

The rental for equipment to be used on the mall areas shall be charged in accordance with the rates shown on rate schedules incorporated herein by reference.
(Code 1959, § 21-127; Ord. No. 50570, § 2, 3-29-79)

Sec. 32-142. Unlawful vehicle parking, standing.

It shall be unlawful for any person to park or stand a motor vehicle on any of the mall areas of Market Square.
(Code 1959, § 21-128; Ord. No. 50570, § 2, 3-29-79)

Secs. 32-143—32-150. Reserved.

DIVISION 6. MARKET SQUARE COMMISSION*

Sec. 32-151. Establishment of members.

The Market Square Commission is established under the authority of Section 49 of the City Charter. The Market Square Commission shall consist of seven (7) members serving two (2) year overlapping terms and shall be appointed by the city council from the following categories:

# of Commissioners	*Category*
1	Market Square Merchant
2	Business Community
1	Professional Architect
1	Tourism Industry
1	Historic Preservation
1	Consumer

Except for the Market Square Merchant, none of the other members of the Market Square Commission shall have a substantial interest in any business entity in Market Square as that term is defined in Chapter 171 of the Local Government Code, Vernon's Texas Statutes Annotated.
(Ord. No. 84164, § 8, 5-23-96)

Sec. 23-152. Purpose.

The purpose of the Market Square Commission is to advise city staff on the promotion, development and preservation of Market Square as a major destination for tourists and community residents.
(Ord. No. 84164, § 8, 5-23-96)

Sec. 32-153. Meetings.

The Market Square Commission will meet a minimum of twice per calendar year and all meeting will be governed by Robert's Rules of Order.
(Ord. No. 84164, § 8, 5-23-96)

Sec. 32-154. Fund raising.

At the discretion of the City manager or his designee, the commission may assist city staff in the coordination and promotion of fund raising events designed to directly benefit the promotion, preservation and capital development of Market Square as a major destination for tourists and community residents.
(Ord. No. 84164, § 8, 5-23-96)

Sec. 32-155—32-160. Reserved.

ARTICLE III. TOURIST TRADE CENTER NO. 2

Sec. 32-161. Area designated; boundaries.

The city council hereby designates the area described as follows as Tourist Trade Center No. 2:

Beginning at a point being the intersection of the center lines of Durango Boulevard and South Alamo Street; thence, in a northerly direction along the center line of South Alamo Street to its intersection with the center line of Nueva Street; thence, in a westerly direction along the center line of Nueva Street to its intersection with the center line of South Presa;

*__Editor's note—__Ord. No. 84164, § 8, adopted May 23, 1996, amended former Div. 6, relative to the Market Square Commission, to read as herein set out. The provisions of former Div. 6 derived from Ord. No. 66913, §§ 2—16, adopted April 7, 1988.

thence, in a northerly direction along the center line of South Presa crossing East Commerce and continuing along the center line of North Presa to its intersection with the center line of East Houston Street; thence, in an easterly direction along the center line of East Houston to its intersection with the center line of Bonham Street; thence, in a southwesterly direction along the center line of Bonham Street to its intersection with the center line of Crockett Street; thence, in an easterly direction along the center line of Crockett to its intersection with the center line of Bowie Street; thence, in a southerly direction along the center line of Bowie Street to its intersection with the north right-of-way line of East Commerce; thence, along the north right-of-way line of East Commerce to its intersection with the center line of Chestnut Street; thence, in a northeasterly direction along the center line of Chestnut to its intersection with the center line of Centre Street; thence, in an easterly direction along the center line of Centre Street to its intersection with the west right-of-way of the Southern Pacific Railroad; thence, along the west right-of-way of the Southern Pacific Railroad; thence, along the west right-of-way of the Southern Pacific Railroad to its intersection with the center line of Galveston Street; thence, along the center line of Galveston Street to its intersection with the center line of Hoefgen Avenue; thence, in a northerly direction along the center line of Hoefgen Avenue to its intersection with the center line of Hieman Street; thence, in a westerly direction along the center line of Hieman Street to its point of intersection with the extension of the southwest boundary line of Lot D, NCB 684; thence, in a northwesterly direction along the said extended line across right-of-way of Sycamore Street along southwest boundary of NCB 684 and along this extension to its intersection with south right. of-way of East Commerce; thence, continuing along the south right-of-way line of East Commerce to its intersection with the center line of Water Street; thence, continuing in a southerly direction along the center line of Water Street across Market Street and continuing along the center line of Bowie Street (Hemisfair Plaza) (Perimeter Road) to its intersection with the center line of the Entry Road to the Tower of the Americas; thence, continuing in a northwesterly direction along the center line of the Entry Road to the Tower of the Americas to its intersection with the north extension of the north boundary of a 6.0027 acre tract of U.T.S.A. property; thence, in a southwesterly direction along the northern boundary of the U.T.S.A. property crossing a point on the northeast property line of a 7.688 acre tract of the U.S. Federal Courthouse; thence, continuing in a northwesterly, southwesterly direction along the boundary of said 7.688 acre tract and along an extension of this line to its intersection with the center line of Durango Boulevard; thence, along in a westerly direction along the center line of Durango being a curve to the left to its intersection with the center line of South Alamo being the point of beginning and containing one hundred fifty (150) acres more or less.

(Code 1959, § 37A-21; Ord. No. 54244, § 1, 9-3-81)

Secs. 32-162—32-176. Reserved.

ARTICLE IV. SIDEWALK CAFE PERMIT

Sec. 32-177. Definitions.

For purposes of this article, the following definitions shall apply:

Downtown business district has the same meaning as in the Unified Development Code of San Antonio, Texas.

Hawk means offering goods, merchandise, or services by calling or crying out.

Inhibit means to cause any person walking or otherwise proceeding to swerve, dodge, change direction, or come to a complete stop.

Pedestrian accessible route means a continuous unobstructed path of travel with minimum clear width of seventy-two (72) inches that connects public transportation stops, accessible parking, passenger loading zones and public streets or sidewalks.

Public property means any real property owned or controlled by the city.

Sidewalk cafe means any street level portion of public right-of-way use in which tables and chairs are placed for the sole purpose of patrons consuming food and/or beverages (alcoholic or non-alcoholic beverages) served by a food establishment adjacent to property. This sidewalk cafe permit will not include the Market Square or Riverwalk Areas.
(Ord. No. 2009-05-07-0354, § 1, 5-7-09)

Sec. 32-178. Downtown business district sidewalk cafe permits.

(a) *Permits.* Downtown business district sidewalk cafe permits for the operation of a sidewalk cafe shall be issued annually by the downtown operations department in accordance with procedures adopted by the city manager or the city manager's designee and such policies shall include, but not be limited to, standard amount of space necessary for the issuance of a permit, insurance and indemnity requirements and such other operational rules, regulations and requirements as deemed necessary by the city manager or the city managers designee. The city manager or the city manager's designee shall evaluate each proposed sidewalk cafe permit application and shall only be authorized to issue permits for those locations which the city manager or the city manager's designee has determined are large enough that a sidewalk cafe in those locations would have no effect on adjacent public property. The director of the downtown operations department shall have authority to immediately suspend any such permits in the event that the permit holder does not comply with the policies and procedures adopted by city manager or the city managers designee or is in violation of this chapter.

(b) *Fees.* Sidewalk cafe permit fee shall be paid to the city and the permit fee shall be determined according to the following table:

Square Footage of Sidewalk Cafe	*Fee*
Less than 250 square feet	$250.00
250 square feet to 500 square feet	$500.00
More than 500 square feet	$750.00

(Ord. No. 2009-05-07-0354, § 1, 5-7-09)

Sec. 32-179. Hawking and vending in the downtown business district.

Use of public property shall at all times, be in compliance with vending policies for the downtown business district as detailed in section 16-236 and any other applicable sections of this Code.
(Ord. No. 2009-05-07-0354, § 1, 5-7-09)

Sec. 32-180. Right reserved to refuse a permit.

The director of the downtown operations department shall have the right to refuse to issue a permit to any person guilty of willful violations of the rules and regulations promulgated under this article.
(Ord. No. 2009-05-07-0354, § 1, 5-7-09)

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Chapter 33

VEHICLES FOR HIRE*

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***Editor's note—**Ord. No. 2013-08-01-0501, § 1(Exh. A), adopted August 1, 2013, amended chapter 33 in its entirety to read as herein set out. Formerly, chapter 33 pertained to similar subject matter, and derived from Ord. No. 70819, § 1, adopted December 21, 1989; Ord. No. 70903, § 1, adopted January 11, 1990; Ord. No. 82938, § 1, adopted September 28, 1995; Ord. No. 87146, §§ 1—3, adopted December 18, 1997; Ord. No. 89167, §§ 1—4, adopted January 28, 1999; Ord. No. 89301, § 1, adopted February 18, 1999; Ord. No. 91950, §§ 1, 2, adopted June 8, 2000; Ord. No. 94746, § 1, adopted October 18, 2001; Ord. No. 94854, § 29, adopted September 20, 2001; Ord. No. 97627, § 1, adopted May 15, 2003; Ord. No. 98187, § 21, adopted September 18, 2003; Ord. No. 99377, § 1, adopted June 24, 2004; Ord. No. 99741, §§ 8—13, adopted September 16, 2004; Ord. No. 100329, §§ 1—6, adopted January 20, 2005; Ord. No. 100552, § 2, adopted March 10, 2005; Ord. No. 101344, § 1, adopted September 1, 2005; Ord. No. 101404, §§ 4, 5, 7, 8, adopted September 15, 2005; Ord. No. 2007-03-01-0234, § 1, adopted March 1, 2007; Ord. No. 2007-05-17-0559, §§ 1, 2, adopted May 17, 2007; Ord. No. 2008-06-19-0593, §§ 1—6, adopted June 19, 2008; Ord. No. 2008-09-11-0777F, §§ 4, 5, 7, 8, adopted September 11, 2008; Ord. No. 2010-01-14-0116, §§ 2—7, adopted January 14, 2010; Ord. No. 2011-03-31-0241, §§ 1—5, adopted March 31, 2011; Ord. No. 2012-05-31-0387, §§ 1, 2, adopted May 31, 2012; Ord. No. 2012-09-20-0740, §§ 1, 2, adopted September 20, 2012, and Ord. No. 2013-03-21-0188, §§ 1—3, adopted March 21, 2013.

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ARTICLE I. GENERAL PROVISIONS*

DIVISION 1. GENERAL PROCEDURES

Sec. 33-001. Statement of policy.

It is the policy of the city to promote efficient, safe, reliable, and quality ground transportation services in the city. To this end, this chapter provides for the regulation of such services to be carried out in a manner that protects the public health and safety, promotes the public convenience and necessity, and respects the concept of free enterprise.
(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14)

Sec. 33-002. Scope; effect; exclusions.

This chapter governs the operation of vehicles for hire and ground transportation services in the city under each form of operating authority. The chapter, however, is not a limitation on the power of the city council to incorporate in a grant of operating authority special provisions relating to the operation of the particular ground transportation service to the grant. To the extent that a special provision conflicts with this chapter, the special provision controls. The following exclusions apply:

(a) This chapter does not apply to a person operating a ground transportation service that is:

(1) Operated under state or federal authority unless subject to the city's regulatory authority;

(2) Used to transport persons for hire and is regulated by another city ordinance;

(3) In the performance of a service involving a point of origin or destination outside the city that was authorized by a certificate of public convenience and necessity issued by the Texas Railroad Commission, except that the director shall prescribe routes, times, and locations for loading, unloading and stopping on public streets in the city for a ground transportation service operated under such a certificate;

(4) Operated for a funeral home in the performance of funeral services;

(5) Provided by an employer or employee association for use in transporting employees between the employees' homes and the employer's place of business or between work stations, with the employees reimbursing the employer or employee association in an amount calculated only to offset the reasonable expenses of operating the vehicle;

(6) Owned and operated by the federal or state government, by a political subdivision of the state, or by a person under contract with the city for operation of the vehicle;

(7) Used in a carpool to transport the person and others on a prearranged basis between their homes and places of employment or places of common destination, if only a fee calculated to reasonably cover expenses is charged;

(8) Used to transport children to or from school if only a fee calculated to reasonably cover expenses is charged;

(9) Owned by a nonprofit organization and carrying only passengers associated with that organization, if no compensation is received from any other person for carrying the passengers;

(10) A courtesy vehicle, as defined in section 33-003 of this chapter, if the name of the business or sponsor of such vehicle is permanently affixed to the outside of the vehicle;

*__Editor's note—__Ord. No. 2014-12-11-1002, § 1(Att. A), adopted December 11, 2014 and effective March 1, 2015, amended article I in its entirety to read as herein set out. Formerly, article I, divisions 1—7, pertained to similar subject matter and derived from Ord. No. 2013-08-01-0501, § 1(Exh. A), adopted August 1, 2013.

(11) Those services the provision of which is a continuation of interstate travel; and

(12) Those services provided by VIA Metropolitan Transit wherein persons are transported along regularly scheduled routes throughout the city for loading and unloading, at frequent intermittent stops, alongside the curb or curb lines of a street; wherein the disabled and the elderly are provided with special services; and wherein persons are offered express service from designated park and ride locations throughout the city.

(b) Divisions 4 and 6 of this article do not apply to:

(1) The driver of a ground transportation service operated under authority granted by the Interstate Commerce Commission, if the driver is operating within the scope of the driver's employment; and

(2) Motor coaches having a gross-weight rating in excess of twenty-three thousand (23,000) pounds.

(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14)

Sec. 33-003. Definitions.

For the purpose of this chapter, the following words and phrases shall have the meanings ascribed to them by this section, unless the context shall indicate another or different meaning or intent.

Airport service shall mean vehicles that may serve the airport without city-wide service restrictions. A city-wide permit is a prerequisite for the issuance of an airport permit. No driver shall pick up a passenger on any portion of San Antonio International Airport (SAT) or Stinson Airfield (SSF) without proper authorization pursuant to chapter 3, article II of this Code, including payment of any fees.

Application shall mean the written request for a permit agreement or drivers permit.

Appointment basis only shall mean a ground transportation service pre-arranged by the passenger prior to the arrival of a vehicle for hire at the point of origin.

Association shall mean an incorporated or unincorporated society or group of persons united for some purpose related to the operation of ground transportation vehicles. This term includes a cooperative association.

Business office shall mean a location used for the purpose of conducting operations. A business office must have a valid mailing address within the city limits, other than a post office box.

Charter service shall mean a ground transportation service that uses vehicles with a capacity of sixteen (16) or more passengers to transport passengers belonging to a specified group and that is:

(a) Offered only upon a pre-arranged basis, the pre-arrangement being made at least one hour in advance of the time the transportation is to begin and on a pre-sold basis; and

(b) Is used to transport a specified group of passengers from the same or various points of origin to a same point of destination.

(c) Has registered with the state department of motor vehicles as a commercial vehicle.

City shall mean the City of San Antonio.

City manager shall mean the person, or the city manager's authorized or designated representative.

City-wide service shall mean vehicles that service the entire city except the San Antonio International Airport. City-wide vehicles may drop-off passengers at the airport

Classic vehicle shall mean a motor vehicle used in the operation of a limousine service, which is twenty-five (25) years of age or older and is of special interest to or in demand by auto collectors due to the vehicle's rarity, limited production, public recognition or increasing value.

Code shall mean the City Code of San Antonio, Texas.

Compensation shall mean any money, thing of value, payment, consideration, reward, tip, donation, gratuity or profit paid to, accepted or received by the driver or owner of any vehicle in exchange for transportation of a person, or persons, whether paid upon solicitation, demand or contract, or voluntarily, or intended as a gratuity or donation.

Courtesy vehicle shall mean a vehicle which provides a passenger ground transportation service exclusively for the clients of a sponsor of such vehicle and such sponsor is not a business, association, organization or any other entity engaged in providing a vehicle for hire service of any kind, and which accepts no fares or compensation paid by a passenger to the driver of such a vehicle or to the sponsor.

Conviction means a conviction in a federal court or a court of any state or foreign nation or political subdivision of a state or foreign nation that has not been reversed, vacated, or pardoned. Conviction shall also mean a plea of guilty or a finding of guilt in said courts.

Data device shall mean any device that is approved by the department for dispatching purposes. This device must be assigned to either a licensed vehicle or licensed driver.

Director or *department director* shall mean the department head assigned the responsibility for supervising the city's ground transportation services or the authorized or designated representative of such department head.

Dispatch shall mean to operate a scheduling service in which requests for vehicles for hire are received by phone, in person, by the internet, or by any other voice, data or electronic communication, and vehicles for hire are scheduled from the service to the vehicle for hire by radio or data device including, but not limited to, a device capable of any voice, data or electronic communication, or transportation network company application.

Driver shall mean any individual who operates a vehicle for hire under the holder's permit. The driver shall have a State of Texas drivers license required for the class of vehicle being operated, as defined in V.T.C.A., Transportation Code §§ 521.081 and 521.082, and a valid and current drivers permit issued under this chapter.

Drivers permit shall mean a photo I.D. card issued to an individual by the director which verifies that the individual has met all city requirements and is qualified to operate a vehicle for hire in the city.

Dwelling shall mean any "dwelling, one-family," "dwelling, one-family attached," "dwelling, single family-detached," "dwelling, two-family (duplex)," "dwelling, two-family attached," "dwelling, three-family (triplex)," "dwelling, four-family (quadraplex)," "dwelling, multifamily," "dwelling, single-family" or "dwelling unit," as such terms are defined in chapter 35 of this Code.

Electric vehicle (EV) shall mean a vehicle propelled by an electric motor (non-combustion) that has a maximum speed of no more than thirty-five (35) mph and otherwise complies with Federal Motor Safety Standard 500 (49 C.F.R. Section 571.500) for low-speed vehicles.

Electric vehicle service shall mean a ground transportation service operating for hire that uses an EV in the operation of the service and includes, but not limited to, a facility from which the service is operated, an EV used in the operation of the service, and a person who owns or operates said service. Such services shall be operated on a pre-arranged or on demand basis.

Facility shall mean a location for the conduct of business which includes but is not limited to a business office and a garage for the maintenance of vehicles for hire.

Ground transportation service shall mean a service which utilizes or connects individuals with vehicles for hire in the transportation of passengers from within the city and which includes, but is not limited to, equine-drawn carriage service, group cycle service, limousine service, pedicab service, tour service, charter service, taxicab service, and motorbike sidecar service.

Group cycle shall mean a device with four (4) or more wheels propelled by human power exerted through a belt, chain, or gears capable of carrying a driver and six (6) or more seated passengers on a platform made as part of the device. Group cycles may utilize assist motors as long as they:

(a) Are not intended to be the primary power for the cycle;

(b) Are not continuously operating and are shut off when the cycle is at a speed of five (5) miles per hour or greater speed; and

(c) Have been approved by the director.

Group cycle service shall mean a ground transportation service operating for hire that uses a group cycle in the operation of the service and includes, but is not limited to, a facility from which the service is operated, a group cycle used in the operation of the service, and a person who owns or operates said service. Such service shall only be operated on a pre-arranged basis.

Holder shall mean a person, company, corporation, cooperative or association, or the individual members of such cooperative or association that applies for and is granted an operating permit with the city for a ground transportation service. A holder is responsible to assure that any driver who operates under the holder's permit fully complies with chapter 33, the failure of which shall subject a holder to potential revocation or suspension of the holder's permit(s) under article I, division 3, revocation/suspension of permits.

Hybrid taxicab shall mean a taxicab with more than one power source, such as an electric motor and internal combustion engine or an electric motor with battery and fuel cells for energy storage.

Inspection re-scheduling fee shall mean a fee that is charged to a permit holder for a vehicle that was scheduled for an inspection and that vehicle failed to show for the scheduled inspection. This fee may be waved if the permit holder provides an acceptable reason, at least twenty-four (24) hours in advance of the inspection, the permit holder can provide proof of an extreme situation that caused a vehicle to fail to show or if the inspection time is filled by another vehicle.

Limousine service shall mean a ground transportation service that uses vehicles with a capacity of four (4) to fifteen (15) passengers to transport passengers for a fare based on a one (1) hour or more hiring period and:

(a) On an pre-arranged basis only; and

(b) On irregular routes and schedules.

The term "limousine service" may also refer to any or all of the following:

(1) A facility from which the service is operated;

(2) Vehicles for hire used in the operation of the service; or

(3) A person who owns or operates said service.

A limousine service vehicle shall not be equipped with a taximeter.

Limo-bus shall mean a motor vehicle that:

(a) Has been so designated by the director; and

(b) Has a manufacturer's or modifier's rated seating capacity at least nine (9) and not more than forty-five (45) passengers.

(c) If the rated seating capacity is more than fifteen (15) passengers, has registered with the state department of motor vehicles as a commercial vehicle.

Limo-van shall mean a motor vehicle that:

(a) Has been so designated by the director; and

(b) Has a manufacturer's or modifier's rated seating capacity of at least eight (8) and not more than fifteen (15) passengers.

Luxury vehicle shall mean a motor vehicle that:

(a) Has been designated by the director as a luxury vehicle;

(b) Has a manufacturer's rated seating capacity of not more than eight (8) passengers; and

(c) Has an original wheelbase of one hundred nine (109) inches or more.

Manifest shall mean the daily record prepared by a driver or a holder upon which appears the driver's name and vehicle number; date and hours of operation; time, place, origin and destination of each trip; amount of fare and other charges; and all other information as required by this chapter.

Mini-bus shall mean a motor vehicle that has a manufacturer's rated seating capacity of at least nine (9) and not more than forty-five (45) passengers.

Motor coach shall mean a motor vehicle that:

(a) Has a manufacturer's seating capacity of more than forty (40) passengers;

(b) Has luggage storage compartments located below the passenger area; and

(c) Is normally associated with interstate bus service.

Motorbike sidecar shall mean a car that is attached to the side of a motorbike for a passenger. The motorbike may be combustion or electric and must be street legal.

Motorbike sidecar service shall mean a ground transportation service operating for hire that uses a motorbike with a sidecar in the operation of the service and includes, but not limited to, a facility from which the service is operated, a sidecar used in the operation of the service, and a person who owns or operates said service. Such services shall be operated on a pre-arranged or on demand basis.

Open-air bus shall mean a bus in which all levels have open sides or an open top.

Operate or *operating* shall mean to drive or to be in control of a vehicle for hire. It shall also include the act of driving, managing or directing the utilization of one (1) or more vehicles for hire.

Operating permit shall mean a city-issued certificate which authorizes the holder to operate the number of vehicles for hire specified therein.

Operator shall mean the driver of a vehicle for hire, the owner of a vehicle for hire, or the holder of a vehicle for hire service.

Owner shall mean the person to whom state license plates for a vehicle were issued.

Owner/Operator shall mean an individual person that has an agreement with the city to operate a taxicab service with a single vehicle under an owner/operator permit.

Passenger shall mean an individual, including the driver, being transported by a vehicle for hire.

Pedicab shall mean a device with three (3) or more wheels propelled exclusively by human power exerted through a belt, chain, or gears capable of carrying a driver and one (1) or more passengers on a platform made as part of the device. Pedicabs may utilize assist motors as long as they:

(a) Are not intended to be the primary power for the cycle;

(b) Are not continuously operating and shut off when the cycle is at a speed of five (5) miles per hour or greater speed; and

(c) Have been approved by the director.

Pedicab service shall mean a ground transportation service operated for hire that uses a pedicab in the operation of the service and includes, but is not limited to a facility from which the service is operated, a pedicab used in the operation of the service and a person who owns or operates said service.

Permit agreement shall mean the written agreement between the city and a person for an operating permit which authorizes the operation of a ground transportation service after the issuance of such operating permit.

Permit holder shall mean the individual who:

(a) Owns the company if a sole proprietorship;

(b) Who has been designated as having the controlling interest over a company by

the majority of owners of said company, and who is identified as an owner on the letter of incorporation; or

(c) Has been elected as the president of a co-operative.

Person shall mean an individual, partnership, corporation, company association, co-op or other legal entity.

Pre-arranged basis shall mean operating with a reservation for service made at least one (1) hour in advance of the time the transportation is to begin.

Pre-sold basis shall mean full or partial payment is made or guaranteed by cash, check, or charge account, at the time of reservation.

Rated passenger capacity shall mean that designated in number by the manufacturer, or if none, that designated in number by the director.

Reservation schedule shall mean a record prepared at the time of reservation upon which appears the specified group name; the date and time the reservation for service was made; the type of payment made (cash, check, charge); the amount charged; the number of persons in the specified group; the place of origin; the time of pick-up; the destination; and the time of drop-off.

Service animal shall mean any guide dog, signal dog or other animal individually trained to work or perform tasks for a person with a disability, including but not limited to guiding persons with impaired vision, alerting persons with impaired hearing to intruders or sounds, providing minimal protection or rescue work, pulling a wheelchair or fetching dropped items.

Specified group shall mean more than one (1) individual having some unifying relationship purposely assembled for traveling together. However, they are not required to be transported together.

Stand shall mean a public place alongside the curb or curb line or a street which has been designated by the director as reserved exclusively for use by a particular type of ground transportation service.

State shall mean the State of Texas.

Street shall mean any street, alley, avenue, boulevard, drive, public way or highway commonly used for the purpose of public travel within the city.

Stretch limousine shall mean a motor vehicle that:

(a) Is a luxury vehicle with a wheelbase which has been extended one hundred (100) inches or more beyond the original manufacturer's specification;

(b) Is in compliance with the rated seating capacity as required by the U.S. Department of Transportation (DOT) approved manufacturer's or modifier's data plate or weather proof label on the door jamb;

(c) Possesses a DOT approved manufacturer's or modifier's data plate or weatherproof label on the door jamb; and

(d) Is used for the transportation of persons from a location in the city to another location either inside or outside the city.

(e) If the rated seating capacity is more than fifteen (15) passengers, has registered with the state department of motor vehicles as a commercial vehicle.

Sports utility vehicle (SUV) shall mean a motor vehicle that:

(a) Is designated by the manufacturer as a SUV and is designated by the director as a SUV authorized for use in the limousine service; and

(b) Has a manufacturer's seating capacity of not more than eight (8) passengers.

Taxicab shall mean a chauffeured motor vehicle having a rated passenger capacity not more than seven (7) passengers that is used to transport persons in a vehicle for hire on an on demand basis over routes determined by the destination of the passenger. A taxicab shall be equipped with a taximeter.

Taxicab service shall mean a passenger ground transportation service operated for hire that uses taxicabs in the operation of the service and includes, but is not limited to, a facility from

which the service is operated, taxicabs used in the operation of the service and a person who owns or operates said service.

Taximeter shall mean a device that mechanically or electronically computes records and indicates a fare based upon the time or distance a vehicle for hire is engaged and/or the distance travelled by said vehicle. The taximeter shall calculate distance by the transmission of the vehicle or by electrical impulses from the vehicle. A taximeter may also be a virtual/smart taximeter that meets the applicable standards as established and updated or amended in the National Institute of Standards and Technology's (NIST) Handbook 44 and enforced by federal or state departments of weights and measures or comparable agency or program. A taximeter must be visible to a passenger seated in the rear of the vehicle. Taximeters shall be approved and sealed by the city.

Tour service shall mean a passenger ground transportation service that uses vehicles with a manufacturer's rating capacity of eight (8) or more passengers in the operation of the service and includes, but is not limited to, a facility from which the service is operated, vehicles used in the operation of the service, and a person who owns or operates said service, and that:

(a) Is used to provide regularly scheduled and routed sight-seeing tours to persons for a per-passenger or per-hour charge agreed upon in advance; and

(b) Returns passengers to their point of origin upon completion of a tour.

(c) If the rated seating capacity is more than fifteen (15) passengers, has registered with the state department of motor vehicles as a commercial vehicle.

Transportation advisory board shall mean the advisory board created and designated as such by the city council.

Van shall mean a motor vehicle that:

(a) Is designated by the manufacturer as a van and is designated by the director as a van; and

(b) Has a manufacturer's seating capacity of at least eight (8) and not more than fifteen (15) passengers.

Vehicle for hire shall mean every chauffeured vehicle, other than mass transit vehicles or vehicles involved in an organized car pool not available to the general public, which is operated for any fare or compensation and used for the transportation of passengers over city streets. Such vehicles shall include but are not limited to taxicabs, buses, vans, mini-buses, motorcoaches, stretch limousines, classic vehicles, luxury vehicles, pedicabs and transportation network vehicles.

Vehicle number shall mean the identification number assigned to a vehicle for hire by the director.

Vehicle permit shall mean the city decal affixed to a vehicle for hire which evidences the holder's authority to operate said vehicle pursuant to the holder's operating permit.

(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14; Ord. No. 2015-03-05-0152, § 1(Att. A), 3-5-15; Ord. No. 2016-03-03-0164, § 1(Att. A), 3-3-16; Ord. No. 2016-12-08-0968, § 1(Att. B), 12-8-16; Ord. No. 2018-05-31-0396, § 1, 5-31-18, eff. 7-1-18; Ord. No. 2022-11-03-0845, § 1(Att. C), 11-3-22; Ord. No. 2024-12-12-0998, § 1, 12-12-24)

Sec. 33-004. Authority and duty of director.

The director shall implement and enforce this chapter, interpret the provisions herein, and may by written order establish such rules or regulations, not inconsistent with this chapter, as the director determines are necessary to discharge any duty under, or to affect the policy of, this chapter and of the city. The director may at all reasonable times inspect a vehicle or facility operating under this chapter to determine whether the vehicle or facility complies with the provisions of this chapter and all other applicable rules, regulations and laws.

(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14)

Sec. 33-005. Establishment of rules and regulations.

(a) Before adopting, amending, or abolishing a rule or regulation, the director together with the transportation advisory board shall hold a public hearing on the proposal.

(b) The director shall fix the time and place of the hearing and, in addition to notice required under V.T.C.A., Government Code § 551.041, shall notify each holder and such other persons as the director determines are interested in the subject matter of the hearing.

(c) After the public hearing, the director shall notify the holders and other interested persons of the action taken and shall post an order adopting, amending, or abolishing a rule or regulation on the official bulletin board in the City Hall for a period of not fewer than ten (10) days. The order becomes effective immediately upon expiration of the posting period.

(d) All rules and regulations established by the director shall be enforced as provided for in section 33-073 of this chapter.
(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14)

DIVISION 2. OPERATING AUTHORITY

Sec. 33-006. Operating permit required.

(a) A person shall not knowingly operate, allow to be operated, or cause to be operated, a ground transportation service as defined in section 33-003 of this chapter, or any other service providing or related to ground transportation service, without a current and valid operating permit issued under this chapter, nor shall a person transport a passenger for hire from within the city unless the person driving the vehicle for hire or another who employs or contracts with said driver has a current and valid operating permit under this chapter.

(b) No person shall knowingly represent a vehicle as a vehicle for hire nor use or offer the use of such vehicle in a ground transportation service unless the vehicle being so represented, used, or offered for use has a current and valid operating permit under this chapter.

(c) A holder of an operating permit issued under this chapter shall not operate a ground transportation service, other than for the type of service for which an operating permit has been granted.

(d) Before an operating permit is granted, a written application for such on a form provided for that purpose must be submitted to and approved by the director in accordance with the provisions of this chapter.

(e) No person for compensation or at any charge to a passenger shall by any means (including but not limited to any data or electronic communication, any telephone and cellular service, any software, any application, any internet service, and any physical presence) operate, arrange, dispatch to or solicit a vehicle for hire unless permitted under this chapter. A person is responsible for violations of this chapter by his own conduct, by the conduct of another person if acting with intent to violate this chapter he solicits, encourages, directs, aids, or attempts to aid another person to violate this chapter, or by both.

(f) A person commits an offense if he violates this section. A separate offense is committed each day during which an offense occurs. An offense committed under this section is punishable by a fine of not more than five hundred dollars ($500.00). Prosecution for an offense under this section does not prevent the use of the enforcement remedies provided in section 33-074 of this chapter.
(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14)

Sec. 33-007. Application for operating permit.

To obtain an operating permit, a person shall submit an application to the director in the manner prescribed by this section. The applicant must be the person who will own or operate the proposed ground transportation service or the

chief officer. An applicant shall file with the director a written, sworn application containing the following:

(a) The form of business of the applicant; if the business is a corporation or association, a copy of the documents establishing the business and the name, address and citizenship of each person with a direct interest in the business. Notice of any change in an applicant's form of

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business shall be provided to the department director, within ten (10) business days of the change;

(b) The name, street address, phone number and verified signature of the applicant and of the applicant's proposed business; an applicant shall notify the director, in writing, of any change in the foregoing within ten (10) business days of the change;

(c) A representation of whether the applicant is a citizen of the United States of America by birth or naturalization, or, if alien, evidence of the applicant's legal residence in the United States and of the applicant's legal right to engage in employment therein;

(d) A description of any past business experience of the applicant, particularly in providing ground transportation services.

(e) An identification and description of any revocation or suspension of an operating permit held by the applicant or the applicant's business which occurred prior to the date of filing the application.

(f) The number of vehicles to be used by the applicant in the operation of the proposed ground transportation service. Notice of any change in the foregoing shall be provided to the director, in writing and with supporting documentation as required by the director, within five (5) business days of the change;

(g) A description of each of the vehicles the applicant proposes to use in providing ground transportation services including, but not limited to, each vehicle's year, make, model, type, and seating capacity;

(h) A description of the operations of the proposed ground transportation service and the location of the fixed facilities to be used in the operation;

(i) A management plan including:

(1) A maintenance plan which the applicant shall utilize for the upkeep and replacement of vehicles to be permitted. Such plan may include a maintenance contract with an outside contractor;

(2) A procedure outlining the handling of complaints; and

(3) A drivers training program submitted to the director for approval. The drivers training program must contain;

a. Customer service;

b. Company orientation;

c. Chapter 33 overview (including rules and regulations);

d. Airport operations, including the provisions of chapter 3, article II, of this Code, and the rules and regulations established thereunder;

e. Local sights and location orientation; and

f. Dispatching, to include (if required) meter and radio training.

(j) A description of the proposed insignia and color scheme for the applicant's vehicles and a description of apparel to be worn by the applicant's drivers;

(k) Documentation from an insurance company authorized by this chapter evidencing a willingness to provide, prior to commencement of the proposed service, the insurance required by this chapter;

(l) Documentation evidencing timely payment of all city and county taxes, fees and assessments which have been levied on the business and property to be used in connection with the proposed service;

(m) Written documentation authorizing the release to the city of any and all information which an organization or entity may have concerning the applicant and a release to said organization or entity from all liability which may result from the furnishing of such to the city; and

(n) Such additional information as the applicant desires to include to aid in the determination of whether the requested operating authority should be granted.

(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14; Ord. No. 2016-03-03-0164, § 1(Att. A), 3-3-16)

Sec. 33-008. Prerequisites to issuance.

(a) The authority to grant or deny an application for an operating or vehicle permit is vested with the director, and the director's designee, acting in accordance with the provisions of this chapter.

(b) An applicant for an operating permit has the burden of providing to the satisfaction of the director:

(1) That the applicant is of good character and is qualified to provide the service proposed in the application;

(2) That the proposed ground transportation service complies with the quality and safety standards of this chapter, and of the rules and regulations established by the director;

(3) That the applicant is fit, willing and able to operate the ground transportation service in accordance with the requirements of this chapter, rules and regulations established by the director, provisions of the operating permit, and all other applicable rules, regulations and laws.

(4) Where an applicant has been involved in past criminal activity, that the applicant has otherwise maintained a record of steady employment and good conduct; has supported any dependents; and has paid all outstanding court costs, supervision fees, fines and restitution that may have been ordered in all criminal cases in which the applicant has been convicted; and

(5) Where an applicant is or has been a permit holder in any industry that is regulated by chapter 33, that the applicant has met the requirements of section 33-010 of this chapter.

(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14; Ord. No. 2016-03-03-0164, § 1(Att. A), 3-3-16)

Sec. 33-009. Grant of operating permit; service requirements.

(a) Upon approval of an application for an operating permit by the director, and the execution of a permit agreement pursuant thereto, the director shall promptly issue the operating permit. Within ninety (90) days after receipt of such permit, the holder shall operate a city-wide ground transportation service in accordance with the provisions of this chapter, the operating permit, the permit agreement, and the rules and regulations established by the director, for a period of twenty-four (24) months beginning on the date stated in the permit agreement.

(b) Each holder and dispatch service shall maintain a business office within the county limits of Bexar County, Texas.

(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14; Ord. No. 2016-03-03-0164, § 1(Att. A), 3-3-16; Ord. No. 2016-12-08-0968, § 1(Att. B), 12-8-16)

Sec. 33-010. Denial of operating permit.

(a) If the director, based on an investigation of the application under sections 33-007 and 33-008 of this chapter, determines that good cause exists for denial of the application, the director shall notify the applicant in accordance with section 33-072 of this chapter, of the decision and of the basis therefore. Upon the applicant receiving notice of the director's decision, the applicant may appeal such decision in accordance with section 33-033 of this chapter.

(b) In the case where an applicant has a background of past criminal activity, application denial based solely thereon is warranted if and only if the past criminal activity is directly related to the duties and responsibilities of a holder as more fully described in this chapter. Accordingly, the following shall be considered in making a determination of job-relatedness:

(1) The nature and seriousness of the crime;

(2) The relationship of the crime to the reasons for requiring the city's approval prior to engagement in a ground transportation service;

(3) The extent to which the applicant's engagement in a ground transportation service might offer an opportunity for further criminal activity of the same type as that which the applicant had previously been involved; and

(4) The relationship of the crime to the ability, capacity or fitness required of the applicant to perform the duties and discharge the responsibilities of the ground transportation service, including:

a. The extent and nature of the applicant's past criminal history;

b. The age of the applicant at the time of the commission of the crime;

c. The amount of time that has elapsed since the applicant's last criminal activity;

d. The conduct and work activity of the applicant prior to and following the criminal activity;

e. Evidence of the applicant's rehabilitation or rehabilitative effort while incarcerated or following release; and

f. Other evidence of the applicant's present fitness, including letters of recommendation from: prosecutorial, law enforcement and correctional officers who prosecuted, arrested or had custodial responsibility for the applicant; the sheriff and chief of police in the community where the applicant resides; and any other persons in contact with the applicant.

(c) An application for an operating permit shall be denied where the applicant:

(1) Is under indictment for or has been convicted of criminal homicide including murder, capital murder and manslaughter, but excluding criminally negligent homicide;

(2) Is under indictment, is currently on community supervision including but not limited to probation and deferred adjudication, or has been convicted of any of the following:

a. Multiple offenses involving violence to any person except conduct classified as no greater than a Class C misdemeanor offense under state law;

b. Any offense involving prostitution or the promotion of prostitution;

c. Any offense involving sexual assault, sexual abuse or indecency;

d. Any offense involving the sale or manufacturing of drugs; or

e. Any offense involving driving while intoxicated within five (5) years of the application date or more than one (1) offense involving driving while intoxicated, or a combination of driving while intoxicated and other drug or alcohol related offenses.

(3) Has falsified or materially altered or omitted pertinent information in any governmental record, including an application for an operating permit; or

(4) Has not met the requirements for obtaining an operating permit as set forth in this chapter, rules or regulations established by the director.

(d) An application for an operating permit may also be denied where the applicant is under indictment, is currently on community supervision, including but not limited to probation and deferred adjudication, or has been convicted of any of the following:

(1) Any offense involving fraud or theft;

(2) Any offense involving the unauthorized use of a motor vehicle;

(3) Any violation of state or federal laws regulating firearms;

(4) Any offense involving violence to any person except conduct classified as no greater than a Class C misdemeanor offense under state law;

(5) Any offense involving the use or possession of drugs; or

(6) Any other job-related offense.

(e) An application for an operating permit may be denied where the applicant has a current vehicle fleet that is regulated by any section of chapter 33 and in which they have had any of the following fleet issues with in the previous twelve (12) months;

(1) Has failed to have one hundred (100) percent of their fleet pass the annual inspection;

(2) Has failed to comply with all corrective notices;

(3) Has failed to maintain insurance or bond that complies with chapter 33;

(4) Has had one (1) or more permits revoked; or

(5) Has demonstrated a history of non-compliance with any of the provisions of chapter 33, the rules or regulations established by the director, the permit agreement, or the operating permit.

(f) Upon denial of an application for an operating permit, an applicant shall not be eligible for re-application for a period of twelve (12) months from the date of denial.
(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14)

Sec. 33-011. Amendments to permit agreement/operating permit.

Minor amendments to the permit agreement and operating permit may be made by the director. Amendments that materially change the scope of the permit agreement or operating permit must be applied for in the same manner as the original.
(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14)

Sec. 33-012. Reserved.

Editor's note—Ord. No. 2016-03-03-0164, § 1(Att. A), adopted March 3, 2016, repealed section 33-012 in its entirety. Former section 33-012 pertained to payment of taxes and derived from Ord. No. 2014-12-11-1002, § 1(Att. A), adopted Dec. 11, 2014.

Sec. 33-013. License/permit bond.

Prior to commencement of operations pursuant to this chapter, the holder shall file with the director, as security for compliance under the operating permit, a good and sufficient license/permit bond for each ground transportation service. The form and substance of such license/permit bond shall be subject to approval by the city attorney's office and shall be in the amount hereafter specified in section 33-015 of this chapter (amount of bond). The right to operate under an operating permit shall be conditional upon the existence and maintenance in full force and effect of the license/permit bond herein described.
(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14)

Sec. 33-014. Conditions of bond.

The license/permit bond required by this division shall be conditioned as follows:

(a) That the holder of the operating permit shall pay to the city all amounts due under the terms of this chapter and all fees, costs, damages, and expenses which the city may incur or suffer as a result of the holder's acts or inactions in violation of the requirements of this chapter, any rules or regulations established by the director, any provisions of the operating permit, any provisions of the permit agreement, and all other applicable rules, regulations and laws;

(b) That the holder of the operating permit shall pay all fines, assessments and judgments levied against the holder by any court, by the city treasurer or by direction of city council, and by such other officials authorized to levy such fines, taxes, charges, assessments or judgments; and

(c) That the holder of the operating permit shall perform every duty of a person owning/operating a ground transportation service as required by this chapter, rules or regulations established by the director, and provisions of the permit agreement and operating permit.

(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14)

Sec. 33-015. Amount of bond.

Except as otherwise provided by the holder's operating permit, every license/permit bond required by this division shall be in an amount fixed by the following schedule:

(a) If the holder is authorized to operate five (5) vehicles for hire or less, then the bond shall be in the sum of one thousand five hundred dollars ($1,500.00);

(b) If the holder is authorized to operate at least six (6) but not more than ten (10) vehicles for hire, then the bond shall be in the sum of three thousand dollars ($3,000.00);

(c) If the holder is authorized to operate at least eleven (11) but not more than fifteen (15) vehicles for hire, then the bond shall be in the sum of four thousand five hundred dollars ($4,500.00);

(d) If the holder is authorized to operate at least sixteen (16) but not more than twenty-five (25) vehicles for hire, than the bond shall be in the sum of six thousand dollars ($6,000.00);

(e) If the holder is authorized to operate at least twenty-six (26) but not more than fifty (50) vehicles for hire, then the bond shall be in the sum of seven thousand five hundred dollars ($7,500.00);

(f) If the holder is authorized to operate at least fifty-one (51) but not more than one hundred (100) vehicles for hire, then the bond shall be in the sum of eleven thousand two hundred dollars ($11,200.00); and

(g) If the holder is authorized to operate more than one hundred (100) vehicles for hire, then the bond shall be in the sum of fifteen thousand dollars ($15,000.00).

(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14; Ord. No. 2015-03-05-0152, § 1(Att. A), 3-5-15; Ord. No. 2022-11-03-0845, § 1(Att. C), 11-3-22)

Sec. 33-016. Additional bonds and insurance may be required.

Upon discovery or determination that either the license/permit bond or the public liability and property damage insurance required of the holder under this chapter has become impaired, the director shall require new or additional bonds and insurance as appear to the director as necessary and sufficient to insure faithful performance and payment by such holder, his servants or agents, to persons injured by reason of the neglect of such holder, his servants or agents, or by reason of the violation by such holder, individually or through his servants or agents, of any of the provisions of this chapter, rules and regulations established by the director, provisions of the permit agreement and operating permit, or other applicable rules, regulations and laws.

(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14)

Sec. 33-017. Provisions to be contained in bonds and insurance policies.

Every license/permit bond and insurance policy required under this chapter shall contain an endorsement that termination of the obligations of such bond or expiration, material change in, or cancellation of such insurance policy shall not become effective before thirty (30) days after written notice is received by the city of such termination, expiration, change or cancellation. Every insurance policy required by this chapter shall name the city as an additional insured.

(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14)

Sec. 33-018. Insurance requirements generally.

(a) Prior to commencement of operations pursuant to this chapter the holder shall produce and furnish to the director, and thereafter keep in

full force and effect, a policy of public liability and property damage insurance. Such policy of insurance shall be in the amount hereafter specified in this chapter and shall be subject to approval by the city risk manager. Every such policy shall insure all the vehicles permitted by the holder in the vehicle for hire service authorized in the operating permit. Such policy shall inure to the benefit of any person who shall be injured or who shall sustain property damage as a result of the negligence of the holder or his servants or agents. The insurer shall be obligated to pay all final judgments which may be rendered on behalf of the public for injury or damage resulting to persons or property from the negligent operation of the holder's ground transportation service.

(b) Every policy of insurance shall be issued by an insurance company with a minimum A.M. Best rating of B+ and authorized to do business in Texas.

(c) Failure to procure and keep in full force and effect an insurance policy from a company that has an A.M. Best rating of B+ or above and that meets the minimum amount of insurance requirements under this chapter shall result in the suspension of the holder's operating permits. (Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14; Ord. No. 2015-03-05-0152, § 1(Att. A), 3-5-15; Ord. No. 2022-11-03-0845, § 1(Att. C), 11-3-22)

Secs. 33-019—33-024. Reserved.

Sec. 33-025. Renewal of operating permit.

(a) The operating permit shall be renewed unless the director determines, before the renewal date, that good cause exists to deny the renewal based on documentation:

(1) That the holder is in noncompliance or has demonstrated a history of noncompliance with the provisions of this chapter, the rules and regulations established by the director, the permit agreement, or the operating permit;

(2) That the holder is neither fit, willing, nor able to continue to operate the ground transportation service in accordance with the provisions of this chapter, the rules and regulations established by the director, the permit agreement, or the operating permit;

(3) That the holder, since the date of the execution of the original permit agreement:

a. Has been convicted of any felony:

b. Has had his felony probation, parole or mandatory supervision revoked;

c. Has falsified or materially altered or omitted pertinent information in any governmental record, including an application for permit renewal; or

d. Has not met the requirements for permit renewal as set forth in this chapter;

(4) That the holder, since the date of execution of his original permit agreement has been convicted or spent time in jail or prison for a conviction of any of the offenses listed in section 33-010 of this chapter;

(5) That public convenience and necessity do not require the continued operation of the ground transportation service;

(6) That a material change to the terms and conditions of the current permit agreement is requested or required;

(7) That good cause exists to deny renewal; or

(b) If the director decides to deny the application for renewal of an operating permit, the director shall notify the holder of such decision, giving specific reasons for the basis of the denial, in accordance with section 33-072 of this chapter. Upon the holder receiving notice of the director's decision, the holder may appeal such decision in accordance with section 33-033 of this chapter.

(c) If the operating permit expires at no fault of the holder before a ruling either on the approval or denial of the renewal, then the holder may continue to operate the ground transportation service pending a final decision. (Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14; Ord. No. 2016-03-03-0164, § 1(Att. A), 3-3-16)

Secs. 33-026, 33-027. Reserved.

Sec. 33-028. Operation contingent upon payment of fees.

Notwithstanding any other provisions of this chapter or any operating authority granted hereunder, the number of vehicles for hire which a holder shall be authorized to operate shall not exceed the number of vehicles for hire for which such holder shall have paid all charges as required by this chapter.
(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14)

Sec. 33-029. Drug free workplace.

(a) Upon application for or request for renewal of an operating permit, each holder or applicant shall deliver to the director a statement certifying that the holder or applicant has established for its employees and drivers a drug free workplace policy. If this statement is not delivered to the director, the director or his designated agent may deny the application or renewal and may deny approval of the driver for whom the holder failed to deliver the statement.

(b) Each holder shall enforce the drug free workplace policy it has established and provide proof that drivers are being tested to the director within ten (10) days of:

(1) Receipt of a written request for such proof from the director whenever the director has good cause to believe that production of such proof is in the best interest of the public; or

(2) The first date on which any new driver operates a vehicle under the holder's operating permit.

(c) The purpose of this provision is to protect public safety by deterring the unsafe use of drugs and alcohol by drivers of vehicles for hire, by requiring each permit holder to establish certain standards for drug testing of employees and drivers, known as a drug free workplace. Uniform standards and requirements regarding testing of employees, licenses and job applicants must be put into place to protect the rights of individuals. The minimum standards set forth in this provision helps ensure public safety is promoted without unduly infringing on the privacy and dignity of employees and drivers.

At a minimum, the holder must adopt in writing a detailed policy setting forth the specifics of such a program which includes the utilization of the test for alcohol and other substances listed under subsection (e) of this section, and that includes at least the following information:

(1) A statement of the holder's policy regarding drug and alcohol use by employees and drivers. The policy shall include a zero-tolerance statement for which termination or cancelation of a drivers contract will result if a positive test result is obtained following an accident involving a permitted vehicle. Declining a test shall be considered the same as a positive test result.

(2) The job classifications for which employees, drivers and job applicants are subject to testing;

(3) The circumstances under which testing may be required;

(4) The substances as to which testing may be required;

(5) The testing methods and collection procedures to be used;

(6) The consequences of a refusal to participate in the testing;

(7) The adverse action that may be taken based on the testing procedure or results;

(8) The right of an individual to explain in confidence positive test results;

(9) The right of the individual to obtain all information related to the testing of that individual;

(10) Confidentiality requirements for the testing;

(11) The available appeal procedures, remedies and sanctions; and

(12) The substance abuse programs for education and treatment available to the individual.

(d) The holder shall post notice of the policy in prominent employee and driver access areas and give a written copy of the policy to each driver, applicant and affected employee. Notice shall be posted and the policy distributed any time the policy is changed.

(e) At a minimum, a holder shall insure that the testing complies with either the Texas Department of Transportation 5-panel urine drug test standards or tests for the following substances:

Amphetamines;

Cannabinoids;

Cocaine;

Phencyclidine;

Methaqualone;

Opiates;

Barbiturates;

Benzodiazepines;

Synthetic Narcotics; and

Methadone.

All laboratory security, chain of custody, transporting and receiving of specimens, specimen processing, retesting, storage of specimens, instrument calibration and reporting of results shall be in accordance with the National Institute on Drug Abuse standards.

(f) At a minimum, every holder shall insure that the following types of testing are included:

(1) Post-accident testing: all drivers shall be tested immediately after any automobile accident resulting in outside medical attention being required for any party involved, a fatality, or property or vehicle damage, or if the driver received a citation. The driver shall be tested for alcohol during this test.

(2) Testing for cause: if reasonable suspicion exists to believe the employee or driver is under the influence of drugs or alcohol and could adversely affect performance of duties and responsibilities.

(3) Applicant testing: any person applying to drive under the holder's operating permit to shall submit to testing no more than seven (7) days prior to the day on which said driver first operates a vehicle in connection with the holder's operating permit. Pedicab and group cycle drivers shall be exempt from applicant drug testing.

(4) Random testing. Because there is a likelihood that a driver may harm the public if impaired by alcohol or drug use, all drivers shall be subject to random testing. Other employees or drivers may be subject to random testing if injury to the public may occur if the employee or driver is impaired by drug or alcohol use.

(5) Testing after prior use. Employees or drivers who have received a confirmed positive test result within the past year may be required to submit to testing at reasonable intervals for a period of one (1) year after the test.

(6) Drivers that do not comply with or refuse a test shall constitute a positive test results.

(7) The director may request for a test for any of the above reasons at the permit holders expense. All results for all testing shall be sent the director within twenty-four (24) hours of testing. If a driver has a positive test, the results should also include documentation of actions taken by the company.

(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14; Ord. No. 2016-03-03-0164, § 1(Att. A), 3-3-16)

Sec. 33-030. Persons with disabilities.

(a) Every holder and driver shall comply with all applicable requirements of the Americans with Disabilities Act of 1990.

(b) A holder or driver.

(1) Shall not discriminate against persons with disabilities in providing ground transportation services;

(2) Shall not discriminate against persons with disabilities by actions including, but not limited to, refusing to provide ground

transportation service to persons with disabilities who are capable of using that service, refusing to assist with the stowing of mobility devices, and charging higher fares or fees for carrying persons with disabilities and their equipment than are charged to other persons;

(3) Shall not require persons with disabilities to use designated priority seats, if the person does not choose to use these seats;

(4) Shall not impose additional or special charges, fares or fees, not authorized by this chapter, on provisions or services necessary to accommodate persons with disabilities, including persons who use wheelchairs;

(5) Shall not require that persons with disabilities be accompanied by an attendant;

(6) Shall not refuse to serve persons with disabilities or require anything contrary to this chapter because an insurance company conditions coverage or rates on the absence of persons with disabilities or requirements contrary to this chapter;

(7) Shall permit service animals to accompany persons with disabilities in vehicles;

(8) Shall not prohibit persons with disabilities from traveling with a respirator or portable oxygen supply, consistent with department of transportation rules on transportation of hazardous materials; and

(9) Shall ensure that adequate time is provided to allow persons with disabilities to complete boarding and disembarking from the vehicle.

(c) A holder, driver and dispatch service shall make available to persons with disabilities adequate information concerning ground transportation services. This obligation includes making adequate communications capacity available, through accessible formats and technology, to enable persons with disabilities to obtain information and schedule service.

(d) Ground transportation services, and their holders, drivers and dispatch services providing on-demand vehicles for hire, including taxicabs and transportation network companies:

(1) Are not required to purchase, lease or make available wheelchair accessible vehicles;

(2) Upon request, shall ensure that a person with a disability who requests a wheelchair accessible vehicle receives such a vehicle, if that ground transportation service has such vehicles available:

a. The ground transportation service may require up to forty-eight (48) hours advance notice to provide this service;

b. If the person with a disability does not provide the advance notice, the ground transportation service shall nevertheless provide the service if it can do so by making a reasonable effort; and

c. If the ground transportation service does not have wheelchair accessible vehicles, then the ground transportation service is required to provide contact information to ground transportation services that have such vehicles;

(e) It is not discrimination under this chapter for an entity to refuse to provide service to a person with disabilities because that person engages in violent, seriously disruptive, or illegal conduct. However, a ground transportation service shall not refuse to provide service to a person with disabilities solely because the person's disability results in appearance or involuntary behavior that may offend, annoy or inconvenience another person.

(f) Training requirements.

(1) Holders shall ensure that drivers are trained to proficiency, as appropriate to their duties, so that they operate vehicles and equipment safely, and properly assist and treat persons with disabilities who use the ground transportation service in

a respectful and courteous way, with appropriate attention to the difference among persons with disabilities.

(2) Dispatch services shall ensure that all personnel are trained on the types of vehicles that are available, on ground transportation services in San Antonio that provide the service being requested, and how to provide service in a respectful and courteous way to a person with disabilities.

(g) Enforcement. A holder, driver or dispatch service who violates a provision of this chapter, or who fails to perform an act required by this chapter shall be subject to suspension or revocation of the holder, driver, vehicle and dispatch service permit, under the procedures established in sections 33-034(b), 33-035(c), 33-042(b)(3) and 33-033.
(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14)

Secs. 33-031, 33-032. Reserved.

DIVISION 3. REVOCATION/SUSPENSION OF PERMITS

Sec. 33-033. Right to appeal director's decisions; hearing officer established; procedure for appeals established; actions.

(a) A holder or driver may appeal to a hearing officer a decision by the director to revoke, suspend, or deny an operating permit, vehicle permit, or driver permit. The city manager shall appoint a hearing officer for such appeals. Such hearing officer is hereby authorized to affirm, modify, or reverse the director's decisions which shall not become final unless affirmed by the hearing officer.

(b) Upon the holder or driver receiving notice of the director's decision, said holder or driver shall have ten (10) business days from the date of receipt thereof during which to appeal such decision to the hearing officer. The appeal shall be in writing, accompanied by an appeal fee of one hundred dollars ($100.00), and directed to the director. If no appeal is made to the hearing officer within ten (10) business days after receipt of the director's decision, the director's decision shall become final.

(c) Upon revocation, suspension, or denial of a vehicle permit or driver permit by the director, the holder or driver shall immediately cease operation of such service or vehicle, whether or not an appeal is filed. This section shall not apply in the case of a vehicle which may be operated for ten (10) days following the director's action under subsection 33-070(d) of this chapter.

(d) Upon revocation, suspension or denial of an operating permit by the director, the holder shall cease operations, except that a holder who appeals the suspension or revocation of an operating permit and is in compliance with the bond and insurance requirements of this chapter may continue to operate the service until the final decision on the appeal. Operating permit suspensions and denials shall be appealed to a hearing officer. Operating permit revocations shall be appealed to city council.

(e) Upon the scheduling of the hearing officer's review of the director's decision, the holder or driver shall be given an opportunity to appear before said officer and present to him any information, including witnesses, which may be of assistance in arriving at a decision on the matter.

(f) Upon action being taken by the hearing officer, the director shall promptly and without delay act in accordance therewith and pursuant to the directions thereof.

(g) If any such permits expire at no fault of the holder or driver before a ruling on the revocation or suspension of such permits, the holder or driver may continue to operate the ground transportation service or the vehicle pending a final decision on the matter. The holder or driver, however, shall immediately cease operation of such service or vehicle upon revocation or suspension of any such permits by the hearing officer. A suspension of any such permits shall not affect the expiration date.
(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14)

Sec. 33-034. Revocation and suspension of operating permit.

(a) The director may revoke an operating permit, or suspend such operating permit for a period not to exceed sixty (60) days, where the director has determined it is in the best interest of the public or where the holder:

(1) Since the date of issuance of his operating permit, has been convicted or placed on community supervision, including but not limited to probation and deferred adjudication, for violations of any city, state, or federal law where said violation relates directly to the duties and responsibilities of the holder including but not limited to the violations listed in section 33-010 of this chapter;

(2) Since the date of issuance of the operating permit, has been indicted for criminal homicide, including murder and manslaughter but excluding criminal negligent homicide, or for any of the offenses listed in section 33-010 of this chapter;

(3) Has under his employment or contract a driver whose drivers permit has been suspended or revoked under the provisions of this chapter, or where a holder has failed to take reasonable action against one of the holder's drivers;

(4) Has failed to comply with a correction order issued to him by the director within the time specified in the order;

(5) Has failed to comply with this chapter or any rules, regulations, orders or directives;

(6) Has substantially breached the terms of the permit agreement;

(7) Has failed to pay a permit fee at the time it was due;

(8) Has failed to pay a monetary penalty at the time it was due;

(9) Has failed to comply with the license/permit bond requirements of this chapter;

(10) Has failed to comply with the insurance requirements of this chapter;

(11) Has transferred an operating permit without the city's approval;

(12) Has allowed the operation of a ground transportation service without the city's approval;

(13) Has failed to place in operation pursuant to the provisions of this chapter the number of vehicles authorized in the permit agreement within one hundred eighty (180) days of the date of the issuance of the operating permit;

(b) The decision of whether to suspend or revoke an operating permit, while vested in the director, shall be based on the following considerations:

(1) The relationship of the violation to a holder's ability, capacity or fitness to provide a safe and reliable service;

(2) The relationship of the violation to the city's interest in protecting the public safety and welfare;

(3) A holder's willingness or ability to promptly come into compliance with any provision that is the basis for the suspension or revocation of the operating permit; and

(4) The number or frequency of similar violations attributed to the holder or the holder's company.

(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14; Ord. No. 2022-11-03-0845, § 1(Att. C), 11-3-22)

Sec. 33-035. Revocation and suspension of vehicle permit.

(a) The director shall revoke or suspend a vehicle operating permit for a period not to exceed sixty (60) days, when the director has determined:

(1) That the holder has failed to make a vehicle for hire available for inspection when so ordered by the city in accordance with section 33-062 of this chapter;

(2) That the vehicle for hire poses a serious threat to the safety of the public;

(3) That the holder has failed to comply with a correction order issued in connection with a vehicle for hire within the time specified in such order;

(4) That a vehicle for hire is operated by a driver not authorized by the director to operate such vehicle; or

(5) That a vehicle with a rated seated capacity of more than fifteen (15) passengers does not have a valid registration with the state department of motor vehicles as a commercial vehicle.

(b) Upon revocation of a vehicle permit by the director, the director shall amend the permit agreement of the holder to reduce the number of vehicles authorized by the number of vehicles for which vehicle permits were revoked.

(c) The decision of whether to suspend or revoke a vehicle operating permit, while vested in the director, shall be based on the following consideration:

(1) The relationship of the violation to a holder's ability, capacity, or fitness to provide a safe and reliable service;

(2) The relationship of the violation to the city's interest in protecting the public safety and welfare;

(3) A holder's willingness or ability to promptly come into compliance with any provision that is the basis for the suspension or revocation of the operating permit; and

(4) The number or frequency of similar violations attributed to the holder or his company.

(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14; Ord. No. 2016-12-08-0968, § 1(Att. B), 12-8-16)

Sec. 33-036. Operating permit re-application.

Upon revocation of an operating permit, a holder shall not be eligible for re-application for a period of forty-eight (48) months from the date of revocation.

(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14)

Sec. 33-037. Penalties.

(a) A person commits an offense if he knowingly operates, allows to be operated, or causes to be operated, a ground transportation service as defined in section 33-003 of this chapter, or any other service providing vehicles for hire, or if he transports a passenger for hire from within the city after the operating permit of such person has been revoked by the director.

(b) A person commits an offense if he knowingly represents a vehicle as a vehicle for hire or uses or offers the use of such vehicle in a ground transportation service after the vehicle permit for such vehicle has been revoked by the director.

(c) Violations under subsections (a) and (b) of this section are punishable by a fine of not more than five hundred dollars ($500.00). Each day on which a violation occurs is a separate offense. Prosecution for an offense under this section shall not prevent the use of any other enforcement remedies available under this chapter.

(d) It is a defense to a violation under this section that the permit has been reinstated by the director or that the ten-day period provided for in section 33-033 of this chapter has not expired.

(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14)

Sec. 33-038. Reserved.

DIVISION 4. DRIVERS PERMIT

Sec. 33-039. Drivers permit.

In accordance with the terms and provisions of this chapter, every person before driving a vehicle for hire within the city, shall obtain a drivers permit. A drivers permit shall be valid for forty-eight (48) months from the date of issuance.

(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14; Ord. No. 2016-03-03-0164, § 1(Att. A), 3-3-16)

Sec. 33-040. Drivers permit authorized companies.

(a) A holder may not employ, contract with, or otherwise allow a person to drive a vehicle for hire owned or operated by the holder unless such

person has a valid drivers permit and has an authorized company listed on the drivers permit.

(b) A driver shall not driver for or contract with a company that is not listed as an authorized company on his or her drivers permit.
(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14)

Sec. 33-041. Investigation of applicant; records to be considered; qualifications; issuance and denial.

(a) A holder may not allow a person who does not have a current and valid drivers permit to operate a vehicle for hire. If a holder wants to hire a person without a drivers permit, or provide for the renewal of a drivers permit, the holder is responsible for assisting such person in obtaining a drivers permit. The holder shall conduct an investigation at no expense to the city concerning the character, experience and qualifications of the applicant to determine whether or not that applicant is fit, willing, and able to operate a vehicle for hire in a manner consistent with the general welfare of the public and in accordance with the requirements of this chapter, rules and regulation established by the director, and all other applicable laws, rules and regulation.

(b) The holder shall confirm, obtain, and maintain evidence for submission to the city upon request pursuant to section 33-055, that the applicant meets all the requirements in this section. The holder shall attest through an enrollee/transfer slip, on a form provided by the city, that the applicant is in compliance with the following:

(1) Is eighteen (18) years of age or older;

(2) Is a citizen of the United States of America by birth or naturalization, or if an alien, submit evidence of legal residence in the United States and legal right to engage in employment herein;

(3) Possesses a valid Texas drivers license required for the class of vehicle to be operated by the applicant as required by V.T.C.A. Transportation Code §§ 521.081 and 521.082, or posses an active Department of Defense ID card and a current and valid drivers license from another state.

(4) Is able to read and speak the English language;

(5) Has been added to or remains on the permit holders insurance policy;

(6) Has completed a drivers training program that has been approved under section 33-007 of this chapter;

(7) Has a negative drug test as required under section 33-029 of this chapter:

(8) Has successfully completed any other training outlined in the rules and regulations established by the director; and

(9) Has provided a copy of the applicant's DD-214, if the applicant has prior military service;

(c) An applicant at the time of application and at the applicant's expense shall:

(1) Provide the director with the applicant's residence, street, address, and a valid phone number; an applicant shall notify the director of any changed thereto within five (5) business days of the change;

(2) Execute an authorization in writing for the release by the city to an organization or entity of any and all information which the city may have concerning the applicant, including, but not limited to, criminal history information, and a release of the city for all liability which may result from the furnishing of such to an organization;

(3) Execute an authorization in writing for the release to the city by any organization or entity of any and all information, without limitation, which the organization or entity may have concerning the applicant, and a release of the organization or entity and the city from all liability which may result from the furnishing of such by the organization or entity;

(4) Pay any fees required by this chapter.

(d) An applicant may be issued a drivers permit where the applicant:

(1) Has complied with subsections 33-041(a), (b), and (c); and

(2) Has paid for and complied with the requirements for a fingerprint criminal history background check, approved by the director.

(e) An application for a drivers permit shall be denied where the applicant:

(1) Is under indictment for or has been convicted of criminal homicide including murder, capital murder and manslaughter, but excluding criminally negligent homicide;

(2) Has been convicted or has been placed on community supervision, including but not limited to probation and deferred adjudication, of four (4) or more moving violations of the traffic laws of this or any other city or state within the 12-month period immediately preceding the date of application;

(3) Has falsified or materially altered or omitted pertinent information in any governmental record, including an application for a drivers permit; or

(4) Has not met the requirement for obtaining a drivers permit as set forth in this division.

(f) An application for a drivers permit may also be denied where the applicant is under indictment, is currently on community supervision, including but not limited to probation and deferred adjudication, or has been convicted of any of the offenses listed in section 33-010 of this chapter.

(g) If the director disapproves an application for a drivers permit, then the director shall notify the applicant, in accordance with section 33-072 of this chapter, of the decision and of the basis for the decision.

(h) Upon the applicant receiving notice of the decision of the director, the applicant may appeal such decision as provided by and in accordance with section 33-033 of this chapter.

(i) In the case where an applicant has a background of past criminal activity, drivers permit denial based solely thereon is warranted if and only if the past criminal activity is directly related to the duties and responsibilities of a driver as more fully described in this chapter. Accordingly, the factors set forth in section 33-010 of this chapter shall be considered in making a determination of job-relatedness. In this regard, however, it shall be the applicant's responsibility to secure and provide proof that applicant has otherwise maintained a record of steady employment and good conduct, that applicant has supported applicant's dependents, and that applicant has paid all outstanding court costs, supervision fees, fines and restitution as may have been ordered in any criminal cases.

(j) Should the hearing officer affirm the decision of the director to deny the application for a drivers permit, an applicant shall not be eligible for re-application for a period twelve (12) months from the date of the denial, or in the case of an appeal, from the date the appeal is affirmed.
(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14; Ord. No. 2016-03-03-0164, § 1(Att. A), 3-3-16)

Sec. 33-042. Revocation and suspension of drivers permit.

(a) A drivers permit may be revoked for any of the following:

(1) Suspension or revocation of the state drivers license;

(2) Two (2) or more suspensions pursuant to the provisions of this chapter within any 12-month period;

(3) Three (3) or more convictions or adjudications of the same provision of this chapter or rules and regulations established by the director, within any 12-month period;

(4) Four (4) or more convictions or placements on community supervision, including but not limited to probation and deferred adjudication, of any moving viola-

tion of the traffic laws of this or any other city or state within any 12-month period;

(5) Has been convicted or placed on community supervision, including but not limited to probation and deferred adjudication, for any felony since the date of issuance of the drivers permit;

(6) Revocation of felony community supervision, probation, parole or other supervision since the date of issuance of the drivers permit;

(7) Falsification or material alteration or omission of pertinent information in any governmental record, including an application for a driver permit or for renewal thereof;

(8) Failure to pay a monetary penalty required to be paid for a violation of this chapter within thirty (30) days of the date said penalty becomes due;

(9) A positive drug test as outlined in section 33-029 of this chapter, on or off duty, or a positive drug or alcohol test while on duty; or

(10) Failure to keep and maintain current documentation as outlined in this chapter.

(b) A drivers permit may be revoked or suspended for a period not to exceed sixty (60) days, when the director has determined it is in the best interest of the public to do so, or where the driver:

(1) Since the date of issuance of the drivers permit, has been convicted or has been placed on community supervision, including but not limited to probation and deferred adjudication, for violation of any city, state or federal law where said violation relates directly to the duties and responsibilities of the driver including, but not limited to, the violations listed in section 33-010 of this chapter;

(2) Since the date of issuance of the drivers permit has been indicted for homicide, including murder, capital murder and manslaughter, but excluding criminally negligent homicide, or for any of the offenses listed in section 33-010 of this chapter; or

(3) Has failed to comply with this chapter.

(c) A suspension of a drivers permit does not affect the expiration date of that drivers permit.

(d) If the director determines that good cause exists pursuant to this chapter, to revoke or suspend a drivers permit, then the director shall notify the driver of his decision, in accordance with section 33-072 of this chapter.

(e) Upon receiving notice of the decision of the director, the driver may appeal such decision as provided by and in accordance with section 33-033 of this chapter.
(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14)

Sec. 33-043. Reinstatement of drivers permit.

Upon revocation of a drivers permit, a driver shall not be eligible to re-apply for a period of twelve (12) months from the date of revocation, or in the case of an appeal, from the date the appeal is affirmed.
(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14)

Sec. 33-044. Display of permit.

A driver shall at all times keep his/her drivers permit in the driver's possession and shall allow the director, a peace officer, and any other person authorized to enforce the provisions of this chapter, to examine said permit upon request.
(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14)

Sec. 33-045. License file to be kept.

A drivers permit file shall be kept and maintained, in a location determined by the director, of all persons to whom such permit have been issued.
(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14; Ord. No. 2015-03-05-0152, § 1(Att. A), 3-5-15; Ord. No. 2022-11-03-0845, § 1(Att. C), 11-3-22)

Sec. 33-046. Voidance of drivers permit.

(a) If the license required by the state for the class of vehicle operated by a driver is suspended or revoked, then the drivers permit issued under this chapter automatically becomes void.

(b) A driver shall, within three (3) days of any expiration, suspension or revocation of the driver's state license, so notify the director and the holder for whom he/she drives and surrender his drivers permit to the director.
(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14; Ord. No. 2016-03-03-0164, § 1(Att. A), 3-3-16)

Editor's note—Ord. No. 2016-03-03-0164, § 1(Att. A), adopted March 3, 2016, repealed section 33-046 in its entirety and renumbered section 33-047 as section 33-046. Former section 33-046 pertained to drivers permit renewal and derived from Ord. No. 2014-12-11-1002, § 1(Att. A), adopted Dec. 11, 2014.

Sec. 33-047. Driver lists to be furnished and maintained.

Within ten (10) calendar days of the director's request, a permit holder shall furnish a current list of permitted drivers and the drivers' current phone number(s).
(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14; Ord. No. 2016-03-03-0164, § 1(Att. A), 3-3-16)

Editor's note—Ord. No. 2016-03-03-0164, § 1(Att. A), adopted March 3, 2016, renumbered section 33-048 as section 33-047.

Sec. 33-048. Reserved.

Sec. 33-049. Transfer of drivers permit.

A driver may transfer from one (1) permitted company to another; however, a driver shall not drive for a new company prior to the listing of this new company on the drivers permit.

(a) A driver shall not be eligible to transfer between companies until the driver has:

(1) Provided an enrollee/transfer slip, on a form approved by the director, that has been signed by the authorized representative of the hiring/contracting company(s), that attests to the drivers qualifications under section 33-041; and

(2) Paid all fees required by this chapter.
(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14; Ord. No. 2016-09-15-0697, § 2(Att. B), 9-15-16)

DIVISION 5. HOLDER AND DRIVER REGULATIONS

Sec. 33-050. Effect of amendments.

In the event that the city determines that it is in the best interests of the public to do so, and the city amends this chapter; any permit agreement, drivers permit, and vehicle permit granted pursuant to this chapter will become subject to the amended chapter upon the effective date of the amendment.
(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14)

Sec. 33-051. Holder's duty to comply.

(a) In the operation of a ground transportation service, a holder shall comply with the terms and conditions of the holder's permit agreement and shall comply with all aspects of chapter 33, and the rules and regulations. Except to the extent expressly provided otherwise by the permit agreement, the holder shall comply with this chapter, the director's interpretations of the provisions herein, rules and regulations established by the director, and other laws applicable to the operation of a vehicle for hire.

(b) Upon written notice by the director of a violation by a driver or employee, a holder who allows such driver or employee to drive a vehicle for hire while in violation becomes responsible and liable to the city for all fees, penalties, and license revocations incurred by the driver or employee because of a failure to comply with this chapter, rules and regulations established by the director, and other laws applicable to the operation of a vehicle for hire.

(c) A holder shall establish a policy and take action to discourage, prevent and correct violations of this chapter by drivers who are employed or contracted by the holder.

(d) A holder shall not permit a driver who is employed or contracted by the holder to operate any vehicle for hire if the holder knows or has

reasonable cause to suspect that the driver has failed to comply with this chapter, the rules and regulations established by the director, or other applicable law.
(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14; Ord. No. 2016-03-03-0164, § 1(Att. A), 3-3-16)

Sec. 33-052. Holder's duty to enforce compliance by drivers.

(a) A holder shall establish a policy and take action to discourage, prevent and correct violations of this chapter by drivers who are employed by the holder.

(b) A holder shall not permit a driver to operate a vehicle for hire if the holder knows or has reasonable cause to suspect that the driver has failed to comply with this chapter, the rules and regulations established by the director, or other applicable law.
(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14)

Sec. 33-053. Notification of change of address or ownership.

A holder commits a violation if the holder:

(a) Fails to notify the director within five (5) business days of a change in the address or telephone number of the holder; or

(b) Changes the form of the business or officers of the corporation of the ground transportation service from that originally submitted, without a request to amend the operating permit that is approved by the director.

(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14)

Sec. 33-054. Holders responsible for fitness of drivers.

(a) Every holder operating a ground transportation service in the city shall employ or contract as drivers only persons who are physically and mentally fit and who have sufficient experience and training to operate a vehicle in a safe and proper manner. It shall be the sole responsibility of the holder to employ or contract only those drivers who are qualified under this chapter to obtain a drivers permit and who are familiar with those streets and addresses within the city over which they may operate. The employment or contracting of any driver shall be subject to the driver's obtaining a temporary or permanent drivers permit.

(b) Every holder is charged with knowledge of the contents of the drivers file of all drivers whom he employs and with whom he contracts. The director shall consider a holder's continued employment or contracting of any driver whose file shows a lack of mental, emotional or temperamental capacity to be a safe and reliable driver, when reviewing such holder's request for a grant or renewal of an operating permit.
(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14; Ord. No. 2016-03-03-0164, § 1(Att. A), 3-3-16)

Sec. 33-055. Information and data to be kept, maintained, and made available for inspection.

Each holder may maintain at the business office information and data on his ground transportation service business, drivers and operations, including the following specific requirements:

(a) Accurate records, reports, receipts, driver manifests and other operating information and shall be kept and maintained in the business office for at least four (4) years after the date the information was first recorded, and all such documents shall be made available for examination at all reasonable times by the director;

(b) Every holder shall keep complete records on employees and drivers, bonds, and insurance policies.

(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14; Ord. No. 2016-03-03-0164, § 1(Att. A), 3-3-16; Ord. No. 2016-12-08-0968, § 1(Att. B), 12-8-16)

Editor's note—Ord. No. 2016-03-03-0164, § 1(Att. A), adopted March 3, 2016, changed the title of section 33-055 from "Information and data to be kept and maintained two (2) years; records to be made available for inspection" to "Information and data to be kept, maintained, and made available for inspection." This historical notation has been preserved for reference purposes.

Sec. 33-056. Appearance of drivers; drivers uniforms.

It shall be the responsibility of every permit holder to require that a driver employed or contracted wear clean and neat attire, as appropriate to the job duties performed, and to display proper identification. Uniforms and dress code should be professional. Those not in uniforms should dress in a way that is conducive to a professional environment. Non-uniformed clothing shall be free of obscenities, rude messages, and political statements.

(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14; Ord. No. 2016-12-08-0968, § 1(Att. B), 12-8-16)

Sec. 33-057. Periodic appearance in person by holders and drivers.

Upon request and reasonable notice, holders and drivers shall appear, in person, before the director.

(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14)

Sec. 33-058. Disposition of property left in vehicles for hire.

A driver shall return to the property owner without delay, any luggage, merchandise or other property left in a vehicle for hire. If the owner is not known, the driver shall immediately deliver to the holder employing or contracting them, any property left in the vehicle with a complete written report as to when it was left in the vehicle and the circumstance relating thereto. The holder shall tag the property so delivered and attach to it a copy of the driver's written report and, if its owner is not or cannot be located, shall turn the property over to the police department no later than thirty (30) days after its discovery in the vehicle.

(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14; Ord. No. 2016-12-08-0968, § 1(Att. B), 12-8-16)

Secs. 33-059—33-061. Reserved.

DIVISION 6. VEHICLES AND EQUIPMENT

Sec. 33-062. General safety requirements and inspections.

(a) The city may by ordinance, rule or regulation establish requirements for size, condition and accessories of a vehicle for hire used by a holder.

(b) Holders for limousine, tour, and charter services, and taxicabs, shall have each vehicle inspected prior to operation and yearly thereafter in accordance with established inspection guidelines and standards of the city. Vehicles with a rating capacity of sixteen (16) or more passengers that are registered with the Texas Department of Transportation shall be exempt.

(c) The director shall inspect pedicabs, group cycles, motorbike sidecars, and equine-drawn carriages yearly, in accordance with established inspection guidelines and standards of the city, before such vehicle is placed in service, and upon passage of any such inspection, the director shall affix to the vehicle for hire a vehicle permit. The director may inspect a vehicle for hire at any other time which the director determines to be reasonable and necessary for enforcement of compliance with the provisions of this chapter and all other applicable rules, regulations, and laws.

(d) No person shall operate a vehicle for hire which has attached thereto an expired vehicle permit.

(e) It shall be a violation for a person to forge, alter, deface or counterfeit a vehicle permit; it shall also be a violation for a person to have in his possession any vehicle permit which has been forged, altered, defaced or counterfeited.

(f) A holder shall make a vehicle for hire available for inspection when ordered by the city. If a holder fails to make a vehicle for hire available for inspection when so ordered, said vehicle shall be immediately suspended from service for up to thirty (30) days. After thirty (30) days, if a holder has failed to make a vehicle for hire available for inspection as ordered by the city, the director shall initiate the revocation of the vehicle permit of said vehicle as authorized by section 33-035 under this chapter.

(g) If a holder makes a vehicle for hire available for inspection when so ordered, and if the director determines that said vehicle is in violation of any of the provisions of this chapter or other applicable rules, regulations and laws,

then the director shall issue a correction order or vehicle inspection report to said holder as provided by section 33-070 of this chapter.

(h) The holder shall have ten (10) days from the date of the director's decision to immediately remove a vehicle from service or from the date of receipt of a correction order to request a hearing before the director, in writing and addressed to the director, and to present to the director any additional information, including inspection reports from mechanics retained by the holder, which may aid the director in his determination whether to affirm or reverse the director's initial determination.

(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14; Ord. No. 2016-03-03-0164, § 1(Att. A), 3-3-16; Ord. No. 2016-12-08-0968, § 1(Att. B), 12-8-16; Ord. No. 2022-11-03-0845, § 1(Att. C), 11-3-22; Ord. No. 2024-12-12-0998, § 1, 12-12-24)

Sec. 33-063. Required equipment.

A holder or driver shall, at all times, provide and maintain in good operating condition the following equipment and requirements for each vehicle for hire:

(a) Except on open-air buses and pedicabs, an air conditioner;

(b) Except on open-air buses and pedicabs, a heater;

(c) An ABC chemical-type fire extinguisher of at least two and one-half (2.5) pounds located in the area of the vehicle specified in the inspection guidelines established by the director;

(d) Evidence of insurance required by this chapter;

(e) A vehicle or temporary permit placed inside the vehicle's windshield as designated by the director or, where the vehicle has no windshield, at the location designated by the director;

(f) Any other equipment required to comply with all applicable federal and state vehicle and motor vehicle safety standards; and

(g) Any other special equipment that the director determines to be necessary for the service to be operated as outlined in the inspection guidelines established by the director.

(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14; Ord. No. 2016-03-03-0164, § 1(Att. A), 3-3-16)

Secs. 33-064—33-066. Reserved.

Sec. 33-067. Substituted or replaced vehicles for hire.

Any vehicle for hire within the total number of vehicles authorized by the permit agreement and operated by a holder may be substituted or replaced upon completion of the following requirements:

(a) Written notification to the director of the proposed replacement;

(b) Documentation evidencing the make, model, type, seating capacity, ownership, identification number and registration of the replacement vehicle as well as of the vehicle for which replacement is being proposed;

(c) Documentation from the holder's insurance company evidencing a willingness to provide the insurances required by this chapter on the replacement vehicle;

(d) Documentation evidencing timely payment of all city taxes, fees and assessments which have been levied on the replacement vehicle;

(e) Inspection by the city of the replacement vehicle prior to placement of said vehicle into service;

(f) Return to the director of the vehicle permit originally issued to the vehicle for which replacement is being proposed; and

(g) Complete removal of all vehicles for hire identifying markings and equipment from the vehicle for which replacement is being proposed.

(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14)

Secs. 33-068, 33-069. Reserved.

DIVISION 7. ENFORCEMENT

Sec. 33-070. Correction order.

(a) If the director determines that a holder, or any person providing a service subject to this chapter, violates this chapter or the director's interpretations of the provisions therein, terms of its operating authority, a regulation established by the director, or other law, the director may notify the holder or violator in writing of the violation and by written order direct the holder or violator to correct the violation within a reasonable period of time. In setting the time for correction, the director shall consider the degree of danger to the public health or safety and the nature of the violation. If the violation involves equipment that is unsafe or functioning improperly, the director shall order the holder or violator to immediately cease use of the equipment.

(b) If the director determines that a violation constitutes an imminent or serious threat to the public health or safety, the director shall immediately order the vehicle removed from service and shall immediately remove the vehicle permit affixed to said vehicle. The director shall notify the holder of such action in accordance with the provisions of section 33-072 of this chapter. No person shall operate a vehicle which has been ordered removed from service by the director until the violation which caused the removal has been corrected in accordance with the director's instructions.

(c) The director shall include in a notice issued under this section an identification of the violation, the date of issuance of the notice and the time period within which the violation must be corrected. Failure to complete all corrections within thirty (30) days will result in immediate removal of the vehicle from service and suspension of the operating permit until the corrections are completed. Correction notices that are not corrected within ninety (90) calendar days shall have the vehicle permit revoked.

(d) Except when ordered to immediately remove a vehicle from service under subsections (a) and (b) of this section, the holder or violator shall have ten (10) days from the date of the director's decision to remove a vehicle from service. A holder or violator has ten (10) days from the date of receipt of a correction order to request a hearing before the director, in writing and addressed to the director, and to present to the director any additional information, including inspection reports from mechanics retained by the holder, which may aid the director in his determination whether to affirm or reverse the director's initial determination.

(e) If the director determines that a holder, or any person providing a vehicle for hire subject to this chapter, may be violating this chapter or the director's interpretations of the provisions therein, terms of a holder's operating authority, operations requiring a permit or license, a regulation established by the director, or other law, the director may request that person deliver copies of records, including electronic files and transmissions, sufficient to show each communication relating to a vehicle for hire, the date and time of such request, the date and time that such service was provided, and all charges related to such service. The failure to deliver copies of such records within fifteen (15) days after the director's request shall constitute a rebuttable presumption of probable cause under section 33-074 of this chapter, which authorizes the police department to impound vehicles operating without the required vehicle permits.
(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14)

Sec. 33-071. Permanent removal of vehicles and equipment.

The director may permanently remove a vehicle or any other equipment from service if in the opinion of the director the vehicle or equipment cannot be corrected to the extent necessary to meet the safety, service, and quality standards established for vehicles for hire.
(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14)

Sec. 33-072. Service of notice.

(a) A holder shall designate and maintain a representative to receive service of notice required under this chapter to be given a holder and a driver employed by a holder.

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(b) Notice required under this chapter.

(1) A holder or the holder's designated representative must be personally served or served by certified mail, return receipt requested, directed to the address last known to the director, of the holder to be notified, or to the holder's designated representative;

(2) A driver must be personally served or served by certified mail, return receipt requested, directed to the address last known to the director, of the driver to be notified, or to the designated representative for the driver.

(c) Service executed in accordance with this section constitutes notice to the person to whom the notice is addressed. In the case of certified mail, notice occurs on the date indicated as the delivery date on the return receipt or on the fifth day after the date of postmark, whichever is sooner.
(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14)

Sec. 33-073. Enforcement by police department.

(a) It shall be the duty of the police department or of such other city employees as may be designated by the city manager, to enforce the provisions of this chapter.

(b) All violations of the provisions of this chapter and of the rules and regulations established by the director, are hereby declared to be civil offenses subject to administrative adjudication. This subsection does not apply to a violation of subsections 33-006(a) and (b) or to section 33-926 of this chapter, which are hereby declared to be criminal offenses.

(c) The total fines, costs, and fees per violation shall not be less than ten dollars ($10.00) and shall not exceed five hundred dollars ($500.00). However, for the first violation of sections 33-725 or 33-726 of this chapter, the total fines, costs, and fees shall not be less than two hundred dollars ($200.00); for the second violation of said sections, the total fines, costs, and fees shall not be less than three hundred fifty dollars ($350.00); for the third violation of said sections, the total fines, costs, and fees shall not be less than five hundred dollars ($500.00) and shall preclude the convicted person from obtaining a historic district destination point permit, as referred to in section 33-725 under this chapter, for a period of one (1) year from the date of conviction. Fines assessed shall be based on the relationship of the violation to the public safety, the number of violations committed by the person or company summoned, and any other considerations that may be relevant to the adjudication of the matter.

(d) Violators shall be issued a summons. The summons must provide information as to the time and place of an administrative adjudication hearing. The city attorney's office may participate at such hearings.

(e) Hearing officers shall be appointed by the city manager. Said officers may question witnesses and review documents presented by the parties before issuing an order. The order shall be in writing and shall state whether the person charged is liable for the violation, and the amount of any fines assessed against the person or company charged. The fines shall be assessed in accordance with subsection (c) of this section. The order shall be filed with the municipal court clerk with a copy provided to the director. The failure of any person charged with a violation to appear at the hearing shall be an admission of liability for the charged violation.

(f) Fines, costs, or fees assessed by the hearing officer may be levied against the license/permit bond of the holder, if the person summoned or the holder for whom such person works, fails to pay such fines, costs, or fees within thirty (30) days after the order is filed.

(g) The municipal court clerk shall establish a written body of administrative procedures for these cases.

(h) A person determined by the hearing officer to be in violation may appeal the decision to municipal court by filing an appeal petition with the San Antonio Municipal Court Clerk not later than thirty (30) days after the order is filed and by paying a twenty-five dollars ($25.00) appeal

filing fee. The appeal hearing must be scheduled to occur within ten (10) days of the filing of the appeal petition. The appeal hearing before a municipal court judge shall be an administrative review for the purpose of confirming or overruling the order issued by the administrative hearing officer, based upon the evidence presented to the administrative hearing officer. The record of witness testimony may be preserved for appellate review by the use of an audio tape recording or a video tape recording.

(i) Neither a notice of intent to appeal nor the filing of an appeal petition shall stay the enforcement and collection of the judgment order unless the service of the notice of appeal is preceded by the posting of a cash bond in the same amount of the adjudged penalty. However, the bond may not in any case be for a sum less than fifty dollars ($50.00).
(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14)

Sec. 33-074. Impoundment of vehicles.

(a) The police department shall seize and impound any vehicle when probable cause exists to believe that such vehicle is being operated for ground transportation service without the required vehicle permit, in violation of this chapter. A vehicle seized in accordance with this subsection shall be removed to a designated secured facility. Probable cause shall mean the existence of a reasonable ground to believe that facts exist to justify the impoundment of the vehicle.

(b) If a vehicle has been moved and placed in a secured facility without the consent of the owner, the owner is entitled to a hearing to determine whether or not probable cause existed for the removal and placement of the vehicle. A hearing under this subsection shall be before a municipal court judge.

(c) A person entitled to a hearing hereunder shall deliver a written request for the hearing to the San Antonio Municipal Court Clerk before the sixth day after the date the vehicle was place in a secured facility. In computing time under this subsection Saturdays, Sundays, and legal holidays are excluded. A person who fails to deliver the request within the specified time period waives the right to the hearing.

(d) A written request under this section must contain the following information:

(1) The name, address, and telephone number of the owner of the vehicle;

(2) The date and the location from which the vehicle was removed;

(3) The name, address, and telephone number of the police official who authorized the removal; and

(4) The name, address, and telephone number of the secured facility where the vehicle was placed.

(e) A hearing under this section shall be held before the fourth working day after the date the request for the hearing was received by the municipal court clerk. The court shall notify the vehicle's owner and the police official who authorized the removal of the vehicle of the date, time and place of the hearing. The sole issue in a hearing under this section is whether probable cause existed for the removal and placement of the vehicle. The court shall make written findings of fact and conclusions of law regarding the issues in the hearing.

(f) If the court determines that probable cause existed for the removal and placement of the vehicle, the owner of the vehicle shall pay the costs of removing and storing the vehicle. If the court determines that probable cause did not exist for the removal and placement of the vehicle, the city shall pay the costs of removing and storing the vehicle. If the vehicle's owner paid removal or storage costs before the hearing, the city shall fully reimburse the owner.

(g) The court may charge a filing fee of ten dollars ($10.00) for a hearing under this section and may award court costs to the prevailing party.
(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14)

Sec. 33-075. General penalties.

Any violation of this chapter for which a penalty is not specifically stated is punishable by a fine of no more than five hundred dollars ($500.00). A separate offense is committed each day during which an offense occurs.
(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14)

DIVISION 8. AIRPORT OPERATIONS

Sec. 33-076. Scope of instant article.

Drivers and holders operating on airport premises are subject to the provisions of division 8, in addition to all the other requirements of this chapter.
(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14)

Sec. 33-077. Airport rules and regulations.

(a) Chapter 3, article II of this Code of San Antonio, San Antonio International Airport and Stinson Municipal Airport Rules and Regulations (Airport Rules and Regulations) applies to all holders, drivers, independent contractors and their agents working on airport property.

(b) All ground transportation vehicles conducting business on airport premises which do not operate pursuant to a concessions agreement with the city, are subject to the imposition of the per trip fees outlined in the airport rules and regulations.

(c) Payment of the per trip fees is required in the manner prescribed by the aviation director. Failure to pay prescribed fees will result in revocation of the airport permit.
(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14)

Sec. 33-078. Permit requirements.

(a) Any holder or driver desiring to operate a ground transportation vehicle on airport premises for passenger pick-up on airport property must apply for and obtain an airport permit from the aviation department prior to operating such vehicle on airport premises. Any ground transportation vehicle operating at the airport which is not operating pursuant to a concession agreement must purchase and display an airport permit. All city permitted vehicles for hire may drop-off on airport property without obtaining and airport permit.

(b) Holders, drivers and vehicles must meet all requirements of this chapter as applicable to their operations type in order to qualify to obtain an airport permit.
(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14)

Secs. 33-079—33-209. Reserved.

ARTICLE II. MOTORBIKE SIDECAR SERVICE

DIVISION 1. IN GENERAL

Sec. 33-210. Scope of instant article.

Holders of permits to operate motorbike sidecar service and drivers of motorbike sidecars shall be governed by the provisions of articles I and II of this chapter.
(Ord. No. 2022-11-03-0845, § 1(Att. B), 11-3-22)

Sec. 33-211. Fees.

The following fees are hereby established:

(1)	Inspection	$28.00
(2)	Re-inspection	$28.00
(3)	Inspection no show	$28.00
(4)	Drivers permit (two (2) year permit)	$15.00
(5)	Replacement of lost drivers permit	$15.00
(6)	Drivers permit transfer	$15.00
(7)	Operating permit transfers (per vehicle)	$25.00
(8)	Operating permit	$110.00* per vehicle
(9)	Late permit payment	$30.00

(10) Permit application, per permit requested on the application	$150.00

All fees are due upon request of service and non-refundable.

* Operating permit fees shall be paid to the city for each vehicle authorized by the permit agreement. The operating permit fees shall be paid in one payment or four quarterly payments, due on the first business day of the following months: January, April, July and October.

Late permit payments shall be charged for all permit payments that are received after the close of business on the fifth business day of the month payment is due. Permits that do not have fees paid prior to thirty (30) calendar days from the due date shall be suspended until all fees are paid. If the fees are not paid prior to sixty (60) calendar days from the due date all permits shall be revoked.
(Ord. No. 2022-11-03-0845, § 1(Att. B), 11-3-22)

Sec. 33-212. Amount of insurance.

Except as otherwise provided by the holder's operating permit, the public liability and property damage insurance required by this article shall be the minimum of one million dollars ($1,000,000.00) per occurrence for each vehicle, to include the state minimum amount of commercial insurance for vehicle. These minimums shall be required to cover the following categories:

(1) For damages arising out of bodily injury to or death of one (1) person in any one (1) accident;

(2) For damages arising out of bodily injury to or death of two (2) or more persons in any one (1) accident; and

(3) For damages arising out of injury to or destruction of property in any one (1) accident.

(Ord. No. 2022-11-03-0845, § 1(Att. B), 11-3-22)

Secs. 33-213—33-219. Reserved.

DIVISION 2. OPERATING AUTHORITY

Sec. 33-220. Number of ground transportation vehicles authorized.

(a) The total number of all vehicle permits issued among all operating permit holders shall be determined by the director, which may be modified by the director as the director determines to be appropriate.

(b) A holder, within ninety (90) days after receipt of an operating permit, shall operate and maintain a city approved fleet of vehicles for hire consisting of the number of vehicles authorized and required by the permit agreement. The number of vehicles authorized by the permit agreement and the number of vehicle permits issued pursuant thereto shall be reduced to reflect the actual number of vehicles the holder is able to operate and maintain in accordance with the provisions of this chapter, the operating permit, the permit agreement, and the rules and regulations of the director.

(c) A holder may not hold more permits than are issued by the director.
(Ord. No. 2022-11-03-0845, § 1(Att. B), 11-3-22)

Secs. 33-221—33-229. Reserved.

DIVISION 3. SERVICE REGULATIONS

Sec. 33-230. Hours of operation.

The director shall establish the hours during which a driver may operate a motorbike sidecar as a rule or regulation in accordance with sections 33-004 and 33-005 of this chapter.
(Ord. No. 2022-11-03-0845, § 1(Att. B), 11-3-22)

Sec. 33-231. Areas of service.

(a) Motorbike sidecars shall only operate on streets that have speed limits of thirty-five (35) MPH or lower.

(b) Motorbike sidecars shall not be operated on sidewalks.

(c) Motorbike sidecars shall operate only on streets and must obey all vehicle traffic laws.

(d) The areas of service may be changed or removed by the director when the director determines it would be in the best interest of the public. This change or removal may be made with or without notice.
(Ord. No. 2022-11-03-0845, § 1(Att. B), 11-3-22)

Sec. 33-232. Passenger restrictions.

No sidecar shall transport more passengers than the motorbike sidecar is rated for.
(Ord. No. 2022-11-03-0845, § 1(Att. B), 11-3-22)

Sec. 33-233. Standing or resting.

(a) No motorbike sidecar shall stand or park on any public roadway, sidewalk, or walkway. The exception is commercial loading zones, curb cutouts, and vehicle parking spaces.

(b) Motorbike sidecars may utilize any unoccupied commercial loading zone to load and unload. All sidecars must give the right of way to commercial vehicles or other authorized motor vehicles to these commercial loading zones.
(Ord. No. 2022-11-03-0845, § 1(Att. B), 11-3-22)

Sec. 33-234. Holder's duty to comply.

(a) In the operation of a motorbike sidecar service, a holder shall comply with the terms and conditions of the holder's permit agreement. Except to the extent expressly provided otherwise by the permit agreement, the holder shall comply with this chapter, the director's interpretations of the provisions herein, rules and regulations established by the director, and other laws applicable to the operation of a vehicle for hire.

(b) Upon written notice by the director of a violation by a driver or employee, a holder who allows such driver or employee to operate a motorbike sidecar while in violation becomes responsible and liable to the city for all fees, penalties and license revocations incurred by the driver or employee because of a failure to comply with this chapter, rules and regulations established by the director, and other laws applicable to the operation of a sidecar.
(Ord. No. 2022-11-03-0845, § 1(Att. B), 11-3-22)

Sec. 33-235. Holder's duty to enforce compliance by drivers.

(a) A holder shall establish a policy and take action to discourage, prevent and correct violations of this chapter by drivers who are employed or contracted by the holder.

(b) A holder shall not permit a driver who is employed or contracted by the holder to operate any sidecar if the holder knows or has reasonable cause to suspect that the driver has failed to comply with this chapter, the rules and regulations established by the director, or other applicable law.
(Ord. No. 2022-11-03-0845, § 1(Att. B), 11-3-22)

Sec. 33-236. Holders responsible for fitness of drivers.

(a) Each holder operating a service in the city shall employ or contract as drivers only persons who are physically and mentally fit and who have sufficient experience and training to operate a sidecar in a safe and proper manner. It shall be the sole responsibility of the holder to employ or contract only those drivers who are qualified under this chapter to obtain a driver permit. The employment or contracting of any driver shall be subject to the driver obtaining a temporary or permanent driver permit.

(b) Each holder is charged with knowledge of the contents of the file of all drivers the holder employs or contracts. The director shall consider a holder's continued employment or contracting of any driver whose file shows a lack of mental, emotional or temperamental capacity to be a safe and reliable driver, when reviewing such holder's request for a grant or renewal of an operating permit.
(Ord. No. 2022-11-03-0845, § 1(Att. B), 11-3-22)

Sec. 33-237. Periodic appearance in person by holders and drivers.

Upon request and reasonable notice holders and drivers shall appear, in person, before the director and the director's representative.
(Ord. No. 2022-11-03-0845, § 1(Att. B), 11-3-22)

Secs. 33-238, 33-239. Reserved.

DIVISION 4. FARES

Sec. 33-240. Fares.

The use of any type of meter or measuring device to calculate rate of fare is prohibited.
(Ord. No. 2022-11-03-0845, § 1(Att. B), 11-3-22)

Secs. 33-241—33-249. Reserved.

DIVISION 5. VEHICLES AND EQUIPMENT

Sec. 33-250. Inspection requirements.

(a) Motorbike sidecar shall be inspected yearly.

(b) Motorbike sidecars shall comply with all vehicle requirements outlined in rules and regulations established by the director as well as the requirements outlined in the sidecar vehicle inspection guidelines.
(Ord. No. 2022-11-03-0845, § 1(Att. C), 11-3-22)

Secs. 33-251—33-309. Reserved.

ARTICLE III. GROUP CYCLE SERVICES

DIVISION 1. IN GENERAL

Sec. 33-310. Scope of instant article.

Holders of permits to operate group cycle service(s) and drivers of group cycles shall be governed by the provisions of articles I and III of this chapter.
(Ord. No. 2016-03-03-0164, § 1(Att. B), 3-3-16)

Sec. 33-311. Fees.

The following fees are hereby established:

(1)	Group cycle inspection	$28.00
(2)	Group cycle re-inspection	28.00
(3)	Group cycle inspection no show	28.00
(4)	Drivers permit	15.00
(5)	Replacement of lost drivers permit	15.00
(6)	Drivers permit transfer	15.00
(7)	Operating permit transfers (per vehicle)	25.00
(8)	Group cycle operating permit (per vehicle)	110.00*
(9)	Late permit payment	30.00
(10)	Permit application, per permit requested on the application	150.00

All fees are due upon request of service and non-refundable.

*Group cycle operating permit fees shall be paid to the city for each vehicle authorized by the permit agreement. The group cycle operating permit fees shall be paid in one (1) payment or four (4) quarterly payments, due on the first business day of the following months: January, April, July and October.

Late permit payments shall be charged for all permit payments that are received after the close of business on the fifth business day of the month payment is due.

Permits that do not have fees paid prior to thirty (30) calendar days from the due date shall be suspended until all fees are paid. If the fees are not paid prior to sixty (60) calendar days from the due date all permits shall be revoked.
(Ord. No. 2016-03-03-0164, § 1(Att. B), 3-3-16)

Sec. 33-312. Amount of insurance.

Except as otherwise provided by the holder's operating permit, the public liability and property damage insurance required by this article shall be the minimum of one million dollars ($1,000,000.00) per occurrence for each vehicle. These minimums shall be required to cover the following categories:

(a) For damages arising out of bodily injury to or death of one (1) person in any one (1) accident;

(b) For damages arising out of bodily injury to or death of two (2) or more persons in any one (1) accident; and

(c) For damages arising out of injury to or destruction of property in any one (1) accident.

(Ord. No. 2016-03-03-0164, § 1(Att. B), 3-3-16)

Secs. 33-313—33-319. Reserved.

DIVISION 2. OPERATING AUTHORITY

Sec. 33-320. Number of ground transportation vehicles authorized.

(a) The total number of all vehicle permits issued among all operating permit holders shall be determined by the director, which may be modified by the director as the director determines to be appropriate.

(b) A holder, within ninety (90) days after receipt of an operating permit, shall operate and maintain a city approved fleet of vehicles for hire consisting of the number of vehicles authorized and required by the permit agreement. The number of vehicles authorized by the permit agreement and the number of vehicle permits issued pursuant thereto shall be reduced to reflect the actual number of vehicles the holder is able to operate and maintain in accordance with the provisions of this chapter, the operating permit, the permit agreement, and the rules and regulations of the director.

(c) A holder may not hold more permits than are issued by the director.

(Ord. No. 2016-03-03-0164, § 1(Att. B), 3-3-16)

Sec. 33-321. Reserved.

Editor's note—Ord. No. 2022-11-03-0845, § 1(Att. C), adopted Nov. 3, 2022, repealed § 33-321, which pertained to available permit distribution and derived from Ord. No. 2016-03-03-0164, adopted March 3, 2016.

Secs. 33-322—33-329. Reserved.

DIVISION 3. SERVICE REGULATIONS

Sec. 33-330. Hours of operation.

The director shall establish the hours during which a driver may operate a group cycle as a rule or regulation in accordance with sections 33-004 and 33-005 of this chapter.

(Ord. No. 2016-03-03-0164, § 1(Att. B), 3-3-16)

Sec. 33-331. Areas of service.

(a) Group cycles shall not be operated on the Riverwalk.

(b) Group cycles shall not be operated on sidewalks.

(c) Group cycles shall be authorized to cross sidewalks to access legal operating areas.

(d) Group cycles shall operate only on routes provided to the director as outlined in group cycle rules and regulations.

(e) Group cycles shall operate only on streets and must obey all vehicle traffic laws.

(f) The areas of service may be changed or removed by the director when the director determines it would be in the best interest of the public. This change or removal may be made with or without notice.

(Ord. No. 2016-03-03-0164, § 1(Att. B), 3-3-16)

Sec. 33-332. Passenger restrictions.

No group cycle shall transport more passengers than the vehicle has seats.

(Ord. No. 2016-03-03-0164, § 1(Att. B), 3-3-16)

Sec. 33-333. Standing or resting.

(a) No group cycle shall stand or park on any public roadway, sidewalk, or walkway. The exception is commercial loading zones, curb cutouts, and vehicle parking spaces.

(b) Group cycles may utilize any unoccupied commercial loading zone to stand or rest. All Group cycles must give the right-of-way to commercial vehicles or other authorized motor vehicles to these commercial loading zones.

(Ord. No. 2016-03-03-0164, § 1(Att. B), 3-3-16)

Sec. 33-334. Holder's duty to comply.

(a) In the operation of a group cycle service, a holder shall comply with the terms and conditions of the holder's permit agreement. Except to the extent expressly provided otherwise by the permit agreement, the holder shall comply with this chapter, the director's interpretations of the provisions herein, rules and regulations established by the director, and other laws applicable to the operation of a vehicle for hire.

(b) Upon written notice by the director of a violation by a driver or employee, a holder who allows such driver or employee to operate a group cycle while in violation becomes responsible and liable to the city for all fees, penalties and license revocations incurred by the driver or employee because of a failure to comply with this chapter, rules and regulations established by the director, and other laws applicable to the operation of a group cycle.
(Ord. No. 2016-03-03-0164, § 1(Att. B), 3-3-16)

Sec. 33-335. Holder's duty to enforce compliance by drivers.

(a) A holder shall establish a policy and take action to discourage, prevent and correct violations of this chapter by drivers who are employed or contracted by the holder.

(b) A holder shall not permit a driver who is employed or contracted by the holder to operate any group cycle if the holder knows or has reasonable cause to suspect that the driver has failed to comply with this chapter, the rules and regulations established by the director, or other applicable law.
(Ord. No. 2016-03-03-0164, § 1(Att. B), 3-3-16)

Sec. 33-336. Holders responsible for fitness of drivers.

(a) Each holder operating a group cycle service in the city shall employ or contract as drivers only persons who are physically and mentally fit and who have sufficient experience and training to operate a group cycle in a safe and proper manner. It shall be the sole responsibility of the holder to employ or contract only those drivers who are qualified under this chapter to obtain a driver permit. The employment or contracting of any driver shall be subject to the driver obtaining a temporary or permanent driver permit.

(b) Each holder is charged with knowledge of the contents of the file of all drivers the holder employs or contracts. The director shall consider a holder's continued employment or contracting of any driver whose file shows a lack of mental, emotional or temperamental capacity to be a safe and reliable driver, when reviewing such holder's request for a grant or renewal of an operating permit.
(Ord. No. 2016-03-03-0164, § 1(Att. B), 3-3-16)

Sec. 33-337. Periodic appearance in person by holders and drivers.

Upon request and reasonable notice holders and drivers shall appear, in person, before the director and the director's representative.
(Ord. No. 2016-03-03-0164, § 1(Att. B), 3-3-16)

Secs. 33-338, 33-339. Reserved.

DIVISION 4. FARES

Sec. 33-340. Fares.

The use of any type of meter or measuring device to calculate rate of fare is prohibited.
(Ord. No. 2016-03-03-0164, § 1(Att. B), 3-3-16)

Secs. 33-341—33-349. Reserved.

DIVISION 5. VEHICLES AND EQUIPMENT

Sec. 33-350. Inspection requirements.

(a) Group cycles shall be inspected yearly.

(b) Group cycles shall comply with all vehicle requirements outlined in rules and regulations established by the director as well as the requirements outlined in the group cycle vehicle inspection guidelines.
(Ord. No. 2016-03-03-0164, § 1(Att. B), 3-3-16)

Secs. 33-351—33-399. Reserved.

ARTICLE IV. EQUINE-DRAWN CARRIAGES*

DIVISION 1. IN GENERAL

Sec. 33-400. Scope of instant article.

Holders of annual permits to operate carriage services and drivers of equine-drawn carriages shall be governed by the provisions of articles I and IV of this chapter.
(Ord. No. 2013-08-01-0501, § 1(Exh. A), 8-1-13; Ord. No. 2016-03-03-0164, § 1(Att. A), 3-3-16)

Sec. 33-401. Fees established.

The following fees are hereby established:

(1)	Inspection of vehicle	$28.00
(2)	Re-inspection of vehicle	28.00
(3)	Drivers or stand worker permits	30.00
(4)	Renewal of drivers or stand worker permit	30.00
(5)	Replacement of lost drivers or stand workers permit	15.00
(6)	Drivers or stand worker permit transfer	15.00
(7)	Special event permit	25.00
(8)	Carriage permit fee per carriage per year	600.00
(9)	Late permit payment	30.00
(10)	Permit application, per permit	100.00

(11) Replacement medallion shall be equal to the cost of making a new medallion.
(Ord. No. 2013-08-01-0501, § 1(Exh. A), 8-1-13; Ord. No. 2016-03-03-0164, § 1(Att. A), 3-3-16)

Secs. 33-402—33-410. Reserved.

*__Editor's note__—Ord. No. 2016-03-03-0164, § 1(Att. A), adopted March 3, 2016, changed the title of Art. IV from "Horse-drawn carriages" to "Equine-drawn carriages."

DIVISION 2. OPERATING AUTHORITY

Sec. 33-411. Number of carriages.

(a) The total number of carriage permits shall be twenty-five (25) carriages. Beginning December 12, 2024, existing carriage permits may be renewed subject to the prohibition of the operation of such carriages on January 1, 2030, but no permits for new carriages may be issued.

(b) The director shall issue medallions that identify each carriage authorized in the annual permit. When in operation, a holder shall require that each carriage used in the operation of a carriage service shall display its medallion in a location specified by the director.

(c) A carriage company that the director determines is operating more carriages than authorized in the permit agreement shall have the number of permits equal to unauthorized carriages revoked.

(d) Medallions shall mean an identification plate created by the director to identify the quantity of carriages in operations. Replacement of the lost, damaged, or stolen medallions shall be at the owner's expense.
(Ord. No. 2013-08-01-0501, § 1(Exh. A), 8-1-13; Ord. No. 2016-03-03-0164, § 1(Att. A), 3-3-16; Ord. No. 2024-12-12-0998, § 1, 12-12-24)

__Editor's note__—Ord. No. 2016-03-03-0164, § 1(Att. A), adopted March 3, 2016, changed the title of section 33-411 from "Number of horse-drawn carriages" to "Number of carriages." This historical reference has been preserved for reference purposes.

Sec. 33-412. Permit fee.

An annual permit fee of six hundred dollars ($600.00) shall be paid to the city for each carriage authorized by the permit agreement. The annual permit fees shall be paid in one payment or four (4) quarterly payments, due on the first business day of the month of January, April, July, and October.

Late permit payments shall be charged for all permit payments that are received after the close of business on the fifth business day of the month a payment is due.

Permits that do not have the fees paid within thirty (30) calendar days from the due date shall be suspended until all fees are paid. If the fees are not paid within sixty (60) calendar days from the due date, all permits shall be revoked.
(Ord. No. 2013-08-01-0501, § 1(Exh. A), 8-1-13; Ord. No. 2016-03-03-0164, § 1(Att. A), 3-3-16)

Sec. 33-413. Company ownership.

(a) For the purpose of article IV, a permit holder shall be the individual who has been designated as having the controlling interest over a company by the majority of owners of said company, and that individual must be indentified as an owner on the letter of incorporation.

(b) Permits shall not be transferred for any reasons.

(c) A power of attorney shall not be accepted as a replacement for the permit holder's signature.

(d) The permit holder shall sign all documents for the company, including but not limited to renewal of permit agreements, insurance forms, and any other documents that the director requires.

(e) If a permit holder is unable to maintain one (1) or more permits for any reason these permits shall be recalled by the city.

(f) Company managers may be appointed by the permit holder to handle the day to day operations, to include but not limited to, hire slips and special event permits. However, the city retains the right to communicate exclusively with the permit holder.
(Ord. No. 2013-08-01-0501, § 1(Exh. A), 8-1-13)

Sec. 33-414. Reserved.

Editor's note—Ord. No. 2024-12-12-0998, § 1, adopted December 12, 2024, repealed § 33-414, which pertained to available permit distribution and derived from Ord. No. 2013-08-01-0501, § 1(Exh. A), 8-1-13; Ord. No. 2016-03-03-0164, § 1(Att. A), 3-3-16.

Secs. 33-415—33-430. Reserved.

DIVISION 3. SERVICE REGULATIONS

Sec. 33-431. Hours of operation.

(a) Carriages shall only operate during the following times for the following periods:

December 12, 2024—May 31, 2027

Monday - Friday: 9:00 a.m. to 4:00 p.m. and 6:00 p.m. to 2:00 a.m.

Saturday - Sunday: 10:00 a.m. to 2:00 a.m.

City Holidays: 10:00 a.m. to 2:00 a.m.

June 1, 2027—May 31, 2028

Monday - Friday: 11:00 a.m. to 4:00 p.m. and 8:00 p.m. to 2:00 a.m.

Saturday - Sunday: 2:00 p.m. to 2:00 a.m.

City Holidays: 2:00 p.m. to 2:00 a.m.

June 1, 2028—December 31, 2029

Monday - Friday: 12:00 p.m. to 4:00 p.m. and 8:00 p.m. to 12:00 a.m.

Saturday - Sunday: 5:00 p.m. to 2:00 a.m.

City Holidays: 5:00 p.m. to 2:00 a.m.

(b) Carriages shall not be operated in the King William District during the following hours:

(1) After 10:30 p.m. Monday through Sunday; and

(2) Before 12:00 p.m. on Sundays.

(c) Carriage operations shall be suspended whenever the temperature is at or above 95°F. Interpretation and enforcement of this provision shall be by individuals designated by the director to enforce this chapter and by veterinarians employed with or contracted by the city.

(d) Carriages operations shall be suspended at 12:00 p.m. until 8:30 p.m. on Air Quality Health Alert Days.

(e) No holder or driver shall permit or allow any equine being used for hire over which he has control to be outside the stable grounds except during the above specified hours, hours specified

in the rules and regulations established by the director, or pursuant to express written authority of the director.
(Ord. No. 2013-08-01-0501, § 1(Exh. A), 8-1-13; Ord. No. 2016-03-03-0164, § 1(Att. A), 3-3-16; Ord. No. 2024-12-12-0998, § 1, 12-12-24)

Sec. 33-432. Carriage stands.

(a) Carriage stands shall be established by the director as a rule or regulation in accordance with sections 33-004 and 33-005 of this chapter.

(b) Carriage stand shall mean a designated space that is created to allow for horse-drawn carriages to wait for customers. Carriage stand locations shall be determined by the director and shall be designated by two (2) signs that are placed at each end of the stand.

(c) Carriages may utilize any unoccupied commercial loading zone to load, unload, stand or rest. All carriages must give the right-of-way to commercial vehicles and other authorized motor vehicles.

(d) Carriages must have a seating rating capacity of fourteen (14) or less, this includes the drivers seating area. If the carriage does not have a rating capacity or there is a concern about the rated seating capacity than the capacity shall be determined by the director.

(e) Carriages shall not have more than four (4) bench seats on the carriage; this includes the driver's bench. Exception is carriages currently permitted, however these carriages must comply with subsection 33-432(d).
(Ord. No. 2013-08-01-0501, § 1(Exh. A), 8-1-13; Ord. No. 2016-03-03-0164, § 1(Att. A), 3-3-16)

Sec. 33-433. Reserved.

Sec. 33-434. Maintenance carriage stands, routes, streets, and feeding and watering locations.

(a) A holder shall, at the holder's own expense, keep routes, carriage stands and streets clean, sanitary and free of animal excrement.

(b) Disposal of manure shall be by transport to stables and shall be the responsibility of the holder.

(c) It shall be the holder's responsibility to ensure that the stand, routes, and streets are free from animal excrement. If it is determined by the director that a stand, route, or street is not being kept clean of animal excrement, the director may suspend the permits for a period of no more than seven (7) days. If a waste issue is not resolved after notification to the permit holders, the director may revoke permits.

(d) Diaper devices shall be utilized by all carriages. These devices must be in good repair and attached properly to the carriage or animal to adequately capture solid animal excrement.
(Ord. No. 2013-08-01-0501, § 1(Exh. A), 8-1-13; Ord. No. 2016-03-03-0164, § 1(Att. A), 3-3-16)

Editor's note—Ord. No. 2016-03-03-0164, § 1(Att. A), adopted March 3, 2016, changed the title of section 33-434 from "Maintenance of carriage stands, routes, streets, and horse feeding and watering locations" to "Maintenance carriage stands, routes, streets, and feeding and watering locations." This historical notation has been preserved for reference purposes.

Sec. 33-435. Refusal to convey.

While operating a carriage, a driver's refusal to convey a person requesting service shall be a violation of this chapter. It shall be an affirmative defense to prosecution under this section that:

(a) The driver was engaged in answering a previous call for service;

(b) The driver had good reason to believe that the person requesting service was engaged in unlawful conduct;

(c) The driver was in reasonable fear of his personal safety, or

(d) The driver would be violating another section of this chapter or the rules and regulations established by the director.
(Ord. No. 2013-08-01-0501, § 1(Exh. A), 8-1-13; Ord. No. 2016-03-03-0164, § 1(Att. A), 3-3-16)

Sec. 33-436. Additional passengers.

(a) A company's independent contractor, driver, stand worker or employee shall at no time hold a group back from loading on a carriage for the purpose of loading a specific carriage.

(b) The group that first employs the services of a carriage company must agree to additional passengers being placed on the carriage.
(Ord. No. 2013-08-01-0501, § 1(Exh. A), 8-1-13)

Secs. 33-437—33-440. Reserved.

DIVISION 4. FARES

Sec. 33-441. Schedule of fares.

The director shall establish the rates of fares for carriages and outline the details of the fares in the rule or regulations in accordance with sections 33-004 and 33-005 of this chapter.
(Ord. No. 2013-08-01-0501, § 1(Exh. A), 8-1-13; Ord. No. 2016-03-03-0164, § 1(Att. A), 3-3-16)

Sec. 33-442. Display of fares.

(a) Each carriage shall have a current schedule of fares placed on the carriage that is visible to the passengers upon entry into or while seated in said carriage.

(b) Each permit holder shall ensure that a driver, independent contractor, or stand workers charge the rate as set in the rules and regulations established by the director.
(Ord. No. 2013-08-01-0501, § 1(Exh. A), 8-1-13)

Secs. 33-443—33-460. Reserved.

DIVISION 5. EQUINE*

Sec. 33-461. Equine license required.

(a) Except in connection with special events authorized by city officials including, but not limited to, parades and livestock expositions, no person shall permit, allow, use or offer the use of an equine in a carriage service or in any service whereby animals are used to transport persons on a public street unless such equine has first been licensed pursuant to the provisions of this article.

(b) Equines used in the operation of a carriage shall be licensed by the Animal Care Services Department of the City of San Antonio and shall be made available for inspection by the city at all reasonable times with or without prior notice. Animal care services department shall not issue a license to any horse that has not been licensed prior to December 12, 2024.

(c) An equine license shall not be transferable. Upon the transfer of ownership of any equine, the new owner shall, prior to working the equine, have the equine licensed by animal care services.

(d) Each equine license shall be assigned an official identification number by animal care services and each equine licensed herein shall be identified by a microchip or any other means of identification as determined by animal care services. The cost of the microchip or any other identifier shall be at the expense of the permit holder. Microchips utilized shall be approved by animal care services and must be International Organization of Standards (ISO) compliant.

(e) The holder shall at all times maintain the equine license at the stable where the equine is kept and shall keep a copy of the equine license on the carriage that is being pulled by said equine. The equine license may be inspected by the director and any representative from animal care services.
(Ord. No. 2016-03-03-0164, § 1(Att. A), 3-3-16; Ord. No. 2024-12-12-0998, § 1, 12-12-24)

Sec. 33-462. Care of equine.

(a) The director and the director of animal care services shall promulgate such rules and regulations as are necessary to carry out the provisions of this article and to promote the health, safety and well-being of the licensed equines.

*__Editor's note—__Ord. No. 2016-03-03-0164, § 1(Att. A), adopted March 3, 2016, amended division 5 in its entirety to read as set out herein. Former division 5, §§ 33-461 and 33-462, pertained to horses and derived from Ord. No. 2013-08-01-0501, § 1(Exh. A), adopted Aug. 1, 2013.

(b) A veterinarian employed or contracted by the city shall be available on a regular schedule and at such other times as may be necessary to provide inspections and ascertain compliance with the terms and conditions of this article.

(c) Holders and drivers shall ensure that they have access to a sufficient amount of fresh drinking water for the equine that they are working. Holders and drivers shall insure that each equine is offered water in an appropriate container after every trip. Holders and drivers shall further ensure that equines be given a minimum ten (10) minute rest period between fares.

(d) Holders and drivers shall not allow an equine to be worked on a public highway, path or street during conditions which are determined by the director and the director's designee, or a veterinarian employed or contracted by the city, to pose a threat to the health, safety or well-being of the equine, passengers, or general public. If conditions develop while an equine is being worked, however, said equine shall be returned without delay to the stable by the most direct route and, if the threat posed is an immediate one, then the return of the equine to the stable shall be by equine trailer.

(e) Holders and drivers shall ensure that an equine does not work more than eight (8) hours in a 24-hour period without allowing an equine at least a sixteen (16) continuous hour rest period. Holders shall keep a current log provided by animal care services in each stable showing each equine's use.

(1) A shift shall be considered the same as the carriage operating hours.

(2) Equines shall be considered as working if the equine is pulling a carriage that is being presented to the public as a carriage for hire. If an equine must return to the stables due to inclement weather or equipment replacement, it may return to operation to complete the same shift. Holders shall keep a log in each stables show each equine's use. This log shall be provided by animal care services and must be updated each shift.

(f) Holders and drivers shall be responsible for any violation under this article and the rules and regulations established by the director, where it is shown such person had knowledge of the violation, or should have had knowledge of the violation, and made no attempt to prevent it from occurring.

(g) A holder shall keep on the premises of the stable where the equines are kept a consecutive daily record of the movements of each licensed equine, including driver's name and identification number, equine's identification number, vehicle identification tag number, and a daily manifest on each equine. Such records shall be made available, at any reasonable time, for inspection by the director and the director of animal care services, and their designees.

(h) An equine required to be licensed pursuant to this article which is lame or suffers from a physical condition or illness making it unsuitable for work may be ordered removed from work by the director and the director of animal care services, and their designees, and any veterinarian employed or contracted by city if said individual determines that removal of the equine is necessary for health and safety reasons or as an immediate protection to the equine or the general public. An equine for which such an order has been issued shall not be returned to work until such time as the equine is re-examined and a veterinarian licensed by the State of Texas certifies in writing that the equine is fit to return to work.

(i) A holder shall, at his own expense, have each equine examined by a veterinarian licensed by the State of Texas before the equine is put in service and every six (6) months thereafter. Holders shall be responsible for maintaining the following on each carriage in operation:

(1) Current license of the equine being used;

(2) Current picture of the equine;

(3) Current health certificate of the equine;

(4) The equine's body condition score, certified every six (6) months by a veterinarian licensed by the State of Texas; and

(5) Description and location of any other identifying characteristics, marks and brands of the equine.

(j) The holder shall, in the operation of a carriage service, use only equines which are geldings and mares; are a minimum of three (3) years old; weigh at least one thousand two hundred (1,200) pounds; and are of such stamina and in such physical condition, as determined by a veterinarian employed or contracted by the city or by the director, the director of animal care services, or their designees, so as to be able to perform the required equine-drawn carriage tasks without any undue stress and effort.

(k) A holder shall treat an equine for internal parasites every four (4) months under the direction of a veterinarian licensed by the State of Texas. A holder shall treat an equine for external parasites whenever they are found to be present.

(l) A holder shall have the hooves of equines trimmed and their shoes reset every six (6) to eight (8) weeks, using caulks or borium to prevent slippage; shoes shall be shod in a manner approved by the director of animal care services and shall have non-skid base surfaces.

(m) Holders and drivers shall ensure that equines are kept clean, especially those areas in contact with the harness or other tack.

(n) Holders and drivers shall ensure that pads and other pieces of tack are kept clean and in a safe and serviceable condition.

(o) The following shall deem an equine unfit for use:

(1) Lameness of any kind;

(2) Open sores or wounds caused or likely to be irritated by the bearing surfaces of harness, bridle or girths;

(3) Signs of emaciation, dehydration or exhaustion;

(4) Loose shoes or no shoes; or

(5) Is exhibiting uncontrollable behavior.

(p) Nothing in the chapter shall preclude the director, the director of animal care services, or their designees from enforcing all local, state, and/or federal animal cruelty laws.
(Ord. No. 2016-03-03-0164, § 1(Att. A), 3-3-16; Ord. No. 2024-12-12-0998, § 1, 12-12-24)

Secs. 33-463—33-470. Reserved.

DIVISION 6. STABLES

Sec. 33-471. Location.

Stables for housing of equine and carriages shall be at locations approved by the director of code compliance or public works, shall be situated in areas properly zoned for such use, and shall be no less than one hundred (100) feet from any dwelling. Such facilities shall conform to all health and sanitation regulations and shall be open for inspection by the director and the director of animal care services and their designees at all reasonable times, with or without prior notice.
(Ord. No. 2013-08-01-0501, § 1(Exh. A), 8-1-13; Ord. No. 2016-03-03-0164, § 1(Att. A), 3-3-16)

Sec. 33-472. Requirements.

(a) All stables shall have standing stalls of minimum dimensions of twelve (12) feet by twelve (12) feet by twelve (12) feet. The stalls shall be enclosed on all four (4) sides and shall have a solid north wall and a solid roof.

(b) Equine shall be adequately quartered. Stables and stalls shall be clean and dry. Sufficient bedding of straw, shavings, or other suitable material shall be furnished and changed as often as necessary to maintain the stables and stalls in a clean and dry condition. Bedding for concrete floors shall consist of at least six (6) inches of materials. Bedding for clay, dirt or rubber base floor shall consist of at least three (3) inches of materials.

(c) While in stalls, and/or during each sixteen (16) hours break equines shall have access to forage and feed in the amount to keep appropri-

ate body condition score. The forage and feed shall be kept clean, fresh and must be of good quality.

(d) While in stalls, equines shall have continuous access to drinking water. Water shall be kept clean and fresh.
(Ord. No. 2013-08-01-0501, § 1(Exh. A), 8-1-13; Ord. No. 2016-03-03-0164, § 1(Att. A), 3-3-16)

Secs. 33-473—33-480. Reserved.

Sec. 33-481. Carriage wheels.

Carriage wheels shall be firmly attached to the hub and shall not wobble excessively. All springs, axles and supporting structures shall be intact without any visible breaks or deflection greater than incurred by a normal load.
(Ord. No. 2016-03-03-0164, § 1(Att. A), 3-3-16)

Editor's note—Ord. No. 2016-03-03-0164, § 1(Att. A), adopted March 3, 2016, amended section 33-481 in its entirety to read as set out herein. Former section 33-481 pertained to horse-drawn carriage wheels and derived from Ord. No. 2013-08-01-0501, § 1(Exh. A), adopted Aug. 1, 2013.

Secs. 33-482—33-490. Reserved.

DIVISION 7. STAND WORKERS

Sec. 33-491. Independent contractor, stand workers and employees.

(a) Independent contractors, stand workers and employees that perform duties relating to the public operation of a carriage company shall be required to obtain a stand worker license.

(b) Stand workers shall meet the requirements of chapter 33, article I, division 4 and article IV, section 33-401, with the following exception: stand workers must have a valid Texas drivers license, a valid Texas ID card, or a valid military ID card.

(c) Stand workers shall comply with all rules and regulations established by the director.

(d) Permit holders are permitted to have only one (1) stand worker at each stand.
(Ord. No. 2013-08-01-0501, § 1(Exh. A), 8-1-13; Ord. No. 2016-03-03-0164, § 1(Att. A), 3-3-16)

Secs. 33-492—33-499. Reserved.

ARTICLE V. LIMOUSINE SERVICES*

Sec. 33-500. Scope of instant article.

Holders of operating permits for a limousine service operated pursuant to supplemental operating permits, and the drivers operating the vehicles of the sponsored limousine services shall be governed by the provisions of articles I and V of this chapter.
(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14; Ord. No. 2016-03-03-0164, § 1(Att. A), 3-3-16)

Secs. 33-501—33-518. Reserved.

Sec. 33-519. Amount of insurance.

Except as otherwise provided by the holder's operating permit or supplemental operating permits, the public liability and property damage insurance required by this article shall be the minimum of five hundred thousand dollars ($500,000.00) combined single limit (CSL) for each vehicle with a rated passenger capacity of fifteen (15) passengers or less. Vehicles with rated capacity of more than fifteen (15) passengers shall be required to maintain insurance cover equal to or greater than the minimum requirements set by the State of Texas Department of Transportation. These minimums shall be required to cover the following categories:

(a) For damages arising out of bodily injury to or death of one person in any one accident;

(b) For damages arising out of bodily injury to or death of two (2) or more persons in any one accident; and

(c) For damages arising out of injury to or destruction of property in any one accident.

(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14; Ord. No. 2016-03-03-0164, § 1(Att. A), 3-3-16)

*__Editor's note—__Ord. No. 2014-12-11-1002, § 1(Att. A), adopted December 11, 2014 and effective March 1, 2015, amended article V in its entirety to read as herein set out. Formerly, article V, §§ 33-500—33-565, pertained to similar subject matter, and derived from Ord. No. 2013-08-01-0501, § 1(Exh. A), adopted August 1, 2013.

Secs. 33-520—33-522. Reserved.

Sec. 33-523. Number of ground transportation vehicles authorized.

(a) A holder within ninety (90) days after receipt of an operating permit shall operate and maintain a city approved fleet of vehicles for hire consisting of the number of vehicles authorized and required by the permit agreement. The number of vehicles authorized by the permit agreement and the number of vehicle permits issued pursuant thereto shall be reduced to reflect the actual number of vehicles the holder is able to operate and maintain in accordance with the provisions of this chapter, the operating permit, the permit agreement, and the rules and regulations established by the director.

(b) A holder may apply for and receive additional vehicle permits within ten (10) business days, after the application satisfies the requirements of sections 33-008 and 33-007 of this chapter. The application, however, shall be denied if such holder:

(1) Has not held permits for at least one year;

(2) At any time during a 12-month period immediately preceding the application for additional permits, the applicant has failed to pay a fine owed within the time required by this chapter or by the director;

(3) At any time during a 12-month period immediately preceding the application for additional permits, the applicant has failed to maintain the license/permit bond or insurances required by this chapter;

(4) At any time during a 12-month period immediately preceding the application

for additional permits, the applicant has had a vehicle permit revoked or suspended; or

(5) The applicant has failed to assign any previously issued vehicle permits to a vehicle.

(c) A holder who is approved for additional vehicle permits must execute an amended permit agreement authorizing the additional vehicles. The amended permit agreement shall supersede any such agreements previously executed between the city and the holder. The duration of the amended permit agreement shall be for the same period of time as provided for in the original permit agreement.

(d) Additional vehicle permits shall be distributed to qualified holders within sixty (60) days of a reported deadline. A holder receiving additional vehicle permits shall, within ninety (90) days of the distribution of such additional vehicle permits, increase his total fleet to the new level as required by subsection (a) of this section.

(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14; Ord. No. 2016-12-08-0968, § 1(Att. B), 12-8-16)

Sec. 33-524. Supplemental operating permit.

If a limousine service experiences peak demand periods requiring more vehicles than are designated in its permit agreement or operating permit, the holder may request supplemental vehicles by submitting a written application for a supplemental operating permit, along with proof of inspections and insurance, which shall state the reason why supplemental vehicles are needed and identify the vehicles to be used. Supplemental vehicles authorized by a supplemental operating permit:

(a) May not be used for more than ten (10) days;

(b) Must comply with the vehicle requirements of this chapter;

(c) Must comply with the insurance requirements of this chapter;

(d) Are subject to inspection by the director, who may at any time order unsafe vehicles to be removed from service.

(e) If leased or rented through a nationally recognized leasing or rental company, the vehicle shall be exempt from inspection requirements;

(f) Vehicles that are permitted by other Texas cities may be utilized and are exempt from inspection requirements;

(g) Vehicles with a rated seated capacity of sixteen (16) or more passengers and that are registered with the Texas Department of Transportation are exempt from inspection requirements;

(h) Vehicles that are utilizing a supplemental permit are exempt from ownership requirements and section 33-062(b), but must comply all other requirements of this chapter;

(i) The applicant must pay the supplemental operating permit fee in advance of the use of said supplemental permit;

(j) A limousine service that utilizes a supplemental vehicle that is not in compliance with section 33-524 of this chapter shall be in violation of section 33-006(a) of this chapter;

(k) A limousine service or the holder that has been convicted or placed on community supervision, including probation and deferred adjudication, for a violation of section 33.524(g) of this chapter shall no longer be authorized the use of supplemental operating permits.

(l) For the purposes of the supplemental operating permits, the provisions of section 33-564 of this chapter shall not apply.

(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14; Ord. No. 2016-03-03-0164, § 1(Att. A), 3-3-16; Ord. No. 2022-11-03-0845, § 1(Att. C), 11-3-22)

Sec. 33-525. Supplemental drivers permit.

If a limousine service experiences peak demand periods requiring more drivers than are cur-

rently permitted, the holder may request supplemental drivers by submitting a written application for a supplemental drivers permit, which shall state the reason why a supplemental driver is needed. Supplemental drivers:

(a) Shall possess a valid Texas drivers license as outlined in subsection 33-041(3);

(b) Shall possess a valid driver's permit from the City of San Antonio or another Texas city, or have a Texas Department of Public Safety license designated for the type of vehicle they will be operating;

(c) May not be used for more than ten (10) consecutive days;

(d) Every individual driver may not be used for more than a total of thirty (30) days in a calendar year;

(e) A supplemental drivers permit shall automatically expire if the driver operates in violation of sections 33-524 and 33-525, and the driver shall be in violation of subsection 33-006(a) of this chapter.

(Ord. No. 2016-03-03-0164, § 1(Att. A), 3-3-16; Ord. No. 2016-12-08-0968, § 1(Att. B), 12-8-16; Ord. No. 2022-11-03-0845, § 1(Att. C), 11-3-22)

Editor's note—Ord. No. 2016-03-03-0164, § 1(Att. A), adopted March 3, 2016, amended section 33-525 in its entirety. Former § 33-525 pertained to special event supplemental operating permit and derived from Ord. No. 2014-12-11-1002, § 1(Att. A), adopted Dec. 11, 2014.

Sec. 33-526. Fees.

The following fees are hereby established:

(1)	Drivers permit	$30.00
(2)	Renewal of driver permit	30.00
(3)	Replacement of lost driver permit	15.00
(4)	Driver transfers from one (1) holder to another	15.00
(5)	Supplemental operating permit, ten (10) days (including airport operating permit)	100.00
(6)	Application	110.00
(7)	*City-wide limousine operating permit (per vehicle/per year)	250.00
(8)	Late permit	30.00
(9)	Re-inspection	28.00
(10)	Inspection re-scheduling	28.00

All fees are due upon request of service and are non-refundable.

*City-wide limousine operating permit fees shall be paid to the city for each vehicle authorized by the permit agreement. The limousine operating permit fees shall be paid in one (1) payment or two (2) semi-annual payments, due on the first business day of January and July.

Permit fees shall not be pro-rated.

Late permit payments shall be charged for all permit payments that are received after the close of business on the fifth business day of the month a payment is due.

Permits that do not have fees paid prior to thirty (30) calendar days from the due date shall be suspended until all fees are paid. If the fees are not paid prior to sixty (60) calendar days from the due date all permits shall be revoked.

(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14; Ord. No. 2016-03-03-0164, § 1(Att. A), 3-3-16; Ord. No. 2016-12-08-0968, § 1(Att. B), 12-8-16)

Secs. 33-527—33-560. Reserved.

Sec. 33-561. Rates of fare.

(a) A holder shall charge a minimum fare of sixty-seven dollars and fifty cents ($67.50) per hour for all permitted vehicles. This amount shall be exclusive of any gratuity. The holder shall file with the director a schedule of fares to be charged for services provided.

(b) A holder shall notify the director within forty-eight (48) hours of any changes in the fare schedule filed by the holder.

(c) The use of any type of meter or measuring device to calculate rate of fare is prohibited.

(d) The director may approve exemptions to subsection 33-561(a) of this chapter, by written contracts.
(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14)

Secs. 33-562, 33-563. Reserved.

Sec. 33-564. Vehicle requirements.

Each holder of a limousine operating permit must own all of the vehicles permitted. No vehicle shall be allowed to enter into service that is more than four (4) model years old. Stretch limousine may not be more than seven (7) model years old, and no vehicle may be entered into service that has more than one hundred thousand (100,000) miles on the odometer. Each holder must operate and maintain a minimum of:

(a) Two (2) stretch limousines as defined in section 33-003 of this chapter; or

(b) One (1) stretch limousine and two (2) luxury vehicles or SUVs as defined in section 33-003 of this chapter.

Vehicle used for limousine services shall not have any age limits, however, vehicles may be removed from service by the director if the vehicles do not comply with any part of this chapter, rules and regulations, or vehicle inspection guidelines.
(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14; Ord. No. 2016-03-03-0164, § 1(Att. A), 3-3-16)

Secs. 33-565—33-609. Reserved.

Editor's note—Ord. No. 2016-03-03-0164, § 1(Att. A), adopted March 3, 2016, repealed § 33-565 in its entirety. Former section 33-565 pertained to vehicle age requirements and derived from Ord. No. 2014-12-11-1002, § 1(Att. A), adopted Dec. 11, 2014.

ARTICLE VI. PEDICAB SERVICES

DIVISION 1. IN GENERAL

Sec. 33-610. Scope of instant article.

Holders of permits to operate pedicab services and drivers of pedicabs shall be governed by the provisions of articles I and VI of this chapter.
(Ord. No. 2013-08-01-0501, § 1(Exh. A), 8-1-13)

Sec. 33-611. Fees.

The following fees are hereby established:

(1)	Pedicab inspection	$28.00
(2)	Pedicab re-inspection	28.00
(3)	Pedicab inspection no show	28.00
(4)	Drivers license	30.00
(5)	Replacement of lost license.	30.00
(6)	Drivers transfer	15.00
(7)	Operating permit transfers (per vehicle)	25.00
(8)	Pedicab operating permit, per vehicle	110.00*
(9)	Late permit payment	30.00
(10)	Permit application, per permit requested on the application	150.00

All fees are due upon request of service and non-refundable.

*Pedicab operating permit fees shall be paid to the city for each vehicle authorized by the permit agreement. The pedicab operating permit fees shall be paid in one (1) payment or four (4) quarterly payments, due on the first business day of the following month: January, April, July and October.

Late permit payments shall be charged for all permit payments that are received after the close of business on the fifth business day of the month payment is due.

Permits that do not have fees paid prior to thirty (30) calendar days from the due date shall be suspended until all fees are paid. If the fees are not paid prior to sixty (60) calendar days from the due date all permits shall be revoked.
(Ord. No. 2013-08-01-0501, § 1(Exh. A), 8-1-13; Ord. No. 2016-03-03-0164, § 1(Att. A), 3-3-16)

Sec. 33-612. Amount of insurance.

Except as otherwise provided by the holder's operating permit, the public liability and property damage insurance required by this article shall be the minimum of one million dollars

($1,000,000.00) per occurrence for each vehicle. These minimums shall be required to cover the following categories:

(1) For damages arising out of bodily injury to or death of one (1) person in any one (1) accident;

(2) For damages arising out of bodily injury to or death of two (2) or more persons in any one (1) accident; and

(3) For damages arising out of injury to or destruction of property in any one (1) accident.

(Ord. No. 2013-08-01-0501, § 1(Exh. A), 8-1-13)

Secs. 33-613—33-619. Reserved.

DIVISION 2. OPERATING AUTHORITY

Sec. 33-620. Number of ground transportation vehicles authorized.

(a) The total number of all vehicle permits issued among all operating permit holders shall not exceed fifteen (15) without the approval of city council.

(b) A holder, within ninety (90) days after receipt of an operating permit, shall operate and maintain a city-approved fleet of vehicles for hire consisting of the number of vehicles authorized and required by the permit agreement. No operating permit shall be issued authorizing less than two (2) vehicles. The number of vehicles authorized by the permit agreement and the number of vehicle permits issued pursuant thereto shall be reduced to reflect the actual number of vehicles the holder is able to operate and maintain in accordance with the provisions of this chapter, the operating permit, the permit agreement, and the rules and regulations of the director.

(Ord. No. 2013-08-01-0501, § 1(Exh. A), 8-1-13)

Sec. 33-621. Available permit distribution.

(a) When the city determines that permits shall become available, the city shall advertise the availability of pedicab permits for no less than thirty (30) days. This advertisement method shall be determined by the director.

(b) All applications must be submitted by a date set by the director and must comply with sections 33-007 and 33-008 of this chapter (as determined by the director). If the application is approved by the director, each application shall be placed into a permit drawing. Applications shall not be for more permits than are available.

(c) Permit drawings shall be held with all permit applicants present. Only permit applicants shall be allowed to attend the drawing. However, if an applicant can not be present they must provide a written letter informing the city that they can not attend. The applicant may request for one (1) individual to attend on their behalf. Failure to attend or have someone attend the drawing shall not disqualify the applicant.

(d) The director or designee shall pull one (1) drawing entry for each permit available. Each company that is issued a permit during this process shall have ninety (90) days from the time of the drawing to complete all requirements of this chapter and have the pedicab inspected and permitted. Failure to comply will result in forfeiture of the drawn permit.

(e) Drawing procedures shall be outlined in pedicab rules and regulations.

(Ord. No. 2013-08-01-0501, § 1(Exh. A), 8-1-13)

Secs. 33-622—33-629. Reserved.

DIVISION 3. SERVICE REGULATIONS

Sec. 33-630. Hours of operation.

The director shall establish the hours during which a driver may operate a pedicab as a rule or regulation in accordance with sections 33-004 and 33-005 of this chapter.

(Ord. No. 2013-08-01-0501, § 1(Exh. A), 8-1-13)

Sec. 33-631. Areas of service.

(a) No pedicab shall be operated on the Riverwalk.

(b) Pedicabs shall not operate on sidewalks, with the exception of the following:

1. The walkway that runs from Montana St. (Convention Center) to the Alamodome;
2. The walkways with Hemisfair Park;
3. The walkways around the Henry B. Gonzales Convention Center; and
4. The walkways within Main Plaza.

(c) Pedicabs shall be authorized to cross sidewalks to access legal operating areas.

(d) Irrespective of (b) above, a pedicab may not enter any park or plaza that is closed to the public, including sidewalks, because of a city issued permit.

(e) Pedicabs shall not utilize crosswalks.

(f) The areas of service may be changed or removed by the director when it would be in the best interest of the public. This change or removal may be made with or without notice.
(Ord. No. 2013-08-01-0501, § 1(Exh. A), 8-1-13; Ord. No. 2016-03-03-0164, § 1(Att. A), 3-3-16)

Sec. 33-632. Passenger restrictions.

No pedicab shall transport more than four (4) passengers at one (1) time; all passengers shall fit in the seating area.

"Seating area" shall mean the area between the side walls and back wall of the pedicab. Passengers may not be seated above the top of the side or back walls. Passengers shall be required to have their feet inside the area of the pedicab.
(Ord. No. 2013-08-01-0501, § 1(Exh. A), 8-1-13)

Sec. 33-633. Standing or resting.

(a) No pedicab shall stand or park on any public roadway, sidewalk, or walkway for longer than is necessary to load or unload passengers. All loading and unloading of passengers from a roadway must be from a curb lane. The exception is commercial loading zones.

(b) Pedicabs may utilize any unoccupied commercial loading zone to stand or rest. All pedicabs must give the right of way to commercial vehicles or other authorized motor vehicles to these commercial loading zones.
(Ord. No. 2013-08-01-0501, § 1(Exh. A), 8-1-13)

Sec. 33-634. Holder's duty to comply.

(a) In the operation of a pedicab service, a holder shall comply with the terms and conditions of the holder's permit agreement. Except to the extent expressly provided otherwise by the permit agreement, the holder shall comply with this chapter, the director's interpretations of the provisions herein, rules and regulations established by the director, and other laws applicable to the operation of a vehicle for hire.

(b) Upon written notice by the director of a violation by a driver or employee, a holder who allows such driver or employee to drive a pedicab while in violation becomes responsible and liable to the city for all fees, penalties and license revocations incurred by the driver or employee because of a failure to comply with this chapter, rules and regulations established by the director, and other laws applicable to the operation of a pedicab.
(Ord. No. 2013-08-01-0501, § 1(Exh. A), 8-1-13)

Sec. 33-635. Holders responsible for fitness of drivers.

(a) Each holder operating a pedicab service in the city shall employ or contract as drivers only persons who are physically and mentally fit and who have sufficient experience and training to operate a pedicab in a safe and proper manner. It shall be the sole responsibility of the holder to employ or contract only those drivers who are qualified under this chapter to obtain a driver permit. The employment or contracting of any driver shall be subject to the driver obtaining a temporary or permanent driver permit.

(b) Each holder is charged with knowledge of the contents of the file of all drivers the holder employs or contracts. The director shall consider a holder's continued employment or contracting of any driver whose file shows a lack of mental, emotional or temperamental capacity to be a safe

and reliable driver, when reviewing such holder's request for a grant or renewal of an operating permit.
(Ord. No. 2013-08-01-0501, § 1(Exh. A), 8-1-13; Ord. No. 2016-03-03-0164, § 1(Att. A), 3-3-16)

Editor's note—Ord. No. 2016-03-03-0164, § 1(Att. A), adopted March 3, 2016, repealed section 33-635 in its entirety and renumbered sections 33-636 and 33-637 as sections 33-635 and 33-636. Former section 33-635 pertained to holder's duty to enforce compliance by drivers and derived from Ord. No. 2013-08-01-0501, § 1(Exh. A), adopted Aug. 1, 2013.

Sec. 33-636. Periodic appearance in person by holders and drivers.

Upon request and reasonable notice holders and drivers shall appear, in person, before the director and the director's representative.
(Ord. No. 2013-08-01-0501, § 1(Exh. A), 8-1-13; Ord. No. 2016-03-03-0164, § 1(Att. A), 3-3-16)

Editor's note—See section 33-635 editor's note.

Secs. 33-637—33-639. Reserved.

DIVISION 4. FARES

Sec. 33-640. Fares.

(a) A permit holder shall file with the director a schedule of fares to be charged for services provided. A holder shall notify the director of any change to the fare schedule prior to the implementation of these changes.

(b) The schedule of fares shall be posted on each pedicab at a location designated by the director.

(c) The use of any type of meter or measuring device to calculate rate of fare is prohibited.
(Ord. No. 2013-08-01-0501, § 1(Exh. A), 8-1-13)

Secs. 33-641—33-649. Reserved.

DIVISION 5. VEHICLES AND EQUIPMENT

Sec. 33-650. Inspection requirements.

(a) Pedicabs shall be inspected yearly.

(b) Vehicles shall comply with all vehicle requirements outlined in rules and regulations established by the director as well as the requirements outlined in the pedicab vehicle inspection guidelines.
(Ord. No. 2013-08-01-0501, § 1(Exh. A), 8-1-13)

Secs. 33-651—33-699. Reserved.

ARTICLE VII. TOUR SERVICE AND CHARTER SERVICE*

Sec. 33-700. Scope of instant article.

Holders of operating permits for tour services and charter services and drivers and tour operators of said vehicles, shall be governed by the provisions articles I and VII of this chapter.
(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14)

Secs. 33-701—33-718. Reserved.

Sec. 33-719. Amount of insurance.

Except as otherwise provided by the holder's operating permit, the public liability and property damage insurance required by this article shall be the minimum of five hundred thousand dollars ($500,000.00) combined single limit (CSL) for each vehicle with a rated capacity of fifteen (15) passengers or less. Vehicles with a rated capacity of more than fifteen (15) passengers shall be required to maintain insurance equal to or greater than the minimum requirements set by the State of Texas Department of Transportation. These minimums shall be required to cover the following categories:

(a) For damages arising out of bodily injury to or death of one (1) person in any one (1) accident;

(b) For damages arising out of bodily injury to or death of two (2) or more persons in any one (1) accident; and

*__Editor's note—__Ord. No. 2014-12-11-1002, § 1(Att. A), adopted November 11, 2014 and effective March 1, 2015, amended article VII in its entirety to read as herein set out. Formerly, article VII, §§ 33-700—33-770, pertained to similar subject matter, and derived from Ord. No. 2013-08-01-0501, § 1(Exh. A), adopted August 1, 2013.

(c) For damages arising out of injury to or destruction of property in any one (1) accident.

(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14; Ord. No. 2016-03-03-0164, § 1(Att. A), 3-3-16)

Secs. 33-720—33-722. Reserved.

Sec. 33-723. Number of ground transportation vehicles authorized.

(a) A holder within ninety (90) days after receipt of an operating permit, shall own, operate and maintain a city approved fleet of vehicles for hire consisting of the number of vehicles authorized and required by the permit agreement. The number of vehicles authorized by the permit agreement and the number of vehicle permits issued pursuant thereto shall be reduced to reflect the actual number of vehicles the holder is able to operate and maintain in accordance with the provisions of this chapter, the operating permit, the permit agreement, and the rules and regulations established by the director.

(b) A holder may apply for and receive additional vehicle permits if such application satisfies the requirements of sections 33-008 and 33-007 of this chapter. The application, however, shall be denied if such holder:

(1) Has been a permit holder for less than one year;

(2) At any time during a 12-month period immediately preceding receipt of the application for additional permits, has failed to pay a fine owed within the time required by this chapter or by the director;

(3) At any time during a 12-month period immediately preceding receipt of the application for additional permits, has failed to maintain the license/permit bond or insurances required by this chapter;

(4) At any time during a 12-month period immediately preceding receipt of the application for additional permits, has had a vehicle permit revoked or suspended; or

(5) Has failed to assign any previously issued vehicle permits to a vehicle.

(c) A holder who is approved for additional vehicle permits must execute an amended permit agreement authorizing the additional vehicles. The amended permit agreement shall supersede any such agreements previously executed between the city and the holder. The duration of the amended permit agreement shall be for the same period of time as provided for in the original permit agreement.

(d) Additional vehicle permits shall be distributed to qualified holders within sixty (60) days of a reported deadline. A holder receiving additional vehicle permits shall, within ninety (90) days of the distribution of such additional vehicle permits, increase his total fleet to the new level as required by subsection (a) of this section.

(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14)

Sec. 33-724. Supplemental operating permit.

If a vehicle for hire service experiences peak demand periods requiring more vehicles than are designated in its permit agreement or operating permit, the holder may request supplemental vehicles by submitting a written application for a supplemental operating permit, along with proof of inspections and insurance, which shall state the reason why supplemental vehicles are needed and identify the vehicles to be used. Supplemental vehicles authorized by a supplemental operating permit:

(a) May not be used for more than ten (10) days.

(b) Must comply with the vehicle requirements of this chapter.

(c) Must comply with the insurance requirements of this chapter.

(d) Are subject to inspection by the director, who may at any time order unsafe vehicles to be removed from service.

(e) If leased or rented through a nationally recognized leasing or rental company, the vehicle shall be exempt from inspection requirements.

(f) Vehicles that are permitted by other Texas cities may be utilized and are exempt from inspection requirements.

(g) Vehicles with a rated seating capacity of sixteen (16) or more passengers and that are registered with the Texas Department of Transportation are exempt from inspection requirements.

(h) The applicant must pay the supplemental operating permit fee in advance of the use of said supplemental permit.

(i) A tour or charter service that utilizes a supplemental vehicle that is not in compliance with section 33-524 of this chapter shall be in violation of subsection 33-006(a) of this chapter.

(j) A tour or charter service or the holder that has been convicted or placed on community supervision, including probation and deferred adjudication, for a violation of subsection 33-524(g) of this chapter shall no longer be authorized the use of supplemental operating permits.

(k) For the purposes of the supplemental operating permits, section 33-723 of this chapter shall not apply.

(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14; Ord. No. 2016-03-03-0164, § 1(Att. A), 3-3-16; Ord. No. 2022-11-03-0845, § 1(Att. C), 11-3-22)

Sec. 33-725. Supplemental drivers permit.

If a service experiences peak demand periods requiring more drivers than are currently permitted, the holder may request supplemental drivers by submitting a written application for a supplemental drivers permit, which shall state the reason why a supplemental driver is needed. Supplemental drivers:

(a) Shall possess a valid Texas drivers license as outlined in subsection 33-041(3);

(b) Shall possess a valid driver's permit from the City of San Antonio or another Texas city, or have a Texas Department of Public Safety license designated for the type of vehicle they will be operating;

(c) May not be used for more than ten (10) consecutive days;

(d) Every individual driver may not be used for more than a total of thirty (30) days in a calendar year;

(e) A supplemental driver that is not in compliance with sections 33-724 and 33-725 of this chapter shall be in violation of sections 33-006(a) of this chapter.

(Ord. No. 2016-03-03-0164, § 1(Att. A), 3-3-16; Ord. No. 2016-12-08-0968, § 1(Att. B), 12-8-16; Ord. No. 2022-11-03-0845, § 1(Att. C), 11-3-22)

Sec. 33-726. Historic district restrictions.

(a) This section applies to any tour or charter service, whether operated from within or without the city and whether required to be permitted pursuant to the provisions of this chapter. This section does not apply where a tour or charter service is providing service to patrons residing, either permanently or temporarily, in the King William Historic District or the Monte Vista Historic District which does not include a tour of either historic district. This section does not apply where a tour or charter service is transporting primary and secondary school students to the Steves Homestead in the King William Historic District on a school-related trip. This section does not apply where a charter service is transporting persons to or from property owned or leased by a non-profit organization.

(b) For purposes of this article only, the King William Historic District is that area bordered by S. St. Mary's, between Eagleland and Durango, Durango, between S. St. Mary's and Pancoast, Pancoast, between Durango and Washington, Washington, between Pancoast and E. Arsenal, E. Arsenal, between Washington and S. Main, S. Main, between Arsenal and Alamo, Alamo, between S. Main and S. Alamo, S. Alamo, between Alamo and E. Guenther, E. Guenther, between S. Alamo and Crofton, Crofton, between E. Guenther and Constance, Constance, between Crofton and E. Guenther, E. Guenther, between Constance and Eagleland,

and Eagleland, between E. Guenther and S. St. Mary's. For purposes of this section only, the following streets are designated as commercial streets in the King William Historic District: S. Main, Durango, S. St. Mary's, Alamo, S. Alamo, and E. Guenther, between S. Main and S. Alamo.

(c) For purposes of this article only, the Monte Vista Historic District is that area bordered by McCullough, between E. Huisache and E. Ashby, E. Ashby, between McCullough and San Pedro, San Pedro, between E. Ashby and E. Hildebrand, E. Hildebrand, between San Pedro and Shook, Shook, between E. Hildebrand and Ledge, Ledge, between Shook and Kings Court, Kings Court, between Trinity University and E. Mulberry, E. Mulberry, between Kings Court and Stadium, Stadium, between E. Mulberry and E. Huisache, E. Huisache, between Stadium and McCullough. The Monte Vista Historic District also includes the following roadways: E. Rosewood, east of Shook, E. Hollywood, east of Shook, Oakmont, east of Shook, and Bushnell, east of Shook. For purposes of this section only, the following streets are designated as commercial streets in the Monte Vista Historic District: San Pedro, E. Hildebrand, McCullough, Stadium, and N. Main, between E. Ashby and E. Mistletoe.

(d) Except as otherwise provided in this section, no tour or charter service may operate a bus or motor coach on any street in the King William Historic District or the Monte Vista Historic District that is not a commercial street.

(e) Nothing in this section shall be construed to prohibit a vehicle for hire operated by a tour or charter service to operate along Wickes, between S. Alamo and Forcke, for the purpose of entering the property on which the Alamo Street Theater is located where said vehicle enters Wickes from S. Alamo.

(f) No tour or charter service operating a vehicle for hire along E. Guenther, between S. Main and S. Alamo, shall park or allow passengers to board or disembark on the north side of the roadway nor remain parked on the south side of the roadway for more than fifteen (15) minutes and only then for the purpose of allowing passengers to board and disembark.

(g) After having first obtained a destination point permit, a tour or charter service may operate a bus or motor coach along the destination routes designated in this section for the purpose of transporting passengers to and from the destination points within the King William Historic District or the Monte Vista Historic District designated in this section, but only where said passengers will disembark at said destination points. No such vehicle for hire operated for this purpose may remain parked on any non-commercial street within the King William Historic District or the Monte Vista Historic District for any period of time after said passengers have disembarked. Said vehicles may return to the destination point along the destination routes for the purpose of boarding said passengers at the completion of their tour, but may not remain on any non-commercial street for any period of time after the passengers have boarded.

(h) The following are designated destination points within the King William Historic District:

(1) The Steves Homestead Museum located at 509 King William, the destination route for which shall begin at the intersection of S. Alamo and E. Johnson and proceed west along E. Johnson to the intersection of E. Johnson and King William and then proceed south along King William to said destination point and then from the destination point south along King William to the intersection of King William and E. Guenther and then proceed west along E. Guenther to the intersection of E. Guenther and S. Main, or, alternatively, begin at the intersection of E. Guenther and S. Main and be the opposite route of the route described; and

(2) The San Antonio Art League located at 130 King William, the destination route for which shall begin at the intersection of King William and S. St. Mary's and proceed south along King William to said destination point and then from said destination point south along King William to the intersection of King William and Turner and then proceed east along

Turner to the intersection of Turner and S. Alamo, or, alternatively, begin at the intersection of Turner and S. Alamo and be the opposite route of the route described.

(i) No destination points are designated within the Monte Vista Historic District.

(j) No tour or charter service may operate a vehicle for hire of any type on any non-commercial street in the aforementioned historic districts except between the hours of 10:00 a.m. and 6:00 p.m. Monday through Friday, and 12:00 p.m. and 6:00 p.m. Saturday and Sunday.

(k) No tour or charter service may utilize or cause to be utilized from or in a vehicle for hire of any type operated by said tour or charter service an electronic sound amplification system that is audible outside of any vehicle operated by said service in the King William Historic District or the Monte Vista Historic District.

(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14; Ord. No. 2016-03-03-0164, § 1(Att. A), 3-3-16)

Editor's note—Ord. No. 2016-03-03-0164, § 1(Att. A), adopted March 3, 2016, renumbered sections 33-725—33-727 as sections 33-726—33-728.

Sec. 33-727. Destination point permits.

(a) A destination point permit shall not be issued without the submission of a written application before use of the permit.

(b) The director may establish rules and requirements for obtaining permits. In addition, the director may establish rules further restricting the use of permits.

(c) Permits shall be displayed, at all times, in the windshield of any vehicle operating under the authority of the permit while in the King William Historic District or the Monte Vista Historic District.

(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14; Ord. No. 2016-03-03-0164, § 1(Att. A), 3-3-16)

Editor's note—See section 33-726 editor's note.

Sec. 33-728. Fees.

The following fees are hereby established:

(1)	Driver permit	$30.00
(2)	Renewal of driver permit. . .	30.00
(3)	Replacement of lost driver permit	15.00
(4)	Driver transfers from one (1) holder to another.	15.00
(5)	Supplemental permits, ten (10) days (including airport operating permit).	100.00
(6)	Application	110.00
(7)	Historic district designation point permits:	
	Per five (5) consecutive days/ per service	20.00
	Per year/per service	100.00
(8)	*Tour vehicle permit (per vehicle/per year)	
	Passenger capacity:	
	15 or less	440.00
	More than 15.	550.00
(9)	*Charter vehicle permit (per vehicle/per year).	250.00
(10)	Late permit payment	30.00
(11)	Re-inspection.	28.00
(12)	Inspection re-scheduling . . .	28.00

All fees are due upon request of service and non-refundable.

*Tour operating permit fees shall be paid to the city for each vehicle authorized by the permit agreement. The operating permit fees shall be paid in one (1) payment or four (4) quarterly payments, due on the first business day of the following months: January, April, July and October.

*Charter operating permit fees shall be paid to the city for each vehicle authorized by the permit agreement. The charter operating permit fees shall be paid in one (1) payment or two (2) semi-annual payments, due on the first business day of January and July.

Permit fees shall not be pro-rated.

Tour operating permit and charter operating permits are separate. Vehicles that require both permits must request a tour permit and a charter permit.

Late permit payments shall be charged for all permit payments that are received after the close of business on the fifth business day of the month a payment is due.

Permits that do not have fees paid prior to thirty (30) calendar days from the due date shall be suspended until all fees are paid. If the fees are not paid prior to sixty (60) calendar days from the due date all permits shall be revoked.
(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14; Ord. No. 2016-03-03-0164, § 1(Att. A), 3-3-16; Ord. No. 2016-12-08-0968, § 1(Att. B), 12-8-16)

Editor's note—See section 33-726 editor's note.

Secs. 33-729—33-760. Reserved.

Sec. 33-761. Rates of fare.

(a) A holder shall file with the director a schedule of fares to be charged for services provided.

(b) A holder shall notify the director within forty-eight (48) hours of any changes in the fare schedule filed by the holder.

(c) The use of any type of meter or measuring device to calculate rate of fare is prohibited.

(d) Fares for charter service shall be based on the size and type of the vehicle used and the amount of time for which the vehicle is reserved.
(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14)

Secs. 33-762—33-764. Reserved.

Sec. 33-765. Vehicle age requirements.

Vehicle used for tour service and charter service shall not have any age limits; however, vehicles may be removed from service by the director if the vehicles do not comply with any part of this chapter, rules and regulations, or vehicle inspection guidelines.
(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14; Ord. No. 2016-03-03-0164, § 1(Att. A), 3-3-16)

Secs. 33-766—33-769. Reserved.

Sec. 33-770. Reservation schedule required.

No charter vehicle may be operated for the purpose of providing charter service without a reservation schedule on board the vehicle reflecting the service being provided at the time.
(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14)

Secs. 33-771—33-899. Reserved.

ARTICLE VIII. TAXICABS*

Sec. 33-900. Scope of instant article.

Holders of permits to operate taxicab services and drivers of taxicabs shall be governed by the provisions of articles I and VIII of this chapter.
(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14)

Secs. 33-901—33-908. Reserved.

Sec. 33-909. Business office.

A holder of an operating permit to operate taxicab services shall maintain a business office in a location other than a dwelling.
(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14)

Secs. 33-910—33-923. Reserved.

Sec. 33-924. Qualification as self-insurer.

In lieu of furnishing an insurance policy required under section 33-018 of this chapter, a taxicab service may qualify for and obtain, pursuant to V.T.C.A., Transportation Code § 601.124, a certificate of self-insurance for the types of insurance and amounts of coverage required by this chapter. Should a holder opt for such self-insurance, however, proof thereof must be provided

*__Editor's note—__Ord. No. 2014-12-11-1002, § 1(Att. A), adopted December 11, 2014 and effective March 1, 2015, amended article VIII in its entirety to read as herein set out. Formerly, article VIII, §§ 33-900—33-981, pertained to similar subject matter, and derived from Ord. No. 2013-08-01-0501, § 1(Exh. A), adopted August 1, 2013.

to the director prior to commencement of any operations under this chapter. The holder must also meet the city's approved self-insurance requirements.
(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14)

Sec. 33-925. Amount of insurance.

Except as otherwise provided by the holder's operating authority, the public liability and property damage insurance required by this chapter shall be the minimum amount. The state minimum amount shall be required for the following categories:

(a) For damages arising out of bodily injury to or death of one (1) person in any one (1) accident;

(b) For damages arising out of bodily injury to or death of two (2) or more persons in any one (1) accident; and

(c) For damages arising out of injury to or destruction of property in any one (1) accident.

(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14)

Secs. 33-926, 33-927. Reserved.

Editor's note—Ord. No. 2016-12-08-0968, § 1(Att. B), adopted December 8, 2016, repealed the former sections 33-926 and 33-927 in their entirety, which pertained to dispatch service license required and number of vehicles for hire authorized, respectively, and derived from Ord. No. 2014-12-11-1002, § 1(Att. A), adopted December 11, 2014.

Sec. 33-928. Classifications and requirements of vehicles.

Holders shall operate taxicabs in the city in accordance with the terms and conditions of the type of operating permit issued. The types of operating permits authorized by this chapter shall be classified as city-wide and airport, as defined in section 33-003 of this chapter.

(a) Each holder, owner and driver shall remove from city-wide and airport service any taxicab that does not comply with Rule 421 established by the director under this chapter. The age of the vehicle shall be calculated from the vehicle's model year.

(b) Wheelchair accessible vehicle requirements:

(1) Wheelchair accessible vehicles shall service the entire city.

(2) Wheelchair accessible vehicles shall comply with the rules and regulations as established by the director.

(3) Wheelchair accessible vehicles may pick up and drop off at the airport as requested.

(4) Wheelchair accessible vehicles shall not have any age limits; however, vehicles may be removed from service by the director if the vehicle(s) do not comply with any part of this chapter, the rules and regulations, or vehicle inspection guidelines.

(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14; Ord. No. 2016-03-03-0164, § 1(Att. A), 3-3-16; Ord. No. 2022-11-03-0845, § 1(Att. C), 11-3-22)

Sec. 33-929. Number of taxicabs; authority to operate additional taxicabs.

(a) A holder shall maintain in service a minimum of three (3) taxicabs, except holders of owner/operator permits shall maintain in service only one (1) vehicle.

(b) The number of vehicles authorized by the permit agreement and the number of vehicle permits issued pursuant thereto shall be reduced to reflect the actual number of vehicles the holder is able to operate and maintain in accordance with the provisions of this chapter, the operating permit, the permit agreement, and the rules and regulations established by the director.

(c) All applicants for permits or additional permits shall be eligible to receive only such additional taxicab permits as are necessary to meet the service needs of the city's population growth. The number of additional taxicab permits for each calendar year shall be determined by a ratio of one (1) taxicab per one thousand seven hundred (1,700) population within the legal

boundaries of the city. The population figure for the city will be based upon the annual population estimate as determined by the planning department as of December 31 of the year preceding the allocation period.

(d) The procedure to distribute the taxicab permits shall be outlined in the rules and regulations established by the director.

(e) In addition to the requirements of subsections (c) and (d) above, other factors which may be relied on in determining eligibility for additional or new permits include, but are not limited to, whether:

(1) One hundred (100) percent of the holder's authorized taxicabs passed the most recent scheduled semi-annual inspection;

(2) Holder has complied with this chapter and the rules and regulations established by the director.

(f) The holder's application for additional vehicle permits may be denied if any of the requirements of the section above are not met or if at any time during the 12-month period immediately preceding the application for additional permits the holder:

(1) Failed to pay a fine or fee owed within the time required by this chapter or the director;

(2) Failed to maintain the license/permit bond or insurance required by this chapter;

(3) Had a vehicle permit revoked or suspended; or

(4) Has failed to assign any previously issued vehicle permits to a vehicle.

(g) A holder who is approved for additional vehicle permits shall execute an amended permit agreement authorizing the additional vehicles. The amended permit agreement shall supersede any such agreements previously executed between the city and the holder. The duration of the amended permit agreement shall be for the same period of time as provided for in the original permit agreement.

(h) A holder receiving new or additional vehicle permits shall, within one hundred eighty (180) days of signing the permit agreement have presented the vehicle(s) to the city which must have passed the initial inspection.
(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14; Ord. No. 2016-03-03-0164, § 1(Att. A), 3-3-16; Ord. No. 2018-05-31-0396, § 2 (Att. A), 5-31-18, eff. 7-1-18; Ord. No. 2022-11-03-0845, § 1(Att. C), 11-3-22)

Sec. 33-930. Permit usage.

(a) A holder shall operate and maintain a city approved fleet of vehicles consistent with the number of vehicles authorized in the permit agreement. No company shall operate and maintain less than three (3) vehicles.

(b) A holder shall replace a vehicle within one hundred eighty (180) days from the date that the vehicle taken out of service. Permits that are not filed after one hundred eighty (180) days shall have the permits revoked.

(c) The number of vehicles authorized by the permit agreement shall be reduced to reflect the actual number of vehicles the holder is able to operate and maintain.
(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14; Ord. No. 2016-03-03-0164, § 1(Att. A), 3-3-16; Ord. No. 2022-11-03-0845, § 1(Att. C), 11-3-22)

Sec. 33-931. Approval of wheelchair accessible vehicle permits for operation of taxicabs.

The director may approve wheelchair accessible permits for the purpose of providing a service to the disability community and these vehicles must give priority to individuals that need a wheelchair accessible vehicle, as outlined in the Taxicabs Rules and Regulations. All other provisions of this chapter applicable to taxicabs apply to the operation of wheelchair accessible taxicabs pursuant to this section where such provisions are not in conflict with this section.
(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14; Ord. No. 2016-03-03-0164, § 1(Att. A), 3-3-16)

Sec. 33-932. Owner/operators.

(a) The director shall issue up to seventy-five (75) owner/operator permits to individual persons who own a motor vehicle for use as a taxicab service. These permits shall be included in calculating the number of additional permits available pursuant to the section 33-929(c). Owner/operators are exempt from section 33-929(d)—(i).

(b) An applicant for an owner/operator permit must be a continuously active and permitted taxicab driver in San Antonio for at least one (1) year at the time of the application.

(c) The owner/operator vehicle may not be operated as a vehicle for hire by anyone other than the permitted owner/operator.

(d) The procedure for distribution of owner/operator permits is outlined in City of San Antonio Taxicab Rules and Regulations.

(e) An individual who is approved for an owner/operator permit must make timely payment of all tax assessments and fees.

(f) Applicants and vehicles for owner/operator permits shall comply with all provisions of chapter 33 except for the following:

Section 33-007(f), (h), (i), (l), and (m).

Section 33-009.

Section 33-971.

(g) Within ninety (90) days after receipt of an owner/operator permit, the holder shall operate a city-wide ground transportation service in accordance with the provisions of this chapter, the operating permit, permit agreement, and the rules and regulations established by the director, for a period of five (5) years beginning on the date stated in the permit agreement. Thereafter, the owner/operator permit shall be renewed for a period of two (2) years, subject to the provisions in section 33-025.
(Ord. No. 2018-05-31-0396, § 2 (Att. A), 5-31-18, eff. 7-1-18)

Sec. 33-933. Fees.

The following fees are hereby established:

(1)	Driver permit	$30.00
(2)	Renewal of driver permit	30.00
(3)	Replacement of lost driver permit	15.00
(4)	Driver transfers from one (1) holder to another	15.00
(5)	Taxicab application, per permit	110.00
(6)	*Citywide taxicab operating permit (per year/per vehicle)	250.00
(7)	Late permit payment	30.00
(8)	Re-inspection	28.00
(9)	Inspection re-scheduling	28.00

All fees are due upon request of service and are non-refundable.

Taxicab operating permit fees shall be paid to the city for each taxicab authorized by the permit agreement. The taxicab operating permit fees shall be paid in one (1) payment or two (2) semi-annual payments, due on the first business day of January and July.

Permit fees shall not be pro-rated.

Late permit payments shall be charged for all permit payments that are received after the close of business on the fifth business day of the month payment is due.

Permits that do not have fees paid prior to thirty (30) calendar days from the due date shall be suspended until all fees are paid. If the fees are not paid prior to sixty (60) calendar days from the due date all permits shall be revoked.
(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14; Ord. No. 2016-03-03-0164, § 1(Att. A), 3-3-16; Ord. No. 2016-12-08-0968, § 1(Att. B), 12-8-16)

Secs. 33-934—33-970. Reserved.

Sec. 33-971. Operating requirements.

(a) Every taxicab shall be operated as a unit of an effective operating group of sufficient number and equipped with such approved communica-

tion facilities for rendering satisfactory call service, unless expressly exempted by the director. This requires that owners of small fleets or single taxicabs shall operate as members of a city-approved operating association or as independent contractors as provided for in this chapter.

(b) Each member of an approved association or cooperative shall own and maintain sole registered ownership of one (1) association or cooperative vehicle only.
(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14; Ord. No. 2016-12-08-0968, § 1(Att. B), 12-8-16)

Sec. 33-972. Driver as an independent contractor.

(a) A holder may contract with a driver on an independent contractor basis if and only if:

(1) Either the holder himself or the driver with whom he contracts is the owner of the vehicle for hire to be operated by such driver in the holder's ground transportation service;

(2) The contract provides that the holder indemnifies the city and holds the city harmless for all claims and/or causes of action against the city arising from the acts or inactions of the driver;

(3) The contract provides that the driver being contracted with is insured under the holder's insurance policy as required by this chapter;

(4) The contract imposes a condition that the driver must comply with the requirements of this chapter, rules and regulations established by the director, rules and regulations established by the city's director of aviation and all other applicable rules, regulations and laws, and that failure to so comply may be considered by the holder as a material breech of the contract; and

(5) The holder provides to the director within two (2) business days, an itemized disclosure of all lease fees charged to each driver. The contract shall state that an independent contractor will not be charged more than a five (5) percent processing fee for credit and debt cards.

(b) A holder who continues to contract with a driver who repeatedly violates chapter 33 may face revocation or suspension of the holder's permit(s) under article I, division 3, revocation/suspension of permits.

(c) The form of the contract between a holder and driver must be approved by the director. The director may disapprove a contract form if he determines that the contract is inconsistent with this chapter, regulations established under this chapter, or other applicable law. A holder may not use a contract that has been disapproved by the director.
(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14)

Sec. 33-973. Driver conduct.

A driver shall not offer, confer or agree to confer on another person money, compensation or any benefit in order to receive a paying fare:

(a) A drivers permit shall be suspended for sixty (60) days for the violation of this provision.

(b) A drivers permit shall be revoked for a second violation of this provision within twenty-four (24) months from the date of the first violation.
(Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14)

Secs. 33-974—33-980. Reserved.

Sec. 33-981. Rate of fares.

(a) Taxicab fare rates shall be:

Drop charge	$3.50
Per mile	2.70
Per hour wait time	27.00
Per hour traffic delay	27.00

(b) Taxicab operator may charge a rate that is less than the maximum rate outlined in subsection (a). All passengers must be notified of discounted rates through an electronic applica-

tion, website, or over the phone by a dispatcher. The taxicab meter must be utilized at all time to include during a discounted fare.

(c) The minimum rate charge on any trip originating at the San Antonio International Airport or any pre-arranged (time-call) trip shall be twenty dollars ($20.00) or the meters fare, which ever is greater.

(d) The minimum rate charge on any trip originating in the "downtown rate zone" shall be ten dollars ($10.00). "Downtown rate zone" is the geographical area bounded by Interstate 37, traveling south from IH 35 to E. Houston St.; E. Houston St., traveling east to N. Cherry St.; N. Cherry Street, traveling south to Caesar Chavez Blvd.; Caesar Chavez Blvd., traveling west to Alamo St.; Alamo St., traveling south to Frio St.; Frio St., traveling north to W. Houston; W. Houston, traveling east to IH 35; IH 35, traveling north to IH 37.

(e) Taxicab operators may charge two dollars ($2.00) for each additional passenger over four (4) passengers (the fifth and sixth passengers) not to exceed more than four dollars ($4.00).

(f) A driver or holder shall not charge a fare for operating a taxicab that is higher than permitted in section 33-981 of this chapter. A driver or holder shall not charge any additional fees to include but not limited to: credit card processing fees, debt card processing fees, any third party card processing fees, and any other fees that are inconsistent with section 33-981 of this chapter.

(g) A driver or holder may be authorized to charge a five dollar ($5.00) surcharge to be added to the amount on the meter for trips that originate from the following venues:

(1) AT&T Center.

(2) Alamodome.

(3) Freeman Coliseum.

(4) Toyota Field.

(5) During official fiesta events.

(h) A driver may charge up to a two hundred dollar ($200.00) cleaning fee, when at no fault of the driver a passenger leaves the taxicab in a state that requires immediate cleaning or the taxicab could not transport additional passengers. Prior to charging this fee the driver shall report the situation to their dispatch company and record the date, time, detailed information of the cleaning needed, and the amount the driver is charging.

(i) The director may require a holder to display rates on or within a vehicle for hire in a manner prescribed by the director.

(j) A per-mile fuel surcharge shall be added to the fares established by this section where the average price of regular unleaded gasoline is two dollars and twenty cents ($2.20) or greater. The per-mile surcharge shall be as outlined in section 33-982;

(k) A fuel surcharge adjustment shall be done when the average price of fuel increases or decreases more than twenty-five cents ($0.25) from the last effective date. Fuel surcharge adjustments shall be done within forty-five (45) days from the date that the calculated average fuel price is received by the director.

(l) Taxicab operators may charge an airport departure fee to the customer at the rate that is equal to the amount charged to the operator pursuant to section 3-86 of this Code.

(m) Between January 1 and April 1 of every even numbered year, the transportation advisory board shall review the taxicab fare rates and make a recommendation to city council, no later than July 1, whether to adjust the rates in effect at the time of the recommendation. Nothing in this section shall preclude the city from undertaking a study of taxicab rate of fares at its own discretion at any time, for referral to city council. (Ord. No. 2014-12-11-1002, § 1(Att. A), 12-11-14; Ord. No. 2016-03-03-0164, § 1(Att. A), 3-3-16; Ord. No. 2016-12-08-0968, § 1(Att. B), 12-8-16; Ord. No. 2022-11-03-0845, § 1(Att. C), 11-3-22)

Sec. 33-981.1. Per mile surcharge.

[Per mile surcharges are as follows:]

Average Gas Price	*Per-Mile Surcharge*
Under $2.20	$0.00
$2.20—$2.49	0.05

Average Gas Price	*Per-Mile Surcharge*
$2.50—$2.79	0.10
$2.80—$2.99	0.15
$3.00—$3.20	0.20
$3.21—$3.49	0.25
$3.50—$3.79	0.30
$3.80—$3.99	0.35
$4.00—$4.19	0.40
$4.20—$4.49	0.45
$4.50—$4.79	0.50
$4.80—$4.99	0.55
$5.00—$5.19	0.60
$5.20—$5.49	0.65
$5.50—$5.79	0.70
$5.80—$5.99	0.75
$6.00—$6.19	0.80
$6.20—$6.49	0.85
$6.50—$6.79	0.90
$6.80—$6.99	0.95
$7.00 and above	1.00

(Ord. No. 2016-12-08-0968, § 1(Att. B), 12-8-16)

Editor's note—Ord. No. 2016-12-08-0968, § 1(Att. B), adopted December 8, 2016, enacted provisions intended for use as section 33-982. Inasmuch as there are already provisions so designated, and at the discretion of the editor, said provisions have been redesignated as section 33-981.1.

ARTICLE IX. ELECTRIC VEHICLE SERVICE*

DIVISION 1. IN GENERAL

Sec. 33-990. Scope of instant article.

Holders of permits to operate electric vehicles (EV) and electric vehicle service (EVS) and drivers of EVs shall be governed by the provisions of articles I and IX of this chapter.

(Ord. No. 2022-11-03-0845, § 1(Att. A), 11-3-22)

*__Editor's note—__Ord. No. 2022-11-03-0845, § 1(Att. A), adopted Nov. 3, 2022, repealed the former Art. IX, and enacted a new article as set out herein. The former Art. IX pertained to transportation network companies and derived from Ord. No. 2015-03-05-0152, adopted March 5, 2015. This ordinance set out provisions intended for use as Art. IX, §§ 33-910—33-912, 33-921, 33-930—33-937, 33-940, 33-950. For purposes of classification, and at the editor's discretion, these provisions have been included as Art. IX, §§ 33-990—33-992, 33-1001, 33-1010—33-1017, 33-1020, 33-1030.

Sec. 33-991. Fees.

The following fees are hereby established:

(1)	Inspection	$28.00
(2)	Re-inspection/re-scheduling	$28.00
(3)	Drivers permit	$30.00
(4)	Drivers permit renewal	$30.00
(5)	Replacement of lost drivers permit	$15.00
(6)	Drivers permit transfer	$15.00
(7)	Operating permit	$250.00* per year/per vehicle
(8)	Permit application	$110.00 per permit
(9)	Late permit payment	$30.00

All fees are due upon request of service and non-refundable.

* Operating permit fees shall be paid to the city for each vehicle authorized by the permit agreement. The operating permit fees shall be paid in one (1) payment or four (4) quarterly payments, due on the first business day of the following months: January, April, July, and October.

Late permit payments shall be charged for all permit payments that are received after the close of business on the fifth business day of the month payment is due. Permits that do not have fees paid prior to thirty (30) calendar days from the due date shall be suspended until all fees are paid. If the fees are not paid prior to sixty (60) calendar days from the due date, all permits shall be revoked.

(Ord. No. 2022-11-03-0845, § 1(Att. A), 11-3-22)

Sec. 33-992. Amount of insurance.

Except as otherwise provided by the holder's operating permit, the public liability and property damage insurance required by this article shall be the minimum of one million dollars ($1,000,000.00) per occurrence for each vehicle, to include the state minimum amount of com-

mercial insurance for the vehicle. These minimums shall be required to cover the following categories:

(1) For damages arising out of bodily injury to or death of one (1) person in any one (1) accident;

(2) For damages arising out of bodily injury to or death of two (2) or more persons in any one (1) accident; and

(3) For damages arising out of injury to or destruction of property in any one (1) accident.

(Ord. No. 2022-11-03-0845, § 1(Att. A), 11-3-22)

Secs. 33-993—33-1000. Reserved.

DIVISION 2. OPERATING AUTHORITY

Sec. 33-1001. Number of ground transportation vehicles authorized per classification.

(a) The total number of vehicle permits shall be determined by the director. The director may modify the total number of permits as the director determines to be appropriate.

(b) A holder within one hundred eighty (180) days after receipt of an operating permit shall operate and maintain a city-approved fleet of vehicles for hire consisting of the number of vehicles authorized and required by the permit agreement. After one hundred eighty (180) days, the number of vehicles authorized by the permit agreement and the number of vehicle permits issued pursuant thereto shall be reduced to reflect the actual number of vehicles the holder is able to operate and maintain in accordance with the provisions of this chapter, the operating permit, the permit agreement, and the rules and regulations of the director.

(c) A holder may not hold more permits than are issued by the director.

(Ord. No. 2022-11-03-0845, § 1(Att. A), 11-3-22)

Secs. 33-1001—33-1009. Reserved.

DIVISION 3. SERVICE REGULATIONS

Sec. 33-1010. Hours of operation.

The director shall establish the hours during which a driver may operate an EV as a rule or regulation in accordance with sections 33-004 and 33-005 of this chapter.

(Ord. No. 2022-11-03-0845, § 1(Att. A), 11-3-22)

Sec. 33-1011. Areas of service.

The areas of service shall be determined by the director in the rules and regulations.

(Ord. No. 2022-11-03-0845, § 1(Att. A), 11-3-22)

Sec. 33-1012. Passenger restrictions.

No EV shall transporter more passengers than the vehicle is rated for. If the vehicle does not have a manufactured passenger rating, the director shall determine the vehicle's maximum occupancy.

(Ord. No. 2022-11-03-0845, § 1(Att. A), 11-3-22)

Sec. 33-1013. Standing or resting.

EVs shall not stand, park, or wait for a fare on any public roadway, sidewalk, or walkway. The exception are provided in the rules and regulations.

(Ord. No. 2022-11-03-0845, § 1(Att. A), 11-3-22)

Sec. 33-1014. Holder's duty to comply.

(a) In the operation of an EV service, a holder shall comply with the terms and conditions of the holder's permit agreement. Except to the extent expressly provided otherwise by the permit agreement, the holder shall comply with this chapter, the director's interpretations of the provisions herein, rules and regulations established by the director, and other laws applicable to the operation of a vehicle for hire.

(b) Upon written notice by the director of a violation by a driver or employee, a holder who allows such driver or employee to operate a EV while in violation becomes responsible and liable to the city for all fees, penalties, and license revocations incurred by the driver or employee because of a failure to comply with this chapter,

rules, and regulations established by the director, and other laws applicable to the operation of the EV.
(Ord. No. 2022-11-03-0845, § 1(Att. A), 11-3-22)

Sec. 33-1015. Holder's duty to enforce compliance by drivers.

(a) A holder shall establish a policy and take action to discourage, prevent, and correct violations of this chapter by drivers who are employed or contracted by the holder.

(b) A holder shall not permit a driver who is employed or contracted by the holder to operate any EV, if the holder knows or has reasonable cause to suspect that the driver has failed to comply with this chapter, the rules and regulations established by the director, or other applicable law.
(Ord. No. 2022-11-03-0845, § 1(Att. A), 11-3-22)

Sec. 33-1016. Holders responsible for fitness of drivers.

(a) Each holder operating a service in the city shall employ or contract as drivers only persons who are physically and mentally fit and who have sufficient experience and training to operate the specific EV in a safe and proper manner. It shall be the sole responsibility of the holder to employ or contract only those drivers who are qualified under this chapter to obtain a driver permit. The employment or contracting of any driver shall be subject to the driver obtaining a temporary or permanent driver permit.

(b) Each holder is charged with knowledge of the contents of the file of all drivers the holder employs or contracts. The director shall consider a holder's continued employment or contracting of any driver whose file shows a lack of mental, emotional, or temperamental capacity to be a safe and reliable driver. when reviewing such holder's request for a grant or renewal of an operating permit.
(Ord. No. 2022-11-03-0845, § 1(Att. A), 11-3-22)

Sec. 33-1017. Periodic appearance in person by holders and drivers.

Upon request and reasonable notice holders and drivers shall appear, in person, before the director and the director's representative.
(Ord. No. 2022-11-03-0845, § 1(Att. A), 11-3-22)

Secs. 33-1018—33-1019. Reserved.

DIVISION 4. FARES

Sec. 33-1020. Fares.

The use of any type of meter or measuring device to calculate rate of fare is prohibited.
(Ord. No. 2022-11-03-0845, § 1(Att. A), 11-3-22)

Secs. 33-1021—33-1029. Reserved.

DIVISION 5. VEHICLES AND EQUIPMENT

Sec. 33-1030. Inspection requirements.

(a) EVs shall be inspected yearly.

(b) EVs shall comply with all vehicle requirements outlined in rules and regulations established by the director as well as the requirements outlined in the vehicle inspection guidelines.
(Ord. No. 2022-11-03-0845, § 1(Att. A), 11-3-22)

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Chapter 34

WATER AND SEWERS*

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***Charter references—**Authority of city to acquire and maintain property for water and sewer systems, § 3, par. 13(1), (23); powers with respect to sanitary sewer system, § 3, par. 10; public works department, § 60 et seq.

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State law reference—Authority of home rule cities to enact ordinances more stringent than minimum state standards with respect to water and sewage, Vernon's Ann. Civ. St. art. 4477-1, § 23.

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ARTICLE I. IN GENERAL

DIVISION 1. GENERALLY

Sec. 34-1.01. Title.

This chapter shall be known as the Water and Sewer Chapter of the City of San Antonio City Code.
(Ord. No. 80330, § 1, 6-16-94)

Sec. 34-1.02. Severability of chapter.

If for any reason any one or more sections, sentences, clauses or parts of this chapter are held invalid, such judgment shall not affect, impair or invalidate the remaining provisions of this chapter but shall be confined in its operation to the specific sections, sentences, clauses or parts of this chapter held invalid. The invalidity of any section, sentence, clause or part of this chapter in any one or more instances shall not affect or prejudice in any way the validity of this chapter in any other instance.
(Ord. No. 80330, § 1, 6-16-94)

Sec. 34-1.03. Rules of construction.

(a) Words, phrases and terms defined in this chapter shall be given the defined meaning.

(b) Words, phrases and terms not defined in this chapter shall be given their usual and customary meanings except where the context clearly indicates a different meaning.

(c) The text of this chapter shall control any captions, or titles.

(d) The word "shall" is mandatory and not permissive; the word "may" is permissive and not mandatory.

(e) Words used in the singular include the plural and words used in the plural include the singular.

(f) Words used in the present tense include the future tense and words used in the future tense include the present tense.

(g) In their interpretation and application, the provisions of this Chapter shall be deemed to be minimal in nature and whenever the provisions, standards or requirements of any other applicable chapter of this Code are higher or more restrictive, the latter shall control.
(Ord. No. 80330, § 1, 6-16-94)

Sec. 34-1.04. Tunnel rental fees.

The increase of the Storm Water Utility Fund by the establishment of a tunnel inlet rental fee of twenty-five dollars ($25.00) per tour and one hundred dollars ($100.00) per rental of the tunnel inlet or outlet structure for special events is hereby approved.
(Ord. No. 96415, § 1, 9-19-02)

Sec. 34-1.05. Floodplain verification letter fee.

The increase of the Storm Water Utility Fund by the establishment of a floodplain verification letter fee of thirty dollars ($30.00) per request letter processed is hereby approved.
(Ord. No. 96416, § 1, 9-19-02)

Sec. 34-1.06. Cost of service reviews of miscellaneous and special services fees.

All SAWS miscellaneous and special services fees authorized in chapter 34 that are not rates as set forth in articles II, III, VIII, and IX shall be subject to a comprehensive cost of service review every three years. Each cost of service review shall be evaluated by the supervisor of public utilities and the review's recommendations on fee amounts must be approved by ordinance by the city council in order for the fees to be adjusted. The first required comprehensive cost of service review shall be conducted on all such fees prior to any proposed updates for 2021.
(Ord. No. 2017-12-07-0928, § 3(Att. II), 12-7-17)

DIVISION 2. DEFINITIONS

Sec. 34-2.01. Definitions.

For the purposes of this chapter the following terms, phrases, words and their derivations shall have the meaning given in this section. In the event a definition listed in Article I, Division 2,

herein is given a more specific meaning within another article/division of this chapter, such more specific definition shall control.

Athletic field. A sports playing field, the essential feature of which is turf grass, used primarily for organized sports for public or private schools, professional sports, or sanctioned league play.

Base use amount for general and wholesale water service customers. For general class water customers the base is defined as one hundred (100) percent of the average monthly water consumption with such amount being calculated by adding the monthly consumption, deducting irrigation use either calculated or metered, for the previous calendar year, and dividing the sum by twelve (12). For a new general class water customer who does not have a record of prior-year consumption history in order to establish a base use, a default base amount shall be assigned using the average monthly consumption for the prior calendar year for the average apartment, general or industrial account (as applicable) having the same meter size and sub-classification as the customer. A table of average monthly consumptions by general class sub-classification and meter size shall be updated annually by SAWS with actual prior calendar year consumption history information to serve as the source of default base amount assignments. For wholesale water service customers the base is defined as one hundred (100) percent of average monthly water consumption for the previous calendar year or as agreed to by the wholesale customer and approved by the SAWS board of trustees.

Board. The Board of Trustees of the San Antonio Water System, a water, wastewater and wastewater reuse agency of the City of San Antonio, established and created pursuant to the provisions of Ordinance No. 75686 and the Texas Revised Civil Statutes Annotated Article 1115.

Certificate of convenience and necessity (CCN). The area designated by the Texas Natural Resource Conservation Commission (TNRCC) within which the system operates and maintains water production and distribution facilities.

Customer service. The organizational unit of the San Antonio Water System charged with the duties of billing, collection and responding to customer inquiries.

Drip irrigation. Irrigation system (drip, porous pipe, etc.) that applies water at low-flow levels directly to the roots of the plant.

Economic development customer. Any customer that agrees in a contract to which SAWS is a party:

(1) To construct new or additional manufacturing or assembly facilities located within SAWS' service area that require a minimum capital investment of three hundred fifty million dollars ($350,000,000.00);

(2) To employ in such facilities a minimum of one thousand five hundred (1,500) persons in new or additional full time employment positions with an average salary, including benefits, of a minimum of nineteen dollars ($19.00) per hour, adjusted as of January 1 of each year for inflation and cost of living based on the Texas Consumer Price Index, as published by the comptroller of public accounts, using January 1, 2003, as the base comparative date; and

(3) To purchase potable water and wastewater treatment and service exclusively from SAWS for a period of at least ten (10) consecutive years.

End use. The use of water, typically by a customer, before it is discharged either back to the environment, an organized wastewater collection system, or an on-site wastewater system. Examples of end use include, landscape, domestic, cooling towers, manufacturing. These uses may be further defined. For example within the broad category of "domestic" end use is laundry, shower, dishwasher use.

Flow study. For the purposes of Chapter 34, Articles I and II, a study to estimate how much water from a single meter service is used for irrigation and other on-site uses. To conduct the flow study all irrigation from a meter is discontinued for a 14-day period and daily incom-

ing meter readings are recorded. The resulting consumptions are to be averaged, then annualized and compared to the previous twelve (12) months of water consumption.

This information will be used to determine the volume to be attributed to irrigation and charged the irrigation water service rate.

Full time employment. Employment for a minimum of thirty-five (35) hours per week.

General customer. Any customer not meeting the definition of a residential or wholesale customer as set forth herein.

Golf course. An irrigated and landscaped playing area made up of greens, tees, fairways, roughs and related areas used for the playing of golf.

Hand-held hose. A hose attended by one (1) person, fitted with a manual or automatic shutoff nozzle.

Hose-end sprinkler. A sprinkler that applies water that is piped through a flexible movable hose to landscape plants.

I.C.L. Inside the corporate limits of the city.

Irrigation system. A system of fixed pipes and emitters, drip, or heads that apply water to landscape plants or turfgrass, including, but not limited to, in-ground and permanent irrigation systems.

Irrigation water. The application of water to grow or maintain landscaping plants, such as flowers, ground covers, turf or grasses, shrubs, and trees. For purposes of Water Service and Rates, Article I and Article II does not include:

(1) Essential use without waste of water by a commercial nursery to the extent the water is used for production rather than decorative landscaping;

(2) Treated wastewater referred to as recycled water or on-site reuse water such as cooling tower blow-down or other process water used at least once on-site and then reused for landscape irrigation;

(3) Application of irrigation water by means of a bucket [not to exceed five (5) gallons in capacity], hand-held hose, hose-end sprinkler or soaker hose;

(4) Water used without waste by a golf course, athletic field, public school, or public park.

Landscape irrigation plan. The plan will include the type of irrigation system installed, zones, and square footage irrigated. It may also include a description of performance standards such as a calculated distribution uniformity, rain sensors, moisture meters, and other systems that increase the efficiency of the overall system, identification, location and dimensions of plant materials, description of plant materials shown on the plan, including names (common and botanical) or other information the customer would like to submit supporting their claim.

O.C.L. Outside the corporate limits of the city.

Outdoor landscaping. Any member of the Kingdom Plantae, including any tree, shrub, vine, herb, flower, succulent, groundcover or grass species, that grows or has been planted out-of-doors.

Public park. Municipal, county, state or federal owned or operated facility or tract of land, other than a golf course, maintained as a place of beauty or of public recreation.

Public school. A free tax-supported school controlled by a local governmental authority.

Quality control. The organizational unit of the San Antonio Water System charged with monitoring, testing, and preserving both the potable water quality and wastewater quality of the service area, as well as administering the San Antonio Pretreatment Program.

Regional agent boundary (RAB). The geographic region within which the system operates and maintains sanitary sewer facilities.

Residential customer. A single or multi-family dwelling unit containing two (2) or less family units.

SAWS. The San Antonio Water System, a water, wastewater and wastewater reuse agency

of the city, established and created pursuant to the provisions of Ordinance No. 75686 and Texas Revised Civil Statutes Annotated Article 1115.

Service area. The geographic region within which the system operates and maintains water and/or sanitary sewer facilities.

System. All properties, facilities, and plants currently owned, operated, and maintained by the city and/or board for the supply, treatment, and transmission and distribution of treated potable water, chilled water, and steam, for the collection and treatment of wastewater, and for water reuse, together with all future extensions, improvements, purchases, repairs, replacements and additions thereto, whether situated within or without the limits of the city, all water (in any form) owned by the city, and any other projects and programs of the system, provided, however, that the city expressly retains the right to incorporate (1) a stormwater system as provided by the provisions of Section 402.041 through 402.054, as amended, local government Code, or other similar law, and (2) any other related system as provided by the laws of the State of Texas as a part of the system. The system shall not include any special project of any water or water-related properties and facilities owned by the city as part of its electric and gas systems.

Turf. A surface layer of earth containing mowed grass with roots.

Wholesale customer. A customer which has entered into a contract for wholesale water and/or sewer service with the System.
(Ord. No. 80330, § 1, 6-16-94; Ord. No. 92752, § 1, 10-19-00; Ord. No. 97264, § 1(Att. 1), 2-27-03; Ord. No. 2017-12-07-0928, § 3(Att. II), 12-7-17; Ord. No. 2024-06-20-0480, § 1(Exh. A), 6-20-24)

DIVISION 3. BILLING AND COLLECTION OF CHARGES FOR SERVICES PROVIDED BY THE SYSTEM

Sec. 34-3.01. Deposits.

An advance deposit of an amount reasonably adequate to secure payment of the customer's final bill shall be required of all new customers. For a new residential water/wastewater account, the amount of the deposit shall be one hundred dollars ($100.00). For a new residential water-only account, the amount of the deposit shall be sixty dollars ($60.00). For a new residential water/wastewater customer who qualifies for participation in the SAWS Uplift Assistance Program, the amount of the deposit shall be fifty dollars ($50.00). For a new residential water-only customer who qualifies for participation in the SAWS Uplift Assistance Program, the amount of the deposit shall be thirty dollars ($30.00). For a new residential wastewater-only customer who qualifies for participation in the SAWS Uplift Assistance Program, the amount of the deposit shall be twenty dollars ($20.00). For a new residential wastewater-only account, the amount of the deposit shall be forty dollars ($40.00). For a new general class water/wastewater account, the amount of the deposit shall vary by meter size:

Meter Size	General Class
⅝"	$100
¾"	$150
1"	$250
1.5"	$500
2"	$800
3"	$1,600
4"	$2,500
6"	$5,000
8"	$8,000
10"	$10,000
12"	$14,000

Such amounts for other types of accounts shall be determined in accordance with system Resolution No. 93-107, and as amended which establishes a policy for customer deposits. The deposit amounts listed in section 34-3.01 are effective for new accounts established on or after January 1, 2023. These deposit amounts shall be adjusted on January 1 of each year thereafter by the percentage of any approved monthly charge change (greater than zero (0)) for the next year in the monthly water and sewer charges for the average SAWS residential customer, and subsequently rounded to the nearest dollar.
(Ord. No. 80330, § 1, 6-16-94; Ord. No. 2007-12-13-1345, § 2(Att. B), 12-13-07; Ord. No. 2017-12-07-0928, § 3(Att. II), 12-7-17; Res. No. 18-262,

11-13-18; Res. No. 19-280, 7(Att. V), 11-5-19; Ord. No. 2022-11-10-0867, § 2(Att. II), 11-10-22)

Sec. 34-3.02. Payment of current monthly charges.

The monthly charges for all applicable services provided by the system are payable on or before fifteen (15) days from the date of mailing of the bill.
(Ord. No. 80330, § 1, 6-16-94)

Sec. 34-3.03. Penalty for late payment.

A penalty for late payment in the amount of five (5) percent of the net charges shall be added to the current charges owing if full payment for such charges is not made to the system on or before fifteen (15) days from date of mailing of the bill. The late payment penalty shall not be assessed for a residential customer who qualifies for participation in the SAWS Uplift Assistance Program.
(Ord. No. 80330, § 1, 6-16-94; Ord. No. 2022-11-10-0867, § 2(Att. II), 11-10-22)

Sec. 34-3.04. Extension to penalty for late payment.

(a) Any applicable statute, rule, or regulation pertaining to customers classified as state agencies and political subdivisions shall prevail over any provision of this section in conflict therewith. In the event of such conflict, the system shall promulgate regulations applicable to customers classified as state agencies and political subdivisions which conform to the applicable statute, rule, or regulation.

(b) The penalty provision of this section may not apply to residential customers classified as senior citizens, i.e., customers sixty (60) years or older, or as "senior citizen" is otherwise defined by applicable federal, state or local law. Penalty provisions for customers classified as senior citizens shall be in accordance with such regulations and under such terms as the system may prescribe.

(c) Section 34-3.03 shall not apply to a customer who meets the following criteria:

(1) The customer can satisfactorily prove to the system that he/she is disabled through the submittal of a current receipt of supplemental security income (SSI) benefits.

(2) The customer requests that the system delay without penalty the payment date for his/her most recent utility bill or the most recent utility bill and each subsequent utility bill until the twenty-fifth (25th) day after the date the bill is issued.

(3) The customer is a residential customer occupying the premises for which the delay is requested.

(4) The customer is not currently enrolled in the SAWS preauthorized electronic payment plan.

(5) The customer acknowledges that a late penalty in the amount of five (5) percent of the net charges will be added to the current charges owed if full payment for such charges is not made to the system on or before twenty-five (25) days after the date the bill is issued.

(6) Customer further acknowledges that annual recertification is required.

The system is both delegated the authority to and is required to update this subsection to reflect any additional requirements or changes to such requirements resulting from any amendments to applicable federal, state or local rules.
(Ord. No. 80330, § 1, 6-16-94; Ord. No. 99892, § 1(Att. I), 10-14-04)

Sec. 34-3.05. Reserved.

Editor's note—Ord. No. 2022-11-10-0867, § 2(Att. II), adopted Nov. 10, 2022, repealed § 34-3.05, which pertained to transfer of service; fee and derived from Ord. No. 80330, adopted June 16, 1994.

Sec. 34-3.06. Termination of system service for non-payment of applicable charge.

In the event payment of applicable charges for system services is not made on or before thirty

(30) days after the date of the mailing of the system bill, system services shall be subject to termination in accordance with the procedures set out herein.
(Ord. No. 80330, § 1, 6-16-94)

Sec. 34-3.07. Encroachment or easement release application processing fee.

A request to allow an encroachment on, over and/or across an existing SAWS easement or to release (in whole or in part) an existing SAWS easement must be submitted to SAWS development engineering services in accordance with procedures and requirements established by SAWS. The non-refundable application processing fee for the encroachment or release request is eight hundred eighty-three dollars ($883.00). SAWS may require applicant to verify ownership, and if property owner is a legal entity, documentation will be required demonstrating applicant's authority to make an application on behalf of the entity. If the encroachment is approved by SAWS, an agreement, prepared by SAWS corporate real estate, will be entered into between the property owner and SAWS granting the encroachment. If the easement release request is approved, SAWS corporate real estate will either: (i) if SAWS paid consideration for the easement, enter into negotiations for consideration for the full or partial release of the easement, or (ii) if the easement was dedicated to SAWS, prepare the release for SAWS execution. This fee amount is effective January 1, 2025. The fee amount shall be adjusted on January 1 of each year thereafter by the percentage difference (greater than zero (0)) between the Consumer Price Index for All Urban Consumers (CPI-U) as it is calculated by the United States Bureau of Labor Statistics at the end of the month of July prior to the next year and as it was calculated at the end of the month of July one (1) year earlier, and subsequently rounded to the nearest dollar. SAWS will periodically perform a cost of service analysis to ensure that the fee charged does not exceed the cost of providing the service.
(Ord. No. 2007-12-13-1345, § 2(Att. B), 12-13-07; Ord. No. 2015-11-19-0956, § 4(Att. III), 11-19-15; Ord. No. 2017-12-07-0928, § 3(Att. II), 12-7-17; Res. No. 18-262, 11-13-18; Res. No. 19-280, 7(Att. V), 11-5-19; Ord. No. 2022-11-10-0867, § 2(Att. II), 11-10-22; Res. No. 2023-198, 10-3-23; Res. No. 2024-227, § 7(Att. IV), 11-5-24)

Sec. 34-3.08. Meter locate multiple trip fee.

If a customer's request for onsite water and/or wastewater utility location services requires more than one trip to a specific address, the customer shall be assessed a fee of fifty-nine dollars ($59.00) for each additional trip. This fee amount is effective January 1, 2025. The fee amount shall be adjusted on January 1 of each year thereafter by the percentage difference (greater than zero (0)) between the Consumer Price Index for All Urban Consumers (CPI-U) as it is calculated by the United States Bureau of Labor Statistics at the end of the month of July prior to the next year and as it was calculated at the end of the month of July one (1) year earlier, and subsequently rounded to the nearest dollar. SAWS will periodically perform a cost of service analysis to ensure that the fee charged does not exceed the cost of providing the service.
(Ord. No. 2022-11-10-0867, § 2(Att. II), 11-10-22; Res. No. 2023-198, 10-3-23; Res. No. 2024-227, § 7(Att. IV), 11-5-24)

DIVISION 4. NOTICE AND HEARING REQUIREMENTS PRIOR TO TERMINATION OF SERVICE

Sec. 34-4.01. Issuance of final notice.

Prior to any action being taken to terminate a customer's service for non-payment of applicable charges, the system shall formally notify such customer of their right to a hearing on the matter through the issuance of a final notice.
(Ord. No. 80330, § 1, 6-16-94)

Sec. 34-4.02. Hearing procedure.

The system shall follow the pretermination administrative hearing procedure set out in Schedule 1 which is attached hereto for customer notification and convenience. In the event the system duly amends such procedure from time to time, an updated version of such procedure shall be supplied to the City of San Antonio City

Clerk. Copies of the system's most current Pretermination Administrative Hearing Procedures shall be available to all system customers upon request, at the system's customer service locations.
(Ord. No. 80330, § 1, 6-16-94)

Editor's note—Schedule 1 referenced above is set out at length at the end of this chapter.

DIVISION 5. REINSTATEMENT OF SYSTEM SERVICE

Sec. 34-5.01. Sewer service-only reinstatement charges.

For SAWS sewer service customers who receive water service from a different utility, the system shall reinstate sewer service terminated for nonpayment of charges upon payment by the customer of all outstanding and owing service charges as shown on the bill, plus reimbursement to SAWS of any additional fees paid by SAWS to the serving water utility for the shut-off and turn-on of the customer's account.
(Ord. No. 80330, § 1, 6-16-94; Ord. No. 2017-12-07-0928, § 3(Att. II), 12-7-17)

Sec. 34-5.02. Other reinstatement charges.

Additionally, under certain special conditions or events, the procedures and charges relative to reinstatement of water service are as follows:

(a) If a customer, whose service has been discontinued in accordance with division 4 is found to have reinstated his water service at the curb stop without approval of the system, the customer's meter shall be removed to preclude illegal reinstatement of service by the customer, and a fee shall be added to the customer's account in the amount of one hundred thirty-four dollars ($134.00) to recover the cost of removal of the illegal service connection.

Additionally, a fee shall be added to the customer's account in the amount of four hundred and fifty-seven dollars ($457.00) to recover the cost of capping the customer's service line.

As a condition for service reinstatement, after removal of an illegal service connection or after a meter has been found to be damaged or illegally removed, one of the following fees shall also be assessed a customer's account to replace the damaged or illegally removed meter depending on the size and type of meter as listed below:

Meter Size	*Mechanical Meter*	*Connect H2O Meter*
⅝"	$97.00	$156.00
¾"	$118.00	$160.00
1"	$149.00	$213.00
1.5"	$303.00	$492.00
2"	$463.00	$625.00

If the customer is found to have tampered or damaged an associated Connect H2O Meter, the associated valve, the associated lock, or the plug installed to cap the associated service line, one or more of the following charges shall be added to the customer's account depending on the piece of equipment damaged:

Connect H2O Meter tampering fee	$58.00
Valve tampering fee	$77.00
Lock tampering fee	$61.00
Plug tampering fee	$74.00

(b) In addition, the customer shall be charged the cost of the estimated amount of water used between the time the customer's service was disconnected for non-payment and the time the customer's illegal straight connection was discovered. For a residential customer, the charge for the water used will be calculated using the winter average (see section 34-226.1) for all SAWS residential customers. For a general class customer, the charge for water used will be calculated using the appropriate average monthly consumption amount by meter size listed in the table of average monthly consumptions by general class sub-classification a meter

size established by SAWS and updated on an annual basis as defined in section 34-2.01.

(c) Full payment of all charges incurred under the terms of section 34-3.01, paragraphs (a) and (b) above must be made prior to the reinstatement of service.

(d) If a customer presents a check or other negotiable instrument in payment of service fees that is not honored by the bank or other financial institution upon which the check or other negotiable instrument is drawn, a service charge of thirty dollars ($30.00) shall be added to the amount due the system by the customer; provided, however, that if the instrument is returned by the financial institution because of error on its part, the service charge will not be added.

(e) All fee amounts listed in section 34-3.01, paragraphs (a) and (b) above are effective January 1, 2025. The fee amounts shall be adjusted on January 1 of each year thereafter by the percentage difference (greater than zero (0)) between the Consumer Price Index for All Urban Consumers (CPI-U) as it is calculated by the United States Bureau of Labor Statistics at the end of the month of July prior to the next year and as it was calculated at the end of the month of July one (1) year earlier, and subsequently rounded to the nearest dollar. SAWS will periodically perform a cost of service analysis to ensure that the fees charged do not exceed the cost of providing the services.

(Ord. No. 80330, § 1, 6-16-94; Ord. No. 101685, § 3(Att. I), 11-17-05; Ord. No. 2011-12-08-1004, § 2(Exh. L), 12-8-11; Ord. No. 2017-12-07-0928, § 3(Att. II), 12-7-17; Res. No. 18-262, 11-13-18; Res. No. 19-280, 7(Att. V), 11-5-19; Ord. No. 2022-11-10-0867, § 2(Att. II), 11-10-22; Res. No. 2023-198, 10-3-23; Res. No. 2024-227, § 7(Att. IV), 11-5-24)

DIVISION 6. CUSTOMER BILL INQUIRIES

Sec. 34-6.01. Response to customer inquiries.

Customers may direct questions concerning their bills to any of the system's customer service locations during regular working hours. The system shall respond to such inquiries in a timely, consistent and comprehensive fashion.
(Ord. No. 80330, § 1, 6-16-94)

Sec. 34-6.02. Procedures and guidelines for routine customer inquiries.

The system has established procedures and guidelines to be followed for certain types of routine inquiries such as high bills and adjustments due to leakage. Such procedures are available to any customer upon request at any of the system's customer service locations.
(Ord. No. 80330, § 1, 6-16-94)

Sec. 34-6.03. Procedures and guidelines for non-routine customer inquiries.

The system has established procedures and guidelines to be followed for certain types of nonroutine inquiries. A compilation of such procedures, including methods for determining consumption during the winter sewer averaging period, is available to any customer upon request at any of the system's customer service locations.
(Ord. No. 80330, § 1, 6-16-94)

Sec. 34-6.04. Itemized statement.

When a customer requests preparation by SAWS of an itemized statement of the customer's account history for a specified period of time, a fee of thirteen dollars ($13.00) per hour of required preparation time shall be assessed the customer.
(Ord. No. 2007-12-13-1345, § 2(Att. B), 12-13-07)

DIVISION 7. APPEAL PROCEDURE

Sec. 34-7.01. Appeal committee.

The board is hereby authorized to appoint a committee of three (3) members, to be known as

the customer service appeals committee, to hear appeals from a decision to terminate service rendered by the customer review officer, as well as customer disputes concerning high bills, adjustments due to leakage, or other matters covered in sections 34-6.01 through 34-6.03 herein.
(Ord. No. 80330, § 1, 6-16-94)

Sec. 34-7.02. Procedures for appeal.

The procedures for appeal before the customer service appeals committee are set out in Schedule 3—Customer Service Appeals Committee, which is attached hereto for customer notice and convenience. In the event the system duly amends such procedure, an updated version of such procedure shall be supplied to the City of San Antonio City Clerk. Copies of the system's most current customer service appeals committee procedure shall also be available upon request at the system's customer service locations.
(Ord. No. 80330, § 1, 6-16-94)

Editor's note—Schedule 3 referenced above is set out at length at the end of this chapter.

Sec. 34-7.03. Relief granted from decision to terminate.

In the event the customer service appeals committee determines that the decision of the customer review officer to terminate service was erroneous, the committee shall direct system staff to reconnect the customer's service immediately, without payment of reinstatement charges.
(Ord. No. 80330, § 1, 6-16-94)

DIVISION 8. WATER QUALITY AND ENVIRONMENTAL EDUCATION AND ENFORCEMENT ACCOUNT

Sec. 34-8.1. Establishment of account.

SAWS is hereby directed to establish an account to be entitled the water quality and environmental education and enforcement account (hereinafter "the account"). The establishment of the account shall in no way conflict with the terms and conditions set out in Ordinance 75686 of April 30, 1992.
(Ord. No. 80574, § 1, 8-4-94)

Sec. 34-8.2. Funding source.

(a) *Civil penalties.* Certain Divisions of Chapter 34, specifically Article V, Division 2, Industrial Waste and Pretreatment, and Division 3, Liquid Waste Transportation and Disposal Regulations, and Article VI, Division 2, Wells, Division 4, Prohibited Discharges Into the Municipal Separate Storm Sewer System, Division 6, Aquifer Recharge Zone and Watershed Protection, and Division 7. Underground Storage Tank Management Program include sections imposing civil penalties in addition to criminal penalties. Civil penalties collected by the actions of SAWS and its attorneys pursuant to such sections shall be recorded in the Account created pursuant to Section 34-8.1 herein, unless expressly prohibited by law. Should any such civil penalties collected fail to be recorded in the account, the SAWS personnel and attorneys responsible for the imposition and collection of such civil penalty shall be required to justify in writing to the President/CEO why such funds were not so recorded and shall state the disposition of same.

(b) *Permit fees.* Certain Divisions of Chapter 34. specifically Article VI, Division 7, Underground Storage Tank Management Program, include sections requiring the payment of fees for the purpose of providing funding for the cost of administering and enforcing the related programs and regulations. Fees collected by the actions of SAWS pursuant to such sections shall be recorded in the account created pursuant to Section 34-8.1 herein, unless expressly prohibited by law. Should any such fee collected fail to be recorded in the account, the SAWS personnel responsible for the collection of such fees shall be required to justify in writing to the president/CEO why such funds were not so recorded and shall state the disposition of same.
(Ord. No. 80574, § 1, 8-4-94; Ord. No. 81491, § 3, 1-12-95; Ord. No. 83200, § 1, 11-16-95)

Sec. 34-8.3. Use of funds.

(a) *Civil penalties.* The funds collected from civil penalties in the account shall be utilized solely to educate the public in the areas of water quality and pollution prevention and to enhance the enforcement of the chapter divisions for

which such civil penalties were imposed. Such enhanced enforcement may include increased enforcement personnel as needed, the acquisition of additional material and equipment, and other activities directly related to the enforcement of the divisions for which civil penalties are imposed. A minimum of twenty-five (25) percent of the funds from civil penalties deposited in the account shall be used for funding activities directed towards the educating school age children on topics of water quality, conservation, environmental awareness and pollution prevention

(b) *Permit fees.* The funds collected from the payment of fees which are required to be recorded in this account shall be utilized solely for the purpose of funding the administration and enforcement of the programs and regulations under which they were collected.
(Ord. No. 80574, § 1, 8-4-94; Ord. No. 83200, § 3, 11-16-95)

Sec. 34-8.4. Funds to be kept separate.

The funds within the account shall be recorded and accounted for in a manner that distinguishes them from other SAWS funds and shall be disbursed in a manner which is consistent with the purposes for which this account has been established.
(Ord. No. 80574, § 1, 8-4-94)

DIVISION 9. ENFORCEMENT

Sec. 34-9.1. Granting of enforcement authority to SAWS.

(a) The president/CEO of SAWS is hereby granted the authority to designate qualified SAWS personnel to enforce this chapter in the manner and to the extent allowed by law.

(b) The president/CEO is specifically granted the authority to designate qualified SAWS personnel to file notices of violations of this chapter and to take all necessary actions to file complaints with the municipal prosecutor's office for violations of this chapter.
(Ord. No. 80574, § 2, 8-4-94)

Sec. 34-9.2. Granting of authority to pursue legal remedies.

The SAWS legal department is hereby granted the authority to seek legal and/or equitable remedies including the filing of criminal charges for violations of this chapter. The SAWS legal department, as well as the office of the city attorney, are hereby granted the additional authority to exercise all powers allowed under the Texas Water Code, Chapter 7, § 7.351 and § 7.352, which enforcement powers are here authorized to address violation or threat of violation of Chapter 26 of the Texas Water Code or a rule adopted or an order or a permit issued under Chapter 26 of the Texas Water Code by instituting a civil suit (under Subchapter D, General Powers and Duties of the Commission, Texas Water Code §§ 5.101, et. Seq.) in the same manner as the Texas Commission on Environmental Quality (TCEQ) in a district court for injunctive relief or civil penalty or both. The authority here authorized shall survive change in the name of the TECQ and the succession of any agency to the TCEQ. The SAWS legal department shall, for purposes of this chapter, represent the city, by ad through the San Antonio Water System.
(Ord. No. 80574, § 2, 8-4-94; Ord. No. 97000, § 2, 1-9-03)

Sec. 34-9.3. Authority of city attorney to enforce chapter.

The granting of the authority set out in section 34-9.2 herein shall in no way diminish the authority and responsibility of the city attorney to enforce Chapter 34 and diligently prosecute violations of this chapter through the municipal prosecutor's office.
(Ord. No. 80574, § 2, 6-16-94)

Sec. 34-9.4. Utility service lien.

The SAWS' Board of Trustees and the President/Chief Executive Officer is hereby granted the authority to impose a lien against an owner's property for delinquent municipal utility service bills unless the property is a homestead as protected by the Texas Constitution. The lien shall not apply to service connected in a tenant's

name after notice by the property owner to the municipality that the property is rental property or service connected in a tenant's name prior to the effective date of the ordinance imposing the lien.

The lien shall be perfected by recording in the real property records of the county where the property is located a notice of lien containing a legal description of the property and the SAWS account number for the delinquent charges. The lien may include penalties, interest, and collection costs. The lien allowed under this section shall be inferior to a bona fide mortgage lien that is recorded before the recording of SAWS lien in the real property records of the county where the property is located but the SAWS lien is superior to all other liens, including previously recorded judgment liens and any liens recorded after its lien.
(Ord. No. 2025-05-08-0345, § 3(Exh. B), 5-8-25)

Secs. 34-10—34-15. Reserved.

ARTICLE II. WATER SERVICE AND RATES*

DIVISION 1. GENERALLY

Sec. 34-16. Supplying below standard water to another.

It shall be unlawful for any person to supply another any water to drink or for domestic purposes, which does not comply with the public health service drinking water standards and the standards set by the state water development board pursuant to V.T.C.A., Water Code, § 26.023.
(Code 1950, § 62-1; Code 1959, § 41-1)

Sec. 34-17. Investigation of pollution or potential pollution.

Where an analysis of water samples, as provided by section 34-18, indicates pollution or potential pollution of a water supply, it shall be the duty of the director of public health or his duly authorized representative to make investigation to determine, if possible, the cause and remedy for such condition, and to make suitable recommendations to the official or other person responsible for such water supply to ensure the protection and the purity of the supply, and it shall be the duty of such official or other person responsible for such water supply to ensure the protection and the purity of the supply and to comply with the standards adopted by section 34-16.
(Code 1950, § 62-3; Code 1959, § 41-3)

Sec. 34-18. Analyses of drinking water required.

Every official or other person responsible for any water supply in the city, who furnishes water for drinking and domestic purposes to fifty (50) or more people, shall have at least one (1) sanitary analysis of a representative sample of water from the distribution system made each week and submit a copy of such analysis to the city public health department or submit at least one (1) sample of such water weekly to the city public health department, as may be directed by the director of public health. Where the population served by a water supply is greater than one thousand (1,000), there shall be made at least one (1) additional analysis each month for each one thousand (1,000) population in excess of the first one thousand (1,000) population, up to one hundred thousand (100,000) population, and for populations in excess of one hundred thousand (100,000), the number of supplies analyzed monthly shall be in accordance with the standards adopted in this section.
(Code 1950, § 62-2; Code 1959, § 41-2)

Sec. 34-19. Restoring polluted water, procedure where not eradicated.

If such official or other person responsible for a water supply fails or neglects to observe or comply with the standards adopted by section 34-16 or if it shall be found to be impossible to restore and protect the purity of such water supply so that it will not endanger the lives and health of the consumers of that supply, the further use of such supply for drinking and domestic purposes shall either be discontinued and another approved supply shall be secured, or

*__State law reference—__Texas Water Quality Act, V.T.C.A., Water Code, § 26.001 et seq.

the director of public health shall warn the public of the character of the water supply concerned, together with recommendations for their protection, whichever seems in the opinion of the director of public health best to protect the lives and health of the citizens of the city.
(Code 1950, § 62-4; Code 1959, § 41-4)

Sec. 34-20. Sources of water prohibited for drinking or domestic use.

It shall be unlawful to draw, pump, dip or otherwise take water from the San Antonio River, the San Pedro Creek, the Alazan Creek, the Apache Creek or the Menger Creek within the city for drinking or other domestic purposes or to drink or use for other domestic purposes any water taken therefrom.
(Code 1950, § 62-6; Code 1959, § 41-5)

Sec. 34-21. Health certificate and permit required of itinerant water vendors.

It shall be unlawful for an itinerant vendor to sell water for drinking or domestic purposes within the city, without securing a health certificate as provided in section 13-96, requiring certificates for food handlers, and securing the approval of the director of public health of the water sold and the containers from which the water is sold.
(Code 1950, § 62-5; Code 1959, § 41-6)

Sec. 34-22. Polluting bodies of water.

It shall be unlawful for any person to defile the waters of the San Antonio River, San Pedro Creek, the Alazan Creek, the Zarzamora Creek, or any lake or any stream, or any other body of water, whether running or not.
(Code 1950, § 62-20; Code 1959, § 41-7)

Sec. 34-23. Pipes, drains or sewer leading into bodies of water.

No pipe, drain or sewer connecting with or leading into the San Antonio River, San Pedro Creek, Alazan Creek, Zarzamora Creek, or any lake, or any stream, or any other body of water whether running or not, or any of the irrigating ditches of the city shall be used for any purpose except as drainage pipe for water.
(Code 1950, § 62-21; Code 1959, § 41-8)

Sec. 34-24. Discharging oil, grease, soap, etc., into public waters or streams.

(a) It shall be unlawful for any person to discharge any fluid, containing oil, into any of the waters or streams within the city. All establishments engaged in a business wherein water mixed with oil, or oil, is discharged into any public stream, sewer or drain within the city may equip the discharge pipes from such establishment with traps to separate the oil from the water in such a manner as only unpolluted water will flow from such trap into any sewer, drain or public stream within the city.

(b) It shall be unlawful for any person to run or discharge any fluid or water containing either grease, soap, lye, washing powder, mud or filth into any of the public waters or streams within the city.
(Code 1950, §§ 62-22, 62-23; Code 1959, §§ 41-9, 41-10)

Sec. 34-25. Reserved.

Editor's note—Ord. No. 80574, § 6, adopted Aug. 4, 1994, repealed former § 34-25, relative to restrictions on landscape watering, which derived from Ord. No. 72834, adopted Dec. 20, 1990 and Ord. No. 73267, adopted March 7, 1991. Said Ord. No. 80574 enacted new provisions regarding similar subject matter which has been included in this chapter as Division 3 of Article IV, § 34-301 et seq.

Secs. 34-26—34-35. Reserved.

DIVISION 2. CITY WATER SERVICE

Sec. 34-36. When connection with water main compulsory.

(a) The owner of every tract of land in the city, upon which there is a building used for human habitation or used for commercial purposes, which tract abuts on a street in which a public water supply line is located and is within two hundred (200) feet of such water supply line,

shall connect to such water supply line and shall use water therefrom for drinking, domestic and commercial purposes.

(b) This section shall not apply to any person who has a supply of water on his premises from an approved well more than one hundred (100) feet deep, the water from which well complies with the water standards required by section 34-16.
(Code 1950, § 62-8; Code 1959, § 41-17)

Sec. 34-37. Street improvements, service and posting of notice.

(a) Whenever the city shall determine that any street of the city shall be paved the director of public works shall cause a written notice to be served on each and every one (1) of the owners, occupants or agents of property along the lines of such street where such improvements are proposed to be made, and also serve a like notice upon the proper authorities of the water suppliers, requiring them, within fifteen (15) days from the date of such notice, to make connections with the water mains that may be laid on such street, unless such connections have already been made.

(b) If along the line of such street there is any vacant or unoccupied lot and the owner or agents thereof cannot be conveniently found, the director of public works shall cause to be posted such notice, as aforesaid, in some conspicuous place upon such lot.
(Code 1950, §§ 62-9, 62-10; Code 1959, §§ 41-18, 41-19)

Sec. 34-38. Specifications for service connections.

(a) All property owners on streets, alleys, plazas and other public places, hereafter to be paved, shall, within fifteen (15) days after written notice from the director of public works, connect their water fixtures with the street water mains. Wrought and galvanized pipe incorporated in the center of concrete at least six (6) inches wide or a double "A" lead pipe inside of a three-inch vitrified pipe, are acceptable types of service connections, and should any type of service connection other than the above be used, it shall first be approved by the director of public works.

(b) Service pipes shall be connected to mains by either two (2) elbows or an elbow and a tee in such manner as to make a flexible joint that will prevent an excessive strain on the pipes.

(c) All public water meters are owned, operated, maintained and replaced by the San Antonio Water System. The San Antonio Water System may install an advanced electronic meter and communication endpoint at a customer's water service connection for the purpose of measuring water use and transmitting that information over an electronic communication network. No person shall be allowed to prohibit the installation of such an advanced electronic meter nor shall they inhibit the electronic transmission of water use information.
(Code 1950, § 62-11; Code 1959, § 41-20; Ord. No. 2022-11-10-0867, § 2(Att. II), 11-10-22)

Sec. 34-39. Connections with bathing pools and water tanks.

It shall be unlawful for any person to make or to maintain any connection with the water supply system of the city discharging into any bathing pool or any water tank except in such a manner that the place of discharge from the water supply system of the city shall be more than one (1) foot above the top of the overflow of the bathing pool or the water tank.
(Code 1950, § 62-13; Code 1959, § 41-21)

Sec. 34-40. Cross connections with water mains prohibited.

(a) It shall be unlawful for any person to make or to maintain any cross connection within the city or to allow any cross connection to exist at any place under the control of any person.

(b) The term cross connection, as used in this section, is defined as any mechanical union or any hydraulic union which, under any condition, might pass water into the water supply system of the city from any other source.
(Code 1950, § 62-14; Code 1959, § 41-22)

Sec. 34-41. Disconnection for noncompliance.

It shall be the duty of the manager of the water supply system of the city to disconnect the city service from any place where the provisions of this article are violated, whether inside or outside of the city.
(Code 1950, § 62-15; Code 1959, § 41-23)

Sec. 34-42. Unlawful connection with water main.

It shall be unlawful for anyone without the written consent of the manager or owner of the water supply to bore or drill into any water main or make attachments to or connections with any service pipe or turn on water from street cocks.
(Code 1950, § 62-16; Code 1959, § 41-24)

Sec. 34-43. Maintenance of service pipes.

All persons using water furnished by the city shall keep their service pipes from the city's service box in good repair, so as to prevent leakage on the streets.
(Code 1950, § 62-12; Code 1959, § 41-25)

Sec. 34-44. Unlawful taking of water.

It shall be unlawful for any person without the written consent of the owner or manager of the water supply to make an attachment to, or to use water from, any private hydrant for purposes other than those specified in the original application for water.
(Code 1950, § 62-17; Code 1959, § 41-26)

Sec. 34-45. Unlawful use of city's water.

It shall be unlawful for any person to touch, tamper with or open the city fire hydrants, or to use the water from the same, except under the immediate control of the chief of the fire department, and then only by persons authorized for the extinguishment of fires, practice of the fire department, flushing the gutters, watering the streets and plazas with hose or watering carts, and repairing of the hydrants.
(Code 1950, § 62-18; Code 1959, § 41-27; Ord. No. 2024-06-20-0480, § 1(Exh. A), 6-20-24)

Sec. 34-46. Injuries to water system.

It shall be unlawful for any person, in any way, to intentionally or carelessly break, deface or in any manner injure or destroy any hydrant or standpipe or other property belonging to the city or belonging to others, and used in connection with the waterworks.
(Code 1950, § 62-19; Code 1959, § 41-28)

Sec. 34-47. Title to water service apparatus.

Title to all water meters, curb-cocks and appurtenances that are attached through service lines or branches thereof to the water mains of the city water system, including the meter and curb-cock boxes enclosing the same, shall be vested in the city for the singular use and benefit of the waterworks board of trustees. No person other than a duly authorized agent or representative of the waterworks board of trustees shall open the meter or curb-cock or appurtenances thereto. The waterworks board of trustees shall maintain, repair and replace all meters, curb-cocks and appurtenances in connection therewith at its cost and expense.
(Ord. No. 19146, 6-4-53; Ord. No. 22374, § 4, 2-23-56; Code 1959, § 41-29)

Sec. 34-48. Penalties.

A conviction for violation of this division shall constitute a Class C misdemeanor. A person convicted of a violation of this division shall be fined not less than two hundred dollars ($200.00) nor more than two thousand dollars ($2,000.00) per violation. Each violation of a particular section of this division shall constitute a separate offense, and each day an offense continues shall be considered a new violation for purposes of enforcing this division.
(Ord. No. 2011-12-08-1004, § 2(Exh. L), 12-8-11)

Editor's note—Prior to the reenactment of section 34-48 by Ord. No. 2011-12-08-1004, § 2(Exh. L), adopted December 8, 2011, Ord. No. 80574, § 7, adopted Aug. 4, 1994, relocated the text of former section 34-48, relative to wasting water, to article IV, division 2, section 34-287. Former history notation has been retained at the new section designation.

Secs. 34-49—34-60. Reserved.

DIVISION 3. RESERVED*

Secs. 34-61—34-85. Reserved.

DIVISION 4. RESERVED†

Secs. 34-86—34-100. Reserved.

DIVISION 5. RESERVED‡

Secs. 34-101—34-120. Reserved.

DIVISION 6. RATES AND CHARGES**

Sec. 34-121. Establishment of rate schedules.

The schedule of water service rates and charges contained in Schedule A relating to residential water customers, the schedule of water service rates and charges contained in Schedule B relating to general water customers, the schedule of water service rates and charges in Schedule C relating to wholesale water customers, the schedule of water service rates and charges in Schedule D for irrigation water rates, the schedule of water service rates and charges relating to Uplift Assistance Program customers in Schedule G, and the schedule of conservation fee water rates and charges relating to residential, general and irrigation customers in Schedule H, as amended, attached hereto, shall be effective for all consumption on or about January 1, 2024 as appropriate, and shall be the lawful rates for water service to be charged by the system.
(Ord. No. 80330, § 1, 6-16-94; Ord. No. 90733, § 3, 10-21-99; Ord. No. 92752, § 1, 10-19-00; Ord. No. 99994, § 2(Att. I), 11-18-04; Ord. No. 101681, § 3(Att. I), 11-17-05; Ord. No. 2015-11-19-0956, § 4(Att. I), 11-19-15, Res. No. 16-302, Att. III; Ord. No. 2017-12-07-0928, § 1(Att. I), 12-7-17; Ord. No. 2022-11-10-0867, § 1(Att. I), 11-10-22; Res. No. 2023-198, 10-3-23)

Editor's note—Rate Schedules A and B referenced above are set out at length at the end of this chapter.

Sec. 34-121.1. Pass-through of EAA permit fee.

The assessment of a pass-through of the Edwards Aquifer Authority ("EAA") permit fee to all water customers is authorized. The initial monthly pass-through of the EAA permit fee shall commence on or after January 1, 1998, and shall apply to all water customers and all types of water usage. Such initial pass-through, while estimated to be $0.00629 per hundred gallons of consumption, is subject to change, based on the formula set out herein. The San Antonio Water System is delegated the authority to administratively adjust such pass-through on an annual basis, on or about January 1 of each year, in accordance with the following formula:

EDWARDS AQUIFER AUTHORITY ("EAA")
PERMIT FEE ADJUSTMENT

An adjustment will be made to the Edwards Aquifer Authority Permit Fee annually, beginning January 1, 1998, based on the following formula: the annual permit fee billed by the Edwards Aquifer Authority for the twelve-month period beginning in January plus the amount of the over-recovery or under-recovery from the prior twelve-month permit fee collections, divided by the project annual water usage, yields the permit fee on a dollars-per-gallon basis.

*__Editor's note—__Ord. No. 80574, § 15, adopted Aug. 4, 1994, repealed former Div. 3, §§ 34-61—34-71, relative to wells, which derived from Code 1950 §§ 62-24—62-37; Code 1959, §§ 41-37—41-50; and Ord. No. 23407, 8-9-56. Said Ord. No. 80574 enacted new provisions regarding similar subject matter which has been included in this chapter as Division 2 of Article VI, § 34-566 et seq.

†__Editor's note—__Ord. No. 80574, § 8, adopted Aug. 4, 1994, relocated the text of former Div. 4, §§ 34-86—34-89, relative to watercourses, to Art. VI, Div. 3, § 34-591 et seq. Former history notation has been retained at the new section designation.

‡__Editor's note—__Ord. No. 80574, § 9, adopted Aug. 4, 1994, repealed former Div. 5, § 34-101, relative to the aquifer management plan, which derived from Ord. No. 79702, adopted Feb. 24, 1994. Said Ord. No. 80574 enacted new provisions regarding similar subject matter which has been included in this chapter as Division 4 of Article IV, § 34-316 et seq.

**__Editor's note—__Ord. No. 80330, § 1, adopted June 16, 1994, amended former Div. 6, §§ 34-121—34-130, relative to rates and charges, in its entirety to read as herein set out. The provisions of former Div. 6 derived from Ord. No. 72742, adopted Dec. 6, 1990.

Permit fee billed by EAA PLUS *Over-recovery/under-recovery from prior 12-month permit fee collections*

Project annual water usage = *Adjusted permit fee on a dollars-per-gallon basis of consumption, for the 12-month period beginning in the month of January*

The San Antonio Water System is directed to show such pass-through as a line item on each customer bill. No pass-through shall be charged if there is not metered use by the customer during the month.
(Ord. No. 87042, § 2, 12-1-97)

Sec. 34-121.2. Pass-through of Water Uplift Assistance Program fee.

The assessment of a pass-through of the Water Uplift Assistance Program fee (Water UAP fee) to all non-UAP water customers in the residential, general, and irrigation classes is authorized. The initial monthly pass-through of the Water UAP fee shall commence on or after January 1, 2023. Such initial pass-through, while estimated to be $0.1590 per thousand gallons of billed water consumption, is subject to change, based on the formula set out herein. The San Antonio Water System is delegated the authority to administratively adjust such pass-through on an annual basis, on or about January 1 of each year, in accordance with the following formula:

WATER UPLIFT ASSISTANCE PROGRAM FEE ADJUSTMENT

An adjustment will be made to the Water UAP Fee annually, beginning January 1, 2024, based on the following formula: the annual revenue from the fee collected by SAWS for the prior twelve-month period beginning in January plus the amount of the over-recovery or under-recovery of the prior twelve-month costs of water service to UAP customers, divided by the projected annual water usage, yields the fee on a dollars-per-gallon basis.

Water UAP fee billed revenue by SAWS for prior twelve (12) months.

PLUS

Over-recovery/under-recovery of the prior twelve-month total costs of water service to UAP water customers from the application of UAP water rates.

PLUS

Projected UAP cost increases from program growth and rate changes.

DIVIDED BY

Projected annual water usage subject to UAP Fee for the next twelve (12) months.

EQUALS

Adjusted Water UAP Fee rate on a dollars-per-gallon basis of consumption, for the next twelve (12) months period beginning in the month of January.

The San Antonio Water System is directed to show such pass-through as a line item on each customer bill.
(Ord. No. 2022-11-10-0867, § 1(Att. I), 11-10-22)

Sec. 34-122. Rate schedules.

Rate Schedules A, B, C, D, G, and H relating to residential, general, wholesale, irrigation, and Uplift Assistance Program customers are hereby amended and shall hereinafter read as attached hereto and incorporated herein.
(Ord. No. 80330, § 1, 6-16-94; Ord. No. 92752, § 1, 10-19-00; Ord. No. 99994, § 2(Att. I), 11-18-04; Ord. No. 101681, § 3(Att. 1), 11-17-05; Ord. No. 2022-11-10-0867, § 1(Att. I), 11-10-22)

Editor's note—Rate Schedules referenced above are set out at length at the end of this chapter.

Sec. 34-122.1. Base use amount calculation for general and wholesale customers.

The amendments to Rate Schedule B relating to general and wholesale customers, which is attached hereto and incorporated herein, shall utilize a base use amount calculation, as such term is more thoroughly defined in Section 34-2.01.
(Ord. No. 92752, § 1, 10-19-00)

Sec. 34-122.2. Affordability reduction in meter charges for residential customers.

Residential customers that qualify to receive assistance from the City of San Antonio Community Initiatives Department, Community Action Division (CAD) based on federal income guidelines established by the CAD may qualify for a reduction in monthly water meter charges. Such qualification must be presented in writing to the San Antonio Water System Customer Service Department.
(Ord. No. 92752, § 1, 10-19-00)

Sec. 34-122.3. Economic development rate schedule.

Rate schedule D, establishing potable water rates for economic development customers, permitting the waiver of certain fees and costs, and permitting the provision of water and wastewater infrastructure at reduced or no cost to an economic development customer, is hereby adopted and attached hereto and incorporated herein.
(Ord. No. 97264, § 2(Att. 2), 2-27-03)

Sec. 34-122.4. Water service interconnect rate.

(a) *Definitions.* For the purpose of this chapter the following terms, phrases, words, and their derivations shall have the meaning in this section.

Customers. The application of the water service interconnect rate shall apply to customers or entities that request to interconnect into the system to receive water services on a temporary basis that:

(1) Do not have a current contract for wholesale water service with the system at the point of service that is included in the request; and

(2) Plan to resell the water provided by the system to its own customers.

The system shall have the discretion to determine whether or not a particular request for temporary water service qualifies as either a wholesale water service request or a request for temporary water service under this temporary interconnection rate. In making such a determination, the system may consider whether or not the requirements for service included in the request are within the system's long-term capabilities and consistent with the system's master plan.

Water rates of the customer. The water rates shall be herein defined as those water rates and charges in effect for residential customers of the customer at the time of the billing of the water service interconnect rate by the system. The water rates shall include but not be limited to all applicable water rates, surcharges, and charges for the procurement of existing or additional water sources.

Water rates of the system. The water rates shall be herein defined as those water rates and charges in effect for residential customers as defined under chapter 34 article II and amended from time to time. The water rates shall include but not be limited to the water supply fee, all applicable water rates, and Edwards Aquifer Authority Fees.

(b) *Application of water service interconnect rate.*

(1) *Billing of customer.* The system shall bill customer in accordance with the provisions in chapter 34, article II.

(2) *Systems' right to sell water.* System has an obligation to serve its customers who are not under the water service interconnect rate. System shall have the right not to sell to customer in any event that it deems necessary to preserve the capacity to serve customers who are not under the water service interconnect rate. When possible, system shall notify customer in advance that it will not be able serve customer under the interconnect arrangement for a designated time period.

(3) *Required documentation.* Customer shall provide to system on a monthly basis its monthly forecast for the next 12-month time period of water usage needs required of the interconnection infrastructure. The forecast documentation is necessary for

system to determine its ability to service customer under the water service interconnect rate.

Customer shall also provide to system on a monthly basis its current rate schedules then in effect for its residential customers, including all applicable charges and fees that would be charged to its residential customers for that month. If billing to customer is not according to the applicable rate schedules then in effect at time of billing, system reserves the right to bill customer on the applicable rates for all usage that was applied to the incorrect rate schedules.

(4) *System's ability to provide standby services.* System recognizes that the interconnect services are necessary to provide services that are on a standby basis and the rate should incorporate a provision for the standby service.

(5) *Payment for the interconnection infrastructure.* Customer shall pay for all services related to connecting into the infrastructure of the system, to include capital and operations costs. Customer shall pay for the pipeline costs in advance of receiving water services from system. In the event system must incur operations costs to service the interconnect infrastructure, system shall bill customer the current costs of time and materials.

(6) *Assignment of water under water service interconnect rate.* Water service provided to customer through the interconnect line is intended for the use of the customer on a temporary or emergency basis. Customer shall not assign the provisions of the water service to other water purveyors.

(c) *Water service interconnect rate.* The water service interconnect rate is hereby established and is applicable to the use of potable water.

Customer shall be charged on a monthly basis for the preceding monthly metered usage based on the following calculations:

(1) *Rates.* Customer shall be charged the highest bill calculated based on the metered usage on the interconnect line of the customer applied to the water rates of the system and the water rates of the customer;

(2) *Standby charge.* Customer shall be charged monthly for the ability of system to provide standby services at the system's meter fee rate on the interconnect meter. If water usage is metered for two (2) consecutive months or for more than three (3) months during a calendar year, then the system shall charge additional standby services of ten (10) times the applicable meter fee rate or monthly service availability charge for each month of metered usage in the calendar year; and

(3) *Time and material charges.* Customer shall be charged monthly for all time and material charges incurred to service the interconnect infrastructure. Such billing shall detail the reason for the charges in addition to the time and unit costs.

(Ord. No. 101684, § 1(Att. I), 11-17-05)

Sec. 34-123. Variance procedure for general water service customers.

If a general water service customer seeks an administrative variance from the applicable base use amount set out in Schedule B, the procedures set out herein shall be followed. The general water service customer shall apply in writing to the director of customer service, setting out the basis for his/her request for an administrative variance. Such request must clearly detail the factors upon which the customer is claiming relief from his/her base use amount. Such factors may include the seasonal nature of the business, health and safety needs and unique business processes. The director of customer service shall review the request, and may ask for additional written information from the customer if needed. Once all information requested by the customer service director has been received, the customer service director will respond to the request in writing within twenty (20) working days from receipt of all required information deemed necessary by the customer service director to render a decision. If the customer does not

agree with the determination of the director of customer service, the customer may appeal such determination within ten (10) working days to the President/Chief Executive Officer of the San Antonio Water System. The President/Chief Executive Officer shall make an independent review of the written information submitted by the requesting customer and the written determination and supporting documentation submitted by the director of customer service. The President/Chief Executive Officer shall make a written administrative determination on the variance request within ten (10) working days of receipt of the written appeal. If the customer does not agree with the determination of the President/Chief Executive Officer, the customer may request an appeal to the San Antonio Water System Board of Trustees through a written request to the President/Chief Executive Officer. The President/Chief Executive Officer shall schedule a hearing before the Board as soon as practicable, but in no event less than sixty (60) days after the receipt of the variance request.
(Ord. No. 92752, § 1, 10-19-00)

Sec. 34-124. Irrigation water service charge.

(a) *General.* An irrigation water service rate is hereby established and is set out in Schedule C which is attached hereto and incorporated herein. Such rate is applicable to the use of potable water for the growth and maintenance of outdoor landscaping and turf. Such rate is not applicable when recycled water is used for such purposes.

(b) *New non-residential accounts.* From and after the date of this ordinance, all customers that are installing an in-ground landscape irrigation system and seeking application for water service from the San Antonio Water System for new non-residential accounts shall be required to install a separate irrigation meter. All non-residential accounts receiving new service after 12:01 a.m. December 1, 2000 that install an in-ground irrigation system after initial water service is established will be required to install a dedicated irrigation meter when the new in-ground irrigation system is installed.

(c) *Existing non-residential accounts.* Existing non-residential customers that have an irrigation system and do not have a separate irrigation meter may choose to install a separate meter for irrigation purposes.

(1) If an existing non-residential customer that has an irrigation system chooses not to install an irrigation meter the customer has two options:

Option One:

a. SAWS will estimate for the non-residential customer through the use of surveys, meter sizes, past use or other methods the amount of water used for irrigation purposes. SAWS will notify in writing the resulting finding and apply the appropriate rate schedule.

b. SAWS at its own discretion reserves the right to install irrigation meters on existing non-residential accounts SAWS determines would be beneficial for SAWS to install.

c. SAWS will make all reasonable efforts to have irrigation use defined for all existing non-residential accounts that have irrigation systems by December 31, 2001.

Option Two:

If an existing non-residential customer chooses Option Two they must submit a Potable Water End-Use Report that at a minimum calculates the volume of potable water from a single meter that is used separately for irrigation and non-irrigation purposes. The Potable Water End-Use Report must be prepared by a registered professional engineer, licensed landscape irrigation auditor or licensed master plumber. The Potable Water End-Use Report must include the findings of a flow study, a description of potable water end-use categories found on site, a landscape plan and any other information the customer would like to include as supporting documentation in the report. The completed Potable Water End-Use Report must be submitted to the director

of customer service of the San Antonio Water System. If the director of customer service approves the Potable Water End-Use Report, the San Antonio Water System shall mail notice of this action to the customer and shall make adjustments to the customer's bills retroactive to the date the Potable Water End-Use Report was received in the office of the director of customer service. Those non-residential customers existing prior to January 1, 2001 that choose this option must have end-use reports submitted to the director of customer service by April 1, 2001.

(d) *New and existing residential accounts.* Both new and existing residential customers may choose to install a separate irrigation meter.
(Ord. No. 92752, § 1, 10-19-00)

Sec. 34-124.1. Variance procedure for irrigation water service customers.

If an irrigation water service customer requests an administrative variance from the rate he/she is being charged pursuant to Schedule C, the procedures set out herein shall be followed. The irrigation water service customer shall apply in writing to the director of customer service setting out the basis for his/her request for an administrative variance. Such request must clearly detail the factors upon which the customer is claiming relief for the amount he/she is currently charged. Such factors may include but are not limited to health and safety needs. The director of customer service shall review the request, and may ask for additional written information from the customer if needed. Once all information requested by the customer service director has been received, the director of customer service shall render a decision in writing to the customer within twenty (20) working days from receipt of the completed request. If the customer does not agree with the determination of the director of customer service, the customer may appeal such determination within ten (10) working days to the President/Chief Executive Officer of the San Antonio Water System. The President/Chief Executive Officer shall make an independent review of the written information submitted by the requesting customer and the written determination and supporting documentation submitted by the director of customer service. The President/Chief Executive Officer shall make a written administrative determination on the variance request within ten (10) working days of receipt of the written appeal. If the Customer does not agree with the determination of the President/Chief Executive Officer, the customer may request an appeal to the San Antonio Water System Board of Trustees through a written request to the President/Chief Executive Officer. The President/Chief Executive Officer shall schedule a hearing before the Board as soon as practicable, but in no event less than sixty (60) days after the receipt of the variance request.
(Ord. No. 92752, § 1, 10-19-00)

Sec. 34-125. Multiple meters serving residential and general customers.

(a) *Residential.* The meter readings of two (2) or more meters with like service addresses shall be combined for billing purposes. However, if any such meter(s) with like service address is classified as a potable water irrigation meter, such meter reading(s) shall not be combined with the remaining meter reading(s). The meter reading amounts from the meters classified as irrigation shall appear on the account as irrigation use and a charge will be assessed in accordance with Rate Schedule C. Any remaining meters with a like service address not designated as irrigation meters will then be combined for billing purposes. Such combined meter billings will be based upon combining the applicable meter charges and the applicable volume charges as provided in the applicable residential rate schedule attached hereto. Such combined meter reading amounts will appear on the account as domestic use (non-irrigation water and sewer).

(b) *General.* The meter readings of two (2) or more meters even though serving a single general customer and even though serving a single building establishment shall not be combined for billing purposes. A separate billing shall be made for the water metered through each

individual meter based upon the applicable meter charge and block-rate scale of volume charges as provided in the applicable general rate schedule attached hereto with the charges computed the same as if that were the only meter serving such customer, building or establishment.
(Ord. No. 80330, § 1, 6-16-94; Ord. No. 92752, § 10-19-00)

Sec. 34-125.1. Pipeline damage cost recovery fees.

The following fees are established for the purpose of recovering certain costs incurred by SAWS in connection with each instance of damage to a SAWS pipeline from the party which caused the damage:

(a) Dispatch fee for response to damaged mains: Four hundred and twenty-five dollars ($425.00) per instance reported to the SAWS emergency operations center.

(b) The amount for the dispatch fee is effective January 1, 2025. The fee amount shall be adjusted on January 1 of each year thereafter by the percentage difference (greater than zero (0)) between the Consumer Price Index for All Urban Consumers (CPI-U) as it is calculated by the United States Bureau of Labor Statistics at the end of the month of July prior to the next year and as it was calculated at the end of the month of July one (1) year earlier, and subsequently rounded to the nearest dollar. SAWS will periodically perform a cost of service analysis to ensure that the fee charged do not exceed the cost of providing the services.

(c) Lost water charge: The cost of water lost as a result of each instance of damage to a pipeline shall be recovered through the assessment on the estimated water loss volume of the current highest tier water supply fee rate assessed by SAWS, the current highest tier outside-the-city-limits (OCL) water delivery rate, and the current Water Uplift Assistance Program fee rate assessed by SAWS, and the current Edwards Aquifer Authority (EAA) permit fee rate.

(Ord. No. 2017-12-07-0928, § 3(Att. II), 12-7-17; Res. No. 18-262, 11-13-18; Res. No. 19-280, 7(Att. V), 11-5-19; Ord. No. 2022-11-10-0867, § 2(Att. II), 11-10-22; Res. No. 2023-198, 10-3-23; Res. No. 2024-227, § 7(Att. IV), 11-5-24)

Editor's note—Ord. No. 2017-12-07-0928, § 3(Att. II), adopted December 7, 2011, enacted provisions intended for use as section 34-106. To preserve the style of this Code, and at the discretion of the editor, said provisions have been redesignated as section 34-125.1.

Sec. 34-126. Fire flow test fee.

Upon request, a fire flow test will be conducted by personnel of the system to provide flow data in support of any fire protection system located within the board's service area. An advance fee of eighty-one dollars ($81.00) shall be applicable for each fire flow test requested for purposes of obtaining fire flow data for a specific piece of property or building in order for the owner of the property or building to obtain insurance rating or coverage or to assist in the design and construction of an interior fire protection system. This fee amount is effective January 1, 2025. The fee amount shall be adjusted on January 1 of each year thereafter by the percentage difference (greater than zero (0)) between the Consumer Price Index for All Urban Consumers (CPI-U) as it is calculated by the United States Bureau of Labor Statistics at the end of the month of July prior to the next year and as it was calculated at the end of the month of July one (1) year earlier, and subsequently rounded to the nearest dollar. SAWS will periodically perform a cost of service analysis to ensure that the fee charged does not exceed the cost of providing the service.
(Ord. No. 2007-12-13-1345, § 2(Att. B), 12-13-07; Ord. No. 2017-12-07-0928, § 3(Att. II), 12-7-17; Res. No. 18-262, 11-13-18; Res. No. 19-280, 7(Att. V), 11-5-19; Ord. No. 2022-11-10-0867, § 2(Att. II), 11-10-22; Res. No. 2023-198, 10-3-23; Res. No. 2024-227, § 7(Att. IV), 11-5-24)

Editor's note—Ord. No. 2007-12-13-1345, § 2(Att. B), adopted December 13, 2007, amended § 34-126 in its entirety to herein set out. Formerly, § 34-126 pertained to fire hydrant flow test fee, and derived from Ord. No. 80330, § 1, adopted June 16, 1994.

Sec. 34-127. Private fire protection water service connections; rates; billing; late payment; termination.

(a) Private fire protection water service line connections permitted may be one of the following three (3) types:

Type 1 — A line utilized exclusively to supply service for closed circuit automatic sprinkler head system.

Type 2 — A line to supply service for systems which have water outlets such as open head sprinkler systems, standpipes, hose connection outlets, external private fire hydrants on the premises, or other outlets used solely for fire protection purposes.

Type 3 — A line to supply service for a combination domestic and private fire protection system where the fire system is composed of automatic sprinkler heads, standpipes, hose connections, external private fire hydrants, and where other outlets shall be classified as a domestic account.

(b) The private fire protection water service charges for Type Nos. 1, 2, and 3 shall be based on the size of the fire flow line requirement determined in accordance with the system's "Regulations For Water Service." The water service rates which shall be the lawful rates charged on the three types of connections are contained in Rate Schedules A and B, attached hereto and incorporated herein.

(c) Such charges shall be billed as of January 1 of each year and shall be the net annual charge for private fire protection service to be rendered during the ensuing calendar year. For private fire protection service established subsequent to January 31 of each calendar year, charges shall be prorated based on the number of remaining full months in the year. Charges for private fire protection water service are due and payable on or before thirty (30) days from the date of mailing of the bill.

(d) For Type 3 (combination meter) accounts, private fire protection water service shall be billed in accordance with subsection (c), above. Domestic service shall be billed monthly in accordance with Rate Schedules A or B for general water service rates inside and outside the city limits, according to the size of meter required for domestic flow purposes.

(e) A penalty for late payment in the amount of five (5) percent of the net charges shall be added to the current charges owing if full payment for such charges is not made to the system on or before thirty (30) days from the date of mailing of the bill.

(f) In the event payment of applicable charges for private fire protection water services is not made on or before sixty (60) days from the date of the mailing of the system bill, service may be subject to termination in accordance with the procedure set out in division 4.

(g) The system is hereby authorized and directed to promulgate and enforce detailed rules and regulations governing private fire protection water service connections and charges consistent with the provisions hereof.

(h) The private fire protection water service rates on the three types of connections listed in section 34-127(a) above are effective January 1, 2025. The fee amounts shall be adjusted on January 1 of each year thereafter by the percentage difference (greater than zero (0)) between the Consumer Price Index for All Urban Consumers (CPI-U) as it is calculated by the United States Bureau of Labor Statistics at the end of the month of July prior to the next year and as it was calculated at the end of the month of July one (1) year earlier, and subsequently rounded to the nearest dollar. SAWS will periodically perform a cost of service analysis to ensure that the fee charged does not exceed the cost of providing the service.

(Ord. No. 80330, § 1, 6-16-94; Ord. No. 2022-11-10-0867, § 2(Att. II), 11-10-22; Res. No. 2023-198, 10-3-23; Res. No. 2024-227, § 7(Att. IV), 11-5-24)

Editor's note—Rate Schedules A and B referenced above are set out at length at the end of this chapter.

Sec. 34-128. Drought surcharge purpose, definitions and billing cycles.

(a) *Purpose.* This surcharge is to discourage discretionary water consumption by customers during advanced stages of drought or emergency conditions.

(b) *Definitions.* As used in sections 34-128 and 34-129 and the associated surcharge rate sheets, the following terms are defined as follows:

Non-residential irrigation customer. A non-residential San Antonio Water System customer (a billed commercial account as identified in the Drought Surcharge Schedule) that is assessed the irrigation rate and/or is billed for a portion of their water at the irrigation rate using methodology established in subsection 34-124(c), commonly referred to as "assumed irrigation customers". A non-residential district special project customer that receives water service under an account designated by the district special project as being solely irrigation in purpose. Using the subsection 34-124(c) methodology, the district special project may determine that a regular non-residential district special project customer uses a portion of their water for irrigation purposes, in which case that portion of consumption shall be designated as "assumed irrigation".

Residential customer means a residential customer that has water service that is assigned a residential rate under the rates of the San Antonio Water System or the district special project.

Residential irrigation customer means a customer that has both residential and irrigation service at a single service address under the rates of the San Antonio Water System or the district special project.

(c) *Billing cycles.* All water consumption beginning with the next billing cycle subsequent to the declaration of a surcharge (section 34-320) may be assessed a surcharge. Such surcharge shall remain in effect for a minimum of one entire billing month. The surcharge shall remain in effect for another complete billing month, so that all customers are affected if stages III or IV is still in effect at the end of the original billing month.

(Ord. No. 2007-02-08-0149, § 1(Exh. A), 2-8-07; Ord. No. 2014-05-29-0376, § 2(Exh. A), 5-29-14; Ord. No. 2024-06-20-0480, § 1(Exh. A), 6-20-24)

Editor's note—Ord. No. 2007-02-08-0149, § 1(Exh. A), adopted February 8, 2007, amended § 34-128 in its entirety to read as herein set out. Formerly, § 34-128 pertained to the critical period surcharge, and derived from Ord. No. 80330, § 1, adopted June 16, 1994.

Sec. 34-128.1 Drought surcharge.

A drought surcharge is a charge applied to a customer's bill as a result of high use during drought Stages III and IV. A drought surcharge is directly related to the volume of water used. All customers may be subject to a drought surcharge as set out in the drought surcharge schedules within this chapter 34 of the San Antonio City Code.

(Ord. No. 2007-02-08-0149, § 1(Exh. A), 2-8-07; Ord. No. 2017-12-07-0928, § 4(Att. III), 12-7-17; Ord. No. 2024-06-20-0480, § 1(Exh. A), 6-20-24)

Editor's note—Ord. No. 2024-05-20-0480, § 1(Exh. A), adopted June 20, 2024, repealed § 34-128.1, which pertained to non-residential irrigation drought surcharge and derived from Ord. No. 2007-02-08-0149, § 1(Exh. A), 2-8-07; Ord. No. 2017-12-07-0928, § 4(Att. III), 12-7-17. Therefore, § 34-128.2 is renumbered as § 34-128.1 and amended to read as herein set out.

Sec. 34-128.2. Reserved.

Sec. 34-128.3. Reserved.

Sec. 34-128.4. Uses of fees derived from the drought surcharge.

All fees derived from the drought surcharge shall support conservation education and related programs.

(Ord. No. 2007-02-08-0149, § 1(Exh. A), 2-8-07)

Sec. 34-129. Administrative relief from imposition of drought surcharge; notification.

(a) SAWS is hereby authorized to grant administrative relief to residential and non-residential customers in certain circumstances to the imposition of the drought surcharge or a portion thereof by granting a variance from applicable surcharge provisions. A customer who is seeking such relief must submit a request via electronic mail or submit a written request to SAWS based upon the health and safety needs of the customer. Such relief may be based upon but not limited to medical conditions requiring the use of water for special equipment or therapy or

other compelling health and/or safety reasons. Extenuating circumstances for the maintenance of xeric landscape material may also be considered. SAWS will determine, as part of the variance process, which plant material qualifies as xeric in nature. SAWS shall review the request and determine whether the water consumption level for such customer should be raised and to what extent prior to the imposition of the drought surcharge for that customer. A customer shall be notified in writing within a reasonable time whether such relief is granted. A customer seeking drought surcharge relief shall be afforded all administrative remedies available to all SAWS customers. The rules for administrative relief will be approved by the SAWS president/chief executive officer or his or her designee prior to the implementation of any surcharges and in any case the rules should be developed and approved by January 1, 2008.

(b) SAWS is hereby directed to notify customers that such variance procedure is available and to further notify customers where drought surcharge relief forms may be obtained.

(Ord. No. 2007-02-08-0149, § 1(Exh. A), 2-8-07; Ord. No. 2024-06-20-0480, § 1(Exh. A), 6-20-24)

Editor's note—Ord. No. 2007-02-08-0149, § 1(Exh. A), adopted February 8, 2007, amended § 34-129 in its entirety to read as herein set out. Formerly, § 34-129 pertained to administrative relief from imposition of critical period surcharge; notification, and derived from Ord. No. 84432, §§ 1, 2, adopted July 18, 1996.

Sec. 34-130. Meter trip fee.

A customer requesting assistance from SAWS to turn-off or turn-on water flow via the meter serving the customer shall be assessed a fee of twelve dollars ($12.00) for each trip required by a SAWS employee to satisfy the customer's request. This fee shall also be assessed for each trip necessary by a SAWS employee to turn-on water flow via a meter whenever a customer requests new water service from SAWS. For a customer who qualifies for participation in the SAWS Uplift Assistance Program, the meter trip fee amount shall be six dollars ($6.00). This fee amounts are effective January 1, 2023. The fee amount shall be adjusted on January 1 of each year thereafter by the percentage difference (greater than zero (0)) between the Consumer Price Index for All Urban Consumers (CPI-U) as it is calculated by the United States Bureau of Labor Statistics at the end of the month of July prior to the next year and as it was calculated at the end of the month of July one (1) year earlier, and subsequently rounded to the nearest dollar. SAWS will periodically perform a cost of service analysis to ensure that the fee charged does not exceed the cost of providing the service.

(Ord. No. 2007-12-13-1345, § 2(Att. B), 12-13-07; Ord. No. 2022-11-10-0867, § 2(Att. II), 11-10-22)

Sec. 34-131. Fire hydrant water usage regulation, rates, and meter fees.

(a) *General.* SAWS may authorize a meter to be connected temporarily to a fire hydrant during construction operations in lieu of installing a temporary service line provided the customer:

(1) Executes a contract for fire hydrant meter usage,

(2) Pays the customer account deposit and all other applicable rates and fees as established in this section,

(3) Assumes responsibility for the safekeeping of the meter, fitting and fire hydrant, and

(4) Complies with backflow prevention requirements as established in the SAWS Utility Service Regulations.

(b) *Fire hydrant meter deposit, and daily availability charge.*

(1) Prior to obtaining a fire hydrant meter, the customer will be required to pay a fire hydrant meter deposit of one thousand eight hundred ninety-three dollars ($1,893.00).

a. The customer shall indicate on the fire hydrant meter usage contract the location of usage of the meter by street address or by street name with the nearest cross street, and the estimated duration of meter usage at the designated location.

b. The customer shall indicate whether the fire hydrant meter will be used

for irrigation or non-irrigation purposes for the purpose of being assessed the appropriate water usage rates; a single meter may not be used for both types of usages during a given six-month usage period.

(2) The daily availability charge for use of a fire hydrant meter shall be six dollars ($6.00).

(3) The fee amounts for the fire hydrant meter deposit and the daily availability charge are effective January 1, 2025. The fee amounts shall be adjusted on January 1 of each year thereafter by the percentage difference (greater than zero (0)) between the Consumer Price Index for All Urban Consumers (CPI-U) as it is calculated by the United States Bureau of Labor Statistics at the end of the month of July prior to the next year and as it was calculated at the end of the month of July one (1) year earlier, and subsequently rounded to the nearest dollar. SAWS will periodically perform a cost of service analysis to ensure that the fees charged do not exceed the cost of providing the services.

(c) *Requirements for fire hydrant meter periodic calibration and meter readings.* A customer authorized by SAWS to use a fire hydrant meter must meet the following requirements:

(1) Return the meter to SAWS for inspection and re-calibration every twelve (12) months from the original date of the customer's fire hydrant meter contract; if the customer fails to meet this requirement, the customer will:

a. Forfeit the fire hydrant meter deposit, and

b. Be charged one hundred forty-four dollars ($144.00) per month in addition to all other fees and charges until the meter in question is returned for inspection and re-calibration (this monthly fee will not be prorated if the meter is returned in the middle of a billing period), and

c. Be unable to obtain any additional fire hydrant meters from SAWS until the meter in question is returned for inspection and re-calibration.

(2) Provide meter readings to SAWS on a monthly basis and report the location of the usage by the meter by street address, or by street name with the nearest cross street; if the customer fails to provide a meter reading for a given month on the day designated by SAWS, the customer shall be billed a flat fee equal to the OCL volumetric cost of water usage of seventy-four thousand eight hundred ten (74,810) gallons (one hundred (100) CCF) for the month.

(3) The additional one hundred forty-four dollars ($144.00) per month fee amount indicated in section 34-131(c)(1), above, is effective on January 1, 2023. The fee shall be adjusted on January 1 of each year thereafter by the percentage of any approved monthly change (greater than zero (0)) for the next year in SAWS domestic water delivery rates, and subsequently rounded to the nearest dollar.

(d) *Fire hydrant water usage rate classes.* Two separate classes of fire hydrant water usage rates are established one or the other to be assessed on monthly water consumption measured by the fire hydrant meter based on the type of usage declared by the customer at the time of entering into a contract with SAWS for use of a fire hydrant meter:

(1) *Non-irrigation usage.* The customer shall be charged using the second tier general class water delivery outside the city limits (OCL) rates currently assessed by SAWS, the Water Uplift Assistance Program fee rate, the second tier general class water supply fee rates currently assessed by SAWS, and the current Edwards Aquifer Authority (EAA) permit fee rate.

(2) *Irrigation usage.* The customer shall be charged using the highest tier irrigation class OCL rates currently assessed by SAWS, the highest irrigation water supply

fee rates currently assessed by SAWS, the Water Uplift Assistance Program fee rate, and the current Edwards Aquifer Authority (EAA) permit fee rate.

(e) *Regulations for fire hydrant meter irrigation meter usage.*

(1) Fire hydrant meters may not be used for irrigation if regular metered SAWS irrigation service is available at the desired location of meter usage; if regular SAWS irrigation service becomes available after fire hydrant meter irrigation usage begins, the fire hydrant meter must be returned to SAWS immediately or else the meter is subject to unannounced retrieval by SAWS.

(2) Customers using fire hydrant meters for irrigation purposes are subject to all drought management restrictions contained in article IV and must not irrigate between 11:00 a.m. and 7:00 p.m.

(3) Fire hydrant meters may only be used for irrigation purposes at one (1) location for six-months at a time; if customer desires to use the meter beyond the six-month period at one (1) location, the customer must apply to the SAWS President/CEO's designee in conservation for a variance using the procedure defined in section 34-276.

(4) Fire hydrant meter irrigation usage found to be unauthorized by SAWS subjects the meter in question to unannounced retrieval by SAWS.

(f) *Regulations for unauthorized SAWS fire hydrant water usage.*

(1) Withdrawal of water directly from a SAWS fire hydrant without the use of a SAWS-issued fire hydrant meter as authorized under the terms of a duly executed fire hydrant meter contract is prohibited.

(2) Should SAWS staff encounter and document an instance of such unauthorized usage, the person or entity making the withdrawal shall be assessed and billed a flat fee equal to the volumetric cost of water usage of seventy-four thousand eight hundred ten (74,810) gallons (one hundred (100) CCF) plus the equivalent of thirty (30) days of daily availability charges

(3) The fees and charges listed in section 34-131(f)(2) above shall be assessed in addition to any legal enforcement action undertaken by the City of San Antonio for criminal theft of water.

(Ord. No. 2007-12-13-1345, § 2(Att. B), 12-13-07; Ord. No. 2017-12-07-0928, § 3(Att. II), 12-7-17; Res. No. 18-262, 11-13-18; Ord. No. 2019-02-14-0123, § 1(Att. I), 2-14-19; Res. No. 19-280, 7(Att. V), 11-5-19; Ord. No. 2022-11-10-0867, § 2(Att. II), 11-10-22; Res. No. 2023-198, 10-3-23; Ord. No. 2024-06-20-0480, § 1(Exh. A), 6-20-24; Res. No. 2024-227, § 7(Att. IV), 11-5-24)

Sec. 34-132. Same-day meter turn-on fee.

A customer requesting that the system initiate or reinstate water service on the same day the application for service is made shall be assessed a fee of thirty-four dollars ($34.00) for this service. A customer who qualifies for participation in the SAWS Uplift Assistance Program requesting that the system initiate or reinstate water service on the same day the application for service is made shall be assessed a fee of seventeen dollars ($17.00) for this service. The fee amount is effective January 1, 2024. The fee amount shall be adjusted on January 1 of each year thereafter by the percentage difference (greater than zero (0)) between the Consumer Price Index for All Urban Consumers (CPI-U) as it is calculated by the United States Bureau of Labor Statistics at the end of the month of July prior to the next year and as it was calculated at the end of the month of July one (1) year earlier, and subsequently rounded to the nearest dollar. SAWS will periodically perform a cost of service analysis to ensure that the fee charged does not exceed the cost of providing the services.

(Ord. No. 2017-12-07-0928, § 3(Att. II), 12-7-17; Res. No. 18-262, 11-13-18; Res. No. 19-280, 7(Att. V), 11-5-19; Ord. No. 2022-11-10-0867, § 2(Att. II), 11-10-22; Res. No. 2023-198, 10-3-23)

Editor's note—Prior to the reenactment of section 34-132 by Ord. No. 2017-12-07-0928, § 3(Att. II, adopted December

7, 2017, Res. No. 16-302, Att. III, repealed the former section 34-132 in its entirety, which pertained to the establishment of rates and schedules for former district special project customers, and derived from Ord. No. 2015-11-19-0956, § 4(Att. I), adopted November 19, 2015.

Sec. 34-133. Bench meter test fee.

A customer requesting that the system apply a bench test at the system's meter shop to the meter serving the customer's account shall be assessed a fee of one hundred twenty-three dollars ($123.00) only if the system finds that the meter being tested is accurate:

The fee amount is effective January 1, 2025. The fee amount shall be adjusted on January 1 of each year thereafter by the percentage difference (greater than zero (0)) between the Consumer Price Index for All Urban Consumers (CPI-U) as it is calculated by the United States Bureau of Labor Statistics at the end of the month of July prior to the next year and as it was calculated at the end of the month of July one (1) year earlier, and subsequently rounded to the nearest dollar. SAWS will periodically perform a cost of service analysis to ensure that the fees charged do not exceed the cost of providing the services.
(Ord. No. 2017-12-07-0928, § 3(Att. II), 12-7-17; Res. No. 18-262, 11-13-18; Res. No. 19-280, 7(Att. V), 11-5-19; Ord. No. 2022-11-10-0867, § 2(Att. II), 11-10-22; Res. No. 2023-198, 10-3-23; Res. No. 2024-227, § 7(Att. IV), 11-5-24)

Sec. 34-134. Annual irrigation system evaluation compliance fees.

Failure to comply with the annual inspection requirements contained in subsection 34-273(3) shall result in the assessment of the following additional charges on the account associated with the irrigation system:

(a) Annual enforcement fee in the amount of one hundred sixty dollars ($160.00); this fee shall be assessed on an annual basis until the requirements of subsection 34-273(3) have been met.

(b) Additional volumetric rate of $0.8711 per one thousand (1,000) gallons on all irrigation consumption on a monthly basis; this additional rate shall continue to be assessed until the requirements of subsection 34-273(3) have been met.

(c) The annual enforcement fee amount in section 34-134(a) above is effective January 1, 2025. The fee amount shall be adjusted on January 1 of each year thereafter by the percentage difference (greater than zero (0)) between the Consumer Price Index for All Urban Consumers (CPI-U) as it is calculated by the United States Bureau of Labor Statistics at the end of the month of July prior to the next year and as it was calculated at the end of the month of July one (1) year earlier, and subsequently rounded to the nearest dollar. SAWS will periodically perform a cost of service analysis to ensure that the fees charged do not exceed the cost of providing the services.

(d) The volumetric rate amount in section 34-134(b) above is effective January 1, 2025. The fee amount shall be adjusted on January 1 of each year thereafter by the percentage difference (greater than zero (0)) between the Consumer Price Index for All Urban Consumers (CPI-U) as it is calculated by the United States Bureau of Labor Statistics at the end of the month of July prior to the next year and as it was calculated at the end of the month of July one (1) year earlier. SAWS will periodically perform a cost of service analysis to ensure that the fees charged do not exceed the cost of providing the services.

(Ord. No. 2015-11-19-0956, § 4(Att. III), 11-19-15; Ord. No. 2017-12-07-0928, § 3(Att. II), 12-7-17; Res. No. 18-262, 11-13-18; Res. No. 19-280, 7(Att. V), 11-5-19; Ord. No. 2022-11-10-0867, § 2(Att. II), 11-10-22; Res. No. 2023-198, 10-3-23; Ord. No. 2024-06-20-0480, § 1(Exh. A), 6-20-24; Res. No. 2024-227, § 7(Att. IV), 11-5-24)

Editor's note—Ord. No. 2017-12-07-0928, § 3(Att. II), adopted December 7, 2017, redesignated the former section 34-133 as section 34-134. The historical notation has been preserved for reference purposes.

Sec. 34-135. Noncompliance charge.

The purpose of this charge is to discourage discretionary water consumption that is in direct violation of article IV use restrictions. Customers at locations of repeated or continued violations of article IV, may be subject to the noncompliance charge. SAWS will periodically analyze the charge to ensure it fairly reflects the overall dollar cost impact of noncompliance to the community. The structure and rate of the noncompliance charge is set out in the noncompliance charge schedule within this chapter 34 of the San Antonio City Code.
(Ord. No. 2024-06-20-0480, § 1(Exh. A), 6-20-24)

Sec. 34-135.1. Uses of fees derived from the noncompliance charge.

All fees derived from the noncompliance charge shall support conservation education and related programs.
(Ord. No. 2024-06-20-0480, § 1(Exh. A), 6-20-24)

Sec. 34-135.2. Dispute resolution.

(a) *Request for review.* The noncompliance provisions of section 34-135 and of article IV, drought management, water conservation, and reuse are to be administered and executed by SAWS. If a customer believes an enforcement action occurred in error, they may request the review of an enforcement action resulting in a noncompliance charge being applied to the customer's account. The customer must submit the following information in writing to SAWS Conservation within fourteen (14) days of the date of the notice of violation:

(1) Name and address of the customer.

(2) Account number.

(3) Customer's contact information.

(4) Specific provision(s) from which the customer is requesting relief.

(5) Detailed statement as to how the specific provision(s) was misapplied or adversely affects the customer, extenuating circumstances that prevent(ed) compliance, or mitigating efforts made on the part of the customer.

(6) Other pertinent information related to the dispute.

(b) *Request for review by president/CEO's designee.* A customer may appeal the determination of an enforcement action review performed by conservation staff. If the customer's appeal is denied by conservation staff, the customer may request in writing that a secondary review be performed. The secondary review will be performed by either the president/CEO's designee in SAWS conservation or the VP of conservation's designee. This request must be made within five (5) working days of the customer being provided the results of the enforcement action review. In addition to the items stated in section 34-135.2(a), the request for appeal should include an explanation of the insufficiency of the conservation department's review.

(c) *Review by committee.* A customer may appeal the determination of an enforcement action review performed by the president's designee in conservation. If the customer's appeal is denied the customer may request in writing that a tertiary review be managed by a review committee which shall be appointed by the board. The request for this review must be made within five (5) working days of the customer being provided the results of the enforcement action review. In addition to the items stated in subsection 34-135.2(a), the request for appeal should include an explanation of the insufficiency of the previous rounds of review. Determinations made by committee review are final.

(d) *Items excluded from review.* The following are not eligible for review available under this section 34-135:

- Dissatisfaction with a SAWS policy or regulation.
- The noncompliance charge amount or structure as stated in chapter 34 of the San Antonio City Code and approved by city council.
- A customer's inability to pay and/or other billing disputes regarding the amount of the noncompliance fee.

(Ord. No. 2024-06-20-0480, § 1(Exh. A), 6-20-24)

Secs. 34-136—34-145. Reserved.

ARTICLE III. SEWER SERVICE AND RATES*

DIVISION 1. GENERALLY

Secs. 34-146—34-155. Reserved.

DIVISION 2. RESERVED†

Secs. 34-156—34-195. Reserved.

DIVISION 3. RESERVED‡

Secs. 34-196—34-225. Reserved.

DIVISION 4. RATES AND CHARGES**

Sec. 34-226. Establishment of rates and schedules, rates schedules, and affordability discount analysis.

The schedule of sewer service rates and charges contained in Schedule A for residential sewer service customers, the schedule of sewer service rates and charges contained in Schedule B for general sewer service customers, the sewer service rates and charges contained in Schedule C for wholesale sewer service customers, and the schedule of sewer service rates and charges in Schedule G, as amended attached hereto, shall be effective for all consumption on or about January 1, 2024, as appropriate, and shall be the lawful rates for sewer service to be charged by the system except as specified below:

Customers approved by the SAWS for participation in the flat rate sewer program in accordance with section 34-226.2 shall pay sewer charges as required under the flat rate sewer program.
(Ord. No. 80330, § 1, 6-16-94; Ord. No. 99995, § 2(Att. I), 11-18-04; Ord. No. 101682, § 1(Att. I), 11-17-05; Ord. No. 2015-11-19-0956, § 4(Att. I), 11-19-15, Res. No. 16-302, Att. III; Ord. No. 2017-12-07-0928, § 1(Att. I), 12-7-17; Ord. No. 2022-11-10-0867, § 1(Att. I), 11-10-22; Res. No. 2023-198, 10-3-23)

Editor's note—Rate Schedules referenced above are set out at length at the end of this chapter.

Sec. 34-226.1. Methods for establishing monthly residential charges.

(a) *Definitions.*

(1) *Entity.* A city, town, political or commercial subdivision, district, association, military installation or facility that establishes, operates and maintains a sewer collection system within its jurisdictional boundaries, and contracts with the San Antonio Water System to connect that sewer collection system to the regional sewage transportation and treatment works in order that the San Antonio Water System can provide for the transportation and treatment of sewage discharged by the entity.

(2) *Winter averaging sewer charge period.* The period of water and sewer service during the three (3) complete consecutive billing periods commencing on or after November 15 of each year and terminating on or after the completion of three (30 full billing cycles in March of each year. During the three (3) complete consecutive billing periods the system shall

*__Note—__Rate schedules A, B, C, and G relating to wastewater residential, general, wholesale, and Uplift Assistance Program customers are hereby amended and shall hereinafter read as attached hereto and incorporated herein.

†__Editor's note—__Ord. No. 80574, § 10, adopted Aug. 4, 1994, relocated the text of former Div. 2, §§ 34-156—34-166, relative to industrial waste, to Art. V, Div. 3, § 34-471 et seq. Former history notation has been retained at the new section designations.

‡__Editor's note—__Ord. No. 80574, § 11, adopted Aug. 4, 1994, relocated the text of former Div. 3, §§ 34-196—34-211, relative to toilets, septic tanks and privies, to Art. V, Div. 2, § 34-441 et seq. Former history notation has been retained at the new section designations.

**__Editor's note—__Ord. No. 80330, § 1, adopted June 16, 1994, amended the provisions of former §§ 34-226—34-234, relative to sewage disposal rates and charges, in their entirety to read as herein set out. The provisions of these former sections derived from Code 1959, §§ 33A-61—33A-65, 33A-67—33A-69; Ord. No. 56173, 11-24-82; Ord. No. 57792, 10-27-83; Ord. No. 58526, 3-29-84; Ord. No. 60600, 4-25-85; Ord. No. 63544, 8-28-86; Ord. No. 65694, 9-10-87; Ord. No. 65767, 9-24-87; Ord. No. 67918, 9-15-88.

establish monthly sewer service charges for customers based upon their average monthly water consumption during the three (3) complete consecutive billing periods. The customer must receive sewer service at one location during the entire three (3) consecutive billing periods in order to establish a "winter average."

(3) *Interim averaging sewer charge period.* The period of water and sewer service during three (3) complete monthly billing periods during which the system establishes monthly sewer service charges for customers based upon their average monthly water consumption during that period. This interim averaging sewer charge period is to be used only in determining monthly sewer service charges when the customer has not yet established a winter average by the method outlined in (2) above.

(4) *Winter average charge.* The monthly sewer service charge established by the system during the winter averaging sewer charge period. This charge is the basis for monthly billings until completion of the next entire winter averaging sewer charge period.

(5) *Interim average charge.* The monthly sewer service charge established by the system during the interim averaging sewer charge period. This charge is the basis for monthly billings until completion of the next entire winter averaging sewer charge period and becomes the basis for subsequent monthly billings.

(b) *Final billings.* For all final billings, either the winter average charge, or the interim average charge, or the unaveraged residential charge or the unmetered residential charge, whichever is in effect at the termination of service for residential customers, will be prorated by dividing the applicable sewer service charge by thirty (30), and multiplying by the number of days that sewer service was actually received during the final month. However, final billings shall not be greater than the applicable sewer service charge and shall not be less than the minimum sewer service charge stated in Rate Schedules A and B, attached hereto and incorporated herein.

(c) *New customers who have not established monthly sewer service charge by previous residency within the service area during the preceding six months.* New customers who move into the service area after the first day of a billing period and before the last day of that billing period will be billed on a proration basis by dividing the applicable I.C.L. or O.C.L. unaveraged residential charge, stated in Rate Schedules A and B, attached hereto and incorporated herein by thirty (30), and multiplying by the number of days that sewer service was actually received. However, the initial bill for service received during the first partial billing period shall not be less than the minimum I.C.L. or O.C.L. sewer service charge stated in Rate Schedules A and B, attached hereto and incorporated herein.

New customers will pay the I.C.L. or O.C.L. unaveraged residential charge, stated in Rate Schedules A and B, attached hereto and incorporated herein, during the first three (3) complete billing periods while an interim average charge based upon water consumption is established. The interim average charges shall not be greater than the I.C.L. or O.C.L. unaveraged residential charge, stated in Rate Schedules A and B, attached hereto and incorporated herein, nor be less than the minimum monthly I.C.L. or O.C.L. sewer service charge stated in Rate Schedules A and B, attached hereto and incorporated herein.

Once the interim average charge is established, it shall be the monthly sewer service charge through the end of the next complete winter averaging sewer charge period. Once the winter average charge is established, the interim average charge shall no longer be the basis for the monthly service charge.

(d) *Initial billings for customers relocating within the service area.* Customers who relocate within the service area will receive an initial bill at their new residence based upon either the winter average charge, or the interim average charge, or the unaveraged residential charge or the unmetered residential charge, depending

upon which charge has been the basis for monthly billings at the previous residence. The applicable charge will be prorated by dividing it by thirty (30), and multiplying by the number of days that sewer service is actually received during the first month at the new residence. However, initial billings shall not be greater than the applicable monthly sewer service charge and shall not be less than the minimum I.C.L. or O.C.L. sewer service charge stated in Rate Schedules A and B, attached hereto and incorporated herein. After this initial billing, the customers described above will continue to be billed monthly sewer service charges based upon the full monthly charge established at their previous residence. This applicable charge shall serve as the basis for monthly billings until the end of the next complete winter averaging sewer charge period.

(e) *Alternative methods.* The above definitions and methods (1-5) for established monthly residential sewer service charges shall apply to, and be implemented by, all water purveyors within the service area except those water purveyors that have submitted alternative definitions and methods which have been approved by the system.

(Ord. No. 80330, § 1, 6-16-94)

Editor's note—Rate Schedules A and B referenced above are set out at length at the end of this chapter.

Sec. 34-226.2. Flat rate sewer program.

(a) The purpose of this program is to allow an alternate method of establishing a sewer charge for general accounts.

(b) Any general user who uses water in their daily activities which is not discharged into the sewer system, may submit a written request to customer service for a reduction in the volume of waste estimated to be discharged from the premise.

(c) In the event a customer requests to participate in the program, the system shall follow the flat rate sewer program procedure set out in Schedule 2 which is attached hereto for customer notification and convenience. In the event the system duly amends such procedure from time to time, an updated version of such procedure shall be supplied to the City of San Antonio City Clerk. Copies of the system's most current flat rate sewer program procedure shall also be available to all system customers upon request at the system's customer service locations.

(Ord. No. 80330, § 1, 6-16-94)

Editor's note—Schedule 2 referenced above is set out at length at the end of this chapter.

Sec. 34-226.3. Industrial waste surcharges.

(a) Persons or owners discharging industrial wastes which exhibit none of the characteristics of wastes prohibited by Ordinance Number 77784, or as may be amended, other than excessive BOD or TSS, but having a concentration in excess of normal domestic sewage, that is, concentrations of BOD in excess of two hundred fifty (250) mg/l and TSS in excess of two hundred fifty (250) mg/l, shall pretreat the industrial waste to meet the concentrations of normal domestic sewage; however, such excessive BOD and TSS waste may be accepted for treatment if all the following requirements are met:

(1) The wastes will not cause damage to the collection system.

(2) The wastes will not impair the system's treatment process.

(3) The wastes will not cause contamination of POTW sludges thus limiting sludge disposal options or practices.

(4) The person(s) or owners responsible for the wastes pays an industrial surcharge, in addition to the regular water and sewer charges, in accordance with the following cost factors and formula:

V	=	Volume of water use reported in millions of gallons (MG) per month.
BOD	=	Biochemical oxygen demand analyzed in accordance with the procedures approved under 40 CFR Part 136, or the latest Environmental Protection Agency (EPA) approved method, and reported in units of milligrams per liter (mg/l).

TSS = Total suspended solids analyzed in accordance with the procedures approved under 40 CFR Part 136, or the latest Environmental Protection Agency (EPA) approved method, and reported in units of milligrams per liter (mg/l).

Cost factor BOD = $1.40

Cost factor TSS = $3.24

IWS = Industrial waste surcharge computed in dollars as follows: IWS Volume of discharge (in MG per Month) [$1.40 × (BOD mg/l - 250 mg/l) + $3.24 × (TSS mg/l) - 250 mg/l].

(b) *Surcharge review.*

(1) The San Antonio Water System as the Control Authority (CA) shall review the basis for determining surcharges at least once every two (2) years, or more frequently as needed.

(2) The discharger may employ an independent registered professional engineer, at the discharger's cost, to perform additional sampling and analysis provided this activity is coordinated with the CA. Upon consideration of all available information, the CA shall determine the final values and/or charges to be assessed.

(c) *Sample point.*

(1) Each sampling point shall be installed and maintained by the discharger so that any authorized representative of the CA may readily and safely obtain samples of the flow at all times.

(2) Each sampling point shall be near the outlet of each sewer, drain, pipe, or channel which connects with the sanitary sewer or wastewater facility.

(3) Each sampling point shall be designed and constructed to prevent infiltration by ground and surface water and maintained so that any authorized representative of the CA may readily and safely obtain samples of the flow at all times.

(4) Before beginning construction of a sampling point, a person shall submit plans to the CA for review and approval to ensure compliance with these provisions. Plans must include the sewage metering device if one (1) is to be installed.

(d) *Measurement of waste volumes.*

(1) The volume of wastes may be determined by the same methods used to calculate the general sewer service rate.

(2) On premises where all or part of the water is obtained from a source other than the public water supply and no sewage metering device is installed, the owner shall provide and maintain a metering device of a type approved by the CA to measure sources of private water.

(e) *Sampling of wastes.*

(1) The CA shall take samples of waste discharges from establishments as often as determined necessary to adequately monitor and control the discharges. If an owner desires additional samples, the owner shall pay the cost of the additional service.

(2) Samples collected by the CA may be either flow-proportional or time proportional composite samples as appropriate to achieve the most representative samples, or via the best available sampling method given the constraints and limitations present at the discharge point source.

(f) *Sampling and analysis fees.* A person discharging concentrations of BOD and/or TSS in excess of normal domestic sewage concentrations shall compensate the CA for the cost of sample collection and analysis when an industrial surcharge is established.

(g) *Industrial surcharges for class groups.*

(1) The CA shall assess an industrial surcharge rate for each class group based

on waste strength determinations established by averaging grab or composite samples or both, taken from a representative number of establishments in each group, and shall apply this rate to the water consumption or metered wastewater of the establishment. If the establishment is within a larger facility for which water usage is determined from a master meter, the San Antonio Water System Customer Service Department (CSD) shall determine an estimated volume for the establishment on which the surcharge rate is applied. CSD shall then add the appropriate industrial surcharge to billings for regular water and sewer service for each establishment classified into a class group.

(2) If an establishment contains operations from more than one of the class groups, CSD determines that the surcharge rate for a particular class group would not adequately compensate the system for its cost of treatment, CSD shall add an appropriate industrial waste surcharge to adequately compensate the system for its cost of treatment.

(3) The CA may, from time to time, revise surcharge class groups based on analysis of current samples.

(h) The surcharge amounts shown in section 34-226.3(a) above are effective January 1, 2025. The fee amount shall be adjusted on January 1 of each year thereafter by the percentage difference (greater than zero (0)) between the Consumer Price Index for All Urban Consumers (CPI-U) as it is calculated by the United States Bureau of Labor Statistics at the end of the month of July prior to the next year and as it was calculated at the end of the month of July one (1) year earlier. SAWS will periodically perform a cost of service analysis to ensure that the fee charged does not exceed the cost of providing the services.
(Ord. No. 80330, § 1, 6-16-94; Ord. No. 97395, 3-27-03; Ord. No. 2014-06-19-0472, § 1(Exh. A), 6-19-14; Ord. No. 2015-11-19-0956, § 4(Att. I), 11-19-15; Ord. No. 2022-11-10-0867, § 2(Att. II), 11-10-22; Res. No. 2023-198, 10-3-23; Res. No. 2024-227, § 7(Att. IV), 11-5-24)

Sec. 34-226.4. Pass-through of sewer uplift assistance program fee.

The assessment of a pass-through of the Sewer Uplift Assistance Program Fee (Sewer UAP Fee) to all non-UAP sewer customers in the Residential and General classes is authorized. The initial monthly pass-through of the Sewer UAP Fee shall commence on or after January 1, 2023. Such initial pass-through, while estimated to be $0.1610 per thousand gallons of billed sewer usage, is subject to change, based on the formula set out herein. The San Antonio Water System is delegated the authority to administratively adjust such pass-through on an annual basis, on or about January 1 of each year, in accordance with the following formula:

SEWER UPLIFT ASSISTANCE PROGRAM FEE ADJUSTMENT

An adjustment will be made to the Sewer UAP Fee annually, beginning January 1, 2024, based on the following formula: the annual revenue from the fee collected by SAWS for the prior twelve-month period beginning in January plus the amount of the over-recovery or under-recovery of the prior twelve-month costs of sewer service to UAP customers, divided by the project annual sewer usage, yields the fee on a dollars-per-gallon basis.

Sewer UAP Fee billed revenue by SAWS for prior twelve (12) months.

PLUS

Over-recovery/under-recovery of the prior twelve-month total costs of sewer service to UAP sewer customers from the application of UAP sewer rates.

PLUS

Projected UAP cost increases from program growth and rate changes.

DIVIDED BY

Projected annual sewer usage subject to UAP Fee for the next twelve (12) months.

DIVIDED BY

Projected annual sewer usage for the next twelve (12) months.

EQUALS

Adjusted Sewer UAP Fee rate on a dollars-per-gallon basis of consumption, for the next twelve (12) months period beginning in the month of January.

The San Antonio Water System is directed to show such pass-through as a line item on each customer bill.
(Ord. No. 2022-11-10-0867, § 2(Att. II), 11-10-22)

Sec. 34-227. Determination in extenuating circumstances.

The president/chief executive officer of the system is hereby authorized to designate a committee comprised of representatives from quality control and customer service empowered to establish special monthly commercial rates in cases where extenuating circumstances exist, such as the use of water in a manufactured product, the use of water from a consumer's own supply where there is no meter, excessive irrigation, etc. The committee shall, upon review of the facts, make a determination as to sewer service charges in such instances.

Secs. 34-228—34-230. Reserved.

Sec. 34-231. Reserved.

Editor's note—Ord. No. 2015-11-19-0956, § 4(Att. III), adopted November 19, 2015, repealed the former section 34-231 in its entirety, which pertained to monthly charges to new, vacant, residential or commercial structures, and derived from Ord. No. 80330, § 1, adopted June 16, 1994.

Sec. 34-232. Reserved.

Sec. 34-233. Collection of charges.

The president/chief executive officer of the system or his designated representative shall negotiate with other water purveyors in order to make necessary arrangements for the collection of the sewer charges prescribed in this division by such water purveyors.
(Ord. No. 80330, § 1, 6-16-94)

Sec. 34-234. Reserved.

Sec. 34-235. Reserved.

Editor's note—Ord. No. 2015-09-10-0761, § 7(Exh. D), adopted September 10, 2015, repealed the former section 34-235 in its entirety, which pertained to the schedule of rates for stormwater drainage, services and programs; billing and collection, and derived from Ord. No. 77949, §§ 1—6, adopted May 13, 1993; Ord. No. 90499, § 1, adopted September 16, 1999; Ord. No. 96515, § 1, adopted October 3, 2002; Ord. No. 98635, § 1, adopted December 18, 2003; Ord. No. 100066, § 1, adopted December 9, 2004, and Ord. No. 2007-09-20-0988, § 1, adopted September 20, 2007.

Sec. 34-236. Lift station maintenance fee.

A customer-developer wishing to install a lift station as an element of an off-site wastewater collection system to serve a specific area must meet all SAWS regulatory requirements as they relate to lift stations and, in addition, pay to SAWS a one-time lift station maintenance fee of two hundred thirty-nine thousand six hundred and ninety-one dollars ($239,691.00) that will be used to offset annual lift station maintenance expenses over a ten-year period. The fee amount is effective January 1, 2025. The fee amount shall be adjusted on January 1 of each year thereafter by the percentage difference (greater than zero (0)) between the Consumer Price Index for All Urban Consumers (CPI-U) as it is calculated by the United States Bureau of Labor Statistics at the end of the month of July prior to the next year and as it was calculated at the end of the month of July one (1) year earlier, and subsequently rounded to the nearest dollar. SAWS will periodically perform a cost of service analysis to ensure that the fee charged does not exceed the cost of providing the services.
(Ord. No. 2007-12-13-1345, § 2(Att. B), 12-13-07; Ord. No. 2011-12-08-1004, § 2(Exh. L), 12-8-11; Ord. No. 2017-12-07-0928, § 3(Att. II), 12-7-17; Res. No. 18-262, 11-13-18; Res. No. 19-280, 7(Att. V), 11-5-19; Ord. No. 2022-11-10-0867, § 1(Att. I), 11-10-22; Res. No. 2023-198, 10-3-23; Res. No. 2024-227, § 7(Att. IV), 11-5-24)

Sec. 34-237. Dye testing fee.

A person requesting that the system provide a dye test to confirm the presence of a connection of a property to the system's sewer system shall be assessed a fee of ninety dollars ($90.00) for the conduct of the test. The fee amount is effective January 1, 2025. The fee amount shall be adjusted on January 1 of each year thereafter by the percentage difference (greater than zero (0)) between the Consumer Price Index for All Urban Consumers (CPI-U) as it is calculated by the United States Bureau of Labor Statistics at the end of the month of July prior to the next year and as it was calculated at the end of the month of July one (1) year earlier, and subsequently rounded to the nearest dollar. SAWS will periodically perform a cost of service analysis to ensure that the fee charged does not exceed the cost of providing the services.
(Ord. No. 2011-12-08-1004, § 2(Exh. L), 12-8-11; Ord. No. 2017-12-07-0928, § 3(Att. II), 12-7-17; Res. No. 18-262, 11-13-18; Res. No. 19-280, 7(Att. V), 11-5-19; Ord. No. 2022-11-10-0867, § 1(Att. I), 11-10-22; Res. No. 2023-198, 10-3-23; Res. No. 2024-227, § 7(Att. IV), 11-5-24)

Sec. 34-238. Reserved.

Editor's note—Ord. No. 2022-11-10-0867, § 1(Att. I), adopted Nov. 10, 2022, repealed § 34-238, which pertained to unauthorized sewer connection cap and removal fee and derived from Ord. No. 2011-12-08-1004, adopted Dec. 8, 2011; Ord. No. 2017-12-07-0928, adopted Dec. 7, 2017; Res. No. 18-262, adopted Nov. 13, 2018; Res. No. 19-280, adopted Nov. 5, 2019.

Secs. 34-239—34-270. Reserved.

ARTICLE IV. DROUGHT MANAGEMENT, WATER CONSERVATION AND REUSE*

DIVISION 1. REGULATED ACTIVITIES

Sec. 34-271. Definitions.

As used in this article, the following terms shall have the following meanings:

Advanced plan means:

(1) As it related to athletic fields, submitted to and approved by SAWS, an irrigation schedule based on precipitation rates for irrigation systems that allows athletic fields to be irrigated more than one day a week.

(2) As it relates to water features, submitted to and approved by SAWS, owner certification that the water feature is in good working order, to include the Outdoor water feature conservation plan and advanced monitoring methods that allow the operator to receive real time data regarding water use.

Agricultural irrigation means irrigation for the purpose of growing crops commercially for human consumption or to use as feed for livestock or poultry.

Air conditioning system(s) means a mechanical system generally consisting of a compressor, thermostat and duct work permanently installed in a building for the purpose of controlling humidity and temperature. For the purposes of this division, an air conditioning system does not include window units.

Athletic field means a sports playing field, the essential feature of which is turf grass, used primarily for organized sports for schools, professional sports, or sanctioned league play.

Automatic irrigation controller means a device that automatically activates and deactivates an irrigation system at times selected by the operator.

Automatic pool drain/overflow system means the removal of pool/spa surface water through the use of overflows and surface water collection systems of various design and manufacture.

*__Editor's note—__Ord. No. 2014-05-29-0376, § 3(Exh. B), adopted May 29, 2014, amended article IV in its entirety to read as herein set out. Formerly, article IV, divisions 1—5, pertained to similar subject matter, and derived from Ord. No. 92179, § 1, adopted July 27, 2000; Ord. No. 92503, § 1, adopted September 14, 2000; Ord. No. 100322, § 1(Att. A), adopted January 20, 2005; Ord. No. 2008-10-02-0885, § 3(Exh. A), adopted October 2, 2008; Ord. No. 2009-02-05-0089, § 1(Exh. A), adopted February 5, 2009, and Ord. No. 2009-03-12-0179, § 8, adopted March 12, 2009.

Automatic pool fill means a water level sensing device that can control a valve to add make-up water to a pool, spa, or water feature.

Automatic pool shut-off means the action of the automatic pool fill system is automatically turned off when desired water level is attained.

Backwash / backwashing means the process of cleansing the filter medium and/or elements by the reverse flow of water through the filter.

Base usage means the average monthly total water usage for the three (3) lowest months of November and December and the following January and February during each of the three (3) consecutive 12-month periods preceding the commencement of the user's use of water.

Basic plan means:

(1) As it relates to athletic fields, submitted to and approved by SAWS, an irrigation schedule for athletic fields that allows each athletic field at a particular location to be irrigated one day a week.

(2) As it relates to water features, submitted to and approved by SAWS, owner certification that the water feature is in good working order to including the Outdoor water feature conservation plan.

Beneficial use means the amount of water that is economically necessary for a purpose not otherwise prohibited by the city, state or federal law or regulation, when reasonable intelligence and reasonable diligence is used in applying water for that purpose.

Blowdown meter means a meter that tracks the amount of water discharged from a cooling tower system.

Bucket means a deep, cylindrical container holding five (5) gallons or less, used singly by one person.

Cartridge pool filter means a filter that utilizes a porous element that acts as a filter medium.

Certified vehicle wash facility means a vehicle wash facility that meets the requirements of SAWS certified vehicle wash program.

Commercial dining facility means a business that serves prepared food and beverages to be consumed on the premises.

Computer controlled irrigation system (CCIS) means a system comprised of a computer controller (digital operating system), software, interface modules, satellite field controllers, soil sensors, weather station, or similar devices that is capable of achieving maximum efficiency and conservation in the application of water for irrigation. A CCIS, at a minimum, should be designed to:

(1) Prevent over watering, flooding, pooling, evaporation and run-off, and

(2) Prohibit sprinkler system from applying water at an rate exceeding the soil holding capacity of the land under irrigation.

Concentration means re-circulated water that has elevated levels of total dissolved solids as compared to the original make up water.

Conductivity controller means a device used to measure the conductivity of total dissolved solids in the water of a cooling system and control the discharge of water in order to maintain efficiency.

Conforming means a golf course that has a CCIS in place and is utilizing the system to achieve maximum conservation and the goals of this division. Conforming facilities shall have a conservation plan approved and on file with SAWS.

Conservation department means the Conservation Department of the San Antonio Water System.

Cooling tower means an open water recirculation device that uses fans or natural draft to draw or force air to contact and cool water through the evaporative process.

Customer means any individual, business, institution, builder, developer, or other end user eligible for utility service in accordance with City Code and SAWS' regulations.

Dedicatory instrument means a governing instrument for the establishment, maintenance, and operation of a residential subdivision, planned unit development, condominium, townhouse regime, or any similar planned development. Texas Real Property Code, Sec. 202.007(1).

Diatomaceous earth pool filter means a filter that utilizes a coating of diatomaceous earth (DE) or other filter media over a porous fabric as its filter medium.

Drip irrigation means an irrigation system (drip, porous pipe, etc.) that applies water at a predetermined controlled low-flow levels directly to the roots of the plant.

Drought for this article is not intended to be limited to any meteorological definition of the term. "Drought" is intended to have broad meaning and refers to any condition, whether man-made or natural, where the available water supply or resources are not meeting the water

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demand, or if the water supply or resources are being depleted at a faster rate than they are being replenished.

Evaporative shields means soft floating pads that have contact with the pool water surface to reduce evaporation, small enough and flexible enough not to present an entrapment or injury hazard to bathers.

Evapotranspiration rate (ET rate) means the rate which the combination of evaporation from soil surface and transpiration from vegetation will occur for specific climatic conditions.

Existing landscaping plant means a landscaping plant existing after such period of time as to accomplish an establishment and maintenance of growth.

Extra-territorial jurisdiction (ETJ) means the un-incorporated area contiguous to corporate boundaries of the city where the city has regulatory control as determined by state law and the Texas Local Government Code, which may be amended from time to time.

Fountain means an artificially created jet or stream of water, a structure, often decorative, from which a jet or stream of water issues.

Golf course means an irrigated and landscaped playing area made up of greens, tees, fairways, roughs and related areas used for the playing of golf.

Hand-held hose means a hose physically held by one person, fitted with a manual or automatic shutoff nozzle.

Health care facility means any hospital, clinic, nursing home or other health care or medical research facility.

Hose-end sprinkler means a sprinkler that applies water to landscape plants that is piped through a flexible, movable hose.

Household use means the use of water, other than uses in the outdoor category, for personal needs or for household purposes, such as drinking, bathing, heating, cooking, sanitation or cleaning, whether the use occurs in a residence or in a commercial or industrial facility.

Impervious surface means any structure or any street, driveway, sidewalk, patio or other surface area covered with asphalt, concrete, brick, paving, tile or other material preventing water to penetrate the ground.

Indoor water feature means any water feature located entirely in a conditioned space.

Industrial use means the use of water for or in connection with commercial or industrial activities, including but not limited to, manufacturing, bottling, brewing, food processing, scientific research and technology, recycling, production of concrete, asphalt, and cement, commercial uses of water for tourism, entertainment, and hotel or motel lodging, generation of power other than hydroelectric, and other business activities.

Irrigation suspension program (ISP) means a program administered by the Edwards Aquifer Authority pursuant to which agricultural irrigators within the Edwards Aquifer Authority's boundaries voluntarily agree to suspend some irrigation use of the underground water from the Edwards Aquifer in consideration for payments voluntarily funded by ISP participants.

Irrigation system means a system of fixed pipes and emitters or heads that apply water to landscape plants or turfgrass, including, but not limited to, in-ground and permanent irrigation systems.

Irrigation system evaluation means a zone-by-zone analysis of an irrigation system that, at a minimum, includes a review of the following elements:

(1) Design appropriateness for current landscape requirements;

(2) Irrigation spray heads and valves;

(3) Irrigation zone flow rates expressed in gallons per minute;

(4) System pressure;

(5) Annual maintenance plan that includes irrigation system maintenance, landscape maintenance, and a basic summer and winter irrigation scheduling plan;

(6) Location and account numbers of meters supplying the irrigation system should be described or identified on a map;

(7) Location and verification of functional rain sensor.

Lake, lagoon or *pond* means an artificially created body of fresh or salt water.

Landscaping plant means any member of the Plant kingdom (Plantae), including any tree, shrub, vine, herb, flower, succulent, groundcover or grass species, that grows or has been planted out-of-doors.

Landscape watering means the application of water to any landscaping plant member for growth or maintenance, but for purposes of this article does not include essential use without waste of water by a commercial landscape nursery to the extent the water is used for production rather than decorative landscaping.

Large property means a tract of land or several tracts of land managed as a group such as commonly found in neighborhood common areas or medians and street setbacks commonly found associated with commercial development regardless of the number of meters or individual parcel sizes associated with the property that equals or exceeds five (5) acres in size and has an irrigation system covering all or a portion of the property.

Large use property means any property that uses 1 million gallons of water or more for irrigation purposes in a single calendar year.

Low-flow toilet means a tank toilet that uses one and sixth-tenths (1.6) gallons of water or less per flush.

Livestock means cattle, sheep, goats, hogs, poultry, horses, and game, domestic, exotic and other animals and birds, including zoo animals, used for commercial or personal purposes.

Livestock use means the use of water for drinking by or washing of livestock.

Maintenance level means the level of water in a swimming pool required for proper operation of circulation and filter equipment for the swimming pool.

Make-up meter means a meter that measures the amount of water entering a cooling tower system.

msl means elevation above mean sea level.

Mulch means any material such as bark, leaves, straw or other materials left loose and applied to the soil surface to reduce evaporation.

Multi-family means residential properties consisting of more than two (2) individual dwellings.

New landscape means any contiguous area where new landscape plant(s) are installed where no other planted plants currently exists. A new plant(s) added to an existing landscape is not considered a new landscape for the purposes of an establishment variance.

New landscaping plant means any plant or seed planted in or transplanted to an area within such period of time as to accomplish a reasonable establishment and maintenance of growth. Application of grass seed to an existing stand of grass or turf is not considered new landscaping for the purposes of this chapter.

Non-conforming means a golf course that is not conforming. Non-conforming golf courses must follow the reduction measures and guidelines set forth in section 34-332.

Non-potable tank means a tank installed to capture water generated on the property from rainwater, storm water, cooling towers, air condition condensate or other process that generates secondary water use as maybe found through an industrial process with the intent to use that captured water again on site.

Non-residential means a property, facility location, or owner that is not residential.

Non-residential water feature means a water feature associated with a non-residential facilities including but not limited to shopping centers, hotels, apartments, health care facility, schools, home and property owner associations, governmental entities

NPDES/TPDES permit holders means those entities that have valid state or federal permits commonly referred to as NPDES or TPDES

(National Pollutant Discharge Elimination System/Texas Pollutant Discharge Elimination System) permits to satisfy requirements of the federal Clean Water Act.

On-site reclaim water means water generated on the property from rainwater, storm water, cooling towers, air condition condensate or other process that generates secondary water use as maybe found through an industrial process with the intent to use that captured water again on site.

Organic material means organic substances in differing Stages of decay.

Other outdoor use means the use of water outdoors for the maintenance, cleaning and washing of structure and mobile equipment, including automobiles and boats, or the washing of streets, driveways, sidewalks, patios and other similar areas.

Outdoor water feature conservation plan means a plan submitted to and approved by the SAWS Conservation department that includes owner contact information monthly water use, surface area, location, reduced hours of operation through the use of timers, and certified and verified by SAWS to be in good working order.

Park means a non-residential or multi-family tract of land, other than a golf course, maintained by a city, private organization, or individual, as a place of beauty or public recreation and available for use to the general public.

Person means any individual, corporation (including a government corporation), organization, state or federal governmental subdivision or agency, political subdivision of a state, interstate agency or body, business, trust, partnership, limited partnership, association, firm, company, joint stock company, joint venture, commission or any other legal entity.

Pervious hardscape means patios, pathways and other areas where firm footing is desired, constructed in such a way that allows for water to penetrate the ground. Examples include flagstone set in sand and wood plank decks, but exclude concrete slab patios and sidewalks or pavers set with mortar and generally defined as impervious.

Pervious surface means any ground surface that can absorb water or other liquids.

Pool skimmer means a device installed in the pool or spa that permits the removal of floating debris and surface water to the filter.

Pool water features means fountains, spray jets, waterfalls, spillways, and similar water aerating devices, systems, or arrangements. Features not used for the sanitizing or filtration of the pool water.

Positive shut-off means a valve that is held in a closed position by system pressure until overridden by an outside force.

Power production use means the use of water for steam generation and the use of water for cooling and for replenishment of cooling reservoirs.

Power washer means a machine that uses water or a water-based product applied at high pressure to clean impervious surfaces.

Precipitation rate means the speed at which a sprinkler or irrigation system applies water. Precipitation rates are measured in inches per hour or inches per minute.

Prescribed hours for watering means the hours of 12:00 a.m. to 10:00 a.m. and 9:00 p.m. to midnight when this article IV, division 4 of chapter 34 is not in effect, and during the hours specified therein when division 4 is in effect.

Private residential swimming pool means any swimming pool located on private property under the control of the homeowner, the use of which is limited to swimming or bathing by the homeowner's family or invited guests.

Property address means the street address of a property, unless multiple street addresses are served by a single meter, in which case the mailing address will be used.

Public swimming pool means any swimming pool, other than a private residential swimming pool, intended to be used collectively by persons for swimming or bathing, operated by any person

as defined herein, whether owner, lessee, operator, licensee, or concessionaire, regardless of whether a fee is charged for such use. The term includes, but is not limited to, apartment community pools, condominium association pools and community association pools.

Public park means as a place of beauty or public recreation owned by a governmental entity that collects sales or property for the property tax and available for use to the general public.

Rain sensor means a functioning device that detects the presence of precipitation and automatically interrupts an irrigation cycle and inhibits future irrigation cycles by means of an adjustable reset delay.

Recycled water means domestic or municipal wastewater which has been treated to a quality suitable for a beneficial use, pursuant to the provisions of TCEQ Chapter 210 of TAC 30 and other applicable rules and permits.

Requestor means a person who requests a variance under this article.

Residential means a single or multi-family dwelling unit containing two (2) or fewer family units.

Residential water feature means a water feature located at a residential property.

River, stream or *brook* means an artificially created flow of water in a channel or bed, as a brook, rivulet or small river.

Sand media filter means a filter using sand or sand and gravel as a filter medium. Also known as "sand filters."

SAWS means the San Antonio Water System.

Soaker hose means a flexible hose that is designed to slowly emit water across the entire length and connect directly to a flexible hose or spigot. Does not include hose that by design or use sends a fine spray in the air. It is not considered drip irrigation.

Soil holding capacity means the amount of moisture in the soil that can occur without becoming saturated.

Soil organic matter means the organic component of soil, consisting of three (3) primary parts including small (fresh) plant residues and small living soil organisms, decomposing (active) organic matter, and stable organic matter (humus). Soil organic matter serves as a reservoir of nutrients for crops, trees, shrubs, and vegetation, and provides soil aggregation, increases nutrient exchange, retains moisture, reduces compaction, reduces surface crusting, and increases water infiltration into soil.

Spa means any sub structure associated with a swimming pool often described as a hot tub.

Sprinkler means an emitter that applies water to the landscape plants in a stream or spray that travels through the air. Sprinkler irrigation can be applied by an irrigation system or hose-end sprayer or a perforated hose that sprays water in the air.

Summer dormancy means the ability of turfgrass to survive without water for a period of sixty (60) consecutive days during the months of May through September in Bexar and the adjacent counties. Turfgrass with summer dormancy capabilities approved for use are set forth in the approved plant list. The approved plant list, as may be amended from time to time, shall be available from SAWS and located at www-.saws.org/conservation.

Swimming pool means any structure, basin, chamber, or tank including hot tubs, containing an artificial body of water for swimming, diving, or recreational bathing, and having a depth of two (2) feet or more at any point.

TCEQ means Texas Commission on Environmental Quality.

TDS means total dissolved solids.

Trigger level means the mean sea level of the Edwards Aquifer as indicated by the J-17 index well and/or as defined by the Edwards Aquifer Authority.

Turfgrass or *turf* means perennial ground cover plants and grasses that are adapted to regular mowing and foot traffic through management.

Vacuum system means a system, often consisting of a pump, chamber, and tubes, that is used to create a vacuum for any of a variety of purposes, including but not limited to medical, dental and industrial applications.

Vanishing edge pools means a water-feature detail in which water flows over the edge of at least one of the pool walls and is collected in a catch basin. Also known as negative edge pools.

Vegetable garden means any non-commercial vegetable garden planted primarily for household use; "non-commercial" includes incidental direct selling of produce from such a vegetable garden to the public.

Vehicle wash facility means a permanently-located business that washes vehicles with water or water-based product, including but not limited to self-service car washes, full-service car washes, roll-over/in-bay style car washes, and fleet maintenance wash facilities.

Vehicle wash fundraiser means any special-purpose vehicle wash event for which a fee is charged or donation accepted.

Violation means any violation of the drought management, water conservation and reuse rules in this article IV.

Waste means water used without obtaining maximum beneficial use thereof. "Waste" shall also include, but not be limited to, causing, suffering, or permitting a flow of water used for landscape watering to run into any river, creek or other natural water course or drain, superficial or underground channel, bayou, or unto any sanitary or storm sewer, any street, road or highway or other impervious surface, or upon the lands of another person or upon public lands. "Waste" shall also include, but not be limited to, any discharge of water used for commercial, industrial, municipal or domestic purposes to any storm, sanitary sewer, or septic system without the user first having obtained maximum beneficial use thereof. "Waste" shall also include, but not be limited to, failure to repair any controllable leak on property located within the San Antonio city limits or a water or waste water customer of SAWS located in the City of San Antonio ETJ.

Water means and includes, but not be limited to, potable water supplied by a water purveyor, potable water withdrawn from any groundwater well, surface water from any river, creek, natural watercourse, pond, lake or reservoir, and recycled water supplied by a water purveyor.

Water conservation plan means a written document that must include proof of irrigation efficiency of sixty (60) percent or greater and demonstrate specific measures to be taken to reduce consumption to meet the reduction goal established for each stage as described in division 4. A plan includes plant material, precipitation rates and irrigation schedules with run times. SAWS Conservation department may, on a case by case basis, waive the requirements for irrigation efficiency and/or submission of a water conservation plan.

Water feature means an artificially created body of water for aesthetic use including but not limited to fountains, waterfalls, ponds, lagoons, rivers, streams, and brooks as further defined herein.

Water flow restrictor means an orifice or other device through which water passes at a restricted rate.

Water holding capacity means the amount of moisture in the soil that can occur without becoming saturated.

Water utility use means water used for withdrawal, treatment, remediation, transmission and distribution by the water utility.

Waterfall means an artificially created steep descent of water from a height, cascade.

Watering day means a day designated for landscape watering limited to the standard 24-hour period of 12:00 a.m. to midnight. Thus, if it is Stage I and Wednesday is a designated watering day, the period of time referenced is Wednesday morning between 12:01 a.m. to 10:00 a.m., and Wednesday evening between 9:00 p.m. and midnight.

Wildlife habitat water feature means an established aquatic wildlife habitat that has actively sustained a variety of wildlife in a

deliberative, inclusive ecosystem including plant material in and around the water, and fish in the water.

Xeriscape means a landscape consisting of a maximum of fifty (50) percent turfgrass, with the remaining percentage of landscape incorporating low water use plants and/or pervious hardscape. The approved plant list, as may be amended from time to time, shall be available from SAWS Conservation department and located at www.saws.org/conservation.

Zonal irrigation system means an irrigation system which segregates by station areas of shrubs, ground cover, bedding plants, and turf to accommodate a diversity of watering requirements.

(Ord. No. 2014-05-29-0376, § 3(Exh. B), 5-29-14; Ord. No. 2024-06-20-0480, § 1(Exh. A), 6-20-24)

Sec. 34-272. Activities to be regulated on and after effective dates.

The following activities shall be regulated in the manner set out herein on and after the respective dates indicated in the sections and subsections. A person affected by such regulations may request a variance in the manner set out in section 34-276. A violation of this section and subsections shall be subject to the enforcement provisions set out in section 34-277. It shall be and is hereby declared unlawful for any person to violate, refuse or fail to implement the requirements of this division.

(1) *Prescribed hours for watering.* Watering with an irrigation system or hose-end sprinkler is allowed between the hours of 12:01 a.m. and 10:00 a.m. and 9:00 p.m. and midnight when article IV, division 4 is not in effect.

(2) *Power washers.*

a. Effective January 1, 2006, a person who uses a power washer in any commercial manner or for compensation shall register with the president/CEO or their designee of the San Antonio Water System, and obtain a certificate for such use.

b. Exempted from this requirement are persons who use power washers for personal use at their own home and homebuilders who are performing a one-time clean up at a newly constructed house.

c. Holders of NPDES/TPDES permits are deemed certified.

Comment. This comment does not have force of law, but is offered for clarification only. The intent of this registration protocol is to complement and make effective mandates necessary to critical period conservation rules found elsewhere in this Code. The conservation rules in question are intended to prevent water waste under certain circumstances when critical periods are observed. Examples of persons subject to year-round registration are those hired, employed or contracted to clean sidewalks, parking lots, commercial/public buildings and other impervious areas associated with commercial or domestic properties; professional painters; businesses using their own in-house power washers such as chain stores, grocery stores, and any other entity, public or private.

(3) *Vehicle wash fundraisers.* Effective March 1, 2005, any vehicle wash fundraiser shall be conducted at a vehicle wash facility using such facility's equipment.

(Ord. No. 2014-05-29-0376, § 3(Exh. B), 5-29-14; Ord. No. 2024-06-20-0480, § 1(Exh. A), 6-20-24)

Sec. 34-273. Activities to be regulated on and after January 1, 2006.

Except as provided by a specific and alternative application date, particularly systems analysis, the following activities shall be regulated in the manner set out herein on and after January 1, 2006. A person affected by such regulations may request a variance in the manner set out in section 34-277. A violation of this section and subsections shall be subject to the enforcement provisions set out in section 34-278.

It shall be and is hereby declared unlawful for any person to violate, refuse or fail to implement the requirements of this division.

(1) *Minimum irrigation area and flow direction.* Newly installed irrigation systems using pop-up spray or rotor technology shall not be used in landscaped areas which have both:

a. Dimensions less than five (5) feet in length and/or width; and

b. Impervious pedestrian or vehicular traffic surfaces along two (2) or more perimeters.

(2) *Pop-up sprays.* Where pop-up sprays and rotor heads are allowed in newly installed irrigation systems:

a. They must direct flow away from any adjacent impervious surface;

b. Shall not be placed within four (4) inches from an impervious surface; and

c. Irrigation systems newly installed after January 1, 2010 in residential properties may not cover more than ten thousand (10,000) square feet of landscape with spray and/or rotor irrigation heads.

(3) *Annual irrigation system evaluation for athletic fields, golf courses, large use and large properties.*

a. An annual irrigation system evaluation shall be required for all athletic fields, golf courses, large use and large properties and shall be submitted in writing to the SAWS Conservation Department on or before May 1st of each year. Golf courses, athletic fields, homeowner and property owner associations, and large properties or large use properties regardless of size including residential properties must have a licensed Landscape Irrigator in good standing with TCEQ sign-off on the annual irrigation system evaluation to document that the system does not have ongoing leaks, that any leaks found in the course of the audit have been repaired and that its operation does not result in water waste. Golf courses, other than those utilizing recycled water for irrigation in accordance with an agreement with SAWS, shall comply with residential irrigation requirements on areas other than tee boxes, fairways and greens.

b. Municipal tenants and lessees of golf courses, sports and athletic playing fields, and any other municipally owned properties, shall be responsible for compliance with this section and subsection. SAWS shall look directly to such tenants and lessees for compliance with section 34-273(3)(a) unless the municipality concedes by contractual agreement with the tenant/lessee to assume the tenant/lessee's responsibility for compliance.

(4) *Cooling towers.* Effective January 1, 2006:

a. Cooling towers, not utilizing recycled water, shall operate a minimum of four (4) cycles of concentration.

b. Newly constructed cooling towers shall be operated with conductivity controllers, as well as make-up and blowdown meters.

c. Cooling tower owners of existing cooling towers shall register their cooling tower with the SAWS Conservation department by May 1 2013. New cooling towers shall be registered with the SAWS Conservation Department prior to the start of operation.

(5) *Ice machines.* Newly installed ice machines shall not be single pass water-cooled.

(6) *Commercial dining facilities.* Commercial dining facilities shall:

a. Serve water only upon request.

b. Utilize positive shut-offs for hand-held dish-rinsing wands.

c. Utilize water flow restrictors for all garbage disposals.

(7) *Vehicle wash facilities.*

a. Vehicle wash facilities, commencing operation on or after January 1, 2006, using conveyorized, touchless, and/or rollover in-bay technology shall reuse a minimum of fifty (50) percent of water from previous vehicle rinses in subsequent washes.

b. Vehicle wash facilities, commencing operation on or after January 1, 2006, using reverse osmosis to produce water rinse with a lower mineral content, shall incorporate the unused concentrate in subsequent vehicle washes.

c. Regardless of date of operation commencement, self-service spray wands used shall emit no more than three (3) gallons of water per minute.

d. Vehicle wash facilities shall utilize self-service, rollover in-bay or conveyor washing technology with catchment systems and oil-water separators that are intended to treat wastewater prior to entering the sanitary sewer. Such systems shall be designed and maintained to prevent runoff into streets, storm drains and/or local creeks and tributaries.

(8) *Vacuum systems.* Vacuum systems shall not be water-cooled with single-pass potable water when alternative systems are available.

(9) *Certain plumbing fixtures.* When installing certain plumbing fixtures on or after January 1, 2010; gravity flush toilets, bathroom aerators, showerheads, urinals; in any location, residential, commercial, industrial, or institutional, the fixtures will meet or exceed the following performance standards; and where the Environmental Protection Agency has accepted that specific plumbing fixtures by make and model, meet or exceed the WaterSense standards, such fixtures installed will be from the most current listing available at the time of installation:

a. Gravity flush toilets shall have a maximum average water use of no more than one and twenty-eight hundredths (1.28) gallons per flush.

b. Faucet aerators for bathrooms shall have a maximum water flow of one and one-half (1.5) gallons per minute.

c. Showerheads shall have a maximum water flow of two (2.0) gallons per minute. All associated valves must be appropriate to the flows.

d. Urinals shall have a maximum water use of one-half (0.5) gallons per flush.

(10) *Coin operated washing machines.*

a. All newly installed, leased or released coin/card operated washing machines, including but not limited to those that might be found in laundry-mats, apartment houses, dorms or communal use situations shall be selected from Consortium for Energy Efficiency (CEE) that meet or exceed the most current highest water and energy standards as determined by the CEE.

b. In any case all coin/card operated washing machines must meet or exceed the most current highest water and energy standards as determined by the CEE, by January 1, 2020.

(11) *Hot water lines.* Buildings without dedicated hot-water return lines with runs exceeding twenty (20) feet between the heating element and the end use fixture shall be insulated with R-4 sleeve insulation.

(12) *Pool construction requirements on or after May 1, 2013.*

a. Private residential swimming pools shall not be installed with sand media filters.

b. Pool water features installed with public swimming pools or private residential swimming pools must be designed so that the water feature can be turned off without affecting the filtering capabilities of the pool.

c. Pools with shared water between the pool and a spa shall be designed so that water can be shared without the necessity of an above ground water feature that cannot be turned off. If a water feature between the spa and the pool exists, the default setting will be for it to be turned off.

d. Automatic pool fill features must be designed so that they may be turned off in both public swimming pools and private residential swimming pools.

e. Automatic pool fill features must include an automatic pool shut-off feature.

f. Vanishing or negative edge pools must be designed with catch basins large enough to prevent splashing that leads to increased water use.

g. Backwash systems must be designed so they may be turned off.

h. Pool skimmers should be managed in such a way as to minimize water consumption. The range of allowable water within the skimmer fill range should allow for several inches of evaporative loss prior to filling.

i. All residential swimming pools shall have a hose end timer installed at the nearest hose bib location. In addition, a hose bib back-flow prevention device will be connected to the hose bib fixture nearest to the pool.

j. Pool companies that provide installation and/or maintenance services within the jurisdiction of this code must provide in writing to every customer specific information on maintenance requirements that include an emphasis on preventative measures for keeping pool water quality high and alternatives to draining pools to correct water quality problems unless draining is needed for physical repair.

(13) *Non-potable tank registration.*

a. All non-residential non-potable tank owners shall register tanks if combined storage on a single property is over five thousand (5,000) gallons or there is potable water back-up, with the SAWS Conservation department by May 1, 2013 or prior to the start of operation if installed after May 1, 2013. Tanks that are utilized in industrial processing are exempt from this requirement.

b. All residential non-potable tank owners with potable water back-up, or in excess of one thousand (1,000) gallons in size shall register their tanks with the SAWS Conservation department by May 1, 2013 or prior to the start of operation if installed after May 1, 2013.

(14) *Non-residential water features.* Non-residential water features installed after May 1, 2013 are required to be separately metered or sub-metered.

(Ord. No. 2014-05-29-0376, § 3(Exh. B), 5-29-14; Ord. No. 2024-06-20-0480, § 1(Exh. A), 6-20-24)

Sec. 34-274. Other activities to be regulated on and after January 1, 2006.

The following activities shall be regulated in the manner set out herein on and after January 1, 2006. A person affected by such regulations may request a variance in the manner set out in section 34-276. A violation of this section and subsections shall be subject to enforcement provisions set out in section 34-277. It shall be and is hereby declared unlawful for any person to violate, refuse or fail to implement the requirements of this division.

(1) *Condensate collection.* Newly constructed commercial buildings installing air conditioning systems on and after Janu-

ary 1, 2006, shall have a single and independent condensate wastewater line to collect condensate wastewater to provide for future utilization as:

a. Process water and cooling tower make-up, and/or

b. Landscape irrigation water.

c. Any other beneficial on-site use.

d. Condensate wastewater shall not be allowed to drain into a storm sewer, roof drain overflow piping system, public way, or impervious surface.

(2) *Rain sensors.* Effective January, 1, 2006, rain sensors shall be installed and maintained in good working order on all irrigation systems equipped with automatic irrigation controllers.

(Ord. No. 2014-05-29-0376, § 3(Exh. B), 5-29-14)

Sec. 34-275. Landscaping regulations generally applicable on and after January 1, 2006.

Except as specifically provided with alternative effective dates, persons affected by the regulations set out herein below shall comply on and after January 1, 2006, and may request a variance to such regulations in the manner set out in section 34-276. A violation of this section and subsections shall be subject to the enforcement provisions set out in section 34-277. It shall be and is hereby declared unlawful for any person to violate, refuse or fail to implement the requirements of this division.

(1) *Xeriscape option.* Effective January 1, 2006, homebuilders and/or developers subdividing lots and/or constructing new single family residential homes shall offer a xeriscape option in any series of landscaping options offered to prospective home buyers.

(2) *Model.* Effective January 1, 2006, homebuilders and/or developers who construct model homes for a designated subdivision shall have at least one model home per subdivision landscaped according to a xeriscape design.

(3) *Zonal system.* In-ground irrigation systems installed on and after January 1, 2006, shall be zonal irrigation systems.

(4) *Turfgrass soil support.*

a. Turfgrass installed during or associated with new construction on and after January 1, 2006, shall have a minimum of four (4) inches of soil including a minimum 0.25 inches of Soil Organic Matter (SOM) laid, or equivalent amount blended with the balance of soil, under the turfgrass after sod is installed. A contractors mix, enriched topsoil, or other enriched and finely screened landscaping material should be applied to meet the SOM requirement.

b. Drainage utility projects, water and power utility projects, public property maintenance or repair, and those governmental activities necessary to NPDES/TPDES compliance with federal or state rules and regulations implementing the federal Clean Water Act; or governmental actions to comply with the Americans with Disabilities Act, shall not be deemed new construction for purposes of this subsection.

(5) *Turfgrass dormancy qualities.* Turfgrass installed after January 1, 2007, shall have summer dormancy capabilities. A requirement to irrigate turfgrass that has summer dormancy capabilities is not allowed.

(6) *Irrigation system use, setting and schedule recommendations.* All irrigators installing irrigation systems permitted by the city or on property subject to this article shall provide to the irrigation system owner in writing a recommended seasonal irrigation schedule and instructions on how to use the irrigation system and set the controller. Seasonal schedules provided will be approved by the president/CEO's designee in conservation or their

designee. The schedule will be affixed to the irrigation controller or an adjacent wall.

(7) *Required city irrigation permits.*

a. Where irrigation permits are required by the city, it is the responsibility of the licensed irrigator to ensure permits are secured. Failure to secure and pay for a permit as required for irrigation work is subject to penalties as described in section 34-277 in addition to penalties that may be assessed under the city unified development code.

b. If an irrigation system is found to be installed by an unlicensed individual or company, other than a homeowner working on his or her own residence, an additional violation may be issued under section 34-277 in addition to penalties that may be assessed under the city unified development code.

c. Failure to properly supervise installation of irrigation work by an onsite licensed irrigator or licensed irrigation technician is subject to penalties as described in section 34-277 in addition to penalties that may be assessed under the city unified development code.

(8) *Dedicatory instruments.*

a. A dedicatory instrument may not require the installation of an irrigation system.

b. A dedicatory instrument may not require turfgrass to be planted or irrigated

Legal comment. This comment does not have force of law, but is provided here for informational purposes only. V.T.C.A., Property Code ch. 202, § 202.001 et. seq., entitled "Certain Restrictive Covenants," reflects a growing public interest in water conservation and its relationship to the public health, safety, and welfare.

V.T.C.A., Property Code ch. 202, § 202.007, provides that a property owners association may not include or enforce a provision in a dedicatory instrument that prohibits or restricts a property owner from implementing certain efficient irrigation systems, including underground drip or other drip systems. Any dedicatory instrument provision, attempting to restrict a property owner from installing such efficient systems, is void. Therefore, such restrictions, running counter to certain conservation efforts, cannot be enforced. Texas Real Property Code, § 202.007(b). Added by Acts 2003, 78th Legislature, chapter 1024, § 1, Effective, September 1, 2003.

As used within the Texas Property Code, "dedicatory instrument" means a governing instrument for the establishment, maintenance, and operation of a residential subdivision, planned unit development, condominium, townhouse regime, or any similar planned development. Texas Real Property Code, § 202.007(1).

The Texas Property Code also allows that a property owners' association may restrict the type of turf used by a property owner in the planting of new turf (in the future) in order to encourage or require water conserving turf.

According to the Texas Property Code, property owners' associations may regulate, by dedicatory instrument or other legal means, installation of efficient irrigation systems, including establishing visibility limitations for aesthetic purposes.

SAWS endorses and advocates the use of dedicatory instruments and other legal obligations among private parties which understandings may support and promote a culture of water conservation.

(Ord. No. 2014-05-29-0376, § 3(Exh. B), 5-29-14; Ord. No. 2024-06-20-0480, § 1(Exh. A), 6-20-24)

Sec. 34-276. Variances.

The authority to grant a variance and an appeal from such variance to the provisions of this division, is hereby delegated to the San Antonio Water System in the manner described herein. A determination by the San Antonio Water System pursuant to this section shall be deemed final for purposes of appeal. Appeal procedures are detailed below.

(1) *Variance.* A person who is affected by these provisions may seek a variance in the manner set out herein. A person shall request a variance within thirty (30) days of the date a provision becomes apparently applicable to that person's activities and/or properties.

(2) *Time, date, place.* A person seeking a variance under these provisions shall make such request in writing to the conservation department. Such request shall be reviewed by the department. If the application, on its face, warrants a variance, the department may grant the request without hearing.

(3) *Appeal.* In the event the variance is granted, the decision of the department shall be final. Should the variance be denied, however, the requestor shall have ten (10) days from receipt of the denial of the variance to seek an appeal in writing. Within thirty (30) days of the written request for an appeal from the denial of a variance, the President/CEO's designee in Conservation shall hear the appeal. The requestor shall be informed in writing of the time, date and place where such appeal shall be heard. The requestor and/or their authorized representatives may present evidence to the President/CEO's designee in Conservation why such appeal should be granted. The designee shall inform the requestor within thirty (30) days of the date of the hearing of the appeal whether the appeal has been granted or denied. The determination of the director shall be final and shall be in writing.

(4) *Variance qualifications.* Variances to the regulated activities in this division 1 may be issued through the department of conservation's designee provided that the general intent of this division has been met, and compliance with article IV, division 1, is proven to be impracticable to accomplish and to cause unnecessary hardship. The criteria to determine hardship shall include, but not be limited to, a showing of level of capital outlay and technical complexity in relation to conservation benefit to be derived, and time and effort required to accomplish compliance with this division.

(5) *Specific criteria to be used for the granting of variances.* The president/CEO of the San Antonio Water System or their designee shall also develop specific criteria to be used for the granting of variances from the provisions of this division, which are appropriate to the provision for which a variance is being sought. Such criteria shall be applied equally to each request for variance under a particular provision. A requestor shall be furnished with the criteria to be utilized by the department and/or director prior to his/her variance application and/or appeal being heard.

(Ord. No. 2014-05-29-0376, § 3(Exh. B), 5-29-14; Ord. No. 2024-06-20-0480, § 1(Exh. A), 6-20-24)

Sec. 34-277. Enforcement.

(a) The president/CEO or his designee of the San Antonio Water System is hereby authorized to enforce this article IV in the manner and to the extent allowed by law, including, but not limited to, filing complaints with the city municipal prosecutor's office for such violations, serving notices of violations of this division, filing civil enforcement actions, and enforcing the system's utility service regulations. Such authorization does not diminish the city attorney's authority in regard to enforcement of chapter 34, provisions.

(b) Responsible party. For purposes of this division, the San Antonio Water System water and/or waste water customer, property owner,

occupant, or resident, of the property where a violation is observed shall be the responsible party for a violation of the provisions of this division unless an alternate person is designated by the named meter holder and accepts responsibility and it is documented in writing by both the alternate individual and the meter holder. If there is no meter, the property owner, occupant, or resident, shall be the responsible party.

(c) The president/CEO or his or her designee is authorized and instructed to commence any action, in law or in equity, including the filing of criminal charges, deemed necessary for the purpose of enforcing this division. The San Antonio Water System president/CEO or the designee may seek civil penalties, as may be allowed by statute, and any other legal or equitable relief available under common law, V.T.C.A., Local Government Code ch. 54 as it may be amended to address the subject matter of this division, or any other applicable city, state or federal code or statute.

(d) Criminal. Any person violating any provision of this division 1 of article IV shall be guilty of a Class C misdemeanor and upon citation and conviction, shall be punished by a fine not less than fifty dollars ($50.00) and not more than one hundred dollars ($100.00) for the first offense; a fine not less than two hundred and fifty dollars ($250.00) and not more than five hundred dollars ($500.00) for the second offense; a fine of not less than one thousand dollars ($1,000.00) and not more than two thousand dollars ($2,000.00) for the third and additional offenses. Each violation of a particular section of this division shall constitute a separate offense, and each day an offense continues shall be considered a new violation for purposes of enforcing this division.

(e) Civil. Civil penalties, imposed by courts of competent jurisdiction in civil actions for violations of this division, may also be assessed as may be allowed by applicable state law in any amount to be authorized by the state. Under V.T.C.A., Local Government Code ch. 54, SAWS and the office of the city attorney may presently pursue civil enforcement for injunctive relief and the imposition of one thousand dollars ($1,000.00) per day civil penalties appropriately imposed by the Court. This statutory remedy is in addition to the city's common law right to bring civil actions for injunctive relief to stop harmful acts, independent of authority found in the Texas Local Government Code.

(f) If, for any reason, any section, sentence, clause or part of this division is held legally invalid, such judgment shall not prejudice, affect, impair or invalidate the remaining sections of this division, but shall be confined to the specific section, sentence, clause, or part of this division held legally invalid.
(Ord. No. 2014-05-29-0376, § 3(Exh. B), 5-29-14; Ord. No. 2024-06-20-0480, § 1(Exh. A), 6-20-24)

Secs. 34-278—34-286. Reserved.

DIVISION 2. ENFORCEMENT

Sec. 34-287. Reserved.

Sec. 34-288. Violations.

It shall be a violation punishable by city municipal fine for any San Antonio Water System water and/or waste water service customer, property owner, occupant, resident, or their designee within the city of San Antonio or its extraterritorial jurisdiction, to intentionally, knowingly, recklessly, or criminally negligently allow or cause water waste, to allow or cause landscape watering outside the prescribed hours for landscape watering, or to allow or cause any violation of any provision of this article.
(Ord. No. 2014-05-29-0376, § 3(Exh. B), 5-29-14)

Sec. 34-289. Continued violations.

At locations of repeated or continued violations, the president/CEO of the San Antonio Water System shall have the authority to discontinue the supply of potable water to the registered meter holder. A repeated or continued violation may occur even if a municipal fine was never imposed for a previous violation.
(Ord. No. 2014-05-29-0376, § 3(Exh. B), 5-29-14; Ord. No. 2024-06-20-0480, § 1(Exh. A), 6-20-24)

Sec. 34-290. Enforcement personnel.

The president/CEO or the designee of the San Antonio Water System is hereby authorized to enforce this article IV in the manner and to the extent allowed by law, including, but not limited to, filing complaints with the city municipal prosecutor's office for such violations, serving notices of violations of this division, filing civil enforcement actions, and enforcing the system's utility service regulations. Such authorization does not diminish the city attorney's authority in regard to enforcement of chapter 34, provisions.
(Ord. No. 2014-05-29-0376, § 3(Exh. B), 5-29-14; Ord. No. 2024-06-20-0480, § 1(Exh. A), 6-20-24)

Sec. 34-291. Education and enforcement.

As the success of conservation generally, and specifically of this article, depends largely on public cooperation, SAWS policies shall implement customer education programs and shall establish and maintain a water conservation "hot line," so that the public may provide the San Antonio Water System with information relating to violators.
(Ord. No. 2014-05-29-0376, § 3(Exh. B), 5-29-14)

Sec. 34-292. Defenses to prosecution.

(a) It shall be a defense to prosecution that landscape watering was performed on any plant or seed planted in or transplanted to an area with a valid new landscape variance from SAWS as described in section 34-332.

(b) It shall be a defense to prosecution that landscape watering was performed by a commercial enterprise in the business of growing or maintaining plants for sale, such as plant nurseries; provided, however, that such landscape watering shall be performed solely for the establishment, growth, and maintenance of such plants and without waste as defined in section 34-271.
(Ord. No. 2014-05-29-0376, § 3(Exh. B), 5-29-14)

Sec. 34-293. Responsible party.

For purposes of this article, the San Antonio Water System water and/or waste water customer, property owner, occupant, or resident of the property where a violation is observed shall be the responsible party for a violation of the provisions of this article unless an alternate person is designated by the named meter holder and accepts responsibility and it is documented in writing by both the alternate individual and the meter holder. If there is no meter, the property owner, occupant, or resident shall be the responsible party.
(Ord. No. 2014-05-29-0376, § 3(Exh. B), 5-29-14)

Sec. 34-294. Additional enforcement remedies.

The president/CEO or his or her designee is authorized and instructed to commence any action, in law or in equity, including the filing of criminal charges, deemed necessary for the purpose of enforcing this division. The SAWS president/CEO or the designee may seek civil penalties and any other legal or equitable relief available under common law, V.T.C.A., Local Government Code ch. 54 or any other applicable city, state or federal code or statute.
(Ord. No. 2014-05-29-0376, § 3(Exh. B), 5-29-14)

Sec. 34-295. Penalties.

(a) *Criminal.* Any person violating any provision of this article IV, divisions 1—4, shall be guilty of misdemeanor and upon citation therefore and conviction thereof, shall be punished by a fine not less than fifty dollars ($50.00) and not more than one hundred dollars ($100.00) for the first offense, a fine not less than two hundred and fifty dollars ($250.00) and not more than five hundred dollars ($500.00) for the second offense, and a fine not less than one thousand dollars ($1,000.00) and not more than two thousand dollars ($2,000.00) for the third or any additional offense. Each violation of a particular section of this article, shall constitute a separate offense, and each day an offense continues shall be considered a new violation for purposes of enforcing this division.

(b) *Civil.* Civil penalties for violations of this division or of the drought management, water conservation and reuse plan, article IV, division 4, may also be assessed as allowed by applicable state law in an amount not to exceed one thousand dollars ($1,000.00) per violation. Each violation

of a particular section of this division or of the drought management, water conservation and reuse plan, article IV, division 4, shall constitute a separate violation, and each day a violation continues shall be considered a new violation for purposes of enforcing this division.
(Ord. No. 2014-05-29-0376, § 3(Exh. B), 5-29-14; Ord. No. 2024-06-20-0480, § 1(Exh. A), 6-20-24)

Sec. 34-296. Nuisance.

The violation of any part of this division shall be a nuisance which may be abated and enjoined by SAWS. Any person creating a public nuisance shall be subject to the provision of the Code governing such nuisances, including reimbursing SAWS for any costs incurred in removing, abating or remedying said nuisance. The owner of any property where said nuisance has occurred shall be liable to the city, acting through and on behalf of SAWS, for the cost of such abatement and shall pay such cost on demand and the city, acting through and on behalf of SAWS, shall have a right to file a lien on the property to secure payment of the cost of such abatement.
(Ord. No. 2014-05-29-0376, § 3(Exh. B), 5-29-14)

Sec. 34-297. Access to premises.

SAWS and all persons or agents employed thereby, or acting behalf of, shall have free access of the right-of-way to the premises, including, to any neighborhood or subdivision wherein SAWS provides water service to perform maintenance, make repairs, and conduct inspections, including inspections to determine whether provisions of the water conservation and reuse article IV have been, and are being, complied with in all respects. Any person or entity refusing permission or barring or obstructing access will be in violation of this division and may be subject to consequences in this division.
(Ord. No. 2014-05-29-0376, § 3(Exh. B), 5-29-14; Ord. No. 2024-06-20-0480, § 1(Exh. A), 6-20-24)

Sec. 34-298. Access to information.

Any water purveyor operating within the corporate limit of the city shall provide enforcement personnel of SAWS, upon request, with the identity, mailing address and telephone number of any person in whose name a water meter is registered or customer account is maintained.
(Ord. No. 2014-05-29-0376, § 3(Exh. B), 5-29-14)

Sec. 34-299. Severability.

If, for any reason, any section, sentence, clause or part of this division is held legally invalid, such judgment shall not prejudice, affect, impair or invalidate the remaining sections of this division, but shall be confined to the specific section, sentence, clause, or part of this division held legally invalid.
(Ord. No. 2014-05-29-0376, § 3(Exh. B), 5-29-14)

Sec. 34-300. This article to prevail if conflict.

In the event any section of this article conflicts in effect or application with any other section of the Code or ordinance, the section(s) of this article shall prevail.
(Ord. No. 2014-05-29-0376, § 3(Exh. B), 5-29-14)

DIVISION 3. RESERVED

Secs. 34-301—34-315. Reserved.

DIVISION 4. DROUGHT MANAGEMENT STAGES

Sec. 34-316. Adoption of a drought management plan, water use reduction measures, and aquifer stage conditions applicable within the corporate limits of the city and its extraterritorial jurisdiction.

The drought management plan, including the water use reduction measures and associated implementation conditions set out therein, is hereby adopted and applicable throughout the corporate limits of the city regardless of water source and its extraterritorial jurisdiction where the San Antonio Water System may provide water and waste water service.
(Ord. No. 2014-05-29-0376, § 3(Exh. B), 5-29-14)

Sec. 34-317. Reserved.

Sec. 34-318. Bases of water use reduction measures and aquifer stage conditions.

The water use reduction measures shall be based on the aquifer stage conditions or other condition considerations specified in section 34-319. The aquifer stage conditions shall be based on the Edwards Aquifer water levels in well AY-68-37-203 in the city (also known as "Dodd Field Test Well" or "J-17") or on aquifer water quality or other aquifer, seasonal or weather conditions not based on water levels in J-17.
(Ord. No. 2014-05-29-0376, § 3(Exh. B), 5-29-14; Ord. No. 2024-06-20-0480, § 1(Exh. A), 6-20-24)

Sec. 34-319. Implementation and termination of water use reduction measures and stages, generally.

(a) *Implementation of water use reduction measures.* When the aquifer falls to six hundred sixty-five (665) feet above msl, city and SAWS staff shall begin preparations for public awareness, education and enforcement of the respective stage provisions.

(1) *Stage 1.* Stage I water use reduction measures shall be declared to be in effect when the aquifer level at J-17 drops to six hundred sixty (660) feet msl based on a ten-day rolling average calculated and determined by the Edwards Aquifer Authority.

(2) *Stage II implementation.* Stage II water use reduction measures shall be declared to be in effect when the aquifer level in the index well J-17 falls to six hundred fifty (650) feet above msl based on a ten-day rolling average calculated and determined by the Edwards Aquifer Authority.

(3) *Stage III implementation.* Stage III water use reduction measures shall be implemented when well J-17 falls to six hundred forty (640) feet above msl. Based on a ten-day rolling average calculated and determined by the Edwards Aquifer Authority.

(4) *Stage IV implementation.* Once Stage III is declared, and due consideration of all of the conditions described below in subsection (b), the city manager, or designee, in consultation with SAWS president/CEO or designee, may declare or delay Stage IV. Specific water use reduction measures are set out in section 34-332 and shall cover the categories of regulated uses, applicable stages and corresponding required water use reduction measures. Stage IV water use reduction measures may be implemented when well J-17 falls to six hundred thirty (630) feet above msl. Based on a ten-day rolling average calculated and determined by the Edwards Aquifer Authority. Alternatively, Stage IV may be implemented before or after the J-17 levels described above based on the following conditions set forth in subsection (b).

(b) *Conditions for the implementation of water use reduction measures.* One or more of the following conditions may trigger the implementation of water use reduction measures by the city manager or designee, in consultation with SAWS president/CEO or designee:

(1) The review of conditions to determine whether SAWS is able to comply with the applicable regulations governing water supply withdrawals based upon consideration of water supplies, pumping trends, seasonal adjustments and current and forecast precipitation.

(2) Consideration of water resource water quality or other seasonal or weather conditions not based on water levels in J-17, or other conditions as determined by the city.

(3) Whenever Edwards aquifer quality measures thirty (30) percent TDS above historical average and above the

maximum TDS value for any public supply water well warrant additional measures to protect the aquifer.

(4) City council may determine that other aquifer, water resource, seasonal, or weather conditions not based on water levels in J-17 warrant additional restrictions. The city council may declare the city impose additional restrictions for all water uses including a prohibition of sprinkler irrigation.

(c) *Termination of mandatory water use reduction measures.*

(1) *Stage I termination.* When the aquifer level at J-17 rises to six hundred sixty (660) feet msl SAWS shall monitor the consistency and conditions of Edwards aquifer levels for the next fifteen (15) days to determine if termination of water use reductions measures is warranted, unless conditions significantly change to warrant an earlier or later review for stage termination or extension. After this monitoring period, the city manager, or designee, in consultation with SAWS president/CEO, or designee, may declare the measures terminated.

(2) *Stage II termination.* When the aquifer level at J-17 rises to six hundred fifty (650) feet msl SAWS shall monitor the consistency and conditions of Edwards aquifer levels for the next fifteen (15) days to determine if termination of water use reductions measures is warranted, unless conditions significantly change to warrant an earlier or later review for stage termination or extension. After this monitoring period, the city manager, or designee, in consultation with SAWS president/CEO, or designee, may declare the measures terminated.

(3) *Stage III termination.* When the Edwards aquifer levels remain above six hundred forty (640) msl for fifteen (15) consecutive days conditions will determine if all restrictions are terminated or extended or if a previous less restrictive stage will apply.

(4) *Stage IV termination.* When Stage III is terminated then termination of Stage IV will occur at the end of the current billing cycle in which the termination takes place.

(Ord. No. 2014-05-29-0376, § 3(Exh. B), 5-29-14; Ord. No. 2024-06-20-0480, § 1(Exh. A), 6-20-24)

Sec. 34-320. Declaration and termination of water use reduction measures; notice by publication required.

(a) The city manager, in consultation with SAWS, is hereby authorized to declare that each "trigger level" or other condition has been reached as described in section 34-319 and that the water use reduction measures and each respective stage are in effect.

(b) Notices of the implementation and termination of the water use reduction measures and each of the various stages, as appropriate, shall be publicly announced and published in a daily newspaper and websites for the City of San Antonio and SAWS for a minimum of one day. The implementation or termination of the measures and each of the stages shall become effective immediately upon publication of the respective notice.

(Ord. No. 2014-05-29-0376, § 3(Exh. B), 5-29-14; Ord. No. 2024-06-20-0480, § 1(Exh. A), 6-20-24)

Secs. 34-321, 34-322. Reserved.

Sec. 34-323. Designated landscape irrigation times and days.

During any period when stage restrictions have been declared to be in effect, irrigation with a sprinkler or irrigation system of existing landscape on any property (other than golf courses and athletic fields, the restrictions for which are set out in section 34-332) may occur only on certain designated days and at certain times, as follows:

(1) *Stages I, II, III, IV landscape irrigation days.* For Stages I, II, III, and IV the landscape irrigation days for residential and commercial properties will be accord-

ing to the street address and according to the following schedule. If the last digit of the street address ends in:

0 or 1 the irrigation day is Monday,

2 or 3 the irrigation day is Tuesday,

4 or 5 the irrigation day is Wednesday,

6 or 7 the irrigation day is Thursday,

8 or 9 the irrigation day is Friday.

If there is no street address associated with the property such as a parkway or if there is more than one street address associated with a single contiguous property, the irrigation day is Wednesday.

(2) *Stage I landscape irrigation times and methods.* For Stage I the following times and associated irrigation methods apply: Irrigation with a soaker hose, hose-end sprinkler or in-ground irrigation system is allowed on the day specified in subsection (1) between the hours of 12:00 a.m. to 10:00 a.m. and 9:00 p.m. to midnight. Drip irrigation systems may run up to three days a week on Monday, Wednesday, and Friday. Landscape irrigation with a handheld hose is allowed at any time on any day.

(3) *Stage II landscape irrigation times and methods.* For Stage II the following times and associated irrigation methods apply: Irrigation with a soaker hose, hose-end sprinkler or in-ground irrigation system is allowed on the day specified in subsection (1) between the hours of 5:00 a.m. to 10:00 a.m. and 9:00 p.m. to midnight. Drip irrigation systems may run up to two days a week on Monday and Friday between the hours of 5:00 a.m. to 10:00 a.m. and 9:00 p.m. to midnight. Landscape irrigation with a handheld hose is allowed at any time on any day.

(4) *Stage III landscape irrigation times and methods.* Stage II landscape irrigation restrictions remain in effect. In addition, a drought surcharge is assessed on all water accounts of SAWS meeting the thresholds in the drought surcharge schedule, in accordance with section 34-128.

(5) *Stage IV landscape irrigation and methods.* For Stage IV, the following times and associated irrigation methods apply: Irrigation with a soaker hose, hose-end sprinkler or in-ground irrigation system is allowed on the day specified in subsection (1) every other week beginning on the second Monday after Stage IV has been declared, between the hours of 5:00 a.m. to 10:00 a.m. and 9:00 p.m. to midnight. Drip irrigation systems may run once per week on Friday between the hours of 5:00 a.m. to 10:00 a.m. and 9:00 p.m. to midnight. Landscape irrigation with a handheld hose is allowed at any time on any day. In addition, a drought surcharge is assessed on all water accounts of SAWS meeting the thresholds in the drought surcharge schedule, in accordance with section 34-128. Additional restrictions on water use may be established by the president/CEO in consultation with the city manager.

(Ord. No. 2014-05-29-0376, § 3(Exh. B), 5-29-14; Ord. No. 2024-06-20-0480, § 1(Exh. A), 6-20-24)

Secs. 34-324—34-331. Reserved.

Sec. 34-332. Specific water use reduction measures.

Specific water use reduction measures, their corresponding stages and scope are set out in Table A Stage I, Table B Stage II, Table C Stage III [and] Stage IV, below.

Table A—Stage I Restrictions

Stage	*Measures For*	*Scope of Restrictions*
I	Essential Services	Fire-fighting and medical uses-no restrictions. Reductions in fire hydrant and sewer line flushing encouraged.

Stage	*Measures For*	*Scope of Restrictions*
I	Water Utility Use	Water utilities are encouraged to implement voluntary measures, such as improving leak detection surveys and repair programs and stabilizing and equalizing system pressure.
I	Power Production	Water used for power production shall be voluntarily reduced.
I	Military	Compliance with mandatory reduction measures for those uses in the outdoor, essential and utility categories.
I	Agriculture	The escape of irrigation tailwater, as that term is commonly used in the agricultural community, is prohibited. Water loss through percolation in transmission canals is prohibited.
I	Livestock Use	Reduction of water use by any means available is encouraged.
I	Industrial, Commercial, and Other	A. Reduction of water use by any means available is encouraged. Compliance with the mandatory demand reduction measures is required for those uses in the outdoor category, including landscape watering, swimming pools, hot tubs and similar facilities, golf courses, aesthetic uses such as water features; such restrictions specifically include industrial users, as well as all others. B. Use of gray water, treated wastewater or reuse water, cooling tower blow down, condensate water is a defense to prosecution. Alternate on-site reclaimed sources may be approved through variance on a case by case basis. C. If one hundred (100) percent use of treated wastewater (recycled water), reuse water, reclaimed water, gray water, condensate, or cooling tower blow down will be used, signs identifying this property as using recycled or reclaimed water source must be posted on site at a location where the general public can view it.
I	Hotels, Motels, Bed and Breakfasts	Hotels, motels, and B&B's encouraged to voluntarily offer the option of a "no linen/towel change" program.
I	Households	Reduction of water use by any means available is encouraged. Compliance with the mandatory demand reduction measures shall be achieved for those uses in the outdoor category, such as landscape watering, swimming pools, hot tubs, pressure washing and similar facilities.
I	Water Features	A. *Residential:* All residential water features are allowed without prohibition. B. *Non-Residential:* SAWS Conservation department may verify the condition of a water feature to determine if it is in good working order. 1) All indoor water features in good working order allowed without prohibition. 2) All water features that meet the definition of wildlife habitat water features section 34-271 in good working order allowed without prohibition with basic variance approved by SAWS Conservation. 3) All outdoor water features that have a water surface area of less than one thousand (1,000) square feet prior to Stage I declarations and in good working order with an approved basic variance from SAWS Conservation are allowed without prohibition. 4) All water features confirmed by SAWS to be using one hundred (100) percent treated wastewater (recycled water), reuse water, reclaimed water, gray water, condensate, or cooling tower blow down or other on-site reclaim water and in good working order with a basic variance approved by SAWS Conservation are allowed without prohibition. Signs identifying this property as using recycled or reclaimed water source must be posted on site at a location where the general public can view it. 5) All outdoor water features that do not meet the conditions described in B.1)—4) above must have a Basic variance and outdoor water feature conservation plan approved by SAWS Conservation that includes limiting hours of operation to a maximum of eight (8) hours of 24-hour period before they are allowed to operate in Stage I or Stage II. 6) Outdoor water features that do not meet the conditions described in B.1)—4) and would like to be considered for expanded operated hours from eight (8) hours in a 24-hour period to twelve (12) hours of operation in a 24-hour period during Stages I and II may apply for an advanced variance to the SAWS Conservation department prior to implementation of the extended hours.
I	Pressure or Power Washing	*Residential:* Residential property owners may personally pressure wash their property without a variance for health and safety or in preparation of maintenance such as for house painting if they perform the work themselves. Water is never allowed to run into the street or otherwise off the property. *Non-Residential:* Pressure washing of non-residential property allowed for health and safety by a properly registered employee or a pressure washing company (section 34-272). A variance from the SAWS Conservation department is required prior to work and all conditions of the variance must be followed.

Stage	*Measures For*	*Scope of Restrictions*
I	Vehicle and Equipment Washing	A. Citizens are encouraged to wash their vehicles no more than twice a month. B. Residential: washing of vehicles and mobile equipment (e.g., washing vehicle at a residence) is permitted only on Saturday or Sunday with a pressure washer, hand-held hose equipped with an automatic shut-off nozzle, or bucket of five (5) gallons or less, without waste. C. Fleet managers are encouraged to only wash those vehicles as is necessary for health and safety. D. Use of treated wastewater (recycled water), reuse water, reclaimed water, gray water, condensate, or cooling tower blow down is a defense to prosecution and may be use for vehicle washing any day. Alternate on-site reclaimed sources may be approved through variance for the SAWS Conservation department on a case by case basis.
I	Landscape Irrigation for Existing Plants	A. Landscape watering using sprinkler or irrigation systems is permitted only on designated landscape watering days (subsection 34-323(1)). For Stage I the following times and associated irrigation methods apply: Irrigation with a soaker hose, hose-end sprinkler or in-ground irrigation system is allowed on the day specified in subsection (1) between the hours of 12:00 a.m. to 10:00 a.m. and 9:00 p.m. to midnight. Drip irrigation systems may run up to three days a week on Monday, Wednesday, and Friday. Landscape irrigation with a handheld hose is allowed at any time on any day. B. A user may file with SAWS a request for a variance to the designated days and times. The request must include: (1) a statement indicating compelling reasons why the user is unable to meet the specific designated watering times and days; (2) a water conservation plan demonstrating a significant overall reduction of water use, and (3) evidence of having filed with SAWS the annual irrigation system evaluation required for properties that are five (5) acres or more and have in-ground irrigation (section 34-273.2). The water conservation plan must also include proof of irrigation efficiency of sixty (60) percent or greater and demonstrate specific measures to be taken to reduce consumption to meet the reduction goal established for Stages I, II, III, and IV. SAWS may, on a case by case basis, waive the requirements for irrigation efficiency and/or submission of a water conservation plan. Upon the approval of the water conservation plan as set forth herein, the user may be granted a variance. C. The one hundred (100) percent use of treated wastewater (recycled water), reuse water, reclaimed water, gray water, condensate, or cooling tower blow down is a defense to prosecution and may be used to irrigate any day without waste, that include allowing water to run down the street, parking lot, or adjacent property. Alternate on-site reclaimed sources may be approved through variance from the SAWS Conservation department on a case by case basis. D. If one hundred (100) percent use of treated wastewater (recycled water), reuse water, reclaimed water, gray water, condensate, or cooling tower blow down will be used during additional days allowed in subsections 34-323(1)—(7) signs identifying this property as using recycled or reclaimed water source must be posted on site at a location where the general public can view it.

Stage	*Measures For*	*Scope of Restrictions*
I	Landscape Irrigation for New Landscapes	A. Installation of new landscapes is permitted with a variance which shall only be granted if all applicable provisions including sections 34-273, 34-274.2 and section 34-275 are verified by SAWS, including zonal irrigation systems if a permanent irrigation system is installed, a minimum of four (4) inches of soil under turf, model home with xeriscape and xeriscape option offered by builder on file with SAWS Conservation department. B. Landscape watering permitted to maintain adequate growth until established on newly installed landscapes, generally five (5) weeks. Property owners should submit electronically on-line at www.saws.org to the SAWS Conservation department their name, address where the new landscape is to be installed and the date of installation in order to receive a confirmation electronic email from SAWS. A copy of the confirmation must be posted at a place visible from the street at the property the variance was received at. Thereafter, landscape watering using sprinkler or irrigation systems for landscaping plants is permitted only on the day and times associated with the current stage in effect at the termination of the variance. C. The one hundred (100) percent use of gray water, treated wastewater or reuse water, condensate water, cooling tower blow down may be used to irrigate any day between the hours of 7:00 p.m. and 11:00 a.m. without waste, that include allowing water to run down the street, parking lot, or adjacent property. Alternate on-site reclaimed sources may be approved through variance from the SAWS Conservation department on a case by case basis. D. If one hundred (100) percent use of treated wastewater (recycled water), reuse water, reclaimed water, gray water, condensate, or cooling tower blow down will be used during additional days allowed in subsections 34-323(1)—(7) signs identifying this property as using recycled or reclaimed water source must be posted on site at a location where the general public can view it.
I	Golf Courses	Golf courses shall be required to submit a water conservation plan and shall have on file with SAWS the annual irrigation system evaluation as described in section 34-273.2 and shall be defined as "conforming" or "non-conforming" and shall reduce water usage under the following terms: A. All landscape out-of-play areas such as may be found around a club house or entryway shall follow general landscape irrigation restrictions (subsections 34-323(1)—(3)). B. All in-play areas may be irrigated with a sprinkler or irrigation system between the hours of 12:00 a.m. to 10:00 a.m. and 9:00 p.m. to midnight. C. Conforming golf courses shall implement a ten (10) percent reduction in the replacement of daily evapotranspiration rate ("ET rate") or soils daily water holding capacity, achieved by use of an existing and properly operating CCIS (as defined) capable of achieving such water conservation goals. D. A non-conforming golf course shall not use more than 1.8 times the base usage. If not separately metered an irrigation audit showing precipitation rates and run times along with a conservation plan shall be submitted and approved by SAWS for the purpose of establishing acceptable irrigation run times and days as approved by SAWS. E. The one hundred (100) percent use of treated wastewater (recycled water), reuse water, reclaimed water, gray water, condensate, or cooling tower blow down, gray water, treated wastewater or reuse water, condensate water, cooling tower blow down is a defense to prosecution and may be used to irrigate any day without waste. Alternate on-site reclaimed sources may be approved through variance from the SAWS Conservation department on a case by case basis. F. If one hundred (100) percent use of treated wastewater (recycled water), reuse water, reclaimed water, gray water, condensate, or cooling tower blow down, gray water, treated wastewater or reuse water, condensate water, cooling tower blow will be used during additional days or hours allowed in subsections 34-323(1)—(5) signs identifying this property as using recycled or reclaimed water source must be posted on site at a location where the general public can view it.

Stage	*Measures For*	*Scope of Restrictions*
I	Public Parks	A. Public park owner/operators shall be required to submit a water conservation plan and have on file with the SAWS Conservation department an irrigation checkup as required by subsection 34-273(2). B. Public parks shall limit irrigation with an irrigation system to those days and times required by subsections 34-323(1)—(3). C. The one hundred (100) percent use of treated wastewater (recycled water), reuse water, reclaimed water, gray water, condensate, or cooling tower blow down is a defense to prosecution and may be used to irrigate any day between the house of 7:00 p.m. and 11:00 a.m. without waste, that include allowing water to run down the street, parking lot, or adjacent property. Alternate on-site reclaimed sources may be approved through variance from the SAWS Conservation department on a case by case basis. D. If one hundred (100) percent use of treated wastewater (recycled water), reuse water, reclaimed water, gray water, condensate, or cooling tower blow down will be used during additional days allowed in subsections 34-323(1)—(3) signs identifying this property as using recycled or reclaimed water source must be posted on site at a location where the general public can view it.
I	Athletic Fields	A. An athletic field shall either irrigate according to a basic plan or an advanced plan. Plans shall be on file and approved by SAWS in advance of use. The advanced plan showing precipitation rates and run times along with a conservation plan shall be submitted and approved by SAWS for the purpose of establishing acceptable irrigation run times and days as approved by SAWS. A basic plan outlines which day of the week (Monday—Friday) which athletic field would be irrigated. B. All landscape out-of-play areas such as may be found around a club house or entryway shall follow general landscape irrigation restrictions (subsections 34-323(1)—(5)).

Table B—Stage II Restrictions

Stage	*Measures For*	*Scope of Restrictions*
II	In General	For Stage II, Stage I restrictions remain the same except as added to or replaced below.
II	Hotels, Motels, Bed and Breakfasts	Hotels, motels and B&B's must offer and clearly notify guests of a "no linen/towel change" program.
II	Swimming Pools, Hot Tubs	A. Draining permitted only onto pervious surface, or onto pool deck where the water is transmitted directly to a previous surface, only if: 1. Draining excess water from pool due to rain in order to lower water to maintenance level; 2. Repairing, maintaining or replacing pool component that has become hazardous; or 3. Repairing pool leak Refilling of public swimming pool permitted only if pool has been drained for the repairs, maintenance or replacement set out in items 2 or 3 above.
II	Landscape Irrigation for Existing Landscapes	Landscape watering using sprinkler or irrigation systems is permitted only on designated landscape watering days (subsection 34-323(1)). For Stage II the following times and associated irrigation methods apply: Irrigation with a soaker hose, hose-end sprinkler or in-ground irrigation system is allowed on the day specified in subsection (1) between the hours of 5:00 a.m. to 10:00 a.m. and 9:00 p.m. to midnight. Drip irrigation systems may run up to two days a week on Monday and Friday between the hours of 5:00 a.m. to 10:00 a.m. and 9:00 p.m. to midnight. Landscape irrigation with a handheld hose is allowed at any time on any day.
II	Landscape Irrigation for New Landscapes	A. Installation of new landscapes is permitted with a variance which shall only be granted if all applicable provisions including sections 34-273, 34-274.2 and section 34-275 are verified by SAWS, including zonal irrigation systems if a permanent irrigation system is installed, a minimum of four (4) inches of soil under turf, model home with xeriscape and xeriscape option offered by builder on file with SAWS Conservation department. B. Landscape watering may be permitted by variance to maintain adequate growth until established on newly installed landscapes for a period of time to be determined in keeping with seasonal and varying weather conditions. Property owners should submit electronically on-line at www.saws.org to the SAWS Conservation department their name, address where the new landscape is to be installed and the date of installation in order to receive a confirmation electronic email from SAWS. A copy of the confirmation must be posted at a place visible from the street at the property the variance was received at. Thereafter, landscape watering using sprinkler or irrigation systems for landscaping plants is permitted only on the day and times associated with the current stage in effect at the termination of the variance. C. The one hundred (100) percent use of gray water, treated wastewater or reuse water, condensate water, cooling tower blow down is a defense to prosecution and may be used to irrigate any day without waste. Alternate on-site reclaimed sources may be approved through variance from the SAWS Conservation department on a case by case basis. D. If one hundred (100) percent use of treated wastewater (recycled water), reuse water, reclaimed water, gray water, condensate, or cooling tower blow down will be used during additional days or hours allowed in subsections 34-323(1)—(7) signs identifying this property as using recycled or reclaimed water source must be posted on site at a location where the general public can view it.

Stage	*Measures For*	*Scope of Restrictions*
II	Golf Courses	Golf courses shall be required to submit a water conservation plan and shall have on file with SAWS the annual irrigation evaluation as described in section 34-273.3 and shall be defined as "conforming" or "non-conforming" and shall reduce water usage under the following terms: A. All landscape out-of-play areas such as may be found around a club house or entryway shall follow general landscape irrigation restrictions (subsections 34-323(1)—(3)). B. All in-play areas may be irrigated with a sprinkler or irrigation system between the hours of 5:00 a.m. to 10:00 a.m. and 9:00 p.m. to midnight. C. Conforming golf courses shall implement a twenty (20) percent reduction in the replacement of daily evapotranspiration rate ("ET rate") or daily soil-holding capacity, achieved by use of an existing and properly operating CCIS (as defined) capable of achieving such water conservation goals. D. A non-conforming golf course shall not use more than one and six-tenths (1.6) times the base usage. If not separately metered an irrigation audit showing precipitation rates and run times along with a conservation plan shall be submitted and approved by SAWS for the purpose of establishing acceptable irrigation run times and days as approved by SAWS. E. The one hundred (100) percent use of treated wastewater (recycled water), reuse water, reclaimed water, gray water, condensate, or cooling tower blow down is a defense to prosecution and may be used to irrigate any day between the hours of 7:00 p.m. and 11:00 a.m. and without waste. Alternate on-site reclaimed sources may be approved through variance from the SAWS Conservation department on a case by case basis. F. If one hundred (100) percent use of treated wastewater (recycled water), reuse water, reclaimed water, gray water, condensate, or cooling tower blow down will be used during additional days allowed in subsections 34-323(1)—(4) signs identifying this property as using recycled or reclaimed water source must be posted on site at a location where the general public can view it.

Table C—Stage III Restrictions

Stage	*Measures For*	*Scope of Restrictions*
III	In General	For Stage III, Stages I, II restrictions remain the same except as added to or replaced below.
III	Hotels, Motels, Bed and Breakfasts	Hotels, motels, B&B's must limit linen/towel changes to once every three (3) nights or for the entire stay, whichever is shorter, except for health and safety.
III	Vehicle and Equipment Washing	During Stage III any vehicle wash facility that is not certified as a SAWS certified vehicle wash facility will not be able to operate. Upon receiving certification vehicle wash facilities may resume operating hours.
III	Landscape Irrigation for Existing Landscapes	Landscape watering using sprinkler or irrigation systems is permitted only on designated landscape watering days (subsection 34-323(1)). For Stage III, the same rules as in Stage II apply. Irrigation with a soaker hose, hose-end sprinkler or in-ground irrigation system is allowed on the day specified in subsection (1) between the hours of 5:00 a.m. to 10:00 a.m. and 9:00 p.m. to midnight. Drip irrigation systems may run up to two days a week on Monday and Friday between the hours of 5:00 a.m. to 10:00 a.m. and 9:00 p.m. to midnight. Landscape irrigation with a handheld hose is allowed at any time on any day. In addition, a drought surcharge is assessed on all water accounts of SAWS, in accordance with section 34-128 of the San Antonio City Code. Landscape irrigation with a handheld hose is allowed at any time on any day.
III	Landscape Irrigation for New Landscapes	A. Installation of new landscapes is permitted only if less than fifty (50) percent of the available landscape area is planted with turf, all applicable provisions of sections 34-273, 34-274.2 and section 34-275, including proper horticultural practices such as the use of mulch and zonal irrigation systems if a permanent irrigation system is installed and a minimum of four (4) inches of soil under turf after installation of sod. B. A user may file with SAWS a request to install more than fifty (50) percent turf. The request must include: (1) a statement or plan describing the landscaping plan; and (2) a statement indicating how the landscaping plan will achieve the goals of this chapter. Upon the approval of the alternate landscaping plan as set forth herein, the user may be granted a variance.

Stage	*Measures For*	*Scope of Restrictions*
III	Water Features	1) Water features that are required to have a basic variance and outdoor water feature conservation plan approved by SAWS Conservation must reduce their hours of operation to a maximum of four (4) hours a day in Stage III. 2) Outdoor water features that would like to be considered for expanded operated hours from four (4) hours in a 24-hour period to eight (8) hours of operation in a 24-hour period during Stage III may apply for an advanced variance to the SAWS Conservation department prior to implementation of the extended hours.
III	Golf Courses	A. A conforming golf courses shall implement a thirty (30) percent reduction (or twenty (20) percent reduction, if the conforming golf course is an ISP participant) in replacement of daily ET rate or soils daily water holding capacity, achieved by use of an existing and properly operating CCIS (as defined) capable of achieving such water conservation goals. B. A non-conforming golf course shall not use more than one and one-fourth (1.4) times the base usage. If not separately metered an irrigation audit showing precipitation rates and run times along with a conservation plan shall be submitted and approved by SAWS for the purpose of establishing acceptable irrigation run times and days as approved by SAWS.
III	Commercial Surcharge	A surcharge is assessed on all irrigation accounts and assumed irrigation (section 34-124) of the San Antonio Water System as described in section 34-128. Surcharge is to remain in effect for a minimum of one complete billing month. The surcharge shall remain in effect if Stage IV is still in effect at the beginning of the next billing month.
III	Residential Surcharge	A surcharge is assessed on all water accounts of the San Antonio Water System as described in section 34-128. Surcharge is to remain in effect for a minimum of one complete billing month. The surcharge shall remain in effect if Stage IV is still in effect at the beginning of the next billing month.

Table D—Stage IV Restriction

Stage	*Measures For*	*Scope of Restrictions*
IV	In General	For Stage IV, the most restrictive requirements of either Stage I, II or III restrictions remain the same except as added to or replaced below.
IV	Landscape Irrigation for Existing Landscapes	Landscape watering using sprinkler or irrigation systems is permitted only on designated landscape watering days (subsection 34-323(1)). For Stage IV, the following times and associated irrigation methods apply: Irrigation with a soaker hose, hose-end sprinkler or in-ground irrigation system is allowed on the day specified in subsection (1) every other week beginning on the second Monday after Stage IV has been declared, between the hours of 5:00 a.m. to 10:00 a.m. and 9:00 p.m. to midnight. Drip irrigation systems may run once per week on Friday between the hours of 5:00 a.m. to 10:00 a.m. and 9:00 p.m. to midnight. Landscape irrigation with a handheld hose is allowed at any time on any day. In addition, a drought surcharge is assessed on all water accounts of SAWS, in accordance with section 34-128. Additional restrictions on water use may be established by the President/CEO in consultation with the City Manager.
IV	Commercial Surcharge	A surcharge is assessed on all irrigation accounts and assumed irrigation (section 34-124) of the San Antonio Water System as described in section 34-128. Surcharge is to remain in effect for a minimum of one complete billing month. The surcharge shall remain in effect if Stage IV is still in effect at the beginning of the next billing month.
IV	Residential Surcharge	A surcharge is assessed on all water accounts of the San Antonio Water System as described in section 34-128. Surcharge is to remain in effect for a minimum of one complete billing month. The surcharge shall remain in effect if Stage IV is still in effect at the beginning of the next billing month.
IV	Additional Restrictions	Additional restrictions including but not limited to a ban on lawn watering with irrigation systems or hose end sprinklers may be established at the discretion of the president/CEO in consultation with the city manager.

(Ord. No. 2014-05-29-0376, § 3(Exh. B), 5-29-14; Ord. No. 2024-06-20-0480, § 1(Exh. A), 6-20-24)

Sec. 34-333. Severability.

If, for any reason, any section, sentence, clause or part of this division is held legally invalid, such judgment shall not prejudice, affect, impair or invalidate the remaining sections of this division, but shall be confined to the specific section, sentence, clause, or part of this division held legally invalid.

(Ord. No. 2014-05-29-0376, § 3(Exh. B), 5-29-14)

Sec. 34-334. This division to prevail if conflict.

In the event any section of this division conflicts in effect or application with any other section of a City Code or ordinance, the section(s) of this division shall prevail.
(Ord. No. 2014-05-29-0376, § 3(Exh. B), 5-29-14)

Secs. 34-335—34-350. Reserved.

DIVISION 5. RESERVED

Secs. 34-351—34-425. Reserved.

ARTICLE V. SEWAGE TRANSPORTATION, TREATMENT AND DISPOSAL

DIVISION 1. GENERALLY

Secs. 34-426—34-440. Reserved.

DIVISION 2. TOILETS, SEPTIC TANKS, PRIVIES*

Sec. 34-441. Definitions.

The following definitions shall apply in the interpretation and the enforcement of this division:

Baffle shall mean any wall or separation that prevents the fluid from the influent channel of the septic tank from flowing directly through to the effluent channel. This may be accomplished by use of a wall, a weir or a sanitary tee.

Septic tank system shall mean a system for the treatment of sewage or water-borne wastes from a dwelling or business establishment. The septic tank system shall consist of a watertight drain line from the house to a watertight septic tank, a distribution box and an absorption field consisting of trench, gravel and disposal line.
(Code 1950, § 58-6; Ord. No. 21416, § 1, 6-23-55; Code 1959, § 18-65; Ord. No. 80574, § 11, 8-4-94)

*__Note—__See the editor's note to Art. III, Div. 3 of this chapter.

Sec. 34-442. Enforcement.

It shall be the duty of the director of public health to enforce the provisions of this division, and, in the performance of this duty, he or his duly authorized agent is hereby authorized to enter, at any reasonable hour, any premises as may be necessary in the enforcement of this division.
(Code 1950, 58-1; Code 1959, § 18-66; Ord. No. 80574, § 11, 8-4-94)

Sec. 34-443. Mandatory disposal facilities.

It shall be unlawful to permit, maintain or use any ground, lot, yard, residence, place of business or other place or building within the city where persons reside, congregate or are employed which is not provided with means for the disposal of human excreta, either by a flush toilet connected with a sewerage system approved by the state department of health, a septic tank conforming to the requirements of this division or a privy which meets the requirements of construction and maintenance provided in this division.
(Code 1950, § 58-2; Code 1959, § 18-67; Ord. No. 80574, § 11, 8-4-94)

Sec. 34-444. Connection to sanitary sewer.

Every residence, place of business or other building or place where persons reside, congregate or are employed, which abuts a street in which there is a public sanitary sewer or which is within two hundred (200) feet of a public sanitary sewer, shall be connected to the sewer by the owner or agent of the premises in the most direct manner possible and with a separate connection for each home, building or place. Each connection and each fixture emptying through the connection shall be installed in the manner prescribed by Chapter 24.
(Code 1950, §§ 17-1, 58-3; Code 1959, § 18-68; Ord. No. 80574, § 11, 8-4-94)

Sec. 34-445. Alternate facilities where sewer connection not required.

Every residence, place of business or other building or place where persons reside, congregate or are employed and which does not abut a street in which there is a public sanitary sewer or

which is not within two hundred (200) feet of a public sanitary sewer shall be provided with a private water flush toilet, or a privy, to be built or rebuilt, constructed and maintained in such a manner as to meet the requirements of construction and maintenance set out in this division.
(Code 1950, § 58-4; Code 1959, § 18-69; Ord. No. 80574, § 11, 8-4-94)

Sec. 34-446. Abatement of nonconforming facilities.

Any privy or private sewer existing or being maintained which does not conform to the requirements of this division shall be declared a nuisance, dangerous, and a menace to the public health, and the city shall have the power to abate any such nuisance in accordance with law.
(Code 1950, § 58-5; Code 1959, § 18-70; Ord. No. 80574, § 11, 8-4-94)

Sec. 34-447. Maintenance and repair of sewer laterals—Generally.

(a) The improper maintenance and repair of sewer laterals is found to constitute a public health hazard.

(b) It shall be the responsibility of the owners of real property located within the city limits of San Antonio and within the extraterritorial jurisdiction of San Antonio to own, operate, and maintain that portion of the sewer lateral located on such real property from the structure(s) which such sewer lateral(s) services to the commencement of the public street or public alley right-of-way which is contiguous to the real property.

(c) It shall be the responsibility of the city acting by and through the city water system ("system"), within those portions of the city limits of San Antonio and its extraterritorial jurisdiction receiving retail sewer service from the system, to own, operate, and maintain that portion of a sewer lateral located in a public street or public alley right-of-way.

(1) System maintenance of a sewer lateral located in a public street or public alley right-of-way will constitute a dedication and acceptance of such sewer lateral for ownership by the system.

(2) Diagrams depicting the location of sewer laterals for ownership, maintenance, and operation purposes are set out in exhibit(s) A and B which are attached hereto and incorporated herein (on file in the office of the city clerk).

(3) The standard right-of-way widths for public streets set out in section 34-4113 of this Code, as amended, shall be applicable to this section. Public right-of-ways widths for alleys set out in subsection 35-4122(i) of this Code, as amended, shall be applicable to this section.

(Code 1959, § 18-68.1; Ord. No. 54344, 9-24-81; Ord. No. 80574, § 11, 8-4-94; Ord. No. 89695, § 1, 4-29-99)

Sec. 34-448. Same—Notice to abate; applicability.

(a) This section is applicable when a health hazard is caused by the lack of maintenance and/or repair of that portion of the sewer lateral which is the responsibility of the owner of real property as set out in subsection 34-447(b) above.

(b) Whenever the director of the city metropolitan health district, building inspections director, or a respective authorized agent thereof receives information of the existence of a faulty sewer lateral or sewer pipe located within a structure on said real property a sanitary inspector, sanitarian, or plumbing inspector shall serve the owner or his agent with a written notice to abate the condition causing the health hazard within three (3) days.
(Code 1959, § 18-68.2; Ord. No. 54344, 9-24-81; Ord. No. 80574, § 11, 8-4-94; Ord. No. 89695, § 1, 4-29-99)

Sec. 34-449. Same—Failure of owner to repair; penalty.

(a) It shall be unlawful for the owner of real property located within the corporate limits of the city to knowingly fail (1) to repair or replace a faulty sewer pipe or connection located within a structure on said real property, or (2) to repair or replace that portion of a sewer lateral which is the responsibility of the owner as defined in subsection 34-447(b) herein.

(b) Any person, firm, corporation or agent or employee thereof who violates any of the provisions of this division shall be fined an amount not less than one hundred dollars ($100.00) and not more than one thousand dollars ($1,000.00) provided, however, in the event a defendant has once previously been convicted under this division, the defendant shall be fined an amount no less than two hundred dollars ($200.00) and shall be fined no less than three hundred dollars ($300.00) for a third conviction and for each conviction thereafter. Each day a violation is permitted to exist shall constitute a separate offense.

(c) Nothing in this section shall limit the remedies available to the city in seeking to enforce the provisions of this division nor effect the city's authority to initiate other legal or equitable actions to abate any nuisance as herein defined.
(Code 1959, § 18-68.3; Ord. No. 54344, 9-24-81; Ord. No. 64489, § 6, 2-5-87; Ord. No. 80574, § 11, 8-4-94; Ord. No. 89695, § 1, 4-29-99)

Sec. 34-450. Same—Hearing for termination of water service.

(a) *Applicability.* This section is applicable in those instances when (i) the owner fails to repair sewer pipe located within a structure located on the real property, or (ii) the owner fails to repair that portion of the sewer lateral set out in subsection 34-447(b) for which the owner is responsible, (the premises).

(b) *Requested to obtain order.* Where the danger to public health created by a faulty sewer pipe is deemed significant by a sanitary inspector or sanitarian, that person may request a hearing before the director of the city metropolitan health district for the purpose of obtaining an order to terminate water service to the premises.

(c) *Setting date, time; notice to owner or agent.* Upon receipt of such request, the director of the city metropolitan health district shall immediately set a date and time for a hearing. Notice of the hearing shall be given in writing to the owner and occupant of the affected premises, served either by personal service or by United States certified mail, return receipt requested, at least seven (7) days before the scheduled hearing date. In the case of a business entity, such notice shall be given to the registered agent for service as reflected in the records of the secretary of state.

(d) *Complaint response.* At the hearing provided for in this section, the complaining sanitary inspector or sanitarian shall set forth the danger created to the public health by the faulty sewer pipe. The owner or occupant, if either appears, or his legal representative shall be granted an opportunity to respond and cross-examine the complainant or his witnesses, and to present witnesses. Testimony shall, upon request, be given under oath.

(e) *Determination; issuance of order notice of termination; reinstatement.* Thereafter, the director of the city metropolitan health district shall determine if a clear and present danger to the public health has been shown, and if he so finds, he shall issue an order to the city water system ("system") stating his finding and directing the termination of water service to the offending premises; the general manager of the chief executive officer (CEO) shall, upon receipt of the order, give the occupant of the premises written notice of the intention to terminate water service twenty-four (24) hours prior to the termination thereof. Upon the expiration of the twenty-four-hour notice period the chief executive officer (CEO) of the city water system ("system") shall cause water service to the premises to be terminated. Upon written notice from the director of the city metropolitan health district that the sewer pipe has been repaired, the chief executive officer (CEO) shall reinstate water service to the premises.
(Code 1959, § 18-68.4; Ord. No. 54344, 9-24-81; Ord. No. 80574, § 11, 8-4-94; Ord. No. 89695, § 1, 4-29-99)

Sec. 34-451. Septic tanks—Permit required; percolation tests.

It shall hereafter be unlawful for any person to construct a septic tank system without first obtaining a written permit from the director of public health. Such permit shall be displayed at the site of construction until approval is obtained from the director of public health. Prior to

issuance of such a permit, percolation tests shall be conducted at the site of the proposed installation. These percolation tests shall be conducted by the director of public health or a registered professional engineer and shall serve as a basis for determining the minimum length of disposal line as outlined in section 34-208. All percolation tests shall be conducted in accordance with procedure as outlined by the director of public health. The fee for conducting the percolation tests by the director of public health shall be ten dollars ($10.00), payable in advance. Results of percolation tests must be submitted at the time of application for permit.
(Code 1950, § 58-6; Ord. No. 21416, § 2, 6-23-55; Code 1959, § 18-71; Ord. No. 80574, § 11, 8-4-94)

Sec. 34-452. Same—Permit fee.

The fee for a permit to construct a septic tank system shall be five dollars ($5.00), payable at the time of issuance of such permit.
(Code 1950, § 58-6; Ord. No. 21416, § 3, 6-23-55; Code 1959, § 18-72; Ord. No. 80574, § 11, 8-4-94)

Sec. 34-453. Same—Requirements for systems.

It shall hereafter be unlawful for any person to construct a septic tank system that does not conform to the following minimum requirements:

(1) *Septic tank.*

a. *Location.* The tank shall be located not less than ten (10) feet from any property line, not less than five (5) feet from the foundation of any structure and not less than fifty (50) feet from any water well.

b. *Liquid capacity.* The minimum liquid capacity for single-family dwellings shall be based on the number of bedrooms in the dwelling as follows:

2 bedrooms or less . . . . .500 gallons

3 bedrooms . . . . . .600 gallons

4 bedrooms . . . . . .750 gallons

For capacities other than single-family residences, the director of public health will determine the minimum capacity of the septic tank. The liquid depth of any tank or compartment thereof shall not be less than two and one-half (2½) feet nor more than six and one-half (6½) feet. When multicompartment tanks are used the inlet compartment shall have a liquid capacity of not less than two hundred and fifty (250) gallons. The liquid capacity shall be in-

[This page intentionally left blank.]

creased by fifty (50) percent when household garbage grinders discharge into the system.

c. *Scum storage.* Scum storage volume (space between the liquid surface and the top of the tank) shall be not less than twelve (12) inches.

d. *Inlet baffle.* The inlet baffle shall extend not less than six (6) inches below the liquid surface and not less than four (4) inches above the liquid surface.

e. *Outlet baffle.* The outlet baffle shall extend not less than twelve (12) inches below the liquid surface and not less than six (6) inches above the liquid surface. The outlet shall not extend above the level of the inlet nor more than three (3) inches below the level of the inlet.

f. *Multicompartment tanks.* When multicompartment tanks are used, a connection between compartments with a minimum diameter of four (4) inches shall be provided, and the inlet and outlet baffle submergency shall conform to the specifications for a single-compartment tank.

g. *Passage of waste.* All kitchen waste, laundry waste and sewage shall pass through the septic tank before being discharged into the absorption field.

h. *Construction.* The tank shall be constructed of reinforced concrete or metal such as to ensure watertightness and prevent the entrance of rainwater, surface drainage or groundwater Metal tanks shall comply with commercial standard 177-51 of the United States Department of Commerce.

i. *Manholes.* All septic tanks shall be provided with manholes, removable lids or removable top sections. If a manhole is used, it shall be placed over the inlet and an inspection hole shall be placed over the outlet.

(2) *Distribution box.* A distribution box of sufficient size to accommodate the necessary disposal lines shall be constructed at the head of each disposal field.

a. Each disposal line shall be connected separately to the distribution box and shall not be subdivided.

b. The invert of all outlets shall be level and the inlet invert shall be at least one (1) inch above the outlets.

c. The outlet inverts shall be from four (4) to six (6) inches above the floor in lieu of a baffle for the purpose of securing equal distribution.

d. Metal distribution boxes shall comply with commercial standard 177-51 of the United States Department of Commerce.

(3) *Location of absorption field.* The absorption field shall be not less than one hundred and fifty (150) feet from any water well and not less than ten (10) feet from any dwelling or property line.

(4) *Minimum length of disposal line.* All septic tank systems shall be provided with a minimum of disposal line based on the results of the percolation tests as follows. (A minimum of one hundred (100) linear feet of four-inch drainpipe shall be provided per installation.):

Percolation rate time required for water to fall one inch in minutes	*Linear feet of four-inch drainpipe per bedroom, without garbage grinder or automatic washer*
2 or less	34
3	40
4	47
5	50
10	67
15	77
30	100
45	120
60	134

When automatic washers discharge into the system, the minimum length of absorption field shall be increased by thirty-six (36) percent, and when garbage grinders discharge into the system the minimum length

of absorption field shall be increased by twenty (20) percent. When both automatic washers and garbage grinders discharge into the system, the minimum length of absorption field shall be increased by sixty-six (66) percent.

(5) *Construction of disposal line trenches.* All disposal line trenches shall have a minimum bottom width of eighteen (18) inches. The minimum distance of disposal line trenches center to center shall be six (6) feet. The grade of the disposal line trenches shall not exceed four (4) inches per one hundred (100) feet. The disposal field tile shall be laid one-fourth-inch open joints on a grade not to exceed four (4) inches per one hundred (100) feet. All open joints shall be protected on top by asphalt-treated building paper. There shall be a minimum of six (6) inches of gravel underneath disposal tile and two (2) inches over the tile, covering the entire width of the trench. The gravel shall be clean-washed, varying in size from one-half (½) to two and one-half (2½) inches. A layer of straw or absorbent paper shall be placed over the top of the gravel before the backfill is added. A minimum of twelve (12) inches of backfill shall be placed over the straw or absorbent paper. The maximum length of any disposal line shall not exceed one hundred (100) feet.

(Code 1950, § 58-6; Ord. No. 21416, § 4, 6-23-55; Code 1959, § 18-73; Ord. No. 80574, § 11, 8-4-94)

Sec. 34-454. Same—Inspection by health officer.

It shall hereafter be unlawful for any person to cover or use any portion of the septic tank system until the director of public health has inspected the septic tank system and given notice of approval stating that the construction conforms to the provisions of sections 34-451 through 34-453. If the construction of the system does not comply with the provisions of sections 34-451 through 34-453 the director of public health shall issue written notice to the holder of the permit specifying corrections that must be made so that the system will comply with such provisions. After such corrections have been completed, the permit holder shall call for another inspection.

(Code 1950, § 58-6; Ord. No. 21416, § 5, 6-23-55; Code 1959, § 18-74; Ord. No. 80574, § 11, 8-4-94)

Sec. 34-455. Privies—Construction requirements.

(a) *Minimum standards.* Where at any time there shall be established or installed a pit privy, it shall be so constructed, built or rebuilt that:

(1) The excreta deposited therein shall not fall upon the surface of the ground, but shall enter into a vault or pit in the ground.

(2) The contents of such vault shall be at all times inaccessible to flies, mosquitoes, fowl or small animals.

(3) The pit, vault or compartment, together with the floor, riser, seat and other portions of the building shall, as a unit, prevent the entrance of either rain or surface water into the pit below.

(b) *Construction.* There shall be deemed to be compliance with the requirements of the preceding subsection when the following conditions exist:

(1) *Minimum pit dimensions.*

a. Length and breadth: three (3) feet six (6) inches;

b. Depth, from original ground surface, five (5) feet;

c. A box cribbing shall extend from the bottom of the pit to a distance of two (2) inches above the original ground surface.

(2) *Collar or sill.* Around the pit, and clearing the cribbing by a distance of one (1) inch, shall be placed a reinforced concrete collar or sill not less than four (4) inches thick and five (5) inches wide, such sill to be cast monolithic, or in one (1) piece.

(3) *Floor and riser.* Upon the sill or collar shall be placed the floor and riser, which shall be a substantial reinforced concrete slab four

(4) feet by four (4) feet, with bolts set in the concrete for bolting the house and the seat to such slab.

(4) *Mound.* From the top edge of the slab, a well-tamped mound shall be constructed tapering from the edge of the slab to the original ground surface at a distance not less than eighteen (18) inches from the slab.

(5) *Seat and lid.* The seat shall be constructed of a good grade of wood, two (2) inches thick. There shall be an opening at the back of the seat for a four-inch galvanized iron vent pipe, which shall be screened at both ends with sixteen-mesh copper wire screen. The vent pipe shall extend to a height of not less than eight (8) inches above the roof, and shall be provided with a metal cap to prevent the entrance of rain or the light of day. The seat shall be grouted to the riser so that no cracks exist which will permit the entrance or exit of flies or mosquitoes. The seat shall be provided with a self-closing lid. A device shall be used which will maintain the lid in an open position when the toilet is being used, but which will automatically close the lid when the door is opened for exit from the toilet.

(6) *House.* The house shall be four (4) feet square, five (5) feet five (5) inches high in the back, and six (6) feet six (6) inches high in front, and shall be provided with a shed roof. The building shall be ventilated on each side just under the roof. The roof shall extend five (5) inches in front and fifteen (15) inches behind and nine (9) inches on each side.

(Code 1950, § 58-7; Code 1959, § 18-75; Ord. No. 80574, § 11, 8-4-94)

Sec. 34-456. Same—Maintenance; repair.

(a) All privy buildings shall be kept in a clean condition at all times.

(b) Should any defect occur in a privy which would cause it in any way to fail to meet the requirements provided in sections 34-455 and subsection (a) of this section, the defect shall be immediately corrected by the owner or agent of the premises on which the defect has occurred, unless the defect shall be caused by neglect, destructiveness or carelessness on the part of the occupant of the premises on which the defect has occurred, or through his agent, in which case the defect shall be immediately repaired or corrected by the occupant or the agent of the occupant of the premises on which the defect has occurred.

(Code 1950, §§ 58-8, 58-9; Code 1959, § 18-77; Ord. No. 80574, § 11, 8-4-94)

Secs. 34-457—34-470. Reserved.

DIVISION 3. INDUSTRIAL WASTE*

Sec. 34-471. General provisions.

(1) *Purpose.* This division sets forth uniform requirements to be met by all industrial waste dischargers utilizing the San Antonio Regional Wastewater Transportation and Treatment System (hereinafter termed "regional system"). This division is written to enable the regional system to comply with and enforce all applicable local, state, and federal laws pertaining to water quality control, including the Clean Water Act (33 U.S.C. 1251 et. seq.), and the general pretreatment regulations (40 CFR 403). Any word, phrase, clause, paragraph, section, part or provision of this division which, upon the promulgation of more stringent local, state or federal law or duly implemented regulatory requirement, is in conflict with or less stringent than such local, state and federal law or regulation promulgated after enactment of this division, shall be invalidated and repealed to the extent of such conflict or super cession upon the effective date of such local, state and federal law or regulation, and the language and provisions of such local, state and federal law or regulation shall be incorporated herein by reference and shall become a part of

*__Editor's note—__Ord. No. 81771, § 1, adopted March 2, 1995, repealed former Div. 3, §§ 34-471—34-481, relative to industrial waste, and § 2 of said ordinance enacted a new Div. 3 to read as herein set out in §§ 34-471—34-485. The provisions of former Div. 3 derived from Ord. No. 77784, adopted April 15, 1993; Ord. No. 78153, adopted June 17, 1993; Ord. No. 80574, adopted Aug. 4, 1994.

those sections, parts, paragraphs, clauses, or phrases affected to the extent that the existing division language is invalidated and repealed.

(2) *Administration.*

(a) Pursuant to the grant of authority to the San Antonio Water System in City Ordinance No. 75686, dated April 30, 1992 and in the Ordinance No. 80574 dated August 4, 1994, the SAWS board of trustees shall have full responsibility for the administration and implementation of the pretreatment program established by this division.

(b) Except as otherwise provided herein, the director shall administer, implement and enforce the provisions of this division. The pretreatment program shall be modified as needed to meet local, state and federal requirements. Any powers granted to or duties imposed upon the director may be delegated by the director to other SAWS personnel.

(3) *Objectives.* The objectives of this division are:

(a) To prevent the introduction of pollutants into the regional system in such quantities or qualities that would interfere with the operation of the regional system;

(b) To prevent the introduction of pollutants or substances into the regional system that may typically pass through either unaffected by the treatment process or may be inadequately compatible with such treatment, that could result in potential violations of POTW effluent standards, air quality standards, NPDES permit conditions, sludge use and disposal requirements and any other federal or state laws, or otherwise considered incompatible with the POTW;

(c) To preserve and improve the opportunity for reusing, reclaiming and recycling wastewater and sludge generated by the regional system, and to ensure quality of sludge to allow its use and disposal in compliance with statutes and regulations;

(d) To ensure that there is an equitable distribution of the operation, maintenance and capital-related costs of the regional system across user classes;

(e) To create a permit system to regulate industrial users of the regional system;

(f) To enforce the provisions of this division by requiring self-monitoring and self-reporting from industrial users to supplement periodic investigations made by regional system inspection personnel;

(g) To provide penalties for violations of the regulations established herein;

(h) To protect the health and welfare of the public and of employees who maintain and operate the regional system;

(i) To establish a regulatory environment that encourages identification and utilization of pretreatment opportunities to reduce or eliminate the volume and toxicity of any industrial waste discharged to the regional system, in fulfillment of the intent of objectives (a), (b), (c), and (h) above.

(4) *Service area.* This division shall be given full force and effect inside the corporate limits of San Antonio and within those unincorporated areas located outside the corporate limits of San Antonio, but within the regional system's sewer service area. Additionally, this division shall apply to those entities (as defined hereinafter) served by the regional system that have entered into sewer service contracts with the city or the San Antonio Water System. By operation of law, permit conditions, contract, or intermunicipal agreement, industrial users within the sewer service area are obligated to abide by the provisions of this division and/or similarly stringent regulations adopted by an entity other than SAWS, which govern the discharge of industrial wastewater into any sewage collection system which ultimately connects to the regional system. Industrial users within the sewer service area are obligated to financially support the regional system by paying all applicable sewer user charges and fees to the appropriate collection agent for costs associated with the transportation, treat-

ment, operation, maintenance, monitoring, administration, and enforcement services provided to the user of the regional system.

(5) *Abbreviations.* The following abbreviations shall have the designated meanings:

BOD — Biochemical Oxygen Demand (five day).

BMP — Best Management Practices.

C — Centigrade.

CERCLA — Comprehensive Environmental Response, Compensation, and Liability Act.

CIU — Categorical Industrial User.

CFR — Code of Federal Regulations.

CAA — Clean Air Act.

CWA — Clean Water Act, 33 U.S.C. 1251 et seq.

COD — Chemical Oxygen Demand.

DIU — Dental Industrial User.

EPA — Environmental Protection Agency.

F — Fahrenheit.

FOG — Fats, Oils and Grease.

GPD — Gallons per day.

IU — Industrial User.

L — Liter.

LEL — Lower Explosive Limit.

mg — Milligrams.

MGD — Million gallons per day.

mg/L — Milligrams per Liter (weight to volume).

NPDES — National Pollutant Discharge Elimination System.

POTW — Publicly Owned Treatment Works.

RCRA — Resource Conservation and Recovery Act.

PL — Public Law.

SARA — Superfund Amendments and Reauthorization Act.

SAWS — San Antonio Water System.

SDWA — Safe Drinking Water Act.

SIC — Standard Industrial Classification.

SNC — Significantly Non-Compliance.

SWDA — Solid Waste Disposal Act, 42 U.S.C. 6901, et seq.

TBLL — Technically Based Local Limits.

TCEQ — Texas Commission on Environmental Quality

TOMP — Toxic Organic Management Plan.

TPDES — Texas Pollutant Discharge Elimination System.

TSCA — Toxic Substances Control Act.

TSS — Total Suspended Solids.

TTO — Total Toxic Organics.

USC — United States Code.

(6) *Definitions.* Unless a provision explicitly states otherwise, the following terms and phrases, as used in this division, shall have the meanings hereinafter designated.

Act or *the Act:* The Federal Water Pollution Control Act, also known as the Clean Water Act, as amended, 33 U.S.C. 1251, et seq.

Administrator: The Administrator of the U.S. Environmental Protection Agency.

Amalgam process wastewater: Wastewater discharged from a DIU containing dental amalgam.

Amalgam Separator: A collection device designed to capture and remove dental amalgam from the amalgam process wastewater of a dental facility with a removal efficiency of at least 95 percent and meeting the ANSI/ADA criteria as outlined in 40 CFR § 441.

Approval authority: The administrator of the EPA or the director in a National Pollutant Discharge Elimination System (NPDES) delegated state with an approved state pretreatment program or his designated representative.

Authorized representative of industrial user: An authorized representative of an industrial user may be:

(1) An executive officer of at least the level of vice president of the corporation in charge of a principal business function, or any other person who performs similar policy or decision-making functions for the corporation;

(2) The manager of one (1) or more manufacturing, production, or operating facilities, provided, the manager is authorized to make management decisions which govern the operation of the regulated facility including having the explicit or implicit duty of making major capital investment recommendations, and initiate and direct other comprehensive measures to assure long-term environmental compliance with environmental laws and regulations; can ensure that the necessary systems are established or actions taken to gather complete and accurate information for control mechanism requirements; and where authority to sign documents has been assigned or delegated to the manager in accordance with corporate procedures;

(3) A general partner or proprietor if the industrial user is a partnership or proprietorship, respectively;

(4) A duly authorized representative of a user that is a political subdivision or other entity as defined at section 34-471(6) of this division;

(5) The individuals described in paragraphs (1) through (3) above, may designate an alternate authorized representative if the authorization is in writing, the authorization specifies the individual or position responsible for the overall operation of the facility from which the discharge originates or having overall responsibility for environmental matters for the company, and the written authorization is submitted to the control authority.

(6) If an authorization under subsection (5) of this section is no longer accurate because a different individual or position has responsibility for the overall operation of the facility, or overall responsibility for environmental matters for the company, a new authorization satisfying the requirements of this section must be submitted to the control authority prior to or together with any reports to be signed by an authorized representative.

Best management practices (BMPs): A schedule of activities, prohibitions of practices, maintenance procedures, and other management practices to implement the requirements listed in subsections 34-472(1) and (2). BMPs include treatment requirements, operating procedures, and practices to control plant site runoff, spillage, or leaks, sludge or waste disposal, or drainage from raw materials storage.

Biochemical oxygen demand (BOD): The quantity of oxygen utilized in five (5) days at twenty (20) degrees centigrade for biochemical oxidation of the organic matter present in wastewater, expressed in mg/l and measured by the method set forth in the most recent edition of Standard Methods for the Examination of Water and Wastewater, or such other method as approved by EPA and published in 40 CFR 136.

Categorical standards: National categorical pretreatment standards or pretreatment standards as set forth in any regulation containing pollutant discharge limits promulgated by the EPA in accordance with the Section 307 (b) and (c) of the Act (33 U.S.C. 1347) which applies to a specific category of industrial users, and which appear in 40 CFR Chapter I, Subchapter N, Parts 405-471. These IU are defined as CIU or categorical industrial users.

Chemical oxygen demand (COD): A measure of the oxygen required in mg/l for the oxidation of organic matter to CO^2 and water while under acidic conditions using a strong chemical oxidizing agent. See Standard Methods for the Examination of Water and Wastewater, current edition.

City: The City of San Antonio in Bexar County, Texas, being a home rule municipality duly

authorized and existing, pursuant to its charter, the Texas Constitution, and the laws of the State of Texas. Texas as represented by the official acts of the city council and council-designated representative public officials.

Compatible pollutant: A pollutant such as biochemical oxygen demand, total suspended solids, or any additional pollutants identified in the publicly-owned treatment works NPDES permit, where the POTW is designed to treat such pollutants to the degree required by the POTW's NPDES or state wastewater discharge permit.

Composite sample: A representative sample (flow or time proportional) resulting from the combination of individual wastewater samples taken at selected intervals based on an increment of either flow or time. Normally these samples are based on a twenty-four-hour period and should be representative of daily operations, as is further defined in Appendix E of 40 CFR 403.

Control authority: The term "control authority or CA" shall refer to SAWS or the POTW defined hereinafter, the resource compliance division, or the designated representative or agent, in accordance with the provisions of 40 CFR 403.12 insofar as the pretreatment program was originally approved and effective as of February 15, 1985.

Daily discharge: The wastewater discharge (including pollutants) from a facility during a normal twenty-four-hour period that represents the calendar day for the purpose of sampling the discharge to the sanitary sewer.

Daily maximum limit: The maximum allowable discharge limit of a pollutant during a calendar day. Where a daily maximum limit is expressed in units of mass, the daily discharge is the total mass discharged over the course of a day. Where a daily maximum limits is expressed in terms of a concentration, the daily discharge is the arithmetic average measurement of the pollutant concentration derived from all measurements taken that day.

Dental amalgam: An alloy of elemental mercury and other metal(s) that is used in the practice of dentistry.

Dental industrial user: A general dentistry practice or large dental facility described under the NAICS as 621210 that either uses or removes dental amalgam as part of the practice including but not limited to institutions, permanent or temporary offices, clinics, home offices, and facilities operated by federal, state or local governments that discharge wastewater to the control authority. This does not include mobile dental units, dental dischargers that do not place dental amalgam and do not remove amalgam except in limited emergency or unplanned, unanticipated circumstances and that certify as such to the control authority. Offices that exclusively practice one or more of the following specialties are also not included: oral pathology, oral and maxillofacial radiology, oral and maxillofacial surgery, orthodontics, periodontics, or prosthodontics.

Department: The San Antonio Water System Resource Protection and Compliance Department.

Direct discharge: The discharge of treated or untreated wastewater directly to the waters of the United States or the state.

Division: The San Antonio Water System Resource Compliance Division.

Entity: Shall refer to those cities, towns, political or commercial subdivisions, municipal utility districts, industrial districts, public utility districts, water improvement districts, military installations or state government facilities that establish, operate, and maintain a sanitary sewer collection system within their jurisdictional boundary and contract with the control authority to provide for the transportation and treatment of sewage generated by the entity.

Environmental Protection Agency, or *EPA:* The U.S. Environmental Protection Agency, or where appropriate the term may also be used as a designation for the administrator or other duly authorized official of said agency.

Existing source: Any source of discharge, the construction or operation of which commenced

prior to the publication by EPA of proposed categorical pretreatment standards, which will be applicable to such source if the standard is thereafter promulgated in accordance with Section 307 of the Act.

Explosion hazard meter: An explosion-proof electromechanical device designed to collect and analyze ambient air samples to determine the presence and measure the concentration of volatile, flammable, organic vapors capable of causing a fire or explosion in the presence of a source of ignition.

Flow-proportional composite sample: Shall mean the composite of two (2) or more discharge samples taken on a flow-proportional basis, to be representative of daily operations.

Fats, oils and grease (FOG): Shall mean any animal, vegetable or mineral fats, oils and/or greases, including but not limited to the following types: floatable grease of any origin; and free or emulsified grease of petroleum or mineral origin, or both, such as, cooling or quenching oil, lubricating oil, nonbiodegradable cutting oil and non-saponifiable oil.

Grab sample: A sample taken over a short period of time, not usually exceeding fifteen (15) minutes, and representative of a wastewater flow on a one-time basis. This sample is taken without regard to the flow volume or consideration of the time at which the sample is taken, as is further defined in Appendix E of 40 CFR 403.

Grease trap: Any structure or mechanical device intended to cause or facilitate the interception and separation of free and emulsified oils and grease from wastewater prior to its discharge to the regional system. All structure or devices installed for the purpose of pretreatment shall conform to the design requirements contained in the city plumbing code. Plans for such structures or devices shall be submitted to the control authority for review prior to construction or installation.

Grit trap: A receptacle utilized by commercial or industrial generators of liquid waste to intercept, collect and restrict the passage of petroleum-based oil and grease wastes and inorganic or other solids into both private and public sanitary sewers to which the receptacle is directly or indirectly connected.

Ground water: The supply of fresh water found beneath the earth's surface, usually in aquifers, which supply wells and springs.

Holding tank waste: Any wastes from holding tanks such as vessels, chemical toilets, campers, trailers, septic tanks, and vacuum pump tank trucks, or any other waste hold/hauling mechanisms.

Incompatible pollutant: All pollutants other than compatible pollutants as defined in section 34-471(6), such as, but not limited to, metals, volatile organics, and hazardous substances, etc.

Indirect discharge: The discharge or the introduction into the POTW of any pollutant from any non-domestic source, including but not limited to those sources regulated under Section 307 (b) and (c) or (d) of the Act (33 U.S.C. 1317) (including holding tank waste discharged into the regional system).

Industrial user or *user (IU):* Any user who contributes, causes, or allows an indirect discharge (as defined in subparagraph 34-471(6) of this section) of non-domestic pollutants or other wastewater which does not constitute a "direct discharge" to a receiving stream under regulations issued pursuant to Section 402, of the Act, (33 U.S.C. 1342).

Industrial wastewater: The liquid and waterborne pollutants resulting from processes or operations employed in business, commerce or industry as defined in the "Standard Industrial Classification Manual, 1987" office of management and budget of the federal government, as amended and supplemented from time to time, inclusive of the mixtures of any industrial wastewater pollutants with water or domestic sewage as distinct from normal domestic sewage.

Industrial wastewater advisory board: An advisory board consisting of eleven (11) members whose function is to provide information and recommendations to the control authority's board of trustees, president/CEO, and the director regarding Industrial Wastewater. The general

provisions of the Federal Register, Volume 44, No. 34, Friday, February 16, 1979, Sec. 25.7 "Advisory Groups," shall serve as a guideline for the activities and structure of the board.

Industrial wastewater discharge permit: A control mechanism providing for the regulation of discharge by certain users pursuant to 40 CFR 403.8 (f)(1)(iii), the Act, the control authority pretreatment program, and this division.

Inhibition: A discharge which has a negative impact upon the biological activity of the POTW either alone or in conjunction with other discharges.

Instantaneous maximum allowable discharge limit: The maximum concentration of a pollutant allowed to be discharged at any time, determined from the analysis of any discrete or composite sample collected, independent of the industrial flow rate and the duration of the sampling event.

Interference: A discharge which alone or in conjunction with a discharge from other sources tends to:

(1) Inhibit or disrupt the treatment processes, operations, sludge processes, sludge use or disposal of the POTW, and

(2) Therefore is a cause of violation of POTW's NPDES permit or of the prevention of sewage sludge use or disposal in compliance with any of the following statutory/regulatory provisions or permits issued hereunder (or any more stringent state or local regulations): Section 405 of the Clean Water Act; the Solid Waste Disposal Act (SWDA), including Title II commonly referred to as the Resource Conservation and Recovery Act (RCRA); any State regulations contained in any State sludge management plan prepared pursuant to Subtitle D of the SWDA; the Clean Air Act; the Toxic Substances Control Act; and Marine Protection, Research, and Sanctuaries Act.

Mobile dental unit: A specialized mobile self-contained van, trailer, or equipment used in providing dentistry services at multiple locations. The discharge from a mobile dental unit to the control authority must include provisions to remove dental amalgam prior to discharge to the collection system.

Monthly average limit: The highest allowable average of daily discharges over a calendar month, calculated as the sum of all daily discharges measured during a calendar month divided by the number of daily discharges measured during that month.

NAICS: North American Industrial Classification System, an industrial classification system that groups establishments into industries based on the similarity in the processes used to produce the principal goods or services and the economic activities in which they are primarily engaged.

Narrative standard: Narrative criteria are statements that describe the desired water quality goal that is used when pollutants cannot be precisely measured to express the limit on a parameter in a quantitative form. This criteria is used for pollutants for which numeric criteria are difficult to specify, such as those that offend the senses (e.g., color and odor) or for requirements as might be specified in a compliance agreement (e.g., employee training or visual postings).

National pollution discharge elimination system (NPDES) permit: A permit issued pursuant to Section 402 of the Act (33 U.S.C. 1342).

New source:

(1) Any building, structure, facility, or installation from which there is (or may be) a discharge of pollutants, the construction of which commenced after the publication of proposed pretreatment standards under Section 307(c) of the Act which will be applicable to such source if such standards are thereafter promulgated in accordance with that action, provided that:

(a) The building, structure, facility, or installation is constructed at a site at which no other source is located; or

(b) The building, structure, facility, or installation totally replaces the

process or product equipment that causes the discharge of pollutants at an existing source; or

(c) The production or wastewater generating processes of the building, structure, facility, or installation are substantially independent of existing sources at the same site. In determining whether these are substantially independent, factors such as the extent to which the new facility is integrated with the existing plant, and the extent to which the new facility is engaged in the same general type of activity as the existing source, should be considered.

(2) Construction on a site at which an existing source is located results in a modification rather than a new source if the construction does not create a new building, structure, facility, or installation meeting the criteria of section (1)(b) or (c) above but otherwise alters, replaces or adds to existing process or production equipment.

(3) Construction of a new source as defined under this paragraph has commenced if the owner or operator has:

(a) Begun, or caused to begin, as part of a continuous onsite construction program:

(i) Any placement, assembly, or installation of facilities or equipment; or

(ii) Significant site preparation work including clearing, excavation, or removal or existing buildings, structures, or facilities which is necessary for the placement, assembly, or installation of new source facilities or equipment; or

(b) Entered into a binding contractual obligation for the purchase of facilities or equipment which is intended to be used in its operation within a reasonable time. Options to purchase or contracts which can be terminated or modified without substantial loss, and contracts for feasibility, engineering, and design studies do not constitute a contractual obligation under this paragraph.

Noncontact cooling water: Water used for cooling which does not come into direct contact with any raw material, intermediate product, waste product, or finished product.

Non-significant categorical industrial user: An industrial user subject to categorical pretreatment standards under § 403.6 and 40 CFR chapter I, subchapter N user that never discharges more than one hundred (100) gallons per day (gpd) of total categorical wastewater (excluding sanitary, non-contact cooling and boiler blow down wastewater.

Normal domestic wastewater: The waterborne wastes normally discharged from the sanitary conveniences of dwellings (including apartment houses and hotels), office buildings, factories and institutions, free from storm water, ground water and industrial waste, with a BOD normally less than two hundred fifty (250) mg/L and total suspended solids normally less than two hundred fifty (250) mg/L.

Pass through: A discharge which exits the POTW into waters of the United States in quantities or concentrations which, alone or in conjunction with a discharge or discharges from other sources, is a cause of a violation of any requirement of the control authority's NPDES permit, including an increase in the magnitude or duration of a violation.

Person: Any individual, partnership, copartnership, firm, company, corporation, association, joint stock company, trust, estate, governmental entity, or any other legal entity, or their legal representatives, agents or assigns. The masculine gender shall include the feminine, the singular shall include the plural where indicated by the context.

pH: A measure of the acidity or alkalinity of an aqueous solution, defined as the logarithm (base 10) of the reciprocal of the hydrogen ion concentration of a solution, expressed in standard units.

Pollutant: A substance that alters the physical, thermal, chemical, radiological, or biological quality or properties of water; or that contaminates water to the extent that the water is rendered harmful to humans, animal life, vegetation, property, or to public health, safety, or welfare; or that impairs the usefulness of public enjoyment of the water for any lawful purpose. Pollutants include, but are not limited to, dredged soil, solid waste, incinerator residue, filter backwash, sewage, garbage, sewage sludge, munitions, medical wastes, chemical wastes, biological materials, radioactive materials, heat, wrecked or discarded equipment, rock, sand, cellar dirt, municipal, agricultural and industrial wastes, and certain characteristics of wastewater (e.g., pH, temperature, TSS, turbidity, color, BOD, COD, toxicity, or odor).

Pollution prevention plan: A plan designed for the reduction of generation of hazardous waste and toxic chemicals as outlined in the Waste Reduction Policy Act of 1991 (under 30 Texas Administrative Code (TAC) 335 Subchapter Q) by avoiding the disposal or release of harmful substances into the environment by means of source reduction, waste minimization, reuse, recycling, and detoxifying treatments.

Pretreatment or *treatment:* The reduction of the amount of pollutants, the elimination of pollutants, or the alteration of the nature of pollutant properties in wastewater to a less harmful state prior to or in lieu of discharging or otherwise introducing such pollutants into a POTW. The reduction or alteration can be obtained by physical, chemical, or biological processes, or process changes by other means, except by diluting the concentration of the pollutants, and as prohibited by 40 CFR 403.6(d).

Pretreatment requirements: Any substantive or procedural requirement of the control authority related to industrial wastewater pretreatment that may supplement national pretreatment standard requirements imposed upon an industrial user.

Pretreatment standards: Any regulation containing prohibitive discharge standards and/or categorical pretreatment standards promulgated by the EPA in accordance with Section 307 (b) and (c) of the Act (33 U.S.C. 1347). This term also includes local limits.

Process wastewater: Any water which, during manufacturing of processing, comes into contact with or results from the production of use of any raw material, intermediate product, finished product, byproduct, or waste product.

Prohibitive discharge standards: Absolute prohibitions against the discharge of certain substances; these prohibitions appear in section 34-472(1) of this division.

Publicly owned treatment works (POTW): A "treatment works," as defined by Section 212 of the Act (33 U.S.C. 1292) which is owned by the control authority. This definition includes any devices or systems used in the recycling or reclamation, collection and treatment of sewage or industrial wastes of a liquid nature and any conveyances, which convey wastewater to a water recycling center.

San Antonio water system (the control authority): Regional water, wastewater and reuse utility system created by Ordinance No. 75686 of the City of San Antonio, passed on April 30, 1992.

Septic tank waste: Any sewage or wastewater from holding tanks such as vessels, chemical toilets, campers, trailers, and septic tanks.

Sewage: Wastewater containing human excrement and gray water (household showers, dishwashing operations, etc.).

Shall: "Shall" is mandatory; "May" is permissive.

Sharps: Sharps means any object contaminated with a pathogen or that may become contaminated with a pathogen through handling or during transportation and also capable of cutting or penetrating skin or a packaging material. Sharps includes needles, syringes, scalpels, broken glass, culture slides, culture dishes, broken capillary tubes, broken rigid plastic, and exposed ends of dental wires.

Significant industrial user (SIU): Any user meeting the following criteria:

(1) Industrial users subject to categorical pretreatment standards; and/or

(2) Any other industrial user that:

a. Discharges an average of 25,000 gpd or more of process wastewater;

b. Contributes a process wastestream which makes up five (5) percent or more the average dry weather hydraulic or organic capacity of the treatment plant or;

c. Is designated as significant by the director on the basis that the industrial user has a reasonable potential for adversely affecting the POTW's operation or for violating any pretreatment standard or requirement.

d. The control authority may determine that an industrial user subject to categorical pretreatment standards under § 403.6 and 40 CFR chapter I, subchapter N is a non-significant categorical industrial user rather than a significant industrial user on a finding that the industrial user never discharges more than one hundred (100) gallons per day (gpd) of total categorical wastewater (excluding sanitary, non-contact cooling and boiler blow down wastewater, unless specifically included in the pretreatment standard) and the following conditions are met:

1. The industrial user, prior to the control authority's finding, has consistently complied with all applicable categorical pretreatment standards and requirements;

2. The industrial user annually submits the certification statement required in § 403.12(q) together with any additional information necessary to support the certification statement; and

3. The industrial user never discharges any untreated concentrated wastewater.

(3) Upon a finding that an industrial user meeting the criteria in paragraph (v)(1)(ii) of this section has no reasonable potential for adversely affecting the POTW's operation or for violating any pretreatment standards or requirement, the control authority may at any time, on its own initiative or in response to a petition received from an industrial user or POTW, and in accordance with 40 CFR 403.8(f)(6), determine that such industrial user is not a significant industrial user.

Significant noncompliance: For the purpose of this provision, an industrial user is significantly noncompliant (SNC), if its violation meets one (1) or more of the following criteria:

(1) Chronic violations of numeric wastewater discharge limits, defined here as those in which sixty-six (66) percent or more of all measurements taken during a six-month period exceed (by any magnitude) the daily maximum limit or the average limit for the same pollutant parameter, a numeric pretreatment standard or requirement, including instantaneous maximum allowable discharge limits as defined in section 34-471; or

(2) Technical review criteria (TRC) violations, defined here as those in which thirty-three (33) percent or more of all of the numeric measurements for the same pollutant parameter taken during a six-month period equal or exceed the product of the numeric pretreatment standard or daily maximum limit or the average limit multiplied by the applicable TRC (TRC = 1.4 for BOD, TSS, FOG, and 1.2 for all other pollutants except pH.); or

(3) Any other violation of a pretreatment standard, requirement, or effluent limit (daily maximum or longer term average, instantaneous maximum allowable

discharge limit, or narrative standard) that the control authority determines has caused, alone or in combination with other discharges, interference or pass through (including endangering the health of POTW personnel or the general public); or

(4) Any discharge of a pollutant that has caused imminent endangerment to human health, welfare or to the environment or has resulted in the control authority's exercise of its emergency authority under paragraph (f)(1)(vi)(B) of this section to halt or prevent such a discharge; or

(5) Failure to meet, within ninety (90) days after the schedule date, a compliance schedule milestone contained in a local control mechanism or enforcement order for starting construction, completing construction, or attaining final compliance; or

(6) Failure to provide, within forty-five (45) days after the due date, required reports such as baseline monitoring reports, 90-day compliance reports, periodic self-monitoring reports, and reports on compliance with compliance schedules; or

(7) Failure to accurately report noncompliance; or

(8) Any other violation or group or violations which may include a violation of best management practices that the control authority determines will adversely affect the operation or implementation of the local pretreatment program.

Slug discharge / slug load: Any single discharge episode at a flow rate or strength which could cause a violation of the prohibited discharge standards in subsection 34-472(1) of this division, and any discharge of a non-routine, episodic nature, including but not limited to an accidental spill or a non-customary batch discharge. The discharge episode is not required to cause or have the potential to cause pass-through or interference with the POTW processes to be considered a slug load. In addition a slug discharge shall not violate the POTW's regulations, local limits, or individual permit conditions.

Standard industrial classification (SIC): A four-digit code created by the U.S. Office of Management & Budget (1987) for statistical classification purposes that describes an industrial activity that takes place at a facility or site. It is possible for a facility or site to have multiple SIC codes depending on the varying activities that take place.

Standard methods: The examination and analytical procedures set forth in the latest edition of "Standard Methods for the Examination of Water and Wastewater" as prepared and published jointly by the American Public Health Association, American Water Works Association, and Water Environment Federation. "Standard Methods" shall also mean any approved analytical procedures published by the U.S. EPA in 40 CFR Part 136.

State: State of Texas.

State waters: Water of the ordinary flow, underflow, and tides of every flowing river, natural stream or lake, and of every bay of the Gulf of Mexico, of every river, natural stream, canyon, ravine, depression, and other watershed in the state which are the property of the state.

Storm water: Any flow occurring during or following any form of natural precipitation, and resulting from such precipitation, including snowmelt runoff, rainfall runoff and surface runoff and drainage.

Technically based local limits (TBLL): Those enforceable technically based local pollutant discharge standards developed by POTWs to address federal standards as well as state and local regulations.

Texas commission on environmental quality (TCEQ): The TEXAS COMMISSION ON ENVIRONMENTAL QUALITY, or an agent thereof.

Texas pollutant discharge elimination system (TPDES): A discharge permit issued pursuant to the authority of the Texas Commission on Environmental Quality.

Time-proportional composite sample: The composite of two (2) or more wastewater samples of equal volume taken at regular time intervals during any period of operational discharge.

Total suspended solids (TSS): The total suspended matter that floats on the surface of, or is suspended in, water, wastewater, or other liquids, and which is removable by laboratory filtration.

Total toxic organic (TTO): The summation of all quantifiable values greater than 0.01 milligrams per liter for the toxic pollutants located in 40 CFR 122, Appendix D, Table II.

Toxic organic management plan (TOMP): A plan which specifies the toxic organic compounds used, the method of disposal used, and procedures for assuring that toxic organics do not routinely spill or leak into wastewater discharged to the POTW.

Toxic pollutant: Any pollutant or combination of pollutants listed as toxic in regulations promulgated by the administrator of the environmental protection agency under the provisions of Section 307(a) of the Act.

Treatment, storage and disposal facility: A facility that treats, stores and disposes of materials (including hazardous materials) and may provide transportation as defined in 40 CFR Parts 264/265, subpart A—E.

Upset: An exceptional incident in which there is unintentional and temporary noncompliance with categorical pretreatment standards because of factors beyond the reasonable control of the industrial user. An upset does not include noncompliance to the extent caused by operational error, improperly designed treatment facilities, inadequate treatment facilities, lack of preventive maintenance, or careless or improper operation.

Waste amalgam: Dental amalgam that is no longer suitable for use in making dental repairs such as excess mix leftover at the end of a dental procedure and amalgam removed as part of a dental repair or replacement. Removed teeth with fillings can contain amalgam and is included as waste in the definition.

Wastewater: The liquid and water-borne industrial or domestic wastes from commercial buildings, industrial and manufacturing facilities and institutions, whether treated or untreated, which are discharged into the POTW.

Water pollution: The manmade or man induced alteration of the chemical, physical, biological, or radiological characteristics of water below certain minimum desirable quality standards.

Water recycling center: That portion of the POTW which is designed to provide treatment of municipal sewage (formerly referred to as a wastewater treatment plant).

Waters of the United States: All navigable waters of the United States as defined at 33 USC 1362(7) and at 40 CFR § 122.2.

Zero discharger: An industrial user subject to categorical pretreatment standards that does not discharge any categorical waste to the sanitary sewer collection system. This IU may not discharge waste that has categorical standards to the sanitary sewer collection system as outlined under their SIU permit requirements or local limits whichever is more stringent.
(Ord. No. 81771, § 2(App. I), 3-2-95; Ord. No. 85765, § 1, 3-20-97; Ord. No. 99480, § 1(Exh. 1), 7-22-04; Ord. No. 2014-06-19-0472, § 1(Exh. A), 6-19-14; Ord. No. 2019-02-14-0123, § 1(Att. I), 2-14-19; Ord. No. 2021-04-29-0283, § 1(Att. I), 4-29-21)

Sec. 34-472. Regulations.

(1) *General discharge prohibitions.* No user shall introduce or cause to be introduced into the POTW any pollutant or wastewater which causes pass through or interference. These general prohibitions apply to all users of the POTW whether or not they are subject to categorical pretreatment standards or any other national, state, or local pretreatment standards or requirements.

(2) *Specific discharge prohibitions.* No user shall introduce or cause to be introduced into the POTW the following pollutants, substances, or wastewater:

(a) There shall be no discharge of pollutants in amounts which would cause the

discharge from a facility to have a closed cup flashpoint of less than 60° centigrade or 140° Fahrenheit using the test methods specified in 40 CFR 261.21;

(b) Any wastewater having a pH less than 5.5 or greater than 10.5 standard units, or wastewater having any other corrosive property capable of causing damage or hazard to structures, equipment, and/or personnel of the POTW. (Any wastewater having a pH less than or equal to 2.0 or greater than or equal to 12.5 standard units is considered hazardous under 40 CFR 261.22);

(c) Solid or viscous substances in such quantities and/or qualities which may cause obstruction to the flow in a sewer or other interference with the operation of the wastewater treatment facilities such as, but not limited to: grease, solids or solids accumulation greater than one-half (½) inch in any dimension, animal guts or tissues, paunch manure, bones, hair, hides or fleshings, entrails, whole blood, asbestos, feathers, ashes, cinders, sand, spent lime, stone or marble dust, metal, glass, straw, shavings, grass clippings, rags, spent grains, spent hops, waste paper, wood, plastics, paint or chemical residues, tar, asphalt residues, residues from refining or processing of fuel or lubricating oil, mud or glass grinding or polishing wastes, fatty acids or esters of fatty acids, or food and vegetable wastes, sharps, regulated medical waste or used health care product (as defined in 49 CFR 173.134 Class 6, Division 6.2 cleaning wipes, articles of clothing, or bedding), or any material which can be disposed of as trash;

(d) Any pollutants, including oxygen demanding pollutants (BOD, etc.) released at a flow rate and/or pollutant concentration which contributes, either singly or by interaction with other pollutants, to interference to the POTW. In no case shall a slug load have a flow rate or contain concentrations or quantities of pollutants that exceed, for any time period longer than fifteen (15) minutes, more than five (5) times the average daily concentration, quantities, or flow produced during normal operations;

(e) Any wastewater having a temperature which will inhibit biological activity in the POTW plant contributing to interference, but in no case wastewater with a temperature at the introduction into the POTW treatment plant which exceeds 40° centigrade (104° Fahrenheit) unless the POTW treatment plant is designed to accommodate such temperature;

(f) Wastewater entering the regional collection system cannot exceed 65.5° centigrade (150° Fahrenheit) unless the quantity of heated discharge is of such volume that the total wastewater temperature at the nearest downstream manhole does not exceed 40° centigrade (104° Fahrenheit);

(g) There shall be no discharge of any petroleum oil, nonbiodegradable cutting oil, or products of mineral oil origin in amounts that may contribute, either singly or by interaction with other products, to interference or pass through;

(h) In accordance with 40 CFR 403.5(b)(7) there shall be no discharge of any pollutants which result in the presence of toxic gases, vapors, or fumes within the POTW in a quantity that may cause acute worker health and safety problems. Prohibited materials include, but are not limited to, gasoline, kerosene, naphtha, benzene, toluene, xylene, ethers, alcohols, ketones, aldehydes, peroxides, chlorates, perchlorates, bromates, carbides, hydrides and sulfides, asbestos, and any other substances which the control authority, the state or EPA has notified the user is a fire or explosion hazard to the system, or presents an imminent threat to the health and safety of persons operating the system;

(i) Any trucked or hauled pollutants, except at discharge points designated by the control authority, and in accordance with the Liquid Waste Transportation and

Disposal Regulations (article V, division 4 of this chapter), as amended or replaced, and section 34-476 of this division;

(j) Any noxious or malodorous liquids, gases, solids, or other wastewater which either singly or by interaction with other wastes are sufficient to create a public nuisance or hazard to life or are sufficient to physically prevent reasonably safe entry of humans and/or equipment into the sewers for inspection, maintenance and repair purposes;

(k) Any wastewater with any objectionable color not removed in the treatment process, such as, but not limited to, dye wastes, ink or printer waste, and vegetable tanning solutions;

(l) Any stormwaters, surface water, groundwater, or subsurface drainage, except as specifically authorized by the control authority;

(m) Sludges, screenings, or other residues from the pretreatment of industrial wastes;

(n) Any substance which will cause the control authority to violate its NPDES/TPDES and/or state disposal system permit or the receiving water effluent quality standards, or fail a toxicity test;

(o) Any agent, including but not limited to emulsifiers, surface active agents, detergents, etc. added to sand traps, grease traps, or the like, capable of passing the solid or semi-solid contents of the trap to the sewer system or any substance that may cause excessive foaming in the POTW;

(p) Fats, oils, or greases of animal, mineral or vegetable origin in concentrations greater than two hundred (200) mg/L;

(q) Any liquids, solids or gases, which by reason of their nature or quantity are, or may be sufficient, either alone or by interaction with other substances, to cause fire or explosion or be injurious in any other way to the POTW or to the operation of the POTW. At no time shall two successive readings on an explosion hazard meter, at the point of discharge into the system, or at any other point in the system, be more than five (5) percent, nor any single reading be over ten (10) percent of the lower explosive limit (LEL) of the meter. In accordance with 40 CFR 403.5(b)(1);

(r) Any wastewater containing toxic pollutants in sufficient quantity, either singly or by interaction with other pollutants, which may injure or interfere with any wastewater treatment process, constitute a hazard to humans or animals, create a toxic effect in the receiving waters at the effluent end of the POTW, or which exceeds the limitations set forth in a categorical pretreatment standard. A toxic pollutant shall include, but not be limited to spent antifreeze or any pollutant identified pursuant to Section 307(a) of the Act;

(s) Wastewaters or leachates generated from the remediation of hazardous or non-hazardous waste sites, except as specifically authorized by the control authority;

(t) Any substance which may cause the POTW's effluent or any other product of the POTW such as residues, sludges, or scums, to be unsuitable for normal landfill disposal, land application, reclamation or reuse, or which may interfere with the reclamation process where the POTW is pursuing a reuse and reclamation program. In no case shall a substance discharged to the POTW cause the POTW to be in noncompliance with sludge use or disposal criteria, guidelines, or regulations developed under Section 405 or 503 of the Clean Water Act, or with any criteria, guidelines, or regulations affecting sludge use or disposal developed pursuant to the Solid Waste Disposal Act, Clean Air Act, the Toxic Substances Control Act, the Resource Conservation and Recovery Act, or state criteria applicable to sludge management and/or disposal methods being used;

(u) Hazardous waste other than that allowed under the domestic sewage exemption, as provided for under 40 CFR 261.4(a)(1)(ii). Notwithstanding that exemption, there shall be no discharge of what would otherwise be considered hazardous waste unless a user can certify the following:

(i) The volume and toxicity of such waste has been minimized to the fullest extent possible by utilizing the best available technology and pretreatment practices.

(ii) The discharge of such waste is not a substitute for disposal and reporting thereof otherwise necessary under RCRA, CERCLA, SARA, TSCA, CAA, EPA, or TCEQ regulations.

(iii) Any wastewater containing antibiotics or any organism including viruses, considered pathogenic and/or detrimental to process organisms.

(iv) Wastewater containing any radioactive waste or isotopes except in compliance with applicable state or federal regulations. Greater than or in allowable concentrations by TDH regulations or other agencies.

Pesticides.

Bulk food processing wastes.

Discharge of slugs or flows which exceed the carrying capacity of the part of the collection system through which it is discharged.

Waste amalgam including, but not limited to, dental amalgam from chair-side traps, screens, vacuum pump filter, dental tools, cuspidors, or other collection devices, must not discharge to the POTW except as described in 40 CFR § 441.

The above pollutants, substances, or wastewater prohibited by this section shall not be processed or stored in such a manner that they could be discharged to the POTW. This division may be amended to regulate specific types and sources of such discharges in order to minimize or eliminate hazardous waste loadings into the POTW. When the control authority determines that a user is indirectly discharging to the POTW any of the above mentioned substances in such quantities or concentrations which may interfere with the operation or performance of the POTW, the control authority shall advise the user of the impact of the indirect discharge on the POTW and impose upon the user a schedule for termination of the discharge causing the interference.

(3) *National categorical pretreatment standards.* The National Categorical Pretreatment Standards found at 40 CFR Chapter I, Subchapter N, Parts 405—471 are hereby fully incorporated into this division.

(a) Where a categorical pretreatment standard is expressed only in terms of either the mass or the concentration of a pollutant in wastewater, the control authority may impose equivalent concentration or mass limits in accordance with 40 CFR 403.6(e). The more stringent national categorical pretreatment standards shall supersede the limitations imposed under section 34-472(5) of this division for that particular category.

(b) When wastewater subject to a categorical pretreatment standard is mixed with wastewater not regulated by the same standard, the control authority shall impose an alternate limit using the combined wastestream formula in 40 CFR 403.6(e).

(4) *Technically based local limits.*

(a) Significant industrial users regulated by permit for identified specific pollutants and non-permitted users not regulated under BMPs yet identified as potential contributors of certain pollutants shall not discharge or allow the discharge to

the regional system, wastewaters containing individually identified specific pollutants in concentrations, in solution or suspension, in excess of the limits below. Compliance with these limits shall be determined based on the analysis of a grab sample or a combination of grab samples, time composite samples, or flow composite samples.

(b) All samples shall be collected and analyzed in a manner consistent with the requirements of 40 CFR 136. No user as prescribed above shall discharge or allow the discharge of wastewater to the regional system having a pH less than 5.5 or greater than 10.5 standard units, and all concentrations and/or quality criteria shall apply where the effluent is discharged to the POTW. Wastewater entering the regional collection system shall not exceed 65.5 degrees Centigrade (150 degrees Fahrenheit). The following pollutant limits are established to protect against pass through and interference at the POTW. No person shall discharge wastewater containing in excess of the following:

Industrial user local limits:

(a) 0.7 Arsenic
(b) 0.7 Cadmium
(c) 5.0 Chromium
(d) 1.50 Copper
(e) 0.17 Total Cyanide
(f) 0.7 Lead
(g) 0.05 Mercury
(h) 5.5 Nickel
(i) 0.02 Selenium
(j) 0.50 Silver
(k) 2.50 Zinc
(l) 200 Fats Oil & Grease
(m) 5.5—10.5 pH
(n) 150 degrees Fahrenheit

Note that the above mentioned limits are reflected in units of mg/L, with the exception of pH and temperature. All limits with the exception of TSS represent the total concentration of the substance, both suspended and dissolved.

(c) Best Management Practices (BMPs)/ Pollution Prevention (P2). Users not regulated under local limits shall be regulated under the following guidelines relating to Best Management Practices and pollution prevention. Narrative BMPs may also be incorporated into individual permits.

The methodology involved in the application of Best Management Practices/ Pollution Prevention may include but not be limited to the following:

(i) Source reduction
Operating practices
Inventory control
Employee training
Spill control
Input Material Substitutions
Product Changes
Technology Changes
Process changes
Equipment changes

(ii) Recycling
Reuse
Closed loop recycling
Other recycling
Reclamation

There are existing non-permitted and/or unregistered industrial dischargers who typically have reasonable potential for violating a pretreatment standard or requirement. Therefore, the implementation of best management practices, as stipulated by the control authority, is required to control and reduce specific pollutants. The reduction of these specific pollutants at many facilities may have a significant impact on the total contribution based on the number of facilities involved. Upon determination by the control authority that it is necessary to regulate an individual user or group of

industrial users based on potential for pollutants of concern, the following minimum requirements will be established to accomplish this goal:

- Industrial users within the identified grouping must either be regulated by the BMP guidelines and/or pretreatment standards (local limits).
- Users may be required to submit letters of authorization indicating the facility's intent to comply with the BMP guidelines.
- Users may register with the control authority using an online format when provided.
- The control authority may require periodic reporting by these users demonstrating compliance with the BMP guidelines such as copies of equipment maintenance records or manifest records for waste disposal, or records demonstrating employee training.
- The control authority may conduct random inspections to determine compliance independent of the information supplied by an industrial user.

(d) *Best management practices for DIU.* Implementation of BMP for DIU are required by 40 CFR § 441. These include, but are not limited to the following controls for waste amalgam.

- Waste amalgam must be discharged to a separator with ninety-five (95) percent efficiency.
- Dental unit water lines, chair side traps, and vacuum lines must not be cleaned with oxidizing or acidic cleaners, including but not limited to, bleach, chlorine, iodine and peroxide that have a pH lower than 6.0 or greater than 8.0.

(5) *State requirements.* Specific pollutant requirements and limitations which have or may be enacted by the state on indirect discharges shall immediately supersede and replace the requirements and limitations imposed by this division when the state requirements are more stringent than either the federal or the control authority's standards or requirements.

(6) *Control authority's right of revision.* The control authority reserves the right to amend this division at any time to establish more stringent specific pollutant limitations or requirements on indirect discharges to the regional system if deemed necessary to protect the POTW processes or to correct or prevent an effluent quality problem in treated wastewater and/or resulting sludges. The control authority also reserves the right to amend this division to comply with the general objectives and purposes presented in section 34-471 of this division.

(7) *Prohibition of dilution.* No user shall ever increase the use of process water, unpolluted water, surface water or storm water or in any other way attempt to dilute either a direct or indirect discharge as a partial or complete substitute for adequate treatment to achieve compliance with the specific pollutant limitations contained in the national categorical pretreatment standards, or in any other specific pollutant limitations promulgated by the control authority and/or state and incorporated in this division. The control authority may impose mass limitations on users who are using dilution to meet applicable pretreatment standards or requirements, or in other cases when the imposition of mass limitations is appropriate.

(8) *Reserved.*

(9) *Bypass.*

(a) A user may allow a bypass to occur which does not cause pretreatment standards or requirements to be violated, but only if it also is for essential maintenance to assure efficient operation. These bypasses are not subject to the provision of paragraphs (b) and (c) of this section.

(b) (1) If a user knows in advance of the need for a bypass it shall submit prior notice to the control authority, at least ten (10) calendar days before the date of the bypass, if possible.

(2) A user shall submit oral notice to the control authority of an

unanticipated bypass that exceeds applicable pretreatment standards within twenty-four (24) hours from the time it becomes aware of the bypass. A written submission shall also be provided within five (5) calendar days of the time the user becomes aware of the bypass. The written submission shall contain a description of the bypass and its cause; the duration of the bypass, including exact dates and times, and, if the bypass has not been corrected, the anticipated time it is expected to continue; and steps taken or planned to reduce, eliminate, and prevent reoccurrence of the bypass. The control authority may waive the written report on a case by case basis if the oral report has been received within twenty-four (24) hours.

(c) (1) Bypass is prohibited, and the control authority may take an enforcement action against a user for a bypass, unless:

(a) Bypass was unavoidable to prevent loss of life, personal injury, or severe property damage;

(b) There were no feasible alternatives to the bypass, such as the use of auxiliary treatment facilities, retention of untreated wastes, or maintenance during normal periods of equipment downtime. This condition is not satisfied if adequate back-up equipment should have been installed in the exercise of reasonable engineering judgment to prevent a bypass which occurred during normal periods of equipment downtime or preventive maintenance; and

(c) The user submitted notices as required in this section.

(2) The control authority may approve an anticipated bypass, after considering its adverse effects, if the control authority determines that it will meet the conditions listed in this section.

(10) *Act of God.*

If a person can establish that an event that would otherwise be a violation of a statute within the commission's jurisdiction or a rule adopted or an order or a permit issued under such a statute was caused solely by an act of God, war, strike, riot, or other catastrophe, the event is not a violation of that statute, rule, order, or permit.

(Ord. No. 81771, § 2(App. I), 3-2-95; Ord. No. 85765, § 1, 3-20-97; Ord. No. 99480, § 1(Exh. 1), 7-22-04; Ord. No. 100030, § 1(Att. 1), 11-18-04; Ord. No. 101725, § 1, 11-17-05; Ord. No. 2014-06-19-0472, § 1(Exh. A), 6-19-14; Ord. No. 2019-02-14-0123, § 1(Att. I), 2-14-19; Ord. No. 2021-04-29-0283, § 1(Att. I), 4-29-21)

Sec. 34-473. Wastewater pretreatment.

(1) *Pretreatment facilities.* Users shall provide wastewater treatment as necessary to comply with this division and shall achieve compliance with all categorical pretreatment standards, local limits, and the prohibitions set out in section 34-472(1) of this division within the time limitations specified by EPA, the state, or the control authority, whichever is more stringent. Any facilities necessary for compliance shall be provided, operated, and maintained at the user's expense. Detailed plans describing such facilities and operating procedures shall be submitted to the department for review, and shall be acceptable to the division before such facilities are constructed. The review of such plans and operating procedures shall in no way relieve the user from the responsibility of modifying such facilities as necessary to produce a discharge acceptable to the control authority under the provisions of this division.

(2) *Additional pretreatment measures.*

(a) Whenever deemed necessary, the control authority may require users to restrict their discharge during peak flow periods, designate that certain wastewater be discharged only into specific sewers,

relocate and/or consolidate points of discharge, separate sewage wastestreams from industrial wastestreams, and such other conditions as may be necessary to protect the POTW and determine the user's compliance with the requirements of this division.

(b) The control authority may require any person discharging into the POTW to install and maintain, on their property and at their expense, a suitable storage and flow-control facility to ensure equalization of flow. A wastewater discharge permit may be issued solely for flow equalization.

(c) Types of traps, sumps, interceptors and/or filters such as, but not limited to, lint, grease, oil, grit and sand shall be provided by the user when, in the opinion of the control authority, they are necessary for the proper handling of wastewater containing grease and oil, or grit; except that such interceptors shall not be required for residential users. All interception units shall be of type and capacity approved by the control authority and shall be so located to be easily accessible for cleaning and inspection. Such interceptors shall be installed, inspected, cleaned, and repaired regularly, as needed, by the user at their expense. Refer to the liquid waste transportation regulations, section 34-518(1)(c) for specific guidelines pertaining to the maintenance of such interceptors and/or sumps.

(d) Users with the potential to discharge flammable substances may be required to install and maintain an approved combustible gas detection meter.

As specified in the user's permit or this division, the industrial user shall effectively monitor the operation and efficiency of all pretreatment facilities, and the quantity and quality of the treated discharge emanating from the user's facility. Samples and measurements taken shall be representative of the monitored activity. Monitoring for the parameters indicated in an industrial user's permit or in this division must be conducted according to test procedures approved under 40 CFR 136 and 40 CFR 403.

(e) Dental industrial users must install, operate, and maintain an amalgam separator that meets the following requirements:

(i) Compliant with either the American National Standards Institute (ANSI) American National Standard/ American Dental Association (ADA) Specification 108 for Amalgam Separators (2009) including Technical Addendum (2011), or the International Organization for Standardization (ISO) 11143 Standard (2008), or subsequent versions so long as that version requires amalgam separators to achieve at least a ninety-five (95) percent removal efficiency. Compliance must be assessed by an accredited testing laboratory under ANSI's accreditation program for product certification or a testing laboratory that is a signatory to the International Laboratory Accreditation Cooperation's Mutual Recognition Arrangement. The testing laboratory's scope of accreditation must include ANSI/ADA 108-2009 or ISO 11143.

(ii) The amalgam separator(s) must be sized to accommodate the maximum discharge rate of amalgam process wastewater.

(iii) A DIU subject to this ordinance that operates an amalgam separator that was installed at a dental facility prior to June 14, 2017, satisfies the requirements of paragraphs (e)(i) and (ii) of this section until the existing separator is replaced as described in paragraph (e)(v) of this section or until the effective date of this ordinance, whichever date is sooner.

(iv) The amalgam separator(s) must be inspected in accordance with the manufacturer's operating manual to ensure proper operation and maintenance of the separator(s) and to confirm that all amalgam process wastewater is flowing through the amalgam retaining portion of the amalgam separator(s).

(v) In the event that an amalgam separator is not functioning properly,

the amalgam separator must be repaired consistent with manufacturer instructions or replaced with a unit that meets the requirements of paragraphs (e)(i) and (ii) of this section as soon as possible, but no later than ten (10) business days after the malfunction is discovered by the dental discharger, or an agent or representative of the dental discharger.

(vi) The amalgam retaining units must be replaced in accordance with the manufacturer's schedule as specified in the manufacturer's operating manual or when the amalgam retaining unit has reached the maximum level, as specified by the manufacturer in the operating manual, at which the amalgam separator can perform to the specified efficiency, whichever comes first.

(vii) For multiple offices located in a single building or complex sharing plumbing and vacuum systems (such as a school or dental complex) the DIUs may be able to install a larger separator rather than each office individually. Individual compliance reports are still required.

(3) *Slug control plan.* Within one (1) year of the effective date of the IU permit issuance date the control authority shall evaluate whether each significant industrial user needs a plan to control slug discharges. The control authority may require any user to develop, submit for review, and implement such a plan. In the event of a slug discharge by the IU, the facility will be required to revise, update the slug control plan and perform necessary upgrades to prevent reoccurrence. A plan shall address, at a minimum, the following:

(a) Description of discharge practices, including nonroutine batch discharges;

(b) Description of stored chemicals;

(c) Procedures for immediately notifying the control authority of any accidental or slug discharge, as required by sections 34-473(4) and 34-473(5) of this division, including any discharge that would result in a violation under 40 CFR 403.5(b) with procedures for followup written notification within five (5) calendar days, and

(d) Procedures to prevent adverse impact from any accidental or slug discharge. Such procedures include, but are not limited to, inspection and maintenance of storage areas, handling and transfer of materials, loading and unloading operations, control of plant site runoff, worker training, building of containment structures or equipment, measures for containing toxic organic pollutants, including solvents, and/or measures and equipment for emergency response.

(4) *Reporting of slug/accidental discharges.* In the case of a slug discharge, including any accidental spill or noncustomary batch discharges, the user shall notify the department and the appropriate water recycling center immediately by telephone and provide the following information:

(a) Time of discharge.

(b) Location of the discharge.

(c) Type of waste.

(d) Concentration and volume discharged.

(e) Corrective actions taken.

(f) Water recycling center receiving the waste.

Within five (5) calendar days following an accidental or slug discharge, the user shall submit to the control authority, or to the designated representative, a written report describing the cause of the discharge and the measures to be taken by the user to prevent similar future occurrences. The results of the report will be documented and available to the control authority upon request. Such notification shall not relieve the user of any responsibility for, expense, loss, damage, or other liability which may be incurred as a result of damage to the POTW, the environment or any other damage to person or property; nor shall such notification relieve the user of any fines, penalties, or other liability

which may be imposed by this division or other applicable law. Failure to notify the director of a slug or accidental discharge may result in legal action or discontinuation of service; and may be deemed a separate violation of this division.

(5) *Toxic organic management plan.* All industrial users in the electroplating, metal finishing, copper forming, aluminum forming, coil coating and electrical and electronic components categories may submit a toxic organic management plan (TOMP) in lieu of annual monitoring for total toxic organics (TTO) as referenced in 40 CFR 413.03(b), 40 CFR 433.12(b) and 40 CFR 469.13(b) respectively. Specifically after initial monitoring in year one (1) the TTO monitoring in years two (2), three (3), four (4) and five (5) of the permit cycle may be waived by the control authority upon approval and proper implementation of the TOMP. After approval the TOMP will be incorporated by reference as a narrative BMP into the discharge permit. The plan must specify at a minimum the following:

(a) A complete inventory of all toxic organic chemicals, defined in this division as TTO, with corresponding MSDS sheets in use or identified through sampling and analysis of the wastewater from regulated process operations detected above 0.01 mg/l (Organic constituents of trade-name products should be obtained from the appropriate suppliers as necessary). All analyses must conform with 40 CFR Part 136 Methods.

(b) Descriptions of the methods of disposal other than dumping used for the inventoried compounds, such as reclamation, contract hauling, or incineration;

(c) The procedures for ensuring that the regulated toxic organic pollutants do not spill or routinely leak into process wastewaters, floor drains, non-contact cooling water, groundwater, surface waters; i.e., spill prevention, control and countermeasures (SPCC) plan; or any other location which allows discharge of the compounds; and

(d) Determinations or best estimates of the identities and approximate quantities of toxic organic pollutants used in as well as discharged from the regulated manufacturing processes. Compounds present in wastestreams that are discharged to sanitary sewers may be a result of regulated processes or disposal, spills, leaks, rinse water carryover, air pollution control, and other sources. The Control Authority reserves the right to verify compliance with the TTO requirement through its own sampling program.

(6) *Notice to employees.* All industrial users shall take necessary and reasonable measures to insure that all appropriate employees are advised of the notification procedure to be used in the event of an accidental or slug discharge.
(Ord. No. 81771, § 2(App. I), 3-2-95; Ord. No. 85765, § 1, 3-20-97; Ord. No. 99480, § 1(Exh. 1), 7-22-04; Ord. No. 2014-06-19-0472, § 1(Exh. A), 6-19-14; Ord. No. 2019-02-14-0123, § 1(Att. I), 2-14-19)

Sec. 34-474. Wastewater discharge permit application.

(1) *Wastewater discharges.*

(a) No significant industrial user shall discharge wastewater into the POTW without first obtaining a wastewater discharge permit from the control authority. Those potential SIUs already discharging may continue to do so provided a permit application is submitted to the control authority in a timely manner for review and final determination.

(b) The control authority may require other users to obtain wastewater discharge permits as necessary to carry out the purposes of this division.

(c) Any violation of the terms and conditions of a wastewater discharge permit shall be deemed a violation of this division and subjects the wastewater discharge permittee to the sanctions set out in sections 34-481, 34-482, and 34-483 of this division. Obtaining a wastewater discharge permit does not relieve a permittee of its obligation to comply with all federal and

state pretreatment standards or requirements or with any other requirements of federal, state and local law.

(2) *Wastewater discharge permit application.*

(a) Significant industrial users shall, pursuant to the control authority's approved pretreatment program, obtain an industrial wastewater discharge permit, and shall complete and file an application on a form prepared by the control authority. (Refer to section 34-480 concerning confidential or proprietary information). The information requested shall at a minimum include the following items:

(1) Name(s), address(es) including the legal description, location(s);

(2) Name(s), official title(s), and address(es) of the owners and/or operators;

(3) The identity of the authorized representative including his or her name, official title, address, and date of birth;

(4) SIC number(s) according to the current edition of the Standard Industrial Classification Manual, 1987, bureau of the budget, as amended;

(5) A list of all environmental control permits held by or for the facility;

(6) The nature and concentration of any pollutants in the discharge which are limited by a city, state or federal pretreatment standard (sampling and analysis shall be performed in accordance with procedures established by the EPA pursuant to Section 304(g) of the Act and contained in 40 CFR 136, as amended);

(7) Time and duration of contribution;

(8) Average daily and peak wastewater flow rates, including daily, monthly and seasonal variations, if any;

(9) Site plans, floor plans, mechanical and plumbing plans, and details showing all sewers, sewer connections, and appurtenances by size, location and elevation;

(10) Number of employees, hours of operation of plant and, if required in accordance with other provisions herein, the proposed or actual hours of operation of pretreatment system;

(11) Description of activities, facilities and plant processes on the premises, including all materials which are, or could be, discharged;

(12) Each product by type, amount, process(es), and rate of production, if applicable;

(13) Type and amount of raw materials processed (average and maximum per day), if applicable;

(14) Current slug/spill plan as identified in 40 CFR 403.8(f)(2)(v);

(15) Description of on-site storage and off/on-site disposal of waste not disposed of to the sanitary sewer.

(16) A list and description of the waste transporters and disposal facilities (with their EPA/TCEQ/the control authority identification numbers).

(17) A list and description of the pollution prevention activities in the past 5 to 10 years.

(18) Any other relevant information as may be deemed by the director to be necessary to evaluate the permit application, or as required under section 34-476(5) of this division.

(19) NAICS number(s) according to the current edition of the North American Industrial Classification System Manual, 1997, Office of Management and Budget (OMB), as amended.

(b) It shall be the permittee's continued duty to provide, when requested by the control authority, information necessary to ensure current information and data required as part of the permit application. Such

requests by the control authority may be presented to the permittee in writing, or by a representative of the control authority at the time of an inspection. Failure to provide such information will be considered a violation of this division.

(c) Incomplete or inaccurate permit applications will not be processed and will be returned to the user for revision.

(3) *Wastewater discharge registration*

(a) (Non-significant industrial users)

The control authority may require other users to obtain a wastewater discharge registration application as necessary to carry out the purposes of this division.

When the control authority requires a user to register its wastewater discharge that user shall obtain a wastewater discharge registration application, and shall complete and file an application on a form prepared by the control authority. (Refer to section 34-480 concerning confidential or proprietary information). The information requested may include the following items:

(1) Name(s), address(es) including the legal description, location(s);

(2) Name(s), official title(s), and address(es) of the owners and/or operators;

(3) The identity of the authorized representative including his or her name, official title, address, and date of birth;

(4) NAICS number(s) according to the current edition of the North American industrial classification system, 1997 office of management & budget, as amended;

(5) A list of all environmental control permits held by or for the facility;

(6) The nature and concentration of any pollutants in the discharge which are limited by a city, state or federal pretreatment standard (sampling and analysis shall be performed in accordance with procedures established by the EPA pursuant to Section 304(g) of the Act and contained in 40 CFR 136, as amended);

(7) Site plans, floor plans, mechanical and plumbing plans, and details showing all sewers, sewer connections, and appurtenances by size, location and elevation;

(8) Number of employees, hours of operation of facility

(9) Description of activities, facilities and plant processes on the premises, including all materials (material safety data sheets) which are, or could be, discharged;

(10) Pretreatment device details;

(11) Daily discharge / flow information

(12) Any other relevant information as may be deemed by the control authority to be necessary to evaluate the registration application, or as required under sections 34-474(2b) and 34-475 of this division.

(b) *Dental industrial user registration.* As required by 40 CFR § 441 the DIU is required to submit a one-time compliance report to the control authority. The deadline for existing facilities is to submit the report no later than October 12, 2020, or ninety (90) days after a transfer of ownership. For new sources, the report must be submitted no later than ninety (90) days following the introduction of wastewater into the POTW. The report may be submitted in writing or by an online registration. The report shall include the following information:

(1) Signed and certified by a responsible corporate officer, a general partner or proprietor, or a duly authorized representative in accordance with the requirements of 40 CFR § 403.12(l).

(2) Facility name, physical address, mailing address, contact information, name of the operator(s) and owner(s);

(3) A description of the operation of the dental facility including: The total number of chairs, the total number of chairs at which dental amalgam may be present in the resulting wastewater, and a description of any existing amalgam separator(s) or equivalent device(s) currently operated to include, at a minimum, the make, the model and year of installation.

(4) Certification that the amalgam separator or equivalent device is designed and will be operated and maintained to meet the requirements specified in 40 CFR § 441.30 or 40 CFR § 441.40.

(5) Certification that the dental discharge is implementing BMPs specified in 40 CFR § 441.30(b) or 40 CFR § 441.40(b) and will continue to do so.

(6) The name of the third-party service provider that maintains the amalgam separator or equivalent devices operated at the dental office, if applicable. Otherwise a brief description of the practices employed by the facility to ensure proper operation and maintenance in accordance with 40 CFR § 441.30 or 40 CFR § 441.40.

The control authority will evaluate the data furnished by the user and may require additional information. A wastewater discharge registration shall include such conditions as are deemed reasonably necessary by the control authority to prevent pass through or interference, protect the quality of the water body receiving the treatment plant's effluent, protect worker health and safety, facilitate sludge management and disposal, and protect against damage to the POTW. The control authority may require periodic self-monitoring analysis of the user's wastestream for compliance and / or surcharge assessment. The Control Authority may require periodic cleaning and maintenance of any pretreatment device in accordance with section 34-518 of this article.

(4) *Certification: data accuracy, truthfulness and completeness.* All wastewater discharge permit applications, required documents, and other specified documents submitted to the control authority must contain the following certification statement, and must be signed by the authorized representative of the industrial user:

"I certify under penalty of law that this document and all attachments were prepared under my direction or supervision in accordance with a system designed to assure that qualified personnel properly gather and evaluate the information submitted. Based on my inquiry of the person or persons who manage the system, or those persons directly responsible for gathering the information, the information submitted is, to the best of my knowledge and belief, true, accurate, and complete. I am aware that there are significant penalties for submitting false information, including the possibility of fine and imprisonment for knowing violations."

(5) *Wastewater discharge permit decisions.* The control authority will evaluate the data furnished by the user and may require additional information. Within sixty (60) calendar days of receipt of a complete wastewater discharge permit application, the control authority will determine whether or not to issue a wastewater discharge permit. The control authority may deny any application for a wastewater discharge permit.

(Ord. No. 81771, § 2(App. I), 3-2-95; Ord. No. 85765, § 1, 3-20-97; Ord. No. 99480, § 1(Exh. 1), 7-22-04; Ord. No. 2014-06-19-0472, § 1(Exh. A), 6-19-14; Ord. No. 2019-02-14-0123, § 1(Att. I), 2-14-19)

Sec. 34-475. Wastewater discharge permit issuance process.

Within sixty (60) calendar days from the date the permit application is approved (section 34-474(4)), the control authority shall issue the wastewater discharge permit to the user.

(1) *Permit duration.* Permits issued to significant industrial users shall be issued for a period of five (5) years or for a period of less than (5) years if established by the control authority. The terms and conditions of the permit are subject to modification by the department during the term of the permit as limitations or requirements as identified in this division are modified, or other just cause exists that warrants modification.

(2) *Permit contents.* A wastewater discharge permit shall include such conditions as are deemed reasonably necessary by the control authority to prevent pass through or interference, protect the quality of the water body receiving the treatment plant's effluent, protect worker health and safety, facilitate sludge management and disposal, and protect against damage to the POTW. Permits shall, at a minimum, address the following:

(a) A statement that indicates wastewater discharge permit duration, which in no event shall exceed five (5) years;

(b) A statement that the wastewater discharge permit is non-transferrable without prior notification to and authorization from the department in accordance with section 34-475(4) of this division;

(c) The unit charge or schedule of user charges and fees for the wastewater to be discharged to a regional system sewer, and/or for the monitoring, sampling, testing, and analysis thereof;

(d) Limits on the average and maximum wastewater constituents and characteristics;

(e) Limits on the average and maximum rate and time of discharge or requirements for flow regulation and equalization;

(f) Requirements for installation and maintenance of inspection and sampling facilities, including technical data relative to location, slope, and capacity of piping used in the sampling facility or discharge point;

(g) Specifications for monitoring programs which may include the number of sampling locations, frequency of sampling, number, types and standards for tests and reporting schedule;

(h) Compliance schedules for the installation of technology needed to meet applicable pretreatment standards and requirements, including specific dates and increments of progress. Compliance schedules shall be filed according to sections 34-478(1)(c)(7) and 34-478(2) of this division;

(i) Requirements for submission of technical reports or discharge reports;

(j) Requirements for maintaining and retaining plant records relating to wastewater discharge as specified by the Control Authority and affording the control authority access thereto as specified in 40 CFR 403.12(o);

(k) Requirements for reporting the introduction of any new wastewater constituents or any substantial change in the volume or character of the wastewater constituents being introduced into the regional system;

(l) Requirements for reporting accidental and/or slug discharges as per the provisions of this division;

(m) Development and implementation of waste minimization plans to reduce the amount of pollutants discharged to the POTW;

(n) A statement that compliance with the wastewater discharge permit does not relieve the permittee of responsibility for compliance with all applicable federal and state pretreatment standards, including those which become effective during the term of the wastewater discharge permit;

(o) A statement of applicable civil and criminal penalties for violation of the permit and/or this division;

(p) Other conditions as deemed appropriate by the control authority to ensure compli-

ance with this division, including but not limited to, self-monitoring, sampling, reporting, notification and recordkeeping requirements, including an identification of the pollutants to be monitored, sampling location, sampling frequency, and sample type;

(q) Effluent limits, including Best Management Practices, based on applicable Pretreatment Standards.

(3) *Wastewater discharge permit modification.* The control authority may modify a wastewater discharge permit for good cause, including, but not limited to, the following reasons:

(a) To incorporate any new or revised federal, state, or local pretreatment standards or requirements;

(b) To address significant alterations or additions to the user's operation, processes, or wastewater volume or character since the time of wastewater discharge permit issuance;

(c) A change in the POTW that requires either a temporary or permanent reduction or elimination of the authorized discharge;

(d) Information indicating that the permitted discharge poses a threat to the POTW, the control authority personnel, the receiving waters, its sludge or recycled water quality, and/or upset to the wastewater treatment plant;

(e) Violation of any terms or conditions of the wastewater discharge permit;

(f) Misrepresentations or failure to fully disclose all relevant facts in the wastewater discharge permit application or in any required reporting;

(g) Revision of a categorical pretreatment standard pursuant to 40 CFR 403.13;

(h) To correct typographical or other errors in the wastewater discharge permit; or

(i) To reflect a transfer of the facility ownership or operation to a new owner or operator, or to reflect a change in the authorized representative including date of birth;

(j) The director reserves the right and shall have the authority to deny any increased contributions of pollutants, or changes in the nature of pollutants, to the POTW by industrial users where such contributions do not meet applicable pretreatment standards and requirements or where such contributions would cause the POTW to violate its NPDES permit.

(k) To change from a discharge to zero discharge permittee, or vice versa, the control authority may require all unsettled violations be resolved through the control authority legal department.

(4) *Wastewater discharge permit transfer.* Wastewater discharge permits may be transferred to a new owner or operator only if the permittee gives at least thirty (30) days advance notice to the control authority and the control authority approves the wastewater discharge permit transfer. The notice to the control authority must include a written certification by the new owner or operator which:

(a) States that the new owner and/or operator has no immediate intent to change the facility's operations and processes;

(b) Identifies the specific date on which the transfer is to occur;

(c) Acknowledges full responsibility for complying with the existing wastewater discharge permit; and

(d) States whether liabilities for past or present permit violations will become the responsibility of the new owner/operator.

Failure to provide advance notice of a transfer renders the wastewater discharge permit void as of the date of facility transfer, and shall constitute a violation of this division.

(5) *Wastewater discharge permit revocation.* The control authority may revoke a wastewater discharge permit for good cause, including, but not limited to, the following reasons:

(a) Failure to notify the control authority of significant changes to the wastewater prior to the changed discharge;

(b) Failure to provide prior notification to the control authority of changed conditions pursuant to section 34-478(5) of this division;

(c) Misrepresentation or failure to fully disclose all relevant facts in the wastewater discharge permit application;

(d) Falsifying self-monitoring reports;

(e) Tampering with monitoring or surveillance equipment;

(f) Refusing to allow the control authority timely access to the facility premises and records;

(g) Failure to meet effluent limitations;

(h) Failure to pay fines;

(i) Failure to pay sewer charges;

(j) Failure to meet compliance schedules;

(k) Failure to complete a wastewater survey or the wastewater discharge permit application;

(l) Failure to provide advance notice of the transfer of business ownership of a permitted facility;

(m) Violation of any pretreatment standard or requirement, or any terms of the wastewater discharge permit or this division; or

(n) Failure to provide, operate and maintain, at all times, wastewater pretreatment equipment as is necessary to comply with this division.

Wastewater discharge permits shall be voidable upon cessation of operations. All wastewater discharge permits issued to a particular user are void upon the issuance of a new wastewater discharge permit to that user, however, liability for violations of previous permits will not be extinguished by the issuance of a new permit.

(6) *Wastewater discharge permit renewal.* A user with an expiring wastewater discharge permit shall apply for wastewater discharge permit renewal by submitting a complete permit application, in accordance with section 34-474(2) of this division, a minimum of ninety (90) days prior to the expiration of the user's existing wastewater discharge permit. Failure to reapply for a permit may result in an enforcement action.
(Ord. No. 81771, § 2(App. I), 3-2-95; Ord. No. 85765, § 1, 3-20-97; Ord. No. 99480, § 1(Exh. 1), 7-22-04; Ord. No. 2014-06-19-0472, § 1(Exh. A), 6-19-14; Ord. No. 2019-02-14-0123, § 1(Att. I), 2-14-19)

Sec. 34-476. Liquid waste transportation regulations.

Liquid waste transporter permits will be issued in accordance with the provisions of Article V, Division 4 of this chapter, the liquid waste transportation and disposal regulations, as amended.
(Ord. No. 81771, § 2(App. I), 3-2-95; Ord. No. 85765, § 1, 3-20-97; Ord. No. 99480, § 1(Exh. 1), 7-22-04)

Sec. 34-477. Compliance monitoring.

(1) *Monitoring facilities.*

(a) Industrial users shall install and maintain monitoring facilities that allow inspection, surveillance and sampling at the discharge point and/or internal drainage systems located on private property. Permanent flow measurement, metering and/or totalizing devices for surcharge calculations and/or determination of the mass of pollutants discharged shall be required when deemed appropriate by the control authority. These facilities shall be provided by the industrial user and operated at the user's expense. All devices installed by an industrial user used to measure water and/or wastewater flow and quality shall be calibrated at a minimum of one (1) time per calendar year to ensure accuracy. The monitoring facility should normally be situated on the user's premises, but the control authority may, when such a location would be impractical or cause undue hardship on the user, allow the facility to be constructed on the sidewalk area and located so that it will not create a public safety hazard nor be obstructed by

structures, landscaping, or parked vehicles. To establish water consumption of users on water wells, metering devices shall be installed, operated and maintained by the user.

(b) Wastewater monitoring and flow measurement facilities shall be properly operated, kept clean and maintained in good working order at all times. The failure of a user to keep its monitoring facility in good working order shall not be grounds for the user to claim that sample results are unrepresentative of its discharge.

(c) For multiple use buildings (i.e. shopping centers, medical service buildings, office buildings, etc.) having only one master water meter, or multiple meters paid by one person or company, and/or where the building is served by a common sewer lateral, one permit may be issued to the water bill addressee. In this case, the addressee shall be responsible for:

(1) The installation, operation, and maintenance of any required pretreatment device or monitoring station;

(2) Compliance with all provisions of this division and/or applicable pretreatment standards or requirements; and

(3) The payment of all sampling and analysis fees, surcharges, and any fines or penalties imposed. If in the judgment of the director, the quality of wastewaters from the separate users is such that separate pretreatment or monitoring facilities is appropriate, the director may require separate facilities. In this case, all of the aforementioned requirements shall apply to the individual users.

(d) There shall be adequate lighting of and ample room in or near such sampling manhole or facility to safely allow inspection personnel to position sampling, monitoring or surveillance equipment and prepare field samples for analysis. Whether construction on public or private property, the sampling and monitoring facilities shall be provided in accordance with the regional system requirements and all applicable local construction standards and specifications, including applicable requirements contained in the plumbing code, chapter 10 of the City Code, as amended or as may be amended.

(2) *Inspection and sampling.*

(a) The control authority and EPA and/or TCEQ representatives shall have the right to inspect the facilities of any industrial user to ascertain whether the purposes of this division are being met and all applicable requirements are being fulfilled. Industrial users and their employees shall allow authorized regulatory representatives displaying proper identification ready access to the premises at all reasonable times for the purpose of: inspecting wastewater generating operations and processes; wastewater flow monitoring and sampling; examination and reproduction of business records pertinent to water and wastewater volume and quality; including hazardous and non-hazardous waste manifests; inspection of potential slug-related discharges; and where applicable, making photographic documentation and obtaining other information necessary to ascertain and ensure that the correct data and information submitted in the facility's permit application, and assure and assess compliance by users with pretreatment standards and requirements. Inspection frequency is at a minimum conducted once per year, and the frequency will depend on the nature and type of industrial processes as is specified in the control authority's pretreatment program. Failure to allow access, to permit photographic documentation, or to allow copying of pertinent records will be considered a direct violation of this division.

(b) The control authority shall have the right to install, or require the installation of monitoring, testing, and surveillance

equipment (including adequate lighting) and to take samples (including independent samples) of any indirect discharge at any reasonable time in accordance with the applicable provisions of this division. Where an industrial user has safety and/or security measures in force which require user issuance of special safety equipment and/or proper identification and clearance before allowing entry into their premises, the user shall make the necessary arrangements with their security guards or similar personnel, so that upon presentation of suitable identification, personnel from the control authority, the state, or EPA will be permitted to enter any or all areas of the user's facility, without delay, for the purpose of performing responsibilities reasonably associated with those stated above and reasonably required to accomplish the purposes and objectives of this division.

(c) Results of concentration and constituent analysis of wastewater from samples collected from any industrial user may be determined by the control authority or its authorized agent, the approval authority, a professional engineer contracted by the discharger, or by any other qualified party approved by the control authority.

(d) If the industrial user elects to contract with a professional engineer or other qualified party for sampling and analysis of wastewater, all results of such sampling and analysis shall be submitted to the director, and all reports submitted shall contain a statement certifying that the samples collected and values reported are developed in accordance with the collection and analytical procedures contained in section 34-474 of this division, 40 CFR 403.12, and the appropriate federal categorical pretreatment standards, as applicable. Each significant industrial user will be sampled at least twice each year, or more frequently if required by the local pretreatment program.

(e) Any temporary or permanent obstruction to safe and easy access to the facility to be inspected and/or sampled shall be promptly removed by the user at the written or verbal request of the control authority and shall not be replaced. The costs of clearing such access shall be borne by the user.

(3) *Search warrants.* Failure to allow access to a building, structure, or property, or any part thereof, when the control authority personnel is able to demonstrate probable cause to believe that there may be a violation of this division, or that there is a need to inspect and/or sample as part of a routine inspection and sampling program of the control authority designed to verify compliance with this division or any permit or order issued hereunder, or to protect the overall public health, safety and welfare of the community, then the control authority may seek issuance of a search warrant from the municipal magistrate of the city or the County Judge of Bexar, or any judge of appropriate jurisdiction.

(Ord. No. 81771, § 2(App. I), 3-2-95; Ord. No. 85765, § 1, 3-20-97; Ord. No. 99480, § 1(Exh. 1), 7-22-04; Ord. No. 100030, § 1(Att. 1), 11-18-04; Ord. No. 2014-06-19-0472, § 1(Exh. A), 6-19-14; Ord. No. 2019-02-14-0123, § 1(Att. I), 2-14-19)

Sec. 34-478. Reporting requirements.

(a) *Baseline monitoring reports.*

(1) Within either six (6) months after the effective date of a categorical pretreatment standard, or the final administrative decision on a category determination under 40 CFR 403.6(a)(4), whichever is later, existing categorical users currently discharging to or scheduled to discharge to the POTW shall submit to the control authority a report which contains the information listed in paragraph (3) below.

(2) At least ninety (90) days prior to the commencement of their discharge, new sources, and sources that become categorical users subsequent to the promulgation of an applicable categorical standard, shall submit to the control authority a report which contains the information

listed in paragraph (3) below. A new source shall report the method of pretreatment it intends to use to meet applicable categorical standards. A new source also shall give estimates of its anticipated flow and quantity of pollutants to be discharged.

(3) Users described above shall submit the information set forth below:

a. *Identifying information.* The name and address of the facility, including the name of the operator and owner.

b. *Environmental permits.* A list of any environmental control permits held by or for the facility.

c. *Description of operations.* A brief description of the nature, average rate of production, and standard industrial classifications of the operation(s) carried out by such user. This description should include a schematic process diagram which indicates points of discharge to the POTW from the regulated processes.

d. *Flow measurement.* Information showing the measured average daily and maximum daily flow, in gallons per day, to the POTW from regulated process streams and other streams, as necessary, to allow use of the combined wastestream formula set out in 40 CFR 403.6(e).

e. *Measurement of pollutants.* Information regarding pretreatment standards sampling include the following:

1. The categorical pretreatment standards applicable to each regulated process.

2. The results of sampling and analysis identifying the nature and concentration or mass, where required by the standard or by the control authority of regulated pollutants in the discharge from each regulated process. Instantaneous, daily maximum, and average concentrations, (or mass where required), shall be reported. The sample shall be representative of daily operations and shall be analyzed in accordance with procedures set out in section 34-478(j) and (k) of this division. In cases where the standard requires compliance with a best management practice or pollution prevention alternative, the user shall submit documentation as required by the CA or the applicable standards to determine compliance;

3. Sampling must be performed in accordance with procedures set out in section 34-478(j) of this division.

4. The submission of a baseline report which utilizes only historical data so long as the data provides information sufficient to determine the need for industrial pretreatment measures.

5. The baseline monitoring report shall indicate the time, date, and place of sampling and the methods of analysis, and shall certify that such sampling and analysis is representative or normal work cycles and expected pollutant discharge to the CA.

f. *Certification.* A statement, reviewed by the user's authorized representative and certified by a qualified professional, indicating whether pretreatment standards are being met on a consistent basis, and if not, whether additional operation and maintenance and/or additional pretreatment is required to meet the pretreatment standards and requirements.

g. *Compliance schedule.* If additional pretreatment and/or additional operation and maintenance is necessary to meet the pretreatment standards, then the shortest schedule by which the user will provide such additional pretreatment and/or operation and maintenance will be utilized. The completion date in this schedule shall not be later than the compliance date established for the applicable pretreatment standard. A compliance schedule pursuant to this section must meet the requirements set out in Section 34-478(b) of this division.

h. *Signature and certification.* All baseline monitoring reports must be signed and certified in accordance with section 34-474(3) of this division.

(b) *Initial database monitoring.* The permittee shall initially document six (6) consecutive months of discharge monitoring to determine compliance with effluent standards established in the permit. If any discharge is found to be in violation of the permit limits, the permittee shall develop corrective measures to achieve and maintain consistent compliance. Techniques specified in 40 CFR 403 and 40 CFR 136 shall be used to collect and analyze any wastewater samples in connection with this database monitoring requirement.

(c) *Compliance schedules and progress reports.* The following conditions shall apply to the compliance schedule required by section 34-478(a)(3)g of this division.

(1) The compliance schedule shall allow the user to voluntarily establish goals and time frames for meeting those goals for installing, modifying, and/or maintaining pretreatment equipment and/or practices to identify and resolve conditions in their operation which have resulted in noncompliance. The user shall notify the control authority within five (5) working days from the initial compliance schedule meeting, stating whether or not they will enter into a compliance schedule. Within fifteen (15) working days of the initial compliance schedule meeting, the user shall submit a proposed compliance schedule to the control authority for review. No enforcement action will be taken against the user for instances of noncompliance which occur during an approved compliance schedule. Such instances of noncompliance may be the subject of enforcement at a later date should the user commit violations after the expiration of the applicable compliance schedule. Users must remain compliant for a minimum of one calendar year from the expiration date of the schedule. The CA may issue an extension to the user, if the user can document progress toward meeting the compliance schedule and the request for additional time is valid and reasonable;

(2) The schedule shall contain progress increments in the form of dates for the commencement and completion of major events leading to the construction and operation of additional pretreatment required for the user to meet the applicable pretreatment standards (such events include, but are not limited to, hiring an engineer, completing preliminary and final plans, executing contracts for major components, commencing and completing construction, and beginning and conducting routine operation);

(3) No increment referred to above shall exceed nine (9) months; however, the duration of the compliance schedule and any individual increment shall be determined at the discretion of the control authority;

(4) The user shall submit a progress report to the control authority no later than fourteen (14) days following each date in the schedule and the final date of compliance including, at a minimum, whether or not it complied with the increment of progress, the reason for any delay, and, if

appropriate, the steps being taken by the user to return to the established schedule; and

(5) In no event shall more than nine (9) months elapse between such progress reports to the control authority.

(d) *Reports on compliance with categorical pretreatment standard deadline.* Within ninety (90) days following the date for final compliance with applicable categorical pretreatment standards, or in the case of a new source following commencement of the introduction of wastewater into the POTW, any user subject to such pretreatment standards and requirements shall submit to the control authority a report containing the information described in this division. For users subject to equivalent mass or concentration limits established in accordance with the procedures in 40 CFR 403.6(c), this report shall contain a reasonable measure of the user's long-term production rate. For all other users subject to categorical pretreatment standards expressed in terms of allowable pollutant discharge per unit of production (or other measure of operation), this report shall include the user's actual production during the appropriate sampling period. All compliance reports must be signed and certified in accordance with this division.

(e) *Periodic compliance reports.*

(1) All categorical industrial users shall, at a frequency determined by the control authority, but in no case less than twice per year (in June and December), submit a report indicating the nature and concentration of pollutants in the discharge which are limited by pretreatment standards and the measured or estimated average and maximum daily flows for the reporting period. All periodic compliance reports must be signed and certified in accordance with section 34-474(3) of this division. In cases where the Pretreatment Standard requires compliance with a BMP or P2 alternative, the User must submit documentation required by the Control Authority or the Pretreatment Standard necessary to determine the compliance status of the User.

(2) All wastewater samples must be representative of the user's discharge.

(3) If a user subject to the reporting requirement in this section monitors any pollutant more frequently than required by the control authority, using the procedures prescribed in section 34-478(j) of this division, the results of this monitoring shall be included in the report.

(4) All significant industrial users shall submit a report indicating the nature and concentration of pollutants in the discharge which are limited by pretreatment standards that are taken from any permitted sample point and analyzed as outlined in 34-478(j). The SIU must submit documentation required by the CA within forty-five (45) days of the analysis.

(f) *Notification of changed conditions.* Each user must notify the control authority promptly, in writing, of any planned substantial or significant changes to the user's operations or system which might alter the nature, quality, or volume of its wastewater, including a change in the listed or characteristic hazardous wastes for which the user has submitted initial notification under 40 CFR 403.12 (p).

(1) The control authority may require the user to submit such information as may be deemed necessary to evaluate the changed condition, including the submission of a wastewater discharge permit application under section 34-474(2) of this division.

(2) The control authority may issue a wastewater discharge permit under section 34-475 of this division or modify an existing wastewater discharge permit under section 34-475(3) of this division in response to changed conditions or anticipated changed conditions.

(3) For purposes of this requirement, significant changes include, but are not

limited to, flow increases of twenty (20) percent or greater, and the discharge of any previously unreported pollutants.

(g) *Notification of potential problems.* In the case of any discharge, including, but not limited to, accidental discharges, discharges of a nonroutine, episodic nature, a noncustomary batch discharge, or a slug load, the user shall immediately telephone and notify the control authority and the appropriate wastewater treatment plant of the incident. This notification shall include the location of the discharge, type of waste, concentration and volume, if known, and corrective actions taken by the user. Within five (5) days following such discharge, the user shall submit a detailed written report describing the items as referenced in sections 34-473(4) and 34-473(5) of this division.

(h) *Notice of violation/repeat sampling and reporting.* If sampling performed by a user indicates a violation, the user must notify the Control Authority within twenty-four (24) hours of becoming aware of the violation. The user shall also repeat the sampling and analysis, and submit the results of the repeat analysis to the Control Authority within thirty (30) days after becoming aware of the violation. The user is not required to resample if the Control Authority monitors at the user's facility at least once a month, or if the Control Authority samples between the user's initial sampling and when the user receives the results of this sampling. All sampling and notification performed by the user under this section shall comply with the requirements of 40 CFR 403.12(g).

(i) *Notification of the discharge of hazardous waste.* Unless otherwise permitted by this division, the discharge of hazardous waste into the POTW is strictly prohibited and constitutes a violation of this division. Should a user discharge hazardous waste, said user must comply with the following provisions:

(1) Any user who commences the discharge of hazardous waste shall notify the control authority, the POTW, the EPA regional waste management division director, and the TCEQ, in writing, of any discharge into the POTW of a substance which, if otherwise disposed of, would be a hazardous waste under 40 CFR Part 261. Such notification must include the name of the hazardous waste as set forth in 40 CFR Part 261, the EPA hazardous waste number, and the type of discharge (continuous, batch, or other). All SIU's who commence discharging after the effective date of this rule shall provide notification no later than one hundred and eighty (180) days after the discharge of the listed or characteristic hazardous waste. Any notification under this paragraph need be submitted only once for each hazardous waste discharged. The notification requirement in this section does not apply to pollutants already reported by users subject to categorical pretreatment standards under the self-monitoring requirements of sections 34-478(a), 34-478(c) and 34-478(d) of this division.

(2) In the case of any new regulations under Section 3001 of RCRA identifying additional characteristics of hazardous waste or listing any additional substance as a hazardous waste, the user must notify the control authority, the EPA regional waste management division director, and the TCEQ of the discharge of such substance within ninety (90) days of the effective date of such regulations.

(3) In the case of any notification made under this section, the user shall certify that it has a program in place to reduce the volume and toxicity of hazardous wastes generated to the degree it has determined to be economically practical.

(4) This provision does not create a right to discharge any substance not otherwise permitted to be discharged by this division, a permit issued thereunder, or any applicable federal or state law.

(j) *Analytical requirements.* All pollutant analyses, including sampling techniques, to be submitted as part of a wastewater discharge permit application or report shall be performed in accordance with the techniques prescribed in 40 CFR Part 136, unless otherwise specified in

an applicable categorical pretreatment standard. If 40 CFR Part 136 does not contain sampling or analytical techniques for the pollutant in question, sampling and analyses must be performed in accordance with procedures approved by EPA. All analytical results submitted to the control authority shall include supporting quality assurance/quality control documentation.

(k) *Sample collection.* All sample collection should be performed pursuant to the applicable requirements of 40 CFR 403.12 and by appropriate EPA guidance, including preservation and compositing techniques.

(1) Except as indicated in subparagraph (b), the user must collect wastewater samples using flow proportional composite collection techniques. In the event flow proportional sampling is not infeasible, the control authority may authorize the use of time proportional sampling or a minimum of four (4) grab samples where the user demonstrates that this will provide a representative sample of the effluent being discharged. In addition, grab samples may be required to show compliance with instantaneous discharge limits. IU facilities that discharge batch discharges or have discharge that are less than twenty-four (24) hours in duration must have sampling collection techniques documented in the IU discharge permit. Self-monitoring samples collected must still provide a representative sample of normal daily regulated processes and activities.

(2) Samples for compliance monitoring for oil and grease, temperature, pH, cyanide, phenols, sulfides, total residual chlorine and volatile organic compounds must be obtained using grab collection techniques and follow preservation and compositing techniques as outlined in the 40 CFR § 403.12 and 40 CFR § 136.

(3) Any change to the permitted sampling locations requires prior notification and approval by the control authority.

(4) For sampling required in support of BMR and ninety-day reports required in 40 CFR 403.12 a minimum of four (4) grab samples are required for pH, cyanide, total phenols, O&G, sulfide and VOCs for new IUs, existing IUs that make changes or install new treatment, for existing IUs for which historical sampling data does not exist or in cases where the existing data does not represent the current discharge and could not be used to justify a lower number of minimum grab samples.

(l) *Timing.* Written reports will be deemed to have been submitted on the date postmarked. For reports which are not transmitted through or by a mail facility serviced by the United States Postal Service, the date of receipt of the report shall govern.

(m) *Record keeping.* Users subject to the reporting requirements of this division shall retain, and make available for inspection and copying, all records of information obtained pursuant to any monitoring activities required by this division and any additional records of information obtained pursuant to monitoring activities undertaken by the user independent of such requirements, and documentation associated with Best Management Practices established under subsection 34-472(4)(c). Records shall include the date, exact place, method, and time of sampling, and the name of the person(s) taking the samples; the dates analyses were performed; who performed the analyses; the analytical techniques or methods used; and the results of such analyses. Documentation shall include all necessary data and reports necessary to show compliance with the narrative BMP as described in the IU Permit. These records shall remain available for a period of at least three (3) years by both the IU and CA. This period shall be automatically extended for the duration of any litigation concerning the user or the control authority, or where the user has been specifically notified of a longer retention period by the control authority.

For DIUs the maintenance records shall include the following documentation:

- The date;
- Person conducting the inspection;

- Results of the inspection of each amalgam separator;
- A summary of any action or repairs needed;
- The type of amalgam retaining container or equivalent;
- The dates that amalgam is collected or shipped for proper disposal in accordance with 40 CFR § 261.5(g)(3);
- The name of the treatment, storage and disposal facility receiving the containers;
- Repair or replacement of the device including the date, person making the repair or replacement and a description of the repair or replacement to include the make and model.

A copy of the manufactures operating manual shall be available onsite for the current device. These records shall remain available for a period of at least three (3) years by both the IU and the control authority. This period shall be automatically extended for the duration of any litigation concerning the user or the control authority, or where the user has been specifically notified of a longer retention period by the control authority.

(n) *DIU one-time compliance reporting*. Existing DIU established prior to July 14, 2017 must install compliant amalgam separators by July 14, 2020 and complete a one-time compliance report as described in 40 CFR § 411 by October 12, 2020 or ninety (90) days after transfer of ownership. New DIU established on or after July 14, 2017 must install complaint amalgam separators prior to any discharge to the POTW and complete a one-time compliance report as outlined in 40 CFR § 411 no later than ninety (90) days following the introduction of wastewater into the POTW. The DIU shall submit a copy of the one-time compliance report either online or by mail to the control authority as required.

(o) Existing or new industrial users having a pretreatment standard or permit requirement implemented with or met by a BMP requirement shall report information as may be necessary to determine compliance with the standard, including, but not limited to, baseline monitoring reports, ninety-day compliance reports, semi-annual reports and compliance milestone reports or other reports as may be required by individual permits or BMP programs.
(Ord. No. 81771, § 2(App. I), 3-2-95; Ord. No. 85765, § 1, 3-20-97; Ord. No. 99480, § 1(Exh. 1), 7-22-04; Ord. No. 2014-06-19-0472, § 1(Exh. A), 6-19-14; Ord. No. 2019-02-14-0123, § 1(Att. I), 2-14-19; Ord. No. 2021-04-29-0283, § 1(Att. I), 4-29-21)

Sec. 34-479. Confidential information.

Information and data on a user obtained from reports, surveys, wastewater discharge permit applications, wastewater discharge permits, and monitoring programs, and from the control authority's inspection and sampling activities, shall be available to the public without restriction, unless the user specifically requests in writing, and is able to demonstrate to the satisfaction of the Control Authority, that the release of such information would divulge information, processes, or methods of production entitled to protection as trade secrets under applicable state law or federal law. Any such request must be asserted at the time of submission of the information or data. When requested and demonstrated by the user furnishing a report that such information should be held confidential, the portions of a report which might disclose trade secrets or secret processes shall be stamped "confidential business information" on each page containing such information and shall not be made available for inspection by the public, but shall be made available immediately upon request to governmental agencies for uses related to the NPDES/TPDES program or pretreatment program, and in enforcement proceedings involving the person furnishing the report. Wastewater constituents and characteristics and other "effluent data" as defined by 40 CFR 2.302 will not be recognized as confidential information and will be available to the public without restriction.
(Ord. No. 81771, § 2(App. I), 3-2-95; Ord. No. 85765, § 1, 3-20-97; Ord. No. 99480, § 1(Exh. 1), 7-22-04)

Sec. 34-480. Publication of users in significant noncompliance.

The control authority shall publish annually, in any paper of general circulation within the

jurisdiction served by the POTW that provides meaningful public notice, a list of the users which, during the previous twelve (12) months, were in significant noncompliance with applicable pretreatment standards and requirements as defined in section 34-471.

(Ord. No. 81771, § 2(App. I), 3-2-95; Ord. No. 85765, § 1, 3-20-97; Ord. No. 99480, § 1(Exh. 1), 7-22-04; Ord. No. 2014-06-19-0472, § 1(Exh. A), 6-19-14)

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Sec. 34-481. Enforcement.

Users who violate any term or condition of this division or of their permit shall be subject to enforcement action by the control authority. Such enforcement action will be applied in accordance with the enforcement response plan and may include legal action or other appropriate enforcement remedies as provided for below:

(1) *Enforcement response plan.* In accordance with 40 CFR 403.8(f)(5)(ii), the control authority has in use an enforcement response plan (ERP), including an enforcement response guide (ERG) which shall be used by the control authority in initiating and, if necessary, in escalating, enforcement responses with regard to any instance of user noncompliance. The ERP is subject to change as required, and is consistent with approval authority procedures and guidelines.

(2) *Legal action.* In addition to any other remedies provided by this division, the control authority may, at any time, seek legal and/or equitable remedies, or prosecute criminal charges against any person, corporation or other entity believed to be in violation of this division, the provisions of an industrial wastewater discharge permit and/or any federal or state law or regulations governing water quality or industrial wastewater pretreatment over which the control authority has been given enforcement powers. The control authority legal staff is hereby authorized and instructed to commence such actions for appropriate legal and/or equitable relief in courts having proper jurisdiction and may seek civil penalties and any other legal or equitable relief available under common law, Chapter 54 of the Texas Local Government Code, or any other applicable local, state, or federal code or statute. The control authority may require that an enforcement meeting be held prior to implementing legal action; however, such a meeting shall not be a bar against or prerequisite for taking any enforcement action against the user.

(3) *Notice of violation (NOV).* When the control authority determines that a user has violated, or continues to violate, any provision of this division, a wastewater discharge permit or order issued hereunder, or any other pretreatment standard or requirement, the control authority may serve (either personally or by registered or certified mail, return receipt requested) upon that user a written notice of violation. Within fifteen (15) working days of the mailing date or personal delivery date of such notice, an explanation for the violation and measures taken and/or to be taken for the satisfactory correction and prevention thereof, to include specific required actions, shall be submitted by the user to the control authority. Submission of this response in no way relieves the user of liability for any violations occurring before or after receipt of the notice of violation. Nothing in this section shall limit the authority of the control authority to take any action, including emergency actions or any other enforcement action, without first issuing a notice of violation.

(4) *Response by the industrial user to the notice of violation.* The industrial user responding to receipt of a notice of violation shall file a written response in the following form:

(a) The industrial user shall submit a written report within the fifteen (15) working days designated in section 34-481(3) to the director. If the violation involves a discharge that is prohibited, or exceeds quantity, quality, or concentration limitations, the report shall contain information regarding the time, date, location, cause, source, quantity, quality and concentration of the discharge and the corrective measures actually taken, or to be taken, by the industrial user to correct and prevent any similar recurring discharges. If the violation is an administrative or procedural violation, the report shall contain infor-

mation regarding corrective measures and time schedules the industrial user has adopted to assure expeditious compliance.

(b) Should the recipient of a notice of violation fail to respond in writing to the director within the initial fifteen (15) working day response period as required in section 34-481(3), above, the user shall be considered in violation of this division with each day resulting in a separate violation. Such failure to respond may be cited by the director in any legal proceeding in the appropriate municipal, county, district, or federal court.

(5) *Injunctive relief.* When the control authority finds that a user has violated, or continues to violate, any provision of this division, a wastewater discharge permit, or order issued hereunder, or any other pretreatment standard or requirement, the control authority may petition the court through the control authority legal staff for the issuance of a temporary or permanent injunction, as appropriate, which restrains or compels the specific performance of the wastewater discharge permit, order, or other requirement imposed by this division on activities of the user. The control authority may also seek such other action as is appropriate for legal and/or equitable relief, including a requirement for the user to conduct environmental remediation. A petition for injunctive relief shall not be a bar against, or a prerequisite for, taking any other action against a user.

(6) *Consent orders.* The director or his designated representative is hereby empowered to enter into consent orders, assurances of voluntary compliance, establishing an agreement with any user responsible for noncompliance. Such orders will include specific action to be taken by the user to correct the noncompliance within a time period also specified by the order. Consent orders shall have legal force and effect and shall be judicially enforceable. The director may require that a compliance schedule pursuant to sections 34-478(1)(c)(7) and 34-478(3) of this division be included and followed as a condition of the order. No order shall in any way waive a national categorical pretreatment standard.

(7) *Compliance schedule.* The compliance schedule is discussed in sections 34-478(1)(c)(7) and 34-478(3) of this division.

(8) *Compliance orders.* When the director or his designated representative finds that a user has violated or continues to violate the division, wastewater discharge permits or orders issued hereunder, or any other pretreatment standard or requirement, he may issue an order to the user responsible for the discharge directing that the user come into compliance within fifteen (15) calendar days. If the user does not come into compliance within fifteen (15) calendar days, sewer service shall be discontinued unless adequate treatment facilities, devices, or other related appurtenances are installed and properly operated. Compliance orders may also contain other requirements to address the noncompliance, including additional self-monitoring and/or management practices designed to minimize the amount of pollutants discharged to the sewer. A compliance order may not extend the deadline for compliance established for a federal pretreatment standard or requirement, nor does a compliance order release the user of liability for any violation, including any continuing violation. Issuance of a compliance order shall not be a prerequisite to taking any other action against the user.

(9) *Emergency suspension.* The director may unilaterally order the suspension of water and/or wastewater service(s) to any user in order to prevent or eliminate an indirect discharge which may cause imminent, serious endangerment to the health or safety of any person, significant damage to the environment, significant interference with the POTW, or violations of

the Control Authority, TCEQ or NPDES permit conditions. Concurrent with ordering such a suspension, the director shall issue a written report containing information and investigative data and the notice of violation and suspension order upon which the director relies in ordering the suspension of service(s). A copy of this report will be expeditiously forwarded to the affected industrial user.

(a) The director shall order reinstatement of any discontinued water and/or wastewater service(s) upon presentation to him by the industrial user of a registered professional engineer's report or other written proof acceptable to the control authority that the dangerous discharge has been eliminated and that recurrence is not likely.

(b) Costs incurred by the control authority or its agents in detecting, investigating, monitoring, measuring and eliminating the dangerous discharge, along with any disconnect and reconnect fees, shall be reimbursed to the control authority by the user(s) responsible for the dangerous discharge within sixty (60) days of billing. Any property damage to the POTW or its appurtenant structures resulting from the dangerous discharge shall also be borne by the user(s) responsible for the discharge.

(c) A user that is responsible, in whole or in part, for any discharge presenting imminent endangerment shall submit a detailed written statement, describing the causes of the harmful contribution and the measures taken to prevent any future occurrence, to the control authority prior to the date of any show cause or termination hearing under sections 34-481(10) and 34-481(11) of this division.

(10) *Cease and desist orders.* When the control authority finds that a user has violated, or continues to violate, any provision of this division, a wastewater discharge permit or order issued hereunder, or any other pretreatment standard or requirement, or that the user's past violations are likely to recur, the director may issue an order to the user directing it to cease and desist all such violations and directing the user to:

(a) Immediately comply with all requirements; and

(b) Take such appropriate remedial or preventive action as may be needed to properly address a continuing or threatened violation, including halting operations and/or terminating the discharge.

Issuance of a cease and desist order shall not be a bar against, or a prerequisite for, taking any other action against the user.

(11) *Termination of discharge.* In addition to other provisions of this division, any user who violates the following conditions of this division, wastewater discharge permits, or orders issued hereunder, is subject to discharge termination:

(a) Violation of wastewater discharge permit conditions;

(b) Failure to accurately report the wastewater constituents and characteristics of its discharge;

(c) Failure to report significant changes in operations or wastewater volume, constituents and characteristics prior to discharge;

(d) Refusal of reasonable access to the user's premises for the purpose of inspection, monitoring or sampling;

(e) Violation of the pretreatment standards in section 34-472 of this division.

(f) Failure to provide, operate and maintain, at all times, wastewater pretreatment equipment, as is necessary to comply with this division.

(Ord. No. 81771, § 2(App. I), 3-2-95; Ord. No. 85765, § 1, 3-20-97; Ord. No. 99480, § 1(Exh. 1), 7-22-04; Ord. No. 2014-06-19-0472, § 1(Exh. A), 6-19-14)

Sec. 34-482. Penalties.

(1) *Penalties for violations.*

(a) *Criminal.* A conviction for violation of this division shall constitute a class C misdemeanor. A person convicted of a violation of this division shall be fined a minimum amount of not less than two hundred dollars ($200.00) per violation and a maximum amount of not more than two thousand dollars ($2,000.00) per violation. Each violation of a particular section of this division shall constitute a separate offense, and each day an offense continues shall be considered a new violation for purposes of enforcing this division. A culpable mental state is not required to prove an offense under this division.

(b) *Civil.* A civil penalty in an amount not to exceed five thousand dollars ($5,000.00) per violation of this division may be imposed. Each violation of a particular section of this division shall constitute a separate offense, and each day such offense continues shall be considered a new violation for purposes of enforcing this division, and calculating the amount of civil penalties.

(2) *Falsifying information.* Any person who knowingly makes any false statement, representation or certification in any application, record, report, plan, or other document filed or required to be maintained pursuant to this division or pursuant to any condition or provision of an industrial wastewater discharge permit, or who falsifies, tampers with, or knowingly renders inoperable monitoring, sampling or surveillance devices or improperly impedes an inspection procedure required or authorized under this division and/or any industrial wastewater discharge permit, shall upon conviction, be punished by a criminal fine of not less than two hundred dollars ($200.00) or more than two thousand dollars ($2,000.00) or a civil penalty not to exceed five thousand dollars ($5,000.00) per violation per day. A person found guilty of damaging equipment used or necessary for monitoring compliance with an industrial wastewater discharge permit and/or this division, shall also be liable for the cost associated with replacing or repairing such equipment. Reports and other documents required to be submitted or maintained in accordance with 40 CFR 403.12 shall further be subject to Provisions Governing Fraud and False Statements as provided for at 40 CFR 403.12(n).

(3) *Damage, theft and vandalism.* A person found responsible of damaging, stealing, or vandalizing Control Authority equipment, used or necessary for monitoring compliance with an industrial wastewater discharge permit and/or this division, shall also be liable for the cost associated with replacement or repair of such equipment.

(4) *Remedies nonexclusive.* The remedies provided for in this division are not exclusive. The control authority may take any, all, or any combination of these actions against a noncompliant user. Enforcement of pretreatment violations will generally be in accordance with the control authority enforcement response plan. However, the control authority may take other action against any user when the circumstances warrant. Further, the control authority is empowered to take more than one enforcement action against any noncompliant user.

(Ord. No. 81771, § 2(App. I), 3-2-95; Ord. No. 85765, § 1, 3-20-97; Ord. No. 99480, § 1(Exh. 1), 7-22-04)

Sec. 34-483. Supplemental enforcement action.

(1) *Performance bonds.* The control authority may decline to issue or reissue a wastewater discharge permit to any user who has failed to comply with any provision of this division, a previous wastewater discharge permit, or order issued hereunder, or any other pretreatment

standard or requirement, unless such user first files a satisfactory bond, payable to the control authority, in a sum not to exceed a value determined by the control authority to be necessary to achieve consistent compliance.

(2) *Liability insurance.* The control authority may decline to issue or reissue a wastewater discharge permit to any user who has failed to comply with any provision of this division, a previous wastewater discharge permit, or order issued hereunder, or any other pretreatment standard or requirement, unless the user first submits proof that it has obtained financial assurances sufficient to restore or repair damage to the POTW caused by its discharge.

(3) *Water supply severance.* Whenever a user has violated or continues to violate any provision of this division, a wastewater discharge permit, or order issued hereunder, or any other pretreatment standard or requirement, water service to the user may be terminated. Service will only recommence, at the user's expense, after it has satisfactorily demonstrated its ability to comply.

(4) *Public nuisances.* A violation of any provision of this division, a wastewater discharge permit, or order issued hereunder, or any other pretreatment standard or requirement is hereby declared a public nuisance and shall be corrected or abated as directed by the control authority. Any person(s) creating a public nuisance shall be subject to the provisions of the City Code governing such nuisances, including reimbursing the control authority for any costs incurred in removing, abating, or remedying said nuisance, which shall include, but is not limited to, industrial waste solids accumulation wastewater odors, vapors, and/or objectionable color(s) of the sanitary and/or storm sewer.

(Ord. No. 81771, § 2(App. I), 3-2-95; Ord. No. 85765, § 1, 3-20-97; Ord. No. 99480, § 1(Exh. 1), 7-22-04)

Sec. 34-484. Fees.

It is the purpose of this section to provide for the recovery of costs from users of the control authority wastewater disposal system for the implementation and continued operation of the pretreatment program established herein. All industrial users shall pay the following fees, as appropriate, and in accordance with the current fee schedule, within thirty (30) days of billing:

(a) A permit application fee;

(b) A permit fee;

(c) Sampling fee;

(d) Analysis fee;

(e) Environmental assessment;

(f) Other fees as the control authority may deem necessary to carry out the requirements contained herein, such as, but not limited to emergency response fees, special sampling fees, monitoring equipment reset fees, etc. These fees relate solely to the matters covered by this division and are separate from all other fees, fines, and penalties chargeable by the control authority or any other agency.

The special services charges outlined in Schedule E, industrial waste fee schedule, relating to industrial waste permits and services shall be lawful rates charged by the system effective January 1, 2025. The Schedule E charges shall be adjusted on January 1 of each year thereafter by the percentage difference (greater than zero (0)) between the Consumer Price Index for All Urban Consumers (CPI-U) as it is calculated by the United States Bureau of Labor Statistics at the end of the month of July prior to the next year and as it was calculated at the end of the month of July one (1) year earlier, and subsequently rounded to the nearest dollar. SAWS will periodically perform a cost of service analysis to ensure that the fees charged do not exceed the cost of providing the services.

(Ord. No. 81771, § 2(App. I), 3-2-95; Ord. No. 85765, § 1, 3-20-97; Ord. No. 99480, § 1(Exh. 1), 7-22-04; Ord. No. 2007-12-13-1345, § 2(Att. B), 12-13-07; Ord. No. 2011-12-08-1004, § 2(Exh. L), 12-8-11; Ord. No. 2015-11-19-0956, § 4(Att. III), 11-19-15, Res. No. 16-302, Att. IV; Ord. No. 2017-12-07-0928, § 3(Att. II), 12-7-17; Res. No. 18-262, 11-13-18; Ord. No. 2019-02-14-0123, § 1(Att. I), 2-14-19; Res. No. 19-280, 7(Att. V), 11-5-19; Ord. No. 2022-11-10-0867, § 2(Att. II), 11-10-22; Res. No. 2023-198, 10-3-23; Res. No. 2024-227, § 7(Att. IV), 11-5-24)

Secs. 34-485—34-510. Reserved.

DIVISION 4. LIQUID WASTE TRANSPORTATION AND DISPOSAL REGULATIONS

Sec. 34-511. Definitions.

For the purpose of this division, the following words and phrases shall have the meanings respectively described to them by this section unless the context requires otherwise.

CEO. The chief executive officer of the San Antonio Water System.

City. The City of San Antonio, Texas as represented by the official acts of the city council and council designated representatives.

Commercial vehicle wash. A business enterprise in a fixed location at which vehicle washing (conveyorized, self service, or roll-over/automatic) is offered to the public for a fee, and which utilizes wastewater pretreatment (i.e. grit trap(s)) to process wastewater prior to discharge into the public sanitary sewer collection system.

Department. The San Antonio water system, resource protection and compliance department.

Director. The director of the resource protection and compliance department or his or her designated representative or agent.

Discharge. The unpermitted disposal, deposit, injection, dumping, spilling, leaking or placing of any liquid waste including but not limited to solid or semi-solid grease trap waste, grit trap waste, and/or septic tank waste into or on any land, water, sanitary or storm sewer facilities so as to cause such waste or any constituent thereof to adversely enter the environment, or be adversely emitted into the air or into any water including ground waters.

Disposal site. A permitted facility or part of a permitted facility, including collection sewers and sludge handling facilities at which liquid wastes is approved to be collected, transported, treated, and intentionally disposed of by conveyance to receiving waters and/or lands. These types of facilities must be classified as either a publicly owned treatment work (POTW), or as a type I (landfill) or type V (other, i.e. liquid processing), type VI (experimental facilities) or type VII (land application for beneficial use) Municipal Solid Waste Facility as defined under 40 CFR part 257 and TAC, Part IX, Chapter 330, Subchapter D, Section 330.41.

Disposal site operator. A person, firm, corporation, municipal corporation, or utility permitted or registered by the appropriate state and/or federal regulatory agencies to engage in receiving, storing, transferring, processing and/or ultimately disposing of liquid waste, including but not limited to, grease trap waste, grit trap waste, and septage.

Division. The San Antonio Water System Resource Compliance Division.

Generator. A person who causes, creates, generates, stores or otherwise produces liquid waste, including but not limited to grease trap waste, grit trap waste and septage as a byproduct of some domestic or non-domestic activity.

Grease trap. A receptacle utilized by commercial or industrial generators of liquid waste to intercept, collect and restrict the passage of organic, inorganic, greasy or fatty liquid, semiliquid, and/or solid wastes into both public and private sanitary sewers to which the receptacle is directly or indirectly connected.

Grease trap waste. Any organic, inorganic, greasy or fatty liquid, semi-liq-

uid, and/or solid wastes into both public and private sanitary sewers to which the receptacle is directly or indirectly connected.

Grease trap waste. Any organic, inorganic, greasy or fatty liquid, semi-liquid, and/or solid wastes collected by and ultimately removed from a grease trap for proper disposal.

Grit trap. A receptacle utilized by commercial or industrial generators of liquid waste to intercept, collect and restrict the passage of petroleum-based oil and grease wastes and inorganic or other solids into both private and public sanitary sewers to which the receptacle is directly or indirectly connected. This definition shall include waste oil recovery traps and sumps that are designed to recover waste oils and intercept the passage of oils and solids generated from a commercial operation into the sanitary sewer system.

Grit trap waste. Oil and grease wastes, and inorganic solids generated by commercial, industrial, automotive or heavy machinery repair and/or washing facilities that are collected by and ultimately removed from a grit trap for disposal. This definition shall include wastes removed from a waste oil recovery trap, excluding oils recovered for recycling.

Hazardous waste. A solid waste, or combination of solid wastes, which, because of its quantity, concentration, or physical, chemical, or infectious characteristic may: (a) cause, or significantly contribute to an increase in mortality or an increase in serious irreversible, or incapacitating reversible illness; or (b) pose a substantial present or potential hazard to human health or the environment when improperly treated, stored, transported, or disposed of, or otherwise managed or (c) is identified, classified or listed as a hazardous waste as defined by 40 CFR Part 261.3.

Liquid waste. Water-borne solids and liquids containing dissolved or suspended waste materials, including but not limited to, septage and wastes from grease traps and grit traps.

Manager. The person responsible for conducting, supervising, managing or representing the business activities of a generator or transporter.

Manifest. The written, multi-part documentation required to be in the possession of the transporter enabling disposal of hauled grit trap waste, grease trap waste, and septage at a permitted or registered disposal site as provided for in section 34-516 of this division.

Manifest system. A record keeping and accounting system consisting of a multi-paged manifest booklet and other forms used to document specific data regarding the point of generation, transportation, volume and disposal of grit trap waste, grease trap waste, and septage.

Mobile processing vehicle. A liquid waste transportation vehicle which is designed to separate water from the liquid waste while the vehicle is in transit.

Mobile waste generator. The owner or operator of a vehicle on which liquid waste is generated and stored in a holding tank. Examples include recreational vehicles and tour buses.

Permit. The formal written control document issued by the San Antonio Water System to a transporter which entitles such transporter to collect, transport and dispose of grease trap waste, grit trap waste and septage at a permitted or registered treatment storage, or disposal site or facility, and regulates said activities.

Permittee. A person issued a permit under this division.

Person. An individual, corporation (including a government corporation), organization, state or federal governmental subdivision or agency, political subdivision of a state, interstate agency or body, business, trust, partnership, association, firm, company, joint stock company, commission, or any other legal entity.

Regional agent boundary. The geographic area within which the San Antonio Water System is the designated responsible governmental agency to construct, operate, and maintain regional sanitary sewerage systems pursuant to the authority of Texas Water Quality Board Order No. 72-0120-11 passed and approved on January 20, 1972, as may be amended.

Sanitary sewer. A system of pipes, conduit, and treatment facilities owned and/or operated by the

San Antonio Water System which collect, transport, and treat sanitary sewage, and to which storm, surface, and ground waters are not intentionally or normally admitted.

SAWS. The City of San Antonio, acting by and through the San Antonio Water System permit, Ordinance No. 77784 as amended.

Septage. Liquid wastes and sludges containing sufficient liquid content, normally more than eighty-five (85) percent, to permit flow by gravity or minimal pumping, which is removed from a portable toilet, chemical toilet, septic tank (as used herein), or cesspool. Septage does not include non-domestic wastes from commercial or industrial establishments.

Shall. The word "shall" whenever used in this article, will be interpreted in its mandatory sense; "may" is permissive.

Tank. A receptacle device or structure designed to contain an accumulation of liquid waste including but not limited to grease trap waste, grit trap waste, and septage which is constructed of materials (e.g., concrete, steel, alloy, fiberglass, plastic, etc.) manufactured to provide appropriate structural support for the containment.

TCEQ. Texas commission on environmental quality.

Transporter. A person who utilizes a vehicle to transport liquid waste which is:

(a) Disposed of within the regional agent boundary; or

(b) Transferred within the regional agent boundary for the purpose of disposal; or

(c) Collected from a generator or wastehauler within the regional agent boundary.

Transfer station. A fixed facility used for transferring liquid waste from collection vehicles to long haul vehicles (one transportation unit to another transportation unit), which must be registered or permitted through TCEQ.

Trip ticket. A coupon purchased from the control authority for the disposal of septic or portable/chemical toilet waste at the authorized the control authority disposal facility.

Vehicle. A mobile receptacle or device in which or by which liquid waste may be transported upon a public street or highway.

Vehicle wash grit drying facility. A facility constructed and maintained at a commercial vehicle wash that is designed to dry grit trap wastes from commercial vehicle wash facilities and which has registered with the city's water system's resource compliance division to perform such activity.
(Ord. No. 80574, § 14, 8-4-94; Ord. No. 85765, § 2, 3-20-97; Ord. No. 99480, § 1(Exh. 1), 7-22-04)

Sec. 34-512. Liquid waste transportation.

(1) *General.* Any person using the streets and/or rights-of-way of the city to transport liquid waste must exercise reasonable, prudent and sufficient care when undertaking such activity in order to preserve the health, safety and general welfare of the community. In order to engage in such activity the transporter must obtain all necessary documents, and comply with all procedures required by local, state and federal regulations.

(2) *Spills.* In the event of a spill during collection or transport, the transporter shall immediately telephone the San Antonio Water System, Resource Compliance Division, at the telephone number listed in their permit. Notifications made pursuant to this section shall, at a minimum, provide the following:

(a) The time the discharge occurred;

(b) The location of the discharge;

(c) The type of waste discharged (including its concentration, volume, known dangerous characteristics, etc.);

(d) Any corrective actions including diking, if any, taken by the transporter;

(e) Any other conditions, factors or circumstances that would indicate any need for expeditious, specialized or unique response to the discharge.

The transporter shall take any and all action as may be required by local, state, or federal officials having jurisdiction so that the discharge will not present a public health or environmental

hazard. Such action may include diking, vacuuming, flushing, applying chemical agents or otherwise neutralizing the discharge.

(3) *Responsibilities.* Failure to promptly and properly notify the appropriate jurisdictional authorities of a spill and take such action as required by said authorities shall constitute a violation of this division.
(Ord. No. 80574, § 14, 8-4-94; Ord. No. 85765, § 2, 3-20-97; Ord. No. 99480, § 1(Exh. 1), 7-22-04)

Sec. 34-513. Permit requirements.

(1) *General.* A person shall be in violation of this division if he operates or causes the operation of a vehicle on the city streets or public rights-of-way for the purpose of collecting, transporting, or disposing of grease trap waste, grit trap waste, septage, or other liquid wastes without first obtaining a liquid waste transportation permit from the director or his or her designated representative. For the purposes of this section, each instance of transporting, collecting, or disposal of such wastes without a permit shall be considered a separate violation.

(2) *Permit application.* In addition to complying with the proper registration procedures established by the state, a person intending to engage in the activity of transporting grit trap waste, grease trap waste or septage must first submit a permit application to the city water system, resource compliance division and therein supply the department with the following information and documentation:

(a) Name, business and mailing address(es), and telephone number of the applicant transporter.

(b) The trade name under which the applicant transports or intends to transport liquid waste.

(c) The number and type of vehicles and their tank volumes the applicant shall operate together with a general physical description or manufacturer's trade description of each vehicle; the registration number assigned to the company by the state; and a photocopy of the driver's license of all vehicle operators under the employ of the applicant.

(d) The period of time the applicant has been engaged in the activity of transporting grit trap waste, grease trap waste, and septage, and the daily hours of operation of his intended transportation activity.

(e) A statement setting out any record of criminal convictions against the applicant, or anyone under his employ, resulting from the unlawful operation of a vehicle used to transport liquid waste, including grease trap waste, grit trap waste, and septage.

(f) Documentation evidencing that the applicant has obtained the necessary insurance required under this division.

(g) Any other requested relevant information which bears a reasonable relationship to the regulation of permittees under this division and is necessary to evaluate the permit application.

(3) *Investigation of information set out in application.* The staff of the control authority may conduct an investigation to determine the accuracy of information supplied by the applicant prior to the issuance of a permit. Supplying false information to the department shall be grounds for refusal to grant a permit or revocation of a permit if already issued. The transporter shall update information contained in the application, in writing, to reflect any changes in the information required by the initial application prior to making these operational changes.

(4) *Insurance requirements.*

(a) Prior to the issuance of a permit, the applicant must file with the city water system, evidence (certificate of insurance) of a policy of automobile liability insurance and thereafter keep same in full force and effect with an insurance company authorized to do business in the state. The policy shall insure the public against any loss or damage that may result to any person or property from the operation of a defective vehicle or negli-

gence of the owner or any person driving or otherwise operating such vehicle, and the vehicle insurance provisions of such policy shall provide a minimum amount of coverage in the policy as to each and every transporter vehicle to be not less than one million dollars ($1,000,000.00) for bodily injury or death of any one person, for bodily injury or death in any one accident, for the damage to, or destruction of, property in any one accident. Coverage is to include the pollution liability endorsement with limits not less than one million dollars ($1,000,000.00). Such coverage shall be endorsed to cover the upset, overturn, and remediation of the load in transport.

(b) The certificate of insurance required by this subsection shall contain a provision requiring that the city water system be provided with thirty (30) days advance notice, in writing, of cancellation or material change in the policy. In the event of cancellation or material change in the transporter's policy, the permit shall be suspended until such time as the transporter can again secure appropriate coverage.

(5) *Vehicle inspection.* Prior to the issuance of a permit, the department shall require the applicant to submit, for inspection by the department, each vehicle which will be utilized to transport grit trap waste, grease trap waste, and/or septage. The department or its agents shall determine if the transport vehicle is constructed and equipped in accordance with section 34-514 of this division and the tanks, valves, and hoses on the vehicle are in good repair, prior to permit issuance. In addition to the initial department inspection prior to the issuance of a permit, designated employees of the department are hereby authorized to reinspect the vehicles periodically in order to observe that the vehicles are generally maintained in good repair so as not to constitute a public health hazard under the provisions of this division. These inspections may take place at any reasonable and safe location during normal business operation hours and are in no way meant to satisfy the otherwise legally mandated inspection of motor vehicle requirements of any department or agency of the state. All transport vehicles shall have a valid DPS inspection sticker properly displayed, as well as the transportation registration stickers issued by TCEQ and the control authority.

(6) *Issuance of permit.* Upon satisfying the requirements set out in section 34-513 herein, the department shall issue a permit to the applicant. The permit shall be valid for a one year period with such period terminating on December 31st of the year of issuance or reissuance. The requirements set out in sections 34-513 herein must be satisfied prior to the reissuance of a permit. Any violations of this division by a permit holder during a permit period shall constitute sufficient grounds for refusal, by the director, to reissue a permit. All permits issued hereunder shall be subject to the following terms and conditions:

(a) The city water system specifically excludes and prohibits the transporting, discharge, or disposal of hazardous wastes in vehicles permitted hereunder to carry liquid waste. Transporters carrying hazardous waste from, within or through, the regional agent boundary must first obtain the special applicable TCEQ or EPA permit(s) and use the appropriate hazardous waste transportation and disposal manifest system.

(b) Prior to the operation of any vehicle regulated by this division, each permitted transporter shall permanently mark such vehicle with specific information. All marking shall be in a color clearly contrasting with the background, in two-inch letters or larger, so as to be clearly visible at a distance of fifty (50) feet. The following information shall be place on both sides of each permitted vehicle, unless otherwise noted:

1. Company name;
2. Telephone number;
3. TCEQ authorization sticker (motorized units only);
4. TCEQ assigned registration number;

5. The Control Authority assigned permit number on both sides and on the rear of the vehicle.

   SAWS# _____

   The blank space shall contain the city water system's assigned permit number, unique to a particular vehicle;

6. SAWS authorization sticker.

The permitted transporter shall keep the TCEQ resgistration (including any amendments) and the SAWS permit in the vehicle at all times. Failure to do so will constitute a violation of this division.

(c) A permit issued under this division is non-transferable, and may be revoked by the control authority for violations by the permittee of the term(s) of the permit or of this division.

(Ord. No. 80574, § 14, 8-4-94; Ord. No. 85765, § 2, 3-20-97; Ord. No. 99480, § 1(Exh. 1), 7-22-04)

Sec. 34-514. Liquid waste vehicle specifications and maintenance requirements.

All liquid waste transportation vehicles utilizing the city streets and public rights-of-way to transport grit trap waste, grease trap waste and septage must at all operational times conform to the following vehicle specifications and maintenance requirements. Each instance of failure to do so shall constitute a separate violation of this division.

(1) *Vehicle specifications.*

(a) The vehicle must be equipped with tank(s) that is (are) firmly, securely and permanently attached to the primary structure of the vehicle in such a manner as to assure that the tank(s) will not loosen or dislodge during the transport of liquid wastes. Vehicles with portable or removable tank(s) or other containers temporarily attached or affixed to vehicles are prohibited, unless otherwise approved by the director.

(b) All piping, valves, and connectors shall be permanently attached to the tank(s) and/or vehicle.

(c) The tank(s) must be liquid tight.

(d) The tank(s) must be constructed so that every interior and exterior portion can be thoroughly cleaned.

(e) All piping, valves, and connections shall be accessible and easy to clean.

(f) The inlet, or the opening of the tank(s) shall be constructed and located so that collected waste shall not spill during filling, transfer or transport.

(g) Outlet connections shall be constructed so that no liquid waste shall discharge, leak, run or spill out from the tank(s).

(h) Outlets are to be of a design and type suitable for the liquid waste to be safely removed and be capable of controlling outflow without discharge, spillage, spray, or flooding of immediate surroundings while in use.

(i) Pumps, valves, cylinders, diaphragms and other appurtenances shall be of a design and type suitable for the liquid waste to be safely loaded, transported and removed, be capable of operation without discharge, spillage, spray or leakage, and be easily disassembled for cleaning.

(j) All vehicles used to transport liquid waste shall have sight gauges maintained in a manner which can be used to determine whether or not a vehicle is loaded and the approximate capacity. Gauges are not required to read in gallons or liters, but shall show what percentage of the tank capacity is filled.

(k) All vehicles used to transport liquid wastes shall prominently mark all discharge valves and ports. All discharge ports shall be visible and readily accessible. The position of the vacuum pump, i.e. pulling a vac-

uum into the tank or pumping air into the tank, must also be clearly labeled.

(2) *Maintenance requirements.* A liquid waste transporter shall:

(a) Maintain hoses, tanks, valves, pumps, cylinders, diaphragms, pipes, connections, and other appurtenances on a vehicle in good operation and repair and free from leaks.

(b) Provide a safety plug or cap for each inlet and outlet tank valve.

(c) Cause the vehicle exterior to be clean, vector free and relatively odor free at the beginning of each working day and provide for intermittent wash downs of vehicle exterior and wash outs of tank interiors as necessary to maintain the above conditions at all times.

(d) The permittee shall remove the control authority authorization sticker, and the control authority permit number from the vehicle when it is no longer permitted to collect, transport or dispose of liquid waste or when the vehicle ownership changes.

(Ord. No. 80574, § 14, 8-4-94; Ord. No. 85765, § 2, 3-20-97; Ord. No. 99480, § 1(Exh. 1), 7-22-04)

Sec. 34-515. Responsibilities of liquid waste transporters.

All liquid waste transporters shall conform to the following terms and conditions in collecting, transporting, and disposing of liquid waste. Any liquid waste transporter failing to comply with the responsibilities and requirements set forth below shall be in violation of this division. Each instance of non-compliance shall constitute a separate violation.

(1) *Determine nature of material.* Prior to accepting a load of liquid waste for transportation, a liquid waste transporter shall, to the best of his ability, determine the volume, nature and classification of the material to be transported and that his/her permit, vehicle and equipment are sufficient to legally and properly accept, transport, and dispose of the load without discharge, spillage, leakage of the material, or release of malodorous fumes. Upon delivery of the waste to the disposal site, the transporter shall inform the disposal site operator of the content of the waste. At the discretion of the department or the disposal site operator, the liquid waste presented for disposal may be sampled and tested prior to disposal to verify the classification, quality, concentration, character or volume of the liquid waste. The control authority cost for conducting any positive, confirming test resulting in verification of unpermitted transport or prohibited discharge shall be paid by the permittee.

(2) *Interceptor evacuation.* A liquid waste hauler shall completely evacuate all grease or grit traps and other interceptors during servicing. Further, the discharge of liquid, semi-solids, or solids back into an interceptor after servicing is strictly prohibited. Mobile processing vehicles shall not discharge separated water back into the interceptor or into the wastewater collection system.

(3) *Mixing of different types of waste.* A liquid waste transporter shall not mix incompatible wastes in the same tank load. Incompatible wastes are wastes which have different processing, storage or disposal requirements. Transporters may mix wastes with different characteristics provided the facility to which the waste is being transported is authorized to store, process or dispose of such mixed wastes.

(4) *Storage of liquid wastes.* The storage of liquid wastes in unpermitted temporary storage tanks by liquid waste transporters is prohibited. Transporters may store liquid waste in a permitted vehicle for up to four (4) days.

(5) *Utilize appropriate disposal sites.* All liquid waste transporters shall deposit wastes at a facility designated by or acceptable to the generator where the owner or opera-

tor of the disposal facility agrees to receive the wastes and the facility has written authorization by permit or registration issued by TCEQ to receive the wastes.

(6) *Utilization of manifest system by transporters of grease trap waste, grit trap waste, and septage.* all liquid waste transporters holding a the control authority permit for transporting grease trap waste, grit trap waste, or septage shall utilize the manifest system set out in section 34-516 herein. It is the responsibility of the permittee to assure that all manifests are completely and accurately filled out in a timely manner, except that liquid waste transporters will not be held accountable for the waste generator signature portion of the manifest. Generators who fail to sign a liquid waste manifest will be considered in violation of this division.

(7) Person who engage in the secondary transportation of waste (meaning receiving waste from other vehicles and transporting the waste to a disposal site) or any person choosing to transfer waste from one transport vehicle into another transport vehicle shall transfer the waste only at a registered or permitted type V transfer station. Emergency transfers may occur with prior approval from the director or his designee.

(8) Liquid waste transporters may accept commercial vehicle grit trap waste for transportation to a registered vehicle wash grit drying facility. This facility may either be located onsite or it may be located within fifty (50) miles of the interceptor if the offsite facility is owned by the same generator. The transporter shall follow the manifest procedures found in section 34-516 anytime the liquid waste is shipped from a commercial vehicle wash interceptor location to an offsite vehicle wash drying facility. The registered vehicle wash grit drying facility should be indicated on the manifest as the disposal site. A liquid waste transporter shall verify that the vehicle wash grit drying facility is registered prior to accepting or discharging commercial vehicle wash grit trap waste. Verification shall be accomplished by reviewing a copy of the registration issued by the control authority. Disposal of commercial vehicle wash grit trap wastes within the regional agent boundary at a drying facility that is not registered by the control authority will be a violation of this division.

(Ord. No. 80574, § 14, 8-4-94; Ord. No. 85765, § 2, 3-20-97; Ord. No. 99480, § 1(Exh. 1), 7-22-04)

Sec. 34-516. Manifest system.

A manifest system consisting of manifest booklets shall be used by all transporters holding the control authority permits to transport grease trap waste, grit trap waste, and septage. Each manifest shall thoroughly document the following information:

(a) The interceptor capacity, time and date of service, the quantity and type of liquid waste being transported;

(b) The generator's name, address, telephone number and signature at the time of receipt of liquid wastes by the transporter;

(c) The transporter's corporate, business or trade name, address and telephone number;

(d) The transport vehicle operator's name with signature;

(e) The transporter's permit number issued by the city water system;

(f) The registration number assigned to the transporter's vehicle by the state;

(g) The disposal site name, address, permit or registration number assigned by the state, the time and date of disposal; and

(h) The signature of the disposal site operator.

(1) *Manifest booklets.*

(a) Manifest booklets shall be purchased from the city water system in accordance with the fee schedules currently in effect. Manifest booklets shall be marked as appropriate for use

with a specific liquid waste transportation vehicle. A transporter must complete one manifest for each generator interceptor serviced, with the exception of chemical/portable toilet companies servicing their own units. Chemical/portable toilet companies servicing their own units which may be located at various locations shall be required to complete one manifest for each vehicle load transported. Each individual carbonless, print-trace manifest shall consist of five parts:

1. The white original of the manifest shall be signed by the transporter and generator at the time of the liquid waste collection.
2. The yellow copy shall be given to the generator once signed by both the transporter and generator.
3. The white original of the manifest shall be signed by the disposal site operator at the time of disposal and the pink copy maintained by the disposal site operator.
4. The green copy of the manifest shall be maintained by the transporter.
5. The goldenrod copy shall be returned to the generator within fifteen (15) days upon completion of the above steps.

It shall be the responsibility of the liquid waste transporter to return the goldenrod copy to the generator within fifteen (15) days of disposal.

Any transfer, processing or other disposal facility which ships liquid waste from their site to another disposal facility, must also follow this manifesting procedure. The waste to be shipped must be remanifested onto a new manifest, with the transfer, processing or disposal facility's location listed as the generator in the waste producer section of the manifest.

(b) The director may make administrative modifications to the manifest form used. Each manifest booklet shall contain twenty-five (25) manifests serially numbered. The department shall keep a record of the manifest serial numbers purchased by the liquid waste transporter. The department may issue more than one manifest booklet to any transporter, at the department's discretion, based on volume of business, number of trucks, etc. Additional manifest booklets may be purchased only after previously issued and completed manifest booklets have been properly returned to the department.

(c) In the event that a manifest booklet is lost or stolen, the permittee shall submit a sworn and notarized affidavit stating the circumstances surrounding the loss of the booklet, the probable contents of the wastes transported and disposed of, and efforts made to locate the booklet. After reasonable investigation by the department indicates no fraudulent or wrongful acts by the permittee, the department shall not unreasonably deny continued purchase of manifest booklets. Excessive instances of lost manifest books will be a violation of this division. More than three (3) lost books in one (1) permit year will be considered excessive.

(2) *Unlawful use of manifests.* Falsification of any information required in a manifest shall be grounds for imme-

diate suspension or revocation of the control authority liquid waste transportation permit and each instance of falsification shall be considered a separate violation of this division. The physical transfer of manifests by a permit holder to anyone other than the permittee's transportation vehicle operators or the department is prohibited. Purchase and/or resale of manifests from any source other than the department is prohibited. Each instance of purchase, transfer, or resale of manifests shall constitute a separate violation of this division.

(3) *Maintenance of manifest records.* All permittees shall maintain all transporter manifest copies for a period of five (5) years. All generators shall maintain generator manifest copies for a period of five (5) years. All disposal site operators shall maintain all disposal site manifest copies for a period of five (5) years. The department shall maintain all department manifest copies for a period of five (5) years. Should any pending administrative law proceeding or litigation mandate that such records be preserved for more than five (5) years, affected persons shall adhere to the dictates of those proceedings.

(4) *Manifest discrepancies.* A facility which receives waste must note any significant discrepancies on each copy of the manifest ticket. Manifest discrepancies are differences between the quantity or type of waste designated on the manifest, and the quantity or type of waste a facility actually received. Significant discrepancies in type are obvious differences which can be discovered by inspection or waste analysis. Significant discrepancies in quantity are:

(a) For bulk weight, variations greater than ten (10) percent in weight; and

(b) For liquids, any variation greater than fifteen (15) percent in gallons.

Upon discovering a significant discrepancy, the transporter must attempt to reconcile the discrepancy with the waste generator or owner or operator of the receiving facility (e.g., with telephone conversations). If the discrepancy is not resolved within fifteen (15) days after discovery, the transporter must immediately submit to the control authority a letter describing the discrepancy and attempts to reconcile it, and a copy of the trip ticket(s).

(5) *Notification of unpermitted transporter.* A disposal facility located within the regional agent boundary which receives liquid waste from a transporter who cannot produce a the control authority issued liquid waste transportation permit and a control authority authorization sticker shall notify the control authority within three (3) days of receiving the waste.

(Ord. No. 80574, § 14, 8-4-94; Ord. No. 85765, § 2, 3-20-97; Ord. No. 99480, § 1(Exh. 1), 7-22-04)

Sec. 34-517. Disposal site procedures.

All liquid waste transporters permitted hereunder shall follow the procedures required by the appropriate city, state, or federal authority when disposing of liquid waste in a registered or permitted disposal site under the jurisdiction of such authority. Additionally, the following procedures must be followed by liquid waste haulers holding control authority permits when disposing of septage at one of the control authority approved liquid waste disposal sites. The control authority's disposal facilities do not accept grease trap or grit trap wastes.

(1) *Disposal site entry/exit.* Control authority permit holders shall exercise caution when entering and exiting disposal sites and shall obey all traffic control regulations and especially speed limit signs and direction signs.

(2) *Disposal procedures.* A control authority permit holder shall not dispose of waste at the disposal site until authorized disposal personnel have done the following:

(a) Inspected the permit holder's permit and the control authority authorization sticker to see if they are still valid;

(b) Verified that the manifest being presented by the permittee's employee is appropriate for both the classification of waste being transported and the vehicle tank capacity being used;

(c) Signed the manifest and received the disposal site operator's copy of same; and

(d) Verified and collected the appropriate volume of trip tickets required for disposal.

A liquid waste transporter who fails to follow these procedures shall be in violation of this division.
(Ord. No. 80574, § 14, 8-4-94; Ord. No. 85765, § 2, 3-20-97; Ord. No. 99480, § 1(Exh. 1), 7-22-04)

Sec. 34-518. Responsibilities of generator and disposal site operator.

The liquid waste generators and disposal site operators shall have the following responsibilities, and failure to perform such responsibilities shall constitute a violation of this division:

(1) *Generators.*

(a) It shall be the responsibility of every generator of liquid waste to:

1. Know or ascertain the contents, characteristics and classifications of wastes generated.

2. Have liquid waste removed from his premises by a transporter holding the proper control authority, city, state, and/or federal permits or registrations required to collect and transport such waste.

3. Make a determination that the waste to be hauled under this division is non-hazardous, as required.

(b) A generator of hazardous waste, or liquid waste in combination with hazardous waste, shall only have such waste removed from his premises by a transporter holding the applicable state or federal permit or registration to transport said wastes.

(c) A generator of grease trap waste or grit trap waste shall have traps serviced as frequently as necessary to prevent bypass or overflow, and to ensure proper operation of the trap. Such generators shall, at a minimum, have grease traps and grit traps serviced quarterly or as approved by the control authority in accordance with all other provisions of this division.

(d) A generator of grit trap waste, grease trap waste or septage shall sign the manifest presented by the liquid waste transporter holding a control authority permit at the time of service and shall keep the generator manifest copies for a period of five (5) years. The records, both the generator copy (yellow) and the generator - final copy (goldenrod) shall be maintained at the location where the interceptor is located, unless a written request to store the records at a different location is submitted to the control authority for approval and the control authority approval is granted. Appropriate department personnel may inspect such receipts during normal business hours.

(e) A generator shall, in addition to the requirements above, be responsible for performing the following:

1. Install or provide a collection point for grit trap waste, grease

trap waste, or septage of a size and type specified by the appropriate city, state, or federal authority, if any such specification exists. This facility may be the same (with possible modifications or adaptations) required by the control authority pursuant to the San Antonio City Code, chapter 34, article V, division 3, as may be amended.

2. Continuously maintain the collection point in an accessible, clean, safe and proper operational condition.

3. Monitor the transporter's evacuation and cleaning of the waste interceptors.

4. Report discharges, spills or accidents involving the collection point which pose a threat to the public health or potential damage to the environment involving the collection point to the department immediately.

5. Recover all accidental spills and discharges immediately and have such waste disposed of by a transporter holding a valid permit, license or registration from the appropriate city, state, or federal authority.

(f) Generators are prohibited from placing any agent, including but not limited to emulsifiers, surface active agents, enzymes, degreasers or any type of product that will liquefy grease trap wastes, directly into a grease trap or into any drain that leads to the grease trap.

(2) *Mobile waste generators.* Liquid waste generated by bus companies, recreational vehicles or other mobile sources must be disposed into the sanitary sewer system via a cleanout designed for this purpose or at an appropriate disposal facility. It shall be considered a violation of chapter 34, article VI, division 5, section 34-702(a)(6) to allow liquid waste to discharge into a street, storm drainage system, water course or stream or other unapproved location.

(3) *Disposal site operators.* Liquid waste disposal site operators which accept liquid waste from a transporter permitted by the control authority shall comply with the terms of this division and receive waste from a transporter holding a control authority permit issued hereunder according to the requirements of the permit and this division. Every disposal site operator shall maintain the operator's copy of a manifest from a control authority liquid waste transporter permit for a period of five (5) years. The disposal site operator shall submit copies of all liquid waste manifests to the control authority on a monthly basis, by the 15th day of each month.

(4) *Commercial vehicle wash facilities.* A commercial vehicle wash facility which uses a registered vehicle wash grit drying facility shall comply with the following requirements:

(a) The commercial vehicle wash owner/operator must use a permitted liquid waste transporter to collect and dispose of commercial vehicle wash grit trap waste if public right-of-way will be used for the transportation and/or disposal of such waste while in liquid form (prior to drying).

(b) The commercial vehicle wash owner/operator must clean out each grit trap quarterly, at a minimum, or more often as needed to prevent illegal discharge of pollutants into the sanitary sewer collection system and to ensure proper operation of the grit trap(s) as a pretreatment device. Owners of facilities performing onsite self-servicing of grit traps must document the date the trap was cleaned, the approximate quantity of waste removed for drying,

the date the dried grit was sent offsite for final disposal, and the final disposal location. A control authority liquid waste transportation manifest is not required for onsite transfers, as long as the self-serving record are maintained. The commercial vehicle wash owner shall submit this information to the control authority annually by December 31 of each year.

(c) If the vehicle wash grit drying facility is located onsite and public right-of-way is not used for transferring the waste from the interceptor to the drying facility, the waste must be transferred in a manner that prevents spillage. In the event grit is spilled during the transfer, the spill must be cleaned up immediately. Grit may not be placed into a stormwater collection system.

(5) *Vehicle wash grit drying facilities.* Vehicle wash grit drying facilities shall comply with the following requirements:

(a) The submittal of a letter requesting a registration number and describing the vehicle wash grit drying facility, signed by the owner of the facility, shall be submitted to the control authority. This letter should individually list the addresses of each commercial vehicle facility that will dry its wastes at the drying facility. The control authority will issue a registration number to each drying facility.

(b) The vehicle wash grit drying facility, at a minimum, shall be constructed in a manner that is liquid tight and which ensures that all drainage from the facility, if any, is returned to the onsite sanitary sewer collection system at a point upstream from the grit trap. The drying facility must be enclosed or protected in a manner to prevent intrusion or infiltration of stormwater. Public access to the drying facility must be restricted.

(c) When commercial vehicle wash grit trap wastes are received from an offsite commercial vehicle wash facility, the drying facility must complete the disposal plant operator section of the manifest. The drying facility shall maintain the pink copy of the manifest in accordance with sections 34-516.3 and 34-518.3 and shall submit copies of all liquid waste manifests to the control authority on a monthly basis, by the 15th of each month. The drying facility may only accept wastes from commercial vehicle wash facilities owned by the same company.

(d) Commercial vehicle wash grit trap waste is considered appropriately dried when it passes TCEQ's paint filter test. Once the waste is appropriately dried, it is no longer considered liquid waste for the purpose of this division.

(e) The control authority may revoke a drying facility's registration for failure to comply with the applicable provisions of this division. In the event that the control authority revokes a facility's drying registration, the facility must maintain any onsite grit traps in accordance with this division.

(Ord. No. 80574, § 14, 8-4-94; Ord. No. 85765, § 2, 3-20-97; Ord. No. 99480, § 1(Exh. 1), 7-22-04; Ord. No. 2019-02-14-0123, § 1(Att. I), 2-14-19)

Sec. 34-519. Suspension of permit.

The director may suspend or revoke permit upon a finding by the department that a permittee, or an agent or employee of the permittee has violated any of the terms or conditions of the permit or of this division and that the number or severity of the violations justify the suspension of the permit.

(Ord. No. 80574, § 14, 8-4-94; Ord. No. 85765, § 2, 3-20-97; Ord. No. 99480, § 1(Exh. 1), 7-22-04)

Sec. 34-520. Enforcement.

(1) *Notice of alleged violations.* Whenever the director believes that any person or permittee has violated or is violating this division and/or the liquid waste transportation permit, the director or his designated representative may serve (either personally or by registered or certified mail) upon such person or permittee a written notice stating the nature of the alleged violation. The recipient of an alleged violation notice must respond in writing to the director or his designated representative within fifteen (15) working days from the receipt of such notice.

Should the recipient of an alleged violation notice fail to respond in writing to the director within the initial fifteen (15) working day response period, as outlined in section 34-520, the recipient person or permittee shall be deemed to have admitted to responsibility for the violation.

(2) *Response by person or permittee to notice of alleged violation.* The person or permittee responding to receipt of an alleged violation notice shall file written response, as required by section 34-520, in the most applicable of the following forms:

(a) Should the person or permittee admit his or her responsibility for the alleged violation, the person or permittee must submit a letter report to the director which:

1. If the nature of the violation of either the permit or this division involves a discharge or disposal of liquid waste that is prohibited herein, contain information regarding the time, date, location, cause, source, quantity, quality and concentration of the discharge or disposal and the corrective measures actually taken by the person or permittee to recover or neutralize the discharge, self-reporting notices submitted to any state, federal or other agencies having jurisdiction, and actions to be taken by the person or permittee to prevent any similar recurrent discharges or disposal.
2. If the nature of the violation of either the permit or this division involves an administrative or procedural non-compliance, the letter report shall contain information regarding corrective measures and time schedules the person or permittee has adopted to assure expeditious and continued compliance.

(b) Should the person or permittee deny his or her responsibility for the alleged violation, the person or permittee must submit a letter report to the director explaining why responsibility is being contested.

(3) *Legal action.* Despite any other provisions contained in this division, the environmental counsel for the control authority is hereby authorized to seek legal and/or equitable remedies against any person or corporation believed by the department to be violating or have violated this division, the provisions of a liquid waste transportation permit, and/or federal or state laws governing water quality, industrial wastewater pretreatment, and hazardous or non-hazardous liquid waste transportation over which the control authority has enforcement authority. A legal proceeding prosecuted under this division does not constitute a waiver by the city water system of any right the city may have to join in a legal action originating from an alternative source of law.

The city water system may commence such actions for appropriate legal and/or equitable relief in courts having proper jurisdiction and may seek civil penalties and any other legal or equitable relief available under common law, Chapter 54 of the Texas Local Government Code, or any other applicable local, state, or federal code or statute.

(4) *Penalties.*

(a) *Criminal.* A conviction for violation of this division shall constitute a class C misdemeanor. A person convicted of a violation of this division shall be fined a minimum amount of not less than two hundred dollars ($200.00) per violation and a maximum amount of not more than two thousand dollars ($2,000.00)

per violation. Each violation of a particular section of this division shall constitute a separate offense, and each day an offense continues shall be considered a new violation for purposes of enforcing this division. A culpable mental state is not required to prove an offense under this division. The president/CEO of the city water system is hereby authorized to designate qualified city water system personnel to serve notices of violations of this section and take all necessary action to file a complaint with the municipal prosecutor's office.

(b) *Civil.* A civil penalty in an amount not to exceed five thousand dollars ($5,000.00) per violation of this division may be imposed. Each violation of a particular section of this division shall constitute a separate offense, and each day such an offense continues shall be considered a new violation for purposes of enforcing this division. A culpable mental state is not required to prove an offense under this ordinance.

(Ord. No. 80574, § 14, 8-4-94; Ord. No. 85765, § 2, 3-20-97; Ord. No. 99480, § 1(Exh. 1), 7-22-04)

Sec. 34-521. Fees.

All liquid waste transporters shall pay the following fees, as appropriate, and in accordance with the current fee schedule:

(1) A permit fee for each vehicle to be permitted;

(2) A fee for each reinspection required for a vehicle to qualify for an annual liquid waste hauling permit;

(3) A sampling fee;

(4) An analysis fee;

(5) A disposal site fee for disposing of septic or chemical toilet wastes at a control authority disposal facility;

(6) A manifest booklet fee;

(7) A disposal site holiday access fee (transporters must give two (2) weeks' notice to SAWS to schedule access when fee is paid);

(8) A disposal site weekend access fee (transporters must give two (2) weeks' notice to SAWS to schedule access when fee is paid);

(9) Other fees as the control authority may deem necessary to carry out the requirements contained herein, such as, but not limited to emergency response fees or special sampling fees. These fees relate solely to the matters covered by this division and are separate from all other fees, fines and penalties chargeable by the control authority or any other agency.

The special service charges outlined in Schedule F, liquid waste hauler fee schedule, relating to liquid waste hauler permits shall be lawful rates charged by the system effective January 1, 2025. The Schedule F charges shall be adjusted on January 1 of each year thereafter by the percentage difference (greater than zero (0)) between the Consumer Price Index for All Urban Consumers (CPI-U) as it is calculated by the United States Bureau of Labor Statistics at the end of the month of July prior to the next year and as it was calculated at the end of the month of July one (1) year earlier, and subsequently rounded to the nearest dollar. SAWS will periodically perform a cost of service analysis to ensure that the fees charged do not exceed the cost of providing the services.

(Ord. No. 85765, § 2, 3-20-97; Ord. No. 99480, § 1(Exh. 1), 7-22-04; Ord. No. 2007-12-13-1345, § 2(Att. B), 12-13-07; Ord. No. 2011-12-08-1004, § 2(Exh. L), 12-8-11; Ord. No. 2015-11-19-0956, § 4(Att. III), 11-19-15, Res. No. 16-302, Att. IV; Ord. No. 2017-12-07-0928, § 3(Att. II), 12-7-17; Res. No. 18-262, 11-13-18; Res. No. 19-280, 7(Att. V), 11-5-19; Ord. No. 2022-11-10-0867, § 2(Att. II), 11-10-22; Res. No. 2023-198, 10-3-23; Res. No. 2024-227, § 7(Att. IV), 11-5-24)

Sec. 34-522. Severability.

If any word, phrase, clause, paragraph, part or provision of this division or its subsections or the

application thereof to any person or circumstance shall be held to be invalid or unconstitutional, the remainder of that subsection and of this division shall nevertheless be valid, and the city council hereby declares that the subsection would have been enacted without such invalid, or unconstitutional word, phrase, clause, paragraph, part or provision.
(Ord. No. 80574, § 14, 8-4-94; Ord. No. 85765, § 2, 3-20-97; Ord. No. 99480, § 1(Exh. 1), 7-22-04)

Sec. 34-523. Right of revision.

The city reserves the right to amend this division at any time to establish more stringent specific limitations or requirements on disposal to the regional wastewater transportation and treatment system if deemed necessary by the city to protect the collection, treatment operations and processes or to cure or prevent an effluent quality problem in potential landfill leachates, treated wastewater and/or resulting sludges. The city reserves the right to amend this division to comply with the general objectives and purposes presented in Article V, Division 3, Industrial Waste and Pretreatment.
(Ord. No. 80574, § 14, 8-4-94; Ord. No. 85765, § 2, 3-20-97; Ord. No. 99480, § 1(Exh. 1), 7-22-04)

Sec. 34-524. Conflict.

All other divisions and parts of other divisions directly conflicting with any part of this division are hereby repealed only to the extent of such direct conflict.
(Ord. No. 80574, § 14, 8-4-94; Ord. No. 85765, § 2, 3-20-97; Ord. No. 99480, § 1(Exh. 1), 7-22-04)

DIVISION 5. FATS, OILS AND GREASE

Sec. 34-525. General provisions.

(a) *Purpose.* The purpose of this division is to aid in the prevention of sanitary sewer blockages and obstructions caused by the accumulation of fats, oils and grease that are discharged into the sanitary sewer system.

(b) *Application.* This division shall apply to all food service establishments (FSEs) and food processing establishments (FPEs) that are located within the corporate limits of the city, or that are within the extraterritorial jurisdiction of the city and to all FSEs and FPEs that receive sanitary sewer service from the San Antonio Water System (SAWS) or that discharge any liquids or solids into the publicly owned treatment works (POTW).

(c) *Definitions.* As used anywhere in this division, the following terms are defined to mean:

City: The City of San Antonio, a Texas home rule municipality.

City Code: The City of San Antonio, Texas Code of Ordinances.

Commercial establishment: Any location where a person manufactures, packages, prepares, provides, serves, or makes available any meals, or food for sale, for monetary compensation, or for non-monetary consideration.

Fats, oils, or *grease:* Any animal, vegetable, or mineral fats, oils, or greases and any organic polar compounds derived from animal and/or plant sources that contain multiple carbon chain triglyceride molecules.

FPE or *FPEs:* A food processing establishment or establishments, which are any commercial establishments in which food for human consumption is manufactured or packaged.

FSE or *FSEs:* A food service establishment or establishments, which are any commercial establishments that prepare, provide, serve, or make available for human consumption meals, or any food.

Interceptor: A device for collecting, containing, or removing food wastes or fats, oils, or grease from a waste stream before entering the POTW.

Person: An individual, partnership, joint venture, firm, company, corporation, association, joint stock company, governmental entity, trust, estate, sole proprietorship, or legal entity of any kind or character.

POTW: The publicly owned treatment works that is comprised of the sanitary sewer system, including treatment plant and collection infrastructure, operated by SAWS.

SAWS: The San Antonio Water System, an agency of the city, created by City Ordinance No. 75686, passed April 30, 1992.
(Ord. No. 2011-05-12-0378, § 1(Exh. A), 5-12-11; Ord. No. 2011-12-08-1004, § 2(Exh. L), 12-8-11; Ord. No. 2014-06-19-0472, § 1(Exh. A), 6-19-14; Ord. No. 2015-11-19-0956, § 4(Att. III), 11-19-15)

Sec. 34-526. Interceptors.

(a) *Pretreatment required.* Waste pretreatment that complies with this section is required before an FSE or FPE may discharge fats, oils, or grease into the POTW.

(b) *Interceptor required.* Each FSE and FPE shall discharge all waste from sinks, dishwashers, drains, and any other fixtures or sources through which fats, oils, or grease may be discharged into the POTW into a properly maintained and functioning interceptor that complies with the requirements of chapter 10 of the City Code and the International Plumbing Code and appendices as amended that are adopted by the city in that chapter.

(c) *Existing facilities.* Existing FSEs and FPEs that are not equipped with an interceptor that complies with the requirements of chapter 10 of the City Code and the International Plumbing Code and appendices as amended that are adopted by the City in that chapter shall install such an interceptor not later than one hundred eighty (180) days after the effective date of the ordinance from which this division derives.

(d) *New facilities.* New FSEs and FPEs shall be equipped with an interceptor that complies with the requirements of chapter 10 of the City Code and the International Plumbing Code and appendices as amended that are adopted by the city in that chapter prior to commencement of any discharge into the POTW.
(Ord. No. 2011-05-12-0378, § 1(Exh. A), 5-12-11; Ord. No. 2014-06-19-0472, § 1(Exh. A), 6-19-14)

Sec. 34-527. Maintenance.

(a) *General requirements.* Each interceptor shall be continuously maintained in effective operational condition by and at the expense of the FSE or FPE that is required by this division to utilize or install the interceptor.

(b) *Frequency.* Each FSE and FPE that is required by this division to utilize or install an interceptor shall evacuate accumulated solids, fats, oils, grease and all other material(s) from each interceptor at a frequency not less often than every ninety (90) days and within two (2) working days whenever twenty-five (25) percent or more of the wetted height of the interceptor, measured from the bottom of the device to the invert of the outlet pipe, contains floating materials, sediment, fats, oils, or grease.

(1) FSEs or FPEs that conduct operations for less than one hundred twenty (120) days in a calendar year may submit a written request to SAWS to be permitted to evacuate interceptors as required by subsection 34-527(b) at a frequency less often than every ninety (90) days. The FSE or FPE submitting the request shall comply with subsection 34-527(b) unless SAWS provides written approval of a different frequency for the evacuation of the interceptors that are the subject of the request. Any revised frequency approved by SAWS for the evacuation of an interceptor shall not affect the requirement that an FSE or FPE shall evacuate an interceptor within two (2) working days whenever twenty-five (25) percent or more of an interceptor contains materials as required by subsection 34-527(b).

(2) Reserved.

(c) *Interceptor pumping and evacuation.*

(1) For each interceptor that has a capacity greater than one hundred (100) gallons, FSEs and FPEs shall use a liquid waste hauler that is permitted by SAWS to collect, transport and dispose of liquid waste pursuant to chapter 34, article V, division 4 of the City Code, to evacuate an interceptor. FSEs and FPEs shall

cause the wastes in an interceptor to be completely evacuated by a waste hauler at the time of each interceptor evacuation that is required by this division. Interceptor waste shall be disposed of only at a facility that is authorized and permitted by applicable law to receive such waste for disposal.

(2) For each interceptor that has a capacity less than or equal to one hundred (100) gallons, FSEs and FPEs may use a liquid waste hauler that is permitted by SAWS to collect, transport and dispose of liquid waste pursuant to chapter 34, article V, division 4 of the City Code, to evacuate an interceptor. FSEs and FPEs shall cause the wastes in an interceptor to be completely evacuated at the time of each interceptor evacuation that is required by this division. Interceptor waste shall be disposed of only at a facility that is authorized and permitted by applicable law to receive such waste for disposal.

(d) *Interceptor inspection.* Not less frequently than once per calendar year, each FSE and FPE shall cause a licensed plumber or other qualified professional approved by SAWS to inspect each interceptor. After evacuation of the interceptor, the licensed plumber or other qualified professional approved by SAWS shall make a visual observation of and shall photograph all inlet and outlet fittings, internal baffles, walls, floor and all other internal structures. Each FSE and FPE shall cause the licensed plumber or other qualified professional approved by SAWS conducting the inspection to provide a written report of the inspection to the FSE or FPE that includes the photographs that are required by this section and that provides the name, address and telephone number of the licensed plumber or other qualified professional approved by SAWS conducting the inspection, the date of the inspection, and a description of any defects observed during the inspection. All defects shall be corrected by each FSE or FPE within ninety (90) days of each inspection.
(Ord. No. 2011-05-12-0378, § 1(Exh. A), 5-12-11)

Sec. 34-528. Record keeping.

(a) For each interceptor that has a capacity greater than one hundred (100) gallons, each FSE and FPE shall maintain all records that document each inspection, repair, cleaning, evacuation, service, or pumping of each interceptor as required in section 34-516.

(b) For each interceptor that has a capacity less than or equal to one hundred (100) gallons, each FSE and FPE shall maintain all records that document each inspection, repair, cleaning, evacuation, service, or pumping of each interceptor as required by section 34-516, if a liquid waste hauler that is permitted by SAWS to collect, transport and dispose of liquid waste is used to evacuate an interceptor. If a permitted liquid waste hauler is not used to evacuate an interceptor, then each FSE and FPE shall maintain a cleaning log that lists the location and type of each interceptor, the date and time of each interceptor evacuation, the quantity of material removed from the interceptor, the location where the material removed from the interceptor was disposed of, and the signature of the employee performing the evacuation of the interceptor.

(c) All records required by this division shall be maintained by each FSE and FPE for a period of five (5) years after the date of the event that is the subject of the record. All such records shall be available for inspection on the premises of the FSE or FPE where the interceptor that is the subject of the record is located, unless a written request to store the records at a different location is submitted to SAWS and SAWS approves the request.
(Ord. No. 2011-05-12-0378, § 1(Exh. A), 5-12-11)

Sec. 34-529. Prohibitions.

(a) *Prohibited discharge to an interceptor.* Discharge into an interceptor of sanitary waste, solvents, emulsifiers, enzymes, chemicals, products, or bacteria that digest, liquefy, dissolve, or emulsify fats, oils, or grease is prohibited.

(b) *Removed interceptor waste.* Liquids removed from an interceptor that has a capacity equal to or less than one hundred (100) gallons may be returned to an interceptor that complies with the

requirements of this division. Grease, solids, or any matter other than liquids removed from an interceptor that has a capacity equal to or less than one hundred (100) gallons shall not be returned to an interceptor and shall not be disposed of in any private sanitary sewer line or any portion of the POTW and must be disposed of in a facility that is authorized by law to receive such wastes. Liquids removed from an interceptor that has a capacity equal to or less than one hundred (100) gallons that are not returned to an interceptor shall not be disposed of in any private sanitary sewer line or any portion of the POTW and must be disposed of in a facility that is authorized by law to receive such wastes. Grease, solids, liquids, or any other matter removed from an interceptor that has a capacity greater than one hundred (100) gallons shall not be returned to any interceptor, or disposed of in any private sanitary sewer line, any portion of the POTW, or any location other than a facility that is authorized by law to receive such wastes.

(c) *No bypass.* No liquid or solid waste that contains fats, oils, or grease may be discharged directly into the POTW. All liquids and solids that contain fats, oils, or grease that may be discharged by a FSE or a FPE into the POTW must be discharged into an interceptor before any such discharges enter the POTW. Should an interceptor require repair, upon written request to and the receipt of written approval from SAWS a bypass of the interceptor shall be permitted for the duration of the repair, but in no event for more than eighteen (18) consecutive hours. Each FSE or FPE shall create a written record that describes the repairs made to the interceptor, the date and time of the commencement of any interceptor repairs and of any bypass during the repairs, and the date and time of the termination of the repairs and of the bypass.
(Ord. No. 2011-05-12-0378, § 1(Exh. A), 5-12-11; Ord. No. 2014-06-19-0472, § 1(Exh. A), 6-19-14)

Sec. 34-530. Fees.

(a) In order to recover the costs for the implementation of this division, each SAWS account associated with each FSE and each FPE shall be assessed a fee of eighteen dollars ($18.00) per month.

(b) This fee shall be effective January 1, 2024. This fee shall be adjusted on January 1 of each year thereafter by the percentage difference (greater than zero (0)) between the Consumer Price Index for All Urban Consumers (CPI-U) as it is calculated by the United States Bureau of Labor Statistics at the end of the month of July prior to the next year and as it was calculated at the end of the month of July one (1) year earlier, and subsequently rounded to the nearest dollar. SAWS will periodically perform a cost of service analysis to ensure that the fees charged do not exceed the cost of providing the services.
(Ord. No. 2011-12-08-1004, § 2(Exh. L), 12-8-11; Ord. No. 2015-11-19-0956, § 4(Att. III), 11-19-15, Res. No. 16-302, Att. IV; Ord. No. 2017-12-07-0928, § 3(Att. II), 12-7-17; Res. No. 18-262, 11-13-18; Res. No. 19-280, 7(Att. V), 11-5-19; Ord. No. 2022-11-10-0867, § 2(Att. II), 11-10-22; Res. No. 2023-198, 10-3-23)

Sec. 34-531. Enforcement.

(a) The failure to perform any action that is required by this division or the performance of any action that is prohibited by this division shall constitute a violation of this division.

(b) System-wide enforcement. The following enforcement provisions apply throughout the SAWS service area and to all FSEs and FPEs that receive sanitary sewer service from SAWS or that discharge into the POTW.

(1) *Access to premises.* Employees of SAWS, or its authorized agents shall have the authority to enter the property of a FSE or FPE to conduct inspections of all or any part of the premises, to inspect and copy documents that a FSE or FPE is required by this division to generate or maintain, to make photographic documentation and to perform any other action, or to obtain any other information related to compliance with this division. Each FSE and FPE shall allow access to its property and facilities for any of such purposes.

(2) *Notice of violation.* Should SAWS give written notice of a violation of this division to a FSE or FPE and the violation is

not completely remedied within ninety (90) days after the date of the notice, then in that event SAWS may terminate water and/or sewer service to the location where the violation occurred upon the approval of a resolution by the SAWS board of trustees authorizing such termination.

(3) *Additional enforcement remedies.* In addition to any other remedies provided in this division, SAWS may, at any time, pursue any other legal and/or equitable remedy to require compliance with this division.

(c) Enforcement within the city. The following enforcement provisions apply within the corporate limits of the city and within the extraterritorial jurisdiction of the city.

(1) *Access to premises.* Employees of the city, SAWS, or their authorized agents shall have the authority to enter the property of a FSE or FPE to conduct inspections of all or any part of the premises, to inspect and copy documents that a FSE or FPE is required by this division to generate or maintain, to make photographic documentation and to perform any other action, or to obtain any other information related to compliance with this division. Each FSE and FPE shall allow access to its property and facilities for any of such purposes.

(2) *Notice of violation.* Should SAWS give written notice of a violation of this division to a FSE or FPE and the violation is not completely remedied within ninety (90) days after the date of the notice, then in that event SAWS may terminate water and/or sewer service to the location where the violation occurred upon the approval of a resolution by the SAWS board of trustees authorizing such termination.

(3) *Criminal penalty.* A conviction for a violation of any provision of this division shall constitute a class C misdemeanor. A person convicted of a violation of any provision of this division shall be fined an amount of not less than two hundred dollars ($200.00) per violation and a maximum of not more than two thousand dollars ($2,000.00) per violation. Each violation of this division shall constitute a separate offense, and each day a violation continues shall be considered a new offense. A culpable mental state is not required to prove an offense under this division.

(4) *Civil penalty.* A civil penalty may be imposed upon a person for each violation of any provision of this division in an amount not to exceed five thousand dollars ($5,000.00) per violation. Each violation of any provision of this division shall constitute a separate violation, and each day a violation continues shall be considered a new violation.

(5) *Additional enforcement remedies.* In addition to any other remedies provided in this division, the city or SAWS may, at any time, pursue any other legal and/or equitable remedy to require compliance with this division.

(d) Authorization to enforce. SAWS is authorized to take any action authorized by this division and to pursue enforcement against any person violating this division. The grant of authority set out in this section does not in any way diminish the authority of the office of the city attorney to take any action necessary to enforce the terms of this division, to prosecute violations of this division, and to defend the legality of this division, if challenged.
(Ord. No. 2011-05-12-0378, § 1(Exh. A), 5-12-11; Ord. No. 2011-12-08-1004, § 2(Exh. L), 12-8-11)

Secs. 34-532—34-550. Reserved.

ARTICLE VI. WATER QUALITY CONTROL AND POLLUTION PREVENTION

DIVISION 1. GENERALLY

Secs. 34-551—34-565. Reserved.

DIVISION 2. WELLS*

Sec. 34-566. Powers and duties of the SAWS board.

(a) The San Antonio Water System (SAWS) Board shall have the following powers:

(1) To make or have made examinations of all wells, privately owned or otherwise, within the limits of the City of San Antonio or within SAWS service area, or as a requirement to obtain a utility service agreement;

(2) To sample or have sampled water from any well and make or have made analyses or tests of such water from any well located within the City of San Antonio, the City of San Antonio extra-territorial jurisdiction (ETJ), SAWS service area, or as a condition to obtaining a utility service agreement and to require a well owner to obtain a well log if no such log is available;

(3) To go upon the land and property of the owner of a well for any purpose allowed in this division;

(4) To require the owner to furnish all available information when requested concerning a well, including, in the case of new wells, complete logs of the well showing depth to and depth through all geologic formations encountered. This requirement includes at least one (1) borehole per geothermal system;

(5) To supervise the construction, repair, and plugging of wells and the operation of such wells. The SAWS Board or its duly authorized agent shall keep a register of all wells within the limits of the City of San Antonio, City of San Antonio ETJ or within SAWS service area. This register shall, at a minimum, show for each well the name of the owner, exact location, date of construction, depth and diameter, the purpose for which the well was constructed, and, if applicable, date of plugging.

(b) It shall be a violation of this division for any person to refuse or otherwise fail to comply with any requirement of this division, or with any order of the SAWS board made in conformity with and under the authority of this division.
(Ord. No. 2014-06-19-0472, § 1(Exh. A), 6-19-14)

Sec. 34-566.5. Definitions.

Abandoned well means any water supply well that is no longer in use, is not properly maintained and operated, or is in such a state of disrepair that using it to obtain water is impractical or a health or environmental hazard.

City means the City of San Antonio a Texas home rule city.

Contaminating well means a well that allows the detrimental alteration of the naturally occurring physical, thermal, chemical, or biological quality of groundwater.

Defective well means a well that is structurally compromised, either at the ground surface or in the subsurface that would potentially allow the entrance of surface water into the well or the mixing of waters within the wellbore that is not permitted by applicable regulations.

Geothermal borehole means a borehole drilled or bored into the earth into which piping is inserted for use in a geothermal system.

Geothermal system means a geothermal system uses the Earth's thermal properties in conjunction with electricity to provide greater efficiency in the heating and cooling of buildings.

TCEQ means the Texas Commission on Environmental Quality.
(Ord. No. 2014-06-19-0472, § 1(Exh. A), 6-19-14)

*__Editor's note—__Ord. No. 2014-06-19-0472, § 1(Exh. A), adopted June 19, 2014, amended division 2 in its entirety to read as herein set out. Formerly, division 2 pertained to similar subject matter, and derived from Ord. No. 80574, § 15, adopted August 4, 1994; Ord. No. 86747, § 1, adopted October 2, 1997; Ord. No. 2007-12-13-1345, § 2(Att. B), adopted December 13, 2007, and Ord. No. 2011-12-08-1004, § 2(Exh. L), adopted December 8, 2011.

Sec. 34-567. Permit for drilling new well required.

(a) It shall be unlawful for anyone to drill, maintain, or otherwise construct or have constructed, any new water well, or any other artificial excavation to explore for or produce groundwater, or geothermal borehole for the purpose of a earth-coupled heat exchange system, within the City of San Antonio or SAWS service area, without first applying for and securing a well drilling permit from the SAWS Resource Protection and Compliance (RPC) Department. This section shall not apply to: (1) monitoring wells and test wells with a depth of less than fifty (50) feet; (2) blast holes in quarries and mines; and (3) wells or excavations for the exploration or production of oil, gas, or minerals, unless, without regard to the original purpose, the well is used as a source of water.

(b) All drilling or construction of water wells, and injection wells for the purpose of an earth-coupled heat exchange system, shall be done in strict compliance with the terms of the well drilling permit, the SAWS Water Well Permitting Procedures, International Ground Source Heat Pump Association (IGSHPA) and 30 Texas Administrative Code (TAC), Chapter 331.

(c) In addition to the requirements of paragraphs (a) and (b) of this section, any water well which will penetrate the Edwards Aquifer shall be drilled and maintained in strict compliance with 30 TAC, Chapter 213 et seq., as amended. This paragraph does not apply to borehole loops for the purpose of an earth-coupled heat exchange system.

(d) To preserve the water quality of the Edwards Aquifer, the construction of any bore hole, injection well for the purpose of an earth-coupled heat exchange system, or water well for the purpose of an earth-coupled heat exchange system located over the Edwards Aquifer Recharge Zone and Transition Zone shall be prohibited.

(e) An open system, geothermal well that draws water from an aquifer that is circulated through a heat exchange system or geothermal wells which inject water into an aquifer, or to a surface water body, will not be permitted within the limits of the City of San Antonio, City of San Antonio ETJ, or within SAWS service area.
(Ord. No. 2014-06-19-0472, § 1(Exh. A), 6-19-14)

Sec. 34-568. Permit for repair or plugging of existing well required.

It shall be unlawful for any person to reconstruct, repair, correct, or plug a well or injection well for the purpose of an earth-coupled heat exchange system, or to engage upon such work, within the City of San Antonio, San Antonio ETJ, or the SAWS service area, or to employ anyone else to engage in such work, without first applying for and securing a permit from the SAWS RPC Department.
(Ord. No. 2014-06-19-0472, § 1(Exh. A), 6-19-14)

Sec. 34-569. Application for permit—Information required.

Every application for a permit for the drilling, construction, repair, or plugging of a well or the construction of an injection well for the purpose of an earth-coupled heat exchange system, shall be considered incomplete unless all information requested by the SAWS application form has been provided. The SAWS RPC Department shall maintain and update permit application terms to request all information necessary to carry out the intent of this division and to assure protection of the ground water aquifers by detecting and preventing the drilling or use of wells in a manner that may cause damage to or waste of water in an aquifer.
(Ord. No. 2014-06-19-0472, § 1(Exh. A), 6-19-14)

Sec. 34-570. Inspection before issuance of permit.

It shall be the duty of the SAWS RPC Department to consider every permit application submitted under this division, to inspect the property where any well will be drilled, sunk, dug, or bored, and to refuse issuance of a permit when:

(a) The location or manner of construction of the proposed well does not meet with the SAWS RPC Department's approval of

drainage and other sanitary conditions, or does not meet applicable State well construction requirements; or

(b) The proposed well would be located on property to which water service is currently available from SAWS or any other water purveyor; or

(c) Water service from existing SAWS water mains or service lines, or from any other water purveyor, could be established to the property on which the proposed well is located at a cost equal to or less than the cost of drilling the well as required by the RPC Department; or

(d) The intended use of the water to be produced by the proposed well could be accomplished using reuse water, and reuse water service is available to the property or could be made available at a cost equal to or less than the cost of drilling the proposed well.

(e) Subsection (b), (c) and (d) of this section do not apply to injection wells for the purpose of an earth-coupled heat exchange system.

(Ord. No. 2014-06-19-0472, § 1(Exh. A), 6-19-14)

Sec. 34-571. Execution of permit.

All permits shall be executed in triplicate, one (1) copy to be delivered to the applicant and two (2) copies to be retained in the SAWS Resource Protection and Compliance Department. A permit is valid for six (6) months from the date of issuance of the permit.

(Ord. No. 2014-06-19-0472, § 1(Exh. A), 6-19-14)

Sec. 34-572. Permit fees.

The fees to be paid to SAWS for the permits required by this article shall be as follows:

Permit for closure or repair of existing well	$666.00
Permit for drilling new well	666.00
Permit for the construction of a geothermal heat exchange system	666.00

The fee schedule may be amended, as needed, when a change in the amount of fees is required to adequately recover the costs reasonably related to the performance of these functions for which the fee is charged. The fee amounts are effective January 1, 2025. The fee amount shall be adjusted on January 1 of each year thereafter by the percentage difference (greater than zero (0)) between the Consumer Price Index for All Urban Consumers (CPI-U) as it is calculated by the United States Bureau of Labor Statistics at the end of the month of July prior to the next year and as it was calculated at the end of the month of July one (1) year earlier, and subsequently rounded to the nearest dollar. SAWS will periodically perform a cost of service analysis to ensure that the fee charged does not exceed the cost of providing the service.

(Ord. No. 2014-06-19-0472, § 1(Exh. A), 6-19-14; Ord. No. 2017-12-07-0928, § 4(Att. III), 12-7-17; Ord. No. 2022-11-10-0867, § 2(Att. II), 11-10-22; Res. No. 2023-198, 10-3-23; Res. No. 2024-227, § 7(Att. IV), 11-5-24)

Sec. 34-573. Nuisance of defective or contaminating wells, abatement.

(a) Any defective or contaminating well, as described herein, is hereby found to be a threat to the water supply of the City of San Antonio, a potential source of disease, injurious to the public health, and is hereby declared a nuisance.

(b) For the purpose of this division a contaminating well is considered to be any well or other opening which penetrates the underground water supply and which in any way pollutes or contaminates any other well or the city's water supply.

(c) For the purpose of this division a defective well is considered to be: any well, whether dug or drilled, which for any reason does not completely prevent, or which has the potential to allow, the mixing of water or other liquid from above and below the source of the city's water supply (the ground water aquifers) with the water in the source of the city's water supply; or any water well that was constructed without a permit and associated inspections.

(d) The City of San Antonio, acting through the SAWS Board, pursuant to said § 217.042 or § 401.002 of the Texas Local Government Code Ann. (Vernon's 1994), and § 342.001 of the Texas Health & Safety Code Ann. (Vernon's 1994), may require the abatement of such nuisance. The SAWS RPC Department may, on its own initiative or upon information or complaint from any source, make an examination of any well suspected of being defective. If such examination indicates in the opinion of the SAWS RPC Department Water Quality Division that the well is a contaminating or defective well or that the water from such well is unsafe for human consumption, then the director, or his authorized representative of the SAWS RPC Department shall issue an order or written instructions to the owner or his agent in charge of such well or the property upon which it is situated to plug this well in such a manner as prescribed by the SAWS Board and in compliance with TNRCC regulations and SAWS Water Well Permitting Procedures. In the event that a surface or subsurface release of contaminants occurs within the immediate area of a well, the owner of that well shall allow SAWS to conduct an inspection, or to conduct monitoring activity of that well. If that well is later found to be contaminated, SAWS may direct the owner to plug and abandon that well. (Ord. No. 2014-06-19-0472, § 1(Exh. A), 6-19-14)

Sec. 34-574. Abandoned wells.

(a) For the purpose of this division a well is considered to be an abandoned well if it has not been used for a period of six (6) consecutive months or longer. A well is considered to be in use in the following cases:

(i) A non-deteriorated, non-defective or non-contaminating well which contains the casing, pump and pump column in good condition, and which is connected to an active electrical or other power source; or

(ii) A non-deteriorated, non-defective or non-contaminating well which has been properly capped, and for which a variance has been granted by the SAWS RPC Department.

(b) It is hereby declared that an abandoned well, as defined in subsection (a) above, has the potential to pollute the water supply or be otherwise injurious to the public health, and, pursuant to Tex. Loc. Govt. Code Ann. §§ 217.042 and 401.002 (Vernon's 1994), is hereby declared a nuisance, for which the City of San Antonio, acting through the SAWS Board, pursuant to the Code, may require the abatement of such nuisance.

(c) The owner, operator, or agent in charge of an abandoned well shall notify the SAWS RPC Department of that condition. Every abandoned well shall be plugged in accordance with all applicable TCEQ regulations and SAWS Water Well Permitting Procedures and with such materials and in such manner as in the judgment of the Director of the SAWS RPC Department will prevent the pollution and contamination of the City of San Antonio's water supply or of any other well within the limits of the city of the SAWS service area.

(d) Whenever SAWS shall receive notice from any source of the existence of an abandoned well which has not been plugged and filled in accordance with the provisions of this division, the SAWS RPC Department shall notify the owner, operator, or agent in charge of such well or of the property upon which it is situated that such well is abandoned and shall order such person to fill and plug the well in accordance with this division of the Code.

(e) The SAWS RPC Department may require any owner of a capped well to take any action necessary or to provide any information or materials necessary to establish that such a capped well is not defective, contaminating, or deteriorated.
(Ord. No. 2014-06-19-0472, § 1(Exh. A), 6-19-14)

Sec. 34-575. Failure to abate nuisance, remedies.

Should the owner, operator, or agent in charge responsible for the contaminating, defective, or

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abandoned well which has been declared a nuisance, or for the property on which it is situated, fail to abate such nuisance within the prescribed time from the date of issuance of notice of nuisance or order issued pursuant to sections 34-573 or 34-574 hereof, or if, after exercising reasonable diligence, the SAWS Board is unable to locate the owner, operator, or agent in charge, the City of San Antonio, acting through the SAWS Board, pursuant to the Health and Safety Code §§ 342.001 et seq., shall have the right to go on the property upon which the well is situated and abate such nuisance in the manner provided, and the owner thereof shall be liable to the City of San Antonio for the cost of such work and shall pay such cost upon demand, and the City of San Antonio, acting through the SAWS Board, shall have the right to file a lien on the property to secure payment of the costs of such work.
(Ord. No. 2014-06-19-0472, § 1(Exh. A), 6-19-14)

Sec. 34-576. Variance and appeal. (a)

(a) A person who has properly applied for and has been denied a permit by the SAWS RPC Department under sections 34-567 through 34-570 hereof may request a variance from the application of this division. All requests for variances shall be made in writing to the SAWS RPC Department and shall include:

(i) The subject of the requested variance, and

(ii) The justification for granting a variance.

(b) The party requesting a variance has the burden of demonstrating that sufficient evidence exists for the granting of a variance to these rules, and the SAWS RPC Department shall consider and provide a written response to all such variances.

(c) If a variance is granted for the construction of a water well, the water well shall be constructed by a state-licensed driller and according to the methods outlined in the SAWS Water Wells Permitting Procedures. This construction shall occur under the authority of the permit to drill issued by the SAWS Board and under the inspections associated with the permit.

(d) Any variance granted under this section shall have a term of three (3) years from the date of issuance, and any activity which would otherwise be prohibited by this division except for the existence of a variance may not continue after the expiration of the applicable variance.

(e) Any person who properly requests a variance pursuant to this section which is denied by decision of the SAWS RPC Department, may appeal such denial to the president and CEO of SAWS by filing a request for appeal within ten (10) days from the date notice of denial is received. The president and CEO may require additional information from or request a meeting with the person making the appeal, and the decision of the president and CEO on the issuance of a variance or permit under this division shall be considered final.
(Ord. No. 2014-06-19-0472, § 1(Exh. A), 6-19-14)

Sec. 34-577. Criminal penalty.

(a) The president/CEO of the San Antonio Water System is hereby authorized to designate qualified San Antonio Water System personnel to serve notices of violations of this section and take all necessary action to file a complaint with the municipal prosecutor's office.

(b) A conviction for violation of this division shall constitute a Class C misdemeanor. A person convicted of a violation of this division shall be fined a minimum amount of not less than two hundred dollars ($200.00) per violation and a maximum amount of not more than two thousand dollars ($2,000.00) per violation. Each violation of a particular section of this division shall constitute a separate offense, and each day an offense continues shall be considered a new violation for purposes of enforcing this division. A culpable mental state is not required to prove an offense under this ordinance.
(Ord. No. 2014-06-19-0472, § 1(Exh. A), 6-19-14)

Sec. 34-578. Civil penalty.

A civil penalty in an amount not to exceed one thousand dollars ($1,000.00) per violation of this division may be imposed. Each violation of a particular section of this division shall constitute a separate offense, and each day such an offense

continues shall be considered a new violation for purposes of enforcing this division. A culpable mental state is not required to prove an offense under this division.
(Ord. No. 2014-06-19-0472, § 1(Exh. A), 6-19-14)

Sec. 34-579. Additional enforcement remedies.

In addition to any other remedies provided by this division, the City of San Antonio and SAWS may, at any time, seek legal and/or equitable remedies or file criminal charges against any person, corporation or other entity believed to be in violation of this division. In furtherance thereof, SAWS is authorized and instructed to commence any action, in law or in equity, including the filing of criminal charges for the purpose of enforcing this division.
(Ord. No. 2014-06-19-0472, § 1(Exh. A), 6-19-14)

Sec. 34-580. Conflict.

No provision of this division is intended nor shall any part or portion hereof be construed so as to conflict with the Texas Water Code, any regulations adopted by the TCEQ, or any other Charter Code provision or ordinance pertaining to reuse or conservation.
(Ord. No. 2014-06-19-0472, § 1(Exh. A), 6-19-14)

Sec. 34-581. Severability.

If any provision of this division or the application thereof to any person or circumstance shall be held to be void or invalid for any reason, the remainder of this division and the application of such provision to other persons and circumstances shall nevertheless be valid, and the city council hereby declares that this division would have been enacted without such invalid provision.
(Ord. No. 2014-06-19-0472, § 1(Exh. A), 6-19-14)

Secs. 34-582—34-590. Reserved.

DIVISION 3. WATERCOURSES*

Sec. 34-591. Condemnation of obstruction and encroachments by city.

The city council may at any time condemn and remove any obstructing banks and deposits along the San Antonio River, San Pedro Creek, or any other watercourse as may be deemed expedient for the public safety.
(Code 1950, § 48-1; Code 1959, § 41-51; Ord. No. 80574, § 8, 8-4-94)

Sec. 34-592. Removal of obstruction and encroachments by city, lien.

The city council may remove or cause to be removed at any time, any and all encroachments and obstructions on streams and watercourses and, where the obstructions attach to the adjoining property, shall assess all costs and expenses of such removal against such property with eight (8) percent per annum interest from the date of expenditure until collection is made. Such costs, expenses and interest shall be a lien upon the property, and collected as other taxes on real estate are collected.
(Code 1950, 48-2; Code 1959, § 41-52; Ord. No. 80574, § 8, 8-4-94)

Sec. 34-593. Removal of growths or encroachments by property owners.

Whenever any fillings, pilings, dams, fences, rocks, posts or walls placed, or trees grown on the banks of the San Antonio River, San Pedro Creek or other watercourses are declared by the city council to be obstructions to the necessary flow of the river or creek at high water, the same shall be removed by the person owning the property to which such obstructions attach within thirty (30) days after official notice is given of such action by the council.
(Code 1950, § 48-4; Code 1959, § 41-53; Ord. No. 80574, § 8, 8-4-94)

*__Note—__See the editor's note to Art. II, Div. 4 of this chapter.

Sec. 34-594. Seining and netting in San Antonio River.

It shall be unlawful for any person to seine or net anywhere in the San Antonio River within the city for the purpose of catching any kind of fish, large or small. The word fish in this connection is being used in its most comprehensive sense.
(Code 1950, § 48-10; Code 1959, § 41-54; Ord. No. 35358, § 6, 4-27-67; Ord. No. 80574, § 8, 8-4-94)

Secs. 34-595—34-605. Reserved.

DIVISION 4. WATER QUALITY CONTROL

Secs. 34-606—34-700. Reserved.

DIVISION 5. PROHIBITED DISCHARGES INTO THE MUNICIPAL SEPARATE STORM SEWER SYSTEM

Subdivision A. General MS4 Protections

Sec. 34-701. Definitions.

The following terms shall have the following meanings for the purpose of this division:

(a) *The San Antonio Municipal Separate Storm Sewer System (MS4).* The system of conveyances, including but not limited to, roads with drainage systems, municipal streets, catch basins, curbs, gutters, ditches, creeks, streams, tributaries, man-made channels, or storm drains, which:

(1) Provide collection or conveyance of stormwater, rain water, flood water, or other surface water; and

(2) Are located on public property; and

(3) Are not designed and intended to be part of the collection system of a sanitary sewer system utilized by a publicly owned treatment works (POTW) as defined in Title 40 C.F.R. 122.2.

(b) *Brush cuttings, clippings.* All herbaceous materials, including lawn trimmings and leaves.

(c) *Household hazardous waste.* Waste from materials utilized for residential or housekeeping purposes containing regulated substances which either singularly or by its interaction with other wastes or by its accumulation in the MS4 becomes injurious or potentially injurious to human, plant, or animal life, or property. For purposes of this division household hazardous wastes include but are not limited to paint, paint thinners, paint solvents, beaches, and drain cleaners.

(d) *Pesticide.* Any substance or mixture of substances intended for preventing, destroying, repelling, or mitigating any pest, and/or any substance or mixture of substances intended for use as a plant regulator, defoliant, or desiccant.

(e) *Rubbish.* Inorganic solid waste including paper, rags, cartons, wood, excelsior, furniture, rubber, plastics, glass, crockery, tin and aluminum cans, metal furniture, and other like materials.
(Ord. No. 80574, § 16, 8-4-94)

Sec. 34-702. Prohibited discharges into the MS4.

(a) It shall be a violation of this division for any person to deposit, throw, drain, discharge, cause or allow to be deposited, thrown, drained or discharged, or otherwise cause to be injected into the MS4, or any storm sewer manhole, catch basin, private drain, ditch, street, gutter, creek, stream, tributary, or any other drainage device which con-

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nects with or drains into the MS4, any of the following described materials or substances within the corporate limits of the City of San Antonio:

(1) Any acid waste materials;

(2) Any alkaline waste materials;

(3) Any water or waste containing free-floating, or insoluble oil;

(4) Any gasoline, naphtha, fuel oil, mineral oil or other flammable or explosive liquid, solid or gas;

(5) Any noxious, malodorous, poisonous, or reactive substance which, either singularly or by interaction with other substances, or by its accumulation in the MS4 becomes injurious or potentially injurious to human, plant or animal life, or property;

(6) Any domestic wastewater or industrial wastewater as defined in Article V, Division 3 of this chapter;

(7) Any soil, soil material, sediment, rock, gravel or other similar materials in such quantities that reduce the capacity or cause an obstruction of the MS4; or

(8) Any paint, paint rinse water, waste from vacuum and carpet cleaning, sharps, needles or medical waste, automotive fluids (such as motor oil, antifreeze or gear oil), wastewater from food trucks, grease trap waste or grit trap wastes from carwashes.

(b) It shall be a defense to prosecution under this section that such person was authorized to commit any act under a valid permit from the Texas Commission on Environmental Quality or the United States Environmental Protection Agency, which would otherwise constitute a violation at the time of commission.

Commentary: It is the intent of this division to prohibit indiscriminate discharging to the MS4; such indiscriminate discharging includes dumping or releasing of any accumulations of process materials, washing or cleaning materials or other wastes into the MS4. It is also the intent to eliminate improper storage or handling of dangerous, hazardous, or otherwise harmful materials in such a manner as to cause or allow their discharge into the MS4. However, these regulations are not intended to prohibit discharge of non-contaminated and non-polluting water, such as fire hydrant flushing, runoff from fire fighting, non-chlorinated swimming pool or hot tub drainage, uncontaminated pumped groundwater, discharges from potable water sources, non-contact cooling waters, ventilation and air conditioning condensation water that POTWs require to be discharged to separate storm sewers rather than to sanitary sewers, etc.

(Ord. No. 80574, § 16, 8-4-94; Ord. No. 2019-02-14-0123, § 1(Att. I), 2-14-19)

Sec. 34-703. Placing brush cuttings, clippings, and/or rubbish into the MS4.

(a) It shall be a violation of this division for any person to deposit, discard or dump, or cause or allow to be deposited, discarded or dumped any brush cuttings, clippings, or rubbish within the MS4.

(b) It shall be a violation of this division for any person to place or cause or allow to be placed or dropped, brush cuttings, clippings, and/or rubbish within any street in the corporate limits of the city in such a manner that the same may be washed by the flow of water into the MS4.

Commentary: It is the intent of this section to restrict placement of rubbish, brush, lawn clippings or leaves, etc. into the MS4. It is also the intent to require that during certain seasons when leaves are shed that these materials are removed properly and prevented from collecting in mass quantities in the streets or MS4. It is recognized that from time to time during certain seasons or during normal yard maintenance, leaves, clippings, etc. will fall into the streets.

(Ord. No. 80574, § 16, 8-4-94)

Sec. 34-704. Placing household hazardous wastes into the MS4.

(a) It shall be a violation of this division for any person to place, or cause or allow to be placed, a household hazardous waste within the MS4.

(b) It shall be a violation of this division for any person to place, or cause or allow to be placed, a household hazardous waste within any street in the corporate limits of the city in such a manner that the same may be washed by the flow of water into the MS4.

Commentary: The intent of this ordinance is to prohibit those conducting household activities such as cleaning, renovating, painting, auto repair, and other similar activities which utilize household hazardous wastes from discarding such

wastes into the MS4, or from performing any activity that would result in the contamination of the MS4 with such household hazardous wastes.
(Ord. No. 80574, § 16, 8-4-94)

Sec. 34-705. Prohibiting the improper use of pesticides in order to keep them from entering the MS4.

(a) It shall be a violation of this division for any person to cause or allow a pesticide to enter into the MS4.

(b) It shall be a violation of this division for any person to utilize a pesticide in a manner inconsistent with the proper usage set out in the labelling for such pesticide in accordance with the Federal Insecticide, Fungicide, and Rodenticide Act (FIFRA).

(c) It shall be a violation of this division for any person to utilize a pesticide which is not properly labelled in accordance with FIFRA.

(d) It shall be a defense to prosecution under this section that the person accused of such violation utilized a pesticide in accordance with the requirements of FIFRA in a manner consistent with its labelling. The term "labelling" pursuant to Section 136 of FIFRA means all labels and all other written, printed or graphic matter:

(1) Accompanying the pesticide or device at any time; or

(2) To which reference is made on the label or in literature accompanying the pesticide or device except to current official publications of the Environmental Protection Agency, the United States Departments of Agriculture and Interior, the Department of Health and Human Services, state experiment stations, state agricultural colleges, and other federal or state institutions or agencies authorized by law to conduct research in the field of pesticides.

Commentary: It is recognized that excess pesticides will migrate into the MS4 even under normal and proper usage. It is the intent of this ordinance to restrict the usage of those chemicals to the manner deemed appropriate by their manufacturer and consistent with FIFRA.
(Ord. No. 80574, § 16, 8-4-94)

Sec. 34-706. Authority to enforce outside the city limits.

(a) Pursuant to the authority granted under Section 401.002 V.T.C.A. Local Government Code, a prohibited act or discharge identified in sections 34-702 through 34-705 hereof shall be enforceable outside the city limits if the prohibited act or discharge:

(1) Causes or contributes to the pollution of a stream, drain or tributary which provides a source of recharge water for the Edwards Aquifer; or

(2) Causes harm to, pollutes, or is in any way contrary to the protection of any watershed which drains into the MS4.

(b) It shall be a defense to prosecution under this section that a person was authorized to commit the prohibited discharges set out in section 34-702 herein, under a valid permit from the Texas Natural Resource Conservation Commission or the United States Environmental Protection Agency.
(Ord. No. 80574, § 16, 8-4-94)

Sec. 34-707. Authority to enforce outside the city limits, but within the ETJ.

(a) Committing a prohibited act or discharge, as set out in sections 34-702 through 34-705 herein, outside the corporate limits of the City of San Antonio, but within the ETJ is found to be contrary to the public health and welfare and is hereby deemed and declared to be a nuisance pursuant to Section 217.042 of the Local Government Code.

(b) It shall be a defense to prosecution under this section that a person was authorized to commit the prohibited discharges set out in sections 34-702 through 34-705 herein under a valid permit from the Texas Natural Resource Conservation Commission or the United States Environmental Protection Agency.
(Ord. No. 80574, § 16, 8-4-94; Ord. No. 2024-06-20-0480, § 1(Exh. A), 6-20-24)

Sec. 34-708. Criminal penalty.

(a) A conviction for violation of this division shall constitute a class C misdemeanor. A person convicted of a violation of this division shall be fined a minimum amount of not less than two hundred dollars ($200.00) per violation and a maximum amount of not more than two thousand dollars ($2,000.00) per violation. Each violation of a particular section of this division shall constitute a separate offense, and each day an offense continues shall be considered a new violation for purposes of enforcing this division. A culpable mental state is not required to prove an offense under this ordinance.

(b) The president/CEO of SAWS is hereby authorized to designate qualified SAWS personnel to serve notices of violations of this section and to take all necessary actions to file a complaint with the municipal prosecutor's office.
(Ord. No. 80574, § 16, 8-4-94)

Sec. 34-709. Civil penalty.

A civil penalty in an amount not to exceed five thousand dollars ($5,000.00) per violation of this division may be imposed. Each violation of a particular section of this division shall constitute a separate offense, and each day such an offense continues shall be considered a new violation for purposes of enforcing this division.
(Ord. No. 80574, § 16, 8-4-94)

Sec. 34-710. Additional enforcement remedies.

(a) In addition to any other remedies provided by this division, the City of San Antonio and SAWS may, at any time, seek legal and/or equitable remedies or may file charges against any person, corporation, or other entity believed to be in violation of this division. In furtherance thereof, the SAWS legal department is hereby authorized and instructed to commence any action, in law or in equity, including the filing of charges for the purpose of enforcing this division.

(b) The use of negotiated civil settlements or other methods of alternative dispute resolution to reach a civil settlement is hereby authorized; provided that the civil penalty imposed by any such agreement or settlement is of a sufficient amount in relation to the violations to which they provide a sanction.
(Ord. No. 80574, § 16, 8-4-94)

Sec. 34-711. Conflict.

No provision of this division is intended to, nor shall any part or portion hereof be construed, so as to conflict with the Texas Water Code.
(Ord. No. 80574, § 16, 8-4-94)

Sec. 34-712. Severability.

If any provision of this division or the application thereof to any person or circumstance shall be held to be void or invalid for any reason, the remainder of this division and the application of such provision to other persons and circumstances shall nevertheless be valid, and the city council hereby declares that this division would have been enacted without such invalid provision.
(Ord. No. 80574, § 16, 8-4-94)

Secs. 34-713—34-800. Reserved.

Subdivision B. Stormwater Compliance for Construction Activity

Sec. 34-801. Statement of purpose.

The intent of the ordinance from which this subdivision derives, creating subdivision B, is to satisfy conditions imposed by the City's Texas Pollutant Discharge Elimination System (TPDES) Permit issued by the Texas Commission on Environmental Quality (TCEQ).

All construction addressed by the ordinance from which this subdivision derives is intended to conform to best management practices. Applicable best management practices (BMP) are presently outlined in the Texas Commission on Environmental Quality (TCEQ) Technical Guidance on Best Management Practices, June 1999, Document No. RG-348 (Revised July 2005). The TCEQ guidance may be updated by the agency or revised by the city for integration into the city's

technical guidance manual for local construction activity. Choice of techniques is at the option of the responsible party.
(Ord. No. 94002, § 1, 5-24-01; Ord. No. 2014-06-19-0472, § 1(Exh. A), 6-19-14; Ord. No. 2019-02-14-0123, § 1(Att. I), 2-14-19)

Sec. 34-802. Definitions.

When used in this subdivision B, the following terms shall have the following meanings:

Best management practices (BMP): A technique or series of structural and non-structural techniques and practices which, when used in an erosion control plan or considered as part of a construction site's housekeeping efforts, are proven to be effective in controlling construction-related runoff, erosion, sedimentation, and associated pollutants. Applicable BMP's can be found in TCEQ approved BMP Guidance manuals.

Construction activity: Clearing, grading or filling of land, dozing or mechanical removal of trees which dozing or mechanical removal disturbs the soil, excavation for installation of utility lines, streets, drainage facilities, and site preparation for housing and commercial development, as well as on-going construction activities which produce waste products. Land being modified by either excavation or fill of material upon an existing mantle of soils is considered a construction activity and subject to the terms of this Ordinance unless otherwise permitted under a Multi-sector Industrial Storm Water Permit. Prior to any modification to an existing mantle soil grade the owner of the property must meet city requirements for grading and drainage applicable to property modifications.

Director of public works: The director of public works of the City of San Antonio, including his/her designees.

EPA: The United States Environmental Protection Agency.

Erosion: The wearing away of the ground surface as a result of the movement of wind, water and/or ice.

Extraterritorial jurisdiction (ETJ): The unincorporated area contiguous to corporate boundaries of the city where the city has regulatory control as determined by State law and the Texas Local Government Code, which may be amended from time to time.

Final inspection: Occurs after responsible party meets definition of final stabilization and files a Notice of Termination (NOT) form, if required by state or federal law, at which time SAWS will conduct a final inspection to verify both compliance with final stabilization and removal of the temporary BMP's from the site has occurred. Final inspections will be required at both small construction sites and large construction sites. Secondary operators are required to complete site notices and complete a NOT form as required under the TPDES permit.

Final stabilization: Reference to standards in the TCEQ TPDES general permit for storm water discharges for construction activities concerning development acreage that:

(1) Where state or federally regulated development acreage is concerned, all soil disturbing activities at the site have been completed, and a uniform perennial vegetative cover, with a density of seventy (70) percent of the native background vegetative cover for the area has been established on all unpaved areas and areas not covered by permanent structures or equivalent permanent stabilization measures have been employed; and

(2) Where local, individual lots associated with residential or commercial construction are concerned, by either: (a) the responsible party complying with cover requirements guided by federal or state standards recited above, or (b) the responsible party establishing temporary stabilization including perimeter controls and informing the home buyer or commercial purchaser in writing of the need for and benefits of final stabilization.

Grade: The vertical location of the ground surface.

Grading: Any land disturbance or land fill, or combination thereof including land development, fill material sites or demolition sites.

Improved: Altered by man-made conditions.

Land disturbance/land-disturbing activities: Any moving or-removing or filling by manual or mechanical means of the soil mantle or top six (6) inches of soil, whichever is shallower, including but not limited to excavations. Any planned disturbance of an existing land grade (fill or excavation) is considered a land disturbing activity. Prior to any modifications to existing mantle soil grade, the owner of the property must meet City requirements for grading and drainage on property modifications.

Land fill: Any human activity involving the disposition of soil, earth, or other earthen or aggregate materials.

Municipal separate storm sewer system (MS4): All natural and man-made collection and conduit facilities within the corporate limits of the city and within applicable limits of its extraterritorial jurisdiction, and for which MS4 protection the City of San Antonio has been issued a Texas Pollutant Discharge Elimination System (TPDES) Permit by TCEQ, which collection and conduit facilities constitute a system of conveyances, including but not limited to, roads with drainage systems, municipal streets, catch basins, curbs, gutters, ditches, creeks, streams, tributaries, man-made channels, or storm drains, which provide collection or conveyance of storm water, rain water, flood water, or other surface water, and may be located on public property, drainage easements, or other property, and are not designated and intended to be part of the collection system of a sanitary sewer system utilized by a publicly owned treatment works (POTW) as defined by federal regulation at 40 CFR 122.2.

NOI: Notice of intent filed by a responsible party with EPA or TCEQ. This NOI is required under state regulation for certain construction activity. The NOI is part of the state general permit process for construction activity concerning projects or runoff deemed to potentially impact waters of the State of Texas and of the United States of America.

NOT: Notice of termination. The notice required by the EPA or TCEQ for permitted projects within the jurisdiction of either agency, which notice verifies "final stabilization" of the site has been achieved, as described above; EPA form 3510-7 terminating coverage under the TPDES general permit or corresponding TCEQ form for the TPDES Texas Pollutant Discharge Elimination System general permit.

NPDES: National Pollutant Discharge Elimination System.

Ordinance: This ordinance in its entirety, pertaining to new subdivision B, under article VI, division 5, chapter 34, Code of Ordinances of the City of San Antonio.

Person: Any individual, partnership, co-partnership, firm, company, corporation, association, joint stock company, trust, estate, governmental entity, or any other legal entity, or the legal representatives, agents, or assigns thereof.

Pollutant: Any substance introduced into the environment that adversely affects a resource. Pollutant includes, but is not limited to, soil, soil material, sediment, human waste, other wastes and debris generated at construction sites.

Responsible party: Any person or legal entity, individual or corporate, including an owner, operator, contractor, or subcontractor, any or all of whom may be engaged in, consent to, or actually perform a construction project or construction activity.

SAWS: The San Antonio Water System, a municipally owned utility, a co-permittee to the city's MS4 Permit and one of the city's enforcement and compliance arms for water quality, pollution control and prevention.

Sediment: Earth material deposited by water or wind.

Site: The location of construction activity, subject of this subdivision B, being within the corporate limits of the city and, outside such limits, but within the ETJ.

Soil and/or soil material: Naturally occurring superficial deposits of earth mantle overlaying bedrock or clay; any naturally occurring surface deposit of sand, gravel, silt, clay, or any mixture thereof.

Storm water: Storm water runoff, snow melt runoff, and surface runoff and drainage, as per TPDES Permit Construction General Permit No.TXR1500000.

SWPPP: Storm Water Pollution Prevention Plan: The state or federally required plan for identifying and implementing appropriate measures to reduce pollutants in storm water discharges into the city's municipal separate storm water sewer systems (MS4), which pollutants include eroded sediments. Protective measures include, but are not limited to, natural and man-made collection components, good housekeeping for site maintenance, and other common sense actions, all frequently referred to as best management practices (BMP).

TCEQ: Texas Commission on Environmental Quality.

Unimproved: Natural conditions, unaltered.

Water Pollution Abatement Plan (WPAP): The State required plan that is described in 30 Texas Administrative Code, chapter 213 for identifying and implementing appropriate measures to reduce pollutants in Storm Water Discharges into identified sensitive areas of the Edwards Aquifer. The TCEQ TPDES Construction General Permit TXR150000, page 12, Item 5 " Discharge to the Edwards Aquifer Recharge Zone" identifies the requirement of protective measures of the Edwards Aquifer.
(Ord. No. 94002, § 1, 5-24-01; Ord. No. 2014-06-19-0472, § 1(Exh. A), 6-19-14; Ord. No. 2019-02-14-0123, § 1(Att. I), 2-14-19; Ord. No. 2024-06-20-0480, § 1(Exh. A), 6-20-24)

Sec. 34-803. Applicability of Subdivision B entitled "Storm Water Compliance for Construction Activity," and declaration of nuisance for violation.

Within the corporate limits of the city and within applicable limits of the city's extraterritorial jurisdiction (ETJ), no person shall perform construction activity that violates provisions of this subdivision. Construction activity in violation of this subdivision is hereby declared unlawful.

Violations committed within the corporate limits and within five thousand (5,000) feet outside the city's corporate limits shall also constitute public nuisance, as further provided below at section 34-809, Violations of any provision of this subdivision within the city's corporate limits shall be deemed a criminal Class C misdemeanor. Violations of any provision of this subdivision within the city's corporate limits or any part of the applicable ETJ shall be further subject to a civil enforcement option, more particularly described in section 34-808 (b) below.

Some of the requirements of this subdivision may be generally characterized as good housekeeping protocols, those expected to be employed by a reasonably prudent contractor, operator, owner, or other person having responsibilities for various activities on a construction site. Where state or federal permits require the site operator, owner, or other responsible party, to make a storm water pollution prevention plan (SWPPP), such plans must be readily available on the site for city inspection.
(Ord. No. 94002, § 1, 5-24-01; Ord. No. 2014-06-19-0472, § 1(Exh. A), 6-19-14)

Sec. 34-804. General prohibition against construction pollution of the municipal separate storm sewer; measurable volumes for violation; required TCEQ TPDES permit; SWPPP and WPAP (as applicable).

(a) It is unlawful for any person to engage in construction activity which activity results in a measurable volume of sediment, soils, soils material, or pollutants entering the city's municipal separate storm sewer system (MS4).

(b) "Measurable volume" of sediment, soil, soil material, or pollutant, for purposes of determining a violation, shall be such volume as is capable of being truly and correctly depicted in a photograph, motion picture, or video recording of the sediment, soil, soil material, or pollutant in question.

(c) Nothing in this section shall diminish or change the general prohibitions against MS4 pollution found in section 34-702, subdivision A,

Division 5, of this chapter 34, Prohibited discharges into the municipal separate storm sewer system. SAWS shall continue to exercise all enforcement powers set out in this chapter 34, and to gather such evidence as may include, but not be limited to, samples and analysis appropriate to enforcement of chapter 34 provisions.

(d) The responsible party shall use best management practices (BMP) to prevent sediment, soils, soils materials, and pollutants from entering the city's MS4.

(e) It is unlawful for any person to engage in construction activity without employing BMP necessary to protect the city's MS4 from run-off or other media capable of transporting sediment, soil, soil material, and pollutants into the city's MS4.

(f) The responsible party shall post at the main entrance of the site all operator notices including without limitation, such as notice of construction, construction site notice, contact information and WPAP notice of construction (as examples).

(g) Portions of the Edwards Aquifer Recharge Zone and Edwards Aquifer Contributing Zone within the city extraterritorial jurisdiction shall be considered inclusive in this section.

(h) The operator shall have available and maintain on the construction site a copy of the SWPPP and where applicable, the WPAP.

(i) It is unlawful for any person to engage in construction activity without a complete SWPPP (as defined in TCEQ TXR 150000 or WPAP (as applicable) available on the construction site
(Ord. No. 94002, § 1, 5-24-01; Ord. No. 2014-06-19-0472, § 1(Exh. A), 6-19-14)

Sec. 34-805. Additional federal and state requirements generally applicable to responsible parties associated with TPDES Regulated Projects: proper custody of federal or state storm water pollution prevention plans (SWPPP); applicable to parties required to provide TPDES notice of intent (NOI) or Small Construction Site Notice (CSN) to EPA or TCEQ and San Antonio Water System (SAWS); requirement to post TPDES Notices at site; requirement to make SWPPP available to city inspector; copy of Notice of Termination (NOT) or small construction site or large construction site secondary operator completed site notices required by TCEQ or SAWS.

(a) Concerning projects for which the EPA or TCEQ or the City have permitting authority, the responsible party shall post at the site, as required by federal or state regulations, a true and correct copy of the NOI, Permit Number, large construction site notice or small construction site notice. A copy of the NOI, Permit number, large construction site notice or small construction site notice and the WPAP Notice of construction shall also be sent to SAWS resource protection and compliance department at the same time it is sent to EPA or TCEQ when applicable.

(b) The responsible party shall have available for city inspection, on site, the storm water pollution prevention plan (SWPPP) imposed by EPA or TCEQ, when the site in question is subject to such plans imposed by federal or state law.

(c) The responsible party shall make the SWPPP available to the city inspector, on reasonable request made during normal working hours.

(d) Failure, refusal, or inability to provide such plan for inspection, when the plan is required under state or federal law, constitutes a violation of this subdivision.

(e) It shall be unlawful for any person to engage in construction activity in violation of the elements of an applicable SWPPP and applicable WPAP.

(f) The responsible party shall provide SAWS a true and correct copy of any notice of termination (NOT), small construction site completed site notice or large construction site secondary operator completed site notice necessary to close out a project regulated by EPA or TCEQ. This copy shall be sent to SAWS, to the attention of SAWS resource protection and compliance department, at the time it is sent to EPA or TCEQ.

(g) Where permanent improvements have been constructed, the final inspection shall verify whether or not the "final stabilization" criteria have been met.

(h) Where no permanent improvements are planned, temporary BMPs shall continue to be maintained until site has reached final stabilization.

(i) A site shall continue to be regulated and maintain an open, active permit until final stabilization is achieved; and, where applicable to state and federally regulated sites, until a "notice of termination" (NOT) or small construction site completed site notice or large construction site secondary operator completed site notice has been filed. A copy of the NOT, if applicable, will also be filed with the SAWS as described above at subsection (t).

(k) Where the site has met final stabilization requirements, but the controls or measures implemented thereafter fail, each discharge of construction related contamination by the responsible party shall constitute a violation of this subdivision B.

(l) Removal of temporary BMPs shall be required after the site achieves final stabilization.

(m) The responsible party shall have available for City inspection on the construction site, a true copy of an approved master plan of development.

(n) The responsible party shall have available on the construction site the water pollution abatement plan (WPAP) and WPAP approval notice imposed by TCEQ when the site in question is subject to such plans required by TCEQ in 30 Texas Administrative Code, Chapter 213.

(o) The responsible party shall have available for city inspection all records and documents required by the EPA or TCEQ SWPPP and TCEQ WPAP (as applicable).

(p) All SWPPP documents shall be designed and signed by a licensed professional engineer (Texas) with competence in this area as required by Texas Engineering Practice Act, Section 137, or a Certified Professional in Erosion and Sedimentation Control (CPESC).

(q) To assure continued effective compliance with best management practice methodology on the construction/development site, an engineer or CPESC, Certified Erosion, Sediment and Storm Water Inspector (CESSWI) or Certified Inspector of Sediment and Erosion Control (CISEC) shall conduct ongoing inspections of all erosion/sedimentation controls and direct the person or firm responsible for maintenance to make any repairs or modifications necessary within forty-eight (48) hours of the initial notification.
(Ord. No. 94002, § 1, 5-24-01; Ord. No. 2014-06-19-0472, § 1(Exh. A), 6-19-14; Ord. No. 2019-02-14-0123, § 1(Att. I), 2-14-19)

Sec. 34-806. Best management practices (BMP) guidelines; compliance with this subdivision should not be relied upon by the regulated community to automatically effect compliance with what may be more stringent federal or state regulations pertaining to EPA/TCEQ permitted construction sites; explanation of federal jurisdiction.

(a) BMP applications recommended to responsible parties are those techniques described in TCEQ's "Technical Guidance on Best Management Practices," document no. RG-348, Revised

July 2005, as such document may be updated and revised, or when available, the city's technical guidance manual for construction activity.

(b) Responsible parties are advised that the city's recognition of BMP and other good housekeeping protocols are not necessarily synonymous with federal standards directly associated with EPA's construction general permit for other construction sites regulated under federal law or the TCEQ's construction general permit. Some sites will be federally regulated construction sites while most construction sites will be permitted by the State of Texas under guidelines similar to those of EPA. Responsible parties whose projects of scale fall within state or federal parameters are responsible to EPA or TCEQ to fulfill requirements that may differ from or may be more stringent than the provisions of this article applying to local, individual construction sites of a scale not regulated by state or federal authorities.

(c) In contrast, the purpose of this subdivision and its requirements for BMP are to satisfy the city's own state permit which specifically requires the city to adopt a construction site regulation. Consequently, the intent of this subdivision is to protect MS4 from pollutants generated from local construction sites. Federal and state jurisdiction to support this directive is found in the conduit of urban runoff traversing the San Antonio area into rivers, streams, and especially bays regulated as "waters of the United States of America" and "waters of the State of Texas". Hence, storm water generated in the area of San Antonio may enter into and impact state and federal waters.

(Ord. No. 94002, § 1, 5-24-01; Ord. No. 2014-06-19-0472, § 1(Exh. A), 6-19-14; Ord. No. 2019-02-14-0123, § 1(Att. I), 2-14-19)

Editor's note—Ord. No. 2019-02-14-0123, § 1(Att. I), adopted Feb. 14, 2019, amended § 34-806 and in so doing changed the title of said section from "Best management practices (BMP) guidelines; compliance with this subdivision should not be relied upon by the regulated community to automatically effect compliance with what may be more stringent federal or state regulations pertaining to EPA/TNRCC TCEQ permitted construction sites; explanation of federal jurisdiction" to "Best management practices (BMP) guidelines; compliance with this subdivision should not be relied upon by the regulated community to automatically effect compliance with what may be more stringent federal or state regulations pertaining to EPA/TCEQ permitted construction sites; explanation of federal jurisdiction," as set out herein.

Sec. 34-807. Enforcement procedures.

(a) The director of public works may designate additional field enforcement staff to supplement SAWS resource protection and compliance department staff, here designated and referred to above and hereafter as city inspectors (inspectors).

(b) Upon observation of an alleged violation or condition an inspector believes constitutes a violation of this subdivision, the inspector shall issue a field correction notice (FCN) to a responsible party. The field correction notice shall be personally delivered to a responsible party, if such person is available on site; or, in the absence of such person, shall be posted at the construction site and mailed by U.S. Mail or by electronic e-mail. Field correction notices shall afford two (2) 24-hour periods to correct the violation alleged. The first 24-hour period should be used to remediate and remove the offending material, if any, from the city's MS4, or obtain and post permit documents and/or provide a copy of a complete SWPPP and WPAP (as applicable). A second 24-hour grace period shall follow immediately to allow the responsible party to appropriately install or repair corrective BMP which was lacking or failed to protect city property.

(c) If the violation is cured within forty-eight (48) hours, as described above, no further city action is required.

(d) If correction is not made timely, the inspector may issue a stop work order.

(e) If a stop work order is not honored at the site and/or corrective action is not timely accomplished to protect the city's MS4, citations may be issued or civil injunctive remedies with appropriate penalties may be pursued.

(f) Additional or cumulative enforcement action may be taken as the seriousness of the alleged pollutant encroachment in the MS4 may warrant.

(g) Additional compliance time may be afforded, if within the judgment and discretion of the inspector, municipal obligations to environmental health and safety and municipal stormwater compliance obligations to enforcement agencies are not compromised.

(h) Upon observation of an alleged violation or condition an inspector believes constitutes a violation of a water pollution abatement plan within the Edwards Aquifer Recharge Zone, the inspector shall have the authority to issue a field correction notice (FCN) to a responsible party. Delivery of the FCN shall be in accordance with the process as identified in paragraph (b) of this section. The field correction notice shall require immediate correction of the violation alleged or within 24 hours of observation of alleged violation as specified and documented by the inspector on the FCN. If correction is not made timely, the inspector may issue a Stop Work Order.
(Ord. No. 94002, § 1, 5-24-01; Ord. No. 2014-06-19-0472, § 1(Exh. A), 6-19-14)

Sec. 34-808. Criminal and civil enforcement.

(a) A penalty is hereby established whereby any person who shall violate any provision of this subdivision shall be deemed to be guilty of a misdemeanor and shall upon conviction be fined a minimum amount of not less than two hundred dollars ($200.00) per violation and a maximum amount of not more than two thousand dollars ($2,000.00) per violation. Each day of violation shall constitute a separate offense for purposes of the enforcement of this subdivision.

(b) The city attorney has authority to pursue all legal, equitable, and criminal remedies appropriate to enforce all provisions of this subdivision, including, but not limited to, authority under the Texas Local Government Code, chapter 54, providing for injunctive relief and court imposed civil penalties up to five thousand dollars ($5,000.00) a day for violation of ordinances relating to discharge of a pollutant into a storm sewer system controlled by a municipality.

(c) Upon the written direction of the director of public works, advising of an alleged violation of any section of this subdivision, the city attorney, pursuant to subsection (d) above, is authorized to petition any court of competent jurisdiction for an injunction to enjoin the continuance of such violation and to secure any and all civil penalties within the jurisdiction of the appropriate court. This remedy shall be cumulative of and to all other enforcement remedies available to the city.

(d) The authority set out above shall in no way diminish the authority and responsibility of the city attorney to diligently prosecute violations of this subdivision through the municipal prosecutor's office.

(e) The SAWS is a co-permittee, under the federal permit, and a contractual enforcement arm of the city. In consultation with the city attorney, SAWS legal officers may exercise all or specific enforcement options enumerated in this subdivision B on behalf of the city.
(Ord. No. 94002, § 1, 5-24-01; Ord. No. 2014-06-19-0472, § 1(Exh. A), 6-19-14)

Sec. 34-809. Declaration of nuisance within applicable limits of the city's ETJ; city's authority to enforce within the ETJ.

Under authority of the Texas Local Government Code, section 217.042(a), (b), noncompliance with provisions of this subdivision B, or violation of its provisions, is here declared a nuisance and by authority of the enabling statute such declaration of nuisance extends to and shall be applicable within both the corporate limits of the city and outside the city limits but within the ETJ. Accordingly, summary abatement authority rests in the city's enforcement officials when imminent threat to the public health, safety, or welfare may arise.
(Ord. No. 94002, § 1, 5-24-01; Ord. No. 2014-06-19-0472, § 1(Exh. A), 6-19-14; Ord. No. 2024-06-20-0480, § 1(Exh. A), 6-20-24)

Secs. 34-810—34-849. Reserved.

*Subdivision C. Storm Water Compliance for Industrial and Commercial Activities**

Sec. 34-850. General provisions.

(1) *Purpose.* This subdivision sets forth requirements for all facilities discharging to the San Antonio Municipal Separate Storm Sewer System (MS4) and those facilities required maintain a Texas Pollutant Discharge Elimination System (TPDES) Multi-Sector General Permit (MSGP) for Industrial Storm Water Discharges.

(2) *Administration.* Pursuant to the TPDES Permit No. WQ0004284000 issued to the City of San Antonio, San Antonio Water System (SAWS) and the Texas Department of Transportation requiring the establishment of an Industrial and High Risk Runoff Program SAWS shall have responsibility for administering, implementing, and enforcing the Industrial Inspection Program as outlined in the San Antonio Storm Water Management Plan and established by this subdivision.

(3) *Objectives:* The objective of this subdivision is to prevent the introduction of pollutants to the maximum extent practicable into the MS4 from industrial and/or commercial facilities, including but not limited to those regulated categories that must maintain a TPDES discharge permit. All facilities that discharge storm water defined as being "associated with industrial activity" under provisions of Section 402 of the Clean Water Act and Chapter 26 of the Texas Water Code that discharge directly to waters of the state, the United States, or through a municipal separate storm sewer system are required to obtain either a MSGP or obtain a conditional No Exposure Exclusion (NEC) from permit requirements from the TCEQ.
(Ord. No. 2014-06-19-0472, § 1(Exh. A), 6-19-14)

Sec. 34-851. MSGP permit required.

The following facilities are required to obtain MSGP permit coverage and provide a copy to SAWS:

(a) Those facilities operating under the Industrial Sectors of the MSGP, and

(b) SAWS may require that an industrial or commercial facility not specifically referenced by the North American Industry Classification System to comply with SWP3 requirements of the MSGP in order to control to the maximum extent practicable the discharge of pollutants of concern into the MS4.

(Ord. No. 2014-06-19-0472, § 1(Exh. A), 6-19-14)

Sec. 34-852. Conditional no exposure certification.

Facilities regulated under the industrial activities described by one or more sectors of the MSGP may be excluded from permit requirements if there is no exposure of industrial materials or activities to precipitation or runoff. To qualify for this conditional exclusion from permit requirements, the operator must apply to the TCEQ for the NEC permit exclusion and provide certification that those regulated industrial activities and materials mobilized by storm water are isolated from storm water and storm water runoff by storm resistant shelters (as defined in the MSGP). Facilities that qualify for this exclusion shall provide a copy of the NEC to SAWS upon request. Facilities that operate under a conditional NEC exclusion are subject to inspection to verify compliance. Facilities that previously qualified for a NEC and have made changes in their industrial process resulting in exposure must obtain a MSGP to discharge storm water associated with industrial activities.
(Ord. No. 2014-06-19-0472, § 1(Exh. A), 6-19-14)

Sec. 34-853. Storm water pollution prevention plan requirements.

(1) SWP3 Components. Each facility requiring a MSGP Permit shall develop and implement a Storm Water Pollution Prevention Plan (SWP3) prior to submitting a Notice of Intent to the TCEQ for MSGP permit coverage. The SWP3

*__Editor's note—__Ord. No. 2014-06-19-0472, § 1(Exh. A), adopted June 19, 2014, enacted provisions intended for use as article VI, division 5, subdivision C, §§ 34-750—34-756. To preserve the sequential numbering of this Code, and at the discretion of the editor, said provisions have been redesignated as article VI, division 5, subdivision C, §§ 34-850—34-856.

must be maintained onsite or made readily available for review by SAWS upon request. The SWP3 shall include all elements identified in the MSGP language and continuously meet the criteria including any SWP3 updates and Best Management Practices (BMPs) maintenance as necessary to control discharge of pollutants. The SWP3 shall be developed to identify actual and potential sources of pollution that may reasonably be expected to affect the quality of storm water discharges from the facility. The SWP3 shall establish BMPs and any necessary structural control necessary to reduce or eliminate pollutants from the facility's storm water discharge. The SWP3 shall describe how such practices are appropriate for the facility and how each will effectively prevent or lessen pollution.

(2) Sampling criteria. Each regulated facility shall take the appropriate samples at the frequency prescribed in the current MSGP. These storm water samples include but are not limited to: effluent limitations for hazardous metals, benchmark sampling and any sector specific sampling required under the MSGP.

(3) Industrial and/or commercial facilities determined to potentially contribute pollutant loading to the MS4 may be required to perform additional monitoring as outlined by the TCEQ Municipal TPDES Permit to validate improvements to the BMPs and changes in the SWP3. This additional sampling can include, but is not limited to:

- Any pollutant limited in an existing TPDES permit for the facility
- Oil and Grease (O/G)
- Chemical Oxygen Demand (COD)
- pH
- Biochemical Oxygen Demand (BOD5)
- Total Suspended Solids (TSS)
- Phosphorus (P)
- Total Kjeldahl Nitrogen (TKN)
- Nitrate plus Nitrite Nitrogen
- Ammonia-nitrogen
- Temperature
- Total Organic Carbon (TOC)
- E. Coli and Fecal Coliform

(4) The SWP3 and monitoring data must be submitted to SAWS upon request.
(Ord. No. 2014-06-19-0472, § 1(Exh. A), 6-19-14)

Sec. 34-854. Inspection and entry.

SAWS shall have the right to inspect the facilities of any industrial user to ascertain whether the purposes of this subdivision are being met and all applicable requirements are being fulfilled. Industrial users and their employees shall allow SAWS representatives displaying proper identification ready access to the premises at all reasonable times for the purpose of: inspecting industrial operations and processes, examination and reproduction of business records pertinent to storm water quality, including hazardous and non-hazardous waste manifests and where applicable, making photographic documentation and obtaining other information necessary to ascertain whether the information submitted is current, and to assess compliance by permittees with storm water permit requirements. Failure to allow access or impeding an investigation will be considered a violation of this subdivision. In the event SAWS reasonably believes discharges from a property into the MS4 may cause an imminent and substantial threat to human health or the environment, an inspection may take place at any time without notice to the owner of the property or a representative on-site.
(Ord. No. 2014-06-19-0472, § 1(Exh. A), 6-19-14)

Sec. 34-855. Falsifying information.

(1) It is a violation of this subdivision to knowingly make any false statement, representation or certification in any application, record, report, plan, or other document filed or required to be maintained pursuant to this subdivision or pursuant to any condition or provision of an industrial storm water discharge permit.

(2) It is a violation of this subdivision to tamper with, interfere with the operation of, or knowingly render inoperable any monitoring, sampling or surveillance devices or to improperly impede an inspection procedure required or

authorized under this subdivision and/or any industrial discharge permit. In addition to any civil or criminal liability that may be imposed for a violation of this subdivision, a person who damages equipment used or necessary for monitoring compliance with an industrial discharge permit and/or this subdivision, shall also be liable for the cost associated with replacing or repairing such equipment.
(Ord. No. 2014-06-19-0472, § 1(Exh. A), 6-19-14)

Sec. 34-856. Enforcement and penalties.

(1) *Violations.* The commission of any act that is prohibited by this subdivision or the failure to perform any act that is required by this subdivision is a violation of this subdivision. SAWS may require that a compliance meeting be held prior to implementing legal action to enforce the provisions of this subdivision; however, such a meeting shall not be a bar against or a prerequisite for taking any enforcement action.

(2) *Penalties for violations.*

(a) *Criminal.* A conviction for a violation of this subdivision shall constitute a Class C misdemeanor. A person convicted of a violation of this subdivision shall be fined a minimum amount of not less than two hundred dollars ($200.00) per violation and a maximum amount of not more than two thousand dollars ($2,000.00) per violation.

Each violation of this subdivision shall constitute a separate offense, and each day an offense continues shall be considered a new violation for purposes of enforcing this subdivision.

(b) *Civil.* A civil penalty in an amount not to exceed five thousand dollars ($5,000.00) per violation of this subdivision may be imposed. Each violation of this subdivision shall constitute a separate violation, and each day such violation continues shall be considered a new violation for purposes of enforcing this subdivision, and calculating the amount of civil penalties.

(3) *Additional remedies.* In addition to the penalties for violations that may be imposed pursuant to this subdivision, SAWS may commence actions for any other legal and/or equitable relief or for the imposition of civil penalties authorized by any applicable law, statute, ordinance, or regulation.
(Ord. No. 2014-06-19-0472, § 1(Exh. A), 6-19-14)

DIVISION 6. AQUIFER RECHARGE ZONE AND WATERSHED PROTECTION

Subdivision A. General

Sec. 34-901. Statement of purpose.

The City of San Antonio adopts a goal of nondegradation which maintains or improves the quality of water entering the Edwards Aquifer. Pollution prevention will be assured by requiring best management practices and development criteria for point and non-point sources, including an emphasis on passive measures, supplemented by the use of structural controls, where appropriate. Land uses which could adversely affect the water supply are prohibited, thereby preventing the risk of contaminants entering the water reservoir, and posing a risk to the public health. The City of San Antonio hereby adopts this policy of nondegradation to insure the preservation of a clean and safe drinking water supply, and has found, as a matter of legislative determination, that the implementation of the regulations contained in this Division will significantly move toward accomplishing this goal.
(Ord. No. 81491, § 1(App. I), 1-12-95)

Sec. 34-902. Administration.

The San Antonio Water System (SAWS) shall be responsible for the administration of this division. The administrative official for the purpose of this division shall be the president/CEO of SAWS, and his vice-presidents and department directors insofar as they may be charged by the president/CEO and/or the provisions of this division with duties and responsibilities with reference thereto. Specifically, but without limitation, the resource protection and compliance

department of the San Antonio Water System shall ordinarily administer and enforce the provisions of this Division as directed by the president/CEO. The planning department, public works department, and other appropriate departments of the City of San Antonio, and the San Antonio Water System shall coordinate respective activities and cooperate to provide efficient and effective administration and enforcement of this division.
(Ord. No. 81491, § 1(App. I), 1-12-95; Ord. No. 2006-02-16-0241, § 5, 2-16-06)

Sec. 34-903. Compliance and violations.

(a) *Compliance.* All development located within the area defined as the Edwards Aquifer Recharge Zone over which the City of San Antonio may exercise its jurisdiction, including such areas: within the corporate limits of the city, within the extraterritorial jurisdiction of the city where applicable, and outside the territorial limits of the city and within Bexar County, as allowed by law, must comply with the provisions of this division.

(b) *Violations.* Any act or omission contrary to the requirements or directives of this division, or any breach of any duty imposed by this division shall constitute a violation hereof.
(Ord. No. 81491, § 1(App. I), 1-12-95)

Sec. 34-904. Abrogation and greater restrictions.

This division is not intended to repeal, abrogate, or impair any existing easements, covenants, or deed restrictions. However, where the language of this division conflicts with language used elsewhere in this code, that which imposes the more stringent restrictions shall prevail.
(Ord. No. 81491, § 1(App. I), 1-12-95)

Secs. 34-905, 34-906. Reserved

Sec. 34-907. Interpretation.

In the interpretation and application of this division, all provisions contained herein shall be:

(a) Considered as minimum requirements;

(b) Liberally construed in favor of the governing body; and

(c) Deemed neither to limit nor repeal any other powers granted under state law.

(Ord. No. 81491, § 1(App. I), 1-12-95)

Sec. 34-908. Definitions.

For the purpose of this division, the following terms shall be defined by meaning given each, as follows:

Affiant: The person, as that term is defined herein, which assumes financial and legal responsibility for the maintenance, operation, and effectiveness of structural controls, and the performance of required monitoring of surface water, related to a development for which an affidavit is, filed pursuant to section 34-911 of this division.

Best management practices (BMP): An effective integration of stormwater management systems, with appropriate combinations of landscape conservation, enhancement, structural controls, impervious cover, schedules of activities, prohibitions of practices, maintenance procedures and other management practices which provide an optimum way to convey, store and release runoff, so as to reduce peak discharge, remove pollutants, and enhance the environment.

Center line: The center line of the waterway refers to existing topographically defined channels. If not readily discernible, the center line shall be determined by, the "low flow line" whenever possible; otherwise by the center line of the two-year floodplain.

Commercial development: Any lot, parcel, or tract, not to be used as single or multi-family residential, recreational, open space or agricultural.

Degradation: Pollution of a representative sample of water which unreasonably reduces the quality of such water. The quality of a representative sample of water is unreasonably reduced when such water is rendered harmful, detrimental, or injurious to humans, animal life, vegetation, or property or the public health, safety, or welfare,

or impairs the usefulness or the public enjoyment of the water for any lawful or reasonable purpose.

Detention: The temporary storage of storm runoff, which is used to control the peak discharge rates, and which provides gravity settling of pollutants.

Detention time: The amount of time a parcel of water actually is present in a stormwater basin. Theoretical detention time for a runoff event is the average time a parcel of water resides in the basin over the period of release from the BMP.

Development: Buildings, roads and other structures; construction; and excavation, dredging, grading, filling and clearing or removing vegetation associated with residential, recreational, commercial, industrial or institutional construction.

Edwards Aquifer Recharge Zone (EARZ): Generally, that area where the stratigraphic units constituting the Edwards Aquifer crop out, and including the outcrops of other formations in proximity to the Edwards Aquifer, where caves, sinkholes, faults, fractures, or other permeable features would create a potential for recharge of surface waters into the Edwards Aquifer. The recharge zone is identified as that area designated as such on official maps located in the offices of the Texas Natural Resource Conservation Commission (TNRCC).

Filtration basin: Filtration basins are secondary treatment structures that follow sedimentation basins and release storm water runoff through a filter media to remove additional pollutants.

First flush: At least the first one-half inch of runoff from a storm event which flushes off and contains a disproportionately large loading of the accumulated pollutants from impervious and non-impervious surfaces.

Floodplain buffer zone: Lands and waters as defined in section 34-913.

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Floodplain preservation area: Lands and waters as established in section 34-912(a).

Ground water: Any water percolating below the surface of the ground.

Impervious cover: Roads, parking areas, buildings, pools, patios, sheds, driveways, private sidewalks, and other impermeable construction covering the natural land surface; this shall include, but not [be] limited to, all streets and pavement within the subdivision. "Percent impervious cover" is calculated as the area of impervious cover within a lot, tract, or parcel or within the total site being developed, divided by the total area within the perimeter of such lot, tract, parcel or development. Vegetated water quality basins, vegetated swales, other vegetated conveyances for overland drainage, and public sidewalks shall not be calculated as impervious cover.

Intermediate floodplain: Any channel, creek, stream, branch, or watercourse for surface water drainage that drains an area greater than three hundred twenty (320) acres but less than six hundred forty (640) acres.

Major floodplain: Any channel, creek, stream, branch, or watercourse for surface water drainage that drains six hundred forty (640) acres or more.

Minor floodplain: Any channel, creek, stream, branch, or watercourse for surface water drainage that drains an area greater than one hundred (100) acres but less than three hundred twenty (320) acres.

Non-degradation. The proper use of BMP's and pollution prevention criteria in activity so as to prevent degradation as defined herein.

Overland flow: Stormwater runoff that is not confined by any natural or manmade channel such as a creek, drainage ditch, storm sewer, or the like.

Peak-shaving: Controlling post-development peak discharge rates to pre-development levels by providing temporary detention in a BMP.

Person: Any natural person, corporation, partnership, joint venture, association (including home owner's or neighborhood associations), trust, or any other entity recognized by law.

Pollutants: Any element, chemical, compound, organism or material which alters the chemical, physical, biological, and or radiological integrity of water.

Pollution: The alteration of the physical, thermal, chemical or biological quality of, or the contamination of, any water.

Project: Project shall have the meaning contained in chapter 35 of this Code.

Resource protection and compliance department: The department within the San Antonio Water System (SAWS) designated to apply the provisions of this section.

Sedimentation basins: Sedimentation basins remove pollutants by creating conditions under which suspended solids can settle out of the water column.

Streamflow: Water flowing in a natural channel, above ground.

Structural controls: A range of pollution prevention best management practices ranging from vegetated buffers to on-site runoff detention and treatment facilities.

Swale: A natural depression or wide shallow ditch used to temporarily store, route, or filter runoff.

(Ord. No. 81491, § 1(App. I), 1-12-95; Ord. No. 2006-02-16-0241, § 2, 2-16-06; Ord. No. 2014-08-14-0581, §§ 3, 9, 8-14-14)

Cross reference—Definitions and rules of construction generally, § 1-2.

Subdivision B. Violations and Enforcement

Sec. 34-909. Violations, defenses and enforcement.

(A) *Violations.* In addition to the violations identified in Subdivision A of this division, the following described individual acts or omissions shall constitute separate and actionable violations of this division:

(a) It shall be a violation of this Division for any person to recklessly, negligently, know-

ingly, or intentionally commit any act or allow any condition to exist which causes degradation of surface water which:

(1) Is discharged from any development; and

(2) Flows over an area within the EARZ.

Commentary: It is not the intent of this division to place an unreasonable burden on any landowner or to require any person to treat degraded surface water which originates entirely outside their property. Also, these regulations are not intended to prohibit non-polluting discharges from fire hydrant flushing, fire fighting, uncontaminated groundwater, or potable water sources.

(B) *Enforcement.*

(a) *Granting of enforcement authority to SAWS.*

(1) The president/CEO of SAWS is hereby granted the authority to designate qualified SAWS personnel to enforce this division in the manner and to the extent allowed by law.

(2) The president/CEO is specifically granted, the authority to designate qualified SAWS personnel to file notices of violations of this division and to take all necessary actions to file complaints with the Municipal Prosecutor's Office of the City of San Antonio, or other prosecuting authority for violations of this division.

(b) *Notice of violation and response.* Pursuant to the responsibility established in Subsection (a) of this section and section 34-902, above, whenever the resource protection and compliance department, believes that any person has violated or is violating any provision of this division, the resource protection and compliance department may serve (either personally or by registered or certified mail) upon such person a written notice stating the nature of the alleged violation. The recipient of a violation notice issued under this Section must respond to the notice in writing to the resource protection and compliance department within fifteen (15) working days from the receipt of such notice. Should the recipient of a violation notice fail to respond in writing to the resource protection and compliance department within the initial fifteen (15) working day response period as required by this section, the recipient of the notice shall be deemed to have admitted responsibility for the violation.

(c) *Requirements of response to notice of violation.* The response to a violation notice shall be in writing, and shall, at a minimum, include the following information:

(1) A statement as to which of the violation(s) are being admitted by the respondent;

(2) A statement as to which of the violation(s) are being contested by the respondent; and,

(3) The grounds on which the respondent denies responsibility for each contested violation.

(d) *Grant of authority to pursue legal remedies.* The SAWS legal department is hereby granted the authority to seek legal and/or equitable remedies for violations of this division, including the filing of criminal charges. For the purpose of enforcing this division the SAWS's Environmental Counsel shall represent the City of San Antonio in civil enforcement actions, by and through the San Antonio Water System, and is hereby authorized to seek legal and/or equitable remedies against any person which is reasonably believed to be violating or have violated this division. A legal proceeding prosecuted under this division does not constitute a waiver by the San Antonio Water System of any right the City of San Antonio may have to join in a legal action originating from an alternative source of law. The San Antonio Water System may commence such actions for appropriate legal and/or equitable relief in courts having proper jurisdiction and may seek civil penalties and any other legal or equitable relief available under common law, Chapter 54 of the Texas Local Government Code, or any other applicable local, state, or federal code or statute.

(e) *Penalties.*

(1) *Criminal.* A conviction for violation of this division shall constitute a class C misdemeanor. A person convicted of a violation of this division shall be fined a minimum amount of not less than two hundred dollars ($200.00) per violation and a maximum amount of not more than two thousand dollars ($2,000.00) per violation. Each violation of a particular section of this division shall constitute a separate. offense, and each day an offense continues shall be considered a new violation for purposes of enforcing this division.

(2) *Civil.* A civil penalty in an amount not to exceed one thousand dollars ($1,000.00) per violation of this division may be imposed. However, a civil penalty in an amount not to exceed five thousand dollars ($5,000.00) per violation may be imposed for violations which cause pollution of waters flowing into a channel, stream or other conveyance which drains into or is a part of the stormwater sewer system owned or controlled by the City of San Antonio. Each violation of a particular section of this division shall constitute a separate offense, and each day such an offense continues shall be considered a new violation for purposes of assessing civil penalties and enforcing this division.

(f) *Authority of city attorney to enforce.* The grant of the authority set out in this section shall in no way diminish the authority and responsibility of the office of the city attorney to insure that this division is properly and diligently enforced, to prosecute violations of this division, and to defend the legality of this division if challenged.

(Ord. No. 81491, § 1(App. I), 1-12-95; Ord. No. 2006-02-16-0241, § 5, 2-16-06; Ord. No. 2014-08-14-0581, § 9, 8-14-14)

Subdivision C. Letter of Certification

Sec. 34-910. Letter of certification required.

No development shall be undertaken in connection with any project on any land, tract, parcel, or lot which is within the boundaries of the Edwards Aquifer Recharge Zone and which is subject to regulation by this division unless and until a letter of certification is issued by the resource protection and compliance department of the San Antonio Water System to the owner or developer of such property. A letter of certification issued under this division shall expire if progress towards completion of the project has not been demonstrated within three (3) years from the date the letter of certification was issued.

(Ord. No. 81491, § 1(App. I), 1-12-95; Ord. No. 2006-02-16-0241, § 2, 2-16-06; Ord. No. 2014-08-14-0581, § 3, 8-14-14)

Sec. 34-911. Application for letter of certification; contents.

Application for a letter of certification required under section 34-910 shall be submitted to the resource protection and compliance department and shall be accompanied by a site development plan. The application and site development plan shall contain the following information unless the resource protection and compliance department determines that, due to the scope and nature of the proposed development, some of the information is unnecessary:

(a) The date, scale, north point, and key plan showing the location of the tract on which the development is to take place.

(b) The existing boundary lines, and acreage of the tract on which the development is to take place, and the common boundary lines and names of the owners of adjacent properties.

(c) Identification of all Floodplain Preservation Areas, floodplain buffer zones, significant recharge features and buffer zones, and all such other areas with restrictions as required by this article.

(d) A detailed erosion/sedimentation control plan and construction sequencing plan required by section 34-975.

(e) A detailed drainage plan and street layout that comply with the requirements of this division.

(f) Engineering drawings showing compliance with the applicable requirements of this division for control strategies on development.

(g) A report, site plan, and other relevant information addressing the Best Management Practices as required by sections 34-965 through 34-975.

(h) A topographic map, drawn to a scale of one hundred (100) feet to one inch, or in an appropriate scale. The map should display, according to the best information available, topographic information and features (including, but not limited to, faults and fractures along waterways and sinkholes), and the floodplain preservation areas.

(i) The location, type of use, and total percentage of proposed and existing impervious cover on the site, in conformance with this division.

(i) Location of all temporary and permanent runoff detention basins, constructed and altered waterways and other physical facilities to be installed to comply with the terms of this division.

(k) An affidavit from the appropriate affiant showing accepting legal and financial responsibility for structural controls, maintenance cost, monitoring, and remediation.

(l) Final plans for underground utility installation shall be submitted with the site development plan and shall show minimum construction corridor widths.

(m) Location of all monitoring stations, sample points or other significant devices used in measuring or assuring water quality.

(n) Any baseline data from surface water samples required to be taken or maintained under regulations established by the San Antonio Water System.

(o) A maintenance plan which provides the proposed schedule and details of maintenance which will be performed to ensure the proper operation and effectiveness of all control structures.

(p) Special notes or attachments as may be required by other sections of this division.

The site plan required by this section shall be sealed by a registered engineer and by a registered landscape architect with regard to elements of the plan within their respective disciplines. In the event a site plan is amended by an applicant, the above requirements, (a) through (p) on the original plan, must be updated to the extent they are affected by the amendment.
(Ord. No. 81491, § 1(App. I), 1-12-95; Ord. No. 2006-02-16-0241, § 5, 2-16-06)

Subdivision D. Pollution Prevention Criteria

Sec. 34-912. Floodplain preservation area.

(a) *Floodplain preservation area definition.*

(1) Minor, intermediate and major floodplain shall be designated for any channel, creek, stream, branch, or watercourse within the Edwards Aquifer Recharge Zone having a watershed greater than one hundred (100) acres. Minor, intermediate and major floodplain shall be defined as follows:

Floodplain	*Drainage Area (acres)*
Minor	100—320
Intermediate	320—640
Major	over 640

(2) The floodplain delineation shall be based on a 100-year frequency, a channel in its unaltered state, and shall assume conditions consistent with the City of San Antonio floodplain regulations contained in Chapter 35 of this Code. Where such floodplains are not designated on maps of the City of San Antonio, mapping showing

such floodplain features shall be submitted as an element of the requirements of section 34-911 hereof.

(b) *Allowable activities in floodplain preservation areas:* The floodplain preservation area shall remain free of all construction activity, development, and alterations except for the following:

(1) Arterial, collector and residential street crossings only as provided below:

a. A major floodplain may be crossed by arterial streets that are identified on the City of San Antonio Major Thoroughfare Plan as approved by city council; provided however, that the arterial street is constructed in accordance with standards provided for in section 34-965.

b. An intermediate floodplain may be crossed by arterial and collector streets, provided, however, that the arterial or collector streets are constructed in accordance with standards provided for in section 34-965.

c. A minor floodplain may be crossed by arterial, collector, or local residential streets, provided, however, that such streets are constructed in accordance with standards provided for in section 34-965.

(2) Utilities as provided by subsection (c) below.

(3) Fences that do not obstruct flood flows.

(4) Public and private parks and open space, with development in the parks and open space limited to trails and facilities (other than stables and corrals for animals) for hiking, jogging, non-motorized biking, and nature walks.

(5) Water quality or flood control systems with minimum disruption.

(6) Where a floodplain has been altered by a manmade activity such as a highway, railroad etc. then the floodplain can be remediated to its natural limits.

(7) Public projects that are for the public benefit such as projects to enhance recharge, provide flood prevention, and other capital improvements are exempt from these requirements.

(c) *Permitted utility/construction.*

(1) All underground utilities, other than wastewater, shall be located outside the floodplain preservation area, except for crossings (which should incorporate shared trenching where practical), and shall comply with the provisions of Chapter 35 of this Code (UDC).

(2) At the time of site development plan review, the director of the resource protection and compliance department shall make a report to the director of wastewater management on any significant environmental impact, with an emphasis on protecting potential recharge, and possible alternatives related to wastewater line locations in the floodplain preservation area. Construction within the ordinary high water mark is discouraged unless approved by the San Antonio Water System upon consideration of reports by the resource protection and compliance department.

(Ord. No. 81491, § 1(App. I), 1-12-95; Ord. No. 2006-02-16-0241, § 5, 2-16-06)

Sec. 34-913. Floodplain buffer zone.

(a) Floodplain buffer zones (FBZ) shall be established parallel to all floodplain preservation areas. The outer perimeter of each FBZ shall extend outward from the outer boundaries of the floodplain preservation area, based on the appropriate slope, in accordance with the following table:

% Slope	0-2.5	>2.5-5.0	>5.0-7.5	>7.5-10.0	>10.0-12.5	>12.5

Buffer Width (ft)	60	70	80	90	100	100

The appropriate slope will be determined by taking the average slope of the first fifty (50) feet of buffer width from the floodplain preservation area. In no case shall the length over which the average is determined exceed three hundred (300) feet; and, in no event shall the buffer zone exceed the extent of the watershed.

(b) No impervious cover will be allowed in the buffer zones except as outlined in subsection (c) below.

(c) Construction activities in the buffer zones shall be restricted to the activities allowed in section 34-912.
(Ord. No. 81491, § 1(App. I), 1-12-95)

Sec. 34-914. Drainage area.

(a) The floodplain preservation area shall be extended to the EARZ drainage area in the Extra-Territorial Jurisdiction (ETJ). This floodplain preservation area will be applied to creeks with watersheds greater than three hundred (300) acres and the allowable activities will be as described in section 34-912(b) Allowable Activities in Floodplain Preservation Area.

(b) The floodplain buffer zone shall be required adjacent to the floodplain preservation area using the buffer width formula established in this division. The maximum impervious cover in the drainage area buffer zone shall be ten (10) percent. This requirement is considered to be more flexible in the drainage area than in the recharge zone.

% Slope	0-2.5	>2.5-5.0	>5.0-7.5	>7.5-10.0	>10.0-12.5	>12.5
Buffer Width (ft)	60	70	80	90	100	100

(c) The regulations contained in this section shall not apply to any activity allowed by a floodplain development permit issued before the effective date of this division, or for which application was made before the effective date of this division.
(Ord. No. 81491, § 1(App. I), 1-12-95)

Secs. 34-915—34-919. Reserved.

Sec. 34-920. Recharge feature protection and buffer zone.

Within the Edwards Aquifer Recharge Zone, the applicant shall identify potential recharge features on the development plan which provide a conduit from the earth's surface to subsurface water.

(a) *Significant recharge features.*

(1) Sealing of significant recharge features shall be prohibited.

(b) *Significant recharge feature buffer zone.*

(1) A buffer area will be placed surrounding "significant" recharge matures which will be maintained in a natural condition. The width of the buffer area shall be based on the requirements of section 34-913, based on measurements from the outer perimeter of the recharge feature, according to the following chart:

(2) "Significant" features are those defined as "high concern features" by present TNRCC regulations.

(c) *Additional recharge feature protection.* SAWS shall require the identification of significant recharge features and shall prescribe protective measures deemed rea-

sonable and necessary to eliminate the entry of pollutants into subsurface water though such recharge features. Whether on or off-site, protective measures include but are not limited to: 1) additional buffer zones covered with grass or other appropriate vegetation, 2) installation of diversion methods or structures outside the buffer zone, 3) termination of the point source activity which creates the pollution hazard, and 4) removal of substances and objects from the recharge feature. The protective measures prescribed together with the date by which such measures must be completed shall be set forth in writing and sent to the landowner(s) involved by certified mail, return receipt requested. The landowner shall take the corrective and protective actions prescribed by SAWS.

(Ord. No. 81491, § 1(App. I), 1-12-95)

Secs. 34-921—34-924. Reserved.

Sec. 34-925. Pollution prevention criteria.

For the purpose of regulating activities within the areas regulated by this division, while acknowledging and respecting the interests of property owners, projects in the area affected by this division shall be classified according to the following three (3) categories:

Category 1: A project for which an application for a permit, as defined in Chapter 245, Texas Local Government Code, has been filed, before the effective date of this division.

Category 2: A project located on property within the corporate limits of the city, that is not in category 1;

Category 3: A project located on property within the Edwards Aquifer Recharge Zone which is within the extraterritorial jurisdiction of the city, and which does not meet the requirements of category 1 or category 2, above.

(Ord. No. 81491, § 1(App. I), 1-12-95; Ord. No. 2006-02-16-0241, § 2, 2-16-06; Ord. No. 2014-08-14-0581, § 3, 8-14-14)

Sec. 34-926. Pollution prevention criteria in Category 1.

(a) Unless otherwise specified in this division, the development criteria and regulations of the city which were in effect at the time the original application for the permit was filed pursuant to, and as defined by Chapter 245, Texas Local Government Code, shall govern the development of a project that is classified as category 1 because of the filing of said application.

(b) A project which satisfies the category 1 requirements of section 34-925 because it was the subject of an application submitted or permit issued before the effective date of this division, will be automatically placed in its appropriate category after the application or permit expires pursuant to the laws in effect at the time the application was submitted or the permit was issued.

(c) To the extent allowed by law, if a project classified as category 1 is substantially altered, then the category 1 status of such project, or portion thereof, shall be lost, unless such project is classified category 1 by reason of another valid permit, and the project shall be appropriately classified pursuant to section 34-925.

In applying this provision "substantially altered" shall be considered as any action done through the initiative of the property owner or the property owner's agent provided however that "substantially altered" does not include those actions classified as minor amendments in section 35-412 and section 35-715 of chapter 35.

(d) A developer may voluntarily go to category 2 or 3 as appropriate, with the ability to transfer platting fees to the new category 2 or 3 project.

(e) If a project is classified as category 1 under section 34-925, then the San Antonio Water System shall, when commenting to the Texas Commission on Environmental Quality regarding an application for a water pollution abatement plan (WPAP), recommend that the WPAP include, at a minimum, the elements contained in section 34-911.

(Ord. No. 81491, § 1(App. I), 1-12-95; Ord. No. 2006-02-16-0241, § 2, 2-16-06; Ord. No. 2014-08-14-0581, § 3, 8-14-14)

Secs. 34-927—34-929. Reserved.

Sec. 34-930. Pollution prevention criteria in Category 2.

The following criteria and restrictions shall apply to all regulated activity on a project that is classified as category 2 by section 34-925 of this division:

(a) *Single-family residential.* The projected impervious cover for all single-family residential development of a category 2 project shall not exceed a maximum of thirty (30) percent gross impervious cover.

(b) *Multi-family residential.* The projected impervious cover for multifamily residential development of a category 2 project shall not exceed a maximum of fifty (50) percent gross impervious cover.

(c) *Commercial.* The projected impervious cover for commercial development of a category 2 project shall not exceed a maximum of sixty-five (65) percent gross impervious cover.

(d) *Special conditions.* Development activities regulated by this section shall be subject to the following special conditions:

(1) Within a multi-use project, impervious cover limits may be exceeded in a given area if compensated for in another area which is within the same overall project and which is dedicated on a simultaneous basis.

(2) The allowable impervious cover in this section does not override requirements for significant recharge feature protection buffer zones or floodplain preservation areas and buffer zones.

(3) Additional control strategies as described in Subdivision E are required on all multi-family and commercial development.

(4) Non-Structural Best Management Practices as described in Subdivision E are required for all single-family developments

(5) Must be designed to prevent degradation.

(e) *Monitoring.* Monitoring of runoff for pollutant concentrations and loadings shall be required, according to standards established by. the SAWS pursuant to its stormwater program and/or NPDES permit process, including but not limited to, baseline assessments, appropriate pollution prevention design, performance inspections, and nondegradation requirements. The monitoring methods, protocol and expense will be determined by SAWS at the time of permit review and approval. Expenses for monitoring will be the responsibility of the affiant.

(f) *Major intersection nodes (node).* For the purpose of this section a node shall mean a rectangular area centered on a major intersection, and having boundaries based on a linear distance from the outer limits of the rights-of-way (ROW) of the intersecting streets, roads, of highways (nodal distance). The length and width of the node is equal to the ultimate rights-of-way width of the street plus the nodal distance on each side of the street ROW, as determined by the resource protection and compliance department and the City of San Antonio. Percentages of impervious cover in Major Intersection Nodes may exceed the limits imposed elsewhere in this division, but shall be limited as follows:

Type of Intersection	*Nodal Distance*	*Commercial Impervious Coverage*
Hwy-Hwy Intersection	2500′	80% Maximum
Hwy-Arterial Intersection	1000′	75% Maximum

(Ord. No. 2006-02-16-0241, § 2, 2-16-06; Ord. No. 2014-08-14-0581, §§ 3, 9, 8-14-14)

Secs. 34-931—34-934. Reserved.

Sec. 34-935. Pollution prevention criteria in Category 3.

The following criteria and restrictions shall apply to all regulated activity on a project that is classified as category 3 by section 34-925:

(a) *Single-family residential.* The projected impervious cover for all single-family residential development of Category 3 property shall not exceed a maximum of fifteen (15) percent gross impervious cover, or the maximum impervious cover specified in accordance with subsection (d) of this section.

(b) *Multi-family residential.* The projected impervious cover for multi-family residential development of Category 3 property shall not exceed a maximum of fifteen (15) percent gross impervious cover, or the maximum impervious cover specified in accordance with subsection (d) of this section.

(c) *Commercial.* The projected impervious cover for commercial development of Category 3 property shall not exceed a maximum of fifteen (15) percent gross impervious cover, or the maximum impervious cover specified in accordance with subsection (d) of this section.

(d) *Additional impervious cover.* The maximum impervious cover requirements of subsection (a), (b), and (c) above shall apply unless the property owner or his agent provides clear and convincing evidence, which at a minimum shall consist of engineering documents submitted under the seal of a registered engineer, that the proposed impervious cover in excess of is fifteen (15) percent gross will not cause degradation as defined herein.

(e) *Multi-use project.* Within a multi-use project, impervious cover limits may be exceeded in a given area if compensated for in another area of the overall project if dedicated on a simultaneous basis.

(Ord. No. 81491, § 1(App. I), 1-12-95; Ord. No. 2006-02-16-0241, § 2, 2-16-06; Ord. No. 2014-08-14-0581, § 3, 8-14-14)

Secs. 34-936—34-944. Reserved.

Sec. 34-945. Multi-category developments.

Impervious cover allowances for development identified in sections 34-925 through 34-935 above, shall be prorated according to the categories within those areas when multi-category development is proposed.

(Ord. No. 81491, § 1(App. I), 1-12-95)

Secs. 34-946—34-959. Reserved.

Subdivision E. Additional Control Strategies

Sec. 34-960. Detention, sedimentation and filtration for water quality control.

(a) All multi-family and commercial developments of land with projected impervious cover exceeding fifteen (15) percent shall comply with the provisions of this division.

(b) All multi-family and commercial development shall install detention, sedimentation and filtration basins in accordance with technical guidelines acceptable to SAWS, and which include at least the following design and control features:

(1) At a minimum, the water quality basins and drainage into the basins shall be designed to capture and isolate at least the first one-half (½) inch of runoff. All subsequent runoff in excess of the design capacity of the basins shall bypass the basins and remain segregated from the contained runoff waters including those waters in a peak shaving basin if required.

(2) Input to and release from water quality basins shall utilize vegetated swales and/or overland flow dispersion measures where possible.

(c) No infiltration trenches will be allowed on the Edwards Aquifer recharge zone.

(Ord. No. 81491, § 1(App. I), 1-12-95)

Secs. 34-961—34-964. Reserved.

Sec. 34-965. Street improvements.

(a) All roadway projects with anticipated, or actual Average Daily Traffic (ADT) volumes in excess of one thousand five hundred (1,500) vehicles per day shall be required to design, construct, operate, and maintain sedimentation and filtration basins to capture and treat the first flush runoff from the roadway. In addition, all roadway projects with anticipated or actual ADT volumes in excess of thirty thousand (30,000) vehicles per day shall be required to design, construct, operate, and maintain hazardous materials traps (HMT's) that will capture, contain and isolate a hazardous spill on the roadway facility. The minimum volume of the HMT's shall be ten thousand (10,000) gallons and they shall contain a self-draining outlet and an emergency cut off to contain any spilled materials.

(b) All bridge structures with ADT in excess of one thousand five hundred (1,500) vehicles per day shall be prohibited from discharging directly to the floodplain preservation area from the roadway surface. These bridges shall be designed to transport the stormwater off the bridge structure and into a sedimentation pond, filtration pond, or equivalent system as approved by SAWS as long as it provides equal water quality protection.

(c) Street maintenance projects that do not increase the impervious cover to beyond that of the original street shall be exempt from the provisions of this section.
(Ord. No. 81491, § 1(App. I), 1-12-95)

Secs. 34-966—34-969. Reserved.

Sec. 34-970. Best Management Practices (BMP's).

All development plans for single-family residential development of Category 2 or 3 projects, as identified in section 34-925, which are submitted to the resource protection and compliance department, as required by this division, shall contain sufficient planned BMP features to allow for the proper conveyance, storage and release of runoff, to adequately reduce peak stormwater discharge, and remove pollutants in a manner and to a degree which is acceptable to the resource protection and compliance department. BMP's are features which provide effective integration of stormwater management systems, with appropriate combinations of landscape conservation, enhancement, structural controls, schedules of activities, prohibitions of practices, maintenance procedures and other management practices which provide an optimum way to convey, store, treat and release runoff, so as to reduce peak discharge, remove pollutants, and enhance the environment. All development plans submitted shall, at a minimum, incorporate all of the following BMP's:

(a) *Vegetative buffer zones.* Buffer zones are vegetated strips of land used for temporary or permanent water quality benefits. Buffer zones are used to decrease the velocity of storm water runoff, which in turn helps to prevent soil erosion. The buffer zone can be an area of vegetation that is left undisturbed during construction, or it can be newly planted. Buffer zones may be used in addition to or as a substitute to other control strategies described in this section. If vegetative buffer zones are used they shall be designed and reviewed in accordance with the standards established by the San Antonio Water System.

(b) *Water conservation.* As part of the requirements for development, the applicant shall submit a water conservation plan. Water conservation provides an alternative approach to the twin problems of increasing demand for water in a community and finding new water sources. The water conservation plan shall include as a minimum the following:

(1) Identity of all water users;

(2) Monitoring program to identify and repair leaks in water pipes;

(3) Required installation of water efficient plumbing fixtures;

(4) Description of a water efficient landscape program;

(c) *Integrated pest management programs.* A pesticide and fertilizer management plan shall be submitted that provides general

information regarding proper use, storage, and disposal of pesticide and fertilizers that are commonly available. In addition, the plan shall provide information regarding what types of pesticides and fertilizers are most likely to be used for the various types of development. The plan shall also delineate which types of pesticides and fertilizers should be avoided.

(Ord. No. 81491, § 1(App. I), 1-12-95; Ord. No. 2006-02-16-0241, § 2, 2-16-06; Ord. No. 2014-08-14-0581, §§ 3, 9, 8-14-14)

Secs. 34-971—34-974. Reserved.

Sec. 34-975. Construction sequencing and erosion controls.

(a) A comprehensive and detailed erosion and, sedimentation control plan and report shall be submitted with the application. The report shall specify maintenance of controls. All items noted in the erosion control and construction sequencing plans shall also be included in the final construction plans.

(1) The report shall include the following items:

a. Construction sequencing as it relates to placement, maintenance, removal of temporary erosion controls, and restoration measures. The sequencing plan schedules these items in the overall scheme of development.

b. A list of such erosion controls and maintenance thereof.

c. Slope stabilization techniques to be employed.

d. Restoration plans including vegetative types.

(2) The erosion control and construction sequencing plan shall include the following items:

a. Location of temporary erosion controls with maintenance note. The plan shall show the physical details of the controls.

b. A construction sequencing list, including the timing of the use of various controls in relation to steps in the construction.

c. Restoration techniques and acceptability note.

(b) The development shall comply with the erosion control and restoration measures guidelines as identified by the San Antonio Water System.

(c) The clearing of land shall conform to the following criteria:

(1) No clear or rough-cutting shall be permitted prior to the issuance of a letter of certification by the resource protection and compliance department. Limited clearing and rough-cutting for soil testing and surveying is allowed.

(2) No clearing or rough-cutting for purposes other than paragraph (1) above and construction of temporary erosion and sedimentation controls as per approved plans shall be permitted until these controls are in place.

(3) Clearing for the temporary storage of spoil or construction equipment, or for the permanent disposal of fill material or spoils, shall be so designated on the site plan.

(4) Vegetation within any floodplain preservation or buffer, or significant recharge buffer area should not be disturbed except for purposes consistent with development activity permitted by section 34-912.

(5) If an applicant does not comply fully with the approved construction sequencing and erosion control plan, the resource protection and compliance department shall notify him in writing that the city may correct and revegetate the, disturbed area at his expense, unless he does so within sixty (60) days after the date on the notice, or unless applicant provides erosion and sedimentation controls and the continuing maintenance thereof acceptable to the resource protection and compliance department.

(6) The requirements of this division shall not apply to ordinary vegetation management specifically regulated elsewhere by this code. This subsection is not intended to provide a defense for or waiver of any other requirements of this code, including but not limited to those contained in Article V of Chapter 14.

(Ord. No. 81491, § 1(App. I), 1-12-95; Ord. No. 2006-02-16-0241, § 5, 2-16-06)

Secs. 34-976—34-979. Reserved.

Subdivision F. Variance and Appeal

Sec. 34-980. Variance procedure.

(a) *Variances.* Variances to the terms and requirements of Subdivisions A, C, D, or E, of this division may be granted by the San Antonio Water System where a literal enforcement of the provisions of this division will result in an unnecessary hardship. No variance may be granted unless:

(i) Such variance will not be contrary to public interest;

(ii) Such variance will not substantially or permanently injure the appropriate use of adjacent land which is regulated by this Division;

(iii) Such variance will be in harmony with the spirit and purpose of this division;

(iv) The plight of the owner of the property for which the variance is sought is due to unique circumstances existing on the property, and the unique circumstances were not created by the owner of the property and are not merely financial, and are not due to or the result of general conditions of the category or geographical area in which the property is classified or located;

(v) The variance will not substantially weaken the general purposes of this division or the regulations herein established for the regulated area of the recharge zone;

(vi) The variance will not cause unreasonable disruption to the natural terrain;

(vii) The variance granted is limited in scope of relief to only that which is necessary to relieve the hardship condition.

(b) *Request for variance.* A person who feels they qualify for a variance, under the conditions outlined in subsection (a) above, from the literal application of this division to their property may request a variance from such application of one or more of the provisions of this division. All requests for variances shall be made in writing to the resource protection and compliance department of the San Antonio Water System and shall include:

(i) The subject of the requested variance, and

(ii) The justification for granting a variance.

(c) *Burden.* The party requesting a variance has the burden of demonstrating that sufficient evidence exists for the granting of a variance to application of this division, and the resource protection and compliance department shall consider and provide a written response to all such requests for variances within twenty (20) working days from the date a valid request for variance is received. The resource protection and compliance department shall serve its response by certified mail, return receipt requested, or by hand delivery.

(d) *If granted.* If a variance is granted as requested, or with modification, the recipient of the variance may develop their property according to all applicable provisions of this division to the extent such provisions have not been waived or modified by the variance, and according to the applicable provisions contained in Chapter 35 of this Code.

(e) *Term.* If a variance granted under this section shall have a term from the date of issuance, then any activity which would otherwise be prohibited by this division, except for the existence of such a variance, shall not be allowed to continue after the expiration of the specified term.

(f) *Appeal.* Any person who properly requests a variance pursuant to this section, and objects to the decision of the resource protection and compliance department which denies all or part of the relief requested may appeal such denial to the

president/CEO of SAWS by filing a request for appeal within ten (10) working days from the date notice of denial is received by the requesting party. All such appeals shall be made in writing to the office of the president/CEO of the San Antonio Water System and shall include, all pertinent information which the person requesting the appeal wishes to be considered. The president/CEO may require additional information from, or request a meeting with the person making the appeal. The written decision of the president/CEO, or authorized designee, on the appeal shall be rendered within fifteen (15) working days from the date the appeal is received by the president/CEO, and shall be delivered to the appealing party by certified mail, return receipt requested, or by hand delivery. If the president/CEO, or authorized designee fails to render an opinion on the appeal within the fifteen (15) working day period, the relief requested in the appeal shall be considered to have been wholly denied.

(g) *City council.* If the president/CEO of SAWS denies all or part of the relief requested in an appeal, the aggrieved party may make a final appeal to the San Antonio City Council by filing a notice of final appeal with the office of the city clerk for the City of San Antonio no later than the tenth day following the party's receipt of the written decision of the president/CEO from which the final appeal is brought, or the expiration of the fifteen-day period if no decision is rendered. A true and correct copy of the notice of final appeal must also be filed with the office of the president/CEO of SAWS which, upon receipt of such notice, shall immediately transfer copies off all documents and information relevant to the appeal to the office of the city clerk. The city clerk shall schedule the hearing of the final appeal at the earliest regularly scheduled meeting of the city council which will allow compliance with the requirements of the Texas Open Meetings Act. The decision of the city council on the relief requested in a notice of final appeal from the application of this division shall be considered final.
(Ord. No. 81491, § 1(App. I), 1-12-95; Ord. No. 2006-02-16-0241, § 5, 2-16-06)

Sec. 34-981—34-999. Reserved.

DIVISION 7. UNDERGROUND STORAGE TANK MANAGEMENT PROGRAM

Subdivision A. General Provisions

Sec. 34-1000. Purpose.

The city council of the City of San Antonio has adopted a policy that the installation of underground storage tanks and related systems (UST) within the Edwards Recharge Zone District (ERZD), as defined by Section 35-3102 of this Code, is inappropriate, and that the use of USTs within the Edwards Transition Zone shall only be allowed conditionally. Because there are UST sites which were installed before city council banned USTs in the ERZD, it is important that a monitoring and enforcement program be put in place to ensure the maintenance of each such existing UST system and to monitor compliance with rules and regulations which are designed to protect the public health, safety, and welfare. The regulations contained in this division provide a monitoring and enforcement program governing USTs within the ERZD and the Edwards Transition Zone. These regulations are the result of recommendations made by the Mayor's Water Quality Task Force for the purpose of protecting the water quality of the Edwards Aquifer and protecting the environment and are intended to be administered by the resource protection and compliance department of the San Antonio Water System.
(Ord. No. 83200, § 1, 11-16-95; Ord. No. 2006-02-16-0241, § 5, 2-16-06)

Sec. 34-1001. Applicability.

(a) The regulations contained in this division shall apply to all new and existing "Underground Storage Tanks" and "Underground Storage Tank Systems" (USTs), as defined by Section 35-1041 of this Code, which are located within the ERZD or the Edwards Transition Zone and are within the jurisdiction of the City of San Antonio, and which store and/or convey hazardous materials, flammable liquids or combustible liquids, as those terms are defined in the City of San Antonio Uniform Fire Code. The owner and operator of all such

UST facilities are subject to and shall comply with the requirements of this division. This division is intended to provide guidelines for owners/operators of such UST systems and to provide a UST management plan in accordance with the recommendations established by the city council in Ordinance No. 81147.

(b) These regulations provide minimum specifications and guidelines to monitor and ensure compliance with existing city, state and federal regulations and future rules, regulations and ordinances consistent with nationally recognized good practices for safeguarding life, property and the environment by protecting the public water supply from contamination caused by sudden or gradual releases of hazardous materials from USTs.
(Ord. No. 83200, § 1(App. I), 11-16-95)

Secs. 34-1002—34-1005. Reserved.

Subdivision B. Underground Storage Tank System Permitting

Sec. 34-1006. Permit required.

The operator of a facility which utilizes one or more USTs subject to regulation by this division is required to obtain a permit for operation of the UST system. Permit application forms are available from and shall be submitted to the resource protection and compliance department. Failure to provide information as requested in the application shall be grounds for refusal by the resource protection and compliance department to issue the permit. If the facility operator is not responsible for the UST, then the operator shall notify the resource protection and compliance department of the identity of the individual(s) responsible for the UST. Operation without a permit of a facility regulated by this division shall constitute a violation of this division.
(Ord. No. 83200, § 1(App. I), 11-16-95; Ord. No. 2006-02-16-0241, § 5, 2-16-06)

Sec. 34-1007. Information required.

The following information, at a minimum, shall be required as part of the permit application process and shall be received by the resource protection and compliance department prior to the issuance of a permit:

(a) General information regarding the identity of the applicant and facility, including:

1. The name and address of the applicant and facility;
2. The applicant's business phone number;
3. The name of the operator(s) of the facility;
4. The name, address, title and phone number of person responsible for compliance and each primary emergency response person;
5. Whether the facility is located on the Recharge Zone or Transition Zone;
6. Proof of insurance as required by 40 CFR 280.93.

(b) Facility maps or site plans for each regulated facility which identify the following:

1. Location of all underground hazardous materials storage and dispensing locations;
2. Routes of access to each regulated facility;
3. Emergency equipment related to each facility;
4. Location of stormwater runoff abatement facilities, if any.

(c) Regulated substance inventory sheet which provides the following:

1. Name of each regulated substance stored;
2. Capacity of each UST;
3. Material safety data sheet (MSDS);
4. Installation date(s) of each UST(s).

(d) Monitoring and testing plan as defined by Section 34-1020 of this division.

(e) All other information related to compliance with this division.

(Ord. No. 83200, § 1(App. I), 11-16-95; Ord. No. 2006-02-16-0241, § 5, 2-16-06)

Sec. 34-1008. Permit procedures.

(a) Any facility regulated by this division shall submit a completed permit application in accordance with section 34-1006 and section 34-1007 of this division. The application shall be signed by the operator and/or UST owner; and the signed application, together with the appropriate fee as set forth in the ERZD and Edwards Transition Zone UST Fees Schedule set forth in subsection e) of this section 34-108 shall be submitted to the resource protection and compliance department. The fee amounts listed in the ERZD and Edwards Transition Zone UST Fees Schedule are effective January 1, 2025. The fee amounts shall be adjusted on January 1 of each year thereafter by the percentage difference (greater than zero (0)) between the Consumer Price Index for All Urban Consumers (CPI-U) as it is calculated by the United States Bureau of Labor Statistics at the end of the month of July prior to the next year and as it was calculated at the end of the month of July one (1) year earlier, and subsequently rounded to the nearest dollar. SAWS will periodically perform a cost of service analysis to ensure that the fees charged do not exceed the cost of providing the services.

(b) After a complete and signed application has been received and the appropriate fee collected, the applicant's monitoring plan will be reviewed, and compliance with the regulations of this division will be verified by an on-site inspection by a staff member of the resource protection and compliance department. The initial inspection will be considered the first annual inspection for the purpose of administering this division.

(c) Upon receipt of all required information, approval of the monitoring plan, and the return of a favorable inspection report by the staff inspector, the resource protection and compliance department will issue a permit to the applicant. Each permit shall be valid for a period of three (3) years from the date it is issued.

(d) In the event a deficiency in the monitoring plan is found to exist, or in the event the facility is found to be non-compliant with the requirements of this division during the application process and initial inspection, the applicant will be notified in writing and may correct any deficiencies in the application or the monitoring plan or at the regulated facility within thirty (30) days from the date of notification. If the corrections cannot be made within the 30-day period, the applicant may request an extension in writing from the resource protection and compliance department. An extension of up to sixty (60) days may be granted upon a showing of good cause. Upon the earlier of notification by the applicant or expiration of the period for corrections, the application will be re-evaluated. If the required corrections have not been made at the time of the application is re-evaluated, the application will be denied.

(e) ERZD and Edwards Transition Zone UST fees schedule.

(1)	Initial registration fee (per site)	$390.00
(2)	Annual inspection fee (per site)	266.00
(3)	Follow-up inspection fee (per site, per occurrence, if prior inspection fails)	213.00
(4)	Third year renewal fee (per tank):	
	Tank sizes:	
	0—4,999 gallons	$931.00
	5,000—10,000 gallons	1,153.00
	Greater than 10,000 gallons	1,330.00

(Ord. No. 83200, § 1(App. I), 11-16-95; Ord. No. 2006-02-16-0241, § 5, 2-16-06; Ord. No. 2017-12-07-0928, § 3(Att. II), 12-7-17; Res. No. 18-262, 11-13-18; Res. No. 19-280, 7(Att. V), 11-5-19; Ord. No. 2022-11-10-0867, § 2(Att. II), 11-10-22; Res. No. 2023-198, 10-3-23; Res. No. 2024-227, § 7(Att. IV), 11-5-24)

Sec. 34-1009. Inspections by San Antonio Water System.

Inspections performed by the resource protection and compliance department personnel will be conducted during normal business hours. Every business applying for a permit will be inspected as prescribed in Section 34-1008 prior to issuance of a permit and at least annually thereafter. San Antonio Water System personnel shall have the right, upon reasonable notice, to enter any facility regulated by this division for the purpose of performing periodic inspections and for the purpose of enforcing the requirements of this division.
(Ord. No. 83200, § 1(App. I), 11-16-95; Ord. No. 2006-02-16-0241, § 5, 2-16-06)

Sec. 34-1010. Permit renewal.

It is the responsibility of each permittee to apply for renewal for a permit issued under this division not later than thirty (30) days before the existing permit expires. The application for renewal shall be accompanied by payment of the appropriate renewal fee as provided in the ERZD and Edwards Transition Zone UST Fees Schedule. Failure to apply for renewal within the 30-day period shall be considered a violation of this division. The resource protection and compliance department shall provide the permittee with notice of expiration of a permit at least forty-five (45) days prior to its expiration.
(Ord. No. 83200, § 1(App. I), 11-16-95; Ord. No. 2006-02-16-0241, § 5, 2-16-06; Ord. No. 2017-12-07-0928, § 4(Att. III), 12-7-17)

Sec. 34-1011. Permit transfers.

The transfer of a permit issued under this division will require the completion of a permit transfer form. Permit transfer forms shall be available from the resource protection and compliance department and shall be signed by both the seller and the buyer of the regulated facility. The transfer of a permit will result in the transfer of the original identification number and the issuance of a new permit. Permit transfer forms shall be submitted not later than thirty (30) days after transfer of ownership or operation of the business. All permit transfers are subject to the approval of the San Antonio Water System. Failure to submit a permit transfer form as required by this section shall constitute a violation of this division.
(Ord. No. 83200, § 1(App. I), 11-16-95; Ord. No. 2006-02-16-0241, § 5, 2-16-06)

Sec. 34-1012. Amendments.

(a) In the event of a change in operations at a facility which does not transfer ownership or control of the facility, but which substantially affects information required in the permit application, the permittee shall amend or supplement the original permit application within thirty (30) days of the change in operations.

(b) An amendment is not required in situations where quantities or storage locations of regulated materials are temporarily modified for less than forty-five (45) days, unless the modification will affect the fire department's ability to safely respond to an emergency at the facility or unless the San Antonio Water System determines that the modification may severely increase the potential for pollution of the Edwards Aquifer.

(c) Amendments or supplements to the permit application shall describe the reason for the amendment or supplementation of existing data, explain the addition or modification to each facility and provide any additional information as requested by the resource protection and compliance department.

(d) The resource protection and compliance department shall inspect each amendment or supplement to evaluate its compliance with the requirements of this division and shall notify the permittee of whether the amendment or supplement is approved within ten (10) days from the date of submission. In the event an amendment is not approved, the permittee may correct any deficiencies in the amendment or supplement and resubmit the same as corrected. Until an amendment or supplement is approved by the resource protection and compliance department the permittee will be required to comply with the most recent application and monitoring plan which has been approved.
(Ord. No. 83200, § 1(App. I), 11-16-95; Ord. No. 2006-02-16-0241, § 5, 2-16-06)

Sec. 34-1013. Maintenance of records.

Review by the resource protection and compliance department of records held by the permittee shall be allowed at the time of inspection or as otherwise requested at the regulated facility

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or forms and shall be clearly and conspicuously marked "Confidential" by the permittee or applicant. All confidential information will be protected by the San Antonio Water System Legal Department from disclosure in accordance with the Texas Public Information Act and this Code.
(Ord. No. 83200, § 1(App. I), 11-16-95)

Sec. 34-1015. Fee waiver.

(a) In the event an owner or operator of a facility regulated by this division is unable to pay the permit fee required by this division, the owner or operator may apply to the resource protection and compliance department for a fee waiver.

(b) The manager of the resource protection and compliance department may grant an application for fee waiver and reduce, modify, or waive the requirement for the payment of the permit fee only upon a showing by the applicant that payment of the fee would result in a severe hardship to the applicant's livelihood and that the applicant's income is insufficient to provide the applicant with the means for payment.

(c) Each application for a waiver of fees shall, at a minimum, include an affidavit by the applicant of inability to pay, complete copies of the applicant's federal income tax statements for the two (2) years preceding the filing of the application, and a current balance sheet and financial statement of the applicant's regulated business.

(d) The manager of the resource protection and compliance department shall provide the applicant with a written decision on the application for fee waiver within five (5) working days from the date the complete application for waiver is received.
(Ord. No. 83200, § 1(App. I), 11-16-95; Ord. No. 2006-02-16-0241, § 5, 2-16-06)

Secs. 34-1016—34-1019. Reserved.

Subdivision C. Monitoring and Testing Requirements

Sec. 34-1020. Monitoring plan requirements.

(a) The owner or operator of each facility regulated by this division shall submit to the resource protection and compliance department an inventory of the equipment which makes up the UST system and a plan for monitoring the integrity of the UST system and surrounding site (monitoring plan). The monitoring plan shall be sufficient to ensure that each UST system operates in a safe manner according to all federal, state, and local regulations, and to ensure the UST system will not pose a present or future threat to the water quality of the Edwards Aquifer or affect the public health, safety or the environment.

(b) Each monitoring plan shall provide the method and frequency of monitoring and an inventory of the monitoring equipment which will be installed and maintained (see Section 34-1007(d)(1)). This inventory shall include, at a minimum, the following information for each of the following categories:

1. UNDERGROUND STORAGE TANKS
   - (a) Number
   - (b) Size
   - (c) Material constructed from
   - (d) Number of layers
   - (e) Manufacturer and model type if applicable
2. PIPING

(a) Primary Piping
   - (i) Material constructed from
   - (ii) Diameter
   - (iii) Manufacturer

(b) Secondary Piping
   - (i) Material constructed from
   - (ii) Diameter
   - (iii) Manufacturer

3. OVERFILL PREVENTION MANHOLE
   - (a) Manufacturer and model type
   - (b) Capacity
4. OVERFILL PREVENTION DEVICE
   - (a) Manufacturer and model type
5. SUBMERSIBLE PUMP
   - (a) Manufacturer and Model Type

6. LEAK DETECTOR FOR PIPING SYSTEM
   (a) Manufacturer and model type
7. SHEAR VALVE
   (a) Manufacturer and model type
8. ELECTRONIC LEAK DETECTION SYSTEM
   (a) Automatic Tank Gauging
      (i) Manufacturer and model type
      (ii) Whether continuous tank testing and pipe testing used
   (b) Interstitial Monitor
      (i) Manufacturer and model type
      (ii) Liquid or vapor
10. MONITORING WELLS
   (a) Number of wells
   (b) Vapor monitoring in wells
   (c) Groundwater monitoring in wells
11. EXCAVATION LINER
   (a) Manufacturer and type
   (b) Material constructed from
   (c) Thickness (mil)
   (d) Permeability
12. VAULT
   (a) Manufacturer and type
   (b) Material constructed from
   (c) Sealant
   (d) Whether Pre-Stressed
13. ANY OTHER EQUIPMENT WHICH OPERATES AS PART OF THE SYSTEM
14. THIRD-PARTY CERTIFICATIONS FOR EQUIPMENT, as applicable.

(c) The monitoring plan shall incorporate sufficient requirements to ensure that the UST system is in good operating condition and that all protective measures are functioning properly. Each monitoring plan should describe everything done by the owner or operator to ensure that no leaks or spills of regulated materials occur at the facility, and how a leak or spill would be detected if it should occur.

(d) If any of the information contained in a monitoring plan becomes outdated, the owner or operator shall update the plan pursuant to Section 34-1010 of this division and shall be required only to follow the procedures described in the most recent version of the approved monitoring plan.

(e) Each monitoring plan shall provide a description of storage and dispensing systems in sufficient detail to show that the proposed monitoring and/or testing methods are appropriate and shall describe the methods and materials use in construction of the UST tanks and piping, type of backfill, any manifolding of tanks or lines, type of delivery system (e.g., suction or submerged pump, metered or non-metered), vapor recovery systems, and any other pertinent information.

(f) Each monitoring plan shall clearly indicate the monitoring method which will be used (e.g., tank system testing, monitoring wells) and the policies, including responsibilities and frequency of inspecting monitoring equipment, to ensure the plan is followed.

(g) Identification and explanation of the inventory control systems of regulated substances shall be provided as a part of the monitoring plan. All inventory control methods used shall meet 40 CFR 280.43, which requires product inventory control to be conducted monthly to detect a release of at least 1.0 percent of flow-through plus one hundred thirty (130) gallons on a monthly basis. A blank copy of the inventory record forms used should be submitted with a description of how and when reconciliations are performed.

(h) Each monitoring plan shall include policies which allow the permittee or its designee to demonstrate, when inspected, that inventory volume measurements were recorded each day, that product dispensing was metered and recorded within the local standards for meter calibration or an accuracy of six (6) cubic inches for every five (5) gallons of product withdrawn, and that the water level in the bottom of the tank was measured to the nearest one-eighth of an inch at least once a month.

(i) If applicable, the leaking petroleum storage tank site number shall be listed in the monitoring plan and an indication given whether a closure letter has been issued for the site or if the site is still being remediated.

(j) A maintenance plan for structural and Best Management Practices which has been used to abate stormwater runoff shall be incorporated into the monitoring plan. Maintenance should be performed as outlined in the Texas Natural Resource Conservation Commission (TNRCC) document, "The Edwards Aquifer Technical Guidance Manual."
(Ord. No. 83200, § 1(App. I), 11-16-95; Ord. No. 2006-02-16-0241, § 5, 2-16-06)

Sec. 34-1021. UST testing requirements.

(a) Each permittee shall perform precision testing of UST systems regulated by this division on a periodic basis as required by subsection (b) of this section unless the permitted facility is exempt from such testing pursuant to Section 34-1022 of this division.

(b) Each regulated facility shall perform precision tank testing of each permitted UST on a periodic basis according to the age and condition of each UST and the requirements of 30 TAC Chapter 334, Underground and Aboveground Storage Tanks.

(c) Each permittee shall provide as part of the monitoring plan the name and address of the tank testing company which will be used to perform required testing, the type of test that will be performed, and the date and times when the tests will be performed. The precision tank test shall be performed on each tank by a competent, trained independent agent, who has filed a statement of operation procedures and qualifications, including third-party certifications as applicable, with the resource protection and compliance department.

(d) For the purpose of complying with this division, a "precision tank test" is defined as a tank test which can measure leak rates of at least 0.10 gallon per hour (g.p.h.), can accurately correct measurements for tank wall deflections due to the increased hydrostatic pressure in the tank, can accurately correct measurements for changes in the specific volume of the liquid due to temperature gradients, and can detect any changes in temperature during the tank test, as identified in the National Fire Protection Association National Fire Codes, Section 329, entitled "Recommended Practices."

(e) Each UST tested pursuant to this division shall be tested using an approved underfill method and each test shall exceed a minimum of one hour in duration. Each tank which fails a tank test shall be immediately taken out of service until proper repairs or replacement have been completed. The resource protection and compliance department shall be notified immediately of any failed tank test.

(f) Each precision tank test shall also detect leaks in the product piping in the system. Piping shall be tested using a precision test method capable of detecting both pressure and volume changes during the test.

(g) Release detection methods for piping should meet or exceed all requirements of 40 CFR 280.40, 280.41, and 280.44 or equivalent TNRCC requirements as provided in 30 TAC 334. The test method shall also be capable of performing the required operational test of all mechanical line leak detectors. The test method operator shall have an up to date validation document for test method. The line leak detector used in each test shall be capable of detecting a ±0.010 g.p.h. release from pressurized piping at one and one half times operating pressure or a ±0.025 g.p.h. release from suction piping at a minimum test pressure of 5 p.s.i.g. Additionally, the line leak detector shall be capable of determining a bleed back for each line test as a quality control function. Bleed back test tolerance is that defined by the line test equipment manufacturer. Hydrostatic tests of suction and pressurized piping shall exceed a minimum of one hour duration. Line leak detector operators shall have a valid certification from the manufacturer for operation of the line leak detector equipment.

(h) Failure to perform UST testing as required by this section, or use of a UST system which has failed a tank or piping test before repair and reinspection shall constitute a violation of this division.
(Ord. No. 83200, § 1(App. I), 11-16-95; Ord. No. 2006-02-16-0241, § 5, 2-16-06)

Sec. 34-1022. Tank observation and leak detection systems.

As allowed under federal, state, and local regulations, tank observation wells may be used as an alterative to precision tank testing for leak detection in existing facilities (see API Bulletin 1635). Where tank observation well systems are used in lieu of precision tank testing, the detection limits of the leak detection system, the number, location and depth of the proposed tank observation wells and the depth of the water table at the sites, the water table gradient flow direction, surrounding soil permeability information, and the type and local characteristics of geologic material the wells are placed in, shall be submitted to the resource protection and compliance department as part of the monitoring plan and are subject to approval by the resource protection and compliance department.
(Ord. No. 83200, § 1(App. I), 11-16-95; Ord. No. 2006-02-16-0241, § 5, 2-16-06)

Sec. 34-1023. Test results.

The results of any UST system tests, even if inconclusive. shall be properly recorded by the permittee. The permittee shall notify the resource protection and compliance department within twenty (20) working days after the date of each test. If a UST system fails a test, the permittee shall notify the resource protection and compliance department by telephone (currently (210)704-7303 or (210)704-7800) within three (3) hours and in writing within three (3) days after the test results are received by the permittee. Failure to provide notification as required by this section shall constitute a violation of this division.
(Ord. No. 83200, § 1(App. I), 11-16-95; Ord. No. 2006-02-16-0241, § 5, 2-16-06)

Sec. 34-1024. Alternate testing methods.

For existing facilities, leak detection monitoring by alternate methods (e.g., tracer analyses, surface geophysical methods such as ground penetrating radar, electromagnetic induction, resistivity, magnetometers and X-ray fluorescence) may be permitted only on specific approval in each instance by the City of San Antonio Fire Department, and written proof of such approval shall be provided prior to testing to the resource protection and compliance department as a part of the monitoring plan.
(Ord. No. 83200, § 1(App. I), 11-16-95; Ord. No. 2006-02-16-0241, § 5, 2-16-06)

Sec. 34-1025. Overfill and overspill prevention devices.

Each UST system subject to regulation by this division shall have overfill and overspill prevention devices that meet all federal, state, and local fire code regulations. The overfill prevention device shall be able to shut off fuel delivery at ninety-five (95) percent capacity. The overspill prevention device shall be able to capture three (3) to five (5) gallons of the stored regulated material in the case of a spill during the materials transfer.
(Ord. No. 83200, § 1(App. I), 11-16-95)

Sec. 34-1026. Single-wall UST removal.

Any single-walled USTs which are located on the ERZD or the Edwards Transition Zone shall be removed and upgraded as required by Section 35-3106 of this Code. Failure to remove and upgrade a single-wall tank which is subject to regulation by this division shall constitute a violation of this division and shall subject the violating permittee to enforcement by the resource protection and compliance department.
(Ord. No. 83200, § 1(App. I), 11-16-95; Ord. No. 2006-02-16-0241, § 5, 2-16-06)

Sec. 34-1027. Insurance requirements.

In accordance with 40 CFR 280.90 owners and operators of petroleum USTs shall be able to demonstrate financial responsibility for taking corrective action and for compensating third parties for bodily injury and property damage caused

by accidental releases arising from the operation of petroleum storage tanks. The federal regulations describe various methods by which such financial responsibility may be achieved. Documentation showing compliance with these requirements shall be submitted as part of the requirements for the permit and shall be demonstrated at each annual inspection.
(Ord. No. 83200, § 1(App. I), 11-16-95)

Secs. 34-1028—34-1029. Reserved.

Subdivision D. Violations and Enforcement

Sec. 34-1030. Failure to perform.

Failure by a permittee or the permittee's employee or agent to perform any act identified in the permittee's monitoring program as submitted to and approved by the resource protection and compliance department shall constitute a violation of this division.
(Ord. No. 83200, § 1(App. I), 11-16-95; Ord. No. 2006-02-16-0241, § 5, 2-16-06)

Sec. 34-1031. Enforcement.

(a) [*Authority.*] The San Antonio Water System Legal Department is hereby granted the authority to seek legal and/or equitable remedies for violations of this division, including the filing of criminal charges. For the purpose of enforcing this division the San Antonio Water System's Environmental Counsel shall represent the City of San Antonio in civil enforcement actions, by and through the San Antonio Water System, and is hereby authorized to seek legal and/or equitable remedies against any person or entity which is reasonably believed to be violating or to have violated this division. A legal proceeding pursued under this division does not constitute a waiver by the San Antonio Water System of any right the City of San Antonio may have to join in a legal action originating from an alterative source of law. The San Antonio Water System may commence such actions for appropriate legal and/or equitable relief in courts having proper jurisdiction and may seek civil penalties and any other legal or equitable relief available under common law, Chapter 54 of the Texas Local Government Code, under Section 26.124 of the Texas Water Code, or any other applicable local, state, or federal code or statute.

(b) *Penalties.*

(1) *Criminal.* A conviction for violation of this division shall constitute a "Class C" misdemeanor. A person convicted of a violation of this division shall be fined not less than two hundred dollars ($200.00) nor more than two thousand dollars ($2,000.00) per violation. Each violation of a particular section of this division shall constitute a separate offense, and each day an offense continues shall be considered a new violation for purposes of enforcing this division.

(2) *Civil.* A civil penalty in an amount not to exceed one thousand dollars ($1,000.00) per violation of this division may be imposed. However, a civil penalty in an amount not to exceed five thousand dollars ($5,000.00) per violation may be imposed for violations which cause pollution of waters flowing into a channel, stream or other conveyance which drains into or is a part of the stormwater sewer system owned or controlled by the City of San Antonio. Each violation of a particular section of this division shall constitute a separate offense, and each day such an offense continues shall be considered a new violation for purposes of assessing civil penalties and otherwise enforcing this division. All civil penalties collected by reason of enforcing this division shall be deposited in the Water Quality and Environmental Education and Enforcement Account as established by Article I, Division 8 of this chapter.

(c) *Authority of city attorney to enforce.* The grant of the authority set out in this section shall in no way diminish the authority and responsibility of the office of the city attorney to ensure that this division is properly and diligently enforced, to prosecute violations of this division, and to defend the legality of this division if challenged.
(Ord. No. 83200, § 1(App. I), 11-16-95)

Secs. 34-1032—34-1039. Reserved.

Subdivision E. Variance Procedure

Sec. 34-1040. Variance procedure.

(a) [*Generally.*] Variance from one or more of terms and requirements of this division, other than the fee requirements, may be granted by the San Antonio Water System resource protection and compliance Department, where a literal enforcement of the provisions of this division will result in an unnecessary hardship. Any variance granted shall be limited in scope of relief to that which is necessary to relieve the hardship condition. No variance may be granted unless:

(1) Such variance will not be contrary to public interest;

(2) Such variance will not substantially increase the potential for pollution of the public water supply;

(3) Such variance will be in harmony with the spirit and purpose of this division;

(4) The plight of the applicant for variance is due to unique circumstances, and the unique circumstances were not created by the owner/operator of the UST system, are not merely financial, and are not due to or the result of general conditions affecting each member of the regulated community;

(5) The variance will not substantially weaken the general purposes of this division or the regulations herein established for the regulated area of the recharge zone; and

(6) The variance will not cause a conflict with a more stringent state or federal regulation, or with any provision of Chapter 35 of this Code.

(b) *Request for variance.* All requests for variance shall be made in writing to the resource protection and compliance department and shall include the subject of the requested variance and a justification for granting the variance.

(c) *Burden.* The party requesting a variance to application of this division has the burden of demonstrating that sufficient cause exists for the granting of the variance, and the resource protection and compliance department shall consider and provide a written response to the request for variance within twenty (20) working days from the date a valid request for variance is received. The resource protection and compliance department shall serve its response by certified mail, return receipt requested, or by hand delivery.

(d) *If granted.* If a variance is granted, whether as requested or with modification, the recipient of the variance shall be subject to all applicable provisions of this division to the extent such provisions have not been specifically waived or modified by the variance.

(e) *Term.* A variance granted under this section shall have a term of three (3) years from the date of issuance. Any activity which would otherwise be prohibited by this division but for the existence of the variance shall not be allowed to continue after the expiration of the specified term.

(f) *Appeal.* Any person who has properly requested a variance pursuant to this section and subsequently objects to a decision of the resource protection and compliance department denying all or part of the relief requested, may appeal such denial by filing a request for appeal, in writing, with the president/CEO of the San Antonio Water System, within ten (10) working days from the date the requesting party receives the notice of denial. The request for appeal shall include all pertinent information which the person requesting the appeal wishes to be considered. The president/CEO may require additional information from, or request a meeting with, the person making the appeal. The written decision of the president/CEO or his designee on the appeal shall be rendered within fifteen (15) working days from the date the appeal is received by the president/CEO, and shall be delivered to the appealing party by certified mail, return receipt requested, or by hand delivery. If the president/CEO, or his designee fails to render an opinion on the appeal within the fifteen-day period, the relief requested in the appeal shall be considered to have been wholly denied. The decision of the president/CEO on the issuance of a variance shall be considered final.

(Ord. No. 83200, § 1(App. I), 11-16-95; Ord. No. 2006-02-16-0241, § 5, 2-16-06)

Secs. 34-1041—34-1074. Reserved.

DIVISION 8. BACKFLOW PREVENTION

Sec. 34-1075. General provisions.

(a) *Purpose.* The purpose of this division is to prevent the contamination of water delivered by public water systems by requiring the maintenance, repair, inspection and testing of backflow prevention assemblies.

(b) *Application.* This division shall apply within the corporate limits of the city and within the extraterritorial jurisdiction of the city.

(c) *Definitions.* As used anywhere in this division, the following terms are defined to mean:

Backflow means the reversal of the flow of water or mixtures of water and other liquids, gases, or other substances into the distribution pipes of a public water system.

Backflow prevention assembly means an assembly that, when properly installed between the SAWS water supply system and the terminus or point of ultimate use, will prevent backflow. Examples of such assemblies include but are not limited to, reduced pressure backflow assemblies, double-check valve assemblies, pressure vacuum breakers, and spill resistant vacuum breakers.

Backflow prevention assembly tester (BPAT) means an individual licensed in accordance with the Texas Commission on Environmental Quality rules and registered by SAWS to test backflow prevention assemblies.

Backflow program administrator means a third party who assists SAWS with managing the backflow assemblies, backflow prevention assembly test and maintenance reports (T&M reports), and associated records.

City means the City of San Antonio, a Texas home rule municipality.

Cross-connection means any actual or potential connection or structural arrangement between a public or consumer's potable water system and any other source or system through which it is possible to introduce into any part of the potable system any used water, industrial fluid, gas, or substance other than the intended potable water with which the system is supplied. Bypass arrangements, jumper connections, removable sections, swivel or change-over devices and other temporary or permanent devices through which or because of which backflow can occur are considered to be cross-connections.

Customer means the SAWS account owner or person responsible for the backflow assembly. If there is no SAWS open account, the owner, occupant, manager, or other person in control of the property or premises or the person responsible for the maintenance of the property determined to be the source of a violation of this division shall be considered the customer.

Person means an individual, partnership, joint venture, firm, company, corporation, association, joint stock company, governmental entity, trust, estate, sole proprietorship, or legal entity of any kind or character.

Public water system means a system for the provision of water to the public as defined in Title 30 of the Texas Administrative Code, Section 290.38.

SAWS means the San Antonio Water System, a public water system and an agency of the city, created by City Ordinance No. 75686, passed April 30, 1992.

T&M Report means TCEQ approved Backflow Test and Maintenance report prepared by the BPAT tester.
(Ord. No. 2011-06-23-0575, § 2, 6-23-11; Ord. No. 2019-02-14-0123, § 1(Att. I), 2-14-19; Ord. No. 2024-11-07-0875, § 1(Exh. A), 11-7-24)

Sec. 34-1076. Backflow prevention assemblies.

(a) *Cross connections are prohibited.* A customer is prohibited from maintaining a backflow prevention assembly, plumbing fixture, equipment, or any other assembly that permits backflow, or failing to install a backflow prevention assembly that is required by the City Code.

(b) Each customer shall cause backflow prevention assemblies to be installed in compliance with the provisions of chapter 10 of the City

Code, and the international plumbing code and appendices as amended that are adopted by the city in that chapter.

(c) *Customer responsibility.* The customer is responsible for all listed backflow requirements, including maintaining, submitting proof of the annual inspection, and all requirements set out in this division as long as there is a water connection to the SAWS system, whether active or inactive. The customer is further responsible for the portion of any privately owned potable water system lying between the service connection (the terminal end of the connection from the public water system or downstream end of the meter) and the point of use by the customer. This includes but is not limited to, all pipes, conduits, tanks, receptacles, fixtures, equipment, and appurtenances used to produce, convey, store, or utilize potable water.

(Ord. No. 2011-06-23-0575, § 2, 6-23-11; Ord. No. 2019-02-14-0123, § 1(Att. I), 2-14-19; Ord. No. 2024-11-07-0875, § 1(Exh. A), 11-7-24)

Editor's note—Ord. No. 2019-02-14-0123, § 1(Att. I), adopted Feb. 14, 2019, amended § 34-1076, and in so doing changed the title of said section from "Backflow prevention devices" to "Backflow prevention assemblies," as set out herein.

Sec. 34-1077. Inspection and testing.

(a) Each customer is responsible for the maintenance and repair of each backflow prevention assembly that is located on the customer's property.

(b) Each customer shall have each backflow prevention assembly located on a customer's property inspected and tested annually by a BPAT and shall also be tested immediately after installation, relocation, repair or work performed upstream of the assembly. However, more frequent testing may be required if notice is provided by the SAWS to the customer. The BPAT performing the inspection and testing shall complete a report of each inspection and testing on a form approved by the public water system that provides water to the property where the backflow prevention assembly is located.

(c) Each customer shall repair or replace a backflow prevention assembly that fails a test before returning the backflow prevention assembly to service. If an assembly fails a backflow prevention assembly test, the BPAT tester shall immediately notify the customer and submit a failed backflow T&M report to the system, via the approved submission process. The assembly shall be replaced or repaired within the period set by SAWS or within five (5) calendar days from the date of assembly failure whichever date is sooner. In the event of assembly failure, water service shall not be connected or restored until the assembly has been repaired or replaced and passes a retest unless written authorization is given by SAWS that water service is authorized to be connected or restored at an earlier date.

(d) Each customer or the customer's representative shall deliver the annual T&M report that is required to be performed by this section to the designated backflow program administrator for the public water system that provides water to the property where the backflow prevention assembly is located before the end of the designated month assigned by SAWS, based on the last T&M report submitted to SAWS. If a T&M report has not previously been submitted, SAWS will assign submission months throughout a twelve-month cycle.

(e) A T&M report must be completed by a BPAT for each assembly tested. The signed and dated form must be submitted to the public water system that provides water to the property where the backflow prevention assembly is located within ten (10) days after the completed test. Only SAWS or an approved TCEQ backflow prevention assembly test and maintenance forms will be accepted. T&M reports must be submitted in the format designated by SAWS. The submission of the T&M forms may include the submission through a designated backflow program administrator. SAWS or its designated backflow program administrator will determine how the T&M forms submission shall be done, which includes but is not limited to electronic submission. All TCEQ requirements for submission must be followed by the T&M submitter. All test and maintenance reports shall be retained by the owner of the property where the backflow prevention assembly is located for at least three (3) years after the date of any such test.

(Ord. No. 2011-06-23-0575, § 2, 6-23-11; Ord. No. 2019-02-14-0123, § 1(Att. I), 2-14-19; Ord. No. 2024-11-07-0875, § 1(Exh. A), 11-7-24)

Sec. 34-1078. Fees.

(a) To recover the costs for the implementation of this division, each customer shall pay the applicable fee for existing backflow and maintenance report that is provided in section 10-83 of the City Code, for each backflow prevention assembly for which an annual inspection is required by this division to the public water system providing water to the location of each backflow prevention assembly. The fee shall be delivered to the public water system with the report of annual inspection and testing that is required by this division. Subject to city council approval, the governing body of each public water system is authorized to amend the amount of the fee charged to recover the costs reasonably related to the performance of the functions for which the fee is charged. The fee may be waived if the report prepared by the state licensed backflow assembly tester that is required by this division is submitted online through the San Antonio Water System electronic submission program.

(b) If a customer fails to submit or deliver the annual report of backflow testing and inspection as set out in subsection 34-1077(d), the public water system may assess a cost recovery fee to the customer upon notice of the violation. The cost recovery fee shall be assessed as follows:

1—3 Assemblies - $85.00

4—9 Assemblies - $117.00

>9 Assemblies - $179.00

Failure to pay the cost recovery fee in a timely manner shall subject the customer to suspension of service, and/or bar the reconnection or resumption of service until such time as the fee is paid.

(c) The fee amounts are effective January 1, 2025. The fee amount shall be adjusted on January 1 of each year thereafter by the percentage difference (greater than zero (0)) between the Consumer Price Index for All Urban Consumers (CPI-U) as it is calculated by the United States Bureau of Labor Statistics at the end of the month of July prior to the next year and as it was calculated at the end of the month of July one (1) year earlier, and subsequently rounded to the nearest dollar. SAWS will periodically perform a cost of service analysis to ensure that the fee charged does not exceed the cost of providing the service.

(Ord. No. 2011-06-23-0575, § 2, 6-23-11; Ord. No. 2019-02-14-0123, § 1(Att. I), 2-14-19; Ord. No. 2022-11-10-0867, § 2(Att. II), 11-10-22; Res. No. 2023-198, 10-3-23; Ord. No. 2024-11-07-0875, § 1(Exh. A), 11-7-24; Res. No. 2024-227, § 7(Att. IV), 11-5-24)

Sec. 34-1079. Emergency suspension.

(a) The chief executive officer of a public water system may suspend water service and disconnect service to a customer if the chief executive officer determines that contamination or pollution due to backflow presents an imminent threat to the public water system, presents an imminent danger to public health or safety, or threatens to interfere with the operation of the public water system.

(b) A person notified of the suspension of the person's service by a public water system pursuant to this section shall immediately stop the use of the public water system's water. If a person fails to immediately suspend use of the public water system's water, the public water system may take the actions it determines are necessary to prevent contamination or pollution, or to minimize damage to the public water system.

(c) The authority granted in this section is in addition to the authority granted to SAWS in section 34-1081 of this division.

(Ord. No. 2011-06-23-0575, § 2, 6-23-11; Ord. No. 2024-11-07-0875, § 1(Exh. A), 11-7-24)

Sec. 34-1080. Access to property.

A public water system, through its employees or authorized agents, may enter property that receives water service from the public water system to inspect backflow prevention assemblies. The customer shall make all necessary arrangements, at its sole expense, to remove security barriers or other obstacles to allow access by public water system personnel without delay.

Failure to provide access for the inspection of backflow prevention assemblies shall be considered a violation of this division.
(Ord. No. 2011-06-23-0575, § 2, 6-23-11; Ord. No. 2019-02-14-0123, § 1(Att. I), 2-14-19; Ord. No. 2024-11-07-0875, § 1(Exh. A), 11-7-24)

Sec. 34-1081. Enforcement.

(a) The failure to perform any action that is required by this division, or the performance of any action that is prohibited by this division shall constitute a violation of this division.

(b) *Criminal penalty.* A conviction for a violation of any provision of this division shall constitute a class C misdemeanor. A person convicted of a violation of any provision of this division shall be fined an amount of not less than two hundred dollars ($200.00) per violation and a maximum of not more than two thousand dollars ($2,000.00) per violation. Each violation of this division shall constitute a separate offense, and each day a violation continues shall be considered a new offense. A culpable mental state is not required to prove an offense under this division.

(c) *Civil penalty.* A civil penalty may be imposed for each violation of any provision of this division in an amount not to exceed five thousand dollars ($5,000.00) per violation. Each violation of any provision of this division shall constitute a separate violation, and each day a violation continues shall be considered a new violation.

(d) *Authorization to enforce.* SAWS is authorized to take any action authorized by this division against any person committing a violation of this division within SAWS service area. The grant of authority set out in this section does not in any way diminish the authority of the office of the city attorney to take any action necessary to enforce the terms of this division, to prosecute violations of this division, and to defend the legality of this division, if challenged.

(e) *Additional enforcement remedies.* In addition to any other remedies provided in this division, the city, or SAWS for violations of this division that occur within its service area may, at any time, pursue any other legal and/or equitable remedy to require compliance with this division.

(f) SAWS shall provide written notice of a violation of this division to a customer and if the violation is not completely remedied within ninety (90) days after the date of the notice, then in that event SAWS may terminate water and/or sewer service to the location where the violation occurred in accordance with the procedures set out herein.
(Ord. No. 2011-06-23-0575, § 2, 6-23-11; Ord. No. 2022-11-10-0867, § 2(Att. II), 11-10-22; Ord. No. 2024-11-07-0875, § 1(Exh. A), 11-7-24)

Secs. 34-1082—34-1100. Reserved.

ARTICLE VII. DRAINAGE UTILITY*

DIVISION 1. CREATION OF A DRAINAGE UTILITY

Sec. 34-1101. Establishment of drainage utility, calculation of drainage charges; service area; exemptions, and dedication of assets.

(a) The provisions of the Texas Local Government Code, Chapter 402, Subchapter C (currently codified at Chapter 552, Subchapter C, entitled, "Municipal Drainage Utility Systems Act") were adopted with Ordinance No. 86711 (September 25, 1997) to create the City of San Antonio Drainage Utility (herein after "drainage utility"). Accordingly, the city council hereby adopts the Municipal Drainage Utility Systems Act, as currently codified; declares the drainage of the City of San Antonio to be a public utility; and dedicates to the drainage utility all city owned property, real and personal, facilities, materials and supplies constituting the city's drainage system as currently constituted and as may be acquired in the future, to be used for the purpose of the drainage utility.

*__Editor's note—__Ord. No. 2015-09-10-0761, § 7(Exh. D), adopted September 10, 2015, amended article VII in its entirety to read as herein set out. Formerly, article VII pertained to similar subject matter, and derived from Ord. No. 86711, § 1, adopted September 25, 1997.

(b) The service area for the drainage utility shall include all real property within the city limits of the City of San Antonio as now existing and all which may be annexed hereafter from time to time.

(c) The following property shall be exempt from the provisions of this article:

(1) Real property with proper construction and maintenance of a wholly sufficient and privately owned drainage system;

(2) Real property held and maintained in its natural state, until such time that the property is developed and all of the public infrastructure constructed has been accepted by the city;

(3) A subdivided lot, until a structure or improvement has been built on the lot and a certificate of occupancy has been issued by the city;

(4) Real property owned by the State of Texas;

(5) Real property owned by public or private institutions of higher education; and

(6) Real property owned by the City of San Antonio constituting the drainage system, including public streets, rights-of-way, facilities, and infrastructure that provide drainage service.

All other real property within the drainage utility service area shall be subject to this article, including but not limited to, religious organization properties, railroad yards, cemetery properties, county properties, federal properties, city properties other than noted in subsection (c)(6) above, and school district properties. School district properties shall be subject to the current rate structure for a five-year period, through December 31, 2020. Drainage utility charges for the properties that make up Joint Base San Antonio shall be subject to the current rate structure for two (2) years, through December 31, 2017, or until the federal government appropriates funds for the payment of drainage utility charges.
(Ord. No. 2015-09-10-0761, § 7(Exh. D), 9-10-15)

Sec. 34-1102. No effect on land owner obligations under city ordinances; no waiver of immunity.

(a) The establishment of the drainage utility by the city does not relieve private land owners, developers, other individuals and entities from their responsibility for complying with the obligations of other ordinances of the city or laws of the state that relate to floodplain and storm water management.

(b) The establishment of the drainage utility does not imply or warrant that a benefitted property will be free from flooding, storm water pollution, or stream erosion. The city makes no representation that all drainage problems will be remedied. This article does not create additional duties on the part of the city or create new liability or remedies for any flooding, stream erosion, deterioration of water quality, or other damages. Nothing in this article shall be deemed to waive the city's immunity under law or reduce the need or necessity for flood insurance.
(Ord. No. 2015-09-10-0761, § 7(Exh. D), 9-10-15)

Sec. 34-1103. Other laws.

To the extent this article conflicts with any other provisions in the City Code, the provisions shall be harmonized when possible; however, this article shall control and supersede any other provision regarding the drainage utility.
(Ord. No. 2015-09-10-0761, § 7(Exh. D), 9-10-15)

Secs. 34-1104—34-1110. Reserved.

DIVISION 2. ADMINISTRATION OF DRAINAGE UTILITY

Sec. 34-1111. Definitions.

Terms defined herein are specific to this article and shall not be construed as conflicting with similar terms in other parts of the City Code. Terms not otherwise defined herein shall be given the definitions contained in Chapter 552, Subchapter C of the Texas Local Government Code.

The Act shall mean the Municipal Drainage Utility Systems Act, codified in the Texas Local Government Code, Title 13 (Water and Utilities), Chapter 552 (Municipal Utilities), Subchapter C (Municipal Drainage Utility Systems).

Administrative charges shall mean miscellaneous fees, other than drainage utility charges, established by the city council to recover the actual cost associated with providing optional services to users.

Assistant director shall mean the assistant director of the department overseeing the drainage utility.

Benefitted property shall mean an improved lot or tract within the drainage service area to which drainage service is provided and that is subject to the assessment of drainage utility charges.

Cost of service shall mean the costs of providing drainage service to all benefitted properties, which shall be the total of:

(1) Prorated cost of the acquisition, whether by eminent domain or otherwise, of land, rights-of-way, options to purchase land, easements, and interests in land relating to structures, equipment, and facilities used in draining the benefitted properties;

(2) Prorated cost of the acquisition, construction, repair, and maintenance of structures, equipment, and facilities used in draining the benefitted properties;

(3) Prorated cost of architectural, engineering, legal, and related services, plans and specifications, studies, surveys, estimates of cost and of revenue, and all other expenses necessary or incident to planning, providing, or determining the feasibility and practicability of structures, equipment, and facilities used in draining the benefitted properties;

(4) Prorated cost of all machinery, equipment, furniture, and facilities necessary or incident to the provision and operation of draining the benefitted properties;

(5) Prorated cost of funding and financing charges and interest arising from construction projects and the start-up cost of a drainage facility used in draining the benefitted properties;

(6) Prorated cost of debt service and reserve requirements of structures, equipment, and facilities provided by revenue bonds or other drainage revenue-pledge securities or obligations issued by the city;

(7) Administrative costs of operating and maintaining the drainage utility; and

(8) Other costs as appropriate that are incident or related to the provision and operation of draining the benefitted properties.

Customer. See the definition of *User*.

Department shall mean the city's transportation and capital improvements department.

Director shall mean the director of the department.

Drainage shall mean bridges, catch basins, channels, conduits, creeks, culverts, detention ponds, water quality ponds, ditches, draws, flumes, pipes, pumps, sloughs, treatment works, and appurtenances to those items, whether natural or artificial, or using force or gravity, that are used to draw off surface water from land, carry the water away, collect, store, or treat the water, or divert the water into natural or artificial watercourses.

Drainage utility shall mean the City of San Antonio Drainage Utility established by Ordinance No. 86711 adopted on September 25, 1997.

Drainage utility charges shall mean the service fees imposed on users and set out in a rate schedule to recover the cost of the service of furnishing drainage service for all benefitted properties, including any interest and penalties; and amounts made in contribution to funding of future drainage system construction by the city.

Drainage system shall mean all real and personal property owned or controlled in whole or in part by the city and dedicated to the drainage utility for the purpose of providing

drainage service to benefitted properties, including any future additions, extensions, and improvements thereto and replacement thereof.

Facilities shall mean the real, personal, or mixed property that is used in providing drainage service and included in the drainage system.

Impervious area or *impervious cover.* See City of San Antonio Unified Development Code, Appendix A—Definitions and Rules of Interpretation (roads, parking areas, buildings, pools, patios, sheds, driveways, private sidewalks, and other impermeable construction covering the natural land surface).

Improved lot or tract shall mean a lot or tract that has a structure or other improvement on it that causes an impervious area or surface.

Non-residential properties shall mean all benefitted properties within the service area, other than residential properties.

Owner shall mean the owner of record of benefitted property.

Public utility shall mean drainage service that is provided by the drainage utility to the users of benefitted properties within the service area and that is based on:

(1) An established schedule of rates;

(2) Use of the police power to implement the service; and

(3) Nondiscriminatory, reasonable, and equitable terms consistent with the Act.

Residential properties shall mean all benefitted properties within the service area used for single-family home, duplex, triplex, quadplex properties, or mobile home land use.

Service area shall mean the city limits of the City of San Antonio, Texas as may be amended from time-to-time.

User or *customer* shall mean the person or entity that owns or occupies a benefitted property and who is responsible for paying the drainage utility charges.

Wholly sufficient and privately owned drainage system shall mean on-site drainage retention facilities designed to keep runoff from an improved lot or tract from discharging into any natural or manmade waterway or drainage infrastructure including public streets, storm drains, culverts, drainage easements, or storm water ponds that are part of the drainage system; for storms of magnitude up to and including the one-percent-annual chance (100-year) storm event, 24-hour duration, captured runoff must be removed from the retention system within seventy-two (72) hours of the rainfall event without discharging into the drainage system.

(Ord. No. 2015-09-10-0761, § 7(Exh. D), 9-10-15; Ord. No. 2016-09-29-0737, § 2, 9-26-16)

Sec. 34-1112. Drainage utility fund.

A separate fund has been created, known as the storm water operating fund, for the purpose of segregating, identifying, and controlling all revenues and expenses attributable to the drainage utility. All drainage utility charges shall be deposited as collected and received into this fund and shall be used exclusively for drainage cost of service. Such utility revenues may be used for the operation, planning, engineering, inspection, construction, repair, maintenance, improvement, reconstruction, administration, debt issuance cost and debt service, and other reasonable and customary expenses associated with the operation of a utility system. It shall not be necessary that the expenditures from the drainage utility fund for any authorized purpose specifically relate to or benefit any particular benefited property from which the revenues were collected.

(Ord. No. 2015-09-10-0761, § 7(Exh. D), 9-10-15)

Sec. 34-1113. Administration of drainage utility.

The director or his designee shall be responsible for the administration and operation of the drainage utility, including, but not limited to, recommending regulations and procedures necessary for the administration of the drainage utility charges which shall be authorized by the city council, the resolution of challenges to the assessment of impervious area to benefitted property, the resolution of billing disputes, the development and implementation of maintenance and facility improvement programs, the provision of

appropriate utility training to personnel, and the implementation of a state and federal regulatory compliance program. The director shall keep an accurate record of all benefitted properties to which services and facilities of the drainage utility are made available.
(Ord. No. 2015-09-10-0761, § 7(Exh. D), 9-10-15)

Sec. 34-1114. Drainage utility charges.

(a) The drainage utility charge is hereby imposed upon each benefitted property within the service area. Drainage utility charges shall become effective on January 1, 2016. Thereafter, drainage utility charges shall be billed to benefitted properties on a monthly basis for the duration of the drainage utility.

(b) For purposes of imposing drainage utility charges, all benefitted properties within the service area are classified into the following customer categories:

(1) Residential properties, and

(2) Non-residential properties.

(c) The impervious area value shall be determined by conducting an inventory of all improved lots in the service area and identifying the impervious area for each improved lot. The impervious area value shall be used in establishing drainage utility charges for residential properties based on the amount of impervious area identified in the rate tiers in subsection (d), and for non-residential properties based on the methodology described in subsection (e). The director or his designee shall be responsible for determining the impervious area of benefitted property based on reliable data, including the appraisal roll, geographic information system technology, aerial photography, or other reliable means for determining impervious area. The director may require additional information from the owner, user, tenant, manager or developer to make the determination. The assessment of impervious area to benefitted properties may be revised by the director based on the addition of structures or improvements to properties identified through the city's building permit process.

(d) Residential properties shall be assigned a rate category and assessed a drainage utility charge based on impervious area as provided in the following table:

Residential Rate Category	*Impervious Area in Square Feet*	*Monthly Fee*
Tier 1	≤ 2,750	$3.75
Tier 2	> 2,750—4,220	$4.94
Tier 3	> 4,220	$10.45

(e) Non-residential properties shall be assigned a rate category and assessed a drainage utility charge determined by a base fee and impervious fee in accordance with the values provided in subsections (e)(1) and (2):

(1) *Base fee* shall mean a flat monthly fee assessed among all non-residential benefitted properties as determined by Bexar County Appraisal District property records. The FY 2020 amount is calculated at sixty-seven dollars and thirty cents ($67.30).

(2) *Impervious fee* shall mean a monthly fee assessed on all non-residential benefitted properties on a per square foot basis and prorated based on the percentage of impervious area within the benefitted property.

Non-Residential Rate Category	*Percent Impervious Area*	*Monthly Fee per 1,000 Square Feet*
Tier 1	≤ 20%	$0.31
Tier 2	> 20%—40%	$0.45
Tier 3	> 40%—65%	$0.58
Tier 4	> 65%	$0.73

(f) The city council may adjust the value and rate tiers in subsections (d) and (e) at any time based upon the recommendation of the director that the cost of service for the drainage utility warrants an adjustment in rates.

(g) No drainage utility charge credit shall be given for the installation of drainage facilities required by the City Code or state law. However, a credit of up to thirty (30) percent off the impervious fee portion of the monthly drainage utility charges shall be available to customers of non-residential properties that voluntarily implement low impact development water quality management practices in compliance with technical criteria adopted by the city.

(h) Pervious pavements and other pervious surfaces in compliance with technical criteria adopted by the city shall not be included in the impervious area calculation. Rail ballast areas shall be considered as thirty (30) percent impervious based on industry standard runoff coefficients. Linear railroad track right-of-way systems outside of railroad yards intended to convey storm water throughout the drainage utility area and that provide drainage service to benefitted properties shall not be included in the impervious area calculation.
(Ord. No. 2015-09-10-0761, § 7(Exh. D), 9-10-15; Ord. No. 2016-09-29-0737, § 3, 9-26-16; Ord. No. 2017-09-14-0656, § 2(Att. C), 9-14-17; Ord. No. 2018-09-13-0713, § 1(Att. H.2), 9-13-18; Ord. No. 2019-09-12-0694A, § 1(Att. N), 9-12-19)

Sec. 34-1115. Billing, payments, and penalties.

(a) Billing statements for the drainage utility charges shall be rendered by the city for all benefitted properties within the drainage service area. Bills shall be payable when rendered and shall be considered received by the customer, whether actually received or not, when deposited in the United States mail, postage prepaid, addressed to the customer. Bills shall be rendered monthly for the previous month's service.

(b) The director shall establish the "impervious area" for each benefitted property in the drainage utility's service area based on the methodology and database of benefitted properties produced by the drainage utility fee comprehensive study and make appropriate updates to maintain the integrity of the database.

(c) The director shall determine the appropriate storm water drainage charges for each benefitted property based on the impervious area assessment.

(d) The director shall assume that each drainage utility account in the service area serves one or more users of a benefitted property, and shall assess the monthly drainage utility charge to the person responsible for payment of the drainage utility account. The director shall calculate the drainage utility charges for all users. If there is more than one user of a non-residential property, then the drainage utility charges shall be assessed to the owner of the non-residential property, unless instructed by the owner of the non-residential property, in writing, to bill users on a prorated basis.

(e) Bills are due and payable on the date specified thereon and if full payment is not made by the date specified, the bill shall become delinquent.

(f) The director shall continue the relation with SAWS as billing agent, and/or engage other service providers as appropriate, to ensure all benefitted properties within the drainage utility service area are billed for storm water drainage charges. Drainage utility charges shall be billed by SAWS, or other designated billing agents, following their standard billing processes, and may be subjected to penalties, interest, and other terms.

(g) Any charge due hereunder which is not paid when due will subject the user to discontinuance of all utility services provided by the city and may be recovered in an action at law or in equity by the city including fixture of a lien against the property, as allowed by law.

(h) The city shall have access, at all reasonable times, to any benefited property served by the drainage utility for necessary inspection, repair of infrastructure or enforcement of this article.

(i) The storm water drainage charges for school district benefitted properties within the drainage utility's service area shall remain at current rates for the period starting at 12:01 a.m. on January 1, 2016 and ending at 11:59 p.m. on December 31, 2020. This is consistent with Resolution No. 2015-04-02-0021R, passed by the city council on April 2, 2015.

(j) The director shall decide billing complaints that are not satisfactorily addressed under SAWS billing dispute procedures found in chapter 34, article I, divisions 3 to 7.
(Ord. No. 2015-09-10-0761, § 7(Exh. D), 9-10-15)

Sec. 34-1116. Appeal of impervious area assignment.

(a) A user may appeal the impervious area assigned to the user's benefitted property by submitting the request to the assistant director or his designee on a prescribed form. If the appeal results in a reassignment of impervious area to the benefitted property, the user will be entitled to a recalculation of drainage utility charges which may result in a rate adjustment.

(b) The following procedures shall apply to all appeals of impervious area assignments:

(1) The user shall have the burden of proof.

(2) The director shall develop a prescribed form for users to appeal the amount of impervious area assigned to a benefitted property. The appeal shall be submitted to the assistant director or his designee following the procedure outlined below.

(3) Any appeal of impervious area assignment shall be in writing and set forth in detail the grounds upon which relief is sought.

(4) Appeals of impervious area assignments will be reviewed by the assistant director or his designee within twenty (20) business days from the date of receipt on the prescribed form. Following the twenty (20) day review period, the assistant director may request additional information necessary to make a determination as prescribed in subsection (b)(6). Any adjustment to drainage utility charges resulting from such an appeal shall be prospective, but may be made retroactive for no more than three (3) billing periods prior to the receipt of the appeal.

(5) The user requesting a reassignment of impervious area may be required, at the user's cost, to provide supplemental information to the assistant director, including, but not limited to, survey data certified by a Texas Registered Professional Land Surveyor (R.P.L.S.), design data certified by a Registered Professional Engineer (P.E.) licensed to practice in the State of Texas, or other documentation of impervious area. Failure to provide requested information may result in the denial of the appeal.

(6) The assistant director's resolution of the appeal shall be provided to the user, in writing, within ten (10) business days following review of the initial request as described in subsection (b)(4). If the user is successful in the appeal, the assistant director shall order the reassignment of impervious area to the benefitted property consistent with the resolution of the appeal. The assistant director shall also order the recalculation of drainage utility charges which may result in a rate adjustment. If the recalculation results in a rate adjustment it will be granted effective the next billing period.

(c) If the assistant director denies the request to reassign impervious area to the benefitted property, the user may, within ten (10) business days from the date of notification, appeal the decision to the director. The appeal shall be in writing, contain a succinct and clear statement of the user's argument and suggested remedy, and be filed with the director's office. The director shall have fifteen (15) business days from the date the appeal is received to review the appeal, make a determination, and notify the user.

(d) Before imposing a lien for delinquent drainage utility charges, the city shall send notice to the owner of the benefitted property stating the amount of the charges owed, and of the owner's right to appeal the placement of the lien by producing evidence the delinquent charges are not rightfully owed, by providing such within ten (10) business days from the date of notification to the director. The director shall not file the lien if the owner shows that the drainage utility charge made the basis of the lien is not owed. When a person pays all of the charges, a lien filed pursuant to this article, shall be released. The paying party shall be responsible for the filing costs of the release.

(Ord. No. 2015-09-10-0761, § 7(Exh. D), 9-10-15)

Sec. 34-1117. Credit application.

(a) A user of a non-residential benefited property may submit a request for credit as identified in subsections 34-1114(g) and (h) to the assistant director.

(b) A user of a non-residential benefited property may submit a request for credit if the user controls multiple contiguous parcels and can prove single ownership, purpose, and use, and the user has been assessed individual base fees as described in subsection 34-1114(e)(1) for each of the properties.

(c) The following procedures shall apply to all credit applications:

(1) The user shall have the burden of proof.

(2) The director shall develop a prescribed form for users to apply for credit to a non-residential benefitted property. The application shall be submitted to the assistant director or his designee following the procedure outlined below.

(3) Any credit application shall be in writing and set forth in detail the grounds upon which relief is sought.

(4) Credit requests will be reviewed by the assistant director or his designee within twenty (20) business days from the date of receipt on the prescribed form. Following the twenty (20) day review period, the assistant director may request additional information necessary to make a determination as prescribed in subsection (c)(6). Any adjustment to drainage utility charges resulting from the credit request shall be prospective.

(5) The user requesting credit may be required, at the user's cost, to provide supplemental information to the assistant director, including, but not limited to, survey data certified by a Texas Registered Professional Land Surveyor (R.P.L.S.), design data certified by a Registered Professional Engineer (P.E.) licensed to practice in the State of Texas, or other documentation to supplement the credit request. Failure to provide requested information may result in the denial of the request.

(6) The assistant director's resolution of the credit request shall be provided to the user, in writing, within ten (10) business days following review of the initial request as described in subsection (c)(4). If the user is successful in the credit request, the assistant director shall order the recalculation of drainage utility charges which may result in a rate adjustment. If the recalculation results in a rate adjustment it will be granted effective the next billing period.

(d) If the assistant director denies the credit request to the benefitted property, the user may, within ten (10) business days from the date of notification, appeal the decision to the director. The appeal shall be in writing, contain a succinct and clear statement of the user's argument and suggested remedy, and be filed with the director's office. The director shall have fifteen (15) business days from the date the appeal is received to review the appeal, make a determination, and notify the user.

(e) As part of the credit application, the user must commit in a written agreement to provide long-term maintenance of any credited system in accordance with a user prepared operations and maintenance plan, which will be on file with the city. Annual inspection and certification of the credited system shall be required by the user and made available to the city. Failure to adequately maintain the system will result in the removal of the credit amount. Credit applications must be renewed with property ownership changes.

(Ord. No. 2015-09-10-0761, § 7(Exh. D), 9-10-15)

Secs. 34-1118—34-1140. Reserved.

ARTICLE VIII. RECYCLED WATER SERVICE AND RATES*

DIVISION 1. GENERALLY

Sec. 34-1141. Purpose of recycled water program.

The purpose of the SAWS' recycled water program is the replacement of Edwards Aquifer

*__Editor's note—__Ord. No. 87597, § 1, adopted March 26, 1998, added provisions intended for use as Art. VII. Inasmuch as there were already provisions so designated, the provisions have been redesignated as Art. VIII at the discretion of the editor.

water usage with recycled water for non-potable uses of water thereby making the Edwards Aquifer water available for other uses. A fundamental goal of the program is the acquisition by SAWS of Edwards Aquifer water withdrawal rights from customers who are Edwards Aquifer water withdrawal rights owners. SAWS seeks to acquire such Edwards Aquifer withdrawal rights by exchange for a contractual commitment to deliver equivalent quantities of recycled water that unlike Edwards Aquifer water is not subject to reduction during drought periods.
(Ord. No. 87597, § 1, 3-26-98)

Sec. 34-1142. Contracting for purchase of recycled water.

SAWS and customers desiring to purchase recycled water from SAWS shall be required to enter into a written recycled water contract setting forth, the terms and conditions upon which such transaction will be consummated. The recycled water contracts shall comply with the provisions of this article VIII, as well as any other applicable laws, rules and regulations.
(Ord. No. 87597, § 1, 3-26-98)

Sec. 34-1143. Authorized uses of recycled water.

Recycled water shall be used exclusively for commercial, industrial, irrigation, landscape maintenance, streamflow enhancement and other specific uses described in the recycled water contract between SAWS and a customer. Recycled water use shall be in compliance, where applicable, with 30 Texas Administrative Code, Chapter 210, et seq.
(Ord. No. 87597, § 1, 3-26-98)

Sec. 34-1144. Prohibited uses of recycled water.

Recycled water shall not be used for drinking, food preparation, domestic purposes or any type of human consumption. A violation of this section may be cause for the immediate termination of a recycled water contract between SAWS and a customer.
(Ord. No. 87597, § 1, 3-26-98)

Sec. 34-1145. Prohibited sales of recycled water.

It shall be unlawful for any person to sell recycled water to any other person for any purpose other than an authorized purpose described in section 34-1143.
(Ord. No. 87597, § 1, 3-26-98)

Secs. 34-1146—34-1160. Reserved.

DIVISION 2. QUALITY

Sec. 34-1161. Generally.

(a) All recycled water supplied, treated, transmitted and distributed by SAWS shall be in compliance with the parameters established by TNRCC for Type I usage under 30 Texas Administrative Code, Chapter 210 et seq. The minimum recycled water quality will be as follows:

BOD_5 or $CBOD_5$	5 mg/L
Turbidity	3 NTU
Fecal Coliform	20 CFU/100 ml*
Fecal Coliform	75 CFU/100 ml**

* Geometric mean (the n^{th} root, usually the positive n^{th} root, of a product of n factors)
** Single grab sample (not to exceed).

(b) SAWS shall provide periodic recycled water quality data to all recycled water customers. Specific recycled water quality issues and specific treatment requirements unique to any customer may be addressed by SAWS and the individual customers in recycled water contracts.
(Ord. No. 87597, § 1, 3-26-98)

Sec. 34-1162. Supplying below standard recycled water to another.

It shall be unlawful for any person to supply any other person with recycled water which does not comply with the recycled water standards described in section 34-1161.
(Ord. No. 87597, § 1, 3-26-98)

Sec. 34-1163. Analyses of recycled water required.

At a minimum, every official or other person responsible for any recycled water supply, who

furnishes recycled water for any authorized recycled water use, shall have at least one (1) sanitary analysis of a representative sample of recycled water from the distribution system made twice weekly and shall retain records for a minimum of three (3) years.
(Ord. No. 87597, § 1, 3-26-98)

Secs. 34-1164—34-1180. Reserved.

DIVISION 3. SYSTEM

Sec. 34-1181. Definitions.

Conversion benefit shall mean the sum of money paid by SAWS to, or cost incurred by SAWS specifically to the benefit of:

(1) An existing customer of SAWS who contracts to purchase recycled water thereby reducing the existing customer's utilization of Edwards Aquifer water; and

(2) Any customer who exchanges with SAWS all or part of the customer's Edwards Aquifer water withdrawal rights for recycled water from SAWS.

Distribution main shall mean a recycled water main offsite to a customer which is constructed at the expense of the recycled water customer and which connects one (1) or more customers with a SAWS transmission main. Distribution mains terminate at (1) the point of connection with a customer's recycled water meter, and (2) the point of connection with SAWS' transmission mains. All distribution mains (including the recycled water meter connecting to a customer's onsite recycled water main) accepted by SAWS become the property of SAWS at the time the distribution main is accepted.

Edwards exchange customer shall mean a customer who exchanges Edwards Aquifer water withdrawal rights for a like volume of recycled water and who filed a request for recycled water service with SAWS. An Edwards exchange customer can only exchange Edwards Aquifer water withdrawal rights which have been recognized by the Edwards Aquifer Authority, either pursuant to (1) interim authorization, (2) an initial regular permit, or (3) a regular permit, under 31 Texas Administrative Code, Chapter 705 et seq. An Edwards exchange customer may exchange all or a portion of its permitted Edwards Aquifer water withdrawal rights. A transfer of permitted Edwards Aquifer water withdrawal rights from an Edwards exchange customer to SAWS must be approved by the Edwards Aquifer Authority pursuant to 31 Texas Administrative Code, Chapter 705, Subchapter H or such future regulations as the state or Edwards Aquifer Authority may promulgate. In order to qualify for Edwards exchange customer status, the transfer of Edwards Aquifer water withdrawal rights to SAWS must be perpetual and unconditional. An Edwards exchange customer will only be provided recycled water in an amount which is equal to the Edwards Aquifer water withdrawal right which is transferred to SAWS. An Edwards exchange customer is not required to exchange the entirety of its Edwards Aquifer water withdrawal right, only that portion the Edwards exchange customer wishes to exchange for recycled water.

Existing customer shall mean a potable water customer of SAWS on June 30, 1997, who filed a request for recycled water service with SAWS.

Onsite recycled water mains shall mean any recycled water transport or distribution lines on the customer's side of the recycled water meter. Onsite recycled water mains are built by the customer and subject to permitting, SAWS and 30 Texas Administrative Code, Chapter 210 et seq. minimum standards and inspection as set out in the SAWS water recycling standards.

Transmission main shall mean a recycled water main including pumping and monitoring facilities built at the expense of SAWS.
(Ord. No. 87597, § 1, 3-26-98)

Sec. 34-1182. Extension policy.

SAWS will design and construct all recycled water transmission mains, recycled water treatment facilities, and recycled water pumping facilities SAWS determines are necessary and appropriate for providing recycled water to SAWS' recycled water customers. Recycled water shall be sold to customers whose water purchase

volumes and/or decreases in Edwards Aquifer water withdrawals volumes due to recycled water purchases make it practicable and beneficial, in SAWS' opinion, to provide recycled water to the customer.
(Ord. No. 87597, § 1, 3-26-98)

Sec. 34-1183. SAWS not obligated to proceed.

(a) In no event shall SAWS be obligated to proceed with the construction, maintenance or operation of the recycled water system, or any part thereof, unless there are sufficient funds available, or if in the opinion of the board of trustees of SAWS, the main extension or recycled water operation is not in the public interest.

(b) The decision of the chief executive officer of SAWS, or his designee, shall be final in the determination of line size, approval of plans and specifications, the decision to enter into a recycled water contract with a customer and the availability of funds for construction and/or reimbursement for construction of oversize lines.
(Ord. No. 87597, § 1, 3-26-98)

Sec. 34-1184. Specifications for service connections.

The specifications for recycled water service connections shall conform to the standards set by SAWS.

Sec. 34-1185. Cross connections with potable water mains prohibited.

(a) It shall be unlawful for any person to make or to maintain any cross connection or to allow any cross connection to exist at any place under the control of any person.

(b) The term "cross connection," as used in this section, is any mechanical union or any hydraulic union which, under any condition, might pass recycled water into the potable water supply system. Any switchover system potentially allowing use of potable water as a temporary substitute for recycled water if recycled water is not available shall be built to ensure that recycled water does not back flow into the potable water system.

(c) To ensure the complete separation of a customer's onsite potable water system from the lines supplying recycled water, SAWS will require an inspection of the customer's onsite potable water system by the local plumbing inspection department having jurisdiction prior to supplying recycled water. Facilities located outside incorporated city limits and not having access to municipal plumbing inspections, shall have the inspection conducted by a state licensed water protection specialist or a TNRCC approved customer service inspector. The SAWS backflow prevention section shall be notified of and participate in the inspections. The inspections will involve procedures to be established by SAWS. The inspections and any recommended piping modifications shall be completed prior to commencement of the recycled water service. A reinspection shall be conducted every three (3) years or as deemed necessary by the local plumbing inspection department and/or SAWS.
(Ord. No. 87597, § 1, 3-26-98)

Secs. 34-1186—34-1200. Reserved.

DIVISION 4. RECYCLED WATER MAIN CONSTRUCTION

Sec. 34-1201. Distribution mains.

(a) In the event a recycled water customer desires the extension of distribution mains to provide the customer with recycled water service, the customer shall bear all costs of extending the distribution main from the transmission main to the customer's property line. The size of such distribution mains are to be determined by SAWS, in its discretion, based on the customer's expected recycled water purchases.

(b) SAWS shall review and approve the location of all recycled water distribution mains, as well as the plans and specifications for recycled water distribution mains and associated improvements including without limitation, pumps, monitoring devices and storage facilities. All construction of distribution mains shall be

performed by the customer or a contractor selected by the customer, provided, however, that the customer or contractor shall furnish a performance bond, executed by a corporate security authorized to do business in the state and maintaining an agent in Bexar County upon whom service of citation may be had. Such performance bond shall be in an amount equal to the total construction cost under the contract. The bond shall be in favor of SAWS and the customer and shall assure (1) completion of all construction required under the contract in full conformity with the plans and specifications approved by SAWS; (2) maintenance of such construction for a period of at least ninety (90) days after acceptance of construction by SAWS; and (3) payment in full by contractor of all subcontractors and materialmen providing labor and/or material in connection with the construction of the distribution main. All construction work on the distribution main shall be subject to inspection by city and SAWS officials and representatives. In no event shall any portion of any distribution main installed in an excavation be covered over unless and until it has been inspected and approved by SAWS.

(c) Upon completion of construction of a recycled water distribution main and receipt of evidence acceptable to SAWS that all costs and fees for construction of the distribution main have been paid in full and all liens released, SAWS shall issue a written certificate of acceptance of the specific distribution main by SAWS, whereupon the distribution main covered by the acceptance certificate shall be the property of SAWS.
(Ord. No. 87597, § 1, 3-26-98)

Sec. 34-1202. Distribution main oversizing.

SAWS may require that a distribution main being constructed by a recycled water customer be increased in diameter to a diameter larger than reasonably necessary to provide adequate recycled water service to a customer's property as a condition of approving the customer's plans and specifications for the distribution main. SAWS shall, upon completion of a distribution main constructed by a customer which meets SAWS' required sizing, reimburse the customer the reasonable incremental cost of the construction of the larger mains. The customer's responsibility for a share of the total cost of the oversized main will be limited to the greater of the scheduled charge for a six-inch main or prorated share of the total cost of the oversize main. Cost sharing for distribution mains shall be based on the following examples:

Example 1:

Required recycled water size main, 8 inches	Flow capacity, 848 GPM
Oversize recycled main constructed, 16 inches	Flow capacity, 3,393 GPM
Length of main constructed=	1,980 feet
Cost per linear foot=	$ 33.33/foot
Total main construction cost=	66,003.00

Prorated customer share of main cost:
$\frac{848}{3393} = 0.2499$

0.2499 x $66,003.00 = $16,494.00

Customer pays cost of six-inch main or prorated cost of $16,494.00, whichever is greater.

Example 2:

Required recycled water size main, 16 inches	Flow capacity, 3,393 GPM
Oversize recycled main constructed, 20 inches	Flow capacity, 5,729 GPM
Length of main constructed=	2,013 feet
Cost per linear foot=	$ 49.76/foot
Total main construction cost=	$104,655.00

Prorated customer share of main cost:
$\frac{3393}{5729} = 0.5922$

0.5922 x $104,655.00 = $61,976.00

Customer pays prorated cost of $61,976.
(Ord. No. 87597, § 1, 3-26-98)

Sec. 34-1203. Oversize distribution main—Construction.

Any distribution main construction by a customer which includes oversizing of a distribution main at the request of SAWS and for which oversizing the customer is to be reimbursed by SAWS shall be advertised for bids in the manner generally required for SAWS construction. All qualified bids submitted shall be publicly opened

and let in the same manner as other SAWS construction contracts are bid and let. The construction contract shall be between the customer and contractor. Prior to commencement of the work under the contract for construction of an oversize distribution main, the contractor must have supplied SAWS with:

(1) A copy of the fully-executed construction contract for the distribution main. The contract shall provide that SAWS is a beneficiary of the contract with rights to enforce such contract and that all warranties of the contractor under the contract also extend to SAWS once SAWS has accepted the distribution main. The contractor shall agree that SAWS may enforce any guaranty of contractor's work without joinder of the contractor;

(2) An original executed copy of the payment and performance bond naming SAWS as an additional insured;

(3) A sales tax certificate; and

(4) Evidence that all insurance requested by SAWS is in place and where required evidence that SAWS is an additional insured. The minimum insurance requirements shall be the same as those required by SAWS from general contractors for a similar size project.

(Ord. No. 87597, § 1, 3-26-98)

Sec. 34-1204. Same—Payment.

Any oversize reimbursement computed pursuant to section 34-1202 above shall be paid by SAWS to the customer who constructed and paid for the oversize distribution main, unless the customer and SAWS have previously agreed in writing to the payment of the oversize reimbursement in the manner set forth in section 34-1205 below. The payment shall be made within thirty (30) days of the final acceptance of the oversize distribution main by SAWS.
(Ord. No. 87597, § 1, 3-26-98)

Sec. 34-1205. Same—Deferred reimbursement of costs by credit application.

SAWS and a customer may agree in writing at any time before SAWS' acceptance of oversize work by SAWS that the oversize reimbursement will be paid by SAWS to the customer by SAWS, allowing the customer to apply the oversize reimbursement on a dollar-for-dollar basis as a credit against twenty (20) percent of the customer's recycled water bill each month until the oversize reimbursement credits are fully utilized.
(Ord. No. 87597, § 1, 3-26-98)

Sec. 34-1206. Same—Third party use.

If a customer wishes to connect to a distribution line oversized at SAWS' expense, then SAWS, as a condition of allowing the customer to acquire recycled water from the oversize distribution main, shall require the customer to pay SAWS a prorata share of the distribution main's oversize costs based on a ratio of available oversize flow capacity and the contracted monthly purchases or expected monthly purchases of the customer.
(Ord. No. 87597, § 1, 3-26-98)

Sec. 34-1207. Same—Requirements for reimbursement.

In no event shall a customer be entitled to receive oversize distribution main credit reimbursements unless the customer has complied with all conditions and obligations of the customer's recycled water contract and all applicable laws. SAWS shall provide customers with the form of the certification required from the customer before SAWS will accept the oversize distribution main.
(Ord. No. 87597, § 1, 3-26-98)

Sec. 34-1208. Distribution main constructed by SAWS.

SAWS may, at its discretion, construct distribution mains at its cost and expense where SAWS determines that such extensions are beneficial to the growth of the recycled water system and are practical in light of projected revenue, expected acquisition of Edwards Aquifer water withdrawal rights and/or impact of Edwards Aquifer water pumping reductions that will result from the availability of the distribution main. In said event, SAWS may charge recycled water customers their prorata share of the distribution main built at SAWS' expense. The customer's prorata

share shall be based on the total capacity of the distribution main to the capacity to be used by the customer's system, but in no event less than the volume contracted for by the customer in relationship to the capacity of the main. If a customer oversizes its system for future expansion, the customer's share of the distribution main cost will be based on the projected volumes of recycled water to be purchased by the customer. (Ord. No. 87597, § 1, 3-26-98)

Sec. 34-1209. Where mains may be located.

All recycled water mains and other recycled water infrastructure which are owned by SAWS shall be constructed in or located:

(1) On SAWS, city, county or state-owned property, including any public street or alley or any platted or publicly owned drainage facility;

(2) Within the boundaries of any SAWS, city, county or state-owned creek or river bed; or

(3) Within a platted or otherwise dedicated easement or right-of-way which has been granted to SAWS, the city, the county or the state and recorded in the real property records of the county in which the land is located.

(Ord. No. 87597, § 1, 3-26-98)

Sec. 34-1210. Public property requirement.

Where SAWS, as part of its recycled water transportation and distribution system, requires pumps, treatment facilities, storage, testing sites or other facilities, all such facilities including all access roads to them, shall be located on public land or within an easement properly granted SAWS for such purpose as evidenced by a written instrument recorded in the real property records of the county in which it is located. (Ord. No. 87597, § 1, 3-26-98)

Secs. 34-1211—34-1230. Reserved.

DIVISION 5. CONSTRUCTION PERMITS AND INSPECTION

Sec. 34-1231. Private construction permit required.

(a) Before any customer shall apply for a permit for connection to the SAWS recycled water system, the customer must have completed application to SAWS and obtained a permit from SAWS to connect to the recycled water system. At the time of application the customer/applicant shall have completed the following:

(1) *Fees.* Pay to SAWS the fees specified in the SAWS recycled water specifications. The application fee is non-refundable and is not applied to recycled or other water purchases.

(2) *Drawings and specifications.* Whenever in the opinion of SAWS, drawings and specifications are required to show definitely the nature and character of the construction for which the application is made, the customer shall furnish such drawings (to scale) and specifications for the customer construction to SAWS for review and approval. Such drawings and specifications shall detail all proposed construction from the SAWS recycled water meter to the place of use of the recycled water.

(3) *Plan review.* SAWS shall review the data submitted by the customer/applicant within thirty (30) working days of actual receipt. If SAWS, in its discretion, determines that the application (including the plans and specifications) does not conform with the requirements of this article, SAWS shall note, in writing, all objections on the application and/or plans or on an attachment thereto and shall return the submitted plans and specifications with the basis for the rejection to the customer/applicant. The customer/applicant shall have thirty (30) days from the date the application was returned to the customer/applicant to submit the plans to modify and resubmit the plans and application based on SAWS' com-

ments. SAWS and the customer/applicant may continue the review procedure for one (1) property up to three (3) submissions to SAWS without payment of added fees. Thereafter a resubmitted application fee as specified in the SAWS recycled water specifications shall be required.

(4) *Recycled water contract.* The customer/applicant and SAWS shall have executed a contract for the purchase of recycled water by the customer/applicant from SAWS.

(b) Upon the approval of an application, a permit to proceed with the construction work shall be issued. Any work done by a customer/applicant before the permit to proceed with construction is performed at the customer/applicant's expense and risk that the permit will not be issued. A construction permit issued under this article shall be valid for six (6) months from the later of (1) the date of issue of the permit, or (2) if the permit issued contains a notation that SAWS provided mains to which the customer/applicant's work is to be connected are not then available, six (6) months after SAWS notifies the customer/applicant that SAWS provided mains for services of the customer/applicant are ready and available for connection to customer/applicant's work. If work is begun within the six-month period, SAWS may extend the permit for an additional six (6) months on such terms as SAWS deems appropriate.
(Ord. No. 87597, § 1, 3-26-98)

Sec. 34-1232. Installation and inspection.

(a) *Construction requests.* All privately-constructed mains shall be installed in strict compliance with the construction requirements of the SAWS recycled water specifications set forth in the SAWS recycled water specifications.

(b) *Inspection.* After installation, but prior to covering, all privately-constructed mains shall be inspected by SAWS to ensure that all construction is in accordance with SAWS recycled water specifications. It is the duty of the customer to provide reasonable notice to SAWS when a main is or will be ready for inspection.

(c) *Reinspection.* If the SAWS inspector finds that the main is not in accordance with SAWS recycled water specifications, then the customer shall make the necessary corrections and the work shall be submitted for reinspection. The work shall be available for reinspection within ten (10) days of the date the customer or its representative is notified of the revisions required. For each reinspection the applicant shall pay a reinspection fee as specified in SAWS recycled water specifications.

(d) *Certification.* Upon satisfactory completion and inspection of a main, SAWS shall issue a certificate of construction conformity. The issuance of such certificate shall evidence SAWS' acceptance of the distribution main and appurtenant improvements on SAWS' side of the recycled water meter as the property of SAWS. Such certificate is solely for the benefit of the customer and SAWS and shall not be relied upon by any third party.
(Ord. No. 87597, § 1, 3-26-98)

Sec. 34-1233. Unaccepted work.

(a) *Nonconforming work.* Any work determined by SAWS or a local plumbing inspection department for onsite work, in their sole discretion, to be inferior in quality and not in conformance with the approved plans and specifications shall be replaced or corrected immediately. If the work is not corrected within ten (10) days (or such longer period as SAWS may have agreed to in writing, but not more than sixty (60) days), then the permit shall be revoked and no further permits shall be issued to the customer until the rejected work fully complies with all applicable requirements and is accepted by SAWS.

(b) *Revocation of permit.* SAWS or a local plumbing inspection department for onsite work, may revoke a permit in the event there have been any false statements or misrepresentations as to any material fact in connection with an application or plans on which the permit approval was based, or if unaccepted work is not corrected within the sixty-day cure period.
(Ord. No. 87597, § 1, 3-26-98)

Secs. 34-1234—34-1250. Reserved.

DIVISION 6. ONSITE IMPROVEMENTS

Sec. 34-1251. Inspection.

All onsite recycled water distribution piping within the city shall be installed by a licensed and bonded plumbing contractor. A permit and inspection by the city building inspections department shall be required. All piping and installation shall be in accordance and comply with Section 603 and Appendix J of the adopted Uniform Plumbing Code (UPC) or other adopted standards.
(Ord. No. 87597, § 1, 3-26-98)

Sec. 34-1252. Conversion benefit—Existing customers.

(a) If a SAWS existing customer contracts to purchase recycled water from SAWS in lieu of using Edwards Aquifer water, then the existing customer may be entitled to financial assistance for the cost of infrastructure improvements determined by SAWS to be necessary and appropriate for converting to recycled water.

(b) The financial assistance shall be extended only to the extent available and will initially be made available only to existing customers and Edwards exchange customers. If additional funds for financial assistance remain available after existing customers and Edwards exchange customers have had an opportunity to utilize financial assistance, financial assistance may be made available, at the discretion of SAWS, to other customers.

(c) SAWS will credit the existing customer a one-time conversion benefit for approved onsite and/or distribution main recycled water system improvements equal to the sum of nine hundred dollars ($900.00) per acre foot of water per year that the existing customer contracts with SAWS to take. The conversion benefit shall be computed utilizing the average acre feet of water the existing customer contracts to purchase during the initial five (5) years of the recycled water purchase contract, not to exceed the customer's peak historic use, as the multiplier of the nine-hundred-dollar figure.

(d) The conversion benefit may be used only by an existing customer to pay for the existing customer's offsite and onsite improvements for use of recycled water, including but not limited to distribution mains; meters and appurtenances thereto; connection of the recycled water system from the meter to the common distribution points of recycled water on the existing customer's property; retrofit of irrigation and other water systems to take water from the separate recycled water source rather than from the existing Edwards water source; costs of modifying equipment to use the recycled water (e.g., pressure adjustments); storage facilities for recycled water to be stored onsite for use during peak demand periods when there is determined by SAWS to be a benefit to the entire recycled water system from such storage; and switchover equipment allowing the existing customer to switch from the recycled water source to a substitute water source should recycled water not be available. The conversion benefit shall be used to pay first for the cost of a distribution main to be built at the existing customer's expense and secondly, to the extent of any conversion benefit remaining, for the cost of the existing customer's onsite improvements. Conversion benefit may be used to pay for both design and construction costs.

(e) SAWS may approve use of the conversion benefit funds for specialized recycled water equipment based on existing customer's needs. Such additional authorized uses for the funds may include onsite testing facilities for recycled water quality or water quality improvement facilities. Conversion benefit funds may be used only for construction and equipping such specialized recycled water facilities, but specifically not to reimburse the existing customer's operating and maintenance costs for the water quality and/or recycled water monitoring procedures.
(Ord. No. 87597, § 1, 3-26-98)

Sec. 34-1253. Same—Edwards exchange customers.

An Edwards exchange customer may be entitled to receive a conversion benefit payment, because of its transfer of Edwards Aquifer water withdrawal rights to SAWS, in addition to any conversion benefit the Edwards exchange

customer might qualify for as an existing customer for SAWS potable water. An Edwards exchange customer's additional conversion benefit may be computed by multiplying nine hundred dollars ($900.00) by the number of acre feet of Edwards Aquifer water withdrawal rights the owner has transferred to SAWS. In addition to the permitted use of conversion benefits set out in this article, the Edwards exchange customer may use the conversion benefit payment to cap or plug closed wells and to construct onsite transportation facilities from the recycled water main to the points of use of the recycled water.
(Ord. No. 87597, § 1, 3-26-98)

Sec. 34-1254. Same—Payment.

A conversion benefit shall be credited when all of the following have occurred:

(1) The existing customer or Edwards exchange customer has executed a recycled water contract with SAWS specifying the volume of recycled water anticipated to be purchased each year for not less than five (5) years;

(2) The existing customer or Edwards exchange customer agrees to pay all costs associated with recycled water service not covered by SAWS;

(3) The existing customer or Edwards exchange customer has prepared and submitted to SAWS a water conservation plan which is to be implemented within one (1) year;

(4) The existing customer or Edwards exchange customer has completed all onsite and offsite retrofitting which is to be paid for by conversion benefit funds, as well as any other onsite work reasonably necessary to begin use of the recycled water in accordance with the approved recycled water plan within six (6) months; and

(5) The Edwards exchange customer has completed the transfer of Edwards Aquifer water withdrawal rights which establish its Edwards exchange customers status and such transfer has been fully approved by the Edwards Aquifer Authority pursuant to 31 Texas Administrative Code, Chapter 705, Subchapter H.

(Ord. No. 87597, § 1, 3-26-98)

Sec. 34-1255. Same—Refund.

If a customer fails to perform all conditions for payment of a conversion benefit and such breach continues uncured for sixty (60) days after written notice of the breach by SAWS, then SAWS may require the immediate refund of the conversion benefit, which sum shall be payable to SAWS on demand.
(Ord. No. 87597, § 1, 3-26-98)

Secs. 34-1256—34-1270. Reserved.

DIVISION 7. SERVICE

Sec. 34-1271. Priority for certain new recycled water customers.

SAWS will prioritize its provision of recycled water service, where possible, to potential new customers as follows:

(1) First priority shall be given to potential customers who are U.S. military installations and potential customers located in the areas of former U.S. military installations;

(2) Second priority shall be given to potential customers located in economic enterprise zones or associated with economic development projects targeted by SAWS, the city or Bexar County;

(3) Third priority shall be given to potential customers who are Edwards exchange customers;

(4) Fourth priority shall be given to potential customers who are current SAWS potable water customers and who will be replacing the use of potable water for non-potable with recycled water for such purposes; and

(5) Fifth priority shall be given to all remaining potential customers.

(Ord. No. 87597, § 1, 3-26-98)

Sec. 34-1272. Delivery of recycled water.

Specific conditions relating to the delivery point, delivery quantities and pressure, metering requirements and maintenance responsibilities will be set forth for each recycled water customer in the recycled contract for such customer.
(Ord. No. 87597, § 1, 3-26-98)

Sec. 34-1273. Quantity of recycled water delivered.

The quantity and rate of delivery of recycled water to be purchased by any customer shall be set forth in the recycled water contract between SAWS and such customer.
(Ord. No. 87597, § 1, 3-26-98)

Sec. 34-1274. Quality of recycled water delivered.

If any time the recycled water available from SAWS fails to meet the requirements of 30 Texas Administrative Code, Chapter 210 et seq., SAWS shall, upon the request of the customer, provide the customer substitute water of at least comparable quality in a quantity equal to the quantity of contracted recycled water that SAWS is unable to provide, at rates not to exceed the rate for recycled water then applicable.
(Ord. No. 87597, § 1, 3-26-98)

Sec. 34-1275. Reliability of recycled water service.

SAWS will provide recycled water on a regular basis in such quantities set forth in the recycled water contract between SAWS and each customer. Recycled water service may be interrupted in the event of recycled water main or pipeline breaks or repairs, recycled water main or pipeline construction or upgrades, or due to acts of God or other extraordinary circumstances. In the event of any interruption in recycled water service, SAWS shall provide substitute water of comparable quality to each affected customer at rates not to exceed the rate for recycled water then applicable. Except as specified in this article, SAWS shall not be liable for an interruption in recycled water service.
(Ord. No. 87597, § 1, 3-26-98)

Sec. 34-1276. SAWS' duty to supply substitute water.

If after a customer has performed all of its obligations under its contract to purchase the recycled water, including construction of a distribution main and onsite improvements, SAWS is unable to provide the quantity of contracted recycled water for any reason, SAWS shall, upon request of the customer, provide the customer substitute water of at least comparable quality in a quantity equal to the quantity of contracted recycled water that SAWS is unable to provide, at rates not to exceed the rate for recycled water then applicable.
(Ord. No. 87597, § 1, 3-26-98)

Sec. 34-1277. Interruption in service to Edwards exchange customers.

(a) If SAWS is unable to provide recycled water in compliance with the terms of an Edwards exchange customer's recycled water contract, or substitute water of at least comparable quality in a quantity equal to the quantity of contracted recycled water that SAWS is unable to provide, an Edwards exchange customer may, at the Edwards exchange customer's cost and expense, withdraw and utilize Edwards Aquifer water under the Edwards Aquifer water withdrawal right which has been transferred to SAWS in an amount equal to the lesser of:

(1) The Edwards exchange customer's actual onsite beneficial use without waste, as that term is defined under Edwards Aquifer Authority regulations set forth at 31 Texas Administrative Code 703.1(B); or

(2) The quantity specified in the Edwards exchange customer's recycled water contract with SAWS.

(b) The right to the Edwards exchange customer to utilize a portion of SAWS Edwards Aquifer water withdrawal right after an interruption of service is expressly conditioned on no objection to the procedure being made by the Edwards Aquifer Authority. It shall be the joint duty of the Edwards Aquifer exchange customer who utilizes a portion of the SAWS Edwards

Aquifer water withdrawal right pursuant to this section and of SAWS to notify the Edwards Aquifer Authority of the Edwards exchange customer's intention to do so.
(Ord. No. 87597, § 1, 3-26-98)

Sec. 34-1278. Exemption from reduction measures.

The quantity of recycled water which SAWS agrees to provide pursuant to any recycled water contract between SAWS and a recycled water customer shall be exempt from compliance with the specific water use reduction measures set forth in article IV, division 4 of this chapter (the Drought Management, Water Conservation and Reuse Plan), but not from other provisions in this chapter. In the event a recycled water customer purchases recycled water from SAWS in excess of the contracted amount, SAWS, as it determines to be necessary, may reduce such customer's purchase of the recycled water in excess of the contracted amount.
(Ord. No. 87597, § 1, 3-26-98; Ord. No. 2024-06-20-0480, § 1(Exh. A), 6-20-24)

Sec. 34-1279. Disconnection for noncompliance.

It shall be the duty of SAWS to disconnect the recycled water service from any place where provisions of 30 Texas Administrative Code, Chapter 210 et seq. or of this article or of the recycled water contract in question are violated.
(Ord. No. 87597, § 1, 3-26-98)

Sec. 34-1280. Unlawful connection with recycled water main.

It shall be unlawful for any person who is not a party to a valid recycled water contract to bore or drill into any recycled water main or make attachments to or connections with any recycled water service pipe.
(Ord. No. 87597, § 1, 3-26-98)

Sec. 34-1281. Unlawful taking of recycled water.

It shall be unlawful for any person who is not a party to a valid recycled water contract to make an attachment to any recycled water main, service line or branches thereof or to otherwise take recycled water therefrom.
(Ord. No. 87597, § 1, 3-26-98)

Sec. 34-1282. Maintenance of recycled water service pipes.

All persons using recycled water furnished by SAWS shall keep their recycled water service system in good repair, so as to prevent leakage. Maintenance is the owner's responsibility. All customer onsite transportation, holding and distribution facilities for recycled water shall comply with the standards of 30 Texas Administrative Code, Chapter 210 et seq.
(Ord. No. 87597, § 1, 3-26-98)

Sec. 34-1283. Damage to recycled water system.

It shall be unlawful for any person, in any way, to intentionally or carelessly break, deface or in any manner damage or destroy any recycled water main, service line or branch thereof or any hydrant, meter, standpipe or other property belonging to the city, SAWS or others, and used in connection with the collection, treatment, metering, storage, supply, transmission and distribution of recycled water.
(Ord. No. 87597, § 1, 3-26-98)

Sec. 34-1284. Title to recycled water service apparatus.

Title to all recycled water meters, curb-cocks and appurtenances that are attached through service lines or branches thereof to the recycled water mains of the SAWS recycled water system, including the meter and enclosing curb-cock boxes, shall be vested in the city for the singular use and benefit of the SAWS board of trustees. No person other than a duly authorized agent or representative of the board of trustees of SAWS shall open the meter or curb-cock or appurtenances thereto. SAWS shall maintain, repair and replace all meters, curb-cocks and appurtenances in connection therewith at its cost and expense.
(Ord. No. 87597, § 1, 3-26-98)

Secs. 34-1285—34-1300. Reserved.

DIVISION 8. RATES AND CHARGES

Sec. 34-1301. Establishment of rates.

The rates and charges for recycled water service which will be applied to all recycled water consumption beginning on or about January 1, 2025 as appropriate, are set out in Schedule F to this chapter and shall be the lawful rates for recycled water service to be charged by the system.
(Ord. No. 87597, § 1, 3-26-98; Ord. No. 90733, § 1, 10-21-99; Ord. No. 96658, § 1(Att. 1), 10-31-02; Ord. No. 2015-11-19-0956, § 4(Att. I), 11-19-15, Res. No. 16-302, Att. III; Ord. No. 2017-12-07-0928, § 1(Att. I), 12-7-17; Res. No. 19-280, 5(Att. III), 11-5-19; Ord. No. 2022-11-10-0868, § 1, 2(Att. 1, 2), 11-10-22; Res. No. 2023-198, 10-3-23; Res. No. 2024-227, § 5(Att. II), 11-4-24)

Sec. 34-1302. Credits for retrofit costs.

To the extent existing customers and Edwards exchange customers incur approved retrofit costs as described in the SAWS recycled water specifications, such existing customers and Edwards exchange customers shall be entitled to a credit against their recycled water bill. To the extent the existing customers are seasonal users of recycled water, the credit received pursuant to this section for retrofit costs shall be annualized and applied against recycled water during the months the water is used.
(Ord. No. 87597, § 1, 3-26-98)

Sec. 34-1303. Discount rates for recycled water utilized in certain operations.

(a) The purpose of this provision is to allow an alternate method of establishing a recycled water rate for customers who utilize recycled water in certain operations. To qualify for this method a customer/applicant must file with SAWS a report by a registered professional engineer detailing the increased volume of recycled water used in the customer/applicant's specific operation compared with the volume of potable water used in the customer/applicant's specific operation as a result of a lesser water quality of recycled water that will be utilized for the specific operation and including a proposed monthly flow recommendation. If the report is acceptable to SAWS, at its discretion, the rate for recycled water provided to the applicant/customer for operations will be discounted to reflect the increased usage so that the total cost to the customer/applicant will be the same as if the customer/applicant utilized an amount of recycled water equal to its prior use of non-recycled water in the customer/applicant to specific operation.

(b) The SAWS flat rate sewer program set forth in section 34-226.2 of this chapter may also be available to cooling tower customers. The flat rate sewer program provides for an alternate method of establishing a sewer charge for users. A flat rate sewer account may be established for any recycled water user upon determination by the SAWS customer service department that the costs to administer the account would not exceed the projected annual savings to the user.
(Ord. No. 87597, § 1, 3-26-98)

Sec. 34-1304. Remedies for breach.

In the event of breach of a recycled water contract by any customer, specifically including but not limited to failure to pay SAWS, SAWS may impose each of the charges described in subsections 34-1232(a)—(f), inclusive, against a customer for each account of SAWS serving the customer. Fees shall be assessed against each customer on a service by service basis.
(Ord. No. 87597, § 1, 3-26-98)

Sec. 34-1305. Calculation of quantity of recycled water delivered.

The amount of recycled water received by a customer shall be based on monthly meter readings performed by SAWS.
(Ord. No. 87597, § 1, 3-26-98)

Secs. 34-1306—34-1320. Reserved.

DIVISION 9. ENFORCEMENT

Sec. 34-1321. Authority.

SAWS' legal department is hereby granted the authority to seek legal and/or equitable remedies

for violations of this division, including the filing of criminal charges. For the purpose of enforcing this division the SAWS' environmental counsel shall represent the city in civil enforcement actions, by and through SAWS, and is hereby authorized to seek legal and/or equitable remedies against any person or entity which is reasonably believed to be violating or to have violated this division. A legal proceeding pursued under this division does not constitute a waiver by SAWS of any right the city may have to join in a legal action originating from an alternative source of law. SAWS may commence such actions for appropriate legal and/or equitable relief in courts having proper jurisdiction and may seek civil penalties and any other legal or equitable relief available under common law, V.T.C.A., Local Government Code ch. 54, under V.T.C.A., Water Code § 26.124, or any other applicable local, state, or federal code or statute.
(Ord. No. 87597, § 1, 3-26-98)

Sec. 34-1322. Penalties.

(a) *Criminal.* A conviction for violation of this division shall constitute a class C misdemeanor. A person convicted of a violation of this division shall be fined not less than two hundred dollars ($200.00) nor more than two thousand dollars ($2,000.00) per violation. Each violation of a particular section of this division shall constitute a separate offense, and each day an offense continues shall be considered a new violation for purposes of enforcing this division.

(b) *Civil.* A civil penalty in an amount not to exceed one thousand dollars ($1,000.00) per violation of this division may be imposed. Each violation of a particular section of this division shall constitute a separate offense, and each day such an offense continues shall be considered a new violation for purposes of assessing civil penalties and otherwise enforcing this division. All civil penalties collected by reason of enforcing this division shall be deposited in the water quality and environmental education and enforcement account as established by article I, division 8 of this chapter.
(Ord. No. 87597, § 1, 3-26-98)

Sec. 34-1323. Authority of city attorney to enforce.

The grant of the authority set out in this section shall in no way diminish the authority and responsibility of the office of the city attorney to ensure that this division is properly and diligently enforced, to prosecute violations of this division, and to defend the legality of this division if challenged.
(Ord. No. 87597, § 1, 3-26-98)

Secs. 34-1324—34-1340. Reserved.

ARTICLE IX. WATER SUPPLY FEE*

Sec. 34-1341. Assessment of water supply fee.

The assessment of a water supply fee to all San Antonio Water System ("system" or SAWS) customers is hereby authorized effective December 1, 2000. Such fee shall apply to all water customers, all types of water usage, and all water supply contracts including but not limited to military installations. The system shall show such fee as a separate line item on each customer bill. In the event there is no recorded usage by the customer during the month, no fee will be reflected on the bill.
(Ord. No. 92753, § 1, 10-19-00; Ord. No. 2024-11-07-0874, § 1(Exh. A), 11-7-24)

Sec. 34-1342. Definitions.

Projected water consumption. The total amount of water demand projected to be required to meet the needs of all the customers of the San Antonio water system for a given year.

Water management plan. The fifty-year water resource plan used to ensure long-term water security for SAWS customers. The plan was first developed in 1998 and has been periodically updated. SAWS intends to update the plan approximately every five (5) years.

***Editor's note—**Ord. No. 92753, adopted October 19, 2000, set out provisions intended for use as §§ 34-1201—34-1207. Inasmuch as there were already provisions so designated, the provisions of Ord. No. 92753 have been renumbered as §§ 34-1341—34-1349 at the discretion of the editor.

Water supply fee. The line item fee to system customers derived by dividing the annual water supply development costs by the projected annual consumption.

Water supply development costs. Such costs include the following:

Land acquisition and construction, including debt service, and the operation and maintenance of water supply development projects;

Land acquisition and construction, including debt service, and the operation and maintenance of recycling facilities capable of converting wastewater effluent into water suitable for municipal, industrial, and agricultural uses;

Land acquisition and construction, including debt service, and the operation and maintenance of infrastructure for the integration of new water supplies into the delivery system;

Land acquisition and construction, including debt service, operation and maintenance of aquifer recharge enhancement and other aquifer optimization projects;

Acquisition of new water supplies and water rights including land acquisition and permits;

Water supply development, including consultants' feasibility studies and reports, water quality protection and treatment, aquifer recharge initiatives and aquifer optimization studies, investigations, legal fees, court costs and other costs related to the development of water supplies;

Administrative costs, including overhead and that portion of the system's administrative costs applicable to the activities enumerated in this definition.

The above notwithstanding, no costs will be included which are not in conformance with the current or past water management plans.
(Ord. No. 92753, § 1, 10-19-00; Ord. No. 101683, § 1(Att. I), 11-17-05; Ord. No. 2024-11-07-0874, § 1(Exh. A), 11-7-24)

Sec. 34-1343. Water supply fee.

A water supply fee is assessed to all system customers based upon their respective monthly consumption. The water supply fee shall be based on the annual water supply development costs.
(Ord. No. 92753, § 1, 10-19-00; Ord. No. 101683, § 1(Att. I), 11-17-05)

Sec. 34-1344. Reserved.

Editor's note—Ord. No. 101683, § 1(Att. I), adopted November 17, 2005, repealed § 34-1344 in its entirety, which pertained to the maximum fee established for calendar years 2001—2005, and derived from Ord. No. 92753, § 1, adopted October 19, 2000.

Sec. 34-1345. Water supply fee schedule.

The water supply fee schedule shall remain in effect as set out in Schedule E until the System's Board of Trustees and Council of the City of San Antonio determine that an additional adjustment is necessary to most effectively meet the water supply development needs of system customers.
(Ord. No. 92753, § 1, 10-19-00; Ord. No. 101683, § 1(Att. I), 11-17-05; Ord. No. 2015-11-19-0956, § 4(Att. I), 11-19-15, Res. No. 16-302, Att. III; Ord. No. 2017-12-07-0928, § 1(Att. I), 12-7-17; Res. No. 19-280, 5(Att. III), 11-5-19; Ord. No. 2022-11-10-0867, § 2(Att. II), 11-10-22; Ord. No. 2024-11-07-0874, § 1(Exh. A), 11-7-24)

Sec. 34-1346. Water supply fee calculation.

For purposes of calculating the water supply fee for residential customers, the volume of water for domestic service will be combined with the volume of water for irrigation service. For general class customers, the water supply fee will be applied to the volume of water for domestic service and to the volume of water for irrigation service.
(Ord. No. 92753, § 1, 10-19-00)

Sec. 34-1347. Reserved.

Editor's note—Ord. No. 101683, § 1(Att. I), adopted November 17, 2005, repealed § 34-1347 in its entirety, which pertained to the multi-year financial plan and derived from Ord. No. 92753, § 1, adopted October 19, 2000.

Sec. 34-1348. Reserved.

Editor's note—Ord. No. 2024-11-07-0874, § 1(Exh. A), adopted November 7, 2024, repealed § 34-1348, which pertained to reaffirmation of the adoption of the fifty-year water resource pan and derived from Ord. No. 92753, § 1, 10-19-00.

Sec. 34-1349. Accountability procedures.

(a) The system shall submit the following information to the city council in an annual report within one hundred twenty (120) days after calendar year end or incorporate the information into an annual public document such as the Annual Comprehensive Financial Report. The report shall include:

(1) The capacity of water supplies purchased or developed by source with commentary on new supplies acquired since the prior report;

(2) Volume of water distributed annually by source;

(3) Sources and Uses of the water supply fee funds;

(4) Operating and maintenance expenditures by supply and capital funded by the water supply fee;

(5) A schedule of water supply funds available at the end of the year; and

(6) Any other information deemed necessary by the city council or the city's supervisor of public utilities.

(b) The system shall submit its annual budget to the city council for review and consultation in accordance with the requirements of Section 32, Management of the System, Subsection Q, of City Ordinance No. 75686. In addition, the system shall submit its proposed budget to the city's supervisor of public utilities at the same time it is submitted to the system's board of trustees.

(c) In accordance with section 32.U of City Ordinance No. 75686, the system shall submit the second annual update, in addition to subsection (a)(1) above, on the capacity of water supplies purchased or developed as of June 30 to the supervisor of public utilities.

(d) The system shall make all reports submitted pursuant to this section publicly available.

(e) The system shall brief the city council on the water management plan and/or water supply fee at any time as requested by city council.

(f) The system shall periodically inform its customers on the overall progress of the water supply projects.
(Ord. No. 92752, § 7, 10-19-00; Ord. No. 92753, § 1, 10-19-00; Ord. No. 101683, § 1(Att. I), 11-17-05; Ord. No. 2024-11-07-0874, § 1(Exh. A), 11-7-24)

Sec. 34-1350. Reserved.

ARTICLE X. STATE-IMPOSED TCEQ FEE

Sec. 34-1351. Definitions.

For the purpose of this article, the following terms, phrases, words, and their derivations shall have the meaning in this section:

Customer means a residential, general, and wholesale account billed for water or wastewater service, including individual apartment units. Connections for irrigation only accounts and recycled water only accounts shall not be considered a customer for the state-imposed TCEQ fee.

Fees assessed by TCEQ means the fees, charges, and rates assessed by TCEQ that are recovered through the state-imposed TCEQ fee, which shall be considered part of the gross revenues of the system including any water and wastewater fees, charges, and rates charged to the system by TCEQ and authorized and assessed by TCEQ, including fees assessed in 30 TAC § 290.51, fees for services to drinking water system; and fees assessed by TCEQ in 30 TAC § 21.3, fee assessment, for water quality fees; which may be amended from time to time by the TCEQ. Fines and penalties assessed to the system by TCEQ shall be excluded from recovery through the pass-through state-imposed TCEQ fee.

System means the San Antonio Water System.

TCEQ means the Texas Commission on Environmental Quality.
(Ord. No. 2009-12-10-1027, § 5(Exh. A), 12-10-09)

Sec. 34-1352. Assessment of the state-imposed TCEQ fee and annual fee adjustment.

(a) The fees assessed by TCEQ, as defined above, shall be used to calculate the pass-through state-imposed TCEQ fee charged to all water and wastewater customers of the system. Such state-imposed TCEQ fee is hereby authorized and shall become effective for billings on or about January 1, 2010. The monthly pass-through is subject to change based on the adjustment formula set out herein. The state-imposed TCEQ fee shall be applied in full to all accounts billed, regardless of the length of service the account was in effect. The system is delegated the authority to administratively adjust such state-imposed TCEQ fee on an annual basis, on or about January 1 of each year in accordance with the formula set out herein in subsection (b), and following consultation with the city's supervisor of public utilities. The system is directed to show such pass-through fee, state-imposed TCEQ fee, as a separate line item on each customer bill.

(b) An adjustment will be made to the state-imposed TCEQ fee annually, beginning on or about January 1, 2010, based on the following formula:

(1) Water customers. The projected annual fees assessed by TCEQ for water services for the 12-month period beginning in January minus the amount of the state-imposed TCEQ fee over-recovery or plus the amount of under-recovery from the cumulative state-imposed TCEQ fee collections for water services, divided by the projected average monthly water customers multiplied by twelve (12), yields the state-imposed TCEQ fee on a dollars-per-account-per-month basis for water customers.

(2) Wastewater customers. The projected annual fees assessed by TCEQ for wastewater services for the 12-month period beginning in January minus the amount of the state-imposed TCEQ fee over-recovery or plus the amount of under-recovery from the cumulative State-imposed TCEQ fee collections for wastewater services, divided by the projected average monthly wastewater customers multiplied by twelve (12), yields the state-Imposed TCEQ fee on a dollars-per-account-per-month basis for wastewater customers.

(3) Customers with both water and wastewater service will have the state-imposed TCEQ fee calculated for each component, water and wastewater, of the state-imposed TCEQ fee.

Water customers:

Projected annual fees assessed by TCEQ for water service PLUS	under-recovery or minus over-recovery from cumulative collections for water fees assessed by TCEQ		Adjusted TCEQ fee for water customers on a dollars-per-customer-per-month basis, for the 12-month period beginning on or about January 1st of each year
(divided by)		=	
Projected average monthly water customers × 12			

Wastewater customers:

Projected annual fees assessed by TCEQ for wastewater service PLUS	under-recovery or minus over-recovery from cumulative collections for wastewater fees assessed by TCEQ		Adjusted TCEQ fee for wastewater customers on a dollars-per-customer-per-month basis, for the 12-month period beginning on or about January 1st of each year
(divided by)		=	
Projected average monthly wastewater customers × 12			

(Ord. No. 2009-12-10-1027, § 5(Exh. A), 12-10-09)

EDWARDS AQUIFER AUTHORITY ("EAA") PERMIT FEE ADJUSTMENT

The following shall be applicable to the listed water service customer classes and water usage:

Residential water service (inside city limits)

Residential water service (outside city limits)

General water service (inside city limits)

General water service (outside city limits)

Wholesale water service (inside city limits)

Wholesale water service (outside city limits)

Private fire protection water service (applicable only to metered water usage)

An adjustment will be made to the Edwards Aquifer Authority Permit fee annually, beginning January 1, 1998, based on the following formula: The annual permit fee billed by the Edwards Aquifer Authority for the twelve-month period beginning in January plus the amount of the over-recovery or under-recovery from the prior twelve-month permit fee collections, divided by the project annual water usage, yields the permit fee on a dollars-per-gallon basis.

$$\frac{\textit{Permit fee billed by EAA PLUS } \textit{Over-recovery/under-recovery from prior 12-month permit fee collections}}{\text{Project annual water usage}} = \textit{Adjusted permit fee on a dollars-per-gallon basis of consumption, for the 12-month period beginning in the month of January}$$

(Ord. No. 87042, § 3, 12-1-97; Ord. No. 87043, §§ 1, 2, 12-1-97; Ord. No. 90733, § 1, 10-21-99; Ord. No. 92752, § 1, 10-19-00; Ord. No. 2007-02-08-0149, § 1(Exh. A), 2-8-07)

RATE SCHEDULE D
Effective 12:01 a.m., March 15, 2003

ECONOMIC DEVELOPMENT CUSTOMER WATER SERVICE RATES

Pursuant to the terms of a contract executed in 2003 between SAWS and an economic development customer, an economic development customer may be charged a water service rate of not less than One and No/100 Dollars ($1.00) per thousand gallons of water for a period not to exceed seven (7) years. For any contract executed between SAWS and an economic development customer in subsequent years, an economic development customer may be charged a water service rate calculated using the monthly volume charge payable for General Water Service under Rate Schedule B, as it currently exists or is hereafter amended, less a discount not to exceed fourteen (14%) for a period not to exceed seven (7) years. Economic development customer rates may apply:

(1) For an existing customer, the discount may be applied only to the increase of potable water utilized by the new or expanded facilities qualifying the existing customer as an economic development customer.

(2) For a new customer, the discount may be applied to all potable water delivered to the new facilities qualifying the new customer as an economic development customer.

Water delivered to an economic development customer shall only be consumed or used by the economic development customer to whom it is delivered at the new or expanded facilities qualifying the customer as an economic development customer. Use at another location, or the resale or transfer of such water is prohibited.

WAIVER OF CERTAIN FEES AND COSTS

Notwithstanding any other provisions of the City of San Antonio Code of Ordinances, SAWS' Regulations for Water Service, or SAWS' Utility Service Regulations, pursuant to the terms of a contract between SAWS and an economic development customer, SAWS may agree to waive all or any part of any potable water or wastewater impact fees otherwise payable by an economic development customer to SAWS, provided that:

(1) For an existing customer, only impact fees that are attributable to the new or expanded facilities qualifying the existing customer as an economic development customer may be waived.

(2) For a new customer, only impact fees that are attributable to the new facilities qualifying the new customer as an economic development customer may be waived.

Notwithstanding any other provisions of the City of San Antonio Code of Ordinances, SAWS' Regulations for Water Service, or SAWS' Utility Service Regulations, SAWS may, pursuant to the terms of a contract between an economic development customer and SAWS, agree to waive all or any part of any permit, application fee, or meter charge otherwise payable by an economic development customer to SAWS, and agree to extend, at no or at a reduced cost to an economic development customer, all potable water and wastewater infrastructure from SAWS' existing potable water and sanitary sewer system to and/or into the property owned by an economic development customer on which new or expanded facilities are to be located, provided that:

(1) For an existing customer, SAWS may agree to extend potable water and wastewater infrastructure at no or at a reduced cost to an existing customer only to the new or expanded facilities qualifying the existing customer as an economic development customer.

(2) For a new customer, SAWS may agree to extend potable water and wastewater infrastructure at no or at a reduced cost to an economic development customer only to the new facilities qualifying the new customer as an economic development customer.

COMPLIANCE

The rates and waivers provided in this schedule are subject to the execution of a contact between

a customer and SAWS that requires a customer to obtain economic development customer status. The rates and waivers provided in this schedule will immediately terminate if a customer does not perform all obligations necessary to obtain economic development customer status within six (6) years from the date of the execution of a contract with SAWS, or if an economic development customer fails to maintain its status as an economic development customer. Should a person or entity no longer be an economic development customer, such person or entity will pay all rates, fees and costs payable by a General Water Service customer.
(Ord. No. 97264, § 2(Att. 2), 2-27-03)

SCHEDULE 1 PRETERMINATION ADMINISTRATIVE NOTICE AND HEARING PROCEDURES

1. First bill sent, indicating current charges.

2. Second bill sent, indicating previous balance, with additional paragraph: "Pay Total Amount Prior To Due Date To Avoid Notice of Pretermination Hearing, Service Charges and Additional Deposit."

3. Final Notice sent setting out instructions for obtaining a Pretermination Administrative Hearing before Customer Review Officer. Customer may request a hearing, if such request is made within 10 days from the date of mailing or by the date set out on the Final Notice, whichever is later. Customer Review Officer must be knowledgeable in customer's rights to due process with respect to utility termination. The Customer Review Officer must not have participated in the billing or collection process.

4. Upon receipt of the Final Notice, a customer may request a hearing in person, by telephone or by mail. The Customer Review Officer shall note the date and time of request, if the request is made by phone or in person, in the customer's file. If the request is by mail, the written request shall be placed in the customer's file.

    a. If the request is made in person, a System representative shall give the customer a Pretermination Hearing and Notice Procedure Form, setting out the date for hearing and have the customer receipt for it.

    b. If the request for hearing is by telephone, a System representative shall advise the customer of the time and date of the hearing and note the time and date of the conversation on the file copy. The System representative shall set the hearing date far enough in advance to allow follow-up notice by mail.

    c. If request for hearing is made by mail, a System representative shall follow procedures similar to item b, above.

5. Notice of Pretermination Hearing Date Sent (in English and Spanish). The System shall mail it or personally deliver it to the customer, whichever is necessary to give at least three days advance notice of the hearing, and include a Pretermination Hearing and Notice Procedure Form. The Hearing Form is a check-list and work sheet which outlines the purpose of the hearing and procedures. It shall contain blank spaces for the name of customer, persons present, etc., and have spaces for the decision of the Customer Review Officer, including reasons for the decision and the evidence relied upon. Samples of typical evidence would be as follows:

    a. The Meter Reader's data sheet for the period.

    b. The System's first, second and final statements.

    c. The memorandum of reports on checks for water leaks.

    d. Memorandum of meter test.

    e. Any statements made by the customer which show that the water was actually used such as, "I had a leaky faucet, I had a leaky toilet, I had a leak in my sprinkler system," or any other similar statement.

    f. Similar evidence and statements in cases where the Customer Review Officer finds that the cut-off is not justified. Such factual evidence would be memoranda that the meter check showed that it was faulty, memoranda that the customer was billed twice, substantial proof by the customer that he really was on vacation and memoranda that there were no leaks in his system on investigation.

6. Hearing is held. An interpreter shall be made available for a hearing, if necessary. If possible, a decision shall be made at the hearing, and a copy of the hearing form containing that decision shall be given to the customer with receipt acknowledged. If the decision is not made then, the customer shall be notified by mail. Service shall not be terminated for 96 hours from date of delivery in person or date of mailing to afford opportunity for the customer to pursue legal remedies.
7. Notice to Customer of Decision. Print this notice in English and Spanish and mail it to customer if decision is not delivered to customer at the hearing. The date of that mailing shall be noted in the file.
8. System personnel shall terminate service not earlier than 96 hours from date customer learns of decision.

(Ord. No. 80330, 6-16-94)

SCHEDULE 2 FLAT RATE SEWER PROGRAM PROCEDURE

1. *Scope.* The purpose of this program is to allow an alternate method of establishing a sewer charge in accordance with Chapter 34, Article III, Division 4, Section 34-226, of the San Antonio City Code and is intended for General Customers.

2. *General Requirements.* The Flat Rate Program is available upon request to any general user who uses water in their daily activities which is not discharged into the sewer system. The Program provides that a flat rate sewer account may be established for any general user upon determination by Customer Service that the costs to administer the account would not exceed the projected annual savings to the general user. The flat rate sewer account will be maintained until such time as Customer Service may determine that the costs to administer the account exceed the annual savings to the user.

The program depends on the cooperation of customers to keep the System informed of any changes, defects or required repairs. The System will generally allow a 30-day period for correction of any problem. However, it is the customer's responsibility to ensure that the meters are functioning properly and that all requirements in submitting reports are met.

The System reserves the right to conduct periodic "unannounced" site inspections.

The three (3) acceptable options for businesses wishing to choose an alternate method of establishing a sewer charge are:

a. installation of separate "internal" water meter(s) for the purpose of measuring water uses which is not discharged into the sewer system,

b. submission of an engineering report once every two (2) years, or as required by the System outlining water consumption and its uses,

c. installation of a wastewater metering device which will measure the amount of wastewater being discharged into the sewer system.

3. *Separate "Internal" Water Meter(s)—Specific Requirements.* Separate internal water meter(s) may be installed for the purpose of measuring water consumption due to the use of a well or to measure a reduction of sewer flow due to the use of water in a production process, cooling tower, sprinkler system, etc. The number of submeters installed will be approved according to the specific type of business.

a. *Meter Requirements.*

(1) *Meter Case.* The main case shall be solid with removable top or bottom design and shall be constructed so that the main case (including meter spuds) will withstand internal pressure and external stress to eliminate distortion, cracking and breaking, which will cause leakage, damage to other components, or interfere with the proper operation of the meter in general.

The serial number of the meter shall be imprinted on the outer case as well as on the register box cover.

(2) *Meter Registers.* The meter register shall be a "sealed register" type with straight reading indicator, a minimum of six numbered wheels (dials), and shall indicate reading in gallons or cubic feet.

As used in these specifications, the term "sealed register" shall mean a register that is tamper resistant, factory-sealed, non-shop-repairable, hermetically sealed against fogging, moisture and corrosion, and mechanically disconnected from the measuring components.

The lens shall be of high strength, heat tested glass to minimize breakage.

The register shall be secured to the meter case with a tamper-proof locking device provided and installed by the System.

b. *Submittal of Initial Application.* Prior to the establishment of a flat rate account,

an application must be submitted to Customer Service requesting preliminary approval to establish a flat rate account.

c. *Submittal of Monthly Readings.* The customer's monthly meter readings, read in conjunction with the water purveyor's monthly readings of the main water meter, shall be submitted within ten (10) days of the meter readings; customer shall submit only actual meter readings, and not conversions of readings to volume. Once the System has compiled six (6) consecutive months of acceptable meter readings, an average monthly usage will be determined. This average will be used to calculate the customer's sewer charge. The System will implement this new monthly average and adjust the previous six (6) months, which will result in a retroactive debit or credit to the customer's sewer bill. This same billing basis will be applied to the next six (6) months. This procedure of analyzing 6 months of meter reading data will continue until the System is advised of a change in the customer's operations that will affect the basis of calculating the customer's sewer charge.

In the event the monthly meter readings are not submitted in a timely manner as set out herein or an unacceptable meter reading is submitted, the customer will be granted 30 days to explain the reasons, submit corrected readings or make any repairs or replacements of the meter(s). Should the customer fail to respond within the 30 day period, the customer may be removed from the Flat Rate Program, and the System's regular sewer charge will apply thereafter.

4. *Engineering Reports—Specific Requirements.* When a flat rate basis is determined by a report submitted by a Registered Professional Engineer the recommendations of this report will be reviewed and evaluated. If the recommendations are accepted then an acceptance letter will be mailed to the customer. Adjustments will be made retroactive to the date that the engineering report is dated provided it is in this office in a timely manner. The engineering report should include the following information:

- The water purveyor account number(s) affected.
- Type of business.
- Number of employees.
- Number of operational days per month.
- Number of operational hours per day.
- Any pertinent data relating to the business.

A flow study should be conducted using one of the two available methods for measuring flows. These alternate methods are as follows:

a. If the intent of the engineering report is to obtain a credit for the amount of water used for irrigation, then all irrigation should cease for a period of 14 days while daily incoming meter readings are gathered. The readings should be averaged, then annualized and compared to the previous 12 months of water consumption to arrive at a recommended flat rate percentage.

b. If the intent of the engineering report is to receive credit for cooling tower, evaporative loss, or other non-sewer creating functions, a 14 day wastewater flow metering should be conducted to measure the amount of wastewater being discharged. This amount should be compiled on a daily basis over the 14 days, then annualized and compared to the previous 12 months of water consumption to arrive at a recommended flat rate percentage.

c. Assumptions for determining discharged flow for a cooling tower can be calculated by using cooling tower specifications. Also, process water can be calculated based on the number of products produced, etc. This information must be very detailed, annualized and compared to the actual water consumption for the preceding 12 months.

5. *Wastewater Metering—Specific Requirements.* A flat rate account may also be established through the use of a permanent wastewater metering device.

a. *Submittal of Initial Application.* Prior to the establishment of a flat rate account, an application must be submitted to Customer Service requesting preliminary approval to establish a flat rate account.

b. *Submittal of Monthly Readings.* The customer's monthly meter readings, read in conjunction with the water purveyor's monthly readings of the main water meter shall be submitted within ten (10) days of the meter readings; customer shall submit only actual meter readings, and not conversions of readings to volume. Once the System has compiled six (6) consecutive months of acceptable meter readings, an average monthly usage will be determined. This average will be used to calculate the customer's sewer charge. The System will implement this new monthly average and adjust the previous six (6) months, which will result in a retroactive debit or credit to the customer's sewer bill. This same billing basis will be applied to the next six (6) months. This procedure of analyzing six (6) months of meter reading data will continue until the System is advised of a change in the customer's operations that will affect the basis of calculating the customer's sewer charge.

In the event the monthly meter readings are not submitted in a timely manner as set out herein or an unacceptable meter reading is submitted, the customer will be granted 30 days to explain the reasons, submit corrected readings or make any repairs or replacements of the meter(s). Should the customer fail to respond within the 30 day period, the customer may be removed from the Flat Rate Program, and the System's regular sewer charge will apply thereafter.

6. *Private Water Well(s)—Specific Requirements.* A flat rate sewer billing account, established for the purpose of setting the amount of the monthly sewer billing based on the amount of the well(s) water consumption, shall require the following:

a. *Submittal of Initial Application.* Prior to the establishment of the account, an application must be submitted to Customer Service requesting preliminary approval to base the amount of the monthly sewer charge on the monthly meter consumption of the well(s).

b. *Submittal of Monthly Readings.* The customer's monthly meter readings, read in conjunction with the water purveyor's monthly readings of the main water meter shall be submitted within ten (10) days of the meter readings; customer shall submit only actual meter readings and not conversions of readings to volume. Once the System has compiled six (6) consecutive months of acceptable meter readings, an average monthly usage will be determined. This average will be used to calculate the sewer charge. The System will implement this new monthly average and adjust the previous six (6) months, which will result in a retroactive debit or credit to the sewer bill. This same billing basis will be applied to the next six (6) months. This procedure of analyzing 6 months of meter reading data will continue until the System is advised of a change in the operations that will affect the basis of calculating the sewer charge.

In the event the monthly meter readings are not submitted in a timely manner as set out herein or an unacceptable meter reading is submitted, the customer will be granted 30 days to explain the reasons, submit corrected readings or make any repairs or replacements of the meter(s). Should the customer fail to respond within the 30 day period, the customer may be removed from the Flat Rate Program, and the System's regular sewer charge will apply thereafter.

(Ord. No. 80330, 6-16-94)

SCHEDULE 3 CUSTOMER SERVICE APPEALS COMMITTEE

A. *Scope.* The policy establishes the procedures to be followed by the San Antonio Water System Customer Service Appeals Committee in the processing of appeals from a decision to terminate service rendered by the Customer Review Officer, as well as for customer disputes concerning high bills, adjustments due to leakage or other matters covered in Sections 34-4.01 and 34-4.03 of the City Code.

The committee will consist of three (3) members appointed by the Board for a two (2) year term, with members able to be removed by the Board. These members shall be customers of SAWS and shall not include any SAWS employees.

The committee is responsible for providing and scheduling a hearing whereby both Customer Service personnel and the customer can discuss the merits of the action under appeal. Hearings will be scheduled within fifteen (15) working days of the receipt of the appeal request. Two (2) committee members shall constitute a quorum for the purpose of conducting any hearing.

Meetings will be scheduled and conducted according to the Open Meetings Act. The conduct and testimony of the hearings shall be recorded and kept with the certified agenda and minutes of the committee meetings as a permanent record.

B. *Appeals.* All appeals must be requested in writing by the customer. The following information, at a minimum, must be included in the appeal:

1. Name of customer;
2. Service address and/or account number;
3. Name of representative;
4. Customer's home and work telephone numbers;
5. Nature of appeal and resolution desired; and
6. Customer's signature.

If an appeal is from a decision to terminate rendered by the Customer Review Officer, the customer shall have ten (10) working days from receipt of notice of such decision to request an appeal.

C. *Representation.* Customers may represent themselves or may be represented by an attorney or other person of their choosing.

D. *Hearings.* This committee shall conduct hearings to consider all information necessary to assist them in deciding on a fair and equitable recommendation to the president/CEO.

E. *Postponements.* Postponements, if needed, must be requested in writing and received by the customer service director two (2) full working days prior to the scheduled hearing. The first request for a postponement shall usually be approved. A subsequent request for a postponement shall require justification and is subject to being denied. Postponements must be rescheduled no later than five (5) working days from the previously scheduled hearing.

F. *Failure to Appear.* Failure to appear at a scheduled hearing shall subject a customer/representative to forfeit the right to such hearing and the customer/representative shall be required to make an original application in order to be heard. A customer/representative shall be allowed to make only two original applications for appeal on the same subject during any twelve (12) month period.

G. *Recommendation to the president/CEO.* At the conclusion of each hearing, the Customer Service Appeals Committee shall announce its recommendation and the reasons for said recommendation to all parties. The secretary of the committee shall transcribe the recommendation and all justification to be forwarded to the president/CEO. The decision of the president/CEO will be final.
(Ord. No. 80330, 6-16-94)

SCHEDULE "A"
CHILLED WATER SERVICE RATE SCHEDULE FOR DOWNTOWN AREA
SAN ANTONIO WATER SYSTEM
San Antonio, Texas
Effective January 1, 2023

Billings for chilled water service shall be produced on a monthly basis and shall consist of both a capacity charge and a commodity charge as follows.

CAPACITY CHARGE

The capacity charge for 2023 shall be $22.67 per ton hour of demand. For each year thereafter, effective on January 1 of each year from 2024 through 2027, respectively, the maximum allowable capacity charge amount per ton hour to be assessed shall be in accordance with the table below.

As of January 1 of each of the following years:	*Maximum Allowable Capacity Charge per ton hour to be assessed:*	*Maximum Allowable Capacity Charge Annual Increase Percentage*
2024	$25.39	12.0%
2025	$27.93	10.0%
2026	$30.16	8.0%
2027	$32.57	8.0%

The demand shall be the largest number of tons of cooling demanded in any of the twelve months ending with the month next preceding the month in which the bill is dated or the connected load specified in the contract with the customer, whichever is the greater of the two. The demand for the Alamodome, which is an event driven facility with occasional peaks in demand during off peak hours and long periods of low demand, shall be defined in a service agreement between the City of San Antonio and the San Antonio Water System to account for its unique and unpredictable demands on the chilled water system.

COMMODITY CHARGE

A commodity charge will be applied to the monthly metered consumption. The commodity charge will provide for the pass-through of the utility costs, including water and energy costs. No commodity charge shall be made if the metered use of the customer is zero (0) during the month.

The commodity charge will be computed as follows; all utility costs of the previous month will be recovered through an allocation to the consumption of the billing period. In addition, the payment to the city's general fund will be added where applicable.

Utility costs + Payment to general fund = Commodity charge consumption

CAPITAL COST RECOVERY FEE

In addition to any rates or fees adopted by the City Council that are related to the provision of chilled water services within the Downtown system, the SAWS Board of Trustees shall have the discretion to add a fee for the recovery of the capital costs related to the construction of main extensions and installation of heat exchangers to serve new customers. The addition of this Capital Cost Recovery Fee shall be negotiated and agreed to by SAWS and the new customer based on the total cost, including interest, to design, construct and install the capital improvements that are necessary to provide chilled water services to the new customer. An amortization schedule to recover these capital improvement costs shall have a maximum term of twenty (20) years. This Capital Cost Recovery Fee shall not include any infrastructure, fixtures, chattel or appurtenances that will be owned, operated or maintained by the new customer or the owner of the subject property. The SAWS Board of Trustees shall have the discretion to decide whether it will participate in the construction of a main extension and installation of heat exchangers on a case-by-case basis.

DELTA T ADJUSTMENT CHARGE

Delta T is defined as the difference in temperature between a customer's point of delivery and point of return and is an overall measure of system efficiency. This Delta T adjustment charge is applied to the Commodity Charge and represents the added or avoided energy costs. It provides a fee for a customer with

low/poor Delta T or an incentive to those with high/good Delta T. A customer Delta T of 12 to 15 degrees will result in no Delta T adjustment. The Delta T adjustment to the Commodity Charge shall be calculated as the Commodity Charge multiplied by 6 percent for each degree (rounded to the nearest degree), in Fahrenheit, when the average return temperature is something other than 12 to 15 degrees. The Delta T adjustment will apply to the Commodity Charge for the months of April, May, June, July, August and September only. No Delta T adjustment shall be assessed until the later of January 1, 2024 or 12 months of establishing service, to allow a customer to optimize their water side system improvements.

CAPACITY CHARGE RAMP UP SCHEDULE

Beginning on the Operation Date (which may occur during construction), a new customer and SAWS may agree to the following schedule for phasing-in the Capacity Charge up to the Contract Capacity. Should the initial date the customer opens their building to the public (Opening Date) occur prior to the final month of the phase-in period below, the phase-in of the Capacity Charge shall no longer apply and billing for the Capacity Charge will begin in accordance with 100% of contracted capacity. Schedule included below:

- Month 1 (Operation Date): 10% of the Contract Capacity (or actual usage if more than 10%).
- Month 2: 20% of the Contract Capacity (or actual usage if more than 20%).
- Month 3: 30% of the Contract Capacity (or actual usage if more than 30%).
- Month 4: 40% of the Contract Capacity (or actual usage if more than 40%).
- Month 5: 50% of the Contract Capacity (or actual usage if more than 50%).
- Month 6: 60% of the Contract Capacity (or actual usage if more than 60%).
- Month 7: 70% of the Contract Capacity (or actual usage if more than 70%).
- Month 8: 80% of the Contract Capacity (or actual usage if more than 80%).
- Month 9: 90% of the Contract Capacity (or actual usage if more than 90%).
- Month 10: 100% of the Contract Capacity.

ADJUSTMENT FOR PAYMENT TO THE CITY GENERAL FUND

The City of San Antonio may change the percentage for payment to the city general fund pursuant to City Ordinance No. 75686, which is currently established at 4.0% of gross revenues. At that time, the commodity charge will be revised to include the new percentage of payment to the City of San Antonio.

DEFINITIONS

A ton is defined as 12,000 Btu's per hour.

An hour is defined as 60 consecutive minutes.

Gross Revenue is defined in City Ordinance No. 75686.

(Ord. No. 96794, § 1(Att. 1), 11-21-02; Ord. No. 2014-04-17-0262, 4-17-14; Ord. No. 2021-12-02-0910, § 1(Att. A), 12-2-21; Ord. No. 2022-11-10-0869, §§ 1—3(Att. I), 11-10-22)

Editor's note—Ord. No. 2022-11-10-0869, §§ 1—3(Att. I), adopted Nov. 10, 2022, renumbered Schedule A as Schedule B, and Schedule B as Schedule A, as set out therein. The former Schedule A pertained to chilled water service rate schedule for Port San Antonio. The historical notation has been retained with the amended provisions for reference purposes.

SCHEDULE "B"
RESERVED

Editor's note—Ord. No. 2021-12-02-0910, § 2(Att. B), adopted Dec. 2, 2021, repealed Schedule B, which pertained to Steam Service Rate Schedule for KellyUSA and derived from Ord. No. 96793, § 1(Att. 1), adopted Nov. 21, 2002; Ord. No. 100588, § 1(Att. I), adopted Mar. 24, 2005.

SCHEDULE "B"
CHILLED WATER SERVICE RATE SCHEDULE FOR PORT SAN ANTONIO
SAN ANTONIO WATER SYSTEM
San Antonio, Texas
Effective January 1, 2023

Billings for chilled water service shall be produced on a monthly basis and shall consist of both a capacity charge and a commodity charge as follows.

CAPACITY CHARGE

The capacity charge for 2023 shall be $25.28 per ton hour of demand. For each year thereafter, effective on January 1 of each year from 2024 through 2027, respectively, the maximum allowable capacity charge amount per ton hour to be assessed shall be in accordance with the table below.

As of January 1 of each of the following years:	*Maximum Allowable Capacity Charge per ton hour to be assessed:*	*Maximum Allowable Capacity Charge Annual Increase Percentage*
2024	$28.31	12.0%
2025	$31.14	10.0%
2026	$33.63	8.0%
2027	$36.32	8.0%

The demand shall be the largest number of tons of cooling demanded in any of the twelve months ending with the month next preceding the month in which the bill is dated or the demand amount specified in the contract or agreement with the customer, whichever is the greater of the two.

COMMODITY CHARGE

A commodity charge will be applied to the monthly metered consumption. The commodity charge will provide for the pass-through of the Utility Costs, including water and energy costs. No commodity charge shall be made if the metered use of the customer is zero (0) during the month.

The commodity charge will be computed as follows: all utility costs of the previous month will be recovered through an allocation to the consumption of the billing period. In addition, the Payment to the City's General Fund will be added where applicable.

Utility Costs + Payment to General Fund = Commodity Charge Consumption

CAPITAL COST RECOVERY FEE

In addition to any rates or fees adopted by the City Council that are related to the provision of chilled water services within the Port San Antonio system, the SAWS Board of Trustees shall have the discretion to add a fee for the recovery of the capital costs related to the construction of main extensions and installation of heat exchangers to serve new customers. The addition of this Capital Cost Recovery Fee shall be negotiated and agreed to by SAWS and the new customer based on the total cost, including interest, to design, construct and install the capital improvements that are necessary to provide chilled water services to the new customer. An amortization schedule to recover these capital improvement costs shall have a maximum term of twenty (20) years. This Capital Cost Recovery Fee shall not include any infrastructure, fixtures, chattel or appurtenances that will be owned, operated or maintained by the new customer or the owner of the subject property. The SAWS Board of Trustees shall have the discretion to decide whether it will participate in the construction of a main extension and installation of heat exchangers on a case-by-case basis.

DELTA T ADJUSTMENT CHARGE

Delta T is defined as the difference in temperature between a customer's point of delivery and point of return and is an overall measure of system efficiency. This Delta T adjustment charge is applied to the Commodity Charge and represents the added or avoided energy costs. It provides a fee for a customer with low/poor Delta T or an incentive to those with high/good Delta T. A customer Delta T of 12 to 15 degrees will result in no Delta T adjustment. The Delta T adjustment to the Commodity Charge shall be calculated as the Commodity Charge multiplied by 6 percent for each degree (rounded to the nearest whole degree), in Fahrenheit,

when the average return temperature is something other than 12 to 15 degrees. The Delta T adjustment will apply to the Commodity Charge for the months of April, May, June, July, August and September only. No Delta T adjustment shall be assessed until the later of January 1, 2024 or 12 months of establishing service to allow a customer to optimize their water side system improvements.

CAPACITY CHARGE RAMP UP SCHEDULE

Beginning on the Operation Date (which may occur during construction), customer and SAWS may agree to the following schedule for phasing-in the Capacity Charge up to the Contract Capacity. Should the initial date the customer opens their building to the public (Opening Date) occur prior to the final month of the phase-in period below, the phase-in of the Capacity Charge shall no longer apply and billing for the Capacity Charge will begin in accordance with 100% of contracted capacity. Schedule included below:

- Month 1 (Operation Date): 10% of the Contract Capacity (or actual usage if more than 10%).
- Month 2: 20% of the Contract Capacity (or actual usage if more than 20%).
- Month 3: 30% of the Contract Capacity (or actual usage if more than 30%).
- Month 4: 40% of the Contract Capacity (or actual usage if more than 40%).
- Month 5: 50% of the Contract Capacity (or actual usage if more than 50%).
- Month 6: 60% of the Contract Capacity (or actual usage if more than 60%).
- Month 7: 70% of the Contract Capacity (or actual usage if more than 70%).
- Month 8: 80% of the Contract Capacity (or actual usage if more than 80%).
- Month 9: 90% of the Contract Capacity (or actual usage if more than 90%).
- Month 10: 100% of the Contract Capacity.

ADJUSTMENT FOR PAYMENT TO THE CITY GENERAL FUND

The City of San Antonio may change the Percentage for payment to the City General Fund pursuant to City Ordinance No. 75686, which is currently established at 4.0% of Gross Revenues. At that time, the commodity charge will be revised to include the new Percentage of Payment to the City of San Antonio.

DEFINITIONS

A ton is defined as 12,000 Btu's per hour.

An hour is defined as 60 consecutive minutes.

Gross revenue is defined in City Ordinance No. 75686.

(Ord. No. 2021-12-02-0910, § 1(Att. A), 12-2-21; Ord. No. 2022-11-10-0869, §§ 1—3(Att. I), 11-10-22)

Editor's note—Ord. No. 2022-11-10-0869, §§ 1—3(Att. I), adopted Nov. 10, 2022, renumbered Schedule A as Schedule B, and Schedule B as Schedule A, as set out therein. The former Schedule B pertained to chilled water service rate schedule for Downtown Area. The historical notation has been retained with the amended provisions for reference purposes.

SCHEDULE "B"
RESERVED

Editor's note—Ord. No. 2021-12-02-0910, § 2(Att. B), adopted Dec. 2, 2021, repealed Schedule B, which pertained to Steam Service Rate Schedule for Downtown Area and derived from Ord. No. 96794, § 1(Att. 1), adopted Nov. 21, 2002.

SCHEDULE A
RESIDENTIAL CLASS WATER AND SEWER RATE SCHEDULES
SAN ANTONIO WATER SYSTEM

San Antonio, Texas

Effective for Consumption on or about January 1, 2023

Water service charges for all metered residential water connections INSIDE THE CITY LIMITS of San Antonio shall be the sum of the appropriate Water Service Availability Charge and the application of the Water Monthly Volume Charges to metered water usage in every instance of service for each month or fraction thereof and are billed according to the schedule below. Sewer service charges for all metered residential water connections INSIDE THE CITY LIMITS shall be the sum of the appropriate Sewer Service Availability Charge and the application of the Sewer Monthly Volume Charges to average monthly water usage for 90 days during three consecutive billing periods beginning after November 15 and ending on or about March 15 of each year and are billed according to the schedule below. Customers who do not have a record of winter water usage or an interim average will be billed for sewer service assuming 5,985 gallons monthly sewer usage. Customers with no San Antonio Water System water meter will be charged the Sewer Service Availability Charge based on a 5/8" meter size.

MONTHLY SERVICE AVAILABILITY CHARGES

Meter Size	*Water Service Availability Charge*[*]	*Sewer Service Availability Charge*
5/8"	$9.00	$10.00
3/4"	$11.93	$13.89
1"	$17.79	$21.66
1½"	$32.44	$41.08
2"	$50.02	$64.39
3"	$96.90	$126.55
4"	$149.64	$196.48
6"	$296.14	$390.73
8"	$471.94	$623.83
10"	$589.14	$779.23
12"	$823.54	$1,090.03

[*]Water Service Availability Charge shall be reduced by $2.00 if usage does not exceed 4,000 gallons.

MONTHLY VOLUME CHARGES

Usage Gallon-Block Threshold	*Water Rate per 1,000 Gallons*	*Usage Gallon-Block Threshold*	*Sewer Rate per 1,000 Gallons*
4,000 Gallons	$0.9070	4,000 Gallons	$2.539
7,000 Gallons	$1.6780	Over 4,000 Gallons	$4.444
12,000 Gallons	$3.0390		
20,000 Gallons	$3.9910		
Over 20,000 Gallons	$5.6690		
Uplift Assistance Program Fee rate per 1,000 Gallons—Water	$0.1590	Uplift Assistance Program Fee rate per 1,000 Gallons—Sewer	$0.1610

Water service charges for all metered residential water connections OUTSIDE THE CITY LIMITS of San Antonio shall be the sum of the appropriate Water Service Availability Charge and the application of the Water Monthly Volume Charges to metered water usage in every instance of service for each month or fraction thereof and are billed according to the schedule below. Sewer service charges for all metered residential water connections OUTSIDE THE CITY LIMITS shall be the sum of the appropriate Sewer Service Availability Charge and the application of the Sewer Monthly Volume Charges to average monthly water usage for 90 days during three consecutive billing periods beginning after November 15 and ending on or about March 15 of each year and are billed according to the schedule below. Customers who do not have a record of winter water usage or an interim average will be billed for sewer service assuming 5,985 gallons monthly sewer usage. Customers with no San Antonio Water System water meter will be charged the Sewer Service Availability Charge based on a 5/8" meter size.

MONTHLY SERVICE AVAILABILITY CHARGES

Meter Size	*Water Service Availability Charge*[*]	*Sewer Service Availability Charge*
5/8"	$11.70	$12.00
3/4"	$15.51	$16.67
1"	$23.13	$26.00
1½"	$42.18	$49.30
2"	$65.03	$77.27
3"	$125.97	$151.86
4"	$194.54	$235.78
6"	$384.99	$468.88
8"	$613.53	$748.60

Meter Size	*Water Service Availability Charge*[*]	*Sewer Service Availability Charge*
10"	$765.89	$935.08
12"	$,070.61	$1,308.04

[*]Water Service Availability Charge shall be reduced by $2.60 if usage does not exceed 4,000 gallons.

MONTHLY VOLUME CHARGES

Usage Gallon-Block Threshold	*Water Rate per 1,000 Gallons*	*Usage Gallon-Block Threshold*	*Sewer Rate per 1,000 Gallons*
4,000 Gallons	$1.1800	4,000 Gallons	$3.047
7,000 Gallons	$2.1820	Over 4,000 Gallons	$5.333
12,000 Gallons	$3.9510		
20,000 Gallons	$5.1890		
Over 20,000 Gallons	$7.3700		
Uplift Assistance Program Fee rate per 1,000 Gallons—Water	$0.1590	Uplift Assistance Program Fee rate per 1,000 Gallons—Sewer	$0.1610

(Ord. No. 2017-12-07-0928, § 1(Att. I), 12-7-17; Ord. No. 2022-11-10-0867, § 1(Att. I), 11-10-22)

SCHEDULE A
RESIDENTIAL CLASS WATER AND SEWER RATE SCHEDULES
SAN ANTONIO WATER SYSTEM

San Antonio, Texas

Effective for Consumption on or about January 1, 2024

Water service charges for all metered residential water connections INSIDE THE CITY LIMITS of San Antonio shall be the sum of the appropriate Water Service Availability Charge and the application of the Water Monthly Volume Charges to metered water usage in every instance of service for each month or fraction thereof and are billed according to the schedule below. Sewer service charges for all metered residential water connections INSIDE THE CITY LIMITS shall be the sum of the appropriate Sewer Service Availability Charge and the application of the Sewer Monthly Volume Charges to average monthly water usage for 90 days during three consecutive billing periods beginning after November 15 and ending on or about March 15 of each year and are billed according to the schedule below. Customers who do not have a record of winter water usage or an interim average will be billed for sewer service assuming 5,985 gallons monthly sewer usage. Customers with no San Antonio Water System water meter will be charged the Sewer Service Availability Charge based on a 5/8" meter size.

MONTHLY SERVICE AVAILABILITY CHARGES

Meter Size	*Water Service Availability Charge**	*Sewer Service Availability Charge*
5/8"	$9.00	$10.00
3/4"	$11.93	$13.89
1"	$17.79	$21.66
1½"	$32.44	$41.08
2"	$50.02	$64.39
3"	$96.90	$126.55
4"	$149.64	$196.48
6"	$296.14	$390.73
8"	$471.94	$623.83
10"	$589.14	$779.23
12"	$823.54	$1,090.03

*Water Service Availability Charge shall be increased by $2.00 if usage exceeds 4,000 gallons.

MONTHLY VOLUME CHARGES

Usage Gallon-Block Threshold	*Water Rate per 1,000 Gallons*	*Usage Gallon-Block Threshold*	*Sewer Rate per 1,000 Gallons*
4,000 Gallons	$0.9070	4,000 Gallons	$2.539
7,000 Gallons	$1.6780	Over 4,000 Gallons	$4.444
12,000 Gallons	$3.0390		
20,000 Gallons	$3.9910		
Over 20,000 Gallons	$5.6690		
Uplift Assistance Program Fee rate per 1,000 Gallons—Water	$0.130	Uplift Assistance Program Fee rate per 1,000 Gallons—Sewer	$0.150

Water service charges for all metered residential water connections OUTSIDE THE CITY LIMITS of San Antonio shall be the sum of the appropriate Water Service Availability Charge and the application of the Water Monthly Volume Charges to metered water usage in every instance of service for each month or fraction thereof and are billed according to the schedule below. Sewer service charges for all metered residential water connections OUTSIDE THE CITY LIMITS shall be the sum of the appropriate Sewer Service Availability Charge and the application of the Sewer Monthly Volume Charges to average monthly water usage for 90 days during three consecutive billing periods beginning after November 15 and ending on or about March 15 of each year and are billed according to the schedule below. Customers who do not have a record of winter water usage or an interim average will be billed for sewer service assuming 5,985 gallons monthly sewer usage. Customers with no San Antonio Water System water meter will be charged the Sewer Service Availability Charge based on a 5/8" meter size.

MONTHLY SERVICE AVAILABILITY CHARGES

Meter Size	*Water Service Availability Charge**	*Sewer Service Availability Charge*
5/8"	$11.70	$12.00
3/4"	$15.51	$16.67
1"	$23.13	$26.00
1½"	$42.18	$49.30
2"	$65.03	$77.27
3"	$125.97	$151.86
4"	$194.54	$235.78
6"	$384.99	$468.88
8"	$613.53	$748.60

Meter Size	*Water Service Availability Charge*[*]	*Sewer Service Availability Charge*
10"	$765.89	$935.08
12"	$1,070.61	$1,308.04

[*]Water Service Availability Charge shall be increased by $2.60 if usage exceeds 4,000 gallons.

MONTHLY VOLUME CHARGES

Usage Gallon-Block Threshold	*Water Rate per 1,000 Gallons*	*Usage Gallon-Block Threshold*	*Sewer Rate per 1,000 Gallons*
4,000 Gallons	$1.1800	4,000 Gallons	$3.047
7,000 Gallons	$2.1820	Over 4,000 Gallons	$5.333
12,000 Gallons	$3.9510		
20,000 Gallons	$5.1890		
Over 20,000 Gallons	$7.3700		
Uplift Assistance Program Fee rate per 1,000 Gallons—Water	$0.130	Uplift Assistance Program Fee rate per 1,000 Gallons—Sewer	$0.150

(Res. No. 2023-198, 10-3-23)

SCHEDULE B
GENERAL CLASS WATER AND SEWER RATE SCHEDULES
SAN ANTONIO WATER SYSTEM

San Antonio, Texas

Effective for Consumption on or about January 1, 2023

Water service charges for all metered General Class water connections INSIDE THE CITY LIMITS of San Antonio shall be the sum of the appropriate Water Service Availability Charge and the application of the Water Monthly Volume Charges to metered water usage in every instance of service for each month or fraction thereof and are billed according to the schedule below. For a new general class water customer who does not have a record of prior-year consumption history in order to establish a base use, a default base amount shall be assigned using the average monthly consumption for the prior calendar year for the average apartment, general or industrial account (as applicable) having the same meter size and sub-classification as the customer. A table of average monthly consumptions by general class sub-classification and meter size shall be updated annually by SAWS with actual prior calendar year consumption history information to serve as the source of default base amount assignments. Sewer service charges for all metered General Class water connections INSIDE THE CITY LIMITS shall be the sum of the appropriate Sewer Service Availability Charge and the application of the Sewer Monthly Volume Charges to metered water usage and are billed according to the schedule below. Customers with no San Antonio Water System water meter will be charged the Sewer Service Availability Charge based on a 2" meter size.

MONTHLY SERVICE AVAILABILITY CHARGES

Meter Size	*Water Service Availability Charge*	*Sewer Service Availability Charge*
⅝"	$12.70	$10.00
¾"	$16.48	$13.89
1"	$24.04	$21.66
1½"	$42.94	$41.08
2"	$65.62	$64.39
3"	$126.10	$126.55
4"	$194.14	$196.48
6"	$383.14	$390.73
8"	$606.94	$623.83
10"	$761.14	$779.23
12"	$1,063.54	$1,090.03

MONTHLY VOLUME CHARGES

Usage Gallon-Block Threshold	*Water Rate per 1,000 Gallons*	*Usage Gallon-Block Threshold*	*Sewer Rate per 1,000 Gallons*
Base*	$1.9580	All Usage	$4.3680
>l00—125% of Base	$2.2520		
>125—175% of Base	$2.9370		
>175% of Base	$3.4270		

*The Base Use is defined as 100% of the Annual Average Consumption

Uplift Assistance Program Fee rate per 1,000 Gallons—Water	$0.1590	Uplift Assistance Program Fee per 1,000 Gallons—Sewer	$0.1610

Water service charges for all metered General Class water connections OUTSIDE THE CITY LIMITS of San Antonio shall be the sum of the appropriate Water Service Availability Charge and the application of the Water Monthly Volume Charges to metered water usage in every instance of service for each month or fraction thereof and are billed according to the schedule below. For a new general class water customer who does not have a record of prior-year consumption history in order to establish a base use, a default base amount shall be assigned using the average monthly consumption for the prior calendar year for the average apartment, general or industrial account (as applicable) having the same meter size and sub-classification as the customer. A table of average monthly consumptions by general class sub-classification and meter size shall be updated annually by SAWS with actual prior calendar year consumption history information to serve as the source of default base amount assignments. Sewer service charges for all metered General Class water connections OUTSIDE THE CITY LIMITS shall be the sum of the appropriate Sewer Service Availability Charge and the application of the Sewer Monthly Volume Charges to metered water usage and are billed according to the schedule below. Custom-

ers with no San Antonio Water System water meter will be charged the Sewer Service Availability Charge based on a 2" meter size.

MONTHLY SERVICE AVAILABILITY CHARGES

Meter Size	*Water Service Availability Charge*	*Sewer Service Availability Charge*
5/8"	$16.00	$12.00
¾"	$20.66	$16.67
1"	$29.98	$26.00
1½"	$53.28	$49.30
2"	$81.23	$77.27
3"	$155.77	$151.86
4"	$239.64	$235.78
6"	$472.59	$468.88
8"	$752.13	$748.60
10"	$938.49	$935.08
12"	$1,311.21	$1.308.04

MONTHLY VOLUME CHARGES

Usage Gallon-Block Threshold	*Water Rate per 1,000 Gallons*	*Usage Gallon-Block Threshold*	*Sewer Rate per 1,000 Gallons*
Base*	$2.5460	All Usage	$5.2420
>l00—125% of Base	$2.9280		
>125—175% of Base	$3.8190		
>175% of Base	$4.4560		

*The Base Use is defined as 100% of the Annual Average Consumption

Uplift Assistance Program Fee rate per 1,000 Gallons—Water	$0.1590	Uplift Assistance Program Fee per 1,000 Gallons—Sewer	$0.1610

(Ord. No. 2017-12-07-0928, § 1(Att. I), 12-7-17; Ord. No. 2022-11-10-0867, § 1(Att. I), 11-10-22)

SCHEDULE B
GENERAL CLASS WATER AND SEWER RATE SCHEDULES
SAN ANTONIO WATER SYSTEM

San Antonio, Texas

Effective for Consumption on or about January 1, 2024

Water service charges for all metered General Class water connections INSIDE THE CITY LIMITS of San Antonio shall be the sum of the appropriate Water Service Availability Charge and the application of the Water Monthly Volume Charges to metered water usage in every instance of service for each month or fraction thereof and are billed according to the schedule below. For a new general class water customer who does not have a record of prior-year consumption history in order to establish a base use, a default base amount shall be assigned using the average monthly consumption for the prior calendar year for the average apartment, general or industrial account (as applicable) having the same meter size and sub-classification as the customer. A table of average monthly consumptions by general class sub-classification and meter size shall be updated annually by SAWS with actual prior calendar year consumption history information to serve as the source of default base amount assignments. Sewer service charges for all metered General Class water connections INSIDE THE CITY LIMITS shall be the sum of the appropriate Sewer Service Availability Charge and the application of the Sewer Monthly Volume Charges to metered water usage and are billed according to the schedule below. Customers with no San Antonio Water System water meter will be charged the Sewer Service Availability Charge based on a 2" meter size.

MONTHLY SERVICE AVAILABILITY CHARGES

Meter Size	*Water Service Availability Charge*	*Sewer Service Availability Charge*
⅝"	$12.70	$10.00
¾"	$16.48	$13.89
1"	$24.04	$21.66
1½"	$42.94	$41.08
2"	$65.62	$64.39
3"	$126.10	$126.55
4"	$194.14	$196.48
6"	$383.14	$390.73
8"	$609.94	$623.83
10"	$761.14	$779.23
12"	$1,063.54	$1,090.03

MONTHLY VOLUME CHARGES

Usage Gallon-Block Threshold	*Water Rate per 1,000 Gallons*	*Usage Gallon-Block Threshold*	*Sewer Rate per 1,000 Gallons*
Base*	$1.9580	All Usage	$4.3680
>100—125% of Base	$2.2520		
>125—175% of Base	$2.9370		
>175% of Base	$3.4270		

*The Base Use is defined as 100% of the Annual Average Consumption

Uplift Assistance Program Fee rate per 1,000 Gallons—Water	$0.130	Uplift Assistance Program Fee per 1,000 Gallons—Sewer	$0.150

Water service charges for all metered General Class water connections OUTSIDE THE CITY LIMITS of San Antonio shall be the sum of the appropriate Water Service Availability Charge and the application of the Water Monthly Volume Charges to metered water usage in every instance of service for each month or fraction thereof and are billed according to the schedule below. For a new general class water customer who does not have a record of prior-year consumption history in order to establish a base use, a default base amount shall be assigned using the average monthly consumption for the prior calendar year for the average apartment, general or industrial account (as applicable) having the same meter size and sub-classification as the customer. A table of average monthly consumptions by general class sub-classification and meter size shall be updated annually by SAWS with actual prior calendar year consumption history information to serve as the source of default base amount assignments. Sewer service charges for all metered General Class water connections OUTSIDE THE CITY LIMITS shall be the sum of the appropriate Sewer Service Availability Charge and the application of the Sewer Monthly Volume Charges to metered water usage and are billed according to the schedule below. Custom-

ers with no San Antonio Water System water meter will be charged the Sewer Service Availability Charge based on a 2" meter size.

MONTHLY SERVICE AVAILABILITY CHARGES

Meter Size	*Water Service Availability Charge*	*Sewer Service Availability Charge*
5/8"	$16.00	$12.00
¾"	$20.66	$16.67
1"	$29.98	$26.00
1½"	$53.28	$49.30
2"	$81.23	$77.27
3"	$155.77	$151.86
4"	$239.64	$235.78
6"	$472.59	$468.88
8"	$752.13	$748.60
10"	$938.49	$935.08
12"	$1,311.21	$1.308.04

MONTHLY VOLUME CHARGES

Usage Gallon-Block Threshold	*Water Rate per 1,000 Gallons*	*Usage Gallon-Block Threshold*	*Sewer Rate per 1,000 Gallons*
Base*	$2.5460	All Usage	$5.2420
>l00—125% of Base	$2.9280		
>125—175% of Base	$3.8190		
>175% of Base	$4.4560		

*The Base Use is defined as 100% of the Annual Average Consumption.

Uplift Assistance Program Fee rate per 1,000 Gallons—Water	$0.130	Uplift Assistance Program Fee per 1,000 Gallons—Sewer	$0.150

(Res. No. 2023-198, 10-3-23)

SCHEDULE C
WHOLESALE CLASS WATER AND SEWER RATE SCHEDULES
SAN ANTONIO WATER SYSTEM

San Antonio, Texas

Effective for Consumption on or about January 1, 2023

Water service charges for all metered wholesale water connections shall be the sum of the appropriate Water Service Availability Charge and the application of the Water Monthly Volume Charges to metered water usage in every instance of service for each month or fraction thereof and are billed according to the schedule below. Sewer service charges for all metered wholesale water connections shall be the sum of the appropriate Sewer Service Availability Charge and the application of the Sewer Monthly Volume Charges to metered water usage and are billed according to the schedule below.

MONTHLY SERVICE AVAILABILITY CHARGES

Meter Size†	*Water Service Availability Charge*	*Sewer Service Availability Charge*
6"	$298.14	$340.07
8"	$473.94	$340.07
10"	$591.14	$340.07
12"	$825.54	$340.07

† Wholesale water service will not be provided through a meter smaller than 6" in order to comply with fire-flow requirements and the "Criteria for Water Supply and Distribution in the City of San Antonio and its Extraterritorial Jurisdiction."

MONTHLY VOLUME CHARGES

WATER		*SEWER*	
Usage Gallon—Block Threshold	*Rate Per 1,000 Gallons*	*Usage Gallon—Block Threshold*	*Rate Per 1,000 Gallons*
Base*	$2.7230	All Usage	$4.2560
Over Base	$5.4460		

*The Base Use is defined as 100% of the Annual Average Consumption or as agreed to by the wholesale customer and approved by the SAWS Board of Trustees.

(Ord. No. 2017-12-07-0928, § 1(Att. I), 12-7-17; Ord. No. 2022-11-10-0867, § 1(Att. I), 11-10-22)

SCHEDULE D
IRRIGATION CLASS WATER AND SEWER RATE SCHEDULES
SAN ANTONIO WATER SYSTEM

San Antonio, Texas

Effective for Consumption on or about January 1, 2023

Water service charges for all irrigation water service INSIDE THE CITY LIMITS of San Antonio shall be the sum of the appropriate Service Availability charge and the application of the Monthly Volume Charges to metered water usage in every instance of service for each month or fraction thereof and are billed according to the schedule below.

MONTHLY SERVICE AVAILABILITY CHARGE

Meter Size	*Service Availability Charge*
5/8"	$12.70
3/4"	$16.48
1"	$24.04
1½"	$42.94
2"	$65.62
3"	$126.10
4"	$194.14
6"	$383.14
8"	$609.94
10"	$761.14
12"	$1,063.54

MONTHLY VOLUME CHARGES

Usage Gallon—Block Threshold	*Rate Per 1,000 Gallons*
8,000 Gallons	$3.4750
18,000 Gallons	$4.8650
160,000 Gallons	$6.2550
Over 160,000 Gallons	$7.9930
Uplift Assistance Program Fee rate per 1,000 Gallons—Water	$0.1590

Water service charges for all irrigation water service OUTSIDE THE CITY LIMITS of San Antonio shall be the sum of the appropriate Service Availability charge and the application of the Monthly Volume Charges to metered water usage in every instance of service for each month or fraction thereof and are billed according to the schedule below.

MONTHLY SERVICE AVAILABILITY CHARGE

Meter Size	*Service Availability Charge*
5/8"	$16.00
3/4"	$20.66
1"	$29.98
1½"	$53.28
2"	$81.23
3"	$155.77
4"	$239.64
6"	$472.59
8"	$752.13
10"	$938.49
12"	$1,311.21

MONTHLY VOLUME CHARGES

Usage Gallon—Block Threshold	*Rate Per 1,000 Gallons*
8,000 Gallons	$4.5180
18,000 Gallons	$6.3250
160,000 Gallons	$8.1320
Over 160,000 Gallons	$10.3910
Uplift Assistance Program Fee rate per 1,000 Gallons-Fee rate per 1,000 Gallons—Water	$0.1590

(Ord. No. 2017-12-07-0928, § 1(Att. I), 12-7-17; Ord. No. 2022-11-10-0867, § 1(Att. I), 11-10-22)

SCHEDULE D
IRRIGATION CLASS WATER AND SEWER RATE SCHEDULES
SAN ANTONIO WATER SYSTEM

San Antonio, Texas

Effective for Consumption on or about January 1, 2024

Water service charges for all irrigation water service INSIDE THE CITY LIMITS of San Antonio shall be the sum of the appropriate Service Availability charge and the application of the Monthly Volume Charges to metered water usage in every instance of service for each month or fraction thereof and are billed according to the schedule below.

MONTHLY SERVICE AVAILABILITY CHARGE

Meter Size	*Service Availability Charge*
5/8"	$12.70
3/4"	$16.48
1"	$24.04
1½"	$42.94
2"	$65.62
3"	$126.10
4"	$194.14
6"	$383.14
8"	$609.94
10"	$761.14
12"	$1,063.54

MONTHLY VOLUME CHARGES

Usage Gallon—Block Threshold	*Rate Per 1,000 Gallons*
8,000 Gallons	$3.4750
18,000 Gallons	$4.8650
160,000 Gallons	$6.2550
Over 160,000 Gallons	$7.9930
Uplift Assistance Program Fee rate 1,000 per Gallons—Water	$0.130

Water service charges for all irrigation water service OUTSIDE THE CITY LIMITS of San Antonio shall be the sum of the appropriate Service Availability charge and the application of the Monthly Volume Charges to metered water usage in every instance of service for each month or fraction thereof and are billed according to the schedule below.

MONTHLY SERVICE AVAILABILITY CHARGE

Meter Size	*Service Availability Charge*
5/8"	$16.00
3/4"	$20.66
1"	$29.98
1½"	$53.28
2"	$81.23
3"	$155.77
4"	$239.64
6"	$472.59
8"	$752.13
10"	$938.49
12"	$1,311.21

MONTHLY VOLUME CHARGES

Usage Gallon—Block Threshold	*Rate Per 1,000 Gallons*
8,000 Gallons	$4.5180
18,000 Gallons	$6.3250
160,000 Gallons	$8.1320
Over 160,000 Gallons	$10.3910
Uplift Assistance Program Fee rate per 1,000 Gallons—Water	$0.130

(Res. No. 2023-198, 10-3-23)

SCHEDULE E
WATER SUPPLY FEE SCHEDULE
SAN ANTONIO WATER SYSTEM

San Antonio, Texas
Effective for Consumption on or about January 1, 2023

The Water Supply Fee shall be assessed on all potable water service for water usages in every instance of service for each month or fraction thereof according to the schedule below.

Rate Class	*Usage Gallon—Block Threshold*	*Rate per 1,000 Gallons*
Residential	4,000 Gallons	$1.6310
	7,000 Gallons	$3.0180
	12,000 Gallons	$5.4640
	20,000 Gallons	$7.1770
	Over 20,000 Gallons	$10.1940
General	Base*	$3.0790
	125% of Base	$3.5410
	175% of Base	$4.6190
	Over 175% of Base	$5.3890
Wholesale	Base**	$3.5670
	Over Base	$7.1340
Irrigation	8,000 Gallons	$3.8130
	18,000 Gallons	$5.3390
	160,000 Gallons	$6.8640
	Over 160,000 Gallons	$8.7700
Uplift Assistance Program—Residential	2,000 Gallons	$—
	6,000 Gallons	$1.6500
	10,000 Gallons	$2.4750
	15,000 Gallons	$4.1250
	Over 15,000 Gallons	$5.7750

*The Base Use for the General Class is defined as 100% of the Annual Average Consumption
**The Base Use for the Wholesale Class is defined as 100% of the Annual Average Consumption or as agreed to by the wholesale customer and approved by the SAWS Board of Trustees.
(Ord. No. 2015-11-19-0956, § 4(Att. I), 11-19-15, Res. No. 16-302, Atts. III, IV; Ord. No. 2017-12-07-0928, § 1(Att. I), 12-7-17; Res. No. 19-280, § 5(Att. III), 11-5-19; Ord. No. 2022-11-10-0867, § 1(Att. I), 11-10-22)

INDUSTRIAL WASTE FEE SCHEDULE

Under Article V, Sewage Transportation, Treatment and Disposal, Division 3, Sec. 34-484, et seq.
Effective 12:01 a.m., January 1, 2025
Resolution No. 2024-227 dated November 5, 2024

Name of Fee	*Fee Amount*	*Unit*
Industrial Waste Discharge Permit—Categorical	$16,780.00	Per Five (5) Year Permit with annual pro rata payments
Industrial Waste Discharge Permit—Non-Categorical	$12,585.00	Per Five (5) Year Permit with annual pro rata payments

Name of Fee	*Fee Amount*	*Unit*
Sampling Fee—Significant Industrial Users	$614.00	Per sample of discharge from Significant Industrial User collected under Industrial Pre-Treatment Program
Sampling Fee—Non-Significant Industrial Users	$14.00	Per month billed to Non-Significant Industrial User under Industrial Pre-Treatment Program

Laboratory Testing Fees:

Name of Fee	*Fee Amount*	*Unit*
Alkalinity	$22.00	Per test
Ammonia Direct	$25.00	Per test
Ammonia Distillation	$50.00	Per test
Biochemical Oxygen Demand	$43.00	Per test
Chemical Oxygen Demand	$45.00	Per test
Conductivity	$14.00	Per test
Cyanide—Total (with Post Amending)	$58.00	Per test
Phosphorus—Total	$32.00	Per test
Total Kjeldahl Nitrogen	$48.00	Per test
Total Dissolved Solids	$19.00	Per test
Total Suspended Solids	$23.00	Per test
Turbidity	$18.00	Per test
Escherichia Coli—Present/Absent	$27.00	Per test
Total Coliform—Present/Absent	$26.00	Per test
Fecal Coliform	$26.00	Per test
Fecal Streptococcus	$36.00	Per test
Escherichia Coli—Membrane Filtration	$26.00	Per test
Mercury	$43.00	Per test
Hardness	$23.00	Per test
Hexavalent Chromium	$41.00	Per test
Metals	$20.00	Per test
Fats, Oil and Grease	$79.00	Per test
IC (Nitrite, Sulfate, Chloride, Nitrite/Nitrate Combined, Nitrate, Fluoride)	$22.00	Per test
Organochlorine Pesticides	$244.00	Per test
Organophosphorus Pesticides (8 compounds)	$279.00	Per test
Semi-Volatile Organic Compounds (70—110 compounds)	$538.00	Per test
Total Petroleum Hydrocarbons	$144.00	Per test
Volatile Organic Compounds—Drinking Water (48—84 compounds)	$161.00	Per test
Volatile Organic Compounds—Waste Water (31 compounds)	$217.00	Per test

(Ord. No. 2015-11-19-0956, § 4(Att. I), 11-19-15, Res. No. 16-302, Atts. III, IV; Ord. No. 2017-12-07-0928, § 3(Att. II), 12-7-17; Res. No. 18-262, 11-13-18; Res. No. 19-280, § 7(Att. V), 11-5-19; Ord. No. 2022-11-10-0867, § 1(Att. I), 11-10-22; Res. No. 2023-198, 10-3-23; Res. No. 2024-227, § 7(Att. IV), 11-5-24)

SCHEDULE F
RECYCLED WATER RATE SCHEDULES
SAN ANTONIO WATER SYSTEM

San Antonio, Texas

Effective for Consumption on or about January 1, 2025

Water service charges for all recycled water service shall be the sum of the appropriate Service Availability Charge and the application of the Monthly Volume Charges to metered water usage in every instance of service for each month or fraction thereof and are billed according to the appropriate schedule below.

EDWARDS EXCHANGE CUSTOMERS

MONTHLY SERVICE AVAILABILITY CHARGES

Meter Size	*Service Availability Charge*
5/8"	$20.47
3/4"	$26.62
1"	$34.71
1½"	$55.14
2"	$80.61
3"	$214.42
4"	$318.71
6"	$607.95
8"	$916.42
10"	$1,256.61
12"	$1,550.45

MONTHLY VOLUME CHARGES

Usage Blocks	*Rate Per 1,000 Gallons* *Standard*	*Seasonal*
Transferred Amount	$0.5397	$0.5397
All in excess of transferred amount	$2.0207	$2.1465

The Volume Charge "Seasonal" Rate Per 1,000 Gallons shall be applied to all billings beginning on or about May 1 and ending after five complete billing months on or about September 30 of each year. At all other times the Volume Charge "Standard" Rate Per 1,000 Gallons shall be utilized.

NON EDWARDS EXCHANGE CUSTOMERS

MONTHLY SERVICE AVAILABILITY CHARGES

Meter Size	*Service Availability Charge*
5/8"	$20.47
3/4"	$26.62
1"	$34.71
1½"	$55.14
2"	$80.61
3"	$214.42
4"	$318.71
6"	$607.95
8"	$916.42
10"	$1,256.61
12"	$1,550.45

MONTHLY VOLUME CHARGES

Usage Blocks	*Rate Per 1,000 Gallons* *Standard*	*Seasonal*
First 748,000	$2.1611	$2.3244
Over 748,000	$2.2107	$2.3438

The Volume Charge "Seasonal" Rate Per 1,000 Gallons shall be applied to all billings beginning on or about May 1 and ending after five complete billing months on or about September 30 of each year. At all other times the Volume Charge "Standard" Rate Per 1,000 Gallons shall be utilized.

(Ord. No. 2022-11-10-0868, § 2(Att. II), 11-10-22; Res. No. 2024-227, § 5(Att. II), 11-5-24)

ANNUAL MAXIMUM AUTHORIZED RECYCLED WATER RATE SCHEDULES SAN ANTONIO WATER SYSTEM

San Antonio, Texas

Effective for Consumption on or about January 1, 2026

Water service charges for all recycled water service shall be the sum of the appropriate Service Availability Charge and the application of the Monthly Volume Charges to metered water usage in every instance of service for each month or fraction thereof and are billed according to the appropriate schedule below.

EDWARDS EXCHANGE CUSTOMERS

MONTHLY SERVICE AVAILABILITY CHARGES

Meter Size	*Service Availability Charge*
5/8"	$22.52
3/4"	$29.28
1"	$38.19
1½"	$60.65
2"	$88.67
3"	$235.87
4"	$350.59
6"	$668.75
8"	$1,008.06
10"	$1,382.27
12"	$1,705.49

MONTHLY VOLUME CHARGES

	Rate Per 1,000 Gallons	
Usage Blocks	*Standard*	*Seasonal*
Transferred Amount	$0.5936	$0.5936
All in excess of transferred amount	$2.2228	$2.3612

The Volume Charge "Seasonal" Rate Per 1,000 Gallons shall be applied to all billings beginning on or about May 1 and ending after five complete billing months on or about September 30 of each year. At all other times the Volume Charge "Standard" Rate Per 1,000 Gallons shall be utilized.

NON EDWARDS EXCHANGE CUSTOMERS

MONTHLY SERVICE AVAILABILITY CHARGES

Meter Size	*Service Availability Charge*
5/8"	$22.52
3/4"	$29.28
1"	$38.19
1½"	$60.65
2"	$88.67
3"	$235.87
4"	$350.59
6"	$668.75
8"	$1,008.06
10"	$1,382.27
12"	$1,705.49

MONTHLY VOLUME CHARGES

	Rate Per 1,000 Gallons	
Usage Blocks	*Standard*	*Seasonal*
First 748,000	$2.3772	$2.5569
Over 748,000	$2.4317	$2.5781

The Volume Charge "Seasonal" Rate Per 1,000 Gallons shall be applied to all billings beginning on or about May 1 and ending after five complete billing months on or about September 30 of each year. At all other times the Volume Charge "Standard" Rate Per 1,000 Gallons shall be utilized.

(Ord. No. 2022-11-10-0868, § 2(Att. II), 11-10-22)

ANNUAL MAXIMUM AUTHORIZED RECYCLED WATER RATE SCHEDULES SAN ANTONIO WATER SYSTEM

San Antonio, Texas

Effective for Consumption on or about January 1, 2027

Water service charges for all recycled water service shall be the sum of the appropriate Service Availability Charge and the application of the Monthly Volume Charges to metered water usage in every instance of service for each month or fraction thereof and are billed according to the appropriate schedule below.

EDWARDS EXCHANGE CUSTOMERS

MONTHLY SERVICE AVAILABILITY CHARGES

Meter Size	*Service Availability Charge*
5/8"	$24.77
3/4"	$32.21
1"	$42.01
1½"	$66.72
2"	$97.54
3"	$259.45
4"	$385.64
6"	$735.62
8"	$1,108.87
10"	$1,520.50
12"	$1,876.04

MONTHLY VOLUME CHARGES

	Rate Per 1,000 Gallons	
Usage Blocks	*Standard*	*Seasonal*
Transferred Amount	$0.6530	$0.6530
All in excess of transferred amount	$2.4450	$2.5973

The Volume Charge "Seasonal" Rate Per 1,000 Gallons shall be applied to all billings beginning on or about May 1 and ending after five complete billing months on or about September 30 of each year. At all other times the Volume Charge "Standard" Rate Per 1,000 Gallons shall be utilized.

NON EDWARDS EXCHANGE CUSTOMERS

MONTHLY SERVICE AVAILABILITY CHARGES

Meter Size	*Service Availability Charge*
5/8"	$24.77
3/4"	$32.21
1"	$42.01
1½"	$66.72
2"	$97.54
3"	$259.45
4"	$385.64
6"	$735.62
8"	$1,108.87
10"	$1,520.50
12"	$1,876.04

MONTHLY VOLUME CHARGES

	Rate Per 1,000 Gallons	
Usage Blocks	*Standard*	*Seasonal*
First 748,000	$2.6149	$2.8125
Over 748,000	$2.6749	$2.8360

The Volume Charge "Seasonal" Rate Per 1,000 Gallons shall be applied to all billings beginning on or about May 1 and ending after five complete billing months on or about September 30 of each year. At all other times the Volume Charge "Standard" Rate Per 1,000 Gallons shall be utilized.

(Ord. No. 2022-11-10-0868, § 2(Att. II), 11-10-22)

LIQUID WASTE HAULER FEE SCHEDULE

Under Article V, Sewage Transportation, Treatment and Disposal, Division 4, Sec. 34-521, et seq.
Effective 12:01 a.m., January 1, 2025
Resolution No. 2024—227, dated November 5, 2024

Name of Fee	*Fee Amount*	*Unit*
Liquid Waste Permits and Coupons—Truck Permit	$440.00	Per annual permit per liquid waste hauling truck
Liquid Waste Permits and Coupons—Truck Permit Reinspection Fee	$247.00	Per each reinspection of a truck required for the truck to qualify for an annual liquid waste hauling permit
Liquid Waste Permits and Coupons—Manifest Coupon Books	$57.00	Per manifest book
Disposal Site Fee	$41.00	Per 1,000 gallons of disposed waste
Disposal Site Holiday Access Fee	$77.00	Per hour of access on holidays
Disposal Site Weekend Access Fee	$46.00	Per hour of access on weekends

(Ord. No. 2015-11-19-0956, § 4(Att. I), 11-19-15, Res. No. 16-302, Atts. III, IV; Ord. No. 2017-12-07-0928, § 3(Att. II), 12-7-17; Res. No. 18-262, 11-13-18; Res. No. 19-280, § 7(Att. V), 11-5-19; Ord. No. 2022-11-10-0867, § 2(Att. II), 11-10-22; Res. No. 2023-198, 10-3-23; Res. No. 2024-227, § 7(Att. IV), 11-5-24)

PRIVATE FIRE PROTECTION WATER SERVICE

(cf. Sec. 34-127)

Type Nos. 1 and 2 (non-metered) and Type No. 3 (combination meter):

	Minimum Annual Charge	
	Inside City Limits	*Outside City Limits*
4-inch or smaller service line connection	$291.00	$379.00
6-inch	402.00	524.00
8-inch	489.00	635.00
10-inch	565.00	734.00
12-inch	676.00	928.00

(Ord. No. 2015-11-19-0956, § 4(Att. I), 11-19-15; Res. No. 2023-198, 10-3-23; Res. No. 2024-227, § 7(Att. IV), 11-5-24)

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SCHEDULE G
UPLIFT ASSISTANCE PROGRAM
RESIDENTIAL CLASS WATER AND SEWER RATE SCHEDULES
SAN ANTONIO WATER SYSTEM

San Antonio, Texas

Effective for Consumption on or about January 1, 2023

Households inside the City Limits or outside the City Limits with income at or below 125 percent of the Federal Poverty Level (FPL) are eligible to apply to be subject to the below rates.

Water service charges for all metered residential water connections INSIDE THE CITY LIMITS of San Antonio shall be the application of the Water Monthly Volume Charges to metered water usage in every instance of service for each month or fraction thereof and are billed according to the schedule below. Sewer service charge for all metered residential water connections INSIDE THE CITY LIMITS shall be the application for the Sewer Monthly Volume Charges to average monthly water usage for 90 days during three consecutive billing periods beginning after November 15 and ending on or about March 15 of each year and are billed according to the schedule below. Customers who do not have a record of winter water usage or an interim average will be billed for sewer service assuming 5,985 gallons monthly sewer usage.

MONTHLY SERVICE AVAILABILITY CHARGES

Usage Tier	*Water Service Availability Charge*
Tier 1	—
Tier 2	$3.00

MONTHLY VOLUME CHARGES

	Water		*Sewer*
Usage Tier gallon—Block Threshold	*Rate per 1,000 Gallons*	*Usage Tier Gallon—Block Threshold*	*Rate per 1,000 Gallons*
2,000 Gallons	$—	2,000 Gallons	$—
6,000 Gallons	$1.0000	Over 2,000 Gallons	$2.700
10,000 Gallons	$1.5000		
15,000 Gallons	$2.5000		
Over 15,000 Gallons	$3.5000		

Water service charges for all metered residential water connections OUTSIDE THE CITY LIMITS of San Antonio shall be the application of the Water Monthly Volume Charges to metered water usage in every instance of service for each month or fraction thereof and are billed according to the schedule below. Sewer service charges for all metered residential water connections OUTSIDE THE CITY LIMITS shall be the application of the Sewer Monthly Volume Charges to average monthly water usage for 90 days during three consecutive billing periods beginning after November 15 and ending on or about March 15 of each year and are billed according to the schedule below. Customers who do not have a record of winter water usage or an interim average will be billed for sewer service assuming 5,985 gallons monthly sewer usage.

MONTHLY SERVICE AVAILABILITY CHARGES

Usage Tier	*Water Service Availability Charge*
Tier 1	—
Tier 2	$3.90

MONTHLY VOLUME CHARGES

	Water		*Sewer*
Usage Tier gallon—Block Threshold	*Rate per 1,000 Gallons*	*Usage Tier Gallon—Block Threshold*	*Rate per 1,000 Gallons*
2,000 Gallons	$—	2,000 Gallons	$—
6,000 Gallons	$1.3000	Over 2,000 Gallons	$3.240
10,000 Gallons	$1.9500		
15,000 Gallons	$3.2500		
Over 15,000 Gallons	$4.5500		

(Ord. No. 2022-11-10-0867, § 1(Att. I), 11-10-22)

SCHEDULE H
CONSERVATION FEES
RESIDENTIAL, GENERAL AND IRRIGATION CLASSES
SAN ANTONIO WATER SYSTEM
San Antonio, Texas
Effective for Consumption on or about January 1, 2023

The below rates and charges are intended to recover costs associated with the SAWS Conservation Program.

RESIDENTIAL CLASS CONSERVATION VOLUMETRIC RATES

The volumetric rates shown below for Residential Class customers are included as part of the corresponding Residential volumetric rate amounts by Usage Gallon-Block Threshold shown in Schedule A. The Residential Class amounts shown here are applied to both Inside and Outside the City Limits customers.

Usage Gallon-Block Threshold	*Rate per 1,000 Gallons*
4,000 Gallons	$—
7,000 Gallons	$—
12,000 Gallons	$0.6450
Over 20,000 Gallons	$1.2030

GENERAL AND IRRIGATION CLASS CONSERVATION METER CHARGES

The Monthly Charges amount by meter size shown below are included as part of the corresponding Monthly Service Availability Charge amounts by meter size shown in General Class Schedule B and the Irrigation Class Schedule D, respectively. The General and Irrigation Class amounts shown here are applied to both Inside and Outside the City Limits customers. This schedule replaces the General Class Conservation Fee schedule established by City Ordinance No. 87043, Section 2 (Adopted December 1, 1997).

Meter Size	*Monthly Charge*
⅝"	$1.70
¾"	$2.55
1"	$4.25
1½"	$8.50
2"	$13.60
3"	$27.20
4"	$42.50
6"	$85.00
8"	$136.00
10"	$170.00
12"	$238.00

(Ord. No. 2022-11-10-0867, § 1(Att. I), 11-10-22)

DROUGHT SURCHARGE SCHEDULES

(cf. Sec. 34-128.)

Stages III and IV

In addition to regular charges, the following rate surcharges shall apply during Stages III and IV for all service INSIDE AND OUTSIDE THE CITY LIMITS of San Antonio, measured per 1,000 gallons for water usage in every instance of service for each billing month the Drought Surcharge is in effect, and shall be as follows:

Customer Class	*Rate per Thousand Gallons*	*Meter Size*	*Stage III Threshold (gallons)*	*Stage IV Threshold (gallons)*
Residential	$10.37	All Sizes	20,000	12,000
Billed Commercial	$10.37	5/8	12,000	7,200
		3/4	18,000	10,800
		1	30,000	18,000
		1.5	60,000	36,000
		2	96,000	57,600
		3	210,000	126,000
		4	360,000	216,000
		6	810,000	486,000
		8	1,080,000	648,000
		10	1,440,000	864,000

NON-COMPLIANCE CHARGE SCHEDULE

(cf. Sec. 34-135.)

In addition to regular charges, the following non-compliance charges shall apply for any violations of Article IV for all water service customers, where relevant, both INSIDE AND OUTSIDE THE CITY LIMITS of San Antonio, in every instance of service for each billing month the violation occurs, and shall be as follows:

Violation Number	*Fee Design - Small Users (less than one million gallons)*	*Fee Design - Large Users (more than one million gallons)*
1st Violation	$137.00	$500.00
2nd Violation	$225.00	$625.00
3rd+ Violation	$500.00	$1,250.00

(Ord. No. 2024-06-20-0480, § 1(Exh. A), 6-20-24)

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Chapter 35

UNIFIED DEVELOPMENT CODE*

*__Editor's note—__The former Chapter 35 has been removed from this Code at the direction of the city, and has been replaced with a new Unified Development Code. The current Unified Development Code has been codified as a separate publication. The user's attention is directed to the following site: http://www.sanantonio.gov/dsd/udc.asp

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Chapter 36

SMOKING*

Sec. 36-1.	Definitions.
Sec. 36-2.	Application of chapter to city-owned facilities.
Sec. 36-3.	Prohibition of smoking in public places.
Sec. 36-4.	Prohibition of smoking in places of employment.
Sec. 36-5.	Distribution, display, and sale of tobacco products; and cigarette machines.
Sec. 36-6.	Prohibition of smoking/tobacco products in certain outdoor areas.
Sec. 36-7.	Where smoking not regulated.
Sec. 36-8.	Persons under age of eighteen (18) years in smoking area.
Sec. 36-9.	Declaration of establishment as nonsmoking.
Sec. 36-10.	Posting of signs.
Sec. 36-11.	Retaliation prohibited.
Sec. 36-12.	Enforcement.
Sec. 36-13.	Violations and penalties.
Sec. 36-14.	Additional fee for restaurants.
Sec. 36-15.	Governmental agency cooperation.
Sec. 36-16.	Other applicable laws.
Sec. 36-17.	Severability.

*__Editor's note—__Ord. No. 2010-08-19-0697, § 1, adopted August 19, 2010, amended chapter 36 in its entirety to read as herein set out. Formerly, chapter 36, §§ 36-1—36-17, pertained to similar subject matter and derived from Ord. No. 97895, § 1, adopted August 7, 2003, and Ord. No. 97990, § 1, adopted August 14, 2003.

Sections 3 and 7 of Ord. No. 2010-08-19-0697 state the following: "Section 3. Violations occurring on or after August 19, 2011 shall be punished as provided in the revised Chapter 36 of the City Code of San Antonio, Texas. Violations prior to August 19, 2011 shall be punished under the former applicable Sections which shall remain in effect for that purpose.

Section 7. The Director of the Planning and Development Services Department is hereby authorized to waive permit fees associated with the construction of wholly new outdoor patios on restaurants and bars existing and legally in operation as of the date of passage of this ordinance, in compliance with the proposed smoking ordinance, until August 19, 2011.

__Cross references—__Administration, Ch. 2; open flame and smoking restrictions at airport, § 3-34; fire prevention, Ch. 11; food and food handlers, Ch. 13; health, Ch. 15.

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Sec. 36-1. Definitions.

The following words and phrases, whenever used in this chapter, shall be construed as defined in this section:

Bar means an establishment that is devoted to the serving of alcoholic beverages for consumption by guests on the premises and in which the serving of food is only incidental to the consumption of those beverages, including but not limited to, taverns, nightclubs, cocktail lounges, and cabarets.

Business means a sole proprietorship, partnership, joint venture, corporation, or other business entity formed for profit-making purposes, including retail establishments where goods or services are sold as well as professional corporations and other entities where legal, medical, dental, engineering, architectural, or other professional services are delivered.

Cigarette vending machine means any self-service device which, upon insertion of coin(s), paper currency, token(s), card(s) or key(s) or any other item(s) dispenses one (1) or more cigarettes, as defined above, provided that the term shall neither be deemed to include any machine that is in storage, in transit or otherwise not set up for use and operation nor be deemed to include any machine that is situated on a train, bus or other public conveyance.

Comedy club means an establishment that is primarily used for live comedic entertainment.

Electronic Smoking Device (ESD) means any product containing or delivering nicotine or any other substance intended for human consumption that can be used by a person in any manner for the purpose of inhaling vapor or aerosol from the product. The term includes any such device, whether manufactured, distributed, marketed, or sold as an e-cigarette, e-cigar, e-pipe, e-hookah, dab rig or vape pen, or under any other product name or descriptor.

Employee means a person who is employed by an employer in consideration for direct or indirect monetary wages or profit, and a person who volunteers his or her services for a non-profit entity.

Employer means a person, business, partnership, association, corporation, including a municipal corporation, trust, or non-profit entity that employs the services of one (1) or more individual persons.

Enclosed area means all space between a floor and ceiling that is enclosed on all sides by solid walls or windows (exclusive of doorways), which extend from the floor to the ceiling.

Health care facility means an office or institution providing care or treatment of diseases, whether physical, mental, or emotional, or other medical, physiological, or psychological conditions, including but not limited to, hospitals, rehabilitation hospitals or other clinics, including weight control clinics, nursing homes, homes for the aging or chronically ill, laboratories, and offices of surgeons, chiropractors, physical therapists, physicians, dentists, and all specialists within these professions. This definition shall include all waiting rooms, hallways, private rooms, semiprivate rooms, and wards within health care facilities.

Park includes neighborhood/community/large urban/natural area and greenways/sports complex parks that are the basic unit of a park system and are recreational and social centers for those living in the nearby service area or from several neighborhoods and possibly may serve a broader community-based recreation need. Parks include areas that preserve unique landscapes and open spaces and include features that emphasize harmony with the natural environment. Parks include areas that accommodate group activities and recreational facilities, consolidated programmed athletic fields, and their associated facilities.

Place of employment means an area under the control of a public or private employer that employees normally frequent during the course of employment, including, but not limited to, work areas, employee lounges, restrooms, conference rooms, meeting rooms, classrooms, employee cafeterias, hallways, and vehicles. A private residence is not a "place of employment" unless it is used as a child care, adult day care, or health care facility.

Private club means an organization, whether incorporated or not, which:

(1) Is the owner, lessee, or occupant of a building or portion thereof used exclusively for club purposes at all times;

(2) Is operated solely for a fraternal purpose but not for pecuniary gain;

(3) Only sells alcoholic beverages incidental to its operation;

(4) Conducts its affairs and management through a board of directors, executive committee, or similar body chosen by the members at an annual meeting;

(5) Has established bylaws or a constitution to govern its activities; and

(6) Has been granted an exemption from the payment of federal income tax as a club under 26 U.S.C. Section 501.

Public place means an enclosed area to which the public is invited or in which the public is permitted, including but not limited to, banks, bars, bingo facilities, educational facilities, gaming facilities, health care facilities, hotels and motels, laundromats, public transportation facilities, reception areas, restaurants, retail food production and marketing establishments, retail service establishments, retail stores, shopping malls, sports arenas, theaters, and waiting rooms. A private residence is not a "public place" unless it is used as a child care, adult day care, or health care facility.

Restaurant means an eating establishment, including but not limited to, coffee shops, cafeterias, sandwich stands, and private and public school cafeterias, which gives or offers for sale food to the public, guests, or employees, as well as kitchens and catering facilities in which food is prepared on the premises for serving elsewhere. The term "restaurant" shall include a bar area within the restaurant.

Retail tobacco store means a retail store utilized primarily for the sale of tobacco products, smoking implements, or smoking accessories for on-premises consumption and in which the sale of other products is merely incidental, which shall include but not be limited to cigar bars and humidors.

Shopping mall means an enclosed public walkway or hall area that serves to connect retail or professional establishments.

Smoking means inhaling, exhaling, burning, or carrying any lighted or heated cigar, cigarette, pipe, hookah, or any other lighted or heated tobacco or plant product intended for inhalation, whether natural or synthetic, including marijuana/cannabis, in any manner or in any form. Smoking includes the use of an electronic smoking device which creates an aerosol or vapor, in any manner or in any form, or the use of any oral smoking device for the purpose of circumventing the prohibition of smoking in this chapter.

Sports arena means sports pavilions, stadiums, gymnasiums, health spas, boxing arenas, swimming pools, roller and ice rinks, bowling alleys, and other similar places where members of the general public assemble to engage in physical exercise, participate in athletic competition, or witness sports or other events.
(Ord. No. 2010-08-19-0697, § 1, 8-19-10; Ord. No. 2024-10-31-0853, § 2, 10-31-24)

Sec. 36-2. Application of chapter to city-owned facilities.

All enclosed facilities, including buildings and vehicles owned, leased, or operated by the city, shall be subject to the provisions of this chapter.
(Ord. No. 2010-08-19-0697, § 1, 8-19-10)

Sec. 36-3. Prohibition of smoking in public places.

Smoking shall be prohibited in all enclosed public places within the city, including but not limited to, the following places:

(1) Aquariums, galleries, libraries, and museums;

(2) Areas available to and customarily used by the general public in businesses and non-profit entities patronized by the public, including but not limited to, professional offices, banks, laundromats, hotels, and motels;

(3) Bars;

(4) Billiard halls;

(5) Bingo facilities;

(6) Comedy clubs;

(7) Convention facilities;

(8) Elevators;

(9) Facilities primarily used for exhibiting a motion picture, stage, drama, lecture, musical recital, or other similar performance;

(10) Gaming facilities;

(11) Health care facilities;

(12) Childcare and adult day care facilities;

(13) Lobbies, hallways, and other common areas in apartment buildings, condominiums, trailer parks, retirement facilities, nursing homes, and other multiple-unit residential facilities;

(14) Polling places;

(15) Public transportation facilities, including buses and taxicabs, and ticket, boarding, and waiting areas of public transit depots;

(16) Restaurants, except for outdoor seating areas designated as smoking in accordance with subsection 36-10(d);

(17) Restrooms, lobbies, reception areas, hallways, and other common-use areas;

(18) Retail stores;

(19) Rooms, chambers, places of meeting or public assembly, including school buildings, under the control of an agency, board, commission, committee or council of the city or a political subdivision of the state when a public meeting is in progress, to the extent the place is subject to the jurisdiction of the city;

(20) Shopping malls; and

(21) Sports arenas, including enclosed areas in outdoor arenas.

(Ord. No. 2010-08-19-0697, § 1, 8-19-10)

Sec. 36-4. Prohibition of smoking in places of employment.

(a) Smoking shall be prohibited in all enclosed areas within places of employment. This includes common work areas, auditoriums, classrooms, conference and meeting rooms, elevators, hallways, medical facilities, cafeterias, employee lounges, stairs, restrooms, and all other enclosed areas.

(b) This prohibition on smoking shall be communicated by employers to all existing employees by effective date of this chapter, and to all prospective employees upon their application for employment.

(Ord. No. 2010-08-19-0697, § 1, 8-19-10)

Sec. 36-5. Distribution, display, and sale of tobacco products; and cigarette machines.

(a) *Definition.* For purposes of this section only, the term "tobacco products" means any product that is made from or derived from tobacco, and is intended for human consumption or is likely to be consumed, whether smoked, heated, chewed, absorbed, dissolved, inhaled or ingested by any other means, including, but not limited to, a cigarette, a cigar, pipe tobacco, chewing tobacco, snuff, snus, or an electronic smoking device or liquids used in electronic smoking devices. "Tobacco product" does not include drugs, devices, or combination products authorized for sale by the U.S. Food and Drug Administration, as those terms are defined in the Federal Food, Drug and Cosmetic Act.

(b) Distribution, display, and sale of tobacco products, or smoking paraphernalia on any public right-of-way, city park or any city-owned building or facility is hereby prohibited.

(c) The sale of tobacco products to persons under twenty-one (21) years of age is prohibited by V.T.C.A., Health and Safety Code Ch. 161.

(d) Each person who sells tobacco products at retail or by vending machine shall post a sign as required by V.T.C.A., Health and Safety Code § 161.084.

(e) *Cigarette vending machines.*

(1) Subject to the defenses provided in subsection (2) below, it shall be unlawful for any business owner, manager and employee in control of cigarette vending machines within the city to intentionally, knowingly, recklessly, or with criminal negligence allow the display or use of any cigarette vending machine upon any property within the city.

(2) It is a defense to prosecution under the provisions of subsection (b) that:

a. The cigarette vending machine is situated in a premise where entry by any person under twenty-one (21) years of age is prohibited by law; or

b. The cigarette vending machine is located in a workplace with the permission of the employer, provided that the employer has no persons under the age of twenty-one (21) years employed at the workplace, and further provided that the cigarette vending machine is situated at a location within the workplace to which persons other than those employed at the workplace are not permitted to have access.

(f) *Penalty.* A violation of any subsection of this section is hereby declared to be a misdemeanor crime, and upon conviction, shall be punishable as set out below:

A violation of subsections (b) or (e) shall be punishable by a fine of not more than two thousand dollars ($2,000.00).
(Ord. No. 2010-08-19-0697, § 1, 8-19-10; Ord. No. 2018-01-11-0001, § 1, 1-11-18; Ord. No. 2024-10-31-0853, § 2, 10-31-24)

Sec. 36-6. Prohibition of smoking/tobacco products in certain outdoor areas.

Smoking shall be prohibited in the following outdoor places:

(1) San Antonio Zoo facilities and grounds;

(2) In all outdoor sports arenas, stadiums, and amphitheaters;

(3) In, and within twenty (20) feet of, all outdoor public transportation stations, platforms, and shelters under the authority of the city;

(4) In all city-owned, public squares, plazas, and parks, as well as the use of any tobacco products as defined in Section 36-5(a). Additionally, the Directors of the Parks and Center City Development Departments, or their successor departments, shall have the authority to designate temporary smoking areas for certain special events by request as deemed appropriate;

(5) Within the public right-of-way and any seating located within the public right-of-way or on other city-owned property along the entire parade route of the Fiesta Battle of Flowers Parade and the Fiesta Flambeau Parade for a period beginning two (2) hours before the start of each parade until one hour after the conclusion of each parade. This prohibition will not apply to private property;

(6) Within the public right-of-way and all seating within the public right-of-way, or on other city-owned property along the entire parade route of the Texas Cavaliers River Parade for a period beginning two (2) hours before the start of the parade until one hour after the conclusion of said parade. This prohibition will not apply to those areas where smoking is permitted under subsection 36-7(3) or to any other private property.

(Ord. No. 2010-08-19-0697, § 1, 8-19-10; Ord. No. 2012-01-19-0031, § 1, 1-19-12; Ord. No. 2015-11-19-0966, § 1, 11-19-15; Ord. No. 2019-04-11-0309, § 1, 4-11-19)

Sec. 36-7. Where smoking not regulated.

Notwithstanding any other provision of this chapter to the contrary, the following areas shall be exempt from the provisions of sections 36-3, 36-4, and 36-6:

(1) Hotel and motel rooms that are rented to guests and are designated as smoking

rooms; provided, however, that not more than twenty-five (25) percent of rooms rented to guests in a hotel or motel may be so designated;

(2) Outdoor areas except those listed specifically in the provisions in section 36-6;

(3) Outdoor seating areas of restaurants designated as smoking areas in accordance with subsection 36-10(d);

(4) Private clubs in existence as of the effective date of this chapter, and as defined in section 36-1, including Veterans of Foreign War (VFW) posts;

(5) Private residences, except when used as a child care, adult day care, or health care facility;

(6) Retail tobacco stores; provided, however, that smoke from these places does not infiltrate into areas where smoking is prohibited under the provisions of this chapter; and

(7) Tobacco product manufacturing facilities.

(Ord. No. 2010-08-19-0697, § 1, 8-19-10)

Sec. 36-8. Persons under age of eighteen (18) years in smoking area.

Notwithstanding any other provision of this chapter, persons under the age of eighteen (18) years may be admitted in establishments, facilities or other areas that allow smoking in accordance with the provisions of this chapter if such persons are accompanied by their parent or legal guardian.

(Ord. No. 2010-08-19-0697, § 1, 8-19-10)

Sec. 36-9. Declaration of establishment as nonsmoking.

Notwithstanding any other provision of this chapter, an owner, operator, manager, or other person in control of an establishment, facility, or outdoor area may declare that entire establishment, facility, or outdoor area as a nonsmoking place. Smoking shall be prohibited in any place in which a sign conforming to the requirements of subsection 36-10(a) and (b) of this chapter is posted.

(Ord. No. 2010-08-19-0697, § 1, 8-19-10)

Sec. 36-10. Posting of signs.

(a) "No Smoking" signs shall be clearly and conspicuously posted in every public place and place of employment where smoking is prohibited by this chapter, by the owner, operator, manager, or other person in control of that place. The director shall prescribe the content of the "No Smoking" sign required to be posted under this article and have an example sign available on the department's website.

(b) Every public place and place of employment where smoking is prohibited by this chapter shall have posted at every entrance a conspicuous sign clearly stating that smoking is prohibited.

(c) All ashtrays and other smoking paraphernalia shall be removed from any area where smoking is prohibited by this chapter by the owner, operator, manager, or other person having control of the area.

(d) Areas which are exempt from the provisions of sections 36-3 and 36-4 of this chapter shall post a standard sign at each entrance, to be designated by the city informing potential patrons that the area allows smoking, and warning patrons of the negative health effects associated with secondhand smoke, inhaling vapor and aerosol from electronic smoking devices.

(e) The city will provide the signs required under subsection 36-10(d) to the owners or operators required to comply with subsection 36-10(d).

(Ord. No. 2010-08-19-0697, § 1, 8-19-10; Ord. No. 2024-10-31-0853, § 2, 10-31-24)

Sec. 36-11. Retaliation prohibited.

No person or employer shall discharge, refuse to hire, or in any manner retaliate against an employee, applicant for employment, or customer because that employee, applicant, or customer exercises any rights afforded by this chapter or reports or attempts to prosecute a violation of this chapter.

(Ord. No. 2010-08-19-0697, § 1, 8-19-10)

Sec. 36-12. Enforcement.

(a) The San Antonio Metropolitan Health District, in addition to any authority having jurisdiction to enforce city ordinances, shall have authority to enforce the provisions of this chapter.

(b) Any citizen who desires to register a complaint under this chapter may initiate enforcement with the San Antonio Metropolitan Health District

(c) The San Antonio Metropolitan Health District, fire department, or their designees shall, while an establishment is undergoing otherwise mandated inspections, inspect for compliance with this chapter.

(d) An owner, manager, operator, or employee of an establishment regulated by this chapter shall inform persons violating this chapter of the appropriate provisions thereof.

(e) Notwithstanding any other provision of this chapter, an employee or private citizen may bring legal action to enforce this chapter.

(f) In addition to the remedies provided by the provisions of this section, the San Antonio Metropolitan Health District, fire department, or their designees, or any person aggrieved by the failure of the owner, operator, manager, or other person in control of a public place or a place of employment to comply with the provisions of this chapter may apply for injunctive relief to enforce those provisions in any court of competent jurisdiction.
(Ord. No. 2010-08-19-0697, § 1, 8-19-10)

Sec. 36-13. Violations and penalties.

Any person, firm, corporation, agent, employer or employee who intentionally, knowingly, recklessly or with criminal negligence violates any provision of this chapter shall, upon conviction, be fined an amount not more than two hundred dollars ($200.00); provided, however, that in the event a defendant has previously been convicted under this chapter, such defendant shall be fined an amount not more than five hundred dollars ($500.00) for a second conviction hereunder, and shall be fined an amount not more than two thousand dollars ($2,000.00) for a third conviction hereunder and for each conviction thereafter. Each day that a violation is committed or permitted to exist shall constitute a separate offense.
(Ord. No. 2010-08-19-0697, § 1, 8-19-10)

Sec. 36-14. Additional fee for restaurants.

A reasonable fee to cover staff costs associated with consultations and inspections may be charged by the city to the owner or operator of a restaurant in order to establish that outdoor seating areas of restaurants designated as smoking areas are so designated in accordance with subsections 36-3(16) and 36-10 of this chapter.
(Ord. No. 2010-08-19-0697, § 1, 8-19-10; Ord. No. 2024-10-31-0853, § 2, 10-31-24)

Sec. 36-15. Governmental agency cooperation.

The city manager shall annually request other governmental and educational agencies having facilities within the city to establish local operating procedures in cooperation and compliance with this chapter. This includes urging all federal, state, county and school district agencies to update their existing smoking control regulations to be consistent with the current health findings regarding secondhand smoke and vapors and aerosols from electronic smoking devices.
(Ord. No. 2010-08-19-0697, § 1, 8-19-10; Ord. No. 2024-10-31-0853, § 2, 10-31-24)

Sec. 36-16. Other applicable laws.

This chapter shall not be interpreted or construed to permit smoking where it is otherwise restricted by other applicable laws.
(Ord. No. 2010-08-19-0697, § 1, 8-19-10)

Sec. 36-17. Severability.

It is hereby declared to be the intention of the city council that the sections, paragraphs, sentences, clauses and phrases of this chapter are severable, and if any phrase, clause, sentence, paragraph or section of this chapter shall be declared unconstitutional by the valid judgment or decree of any court of competent jurisdiction, such unconstitutionality shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections of this chapter, since

the same would have been enacted by the city council without the incorporation in this chapter of any such unconstitutional phrase, clause, sentence, paragraph or section.
(Ord. No. 2010-08-19-0697, § 1, 8-19-10)

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Chapter 37

ACQUISITION, USE, AND DISPOSITION OF CITY PROPERTY*

Sec. 37-1.	Definitions.
Sec. 37-2.	General provisions.
Sec. 37-3.	Permits for encroachments onto public streets, alleys, or drainage easements.
Sec. 37-4.	Joint use agreements and intrajurisdictional agreements.
Sec. 37-5.	Reserved.
Sec. 37-6.	Reserved.
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Sec. 37-16.	Capital project acquisition of interests in real estate.
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Sec. 37-18.	Lease and license related matters.
Sec. 37-19.	Reserved.
Sec. 37-20.	Releases of lien.
Sec. 37-21.	Information technology installations on city-owned property.
Sec. 37-22.	Fee and consideration schedule.
Sec. 37-23.	Indemnity of city.
App. A.	Right-of-way network node design manual.

*__Editor's note—__Ord. No. 2016-04-07-0240, § 2, adopted April 7, 2016, amended Ch. 37 in its entirety, save and except § 37-23, to read as set out herein. Former Ch. 37, §§ 37-1—37-22, pertained to similar subject matter and derived from Ord. No. 2009-12-10-1025, § 2, adopted Dec. 10, 2009.

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Sec. 37-1. Definitions.

The definitions in this section apply only in this chapter, and not to other chapters of the City Code of San Antonio, Texas:

Applicant means a person requesting a right or privilege governed by this chapter. More than one person may combine as one petitioner, but then each is jointly and severally liable for the obligations of the petitioner.

Application means a written request by a person for rights or privileges under this chapter.

Chief information/technology officer means an assistant director of the information technology services department (ITSD) designated as the city's chief technology officer.

City means the City of San Antonio.

City manager means the city manager of the City of San Antonio or the city manager's designee.

Collocator means any person that installs wireless communications facilities on an existing tower located on city property.

Communications facility means antennas, antenna arrays, antenna facilities, radios, control boxes, cabinets, fiber optic and coaxial cables, conduit, ducts, power sources, ducts, spaces, manholes, vaults, poles, pole lines, fence, repeaters, converters, underground and overhead passageways, and other equipment, structures, plant, other appurtenances or tangible things, or any structure or object of any kind or character not particularly mentioned herein, owned, leased, operated, or licensed by a person located on city property used to provide communications services.

Developable property, as referenced in subsection 37-2(g), means property that is suitable to be developed under the adopted Code of the City of San Antonio and is free of hazards or physical impediments and without disruption of, or significant impact on, natural resource areas or designated open space areas.

Director means the director of the city department responsible for the applicable duty as designated by city ordinance or the city manager.

Encroachment means any physical obstruction or any structure or object of any kind or character placed either in, under, or over any city street, alley or drainage easement in which the city has an interest.

Information technology services department or *ITSD* means the current city department that oversees the city's technology services, wireless antennas, or wireless towers and any future city department that may oversee the city's technology service, wireless antennas, or wireless towers.

Joint use agreement means a written agreement between government entities, including utility agencies, setting forth the terms and conditions for shared use of public property or facilities.

License means an instrument granted to allow the use or occupation of the city's interest in a property for a specific interval of time. Licenses require city council approval.

Micro network node means a network node that is not larger in dimension than twenty-four (24) inches in length, fifteen (15) inches in width, and twelve (12) inches in height, and that has an exterior antenna, if any, not longer than eleven (11) inches.

Network node means equipment at a fixed location that enables wireless communications between user equipment and a communications network. The term includes: equipment associated with wireless communications; a radio transceiver, an antenna, a battery-only backup power supply, and comparable equipment, regardless of technological configuration; and coaxial or fiber-optic cable that is immediately adjacent to and directly associated with a particular collocation. Network node does not include: an electric generator, a pole, or a macro tower.

Network provider means a wireless service provider; or a person that does not provide wireless services and that is not an electric utility but builds or installs on behalf of a wireless service provider: network nodes, node support poles, or any other structure that supports or is capable of supporting a network node.

Permit, as defined in this chapter, means an instrument granting approval for encroachments into city right-of-way or drainage easements. A permit grants no property interest in the real property area subject to the permit.

Person means an individual, corporation, organization, government or governmental subdivision or agency, business trust, estate, trust, partnership, association, and any other legal entity.

Petition means a written request by a petitioner for rights or privileges under this chapter.

Petitioner means a person requesting a right or privilege governed by this chapter. More than one person may combine as one petitioner, but then each is jointly and severally liable for the obligations of the petitioner.

Point of demarcation means the point where the network node terminates and interconnects with transport facilities, whether provided by landline or wireless communications infrastructure.

Pole means a service pole, a municipally owned utility pole, node support pole, or utility pole.

Public right-of-way means any easement or fee over which the public has a right to pass, such as public streets, roads, lanes, paths, alleys, and sidewalks, whether improved or unimproved.

Service pole means a pole, other than a municipally owned utility pole, owned or operated by a municipality and located in a public right-of-way, including: a pole that supports traffic control functions; a structure for signage; a pole that supports lighting, other than a decorative pole; and a pole or similar structure owned or operated by a municipality and supporting only network nodes.

Transport facility means each transmission path physically within a public right-of-way, extending with a physical line from a network node directly to the network, for the purpose of providing backhaul for network nodes.

Utility agency means either or both of the San Antonio Water System and CPS Energy or their successors, for so long as the utility is a municipally owned utility of the City of San Antonio.

(Ord. No. 2016-04-07-0240, § 2, 4-7-16; Ord. No. 2017-08-31-0609, § 1, 8-31-17)

Sec. 37-2. General provisions.

(a) No one may use public rights-of-way or other property in which the city has an interest, whether in fee or easement, in a way governed by this chapter without acquiring rights under the relevant section. Nothing in this chapter requires a permit, license, or other document for utilities and utility agencies to place their facilities in public rights-of-way as otherwise permitted by law.

(b) An instrument granting rights or permission under this chapter, or a recordable memorandum regarding such instrument, shall be recorded in the official public records of real property of the county in which the land is situated unless it is a protected document not subject to public disclosure under federal, state, or local laws. Petitioner must pay the recording cost. A petition may be in letter form and must state the location of the affected city property and the purpose and scope of the proposed use or disposition of the property. The petition must further include such attachments and additional detail as the director may require.

(c) An instrument may not be granted for uses or activities that would substitute for compliance with another chapter of the City Code, including chapter 35 (Unified Development Code). No right granted under this chapter substitutes for compliance with the requirements of another chapter of the City Code. No grant of general right under this chapter substitutes for acquiring a more specific applicable right provided for under this chapter.

(d) Any city official to whom authority is delegated under this chapter may further delegate that authority to subordinates. Authority to bind the city to a contract may not be delegated below the level of director, unless the delegation is made personally by the city manager or a deputy or assistant city manager. All delegations must be in writing. Notwithstanding the foregoing,

the director and assistant director of the department primarily responsible for real estate may sign and bind the city to all contracts, deeds, and other documents and instruments part of real estate transactions approved by council.

(e) Neither permits nor licenses under this chapter create property rights, and no permittee or licensee is entitled to compensation if the city revokes a permit or license.

(f) All construction, excavation, and placement of utilities or other facilities in public rights-of-way are subject to regulation under chapter 29 of the City Code (Streets and Sidewalks).

(g) When fair market value must be determined under this chapter, the following procedures apply:

(1) A director may require that an independent professional appraisal be obtained. The city selects the appraiser and petitioner pays for the appraisal. Except as otherwise stated in a particular section, independent professional appraisals are of the fee simple interest in the affected land, according to its highest and best use.

(2) Alternatively, in cases where the property is not developable as provided under the chapter 35 (Unified Development Code) of the City of San Antonio, a director may rely on an average of the per-square-foot Bexar Appraisal District-assessed land values in the vicinity.

(3) In choosing between requiring a formal appraisal or relying on Bexar Appraisal-assessed values, a director should balance whether the probable cost of a formal appraisal is disproportionate to the probable value of the affected property. Streets and alleys must be appraised not as rights-of-way but as if marketable fee simple title to the affected property were in private hands and the city were condemning it for public-street right-of-way. Appraisals of other strips or oddly configured parcels must not be discounted because of the parcels' configuration.

(4) Independent appraisals should conform to the State of Texas licensing and certification board appraisal standards as well as the Uniform Standards of Professional Appraisal Practice.

(h) Those receiving rights under this chapter must maintain in good repair and condition any structure, covering, or appurtenance and the accompanying structural members extending over,

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under, or on public rights-of-way, drainage, or utility easement, or other city property. No such encroachment may be a nuisance or safety hazard. All such encroachments, when built or renovated, must conform to the latest edition of the International Building Code and other applicable building discipline codes, and installation must be consistent with the city's right-of-way management ordinance.

(i) Grants of rights under this chapter do not relieve petitioner of any other approvals, permits, or licenses that may otherwise be required. No permit or license should be granted under this chapter if the proposed use would impair the primary public purpose of the affected public right-of-way or other city property.

(j) Driveways, bridges, and other ingress and egress-related encroachments over drainage easements need not be licensed or permitted under this chapter but all such matters are subject to review and approval by the flood plain administrator.

(k) Before granting or recommending granting rights under this chapter, the director may canvass some or all interested city departments, utility agencies, and registered neighborhood associations in the vicinity. Based on comments received, the director may impose or recommend imposing special terms as a condition of approval. Sales or conveyances under section 37-12 (Sales or conveyance of surplus real property) require canvassing per that section.

(l) Nothing in this chapter governs use in the ordinary course of business of park and recreation facilities, city cemeteries, airport facilities, community centers, libraries, convention facilities, the Alamodome, or leases or other uses of city-owned or operated office or retail space, parking lots, and garages.

(m) Responsibilities allocated to a city department in this chapter automatically succeed to any other department into which the designated department or the relevant function of that department is reorganized.

(n) Nothing in this chapter impairs an otherwise applicable requirement to seek planning commission approval of a proposed transaction.

(o) Except as may be specifically provided as to a particular fee, all processing and other fees and charges provided for in this chapter are non-refundable.

(p) Nothing in this chapter repeals by implication or otherwise impairs the effect of any part of chapter 6 (Buildings), chapter 29 (Streets and Sidewalks), chapter 32 (Tourist and Trade Center Areas), or chapter 35 (Unified Development Code) of the City Code of San Antonio, Texas.

(q) The city has a lien against property of non-governmental persons granted rights governed by this chapter until the sums owing under this chapter are paid.

(1) The city may assert the lien by recording a lien claim in the real property records of the county in which the property subject to the lien is located.

(2) The property subject to the lien is all property of the person making use of city property any portion of which is within one hundred (100) yards of the unpaid-for use of city property. The lien extends to property beyond the one-hundred-yard limit, but only if it adjoins property within the one-hundred-yard limit.

(3) Lien claims may be signed and acknowledged by the city manager without council action.

(4) The lien may be enforced judicially in any court of competent jurisdiction.

(5) The lien applies only to sums owing for periods after January 1, 2010.

(6) This section does not imply that fees the city otherwise requires to be paid up front may be paid other than up front.

(r) No petitioner seeking rights under this chapter may acquire such rights before paying in full for all previously obtained rights of any type governed by this chapter.

(s) Applicants seeking rights under this chapter are responsible for providing any surveys required in an application prior to the application being scheduled for city council review. Applicants must pay for all costs associated with such surveys.

(t) Upon receipt of a complete application or petition and associated fees, the director shall process an application under this chapter. Applications are valid for one year from date of acceptance by the director.

(u) The director may file a notice of expiration or non-compliance in the official records of the county where property is located if a license, permit or other instrument granting approval under this chapter expires or is terminated and the licensee does not remove any improvements from the licensed area or renew authority for such improvements to remain. Failure to file the notice does not waive any rights to which the city may be entitled.

(v) Any provision of this chapter authorizing an expenditure of funds must be supported and accompanied by:

(1) A prior appropriation approved by city council, and

(2) An unencumbered appropriated balance equal to or exceeding the expenditure.

(Ord. No. 2016-04-07-0240, § 2, 4-7-16)

Sec. 37-3. Permits for encroachments onto public streets, alleys, or drainage easements.

(a) Permits allowing encroachments on public streets, alleys or drainage easements may be administratively approved by the director but are subject to approval of the underlying fee owner as otherwise provided by law. If an encroachment is specifically addressed in another section of this chapter, the more specific section applies. The director may process permit requests and may establish forms and procedures to carry out this section, but all permits must be reviewed and approved by the director, or designee, overseeing public rights-of-way if in a street or alley, or by the city floodplain administrator, or designee, if in a drainage easement. Permits under this section may be issued by the director without specific council action. Sidewalks are included in the eligible area for a permit provided that the sidewalk is within the area of a dedicated public street, alley or other public right-of-way.

(b) Permits shall be issued for a period of ten (10) years, and may be renewed. The director may revoke a permit at any time should the director determine that use under a permit interferes with the city's use of the right-of-way or drainage easement. Permits may be granted only for:

(1) Purposes permissible under V.T.C.A. Transportation Code ch. 316 or any successor statute thereto;

(2) Fire escapes or other safety features; or

(3) Balconies, awnings, or other interconnected walkways between buildings.

Permits may not be issued unless the director finds that:

(1) The improvement or facility will not be located on, extend onto, or intrude on:

a. The roadway, or

b. A part of the sidewalk needed for pedestrian use.

(2) The improvement or facility will not create a hazardous condition or obstruction of vehicular travel, pedestrian travel or drainage on the municipal street;

(3) The improvement will not create private parking within the public right-of-way;

(4) The improvement or facility will not conflict with the Americans with Disabilities Act; and

(5) The design and location of the improvement or facility includes all reasonable planning to minimize potential injury or interference to the public in the use of the permitted area.

(c) Permits are subject to the following limitations:

(1) All permitted encroachments must allow for adequate clearances between the facility or improvement and utility lines.

Clearances from structures to utility lines must comply with the nationally recognized building code adopted by the city and the National Electric Safety Code;

(2) A permit holder must pay the costs to relocate a municipal or public utility facility or improvement in a municipal street associated with the installation of a facility or improvement of the permit holder if requested by the city or a utility agency; and

(3) The city or a utility agency authorized by the municipality may remove, without liability, any part of a facility for which a permit has been issued if there is a public use, public utility use, or need to access the site.

(d) Permits under this section may only be issued by the director without specific council action to:

(1) A person who owns the underlying fee title to the real property;

(2) An entity that holds a lease of the property from or has written permission to use the property from a person who owns the underlying fee title to the real property; or

(3) Adjoining property owners where the city owns the fee underneath the street, alley or drainage area.

(e) Any encroachment obstructing public passage, utility facilities, or other uses of public streets or alleys is ineligible for a permit. A permit may cover as many eligible encroachments as a building has, but a separate permit must be obtained for each building of a project. Where encroachments do not relate to a building, permits cover a radius of two hundred fifty (250) feet. Any encroachment not within a two-hundred fifty-foot radius of a permitted encroachment must obtain a separate permit.

(f) Permits cannot be granted over the objection of the:

(1) Historic preservation officer for areas zoned historic, historic district, river improvement overlay or Mission protection overlay;

(2) The planning director for areas zoned "D" (downtown);

(3) Director assigned oversight of the property where the encroachment will occur; or

(4) The city manager;

except with council approval.

Each permit must be approved as to form by the city attorney's office.

(g) The director may specify the construction, characteristics, quality, and placement of encroachments. The city council may require relocation or removal of an encroachment when appropriate for the efficient use of the public street or alley. The petitioner is responsible for the cost associated with relocation or removal.

(h) Permits need state only:

(1) The city's identity as the issuing authority;

(2) The identity and address of the permittee;

(3) A description of the affected city property;

(4) The scope of the encroachment permitted;

(5) The permit's duration, subject to revocation; and

(6) Any special conditions imposed under subsection 37-3.

Permits must be signed on behalf of both the city and the petitioner and be in recordable form.

(i) Property owners may install and maintain mail boxes conforming to U.S. Postal Service regulations without a permit under this chapter provided that the mail box shall not conflict with the Americans with Disabilities Act, interfere with pedestrian use of the sidewalk, or interfere with city or utility agency use of the right-of-way. Interference is determined at the sole discretion of the director as to city, and applicable local, state and federal laws as to utility agencies.

(j) Permits issued after January 1, 2010, are not effective unless recorded in the real property records of the county in which the encroachment is located.
(Ord. No. 2016-04-07-0240, § 2, 4-7-16)

Sec. 37-4. Joint use agreements and intrajurisdictional agreements.

(a) Petitions for intrajurisdictional agreements or joint use agreements on city-owned property must be submitted to the director. Petitions relating to parks property must be submitted to the parks director, and petitions relating to airport property must be submitted to the airport director. Requests that involve a reservation or creation of property rights upon execution of the document or sale of city property shall require city council approval.

(b) The director may process requests and may establish forms and procedures to carry out this section. Agreements under this section must either be recorded or described in a recorded memorandum of agreement. For the purposes of this section, city property does not include utility easements or public rights-of-way that utility agencies are otherwise permitted by law to use. Nothing in this section alters the rights and obligations of the city and utility agencies in street repairs, widenings, and reroutings.

(c) If city terminates a utility agency's rights under an agreement subject to this section, the utility agency must, at its own expense, find an alternate place for its facilities and remove and relocate the facilities unless otherwise authorized by city council.

(d) As to property in which the city owns only an easement, the petitioner need not pay more than the processing fee for the granting or release of an agreement unless otherwise required in this chapter. A director may, without council action, approve agreements conforming to this section and not impairing the city's rights in the affected area. The agreement may impose limitations on the proposed use to assure city easement rights are not interfered with and is terminable only if the use interferes with city's easement rights. Owners of the fee underlying city easements need not apply for rights under this chapter, provided that in no event may an underlying owner's use of the fee impair or interfere with the city's easement rights.

(e) No agreement under this section grants the right to trespass on or otherwise use property in which persons other than the city have an interest. When the city does not own the fee or another owns an easement that would be affected by the joint use agreement, petitioner must get consent from the owner of all non-city interests as otherwise provided by law, however, utility agencies shall not be required to provide consent from third-party easement holders as a condition for granting the joint use agreement. The city shall have no obligation to obtain consent on behalf of applicants or utility agencies, and said applicants or utility agencies are responsible for obtaining any consent required by law.
(Ord. No. 2016-04-07-0240, § 2, 4-7-16)

Sec. 37-5. Reserved.

Sec. 37-6. Reserved.

Sec. 37-7. Canvassing and responses to canvassing.

(a) When property in which the city has an interest is proposed for sale, for a grant of easement, or for grant of another right that may affect a city department's use of the property the director, in the director's sole discretion, must canvass relevant city departments and utility agencies.

(b) Requests for reservation of utility or other easements must be accompanied by metes and bounds descriptions/surveys.

(c) Applicants under this section are required to comply with all laws, rules, and regulations of general applicability.
(Ord. No. 2016-04-07-0240, § 2, 4-7-16)

Sec. 37-8. Reserved.

Sec. 37-9. Licenses of city property.

(a) Uses of property owned by the city in fee that are subject to this chapter but are not described elsewhere in this chapter must be

licensed. Licenses shall be for a ten-year period unless otherwise approved by city council. Licenses are terminable according to their terms. Petitions for licenses must be submitted to the director. The director may process license requests and may establish forms and procedures conducive to carrying out this section. If a use is specifically addressed in another section of this chapter, the more specific section applies.

(b) The city may collect license fees for uses of public right-of-way or other city property before rights under this section have been granted, even if the uses are now eligible for a permit.

(1) Those using public right-of-way or other city property in a manner subject to this section without a license before September 1998 must pay city a fee equal to fifty (50) percent of the license fee for the unauthorized use prescribed at the time the fee is paid.

(2) For all uses from September 1998 forward, those using such property in a manner subject to this section without a license must pay the fees that were in effect from time to time for rolling ten-year licenses until December 1, 2009. Past-due license fees need not be paid for a period after December 1, 2009, but after that date, past-due permit fees must be paid.

(Ord. No. 2016-04-07-0240, § 2, 4-7-16)

Sec. 37-10. Reserved.

Sec. 37-11. Closure, vacation, and abandonment of public right-of-way.

(a) Petitions for closure, vacation, and abandonment of public streets or alleys must be submitted to the director. The director may process requests and may establish forms and procedures to carry out this section.

(b) Petitioner must demonstrate ownership of each property abutting the right-of-way and must submit at least a category 1B standard land survey with field notes for each abutting-property owner's portion of the affected public rights-of-way. All owners of abutting property must consent to the action under this section. The consent must be in writing. The right-of-way will be presumed to exist by easement.

(c) No fees of any type are owed for city-initiated closures, vacations, or abandonments.

(d) The director shall provide notice of the petition to utility agencies and may require a petitioner to sign and deliver an agreement setting out the applicable closure fee and conditions imposed by city departments and utility agencies.

(e) At least thirty (30) days before the city council takes up a proposed closure, vacation, or abandonment, the director shall cause signs to be placed at or near the public right-of-way to be closed and shall send letters to persons the director reasonably believes to be owners of all tracts within five hundred (500) feet of any portion of the affected right-of-way notifying them of the proposed closure. The signs must state the proposed action, the location and date of city council action, and must remain in place until city council acts on the petition. Signs need not be erected, and letters need not be sent, for undeveloped ("paper") public right-of-way or for slivers not affecting the path of public travel. In determining ownership of tracts, the director need not inquire further than the ownership listings by the Bexar Appraisal District.

(f) Closing, vacating, and abandoning public right-of-way must be approved by ordinance. After city council approval, the director may issue a document indicating release of the right-of-way easement in the street subject to any conditions included in the ordinance.

(g) An applicant petitioning for a street closure assumes all risk of title as to the affected street or alley segment and as to what utility agencies or companies may be using the segment. City need not inquire into these matters.

(Ord. No. 2016-04-07-0240, § 2, 4-7-16)

Sec. 37-12. Sale or conveyance of surplus real property.

(a) Petitions for the sale of all city surplus property must be submitted to the director or assistant director responsible for the disposition

of city real property. The director or assistant director will process requests and may establish forms and procedures to carry out this section.

(b) The director shall establish a process for canvassing a proposed sale or conveyance of city property.

(c) The director may, at the director's discretion, contract with a broker to sell property as provided in V.T.C.A. Local Government Code ch. 253.

(d) Surplus status of real property may finally be determined only by city council, upon the recommendation of the planning commission if applicable, and only city council can authorize sales. All sales of property must conform to law.

(e) A request to canvass a particular city-owned property for designation as surplus for disposition purposes initiated by a department director or assistant director shall not be subject to a processing fee.
(Ord. No. 2016-04-07-0240, § 2, 4-7-16)

Sec. 37-13. Reserved.

Sec. 37-14. Granting and releasing easements.

(a) Petitions for granting or releasing easements must be submitted to the director responsible for oversight of the easement. The director may process requests and may establish forms and procedures to carry out this section.

(b) Any agreement under this section may impose limitations on the proposed use to assure city and utility agency rights are not interfered with. Owners of the fee underlying city easements need not apply for rights under this chapter, provided that in no event may an underlying owner's use of the fee impair or interfere with the city's or utility agency's easement rights.

(c) Prior to granting an easement, the director may require petitioner to demonstrate that the city owns the fee of the property for which an easement is being requested and that no inconsistent rights have previously been granted.

(d) The value of the easement to be granted on city-owned property is presumed to equal the fair market value of the fee, determined according to the requirements of this chapter. Nothing in this chapter requires the city to grant an easement, and if a person wants an easement from the city, the city may negotiate for a higher price than the minimum described above. Petitioners must remove all improvements in easements on city-owned property to the satisfaction of the director prior to recordation of the release instrument. Petitions to release an easement on city-owned property need pay only the processing fee.

(e) If requested by the director, petitioner must sign and deliver an agreement setting out the applicable fee and conditions imposed by city departments and utility agencies.

(f) Easements will not be granted when they would be inconsistent with the city's use or planned use for the affected property and may be granted or released, after acceptance, only with city council authorization.
(Ord. No. 2016-04-07-0240, § 2, 4-7-16)

Sec. 37-15. Rights of entry.

(a) A director may, without council action, issue a right-of-entry agreement to a person for city property in order for such person to conduct surveying, measuring, testing, staging, parking, measuring, photographing, inspecting, ESAs 1 and 2, mowing, general cleanup, and similar activities on city property for which their departments are responsible. A right of entry granted under this section must be for a term of six (6) months or less.

(b) A director also may, without council action, enter into right-of-entry agreements permitting the city to conduct surveying, measuring, testing, staging, parking, photographing, inspecting, ESAs 1 and 2, mowing, cleanup, and similar activities on property the city may wish to acquire or on property the city otherwise needs to enter in conducting its affairs. Directors may process requests and may establish forms and procedures to carry out this section. A director may not pay more than eight hundred fifteen

dollars ($815.00) or give more than eight hundred fifteen dollars ($815.00) in value to get a right of entry without specific council approval.

(c) A director may, without council action, enter into agreements with persons and property owners permitting the city to improve drainage characteristics of land within the city's jurisdiction. Such action may include removing vegetation and contouring the surface.

(d) Agreements authorized by this section must be in writing and in form satisfactory to the city attorney.
(Ord. No. 2016-04-07-0240, § 2, 4-7-16)

Sec. 37-16. Capital project acquisition of interests in real estate.

The city manager, or designee, may, with no further authority than this Code section, acquire interests in real estate on behalf of the city in connection with any capital project approved by city council by adoption of an ordinance. Documents pertaining to the acquisition transaction must be in form satisfactory to the city attorney.
(Ord. No. 2016-04-07-0240, § 2, 4-7-16)

Sec. 37-17. Notices of non-acceptance.

(a) This section does not apply to any public right-of-way dedication to the city, whether by plat or separate instrument.

(b) When the director learns of real property interests deeded or conveyed to the city (a) without the city's consent, or (b) which the city has never accepted, the director must canvass city departments and utility agencies to determine whether a use exists for the property.

(c) If a use exists, the director must seek city council authorization for the acceptance of the property.

(d) If a use does not exist the director may, without city council approval, cause a notice of non-acceptance of the real property to be filed in the appropriate county records. Such notice of non-acceptance shall have the effect of rendering such deed or conveyance void and of no effect. Such notices shall have no effect on plats recorded in the real property records of a county, dedications on which may only be removed through the applicable platting process initiated by the property owner.

(e) A director shall not issue a notice of non-acceptance upon request of a person if such issuance would cause property to become non-compliant with any existing local, state or federal statutes.

(f) If a utility agency identifies a use for the property, the agency must assume responsibility for the property and its maintenance as a condition of the city's acceptance.
(Ord. No. 2016-04-07-0240, § 2, 4-7-16)

Sec. 37-18. Lease and license related matters.

(a) The director may process requests and may establish forms and procedures to carry out this section.

(b) Leases and license agreements must be approved by city council, but nothing in this chapter impairs a delegation of authority outside this chapter. Lease amendments, renewals and extensions must be approved by city council unless the approved lease authorizes otherwise per its terms.

(c) If a lease is approved by city council, the lease and all lease-related documents may be signed by:

(1) The director of a department that is a tenant under the lease; or

(2) The director of the department employing the personnel responsible for lease negotiations.

(d) If budgeted funds are available, a department director may, without further council action, enter into leases, licenses, and similar agreements in which city is tenant or licensee for so long as the agreement is for a temporary use not to exceed a week and the temporary use relates to the mission of the director's department. This does not authorize renewals for succeeding weeks or combining serial, one-week uses for the same premises so that city has a term longer than one

week. The agreements for temporary use must be approved as to form by the city attorney's office.
(Ord. No. 2016-04-07-0240, § 2, 4-7-16)

Sec. 37-19. Reserved.

Sec. 37-20. Releases of lien.

(a) A director of a department responsible for putting a lien on private property may, without council action, release the lien if the amount secured by the lien is paid in full. The director may also release a lien on receipt of a compromised amount if the compromise is otherwise authorized directly by council or by delegation of authority.

(b) The director may, without council action, release liens in favor of the city when advised in writing by the city attorney's office that the liens are invalid according to law.
(Ord. No. 2016-04-07-0240, § 2, 4-7-16)

Sec. 37-21. Information technology installations on city-owned property.

(a) *Use of poles in the right-of-way.*

(1) The installation of network nodes, node support poles, and transport facilities in the public right-of-way shall comply with this section, the design manual in Appendix A of this chapter, chapter 29 of the city Code, and V.T.C.A., Local Government Code ch. 284. The director or designee shall establish forms, processes and procedures for carrying out this section.

(2) City grants applicant the right to use city service poles for the purpose of attaching network node equipment based on the inventory of service poles. Access to individual city service poles will be determined on a case-by-case basis pursuant to the provisions of this chapter, the ROW ordinance, and applicable law.

a. The applicant's right to use and occupy the public rights-of-way and attach to city service poles shall not be exclusive as the city reserves the right to grant a similar use of same to itself or any person or entity at any time.

b. Applicant shall not sub-license to any third parties, or place facilities for the benefit of third parties in city right-of-way or on service poles to which applicant is granted access under this chapter and the ROW ordinance.

(3) Public rights-of-way may be used by applicant in accordance with section 4.10 of the Utility Excavation Criteria Manual ("UECM") for the selection of network node sites and installation of network nodes, micro network nodes, and node support poles. The applicant may include new types of network node equipment that may evolve or be adopted using wireless technologies. Applicant shall, at its expense, comply with all applicable present and future federal, state, and local laws, ordinances, rules and regulations (including, but not limited to, laws and ordinances relating to health, safety, radio frequency emissions, and radiation) in connection with the installation, operation, maintenance, and replacement of network nodes, micro network nodes, and node support poles in the public right-of-way.

(4) Network provider that does not provide wireless services and that is not an electric utility but builds or installs on poles, as defined in V.T.C.A., Local Government Code ch. 284, on behalf of a wireless service provider agrees:

a. Each application submitted to the city shall identify each network provider that is a wireless service provider utilizing the pole.

b. If the network node equipment installed by applicant has the radio frequency range to provide service to two (2) or more network providers that are wireless service providers, the applicant shall submit an application for each wireless service

provider being provided network capacity or otherwise provided service from the pole.

c. Applicant shall not sublicense or in any way provide capacity in the right-of-way to other network providers that are not an electric utility but builds or install infrastructure for wireless service providers. Violation of this subsection shall be considered a material breach of the application and city shall have the right to withdrawal of all previous approvals at the pole.

(5) Nothing in this subsection (a) shall be interpreted to authorize the installation of macro wireless towers and related equipment and facilities, nor the installation on poles of wireless equipment and facilities designed for macro wireless towers.

(6) The use of rights-of-way under this chapter does not include a license to install and operate wires and facilities to provide landline broadband backhaul transmission service, whether provided by a third-party provider, applicant, or a corporate affiliate of applicant. Any entity that provides landline broadband backhaul transmission service must have independent legal authorization to use public rights-of-way outside this chapter.

(7) Not later than the 30th day after the date the city receives an application for a permit for a network node or node support pole, or the tenth day after the date the city receives an application for a permit for a transport facility, the city shall determine whether the application is complete and notify the applicant of that determination. If the city determines that the application is not complete, the city shall specifically identify the missing information. Network node and node support pole applications must list the wireline carrier providing transport facilities to the network node or node support pole being installed even if the network provider is exempt from the monthly transport fee set out in V.T.C.A., Local Government Code ch. 284. The director and the right-of-way manager may designate one or more staff personnel to review and approve network node and node support pole applications, and shall have the authority to develop regulations for the efficient process of such applications.

(8) Upon finding that the network node site application is complete, the city shall approve or deny such network node site application not later than the 60th day after the date the municipality receives the complete application, not later than the 150th day after the date the city receives the complete application for any node support pole, and not later than the 21st day after the date the city receives the complete application for a transport facility. Upon obtaining network node, node support pole, or transport facility approval including right-of-way permit, applicant may proceed to install the network node in coordination with any affected city departments. An application shall be deemed approved if the application is not approved or denied on or before the applicable deadline for approval or denial as prescribed in this section.

(9) Network provider shall not be required to submit an application, obtain a permit, or pay an application fee for routine maintenance that does not require excavation or closing of sidewalks or vehicular lanes in a public right-of-way or for replacing or upgrading a network node or pole with a node or pole that is substantially similar in size or smaller and that does not require excavation or closing of sidewalks or vehicular lanes in a public right-of-way. For purposes of this section a network node or pole is considered to be "substantially similar" if the new or upgraded network node, including the antenna or other equipment element, will not be more than ten

(10) percent larger than the existing node, provided that the increase may not result in the node exceeding the size limitations set out in the design manual and V.T.C.A., Local Government Code ch. 284.

(10) The city shall have the authority at any time to order and require applicant to remove and abate any network node, micro network node, or other structure that is in violation of the City Code of Ordinances. In case applicant, after receipt of written notice and thirty (30) days opportunity to cure, fails or refuses to comply, the city shall have the authority to remove the same at the expense of applicant, all without compensation or liability for damages to applicant.

(11) Prior to conducting planned or routine maintenance on traffic signal system poles, the TCI Department shall provide applicant twenty-four (24) hours advance notice of such maintenance activities. In advance of such maintenance activities, network provider shall temporarily cut-off electricity to its network nodes and micro network nodes for the safety of maintenance personnel. In the event of failure of components of the traffic signal system for whatever reason, including damage resulting from vehicular collisions, weather related events, or malicious attacks, city will respond to restore traffic signal operations through the city's Transportation and Infrastructure Management Call Center (TIMCC) operated by the TCI Department. Should the events that result in damage or failure of the traffic light signal system also affect network nodes, applicant shall have the sole responsibility to repair or replace its network nodes and shall coordinate its own emergency efforts with the TIMCC.

(12) Network providers shall maintain emergency contact information current at all times with the director or designee and the ROW manager.

(13) In the event that applicant's network nodes interfere with the city's traffic signal system, public safety radio system, or other city communications infrastructure, applicant will respond to the city's request to address the source of the interference as soon as practicable, but in no event later than twenty-four (24) hours of receiving notice network provider must address the interference or shut down the network node.

a. The applicant shall provide the director or designee an interference remediation report that includes the following items:

1. *Remediation plan.* Devise a remediation plan to stop the event of interference;

2. *Time frame for execution.* Provide the expected time frame for execution of the remediation plan; and

3. *Additional information.* Include any additional information relevant to the execution of the remediation plan.

b. In the event that interference with city facilities cannot be eliminated, applicant shall shut down the network node, including micro network node, and remove or relocate the node that is the source of the interference.

c. Network provider's duty to remove and relocate its network nodes, including micro network nodes, and node support poles at its expense is not contingent on the availability of an alternative location acceptable for relocation.

(14) City, or its designees, shall have the right to audit, examine or inspect, at the city's election and at city's expense, all of the applicant records at any and all applicant's locations relating to network node, micro network node, and node support pole deployments under this chapter and chapter 29 of the City Code. The audit,

examination, or inspection may be performed by city's designee, which may include internal city auditors or outside representatives engaged by city. Applicant agrees to retain the applicant's records for a minimum of four (4) years, following removal of network nodes, micro network nodes, and node support poles, unless there is an ongoing dispute then, such retention period shall extend until final resolution of the dispute beyond the four (4) year retention period.

(15) Applicant's records shall be made available at the city's designated offices within thirty (30) calendar days of the city's request and shall include any and all information, materials, and digital data of every kind and character generated as a result of installing and operating network nodes, micro network nodes, and node support poles in the right-of-way. Examples of applicant's records include but are not limited to copies of inventory of network node and node support pole sites, network node and node support poles site applications, right-of-way permit numbers, CPS Energy Attachment Permits, payment records for annual right-of-way rate and application fees, equipment invoices, subcontractor invoices, engineering documents, vendor contracts, network diagrams, internal network reports, and other documents related to installation of network nodes, micro network nodes, and node support poles in city right-of-way. The applicant bears the cost of producing, but not reproducing any and all requested business records

(16) The indemnification provisions of V.T.C.A., Local Government Code §§ 283.057(a) and (b) shall apply to a network provider accessing the public right-of-way under this chapter and chapter 29 of this Code.

(b) *Fiber optic licenses.*

(1) Petitions to install fiber optic cable, conduit, and related communications facilities on city right-of-way or other city property must be submitted to the director. The director may process requests and may establish forms and procedures to carry out this section. This section does not apply to a certificated telecommunications provider licensed by the Texas Public Utility Commission that is providing local exchange telephone service within the city and does not include public right-of-way that is a drainage easement unless the city also owns the underlying fee interest.

(2) Fiber optic licenses have ten-year terms.

(3) The annual consideration amount for use of public right-of-way for the purpose of installing aerial and/or subterranean fiber optic and related communications facilities is based on the fair market value of the right-of-way used by the petitioner. The licensed area must be as wide as the petitioner will reasonably need to maintain the licensed facilities but not more than twenty (20) feet. Notwithstanding subsection 37-2(i), the director in his discretion may utilize internal staff or engage an independent professional consultant to conduct an appraisal of the right-of-way subject to the license, based on the appraised values of adjoining properties as assessed by the Bexar County Appraisal District. The petitioner will be responsible for paying the right-of-way appraisal separate from the processing fee. The director will determine the fair market value on a per-linear-foot basis of the right-of-way area associated with the petitioner's network footprint. An annual escalation factor of four (4) percent will be applied to the consideration amount for year one in order to derive the consideration amount for years two (2) to ten (10) of the license term. At the discretion of the director, the city may negotiate a discount off the total licensing fee in exchange for in-kind contributions of equivalent value.

(4) The licensing fee will authorize the petitioner to install fiber facilities on city right-of-way, but does not grant authority to use poles or other infrastructure of

the city or utility agencies. The director may require a petitioner to sign and deliver an agreement setting out the applicable license fee and conditions imposed by city departments and utility agencies. When reasonably conducive to the efficient use of the property on which fiber facilities are located, the director may require licensee to relocate the fiber optic facilities, including all related communications facilities, at licensee's expense.

(5) Following termination of the license for any reason, licensee must remove or otherwise dispose of all communications facilities at its own expense within sixty (60) days. Failure to take this action will result in the fiber facilities being considered abandoned and the property of the city.

(c) *Wireless communications towers on city property.*

(1) Petitions for the right to erect a wireless communications tower on city property or collocate antennae facilities on a wireless communications tower must be submitted to the director. The director may process requests and may establish forms and procedures to carry out this section. Wireless communications leases and collocation licenses are for twenty-year terms.

(2) The city may lease space for the erection of wireless communications towers. When erected, wireless communication towers remain personal property and belong to the provider during the existence of the lease. The lease may specify the required height of the wireless communications tower and the required number of antennae array locations. If following termination of a tower lease for any reason, the provider fails to remove the wireless communications tower within sixty (60) days or otherwise dispose of the tower, the tower shall be considered abandoned and shall become the property of the city.

(3) The provider shall reserve space for the installation of one antennae array and related communications facilities on the wireless communications tower for the city's use at no cost to the city for the entire life of the lease. Petitioner's employees and contractors must wear a suitable photo ID badge while on the premises, to be provided by the provider, which includes a nominal one and one-half (1½) inch square personal photo, unique logo and labeling that identifies the provider and the employee or contractor by name and a telephone number where confirmation of employment may be readily confirmed.

(4) Despite the wireless communications tower being the provider's personal property during the term of a lease, the city reserves the right to charge processing fees and the consideration amount to collocators desiring to install antennae facilities on the city tower. If a wireless communications tower was built before adoption of this section, the provider must obtain a tower lease from the city, and any collocator must obtain a collocation license for its antennae facilities.

(5) The petitioner must annually provide the city a list of all wireless communications towers deployed by petitioner on city property, including addresses, location, and GIS coordinates in a form approved by the director.

(6) The city attorney must approve the form of each tower lease and collocation license that does not conform to this section, both of which must be approved by the city council. The director can bind the city to tower leases or collocation licenses without specific city council action, if they conform to this section.

(7) Validation of proper operation. Within forty-five (45) days of commencement of operations, the petitioner shall provide verification by qualified experts that the radio frequency levels comply with FCC regulations.

(8) The annual consideration amount for use of city property for the purpose of installing a wireless communications tower is based on the fair market value of the city property leased by the petitioner, including, but not limited to, uninhabitable enclosed structures, all communications facilities and related city property fenced in and enclosed therein. The director will determine the fair market value on a cubic foot basis (width x length x height) of the city property area associated with the petitioner's lease. The director in his discretion may engage an independent professional consultant to determine the lease rate. An annual escalation factor of four (4) percent will be applied to the consideration amount for year one in order to derive the consideration amount for years two (2) to twenty (20) of the lease term. At the discretion of the director. The city reserves the right to revise its rate structure based on market conditions.

(d) *Communications facilities installed on city property not addressed in subsections (a), (b), and (c).*

(1) Communications facilities installed on city property pursuant to this subsection shall be by agreement negotiated by petitioner and the director.

(2) The annual consideration amount for use of city property is based on the fair market value of the city property used by the petitioner. The agreement may include an annual escalation factor of four (4) percent may be applied to the consideration amount for year one in order to derive the consideration amount for future years covered by the agreement.

(e) *Interference with public safety communications.* Whenever the city has encountered radio frequency interference with its public safety communications equipment, and it believes that such interference has been or is being caused by the wireless communications infrastructure installed by one or more wireless communication providers, the following steps shall be taken:

(1) The city shall provide notification to all wireless communications service providers operating in the city of possible interference with the public safety communications equipment. Upon such notification, the owners shall use their best efforts to cooperate and coordinate with the city and among themselves to investigate and mitigate the interference, if any, utilizing the procedures set forth in the joint wireless industry-public safety "Best Practices Guide," released by the FCC in February 2001, including the "Good Engineering Practices," as may be amended or revised by the FCC from time to time.

(2) If any wireless communications service provider fails to cooperate with the city in complying with the wireless communications service provider's obligations under this section or if the FCC makes a determination of radio frequency interference with the city public safety communications equipment, the wireless communications service provider who fails to cooperate and/or the owner of the wireless communications facilities which caused the interference shall be responsible, upon FCC determination of radio frequency interference, for reimbursing the city for all costs associated with ascertaining and resolving the interference, including but not limited to any engineering studies obtained by the city to determine the source of the interference. For the purposes of this subsection, failure to cooperate shall include failure to initiate any response or action as described in the "Best Practices Guide" within twenty-four (24) hours of the city's notification.

(3) The requirements set out in subsections (1) and (2) of this section (e) also apply to wireless communications infrastructure

installed by network providers, as defined in V.T.C.A., Local Government Code § 284.002.

(Ord. No. 2016-04-07-0240, § 2, 4-7-16; Ord. No. 2017-08-31-0609, § 1, 8-31-17; Ord. No. 2020-04-02-0225, § 1, 4-2-20)

Sec. 37-22. Fee and consideration schedule.

Fees for processing requests are non-refundable. All fees and amounts are due prior to council consideration or final approval by the director as applicable.

The listing of sections is made solely to facilitate cross-referencing within this chapter. If the reference is inaccurate or not comprehensive, it does not affect the validity of the application of the fees and amounts due.

Permit, Document or Action:	*Process Fee:*	*Consideration Amount:*
Communications Facilities - not installed pursuant to 37-21 (b), and (c)	None	By agreement with director; fair market value of area covered
Encroachment Permit - public street, alley or drainage right-of-way *Section 37-3*	$500.00	$500.00
Granting Easement - granting on city property *Section 37-14*	$815.00	Greater of $5,000.00 or fair market value of fee area covered by easement.
Releasing Easement - releasing on city property *Section 37-14*	$815.00	Greater of $5,000.00 or fair market value of fee area covered by easement.
Releasing Easement - releasing on non-city-owned property *Section 37-14*	None	None
Fiber Optic License - use of right-of-way *Section 37-21*	$3,500.00	Fair market value of the total number of square feet of right-of-way x total number of linear feet of right-of-way; paid annually; annual escalation factor of four (4) percent per Section 37-8.

Permit, Document or Action:	*Process Fee:*	*Consideration Amount:*
Joint Use Agreements, Intra-jurisdictional Agreements - granting on city-owned *Section 37-4*	$500.00	Fair market value of area covered
Joint Use Agreements, Intra-jurisdictional Agreements - granting on non-city-owned *Section 37-4*	$500.00	None
Joint Use Agreements, Intra-jurisdictional Agreements - releasing on city-owned *Section 37-4*	$500.00	None
Joint Use Agreements, Intra-jurisdictional Agreements - releasing on non-city-owned *Section 37-4*	$500.00	None
Lease Assignment *Section 37-18*	$1,500.00	None
License Assignment *Section 37-18*	None	None
License - use of city property *Section 37-9*	$815.00	Greater of $8,150.00, or (1) Ten (10) percent a year of the fair market value for surface uses; (2) Seven and one-half (7½) percent a year of the fair market value for air uses; and (3) Five (5) percent a year of the fair market value for sub-surface uses.
Notice of Non-Acceptance *Section 37-17*	None	None

Permit, Document or Action:	*Process Fee:*	*Consideration Amount:*
Notification Letter(s) *Section 37-11*	None	None
Notification Sign(s) - procuring, installing, removing *Section 37-11*	Application specific calculation - Petitioner must pay the cost at least 30 days prior to an item being scheduled for city council consideration	None
Network Node, Node Support Pole, and Transport Facility Fees pursuant to Chapter 284 of the Local Government Code *Section 37-21(a)*	$1,000.00 per new node support pole $500.00 for up to five network nodes in an application; $250.00 per additional network node included in an application	$20.00 per service pole per year $250.00 per network node per year; allows ½ CPI escalation per year after 60-day written notice $28.00 per month for wireline transport facilities, on a per network node basis
Electrical power charge associated with network nodes installed on certain city infrastructure *Section 37—Design Manual Division III, Section c.*		**Tier: Low** **Max wattage/amperage:** 0—480 watts/ 0—4 amps **Annual fee:** $356.00 **Tier: Standard** **Max wattage/amperage:** 481—1,165 watts/ 4.1—10 amps **Annual fee:** $864.00 **Tier: High** **Max wattage/amperage:** above 1,165 watts/ 10+ amps **Annual fee:** $1,778.00
Recording Costs *Section 37-2*	Application specific calculation - Petitioner must pay the cost at least 30 days prior to an item being scheduled for city council consideration	None
Right of Entry - Granted to city *Section 37-15*	None	A director may not pay more than $815.00 or give more than $815.00 in value to get a right of entry without specific council approval.

Permit, Document or Action:	*Process Fee:*	*Consideration Amount:*
Right of Entry - Granted by city *Section 37-15*	Up to $815.00 (cash or equivalent value)	None
Sale of Real Property - conveyance of city property *Section 37-12*	$1,300.00	Per V.T.C.A. Local Government Code or other applicable statute
Street or Alley (closure or restriction) - release of city property *Section 37-11*	$1,300.00	Fair market value of segment to be closed or restricted.
Wireless Communication Tower - use of city property *Section 37-21*	$3,500.00	Fair market value on a cubic feet basis (width x length x height) of leased property; paid annually; annual escalation factor of four (4) percent per subsection 37-21(c).

(Ord. No. 2016-04-07-0240, § 2, 4-7-16; Ord. No. 2017-08-31-0609, § 1, 8-31-17; Ord. No. 2020-04-02-0225, § 1, 4-2-20; Ord. No. 2021-09-16-0682, § 2(Att. E), 9-16-21)

Sec. 37-23. Indemnity of city.

(a) Any permit, license, or agreement accepting rights under this chapter automatically contains the indemnity contained in this section.

(b) These definitions apply to the indemnity provisions of this section:

Indemnified claims mean all loss, cost, liability, or expense, directly or indirectly arising out of acts or omissions of any person other than an indemnitee that give rise to assertions of indemnitee liability under this section, whether or not the person is a party to this agreement. Indemnified claims include attorneys' fees and court costs and include claims arising from property damage and from personal or bodily injury, including death.

Indemnitees mean the City of San Antonio and its elected officials, officers, employees, agents, and other representatives, collectively, against whom an indemnified claim has been asserted.

Indemnitor means petitioner.

(c) Indemnitor must indemnify indemnitees, individually and collectively, from all indemnified claims.

(d) If indemnitor and one or more indemnitees are finally adjudged to be jointly liable for indemnified claim, indemnitor need not further indemnify the so-adjudged indemnitees from liability arising from the indemnitees' adjudicated share of liability. But despite allegations of indemnitee negligence, indemnitor must nevertheless defend all indemnitees until final adjudication. Indemnitor may not recover sums previously spent defending or otherwise indemnifying the indemnitee who has been adjudged to be negligent and must continue to indemnify other indemnitees.

(e) There are no third-party beneficiaries of this indemnity other than the category of people and entities included within the definition of indemnitees.

(f) Indemnitor must promptly advise the city in writing of any indemnified claim and must, at its own cost, investigate and defend the indemni-

fied claim. Whether or not the city is an indemnitee as to a particular indemnified claim, the city may require indemnitor to replace the counsel indemnitor has hired to defend indemnitees. The city may also require indemnitor to hire specific-named counsel for so long as the named counsel's hourly rates do not exceed the usual and customary charges for counsel handling sophisticated and complex litigation in the locale where the suit is pending. No such actions release or impair indemnitor's obligations under this indemnity paragraph, including its obligation to pay for the counsel selected by city. Regardless of who selects the counsel, the counsel's clients are indemnitees, not indemnitor.

(g) In addition to the indemnity required under this section, each indemnitee may, at its own expense, participate in its defense by counsel of its choosing without relieving or impairing indemnitor's obligations under this indemnity paragraph.

(h) Indemnitor may not settle any indemnified claim without the consent of the city, whether or not the city is an indemnitee as to the particular indemnified claim, unless (A) the settlement will be fully funded by indemnitor and (B) the proposed settlement does not contain an admission of liability or wrongdoing by any indemnitee. The city's withholding its consent as allowed in the preceding sentence does not release or impair indemnitor's obligations of this indemnity paragraph. Even if the city is not an indemnitee as to a particular indemnified claim, indemnitor must give city at least twenty (20) days' advance written notice of the details of a proposed settlement before it becomes binding. Any settlement purporting to bind an indemnitee must first be approved by city council.

(i) Nothing in this section waives governmental immunity or other defenses of indemnitees under applicable law.

(j) If, for whatever reason, a court refuses to enforce this indemnity as written, and only in that case, the parties must contribute to any indemnified claim five (5) percent by the indemnitees and ninety-five (95) percent by the indemnitor. Indemnitor need look only to the city for indemnitees' five (5) percent if the city is an indemnified party as to a particular indemnified claim.

(k) This section controls whether or not petitioner's agreement with the city so provides. This section controls even if the agreement provides otherwise, unless an ordinance expressly states that city council intends to override this section as to the particular use by the particular petitioner.

(l) Entities that may not lawfully grant indemnities or may not lawfully be required to do so by the city do not grant the indemnity provided for in this section by accepting rights under this chapter.
(Ord. No. 2009-12-10-1025, § 2, 12-10-09)

Appendix A. Right-of-way network node design manual.

DIVISION I. GENERAL

a. *Applicability.*

The requirements of this design manual ("manual") shall apply to all installations in the right-of-way within the City of San Antonio consisting of equipment associated with network nodes, node support poles, and other poles on which network nodes and associated equipment are installed. The City of San Antonio shall not be responsible to applicants for such installations for the costs of compliance with this manual. The manual, however, is not intended to supersede or conflict with engineering, technical, or operational requirements found in CPS energy's pole attachment license agreements and pole attachment standards.

b. *Sources of authority.*

This manual is adopted pursuant to V.T.C.A., Local Government Code Ch. 284.

c. *Definitions.*

For purposes of this Manual, all terms herein shall be as defined in the City Code of San Antonio, including Chapters 29, 35 and 37, in Texas Local Government Code Chapter 284, or in this Manual.

1. "Antenna" means communications equipment that transmits or receives electromagnetic radio frequency signals used in the provision of wireless services.
2. "COSA" means the City of San Antonio, including all city departments, officers, officials, or employees authorized to act on city's behalf.
3. "CPS" means CPS Energy, the electric and gas municipally owned utility owned by COSA.
4. "Decorative pole" means a streetlight pole specially designed and placed for aesthetic purposes and on which no appurtenances or attachments, other than specially designed informational or directional signage or temporary holiday or special event attachments, have been placed or are permitted to be placed according to nondiscriminatory municipal codes.
5. "Design district" means an area that is zoned, or otherwise designated by municipal code, and for which the city maintains and enforces unique design and aesthetic standards on a uniform and nondiscriminatory basis.
6. "Historic district" means an area that is zoned or otherwise designated as a historic district under municipal, state, or federal law.
7. "HPO" means the City of San Antonio Historic Preservation Officer or their designee.
8. "Municipally owned utility pole" means a utility pole owned or operated by a municipally owned utility, as defined by Section 11.003, Texas Utilities Code, and located in a public right-of-way.
9. "Node support pole" means a pole installed by a network provider for the primary purpose of supporting a network node.
10. "OHP" means the City of San Antonio Office of Historic Preservation.
11. "Permit" means a written authorization for the use of the public right-of-way or collocation on a service pole required from a municipality before a network provider may perform an action or initiate, continue, or complete a project over which the municipality has police power authority.
12. "Pole" means a service pole, municipally owned utility pole, node support pole, or utility pole.
13. "ROW" means public street right-of-way within the jurisdiction of the City of San Antonio.
14. "Service pole" means a pole, other than a municipally owned utility pole, owned or operated by a municipality and located in a public right-of-way, including:
    A. a pole that supports traffic control functions;
    B. a structure for signage;
    C. a pole that supports lighting, other than a decorative pole; and
    D. a pole or similar structure owned or operated by a municipality and supporting only network nodes.
15. "Stealth" or "stealth design" means a method of camouflaging any network node, node support pole, or transport facility, including, but not limited to, supporting electrical or mechanical equipment, which is designed to enhance compatibility with adjacent land uses and be as visually unobtrusive as possible. Stealth design may include a repurposed structure.
16. "TCI" means the City of San Antonio Transportation and Capital Improvements Department.
17. "UDC" means the City of San Antonio Unified Development Code.
18. "UECM" means the Utility Excavation Criteria Manual Fourth Edition, as may be amended by city staff from time to time; available at http://www.sanantonio.gov/TCI/Services/Right-of-Way-and-Permits.

19. "Utility pole" means a pole that provides:

    A. electric distribution with a voltage rating of not more than 34.5 kilovolts; or

    B. services of a telecommunications provider, as defined by Section 51.002, Texas Utilities Code.

20. "Wireless service provider" means a person that provides wireless service to the public.

Unless noted otherwise, where the above definitions conflict with those found in Texas Local Government Code Chapter 284, the latter shall control.

DIVISION II. PROCEDURES

a. All installations of network nodes and related equipment in the City of San Antonio public ROW shall require a permit issued by TCI for the specific equipment and work actually installed and performed. Any said work performed without a permit shall be considered a violation of the San Antonio City Code and all persons or entities committing such violations may be subject to civil and criminal penalties as permitted by law.

b. Where the proposed installation of a network node or related equipment is to be on a Service Pole, applicants shall confirm site eligibility with TCI prior to submitting a permit application. Eligibility determinations shall be based on installation space availability, as well as public safety, technical, and other criteria consistent with applicable law and city policies.

c. To ensure the integrity of the traffic signal system and continued COSA compliance with federal and state laws, and the latest edition of the Texas Manual on Uniform Traffic Control Devices, (available at https://www.txdot.gov/government/enforcement/signage/tmutcd.html), TCI may deny access to Service Poles due to site operational conditions, limited space availability, public safety concerns, future traffic signal system planning, or other operational considerations. Eligibility approval for a particular location shall not be construed as eligibility approval for any other location.

d. Pursuant to Texas Local Government Code Section 284.104, written approval by the Director of TCI shall be required prior to the installation by a network provider of any new node support pole in a public ROW that is in a municipal park or is adjacent to a street or thoroughfare that is not more than fifty (50) feet wide and adjacent to single-family residential lots or other multifamily residences or undeveloped land designated for residential use by zoning or deed restrictions.

e. Pursuant to Texas Local Government Code Section 284.105, written approval by the Director of TCI shall be required prior to the installation by a network provider of any new node support pole in a public ROW that is in a Design District which requires the use of decorative poles, as listed in this Manual. Such approval shall require compliance with all applicable design and aesthetic standards described in this Manual.

f. Where a proposed installation is to be on a property or in a zoning district designated a Design District under this Manual, the applicant shall meet the city department with jurisdiction over the particular district for review of required and proposed installation aesthetics prior to submitting application materials for completeness review. Where a proposed installation is in more than one Design District, the applicant shall meet with OHP.

g. Where a proposed installation is to be on a property that is designated as a Historic Landmark, or is within a Historic, River Improvement Overlay, Viewshed Protection, or Mission Protection Overlay District, such installation shall be subject to review by OHP for compliance with this Manual, the Historic Design Guidelines and/or applicable Overlay District Guidelines, and the UDC, and the following additional procedures shall apply:

1. Prior to submitting a permit application, applicants shall meet with OHP to discuss potential equipment design modifications necessary to achieve compliance.
2. Applicants shall furnish OHP with accurate scaled drawings of all proposed new equipment, showing location relative to existing equipment, existing poles,

and adjacent structures within five hundred (500) feet. Additional submittal materials for OHP review shall be per the instructions of the COSA Historic Preservation Officer.

h. Subject to director approval, applicants proposing service pole re-enforcement or replacement shall provide engineering design drawings and specifications demonstrating the proposed alteration to the pole.

i. The Chief Technology Officer, Right-of-Way Manager, HPO, or their designees may, at their discretion, require applicants make design modifications pursuant to Chapter 284, this or other COSA design manuals, and applicable regulatory or legal requirements. Such requested design modifications shall be a prerequisite to a determination that a permit application is complete.

j. No application review, or application review timeline under Texas Local Government Code Chapter 284, shall commence until an application is deemed complete by the Directors of TCI, ITSD, OHP or their designees.

k. ROW permit applicants shall submit complete structural calculations and drawings to TCI, sealed by a professional engineer licensed in the State of Texas, detailing anchorage, attachment, and support, including an industry standard pole load analysis certifying that the pole will safely support all applicable loads of all the existing and proposed equipment, facilities, and appurtenances.

l. Permit applications shall identify which Design Districts as defined in this Manual, if any, the proposed installation is within.

m. Permit applications shall clearly demonstrate compliance with the following, as applicable:

1. One (1) hour shutoff notice obligation;
2. Non-interference obligation;
3. Quick disconnect at node location;
4. Own power source, conduit, meter, and shutoff accessible by TCI; and,
5. Any applicable backhaul rights/rules.

n. Applications shall be evaluated on a case-by-case basis to ensure consideration of specific structural conditions, load capacities, visual and signal interference, aesthetics, and reservation of space for future COSA infrastructure.

o. Upon completion of installation work, applicants shall:

1. Provide the right-of-way manager with an affidavit of compliance, sealed by a professional engineer licensed in the State of Texas, certifying all work was carried out consistent with the previously submitted and approved calculations and drawings.
2. Upon completion of the installation, including a micro network node installation, applicant shall notify the director or designee, in writing and provide a picture of said installation, city right-of-way permit number if applicable, the GIS coordinates, date of installation, company site ID#, type of pole used for installation, pole owner, and description/type of installation, which will be included in the network node or node support pole site application records. The city will also require the applicant to label the installation with the city right-of-way permit number for easy reference and verification by city personnel.
    A. Network provider shall maintain a current inventory of network node, including micro network node, and node support pole sites. Network provider shall provide to city a copy of the inventory of network node sites on an annual basis. The inventory of network node sites shall include city right-of-way permit number, GIS coordinates, date of installation, company site ID#, type of pole used for installation, pole owner, and description/type of installation for each network node installation. Concerning network node, micro network node, and node support pole sites that become inactive or never activated, the inventory of

sites shall include the same information as active installations in addition to the date the site was deactivated and the date the node or node support pole was removed from the public right-of-way. City shall compare the inventory of sites to its records to identify any discrepancies. The inventory shall include network nodes installed on service poles, municipally owned utility poles and third-party proprietary poles. The annual inventory shall be due not later than September 30 of each year.

B. Any unauthorized network node, including micro network node, or node support pole sites that are identified by the city as a result of comparing the inventory of network node sites to internal records or through any other means may be subject to immediate removal. City shall provide written notice to network provider of any unauthorized site identified by city staff and applicant shall have thirty (30) days thereafter in which to submit a preexisting city right-of-way permit for said site. Failure to produce a city right-of-way permit or notification of installation corresponding with the unauthorized site will result in the imposition of an unauthorized installation charge, which shall be calculated by applying the SB1004 fee formula to the period spanning from the original date of installation of the unauthorized site to the date of the written notice sent by city. The total amount resulting from this calculation shall be assessed an interest rate of twelve (12) percent to constitute the applicable unauthorized installation charge. Thereafter, applicant shall submit a network node site application and applicable annual right-of-way rate for the unauthorized network node site.

DIVISION III. TECHNICAL REQUIREMENTS

a. *General requirements.*

1. In accordance with Texas Local Government Code Section 284.102, a network provider shall construct and maintain network nodes and node support poles described by Texas Local Government Code Section 284.101 in a manner that does not:

   A. obstruct, impede, or hinder the usual travel or public safety on a public right-of-way;

   B. obstruct the legal use of a public right-of-way by other utility providers;

   C. violate nondiscriminatory applicable codes;

   D. violate or conflict with the municipality's publicly disclosed public right-of-way design specifications; or

   E. violate the federal Americans with Disabilities Act of 1990 (42 U.S.C. Section 12101 et seq.).

2. In addition to the foregoing, and in accordance with Texas Local Government Code Section 284.304, network nodes and node support poles described by Texas Local Government Code Section 284.101 shall be constructed and maintained in a manner that does not obstruct, interfere, or conflict with any public safety communication or traffic safety signal frequency.

3. In accordance with Texas Local Government Code Section 284.107, network providers shall comply with the City's nondiscriminatory undergrounding requirements in relation to an installation for which the City has approved a permit application, including municipal ordinances, zoning regulations, state law, private deed restrictions, and other public or private restrictions, that prohibit installing aboveground structures in a public right-of-way without first obtain-

ing zoning or land use approval. This provision may not be interpreted to prohibit a network provider from replacing an existing structure.

b. *Specific requirements.*

In accordance with Texas Local Government Code Section 284.108, the following shall apply to all network node installations in the right of way ('ROW'):

1. All network nodes and related equipment shall be installed in accordance with chapter 29, article IV (COSA Right-of-Way Management Ordinance), and the UECM as applicable.

2. Network providers shall be responsible for ensuring compliance with all applicable federal, state, and other local installation and construction standards and industry best practices, as well as the Americans with Disabilities Act.

3. New node support poles shall be located at least two hundred and fifty (250) feet from any existing pole of any type, unless the director of TCI determines in his sole discretion that the network provider has shown good cause for granting an exception to the distance requirement. Good cause is determined in the director's sole discretion and, in any event must be based on the unavailability or unsuitability of all other feasible locations. Wireless antennas shall maintain a minimum ten (10) foot vertical and horizontal clearance from any electrical conductors including neutral conductors. Additional clearances may be required to ensure that field personnel are not exposed to unsafe radiation levels. Applicants are responsible for confirming applicable clearance requirements with CPS and COSA.

4. Electrical power to network nodes and related equipment shall be wholly separate from electrical power serving COSA equipment including traffic signal devices, street lighting, etc., unless otherwise authorized by the director or designee. In addition, applicants shall be responsible for compliance with applicable CPS meter requirements.

5. All electrical and communication cabling to network nodes and related equipment shall be run in its own conduit path outside of the conduit path used by COSA infrastructure, unless otherwise authorized by the director or designee.

6. In order to permit emergency power shutdowns, an electrical cutoff, accessible by TCI personnel, shall be provided at each network node or related equipment installation.

7. Installation of network nodes and related equipment shall not hinder the intended operation and visibility of all traffic control devices, including, but not limited to, signal faces, signals, detectors, push buttons, etc.

8. The following locations are reserved for COSA infrastructure, and no network nodes or related equipment shall be installed therein, unless otherwise authorized by the director or designee:
   A. any location not on a vertical support pole (i.e., steel mast arm mounted over the roadway, span wire cable between poles, down guy cable systems, etc.)
   B. within ten (10) ft. from the base of the pole (any type of traffic signal pole)
   C. within three (3) ft. below the mast arm on the pole
   D. within five (5) ft. above the mast arm on the pole
   E. within five (5) ft. from the top of the pole

9. When approved pursuant to applicable procedures and reviews, including load analysis, extensions may be mounted to poles to permit installation of a network node or related equipment.

10. Applicants shall be responsible for ensuring that installation of equipment and

approved extensions shall not encroach into areas restricted by CPS surrounding primary, secondary, and neutral wires.

11. All pole excavations, construction activities, and aerial installations on poles in the ROW shall be carried on as to minimize interference with the use of city's public ROWs and with the use of private property, in accordance with all regulations of the City necessary to provide for public health, safety and convenience.
12. Network providers shall not install overhead lines connecting to a network node collocated on a service pole or a node support pole, unless approved by the director for temporary maintenance or repair not to exceed ten (10) days. All lines, including power and transport facilities, connecting to a pole mounted network node, shall be placed in duct or conduit that is buried below ground, provided that a network node attached to a utility pole, a municipally owned utility pole, or a pole not subject to Chapter 284 requirements may connect to aerial transport facilities for which an attachment right has been granted by the utility pole owner.
13. All construction in the ROW shall conform to the latest version of the "City of San Antonio Standard Specifications for Construction" document and associated special provisions, available at on the City of San Antonio's website at http://www.sanantonio.gov/TCI/Current-Vendor-Resources/Standard-Specifications-and-Details, as well as the UECM.
14. Installations with no equipment located on the ground are strongly encouraged. Where ground-mounted equipment is approved as part of a permitted installation, it shall comply with the requirements of this manual.

c. *Electrical power charge associated with network nodes installed on certain city infrastructure.*

1. The city may allow network providers that locate network node equipment on any traffic signal pole to utilize the city's meter and/or electric service account associated with the host traffic signal pole. Network providers shall pay to the city an annual power fee designed to recover the cost of the additional electric energy used by the network node equipment and related infrastructure installed by the provider on any city traffic signal pole. The initial annual power fee shall be paid on the date a network node application is approved by the city and invoiced annually, on October 1 of each year thereafter. The annual power fee shall be adjusted as necessary to ensure the city receives full cost recovery for network node installations on city traffic signal poles. Similarly, the annual power fee may be adjusted prospectively as necessary to reflect any increase in CPS energy rates. The annual power fee shall be based on the projected kilo-watt-hour consumption, as determined by the maximum wattage/amperage capacity of the installed network node equipment as stated on the right-of-way network node permit application, which is subject to verification by CPS energy.

2. Via the annual power fee specified in subsection c.1., above, a network provider shall reimburse the city for its proportionate share of cost for electricity use, based on wattage/amperage tiers as illustrated in section c.3. below. The city retains the right, at any time, to amend the wattage/amperage range for any tier and related annual power fee, including the creation of additional tiers. For any network node location, if the city determines that the network node equipment is using more kilo-watt-hours than the initial tier designation, the city shall designate an alternative tier to the network node as appropriate. The city retains the right to disconnect power to any network node if the annual power fee is not paid. The city retains the right to require a dedicated meter, at the network provider's expense, for any network node installation at any

time if the provider fails to timely pay or repeatedly and significantly underestimates usage.

3. The annual power fee applicable to network node equipment installed on any city traffic signal pole is set out in section 37-22 of the city's municipal Code.

DIVISION IV. GENERAL AESTHETIC REQUIREMENTS

a. *Height limits.*

1. *Maximum pole height.*

In accordance with Texas Local Government Code Section 284.103, no new, modified, or replacement utility pole or node support pole installed in a public right-of-way shall exceed the lesser of:

A. Ten (10) feet in height above the tallest existing utility pole located within 500 linear feet of the new pole in the same public right-of-way; or

B. Fifty-five (55) feet above ground level.

2. *Supplemental height regulations.*

Notwithstanding the height limits in subsection (a), above, all poles and associated equipment shall comply with the height restrictions of the Airport Hazard Overlay District, as found in Section 35-331, Military Airport Overlay Zones, as found in Section 35-344, and Viewshed Protection and Mission Protection Overlay Districts, as found in Sections 35-337 and 35-339.06, of the City Code.

3. *Other height regulations.*

Network providers shall be responsible for complying with all applicable federal regulations, including applicable Federal Aviation Regulations (FAR) such as those codified at 14 CFR, part 77.

b. *Other dimensional limits.*

1. Per Texas Local Government Code Section 284.003, except as provided by Section 284.109 of that Code, a network node to which this chapter applies must conform to the following conditions:

A. each antenna that does not have exposed elements and is attached to an existing structure or pole:

i. must be located inside an enclosure of not more than six cubic feet in volume;

ii. may not exceed a height of three feet above the existing structure or pole; and

iii. may not protrude from the outer circumference of the existing structure or pole by more than two feet;

B. if an antenna has exposed elements and is attached to an existing structure or pole, the antenna and all of the antenna 's exposed elements:

i. must fit within an imaginary enclosure of not more than six cubic feet;

ii. may not exceed a height of three feet above the existing structure or pole; and

iii. may not protrude from the outer circumference of the existing structure or pole by more than two feet;

C. the cumulative size of other wireless equipment associated with the network node attached to an existing structure or pole may not:

i. be more than 28 cubic feet in volume; or

ii. protrude from the outer circumference of the existing structure or pole by more than two feet;

D. ground-based enclosures, separate from the pole, may not be higher than three feet six inches from grade, wider than three feet six inches, or deeper than three feet six inches; and

E. pole-mounted enclosures may not be taller than five feet.

2. The following types of associated ancillary equipment are not included in the calculation of equipment volume under Subsection (A):

A. electric meters;

B. concealment elements;

C. telecommunications demarcation boxes;

D. grounding equipment;

E. power transfer switches;

F. cut-off switches; and

G. vertical cable runs for the connection of power and other services.

3. Equipment attached to node support poles may not protrude from the outer edge of the node support pole by more than two feet.

4. All network node equipment placed on new and existing poles shall be located not less than eight feet above ground level.

5. Equipment attached to a utility pole must be installed in accordance with the National Electric Safety Code and the utility pole owner's construction standards, subject to all other applicable codes, regulations, or laws.

c. *Lighting.*

Network nodes and node support poles shall not be artificially lighted unless required by the FAA, FCC, or other applicable regulatory authority. If required, lighting shall be designed to cause the least disturbance feasible to the surrounding property owners.

d. *Advertising.*

No sign of any type shall be allowed on a network node, node support pole, or any other component of a wireless antenna installation, transport facility, or any associated equipment, other than notices required by law.

e. *Prohibited power sources.*

Solar panels and generators are prohibited as part of any network node, node support pole, or any other component of a network node installation, transport facility, or any associated equipment, in the ROW.

f. *Visual appearance of equipment.*

The installation of all network nodes, node support poles, or other components of a wireless antenna installation, transport facility, or any associated equipment, whether pole-mounted or ground-mounted, shall be of the least visually intrusive type feasible to meet the design performance goals. This shall be achieved by utilization of the dimensionally smallest equipment and equipment enclosures meeting the design specifications for the particular location and function. Additionally, all equipment, conduit, attachment hardware, and other elements installed or modified by a network provider shall be the same color as the pole to which they are attached, or the background against which they are viewed from the ground. Network providers shall minimize the visual obtrusiveness of installations to the greatest extent possible using methods including, but not limited to, integrating the installation with the existing infrastructure components to which they are attached, or utilization of coverings or concealment devices of similar material, color and texture—or the appearance thereof—as the surface against which the installation will be seen or on which it will be installed. Placing conduit and associated wiring inside new network node steel support poles, or of similar material and design support poles, are encouraged and preferred.

g. *New or replacement pole aesthetic requirements.*

1. Unless noted otherwise, all poles shall be of a size, type, and finish per TCI and subject to section 29-139 of the city Code and applicable federal or state standards.

2. In no event shall new node support poles be placed in front of the front façade of primary structures on any single-family residential lot.

3. For purposes of this manual, structures fronting more than one street shall be considered to have a front façade fronting on each such street.

DIVISION V. ADDITIONAL AESTHETIC REQUIREMENTS IN DESIGN DISTRICTS

a. *Applicability.*

1. The requirements of Division IV of this Manual shall apply to network node installations in the ROW within all city parks, as well as in the ROW within, or directly abutting property within, Design Districts as defined herein.

2. For purposes of Texas Local Government Code Chapter 284 and this manual, the following types of districts shall be considered Design Districts with Decorative Poles:

   A. Downtown 'D'

   B. Historic 'H', 'HS', 'HE' or 'HL', including properties within historic districts and individual properties designated as Historic Landmarks

   C. River Improvement Overlay 'RIO'

   D. Neighborhood Conservation 'NCD'

   E. Corridor Improvement Overlay

   F. Viewshed Protection 'VP' and Mission Protection 'MPOD'

   G. Airport/Military Airport Overlay 'AHOD/MAHOD'

   H. Form-Based Zoning District 'FBZD'

   The above list is intended for information purposes only, is not intended to be exhaustive, and is subject to amendment.

3. The Design Districts listed above may be further subdivided by neighborhood, area, or other division. Where specific requirements apply within sub-districts, such requirements may be elaborated in this Manual.

4. Where conflicts exist between this Manual and other district-specific or sub-district-specific Design Manuals, the more stringent requirements shall control.

b. *Design district aesthetic requirements.*

In addition to the design requirements in Division III of this Manual, the following aesthetic requirements shall apply in Design Districts:

1. The installation of new poles is discouraged in Historic Districts, Downtown "D," River Improvement Overlay Districts, Viewshed Protection and Mission Protection Overlay Districts. No new poles are to be reviewed or approved prior to the submission of a documented effort to install network node equipment onto existing poles within the immediate block or a two hundred fifty-foot radius. If installation is found to be infeasible or unproductive to the area's telecommunication network needs, only then may a new pole installation be considered. The historic preservation officer determines if the network provider has shown good cause for granting an exception to the distance requirement. Good cause is determined in the historic preservation officer's sole discretion and, in any event must be based on the unavailability or unsuitability of all other feasible locations.

2. New pole locations should follow the placement pattern of existing pole structures of the immediate block or within a two hundred fifty-foot radius, regarding both the distance between existing poles and the relationship between poles and abutting structures. Typically, appropriate new pole locations include commercial corners or intersections and the corners between properties.

   A. New poles in districts designated as design districts in this manual shall be placed within ten (10) feet of interior lot lines.

   B. In no event shall new node support poles be placed in front of the front façade of primary structures on any

property designated as historic or within one thousand five hundred (1,500) feet of the brass monument viewshed marker in front of a structure designated by the United Nations as a UNESCO World Heritage site.

3. Network nodes, node support poles, and related equipment shall require camouflage or concealment measures to mitigate the impact or improve the aesthetics of the installation, as determined by the historic preservation officer based on the unique circumstances of the design district or impacted property.

   A. New network node poles should match the material, color, and general form of existing poles within the immediate block or two hundred fifty-foot radius. Typically appropriate poles to mimic include wood utility poles, metal streetlight poles, and metal traffic poles. The historic preservation officer maintains the discretion to stipulate a higher quality and more appropriate pole material and design when matching the existing poles is counterproductive to the design district. Public art poles or specially designed poles may also be considered in unique circumstances such as an arts and culture district or corridor.

   B. New node support poles should blend into the streetscape by using existing familiar forms and functions, rather than calling attention with a new distinct design exclusive to network nodes. For instance, a new node support pole may require the installation of a light arm to prevent the installation of a single-use pole, used solely for mounting network node equipment.

   C. Each new, modified, or replacement utility pole or node support pole shall not exceed the lesser of: a) ten (10) feet in height above the tallest existing utility pole located within five hundred (500) linear feet of the new pole in the same public right-of-way; or b) fifty-five (55) feet above ground level. The dimensions of a new pole should be minimized to the greatest extent feasible, while meeting the minimal requirements for concealing equipment inside the pole or withstanding wind or other structural loads by Code.

4. Pole-mounted network node equipment (including, but not limited to, radios, antennas, meters, shrouds, cabinets, and conduit) shall require camouflage or concealment measures, feature a low profile, and be flush mounted to the greatest extent feasible to mitigate the impact or improve the aesthetics of the installation. Typically, appropriate equipment feature simple geometries and concealed conduit, manufactured or painted to match the pole color, and will not feature any branding, messaging, or outstanding utilitarian details.

5. Ground-based enclosures adjacent to a pole, often used for housing meter and disconnect equipment, are strongly discouraged. When concealing within the base of a pole or underground is infeasible, ground-mounted equipment must be integrated into the overall design of an installation, camouflaged or concealed based on site specific conditions, and positioned to mitigate visual or physical obstructions to nearby historic and design features as recommended by the historic preservation officer. In some site specific conditions, ground equipment may be concealed by the use of existing or new streetscape elements, such as recycling bins, park and bus stop benches, bike racks, or planters.

c. *Decorative poles.*

In accordance with Chapter 284, installation or attachment of wireless communications equipment, including antennas, network nodes,

transport facilities, and related equipment is prohibited on all decorative streetlight poles in Design Districts.

(Ord. No. 2017-08-31-0609, § 1, 8-31-17; Ord. No. 2020-04-02-0225, § 1, 4-2-20)

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CODE COMPARATIVE TABLE

1950 CODE

This table gives the location within this Code of those sections of the 1950 Code, which are included herein.

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1959 CODE

This table gives the location within this Code of those sections of the 1959 Code, as supplemented through December 1, 1983, which are included herein. For the location of ordinances adopted subsequent thereto, see the table immediately following this table.

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87687	4-16-98	1		2-35
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87849	5-21-98	1		28-152(b)(4)
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87907	6- 4-98	1		35-1041
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87912	6- 4-98	1		19-210
87958	6-11-98	1		ch. 16, art. VII(title)
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88129	7-23-98	1	Added	19-286(a), (b)
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88401	9- 3-98	1	Added	2-215—2-217, 2-221—2-225, 2-231—2-233
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88491	9-17-98	1—5	Added	29-163
88492	9-17-98	1	Added	6-4
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89129	1-21-99	1, 2		6-36, 6-37
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89166	1-28-99	1	Added	19-199(20), (21)
89167	1-28-99	1, 2	Added	33-725, 33-726
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89240	2-11-99	1		2-4(5)
89301	2-18-99	1		33-026(a)
89451	3-18-99	1	Added	22-13(f)
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89570	4- 8-99	1		22-1(b)
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89695	4-29-99	1		34-447—34-450
89710	5- 6-99	1	Added	6-290—6-297
89722	5- 6-99	1		35-3311
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89769	5-13-99	2, 3	Added	16-118(a), (b)
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89856	5-27-99	1		22-118(d)(1), (2)
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		5		22-118(f)(1)—(3)
		6	Rpld	22-118(f)(4)
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		9		22-118(j)
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89879	6- 3-99	1		5-156(a)
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89915	6-10-99	1		35-4210
90065	7- 1-99	1		19-194(d)

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		3	Added	2-66(g), (h)
90490	9-16-99	2	Added	21-161
90491	9-16-99	1		6-3
90492	9-16-99	1		2-5
		2		16-232(a)
		3		16-165
90493	9-16-99	1	Added	11-16(q)
		2		16-3(Table I)
		3		16-3(e)
		4		11-16(h)
90494	9-16-99	1, 2		5-10(a)
		3, 4		5-84
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90495	9-16-99	1		2-13
90496	9-16-99	1		19-38(a)
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90497	9-16-99	1		16-236(b)(4)
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		5		22-35
		6	Added	22-89
90498	9-16-99	1	Added	19-55
		2		19-53
		3		19-53.1(a)
90499	9-16-99	1		34-235(b)
90500	9-16-99	1	Added	22-35.2, 22-35.3
90501	9-16-99	1	Added	11-19
90502	9-16-99	1	Added	5-209(g)
90591	9-30-99	21		22-118(d)(3) 22-118(j)
90733	10-21-99	1		34-1301 Ch. 34, Rate Schedule B
		3		34-121
91037	12-16-99	1	Added	35-3073.1—35-3073.3 35-3261 35-3442 35-3351

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			Rpld	35-4027(b)
91093	1- 6-00	1	Added	22-26

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91202	1-27-00	1		35-3258
		4		35-C101
91368	3- 2-00	1		13-36
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		3	Rpld	13-121—13-123
		4	Rpld	13-141—13-153
		5	Rpld	13-171—13-183
			Added	13-171—13-180
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		8		13-213(i)
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		10		13-236(3), (4)
		11	Rpld	13-263
		12	Rpld	13-326—13-344
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		14		13-371
		15		13-201(note)
91447	3-16-00	1		3-42
91700	4-27-00	1		19-1
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		3		19-83.1
		4	Added	35-2080
		5	Added	35-3025
		6		35-4002
		7		35-4213(b)(1)
91738	5- 4-00	1		34-317—34-319
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91950	6- 8-00	1		33-981
		2		33-055
92091	6-29-00	1		22-28
		2	Added	22-130
92179	7-27-00	1		
			Added	34-288—34-300
			Rpld	34-301—34-309
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92282	8-10-00	1		22-1
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92500	9-14-00	1		22-2
92503	9-14-00	1		34-287
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92515	9-14-00	1		16-3
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92517	9-14-00	1		7-32
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		12	Added	22-23.1
92518	9-14-00	1		35-C101
92519	9-14-00	1	Added	3-26
92520	9-14-00	1		22-118(d)(4)
		2	Added	22-118(e)
		3		22-118(i)(2)
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92521	9-14-00	1, 2		19-199(17), (18)
92522	9-14-00	1		14-22
92523	9-14-00	1, 2		15-3
92546	9-21-00	1	Rnbd	5-147(2—4) to (1—3)
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92557	9-21-00	1		6-2(b), (c)
92620	9-28-00		Att. A	24-11, 24-12
92670	10- 5-00	1	Added	35-4124, 35-4125
92699	10-12-00	1		35-3031
92752	10-19-00	1		34-2.01
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			Added	34-122.1—34-124.1,
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92828	11- 2-00	1		10-1, 10-2
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92830	11- 2-00	2		21-6
93004	11-30-00	3		6-51
93084	12-14-00	1—3		22-35.1
			Rnbd	22-35.1(j—m) as 22-35.1(k—n)
93104	12-14-00	1		2-136
93110	12-14-00	1, 2		28-152
93319	1-25-01	1	Rpld	29-106—29-194
			Added	29-106—29-204
93554	3- 8-01	2		22-14
93591	3-15-01	1	Rnbd	Ch. 35, Art. III, Div. 6, Subdv. E as Ch. 35, Art. III, Div. 6, Subdv. F
		2	Added	35-3143—35-3150
93592	3-15-01	1		35-3258(c)
		2	Added	35-3258(q)
93687	3-29-01	1		22-19(1—4)
93693	3-29-01	2		10-93(1)(c)

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93843	4-26-01	1		35-3131—35-3141
			Rnbd	35-3137—35-3141 as 35-3136—35-3140
93955	5-17-01	4		6-51(a)
		5	Rpld	6-51(b—h)
93998	5-24-01	1	Rpld	2-41—2-98
			Added	2-41—2-100
94002	5-24-01	1	Added	34-801—34-809
94100	6-14-01	1		10-93(1)c.
94266	8- 2-01	1		15-186
		2		15-187
			Added	15-188
		3	Dltd	15-196—15-203
		4	Added	15-189—15-205
94321	8- 9-01	1	Added	19-601—19-614
93921	5-10-01	1	Added	2-35(3)
		2		2-35(a)(b)(42)
94566	9-20-01	1		32-19(a)(4)
		2		32-19(c)
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94581	9-20-01	3		14-65(e)
		4		6-172(i), (j)
94582	9-20-01	1		35-C101
		2		35-C201
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94583	9-20-01	1		15-3
94584	9-20-01	1, 2		5-63
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		3	Added	22-7(2)d.
		4		22-7(3)
		5		22-10(a)
		6		22-10(b)(2)
		7		22-10(b)(3)
		8		22-13(a)(2)
		9	Added	22-13(g)
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		16	Added	ch. 22, art. X, § 22-161
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94588	9-20-01	1		3-42
94589	9-20-01	1	Added	3-24(1), (2)
94590	9-20-01	1, 2	Added	3-46
94591	9-20-01	1		22-116
		2		22-118(d)(1), (d)(2)
		3		22-118(f)
		4		22-118(g)
		5		21-118(i)(2)
94592	9-20-01	1		14-22(a), (e), (i)(3)d.
94706	9-13-01	1	Rpld	21-51—21-59, 21-66—21-68
		2	Added	21-51—21-61, 21-66—21-68
94707	10-11-01	1		16-30
94743	10-18-01	1		14-1
			Added	14-11(e)(7), (f), (g)
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			Added	14-19
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94746	10-18-01	1	Added	33-931
94755	10-25-01	1		19-68(b)
94855	11- 1-01	1		22-1(b)
		2	Added	22-3(47)
94857	9-20-01	1	Added	35-1009
95292	2-14-02	1, 2	Added	19-199(22)
95641	4-18-02	1	Added	ch. 6, art. XII, §§ 6-316—6-319

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95709	5- 1-02	1		28-239(d)
96180	8- 8-02	1	Added	22-131
96207	8-15-02	1	Rpld	22-1(b)(42)—22-1(b)(47)
			Rnbd	22-1(b)(48)—22-1(b)(61)
			as	22-1(b)(42)—22-1(b)(55)
96242	8-22-02	1, 2	Rpld	19-386—19-416
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96273	8-29-02	1		6-156(16) 6-158(a), (b) 6-161 6-166(a), (c) 6-167 6-172(d), (i), (j) 6-175(a)
96400	9-19-02	1	Added	31-2
96401	9-19-02	1	Added	31-3
96402	9-19-02	1—3	Added	29-22
96403	9-19-02	1		6-3
96404	9-19-02	2		15-192
96405	9-19-02	1		2-11(j)
96406	9-19-02	1		22-11(a), (b)
		2		22-12(a), (b)
		3		22-17(b)
		4	Added	22-17(c)
		5	Added	22-21.1
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		7	Rpld	22-86
96408	9-19-02	1		19-53(a)
		2		19-53.1(a), (c)
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96409	9-19-02	1, 2		6-3
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96411	9-20-02	1		14-22(a)
96412	9-19-02	1, 2		22-116
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96413	9-19-02	1	Added	2-15
96414	9-19-02	1		19-199

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96416	9-19-02	1	Added	34-1.05
96508	10- 3-02	2		Ch. 29, Art. IV, Div. 8, title
		3—5		29-190
96509	10- 3-02	2—13		29-189
96515	10- 3-02	1		34-235(b)
96563	10-10-02	1		5-12
		2		5-20
96621	10-24-02	11	Added	6-317(b)(5)
96658	10-31-02	1(Att. 1)		34-1301(b)(1)
96681	11- 7-02	5		2-11(k)
96793	11-21-02	1(Att. I)		Ch. 34, Appendix
96794	11-21-02	1(Att. I)		Ch. 34, Appendix
96956	12-19-02	2		28-238
		3		28-247
97000	1- 9-03	2		34-9.2
97049	1-16-03	1		19-68(b)
97212	2-13-03	1		10-167(e)(1), (e)(3)
97213	2-13-03	1	Added	10-93(1)(u)
		2	Added	10-94
97234	2-20-03	2		31-86
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97250	2-27-03	2	Added	Ch. 16, Art. XV, §§ 16-411—16-417
97264	2-27-03	1(Att. 1)		34-2.01
		2(Att. 2)	Added	34-122.3
			Added	Ch. 34, Rate Sch. D
97287	3- 6-03	2—5		28-6
97332	3-13-03	18	Added	Ch. 21, Art. VIII, §§ 21-170—21-172
97395	3-27-03			34-226.3(5)
97495	4-17-03	1		28-141(a)
97622	5-15-03	1		19-68(b)
97623	5-15-03	1		19-68(b)
97627	5-15-03	1		33-981(a)
97683	5-29-03	1		11-40
97711	5-29-03	1(Exh. A)	Rpld	Ch. 2, Art. III, §§ 2-41—2-105
			Added	2-41—2-105
97760	6-12-03	1	Rpld	2-35(e)
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97895	8- 7-03	1	Rpld	36-1—36-8

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98184	9-18-03	4		16-292(c)
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98185	10- 1-03	1		6-3
98186	9-18-03	1		11-16(a)(a), (6), (15), (16)
		2		11-16(c)
		3		11-16(g)(3)
		4		11-16(h)
		5		11-16(i)
		6		11-16(j)
98187	9-18-03	2		2-2(b), (c)
		3	Added	2-2(g)
		5		5-209(b)
		7		5-63(1), (2)
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98188	9-18-03	1(Att. A)		19-38(a)
98189	9-18-03	1		22-9(a)(4)
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		5	Added	22-17(a)(5)
		6	Added	22-21.1(e)
		7	Added	22-21.1(f)
		8		22-21.1(title)
			Added	22-21.1(c), (d)
		9	Added	22-23.2
		10	Added	22-136(g)
		11	Added	22-35.4
98190	9-18-03	1	Added	25-57(k)
		3		19-55
98191	9-18-03	1		15-3
98192	9-18-03	1		32-2
98193	9-18-03	1		22-118(d)
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98203	9-25-03	1		21-22
98235	9-25-03	1	Added	22-145
		2	Rpld	22-56
98236	9-25-03	1		5-1
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		5		5-205(b)
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		7	Added	5-151(10)
98422	11- 7-03	1	Added	6-40
98635	12-18-03	1		34-235(b)
98637	12-18-03	1	Added	13-204(c)
98638	12-18-03	1		20-5
98639	12-18-03	2—4		2-62
		5		2-64(h)
98843	2-12-04	Att. I	Added	Ch. 34, Schs. A—D(2004)
98890	2-26-04	1	Added	Ch. 6, Art. XIII, § 6-630
99085	4-15-04	1		19-68(b)
99090	4-15-04	1—3	Added	16-240
99260	5-27-04	1		6-67
99261	5-27-04	1	Added	10-164, 10-165
99377	6-24-04	1		33-981(a)
99381	6-25-04	1	Added	4-4.3
99480	7-22-04	1(Exh. 1)		Ch. 34, Art. V, Divs. 3, 4
99481	7-22-04	1		6-36
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99482	7-22-04	1		11-32
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99483	7-22-04	1		6-66
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99484	7-22-04	1		24-11
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99517	7-29-04	1		15-83
99538	8- 5-04	1	Added	Ch. 2, Art. VII, §§ 2-300—2-311

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99630	8-26-04	1	Added	Ch. 2, Art. IV, Div. 4, §§ 2-137—2-140.1
99654	9- 2-04	1		19-68
99662	9- 2-04	1—3		19-251
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99729	9-16-04	1		29-22
99730	9-16-04	1		16-189
		2	Added	19-365(b)
99731	9-16-04	1		6-3
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		5		16-417
		6	Added	6-5
		7	Added	Ch. 16, Art. XVI, § 16-900
99732	9-16-04	1, 2	Added	2-16
99733	9-16-04	1		2-5
		2		16-232(a)
		4	Rpld	Ch. 16, Art. VI, §§ 16-161—16-173
		5	Rpld	16-2
99734	9-16-04	1		11-16(a)
		2		11-16(g)
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99735	9-16-04	1, 2		2-2(d)
		3, 4		13-204(d)
		5, 6		15-7
99736	9-16-04	1, 2		2-13
99737	9-16-04	1		2-11(title)
		2		2-11(e)
		3	Added	2-11(k)(5)
		4	Added	2-11(n)
99738	9-16-04	1		19-225(m)
99739	9-16-04	1		7-54(2)b., c.
		2		7-54(6)
		3		22-7
		4		22-10(a)
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		8, 9		22-14(a)
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		13	Added	22-21.1(g)—(m)

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		15		22-126(a)(1)
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99748	9-16-04	1—3	Added	Ch. 2, Art. VIII, §§ 2-501, 2-502
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99750	9-16-04	1		22-10(b)
		2	Added	22-10(d)
99751	9-16-04	1		19-199(27)
99752	9-16-04	1		7-54
99892	10-14-04	1 Att. I	Added	34-3.04(c)
99973	11- 4-04	1		16-412
99994	11-18-04	1(Att. I)		Ch. 34, Sch. A—D
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99995	11-18-04	2(Att. I)		34-226 Ch. 34, Sch. A—C
100030	11-18-04	1(Att. I)		34-472(2)(b) 34-477(2)(a)
100066	12- 9-04	1		34-235(b)
100190	12-16-04	1A—1M	Added	Ch. 21, Art. IX, Div. 1, §§ 21-200—21-212
		1N—1V	Added	Ch. 21, Art. IX, Div. 2, §§ 21-226—21-234
		1W—1BB	Added	Ch. 21, Art. IX, Div. 3, §§ 21-251—21-256
100191	12-16-04	1		21-22

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100280	1-13-05	1	Added	2-35(a)(1)e.—h.
100283	1- 13-05	1	Rpld	2-81(a)
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			as	2-81(j)
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100322	1-20-05	1(Att. A)	Added	Ch. 34, Art. IV, Div. 1, §§ 34-271—34-277
100324	1-20-05	2	Added	Ch. 21, Art. VII, §§ 31-200—31-204
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100380	2- 3-05	1, 2	Added	21-29
100381	2- 3-05	1, 2	Added	21-27
100422	2-17-05	1		19-68(b)
100552	5-10-05	2		33-044
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100588	3-24-05	1(Att. I)		Ch. 34, Schs. "A", "B"
100589	3-24-05	1, 2		16-297
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100823	5- 5-05	1	Added	19-8(i), (j)
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		1O—1W, 1BB	Added	Ch. 21, Art. IX, Div. 2, §§ 21-226—21-235
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101119	7-14-05	1		Ch. 2, Art. IX, §§ 2-526—2-536
101140	7-14-05	2, 3	Added	19-199(28), (29)
101244	8-28-05	1		19-68(b)
101344	9- 1-05	1	Added	33-981(j)
101382	9-15-05	1, 3, 5		19-68(b)
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101396	9-15-05	1		22-118(i)(2)
		2	Added	22-118(c)
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101398	9-15-05	1		7-46
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101400	9-15-05	1	Added	11-16(w)
101401	9-15-05	1	Rpld	2-11(n)
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101406	9-15-05	1		13-231
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2006-03-23-0370	3-23-06	1(Att. 1)	Added	Ch. 16, Art. XVII, §§ 16-901—16-907
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2006-06-08-0694	6- 8-06	1	Added	Ch. 19, Art. VI, Div. 5, §§ 19-240—19-248
2006-06-08-0700	6- 8-06	1		28-152(a)(1), (e)(1)
			Added	28-152(e)(2)
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2006-06-29-0819	6-29-06	1		2-138(c)(2)
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		3	Added	2-138(c)(7)
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		2	Added	6-41
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2006-08-31-0960	8-31-06	1		6-630
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			as	10-172(a)—(e)
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2006-09-07-0996	9- 7-06	1	Added	29-23
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2006-09-07-1006	9- 7-06	1	Added	2-11(o)
2006-09-07-1007	9- 7-06	1		16-304
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2006-09-07-1009	9- 7-06	1		22-2(a)(7)
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2006-09-07-1011	9- 7-06	1		22-118(a)(1)—(3)
2006-09-07-1012	9- 7-06	1	Added	22-16(b)—(d)
2006-09-07-1013	9- 7-06	1		14-22(a)(1)
			Added	14-22(e)(8)
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2007-01-11-0065	1-11-07	2	Rpld	6-278
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		3	Added	Ch. 37, §§ 37-1—37-15
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2007-05-10-0523	5-10-07	1		19-226
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2007-05-17-0559	5-17-07	1		33-003
		2	Added	33-932
2007-08-30-0913	8-20-07	1	Rpld	Ch. 2, Art. VI
		2	Added	Ch. 6, Art. XVI, §§ 6-660—6-676
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2007-08-30-0914	8-30-07	1		19-68(b)
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		2		22-21.1(c)
		3		22-21.1(n)
2007-09-13-0973C&D	9-13-07	1	Added	22-9(a)(4)
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		4	Rpld	Ch. 13, Art. VII
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2007-09-13-0973H	9-13-07	1		2-11(a)
2007-09-13-0973I	9-13-07	1	Added	22-7(1)d.
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			Added	22-18(6)
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2008-05-15-0403	5-15-08	1		Ch. 14, Art. V, §§ 14-61—14-67
2008-05-29-0450	5-29-08	2	Added	22-1(b)(56)
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2008-06-19-0593	6-19-08	1		33-981(a)
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2008-06-19-0594	6-19-08	1	Rpld	Ch. 16, Art. VII, §§ 16-186—16-204
			Added	Ch. 16, Art. VII, §§ 16-186—16-210.5
2008-08-07-0653	8- 7-08	1		Ch. 16, Art. XV, §§ 16-411—16-417
2008-08-14-0701	8-14-08	1		22-21.1(c)
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2008-08-21-0727	8-21-08	1	Added	19-254
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2008-11-20-1041	11-20-08	3	Added	22-1(b)(57)
2008-12-11-1160	12-11-08	1	Rpld	Ch. 16, Art. IV, Divs. 1, 2
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2009-01-15-0030	1-15-2009	1		Ch. 22, Art. II, §§ 22-36—22-43
2009-01-15-0031	1-15-2009	2	Rpld	Ch. 10, Arts. I—VII
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2009-10-29-0860	10-29-09	1	Added	Ch. 16, Art. XVIII, §§ 16-910—16-918
2009-10-29-0861	10-29-09	1	Added	Ch. 16, Art. XIX, §§ 16-920—16-937
2009-11-19-0941	11-19-09	1		14-17(a)—(e)
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2009-12-10-1025	12-10-09	1	Rpld	Ch. 37, §§ 37-1—37-16
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2010-12-09-1026	12- 9-10	1	Added	14-43
2010-12-16-1089	12-16-10	1	Added	21-3(b), (c)
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2012-05-31-0387	5-31-12	1		33-003
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2012-09-20-0740	9-20-12	1		33-928
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2012-10-04-0780	10- 4-12	2	Added	Ch. 20, Art. I (title)
			Added	Ch. 20, Art. II, §§ 20-100—20-110
2012-10-11-0809	10-11-12	1	Added	Ch. 16, Art. XXI, §§ 16-1001—16-1012

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2012-12-13-0971	12-13-12	1	Added	Ch. 16, Art. XX, Divs. 1—5
2012-12-13-1007	12-13-12	1	Added	25-66(e)
2013-01-31-0073	1-31-13	1(Att. I)		Ch. 3, Art. II, Divs. 1—10
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2013-09-05-0577	9- 5-13	1	Added	Ch. 2, Art. X, Divs. 1—7
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2013-09-19-0651	9-19-13	1	Added	Ch. 6, Art. III, §§ 6-36—6-41
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